SUPPLEMENT NO. 37
VOLUMES I AND II
July 2026

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16,558, adopted May 18, 2026.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxix	xv—xxix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CD26:3, CD26:4	CD26:3, CD26:4
CD26:13—CD26:22	CD26:13—CD26:22
CD26:31—CD26:36	CD26:31—CD26:36
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CD114:33—CD114:42	CD114:33—CD114:42
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CD114:88.1, CD114:88.2	CD114:88.1, CD114:88.2
CD114:154.1—CD114:172	CD114:155—CD114:171
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CD114:236.1—CD114:254	CD114:237—CD114:254.2
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CD114:493—CD114:496	CD114:493—CD114:496
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CD114:553—CD114:562	CD114:553—CD114:562
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CD114:585—CD114:603	CD114:585—CD114:603
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SUPPLEMENT NO. 36
VOLUMES I AND II
March 2026

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16,535, adopted January 26, 2026.

See the Code Comparative Table—Volume II for further information.

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VOLUME I	
xv—xxix	xv—xxix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:13	SH:13
CD2:15, CD2:16	CD2:15—CD2:16.1
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CD26:19—CD26:42	CD26:19—CD26:41
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CD114:101, CD114:102	CD114:101, CD114:102
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CD114:139—CD114:142	CD114:139—CD114:142.1
CD114:224.1—CD114:228	CD114:225—CD114:228.1
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CD114:386.1—CD114:394	CD114:387—CD114:394.1
CD114:455—CD114:470.1	CD114:455—CD114:470.1
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SUPPLEMENT NO. 35
VOLUMES I AND II
December 2025

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16,503 adopted September 29, 2025.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
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xv—xxix	xv—xxix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 34
VOLUMES I AND II
July 2025

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16,471, adopted May 19, 2025.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
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xv—xxix	xv—xxix
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SUPPLEMENT NO. 33
VOLUMES I AND II
March 2025

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16,429, adopted January 27, 2025.

See the Code Comparative Table—Volume II for further information.

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VOLUME I	
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CDi:89—CDi:96	CDi:89—CDi:96

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SUPPLEMENT NO. 32
VOLUMES I AND II
November 2024

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16,382, adopted September 16, 2024.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 31
VOLUMES I AND II
July 2024

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16,359, adopted May 6, 2024.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 30
VOLUMES I AND II
April 2024

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16,324, adopted January 22, 2024.

See the Code Comparative Table—Volume II for further information.

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CD114:369—CD114:382	CD114:369—CD114:382
CD114:393—CD114:398.1	CD114:393—CD114:398.1
CD114:423—CD114:426	CD114:423—CD114:426.1
CD114:441, CD114:442	CD114:441—CD114:442.1
CD114:455, CD114:456	CD114:455, CD114:456
CD114:465—CD114:478	CD114:465—CD114:478
CD114:491, CD114:492	CD114:491—CD114:492.1
CD114:499, CD114:500	CD114:499, CD114:500
CD114:509, CD114:510	CD114:509, CD114:510
CD114:519, CD114:520	CD114:519—CD114:520.1
CD114:525, CD114:526	CD114:525, CD114:526
CD114:531, CD114:532	CD114:531—CD114:532.1
CD114:555, CD114:556	CD114:555—CD114:556.1
CD114:561, CD114:562	CD114:561—CD114:562.1
CD114:569, CD114:570	CD114:569—CD114:570.1
CD114:587—CD114:594.1	CD114:587—CD114:594.1
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CDi:9—CDi:16	CDi:9—CDi:16
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CDi:33, CDi:34	CDi:33, CDi:34
CDi:36.1—CDi:38	CDi:37—CDi:38.1
CDi:47—CDi:54	CDi:47—CDi:54
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SUPPLEMENT NO. 29
VOLUMES I AND II
November 2023

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16,279, adopted September 11, 2023.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxviii	xv—xxviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9—SH:11
CD2:17—CD2:18.1	CD2:17—CD2:18.1
CD2:39—CD2:46.1	CD2:39—CD2:46.2
CD10:1	CD10:1
CD10:11—CD10:21	CD10:11—CD10:19
CD30:29, CD30:30	CD30:29, CD30:30
CD74:5, CD74:6	CD74:5, CD74:6
CD74:19, CD74:20	CD74:19, CD74:20
VOLUME II	
xv—xxviii	xv—xxviii
CD114:15, CD114:16	CD114:15, CD114:16
CD114:57—CD114:62	CD114:57—CD114:62
CD114:101—CD114:106.4	CD114:101—CD114:106.4
CD114:165, CD114:166	CD114:165, CD114:166
CD114:187, CD114:188	CD114:187, CD114:188
CD114:219, CD114:220	CD114:219—CD114:220.1
CD114:231, CD114:232	CD114:231, CD114:232
CD114:270.1—CD114:278	CD114:271—CD114:278.1
CD114:295, CD114:296	CD114:295, CD114:296
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CD114:343, CD114:344	CD114:343, CD114:344
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CD114:383, CD114:384	CD114:383, CD114:384
CD114:443, CD114:444	CD114:443, CD114:444
CD114:452.1—CD114:470	CD114:453—CD114:470
CD114:480.1—CD114:488	CD114:481—CD114:488.1
CD114:565, CD114:566	CD114:565—CD114:566.1
CD114:585—CD114:594.1	CD114:585—CD114:594.1
CD118:3, CD118:4	CD118:3, CD118:4
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CDi:3, CDi:4	CDi:3, CDi:4
CDi:61, CDi:62	CDi:61, CDi:62
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CDi:91—CDi:92.1	CDi:91—CDi:92.1

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SUPPLEMENT NO. 28
VOLUMES I AND II
July 2023

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16,251, adopted May 22, 2023.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxviii	xv—xxviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9, SH:10
CD2:3—CD2:10	CD2:3—CD2:10
CD2:14.3—CD2:18	CD2:15—CD2:18.1
CD2:31—CD2:46	CD2:31—CD2:46.1
CD90:3—CD90:7	CD90:3—CD90:7
CD94:5—CD94:12	CD94:5—CD94:12.1
VOLUME II	
xv—xxviii	xv—xxviii
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CD114:12.1	CD114:12.1
CD114:21, CD114:22	CD114:21, CD114:22
CD114:35, CD114:36	CD114:35, CD114:36
CD114:51—CD114:60.1	CD114:51—CD114:60
CD114:86.1—CD114:88	CD114:87—CD114:88.1
CD114:167, CD114:168	CD114:167, CD114:168
CD114:205—CD114:210	CD114:205—CD114:210.1
CD114:283—CD114:286	CD114:283—CD114:286
CD114:313—CD114:318.1	CD114:313—CD114:318.1
CD114:327—CD114:330	CD114:327—CD114:330
CD114:343—CD114:346	CD114:343—CD114:346
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CD114:395—CD114:398	CD114:395—CD114:398.1

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CD114:411—CD114:416	CD114:411—CD114:416.1
CD114:423, CD114:424	CD114:423—CD114:424.1
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CD114:465—CD114:470	CD114:465—CD114:470
CD114:479, CD114:480	CD114:479—CD114:480.1
CD114:487, CD114:488	CD114:487, CD114:488
CD114:508.1—CD114:514	CD114:509—CD114:514.1
CD114:525, CD114:526	CD114:525, CD114:526
CD114:537—CD114:540	CD114:537—CD114:540
CD114:559—CD114:566	CD114:559—CD114:566
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CD114:591—CD114:594	CD114:591—CD114:594.1
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SUPPLEMENT NO. 27
VOLUMES I AND II
February 2023

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16,216, adopted January 9, 2023.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxviii	xv—xxviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9, SH:10	SH:9, SH:10
CD2:11, CD2:12	CD2:11—CD2:12.1
CD2:49—CD2:54	CD2:49—CD2:54
CD2:65, CD2:66	CD2:65, CD2:66
CD58:9, CD58:10	CD58:9—CD58:10.1
CD60:1—CD60:38	CD60:1—CD60:5
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	CD61:3—CD61:13
CD74:3—CD74:21	CD74:3—CD74:21
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CD114:21, CD114:22	CD114:21—CD114:22.1
CD114:26.1—CD114:28.1	CD114:27—CD114:28.1
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CD114:43, CD114:44	CD114:43, CD114:44
CD114:49, CD114:50	CD114:49, CD114:50
CD114:57—CD114:60	CD114:57—CD114:60.1
CD114:206.1—CD114:208	CD114:207—CD114:208.1

Remove Old Pages	*Insert New Pages*
CD114:251, CD114:252	CD114:251—CD114:252.1
CD114:269, CD114:270	CD114:269—CD114:270.1
CD114:289—CD114:300	CD114:289—CD114:300.1
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CD114:339, CD114:340	CD114:339—CD114:340.1
CD114:375—CD114:386	CD114:375—CD114:386.1
CD114:409—CD114:414	CD114:409—CD114:414.1
CD114:421, CD114:422	CD114:421, CD114:422
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CD114:473—CD114:476	CD114:473—CD114:476.1
CD114:485, CD114:486	CD114:485, CD114:486
CD114:507, CD114:508	CD114:507—CD114:508.1
CD114:531, CD114:532	CD114:531, CD114:532
CD114:551—CD114:562	CD114:551—CD114:562.1
CD114:569, CD114:570	CD114:569, CD114:570
CD114:585, CD114:586	CD114:585—CD114:586.1
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CDi:7, CDi:8	CDi:7, CDi:8
CDi:35—CDi:36.1	CDi:35—CDi:36.1
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SUPPLEMENT NO. 26
VOLUMES I AND II
November 2022

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16,175, adopted September 12, 2022.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxviii	xv—xxviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9, SH:10
CD26:5—CD26:7	CD26:5, CD26:6
CD26:56.1—CD26:62	CD26:57—CD26:59
CD42:3, CD42:4	CD42:3, CD42:4
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CD46:1, CD46:2	CD46:1, CD46:2
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CD60:9—CD60:12	CD60:9—CD60:12.1
CD60:31—CD60:37	CD60:31—CD60:38
CD86:3, CD86:4	CD86:3, CD86:4
CD98:7—CD98:8.1	CD98:7—CD98:8.1
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xv—xxviii	xv—xxviii
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CD114:165, CD114:166	CD114:165, CD114:166
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Remove Old Pages	*Insert New Pages*
CD118:48.1—CD118:94.1	CD118:49—CD118:94.1
CDB:1—CDB:19	CDB:1—CDB:18
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SLT:1—SLT:5	SLT:1—SLT:5
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CDi:25—CDi:26.1	CDi:25—CDi:26.1
CDi:29—CDi:30.1	CDi:29—CDi:30.1
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SUPPLEMENT NO. 25
VOLUMES I AND II
June 2022

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16,126, adopted May 9, 2022.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxviii	xv—xxviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9
CD2:62.1—CD2:68	CD2:63—CD2:70
CD18:1, CD18:2	CD18:1—CD18:2.1
CD18:29, CD18:30	CD18:29—CD18:31
CD42:5	CD42:5
CD42:69	CD42:69—CD42:80
CD106:1—CD106:6	CD106:1—CD106:6
CD106:25—CD106:28	CD106:25—CD106:27
CD106:35—CD106:38	CD106:35
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CD114:15, CD114:16	CD114:15—CD114:16.1
CD114:56.1—CD114:72	CD114:57—CD114:68
CD114:141—CD114:146	CD114:141—CD114:146
CD114:187—CD114:200	CD114:187—CD114:200.1
CD114:309, CD114:310	CD114:309, CD114:310
CD114:317—CD114:320	CD114:317—CD114:320
CD114:331—CD114:334	CD114:331—CD114:334.3
CD114:359—CD114:360.1	CD114:359—CD114:360.1
CD114:393, CD114:394	CD114:393—CD114:394.1
CD114:403, CD114:404	CD114:403—CD114:404.1

Remove Old Pages	*Insert New Pages*
CD114:435—CD114:436.1	CD114:435—CD114:436.1
CD114:451—CD114:456.1	CD114:451—CD114:456.1
CD114:467—CD114:468.1	CD114:467—CD114:468.1
CD114:549, CD114:550	CD114:549—CD114:550.1
CD114:562.1—CD114:587	CD114:563—CD114:588
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CDi:23—CDi:26	CDi:23—CDi:26.1
CDi:75—CDi:78	CDi:75—CDi:78
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SUPPLEMENT NO. 24
VOLUMES I AND II
February 2022

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16,095, adopted December 20, 2021.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
Title Page	Title Page
xv—xxviii	xv—xxviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9
CD2:1—CD2:8	CD2:1—CD2:8
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CD2:55—CD2:60	CD2:55—CD2:60
CD26:5, CD26:6	CD26:5, CD26:6
CD26:51—CD26:56	CD26:51—CD26:56.1
CD34:17, CD34:18	CD34:17, CD34:18
CD42:17—CD42:30	CD42:17—CD42:30.2
CD42:45—CD42:48	CD42:45—CD42:48
CD62:1—CD62:6.1	CD62:1—CD62:6.1
CD62:14.1—CD62:28	CD62:15—CD62:30
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CD70:6.1—CD70:8	CD70:7—CD70:8.1
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CD90:1	CD90:1
CD90:3—CD90:6	CD90:3—CD90:7
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CD114:9, CD114:10	CD114:9, CD114:10
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Remove Old Pages	*Insert New Pages*
CD114:41, CD114:42	CD114:41, CD114:42
CD114:105—CD114:106.4	CD114:105—CD114:106.1
CD114:141—CD114:146	CD114:141—CD114:146
CD114:166.1—CD114:168	CD114:167—CD114:168.1
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CD114:315—CD114:318	CD114:315—CD114:318
CD114:327—CD114:332	CD114:327—CD114:332.3
CD114:343—CD114:348	CD114:343—CD114:348.1
CD114:393—CD114:398	CD114:393—CD114:398
CD114:401, CD114:402	CD114:401, CD114:402
CD114:430.1—CD114:432	CD114:431—CD114:432.1
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CD114:455, CD114:456	CD114:455—CD114:456.1
CD114:483, CD114:484	CD114:483, CD114:484
CD114:493—CD114:500	CD114:493—CD114:500
CD114:509, CD114:510	CD114:509—CD114:510.1
CD114:519—CD114:520.2	CD114:519—CD114:520.2
CD114:546.1—CD114:546.3	CD114:546.1—CD114:546.3
CD114:555, CD114:556	CD114:555—CD114:556.1
CD114:571—CD114:572.1	CD114:571—CD114:572.1
CCT:39—CCT:42.1	CCT:39—CCT:42.1
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CDi:15—CDi:30	CDi:15—CDi:30.1
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CDi:43—CDi:56	CDi:43—CDi:56.1
CDi:63—CDi:64.1	CDi:63—CDi:64.1
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SUPPLEMENT NO. 23
VOLUMES I AND II
October 2021

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16,046, adopted September 13, 2021.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxviii	xv—xxviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:9	SH:9
CD50:3—CD50:18	CD50:3—CD50:18
CD60:1—CD60:36	CD60:1—CD60:37
CD78:1, CD78:2	CD78:1, CD78:2
CD78:15—CD78:27	CD78:15—CD78:24
VOLUME II	
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CD114:161, CD114:162	CD114:161, CD114:162
CD114:171, CD114:172	CD114:171, CD114:172
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CD114:365—CD114:370.1	CD114:365—CD114:370.1
CD114:403—CD114:406	CD114:403—CD114:406
CD114:425—CD114:430.1	CD114:425—CD114:430.1
CD114:457—CD114:468.1	CD114:457—CD114:468.1
CD114:491, CD114:492	CD114:491, CD114:492
CD114:499—CD114:504	CD114:499—CD114:504
CD114:517—CD114:520.2	CD114:517—CD114:520.2
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CCT:39—CCT:42.1	CCT:39—CCT:42.1
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CDi:55—CDi:60	CDi:55—CDi:60.1

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SUPPLEMENT NO. 22
VOLUMES I AND II
June 2021

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 16,009, adopted May 10, 2021.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxviii	xv—xxviii
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CD26:81—CD26:84	CD26:81—CD26:84
CD50:3—CD50:17	CD50:3—CD50:18
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CD114:131—CD114:134	CD114:131—CD114:134.1
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CD114:331—CD114:336	CD114:331—CD114:336.1
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CD114:405—CD114:422	CD114:405—CD114:422.1
CD114:449, CD114:450	CD114:449, CD114:450
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SUPPLEMENT NO. 21
VOLUMES I AND II
February 2021

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15,969, adopted January 25, 2021.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CD114:169—CD114:174.1	CD114:169—CD114:174.1
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SUPPLEMENT NO. 20
VOLUMES I AND II
October 2020

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15,928, adopted October 5, 2020.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
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CD114:439, CD114:440	CD114:439, CD114:440
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CD114:476.1—CD114:478	CD114:477—CD114:478.1
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CD114:531—CD114:540	CD114:531—CD114:540.3
CD114:565—CD114:570	CD114:565—CD114:570.1
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CDi:43—CDi:58	CDi:43—CDi:58.1
CDi:71—CDi:74	CDi:71—CDi:74
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SUPPLEMENT NO. 19
VOLUMES I AND II
June 2020

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15,895, adopted May 18, 2020.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 18
VOLUMES I AND II
March 2020

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15,861, adopted February 10, 2020.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 17
VOLUMES I AND II
November 2019

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15,823, adopted November 4, 2019.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
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CCT:39—CCT:42.1	CCT:39—CCT:42.1
CCT:67	CCT:67, CCT:68
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CDi:1—CDi:96	CDi:1—CDi:96.1

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SUPPLEMENT NO. 16
VOLUMES I AND II
July 2019

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15,785, adopted June 24, 2019.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxix	xv—xxix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5, SH:6	SH:5, SH:6
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CD14:3—CD14:8	CD14:3—CD14:8
CD26:5—CD26:10	CD26:5—CD26:7
	CD26:9—CD26:10.3
CD26:79	CD26:79—CD26:84
CD30:3, CD30:4	CD30:3, CD30:4
CD30:11—CD30:18	CD30:11—CD30:18
CD30:25—CD30:33	CD30:25—CD30:33
CD62:1—CD62:4.1	CD62:1—CD62:4.1
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CD114:61, CD114:62	CD114:61, CD114:62
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CD114:112.1—CD114:116	CD114:113—CD114:116.1
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CD114:203—CD114:206	CD114:203—CD114:206.1
CD114:218.1—CD114:232	CD114:219—CD114:232.1
CD114:240.1—CD114:256.1	CD114:241—CD114:256.2
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CD114:288.1—CD114:290	CD114:289, CD114:290
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CD114:509, CD114:510	CD114:509, CD114:510
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CD114:529—CD114:538	CD114:529—CD114:538.1
CD114:543—CD114:548.1	CD114:543—CD114:548.1
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CD118:38.1—CD118:40	CD118:39—CD118:40.1
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SUPPLEMENT NO. 15
VOLUMES I AND II
February 2019

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15,746, adopted February 11, 2019.

See the Code Comparative Table—Volume II for further information.

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VOLUME I	
xv—xxix	xv—xxix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CD114:31, CD114:32	CD114:31, CD114:32
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CD114:537—CD114:546	CD114:537—CD114:546.1
CD114:554.1—CD114:556.2	CD114:555—CD114:556.2
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SUPPLEMENT NO. 14
VOLUMES I AND II
November 2018

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15,721, adopted October 22, 2018.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
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xv—xxix	xv—xxix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 13
VOLUMES I AND II
July 2018

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15,675, adopted June 25, 2018.

See the Code Comparative Table—Volume II for further information.

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xv—xxix	xv—xxix
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CD60:4.1	CD60:4.1
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SUPPLEMENT NO. 12
VOLUMES I AND II
March 2018

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15,645, adopted February 5, 2018.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 11
VOLUMES I AND II
October 2017

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15,619, adopted October 9, 2017.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
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Remove Old Pages	*Insert New Pages*
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CD102:21—CD102:24	CD102:21—CD102:24
CD102:71, CD102:72	CD102:71—CD102:72.1
CD102:141—CD102:145	CD102:141—CD102:145
CD106:7—CD106:10	CD106:7—CD106:10.1
CD106:35—CD106:38	CD106:35—CD106:38
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CD114:87—CD114:90.1	CD114:87—CD114:90.1
CD114:99—CD114:102.1	CD114:99—CD114:102.1
CD114:125, CD114:126	CD114:125—CD114:126.1
CD114:136.1—CD114:142	CD114:137—CD114:142
CD114:147—CD114:152	CD114:147—CD114:152
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CD114:445—CD114:454	CD114:445—CD114:454
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CD114:504.1—CD114:506	CD114:505—CD114:506.1
CD114:545, CD114:546	CD114:545—CD114:546.1
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CD114:611, CD114:612	CD114:611, CD114:612
CD118:9, CD118:10	CD118:9—CD118:10.1
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CD130:7, CD130:8	CD130:7, CD130:8
CD134:11, CD134:12	CD134:11—CD134:12.1

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CD134:21—CD134:24	CD134:21—CD134:24.1
CD134:105—CD134:108.1	CD134:105—CD134:108.1
CCT:39—CCT:42	CCT:39—CCT:42.1
CCT:63	CCT:63, CCT:64
CDi:7—CDi:12.1	CDi:7—CDi:12.1
CDi:17—CDi:24	CDi:17—CDi:24.1
CDi:29—CDi:46	CDi:29—CDi:46
CDi:51—CDi:52.1	CDi:51—CDi:52.1
CDi:65—CDi:86	CDi:65—CDi:86.2

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SUPPLEMENT NO. 10
VOLUMES I AND II
July 2017

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15,596, adopted July 10, 2017.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxix	xv—xxix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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CD42:19—CD42:34	CD42:19—CD42:34.1
CD42:41—CD42:46	CD42:41—CD42:46.1
CD42:59, CD42:60	CD42:59, CD42:60
CD46:1, CD46:2	CD46:1, CD46:2
CD46:9, CD46:10	CD46:9—CD46:10.1
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CD60:3, CD60:4	CD60:3—CD60:4.1
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CD78:3, CD78:4	CD78:3, CD78:4
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VOLUME II	
xv—xxix	xv—xxix

Remove Old Pages	*Insert New Pages*
CD114:2.1—CD114:4	CD114:3—CD114:4.1
CD114:23—CD114:28	CD114:23—CD114:28.1
CD114:32.1—CD114:70	CD114:33—CD114:70.1
CD114:83—CD114:90	CD114:83—CD114:90.1
CD114:107—CD114:110	CD114:107—CD114:110.1
CD114:221—CD114:226	CD114:221—CD114:226.1
CD114:230.1—CD114:234	CD114:231—CD114:234.1
CD114:243—CD114:250.1	CD114:243—CD114:250.1
CD114:270.1—CD114:304	CD114:271—CD114:304.2
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CD114:343—CD114:354.1	CD114:343—CD114:354.1
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CD114:465—CD114:488	CD114:465—CD114:488.1
CD114:501—CD114:504.1	CD114:501—CD114:504.1
CD114:529—CD114:556.1	CD114:529—CD114:556.2
CD114:569—CD114:572	CD114:569—CD114:572
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CD134:7—CD134:9	CD134:7—CD134:9
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CD134:145, CD134:146	CD134:145, CD134:146
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CDi:19, CDi:20	CDi:19, CDi:20
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SUPPLEMENT NO. 9
VOLUMES I AND II
March 2017

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15,562, adopted February 20, 2017.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
iii	iii
xv—xxix	xv—xxix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3, SH:4
CD2:41—CD2:44	CD2:41—CD2:44.1
CD10:9, CD10:10	CD10:9, CD10:10
CD26:1—CD26:70	CD26:1—CD26:79
CD46:1—CD46:23	CD46:1—CD46:42
CD60:1—CD60:37	CD60:1—CD60:37
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Remove Old Pages	*Insert New Pages*
CD114:241, CD114:242	CD114:241, CD114:242
CD114:249—CD114:250.1	CD114:249—CD114:250.1
CD114:255—CD114:256.1	CD114:255—CD114:256.1
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CD114:318.1—CD114:320	CD114:319, CD114:320
CD114:325—CD114:328	CD114:325—CD114:328.1
CD114:343—CD114:354.1	CD114:343—CD114:354.1
CD114:363—CD114:364.2	CD114:363—CD114:364.2
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CD114:389—CD114:398	CD114:389—CD114:398.1
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CD114:511, CD114:512	CD114:511—CD114:512.1
CD114:561—CD114:586	CD114:561—CD114:586
CD114:609—CD114:631	CD114:609—CD114:631
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CDi:17—CDi:42	CDi:17—CDi:42.1
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CDi:91—CDi:94	CDi:91—CDi:93

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SUPPLEMENT NO. 8
VOLUMES I AND II
October 2016

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15,521, adopted October 24, 2016.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxviii	xv—xxix
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD1:3—CD1:9	CD1:3—CD1:9
CD2:1, CD2:2	CD2:1, CD2:2
CD2:11—CD2:18.1	CD2:11—CD2:18
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CD60:1—CD60:27	CD60:1—CD60:37
CD70:1—CD70:3	CD70:1—CD70:3
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CD114:215—CD114:218.1	CD114:215—CD114:218.1
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CD114:375, CD114:376	CD114:375—CD114:376.1
CD114:384.1—CD114:386	CD114:385—CD114:386.1
CD114:402.1—CD114:404	CD114:403—CD114:404.1
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CD114:475—CD114:484	CD114:475—CD114:484.1
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SUPPLEMENT NO. 7
VOLUMES I AND II
June 2016

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15,481, adopted May 23, 2016.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
	VOLUME I
Title Page	Title Page
xv—xxviii	xv—xxviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
CD1:7—CD1:9	CD1:7—CD1:9
CD3:1	CD3:1
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CD114:29—CD114:40	CD114:29—CD114:40.1
CD114:58.1—CD114:60	CD114:59—CD114:60.1
CD114:113—CD114:116	CD114:113—CD114:116
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CD114:181, CD114:182	CD114:181—CD114:182.1
CD114:201, CD114:202	CD114:201, CD114:202
CD114:215—CD114:218.1	CD114:215—CD114:218.1
CD114:239—CD114:246	CD114:239—CD114:246.1
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CDi:51—CDi:52.1	CDi:51—CDi:52.1
CDi:75—CDi:84	CDi:75—CDi:84

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SUPPLEMENT NO. 6
VOLUMES I AND II
February 2016

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15,440, adopted December 21, 2015.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
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CD74:17—CD74:23	CD74:17—CD74:23
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CD102:7—CD102:10	CD102:7—CD102:10
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CD114:389—CD114:402	CD114:389—CD114:402.1
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CCT:59	CCT:59, CCT:60
CDi:68.1—CDi:70	CDi:69—CDi:70.1

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SUPPLEMENT NO. 5
VOLUMES I AND II
October 2015

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15,408, adopted October 12, 2015.

See the Code Comparative Table—Volume II for further information.

Remove Old Pages	*Insert New Pages*
VOLUME I	
xv—xxviii	xv—xxviii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
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CD114:65	CD114:65
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CD114:225, CD114:226	CD114:225—CD114:226.1

Remove Old Pages	*Insert New Pages*
CD114:245—CD114:250	CD114:245—CD114:250.1
CD114:263—CD114:268	CD114:263—CD114:268.1
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SUPPLEMENT NO. 4
VOLUMES I AND II
June 2015

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15,369, adopted May 18, 2015.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 3
February 2015

CODE OF ORDINANCES

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15,341, adopted January 26, 2015.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 2
VOLUMES I AND II
October 2014

MUNICIPAL CODE

of the

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15,321, adopted October 20, 2014.

See the Code Comparative Table—Volume II for further information.

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SUPPLEMENT NO. 1
VOLUMES I AND II
June 2014

MUNICIPAL CODE

of the

City of

DES MOINES, IOWA

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 15,288, adopted June 9, 2014.

See the Code Comparative Table—Volume II for further information.

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REPUBLICATION
VOLUMES I AND II
March 2014

MUNICIPAL CODE

City of

DES MOINES, IOWA

Looseleaf Supplement

This copy of the Des Moines Municipal Code is issued as a "replacement" copy and contains all ordinances deemed advisable to be included at this time through Ordinance No. 15,255, adopted January 27, 2014. See the Code Comparative Table—Volume II for further information.

This copy replaces all existing copies of the Code as published through Supplement No. 52. Future supplements will commence with "Supplement No. 1."

MUNICIPAL CODE

OF THE

CITY OF

DES MOINES, IOWA

VOLUME I

Published in 2000 by Order of the City Council
Republished in 2014 by Order of the City Council

Adopted: June 5, 2000
Effective: July 1, 2000

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CURRENT OFFICIALS

of the

CITY OF

DES MOINES, IOWA

(2017)

T.M. Franklin Cownie
Mayor

Christopher Coleman
Bill Gray
Joe Gatto
Christine Hensley
Skip Moore
Linda Westergaard
City Council

Scott Sanders
City Manager

Jeffrey D. Lester
City Attorney

Diane Rauh
City Clerk

OFFICIALS

of the

CITY OF

DES MOINES, IOWA

AT THE TIME OF THIS CODIFICATION

Preston A. Daniels
Mayor

Tom Vlassis
Mike McPherson
Chris Hensley
Archie Brooks
George E. Flagg
Christopher Coleman
City Council

Eric Anderson
City Manager

Bruce E. Bergman
City Attorney

Donna Boetel-Baker, CMC/AAE
City Clerk

PREFACE

This Code constitutes a recodification of the general and permanent ordinances of the City of Des Moines, Iowa.

Source materials used in the preparation of the Code were the 1991 Code, as supplemented through November 21, 1997, and ordinances subsequently adopted by the city council. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the comparative tables appearing in the back of this Code, the reader can locate any section of the 1991 Code, as supplemented, and any subsequent ordinance included herein.

The chapters of the Code have been conveniently arranged in alphabetical order, and the various sections within each chapter have been catchlined to facilitate usage. Notes which tie related sections of the Code together and which refer to relevant state law have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this Code.

Chapter and Section Numbering System

The chapter and section numbering system used in this Code is the same system used in many state and local government codes. Each section number consists of two parts separated by a dash. The figure before the dash refers to the chapter number, and the figure after the dash refers to the position of the section within the chapter. Thus, the second section of chapter 1 is numbered 1-2, and the first section of chapter 6 is 6-1. Under this system, each section is identified with its chapter, and at the same time new sections can be inserted in their proper place by using the decimal system for amendments. For example, if new material consisting of one section that would logically come between sections 6-1 and 6-2 is desired to be added, such new section would be numbered 6-1.5. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject. The next successive number shall be assigned to the new article or division. New chapters may be included by using one of the reserved chapter numbers. Care should be taken that the alphabetical arrangement of chapters is maintained when including new chapters.

Page Numbering System

The page numbering system used in this Code is a prefix system. The letters to the left of the colon are an abbreviation which represents a certain portion of the volume. The number to the right of the colon represents the number of the page in that portion. In the case of a chapter of the Code, the number to the left of the colon indicates the number of the chapter. In the case of an appendix to the Code, the letter immediately to the left of the colon indicates the letter of the appendix. The following are typical parts of codes of ordinances, which may or may not appear in this Code at this time, and their corresponding prefixes:

CODE CD1:1
CODE APPENDIX CDA:1
CODE COMPARATIVE TABLES CCT:1
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CODE INDEX CDi:1

Index

The index has been prepared with the greatest of care. Each particular item has been placed under several headings, some of which are couched in lay phraseology, others in legal terminology, and still others in language generally used by local government officials and employees. There are numerous cross references within the index itself which stand as guideposts to direct the user to the particular item in which the user is interested.

Looseleaf Supplements

A special feature of this publication is the looseleaf system of binding and supplemental servicing of the publication. With this system, the publication will be kept up-to-date. Subsequent amendatory legislation will be properly edited, and the affected page or pages will be reprinted. These new pages will be distributed to holders of copies of the publication, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Keeping this publication up-to-date at all times will depend largely upon the holder of the publication. As revised pages are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

This publication was under the direct supervision of James S. Vaught, Supervising Editor, and Jody Wilson, Editor, of the Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publisher is most grateful to Mr. Bruce E. Bergman, City Attorney, Terrence L. Timmins and Lawrence R. McDowell, Deputy City Attorneys and the other members of the legal department staff, for their cooperation and assistance during the progress of the work on this publication. It is hoped that their efforts and those of the publisher have resulted in a Code of Ordinances which will make the active law of the city readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the city's affairs.

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Municipal Code Corporation and the City of Des Moines, Iowa. 2000.

ADOPTING ORDINANCE

ORDINANCE NO. 13,827

AN ORDINANCE recodifying the ordinances of the City of Des Moines, Iowa, as the Municipal Code of the City of Des Moines, Iowa, 2000; providing for the repeal of certain ordinances not included therein; providing a penalty for the violation thereof; providing for the manner of amending such Code; and, providing when this ordinance and such Code shall become effective.

WHEREAS, the City Council of the City of Des. Moines, Iowa proposes to adopt a revised code of ordinances containing existing ordinances of the City of Des Moines of a general and permanent nature and certain special ordinances, with amendments to certain of those ordinances to correct typographical and technical errors, and to correct conflicts with state or local law found in those ordinances, said revised code of ordinances to be known as the Municipal Code of the City of Des Moines, Iowa, 2000; and,

WHEREAS, the revision of the code of ordinances has now been completed, and said revised code of ordinances, to be known as the Municipal Code of the City of Des Moines, Iowa, 2000, is now on file in the office of the City Clerk; and,

WHEREAS, after due notice of public hearing published as required by law, a public hearing has been held on the proposal to adopt a revised code of ordinances, and the City Council has determined that the revised code of ordinances should be adopted as the Municipal Code of the City of Des Moines, Iowa, 2000; NOW, THEREFORE,

BE IT ORDAINED, by the City Council of the City of Des Moines, Iowa, as follows:

Section 1. The Municipal Code of the City of Des Moines, Iowa, 2000, published by Municipal Code Corporation and consisting of chapters 1 through 134, each inclusive, and Appendix A through G, each inclusive, which is on file in the office of the City Clerk is hereby adopted pursuant to Iowa Code 380.8(2)(b). The said Code and all supplements to the said Code hereafter adopted by resolution of the City Council pursuant to Iowa Code 380.8(1) shall collectively be known as the "Municipal Code of the City of Des Moines, Iowa, 2000", and also as the "Des Moines City Code, 2000".

Sec. 2. All ordinances enacted on or before April 17, 2000, and not included in and continued in force by the Municipal Code of the City of Des Moines, Iowa, 2000, including all provisions of the Municipal Code of the City of Des Moines, Iowa, 1991, are hereby repealed.

Sec. 3. The repeal provided for in section 2 of this ordinance shall not affect any of the following:

a) Any offense or act committed or done or any penalty or forfeiture incurred or any contract or right established or accruing before the effective date of this Code.

b) Any ordinance or resolution promising or guaranteeing the payment of money for the city, or authorizing the issuance of any bonds of the city or any evidence of the city's indebtedness, or any contract or obligation assumed by the city.

c) Any franchise granted by any ordinance of the city.

d) Any ordinance dedicating, accepting the dedication of, naming, establishing, locating, opening, paving, widening, vacating, etc., any street, alley, public way or public park in the city.

e) Any ordinance adopting or amending a zoning map or rezoning specific property or any amendment thereto.

f) Any ordinance establishing or prescribing street grades in the city.

g) Any ordinance extending or contracting the boundaries of the city.

h) Any temporary ordinance or ordinance not of general application.

i) Ordinances establishing or modifying election precinct or ward boundaries.

j) Ordinances establishing or amending the city limits.

k) Ordinances No. 9454 as amended by Ordinance No. 10,565 establishing the hotel and motel tax.

l) Any resolution or motion of the City Council not in conflict with or inconsistent with the provisions of the Municipal Code of the City of Des Moines, Iowa, 2000.

m) Any ordinance levying or imposing a tax or assessment.

n) Any ordinance designating an urban revitalization area pursuant to Iowa Code Chapter 404.

o) Any ordinance establishing a self-supported municipal improvement district pursuant to Iowa Code Chapter 386.

p) Any ordinance providing for the division of revenue from taxation within an urban renewal area pursuant to Iowa Code Section 403.19.

Sec. 4. The repeal provided for in section 2 of this ordinance shall not be construed to revive any ordinance or part thereof that has been repealed by any subsequent ordinance that is repealed by this ordinance.

Sec. 5. Additions or amendments to the Municipal Code of the City of Des Moines, Iowa, 2000, when passed in such form as to indicate the intention of the City Council to make the same a part of the Municipal Code of the City of Des Moines, Iowa, 2000, shall be deemed to be incorporated in the Code, so that reference to the Code includes the additions and amendments.

Sec. 6. Ordinances adopted after April 17, 2000, that amend or refer to ordinances that have been codified in the Municipal Code of the City of Des Moines, Iowa, 2000 shall be construed as if they amend or refer to like provisions of the Code.

Sec. 7. An official copy of the Municipal Code of the City of Des Moines, Iowa, 2000, as adopted by this ordinance, including a certificate of the City Clerk as to its adoption and effective date, shall be placed on file in the office of the City Clerk.

Sec. 8. Copies of the Municipal Code of the City of Des Moines, Iowa, 2000, shall be kept available in the City Clerk's office for public inspection.

Sec. 9. Copies of the Municipal Code of the City of Des Moines, Iowa, 2000, shall be furnished to the State Law Library, to the Des Moines Public Library, and to the Polk County District Court.

Sec. 10. The City Clerk is hereby authorized and directed to cause publication of this ordinance to be made as provided by Section 380.8 of the Code of Iowa, 1999.

Sec. 11. Municipal Code Corporation is hereby authorized and empowered to sell the Municipal Code of the City of Des Moines, Iowa, 2000, to the public under the terms and conditions provided in its contract with the City, until otherwise directed by this City Council. All moneys received from the sale thereof shall be credited to the general fund.

Sec. 12. This ordinance and the Municipal Code of the City of Des Moines, Iowa, 2000, hereby adopted shall be in full force and effect from and after July 1, 2000.

FORM APPROVED:

/s/ _____

Bruce E. Bergman
City Attorney

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The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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CDi:19, CDi:20	37	CDi:95, CDi:96	37
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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code Book and are considered "Includes." Ordinances that are not of a general and permanent nature are not codified in the Code Book and are considered "Omits."

In addition, by adding to this table with each supplement, users of this Municipal Code will be able to gain a more complete picture of the Code's historical evolution.

Ord. No.	Include/ Omit	Supp. No.
Supp. No. 1		
15,262	Include	1
15,263	Include	1
15,269	Include	1
15,271	Include	1
15,275	Include	1
15,277	Include	1
15,278	Include	1
15,279	Include	1
15,282	Include	1
15,283	Include	1
15,286	Include	1
15,287	Include	1
15,288	Include	1
Supp. No. 2		
15,289	Include	2
15,290	Include	2
15,291	Include	2
15,292	Include	2
15,293	Include	2
15,294	Include	2
15,295	Include	2
15,297	Include	2
15,301	Include	2
15,306	Include	2
15,311	Include	2
15,312	Include	2
15,314	Include	2
15,315	Include	2
15,316	Include	2
15,321	Include	2
Supp. No. 3		
15,322	Include	3

Ord. No.	Include/ Omit	Supp. No.
15,323	Include	3
15,328	Include	3
15,330	Include	3
15,332	Include	3
15,333	Include	3
15,334	Include	3
15,337	Include	3
15,338	Include	3
15,340	Include	3
15,341	Include	3
Supp. No. 4		
15,342	Include	4
15,347	Include	4
15,348	Include	4
15,349	Include	4
15,351	Include	4
15,352	Include	4
15,353	Include	4
15,354	Include	4
15,355	Include	4
15,357	Include	4
15,358	Include	4
15,362	Include	4
15,363	Include	4
15,366	Include	4
15,367	Include	4
15,369	Include	4
Supp. No. 5		
15,372	Include	5
15,373	Include	5
15,385	Include	5
15,387	Include	5
15,394	Include	5
15,397	Include	5
15,399	Include	5
15,403	Include	5
15,404	Include	5
15,405	Include	5
15,408	Include	5
Supp. No. 6		
14,345	Include	6
14,723	Include	6
15,415	Include	6
15,418	Include	6
15,419	Include	6
15,420	Include	6

Ord. No.	Include/ Omit	Supp. No.
15,421	Include	6
15,423	Include	6
15,425	Include	6
15,426	Include	6
15,427	Include	6
15,431	Include	6
15,432	Include	6
15,440	Include	6
Supp. No. 7		
15,446	Include	7
15,447	Include	7
15,448	Include	7
15,454	Include	7
15,455	Include	7
15,456	Include	7
15,458	Include	7
15,461	Include	7
15,462	Include	7
15,464	Include	7
15,466	Include	7
15,470	Include	7
15,473	Include	7
15,474	Include	7
15,481	Include	7
Supp. No. 8		
15,484	Include	8
15,486	Include	8
15,487	Include	8
15,489	Include	8
15,490	Include	8
15,495	Include	8
15,496	Omit	8
15,502	Include	8
15,503	Include	8
15,505	Include	8
15,506	Include	8
15,514	Include	8
15,517	Include	8
15,521	Include	8
Supp. No. 9		
15,526	Include	9
15,527	Include	9
15,528	Include	9
15,534	Include	9
15,536	Include	9
15,537	Include	9

Ord. No.	Include/ Omit	Supp. No.
15,540	Include	9
15,541	Include	9
15,542	Include	9
15,543	Include	9
15,545	Include	9
15,546	Include	9
15,547	Omit	9
15,548	Omit	9
15,553	Include	9
15,554	Include	9
15,556	Include	9
15,559	Include	9
15,562	Include	9
Supp. No. 10		
15,563	Include	10
15,564	Include	10
15,565	Include	10
15,566	Include	10
15,568	Include	10
15,569	Include	10
15,571	Include	10
15,577	Include	10
15,578	Include	10
15,580	Include	10
15,583	Include	10
15,585	Include	10
15,586	Include	10
15,588	Include	10
15,589	Include	10
15,590	Include	10
15,594	Include	10
15,596	Include	10
Supp. No. 11		
15,597	Include	11
15,598	Include	11
15,606	Include	11
15,608	Include	11
15,609	Include	11
15,613	Include	11
15,614	Include	11
15,617	Include	11
15,618	Omit	11
15,619	Include	11
Supp. No. 12		
15,386	Include	12
15,422	Include	12

Ord. No.	Include/ Omit	Supp. No.
15,620	Include	12
15,621	Include	12
15,623	Include	12
15,624	Include	12
15,629	Include	12
15,631	Omit	12
15,632	Include	12
15,634	Include	12
15,635	Include	12
15,639	Include	12
15,640	Include	12
15,641	Include	12
15,645	Include	12
Supp. No. 13		
15,646	Include	13
15,648	Include	13
15,649	Include	13
15,652	Include	13
15,656	Include	13
15,657	Include	13
15,658	Include	13
15,660	Include	13
15,664	Include	13
15,665	Include	13
15,666	Include	13
15,667	Include	13
15,670	Include	13
15,671	Include	13
15,675	Include	13
Supp. No. 14		
15,680	Include	14
15,681	Include	14
15,682	Omit	14
15,687	Include	14
15,688	Include	14
15,690	Include	14
15,692	Include	14
15,694	Include	14
15,695	Include	14
15,696	Include	14
15,697	Include	14
15,701	Include	14
15,702	Include	14
15,703	Include	14
15,704	Include	14
15,705	Include	14

Ord. No.	Include/ Omit	Supp. No.
15,707	Include	14
15,711	Include	14
15,712	Include	14
15,713	Include	14
15,714	Include	14
15,721	Include	14
Supp. No. 15		
15,722	Include	15
15,723	Include	15
15,726	Include	15
15,730	Include	15
15,731	Omit	15
15,732	Include	15
15,733	Include	15
15,734	Include	15
15,735	Include	15
15,736	Include	15
15,739	Include	15
15,740	Include	15
15,746	Include	15
Supp. No. 16		
15,750	Include	16
15,753	Include	16
15,756	Include	16
15,757	Include	16
15,761	Include	16
15,762	Include	16
15,763	Include	16
15,767	Omit	16
15,768	Include	16
15,769	Include	16
15,770	Include	16
15,771	Include	16
15,772	Include	16
15,775	Include	16
15,776	Include	16
15,777	Include	16
15,778	Include	16
15,779	Include	16
15,780	Include	16
15,781	Include	16
15,785	Include	16
Supp. No. 17		
15,788	Include	17
15,789	Include	17
15,790	Include	17

Ord. No.	Include/ Omit	Supp. No.
15,796	Include	17
15,797	Include	17
15,801	Include	17
15,803	Include	17
15,807	Include	17
15,808	Include	17
15,809	Include	17
15,814	Include	17
15,815	Include	17
15,821	Include	17
15,823	Include	17
Supp. No. 18		
15,816	Include	18
15,817	Include	18
15,819	Include	18
15,822	Include	18
15,828	Include	18
15,830	Include	18
15,831	Include	18
15,832	Include	18
15,833	Include	18
15,834	Include	18
15,835	Include	18
15,836	Include	18
15,838	Include	18
15,847	Include	18
15,848	Include	18
15,849	Include	18
15,850	Include	18
15,852	Include	18
15,853	Include	18
15,854	Include	18
15,858	Include	18
15,859	Include	18
15,860	Include	18
15,861	Include	18
Supp. No. 19		
15,867	Include	19
15,868	Include	19
15,871	Include	19
15,875	Include	19
15,876	Include	19
15,877	Include	19
15,879	Include	19
15,880	Include	19
15,881	Include	19

Ord. No.	Include/ Omit	Supp. No.
15,882	Include	19
15,883	Include	19
15,894	Include	19
15,895	Include	19
Supp. No. 20		
15,899	Include	20
15,903	Include	20
15,904	Include	20
15,905	Include	20
15,906	Include	20
15,909	Include	20
15,910	Include	20
15,911	Include	20
15,914	Include	20
15,915	Include	20
15,918	Include	20
15,919	Include	20
15,920	Include	20
15,925	Include	20
15,926	Include	20
15,927	Include	20
15,928	Include	20
Supp. No. 21		
15,934	Include	21
15,935	Include	21
15,939	Include	21
15,943	Include	21
15,944	Include	21
15,947	Include	21
15,956	Include	21
15,957	Include	21
15,963	Include	21
15,965	Include	21
15,966	Include	21
15,967	Include	21
15,968	Include	21
15,969	Include	21
Supp. No. 22		
15,974	Include	22
15,983	Include	22
15,984	Include	22
15,985	Include	22
15,986	Include	22
15,991	Include	22
15,992	Include	22
15,997	Include	22

Ord. No.	Include/ Omit	Supp. No.
16,003	Include	22
16,004	Include	22
16,005	Include	22
16,009	Include	22
Supp. No. 23		
16,013	Include	23
16,017	Include	23
16,027	Include	23
16,034	Include	23
16,042	Include	23
16,043	Include	23
16,045	Include	23
16,046	Include	23
Supp. No. 24		
16,052	Include	24
16,061	Include	24
16,062	Include	24
16,064	Include	24
16,065	Include	24
16,075	Include	24
16,079	Include	24
16,080	Include	24
16,081	Include	24
16,082	Include	24
16,083	Include	24
16,084	Include	24
16,085	Include	24
16,086	Include	24
16,093	Include	24
16,095	Include	24
Supp. No. 25		
16,066	Include	25
16,067	Include	25
16,073	Include	25
16,074	Include	25
16,098	Include	25
16,105	Include	25
16,112	Include	25
16,113	Include	25
16,121	Include	25
16,122	Include	25
16,126	Include	25
Supp. No. 26		
16,091	Include	26
16,092	Include	26
16,100	Include	26

Ord. No.	Include/ Omit	Supp. No.
16,127	Include	26
16,135	Include	26
16,139	Include	26
16,140	Include	26
16,141	Include	26
16,148	Include	26
16,149	Include	26
16,150	Include	26
16,151	Include	26
16,158	Include	26
16,159	Include	26
16,164	Include	26
16,165	Include	26
16,171	Include	26
16,174	Include	26
16,175	Include	26
Supp. No. 27		
16,182	Include	27
16,183	Include	27
16,190	Include	27
16,192	Include	27
16,193	Include	27
16,194	Include	27
16,203	Include	27
16,209	Include	27
16,210	Include	27
16,211	Include	27
16,212	Include	27
16,215	Include	27
16,216	Include	27
Supp. No. 28		
16,218	Include	28
16,219	Include	28
16,221	Include	28
16,230	Include	28
16,233	Include	28
16,234	Include	28
16,235	Include	28
16,236	Include	28
16,240	Include	28
16,241	Include	28
16,245	Include	28
16,250	Include	28
16,251	Include	28
Supp. No. 29		
16,247	Include	29

Ord. No.	Include/ Omit	Supp. No.
16,248	Include	29
16,253	Include	29
16,254	Include	29
16,255	Include	29
16,260	Include	29
16,264	Include	29
16,265	Include	29
16,266	Include	29
16,267	Include	29
16,271	Include	29
16,276	Include	29
16,278	Include	29
16,279	Include	29
Supp. No. 30		
16,282	Include	30
16,283	Include	30
16,293	Include	30
16,299	Include	30
16,303	Include	30
16,304	Include	30
16,311	Include	30
16,313	Include	30
16,314	Include	30
16,317	Include	30
16,323	Include	30
16,324	Include	30
Supp. No. 31		
16,318	Include	31
16,327	Include	31
16,328	Include	31
16,329	Include	31
16,330	Include	31
16,333	Include	31
16,334	Include	31
16,338	Include	31
16,343	Include	31
16,344	Include	31
16,346	Include	31
16,350	Include	31
16,351	Include	31
16,352	Include	31
16,354	Include	31
16,355	Include	31
16,356	Include	31
16,359	Include	31

Ord. No.	Include/ Omit	Supp. No.
Supp. No. 32		
16,365	Include	32
16,367	Include	32
16,368	Include	32
16,370	Include	32
16,371	Include	32
16,372	Include	32
16,376	Include	32
16,377	Include	32
16,379	Include	32
16,380	Include	32
16,381	Include	32
16,382	Include	32
Supp. No. 33		
16,392	Include	33
16,393	Include	33
16,394	Include	33
16,397	Include	33
16,399	Include	33
16,400	Include	33
16,401	Include	33
16,402	Include	33
16,405	Include	33
16,407	Include	33
16,408	Include	33
16,409	Include	33
16,410	Include	33
16,411	Include	33
16,412	Include	33
16,418	Include	33
16,419	Include	33
16,420	Include	33
16,421	Include	33
16,427	Include	33
16,428	Include	33
16,429	Include	33
Supp. No. 34		
16,413	Include	34
16,436	Include	34
16,437	Include	34
16,438	Include	34
16,439	Include	34
16,442	Include	34
16,444	Include	34
16,451	Include	34
16,452	Include	34

Ord. No.	Include/ Omit	Supp. No.
16,453	Include	34
16,462	Include	34
16,464	Include	34
16,465	Include	34
16,470	Include	34
16,471	Include	34
Supp. No. 35		
16,472	Include	35
16,474	Include	35
16,475	Include	35
16,477	Include	35
16,478	Include	35
16,479	Include	35
16,484	Include	35
16,491	Include	35
16,502	Include	35
16,503	Include	35
Supp. No. 36		
16,504	Include	36
16,511	Include	36
16,515	Include	36
16,520	Include	36
16,521	Include	36
16,522	Include	36
16,523	Include	36
16,528	Include	36
16,529	Include	36
16,535	Include	36
Supp. No. 37		
16,224	Include	37
16,537	Include	37
16,538	Include	37
16,539	Include	37
16,541	Include	37
16,543	Include	37
16,546	Include	37
16,547	Include	37
16,552	Include	37
16,558	Include	37

MUNICIPAL CODE

Chapter 1

GENERAL PROVISIONS

Sec. 1-1. Citation of Code.
Sec. 1-2. Definitions and rules of construction.
Sec. 1-3. Existing ordinances continued.
Sec. 1-4. Catchlines of sections and other headings.
Sec. 1-5. Amendments.
Sec. 1-6. Supplementation of Code.
Sec. 1-7. Effect of repeal of ordinances.
Sec. 1-8. Approval for providing excerpts of Code.
Sec. 1-9. Distribution and sale of Code.
Sec. 1-10. Additional distribution of Code.
Sec. 1-11. Numbering of sections.
Sec. 1-12. Numbering and approval of additions to Code.
Sec. 1-13. History notes, editor's notes, state law references and cross references.
Sec. 1-14. Amendment of penal section.
Sec. 1-15. General penalty.
Sec. 1-16. Severability.
Sec. 1-17. City seal.
Sec. 1-18. Interpretation on hours of the day.
Sec. 1-19. Administrative search warrants.
Sec. 1-20. Ordinances not affected by adoption of Code.

Sec. 1-1. Citation of Code.

The ordinances embraced in this and the following chapters and sections shall constitute and be designated as the "Municipal Code of the City of Des Moines, Iowa," and may be so cited. The Code may also be cited as "Des Moines City Code, 2000."
(C42, C54, C62, C75, C79, C85, § 1-1; O.11,549; C91, § 1-1)

State law reference—Code of ordinances to be published, I.C. § 380.8.

Sec. 1-2. Definitions and rules of construction.

In the construction of this Code and of all ordinances of the city, the following definitions and rules of construction shall be observed, unless they are inconsistent with the intent of the city council or the context clearly requires otherwise:

City. The term "city" or "this city" means the City of Des Moines, in the County of Polk, in the State of Iowa.

City council or council. The term "city council" or "council" means the city council of the City of Des Moines.

Code. The term "Code" means the Municipal Code of the City of Des Moines, Iowa, and all amendments thereto.

Computation of time. The time within which any act provided by law is to be done shall be computed by excluding the first day and including the last, unless the last day is Sunday or a legal holiday, in which case the period shall be extended to include the following day.

County. The term "county" or "the county" means Polk County in the State of Iowa.

Gender. Words of one gender include the other gender.

Health officer. The term "health officer" means and refers to the legally designated health official of the city or a designated representative acting in behalf of the city.

In the city; within the city. The phrase "in the city" or "within the city" means and includes all territory over which the city has, or shall acquire, jurisdiction for the exercise of its police powers or other regulatory powers.

Insurance, insurance policy or insurance contract. The term "insurance," "insurance policy" or "insurance contract," when used in this Code, shall have the same meaning as the terms "insurance policy" and "insurance contract" under I.C. § 507B.2; provided, however, that when insurance, as demonstrated by an insurance policy or insurance contract, is required to be posted, presented or demonstrated to exist by any person or other entity either by this Code or by virtue of any contract, bid request, specification, rule or other action or request of the city, the insurance policy or contract of insurance shall provide coverage on an occurrence basis unless available only on a claims-made basis. The person or other entity shall provide evidence of such coverage through an insurance policy, contract of insurance or certificate of insurance which clearly discloses on its face coverage on an occurrence basis, except the insurance coverage required for asbestos removal, professional liability, or construction or demolition disposal licenses, which may be provided on a claims-made basis when it is demonstrated to the satisfaction of the city that occurrence coverage is not reasonably available.

Iowa Code, I.C. or *Code of Iowa.* The term "Iowa Code," the abbreviation "I.C." or the term "Code of Iowa," when used or referenced in this Code, means the most currently enacted version of the Code of Iowa, including amendments thereto.

Joint authority. Words purporting to give a joint authority to three or more public officers or other persons shall be construed as giving such authority to a majority of such officers or persons.

Month. The term "month" means a calendar month.

Number. Whenever any word in any section of this Code imports the plural number, the singular shall be deemed to be included, and whenever the singular number shall be used it shall be deemed to include the plural.

Oath. The term "oath" includes an affirmation, and the term "sworn" includes the term "affirmed."

Occupant; tenant. The term "occupant" or "tenant," applied to a building or land, means any person who holds a written or oral lease of or actually occupies the whole or part of such building or land, either alone or with others.

Officer, employee, department, board, commission or agency. Whenever a reference to an officer, employee, department, board, commission or agency appears, it shall be construed as if followed by the phrase "of the City of Des Moines, Iowa."

Or, and. The term "or" may be read "and," and the term "and" may be read "or," if the sense requires it.

Owner. The term "owner," applied to a building or land, includes any part owner, joint owner, tenant in common, tenant in partnership, joint tenant of the whole or a part of such building or land, either alone or with others.

Person. The term "person" means an individual, a corporation, a limited liability company, a government or governmental subdivision or agency, a business trust, an estate, a trust, a partnership or an association, or any other legal entity.

Personal property. The term "personal property" includes every species of property except real property as defined by this section.

Preceding, following. The terms "preceding" and "following" mean next before and next after, respectively.

Property. The term "property" includes real and personal property.

Real property. The term "real property" includes lands, tenements, and hereditaments and shall embrace all chattels real.

Shall, must, and may. Unless otherwise specifically provided, whenever the following terms are used, their meaning and application shall be as follows:

(1) The term "shall" imposes a duty. Use of the term "shall" with negative modification shall constitute a prohibition within the meaning of section 1-15 of this chapter.

(2) The term "must" states a requirement.

(3) The term "may" confers a power.

Sidewalk. The term "sidewalk" means that portion of a street between the curb lines, or the lateral lines of a roadway and the adjacent property lines, intended for the use of pedestrians.

State, this state. The term "state" or "this state" means the State of Iowa.

Statute references. Whenever reference is made to "Code of Iowa, § _____," or to "I.C. § _____," without year designation, this shall mean and have reference to the current code of the State of Iowa. References to chapters or sections of the Iowa Code shall be deemed to include successor provisions to those chapters or sections.

Street. The term "street" means the entire width between property lines of every way or place of whatever nature when any part thereof is open to the use of the public, as a matter of right, for purposes of vehicular traffic.

Tense. Words in the present tense include the future.

Underground district means the territory in the city embraced within the following described boundaries: the territory on the west side of the Des Moines River beginning at the point of intersection of the west bank of the Des Moines River with the easterly extension of the south line of the first east/west alley south of Court Avenue; thence westerly along the westerly extension of the south line of such alley to the east right-of-way line of Fifth Avenue; thence southerly along the east right-of-way line of Fifth Avenue to the southeast corner of the intersection of Fifth Avenue and Cherry Street; thence westerly along the south right-of-way line of Cherry Street to the southwest corner of the intersection of Cherry Street and Ninth Street; thence northerly along the west right-of-way line of Ninth Street to the northwest corner of the intersection of Ninth Street and Grand Avenue; thence easterly along the north right-of-way line of Grand Avenue to the west bank of the Des Moines River; thence

southerly along the west bank of the Des Moines River to the point of beginning; and the territory on the east side of the Des Moines River beginning at the point of intersection of the east bank of the Des Moines River with the north right-of-way line of East Grand Avenue; thence easterly along the north right-of-way line of East Grand Avenue to the northeast corner of the intersection of East Grand Avenue and vacated East Ninth Street; thence southerly along the east right-of-way line of vacated East Ninth Street to the intersection of the east right-of-way line of vacated East Ninth Street and the easterly extension of the south line of the first vacated east/west alley lying south of East Court Avenue; thence westerly along the westerly extension of the south line of such alley to the east bank of the Des Moines River; thence northerly along the east bank of the Des Moines River to the point of beginning. Nothing contained in this article shall be construed to prevent the city council from exercising the right of the city to change the boundaries to increase or decrease the size of the underground district.

Written, in writing, signature. The terms "written" and "in writing" may include any mode of representing words or letters in general use. A signature, when required by law, must be made by the writing or markings of the person whose signature is required. If a person is unable due to a physical disability to make a written signature or mark, that person may substitute either of the following in lieu of a signature required by law:

(1) The name of the person with a disability written by another upon the request and in the presence of the person with a disability.

(2) A rubber stamp reproduction of the name or facsimile of the actual signature when adopted by the person with a disability for all purposes requiring a signature and then only when affixed by that person or another upon request and in the presence of the person with a disability.

Year. The term "year" means a calendar year unless otherwise expressed.

(C42, §§ 1-7, 1-8; C54, C62, § 1-2; O.8592; C75, § 1-2; O.9588; C79, § 1-2; O.9825; C85, § 1-2; O.10,936, 11,033, 11,477; C91, § 1-2; O.15,521)

State law reference—Statutory definitions and rules of construction, I.C. § 4.1.

Sec. 1-3. Existing ordinances continued.

The provisions appearing in this Code, so far as they are the same as those of the Code and ordinances existing at the time of the adoption of this Code, shall be considered as a continuation thereof and not as new enactments.

(C54, C62, C75, C79, C91, § 1-3)

Sec. 1-4. Catchlines of sections and other headings.

The catchlines of the several subsections and sections and the headings of chapters, articles and divisions of this Code are intended as mere catchwords to indicate the contents of the subsection, section, chapter, article or division and shall not be deemed or taken to be substantive portions of such subsections, sections, chapters, articles or divisions nor, unless expressly so provided, shall they be so deemed when any of such subsections, sections, chapters, articles or divisions, including the catchlines or other headings, are amended or reenacted.

Sec. 1-5. Amendments.

(a) Any additions or amendments to this Code, when passed as ordinances amending this Code and which indicate the intention of the city council to make the additions or amendments a part of this Code, shall be deemed to be incorporated in this Code so that a reference to the Code shall be understood as including them.

(b) All ordinances adopted subsequent to this Code that amend, repeal or in any way affect this Code may be numbered in accordance with the numbering system of the Code and printed for inclusion in the Code. Portions of this Code repealed by subsequent ordinances may be excluded from this Code by omission from reprinted pages affected thereby.

(c) Amendments to provisions of this Code shall be made in accordance with I.C. § 380.2 with regard to amendatory language.
(C42, § 1-2; C54, C62, C75, C79, C91, § 1-4)

Sec. 1-6. Supplementation of Code.

(a) Supplements to this Code shall be prepared and printed whenever authorized or directed by the city. A supplement to this Code shall include all substantive permanent and general parts of ordinances adopted during the period covered by the supplement and all changes made thereby in the Code. The pages of the supplement shall be so numbered that they will fit properly into the Code and will, where necessary, replace pages that have become obsolete or partially obsolete. The new pages shall be so prepared that, when they have been inserted, the Code will be current through the date of the adoption of the latest ordinance included in the supplement.

(b) In preparing a supplement to this Code, all portions of the Code that have been repealed shall be excluded from the Code by the omission thereof from reprinted pages.

(c) When preparing a supplement to this Code, the person authorized to prepare the supplement may make formal, nonsubstantive changes in ordinances and parts or ordinances included in the supplement, insofar as is necessary in order to embody them into a unified code. For example, the person may:

(1) Arrange the material into appropriate organizational units.

(2) Supply appropriate catchlines, headings and titles for chapters, articles, divisions, subdivisions, sections and subsections to be included in the Code and make changes in any such catchlines, headings and titles or in any catchlines, headings and titles already in the Code.

(3) Assign appropriate numbers to chapters, articles, divisions, subdivisions and sections to be added to the code.

(4) Where necessary to accommodate new material, change existing numbers assigned to chapters, articles, divisions, subdivisions or sections.

(5) Change the term "this ordinance" or similar terms to "this chapter," "this article," "this division," "this subdivision," "this section" or "sections _____ to _____" (inserting section numbers to indicate the sections of the Code that embody the substantive sections of the ordinance incorporated in the Code).

Sec. 1-7. Effect of repeal of ordinances.

Unless specifically provided otherwise:

(1) The repeal of an ordinance does not revive any repealed ordinance.

(2) The repeal or amendment of an ordinance does not affect any punishment or penalty incurred before the repeal took effect, nor does such repeal or amendment affect any suit, prosecution or proceeding pending at the time of the amendment or repeal.

(C42, § 6-16; C54, C62, § 2-27; C75, C79, C91, § 2-15)

Sec. 1-8. Approval for providing excerpts of Code.

No city officer or employee shall issue, mail, or distribute as a publication on the part of the city or any officer, department, bureau or branch of the city government any book, pamphlet, leaflet, card, circular, or other printed matter purporting to contain excerpts or quotations from this Code or purporting to give the law on any subject to the public, either as a reprint of an ordinance or as a digest, interpretation, resume, condensation, or explanation of the law without submitting such printed matter or portion of such which purports to quote or give the law to the legal department for examination and for approval of its form and the accuracy of the law stated.
(C42, § 1-3; C54, C62, C75, C79, C91, § 1-5)

Sec. 1-9. Distribution and sale of Code.

(a) All printed copies of this Code, except those reserved for use in the legal department, shall be deposited with the city clerk.

(b) The city clerk shall deliver one copy of the Code to the mayor, two copies to the city manager, one copy to each councilmember, one copy to each head of a city department, one copy to the clerk of the associate district court, one copy to each of the judges of the associate district court, two copies to the city library, one copy to the law library of the district court and copies to other persons as the head of the legal department may direct.

(c) The city clerk shall sell printed copies of this Code at the price the city council shall fix.

(d) The mayor and the head of the legal department shall have the power to reciprocate courtesies of other cities by presenting to each a copy of this Code without cost.
(C42, § 1-4; C54, C62, C75, C79, C91, § 1-6)

Sec. 1-10. Additional distribution of Code.

The city clerk shall deliver additional copies of this Code to the officers and departments designated from time to time by the city manager and shall keep a record of all copies sold or delivered under this section or section 1-9 showing the name and address or title of the recipient.
(C62, § 1-6.01; O.7035; C75, C79, C91, § 1-7)

Sec. 1-11. Numbering of sections.

(a) Each section number of this Code shall consist of two component parts separated by a dash, the figure before the dash referring to the chapter number and the figure after the dash referring to the position of the section within the chapter.

(b) No city officer or employee shall issue any book or pamphlet containing a section or sections of this Code numbered differently than as numbered in this Code.
(C42, § 1-5; C54, C62, § 1-7; C75, C79, C91, § 1-8)

Sec. 1-12. Numbering and approval of additions to Code.

Additions to the Code introduced in the city council shall be submitted to the legal department for approval as to form and for numbering before passage. This section shall be liberally construed for the purpose of avoiding confusion in the numbering of the sections of this Code.
(C42, § 1-6; C54, C62, § 1-8; C75, C79, § 1-9; O.10,506; C91, § 1-9(b))

Sec. 1-13. History notes, editor's notes, state law references and cross references.

The history notes appearing in parentheses after each section and the editor's notes and state law reference and cross reference notes throughout the Code are for the benefit of the user of the Code and shall not be considered as part of the text of the Code.

Sec. 1-14. Amendment of penal section.

In case of the amendment of any section of this Code containing provisions for which a penalty is provided in another section of this Code, the penalty so provided in the other section shall be held to relate to the section so amended, whether or not reenacted in the amendatory ordinance, unless the penalty is specifically repealed therein.
(C42, C54, C62, § 1-9; C75, C79, C91, § 1-10)

Sec. 1-15. General penalty.

(a) Whenever in this Code or in any city ordinance any act is prohibited or is made or declared to be unlawful or an offense or whenever in this Code or in any city ordinance the doing of any act is required or the failure to do any act is declared to be unlawful, if the act is not declared to be a misdemeanor or a municipal infraction and if no specific penalty is provided therefor, the violation of any such provision shall be deemed to be a misdemeanor punishable by a fine not to exceed the maximum amount of dollars as provided in Section 903.1, subsection 1, paragraph a of the Iowa Code.

(b) Whenever in this Code or in any city ordinance any act is prohibited and is declared to be a misdemeanor or whenever in this Code or in any city ordinance the doing of any act is required and the failure to do that act is declared to be a misdemeanor, the violation of any such provision shall be punishable by a fine not to exceed the

maximum amount of dollars as provided in Section 903.1, subsection 1, paragraph a of the Iowa Code. In addition to punishment by fine, a violation of any such provision contained in chapter 118, article III of this Code shall be punishable by imprisonment not to exceed the maximum number of days as provided in Section 903.1, subsection 1, paragraph a of the Iowa Code.

(c) Whenever in this Code or in any city ordinance any act is prohibited and is declared to be a municipal infraction or whenever in this Code or in any city ordinance the doing of any act is required and the failure to do that act is declared to be a municipal infraction, the violation of any such provision shall be punishable by a civil penalty of not more than $750.00 for each violation or, if the infraction is a repeat offense, by a civil penalty of not more than $1,000.00 for each repeat offense. However, a municipal infraction which is classified as an environmental violation or which arises from noncompliance with a pretreatment standard or requirement, referred to in 40 CFR 403.8, by an industrial user may be punishable by a civil penalty of not more than $1,000.00 for each day a violation exists or continues. Each day a violation of a provision of this Code or of a city ordinance continues shall be considered a separate municipal infraction.

(d) In addition to seeking the imposition of a civil penalty as provided in this section, the city attorney may seek all other appropriate remedies allowed by law in regard to the abatement, correction, or discontinuance of activities which constitute municipal infractions.

(e) Municipal infractions may be initially brought upon simple notice and if the person charged admits the violation, upon payment of the penalty to the city treasurer and the performance of any other act required by law to be performed, such person shall not be further prosecuted or assessed any costs or other expenses for such violation, and the city shall retain all penalties thus collected. Where a municipal infraction is not admitted upon simple notice by the person charged or where the person charged fails to perform any other act required to be performed, or both, an action seeking a penalty shall be brought in the state district court. Any action seeking a penalty for a municipal infraction, with or without additional relief, may be initially brought in the state district court. This section does not impose a duty to initially charge all municipal infractions upon simple notice. Municipal infractions that are not brought upon simple notice may be brought pursuant to Section 364.22 of the Iowa Code, and the civil citation shall serve as notification that a civil offense has been committed.

(f) Notwithstanding subsections (c), (d) and (e) of this section, a municipal infraction will not be initiated for any infraction classified as an environmental infraction and referred to in I.C. ch. 455B until an offer is made to participate in informal negotiations with the person. If the person accepts the offer, the city and the person shall participate in good faith negotiations to resolve issues alleged to be the basis for the violation. If the city is unable to contact the person or is unable to resolve the issues alleged to be the basis for the violation, a municipal infraction may be initiated against the person.
(C42, C54, § 1-10; O.5663; C62, § 1-10; C75, § 1-11; O.9168; C79, C85, § 1-11; O.11,074, 11,569; C91, § 1-11; O.14,374, 14,611, 14,881, 15,470, 15,608)

State law reference—Penalties for violation of municipal ordinances, I.C. § 364.3(2), (6).

Sec. 1-16. Severability.

If any section, subsection, sentence, clause or phrase of this Code, for any reason, is held to be unconstitutional and invalid, such decision shall not affect the validity of the remaining portions of this Code. The city council hereby declares that it would have passed this Code and each section, subsection, sentence, clause or phrase thereof, irrespective of the fact that any one or more sections, subsections, sentences, clauses or phrases may be declared unconstitutional or invalid.
(C42, § 1-14; C54, C62, § 1-11; C75, C79, C91, § 1-12)

Sec. 1-17. City seal.

(a) The seal of the city shall be an impression upon which is a representation of the city hall, with the inscription "City of Des Moines" on the

outer edge and the word "Seal" at the top of the inner circle and the word "Iowa" at the bottom of the inner circle.

(b) The official seal of the city shall be kept in the custody of the mayor.

(c) No person shall fraudulently forge, deface, corrupt or counterfeit the seal of the city, nor shall any person other than a duly authorized public official make use of the seal.
(C42, §§ 4-1, 4-2, 4-4; C54, C62, §§ 1-12, 1-13, 1-14; C75, C79, C91, § 1-13)

Sec. 1-18. Interpretation on hours of the day.

(a) All sections of this Code which make specific reference to hours of the day shall be interpreted and enforced as referring to standard time, except during such periods of time that a daylight saving time may be in force.

(b) When daylight saving time is in force, all sections of this Code which make specific reference to hours of the day shall be interpreted and enforced as referring to daylight saving time.
(C62, § 1-15; O.7068, 8592; C75, C79, C91, § 1-14)

Sec. 1-19. Administrative search warrants.

When under any section of this Code it is necessary to enter in or upon any building, structure, land or other premises for inspection purposes or when there is reasonable cause to believe there exists in, at or upon a building, structure, land or other premises within the jurisdiction of the city a violation of any section of this Code enacted under police powers related to health or safety and a city officer or employee authorized to conduct inspections has attempted to gain entry to any building, structure, land or other premises for the purpose of such inspection and has been refused such entry, the council in the exercise of its home rule powers authorizes the city attorney or his or her designee to make an application for an administrative search warrant in the name and authority of the city as provided by law.
(C85, § 1-15; O.10,977; C91, § 1-15)

Sec. 1-20. Ordinances not affected by adoption of Code.

The repeal provided for in the ordinance adopting this Code shall not affect any of the following:

(1) Any offense or act committed or done or any penalty or forfeiture incurred or any contract or right established or accruing before the effective date of this Code.

(2) Any ordinance or resolution promising or guaranteeing the payment of money for the city, or authorizing the issuance of any bonds of the city or any evidence of the city's indebtedness, or any contract or obligation assumed by the city.

(3) Any franchise granted by any ordinance of the city.

(4) Any ordinance dedicating, accepting the dedication of, naming, establishing, locating, opening, paving, widening, vacating, etc., any street, alley, public way or public park in the city.

(5) Any ordinance adopting or amending a zoning map or rezoning specific property or any amendment thereto.

(6) Any ordinance establishing or prescribing street grades in the city.

(7) Any ordinance extending or contracting the boundaries of the city.

(8) Any temporary or special ordinance, or any ordinances containing legal descriptions of urban revitalization areas and urban renewal areas.

(9) Ordinances establishing or modifying election precinct or ward boundaries.

(10) Ordinances establishing or amending the city limits.

Chapter 2

ADMINISTRATION*

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Sec. 2-2. Records and documents.
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Article II. City Charter

Sec. 2-31. Citation of article.
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Article III. City Council

Division 1. Generally

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*__Cross references—__Administration and enforcement of housing code, § 26-471 et seq.; administration and enforcement of health and sanitation regulations, § 54-31 et seq.; administration of human rights regulations, § 62-11; discriminatory municipal practices, § 62-166 et seq.; library, ch. 66; planning, ch. 82; police, ch. 86; obedience to traffic laws, § 114-229 et seq.; utilities, ch. 118.

Division 3. City Council Ethics Code

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Article IV. Officers and Employees

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Sec. 2-202. Appointment of assistants.
Sec. 2-203. Organization of city departments and offices.
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Sec. 2-261. Appointment and duties of public information officer.
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Sec. 2-593. Responsibilities of director.
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Sec. 2-656. Supervision; duties.
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Subdivision IV. Central Services Division

Sec. 2-686. Supervision.
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Sec. 2-701.5. Responsibility for the procurement of goods and services.
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Sec. 2-703. Definitions.
Sec. 2-704. Preference for state products and labor.
Sec. 2-705. Preference for local goods and services.
Sec. 2-706. Determination of eligibility for local preference.
Sec. 2-707. Collusion among bidders or proposers prohibited.
Sec. 2-708. City manager authorized to adopt administrative rules, regulations and procedures implementing the provisions of this subdivision, to approve exemptions therefrom, and to execute contracts not to exceed $100,000.00.
Sec. 2-709. Public and operating emergencies.

Sec. 2-710. City council and city manager may exempt contracts from the provisions of this subdivision.
Sec. 2-711. Other duties of procurement administrator.
Sec. 2-712. Retention of procurement records; procurement records open to public examination.
Sec. 2-713. Conflict of interest in city procurements prohibited.
Sec. 2-714. Procurement by brand or trade name prohibited; exceptions.
Sec. 2-715. Contacts with potential bidders or proposers prior to issuance of bid or RFP; consultant participating in bid or RFP formation prohibited from responding to invitation to bid or RFP.
Sec. 2-716. Authority to issue purchase orders and to approve and execute contracts for goods and services and concession agreements; authority to execute amendments to contracts and agreements and to issue change orders to purchase orders.
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Part 2. Exceptions to Competitive Solicitation Process

Sec. 2-726. Exceptions to procurement of goods and services under competitive bidding or request for proposals process.
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Part 3. Formal Bid and Request for Proposals Process

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Sec. 2-730. Advertisement and manner of issuance for bids and requests for proposals.
Sec. 2-731. Bond, indemnity and insurance.
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Sec. 2-735. Objections to city staff response or bias claims regarding bias or bid or RFP prior to award.
Sec. 2-736. Appeals of procurement administrator decisions regarding bids.
Sec. 2-737. Preparation of RFPs; review and approval of RFPs prior to issuance.
Sec. 2-738. Procurement administrator the sole point of contact for proposer questions, or requests for information, clarification or interpretation; proposers prohibited from inappropriate communication with city officials or employees; inappropriate communication may result in rejection or return of proposals; inappropriate communication may be considered in evaluation of proposals.
Sec. 2-739. Proposers conference for RFPs.
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Sec. 2-742. Appeal of evaluation and selection committee recommendation; proposer objections to be submitted in writing; hearing by city manager or hearing officer; resolution of proposer objections.
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Sec. 2-796. Supervision.
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Subdivision VIII. Treasury Division

Sec. 2-826. Supervision.
Sec. 2-827. City treasurer.
Sec. 2-828. Disposition of moneys received.
Sec. 2-829. Treasurer's petty cash fund.
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Secs. 2-833—2-860. Reserved.

Division 4. Information Technology

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Division 5. Human Resources

Sec. 2-891. Supervision.
Sec. 2-892. Appointment of human resources director.
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Division 6. Neighborhood Services

Sec. 2-921. Supervision.
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Division 7. Public Works

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ARTICLE I. IN GENERAL

Sec. 2-1. City limits.

The boundaries of the city shall be as established by the city council from time to time and set out in appendix A to this Code.
(C42, C54, § 2-1; O.6785; C62, § 2-1; O.8854; C75, § 2-1; O.9053, 9229, 9399, 9473, 9494, 9526; C79, § 2-1; O.9706, 10,079, 10,211, 10,601; C85, § 2-1; O.11,317; C91, § 2-1; O.12,078, 13,261, 13,353, 13,418, 13,522)

Sec. 2-2. Records and documents.

(a) *City clerk's duties.* All records and documents of the city shall be under the control and charge of the city clerk, except as otherwise provided for in this Code, other city ordinances or state statutes. The city clerk shall be responsible for their preservation and safekeeping.

(b) *Public inspection.* Except where otherwise provided by this Code, other city ordinances or state law, all records, books, papers and documents belonging to any office in the city government shall be open to every person for inspection at all reasonable office hours.

(c) *Civil service records.*

(1) All civil service records, including all papers pertaining to examinations, shall be confidential.

(2) Civil service records shall be made available upon approval by the civil service commission of a written request by the city manager in the case of a city department or by the chair of a city board or commission specifying such records as are required by law in the performance of the duties imposed upon such department, board, or commission. Such records shall remain confidential upon and after the granting of such request, except where such confidentiality is waived by the civil service commission, and the originals of such records shall not leave the custody of the civil service commission.

(d) *Removal of record; receipt.* No city record or document shall be removed from the office of the city clerk or any other office in which such record or document is filed or kept, except by a city officer or employee who is a member of the legal department or a member of the department to which the city council has referred such, and then only with the knowledge of the city clerk or officer in charge thereof. No record or document shall be removed without a receipt being given therefor.

(e) *Period of use.* No person may retain possession of any public record for a period to exceed 15 days, except that by permission of the city clerk or other officer in charge of the record or document the time may be extended and so noted upon the receipt.
(C42, §§ 7-1, 7-2, 7-3, 7-5, 7-6; O.5089; C54, C62, §§ 2-5, 2-6, 2-7, 2-8, 2-9; O.7489, 8364; C75, C79, C91, § 2-3)

Sec. 2-3. Replacement of lost bonds.

(a) If a claim is made for payment of the principal of or interest on bonds issued by the city without presentation of the bond or coupon, the city shall not pay such principal or interest until the council shall be provided with satisfactory evidence of proof of ownership and of loss of such bonds or coupons and shall require the filing with the council of a satisfactory indemnity bond of a surety acceptable to the council, indemnifying the city if any or all of the original bonds or coupons are inadvertently paid or presented for payment by a bona fide holder in due course.

(b) Upon receipt of such proof of ownership, loss, and indemnity bond, the treasurer is authorized to proceed with the printing of duplicate bonds or coupons and shall charge for the issuance of the duplicate bonds and coupons any amount sufficient to reimburse the city for the actual expense incurred by it in connection with the issuance thereof. The city officials designated in the resolution authorizing the issuance of such replacement bond or coupon are authorized to execute the duplicate bonds and coupons in the same manner as provided with respect to the original bonds.

(c) Such duplicate bonds and coupons of like tenor, amount, date and maturity shall be deemed to be issued in lieu of and in substitution for each of the bonds or coupons so numbered of the original issue and shall be so noted on the books of the city kept for that purpose.

(d) If any or all of the original bonds or coupons shall be inadvertently or for any reason paid by the city or presented for payment by a bona fide holder in due course or if the city shall incur any expense or liability because of refusing to honor the original bonds or coupons, the indemnity bond on file shall be immediately enforced.

(e) This section shall not apply to the replacement of any bond or coupon where the terms of issuance provide otherwise.
(C79, § 2-3.01; O.10,428; C91, § 2-3.01)

Sec. 2-4. Precinct and ward boundaries.

The election precinct and ward boundaries of the city shall be as established by the council from time to time by ordinance and are included in appendix B to this Code.

Sec. 2-5. Elections.

(a) All candidates for elective city offices shall be nominated under the provisions of Iowa Code Chapter 45 and all nominations for candidates for elective city offices shall be made in the manner provided by Iowa Code Chapter 45.

(b) In a city election, the candidates who receive the greatest number of votes for each office on the ballot are elected to the extent necessary to fill the positions open.
(O.14,835, 15,871, 16,251)

Secs. 2-6—2-30. Reserved.

ARTICLE II. CITY CHARTER

Sec. 2-31. Citation of article.

This article may be cited as the Charter of the City of Des Moines, Iowa.
(C75, § 2-31; O.8956; C79, C91, § 2-31; O.11,721)

Sec. 2-32. Form of government.

The form of government of the city is the council-manager-ward form of government.
(C54, C62, § 2-50; O.7617; C75, § 2-31; O.8956; C75, C79, C91, § 2-31.01)

Sec. 2-33. Powers and duties.

The mayor, council, city manager and other city officers shall have such powers and shall perform such duties as are authorized or required by state law and by the ordinances, resolutions and rules of the city.
(C75, § 2-31.02; O.8956; C79, C91, § 2-31.02)

Sec. 2-34. Number and term of council.

(a) The city council consists of a mayor elected at large, two councilmembers elected at large, and one councilmember elected from each of four wards as established by ordinance, for terms of four years.

(b) Where it is necessary in this Code to distinguish between the two councilmembers elected at large, the one elected in 1997 and that member's successors shall be designated as at large councilmember A, and the one elected in 1999 and that member's successors shall be designated as at large councilmember B.
(C75, § 2-31.03; O.8956; C79, C91, § 2-31.03; O.13,909)

Sec. 2-35. Copies on file.

The city clerk shall keep an official copy of this Charter on file and shall keep copies of this Charter available at the city clerk's office for public inspection.
(C75, § 2-31.04; O.8956; C79, C85, § 2-31.04; O.11,549; C91, § 2-31.04)

Secs. 2-36—2-60. Reserved.

ARTICLE III. CITY COUNCIL

DIVISION 1. GENERALLY

Sec. 2-61. General powers.

The council shall possess and may exercise all executive, legislative and judicial powers not inconsistent with statutes applicable to cities organized under the council-manager-ward form, by popular election, conferred by law upon councils or cities organized under the general laws of the state.
(C42, § 3-1; O.5239; C54, C62, § 2-29; O.7767; C75, C79, § 2-16; O.10,505; C91, § 2-16)

Sec. 2-62. Salary of mayor and councilmembers.

With the full understanding that attendance at city council meetings and work sessions is a requirement of the office of mayor and council member and is an ethical duty imposed by section 2-112 of this Code and is also a large foundation of the salary provided herein, the mayor shall receive and be paid a salary at an initial rate of $70,000.00 per annum for discharging all duties of the office of mayor imposed by state statute and this code of ordinances and $100.00 per week as allowance for expenses incurred on city business conducted in the city and all other councilmembers shall receive and be paid a salary at an initial rate of $35,000.00 per annum for discharging all duties of the office of council member imposed by state statute and this code of ordinances and $100.00 per week as the only allowance for expenses, other than as specifically authorized by council for direct reimbursement, incurred on city business conducted in the city, which salaries shall be payable as hereinafter provided. The salary referenced in this section includes a contemplated downward adjustment if the mayor or any city council member is absent for more than ten percent of the total number of regular meetings held by the city council during any calendar year, which contemplated downward adjustment would be proportionate to the percentage of meetings missed. Meetings missed by the mayor or city council member while he or she is on official city business at the direction of the city council or absent as otherwise required by law will not be counted towards the percentage of missed meetings for which the downward compensation adjustment is required under this section, but will be counted as though the member had attended the meetings that are missed while so engaged in city business or as otherwise required by law. The mayor and councilmembers shall be entitled to group insurance and other benefits that are made available to regular full-time supervisory, professional and management employees with a hire date commensurate to the commencement date of the mayor's or councilmember's initial consecutive term on the city council, except for leave accruals and long-term disability, phone allowance which is intended to be included within the expense allowance referenced in this paragraph, and with the exception that council shall pay 15 percent of the monthly health and dental insurance premium cost for such group insurance. All changes in compensation are subject to the provisions of section I.C. § 372.13(8), with respect to the effective date of such changes. The mayor and each councilmember may choose to decline any benefit provided for the position. However, the benefits shall be presumed to be applicable unless the mayor or councilmember declines the respective benefit in writing. Any written declination of benefits shall be effective from the date specified in such writing to the end of the current term of the mayor or councilmember and shall be deemed to cancel the entitlement to such benefits for the balance of the term. In receiving salary, allowance for expenses, insurance and benefits or in making any declination thereof each individual mayor and councilmember shall assume any tax consequences resulting therefrom and hold the city harmless from any such consequence.
(C42, § 3-2.01; O.5321, 5507; C54, § 2-29.01; O.6166, 6820; C62, § 2-29.01; O.7288, 7796, 7946; C75, C79, § 2-17; O.9645; C85, § 2-17; O.11,080; C91, § 2-17; O.11,740, 12,058, 13,721, 13,969, 14,499, 14,836, 15,366, 15,814, 16,212, 16,282)

Sec. 2-63. Orders for public works.

The council shall make all orders for the doing of work or the making or construction of any

public improvement, including highway, bridge or culvert improvements, except those below the thresholds set forth in Chapter 26 or 314.1B of the Iowa Code.
(C42, § 3-1; O.5239; C54, C62, § 2-30; C75, C79, C91, § 2-18; O.14,999)

Sec. 2-64. Reserved.

Editor's note—Ord. No. 15,521, § 1, adopted Oct. 24, 2016, repealed § 2-64, which pertained to board of health and derived from Code 1942, § 3-1; Ord. No. 5239; Code 1954; Code 1962, § 2-31; Ord. No. 7721; Code 1975; Code 1979, § 2-19; Ord. No. 10,154; Ord. No. 10,612; Code 1985, § 2-19; Ord. No. 11,544; Code 1991, § 2-19.

Sec. 2-65. Appointment of various officers.

The council shall, at the first meeting in January following a regular city election at which its members are elected, appoint a city clerk and at such meeting or as soon thereafter as practicable shall appoint a city attorney, deputy city attorneys and assistant city attorneys. The council shall supervise and direct the official conduct of the clerk and city attorney and their assistants or deputies.
(C42, § 3-1; O.5239; C54, C62, § 2-32; C75, C79, § 2-20; O.10,612; C85, § 2-20; O.11,549; C91, § 2-20)

State law reference—When city elections to be held, I.C. § 376.1.

Sec. 2-66. Levies, appropriations, expenditures.

The council shall certify all taxes, shall apportion and appropriate all funds, and shall allow and order payment of all city warrants.
(C42, § 3-1; O.5239; C54, C62, § 2-33; C75, C79, C91, § 2-21)

Sec. 2-67. Assessments for improvements.

The council shall make all assessments for the cost of street improvements, sidewalks, sewers, nuisance abatements, and other work, improvements or repairs which may be specially assessed.
(C42, § 3-1; O.5239; C54, C62, § 2-34; C75, C79, C91, § 2-22)

Sec. 2-68. Making of contracts.

No contract made by other than the council, the mayor or by the city manager or the city manager's designee pursuant to state law and this Code shall bind the city.
(C42, § 3-1; O.5239; C54, C62, § 2-35; C75, C79, § 2-23; O.10,612; C91, § 2-23; O.14,867)

Sec. 2-69. Powers regarding city manager.

(a) *Appointment.* At the first meeting in January following a regular city election at which city councilmembers are elected or as soon thereafter as practicable, the council shall appoint a competent person as city manager, who shall be the administrative head of the municipal government of the city, with those powers prescribed by state law and this Code.

(b) *Qualifications.* In making the appointment of the city manager, the council shall consider only the qualification and fitness of the person appointed. The city manager shall be appointed without regard to the persons political affiliation and need not be a city resident at the time of appointment.

(c) *Manager pro tem.* During the absence or disability of the city manager, the council may designate some properly qualified person to perform and execute the duties of the manager's office.

(d) *Salary and bond.* The council shall, by resolution, fix the salary and amount of the bond to be executed in favor of the city by the city manager or the city manager pro tem for the faithful performance of duties.

(e) *Direction; removal.* The city manager or manager pro tem shall be under the direction and supervision of the council and shall hold office at its pleasure.
(C42, § 3-1; O.5239; C54, C62, §§ 2-36 to 2-40; C75, C79, C85, § 2-24; O.11,549; C91, § 2-24)

Sec. 2-70. Meetings.

(a) *Time, procedure.* Regular meetings of the council shall be held on the dates set forth in a schedule of meetings adopted by the council, at a time to be set by the council. Special meetings

may be called from time to time by the mayor or a majority of the members of the council. Notice of the meeting shall be given personally or left at the usual place of residence of each member of the council, and a record of the service of notice shall be made by the clerk. All meetings of the council, whether regular or special, shall be held in accordance with the state public meetings law, I.C. § 21.1 et seq., or other appropriate provision of state law. If, at any meeting, the presiding officer of the council is not present, the mayor pro tem shall act as the presiding officer pro tempore of the meeting, and the mayor pro tem's acts shall have the same force and legality as though performed by the regularly elected presiding officer of the council. In the absence of both, the council shall select a presiding officer for the meeting.

(b) *Holidays.* When any legal holiday shall fall on Sunday, Monday, or Tuesday, the regular meeting of the council shall be held at such time and place as may be designated by resolution of the council.

(c) *Rules of conduct.* The following rules are adopted for the conduct of those attending regular and special meetings of the city council in the council chamber in the city hall:

(1) No person shall be permitted to stand in the council chamber during council sessions between the audience seats and the councilmembers except the persons addressing the council, who shall do so from the speaker's stand, and except city officials and employees on city business.

(2) No person shall enter the raised area at the west end of the council chamber or the area used by the city clerk, except upon invitation of the council or a member thereof, and except city officials and employees on city business.

(3) No person shall enter the raised area at the east end of the council chamber except representatives or employees of the communications media.

(4) Any person desiring to address the council may do so when recognized by the presiding officer, but the council reserves the right to limit the speaker's time and the order in which the speakers may address the council.

(5) No person shall be interrupted while addressing the council except by a member of the council.

(6) No member of the public shall be permitted to sit or lean upon the council table during sessions of the council.

(7) No person shall use unreasonably loud or abusive language or any other language in the council chamber which disrupts or is intended to disrupt the peace, quiet, and good order of a council meeting.

(8) Those having business before the council shall have the right to speak to items as they appear on the council agenda, subject to the constraints in subsections (c)(1) through (7) of this section.

(9) Any person who violates any of the rules of conduct set out in this subsection shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.

(10) The chief of police shall enforce this subsection and upon request shall provide sufficient officers therefor.

(C42, §§ 5-1, 5-2, 5-3; O.5236; C54, §§ 2-2, 2-3, 2-4; O.6323; C62, §§ 2-2, 2-3, 2-4; O.7617, 7776, 7958; C75, C79, § 2-2; O.10,505; C85, § 2-2; O.11,549; C91, § 2-2; O.15,608)

State law references—Open meetings, I.C. § 21.1 et seq.; authority to adopt rules of conduct, I.C. § 21.7.

Sec. 2-71. Cultural competency training.

Each member of the council shall complete cultural competency training established by the city manager prior to December 31, 2022. Each member of the council elected or appointed to an initial term of office commencing after December 31, 2022, shall complete cultural competency training established by the city manager within six months from commencement of such term of office.

(O.16,082)

Secs. 2-72—2-95. Reserved.

DIVISION 2. ORDINANCES AND RESOLUTIONS

Sec. 2-96. Enacting clause of ordinances.

The enacting clause for city ordinances shall be: "Be It Ordained by the City Council of the City of Des Moines . . . ."
(C42, § 6-15; C54, C62, § 2-10; C75, C79, C91, § 2-4)

Sec. 2-97. Signing, indexing and filing.

All ordinances and resolutions passed by the city council shall be signed by the mayor or by the presiding officer pro tem, in the mayor's absence, or by two councilmembers and shall be indexed and kept on file in the office of the city clerk.
(C42, § 6-1; C54, C62, § 2-11; C75, C79, C91, § 2-5)

Sec. 2-98. Execution of ordinances in duplicate; recording.

All ordinances shall be executed in duplicate, and one original of each ordinance shall be recorded by the city clerk in a looseleaf book provided for that purpose as soon as may be after passage.
(C42, § 6-2; C54, C62, § 2-12; C75, C79, C91, § 2-6)

Sec. 2-99. Certification of ordinances.

The city clerk shall ascertain that all ordinances are properly signed and, immediately following the record of every ordinance, shall append a certification of passage and publication, which certification shall be in the following form:

> "I _____, city clerk, of the City of Des Moines, hereby certify that the above and foregoing is a true copy of an ordinance passed by the city council of said city at a meeting _____, (Year), signed by Mayor _____, (Year) and published as provided by law in the _____, (Year).
>
> _____ City Clerk."

(C42, § 6-3; C54, C62, § 2-13; C75, C79, C91, § 2-7)

Sec. 2-100. Approval by legal department.

No ordinance or resolution shall be submitted to the city council until its form has been approved by the legal department.
(C42, § 6-9; C54, C62, § 2-21; C75, C79, C91, § 2-10)

Sec. 2-101. Proof of publication.

(a) Whenever any ordinance, resolution, notice, report or other matter pertaining to city affairs is required by law, ordinance or resolution to be published in newspapers, a printed copy thereof with proof of publication in the form required by law in case of original notices shall be filed with the officer or person causing publication thereof to be made. A like copy with like proof of publication shall be filed with the city clerk and shall be preserved by him or her as a part of the records of the city clerk's office. No bill or account for such publication shall in any case be allowed or paid until such copies and proofs of publication have been filed. The fact that they have been filed shall be noted on such bill or account before it is allowed or paid.

(b) Any city officer or employee who shall allow or pay any bill or account for publication of any of the matters referred to in subsection (a) of this section before the copies and proofs of publication have been filed shall be guilty of a misdemeanor punishable as provided in section 1-15.
(C42, §§ 6-10, 6-12; C54, C62, §§ 2-22, 2-23; C75, C79, C91, § 2-11)

Sec. 2-102. Preservation of proofs of publication.

The city clerk shall procure a substantial scrapbook or invoice book in which the printed copies and proofs of publication referred to in section 2-101 shall be securely pasted or otherwise

fastened. This book and the printed copies and proofs of publication contained therein shall be a part of the records of the city clerk's office.
(C42, § 6-11; C54, C62, § 2-24; C75, C79, C91, § 2-12)

Sec. 2-103. Appropriations.

No money shall be appropriated out of the city treasury except as provided by law.
(C42, § 6-13; C54, C62, § 2-25; C75, C79, C91, § 2-13)

Sec. 2-104. Resolutions authorizing contracts.

Every resolution by the city council authorizing any person to make any contract for the city shall be adopted by a vote of yeas and nays, and every contract made in accordance with the authorization shall be valid and binding upon the city and may be enforced against or in favor of the city. A contract made by the person authorized by the city council to contract under this section shall be considered made by the council for purposes of section 2-68 of this chapter.
(C42, § 6-14; C54, C62, § 2-26; C75, C79, C85, § 2-14; O.11,549; C91, § 2-14)

DIVISION 3. CITY COUNCIL ETHICS CODE

Sec. 2-105. Purpose of ethics code.

The city council hereby adopts this ethics code to establish standards for uniform conduct which prevent conflicts of interest or the appearance of conflicts of interest in order to uphold the integrity of the office of city council and to assure taxpayers and citizens of the propriety of city council actions.
(O.16,003)

Sec. 2-106. Definitions.

Apparent conflict of interest or *appearance of conflict of interest* means the impression that a reasonable person would have, after full disclosure of the facts, that a councilmember's judgment would be significantly influenced by outside financial interests, even though there may be no actual or legal conflict of interest. The city ethics officer shall only reach the conclusion that an apparent conflict of interest or appearance of conflict of interest exists upon presentation of clear and convincing evidence.

Conflict of interest means a situation in which financial or other personal considerations have the potential to compromise or bias a councilmember's judgment and objectivity.

Immediate family means the spouse, children, step-children, grandchildren, parents, step-parents, grandparents, brother, sister, step-brother, step-sister, and immediate household members of a councilmember.

Potential conflict of interest involves a situation that may develop into an actual or legal conflict of interest.
(O.16,003, 16,523)

Sec. 2-107. Conflicts of interest prohibiting councilmember action and barring councilmembers or the immediate family of council members from participation.

(a) No member of the city council shall vote, take any official act or action, or participate in the discussion before the council or any city agency, board or commission associated with any item in which such member has a direct or indirect pecuniary interest, which includes without limitation, the following interests and persons:

(1) A councilmember's property or financial interests.

(2) A councilmember's immediate family.

(3) Any person or entity employing or offering employment of the councilmember or any member of the councilmember's immediate family

(4) Any business entity in which the councilmember's or the councilmember's immediate family has a legal or beneficial ownership interest of five percent or greater.

(5) Any person or business entity with whom a contractual relationship exists with the councilmember or the councilmember's immediate family member.

(b) For contracts or transactions which are the subject of an official act or action of the city, or may in the future be the subject of an official act or action of the city, councilmembers are prohibited from:

(1) Having or thereafter acquiring an interest in such contract or transaction;

(2) Having an interest in any business entity representing, advising, or appearing on behalf of, whether paid or unpaid, any person or business entity involved in such contract or transaction;

(3) Soliciting or accepting present or future employment with a person or business entity involved in such contract or transaction or with any entity doing business with or having any matter pending with the city.

(4) Soliciting or accepting any present or future gift, favor, service, or thing of value from any person involved in such contract or transaction.

(c) Councilmembers are prohibited from taking any official act or action for actual conflicts of interest, apparent or potential conflicts of interest, and appearances of conflict of interest.

(d) Councilmembers and their immediate family are ineligible to apply for or to accept grants, loans or other financial assistance from the city or from an entity that receives financial support from the city, unless excepted herein.
(O.16,003)

Sec. 2-108. Recusal in the event of a conflict of interest.

When a conflict of interest, apparent conflict of interest, appearances of conflict of interest or potential conflict of interest occurs as described in this ethics code or by operation of Iowa law with respect to a councilmember on a matter before the city council, the councilmember is required to recuse himself or herself and is prohibited from deliberation, voting, or participation in any way, on the matter. Participation includes, without limitation, a councilmember making known his or her preference on the matter or discussing the matter with other councilmembers or city staff, whether prior to, during or after the meeting at which such matter comes before the city council.
(O.16,003)

Sec. 2-109. Exceptions.

The prohibitions in section 2-107 shall not apply to the following:

(a) Benefits or programs that are offered city wide to all other similarly situated residents or property on an ongoing fiscal year after fiscal year basis, such as tax abatement or backflow preventer reimbursement programs. Limited budgeted or one-time funded benefits or programs shall not be an exception to the requirements of section 2-107.

(b) To the extent consistent with Iowa Code Chapter 68B and sections 2-110, 2-713, and 94-3 of this Code, *de minimis* or occasional monetary amounts or non-pecuniary gifts.

(c) A commercially reasonable loan or commercially reasonable retail sale made in the ordinary course of business by an institution authorized by Iowa law.

(d) Competitively bid or competitively awarded contracts with city funded entities.

(e) Matters related to an entity in which 1) the councilmember has been designated by the city council to serve as a member of the board of directors or other governing board of an entity or 2) the councilmember is serving on a board of directors or other governing or policy board, received no renumeration, either directly or indirectly, for the service on such board and the primary nature of the entity is either charitable or governmental.

(f) Matters related to a business entity which the councilmember or his or her immediate family support either financially or with in-kind contributions, but only if 1) the primary nature of the business entity is either charitable or governmental; and 2) the councilmember and his or her

immediate family are not member of the board of directors or the governing board or paid employees of the business entity.
(O.16,003, 16,523)

Sec. 2-110. Gifts.

No councilmember shall solicit or accept gratuities, favors, money, rebates or anything of monetary value from persons or entities from whom the city procures goods and/or services, of from city contractors, potential contractors or consultants or parties to sub-agreements with city contractors, or from persons from whom the city is acquiring a property or property interest.
(O.16,003)

Sec. 2-111. Additional prohibitions.

(a) This ethics code is in addition to the applicable conflict of interest prohibitions found in sections 2-713 and 94-3 of this Code regarding

city officers. In the event of a conflict between any of these sections of this Code, the most restrictive prohibitions shall apply.

(b) Councilmembers are prohibited from representation of others before the city council, and all other city boards, committees, commissions, and agencies or in any court action involving the city. The prohibition on appearances before the city council and city board, committees, commissions and agencies shall remain in effect for a period of one year after leaving office.
(O.16,003)

Sec. 2-112. Council attendance.

Appropriate governance of the city requires that the mayor and all of the council members attend all regular meetings and work sessions of the council in order to fulfill each member's obligation to the residents of the city to fully participate in the process of government. Each member of the council has an obligation to his or her constituents and to his or her fellow members to be informed in attending such meetings and work sessions. If a physical presence is not possible, then the mayor or council member shall endeavor to attend all meetings electronically as allowed by law. As a courtesy and when time permits, a member shall notify the mayor or the city clerk that he or she will not be able to attend a meeting.
(O.16,282)

Sec. 2-113. Determination of sanction.

Upon motion passed by a majority vote of the other members of the council, a member may be sanctioned as herein provided. If the motion fails or a motion is passed stating that there has been no violation of this ethics code, then the member shall be deemed not to have been in violation of this ethics code. If the motion passes, the council may sanction any member whose conduct does not comply with this ethics code by any of the following actions which may be cumulative:

(a) a formal resolution of reprimand which shall identify the improper conduct and express council's disapproval of said conduct;

(b) a formal resolution of censure, which shall identify the improper conduct and express council's strong and continuing disapproval of said conduct;

(c) For conduct that does not comply with section 2-112 concerning mayor or council member attendance, in addition to any other provision of this code or state statute, council may compel the attendance of the absent council member by written notice to the absent council member, delivered by registered or certified mail or by any person authorized to serve process that is not an interested party, and ordering the council member's attendance. Any member of the council who when notified of such compulsion for his or her attendance fails to attend such meeting for reasons other than confining illness or absence from the city may be deemed guilty of misconduct in office unless excused by the council.

(d) For conduct that does not comply with section 2-112 concerning mayor or council member attendance, in addition to any other provision of this code or state statute, council may find that such behavior has been willful or habitual in imposing any of the sanctions herein provided and that the office has been constructively abandoned and may seek recourse under state statute.

(O.16,282)

Sec. 2-114. City ethics officer enforcement responsibility and city attorney opinions binding.

(a) The city ethics officer shall be the deputy city manager and shall be responsible for education and enforcement of this ethics code, including determination of apparent conflicts, the appearance of conflicts, potential conflicts, and conflicts of interests under this ethics code. To discharge such responsibilities, the deputy city manager may request advice and opinions from the city attorney.

(b) Councilmembers may also request an opinion from the city attorney on any issue regarding this ethics code, which opinion shall

be binding upon the city, or councilmember, as applicable, in any subsequent action or transaction. The city ethics officer shall be required to retain copies of all such city attorney opinions and to make them available to the city council upon request.
(O.16,003; O.16,282)

Secs. 2-115—2-140. Reserved.

ARTICLE IV. OFFICERS AND EMPLOYEES

DIVISION 1. GENERALLY

Secs. 2-141—2-165. Reserved.

DIVISION 2. MAYOR

Sec. 2-166. Appointment of mayor pro tem.

At its first meeting in January of each year or as soon thereafter as practical, the city council shall select one of its members to serve as mayor pro tem to serve until a successor is elected.
(C42, § 3-2; O.5239; C54, C62, § 2-42; O.7617; C75, C79, C85, § 2-26; O.11,106; C91, § 2-26)

Sec. 2-167. Reserved.

Editor's note—Ord. No. 15,521, § 1, adopted Oct. 24, 2016, repealed § 2-167, which pertained to chair of board of health and derived from Code 1942, § 3-2; Ord. No. 5239; Code 1954; Code 1962, § 2-43; Code 1975; Code 1979; Code 1991, § 2-27.

Sec. 2-168. Powers during emergency.

(a) When the mayor determines in his or her sole discretion that a state of public emergency exists within the city, the mayor may by proclamation:

(1) Declare a state of emergency;

(2) Take command of the police and fire departments;

(3) Govern the city; and

(4) Exercise all emergency powers, including but not limited to those outlined in subsection (b) of this section.

(b) The emergency powers conferred upon the mayor pursuant to this section include the power to:

(1) Direct emergency response activities by the police and fire departments and by such emergency services personnel as the mayor may designate or appoint, with the assistance of the city manager acting in the capacity of director of disaster services as provided by section 2-291.

(2) Execute contracts for the emergency repair of public improvements in accordance with section 94-360.

(3) Procure by purchase or lease or authorize procurement by purchase or lease of goods and services deemed necessary to the city's emergency response effort or for the repair of city buildings or facilities, all as provided by subsection 2-727(c) of this chapter.

(4) Lease or authorize the lease of property and/or buildings deemed necessary for the city's emergency response effort or for the continued operation of city government.

(c) The violation of a mayoral proclamation of emergency or of any subsidiary proclamation thereto evidencing the exercise of emergency powers or of any rule or order issued pursuant thereto by the mayor or the city manager or of any order issued pursuant thereto by any peace officer or of any directive issued by designated emergency services personnel pursuant thereto shall constitute a violation of this section and shall be punishable as a misdemeanor as provided by section 1-15 of this Code.

(d) Mayoral proclamations issued pursuant to this section shall remain in effect until withdrawn by the mayor; provided, however, that such proclamations shall be withdrawn and the mayor shall cease to exercise emergency powers at such time as the conditions giving rise to the emergency are no longer present.
(C42, § 3-2; O.5239; C54, C62, § 2-44; C75, C79, § 2-28; C91, § 2-28; O.13,200, 14,999)

Sec. 2-169. Head of city for service of civil process.

The mayor shall be recognized as the official head of the city by the courts and officers of the state upon whom service of civil process may be made.
(C42, § 3-2; O.5239; C54, C62, § 2-45; C75, C79, C91, § 2-29)

Sec. 2-170. Powers and duties.

(a) *Generally.* The mayor shall have and exercise all the powers and shall perform all the duties provided or prescribed by law, the provisions of this Code or other city ordinances. The mayor shall have the power and authority ordinarily exercised by a presiding officer.

(b) *Appointive powers.* The mayor shall have the power to appoint all members of boards and commissions that he or she is authorized by statute, the provisions of this Code or other ordinances to appoint.

(c) *Chief executive officer of city.* The mayor shall be the chief executive officer and representative of the city.

(d) *Signing of contracts.* The mayor shall sign all contracts on behalf of the city which are approved by the council, unless authority is delegated to another officer or employee by the council.
(C42, § 3-2; O.5239; C54, C62, §§ 2-46 to 2-49; C75, C79, § 2-30; O.10,612; C91, § 2-30)

Secs. 2-171—2-200. Reserved.

DIVISION 3. MANAGER

Subdivision I. In General

Sec. 2-201. Powers and duties.

(a) The city manager shall be the administrative head of the municipal government and shall have and exercise all the powers and perform all the duties prescribed by I.C. § 372.1 et seq., except as otherwise provided by ordinance, resolution, or motion of the city council. Except as otherwise provided in this Code or by state law, the city manager shall have the power and duty to provide for the issuance and revocation of such licenses and permits as are authorized by law or ordinance. The manager shall supervise and administer the office of public affairs.

(b) The city manager or his or her designee may, in his or her discretion, execute right of entry and access agreements for and on behalf of the city, granting access to specified city property to persons for various purposes, including but not limited to property surveys, soil testing, grading, filling, construction staging activities, and access to city property outside of street and alley right-of-way for purposes of conducting environmental assessment or remediation activities, all in support of public or private projects, provided that such agreements shall be subject to review and approval by the legal department. Access to city property within city street and alley right-of-way for purposes of conducting environmental assessment or remediation activities shall be granted pursuant to the requirements of division 2 of article XI of chapter 102 of this Code. The city manager shall develop a schedule of reasonable charges for the grant of access to city property, provided that such charges shall be waived when such access is sought by a governmental entity or by a contractor or consultant engaged in work on behalf of a governmental entity.

(c) The city manager or his or her designee may, in his or her discretion, execute right of entry and access agreements for and on behalf of the city to secure access to private property or property owned by other governmental entities by city personnel or city contractors or consultants for the performance of required activities thereon in support of city projects or operations, provided that the compensation paid by the city for such access does not exceed $100,000.00 and provided that such agreements shall be subject to review and approval by the legal department.

(d) The city manager or his or her designee may, in his or her discretion, execute temporary easements for construction and demolition and temporary backslope and property adjustment easements, for and on behalf of the city, to secure access to private property or property owned by

other governmental entities by city personnel or city contractors as needed in support of the construction, repair, or replacement of public improvements, provided that the compensation paid by the city for each such temporary easement does not exceed $100,000.00 and provided that such temporary easements shall be subject to review and approval by the legal department.

(e) The city manager or his or her designee may, in his or her discretion, execute the following types of real estate documents for and on behalf of the city, provided that such documents have been reviewed and approved by the legal department:

(1) Documents releasing tenant's interests, or involving other temporary property interests, including maintain vacancy agreements and rental agreements, in support of the construction, demolition, repair or replacement of public improvements, provided that the compensation paid by the city under such real estate documents does not exceed $100,000.00.

(2) Documents involving initial and renewal lease agreements for terms of less than three years for the lease of city-owned property that is not needed for municipal purposes during the lease term.

(3) Acceptance of any deed, easement, covenant, or other interest in real estate conveyed to the city, provided that the compensation paid by the city under such real estate document does not exceed $100,000.00.

(4) Documents releasing the city's interest in promissory notes and loan agreements for loans given by the city and administered by the city's office of economic development division of the development services department or the neighborhood conservation services division of the neighborhood services department, and in mortgages, deeds of trust, and similar liens given as security for such loans, in the event that the underlying loan has been paid in full in accordance with the terms thereof. Notwithstanding the foregoing, execution of documents releasing the city's interest that involve partial or full loan forgiveness or amended loan or collateral terms require prior city council approval by resolution.

(5) Documents subordinating the city's interest under subordinate mortgages and liens on private property and amendments thereto, to allow the refinancing of the senior mortgages and liens on such property when the city manager determines it to be in the city's interest and without material impact on the city's security interest in the property for proper and timely performance of the property owner's obligations to the city.

(6) Documents consenting to the assignment of all or some portion of the owner's interest in a contract with the city for economic assistance for the development or redevelopment of the owner's property, and to the assignment of all or some portion of the owner's interest in such property, when the city manager determines it to be in the city's interest and without material impact on the city's security interest in such property for proper and timely performance of the owner's obligations to the city.

(7) Documents representing or certifying to a third party that, except as specifically noted in the document, the city has no knowledge or record that another party to a contract, lease or other agreement with the city is in default or noncompliant with such contract, lease or agreement, when the city manager determines it to be in the city's interest to make such representation or certification.

(8) Documents consenting to the lessee's assignment of its interest in a lease for city property.

(9) Documents releasing the city's easement interest in a property, provided city staff has determined said easement interest is no longer needed and the fair market value paid to the city for the release of said easement interest does not exceed $100,000.00.

(f) The city manager or his or her designee may, in his or her discretion, make application and/or execute licenses, easements or agreements for the grant to the city of crossing rights for municipal utilities or facilities in railroad rights-of-way, as provided in section 476.27(2)(b) of the 2001 Code of Iowa and in the rules promulgated pursuant thereto, provided that the compensation paid by the city for such rights does not exceed $100,000.00 and provided that such documents shall be subject to review and approval by the legal department.

(g) The city manager or his or her designee may, in his or her discretion, approve administrative settlements prior to condemnation award and condemnation awards required for the acquisition of various property interests in support of city projects or operations, should the city manager determine the amount of the administrative settlement or condemnation award to be in the city's best interest, and provided that any such administrative settlement or condemnation award does not exceed $100,000.00 above the approved fair market value of the property interests to be acquired.

(h) The city manager or his or her designee may, in his or her discretion, make application and execute agreements with other public entities, utility companies and railroad companies necessary and required to facilitate the construction of public improvements provided that the compensation paid by the city for such rights does not exceed $100,000.00 and provided that such documents shall be subject to review and approval by the legal department.

(C42, § 3-3; O.5239; C54, C62, § 2-51; O.8409; C75, C79, C85, § 2-32; O.11,549, 11,557; C91, § 2-32; O.12,059, 13,423, 13,500, 13,584, 14,094, 14,763, 15,321, 15,639, 15,928, 16,240, 16,264)

Sec. 2-202. Appointment of assistants.

The city manager is empowered to appoint, with the approval of the council, such administrative assistants, including a deputy city manager and assistant city managers, as the manager shall deem advisable.

(O.5276; C54, C62, § 2-52; O.7303, 7679; C75, § 2-33; O.9583; C79, § 2-33; O.10,431; C85, § 2-33; O.11,549; C91, § 2-33; O.12,059)

Sec. 2-203. Organization of city departments and offices.

The administrative services and functions of the city, under the city manager, are organized into ten separate departments as follows:

(1) *Department of engineering.* The department of engineering shall be under the supervision of the city engineer.

(2) *Development services department.* The development services department shall be under the direction of the development services director.

(3) *Department of finance.* The department of finance shall be under the supervision of the director of finance.

(4) *Fire department.* The fire department shall be under the supervision of the fire chief.

(5) *Human resources department.* The human resources department shall be under the supervision of the human resources director.

(6) *Park and recreation department.* The park and recreation department shall be under the supervision of the park and recreation director.

(7) *Police department.* The police department shall be under the supervision of the chief of police.

(8) *Department of public works.* The department of public works shall be under the supervision of the director of public works.

(9) *Neighborhood services department*. The neighborhood services department shall be under the supervision of the neighborhood services director.

(10) *Information technology department.* The information technology department shall be under the supervision of the information technology director.

(C54, § 2-53; O.6341; C62, § 2-53; O.7289, 7306, 7363, 7379, 7483, 7586, 7814, 8123, 8441, 8513; C75, § 2-34; O.9094; C79, § 2-34; O.9826, 10,002,

10,181, 10,431, 10,583, 10,674; C85, § 2-34; O.11,557; C91, § 2-34; O.11,721, 12,059, 13,214, 13,357, 13,449, 13,554, 13,584, 15,144, 15,928)

Sec. 2-204. Administration of departments.

The city manager shall, by appointment, transfer, designation or delegation, provide for the administration of the city departments, as established in section 2-203 of this division, by department heads who shall be responsible to the city manager for the operation of their respective departments as set forth in this Code. (C54, § 2-54; O.5733, 5863; C62, § 2-54; C75, C79, C85, § 2-35; O.11,549; C91, § 2-35)

Secs. 2-205—2-230. Reserved.

*Subdivision II. Reserved**

Secs. 2-231—2-260. Reserved.

Subdivision III. Office of Public Affairs

Sec. 2-261. Appointment and duties of public information officer.

The city manager shall appoint a public information officer to administer the office of public affairs. The public information officer will be responsible for the following:

(1) Directing the public affairs staff, which includes personnel in the Action Center, the cable television operation, and a special events/marketing coordinator; coordinating and directing public service and information activities and managing all aspects of municipal communications; developing and maintaining effective relations with the news media;

(2) Providing information to the public and processing citizen complaints, suggestions and requests for services;

(3) Broadcasting city meetings and special television programs designed to inform the public; and

(4) Promoting and marketing city facilities and special events, coordinating city participation in community and special events, and developing and maintaining a sponsorship program that increases city-sponsored activities.

(C85, § 2-32.02; O.11,557; C91, § 2-32.02)

*__Editor's note—__Ord. No. 15,928, § 1, adopted Oct. 5, 2020, repealed Subdiv. II, § 2-231, which pertained to office of economic development—Supervision; duties and derived from Code 1985, § 2-32.01; Ord. No. 11,557; Code 1991, § 2-32.01; Ord. No. 13,449.

Secs. 2-262—2-290. Reserved.

Subdivision IV. Disaster Services

Sec. 2-291. Designation, authority and powers and duties of director.

(a) *Designation.* The city manager or his or her designee is designated as the director of disaster services.

(b) *Authority.* The director of disaster services shall be responsible for disaster services and shall serve as the city coordinator.

(c) *General powers and duties.* The director of disaster services shall be responsible for the performance and supervision of performance of all duties in connection with coordinating and carrying out the city's part in furnishing services if major manmade disasters or natural disasters occur, including but not limited to hurricanes, earthquakes, tornadoes, windstorms or floods, in cooperation with the state office of disaster services and other governmental agencies as may be necessary to carry out the purposes of I.C. § 29C.1 et seq.

(d) *Emergency operations plan.* The powers and duties of the director of disaster services shall include the recommendation for adoption by the city council, upon approval by the state office of disaster services, of an emergency operations plan for the city and the recommendation for adoption by the city council of mutual aid plans and agreements which are deemed essential for such plan. Such mutual aid plans may authorize the employment by other cities and towns within the county and by the county of the city director of disaster services as area coordinator for mutual aid. The director of disaster services shall make continuing studies of the need for amendments and improvements in such plans.

(e) *Specific powers and duties.* The duties and responsibilities of the director of disaster services shall include the following:

(1) Requesting the mayor to declare an emergency or public danger as provided in I.C. § 372.14.

(2) Control and direction of training activities.

(3) Maintenance of liaison with other municipal, state, regional and federal disaster services agencies.

(4) Marshaling, after the declaration of an emergency as provided for in this section, of all necessary personnel, equipment or supplies from any city department to aid in carrying out the emergency operations plan.

(5) Preparation, under the direction of the mayor, of all necessary proclamations as to the existence of an emergency and the immediate operational effectiveness of the emergency operations plan.

(6) Preparation, subject to approval by the council, of proposed rules for the protection of life and property to be proclaimed by the mayor during any duly declared emergency.

(7) Coordination of the drafting of proposed mutual aid agreements.

(8) Serving as an operations officer for the joint administration.

(C54, §§ 44A-10 to 44A-13; O.6665; C62, §§ 44A-10 to 44A-13; O.7587; C62, §§ 15A-2 to 15A-5; C75, C79, C85, § 2-57; O.11,598; C91, § 2-57)

Sec. 2-292. Organization.

(a) *Operational organization.* The operational disaster services organization of the city shall consist of municipal officers and employees who may be designated by the city manager and all volunteer workers. Plans of organization shall substantially conform to recommendations of the federal government and the state office of disaster services.

(b) *Joint county-municipal organization.* During any year as the council may elect by resolution to participate in the joint county-municipal disaster services and emergency planning administration provided for in I.C. § 29C.9, the disaster services director of the city may also serve as coordinator for the joint county-municipal disaster services and emergency planning administra-

tion. Details as to the proportion of the salary of the director to be paid by the city and the joint administration, the manner of payment, and the deposit of city funds budgeted for disaster services in the joint county-municipal disaster services and emergency planning fund shall be negotiated between the city manager and the joint administration subject to approval by resolution of the city council.
(C54, §§ 44A-14, 44A-14.01; O.6665, 6954; C62, §§ 44A-14, 44A-14.01; O.7587; C62, §§ 15A-6, 15A-7; C75, C79, C85, § 2-58; O.11,598; C91, § 2-58)

Sec. 2-293. Oath.

The director of disaster services and all officers, members, employees and volunteers participating in any capacity in the disaster services organization shall take the oath prescribed in I.C. § 29C.17, and the oath shall be kept on file in the disaster services department.
(C54, § 44A-15; O.6665; C62, § 44A-15; O.7587; C62, § 15A-8; C75, C79, § 2-59; O.11,598; C91, § 2-59)

Secs. 2-294—2-320. Reserved.

DIVISION 4. CITY CLERK*

Sec. 2-321. Appointment.

At the first meeting in January following the regular city election at which city councilmembers are elected, the city council shall appoint a city clerk, who must be a qualified elector residing within the city.
(C42, § 13-1; C54, C62, § 2-357; C75, C79, C85, § 2-38; O.11,549; C91, § 2-38)

Sec. 2-322. Oath; bond.

Within ten days after appointment the city clerk shall qualify by taking an oath of office and executing an official bond with sureties to be approved by the council. The oath shall be filed in the office of the city clerk.
(C42, § 13-1; C54, C62, § 2-358; C75, C79, C85, § 2-40; O.11,549; C91, § 2-40)
State law reference—Form of oath, I.C. § 63.10.

Sec. 2-323. Official bonds.

(a) *Filing.* All official bonds given to the city shall be filed with the city clerk, except that of the city clerk, which shall be filed with the city treasurer.

(b) *Approval of companies.* All official bonds given to the city shall be with companies, firms or corporations approved by the director of finance.

(c) *Bonds of officers and employees.* All officers and employees shall be covered by individual bonds or blanket bonds for the purpose of indemnifying the city against any loss occasioned through failure of officers and employees to perform their duties faithfully or due to fraudulent or dishonest acts of such officers and employees. The amount and form of such bonds shall be determined by the city manager with the approval of the city council.
(R.O. 1932, § 169; O.4622, 4661; C42, §§ 16-1, 16-12; C54, §§ 2-84, 2-85, 2-86; O.6329, 6921; C62, §§ 2-84, 2-85, 2-86; O.7433; C75, C79, C91, § 2-41)

Sec. 2-324. Chief deputy city clerk.

The chief deputy city clerk shall be appointed by the council and shall have and perform such duties as may be assigned to him or her by the city clerk. In the absence of the city clerk, for any reason, the chief deputy city clerk shall have and exercise all duties and powers of the city clerk.
(C85, § 2-42; O.11,236; C91, § 2-42)

Sec. 2-324.01. Deputy city clerk.

The deputy city clerk shall be appointed by the council and shall have and perform such duties as may be assigned by him or her by the city clerk or chief deputy city clerk. In the absence of the city clerk and chief deputy city clerk, for any reason, the deputy city clerk shall have and exercise all duties and powers of the city clerk.
(O.14,130)

*__State law reference—__Council to appoint clerk, I.C. § 372.13(3).

Sec. 2-325. Attendance at council meetings.

The city clerk shall attend all council meetings and shall keep an accurate record of all proceedings and adopted rules and ordinances.
(C42, § 13-2; C54, C62, § 2-360; C75, C79, C91, § 2-43)

Sec. 2-326. List of accounts and claims allowed.

The city clerk shall furnish the director of finance, as soon as possible after each meeting of the council, with a list of all accounts and claims allowed and orders for the payment of money, giving the name of the person to whom allowed, the amount allowed, upon what fund and for what purpose.
(C42, § 13-2; C54, C62, § 2-361; C75, C79, C91, § 2-44)

Sec. 2-327. Records.

(a) *Duty as custodian.* The city clerk shall have custody of all records of the council and their proceedings and all city ordinances.

(b) *Transcripts for city officers.* The city clerk shall without charge make such transcripts of the records referred to in subsection (a) of this section or of any other records in the clerk's custody as may be ordered by the council or be applied for by any city officer for use in connection with the duties in his or her office.

(c) *Transcripts for private persons; fee.* The city clerk shall also make attested or certified transcripts referred to in subsection (b) of this section, as may be applied for by any person upon the payment to the city treasurer of the fee charged therefor, which shall be the same as the fee allowed by law to the clerk of the district court for like service if that fee does not exceed the amount permitted to be charged under I.C. § 22.3.
(C42, § 13-3; C54, C62, §§ 2-362, 2-363, 2-364; C75, C79, § 2-45; C85, § 2-45; O.11,549; C91, § 2-45)

Sec. 2-328. Custodian of city bonds and contracts.

The city clerk shall have custody of all bonds and contracts belonging to the city except where otherwise provided by state law, the provisions of this Code or other city ordinances.
(C42, § 13-4; C54, C62, § 2-365; C75, C79, C91, § 2-46)

Sec. 2-329. Record of special taxes and assessments.

The city clerk shall keep a record of all special taxes and special assessments levied by the city and shall certify taxes, assessments and other such matters voted by the council to the county treasurer.
(C42, § 13-5; C54, C62, § 2-366; C75, C79, C91, § 2-47)

Sec. 2-330. Seal.

The seal of the city clerk shall have the words "Des Moines" in the center and around the margin the words "City Clerk, Iowa."
(C42, § 4-3; C54, C62, § 2-367; C75, C79, C91, § 2-48)

Secs. 2-331—2-355. Reserved.

DIVISION 5. CITY ATTORNEY

Sec. 2-356. Composition of legal department.

The city legal department shall be composed of the city attorney, deputy city attorneys, such assistant city attorneys as shall be provided by the city council and the employees under the direct supervision and control of the city attorney.
(C42, § 14-1; C54, C62, § 2-344; C75, C79, § 2-116; O.10,515; C85, § 2-116; O.11,549; C91, § 2-116)

Sec. 2-357. Appointment of city attorney, deputy city attorneys and assistant city attorneys.

The city attorney, deputy city attorneys and assistant city attorneys shall be appointed by the city council.
(C42, § 14-1; C54, C62, § 2-345; C75, C79, C85, § 2-117; O.11,549; C91, § 2-117)

Sec. 2-358. Oath of office.

The city attorney, deputy city attorneys and assistant city attorneys shall, before entering upon the performance of their duties, file with the city clerk their official oath of office.
(C42, § 14-1; C54, C62, § 2-346; C75, C79, C85, § 2-118; O.11,549; C91, § 2-118)

Sec. 2-359. Head of legal department.

The city attorney shall be the head of the legal department. Upon failure of the council to provide for a city attorney or upon the absence of the city attorney, a designated deputy city attorney shall be the head of the legal department.
(C42, § 14-1; C54, C62, § 2-347; C75, C79, § 2-119; O.10,515; C91, § 2-119)

Sec. 2-360. Duties generally.

The city attorney or deputy city attorneys and assistant city attorneys shall have the following duties:

(1) *Prosecuting and defending suits generally.* To appear for the city, prosecute and defend all causes in all state or federal courts or administrative agencies in which the city is a party or interested.

(2) *Prosecuting and defending suits upon request.* When requested to do so by the mayor, the city council or the city manager or when the interests of the city require, to appear for the city before any other court or tribunal and prosecute or defend all actions or proceedings in which the city may be a party or interested.

(3) *Prosecuting and defending suits brought by or against officers and employees.* To prosecute or defend all actions and proceedings brought by or against any city officer in his or her official capacity or any city employee growing out of acts connected with his or her employment as required by law.

(4) *Giving opinions.* When requested, to give an opinion in writing upon all questions of law submitted by the mayor, by the council or any member thereof, by the city manager or by the director of any city department or office.

(5) *Drafts of contracts, forms, etc.* When requested, to prepare drafts of contracts, forms and other writings which may be required for use by the city.

(6) *Preparation of ordinances.* To prepare such ordinances as the council from time to time may direct and to provide in writing to the council whenever so requested an opinion as to the validity of ordinances prior to their final passage by the council.

(7) *Processing of claims.* To process all claims filed against the city, determine the liability of the city on each, and propose to the city council compromise or payment of such claims where appropriate.

(8) *Processing of tax sale certificates*. To sign on behalf of the city the notice of expiration of right of redemption from tax sale pursuant to I.C. § 447.9, and the affidavit of service pursuant to I.C. § 447.12.

(9) *Other duties.* To perform such other and further duties as may be enjoined upon the legal department or the members thereof by this Code or other city ordinances.

(C42, § 14-2; C54, C62, § 2-348; O.8746; C75, C79, § 2-120; O.10,515; C91, § 2-120; O.14,510)

Sec. 2-361. Duties of city attorney.

The city attorney shall:

(1) Supervise and be responsible for the performance of all the duties of the legal department.

(2) Exercise supervisory power over the other officers and employees of the legal department in all matters pertaining to the duties of their office.

(3) Promptly account for all moneys received by him or her belonging to the city or received in his or her official capacity and pay the moneys into the city treasury.

(4) Have full and complete authority to require any city employee to render any

service necessary at any time or place in order to carry out the duties of his or her office.

(C42, § 14-3; C54, § 2-349; O.6309; C62, § 2-349; C75, C79, § 2-121; O.10,515; C91, § 2-121)

Sec. 2-362. Deputy city attorney.

A deputy city attorney shall perform such duties as may be assigned to the deputy city attorney by the city attorney or as may be enjoined upon the deputy city attorney by this Code or other city ordinances. The city attorney shall designate one deputy city attorney to act as head of the legal department to perform all duties of the city attorney in the absence of the city attorney.

(C42, §§ 14-4, 14-6; C54, C62, §§ 2-350, 2-352, 2-353; C75, C79, § 2-122; O.10,515; C85, § 2-122; O.10,889, 11,549; C91, § 2-122)

Sec. 2-363. Duties of deputy city attorneys and assistant city attorneys.

The deputy city attorneys and assistant city attorneys shall perform duties as may be required of them by the city attorney or the mayor or as the council shall direct by this Code or other city ordinances or resolution.

(C42, § 14-5; C54, C62, § 2-351; C75, C79, § 2-123; O.10,515; C85, § 2-123; O.10,889; C91, § 2-123)

Sec. 2-364. Employing special counsel.

No compensation shall be allowed to any person for services as an attorney or counselor to any part of the city government or the heads thereof, except in cases especially authorized by ordinance or resolution of the city council and then only on the certificate of the city attorney or designee that the services are actually rendered and that they could not be performed by officers of the legal department, unless the city council specifically waives this certificate of the city attorney and directs a different process.

(C42, § 14-7; C54, C62, § 2-354; C75, C79, § 2-124; O.10,515; C91, § 2-124; O.16,503)

Sec. 2-365. Approval of contracts.

All contracts and all ordinances and resolutions making contracts or authorizing the making of contracts for council approval shall be drawn by the city attorney, a deputy city attorney, or an assistant city attorney or shall be approved by such an officer before they are made or approved.

(C42, § 3-1; O.5239; C54, C62, § 2-355; C75, C79, § 2-125; O.10,515; C91, § 2-125)

Sec. 2-366. Records of legal department.

The legal department shall keep a record of all official opinions, a register or docket of all actions prosecuted or defended by members of the legal department, except the city prosecutors, and a record of all proceedings related to those matters.

(C42, § 14-8; C54, C62, § 2-356; C75, C79, § 2-126; O.10,515; C85, § 2-126; O.11,549; C91, § 2-126)

Secs. 2-367—2-395. Reserved.

DIVISION 6. EMPLOYEE PERSONNEL RULES, REGULATIONS AND BENEFITS

Subdivision I. In General

Secs. 2-396—2-420. Reserved.

Subdivision II. Incompatible Activities

Sec. 2-421. Engaging in conflicting duties.

A city employee shall not engage in any employment, activity, or enterprise which is inconsistent, incompatible, or in conflict with his or her duties as a city employee or with the duties, functions, and responsibilities of the department by which he or she is employed.

(C42, § 15-25; O.5298; C54, C62, § 2-124; O.7583; C62, § 15-92; C75, C79, C91, § 2-298)

Sec. 2-422. Type of incompatible activities.

(a) Any employment, activity, or enterprise shall be considered inconsistent, incompatible, or in conflict with city employment which:

(1) Involves the use for private gain or advantage of the city's time, facilities,

equipment, or supplies except for personal clothing items used in compliance with departmental rules and regulations, prestige, or influence of a city office or employment.

(2) Involves the receipt or acceptance by the officer or employee of any money or other consideration from anyone other than the city for the performance of an act which the officer or employee would be required or expected to render in the regular course of his or her city employment or a part of his or her duties as a city officer or employee.

(3) Involves the performance of an act in other than his or her capacity as a city officer or employee which may later be subject, directly or indirectly, to the control, inspection, review, audit, or enforcement by such officer or employee or the department by which he or she is employed.

(4) Involves so much of the employee's time that it impairs his or her attendance or efficiency in the performance of his or her duties as a city officer or employee.

(b) The appointing authority shall make a final determination, when necessary, as to whether a specific activity is incompatible.
(C62, § 15-93; O.7583; C75, C79, C85, § 2-299; O.11,570; C91, § 2-299)

Sec. 2-423. Conflict of interest.

(a) No city employee shall participate in the selection or in the award or administration of a contract if a conflict of interest, real or apparent, would be involved. Such a conflict would arise when any of the following has a financial or other interest in the firm or contractor selected for award:

(1) The employee;

(2) Any member of his or her immediate family;

(3) His or her partner; or

(4) Any organization which employs or is about to employ any of the persons listed in subsection (a)(1) through (3) of this section.

(b) City employees will neither solicit nor accept gratuities, favors, money, rebates or anything of monetary value from contractors, potential contractors or parties to subagreements.

(c) Any employee who violates this section may be subject to disciplinary action, up to and including termination.

(d) This section is in addition to the conflict of interest prohibitions found in sections 2-713 and 94-3.

(e) Exceptions under federal law. To the extent allowed by applicable federal law or regulation, the city council may permit exceptions to conflicts of interest under this section which do not constitute a violation of applicable provisions of state law. The grant of such exceptions shall be specifically conditioned upon approval by the appropriate federal agency.
(C91, § 2-299.01; O.13,431)

Sec. 2-424. Political activity.

(a) No officer or employee shall, while performing official duties or while using city equipment at the person's disposal by reason of the position, solicit in any manner a contribution for any political activity or candidate or engage in any political activity during working hours that impairs the efficiency of the position or presence during the working hours.

(b) No officer or employee who in any manner supervises an employee shall directly or indirectly solicit the person supervised to contribute money, anything of value, or service to a candidate seeking election or a political party or candidate's political committee.

(c) Any officer or employee who becomes a candidate for any elective public office shall, upon request of the officer or employee and commencing any time within thirty days prior to a contested primary, special or general election and continuing until the day following that

election, automatically receive leave of absence and during such period shall perform no duties connected with the office or position so held. The appointing authority may authorize the employee to use accrued vacation leave or accrued compensatory leave if available instead of leave without pay to cover such leave. An employee who is a candidate for any elective public office shall not campaign while on duty as an employee.

(d) Nothing in this section shall prohibit any employee or group of employees, individually or collectively, from expressing honest opinions and convictions or making statements and comments concerning their wages or other conditions of their employment.
(C62, § 15-94; O.7583; C75, C79, § 2-300; O.9718; C91, § 2-300; O.13,382, 14,068)

Secs. 2-425—2-450. Reserved.

Subdivision III. Deferred Compensation Plan

Sec. 2-451. Creation.

(a) A deferred compensation plan is available for eligible city employees in accordance with the provisions of this subdivision and detailed specifications approved by city council roll call number 5379, dated November 24, 1975 and filed with the city clerk, as such plan may be amended from time to time.

(b) A money purchase plan as authorized by roll call number 01-1147 dated June 4, 2001 and filed with the city clerk is also available for eligible city employees as such plan may be amended from time to time.
(C62, § 15-95; O.8546; C75, § 2-301; O.9005; C79, § 2-301; O.10,661; C91, § 2-301; O.13,661, 14,555)

Sec. 2-452. Purpose.

The purpose of the deferred compensation plan and the money purchase plan is to make available to eligible city employees and city officers an opportunity to invest compensation whereby receipt and taxation of a portion of an employee's or officer's salary may be deferred.
(C62, § 15-96; O.8546; C75, C79, § 2-302; O.10,661; C91, § 2-302; O.13,661, 14,555)

Sec. 2-453. Eligibility.

(a) *Deferred compensation plan:* All permanent full-time and permanent part-time employees, permanent full-time and permanent part-time probationary employees and any other employees made eligible pursuant to collective bargaining agreements shall be eligible for participation provided that they enter into an agreement to defer compensation not yet earned pursuant to these code sections and consistent with section 457 of the Internal Revenue Code and applicable amendments including the Economic Growth and Tax Relief Reconciliation Act of 2001 (EGTRRA).

(b) *Money purchase plan:* All supervisory, management and professional permanent full-time employees and city officers who hold a supervisory, management or professional permanent full-time position on January 1, 2011 or who have accepted an offer of employment for a supervisory, management or professional full-time position, or a covered member of the Des Moines Police Gold Braid Organization who held the rank of Sergeant, Lieutenant or Captain in or out of the bargaining unit on or before January 1, 2011 shall be eligible for participation provided that they enter into an agreement to defer compensation not yet earned pursuant to these code sections and consistent with section 401(a) of the Internal Revenue Code as it may be amended from time to time.
(C62, § 15-97; O.8546, 8872; C75, § 2-303; O.9005; C79, § 2-303; O.10,661; C91, § 2-303; O.13,661, 14,555, 14,983, 14,998)

Sec. 2-454. Income deferral agreements.

The city manager, or his or her designee, is hereby authorized to enter into agreements with city employees and city officers who may qualify for participation in a deferred compensation and/or a money purchase plan, whereby the participant may designate a portion of his or her future earnings to be deducted by the city through payroll deduction and placed in an eligible plan pursuant to current laws and regulations pursu-

ant to section 457 or 401(a) of the Internal Revenue Code. Such agreements may include, but shall not be limited to, specifications that:

(1) City contributions to a plan may be made as the city council may direct from time to time by resolution or by collective bargaining agreement.

(2) The city may amend the provisions of the applicable plan at any time, provided, however, that no amendment shall affect the rights of participants or their beneficiaries to the receipt of payment of benefits.

(3) The city shall not be responsible for any loss due to the investment or failure of investment of funds and assets in a plan, nor shall the city be responsible or required to replace any loss whatsoever which may result from said investments.

(4) All funds and assets, together with interest, accumulations, and increments thereon, in the employee's applicable plan account shall be held in trust for the exclusive benefit of the participants and their designated beneficiaries or as otherwise consistent with the requirements of the Internal Revenue Code.

(5) An agreement to defer compensation not yet earned must have been entered into by the participant before the beginning of the calendar month in which deferral of compensation is to occur.

(6) As to investments governed by section 457 of the Internal Revenue Code, early withdrawal by a current employee or an alternate payee pursuant to a domestic relations order is limited to an unforeseeable severe financial hardship involving either:

a. A present or imminent financial crisis imposed by a sudden unexpected illness or accident of the participant, participant's spouse, or a dependent of the participant; or

b. An unanticipated substantial loss of property due to casualty loss or catastrophic circumstances brought about by events wholly beyond the control of the participant.

(7) An emergency distribution governed by section 457 of the Internal Revenue Code shall be limited to the amount necessary to meet the emergency. No emergency distribution shall be made to the extent the hardship is or may be relieved by:

a. Reimbursement or compensation through insurance proceeds or otherwise;

b. Liquidation of the participant's assets, to the extent liquidation of such assets would not itself cause severe financial hardship; or

c. Cessation of deferrals under the plan.

d. Loans permitted under the plans.

(8) Domestic Relation Orders may be accepted as to investments governed by section 457 of the Internal Revenue Code and shall be deemed to have the effect of a Qualified Domestic Relations Order and subject to the distribution rules established by section 457 of the Internal Revenue Code as amended by EGTRRA.

(9) Loans may be available from investments governed by sections 457 or 401(a) of the Internal Revenue Code subject to the terms of the individual plan documents and consistent with the applicable sections of the Internal Revenue Code and its regulations and so long as the investment provider administers the loan agreement and the terms of its repayment in accordance with the city's plan document.

(10) Employee participant contributions for deferral pursuant to a deferred compensation plan or a money purchase plan may only be placed in investment products which meet all applicable legal requirements of the Internal Revenue Code.

(C62, § 15-98; O.8546; C75, § 2-304; O.9005, 9031, 9157, 9286, 9562; C79, § 2-304; O.10,360, 10,661; C91, § 2-304; O.13,661, 14,555)

Sec. 2-455. Administration of plan.

The deferred compensation plan and money purchase plan shall be administered by the city manager, or his or her designee, who shall oversee and administer the plans and the accompanying agreements entered into pursuant to this subdivision, in a manner reasonably calculated to accomplish the overall objectives of the plan. The city may refuse to accept the services of an investment provider if it refuses or is unable to comply with the following:

(1) Confirmation statements, quarterly reports, prospectus information, advertisements or any other communications shall be mailed to the home address of the participant.

(2) Applications for emergency withdrawals, transfers of funds, or rollovers for participants currently employed by the city shall be submitted for approval to the city prior to such early distribution.

(3) All distributions to participants no longer employed by the city, or beneficiaries in the event of the death of the participant, shall be payable to the participant or beneficiary as applicable with distribution to the participant as designated by the participant so long as not the city.

(4) IRS notices and forms including "1099" forms shall be provided directly to the participant using the participant's social security number and home address.

(C62, § 15-99; O.8546; C75, C79, § 2-305; O.10,661; C91, § 2-305; O.13,661, 14,555)

Sec. 2-456. Accounts.

All records, including financial records of the deferrals and city contributions, shall be maintained in accordance with generally accepted accounting principles.

(C62, § 15-100; O.8546; C75, C79, § 2-306; O.10,661; C91, § 2-306; O.13,661, 14,555)

Sec. 2-457. Nonassignability.

Neither the participant nor his or her beneficiary nor any other designee shall have any right to commute, sell, assign, transfer, or otherwise convey the right to receive any payments under the deferred compensation plan or money purchase plan, which payments and rights thereto are expressly declared to be nonassignable and nontransferable. For any attempted assignment or transfer, the city shall have no further liability under the plan, nor shall any payments be subject to attachment, garnishment or execution, or be transferable by operation of law if bankruptcy or insolvency occurs, except to the extent otherwise provided by law.

(C62, § 15-101; O.8546; C75, C79, § 2-307; O.10,661; C91, § 2-307; O.14,555)

Secs. 2-458—2-485. Reserved.

Subdivision IV. Residency Requirements

Sec. 2-486. Established.

Employee residency shall be required as provided in state statute and city manager policy relating to categories of similarly situated employees not otherwise covered by Iowa Code 400, except that employees of the legal department shall be as required by state statute and city attorney policy. City employees hired on or before April 30, 1984 shall not be subject to this section during any period of civil service or non-civil-service employment unless their city employment is terminated and they subsequently seek rehire.

(C79, § 2-307.01; O.10,461; C85, § 2-307.01; O.11,255; C91, § 2-307.01; O.14,325, 16,351)

Secs. 2-487—2-535. Reserved.

ARTICLE V. DEPARTMENTS*

DIVISION 1. GENERALLY

Secs. 2-536—2-560. Reserved.

*__Cross references—__Fire department, § 46-31 et seq.; park and recreation department, § 74-56 et seq.; police department, § 86-26 et seq.; department of housing services personnel, § 90-62.

DIVISION 2. ENGINEERING

Sec. 2-561. Supervision by city engineer.

The city engineer shall supervise the department of engineering under the management and direction of the city manager.
(C75, § 2-66.01; O.9094; C79, C91, § 2-66.01; O.11,852)

Sec. 2-562. Appointment of city engineer.

The city manager shall appoint the city engineer, who shall be a registered professional engineer, registered in this state.
(C75, § 2-66.02; O.9094; C79, C91, § 2-66.02)

State law reference—Definition of "engineer" for purposes of special assessments statute, I.C. § 384.37(5).

Sec. 2-563. Duties of city engineer.

The city engineer shall serve as the chief civil engineer and shall have administrative responsibility for the following matters, subject to such administrative procedures as may be established by the city manager:

(1) The design and construction of all city infrastructure and building facilities included in the capital improvement program (CIP) as adopted annually by the city council.

(2) The installation, timing and maintenance of traffic control devices; the conduct of engineering studies of traffic accidents and the development of remedial measures; the planning for the operation of traffic on city streets and highways; the planning and maintenance of the street lighting system; the planning, maintenance and operation of public municipal parking facilities; and the issuance of permits as authorized by city ordinances for activities occurring in the street right-of-way.

(3) Erosion control, stormwater management, and sewer system evaluation and permitting.

(4) The operation and maintenance of the Des Moines Regional Wastewater Reclamation Authority (WRA), WRA sewers, flow metering facilities in the WRA system, and all sanitary sewer pumping stations and equalization basins. The city engineer shall serve as the Des Moines Regional Wastewater Reclamation Authority Operating Agency Director.

(5) The operation and maintenance of the city stormwater utility. The city engineer shall serve as the director of the city stormwater utility.

(6) All property acquisition and relocation activities.

(7) Other related duties and functions as may be assigned by state law, by city ordinance or council resolution, or by the city manager.

(C75, § 2-66.04; O.9094; C79, § 2-66.04; C91, § 2-66.03; O.11,852, 13,449, 14,314)

Secs. 2-564—2-590. Reserved.

DIVISION 3. FINANCE

Subdivision I. In General

Sec. 2-591. Appointment of director.

The director of finance shall be appointed by the city manager.
(C54, § 2-298; O.5731, 5861; C62, § 2-298; C75, C79, C91, § 2-67)

Sec. 2-592. Supervision of divisions.

The director of finance shall supervise the department of finance, which shall be composed of the following divisions:

(1) Administrative division.

(2) Accounting division.

(3) Audits division.

(4) Central services division.

(5) Purchasing division.

(6) Research and budget division.

(7) Risk management division.

(8) Treasury division.

(C54, C62, § 2-299; O.7303, 8513; C75, C79, C91, § 2-68; O.12,059, 13,554)

Sec. 2-593. Responsibilities of director.

The director of finance shall supervise the administrative division of the finance department which is responsible for preparation of interim and annual financial reports, installation and maintenance of new and revised financial systems and procedures, administration of insurance and bonding programs, debt administration, preparation of departmental annual budget, and departmental personnel administration and space allocation.
(C54, C62, §§ 2-300, 2-301; O.8513; C75, C79, C85, § 2-69; O.11,573; C91, § 2-69)

Secs. 2-594—2-620. Reserved.

Subdivision II. Accounting Division

Sec. 2-621. Under supervision of chief accounting and check-issuing officer.

The director of finance shall serve as the chief accounting and check-issuing officer of the city and shall supervise the accounting division.
(C54, C62, § 2-302; C75, C79, C85, § 2-70; O.11,573; C91, § 2-70; O.13,659)

Sec. 2-622. Duties of chief accounting officer.

The chief accounting officer shall perform all of such duties prescribed by state statute, by the provisions of this Code and by other city ordinances and shall, except as otherwise expressly provided, have custody and control of all financial books of the city. He or she shall keep suitable books and records in which shall be entered all financial transactions of the city.
(C54, C62, § 2-303; C75, C79, C85, § 2-71; O.11,573; C91, § 2-71)

Sec. 2-623. Drawing and signing of checks.

The chief accounting officer shall draw all checks on the city treasurer, which checks shall be countersigned by the mayor. No checks shall be drawn except upon the order of the city council, city international airport board or the board of trustees of the city public library. No check shall be drawn upon any fund or for any purpose in excess of the amount appropriated therefor. All checks shall be signed personally by the chief accounting officer or by the mayor, or by the financial software system using digitized signatures under the personal direction of the

chief accounting officer, or by persons designated by the accounting officer with the approval of the city manager.
(C54, C62, § 2-304; C75, C79, C91, § 2-72; O.13,659)

Sec. 2-624. Contracts and other obligations.

All contracts or other obligations made on behalf of the city shall be first presented to the chief accounting officer for the purpose of determining that funds are available for such obligations.
(C54, C62, § 2-305; O.7497; C75, C79, C91, § 2-73)

Sec. 2-625. Monthly statement to city departments.

The chief accounting officer shall render to each department of the city government a monthly statement showing the condition of its appropriation for the current year.
(C54, C62, § 2-306; C75, C79, C91, § 2-74)

Sec. 2-626. Public service utilities.

(a) *Collection of license fees and other moneys.* The chief accounting officer shall collect or cause to be collected all license fees, franchise taxes, rentals or other moneys which may be due or become due to the city from all persons operating public service utilities in the city.

(b) *Examination of accounts and records.* The chief accounting officer shall, whenever the city has authority to do so and when so ordered by the city manager, cause to be examined the accounts and records of any person operating a public service utility in the city.
(C54, C62, §§ 2-307, 2-308; C75, C79, C91, § 2-75)

Secs. 2-627—2-655. Reserved.

Subdivision III. Audits Division

Sec. 2-656. Supervision; duties.

The director of finance shall supervise the audits division of the department of finance. This division shall be responsible for conducting internal audits requiring the examination of accounting records and the reporting and evaluation of accounting data and systems performance.
(C54, C62, § 2-326; O.7303; C75, C79, C91, § 2-76)

Secs. 2-657—2-685. Reserved.

Subdivision IV. Central Services Division

Sec. 2-686. Supervision.

The central services division supervisor shall supervise the central services division of the department of finance under the direction of the director of finance.
(C62, § 2-327.01; O.8513; C75, C79, C91, § 2-77)

Sec. 2-687. Responsibilities.

The central services division shall be responsible for operation of the reproduction facilities; provision of mail and messenger service; maintenance of warehouses and storerooms; retention, retrieval, and disposal of records; control of forms design; maintenance of property inventory records; and such other duties as may be required by the director of finance.
(C62, § 2-327.02; O.8513; C75, C79, C91, § 2-78)

Secs. 2-688—2-699. Reserved.

*Subdivision V. Procurement Division**

Part 1. General Provisions

Sec. 2-700. Duty of city manager.

In accordance with and to the extent provided by Section 372.8 of the Iowa Code or successor provision, the city manager has charge of the

*__Editor's note—__Ord. No. 15,629, § 1, adopted Dec. 4, 2017, repealed the former Subdiv. V, §§ 2-700—2-715, 2-726—2-738, 2-746—2-762, and enacted a new subdivision as set out herein. The former Subdiv. V pertained to similar subject matter and derived from Ord. No. 14,346, § 1, adopted June 21, 2004; Ord. No. 14,408; Ord. No. 14,492; Ord. No. 14,683; Ord. No. 14,892; Ord. No. 14,936; Ord. No. 14,999; Ord. No. 15,144; Ord. No. 15,527.

procurement of goods and/or services for use in the city service and the disposition of surplus city property.
(O.15,629)

Sec. 2-701. Supervision.

The director of finance shall, under the direction and supervision of the city manager, supervise the procurement division in the department of finance.
(O.15,629)

Sec. 2-701.5. Responsibility for the procurement of goods and services.

The procurement administrator is responsible for the activities of the procurement division under the direction and supervision of the director of finance. The procurement of goods and/or services for use in the city service and the disposition of surplus city property shall be conducted by the procurement division, with the exceptions designated in section 2-726.
(O.15,629)

Sec. 2-702. Procurement of goods and services under competitive bidding or request for proposal process.

(a) The procurement of goods and/or services, wherein cost to the city and compliance with specifications will be the only criteria considered in selecting among competing bidders, shall be accomplished under the competitive bidding process outlined in this subdivision.

(b) In procuring goods and/or services under the request for proposals (RFP) process, selection of the successful proposal may be based upon criteria in addition to cost to the city and compliance with specifications, including but not limited to experience, expertise and/or qualifications of the provider; quality of the goods and/or services; and the quality and availability of training or repair services. In procuring concessions at city facilities, selection of the successful proposal may be based upon criteria in addition to revenue to the city and compliance with specifications, including but not limited to capital investment, experience, financial resources, business plan, and involvement of Disadvantaged Business Enterprises.

(c) Except as to emergency contracts authorized by section 2-709, no procurement request shall be split into parts for the purpose of avoiding any section of this subdivision.
(O.15,629)

Sec. 2-703. Definitions.

The definitions in this section apply to this subdivision. Defined terms remain defined terms whether or not capitalized in the text. The following words, terms and phrases, when used in this subdivision, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Bidder means a provider of goods and/or services who submits a bid proposing to provide specified goods and/or services at a specified price or prices in response to a solicitation for bids for the provision of those goods and/or services issued by the city procurement division or by a city department as authorized and approved by the procurement administrator to issue such solicitation.

Concession means the grant of the right to operate a venture on designated city property for the direct sale or advertising of goods and/or services to the public, where the designated property is considered to be a point of attraction for the public, and where competition for the grant of such use of such property for the sale of goods and/or services is anticipated. Uses which are customarily granted as concessions include, but are not limited to, the sale of food and beverages at city park and recreation facilities and in common areas in city parking garages. Uses which will not be granted as concessions include food and beverage sales and vending in employee break areas in city buildings used primarily for city offices. Concessions involving the lease or exclusive use of city property for a period of more than three years shall be subject to approval of the city council, as provided by Section 364.7 of the Iowa Code.

Cost to the city does not include insurance proceeds received by the city.

Formal competitive bidding procedure means the solicitation of bids by mailing and advertisement as provided by Section 2-730, and the submission of sealed written bids to be publicly opened at an announced time and place.

Goods means things that are movable and have intrinsic value, including without limitation, equipment, materials, supplies, computer programs, and intellectual property and excluding real property, money, securities, documents, negotiable instruments and other intangibles.

Informal competitive bidding procedure means the solicitation and submission of bids by telephone, facsimile, e-mail or regular mail.

Invitation to bid means a written solicitation to prospective suppliers or service providers to submit a bid for services or goods.

Nonprofit agency or organization means an agency or organization that is incorporated under I.C. ch. 504A or is tax exempt under section 501(c) of the Internal Revenue Code.

Purchase order means a written document generated by the procurement division addressed to a provider of goods and/or services stating the terms and conditions of a proposed transaction. In the absence of a formal contract entered into between the provider and the city, a purchase order which is accepted and acted upon by the provider constitutes the formation of a contract between the provider and the city.

Proposer means a provider of goods and/or services who submits a proposal to provide specified goods and/or services at a specified price or prices in response to a request for proposals for the provision of those goods and/or services issued by the city purchasing division or by a city department authorized to issue such request for proposals.

Services means useful labor, such as repair or maintenance work, or work that results in the creation of intellectual property, including without limitation architectural or engineering designs, but does not result in the production a tangible commodity or item of personal property, but does not include the sale of real estate, employment, or public improvements construction as defined in Iowa Code Chapter 26 or Iowa Code Chapter 26A.

Surplus property means those goods or personal property of the city which is in excess of current city needs, or is no longer required for its originally intended use, purpose or function, as determined by the procurement administrator.

Temporary concession means a concession as defined in this subsection that is conducted for no more than 31 consecutive days or for no more than 60 days within a calendar year.
(O.15,629, 16,235)

Sec. 2-704. Preference for state products and labor.

The requirement of I.C. § 73.1 et seq. relating to preference for state products and labor shall be observed by all city officers and employees with respect to the procurement or use of products and provisions grown and coal produced within the state.
(O.15,629)

Sec. 2-705. Preference for local goods and services.

In recognition that businesses may pay higher property taxes due to their location within the corporate limits and that such taxes may increase the cost of providing goods and/or services in comparison to businesses located outside the corporate limits and to encourage businesses to locate and remain in the city, a preference shall be given to local businesses, as defined in section 2-706, in the issuance of purchase orders or the awarding of city contracts governed by this subdivision. In conducting the procurement of goods and/or services by competitive bid, the procurement administrator shall give preference to a responsive bid from a business located within the corporate limits of the city over an acceptable low bid submitted by a business located outside of the corporate limits, where the local bidder's bid exceeds the acceptable low bid by no more than one percent. In conducting the procurement of goods and/or services by request for proposals, a local preference equivalent to

one percent of all points available to competing proposers under the evaluation criteria adopted for each procurement shall be awarded to each proposer whose business is located within the corporate limits of the city. The local preference herein established shall not be applicable to goods and/or services procured with the assistance of federal, state or county grants or funds, nor shall the local preferences be applicable to goods and/or services where federal regulations or law prohibits a local preference, nor shall such preference be applied in violation of any international trade agreement or treaty to which the United States of America is a party.
(O.15,629)

Sec. 2-706. Determination of eligibility for local preference.

For purposes of determining if a business is entitled to a local preference, the business shall be considered to be a local business if its headquarters, or the headquarters of its parent or holding company, is determined to be within the corporate limits of the city, determined by the payment of city property taxes on such headquarters occupied by the business for a period of at least one year prior to award, or by the payment of rent to a landlord paying city property taxes on such headquarters occupied by the business for a period of at least one year prior to award.
(O.15,629)

Sec. 2-707. Collusion among bidders or proposers prohibited.

Under this subdivision, any agreement or collusion among bidders or prospective bidders, or among proposers or prospective proposers, in restraint of freedom of competition by agreement to bid or propose a fixed price or otherwise shall render the bids or proposals of such bidders or proposers void. Each bidder/proposer shall accompany his or her bid/proposal with a sworn statement or shall otherwise swear or affirm that he or she has not been a party to any such agreement. Any disclosure by one bidder or proposer to another bidder or proposer of the content of a bid or proposal in advance or the submission of bids or proposals shall render the bids or proposals of both such bidders or proposers void, and may at the discretion of the procurement administrator render the proceedings void.
(O.15,629)

Sec. 2-708. City manager authorized to adopt administrative rules, regulations and procedures implementing the provisions of this subdivision, to approve exemptions therefrom, and to execute contracts not to exceed $100,000.00.

(a) The city manager, or the procurement administrator if designated by the city manager, may in his or her discretion adopt, promulgate and revise administrative rules, regulations and procedures to implement the provisions of this subdivision and for the proper conduct of the procurement activities of the procurement division.

(b) The city manager or the finance director if designated by the city manager, may exempt procurements and contracts from the administrative rules, regulations and procedures adopted under this subdivision.

(c) The city manager may execute contracts to procure goods and/or services where the estimated cost or revenue will not exceed $100,000.00 annually and may authorize department directors and the procurement administrator to execute such contracts. Such contracts and related purchase orders may only be executed by the city manager, or by department directors or the procurement administrator if applicable, following review and approval as to form by the city attorney or their designee if any of the following circumstances apply:

(1) The contract or purchase order contains terms and conditions proposed by the bidder, proposer, concessionaire, or other vendor or service provider, other than contract or unit cost, unit quantity, scope of work, and duration and timing;

(2) The contract or purchase order is for goods or services to be procured using master contract(s) or agreement(s) involving nonprofit associations, cooperative

chapter 28E agreements, federal, state, county or other local government contracts, or cooperative group contracting consortiums;

(3) The contract terms are not limited to (i) city template document(s) previously approved as to form by the city attorney or their designee or (ii) standard city-issued purchase order(s) referring only to terms incorporated into the city's request for quotation or bid.

(O.15,629, 16,219)

Sec. 2-709. Public and operating emergencies.

(a) The mayor may, upon declaration of emergency by proclamation as provided in section 2-168 of this chapter, authorize the city manager to procure by purchase or lease such goods and/or services as are deemed necessary for the city's emergency response effort. Such emergency procurement of goods and/or services may be made in the open market without filing a requisition, purchase order, request for proposals or estimate therefor, and without advertisement therefor, for immediate delivery or furnishing. A full written account of all emergency procurements made during such emergency, together with a requisition for the goods and/or services required therefor, shall be submitted to or provided by the city manager within 30 days after their procurement and shall be open to public inspection for a period of at least one year subsequent to the date of the emergency purchases. The city manager shall, within three months of the conclusion of such emergency, formally communicate the emergency expenditures in a full written account to the city council.

(b) In the event of an operating emergency as determined by the city manager, the city manager may procure or may authorize in writing the procurement administrator or any department or any board or commission of the city to procure, in the open market without filing a requisition, purchase order, request for proposals or estimate therefor and without advertisement, any goods and/or services that could not have been reasonably foreseen or anticipated, for immediate delivery or furnishing to meet such operating emergency. A full written account of any such operating emergency, together with a requisition for the goods or services required therefor, shall be submitted immediately to the city manager and shall be open to public inspection for a period of at least one year subsequent to the date of the emergency purchases. If the amount so expended for such operating emergency exceeds $100,000.00, the city manager, at the next immediate council meeting, shall formally communicate the emergency expenditure in a full written account to the city council. This exercise of the authority invested in the city manager in respect to purchases to meet such bona fide operating emergencies shall not be dependent upon the mayor governing the city by proclamation.

(c) In the event of an operating exigency as determined by the city manager, the city manager may temporarily extend any contract for the provision of goods and/or services to the city, provided that the city manager shall determine and report such to the city council. If the city council does not concur that the continued provision of such goods and/or services to the city by the current provider is vital to the city's interests and that the procurement of a new contract for the provision of such goods and/or services by competitive bid or request for proposals is impractical within the time remaining under the current contract, such contract shall be terminated within the time required by the city council.

(O.15,629, 16,219)

Sec. 2-710. City council and city manager may exempt contracts from the provisions of this subdivision.

(a) The city council may on a case by case basis, upon the recommendation of the city manager for good cause shown, exempt contracts for the provision of goods and/or services from the competitive procurement requirements of this subdivision, and authorize use of an informal competitive bidding procedure or authorize direct procurement without a competitive process for the procurement of goods and/or services to cost in excess of $100,000.00.

(b) The city council may on a case by case basis, upon the recommendation of the city manager for good cause shown, exempt contracts for the provision of goods and/or services from the request for proposals process of this and authorize the negotiation of a contract for the procurement of goods and/or services estimated to cost in excess of $100,000.00.

(c) The city manager, or the procurement administrator if designated by the city manager, may, upon the recommendation of the requesting department for good cause shown, exempt the procurement by competitive bidding procedure and authorize use of informal competitive bidding procedures or authorize direct procurement without a competitive process for the procurement of goods and/or services estimated to cost $100,000.00 or less. Resulting contracts and purchase orders may only be executed by the city manager, or by department directors or the procurement administrator if applicable, following review and approval as to form by the city attorney or their designee if any of the circumstances described in section 2-708(c) apply.

(d) The city manager, or the procurement administrator if designated by the city manager, may, upon the recommendation of the requesting department for good cause shown, exempt the procurement by request for proposals process and authorize the negotiation of a contract for the procurement of goods and/or services estimated to cost $100,000.00 or less. Resulting contracts and purchase orders may only be executed by the city manager, or by department directors or the procurement administrator if applicable, following review and approval as to form by the city attorney or their designee if any of the circumstances described in section 2-708(c) apply.
(O.15,629, 16,219)

Sec. 2-711. Other duties of procurement administrator.

The procurement administrator, subject to the direction and approval of the city manager, shall:

(1) Assist in the preparation of bid specifications by city departments; coordinate the issuance and advertisement of requests for competitive sealed bids; and assist with the informal competitive bidding procedures.

(2) Open all sealed bids under the general supervision of the city manager.

(3) Furnish his or her recommendations upon request of the city manager as to which bidder is the lowest or highest responsible bidder, as the case may be.

(4) The procurement of goods and/or services, where the total anticipated cost of those goods and/or services will not exceed $100,000.00 annually shall be exempt from the bidding or request for proposal process outlined in this subdivision and shall be administered in a manner reasonably calculated to assure the best interests of the public under the oversight of the procurement division. Related contracts and purchase orders may only be executed by the city manager, or by department directors or the procurement administrator if applicable, following review and approval as to form by the city attorney or their designee if any of the circumstances described in section 2-708(c) apply.

(5) Review requests for proposals prepared by city departments for conformity with city requirements and coordinate their issuance and advertisement.

(6) Review proposals received in response to requests for proposals, coordinate their evaluation by the evaluation and selection committee, and coordinate the making of a recommendation thereon by the evaluation and selection committee.

(7) Distribute or cause to be distributed to the various requisitioning departments such goods as may be procured.

(8) Transfer goods to or between the various requisitioning departments.

(9) Dispose of surplus property by transfer between departments, by competitive sale, or by advertisement to the public, in compliance with section 2-727(c) and (d).

(10) Control and maintain adequate inventory records of all stock of goods, contained in any storage place under control of the procurement administrator.

(11) Assist in the adoption, promulgation and revision of administrative rules, regulations and procedures for the proper conduct of the procurement activities of the procurement division.

(12) Undertake any related activities which may be assigned to him or her from time to time by the finance director, city manager or the city council.

(13) Submit reports, as required by the city manager, faithfully describing the activities of the office.

(14) Conduct or require such physical, chemical or other tests as may be necessary to ensure conformity to such specifications with respect to quality of goods and/or services procured by the city.

(O.15,629, 16,219)

Sec. 2-712. Retention of procurement records; procurement records open to public examination.

On all procurements for which a purchase order is required pursuant to administrative policy, the purchase order and other records related to said purchase, including any contract entered into pursuant thereto, shall be retained in the office of the procurement administrator in a file open to public examination. Such records shall be retained for the period of time during which a cause of action could be initiated on the purchase order or contract under the applicable statute of limitations. After such period has elapsed, such purchase orders, contracts, attachments and related records may be destroyed.
(O.15,629)

Sec. 2-713. Conflict of interest in city procurements prohibited.

(a) No employee, officer or agent of the city shall participate in selection or in the award or administration of a contract or purchase order for the procurement of goods and/or services if a conflict of interest, real or apparent, would be involved. Such a conflict would arise when any of the following has a financial or other interest in the firm or contractor selected for award:

(1) The employee, officer or agent;

(2) Any member of his or her immediate family;

(3) His or her partner; or

(4) An organization which employs or is about to employ any of the persons listed in subsections (a)(1) through (3) of this section.

(b) The city's officers, employees or agents will neither solicit nor accept gratuities, favors, money, rebates or anything of monetary value from persons from whom the city purchases or procures goods and/or services. Any employee, officer or agent who violates this section may be subject to appropriate disciplinary action.

(c) This section is in addition to the conflict of interest prohibitions found in sections 2-423, 2-1054 and 94-3.

(d) Exceptions under federal law. To the extent allowed by applicable federal law or regulation, the city council may permit exceptions to conflicts of interest under this section which do not constitute a violation of applicable provisions of state law. The grant of such exceptions shall be specifically conditioned upon approval by the appropriate federal agency.
(O.15,629)

Sec. 2-714. Procurement by brand or trade name prohibited; exceptions.

All requests made for bids and proposals for goods shall be made in general terms and by general specifications and not by brand or trade name, provided that the procurement administrator may, upon good cause shown, allow procurement of goods by brand or trade name when such goods are being used for test purposes or to determine level of quality.
(O.15,629)

Sec. 2-715. Contacts with potential bidders or proposers prior to issuance of bid or RFP; consultant participating in bid or RFP formation prohibited from responding to invitation to bid or RFP.

In order to prevent the appearance of bias in developing the specifications or scope of services for a bid or an RFP, the department developing the bid specifications or the RFP shall not consult with prospective bidders or proposers to develop specifications regarding the bid or RFP. If a consultant is utilized in the development of the specifications or scope of services for a bid or an RFP, that consultant shall not be allowed to submit a bid or proposal in response to the invitation to bid or RFP or to participate in a response by another bidder or proposer. (O.15,629)

Sec. 2-716. Authority to issue purchase orders and to approve and execute contracts for goods and services and concession agreements; authority to execute amendments to contracts and agreements and to issue change orders to purchase orders.

(a) The city manager or department requesting a procurement is not authorized to accept any goods and/or services for which a purchase order is required pursuant to administrative policy, until the procurement administrator has issued the purchase order therefor.

(b) In the procurement of goods and/or services, where the estimated cost or revenue to the city will not exceed $100,000.00 annually, and for which city council approval is not required, the procurement administrator is authorized to issue purchase orders for such goods and/or services or concessions. The city manager, or the director of the department requesting the procurement or the procurement administrator, if authorized by the city manager, is authorized to approve and execute the contract or concession agreement associated with such procurement. Such contracts and concession agreements and related purchase orders may only be executed by the city manager, or by department directors or the procurement administrator if applicable, following review and approval as to form by the city attorney or their designee if any of the circumstances described in section 2-708(c) apply. If authorized by the city manager, the procurement administrator is authorized to approve renewal terms for goods and services and concessions.

(c) In the procurement of goods and/or services, or concessions, where the cost or revenue to the city will exceed $100,000.00 annually, the procurement administrator shall make a recommendation to the city council regarding the award of the bid or concession which shall be approved by the city council, or, if the procurement was done by request for proposal, the city council will by resolution approve the proposal which it selects as the best proposal. Upon council approval, the procurement administrator is authorized to issue a purchase order for such procurement, if required by administrative policy. In the event that the city council does not designate who will execute the contract on behalf of the city, the city manager, or the director of the department requesting the procurement or the procurement administrator, if authorized by the city manager, is authorized to execute the contract or concession agreement associated with that procurement.

(d) City council approval of a contract amendment shall be required when the sum of the original contract amount, plus the contract amendment amount(s) exceeds $100,000.00. The city manager, or the director of the department requesting the procurement or the procurement administrator, if authorized by the city manager, may approve contract amendments and the procurement administrator may issue change orders to purchase orders, authorizing the payment of an additional sum for an additional unit of goods and/or services, when the sum of the original contract amount plus the contract amendment amount(s) does not exceed $100,000.00. Such contract amendments and change orders may only be executed by the city manager, or by department directors or the procurement administrator if applicable, following review and

approval as to form by the city attorney or their designee if any of the circumstances described in section 2-708(c) apply.

(e) The procurement administrator may approve, execute and issue change orders to purchase orders, authorizing the payment of an additional sum for an additional unit of goods and/or services, when the sum of the original purchase order amount plus the change order amount(s) does not exceed $100,000.00. Upon approval of the city council, the procurement administrator shall issue a change order to a purchase order when the sum of the original purchase order amount plus the change order amount(s) exceeds $100,000.00. If a contract is associated with such purchase order, the city manager, or the director of the department requesting the procurement, is authorized to execute the required contract amendment. Such contract amendments and change orders may only be executed by the city manager, or by department directors or the procurement administrator if applicable, following review and approval as to form by the city attorney or their designee if any of the circumstances described in section 2-708(c) apply.

(f) The city manager, or the director of the department requesting the procurement or the procurement administrator, if authorized by the city manager, may also approve and execute contract amendments and the procurement administrator may issue change orders to purchase orders for procurements previously approved by city council, when the contract amendment or change order amount does not exceed 20 percent of the original contract amount, or $50,000.00, whichever is less. Such contract amendments and change orders may only be executed by the city manager, or by department directors or the procurement administrator if applicable, following review and approval as to form by the city attorney or their designee if any of the circumstances described in section 2-708(c) apply.

(g) The city manager, department directors, or a procuring department is not authorized to accept additional goods and/or services, until the procurement administrator has issued the change order to the purchase order.
(O.15,629, 16,219)

Sec. 2-717. Term of contract; renewal of contract.

(a) The city's policy is that contracts for the provision of goods and/or services or for concessions awarded pursuant to the bidding or request for proposals process shall not exceed a total of six years, including an initial term and renewals due to the non-competitive nature of long term procurement arrangements. The term and renewal periods shall be determined by the procurement administrator. Contracts may only be renewed if renewal is provided for in the bid or request for proposals. Requests for proposals shall identify the terms for renewal, including the renewal term and the number of permitted renewals. However, the city council, the city manager, or the public housing board may provide for an initial and renewal term in excess of six three years, or may provide for the renewal of such contracts, when such longer initial term or renewal are deemed to be in the best interests of the city.

(b) The compensation to be paid shall not be increased during any renewal term unless such increase is provided for in the bid or request for proposals and in the original contract. In the case of concessions, the consideration to be paid the city shall not be decreased during any renewal term unless such decrease is provided for in the RFP and in the original contract. All renewals shall be accomplished pursuant to written addendum, subject to review and approval by the city manager, or the director of the department making the procurement or the procurement administrator, if authorized by the city manager, and the legal department. A renewal addendum must be executed by the bidder or proposer, be approved by the officer or body that approved the original contract, and must be executed by the city manager or the director of the department making the procurement if authorized by the city manager.
(O.15,629)

Sec. 2-718. Annual purchase agreements and contracts and contracts for demolition.

(a) The procurement administrator is authorized to enter into annual purchase agreements for the procurement of goods and/or services that are consistently needed by city departments, including the municipal housing agency, but where the type or quantity of goods and/or services are unknown and where a purchase agreement for particular goods and/or services are fixed is not reasonable or cost efficient. Competitive bidding procedures shall be followed in entering into the annual purchase agreement. Annual purchase agreements where the estimated cost exceeds $100,000.00 must be approved by the city council. Annual purchase agreements where the estimated cost will not exceed $100,000.00 may be approved by the procurement administrator. Such agreements may only be executed by the city manager or the procurement administrator following review and approval as to form by the city attorney or their designee if any of the circumstances described in section 2-708(c) apply. Annual purchase agreements shall be negotiated or rebid annually, unless renewed as provided in the bid terms.

(b) The city manager is hereby expressly authorized to enter into annual structure demolition contracts for demolition projects where the estimated cost to demolish each project does not exceed $100,000.00 or each project has a total estimated cost equal to or less than the competitive bid threshold as established in Iowa Code Section 314.1B. The city manager shall procure such contracts by mailing and publishing annually, a solicitation for annual demolition contracts, which solicitation shall be mailed to all demolition contractors providing such service to the city within the last year, and shall be published once in a newspaper published at least once weekly and having of general circulation in the city, which mailing and publication shall occur not less than five business days nor more than 20 days prior to the required response date. The city manager may solicit separate contracts for "demolition - structure removal" and for "demolition - asbestos removal". In responding to such solicitation, demolition contractors shall be required to execute a blanket form of demolition contract in the form approved by the city manager and the legal department, shall be required to submit a certificate of insurance evidencing the coverages and endorsements required by the city, and shall be required to submit a performance, payment and maintenance bond on the form provided, and in the amount required, by the city. If two or more demolition contractors respond to such solicitation and submit executed contracts, insurance certificates, and performance, payment and maintenance bonds as above provided, the city manager may execute such contracts on behalf of the city. Upon execution of such contracts, the city manager may, as needed, obtain competitive proposals from said contractors for demolition projects within the city, and may enter into a contract addendum for a demolition project with a responsible contractor submitting the lowest responsible responsive proposal therefor, provided that the proposed cost of each demolition project does not exceed $100,000.00, or each project has a total estimated cost equal to or less than the competitive bid threshold as established in Iowa Code Section 314.1B. Such contract addenda may only be executed by the city manager following review and approval as to form by the city attorney or their designee if any of the circumstances described in section 2-708(c) apply. If the cost of a structure demolition project will exceed $100,000.00 or the competitive bid threshold established in section 314.2B, the engineering department shall procure competitive bids therefore for award by the city council pursuant to Iowa Code chapter 26 Public Construction Bidding. In determining the total costs of a structure demolition project, the costs of demolition asbestos removal and the demolition structure removal bids shall both be included.
(O.15,629, 15,696, 16,219)

Sec. 2-719. Assignment of contract prohibited.

No contract or purchase order awarded to a successful bidder or proposer shall be assignable by the successful proposer or bidder without the written approval of the city manager or approval of the city council. In no event shall a contract or any part thereof be assigned to a party who has

been determined not to be a responsible bidder or proposer by the procurement administrator or by an evaluation and selection committee. For contracts or purchase orders where the estimated cost will not exceed $100,000.00 annually, no purchase order or contract awarded to a bidder or proposer shall be assignable by the successful bidder or proposer without the written approval of the city manager, or the procurement administrator, if authorized by the city manager. (O.15,629, 16,219)

Sec. 2-720. Rule of construction.

Whenever used in this subdivision, the terms "city manager", "procurement administrator", "finance director" and "department director" shall mean and include the designees of such persons, or the persons authorized to act in the capacity of such persons in their absence. (O.15,629)

Secs. 2-721—2-725. Reserved.

Part 2. Exceptions to Competitive Solicitation Process

Sec. 2-726. Exceptions to procurement of goods and services under competitive bidding or request for proposals process.

(a) The procurement of goods and/or services or concessions, wherein cost to the city and compliance with specifications will be the only criteria considered in selecting among competing bidders, or wherein criteria in addition to cost or revenue to the city and compliance with specifications will be considered in selecting from among competing proposers, and wherein the cost or revenue to the city is estimated not to exceed $100,000.00 annually, shall be an exception from the formal competitive bidding and the RFP procedure outlined in this subdivision, unless the procurement administrator reasonably determines that such procedures shall be followed in order to assure the best interests of the public. Procurements which are excepted from the formal bidding or RFP procedure shall be administered by the procurement administrator in a manner reasonably calculated to assure the best interests of the public, and shall include the following:

(1) The procurement of other professional services (e.g. planning services, program consulting services, etc.) where the total anticipated cost of those services will not exceed $100,000.00.

(2) The procurement of printing or engraving of bonds, official statements and other evidences of indebtedness.

(3) The procurement of printing or procurement of special materials, supplies, or postage to be used in connection with an election or referendum.

(4) The procurement of utility services, including natural gas, electric, water, cable, and land telephone lines, and fuel and fuel services for vehicles, equipment, and facilities and landfill dumping fees.

(5) Contracts for the procurement of goods and/or services through which nonprofit associations, established to aid or assist governmental bodies or other governmental agencies have secured special rates or provisions for the purchase of goods and/or services for the benefit of governmental bodies or agencies.

(b) The following procurements shall be exceptions to the competitive bidding and RFP competitive procedure in this subdivision and shall be administered by the director of the procuring department in a manner reasonably assuring the best interests of the public:

(1) The procurement of professional services for the engineering department, including but not limited to inspection, surveying, commissioning, televising, and engineering or architectural services which will result in the design and construction of public improvements, shall be accomplished pursuant to the engineering department's RFP process, which shall be administered by the city engineer, who shall be governed by the same requirements as the procurement divi-

sion regarding advertisement, authorization limits, change orders and contract approval and execution.

a. The city council may, on a case-by-case basis, upon the recommendation of the city engineer for good cause shown, exempt negotiated contracts for professional services for the engineering department, including but not limited to inspection, surveying commissioning, televising, and engineering or architectural services which will result in the design and construction of public improvements, from the requirements of the engineering department's RFP process and the advertising requirement of section 2-730.

b. The procurement of professional services for the engineering department, including but not limited to inspection, surveying commissioning, televising, and engineering or architectural services which will result in the design and construction of public improvements, where the total estimated cost will not exceed $100,000.00, shall be administered by the city engineer and accomplished pursuant to the engineering department's process which shall be reasonably calculated to assure the best interests of the public.

(2) The procurement of legal services shall be administered by the city attorney. The procurement of legal services pursuant to professional service agreements with attorneys or law firms shall be conducted under the direction of the city attorney, provided that the procurement of legal services shall be subject to the approval of the city council as provided in section 2-364 of this City Code.

(3) The procurement of sponsorship services which provide funding and/or promotion, marketing or assistance with the implementation of events, services or programs undertaken by the park and recreation department.

(4) The sale of advertising under the oversight of the procurement administrator.

(5) The procurement of entertainers or performing artists for civic programs and events, when the availability of such person does not lend itself to competitive procurement.

(6) The procurement of magazines, books, periodicals, and similar articles of an educational or instructional nature, and the binding of such magazines, books, periodicals, pamphlets, and similar articles.

(7) The procurement of travel services.

(8) The procurement of event food and beverage and catering services.

(9) Real estate and real property transactions, and the procurement of real estate appraisals and title opinions.

(c) The procurement of repair services for equipment and machinery, or for the procurement of repair parts, when required repair parts are available only from a single factory source and are sold through a single area-wide distributor, and competitive bids for such repairs are thus not prospectively obtainable, and the procurement administrator so finds and declares in writing. The procurement administrator's written determination shall be filed with the procurement documents in each such instance.

(d) The procurement of goods and/or services that are of such a nature that they are the only goods and/or services which will fit and comply with the required use, or are an integral part of a total system so as to be uniquely compatible with existing city needs, materials or equipment to be cost effective, and the procurement administrator so finds and declares in writing. The procurement administrator's written determination shall be filed with the procurement documents in each such instance.

(e) Contracts for goods and/or services procured through a cooperative chapter 28E agreement that were procured by a governmental entity participating in said 28E agreement, provided that the city manager determines that said entity procured the goods and/or services pursuant to competitive procurement procedures substantially equivalent to those set forth in this division.

(f) The procurement of goods and/or services by a department, involving a city expenditure of less than $5,000.00, under the oversight of the procurement administrator.

(g) A temporary concession may be granted through a written agreement approved by the city manager, or the director of the requesting department if authorized by the city manager, without completing the competitive procurement process. Concessions involving the lease or exclusive use of city property for a period of more than three years shall be subject to approval of the city council, as provided by Section 364.7 of the Iowa Code.

(h) Annual structure demolition contracts shall be accomplished pursuant to section 2-718(b).

(i) The procurement of officer and employee training and development, including continuing education and educational seminars.

(j) The procurement administrator is expressly authorized to procure from any federal, state, or local government unit or agency thereof surplus machinery, motor vehicles, materials, supplies, commodities, or equipment as may be made available through the operation of any legislation heretofore or hereafter enacted without conforming to the competitive bidding requirements of this division.

(k) The procurement administrator is expressly authorized to procure goods and/ or services from supply schedules of the U.S. General Services Administration and from contracts established by the State of Iowa Department of Administrative Services, the Iowa Department of Transportation, and the Iowa Communications Network pursuant to procedures established by Iowa Code Chapter 8A and rules and regulations promulgated thereunder, or pursuant to supply schedules of Polk County contracts or accepted bids pursuant to Polk County's bidding procedures, without conforming to the competitive bidding requirements of this subdivision.

(l) The procurement administrator is hereby expressly authorized to procure from any federal, state, county or local government unit or agency thereof, without conforming to the competitive bidding requirements of this division, such goods and/or services as are authorized by the city manager, provided that the city manager determines and declares in writing that such goods and/or services were competitively procured by such unit or agency pursuant to competitive procurement procedures substantially equivalent to those set forth in this division, and can be procured without mark-up from such other federal, state, county, or local government unit or agency.

(m) The procurement administrator is hereby expressly authorized to procure goods and/or services from contracts that have been competitively established through cooperative group contracting consortiums for state government departments, institutions, agencies and political subdivisions, without conforming to the competitive bidding requirements of this division.

(n) The procurement administrator is hereby expressly authorized to procure goods and/or services through a joint bid with Polk County or other governmental entities by a competitive bidding procedure, without conforming to the competitive bidding requirements of this subdivision.

(o) Regular or temporary employment contracts or hiring in the municipal service, whether with respect to the classified service or otherwise, shall not be subject to this division.

(p) Library board of trustees procurements pursuant to Iowa Code Chapter 392.

(q) Information and services provided by the Iowa Online Warrants and Articles Criminal Justice Information System pursuant to Iowa Code Chapters 80 and 692.

(r) The procurement of professional services being funded by federal funds, and where applicable federal law or regulation requires the use of a request for qualifications process or other process.

(s) Services required to be provided pursuant to a court order.

(t) The procurement of goods or services being funded by federal funds where the applicable federal law or regulation requires the use of a procurement process or procurement standards which are inconsistent with or in addition to the requirements of this Subdivision V. Such procurement shall comply with the applicable federal law and regulations, including 2 CFR, Part 200, Title 44 Code of Federal Regulations and all those identified in FEMA publication *FP 104-009-2 Public Assistance Program and Policy Guide*, all of which may be amended from time to time, and, to the extent consistent with such federal law and regulations, the requirements of this Subdivision V.

(u) Repair services for work on eligible private property funded by Community Development Block Grant (CDBG) and Polk County Housing Trust funds, where such procurements comply with applicable federal and state law and regulations.
(O.15,629, 15,696, 15,704, 15,762, 16,219, 16,264)

Secs. 2-727, 2-728. Reserved.

Part 3. Formal Bid and Request for Proposals Process

Sec. 2-729. Competitive bidding.

(a) Except as otherwise provided, all purchase orders issued by the procurement division, and all contracts of whatever nature, made by or on behalf of the city, for the procurement of goods and/or services, whether by purchase, lease, or a concession agreement, where the estimated cost or revenue to the city will exceed $100,000.00 annually, and where the selection criteria include only the lowest or highest bid and compliance with bid specifications, shall be made pursuant to the formal competitive bidding procedure, after advertisement as provided by section 2-730, to the lowest responsible bidder or, in the appropriate instance, to the highest responsible bidder, depending upon whether the city is to expend or receive money.

(b) All purchase orders issued by the procurement division, and all contracts of whatever nature, made by or on behalf of the city, for the procurement of goods and/or services, whether by purchase, lease, or a concession agreement, where the estimated cost or revenue to the city will not exceed $100,000.00 annually , and where the selection criteria include only the lowest or highest bid and compliance with bid specifications, shall be made pursuant to the formal competitive bidding procedure, after advertisement as provided by section 2-730, to the lowest responsible bidder or, in the appropriate instance, to the highest responsible bidder, depending upon whether the city is to expend or receive money, unless the procurement administrator determines that the informal competitive bidding procedure is appropriate.

(c) All surplus property deemed suitable and appropriate for sale by the procurement administrator, where the estimated sale price of any single item of surplus property, or the estimated aggregate sale price of all items of surplus property to be sold in one lot, will exceed $100,000.00, shall be sold pursuant to the formal competitive bidding procedure, after advertisement as provided by section 2-730, or at auction. All such sales in excess of $100,000.00 must be approved by the city council.

(d) All surplus property deemed suitable and appropriate for sale by the procurement administrator, where the estimated sale price of any single item of surplus property, or the estimated aggregate sale price of all items of surplus property to be sold in one lot, will not exceed $100,000.00, may be sold pursuant to the formal competitive bidding procedure after advertisement as provided by section 2-730, unless the procurement administrator determines that the informal competitive bidding procedure or sale by advertisement is appropriate.

(e) The procurement administrator may dispose of surplus property not deemed suitable or appropriate for sale by such means as the procurement administrator deems appropriate.
(O.15,629, 16,219)

Sec. 2-730. Advertisement and manner of issuance for bids and requests for proposals.

(a) All advertisements for bids and notices of requests for proposals to award purchase orders or contracts where the annual estimated cost or revenue to the city will exceed $100,000.00 shall be posted on the city's website at least seven days in advance of the date announced for receiving bids or proposals, excluding weekends and legal holidays, except the city council may waive posting in times of public emergency.

(b) Nothing contained in this section shall be construed to prohibit the procurement administrator from promulgating additional announcements in local newspapers, recognized trade journals, on the city cable television channel, on the city's internet website, on other appropriate websites, by other electronic media, by online bidding and proposal platform(s), or by mailing announcements to potential bidders.

(c) Advertisements for bids or requests for proposals shall generally describe the goods and services to be procured with information on where to obtain the bid or request for proposals documents, which documents shall provide sufficient information to enable the bidders or proposers to know their expected obligations, which documents shall be in the office of the procurement administrator and available on the city's online bidding and proposal platform(s), at the time of the publication of the first announcement. This advertisement shall also state the date and time assigned for the opening of bids or the request for proposals, and no bids or proposals shall be received at any time subsequent to the time indicated in the announcement.

(d) Only the procurement division is authorized to advertise and to solicit for bids or issue requests for proposals.

(e) The requirements of this section do not apply to requests for proposals issued by the engineering department pursuant to section 2-726(b)(1)(a).
(O.15,629, 16,219)

Sec. 2-731. Bond, indemnity and insurance.

(a) When deemed to be in the public interest by the procurement administrator, bidders and proposers may be required to submit a bond, with good and sufficient sureties, in an amount deemed adequate to assure performance of the contract in the time and manner prescribed in the contract, to secure the payment of the bidder's or proposer's subcontractors and suppliers, and to assure maintenance of the goods.

(b) Bidders and proposers shall be required to execute an indemnity in favor of the city, agreeing to save, indemnify, and keep harmless the city against all loss, damages, claims, liabilities, judgments, costs, and expenses which may in any way accrue against the city in consequence of the awarding the contract or which may in any way result from the bidder's or proposer's performance thereof, unless otherwise approved by the city manager or his designee.

(c) When deemed to be in the public interest by the city's risk manager, bidders and proposers may be required to obtain insurance in form and amounts deemed adequate by the risk manager.
(O.15,629)

Sec. 2-732. Opening and public inspection of bids and RFPs.

All sealed bids and proposals in response to requests for proposals shall be opened by the procurement administrator or his or her designee at such time as shall be specified in the advertisement or invitation for bids or notice of proposals, and all such bids or proposals shall be available for a reasonable time to public inspection in the office of the procurement administrator.
(O.15,629, 16,219)

Sec. 2-733. Determining responsibility of bidders.

In determining responsibility of bidders pursuant to this subdivision, the procurement administrator may take into account, in addition to financial responsibility, the past record of transactions and experience with the bidder, adequacy of the bidder's equipment, and his or her ability to complete performance within the specified time limit.
(O.15,629)

Sec. 2-734. Rejection of bids and proposals.

(a) Any and all bids received in response to an advertisement may be rejected by the procurement administrator if the bidder is not deemed responsible; or the character or quality of the goods and/or services does not conform to requirements; or if the specifications or requirements submitted by the city to the bidder are determined to be faulty or incorrect; or if the city fails to appropriate funds; or if funding for the program is denied or decreased; or if there is a material alteration in the program for which the funds were initially provided; or if the public interest may otherwise be served thereby. If the lowest bid received, pursuant to the formal competitive bidding procedure, or in the appropriate instance the highest bid received, depending upon whether the city is to expend or receive money, is rejected because it is not the most responsible bid, the person or body rejecting it shall immediately state in writing the precise reasons for rejection and file the same in the office of the procurement administrator.

(b) The city reserves the right to reject any or all proposals in whole or in part received in response to the RFP. The city will not pay for any information requested in the RFP, nor is it liable for any cost incurred by a proposer in responding to the RFP.
(O.15,629)

Sec. 2-735. Objections to city staff response or bias claims regarding bias or bid or RFP prior to award.

Any bidder or potential bidder or proposer or potential proposer who believes that the procurement administrator or other city staff have not appropriately responded to its questions, requests for information, clarification or interpretation regarding a bid or request for proposals or who believes that the procurement administrator or other city staff have a bias against it or are treating it unfairly, may communicate its concerns in writing in that regard to the finance director or his or her designee for his or her consideration.
(O.15,629)

Sec. 2-736. Appeals of procurement administrator decisions regarding bids.

A bidder who is aggrieved by the procurement administrator's determination as to which is the lowest compliant bid, or as to the determination to reject a bid, may appeal such determination pursuant to the administrative appeal process established by the procurement division.
(O.15,629)

Sec. 2-737. Preparation of RFPs; review and approval of RFPs prior to issuance.

The department requesting the procurement of goods and/or services, or the procurement of a concession, by RFP shall be responsible for preparing the RFP. All RFPs shall be subject to review by the procurement administrator and the legal department for conformance with the requirements of this subdivision prior to issuance.
(O.15,629)

Sec. 2-738. Procurement administrator the sole point of contact for proposer questions, or requests for information, clarification or interpretation; proposers prohibited from inappropriate communication with city officials or employees; inappropriate communication may result in rejection or return of proposals; inappropriate communication may be considered in evaluation of proposals.

(a) In order to ensure an open process and the provision of equal knowledge and opportunity to all potential proposers, the procurement

administrator shall serve as the sole point of contact for questions, informational requests, and requests for clarification or interpretation during the RFP process. Only written questions, or requests for information, clarification, or interpretation submitted per the instructions found in the RFP documents shall be accepted from potential proposers.

(b) After issuance of an RFP by the city, persons or entities who intend to respond to such RFP and who desire to pose questions, requests for information, clarification or interpretation regarding any term, provision, or requirement of the RFP, shall not attempt to communicate with, in writing, electronically, or orally, any city official or employee other than the city's procurement administrator. Persons or entities who intend to respond to such RFP shall not communicate with, in writing, electronically, or orally, any other city official or employee in an attempt to gather information which would be helpful in responding to the RFP, or in an attempt to influence the city's consideration of its competing proposal. All inappropriate communications with city officials or employees shall be reported to the procurement administrator and to the evaluation and selection committee. Such inappropriate communication by a proposer or potential proposer may, at the discretion of the procurement administrator, constitute grounds for disqualification of that proposer's proposal, resulting in the procurement administrator's refusal to accept such proposal or in the return of such proposal. The evaluation and selection committee may in its discretion consider such inappropriate communication in evaluating and scoring such proposal. The procurement administrator shall advise city officials and the requesting department employees of the pendency of RFPs for evaluation by the evaluation and selection committee by posting RFPs on the city internal website, and during the pendency thereof city officials and employees shall be prohibited from engaging in discussion of an RFP with a proposer or potential proposer unless so directed or approved by the procurement administrator. Notwithstanding the foregoing, proposers are not prohibited from communication with the city council members at a city council meeting after issuance of the notice of intent to award by the procurement administrator.
(O.15,629, 15,696, 16,219)

Sec. 2-739. Proposers conference for RFPs.

A proposers conference may be held at the time and place scheduled in the RFP. The procuring department shall coordinate the holding of such conference. All persons or entities interested in or intending to respond to the RFP may be required to attend the proposers conference and participate as a prerequisite for submission of a proposal. At said conference, any person or entity interested in or intending to respond to the RFP may present, orally or in writing, questions, objections, or requests for clarification or interpretation as to any term, provision, or requirement of the RFP.
(O.15,629)

Sec. 2-740. City's response to proposer questions and requests for information, clarification and interpretation; issuance of addenda to RFP.

The city's procurement administrator shall respond in writing to all questions or requests for information, clarification and interpretation presented to the city as provided in section 2-738, or presented at a proposer's conference. Such written responses shall be directed to all known proposers who have attended a proposer's conference, if held, or submitted such requests, or have responded to the procurement division with interest in the request for proposals. Only the city's written responses shall be considered the city's official response binding upon the city. In addition to making a written response, the city may issue addenda amending the RFP.
(O.15,629)

Sec. 2-741. Evaluation and selection committee; procedure for evaluation and recommendation as to selection of best proposal; submission of recommendation to city council.

(a) Competing proposals submitted in response to an RFP shall be evaluated by an evaluation and selection committee appointed by the direc-

tor of the department sponsoring the RFP. The evaluation and selection committee shall evaluate the competing proposals and make a recommendation regarding the highest scoring proposal. In conducting the evaluation, the committee shall utilize the evaluation criteria and scoring methodology set forth in the RFP.

(b) Upon completing its evaluation of competing proposals, the committee shall make a written report of its determination and recommendation as to the selection of the highest scoring proposal. The report shall be filed with the department director and procurement administrator. The procurement administrator shall send the report and notice of intent to award to all competing proposers by e-mail at the e-mail address shown in their proposals, or through the city's online bidding and proposal platform, not less than five days prior to the appeal deadline set forth in the notice of intent to award.

(c) It shall be the responsibility of the procurement administrator to determine if all required submittals have been made by proposers, and to thereafter submit the recommendation of the evaluation and selection committee and the roll call approving the recommended proposal to the city council for approval.
(O.15,629, 16,219)

Sec. 2-742. Appeal of evaluation and selection committee recommendation; proposer objections to be submitted in writing; hearing by city manager or hearing officer; resolution of proposer objections.

(a) *Opportunity for proposers to appeal evaluation and selection committee recommendation as to selection of the highest scoring proposal; required submission in support of objection.* A proposer who is aggrieved by the evaluation and selection committee's determination and recommendation as set forth in the committee's report, may appeal such determination and recommendation by filing a written objection thereto with the procurement administrator by the appeal deadline set forth in the notice of intent to award. Such objections may be filed in person or by mail, FAX or e-mail. In its written objection, the appealing proposer shall set forth all of its objections to the committee's recommendation and all arguments in support thereof, and shall attach thereto all documentation supporting its objections which it intends to rely on in making its appeal. The appealing proposer may request a hearing on its appeal, but the determination whether to hold a hearing or to determine the appeal on the basis of the record made in the written objection shall be discretionary with the city manager. If the appeal is timely filed, the procurement administrator shall forward the proposer's written objection and all supporting documentation to the city manager.

(b) *Appeal heard by city manager or hearing officer*. Upon receipt of the proposer's written objection, the city manager shall determine if the appeal will be determined by the city manager or if it will be determined by a hearing officer selected by the city manager. The city manager may set for hearing at the same time, date, and place the objections of two or more proposers. All proposers shall be notified of the date, time and place of hearing. The hearing shall be held pursuant to procedures set forth in the RFP or established by the city manager. If the appeal will be determined on the basis of the record, the city manager or hearing officer may require the evaluation and selection committee to provide a written response to the appeal objections within five business days of such request. A copy of such committee response shall be sent by mail or email to the appealing proposer on the same date as provided to the city manager or hearing officer. The award of a contract shall be deferred pending the outcome of the appeal.

(c) All objections made by the appealing proposer shall either be affirmed or overruled. The appeal report shall immediately be forwarded to the appealing proposer.

If an appealing proposer's objection is affirmed, the city manager or hearing officer shall reject the recommendation of the evaluation and selection committee, and shall direct the committee to reconvene to reevaluate the proposals submitted in response to the RFP. In conducting its reevalu-

ation, the committee shall consider all objections affirmed by the city manager or hearing officer. Upon completing its reevaluation, the committee shall make a written report of its determination

and recommendation as to the selection of the best proposal, and shall file the report with the city manager and mail same to competing proposers. Such determination and recommendation shall be final as to all proposers.

If the appealing proposer's objection is overruled, the appealing proposer and all competing proposers shall be given written notification of the date of the council meeting at which the recommendation of the evaluation and selection committee will be considered by the city council.

The city manager's or hearing officer's decision shall be considered final.

(d) The appealing proposer or city aggrieved by the decision made by the city manager or a hearing officer may challenge whether the city manager or hearing officer exceeded proper jurisdiction or otherwise acted illegally by commencing a certiorari action in the district court for Polk County, Iowa. The petition to initiate a certiorari action must be filed within 30 days after the entry of the final determination unless an extension of time is allowed by the reviewing court pursuant to Division XIV of the Iowa Rules of Civil Procedure. The city manager is hereby authorized to initiate a certiorari action on behalf of the city when the city manager, in consultation with the city attorney, deems it necessary and appropriate.

(e) The filing of an action in the district court challenging the final determination of the city manager or hearing officer does not automatically stop the city from awarding the contract. Unless the city has been served with an order from the district court directing otherwise, the city may proceed with awarding the contract.
(O.15,629)

Sec. 2-743. City council selection of best proposal; notification of successful proposer.

The city council will by resolution approve the proposal which it selects as the best proposal. Upon the city council's approval of the proposal, the procurement administrator shall give notice advising the proposer whose proposal was selected what actions must be taken to complete the formation of the contract.
(O.15,629)

Secs. 2-744—2-765. Reserved.

Subdivision VI. Research and Budget Division

Sec. 2-766. Responsibility for activities of division.

The research and budget officer shall be responsible for the activities of the research and budget division of the department of finance under the direction and supervision of the director of finance.
(C54, C62, § 2-322; O.7303; C75, C79, C91, § 2-101)

Sec. 2-767. Duties.

The research and budget officer shall be responsible for preparation and compilation of the city's annual operating budget, and annual capital improvements program for program evaluation and productivity improvement services; and for such other services as may be required by the finance director.
(C54, §§ 2-324, 2-325; O.5728, 5858; C62, §§ 2-324, 2-325; O.7303; C75, C79, § 2-102; O.10,431; C85, § 2-102; O.11,573; C91, § 2-102)

Secs. 2-768—2-795. Reserved.

Subdivision VII. Risk Management Division

Sec. 2-796. Supervision.

The risk manager shall supervise the risk management division of the department of finance under the direction of the director of finance.
(C91, § 2-102.12; O.12,059)

Sec. 2-797. Responsibility.

The risk management division shall be responsible for coordinating risk management and insurance.
(C91, § 2-102.13; O.12,059)

Secs. 2-798—2-825. Reserved.

Subdivision VIII. Treasury Division

Sec. 2-826. Supervision.

The city treasurer shall supervise the treasury division in the department of finance.
(C54, § 2-309; O.6340; C62, § 2-309; O.7303; C75, C79, C91, § 2-103)

Sec. 2-827. City treasurer.

(a) *Appointment.* The city treasurer shall be appointed by the city manager with the approval of the city council.

(b) *Duties and responsibilities.* The city treasurer shall be responsible to the director of finance for the activities of the treasury division, and shall have and exercise all powers and perform all duties provided or prescribed by state law, the provisions of this Code or other city ordinances.

(c) *Collection and disbursement of moneys.* The city treasurer shall collect and receive all moneys payable to the city, and disburse the same only on checks drawn by order of the city council and signed by the chief accounting officer and the mayor.
(C54, §§ 2-310, 2-311, 2-312; O.6340; C62, §§ 2-310, 2-311, 2-312; O.7303; C75, C79, C91, § 2-104; O.13,659)

State law reference—Manager to appoint treasurer, subject to approval of city council, I.C. § 372.8(2)(n).

Sec. 2-828. Disposition of moneys received.

Any city officer or employee, other than the treasurer, who is authorized to collect or receive money for any purpose whatever shall collect and turn such money over to the city treasurer daily or at periods deemed adequate by the chief accounting officer. Any person collecting or receiving money shall keep an adequate record thereof and shall issue a receipt therefor.
(C54, C62, § 2-313; C75, C79, C91, § 2-105)

Sec. 2-829. Treasurer's petty cash fund.

There is appropriated out of money in the city treasury, not otherwise appropriated, $1,000.00 which shall be known as the treasurer's petty cash fund. From this fund may be paid all purchases, not in excess of $50.00 each, made by employees with the certification of the finance director or his or her designee that appropriations are available. As the fund needs to be replenished, the treasurer shall present to the director of finance a statement showing the actual expenditures, and the director of finance or his or her designee shall reimburse the petty cash fund for these expenditures.
(C85, § 2-105.01; O.11,408; C91, § 2-105.01; O.12,085)

Sec. 2-830. Checks, drafts or money orders payable to city.

All bank checks, drafts or money orders offered in payment to the city shall be made payable to the City of Des Moines and not to any employee, officer, department or division of the city.
(C54, C62, § 2-314; C75, C79, C91, § 2-106)

Sec. 2-831. Records and reports.

The city treasurer shall keep records and shall make reports as may be required by state law, the provisions of this Code, and other city ordinances.
(C54, § 2-315; O.6340; C62, § 2-315; C75, C79, C91, § 2-107)

Sec. 2-832. Duties as to classification plan.

The city treasurer shall perform such duties as may be required of him or her by any classification plan adopted by the city.
(C54, C62, § 2-316; C75, C79, C91, § 2-108)

Secs. 2-833—2-860. Reserved.

DIVISION 4. INFORMATION TECHNOLOGY

Sec. 2-861. Supervision and responsibility.

The information technology director shall supervise the information technology department. The information technology department shall be responsible for the following:

(1) Planning, development, installation and replacement, as needed, of information systems and equipment.

(2) Network management and support of technology applications and equipment that is or may potentially be connected to the network system.

(3) Implementing and maintaining a comprehensive and cost-effective communication and information management system that supports and optimizes the delivery of services to internal and external customers.

(O.13,554)

Secs. 2-862—2-890. Reserved.

DIVISION 5. HUMAN RESOURCES

Sec. 2-891. Supervision.

The human resources director shall supervise the human resources department.
(O.13,584)

Sec. 2-892. Appointment of human resources director.

The city manager shall appoint the human resources director.
(O.13,584)

Sec. 2-893. Duties of human resources director.

The human resources director shall supervise the human resources department, which shall be responsible for the following:

(1) The administration of the personnel system subject to personnel rules approved and adopted by the city council and subject to applicable city ordinances.

(2) The making of all appointments to city service in accordance with personnel rules then in effect, unless such power is specifically assigned by law to another appointing authority.

(3) The preparation and periodic review and revision of personnel rules and regulations for presentation to the city council for adoption, covering titles, classifications, working hours, leaves of absence, transfers and promotions, cause for discharge and suspension, sexual harassment and such other subjects as may be necessary or advisable to carry out the intent and purpose of the city personnel system.

(4) The negotiation and administration of labor-management contracts within the purview of the State Public Employment Relations Act.

(5) The recruitment of applicants for non-civil-service positions.

(6) The processing of all municipal employment appointments, status changes and other personnel actions and maintenance of personnel records.

(7) The coordination of employee training programs.

(8) The administration of the employee health clinic.

(9) The administration of the affirmative action program.

(O.13,584)

Secs. 2-894—2-920. Reserved.

DIVISION 6. NEIGHBORHOOD SERVICES*

Sec. 2-921. Supervision.

The neighborhood services director shall supervise the neighborhood services department. All references to neighborhood services director or to community development director contained in other chapters of this Code shall mean neighborhood services director for the purposes set forth in this division. All references to the community development department contained in other chapters of this Code shall mean neighborhood services department for the purposes set forth in this division.
(O.15,928)

*__Editor's note—__Ord. No. 15,928, § 1, adopted Oct. 5, 2020, amended Div. 6 in its entirety to read as herein set out. Former Div. 6, §§ 2-921—2-924, pertained to community development, and derived from Code 1991, §§ 2-126.18—2-126.21; Ord. No. 12,059; Ord. No. 15,322; Ord. No. 15,779; Ord. No. 15,819.

Sec. 2-922. Appointment of neighborhood services director.

The city manager shall appoint the neighborhood services director.
(O.15,928)

Sec. 2-923. Duties of neighborhood services director.

The neighborhood services director shall be responsible in the neighborhood services department for the following:

(1) The enforcement of vector, sanitation, nuisance, housing and zoning codes and the issuance of all permits and the inspection of all work done under the provisions of such codes and the safety inspection of all premises.

(2) Neighborhood inspections.

(3) Providing assistance to the city housing appeals board, housing services board, continuum of care board, homeless coordinating council, and similar additional or substituted boards and commissions.

(4) Housing rehabilitation, housing counseling and loan services, public housing, housing choice voucher and family self-sufficiency programs.

(5) The administration of federal community development-related funds.

(O.15,928, 16,193)

Sec. 2-924. Divisions enumerated.

The neighborhood services department shall be composed of the following divisions:

(1) Housing services division.

(2) Zoning enforcement division.

(3) Neighborhood inspections division.

(4) Federal funds administration division.

(O.15,928)

Secs. 2-925—2-950. Reserved.

DIVISION 7. PUBLIC WORKS

Subdivision I. In General

Sec. 2-951. Supervision.

The director of public works shall supervise the department of public works.
(C54, C62, § 2-328; C75, § 2-145; O.9094; C79, C91, § 2-145)

Sec. 2-952. Appointment of director.

The city manager shall appoint the director of public works.
(C54, § 2-329; O.5725, 5855; C62, § 2-329; C75, § 2-146; O.9094; C79, C91, § 2-146)

Sec. 2-953. Duties of director generally.

The director of public works shall be responsible for the following:

(1) The maintenance and repair of city streets, bridges, sidewalks, sewers and other public works facilities.

(2) The cleaning of streets and public places.

(3) The collection and disposal of solid waste.

(4) The provision of emergency public works services, to the extent feasible under the existing conditions, during periods of extreme and/or hazardous weather.

(5) The management, care and maintenance of the city government's communications system.

(6) Oversight of contracted maintenance services for city vehicles and equipment as provided in subdivision II of this division.

(7) Other related duties and functions as may be assigned by state law, the provisions of this Code and other city ordinances or by the city manager.

(8) The management of the activities of the forestry section to include but not be limited to street tree planting and

maintenance, right-of-way and alley clearance, tree disease detection and treatment.

(C54, § 2-330; O.5664; C62, § 2-330; O.7363, 7483; C75, § 2-147; O.9094; C79, § 2-147; O.10,431, 10,650; C91, § 2-147; O.11,852, 11,948)

Sec. 2-954. Divisions enumerated.

The department of public works shall be composed of the following divisions:

(1) Division of street maintenance.

(2) Division of sewer maintenance.

(3) Division of sanitation.

(4) Division of communication maintenance.

(C54, C62, § 2-332; O.7483; C75, § 2-148; O.9094; C79, § 2-148; O.10,431; C91, § 2-148; O.11,852, 11,948)

Sec. 2-955. Division of street maintenance.

(a) The division of street maintenance shall be supervised by an administrator who shall be responsible to the director of public works for its activities.

(b) The activities of this division shall consist of the planning, direction, maintenance and repair of streets, roads, alleys and related work.

(c) This division shall perform such other related duties as may be assigned by the director of public works.

(C54, C62, § 2-333; O.7483; C75, § 2-151; O.9094; C75, C79, C91, § 2-150)

Sec. 2-956. Division of sewer maintenance.

(a) The division of sewer maintenance shall be supervised by an administrator who shall be responsible to the director of public works for its activities.

(b) The activities of this division shall consist of the planning, direction, maintenance and repair of sewers, sidewalks, bridges and related work.

(c) This division shall also perform such other related duties as may be assigned by the director of public works.

(C54, C62, § 2-333; O.7483; C75, § 2-151; O.9094; C79, C91, § 2-151)

Sec. 2-957. Division of sanitation.

(a) The division of sanitation shall be supervised by an administrator who shall be responsible to the director of public works for its activities.

(b) This division shall have the responsibility for tree disease detection and treatment, right-of-way and alley clearance, street tree planting and maintenance and the care of trees and parks and other public properties as may be assigned.

(c) The activities of this division shall consist of the planning, direction, maintenance and related matters involved in the collection of solid waste refuse from residential dwellings in accordance with applicable sections of this Code and other municipal ordinances and in the cleaning of streets and public places.

(d) This division shall also perform such other related duties as may be assigned by the director of public works.

(C54, C62, § 2-333; O.7483; C75, § 2-151; O.9094; C75, C79, § 2-151.01; C91, § 2-151.01; O.11,948)

Sec. 2-958. Division of communication maintenance.

(a) The division of communication maintenance shall be supervised by the communications supervisor who shall be responsible to the director of public works for its activities.

(b) The activities of this division shall consist of the planning and direction of the communications function, which shall perform the management, care and maintenance of the city government's communication system.

(c) This division shall also perform such other related activities as may be assigned by the director of public works.

(C54, C62, § 2-334; O.7483; C75, § 2-149; O.9094; C75, C79, § 2-151.02; O.10,431; C91, § 2-151.02)

Secs. 2-959—2-985. Reserved.

Subdivision II. Equipment Maintenance Center

Sec. 2-986. Definitions.

The following words, terms and phrases, when used in this subdivision, shall have the mean-

ings ascribed to them in this section, except where the context clearly indicates a different meaning:

Motor-driven equipment includes trucks, tractors and vehicles of every kind and nature used by or in any city service, including construction and maintenance equipment and all the tools, supplies and materials used in connection with city operations.

Motor vehicle includes cars and motorcycles either owned or in the exclusive possession of the city used in connection with city operations.
(C42, § 4-1; O.5304; C54, C62, § 31-1; O.7487; C62, § 13A-1; C75, C79, § 2-155; O.10,431, 10,650; C79, C91, § 2-102.03)

Cross reference—Definitions generally, § 1-2.

Sec. 2-987. Established.

There is established an equipment maintenance center.
(C42, § 74-1; O.5304; C54, C62, § 31-2; O.7487; C62, § 13A-2; C75, C79, § 2-152; O.10,431, 10,650; C79, C91, § 2-102.01)

Sec. 2-988. Use.

The equipment maintenance center and facilities shall be used for the storage, maintenance and repair of all motor vehicles and motor-driven equipment used by each of the departments of the city government, except the fire department.
(C42, § 74-1; O.5304; C54, C62, § 31-4; O.7487; C62, § 13A-4; C75, C79, § 2-154; O.10,431, 10,650; C79, C91, § 2-102.02; O.15,144)

Sec. 2-989. Equipment rental charges established.

The city manager shall from time to time establish equipment rental rates for the various types of motor vehicles, motor-driven vehicles, and other equipment.
(C42, § 74-3; O.5304; C54, C62, § 31-9; O.7487; C62, § 13A-6; C75, § 2-157; O.9094; C79, § 2-157; O.10,650; C79, C91, § 2-102.04)

Sec. 2-990. Basis for equipment rental charges.

The schedule of equipment rental rates established pursuant to section 2-989 of this subdivision shall, as nearly as practicable, reflect the actual total costs of purchase, operation and maintenance of motor vehicles, motor-driven vehicles, and other equipment, including general overhead incident to the operation of the equipment maintenance center; the cost of repairs, parts, tires, batteries, fuel, oil and related expenses; and the estimated depreciation reserve necessary to replace each type or unit of equipment at the expiration of its useful life.
(C42, § 74-3; O.5304; C54, C62, § 31-10; O.7487; C62, § 13A-7; C75, C79, § 2-158; O.10,431, 10,650; C79, C85, § 2-102.05; O.11,573; C91, § 2-102.05)

Sec. 2-991. Billing for equipment rental charges.

The department of finance shall keep proper account of all such equipment and shall bill the using departments monthly in accordance with the current equipment rental rates, which billing shall be paid from funds appropriated to the several departments for contractual services including equipment rentals.
(C42, § 74-3; O.5304; C54, C62, § 31-11; O.7487; C62, § 13A-8; C75, C79, § 2-159; O.10,650; C79, C85, § 2-102.06; O.11,573; C91, § 2-102.06)

Sec. 2-992. Segregation of depreciation charges.

Receipts from the depreciation charges included as a part of the equipment rental charges pursuant to this subdivision shall be segregated in a special depreciation reserve account which shall be expendable for equipment replacements or additional equipment in accordance with the law governing purchasing by the city.
(C42, § 74-3; O.5304; C54, C62, § 31-12; O.7487; C62, § 13A-9; C75, C79, § 2-160; O.10,650; C79, C91, § 2-102.07)

Sec. 2-993. Receipts for gas and supplies.

No person shall take or receive any gas or oil from the city's station without signing a receipt

for the gas or oil, and no person in charge of the gas and oil station and supplies of the city shall furnish gas and oil to anyone for motor vehicle purposes, except a city employee using a motor vehicle belonging to the city solely for city purposes, and unless such employee signs a receipt therefor to that effect.
(O.5304; C54, C62, § 31-13; O.7487; C62, § 13A-10; C75, C79, § 2-161; O.10,650; C79, C85, § 2-102.08; O.11,573; C91, § 2-102.08)

Sec. 2-994. Private use of gas and supplies.

No city officer or employee shall furnish and no city officer or employee shall take or receive any gas, oil, tires, tubes or other supplies for motor vehicles, except and unless the motor vehicle for which such supplies are furnished or received is being used exclusively for city purposes.
(C42, § 74-5; O.5304; C54, C62, § 31-14; O.7487; C62, § 13A-11; C75, C79, § 2-162; O.10,650; C79, C91, § 2-102.09)

Sec. 2-995. Repairs on motor vehicles.

All repairs upon the city's motor vehicles, motor-driven vehicles and other equipment shall be made at the equipment maintenance center or its facilities. However, if the repairs are of such a character that the equipment maintenance center is unable to make them, arrangements shall be made to have such repairs performed at such other places in the city as the city manager shall determine to be best for the city.
(C42, § 74-6; O.5304; C54, C62, § 31-15; O.7487; C62, § 13A-12; C75, C79, § 2-163; O.10,431, 10,650; C79, C91, § 2-102.10)

Secs. 2-996—2-1000. Reserved.

DIVISION 8. DEVELOPMENT SERVICES

Sec. 2-1001. Supervision.

The development services director shall supervise the development services department. All references to development services director or to director of the office of economic development contained in other chapters of this Code shall mean development services director for the purposes set forth in this division. All references to the office of economic development or to the community development department contained in other chapters of this code shall mean development services department for the purposes set forth in this division.
(O.15,928)

Sec. 2-1002. Appointment of development services director.

The city manager shall appoint the development services director.
(O.15,928)

Sec. 2-1003. Duties of development services director.

The development services director shall be responsible in the development services department for the following:

(1) The enforcement of planning and design, building, electrical, plumbing, mechanical, and steam power equipment codes and the issuance of all permits and the inspection of all work done under the provisions of such codes. Enforcement of the planning and design code may be partially or wholly designated by the development services director, at his or her discretion, to the neighborhood services director.

(2) Planning and subdivision activities.

(3) Providing assistance to the city plan and zoning commission, zoning board of adjustment, historic preservation commission, urban design review board, building and fire board of appeals, and similar additional or substituted boards and commissions.

(4) The administration and enforcement of energy and water use benchmarking.

(5) Planning, implementing, and administering economic development programs for businesses and individuals, including development and redevelopment projects.

(O.15,928)

Sec. 2-1004. Divisions enumerated.

The development services department shall be composed of the following divisions:

(1) Permit and development center division.

(2) Planning and urban design division.

(3) Office of economic development.
(O.15,928)

Secs. 2-1005—2-1045. Reserved.

ARTICLE VI. BOARDS, COMMISSIONS, COMMITTEES AND AGENCIES*

DIVISION 1. GENERALLY

Sec. 2-1046. Appointment of members; qualifications.

(a) Except as otherwise specifically provided by state statute, all members of the administrative or advisory boards, committees, commissions and agencies of the city shall be appointed and approved by the city council. The city clerk shall notify the city council of the expiration of terms of office of any member of any administrative or advisory board, committee, commission or agency as provided in section 2-1047 of this division. When a vacancy occurs by resignation, death, or other termination of service, the city clerk shall provide the notice to the city council as soon as the city clerk is made aware of the vacancy, along with the assignment of the member of the city council responsible for recommending appointment of a successor under subsection 2-1047.

(b) The city council recognizes that, pursuant to I.C. Section 69.16A, gender balance is required on all city boards and commissions that are established by the Iowa Code. Even if those boards and commissions identified herein are not required to be gender balanced, the city council hereby declares that it would so require under its general powers. Those boards currently required by state statute to be gender balanced include the following boards and commissions:

(1) Des Moines International Airport Board;

(2) Civil Service Commission;

(3) Historic Preservation Commission;

(4) Housing Services Board;

(5) Civil and Human Rights Commission;

(6) Library Board of Trustees;

(7) Plan and Zoning Commission;

(8) Water Works Board of Trustees; and

(9) Zoning Board of Adjustment.

(c) In addition to the boards and commissions required to be gender balanced under I.C. Section 69.16A, the city council hereby finds and determines that the following boards and commissions established solely under the general powers of the city shall be gender balanced:

(1) Park and Recreation Board.

(d) For purposes of this section, to maintain gender balance no person shall be appointed or reappointed to any board or commission which is required to be gender balanced if that appointment or reappointment would cause the number of members of the board or commission of one gender to be greater than one-half the membership of the board or commission plus one if the board or commission is composed of an odd number of members. If the board or commission is composed of an even number of members, not more than one-half of the membership shall be of one gender. Council members shall consult each other to avoid a violation of this section. All

*__Cross references—__International airport board, § 22-46 et seq.; airport zoning board of adjustment, § 22-344; electrical board, § 26-296 et seq.; housing appeals board, § 26-511; mechanical board, § 26-908; plumbing board, § 26-1051 et seq.; historic district commission, § 58-30; human rights commission, § 62-41 et seq.; library board of trustees, § 66-31 et seq.; park and recreation board, § 74-26 et seq.; plan and zoning commission, § 82-31 et seq.; architectural advisory committee, § 82-136 et seq.; strategic planning commission, § 82-276 et seq.; urban renewal board, § 82-336 et seq.; public housing board, § 90-31 et seq.; valuation committee, § 94-31 et seq.; traffic safety advisory committee, § 114-241 et seq.; zoning board of adjustment, § 134-61 et seq.
(O.15,904, 16,193)

boards or commissions required to be gender balanced shall be maintained as gender balanced unless the city council finds that the council member recommending appointment has made a good faith effort to recommend a qualified person to fill a vacancy on such board or commission in compliance with this section for a period of three months but has been unable to recommend a compliant appointment. In complying with the requirements of this section, the city council shall utilize a fair and unbiased method of selecting the best qualified applicants. Where a city council member has more than one appointment to a particular board or commission, then both such appointments shall be gender balanced unless doing so would unbalance the board under state law.

(e) No person shall be appointed or reappointed to any board or commission where there is evidence satisfactory to the council that the person has engaged in any of the following behaviors during the term for which the person served or in the immediately preceding five-year period to any term for which the person is being considered for appointment:

(1) Failed to pay any local, state or federal tax or other similar financial obligation to such governmental entities when due and such amount continues unpaid, in whole or in part;

(2) Failed to abide by all federal, state, and local laws applicable to the appointment in any manner;

(3) Misrepresented or falsified any information or omitted material information on any communication with the city, including without limitation falsifying or deliberately misrepresenting or omitting material information regarding the person's professional qualifications, criminal history, degrees, or employment history when submitting the board and commission application;

(4) Falsified or deliberately misrepresented or omitted material information regarding any information submitted to the city, federal, state, or other governmental agencies.

(5) Failed to account properly for funds that were entrusted to the person or otherwise converted public property or funds to the personal use of the person.

(6) Engaged in any other unprofessional or unethical conduct.

(C85, § 2-48.01; O.11,385; C91, § 2-48.01; O.11,788, 13,909, 15,848)

Sec. 2-1047. Recommendation for appointments.

(a) All members of the city council shall participate in making recommendations for the appointments of persons to serve upon the various city administrative or advisory boards, committees, commissions, or agencies. Except as otherwise specifically provided by state statute or this Code, each councilmember shall recommend candidates for appointment to one position on all city administrative and advisory boards, committees, commissions and agencies with seven members. Except as otherwise specifically provided by state statute or this Code, each councilmember other than the mayor shall recommend candidates for appointment to two positions and the mayor shall recommend candidates for appointment to three positions on all city administrative and advisory boards, committees, commissions and agencies with 15 members.

(b) An alphabetical listing of all city administrative or advisory boards, committees, commissions and agencies shall be compiled and maintained by the city clerk. Such listing shall include the number of members comprising each administrative or advisory board, committee, commission or agency, the date each term of office expires, and the councilmember responsible for recommending a successor to such office.

(c) No later than 30 days before the end of each calendar year, the city clerk shall prepare, from the alphabetical listing of the administrative or advisory boards, committees, commissions and agencies compiled pursuant to subsection (b) of this section, a roster of all terms of office expiring within the next calendar year and the councilmember responsible for recommending a successor to such office. The city clerk shall provide, for each recommendation to be

made, any and all established qualifications to serve, the expressed interest, if eligible, of such person to be reappointed and whether there are applications by persons interested in serving in such capacity on file in the city clerk's office.

(d) The city council shall by resolution name the individual holding each office and the term of such office as of a date identified in such resolution, on the various city administrative and advisory boards, committees, commissions and agencies. Such resolution shall further identify the councilmember responsible for making a recommendation for the appointment of a successor to serve in such office upon the expiration of term, resignation or death of the current member. The term of office of any current member may be extended up to one year if necessary to provide for the even staggering of terms or to overcome prior errors in the calculation of terms which have caused the terms of any board, committee, commission or agency to become unbalanced. Such list shall henceforth form the basis for determining for each position, the identity of the person holding that position, when the term of the existing member expires, the qualifications of that office, and the councilmember responsible for recommending a successor to such office.

(e) Where the number of members on any city administrative or advisory board, committee, commission or agency is reduced, and unless otherwise provided by statute or this Code, the elimination of any office then occupied shall not take effect until the end of the term of the person then holding such office.
(C91, § 2-48.001; O.11,788, 11,823, 13,909)

Sec. 2-1048. Term of office; vacancies.

The term of office of all members of the city administrative and advisory boards, committees, commissions and agencies shall be as established in this Code or by statute. Except as otherwise specifically provided in this Code or by statute, each appointed member of an administrative or advisory board, committee, commission or agency shall hold over after expiration of the member's term of office until his or her successor is appointed and confirmed. If the death or other termination of service of any appointive member occurs prior to expiration of the member's term of office, his or her successor shall be appointed to serve for the unexpired portion of the term for which the member was appointed.
(C85, § 2-48.02; O.11,385; C91, § 2-48.02)

Sec. 2-1049. Residency requirements.

(a) For the purposes of this section, the term "residence" shall mean the actual domicile of a person where he or she normally eats and sleeps and maintains the normal personal and household effects necessary for day-to-day living. The term "residence" shall not include a place secured solely for the purpose of meeting the requirements of this section which is maintained in addition to the person's actual place of residence outside the city.

(b) Except as otherwise specifically provided in this Code or by statute, each appointed member of each city administrative or advisory board, committee, commission or agency shall maintain his or her residence in the city during the member's entire term of office.

(c) If any such member moves out of the city during the member's term of office, he or she shall automatically cease to be a member of the administrative or advisory board, committee, commission or agency, and his or her successor shall be appointed for the unexpired portion of the term. Any member of an administrative or advisory board, committee, commission or agency shall inform the city clerk as soon as he or she ceases to be a city resident.

(d) If it is determined by the city council that no qualified city resident is available for appointment to a particular administrative or advisory board, committee, commission or agency, the city council may waive the residency requirement established in this section.

(e) No action taken by any administrative or advisory agency shall be void because of the participation of a member removed under this section taken prior to notice to the city clerk as provided in this section.
(C85, § 2-48.03; O.11,385; C91, § 2-48.03)

Sec. 2-1050. Meeting and attendance requirements.

(a) Except as otherwise specifically provided, each administrative or advisory board, committee, commission or agency of the city shall establish a schedule of regular meetings of its membership, shall establish a procedure for calling such special meetings as are necessary to the performance of its assigned functions, and shall keep a record of attendance of its members at regular and special meetings. Each member of an administrative or advisory board, committee, commission or agency is expected to attend all regularly scheduled meetings. The number of absences by any member shall not exceed 25 percent of the number of regularly scheduled meetings in a calendar year, provided if 25 percent is a number less than four, no member shall miss more than four of the regularly scheduled meetings in a calendar year, without regard to the reasons for the absences. The cancellation of a regularly scheduled meeting shall not affect the number of allowed absences.

(b) Each administrative or advisory board, committee, commission or agency shall transmit to the city council a written report containing the name of each member who has not met the attendance requirements of this section within two weeks of the meeting at which any member fails to meet the requirements for attendance established by this section. The report of the administrative or advisory board, committee, commission or agency may recommend removal or retention of any member and state reasons for removal or retention of the member. Failure to meet the attendance requirements of this section is grounds for removal of a member of any administrative board, committee, commission or agency. The first and each subsequent failure to meet the attendance requirements of this section shall be reported to the city council. The city council shall act upon each report received to either retain or remove any member of an administrative or advisory board who has not met the attendance requirements of this section. The attendance requirements of this section shall not apply to the city council, civil service commission, board of library trustees, skywalk committee, landmark review board or the zoning board of adjustment. The attendance requirements of this section shall also not apply to alternate members appointed or approved by the city council to serve at any meeting in the absence of a regular member.

(c) Each administrative or advisory board, commission, committee or agency shall keep minutes of its proceedings, showing the vote of each member on each question or, if absent and failing to vote, indicating that fact and shall keep written records of its other official actions which shall within 30 days after each meeting be filed with the city clerk. The city clerk shall make such minutes available to each member of the city council upon request.

(d) Prior to January 15 of each year, the chair of each administrative or advisory board, committee and agency shall prepare and distribute to the members of such board, committee or agency a report identifying the members who served on that board, committee or agency in the preceding calendar year, the number of regularly scheduled and special meetings held in the preceding year during the term of each member's appointment, and the number of such meetings attended by each member. Each member shall be informed that the member may submit a letter of explanation regarding absences to the chair or the city clerk before January 31. The chair shall file the report and any letters of explanation received by the chair with the city clerk by February 1.

(C85, § 2-48.04; O.11,385; C91, § 2-48.04; O.13,024, 13,053, 13,273, 14,045, 14,147)

Sec. 2-1051. Quorum.

Except as otherwise specifically provided in this Code or by statute, a majority of the voting members of each city administrative board, committee, commission or agency shall constitute a quorum of that body.

(C85, § 2-48.05; O.11,385; C91, § 2-48.05)

Sec. 2-1052. Voting requirements.

Except as otherwise specifically provided in this Code or by statute, no vote of an administrative board, committee, commission or agency

shall be effective upon any matter coming before such administrative body unless a quorum is present.
(C85, § 2-48.06; O.11,385; C91, § 2-48.06)

Sec. 2-1053. Compensation.

Except as otherwise specifically provided in this Code or by statute, all members of any administrative board, committee, commission or agency shall serve without compensation, except that they may be reimbursed for necessary and actual expenses, including travel expenses, incurred in the performance of their duties, in accordance with standard reimbursement policies and procedures utilized by the city.
(C85, § 2-48.07; O.11,385; C91, § 2-48.07)

Sec. 2-1054. Conflict of interest.

(a) No member of any administrative or advisory board, committee, commission or agency shall vote or participate in the discussion before the body or any subcommittee of the body on any issue in which the member has a direct financial interest or an interest as defined in sections 2-713 and 94-3 and as described in this section. No member of any administrative or advisory board, committee, commission or agency shall participate in selection or in the award or administration of a contract if a conflict of interest, real or apparent, would be involved. Such a conflict would arise when any of the following persons has a financial or other interest in the firm or contractor selected for award:

(1) The board, committee, commission or agency member;

(2) Any member of his or her immediate family;

(3) His or her partner; or

(4) Any organization which employs or is about to employ any of the persons mentioned in subsections (a)(1) through (3) of this section.

(b) No board, committee, commission or agency member shall solicit or accept gratuities, favors, money, rebates or anything of monetary value from contractors, potential contractors or parties to subagreements.

(c) Except as otherwise specifically provided in this Code, no two members of any administrative or advisory board, committee, commission or agency shall be employees of the same person, firm, company, partnership or other employing entity. For purposes of this section the owner or proprietor of a firm, company or other employing entity and each partner in a partnership and the spouse of each owner or proprietor or partner shall be considered an employee of the firm, company, partnership or other employing entity. This subsection shall not disqualify any member of a board, committee, commission or agency serving upon the effective date of this section.

(d) Any member who violates this section may be subject to disciplinary action by the appointing authority, including removal from office.

(e) The conflict of interest provisions in sections 2-713 and 94-3 shall also apply to all members of any administrative or advisory board, committee, commission or agency.

(f) Exceptions under federal law. To the extent allowed by applicable federal law or regulation, the city council may permit exceptions to conflicts of interest under this section which do not constitute a violation of applicable provisions of state law. The grant of such exceptions shall be specifically conditioned upon approval by the appropriate federal agency.
(C85, § 2-48.08; O.11-385; C91, § 2-48.08; O.13,431; 13,555)

Sec. 2-1055. Rules and regulations.

(a) Except as otherwise provided by specific ordinances, each administrative or advisory board, commission, committee or agency shall have the power to make rules and regulations; however, all rules and regulations must be in writing, filed with the city clerk, and must be approved by resolution of the council before any rule or regulation takes effect. Advisory boards or committees shall not make any rules or regulations except as are needed for the orderly conduct of meetings or gathering of information.

(b) The board of adjustment created pursuant to I.C. § 414.1 et seq. and the civil service commission created pursuant to I.C. § 400.1 et seq. may make rules and regulations without approval of the city council.

(c) The board of water works trustees and the board of trustees of the public library may make rules and regulations without the approval of the city council.

(d) The rules of each administrative or advisory board, committee, commission or agency shall provide by rule for a mechanism for scheduling and calling meetings pursuant to section 2-1050, shall provide that meetings be open unless closed pursuant to I.C. § 21.5 to the public and shall designate a city employee to keep minutes as required by section 2-1050 and to be the custodian of all records.

(e) Any administrative board, committee, commission or agency which has or conducts adjudicative or quasiadjudicative functions shall adopt rules for the conducting of hearings and shall provide by rule for the rendering of all decisions, findings and recommendations in writing and for the preservation of all books, documents, papers and tangible evidence and all proceedings relating to all licenses, certificates, complaints, charges and other matters coming within its jurisdiction for a reasonable period of time, but such rules shall provide retention for at least five years. No documents shall be destroyed or otherwise disposed of unless a reasonable effort has been made to return the documents to the parties who appeared at the hearing and, further, provided no such document shall be destroyed or disposed of or returned without the permission of the city attorney or the city attorney's designee.
(C85, § 2-48.09; O.11,385, 11,549; C91, § 2-48.09)

Sec. 2-1056. Officers.

Except as otherwise provided by specific ordinance or statute, each administrative or advisory board, commission, committee or agency shall select a presiding officer and may provide for additional officers by rule.
(C85, § 2-48.10; O.11,385; C91, § 2-48.10)

Sec. 2-1057. Ex officio members.

Except as otherwise provided by specific ordinance, any city officer or employee who is a member of an administrative or advisory board, commission or agency by virtue of his or her office or employment shall have the same rights and duties as any other member, except such member shall not have the right to vote.
(C85, § 2-48.11; O.11,385; C91, § 2-48.11)

Sec. 2-1058. Expenditures.

Except as expressly allowed by state law or this Code, no board, agency, committee or commission may hire any person or expend any public funds without the prior express consent of the city council.
(C85, § 2-48.12; O.11,385; C91, § 2-48.12)

Sec. 2-1059. Term limits.

(a) Except as otherwise specifically provided, no person shall be approved or confirmed by the city council to serve a third or subsequent consecutive term on any city board, committee, commission or agency. However, an appointment to serve an unexpired term or a special initial term used to achieve staggered terms on a board, committee, commission or agency shall not be considered in applying this limitation if the unexpired term or special initial term is less than one-half the duration of a normal term on such board, committee, commission or agency. Further, terms commencing prior to June 30, 1994, shall not be considered in applying this limitation.

(b) No person serving on any city board, committee, commission or agency shall be approved or confirmed by the city council to serve on a second city board, committee, commission or agency to serve overlapping terms except to fill a position on the second board, committee, commission or agency which is required by this Code or the resolution establishing the second board, committee, commission or agency, to be filled by a member of the first board, committee, commission or agency. This shall not prevent a

person holding two such offices from being reappointed to a second consecutive term on the first board, committee, commission or agency.
(C91, § 2-48.13; O.13,053, 14,104)

Sec. 2-1060. Cultural competency training.

Each member of a city administrative or advisory board, committee, commission or agency shall complete cultural competency training established by the city manager prior to December 31, 2022. Each member of a city administrative board, committee, commission or agency appointed and confirmed to an initial term of office commencing after December 22, 2022, shall complete cultural competency training within six months from commencement of such term of office.
(O.16,082)

Secs. 2-1061—2-1085. Reserved.

DIVISION 2. CIVIL SERVICE COMMISSION

Sec. 2-1086. Established.

There is created the civil service commission, which shall consist of seven members. Members shall hold office for a term of four years and shall be appointed pursuant to the requirements of I.C. § 400.1 et seq.
(C91, § 2-376; O.11,731, 13,452, 13,595)

State law reference—Appointment of civil service commission, I.C. § 400.1.

Sec. 2-1087. Clerk.

The civil service commission shall appoint a city employee to serve as the clerk of the civil service commission. This section shall not grant civil service status or rights to the employee in the capacity of clerk of the commission.
(C91, § 2-377; O.11,829, 11,947, 13,452)

Sec. 2-1088. Rules and regulations.

The civil service commission shall promulgate rules and regulations for its conduct which shall be consistent with I.C. § 400.1 et seq.
(C91, § 2-378; O.13,452)

Sec. 2-1089. Meetings.

The civil service commission shall establish a schedule of regular meetings of its membership and shall establish a procedure for convening

such special meetings as are necessary to the performance of its assigned functions. Unless otherwise excluded, all meetings shall be subject to the state open meetings law.
(C91, § 2-379; O.13,452)

Secs. 2-1090—2-1113. Reserved.

DIVISION 3. GREATER DES MOINES SISTER CITIES COMMISSION*

Sec. 2-1114. Purpose.

The City of Des Moines hereby declares its support for and continued participation in the Sister Cities International Program for the following purposes:

(1) To allow residents and citizens of the Des Moines Metropolitan area and the people of similar cities in foreign nations to acquire a mutual understanding of one another as individuals, as members of their communities, as citizens of their countries and as members of the family of nations.

(2) To promote educational and cultural exchanges between institutions and citizens in the Des Moines Metropolitan area, and institutions and citizens of Des Moines' Sister Cities.

(3) To coordinate and facilitate communication between businesses in the Des Moines Metropolitan area wishing to make contact with businesses in the sister cities, and to coordinate business and trade inquiries from Des Moines Sister Cities directed to potential trading and business partners in the municipalities.

(4) To assist individuals and educational institutions in the Des Moines Metropolitan area in acquiring and exchanging professional and technical skills with individuals and institutions in sister cities.

(5) To develop an awareness of the International Sister Cities Program, its goals, missions, and accomplishments, and to create a bridge of understanding between different cultures of the world.

(O.15,288)

Sec. 2-1115. Reserved.

Sec. 2-1116. Created.

(a) There is created the greater Des Moines Sister Cities Commission, sometimes also known as the Metropolitan Des Moines Sister Cities Commission, which shall consist of 15 members appointed by the city council and one member appointed by the city council of each other city which has entered into an intergovernmental agreement which remains in effect with the City of Des Moines, to participate in the greater Des Moines Sister Cities Commission.

(b) For purposes of taking action on any matter before the commission, a quorum shall consist of a majority of the entire commission membership, each member having one vote on all matters coming before the commission.

(c) Except as provided below, all members of the commission shall be subject to the rules and regulations generally applicable to the members of city boards and commissions. The members of the commission appointed by the other participating cities are exempt from the following requirements under this Code:

(1) The residency requirements in section 2-1049 of this Code; and,

(2) The term limits in section 2-1059 of this Code.

(d) Except as provided below, the commission is subject to the rules and regulations generally applicable to city boards and commissions. The commission is exempt from the following requirements under this Code:

(1) The requirement in section 2-1055 that all rules and regulations adopted by a

*__Editor's note—__Ord. No. 15,288, § 1, adopted June 9, 2014, repealed the former Div. 3, §§ 2-1116—2-1118, and enacted a new Div. 3 as set out herein. The former Div. 3 pertained to sister cities commission and derived from Code 1962, § 2-355(a); Ord. No. 7143; Ord. No. 7436; Ord. No. 8307; Code 1975; Code 1979; Code 1985, § 2-355; Ord. No. 11,100; Ord. No. 11,385; Code 1991, § 2-355; Ord. No. 11,864.

commission be subject to approval by the city council. However any rules adopted by the commission shall be in writing and filed with the city clerk.

(O.15,288)

Sec. 2-1117. Appointment; officers.

(a) The members of the greater Des Moines Sister Cities Commission shall be appointed or reappointed and shall hold office for a maximum term of five years and until their successors shall be appointed and qualified. The members appointed by the City of Des Moines shall serve for a term of five years. If a vacancy occurs in the office of a commissioner, the new appointee shall serve for the balance of his or her predecessor's term. The office of a commissioner shall become vacant upon the adoption of a resolution declaring such vacancy by the governing body of the city responsible for appointing the successor to that office.

(b) The mayor shall be honorary chair of the commission. The chair, vice-chair, and all other elected positions within the commission shall be determined by majority of the commission membership. Those elected shall serve for terms set forth in such rules and regulations as the commission may adopt.

(c) The city manager shall designate a city employee to serve as secretary of the commission and to perform such other duties as may be assigned by the city manager to coordinate and expedite the work of the commission. The secretary shall not be entitled to a vote.

(O.15,288)

Sec. 2-1118. Powers and duties.

The powers and duties of the greater Des Moines Sister Cities Commission are to:

(1) Further the economic cooperation and cultural exchange on the basis of mutual friendship and amity between the cities in the greater Des Moines area and other cities of the world.

(2) Develop, compile, coordinate and exchange information with officials and citizens of the designated sister cities, and other cities and foreign visitors.

(3) Plan, develop and carry out mutual economic and cultural activities with officials and citizens of the designated sister cities, and other cities and foreign visitors.

(4) Encourage and cultivate mutual understanding of the respective economic problems and cultural development between the cities in the greater Des Moines area and other cities of the world.

(5) Recommend to the City Council of Des Moines and the other participating cities such cities of the world as, in the opinion of the commission, are appropriate, in view of the goals of the commission, for designation as sister cities.

(6) Prepare an annual budget for the commission for recommendation to the City Councils of Des Moines and the other participating cities.

(7) Make and enforce rules and regulations for the conduct of its business and affairs, and for the expenditure of funds available to the commission.

(8) To contract for the expenditure of funds for activities, supplies, travel, and events as necessary to promote the purposes of the commission as set forth herein, subject to a specific allocation of funding for such purpose, and subject to the total yearly budgetary allocations available to the commission from the municipalities.

(9) To contract for personnel on a part time or full time basis, subject to a specific allocation of funding for such purpose, and subject to the total yearly budgetary allocations available to the commission from the municipalities.

(10) To accept grants, gifts, and contributions from public bodies and private persons, firms, or corporations to assist the commission in the accomplishment of its goals.

(11) The commission shall not have the power to purchase or contract for the purchase of real estate, nor to bind the municipalities to any expenditure of funds beyond that which is contained in the then current operating budget of the commission.

(O.15,288)

Sec. 2-1119. Sister cities.

The city council may by resolution designate a foreign city as a sister city upon a finding that such other city bears a close resemblance to the City of Des Moines or the greater Des Moines area in demographics, economics and geography, or has close cultural ties to citizens of Des Moines.

(O.15,288)

Sec. 2-1120. Financing.

(a) The commission shall prepare a yearly operating budget based upon a fiscal year beginning July 1. The budget for the next succeeding fiscal year shall be adopted by the commission no later than December 1st and shall thereafter be presented to each of the municipalities for their review and approval prior to December 15th of each year. The commission shall request that each municipality provide in its operating budget for its share of the commission budget based upon the formula set forth herein, or in an amendment to the agreement between the participating municipalities.

(b) Each municipality's share of the commission's general operating budget, exclusive of travel expenses, shall be based on a per capita levy, using the last available Federal census for each municipality, (i.e., Population of municipality divided by total population of all participating municipalities.) In addition to the general operating budget, each municipality may allocate funds to be used specifically for travel purposes for its representative or representatives to the commission, or for elected and/or appointed representatives of the municipality who participate in commission activities. No municipality may utilize or borrow against travel funds provided by another municipality without approval of that municipality. The commission treasurer shall establish a separate travel account for each municipality. Any funds remaining in the travel account of a municipality at the end of any fiscal year shall be kept in trust for that municipality, available to be spent for such purpose in succeeding years.

(c) An official designated by the City Council of the City of Des Moines shall act as treasurer for the commission and, upon request from any municipality participatory to this agreement, the treasurer shall provide an accounting of all commission receipts and expenditures during the fiscal year, including travel funds.

(d) Each municipality's share of commission budget shall be due and payable to the treasurer in quarterly installments, no later than July 15, September 15, January 15, and April 15 of each fiscal year.

(e) Payment of its share of the yearly operating budget shall be a membership requirement of each municipality. Failure of a municipality to pay its share of the yearly operating budget in a timely manner shall be considered a delinquency for purposes of this agreement. During any period of delinquency by a municipality in the payment of its share of the operating budget, such municipality and all groups or organizations located in such municipality, shall not be entitled to the services of the commission or benefits of commission membership.

(O.15,288)

Secs. 2-1121—2-1145. Reserved.

DIVISION 4. ACCESS ADVISORY BOARD

Sec. 2-1146. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Major life activities means functions, such as but not limited to caring for one's self, performing manual tasks, walking, seeing, hearing, speaking, breathing, learning and working.

Mental impairment means any mental or psychological disorder, such as an intellectual disability, neurocognitive disorders, emotional or mental illness, and specific learning disabilities.

Person with disability means any person:

(1) Who has a physical or mental impairment which substantially limits one or more major life activities, has a record of such an impairment, or is regarded as having such an impairment; and

(2) Whose impairment, in reference to employment, is a disability within the meaning of section 62-1 of this Code.

Physical impairment means any physiological disorder or condition, cosmetic disfigurement, or anatomical loss affecting one or more of the following body systems: neurological, musculoskeletal, special sense organs, respiratory including speech organs, cardiovascular, reproductive, digestive, genitourinary, hemic and lymphatic, skin and endocrine.

Qualified person with a disability means any person with a disability who satisfies the requisite skill, experience, education and other job-related requirements of the employment position such person holds or desires and who, with or without reasonable accommodation, can perform the essential functions of such position.

Substantially limits means that the individual must be unable to perform or be significantly limited in the ability to perform an activity compared to an average person (or use "most people" instead of "average person") in the general population.
(C85, § 2-356; O.10,901; C91, § 2-356; O.13,325, 16,538)

Cross reference—Definitions generally, § 1-2.

Sec. 2-1147. Established.

The access advisory board is established to implement new and existing local, state and federal laws and applicable regulations to ensure that persons with disabilities are integrated, absorbed and mainstreamed wherever and whenever possible into every facet of city employment, programs and activities.
(C85, § 2-357; O.10,901, C91, § 2-357; O.11,994, 13,325)

Sec. 2-1148. Composition and term.

The access advisory board shall be composed of nine members, including three persons with a disability, one person who owns or is employed by businesses which primarily provide services to persons with disabilities, two architects, and three community representatives. Each member shall hold office for a term of four years.
(C85, § 2-358; O.10,901, 11,385; C91, § 2-358; O.13,325, 13,909, 16,401)

Sec. 2-1149. Powers and duties.

The access advisory board shall have the power and duty to:

(1) Familiarize and sensitize city staff and the general public to the access problems of persons with disabilities.

(2) Develop a collection of accessible planning information to be located with the designated ADA coordinator and made available to city staff and the general public.

(3) Survey city buildings, programs and services for potential accessibility issues and recommend to the city council proposed resolutions of these problems in accordance with the city's section 504 compliance program and the Americans with Disabilities Act.

(4) Review all proposed new architectural designs for city facilities and recommend appropriate revisions to such designs as needed to address accessibility requirements of the 504 program and the Americans with Disabilities Self-Evaluation Transition Plan.

(5) Review all city codes and recommend amendments where necessary to ensure handicapped access problems are adequately dealt with and that the

requirements of the 504 program and the Americans with Disabilities Act are met.

(6) Assist in resolution of any accessibility issues which arise in the recruitment, selection and placement of qualified persons with a disability in the city work force.

(7) Develop recommendations on the future role of the disability access program in the city.

(8) Serve as an advisor to other public or private entities on accessibility issues where it appears the board can make a positive contribution to resolution of such problems.

(C85, § 2-359; O.10,901; C91, § 2-359; O.13,325, 16,538)

Sec. 2-1150. Staff support.

Staff support for the access advisory board shall be provided by the city manager or his or her designee.

(C85, § 2-360; O.10,901; C91, § 2-360; O.11,994, 13,325, 14,069)

Secs. 2-1151—2-1175. Reserved.

DIVISION 5. YOUTH ADVISORY BOARD*

Sec. 2-1176. Created; composition; appointment.

(a) There is established in and for the city a youth advisory board comprised of at least 11 members and no more than 47 members. Each year, at its annual goal-setting meeting, the board may establish subcommittees and the specific role of each subcommittee based on issues effecting city youth.

(b) The youth advisory board shall consist of ⅔ youth members and ⅓ young adult members.

(1) The youth members must be 14 to 18 years old at the time of appointment.

(2) The young adult members must be 19 to 25 years old at the time of appointment.

(3) Every member must be a resident of the city or attend an educational institution located in the city.

(4) A completed application for appointment to become a board member is required and must be submitted to the city clerk. All initial members to the board shall be appointed and approved by the city council from the eligible applicants. All subsequent board members including term renewals, shall be appointed and approved by the city council from the eligible applicants recommended as candidates for appointment by the board.

(c) All members shall be appointed for a 12-month term commencing the first day in August. There shall be no limit on the number of terms that any person eligible for appointment may serve on the board.

(d) All board recommendations of candidates for appointment shall be approved at a board meeting. Best efforts shall be made to ensure board representation is reflective of city population demographics.

(e) Upon termination or resignation of any board member resulting in fewer than 11 members, the board shall recommend to the city council a candidate for appointment to serve the member's unexpired term.

(f) No person holding elective office in the municipal government shall be eligible for appointment to or service on the board.

(g) The board shall establish its annual goal-setting at its regular August meeting, unless the board approves that such action shall occur at a subsequent regular meeting.

(h) Staff support and budget recommendation for the youth advisory board shall be provided by the city manager or its designee to enable the board to carry out its duties.

(C85, § 2-365; O.11,385; C91, § 2-365; O.13,277, 14,232, 14,243, 14,466, 14,937, 16,098, 16,216)

*__Editor's note—__Ord. No. 14,232, § 1, adopted May 5, 2003, changed the title of div. 5 from "Youth Advisory Coordinating Board" to "Youth Advisory Board."

Sec. 2-1177. Powers and duties.

The youth advisory board shall have the following powers and duties:

(1) Oversee in a responsible manner all programs and events sponsored by the board.

(2) Create and share an annual report in August of each year to inform the public of board progress, and regularly share information on decisions, events, and efforts led by the board.

(3) Work with local agencies as needed and when deemed appropriate by the board to deliver services to youth and to advise youth of service providers.

(4) Coordinate with and advise the city's departments, boards, and commissions about issues concerning youth in the city.

(5) Advise and make recommendations to the city council and city departments. Within six months of receipt of the recommendations, the city council or its designee shall deliver a report to the youth advisory board on the plans and status for implementation of the recommendations by the city council or applicable city departments.

(C85, § 2-366; O.11,385; C91, § 2-366; O.14,232, 14,466, 16,098)

Secs. 2-1178—2-1189. Reserved.

DIVISION 6. RESERVED*

Secs. 2-1190—2-1230. Reserved.

ARTICLE VII. REQUESTS FOR REASONABLE ACCOMMODATION

Sec. 2-1231. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Person with a disability means a handicapped person as defined in the Fair Housing Act, 42 USC 3602.

(C91, § 2A-60; O.13,383)

Cross reference—Definitions generally, § 1-2.

Sec. 2-1232. Purpose and policy.

(a) The 1988 amendments to the federal Fair Housing Act (42 USC 3604(f)(3)(B)), the Iowa Civil Rights Act of 1965 (I.C. § 216.8A(3)(c)(2)), and section 62-102(c)(2) of this Code define illegal discrimination to include a refusal to make reasonable accommodations in rules, policies, practices or services, when such accommodations may be necessary to afford a person with a disability equal opportunity to use and enjoy a dwelling. The purpose of this article is to provide a fair and uniform procedure for receiving and responding to such requests for reasonable accommodation.

(b) This procedure shall not apply to requests for reasonable accommodation in the rules, policies, practices or services adopted or provided by the city in its capacity as a municipal housing agency. Any person seeking reasonable accommodation in any rules, policies, practices, or services adopted by the city in its capacity as a municipal housing agency shall make application to the director of housing services.

(c) The ultimate issue in deciding whether to grant, conditionally grant, or deny a request for reasonable accommodation under the 1988 amendments to the Fair Housing Act is whether the requested accommodation is a "reasonable accommodation . . . necessary to afford [a disabled] person equal opportunity to use and enjoy a dwelling." 42 USC 3604(f)(3)(B). The decision on the reasonableness of the accommodation requested and whether the accommodation is necessary to afford a person with a disability equal access to use and enjoy a dwelling shall be made only after consideration of the factors adopted by resolution of the city council for that

*__Editor's note—__Ord. No. 15,847, § 1, adopted Dec. 16, 2019, repealed Div. 6, §§ 2-1190—2-1192, which pertained to Des Moines Music Commission and derived from Ord. No. 14,465.

purpose. That decision shall be made in accordance with the procedures set forth in this article.
(C91, § 2A-55; O.13,383)

Editor's note—The city council adopted factors by Roll Call No. 96-3216 on September 16, 1996.

Sec. 2-1233. Application.

(a) A person seeking reasonable accommodation in rules, policies, practices or services of the city shall file an application with the development services department.

(b) If the application seeks an accommodation to permit property to be put to a use that would otherwise be prohibited by the chapter 134 of this Code pertaining to zoning, including a use which is prohibited at the proposed location by a separation requirement, the application shall be assigned to the board of adjustment for consideration and decision in accordance with the procedures identified in section 2-1235. All other applications shall be assigned to the administrative panel for consideration and decision in accordance with the procedures identified in section 2-1234.
(C91, § 2A-56; O.13,383, 15,928)

Sec. 2-1234. Consideration and decision by administrative panel.

(a) *Membership of administrative panel.* For the purposes of this article, the administrative panel shall be comprised of the development services director or the director's designee, the executive director of the human rights commission or the director's designee, and the deputy city manager or the deputy's designee, unless waived by the deputy city manager.

(b) *Notice.* Notice of an application assigned to the administrative panel shall be given to all abutting and diagonally opposite (front and rear) property owners if the application seeks an accommodation to permit new construction or exterior alterations to existing improvements that would otherwise be prohibited by chapter 134 of this Code. No notice need be given of any other application assigned to the administrative panel. If notice is required to be given, the development services department shall cause written notice to be mailed by ordinary mail within four business days of receipt of the application. The notice shall identify the name of the applicant and the rule, policy, practice or service of the city for which a waiver is requested. The notice shall contain a copy of the factors to be considered by the city in ruling upon any such application. The notice shall also state that the application has been assigned to an administrative panel for consideration and decision; that any person interested in the application may submit written comments to the development services department; and that any comments received within ten days of the notice will be considered by the administrative panel.

(c) *Consideration and determination by administrative panel.*

(1) The administrative panel shall investigate the facts and circumstances of the case; consult with the human rights commission and the staff members responsible for the administration and enforcement of the rule, policy, practice or service addressed by the application; and consider any comments and information received regarding the application.

(2) The administrative panel shall enter an order deciding the application within 30 days of the filing of the application, unless the applicant consents to an extension. The administrative panel may without the consent of the applicant extend the time within which a decision on the application must be made if the panel lacks sufficient information after diligent inquiry to permit a reasoned decision to be made within the time allowed. Written notice of such extension shall be provided to the applicant and shall identify any additional information needed before a decision on the application can be made and a schedule for reaching a decision.

(3) The order shall be in writing and shall specifically address how the facts and circumstances of the application apply to each of the factors identified by the city for consideration in deciding applications

for reasonable accommodation. The order may grant, conditionally grant or deny the application. An order granting an application may prescribe appropriate conditions and safeguards in conformity with the intent and purpose of this article and chapter 134 of this Code. The order shall be filed with the city clerk, and a copy shall be mailed to the applicant and to every party who submitted written comments on the application.

(d) *Appeal to board of adjustment.* The applicant or any other person with a specific, personal and legal interest in the subject matter of the decision that is injuriously affected by the decision may appeal the order by timely filing a notice of appeal with the development services department. The decision of the administrative panel shall be subject to appeal to the board of adjustment in accordance with the established procedures for considering appeals from the decisions of the zoning enforcement officer.
(C91, § 2A-57; O.13,383, 15,928)

Sec. 2-1235. Consideration and decision by board of adjustment.

(a) Except as modified in this section, the established procedures applicable to requests to the board of adjustment for exceptions to chapter 134 of this Code shall apply to applications for reasonable accommodation.

(b) The development services department in cooperation and consultation with the human rights commission shall investigate the facts and circumstances of the case; consult the staff members responsible for the administration and enforcement of the rule, policy, practice or service addressed by the application; consider any comments and information regarding the application received prior to the hearing before the board; and prepare a staff report and recommendation containing suggested findings of fact with regard to each of the factors and a recommended decision for consideration by the board at the public hearing.

(c) If the application is before the board upon appeal from a decision of the administrative panel, the findings and order of the administrative panel may serve as the staff report and recommendation.

(d) The board shall consider the staff report and recommendation, and any additional testimony and evidence presented by the applicant and other interested parties at the public hearing. The board shall then either:

(1) Adopt the findings in the staff report applying the facts and circumstances of the application to each of the factors identified by the city for consideration in deciding applications for reasonable accommodation; or

(2) Amend the findings in the staff report as necessary to conform to the evidence presented to the board, and adopt the findings as so amended. After such findings have been adopted, the board shall then determine, on the basis of such findings, whether to grant, conditionally grant, or deny the application. A decision of the board granting an application may prescribe appropriate conditions and safeguards in conformity with the intent and purpose of this article and chapter 134 of this Code.

(C91, § 2A-58; O.13,383, 15,928)

Sec. 2-1236. Application of order.

(a) Unless otherwise specifically provided in the order of the administrative panel or board of adjustment issued pursuant to this article, the benefit of an accommodation granted shall be limited to the applicant. If the dwelling is later converted to another use, the benefit of the accommodation shall lapse and the dwelling must be restored to compliance with the applicable rule, policy, practice or service previously waived by the accommodation.

(b) No application requesting the same relief may be filed within two years of the denial of an application, except for good cause shown.

(c) If a requirement imposed as a condition of granting an accommodation is violated, the zoning enforcement officer may initiate an application with the development services department to reconsider the accommodation. The application shall be considered in the same manner as an original application for accommodation, except that no action to amend or repeal a prior accom-

modation shall be taken unless it is first found that the requirement imposed as a condition of granting the accommodation is being violated and that such violation materially affects the basis for which the accommodation was originally granted.
(C91, § 2A-59; O.13,383, 15,928)

Sec. 2-1237. Confidentiality of medical records.

The city shall respect each individual's interest in the confidentiality of their medical condition and records which identify the nature and extent of the person's disability. The city's inquiry into such matters shall be limited to that necessary to establish that the application is for the benefit of a person with a disability, and that a reasonable accommodation is necessary to afford such person equal opportunity to use and enjoy a dwelling.
(C91, § 2A-60; O.13,383)

Secs. 2-1238—2-1250. Reserved.

ARTICLE VIII. GRIEVANCE PROCEDURE UNDER THE AMERICANS WITH DISABILITIES ACT

Sec. 2-1251. Purpose and policy.

(a) This grievance procedure is established to meet the requirements of the Americans with Disabilities Act of 1990. It may be used by anyone who wishes to file a complaint alleging discrimination on the basis of disability in the provision of services, activities, programs, or benefits by the City of Des Moines.

(b) This grievance procedure does not apply to employment related complaints of disability discrimination.

(c) Nothing in this procedure shall require an individual to follow this procedure before seeking redress which may be available pursuant to state and federal law.
(O.15,017)

Sec. 2-1252. Complaint.

A complaint may be submitted to the city's ADA Coordinator by filing a written notice, or by other accessible format upon request, by mail or in person at the Office of the City Clerk, City Hall, 400 Robert D. Ray Drive, Des Moines, Iowa 50309 or online at www.dmgov.org. The complaint shall include:

(1) The name, address, phone number and if available, the email address of the complainant; and

(2) The basic facts and circumstances of the alleged violation including the location, date and a brief statement of the problem.

(O.15,017)

Sec. 2-1253. Complaint timely.

A complaint shall be deemed timely if filed with the city no later than 60 calendar days after the alleged discriminatory violation.
(O.15,017)

Sec. 2-1254. Investigation.

(a) Within 15 days of the city's receipt of a complaint, the ADA Coordinator or his or her designee shall meet with the complainant to discuss the complaint and possible resolutions.

(b) Within 15 days of meeting with the complainant, the ADA Coordinator or his or her designee shall respond in writing or if appropriate, in an alternative accessible format, to the complainant to explain the position of the city including proposed corrective actions if deemed available.

(c) In the event the complainant is not satisfied with the response of the ADA Coordinator or his or designee, the complainant may file an appeal within 15 days of the date of the city's response to the complainant in the same manner as section 2-1252 of this Code.
(O.15,017)

Sec. 2-1255. Appeal.

(a) The city clerk shall forward such appeal to the city manager or his or her designee who within 15 days of the city's receipt of the appeal, shall meet with the complainant to discuss the complaint and possible resolutions.

(b) Within 15 days of that meeting, the city manager or his or her designee shall respond in writing or if appropriate, in an alternative accessible format, to the complainant with an explanation of the city's final resolution of the matter.
(O.15,017)

Sec. 2-1256. Records.

(a) All complaints and their responses received pursuant to this article shall be retained by the city clerk for at least three years from the latest date of the individual complaint.

(b) The City of Des Moines Access Advisory Board may be provided copies of all complaints and asked to advise on the resolution of a complaint consistent with their authority under section 2-1149 of this Code.
(O.15,017)

Chapter 3

ADMINISTRATIVE HEARING PROCESS

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ARTICLE I. IN GENERAL

Sec. 3-1. Statement of purpose.

This chapter is intended to establish fair, consistent and uniform procedures for the use of an administrative hearing officer to hear and determine appeals from decisions made by city employees, agents, or representatives in the performance of their official duties.
(O.15,127, 16,356)

Sec. 3-2. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Administrative hearing officer means the person or persons appointed by the city manager pursuant to section 3-3.

Appealable decision means a decision made by a city employee, agent, or representative in the performance of that person's official duties that is specifically allowed by this Code to be appealed to the administrative hearing officer in accordance with the procedures set forth in this chapter. A decision shall be considered to have been made on the date it is memorialized in writing, provided such written decision is promptly served upon the affected parties by personal service or by regular mail addressed to their business address or place of residence.

Appellant means one or more persons who have filed an appeal pursuant to this chapter.

Affected department means the city department which employs the city employee, agent, or representative who made the decision appealed from in an administrative appeal proceeding.

City clerk means the city clerk or the city clerk's designee.

Days after or *days before* when used in the computation of the time between a triggering event and some required action shall be calculated by not counting the day of the triggering event and by counting each day before or after the triggering event, as appropriate until and including the date the required action is taken.
(O.15,127, 16,356)

Sec. 3-3. Administrative hearing officer—Powers and duties.

(a) One or more administrative hearing officers shall be appointed by the city manager.

(b) An administrative hearing officer shall have all powers necessary to conduct fair and impartial hearings including, but not limited to, the power to:

(1) Conduct administrative hearings and issue decisions in conformance with this chapter.

(2) Administer oaths and affirmations.

(3) Hear testimony.

(4) Preserve and authenticate the record of the hearing and all exhibits and evidence introduced at the hearing.

(5) Regulate the course of the hearing in accordance with this chapter and other applicable law.

(6) Issue a final order which includes findings of fact and conclusions of law;

(7) To direct the refunding of appeal fees under the conditions set forth in section 3-24.

(c) Nothing in this chapter shall be construed to limit the authority of an administrative hearing officer while serving as the hearing officer in any proceeding brought under authority of other chapters of this Code, unless such proceeding is expressly subject to this chapter.
(O.15,127)

Sec. 3-4. Rules and regulations, available for public inspection.

The city attorney may promulgate rules for the conduct of administrative hearings consistent with this Code. However, all such rules must be in writing, filed with the city clerk, and approved by resolution of the council before they take effect. All such approved rules shall be available

to the public for inspection and copying during normal business hours in the office of the city clerk.
(O.15,127)

Secs. 3-5—3-10. Reserved.

ARTICLE II. ADMINISTRATIVE APPEALS

DIVISION 1. GENERALLY

Sec. 3-11. Scope.

This division shall apply to only those appeals from a decision made by a city employee, agent, or representative where the substantive provisions of this Code applicable to such decision specifically authorize an appeal pursuant to this chapter. This division does not alter the established procedures for appealing decisions made by city employees, agents, or representatives, except to the extent this code has been amended to specifically replace such established procedures with the procedures set forth in this chapter.
(O.15,127, 16,356)

Sec. 3-12. Abeyance during appeal.

An appeal stays all proceedings in furtherance of the decision appealed from, unless the director of the affected department certifies to the city clerk in a written statement that a stay would in the director's opinion, cause imminent peril to life or property for reasons set forth in the statement. In such case, such proceedings shall not be stayed. Notice that the proceedings in furtherance of the decision appealed from will not be stayed and will be pursued by the city shall be promptly given to the appellant by phone at the number provided in the notice of appeal, or by regular mail to the address provided in the notice of appeal.
(O.15,127)

Secs. 3-13—3-15. Reserved.

DIVISION 2. INITIATION AND SCHEDULING OF ADMINISTRATIVE APPEALS

Sec. 3-16. Initiating administrative appeal.

(a) No decision by a city employee, agent, or representative in the performance of their official duties shall be appealable to the administrative hearing officer in accordance with this chapter unless the right to an administrative appeal in conformance with this chapter is specifically granted by this Code.

(b) *Filing deadline.* When the right to an administrative appeal in conformance with this chapter is specifically granted by this Code from a decision made by a city employee, agent, or representative in the performance of their official duties, the appeal must be initiated by timely filing a written notice of appeal with the city clerk. Except as allowed in paragraphs c and d, the notice of appeal must be filed within ten business days after the date of the decision appealed from. Failure to timely file a written notice of appeal shall constitute a waiver of the right to appeal the decision.

(c) *Exceptions.* The notice of appeal from a decision made by a city employee, agent, or representative pursuant to the Code sections listed below shall be filed within the times allowed below.

(1) Section 18-59. Declaration that a dog is vicious.

Section 18-199. Declaration that an animal is an illegal animal.

Section 18-202. Declaration that an animal is a dangerous animal.

The declaration must be appealed by filing a written notice of appeal with the city clerk within three business days of service of the declaration.

(2) (Reserved).

(d) *Late filed notice.* For good cause shown to the reasonable satisfaction of the city clerk, a notice of appeal may be filed after the deadlines established in paragraphs b and c, above, provided

the notice of appeal is late filed within five business days after the appellant knew, or in the exercise of reasonable diligence should have known, of the issuance of the decision appealed from.

(e) *Date of filing.* The notice of appeal shall be considered filed when received by the office of the city clerk at city hall. However, a notice of appeal delivered by U.S. mail or overnight courier shall be considered to have been timely filed if the postmark date is within the time allowed to file the appeal.

(f) *Contents.* The notice of appeal shall contain the following information:

(1) The name and address of the appellant.

(2) Contact information for the appellant, including phone number, mailing address and, if available, an e-mail address to which all further notices may be served.

(3) The name, phone number and mailing address of any attorney or other person authorized to represent the appellant in the appeal proceedings and to receive the notice of the hearing.

(4) The nature of the decision appealed from, including the case or file number if available.

(5) The name and/or office of the person who made the decision, if known.

(g) *Filing fee.* A notice of appeal shall not be considered filed until the appellant has paid an application fee in the amount set in the schedule of fees adopted by the city council by resolution. The filing fee shall be subject to refund under the circumstances set forth in section 3-24.
(O.15,127, 16,356)

Sec. 3-17. Scheduling and notice of hearing.

(a) Upon receipt of a notice of appeal the city clerk shall promptly notify the affected department. The affected department shall be responsible for investigating the nature and merit of the appeal and shall promptly contact the city clerk to schedule a date and time for consideration of the appeal by an administrative hearing officer. The city clerk shall maintain the schedule of administrative hearings.

(b) *Timing of hearing.* A hearing shall be scheduled for consideration of the appeal by an administrative hearing officer as promptly as reasonably possible.

(c) *Service of notice of hearing.* Except as provided in paragraph d, the city clerk shall cause notice of hearing on an appeal to be served on the designated representative of the appellant, or on the appellant if no representative has been designated, in one of the following ways:

(1) By regular mail postmarked at least seven business days prior to the hearing and addressed to the address provided in the notice of appeal.

(2) By personal service at least five business days prior to the hearing.

(d) *Exceptions.* The notice of hearing on an appeal from a decision made by a city employee, agent, or representative pursuant to the Code sections listed below shall be served in the manner provided below:

(1) Section 18-59. Declaration that a dog is vicious.

Section 18-199. Seizure, impoundment and disposition of illegal animals.

Section 18-202. Seizure, impoundment and disposition of dangerous animals.

The notice shall be served by the chief humane officer on the designated representative of the appellant, or on the appellant if no representative has been designated, in one of the following ways at least 72 hours prior to the scheduled time of the hearing:

(i) By personal service.

(ii) By service upon any adult at the address provided in the notice of appeal, or by posting on those premises if no adult is present to accept service.

(iii) If service cannot be timely made pursuant to (i) or (ii) above within

the city boundaries, then by service upon any adult residing at the premises where the animal has been regularly kept or by posting on those premises if no adult is present to accept service, and by calling the telephone number provided for the designated representative of the appellant, or the appellant if no representative has been designated, and leaving a message with anyone who answers or any answering machine identifying the appeal, and the scheduled date, time and place of the hearing on the appeal.

(2) (Reserved).

(e) *Notice.* The notice of hearing shall identify the date, time and place of the hearing, and shall give notice that default judgment may be entered upholding the decision being appealed if the appellant fails to timely appear at the hearing, either in person or by an authorized representative.

(f) *Withdrawal of decision.* In the event the affected department elects to withdraw a decision which is the subject of a pending appeal, the affected department shall promptly notify the appellant and city clerk of the withdrawal of the decision. Upon receipt of such notice the city clerk shall refund the filing fee collected pursuant to section 3-16(g) through the normal procurement process.
(O.15,127, 16,356)

Sec. 3-18. Delay of hearing.

(a) Prior to the scheduled date of the hearing, the city clerk may grant a request by an appellant or the affected department to reschedule the hearing for good cause shown to the reasonable satisfaction of the city clerk.

(b) Any request to reschedule a hearing made on or after the scheduled date of the hearing shall be presented to the assigned administrative hearing officer for determination. The administrative hearing officer may:

(1) Grant request for good cause shown to the reasonable satisfaction of the administrative hearing officer;

(2) Deny the request for failure to assert good cause; or,

(3) Defer a decision on the request until it can be considered at a combined hearing where the request will be considered first, and if granted, will be followed by a hearing on the merits of the appeal.

(c) If such a request is granted or if a decision on such a request is deferred for consideration at a future hearing, the hearing shall be continued or rescheduled to a future date and time established for public hearings on the relevant type of appeals, in coordination with the city clerk and a representative of the affected department to assure the availability of appropriate city staff and resources at such hearing.

(d) Notice of the date and time of the hearing shall be served upon the appellant in the same manner as an original notice of hearing, unless the appellant or the appellant's representative is verbally provided with that information during the same conversation, meeting or hearing in which the request for continuance or rehearing was made or renewed by the appellant.
(O.15,127)

Secs. 3-19—3-20. Reserved.

DIVISION 3. ADMINISTRATIVE APPEAL HEARING

Sec. 3-21. Administrative hearings.

(a) Any administrative hearing proceeding shall afford the appellant an opportunity for a hearing before an administrative hearing officer.

(b) An attorney or other representative who appears on behalf of any person shall file a written appearance on a form to be provided by the city attorney for such purpose, unless such attorney or representative was identified in the notice of appeal.

(c) The administrative hearing officer may grant continuances only upon a finding of good cause shown.

(d) All testimony shall be given under oath or affirmation.

(e) The appellant or the appellant's representative, and a representative of the affected department shall have the right to question any witness.

(f) If at the time set for a hearing neither the appellant nor the appellant's representative of record appears, the administrative hearing officer may find the appellant in default and proceed with the hearing, accept evidence relevant to the appeal, and conclude with a final determination.

(g) The formal and technical rules of evidence shall not apply in the conduct of the hearing. Evidence, including hearsay, may be admitted only if it is of a type commonly relied upon by reasonably prudent persons in the conduct of their affairs.

(h) The record of all hearings before an administrative hearing officer shall include: (i) a record of the testimony presented at the hearing, which may be made by tape recording or other appropriate means; (ii) all documents presented at the hearing; (iii) a copy of the decision appealed from and of the notice of hearing; and (iv) a copy of the findings and decision of the administrative hearing officer.
(O.15,127)

Sec. 3-22. Burden of proof.

An appealable decision which has been memorialized in writing and signed by a city employee, agent, or representative shall be prima facie evidence of the correctness of the facts specified therein. Except as provided in section 3-23, no appealable decision shall be reversed or amended except upon proof by a preponderance of the evidence that such decision is contrary to the law or this code, or is unsupported by the facts.
(O.15,127, 16,356)

Sec. 3-23. Limitations on hearings.

The hearing on an appeal from a decision made by a city official pursuant to the Code sections listed below shall be subject to the following restrictions and limitations:

(1) *Section 114-485.15. Impoundment of a vehicle.* The sole issue before the administrative hearing officer shall be whether there was probable cause as defined in section 114-485.17 to impound the vehicle and personal property contained within the vehicle in question. The department causing the vehicle to be impounded shall carry the burden of establishing that there was probable cause to impound the vehicle in question. The administrative hearing officer shall decide only that either (i) there was probable cause to impound the vehicle and contents, or (ii) there was no probable cause to impound the vehicle and contents.

(O.15,127, 15,143, 16,381)

Sec. 3-24. Final determination.

(a) Upon conclusion of the hearing on an appeal brought pursuant to this chapter, the administrative hearing officer shall issue a final determination affirming, amending and affirming, or reversing the appealed decision. Except as limited in section 3-23, the administrative hearing officer shall have the authority to enter any order, determination or remedy that could have been entered by the city officer in the decision on appeal.

(b) If the appealed decision is reversed, the administrative hearing officer may order the refunding of the appeal fee collected pursuant to section 3-16(g). If the appealed decision is amended and affirmed, the administrative hearing officer may direct the refunding of a portion of the appeal fee proportionate to the appellant's success on the merits of the appeal.

(c) In the issuance of a final determination on any appeal, the administrative hearing officer shall inform the appellant of their right to seek judicial review of the final decision by a certiorari action filed with the district court of Polk County, Iowa, within 30 days of entry of the decision.

(d) Except as provided in paragraph (e), the final determination of the administrative hearing officer shall be promptly served on the designated representative of the appellant, or on the appellant if no representative has been designated, in one of the following ways:

(1) By regular mail addressed to the address provided in the notice of appeal.

(2) By service upon any adult at the address provided in the notice of appeal, or by posting on those premises if no adult is present to accept service.

(3) By personal service.

(e) *Exceptions.* The final determination of the administrative hearing officer in an appeal from a decision made by a city official pursuant to the Code sections listed below shall be served in the manner provided below:

(1) Section 18-59. Declaration that a dog is vicious.

Section 18-199. Seizure, impoundment and disposition of illegal animals.

Section 18-202. Seizure, impoundment and disposition of dangerous animals.

The final determination shall be served by the chief humane officer on the appellant or the designated representative, in the same manner as required for service of the notice of hearing.

(2) (Reserved).
(O.15,127)

Sec. 3-25. Appeal of final determination.

(a) Any party aggrieved by a final determination made by an administrative hearing officer pursuant to this article may challenge whether the officer exceeded proper jurisdiction or otherwise acted illegally by commencing a certiorari action in the district court for Polk County, Iowa. The petition to initiate a certiorari action must be filed within 30 days after the entry of the final determination unless an extension of time is allowed by the reviewing court pursuant to Division XIV of the Iowa Rules of Civil Procedure. The city manager is hereby authorized to initiate a certiorari action on behalf of the city when the city manager, in consultation with the city attorney, deems it necessary and appropriate.

(b) The filing of an action in the district court challenging the final determination of the administrative hearing officer does not automatically stop the city from taking action pursuant to such final determination. Unless the city has been served with an order from the district court directing otherwise, the city may proceed with enforcement of an final determination.
(O.15,127)

DIVISION 4. DES MOINES DEBT SETOFF PROGRAM*

Sec. 3-26. Statement of purpose.

This division provides procedures to follow in the event that the city seeks to collect debts owed to the city by placement of such debts in the state program established by state law and subject to a Memorandum of Understanding between the Iowa Department of Revenue and the city to offset debts owed to the city against debts owed by the state to the debtor.
(O.15,446, 15,594, 16,356)

Sec. 3-27. Notice of intent to place debt; informal opportunity to challenge placement of debt.

(a) A department director or their designee shall make a good faith effort to collect a debt. If such effort to collect is not successful, notice shall be provided to the debtor by regular mail that the debt will be placed in the setoff program and that the debtor shall have an informal opportunity to challenge such placement by filing the challenge with the finance director within ten days of the date of notice.

(b) If a challenge to the placement of the debt in the setoff program is timely filed, the finance director or their designee(s) shall notify the debtor of the date and time that it will conduct an informal hearing on such challenge. At such informal hearing the debtor shall be provided with an opportunity to present their challenge either in person or by electronic means. After the informal hearing, a determination on the challenge shall be delivered to the debtor by regular mail.
(O.15,446, 15,594, 16,356)

*__Editor's note—__Ord. No. 16,356, adopted April 15, 2024, amended the title of Div. 4 to read as herein set out. Formerly, said division was titled "Des Moines Debt Offset Program."

Sec. 3-28. Placement of debt and notification of setoff.

After notification and completion of any informal challenge to placement, the finance director or their designee shall submit the debt to the department of revenue pursuant to the department of revenue's requirements.
(O.15,446, 15,594, 16,356)

Sec. 3-29. Reserved.

Editor's note—Ord. No. 16,356, § 1, adopted April 15, 2024, repealed § 3-29, which pertained to appeal of offset and derived from Ord. No. 15,446; Ord. No. 15,594.

Sec. 3-30. Reserved.

ARTICLE III. ADMINISTRATIVE ADJUDICATIONS

Secs. 3-31—3-55. Reserved.

Chapters 4, 5

RESERVED

Chapter 6

ADVERTISING*

Sec. 6-1. Distribution of circulars.
Sec. 6-2. Posting advertising.
Sec. 6-3. Use of city name in advertising.
Sec. 6-4. Defacing notices or ordinances posted by city.
Sec. 6-5. Defacing private property.
Sec. 6-6. Advertisements near schools or churches.

*__Cross references—__Signs and billboards, § 26-176 et seq.; businesses, ch. 30; littering from throwing or distributing handbills, § 42-396; littering from placing handbills on vehicles, § 42-398.

Sec. 6-1. Distribution of circulars.

It shall be unlawful for any person to throw or cause to be thrown or scattered any kind of paper, circular, cards, dodger, handbill or advertising matter of any kind upon the public highways, streets, avenues, boulevards, alleys and public passageways, public parks or public buildings within the corporate limits, except as allowed under article VII of chapter 42 and article II of chapter 98 of this Code.
(C42, § 110-1; C54, C62, § 3-1; O.8509; C75, C79, C91, § 3-1)

Sec. 6-2. Posting advertising.

No person shall exhibit or advertise any kind of business, entertainment, meeting or other matter by posting, pasting, gluing or affixing in any manner any paper, card, handbill, picture, engraving, lithograph, placard, showbill or advertising of any kind or description, except legal notices required by law to be posted, or information for passengers or prospective passengers of a common carrier of passengers upon any lamppost, electric light pole, telegraph pole, or telephone pole or upon any tree, voting booth, curbing, sidewalk, monument, bridge, post or fence or upon any building or structure other than a lawful billboard within the corporate limits.
(C42, § 110-2; C54, C62, C75, C79, C91, § 3-3)

Sec. 6-3. Use of city name in advertising.

No person shall use the name of the city or any of its departments in or for any advertising scheme or plan where money is to be charged and received for such advertising, except upon the authority of the city council by resolution duly passed and containing all of the details of such advertising scheme or plan.
(C42, § 110-3; C54, C62, C75, C79, C91, § 3-4)

Sec. 6-4. Defacing notices or ordinances posted by city.

No person shall deface or tear down any advertisement, notice or ordinance posted by order of the city council or any city officer.
(C42, § 110-4; C54, C62, C75, C79, C91, § 3-5)

Sec. 6-5. Defacing private property.

No person shall deface any private or public dwelling house, building, storeroom, barn, shed or fence by posting, pasting, tacking, sticking or nailing thereto any advertising bill, poster or any other written or printed matter or any writing thereon or in any manner defacing such without first having obtained the written consent of the owner or agent of such property. This section shall not apply to such legal notices as are provided for by law.
(C42, § 109-3; C54, C62, C75, C79, C91, § 3-6)

Sec. 6-6. Advertisements near schools or churches.

No person shall display, distribute, post, paint or maintain any bills, pictures, posters, placards, or any matter used to advertise the sale or depict the use of tobacco or alcoholic beverages, including but not limited to liquor, wine, beer or spirits, as defined in I.C. ch. 123, within 400 feet of the principal entrance to any church, established place of worship or public, private or parochial school attended by persons of less than 21 years of age, in such manner that the message or depiction thereon or therein contained would be visible to a person of normal vision upon entering or leaving such a church, place or school by use of the principal entrance thereto.
(C62, § 3-7; O.7291; C75, C79, C91, § 3-7)

Chapters 7—9

RESERVED

Chapter 10

ALCOHOLIC BEVERAGES*

Article I. In General

Sec. 10-1. Definitions.
Sec. 10-2. Purpose.
Sec. 10-3. Outdoor service.
Sec. 10-4. Duration of outdoor service/fencing and location.
Sec. 10-5. Conduct of outdoor service.
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Sec. 10-11. Reserved.
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Article II. Licenses and Permits

Sec. 10-41. Required.
Sec. 10-42. Eligibility.
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Sec. 10-57. Expiration.
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Sec. 10-59. Refunds.
Sec. 10-60. Transfers.
Sec. 10-61. Causes for suspension, revocation, and civil penalty.
Sec. 10-62. Effect of revocation.
Sec. 10-63. Appeal and hearings.

***Cross references—**Businesses, ch. 30; public consumption of alcohol, § 70-123; consumption of alcohol or intoxication in parks and recreation facilities, § 74-92.

State law reference—Alcoholic Beverage Control Act, I.C. § 123.1 et seq.

ARTICLE I. IN GENERAL

Sec. 10-1. Definitions.

Where words and phrases used in this chapter are defined by state law, such definitions shall apply to their use in this chapter and are adopted by reference. Those definitions so adopted that need further definition or that are reiterated and the following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Club means any nonprofit corporation or association of individuals, which is the owner, lessee, or occupant of a permanent building or part thereof, membership in which entails the prepayment of regular dues and which is not operated for a profit other than such profits as would accrue to the entire membership.

Commercial establishment means a place of business which is at all times equipped with sufficient tables and seats to accommodate 25 persons at one time, and the licensed premises of which conform to this Code and other city ordinances.

Designated security employee means an agent, contract employee, independent contractor, servant, or employee of a licensee or permittee who works in a security position in any capacity at a commercial establishment licensed or permitted under this chapter.

Grocery store means any retail establishment, the business of which consists of the sale of food, food products, or beverages for consumption off the premises.

Hotel or *motel* means a premises licensed by the state department of inspections and appeals and regularly or seasonally kept open in a bona fide manner for the lodging of transient guests, and with 20 or more sleeping rooms.

Legal age means 21 years of age or older and as designated by the Alcoholic Beverage Control Act.

Person of good moral character means any person who meets all of the following requirements:

(1) The person has such adequate financial standing and good reputation as will satisfy the city council and the administrator of the alcoholic beverages division of the state's department of commerce that he or she will comply with the state Alcoholic Beverage Control Act and all other laws, ordinances, and regulations applicable to his or her operations under state law. For purposes of this section, "adequate financial standing" may include, but is not limited to, applicant provision of verified source(s) of financial support and adequate operating capital for the applicant's proposed establishment, a record of prompt payment of local or state taxes or assessments due, a record of prompt payment to the local authority of fees or charges made by a local authority for municipal utilities or other municipal services incurred in conjunction with the proposed establishment, and a record of prompt payment or satisfaction of administrative penalties imposed pursuant to Iowa Code chapter 123. For purposes of this section, "good reputation" may include such factors as, but is not limited to, the following: pattern or practice of sales of alcoholic beverages to persons under legal age for which the licensee or permittee, or the agents or employees of either, have pled or have been found guilty, pattern and practice by the licensee or permittee, or the agents or employees of either, of violating alcoholic beverages laws and regulations for which corrective action has been taken since the previous license or permit was issued, sales to intoxicated persons, licensee or permittee convictions for violations of laws relating to operating a motor vehicle while under the influence of drugs or alcohol, the recency of convictions under laws relating to operating a motor vehicle while under the influence of drugs or alcohol, licensee or permittee misdemeanor convictions, the recency of the misdemeanor convictions.

(2) The person is not prohibited by section 10-62 of this chapter from obtaining a liquor control license, or a wine or beer permit.

(3) The person is a citizen of the United States and a resident of this state or is licensed to do business in this state as a corporation. For a partnership, only one partner must be a resident of this state.

(4) The person has not been convicted of a felony. However, if the conviction of a felony occurred more than five years before the application for a license or permit and if such person's rights of citizenship have been restored by the governor, the city council may determine that such person is a person of good moral character notwithstanding such conviction.

(5) If such person is a corporation, partnership, association, club, or hotel or motel the requirements of this definition shall apply to each of the officers, directors, and partners of such person and to any person who directly or indirectly owns or controls ten percent or more of any class of stock of such person or has an interest of ten percent or more in the ownership or profits of such person. For the purpose of this subsection, an individual and the individual's spouse shall be regarded as one person.

Pharmacy means a drugstore in which drugs and medicines are exposed for sale and sold at retail or in which prescriptions of licensed physicians and surgeons, dentists or veterinarians are compounded and sold by a registered pharmacist.

Restaurant means any establishment at which the primary business is to sell food for consumption on the premises, generally to persons seated within an enclosed building which includes kitchen facilities for the preparation and service of that food.

State department means the state department of commerce, alcoholic beverages division, established by the state Alcoholic Beverage Control Act, or any subdivision of such department.
(C62, § 9-2; O.8280, 8350, 8372, 8641; C75, § 5-2; O.9589; C79, C85, § 5-2; O.10,928, 11,051, 11,233, 11,254, 11,537; C91, § 5-2; O.13,895, 15,080)
Cross reference—Definitions generally, § 1-2.
State law reference—Similar provisions, I.C. § 123.3.

Sec. 10-2. Purpose.

The purpose of this chapter is to provide administration of licenses and permits and for local regulations and procedures for the conduct of the sale and consumption of beer, wine and liquor, for the protection of the safety, morals, and general welfare of this community.
(C62, § 9-1; O.8280; C75, C79, C85, § 5-1; O.10,928; C91, § 5-1)

Sec. 10-3. Outdoor service.

(a) Any person who is a licensee or permittee pursuant to this chapter may serve the type of alcoholic liquor, beer or wine permitted by the license or permit in an outdoor area only after complying with the following conditions:

(1) The outdoor area shall be enclosed by a permanent retainer, which clearly encloses the outdoor area adjacent to the licensed establishment, as follows:

a. The retainer must measure a minimum of 36 inches in height from finish floor surface or grade to the top of the retainer;

b. A permanent retainer shall consist of a top rail with lower intermediate rails spaced so that a 12-inch sphere cannot pass through, or a fence consisting of a top rail with permanent fencing material, both of which shall be supported by columns or posts spaced no more than ten feet on center;

c. Snow fence, field fence or plastic fence shall not be deemed permanent retainer material for purposes of this section;

d. Notwithstanding subsections (a)(1)a through (1)c of this section, densely planted shrubbery may be considered equivalent to the intermediate rails or fencing, subject to approval of the building official;

(2) Exits shall be provided in accordance with the building code;

(3) A diagram which illustrates the outdoor area, including how it will be enclosed, shall be submitted to the city clerk;

(4) An application from the licensee or permittee which indicates what dates the outdoor area will be used shall be submitted to the city clerk at least 30 days prior to the proposed first date for outdoor service;

(5) An endorsement from the insurance company acknowledging that the outdoor area is covered by the dram shop insurance policy shall be submitted to the city clerk; and,

(6) If the outdoor service area is located upon land leased from the city, the outdoor service area shall conform with the Design Standards for Sidewalk Cafes adopted by resolution of the city council.

(b) Upon completion and approval of fire and building inspections, the city clerk shall forward the appropriate information to the city council which may approve the outdoor service area and authorize the city clerk to forward the information to the state alcoholic beverages division.
(O.14,574)

Editor's note—Ord. No. 14,574, § 1, adopted July 10, 2006, repealed the former § 10-3, and enacted a new § 10-3 as set out herein. The former § 10-3 pertained to similar subject matter and derived from Code 1991, § 5-20.01; Ord. No. 11,842; Ord. No. 13,011.

Sec. 10-4. Duration of outdoor service/fencing and location.

(a) A permanent outdoor service license or permit shall expire on the date of expiration of the alcoholic liquor license or beer or wine permit for which the outdoor service license or permit applies.

(b) A temporary outdoor service license or permit may be issued once per calendar year for a period not to exceed five consecutive days. Snow fence, field fence or plastic fence supported by columns or posts spaced no more than eight feet on center may be an acceptable retainer for temporary outdoor service subject to the approval of the building official.

(c) A special event outdoor service license or permit may be issued when the outdoor service is in conjunction with and sanctioned by the sponsors of a community event, fair, or festival and shall authorize outdoor service for a period not to exceed five consecutive days.

(1) Retainer material listed in subsection (b) above shall apply.

(2) If the proposed special event requires use of a street, a street use permit will be required and the street use team will determine whether the event qualifies as a "special event".

(d) A temporary or special event outdoor service license or permit shall not be issued without the prior written approval of the street use permit applicant for a location within the perimeter of a street closure, or within the perimeter of the event, when a street use permit application is on file with the city clerk or when a street use permit has been issued.
(C91, § 5-20.02; O.11,842, 13,011, 13,732, 14,745)

Sec. 10-5. Conduct of outdoor service.

No person or club holding an outdoor service license or permit nor his or her agents or employees shall do any of the following:

(1) Operate an outdoor service area without at least one agent or employee being present in the area at all times.

(2) Except in a DX1, DX2 or DXR zoned area, operate an outdoor service area between the hours of 11:00 p.m. and 9:00 a.m.

(3) In a DX1, DX2 or DXR zoned area, operate an outdoor service area between the hours of 11:00 p.m. and 9:00 a.m.,

Sunday through Thursday, and between the hours of 12:30 a.m. and 9:00 a.m. on Friday and Saturday.

(4) Allow or use amplified sound when the outdoor area is within 50 feet of a real property boundary used for residential purposes.

(5) Fail to comply with the applicable sections of chapter 42 and article II of chapter 98 of this Code.

(6) Fail to comply with the lighting provisions as established in chapter 135 of this Code.

(7) Reduce the required number of parking spaces on the site.

(C91, § 5-20.03; O.11,842, 15,819)

Sec. 10-6. Prohibited sales and acts.

(a) No person or club holding a liquor control license or a wine or beer permit nor his or her agents or employees shall do any of the following:

(1) Sell, dispense, or give to any intoxicated person, or one simulating intoxication, any alcoholic liquor, wine, or beer.

(2) Knowingly permit any gambling, except in accordance with I.C. chs. 99B, 99D, 99E, or 99F, or knowingly permit solicitation for immoral purposes, or immoral or disorderly conduct on the premises covered by the license or permit.

(3) Sell or dispense any alcoholic liquor, wine, or beer on the premises covered by the license or permit, or permit the consumption thereon between the hours of 2:00 a.m. and 6:00 a.m. Monday through Saturday and between the hours of 2:00 a.m. on Sunday and 6:00 a.m. on the following Monday; however, a holder of a liquor control license or retail beer permit granted the privilege of selling alcoholic liquor, wine, or beer on Sunday may sell or dispense alcoholic liquor, wine or beer between the hours of 8:00 a.m. on Sunday and 2:00 a.m. on the following Monday.

(4) Sell alcoholic liquor, wine, or beer to any person on credit, except with a bona fide credit card. This subsection shall not apply to sales by a club to its members nor to sales by a hotel or motel to bona fide registered guests.

(5) Keep on premises covered by a liquor control license any alcoholic liquor in any container except the original package purchased from the alcoholic beverages division of the state department of commerce, and except mixed drinks or cocktails mixed on the premises for immediate consumption. This prohibition does not apply to common carriers holding a class D liquor control license.

(6) Reuse for packaging alcoholic liquor or wine any container or receptacle used originally for packaging alcoholic liquor or wine; or adulterate, by the addition of any substance, the contents or remaining contents of an original package of an alcoholic liquor or wine; or knowingly possess any original package which has been so reused or adulterated.

(7) Employ any person under the age of 18 years old in the sale or serving of alcoholic liquor, wine or beer for consumption on the premises where sold.

(8) Allow any person other than the licensee, permittee, or employees of the licensee or permittee to use or keep on the licensed premises any alcoholic liquor in any bottle or other container which is designed for the transporting of such beverages, except as permitted in I.C. § 123.95. This subsection does not apply to the lodging quarters of a class B liquor control licensee or wine or beer permittee, or to common carriers holding a class D liquor control license.

(9) Sell, give, or otherwise supply any alcoholic beverage, wine, or beer to any person, knowing or failing to exercise reasonable care to ascertain whether the person is under legal age, or permit any person, knowing or failing to exercise

reasonable care to ascertain whether the person is under legal age, to consume any alcoholic beverage, wine, or beer.

(10) In the case of a retail beer permittee or wine permittee, knowingly allow the mixing or adding of alcohol or any alcoholic

beverage to beer, wine, or any other beverage in or about the permittee's place of business.

(11) Keep or allow to be kept gambling devices of any kind or description on the premises or place of business of the license or permit holder contrary to state law.

(12) Engage in, perform, act or cause, permit, procure, counsel or assist any other person who is acting as a waiter, waitress, host, hostess, dancer, or entertainer on the licensed premises to:

a. Expose his or her genitals, pubic hair, buttocks, perineum, anus region, or pubic hair region;

b. Expose or wear any device, costume or covering which gives the appearance of or simulates the genitals, pubic hair, buttocks, perineum, anus region, or pubic hair region; or

c. Expose any portion of the female breast at or below the nipple thereof.

For purposes of this subsection a person shall be deemed a waiter, waitress, host, hostess, dancer, or entertainer if such person acts in that capacity without regard to whether such person is paid any compensation by the liquor control licensee, wine or beer permittee, his or her agent or employee.

(13) Knowingly permit solicitation on the licensed premises for purposes of prostitution.

(14) Knowingly permit or engage in any criminal activity on the premises covered by the license or permit.

(15) No licensee shall have or maintain any interior access to residential or sleeping quarters unless permission is granted by the administrator of the alcoholic beverages division of the state's department of commerce in the form of a living quarters permit.

(16) No signs or advertisements advertising beer, wine or liquor or relating to the sale thereof shall be lighted within or on the premises where beer, wine or liquor is sold when such premises are not legally open for the sale of beer, wine or liquor.

(17) No loud or boisterous language shall be permitted in any place where beer, wine or liquor is sold, and such place shall be conducted in a quiet and orderly manner.

(b) A person under legal age shall not misrepresent the person's age for the purpose of purchasing or attempting to purchase any alcoholic beverage, wine, or beer from any licensee or permittee. If any person under legal age misrepresents the person's age, and the licensee or permittee establishes that the licensee or permittee made reasonable inquiry to determine whether the prospective purchaser was over legal age, the licensee or permittee is not guilty of selling alcoholic liquor, wine, or beer to a person under legal age.

(c) No privilege of selling alcoholic liquor, wine, or beer on Sunday, as provided in I.C. §§ 123.36(6) and 123.134(5), shall be granted to a club or other organization which places restrictions on admission or membership in the club or organization on the basis of sex, race, religion, or national origin. However, the privilege may be granted to a club or organization which places restrictions on membership on the basis of sex, if the club or organization has an auxiliary organization open to persons of the other sex.
(C62, § 9-20; O.8280, 8372, 8641, 8658, 8942; C75, § 5-21; O.9589; C79, C85, § 5-21; O.10,928, 11,537; C91, § 5-21; O.12,004, 12,073, 13,309, 13,448, 14,100)

Sec. 10-7. Brand signs prohibited.

No signs or other matter advertising any brand of alcoholic liquor, beer, or wine shall be erected or placed upon the outside of any premises occupied by a licensee or permittee authorized to sell alcoholic liquor, beer, or wine at retail. This section does not prohibit the use of signs or other matter inside a fence or similar enclosure which wholly or partially surrounds the licensed premises.
(C62, § 9-21; O.8280; C75, C79, C85, § 5-22; O.11,537; C91, § 5-22)

State law reference—Similar provisions, I.C. § 123.51.

Sec. 10-8. Persons under legal age in licensed or permitted establishments.

No person or club holding a liquor control license, wine or beer permit, which authorizes on the premises consumption, nor his or her agents or employees shall:

(1) Allow a person under legal age to enter or remain in the licensed or permitted establishment after 9:00 p.m. unless:

a. The licensee or permittee applies for and qualifies for an exception certificate from the chief of police as follows:

1. A licensee or permittee whose primary business purpose is not the sale of alcoholic beverages, wine or beer may qualify for an exception upon submission of a verified statement from a certified public accountant or an accountant which establishes that more than 50 percent of the licensee's or permittee's gross sales are from the sale of goods or services other than for the sale of alcoholic beverages, wine or beer which shall not include income from cover charges, entertainment fees, drink mixes or nonalcoholic beverages;

2. In addition to the statement mentioned in subsection (1)a.1 of this section, proof of qualification may include state and federal tax records for the previous year, articles of incorporation, and receipts from specific vendors which itemize goods purchased related to the applicant's primary business purpose from the previous six months as requested by the chief of police;

3. The chief of police may issue an exception certificate if the licensee or permittee has satisfied the requirements in this subsection;

4. An exception certificate shall be effective for the duration of the alcoholic liquor control license, wine or beer permit; or

b. The licensee or permittee applies for a special event exception from the chief of police, which shall allow the holder to provide entertainment to persons under legal age, as follows:

1. A licensee or permittee may qualify for a special event exception when an application is submitted to the chief of police or his or her designee at least seven business days prior to the proposed special event. Such application shall include the name and address of the licensed or permitted establishment, the type of event for which an exception is applied, the proposed date for the event and the time of the event;

2. All alcoholic liquor, wine or beer is removed or stored so that it is not available for sale or consumption during the period of the special event;

3. A special event exception shall be valid through the date of the special event or for the duration of the alcoholic liquor control license, wine or beer permit, whichever is first in time;

4. Failure to comply with the terms of this special event exception shall result in the revocation or denial of such an exception application for one year; or

c. For special events not exceeding five days in duration where a street closure has been authorized by the

city council and a temporary liquor control license has been issued, the chief of police may issue a special exception for the event, such exception to be limited to outdoor areas covered by the temporary liquor control license. The chief's discretion may include but is not limited to past experience with policing the same event, staffing, and any special difficulties in policing the proposed event.

d. The licensee or permittee posts a current exception certificate at the main entrance in the view of patrons of the licensed or permitted establishment.

e. The licensee or permittee applies for and qualifies for an exception certificate from the chief of police as follows:

1. The licensee or permittee is a designated venue defined as booking at least 100 live performances per year, with a dedicated and installed stage, public address system and lighting system;

2. Minors aged 16 through 20 years are allowed in the designated venue until 11:30 p.m. Minors under 16 years may not remain in the designated venue past 9:00 p.m.;

3. The designated venue shall demand photo identification at the door and shall identify, by use of wristband or other equally effective means, those persons 21 years of age and older who may legally purchase alcoholic beverages;

4. The designated venue shall be responsible for the security of the venue and any other areas such as parking lots under its ownership or control;

5. The designated venue shall make its best effort to provide the police department vice unit with a schedule of events at least 30 days in advance. When an event is booked after submission of the monthly schedule, the venue shall notify the vice unit by telephone, fax or electronic mail at least ten days before the event, in which case the event shall be submitted as part of the next monthly schedule;

6. The designated venue must demonstrate to the police department vice unit that at least 50 percent of its gross receipts are derived from items other than alcohol sales, which may include, but are not limited to, income from cover charges, ticket sales, entertainment fees, articles of apparel, food, drink mixes or non-alcoholic beverages;

7. The chief of police may issue an exception certificate if the licensee or permittee seeking an exception as a designated venue has satisfied the requirements of this subsection;

(2) Fail to post notices at all entrances to the licensed or permitted premises in the view of patrons of the licensed or permitted establishment that persons under legal age are not allowed in the premises after 9:00 p.m. unless the licensee or permittee has a current exception certificate under subsection (1)a., (1)b., (1)c. or (1)e. of this section.

(C91, § 5-26; O.12,004, 12,073, 13,355, 13,448; C00, § 10-8; O.14,623, 15,432)

Sec. 10-9. Persons under legal age.

(a) No person shall sell, give, or otherwise supply alcoholic liquor, wine or beer to any person knowing or having reasonable cause to believe him or her to be under legal age.

(b) No person under legal age shall have alcoholic liquor, wine, or beer in his or her possession or control except as follows:

(1) For liquor, wine, or beer given or dispensed to a person under legal age within a private home and with the knowledge and consent of the parent or guardian for beverage or medicinal purposes or as administered to him or her by either a physician or dentist for medicinal purposes; and

(2) To the extent that a person under legal age may handle alcoholic beverages, wine, and beer during the regular course of his or her employment by a liquor licensee or wine or beer permittee under state law and subsection 10-6(a)(7) of this chapter.

(c) After 9:00 p.m., no person under legal age shall enter into or remain on the premises of a licensed or permitted establishment which authorizes on the premises consumption and which does not have a valid exception certificate posted under section 10-8 of this chapter.
(C42, § 46-23; O.5390; C54, C62, § 9-28; O.7244, 8073, 8280; C62, § 9-26; O.8372, 8641; C75, § 5-27; O.9589; C79, C85, § 5-27; O.10,928, 11,233; C91, § 5-27; O.12,004, 12,073, 13,448)

State law reference—Similar provisions, I.C. § 123.47.

Sec. 10-10. Reserved.

Editor's note—Ord. No. 14,869, § 1, adopted July 27, 2009, repealed § 10-10, which pertained to dancing and derived from Code 1942, § 46-25; Ord. No. 5390; Code 1954; Code 1962, § 9-35; Ord. No. 7223; Ord. No. 8280; Code 1962, § 9-27; Ord. No. 8350; Code 1975; Code 1979; Code 1985, § 5-28; Ord. No. 10,928; Ord. No. 11,000; and Code 1991, § 5-28.

Sec. 10-11. Reserved.

Editor's note—Ord. No. 14,871, § 1, adopted July 27, 2009, repealed § 10-11, which pertained to music and derived from Code 1962, § 9-33; Ord. No. 8185; Ord. No. 8280; Code 1962, § 9-28; Ord. No. 8658; Code 1975; Code 1979, § 5-29; Ord. No. 10,140; Code 1985, § 5-29; Ord. No. 10,928; Code 1991, § 5-29; and Ord. No. 13,309.

Sec. 10-12. Lighting.

(a) During the hours when beer, wine, or liquor is offered for sale, any room on the premises of a permit or license holder, where beer, wine, or liquor is sold or consumed, and all booths on the premises of a permit or license holder shall be illuminated to a minimum of two footcandles as measured by a footcandle meter at a plane of 30 inches from the floor and shall be so lighted that all objects are plainly visible at all times.

(b) The requirements of this section shall not apply to private rooms of hotels or club permit holders.
(C42, § 46-7; O.5390; C54, C62, § 9-4; O.8350; C62, § 9-28.01; C75, C79, C85, § 5-30; O.10,928; C91, § 5-30)

Sec. 10-13. Penalties.

(a) Any person who fails to perform an act required by this chapter or who commits an act prohibited by this chapter shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code.

(b) The conviction of any liquor control licensee, wine permittee, or beer permittee for a violation of any of the provisions of subsection 10-6(a), inclusive, shall, subject to subsection (c) of this section, be grounds for a civil penalty of up to $1,000.00 per violation and/or the suspension or revocation of the license or permit by the state department or the city. However, if any liquor control licensee is convicted of any violation of I.C. § 123.49(2)a., d. or e., or any wine or beer permittee is convicted of a violation of subsection (2), paragraphs a. or e. of such section of the state Alcoholic Beverage Control Act, the liquor control license, wine permit, or beer permit shall be revoked and shall immediately be surrendered by the holder, and the bond, if any, of the license or permit holder shall be forfeited to the state department.

(c) If any licensee, wine permittee, beer permittee, or employee of such licensee or permittee shall be convicted of a violation of subsection 10-6(a)(9) of this chapter or section 123.49(2)(h) of the Code of Iowa; or if a retail wine or beer permittee shall be convicted of a violation of subsection 10-6(a)(10) or section 123.49(2)(i) of the Code of Iowa, the city shall, unless the city makes a request for the Alcoholic Beverages Division of the Iowa Department of Commerce to

enforce these state code sections, in addition to the other penalties fixed for such violations by this section or Chapter 123 of the code of Iowa, assess a civil penalty as follows:

(1) Upon a first conviction, the violator's license or permit shall be suspended for a period of 14 days. However, if the conviction is for a violation of section 10-6(9) of this chapter or section 123.49(2)(h) of the Code of Iowa, the license or permit shall not be suspended, but the violating licensee or permittee shall be assessed a civil penalty in the amount of $500.00. Failure to pay the civil penalty as ordered will result in automatic suspension of the license or permit for a period of 14 days.

(2) Upon a second conviction within a period of two years, the violator's liquor control license, wine permit, or beer permit shall be suspended for a period of 30 days. However, if the conviction is for a violation of section 10-6(9) of this chapter or section 123-49(2)(h) of the Code of Iowa, the licensee or permittee shall also be assessed a civil penalty in the amount of $1,500.00.

(3) Upon a third conviction within a period of three years, the violator's liquor control license, wine permit, or beer permit shall be suspended for a period of 60 days. However, if the conviction is for a violation of section 10-6(9) of this chapter or section 123.49(2)(h) of the Code of Iowa, the licensee or permittee shall also be assessed a civil penalty in the amount of $1,500.00.

(4) Upon a fourth conviction within a period of three years, the violator's liquor control license, wine permit, or beer permit shall be revoked.

(C62, § 9-29; O.8280; C75, § 5-31; O.9589; C79, C85, § 5-31; O.10,928, 11,537; C91, § 5-31; O.14,269, 14,287, 15,608)

Sec. 10-14. Music permit, application and fee.

(a) No person shall play or permit to be played music of any type on the premises for a liquor license or beer/wine permit during those hours when it is prohibited to sell or dispense alcoholic liquor, wine or beer as set out in section 10-6 of this chapter without a music permit.

(b) Application for the permit required in this section shall be made in writing to the city clerk, accompanied by the required permit fee and the following information:

(1) The name and address of the applicant.

(2) The name and address of the business and/or location the permit will be used.

(3) Designation of the days of use and proposed hours of operation for the music permit.

(4) The name(s) and phone number(s) of the person(s) responsible for the use of the permit.

(5) The application must include a petition wherein 75 percent of the occupants of surrounding residences and businesses and/or owners or managers of multiple-residential structures within 250 feet of the permitted property agree to issuance of the music permit.

(6) Applicant must sign an agreement to comply with the sound ordinance and all other applicable ordinances while operating under a music permit and to not allow the property to become a nuisance.

(c) If the application contains the required information and is accompanied by the required fee as set in the schedule of fees adopted by council resolution, and the premises has or is approved by city council to have a liquor license or beer/wine permit the city clerk shall issue the music permit.

(O.14,871)

Sec. 10-15. Revocation of music permit, expiration.

(a) The police department may immediately revoke any music permit for violation of any federal, state or local law or ordinance occurring on the premises that results in a criminal charge.

(b) The music permit upon revocation shall remain revoked for one year from the date of revocation.

(c) The permit may be reinstated before expiration of one year upon the applicant showing proof by court record that the violation of law which resulted in the revocation resulted in an acquittal or dismissal of the defendant from all charges for such violations.

(d) The permit will expire when the liquor license or beer/wine permit expires for the premises.
(O.14,871)

Secs. 10-16—10-40. Reserved.

ARTICLE II. LICENSES AND PERMITS

Sec. 10-41. Required.

No person shall, within the city, sell, barter, exchange, offer for sale, have in possession with intent to sell, deal or traffic in beer, wine or liquor without having first procured a permit or license for the sale, barter, exchange, offering for sale, having in possession with intent to sell, deal or traffic in, or solicit for sale beer, wine or liquor, as provided in this article and by state law.
(C42, § 46-2; O.5390; C54, C62, § 9-2; O.8350; C62, § 9-2.01; C75, C79, C85, § 5-3; O.10,928, 11,537; C91, § 5-3)

Sec. 10-42. Eligibility.

Upon meeting the requirements imposed by state law, this chapter and other city ordinances, a person who is of good moral character, as defined by state law and this chapter, may apply for and hold a liquor control license or a wine or beer permit. For a club, corporation, or partnership, the officers of the club or corporation and the partners of a partnership shall be persons of good moral character as defined by state law and this chapter.
(C62, § 9-3; O.8280; C75, C79, C85, § 5-4; O.10,928, 11,537; C91, § 5-4)

Sec. 10-43. Conditions for approval.

The following conditions and regulations must be met by an applicant for a liquor, wine or beer license:

(1) The applicant must give consent in writing on the application that members of the fire and police departments and the building inspector may enter upon the premises without warrant to inspect for violations of the provisions of state law and of this chapter.

(2) The premises for which a liquor, wine or a beer license is sought must be located within an area where such business is permitted by chapter 134 of this Code and must otherwise conform to the city zoning requirements.

(3) The premises shall, at the time of the application, continue to be equipped with sufficient tables and seats to accommodate 25 persons at one time.

(4) All licenses provided for in this chapter shall be displayed in a conspicuous place on the premises of the license holder and at all times shall be subject to inspection.

(5) No liquor, wine or beer license shall be approved for premises which do not conform to all applicable laws, ordinances, resolutions, and health and fire regulations.

(6) Licensed premises located outside the DX1, DX2 and DXR zoning districts shall conform with the following:

a. In addition to subsections (1) through (8) of this section, neither class C or special class C licenses nor class F license shall be granted for premises which are not operated as a restaurant at least half of whose gross income is derived from the sale of prepared food and food-related services and which are located within 150 feet of any church, school, public park or licensed child care center as defined by I.C. ch. 237A.

b. No class B, special class B native wine, or class E license shall be granted to an applicant whose premises are within 75 feet of any church, school, or public park or licensed child care center as defined by I.C. ch. 237A.

c. In determining the distances set out in this subsection, measurements shall be taken on a direct line from the nearest property line of the premises upon which the place of business of an applicant for a license is located and over which such applicant has control, to the nearest property line of the parcel of real estate upon which the church, public park, licensed child care center or school building is situated. These area restrictions shall not affect the right of present permit or license holders who have qualified under the rules heretofore in effect, or their successors by purchase, from renewing their permits or licenses in their present locations.

(7) a. Except in the DX1, DX2 and DXR zoning districts, neither new licenses nor transfers of existing licenses, other than class B and class E licenses, will be granted for locations not currently operating under a license, unless 75 percent of the property abutting on both sides of the same street as the premises for which the license is requested and extending 200 feet to the right and left from the center point of such premises facing such street is either currently put to a commercial use or is commercially zoned by chapter 134 of this Code. An exception to this restriction is permitted where the applicant's premises are operated as a restaurant, at least half of the gross income of which is derived from the sale of prepared food and food-related services.

b. In measuring the distances in subsection (7)a of this section, rights-of-way of intersecting city streets and alleys shall be excluded.

c. Where the premises involved are located on a corner lot at the intersection of two streets, it will be sufficient if the usage or zoning so measured along either intersecting street meets the requirements of subsection (7)a of this section.

(8) The area restrictions set forth in this section shall not affect the right of present permit or license holders or their successors by purchase from renewing their permits or licenses in their present locations. No property whose principal structure shall be used wholly or in part for residence purposes shall be deemed actually devoted to commercial use unless more than 50 percent of the gross floor area of the structure shall be devoted to commercial use.

(9) The subsections of this section concerning the location of new or transferred licenses shall not apply to an application for a license by a college or university where 75 percent of the real estate, exclusive of street rights-of-way, within 200 feet of the structure for which the license is sought, is owned by the college or university.

(10) a. Subsections (2) and (3) of this section shall not apply to a person who makes application for a class C license, or a special class C license in connection with the operation of a concession stand or event at a city park designated "community" or "major" by the director of the park and recreation department, or at a city-owned golf course. The city council may approve an application for a class C license, or a special class C license in connection with

the operation of a concession stand or event at city parks designated "neighborhood" in special circumstances upon review of the facts and taking into account the recommendation of the park and recreation board.

b. For the purposes of section 10-47 of this chapter, each park at which an applicant desires to operate a concession stand or event and sell alcoholic beverages shall be deemed a separate place of business for which such applicant shall be required to have a separate license.

(11) Subsection (2) of this section shall not apply to a club or corporation which makes application for a class F license in connection with the operation of and located on the land occupied by a private full-sized nine- or 18-hole golf course.

(12) Subsection (6)a. of this section shall not apply to nonprofit corporations which make application for a five-day, 14-day, seasonal, or liquor license, where the sale of alcoholic beverages does not occur between the hours of 8:00 a.m. and 5:00 p.m., and where the sale of alcoholic beverages is done on a temporary basis for special events and so as to not comprise greater than 50 percent of the gross revenue for each day alcoholic beverages are sold.

(13) The required separation from any church, school, public park or licensed child care center imposed by subsection (6)a. of this section, and the requirements of subsection (7)a. of this section, shall not apply to nonprofit corporations which make application for a five-day liquor license, where the sale of alcoholic beverages occurs only between the hours of 11:00 a.m. and 10:00 p.m., and outside the regular school hours of any school within 150 feet.

(14) For all class C, special class C and class F licenses the applicant must provide a statement that all designated security employees have received training and certification in security methods. Such training shall be performed and certified to by a third party that is in the training business and shall include a minimum of four hours of training in the following areas: de-escalation techniques, anger management techniques, civil rights or unfair practices awareness as provided in I.C. § 216.7, recognition of fake or altered identification, information on laws applicable to the serving of alcohol at a licensed premises, use of force and techniques for safely removing patrons, and instruction on proper physical restraint methods used against a person who has become combative.

(O.4760; C42, §§ 46-8, 46-17, 46-18, 46-25; O.5390, 5420; C54, §§ 9-12, 9-14, 9-15, 9-30, 9-31, 9-34, 9-42; O.5723, 5964; C62, §§ 9-12, 9-14, 9-15, 9-30, 9-31, 9-34, 9-42; O.7370, 7402, 7999, 8280; C62, § 9-4; O.8350, 8368, 8673, 8692, 8708; C75, § 5-5; O.9217, 9589; C79, § 5-5; O.9833, 9916, 10,112; C85, § 5-5; O.10,928, 11,051, 11,537, 13,228, 13,233, 13,402; C91, § 5-5; O.13,895, 14,100, 14,269, 14,287, 14,440, 14,674, 14,675, 15,080, 15,279, 15,819, 16,278)

Sec. 10-44. Reserved.

Editor's note—Ord. No. 16,278, § 1, adopted Sept. 11, 2023, repealed § 10-44, which pertained to classes of beer permits and derived from Code 1962, § 9-5; Ord. No. 8280; Ord. No. 8658; Code 1975; Code 1979; Code 1985, § 5-6; Ord. No. 10,928; Ord. No. 11,537; Code 1991, § 5-6.

Sec. 10-45. Classes of liquor licenses.

Liquor control licenses shall be classed as follows:

(1) *Class F.* A class F license issued to a club shall authorize the holder to purchase alcoholic liquors from class E liquor licensees only, wine from class A wine permittees or class E or B licenses only, and beer from a class A beer permittees or class E or B licensees only, to bona fide members and their guests by the individual drink for consumption on the premises only.

(2) *Class C.* A class C license issued to a commercial establishment must be issued in the name of the individual who actually owns the entire business and shall authorize the holder to purchase alcoholic liquors from class E licensees only, wine from class A wine permittees, class E or B licensees only, and beer from class A beer permittees or E or B licensees to patrons by the individual drink for consumption on the premises only. However, liquor, wine and beer in original unopened containers may also be sold for consumption off the premises. In addition, mixed drinks or cocktails may also be sold for consumption off the premises subject to the requirements of I.C. § 123.49, subsection 2, paragraph "d".

(3) *Special class C.* A special class C license shall authorize the holder to purchase wine from class A wine permittees or class E or B licensees and beer from class A beer permittees or class E or B licensees only and to sell wine and beer to patrons by the individual drink for consumption on the premises only. However, wine and beer in original unopened containers may also be sold for consumption off the premises.

(4) *Class E.* A class E license shall authorize the holder to purchase alcoholic liquor from the state department only, wine from class A wine permittees only and beer from class A beer permittees only and to sell the alcoholic liquor, wine and beer to patrons for consumption off the licensed premises and to other liquor licensees. A holder of a class E license may hold other retail liquor licenses, but the premises licensed under a class E license shall be separate from other licensed premises, though the separate premises may have a common entrance.

(C62, § 9-6; O.8280, 8658; C75, C79, C85, § 5-7; O.10,928, 11,311, 11,537; C91, § 5-7; O.15,022, 16,278)

Sec. 10-46. Class of wine license.

(1) *Special class B native wine license.* A special class B native wine license shall authorize the holder to purchase wine from a native winery holding a class A wine permit and allow the holder to sell at retail native wine only for consumption in original containers only off premises.

(C85, § 5-8; O.10,928, 11,537; C91, § 5-8; O.14,287, 16,278)

Sec. 10-47. Separate locations.

Every person holding a liquor, wine or beer license, having more than one place of business where such liquor, wine or beer is sold, shall be required to have a separate license for each separate place of business, except as otherwise provided by state law.

(C62, § 9-8; O.8280; C75, C79, C85, § 5-9; O.10,928, 11,537; C91, § 5-9; O.16,278)

Sec. 10-48. Contents of application; bond.

(a) A verified application for the original issuance or the renewal of a liquor, wine or beer license, shall be submitted electronically in a manner prescribed by the administrator of the alcoholic beverages division.

(b) Except for class E license applications, the application shall be accompanied by the required fee and shall be filed with the city clerk for city council approval or disapproval 30 days prior to the first date of sale or 30 days prior to the renewal date.

(c) A class E liquor application shall be accompanied by the required fee and a bond in a sum of not less than $5,000.00 nor more than $15,000.00, as established by the state department, and in a form prescribed by the administrator of the alcoholic beverages division. The application shall be deemed timely filed when filed with the city clerk for city council approval or disapproval 30 days prior to the first date of sale or 30 days prior to the renewal date.

(C62, § 9-9; O.8280; C75, C79, C85, § 5-10; O.10,928, 11,311, 13,358; C91, § 5-10; O.16,278)

Sec. 10-49. Investigation of applicant and premises.

Upon receipt of an original application for a liquor, wine or beer license, by the city clerk, information shall be forwarded to the chief of

police or his or her designee, who shall conduct an investigation and shall approve or disapprove the applicant as to the truth of the facts averred in the application. It shall be the duty of the building official, zoning enforcement officer and the fire chief or their designees to inspect the premises to determine if they conform to the city's requirements, and no license shall be approved until inspections are completed.
(C62, § 9-10; O.8280; C75, C79, § 5-11; O.9833; C85, § 5-11; O.10,928; C91, § 5-11; O.13,011, 16,278)

Sec. 10-50. Procedures for suspension, revocation, or civil penalty.

(a) Whenever the city council finds that the licensee, his or her employees or agents has furnished any false information required under this article or has violated or failed to comply with any of the requirements of this chapter, any other chapter of this Code, or state law, the city council may, impose a civil penalty upon the licensee, and/or suspend or revoke the license.

(b) No civil penalty, suspension or revocation shall issue except upon notice delivered to the licensee by mailing notice in the regular mail, addressed to the licensee at the licensed premises, a minimum of ten days prior to the date set for hearing before the council. Such notice shall inform the licensee of the time, date and place of hearing and shall set out briefly the reasons therefor.

(c) If, after such hearing, the city council makes a finding based on substantial evidence that a violation of this chapter or another chapter of this Code or state law did in fact take place as alleged, the city council may impose a civil penalty and/or suspend or revoke the license; the determination of whether to impose a civil penalty and/or suspend or revoke such license shall be in the discretion of the city council and shall be dependent upon the circumstances surrounding the violation and its severity.

(d) A licensee whose license has been revoked shall not be eligible for another such license for a period of two years after such revocation.
(C79, § 5-11.02; O.10,709; C85, § 5-11.02; O.11,537; C91, § 5-11.02; O.14,287, 16,278)

Sec. 10-51. Renewal application.

(a) Upon receipt of an application for the renewal of a liquor, wine or beer license, the information shall be forwarded to the chief of police or his or her designee, who shall conduct an investigation on the applicant as to the truth of the facts averred in the application.

(b) Inspection of the premises will be the same as under section 10-49 of this chapter.
(C62, § 9-11; O.8280; C75, C79, C85, § 5-12; O.10,928; C91, § 5-12; O.16,278)

Sec. 10-52. Notice of change of management.

If a different person becomes manager or any officer dies or is removed, the business licensed pursuant to this article shall notify the office of the city clerk within three days, stating the name of the new manager or officer.
(C42, § 46-10; O.5390; C54, C62, § 9-56; O.8280; C62, § 9-12; C75, C79, C91, § 5-13; O.16,278)

Sec. 10-53. Civil liability.

Every liquor, wine or beer licensee shall furnish proof of financial responsibility as required by I.C. § 123.92 either by the existence of a liability insurance policy or by posting bond in such amount as determined by the state department.
(C62, § 9-13; O.8280; C75, C79, C85, § 5-14; O.10,928; C91, § 5-14; O.16,278)

Sec. 10-54. Fees.

(a) The following fees shall be submitted with the respective application for the license or permit required by this article:

(1) For a class B license the annual fee shall be graduated on the basis of the amount of interior floor space which comprises the retail sales area of the premises covered by the permit, as follows:

a. Up to 1,500 square feet, $250.00.

b. Over 1,500 square feet and up to 2,000 square feet, $350.00.

c. Over 2,000 square feet and up to 5,000 square feet, $500.00.

d. Over 5,000 square feet, $750.00.

(2) For a class F license the annual fee shall be as follows:

a. A club with 250 members or more, $600.00 plus state surcharge.

b. A club with less than 250 members, $400.00 plus state surcharge.

c. A club which is a post, branch, or chapter of a veterans organization chartered by the Congress of the United States, if such club does not sell or permit the consumption of alcoholic beverages on the premises more than one day in any week or more than 52 days in a year, and if the application for a license states that such club does not and will not sell or permit the consumption of alcoholic beverages on the premises more than one day in any week or more than 52 days in a year, $200.00 plus state surcharge.

(3) For a class C license the annual fee shall be $1,250.00 plus state surcharge.

(4) For a class E license the annual fee shall be a sum determined as follows:

a. Up to 1,500 square feet, $2,500.00.

b. Over 1,500 square feet and up to 2,000 square feet, $3,500.00

c. Over 2,000 square feet and up to 5,000 square feet, $5,000.00.

d. Over 5,000 square feet, $7,500.00.

(5) For a special class C license the annual fee shall be $450.00 plus state surcharge.

(6) For a special class B native wine license the annual fee shall be $125.00.

(b) The police department is authorized to charge and collect an administrative fee on requests for an exemption certificate pursuant to section 10-8 Article I of this chapter for investigating and processing such exemption certificates. The city clerk may collect this fee in lieu of the police department. The fee shall be in the amount set in the schedule of fees adopted by the city council by resolution.
(C62, § 9-14; O.8280, 8658; C75, C79, C85, § 5-15; O.10,928; C91, § 5-15; O.13,732, 14,179, 14,269, 14,287, 15,022, 16,278)

Sec. 10-55. Scope.

(a) A liquor, wine or beer license, shall be a purely personal privilege and shall be revocable for cause. It shall not constitute property nor be subject to attachment and execution nor be alienable or assignable, and in any case it shall cease upon the death of the licensee.

(b) However, the administrator of the alcoholic beverages division may in his or her discretion allow the executor or administrator of a licensee to operate the business of the decedent for a reasonable time not to exceed the expiration date of the license.

(c) Every license shall be issued in the name of the applicant, and no person holding a license shall allow any other person to use the license.
(C42, § 46-13; O.5390; C54, C62, § 9-13; O.8280; C62, § 9-15; C75, C79, C85, § 5-16; O.10,928; C91, § 5-16; O.16,278)

State law reference—Similar provisions, I.C. § 123.38.

Sec. 10-56. City council action.

Action taken by the city council pursuant to this article shall be so endorsed on the application, for such further action as is provided by law.
(C42, § 46-13; O.5390; C54, C62, § 9-13; O.8280; C62, § 9-16; C75, C79, C85, § 5-17; O.11,537; C91, § 5-17; O.16,278)

Sec. 10-57. Expiration.

Notwithstanding section 10-58, all liquor, wine or beer licenses, unless sooner suspended or revoked, shall expire one year from the date of issuance.
(C62, § 9-17; O.8280; C75, C79, C85, § 5-18; O.10,928, 11,537; C91, § 5-18; O.16,278)

State law reference—Similar provisions, I.C. § 123.354(1).

Sec. 10-58. Five-day, 14-day and seasonal licenses.

(a) Applications for eight-month seasonal licenses, class F, class C or special class C licenses may be accepted by the city council for a proportionate part of the license fee.

(b) The city council may accept applications for 14-day class F, class C or special class C licenses. A 14-day liquor license, if granted, is valid for 14 consecutive days. The fee for a 14-day liquor license is one quarter of the annual fee for that class of liquor license.

(c) The city council may accept applications for five-day class F, class C or special class C licenses. A five-day license, if granted, is valid for five consecutive days. The fee for the five-day liquor license is one-eighth of the annual fee for that class of license.

(d) No seasonal license shall be renewed.
(C85, § 5-18.01; O.11,537; C91, § 5-18.01; O.16,278)

State law reference—Similar provisions, I.C. § 123.34.

Sec. 10-59. Refunds.

(a) Under this article, any licensee or his or her executor, administrator, or any person duly appointed by the court to take charge of and administer the property or assets of the licensee for the benefit of his or her creditors may voluntarily surrender such license to the alcoholic beverage division and when so surrendered the alcoholic beverage division shall notify the city. The alcoholic beverage division and/or the city, shall refund to the person so surrendering the license a proportionate amount of the fee paid for such license as follows:

(1) If surrendered during the first three months of the period for which the license was issued the refund shall be three-fourths of the amount of the fee;

(2) If surrendered more than three months but not more than six months after issuance, the refund shall be one-half of the amount of the fee; or

(3) If surrendered more than six months but not more than nine months after issuance, the refund shall be one-fourth of the amount of the fee.

(b) No refund shall be made, however, for any liquor, wine or beer license surrendered more than nine months after issuance.

(c) No refund shall be made to any licensee upon the surrender of his or her license, if there is at the time of the surrender a complaint filed with the state department or the city, charging him or her with a violation of this chapter or provisions of the state Alcoholic Beverage Control Act.

(1) If upon hearing on any such complaint the license is not revoked or suspended, the licensee shall be eligible, upon surrender of his or her license, to receive a refund as provided in this section.

(2) If his or her license is revoked or suspended upon such hearing, he or she shall not be eligible for the refund of any portion of his or her license fee.

(d) No refund shall be made for seasonal, five-day or for 14-day licenses.
(C62, § 9-18; O.8280; C75, C79, C85, § 5-19; O.10,928, 11,537; C91, § 5-19; O.14,269, 16,278)

Sec. 10-60. Transfers.

The council, may, in its discretion, authorize a licensee to transfer the license from one location to another within the city, provided that the premises to which the transfer is to be made would have been eligible for a license in the first instance and such transfer will not result in the violation of any law or ordinance. The applicant shall procure from the persons who are surety on his or her bond written consent to make such transfer, which shall be filed with the application.
(C62, § 9-19; O.8280, 8708; C75, C79, C91, § 5-20; O.13,732, 14,269, 16,278)

State law reference—Authority to permit license and permit transfers, I.C. § 123.38.

Sec. 10-61. Causes for suspension, revocation, and civil penalty.

A holder of a liquor, wine or beer license may be required to pay a civil penalty and/or have the license suspended for a period up to one year or revoked for violations of law, including city ordinances, following notice and hearing, and may be penalized and/or suspended or revoked in accordance with the provisions of state law for any of the following causes:

(1) Misrepresentation of any material fact in the application for such license.

(2) Violation of any of the provisions of the state Alcoholic Beverage Control Act.

(3) Any change in the ownership or interest in the business operated under any liquor license, which change was not previously reported to and approved by the city and the alcoholic beverage division.

(4) An event which would have resulted in disqualification from receiving such license when originally issued.

(5) Any sale, hypothecation, or transfer of such license.

(6) The failure or refusal on the part of any licensee to render any report or remit any taxes to the state department under the state act.

(C62, § 9-22; O.8280; C75, § 5-23; O.9589; C79, C85, § 5-23; O.10,928; C91, § 5-23; O.14,287, 16,278)

State law reference—Similar provisions, I.C. § 123.39(1)(a), (b).

Sec. 10-62. Effect of revocation.

(a) Any liquor, wine or beer licensee whose license is revoked under the state Alcoholic Beverage Control Act shall not thereafter be permitted to hold a liquor, wine or beer license, in the state for a period of two years from the date of such revocation.

(b) A spouse or business associate holding ten percent or more of the capital stock or ownership interest in the business of a person whose license has been revoked shall not be issued a liquor, wine or beer license, and no liquor, wine or beer license, shall be issued which covers any business in which such person has a financial interest for a period of two years from the date of such revocation.

(c) If a license is revoked, the premises which has been covered by such license shall not be relicensed for one year.

(C62, § 9-23; O.8280; C75, C79, C85, § 5-24; O.10,928; C91, § 5-24; O.16,278)

State law reference—Similar provisions, I.C. § 123.40.

Sec. 10-63. Appeal and hearings.

(a) The right of appeal to the alcoholic beverages division of the state department of commerce shall be afforded a liquor, wine or beer licensee whose license has been suspended or revoked, or when a civil penalty has been imposed.

(b) Any applicant who feels aggrieved by a decision of the administrator of the alcoholic beverages division of the state's department of commerce or the city penalizing, suspending, revoking, or disapproving issuance of a liquor, wine or beer license may, provided such applicant has exercised his or her right of administrative appeal as provided by state law, appeal from such decision within 30 days to the district court of the county wherein the premises covered by the application are situated.

(c) The city may appeal a decision of the administrator of the alcoholic beverages division of the state department of commerce within 30 days to the district court of the county wherein the premises covered by the application are situated.

(C62, § 9-24; O.8280; C75, C79, C85, § 5-25; O.10,928, 11,537; C91, § 5-25; O.14,287, 16,278)

Chapters 11—13

RESERVED

Chapter 14

AMUSEMENTS AND ENTERTAINMENTS*

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ARTICLE I. IN GENERAL

Sec. 14-1. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Multiple theater complex means any theater as defined in this section but which contains more than one auditorium or exhibition room in a single building or connected complex of buildings under a single ownership or managed as a unit in which different motion pictures, cinematic portrayals or live performances are displayed in each or more than one of such auditoriums or exhibition rooms and for which a separate admission fee may be charged.

Theater and theatrical performance means any theatrical performance in which motion pictures or other cinematic portrayals are exhibited or actors or actresses or both take part in person in a performance given in what is commonly called a theater to which admission may be had by payment of a fee or by purchase and presentation of a ticket or token obtained for money and to which the public generally may gain admission.
(C42, § 69-1; C54, C62, § 42-1; C75, C79, C85, § 6-1; O.11,050; C91, § 6-1)

Cross reference—Definitions generally, § 1-2.

Sec. 14-2. License issuance criteria.

The city clerk shall, upon receipt of any application for a license required by this article, consider the application and grant to the applicant a license if the applicant meets the requirements of this article.
(C42, § 62-1; C54, C62, § 42-2; C75, § 6-2; O.9483; C79, C91, § 6-2)

Sec. 14-3. Application.

(a) Before any license shall be issued under this article, the person applying shall do so by making application to the city clerk, which shall state the business to be licensed, the person to whom the license shall be issued and the amount to be paid.

(b) In addition to subsection (a) of this section, no theater license shall be issued unless:

(1) The applicant gives consent on the application, which consent shall be binding upon the owner, manager, and operator of such theater, that members of the fire and police departments and the building inspector may enter upon the premises without warrant to inspect for violations of the provisions of the city building codes and fire code;

(2) The building inspector and the fire chief or their designees shall have inspected the premises and found that they conform to the requirements of the city building codes and fire code and shall have filed a report with the city clerk to such effect; and

(3) If the premises are found not to so conform at the time of the application or after the issuance of a license, the applicant shall be so advised and shall be given opportunity to appeal such finding to the city council which, upon hearing, may allow a reasonable period of time for the premises to be brought to conformance with such codes or, if the city council then or after such period deems the premises sufficiently hazardous to public health or safety, shall direct the denial or revocation of such license and closure of the premises as a theater.

(C42, § 62-3; C54, C62, § 42-3; C75, § 6-3; O.9483; C79, § 6-3; O.10,527; C91, § 6-3; O.15,777)

Sec. 14-4. License required.

No person shall conduct, carry on, exhibit, produce or display any theater or theatrical performance, without first paying the license fee and procuring the license provided for in this article.
(C42, §§ 62-2, 62-3; C54, C62, § 42-4; C75, § 6-4; O.9483; C79, C91, § 6-4; O.14,182)

Sec. 14-5. License fees.

(a) An applicant for a theater license shall submit a fee to the city clerk at the time of filing the application. No license fee shall be charged

for a theater or theatrical performance when conducted at a city-owned or city-subsidized property or property owned by a not-for-profit organization.

(b) All theater license fees shall be paid annually in advance, and the beginning of the year of the annual license shall be January 1 of each year. An applicant who files for renewal less than 30 days prior to the date of license expiration, shall pay a late fee.

(c) If the application is denied or if the application is withdrawn before final action is taken by the city clerk a portion of the application fee shall be retained by the city clerk for the cost of administration.

(d) The license fee, its nonrefundable portion and the late fee for a theater license shall be in the amounts set in the schedule of fees adopted by the city council by resolution.
(C42, §§ 62-2, 62-3; C54, C62, § 42-7; C75, § 6-7; O.9143; C79, § 6-7; O.10,708; C85, § 6-7; O.11,050, 11,579; C91, § 6-7; O.14,182)

Sec. 14-6—14-8. Reserved.

Editor's note—Ord. No. 14,182, § 1, adopted Dec. 16, 2002, repealed §§ 14-6—14-8 which pertained to sanitary condition of premises, illegal shows, and smoking, respectively, and derived from Code 1942, §§ 35-14, 62-2, 62-7; Code 1954 and Code 1962, §§ 42-10, 42-12, 42-13; Code 1975 and Code 1979, §§ 6-10, 6-12; Code 1985, § 6-13; Code 1991, §§ 6-10, 6-12, 6-13; and Ord. No. 11,579.

Secs. 14-9—14-35. Reserved.

ARTICLE II. GAME ROOMS, BOWLING ALLEYS AND AMUSEMENT DEVICES

Sec. 14-36. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Amusement device means any type of game or entertainment device or table, including but not limited to pool, billiards, snooker or ping pong tables; pinball machines; electronic games; and jukeboxes, which can be played by any number of participants. The term also includes any coin-operated or slug-operated or electronically, electrically or mechanically controlled still or motion picture machine, projector, or other image-producing device maintained to show images to five or fewer persons per machine at any one time. The term "amusement device" shall not include and this article shall not apply to pay television sets located in bus terminals, train stations and airports.

Bowling alley means any commercial establishment where the game of bowling or tenpins is played.

Game room means any commercial establishment featuring amusement devices for use by the public for a fee. The term "game room" does not include single-family residences having such machines nor does it include games, game rooms or recreation rooms of multiple-family residences, provided the use of such rooms and the machines or tables contained therein is restricted to the residents thereof or their guests.

Inoperable machine means any amusement device which is no longer used for its original entertainment purpose and which is no longer in working order in that the electrical or mechanical controls are permanently severed and the coin-operated or slug-operated slots are filled or covered so that coins or slugs cannot be accepted.
(C75, § 6-27; O.9096; C79, § 6-27; O.9838, 10,011; C85, § 6-27; O.11,579; C91, § 6-27)

Cross reference—Definitions generally, § 1-2.

Sec. 14-37. Compliance.

No bowling alley or game room shall be opened, operated or permitted to be opened or operated without first complying with this article, nor shall any other commercial premises use or permit the use of coin-operated amusement machines or other amusement tables, devices or machines without first complying with this article.
(C42, § 66-7; C54, C62, § 40-8; C75, § 6-27; O.9096; C75, C79, C91, § 6-28)

Sec. 14-38. License required.

(a) No game room or bowling alley shall be opened, operated or permitted to be opened or operated without the owner first obtaining a

game room or bowling alley license from the city council. No other commercial establishment shall permit the operation or use of any coin-operated amusement machine or other amusement games, tables, devices or machines without the owner first obtaining a game room license from the city council. However, a license is not required for a bona fide inoperable machine.

(b) All applicants for licenses for bowling alleys or game rooms shall apply to the city clerk. The city clerk shall forward the application to the appropriate departments for inspections. Upon completion of such inspections, the city clerk shall forward the application to the city council for approval. If the city council finds that the applicant has fully complied with all the requirements of this article and that the applicant is of good moral character, the city council shall authorize the issuance of a license to the applicant.

(c) Where the principal business of a commercial establishment has been subjected to and has passed inspection by city building, fire and police departments under this Code or state law, as applicable, the requirement of inspection before issuance of a license pursuant to this article shall be deemed satisfied.

(d) Where the operation of coin-operated amusement machines is only incidental to the principal business activity of the commercial establishment, fire and building inspections required by this section need only be conducted in and about that portion or room of the commercial establishment wherein the coin-operated amusement machine or machines are actually located.

(e) All applications shall be made in the name of the owner of the business, whether an individual, a partnership, or a corporation, and shall contain the following:

(1) The full name, residence address of the applicant and, where the applicant is a partnership or corporation, of the partners or officers.

(2) The Iowa Division of Criminal Investigation criminal history report of the applicant, if any, or of each partner or corporate officer, as applicable.

(3) If the applicant is a corporation, the name of the corporation shall be set forth exactly as shown in its articles of incorporation together with the names and residence addresses of each of the officers, directors, and each stockholder holding more than ten percent of the stock of the corporation. If the applicant is a partnership, the application shall set forth the name and the residence address of each of the partners, including limited partners. If one or more of the partners is a corporation, the subsections of this section pertaining to a corporate applicant apply.

(4) The name and address of the owner of the building where such game room or bowling alley will be located.

(5) A copy of a government-issued photo ID of the applicant or of the managing partner or principal executive officer of the corporation, as applicable.

(6) All information required in this subsection of any applicant shall also be provided for every person who, directly or indirectly, has any right or responsibility to participate in the management or control of the business to be conducted at the premises of the proposed game room or bowling alley.

(7) Copies of any lease or rental agreement governing the applicant's rights in such building.

(8) Such other identification and information necessary to discover the truth of the matters required in this subsection to be set forth in the application as may be required by the city clerk.

(C42, §§ 66-4, 66-5; O.5125; C54, C62, §§ 40-2, 40-3; C75, §§ 6-28, 6-29; O.9096, 9221, 9383; C79, § 6-29; O.9922, 10,023; C85, § 6-29; O.11,579; C91, § 6-29; O.15,777)

Sec. 14-39. License fees.

(a) An applicant for a game room, amusement device or bowling alley license shall submit a fee to the city clerk at the time of filing the application.

(b) An applicant who files for renewal less than 30 days prior to the date of any license expiration shall pay a late fee.

(c) If the application is denied or if the application is withdrawn before final action is taken by the city clerk, a portion of the application fee shall be retained by the city clerk for the cost of administration.

(d) The license fee, its nonrefundable portion and the late fee for a game room, amusement device or bowling alley license shall be in the amounts set in the schedule of fees adopted by the city council by resolution.
(C42, § 66-6; O.5125; C54, § 40-6; O.6028; C62, § 40-6; O.7454, 8479; C75, § 6-30; O.9096; C79, § 6-30; O.9838, 9922; C85, § 6-30; O.11,548, 11,579; C91, § 6-30; O.11,780, 14,182)

Sec. 14-40. License duration.

All licenses issued pursuant to this article shall expire on December 31 of the year of issuance.
(C42, § 66-7; C54, C62, § 40-8; C75, § 6-34; O.9096; C75, C79, § 6-31; O.9838; C91, § 6-31)

Sec. 14-41. Temporary license.

(a) Under this article, a temporary license may be issued to a location for a maximum period of five days.

(b) An applicant for a temporary game room, amusement device or bowling alley license shall submit a fee to the city clerk at the time of filing the application.

(c) An application for a temporary license under this article shall contain the information as required under subsections 14-38(e) and (f).

(d) An applicant who files for a temporary license less than 30 days prior to the first date of operation shall pay a late fee.

(e) The standards of issuance of a game room license enumerated in section 14-38 of this article shall apply.

(f) If the application is denied or if the application is withdrawn before final action is taken by the city clerk, the license fee shall be retained by the city clerk for the cost of administration.

(g) The license fee, its nonrefundable amount and the late fee for a temporary license shall be in the amounts set in the schedule of fees adopted by the city council by resolution.

(h) No temporary license issued under this article shall be renewed except after a period of six months.

(i) All rules of conduct set out in this article shall apply equally to temporary licensees.
(C91, § 6-31.01; O.11,710, 14,182)

Sec. 14-42. Posting of license.

The license issued by this article shall be enclosed by the licensee in a suitable frame so that the whole of the license may be seen therein. It shall be posted at all times and displayed in a conspicuous place in the principal room or place of the premises where the licensed business is carried on, so that all persons visiting the room or place may readily see it.
(C42, § 66-8; C54, C62, § 40-9; C75, § 6-35; O.9096; C75, C79, C91, § 6-32; O.15,777)

Sec. 14-43. Hours of operation.

(a) Game rooms shall not permit patrons to play or operate amusement devices, excepting jukeboxes and other vending machines the sole product of which is recorded music, between the hours of 2:00 a.m. and 6:00 a.m. unless the use is in conjunction with a music permit or an entertainment venue license; provided, however:

(1) This restriction shall not apply to those game rooms at which are located no more than a jukebox and two other amusement devices.

(2) This subsection shall not be construed to require that a game room close at 2:00 a.m.

(3) A licensee shall be held to have complied with this subsection if he or she renders the amusement devices inoperable by either cutting off electricity to such devices

or by closing off access by the public to the area in which such devices are situated at or before 2:00 a.m.

(b) The exception set forth in subsection (a) of this section pertaining to jukeboxes shall not apply to those locations described in section 10-14(a) of this Code.
(C42, § 66-10; C54, § 40-11; O.5885; C62, § 40-11; O.7021, 8628; C75, § 6-37; O.9096; C75, § 6-34; O.9409; C79, § 6-34; O.9838, 10,011, 10,140; C91, § 6-34; O.14,872)

Sec. 14-44. Disorderly conduct.

No game room or bowling alley licensee or employee or agent thereof shall permit such licensed premises to become disorderly. The term "disorderly" as used in this section shall have the meaning contained in section 70-36 of this Code.
(C42, § 66-10; C54, § 40-11; O.5885; C62, § 40-11; O.7021, 8628; C75, § 6-37; O.9096; C75, C79, § 6-35; O.9838, 10,708; C91, § 6-35)

Sec. 14-45. Effect of plea of being private club.

In prosecutions under this article, it shall be no defense that the premises where the violation is alleged to have occurred during prohibited hours were then operated as a private club, if at any other time during the licensed period such premises are conducted as a public place of business.
(C42, § 66-9; C54, C62, § 40-10; C75, § 6-38 O.9096; C75, C79, C91, § 6-36)

Sec. 14-46. Suspension or revocation of license.

Any license issued pursuant to this article may be suspended or revoked for violations of this article or any other chapter of this Code, and the procedures for such suspension or revocation shall be those contained in section 14-160 of this chapter.
(C42, § 66-12; C54, C62, § 40-12; C75, § 6-39; O.9096; C75, C79, § 6-37; O.9838, 10,708; C91, § 6-37)

Secs. 14-47—14-75. Reserved.

ARTICLE III. RESERVED*

Secs. 14-76—14-115. Reserved.

ARTICLE IV. RESERVED†

Secs. 14-116—14-150. Reserved.

ARTICLE V. AMUSEMENT HOUSES

Sec. 14-151. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Amusement house means any house, building, premises or any other structure or portion thereof, whether temporary or permanent, open to the public to tour or move through for purposes of amusement or fright and which contains a device or system that conveys passengers or provides a walkway along, around, or over a course in any direction so arranged that the egress path is not readily apparent due to visual or audio distractions or is intentionally confounded or is not readily available due to the nature of the attraction or mode of conveyance through the house, building, or structure.

Operator means any person, group, or organization who is responsible for the organization and operation of an amusement house.

Temporary amusement house means an amusement house that is operational and open to the

*__Editor's note—__**Editor's note—**Ord. No. 14,869, § 1, adopted July 27, 2009, repealed art. III, §§ 14-76—14-87, which pertained to public dances and derived from Code 1942, §§ 63-1, 63-2, 63-4, 63-6—63-9, as amended. See the Code Comparative Table for complete derivation.

†**Editor's note—**Ord. No. 14,329, § 1, adopted April 5, 2004, repealed the former art. IV, §§ 14-116—14-125, which pertained to timed events and athletic events using streets and highways, and derived from Code 1985, §§ 6-85—6-94; Ord. No. 11,162; Code 1991, §§ 6-85—6-94; Ord. No. 11,655; Ord. No. 13,230; and Ord. No. 13,733.

public for a period of 45 days or less at one given time. All other amusement houses shall be considered as permanent.
(C85, § 6-96; O.11,393, 11,526; C91, § 6-95; O.15,702)

Cross reference—Definitions generally, § 1-2.

Sec. 14-152. License required.

No amusement house shall be permitted within the city without the operator, organizer, or owner first obtaining an amusement house license from the city.
(C85, § 6-96; O.11,393; C91, § 6-96; O.13,533, 14,182)

Sec. 14-152.2. License application.

(a) Every applicant for such license shall apply in writing to the city clerk. Such application shall be submitted at least 30 days prior to the proposed date of commencement of operation of such amusement house. The requirement that such an application be submitted at least 30 days in advance may be waived by the city manager upon a written finding by the city manager that the necessary review and inspection of the proposed amusement house may be completed within the time remaining and that the expedited review of such application will not interfere with the efficient administration of chapter 134 of this Code and the building, fire and traffic codes.

(b) Every license application shall contain the following information:

(1) The name and address of the applicant and that of the operator.

(2) If the application is made on behalf of an organization, the name and address of the organization.

(3) The names and phone numbers of two contact persons.

(4) The proposed dates and hours of operation of the event.

(5) An estimate of daily attendance.

(6) A description and diagram of the amusement house drawn to a scale of one-fourth inch equals one foot zero inches.

(7) The name of the company or named of persons to provide security services at the premises.

(c) An application to license an amusement house must include, in addition to the information required in subsection (c) of this section, the following:

(1) Presentation by the applicant of a certificate of insurance issued by an insurance company licensed to do business in this state, providing general liability insurance coverage in an amount of not less than $500,000.00 per occurrence and aggregate for the injury or death of any person; for damage to property of others; and for acts of negligence by the owner, operator, or his or her agents in the conduct or operation of an amusement house. The general liability insurance shall be on a comprehensive or commercial form and shall name the city as an additional insured. The certificate of insurance shall also evidence that the general liability policy may not be cancelled or modified in any way without 30 days' written notice to the city.

(2) The cancellation or other termination of any insurance policy presented to comply with this subsection shall automatically revoke and terminate the license issued under this article, unless another certificate, complying with this subsection, shall be provided showing insurance in effect at the time of such cancellation or termination.

(O.14,182)

Sec. 14-152.5. License fees.

(a) An applicant for an amusement house license shall submit a fee to the city clerk at the time of filing the application.

(b) An applicant who makes application less than 30 days prior to the proposed date of commencement of operation shall pay a late fee.

(c) If the application is denied or if the application is withdrawn before final action is taken by the city clerk, a portion of the application fee shall be retained by the city clerk for the cost of administration.

(d) The license fee, its nonrefundable portion and the late fee for an amusement house license shall be in the amounts set in the schedule of fees adopted by the city council by resolution.

(O.14,182)

Sec. 14-153. License qualifications.

(a) Prior to the issuance of an amusement house license, the city clerk shall forward copies of the application to the building official, the zoning enforcement officer, the city engineer and the chief of the fire department who shall review the application and, when appropriate, conduct inspections of the proposed site of the amusement house in conformance with the standards set out in this article.

(b) The city clerk shall issue an amusement license only upon a showing that the house, building, structure, or premises to be used has the approval of the building official, the zoning enforcement officer, the chief of the fire department and the city engineer and upon a showing that the applicant has complied with all other requirements set out in this article.

(C85, § 6-97; O.11,393; C91, § 6-97; O.13,011)

Sec. 14-154. Basis for denial of license.

An application for a license required by this article shall be denied if, after review, one or more of the following are found to be true:

(1) The existence of the amusement house will have an adverse impact on the flow of vehicular or pedestrian traffic in the area which cannot be reasonably alleviated or that sufficient parking is not available to accommodate the expected attendance such finding to be determined by the engineering department;

(2) The proposed location is in an area not zoned for such use; or

(3) Requirements regarding fire, building or traffic safety cannot be met.

(C85, § 6-98; O.11,393; C91, § 6-98)

Sec. 14-155. Building standards and inspections.

(a) Before any alteration, modification or construction occurs to any structure pursuant to this article, a building permit shall be obtained as required under section 26-113 of the building code.

(b) The operator, organizer or owner of any amusement house shall permit entry to any city inspector for purposes of determining compliance with this article and all other applicable statutes and ordinances.

(c) Special exit requirements shall be as follows:

(1) An amusement house using the maze concept shall have no dead-end paths and shall have an exit path out of the maze for approximately every 50 feet of linear travel. All doors out of the maze shall not be provided with locks or latches, unless panic hardware is installed.

(2) In the maze and throughout the amusement building, where the maze is located, exit signs shall be installed to mark changes in direction to readily distinguish exits and exit paths and at all required exit doorways. Exit illumination and exit signs shall conform with the requirements of sections 3313 and 3314(b), (c), (d), respectively, of the Uniform Building Code, except that exit illumination must be provided capable of illuminating all exits, exitways, stairways, corridors and mazes with light having an intensity of not less than one footcandle at the floor level. Illumination for the exit signs and exit illumination shall be required only under emergency conditions in accordance with section 14-156(c) of this article.

(3) Amusement houses shall not be located above the first story and shall be provided with a sufficient number of exits in relation to floor area and occupant load as determined by the city building code. In no case may such area be used unless provided with at least two exits, the location of which are in compliance with section 3303(c) of the Uniform Building Code.

(d) A public address system, which may also serve as the signaling devices of the fire alarm system, shall be provided and shall be audible throughout the entire amusement house.

(e) Occupancy requirements shall be as follows:

(1) The total number of persons within a facility at any given time shall be limited to an exit capacity to be determined by the fire chief and building official upon inspection of the facility, such occupancy load to be posted at the entry to the amusement house in compliance with section 26-33 of this Code.

(2) Toilet facilities shall be provided in sufficient number according to attendance estimates as required, but in no instance less than four.

(3) Any child or group of children 12 years old or under shall be accompanied by an adult, that is, a person 18 years of age or older. Any such single group shall not exceed ten in number.

(4) Every guide and scene character shall have an operable flashlight powered by a minimum of two C-celled batteries and shall be completely familiar with all aspects of the facility, inclusive of but not limited to operation of fire emergency equipment and locations of exits.

(C85, § 6-99; O.11,393, 11,526; C91, § 6-99; O.13,011)

Sec. 14-156. Fire standards and inspections.

(a) *Smoke detectors.* A supervised smoke detection system shall be installed in all amusement houses in conformance with the fire code. When the amusement house is permanent, this smoke detection system shall either be cross zoned or shall utilize an approved verification system. Exception: In areas where the ambient condi-

tions will cause a smoke detector to alarm, an approved alternate type of automatic detector shall be installed.

(b) *Sprinklers.* An approved automatic sprinkler system complying with the Uniform Building Code standards 38-1 shall be installed in all amusement houses. When the amusement house is temporary or mobile, the sprinkler water supply may be an approved temporary means. Exception: An automatic sprinkler system is not required when the total floor area of a building containing an amusement house is less than 1,000 square feet and the travel distance from any point to an exit is less than 50 feet.

(c) *Fire protection system performance.* Fire protection system performance shall be as follows:

(1) *Permanent amusement house.*

a. The activation of two cross zoned smoke detectors within a single protected area, a single smoke detector monitored by an alarm verification zone, the automatic sprinkler system or any other automatic fire alarm detection shall automatically:

1. Cause illumination of the means of egress with light of not less than one footcandle at the walking surface level;

2. Stop any conflicting or confusing sounds and visuals; and

3. Activate an approved directional exit marking that will become apparent in an emergency.

b. Activation of any single smoke detector, the automatic sprinkler system or any other automatic fire detection device shall immediately sound an alarm at the building at a constantly attended location from which emergency action can be initiated including the capacity of manual initiation of subsection (c)(1)a of this section.

(2) *Temporary amusement house.*

a. Provide a constantly attended location that has the capacity to manually initiate:

1. Illumination of the entire area including all exitways;

2. Cessation of any conflicting sounds and visuals; and

3. Activate or illuminate an approved directional exit marking that will become apparent in an emergency.

b. Provide an alarm system that will sound an alarm at the attended location upon the activation of any of the fire detection devices being used.

(C85, § 6-100; O.11,393, 11,526; C91, § 6-100)

Sec. 14-157. Duration of license.

A temporary amusement house license shall expire 45 days from the effective date indicated thereon and shall not be renewable within the same calendar year without the approval of the council. A permanent amusement house license shall expire one year from the date of issuance and shall be renewable each year thereafter. A license for the operation of any amusement house is not transferable.

(C85, § 6-101; O.11,393, 11,526; C91, § 6-101; O.15,702)

Sec. 14-158. Prohibited acts.

(a) No person or license holder shall allow an amusement house to operate after 10:00 p.m., Sunday through Thursday; or after 12:00 midnight, on Friday and Saturday nights.

(b) No person or license holder shall create or allow excessive noise in violation of the provisions of article IV of chapter 42 of this Code.

(c) No person or license holder shall allow the operation of or conduct an amusement house without the assistance of security services for the premises.

(d) No person or permit holder shall allow any disorderly conduct, as defined under section 70-36 of this Code.

(e) No person or permit holder shall fail to display the amusement house license in a conspicuous place at the public entrance to the licensed premises.
(C85, § 6-102; O.11,393; C91, § 6-102)

Sec. 14-159. Reserved.

Editor's note—Ord. No. 14,182, § 1, adopted De. 16, 2002, repealed § 14-159 which pertained to license fee and issuance of license and derived from Code 1985, § 6-103; Ord. No. 11,393; and Code 1991, § 6-103.

Sec. 14-160. Suspension and revocation of license.

(a) Any license issued pursuant to this article may be revoked for violations of this article or for any other violation of this Code. No revocation shall issue except upon notice delivered to the licensee by mailing the notice in the regular mail addressed to the licensee at the licensed premises a minimum of ten days prior to the date set for the hearing before the city council. Such notice shall inform the licensee of the time, date and place of the hearing and the purpose of the hearing and shall set out the reasons therefor. However, for violation of the applicable codes of such nature that the violation is deemed to be an immediate safety hazard by city inspectors and such report is submitted to the city clerk in writing, the city clerk shall be authorized to temporarily suspend the license until notice can be given and hearing held.

(b) If, after such a hearing, the city council makes a finding based on substantial evidence that a violation of this article or another chapter of this Code did in fact occur as alleged, the city council may continue suspension of or revoke the license; the determination of whether to revoke such license shall be in the discretion of the city council and shall be dependent upon the circumstances surrounding the violation and its severity.

(c) A licensee whose license has been revoked shall not be eligible for another amusement house license for a period not to exceed two years. Any premises having its license revoked shall not be relicensed under this article for a period not to exceed one year.
(C85, § 6-104; O.11,393; C91, § 6-104)

Secs. 14-161—14-179. Reserved.

ARTICLE VI. ENTERTAINMENT VENUES

Sec. 14-180. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Entertainment venue means any structure, or portion thereof, that is used for the gathering of persons for the purpose of entertainment for no more than four three-day periods per year. Any structure used for more frequent gathering of persons for the purposes of entertainment shall be considered as permanent and subject to the building code, zoning, planning and design, and fire code requirements of this Code applicable to such permanent use.

Operator means any person, group, or organization who is responsible for the organization and operation of an amusement venue.

Structure means anything constructed or erected with a fixed location on the ground, or attached to something having a fixed location on the ground.
(O.14,870, 15,819)

Sec. 14-181. License required.

No entertainment venue shall be permitted within the city without the operator or owner first obtaining an entertainment venue license from the city.
(O.14,870)

Sec. 14-182. Exception.

Structures otherwise inspected by the building official, the zoning enforcement officer and

the chief of the fire department and approved for entertainment use occupancy shall not be required to obtain an entertainment venue license.
(O.14,870)

Sec. 14-183. License application.

(a) Every applicant for such license shall apply in writing to the city clerk. Such application shall be submitted at least 30 days prior to the proposed date of commencement of operation of such entertainment venue. The requirement that such an application be submitted at least 30 days in advance may be waived by the city manager upon a written finding by the city manager that the necessary review and inspection of the proposed entertainment venue may be completed within the time remaining and that the expedited review of such application will not interfere with the efficient administration of chapters 134 and 135 of this Code and the building, fire and traffic codes.

(b) Every license application shall contain the following information:

(1) The name and address of the applicant and that of the operator.

(2) If the application is made on behalf of an organization, the name and address of the organization.

(3) The names and phone numbers of two contact persons.

(4) The proposed dates and hours of operation of the event.

(5) An estimate of daily attendance.

(6) A description and diagram of the entertainment venue drawn to a scale of one-fourth inch equals one foot zero inches.

(7) The name of the company or named of persons to provide security services at the premises.

(c) The applicant must give consent in writing on the application, which consent shall be binding upon the operator, organizer or owner of the entertainment venue, that city inspector or members of the fire and police departments may enter the structure without warrant to inspect the structure for purposes of determining compliance with this article and all other applicable statutes and ordinances.

(d) An application to license an entertainment venue must include, in addition to the information required in subsections (b) and (c) of this section, the following:

(1) Presentation by the applicant of a certificate of insurance issued by an insurance company licensed to do business in this state, providing general liability insurance coverage in an amount set by the risk management officer per occurrence and aggregate for the injury or death of any person; for damage to property of others; and for acts of negligence by the owner, operator, or his or her agents in the conduct or operation of an amusement house or entertainment venue. The general liability insurance shall be on a comprehensive or commercial form and shall name the city as an additional insured. The certificate of insurance shall also evidence that the general liability policy may not be cancelled or modified in any way without 30 days' written notice to the city.

(2) The cancellation or other termination of any insurance policy presented to comply with this subsection shall automatically revoke and terminate the license issued under this article, unless another certificate, complying with this subsection, shall be provided showing insurance in effect at the time of such cancellation or termination.
(O.14,870, 15,819)

Sec. 14-184. License fees.

(a) An applicant for an entertainment venue license shall submit a fee to the city clerk at the time of filing the application.

(b) An applicant who makes application less than 30 days prior to the proposed date of commencement of operation shall pay a late fee.

(c) If the application is denied or if the application is withdrawn before final action is taken by the city clerk, a portion of the application fee shall be retained by the city clerk for the cost of administration.

(d) The license fee, its nonrefundable portion and the late fee for an entertainment venue license shall be in the amounts set in the schedule of fees adopted by the city council by resolution.
(O.14,870)

Sec. 14-185. License qualifications.

(a) Prior to the issuance of an entertainment venue license, the city clerk shall forward copies of the application to the building official, the zoning enforcement officer, and the chief of the fire department who shall review the application and, when appropriate, conduct inspections of the proposed site of the entertainment venue in conformance with the standards set out in this article.

(b) The city clerk shall issue an entertainment venue license only upon a showing that the entertainment venue to be used has the approval of the building official, the zoning enforcement officer, the chief of the fire department and upon a showing that the applicant has complied with all other requirements set out in this article.
(O.14,870)

Sec. 14-186. Basis for denial of license.

An application for a license required by this article shall be denied if, after review, one or more of the following are found to be true:

(1) The existence of the entertainment venue will have an adverse impact on the flow of vehicular or pedestrian traffic in the area which cannot be reasonably alleviated or that sufficient parking is not available to accommodate the expected attendance such finding to be determined by the engineering department; or

(2) The proposed location is in an area not zoned for such use; or

(3) The entertainment venue has been found not to conform at the time of the application or after the issuance of the license, with the requirements of the city building codes, the fire codes, or that traffic safety requirements cannot be met.
(O.14,870)

Sec. 14-187. Building standards and inspections.

Before any alteration, modification or construction occurs to any entertainment venue, a building permit shall be obtained as required under section 26-135 of the building code.
(O.14,870)

Sec. 14-188. Fire standards and inspections.

Before any alteration, modification or construction occurs to any fire protection system of an entertainment venue, a construction permit shall be obtained as required under section 46-1 of the fire prevention and protection code.
(O.14,870)

Sec. 14-189. Prohibited acts.

(a) No person or license holder shall create or allow excessive noise in violation of the provisions of article IV of chapter 42 of this Code.

(b) No person or license holder shall allow the operation of or conduct an entertainment venue without the assistance of security services for the premises.

(c) No person or license holder shall allow any disorderly conduct, as defined under section 70-36 of this Code.

(d) No person or license holder shall fail to display the entertainment venue license in a conspicuous place at the public entrance to the licensed premises.
(O.14,870)

Sec. 14-190. Suspension and revocation of license.

(a) Any license issued pursuant to this article may be revoked for violations of this article or for any other violation of this Code. No revocation shall issue except upon notice delivered to the licensee by mailing the notice in the regular mail

addressed to the licensee at the licensed premises a minimum of ten days prior to the date set for the hearing before the city council. Such notice shall inform the licensee of the time, date and place of the hearing and the purpose of the hearing and shall set out the reasons therefor. However, for violation of the applicable codes of such nature that the violation is deemed to be an immediate safety hazard by city inspectors or the police or fire department and such report is submitted to the city clerk in writing, the city clerk shall be authorized to temporarily suspend the license until notice can be given and hearing held.

(b) If, after such a hearing, the city council makes a finding based on substantial evidence that a violation of this article or another chapter of this Code did in fact occur as alleged, the city council may continue suspension of or revoke the license; the determination of whether to revoke such license shall be in the discretion of the city council and shall be dependent upon the circumstances surrounding the violation and its severity.

(c) A licensee whose license has been revoked shall not be eligible for another entertainment venue license for a period not to exceed two years. Any structure having its license revoked shall not be relicensed under this article for a period not to exceed one year.
(O.14,870)

Chapters 15—17

RESERVED

Chapter 18

ANIMALS*

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*__Cross references—__Environment, ch. 42; noise control for animals and birds, § 42-261; health and sanitation, ch. 54; trapping, § 70-83; hunting, § 70-84; destruction of plant or animal life at park and recreation facilities, § 74-93; zoning ordinance, ch. 134.

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ARTICLE I. IN GENERAL

Sec. 18-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Acreage means a plot of land within the city's corporate limits equal to or greater than an acre.

Adequate shelter means a protective covering which is impervious to moisture and other adverse weather conditions, and includes a door or flap allowing the animal constant access, and which is maintained in a sanitary manner.

Animal shelter means the facility owned by the City of Des Moines used for animal control purposes.

Chief humane officer means the city employee designated by the city manager to exercise the authority of the chief human officer under this chapter, and such employee's designee.

Contractor means a nonprofit corporation that provides animal care, adoption and cremation services, and that has contracted with the City of Des Moines to provide animal shelter services.

Dead animal includes all dead animals, skinned or unskinned, undressed, unslaughtered hogs, cattle, and other animals which have died from disease, accident, or cause other than slaughter for use as food, in accordance with the sanitary laws regulating such act.

Chief of police means the legally designated chief of the police department and his or her designee.

Owner means any person owning, keeping or harboring an animal.

(C42, § 42-11; C54, C62, § 5-13; C75, C79, C85, C91, § 7-1; O.11,558, 11,730, 14,462, 15,128)

Cross reference—Definitions generally, § 1-2.

Sec. 18-2. Care and treatment of animals.

(a) A person who owns, controls, has custody of, impounds or confines, in any place or manner, an animal is guilty of animal neglect if the person does any of the following:

(1) Fails to supply the animal with a sufficient quantity of food and water.

(2) Fails to provide a confined dog or cat with adequate shelter, both in a size appropriate for the animal and in a manner sufficient to protect the animal from inclement weather, including heat, cold and other such weather conditions; fails to provide adequate veterinary care; or tortures, neglects, deprives of necessary sustenance, mutilates, beats, kicks, hits or kills an animal by any means which causes unjustified pain, distress or suffering.

(b) This section does not apply to an institution, as defined in I.C. § 145B.1, or a research facility, as defined in I.C. § 162.2, provided that the institution or research facility performs functions within the scope of accepted practices and disciplines associated with the institution or research facility.

(c) A person who negligently or intentionally commits the offense of animal neglect is guilty of a simple misdemeanor.

(C42, § 114-1; C54, C62, § 5-1; C75, C79, § 7-2; O.10,249; C85, § 7-2; O.11,558; C91, § 7-2)

Sec. 18-3. Sale of fowl as pets or novelties.

No person shall sell or offer for sale, barter or give away baby chicks, ducklings or other fowl as pets or novelties, whether or not dyed, colored or otherwise artificially treated. This section shall not be construed to prohibit the sale or display of natural chicks or ducklings in proper brooder facilities by hatcheries or stores engaged in the business of selling them to be raised for commercial purposes.

(C54, § 5-2.01; O.5785; C62, § 5-2.01; C75, C79, C91, § 7-4)

Sec. 18-4. Agricultural nondomestic animals and exotic animals.

(a) No horse, cow, calf, swine, sheep, goat, llama, camel, ostrich, peacock, chicken, goose, duck or other agricultural animal or any nondomestic animal shall be kept within the city's corporate limits on any lot or parcel of land unless such parcel of land shall be an acreage, except as provided under subsections (f), (g) and (h) of this section and article IV of this chapter.

The area where any such animal is kept on the acreage shall be 75 feet from any neighboring residential dwelling and not located in a front yard area. The keeping of bees in hives is exempted from this section.

(b) No such animal shall be kept on the same lot or premises with any multiple dwelling.

(c) Not more than two such animals may be kept on an acreage, except that one additional animal may be added for each additional acre over one acre. An exception is made for fowl, which may be 25 in number per acre and 50 for each additional acre.

(d) Any animal kept on an acreage shall be kept for personal use only and not for commercial use except as provided in subsections (f) and (g) of this section.

(e) No person having the care of any cow or cattle of any kind, horse, swine, goat or other animal, domestic or nondomestic, shall permit the animal to run at large as defined in subsection 18-55(a) of this chapter within the corporate limits.

(f) Subsections (a), (b), and (d) of this section shall not be deemed to prohibit the keeping or maintaining of any animal which was legally kept upon any land on June 25, 2009, provided no additional animals to those legally kept upon such date shall be placed upon any land on or after June 26, 2009, and any animal which dies, is removed or ceases to be kept or maintained under this section may not be replaced as long as the total number of animals kept exceeds the number allowable under this Code. In order to establish a right to keep animals under this subsection, a person having control over land must make application to the community development department on or before June 30, 2010, upon forms to be provided by the department. To establish that animals were legally kept on land on June 25, 2009, the community development director or the director's designee may make reasonable requests, including a request to inspect land, to verify any claim of exemption.

(g) Subsection (f) of this section notwithstanding, the keeping of animals for commercial or agricultural purposes which was lawful on June 25, 2009, may continue so long as the commercial or agricultural use is not discontinued. In order to establish a right to keep animals for agricultural or commercial purposes under this subsection, a person having control of the land must make application to the community development department on or before June 30, 2010, upon forms to be provided by the department. To establish that animals were legally kept for agricultural or commercial purposes on June 25, 2009, the community development director or the director's designee may make reasonable requests, including a request to inspect land, to verify the claim of exemption.

(h) Small caged animals and fowl such as falcons, pigeons, pheasants, quail, chickens, ducks, geese, rabbits, ferrets and other small animals and fowl which are of such type and nature that state and national associations exist establishing norms for breeding, confining and rearing shall be allowed, provided that:

(1) Cages, hutches, coops, cotes, lofts or other confinement shall be at least 25 feet away from any neighboring residence; such enclosures shall be of sufficient size to house the number of animals or fowl permitted by state or national standards.

(2) The area is maintained free of odors, insects and rodents, and disturbing noises such as crowing, cackling and gobbling, causing no safety or health hazards to the general public or interfering with the enjoyment of life and property by any neighboring resident.

(3) Animals and fowl included in this subsection shall be fed in the confines of their enclosures; all grains and food shall be stored in rodentproof containers.

(4) On any parcel of land less than an acre, such animals shall be limited to two species and 30 in total number, unless by state and national standards more are permitted.

(5) On any parcel of land of one acre or more, such animals shall be limited to six species and 50 in total number for the

first acre and 50 for each additional acre, unless by state and national standards more are permitted.

(6) No animal or fowl under this subsection may be maintained, enclosed or fenced in the front yard of a dwelling or within a dwelling.

(7) The young produced by any animals or fowl of this nature may be maintained with the parent animals for a period of approximately eight weeks but in no case more than ten weeks, unless by state and national standards a longer period is required.

(8) Roosters shall not be permitted under subsection (h) unless written consent to the keeping of roosters is first obtained from each lawful occupant (if not owner occupied) or owner of abutting residences, unless the abutting property is an apartment building consisting of more than four (4) units, in which case written consent of the owner of such apartment building shall be sufficient for the purposes of this subsection.

(9) For purposes of this section, "abutting" means an area of land or a building immediately adjacent to or sharing a common boundary with the rooster owner's property.

(10) A rooster owner who has not received written consent under subsection (h) shall be permitted to maintain only currently owned rooster(s) on their property until December 31, 2026. Upon said date, any rooster(s) on the property or in their possession shall be removed from City of Des Moines corporate limits.

(i) Nothing in subsection (f), (g) or (h) of this section shall be construed as abrogating any requirement in this Code which requires the licensing or permitting of any animal or the keeping thereof.

(j) Except as provided in subsection (f), (g) or (h) of this section, this article shall apply to all persons harboring, any animal in a manner not consistent with this article.

(k) Animals inclusive of fowl maintained for educational purposes by schools, day care centers, vocational agricultural programs and for other public education programs; animals inclusive of fowl maintained for display at Blank Park Zoo, state and county fairs, science center, circuses; primates maintained for research or educational programs by the Iowa Primate Learning Sanctuary; and the bringing in of such animals and fowl on a temporary basis for exhibits or shows are exempt from this section, provided all other requirements under this Code are met.

(l) Any person presently owning or maintaining animals that are not in compliance with this chapter may make application to the city manager or the manager's designee for a variance, provided such application meets the following conditions:

(1) The keeping of such animals has been of long-standing lawful duration, that is, in excess of three years, or is presently under commercial contract if legal nonconforming prior to 2009.

(2) The area where such animals are maintained is so located as to cause no safety or health hazards to the general public or interferes with the enjoyment of life and property by any neighboring resident.

(3) The keeping of roosters must meet the current code requirements of abutting neighbor consent as outlined in section 18-19 of this chapter.

Any such variance is conditioned upon all circumstances for the granting of the variance remaining constant. The city manager or the manager's designee may revoke the variance at any time after notice and opportunity for comment by the applicant, or it is determined that due to changed circumstances, the presence of the animals is causing a safety or health hazard to the general public or interferes with the enjoyment of life and property by any neighboring resident.

(C42, § 114-3; C54, C62, § 5-3; C75, § 7-5; O.9211; C79, C85, § 7-5; O.11,292, 11,558; C91, § 7-5; O.11,730, 13,011, 14,866, 14,904, 16,402)

Sec. 18-5. Trespassing.

No person, while herding or driving any animals mentioned in section 18-4 of this chapter through the city streets, shall permit any of such animals to trespass upon the sidewalk, park or lawn of any private or public property along or adjoining any city street.
(C42, § 114-4; O.5225; C54, C62, § 5-4; C75, C79, C85, § 7-6; O.11,558; C91, § 7-6)

Sec. 18-6. Removal of animal waste.

(a) *Required.* No owner, possessor, or person in charge of a dog, cat, horse or other animal shall fail to clean up or remove immediately any excrement or droppings deposited by such dog, cat, horse or other animal on any public or private property not owned or in control of that owner, possessor or person in charge of such dog, cat, horse or other animal.

(b) *Exceptions.* Subsection (a) of this section does not apply to removal of manure pursuant to section 54-126 of this Code and to a police officer when using a horse for police purposes, provided the police arrange for cleanup of the horse manure at the conclusion of the tour of duty involving the horse.
(C91, § 7-6.01; O.13,195, 13,615)

Sec. 18-7. Construction and cleaning of buildings for housing animals on acreage.

(a) Any building or part thereof used for housing animals permitted on an acreage shall be well ventilated, and its walls, floors and ceilings shall be tight and of such material, satisfactory to the environmental health officer and building official, that they may be readily washed, disinfected and painted.

(b) All enclosed yards, barns, sheds, or other structures used to house animals as permitted under this article shall be maintained clean, free from manure, insects and offensive odors at all times.
(C42, § 42-4; C54, C62, § 5-8; C75, C79, § 7-7; O.9828; C91, § 7-7; O.11,730, 13,011)

Cross reference—Buildings and building regulations, ch. 26.

Sec. 18-8. Dead animals.

(a) No person shall skin animals dying with tuberculosis, anthrax, black leg or other malignant diseases.

(b) No person shall place any dead animal in any street, alley or other public place in the city or allow any dead animal which he or she owned or for which he or she had control to remain in any street, alley or other public place or on the premises of any person within the city for more than five hours. If an animal dies in any street, alley or other public place or on the premises of any person within the city, the person who owned or had possession and control of the animal prior to death shall remove or cause to be removed the carcass within five hours from the time the animal dies and shall have the carcass desiccated or cremated.

(c) The owner, possessor and all persons having knowledge of any dead animal in the city shall report such to the environmental health division, giving the name of the person who owned or had possession or control of the animal prior to its death and the place where the animal may be found. The environmental health division shall immediately notify the person who owned or had possession and control of such animal to cause the animal to be removed and desiccated or cremated as provided by subsection (b) of this section.
(C42, §§ 42-9, 42-10, 42-11; C54, C62, §§ 5-14, 5-15, 5-16; C75, C79, § 7-11; O.9828; C91, § 7-11; O.13,011)

Sec. 18-9. Abandonment.

No person shall abandon any animal within the corporate limits.
(C42, § 114-6.01; O.5506; C54, § 5-18; O.6002; C62, § 5-18; C75, C79, C91, § 7-12)

Sec. 18-10. Causing damage.

No owner of any animal shall allow such animal to cause damage to or interfere with the property of another.
(C75, § 7-12.01; O.9097; C79, C91, § 7-12.01)

Sec. 18-11. Disposition upon owner's request; fee.

An animal may be humanely destroyed by the chief humane officer or other officer of the police department if the owner of the animal requests that such animal be destroyed and signs a release holding the city harmless and certifying ownership of the animal. A fee in the amount set in the schedule of fees adopted by the city council by resolution shall be collected by the animal shelter for this service.

This section is not applicable when a contractor is operating the animal shelter.
(C75, § 7-12.02; O.9097; C79, § 7-12.02; O.9828; C85, § 7-12.02; O.11,558; C91, § 7-12.02; O.14,155, 14,462)

Sec. 18-12. Disposition of disabled animals.

An animal may be humanely destroyed by the chief humane or other officer of the police department if such animal is disabled and unfit for further use and the owner or person in control of the animal requests that the animal be destroyed or there is no known owner or person in control of the animal.
(C75, § 7-12.03; O.9097; C79, § 7-12.03; O.9828; C85, § 7-12.03; O.11,558; C91, § 7-12.03)

Sec. 18-13. Penalty.

Any person who fails to perform an act required by the provisions of this chapter or who commits an act prohibited by the provisions of this chapter shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.
(C54, § 5-48; O.5903; C62, § 5-48; C75, § 7-12.01; O.9097; C75, C79, C91, § 7-12.04; O.11,730, 15,608)

Sec. 18-14. Submission of rabies vaccination certificates by veterinarians.

Each veterinarian within the city limits shall forward to the city clerk's office by the tenth day of each month a copy of each certificate of rabies vaccination issued by the veterinarian during the preceding month. Each certificate of vaccination shall be typed or printed so as to be clearly legible.
(C79, § 7-12.05; O.10,347, 10,491; C91, § 7-12.09; O.13,378; C91, § 7-12.05)

Sec. 18-15. Microchip fee.

A fee in the amount set in the schedule of fees adopted by city council by resolution shall be collected at the animal shelter for placing a microchip in any animal for identification purposes whether requested by the owner or as required by this chapter at sections 18-59 or 18-64.

If a contractor is operating the animal shelter, the microchip fee may be set by the contractor except where the animal is required to be microchipped by this chapter, then the schedule of fees applies. The contractor shall retain all microchip fees scheduled or not.
(O.13,854, 14,155, 14,462, 15,348)

Sec. 18-16. Reserved.

Editor's note—Ord. No. 14,462, § 1, adopted June 6, 2005, repealed § 18-16, which pertained to trap fee and derived from Ord. No. 14,155.

Sec. 18-17. Emergency care fee/reimbursement.

(a) *City veterinary fee.* A fee which is reasonable and customary as determined by the chief of police or the chief's designee shall be collected by the animal shelter staff for emergency care services if such services are performed on an animal by the city veterinarian. In the event emergency care services are performed on an animal through a private source and the City of Des Moines is charged for such services, all expenses of such services shall be reimbursed to the city. Such fees and expenses shall be collected by the animal shelter staff prior to release of the animal from impoundment.

(b) *Contractor veterinary fee.* When the animal shelter is operated by a contractor, the contractor's veterinary fees that are reasonable and customary as approved by the chief of police or the chief's designee may be collected by the animal

shelter staff for emergency care services. Such fees may be collected and retained by the contractor prior to release of the animal from impoundment. In no event will the City of Des Moines pay for veterinary care provided by the contractor's veterinarian.
(O.14,155, 14,462, 15,090)

Sec. 18-18. Animal relinquish fees and trap deposit.

(a) *Animal relinquish fee.* A person may be charged an animal relinquish fee as set in the schedule of fees adopted by city council by resolution to voluntarily give up ownership of their animal. If a contractor is operating the animal shelter, the contractor may charge, collect and retain such fee for ownership of animals relinquished to the contractor.

(b) *Trap deposit.* A person may be charged a refundable trap deposit as set in the schedule of fees for live animal traps for domestic animals. If a contractor is operating the animal shelter, the contractor may charge and collect such deposit.
(O.15,090)

Sec. 18-19. Written consent; revocation.

(a) Written consent as provided in section 18-4, subsection (h) shall be signed by the abutting occupant or owner so consenting and is effective when it is filed with the city clerk.

(b) Except as otherwise provided in subsection (c), written consent is irrevocable by the occupant or owner so consenting.

(c) Written consent is revoked for the purpose of complying with the exceptions of section 18-4, subsection (h) under any of the following circumstances:

(1) A lawful occupant who has given written consent gives up legal possession of the residence or property covered under section 18-4, subsection (h).

(2) A lawful owner of property who has given written consent is divested of all interest in the property by the recordation with the Polk or Warren County Recorder of transfer of legal ownership.

(3) A lawful owner or lawful occupant of property who has given written consent files a signed revocation of written consent with the city clerk prior to the filing of the written consent.

(O.16,402)

Sec. 18-20. Nuisance animals.

(a) It shall be unlawful for the owner, or any person having temporary custody or control, of an animal or animals to allow or fail to restrain the animal(s) from barking, meowing, whining, crowing, or making other sounds common to the species, persistently or continuously for a period of ten consecutive minutes or longer when every such animal is not contained within an enclosure sufficient to baffle such sounds. Sounds described herein that continue for more than ten minutes shall constitute a nuisance under this code.

(b) For the purposes of this section, persistently or continuously shall mean nonstop utterances for ten consecutive minutes with individual interruptions of less than 20 seconds at a time during the ten-minute utterances.

(c) The prohibitions contained in this section shall not apply to any facility operated by or under contract for the state, Polk or Warren Counties, or the City of Des Moines for the purpose of impounding or harboring seized, stray, homeless, abandoned, or unwanted dogs, cats, and other animals; to any veterinary hospital or clinic operated by a veterinarian or veterinarians which operates for such purpose in addition to its customary purposes; or to any facility operated, owned, or maintained by a duly incorporated humane society, animal welfare society, or other nonprofit organization for the purpose of providing for and promoting the welfare, protection, and humane treatment of animals.

(d) Each separate occasion is considered a separate violation. The owner or person having temporary custody or control of the animal(s) may be charged with a violation of this section when either the animal control officer or sworn law enforcement has received, from at least two unrelated adult witnesses from different addresses, or from one adult witness with a

recorded video showing the alleged violation, a sworn affidavit attesting to the commission of a nuisance pursuant to this section, or the animal control officer or law enforcement officer has witnessed the commission of such offense or has other probable cause to believe an offense has occurred. Affidavit(s) attesting to the nuisance must come from residents or business owners/operators within a 1,000-foot radius of the property where the violation occurred. Witness testimony will be required in addition to sworn affidavits if a hearing is required.
(O.16,402)

Sec. 18-21. Interfering with animals prohibited.

(a) No person, other than as designated by the A.H. Blank Park Zoo Director, shall enter or attempt to enter, tamper with, or damage, the fencing and other barriers of the animal enclosures at A.H. Blank Park Zoo.

(b) No person shall cross, attempt to cross, or put themselves, their body parts, or other individuals across any safety barriers at A.H. Blank Park Zoo intended to prevent the animals from coming into contact with the general public.

(c) No person shall place or throw any object(s) into any exhibit or at animals or into the animal enclosures at A.H. Blank Park Zoo.

(d) No person shall feed or attempt to feed any animal at the A.H. Blank Park Zoo, other than as designated by the A.H. Blank Park Zoo Director.

(e) No person shall provoke, agitate, or attempt to provoke or agitate, any of the animals at the A.H. Blank Park Zoo by making unreasonable sounds, gestures, movements or by using any object to touch the animals.
(O.16,429)

Secs. 18-22—18-40. Reserved.

ARTICLE II. DOGS*

Sec. 18-41. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Dog means and includes both male and female animals of the canine species.

Habitual offender means a person who has been convicted of any violation relating to dogs under chapter 18 of the Des Moines Municipal Code three or more times in a five year period except that multiple convictions on violations occurring as a result of a single incident will count as one conviction for purposes of this definition.

Impound or impounded means a dog which is held at the animal shelter for any period of time.

Owner means any person owning, keeping or harboring a dog.

Service dog or service animal means a dog that is individually trained to do work or perform tasks for the benefit of a person with a disability, including a physical, sensory, psychiatric, intellectual, or other mental disability. The crime deterrent effects of an animal's presence and the provision of emotional support, well-being or companionship do not constitute work or tasks for the purposes of this definition.

High risk dog means:

(1) Any dog which has bitten or attacked a human being or domestic animal one or more times, without provocation;

(2) Any dog with a history, tendency or disposition to attack, to cause injury or to otherwise endanger the safety of human beings or domestic animals;

(3) Any dog that snaps, bites, or manifests a disposition to snap or bite;

*__Cross reference—__Dogs at park and recreation facilities, § 74-100.

(4) Any dog that has been trained for dog fighting, animal fighting or animal baiting or is owned or kept for such purposes;

(5) Any dog trained to attack human beings, upon command or spontaneously in response to human activities, except dogs owned by and under the control of the police department, a law enforcement agency of the state or of the United States or a branch of the armed forces of the United States;

(6) Staffordshire terrier breed of dog;

(7) The American pit bull terrier breed of dog;

(8) The American Staffordshire terrier breed of dog; or

(9) Any dog which has the appearance and characteristics of being predominately of the breeds of Staffordshire terrier, American pit bull terrier, American Staffordshire terrier.

(C42, §§ 114-6, 114-9; O.5385, 5506; C54, § 5-19; O.6002; C62, § 5-19; C75, § 7-13; O.9097; C79, § 7-13; O.9828; C85, § 7-13; O.11,095; C91, § 7-13; O.11,914, 15,001, 15,128, 15,348)

Cross reference—Definitions generally, § 1-2.

Sec. 18-42. License required.

The owner of every dog six months old or over, except dogs owned by the operator of a state or federally licensed kennel and kept in that kennel, shall annually obtain a license as provided in this article.

(C42, § 114-10; O.5225, 5385, 5506; C54, C62, § 5-32; O.7499, 8439, 8722; C75, C79, C85, § 7-14; O.11,403; C91, § 7-14; O.13,378)

Sec. 18-43. License fee.

(a) The annual license fee for each dog shall be in the amounts set in the schedule of fees adopted by the city council by resolution. An applicant claiming that such dog is spayed or neutered shall present as evidence a certificate from a qualified veterinarian which contains the name and address of the owner and the name, color, sex and breed of the dog. The proper fee

shall be presented or sent with the application. No license shall be issued until the fee is paid in full.

(b) A dog owner who is 65 years of age or older may, upon application for a dog license, be issued a license for one dog per household for a reduced fee in the amount set in the schedule of fees adopted by city council by resolution. The fee for additional dogs shall be at the full rate.
(C42, §§ 114-10, 114-11; O.5225, 5385, 5506; C54, §§ 5-33, 5-40; O.6005; C62, §§ 5-33, 5-40; O.8089, 8439, 8748; C62, §§ 5-36, 5-40; C75, § 7-15; O.9097, 9376; C79, § 7-15; O.10,347; C85, § 7-15; O.11,403; C91, § 7-15; O.13,378, 14,155, 14,462)

Sec. 18-44. License application; form.

(a) The owner of a dog for which a license is required shall, on or before January 1 each year, apply to the city clerk, his or her designee, or any business in Des Moines approved by the city clerk, for a license for each dog owned by him or her.

(b) Such application for a license may be made after January 1 and at any time for a dog which has come into the possession or ownership of the applicant or which has reached the age of six months after January 1.

(c) Any business in Des Moines that is approved by the city clerk to sell animal licenses may charge an additional service fee in the amount set in the schedule of fees adopted by the city council by resolution. This subsection does not apply to dogs defined as high risk under section 18-41 of this article, nor to applications for transfer of ownership of a dog under section 18-48 of this article, nor to applications for transfer of a license from one city or county to the City of Des Moines under section 18-49 of this article.

For purposes of determining whether a dog is high risk by breed as defined under section 18-41 of this article the opinion of the city veterinarian or a veterinarian who is an agent or employee of a contractor will control.

(d) The owner of any dog defined as high risk under section 18-41 of this article shall comply with section 18-56 of this article at the time an application for license is made under this section

(e) Such application shall be in writing on blanks provided by the city clerk or his or her designee and shall state the breed, sex, age, color, and name of the dog and the address, phone number, and signature of the owner. Such application shall also state the date of the most recent rabies vaccination and the date the dog shall be revaccinated.

(f) An application to license a high risk dog must include, in addition to the information required in subsection (d) of this section, presentation by the applicant of a certificate of insurance issued by an insurance company licensed to do business in this state, providing personal liability insurance coverage as in a homeowner's policy, with a minimum liability amount of $100,000.00 for the injury or death of any person, for damage to property of others and for acts of negligence by the owner or his or her agents, in the keeping or owning of such high risk dog. The certificate shall require notice to the city, in conformity with general city standards for certificates of insurance, if the underlying policy of insurance is cancelled for any reason. In lieu of such a certificate, a copy of a current homeowner's policy designating these requirements shall be sufficient proof of insurance for purposes of this subsection. If a certificate of insurance or policy is not immediately available, a binder indicating the coverage may be accepted for up to 30 days subsequent to the determination that a dog is high risk; however, if after 30 days a certificate of insurance or a policy has not been submitted, the dog shall be deemed unlicensed and subject to sections 18-58 and 18-59, as applicable.
(C62, §§ 5-33, 5-34, 5-35; O.8439; C75, C79, C85, § 7-16; O.10,867, 11,095, 11,403, 11,558; C91, § 7-16; O.11,914, 13,320, 13,378, 14,155, 14,415, 14,462, 15,348)

Sec. 18-44.01. Insurance on high risk dogs not licensed.

The owner of every dog which is defined as high risk under section 18-41 of this article, or

which is both high risk and under six months of age, or is high risk and not licensed shall maintain insurance as set forth in section 18-44(f) of this article.
(O.14,155, 14,677, 15,348)

Sec. 18-45. Tag.

(a) The city clerk or his or her designee shall, upon receipt of the application for a dog license, deliver or mail to the applicant a license which shall be in the form of a metal tag stamped with the following information:

(1) The year for which it is issued.

(2) The name of the city.

(3) The tag number as shown in the records in the office of the city clerk.

(b) The size and shape of the tags shall be changed each year.

(c) The tag shall be attached by the owner to a substantial collar and, during the term of the license, shall be at all times kept on the dog for which the license is issued. Upon the expiration of the license the owner shall remove the tag from the dog.

(d) Upon the filing of an affidavit that the license tag has been lost or destroyed, the owner may obtain another tag on the payment to the city clerk or his or her designee a fee in the amount set in the schedule of fees adopted by the city council by resolution. The city clerk or his or her designee shall enter in the license record the new number assigned.
(C42, § 114-11; O.5225, 5385; C54, § 5-39; O.5903, 6002; C62, § 5-39; O.8439; C62, §§ 5-37, 5-38, 5-39, 5-39.02; C75, § 7-17; O.9097; C79, § 7-17; O.10,347; C85, § 7-17; O.11,403; C91, § 7-17; O.13,378, 14,155, 14,462)

Sec. 18-46. Expiration of license.

All dog licenses shall expire on December 31 of the year of the date of issuance.
(C62, § 5-39; O.8439; C75, C79, C85, § 7-18; O.11,403; C91, § 7-18)

Sec. 18-47. Service dogs.

A person with a disability who owns a service dog shall be issued a dog license for such dog without charge, upon application stating that the dog is required because of a disability and describing what work or task the dog has been trained to perform.
(C62, § 5-40.01; O.7174; C75, C79, C85, § 7-20; O.11,403; C91, § 7-20; O.13,551, 15,001)

Sec. 18-48. Transfer of license on change of ownership and void transfers.

(a) When the ownership of a dog is transferred, the license may be transferred by the city clerk or his or her designee by notation on the license record, giving the name and address of the new owner. The city clerk or his or her designee, when making an ownership transfer, shall collect a fee in the amount set in the schedule of fees adopted by the city council by resolution.

(b) A license tag issued for one dog shall not be transferred to any other dog.

(c) Any attempt to transfer ownership or possession of a dog intended to circumvent, or which has the effect of circumventing, the provisions of this chapter shall be void for purposes of enforcement under this chapter.
(C42, § 114-11; O.5225, 5385; C54, § 5-39; O.5903, 6002; C62, § 5-39; O.8439; C62, § 5-39.01; C75, § 7-21; O.9097; C79, C85, § 7-21; O.11,403; C91, § 7-21; O.14,155, 14,462, 15,348)

Sec. 18-49. Transfer of license on change of residence.

(a) When a dog licensed in one county or city is permanently transferred to this city, the owner shall surrender the original license to the city clerk or his or her designee. The city clerk or his or her designee shall retain the surrendered tag and, without license fee, shall issue a new license tag pursuant to this article.

(b) The city clerk or his or her designee shall note on the license record the fact that the newly issued license tag is issued as a transfer and is in lieu of a surrendered license.
(C85, § 7-22; O.11,403; C91, § 7-22)

Sec. 18-50. Use of license fees collected.

All dog license fees collected by the city shall be credited to and deposited in the general funds of the city to be kept and used for the purpose of enforcing this chapter.
(C42, § 114-12; O.5385; C54, § 5-41; O.6002; C62, § 5-41; C75, § 7-23; O.9097; C79, C85, § 7-23; O.11,558; C91, § 7-23)

Sec. 18-51. License fee delinquency.

(a) Notwithstanding section 18-46 of this article, all fees for dog licenses shall become delinquent on April 1 of the year in which they are due and payable. A penalty in the amount set in the schedule of fees adopted by the city council by resolution shall be added to each unpaid license on and after the delinquent date except where the dog has been newly acquired or is under six months of age.

(b) The delinquent penalty will apply to a newly acquired dog and to a dog at least six months of age if a license is not obtained by the later of April 1 in the year in which the dog is acquired or reaches six months of age, or 30 days after the dog is acquired or reaches six months of age.

(c) No license shall be issued without the payment of the applicable fees. This section shall not be deemed to relieve an owner from criminal liability under section 18-42 of this article.
(C42, § 114-10; O.5225, 5385, 5506; C54, § 5-34; O.5903; C62, § 5-34; O.8089, 8349; C62, § 5-39.03; O.8694; C75, § 7-24; O.9097, 9176; C79, § 7-24; O.10,347, 10,366; C85, § 7-24; O.11,403; C91, § 7-24; O.12,075, 14,155, 14,462)

Sec. 18-52. Rabies vaccination prior to issuance of license.

(a) Before a license is issued for any dog, the owner must present evidence with the application required by section 18-44 of this article that the dog has been vaccinated against rabies. Such evidence shall be a certificate of vaccination signed by a licensed veterinarian, and the certificate shall show that the vaccination is not expired.

(b) The required vaccination shall be an injection of antirabies vaccine approved by the state department of agriculture and land stewardship, and the frequency of revaccination necessary for approved vaccinations shall be as established by such department. The vaccine shall be administered by a licensed veterinarian and shall be given as approved by the state department of agriculture and land stewardship. The veterinarian shall issue a tag with the certificate of vaccination, and such tag shall at all times be attached to the collar of the dog.
(C42, § 114-10; O.5225, 5385, 5506; C54, § 5-36; O.5903; C62, §§ 5-39.05, 5-39.06; O.8439; C75, C79, C85, § 7-25; O.10,916, 11,403; C91, § 7-25; O.13,378)

Sec. 18-53. Penalties.

(a) Notwithstanding any other section of this article, any dog owner who allows the rabies vaccination to lapse at any time during the licensing year shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.

(b) Any person who removes a license tag from a dog prior to the expiration of the license shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.
(C85, § 7-25.01; O.11,403; C91, § 7-25.01; O.15,608)

Sec. 18-54. Records.

The city clerk or his or her designee shall keep record of dog licenses which shall show:

(1) The description of dog as specified in the application, together with the name and address of the owner of the dog.

(2) The date when each license tag is issued and the number on such tag.

(3) The date of the most recent rabies vaccination, and the date the dog shall be revaccinated.

(4) The amount of all fees, licenses, penalties, and costs paid to him or her.

(5) Such other data as the law may require. (C62, § 5-39.04; O.8439; C75, C79, C85, § 7-26; O.11,403; C91, § 7-26; O.13,378)

Sec. 18-55. Running at large.

(a) A dog, properly licensed as required by law, shall not be deemed at large if:

(1) The dog is on the premises of the owner or a person given charge of the dog by the owner and is either:

a. Restrained on those premises by an adequate protective fence or by leash, cord, chain or other similar restraint that does not allow a dog to go beyond the owner's real property line; or

b. At all times within the actual physical presence of and immediately obedient to the commands of the owner or person given charge of the dog by the owner. At no time shall the dog be more than six feet from such person.

(2) The dog is off the premises of the owner and is:

a. On a leash, cord, or chain or other similar restraint not more than six feet in length and under the control of a person competent to restrain and control the dog; or

b. Properly restrained within a motor vehicle.

(3) The dog is properly housed in a veterinary hospital or registered kennel.

(4) The owner and the dog are participating in a regularly scheduled competitive or exhibition event sanctioned or sponsored by a nationally recognized organization, local chapter thereof, or other generally recognized local organization.

(5) The dog and the owner are actively engaged in a generally recognized dog obedience training program or training for a generally recognized kennel club event, provided:

a. The dog is in the actual physical presence of the owner or trainer at all times;

b. The owner or trainer is at no time more than 50 feet from the dog;

c. The dog is immediately obedient to the commands of the owner or trainer; and

d. The owner or trainer has, at all times, on his or her person a leash of sufficient strength to restrain the dog.

(6) The dog and owner, or a person given charge of the dog by the owner, are in a designated off leash area of a city park or other city property, or in other non-city park property, provided:

a. The owner or person in charge of the dog and dog are at all times abiding by all the rules and regulations of such designated off leash area; and

b. The dog is in the actual physical presence of the owner or person given charge of the dog.

c. The dog has a current:

1. Dog park permit which is visible on the owner or person given charge of the dog; and

2. City of Des Moines or other valid government issued dog license from the dog owner's place of residence; and

3. Rabies vaccination.

The license and rabies vaccination tags must be visible on the dog or the owner or person given charge of the dog has such license and proof of rabies vaccination in their possession.

d. In addition to the requirements in subsection (6)a.—c. of this section, high risk dogs must be on a leash in compliance with section 18-56(d) of this chapter and the owner or person given charge of a high risk dog must have a certificate of insurance in their possession which meets the requirements of section 18-44 of this chapter.

(7) The annual license fee for a dog park permit shall be in the amounts set in the schedule of fees adopted by the city council by resolution.

(b) A dog shall be deemed to be at large if it is not properly licensed or if it is not housed, restrained or controlled in one of the methods set forth in subsection (a) of this section.

(c) Notwithstanding any other section of this article, any dog shall be deemed at large at any time when attacking persons, domestic animals, destroying property, or on a public school ground except when under restraint as set out in subsection (a)(2) or when in a designated off leash area in compliance with subsection (a)(6) of this section. Furthermore, any female dog in heat shall be deemed at large at any time except:

(1) When housed in a building which is completely enclosed;

(2) When housed in a veterinary hospital or registered kennel; or

(3) When on the premises of the owner, provided the area on which such dog is located is:

a. Completely enclosed in a locked, enclosed fence, pen or other structure having a height of at least six feet; such fence, pen or structure must have secure sides which are imbedded into the ground, if the bottom of the structure is not integrally connected to the structure; or

b. If the fence, pen or structure is less than six feet in height, it must have a secure top in addition to securely imbedded sides as described in subsection (c)(3)a. of this section.

Nothing in this subsection, however, shall be construed as prohibiting any owner of a female dog in heat from walking such dog with a leash, cord, chain or other similar restraint not more than six feet in length or from transporting such dog within a motor vehicle.

(d) No owner of any dog shall permit such dog to be at large at any time.

(C42, §§ 114-5, 114-6, 114-9; O.5385, 5506; C54, §§ 5-19, 5-20; O.6002, 6234; C62, §§ 5-19, 5-20; O.7499; C75, § 7-27; O.9098, 9376; C79, C85, § 7-27; O.10,855, 10,867, 10,886, 11,095; C91, § 7-27; O.11,807, 15,024, 15,348)

Sec. 18-56. Confinement of high risk dogs.

(a) All high risk dogs shall be securely confined within an occupied house or residence or in a securely enclosed and locked pen or kennel, except when leashed as provided in this section. Such pen, kennel or structure must have secure sides and a secure top attached to the sides or, in lieu of a top, walls at least six feet in height and at least six feet taller than any internal structure.

(b) All pens or other structures designed, constructed or used to confine high risk dogs must be locked with a key or combination lock when such animals are within the structure. Such structure must have a secure bottom, floor or foundation attached to the sides of the pen, or the sides of the pen must be embedded in the ground no less than two feet so as to prevent digging under the walls by the confined dog.

(c) All structures erected to house high risk dogs must comply with all city zoning, planning and design, and building regulations. All such structures must be adequately lighted and ventilated and kept in a clean and sanitary condition. No high risk dog may be kept on a porch, patio or in any part of a house or structure that would allow the dog to exit such building on its own volition.

(d) No person shall permit a high risk dog to go outside its kennel or pen unless such dog is securely leashed with a leash no longer than six feet in length. No person shall permit a high risk dog to be kept on a chain, rope or other type of

leash outside its kennel or pen unless both the dog and the leash are under the actual physical control of a person 18 years of age or older.

(e) Such dogs may not be leashed to inanimate objects such as trees, posts, buildings, or any other object or structure.

(f) Violation of this section is a misdemeanor. (C85, § 7-27.01; O.11,095, 11,558; C91, § 7-27.01; O.15,348, 15,819)

Sec. 18-57. High risk dogs not properly confined/leashed.

A high risk dog which is found more than twice not to be confined or leashed as required by this article shall be required to be destroyed except as provided in section 18-66 of this chapter. (C85, § 7-27.02; O.11,095; C91, § 7-27.02; O.14,415, 14,677, 14,951, 15,348)

Sec. 18-58. Unlicensed high risk dogs.

All unlicensed high risk dogs shall be deemed illegal and shall be destroyed except as provided in section 18-66 of this chapter. This section shall not apply to a dog which, upon initial notice to its owner, the owner agrees to properly license and confine or to a dog for which a hearing has been requested under this article to determine if it is high risk until there has been a final decision on the question raised at hearing at which time the owner may, if the dog is found high risk, properly license and confine the dog. (C85, § 7-27.03; O.11,095; C91, § 7-27.03; O.14,677, 14,951, 15,128, 15,348)

Sec. 18-59. Seizure, impoundment and disposition of high risk dogs.

(a) Upon complaint or reasonable suspicion that a particular dog is a high risk dog, the chief humane officer may cause the matter to be investigated. If after investigation, the chief humane officer determines that a particular dog is a high risk dog as defined in this chapter, the chief humane officer shall declare such dog to be a high risk dog.

(b) Notice that a dog has been declared a high risk dog shall be promptly served upon an owner of the dog, if known, in one of the following ways:

(1) By personal service upon an owner of the dog, if known.

(2) If notice cannot be conveniently served on an owner of the dog within the city boundaries, then notice may be served by service upon any adult residing at the premises where the dog is regularly kept or by posting on those premises if no resident adult is present to accept service.

(3) If notice cannot be conveniently served on an owner of the dog within the city boundaries and the dog is not regularly kept at known location within the city, then service may be made upon the owner by any reasonable means. Such notice, if mailed, shall not be considered served until received or rejected by the owner.

The notice shall include the following: a description of the dog and the basis for the declaration that the dog is high risk, notice that the owner is required to license, insure and confine the dog at all times as required by this article, and notice that the declaration that the dog is high risk may be appealed by filing a written notice of appeal with the city clerk within three business days of the date the notice is served.

(c) Any person owning or having a right to possession of the dog in question may appeal the declaration that the dog is high risk pursuant to the administrative appeal process set forth in chapter 3 of this Code by filing a written notice of appeal with the city clerk within three business days of service of the notice of such declaration. Failure to timely file a written notice of appeal shall constitute a waiver of any right to contest the declaration that the dog is high risk.

(d) The chief humane officer may seize and impound any dog which has been declared to be a high risk dog pursuant to this section unless the dog is licensed and insured in conformance with this article and the owner has demonstrated to the reasonable satisfaction of the chief humane

officer a willingness and ability to keep the dog confined. A dog so seized and not redeemed shall be impounded for a period of seven days, or until seven days after service of the decision on appeal if the declaration that the dog is high risk is appealed and upheld. If the declaration that the dog is high risk is reversed on appeal, the dog shall be immediately released to the owner or the

owner's representative. However, if at the end of the impoundment period the declaration that the dog is high risk remains in effect and the owner has not redeemed the dog or petitioned the district court for a review of the declaration that the dog is high risk, the chief humane officer shall cause the dog to be destroyed except as provided in section 18-66 of this chapter.

(e) Any dog that has been declared to be high risk and that is under impoundment may be redeemed by the owner only if the dog is not under quarantine, and the owner has licensed, insured and demonstrated to the reasonable satisfaction of the chief humane officer a willingness and ability to confine the dog as required by this article for a high risk dog. All costs of such impoundment or quarantine shall be paid by the owner if the dog is determined to be high risk. If the dog is not determined to be high risk, the owner shall only pay those costs attributable to initial confinement prior to notice or costs of any required quarantine.

(f) All dogs declared to be high risk shall have an electronic identification device placed under the dog's skin prior to release from impound or quarantine. Prior to the release of a high risk dog from any impoundment or quarantine, the owner shall pay the fee in the amount set in the schedule of fees adopted by the city council by resolution for the installation of the electronic identification device. If a contractor implants an electronic identification device in a dog pursuant to this section, the contractor shall retain the fee.

(g) Failure to comply with an order of the chief humane officer issued pursuant to this section and not appealed or if affirmed on appeal shall constitute a misdemeanor.
(C85, § 7-27.04; O.11,095, 11,401; C91, § 7-27.04; O.13,320, 13,854, 14,462, 14,677, 14,951, 15,128, 15,348)

Sec. 18-59.01. Meeting with chief humane officer prior to release of impounded dog that has bitten.

After a dog has bitten a second time where any provision of this chapter has been violated, an owner may be required to meet with the chief humane officer to review the incident and the applicable city ordinances. Failure to meet as required by the chief humane officer pursuant to this section shall result in the dog being unredeemed and the chief humane officer may proceed to disposition of the unredeemed dog pursuant to sections 18-59 or 18-65 of this chapter as applicable.
(O.15,348)

Sec. 18-60. Operation of animal shelter.

Any public or municipal animal shelter established and maintained by the city shall be conducted and operated by the police department, or a contractor, under the supervision, direction, and control of the city manager, or as specified by contract. It shall be the duty of the city manager, his or her designee, or a contractor to cause such shelter to be kept in a sanitary condition and free from offensive odors. It shall be the further duty of the city manager, his or her designee, or a contractor to provide for adequate and wholesome food for animals impounded therein, to provide careful and humane treatment toward such animals, to isolate diseased animals, and to provide for humane destruction of animals when necessary.
(C42, § 114-7; O.5225, 5385; C54, §§ 5-23, 5-24; O.6002; C62, §§ 5-23, 5-24; C75, § 7-28; O.9097; C79, § 7-28; O.9828; C85, § 7-28; O.11,558; C91, § 7-28, 14,462)

Sec. 18-61. Use of impounded dogs for food or vivisection.

No person employed in the police department and no person employed by or connected with the animal shelter or any society or organization operating or maintaining such shelter under lease or contract with the city shall sell, give away or dispose of, through any pretext or by any device or means whatsoever, any dog impounded in such pound to any person for the purpose of using such dog as food or for the purpose of medical experimentation, unless the institution desiring such dog for medical experimentation is duly approved and authorized by the state to conduct such experimentation or for any other purpose, except for pets and watchdogs and except, further, that

any dog restrained or impounded may be redeemed by the owner of the animal as provided in this article.
(C42, § 114-7; O.5225, 5385; C54, § 5-25; O.6002; C62, § 5-25; C75, C79, § 7-29; O.9828; C85, § 7-29; O.11,558; C91, § 7-29)

Sec. 18-62. Notice of impoundment.

The police department, acting under the direction of the city manager, shall cause to be taken up and impounded any dog found to be at large within the city, as defined in this article. The city manager, his or her designee, or a contractor shall give notice thereof in not less than two days to the owner, if such owner's name and address appear on the dog's collar or is otherwise known.
(C42, § 114-8; O.5225, 5385; C54, § 5-26; O.6002; C62, § 5-26; O.7464; C75, C79, § 7-30; O.9828; C91, § 7-30, 14,462)

Sec. 18-63. Impoundment period.

Every dog found without a license, collar or similar identification shall be kept for not less than three days after being impounded unless sooner redeemed by the owner in accordance with this article. Dogs with identification shall be kept not less than seven days after being impounded unless sooner redeemed by the owner in accordance with this article. Any owner given notice by the police department within 48 hours prior to the appropriate expiration date will be allowed 48 hours in which to redeem the dog.
(C42, § 114-8; O.5225, 5385; C54, § 5-27; O.6002; C62, § 5-27; O.7464; C75, § 7-31; O.9097, 9463; C79, § 7-31; O.9828; C91, § 7-31)

Sec. 18-64. Redemption of impounded dog.

(a) *Licensed dog.* The owner of an impounded licensed dog which is not required to be held for observation as provided by section 18-167 may claim and redeem such animal upon payment of the impounding and daily boarding fees in the amounts set in the schedule of fees adopted by the city council by resolution. If, within a year's time, the same dog is impounded a second or more times, the impounding fee shall be increased incrementally to the amounts set in the schedule of fees adopted by the city council by resolution in addition to the daily boarding fee.

(b) *Unlicensed dog.* The owner of an impounded unlicensed dog which is not required to be held for observation as provided by section 18-167 may claim and redeem such animal upon payment of the impounding and boarding fees in the amounts set in the schedule of fees adopted by the city council by resolution if redeemed within 48 hours and upon a showing of the appropriate license for such dog. However, if the owner has fulfilled all requirements to have an impounded dog licensed except the animal has not received the required vaccination, upon such showing the chief humane officer or other police department official may, after payment of the required fees, release such dog upon the condition that the dog is vaccinated by a licensed veterinarian, or other person authorized by state statute, within 24 hours of such release and that a certificate of such vaccination is furnished to the chief humane officer or other police department official to entitle the owner to the issuance of the license tag for such dog. It shall be the duty of the chief humane officer or other police department official to ascertain the name and address of the veterinarian to which such dog will be taken by the owner for vaccination and to make it known to the police department if proof of such vaccination is not furnished within three days after the conditional release of the dog to the owner. If proof of vaccination is not provided within three days, the police department may immediately pick up and impound such dog and the owner shall be guilty of a simple misdemeanor.

(c) *Processing fee.* A contractor may collect and retain a processing fee for each dog redeemed in an amount not greater than set in the schedule of fees adopted by the city council by resolution.

(d) *Habitual offender fee.* A habitual offender may claim and redeem their dog upon payment of the impound and boarding fees as required under this section plus an additional habitual offender impound fee in the amount set in the schedule of fees adopted by the city council by resolution.

(e) *Microchip required and fee.* All dogs impounded shall have an electronic identification device, otherwise known as a microchip, placed under the dog's skin prior to release from impound and the owner shall pay the fee in the amount set in the schedule of fees adopted by the city council by resolution for the installation of the electronic identification device. If a contractor implants an electronic identification device in a dog pursuant to this section, the contractor shall retain the fee.
(C42, § 114-8; O.5225, 5385; C54, §§ 5-28, 5-29; O.6002, 6034; C62, §§ 5-28, 5-29; O.7499, 7769; C75, § 7-32; O.9097, 9376; C79, § 7-32; O.9828; C85, § 7-32; O.11,031, 11,446; C91, § 7-32; O.12,075, 14,155, 14,462, 15,348)

Sec. 18-65. Disposition of unredeemed dogs.

(a) *Chief humane officer's discretion.* After the expiration of the appropriate impoundment period, as provided in this article, unless the animal shelter is operated by a contractor, the chief humane officer may do any of the following:

(1) Allow adoption pursuant to subsection (b) of this section;

(2) Sell the dog for an amount set in the schedule of fees adopted by the city council by resolution to any nonprofit corporation which provides for care and adoption of dogs and offers animal cremation services;

(3) Humanely destroy the dog; or

(4) Sell the dog for an amount as allowed by I.C. § 145B.4 for scientific research pursuant to section 18-61 of this article.

(b) *Adoption.* A person seeking to adopt a dog shall:

(1) File a form as prescribed by the chief of police, which shall identify the dog desired for adoption; if the same dog is identified for adoption by more than one person, the form filed first in time with the chief humane officer shall be honored.

(2) Pay an adoption fee in the amounts set in the schedule of fees adopted by the city council by resolution which fee shall include the cost of a city dog license and vaccinations as required by this article and surgical sterilization.

(3) If a dog is too young to submit to vaccinations or to surgical sterilization, the person shall agree in writing to surgical sterilization of the adopted dog within a designated time period. Upon submission of written proof of compliance from a veterinarian, the amount set in the schedule of fees adopted by the city council by resolution shall be refunded to the person adopting the dog. Any person who fails to comply with such an agreement shall be guilty of a simple misdemeanor, and the chief humane officer or his or her designee shall be authorized to seize and impound the dog for the purpose of administering vaccinations and surgical sterilization as necessary.

(4) The chief of police is authorized to promulgate further rules to effect such an adoption process.

(5) The provisions of this section relating to the adoption of unredeemed dogs shall also apply to adoption agencies not qualified under subsection (a)(2) of this section.

(6) The city shall reserve the right to reject any and all adoptions for any purpose the city deems necessary, including but not limited to health concerns.

(7) No dog shall be put up for adoption if a request has been made for that dog for scientific research by an institution authorized by the state department of public health pursuant to I.C. § 145B.1 et seq.

(8) The city takes no responsibility nor makes any warranties or assumes any liability for the condition of the dog adopted.

(c) *Disposition when contractor operates the animal shelter.* Upon a written release of any dog by the chief humane officer or his or her designee, a contractor shall take possession and ownership of any unredeemed dog.
(C42, § 114-8; O.5225, 5385; C54, § 5-30; O.6002, 6034; C62, § 5-30; O.7464; C75, § 7-33; O.9097,

9175, 9376, 9463; C79, § 7-33; O.9828; C85, § 7-33; O.11,558; C91, § 7-33; O.12,075, 13,111, 13,319, 13,607, 14,155, 14,462)

Sec. 18-66. High risk dogs by breed evaluated for adoption.

Notwithstanding sections 18-57, 18-58 and 18-59 a high risk dog by breed as defined in this chapter shall not be destroyed until after it is evaluated for adoption by the contractor. If contractor determines the dog is not fit for adoption it shall be destroyed. If contractor determines the dog is fit for adoption then the dog shall be released to the contractor for adoption to a person who does not reside with the owner at the time of impoundment. If the owner at the time of impoundment or someone residing with the owner is found to have custody, control, or is otherwise harboring the dog after its adoption pursuant to this section, the dog shall be immediately impounded and destroyed.
(O.14,951, 15,348)

Secs. 18-67—18-90. Reserved.

ARTICLE III. CATS

Sec. 18-91. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Cat means and includes both male and female animals of the species Felis catus, altered or not.

Chief of police means the legally designated chief of the police department or a designated representative.

Community cat means a cat that meets the requirements of subsection 18-109(a) of this article.

Habitual offender means a person who has been convicted of any violation relating to cats under Chapter 18 of the Des Moines Municipal Code three or more times in a five year period except that multiple convictions on violations occurring as a result of a single incident will count as one conviction for purposes of this definition.

Impound or impounded means a cat which is held at the animal shelter for any period of time.
(C75, § 7-38; O.9463; C79, C85, § 7-38; O.10,886; C91, § 7-38; O.13,133, 15,348, 15,735)

Cross reference—Definitions generally, § 1-2.

Sec. 18-92. License required.

The owner of every cat six months old or over, except cats owned by the operator of a state commercial establishment pursuant to I.C. § 162.1 et seq. or a federally licensed kennel and kept in that commercial establishment or kennel, shall annually obtain a license as provided in this article.
(C75, § 7-39; O.9463; C79, C91, § 7-39; O.13,133)

Sec. 18-93. Amount of license fee.

(a) The annual license fee for each cat shall be in the amounts set in the schedule of fees adopted by the city council by resolution. An applicant claiming that such cat is spayed or neutered shall present as evidence a certificate from a licensed veterinarian which contains the name, address and phone number of the owner and the name, color, sex and breed of the cat. The proper fee shall be presented or sent with the application. No license shall be issued until the fee is paid in full.

(b) A cat owner who is 65 years of age or older may, upon application for a cat license, be issued a license for one cat per household for a reduced fee in the amount set in the schedule of fees adopted by the city council by resolution. The fee for additional cats shall be at the full rate.
(C75, § 7-40; O.9463; C79, C91, § 7-40; O.13,133, 13,378, 14,155, 14,462)

Sec. 18-94. License application; form.

(a) The owner of a cat for which a license is required shall, on or before January 1 each year, apply to the city clerk, his or her designee, or any business in Des Moines approved by the city clerk, for a license for each cat owned by him or her.

(b) Such application for a license may be made after January 1 and at any time for a cat which has come into the possession or ownership of the applicant or which has reached the age of six months after January 1.

(c) Any business in Des Moines that is approved by the city clerk to sell animal licenses may charge an additional service fee in the amount set in the schedule of fees adopted by the city council by resolution. This subsection does not apply to applications for transfer of ownership under section 18-97 of this article.

(d) Such application shall be in writing on a form provided by the city clerk or his or her designee and shall state the breed, sex, age, color, and name of the cat and the name, address, phone number and signature of the owner. Such application shall also state the date of the most recent rabies vaccination and the date the cat will be revaccinated.
(C75, § 7-41; O.9463; C79, § 7-41; O.9828; C91, § 7-41; O.13,133, 13,378, 14,155, 14,462)

Sec. 18-95. Tag.

(a) The city clerk or his or her designee shall, upon receipt of the application for a cat license, deliver or mail to the applicant a license which shall be in the form of a metal tag stamped with the following information:

(1) The year for which it is issued.

(2) The name of the city.

(3) The tag number as shown in the records in the office of the city clerk.

(b) The size and shape of the tags shall be changed each year.

(c) A permanent spay/neuter tag shall also be issued to every applicant who has provided sufficient proof of spaying or neutering.

(d) The tags shall be attached by the owner to a substantial collar or harness and, during the term of the license, shall be at all times kept on the cat for which the license is issued. Upon the expiration of the license, the owner shall remove the tag from the cat, except for the spay/neuter tag which shall be displayed for the life of the cat.

(e) Upon the filing of an affidavit that the license tag or spay/neuter tag has been lost or destroyed, the owner may obtain another license or a spay/neuter tag on the payment of a fee in the amount set in the schedule of fees adopted by the city council by resolution to the city clerk or his or her designee. The city clerk or his or her designee shall enter in the license record the new number assigned.
(C75, § 7-42; O.9463; C79, § 7-41; O.9828; C85, § 7-42; O.11,558; C91, § 7-42; O.12,075, 13,133, 13,378, 14,155, 14,462)

Sec. 18-96. Expiration of licenses.

All cat licenses shall expire on December 31 of the year of the date of issuance.
(C75, § 7-43; O.9463; C79, § 7-43; O.9828; C85, § 7-43; O.11,558; C91, § 7-43; O.12,075, 13,133)

Sec. 18-97. Transfer of license on change of ownership and void transfers.

(a) When the ownership of a cat is transferred, the license may be transferred by the city clerk or his or her designee by notation on the license record, giving the name, address and phone number of the new owner. The city clerk or his or her designee, when making an ownership transfer, shall collect a fee in the amount set in the schedule of fees adopted by the city council by resolution.

(b) A license tag issued for one cat shall not be transferred to any other cat.

(c) Any attempt to transfer ownership or possession of a cat intended to circumvent, or which has the effect of circumventing, the provisions of this chapter shall be void for purposes of enforcement under this chapter.
(C91, § 7-43.01; O.13,133, 13,378, 14,155, 14,462, 15,348)

Sec. 18-98. Use of license fees collected.

All cat license fees collected by the city shall be credited to and deposited in the general funds of the city.
(C91, § 7-43.02; O.13,133)

Sec. 18-99. License fee delinquency.

(a) A penalty in the amount set in the schedule of fees adopted by the city council by resolution shall be added to each unpaid cat license on April 1 of the year in which it is due and payable except where the cat has been newly acquired or is under six months of age on April 1 of the same year. Nothing in this section shall preclude the issuance of a criminal charge for failure to comply with any applicable section of this chapter.

(b) The penalty will apply to a newly acquired cat and to a cat at least six months of age if a license is not obtained by the later of April 1 in the year in which the cat is acquired or reaches six months of age, or 30 days after the cat is acquired or reaches six months of age.
(C91, § 7-43.03; O.13,133, 14,155, 14,462)

Sec. 18-100. Rabies vaccination prior to license issuance.

(a) Before a license is issued for any cat, the owner must present evidence with the application required by section 18-94 of this article that the cat has been vaccinated against rabies. Such evidence shall be a certificate of vaccination signed by a licensed veterinarian, and the certificate shall show that the vaccination is not expired.

(b) The required vaccination shall be an injection of antirabies vaccine approved by the state department of agriculture, and the frequency of revaccination necessary for approved vaccinations shall be as established by such department. The vaccine shall be administered by a licensed veterinarian and shall be given as approved by the state department of agriculture. The veterinarian shall issue a tag with the certificate of vaccination, and such tag shall at all times remain in the possession of the owner of the cat. Nothing in this section shall be deemed to require that the cat wear the rabies tag.
(C75, § 7-40; O.9463; C79, § 7-40; C91, § 7-43.04; O.13,133, 13,378)

Sec. 18-101. Penalties.

(a) Notwithstanding any other section of this article, any owner who allows the rabies vaccination to lapse at any time during the licensing year shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.

(b) The removal of a license tag or a spay/neuter tag from a cat prior to the expiration of that tag by any person who is not the owner thereof or the agent of such owner shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.
(C91, § 7-43.05; O.13,133, 14,155, 15,608)

Sec. 18-102. Records.

The city clerk or his or her designee shall keep a record of cat licenses which shall show the following:

(1) The description of the cat as specified in the application, and the name and address of the owner of the cat.

(2) The date when each license tag is issued and the number on such tag.

(3) Such other data as the law may require.
(C91, § 7-43.06; O.13,133, 13,378)

Sec. 18-103. Running at large.

(a) A cat, properly licensed and displaying such license as required by law, shall not be deemed at large if:

(1) The cat is spayed or neutered and is displaying a spay/neuter tag.

(2) The cat is on or off the premises of the owner and is properly restrained within a motor vehicle.

(3) The cat is properly housed in a veterinary hospital or registered kennel or commercial establishment as defined by I.C. § 162.1 et seq.

(4) The cat is not causing damage or interfering with property as prohibited by section 18-10 of this chapter.

(5) The owner and the cat are participating in a regularly scheduled competitive or

exhibition event sanctioned or sponsored by a nationally recognized organization, local chapter thereof, or other generally recognized local organization, provided that the cat is in the actual physical presence of the owner or trainer at all times.

(b) A community cat shall not be deemed at large unless the cat has been deemed a nuisance by the chief humane officer pursuant to section 18-109(b), or is visibly sick or injured.

(c) A cat that has an owner shall be deemed to be at large if it is not properly licensed or if it is not housed, restrained or controlled in one of the methods set forth in subsection (a) of this section.
(C91, § 7-43.07; O.13,133, 15,735)

Sec. 18-104. Use of impounded cats for food or vivisection.

No person employed in the police department and no person employed by or connected with the animal shelter or any society or organization operating or maintaining such shelter under lease or contract with the city shall sell, give away or dispose of, through any pretext or by any device or means whatsoever, any cat impounded in such pound to any person for the purpose of using such cat as food or for the purpose of medical experimentation unless the institution desiring such cat for medical experimentation is duly approved and authorized by the state to conduct such experimentation or for any other purpose except for pets, and except, further, that any cat restrained or impounded may be redeemed by the owner of the animal as provided in this article.
(C91, § 7-43.08; O.13,133)

Sec. 18-105. Notice of impoundment.

The police department, acting under the direction of the city manager, shall cause to be taken up and impounded any cat found to be at large within the city, as defined in this article. The city manager, his or her designee, or a contractor shall give notice thereof in not less than two days to the owner if such owner's name and address appear on the cat's collar or harness or is otherwise known. No notice is required for impoundment of a community cat.
(C91, § 7-43.09; O.13,133, 14,462, 15,735)

Sec. 18-106. Impoundment period.

Every cat found without a license and a collar or harness shall be kept for not less than three days after being impounded unless sooner redeemed by the owner in accordance with this article. A cat with identification shall be kept not less than seven days after being impounded unless sooner redeemed by the owner in accordance with this article. Any owner given notice by the police department within 48 hours prior to the appropriate expiration date will be allowed an additional 48 hours in which to redeem the cat. An impounded community cat may be processed immediately for disposition as allowed under subsection 18-108(d) of this chapter.
(C75, § 7-41; O.9463; C79, § 7-41; O.9828; C91, § 7-43.10; O.13,133, 15,735)

Sec. 18-106.01. Meeting with chief humane officer prior to release of impounded cat.

After a cat has been impounded a second time where any provision of this chapter has been violated, an owner may be required to meet with the chief humane officer to review the incident and the applicable city ordinances. Failure to meet as required by the chief humane officer pursuant to this section shall result in the cat being unredeemed and the chief humane officer may proceed to disposition of the unredeemed cat pursuant to section 18-108 of this chapter.
(O.15,348)

Sec. 18-107. Redemption of impounded cat.

(a) *Licensed cat.* The owner of an impounded licensed cat which is not required to be held for observation, as provided by section 18-167 of this chapter, may claim and redeem such animal upon payment of the impounding and daily boarding fees in the amounts set in the schedule of fees adopted by the city council by resolution. If, within a year's time, the same cat is impounded a second or more times, the impounding fee shall

be increased incrementally to the amounts set in the schedule of fees adopted by the city council by resolution in addition to the daily boarding fee, and the owner shall agree in writing to surgical sterilization of the cat within a designated time period; any person who fails to comply with such an agreement shall be guilty of a simple misdemeanor.

(b) *Unlicensed cat.* The owner of an impounded unlicensed cat which is not required to be held for observation, as provided by section 18-167 of this chapter, may claim and redeem such animal upon payment of the impounding and boarding fees in the amounts set in the schedule of fees adopted by city council by resolution and, if applicable, signing a sterilization agreement, as provided in subsection (a) of this section, if redeemed within 48 hours and upon a showing of the appropriate license for such cat. If the owner has fulfilled all requirements to have an impounded cat licensed except the animal has not received the required vaccination, upon such showing the chief humane officer or other police department official may, after payment of the required fees, release such cat upon the condition that the cat is vaccinated by a licensed veterinarian, or other person authorized by state statute, within 24 hours of such release and that a certificate of such vaccination is furnished to the chief humane officer or other police department official to entitle the owner to the issuance of the license tag for such cat. It shall be the duty of the chief humane officer or other police department official to ascertain the name and address of the veterinarian to which such cat will be taken by the owner for vaccination and to make it known to the police department if proof of such vaccination is not furnished within three days after the conditional release of the cat to the owner. If proof of vaccination for the cat is not provided within three days after the conditional release as stated in this subsection, the cat may be impounded and the owner shall be guilty of a simple misdemeanor.

(c) *Processing fee.* A contractor may collect and retain a processing fee for each cat redeemed in an amount not greater than set in the schedule of fees adopted by the city council by resolution.

(d) *Habitual offender fee.* A habitual offender may claim and redeem their cat upon payment of the impound and boarding fees as required under this section plus an additional habitual offender impound fee in the amount set in the schedule of fees adopted by the city council by resolution.

(C75, § 7-42; O.9463; C79, § 7-41; O.9828; C85, § 7-42; O.11,558; C91, § 7-42; O.12,075; C91, § 7-43.11; O.13,133, 14,155, 14,462, 15,348)

Sec. 18-108. Disposition of unredeemed cats.

(a) *Chief humane officer's discretion.* After the expiration of the appropriate impoundment period, as provided in this article, unless the animal shelter is operated by a contractor, the chief humane officer may do any of the following:

(1) Allow adoption pursuant to subsection (b) of this section;

(2) Sell the cat for an amount set in the schedule of fees adopted by the city council by resolution to any nonprofit corporation which provides for care and adoption of cats and offers animal cremation services;

(3) Humanely destroy the cat; or

(4) Sell the cat for purposes of scientific research for an amount set in the schedule of fees adopted by the city council by resolution to an institution duly approved and authorized by the state to conduct such research.

(b) *Adoption.* A person seeking to adopt a cat shall:

(1) File a form as prescribed by the chief of police, which shall identify the cat desired for adoption; if the same cat is identified for adoption by more than one person, the form filed first in time with the chief humane officer shall be honored.

(2) Pay an adoption fee in the amounts set in the schedule of fees adopted by the city council by resolution which fee shall include the cost of a city cat license and any vaccinations as required by this article and surgical sterilization.

(3) If a cat which is too young to submit to vaccinations or to surgical sterilization, the person shall agree in writing to surgical sterilization of the adopted cat within a designated time period; upon submission of written proof of compliance from a veterinarian, the amount set in the schedule of fees adopted by the city council by resolution shall be refunded to the person adopting the cat. Any person who fails to comply with such an agreement shall be guilty of a simple misdemeanor, and the chief humane officer or his or her designee shall be authorized to seize and impound the cat for the purpose of administering vaccinations and surgical sterilization as necessary.

(4) The chief of police is authorized to promulgate further rules to effect such an adoption process.

(5) The city shall reserve the right to reject any and all adoptions for any purpose the city deems necessary, including but not limited to health concerns.

(6) The city takes no responsibility nor makes any warranties or assumes any liability for the condition of the cat adopted.

(7) The subsections of this section relating to adoption of unredeemed cats shall also apply to adoption agencies not qualified under subsection (a)(2) of this section.

(c) *Disposition when contractor operates the animal shelter.* Upon a written release of any cat by the chief humane officer or his or her designee, a contractor shall take possession and ownership of any unredeemed cat or community cat.

(d) *[Community cats.]* Community cats may be processed for disposition under any options, except adoption, stated under this section 18-108 and in addition a community cat may be returned to the area where captured unless the property owner or the caretaker of the property where the cat was captured requests that the cat not be returned, or if the cat is too sick or injured to be returned in the opinion of a veterinarian.
(C75, § 7-43; O.9463; C79, § 7-43; O.9828; C85, § 7-43; O.11,558; C91, § 7-43; O.12,075, 13,111; C91, § 7-43.12; O.13,133, 13,319, 13,607, 14,155, 14,462, 15,735)

Sec. 18-109. Community cats.

(a) *Requirements.* Community cats shall be allowed as free roaming cats if all the following are met:

(1) no person owns the cat,

(2) cat has been assessed by a veterinarian and deemed healthy,

(3) cat has been spayed or neutered,

(4) cat has been vaccinated for rabies, feline rhinotracheitis, calcivirus, and panleukopenia, and reasonable attempts to revaccinate cats in accordance with the directions of a veterinarian,

(5) cats must be ear tipped by the veterinarian making the health assessment and after determining the cat is spayed or neutered, has been properly vaccinated, and has no known owner.

(b) *Nuisance.* Community cats that create a nuisance may be captured and impounded. For the purpose of this section "nuisance" shall be defined as anything which interferes with the enjoyment of life or property. The chief humane officer may determine if a community cat is a nuisance and shall use information obtained from citizens complaining about a community cat and his/her expertise to determine if a community cat is a nuisance.

(c) *Returning community cat to area.* A community cat shall be returned to the area where it was captured unless the property owner or the caretaker of the property where the cat was captured requests that the cat not be returned, or the cat is sick or injured.

(d) *Liability.* The city shall have no liability for the disposition of any community cat.
(O.15,735)

Secs. 18-110—18-135. Reserved.

ARTICLE IV. PET ANIMALS

Sec. 18-136. Types permitted.

The following animals may be owned per property as pets under the following conditions:

(1) A total of six cats and dogs, not more than three of which may be dogs, and

which are owned and maintained in compliance with the sections of this chapter relating to such animals.

(2) Rabbits not to exceed three in number, maintained in a hutch or other type of enclosure.

(3) Domestic poultry and fowl, that is poultry and fowl ordinarily raised for production of eggs or meat, not to exceed two in number considered together, maintained at all times in a pen and/or coop. Except as allowed under section 18-4 of this chapter, roosters shall be prohibited.

(4) Vietnamese potbellied pigs, Asian potbellied pigs or potbellied pigs not to exceed three in number of the types considered together.

(5) Pygmy goats, not to exceed three in number.

(6) The young produced by any pets permitted herein may be maintained with the parent animals for a period of approximately eight weeks but in no case longer than ten weeks.

(7) A waiver of the three dog limit set in subsection (1) of this section may be granted by the city clerk, or his/her designee, to allow for one additional dog under the following conditions:

a. The dog's full grown weight is no more than 20 pounds as certified to by a veterinarian,

b. The owner provides a current rabies vaccination certificate for the dog,

c. The owner provides proof the dog has been spayed or neutered, and

d. No more than two cats are owned on the property subject to the waiver.

(C91, § 7-53; O.11,730, 12,075, 13,722, 14,420, 16,402)

Sec. 18-137. Enclosures.

Any enclosure, pen, coop, or hutch in which pets are maintained shall be cleaned at a minimum of every other day or more often if deemed advisable or necessary by a health officer. They shall be located at a minimum of 25 feet from a neighboring dwelling, as the term "dwelling" is defined in section 134-9.7 of this Code. No animal may be enclosed or fenced in the front yard of a dwelling.
(C91, § 7-54; O.11,730, 15,819)

Sec. 18-138. Indoor pets.

Gerbils, hamsters, guinea pigs, mice, birds, snakes and other similar animals normally maintained as pets in an enclosure inside a dwelling are not proscribed by this article unless provided otherwise by this Code.
(C91, § 7-55; O.11,730)

Sec. 18-139. Adoptions.

(a) Unless a contractor is operating the animal shelter, animals other than dogs and cats which are unredeemed may be eligible for adoption to any person who:

(1) Files a form as established by the chief of police identifying the animal desired for adoption.

(2) Pays a fee established by the chief of police based upon the amount of care and treatment provided by the city to the animal prior to release by adoption.

(b) The chief of police is authorized to promulgate further rules to effect such an adoption process.

(c) The subsections of this section relating to the adoption of unredeemed animals other than dogs and cats shall also apply to any adoption agencies seeking to obtain unredeemed animals other than dogs and cats from the city.

(d) The city shall reserve the right to reject any and all adoptions for any purpose the city deems necessary, including but not limited to health concerns.

(e) The city takes no responsibility nor makes any warranties or assumes any liability for the condition of the animal adopted.

(f) If a contractor is operating the animal shelter, the contractor shall take possession and ownership of animals other than dogs and cats upon a written release by the chief humane officer, or his or her designee.
(C91, § 7-56; O.12,075, 14,462)

Secs. 18-140—18-165. Reserved.

ARTICLE V. ANIMALS SUSPECTED OF BEING INFECTED WITH COMMUNICABLE DISEASE

Sec. 18-166. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Owner means any person who has paid the license fee or harbored an animal.
(C42, § 34-11; C54, C62, § 5-43; C75, C79, C85, § 7-34; O.11,558; C91, § 7-34)
Cross reference—Definitions generally, § 1-2.

Sec. 18-167. Minimum period of quarantine.

(a) It shall be the duty of the chief humane officer to order the owner of any animal which has bitten a person or another animal or any animal suspected of being infected with rabies to confine such animal for a period of ten days at the animal shelter, a veterinary clinic, or a registered kennel.

(b) Notwithstanding subsection (a) of this section, the animal control officer may allow a dog or cat to remain in quarantine for that period on the property of the owner so long as the dog or cat is confined there and is out of contact with members of the public or other animals during the quarantine period when the cat or dog:

(1) Has a current certificate of inoculation for rabies;

(2) Is properly licensed, in the case of dogs;

(3) Has properly displayed all required tags;

(4) Has not previously bitten a person; and

(5) The owner has suitable and secure quarters in which to isolate the animal.

Home quarantine shall not be allowed where there is a reasonable belief that the dog's or cat's condition or circumstances, including consideration of the nature or severity of the bite, requires observation at the animal shelter, a veterinary clinic, or a registered kennel or where the dog or cat does not remain in quarantine in the manner prescribed by the animal control officer for the

ten-day period. In the latter event, the animal shall be apprehended and impounded and confined in the animal shelter for ten days.

(c) If the animal is claimed by the owner after the ten-day period, the owner shall pay for the cost of confinement. If the animal is not claimed after the ten-day period, it may be humanely destroyed or, if a dog or cat, may be put up for adoption as provided in section 18-65 or 18-108 of this chapter.
(C42, § 34-10; O.5226, 5386; C54, § 5-44; O.5903; C62, § 5-44; O.7499; C75, § 7-35; O.9097, 9172, 9463; C79, § 7-35; O.9828; C85, § 7-35; O.10,886, 11,558; C91, § 7-35; O.12,075)

Sec. 18-168. Report when animal has bitten a person.

The owner of any animal shall report at once to the police department the fact that his or her animal has bitten or attacked a person or domestic animal, and all persons having knowledge of such fact shall report the fact to the police department. Any person claiming to have been bitten by an animal must go in person to the police department or to a physician to show proof of a bite if deemed necessary by the director of public health. A child claiming to have been bitten by an animal must be accompanied by a parent or legal guardian.
(C42, § 34-13; O.5386; C54, § 5-46; O.6002; C62, § 5-46; C75, C79, § 7-36; O.9828; C85, § 7-36; O.11,558; C91, § 7-36)

Sec. 18-169. Report of person whose animal is bitten.

Every person owning or having possession, custody, or control of an animal which is known to have been bitten by an animal infected with rabies shall immediately report this fact to the police department and shall have the exposed animal placed in isolation and quarantine as provided by section 18-167 of this chapter.
(C42, § 34-13; O.5386; C54, C62, § 5-47; O.7499; C75, C79, § 7-37; O.9828; C91, § 7-37)

Secs. 18-170—18-195. Reserved.

ARTICLE VI. ILLEGAL AND DANGEROUS ANIMALS

Sec. 18-196. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Bite, bitten, claw and clawed, mean the breaking of skin.

Dangerous animal means any animal, including a dog, except for an illegal animal per se, as listed in the definition of illegal animal, that has bitten or clawed a person while running at large and the attack was unprovoked, or any animal that has exhibited vicious propensities in present or past conduct, including such that the animal:

(1) Has bitten or clawed a person on two separate occasions within a 12-month period;

(2) Did bite or claw once causing injuries above the shoulders of a person;

(3) Could not be controlled or restrained by the owner at the time of the attack to prevent the occurrence; or

(4) Has attacked any domestic animal or fowl on three or more separate occasions within the lifetime of the attacking animal.

(5) Has killed any domestic animal while off of the property where the attacking animal is kept by its owner.

(6) Has bitten another animal or human that causes a fracture, muscle tear, disfiguring lacerations or injury requiring corrective or cosmetic surgery; or

(7) Any animal that was required to be removed from another city or county because of behavior that would also meet the definition of "dangerous animal" as set out in this section.

Illegal animal means:

(1) Any animal which is not naturally tame or gentle and which is of a wild nature or disposition and which is capable of kill-

ing, inflicting serious injury upon or causing disease among human beings or domestic animals and having known tendencies as a species to do so.

(2) Any dangerous wild animal as defined in I.C. ch. 717F.

(3) Any nondomesticated member of the order Carnivora which as an adult exceeds the weight of 20 pounds.

(4) The following animals, which shall be deemed to be illegal animals per se:

a. Badgers, wolverines, weasels, skunks and mink.

b. Raccoons.

c. Bats.

d. Snakes that are over six feet in length.

(C79, § 7-44; O.10,541; C85, § 7-44; O.10,886, 11,095; C91, § 7-44; O.15,128, 15,164, 15,348, 15,462)

Cross reference—Definitions generally, § 1-2.

Sec. 18-197. Keeping illegal animals prohibited.

No person shall keep, shelter, or harbor any illegal animal as a pet nor act as a temporary custodian for such animal nor keep, shelter, or harbor such animal for any other purpose or in any other capacity within the city, except as provided in section 18-198 of this article.
(C79, § 7-45; O.10,541, 11,095; C91, § 7-45)

Sec. 18-198. Exceptions to keeping illegal animals.

The prohibition contained in section 18-197 of this article shall not apply to the keeping of illegal animals in the following circumstances:

(1) The keeping of illegal animals in a zoo that is accredited by the Association of Zoos and Aquariums.

(2) The keeping of illegal animals in a regionally accredited educational or medical institution, an Iowa Department of Agriculture and Land Stewardship licensed animal shelter or pound, or a museum accredited by the American Alliance of Museums, where they are kept as live specimens for the purpose of instruction, research or study.

(3) The keeping of illegal animals for exhibition at the Iowa State Fair or Polk County Fair.

(4) The keeping of illegal animals for exhibition to the public by a bona fide traveling circus, carnival, exhibit or show.

(5) The keeping of illegal animals in a bona fide, licensed veterinary hospital for emergency treatment limited to the duration of the emergency treatment.

(6) The keeping of illegal animals by a wildlife rescue organization with appropriate permit from the state conservation commission.

(7) Any illegal animals under the jurisdiction of and in the possession of the state conservation commission, pursuant to I.C. § 481A.1 et seq. or 481B.1 et seq.

(8) The keeping of snakes and reptiles that are venomous and the keeping of snakes that are constrictors six feet in length and over by any individual 18 years of age or older who has:

a. Received a degree of bachelor of science, based upon courses of instruction which include courses in herpetology, from an accredited college level institution; or

b. Successfully completed a course of instruction taught under the auspices of the city zoo on the proper handling, care and keeping of such animals; or

c. Completed a course of instruction of at least 20 hours duration at an accredited educational institution on the care, handling and keeping of reptiles; and

d. Applied for and received from the city clerk a permit to keep such animals, such application to be on a form approved by the city council.

(9) A person with a disability or a person training an assistive animal has the right to possess an assistive animal. As used in this subsection, the term "assistive animal" means an animal to assist a person with a disability, as provided in and defined by Iowa Code section 216C.11.

(10) The keeping of illegal animals by a bona fide sanctuary that is accredited by the Global Federation of Animal Sanctuaries or, a facility that offers lifetime care to animals, does not allow public contact with any illegal animals, does not use the animals for any commercial purposes, and does not breed animals.

(11) The keeping of primates maintained for research or educational programs by the Iowa Primate Learning Sanctuary.

(12) The conveyance of animals through the city in compliance with all state and federal laws governing the possession and sale of such animal, provided that such animal does not remain within the city longer than necessary for its safe conveyance through the city, and such animal is not removed from the vehicle except as necessary for immediate transfer to another vehicle.

(C79, § 7-46; O.10,541; C85, § 7-46; O.11,095, 11,558; C91, § 7-46; O.13,551, 14,904, 15,128, 15,462)

Sec. 18-199. Seizure, impoundment and disposition of illegal animals.

(a) *Seizure of illegal animals found at large.*

(1) If an illegal animal is found at large and unattended upon public property, park property, public right-of-way, or the property of someone other than its owner, thereby creating a hazard to persons or property, such animal may be destroyed by the police department if it cannot be safely captured and impounded. The city shall be under no duty to attempt the capture and impoundment of an illegal animal found at large, nor shall it have a duty to notify the owner of such animal prior to its destruction. Notice of the capture and impoundment of an illegal animal found at large shall be promptly given to the owner, if known, by any reasonable means.

(b) *Seizure of illegal animals illegally kept.*

(1) Upon complaint or reasonable suspicion that an illegal animal is being kept, sheltered or harbored in the city in violation of section 18-197, the chief humane officer may cause the matter to be investigated.

a. If, after investigation, the chief humane officer determines that an illegal animal per se is being kept, sheltered or harbored in the city in violation of section 18-197, the chief humane officer shall declare the animal to be an illegal animal per se and shall immediately seize the animal. However, such animal may be destroyed or temporarily left in the possession and control of the owner, if in the discretion of the chief humane officer or chief of police such animal cannot be safely seized and impounded.

b. If, after investigation, the chief humane officer determines that an illegal animal, other than an illegal animal per se, is being kept, sheltered or harbored in the city in violation of section 18-197, the chief humane officer shall declare the animal to be an illegal animal and shall order the person to permanently place the animal with an organization or group allowed under section 18-198 of this article to possess illegal animals, or destroy the animal, within seven days of the receipt of such order. If the animal is not placed with an organization or group allowed under section 18-198 of this article to possess illegal animals or destroyed within seven days of receipt of such order the chief humane officer shall seize the animal. However, such animal

may be temporarily left in the possession and control of the owner pending transfer to an organization or group allowed under section 18-198 of this article to possess the animal or destroyed, if in the discretion of the chief humane officer or the chief of police, such animal cannot be safely seized and impounded.

(c) *Disposition of illegal animals.*

(1) Notice that an animal has been declared an illegal animal subject to seizure, and notice of the seizure, if such animal has been seized and impounded, shall be promptly served by personal service upon an owner of the animal, if known. If notice cannot be promptly served on an owner of the animal within the city boundaries, then notice may be served by service upon any adult residing at the premises where the animal was regularly kept or by posting on those premises if no resident adult is present to accept service. The notice shall include: a description of the animal; a declaration that the animal is an illegal animal or illegal animal per se which has been kept, sheltered or harbored in violation of section 18-197; the basis for such declaration; notice that such animal must be placed with a person or organization permitted by section 18-198 to keep illegal animals who demonstrates to the reasonable satisfaction of the chief human officer that they are willing and capable of keeping the animal confined; and, notice that the decisions to declare the animal an illegal animal and to seize the animal may be appealed by filing a written notice of appeal with the city clerk within three business days of the date the notice is served.

(2) An illegal animal so impounded and not subject to quarantine may be redeemed by a person or organization permitted by section 18-198 to keep illegal animals, who demonstrates to the reasonable satisfaction of the chief human officer that they are an owner of the animal and are willing and capable of keeping the animal confined.

(3) An animal so impounded and not redeemed shall be held for a period of seven days, or until seven days after service of the decision on appeal if the decisions to declare the animal an illegal animal and to seize the animal is appealed and upheld. If the decision to declare the animal an illegal animal and to seize the animal are reversed on appeal, the animal shall be immediately released to the owner or the owner's representative. However, if at the end of the impoundment period the decision to declare the animal an illegal animal and, if applicable, the decision to seize the animal remain in effect and the owner has not petitioned the district court for a review of such decisions, the chief humane officer shall cause the animal to be placed with an organization or group allowed under section 18-198 of this article to possess the animal, or shall destroy such animal in a humane manner.

(d) The orders and declarations concerning an illegal animal issued by the chief humane officer pursuant to this section may be appealed pursuant to the administrative appeal process set forth in chapter 3 of this Code. In order to appeal such order or declaration, written notice of appeal must be filed with the city clerk within three days after receipt of the order or declaration. Failure to file such written notice of appeal shall constitute a waiver of right to appeal the order of the chief humane officer.

(e) Failure to comply with an order of the chief humane officer issued pursuant to this section and not appealed, or after such order has been affirmed on appeal, shall constitute a misdemeanor offense.

(C79, § 7-47; O.10,541; C85, § 7-47; O.11,095; C91, § 7-47; O.14,677, 15,128)

Sec. 18-200. Keeping dangerous animals prohibited.

No person shall keep, shelter or harbor for any reason within the city a dangerous animal, as defined in section 18-196, except as provided in section 18-201 of this article.
(C79, § 7-48; O.10,541; C85, § 7-48; O.11,095; C91, § 7-48)

Sec. 18-201. Exceptions to keeping dangerous animals.

The prohibition contained in section 18-200 of this article shall not apply to the keeping of dangerous animals under the control of a law enforcement or military agency.
(C79, § 7-49; O.10,541; C85, § 7-49; O.10,886, 11,095; C91, § 7-49)

Sec. 18-202. Seizure, impoundment and disposition of dangerous animals.

(a) Upon complaint or reasonable suspicion that a dangerous animal is being kept, sheltered or harbored in the city, the chief humane officer may cause the matter to be investigated. If after investigation, the chief humane officer determines that a dangerous animal is being kept, sheltered or harbored in the city by any person, the chief humane officer shall declare such animal to be a dangerous animal and shall order the person owning, sheltering, harboring or keeping the animal to cause it to be destroyed in a humane manner within three days of service of the notice of the order, and keep the animal securely confined or leased under the actual control of a person 18 years of age or older until so destroyed.

(b) Notice that an animal has been declared a dangerous animal shall be promptly served by personal service upon an owner of the animal, if known. If notice cannot be promptly served on an owner of the animal within the city boundaries, then notice may be served by service upon any adult residing at the premises where the animal was regularly kept or by posting on those premises if no resident adult is present to accept service. The notice shall include: a description of the animal; a declaration that such animal is a dangerous animal; the basis for such declaration; an order that the owner cause the animal to be destroyed in a humane manner within three days of service of the notice; notice that such animal will be subject to seizure if not destroyed within three days of service of the notice; and notice that the decision to declare the animal a dangerous animal may be appealed by filing a written notice of appeal with the city clerk within three business days of the date the notice is served. A notice that a dog is a dangerous animal may include as an alternative an allegation that a dog is a high risk dog under section 18-59 of this chapter.

(c) If the animal is ordered to be destroyed by the owner, such order must be complied with within three days of its issuance, otherwise the chief humane officer is authorized to seize and impound the animal. Such an animal may also be seized at any time if it is not actually kept securely confined or leased under the actual control of a person 18 years of age or older until so destroyed. An animal so seized shall be impounded for a period of seven days, or until seven days after service of the decision on appeal if the decision to declare the animal a dangerous animal is appealed and upheld. If the decision to declare the animal a dangerous animal is reversed on appeal, the animal shall be immediately released to the owner or the owner's representative. However, if at the end of the impoundment period the decision to declare the animal a dangerous animal remains in effect and the owner has not petitioned the district court for a review of such decision, the chief humane officer shall cause the animal to be destroyed in a humane manner.

(d) The orders and declarations concerning a dangerous animal issued by the chief humane officer pursuant to this section may be appealed pursuant to the administrative appeal process set forth in chapter 3 of this Code. In order to appeal such order or declaration, written notice of appeal must be filed with the city clerk within three days after receipt of the order or declaration. Failure to file such written notice of appeal shall constitute a waiver of right to appeal the order of the chief humane officer.

(e) Any animal which is alleged to be dangerous and which is under impoundment or quarantine shall not be released to the owner, but shall continue to be held at the expense of the owner pending the outcome of the hearing. All costs of such impoundment or quarantine shall be paid by the owner if the animal is determined to be dangerous. If the animal is not determined to be dangerous and was found at large, the owner shall only pay those costs attributable to the initial confinement and any required quarantine. If the animal is not determined to be dangerous and was not at large at the time of confinement, the owner shall only pay those costs attributable to any required quarantine.

(f) Failure to comply with an order of the chief humane officer issued pursuant to this section and not appealed, or after such order has been affirmed on appeal, shall constitute a misdemeanor offense.
(C79, § 7-50; O.10,541; C85, § 7-50; O.11,095; C91, § 7-50; O.13,854, 13,977, 14,462, 14,677, 15,128, 15,348)

Sec. 18-203. Immediate seizure or destruction of animals.

Any animal found at large which displays dangerous tendencies, or which is an illegal animal, or which has been previously declared high risk or is high risk by breed according to article II, section 18-41(6), (7), (8), or (9) of this chapter and has bitten without provocation a person or a domestic animal while such high risk dog was not properly confined or leashed may be processed as a dangerous animal under section 18-202 of this article, and the animal may be immediately seized anywhere within the city unless the animal is so dangerous that it cannot safely be apprehended, in which case the chief humane officer, his or her designee, or any police officer is authorized to destroy it immediately.
(C85, § 7-51; O.11,095; C91, § 7-51; O.14,415, 14,462, 15,348)

Sec. 18-204. Reserved.

Editor's note—Ord. No. 14,677, § 1, adopted July 23, 2007, repealed § 18-204, which pertained to permanent removal from city and derived from Code 1985, § 7-52; Ord. No. 11,095; Ord. No. 11,558; Code 1991, § 7-52.

Secs. 18-205—18-214. Reserved.

ARTICLE VII. FEEDING OF DEER AND WATERFOWL IS PROHIBITED

Sec. 18-215. Purpose.

The intent of this article is to protect the health, safety, and welfare of the community and its wildlife by prohibiting the feeding of deer and waterfowl on public and private property in the city. The feeding of deer and waterfowl increases the potential for damage to public parks and private property. It also elevates the potential for the spread of disease in people and companion animals. In addition, it is the intent of this article to protect the welfare of the deer and waterfowl themselves. Wildlife studies have shown that feeding waterfowl and other wild animals can interrupt their normal migration patterns, can make them more aggressive in demanding food, cause nutritional problems, expose them to danger by eliminating their natural fear of predators, and promote the spread of diseases and disease-carrying parasites.
(O.16,066)

Sec. 18-216. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Bird feeder. A container, receptacle or apparatus designed for the feeding of songbirds or other backyard birds.

Feed. To give, place, expose, deposit, distribute or scatter any edible material which can be utilized for consumption by deer and waterfowl. Feeding does not include baiting for the legal taking of fish and/or game, or baiting by a city official, an animal control service or by a licensed wildlife rehabilitator.

Person. Any individual, corporation, company, partnership, firm, association, or political subdivision of this state subject to municipal jurisdiction.

Waterfowl. Wildfowl of the order Anseriformes, especially members of the family Anatidae which includes any bird that swims, frequents the water, or lives about rivers, lakes, or other bodies of water, including but not limited to ducks, geese, swan and gulls.
(O.16,066)

Sec. 18-217. Prohibitions.

(a) No person shall purposely or knowingly, feed or in any manner provide access to food to any deer or waterfowl within the corporate limits of the city, on lands either publicly or privately owned. Feeding does not include baiting in the legal taking of fish and/or game, or baiting by a city official, an animal control service or by a licensed wildlife rehabilitator.

(b) Feeding of songbirds and other backyard birds, not including waterfowl, shall be permitted outdoors at such times and in such a manner that:

(1) Any feed must be placed within a bird feeder with a maximum volume of not more than one cubic foot, placed at least four feet above ground.

(2) Bird feeders are placed where deer or waterfowl are unable to eat from them and do not become an attractant for deer and waterfowl.

(O.16,066)

Sec. 18-218. Penalties.

Notwithstanding any other section of this article, any property owner or occupant of a property found in violation of this article shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code. Each ongoing day of the violation(s) shall constitute a separate offense. In addition to the financial penalties so provided, the violator shall be subject to an injunctive order to cease the violation and conduct any required clean-up.
(O.16,066)

Chapters 19—21

RESERVED

Chapter 22

AVIATION*

Article I. Airport Zoning Regulations

Sec. 22-1. Purpose.
Sec. 22-2. Title.
Sec. 22-3. Definitions.
Sec. 22-4. Runway locations.
Sec. 22-5. Airport zones.
Sec. 22-6. Des Moines Area Airport Zoning Map.
Sec. 22-7. General regulations.
Sec. 22-8. Lighting and marking.
Sec. 22-9. Administrative procedures.
Sec. 22-10. Non-conforming structures and trees.
Sec. 22-11. Board of adjustment.
Sec. 22-12. Enforcement.
Sec. 22-13. Severability.
Secs. 22-14—22-49. Reserved.

Article II. Des Moines Airport Authority

Sec. 22-50. Creation.
Sec. 22-51. Transfer of aviation facilities.
Sec. 22-52. Land acquisition and disposition.
Sec. 22-53. Board.
Sec. 22-54. Meeting and minutes.
Sec. 22-55. Legal effect of regulations adopted.
Sec. 22-56. City ordinances.
Sec. 22-57. Compliance with peace officers.
Sec. 22-58. Reserved.
Sec. 22-59. Hunting on airport property.
Sec. 22-60. Reports.
Sec. 22-61. Dissolution.
Sec. 22-62. Effective date.

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*__Editor's note—__Ord. No. 15,144, § 1, adopted Nov. 19, 2012, repealed the former Ch. 22, Arts. I—XI, §§ 22-1—22-12, 22-46—22-56, 22-81—22-101, 22-126—22-138, 22-170—22-179, 22-206—22-211, 22-241—22-244, 22-271—22-276, 22-306—22-311, 22-1400—22-1412, 22-1500—22-1509, and enacted a new Ch. 22 as set out herein. The former Ch. 22 pertained to similar subject matter. See the Code Comparative Table for complete derivation.

__Cross references—__Businesses, ch. 30; littering by dropping from aircraft, § 42-401; streets, sidewalks, skywalks and other public places, ch. 102.

ARTICLE I. AIRPORT ZONING REGULATIONS*

Sec. 22-1. Purpose.

This article is adopted under the authority of Iowa Code chapters 329 and 414, which empower Iowa cities to adopt zoning regulations for the purpose of preventing hazards and non-compatible land uses in the vicinity of airports. The Des Moines International Airport and the Ankeny Regional Airport represent significant public investments that have a substantial ongoing impact upon local commerce and employment and the growth and development of the Des Moines Metropolitan Area. It is the desire of the city council to preserve and protect the safe use and operation of these airports and the associated airspace.

The city council hereby makes the following findings:

(1) Obstructions in the pathways of aircraft in flight, and certain uses of the land underlying those pathways may constitute a hazard to the aircraft and to the health, safety and general welfare of the occupants of the aircraft and the underlying land. The creation, establishment or maintenance of such obstructions or hazards is a public nuisance.

(2) Failure to adhere to the established principles and practices for safe use of the airspace and land in the vicinity of the Des Moines International Airport, and Ankeny Regional Airport, could impair or destroy the utility of the airports and the public investment therein.

Accordingly it is declared that:

(1) The prevention of obstructions, hazards, and non-compatible land uses should be accomplished, to the extent legally possible, by proper exercise of the police power, without compensation.

(2) The mitigation of non-compatible uses, obstructions, and hazards to safe air navigation by prevention, removal, or alteration, or the marking and lighting of obstructions are public purposes for which the City of Des Moines may raise and expend public funds, and acquire land or interests in land.

(3) A non-compatible use, obstruction, or hazard created by failure to comply with the provisions of this article may be abated in the manner prescribed by law for the abatement of public nuisances.

(O.15,144)

Sec. 22-2. Title.

This article shall be known and may be cited as the "Des Moines Airport Zoning Ordinance" or the "airport zoning ordinance."
(O.15,144)

Sec. 22-3. Definitions.

For the purposes of this article, the following definitions shall apply unless the context requires otherwise. In each case the singular shall include the plural and the plural shall include the singular.

Aircraft means any human controlled contrivance used or designed for carrying humans in flight through the air, but not including parachutes.

Airport means the Des Moines International Airport and/or the Ankeny Regional Airport.

Airport hazard See hazard, below.

Aerial navigation means the movement of an aircraft through the air.

Airport elevation means the official airport elevation as is depicted on the approved Airport Layout Plan. The airport elevation for the Des Moines International Airport is 957 feet msl. The airport elevation for the Ankeny Regional Airport is 910 feet msl.

DSM means the Des Moines International Airport.

*__Cross reference—__Zoning, ch. 134.

State law reference—Airport zoning generally, I.C. § 329.1 et seq.

Federal Aviation Administration or FAA means an agency of the United States government that administers the federal regulations that relate to the use and flight of aircraft.

Hazard means any structure or tree or use of land which would exceed the federal obstruction standards contained in 14 C.F.R. sections 77.21, 77.23 and 77.25, and which obstruct the air space required for the flight of aircraft and landing or take-off at an airport or is otherwise hazardous to such landing or taking off of aircraft or persons or property on the ground.

IKV means the Ankeny Regional Airport.

Inner edge means that edge of any zone that is closest to the runway end to which the zone applies. The inner edge is perpendicular to the runway centerline.

MSL means the altitude above mean sea level.

Notice of proposed construction or alteration means a requirement of 14 CFR section 77.13 that persons who propose any kind of construction or alteration of the type described in section 77.13 provide notice to the FAA of such action. Types of construction and alteration for which such notice must be given include, but are not limited to, the following:

(1) Any construction or alteration of any structure more than 200 feet in height above ground level at its site.

(2) Any construction or alteration of a structure with a height greater than an imaginary surface extending outward and upward at a slope of 100 to 1 for a horizontal distance of 20,000 feet from the nearest point of the nearest runway at the Des Moines International Airport and at the Ankeny Regional Airport.

Non-compatible use means any activity that would degrade the safety of people on the ground, or occupants of aircraft in flight, including but not limited to, storage of hazardous materials, above ground storage of flammable liquids in excess of 660 gallons, wildlife attractants, and those uses that lead to an assembly of people, including, but not limited to, residences, theaters, churches, schools, athletic fields, camp grounds, hospitals, office buildings, shopping centers, hotels and motels, and other uses with similar concentrations of persons.

Non-conforming structure means any structure or portion of any structure that is located within or underlying any of the zones created by this article and that does not conform to the height and/or use provisions of this article.

Obstruction means any structure or tree, the height of which exceeds that which is allowed by this article.

Person means any individual, firm, co-partnership, corporation, company, association, joint stock association, or body politic, and includes any trustee, assignee or other similar representative thereof.

Runway threshold means a designated line perpendicular to the centerline of an airport runway that establishes one end of the runway. The runway threshold may or may not correspond with the end of the paved portion of the runway.

Structure means any object, whether permanent or temporary, stationary or mobile, constructed or installed by humans, including but not limited to: buildings, towers, smokestacks, scaffolds, lighting fixtures, public and private roads, railways, mechanical cranes and overhead transmission lines, including poles or other structures supporting the same.

Tree means any object of natural growth which exceeds 20 feet in height, or which may, in its natural growth, be reasonably expected to exceed 20 feet in height.
(O.15,144)

Sec. 22-4. Runway locations.

(a) Each runway at the Des Moines International Airport and at the Ankeny Regional Airport is defined by the centerline extending between the midpoints of the runway thresholds at each end.

(b) At the Des Moines International Airport, the intersection of the centerline of each runway with the runway threshold at each end of the runway is located at the following coordinates

and elevations, which are referenced to the National Geodetic Survey's state plane coordinate system of 1983.

DSM Runway 5/23:

At the southwest threshold:

Northing - 553,774.90
Easting - 1,590,141.69
Elevation - 922.7

At the northeast threshold:

Northing - 560,367.14
Easting - 1,599,196.10
Elevation - 934.5

DSM Runway 13L/31R:

At the northwest threshold:

Northing - 563,169.38
Easting - 1,592,662.90
Elevation - 912.2

At the southeast threshold:

Northing - 557,094.35
Easting - 1,599,303.82
Elevation 957.5

DSM Runway 13R/31L (planned):

At the northwest threshold:

Northing - 561,559.24
Easting - 1,588,052.70
Elevation - 898.9

At the southeast threshold:

Northing - 555,484.49
Easting - 1,594,693.29
Elevation 933.7

(c) At the Ankeny Regional Airport, the intersection of the centerline of each runway with the runway threshold is located at the following coordinates and elevations, which are referenced to the National Geodetic Survey's state plane coordinate system of 1983.

IKV Runway 36/18:

At the north threshold:

Northing - 618,531.01
Easting - 1,622,440.64
Elevation - 903.3

At the south threshold:

Northing - 613,030.92
Easting - 1,622,435.15
Elevation - 887.7

IKV Runway 4/22:

At the northeast threshold:

Northing - 618,310.20
Easting - 1,623,594.24
Elevation - 902.4

At the southwest threshold:

Northing - 615,342.68
Easting - 1,620,621.68
Elevation - 909.9

(O.15,144)

Sec. 22-5. Airport zones.

In order to carry out the provisions of this article there are hereby created and established certain zones which are described herein. Any structure or tree located in more than one zone is considered to be only in the zone with the more restrictive height and use limitation. The various zones hereby established and defined are as follows:

(1) *AO Approach Overlay Zone—Defined.* The airspace above a sloping plane extending outward from each end of each runway at the Des Moines International Airport, and at the Ankeny Regional Airport, rising uniformly at a fixed ratio, and of fixed size, through which aircraft commonly operate when arriving at, and departing from, the airport. AO zones vary in size and slope based upon the present or future use that can be expected for each airport runway. The outside edges of each AO zone longitudinal to the centerline of the runway are the base lines for the TO zones at the edges of the AO zone.

a. The AO zones at the Des Moines International Airport are as follows:

1. *DSM Runway 5/23:*

i. *Runway 5 Approach (Planned) (AO5DSM):* Beginning 200 feet beyond the runway threshold at

the southwest end of DSM Runway 5/23, extending southwesterly, and centered on the extended centerline of the runway, the inner edge of the zone is 1,000 feet wide, expanding uniformly to an outer edge width of 16,000 feet. The altitude of the inner edge is the same as the altitude of the runway threshold at the centerline. For each 50 feet of horizontal distance, the floor of the zone rises from the inner edge one foot (50:1) for a horizontal distance of 10,000 feet, and then rising, for each 40 feet of horizontal distance, one foot (40:1) for an additional distance of 40,000 feet, for a total horizontal distance of 50,000 feet from the point of beginning.

ii. *Runway 23 Approach (AO23DSM):* Beginning 200 feet beyond the runway threshold at the northeast end of DSM Runway 5/23, extending northeasterly, and centered on the extended centerline of the runway, the inner edge of the zone is 1,000 feet wide, expanding uniformly to an outer edge width of 4,000 feet. The altitude of the inner edge is the same as the altitude of the runway threshold at the centerline. For each 34 feet of horizontal distance, the floor of the zone rises from the inner edge one foot (34:1), for a total horizontal distance of 10,000 feet from the point of beginning.

2. D*SM Runway 13L/31R:*

i. *Runway 13L Approach (AO13LDSM):* Beginning 200 feet beyond the runway threshold at the northwest end of DSM Runway 13L/31R, extending northwesterly, and centered on the extended centerline of the runway, the inner edge of the zone is 1,000 feet wide, expanding uniformly to an outer edge width of 16,000 feet. The altitude of the inner edge is the same as the altitude of the runway threshold at the centerline. For each 50 feet of horizontal distance, the floor of the zone rises from the inner edge one foot (50:1) for a horizontal distance of 10,000 feet, and then rising, for each 40 feet of horizontal distance, one foot (40:1) for an additional distance of 40,000 feet, for a total horizontal distance of 50,000 feet from the point of beginning.

ii. *Runway 31R Approach (AO31RDSM):* Beginning 200 feet beyond the runway threshold at the southeast end of DSM Runway 13L/31R, extending southeasterly, and centered on the extended centerline of the runway, the inner edge of the zone is 1,000 feet wide, expanding uniformly to an outer edge width of 16,000 feet. The altitude of the inner edge is the same as the altitude of the runway threshold at the centerline. For each 50 feet of horizontal distance, the floor of the zone

rises from the inner edge one foot (50:1) for a horizontal distance of 10,000 feet, and then rising, for each 40 feet of horizontal distance, one foot (40:1) for an additional distance of 40,000 feet, for a total horizontal distance of 50,000 feet from the point of beginning.

3. *DSM Runway 13R/31L:*

i. *Runway 13R Approach (Planned) (AO13RDSM):* Beginning 200 feet beyond the runway threshold at the northwest end of DSM Runway 13R/31L, extending northwesterly, and centered on the extended centerline of the runway, the inner edge of the zone is 1,000 feet wide, expanding uniformly to an outer edge width of 16,000 feet. The altitude of the inner edge is the same as the altitude of the runway threshold at the centerline. For each 50 feet of horizontal distance, the floor of the zone rises from the inner edge one foot (50:1) for a horizontal distance of 10,000 feet, and then rising, for each 40 feet of horizontal distance, one foot (40:1) for an additional distance of 40,000 feet, for a total horizontal distance of 50,000 feet from the point of beginning.

ii. *Runway 31L Approach (Planned) (AO31LDSM):* Beginning 200 feet beyond the runway threshold at the southeast end of planned DSM Runway 13R/31L, extending southeasterly, and centered on the extended centerline of the runway, the inner edge of the zone is 1,000 feet wide, expanding uniformly to an outer edge width of 16,000 feet. The altitude of the inner edge is the same as the altitude of the runway threshold at the centerline. For each 50 feet of horizontal distance, the floor of the zone rises from the inner edge one foot (50:1) for a horizontal distance of 10,000 feet, and then rising, for each 40 feet of horizontal distance, one foot (40:1) for an additional distance of 40,000 feet, for a total horizontal distance of 50,000 feet from the point of beginning.

b. The AO zone at the Ankeny Regional Airport is as follows:

IKV Runway 18/36 (AO36IKV): That portion of the following area which overlays the City of Des Moines: Beginning 200 feet beyond the runway threshold at the south end of IKV Runway 18/36, extending southward, centered on the extended centerline of the runway, the inner edge of which is 1,000 feet wide, expanding uniformly to an outer edge width of 16,000 feet. The altitude of the inner edge is the same as the altitude of the runway threshold at the centerline. For each 50 feet of horizontal distance, the floor of the zone rises from the inner edge one foot (50:1) for a horizontal distance of 10,000 feet, and then rising, for each 40 feet of horizontal distance, one foot (40:1) for an additional distance of 40,000 feet, for a total horizontal distance of 50,000 feet from the point of beginning.

c. Height limitations:

1. Except as otherwise provided herein, no person shall construct or alter any structure, nor plant or grow any tree, so as to penetrate any AO approach overlay zone created herein.

2. No person shall establish or maintain any private roadway in any location that would result in penetration of any AO approach overlay zone by any portion of any vehicle that may operate upon such roadway.

(2) *CA Controlled Activity Zone - Defined.* An area of fixed size, underlying the innermost portion (closest to the runway end) of the AO zone for each runway, descending from the floor of the AO zone to the ground. The width and length of CA zones may vary, and may be different on each runway end.

a. The CA zones for the Des Moines International Airport are as follows:

1. *DSM Runway 5/23:*

i. *Runway 5 Approach (CAO5DSM):* Underlying the innermost 2,500 feet of the AO zone at the southwest end of DSM Runway 5/23, the width of the CA zone is 1,000 feet at the inner edge and expands uniformly to a width of 1,750 feet.

ii. *Runway 23 Approach (CA23DSM):* Underlying the innermost 1,700 feet of the AO zone at the northeast end of DSM Runway 5/23, the width of the CA zone is 1,000 feet at the inner edge and expands uniformly to a width of 1,510 feet.

2. *DSM Runway 13L/31R:*

i. *Runway 13L Approach (CA13LDSM):* Underlying the innermost 2,500 feet of the AO zone at the northwest end of DSM Runway 13L/31R, the width of the CA zone is 1,000 feet at the inner edge and expands uniformly to a width of 1,750 feet.

ii. *Runway 31R Approach (CA31RDSM):* Underlying the innermost 2,500 feet of the AO zone at the southeast end of DSM Runway 13L/31R, the width of the CA zone is 1,000 feet at the inner edge and expands uniformly to a width of 1,750 feet.

3. *DSM Runway 13R/31L:*

i. *Runway 13R Approach (Planned) (CA13RDSM):* Underlying the innermost 2,500 feet of the AO zone at the northwest end of DSM Runway 13R/31L, the width of the CA zone is 1,000 feet at the inner edge and expands uniformly to a width of 1,750 feet.

ii. *Runway 31L Approach (Planned) (CA31LDSM):* Underlying the innermost 2,500 feet of the AO zone at the southeast end of DSM Runway 13R/31L, the width of the CA zone is 1,000 feet at the inner edge and expands uniformly to a width of 1,750 feet.

b. Use Limitations:

1. No person shall establish or maintain any non-compatible use in any CA controlled activity zone.

2. No structures, other than airport structures the location of which is dictated by function, either permanent or temporary, shall be permitted in any CA controlled activity zone.

(3) *HO Horizontal Overlay Zone - Defined.* The airspace above a horizontal plane, the perimeter of which is established by swinging arcs of 10,000 foot radii from the center of each runway threshold, and connecting the adjacent arcs by lines tangent to those arcs. The floor of the HO zone is 150 feet above the airport elevation.

a. The HO zone for the Des Moines International Airport has a floor elevation of 1,107 feet above mean sea level.

b. The HO zone for the Ankeny Regional Airport has a floor elevation of 1,060 feet above mean sea level.

c. Height limitation:

Except as otherwise provided herein, no person shall construct or alter any structure, or plant or grow any tree so as to penetrate any HO horizontal overlay zone created herein.

(4) *TO Transitional Overlay Zone - Defined.* The airspace above a sloping plane along each side of each runway, and from the sides of each AO zone. For each 7 feet horizontally outward perpendicular to the centerline of the runway or runway approach, the plane rises 1 foot vertically.

a. The TO zones for the Des Moines International Airport are as follows:

1. *DSM Runway 5/23:*

i. *Runway 5/23 (TO5/23DSM):* Along each side of DSM Runway 5/23 extending outward and upward from base lines parallel to and 500 feet horizontally distant from the center line of the runway, which base lines extend beyond the thresholds at each end of the runway a distance of 200 feet. The planes extend outward and upward a horizontal distance of 5,000 feet from the base lines.

ii. *Runway 5 Approach (TO5DSM):* along each side of the AO zone at the southwest end of DSM Runway 5/23, extending outward and upward from the base lines of such AO zone a horizontal distance of 5,000 feet.

iii. *Runway 23 Approach (TO23DSM):* along each side of the AO zone at the northeast end of DSM Runway 5/23, extending outward and upward from the base lines of such AO zone a horizontal distance of 5,000 feet.

2. *DSM Runway 13L/31R:*

i. *Runway 13L/31R (TO13L/31RDSM):* along each side of DSM Runway 13L/31R extending outward and upward from base lines parallel to and 500 feet horizontally distant from the center line of the runway, which base lines extend beyond the thresholds at each end of the runway a distance of 200 feet. The planes extend outward and upward a horizontal distance of 5,000 feet from the base lines.

ii. *Runway 13L Approach (TO13LDSM):* along each side of the AO zone at the northwest end of DSM Runway 13L/31R, extending outward and upward

from the base lines of such AO zone a horizontal distance of 5,000 feet.

iii. *Runway 31R Approach (TO31RDSM):* along each side of the AO zone at the southeast end of DSM Runway 13L/31R, extending outward and upward from the base lines of such AO zone a horizontal distance of 5,000 feet.

3. *Runway 13R/31L:*

i. *Runway 13R/31L (TO13R/31LDSM):* along each side of DSM Runway 13R/31L extending outward and upward from base lines parallel to and 500 feet horizontally distant from the center line of the runway, which base lines extend beyond the thresholds at each end of the runway a distance of 200 feet. The planes extend outward and upward a horizontal distance of 5,000 feet from the base lines.

ii. *Runway 13R Approach (TO13RDSM):* along each side of the AO zone at the northwest end of DSM Runway 13R/31L, extending outward and upward from the base lines of such AO zone a horizontal distance of 5,000 feet.

iii. *Runway 31L Approach (TO31LDSM):* along each side of the AO zone at the southeast end of DSM Runway 13R/31L, extending outward and upward from the base lines of such AO zone a horizontal distance of 5,000 feet.

b. The TO zone at the Ankeny Regional Airport is as follows:

IKV Runway 36 Approach (TO36IKV): That portion of the following area which overlays the City of Des Moines: Along each side of the AO zone at the south end of IKV Runway 18/36, extending outward and upward from the base lines of such AO zone a horizontal distance of 5,000 feet.

c. Height limitations:

1. Except as otherwise provided herein, no person shall construct or alter any structure, or plant or grow any tree, so as to penetrate any TO transitional overlay zone created herein.

2. No person shall establish or maintain any private roadway in any location that would result in penetration of any TO transitional overlay zone by any portion of any vehicle that may operate upon such roadway.

(5) *Conical Overlay (CO) Zone - Defined.* The airspace above a sloped surface which extends outward and upward from the bottom outside edge of the HO zone. For each 20 feet horizontally outward from the bottom outside edge of the HO zone, the floor of the zone rises one foot vertically for a horizontal distance of 4,000 feet.

Height limitations: Except as otherwise provided herein, no person shall construct or alter any structure, or plant or grow any tree, so as to penetrate any Conical Overlay zone created herein.

(O.15,144)

Sec. 22-6. Des Moines Area Airport Zoning Map.

The boundaries of the zones described in section 22-5 are shown on the official Des Moines Area Airport Zoning Map, which map and all notations, references and other matters shown thereon is made a part of this article by reference.

The official Des Moines Area Airport Zoning Map, which may consist of a number of separate pages, shall be on file for public inspection in the office of the zoning enforcement officer and shall bear the signature of the mayor attested by the city clerk, along with the date of adoption and the certification that it is the official zoning map referred to in section 22-6 this Code.
(O.15,144)

Sec. 22-7. General regulations.

(a) The FAA regulations at 14 C.F.R. section 77.13 require that notice of proposed construction or alteration be given to the FAA whenever certain construction or alteration activities occur. (See definitions in section 22-3.) No person shall commence construction or alteration of any building or other structure for which a notice of proposed construction or alteration must be given to the FAA unless: (i) such notice has been given in the form and manner provided by 14 C.F.R. Part 77; (ii) an acknowledgment of such notice is received from the FAA pursuant to 14 C.F.R. section 77.19; (iii) a copy of the notice and acknowledgment has been provided to the community development department; and, (iv) such acknowledgment identifies that the proposed construction or alteration will not be a hazard to navigation.

(b) No person shall commence any construction or alteration which has been determined by the FAA to exceed any standard in 14 C.F.R. Part 77, Subpart C, unless an exception has been obtained from the board of adjustment pursuant to section 22-11.

(c) Except as otherwise provided herein, no person shall occupy any structure in or underlying any zone created by this article without having first obtained certificate of occupancy permit from the community development department. No occupancy permit obtained for a specific use shall apply to any other use.

(d) No person shall be issued an occupancy permit for any non-compatible use in or underlying any CA zone.

(e) No person shall establish or maintain any private roadway in any location that would result in penetration of any zone created by this article by any portion of any vehicle that may be operated upon such roadway.

(f) Within 5,000 feet of the nearest point of the nearest airport runway, no person shall establish or maintain any structure or use that would create a bird strike hazard.

(g) Notwithstanding any other provision of this article, no person shall, in any zone created by this article, or upon any land or water underlying such zones:

(1) Create, alter, or maintain any structure or use in such a manner as to create electrical or radio interference with aviation navigational signals or aircraft communications.

(2) Install, align or use any lighting devices that make it difficult for pilots to distinguish between airport lights and others, create glare in the eyes of pilots, or otherwise impair visibility.

(3) Produce steam, smoke, or other visual hazard that would impair visibility.

(4) Create, alter, or maintain any structure or use that would endanger or interfere with landing, takeoff or maneuvering of any aircraft.

(5) Plant, or allow the growth of, any tree, which, during the normal life cycle of such tree, can be expected to grow into any zone created by this article.

(h) In the event of any conflict between regulations contained in this article and any other regulations applicable to the same area, whether the conflict be with respect to height of structures or trees, use of structures or land, or any other matter, the more stringent limitation or requirement shall prevail.
(O.15,144)

Sec. 22-8. Lighting and marking.

(a) Notwithstanding any other provision of this article, any person constructing or altering any structure located in any zone created by this article shall install all lighting or markings upon said structure as shall be recommended by the FAA as a part of its review of the applicant's Notice of Proposed Construction or Alteration.

Such lighting or markings shall be made in a manner consistent with FAA regulations and advisories.

(b) Any permit or exception granted under the provisions of this article may be so conditioned so as to require the owner of the land, structure, or tree in question to install, operate, and maintain such lighting and/or markings as the city deems necessary to indicate to operators of aircraft the presence of an airport obstruction.
(O.15,144)

Sec. 22-9. Administrative procedures.

(a) The zoning enforcement officer shall administer this article in consultation with the aviation director or the director's designee.

(b) No building permit shall be issued for the construction or alteration of any building or other structure which does not conform with the limitations of section 22-5.

(c) No building permit shall be issued for the construction or alteration of any building or other structure for which a notice of proposed construction or alteration must be given to the FAA pursuant to 14 C.F.R. section 77.13, unless: (i) such notice has been given in the form and manner provided by 14 C.F.R. Part 77; (ii) an acknowledgment of such notice is received from the FAA pursuant to 14 C.F.R. section 77.19; (iii) a copy of the notice and acknowledgment has been provided to the community development department; and, (iv) such acknowledgment identifies that the proposed construction or alteration will not be a hazard to navigation.

(d) No building permit shall be issued for any construction or alteration which has been determined by the F.A.A. to exceed any standards in 14 C.F.R. Part 77, Subpart C, unless an exception has been obtained from the board of adjustment pursuant to section 22-11.

(e) Notwithstanding anything to the contrary, no building permit shall be issued for the construction or alteration of any building or other structure if the FAA finds or determines that the proposed construction or alteration:

(1) Would create a hazard;

(2) Would endanger the general safety, health and welfare of persons in the vicinity of the airport, or occupants of aircraft in flight; or,

(3) Would result in the raising of the minimum instrument flight altitude of any Federal Airway, approved off-airway route, or instrument approach procedure to the airport.

(O.15,144)

Sec. 22-10. Non-conforming structures and trees.

(a) *Nonconforming structures and uses.* If a lawful structure or use exists at the effective date of the ordinance adopting or amending this article that would not be allowed under the terms of this article, the structure or use shall be allowed to remain and continue so long as it remains otherwise lawful, subject to the following:

(1) Except when required by law, no such structure shall be enlarged, extended, reconstructed, moved or structurally altered, unless the structure is changed to conform with the requirements of this article.

(2) Any existing use of a building prohibited by this article may be extended throughout any parts of the building which were manifestly arranged or designed for such use on the effective date of the ordinance adopting or amending this chapter. No such use shall be expanded to occupy any land outside such building.

(3) If an existing use is abandoned, the use of such property shall thereafter conform to the uses permitted in the zone in which it is located. A use shall be deemed abandoned if while such use has been discontinued the owner of the property makes any change to the property inconsistent with the resumption of such use.

(4) If an existing use is discontinued for more than one year for any reason whatsoever, the use of such property shall thereafter conform to the uses permitted in the zone in which it is located.

(5) Any existing structure prohibited by this article or devoted to a use prohibited by this article, that is destroyed by any means to an extent of 60 percent or more of its replacement cost at the time of destruction, exclusive of the foundations, shall not be reconstructed and used as before such happening. If the structure be less than 60 percent destroyed above the foundation, it may be reconstructed and used as before, provided it is done within six months of such happening and is built of like or similar materials.

(b) *Nonconforming trees.* No pre-existing tree shall be allowed to grow higher, or be replanted so as to constitute a greater airport hazard than it was at the time this article was adopted. (O.15,144)

Sec. 22-11. Board of adjustment.

(a) The board of adjustment created by section 134-61 shall have the following powers in the administration of this article:

(1) *Appeals.* Any person aggrieved by any decision of the zoning enforcement officer in the enforcement of this article may appeal such decision to the board of adjustment in the following manner:

a. Each appeal shall be taken within a reasonable time as provided by the rules of the board. The zoning enforcement officer shall forthwith transmit to the board all papers constituting the record upon which the action appealed from is taken.

b. An appeal stays all proceedings in furtherance of the action appealed from, unless the zoning enforcement officer certifies to the board after notice of appeal shall have been filed, that because of the facts stated in the certificate, a stay would, in the opinion of the zoning enforcement officer, cause imminent peril to life or property. In such case, proceedings shall not be stayed otherwise than by a restraining order which may be granted by the district court.

c. The board shall fix a reasonable time for the hearing on the appeal, shall give public notice thereof as well as due notice to the parties in interest, and shall decide the appeal within a reasonable time. At the hearing any party may appear in person or by agent or by attorney. Before an appeal is filed with the board of adjustment, the appellant shall pay a fee to the city treasurer in the amount specified by section 82-2 of this Code.

(2) *Exceptions.*

a. *With FAA approval.* The Board may grant exceptions to the height and use restrictions of this article in favor of an applicant if the applicant has first obtained a written order or determination from the FAA finding that the proposed modification to the height or use limitations will not result in a hazard to any aircraft in flight, and will not result in the raising of the minimum instrument flight altitude of any federal airway, approved off-airway route, or instrument approach procedure to the airport, provided the following conditions are also satisfied:

1. The exception is reasonably necessary due to practical difficulties related to the land in question and such practical difficulties cannot be overcome by any feasible alternative means other than an exception;

2. No use of land shall be permitted that would not be compatible with airport operations;

3. Such exception shall be subject to any reasonable conditions that the Board may deem neces-

sary to effectuate the purposes of this article and of Chapter 329 of the Iowa Code; and

4. Such exception shall be subject to the reservation of the right of the city to order the owner of such structure to install, operate, and maintain thereon such FAA approved markers and lights as may be necessary to indicate to operators of aircraft the existence of an obstruction.

b. *Without express FAA approval.* The Board may grant exceptions to the requirements of this article if the following conditions are satisfied:

1. A copy of the application has been submitted to the aviation director and the aviation director has been given an opportunity to comment regarding the aeronautical effects of such an exception. If the aviation director fails to respond to the board within 45 days from receipt of the copy of the application, the board may proceed with consideration of the application without a response from the director.

2. The exception is reasonably necessary due to practical difficulties related to the land in question and such practical difficulties cannot be overcome by any feasible alternative means other than an exception.

3. No exception shall be granted which would result in a hazard to any aircraft in flight or to persons or property on the ground, or would result in the raising of the minimum instrument flight altitude of any federal airway, or would otherwise be contrary to the public interest.

4. A exception may be granted only if the granting of the exception will do substantial justice and be in accordance with the spirit of this article and Chapter 329 of the Iowa Code.

5. Such exception shall be subject to any reasonable conditions that the board may deem necessary to effectuate the purposes of this article and of Chapter 329 of the Iowa Code.

6. Such exception shall be subject to the reservation of the right of the city to order the owner of such structure to install, operate, and maintain thereon such FAA approved markers and lights as may be necessary to indicate to operators of aircraft the existence of an obstruction.

(b) Any person aggrieved or adversely affected by any decision of the board of adjustment may appeal such decision pursuant to the provisions of the Iowa Code.
(O.15,144)

Sec. 22-12. Enforcement.

(a) Except as herein provided, it shall be unlawful for any person to construct or alter any structure, use any land, or grow any tree in violation of the provisions of this article.

(b) Any person who fails to perform an act required by this chapter or who commits an act prohibited by this chapter shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.

(c) The city may, pursuant to Section 329.5 of the Iowa Code, maintain an action in equity to restrain and abate as a nuisance the creation, establishment or maintenance of a non-compatible use, obstruction, or hazard, in violation of any provision established by this article.
(O.15,144, 15,608)

Sec. 22-13. Severability.

If any section, provision, or part of this article shall be adjudged to be invalid, such adjudication shall not affect the validity of this article as a whole, nor any section, provision or part thereof not adjudged invalid.
(O.15,144)

Secs. 22-14—22-49. Reserved.

ARTICLE II. DES MOINES AIRPORT AUTHORITY

Sec. 22-50. Creation.

Pursuant to the provisions of the Iowa Aviation Authority Act, Iowa Code chapter 330A, there is created the "Des Moines Airport Authority" which is granted all the rights and powers authorized by that statute. The authority shall perform its duties in accordance with all applicable federal, state and local laws and Federal Aviation Administration grant assurances.
(O.15,144)

Sec. 22-51. Transfer of aviation facilities.

The city shall transfer to the authority all aviation facilities, as that term is defined in Iowa Code section 330A.2 (2009) and all other airport assets held by or in the name of the city. The city shall transfer airport land to the authority by long term lease.
(O.15,144)

Sec. 22-52. Land acquisition and disposition.

When acquiring land or interests in land in the exercise of its powers granted by chapter 330A, the authority has the right to acquire the land or interests in land in the name of the city. The authority may, with the consent of the council, permanently dispose of airport land no longer needed for airport purposes and apply the proceeds consistent with federal requirements for the use of airport revenue.
(O.15,144)

Sec. 22-53. Board.

(a) *Appointment and term.* The authority is governed by a five member board made up of residents of the city. The mayor shall nominate members of the board for appointment by the council. Appointments will be for terms of four years; except that, of the initial board, two members chosen by lot will be appointed for two year terms. Board members serve at the pleasure of the council and may be reappointed without limit. Board members should have expertise in aviation, business, accounting, finance, marketing, engineering, law, real estate development, management or other fields of value to the operation of the airport. The city manager, or his or her designee, is an ex officio, nonvoting member of the board.

(b) *Expiration of term and notices.* The terms of board members conclude on June 30 of the year in which their terms expire and the council shall appoint or reappoint board members at or before its last meeting immediately prior to June 30. On or before March 1 of each year, the board secretary shall submit to the city clerk, the mayor and the members of the council a list of board members whose terms will expire on June 30 of that year. When a vacancy occurs other than by expiration of a term, the board secretary shall provide notice of the vacancy to the city clerk, mayor and council members as soon as the board secretary is made aware of the vacancy.

(c) *Nominations list.*

(1) To complete the appointments to the initial board, each council member, including the mayor, may submit to the city clerk the names of two persons to be placed on a list of proposed nominations for the board. The mayor shall nominate board members from the proposed nominations list. However, if there are not a sufficient number of names on the list to fill the initial board, the mayor may nominate persons not on the list.

(2) When the council receives notice from the board secretary that one or more vacancies by expiration of term are imminent, or that a vacancy has otherwise arisen, each council member, including

the mayor, may submit to the city clerk the name of one person to be placed on a list of proposed nominations for the board. The mayor shall nominate board members from the proposed nominations list. However, if there are not a sufficient number of names on the list to fill the current vacancies, the mayor may nominate persons not on the list. Submissions to the proposed nominations list must be received by the city clerk on or before April 15 to fill vacancies by expiration of a term and within 20 days after the notice of vacancy for other vacancies.

(d) *Vacancies by expiration of term.* If the mayor fails to present the council a nomination to fill an expiring term at least four weeks prior to its expiration, members of the council may, at or before the meeting immediately prior to June 30, present nominations from the nomination list for the council's consideration and the council may appoint a member from the nominations.

(e) *Other vacancies.* When a vacancy occurs other than by expiration of a member's term, the vacant position must be filled within 45 days of the vacancy and the mayor shall within 30 calendar days of the notice of vacancy nominate a replacement to serve out the remaining term of the member whose departure caused the vacancy. If the mayor fails to put forward a timely nomination to fill the vacancy, members of the council may present nominations from the nomination list for the council's consideration at the next council meeting and the council may appoint a member from the nominations.
(O.15,144)

Sec. 22-54. Meeting and minutes.

The board shall hold at least one public meeting each month, at such time as the board may establish in its bylaws. The board secretary shall keep minutes of each meeting and keep the minutes and all resolutions open to public inspection. The board secretary shall provide copies of the minutes to the city council. The board shall conduct all meetings in compliance with all applicable state and federal laws, including Iowa Code chapter 21 pertaining to open meetings.
(O.15,144)

Sec. 22-55. Legal effect of regulations adopted.

Regulations adopted by the board have the effect of law. In addition to any remedy provided by a regulation, any person who fails to perform an act required by such regulation or who commits an act prohibited by such regulation shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.
(O.15,144, 15,608)

Sec. 22-56. City ordinances.

Ordinances adopted by the council are enforceable as provided in this Code to the extent applicable on airport property.
(O.15,144)

Sec. 22-57. Compliance with peace officers.

No person shall knowingly resist or obstruct a peace officer in the performance of any official duty on the airport which is in the scope of the officer's authority.
(O.15,144)

Sec. 22-58. Reserved.

Editor's note—Ord. No. 15,608, § 1, adopted Sept. 11, 2017, repealed § 22-58, which pertained to penalty and derived from Ord. No. 15,144.

Sec. 22-59. Hunting on airport property.

No person shall pursue, hunt, kill, snare, net, search for, shoot at, stalk, or lie in wait for any game, animal, or bird with an air gun, BB gun, firearm, bow and arrow, or any other thrown or propelled device on authority controlled property unless written permission to do so has been granted by the authority director for the purpose of wildlife hazard control and in accordance with federal, state and local rules and regulations.
(O.15,144)

Sec. 22-60. Reports.

The authority shall within 120 days after the end of each fiscal year prepare and deliver to the

city council an annual report addressing its capital improvement program, its financial status and a statistical summary of its operations and activity.
(O.15,144)

Sec. 22-61. Dissolution.

The council reserves the right to dissolve the authority by repealing or amending this chapter of the City Code in compliance with Iowa Code chapter 330A. Upon dissolution, all rights and property of the authority will become the rights and property of the city and the city shall assume all debts and obligations of every nature of the authority.
(O.15,144)

Sec. 22-62. Effective date.

The authority board will assume its duties upon the approval by both the city and the authority of a document transferring control of the Des Moines International Airport to the authority.
(O.15,144)

Chapters 23—25

RESERVED

Chapter 26

BUILDINGS AND BUILDING REGULATIONS*

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*__Editor's note—__Ord. No. 15,545, § 1, adopted Dec. 19, 2016, effective March 1, 2017, repealed the former Ch. 26, and enacted a new Ch. 26 as set out herein. The former Ch. 26 pertained to similar subject matter and derived from Ord. No. 15,206, § 1, adopted August 12, 2013. For complete derivation see the Code Comparative Table.

__Cross references__—Construction and cleaning of buildings for housing animals on acreage, § 18-7; painting house numbers on curbing, § 30-156 et seq.; environment, ch. 42; fire prevention and protection, ch. 46; floodplains, ch. 50; health and sanitation, ch. 54; historical preservation, ch. 58; planning, ch. 82; public housing, ch. 90; public improvements, ch. 94; solid waste, ch. 98; streets, sidewalks, skywalks and other public places, ch. 102; numbering of buildings, § 102-961; moving of houses and heavy equipment, § 102-996 et seq.; subdivisions, ch. 106; utilities, ch. 118; vegetation, ch. 122; waterways, ch. 130; zoning ordinance, ch. 134; sewer districts, app. G.

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ARTICLE I. IN GENERAL

Sec. 26-1. Title.

This chapter shall consist of the building code, energy code, electrical code, mechanical code and fuel gas code, plumbing code, and steam power equipment code, all of which shall be referred to collectively as the "building codes" or "this chapter." This chapter shall also regulate sign and billboard structures and energy and water use benchmarking for certain properties in the city. A person who performs or is in the business of performing the work or activities regulated by this chapter may be referred to as a "contractor."
(O.15,545, 15,779)

Sec. 26-2. Purpose.

The purpose of this chapter is to provide for the protection and improvement of the public health, safety and welfare by: creation of a permit and development division, a building and fire code board of appeals; adoption of building codes; enforcement of penalties for the violation of the building codes; repeal of conflicting ordinances; and assessment of energy and water use of properties.
(O.15,545, 15,779, 16,412)

Sec. 26-3. Interpretation.

Article I consists of general provisions applicable to all articles. Articles II through IX contain specific provisions pertaining to particular trades and activities. In the event of a conflict with article I, the specific provisions of articles II through IX shall control.
(O.15,545, 15,779)

Secs. 26-4—26-99. Reserved.

DIVISION 1. PERMIT AND DEVELOPMENT DIVISION

Sec. 26-100. Permit and development division established; officials appointed.

There is established in the city within the development services department the permit and development division which shall be under the direction and supervision of the building official. The building official shall be appointed by and be responsible to the director of the development services department.
(O.15,545, 16,317)

Sec. 26-101. Powers and duties of building official.

(a) *Generally.* Any reference in this article to the building official shall include the building official's designees and inspection staff. The general powers and duties of the building official shall be as follows:

(1) Enforce all the provisions of this chapter exclusive of article IX.

(2) Be accountable for the issuance of permits and inspections of work.

(3) Serve as city staff and advisor to the building and fire code board of appeals

(4) Render interpretations of the building codes and adopt and enforce rules and regulations supplemental to such codes as the building official may deem necessary in order to clarify the application of the provisions of such codes. Such interpretations, rules and regulations shall be in conformity with the intent and purpose of the applicable code.

(5) Determine value or valuation under any of the provisions of the building codes.

(6) Appoint staff members and delegate duties to those staff members.

(b) *Reports and records.* The building official shall:

(1) Provide the director of development services and the city manager, not less than once per year a summary of the building official's recommendations as to desirable amendments to the building codes.

(2) Keep a permanent, accurate account of all fees and other monies collected and received under the codes assigned to the building official for enforcement, the names of the persons upon whose account

the fees were paid, the date and amount thereof, together with the location of the building or premises to which they relate.

(3) Keep a record of the issuance of permits, inspections made, and other official work performed in accordance with this chapter.

(4) Keep records of building and fire code board of appeals meetings, hearings, rulings, and other matters performed in accordance with this chapter.

(c) *Specific powers.*

(1) Whenever any condition exists that is in violation of the codes or creates a danger to health and safety, the building official may until further notice:

a. Order any work stopped.

b. Order changes to any work to correct an unsafe or illegal condition.

c. Order discontinuation of any utilities supplying the premises.

d. Order vacation of any premises.

The building official shall give notice of such action to individuals in control of the premises, and may prescribe a period of time to comply with such notice based on the urgency of the situation.

(2) Whenever necessary to make an inspection to enforce any of the provisions of the building codes or whenever the building official has reasonable cause to believe that there exists in any building or upon any premises any condition or code violation which makes such building or premises unsafe, dangerous or hazardous, the building official may enter such building or premises at all reasonable times to inspect the building or premises or to perform any duty imposed upon the building official by the building code. However, if such building or premises is occupied, the building official shall first present proper credentials and request entry. If such entry is refused, the building official shall have recourse to every remedy provided by law to secure entry. When the building official shall have first obtained a proper inspection warrant or other remedy provided by law to secure entry, no owner or occupant or any other persons having charge, care or control of any building or premises shall fail or neglect, after proper request is made as provided in this subsection, to promptly permit entry therein by the building official for the purpose of inspection and examination pursuant to the such codes.

(3) The building official shall have the authority to remove or cause the removal of covering, finishes, or other obstruction which may prevent the proper inspection of work or equipment.

(d) *Emergencies and public nuisances.* Whenever the building official determines that a public nuisance exists which constitutes an emergency requiring immediate abatement, the city may perform any emergency action necessary to abate the nuisance without prior notice or hearing.

(e) *Cooperation of other officials and officers.* The building official may request and shall receive so far as is required, in the discharge of the building official's duties, the assistance and cooperation of other officials of this jurisdiction.

(f) *Conflict of Interest.* Neither the building official nor any of the inspectors shall engage in any work for hire regulated by that individual, either directly or indirectly, nor shall the official or any of the inspectors have any financial interest in any firm engaged in such trade or business in the city at any time while employed by the city.

(g) *Liability.*

(1) Neither the city nor any employee is liable for damages to a person or property as a result of any act or failure to act in the enforcement of the building codes, unless the act of enforcement constitutes false arrest.

(2) The building codes shall not be construed to relieve from or lessen the responsibility of any person owning, operating or controlling any equipment or structure

regulated by such codes for damage to a person or property caused by its defects, nor shall the city or any city employee be held as assuming any such liability because of the inspections authorized by such codes or any approvals issued under such codes.

(O.15,545, 15,779, 16,412)

Secs. 26-102—26-119. Reserved.

DIVISION 2. BUILDING AND FIRE CODE BOARD OF APPEALS

Sec. 26-120. Building and fire code board of appeals created; authority.

There is created a building and fire code board of appeals with authority to:

(1) Review the building, energy, electrical, mechanical and fuel gas, plumbing, and fire codes periodically and make recommendations thereto to the city council.

(2) Act as a board of appeals to hear grievances arising from a decision of the building official or fire chief and to provide for reasonable interpretations consistent with the provisions of the building, energy, electrical, mechanical and fuel gas, plumbing and fire codes. Any person may upon written request appeal a previous decision of the building official or fire chief in the enforcement of such codes to the board for consideration.

(3) Determine the suitability of alternate materials and types of construction to those otherwise allowed by the building codes and to provide reasonable interpretations of the provisions of such article.

(O.15,545, 16,412)

Sec. 26-121. Terms; composition.

(a) The building and fire code board of appeals shall consist of 17 members. Fifteen of the members shall be appointed for terms of three years, provided however that the terms of five of the initial appointed members shall be for one year, and the terms of five of the initial appointed members shall be for two years. All appointed terms shall expire on April 1st.

(b) The appointed members of the building and fire code board of appeals shall consist of the following persons having a minimum of five years of experience in the required field:

(1) One Iowa licensed architect.

(2) One Iowa licensed professional engineer (structural or construction).

(3) One Iowa licensed professional engineer (mechanical).

(4) One Iowa licensed professional engineer (electrical).

(5) One general contractor experienced in residential construction.

(6) One general contractor experienced in commercial construction.

(7) One electrician who holds a master electrician license issued by the State of Iowa and is in responsible charge of the electrical installation operation of a licensed electrical contracting firm.

(8) One electrician who holds either a master electrician license or a journeyperson electrician license issued by the State of Iowa.

(9) One plumber who holds an active master plumber certificate of competency or license issued by the State of Iowa and is in responsible charge of the plumbing installation operation of a licensed plumbing contracting firm.

(10) One plumber who holds an active master or journeyperson plumber license issued by the State of Iowa.

(11) One mechanical person who holds a master's mechanical license issued by the State of Iowa and is in responsible charge of the mechanical installation operation of a licensed mechanical contracting firm.

(12) One mechanical person who holds an active master or journeyperson mechanical license issued by the State of Iowa.

(13) One licensed attorney.

(14) One person shall be a qualified engineer, architect, technologist, technician or safety professional trained in fire protection engineering, fire science or fire technology, including but not limited to fire protection contractors and certified technicians engaged in fire protection system design.

(15) One person with experience in historic preservation.

(c) Quorum shall be a majority of the appointed members at the time of the meeting, but quorum shall not be less than five members.

(d) The building official and fire marshal shall serve as ex officio members of the board.

(e) Any member of the board may be removed by the city council for malfeasance in office, incapacity, or neglect of duty.

(f) If the city council determines that no other qualified individual is available for appointment to a particular position on the board the, city council may waive the term limits imposed by section 2-1059 and reappoint an individual to a third or subsequent consecutive term in that position.
(O.15,545, 15,927, 16,317)

Sec. 26-122. Hearings.

(a) Any person affected by a decision of the building official, fire chief or their designees, may request and shall be granted a hearing before the building and fire code board of appeals on the decision, provided that the person shall file in the permit and development center a written petition requesting a hearing and setting forth a brief statement of the grounds within 15 days after receiving notice of the decision. Upon receipt of the petition, the permit and development center shall set a time and place for the hearing and shall give the petitioner written notice thereof at least three days before the hearing, unless such notice requirement is waived in writing by the petitioner. The hearing shall be commenced not later than 30 days after the day on which the petition was filed, unless for good cause shown the building official grants a postponement in writing.

(b) At the hearing the petitioner shall be given an opportunity to be heard to show why the decision of the building official, fire chief or their designees should be modified or withdrawn. The building official or fire chief shall have the opportunity to be heard to show why their decision should be affirmed.
(O.15,545)

Sec. 26-123. Decisions.

(a) After the hearing as provided in section 26-122, the building and fire code board of appeals shall affirm, modify or withdraw the decision of the building official, fire chief or their designees. The decision of the board is the final administrative decision.

(b) The proceedings at any hearing before the board, including the findings and decision of the building official or fire chief, if applicable, shall be summarized, reduced to writing, and entered as a matter of public record in the permit and development center. This record shall include a copy of every notice or order issued in connection with the matter.
(O.15,545)

Sec. 26-124. Meetings; rules of procedure.

(a) The building and fire code board of appeals shall hold regular meetings as necessary to hear appeals or conduct other business. Special meetings may be called at any time by the chair of the board, the building official, the fire chief or upon the written request of two members of the board to the chair and the building official or fire chief.

(b) The building and fire code board of appeals shall adopt reasonable rules and regulations for conducting its meetings.

(c) The city council shall provide suitable rooms in which the board shall hold its meetings and shall provide for the necessary expenses incurred by the board.
(O.15,545)

Sec. 26-125. Legal counsel.

The building and fire code board of appeals shall have the right to legal counsel from the city attorney.
(O.15,545)

Secs. 26-126—26-134. Reserved.

DIVISION 3. PERMITS AND FEES

Part 1. General

Sec. 26-135. Permits required.

No person shall perform any work for which a permit is required under this chapter without first securing a permit from the building official. A property owner who allows, or has knowledge of work being performed without a permit as required by this chapter shall be responsible for ensuring permits are obtained, inspected, and approved. A separate permit shall be obtained for each building, individual address and each trade discipline unless otherwise indicated.
(O.15,545, 15,597)

Sec. 26-136. Issuance of permits.

(a) The building official shall issue electrical, mechanical and plumbing permits in the name of the contractor and the contractor's business, if any. If a contractor becomes associated with a new firm or corporation, immediate notice must be given by filing the name of such firm or corporation with the office of the building official.

(b) In cases in which an owner-occupant of a single-family dwelling desires to conduct work on electrical, mechanical, or plumbing systems in the owner-occupant's single-family dwelling, the building official may require the owner-occupant to demonstrate that he or she is competent to do the specific work before issuing the permit. For purposes of this section a single family dwelling unit shall mean a detached residence designed for or occupied by one family only which is the primary residence of the owner-occupant with record of homestead and qualifies for the homestead tax exemption. No refrigeration work requiring the recovery or charging of such systems shall be conducted by those individuals not having the required certification in accordance with CFC federal regulations.

(c) A person seeking a permit to construct a swimming pool, spa, or water recreational facility, or any addition, remodeling or other alteration thereto shall make application to the office of the building official for such permit. The plans and specifications and plot plan, as well as other pertinent explanatory data, shall be submitted with each application.

(d) A person seeking to erect, alter, relocate or maintain any sign or sign structure, as defined in section 26-800, shall make application to the zoning enforcement officer for a permit to conduct such work.

(e) No permit shall be issued to any person who has fees outstanding as required by this article or any other laws or city ordinances.
(O.15,545, 15,861)

Sec. 26-137. Permit transferability; permit restrictions.

(a) Electrical, mechanical, and plumbing permits issued pursuant to this chapter are not transferable. Either the person or contractor securing the permit or another qualified employee from the same firm or business as the contractor shall perform the work.

(b) A contractor shall secure permits only for themselves and their firm or business. When a contractor has secured a permit, only the employees of that contractor or that contractor's firm or business shall perform the work for which the permit was obtained. For purposes of this section, an employee shall be one employed by the contractor for a wage or salary. A contractor may be required by the building official to show positive evidence as to the employee status of workers on the job. The evidence shall be in the form of payroll and time records, cancelled checks, or other documents. The contractor may also be required to show the agreement or contract pertaining to the work being questioned as evidence that he or she is, in fact, the actual contractor for the work. Failure or refusal by the contractor to make available such employee or

contractual records within 24 hours of demand shall be grounds for immediate revocation of any permit for the work in question.

(c) Building permits issued pursuant to this chapter may be transferred to another individual provided the original permit applicant provides written permission to allow such transfer. (O.15,545)

Sec. 26-138. Permit fees.

(a) There shall be paid to the development services department for the issuance of each permit, fees in the amounts set in the schedule of fees adopted by the city council by resolution. Permit fees shall include but not be limited to fees for plumbing permits, mechanical permits, electrical permits, building permits, certificates of occupancy, building plan reviews, engineering reviews, planning reviews, zoning reviews, demolition permits, energy reviews, handicap reviews, reinspections, signs and billboards, erosion control inspections, and fees for failure to obtain permits before starting work.

(b) The determination of value or valuation under any of the provisions of the building codes shall be made by the building official. The valuation to be used in computing the permit and plan-check fees shall be the total value of all construction work for which the permit is issued, as well as all finish work, painting, roofing, electrical, plumbing, heating, air conditioning, elevators, fire extinguishing systems and any other permanent work or permanent equipment. The building valuation shall not be less than the valuation derived from the most current Building Valuation Data published by the International Code Council (ICC).

(c) If a permit is issued for a specific amount of work and, upon inspection, it is determined that more work was performed than was authorized by the permit, the permittee shall amend the permit or obtain another permit to include all additional work and shall pay any fees pursuant to paragraph (a) for the new or amended permit.

(d) If an inspection is requested and performed and the building official determines that the work was not ready, or the inspection fails two or more times, a re-inspection fee may be charged at the discretion of the building official in the amounts set in the schedule of fees adopted by the city council by resolution.

(e) Inspections may be conducted outside of regular business hours for projects that pay an overtime inspection fee in the amount set in the schedule of fees adopted by the city council by resolution.

(f) In addition to other fees required in this section, a fee shall be paid to the building official for the review of plans and inspection of construction for compliance with the energy code. The amount of such fee is set in the Schedule of Fees adopted by the city council by resolution.

(g) *Plan-checking fees.* Plan-checking fees shall be as follows:

(1) When a plan is required to be submitted a plan-checking fee in the amount set in the schedule of fees adopted by the city council by resolution shall be paid to the building official at the time of submitting plans and specifications for checking. Exception: The plan-check fee for buildings of one and two family dwelling occupancies and accessory structures for compliance with the International Residential Code may be waived by the building official when the plans do not involve unusual or complex engineering design features.

(2) Where plans are incomplete or changed so as to require additional plan checking, an additional plan-check fee shall be charged at the rate set in the schedule of fees adopted by the city council by resolution.

(3) Additional plan checking time may be dedicated to projects that pay an overtime plan checking fee in the amount set in the schedule of fees adopted by the city council by resolution.

(4) Applications for which no permit is issued within 180 days following the date of

application shall expire by limitation, and plans submitted for checking may thereafter be returned to the applicant or destroyed by the building official. The building official may extend the time for action by the applicant for a period not exceeding 180 days upon written request by the applicant showing that circumstances beyond the control of the applicant have prevented action from being taken. In order to renew action on an application after expiration, the applicant shall resubmit plans and pay a new plan-check fee.

(h) No permit shall be issued to any person or firm that owes the city any outstanding fees or fines.

(O.15,545, 15,597, 15,861, 16,412)

Sec. 26-139. Fee for failure to obtain permit before starting work.

Except in emergency situations, as determined by the building official, if work for which a permit is required is started or continued by any person before obtaining a required permit, the regular total fees as specified in this article for such work may be doubled. The payment of such double fee shall not relieve any person from fully complying with the requirements of the building codes in the execution of the work nor from any other penalties prescribed in this chapter. However, no double fee shall be imposed upon any person who starts work without a permit if:

(1) Work is started on Saturday, Sunday, or holiday, or during any other day when the office of the building official is not normally open for business; and

(2) Such person secures the proper permit on the next working day of the development services department; and

(3) No plan review is required prior to issuance of the permit.

(O.15,545, 16,224)

Sec. 26-140. Collection of fees; refunds.

(a) All fees due the city for examinations, licenses, certificates and permits pursuant to this chapter shall be collected in the office of the building official and paid thereafter to the city treasurer.

(b) Fee refunds. Fees may be refunded as follows:

(1) The building official may authorize the refunding of any fee paid under this section which was erroneously paid or collected.

(2) The building official may authorize the refunding of not more than 80 percent of the permit fee paid when no work has been done under a permit issued in accordance with the building code.

(3) The building official may authorize the refunding of not more than 80 percent of the plan review fee paid when an application for a permit for which a plan review fee has been paid is withdrawn or cancelled before any plan reviewing is done.

A minimum administrative fee in the amount set in the schedule of fees adopted by the city council by resolution shall be charged for fee refunds. The building official shall not authorize the refunding of any fee paid except upon written application filed by the original permittee not later than 180 days after the date of fee payment.

(O.15,545)

Sec. 26-141. Exemption from fees.

(a) Persons performing work on government owned and occupied public properties for the federal, state, county or city governments may obtain permits for that work without paying the permit fees described in this section, provided that nothing in this section shall be construed to exempt payment of permit fees by persons working under the direction of the city in connection with the abatement of any public nuisance on private property, pursuant to city ordinance or state law. The exemption provided by this subsection shall not apply to any quasi-governmental or multi-governmental entity such as one created pursuant to Iowa Code Chapter 28E.

(b) *Waiver of permit fees by city council.* The city council upon receipt of timely application may by resolution waive payment of permit fees required in this chapter to persons who develop a

project within the Metro Center Urban Renewal Project Area which will receive assistance from the city, from Polk County or from the state of Iowa under Iowa Code, Chapter 15F, Vision Iowa Program.
(O.15,545, 16,317)

Sec. 26-142. Revocation, expiration and extension of permit.

(a) Any permit required by this chapter may be revoked by the building official upon the violation of any section of this article. In addition to the revocation of a permit a person shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code, or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.

(b) A willfully false statement in an application for a permit shall be sufficient cause for revocation.

(c) Building, electrical, mechanical and plumbing permits issued by the building official shall expire under any one of the following conditions:

(1) Failure to begin work authorized within 180 days after issuance of the permit.

(2) Suspension or abandonment of work for 180 days after commencement of the work. Time of occurrence of suspension or abandonment of work shall be computed from the date of the most recent inspection since which no progress has been made.

(3) Failure to complete work on a structure designed for residential uses or a townhouse structure that is part of a townhouse development of eight or fewer units within one year after issuance of a permit.

(4) Failure to complete work on a structure designed for commercial uses. industrial uses, or a townhouse structure that is part of a townhouse development of more than eight units within two years after issuance of a permit.

(5) Failure to complete work on a structure designed for commercial or industrial uses that is unusually complex, as determined by the building official, within three years after issuance of a permit.

(d) The building official is authorized to grant one 180-day extension of time for permits set to expire in one year and up to three 180-day extensions of time for permits set to expire in more than one year.

(e) Extensions in subsection (d) of this section may be further extended by action of the city council. An expired permit may not be reissued without a permit fee except by resolution of the city council.

(f) The building official is authorized to grant an extension to a building obstruction permit for an amount of time determined to be acceptable by the building official and city engineer in their exclusive discretion.
(O.15,545, 15,597, 15,608, 15,656, 15,861, 16,412)

Sec. 26-143. Validity of permit.

(a) The issuance or granting of a permit or approval of plans and specifications shall not be construed to be a permit for or an approval of any violation of any of the provisions of the building codes. No permit presuming to give authority to violate or cancel the provisions of the building codes shall be valid, except insofar as the work or use which it authorizes is lawful.

(b) The issuance of a permit based upon plans and specifications shall not prevent the building official from thereafter requiring the correction of errors in such plans and specifications or from preventing construction being carried on when in violation of the building codes or of any other ordinance.
(O.15,545)

Secs. 26-144—26-149. Reserved.

DIVISION 4. INSPECTIONS AND ENFORCEMENT

Sec. 26-150. Inspections.

(a) The person doing any work for which a permit is required shall notify the building official that the work is ready for inspection. The build-

ing official shall perform the required inspection and issue verification noting the date and results of the inspection.

(b) When a permit applicant is notified that inspections need to be scheduled, the applicant shall schedule such inspections within ten days of notification. If not so made, the building official may refuse to issue any other permits to the applicant or for the property until inspections are scheduled and approved.

(c) All construction trades inspectors shall have the right to enter upon any property during reasonable hours in the discharge of their official duties. They are authorized and directed to inspect any and all building and environmental support system installations within the city and order the removal, reconfiguration or other modification, for the protection of the public health, safety and welfare, of any system or component that is not in compliance with the provisions of municipal ordinances and construction codes. Such order may mandate the isolation of affected systems or disconnection of utilities.

(d) Inspections may be conducted outside of regular business hours pending staff availability. After hours inspections will be charged an overtime inspection fee in the amount set in the schedule of fees adopted by the city council by resolution.
(O.15,545, 15,861)

Sec. 26-151. Notice of and failure to remedy defects.

Any work for which a permit is required is subject to inspection at any time. The building official may revoke a permit at any time when the work is not in compliance with the building codes, or any other applicable law, ordinance, rule or regulation. The building official may take any necessary action including but not limited to disconnecting utility service affecting the defective work. The utility service shall not be reinstated until all defects or improper conditions have been removed or repaired and re-inspected to assure compliance with the provisions of the building codes.
(O.15,545)

Sec. 26-152. Correcting defective work.

When a contractor is notified that defects exist in the work, the contractor shall make corrections within 30 days after notification. If not so made, the building official may refuse to issue any other permits to the contractor or for the property until defects are corrected and the work is approved after re-inspection by the building official.
(O.15,545)

Sec. 26-153. Covering or concealing work.

No work for which a permit is required shall be concealed in any manner from access or sight until the work has been inspected and approved by the building official. When a contractor or property owner is notified that work has been concealed without building official approval, the work shall be exposed and inspections scheduled within 30 days after notification. If not so made, the building official may refuse to issue any other permits to the contractor or for the property until the work is inspected and approved by the building official.
(O.15,545, 15,597)

Sec. 26-154. Temporary work.

Temporary work means work that is installed for the convenience of a contractor or builder during construction. This work shall be the complete responsibility of the person or company that installs it and shall not require the building official's approval prior to being used, provided that the building official may require corrections in the work to eliminate any hazardous or unsafe conditions.

All such work shall be installed by a licensed contractor or the licensed contractor's employee and shall be removed before final approval of permanent work. Temporary work shall not be permitted to remain in use in excess of six months except by written permission of the building official.
(O.15,545)

Sec. 26-155. Furnishing utility service prior to approval of work.

No utility furnishing electrical, gas, or water service shall connect that service, or furnish

electricity, gas, or water to any building or premises which has not been inspected and approved by the building official. Upon written notice from the building official the utility shall immediately disconnect such building or premises from its service.
(O.15,545)

Sec. 26-156. Civil violations and penalties.

(a) No person shall engage in or cause any activity to be done in violation of any provision of the building codes or state laws regulating contractor licensing.

(b) Persons who fail to perform an act required by the provisions of this chapter or who commit an act prohibited by the provisions of this chapter shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.

(c) The city may obtain injunctive relief to enforce the provisions of this chapter.
(O.15,545, 15,608)

Sec. 26-157. Unsafe structures, sites or equipment.

(a) All structures, sites, or equipment which contain one or more of the following defects may be considered unsafe and unfit for occupancy:

(1) Structural instability, dilapidated, decayed, obsolete, dangerous, abandoned, not secured against entry;

(2) Insanitary, contains filth and contamination, vermin infested;

(3) Lack adequate egress, light, ventilation, maintenance, or minimum safeguards to protect or warn occupants in the event of fire;

(4) Involve illegal or improper occupancy.

(b) All unsafe structures, sites, or equipment may be declared to be public nuisances by the building official, are subject to nuisance proceedings of article VI of chapter 42, and shall be abated by repair, rehabilitation, demolition, or removal. All unsafe residential buildings and equipment are also subject to the residential public nuisance code in article III of chapter 60 of this code.
(O.15,545)

Sec. 26-158. Factory built structures.

(a) Factory-built buildings constructed and certified in accordance with the provisions of Iowa Code § 103A.9 shall be exempt from the following requirements of this code.

(1) Sections 26-150, 26-151, 26-152 and 26-153 of this article requiring personal inspection;

(2) Sections 26-450, 26-550, and 26-670 of this article requiring a contractor's license;

(3) Sections 26-451, 26-551, and 26-671 requiring a master, journeyman or apprentice license; and,

(4) Section 26-153 of this article prohibiting the concealment of work prior to inspection.

(b) The correction of violations and all on-site work shall be subject to the provisions of this chapter without benefit of the exemptions provided in this section. The term "on-site work" shall include all work not certified by such certificate of inspection.
(O.15,545)

Sec. 26-159. Failure to complete work by permit expiration date.

A person shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code for failing to complete permitted work by the permit expiration date. The city may also file a civil action in the district court seeking further relief that may include an order to complete permitted work.
(O.15,545, 15,608)

Secs. 26-160—26-199. Reserved.

ARTICLE II. ENERGY CODE

DIVISION 1. GENERALLY

Sec. 26-200. Adoption of the International Energy Conservation Code.

(a) This article shall consist of the International Energy Conservation Code ("IECC"), 2015 edition, published by the International Code Council, including both the Commercial Provisions and the Residential Provisions thereof, which are incorporated by this reference in their entirety, except as otherwise indicated in this article.

(b) This article and all provisions incorporated in this article, by reference or otherwise, shall be known as the energy code. References to section numbers in this article not preceded by "26-" will be to sections in the IECC. References to sections numbers in this article preceded with a "C" will be to the Commercial Provisions in the IECC. References in this article to sections preceded with an "R" will be to the Residential Provisions in the IECC.

(c) Nothing in this division shall be interpreted to apply a lower standard or requirement than imposed by the Residential Energy Code or the Nonresidential Energy Code of the State of Iowa Building Code. In the event the Residential Energy Code or the Nonresidential Energy Code of the State of Iowa Building Code imposes a higher standard or requirement, the applicable energy code of the State of Iowa Building Code shall be enforced in lieu of this division.
(O.15,545)

Secs. 26-201—26-209. Reserved.

DIVISION 2. DELETIONS AND AMENDMENTS

Sec. 26-210. Deletions.

The following sections are deleted from the International Energy Conservation Code, and are of no force or effect in this article:

(1) Section C109.

(2) Section R109.
(O.15,545)

Sec. 26-211. Amendments and additions.

The remaining sections in this division are and represent amendments and additions to the requirements contained in the International Energy Conservation Code, and where their requirements conflict with that code, the requirements of this division shall prevail.
(O.15,545)

Sec. 26-212. Statement of review.

A statement that a review has been accomplished and that the design is in compliance with the energy efficiency standards shall be provided. If the building volume exceeds 100,000 cubic feet of enclosed space that is heated or cooled, the review shall be signed and sealed by the responsible registered architect or licensed professional engineer. This statement shall be filed with the building official on a form approved by the building official prior to construction or before obtaining building permits. The building official may issue permits for footings and foundations prior to the submittal of the statement of review.
(O.15,545)

Sec. 26-213. Scope of IECC residential provisions.

Delete section R101.2 of the IECC and insert in lieu thereof the following new section:

R101.2 Scope. This code applies to residential buildings and the buildings' sites and associated systems and equipment, except the remodeling or renovation of one- and two-family dwelling units. The remodeling or renovation of one- and two-family dwelling units is not within the scope of the IECC or this article.
(O.15,545)

Sec. 26-214. Testing.

Delete the first three sentences of section R402.4.1.2 of the IECC and insert in lieu thereof the following new sentences:

The building or dwelling unit shall be tested and verified as having an air leakage rate not

exceeding 4 air changes per hour. Testing shall be conducted with a blower door at a pressure of 0.2 inches w.g. (50 Pascals). Testing shall be conducted by an approved third party holding one of the following certifications, or an equivalent certification approved by the building official:

(1) Building Analyst certified by Building Performance Institute, Inc.

(2) Home Energy Rating System Rater certified by Residential Energy Services Network.

(3) Duct and Envelope Tightness (DET) Verifier certified by the Illinois Association of Energy Raters.

(O.15,545)

Sec. 26-215. Sealing.

Delete section R403.3.2 of the IECC and insert in lieu thereof the following new section:

R403.3.2 Sealing (mandatory). Ducts, air handlers, and filter boxes shall be sealed. Joints and seams shall comply with either the State Mechanical Code or International Residential Code, as applicable.

EXCEPTIONS:

(1) Air-impermeable spray foam products shall be permitted to be applied without additional joint seals.

(2) Where a duct connection is made that is partially inaccessible, three screws or rivets shall be equally spaced on the exposed portion of the joint so as to prevent a hinge effect.

(3) Continuously welded and locking-type longitudinal joints and seams in ducts operating at static pressures less than 2 inches of water column (500 Pa) pressure classification shall not require additional closure systems.

(O.15,545, 15,832)

Sec. 26-216. Duct leakage (prescriptive).

Delete section R403.3.4 and insert in lieu thereof the following new section:

R403.3.4 Duct Leakage (Prescriptive). The total leakage of the ducts, where measured in accordance with Section R403.3.3 shall be as follows:

(1) Rough-in test: Total leakage shall be less than or equal to 6 cfm (170 L/min) per 100 square feet (9.29 m2) of conditioned floor area where the air handler is installed at the time of the test. If the air handler is not installed at the time of the test, total leakage shall be less than or equal to 3 cfm (85 L/min) per 100 square feet (9.29 m2) of conditioned floor area.

(2) Postconstruction test: Leakage to outdoors shall be less than or equal to 4 cfm (113.3 L/min) per 100 square feet (9.29 m2) of conditioned floor area or total leakage shall be less than or equal to 6 cfm (170 L/min) per 100 square feet (9.29 m2) of conditioned floor.

(O.15,545)

Sec. 26-217. Building cavities.

Delete section R403.3.5 of the IECC and insert in lieu thereof the following new section:

R403.3.5 Building cavities (mandatory). Building framing cavities shall not be used as supply ducts. Building framing cavities may be used as return ducts only if both of the following conditions exist:

(1) Ducts must be tested for duct leakage in accordance with section R403.3.3.

(2) Exterior wall cavities shall not be used for return ducts.

(O.15,545)

Sec. 26-218. Commissioning agent for commercial buildings.

Insert the following at the end of section C408.2. The commissioning agent shall be in no

way affiliated with the project's design, installation or sale of products, to avoid any conflict of interest. The commissioning agent shall be accredited by an industry recognized certification program that is acceptable to the authority having jurisdiction.
(O.15,545)

Secs. 26-219—26-299. Reserved.

ARTICLE III. BUILDING CODE*

DIVISION 1. GENERALLY

Sec. 26-300. Adoption of International Codes.

(a) The provisions of the International Building Code, 2024 edition, published by the International Code Council, 500 New Jersey Avenue NW, 6th Floor, Washington, D.C., 20001 are hereby adopted by reference and subject to the additions, deletions and modifications hereinafter stated as the general requirements for commercial building construction in the City of Des Moines.

(b) The provisions of the International Residential Code, 2024 edition published by the International Code Council, 500 New Jersey Avenue NW, 6th Floor, Washington, D.C., 20001, except for Part VI — Fuel Gas, Part VII — Plumbing and Part VIII — Electrical; and with the adoption of appendices BC, BD, BF, BG, BO, and CD are hereby adopted by reference and subject to the additions, deletions and modifications hereinafter stated as the general requirements for construction, alteration, movement, enlargement, replacement, repair, equipment, use and occupancy, location, removal, and demolition of detached one-and two-family dwellings and multiple single-family dwellings (townhouses) not more than three stories in height with a separate means of egress and their accessory structures in the City of Des Moines.

(c) The provisions of the International Existing Building Code, 2024 edition, published by the International Code Council, 500 New Jersey Avenue NW, 6th Floor, Washington, D.C. 20001 are hereby adopted by reference and subject to the additions, deletions, and modifications hereinafter regulating the repair, alteration, change of occupancy, addition and relocation of existing buildings, including historic buildings, in the City of Des Moines.

(d) This article and all provisions incorporated in this article, by reference or otherwise, shall be known as the building code. References to section numbers not preceded by "26-" will be to sections in the International Building Code (IBC), the International Existing Building Code (IEBC) or the International Residential Code (IRC).

(e) All references to the International Plumbing Code found within the IRC, IBC, and IEBC shall be interpreted to refer to the corresponding provision in the State Plumbing Code.

(f) All references to the International Mechanical Code found within the IRC, IBC, and IEBC shall be interpreted to refer to the corresponding provision in the State Mechanical Code.

(g) The following climatic and geographic design criteria shall be applied in the application of the International Residential Code to structures in the City of Des Moines.

1. The frost line depth identified in the following table shall be applied in the application of the International Building Code and International Existing Building Code.
2. The ground snow load of 33 pounds per square foot (psf) shall be used for structures using the International Residential Code. For structures using the International Building Code, ground snow load shall be determined by using Chapter 16 of the International Building Code.

*__Editor's note—__Ord. No. 15,861, § 1, adopted Feb. 10, 2020, repealed the former Art. III, §§ 26-300—26-373, and enacted a new Art. III as set out herein. The former Art. III pertained to similar subject matter and derived from Ord. No. 15,545; Ord. No. 15,597; Ord. No. 15,656; Ord. No. 15,833; Ord. No. 15,819.

Ground Snow Load	Wind Design				Seismic Design Category	Subject To Damage From:				Winter Design Temp	Ice Shield Underlayment Required	Flood Hazard	Air Freezing Index	Mean Annual Temperature
	Wind Speed	Topographic Effects	Special Wind Region	Windborne Debris Zone		Weathering	Frost Line Depth	Termite	Decay					
33 psf	115 mph	None	No	No	A	Severe	42"	Moderate to Heavy	Slight to Moderate	0°F	Yes	Mar-1984	1833	48.6°F

Manual J Design Criteria							
Elevation	Latitude	Winter Heating	Summer Cooling	Altitude Correction Factor	Indoor Design Temperature	Design Temperature Cooling	Heating Temperature Difference
965'	42°	-2°	90°	1.0	70°	75°	-
Cooling Temperature Difference	Wind Velocity Heating	Wind Velocity Cooling	Coincident wet bulb	Daily Range	Winter humidity	Summer humidity	
-	-	-	75°	M	-	-	

(O.15,861, 16,317, 16,412, 16,520)

Sec. 26-301. Building permit required.

(a) Building permits are required as identified in IBC chapter 1, part 2; IRC chapter 1, part 2; and IEBC Chapter 1, part 2.

(b) A fee for each building permit shall be paid to the building official in the amount set in the schedule of fees adopted by the city council by resolution. The fee for a permit to construct only a foundation for a future building shall be 150 percent of the fee specified in the schedule of fees, with the value of the foundation for such purpose being ten percent of the total valuation of the future building and foundation.
(O.15,861)

Sec. 26-302. Building permit exemptions.

(a) A building permit shall not be required for the following:

(1) One-story detached accessory buildings used as tool or storage sheds, playhouses, pet shelters, and similar uses constructed in accordance with the International Residential Code or International Building Code provided the floor area does not exceed 120 square feet in area and complies with all applicable planning and zoning requirements.

(2) Chain link or wire fences four feet or less in height and all other fences three feet or less in height.

(3) Movable cases, counters, and partitions not over five feet nine inches in height.

(4) Playground equipment.

(5) Retaining walls, which retain no more than four feet of unbalanced fill, do not support a surcharge, and do not impound flammable liquids.

(6) Retaining walls which are part of a public improvement project regulated by the city engineer.

(7) Tanks supported directly upon grade if the capacity does not exceed 5,000 gallons and the ratio of height to diameter or width does not exceed two to one.

(8) Platforms, walks, and driveways not more than 30 inches above grade and not over any basement or story below.

(9) Painting, papering, and similar finish work.

(10) Temporary motion picture, television and theater stage sets and scenery.

(11) Window awnings supported by an exterior wall of one- and two-family dwellings and accessory structures to one- and two-family dwellings when projecting not more than 54 inches.

(12) Minor maintenance and repair work that is deemed by the building official not to affect structural strength, safety, fire resistance, or sanitation, provided that no such work shall be performed in a manner contrary to any provisions of the building code or any other laws.

(13) Installation, alteration or repair of generation, transmission, distribution or metering or other related equipment that is under the ownership and control of public service agencies by established right.

(b) Unless otherwise exempted, separate plumbing, electrical and mechanical permits will be required when appropriate for the exempted items in subsection (a) of this section.

(c) Exemption from the permit requirements of this section shall not be deemed to grant authorization for any work to be done in any manner in violation of the provisions of the building code or any other laws or ordinances of this jurisdiction.
(O.15,861, 16,224)

Sec. 26-303. Demolition of buildings and structures.

(a) *Permit required; expiration.* A permit shall be required for demolition of buildings and structures in accordance with the following:

(1) No person shall commence the work of demolishing any building or structure until a permit authorizing such work has been obtained from the building official. Every demolition permit issued under the provisions of this section shall expire by limitation and become null and void if the work authorized by such permit is not commenced within 30 calendar days from the date of issuance, or if the work authorized by such permit is not completed within 90 calendar days of the date of issuance, unless, because of the extensiveness of the project, the building official deems at the time of issuance a longer period for either commencement or completion should be granted.

(2) Any permittee may request in writing an extension of time within which the demolition work may be commenced or completed. If such request contains good and satisfactory reasons showing that circumstances beyond the control of the permittee have prevented timely commencement or completion of the work, the building official may extend the applicable expiration date.

(b) *Application for permit.* Application for a permit to demolish a building or structure shall be made to the building official. The applicant shall provide the following information:

(1) The name and address of the person in responsible charge of the work.

(2) The street address and legal description of the property on which the building or structure is located.

(3) The name and address of the owner and, when appropriate, his or her legal agent in responsible charge of the property.

(4) Overall dimensions, number of stories and materials of construction of the building or structure to be demolished.

(5) A plan showing areas to be protected by fences, barricades, covered walkways, or other protective devices, and details of construction for such devices.

(6) Approval from other affected city departments or governmental agencies when deemed necessary by the building official and any special conditions or restrictions relating thereto.

(7) For demolition by explosives, the applicant shall furnish the information required in this subsection and shall furnish information regarding the person who will be conducting the demolition by explosives and shall furnish plans showing how the building or structure will be prepared for demolition, the type and amount of explosives to be used, and a detailed plan showing what safety precautions will be taken to protect persons and property.

(8) A permit for the demolition of a building or structure by the use of explosives may be issued by the city council subject to the following conditions:

a. The applicant for a permit must demonstrate to the city council the need for demolition by explosives rather than demolition by conventional means and must demonstrate that demolition by explosives can be safely conducted at the specific location requested.

b. The building official, fire chief and police chief shall review the application and submit their opinions to the city council concerning whether or not the demolition can be safely conducted, together with any recommendations they may have.

c. The applicant shall provide a certificate of liability insurance for personal injuries, death and for property damage in an amount not less than $1,000,000.00 naming the city as an additional named insured party. The certificate shall provide that the coverage shall not be cancelled or changed without ten days' prior written notice to the city. The city council may require additional insurance coverage when the hazard appears greater than normally expected and may also in such instance require the posting of a bond acceptable to the city in an amount commensurate with the severity of the hazard. The bond shall provide that the applicant shall well and satisfactorily perform the demolition. The bond shall be for the benefit of the city and any person who is injured or damaged by the failure of the applicant to satisfactorily perform the demolition.

d. The applicant shall agree to indemnify and hold harmless the city from all losses resulting from damages or injuries caused by the applicant or the applicant's employees, servants or agents arising out of the use of explosives in demolition.

e. The applicant shall pay the city in advance for reasonable expenses that will be incurred by the city in furnishing necessary security and police protection in the vicinity of the demolition site.

f. The applicant shall observe all applicable federal, state and local laws in the course of the demolition, including but not limited to the following:

1. The applicable provisions of the city fire prevention code relating to the storage, transportation and use of explosives.

2. The rules and regulations of the United States Environmental Protection Agency relating to the demolition of buildings or structures containing asbestos materials or other hazardous air pollutants.

g. The applicant shall meet all other requirements of this article relating to the demolition of structures or buildings; provided, however, that if a conflict exists between the provisions of this subsection and other sections of the city Code, the provisions of this subsection shall be deemed to be controlling.

h. The applicant need not obtain an obstruction permit as provided in section 26-304 of this article to block off portions of public property within an appropriate distance of the demolition site, provided that the obstruction is for less than a 24-hour period and provided that the obstruction is for security purposes in connection with the use of explosives. However, the applicant shall be

required to obtain an obstruction permit to use public property in the cleanup operations following the detonation of explosives.

i. The city council shall at any time have the authority to impose additional requirements and safety precautions in the interest of the public health, safety and welfare.

(9) Such other information as shall be reasonably required by the building official or development services director, including all information necessary to conduct historic review pursuant to chapter 58, article IV.

(c) *Disconnection of sewer and water.* No permit to demolish shall be issued until it has been established that existing sewer and/or water services have been properly disconnected and approved.

(d) *Bond required.*

(1) Before a permit is issued to remove a building which has been ordered removed as a public nuisance and which period of time granted by the city or by the courts for removal or other remedial action by the applicant or other party of interest has expired, the applicant may be required to post a cash bond equal to the estimated costs of the removal of the building and the disconnection of the existing utility services. If the applicant does not remove the building at the time the permit expires at a time specified by the building official, such bond shall be forfeited and used toward the costs of the city to remove it.

(2) If the building is removed by the applicant prior to the time the permit expires, such bond shall be returned to the applicant. A return of the bond does not exempt the applicant from further assessments to the real estate for costs that have occurred prior to the issuance of the permit.

(e) *General requirements.*

(1) The building official shall have the authority to impose at any time reasonable requirements and safety precautions in the interest of public health, safety, and welfare which, in his or her opinion, are commensurate with the severity of hazard, either demonstrated or anticipated, provided that such requirements may be appealed to and reviewed by the board of appeals at the request of the affected party.

(2) In addition, the following shall be met:

a. The discharging, loading, or dumping of building materials from any building shall be accomplished in such manner as to minimize the creation of dust and scattering of debris. Materials shall not be dropped by gravity to any point lying outside the building walls except through an enclosed chute, unless such materials are dust free and the height of drop is at least equal to the horizontal distance to the nearest property or barricade line. Where such horizontal distance is not available and practical necessity dictates the dropping of relatively large masses of materials, the building official may approve appropriate protective measures designed to provide protection from danger equivalent to that afforded by the otherwise required horizontal setback; provided, however, that in all cases such materials shall be handled in a manner approved by the air pollution control division of the county health department.

b. When necessary to protect the public health, safety, or welfare, every demolition project shall be barricaded, fenced, lighted, and signed with warning and/or directional signs in a manner approved by the building official. The building official may also require the presence of approved security guards or flag persons. Such barricades, fences, lights, and signs as may be deemed necessary by the building official for

protection of the public shall be maintained after completion of the demolition work until such time as the site is cleaned of all debris and all excavations, basements, and depressions in the ground are restored to grade and rendered harmless.

c. Adequate precautions shall be taken to ensure that procedures or conditions relating to the demolition work do not constitute a fire hazard. If, in the opinion of the fire chief, a fire hazard exists or is likely to exist, he or she may order the cessation of work or require that appropriate protective measures approved by him or her be taken.

d. All streets, alleys, and public ways adjacent to the demolition site shall be kept free and clear of any rubbish, refuse, and loose material resulting from the demolition work unless an obstruction permit for such space has been obtained.

e. Demolition of structures shall include removal of all shallow footing and foundation materials unless otherwise approved by the building official.

f. Upon completion of the demolition work, the site shall be left in a clean, smooth condition. Sand, clean earth, or other approved fill material may be used to fill excavations, holes, and depressions, provided that the top 12 inches shall be clean earth or its equivalent in terms of surface smoothness, free from dust, and cleanliness. If the surface is to be used for the parking of vehicles, it shall be constructed as required in chapter 134 of the city Code pertaining to zoning.

(3) No permit to demolish shall be issued until a grading permit, waiver of grading permit, or a solid waste disposal site license is obtained for any location within the city where the demolition debris is to be discarded.

(4) Demolition debris and rubbish shall be disposed of at a State of Iowa licensed solid waste facility unless otherwise approved by the building official.

(O.15,861, 16,412)

Sec. 26-304. Obstruction permit, bond, and insurance.

(a) No person shall use any portion of public property as described in Section 3308 of the International Building Code without first obtaining an obstruction permit which shall state the following:

(1) The name of the owner of the property abutting the public property to be used.

(2) The name of the person applying for the obstruction permit.

(3) An accurate description of the public property to be obstructed or occupied.

(4) The length of time such obstruction or occupancy shall exist.

(5) An agreement to comply in all respects with the provisions and requirements of the building code, this article and other city ordinances relating to the use of streets and alleys and to indemnify and save and keep harmless the city from any and all costs, expense or liability for damages or injuries to persons or property or liability of any kind whatsoever, arising from or growing out of the use and occupancy of such street or growing out of the deposit of such material or any failure to properly pile, deposit, guard, light or care for such.

(6) Such additional requirements as may be deemed necessary for the protection of the city and its inhabitants.

(b) Before an obstruction permit shall be issued, there shall be placed on file in the office of the building official proof of liability insurance and, if required, a surety bond as follows:

(1) The amount and type of liability insurance required in each instance shall be

determined by the city's finance director or the finance director's designee. The insurance requirements are hereby made a part of the permit application form. The insurance shall remain in full force and effect through the obstruction permit expiration date or such extended time as may be granted by the city.

(2) If the city engineer or the city engineer's designee determines in their sole discretion that an obstruction permit applicant's proposed use of the right-of-way poses a risk of damage to the right-of-way, the city engineer or the city engineer's designee may require such applicant to post a surety bond before the obstruction permit is issued. Such bond, if required, shall be approved by the city engineer or the city engineer's designee; shall be in the minimum amount of $5,000.00 or such other amount determined by the city engineer or the city engineer's designee to be sufficient to cover the anticipated cost of damage to the right-of-way; and shall be conditioned to ensure removal of the obstruction and restoration of the right-of-way and all public improvements thereon by or before the expiration date of such obstruction permit or such extended time as may be granted by the building official.

(c) No person shall, under any permit, occupy more area than is stated in the obstruction permit.

(d) The fee for an obstruction permit shall be as set forth in the schedule of fees adopted by the city council by resolution.

(e) This section shall not apply to street maintenance and actions by the city and its employees and contractors.
(O.15,861)

Sec. 26-305. Reserved.

Editor's note—Ord. No. 16,412, § 1, adopted Dec. 23, 2024, repealed § 26-305, which pertained to conversion to condominium or multiple housing cooperative and derived from Ord. No. 15,861; Ord. No. 16,317.

Sec. 26-306. Permanent occupancy of public property generally.

(a) No part of any structure or any appendage thereto, except signs, shall project beyond the property line of the building site, except as specified in the building code; provided, however, that a structure or appendage thereto may project beyond the property line of the building site when the applicant holds a property interest, including but not limited to air rights, within the area of the projection sufficient to establish a legal right to build therein or thereon.

(b) Structures or appendages regulated by this section shall be constructed of materials as specified in the building code.

(c) The projection of any structure or appendage shall be the distance measured horizontally from the property line to the outermost point of the projection.

(d) Nothing in the building code shall prohibit the construction and use of a structure between buildings and over or under a public way provided the structure complies with all requirements of the building code.

(e) No subsection of this section and no provision of the building code shall be construed to permit the violation of other laws or ordinances regulating the use and occupancy of the public property.
(O.15,861)

Sec. 26-307. Shelter for the homeless.

(a) As used in this section, the term "shelter for the homeless" means a building used to provide primarily short term lodging, or short term lodging and meals, and which may also provide other services, including counseling, with or without compensation, to transient individuals or to individuals who have no access to traditional or permanent housing. For purposes of this subsection, short term lodging shall include facilities offering lodging for 30 days or less.

(b) No building or portion thereof that is to be used as a shelter for the homeless shall be occupied as such unless an inspection certificate for such use has been issued by the neighborhood

inspections administrator. Such certificate shall be valid for not more than one year from the date of issuance, and no new certificate shall be issued until the premises have been reinspected for compliance with applicable building code, zoning and fire safety requirements. No fee shall be charged for the annual inspection or certificate of compliance issued under this subsection; provided, however, that this fee exemption shall not apply to permit fees, when required.

(c) Facilities which fall under federal, state or other local regulations which require annual inspections for building and health safety standards shall be exempted from this section. (O.15,861, 16,317)

Sec. 26-308. Adjustment of lot lines for building and fire code purposes.

(a) *Combination of adjoining lots.* Adjoining lots, regardless of whether they are under common ownership or control, may be treated as a single consolidated lot for the limited purposes of this chapter and chapter 46 when a declaration of covenants in a form approved by the city legal department and signed by all owners of the included lots is recorded that binds each of the included lots to the following covenants:

(1) All existing and future buildings and structures located upon the included lots and any future alterations and additions thereto shall be considered part of a single consolidated lot under common ownership for purposes of applying this chapter and chapter 46. Any construction, alteration, addition or demolition of a building on the included lots shall conform with the provisions of this chapter and chapter 46 that are applicable to the included lots and each portion thereof, as a building located on a single consolidated lot under common ownership. No new building shall be constructed or placed on the included lots and no existing building on the included lots shall be demolished, altered or expanded in a manner which would cause another existing building on the included lots to come into violation of this chapter or chapter 46 when applied to all buildings on the included lots that are considered as a single consolidated lot under common ownership. Each owner of any portion of the included lots shall maintain its portion of the included lots in good repair and in conformance with the applicable requirements of this chapter and chapter 46.

(2) If any building on the included lots is affected by casualty loss, demolition, deterioration, neglect or any other event that causes the building official to determine that some portion or portions of the buildings then existing upon the included lots are unsafe to occupy, the building official, in the proper performance of the building official's duties may issue such orders as are reasonable and necessary in accordance with the provisions of this chapter, chapter 46 and applicable law, treating all buildings on the included lots as located on a single consolidated lot under common ownership.

(3) All provisions of the declaration of covenants shall run with the land and shall be binding upon the owners, and the owners' successors and assigns, for the benefit of the city, the owners, and the owners' successors and assigns. Each owner of any portion of the included lots shall be given the benefit of the obligations under the declaration of covenants imposed upon the owners of all other portions of the included lots, and may enforce such obligations by an action for specific performance and/or damages.

(4) The declaration of covenants shall not be amended or terminated without the written approval of all owners of the included lots, and the prior written consent of the building official. The building official is authorized to consent to any such amendment or termination only if appropriate measures have been taken to the reasonable satisfaction of the building official to remedy any violations of this chapter

and chapter 46 that would otherwise exist upon such amendment or termination.

(b) *Use of artificial lot lines*. The shared lot line between adjoining lots, regardless of whether the lots are under common ownership or control, may be relocated within the area of the combined lots, for the limited purposes of this chapter and chapter 46 when an easement or declaration of covenants in a form approved by the city legal department and signed by all owners of the lots burdened by the artificial lot line is recorded that binds the owners of each of the burdened lots to the following covenants:

(1) For the purposes of these covenants, the following terms shall be defined as follows:

a. A *"burdened lot"* is any lot which contains an artificial lot line which is established across the interior of the lot for the benefit of the owners of an adjoining lot.

b. A *"benefitted lot"* is any lot which is given the benefit of the use of an artificial lot line located on an adjoining burdened lot.

c. *"Artificial lot line"* is a line, the location of which is clearly identified, which is located within the boundary of a burdened lot for the benefit of an adjoining benefited lot, and shall serve as the shared lot line between the burdened and benefitted lots for purposes of applying this chapter and chapter 46 to both lots. The location of a proposed artificial lot line must not create a violation of this chapter or chapter 46, if treated as the shared lot line between the burdened and benefitted lots.

(2) All owners of each burdened lot agree that for the limited purpose of applying this chapter and chapter 46: i) the artificial lot line shall serve as the shared lot line between the burdened lot and the benefitted lot; ii) any construction, alteration, addition or demolition of a building on the burdened lot shall conform with the provisions of this chapter and chapter 46 when using the artificial line as the shared lot line with the benefitted lot; and, any construction, alteration, addition or demolition of a building on the benefitted lot shall have the benefit of using the artificial lot line as the shared lot line with the burdened lot.

(3) All provisions of the easement or declaration of covenants shall run with the land and shall be binding upon the owners of the burdened lot, and such owners' successors and assigns, for the benefit of the city, the owners of the benefitted lot, and such owners' successors and assigns. Each owner of any portion of the benefitted lot shall be given the benefit of the obligations under the easement or declaration of covenants imposed upon the owners of the burdened lot, and may enforce such obligations by an action for specific performance.

(4) The easement or declaration of covenants shall not be amended or terminated without the written approval of all owners of the benefitted lot, and the prior written consent of the building official. The building official is authorized to consent to any such amendment or termination only if appropriate measures have been taken to the reasonable satisfaction of the building official to remedy any violations of this chapter and chapter 46 that would otherwise exist upon such amendment or termination.

(O.15,861)

Sec. 26-309. Reserved.

DIVISION 2. INTERNATIONAL RESIDENTIAL CODE

Sec. 26-310. General.

The provisions of International Residential Code (IRC), 2024 edition are hereby amended as follows:

(a) Delete section R105.2

(b) Delete section R105.5

(c) Delete section R112
(O.15,861, 16,317, 16,520)

Sec. 26-310.1. Scope.

Delete section R101.2 and insert in lieu thereof the following new section:

R101.2 Scope. The provisions of this code shall apply to the construction, alteration, movement, enlargement, replacement, repair, equipment, use and occupancy, location, removal and demolition of the following:

1. Detached one- and two-family dwellings and townhouses not more than three stories above grade plane in height with a separate means of egress and their accessory structures not more than three stories above grade plane in height.
2. Owner-occupied lodging houses with five or fewer guestrooms.
3. Detached one- and two-family dwellings and townhouses that contain business areas of up to 20 percent of the dwelling unit area.
4. Live/work units within detached one- and two-family dwellings and townhouses that comply with the requirements of Section 508.5 of the International Building Code.
5. Care facilities within detached one- and two-family dwellings and townhouses with eight or fewer persons receiving care who have the ability to respond to emergency situations and evacuate.
6. In-home child care facilities within detached one- and two-family dwellings and townhouses where in-home child care is provided to no more than eight children, and of these eight children no more than six are five years old or younger, no more than four are twenty-four months old or younger, and no more than three are eighteen months old or younger.
7. In-home child care facilities that provide custodial care for 16 or fewer persons in detached one- and two-family dwellings and townhouses that were registered with the State of Iowa Department of Human Services as child development homes and have held such registration continuously in good standing since on or before January 1, 2017.

(O.15,861, 16,317)

Sec. 26-310.2. Exterior wall fire protection.

Delete Table 302.1(1) and insert in lieu thereof the following new table: Table 302.1(1)

Table 302.1(1) Exterior Walls

Exterior Wall Element		*Minimum Fire-Resistance Rating*	*Minimum Fire Separation Distance*
Walls	Fire-resistance rated	1 hour-tested in accordance with ASTM E119 or UL263 with exposure from both sides	< 5 feet
	Not-fire resistance rated	0 hours	≥ 5 feet
Projections	Not allowed	N/A	< 2 feet
	Fire-resistance rated	1 hour on the underside[a, b]	≥ 2 feet to < 4 feet
	Not-fire resistance rated	0 hours	≥ 4 feet
Openings in walls	Not allowed	N/A	< 3 feet
	25% maximum of wall area	0 hours	3 feet
	Unlimited	0 hours	5 feet

Table 302.1(1) Exterior Walls			
Exterior Wall Element		*Minimum Fire-Resistance Rating*	*Minimum Fire Separation Distance*
Penetrations	All	Comply with Section R302.4	< 3 feet
		None required	3 feet

[a] Roof eave fire-resistance rating shall be reduced to 0 hours on the underside of the eave if fireblocking is provided from the wall top plate to the underside of the roof sheathing.

[b] Roof eave fire resistance rating shall be permitted to be reduced to 0 hours on the underside of the eave provided that gable vent openings are not installed.

(O.15,861)

Sec. 26-310.3. Bathroom ventilation.

Delete section R325.2 and insert in lieu thereof the following new section:

R325.2 Bathrooms. Bathrooms, water closet compartments and similar rooms shall be provided with natural or artificial light and be provided with a mechanical ventilation system. The minimum ventilation rates shall be 50 cubic feet per minute (24 L/s) for intermittent ventilation or 20 cubic feet per minute (10L/s) for continuous ventilation. Ventilation air from the space shall be exhausted directly to the outside.

(O.15,861, 16,520)

Sec. 26-310.4. Egress window sill height.

Section R319.2.3 is amended by adding the following exception.

Exception: A landing may be provided to meet the maximum sill height of forty-four (44) inches above the floor or landing provided. The landing shall be not less than thirty-six (36) inches wide, not less than twelve (12) inches out from the exterior wall, and not more than twenty-four (24) inches in height. The landing shall be permanently affixed to the floor below or the wall under the window it serves.

(O.15,861, 16,317, 16,520)

Sec. 26-310.5. Reserved.

Editor's note—Ord. No. 16,317, § 1, adopted Jan. 8, 2024, repealed § 26-310.5, which pertained to emergency escape windows under decks and porches and derived from Ord. No. 15,861.

Sec. 26-310.6. Stair risers.

Section R318.7.5.1 is amended by adding the following exception:

Exception:

3. The dimension of the top and bottom riser may vary up to 1 inch (25.4 mm) from the stairway riser dimension. In no case shall the riser height exceed the maximum height of 7-¾ inches.

(O.15,861, 16,520)

Sec. 26-310.7. Floor elevations at other exterior doors.

Delete the section R318.3.2 and insert in lieu thereof the following new section.

R318.3.2 Floor elevations at other exterior doors. Doors other than the required egress door shall be provided with landings or floors not more than 7-¾ inches (196 mm) below the top of the threshold.

Exception: A top landing is not required where a stairway of not more than four risers is located on the exterior side of the door, provided that the door does not swing over the stairway.

(O.15,861, 16,520)

Sec. 26-310.8. Handrail continuity.

Section R320.5 is amended by adding the following exception:

Handrails shall be permitted to be interrupted at one location in a straight stair when the rail terminates into a wall or ledge and is offset and immediately continues.

(O.15,861, 16,317, 16,520)

Sec. 26-310.9. Guards.

Delete section R321.1.1 and insert in lieu thereof the following new section.

R321.1.1 Where required. Guards shall be provided for those portions of open-sided walking surfaces, including stairs, ramps and landings, driveways, sidewalks, patios, and decks that are located more than 30 inches (762 mm) measured vertically to the floor or grade below at any point within 36 inches (914 mm) horizontally to the edge of the open side. Insect screening shall not be considered as a guard.

Exception: Portions of retaining wall where the horizontal distance between the edge of the walking surface and the face of the wall is greater than 36-inches.

(O.15,861, 16,520)

Sec. 26-310.10. Automatic fire sprinkler systems.

(a) Delete section R309.1 and insert in lieu thereof the following new section: R309.1 Townhomes automatic fire sprinkler systems. An automatic residential fire sprinkler system shall be installed in townhouses.

Exceptions:

(1) An automatic residential fire sprinkler system shall not be required where additions or alterations are made to existing townhouses that do not have an automatic residential fire sprinkler system installed.

(2) Townhouse structures that contain eight (8) or less dwelling units.

(3) Townhouse structures less than eighteen thousand (18,000) square feet floor space, exclusive of any garages.

(b) Delete section R309.2 and insert in lieu thereof the following new section:

R309.2 One- and two-family dwelling automatic fire sprinkler systems. An automatic residential fire sprinkler system shall be installed in one-and two-family dwellings that contain 8,000 square feet or more floor space, excluding attached garages and other unenclosed areas.

Exception: An automatic residential fire sprinkler system shall not be required where additions or alterations are made to existing buildings that are not already provided with an automatic residential fire sprinkler system.

(O.15,861, 16,520)

Sec. 26-310.11. Footing size.

Delete section R403.1.1 and insert in lieu thereof the following new section:

R403.1.1 Minimum Footing Size. The minimum width for all footings shall be 16 inches. The footing width shall be based on the load-bearing value of the soil in accordance with Table R401.4.1. Footing projections, P, shall be not less than 2 inches (51 mm) and shall not exceed the thickness of the footing. Footing thickness and projection for fireplaces shall be in accordance with Section R1001.2. The size of footings supporting piers and columns shall be based on the tributary load and allowable soil pressure in accordance with Table R401.4.1. Footings for wood foundations shall be in accordance with the details set forth in Section R403.2, and Figures R403.1(2) and R403.1(3). Footings for precast foundations shall be in accordance with the details set forth in Section R403.4, Table R403.4, and Figures R403.4(1) and R403.4(2). Residential conventional footings are allowed in Table 403.5 based on the following dimensions and soil bearing pressure.

Exception: Detached accessory structures are not required to have minimum 16 inch wide footings.

Table 403.5 Residential Conventional Footing Dimensions			
	Conventional Footing Dimension		Required Reinforcement[a, b] (All reinforcing bars shall [be 40,000 psi])
Soil Bearing Pressure (pounds per square foot)	Thickness (inches)	Width (inches)	
2,000 psf	8	16	2 - #4 bars
1,850 psf	9	20	2 - #4 bars
1,500 psf	10	20	2 - #5 bars
1,250 psf	11	28	3 - #5 bars
1,000 psf	12	32	3 - #5 bars

[a] The minimum yield strength of reinforcing steel shall be 40,000 psi.

[b] All reinforcement shall be installed in the middle third of the footing and in accordance with R4031.3.5.3.

[c] Residential conventional footings shown in Table 403.5 are only allowed for conventionally designed one- or two-family dwelling structures not exceeding two stories in height, intended to be constructed on undisturbed, non-expansive soils. Townhouse structures are not allowed to utilize this table.

(O.15,861)

Sec. 26-310.12. Footings for accessory structures.

Amend section R403.1.4.1 by deleting exception #1 and inserting in lieu thereof the following exception:

1. Detached accessory structures of light frame wood construction with an area of 1024 square feet or less may be provided with a floating slab; where all the following conditions are met:

   1.1 The bottom portion of the thickened slab area shall be twelve (12) by twelve (12) inches with one (1) number four (4) bar placed near the top and bottom of the edge.

   1.2 The slab floor shall be not less than four (4) inches thick with one (1) number four (4) bar placed every two (2) feet on center or in a 6 by 6 mesh.

   1.3 The slab pour shall be continuous.

(O.15,861, 16,224)

Sec. 26-310.13. Alternate design for foundation walls.

R404.1.3.2.3 Foundation Walls for Conventional Light Frame Wood Construction. Concrete and masonry foundation walls shall be permitted to be designed in accordance with the following Table 'Foundation Walls for Conventional Light Frame Construction' may be used:

Table R404.1.3.2.3 — Foundation Walls for Conventional Light Frame Construction						
Height of Foundation Wall (Net measured from top of basement slab to top of foundation wall)*		Thickness of Foundation Walls		Reinforcement Type and Placement within Foundation Wall**	Reinforcement Type and Placement within Foundation Wall** (maximum 12' span between corners and supporting cross walls.)	Type of Mortar
		Unit				
Gross	Net	Concrete	Masonry	Concrete	Masonry	Masonry
8	7'8"	7½"	8"	½"horizontal bars, placement in the middle, and near the top & bottom — ½" bars @ 6' max. vertically	0.075 square inch bar 8' o.c. vertically in fully grouted cells. If block is 12" nominal thickness, may be unreinforced.	Type M or S. Grout & Mortar shall meet provisions of Chapter 21 IBC

Table R404.1.3.2.3 — Foundation Walls for Conventional Light Frame Construction						
*Height of Foundation Wall (Net measured from top of basement slab to top of foundation wall)**		*Thickness of Foundation Walls*		*Reinforcement Type and Placement within Foundation Wall***	*Reinforcement Type and Placement within Foundation Wall** (maximum 12' span between corners and supporting cross walls.)*	*Type of Mortar*
		Unit				
Gross	*Net*	*Concrete*	*Masonry*	*Concrete*	*Masonry*	*Masonry*
9	8'8"	8"	See Chapter 18 IBC	½" bars 2' o.c. horizontally & 20" vertically o.c. (⅝" bars 2' o.c. horizontally & 30" vertically o.c.)	See Chapter 18 IBC	Same as above
10	9'8"	8"	See Chapter 18 IBC		See Chapter 18 IBC	Same as above
*Concrete floor slab to be nominal 4". If such floor slab is not provided prior to backfill, provide 1) 36" vertical #4 rebar embedded in the footing @ maximum 7' O.C. spacing -and/or- 2) full depth nominal 2" depth × 4"width keyway in footing						
**All steel reinforcement bars shall meet ASTM A6175 grade 40 minimum and be deformed. Placement of bars shall be in center of wall and meet the provisions of chapters 18, 19, and 21 of the International Building Code.						
Note: Cast in place concrete shall have a compressive strength of 3,000 lbs @ 28 days. Footings shall contain continuous reinforcement of minimum 2 - ½" diameter rebar throughout. Placement of reinforcement and concrete shall meet the requirements of Chapter 19 of the International Building Code.						
Note: Material used for backfilling shall be carefully placed granular soil of average or high permeability and shall be drained with an approved drainage system as prescribed in Section 1805.4 of the International Building Code. Where soils containing a high percentage of clay, fine silt or similar materials of low permeability or expansive soils are encountered or where backfill materials are not drained or an unusually high surcharge is to be placed adjacent to the wall, a specially designed wall shall be required.						
Note: Foundation plate or sill anchorage shall be installed in accordance with the respective codes as applicable						

(O.15,861)

Sec. 26-310.14. Reserved.

Editor's note—Ord. No. 16,317, § 1, adopted Jan. 8, 2024, repealed § 26-310.14, which pertained to appliance clearances in rooms and derived from Ord. No. 15,861.

Sec. 26-310.15. Reserved.

Editor's note—Ord. No. 16,317, § 1, adopted Jan. 8, 2024, repealed § 26-310.15, which pertained to appliances in closets, alcoves, or similar spaces and derived from Ord. No. 15,861.

Sec. 26-310.16. Townhome gas piping.

Add the following new section:

R333 Townhome Gas Piping

R333.1 General. Fuel gas piping installed downstream of the point of delivery shall not extend through any townhome unit other than the unit served by such piping.

(O.15,861, 16,317, 16,520)

Sec. 26-310.17 Whole house mechanical ventilation.

Delete section M1505.4.1 and insert in lieu thereof the following new section.

M1505.4.1 System Design. The whole-house ventilation system shall consist of one or more outside air supply and exhaust fans with the associated ducts and controls. Local exhaust and supply fans are permitted to serve as such a system. Outdoor air ducts connected to the return side of an air handler shall be considered as providing supply ventilation.

(O.15,861)

Sec. 26-310.18. Reserved.

Editor's note—Ord. No. 16,520, § 1, adopted Dec. 8, 2025, repealed § 26-310.18, which pertained to duct insulation materials and derived from Ord. No. 15,861.

Sec. 26-310.19. Reserved.

Editor's note—Ord. No. 16,520, § 1, adopted Dec. 8, 2025, repealed § 26-310.19, which pertained to return air and derived from Ord. No. 15,861.

Sec. 26-310.20. Smoke alarms.

Delete section R310.6 and insert in lieu thereof the following new section.

R310.6 Power source. Smoke alarms shall receive their primary power from the building wiring where such wiring is served from a commercial source and, where primary power is interrupted, shall receive power from a

battery. Wiring shall be permanent and without a disconnecting switch other than those required for overcurrent protection.

Exceptions:

1. Smoke alarms shall be permitted to be battery operated where installed in buildings without commercial power.
2. Smoke alarms installed in accordance with Section R310.2.2 shall be permitted to be battery powered
3. Per Iowa Administrative Code 661-201.15(7)(d), A battery-powered smoke alarm listed in accordance with UL 217 edition 8 that is newly installed or replaces an existing battery-powered smoke alarm must be powered by a nonremovable, nonreplaceable battery that powers the alarm for at least ten years. The battery requirements of this section do not apply to a fire alarm, smoke detector, smoke alarm, or ancillary component that is electronically connected as a part of a centrally monitored or supervised alarm system or that uses a low power, radio frequency wireless communication signal.

(O.16,520)

Sec. 26-311. Definitions.

Care facility. A building or structure where care is provided to persons who need some level of assistance or supervision.

In-home child care. A dwelling where care is provided to children by a person other than the child's parent, guardian, or custodian for periods of less than twenty-four hours per day per child on a regular basis.
(O.15,861)

Secs. 26-312—26-324. Reserved.

DIVISION 3. INTERNATIONAL BUILDING CODE

Sec. 26-325. General.

The provisions of the International Building Code (IBC), 2024 edition, are amended with the revision of the following text as stated:

(1) Delete section 105.2.

(2) Delete section 105.5.

(3) Delete section 110.3.6.

(4) Delete section 113.

(5) Delete section 2901.1.

(6) Delete section 2902.2.

(7) Delete section 2902.6.
(O.15,861, 16,317, 16,520)

Sec. 26-325.1. Day care occupancies.

(a) Delete section 308.5.4 and insert in lieu thereof the following new section:

308.5.4 Eight or fewer persons receiving care in a dwelling unit. Eight or fewer persons receiving care in a dwelling unit. A facility such as the above within a dwelling unit and having eight or fewer persons receiving custodial care shall be classified as a group R-3 occupancy or shall comply with the International Residential Code. Automatic sprinkler systems are not required per Iowa Code § 414.32 for care facilities within a dwelling.

Exception: Day care facilities that provide custodial care for 16 or fewer persons for less than 24-hours per day in a single-family dwelling, and where registered with the State of Iowa Department of Human Services as child development homes on or before January 1, 2017, are permitted to comply with the International Residential Code.

(b) Delete section 310.4.1. and insert in lieu thereof the following new section:

310.4.1 Care facilities within a dwelling. Care facilities within a dwelling refer to 308.5.4.
(O.15,861, 16,317)

Sec. 26-325.2. High rise fire pump requirements.

Delete section 403.3.2 and insert in lieu thereof the following new section:

403.3.2 Water supply to required fire pumps. Required fire pumps shall be supplied by connections to a minimum of two water mains located in different streets. Separate supply piping shall be provided between each connection to the water main and the pumps. Each connection and the supply piping between the connection and the pumps shall be sized to supply the flow and pressure required for the pumps to operate.

Exception: Two connections to the same main shall be permitted provided the main is valved such that an interruption can be isolated so that the water supply will continue without interruption through at least one of the connections

(O.15,861)

Sec. 26-325.3. Live/work units.

(a) Delete section 508.5 and insert in lieu thereof the following new section.

508.5 General. A *live/work unit* shall comply with Sections 508.5 through 508.5.11

Exceptions:

1. Dwelling or sleeping units that include an office that is less than 10 percent of the area of the *dwelling unit* are permitted to be classified as *dwelling units* with accessory occupancies in accordance with Section 508.2
2. Detached one- and two-family dwellings and townhouses that include business areas that is less than 20 percent of the area of the dwelling unit and constructed in accordance with the International Residential Code are not required to comply with Sections 508.5 through 508.5.11.

(b) Delete 508.5.1, item #3, and insert lieu thereof the following new item #3.

3. The nonresidential area function shall be limited to floors of the *live/work unit* with exit at the 1st story or a basement walkout of the *live/work unit.*

(c) Add the following exception to 508.5.2.

The nonresidential area function shall be limited to floors of the *live/work unit* with exit at the 1st story or a basement walkout of the *live/work unit.*

(O.15,861, 16,317, 16,412)

Sec. 26-325.4. Storm shelters for educational occupancies.

Delete section 423.5 including subsections 423.5.1 and 423.5.2 and insert in lieu thereof the following new section.

423.5 Group E occupancy. In areas where the shelter design wind speed for tornadoes in 250 mph in accordance with Figure 304.2 (1) of ICC 500, all Group E occupancies with a program occupant load of 50 or more shall have a storm shelter constructed in accordance with Chapters 1 through 5 & 8 of ICC 500.

The installation of portable buildings for utilization on the campus or site for educational purposes is considered new construction and classified as Group E occupancies.

Exceptions:

1. Group E day care facilities.
2. Group E occupancies accessory to place of religious worship.
3. Buildings meeting the requirements for shelter design in ICC 500.

(O.15,861, 16,317, 16,464, 16,520)

Sec. 26-325.5. Address identification.

Delete section 502.1 and insert in lieu thereof the following new section:

502.1 Address identification. New and existing buildings shall be provided with approved address identification. The address identification shall be legible and placed in a position that is visible from the street or road fronting

the property. Address identification characters shall contrast with their background. Address numbers shall be Arabic numbers or alphabetical letters. Numbers shall not be spelled out. Numbers and letters shall be a minimum height and a minimum stroke width as dictated by Table 505.1. Where required by the fire code official, address identification shall be provided in additional approved locations to facilitate emergency response. Where access is by means of a private road and the building cannot be viewed from the public way, a monument, pole or other sign or means shall be used to identify the structure. Address identification shall be maintained.

Table 502.1
Minimum Height and Stroke Width[a, b]

Distance from the centerline of the Public Way (ft)		*Minimum Height (in)*	*Minimum Stroke Width (in)*
Less than 100		4	½
100	199	6	¾
200	299	8	1
For each additional 100		Increase 2	Increase ½

[a] Exterior suite identification, minimum height shall be 4 inches and stroke width shall be ½-inch.

[b] Interior suite identification, minimum height shall be 2 inches and stroke width shall be ¼-inch.

(O.15,861, 16,520)

Sec. 26-325.6. Reserved.

Editor's note—Ord. No. 16,224, adopted Feb. 20, 2023, repealed § 26-325.6, which pertained to shaft enclosure materials and derived from Ord. No. 15,861.

Sec. 26-325.7. Penetrations of fire rated walls with coiling overhead fire doors.

Add the following new section:

714.4.1.3. Penetrations for the operation of rolling fire doors. One open ended ½" electrical metallic tubing (EMT) conduit shall be allowed for each rolling overhead fire door to allow the installation of fusible link hardware. The conduit shall be fire stopped where penetrating the wall in accordance with section 714, but the ends shall remain open to allow proper function of the fusible link.

(O.15,861, 16,317)

Sec. 26-325.8. Reserved.

Editor's note—Ord. No. 16,520, § 1, adopted Dec. 8, 2025, repealed § 26-325.8, which pertained to fire sprinkler riser room requirements and derived from Ord. No. 15,861.

Sec. 26-325.9. Automatic sprinkler systems.

(a) Insert the following new section:

903.1.2 Existing Buildings. For other than new construction or where current code contains retroactive provisions an automatic sprinkler system shall be provided pursuant to the provisions of the International Existing Building Code.

(b) Delete section 903.2.1.1 and insert in lieu thereof the following new section:

903.2.1.1 Group A-1. An automatic sprinkler system shall be provided throughout stories containing Group A-1 occupancies and throughout all stories from the Group A-1 occupancy to and including the levels of exit discharge serving that occupancy where one of the following conditions exists:

1. The fire area exceeds 6,000 square feet (1115 m2).
2. The fire area has an occupant load of 300 or more.
3. The fire area is located on a floor other than a level of exit discharge serving such occupancies.
4. The fire area contains a multiple-theater complex.

(c) Delete section 903.2.1.2 and insert in lieu thereof the following new section:

903.2.1.2 Group A-2. An automatic sprinkler system shall be provided throughout stories containing Group A-2 occupancies and throughout all stories from the Group A-2

occupancy to and including the levels of exit discharge serving that occupancy where one of the following conditions exists:

1. The fire area exceeds 1,500 square feet (1115 m2).
2. The fire area has an occupant load of 50 or more.
3. The fire area is located on a floor other than a level of exit discharge serving such occupancies.

(d) Delete section 903.2.1.3 and insert in lieu thereof the following new section:

903.2.1.3 Group A-3. An automatic sprinkler system shall be provided throughout stories containing Group A-3 occupancies and throughout all stories from the Group A-3 occupancy to and including the levels of exit discharge serving that occupancy where one of the following conditions exists:

1. The fire area exceeds 6,000 square feet (1115 m2).
2. The fire area has an occupant load of 300 or more.
3. The fire area is located on a floor other than a level of exit discharge serving such occupancies.

(e) Delete section 903.2.1.4 and insert in lieu thereof the following new section:

903.2.1.4 Group A-4. An automatic sprinkler system shall be provided throughout stories containing Group A-4 occupancies and throughout all stories from the Group A-4 occupancy to and including the levels of exit discharge serving that occupancy where one of the following conditions exists:

1. The fire area exceeds 6,000 square feet (1115 m2).
2. The fire area has an occupant load of 300 or more.
3. The fire area is located on a floor other than a level of exit discharge serving such occupancies.

(f) Delete section 903.2.2 and insert in lieu thereof the following new section:

903.2.2 Group B. An automatic sprinkler system shall be provided throughout buildings containing a Group B occupancy where one of the following conditions exists:

1. A Group B fire area exceeds 12,000 square feet (557.5 m2).
2. A Group B fire area is located more than three stories above grade plane.
3. The combined area of all Group B fire areas on all floors, including any mezzanines, exceeds 24,000 square feet (1115 m2).
4. As required by 903.2.2.1 & 903.2.2.2.

(g) Delete section 903.2.3 and insert in lieu thereof the following new section:

903.2.3 Group E. An automatic sprinkler system shall be provided throughout stories containing Group E occupancies and throughout all stories from the Group E occupancy to and including the levels of exit discharge serving that occupancy where one of the following conditions exists:

1. The fire area exceeds 1,500 square feet (1115 m2).
2. The fire area has an occupant load of 50 or more.
3. The fire area is located on a floor other than a level of exit discharge serving such occupancies.

(h) Delete section 903.2.4 and insert in lieu thereof the following new section:

903.2.4 Group F-1. An automatic sprinkler system shall be provided throughout all buildings containing a Group F-1 occupancy where one of the following conditions exists:

1. A Group F-1 fire area exceeds 6,000 square feet (557.5 m2).

2. A Group F-1 fire area is located more than three stories above grade plane.

3. The combined area of all Group F-1 fire areas on all floors, including any mezzanines, exceeds 12,000 square feet (1115 m2).

4. A Group F-1 occupancy is used to manufacture lithium-ion or lithium metal batteries.

5. A Group F-1 occupancy is used to manufacture vehicles, energy storage systems or equipment containing lithium-ion or lithium metal batteries where the batteries are installed as part of the manufacturing process.

(i) Delete section 903.2.7 and insert in lieu thereof the following new section:

903.2.7 Group M. An automatic sprinkler system shall be provided throughout buildings containing a Group M occupancy where one of the following conditions exists:

1. A Group M fire area exceeds 6,000 square feet (557.5 m2).

2. A Group M fire area is located more than three stories above grade plane.

3. The combined area of all Group M fire areas on all floors, including any mezzanines, exceeds 12,000 square feet (2230 m2).

(j) Delete section 903.2.9 and insert in lieu thereof the following new section:

903.2.9 Group S-1. An automatic sprinkler system shall be provided throughout all buildings containing a Group S-1 occupancy where one of the following conditions exists:

1. A Group S-1 fire area exceeds 6,000 square feet (557.5 m2).

2. A Group S-1 fire area is located more than three stories above grade plane.

3. The combined area of all Group S-1 fire areas on all floors, including any mezzanines, exceeds 12,000 square feet (1115 m2).

4. A Group S-1 fire area used for the storage of commercial motor vehicles where the fire area exceeds 5,000 square feet (464 m2).

5. A Group S-1 fire area used for the storage of lithium-ion or lithium metal powered vehicles where the fire area exceeds 500 square feet (46.4 m2).

(k) Delete section 903.2.9.1 and insert in lieu thereof the following new section:

903.2.9.1 Repair garages. An automatic sprinkler system shall be provided throughout all buildings used as repair garages in accordance with Section 406.8 of the International Building Code, as shown:

1. Buildings, with a fire area containing a repair garage exceeding 3,500 square feet (325 m2).

2. Buildings with repair garages servicing vehicles parked in basements.

3. A Group S-1 fire area used for the repair of commercial motor vehicles where the fire area exceeds 3,500 square feet (325 m2).

4. A Group S-1 fire area used for the storage of lithium-ion or lithium metal powered vehicles where the fire area exceeds 500 square feet (46.4 m2).

(O.15,861, 16,317, 16,520)

Sec. 26-325.10. Basement sprinkler requirements.

Delete section 903.2.11.1.3 and insert in lieu thereof the following new section:

903.2.11.1.3 Basements. Where any portion of a basement is located more than 75 feet (22 860 mm) from openings required by Section

903.2.11.1, the basement shall be equipped throughout with an approved automatic sprinkler system.
(O.15,861)

Sec. 26-325.10.1. Parking garage sprinkler design.

Insert the following new section:

903.3.1.1.4 Parking garages. Sprinkler systems shall be designed in accordance with Extra Hazard (Group 1) of NFPA 13 for parking garages where located one or more stories below an A, B, E, I, M or R occupancy.
(O.16,520)

Sec. 26-325.11. NFPA 13R sprinkler systems.

Delete section 903.3.1.2 and insert in lieu thereof the following new section:

903.3.1.2 NFPA 13R sprinkler systems. Automatic sprinkler systems in Group R occupancies shall be installed throughout in accordance with NFPA 13, unless allowed to be sprinklered in accordance with NFPA 13D by the International Building Code.
(O.15,861, 16,520)

Sec. 26-325.12. Fire sprinkler alarm exterior signals.

Delete section 903.4.3 and insert in lieu thereof the following new section:

903.4.3 Alarms. An approved weather proof audible device suitable for outdoor use with 110 candela visual signal shall be connected to every automatic sprinkler system. The audible device shall be a horn style device that produces a "tri-tone" signal in accordance with NFPA 72 Such sprinkler water-flow alarm devices shall be activated by water flow equivalent to the flow of a single sprinkler of the smallest orifice size installed in the system. The alarm device(s) shall be provided on the exterior of the building in an approved location. Where a fire alarm system is installed, actuation of the automatic sprinkler system shall actuate the building fire alarm system.
(O.15,861, 16,520)

Sec. 26-325.13. Standpipe requirements for large area buildings.

Insert the following new section:

905.3.9 Building Footprint and Access. Where the most remote portion of a floor or story is more than 400 feet from a hose connection or fire department access road the fire code official is authorized to require standpipes to be provided in approved locations. Class I manual standpipes shall be allowed.
(O.15,861)

Sec. 26-325.14. Fire alarm control panels.

Insert the following new section:

907.1.4 Fire Alarm Control Panels (FACP). Each building shall have no more than one Fire Alarm Control Panel. Installation of fire alarm control panel shall not exceed six feet in height measured from the floor to the top of the control panel.

Exception: Suppression system releasing panels are not required to meet the height requirement or the limitation in the number of panels.
(O.15,861)

Sec. 26-325.15 Fire alarm system monitoring.

Delete section 907.6.6 and insert in lieu thereof the following new section:

907.6.6 Monitoring. Fire alarm systems required by this chapter or by the International Fire Code shall be monitored by a central station approved and listed under UL 827 in accordance with NFPA 72.

Exception: Monitoring is not required for automatic sprinkler and fire alarm systems in one- and two-family dwellings.
(O.15,861)

Sec. 26-325.16. Smoke and heat vents.

Delete section 910.2.1 and insert in lieu thereof the following new section:

910.2.1 Group F-1 or S-1. Smoke and heat vents installed in accordance with Section

910.3 or a mechanical smoke removal system installed in accordance with Section 910.4 shall be installed in buildings and portions thereof used as a Group F-1 or S-1 occupancy having more than 30,000 square feet (2787 m^2) of undivided area. In occupied portions of a building equipped throughout with an automatic sprinkler system in accordance with 903.3.1.1, where the upper surface of the story is not a roof assembly, a mechanical smoke removal system in accordance with Section 910.4 shall be installed.

Exception: Group S-1 aircraft repair hangers. (O.15,861)

Sec. 26-325.17. Fire command center.

Delete section 911.1 and insert in lieu thereof the following new section:

911.1 General. Where required by other sections of this code, Table 911.1, and in all buildings classified as high-rise buildings by the International Building Code, a fire command center for fire department operations shall be provided and shall comply with Sections 911.1.1 through 911.1.7.

Table 911.1 Fire Command Center Thresholds	
Occupancy	*Threshold Requiring a Fire Command Center*
Group A	5,000 occupants
Group E	100,000 gross square feet
Group I	50,000 gross square feet
Group R1	Greater than 200 dwelling units or sleeping units
Any occupancy	200,000 gross square feet

Modify Code Section: IBC 911.3 (Correlate IFC 508.1.3) — Replace with the following language:

911.1.3 Size. The fire command center shall not be less than 0.015 percent of the total building area of the facility served or 200 square feet (19m^2) in area, whichever is greater, with a minimum dimension of 0.7 times the square root of the room area or 10 feet (3048 mm), whichever is greater. Where a fire command center is required by table 508.1, the fire command center shall have a minimum size of 96 square feet (9 m^2) with a minimum of 8 feet (2348 mm) where approved by the fire code official.

Exception:

1. Where a fire command center is required by Table 508.1, the fire command center shall have a minimum size of 96 square feet (9 m^2) with a minimum dimension of 8 feet (2348 mm) only where approved by the fire code official.
2. Where a fire command center is required by Table 508.1 and the building is less than 500,000 gross square feet, the fire command center shall be permitted to be a shared space (such as a fire pump room or fire riser room) where approved by the fire code official.

(O.15,861, 16,317, 16,412, 16,520)

Sec. 26-325.18. Reserved.

Editor's note—Ord. No. 16,520, § 1, adopted Dec. 8, 2025, repealed § 26-325.18, which pertained to landing frost protection and derived from Ord. No. 15,861; Ord. No. 16,317; Ord. No. 16,412.

Sec. 26-325.19. Handrail continuity.

Insert New Section 1014.5 item #6 with the following language:

6. Handrails within a dwelling unit or serving an individual dwelling unit of groups R-2 and R-3 shall be permitted to be interrupted at one location in a straight stair when the rail terminates into a wall or ledge and is offset and immediately continues.

(O.15,861, 16,520)

Sec. 26-325.20. Reserved.

Editor's note—Ord. No. 16,317, § 1, adopted Jan. 8, 2024, repealed § 26-325.20, which pertained to walking surfaces and derived from Ord. No. 15,861.

Sec. 26-325.21. Reserved.

Editor's note—Ord. No. 16,317, § 1, adopted Jan. 8, 2024, repealed § 26-325.21, which pertained to window well drainage and derived from Ord. No. 15,861.

Sec. 26-325.22. Ventilation.

Delete section 1202.1 and insert in lieu thereof the following new section:

1202.1 General. Buildings shall be provided with mechanical ventilation in accordance with the International Mechanical Code. Where the air infiltration rate in a dwelling unit is less than 5 air changes per hour when tested with a blower door at a pressure 0.2 inch w.c. in accordance with Section R402.1.1.2 of the International Energy Conservation Code — Residential Provisions, the dwelling unit shall be ventilated by mechanical means in accordance with section 403 of the State Mechanical Code. Ambulatory care facilities and Group I-2 occupancies shall be ventilated by mechanical means in accordance with 407 of the State Mechanical Code.

(O.15,861, 16,317, 16,520)

Sec. 26-325.23. Reserved.

Editor's note—Ord. No. 16,520, § 1, adopted Dec. 8, 2025, repealed § 26-325.23, which pertained to ground snow load and derived from Ord. No. 15,861.

Secs. 26-326—26-344. Reserved.

DIVISION 4. INTERNATIONAL EXISTING BUILDING CODE

Sec. 26-345. Generally.

The provisions of International Existing Building Code (IEBC), 2024 edition are hereby amended as follows:

(1) Delete section 103.

(2) Delete section 105.2.

(3) Delete section 105.5.

(4) Delete section 109.3.5.

(5) Delete section 112.

(6) Delete section 115.

(O.15,861, 16,317, 16,520)

Sec. 26-345.1. Fire protection in existing buildings.

Any references requiring automatic fire sprinkler systems to be provided per the International Building Code shall comply with the 2024 International Building Code published by the International Code Council, 500 New Jersey Avenue NW, 6th Floor, Washington, D.C., 20001. For the purposes of this code, no local amendments to the automatic sprinkler system thresholds in the 2024 International Building Code, other than the amendments to section 903.2.11.1.3 and section 903.3.1.2, shall apply.

(O.15,861, 16,317, 16,520)

Sec. 26-345.1.1. Fire protection requirements for existing group R occupancies.

Automatic sprinklers systems shall be permitted to be designed in accordance with the 2024 International Building Code 903.3.1.2 as published for any of the following:

1. R-2 occupancies 3 stories above grade plane or less and 16 units or less.

2. R-1 and R-2 occupancies with an approved alternative design in accordance with 104.11 of the International Building Code.

3. R-3 and R-4 occupancies.

(O.16,317, 16,520)

Sec. 26-345.2. Fire protection for R-2 occupancies.

Insert the following new section:

Section 302.6 Fire Protection. Existing buildings containing R-2 occupancies shall be made to comply with the International Building Code section 903.2.8 within two (2) years of any of the following situations:

1. Fire damage to three or more dwelling units, not including smoke or water damage or other damage from fire-fighting operations.

2. Issuance of a building permit for a Level III alteration as identified in Chapter 6 of the International Existing Building Code.

(O.15,861, 16,520)

Sec. 26-345.3. Storm shelters.

Delete subsection 303.2 and insert in lieu thereof the following new section.

Section 303.2 Addition to a Group E occupancy. Where an addition is added to an existing Group E occupancy located in an area where the shelter design wind speed for tornadoes in 250 mph in accordance with Figure 304.2 (1) of ICC 500 and the occupant load of the addition is 50 or more, the addition shall have a storm shelter constructed in accordance with Chapters 1 through 5 & 8 of ICC 500.

For the purposes of this section the installation of portable buildings for utilization on the campus or site for educational purposes shall be considered as an addition.

Exceptions:

1. Group E day care facilities.
2. Group E occupancies accessory to place of religious worship.
3. Additions meeting the requirements for shelter design in ICC 500.

The aggregate area of all additions within a 10 (ten) year period shall be factored when determining the requirements of this section.

(O.15,861, 16,412, 16,520)

DIVISION 5. SWIMMING POOLS

Sec. 26-346. Adoption of swimming pool code.

The provisions of the International Swimming Pool and Spa Code, 2024 edition, published by the International Code Council, 500 New Jersey Avenue NW, 6th Floor, Washington, D.C. 20001 are hereby adopted by reference and subject to the additions, deletions, and modifications hereinafter regulating the design, construction, alteration, movement, renovation, replacement, repair and maintenance of swimming pools, spas, hot tubs, aquatic facilities and related equipment in the City of Des Moines.

Note: The Iowa Department of Public Health regulates swimming pools, spas, wading pools, water slides, wave pools, spray pads, and bathhouses connected to swimming pools owned or operated by local or state government, or commercial interests or private entities including, but not limited to, public or private school corporations, hotels, motels, camps, apartments, condominiums, health clubs, and country clubs. Please see https://idph.iowa.gov/swimmingpool-sandspas for further details.

(O.15,861, 16,317, 16,520)

Sec. 26-347. Deletions.

The following are deleted from the swimming pool code and are of no force or effect in this article:

(1) Delete section 106.

(2) Delete section 107.

(3) Delete section 108.

(4) Delete the last sentence in section 301.1.

(5) Delete section 301.1.1.

(6) Delete sections 302 through 304, and 306 through 323.

(7) Delete Chapter 4.

(8) Delete Chapter 5.

(9) Delete Chapter 6.

(10) Delete Chapter 7.

(11) Delete Chapter 8.

(12) Delete Chapter 9.

(13) Delete Chapter 10.

(O.15,861, 16,412, 16,520)

Sec. 26-348. Amendments.

(a) The remaining sections in this article are and represent amendments and additions to the requirements contained in the International Swimming Pool and Spa Code (ISPSC) and where their requirements conflict with those of the ISPSC the requirements of this article shall prevail.

(b) The following sections of this article shall be construed in the context of the enumerated chapter of the ISPSC.
(O.15,861)

Sec. 26-349. Reserved.

Sec. 26-349.1. Definitions.

Insert a new definition in Chapter 2, "Swimming pool" is defined as any structure intended for swimming or recreational bathing capable of containing water more than 24 inches deep. This includes in-ground, above-ground, and on-ground swimming pools, hot tubs, and spas.
(O.15,861, 16,317)

Sec. 26-349.2. Barrier requirements—General.

Delete section 305.1 and insert the following in lieu thereof the following new section:

305.1 General. The provisions of this section shall apply to the design of barriers for restricting entry into areas having pools and spas. Where spas or hot tubs are equipped with a lockable safety cover complying with ASTM F1346, the areas where those spas and hot tubs are located shall not be required to comply with Sections 305.2 through 305.7.
(O.16,317)

DIVISION 6. SKYWALK SYSTEM*

Sec. 26-350. Scope of division.

Notwithstanding anything contained in this chapter and chapter 46 of the Municipal Code, the provisions of this division also shall be part of the building code and fire prevention code requirements for the skywalk system and shall take precedence over anything in conflict with this division.
(O.15,861)

Sec. 26-351. Definitions.

The definitions for the terms "skywalk system," "skywalk corridor," and "skywalk bridge" as used in this division shall be the same as in article IV of chapter 102 of the City Code.
(O.15,861)

Sec. 26-352. Skywalk system exceptions.

Skywalk system. Notwithstanding the provisions of Chapter 32 of the International Building Code, the structures of a duly authorized portion of the public skywalk system may project into an alley to the extent authorized by the city council pursuant to article IV of chapter 102 of the City Code.
(O.15,861)

Sec. 26-353. Easement required for skywalk corridor prior to building permit issuance.

Where a skywalk corridor is shown on an approved site plan for a proposed development, no building permit shall be issued for that proposed development until the city council has accepted a right to an easement for such skywalk corridor.
(O.15,861)

Sec. 26-354. Exit requirements from skywalk system.

(a) There must be two means of egress, as described in this section, from any point in the skywalk system during the hours that the portion of such skywalk system including such point is open in accordance with article IV of chapter 102 of the Municipal Code.

(b) In addition to those exits defined in chapter 10 of the International Building Code, any fire door assemblies in a skywalk bridge may constitute an exit from the skywalk system within the meaning of such chapter 10, provided that there is a continuous and unobstructed

*__Cross reference—__Skywalks, § 102-316 et seq.

means of egress from such fire doors assemblies in the direction of exit to a public way on the ground level and provided, further, that such means of egress may include passage through one or more skywalk bridges, one or more skywalk corridors, or portions of one or more buildings, and such skywalk bridges, skywalk corridors or portions of buildings need not satisfy the requirements for corridors or exit passageways contained in such chapter 10.

(c) Doors or other barriers may be locked so as to block passage through a portion of the skywalk system during the hours such portion of the skywalk system is not required to be open in accordance with article IV chapter 102 of the Municipal Code. Any such door or other barrier equipped with a locking device shall have a readily visible, durable sign on or adjacent to the door or other barrier stating "this door to remain unlocked during skywalk system hours." The sign shall be in letters not less than one inch high on a contrasting background.

(d) When a portion of the system is closed, the portion of the skywalk system that is open shall be so arranged that it is possible to go in either direction from any point in the system to an exit, except for dead ends not exceeding 20 feet in length within a building, or 50 feet in length within a sprinklered building.
(O.15,861)

Sec. 26-355. Materials of construction for skywalk bridges and corridors.

(a) The materials of construction for skywalk bridges and skywalk corridors between buildings shall be noncombustible.

(b) The materials of construction for skywalk corridors exterior to and structurally supported by any building, as defined in subsections 26-356(1) and (2), shall be as required by the most restrictive type of construction for the building.
(O.15,861)

Sec. 26-356. Protection of openings onto the skywalk system which are located within 25 feet of property line.

Notwithstanding anything to the contrary contained in the International Building Code, openings onto the skywalk system which are located within 25 feet of the property line shall be protected as follows:

(1) If two buildings are joined by a skywalk corridor constructed between such buildings:

a. The centerline of the skywalk corridor easement shall be deemed the property line, and no opening shall be permitted in any wall of such skywalk corridor which is less than seven feet from the property line;

b. Such skywalk corridor shall be protected by an approved automatic sprinkler system;

c. Any wall of the skywalk corridor which is less than seven feet from

the adjacent property line shall be of at least two-hour fire resistive construction; and

d. Any openings in the skywalk corridor walls shall be either:

1. Of approved opening protective set in metal frames in accordance with the International Building Code, provided a draft curtain of at least one-hour fire resistive construction and not less than 12 inches in height shall be provided to protect the skywalk corridor from the adjacent building area, which draft curtain shall be located above the glass and extend a minimum of 12 inches below the lowest finished ceiling of either such adjacent building area or the skywalk corridor, or, if the finished ceiling is not a fire-rated assembly, the draft curtain shall extend from the opening protective to a rated ceiling or floor assembly; or

2. Protected in the following manner:

i. The adjacent building area onto which such opening occurs is protected by an approved automatic sprinkler system;

ii. A draft curtain of at least one-hour fire resistive construction and not less than 12 inches in height and including an approved water curtain of sprinkler heads six feet on center immediately adjacent to such draft curtain and above the opening within the building area shall be provided to protect the skywalk corridor from the adjacent building area, which draft curtain shall be located above the opening and shall extend a minimum of 12 inches below the lowest finished ceiling area of either such adjacent building area or the skywalk corridor or, if such finished ceiling is not a fire-rated assembly, the draft curtain shall extend from the opening to a rated ceiling or floor assembly; and

iii. Either (i) the ceiling, walls and floor of the adjacent building area onto which such opening occurs shall be separated from the rest of such building by at least two-hour fire resistive construction and all duct penetrations in such building area shall be protected with fire dampers in accordance the International Building Code, or (ii) the entire story is protected by an approved automatic sprinkler.

(2) If a skywalk corridor is constructed exterior to and attached to any one building, but is not between two or more buildings, and such skywalk corridor extends over the adjacent property line related to such building:

a. The centerline of the skywalk corridor easement shall be deemed the property line, and no opening shall be permitted in any wall of such skywalk corridor which is less than seven feet from the property line; and

b. 1. If the adjacent building is protected or is required to be protected by an approved automatic sprinkler system, such skywalk corridor shall be

protected by an approved automatic sprinkler system; or

2. If the adjacent building does not have and is not required to be protected by an approved automatic sprinkler system, such skywalk corridor need not be provided with an approved automatic sprinkler system at the time of construction, provided that the property owners and/or lessees who are responsible for such skywalk corridor under a skywalk agreement with the city shall also agree in such skywalk agreement to provide an approved automatic sprinkler system if a second building is constructed within ten feet of such skywalk corridor; and

c. Any wall of the skywalk corridor which is less than seven feet from the adjacent property line shall be of at least two-hour fire resistive construction;

d. Any openings from such skywalk corridor into the adjacent building shall be in accordance with subsection (1)d of this section; and

e. Any windows in the wall of such skywalk corridor opposite the building to which it is adjacent either:

1. Shall be of approved opening protective set in metal frames in accordance with section 716 of the International Building Code; or

2. May be of other glass, provided that the property owners and/or lessees who are responsible for such skywalk corridor under a skywalk agreement with the city shall also agree in such skywalk agreement to:

i. Replace such glass with approved opening protective set in metal frames in accordance with the International Building Code if any building subsequently is constructed which is within ten feet, but not attached to, such skywalk corridor wall; and

ii. Pay the equivalent of the cost of providing such approved opening protective towards the cost of reconstructing all openings in such skywalk corridor wall in accordance with subsection (1)d of this section if any building subsequently is constructed which is attached to such skywalk corridor wall.

(3) Two buildings may be joined by a wall opening, provided:

a. The wall opening shall be protected by a fire assembly having at least a 1½-hour fire protection rating; or

b. The wall opening may be unprotected if the entire building on both sides of wall opening are protected by an approved automatic sprinkler system; and

c. In either case, there is a draft curtain of at least two-hour fire resistive construction and not less than 12 inches in height, which draft curtain shall be located above the opening and shall extend a minimum of 12 inches below the lowest finished ceiling on either side of the wall opening, or, if the finished ceiling is not a fire-rated assembly on either side, the draft curtain shall extend from the opening to a rated ceiling or floor assembly on such side of the opening.

(4) If two buildings are connected by a skywalk bridge:

a. If such skywalk bridge is not connected to a skywalk corridor which

is exterior to any building to which such skywalk bridge is connected, it shall be sufficient if the opening at one end of such skywalk bridge is protected by approved fire assemblies having at least a 1½-hour fire protection rating with gasketed frames, and the remaining construction where such end of the skywalk bridge penetrates the adjacent building is of at least two-hour fire rating construction; or

b. If such skywalk bridge is connected to a skywalk corridor which is exterior to any building to which such skywalk bridge is connected, all openings from such skywalk bridge into the adjacent buildings shall conform to the requirements of subsection (1) of this section.

(O.15,861)

Secs. 26-357—26-399. Reserved.

ARTICLE IV. ELECTRICAL CODE*

DIVISION 1. GENERALLY

Sec. 26-400. Adoption of the State Electrical Code.

(a) Except as otherwise provided in this article, the State Electrical Code adopted pursuant to 661 I.A.C. 550.3 or any successor provision thereto and as amended by 661 I.A.C. 550.3 (1), (2) & (3) or any successor provision thereto is hereby adopted by the City of Des Moines pursuant to Iowa Code § 103.6 and incorporated into this article as though fully set forth herein. The remaining subsections of 661 I.A.C. Chapter 550 are also incorporated by this reference to the extent necessary to implement, interpret or enforce the adopted code.

(b) This article and all provisions incorporated in this article, by reference or otherwise, shall be known as the electrical code. References to section numbers not preceded by "26-" will be to articles in the State Electrical Code.
(O.15,545, 15,632, 15,944, 15,967, 16,464)

Sec. 26-401. Electrical permit required.

No person shall perform any electrical work nor install electrical equipment in or upon any building or property without first securing from the Permit and Development Center a permit therefore; nor shall any alteration or change be made in the wiring of any building, or in any electrical installation therein or thereon, either before or after inspection, nor shall any electric current be connected to any wires, or apparatus, without notifying the electrical inspector and securing a permit therefore. A separate permit shall be obtained for each building. A fee for each electrical permit shall be paid to the building official in the amount set in the schedule of fees adopted by the city council by resolution.
(O.15,545)

Secs. 26-402—26-404. Reserved.

DIVISION 2. DELETIONS AND AMENDMENTS

Sec. 26-405. Reserved.

Editor's note—Ord. No. 15,967, § 1, adopted Jan. 25, 2021, repealed § 26-405, which pertained to deletions and derived from Ord. No. 15,545; Ord. No. 15,632; Ord. No. 15,944.

Sec. 26-406. Amendments and additions.

(a) The remaining sections in this article are and represent amendments and additions to the requirements contained in the State Electrical Code which are more restrictive than the State Electrical Code, and where their requirements conflict with those of the State Electrical Code, the requirements of this article shall prevail.
(O.15,545, 15,967, 16,464)

*__Cross references—__City electric light and power, § 118-476 et seq.; electric franchise, app. C.

Sec. 26-407. Scope.

(a) The provisions of this article shall apply to the following:

(1) The electrical conductors and equipment installed within or on public and private buildings and other premises.

(2) The conductors that connect the installations to a supply of electricity, and other outside conductors adjacent to the premises.

(3) Mobile homes.

(b) Additions to, alterations of, and repairs to existing electrical equipment shall comply with the electrical code. Furthermore, existing electrical equipment that is temporarily exposed or made accessible because of any remodeling or repair of an existing structure, shall be made to comply with the electrical code. In any event, the building official may, when any additions, alterations, or repairs are made, order other reasonable additions or alterations in the electrical equipment of a structure or on any premises when a danger to life or property may result if such other additions or alterations were not made.

(c) Installations which were in compliance with the electrical code in existence at the time such installations were made shall be presumed to be safe and proper, which presumption can be rebutted by evidence that the installation may be dangerous to life or property.

(d) If the classification of a building has been changed due to a change in occupancy, the wiring in the entire building shall comply with all the electrical standards applicable to the new classification. If the occupancy of a building has been changed to a mixed occupancy, with the required fire separation between the mixed occupancy, each occupancy shall comply with its own particular classification and shall be wired in compliance with the electrical standards of its particular classification.

(e) No permits are required for electrical wiring of 50 volts or less. Such systems shall comply with the State Electrical Code.

(f) The provisions of sections 26-135 through 26-143 and 26-450 through 26-451, inclusive, of this article shall not apply in any respect to persons who are licensed by law to engage in the business of supplying and distributing electricity or the transmission of communication, when the person is installing, operating or maintaining electrical equipment or doing electrical work as an integral part of such business.

(g) Whenever service entrances are altered or upgraded, residential structures shall be updated throughout to the requirements consistent with the electrical code in accordance with the City of Des Moines Electrical Residential Update Requirements, as amended from time to time.
(O.15,545, 16,464)

Sec. 26-408. Applicability to moved buildings.

Residential buildings or structures moved into or within the boundaries of the city shall comply with the electrical code in accordance with the City of Des Moines Electrical Residential Update Requirements, as amended from time to time.
(O.15,545)

Sec. 26-409. Service entrance requirements.

(a) All service entrances in and upon buildings and structures within the city shall be of the class known as "rigid metal conduit (RMC), intermediate metallic conduit (IMC), or electrical metallic tubing (EMT)," except as provided in this section.

(b) Underground service entrances for all buildings except in single-family, two-family, and row dwellings shall be of moisture resistant wire installed in rigid metal conduit or approved non-metallic raceway such as schedule 40 polyvinylchloride (PVC) or its equivalent.

(c) Other provisions of this section to the contrary notwithstanding, that portion of an underground service lateral that is installed by an electrical contractor, but is owned and maintained by a business licensed by law to

engage in the business of supplying and distributing electricity, may be of a type used by such a business for such an installation.

(d) All direct burial cable used by the utility company for the purpose of distributing electrical current within the city, shall be placed and located in the ground a minimum depth of 30" below the proposed final grade. No separation shall be required between electrical conductors and communications conductors when laid in a common trench.

(e) Underground service entrance risers, to the meter, may be schedule 40 PVC, when not subject to physical damage.
(O.15,545, 15,632, 15,944, 16,464)

Sec. 26-410. Conformity with standards.

Conformity with standards established by any nationally recognized third-party testing and certification agency approved by the American National Standards Institute shall be evidence of conformity with approved standards for electrical equipment.
(O.15,545)

Sec. 26-411. Reserved.

Editor's note—Ord. No. 15,632, § 1, adopted Dec. 4, 2017, repealed § 26-411, which pertained to ground-fault circuit-interrupter protection requirements and derived from Ord. No. 15,545.

Sec. 26-412. Reserved.

Editor's note—Ord. No. 15,632, § 1, adopted Dec. 4, 2017, repealed § 26-412, which pertained to lighting load calculations and derived from Ord. No. 15,545.

Sec. 26-413. Reserved.

Editor's note—Ord. No. 15,967, § 1, adopted Jan. 25, 2021, repealed § 26-413, which pertained to ground fault circuit interrupter protection in dwelling units and derived from Ord. No. 15,944.

Secs. 26-414—26-499. Reserved.

DIVISION 3. LICENSES

Sec. 26-450. Electrical contractor's license.

(a) Except as provided in section 26-452, only those individuals or business entities holding an electrical contractor license as recognized in this section may apply for and obtain permits to conduct electrical work in the city.

(b) Any person, firm or business engaged in, or which presents itself as engaging in any electrical systems activity or business within the city, shall present for copying by the building official, all licenses issued by the electrical examining board to any of its workers or employees prior to such workers or employees engaging in such work within the city.

(c) No new electrical contractor licenses shall be issued by the city.

(d) Except as otherwise provided in this chapter, no person, firm or business shall engage in, or present itself as engaging in any electrical work or business regulated by article IV of this chapter unless it is one of the following:

(1) An electrical contractor licensed as such by the Iowa Electrical Examining Board and is, or employs, a class A master electrician licensed as such by such board.

(2) A residential electrical contractor licensed as such by the Iowa Electrical Examining Board and is, or employs, a residential master electrician licensed as such by such board.

(e) Residential electrical contractors shall be limited to residential electrical work. Residential electrical work is defined as electrical work in buildings that contain no uses other than residential dwellings, no more than four dwelling units; and work within accessory structures, which are located on the same parcel as the dwelling unit or units, are no greater than 3,000 square feet in floor area, not more than two stories in height, the use of which is not commercial in nature, and is incidental to the use of the dwelling unit or units. For the purpose of this definition, fire walls and property lines will not be considered to create separate buildings when those buildings are attached. Buildings will only be considered separate for purposes of this section when detached.
(O.15,545)

Sec. 26-451. Master, journeyman, and apprentice licenses.

Except as provided in section 26-452 or as otherwise specifically allowed by this chapter, no

person shall work in the electrical trades or perform any work regulated by article IV of this chapter without a license recognized by this chapter.

(1) Those persons working in the electrical trades who have been issued a license, exclusive of class B licenses, by the Iowa Electrical Examining Board pursuant to Iowa Code chapter 103, shall be recognized as licensed and eligible to work in the city within the scope of activities authorized by such licenses.

(2) Those persons working in the electrical trades who have been issued a class B license by the Iowa electrical examining board pursuant to Iowa Code chapter 103, shall be recognized as licensed and eligible to work in the city within the scope of activities authorized by such licenses only if they previously held a comparable electrical license issued by the city.

(3) A master electrician may not be listed as the master electrician of record for more than one electrical contractor at one time.

(O.15,545, 15,632)

Sec. 26-452. Exemptions from licensing requirements.

The provisions of sections 26-450 and 26-451 shall not apply to the following:

(1) The electrical work of a public utility company, telephone, or telegraph company, nor the persons performing electrical work for such companies, if that electrical work is an integral part of the plant used by such public utility company or telephone or telegraph company in rendering its duly authorized service to the public.

(2) A regular employee of any railroad who does electrical work only as part of that employment.

(3) The connection or disconnection of any heating, ventilation, air conditioning, or refrigeration equipment by any person who is licensed as a journeyperson or master in HVAC or refrigeration under the provisions of article V of this chapter of the City Code, provided that such connection or disconnection shall include electrical work only on electrical equipment that is part of any heating, ventilation, air conditioning, or refrigeration equipment. This work shall include the connection or disconnection of any heating, ventilation, air conditioning, or refrigeration equipment to an existing individual branch circuit.

(4) Routine maintenance performed by a city employee, county employee, or employee of any political subdivision of the state. Routine maintenance means the repair or replacement of existing electrical apparatus or equipment, including but not limited to wires, cables, switches, receptacles, outlets, fuses, circuit breakers, and fixtures, of the same size and type for which no changes in wiring are made, but does not include any new electrical installation or the expansion or extension of any circuit.

(5) The work performed on traffic signals or streetlights by an employee of a contractor qualified according to the standard specifications of the state department of transportation and acting pursuant to a contract of the city or the state that is included in a jointly approved project agreement.

(6) In cases in which an owner-occupant of an existing single family dwelling desires to conduct work on electrical systems in the owner-occupant's single family dwelling the owner-occupant may appear before the respective discipline inspector to demonstrate that he or she is competent to do the specific work to be accomplished, and after successful demonstration of competence as determined by the inspector, may obtain the permit(s) by paying the proper fee. For purposes of this section a single family dwelling unit shall mean a detached residence designed for or occupied by one family only which is the primary residence of the owner-

occupant with record of homestead and qualifies for the homestead tax exemption. Electrical service work must be completed by an electrical contractor licensed in accordance with section 26-450.

(7) Or any other provision contained within Iowa Code § 103.22.

(O.15,545, 15,632)

Secs. 26-453—26-499. Reserved.

ARTICLE V. MECHANICAL CODE*

DIVISION 1. GENERALLY

Sec. 26-500. Adoption of State Mechanical Code.

(a) Except as otherwise provided in this article, the State Mechanical Code adopted pursuant to 481 I.A.C. 426.2 or any successor provision thereto and as amended by 481 I.A.C. 426.3 or any successor provision thereto is hereby adopted by the City of Des Moines pursuant to Iowa Code § 105.4 and incorporated into this article as though fully set forth herein. The remaining subsections of 481 I.A.C. Chapter 426 are also incorporated by this reference to the extent necessary to implement, interpret, or enforce the adopted code.

(b) This article and all provisions incorporated in this article, by reference or otherwise, shall be known as the mechanical code. References to section numbers not preceded by "26-" will be to sections in the State Mechanical Code.

(O.15,545, 15,834, 16,065, 16,464)

Sec. 26-501. Mechanical permit required.

(a) Mechanical permits are required for any installation, alteration, repair, replacement, or remodel to a mechanical system regulated by the State Mechanical Code.

(b) A fee for each mechanical permit shall be paid to the building official in the amount set in the schedule of fees adopted by the city council by resolution.

(O.15,545, 15,834)

Sec. 26-502. Mechanical permit exemptions.

The following are also excluded from the mechanical permit requirements

(1) Portable heating appliances.

(2) Portable ventilation appliances and equipment.

(3) Portable cooling units.

(4) Steam, hot water or chilled water piping within any heating or cooling equipment or appliances regulated by this code.

(5) The replacement of any minor part that does not alter the approval of equipment or an appliance or make such equipment or appliance unsafe.

(6) Portable evaporative coolers.

(7) Self-contained refrigeration systems that contain 10 pounds (4.5 kg) or less of refrigerant, or that are actuated by motors of 1 horsepower (0.75 kW) or less.

(8) Portable fuel cell appliances that are not connected to a fixed piping system and are not interconnected to a power grid.

(O.15,545, 16,464)

Secs. 26-503, 26-504. Reserved.

DIVISION 2. RESERVED†

Secs. 26-505—26-520. Reserved.

DIVISION 3. RESERVED‡

Secs. 26-521—26-549. Reserved.

*__Editor's note—__Ord. No. 15,834, § 1, adopted Nov. 18, 2019, amended the title of Art. V to read as herein set out. Formerly, said Art. V was entitled "Mechanical Code and Fuel Gas Code."

†__Editor's note—__Ord. No. 15,834, § 1, adopted Nov. 18, 2019, repealed Div. 2, §§ 26-505—26-513, which pertained to deletions and amendments and derived from Ord. No. 15,545.

‡__Editor's note—__Ord. No. 15,834, § 1, adopted Nov. 18, 2019, repealed Div. 3, §§ 26-521—26-524, which pertained to National Fuel Gas Code amendments and derived from Ord. No. 15,545.

DIVISION 4. LICENSES

Sec. 26-550. Mechanical and plumbing contractor's license.

Only those individuals or business entities holding a mechanical or plumbing contractor license issued by the Iowa plumbing and mechanical systems licensing board may apply for and obtain permits to conduct mechanical and plumbing work in the City of Des Moines.
(O.15,545, 15,834)

Sec. 26-551. Master, journeyman, and apprentice license required.

A person shall not install or repair plumbing, HVAC, refrigeration, or hydronic systems without first obtaining a license issued by the State of Iowa for the applicable trade or discipline, or install or repair medical gas piping systems without first obtaining a valid certification approved by the Iowa plumbing and mechanical systems examining board. Those persons working in the mechanical and plumbing trades or disciplines who have been issued a license by the Iowa plumbing and mechanical systems examining board pursuant to I.C. chapter 105, shall be recognized as licensed and eligible to work in the city within the scope of activities authorized by such licenses.
(O.15,545, 15,834)

Sec. 26-552. Reserved.

Editor's note—Ord. No. 15,834, § 1, adopted Nov. 18, 2019, repealed § 26-552, which pertained to exemptions from licensing requirements and derived from Ord. No. 15,545.

Secs. 26-553—26-599. Reserved.

ARTICLE VI. PLUMBING CODE*

DIVISION 1. GENERALLY

Sec. 26-600. Scope.

(a) The provisions of the plumbing code shall apply to all new construction, relocated buildings, and to any alterations, repairs or reconstruction, except as otherwise provided for in the plumbing code.

(b) Additions to, identified faulty work, alterations of and repairs to any part of an existing plumbing or drainage system, if covered by the plumbing code, shall comply with the provisions of the plumbing code. Further, the building official may, when such additions, alterations or repairs are made, order further reasonable additions or alterations in a building, structure, or premises when any work or installation regulated by the plumbing code is dangerous, unsafe, insanitary, constitutes a nuisance or is a menace to life, health or property, or is otherwise in violation of the plumbing code. The order shall be issued to the property owner or his or her authorized agent. Refusal, failure or neglect to comply with any lawful order of the building official shall constitute a violation of the plumbing code.

(c) Installations which were in compliance with the city plumbing ordinances in existence at the time the installations were made shall be presumed to be safe and proper, which presumption can be rebutted by evidence that the installation is insanitary, dangerous, unsafe, constitutes a nuisance or is a menace to life, health or property, or is contrary to generally accepted standards of good practice.

(d) Excavations within the public rights-of-way or upon city land are also subject to the requirements in article IX of chapter 102.
(O.15,545)

Sec. 26-601. Adoption of State Plumbing Code.

(a) Except as otherwise provided in this article, the State Plumbing Code adopted pursuant to 481 I.A.C. 425.1 and 425.3 or any successor provision thereto and as amended by 481 I.A.C. 425.4 or any successor provision thereto is hereby adopted by the City of Des Moines pursuant to Iowa Code § 105.4 and incorporated into this article as though fully set forth herein. The remaining subsections of 481 I.A.C. Chapter 425 are also incorporated by this reference to the extent necessary to implement, interpret, or enforce the adopted code.

*__Cross references—__Sewers and sewage disposal, § 118-31 et seq.; industrial waste, § 118-316 et seq.; water, § 118-586 et seq.; sewer districts, app. G.

(b) This article and all provisions incorporated in this article, by reference or otherwise, shall be known as the plumbing code. References to section numbers not preceded by "26-" will be to sections in the State Plumbing Code.
(O.15,545, 15,835, 16,065, 16,464)

Sec. 26-602. Applicability to moved buildings.

Buildings or structures moved into the city shall comply with the provisions of the plumbing code for new buildings or structures.
(O.15,545)

Sec. 26-603. Applicability to subsurface drainage.

The provisions of section 26-650 of this article which relate to subsurface drainage shall apply to all such subsurface drainage from buildings, whether new or existing, if such drainage would, but for compliance therewith, discharge to a point upon or so adjacent to a public sidewalk or street as to permit the water so discharged to drain upon a public sidewalk or street. Failure to comply with this section shall constitute a violation of the plumbing code. It is specifically provided, however, that no offense shall be charged under this section for such discharge during periods of community emergency generated by extraordinarily high levels of precipitation.
(O.15,545)

Sec. 26-604. Applicability to county park property.

The provisions of this article shall not apply or be enforced within or upon county park property situated within the corporate boundaries of the city so long as the county shall maintain in force within the county a nationally recognized plumbing code and shall provide for the enforcement of such plumbing code within and upon such park property.
(O.15,545)

Sec. 26-605. Authority of building official.

The building official is responsible for the enforcement of the plumbing code and the rules and regulations of the state board of public health governing plumbing. When used in this article, the term "administrative authority" shall mean the building official or his or her duly authorized representative.

When it is impossible or impractical to install plumbing in strict compliance with the provisions of the plumbing code or any other applicable law, ordinance, rule or regulation, the building official may, with the approval of the state department of public health, permit minor variations which are safe and reasonable.
(O.15,545)

Sec. 26-606. Plumbing permits required.

(a) Plumbing permits are required for any installation, alteration, repair, replacement, or remodel to a plumbing system regulated by the State Plumbing Code.

(b) A fee for each plumbing permit shall be paid to the building official in the amount set in the schedule of fees adopted by the city council by resolution.

(c) Excavation permits issued by the city engineer pursuant to chapter 102 to open streets, parking or other public property for the purpose of installation or repair shall be issued only after plumbing permits for the work have been obtained in accordance with this division. Each excavation permit shall contain the plumbing permit number.
(O.15,545, 15,835)

Sec. 26-607. Plumbing permit exceptions.

No plumbing permits shall be required for the following:

(1) Any work generally known as maintenance work, such as the repairing of leaks, the removal of stoppage in sewer or waste pipes, or the repairing of faucets and closet tanks. However, nothing in this subsection shall be construed as permitting the excavation of any part of a street, parking or sidewalk without a plumbing permit.

(2) When a private sewer, other than a building or house sewer, is constructed under the jurisdiction, standard specifications

and inspection of the city engineer, or when lateral sewer stubs are constructed under the jurisdiction and standard specifications and inspection of the city engineer.

(3) When a storm sewer service, or a private storm sewer main, to city owned property i.e. parking lots, parks, cemeteries, or other city owned properties, is constructed, installed or repaired under the jurisdiction, standard specifications and inspection of the city engineer.

(O.15,545)

Sec. 26-608. Plumbing permit issuance criteria; plans and specifications.

(a) *Issuance.* Plumbing permits shall be issued only in the name of the person holding a current plumbing contractor's license issued by the city or by the State of Iowa, a copy which shall be kept on file with the building official. The application for a plumbing permit shall recite the name of the person holding the plumbing contractor's license, the personal signature of the certified or licensed master plumber or the master plumber's duly authorized agent, the street and building number of the proposed work, the owner's name and address, the occupancy or use of the premises, the specific items of work to be performed, and such other pertinent information as may be required by the building official. The contractor and any master, journeyman or apprentice plumber shall keep a copy of their license readily accessible at the premises to which the permit applies.

(b) *Plans and specifications.* Plans and specifications shall be submitted as follows:

(1) When required by the building official for the enforcement of any provisions of the plumbing code, plans and specifications for the installation of any plumbing or plumbing system shall be filed with and approved by the building official before the issuance of any permit.

(2) The building official may require such plans and specifications to be prepared and designed by an engineer licensed by the state to practice as such.

(3) One set of plans and specifications may be filed for checking, provided that not less than two sets of corrected plans and specifications are filed before the building official gives approval. After approval, one set of plans shall be retained by the building official and the other set shall be returned to the applicant, which set shall be kept on such building or work at all times during which the work authorized is in progress.

(4) When the plans and specifications do not comply with provisions of the plumbing code, the necessary changes or revisions shall be made thereto.

(5) Every plan shall be a print or other type of approved plan. The information contained on the plans shall be clearly legible and specifically indicated. Plans shall be drawn to an appropriate scale.

(6) Specifications, legibly and definitely stated, shall be included either on the plan or on separate sheets.

(7) The approval of any plans or specifications shall not be construed to sanction any violation of the plumbing code.

(8) No person shall deviate materially from any approved plans or specifications or fail, neglect, or refuse to comply therewith unless permission to do so has been obtained from the building official.

(9) The plans or specifications shall show the following data, along with such other information as may be required by the building official:

a. Layout for each floor drawn to accurate scale or dimensions of all working spaces and a legend of all symbols used.

b. Locations, size, and material of all piping and fixtures.

c. The first sheet of each set of plans and specifications shall show the address of the proposed work and the name and address of the owner or lessee of the premises.

d. Plans and specifications shall be of sufficient clarity to show that the proposed installation will conform to the provisions of the plumbing code and all applicable laws, ordinances, rules, regulations and orders.

(O.15,545, 16,317)

Sec. 26-609. Reserved.

Editor's note—Ord. No. 15,835, § 1, adopted Nov. 18, 2019, repealed § 26-609, which pertained to definitions and derived from Ord. No. 15,545.

Secs. 26-610—26-619. Reserved.

DIVISION 2. AMENDMENTS AND ADDITIONS*

Sec. 26-620. Reserved.

Editor's note—Ord. No. 15,835, § 1, adopted Nov. 18, 2019, repealed § 26-620, which pertained to deletions and derived from Ord. No. 15,545.

Sec. 26-621. Amendments and additions.

The remaining sections in this article are and represent amendments and additions to the requirements contained in the State Plumbing Code which are more restrictive than the State Plumbing Code, and where their requirements conflict with those of the State Plumbing Code, the requirements of this article shall prevail.
(O.15,545, 15,835)

Sec. 26-622. Reserved.

Editor's note—Ord. No. 15,835, § 1, adopted Nov. 18, 2019, repealed § 26-622, which pertained to water temperature for public lavatories and derived from Ord. No. 15,545.

*__Editor's note—__Ord. No. 15,835, § 1, adopted Nov. 18, 2019, amended the title of Art. VI, Div. 2, to read as herein set out. Formerly, said Div. 2 was entitled "Deletions and Amendments."

Sec. 26-623. Reserved.

Editor's note—Ord. No. 15,835, § 1, adopted Nov. 18, 2019, repealed § 26-623, which pertained to shower waste outlet and derived from Ord. No. 15,545.

Sec. 26-624. Reserved.

Editor's note—Ord. No. 15,835, § 1, adopted Nov. 18, 2019, repealed § 26-624, which pertained to limitation of hot water in bathtubs and whirlpool bath tubs and derived from Ord. No. 15,545.

Sec. 26-625. Reserved.

Editor's note—Ord. No. 15,835, § 1, adopted Nov. 18, 2019, repealed § 26-625X, which pertained to limitation of hot water in bidets and derived from Ord. No. 15,545.

Sec. 26-626. Reserved.

Editor's note—Ord. No. 15,835, § 1, adopted Nov. 18, 2019, repealed § 26-626, which pertained to required plumbing fixture calculations and derived from Ord. No. 15,545.

Sec. 26-627. Reserved.

Editor's note—Ord. No. 15,835, § 1, adopted Nov. 18, 2019, repealed § 26-627, which pertained to floor drains required and derived from Ord. No. 15,545.

Sec. 26-628. Backflow prevention with containment.

(1) For the purpose of backflow prevention with containment within the City of Des Moines, the administrative authority means the Des Moines Water Works and the building official.

(2) Administrative authority right of entry.

(a) Des Moines Water Works or the building official shall have the right to enter, with the consent of the customer or upon the basis of suitable warrant issued by a court of appropriate jurisdiction, any property to inspect for possible cross connections.

(O.16,065)

Editor's note—Prior to reenactment by Ord. No. 16,065, Ord. No. 15,835, § 1, adopted Nov. 18, 2019, repealed § 26-628, which pertained to cross connection control—Containment and derived from Ord. No. 15,545.

Sec. 26-629. Reserved.

Editor's note—Ord. No. 15,835, § 1, adopted Nov. 18, 2019, repealed § 26-629, which pertained to materials used for water distribution and derived from Ord. No. 15,545.

Sec. 26-630. Reserved.

Editor's note—Ord. No. 15,835, § 1, adopted Nov. 18, 2019, repealed § 26-630, which pertained to use of copper tubing and derived from Ord. No. 15,545.

Sec. 26-631. Reserved.

Editor's note—Ord. No. 15,835, § 1, adopted Nov. 18, 2019, repealed § 26-631, which pertained to depth of water service and derived from Ord. No. 15,545.

Sec. 26-632. Sewer depth.

Building sewers less than 42" below grade shall be cast iron pipe or be protected with an engineered system to prevent damage from freezing and frost heave.
(O.15,545)

Sec. 26-633. Reserved.

Editor's note—Ord. No. 15,835, § 1, adopted Nov. 18, 2019, repealed § 26-633, which pertained to drainage, waste, storm and vent systems and derived from Ord. No. 15,545.

Sec. 26-634. Reserved.

Editor's note—Ord. No. 15,835, § 1, adopted Nov. 18, 2019, repealed § 26-634, which pertained to backwater valves and derived from Ord. No. 15,545.

Sec. 26-635. Reserved.

Editor's note—Ord. No. 15,835, § 1, adopted Nov. 18, 2019, repealed § 26-635, which pertained to size of building sewers and derived from Ord. No. 15,545.

Sec. 26-636. Reserved.

Editor's note—Ord. No. 15,835, § 1, adopted Nov. 18, 2019, repealed § 26-636, which pertained to appliancesand derived from Ord. No. 15,545.

Sec. 26-637. Reserved.

Editor's note—Ord. No. 15,835, § 1, adopted Nov. 18, 2019, repealed § 26-637, which pertained to swimming pools and derived from Ord. No. 15,545.

Sec. 26-638. Reserved.

Editor's note—Ord. No. 15,835, § 1, adopted Nov. 18, 2019, repealed § 26-638, which pertained to air conditioning wastes and derived from Ord. No. 15,545.

Sec. 26-639. Reserved.

Editor's note—Ord. No. 15,835, § 1, adopted Nov. 18, 2019, repealed § 26-639, which pertained to vent termination and derived from Ord. No. 15,545.

Sec. 26-640. Reserved.

Editor's note—Ord. No. 15,835, § 1, adopted Nov. 18, 2019, repealed § 26-640, which pertained to wet vent sizing and derived from Ord. No. 15,545.

Sec. 26-641. Reserved.

Editor's note—Ord. No. 15,835, § 1, adopted Nov. 18, 2019, repealed § 26-641, which pertained to table of horizontal distance of trap arms and derived from Ord. No. 15,545.

Sec. 26-642. Grease interceptors and FOG.

Regulation of Fat Oil and Grease (FOG) and sizing of FOG removal devices shall be in accordance with chapter 118, article III of this code for the regulation of industrial wastewater and commercial wastewater. Grease drainage lines shall be clearly identified by one of the following ways:

(1) Stenciled with "Grease Drainage". Letters size shall be 1½" for 2" piping, and 2" for 3" and larger piping. Stenciling shall be applied every 3 feet of piping and labeled at the future stubbed locations; or

(2) Prior approval of an identification system approved by the AHJ.

(O.15,545, 15,835, 16,464)

Sec. 26-643. Reserved.

Editor's note—Ord. No. 15,835, § 1, adopted Nov. 18, 2019, repealed § 26-643, which pertained to prohibited locations of CSST and derived from Ord. No. 15,545.

Sec. 26-644. Reserved.

Editor's note—Ord. No. 15,835, § 1, adopted Nov. 18, 2019, repealed § 26-644, which pertained to corrugated stainless steel tubing (CSST) and derived from Ord. No. 15,545.

Sec. 26-645. Existing sewers.

Replacement of existing building sewer and building storm sewers using trenchless methodology and materials shall be installed in accordance

with ASTM F1216. Cast-iron soil pipes and fittings shall not be repaired or replaced by using this method aboveground or belowground. Replacement using cured-in-place pipe liners shall not be used on collapsed piping or when the existing piping is compromised. Compromised piping is determined by the AHJ that would consist of significant cracks, out of alignment piping, missing pieces from piping, and or fittings. If any portion of a bituminous fiber ("Orangeburg") building sewer fails, the Orangeburg sewer shall be replaced in its entirety from the building to the public sanitary sewer with new sewer that fully complies with this Code.
(O.15,835)

Secs. 26-646—26-649. Reserved.

DIVISION 3. STORM DRAINAGE SYSTEMS

Sec. 26-650. General requirements.

Parking lot and retention pond drains. Parking lot and retention pond drains shall be installed as directed by the city engineer and in accordance with the approved site plan, a copy of which shall be available on the job site.
(O.15,545, 16,464)

Sec. 26-651. Outside leaders.

When outside leaders are of sheet metal and connected with a building storm drain or storm sewer, they shall be connected to a cast iron drain extending above the finish grade, or the sheet metal leader shall be protected against injury.
(O.15,545, 16,464)

Sec. 26-652. Traps.

Conductor traps shall be so located that an accessible cleanout may be installed on the building side of the trap.
(O.15,545, 16,464)

Sec. 26-653. Size of leaders and storm drains.

Vertical leaders, horizontal storm drains, and gutters shall be sized based on a 4-inch per hour rainfall.
(O.15,545, 16,464)

Sec. 26-654. Size of combined drains and sewers.

In computing the size of combined building drains or sewers to which storm drains serving a roof, court, or paved area are to be connected, the area drained may be converted to equivalent fixture unit loads by placing a value of 256 fixture units on the first 1,000 square feet or portion thereof of area to be drained and one additional fixture unit for each 3.9 square feet thereafter.
(O.15,545, 16,464)

Sec. 26-655. Swimming pool discharge.

In other than single family dwellings, townhomes and duplexes, pipes carrying wastewater from swimming pools, wading pools, or hot tubs, including pool drainage, backwash from filters, water from scum gutter drains or floor drains which serve walks around pools, shall be installed as an indirect waste by an air gap. Where the recirculation pump is used to discharge waste pool water to the drainage system, the pump discharge shall be installed as an indirect waste, with an air gap, to the sanitary sewer system.

Swimming pool discharge from single family dwellings, duplexes and townhomes shall be in accordance with the City of Des Moines Public Works discharge requirements.
(O.16,317)

Secs. 26-656—26-669. Reserved.

DIVISION 4. LICENSES

Sec. 26-670. Mechanical and plumbing contractor's license.

Only those individuals or business entities holding a valid mechanical or plumbing contractor license issued by the Iowa plumbing and

mechanical systems licensing board may apply for an obtain permits to conduct mechanical and plumbing work in the City of Des Moines.
(O.15,545, 15,835)

Sec. 26-671. Master, journeyman, and apprentice license required.

A person shall not install or repair plumbing, HVAC, refrigeration, or hydronic systems without first obtaining a license issued by the State of Iowa for the applicable trade or discipline, or install or repair medical gas piping systems without first obtaining a valid certification approved by the Iowa plumbing and mechanical systems examining board. Those persons working in the mechanical and plumbing trades or disciplines who have been issued a license by the Iowa plumbing and mechanical systems examining board pursuant to Iowa Code chapter 105, shall be recognized as licensed and eligible to work in the city within the scope of activities authorized by such licenses.
(O.15,545, 15,835)

Sec. 26-672. Reserved.

Editor's note—Ord. No. 15,835, § 1, adopted Nov. 18, 2019, repealed § 26-672, which pertained to exemptions from licensing requirements and derived from Ord. No. 15,545.

Secs. 26-673—26-699. Reserved.

ARTICLE VII. RESERVED*

Secs. 26-700—26-799. Reserved.

ARTICLE VIII. SIGNS AND BILLBOARDS

DIVISION 1. GENERALLY

Sec. 26-800. Definitions.

For the purpose of this division, certain terms, phrases, words and their derivatives shall be construed as specified in either this section or as specified in the building code. Where terms are not defined, they shall have their ordinary accepted meanings within the context with which they are used. Webster's Third New International Dictionary of the English Language, Unabridged, copyright 1993, shall be considered as providing ordinary accepted meanings.

Approved plastic materials means those which are defined in the International Building Code.

Billboard means all structures, regardless of the material, used in the construction of the structures that are erected, maintained or used for public display of posters, painted signs, wall signs, whether the structure is placed on the wall or painted on the wall itself, pictures or other pictorial reading matter which advertise a business or attraction which is not carried on or manufactured in or upon the premises upon which such signs or billboards are located.

Curb line means the line at the face of the curb nearest to the street or roadway. In the absence of a curb, the curb line shall be established by the city engineer.

Legal setback line means a line established by ordinance beyond which no building may be built. A legal setback line may be a property line.

Marquee means a permanent roofed structure attached to and supported by the building and projecting over public property.

Noncombustible, applied to building construction material, means a material which, in the form in which it is used, is either one of the following:

(1) Material of which no part will ignite and burn when subjected to fire. Any material conforming to International Building Code shall be considered noncombustible within the meaning of this section.

(2) Material having a structural base of noncombustible material as defined in subsection (1) of this definition with a surfacing material not over one-eighth inch thick which has a flame-spread rating of 50 or less.

The term "noncombustible" does not apply to surface finish materials. Material required to be

*__Editor's note—__**Ord. No. 16,165, § 1, adopted August 8, 2022, repealed Art. VII, §§ 26-700—26-703, 26-710—26-712, 26-720—26-728, which pertained to steam or power operating equipment and derived from Ord. No. 15,545.

noncombustible for reduced clearances to flues, heating appliances, or other sources of high temperature shall refer to material conforming to subsection (1) of this definition. No material shall be classed as noncombustible which is subject to increase in combustibility or flame-spread rating beyond the limits established in this definition, through the effects of age, moisture or other atmospheric condition. The term "flame-spread rating" as used in this definition refers to rating obtained according to tests conducted as specified in International Building Code.

Nonstructural trim means the molding, battens, caps, nailing strips, latticing, cutouts or letters and walkways which are attached to the sign structure.

Portable display surface means a display surface temporarily fixed to a standardized advertising structure and which may be moved from structure to structure at periodic intervals.

Projection means the distance by which a sign extends over public property or beyond the building line.

Sign means any structure, including but not limited to a device or display, other than buildings or landscaping, used primarily for visual communication for the purpose of or having the result of bringing the subject thereof to the attention of a person, group of persons, or the public generally. The term "sign" includes but is not limited to any and all reading matter, letters, numerals, pictorial representations, emblems, trademarks, inscriptions, and patterns, whether affixed to a building, painted or otherwise, depicted on a building, or separate from any building. Nothing in this division shall be construed so as to prohibit ideological or noncommercial advertising on any sign on which commercial advertising is permitted.

Sign area means the total area contained within the faces of a sign; provided, however, that the area of a sign containing back-to-back sign faces or V-type sign faces with an internal angle of 45 degrees or less, attached to a single supporting structure, shall be the area of the larger separate sign face. The area of a sign composed of characters or words attached directly to a building or wall surface is the smallest rectangle which encloses the group.

Sign, electric means any sign containing electrical wiring, but not including signs illuminated by an exterior light source.

Sign, ground means a sign, other than a pole sign, that is supported in or upon the ground and not attached to any building or wall.

Sign, illuminated means any sign that is artificially lighted, by any direct, indirect, or internal light source.

Sign, pole means a sign that is supported by one or more uprights or braces in or upon the ground.

Sign, projecting means a sign, other than a wall sign, which projects from and is supported by a wall of a building or structure.

Sign, roof means a sign erected upon or above a roof or parapet of a building.

Sign structure means any structure which supports or is capable of supporting any sign as defined in this section. A sign structure may be a single pole and may or may not be an integral part of a building.

Sign, wall or fascia sign means any sign attached to or erected against the wall of a building or structure, with the exposed face of the sign in a plane parallel to the plane of such wall.

Structure means a structure which is built or constructed, an edifice or building of any kind, or any piece of work artificially built up or composed of parts jointed together in some definite manner.
(O.15,545)

Cross reference—Definitions generally, § 1-2.

Sec. 26-801. Scope of division.

This division is intended to regulate the construction, erection, alteration, repair, and maintenance of all signs and sign structures in the city.
(O.15,545)

Sec. 26-802. Sign and billboards permits required.

(a) Except as provided in this division, it shall be unlawful for any person to erect, alter, relocate or maintain within the city any sign or sign structure, as defined in section 26-800, without first obtaining a permit issued by the zoning enforcement officer and making payment of the permit fee provided in this division.

(b) A sign permit shall not be required for the following:

(1) Identification signs not exceeding one square foot in area.

(2) Memorial signs on buildings, showing only the building's name and date of erection, when such sign is carved into or made an integral part of the exterior of the building or when such sign is constructed of bronze or other metal alloy and securely and permanently attached to such building.

(3) A sign that is painted on or attached to an operative self-propelled vehicle.

(4) Flags bearing only the official design or recognized symbol of a governmental entity, an educational institution, or a company or other organization.

(5) Traffic or other municipal signs such as legal notices, railroad crossings, danger and other emergency signs as may be approved by the enforcement authority.

(6) For the replacement of the removable display board or other removable display surface of a sign having a stationary framework or structure so designed that a display board or panel or other display surface may be inserted therein or attached thereto or removed whenever desired without unfastening or removing the stationary framework or structure from its supports.

(7) Private traffic direction signs directing traffic movement into a premises or within a premises, provided such signs do not exceed four square feet in area and are not illuminated.

(8) Horizontal directional signs painted on or installed flush with paved areas.

(9) Non-illuminated real estate signs with an area of six square feet or less.

(10) Any non-illuminated signs used on a temporary basis, as defined in Chapter 134-5.4.6, that are 15 square feet or smaller.

(c) The permit fee for every sign permit required by this division shall be in the amount set in the schedule of fees adopted by the city council by resolution.

(d) Every sign, whether existing or erected, shall be classified by the zoning enforcement officer according to its type as a "combination," "ground," "pole," "projecting," "roof," "wall" or "fascia," or "marquee" sign.
(O.15,545, 15,819, 16,465)

Sec. 26-803. Sign and billboard permit application; plans and specifications.

(a) Application for a sign permit shall be made in writing upon forms furnished by the zoning enforcement officer. Such application shall contain the street address or legal description, as required, of the property upon which the sign is to be located, the name and address of the owner and the sign erector, and such other information as may be required by the zoning enforcement officer.

(b) Two copies of plans and specifications shall be submitted when required with the application for each sign permit. Such plans shall show complete details, methods of attachment or support, location, and materials to be used. Computations, stress diagrams, and other data sufficient to show the correctness of the plans shall be submitted when required by the neighborhood services department.
(O.15,545, 16,224)

Sec. 26-804. Design.

(a) *Generally.* General requirements for signs and sign structures shall be as follows:

(1) Signs and sign structures shall be designed and constructed to resist wind

and forces as specified in this section. All bracing systems shall be designed and constructed to transfer lateral forces to the foundations. For signs on buildings the dead and lateral loads shall be transmitted through the structural frame of the building to the ground in such manner as not to overstress any of the elements thereof.

(2) The overturning moment produced from lateral forces shall in no case exceed two-thirds of the dead load resisting moment. Uplift due to overturning shall be adequately resisted by proper anchorage to the ground or to the structural frame of the building. The weight of earth superimposed over footings may be used in determining the dead load resisting moment. Such earth shall be carefully placed and thoroughly compacted.

(b) *Wind loads.* Wind loads shall comply with the following:

(1) Signs and sign structures shall be designed and constructed to resist wind forces as specified in the International Building Code.

(2) In the absence of plans certified by an engineer registered in this state, simple pole or ground sign supports shall provide a section-modulus at the point of maximum bending equal to or greater than that obtained from the following formula:

S.M. - 0.0004615 × (AS) × (PW) × (HC)

Where:

S.M. = Section modulus.

AS = Area of sign face in square feet.

PW = Pressure of wind in pounds per square feet as determined from the building code

HC = Height of in feet of centroid of sign area from point of maximum bending

(c) *Combined loads.* Vertical design loads, except roof live loads, shall be assumed to be acting simultaneously with the wind loads.

(d) *Allowable stresses.* Allowable stresses shall be as follows:

(1) The design of wood, concrete, steel or aluminum members shall conform to the requirements of the International Building Code. Loads, both vertical and horizontal, exerted on the soil, shall not produce stresses exceeding those specified in the building code.

(2) The working stresses of wire rope and its fastenings shall not exceed 25 percent of the ultimate strength of the rope or fasteners.

(3) Working stresses for wind loads combined with dead loads may be increased as specified in the building code.

(O.15,545)

Sec. 26-805. Construction.

(a) *Generally.* The supports for all signs or sign structures shall be placed in or upon private property and shall be securely built, constructed, and erected in conformance with the requirements of the International Building Code.

(b) *Materials.* Materials of construction shall be as follows:

(1) Materials of construction for signs and sign structures shall be of the quality and grade as specified for buildings in the International Building Code.

(2) In all signs and sign structures, the materials and details of construction shall, in the absence of specified requirements conform with the following:

a. Structural steel shall be of such quality as to conform with the International Building Code. Secondary members in contact with or directly supporting the display surface may be formed of light gauge steel, provided such members are designed in accordance with the specifications of the design of light gauge steel as specified in the International Building Code and, in addition, shall be galvanized. Secondary members, when formed

integrally with the display surface shall be not less than no. 24 gauge in thickness. When not formed integrally with the display surface, the minimum thickness of the secondary members shall be no. 12 gauge. The minimum thickness of hot-rolled steel members furnishing structural support for signs shall be one-fourth inch, except that if galvanized such members shall be not less than one-eighth inch thick. Steel pipes shall be of such quality as to conform with International Building Code. Steel members may be connected with one galvanized bolt provided the connection is adequate to transfer the stresses in the members.

b. Anchors and supports when made of wood and embedded in the soil or within six inches of the soil shall be of all heartwood of a durable species or shall be pressure treated with an approved preservative. Such members shall be marked or branded by an approved agency.

(c) *Restriction on combustible materials.*

(1) All signs and structures erected in fire zone no. 1 shall have structural members of noncombustible materials. Ground signs may be constructed of any material meeting the requirements of the International Building Code, except as provided in subsection (b) of this section.

(2) Roof signs, wall signs, projecting signs, and signs on marquees shall be constructed of noncombustible materials, except as provided in subsection (d) of this section. No combustible materials other than approved plastics shall be used in the construction of electric signs.

(d) *Nonstructural trim.* Nonstructural trim and portable display surfaces may be of wood, metal, approved plastics, or any combination thereof.

(e) *Anchorage.*

(1) Members supporting unbraced signs shall be so proportioned that the bearing loads imposed on the soil in either direction, horizontal or vertical, shall not exceed the safe values. Braced ground signs shall be anchored to resist the specified wind load acting in any direction. Anchors and supports shall be designed for safe bearing loads on the soil and for an effective resistance to overturning. Anchors and supports shall penetrate to a depth below ground greater than that of the frostline. Portable ground signs supported by frames or posts rigidly attached to the base shall be so proportioned that the weight and size of the base will be adequate to resist the wind pressure specified in the International Building Code. Signs attached to masonry, concrete, or steel shall be safely and securely fastened thereto by means of metal anchors, bolts,

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or approved expansion screws of sufficient size and anchorage to support safely the loads applied.

(2) No wooden blocks or plugs or anchors with wood used in connection with screws or nails shall be considered proper anchorage, except for signs attached to wood framing.

(3) No anchor or support of any sign shall be connected to or supported by an unbraced parapet wall, unless such wall is designed in accordance with the requirements for parapet walls specified in Chapter 16 of the International Building Code.

(4) Adjustable turnbuckles shall be safely secured to prevent movement.

(f) *Display surfaces.* Display surfaces in all types of signs may be made of metal, glass, or approved plastics, except that glass shall not be used in any pole or projecting signs. Glass thickness and area limitations shall be as set forth in table no. 4-A in this section. Sections of approved plastics on wall signs shall not exceed 150 square feet in area. Exceptions:

(1) In fire zone no. 3 the area may be increased by 50 percent.

(2) Sections of approved plastics on signs other than wall signs may be of unlimited area if approved by the building official.

TABLE NO. 4-A SIZE, THICKNESS AND TYPE OF GLASS PANELS IN SIGNS

Maximum Size of Exposed Glass Panel		*Minimum Thickness of Glass (in inches)*	*Type of Glass*
Any Dimension (in inches)	*Area (in square inches)*		
30	500	1/8	Plain, plate or wired glass
45	700	3/16	Plain, plate or wired glass
144	3,600	1/4	Plain, plate or wired glass
Over 144	Over 3,600	1/4	Wired glass

(g) *Approved plastics.* The zoning enforcement officer shall require that sufficient technical data be submitted to substantiate the proposed use of any plastic material and, if it is determined that the evidence submitted is satisfactory for the use intended, he or she may approve its use.

(h) *Concealment of structural framework.* No structural framework of any sign shall be covered or concealed.

(i) *Electrical wiring.* All signs containing electrical wiring shall be subject to all provisions of the electrical code.

(j) *Maintenance and repair.* All signs, together with all of their supports, braces, guys, and anchors, shall be kept in repair and in a proper state of preservation. The display surfaces of all signs shall be kept neatly painted or posted at all times.

(k) *Name of erector and date of erection.* Every general advertising sign, as defined in chapter 134 of the City Code, and every sign which projects over any public right-of-way erected after January 1, 1966, shall have painted or otherwise attached on the exterior of the sign the name of the sign erector and date of erection. Such name and date shall be of sufficient size and contrast to be easily read from a reasonable distance.
(O.15,545, 15,819)

Sec. 26-806. Projection and clearance.

(a) *Generally.* All types of signs shall conform to the clearance and projection requirements of this section.

(b) *Clearance from high voltage power lines.* Signs shall be located not less than six feet horizontally or eight feet vertically from overhead electrical conductors which are energized in

excess of 600 volts. The term "overhead conductors" as used in this subsection means any electrical conductor, either bare or insulated, installed above the ground except such conductors as are enclosed in iron pipe or other material covering of equal strength.

(c) *Clearance from fire escapes, exits or standpipes.* No sign or sign structure shall be erected in such a manner that any portion of its surface or supports will interfere in any way with the free use of any fire escape, exit, or standpipe.

(d) *Obstruction of openings.* No sign shall obstruct any openings to such an extent that light or ventilation is reduced to a point below that required by the building code. Signs erected within five feet of an opening in an exterior wall shall be constructed of noncombustible material or approved plastics.

(e) *Projection over alleys.* No sign or sign structure shall project into any public alley below a height of 14 feet above grade, nor project more than 18 inches when such sign is 14 feet to 18 feet above grade. The sign or sign structure may project not more than 36 inches into the public alley where the sign or sign structure is located more than 18 feet above grade.
(O.15,545)

Sec. 26-807. Ground signs.

(a) Ground signs may be constructed of any material meeting the requirements of the building code, except as provided in sections 26-804 and 26-805 of this division.

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(b) Ground signs shall be designed in accordance with the requirements specified in section 26-805 of this division.

(c) Ground signs may have display surfaces of combustible materials except in fire zone no. 1 with further exceptions as provided in section 26-805 of this division.
(O.15,545)

Sec. 26-808. Roof signs.

(a) Roof signs shall be constructed of noncombustible materials, except as specified in section 26-805 of this division.

(b) Roof signs shall be thoroughly secured and anchored to the frame of the building over which they are constructed and erected, and shall be designed in accordance with the requirements specified in section 26-804 of this division.

(c) Passage clear of all obstructions shall be left under or around and immediately adjacent to all signs exceeding a height of four feet above the roof thereunder. Such passages shall be not less than three feet wide and four feet high and shall be at parapet or roof level. There shall be one such passage or access opening as follows:

(1) For each roof sign upon a building.

(2) An access opening for every 50 lineal feet of horizontal roof sign extension.

(3) Within 20 feet of walls and parapets when roof signs are at right angles to a face of the building.
(O.15,545)

Sec. 26-809. Wall or fascia signs.

(a) Wall signs in fire zones no. 1 and 2 shall be constructed of noncombustible material, except as provided in section 26-805 of this division.

(b) Wall signs shall be designed in accordance with the requirements specified in section 26-804 of this division.

(c) When otherwise permitted, no wall sign shall have a projection over public property or beyond a legal setback line greater than the distances set forth in section 26-806 of this division.
(O.15,545)

Sec. 26-810. Projecting signs.

(a) Projecting signs shall be constructed of noncombustible materials, except as specified in section 26-805 of this division.

(b) Projecting signs shall be designed in accordance with the requirements specified in section 26-804 of this division.

(c) Subject to all other city regulations, the height of signs projecting over public property shall be determined by the clearance of the bottoms thereof above the level of the sidewalk or grade immediately below, as set forth in section 26-806 of this division.
(O.15,545)

Sec. 26-811. Marquees.

Signs may be placed on, attached to, or constructed in a theater marquee. Such signs shall, for the purpose of determining projection, clearance, height and material, be considered a part of and shall meet the requirements for a marquee as specified in the International building code.
(O.15,545)

Secs. 26-812—26-819. Reserved.

DIVISION 2. LICENSES

Sec. 26-820. Billboard license and bond required.

Any person or any agent thereof, before erecting, constructing or maintaining any billboard as defined in section 26-800, must procure a class A sign erector's license and furnish a bond when so required by section 26-823 of this division.
(O.15,545)

Sec. 26-821 Sign erector's license required; to whom issued; classes; expiration; annual fees.

(a) Every person erecting or installing signs for which permits are required by section 26-802 shall obtain a sign erector's license to conduct such operations, except that the occupant of a premises may obtain a permit to erect or install a sign on the premises without a license if the sign is not electrical, does not exceed 15 square feet, does not exceed 50 pounds, and is attached flat against the side of a building or parapet wall.

(b) The license to erect signs shall be known as a sign erector's license, of which there shall be three classes, as set out in this subsection, and shall be issued only to those persons who show sufficient knowledge and experience to satisfy the zoning enforcement officer as to their ability to erect signs of a size and weight allowed by the class of license for which they are applying in a safe and substantial manner in accordance with the provisions of division IV of article III of this chapter. The three classes of license and the allowable size and weight of signs that may be erected thereunder shall be as follows:

(1) *Class A.* A class A sign erector's license shall entitle the holder thereof to erect any sign or billboard that may be erected in accordance with the provisions of this division.

(2) *Class B.* A class B sign erector's license shall entitle the holder thereof to erect any sign, but not a billboard, which does not exceed 75 square feet in area or 400 pounds in weight.

(3) *Class C.* A class C sign erector's license shall entitle the holder thereof to erect any sign, but not a billboard or roof sign, which does not exceed 20 square feet in area or 150 pounds in weight.

(c) All sign erector's licenses shall expire on December 31 of each even-numbered year and may be renewed prior to expiration by payment of the license fee for the next biennial term. Any expired license may be renewed without examination within 30 days after the expiration date upon payment of the license fee plus a late renewal fee in the amount set in the schedule of fees adopted by the city council by resolution. When more than 30 days have passed after the expiration date, no expired license shall be renewed except upon the recommendation of the zoning enforcement officer and payment of the license fee plus the late renewal fee.

(d) The license fees for sign erector's licenses shall be in the amounts set in the schedule of fees adopted by the city council by resolution.
(O.15,545)

Sec. 26-822. Sign erector's license application; examination of qualifications of applicant; issuance.

Applications for sign erector's licenses shall be made to the zoning enforcement officer and shall contain the name and address of the proprietor, president or other senior officer in charge of the applicant's business and such other pertinent information as may be requested. The zoning enforcement officer shall examine the qualifications of each applicant and shall cause licenses to be issued to all those properly qualified after their bonds have been filed and approved by the legal department and license fees have been paid.
(O.15,545)

Sec. 26-823. Sign erector's bond.

(a) Prior to the issuance of a sign erector's license, the person desiring such a license shall file with the zoning enforcement officer a good and sufficient bond running to the city, the penal sum of which shall be $10,000.00 for a class A license, $5,000.00 for a class B license, $2,500.00 for a class C license, to indemnify, save and keep harmless the city from any and all costs, damages, or expenses of any kind whatsoever which may be suffered by the city or which it may be put to or which may accrue against it by charging to or recovering from the city from or because of the granting of permission to erect such signs or because of any acts or things done under or by authority of permission granted by the zoning enforcement officer to erect such signs in the city or because of the negligence, failure or refusal of

any person to comply with all the sections of this division applicable to such signs, or to pay any sign permit fees.

(b) At any time the bond of any sign erector is permitted to lapse, such sign erector's license shall be automatically suspended and shall remain suspended until such sign erector again files a bond as required in this section.
(O.15,545)

Secs. 26-824—26-899. Reserved.

ARTICLE IX. ENERGY AND WATER USE BENCHMARKING

Sec. 26-900. Purpose.

The purpose of this article is to preserve and improve the safety, health, welfare, comfort and convenience of city residents by advancing energy efficiency and reducing greenhouse gas emissions as outlined in and in furtherance of the Guide DSM: Strategic Plan 2015—2030 adopted by the city council in 2015 and the Plan DSM: Creating Our Tomorrow plan as an amendment to the city's comprehensive plan adopted by the city council in 2016. The terms and provisions of this article shall serve as a vital component in reaching the goals set forth in the adopted plans to reduce greenhouse gas emissions, to reduce energy consumption in city-owned buildings, and to foster a sustainable local economy through environmentally sound building practices and energy efficiency.
(O.15,779)

Sec. 26-901. Definitions.

The following words and phrases, whenever used in this article, shall be construed as defined in this section unless context indicates otherwise:

Aggregated whole-building data means energy use or water use data that has been summed for an entire property, which may include a single occupant or a group of separately metered tenants.

Anonymized data means data that does not reveal names, addresses or any other information that would identify a person or business.

Audit means a systematic evaluation process to identify appropriate modifications and improvements of a covered property base building systems for energy and/or water distribution and use, including proposed alterations to and installation of new equipment for such systems, insulation installation or other generally recognized energy and water efficiency technologies to optimize energy and water use performance and achieve energy and water savings for the covered property.

Base building systems means the systems or subsystems of a building that use or distribute energy and/or water and/or impact energy and/or water consumption, including:

(1) The building envelope;

(2) The heating, ventilating, and air conditioning (HVAC) systems;

(3) Energy conveying systems;

(4) Electrical and lighting systems;

(5) On-site energy generation systems;

(6) Domestic hot water systems;

(7) Water distribution systems;

(8) Plumbing fixtures and other water use equipment; and

(9) Landscape irrigation systems and water features, including fountains.

Except base building systems does not include:

(1) Systems or subsystems within a leased premises or an apartment established pursuant to Iowa Code Chapters 499A or 499B that are owned or fully maintained and for which all energy and/or water bills are paid for pursuant to separate meter or sub-meter by the person who has ownership or possessory interest in the leased premises or apartment.

(2) Systems or subsystems used in conjunction with industrial applications or processes.

Benchmarking means to input and submit the total energy and water consumed as part of integral building operations for a covered property and to input and submit additional descriptive

information for such covered property required by the benchmarking tool for each calendar year.

Benchmarking tool means the United States Environmental Protection Agency Energy Star portfolio manager, or such additional or alternative tool used to track and assess the energy and water consumption of a covered property relative to properties with similar characteristics which, at a minimum, provides an Energy Star score and measures energy use intensity, water use intensity and emissions.

City covered property means a covered property that is entirely owned or leased by the city.

Covered property means any property that exceeds 25,000 square feet in total building gross floor area except covered property does not include property:

(1) Classified for assessment purposes as residential real estate;

(2) Classified for assessment purposes as multi-residential real estate containing fewer than five dwelling units;

(3) Classified for assessment purposes as industrial real estate;

(4) Owned or leased by the federal, state or county governments or the municipal housing agency for the city;

(5) Utilized primarily for an elementary and/or secondary school;

(6) Utilized primarily for religious assembly;

(7) Of a type not meeting the underlying public purposes of this article, as determined by the director.

Director means the community development director or his or her designees.

Energy means electricity, gas, steam, or other product sold by a utility to a public or private customer, or renewable on-site electricity generation, for purposes of providing heating, cooling, lighting, water heating, or for powering or fueling other end-uses as recorded in the benchmarking tool.

Energy Star score means the numeric rating generated by the Energy Star portfolio manager tool developed and maintained by the United States Environmental Protection Agency as a measurement of a property's relative energy performance and efficiency.

Energy use intensity means the energy use per square foot of gross floor area for the calendar year calculated by total year kBtu divided by total square footage.

Gross floor area means the total area, included within the exterior walls of a building, including lobbies, leased premises, common areas, shared use rooms, restrooms, elevator shafts, stairwells, mechanical equipment areas, basements and storage rooms.

Owner means any of the following:

(1) An owner as defined in section 1-2 of this Code;

(2) A tenant in the case of a property subject to a triple net lease between an owner and a single tenant;

(3) The council of co-owners for property subject to a declaration recorded pursuant to Iowa Code Chapter 499B;

(4) The board of directors for property subject to articles filed pursuant to Iowa Code Chapter 499A; or

(5) An agent authorized to act on behalf of any of the above.

Property means any of the following:

(1) A single building;

(2) Two or more buildings subject to the same declaration recorded pursuant to Iowa Code Chapter 499B or subject to the same articles filed pursuant to Iowa Code Chapter 499A; or

(3) A campus of two or more buildings which are owned and operated by the same person, have a shared primary function, and:

a. Utilize a common electric utility meter or utilize common base building systems which prevent the owner

from determining the energy use attributable to each of the individual buildings; and/or

b. Are used primarily for one of the following:
   1. College or university.
   2. Hospital
   3. Hotel or motel
   4. Office
   5. Retail sales
   6. Household living
   7. Group living.

Retuning means a systematic process for optimizing building performance through the assessment, identification and correction of deficiencies of the base building systems for energy and/or water distribution and use of the covered property, including repairs of defects, cleaning, adjustments of valves, sensors, controls or programmed set points, and changes in operational practices.

Tenant means a person occupying leased premises in a building under a rental or lease agreement;

Utility means MidAmerican Energy Company, city water works or such other entity that distributes and sells gas, electric energy, water, or thermal energy services for public and private use.

Water use intensity means the water use from all water sources and from all indoor water sources per square foot of gross floor area for the calendar year calculated by total year water use from all sources divided by total square footage and calculated by total year metered indoor use divided by total square footage.
(O.15,779)

Sec. 26-902. Benchmarking data collection.

(a) Each year the owner of a covered property shall collect and enter data on the energy and water consumption of the covered property during the prior calendar year into the benchmarking tool in a manner that conforms to latest guidance provided by the United States Environmental Protection Agency. The data entered into the benchmarking tool shall provide for an assessment of the aggregated total energy and water consumed for all the covered property for the entire prior calendar year for incorporation in the energy and water benchmarking report. Data for the covered property's energy use and water use shall be compiled using the following methods that apply to the property: a) obtaining aggregated whole-building data from each utility; b) collecting data from all nonresidential tenants; and/or c) reading a master meter.

(b) If the owner of a covered property does not have access to aggregated whole-building data on energy use and water use, the owner shall request such aggregated whole-building data for the covered property from each utility. If aggregated whole-building data is not provided by the utilities, the owner of the covered property shall exercise all lease rights, in compliance with applicable federal and state laws, to request energy use and water use data from its nonresidential tenants exclusively for benchmarking data collection purposes in accordance with subsections (c) and (d) of this section.

(c) Each nonresidential tenant with leased premises in a covered property shall, within 30 days of a written request by the owner and in the form approved by the director, allow reasonable access to base building systems and provide all information regarding its energy use and water use that cannot otherwise be acquired by the owner from the utilities and is needed by the owner to comply with the benchmarking data collection requirements of this article.

(d) When a nonresidential tenant intends to vacate its leased premises in a covered property, the tenant shall within 30 days of a written request by the owner and in the form approved by the director, provide all information regarding its energy and water use that cannot otherwise be acquired by the owner from the utilities and is needed by the owner to comply with the benchmarking data collection requirements of this article.
(O.15,779)

Sec. 26-903. Benchmarking reporting.

(a) The owner of a covered property shall annually submit to the city electronically an energy and water benchmarking report for the prior calendar year containing the benchmarking information required by the director in such form and content determined by the director, by the reporting due dates specified in section 26-904. A submittal fee in the amount set in the schedule of fees adopted by the city council by resolution will be charged to the owner of the covered property for a benchmarking report that is submitted to the city and filed more than 30 days after the applicable reporting due date.

(b) Prior to submitting the benchmarking report to the city, the owner of the covered property shall run all automated data quality checker functions within the benchmarking tool, and shall verify that all data has been accurately inputted. The owner shall correct all missing or incorrect information identified by the automated data quality checker prior to submitting the benchmarking report to the city.

(c) When the owner of the covered property becomes aware that any information in the submitted benchmarking report is inaccurate or incomplete, the owner shall enter corrective and supplemental information in the benchmarking tool, and shall provide to the city an amended benchmarking report within 30 days.
(O.15,779)

Sec. 26-904. Benchmarking reporting schedule.

(a) The owner of a covered property shall ensure that a benchmarking report of the covered property for the prior calendar year is generated, completed and submitted to the city annually.

(b) The initial benchmarking report for each covered property shall be submitted in accordance with the schedule set out in the following table. Subsequent benchmarking reports for each covered property shall be due by July 1 of each year thereafter.

Property	*Initial Reporting Due Date*
City covered properties	June 1, 2019 (for 2018)
Covered properties other than city covered properties	May 1, 2020 (for 2019)

(c) The city shall make available on the city's internet website the shared benchmarking information for the prior calendar year for each covered property, listed by address.

(d) The shared benchmarking information for each city covered property shall first be made available on the city's internet website commencing on July 1, 2020 and the shared benchmarking information for each covered property other than a city covered property shall first be made available on the city's internet website commencing on December 31, 2022.
(O.15,779, 15,983)

Sec. 26-905. Benchmarking exemptions.

(a) Benchmarking is not required for a city covered property for any calendar year if the covered property is subject to any of the following circumstances:

(1) The covered property did not have a certificate of occupancy for the entire calendar year;

(2) A demolition permit was issued for the covered property and occupancy of the covered property was vacated during the calendar year;

(3) The covered property did not receive energy or water utility services for a cumulative 30 days or more during the calendar year; or

(4) The covered property had average daily occupancy of no more than one person during the calendar year.

(b) Benchmarking is not required for a covered property other than a city covered property for any calendar year if the owner, prior to May 1 succeeding the calendar year, submits to the director an exemption request and supporting documentation in such form and with such certifications as required by the director to

establish to the reasonable satisfaction of the director that the covered property is subject to any of the following circumstances:

(1) The covered property is subject to any of the circumstances set out in subsections (a)(1)—(4) of this section;

(2) The covered property is subject to financial stress during the calendar year as may be demonstrated by calendar year covered property expenses significantly exceeding calendar year covered property revenues, the covered property is sold at tax sale under Iowa Code Chapter 446, the covered property is subject to foreclosure or forfeiture proceedings initiated under Iowa Code Chapters 654 or 656, or the covered property is otherwise under court appointed receivership;

(3) Due to unique features, functions or uses of the covered property, compliance with the benchmarking requirements will cause undue hardship to the owner, will reveal owner proprietary information or trade secrets recognized and protected as such by law, or will not further the underlying public purposes of this article, as determined by the director;

(4) The covered property is classified for assessment purposes as multi-residential real estate, more than four energy utility meters are associated with the covered property, the electric utility does not provide access to aggregated whole-building data for the covered property and the owner does not have access to other reasonable means to obtain such aggregated whole-building data.

(5) The covered property has obtained Leadership in Energy and Environmental Design (LEED) certification from the U.S. Green Building council (USGBC).

(6) The covered property is classified for assessment purposes as multi-residential real estate and constructed within five years prior to the calendar year as evidenced by a certificate of occupancy for the completed construction.

(c) The decisions of the director on whether a covered property qualifies for exemption to benchmarking pursuant to this section may be appealed by any person affected by the decisions pursuant to the administrative appeal process set forth in Chapter 3 of this Code.
(O.15,779, 15,983)

Sec. 26-906. Sharing of data.

(a) If an owner of a covered property in good-faith reasonably determines that any portion of its benchmarking reports submitted to the city constitute a confidential record under Iowa Code Chapter 22 or federal law, the owner may submit a confidentiality request to the city identifying the portion requested to be kept confidential. The burden will be on the owner to make such confidentiality request and justify application of a confidentiality exception by citation to applicable law. In the absence of a court order or final order or decision of the Iowa Public Information Board, the city may, but is not required to, protect the claimed confidential records contained in such reports from release to the public for examination.

(b) Provided the city has received written permission from the owner of a covered property, the city may provide non-anonymized data from benchmarking reports submitted to the city to any utility serving the covered property or to any federal, state, county or city managed energy efficiency or management program for purposes of offering programs, services, and incentives related to energy use and water use efficiency and management for the covered property.

(c) The city may make available anonymized data from benchmarking reports to an entity for academic, non-commercial research or other purposes in furtherance of the underlying public purposes of this article.
(O.15,779)

Sec. 26-907. Annual report and analysis.

The city shall make available on the city's internet website annual reports on the benchmarking of all covered properties in the city compiled by the director which reports shall

include data, statistics and analysis in furtherance of the underlying public purposes of this article.
(O.15,779)

Sec. 26-908. Notice of violations—Administrative penalties.

(a) The director is authorized to issue a notice of violation imposing an administrative penalty upon any person who fails to perform an act required by this article or who commits an act prohibited by this article.

(b) The administrative penalty for such violations shall be as provided in the schedule of administrative penalties adopted by the city council by resolution.

(c) Notice of violation, with the applicable penalty for such violation noted thereon, shall be issued to the owner of a covered property by the director. Service of the notice may be by regular mail or delivery in person. Penalties shall be paid in full within 30 days of the issuance of the notice.
(O.15,779)

Sec. 26-909. Civil penalties.

Any person who fails to pay an administrative penalty issued upon that person pursuant to section 26-908 shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.
(O.15,918)

Chapters 27—29

RESERVED

Chapter 30

BUSINESSES*

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***Cross references—**Advertising, ch. 6; alcoholic beverages, ch. 10; amusements and entertainments, ch. 14; emergency services, ch. 38; discriminatory employment practices, § 62-71 et seq.; discriminatory public accommodations practices, § 62-136 et seq.; peddlers and solicitors, ch. 78; use of streets and sidewalks for business purposes, § 102-456 et seq.; telecommunications, ch. 110; railroads, § 114-72 et seq.; utilities, ch. 118; contractors for sewers and sewage disposal, § 118-106 et seq.; vehicles for hire, ch. 126; zoning ordinance, ch. 134; electric franchise, app. C; gas franchise, app. D; hotel and motel tax, app. F.

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ARTICLE I. IN GENERAL

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ARTICLE II. BANKRUPT, GOING OUT OF BUSINESS, REMOVAL OF BUSINESS AND FIRE OR WATER DAMAGE SALES

Sec. 30-26. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Advertising means any means of conveying to the public notice of sale or notice of intention to conduct the sale, including but not limited to newspaper or magazine advertisements, handbills, printed matter, window signs, banners, billboard displays, and radio or television announcements.

Bankrupt sale means a sale held out in such a manner as to reasonably cause the public to believe that the person is selling a stock of goods purchased or acquired in a bankruptcy or insolvency proceeding.

Fire or water damage sale means a sale held out in such a manner as to reasonably cause the public to believe that the person will offer at retail goods damaged or altered by fire, smoke or water.

Going out of business sale means a sale held out in such a manner as to reasonably cause the public to believe that, upon the disposal of the stock of goods on hand, the person will cease and discontinue the business, including but not limited to sales which may be designated as assignee's, bankrupt, benefit of administrator's, benefit of creditor's, benefit of trustees', building coming down, closing, creditors' committee, creditors' end, executor's, final days, forced out, forced out of business, going out of business, insolvent, last days', lease expires, liquidation, loss of lease, mortgage sale, receiver's, trustee's, quitting business.

Goods means any goods, wares, merchandise or other property capable of being the object of a sale regulated under this article.

License means a license issued pursuant to this article.

Licensee means any person to whom a license has been issued pursuant to this article.

Premises means the one store or place of business owned or operated by the applicant for which a license may be applied for and issued as provided in this article. Except as otherwise specifically limited in the license, the term "premises" includes any space owned, leased, operated or controlled by the applicant which is adjacent to or included in the building or store in which the business of the applicant is carried on.

Removal of business sale means a sale held out in such a manner as to reasonably cause the public to believe that the person will cease and discontinue business at the premises upon disposal of the stock of goods on hand and will then move to and resume business at a new location in the city or will then continue business from other existing locations in the city.

(C42, § 58-1; C54, C62, § 7-1; O.7584; C75, C79, C91, § 9-29)

Cross reference—Definitions generally, § 1-2.

Sec. 30-27. License required.

A license issued by the city clerk shall be obtained by any person before selling or offering to sell at retail any goods at a sale to be advertised or held out by any means to be one of the following kinds: going out of business sale; removal of business sale; fire or water damage sale; or bankrupt sale.

(C42, § 58-2; C54, C62, § 7-2; O.7584; C75, § 9-30; O.9482; C79, C91, § 9-30)

Sec. 30-28. Application for license.

A person desiring to conduct a sale regulated by this article shall make a verified written application to the city clerk setting forth the following information:

(1) The name and address of the owner of the goods to be sold.

(2) The name and address of any person who has contracted or agreed with the owner of the goods to be sold to conduct or in any manner supervise the sale.

(3) A description of the premises where the sale is to be held.

(4) The nature of the occupancy of the premises, including if by lease or sublease, and the effective date of the termination of such occupancy.

(5) The period of time during which the proposed sale is to be conducted.

(6) A full and complete statement of the facts regarding the sale including: if a fire or water damage sale, the date of the fire or water damage; if a going out of business sale, the reason for discontinuing the business at the premises; if a removal of business sale, the reason for discontinuing the business at the premises and the address of the new place of business, if any, where the applicant will conduct its business; if a bankrupt sale, the court and the name in which the bankruptcy matter is pending and the date and place of sale of the goods to the applicant.

(7) The means to be employed in advertising the sale, together with a general outline concerning the content of any proposed advertisements.

(8) The cost, including freight, to the applicant of the goods to be sold. If the goods were purchased or acquired by the applicant for a lump sum or under circumstances which makes the listing of the cost price for each article or category impracticable, a statement shall be attached setting forth the total sum paid for such goods to each supplier and the circumstances concerning the purchase of same.

(9) A complete and detailed listing of the goods to be offered at such sale as disclosed by the applicant's records as follows:

a. Bona fide orders. All of the goods shall have been purchased by the applicant for resale. For a going out of business sale or a removal of business sale, the list shall include all goods on order, and a license shall not be issued if the city clerk finds that:

1. Any of the goods on order were purchased under conditions where, as of the date of filing the application, the applicant retained the right to cancel the purchase; or

2. Any of the goods on order or in the applicant's possession were purchased on consignment.

b. Goods purchased for sale. A license shall not be issued if the city clerk finds that any of the applicant's goods were purchased in contemplation of conducting a sale regulated under this article. If the cost, including freight, of additions to the applicant's stock of goods during the 60-day period immediately preceding the date of filing the application exceeds ten percent of the cost, including freight, of the applicant's inventory as of the date of filing the application, that fact shall be presumptive proof that such additions were purchased in the contemplation of conducting a sale regulated under this article. However, if the city clerk finds that the nature of the applicant's business is such that the amount of goods purchased for resale by the applicant is subject to seasonal fluctuations and that the additions to the applicant's stock of goods during the 60-day period immediately preceding the date of filing the application were determined by the seasonal requirements of the business and, therefore, constituted more than ten percent of the cost, including freight, of the applicant's inventory as of the date of filing the application, the city clerk may nonetheless approve the application if the city clerk determines that the additions to the applicant's stock of goods within the 60-day period in

excess of ten percent were bona fide and legitimate to the usual conduct of the applicant's business.

(C42, §§ 58-4, 58-13; C54, C62, §§ 7-3, 7-4; O.7584; O.7964; C75, § 9-31; O.9482; C79, C85, § 9-31; O.11,602; C91, § 9-31)

Sec. 30-29. License fee.

(a) At the time of filing an original or a renewal application for a license required by this article, the applicant shall pay to the city a license fee of $125.00.

(b) If any application or renewal application is disapproved or if any application is withdrawn before final action thereon is taken by the city clerk, one-half of such payment shall be forfeited to the city as and for the cost of investigating the statements in such application.

(C42, § 58-10; C54, § 7-9; O.6020; C62, § 7-9; O.7584, C62, § 7-4; C75, § 9-32; O.9482; C79, C85, § 9-32; O.11,602; C91, § 9-32)

Sec. 30-30. Suspension or revocation of license.

(a) Whenever the city council finds that the licensee, its employees or agents, has furnished any false information required under this article or has violated or failed to comply with any of the requirements of this article or any other chapter of this Code, the city council may suspend or revoke the license.

(b) No suspension or revocation shall issue except upon notice delivered to the licensee by mailing notice in the regular mail, addressed to the licensee at the licensed premises, a minimum of ten days prior to the date set for hearing before the council. Such notice shall inform the licensee of the time, date and place of the hearing and shall set out briefly the reasons therefor.

(c) If, after such hearing, the city council makes a finding based on substantial evidence that a violation of this article or another chapter of this Code did in fact take place as alleged, the city council may suspend or revoke the license; the determination of whether to suspend or revoke such license shall be in the discretion of the city council and shall be dependent upon the circumstances surrounding the violation and its severity.

(d) A licensee whose license has been revoked shall not be eligible for another such license for a period of 180 days after such revocation.

(C42, § 58-10; C54, § 7-9; O.6020; C62, § 7-9; O.7584; C62, § 7-7; C75, C79, § 9-35; O.10,723; C85, § 9-35; O.11,602; C91, § 9-35)

Sec. 30-31. Effect of license.

If, after investigation, the city clerk concludes that facts exist justifying the license required under this article, the clerk may issue a license on the following terms:

(1) *Licensing period.* The license shall authorize the sale described in the application for a period of not more than 30 consecutive days following the issuance thereof.

(2) *Renewal procedure.* The city clerk may renew the license for three periods of time, only, with each renewal to be for 30 consecutive days running consecutively from the expiration date of the original license, provided the clerk finds as to each such renewal that the licensee has:

a. Filed an application for renewal;

b. Submitted with the application for renewal a revised inventory showing the items listed on the original application remaining unsold as well as like goods received on bona fide trade-ins;

c. Not added to any goods to those listed in the original application except those goods received on bona fide trade-ins;

d. Filed the required renewal license fee, bond and statement signed by a certified public accountant; and

e. Not acted in a manner which would be sufficient basis for suspension or revocation of such license, in which event the council, upon notice and hearing pursuant to the requirements of section 30-30 of this article,

may refuse to renew such license for a period of 180 days from such hearing.

(3) *Nature of sale.* The license shall authorize only the one type of sale described in the application at the premises named therein.

(4) *Saleable goods.* The license shall authorize only the sale of goods described in the inventory attached to the application.

(C42, §§ 58-5, 58-7; C54, C62, §§ 7-7, 7-8; O.7584; C62, § 7-8; O.8752; C75, § 9-36; O.9482; C79, § 9-36; O.10,723; C91, § 9-36)

Sec. 30-32. Duties of licensee.

Under this article, a licensee shall:

(1) *Adhere to inventory.* Make no additions whatsoever, during the period of the licensed sale, to the stock of goods being sold at the sale, other than like goods received by the licensee from a purchaser on a bona fide trade-in upon the sale of the licensee's goods.

(2) *Avoid misleading advertising.* Refrain from employing any untrue, deceptive or misleading advertising. No advertising of such sale shall refer to the previous retail price of any goods being reduced in price as a part of the sale unless identical goods were offered for sale continuously at that retail price during the 90-day period of time immediately prior to the commencement of such sale. Evidence of prior sales shall be available to the city clerk on demand. Any advertising shall state the license number of the sale as issued under this article and the name and address of the person, if any, who has contracted or agreed with the owner of the goods to be sold to conduct or supervise the sale.

(3) *Keep duplicate inventory.* Keep available at the premises a duplicate copy of the list of goods submitted with the application or renewal application and present such duplicate to the city clerk upon request.

(4) *Segregate nonlisted goods.* For a fire or water damage sale, the licensee shall keep goods, if any, which are not included in the sale separate and apart from goods listed in the application as being objects of the sale and shall make such distinction clear to the public by placing tags on either all listed goods or all nonlisted goods apprising the public concerning the status of the goods.

(5) *Display the license.* Post in a prominent place upon the premises where the sale is conducted the license issued under this article.

(6) *Provide interim reports.* During the license period the licensee shall furnish additional information or reports signed by the licensee as the city clerk may reasonably desire or require.

(C42, §§ 58-6, 58-8, 58-11; C54, C62, §§ 7-10 to 7-16; O.7584; C62, § 7-9; O.8752; C75, C79, C85, § 9-37; O.11,602; C91, § 9-37)

Sec. 30-33. Restricted location.

When a person applying for a license under this article operates his or her business from more than one premises, the license issued shall apply only to the one place of business, store, or branch specified in the application, and no other store or branch shall advertise or represent that it is cooperating with it or in any way participating in the licensed sale. The store or branch conducting the licensed sale shall not advertise or represent that any other store or branch is cooperating with it or participating in any way in the licensed sale. Nothing in this section shall prohibit a person from applying for a separate license for each premises operated by him or her.

(C62, § 7-10; O.7584; C75, C79, C91, § 9-38)

Sec. 30-34. Exemptions.

This article shall not apply to or affect the following:

(1) Persons acting pursuant to an order or process of a court of competent jurisdiction.

(2) Persons acting in accordance with their powers and duties as public officials.

(3) Auctioneers selling at auction.

(4) Any newspaper, magazine or other publication or any radio or television station or the officers or employees thereof which publishes or broadcasts in good faith any advertising of sales referred to in this article without actual knowledge from the city council or the city clerk of its false, deceptive, or misleading character or that this article has not been complied with.

(C42, § 58-12; C54, C62, § 7-17; O.7584; C62, § 7-11; C75, C79, C85, § 9-39; O.11,602; C91, § 9-39)

Sec. 30-35. Supplemental general licensing ordinances.

The sections of this article are intended to augment and be in addition to the provisions of the general city licensing ordinances. If this article imposes a greater restriction upon persons, premises, business or practices than is imposed by the general city licensing ordinances, this article shall control.

(C62, § 7-13; O.7584; C75, C79, C91, § 9-40)

Secs. 30-36—30-60. Reserved.

ARTICLE III. CIGARETTE DEALERS AND DEVICE RETAILERS

Sec. 30-61. Compliance with article.

No permit shall be issued under I.C. ch. 453A or 453E, known as the cigarette law and the device retailer law, for engaging in any business referred to in such laws except on full and complete acceptance of the terms of and in strict compliance with this article.

(C42, § 48-1; C54, C62, § 14-1; C75, C79, C91, § 9-42; O.16,411)

Sec. 30-62. Permit required.

No person shall engage in any business referred to in the cigarette law and the device retailer law within the city until a permit is received under this article.

(C42, § 48-1; C54, C62, § 14-1; C75, C79, C91, § 9-43; O.16,411)

Sec. 30-63. Application for permit.

(a) *Required.* Any person desiring to engage in any business referred to in section 30-62 of this article shall sign and swear to an application, from the Iowa Department of Revenue, asking for a permit under this article and expressly promising compliance with this article and acquiescence in terms and provisions of this article.

(b) *Contents.* The application shall state the name of the owner and the exact location of the premises upon which such business is proposed to be conducted, giving the street and number. If the premises are occupied by more than one place of business, the applicant shall state with specificity as to which portion of the premises they are making an application for a permit, the name and address of each person in charge of or to be employed in such place, the date of the initiation of the business, and whether it is proposed to do a wholesale or a retail business therein. One application shall be filed for each location or place of business and sworn to by such person or authorized agent.

(C42, § 48-2; C54, C62, § 14-2; O.8787; C75, § 9-44; O.9351; C79, C91, § 9-44; O.16,411)

Sec. 30-64. Permit fee.

(a) Each applicant for a cigarette permit required under this article shall pay a fee of $100.00 or the pro rata amount provided by I.C. ch. 453A to the city clerk or Iowa Department of Revenue.

(b) If the application is not approved, such payment shall be refunded to the applicant; but if approved, such sum shall be retained by the city and shall be subject to the applicable refund provisions of I.C. ch. 453A.

(c) Each applicant for a device retailer permit required under this article shall pay a fee of $1,500.00 provided by I.C. ch. 453E to the Iowa Department of Revenue and then remitted by the department of revenue to the treasurer of the city.

(C42, § 48-3; C54, C62, § 14-3; C75, C79, C85, § 9-45; O.11,602; C91, § 9-45; O.16,411)

Sec. 30-65. Approval or rejection of permit application.

Approval or rejection of any application for a permit required under this article shall be by resolution of the city council. If approved, the city clerk or the Iowa Department of Revenue on behalf of the city shall issue one permit for each location applied for and approved and shall make the records and certificates and perform the acts required by I.C. ch. 453A, 453E or this article.
(C42, § 48-4; C54, C62, § 14-3; O.8787; C75, C79, C91, § 9-46; O.16,411)

Sec. 30-66. Restrictions on issuance of permit.

A permit may be issued to an applicant for a business described in section 30-61 only if the business is located in a zoning district where such use is permitted, the applicant is a person of good moral character, and the applicant has not been found guilty of a violation of I.C. ch. 453A, 453E or this article.
(C42, § 48-6; C54, C62, § 14-4; C75, C79, C85, § 9-47; O.11,602; C91, § 9-47; O.16,411)

Sec. 30-67. Suspension or revocation of permit.

(a) Any permit issued pursuant to this article may be suspended or revoked or its renewal denied for violation of I.C. ch. 453A, 453E, this article, or any other chapter of this Code.

(b) No such suspension, revocation or denial shall issue except upon notice delivered to the permittee by mailing notice in the regular mail addressed to the permittee at the premises covered by such permit a minimum of ten days prior to the date set for hearing before the council. Such notice shall inform the permittee of the time, date and place of the hearing and shall set out briefly the reasons therefor.

(c) If, after such hearing, the city council makes a finding based on substantial evidence that a violation of this article or another chapter of this Code did in fact take place as alleged, the city council may suspend or revoke the permit or deny its renewal; the determination of whether to so suspend, revoke or deny such permit shall be in the discretion of the city council and shall be dependent upon the circumstances surrounding the violation and its severity.

(d) A permittee whose permit has been revoked or its renewal denied shall not be eligible for another such permit for a period of one year after such revocation.
(C79, § 9-47.01; O.10,723; C85, § 9-47.01; O.11,602; C91, § 9-47.01; O.16,411)

Sec. 30-68. Duration of permits; separate permit required for each place of business.

Permits issued under this article shall extend to June 30 in each year next following issuance. They shall be effective only to June 30 next after being issued and shall then become void unless the holder shall pay and secure receipts for the annual permit fee on or before June 30. One permit shall be so secured and kept effective and valid, for each location in which any such business is done or contemplated, before the business may be engaged in at such location.
(C42, § 48-5; C54, C62, § 14-5; C75, C79, C91, § 9-48; O.16,411)

Secs. 30-69—30-95. Reserved.

ARTICLE IV. COIN-OPERATED VENDING MACHINES

Sec. 30-96. Unattended machines.

All business establishments that operate without personnel in continuing attendance and that provide a service or product from or through one or more coin-operated vending machines must ensure that a visible serial number is displayed on each such machine, and each such establishment must have visibly displayed the name, address and telephone number of a person who shall be reasonably available to make refund or adjustment if one or more of the machines fail to operate or malfunction.
(C79, § 9-53.01; O.10,512; C91, § 9-53.01)

ARTICLE IV(A). DONATION BINS

Sec. 30-97. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Donation bin. An unattended portable receptacle or container held out to the public as a place for people to donate clothing and textiles for the distribution, resale, or recycling thereof.

Property owner. The owner and tenant, collectively, of the real estate upon which a donation bin is located.

Operator. The person or entity which owns the donation bin and is responsible for collecting and processing all donations from the donation bin.

Premises. The real estate parcel upon which the donation bin is located or proposed to be located.
(O.16,303)

Sec. 30-98. Permits required.

(a) Before offering a donation bin in the city, the operator shall obtain an annual permit for each donation bin from the city clerk as provided in this article.

(b) Said annual donation bin permit shall be tied to the premises and shall allow the operation of the donation bin for 365 consecutive days.

(c) Failure to obtain the annual permit for each donation bin required herein shall result in enforcement action pursuant to this article.
(O.16,303)

Sec. 30-99. Application for permits—All applicants.

A. A separate online application shall be required for each donation bin.

B. Every operator shall apply to the city clerk for a donation bin permit at least 30 business days prior to use by providing the following information upon a form to be provided by the city clerk, and must demonstrate to the satisfaction of the city clerk and the zoning enforcement officer that the premises meet the following requirements:

(1) The full name, organization or business name, address, email, and phone number of the operator of the donation bin.

(2) Written consent of the property owner for the donation bin to be placed on the premises.

(3) Written consent from any other party who has a property interest in the portion of the premises in which the donation bin is proposed to be placed.

(4) Written consent of the property owner authorizing the city to remove the donation bin, its contents, and donations surrounding the donation bin, if any, from the premises in the event said donation bin has not complied with this article.

(5) Site plan drawn to scale on 8.5" × 11" sheet format minimum identifying:

i. The premises,

ii. The area size and location within the premises of the proposed donation bin(s),

iii. The zoning district of the premises,

iv. The overall property lines, including the distance from all public right-of-way, ingress and egress locations, parking areas, and buildings on the premises,

v. The number of parking spaces that will be removed by the placement of the donation bin, if any, and

vi. the number of parking spaces that will remain available for parking after installation of the donation bin.

(6) A written statement from the operator affirming the clothing and textile donations collected in the donation bin will be used for distribution, resale, recycling, or a combination thereof.

(7) A written statement from the operator instructing how the public will go about receiving a tax deduction for their donation, if applicable.

(8) A description of the donation bin, including but not limited to:

a. The size of the donation bin,

b. The material of the donation bin, and

c. A brief explanation as to how the public would interface with and operate the donation bin to complete their donation.

(9) An elevation sketch displaying all sides of the donation bin, including all design elements, including instructions to the public as to how to use the donation bin and how to pursue a tax deduction for their donation, if applicable.

(O.16,303)

Sec. 30-100. Indemnification.

In addition to any terms and conditions negotiated between the city and the operator and property owner, upon signing the application for a donation bin permit under this article, the operator and property shall both be deemed to have agreed to hold the city harmless from and indemnified against all damages arising from the placement, use, maintenance, or repair of the donation bin.
(O.16,303)

Sec. 30-101. Insurance.

Before granting a donation bin permit under this article, the city may require liability insurance in an amount satisfactory to the city and sufficient to hold the city harmless from and indemnified against all damages arising from or growing out of the placement, use, maintenance, or repair of the donation bin, when the city has determined that such insurance is required by the public interest.
(O.16,303)

Sec. 30-102. Cash bond.

(a) No donation bin permit shall be issued until the applicant has delivered to the city clerk a cash bond as set out in the schedule of fees. The bond shall be held to indemnify and pay the city any penalties or costs incurred in the enforcement of any of the sections of this article.

(b) The balance of the bond shall be released by the city clerk and returned to the applicant upon request by the applicant at any time more than three months after expiration of the donation bin permit for which the cash bond was provided.
(O.16,303)

Sec. 30-103. Permit fee.

(a) The applicant for a donation bin permit shall pay a fee at the time of filing the application in the amount set in the schedule of fees adopted by city council by resolution.

(b) In the event the application for a donation bin permit is denied or withdrawn by the applicant, either all or a portion of the permit fee in an amount set in the schedule of fees adopted by the city council shall be retained by the city to defray the administrative costs incurred.
(O.16,303)

Sec. 30-104. Permit issuance.

(a) A donation bin permit shall be denied to any applicant who has been the subject of an enforcement action or whose property has been the subject of an enforcement action for violating any section of this Code within the prior 90 days.

(b) Following review of the application by the zoning enforcement officer, the city clerk or the city clerk's designee shall, upon satisfaction that the information provided in an application for a donation bin permit is true and correct, and that the requirements of this article for issuance of the permit have been satisfied, and upon payment of the permit fee and posting of a cash bond, if required by this article, issue the permit.

(c) Said issuance of donation bin permit or a denial of such request shall be completed within 15 calendar days of applicant's completed application.

(d) The city clerk shall deny any application for the operation of a donation bin permit that does not conform with all applicable requirements of this article, this Code, the Iowa Code and the Iowa Administrative Code.
(O.16,303)

Sec. 30-105. Appeal of denial of application.

(a) The denial of an application for donation bin permit may be appealed pursuant to the administrative appeal process set forth in chapter 3 of this Code.

(b) In the event an application for a donation bin permit is denied, the city clerk or the city clerk's designee shall cause notice of such denial to be promptly communicated to the applicant or the applicant's representative by phone at the phone number provided in the application. Written notice shall also be sent by first class mail to the applicant at the business address identified in the application informing the applicant of the denial, the reasons therefore, and the applicant's right to appeal the denial to an administrative hearing officer by filing a written notice of appeal with the city clerk within ten business days after the date of such notice.
(O.16,303)

Sec. 30-106. Location and size of donation bins.

(a) The number of donation bins should not exceed one bin for sites five acres or less, and the number of donation bins should not exceed two bins for sites over five acres.

(b) All donation bins shall be placed on an improved, paved, durable and drainable surface. If placed in a parking area, the donation bin shall not reduce the number of available parking spaces below the minimum required for the premises.

(c) Donation bins shall only be allowed within the P1 and P2 zoning districts intended for public, civic and institutional principal uses, and shall only be allowed within parcels that have a permitted primary use.

(d) The donation bin may not exceed a total area of 25 square feet, which shall be limited to eight feet in height and 200 cubic feet in volume.

(e) Donation bins may not be placed within public right-of-way, any drive aisle, required parking or loading spaces, fire lanes, walkways or any other location which would impede vehicular or pedestrian travel, including Americans with Disabilities Act compliance, as determined by the city in the city's sole discretion.

(f) The donation bin may only be placed within a paved area of the premises.

(g) The proposed location of the donation bin must be setback at least 20 feet from all public right-of-way and must be setback at least ten feet from all adjoining property lines.
(O.16,303)

Sec. 30-107. Restrictions on operations of donation bins.

(a) All donation bins shall be limited to only the collection of clothing and textiles.

(b) All donation bins are strictly prohibited from collecting hazardous materials as regulated by the department of natural resources.

(c) All donation bins shall clearly display a message indicating that no donated items, garage, or other debris are to be left outside of the donation bin, which message shall be a minimum of 1' × 1.5' area in size.

(d) All donation bins shall clearly display the name, address, telephone number, and email address for the operator, which message shall be a minimum of 1' × 1.5' area in size.

(e) The operator shall be responsible for the installation, maintenance, emptying of, monitoring of, repair, and compliance of the donation bin with all provisions of this article.

(f) In the event of removal of a donation bin, the operator shall also be responsible for removing all donations surrounding the donation bin.

(g) Private property owners shall not allow, permit or authorize any person or entity to place or operate a donation bin on their premises without donation bin permit required by this article.

(h) Private property owners or lessees shall not allow, permit, or authorize the use of any property within the control of the private property owner or lessee in violation of any of the sections of this article.

(i) Operators shall not operate the donation bin in a manner that violates the Noise Control Ordinance of the City of Des Moines set forth in article IV of Chapter 42 of this Code.

(j) All donation bins shall be made of metal, steel or other durable material acceptable to the city in the city's sole discretion.

(k) All donation bins shall be enclosed by the use of a one-way drop off mechanism and lockable, both so the contents may not be accessed by anyone other than the operator.
(O.16,303)

Sec. 30-108. Transferability of permit.

Donation bin permits issued under this article are transferable and shall not be assigned by any operator or property owner.
(O.16,303)

Sec. 30-109. Renewal of permit.

Annual donation bin permits may be renewed for the same period so long as there have been no violations of this article, upon payment of the fee required by section 30-103 of this article and upon posting of the cash bond required by section 30-102 of this article.
(O.16,303)

Sec. 30-110. Suspension or revocation of permit.

(a) Upon complaint or reasonable suspicion that a permit holder or the permit holder's employees or agents furnished any false information required under this article or has violated or failed to comply with any of the requirements of this article or any other chapter of this Code, the city clerk or the city clerk's designee may cause the matter to be investigated. If the city clerk or the city clerk's designee finds that the permit holder or the permit holder's employees or agents furnished any false information required under this article or has violated or failed to comply with any of the requirements of this article or any other chapter of this Code, the city clerk or the city clerk's designee may give notice to the permit holder of the city's intent to suspend or revoke the permit, or to deny its renewal.

(b) Notice of the city's intent to suspend, revoke, or deny the renewal of a permit and a brief summary of the factual basis for such remedial action shall be served upon the permit holder. Such notice shall inform the permit holder of the time, date and place of a meeting where the permit holder may meet with the city clerk or the city clerk's designee for the purpose of presenting additional information regarding the intended remedial action and the factual basis therefore, and that a final decision on appropriate remedial action will made after the schedule time for such meeting. Such notice shall be served upon the permit holder by personal service or by service upon a cashier, 18 years of age or older, for the business where business is conducted, or by regular mail addressed to the permit holder at the permit holder's business address as shown on the application a minimum of five business days prior to the date set for the meeting.

(c) If, after the scheduled meeting and after consideration of all the available information including any information provided at the meeting by the permit holder, the city clerk or the city clerk's designee makes a finding based on substantial evidence that a violation of this article or another chapter of this Code did in fact take place as alleged, the city clerk or the city clerk's designee may suspend or revoke the permit or deny its renewal; the determination of whether to so suspend or revoke the permit or deny its renewal shall be in the discretion of the city clerk or the city clerk's designee and shall be dependent upon the circumstances surrounding the violation and its severity. The decision to suspend, revoke or deny renewal of a permit shall be in writing and shall identify the basis for such action. The decision shall be promptly served in the same manner as required for the service of the notice required under subsection (b), and shall not be effective until ten days after so served. The decision shall also give notice that it may be appealed to an administrative hearing officer by filing a notice of appeal with the city clerk within ten business days of the date of the decision.

(d) The decision of the city clerk or the city clerk's designee to suspend, revoke or deny renewal of a permit pursuant to this section may be appealed pursuant to the administrative appeal process set forth in chapter 3 of this Code.

(e) A permit holder whose permit has been revoked or denied for renewal shall not be eligible for a permit under this article for a period of 180 days after such revocation or denial of renewal.
(O.16,303)

Sec. 30-111. Duty for the operation, maintenance, and repair.

(a) Donation bins shall be repaired and maintained to the appearance consistent with what was approved by the city in the application for the donation bin permit.

(b) The operator shall be responsible for emptying their donation bins in a timely manner to avoid the accumulation donations surrounding the donation bins.

(c) The operator shall be responsible for maintaining and repairing the donation bins, including but not limited to any damage caused by third parties.

(d) The city shall not be required to incur any cost associated with the donation bins.
(O.16,303)

Sec. 30-112. Failure to secure or renew donation bin permit.

(a) Any person failing to secure a permit required under this article shall cause the subject donation bins to be removed within 15 calendar days of the city's mailing of written notice.

(b) Any donation bin permit not renewed on or before its date of expiration shall automatically expire, and the donation bin(s) used or maintained thereunder shall immediately be removed by the operator without further notice from the city within 15 calendar days of the city's mailing of written notice.

(c) Any donation bin permit issued pursuant to this article which has expired may be reinstated by payment of the required fee plus an administrative charge of ten percent for each month or part thereof for which the fee is overdue, up to a maximum of 100 percent of the original fee.
(O.16,303)

Sec. 30-113. Removal of donation bins.

(a) Whenever the city has revoked a donation bin permit required under this article or the donation bin permit has expired, the operator or property owner shall cause the donation bin(s) to be removed immediately as well as any donations and debris accumulated and surrounding the donation bins, if any.
(O.16,303)

Sec. 30-114. Municipal infractions and penalties.

(a) Any person who violates this article shall be guilty of a municipal infraction punishable pursuant to Municipal Code section 1-15. Any person who violates a section of this article after having previously been found guilty of violating the same section of this article shall be guilty of a repeat offense.

(b) Relief under this section shall be in addition to the remedies set forth in section 30-110.
(O.16,303)

Sec. 30-115. Violation constitutes a public nuisance.

(a) Every violation of this article, for which removal of the donation bin is required shall also constitute a public nuisance subject to abatement and enforcement pursuant to the procedures set forth in article VI of chapter 42 of this Code.

(b) The processes set forth in this article are not exclusive remedies for the city and alternate relief may be sought pursuant to any other sections of this Code or Iowa law that may be applicable.
(O.16,303)

Secs. 30-116—30-125. Reserved.

ARTICLE V. OUTDOOR PARKING LOTS*

Sec. 30-126. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings

*__Cross reference—__Stopping, standing and parking generally, § 114-354.01 et seq.

ascribed to them in this section, except where the context clearly indicates a different meaning:

Outdoor motor vehicle parking space means any plot or parcel of land within the corporate limits used or to be used by any owner or lessee thereof for the parking or storage of motor vehicles for which a fee is charged, or which is used or to be used for the sale of motor vehicles by a dealer, except a garage or other building totally enclosed on all sides by walls and doors or windows and covered by a roof. The term shall include areas used for ingress to and egress from actual parking or storage spaces or sale lots.

Surface means any portion of an outdoor motor vehicle parking place used or to be used for the actual parking, storage or sale of motor vehicles or for ingress to or egress from the place of actual parking, storage or sale.
(C42, § 20-1.01; O.5392; C54, C62, § 33-1; C75, C79, C91, § 9-72)

Cross reference—Definitions generally, § 1-2.

Sec. 30-127. Surface treatment.

No person shall operate or be concerned with the operation of any outdoor motor vehicle parking space unless the surface of such space shall first have been covered with concrete to a depth of at least six inches or with plant-mixed asphalt to a depth of at least two inches laid upon stone bracing of not less than three inches in depth or unless the surface shall be covered with a quantity of calcium chloride, emulsified asphalt solution or other dust-preventive substance approved by the department of natural resources sufficient to prevent the accumulation and blowing of dust or dirt upon or from the surface. Any person operating or concerned with the operation of any outdoor motor vehicle parking space described in this section, which is not covered with concrete to a depth of at least six inches or asphalt to a depth of at least two inches laid upon stone bracing of not less than three inches in thickness, shall renew the dust-preventive covering on the surface of that space as often as shall be necessary to prevent the accumulation and blowing of dust upon and from it. In spaces on which road oil is used, this shall be construed to require thorough covering of the surface with such oil at least once every four months.
(C42, § 20-1.02; O.5392; C54, C62, § 33-2; C75, C79, C91, § 9-73)

Sec. 30-128. Dust, dirt or debris.

No person operating or concerned with the operation of an outdoor motor vehicle parking space in the city shall permit dust, dirt or other debris to accumulate upon the surface of that space or to blow from such surface.
(C42, §§ 20-1.04, 20-1.03; O.5392; C54, C62, § 33-3; C75, C79, C91, § 9-74)

Sec. 30-129. Unattended motor vehicles.

No person operating or concerned with the operation of any outdoor motor vehicle parking space shall permit a motor vehicle to be parked therein without locking the ignition and removing the key, unless there is an attendant on duty.
(C54, § 33-4; O.5716; C62, § 33-4; C75, C79, C91, § 9-75)

Secs. 30-130—30-155. Reserved.

ARTICLE VI. PAINTING HOUSE NUMBERS ON CURBING*

Sec. 30-156. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Painter means a person who engages in the business of painting house numbers on curbs in public right-of-way.
(C79, § 9-75.01; O.9995; C91, § 9-75.01)

Cross reference—Definitions generally, § 1-2.

Sec. 30-157. License required.

Before soliciting an agreement to paint house numbers on a curb for a fee, a painter shall

*__Cross references—__Buildings and building regulations, ch. 26; numbering of buildings, § 102-961 et seq.

obtain from the city clerk a license as described in this article. The license shall be for the use of that person only and shall be nontransferable.
(C79, § 9-75.02; O.9995; C91, § 9-75.02)

Sec. 30-158. Duration of license.

The license required by this article shall be effective from January 1 through December 31 of the given year.
(C79, § 9-75.03; O.9995; C85, § 9-75.03; O.11,602; C91, § 9-75.03)

Sec. 30-159. Application and issuance of license.

An application shall be filed with the city clerk for a license required under this article. The city clerk shall issue such license if the requirements of this article are met.
(C79, § 9-75.04; O.9995; C91, § 9-75.04, 15,768)

Sec. 30-160. Information in license application.

The application for a license required under this article shall include the following:

(1) The name of the person applying.

(2) The address of that person. If the person making application has a temporary address, the person's permanent home address is also required.

(3) A copy of the applicant's state issued identification card or driver's license.

(4) The applicant's telephone number and e-mail address.

(5) A copy of the advertising, if any, which the painter will use in promoting the curb painting service.

(C79, § 9-75.05; O.9995; C91, § 9-75.05; O.14,803, 15,768)

Sec. 30-161. License fees.

(a) An applicant for a house number painting license shall submit a fee to the city clerk at the time of filing the application.

(b) If the application is denied or if the application is withdrawn before final action is taken by the city clerk, a portion of the application fee shall be retained by the city clerk for the cost of administration.

(c) The license fee and its nonrefundable portion for a housing number painting license shall be in the amounts set in the schedule of fees adopted by the city council by resolution.
(C79, § 9-75.06; O.9995; C85, § 9-75.06; O.11,548; C91, § 9-75.06; O.14,183)

Sec. 30-162. Conditions of license.

The license issued pursuant to this article shall have the following conditions:

(1) A painter must enter into a verbal agreement with the owner or a representative of the owner of the driveway, which abuts the curb to be painted, before painting is commenced.

(2) The painter must exhibit a current license to such owner or the owner's representative before negotiating such verbal agreement.

(3) Employees of the painter must be licensed pursuant to this article.

(4) Employees of the painter must work under the direct supervision of the painter when painting house numbers on curbs.

(5) Advertising used, if any, by the painter to promote the curb painting service shall not directly or indirectly state that the City of Des Moines recommends, promotes, requires or sponsors any curb painting. A reference that the painter has a curb painting license is allowed.

(C79, § 9-75.07; O.9995, 10,723; C91, § 9-75.07; O.14,803, 16,528)

Sec. 30-163. Suspension or revocation of license.

Any license issued pursuant to this article may be suspended or revoked or its renewal denied for violation of this article or any other

chapter of this Code, and the procedures for such suspension, revocation or denial shall be those contained in section 30-30 of this chapter.
(C79, § 9-75.08; O.9995, 10,723; C85, § 9-75.08; O.11,602; C91, § 9-75.08)

Secs. 30-164—30-190. Reserved.

ARTICLE VII. PROFESSIONAL BONDSMEN

Sec. 30-191. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings

ascribed to them in this section, except where the context clearly indicates a different meaning:

Bondsman means any person signing as a surety on a bail, surety or other bond which is filed with the associate district court clerk, or any person engaged in and soliciting bond business for such surety. This definition shall not be deemed to apply to pretrial release personnel.
(C42, § 47-1; C54, C62, § 41-1; C75, C79, C85, § 9-111; O.11,602; C91, § 9-111)

Cross reference—Definitions generally, § 1-2.

Sec. 30-192. Solicitation by city employees.

No city employee shall solicit business, either directly or indirectly, for any bondsman.
(C42, § 47-4; C54, C62, § 41-4; C75, C79, C91, § 9-114)

Sec. 30-193. Entering jail to solicit.

No person shall enter or be permitted to enter into the city jail for the purpose of soliciting bail bond business.
(C42, § 47-5; C54, C62, § 41-5; C75, C79, C91, § 9-115)

Secs. 30-194—30-220. Reserved.

ARTICLE VIII. SECONDHAND GOODS

DIVISION 1. GENERALLY

Secs. 30-221—30-245. Reserved.

DIVISION 2. SALVAGE DEALERS AND SALVAGE YARDS

Sec. 30-246. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Inoperable vehicle means any motor vehicle that lacks a current registration or component part which renders the vehicle totally unfit for legal use.

Junk means all old or scrap copper, brass, lead, or any other nonferrous metal; old rope, rags, batteries, paper, trash, rubber debris, waste, used lumber or salvaged wood; dismantled or inoperable vehicles, machinery and appliances or parts of such vehicles, machinery or appliances; iron, steel, or other old or scrap ferrous material; old discarded glass, tinware, plastic, or old discarded household goods or hardware.

Junkyard means any place not fully enclosed in a building, excluding a salvage yard, which is used in whole or in part for the storage or deposit of junk encompassing either of the following:

(1) An area of 200 square feet or more; or

(2) Two or more inoperable vehicles or used parts and materials thereof which, taken together, equal the bulk of two or more motor vehicles.

Salvage dealer means any person who buys, sells, transfers, delivers, or stores junk, including all persons who carry on such business at a shop, a salvage yard or as a peddler, and any person who by advertisement, sign or otherwise holds himself or herself out as a salvage dealer, or dealer in old or discarded metals, machinery, rags, paper stock, and the like.

Salvage yard means any place not fully enclosed within a building where a salvage dealer, in connection with the salvage dealer business, stores or deposits junk encompassing either of the following:

(1) An area of 200 square feet or more; or

(2) Two or more inoperable vehicles or used parts and materials thereof which, taken together, equal the bulk of two or more motor vehicles.

(C42, § 54-1; C54, C62, § 26-1; O.8838; C75, C79, § 9-54; O.10,205; C85, § 9-54; O.11,147; C91, § 9-54)

Cross reference—Definitions generally, § 1-2.

Sec. 30-247. License required.

No person shall carry on the business of salvage dealer in the city without first paying the license fee and procuring a salvage dealer's license.
(C42, § 54-1; C54, C62, § 26-2; O.8838; C62, § 26-3; C75, C79, § 9-56; O.10,205; C79, C91, § 9-55)

Sec. 30-248. License fee.

(a) An applicant for a salvage dealer license shall submit a fee to the city clerk at the time of filing the application.

(b) An applicant who files for renewal less than 30 days prior to the date of license expiration shall pay a late fee.

(c) If the application is denied or if the application is withdrawn before final action is taken by the city clerk, a portion of the application fee shall be retained by the city clerk for the cost of administration.

(d) The license fee and its nonrefundable portion for a salvage dealer license shall be in the amounts set in the schedule of fees adopted by the city council by resolution.
(C42, § 54-2; C54, § 26-3; O.6029; C62, § 26-3; O.8838; C62, § 26-4; C75, § 9-57; O.9140; C79, § 9-57; O.9910, 9925, 10,205; C79, C91, § 9-56; O.14,183)

Sec. 30-249. Duration of license.

All salvage dealers' licenses granted under this division shall expire on June 30 next after they are issued.
(C42, § 54-2; C54, C62, § 26-4; O.8838; C62, § 26-6; C75, C79, § 9-59; O.10,205; C79, C85, § 9-57; O.11,602; C91, § 9-57)

Sec. 30-250. Application for license.

Application for a salvage dealer's license under this division shall be made in writing by regular mail to the city clerk at least 30 days prior to the date of issuance of such license. Upon such application the city clerk shall request the building, zoning and fire departments to inspect the premises for which the applicant seeks a license and, if the premises comply with applicable statutes and ordinances, the building, zoning and fire departments shall notify the city clerk before the date for the issuance of the license.
(C62, § 26-7; O.8838; C75, C79, § 9-60; O.9910, 10,205; C79, C91, § 9-58; O.14,183, 15,935)

Sec. 30-251. Issuance and contents of license.

Upon receiving the license fee and the notification of compliance as required by this division, the city clerk shall issue a license to the applicant which shall state the name of the business, the address of the premises covered by the license, the date when issued, and the date when it will expire.
(C42, § 54-3; C54, C62, § 26-5; O.8838; C62, § 26-8; C75, C79, § 9-61; O.10,205; C79, C91, § 9-59; O.15,935)

Sec. 30-252. Numbering of licenses and retention of stub.

All licenses issued under this division will be numbered, and the city clerk shall keep a copy of the license on file.
(C42, § 54-3; C54, C62, § 26-6; O.8838; C62, § 26-9; C75, C79, § 9-62; O.10,205; C79, C91, § 9-60; O.15,935)

Sec. 30-253. License for each place of business.

Any person conducting several or separate places of business as a salvage dealer shall pay the license fee and procure a license for each such place. The license for the premises shall be conspicuously displayed at the premises.
(C42, § 54-4; C54, C62, § 26-7; O.8838; C62, § 26-10; C75, C79, § 9-63; O.10,205; C79, C91, § 9-61)

Sec. 30-254. Records.

(a) Each salvage dealer shall keep complete, accurate, and legible records in the English language of all purchases and receipt of all junk, such records to include the following:

(1) The identity of the person from whom received or purchased. Including:

a. Name and address,

b. Date of birth,

c. Iowa drivers license number or Iowa identification number, or social security number with photo identification indicating the type of photo identification provided,

d. Sex,

e. Age, and

f. Height.

(2) The vehicle license plate number of the vehicle that delivered the junk material.

(3) The date and hour of the purchase or receipt of the junk material.

(4) A reasonably accurate inventory and description of the junk obtained.

(5) The value or amount paid for the junk material.

(6) The weight or other quantity of junk obtained.

(7) From whom and at what time and place the junk was obtained by the person from whom it was bought or received.

(8) The date and manner of disposition of the junk by each article or in bulk by the salvage dealer.

(9) The name and address of the person to whom the junk was sold or otherwise disposed.

(10) Catalytic converter purchases and receipts shall be recorded and kept per the requirements of I.C. § 714.27.

(b) Such records shall be maintained and located at the business for at least one year from the date of purchase and may be maintained by entering such purchases or receipts into an automated web-based system utilized by the police department.

(C42, § 54-6; C54, C62, § 26-10; O.8838; C62, § 26-11; C75, C79, § 9-64; O.10,205; C79, C85, § 9-62; O.11,602; C91, § 9-62; O.14,676, 15,935)

Sec. 30-255. Examination of premises and records.

It shall be unlawful for any salvage dealer or any other person to refuse, resist, or attempt to prevent any city employee or any authorized city agent from making a reasonable examination of the area in which junk is stored or deposited or the records required by section 30-254 of this division.

(C42, § 54-8; C54, C62, § 26-16; O.8838; C62, § 26-12; C75, C79, § 9-65; O.10,205; C79, C91, § 9-63)

Sec. 30-256. Segregation of specific items.

Upon order of the chief of police or his or her designated representative, each salvage dealer shall segregate specific items or categories of items and hold such items until authorized to dispose of the items by the police department. The holding period shall be a reasonable time and shall not exceed 45 days. However, no inoperable motor vehicle shall be disposed of, dismantled, or destroyed until after seven days of receipt of such vehicle.

(C62, § 26-13; O.8838; C75, C79, § 9-66; O.10,205; C79, C85, § 9-64; O.11,602; C91, § 9-64)

Sec. 30-257. Concealing articles to prevent identification.

No salvage dealer shall conceal, secrete or destroy any article purchased or received by him or her to prevent identification thereof by law enforcement officers or any person claiming the article.

(C42, § 54-8; C54, C62, § 26-15; O.8838; C62, § 26-14; C75, C79, § 9-67; O.10,205; C79, C91, § 9-65)

Sec. 30-258. Disposing of stolen goods or goods for which there is adverse claim.

No salvage dealer shall sell, melt, break up, or otherwise dispose of any article which he or she has reason to believe has been stolen or which is adversely claimed by any person or which he or she has been notified not to sell or otherwise dispose of by any law enforcement officer, without first obtaining a permit in writing from the police department.

(C42, § 54-8; C54, C62, § 26-17; O.8838; C62, § 26-15; C75, C79, § 9-68; O.10,205; C79, C91, § 9-66)

Sec. 30-259. Effect of division on clerks, agents and employees.

Every clerk, agent or employee of any salvage dealer shall be subject to and bound by all the sections of this division and liable to the same penalties and to the same extent as his or her employer or principal for any violation of this division.
(C42, § 54-4; C54, C62, § 26-8; O.8838; C62, § 26-16; C75, C79, § 9-69; O.10,205; C79, C91, § 9-67)

Sec. 30-260. Conditions subject to abatement; penalties.

(a) If any salvage yard or junkyard is kept or operated in a way detrimental to the health and welfare of the public to the extent that a public or private nuisance exists or is kept or operated contrary to this division or if any salvage dealer fails to comply with the licensing sections of this division, the city shall notify in writing the owner of the land upon which such salvage yard or junkyard is kept or operated and, where applicable, the operator thereof of the detrimental or violative conditions, permitting a reasonable time, not less than ten days, to correct such conditions or violations. If the owner or operator fails to correct such conditions or to comply with this division within such time, the city may seek abatement of the nuisance or bring an action enjoining the violation. The abatement of a nuisance shall be considered of benefit to the owner of the land, and the costs of such corrective action shall be chargeable to the owner and, if not paid, shall constitute a lien upon the premises and shall be assessed in the manner of a special assessment and collected in the same manner as general taxes as is provided by law. The remedies provided in this section shall be in addition to the fines or penalties provided for in section 1-15 of this Code.

(b) Any person who fails to perform an act required by this division or who commits an act prohibited by this division shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.
(C62, § 26-17; O.8838; C75, C79, § 9-70; O.10,205; C79, C91, § 9-68; O.15,608)

Sec. 30-261. Suspension or revocation of license.

(a) Any license issued pursuant to this division may be suspended or revoked or its renewal denied for violation of this division or any other chapter of this Code. No such suspension, revocation or denial shall issue except upon notice delivered to the licensee by mailing the notice in the regular mail addressed to the licensee at the licensed premises a minimum of ten days prior to the date set for informal hearing before the chief of police or chief's designee or the community development department director or designee. Such notice shall inform the licensee of the time, date and place of informal hearing; the purpose of the hearing; and shall set out briefly the reasons therefor.

(b) If, after such informal hearing, the chief of police or chief's designee or the community development department director or designee makes a finding based on substantial evidence that a violation of this division or another chapter of this Code did in fact take place as alleged, the chief of police or chief's designee or the community development department director or designee may suspend or revoke the license or deny its renewal depending upon the circumstances surrounding the violation and its severity. Upon a suspension, revocation, or denial of renewal, the city clerk shall be notified of such action.

(c) The decision to suspend, revoke, or deny renewal of the license is appealable pursuant to chapter 3 of this Code.

(d) A licensee whose license has been revoked or its renewal denied shall not be eligible for another such license for a period of 180 days after such revocation or denial.
(C79, § 9-68.01; O.10,723; C91, § 9-68.01; O.14,676, 15,935)

Secs. 30-262—30-290. Reserved.

DIVISION 3. PAWNBROKERS

Sec. 30-291. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings

ascribed to them in this section, except where the context clearly indicates a different meaning:

Automated pawn/secondhand records system means the records system utilized by the police department to track pawn and/or secondhand goods transactions by pawnbrokers and/or secondhand goods dealers.

Negative police report means a review compiled by the chief of police or his or her designee which discloses a criminal record of a felony or any conviction under this division two or more times in a calendar year or a conviction under I.C. ch. 714 or failure to have a computer that has internet access and the capability to utilize the automated pawn/secondhand records system.

Negative zoning enforcement officer report means a review compiled by the zoning enforcement officer or his or her designee which discloses non-compliance with zoning requirements contained in the Des Moines Municipal Code.

Pawnbroker means every person who makes loans or advancements upon pawn, pledge or deposit of personal property or who receives actual possession of personal property as security for loans, with or without a mortgage or bill of sale thereon, or who by advertisement, sign or otherwise holds himself or herself out as a pawnbroker.

Positive police report means a review compiled by the chief of police or his or her designee which does not disclose a criminal record of a felony or any conviction under this division two or more times, in a calendar year, or a conviction under I.C. ch. 714.

(C42, §§ 56-1, 56-4; C54, C62, §§ 35-2, 35-6; C75, C79, C85, § 9-76; O.11,253; C91, § 9-76; O.14,911, 14,979, 15,819, 15,935)

Cross reference—Definitions generally, § 1-2.

Sec. 30-292. License required.

(a) No person shall engage in the pawn business without first obtaining a pawnbroker license.

(b) All applicants for such licenses shall apply to the city clerk.

(c) All license applications shall contain the following information:

(1) The full name, residential address, business address, a copy of the state issued identification card or driver's license for the applicant and, where the applicant is a corporation or partnership, for each officer or partner;

(2) The name and address of the owner of the business' premises;

(3) The business, occupation or employment of the applicant, including location thereof, for the two years immediately preceding the date of application; and

(4) A copy of the criminal history background check for the applicant and, where the applicant is a corporation or partnership, for each officer or partner.

(5) Whether the applicant has a computer that can access the internet and utilize the automated pawn records system.

(C42, § 56-1; C54, C62, § 35-1; C75, C79, C85, § 9-77; O.11,253; C91, § 9-77; O.14,911, 15,768)

Sec. 30-293. License criteria.

Upon receipt of a pawnbroker license application, the city clerk shall forward a copy of the application to the chief of police and the zoning enforcement officer or their designees who shall review the application. The applicant shall furnish such evidence as may reasonably be required in support of the statements set forth in the application. The chief of police and the zoning enforcement officer or their designees shall report to the city clerk within 30 days of receipt of the application considering but not limited to the criteria of whether:

(1) The applicant or his or her agent or employee charged with receiving or distributing property has been convicted of a felony. However, if the conviction of a felony occurred more than five years before the application for a pawnbroker license and if such person's rights of citizenship have been restored by the governor, such conviction shall not be a bar to obtaining a pawnbroker license;

(2) The applicant has truthfully reported all relevant facts within the pawnbroker application;

(3) The applicant has such financial standing and good reputation to indicate that he or she will comply with all the laws of the state and the city; and

(4) The applicant has a computer and internet access at the licensed premises that can utilize the police pawn/secondhand transaction website and automated pawn/secondhand records system.

(5) The pawnbroker's business complies with zoning requirements contained in chapter 134 and all relevant site plan regulations and guidelines contained in chapter 82 of the Des Moines Municipal Code.

(C42, § 56-2; C54, C62, § 35-7; O.8462; C75, § 9-78; O.9140; C79, C85, § 9-78; O.11,253; C91, § 9-78; O.14,911, 14,979, 15,819, 15,935)

Sec. 30-294. License issuance.

(a) Upon receipt of a positive police report, positive zoning report and the appropriate fees, the city clerk shall approve the application if the applicant has fully complied with all of the requirements of this division, and the city clerk shall thereupon issue a pawnbroker license to the applicant and keep a copy on file. The license shall expire on December 31 next after the date of issuance. The license shall state the name of the business licensed, and the place where it is to be carried on, and the date of issuance and expiration of the license.

(b) If the city clerk determines that the applicant for a new or renewal license has not fully complied with all of the requirements of this division or that a negative police report is returned, or a negative zoning report is returned or that the applicant has falsified his or her application, the city clerk shall, advise the community development department and the chief of police of the basis for questioning the applicant's qualifications, and the procedures for notice and hearing as set forth in section 30-300 of this division shall apply.

(C42, § 56-3; C54, C62, § 35-3; C75, C79, C85, § 9-79; O.11,253; C91, § 9-79; O.15,768, 15,935)

Sec. 30-295. License fee.

An applicant for a pawnbroker license shall submit a fee to the city clerk at the time of filing the application. The license fee shall be reduced by 25 percent if the application is filed during the second quarter of the calendar year, 50 percent if the application is filed during the third quarter of the calendar year, and 75 percent if the application is filed during the last quarter of the calendar year. If the application is denied, $50.00 of the total fee shall be retained to cover administrative costs. An applicant who makes a late application for renewal of a pawnbroker license shall pay a late fee. The license fee and late fee for a pawnbroker license shall be in the amounts set in the schedule of fees adopted by the city council by resolution.

(C42, § 56-2; C54, C62, § 35-8; C75, C79, C85, § 9-80; O.11,253; C91, § 9-80; O.14,181, 15,935)

Sec. 30-295.1. Pawnbroker transaction fee.

(a) A pawnbroker shall collect a transaction fee in an amount set in the schedule of fees adopted by the city council by resolution. The transaction fee shall be collected from each customer per visit for pawn loans or pawnbroker purchases.

(b) The pawnbroker shall pay to the city all transaction fees collected. The pawnbroker shall pay such fees within 30 days of the date the city finance department mails a quarterly bill to the pawnbroker.

(O.14,290)

Editor's note—Ord. No. 14,290, adopted Nov. 17, 2003, which enacted this § 30-295.1 shall be in full force and effect on January 1, 2004. See the editor's note to § 30-301 for further information.

Sec. 30-296. Separate license for each place of business.

Any person conducting several or separate pawnbroking businesses shall pay the license fee and procure a license for each place, and any violations in one licensed premises shall be deemed violations in all premises licensed by that pawnbroker.

(C42, § 56-3; C54, C62, § 35-4; C75, C79, C85, § 9-81; O.11,253; C91, § 9-81)

Sec. 30-297. Display of license.

Every licensed pawnbroker shall display his or her license conspicuously in the business so that it may be readily observed by all persons entering the premises.
(C42, § 56-4; C54, C62, § 35-5; C75, C79, C85, § 9-82; O.11,253; C91, § 9-82)

Sec. 30-298. Sale or transfer of license.

No pawnbroker license shall be sold or transferred. The purchaser of any pawnbroker business or of the majority of the stock of any corporation operating a pawnbroker business shall make application for and obtain a new license before operating such business at the location for which the license has been issued.
(C42, § 56-5; C54, C62, § 35-9; C75, C79, C85, § 9-83; O.10,915, 11,253; C91, § 9-83)

Sec. 30-299. License renewals.

Every licensed pawnbroker shall apply for a license annually by application as if for an original license. There shall be no automatic renewal. Such application shall be filed and the fee paid not less than 45 days prior to the expiration of the current license.
(C42, § 56-6; C54, C62, § 35-10; C75, C79, C85, § 9-84; O.10,915, 11,253; C91, § 9-84)

Sec. 30-300. Denial, suspension or revocation of license.

(a) Any license issued pursuant to this division may be suspended or revoked or its renewal denied for violation of this division or any other chapter of this Code, including but not limited to failure to comply with new or renewal application procedures, a negative police report, a negative zoning enforcement officer report, falsification of a new or renewal application, or for the failure to maintain records in conformity with the requirements enumerated under section 30-301 of this division. No such suspension, revocation or denial shall be effective except upon notice delivered to the licensee by mailing the notice in the regular mail addressed to the licensee at the licensed premises a minimum of ten days prior to the date set for informal hearing before the community development department director or director's designee, or before the chief of police or chief's designee. The city clerk shall determine the appropriate department to preside over the informal hearing after consulting with the legal department. Such notice shall inform the licensee of the time, date and place of informal hearing, the purpose of the hearing, and shall set out briefly the reasons therefor.

(b) If, after such informal hearing, a finding based on substantial evidence is made that a violation of this division or another chapter of this Code did in fact take place as alleged, the community development department director or director's designee, or chief of police or chief's designee may suspend or revoke the license or deny its renewal depending upon the circumstances surrounding the violation and its severity. Upon a suspension, revocation, or denial of renewal, the city clerk shall be notified of such action.

(c) The decision to suspend, revoke, or deny renewal of the license is appealable pursuant to chapter 3 of this Code.

(d) A licensee whose license has been revoked or its renewal denied shall not be eligible for another such license for a period of one year after such revocation or denial.
(C42, § 56-7; C54, C62, § 35-11; C75, C79, C85, § 9-85; O.10,915, 11,253; C91, § 9-85; O.14,979, 15,935)

Sec. 30-301. Records required.

(a) The police department shall furnish the internet web address for the automated pawn/secondhand records system to every pawnbroker licensee who shall immediately upon completion of each individual transaction accurately enter into the system via the internet in the English language the following information at time of purchase or receipt of any property:

(1) The date and hour of the transaction;

(2) The amount paid, advanced or loaned for the article;

(3) A detailed and accurate description of the article;

(4) When applicable, the accurate model number and/or serial number;

(5) A digital photograph of the item; and

(6) The name and address of the person from whom the property is purchased or received and his or her date of birth, Iowa driver's license number, or Iowa identification number, or social security number with photo identification, sex, age, height, and type of photo identification presented.

(b) It shall not be deemed compliance with this section if the licensee or the licensee's agent or employee lists his or her own name as the person selling or transferring the article.

(c) Upon entry of the required information into the automated pawn/secondhand records system, such information becomes a police department record a copy of which shall be maintained by licensee on the licensed premises. When pawn log sheets are required pursuant to subsection (d) of this section 30-301 at the time of completion or upon demand from the chief of police or his or her designee, the licensee shall surrender the original sheets to the police department and such originals shall remain the property of the city. A copy of the original will be provided to the licensee. The licensee shall also maintain a record of the name and residential address of any person redeeming an article of property, the date of such transaction and a description of the article redeemed. If property is disposed of other than by redemption, the licensee shall record a description of the property, how disposed, and the name and address of the person to whom the article was transferred. Such redemption or sales records shall be maintained by the licensee for one year from the date of the transaction and shall be at all times open to examination and recordation by the chief of police or his or her designee.

(d) If the automated pawn/secondhand records system fails, crashes, or becomes inaccessible by either the pawnbroker or the police department such that data entries cannot be electronically captured or recorded, then in that event the pawnbroker shall use pawn log sheets furnished by the police department to accurately enter in ink in the English language the information required under subsection (a) of this section 30-301.

(e) Licensee shall maintain a computer system that meets the system and connectivity requirements as set and kept on file by the police department.

(f) The chief of police or his/her designee shall have access to licensee's computer system for purposes of inspection for compliance with division 3 of chapter 30 of the Des Moines Municipal Code.

(C42, § 56-7; C54, C62, § 35-12; C75, C79, C85, § 9-86; O.10,915, 11,253, 11,427; C91, § 9-86; O.13,156, 14,290, 14,911, 15,935)

Editor's note—Ord. No. 14,290, adopted Nov. 17, 2003, which amended § 30-301(a)(5) shall be in full force and effect on January 1, 2004. See the editor's note to § 30-295.1 for further information.

Sec. 30-302. Failure to maintain records.

No person licensed under this division or his or her agents or employees shall fail to maintain, shall fail to surrender or shall falsify, delete, alter, destroy or otherwise destroy any records required by this division.

(C42, § 56-8; C54, C62, § 35-13; C75, C79, C85, § 9-87; O.11,253; C91, § 9-87)

Sec. 30-303. Identification tags.

The person licensed as a pawnbroker, his or her agents or employees shall also legibly record the date and hour the property was purchased or received on the property, or such information shall be securely affixed to the property. Such information must conform to the information recorded pursuant to section 30-301 of this division.

(C85, § 9-87.01; O.11,427, 11,602; C91, § 9-87.01)

Sec. 30-304. Prohibited acts.

No pawnbroker his or her agents, or employees purchasing or receiving any article of property shall:

(1) Receive any property without first viewing a form of identification containing a photograph of the person identified.

(2) Melt, alter, destroy, sell, redeem, remove from the licensed premises or otherwise dispose of such article, within 15 calendar days after the receipt and report of any property is made as required by section 30-301 of this division, except upon written permission from the chief of police or his or her designee.

(3) Purchase or receive any property from any person under the age of 18 without his or her parent or guardian being present at the time of the transaction and without receiving the parent's or guardian's written consent, a copy of which must be submitted along with the records required by section 30-301 of this division.

(4) Purchase or receive any property or surrender any property from 6:00 p.m. to 8:00 a.m. Monday through Saturday, and 6:00 p.m. Saturday through 8:00 a.m. Monday.

(5) Conceal, secrete, or destroy for the purpose of concealing any article purchased or received for the purpose of preventing identification.

(6) Deface, alter or remove any serial number or identifying marks from an article in his or her possession.

(7) Take possession of defaced or altered property as described in subsection (6) of this section.

(8) Block or deny access to its computer system by the Des Moines Police Department.

(9) Fail to immediately enter or record the required information under section 30-301 of this chapter upon completion of each individual transaction.

(10) Knowingly purchase or receive property from an individual conducting the transaction for someone else.

(C42, § 56-8; C54, C62, § 35-14; C75, C79, C85, § 9-88; O.10,915, 11,253; C91, § 9-88; O.12,019, 14,911, 15,935)

Sec. 30-305. Search for stolen property.

(a) Whenever the chief of police or his or her designee has reason to believe that any pawnbroker, his or her agents, or employees has possession of any stolen property on the licensed premises, he or she shall have the right and duty to enter and search the premises of such person for the purpose of discovering stolen property.

(b) No such licensee, his or her agents, or employees shall refuse, resist or attempt to prevent the chief of police or his or her designee, with or without warrant, from examining the licensed premises for the purpose of discovering stolen property or any violation of this division. (C42, § 56-8; C54, C62, § 35-15; C75, C79, C85, § 9-89; O.11,253; C91, § 9-89)

Secs. 30-306—30-330. Reserved.

DIVISION 4. SECONDHAND GOODS DEALERS

Sec. 30-331. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Automated pawn/secondhand records system means the records system utilized by the police department to track pawn and/or secondhand goods transactions by pawnbrokers and/or secondhand goods dealers.

Automated kiosk means an interactive device that is installed within a retail space at which only used consumer electronic devices are purchased or otherwise received by a secondhand goods dealer and which performs the following functions:

(1) Uses a live representative to remotely monitor receipts of devices, and

(2) Records identifying information from the device and identification of the customer who makes the transaction or deposit of the device, consistent with the records required under section 30-343(a) of this division, and

(3) Electronically reports all transactions using the automated pawn/secondhand records system, and

(4) Is capable of remotely releasing to the police department any device determined to be stolen property.

Consumer electronic device or device means a portable electronic or digital device designed to be purchased and used by end users or consumers for daily, non-commercial purposes; examples of consumer electronic devices include, but are not limited to, cellular telephones, touch screen tablets, laptop computers, smart watches, and digital media players.

Negative police report means a review compiled by the chief of police or his or her designee which discloses a criminal record of a felony or any conviction under this division two or more times in a calendar year or a conviction under I.C. ch. 714 or failure to have a computer that has internet access and the capability to utilize the automated pawn/secondhand records system.

Negative zoning enforcement officer report means a review compiled by the zoning enforcement officer or his or her designee which discloses non-compliance with zoning requirements contained in the Des Moines Municipal Code.

Positive police report means a review compiled by the chief of police or his or her designee which does not disclose a criminal record of a felony or any conviction under this division two or more times, in a calendar year, or a conviction under I.C. ch. 714.

Secondhand goods dealer or *dealer* means any person, other than a pawnbroker or a salvage dealer, who operates a business open to the public and purchases secondhand goods, antiques, or used articles whatsoever from the public.
(C62, § 47B-1; O.8840; C75, C79, C91, § 9-117.01; O.15,935, 15,956)

Cross reference—Definitions generally, § 1-2.

Sec. 30-332. Exemption.

This division shall not apply to the following:

(1) Any person selling new or used motor trucks or motor vehicles and regulated by the Iowa Department of Transportation.

(2) Any person collecting secondhand goods, antiques, or used articles for personal use only.

(3) Casual and occasional sales of used household goods by the owner thereof to the public, on a nonreceiving basis, if the seller, at the time of sale, is not engaged for profit in the business of selling goods of that or a similar nature; this category includes those sales commonly referred to as "garage sales", "tag sales" or "estate sales" so long as such sales are not conducted in excess of four consecutive days and no more than two times annually.

(4) Articles received by a charitable organization which is exempt from taxation under section 501(c)(3) of the United States Internal Revenue Code.

(5) Any person conducting a consignment business where a fee is collected for the sale of another's personal property, estate auctions, multi-booth flea markets or antique malls.

(6) Any person conducting a business having more than 50 percent of gross receipts from the sale of used clothing.

(C62, § 47B-2; O.8840; C75, C85, § 9-117.02; O.11,602; C91, § 9-117.02; O.13,478, 15,935)

Sec. 30-332A. Proof required of gross receipts from sale of used clothing.

Upon reasonable suspicion that any business does not derive more than 50 percent of its gross receipts from the sale of used clothing and is not otherwise exempt under section 30-332 of this division, the chief of police, or the zoning enforcement officer or their designees may require that the owner or operator of the business demonstrate within 45 days that during the prior six months more than 50 percent of its gross receipts were derived from the sale of used clothing. In such event it shall be presumed that 50 percent or less of the gross receipts are derived from the sale of used clothing, which presumption may be overcome by the business timely furnishing a report of findings showing compliance with the

percentage requirements of this section, prepared and verified by a certified public accountant as the result of an agreed-upon procedures engagement, identifying the total dollar volume of all receipts, and separately identifying the total dollar volume of gross receipts derived from the sale of used clothing, and from the sales exclusive of used clothing, from the business in the preceding six months.
(O.15,935)

Sec. 30-332B. Exemptions for automated kiosks.

A dealer that uses automated kiosks for remote purchase or receipt of consumer electronic devices is exempt from sections 30-337 (transaction fee); 30-345 (identification tags); and 30-346(4) (hours of operation), and, notwithstanding section 30-346(2), may remove consumer electronic devices from the licensed premises, provided such article is not sold or disposed of within 15 calendar days after the receipt and report is made as required by section 30-343 of this division.
(O.15,956)

Sec. 30-333. License required.

(a) No person shall engage in the secondhand goods business without first obtaining a secondhand goods dealer license.

(b) All applicants for such licenses shall apply in writing to the city clerk.

(c) All license applications shall contain the following information:

(1) The full name, residential address, business address, a copy of the state issued identification card or driver's license for the applicant and, where the applicant is a corporation or partnership, for each officer or partner;

(2) The name and address of the owner of the business' premises;

(3) The business, occupation or employment of the applicant, including location thereof, for the two years immediately preceding the date of application; and

(4) A copy of the criminal history background check for the applicant and, where the applicant is a corporation or partnership, for each officer or partner.

(5) Whether the applicant has a computer that can access the internet and utilize the automated pawn/secondhand records system.

(C62, § 47B-3; O.8840; C75, C79, C85, § 9-117.03; O.11,602; C91, § 9-117.03; O.15,935, 15,956)

Sec. 30-334. License criteria.

Upon receipt of a secondhand goods dealer license application, the city clerk shall forward a copy of the application to the chief of police and the zoning enforcement officer or their designees who shall review the application. The applicant shall furnish such evidence as may reasonably be required in support of the statements set forth in the application. The chief of police and the zoning enforcement officer or their designees shall report to the city clerk within 30 days of receipt of the application considering but not limited to the criteria of whether:

(1) The applicant or his or her agent or employee charged with receiving or distributing property has been convicted of a felony. However, if the conviction of a felony occurred more than five years before the application for a secondhand goods dealer license and if such person's rights of citizenship have been restored by the governor, such conviction shall not be a bar to obtaining a secondhand goods dealer license;

(2) The applicant has truthfully reported all relevant facts within the secondhand goods dealer application;

(3) The applicant has such financial standing and good reputation to indicate that he or she will comply with all the laws of the state and the city; and

(4) The applicant has a computer that can access the internet and utilize the automated pawn/secondhand records system.

(5) The secondhand goods dealer's business complies with zoning requirements contained in the Des Moines Municipal Code.

(C85, § 9-117.031; O.11,218, 11,310; C91, § 9-117.031; O.15,819, 15,935)

Sec. 30-335. License issuance.

(a) Upon receipt of a positive police report, positive zoning report and the appropriate fees, the city clerk shall approve the application if the applicant has fully complied with all the requirements of this division, and the city clerk shall thereupon issue a secondhand goods dealer license to the applicant and keep a copy of file. The license shall expire on December 31 next after the date of issuance. The license shall state the name and place of the business to be transacted and the place where it is to be carried on, and the date of issuance and expiration of the license.

(b) If the city clerk determines that the applicant for a new or renewal license has not fully complied with all of the requirements of this division or that a negative police report is returned or that the applicant has falsified his or her application, the city clerk shall advise the community development department and the chief of police of the basis for questioning the applicant's qualifications, and the procedures for notice and hearing as set forth in section 30-342 of this division shall apply.

(C62, § 47B-4; O.8840; C75, § 9-117.04; O.9124; C79, C85, § 9-117.04; O.11,602; C91, § 9-117.04; O.15,935)

Sec. 30-336. License fee.

An applicant for a secondhand goods dealer license shall submit a fee to the city clerk at the time of filing the application. The license fee shall be reduced by 25 percent if the application is filed during the second quarter of the calendar year, 50 percent if the application is filed during the third quarter of the calendar year, and 75 percent if the application is filed during the last quarter of the calendar year. If the application is denied, $50.00 of the total fee shall be retained to cover administrative costs. An applicant who makes a late application for renewal of a secondhand goods dealer license shall pay a late fee. The license fee and late fee for a secondhand goods dealer license shall be in the amounts set in the schedule of fees adopted by the city council by resolution.

(C62, § 47B-5; O.8838; C75, C79, C91, § 9-117.05; O.15,935)

Sec. 30-337. Secondhand goods dealer transaction fee.

(a) A secondhand goods dealer shall collect a transaction fee in an amount set in the schedule of fees adopted by the city council by resolution. The transaction fee shall be collected from each customer per visit for secondhand goods transactions for secondhand goods received by a dealer.

(b) The secondhand goods dealer shall pay to the City of Des Moines all transaction fees collected. The secondhand goods dealer shall pay such fees within 30 days of the date the City of Des Moines Finance Department mails a quarterly bill to the dealer

(C62, § 47B-6; O.8838; C75, C79, C91, § 9-117.06; O.15,935)

Sec. 30-338. Separate license for each place of business.

Any person conducting several or separate secondhand goods businesses or automated kiosks shall pay the license fee and procure a license for each business location or for each automated kiosk, and any violations in one licensed premises or location shall be deemed violations in all business premises and all automated kiosk locations licensed by that dealer.

(C62, § 47B-7; O.8838; C75, C79, C85, § 9-117.07; O.11,602; C91, § 9-117.07; O.15,935, 15,956)

Sec. 30-339. Display of license.

Every licensed secondhand goods dealer shall display his or her license conspicuously in the business so that it may be readily observed by all persons entering the premises, or in the case of automated kiosks the license shall be readily available for viewing upon request.

(C62, § 47B-8; O.8838; C75, C79, C85, § 9-117.08; O.11,602; C91, § 9-117.08; O.15,935, 15,956)

Sec. 30-340. Sale or transfer of license.

No secondhand goods dealer license shall be sold or transferred. The purchaser of any secondhand goods dealer business or of the majority of the stock of any corporation operating a secondhand goods dealer business shall make application for and obtain a new license before operating such business at the location for which the license has been issued.
(C62, § 47B-9; O.8838; C75, C79, C85, § 9-117.09; O.11,602; C91, § 9-117.09; O.15,935)

Sec. 30-341. License renewals.

Every licensed secondhand goods dealer shall apply for a license annually by application as if for an original license. There shall be no automatic renewal. Such application shall be filed and the fee paid not less than 45 days prior to the expiration of the current license.
(C62, § 47B-10; O.8838; C75, C79, C91, § 9-117.10; O.15,935)

Sec. 30-342. Denial, suspension or revocation of license.

(a) Any license issued pursuant to this division may be suspended or revoked or its renewal denied for violation of this division or any other chapter of this Code, including but not limited to failure to comply with new or renewal application procedures, a negative police report, a negative zoning enforcement officer report, falsification of a new or renewal application, or for the failure to maintain records in conformity with the requirements enumerated under section 30-343 of this division. No such suspension, revocation or denial shall be effective except upon notice delivered to the licensee by mailing the notice in the regular mail addressed to the licensee at the licensed premises a minimum of ten days prior to the date set for informal hearing before the community development department director or director's designee, or before the chief of police or chief's designee. The city clerk shall determine the appropriate department to preside over the informal hearing after consulting with the legal department. Such notice shall inform the licensee of the time, date and place of informal hearing, the purpose of the hearing, and shall set out briefly the reasons therefor.

(b) If, after such informal hearing, a finding based on substantial evidence is made that a violation of this division or another chapter of this Code did in fact take place as alleged, the community development department director or director's designee, or chief of police or chief's designee may suspend or revoke the license or deny its renewal depending upon the circumstances surrounding the violation and its severity. Upon a suspension, revocation, or denial of renewal, the city clerk shall be notified of such action.

(c) The decision to suspend, revoke, or deny renewal of the license is appealable pursuant to chapter 3 of this Code.

(d) A licensee whose license has been revoked or its renewal denied shall not be eligible for another such license for a period of one year after such revocation or denial.
(C62, § 47B-11; O.8838; C75, C79, C85, § 9-117.11; O.11,602; C91, § 9-117.11; O.15,935)

Sec. 30-343. Records required.

(a) The police department shall furnish the internet web address for the automated pawn/secondhand records system to every secondhand goods dealer who shall immediately upon completion of each individual transaction accurately enter into the system via the internet in the English language the following information at time of purchase or receipt of any property:

(1) The date and hour of the transaction;

(2) The amount paid for the article;

(3) A detailed and accurate description of the article;

(4) When applicable, the accurate model number and/or serial number;

(5) A digital photograph of the item; and

(6) The name and address of the person from whom the property is purchased or received and his or her date of birth, Iowa driver's license number, or Iowa

identification number, or social security number with photo identification, sex, age, height, and type of photo identification presented.

(b) It shall not be deemed compliance with this section if the dealer or the dealer's agent or employee lists his or her own name as the person selling or transferring the article.

(c) Upon entry of the required information into the automated pawn/secondhand records system, such information becomes a police department record a copy of which shall be maintained by licensee on the licensed premises. When property log sheets are required pursuant to subsection (d) of this section 30-343 at the time of completion or upon demand from the chief of police or his or her designee, the dealer shall surrender the original sheets to the police department and such originals shall remain the property of the city. A copy of the original will be provided to the dealer. The dealer shall also maintain a record of the name and residential address of any person purchasing a secondhand good, the date of such transaction and a description of the article purchased. If property is disposed of other than by sale, the dealer shall record a description of the property, how disposed, and the name and address of the person to whom the article was transferred. Such transfer or sales records shall be maintained by the dealer for one year from the date of the transaction and shall be at all times open to examination and recordation by the chief of police or his or her designee.

(d) If the automated pawn/secondhand records system fails, crashes, or becomes inaccessible by either the dealer or the police department such that data entries cannot be electronically captured or recorded, then in that event the dealer shall use property log sheets furnished by the police department to accurately enter in ink in the English language the information required under subsection (a) of this section 30-343.

(e) Dealer shall maintain a computer system that meets the system and connectivity requirements as set and kept on file by the police department.

(f) The chief of police or his/her designee shall have access to dealer's computer system for purposes of inspection for compliance with division 4 of chapter 30 of the Des Moines Municipal Code.

(g) Professional numismatists and philatelists are exempt from the requirements under this section only to the extent of the part of a business dealing in coins and stamps and for coins and stamps are subject to the following:

(1) Whenever any peace officer has knowledge of stolen coins or stamps, he or she shall provide a list of such coins and stamps to professional numismatists and philatelists. If such coins or stamps are presented for sale to any numismatists or philatelists having such list, he or she shall attempt to obtain the identity of the seller and notify the chief of police or his or her designee.

(2) Any professional numismatist or philatelist having reason to suspect the authenticity of an attempted sale of coins or stamps shall promptly notify the chief of police or his or her designee and shall attempt to obtain the identity of the seller.

(C62, § 47B-12; O.8838; C75, C79, C85, § 9-117.12; O.11,602; C91, § 9-117.12; O.15,935)

Sec. 30-344. Failure to maintain records.

No secondhand goods dealer or his or her agents or employees shall fail to maintain, shall fail to surrender or shall falsify, delete, alter, destroy or otherwise destroy any records required by this division.

(C62, § 47B-13; O.8838; C75, § 9-117.13; O.9124; C79, C91, § 9-117.13; O.15,935)

Sec. 30-345. Identification tags.

A secondhand goods dealer, his or her agents or employees, shall also legibly record the date and hour the property was purchased or received on the property, or such information shall be

securely affixed to the property. Such information must conform to the information recorded pursuant to section 30-343 of this division.
(C62, § 47B-14; O.8838; C75, C79, C91, § 9-117.14; O.15,935)

Sec. 30-346. Prohibited acts.

No secondhand goods dealer or his or her agents, or employees purchasing or receiving any article of property shall:

(1) Receive any property without first viewing a form of identification containing a photograph of the person identified.

(2) Melt, alter, destroy, sell, redeem, remove from the licensed premises or otherwise dispose of such article, within 15 calendar days after the receipt and report of any property is made as required by section 30-343 of this division, except upon written permission from the chief of police or his or her designee.

(3) Purchase or receive any property from any person under the age of 18 without his or her parent or guardian being present at the time of the transaction and without receiving the parent's or guardian's written consent, a copy of which must be submitted along with the records required by section 30-343 of this division.

(4) Purchase or receive any property or sell any property from 6:00 p.m. to 8:00 a.m. Monday through Saturday, and 6:00 p.m. Saturday through 8:00 a.m. Monday.

(5) Conceal, secrete, or destroy for the purpose of concealing any article purchased or received for the purpose of preventing identification.

(6) Deface, alter or remove any serial number or identifying marks from an article in his or her possession.

(7) Take possession of defaced or altered property as described in subsection (6) of this section.

(8) Block or deny access to its computer system by the Des Moines Police Department.

(9) Fail to immediately enter or record the required information under section 30-343 of this chapter upon completion of each individual transaction.

(10) Knowingly purchase or receive property from an individual conducting the transaction for someone else.

(O.15,935)

Sec. 30-347. Examination of premises and records.

It shall be unlawful for any secondhand goods dealer or any other person to refuse, resist, or attempt to prevent any city employee or any authorized city agent from making a reasonable examination of the area in which secondhand goods are stored or deposited or the records required by section 30-343 of this division.
(O.15,935)

Sec. 30-348. Segregation of suspected stolen goods.

Each secondhand goods dealer shall, upon the request of a police officer, segregate items or categories of items which such officer reasonably suspects may be stolen goods. All segregated items shall be so held for 30 days unless sooner released from segregation by the officer ordering such segregation or his or her designee.
(O.15,935)

Sec. 30-349. Release of stolen property to police department.

Secondhand goods dealers shall release to the police department any property determined by the chief of police or his or her designee to be stolen property. The chief of police or his or her designee, upon receiving such stolen items, shall issue to the secondhand goods dealer in possession of the items a receipt particularly describing the item, the date and time it was released to the police department and the name and signature of the person making receipt therefor.
(O.15,935)

Sec. 30-350. Search for stolen property generally.

Whenever the chief of police or his or her designee shall have substantial reason to believe that any secondhand goods dealer has in his or her possession or on his or her premises any stolen property, he or she shall have the right and it shall be his or her duty to enter and make search and examination of the premises of such dealer for the purpose of discovering such stolen property.
(O.15,935)

Sec. 30-351. Interfering in search for stolen property.

It shall be unlawful for any person to knowingly hinder, obstruct, prevent or attempt to prevent the chief of police or his or her designee operating pursuant to section 30-350 of this division from entering upon or making examination of the premises of any secondhand goods dealer for the purpose of discovering stolen property.
(O.15,935)

Secs. 30-352—30-369. Reserved.

ARTICLE IX. AFTER-HOURS BUSINESS*

Sec. 30-370. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

After-hours business means any business open during any time between the hours of 2:00 a.m. to 6:00 a.m. any day of the week, and either where patrons are allowed to bring their own beer and wine onto the business premises, or is a private club as defined in this section.

Business premises or *licensed premises* means all building and property including parking lots owned or leased for the benefit of the operation of the after-hours business.

Business records means all financial accounting records of the after-hours business and a private club's membership records.

Beer means any liquid capable of being used for beverage purposes made by the fermentation of an infusion in potable water of barley, malt, and hops, with or without unmalted grains or decorticated and degerminated grains or made by the fermentation of or by distillation of the fermented products of fruit, fruit extracts, or other agricultural products, containing more than one-half of one percent of alcohol by volume but not more than five percent of alcohol by weight but not including mixed drinks or cocktails.

Hotel or *motel* means premises licensed by the state department of inspections and appeals and regularly or seasonally kept open in a bona fide manner for the lodging of transient guests, and with 20 or more sleeping rooms.

Person means any individual, association, partnership, corporation, or club owning or operating an after-hours business.

Person of good moral character means any person who meets all of the following requirements:

(1) The person has such financial standing and good reputation as will satisfy the city that the person will comply with this article and all laws, ordinances, and regulations applicable to the person's operations under this article.

a. In evaluating an applicant's "financial standing" the city may consider the following: An applicant's "financial standing" may include, but is not limited to, verified source(s) of financial support and adequate operating capital for the applicant's proposed after-hours business, a record of prompt payment of local or state taxes due, a record of prompt payment to the city and the various utility companies of fees or charges due the city or the utility companies for municipal services or utilities provided, and prompt payment of or satisfaction of any fine or civil

*__Cross reference—__Public dances, Ch. 14, Art. III et seq.

penalty imposed pursuant to any chapter of the Des Moines Municipal Code.

b. In evaluating an applicant's "good reputation" the city may consider such factors as, but not limited to, the following: A pattern or practice of violating any of the requirements or prohibitions set out in this article to which the licensee or licensee's agents or employees have pled or been found guilty in a criminal court or have been otherwise sanctioned under this article, a pattern or practice of violating any of the state alcoholic beverages laws and regulations for which corrective action has been taken, convictions of licensee of laws relating to operating a motor vehicle while under the influence of drugs or alcohol, convictions of any laws relating to illegal drug use, possession or sale, convictions of misdemeanor charges, their recency and severity.

(2) The person is not subject to or prohibited by section 123.40 of the Code of Iowa from obtaining a liquor, wine or beer license.

(3) Notwithstanding paragraph (5), the applicant is a citizen of the United States and a resident of this state, or licensed to do business in this state in the case of a corporation. Notwithstanding paragraph (5), in the case of a partnership, only one general partner need be a resident of this state.

(4) The person has not been convicted of a felony. However, if the person's conviction of a felony occurred more than five years before the date of the application for a license or permit, and if the person's rights of citizenship have been restored by the governor, the city may determine that the person is of good moral character notwithstanding such conviction.

(5) The requirements of this definition apply to the following:

a. Each of the officers, directors, and partners of such person.

b. A person who directly or indirectly owns or controls ten percent or more of any class of stock of such person.

c. A person who directly or indirectly has an interest of ten percent or more in the ownership or profits of such person.

d. For the purposes of this subsection, an individual and the individuals spouse shall be regarded as one person.

Private club means a business not open to the general public but only open to specific identified individuals who are members.

Wine means any beverage containing more than five percent but not more than 17 percent of alcohol by weight obtained by the fermentation of the natural sugar contents of fruits or other agricultural products but excluding any product containing alcohol derived from malt or by the distillation process from grain, cereal, molasses or cactus.
(O.14,610, 16,278)

Sec. 30-371. License required.

No person shall operate an after-hours business in the city without first paying the license fee and procuring an after-hours business license. This article, however, shall not apply to hotels or motels.
(O.14,610)

Sec. 30-372. Eligibility.

Upon meeting the requirements imposed by this chapter and other city ordinances, a person who is of good moral character, as defined by this chapter, may apply for and hold an after-hours business license. For a corporation, or partnership, the officers of the club or corporation and the partners of a partnership shall be persons of good moral character as defined by this chapter.
(O.14,610)

Sec. 30-373. Conditions for approval.

The following conditions and regulations must be met by an applicant for an after-hours business license:

a. The applicant must give consent in writing on the application that members of the fire and police departments and the building inspector may enter upon the business premises without warrant to inspect for violations of the provisions of state law and of this chapter.

b. The premises for which an after-hours business license is sought must be located within an area where such business is permitted by chapter 134 of this Code and must otherwise conform to the city zoning requirements.

c. All applicable permits and licenses provided for by the Municipal Code shall be displayed in a conspicuous place on the premises of the license holder and at all times shall be subject to inspection.

d. No after-hours business license shall be approved for premises which do not conform to all applicable laws, ordinances, resolutions, and health and fire regulations.

(O.14,610)

Sec. 30-374. License application.

(a) All applicants for an after-hours business license shall apply to the city clerk. Upon receipt of the application by the city clerk, the application information shall be forwarded to the chief of police or his or her designee, who shall conduct an investigation as to the truth of the facts averred in the application. It shall be the duty of the building official, zoning enforcement officer and the fire chief or their designees to inspect the premises to determine if they conform to the city's requirements.

(b) All applications shall be made in the name of the owner of the business, whether an individual, a partnership, or a corporation, and shall contain the following:

(1) The full name, residence address, business address, Iowa Division of Criminal Investigation criminal history report, copy of government-issued photo ID of the applicant and, when the applicant is a partnership or corporation, of the partners or officers.

(2) If the applicant is a corporation, the name of the corporation shall be set forth exactly as shown in its articles of incorporation together with the names and residence addresses of each of the officers, directors, and each stockholder holding more than ten percent of the stock of the corporation; if the applicant is a partnership, the application shall set forth the name and the residence address of each of the partners, including limited partners. If one or more of the partners is a corporation, the subsections of this section pertaining to a corporate application apply.

(3) The name and address of the owner of the building where such after-hours business will be located.

(4) A sketch or diagram of the proposed licensed premises showing the boundaries and locations of entrance and exits of buildings and parking lots and indicating the address of the proposed licensed premises, street names and abutting addresses.

(5) A copy of a valid Iowa sales tax permit for operation of the after-hours business.

(c) Upon receipt of departmental inspections and if the city clerk finds that the applicant has fully complied with all requirements of this article and all applicable ordinances and codes regulating fire, buildings, health and zoning and that the applicant is of good moral character, the city clerk shall approve the application and shall issue the after-hours business license.

(O.14,610, 15,777)

Sec. 30-375. License fees.

(a) An applicant for an after-hours business license shall submit a fee to the city clerk at the time of filing the application.

(b) All after-hours business licenses, unless sooner suspended or revoked shall expire at 6:00 a.m. one year from the date of issuance.

(c) An applicant who files for renewal less than 30 days prior to the date of any license expiration shall pay a late fee.

(d) If the application is denied or if the application is withdrawn before final action is taken by the city clerk, a portion of the application fee shall be retained by the city clerk for the cost of administration.

(e) The license fee, its nonrefundable portion and the late fee for the after-hours business license shall be in the amounts set in the schedule of fees adopted by the city council by resolution.
(O.14,610)

Sec. 30-376. Renewal application.

(a) Upon receipt of an application for the renewal of an after-hours business license, the chief of police or his or her designee shall conduct an investigation on the applicant as to the truth of the facts averred in the application.

(b) Inspection of the premises will be the same as under section 30-374 of this chapter.
(O.14,610, 15,777)

Sec. 30-377. Timely filed status.

(a) An applicant for a renewal of an after-hours business license may be granted timely filed status if the applicant complies with the following conditions:

(1) The applicant files a completed application with the city clerk's office at least 30 days in advance of the expiration of an after-hours business license, and

(2) The applicant pays the appropriate license fee in full.

(b) Timely filed status allows the license holder to continue to operate under a license after its expiration and until the city clerk has finally determined whether the license should be issued. If the application for the license is denied, timely filed status continues until the last day for appeal of such denial to the city council.

(c) Absent timely filed status, an applicant for renewal shall not operate an after-hours business beyond the expiration date of the license.
(O.14,610)

Sec. 30-378. License assignability.

The licenses granted under this article shall be personal to the licensee and shall not be assignable.
(O.14,610)

Sec. 30-379. Description of premises.

The licensed premises shall be described in the license by street name and number or other definite description.
(O.14,610)

Sec. 30-380. Reserved.

Editor's note—Ord. No. 15,777, § 1, adopted June 3, 2019, repealed § 30-380, which pertained to numbering of licenses and retention of stub and derived from Ord. No. 14,610.

Sec. 30-381. License for each place of business.

Any person conducting several or separate places of after-hours businesses shall pay the license fee and procure a license for each such place.
(O.14,610)

Sec. 30-382. Display of license.

The license for the business premises shall be prominently displayed in full view at the licensed premises.
(O.14,610)

Sec. 30-383. Records.

Every holder of an after-hours business license shall keep on the licensed premises a daily record of the gross receipts of the holder's business. In the case of an after-hours business that is a private club, a club membership list shall be maintained on the licensed premises. These records shall be maintained for inspection and

examination by police or other authorized city employee during the business hours of the licensed business.
(O.14,610)

Sec. 30-384. Examination of premises and records.

It shall be unlawful for a person to refuse, resist, or attempt to prevent any city employee or any authorized city agent from making a reasonable examination of the business premises and the business records.
(O.14,610)

Sec. 30-385. Violation by clerks, agents and employees.

Every clerk, agent or employee of any after-hours business shall be subject to and bound by all the sections of this article and be liable to the same penalties and to the same extent as his or her employer or principal for any violation of this article. Any violation of any section of this article by any clerk, agent or employee of a licensee shall be deemed the act of the licensee and shall subject the license of said licensee to civil penalty, suspension or revocation.
(O.14,610)

Sec. 30-386. Criminal conviction not a prerequisite.

A criminal conviction is not a prerequisite to suspension, revocation, or imposition of a civil penalty pursuant to this article.
(O.14,610)

Sec. 30-387. Sale or transfer of license.

No after-hours business license shall be sold or transferred. The purchaser of any after-hours business or of the majority of the stock of any corporation operating an after-hours business shall make application for and obtain a new license before operating such business at the location for which the license has been issued.
(O.14,610)

Sec. 30-388. License renewals.

Every person operating an after-hours business shall apply for an after-hours business license annually as if for an original license. There shall be no automatic renewal. Such application shall be filed and the fee paid not less than 30 days prior to the expiration of the current license.
(O.14,610)

Sec. 30-389. Failure to maintain records.

No person licensed under this article or his or her agents or employees shall fail to maintain, shall fail to surrender or shall falsify, delete, alter, destroy or otherwise destroy any records required by this article.
(O.14,610)

Sec. 30-390. Prohibited acts.

No person holding an after-hours business license nor his or her agents or employees shall do any of the following:

(a) Knowingly permit any gambling, except in accordance with I.C. chs. 99B, 99D, 99E, or 99F, or knowingly permit solicitation for immoral purposes, or immoral or disorderly conduct on the premises covered by the license.

(b) Keep or allow to be kept gambling devices of any kind or description on the licensed premises contrary to state law.

(c) Engage in, perform, act or cause, permit, procure, counsel or assist any other person who is acting as a waiter, waitress, host, hostess, dancer, or entertainer on the licensed premises to:

(1) Expose his or her genitals, pubic hair, buttocks, perineum, anus region, or pubic hair region;

(2) Expose or wear any device, costume or covering which gives the appearance of or simulates the genitals, pubic hair, buttocks, perineum, anus region, or pubic hair region; or

(3) Expose any portion of the female breast at or below the nipple thereof.

For purposes of this subsection a person shall be deemed a waiter, waitress, host, hostess, dancer, or entertainer if such person acts in that capacity without regard to whether such person is paid any compensation by the after-hours business licensee or his or her agent or employee.

(d) Knowingly permit solicitation on the licensed premises for purposes of prostitution.

(e) Knowingly permit or engage in any criminal activity on the premises covered by the license or permit.

(f) No loud or boisterous language shall be permitted on any licensed premises and such place shall be conducted in a quiet and orderly manner.

(O.14,610)

Sec. 30-390.1. Persons under age 21 not allowed on licensed premises.

No person holding an after-hours business license, nor his or her agents or employees shall allow a person under 21 years old to enter or remain on the licensed premises from 9:00 p.m. through 6:00 a.m. on all days when the licensed premises is open for business.
(O.15,026)

Sec. 30-390.2. Persons under age 21.

No person under age 21 shall enter into or remain on the licensed premises of an after-hours licensed business from 9:00 p.m. through 6:00 a.m. on all days when the licensed premises is open for business.
(O.15,026)

Sec. 30-391. Gambling evidence.

The intentional possession or willful keeping of any gambling device, machine or apparatus as defined in Iowa Code section 99A.1 upon the business premises of any establishment licensed by this article shall be prima facie evidence of a violation of section 30-390(a) of this article and subject licensee to suspension or revocation.
(O.14,610)

Sec. 30-392. Security required.

An after-hours business license holder shall provide adequate security to provide for crowd control and the safety of patrons.
(O.14,610)

Sec. 30-393. Reserved.

Editor's note—Ord. No. 14,869, § 1, adopted July 27, 2009, repealed § 30-393, which pertained to public dance law and derived from Ord. No. 14,610.

Sec. 30-394. Lighting.

The interior of any building on the licensed premises and any rooms or booths contained therein shall be illuminated to a minimum of two footcandles as measured by a footcandle meter at a plane of 30 inches from the floor and shall be so lighted that all objects are plainly visible at all times.
(O.14,610)

Sec. 30-395. Procedures for suspension, revocation, or civil penalty.

(a) Whenever the city council finds that the licensee or his or her employees or agents has furnished any false information required under this article or has violated or failed to comply with any of the requirements of this division, any other chapter of this Code, or state law pertaining to the after-hours business, the city council may, impose a civil penalty of up to $500.00 upon the licensee and/or suspend or revoke the license.

(b) No civil penalty, suspension or revocation shall issue except upon notice delivered to the licensee by mailing notice in the regular mail, addressed to the licensee at the licensed premises, a minimum of ten days prior to the date set for hearing before the council. Such notice shall inform the licensee of the time, date and place of hearing and shall set out briefly the reasons therefore.

(c) If, after such hearing, the city council makes a finding based on substantial evidence that a violation of this chapter or another chapter of this Code or state law did in fact take place as alleged, the city council may impose an appropriate civil penalty and/or suspend or revoke the license; the determination of whether to impose a civil penalty and/or suspend or revoke such license shall be in the discretion of the city council and shall be dependent upon the circumstances surrounding the violation and its severity.

(d) A licensee whose license has been revoked shall not be eligible for another such license for a period of two years after such revocation.

(e) Failure to pay a civil penalty imposed by the city council within 30 days of the resolution imposing such penalty if not stayed by appeal shall result in an automatic suspension of the after-hours business license for 20 calendar days. The city clerk shall issue a suspension order and the 20 days suspension shall commence at 6:00 p.m. one day following service of the order by personal service to the license holder or by posting on the main entrance to the business premises.
(O.14,610, 15,777)

Sec. 30-396. Enforcement alternatives.

Any person who fails to perform an act required by this article or who commits an act prohibited by this article shall be guilty of a misdemeanor or a municipal infraction punishable by a criminal or civil penalty as provided by section 1-15 of this Code. The city may file a Municipal Infraction pursuant to Iowa Code Chapter 364.22 as an alternative to the penalty procedures under section 30-395 of this article.
(O.14,610)

Sec. 30-397. Notice of change of management.

If a different person becomes manager or any officer dies or is removed, the business licensed pursuant to this article shall notify the office of the city clerk within three days, stating the name of the new manager or officer.
(O.14,610)

Sec. 30-398. Scope.

(a) An after-hours business license shall be a purely personal privilege and shall be revocable for cause. It shall not constitute property nor be subject to attachment and execution nor be alienable or assignable, and in any case it shall cease upon the death of the permittee or licensee.

(b) Every permit or license shall be issued in the name of the applicant, and no person holding a permit or license shall allow any other person to use the permit or license.
(O.14,610)

Sec. 30-399. Causes for suspension, revocation, and civil penalty.

A holder of an after-hours business license may be required to pay a civil penalty and/or have the license suspended for a period up to one year or revoked for violations of law, including city ordinances, following notice and hearing for any of the following causes:

(a) Misrepresentation of any material fact in the application for the after-hours business license.

(b) Violation of any of the provisions of city ordinance or state law pertaining to the operation of the after-hours business.

(c) Any change in the ownership or interest in the business which change was not previously reported to and approved by the city.

(d) An event which would have resulted in disqualification from receiving such license or permit when originally issued.

(e) Any sale, hypothecation, or transfer of such license or permit.

(f) The failure or refusal on the part of any licensee or permittee to render any report or remit any taxes to the Internal Revenue Service of the State of Iowa that are required by state law.

(O.14,610)

Sec. 30-400. Emergency suspension.

(a) Notwithstanding any other provision of this article, the chief of police or his or her designee may temporarily suspend the after-hours business license and order a temporary closure of the business in a situation involving an immediate danger to public health, safety, or welfare.

(b) The police department shall give written notice of the temporary suspension/closure order along with a brief statement of the facts and reasons for the decision to suspend to persons who are required to comply with the order. Such notice shall state that the matter of temporary suspension and closure will be heard by the city council at the first regularly scheduled council meeting after expiration of five calendar days from the temporary suspension/closure. The suspension and order of closure is effective when issued and will remain effective until the city council reviews the facts, circumstances, and reasons for the temporary suspension and closure.

(c) A copy of the written notice of suspension/closure shall be sent to the city clerk. Such hearing shall be placed on the council agenda for the next regularly scheduled council meeting after expiration of five days from the temporary suspension/closure.

(d) The city council may take any action it is authorized to take under section 30-395 of this article and/or reinstatement of the after-hours business license.
(O.14,610)

Sec. 30-401. Effect of revocation.

(a) Any licensee whose license or permit is revoked shall not thereafter be permitted to hold a license in the city for a period of two years from the date of such revocation.

(b) A spouse or business associate holding ten percent or more of the capital stock or ownership interest in the business of a person whose license or permit has been revoked shall not be issued a license and no license shall be issued which covers any business in which such person has a financial interest for a period of two years from the date of such revocation.

(c) If a license is revoked, the premises which has been covered by such license shall not be relicensed for one year.
(O.14,610)

Sec. 30-402. Appeal and hearings.

(a) The right of appeal to the city council shall be afforded an applicant for an after-hours business license or for a renewal license whose license has been denied by the city clerk. Such appeal shall be in writing and filed with the city clerk's office ten business days after notice of denial is sent by ordinary mail.

(b) Any applicant who feels aggrieved by a decision of the city council penalizing, suspending, revoking, or disapproving issuance of a license may appeal from such decision within 30 days to the Polk County District Court.
(O.14,610)

Secs. 30-403—30-449. Reserved.

ARTICLE X. MASSAGE THERAPY

Sec. 30-450. Purpose.

The State of Iowa licenses massage therapists at Iowa Code Chapter 152C. State licensed massage therapists and businesses offering massage therapy services perform an important service in addressing the health and well-being of Des Moines residents. Unfortunately, there are businesses that advertise they provide massage therapy and/or other therapeutic services, but engage in various illegal activities, which may include prostitution and/or human trafficking. This article is not intended to discourage legitimate, licensed massage therapists or massage therapy businesses from providing their services within Des Moines. The purpose of this ordinance is to identify and address businesses that engage in the practice of massage therapy without valid licenses and/or are involved in illegal activities, which may include prostitution and/or human trafficking. Businesses providing massage therapy, but also conducting various types of illegal activity, are harmful to the

health, safety, and welfare of the city and negatively impact the massage therapy profession.
(O.15,734)

Sec. 30-451. Definitions.

For the purposes of this article, the following words and phrases have the meanings herein set forth, unless it is apparent from the context that a different meaning is intended.

(1) *"Massage therapist"* means a person licensed under Iowa Code Chapter 152C to practice the health care service of the healing art of massage therapy in the City of Des Moines.

(2) *"Massage therapy business"* means any business or place of business, including mobile, temporary, and transient businesses, wherein, or on whose behalf, any of the treatments, techniques, or methods of treatment referred to as "massage therapy" are administered, practiced, used, given, advertised or applied.

(O.15,734)

Sec. 30-452. State license required.

The practice of massage therapy, as defined in Iowa Code Chapter 152C, is prohibited by unlicensed individuals. It is unlawful for a person to engage in or offer to engage in the practice of massage therapy, or use in connection with the person's name, the initials "L.M.T." or the words "licensed massage therapist", "masseur", "masseuse", or any other word or title that implies or represents that the person practices massage therapy, unless the person possesses a license issued under the provisions of Iowa Code section 152C.3.
(O.15,734)

Sec. 30-453. Display of license.

Each massage therapist shall keep his/her license in possession at all times while doing business in the city and shall, upon request of a prospective customer or city official, exhibit the license as evidence of compliance with all requirements of this article.
(O.15,734)

Sec. 30-454. Penalties.

(a) A violation under this article is declared to be a municipal infraction in addition to a misdemeanor and any person, or in connection with one or more persons or as principle, agent, or accessory found violating any provision of this article, shall be subject to the general penalty provisions of section 1-15 of this Code to include both criminal and/or civil penalties.

(b) The chief of police, or designee, shall place in a highly noticeable location a placard stating "Unsafe to Enter; Unlicensed Massage Therapy Must Cease and is subject to criminal and/or civil penalty per Des Moines Municipal Code section 30-454." This notice shall remain posted until a valid state license is obtained or other legal use has been established.

(c) No person shall remove the placard posted pursuant to subsection (b) of this section without approval of the chief of police or designee.

(d) No person, or in connection with one or more persons or as principle, agent, or accessory shall continue to offer "massage therapy" services after a massage therapy business has been placarded as unsafe for entry unless the chief of police or designee has approved removal of the placard.
(O.15,734)

Chapters 31—33

RESERVED

Chapter 34

CEMETERIES*

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ARTICLE I. IN GENERAL

Sec. 34-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Burial means the in-ground interment or scattering of human remains.

Cemetery means an area owned by the city and designated by the city for the final disposition of human remains and includes in-ground interments, a community mausoleum for vault or crypt or urn interments, and columbarium for cremated remains, interments or a combination of one or more thereof, and areas designated for the scattering of human remains.

Cemetery rules and regulations and *rules and regulations* mean those rules and regulations approved by the parks and recreation board and the city council in accordance with section 34-32 of this chapter.

Columbarium means a freestanding vault or other structure with niches or recesses in the walls for the disposition of cremated remains.

Cremated remains means human ashes intended for in-ground burial, scattering over designated locations, or placed in memorials.

Crypt means a chamber in a mausoleum of sufficient size to contain casketed remains.

Disinterment means the removal of human remains from an interment space.

Family means the spouse of the owner of the right of interment, if any, and all lineal ancestors and descendants as designated in the right of interment, or if none such are designated, then any and all lineal descendants.

Family burial plot means an interment plot which shall be held as indivisible for family members of the owner thereof upon one family member's remains being interred therein for a period extending to 100 years after the last interment.

Foundation means the concrete or sand base created to place a monument or memorial marker on or in a designated burial space or plot.

Grave means a space of ground that is used for an in-ground burial.

Infant or *small child* means a child eight years old or less at death who requires an interment space no greater than five feet in length.

Infant burial plot means that area of the cemetery restricted to infant interments.

Infant interment means an interment in which the casket or urn is placed within an in-ground interment space five feet in length.

Interment means the permanent disposition of the remains of a deceased person by inurnment, entombment or burial.

Interment plot or plot means the area designed for the interment of the remains of one or more persons.

Interment space means the area designed for interment of the remains of one person.

Iowa Cemetery Act means Iowa Code Chapter 523I and its implementing regulations in the Iowa Administrative Code, as such chapter and rules may be amended from time to time.

Mausoleum means an enclosed structure designed for the interment of two or more people.

Memorial means any product, excluding a mausoleum or columbarium, used for identifying an interment space of a decedent, including, without limitation, a monument, tablet, headstone, footstone, vase, marker or bench, including those within a designated scattering area, private mausoleum, tombstone, surface burial vault, urn and crypt and niche plates.

Niche means a recess or space in a columbarium or mausoleum used for the placement of cremated human remains.

Owner means the person named as grantee in a certificate of right of interment or other instrument of conveyance.

Ownership, as the term relates to interment spaces or interment plots in the city cemeteries, is limited in meaning to the right of interment and includes no other elements of title ascribed to real estate by law.

Perpetual care, when used in reference to cemetery burial spaces, or plots, means the cutting and raking of the grass upon such interment spaces at reasonable intervals. When used in reference to cemetery grounds and facilities, means the lawn maintenance and care, the pruning of the shrubs and trees, and the general preservation and repair of the grounds, walks, roadways, drives, curbs, parking spaces, sewers, water lines, cemetery offices and maintenance buildings, fences, gates, boundaries, signage, entrance features, removal of litter and burial space or plot decorations, maintaining cemetery machinery, tools and equipment, so that such grounds and facilities shall remain and be reasonably cared for as cemetery property forever. The removal of snow and ice from cemetery walks, roadways, and parking spaces, and the back filling of eroded soil on graves and cemetery grounds, are included within the meaning of perpetual care. When used in reference to a city mausoleum and columbarium, perpetual care means repair necessitated by ordinary wear, the cleaning and sweeping of the building at reasonable intervals and the revision of locks and doors to prevent the entrance of unauthorized persons. No perpetual care for private mausoleums is provided by the city, with the exception that, at the city's sole discretion, limited perpetual care consisting solely of the removal of biological microbes, such as mold, algae, or lichens from exterior surfaces may be provided.

The term "perpetual care" shall not be construed as meaning:

(1) The maintenance, repair or replacement of any memorials placed or erected upon burial spaces or plots, or on any columbarium or within any mausoleum.

(2) The planting of flowers or ornamental plants on burial spaces or plots or the maintenance or doing of any special or unusual work in the cemetery or in a mausoleum or columbarium.

(3) The reconstruction of any marble, granite, bronze or concrete work on any section or plot or any portion thereof in the cemetery, mausoleum and columbarium or other buildings or structures, caused by the elements, an act of God, common enemy, thieves, vandals, strikers, malicious mischief makers, explosions, unavoidable accidents, invasions, insurrections, riots or by the order of any military or civil authority, whether the damage shall be direct or collateral, except as specifically approved by the city parks and recreation board.

Perpetual care maintenance fund means a perpetual care fund as defined in Iowa Code Chapter 523I and in section 34-166 of this chapter.

Remains means the body of a deceased human or a body part, or limb that has been removed from a living human being, including a body, body part, or limb in any stage of decomposition, or cremated remains.

Restricted burial section means an area restricted to the in-ground interment of remains of members of an association, organization, brotherhood or sisterhood, religious group, denomination or other similar entity, but shall not mean a family burial plot or veteran's plot.

Right of interment refers to the document delivered by the city as grantor to a grantee of a designated interment space or interment plot. Such document does not convey title in any form and shall not be construed as more than a right to inter human remains at a particular place as limited by city ordinances and cemetery rules and regulations, as such may from time to time be amended.

Scattering area means a designated area where cremated remains may be comingled with other cremated remains.

Special care means the maintenance work performed by cemetery staff at the request of and billed to, the owner or family, for work that is beyond perpetual care and includes only those specific services set forth in special care agreements with owners. It may include the erection,

maintenance, removal, repairs or preservation of any memorial structure; the planting and cultivation of flowers, trees, shrubs or plants in and around the cemetery or any part thereof; and the filling and care of vases, special care of flower beds and the placing of flower beds, and the placing of floral decorations on specified religious or other days, national holidays or at any other date requested, including the special care of ornamenting of any burial space or plot, section or building or any portion thereof, in the cemetery; or any other purpose or use consistent with the purpose for which such cemetery was established or is being maintained.

Veteran, for purposes of interment in the veteran's plot of a cemetery, means a person who served in any armed service of the United States as defined in Iowa Code Section 35.1.

Veteran's plot means an area of a city cemetery restricted to and reserved for veterans and their spouses.
(C42, §§ 72-2, 72-44, 72-67 to 72-69; C54, C62, §§ 13-1, 13-88; C75, C79, §§ 15-2, 15-82; C85, § 15-1; O.11,316; C91, § 15-1; O.13,100, 14,178, 15,801)

Cross reference—Definitions generally, § 1-2.

Secs. 34-2—34-30. Reserved.

ARTICLE II. MANAGEMENT

Sec. 34-31. Operation and supervision.

The operation, supervision, and maintenance of the municipal cemeteries is the responsibility of the parks and recreation department under the direction of the director or his or her designee.
(C42, § 72-3; C54, C62, § 13-3; C75, C79, § 15-3; C85, § 15-2; O.11,316; C91, § 15-2; O.15,801)

Sec. 34-32. Powers and duties of parks and recreation board.

For the purposes of this chapter, the parks and recreation board has the authority to:

(1) Review and determine the amount of fees for all rights of interment, cemetery services, rentals, and incidental products offered or performed under this chapter subject to the approval of the city council and the amount set forth in a schedule of fees adopted by the city council.

(2) Without notice, make exceptions, suspensions or modifications in the enforcement of this chapter when such are deemed necessary or advisable; provided, however, that such exception, suspension or modification applies only to a single circumstance.

(3) Review and approve rules and regulations necessary and beneficial to regulate the conduct in the city cemeteries, subject to section 74-26 of this Code.

(4) Hear appeals from any person in regard to any decision of the parks and recreation director. Appeals must be made in writing and filed with the parks and recreation director within ten days of the date of the director's written decision. Appeals must be received by the board at least 20 days before the next meeting of the board.

(C42, §§ 72-90, 72-91, 72-46, 72-38, 72-73; C54, C62, §§ 13-4, 13-12, 13-13, 13-51, 13-92; C75, C79, §§ 15-4, 15-12, 15-13, 15-52, 15-86; C85, § 15-3; O.11,316; C91, § 15-3; O.15,801)

Sec. 34-33. Powers and duties of parks and recreation director.

The parks and recreation director, in addition to the enforcement of this chapter and all rules and regulations approved by the parks and recreation board and the city council, shall exercise the following duties and authority:

(1) Authorize, including by issuance of a permit, events and activities sponsored by the parks and recreation department or other events and activities for a compelling cultural, historical, or educational need of the community which is consistent with and furthers the purposes of the city cemeteries.

(2) Sell burial spaces or plots to persons desiring to purchase and transfer the right of interment in the city cemeteries subject to this chapter and the Iowa Cemetery Act. The director may designate

the cemetery manager to execute right of interment documents and other related cemetery documents.

(3) Establish the days and times for burial and conditions for granting exceptions thereto.

(4) Determine the method of payment for right of interment and related interests and cemetery services, whether by direct and full payment at the time of purchase or payment by an installment plan subject to the conditions of section 34-61 of this chapter.

(5) Determine the expenditures of the income from the perpetual cemetery maintenance fund in such manner as in his or her judgment will be most advantageous to the owners as a whole and in accordance with the purposes and provisions of the applicable state laws, including the Iowa Cemetery Act.

(6) Enlarge, reduce, replot, or change the boundaries or grading of the cemetery or of a section thereof or modify or change the location of, remove or regrade grounds, drives or walks therein and lay, maintain or alter pipelines or drainage.

(7) Determine the location of trees, shrubs, herbage, and flowers or removal of such if such becomes unsightly, dangerous, detrimental or diseased.

(8) Determine improvements on and care of cemeteries such as addition of trees, shrubs, herbage and flowers or removal of such if such becomes unsightly, dangerous, detrimental or diseased.

(9) Use cemetery property which has not been sold to individual owners for cemetery purposes, including the interring of human remains or incidental thereto.

(10) Approve, consistent with this chapter, all special care agreements.

(11) Prevent improper assemblages and call upon the police department for aid in enforcing this chapter.

(12) Exclude from the cemetery any person violating this chapter.

(13) Take care of and supervise the grounds of the cemetery and the buildings located thereon inclusive of authority to remove floral designs or flowers or other items that have become unsightly and do not conform to the cemetery rules and regulations.

(14) Have authority to regulate and to supervise consistent with this chapter and the cemetery rules and regulations all persons in the cemetery, including the scheduling and conduct of all work performed within the city cemeteries, including funerals on reaching the cemetery, traffic, owners and visitors.

(15) Reject any plan or design for any memorial which, on account of size, design, inscription, kind or quality of stone or otherwise, is not in compliance with the requirements set forth in this chapter and cemetery rules and regulations. Such rejection by the parks and recreation director shall be in writing, giving the reason therefor and informing the owner of the right to appeal the rejection to the parks and recreation board as set forth in subsection 34-32(4) of this article.

(16) Stop any work of any nature whenever in his or her opinion proper preparations therefor have not been made, when tools and machinery are insufficient or defective, when work is being executed in such a manner as to threaten life or property, when the monument dealer has been guilty of misrepresentation, when work is not being executed according to specifications, or when any person employed on the work violates any section of this chapter.

(C42, §§ 72-4, 72-64, 72-84; C54, C62, §§ 13-5, 13-82 to 13-85, 13-111, 13-112; C75, C79, §§ 15-5, 15-80, 15-105, 15-106; C85, § 15-4; O.11,316; C91, § 15-4; O.15,801)

Sec. 34-34. Fees.

Fees. Pursuant to sections 34-32 and 34-33, the parks and recreation department is authorized

to charge fees for cemetery services, including, without limitation, fees for interment, disinterment, foundation charges, extra work/special care, records research, grave spaces, monument lots, rentals and incidental products. Cemetery fees for residents and nonresidents shall be in the amounts set in the schedule of fees adopted by the city council by resolution.
(O.15,801)

Sec. 34-35. Employee gratuities or commissions.

No person while employed by the city in the parks and recreation department in connection with any cemetery shall receive any fee, gratuity or commission, either directly or indirectly, under penalty of immediate dismissal.
(C42, § 72-6; C54, C62, § 13-7; C75, C79, § 15-7; C85, § 15-5; O.11,316; C91, § 15-5; O.15,801)

Secs. 34-36—34-60. Reserved.

ARTICLE III. SALE OF INTERMENT RIGHTS

Sec. 34-61. Sale of rights of interment.

(1) The city parks and recreation department on behalf of the city is authorized to sell the right of interment.

(2) The sale or transfer of interment rights in the cemetery shall be evidenced by a certificate of interment rights or other instrument evidencing the conveyance of exclusive rights of interment upon payment in full of the purchase price. The agreement for interment rights shall disclose all information required by the Iowa Cemetery Act, including the amount or percentage of money to be placed in the perpetual care fund.

(3) Fees for the right of interment must be paid at the time of arrangement for interment regardless of any prior agreement as to method of payment.

(4) The parks and recreation director or his or her designee is authorized to execute all right of interment documents.

(C42, §§ 72-11, 72-33; C54, C62, §§ 13-20, 13-46; C75, C79, §§ 15-20, 15-47; C85, § 15-6; O.11,316; C91, § 15-6; O.13,739, 14,070, 14,077, 14,178, 15,801)

Sec. 34-62. Transfer of ownership of right of interment.

All transfers of ownership of rights of interment shall be subject to a fee, to be determined by the parks and recreation board subject to approval of the city council, which shall be paid to the city when the transfer is requested and recorded. The city may refuse to consent to a transfer or to an assignment of a right of interment cemetery interment space or plot as long as there is any indebtedness due the city for the interment space or plot from the recorded owner. No transfer or assignment of any right of interment to an interment space or plot or interest therein shall be valid without the consent in writing of the parks and recreation director first endorsed upon such a transfer or assignment and thereafter being recorded on the books of the parks and recreation department. Upon such consent, a new right of interment document is issued.
(C42, §§ 72-34, 72-35, 72-36; C54, C62, §§ 13-47, 13-48, 13-49; C75, C79, §§ 15-48, 15-49, 15-50; C85, § 15-7; O.11,316; C91, § 15-7; O.15,801)

Sec. 34-63. Interment rights of owners.

(a) All interment spaces and plots shall be presumed to be under the control for purposes of interment of the person named as the grantee or the grantee's surviving spouse, or transferee in the right of interment document.

(b) The surviving spouse shall have a vested right to inter the deceased spouse's remains in any interment space or plot in which the deceased spouse was the owner of a right of interment, which right shall continue as long as the surviving spouse shall remain the spouse of the right of interment owner or shall be the spouse at the time of the owner's demise. No conveyance or other action, without the joinder therein or by

written consent attached thereto, shall divest the spouse of this vested right of interment; provided, however, that a final decree of divorce or annulment between them shall terminate it unless it shall be otherwise provided by the decree of divorce.

(c) Where a right of interment is conveyed to two or more persons to an interment space or plot, such owners shall be considered as joint tenants. each joint tenant shall have a vested right of interment of his or her remains in the burial space or plot conveyed. Upon the death of a joint tenant the right of interment in the burial space or plot theretofore held in joint tenancy immediately vests in the survivor, subject to the vested right of interment for the remains of the deceased joint tenant owner.

(d) Whenever an interment is made in an interment plot that has been transferred by a right of interment document to an individual owner by the city and is held as a separate plot, it shall be indivisible, and the whole plot thereby becomes inalienable and shall be held as the family plot of the owner. One grave, niche or crypt may be used for the owner's interment, one for the surviving spouse, if any, of the owner who, by law, has a vested right of interment therein, and in those remaining, if any, the parents or children of the deceased owner may be interred, in the order of need, without the consent of any person claiming any interest therein unless each interment space is specifically reserved in the right of interment document and not waived by the designated party.

(1) If there shall be no parent or child surviving the deceased person, the right of interment therein shall go to the next heirs at law of the deceased owner as specified by the statutes of descent. (See I.C. § 633.1 et seq.)

(2) Any surviving spouse or any parent, child or heir of the deceased owner may waive his or her right to interment in the plot in favor of any other relative of the deceased owner. Upon such waiver, the body of the person in whose favor the waiver is made may be interred therein, provided that such written waiver is filed in the office of the cemetery manager.

(e) If no interment has been made in an interment space or plot which has been transferred by a right of interment document to an individual owner by the city or if all the remains have been lawfully removed therefrom, in the absence of the specific disposition thereof by the owner's last will and testament, the whole of such plot, except the one grave, niche or crypt which must be reserved to the surviving spouse of the owner, shall, upon the death of the owner, descend in regular line of succession to the heirs at law of the owner for 100 years after the last interment. If no interment is made for a period of 100 or more years after the date of the last interment or if no interment is made for at least 100 years from the date of issuance of the right of interment document, all rights to such space or plot shall automatically revert to the city and no rights to such space or plot shall remain with the purchaser, transferee, or any heirs thereof.
(C42, §§ 72-30, 72-31, 72-32; C54, C62, §§ 13-41, 13-42, 13-43, 13-44, 13-45; C75, C79, §§ 15-42, 15-43, 15-44, 15-45, 15-46; C85, § 15-8; O.11,316; C91, § 15-8; O.13,100, 15,801)

Sec. 34-64. Termination of rights of interment.

(a) A vested right of interment, as provided in section 34-63 of this article, may be waived and shall be terminated or shall revert to the city upon interment elsewhere of the remains of a person entitled thereto, or upon removal of the remains from a single interment space, unless notice to the contrary is given to the city within 90 days after death. The vested right of interment shall be restricted and limited by the provisions of section 34-103 of this chapter.

(b) A family burial plot or restricted burial plot may be deemed abandoned and vested rights of interment terminated if no interment has occurred therein for a period of 100 years. All interment spaces remaining in the family burial plot or other plot shall revert to the city upon the city giving notice to the recorded owner or, if the recorded owner is deceased or his or her

whereabouts unknown, to the heirs of such deceased stating that such interment spaces are deemed abandoned. The notice may be served personally on the owner or the owner's heirs or may be served by the mailing of the notice by certified mail to the owner or the owner's heirs, as the case may be, to their last known address. If the address of the owner or the owner's heirs cannot be ascertained, notice of such abandonment shall be by one publication in a newspaper of general circulation in the county. If such notice is not responded to within 90 days from the date of service, mailing or publication, the interment spaces shall be deemed abandoned, and all right therein reverts to the city.

(c) When remains are removed from an interment space, the vacant space shall revert to the city.
(C42, § 72-30; C54, C62, § 13-43; C75, C79, § 15-44; C85, § 15-9; O.11,316; C91, § 15-9; O.15,801)

Sec. 34-65. Restrictions in right of interment.

All sales of right of interment in burial spaces, lots and plots in the city cemeteries shall be subject to the restrictions provided for in this chapter and in the cemetery rules.
(C42, § 72-33; C54, C62, § 13-46; C75, C79, § 15-47; C85, § 15-10; O.11,316; C91, § 15-10; O.15,801)

Sec. 34-66. Ownership agreement.

The right of interment document and the sections of this chapter and cemetery rules approved by the city council and any amendments thereto shall be the sole agreement between the city and the owner.
(C42, § 72-89; C54, C62, § 13-14; C75, C79, § 15-14; C85, § 15-11; O.11,316; C91, § 15-11; O.15,801)

Sec. 34-67. Notice.

Notice sent to an owner of a right to interment at the last address on file in the office of the parks and recreation department shall be considered sufficient and proper legal notification except as otherwise provided in this chapter.
(C42, § 72-66; C54, C62, § 13-16; C75, C79, § 15-16; C85, § 15-12; O.11,316; C91, § 15-12; O.15,801)

Sec. 34-68. Access roads.

Any road, drive, alley or walk in the cemetery may be used as a means of access to the cemetery or buildings as long as the parks and recreation department maintains it to that purpose. No easement or other designated right is granted to any owner of a right of interment in any road, drive, alley or walk within the cemetery.
(C42, § 72-47; C54, C62, §§ 13-17, 13-18; C75, C79, §§ 15-17, 15-18; C85, § 15-13; O.11,316; C91, § 15-13; O.15,801)

Sec. 34-69. Reserved.

Editor's note—Ord. No. 15,801, § 1, adopted Sept. 9, 2019, repealed § 34-69, which pertained to fees and derived from Code 1991, § 15-176; Ord. No. 11,953; Ord. No. 13,100; Ord. No. 13,131; Ord. No. 13,304; Ord. No. 13,574; Ord. No. 13,779; Ord. No. 14,077; Ord. No. 14,178. the user's attention is directed to § 34-34.

Secs. 34-70—34-95. Reserved.

ARTICLE IV. INTERMENTS AND DISINTERMENTS

Sec. 34-96. Standards for in-ground burial receptacles.

(a) Permanent burial receptacles used in all city cemeteries, except cremation receptacles, receptacles for use in infant burial areas, and as provided in subsection (b) of this section, shall meet the following standards:

(1) Design life: 50 years supporting at surrounding soil's six-foot bottom burial.

(2) Receptacles shall meet the industry standard of 5,000 PSI of the center of the top lid and side walls.

The individual, company, partnership or other legal entity desiring to market or use burial receptacles for burial use in the city must submit to the parks and recreation department certified

copies of tests performed by the National Concrete Burial Vault Association (NCBVA) meeting the above described standards. Upon acceptance of the test results by the parks and recreation director, the director shall give written notification to the applicant submitting the test results that the proposed burial receptacle is certified to be used in the city. Thereafter, any change in design, construction or constituting materials used in the manufacture of the specific burial receptacle shall necessitate submission of revised testing results. Approval of one type of burial receptacle of a manufacturer or retailer does not qualify for certification, any other type produced or sold by such party.

(b) Burials of persons for whom such a receptacle would violate an established religious custom, rule or practice, need not be in a receptacle as described above, but must comply with other requirements established by the parks and recreation board for such burials.
(C42, § 72-22.01; O.5458; C54, C62, § 13-33; C75, C79, § 15-33; O.10,729; C85, § 15-14; O.11,316; C91, § 15-14; O.13,670, 15,801)

Sec. 34-97. Interments subject to law; interment in places other than cemeteries.

All interments, disinterments and removals shall be made subject to the orders and laws of the properly constituted authorities of the city, county and state and to the provisions of this chapter and all rules and regulations of the parks and recreation board. No interment shall be made anywhere other than in cemeteries established in accordance with city ordinances or state laws.
(C42, § 72-10, O.5530; C54, C62, § 13-19; C75, C79, § 15-19; C85, § 15-15; O.11,316; C91, § 15-15; O.15,801)

Sec. 34-98. Application for interment.

(a) At the time of interment in any interment space or plot, written application by the owner of record or by the owner's authorized representative, including a designee pursuant to declaration under Iowa Code Chapter 144C must be made on forms provided by the parks and recreation department and filed in the office of the cemetery manager. For multiple owners of an interment space or plot, the written authorization of any one owner may be deemed sufficient if the deceased is a member of the immediate family of the person so authorizing. No other person may be interred in any plot without the written consent of all the owners of the interment space or plot who are recorded as owners on the records of the parks and recreation department or their heirs.

(b) All orders must be completed on order forms provided by the cemetery office. The parks and recreation board or the city shall not be held responsible for any mistake occurring from the lack of precise and proper instructions on such order form, such as to the burial space or as to the particular space, size and location in a space or plot where interment is desired.

(c) The city shall not be responsible for the interment permit nor for the identity of the person sought to be interred.

(d) The city shall not be liable for any delay in the interment of a body if a protest to the interment has been made or this chapter has not been complied with. The city shall be under no duty to recognize any protests of interment unless they are in writing and filed in the office of the parks and recreation department.

(e) If instruction regarding the location of an interment space cannot be obtained or is indefinite or if for any reason the interment space cannot be opened where specified, the cemetery manager may, in his or her discretion, open an interment space at such location as he or she deems best and proper so as not to delay the funeral, and the city shall not be liable in damages for any error so made.

(f) Application for interment, commonly referred to as a "burial order", must be filed with the cemetery office at least 24 business hours prior to any interment; application for disinterment with the proper permit, as required by state statute, attached thereto must be filed with the cemetery office at least one week prior to any disinterment.

(g) The charges for the cemetery services must be paid at the time of the issuance of the order for interment or disinterment and removal, except that, upon the approval of the parks and recreation director based upon a determination of no current owing balances within the city cemeteries, no history of delinquent payments, and operation in business at least one year, funeral homes within the greater Des Moines metropolitan area may be billed monthly.
(C42, §§ 72-13, 72-14, 72-15, 72-16, 72-17, 72-19, 72-20, 72-28; C54, C62, §§ 13-22, 13-23, 13-24, 13-25, 13-27, 13-18, 13-29, 13-39; O.7453; C75, C79, §§ 15-22, 15-23, 15-24, 15-25, 15-27, 15-28, 15-29, 15-40; C85, § 15-16; O.11,316; C91, § 15-16; O.15,801)

Sec. 34-99. Reservation of right to correct errors.

The city reserves and shall have the right to correct any errors that may be made by it either in making interments, disinterments or removals or in the description, transfer or conveyance of any interment space, either by canceling such conveyance and substituting therefor and conveying in lieu thereof other interment space of equal value and similar location, as far as possible, or as may be selected by the city, in the sole discretion of the city. If such error shall involve the interment of the remains of any person in such interment space, the city reserves and shall have the right subject to state statutes to remove and transfer the remains so interred to such other interment space.
(C42, § 72-18; C54, C62, § 13-26; C75, C79, § 15-26; C85, § 15-17; O.11,316; C91, § 15-17; O.15,801)

Sec. 34-100. Interment prohibited without payment for burial space.

No interment shall be permitted or memorial placed in or on any interment space or plot not fully paid for.
(C42, § 72-21; C54, C62, § 13-30; C75, § 15-30; O.9604; C79, § 15-30; C85, § 15-18; O.11,316; C91, § 15-18; O.15,801)

Sec. 34-101. Interment of more than one body or cremation urn.

Not more than one body shall be interred in one grave, except for the coincident deaths of a mother and infant or multiple born children. Multiple burials, not to exceed four, may occur of cremated remains on one grave, crypt or niche. An interment plot may contain the non-cremated remains of one person plus up to the cremated remains of three persons. The cremated remains of persons who have donated their bodies for scientific, medical, or educational purposes may be con-mingled with other cremated remains and interred in specially designated locations for such interments. All statutes, ordinances, cemetery rules and regulations pertaining to the recording of the deceased persons' names in the cemetery records and the use of acceptable memorials shall apply.
(C42, § 72-21; C54, C62, § 13-31; C75, C79, § 15-31; C85, § 15-19; O.11,316, 11,386; C91, § 15-19; O.15,801)

Sec. 34-102. Subdivision of plots.

The subdivision of interment plots is not allowed.
(C42, § 72-37; C54, C62, § 13-50; C75, C79, § 15-51; C85, § 15-20; O.11,316; C91, § 15-20; O.15,801)

Sec. 34-103. Interment in restricted burial plot.

If a right of interment document or other document or agreement regarding an area in a city cemetery has been granted to an association, organization, brotherhood or sisterhood, religious group, denomination or similar entity exclusive of a family plot or veterans' plot, interments shall be limited to the actual members of that entity, to their spouses and to immediate members or families of members. All interments shall be governed by the particular laws and rules and regulations of the particular entity owning the right of interment unless in conflict with this chapter or the rules and regulations of the parks and recreation department, except that this shall

not operate to restrict any right to free exercise of religion unless inconsistent with public health or safety.
(C42, § 72-23; C54, C62, § 13-34; C75, C79, § 15-34; C85, § 15-21; O.11,316; C91, § 15-21; O.15,801)

Sec. 34-104. Disturbing caskets.

Once a casket or memorial urn containing human remains is within the confines of the cemetery, no funeral director or his or her embalmer, assistant, employee or agent shall be permitted to open the casket or urn or to touch the remains without the consent of the designated family member or authorized representative of the deceased or without a court order.
(C42, § 72-5; C54, C62, § 13-6; C75, C79, § 15-6; C85, § 15-22; O.11,316; C91, § 15-22; O.15,801)

Sec. 34-105. Niches or crypts.

Only one memorial urn may be placed in a niche or crypt in the cemetery unless the niche or crypt has been purchased with the written agreement that more than one urn may be placed therein or was purchased prior to December 8, 1941. All remains placed in niches and mausoleums or burial in-ground must be sealed in metal containers.
(C42, § 72-43; C54, C62, §§ 15-38, 15-39; C75, C79, §§ 15-58, 15-59; C85, § 15-23; O.11,316; C91, § 15-23; O.15,801)

Sec. 34-106. Sealing of casket.

When an interment is made in a mausoleum, the casket must be metal lined and the crypt must be hermetically sealed, unless the body has been embalmed.
(C42, § 72-86; C54, C62, § 13-123; C75, C79, § 15-117; C85, § 15-24; O.11,316; C91, § 15-24; O.15,801)

Sec. 34-107. Reserved.

Editor's note—Ord. No. 15,801, § 1, adopted Sept. 9, 2019, repealed § 34-107, which pertained to single graves and derived from Code 1962, § 13-38.01; Ord. No. 7453; Code 1975; Code 1979, § 15-39; Code 1985, § 15-25; Ord. No. 11,316; Code 1991, § 15-25; Ord. No. 13,100.

Secs. 34-108—34-135. Reserved.

ARTICLE V. MEMORIALS

Sec. 34-136. Standards for erection.

(a) For the purpose of this chapter, memorial dealers shall be required to furnish to the cemetery manager for approval a blueprint or sketch of the proposed memorial or markers, specifying the size, location in lot, inscription, quality of stone and name of the producer furnishing the stone. Such approval is also required for any alterations made after the erection of the memorial. Monument dimensions must be in conformance with the dimensions designated in the cemetery rules or regulations.

(b) Persons engaged in erecting memorials or other structures are prohibited from attaching ropes to other memorials, trees and shrubs or from scattering their material over adjoining burial spaces, lots or plots or from blocking avenues or pathways or from leaving their material on the grounds longer than is absolutely necessary. They must do as little injury to the grounds, grass, trees and shrubs as possible and must remove all debris and restore the ground and sod to its original condition. Work shall proceed promptly and once initiated shall be continuous until completed.

(c) No material, machinery or other thing for the construction of memorials may be brought into the cemetery until required for immediate use. Such material shall not be placed on lots adjoining the one on which such a structure is to be erected without special permission from the cemetery manager.

(d) No memorial shall be erected in a cemetery in the proximity of a graveside or interment service that is to take place during the progress of the work or on Sundays, city holidays, or after sundown. Installation/erection work shall be done during the cemetery's normal weekday hours or at such other times as may be arranged with the cemetery manager.

(e) Damage done to interment spaces, plots, walks, drives, grounds, trees, shrubs or other property by dealers or contractors or their agents, other than normal use during installation of memorials, shall be repaired at the direction of

and to the satisfaction of the cemetery manager. The cost of repair shall be charged to the dealer or the dealer's contractor.

(f) The cemetery manager has the right to inspect the installation of a memorial or other structure at any time and if the determination is made that cemetery rules are not being followed during the installation, or if the workmanship in placing or erecting a memorial or other structure results in such memorial or other structure not being stable or not sufficiently upright or not sitting at a 90 degree angle for uprights, the cemetery manager may order the installation to stop until the infraction is corrected and may require a corrected installation. The cemetery manager may require a flush monument to be at the same grade as the surrounding grounds and to be leveled. The cemetery manager shall provide a written notice to the installer as soon as possible if any of the following have occurred: (a) the memorial has not been installed correctly; (b) the installer has damaged the property at the cemetery; or (c) other cemetery requirements for installation, including removal of debris or equipment, have not been met. If a memorial sinks, tilts, or becomes misaligned within 12 months of its installation and the cemetery manager believes the cause is faulty installation, the installer shall be given written notification that the installer is responsible to correct the damage, unless the damage is caused by inadequate written specifications and instructions from the cemetery or acts of the cemetery and its agents and employees, including but not limited to running a backhoe over the memorial, carrying a vault or other heavy equipment over the memorial, or opening or closing an interment space adjacent to the memorial.

(g) Engravers and memorial cleaners and all other persons must procure a permit from the cemetery manager before any work in the cemetery is commenced. To secure such a permit the applicant must submit satisfactory evidence of his or her ability to perform properly the work for which he or she has been engaged. The name or inscription on each memorial must correspond with the name and record in the office of the cemetery manager. After being inscribed, no changes shall be made except upon request of the memorial owner or such heirs and by permission of the cemetery manager. No double inscription shall be permitted on the face of a crypt, niche or single marker except for multiple burials as provided in section 34-101 of this chapter.

(h) Plans or diagrams for any foundation necessary for installation of any memorial shall be submitted to the cemetery manager for approval before installation. A permit for installation by a private party shall be obtained no later than ten business days before any work is undertaken. If any party desires that the foundation for any memorial be installed by the parks and recreation department, an application for installation of the foundation shall be signed by the owner of the burial space or plot or his or her agent, giving his or her name, address and the number of the burial space or plot on an application to be furnished by the parks and recreation department. Charges for such work shall be paid for in advance, except that, upon the approval of the parks and recreation director based upon a determination of no current owing balances within the city cemeteries, no history of delinquent payments, and operation in business at least one year, memorial dealers within the greater Des Moines metropolitan area may be billed monthly for foundations installed on their behalf and at their request after completion of setting.

(i) Completed work of erection of memorials is subject to the approval of the cemetery manager who shall report any unsatisfactory erection of a memorial to the parks and recreation director. If the completed work is unsatisfactory and not according to previously approved plans and specifications it may be removed by decision of the parks and recreation director. Memorials showing drill or tool marks or stain from removal of the rubber mat used for sand engraving may be considered as unsatisfactory.

(C42, §§ 72-82, 72-84, 72-84; C54, C62, §§ 13-103, 13-104, 13-105, 13-106, 13-107, 13-109, 13-113, 13-115, 13-116, 13-118, 13-126, 13-127; O.7453; C75, C79, §§ 15-97, 15-99, 15-100, 15-101, 15-103, 15-107, 15-109, 15-110, 15-112, 15-120, 15-121; O.10,685; C85, § 15-26; O.11,316; C91, § 15-26; O.15,801)

Sec. 34-137. Materials.

Structures, other than memorials, columbariums, or mausoleums, either wholly or partially aboveground, shall be constructed only in burial areas so designated by cemetery rules and regulation. Such structures must be made of first-grade granite verified as such by the retailer or manufacturer and must be greater that one foot in height or greater than 15 square feet and greater than 1,000 pounds. Plans, specifications, and design of such structures are subject to the approval of the parks and recreation director or the cemetery manager. Such structures may include remains of one or more persons if the structure is permanently and hermetically sealed to prevent access.
(C42, § 72-86; C54, C62, §§ 13-120, 13-121; C75, C79, §§ 15-114, 15-115; C85, § 15-27; O.11,316; C91, § 15-27; O.15,801)

Sec. 34-138. Guarantee by retail dealers.

(a) Retail dealers of memorials shall sell memorials consisting of first-grade granite and shall guarantee the memorial to be executed in first-grade workmanship. If faults develop within five years due to the setting, treatment or handling of the memorial by the memorial dealer, the memorial will be replaced by the memorial dealer without cost to the city or the owner or the estate of the deceased or any heirs, assignees or successors in interest thereof.

(b) A retail dealer who violates this chapter shall be removed from the list of approved retail dealers.
(C42, § 72-82; C54, C62, §§ 13-100, 13-108; C75, C79, §§ 15-94, 15-103; C85, § 15-28; O.11,316; C91, § 15-28; O.15,801)

Sec. 34-139. Flush marker blocks and sections.

In all blocks and sections of the cemetery designated as flush marker blocks and sections, only memorials in the form of bronze tablets or granite markers set level with the ground at the head of each grave shall be allowed. Marker dimensions shall be as designated in the cemetery rules and regulations.
(C42, § 72-80; C54, C62, § 13-128; O.7453; C75, C79, § 15-122; C85, § 15-29; O.11,316; C91, § 15-29; O.15,801)

Sec. 34-140. Removal.

No memorial shall be removed from the cemetery except by the consent and order of the parks and recreation director and with the written order of the owner or the owner's agent of the interment space. If any memorial, mausoleum or structure becomes unsightly, dilapidated or potentially injurious to the health or safety of the public or cemetery personnel, the parks and recreation director shall have the right either to direct the correction of the condition or to cause the removal of the memorial, mausoleum or structure at the expense of the heirs, assignees or successors in interest or the estate of the deceased if such can be reasonably located or ascertained.
(C42, §§ 72-84, 72-88; C54, C62, §§ 13-114, 13-129, 13-130; C75, C79, §§ 15-108, 15-123, 15-124; C85, § 15-30; O.11,316; C91, § 15-30; O.15,801)

Secs. 34-141—34-165. Reserved.

ARTICLE VI. MAINTENANCE

Sec. 34-166. Perpetual care cemetery fund and trusteeship.

(a) The "perpetual cemetery maintenance fund", also designated and known as the "permanent cemetery maintenance fund", as established by Ordinance 2202, 7453, 11,316 and 15,096, for the perpetual care of the cemeteries shall be maintained for the municipal cemeteries operating as perpetual cemeteries in accordance with Iowa Code Chapter 523I, the Iowa Cemetery Act. Such fund shall be a perpetual trust fund which shall be funded by the deposit of an amount equal to or greater than 20 percent of the gross selling price, or $50.00, whichever is more, for each sale of all rights of interment within the cemeteries. Separate designations within the permanent cemetery maintenance fund shall be made for each municipal cemetery. The fund shall be administered in accordance

with the purposes and provisions of Iowa Code Chapter 523I and in accordance with the investment policy approved by the city council.

(1) The permanent cemetery maintenance fund may also include funds from the following:

a. Contributions in the form of a gift, grant, or bequest.

b. Any accumulated income allocated to principal.

c. Money or real or personal property impressed with a trust by the terms of Iowa Code Chapter 523I.

(2) The interest accumulation from the income from the permanent cemetery maintenance fund shall be used for the care of the cemeteries and shall be in accordance with the definition of perpetual care in this chapter and with the purposes and applicable provisions of Iowa Code Chapter 523I.

(3) The permanent cemetery maintenance fund shall be maintained separate from all operating funds of the municipal cemeteries and the principal of the fund shall not be reduced voluntarily except as specifically permitted by Iowa Code chapter 523I, the Iowa Cemetery Act and applicable administrative regulations.

(b) Pursuant to Iowa Code Section 523I.502, the city shall be the trustee for the permanent cemetery maintenance fund and the city council shall act on the city's behalf as trustee of such fund. The city hereby states and affirms its continued willingness and intention to act as a trustee of the permanent cemetery maintenance fund.

(c) A registry of individuals who have purchased interment rights in the municipal cemeteries operating as a perpetual care cemetery shall be maintained, including the amounts deposited from the sale of interment rights from such cemetery in the permanent cemetery maintenance fund. The parks and recreation department shall maintain for each municipal cemetery a registry of individuals who have purchased interment rights in the cemetery subject to the care fund requirements of the Iowa Cemetery Act, including the amounts deposited in the permanent cemetery maintenance fund.
(C42, § 72-7; C54, C62, § 13-8; O.7453; C75, C79, § 15-8; C85, § 15-31; O.11,316; C91, § 15-31; O.15,096, 15,801)

Sec. 34-167. Reserved.

Editor's note—Ord. No. 15,801, § 1, adopted Sept. 9, 2019, repealed § 34-167, which pertained to fund investment and derived from Code 1942, §§ 72-7, 72-70; Code 1954; Code 1962, §§ 13-9, 13-88; Code 1975; Code 1979, §§ 15-9, 15-82; Code 1985, § 15-32; Ord. No. 11,316; Code 1991, § 15-32.

Sec. 34-168. Use of accumulated interest of permanent cemetery maintenance fund.

The interest accumulation from the permanent cemetery maintenance fund may be used for perpetual care of the cemeteries. Use of funds from the permanent cemetery maintenance fund shall be limited absolutely to the income received from the investment of the permanent cemetery maintenance fund for perpetual care. No part of the principal of such fund shall be voluntarily expended, except as specifically permitted by the Iowa Cemetery Act and applicable administrative regulations.
(C42, §§ 72-8, 72-71; C54, C62, §§ 13-10, 13-9; C75, C79, §§ 15-10, 15-83; C85, § 15-33; O.11,316; C91, § 15-33; O.15,801)

Sec. 34-169. Use of funds from sale of interment rights and other cemetery fees deposited in temporary maintenance fund.

The remaining sums from the sale of rights of interment, after deducting the portion indicated in section 34-166 of this article, shall be consolidated with all other receipts from the cemeteries and shall be placed in a separate fund to be known and designated as the "temporary cemetery maintenance fund," which shall be used solely for the purpose of acquiring additional land for cemetery purposes and for the ordinary care and maintenance of cemeteries. Funds from the temporary maintenance fund may be used to supplement the funds in the permanent cemetery maintenance fund to provide for perpetual care.

Funds from the temporary maintenance fund shall not be used for the care of any interment space, except for the provision of perpetual care.
(C42, § 72-9; C54, C62, § 13-11; C75, C79, § 15-11; C85, § 15-34; O.11,316; C91, § 15-34; O.15,801)

Sec. 34-170. Deposit of funds.

It is understood and agreed between the purchasers of rights of interment and the city that all of the funds paid for such interment spaces may be deposited with other such funds, so that the income shall be used in the general improvement and perpetual care. Funds remaining after deducting the portion indicated in section 34-166 of this chapter and the deposit of such funds shall not be construed as a contract to provide any care for any interment space plot mausoleum or columbarium other than as provided as perpetual care defined in this chapter.
(C42, § 72-72; C54, C62, §§ 13-90, 13-91; C75, C79, §§ 15-84, 15-85; C85, § 15-35; O.11,316; C91, § 15-35; O.15,801)

Sec. 34-171. Acceptance and use of gifts and investment of gift or special care funds.

Special care or gift cemetery funds shall be accepted, held and used in accordance with the city's administrative policy regarding the acceptance and use of gifts and may be invested with and in the same manner as perpetual care funds, and all such funds and such care as may be provided from these funds shall be considered for the general good of the cemetery and of the right of interment owners therein.
(C42, § 72-74; C54, C62, § 13-93; C75, C79, § 15-87; C85, § 15-36; O.11,316; C91, § 15-36; O.15,801)

Sec. 34-172. Private mausoleums or columbariums.

No private mausoleums or columbariums shall be erected in the municipal cemeteries after January 1, 2019 unless, the owner has deposited with the city a sum of money estimated by the parks and recreation director in an amount sufficient to yield an income for the proper care of such structure in perpetuity and is in a location approved by the parks and recreation director. Such deposit shall be in accordance with Iowa Code § 523I.503.
(C42, § 72-75; C54, C62, § 13-94; C75, C79, § 15-88; C85, § 15-37; O.11,316; C91, § 15-37; O.15,801)

Sec. 34-173. Improvements or alterations of spaces or plots.

(a) *Direction and approval.* All improvements or alterations of burial spaces, lots or plots in the cemetery shall be under the direction of and subject to the consent, satisfaction and approval of the parks and recreation director subject to the cemetery rules and regulations.

(b) *Removal.* If improvements or alterations of burial spaces or plots are made without the written consent of the parks and recreation director, the parks and recreation director shall have the right to order them removed, altered or changed at the expense of the owner.
(C42, § 72-39; C54, C62, §§ 13-52, 13-53; C75, C79, § 15-153; C85, § 15-38; O.11,316; C91, § 15-38; O.15,801)

Sec. 34-174. Adornments and arrangements of crypts and niches.

All fittings, adornments, urns, inscriptions, and arrangements of crypts or niches in the cemetery shall be subject to the approval and control of and acceptance or rejection by the parks and recreation director subject to the cemetery rules and regulations.
(C42, § 72-42; C54, C62, § 13-57; C75, C79, § 15-57; C85, § 15-39; O.11,316; C91, § 15-39; O.15,801)

Secs. 34-175—34-200. Reserved.

ARTICLE VII. PUBLIC CONDUCT

Sec. 34-201. Use of walks and grounds.

(a) The walks and roads within the city cemeteries may be used by persons during the times that the cemeteries are open to the public, including for such recreational activities as walk-

ing, jogging, biking, wildlife observation, and dog walking. The grounds of the cemeteries may be used during the times that the cemeteries are open for purposes of attending interment services, visitation of an interment space, tours authorized by the parks and recreation director, and for other activities authorized by the parks and recreation director pursuant to section 34-33(1) of this chapter, and for picnicking and historical exploration within designated areas of the cemeteries. The throwing of objects or playing of lawn games and the flying of drones or model airplanes is not permitted within the city cemeteries.

(b) Flag retirement ceremonies authorized by the parks and recreation director and conducted pursuant to a burn permit issued by Polk County may be conducted on Glendale Cemetery grounds.
(C42, § 72-48; C54, C62, § 13-62; C75, C79, § 15-61; C85, § 14-40; O.11,316; C91, § 15-40; O.15,801)

Sec. 34-202. Hours of operation.

The city cemeteries are open to the public from 6:00 a.m. to 8:00 p.m. year round. No person shall remain in the cemeteries at other times without authorization from the parks and recreation director.
(C42, § 72-63; C54, C62, § 13-79; C75, C79, § 15-77; C85, § 15-41; O.11,316; C91, § 15-41; O.13,100, 13,276, 13,837, 15,801)

Sec. 34-203. Disturbing flowers, trees and animal life.

No person shall remove or injure flowers, either wild or cultivated, or remove, injure or prune trees, shrubbery or plants, except when tending to privately planted flowers, plants, trees or shrubs on a space or plot with permission of the owner. No person, except persons authorized, shall feed, disturb, or remove the birds, fish or other animal life in the cemetery.
(C42, § 72-51; C54, C62, § 13-65; C75, C79, § 15-64; C85, § 15-42; O.11,316; C91, § 15-42; O.15,801, 16,062)

Sec. 34-204. Refreshments.

No refreshments, food or drink shall be consumed within the cemetery in the proximity of, and during the time of, graveside or other interment services.
(C42, § 72-52; C54, C62, § 13-66; C75, C79, § 15-65; C85, § 15-43; O.11,316; C91, § 15-43; O.15,801)

Sec. 34-205. Automobiles, motorcycles and bicycles.

Vehicles and bicycles shall not be driven through the grounds of the cemetery at greater speed than 15 miles per hour, and such vehicles and bicycles must always be driven on the right-hand side of the cemetery roadway. Vehicles and bicycles shall not be parked or come to a full stop in front of an open grave or graveside or other interment services, except to be in attendance at such graveside or other interment services.
(C42, §§ 72-57, 72-58; C54, C62, §§ 13-73, 13-74; C75, C79, §§ 15-71, 15-72; C85, § 15-45; O.11,316; C91, § 15-45; O.15,801)

Sec. 34-206. Peddling or soliciting.

No person shall solicit the sale of any commodity, including but not limited to memorial business or service, within the confines of the cemetery without authorization from the parks and recreation director.
(C42, § 72-59; C54, C62, § 13-75; C75, C79, § 15-73; C85, § 15-46; O.11,316; C91, § 15-46; O.15,801)

Sec. 34-207. Firearms and weapons.

No firearms or other weapons shall be used within the cemetery, unless permitted under section 70-86 of this Code. No person shall carry firearms or weapons within the cemetery except pursuant to a valid permit to carry weapons.
(C42, § 72-60; C54, C62, § 13-76; C75, C79, § 15-74; C85, § 15-47; O.11,316; C91, § 15-47; O.14,259, 15,801)

Sec. 34-208. Signs, notices and advertisements.

No signs, notices or advertisements of any kind shall be allowed in the cemetery, except as authorized by the parks and recreation director. (C42, § 72-61; C54, C62, § 13-79; C75, C79, § 15-75; C85, § 15-48; O.11,316; C91, § 15-48; O.13,684, 15,801)

Sec. 34-209. Smoking prohibited.

(a) No person shall smoke or use tobacco of any kind in or on any cemetery property.

(b) For purposes of this section "smoke" or "smoking" means to carry or exercise control over a lighted cigar, cigarette, pipe, or other lighted smoking equipment.

(c) Tobacco means any product made or derived from tobacco that is intended for human use, including any component, part, or accessory of a tobacco product. This includes, but is not limited to, cigarettes, electronic smoking devices, cigarette tobacco, roll-your-own tobacco, smokeless tobacco, and dissolvable tobacco.

(d) Electronic smoking devices means any device that can be used to deliver an aerosolized solution that may or may not contain nicotine to the person inhaling from the device, including, but not limited to, an e-cigarette, e-cigar, e-pipe, vape pen, e-hookah, or other simulated smoking device.

(e) Nicotine products approved by the United States Food and Drug Administration for tobacco cessation shall be allowed within the cemeteries. (O.14,684, 15,801)

Sec. 34-210. Fireworks and novelties prohibited.

Use or possession of fireworks, as defined in article VI of chapter 46 of this Code and novelties as defined in American Pyrotechnics Association Standard 87-1, Chapter 3 are prohibited in any cemetery.
(O.15,801)

Chapters 35—37

RESERVED

Chapter 38

EMERGENCY SERVICES*

Article I. In General

Secs. 38-1—38-25. Reserved.

Article II. Ambulances

Sec. 38-26. City service fees.
Sec. 38-27. Final determination of fees.
Secs. 38-28—38-55. Reserved.

Article III. Alarms

Division 1. Generally

Secs. 38-56—38-80. Reserved.

Division 2. False Fire Alarms

Sec. 38-81. Definitions.
Sec. 38-82. Reserved.
Sec. 38-83. Reserved.
Sec. 38-84. Standards.
Sec. 38-84.01. Administrative penalties for false fire alarms.
Sec. 38-85. Municipal infractions.
Sec. 38-86. Presumption.
Sec. 38-87. Exemption.
Secs. 38-88—38-115. Reserved.

Division 3. False Police Alarms

Sec. 38-116. Definitions.
Sec. 38-117. Business of alarm agents.
Sec. 38-118. Connection to police alarm communication center.
Sec. 38-119. Monitoring system.
Sec. 38-120. Standards.
Sec. 38-121. Monitoring station's report.
Sec. 38-122. Monitoring station standards.
Sec. 38-123. Notice of disruption of service.
Sec. 38-123.01. Administrative penalties for false police alarms.
Sec. 38-124. Municipal infractions.
Sec. 38-125. Presumptions.

*__Cross references__—Businesses, ch. 30; fire prevention and protection, ch. 46; police, ch. 86.

ARTICLE I. IN GENERAL

Secs. 38-1—38-25. Reserved.

ARTICLE II. AMBULANCES

Sec. 38-26. City service fees.

(a) The city shall charge fees for the use of emergency ambulance services provided by the city through its fire department. Fees for the following emergency ambulance services shall be in the amounts provided in the schedule of fees adopted by the city council by resolution:

(1) Basic life support care, including basic CPR, patient assessment, airway management, splinting, preliminary treatment, and uncomplicated childbirth.

(2) Advanced life support care, including all services in basic life support care in addition to electrocardiograms, performance of cardiac defibrillation, and the administration of intravenous solutions and/or drugs.

(3) Required medical attention provided at the scene which utilizes medical supplies when the patient refuses to be transported to a medical facility.

(b) No fee shall be charged under this section for services which do not result in the transportation of a person or emergency ambulance services rendered by the fire department rescue services when responding to a fire.

(c) In addition to the fees charged in subsection (a) of this section, the city shall charge the user of emergency ambulance services provided by the city through its fire department a mileage fee for transportation from the scene to the medical facility.

(d) The city manager shall maintain accurate records of services and accounts and provide for the collection of the fees established in this section.

(C62, §§ 4A-12, 4A-13; O.8763; C75, § 19-11.01; O.9121; C79, § 19-11.01; O.9683, 10,380; C85, § 19-11.01; O.10,793, 11,548; C91, § 19-11.01; O.11,732, 13,129, 13,826, 14,044, 14,176, 15,667)

Sec. 38-27. Final determination of fees.

(a) *Authority granted to finance department to make final determination of fees.* The finance department is granted the authority to make administrative determinations of fees owed to the city resulting from services provided pursuant to section 38-26 and to hold informal hearings on the determination as provided in this section.

(b) *Notice to patient.* The finance department may initiate administrative proceedings to determine the amount of the fees that are owed as a result of providing those services by sending a notice to the patient by regular mail to the patient's last known address. The notice shall include the following:

(1) The services provided and the amount owed.

(2) That the amount owed will be determined to be final unless appealed by an informal or formal hearing within 30 days of the date of the notice.

(3) That following the hearing process, the appellant is entitled to further challenge the amount owed in court.

(4) That this hearing process must be followed in order to contest the amount in court.

(5) That the final determination can be collected through the debt offset procedures in Des Moines Code sections 3-26 through 3-29.

(6) The notice shall be sent with an appeal form approved by the clerk and instructions as to where to send the form if the patient desires to appeal.

(c) *Appeal.* Patient must file an appeal form approved by the clerk within the times allowed by this section.

(d) *Informal appeals.* If the patient requests an informal appeal, the director shall schedule a hearing by phone conference to be presided over by the director or an appointee of the director. The hearing shall be informal and the presiding officer shall allow the city to present the basis for

the claim and the amount owed and allow the patient to present the basis for his or her claim as to why the fees are not owed or that the amount of the fees is incorrect. The presiding officer may accept any evidence necessary to determine whether the fees are correctly charged to the patient. Following the appeal, the presiding officer shall enter a written administrative order determining whether the debt is owed and the amount of the fees. This order is final for purposes of determining the debt and the amount of the debt for purpose of placing the debt in the Des Moines Offset Program or any other collection efforts that the city decides to pursue unless appealed by the patient. The order shall also state that the order may be appealed to a hearing officer for a formal proceeding pursuant to section 3-21 by written notice to the clerk within 30 days of the date of the order. The order shall be sent by regular mail to the last known address of the patient.

(e) *Formal appeals*. A patient may challenge whether the fees are owed or the amount of the fees following a notice sent pursuant to section (d) or if the patient chooses to appeal an order following an informal appeal by providing written notice of appeal to the city clerk using a form approved by the clerk within 30 days of the notice or the written administrative order. Upon receipt of a notice of appeal, the Clerk shall schedule a hearing pursuant to section 3-21. The city shall bear the burden of showing by a preponderance of evidence that the fees are owed and the amount of the fees is correct. The hearing officer shall issue a written order determining whether the fees are owed and the amount of the fees. This order may be appealed pursuant to section 3-25 by any party to the administrative action.

(f) *Final determination of fees.* Any notice or order that is not appealed within the allowed time period becomes a final agency determination pursuant to Iowa Administrative Code section 40.3(3)(6).
(O.15,635)

Secs. 38-28—38-55. Reserved.

ARTICLE III. ALARMS

DIVISION 1. GENERALLY

Secs. 38-56—38-80. Reserved.

DIVISION 2. FALSE FIRE ALARMS*

Sec. 38-81. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alarm receiving station means any privately owned or maintained installation, arranged to supervise the condition of two or more fire alarm systems, not located on the same premises as the installation, which, upon receipt of a fire alarm, will take the appropriate action.

Alarm user means the person who or organization of any kind which has a fire alarm system to protect the person's or the organization's premises, regardless of whether the person or organization owns or leases the fire alarm system.

False alarm means the activation of fire alarm system through technical failure, malfunction, improper installation, construction activity, system servicing or testing, or the negligence of the owner or lessee of an alarm system or of his or her employees or agents. A false alarm under this division does not include alarm system failures caused by water, gas, electrical, telephone or other transmission lines or devices not under control of an alarm user or his or her agent; the willful act of any person other than the alarm user or his or her agent, servant or employee; and does not include failures due to conditions clearly beyond the control of the alarm user or his or her agents, servants or employees. False fire alarm includes alarms which activate a signal to which the fire department responds with equipment and personnel without regard to whether the alarm is connected to any receiving alarm station. False alarm includes the willful

*__Cross reference—__Fire prevention and protection, ch. 46.

use of an alarm system for purposes other than warning or notification of a fire. A false alarm does not include any activation of an alarm which is caused by storms, tornadoes or other violent weather conditions.

Fire alarm system means an assembly of equipment or devices or a single device designed or intended for use to detect fires by monitoring temperature, humidity or other conditions, including the monitoring of automatic sprinkler systems and all equipment or devices commonly known as fire alarms. A group of buildings with a single ownership, either attached or on a common campus not connected to the fire department communications center, shall be considered a single fire alarm system for the purpose of this division. Any building, group of buildings, or building situated on a common campus subject to a condominium regime shall be, as to common areas for the purposes of this division, considered a single system; if the entire premises subject to the condominium regime, including individual units, is connected to or part of a single integrated alarm system, the entire premises shall be considered to have a single fire alarm system held in common, but if the premises is not so connected, individual units shall be treated as other premises. All other premises not specifically mentioned shall, as to each separate ownership, lease or other interest owning, maintaining or using a fire alarm system, be considered for the purposes of this division to have a separate fire alarm system.

Fire department communications center means the monitoring station for the fire department and is, for purposes of health, building and fire safety codes, the municipal fire alarm system, the fire department alarm system and the remote station service of the city.
(C85, § 11-40; O.11,139; C91, § 11-40; O.14,176, 14,692, 15,385)

Cross reference—Definitions generally, § 1-2.

Sec. 38-82. Reserved.

Editor's note—Ord. No. 14,692, § 1, adopted August 20, 2007, repealed § 38-82, which pertained to connection to fire department communications center and derived from Code 1985, § 11-41; Ord. No. 11,139; Code 1991, § 11-41.

Sec. 38-83. Reserved.

Editor's note—Ord. No. 14,692, § 1, adopted August 20, 2007, repealed § 38-83, which pertained to information required and derived from Code 1985, § 11-42; Ord. No. 11,139; Code 1991, § 11-42.

Sec. 38-84. Standards.

The fire chief shall promulgate rules and regulations setting out standards of quality for fire alarm systems and their installation.
(C85, § 11-43; O.11,139; C91, § 11-43; O.14,692)

Sec. 38-84.01. Administrative penalties for false fire alarms.

(a) The fire department is authorized to impose administrative penalties upon fire alarm users who have one or more false alarms per calendar year. The administrative penalty for each false fire alarm shall be as provided in the schedule of administrative penalties adopted by the city council by resolution. Notice of violation, with the applicable penalty for such violation noted thereon, shall be issued by the fire chief or the chief's authorized representative to the violator. Penalties shall be paid in full within 30 days of the issuance of the notice. The notice of violation and appeal by the violator shall be pursuant to and in conformance with section 46-5 of this Code.

(b) The administrative penalties set out in the schedule of administrative penalties shall be charged in lieu of the fines and penalties provided for in section 38-85, unless the violator refuses to correct the violation and pay the scheduled administrative penalty, or the fire chief or the chief's authorized representative determines that immediate enforcement action by misdemeanor or municipal infraction prosecution pursuant to section 1-15 is, in view of the particular circumstances of the case, necessary to achieve compliance with the requirements of this article. The fire department shall maintain a record of all violations, administrative penalties charged or other enforcement actions taken.
(O.14,176, 14,208, 15,859)

Sec. 38-85. Municipal infractions.

(a) Any fire alarm user who has a false fire alarm shall be deemed to have committed a municipal infraction. The first false fire alarm

within the calendar year shall be deemed the first offense punishable by a civil penalty not to exceed $500.00. The second and each subsequent false alarm within a calendar year shall be a repeat offense, punishable by a civil penalty not to exceed $750.00.

(b) No alarm which occurs within 14 days of the date of notification of the installation of a new alarm or alarm system shall be considered a false alarm.
(C85, § 11-44; O.11,139; C91, § 11-44; 0.14,176)

Sec. 38-86. Presumption.

Lack of evidence of a recent fire at the premises where a fire alarm system has been activated and causes a fire department unit to respond creates a rebuttable presumption the alarm was false.
(C85, § 11-45; O.11,139; C91, § 11-45)

Sec. 38-87. Exemption.

(a) To the extent provided in this section, an alarm, otherwise a false alarm, shall not be considered or counted as a false alarm if activated during the period of time and within the scope of a written exemption granted by the fire chief under this section.

(b) The fire chief may exempt a fire alarm system newly installed, constructed or repaired or reconstructed or otherwise physically altered or a system which is in need of repair from having alarms counted as false under section 38-85 of this division, but only to the extent provided in this section.

(c) Any exemption granted by the fire chief shall be in writing and shall be based upon a written plan specifically addressing measures to be taken to eliminate or reduce start-up problems with a new system or repair problems with a system which is not properly functioning. An alarm which would have been false, except for an exemption, is nonetheless false if it occurs for a reason not addressed by the plan upon which the exemption is based.

(d) The exemption granted under this section may be for no more than 30 days in one calendar year, provided the fire chief may extend such exemption for a period not to exceed 20 days and, further provided, additional exemptions, not to exceed 30 days may be granted only by resolution of the city council.
(C85, § 11-46; O.11,139; C91, § 11-46)

Secs. 38-88—38-115. Reserved.

DIVISION 3. FALSE POLICE ALARMS*

Sec. 38-116. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alarm agent means any person who engages in the activity of altering, installing, leasing, maintaining, repairing, replacing, selling, servicing alarm systems, or who causes any of these activities to take place.

Alarm device means any part of an alarm system.

Alarm system means an assembly of equipment or devices arranged to send a signal to a remote receiving station to make known the occurrence of a robbery or an attempted robbery or an unauthorized intrusion requiring urgent attention and to which the police are expected to respond and includes both automatic and manually operated systems. The term "alarm system" shall include the terms "automatic holdup alarm system," "burglar alarm system," "holdup alarm system," and "manual holdup alarm system." Alarm systems which monitor temperature, humidity or any other condition and all other alarms including fire alarms not directly related to the detection of an unauthorized intrusion into a premises are specifically excluded from the term "alarm system" as used in this division.

Alarm user means the person who or organization of any kind which uses an alarm system to protect the person's or organization's premises, regardless of whether the person or organization owns or leases the system and any person on which premises an alarm system is maintained

*__Cross reference—__Police, ch. 86.

with the city except for alarm systems on motor vehicles. If, however, an alarm system on a motor vehicle is connected with an alarm system at a premises, the person using such system is an alarm user. Also excluded from this definition and from the coverage of this division are persons who use alarm systems to alert or signal persons within the premises in which the alarm system is located of an attempted unauthorized intrusion or holdup attempt; provided, however, if such a system employs an audible signal emitting sounds or a flashing light or beacon designed to signal persons outside the premises, such system shall be within the definition of an alarm system and shall be subject to this division.

False alarm means the activation of an alarm system through technical failure, malfunction, improper installation, or the negligence of the owner or lessee of an alarm system or of his or her employees or agents. False alarm under this division does not include alarm system failures caused by transmission lines not under control of an alarm user or alarm agent; the willful act of any person other than the alarm user or an agent, servant or employee of the alarm user or alarm agent; and does not include failures due to conditions clearly beyond the control of the alarm user or alarm agent. False alarm includes the willful use of an alarm system for purposes other than warning or notification of an unauthorized intrusion or a robbery or attempted robbery. A false alarm does not include any activation of an alarm which is caused by storms, tornadoes or other violent weather conditions.

Local alarm system means a signaling system which when activated causes an audible or visual signaling device or both to be activated in or on the premises within which the system is installed. A local alarm system is an alarm system.

Monitoring station means an office to which alarm systems are connected where human operators supervise either the alarm circuits or answer incoming telephone alarm signals and where human operators then notify the police department or a private detective agency to investigate the alarm system.

Police alarm communication center means the central communication and dispatch center of the police department.

Remote signaling system means an alarm signaling system which when activated by an alarm device transmits a signal from an alarm system to a monitoring station where appropriate action is taken to investigate and respond to the signal.

(C85, § 17-70; O.11,105; C91, § 17-70)

Cross reference—Definitions generally, § 1-2.

Sec. 38-117. Business of alarm agents.

(a) Under this division, each alarm agent must provide the chief of police or his or her designee the alarm agent's name, business address, telephone number and the names and telephone numbers of at least three people who may be contacted outside of normal business hours. In addition, for each alarm system serviced by the alarm agent, the alarm agent shall provide within 14 days of installation the following:

(1) The name and address of each alarm user; if a corporate alarm user, the names and addresses of the directors and a local registered agent shall be supplied.

(2) The type of alarm system being used.

(b) It shall be the duty of each alarm agent to notify the chief of police or his or her designee of any change in the required information within 14 days of such change. Failure to provide the information on each alarm user required by this section is a misdemeanor.

(C85, § 17-71; O.11,105; C91, § 17-71; O.11,895)

Sec. 38-118. Connection to police alarm communication center.

Under this division, no alarm agent or other person shall maintain a direct connection or have any automatic dialing system which directly engages the police alarm communication center.
(C85, § 17-72; O.11,105; C91, § 17-72)

Sec. 38-119. Monitoring system.

(a) No person shall operate a monitoring station under this division unless he or she has first provided the chief of police or his or her designee, for each location where a station is to be located, the name, address and telephone number of the monitoring station and the type of business organization it is (individual, partnership, or corporation); if the monitoring station is an individual proprietorship, the name, address, and telephone number of the owner; if a partnership, the name, address, and telephone number of each partner; if a corporation, the names and addresses of the directors, principal officers, and stockholders (any stockholder holding more than 20 percent of the corporation's authorized and issued stock), and the state where incorporated. It is the duty of any person operating a monitoring systems to notify the alarm user of any activation of an alarm system.

(b) Failure to provide the information required by this section or to notify an alarm user as required is a misdemeanor.
(C85, § 17-73; O.11,105; C91, § 17-73)

Sec. 38-120. Standards.

The chief of police shall promulgate rules and regulations setting out standards for the quality of alarm systems under this division and their installation. No alarm system shall be installed which does not meet the standards thus promulgated. Any person installing a system in violation of the standards shall be guilty of a misdemeanor.
(C85, § 17-74; O.11,105; C91, § 17-74)

Sec. 38-121. Monitoring station's report.

For the purposes of this division, each monitoring station shall provide the chief of police or his or her designee, within 14 days of the start of each fiscal year and at such other times as the chief of police or his or her designee may request, a complete list of names and addresses of all alarm users in the city to whom or for whom alarm systems are being monitored. Failure to provide the information required by this section is a misdemeanor.
(C85, § 17-75; O.11,105; C91, § 17-75)

Sec. 38-122. Monitoring station standards.

As to each monitoring station subject to this division:

(1) The premises from which the services are performed must meet any applicable fire regulations.

(2) The premises from which the services are performed must be secured in a manner approved by the chief of police or his or her designee to prevent entry by unauthorized persons.

(3) A large enough number of operators must be on duty at all times to ensure that adequate response shall be made to all emergency messages received.

(C85, § 17-76; O.11,105; C91, § 17-76)

Sec. 38-123. Notice of disruption of service.

When an alarm agent's or monitoring station's service to its subscribers is disrupted for any reason by the alarm agent or monitoring station or the alarm agent or monitoring station becomes aware of such disruption, it shall promptly notify its subscribers that protection is no longer being provided. If, however, the alarm agent or the monitoring station has written instructions from its subscriber not to make such notification by telephone during certain hours, the alarm agent shall comply with such instructions.
(C85, § 17-77; O.11,105; C91, § 17-77)

Sec. 38-123.01. Administrative penalties for false police alarms.

(a) The police department is authorized to impose administrative penalties upon police alarm users who have one or more false alarms per calendar year. The administrative penalty for each false police alarm shall be as provided in the

schedule of administrative penalties adopted by the city council by resolution. Notice of violation, with the applicable penalty for such violation noted thereon, shall be issued by the police chief or the chief's authorized representative to the violator. Penalties shall be paid in full within 30 days of the issuance of the notice.

(b) The administrative penalties set out in the schedule of administrative penalties shall be charged in lieu of the fines and penalties provided for in section 38-124, unless the violator refuses to correct the violation and pay the scheduled administrative penalty, or the police chief or the chief's authorized representative determines that immediate enforcement action by misdemeanor or municipal infraction prosecution pursuant to section 1-15 is, in view of the particular circumstances of the case, necessary to achieve compliance with the requirements of this article. The police department shall maintain a record of all violations, administrative penalties charged or other enforcement actions taken.
(O.14,176, 14,208)

Sec. 38-124. Municipal infractions.

(a) Any police alarm user who has a false police alarm shall be deemed to have committed a municipal infraction. The first false police alarm within the calendar year shall be deemed the first offense punishable by a civil penalty not to exceed $500.00. The second and each subsequent false police alarm shall be a repeat offense, punishable by a civil penalty not to exceed $750.00.

(b) No alarm which occurs within 14 days of the date of notification of the installation of a new alarm or alarm system as required by section 38-117 shall be considered a false alarm.
(C85, § 17-78; O.11,105; C91, § 17-78; O.14,176)

Sec. 38-125. Presumptions.

Lack of physical evidence of recent intrusion into a structure which has a alarm system which has caused a police response shall create a rebuttable presumption that the alarm was false.
(C85, § 17-79; O.11,105; C91, § 17-79)

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Chapter 42

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ARTICLE I. IN GENERAL

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ARTICLE II. GRADING, SOIL EROSION AND CONSTRUCTION SITE RUNOFF CONTROL*

DIVISION 1. GENERALLY

Sec. 42-26. Title.

This article shall be known as the grading, soil erosion and construction site runoff control ordinance, may be cited as such, and will be referred to in this article as such.
(C75, § 2-205.25; O.9384; C79, C91, § 2-205.25; O.14,484)

Sec. 42-27. Purpose.

The city council finds that excessive quantities of soil are eroding from certain areas where persons are conducting activities which result in a change in the natural cover, topography or drainage of the land in connection with residential, commercial, industrial, recreational and roadway uses and topography changes can significantly interfere with any existing drainage courses established in the community. The resulting sediment clogs storm sewers and road ditches, causes dust and mud on streets and sidewalks, leaves deposits of silt in creeks and streams, and is considered a major water pollutant. Resulting changes in topography features of a property can negatively impact both public and private property. The purpose of this article is to reduce soil erosion and sedimentation from occurring, along with reducing damages caused by changes in drainage courses, as a result of nonagricultural earth-changing activities within the city by requiring proper provisions for surface and subsurface water disposal and the protection of soil surfaces during and after an earth-changing activity in order to promote the safety, public health, convenience, and general welfare of the community. The further purpose of this article is to comply with the city's National Pollutant Discharge Elimination System permit for the Municipal Separate Storm Sewer System, which in part requires that the city implement a construction site runoff control ordinance to reduce pollutants in stormwater runoff from construction activities sites for which a national pollutant discharge elimination system permit is required.
(C75, § 2-205.26; O.9384; C79, § 2-205.26; O.10,122; C91, § 2-205.26; O.14,029, 14,484)

Sec. 42-28. Definitions.

The definitions found in sections 42-451 and 42-477 shall apply to the provisions of this article, provided, however that the following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Accelerated soil erosion means the rate of soil loss per year leaving the site prohibited by the Polk Soil Conservation District, pursuant to I.C. § 161A.44.

Allowable non-stormwater means only the following: discharges from fire fighting activities; fire hydrant flushings; potable water sources; waterline flushings; uncontaminated groundwater; foundation or footing drains where flows are not contaminated with process materials such as solvents; springs; riparian habitats; wetlands; irrigation water; air conditioning condensate; exterior building wash water when no detergents or other surfactants are used; pavement washwaters where spills or leaks of toxic or hazardous materials have not occurred and when no detergents or other surfactants are used; and de-chlorinated swimming pool water not including filter backwash.

Applicant means:

(1) An owner or developer of land proposed to be graded or his or her representative. Where application is made by the developer, consent shall be required from the legal owner of the premises.

*__Editor's note__—Ord. No. 14,484, § 1, adopted Sept. 12, 2005, amended the title of art. II to read as herein set out. Prior to inclusion of said ordinance, art. II was entitled, "Grading and Soil Erosion Control."

Cross reference—Floodplains, ch. 50.

State law reference—Soil and water conservation generally, I.C. § 161A.1 et seq.

(2) Any public or private utility company which intends to install utility services in trenches which exceed one foot in width.

Certification of completion means a signed written statement by the city engineer that specific construction has been inspected and found to comply with all grading plans and specifications.

City engineer means the director of the city engineering department or his or her duly authorized representative.

Compaction means the densification of a fill or disturbed surface by mechanical means.

Constructed channel means a ditch graded and shaped with earth or other materials or revetment lined, for the conveyance of stormwater, which is owned and operated by the city, or for which the city has a flowage easement.

Director means the director of the city public works department or his or her duly authorized representative.

Disturbed area means an area of ground on which the existing vegetation has been removed or damaged so as to be likely to cause accelerated soil erosion.

Earth change means a manmade change in the natural cover or topography of land, including cut and fill activities, which may result in or contribute to soil erosion or sedimentation.

Erosion means the process by which the ground surface is worn away by action of wind, water, gravity, or a combination thereof.

Excavation or cut means any act by which soil or rock is cut into, dug, quarried, uncovered, removed, displaced, or relocated. Also included shall be the conditions resulting therefrom.

Fill means a deposit of earthen materials, rubble or other approved materials placed or constructed by artificial means.

Flood fringe means the portion of the floodplain between the floodway and the flooding limits of a 100-year flood.

Grading means any stripping, excavating, filling, stockpiling, or any combination thereof of soil, which shall also refer to the land in its excavated or filled condition.

Municipal separate storm sewer system (MS4) means the conveyance or system of conveyances including storm sewers, roadways, roads with drainage systems, catch basins, curbs, gutters, ditches, public drainageways, constructed channels and storm drains owned or operated by the city.

Natural drainageway or *drainageway* means an existing ditch in as natural a condition as possible, which can be maintained and function adequately as such in the opinion of the city engineer.

National pollutant discharge elimination system (NPDES) permit means a permit issued by the EPA or by the Iowa Department of Natural Resources.

NPDES General Permit No. 2 means a permit issued by the Iowa Department of Natural Resources to applicants covering stormwater discharge associated with activity from construction sites.

Permanent soil erosion control measures means those control measures which are installed or constructed to control such erosion and which are maintained after completion of the project.

Pollutant means material other than stormwater and allowable non-stormwater which enters the MS4 or waters of the state that degrades the water quality and material other than pollutants for which a NPDES permit has been issued and the discharge is in compliance with such NPDES permit.

Pollution control best management practices (BMPs) means schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to prevent or reduce the pollution of waters of the state and MS4. Pollution control BMPs also include treatment requirements, operating procedures, and practices to control facility site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw material storage.

Public nuisance means whatever is injurious to health, or unreasonably offensive to the senses or is a menace to or hazard to the public health, welfare or safety, including without limitation, the runoff of pollutants from a construction site, or as provided in sections 42-347 and 42-348 of this chapter.

Rubble means dirt, stone, brick, or similar inorganic material or street sweepings.

Sediment means settled out soil particles which have been transported by water and later deposited.

Site means any lot or parcel of land or contiguous combination thereof, under the same ownership or control, where grading is to be performed or permitted.

Slope means an inclined ground surface, the inclination of which is expressed as a ratio of horizontal distance to vertical distance.

Soil means naturally occurring surficial deposits overlying bed rock.

Storm sewer means any pipe that conveys stormwater, allowable non-stormwater or permitted discharges for which a NPDES permit has been issued.

Stormwater pollution prevention plan (SWPPP) means the plan required to be submitted by applicants, including identified pollution control BMPs to control pollutants in stormwater runoff that enters the city's MS4 from construction sites during construction, as required and as defined by the applicant's NPDES general permit No. 2.

Stripping means any activity which removes or significantly disturbs the vegetative surface cover, including clearing and grubbing operations.

Structure means anything constructed or erected with a fixed location on the ground, or attached to something having a fixed location on the ground. Among other things, structures include buildings, sited mobile homes, billboards, poster panels and retaining walls.

Temporary soil erosion control measures means interim control measures which are installed or constructed for the control of soil erosion until permanent soil erosion control is effected.

Time schedule means an itemized sequential listing of events concerning stripping, grading and erosion control measures which are to be pursued according to the approved schedule.

Waters of the state means any river, stream, lake, pond, marsh, watercourse, waterway, well, spring, reservoir, aquifer, irrigation system, drainage system and any other body or accumulation of water, surface or underground, natural or artificial, public or private, which are contained within, flow through or border upon the state or any portion thereof.
(C75, § 2-205.27; O.9384; C79, § 2-205.27; C91, § 2-205.27; O.11,709, 14,484, 15,690)
Cross reference—Definitions generally, § 1-2.

Secs. 42-29—42-55. Reserved.

DIVISION 2. COMPLIANCE FOR SITE PLAN OR SUBDIVISION APPROVAL OR CERTIFICATE OF OCCUPANCY

Sec. 42-56. Site plans and subdivisions.

Except as permitted under section 42-86 of this article, no site plan or subdivision shall be approved or conditionally approved in accordance with article 9 of chapter 135 or with sections 106-72(j) and 106-102(n) of this Code, respectively, unless such site plan or subdivision shall include soil erosion and sediment control measures consistent with the requirements of this article and related land development regulations.
(C75, § 2-205.28; O.9384; C79, C91, § 2-205.28; O.15,819)

Secs. 42-57—42-85. Reserved.

DIVISION 3. PERMITS AND FEES

Sec. 42-86. Permits required.

(a) No person other than authorized city personnel or city contractors shall grade, strip, excavate, fill, stockpile or cause any non-

agricultural earth change on any site, or install drainage pipe in public or private drainageways, without a grading permit issued by the city engineer for any of the following:

(1) Platting of land pursuant to chapter 106, pertaining to subdivisions, of this Code.

(2) Development of land for which a site plan is required, pursuant to article 9 of chapter 135 of this Code.

(3) Installation of utility improvements in trenches that are greater than one foot in width or underground appurtenances with an excavated surface area greater than 400 square feet by a public or private utility company.

(4) Excavation or the creation of any disturbed surface of 500 square feet or more of cumulative area within 100 feet of a lake, pond, river, stream, recognized drainageway or within the defined flood fringe of a river or stream.

(5) Excavation, fill, or grading that modifies or alters the flow of stormwater and which effects adjacent or abutting property.

(6) Any excavation or cause of earth change more than an average of two feet in depth across 2,500 square feet or more of area, or creation of a disturbed area more than 20,000 square feet in area, excluding basement excavations and backfill, utility service connections for one- or two-family residential dwellings, and utility trenches no greater than one foot in width. This exception does not apply to construction activity which is part of a larger common plan of development that requires a NPDES General Permit No. 2.

(7) Any fill of dirt, stone, brick, concrete, soil or similar material covering a cumulative area larger than 2,500 square feet.

(8) Stockpiling of any granular construction material in excess of 5,000 cubic yards on any site.

(b) A grading permit will not be necessary for any of the activities identified in subsection (a) where, prior to formal application, the applicant receives from the city engineer a written statement that the planned work or final structures or topographical changes, as presented by the applicant to the city engineer prior to formal application, will not result in or contribute to accelerated soil erosion or sedimentation, will not significantly interfere with any existing drainage course, and will comply with the requirements of the tree removal and mitigation ordinance codified in article X of chapter 42 of this Code. A grading permit will also not be required for work performed by city crews or for city construction projects under direct control of the city engineer.

(c) Persons exempt from permitting requirements are nonetheless subject to illicit discharge regulations found in article IX of this chapter.
(C75, § 2-205.30; O.9384; C79, C91, § 2-205.30; O.11,709, 11,945, 13,503, 14,029, 14,276, 14,484, 14,708, 14,890, 15,690, 15,819)

Sec. 42-87. Application data required.

(a) Plans and specifications shall accompany each grading permit application and shall contain the following data unless otherwise included in the information required to be set forth in a preliminary plat or site plan;

(1) A vicinity sketch at a scale of one inch to 400 feet or larger indicating the site location as well as the adjacent properties within 500 feet of the site boundaries.

(2) A boundary line survey of the property on which the work is to be performed, unless waived by the city engineer.

(3) A plan of the site at a scale of one inch to 100 feet or larger, on 24-inch by 36-inch reproducible sepia, vellum or Mylar showing the following:

a. The names, addresses, and telephone numbers of the landowner, developer, and petitioner.

b. A time schedule indicating the anticipated starting and completion

dates of the development's construction sequence and the time of exposure of each area prior to the completion of effective erosion and sediment control measures.

c. A SWPPP for sites of one acre or more.

d. Existing topography with contour intervals at least every two feet of elevation change with a minimum of two contour lines for each site.

e. Proposed topography with contour intervals at least every two feet of elevation change with a minimum of two contour lines for each site.

f. Location of any structure or natural feature, including existing tree canopies, rock outcrops, landslide area, springs and streams and other water bodies and any areas subject to flooding on the site or within 50 feet of the site boundary line. The plan must be accompanied by a tree removal and mitigation plan containing the information required by section 42-544 of the tree removal and mitigation ordinance.

g. Location of any proposed structures or development on the site.

h. Elevations, dimensions, location, extent, and the slope of all proposed grading.

i. The estimated total cost of the required temporary and permanent soil erosion control measures if such application for the grading permit is made pursuant to chapter 106, pertaining to subdivisions, of this Code.

j. Plans of all drainage provisions, retaining walls, cribbing, planting, erosion control measures, or other temporary or permanent soil erosion control measures to be constructed in connection with or as part of the proposed work.

k. A map or other document sufficient to show the drainage area of land tributary to the site and estimated runoff of the area served by any drains.

l. A soils report for the plat by a licensed professional engineer experienced in soils investigation. The content of such report shall be at the discretion of the licensed engineer, shall show general soil conditions, and shall include recommendations as to the adaptability of such soils for the proposed development. The city engineer may, in his or her discretion, waive this requirement.

m. The location of all soil borrow or spoil sites and the proposed routes from the borrow or spoil sites to the job site.

n. Certification by a licensed engineer, architect or landscape architect.

o. A stormwater runoff control plan in compliance with section 42-561.

(b) Small in-fill projects located on residential lots that exceed the area limits of section 42-86(a)(6), but are less than one acre, may be exempt from submitting a plan if, in the opinion of the city engineer, it has been demonstrated that adequate preventative measures will be taken to prevent any accelerated soil erosion or sedimentation or interference with any natural drainageway or storm sewer or constructed channel, and no more than five mature trees would be removed by such project.
(C75, § 2-205.31; O.9384; C79, § 2-205.31; O.10,558; C91, § 2-205.31; O.14,029, 14,484, 14,708, 14,890, 16,427)

Sec. 42-88. Permit application; procedure.

(a) An application for a grading permit shall be prepared by a licensed engineer, architect or landscape architect experienced in soil erosion and sedimentation control methods and techniques and shall comply with the requirements of section 42-87 of this division. Applications for small fill projects located on residential lots that exceed

the area limits of section 42-86(a)(6), but are less than one acre, may be exempt from being prepared by a licensed engineer, architect or landscape architect if, in the opinion of the city engineer, it has been demonstrated that adequate preventative measures will be taken to prevent any accelerated soil erosion or sedimentation or interference with any existing drainage course. A separate application shall be required for each grading permit. No such grading permit shall be issued until the application therefor has been approved by the city engineer

(b) Within 15 working days after receiving the application for the grading permit, the city engineer shall take action to either approve, approve subject to conditions, or disapprove the application. Failure by the city engineer to act within the time specified in this subsection shall be deemed to be a grant of approval of the application as submitted, provided that the application as submitted does not conflict with any existing ordinance, statute, rule or law affecting the subject property.

(c) The city engineer shall promptly notify the applicant in writing of the action taken. If the application is approved, the city engineer shall cause his or her written verification of approval to be affixed on the application along with the date of approval. In case of disapproval or approval subject to conditions, the reasons therefor shall be indicated thereon and a copy shall be returned to the applicant for revision in accordance with the action taken. The applicant shall then submit the revised application for certification by the city engineer in accordance with the procedures set forth in this section.

(d) The engineering department shall retain the duly certified application in the department's files and shall transmit without charge one copy of the application to the applicant and to the community development department.

(e) Grading permits shall not be issued where:

(1) In the opinion of the city engineer, the proposed work would cause hazards to the public health, safety or welfare; or

(2) The proposed work fails to conform to the standards set forth in division 5 of this article.

(f) If the city engineer has denied or conditionally approved an application for a grading permit, the applicant may, upon notice to the city engineer, appeal in whole or in part any determination or action of the city engineer made within the scope of this division. Appeal shall be made without cost by providing written notification of the appeal to the city engineer which is received by the city engineer within 90 days after the date of the action from which appeal is brought.

(g) The city engineer shall decide all appeals within 45 days after written notification of the appeal has been received by the city engineer, provided that the appellant may agree to a longer time period, not to exceed 60 days after the written notification of the appeal has been received by the city engineer. Failure to decide the appeal within such period shall have the effect of overturning the city engineer's disapproval and approving the application as appealed. At the hearing, the appealing party shall be presented a reasonable opportunity to present his or her views. Decisions of the city engineer may be appealed to the city manager in the same manner as appeals from the action of the city engineer. The determination of the city manager is a final administrative decision.

(h) A grading application that has been denied by the city engineer or the city manager may be resubmitted by the applicant to the city engineer pursuant to the terms of this division, upon payment of appropriate fees.
(C75, § 2-205.32; O.9384; C79, C91, § 2-205.32; O.13,010, 14,029, 14,484)

Sec. 42-89. Permit fees.

(a) At the time of filing an application for a grading permit, the applicant shall pay to the city treasurer a nonrefundable application fee in the amount of $120.00 plus $10.00 for each acre or portion thereof of site area.

(b) A person performing work upon property wholly owned by the federal government may obtain a grading permit for such work without paying the fee described in subsection (a) of this section.
(C75, § 2-205.33; O.9384; C79, C85, § 2-205.33; O.11,548; C91, § 2-205.33; O.11,813, 11,889, 14,029, 14,484)

Sec. 42-90. Extension of time.

If the applicant for the development permit is unable to complete the work within the time specified in the application, he or she may, at least two days prior to the expiration of the permit, present in writing to the city engineer a request for an extension of time, setting forth the reasons for the request for an extension. If such an extension is warranted and the conditions at the site present no accelerated soil erosion, the city engineer shall grant additional time for the completion of the work.
(C75, § 2-205.34; O.9384; C79, C91, § 2-205.34)

Sec. 42-91. Failure to complete work.

For failure to complete the grading work or failure to comply with all requirements, conditions, and terms of the grading permit and if such failure or uncompleted work constitutes a nuisance pursuant to sections 42-347 or 42-348 of this chapter, the city may give notice to the owner to abate such nuisance or cause such nuisance to be abated and, upon failure of the owner to do so, may perform the action necessary to abate such nuisance and assess the cost of abatement against the property, all in accordance with article VI of this chapter and I.C. § 364.12(3)(h). In addition, to the extent such permit has been issued pursuant to an application for site plan or subdivision approval, no further action shall be taken by the city pursuant to such site plan or subdivision application until such time as (i) the city has been reimbursed the costs incurred by it pursuant to the abatement, and (ii) the requirements, conditions and terms of the permit have been completed to the satisfaction of the city engineer and a certification of completion has been issued therefor. The enforcement provisions of this section are in addition to those set out in section 42-183 of this article.
(C75, § 2-205.35; O.9384; C79, C91, § 2-205.35; O.11,709, 15,690)

Sec. 42-92. Modifications of approved plans.

All modifications of the approved grading plans shall be approved by the city engineer. All necessary sustaining reports shall be submitted with any proposal to modify the approved grading plan. No grading work in connection with any proposed modification shall be permitted without the approval of the city engineer. If the proposed modifications are substantial, the city engineer may require a revised grading plan.
(C75, § 2-205.36; O.9384; C79, C91, § 2-205.36)

Secs. 42-93—42-120. Reserved.

DIVISION 4. RESPONSIBILITY OF APPLICANT

Sec. 42-121. Grading operations.

The applicant or the owner of the property or any part thereof shall be responsible for the following:

(1) The prevention of damage to any public utilities or services within the limits of grading and along any routes of travel of the equipment.

(2) The prevention of damage of adjacent property.

(3) Carrying out the proposed work so as not to grade on land so close to the property line as to endanger any adjoining public street, sidewalk, alley, or any other public or private property without supporting and protecting such property from settling, cracking, or other damage which might result.

(4) Carrying out the proposed work in compliance with the approved plans, the requirements of this article, the NPDES General Permit No. 2 covering the property, the SWPPP covering the property, and all

applicable state and federal laws and regulations, and in compliance with section 42-561 of the municipal code.

(5) The prompt removal of excessive soil, miscellaneous debris, or other materials applied, dumped, or otherwise deposited on public streets, highways, sidewalks, or other public thoroughfares during transit to and from the construction site so as to prevent a violation of sections 42-347 and 42-348 of this chapter.

(6) Completing the grading operation and the erosion control measures within the approved time schedule.

(7) Conducting any earth changes in such a manner as to effectively reduce accelerated soil erosion and resulting sedimentation.

(8) Designing, implementing and maintaining acceptable soil erosion and sedimentation control measures, in conformance with the Soil Conservation Districts Law, I.C. § 161A.1 et seq., and the adopted rules of the Polk Soil Conservation District as they pertain to erosion control and which effectively reduce accelerated soil erosion.

(9) Designing, constructing and completing all earth changes in such manner that the exposed area of any disturbed land shall remain exposed for the shortest possible period of time so as to prevent a violation of sections 42-347 and 42-348.

(10) Updating, amending, implementing and maintaining the SWPPP, making required inspections and keeping inspection reports, and retaining all plans and reports, in accordance with the applicant's NPDES General Permit No. 2 requirements.

(11) Carrying out the proposed work in compliance with any applicable tree removal and mitigation plan approved pursuant to the tree removal and mitigation ordinance codified in Article X of Chapter 42 of this Code.

(C75, § 2-205.37; O.9384; C79, C91, § 2-205.37; O.11,709, 14,484, 14,708, 14,890, 15,690, 16,427)

Sec. 42-122. Maintenance requirements.

The applicant for the grading permit and owner shall be responsible for properly carrying out all soil and sedimentation control measures under this article in accordance with the approved grading plan and, when applicable, the SWPPP. All subsequent owners of property as to which such measures have been taken shall maintain all temporary and permanent erosion control measures, retaining walls, structures and other protective devices.

(C75, § 2-205.38; O.9384; C79, § 2-205.38; O.11,709; C91, § 2-205.38; O.14,484)

Secs. 42-123—42-150. Reserved.

DIVISION 5. DESIGN STANDARDS

Sec. 42-151. Minimum standards.

(a) All grading plans and specifications, including extensions of previously approved plans, shall include provisions for erosion and sediment control in accordance with but not limited to the standards contained in the Iowa Guidelines for Soil and Water Conservation in Urban Areas published by the state department of soil conservation. Copies of such standards shall be available for inspection in the office of the city engineer.

(b) Sediment caused by accelerated soil erosion shall be removed from runoff water before it leaves the site of the earth change.

(c) Any temporary or permanent facility designed and constructed for the conveyance of water around, within, through or from the earth change area shall be designed to limit the water flow to a nonerosive velocity, as set forth in the design standards for public improvements adopted by the city engineer.

(d) Temporary soil erosion control facilities shall be removed and earth change areas graded and stabilized with permanent soil erosion control

measures, all pursuant to the approved time schedule and to approved standards and specifications as prescribed by the Polk Soil Conservation District and the Soil Conservation Service of the U.S. Department of Agriculture.

(e) Unless the approved plan designates temporary construction erosion control measures prior to any initial grading, permanent soil erosion control measures for all slopes, channels, ditches, or any disturbed land area shall be completed within 15 workable days after final grading or the final earth change has been completed.

(f) Fill sites shall be leveled and compacted at maximum intervals of 30 days. Interim slopes, cut or fill, shall not exceed a slope of three feet horizontal to one foot vertical without engineering justification for a steeper slope.

(g) All grading plans and specifications, including extensions of previously approved plans, shall comply with the requirements of the tree removal and mitigation ordinance codified in article X of chapter 42 of this Code.
(C75, § 2-205.39; O.9384; C79, C91, § 2-205.39; O.11,709, 14,890)

Secs. 42-152—42-180. Reserved.

DIVISION 6. INSPECTIONS, ENFORCEMENT AND CERTIFICATION OF COMPLETION

Sec. 42-181. Certification of completion.

(a) The requirements of this article shall be enforced by the city engineer. The applicant's engineer shall inspect the work and certify the satisfactory completion of all work shown on the approved plans. Such certification shall include all required soil testing of compaction unless otherwise waived by the city engineer.

(b) Upon satisfactory completion of all approved grading plans and other requirements, the city engineer shall issue a certification of completion.
(C75, § 2-205.40; O.9384; C79, C91, § 2-205.40; O.11,709)

Sec. 42-182. Notice of violations—Administrative penalties.

(a) The city engineer or the director or any police officer is authorized to issue a notice of violation imposing an administrative penalty upon:

(1) Any applicant or owner of any site for failure to obtain a grading permit required under this article.

(2) Any applicant or owner of any site or any contractor performing grading work without a grading permit as required under this article.

(3) Any applicant or owner of any site for grading work for which a grading permit has been issued and for which no certification of completion has yet been issued who fails to perform an act required by this article or who commits an act prohibited by this article.

(b) The administrative penalty for such violations shall be as provided in the schedule of administrative penalties adopted by the city council by resolution.

(c) Notice of violation, with the applicable penalty for such violation noted thereon, shall be issued to the violator by the city engineer or the director or any police officer. Service of the notice may be by regular mail or delivery in person.

(d) Penalties shall be paid in full within 30 days of the issuance of the notice.

(e) The administrative penalties set out in the schedule of administrative penalties shall be charged in lieu of the fines and penalties provided for in section 42-190, unless the violator refuses to correct the violation and pay the scheduled administrative penalty, or the city engineer or the director determines that immediate enforcement action by misdemeanor or municipal infraction prosecution pursuant to section 1-15 is, in view of the particular circumstances of the case, necessary to achieve compliance with the requirements of this article. The engineering department shall maintain a record of all violations, administrative penalties charged or other enforcement actions taken.
(C75, § 2-205.41; O.9384; C79, C91, § 2-205.41; O.14,484)

Sec. 42-183. Determination of pollutants as public nuisance and notice and abatement.

(a) Pollutants deposited or discharged into the MS4 or onto public or private property in violation of section 42-121 are deemed to constitute a public nuisance.

(b) If the city engineer or the director determines that a nuisance exists, the city engineer or director shall give notice of the existence of the nuisance pursuant to article VI

of this chapter and order abatement of such nuisance. The city may cause such pollutant to be removed, after providing the owner of the real property from which the pollutant originated with notice of the need to remove such pollutant and that if not removed the city will cause such removal and will assess the costs for such abatement. The notice shall provide at least a 24-hour period for removal of the pollutant by the property owner prior to the city's removal and notice of the right to a hearing on the finding of a public nuisance pursuant to article VI of this chapter.

(c) Provided, however, that the city may cause such removal without prior notice in the event that such deposit or discharge presents an imminent risk of harm to person or property, and the director declares an emergency on account thereof, pursuant to article VI of this chapter.
(C75, § 2-205.42; O.9384; C79, C91, § 2-205.42; O.11,709, 14,484, 15,690)

Sec. 42-184. Right to assess costs of removal by city.

When the city removes pollutants pursuant to section 42-183, the city may assess the actual costs of removing such pollutants to the owner of the real estate found to be in violation of section 42-121 pursuant to article VI of this chapter, in addition to taking any other action provided for in this article.
(O.14,484, 15,690)

Sec. 42-185. Assessment of costs of removal by city.

The actual cost of removing pollutants from the MS4 or from public or private property shall be paid by the owner of the real property determined to be the source of such discharge or deposit of pollutants, in violation of section 42-121, and such costs shall be assessed against such real estate if not paid by the owner.
(O.14,484)

Sec. 42-186. Certification of assessment for collection.

Upon adoption by the city council, the schedule of assessments for the removal of pollutants from the MS4 or from public or private property and the resolution approving such shall be certified by the city clerk to the county auditor for collection in the manner provided by law.
(O.14,484)

Sec. 42-187. Allocation of costs.

The cost of removing pollutants from the MS4 or from public or private property shall be paid from the proper fund and when collected shall be credited to that fund.
(O.14,484)

Sec. 42-188. Notice of right to administrative hearing on public nuisance.

When the city makes a finding of a public nuisance and/or removes pollutants pursuant to section 42-183, a notice shall be given to the owner of the property subject to assessment of the right to an administrative hearing regarding the existence of and responsibility for the public nuisance, and regarding costs of the removal pursuant to sections 42-358 and 42-358.01.
(O.14,484, 15,690)

Sec. 42-189. Administrative hearing for public nuisance and assessment of costs for removal.

Any person in receipt of a notice pursuant to section 42-188 may have, upon written request pursuant to section 42-358.02 of this chapter, an administrative hearing held pursuant to section 42-358.02 of this chapter to determine if the public nuisance occurred, or to determine if the amount to be assessed is reasonable and if the assessment shall be placed against the subject property.
(O.14,484, 15,690)

Sec. 42-190. Criminal and civil penalties.

(a) Any person who fails to perform an act required by this article or who commits an act prohibited by this article or who resists the enforcement of any section of this article shall be guilty of a misdemeanor punishable by a fine as provided by section 1-15 of this Code.

(b) Any person who fails to perform an act required by this article or who commits an act prohibited by this article or who resists the enforcement of any section of this article shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.
(O.14,484, 15,608)

Sec. 42-191. Inspection and order to terminate construction activities.

(a) The city engineer may enter at all reasonable times in or upon any private or public property to inspect and investigate work being done under a permit issued pursuant to this article and to inspect and investigate conditions and practices which may be a violation of this article or rules of the soil conservation district. The city engineer shall have the authority to issue an order in writing to the owner of the property and/or any person engaged in grading or construction activities on the property, ordering such person or persons to cease and desist from construction activities due to failure to implement or maintain the SWPPP or any pollution control BMPs therein identified. The order shall be delivered by personal service unless the owner or person engaged in grading or construction activities cannot be found within the city, in which event notice shall be by ordinary mail addressed to the owners and/or applicant's last known address and by posting a copy of the notice in a conspicuous place at the construction site.

(b) Construction activities shall cease on the date stated in the city engineer's order and shall not recommence without the prior written approval of the city engineer.

(c) The person to whom the notice is directed may make a written request to the city engineer for a reconsideration and hearing on the cease and desist order and/or abatement order within ten days from the issuance of the order, provided, however, that work on such property shall cease pending the outcome of the hearing.

(d) The request for hearing shall (1) contain the address of the person requesting the hearing and to which all further notices shall be mailed or served, and (2) shall state the basis for the appeal.

(e) The hearing shall be scheduled to be held as soon as practicable and no later than 14 days after the request for hearing was filed with the city engineer. The person requesting the hearing shall be notified in writing or by telephone of the date and place of such hearing at least three days in advance thereof. At such hearing the city engineer and the person requesting the hearing may be represented by counsel, examine witnesses, and present evidence as necessary.

(f) If the city engineer determines that the violation has created a public nuisance, the city engineer may order abatement of the nuisance by whatever means the city engineer may determine appropriate.

(g) The determination of the city engineer shall be a final administrative decision.

(h) In the event that the abatement as ordered by the city engineer is not performed, the city engineer may cause the abatement of the nuisance and assess the costs of abatement to the property for which the grading permit was issued in compliance with article VI of this chapter.
(O.14,484, 15,690)

Sec. 42-192. Right of city to seek additional alternative relief.

The city is not precluded from seeking alternative relief from the court, including an order for abatement or injunctive relief, in the event that the city files a misdemeanor citation, notice of administrative penalty, and/or files a municipal infraction for the same violation of this article.
(O.14,484)

Secs. 42-193—42-210. Reserved.

ARTICLE III. WATER POLLUTION*

Sec. 42-211. Dirty water.

No water from a sink, drain or stable or dirty water of any kind shall be thrown or allowed to run upon the surface of the ground. It shall be carried away by suitable pipes to a public sanitary sewer or a septic tank or sump if there is no public sanitary sewer available.
(C42, § 35-5; C54, C62, § 61-7; C75, C79, C91, § 16-122)

Sec. 42-212. Raccoon River.

(a) *Pollution.* No person shall throw or put into the Raccoon River or any of its tributaries at any point where the city water company takes water from that river to supply its works any dead carcass, manure, offal, putrid matter of any kind or any other substance or fluid which will tend to pollute or render impure the water in that river. No person shall deposit, place or discharge any such substance in, on or near the banks of that river within five miles, so that such substance will wash or flow into it, nor shall any person bathe or swim in the waters of such river within the corporate limits above the point where the city water company draws water for its works.

(b) *Contamination.* No hog yards, pigpens or cattle yards, where large numbers of cattle are nightly herded, shall be permitted to exist or be used at any point along the Raccoon River or within one-half mile thereof where the drainage from such pens or yards would run into and contaminate its waters.

(c) *Depositing refuse.* No person shall be permitted to deposit any offal, manure, night soil, dead animals or other noxious animal or vegetable refuse along or upon the banks of the Raccoon River, nor shall any person cause or permit any sewer or drain to have its outlet so placed that the waters therefrom will run into that river, nor shall any such sewer or drain situated within one-half mile of the river be permitted to discharge its contents into the surrounding soil.

(d) *Drainage of cesspools.* No privy, vault, cesspool or drain shall be established or permitted to open or discharge into any street, alley, lot, ravine, standing water, ditch or river, except sewers, and no offensive or noxious liquors or substances, garbage or manure shall be thrown or permitted to run from any premises or vehicles into any alley, lot, ditch or ravine near or bordering on the Raccoon River nor within one-half mile of it.
(C42, § 99-14; C54, C62, § 61-13; C75, C79, C91, § 16-123)

Sec. 42-213. Injury to water works.

No person shall in any way interfere with, injure or damage the water works or the machinery, pipes, hydrants, trenches or sewers belonging thereto or dig up or uncover, so as to expose to the frost, any of the pipes or sewers of the city water works. No person shall impede or in any way interfere with the operation of such by the city water works or its employees or agents. However, nothing in this section shall in any way interfere with or apply to the city officers or employees in the discharge of their official duties.
(C42, § 99-14; C54, C62, § 61-13; C75, C79, C91, § 16-124)

Sec. 42-214. Pipes and conduits near water mains.

No person using the city streets and alleys for public service purposes shall construct or place any pipes, conduits or other equipment immediately over and paralleling the water mains in the city streets or in any manner lay his or her pipes, conduits or other equipment in the city streets so that these will in any manner interfere with the convenient access to the city's water mains and connections.
(C42, § 99-25; C54, C62, § 61-16; C75, C79, C91, § 16-126)

Sec. 42-215. Depth of pipe below street.

All water pipes connecting to street mains shall be laid at least six feet below the surface of the street.
(C42, § 99-21; C54, C62, § 61-19; C75, C79, C91, § 16-129)

*__Cross reference—__Water generally, § 118-586 et seq.

Sec. 42-216. Responsibility of person causing disconnection from mains.

Whenever, because of lowering or raising any gas or water mains or gas or water pipe, any consumer is thereby disconnected from the mains, he or she shall be reconnected upon the completion of such work by and at the expense of the city water works or the person making or causing the disconnection.
(C42, § 99-21; C54, C62, § 61-21; C75, C79, C91, § 16-131)

Sec. 42-217. Penalty.

Any person who fails to perform an act required by the provisions of this article, or who commits an act prohibited by the provisions of this article, shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.
(C85, § 16-134; O.11,030, 11,445; C91, § 16-134; O.13,648, 15,608)

Sec. 42-218. Enforcement.

The community development department, all police officers and all officers of the fire department shall enforce this article.
(C42, § 99-17; C54, C62, § 61-26; C75, C79, § 16-135; O.9835; C91, § 16-135; O.13,013)

Secs. 42-219—42-245. Reserved.

ARTICLE IV. NOISE CONTROL*

Sec. 42-246. Definitions.

Definitions of technical terms used in this article which are not defined in this section shall be obtained from publications of acoustical terminology issued by the American National Standards Institute (ANSI) or its successor body. The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

"Adverse impact" shall mean such a state of facts as would lead a person of ordinary care and prudence to conclude that the economic, entertainment and philanthropic benefits to the community or business do not reasonably outweigh the quiet use and enjoyment of the affected property.

"Ambient sound level" means the noise associated with a given environment, exclusive of a particular noise being tested, being usually a composite of sounds from many sources near and far, exclusive of intruding noises from isolated identifiable sources.

"A-weighted sound level" means the sound pressure level in decibels as measured on a sound level meter using the A-weighting network. The level is designated dB(a) or dBA.

"C-weighted sound level" means the sound pressure level in decibels as measured on a sound level meter using the C-weighting network. The level is designated dB(c) or dBC.

"Construction" means any site preparation, assembly, erection, substantial repair, alteration, or similar action for or of public or private rights-of-way, structures, utilities or similar property.

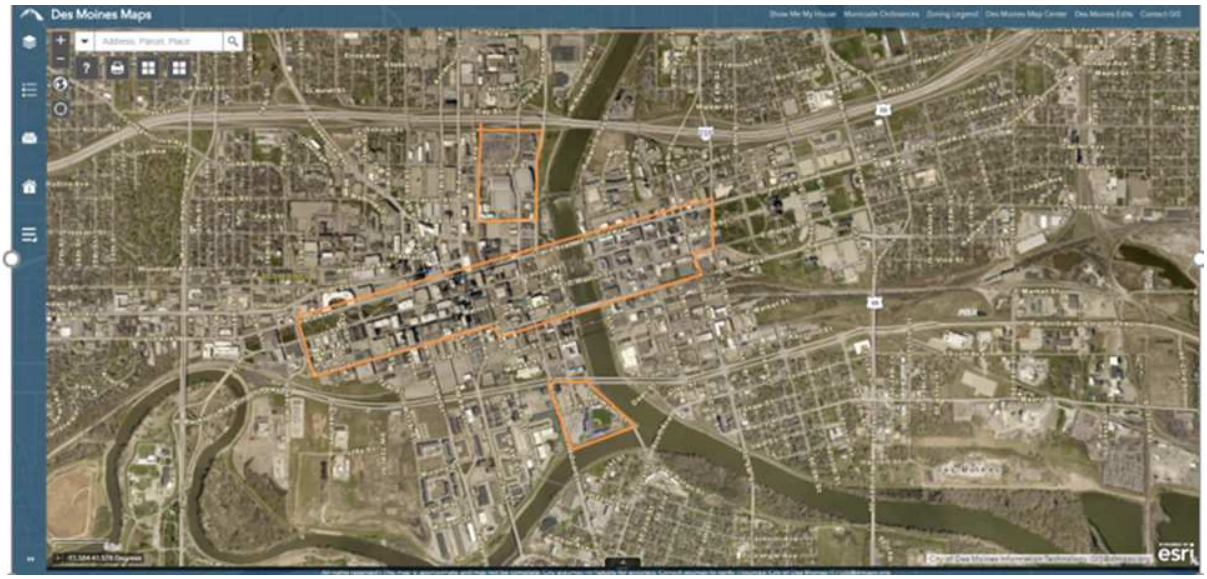
"Decibel (dB)" means a logarithmic and dimensionless unit of measure often used in describing the amplitude of sound, equal to 20 times the logarithm to the base 10 of the ratio of the pressure of the sound measured to the reference pressure, which is 20 miscropascals (20 micronewtons per square meter).

"Demolition" means any dismantling, intentional destruction or removal of structures, utilities, public or private right-of-way surfaces, or similar property.

*__Editor's note—__*Ord. No. 14,746, § 1, adopted Feb. 25, 2008, repealed the former Art. IV, §§ 42-246—42-270, and enacted a new Art. IV as set out herein. The former Art. IV pertained to noise pollution and derived from Code 1975, §§ 16-136—16-153, as amended. See the Code Comparative Table for complete derivation.

"Downtown areas" shall mean the areas designated for sound permits described below as depicted in Figure 42-246.1 downtown areas.

Figure 42-246.1. Downtown Areas



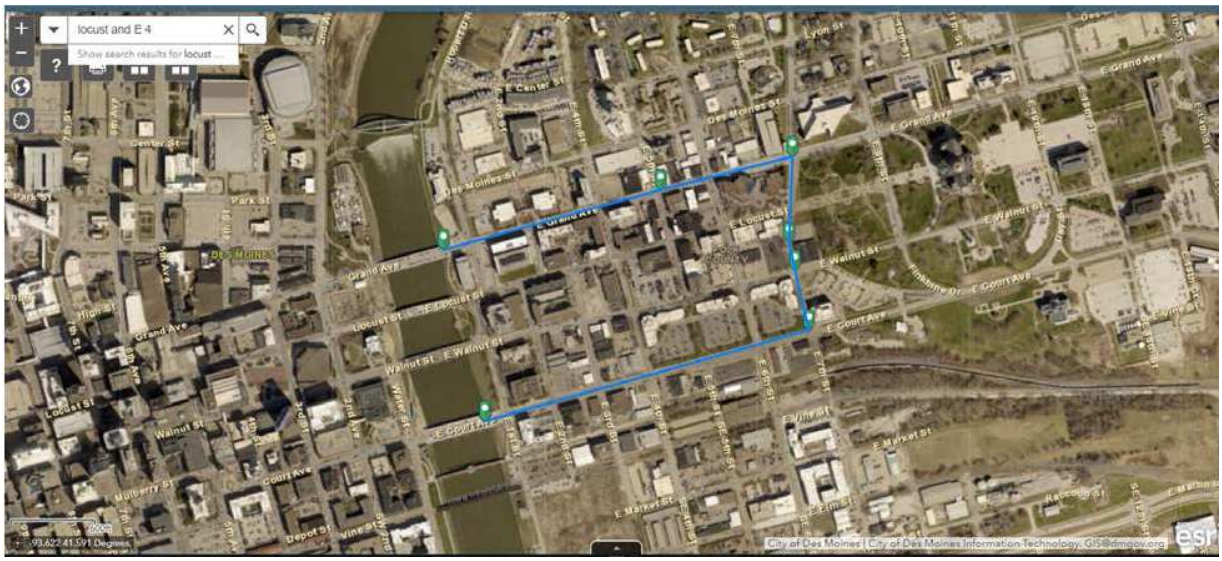
Area 1 (Top). The area which is bounded by these streets: On the west by 5th Avenue, on the north by the southernmost Interstate 235 freeway entrance ramp roadway that runs east and west between 5th Avenue and 2nd Avenue, on the east by 2nd Avenue, and on the south by Park Street.

Area 2 (Middle). The area bounded by these streets: On the west by 15th Street; on the north by Grand Avenue; on the east by the segment of Pennsylvania Avenue between Grand Avenue and East Walnut Avenue; on the southeast by the one block segment of East Walnut East 6th Street that runs east-west between East 7th Street and East 6th Street, and on the southeast by the one block segment of East 6th Street that is between is between East Walnut Avenue and East Court Avenue; on the south by the segment of East Court Avenue between East 6th Street and 5th Avenue, by the one block segment of 5th Avenue between Court Avenue and Mulberry Street, and by the segment of Mulberry between 5th Avenue and 15th Street.

Area 3 (Bottom). The area bounded as follows: on the south side by the north bank of the Raccoon River; on the east side by the west bank of the Des Moines River; on the north by the segment of East Martin Luther King, Jr. Parkway that runs east-west from the west bank of the Des Moines River to SW 3rd Street; and on the west by the segment of SW 3rd Street that runs north-south between East Martin Luther King, Jr. Parkway and the north bank of the Raccoon River.

"East Village Street Colures area" shall mean the areas designated for sound permits in East village in connection with the street closure event within the area depicted in Figure 42-246.2 East Village Street closure area boundaries.

Figure 42-246.2



"East Village noise control area" shall mean the area designate for sound permits for properties that are not within 250 feet of a residential dwelling, within the area depicted in Figure 42-246.3 East Village noise control area boundaries.

Figure 42-246.3

"Emergency" means any occurrence or set of circumstances involving actual or imminent physical or psychological trauma or property damage which demands immediate action.

"Emergency work" means any work performed for the purpose of alleviating or resolving an emergency.

"Equivalent A-weighted sound level (Leq)" means the constant sound level that, in a given situation and time period, conveys the same sound energy as the actual time-varying A-weighted sound. For the purpose of this article, a time period of one hour shall be used, unless the likely duration or intensity of the sound being measured makes a shorter time period reasonable.

"Impulsive sound" means sound of short duration, usually less than one second, with an abrupt onset and rapid decay. Examples of sources of impulsive sound include explosions, drop forge impacts, and the discharge of firearms.

"Motorboat" means any vessel which operates on water and which is propelled by a motor, including but not limited to boats, barges, amphibious craft, water ski towing devices and hovercraft.

"Motorcycle" means any motor vehicle having a saddle or seat for the use of the rider and designed to travel on not more than three wheels in contact with the ground. The term includes motorized bicycles and motor scooters.

"Motor vehicle" means any motor-operated vehicle licensed for use on the public highways, but not including a motorcycle.

"Noise" means any sound which disturbs humans or which causes or tends to cause an adverse psychological or physiological effect on humans.

"Noise disturbance" means:

(1) Any sound which unreasonably endangers or injures the health or safety or welfare of a human being; or

(2) Any sound which unreasonably disturbs a person of normal sensitivities; or

(3) Any sound which unreasonably devalues or injures personal or real property; or

(4) Any sound which is in excess of decibel levels set forth in this article.

(5) The factors which may be considered in determining whether a noise disturbance exists may include, but are not limited to:

a. The level of the noise;

b. The level and intensity of any background noise;

c. Whether the nature of the noise is usual or unusual;

d. Whether the origin of the noise is natural or unnatural;

e. The proximity of the source of the noise to sleeping facilities;

f. The land use, nature and zoning of the area from which the noise emanates and of the area where the noise is received;

g. The time of day or night when the noise occurs;

h. The duration of the noise;

i. Whether the noise is recurrent, intermittent or constant.

j. The level and intensity of the bass or low tones.

"Noise sensitive area" means any area designated by resolution of city council for the purpose of ensuring exceptional quiet and clearly posted with noise sensitive area signs, because of the noise sensitive activities conducted therein.

"Notice of violation" shall include a notice of violation, a civil infraction and/or a criminal citation.

"Person" shall have the meaning prescribed by section 1-2 of this Code and, in addition, means and includes any officer, employee, department, agency or instrumentality of the state or any political subdivision of the state.

"Person responsible" or *"Responsible party"* shall be the owners, employees or acting managers, agents, contract buyers, tenants, or lessees' of all residential dwellings, commercial establishments, and/or real estate upon which a violation

of this article is found and shall be jointly and severally responsible for compliance with this article at any location.

"Powered model vehicle" means any self-propelled airborne, waterborne, or land borne model plane, vessel, or vehicle, which is not designed to carry persons, including but not limited to any model airplane, boat, car or rocket.

"Public right-of-way" means any street, avenue, boulevard, highway, sidewalk, or alley or similar place which is owned or controlled by a governmental entity.

"Public space" means any real property, including any structure thereon, which is owned or controlled by a governmental entity.

"Pure tone" means any sound which can be distinctly heard as a single pitch or a set of single pitches.

"Real property boundary" means an imaginary line along the ground surface, and its vertical extension, which separates the real property owned by one person from that owned by another person, or from the public right-of-way, but not including intra-building real property divisions.

"Receiving land use" means the public right-of-way or the use or occupancy of the property which receives the transmission of sound as defined in this section.

"Recreational vehicle" means any race car, motorcycle, snowmobile, all terrain vehicles or any other motorized vehicle equipped for use in racing or other recreational events or uses off of public rights-of-way on public or private property. For purposes of this article, a motor vehicle or motorized vehicle which is taking part in an organized racing, endurance, or other coordinated sporting event shall be deemed a recreational vehicle and shall be governed by the terms of subsection 42-259(C) of this article.

"Residential" means any property on which is located a building or structure used wholly or partially for living or sleeping purposes. This definition shall not include park custodial residences or school or college dormitories.

"Sound" means an oscillation in pressure, particle displacement, particle velocity or other physical parameter, in a medium with internal forces that cause compression and rarefaction of that medium. The description of sound may include any characteristic of such sound, including duration, intensity and frequency.

"Sound equipment" means any radio, record player, stereo, television, tape deck or player, loudspeaker, amplifier, sound truck or other device for producing, reproducing, or amplifying sounds.

"Sound level" means the weighted sound pressure level obtained by the use of a sound level meter and frequency weighting network as specified in American National Standards Institute specifications for sound level meters. If the frequency weighting employed is not indicated, the A-weighting shall apply.

"Sound level meter" means an instrument which includes a microphone, amplifier, RMS detector, integrator or time averager, output or display meter, and weighting networks used to measure sound pressure levels, which complies with American National Standards Institute standards.

"Sound violation" means readings taken at the LCFmax that exceed the permitted level of amplified noise.
(O.14,746, 15,566, 16,064, 16,127)

Sec. 42-247. Title.

This article may be cited as the "Noise Control Ordinance of the City of Des Moines."
(O.14,746)

Sec. 42-248. Statement of public policy.

The city council finds and declares that:

(1) Excessive noise is a serious hazard to the public health and welfare and the quality of life in a close urban society.

(2) A substantial body of science and technology exists by which excessive noise can be substantially abated without serious inconvenience to the public.

(3) Certain noise-producing equipment in this community is essential to the quality of life in the community and should be allowed to continue at reasonable levels with moderate regulation.

(4) Each person has a right to an environment reasonably free from noise which jeopardizes health or welfare or unnecessarily degrades the quality of life.

(5) It is the policy of this city to promote an environment free from excessive noise, which unnecessarily jeopardizes the health and welfare and degrades the quality of the lives of the residents of this community, without unduly prohibiting, limiting or otherwise regulating the function of certain noise-producing equipment which is not amenable to such controls and yet is essential to the economy and quality of life of the community.

(O.14,746)

Sec. 42-249. Purpose.

The purpose of this article is to establish standards for the control of excessive noise in the city by setting maximum permissible sound levels for various activities to protect the public health, safety and general welfare.
(O.14,746)

Sec. 42-250. Scope.

This article shall apply to the control of all noise originating within the city limits or originating from properties lying outside the city limits owned or controlled by the city, except where either:

(1) A state or federal agency has adopted a different standard or rule than that prescribed within this article and has so preempted the regulation of noise from a particular source as to render this article inapplicable thereto; or

(2) The city council has determined that, because of public acceptance of the activity producing a particular noise, such noise is deemed acceptable to the city residents.

(O.14,746)

Sec. 42-251. Exceptions to article.

This article shall not apply to the following:

(1) The emission of sound for the purpose of alerting persons to the existence of an emergency.

(2) The emission of sound in the performance of emergency work.

(3) Noncommercial public speaking and public assembly activities conducted on any private property, public space, or public right-of-way, except those activities controlled by section 42-257 of this article.

(4) The un-amplified human voice, except those activities controlled by subsection 42-256(a) of this article.

(5) Agricultural activities, exclusive of those involving the ownership or possession of animals or birds.

(6) Snowmobiles regulated by I.C. ch. 321G.

(7) Rail and air transportation and public mass transportation vehicles.

(8) The emission of sound in connection with activities conducted on the state fairgrounds during the annual state fair and exposition.

(9) The emission of sound in the performance of military operations, exclusive of travel by individuals to or from military duty.

(10) The emission of sound in the legal discharge of weapons or in fireworks displays licensed by the city.

(11) The emission of sound in the operation of snow removal equipment.

(12) Parades or processions for which a parade permit has been issued by the city.

(13) Marching bands and athletic events.

(14) Government owned, operated, or contracted vehicles in the performance of their official duties.

(15) The testing and use of generators for commercial/business use when installed for use in an emergency during power outages, subject to site plan requirements as set out in Chapter 82, and when testing occurs at the same time of day each time performed, and not before 9:00 a.m. or after 4:00 p.m., and when the minimum cycle test time is used.

(O.14,746, 15,566)

Sec. 42-252. Noise disturbance prohibited.

No person shall make, continue or cause to be made or continued any noise disturbance as defined in this article.
(O.14,746)

Sec. 42-253. Ambient noise level.

When noise level measurements are taken and the ambient noise level measurement exceeds the maximum permitted sound level, the maximum permitted sound level shall be increased to equal the ambient noise level.
(O.14,746)

Sec. 42-254. Maximum permissible sound levels by receiving land use; immediate threat.

(a) *Maximum permissible sound levels.* With the exception of sound levels elsewhere specifically authorized or allowed in this article, no person shall make, continue, or cause to be made or continued, any sound which exceeds the following sound level limits at or within the real property boundary of a receiving land use:

Table 1. Sound Levels By Receiving Land Use

Zoning Category of Receiving Land Use	*Time*	*Sound Level Limit Unamplified limit in dBA Amplified limit in dBC*
P1 and residential zones: N1-N5, NX1-NX3, NX2a, NM, and a residential legacy PUD	7:00 a.m. to 10:00 p.m. 10:00 p.m. to 7:00 a.m.	60 50
Mixed use and commercial zones: Legacy PUD, DX1, DX2, DXR, MX1-MX3, CX	At all times	65
Industrial zones: EX, I1, I2	At all times	75
Noise sensitive area	At all times	55
F flood district	At all times	65

For the purposes of this article, unamplified sound levels in excess of the dBA and amplified sound levels in excess of the dBC listed in table 1 shall be deemed a violation, except this subsection shall not apply to:

(1) Activities covered by the following sections of this article: 42-255 (emergency signaling devices); 42-259 (motorized vehicles); 42-260 (construction); 42-261 (stationary non-emergency signaling devices); 42-264 (noise covered by sound variance).

(2) The operation of the following domestic power tools or equipment between the hours of 7:00 a.m. and 10:00 p.m.:

a. Electrical power tools.

b. Motor-powered, muffler-equipped lawn, garden and tree trimming equipment.

(b) *Immediate threat.*

(1) The official of any department charged with enforcement of this article shall order an immediate halt to any sound which exposes any person, except those excluded under subsection (2) of this section, to continuous sound levels in excess of those shown in table 2 or to impulsive sound levels in excess of those shown in table 3. If the sound has not abated within a reasonable length of time following issuance of such an order, the official of any department charged with enforcement of this article may apply to the appropriate court for an injunction to replace the order or may treat the violation in the manner of other Code violations.

(2) No order under subsection (b)(1) of this section shall be issued if the only persons exposed to sound levels in excess of those listed in tables 2 and 3 are exposed as a result of:

a. Trespass;

b. Invitation upon private property by the person causing or permitting the sound; or

c. Employment by the person or contractor of the person causing or permitting the sound.

(3) Any person subject to an order issued pursuant to subsection (b)(1) of this section shall comply with such order until:

a. The sound is brought into compliance with the order as determined by the noise control division; or

b. A judicial order has superseded such order.

Table 2. Continuous Sound Levels Which Pose an Immediate Threat to Health and Welfare (Measured at 50 Feet)

Sound Level Limit (dBA)	*Duration*
90	24 hours
93	12 hours
96	6 hours
99	3 hours
102	1.5 hours
105	45 minutes
108	22 minutes

(4) Correction for character of sound. For any source of sound which emits a pure tone, the maximum sound level limits set forth in table 2 shall be reduced by five dBA.

(5) Varying sound level. Where the sound level (dBA) varies over the measuring period, the equivalent A-weighted (average) sound level (Leq) shall be determined by figuring the time and intensity levels for time periods set out in tables 2 and 3.

Table 3. Impulsive Sound Levels Which Pose an Immediate Threat to Health and Welfare (Measured at 50 Feet)

Sound Level Limit (dB)	*Number of Repetitions Per 24-Hour Period*
140	1
130	10
120	100

(O.14,746, 14,774, 15,566, 15,819)

Sec. 42-255. Emergency signaling devices.

(a) No person shall operate or permit the intentional sounding outdoors of any fire, burglar, or civil defense alarm, siren, whistle or similar stationary emergency signaling device, except for emergency purposes or for testing, as provided in subsection (b) of this section.

(b) Testing of a stationary emergency signaling device shall occur at the same time of day each time the test is performed, but not before

9:00 a.m. or after 4:00 p.m. Any such testing shall use only the minimum cycle test time. In no case shall test times exceed 60 seconds.
(O.14,746)

Sec. 42-256. Specific activities prohibited.

(a) *Sales by hawking or barking.* No person shall offer for sale or sell anything by shouting or raised voice within any residential or commercial area in the city.

(b) *Loading and unloading.* No person shall so load, unload, open, close or handle boxes, crates, containers, building materials, garbage cans, or similar objects between the hours of 7:00 p.m. and 6:00 a.m. the following morning as to create a noise disturbance across a residential real property boundary or within a noise sensitive area. This subsection shall not apply to the engine noise generated by the activities regulated by section 42-259 of this article.

(c) *Vehicle or motorboat repairs and testing.* No person shall repair, rebuild, modify, or test any motor vehicle, motorcycle, or motorboat in such a manner as to cause a noise disturbance across a residential real property boundary or outdoors within a noise sensitive area.

(d) *Powered model vehicles.* No person shall operate or permit the operation of powered model vehicles in a public or private space out-of-doors or within a noise sensitive area between the hours of 10:00 p.m. and 7:00 a.m. the following day.

(e) No business shall allow sound to escape a structure through walls, rooftops, openings in the building, including but not limited to, vents, roof top mechanical units, doors or windows left open, except for the ingress and egress of customers, so as to create a noise disturbance.
(O.14,746, 14,976, 15,566)

Sec. 42-257. Musical instruments and similar devices.

No person shall operate, play or permit the operation or playing of any drum, musical instrument or similar device which produces sound in such a manner as to create a noise disturbance across a residential real property boundary as defined in section 42-254 of this article or outdoors within a noise sensitive area.
(O.14,746)

Sec. 42-258. Sound equipment, sound amplifying equipment and construction equipment.

(a) *Permit required.* No person shall, use, operate or cause to be used or operated any sound equipment or tools or equipment used in construction activities beyond the hours permitted under section 42-260 of this article upon the public right-of-way or in any building or upon any premises, public or private, creating a noise disturbance unless such person:

(1) First obtains a permit in accordance with this section;

(2) Complies with the conditions imposed by the permit, including the maximum permitted sound level shown therein;

(3) Complies with the provisions of chapter 102 of this Code, as it regulates street closings; and

(4) Complies with all other applicable subsections of this section.

(b) *"Sound equipment"* requiring a permit shall not include:

(1) Equipment used for public health and safety purposes.

(2) Church or clock carillons, bells or chimes.

(3) Automobile or boat radios, tape decks or players, or other standard equipment used and intended for the use and enjoyment of the vehicle occupants, provided the sound emitting there from does not create a noise disturbance or does not violate section 42-259.

(4) Un-amplified live music provided, sponsored, or funded, in whole or in part, by a governmental entity.

(c) *Permit, fees.* A separate permit shall be required for each type of activity described in subsection (e) of this section, and permits shall be nontransferable. The permit shall be conspicu-

ously displayed on or immediately adjacent to the sound equipment. A nonrefundable fee shall be paid in the amount set in the schedule of fees adopted by the city council by resolution at the time of application for the sound permit.

(d) *Information required on permit application.* Application for the permit required in this section shall be made in writing to the zoning enforcement officer, accompanied by the required permit fee and the following information:

(1) The type of permit requested.

(2) The name and address of the applicant.

(3) The purpose for which the sound equipment will be used.

(4) The location where the sound equipment will be used.

(5) Designation of the days of use and proposed hours of operation of the sound equipment.

(6) A general description of the sound equipment, including the license number of any motor vehicle upon which it is to be operated.

(7) The name(s) and phone number(s) of the person(s) responsible for the use of the permit.

If the application contains the required information and is accompanied by the required fee, and the proposed use of the sound equipment complies with the standards and other requirements of this section and all other applicable laws and ordinances, the zoning enforcement officer shall issue the appropriate permit.

(e) *Sound level meter.* Recipient of a permit must have a sound level meter on site during the use of a permit when determined by staff to be a requirement of the permit, examples are concerts and street closure events. The equipment must monitor the amplified sound for compliance with the permit, be capable of producing read outs during the event and upon request 30 days after the event.

(f) *Application standards.* The following are general standards for the type of permit:

(1) *Type "A" permit.* A type "A" permit may be issued for sound equipment emitting live music, reproduced music or human speech registering not more than 85 dBCs when measured at the real property boundary of the permitted property or at a distance of 50 feet from the sound equipment if issued in conjunction with a street closing. A type "A" permit may be issued only in areas of the city zoned for industrial, commercial and/or mixed use and only between the hours of 9:00 a.m. and 10:00 p.m., except in the downtown areas and East Village Street Closure area, which shall be between the hours of 9:00 a.m. and 11:00 p.m. Sunday through Thursday, and between the hours of 9:00 a.m. and 12:30 a.m. on Friday and Saturday, the Sunday of Memorial Day weekend, Labor Day weekend and the Fourth of July should it fall on a Sunday. A type "A" permit will be issued for a 30-day period, commencing on the first of each month, to be used on eight days during the permitted time, with the days of use to be designated on the permit application.

(2) *Type "B" permit—parks located in residential zones.* A type "B" permit may be used for sound equipment emitting music or human speech registering not more than 65 dBCs when measured at the real property boundary or at a distance of 50 feet from the sound equipment, whichever distance is closer to the sound equipment. Sound equipment permitted under a type "B" permit may be used only in public parks owned and operated by the city or public grounds owned and operated by another governmental body, located in a residentially zoned district from 9:00 a.m. to the time the park closes for events authorized and approved by the park and recreation board or other body having jurisdiction over the park or public grounds. A type "B" permit will be

issued for one day up to one week with the days to be designated on the permit application.

(3) *Type "C" permit—church or school grounds.* A type "C" permit may be issued for sound equipment emitting music or human speech registering not more than 65 dBCs when measured at the real property boundary or when measured at a distance of 50 feet from the sound equipment, whichever distance is closer to the sound equipment. Sound equipment permitted under a type "C" permit may be used only on church grounds, school grounds, or in conjunction with a school sponsored activity, from 9:00 a.m. to 10:00 p.m. for events authorized and approved by the church or school authorities having jurisdiction of the grounds. A type "C" permit will be issued for one day up to one week with the days to be designated on the permit application.

(4) *Type "D" permit—Residential events.* A type "D" permit may be issued for sound equipment emitting music or human speech registering not more than 65 dBCs when measured at the real property boundary of the permitted property or 50 feet from the sound equipment, whichever distance is closer. Sound equipment permitted under a type "D" permit may be used only pursuant to a permitted street closing under chapter 102 of this Code, from 9:00 a.m. to 10:00 p.m. A type "D" permit will be issued for one day up to one week with the days to be designate on the permit application.

(5) *Type "E" permit—Background sound equipment.* A type "E" permit may be issued for a commercially zoned area, mixed use zoned area, East Village noise control area or a commercially zoned PUD or PBP area for sound equipment to be used in an outdoor area in conjunction with an approved business use emitting music or human speech, excluding live music, registering not more than 65 dBCs, or below the ambient level, when measured at the property boundary, edge of designated seating area or 50 feet from the sound equipment whichever is closer. Sound equipment permitted under a type "E" permit may be used only during regular hours of business operation. A type "E" permit will be issued up to one year.

(6) *Type "F" permit—Brenton Skating Plaza.* A type "F" permit may be issued for sound equipment in the Brenton Skating Plaza, in conjunction with a lease agreement entered into with the parks and recreation department emitting music or human speech, registering not more than 112 dBCs, at the front of house which is established to be 75 feet from the sound. This permit is effective between the hours of 9:00 a.m. to 10:00 p.m. Sunday through Thursday and 9:00 a.m. to 11:00 p.m. on Friday and Saturday, the Sunday of Memorial Day weekend, Labor Day weekend and the Fourth of July should it fall on a Sunday.

(7) *Type "G" permit—Special Event Live Performances.* A type "G" permit may be issued for sound amplification equipment to be used for live performances where the sound from music or human speech does not exceed 112 dBCs when measured 50 feet from the amplification equipment and meets all of the following criteria:

a. The special event or live performance is located in the Downtown areas and the East Village Steet Closure area,

b. This type permit will only be issued two times per year per address to include a street closing abutting the sponsoring business and only if 30 days has elapsed from the effective date of a previous type "G" permit for the same location, however, if the street closing is sponsored by the Court Avenue Business Association, Downtown Community Alliance, Historic East Village, or any other community organization affili-

ated with businesses located in the downtown areas this type permit is not limited in number or time span,

c. If the applicant has no address in the downtown areas, then either a business in the area, or a community organization affiliated with businesses located in the downtown area must sponsor the event,

d. This type permit may not be issued if another type "G" permit has already been issued within 1,000 feet of a given location and covering the same time on any day. If the event has multiple stages in the designated event only one permit will be required.

e. When used in conjunction with a street closure this type permit will not be issued until the street use team approves the street closure,

f. This type permit must be obtained at least seven days prior to the performance unless pending street use team approval.

g. This type permit is effective for up to three consecutive days and for the hours of 9:00 a.m. to 11:00 p.m. Sunday through Thursday and 9:00 a.m. to 12:30 a.m. on Friday and Saturday, the Sunday of Memorial Day weekend, Labor Day weekend and the Fourth of July should it fall on a Sunday.

h. A variance may be sought in accordance with this article if any of the requirements for issuance of this type permit wish to be modified on a case by case basis.

(8) *Type "H" permit—Farmer's Market.* A type "H" permit may be issued to Farmer's Markets which have a street closure for sound amplification equipment allowing music up to 85 dBCs for the duration of the street closure.

(9) *Type "I" permit—Waterworks Park—Lauridsen Amphitheater.* A type "I" permit may be issued for amplification equipment for live performances held in Waterworks Park, at the Lauridsen Amphitheater, emitting music or human speech, at a level not greater than 114 dBCs measured at front of house which will be set at 125 feet from the stage. A type "I" permit is effective for one or two days and for the hours of 9:00 a.m. and 10:00 p.m. Sunday through Thursday, and between the hours of 9:00 a.m. and 11:00 p.m. on Friday and Saturday, the Sunday of Memorial Day weekend, Labor Day weekend and the Fourth of July should it fall on a Sunday.

(10) *Type "J" permit—Night construction.* A type "J" permit may be issued for residential construction activities beyond the hours permitted under section 42-260. A type "J" permit may be issued for construction performed on behalf of a nonprofit or philanthropic organization where such construction activity is to be completed in an expedited manner pursuant to a construction schedule which has been approved by the community development director and has been determined to advance the overall welfare of city residents, provided that the residential structure is being built for occupation by low or moderate income persons. Application for a type "J" permit shall be processed pursuant to sections 42-264 through 42-267 of this article.

(11) *Type "K" permit* may be issued for an event whose route is on city streets, trails and/or other public right-of-way with the permit to be valid one hour before the start of the event and at specifically approved locations along the route that would otherwise comply with all other provisions of this article.

(12) *Type "L" permit* may be issued to a privately held recreational area more than 40 acres in area for outside events, emitting music or human speech at a level not greater than 112 dBCs when measured 50 feet from the amplification equipment. This permit is effective

between the hours of 9:00 a.m. to 11:00 p.m. Sunday through Thursday and 9:00 a.m. to 12:30 a.m. on Friday and Saturday, the Sunday of Memorial Day weekend, the Sunday of Labor Day weekend, and the Fourth of July whenever it occurs on a Sunday. The stage and sound equipment for any live performances held shall be set up facing away from residential areas. A type "L" permit will be issued for a 30-day period, commencing on the first of each month, to be used on eight days during the permitted time, with the days of use to be designated on the permit application.

(13) *Type "M" permit—Zoo and Water Works Park.* A type "M" permit may be issued for amplification equipment for live performances held on the Blank Park Zoo Foundation Parcel and Water Works Park field, emitting music or human speech, 114 dBCs measured at front of house which will be 125 feet from the stage and limited to 85 dBCs when measured at the nearest residence. A type "M" permit is effective for one or two days and for the hours of 9:00 a.m. and 10:00 p.m. Sunday through Thursday, and between the hours of 9:00 a.m. and 11:00 p.m. on Friday and Saturday, the Sunday of Memorial Day weekend, Labor Day weekend and the Fourth of July should it fall on a Sunday. The stage and sound equipment for any live performances held on the Blank Park Zoo Foundation Parcel shall be set up facing the south causing the sound to be directed towards the Blank Park Zoo and the Blank Golf Course. For the purpose of this subsection, Blank Park Zoo Foundation Parcel means the tract owned by Blank Park Zoo Foundation located south of Army Post Road and east of SW 9th Street, and designated for tax purposes as Polk County district/parcel number 120/00324-005-001. Additionally, the stage and sound equipment for any live performances held in the field in Waterworks Park shall be set up facing the northeast causing the sound to be directed through the park and away from residential areas.

(14) *Type "N" permit—Simon Estes Riverfront Amphitheater.* A type "N" permit may be issued for sound equipment to be used in the Simon Estes Riverfront Amphitheater in conjunction with a lease agreement entered into with the Parks and Recreation Department, emitting music or human speech, registering not more than 100 dBCs, when measured at the middle cement crosswalk. This permit is effective between the hours of 9:00 a.m. to 10:00 p.m. Sunday through Thursday and 9:00 a.m. to 11:00 p.m. on Friday and Saturday, the Sunday of Memorial Day weekend, Labor Day weekend and the Fourth of July should it fall on a Sunday.

(15) *Type "O" permit—Riverview Amphitheater.* The type permit may be issued for sound equipment in the Riverview Amphitheater, in conjunction with a lease agreement entered into with the Parks and Recreation Department, emitting music or human speech, registering not more than 114 dBCs at the front of house which is established to be 75 feet from the sound. This permit is effective between the hours of 9:00 a.m. to 10:00 p.m. Sunday through Thursday and 9:00 a.m. to 11:00 p.m. on Friday and Saturday, the Sunday of Memorial Day weekend, Labor Day weekend and the Fourth of July should it fall on a Sunday.

(16) *Type "P" permit—Botanical Center.* A type "P" permit may be issued for sound equipment on the Botanical Center grounds, registering not more than 112 dBCs, at the front of house which is established to be 75 feet from the sound. This permit is effective between the hours of 9:00 a.m. to 10:00 p.m. Sunday through Thursday and 9:00 a.m. to 11:00 p.m. on Friday and Saturday, the Sunday of Memorial Day weekend, Labor Day weekend and the Fourth of July should it fall on a Sunday.

(17) *Type "Q" Permit—900 Mulberry Street.* A type "Q" permit may be issued for sound equipment at 900 Mulberry Street, registering not more than 90 dBCs for up to six times in a calendar year and registering not more than 85 dBCs for up to 18 permits in a calendar year measured at the real property boundary. The permits will be effective between the hours of 9:00 a.m. to 10:00 p.m. Sunday through Thursday and between the hours of 9:00 a.m. to 11:00 p.m. on Friday and Saturday. The amplified sound will not be the primary purpose of the event and the description of the event will be provided with the permit application. The event coordinator and/or the production company will provide notice to the adjacent residents detailing the type of event, the time frame of the event and contact names of persons responsible for the event as set out on the permit application. All speaker systems shall face SW 9th Street. The promoter or event coordinator shall have a sound meter and comply with section 42-258(e) of this article.

(g) *Commercial advertising.* No sound equipment shall be permitted to be used on public streets or public places or in any building or upon any premises if the sound may be plainly audible from any public street or public place within the city when any such use is for commercial advertising purposes or for the purpose of attracting the attention of the public to any building or structure for monetary gain.

(h) *Denial or revocation.*

(1) *Denial of sound permit.* The director of the community development department or director's designee may deny an application for a sound permit in writing. The following criteria and standards shall be considered as basis for a denial:

a. Whether police have stopped activities sponsored by the same applicant or in the same location for public safety purposes such as riot, disorderly conduct, or other crimes;

b. Whether the sponsor, applicant, or their employees have violated the Des Moines Municipal Code at past events requiring a sound permit;

c. Whether the applicant(s) have paid the city all fees due and owing under any chapter of the Des Moines Municipal Code; and

d. If any person responsible for monitoring the terms and conditions of the sound permit at the premises has been found to be in violation of this article in any 12-month period.

e. Where it is determined that the permit would be in conflict with another established event, or when in conjunction with another permit, when considering the combined impact the issuance would create a potential for a noise disturbance.

(2) *Revocation.* The director of the community development department or the director's designee may revoke a sound permit issued pursuant to this article upon the second finding of a violation of the terms and conditions of the permit by persons charged with enforcement of this article, within a 12-month period.

(3) *Revocation hearing-adverse impact.* If the director of the community development department receives written statements or a petition from 25 percent or more of the occupants of single family or duplex residences and the owner or manager of multiple residence structures including hotels, who claim to be adversely affected by the operation of sound amplification equipment under a valid sound permit and who live within 200 feet measured from property line to property line of the property where such sound permit is valid, the community development director, or the director's designee, shall proceed pursuant to section 42-266.

(O.14,746, 14,752, 14,774, 14,868, 15,237, 15,474, 15,566, 15,645, 15,819, 15,853, 16,064, 16,127, 16,328)

Sec. 42-259. Motorized vehicles.

(a) No person shall operate the engine, or auxiliary engine, of a motor vehicle with a manufacturer's gross vehicle weight rating of 10,000 pounds or more for a period longer than 20 minutes while such vehicle is standing and located within 150 feet of property zoned and used for residential purposes. This subsection shall not apply to delivery or pickup vehicles that require the operation of the engine to unload or load their vending loads.

(b) No person shall operate a motor vehicle or a combination of vehicles of a type subject to registration at any time or under any condition

in such manner as to exceed the noise limit listed in this subsection for the category of motor vehicle, such noise to be measured at a distance of 50 feet from the vehicle.

Noise Limit In Relation To Legal Speed Limit		
Type of Vehicle	*35 mph or Less dBA*	*Over 35 mph dBA*
Any motor vehicle with a manufacturer's gross vehicle weight rating of 10,000 lbs. or more and any combination of vehicles towed by such motor vehicle	88	92
Any motorcycle	82	86
Any other motor vehicle and any combination of motor vehicles towed by such motor vehicle	76	82

This subsection applies to the total noise from a vehicle or combination of vehicles and shall not be construed as limiting or precluding the enforcement of any other section of this Code relating to motor vehicle mufflers or noise control.

(c) (1) No person shall operate a recreational vehicle or permit the operation of one or more recreational vehicles, individually or in a group, or in an organized racing event on public or private property in such a manner that the sound level exceeds that set forth in Section 42-254(a) Table 1.

(2) No person shall operate or permit the operation of any recreational vehicle(s), on public or private land between the hours of 10:30 p.m. and 9:00 a.m.

(3) This section shall not apply to recreational vehicles when legally operated upon the public streets.

(d) No person operating or in control of a motor vehicle, recreational vehicle, watercraft, or vessel shall operate or permit the operation of a sound system in the vehicle so as to produce a vibration or sound that is clearly detectable at a distance of 50 feet from the vehicle between the hours of 7:00 a.m. and 7:00 p.m. or clearly detectable at a distance of 25 feet from the vehicle between the hours of 7:00 p.m. to 7:00 a.m.

(e) No person operating or in control of a garbage truck or other motor vehicle engaged in the business of solid waste collection, shall use such vehicle to pick up or empty a dumpster or other container used for the collection or storage of solid at any location in, or within 150 feet of, a zoning district or portion of a PUD district that includes a residential use, between the hours of 7:00 p.m. and 6:00 a.m. the following morning, subject to the following:

(1) Trash pickup at elementary and secondary schools and hospitals is exempt from this requirement.

(2) The city manager or the city manager's designee may grant an exception to this limitation on the timing of trash pickup where such exception is necessary to avoid an unreasonable risk of harm created by the unusual circumstances of the site. Any such exception may be subject to reasonable conditions imposed to minimize the detrimental impact of granting such exception, and shall be subject to reconsideration in the event of changed circumstances.

(O.14,746, 14,752, 14,976, 15,969)

Sec. 42-260. Construction.

No person shall operate or permit the operation of any tools or equipment in construction, drilling or demolition work or in preventive maintenance work for public service utilities between the hours of 10:00 p.m. and 7:00 a.m. (O.14,746)

Sec. 42-261. Stationary non-emergency signaling devices.

(a) No person shall operate or permit the sounding of any stationary bell, chime, siren, whistle, or similar device, intended primarily for non-emergency purposes, from any place for more than one minute in any hourly period.

(b) Devices used in conjunction with places of religious worship shall be exempt from the operation of this section.
(O.14,746)

Sec. 42-262. Animals and birds.

No person shall own, possess or harbor any animal or bird which frequently or for continued duration emits sounds native to the species which are a noise disturbance across a residential real property boundary or within a noise sensitive area.
(O.14,746)

Sec. 42-263. Enforcement.

(a) The noise control program established by this article shall be implemented, administered, and enforced by the community development and police departments.

(b) The sections of this article which prohibit the making, continuing, or causing the making or continuing of a noise disturbance across a real property boundary or within a noise sensitive area shall be enforced upon receipt of complaint made or filed with city officials by a person disturbed by such noise disturbance or by direction of the chief of police or his or her designee. Certification by an official charged with enforcement of this article that such complaint was made shall be sufficient to establish the fact of such complaint.

(c) To implement and enforce this article, the community development department and the police department shall have the additional power to:

(1) Conduct research, monitoring, and other studies related to sound.

(2) Upon presentation of proper credentials, enter and inspect any private property or place and inspect any report or records at any reasonable time when granted permission by the owner or by some other person with apparent authority to act for the owner.

(3) Issue sound variances pursuant to section 42-264 of this article.

(4) Deny sound permits or seek a revocation of a sound permit.

(5) Prepare recommendations for consideration by the city council, after publication of notice and public hearing, for establishing the boundaries of noise sensitive areas.

(6) Prepare recommendations to council to designate locations where there is public acceptance of the activity producing the sound pursuant to section 42-250(2) of this chapter.

(7) The sound source or any component thereof may be impounded pending the resolution of any violations charged under this article.

(d) The measurement of sound or noise shall be made with a sound level meter meeting the standards prescribed by the American National Standards Institute or its successor body. Measurements shall be taken so as to be in compliance with the specifications for a valid test as set out by the product manufacture. Training will be administered by the product manufacture representative or any departmental employee(s) who has attended such training.

(e) The measurements used to measure and determine violations for A-Weighted sound measurements shall use an A-weighted frequency weighting with Fast (125 millisecond) time integration, or LAF.

(f) The measurements used to measure and determine violations for permits referring to C-Weighted sound measurements shall use a C-weighted frequency weighting with Fast (125 millisecond) time integration, or LCF.
(O.14,746, 15,566, 15,853)

Sec. 42-264. Application for sound variances or type "J" permits.

(a) Any person desiring to exceed the standard conditions of any type of permit as set out in this article may apply to the community development department for a variance from such conditions.

(b) An application for a type "J" permit under section 42-258 shall be processed as a variance as set forth in this section.

(c) All applicants for such variances shall apply in writing to the community development department. The application shall be submitted at least 30 days prior to the proposed date needed for the sound permit.

(d) All variance applications shall contain the following information:

(1) The name and address of the applicant;

(2) If the application is made on behalf of an organization, the name and address of that organization;

(3) The name and phone number of a contact person;

(4) The proposed dates for which a variance is required;

(5) A description of the event and the terms and conditions of the requested variance;

(6) Information which would demonstrate that complying with the standard conditions for the permit to be issued would constitute an unreasonable or unnecessary hardship on the applicant, on the community, or on other persons.

(e) An application for a sound permit variance shall be submitted to the community development department accompanied by a nonrefundable fee as set out in the schedule of fees.

(f) Upon receipt of an application for a sound permit variance, should the community development department determine there is unreasonable or unnecessary hardship, not including economic loss, should the variance not be granted and also in the case of a type "J" permit the director of the community development department or his or her designee shall determine what property interests may be affected by the granting of a sound permit variance, including but not limited to:

(1) The occupants of surrounding residences and businesses within 200 feet of the noise source; or

(2) The owner or manager of multiple-residence structures, including hotels, within such areas.

(g) The director of the community development department shall notify such property owners or occupants as identified in subsection (f) of this section in writing and delivered by the U.S. Postal Service, ordinary mail, of the application for a sound permit variance and shall give them ten days to give written cause why the variance should not be granted.

(h) If the director of the community development department receives written statements from 25 percent or more occupants who claim to be adversely affected by allowance of the sound permit variance, the director, or the director's designee, may deny the variance. If the denial is appealed the statements shall be forwarded to the hearing officer.

(i) If the application for variance is denied by the community development department for any reason, such denial shall be made in writing and shall be sent to the applicant by regular U.S. mail. The applicant or any person claiming to be adversely affected by such decision to grant or deny a variance may appeal the determination pursuant to Chapter 3 of this Code within ten business days of the date of the decision.
(O.14,746, 14,774, 14,868, 15,566)

Sec. 42-265. Reserved.

Editor's note—Ord. No. 15,566, § 1, adopted March 20, 2017, repealed § 42-265, which pertained to scheduling of hearing on sound variances denials and revocations and derived from Ord. No. 14,746; Ord. No. 14,774.

Sec. 42-266. Denial, or revocation of a sound permit.

(a) Upon determination by the community development department director that a sound permit should be revoked, should not issue, or a renewal of a sound permit should not be issued, the community development director or designee shall give notice to the applicant or permit holder of the city's intent to revoke the permit, to deny its issuance, or deny its renewal.

(b) Notice of the city's intent to revoke, or deny the issuance or renewal of a permit and a brief summary of the factual basis for such action shall be served upon the applicant or permit holder. Such notice shall inform the applicant or permit holder of the time, date and place of a meeting where the person(s) may meet with the community development director or designee for the purpose of presenting additional information regarding the intended action and the factual basis therefore, and that a final decision on the appropriate action will be made after the scheduled time for such meeting. Such notice shall be served upon the applicant or permit holder by personal service or by service upon an employee of the business at the business address, or by regular mail addressed to the applicant or permit holder at the address as shown on the application a minimum of five business days prior to the date set for the meeting.

(c) After the scheduled meeting and after consideration of all the available information including any information provided at the meeting by the applicant or permit holder, the community development department director or designee shall make a final decision based on the considerations set out under section 42-258(g) of this Chapter and any other circumstances including the severity of any code or permit violations. The community development director or designee may revoke the permit, deny its issuance or renewal, or grant the permit, or allow its continuance. The decision shall be in writing and shall identify the basis for such action. The decision shall be promptly served in the same manner as required for the service of the notice required under subsection (b), and shall not be effective until ten days after so served. The decision shall also give notice that it may be appealed to an administrative hearing officer by filing a notice of appeal with the city clerk within ten business days of the date of the decision.

(d) The decision of the community development department director or designee pursuant to this section may be appealed by any person affected by the decision pursuant to the administrative appeal process set forth in Chapter 3 of this Code.
(O.14,746, 14,774, 15,566)

Sec. 42-267. Reserved.

Editor's note—Ord. No. 15,566, § 1, adopted March 20, 2017, repealed § 42-267, which pertained to right of appeal and derived from Ord. No. 14,746; Ord. No. 15,129.

Sec. 42-268. Penalty.

Any person who fails to perform an act required by the provisions of this article, or who commits an act prohibited by the provisions of this article, shall be guilty of a simple misdemeanor or a municipal infraction punishable by a criminal or a civil penalty as provided by section 1-15.
(O.14,746)

Secs. 42-269—42-300. Reserved.

ARTICLE V. ODOR CONTROL

Sec. 42-301. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Atmosphere means all space outside of buildings, stacks or exterior ducts.

Best available control technology (BACT) means the utilization of those technologies, processes, procedures, or operating methods or alterations by an industry or other source which results in the elimination or the maximum achievable reduction of odor pollution from an odor emission point source.

Compliance plan means an agreement between a significant odor generator and the city, which contains the following elements:

(1) An inventory of potential or identified odor emission point sources associated with the industry or source.

(2) An engineering quality plan detailing best available control technologies and appurtenances designed to eliminate or achieve the maximum reduction of odor pollution from an emission point source inclusive of but not necessarily limited to

certain processes, procedures, or operating methods intended to mitigate or control odor pollution.

(3) A detailed explanation of the specifications and operating parameters of the best available control technologies, monitoring instrumentation and equipment, and processes and procedures intended for the mitigation or control of odor pollution.

(4) A specification of the documentation that will be made available for the city's review which will verify the data produced by the monitoring equipment, and which will verify that processes and procedures are conducted consistent with the specifications in the facility's odor control study and plan.

(5) An approved schedule which states, in a time certain manner, the implementation and installation of the best available control technology, processes, procedures, operating methods, and monitoring instrumentation designed to mitigate or control odors at the facility inclusive of an approved completion date.

(6) An acknowledgment of the authority of the city and its agents to enter into the facility or its property in order to investigate complaints and to verify the facility's adherence to the compliance plan.

Emission means a release of air contaminants causing an odor into the outdoor atmosphere.

Enforcement official means the neighborhood inspection administrator for the city or his or her designee.

Nonsignificant odor generator means an industry or other source which has not been designated as a significant odor generator as defined in this section.

Odor means that which produces a response of the human sense of smell to an odorous substance.

Odor pollution means an odor emitted to the atmosphere by an industry or other source which is determined by the enforcement official to be the cause of an odor alert.

Person means an individual, partnership, copartnership, cooperative, firm, company, public or private corporation, trust, estate, joint stock company, or any other legal entity or their legal representative, agent or assign.

Significant odor generator means an industry, facility or other source which has been identified by the neighborhood inspection administrator as the cause of three odor alerts in a 90-day period inclusive of industries, facilities or sources previously found to be in compliance which, through changes in processes, technologies, growth, or from other causes, has begun to generate odors which result in three odor alerts in a 90-day period.

(C85, § 16-154; O.11,432; C91, § 16-154; O.11,662, 15,903)

Cross reference—Definitions generally, § 1-2.

Sec. 42-302. Odor pollution prohibited.

No person shall erect, continue or use any building or other place that occasions odor pollution as defined in section 42-301 of this article. The existence of such is deemed a public nuisance and an environmental violation.

(C85, § 16-155; O.11,432; C91, § 16-155; O.11,662)

Sec. 42-303. Odor hotline.

(a) An odor hotline shall be established by the city to receive all complaints relating to odor pollution.

(b) Records of such complaints shall be maintained. The records shall include names and addresses of callers, times and dates of calls and descriptions of odor nuisances.

(c) Upon receipt of ten calls or more within a six-hour period relating to a single odor description, an alert condition shall be deemed to exist. The hotline operator shall immediately inform the enforcement official of all known details regarding the odor complained of.

(d) The neighborhood inspection administrator shall provide a monthly report of all data generated to the city manager for report to the city council.
(C85, § 16-156; O.11,432; C91, § 16-156; O.11,662, 15,903)

Sec. 42-304. Reserved.

Editor's note—Ord. No. 15,849, § 1, adopted Dec. 16, 2019, repealed § 42-304, which pertained to citizen odor board and derived from Code 1985, § 16-157; Ord. No. 11,432; Code 1991, § 16-157; Ord. No. 11,662; Ord. No. 11,788; Ord. No. 13,112; Ord. No. 13,911; Ord. No. 14,481.

Sec. 42-305. Reports to city council.

(a) The city manager shall provide a report to the city council containing all data generated through the odor hotline.

(b) Reports on any enforcement action undertaken by the neighborhood inspection division shall also be included.

(c) Such report shall be made no later than the second council meeting of each month.
(C85, § 16-158; O.11,432; C91, § 16-158; O.11,662, 15,849, 15,903)

Sec. 42-306. Designation as significant odor generator.

(a) Upon a determination that an industry, facility or other source is a significant odor generator, the neighborhood inspection administrator shall notify the industry, facility or source that it has been found to be a significant odor generator. Appeal regarding such notice may be made by the industry, source or facility as provided in section 42-314 of this article.

(b) In preparation for the submission of a compliance plan, the neighborhood inspection administrator shall require that, within 30 days of such notification to an industry, facility or source, an evaluation and analysis is commenced, including pilot studies when deemed necessary by the neighborhood inspection administrator, of all its processes and potential odor emission points to determine their degree of odor generation. The industry or source shall submit such documentation as may be required by the neighborhood inspection administrator to prove the commencement of the evaluation or analysis and shall provide periodic updates as may be required by the neighborhood inspection administrator. In addition to an evaluation of the odor emission points, the final report shall provide, in engineering detail, a compliance plan utilizing the best available control technology for the mitigation and ongoing control of odor from the emission points designated and determined by the neighborhood inspection administrator. The period of time permitted for this evaluation and analysis and the date for submission of a final report shall be determined by the neighborhood inspection administrator.

(c) Upon receipt of a final report from an evaluation or analysis, the neighborhood inspection administrator shall review the document for adequacy and use of the best available odor control technology in accordance with the following:

(1) If deemed necessary by the neighborhood inspection administrator, the report may be submitted to a private consultant for review and recommendation to the neighborhood inspection administrator; the cost of the consultant's review will be borne by the subject industry, facility or source.

(2) The final report shall also include such monitoring instrumentation and equipment as needed to ensure the maximum effective operation of best available control technology and compliance with this article. The final report also shall include procedures for recordkeeping of the following:

   a. Operation and observation of the monitoring instrumentation and equipment.

   b. Operation and maintenance of the technologies, processes, procedures or operating methods or alterations utilized in or by the best available control technology.

(3) The written confirmation and acceptance of the final report by the neighborhood inspection administrator shall constitute the compliance plan.

(d) Compliance for a period of three years with the compliance plan submitted by an industry, facility or source found to be a significant odor generator shall remove such industry, facility or source from the classification as a significant odor generator.
(C91, § 16-159; O.11,662, 15,903)

Sec. 42-307. Notice by industry.

(a) Violation of this article shall not be found if the person emitting the odor notified the neighborhood inspection administrator that it is or will be involved in the startup, shutdown, cleaning, maintenance or testing of machinery or equipment:

(1) Causing the emission; or

(2) Designated to control, reduce or eliminate emissions.

If feasible for the industry, ordinary maintenance procedures shall be scheduled at such times during the year when it will cause the least odor pollution.

(b) The notice required in this section shall be given in writing, and if given by oral communication due to an emergency situation, confirmed in writing. The notice shall include the date, duration, and approximate time that the repair or maintenance shall be engaged in.

(c) Except in emergencies, this notification shall be made no later than 24 hours nor earlier than seven days prior to the scheduled repair or maintenance.

(d) The enforcement official may confirm such report by inspection of the premises.

(e) If the time requested for such action is considered unreasonably prolonged, the neighborhood inspection administrator may direct that the activity engaged in be conducted in a shorter period of time.

(f) After receipt of such notice, the neighborhood inspection administrator may, if deemed necessary, issue public service advisories that odor conditions may exist.
(C91, § 16-160; O.11,662, 15,903)

Sec. 42-308. Limitations.

(a) Nothing contained in this article shall be deemed to grant to the neighborhood inspection administrator any authority or jurisdiction with respect to odorous air contaminants existing solely within residences or solely within commercial and industrial plants, works, or shops or to affect the relations between employers and employees with respect to or arising out of any condition of air pollution, provided that such odors do not penetrate the atmosphere so as to become a public nuisance.

(b) Information received by the neighborhood inspection administrator or other city employees and agents through filed reports, inspections, or as otherwise authorized in this article that are denoted as confidential records under I.C. § 22.7(3) and (6) shall not be disclosed or opened to public inspection, except as may be necessary in a proceeding concerning a violation of this article. Nothing in this subsection shall be construed to prevent the neighborhood inspection administrator from compiling or publishing analyses or summaries relating to the general condition of the atmosphere, provided that such analyses or summaries do not reveal any information otherwise confidential under this section.
(C91, § 16-161; O.11,662, 15,903)

Sec. 42-309. Enforcement.

(a) The odor pollution control program established by this article shall be implemented, administered, and enforced by the neighborhood inspection administrator of the community development department.

(b) The sections of this article which prohibit the causing or continuing of odor pollution shall be enforced only upon the finding that a source is a significant odor generator as defined in section 42-301 of this article. Notification by the hotline operator as provided in section 42-303 of this article shall be sufficient to establish the fact of an odor alert condition regarding an odor nuisance.

(c) In addition to further implement and enforce this article, the neighborhood inspection administrator may:

(1) Conduct research, monitoring, and other studies related to odor pollution.

(2) Review public and private projects, including those subject to mandatory review or approval by other departments, for compliance with this article, if these projects are likely to cause odor pollution in violation of this article.

(3) At the time of application for a building permit for construction or expansion of an industry, facility or other source which has been determined to be a potential odor generator by the neighborhood inspection administrator, that industry, facility or source may be required to commence an evaluation and analysis of all its processes and potential odor emission points to determine their degree of potential odor generation. In addition to an evaluation of the odor emission points, a final report shall provide, in engineering detail, an odor control plan utilizing the best available control technology for the mitigation and ongoing control of odor from the emission points designated and determined as a result of their study or analysis. No building permit will be issued until such time as final report and control strategy has been submitted to, reviewed, and approved by the neighborhood inspection administrator. Upon receipt of a final report from an evaluation or analysis, the neighborhood inspection administrator shall:

a. Review the document for adequacy and use of the best available odor control technology.

b. If deemed necessary by the neighborhood inspection administrator, the report may be submitted to a private consultant for his or her review and recommendation to the neighborhood inspection administrator; the cost of the consultant's review will be borne by the subject industry, facility or source.

c. The final report shall include such monitoring instrumentation and equipment as needed to ensure the maximum effective operation of best available control technology and compliance with this article. The final report also shall include procedures for recordkeeping of the following:

1. Operation and observation of the monitoring instrumentation and equipment.

2. Operation and maintenance of the technologies, processes, procedures or operating methods or alterations utilized in or by the best available control technology.

d. The written confirmation and acceptance of the final report by the neighborhood inspection administrator shall constitute the control plan which may be modified at any time should actual operation of the industry show that the method used is insufficient or incorrect in controlling odor pollution.

(4) Upon presentation of proper credentials, enter, inspect and test any property or place regarding which complaints have been filed or which has been designated as a significant odor generator or to otherwise enforce and implement this article and inspect any reports, records, or equipment deemed necessary at any time. An administrative search warrant may be obtained as provided in section 1-19 of this Code upon failure of the owner or his or her authorized representative to permit such inspection upon request.

(d) Nonsignificant odor generator. For an industry or a source not designated as a significant odor generator, the following enforcement procedures shall apply:

(1) Upon notification of an odor alert condition by the odor hotline operator, the neighborhood inspection administrator shall:

a. Determine the location of the complaints which result in the establishment of the odor alert condition.

b. Prepare a summary of the odor descriptions contained in the establishment of the odor alert condition.

c. Determine the prevailing weather condition at the time of the alert indicating wind direction, temperature, wind velocity, humidity, and general weather conditions.

d. Visit the general area from which the majority of complaints were generated in order to characterize the nature of the complaint.

(2) Based on the parameters in subsection (d)(1) of this section, the neighborhood inspection administrator shall attempt to make a determination as to the industry or source of origin of the odor alert.

(3) If the determination is made as to the origin of the odor, the neighborhood inspection administrator shall notify the owner, operator, or manager of the facility or other responsible party that the facility has been designated as the point source or origin of the odor alert.

(4) Such notification shall contain the following:

a. The date, times, and locations of the occurrence of the odor nuisances.

b. The potential for the industry or source to be designated as a significant odor generator, and the potential for enforcement action.

(e) Significant odor generators. For an industry or a source designated as a significant odor generator, as defined in section 42-301 of this article, the following enforcement procedures shall apply:

(1) Upon notification of an odor alert condition by the odor hotline operator, the neighborhood inspection administrator shall:

a. Determine the number series of the complaints which resulted in the establishment of the odor alert condition.

b. Prepare a summary of the odor descriptions contained in the complaints, the average duration the odor was noticed and the time of day the first complaint of the alert was filed with the odor hotline.

c. Determine the prevailing weather conditions at the time of the alert including wind direction, temperature, wind velocity, humidity, and general weather conditions.

d. Visit the general area from which the majority of complaints were generated in order to characterize the nature of the complaint.

(2) Based on the parameters in subsection (e)(1) of this section, the neighborhood inspection administrator shall attempt to make a determination as to the industry or source of origin of the odor alert.

(3) If a determination is made as to the origin of the odor alert, the neighborhood inspection administrator shall notify the owner, operator, or manager of the facility or other responsible party that the facility has been designated as the point of origin of the odor alert and is in potential violation of this article.

(4) The neighborhood inspection administrator shall inspect the facility's operating log books pertaining to odor control, the instrumentation monitoring the odor control and process equipment, any processes and equipment that may relate to odor generation and control, and any other equipment and processes that are determined necessary by the neighborhood inspection administrator.

(5) The neighborhood inspection administrator shall make a determination as to whether the facility is in compliance with this article and as to whether the facility is operating within the parameters set forth in its odor abatement compliance plan.

(6) If the neighborhood inspection administrator determines that a violation of this

article exists or that an industry or facility is not operating within the parameters of its odor abatement compliance plan, he or she shall notify the facility's owner, operator, manager, or other responsible party. Negotiations shall then be entered into between the responsible party and the neighborhood inspection administrator regarding the necessary corrective action and the timeframe in which such action shall be taken, but in no way shall the industry source or facility be allowed to frustrate or delay enforcement action. If the facility fails to comply with the notice and the action agreed upon or if no agreement is reached, the neighborhood inspection administrator may commence legal action as prescribed in this article.
(C91, § 16-162; O.11,662, 11,859, 13,013, 15,903)

Sec. 42-310. Odor control permit.

(a) A significant odor generator that has operated for a period of three years, the period commencing from the date of its successful implementation of the agreed upon compliance plan without an odor violation as defined in subsection 42-309(d) of this article, shall cease to be designated as a significant odor generator.

(b) Immediately upon its change in status, an industry or source shall apply for an odor control permit which shall be issued by the neighborhood inspection administrator upon a finding that the industry or source is continuing to operate within the parameters of its compliance plan. In order to make this finding, the neighborhood inspection administrator shall make an initial inspection to determine compliance and shall inspect at least semiannually thereafter.

(c) Failure to operate within the parameters of the agreed upon compliance plan may result in suspension of the odor control permit. Continued operation of the industry or source while the odor control permit is suspended may result in its redesignation as a significant odor generator and/or the application of penalties as set forth in section 42-312 of this article.

(d) The odor control permit shall be renewed at the end of each 12-month period commencing with the date of the initial issuance. The annual fee for the odor control permit shall be $150.00. If an industry or source operates without a valid odor control permit, the application of penalties as set forth in section 42-312 of this article shall result. The neighborhood inspection administrator shall exempt from the payment of fees all public schools, municipal corporations and federal/state facilities. This does not exempt such entities from obtaining an odor control permit or from complying with this article.
(C91, § 16-163; O.11,662, 15,903)

Sec. 42-311. Suspension and revocation of permit.

(a) Any permit issued pursuant to this article may be revoked for violation of this article. No revocation shall issue except upon notice delivered to the permittee by mailing the notice in the regular mail addressed to the permittee at the address listed on the application a minimum of ten days prior to the date set for the hearing before the administrative hearing officer. Such notice shall inform the permittee of the time, date and place of the hearing; the purpose of the hearing; and shall set out the reasons therefor. If a violation of this article is of such nature that the violation is deemed to be an immediate hazard by the neighborhood inspection administrator shall be authorized to temporarily suspend the permit until notice can be given and hearing held. The hearing will be held pursuant to Chapter 3 of this Code.

(b) If, after such a hearing, administrative hearing officer makes a finding based on substantial evidence that a violation of this article did in fact occur as alleged, the neighborhood inspection administrator may suspend or revoke the permit.
(C91, § 16-164; O.11,662, 15,903)

Sec. 42-312. Penalty.

Any person who fails to perform an act required by this article or who commits an act prohibited by this article commits an environmental violation and shall be guilty of a misdemeanor punish-

able by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction, punishable by a civil penalty as provided by section 1-15 of this Code.
(C91, § 16-165; O.11,662, 15,608)

Sec. 42-313. Reserved.

Editor's note—Ord. No. 15,903, § 1, adopted June 22, 2020, repealed § 42-313, which pertained to odor appeals board and derived from Code 1991, § 16-166; Ord. No. 11,662.

Sec. 42-314. Appeals filed.

(a) An industry, facility or source aggrieved by the notice from the neighborhood inspection administrator under subsection 42-306(1) of this article that it is deemed a significant odor generator, may file an appeal, pursuant to chapter 3 of this Code within ten business days of the date of the decision.
(C91, § 16-167; O.11,662, 15,903)

Sec. 42-315. Reserved.

Editor's note—Ord. No. 15,903, § 1, adopted June 22, 2020, repealed § 42-315, which pertained to procedure for processing appeals and derived from Code 1991, § 16-168; Ord. No. 11,662.

Sec. 42-316. Reserved.

Editor's note—Ord. No. 15,903, § 1, adopted June 22, 2020, repealed § 42-316, which pertained to hearing and derived from Code 1991, § 16-169; Ord. No. 11,662.

Sec. 42-317. Effect of filing of appeal.

After an appeal is filed under this article, the neighborhood inspection administrator shall stay all proceedings under this article regarding the appeal.
(C91, § 16-170; O.11,662, 15,903)

Secs. 42-318—42-345. Reserved.

ARTICLE VI. NUISANCES

Sec. 42-346. Definitions.

The definitions found in sections 42-28, 42-451 and 42-477 shall apply to the provisions of this division, provided, however, that the following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Abatement costs (or *costs of abatement*) are the reasonable costs incurred by the city in abating a nuisance. These costs may include, but are not limited to, the costs for labor, police officers, equipment used, and overhead or administrative expenses.

Boat is a craft or device designed for operation on water.

Department is any city department charged with enforcement of any section enumerated in this article.

Enclosed building is any structure having exterior walls and a roof constructed in compliance with applicable ordinances that is secured against entry.

Hearing officer is the city manager or his/her designated representative.

Inoperable and/or unsafe vehicle or boat is any motor vehicle, recreational vehicle, trailer, semitrailer, or boat that meets one or more of the following criteria:

(1) Lacks a current registration or any component part, engine or parts that render it incapable of use and/or unsafe for its intended use;

(2) With a missing, broken or shattered windshield or any exposed broken glass edges;

(3) With a missing fender, door, hood, steering wheel, trunk top, or trunk handle;

(4) That has become a habitat of rats, mice, snakes, or other vermin or insects;

(5) That is left unattended on jacks, blocks, or elevated in any other way which constitutes a threat to the public health, safety or welfare;

(6) That because of its condition or method of storage constitutes a threat to public health and safety.

Junk means all old or scrap copper, brass, lead, or any other non-ferrous metal; old rope, rags, batteries, paper, trash, rubber debris, waste, used lumber or salvaged wood; dismantled or inoperable vehicles, unsafe vehicles, machinery and appliances or parts of such vehicles, machinery or appliances; iron, steel, or other old or scrap ferrous material; old discarded glass, tinware, plastic, or old discarded household goods or hardware; cut brush, including dead or decaying plant material, except a contained compost pile or orderly stacked firewood if cut in lengths less than or equal to four feet and stored at least 18 inches above the ground surface.

Motor vehicle is a device in, upon, or by which a person or property is or may be transported or drawn upon a highway, street or waterway, with the exception of devices moved by human power or used exclusively upon stationary rails or tracks, and includes without limitation an automobile, truck, trailer, motorcycle, tractor, buggy, wagon, farm machinery, or any combination thereof.

Public real property includes the public right-of-way (the area of land, the right to possession of which is secured by the city for roadway purposes and includes the traveled portion of the public streets and alleys as well as the border area, which is all property outside the lot and property lines and inside the curb lines or traveled portion of the public streets or alleys), and all other city-owned real property and improvements thereon.

Unlicensed motor vehicle or *trailer* is any vehicle or trailer that is not displaying a current license as required by state law. For the purposes of this article a valid current license shall not include a stored vehicle license issued under state law. Mere licensing of an inoperable or unsafe motor vehicle or trailer shall not constitute a defense to the finding that the presence of any vehicle constitutes a nuisance.
(C91, § 17-2; O.13,518, 13,718, 14,319, 14,484, 15,191)

Cross reference—Definitions generally, § 1-2.

Sec. 42-347. Nuisance construed.

Whatever is injurious or dangerous to the public health, safety or welfare, including but not limited to those things or actions which are offensive to the senses, or an obstruction to the free use of property so as to unreasonably interfere with the comfortable enjoyment of life or property, or which are identified specifically as nuisances in this article, is a nuisance.
(C91, § 17-1; O.13,518, 14,010, 14,319, 15,191)

Sec. 42-348. Specifically identified nuisances.

Specifically identified nuisances include the following:

(1) Depositing any poisonous material or substance on any real property, so as to allow access to it by any animal or person.

(2) Depositing or storing of flammable junk on any real property, including but not limited to old rags, rope, cordage, rubber, boxes, and paper, unless it is in a building of fireproof construction.

(3) Depositing or storing outside a completely enclosed building items that constitute a threat to the public health, safety or welfare, including but not limited to the following: old or scrap rope, rags, batteries, paper, trash, rubber debris, tires, waste, used lumber or salvaged wood, inoperable machinery or appliances or parts of such machinery or appliances, vehicular component parts, iron, steel, old or scrap household goods or hardware, cut brush or wood including dead or decaying plant material except as contained in a compost pile or orderly stacked firewood if cut in lengths of four feet or less and stored at least 18 inches above the ground surface.

(4) Placement, storage or abandonment of refrigerators, iceboxes or similar containers equipped with an airtight door, lid with a snap, lock or other device which cannot be released from the inside, outside any building or dwelling or within any unoccupied or unsecured building, dwelling or other structure if the door or lid is not disabled.

(5) Depositing or storing of litter, garbage or organic waste on any real property; provided, however, that this article shall not prohibit the storage of litter, garbage or organic waste in authorized private receptacles for collection.

(6) Any tree, shrub, wood or debris which is:

a. Infected with Dutch elm disease, oak wilt, or any disease that is a threat to the entire urban forest; or

b. Infested with emerald ash borer or Asian longhorned beetle or any insect that is a threat to the entire urban forest; or

c. Dead or damaged so as to constitute a threat to the public health, safety or welfare.

(7) Any tree, shrub, or any other plant whose foliage extends over the city right-of-way in violation of section 114-14 or 122-10 of this Code.

(8) Graffiti as is defined in division 2 of article VI of chapter 70 of this Code. Owners of property on which such graffiti is present shall be responsible and liable for the removal of such graffiti pursuant to section 42-352.

(9) Any motor vehicle, trailer or boat that is unlicensed, unsafe or inoperable found upon public or private real property, and the contents therein, which is not stored within an enclosed building. This article shall not apply to legitimate businesses operating in a lawful place and manner provided, however, that such outside areas are screened from public view and do not constitute a threat to the public health, safety or welfare.

(10) Obstructing or encroaching by motor vehicles or otherwise upon any public or private road, street, highway, or right-of-way which causes traffic or pedestrians to cross the marked centerline or leave the usual traveled portion of the roadway, right-of-way or sidewalk to travel around the obstruction or encroachment. This article shall not apply to emergency vehicles and official government or utility vehicles in the performance of their duties nor to other vehicles while legally maneuvering into position or momentarily engaged in receiving or discharging passengers, loading or unloading of merchandise, in obedience to traffic regulations, signs or signals, in an involuntary stopping of the vehicle by reason of causes beyond the control of the operator, or as otherwise authorized in writing by the city.

(11) Businesses, the operation or maintenance of which adversely impacts nearby residential or commercial uses and which:

a. Jeopardizes or endangers the public health or safety, or the health or safety of persons residing or working on the premises or in the surrounding area;

b. Has resulted in or facilitated any of the following activities: disturbances of the peace, illegal drug activity including sales or possession thereof, public drunkenness, drinking in public, harassment of passersby, gambling, prostitution, sale of stolen goods, public urination, theft, assaults, batteries, acts of vandalism, excessive littering, illegal parking, excessive noise (particularly between the hours of 11:00 p.m. and 7:00 a.m.), noxious smells or fumes, traffic violations, or police detention, citations or arrests; or

c. Violates any other section of this article or any other city, state or federal regulation, ordinance or statute.

(12) Abandonment or allowing the abandonment of property in or upon any public real property. Personal property left in or upon public real property, including but not limited to any personal and household items, furniture, appliances, machinery, equipment, building materials, or other items, shall be deemed abandoned.

(13) Erecting or using any building or place for the exercise of any trade, employment, or manufacture, which by occasioning noxious exhalations, offensive smells, or other annoyances that constitute a threat to the public health, safety or welfare.

(14) Emitting dense smoke, noxious fumes, or fly ash.

(15) Causing or allowing any offal, filth, or noisome substance to be collected or to remain in any place.

(16) Discharging sewage, garbage, or any other organic waste matter into or on any public or private real property.

(17) Transporting garbage, night soil, or other organic filth in vehicles or containers which leak or which allow access by insects to the material being transported.

(18) Except as permitted or authorized in writing by the city, obstructing, encroaching upon, or encumbering by fences, buildings, trees, shrubs, or otherwise any public real property, road, private way, street, alley, traffic control device, streetlight, common, landing place, or burying ground.

(19) Obstructing or impeding, without legal authority, the passage of any navigable river, marina, or collection or body of water.

(20) Corrupting or rendering unwholesome or impure the water of any river, stream, lake or pond, or other body of water, or unlawfully diverting such water.

(21) Billboards, signboards, and advertising signs, whether erected and constructed on public or private real property, which so obstruct or impair the view of any portion or part of a public street, avenue, highway, boulevard, or alley or of a railroad or railway track as to render dangerous the use thereof.

(22) Any sign or sign structure which is structurally unsafe or which constitutes a hazard to the public health, safety or welfare because of its location, inadequate maintenance or dilapidation or which is not kept in good repair or which is capable of causing an electric shock to persons likely to come in contact with it.

(23) Any sign, sign structure, vehicle or any other property or structure which obstructs free ingress to or egress from a door, window, fire escape, or any other entrance or exit required by this Code or any other law.

(24) Signs accessible to the general public containing obscene statements, words, or pictures. As used in this subsection, the term "obscene" means and includes any depiction or description of genitals, sex acts, masturbation, excretory functions, or sadomasochistic abuse which the average person, taking the material as a whole and applying contemporary community standards with respect to what is suitable material for minors, would find appeals to the prurient interest and is patently offensive, and the material, taken as a whole, lacks serious literary, scientific, political, or artistic value.

(25) Depositing or permitting to be deposited dirt, debris, or other material:

a. Onto public real property, except as part of a city project or city function or as otherwise permitted or authorized in writing by the city;

b. Into a private storm sewer or drainage way in an amount which could obstruct the flow of water in a public storm sewer or drainage way located upstream from such private storm sewer or drainage way; or

c. Onto public or private real property so as to obstruct or divert the natural flow of surface water causing or threatening to cause damage to a building or its contents on adjoining property.

(26) Any discharge, directly or indirectly, of waters which collect upon private real property from subsurface or surface drainage, including but not limited to that from building footing drains:

a. To a point upon or so adjacent to a public sidewalk or street as to permit the waters so discharged to drain upon a public sidewalk or street during other than periods of community emergency generated by extraordinary high levels of precipitation; or

b. Onto adjoining real property causing or threatening to cause damage to any building, its contents, any structure, or any other thing of value on such adjoining real estate. The city engineer may require that any such discharge be connected to the public sewer system, if available, or be redirected to a discharge point which eliminates or lessens the nuisance.

(27) The discharge of water upon or under a public street or sidewalk because of faulty water service.

(28) Any object or structure that may be erected within 1,000 feet of the limits of any municipal or regularly established airport or landing place which may endanger or obstruct aerial navigation, including takeoff and landing, unless such object or structure constitutes a proper use or enjoyment of the land on which the object or structure is located.

(29) The existence of any hazardous substance, as defined in section 46-92 of this Code, that has been or is being discharged or released into the environment or that is not properly stored or labeled or that is not secured from access by the public.

(30) Failure to maintain the border area as provided in section 102-21 of this Code.

(C91, § 17-1.01; O.13,518, 13,558, 13,587, 13,718, 13,758, 14,010, 14,319, 15,191, 15,588, 15,648, 16,479)

Sec. 42-349. Reserved.

Editor's note—Ord. No. 15,191, § 1, adopted June 10, 2013, repealed § 42-349 which pertained to enumeration of nuisances subject to enforcement by civil action and derived from Code 1991, § 17-1.02; Ord. No. 13,518; Code 2000, § 42-349; Ord. No. 14,319; Ord. No. 14,484.

Sec. 42-350. Reserved.

Editor's note—Ord. No. 15,191, § 1, adopted June 10, 2013, repealed § 42-350 which pertained to emergency actions and derived from Code 1991, § 17-1.03; Ord. No. 13,518; Code 2000, § 42-350; Ord. No. 14,319.

Sec. 42-351. Action to abate.

Except as provided in section 42-351.01, if a department determines that a nuisance exists, such nuisance may be abated and enforced against by notice as set forth in this article, and pursuant to:

(1) A civil action brought by ordinary proceedings, with damages sustained on account thereof, the costs of abatement and civil penalties to be recovered as a personal and/or in rem judgment;

(2) The administrative hearings described in this article, with damages and/or the cost of abatement sustained on account thereof to be recovered as an assessment to be placed against the real property and collected in the same manner as a property tax; or

(3) Any other action authorized by law to protect the public health, safety or welfare, including, but not limited to, injunctive relief.

(O.15,191, 15,648)

Editor's note—Prior to reenactment by Ord. No. 15,191, Ord. No. 13,718 originally repealed § 42-351 which pertained to abandoned property and derived from Code 1991, § 17-1.04 and Ord. No. 13,518.

Sec. 42-351.01. Abatement of graffiti on city property.

Any department of the city may remove or otherwise abate graffiti as defined in division 2 of article VI of chapter 70 of this Code on property that is owned, leased, maintained or operated by the city at any time, for any reason, without providing notice, including notices

required by section 42-358. The requirements of sections 42-351 and 42- 358.02 do not apply to the abatement or removal of graffiti on property that is owned, leased, maintained or operated by the city.
(O.15,648)

Sec. 42-351.02. Abatement of graffiti on private property located within city property and right-of-way.

Any department of the city may remove or otherwise abate graffiti on any utility poles and cabinets, or other utility structures, or any private property, located on any property owned, leased, maintained or operated by the city, including within the public right-of-way, without providing notice, including notices required by section 42-358. The requirements of sections 42-351 and 42-358.02 do not apply to such abatement or removal of graffiti. Reasonable care shall be taken to avoid damage to such private property. In the event of abatements performed by the city under this section, the expense of such abatement shall be borne by the city.
(O.15,648)

Sec. 42-352. Liability.

The owners, agents, contract buyers, tenants, or lessees of all residential dwellings, commercial establishments, or real property upon which a violation of this article is found shall be jointly and severally responsible for compliance with this article and jointly and severally liable for any damages or costs incurred and assessed or awarded under this article.
(C91, § 17-2.01; O.13,518, 14,010, 15,191)

Sec. 42-353. Rebuttable presumption.

In any proceeding charging a violation of this article, proof that the particular violation described constitutes a violation of this article, together with proof that the particular named violator was the owner, agent, tenant, or lessee of the residential dwelling, commercial establishment or real property upon which the violation occurred, shall be deemed to create a rebuttable presumption that such violator was the party violating this article. As to property abandoned in the public real property, it is presumed that the abandoned property was placed there by or with the consent of the owner, agent, tenant or lessee of the abutting property.
(C91, § 17-2.02; O.13,518, 13,718, 15,191)

Sec. 42-354. Habitual violators.

Any person who is found to have violated this article three or more times within a 36-month period, at any address in the city, shall be deemed to be a habitual violator.
(C91, § 17-2.03; O.13,518, 13,900, 15,191)

Sec. 42-355. Powers of department.

Department employees designated by the department director may enter onto and into open unobstructed property and structures to investigate, locate, and identify nuisances that occur in the city. Designated department employees shall have full authority to declare a condition to be a nuisance and issue appropriate notices provided for by this article and such designated employees may take such further action as required and permitted by this article. Designated department employees shall have all powers and authority necessary to cause the abatement of the nuisance in accordance with this article. If entry onto real property for the purposes described in this section is refused, an administrative search warrant may be obtained as provided in section 1-19 of this Code.
(C91, § 17-3; O.13,518, 14,319, 15,191)

Sec. 42-356. Reserved.

Editor's note—Ord. No. 15,191, § 1, adopted June 10, 2013, repealed § 42-356 which pertained to search warrant and derived from Code 1991, § 17-3.01; Ord. No. 13,518.

Sec. 42-357. Interference prohibited.

Interference with the lawful removal of a nuisance by the city is prohibited.
(C91, § 17-3.02; O.13,518)

Sec. 42-358. Notices.

(a) Notice to abate a nuisance shall be given prior to city action to abate a nuisance, except that in the event of an emergency, such notice as is practical under the circumstances, if any is practical, shall be given; provided, however, that nothing herein shall require notice in an emergency if impractical. If notice to abate a nuisance is given pursuant to this article, said notice shall contain the following information:

(1) A description, to the extent possible, of the conditions that constitute the nuisance;

(2) A description of the location of the nuisance;

(3) A statement that the person liable for the presence of the nuisance must correct the nuisance within the reasonable time set forth in the notice and in accordance with this article; and

(4) A statement that upon failure to comply with this article within the time set forth in the notice, the person so notified of the violation shall be deemed liable for the nuisance, and that the city may enter onto the real property and cause the conditions which constitute the nuisance to be abated and assess the costs of abatement against the real property for collection in the same manner as a property tax, following administrative hearing if requested or court action as applicable.

(5) If the department elects to follow the administrative hearing procedure set forth in this article, the notice shall also contain a statement that the person notified, or the person's duly authorized agent as identified in a notarized statement provided by the person notified, may file a written request for an administrative hearing as set forth in section 42-358.02(b) of this article.

(6) For nuisances set forth in sections 42-348(2), 42-348(3), 42-348(4), 42-348(5), 42-348(9) and 42-348(12), the notice shall also contain a statement that any other violation of these sections found on the property at the time of a city cleanup will be removed without further notice.

(b) Notice of costs of abatement shall be given prior to city assessment of such costs. If notice of costs of abatement is given following administrative hearing procedure or emergency action pursuant to this article, said notice shall contain the following information:

(1) A description, to the extent possible, of the conditions that constituted the nuisance;

(2) A description of the location of the nuisance;

(3) A description, to the extent possible, of the abatement actions taken by the city;

(4) A copy of the invoice or other documentation of costs incurred by the city in abating the nuisance; and

(5) A statement that upon failure to make full payment as directed in the notice within the time set forth in the notice, the city may assess the costs of abatement against the real property for collection in the same manner as a property tax, following administrative hearing if requested.

(6) A statement that the person notified, or the person's duly authorized agent as identified in a notarized statement provided by the person notified, may file a written request for an administrative hearing on costs of abatement only, as set forth in section 42-358.02(b) of this article.

(C91, § 17-4; O.13,518, 13,900, 14,319, 15,191, 15,894, 15,965, 16,075)

Sec. 42-358.01. Service of notice.

Notices given pursuant to this article shall be served by certified mail and regular mail, postage prepaid, to all persons deemed responsible for the violation, and to all other parties required by law or by departmental policy or procedure to receive such notices, at their last known mailing addresses as shown by the records of the county auditor, and if deemed appropriate by the depart-

ment director or his/her designee, also at their last known mailing addresses as shown by any other available public record. In addition to and concurrently with mailing, notice may be delivered by a peace officer, process server, or any other method deemed appropriate. Failed attempts to locate the person responsible for the violation shall be documented by the department. (O.15,191)

Sec. 42-358.02. Administrative hearings.

(a) Recipients of notices pursuant to this article are not entitled to administrative hearings, and administrative hearings shall not be held, if the department elects to solely bring civil action to abate the nuisance and collect costs for abatement rather than to follow the administrative hearing procedure, as stated in the notice.

(b) Recipients of notices pursuant to this article for which the department elects to follow the administrative hearing procedure, as stated in the notice, may request an administrative hearing as follows:

(1) Requests shall be made in writing, and either hand-delivered to the city clerk no later than seven calendar days from the date of the notice, or sent to the city clerk via regular mail postmarked by official U.S. postal service cancellation and not by postage meter no later than seven calendar days from the date of the notice.

(2) Each request for hearing shall contain the name, address, electronic mail (e-mail) address, and daytime telephone number of any person requesting a hearing and of any attorney and/or agent duly authorized by the person who has received the notice to represent him/her at the hearing.

(3) Each request for hearing shall set out the requester's basis for the appeal.

(4) Failure to request a hearing within seven calendar days from the date of the notice shall be deemed a waiver of the right to contest the validity of the determination of nuisance and/or determination of costs stated in the notice, as applicable. The information set forth in the notice will be deemed to be valid and abatement and/or assessment of abatement costs will proceed as indicated in the notice.

(c) All administrative hearings requested in compliance with this section shall proceed as follows:

(1) Shall be scheduled by the city clerk to occur as soon as practical following the date of the notice.

(2) Shall be held before a hearing officer and be conducted informally. The department and the person in receipt of the notice may be represented by counsel or duly authorized agent, and examine witnesses, and present evidence.

(3) The person requesting the hearing shall be notified in writing by regular mail or by electronic mail (e-mail), or by phone of the date and time for the hearing at least three business days in advance thereof.

(4) For hearings following notice to abate a nuisance, the hearing officer shall either find that a nuisance exists, or void or reverse the notice. If the hearing officer finds that a nuisance exists and evidence of plans for abatement are presented at the hearing by the recipient of the notice, the hearing officer may grant additional reasonable time for the abatement of the nuisance by the recipient of the notice prior to city abatement of the nuisance.

(5) For hearings following notice of costs of abatement, the hearing officer shall either uphold the amount billed, reduce the amount billed, or waive the costs, and shall not determine any other issue relating to the nuisance abatement including but not limited to any issue that may have been raised at a hearing following notice to abate a nuisance. Any costs not waived by the hearing officer may be assessed against the real property for collection in the same manner as a property tax.

(6) If an owner(s) or their representative fails to appear at the hearing, they shall be considered to be in default and the requested relief shall not be granted.

(d) The determination of the hearing officer shall be in writing, including findings of fact, and is the final administrative decision of the city.

(1) Any party aggrieved by the determination of the hearing officer pursuant to this article may challenge whether the officer exceeded proper jurisdiction or otherwise acted illegally by commencing a certiorari action in the district court for Polk County, Iowa. The petition to initiate a certiorari action must be filed within 30 days after the entry of the final determination unless an extension of time is allowed by the reviewing court pursuant to Division XIV of the Iowa Rules of Civil Procedure. The city manager is hereby authorized to initiate a certiorari on behalf of the city when the city manager, in consultation with the city attorney, deems it necessary and appropriate.

(2) The filing of an action in the district court challenging the determination of the hearing officer does not automatically stop the city from taking action pursuant to such determination. Unless the city has been served with an order from the district court directing otherwise, the city may proceed with enforcement of a determination.

(e) Request for an administrative hearing does not stay an action by the city for alternative relief as allowed by law.
(O.15,191, 15,894)

Sec. 42-359. Nuisances enforced by civil action.

Notices pursuant to this article for which the department elects to proceed by civil action shall be served in the manner set forth in section 42-358.01 of this Code, and shall contain all information set forth in section 42-358(a) of this Code as well as a statement that the city may file a civil action and seek a court order relating to the existence, abatement, and recovery of abatement costs of the nuisance.
(C91, § 17-4.01; O.13,518, 14,319, 15,191)

Sec. 42-360. Emergency actions.

(a) If the department determines that a nuisance exists which constitutes an emergency requiring immediate abatement, the city may perform any emergency action necessary to abate the nuisance without prior notice or abatement hearing.

(b) If the chief of police, or their designee, determines that graffiti on private real property constitutes an emergency requiring immediate abatement, the city may perform any emergency action necessary to abate the nuisance without prior notice or abatement hearing. In the event of abatements performed by the city under this subsection, the expense of such abatement shall be borne by the city.
(C91, § 17-4.02; O.13,518, 14,319, 15,191, 15,648, 16,472)

Sec. 42-361. Abandoned property within public real property.

(a) Property left in or upon public real property, including but not limited to any personal and household items, furniture, appliances, machinery, equipment, building materials or other items, shall be deemed abandoned and is hereby declared a nuisance. Property left in or on public real property as a result of an eviction or a forcible entry and detainer action shall be deemed abandoned and is hereby declared a nuisance.

(b) The abutting property owner is required to maintain all property outside their lot lines and property lines and inside the curb lines or the traveled street surfaces. Any items which create an obstruction of the public right-of-way or sidewalk, and any items within the traveled portion of the public right-of-way or sidewalk, and items which remain on the untraveled portion of public right-of-way or any untraveled road or alley for a period of 48 hours, shall be deemed abandoned and to constitute a nuisance subject to removal from the real property by the city with or without notice.

(c) The department may abate the nuisance and remove abandoned personal property from public real property and assess costs thereof by administrative hearing process or court action, as determined by the department director or his/her designee. In the alternative, the department may remove the personal property from the public real property and dispose of or use the personal property in any manner that the department so chooses, without notice or assessment of costs.

(d) It shall not be a defense to this article that the public works department of the city has been contacted for a bulk waste pick up, if the items were placed on the curb or right-of-way prior to the pick up date assigned by the public works department.

(C91, § 17-4.03; O.13,518, 13,718, 14,010, 15,191)

Sec. 42-362. Notice of violations—Administrative penalties and appeal to director.

(a) If the public works department determines that a violation of section 42-348(25) or section 42-348(26) has been committed, the public works deputy director is authorized to issue a notice of violation imposing an administrative penalty upon any person who commits an act or fails to perform an act causing such nuisance.

(b) The administrative penalty for such violations shall be as provided in the schedule of administrative penalties adopted by the city council by resolution.

(c) Notice of violation, with the applicable penalty for such violation noted thereon, shall be issued to and served upon the violator. Service of the notice may be by regular mail or delivery in person. Penalties shall be paid in full within 30 days of the issuance of the notice.

(d) Such notice shall include:

(1) A statement that the violator has a right to appeal regarding the violation; and

(2) A statement that the violator may file a written request for hearing with the public works director or his or her authorized representative. The appeal must be made within 30 days of issuance of the notice and identify the notice of violation appealed from, state the basis for the appeal, and the violator's name, mailing address, email address, and daytime telephone number. The public works director or his authorized representative will review the appeal on the basis of the record and will notify the violator by mail, telephone or email of the decision as promptly as is reasonably possible. The appeal shall stay payment of the administrative penalty until the appeal is decided. If issuance of the notice of violator is upheld, the violator shall have 30 days from issuance of the appeal decision to pay the administrative penalty.

(e) Penalties assessed pursuant to notice of violation shall be paid by the violator in full as directed in the notice within 30 days of its issuance. Corrective action as required pursuant to notice of violation shall be completed by the violator as directed in the notice within 30 days of its issuance.

(f) The administrative penalties set out in the schedule of administrative penalties shall be charged in lieu of the action to abate provided for in sections 42-351, unless the violator refuses to correct the violation and pay the scheduled administrative penalty, or the director determines that immediate prosecution pursuant to abatement, misdemeanor or municipal infraction prosecution pursuant to sections 42-351 and 42-364, in view of the particular circumstances of the case, necessary to achieve compliance with the requirements of this article. The public works department shall maintain a record of all administrative penalties charged or other enforcement actions taken.

(O.15,877)

Editor's note—Prior to reenactment by Ord. No. 15,877, § 1, adopted March 20, 2020, Ord. No. 15,191, § 1, adopted June 10, 2013, repealed § 42-362 which pertained to hearings to contest notice of violation and derived from Code 1991, § 17-4.04; Ord. No. 13,518; Ord. No. 13,718; Code 2000, § 42-362; Ord. No. 14,319.

Sec. 42-363. Administrative hearings for administrative penalties.

Recipients of notice of violation imposing an administrative penalty pursuant to section 42-362

whose appeal pursuant to section 42-362(d) is denied by the public works director, or his or her designee, may request an administrative hearing in writing, which is either hand-delivered to

the city clerk no later than seven calendar days from the date of the decision, or sent to the city clerk via regular mail postmarked by official U.S. postal service cancellation and not by postage meter no later than seven calendar days from the date of the decision. Such request for hearing shall be made pursuant to section 42-358.02(b). The conduct of such administrative hearing shall be as set forth in sections 42-358.02(c), (d) and (e). If the recipient of the notice of violation chooses to have an agent duly authorized by the recipient to file a request for an administrative hearing and/or to represent him/her at the hearing, such agent must be identified in a notarized statement filed with the request for administrative hearing.
(O.15,877)

Editor's note—Prior to reenactment by Ord. No. 15,877, § 1, adopted March 20, 2020, Ord. No. 15,191, § 1, adopted June 10, 2013, repealed § 42-363 which pertained to hearings regarding cost of abatement and derived from Code 1991, § 17-5; Ord. No. 13,518; Ord. No. 13,718; Ord. No. 13,648; Ord. No. 13,718, and from Code 2000, § 42-363; Ord. No. 13,900; Ord. No. 13,941; Ord. No. 13,993; Ord. No. 14,319.

Sec. 42-364. Civil actions; alternative relief.

(a) Any person who fails to perform an act required by this article or who commits an act prohibited by this article shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.

(b) Proceeding with the administrative hearing, civil action, or emergency action as authorized in this article does not preclude the city from seeking alternative relief from a court in the same action or as a separate action, including but not limited to an order for abatement or injunctive relief.

(c) In addition to other remedies set forth in this article, when it is determined by the department that a nuisance exists and/or that a person is a habitual violator, the city may file a civil action in the district court seeking an order enjoining the person from further violation of this article on real property owned or controlled by such person or real property where such person acts as an agent, tenant, or lessee of any residential dwelling, commercial establishment and/or real property within the city. The city may further request that upon entry of the injunction the court allow the city to abate further violations without notice and/or seek an order of contempt.
(C91, § 17-6; O.13,518, 13,648, 15,191)

Secs. 42-365—42-390. Reserved.

ARTICLE VII. LITTERING*

Sec. 42-391. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Aircraft means any contrivance known or invented that is used or designated for navigation or for flight in the air. The term "aircraft" shall include helicopters and lighter-than-air dirigibles and balloons.

Authorized private receptacle means such a litter collection and storage receptacle as required and authorized in division 2 of article II of chapter 98 of this Code.

Handbill means any printed or written matter, any sample or device, dodger, circular, leaflet, pamphlet, newspaper, magazine, paper booklet, or any other printed or otherwise reproduced original or copies of any literature.

Litter means any decomposable or nondecomposable solid or other waste material.

Newspaper means any newspaper of general circulation as defined by general law, any newspaper duly entered with the United States Postal Service in accordance with federal statute or regulation, and any newspaper filed and recorded with any recording officer as provided by general law and, in addition thereto, means and includes any periodical or current magazine regularly published with not less than four issues per year, and sold to the public.

Vehicle means every device in, upon, or by which any person or property is or may be

*__Cross reference—__Solid waste, ch. 98.

transported or drawn upon a highway, including devices used exclusively upon stationary rails or tracks.
(C54, § 3A-1; O.6164; C62, § 3A-1; O.8463; C75, C79, C91, § 16-65)

Cross reference—Definitions generally, § 1-2.

Sec. 42-392. Depositing in public and private places.

No person shall throw or deposit litter in or upon any stream or body of water, street, sidewalk or public park, cemetery or other public place or upon private property within the city except in public receptacles or in authorized private receptacles for collection, in such a manner so as to prevent litter properly placed in the receptacle from being scattered or being carried or deposited by the elements or animals outside of such receptacle.
(C54, § 3A-2; O.6164; C62, § 3A-2; O.8463; C75, C79, C91, § 16-66)

Sec. 42-393. Construction of receptacles to prevent scattering.

Public receptacles or authorized private receptacles shall be located in a sufficient number of appropriate places throughout the city for the deposit and collection of litter, and such receptacles shall be constructed, maintained and cleaned in such a manner as to prevent litter properly placed in them from being scattered or being carried or deposited by the elements or animals outside of such receptacle.
(C54, § 3A-3; O.6164; C62, § 3A-3; O.8463; C75, C79, C91, § 16-67)

Sec. 42-394. Sweeping into gutters.

No person, including but not limited to a person owning or occupying a place of business, shall sweep into or deposit in any manner in any gutter, street, or other public place within the city the accumulation of litter from any building or lot or from any public or private sidewalk, parking lot or driveway. Persons, including but not limited to persons owning and occupying places of business within the city, shall keep the sidewalks and parking in front of their premises free of litter.
(C54, § 3A-4; O.6164; C62, § 3A-4; O.8463; C75, C79, C91, § 16-68)

Sec. 42-395. Vehicle loads.

No person shall move any vehicle within the city unless such vehicle is so constructed or loaded as to prevent any load, contents or litter from being blown or deposited upon any street, alley or other public place. If any person shall move any vehicle within the city, the wheels or tires of which carry onto or deposit in any public place mud, dirt, sticky substances, litter or foreign matter of any kind, such person shall remove such matter the same day.
(C54, § 3A-5; O.6164; C62, § 3A-5; O.8463; C75, C91, § 16-69)

Cross reference—Traffic and vehicles, ch. 114.

Sec. 42-396. Throwing or distributing handbills.

No person shall throw or deposit or cause to be thrown or deposited any handbill in or upon any sidewalk, street or other public place within the city.
(C54, § 3A-7; O.6164; C62, § 3A-7; O.8463; C75, C79, § 16-71; O.10,672; C91, § 16-71(a))

Cross reference—Advertising, ch. 6.

Sec. 42-397. Posting notices.

No person shall post or affix any notice, poster, or other paper or device, calculated to attract the attention of the public, to any lamp post, public utility pole, or shade tree in the public right-of-way, or upon any public property, or public structure or building, except as may be authorized or required by law.
(C54, § 3A-12; O.6164; C62, § 3A-12; O.8463; C62, § 3A-8; C75, C79, C91, § 16-72; O.13,783)

Sec. 42-398. Placing handbills on vehicles.

No person shall place any handbill in or upon any vehicle not owned or controlled by such person.
(C54, § 3A-8; O.6164; C62, § 3A-8; O.8463; C62, § 3A-9; C75, C79, C91, § 16-73)

Cross references—Advertising, ch. 6; traffic and vehicles, ch. 114.

Sec. 42-399. Depositing handbills on vacant premises.

No person shall throw or deposit any handbill in or upon any private premises, whether owned by such person or not, which are temporarily or continuously uninhabited or vacant. Nothing provided in this section shall prevent the owner or person in control of such property from properly and securely storing such materials thereon.
(C54, § 3A-9; O.6164; C62, § 3A-9; O.8463; C62, § 3A-10; C75, C79, C91, § 16-74)

Sec. 42-400. Distributing handbills and newspapers at private premises.

(a) No person shall throw, deposit, or distribute any handbill or newspaper in or upon private premises which are inhabited unless:

(1) Any such handbills or newspapers are wrapped, bound or secured in such a manner as to prevent them from being carried or deposited by the elements upon public or private property; and

(2) Any such handbills or newspapers are placed at any of the following locations or in any of the following manners:

a. Anywhere on the private premises with the express consent of the owner or occupant;

b. At the front door step;

c. Hung or placed on the front door knob or handle;

d. Hung on a hook placed for the purpose of receiving handbills or newspapers;

e. Placed in a secondary mailbox or other reception device intended for handbills or newspapers and not the U.S. mail; or

f. By handing directly to a person present in or upon such private premises.

(b) (1) No person shall throw, deposit, or distribute any handbill or newspaper in or upon private premises when the owner or occupant specifically requests in writing no handbill or newspaper delivery by any means be made to his or her premises, and such writing has been provided to the publisher and/or distributor of such handbill or newspaper.

(2) A publisher of a newspaper or handbill may, at its own expense, conduct an annual mail and/or direct delivery survey of occupants of residences without curbside mailboxes. If such a survey is conducted; and

a. a survey card is mailed or delivered to each such residence annually; and

b. the survey card clearly states the occupant's right to refuse delivery of the publisher's publication; and

c. the survey card clearly states the occupant's right to immediately stop delivery of the publisher's publication; and

d. the survey card is preaddressed to the publisher, with postage prepaid or guaranteed,

then unless the occupant has previously requested no delivery under subsection (b)(1) above, the publisher may assume express consent exists to deliver the newspaper or handbill in the private driveway of occupants who do not return the survey card which states the occupant's desire to discontinue delivery of the publication.

(c) This section shall not apply to the distribution of mail by the United States Postal Service.
(C54, § 3A-10; O.6164; C62, § 3A-10; O.8463; C62, § 3A-11; C75, C79, C91, § 16-75; O.13,980)

Sec. 42-401. Dropping from aircraft.

No person in an aircraft shall throw out, drop, or deposit within the city any litter, handbill, or any other object, provided that the city council may waive the terms of this section upon application.
(C54, § 3A-11; O.6164; C62, § 3A-11; O.8463; C62, § 3A-12; C75, C79, § 16-76; O.9824; C91, § 16-76)

Cross reference—Aviation, ch. 22.

Sec. 42-402. Responsibility to maintain premises free of litter.

The owner or person in control of any private property shall at all times maintain the premises free of litter; provided, however, that this section shall not prohibit the storage of litter in authorized private receptacles for collection.
(C54, § 3A-14; O.6164; C62, § 3A-14; O.8463; C62, § 3A-13; C75, C79, C91, § 16-77)

Sec. 42-403. Clearing of private property by city.

(a) *Notice to remove.* The environmental health officer is authorized and empowered to notify the owner of any open or vacant private property within the city or the agent of such owner to properly dispose of litter located on such owner's property which is dangerous to public health, safety, or welfare. Such notice shall be by certified mail addressed to the owner at his or her last known address.

(b) *Action upon noncompliance.* Upon the failure, neglect or refusal of any owner or agent so notified to properly dispose of litter dangerous to the public health, safety, or welfare within a time set by the environmental health officer or his or her designee, after receipt of written notice provided for in subsection (a) of this section or within this set time after the date of such notice, if the notice is returned to the city post office department because of inability to make delivery thereof, provided the notice was properly addressed to the last known address of such owner or agent, the environmental health officer is authorized and empowered to pay for the disposing of such litter or to order its disposal by the city.

(c) *Assessment of costs.* When the city has effected the removal of litter from private property or has paid for its removal, the actual cost of removal of such litter shall be paid by the owner of the property and shall be assessed against such property and collected as set forth in sections 102-131 to 102-136 of this Code, in the same manner as provided for the removal of snow and ice from sidewalks.
(C54, § 3A-15; O.6164; C62, § 3A-15; O.8463; C62, § 3A-14; C75, C79, § 16-78; O.9835; C85, § 16-78; O.11,048; C91, § 16-78; O.13,013)

Sec. 42-404. Evidence of violation.

Whenever litter is thrown, deposited, dropped, or dumped from any vehicle, boat, aircraft, or other private conveyance not carrying passengers for hire, it shall be prima facie evidence that the operator of the conveyance shall have violated this article.
(C62, § 3A-15; O.8463; C75, C79, C91, § 16-79)

Sec. 42-405. Enforcement.

All law enforcement agencies, officers, and officials of the city or of any agency licensed by such officers or agencies or any official of any organization established by this city are authorized, empowered and directed to enforce compliance with this article. In addition, the city council is authorized to appoint or direct the establishment or deputization of organizations or individuals to enforce this article, and any person observing a violation of this article may initiate prosecution therefor through appropriate legal officers.
(C62, § 3A-16; O.8463; C75, C79, C91, § 16-80)

Sec. 42-406. Penalty.

Any person who fails to perform an act required by this article or who commits an act prohibited by this article shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.
(C54, § 3A-16; O.6164; C62, § 3A-16; O.8463; C62, § 3A-17; C75, C79, C85, § 16-81; O.11,030; C91, § 16-81; O.15,608)

Sec. 42-407. Legally authorized disposal.

Nothing contained in this article shall be construed to apply to legally designated places used for the authorized disposal of litter.
(C62, § 3A-18; O.8463; C75, C79, C91, § 16-82)

Secs. 42-408—42-425. Reserved.

ARTICLE VIII. SNOW DISPOSAL*

Sec. 42-426. Illegal dumping.

No person shall throw, deposit, place, drop or spill snow being hauled upon the streets, sidewalks, or other public rights-of-way.
(O.16,175)

Sec. 42-427. Civil violations and penalties.

Any person who violates or resists the enforcement of any of the provisions of this article shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.
(O.16,175)

Secs. 42-428—42-450. Reserved.

ARTICLE IX. USE AND MAINTENANCE OF DRAINAGE FACILITIES

DIVISION 1. ILLICIT DISCHARGES INTO THE MUNICIPAL SEPARATE STORM SEWER SYSTEM OR WATERS OF THE STATE

Sec. 42-451. Definitions.

The definitions found in sections 42-28 and 42-477 shall apply to the provisions of this division, provided, however, that the following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Best management practices (BMP) means schedules of activities, prohibition of practices, maintenance procedures, structural controls, source area controls, treatment requirements, operating procedures, outdoor storage containment and other management practices to prevent or reduce pollutants in runoff entering waters of the state.

Department means the city department of public works.

Discharge means the release of water and any elements, compounds, and particles contained within or upon, from property owned or controlled by an individual, individuals, or entity and where the release originates on said property.

Groundwater means a water of the state which occurs beneath the surface of the earth in a saturated geological formation of rock or soil.

Illicit connection means any connection to the MS4 that is not composed entirely of stormwater and is not authorized by a separate NPDES permit or included in an approved SWPPP.

Illicit discharge means any discharge to a MS4 that is not composed entirely of stormwater, except for discharges authorized by a NPDES permit or any other discharge not requiring a NPDES permit such as water line flushings, landscape irrigation, fire fighting, and similar discharges.

Prohibited non-stormwater means stormwater containing any measurable pollutants, unless authorized by a NPDES permit.

Stormwater means water runoff from precipitation, including snowmelt runoff.

Water pollution means the contamination or alteration of the physical, chemical, biological or radiological integrity of any water of the state or the MS4 by a source resulting in whole or in part from the activities of humans, which is harmful, detrimental, or injurious to public health, safety or welfare, to domestic, commercial, industrial, agricultural, or recreational use or to livestock, wild animals, bird, fish, or other aquatic life.

Waterways means the ditches, private drainageways, private drainage pipes, ponds, lakes, rivers, streams, private drainage intakes, or any collection of water on private property within the city which is not a part of the MS4 system.
(O.14,484)

Cross reference—Definitions generally, § 1-2.

*__Editor's note—__**Ord. No. 16,175, § 1, adopted Sept. 12, 2022, amended Art. VIII in its entirety to read as herein set out. Former Art. VIII, §§ 42-426—42-432, pertained to snow dump, and derived from Ord. No. 13,662; Ord. No. 14,184; Ord. No. 15,608.

Sec. 42-452. Declaration of purpose.

The city council finds, determines and declares it to be conducive to the health, welfare, safety and convenience of the city and its residents to provide for the regulation of non-stormwater discharge and deposit to the MS4 and waters of the state within the city by establishing methods for controlling the introduction of pollutants into the MS4 and waters of the state within the city in order to comply with the requirements of the city's NPDES permit.
(O.14,484)

Sec. 42-453. Prohibition of illicit discharges or deposits into MS4 and waters of the state.

No person shall deposit, discharge, or permit or cause to be deposited or discharged into the MS4 or water of the state within the city anything other than stormwater, except for allowable non-stormwater or pollutants for which (i) an NPDES permit has been issued and (ii) such discharge or deposit is in compliance with the MS4 NPDES permit.
(O.14,484)

Sec. 42-454. Prohibition of illicit connections.

No person shall construct or use a connection to the MS4 or waters of the state without approval of the city. No person shall use a connection to the MS4 or water of the state which was not approved by the city in the past as documented in plans, maps, or equivalent records and approved by an authorized employee of the city.
(O.14,484)

Sec. 42-455. Prohibition of obstruction of waterways.

No person shall deposit or permit to be deposited dirt, debris or any other thing in an amount which could cause an obstruction to the flow of the MS4 or a waterway either upstream or downstream from the point of deposit.
(O.14,484)

Sec. 42-456. Inspection and order to abate or terminate connection to MS4 or waters of the state.

The department of public works may enter at all reasonable times and as often as necessary in or upon any private or public property for the purpose of investigating waterways, facilities, conditions and practices which may be a violation of this division and to determine compliance with this division; including the right to take samples and examine and copy records and the performance of additional duties defined by state and federal laws. The requirements of this division shall be enforced by the department of public works. The director shall have full authority to declare a violation and issue notices provided for in this division and to take action as required and permitted by this division. The director shall have all powers and authority necessary to cause the abatement of violations under this article. The director shall have the authority to terminate access to the MS4 of a person violating this division if such termination would abate or reduce an illicit discharge pursuant to 42-458.
(O.14,484)

Sec. 42-457. Notice of violations—Administrative penalties.

(a) The director is authorized to issue a notice of violation imposing an administrative penalty upon any person who fails to perform an act required by this division or who commits an act prohibited by this division.

(b) The administrative penalty for such violations shall be as provided in the schedule of administrative penalties adopted by the city council by resolution.

(c) Notice of violation, with the applicable penalty for such violation noted thereon, shall be issued to the violator by the director. Service of the notice may be by regular mail or delivery in person. Penalties shall be paid in full within 30 days of the issuance of the notice.

(d) The administrative penalties set out in the schedule of administrative penalties shall be charged in lieu of the fines and penalties provided for in section 42-465, unless the violator refuses

to correct the violation and pay the scheduled administrative penalty, or the director determines that immediate prosecution pursuant to misdemeanor or municipal infraction prosecution pursuant to section 1-15 is, in view of the particular circumstances of the case, necessary to achieve compliance with the requirements of this division. The public works department shall maintain a record of all violations, administrative penalties charged or other enforcement actions taken.
(O.14,484)

Sec. 42-457.01. Administrative hearings.

Recipients of notice of violation pursuant to this article may request an administrative hearing as set forth in section 42-358.02(b) of this chapter. The conduct of such administrative hearing shall be as set forth in sections 42-358.02(c), (d) and (e) of this chapter. If the recipient of the notice of violation chooses to have an agent duly authorized by the recipient to file a request for an administrative hearing and/or to represent him/her at the hearing, such agent must be identified in a notarized statement filed with the request for administrative hearing.
(O.15,250, 15,877)

Sec. 42-458. Determination of illicit discharges as public nuisance and notice of abatement.

(a) Discharges in violation of this division are deemed to constitute a public nuisance.

(b) If the director determines that a discharge in violation of this division has occurred or is occurring, such nuisance may be abated and enforced against and the costs of such abatement invoiced and assessed as set forth in and pursuant to article VI of chapter 42 of the Code.
(O.14,484, 15,250)

Sec. 42-459. Right to assess costs of abatement by city.

When the city abates an illicit discharge pursuant to article VI of chapter 42, the city may

assess the actual costs of abating such illicit discharge to the owner of the real estate found to be in violation of this division.
(O.14,484, 15,250)

Sec. 42-460. Assessment of costs of abatement by city.

The actual cost of abating illicit discharges to the MS4 from public or private property shall be paid by the owner of the real property determined to be the source of such discharge, in violation of this division, and such costs shall be assessed against such real estate if not paid by the owner.
(O.14,484, 15,250)

Sec. 42-461. Certification of assessment for collection.

Upon adoption by the city council, the schedule of assessments for the abatement of the illicit discharge to the MS4 from public or private property and the resolution approving such shall be certified by the city clerk to the county auditor for collection in the manner provided by law.
(O.14,484)

Sec. 42-462. Reserved.

Editor's note—Ord. No. 15,250, § 1, adopted Jan. 13, 2014, repealed § 42-462, which pertained to allocation of cost and derived from Ord. No. 14,484.

Sec. 42-463. Reserved.

Editor's note—Ord. No. 15,250, § 1, adopted Jan. 13, 2014, repealed § 42-463, which pertained to notice of right to administrative hearing on public nuisance and derived from Ord. No. 14,484.

Sec. 42-464. Reserved.

Editor's note—Ord. No. 15,250, § 1, adopted Jan. 13, 2014, repealed § 42-464, which pertained to administrative hearing for public nuisance and assessment of costs of removal and derived from Ord. No. 14,484.

Sec. 42-465. Criminal and civil penalties.

(a) Any person who fails to perform an act required by this division or who commits an act prohibited by this division or who resists the enforcement of any section of this division shall be guilty of a misdemeanor punishable by a fine as provided by section 1-15 of this Code.

(b) Any person who fails to perform an act required by this division or who commits an act prohibited by this division or who resists the enforcement of any section of this division shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.
(O.14,484, 15,608)

Sec. 42-466. Right of city to seek alternative relief.

The city may seek alternative relief from the court, including an order for abatement or injunctive relief, in the event that the city files a simple misdemeanor charge, issues a notice of administrative penalty, and/or files a municipal infraction for the same violation of this division.
(O.14,484)

Secs. 42-467—42-475. Reserved.

DIVISION 2. USE AND MAINTENANCE OF PUBLIC DRAINAGEWAYS, PRIVATE DRAINAGEWAYS AND PRIVATE DRAINAGE PIPES

Sec. 42-476. Title.

This division shall be known as the drainage facilities maintenance ordinance.
(O.14,484)

Sec. 42-477. Definitions.

The definitions found in sections 42-28 and 42-451 shall apply to the provisions of this subdivision, provided however that the following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(1) *Adequate maintenance* or *adequately maintain* means taking all necessary and appropriate action to protect and preserve the structural integrity of a drainage facility, and periodically cleaning it to remove debris and sediment, all as provided in this article so, that the natural

or designed stormwater flow within the drainage facility is maintained and preserved.

(2) *City stormwater drainage area* means an area of land owned by the city or upon which the city has an easement for stormwater flowage allowing it to maintain such flow, and upon which is located a public drainageway, storm sewer or stormwater detention basin or any combination of such facilities.

(3) *Drainage facilities* means and includes a city stormwater drainage area, a constructed channel, a private drainageway, a private drainage pipe, a public drainageway or a storm sewer.

(4) *Private drainageway* or *drainageway* means a ditch on private property, which can, in the opinion of the director, be maintained and function adequately for the drainage of naturally occurring stormwater and surface water.

(5) *Private drainage pipe* or *drainage pipe* means and includes a pipe designed and intended to drain private property, or both private and public property, which is located in whole or in part on private property. For purposes of this definition, private property shall be deemed to include property owned by governmental entities other than the city.

(6) *Property owner* or *owner*, as used in this article, means the fee title owner or contract purchaser of the property, or party in possession thereof under foreclosure, forfeiture or other judicial proceeding. *Owner* shall also be deemed to include a former fee title owner, contract purchaser of property or party in possession thereof under foreclosure, forfeiture or other judicial proceeding, who installed or allowed the installation of a substandard private drainage pipe upon private property or in a drainageway without city approval.

(7) *Public drainageway* means a ditch on property owned by the public or on private property for which the city has an easement for stormwater flowage. For purposes of this definition, private property shall be deemed to include property owned by governmental entities other than the city.

(8) *Public storm sewer* means a pipe designed and intended for the drainage of stormwater, located on city property, in city street right-of-way, or on a city easement.

(O.14,484)

Cross reference—Definitions generally, § 1-2.

Sec. 42-478. Statement of policy regarding maintenance of drainage facilities.

It is the city's policy that the city will perform major maintenance (repair, replacement, major grading) and routine maintenance (mowing, cleaning, minor grading) of stormwater drainage facilities on city property and in city maintained street rights-of-way. It is further the city's policy that the city will perform major maintenance (repair, replacement, major grading) and routine maintenance (mowing, cleaning, minor grading) of stormwater drainage facilities in permanent stormwater drainage easement areas which have been accepted by the city and in which the city has reserved the right to repair, replace and maintain those facilities and has expressly accepted responsibility for routine maintenance. Major and routine maintenance of all other stormwater drainage facilities situated on private property shall be the responsibility of the owners of the properties upon which such facilities are located, except as hereinafter provided.

(O.14,484)

Sec. 42-479. City approval required for construction of private drainage pipes or related facilities or for connection to city drainage facilities.

Persons other than authorized city personnel or city contractors are prohibited from working on or making alterations or additions to city drainage facilities, including the making of connections or attachments to any city storm sewer, or to any city maintained constructed channel,

without prior approval and issuance of permit by the city engineer. All proposed new installations of or improvements to driveway pipes or aprons, private drainage pipes or private drainageways or related facilities, running immediately to, from, or in city maintained street rights-of-way, city easement area or city stormwater drainage area, must be reviewed by the city engineer and, if approved, shall be installed in accordance with city standards and specifications. All permitted improvements shall be subject to inspection by the city engineer prior to final approval.
(O.14,484, 15,690)

Sec. 42-480. Piping of private drainageways.

The owner of any property, across or through which a private drainageway passes, shall be prohibited from installing a drainage pipe to enclose such drainageway in whole or in part without prior approval and issuance of permit by the city engineer. All proposed new drainage pipes to be installed on private property shall be installed in accordance with city standards and specifications. All permitted improvements shall be subject to inspection by the city engineer prior to final approval.
(O.14,484, 15,690)

Sec. 42-481. Removal of substandard drainage pipes and related facilities.

When a private drainage pipe or related facilities have been placed upon private property or in a city maintained street right-of-way, in a city maintained easement area, or in a city stormwater drainage area, and when it is determined by the city engineer that such drainage pipes or related facilities do not meet city standards and specifications, thereby endangering public safety or public or private property, or causing frequent maintenance problems, the city engineer may issue an order to the owner of such private property or to the person who installed such substandard drainage pipe or related facilities, directing that such substandard facilities be removed and that the drainage pipes and/or related facilities be brought up to minimum city standards and specifications. Whether the existing substandard drainage pipes and/or related facilities were constructed prior to or after the adoption of this subdivision, the city may require the person who constructed or who owns, operates or maintains such substandard drainage pipe or related facility to remove and replace the facility to minimum city standards and specifications at the sole expense and responsibility of such person.
(O.14,484, 15,690)

Sec. 42-482. Required maintenance of public drainageways on private property, private drainageways and private drainage pipes.

The owner of any property, across or through which a public drainageway, a private drainageway or private drainage pipe passes, shall maintain said drainageway or drainage pipe, as hereafter provided.

(1) The owner of private property upon which is situated a public drainageway or a private drainageway as herein defined shall maintain such drainageway in conformance with the following requirements:

   a. The property owner shall periodically inspect the drainageway and shall remove litter and debris.

   b. The property owner shall not place or allow the placement of trees, bushes, shrubs, brush, or other plant materials within the drainageway without the prior written consent of the director.

   c. The property owner shall not place or allow the placement of yard debris as defined in chapter 98 or soil within the drainageway.

   d. The property owner shall not place or allow the placement of rock or broken concrete within the drainageway without the prior written consent of the director.

e. The property owner shall not regrade the drainageway without the prior written consent of the director.

f. The property owner shall not erect or construct any structure within the drainageway without the prior written consent of the director.

g. The property owner shall, upon direction of the director, remove from the drainageway any structure, trees, bushes, shrubs, brush, weeds, soil, rock, yard debris or other debris which the director determines has adversely impacted the drainage capacity of the drainageway.

(2) The owner of private property upon which is situated a private drainage pipe as herein defined shall maintain such drainage pipe in conformance with the following requirements:

a. The property owner shall periodically inspect the drainage pipe and shall remove therefrom litter, debris and silt.

b. The property owner shall periodically inspect all inlets to and outlets from said drainage pipe and shall remove therefrom litter, debris and silt which would impede surface water or stormwater from entering or exiting said drainage pipe.

c. The property owner shall, upon direction of the director, remove from the drainage pipe any litter, debris, or silt which the director determines has adversely impacted the drainage capacity of the drainage pipe.

(O.14,484)

Sec. 42-483. Enforcement.

The director and the city engineer shall be authorized to enforce this subdivision as hereinafter provided.
(O.14,484, 15,690)

Sec. 42-484. Enumeration of stormwater drainage nuisances.

The following are nuisances that may be prosecuted as provided in article VI of this chapter:

(1) The installation or maintenance of a substandard drainage pipe in a private drainageway, in a city street right-of-way, in a city maintained easement area, or in a city stormwater drainage area, resulting in the flooding of properties adjacent to said drainageway either upstream or downstream from said pipe or in said watershed, or resulting in the obstruction or surcharging of or damage to public drainageways, public storm sewers, sanitary sewers or the MS4.

(2) Failing to adequately maintain or periodically clean a private drainage pipe installed in a private drainageway, resulting in the flooding of properties adjacent to said drainageway either upstream or downstream from said pipe or in said watershed, or resulting in the obstruction or surcharging of or damage to public drainageways, public storm sewers, sanitary sewers or the MS4.

(3) Failing to adequately maintain or periodically clean a public drainageway on private property or a private drainageway, resulting in the flooding of properties adjacent to said drainageway either upstream or downstream from the inadequately maintained or cleaned portion thereof, or resulting in the obstruction or surcharging of or damage to public drainageways, public storm sewers, sanitary sewers or the MS4.

(O.14,484, 15,690)

Sec. 42-485. Notice of abatement.

If the director or city engineer determines that a storm water drainage nuisance as described in section 42-484 of this division has occurred or is occurring, such nuisance may be abated and enforced against and the costs of such abatement invoiced and assessed as set forth in and pursuant to article VI of chapter 42 of the Code. The

city may cause the removal of a substandard drainage pipe, or the cleaning or repair of an improperly maintained public drainageway on private property, private drainageway or private drainage pipe, after providing the owner of the real property upon which is located the substandard private drainage pipe, or the improperly maintained drainageway or drainage pipe with notice of the need to abate the nuisance by removing such substandard private drainage pipe or by cleaning or repairing such improperly maintained drainageway or drainage pipe.
(O.14,484, 15,250, 15,690)

Sec. 42-486. Right to assess costs of abatement by city.

When the city removes an illicit discharge pursuant to article VI, chapter 42, the city may assess the actual costs of removing such illicit discharge to the owner of the real estate found to be in violation of this division.
(O.14,484, 15,250)

Sec. 42-487. Assessment of costs by city.

(a) The actual cost of removing a substandard drainage pipe from public or private property shall be paid by the owner of the real property upon which such pipe is located, or shall be paid by the property owner who caused such drainage pipe to be installed, and such costs shall be assessed against such real estate if not paid by the owner.

(b) The actual cost of maintaining or repairing a public drainageway on private property, a private drainageway or a private drainage pipe shall be paid by the owner of the real property upon which such drainageway or drainage pipe is located, and such costs shall be assessed against such real estate if not paid by the owner.
(O.14,484)

Sec. 42-488. Reserved.

Editor's note—Ord. No. 15,250, § 1, adopted Jan. 13, 2014, repealed § 42-488, which pertained to certification of assessment for collection and derived from Ord. No. 14,484.

Sec. 42-489. Reserved.

Editor's note—Ord. No. 15,250, § 1, adopted Jan. 13, 2014, repealed § 42-489, which pertained to allocation of cost and derived from Ord. No. 14,484.

Sec. 42-490. Reserved.

Editor's note—Ord. No. 15,250, § 1, adopted Jan. 13, 2014, repealed § 42-490, which pertained to notice of right to administrative hearing on public nuisance and derived from Ord. No. 14,484.

Sec. 42-491. Reserved.

Editor's note—Ord. No. 15,250, § 1, adopted Jan. 13, 2014, repealed § 42-491, which pertained to administrative hearing for public nuisance and assessment of costs of removal and derived from Ord. No. 14,484.

Sec. 42-492. Notice of violation; administrative penalties; corrective action order.

(a) The director, or such other designated officers or officials with enforcement authority, is authorized to issue a notice of violation imposing an administrative penalty upon any person who fails to perform an act required by this division or who commits an act prohibited by this division.

(b) The administrative penalty for such violations shall be as provided in the schedule of administrative penalties adopted by the city council by resolution.

(c) Notice of violation, with the applicable penalty for such violation noted thereon, shall be issued to and served upon the violator. Service of the notice may be by regular mail or by delivery in person.

(d) Penalties assessed pursuant to notice of violation shall be paid by the violator in full as directed in the notice within 30 days of its issuance.

(e) The administrative penalties set out in the schedule of administrative penalties shall be charged in lieu of the fines and penalties provided for in section 42-493, unless the violator refuses to correct the violation and pay the scheduled administrative penalty, or the city engineer or the director determines that immediate enforcement action by misdemeanor or municipal infrac-

tion prosecution pursuant to section 1-15 is, in view of the particular circumstances of the case, necessary to achieve compliance with the requirements of this article. The engineering department shall maintain a record of all violations, administrative penalties charged or other enforcement actions taken.
(O.14,484)

Sec. 42-492.01. Administrative hearings.

Recipients of notice of violation pursuant to this article may request an administrative hearing as set forth in section 42-358(b) of this chapter. The conduct of such administrative hearing shall be as set forth in sections 42-358.02(c), (d) and (e) of this chapter. If the recipient of the notice of violation chooses to have an agent duly authorized by the recipient to file a request for an administrative hearing and/or to represent him/her at the hearing, such agent must be identified in a notarized statement filed with the request for administrative hearing.
(O.15,250)

Sec. 42-493. Criminal and civil penalties.

(a) Any person who fails to perform an act required by this division or who commits an act prohibited by this division shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.

(b) Seeking a civil penalty as authorized in this section does not preclude the city from seeking alternative relief, including any order for abatement or injunctive relief, from the court in the same action or as a separate action.
(O.14,484, 15,608)

Sec. 42-494. City maintenance of public drainageways on private property, private drainageways and private drainage pipes.

(a) When flooding, erosion or siltation conditions exist in a public drainageway on private property, in a private drainageway or in a private drainage pipe which present an imminent threat to public safety or to public property, the director may in his/her discretion, clean, repair, or construct stormwater drainage facilities on such property as necessary to avert such threat. Except in case of emergency declared by the mayor pursuant to section 2-168, the director shall, prior to entering upon private property for such purpose, obtain authorization to enter thereon and to perform such work from the owner of the property.

(b) When flooding, erosion or siltation conditions exist in a public drainageway on private property, in a private drainageway or in a private drainage pipe which present a threat of damage to private property, the city may in its discretion, at the request of affected property owner, clean, repair, or construct stormwater drainage facilities on such property as necessary to avert such threat, provided that it is determined that such condition is not the result of inadequate maintenance of such drainageway or drainage pipe as herein required of the property owner, or has not otherwise been caused by the property owner. The director shall assess each such situation and shall report his or her findings and conclusions to the city council for its determination. The city council's determination in that regard shall be consid-

ered final and binding. The following conditions and standards shall apply to all such work on private property:

(1) The owner of property, upon which or adjacent to which a public or private drainageway or private drainage pipe is located, may petition the city to clean such drainageway or drainage pipe, or to repair or construct drainage facilities on such property or adjacent thereto. Such petition must be on the form prescribed by the director, must be executed by all property owners upon which or along which is situated that portion of the drainageway or drainage pipe where such work is to be performed, and must authorize city personnel or the city's contractor to enter upon such property to perform the work requested. The director shall determine on which portion of the drainageway or drainage pipe the work shall be performed to effectuate the efficient and safe flow of water.

(2) The city will undertake the preparation of necessary plans and specifications for the work, including scope of the work, means of performing the work, schedule for completion of the work, and size and type of any materials and equipment necessary to perform the work, and will advise the property owner of the work it intends to undertake upon or adjacent to such property.

(3) Property owners who petition the city to perform such work shall, as part of their petition, agree to accept the work as proposed by the city, agree to maintain such private drainageway or drainage pipe after cleaning by the city, agree to maintain any improvements repaired or constructed by the city, and agree to defend, indemnify and hold the city and its agents, employees, or contractors harmless from any and all liability of any nature to the property owner for personal injury, property damage, or any other form of damage arising out of the work.

(4) Property owners who petition the city to perform such work shall be responsible for removing all obstructions, objects, or vegetation that the city deems necessary to perform such work.

(5) Property owners who petition the city to perform such work shall be responsible for providing all materials deemed necessary to perform the work.

(6) The cleaning, repair, or construction of stormwater drainage facilities on private property shall not apply to or be available to property owners or developers upon which new private construction projects or development projects are occurring or will occur. All such work required in support of a private construction project or development project shall be performed by the property owner or developer as part such project.

(O.14,484)

Sec. 42-495. Property owner responsible for city cost for drainage improvements.

When a stormwater drainage deficiency exists on public street rights of way or on any other city stormwater drainage area which requires correction, as determined by the director, and the adjacent property owner(s) requests improvements over and above the minimum necessary improvements which would be necessary to mitigate said deficiency, as determined by the director, then the director may direct that the additional improvements be made; provided that the conditions and standards of section 42-494 are met and that the requesting property owner(s) shall be responsible for all additional costs associated with the improvements over and above the minimum necessary improvements.
(O.14,484)

Sec. 42-496. City makes no warranty against damage due to stormwater hazards.

(a) Neither the city's acquisition of stormwater drainage easements and maintenance of existing stormwater drainage facilities thereon, nor the

city's cleaning or repair of stormwater drainage facilities, shall constitute a warranty against stormwater hazards, including but not limited to flooding, erosion, or standing water.

(b) The city's performance of cleaning, maintenance, construction or repair work on private drainageways does not constitute acceptance of responsibility by the city for the existence of particular storm drainage problems on such property; or acceptance of dedication, ownership, or future maintenance responsibility for any such private drainageway. The performance of such work by the city is for the assistance of private property owners concerning storm drainage problems on their property, which if improved, would also prevent endangerment of public safety or damage to or destruction of public or private property, or have a public benefit.
(O.14,484)

Secs. 42-497—42-549. Reserved.

ARTICLE X. TREE REMOVAL AND MITIGATION

Sec. 42-550. Title.

This article shall be known as the tree removal and mitigation ordinance and may be cited as such.
(O.14,889)

Sec. 42-551. Purpose.

The city council finds that the city contains many canopied areas containing trees of significant size, value and quantity that contribute in a positive way to the human and animal environment. Trees and associated vegetation that are properly maintained increase property values, maintain the natural ecology, temper the effects of extreme temperatures and winds, reduce runoff, prevent erosion, and help create and maintain the identity and visual character of the city. The purpose of this chapter is to encourage the preservation of canopied areas and mature trees on private land, and to require the preservation or mitigation of trees during the development process.

The city council further declares its intent to adopt policies for the preservation and planting of trees on city property and to consider tree preservation and replacement in the design and implementation of public works projects.
(O.14,889)

Sec. 42-552. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Baseline aerial photography (BAP) shall refer to any aerial photographs and other credible data that identifies the location of mature trees and the boundaries of canopied areas as of a known date.

Canopied area means an area of tree cover, measured planimetrically in square feet, from baseline aerial photography.

Diameter at breast height (DBH) means the diameter of the tree measured 4.5 feet from the ground.

Director means the community development director of the city or the director's designee.

Mature tree means all tree species of 12 inches or more in diameter at breast height.

Replacement tree means a tree required to be planted pursuant to this article in replacement of trees removed.

Tree removal and mitigation plan means a plan which identifies trees or canopied areas to be preserved and those to be removed, and provides for the planting of any required replacement trees in compliance with this article.

Tree removal means the destruction or removal of a tree, or the removal of more than 25 percent of the crown or root system of a tree in a single growing season. Tree removal does not include normal tree trimming or pruning undertaken for the purpose of maintaining and preserving a tree in accordance with ANSI 300 Part 1.
(O.14,889)

Sec. 42-553. Scope.

(a) Any person seeking city approval of any of the following development activities is subject to the requirements of this article. No city permits or approvals shall be given for any of the following development activities until the applicant has received approval of a tree removal and mitigation plan as provided in this article for the affected property.

(1) A grading permit pursuant to article II, of chapter 42;

(2) A site plan pursuant to article V, of chapter 82; or,

(3) A subdivision plat or plat of survey pursuant to chapter 106 of this Code.

(b) Any person may voluntarily seek approval of a tree removal and mitigation plan pursuant to this article.

(c) This article does not apply to public improvement projects or to activities on city property or within the public rights-of-way. Public improvement projects, and activities on city property or within the public rights-of-way shall be subject to city policies for the preservation and planting of trees on city property, and are to consider tree preservation and replacement in the design and implementation of public works projects.
(O.14,889)

Sec. 42-554. Required information.

Any person seeking city approval of a tree removal and mitigation plan shall submit three copies of the plan containing the following information:

(1) A statement from the landowner or the landowner's representative explaining why the proposed amount of tree removal is required.

(2) The names, addresses and telephone numbers of the land owner(s) and the individual or business responsible for the tree removal.

(3) A time schedule indicating the anticipated starting and completion dates of the tree removal.

(4) An affirmative statement signed by an owner of the property or by the person responsible for the tree removal, acknowledging that they are required to limit any tree removal to that identified in the approved tree removal and mitigation plan, and are further required to cause any replacement trees to be planted and maintained in conformance with such plan and this article.

(5) One of the following on one or more sheets no greater than 24 by 36 inches in size and at scale that reasonably allows for the review and confirmation of the information contained therein:

a. *Option A.* A survey or scalable drawing of the planned development overlaid upon an aerial photograph containing the following information:

(i) Location of the canopied areas to be preserved, the canopied areas existing on or after May 1, 2009, that have already been removed, and any additional canopied areas to be removed, based on the available baseline aerial photography and any additional information known to the applicant.

(ii) If applicable, the citation to any law or governmental regulation that requires such tree removal, the location of the trees so required to be removed, and evidence that there is no economically feasible alternative that would materially reduce the required amount of such tree removal.

(iii) The calculation of the amount of canopied area existing on or after May 1, 2009, that has already been removed, and the

calculation of the amount of existing canopied area to be removed.

(iv) The calculation of the number of replacement trees required by this article, and the species and location for the placement of any such replacement trees.

b. *Option B.* A survey or scalable drawing of the planned development overlaid upon a tree survey containing the following information:

(i) Location of the canopied areas to be preserved, the canopied areas existing on or after May 1, 2009, that have already been removed, and any additional canopied areas to be removed, based on the available baseline aerial photography and any additional information known to the applicant.

(ii) The location of all mature trees identified by size in DBH and species, with a separate listing of the DBH and species of all such mature trees to be removed. Trees located within an area which is designated on the plan as an area that is not to be disturbed and from which there is to be no tree removal, need not be individually identified. The identification of mature trees may be determined by actual survey or by any a sampling method determined to be reasonable and accurate by the director.

(iii) The calculation of the amount of canopied area existing on or after May 1, 2009, that has already been removed.

(iv) If applicable, a statement from a certified arborist evaluating the quality of the mature trees proposed to be removed and identifying those trees to be considered for removal without penalty or mitigation due to species type, age, disease, damage and other factors.

(v) If applicable, the citation to any law or governmental regulation that requires such tree removal, the location of the trees so required to be removed, and evidence that there is no economically feasible alternative that would materially reduce the required amount of such tree removal.

(vi) The calculation of the number of replacement trees required by this article, and the species and location for the placement of any such replacement trees.

(6) A plan for the protection of the existing trees which are identified to remain, demonstrating compliance with the standards for protection of existing trees set forth in section 42-555(a).

(7) The schedule for the planting of any replacement trees in conformance with the requirements of section 42-555(h).

(O.14,889)

Sec. 42-555. Tree protection and mitigation standards.

(a) *Protection of existing trees.* Any mature tree or canopied area identified for preservation in an approved tree removal and mitigation plan shall be protected during any development activity in accordance with policies approved by the director. Preference shall be given to preserving mature trees of a species recommended for use at such trees' locations in the list of recommended tree species approved by the city council by resolution.

(b) *Mitigation option A.* If the applicant has chosen to provide the information required under Option A in section 42-554, the tree removal and mitigation plan shall provide mitigation for the removal of canopied area by providing one replacement tree for each 2,000 square feet of canopied area removed or to be removed after May 1, 2009.

Sec. 42-553. Scope.

(a) Any person seeking city approval of any of the following development activities is subject to the requirements of this article. No city permits or approvals shall be given for any of the following development activities until the applicant has received approval of a tree removal and mitigation plan as provided in this article for the affected property.

(1) A grading permit pursuant to article II, of chapter 42;

(2) A site plan pursuant to article 9, of chapter 135; or,

(3) A subdivision plat or plat of survey pursuant to chapter 106 of this Code.

(b) Any person may voluntarily seek approval of a tree removal and mitigation plan pursuant to this article.

(c) This article does not apply to public improvement projects or to activities on city property or within the public rights-of-way. Public improvement projects, and activities on city property or within the public rights-of-way shall be subject to city policies for the preservation and planting of trees on city property, and are to consider tree preservation and replacement in the design and implementation of public works projects.
(O.14,889, 15,819)

Sec. 42-554. Required information.

Any person seeking city approval of a tree removal and mitigation plan shall submit three copies of the plan containing the following information:

(1) A statement from the landowner or the landowner's representative explaining why the proposed amount of tree removal is required.

(2) The names, addresses and telephone numbers of the land owner(s) and the individual or business responsible for the tree removal.

(3) A time schedule indicating the anticipated starting and completion dates of the tree removal.

(4) An affirmative statement signed by an owner of the property or by the person responsible for the tree removal, acknowledging that they are required to limit any tree removal to that identified in the approved tree removal and mitigation plan, and are further required to cause any replacement trees to be planted and maintained in conformance with such plan and this article.

(5) One of the following on one or more sheets no greater than 24 by 36 inches in size and at scale that reasonably allows for the review and confirmation of the information contained therein:

a. *Option A.* A survey or scalable drawing of the planned development overlaid upon an aerial photograph containing the following information:

(i) Location of the canopied areas to be preserved, the canopied areas existing on or after May 1, 2009, that have already been removed, and any additional canopied areas to be removed, based on the available baseline aerial photography and any additional information known to the applicant.

(ii) If applicable, the citation to any law or governmental regulation that requires such tree removal, the location of the trees so required to be removed, and evidence that there is no economically feasible alternative that would materially reduce the required amount of such tree removal.

(iii) The calculation of the amount of canopied area existing on or after May 1, 2009, that has already been removed, and the

ment tree for each 2,000 square feet of canopied area removed or to be removed after May 1, 2009.

Tree removal shall be allowed without mitigation under this option A when the applicant has demonstrated that such tree removal is required to conform with any applicable law or governmental regulation or infrastructure requirements including, but not limited to, streets, sidewalks, and stormwater detention, and there is no economically feasible alternative that would materially reduce the required amount of tree removal.

(c) *Mitigation option B.* If the applicant has chosen to provide the information required under Option B in section 42-554, the tree removal and mitigation plan shall provide mitigation for the loss of canopied area existing on or after May 1, 2009, that has already been removed, and for any existing mature trees to be removed, in accordance with the following rations:

(1) One replacement tree shall be provided for each 2,000 square feet of canopied area existing on or after May 1, 2009, that has already been removed; and,

(2) Replacement trees shall be provided for each mature tree to be removed based upon the diameter at breast height (DBH) of the removed tree in the following rations:

DBH of Removed Tree in Inches	*Ration of Replacement Trees to Removed Tree*
At least 12 and less than 18	1 : 1
At least 18 and less than 24	2 : 1
For each increment of 6 inches of DBH above 24 inches, one additional replacement tree shall be provided.	

Tree removal shall be allowed without mitigation under this option B when the applicant has demonstrated that such tree removal qualifies under any of the following criteria:

(i) Trees that are dead or dying from causes beyond the owner's control.

(ii) Trees of a species that is not permitted for use as a street tree;

(iii) Trees that must be removed to conform with any applicable law or governmental regulation or infrastructure requirements including, but not limited to, streets, sidewalks, and stormwater detention, when there is no economically feasible alternative that would materially reduce the required amount of tree removal.

(d) *Mitigation for improper tree removal.* If the tree removal is performed in violation of an approved tree removal and mitigation plan, or if tree removal is performed without an approved tree removal and mitigation plan under circumstances which reasonably demonstrates that such tree removal was performed in anticipation of redevelopment for the purposes of avoiding the mitigation requirements under this article, then one replacement tree shall be planted for every 700 square foot increment of canopied area removed as determined by examination of the baseline aerial photography.

(e) *Replacement trees.* Replacement trees shall be of a species on the list of recommended tree species approved by the city council by resolution, and approved by the director for use at the proposed location. Native species are preferred for replacement trees. Replacement trees shall be of an overstory species and at least one and one-half inches in caliper and not more than two inches in caliper measured six inches above grade. However, understory, ornamental and coniferous trees may be substituted for up to 30 percent of the required overstory replacement trees, subject to the following replacement ratios: Two evergreen trees at least six feet tall, or three understory or ornamental trees at least one inch in caliper measured six inches above grade may be substituted for a required overstory replacement tree.

(f) *Credit for required trees.* Trees required to be planted by the landscape standards in the chapter 135 of this Code, including those planted

which the variance is granted, shall be deemed a violation of this article subject to enforcement under section 42-557.
(O.14,889)

Sec. 42-557. Enforcement.

(a) The zoning enforcement officer shall enforce this article.

(b) No person shall engage in or cause any activity to be done in violation of any provision of this article.

(c) When a tree removal and mitigation plan has been approved by the city for a parcel, no person shall engage in any tree removal activities upon that parcel in excess of the activities identified in the approved plan.

(d) No building permit, site plan, grading permit, plat of survey or subdivision plat shall be approved for any development upon a parcel subject to an approved tree removal and mitigation plan which has not been timely implemented until the requirements of that plan have been satisfied, or an amended tree removal and mitigation plan is submitted and approved to coordinate the mitigation plantings with the redevelopment of the parcel.

(e) Persons who fail to perform an act required by the provisions of this article or who commit an act prohibited by the provisions of this article shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of the City Code.

(f) The city may obtain injunctive relief to enforce the provisions of this chapter.
(O.14,889)

ARTICLE XI. STORMWATER MANAGEMENT STANDARDS FOR DEVELOPMENT AND REDEVELOPMENT FOR GRADING PERMITS, SITE PLANS AND PLAT APPROVALS

Sec. 42-558. Adoption of Iowa Stormwater Management Manual.

The City of Des Moines hereby adopts the Iowa Stormwater Management Manual (ISWMM), as such may be amended from time to time, for management of stormwater. The ISWMM is written as a guideline recommending certain techniques and advising against others in order to accomplish goals related to managing water volume and quality. Therefore, where the ISWMM states a design element or technique is "Essential" it is required by the City of Des Moines unless otherwise not required by State law. Where ISWMM states a design element or technique is "Target" such design element or technique is desired by the City of Des Moines and every effort shall be made to accomplish.

In cases where ISWMM does not speak to a stormwater issue, such as sizing or installation of pipes, the City of Des Moines follows the Iowa State-wide Urban Design and Specifications (SUDAS) as modified by City of Des Moines General Supplemental Specifications to SUDAS or streambank stabilization in the Iowa River Restoration Toolbox as applicable.

It is intended that this article be construed to be consistent with Chapter 42, Article II, Grading, Soil Erosion and Construction Site Runoff Control, Chapter 50 Floodplains, Chapter 106 Subdivisions, Chapter 135 Planning and Design, as well as any other applicable local, state or federal regulation.

The requirements of this article should be considered minimum requirements, and where any provision of this article imposes restrictions different from those imposed by any other section of this Code, or any other governmental rule or regulation, or other provision of law, whichever provisions are more restrictive shall take precedence.
(O.16,073, 16,428)

Sec. 42-559. Definitions.

Definitions in this section, other than those defined below, shall have the meaning as set out in the Iowa Stormwater Management Manual. The definitions found in this article shall apply to the provisions of this article, provided, however that the following words, terms and phrases, when used in this article, shall have the mean-

ings ascribed to them in this section, except where the context clearly indicates a different meaning:

Applicant means a property owner or his or her representative who has filed an application for development or redevelopment pursuant to chapters 42, 106 and 135 of this Code.

Benefitted property means the property identified in the stormwater management plan and in the stormwater facility maintenance agreement as being served by Best Management Practices.

Best Management Practices or *BMP* means physical stormwater practices or structures determined to be practices used to reduce pollutant loads, discharge volumes, peak flow discharge rates, and detrimental changes in stream temperature that affect water quality and habitat. BMPs can be structural or non-structural. Non-structural BMPs focus on preserving open space, protecting natural systems, and incorporating existing landscape features such as wetlands and stream corridors into a site plan to manage stormwater at its source. Structural BMPs include constructed ponds, pavement systems, oil/grease separators, planted vegetative areas such as grassed swales, bioretention and other infiltration based practices, outlet structures and other constructed facilities intended to manage stormwater.

Buffer means a vegetative area, including trees, shrubs, and herbaceous vegetation, that exists or is established to protect a stream system, lake, or reservoir area.

Building means the same definition as in section 106-2 of this Code, with the addition that structures not intended for shelter such as a pergola, trellis, gazebo and any other constructed obstacle shall also be considered to be buildings and shall be reviewed for impact on stormwater management.

City engineer means the city engineer or his or her duly authorized designee.

City stormwater requirements means the standards, sizing criteria, BMPs and other requirements established in this section.

Construction site means a site or common plan of development or sale on which construction activity, including clearing, grading and excavating, results in soil disturbance. A construction site is considered one site if all areas of the site are contiguous with one another and one entity owns all areas of the site.

Dedication means the deliberate appropriation of property by its owner for general public use.

Developer means a person, persons, or entity who undertakes land disturbance activities.

Development means any manmade change to improved or unimproved real estate, including, but not limited to, buildings or other structures, mining, dredging, filling, grading, paving, excavation, or drilling operations whether as a single site or part of a larger common plan of development. *Development* may include, but is not limited to, *construction site*.

Director means the director of the city public works department or his or her duly authorized representative.

Drainage easement means a legal right granted by a landowner to a grantee allowing the use of private land for stormwater management purposes.

Iowa Stormwater Management Manual or *ISWMM* means the Iowa Stormwater Management Manual publication, by whatever name, as amended from time to time by Iowa Department of Natural Resources in collaboration with Iowa Stormwater Education Program.

Land disturbance activity means any activity which changes the volume or peak flow discharge rate of rainfall runoff from the land surface. This may include the grading, digging, cutting, scraping, or excavating of soil, placement of fill materials, paving, construction, substantial removal of vegetation, tree clearing, or any activity which bares soil or rock or involves the diversion or piping of any natural or man-made watercourse.

Landowner means the legal or beneficial owner of land, including those holding the right to purchase or lease the land, or any other person holding proprietary rights in the land.

Native vegetation means vegetation originating naturally in the central Iowa region of the state. Native vegetation is not to be confused with all existing vegetation. Area preserved in native vegetation shall not contain noxious or invasive weeds as identified by the Iowa Code Chapter 317.1A.

Redevelopment means any manmade change to a previously developed site, including, but not limited to, buildings or other structures, mining, dredging, filling, grading, paving, excavation, or drilling operations whether as a single site or part of a larger common plan of development. *Redevelopment* may include, but is not limited to, *construction site*.

Responsible party means the person or entity responsible for the maintenance of the stormwater management facilities pursuant to the SFMA.

Stormwater facility maintenance agreement or *SFMA* means that covenant and easement agreement as described in section 42-564 that has been approved in writing by the city engineer which is binding on all subsequent owners of land and benefitted property served by the BMPs and is recorded in the applicable county recorder's office, including those SFMAs and development agreements in existence on February 1, 2022.

Stormwater management means the use of BMPs to reduce stormwater runoff pollutant loads, discharge volumes, peak flow discharge rates, and improve stream quality.

Stormwater management plan or *SWMP* means the plan demonstrating how stormwater management will be accomplished as described in section 42-562.

Stormwater pollution prevention plan or *SWPPP* means a plan that is designed to minimize the accelerated erosion, sediment, and other pollutant runoff at a site before, during and after construction activities.

Surface water flowage easement or *overland flowage easement* means an easement granted to the city which includes a legally described flow path where stormwater from large storm events can be transported across property not owned by the city. No buildings or obstructions, including without limitation, fences, trees, bushes, or vegetation may be constructed or placed within the easement that block the flow of water without the prior written approval of the city engineer. (O.16,073, 16,428)

Sec. 42-560. Applicability.

Stormwater management will be deemed necessary in the following circumstances:

(a) Any new development of land adding more than 10,000 square feet of new impervious area shall provide stormwater management as described in this article. This threshold is a cumulative amount of new square footage and may be reached over time in increments. At such time that a development site exceeds 10,000 cumulative square feet of new impervious area the site will be required to come into compliance with this article.

(b) Any redevelopment adding more than 10,000 square feet of new impervious area but disturbing less than 50% of the site shall provide stormwater management at the water quality volume standard and the channel protection standard. This threshold is a cumulative amount of new square footage and may be reached over time in increments.

(c) Any redevelopment disturbing 50 percent or more of a site shall be required to meet the same stormwater management standards as a new development. This threshold is a cumulative amount of square footage disturbed by redevelopment and may be reached over time in increments.

(d) For purposes of this section, impervious areas and surfaces shall be determined using all building permits issued by the city's permit and development center, county assessor's records, and other applicable city records. Impervious area added prior to September 6, 1977 will not be counted towards the 10,000 square feet and 50 percent redevelopment requirements.

(e) Exemptions: The following activities shall be exempted from meeting the stormwater management standards of this ordinance:

(1) Removal and replacement of impervious area exactly matching location and area.

(2) Logging or agricultural activity that is consistent with an approved soil conservation plan or timber management plan prepared or approved by the appropriate agency, as applicable.

(3) Additions or modifications to single family structures.

(4) Repairs to any stormwater management BMP deemed necessary by the city.

(O.16,073, 16,428)

Sec. 42-561. Stormwater standards.

When applicable as described below, all development and redevelopment sites shall meet the requirements of the Unified Sizing Criteria, as described within the Iowa Stormwater Management Manual (ISWMM) and as noted below, unless stormwater management has been designated for an alternative off-site location or some other exemption or allowance has been prior approved by the city engineer.

(a) *Small storm criteria:*

(1) *Recharge volume standard:* Structural or non-structural practices or techniques shall be employed to minimize the amount of stormwater runoff by capture, infiltration, evapotranspiration or reuse the runoff expected to the greatest extent possible. The target goal of this criteria is to eliminate runoff created by the 1-inch rainfall event. However, the developer may demonstrate, to the satisfaction of city staff, that this standard is not achievable or feasible at a site due to variables such as incompatible soils for infiltration, contaminated sites, high groundwater table, and/or ultra-urban environments.

(2) *Water quality volume standard:* Practices or techniques shall be employed that capture and treat runoff from a 1.25" rainfall event, as further defined within the ISWMM.

(3) *Channel protection standard:* Practices or techniques shall be employed that provide extended detention of the 1-year, 24-hour storm event—with release rates established as per methods defined within the ISWMM manual to provide a minimum drawdown period of 24 hours. If the calculations result in a computed orifice diameter of less than three inches, the final design may instead use a 3-inch orifice as the control for the channel protection (CPv) event. In this case, the final routing modeling of the practice may end up showing that the allowable CPv release rate is exceeded.

(b) *Large storm criteria:*

(1) Practices and techniques shall be employed that limit allowable peak release rates that are anticipated to occur post-development during the 5-year through 100-year, 24-hour storm events to levels no greater than the peak rate expected to be caused by the 5-year storm event under existing site conditions. Existing conditions are defined as those that are present at the time that the construction commences. However, any sites that have impervious areas that were constructed without proper permit and/or planning approval from the city will not be allowed to count those areas as impervious area and must instead use natural conditions for those areas to determine the allowable release rate. For purposes

of this section, any impervious areas added to a site prior to September 6, 1977 will be deemed as legal regardless of whether proper permits were obtained or not.

(2) Natural conditions are defined as meadow in good condition, with times of concentrations calculated and curve numbers selected based on those natural surface conditions and drainage patterns. Curve numbers shall be selected based on the hydrologic soil group for site soils, but the weighted curve number used to determine allowable release rates for the site to be served by the detention practice shall not exceed a curve number of 58 unless demonstrated by a geotechnical report that a higher curve number is warranted, however, in no case shall the curve number exceed 71.

(3) Soil group information shall be determined from current county soil maps as available through the NRCS. If a soil group type has not been identified for a given location, the natural condition shall be assumed to be hydrologic soil group B and the post-developed condition shall be assumed to be hydrologic soil group C, unless geotechnical studies are provided for city review that provide evidence for use of another soil group for analysis.

(4) Redevelopment sites that have existing stormwater management facilities in place and/or are required to do so as part of an existing approved site plan, subdivision plat, or grading plan, as of January 1, 2025 are required to maintain those practices unless the storage volume and/or treatment practices are incorporated into a new stormwater management facility or facilities.

(5) Detention of events larger than the 100-year storm event are not required, however, the design of auxiliary spillways should safely convey flows from the 500-year, 24-hour storm event or per DNR Dam Codes and requirements.

(6) Surface water flowage easements shall be provided as needed to reserve a safe and clear path for the width of expected concentrated flows for this type of event. Detention events larger than the 100-year can occur and surface water conveyance for those events should be considered.

(O.16,073, 16,428)

Sec. 42-562. Stormwater Management Plan (SWMP) requirements.

(a) The purpose of a SWMP is to identify in detail how stormwater runoff will be managed from a site including specifications on what stormwater management techniques and facilities will be used and where they will be located. It is the policy of the City of Des Moines that stormwater management is planned and designed early in the development process so that developments are built in harmony with nature versus forcing stormwater management to fit a development site design.

(b) A SWMP, prepared and certified by a professional engineer, architect, or landscape architect licensed in the state and familiar with stormwater management methods and techniques, must be submitted by the applicant for approval by the city engineer.

(c) The following items must be submitted with grading plan, site plan, or plat applications:

(1) *Report and narrative information.*

a. Cover sheet including project name, location, engineer and developer contact information.

b. Table of contents indicating sections and page numbers.

c. Professional certification from Iowa licensed engineer.

d. Summary of any previous studies or master plans.

e. Natural conditions and runoff analysis summary.

f. Description and explanation of storm water analysis (i.e. computer generated hydrographs.

g. Summary of SWMP detailing compliance with design standards.

h. Natural resources inventory:

i. Soil conditions (karst, hydric, etc.).

ii. Forest cover.

iii. Topography.

iv. Wetlands/prairie potholes.

v. Streams and floodplains.

vi. Review of FEMA FIRM maps.

vii. Other native vegetative areas.

viii. Environmentally sensitive areas.

1. Archeological and/or cultural resources.

2. Wildlife areas.

ix. Wellhead protection and drinking water supply management areas.

x. Areas of existing stormwater storage.

(2) *Soil management plan.* A soil management plan is required to evaluate topsoil quantities before and after construction and ensure compliance with NPDES general permit no. 2. Depending on intended use of soil to meet stormwater requirements, the following may be applicable:

a. Review NRCS or USGS soils maps or geotechnical reports if applicable.

b. Identify where topsoil is to be stripped, stockpiled and replaced.

c. Identify locations where soil quality restoration techniques are proposed to be used to manage water quality treatment requirements.

d. Geotechnical reports, if applicable.

e. U.S. Army Corps of Engineers Section 404 Permit, if applicable.

f. Local or DNR Floodplain Development Permit, if applicable.

(3) *Dams.* Where dams are proposed in any subdivision, they shall be designed by a registered professional engineer. A preliminary engineering report including soil investigations and design procedures shall be submitted to the city engineer for review. When such dam is constructed, the subdivider's engineer shall certify to the city engineer that the dam is constructed in accordance with the approved plans and specifications.

(4) *Calculations.* Provide exhibits demonstrating how calculated and assumptions made, including:

a. Runoff coefficient and/or curve number calculations (allowable release rates).

b. Time of concentration calculations.

c. Water volume infiltrated.

d. Small storm criteria calculations required and proposed.

e. Large storm criteria calculations required and proposed.

f. Storm system capacity calculations (outlet control, pipe capacity, swale/ditch capacity, erosion control and emergency dissipation measures, downstream capacity calculations).

g. Runoff and routing hydrographs.

h. Floodplain modeling if applicable and base flood elevations.

(5) *Project summary.*

a. Identify method(s) and location of proposed post-construction stormwater management BMPs.

i. Map indicating drainage area of each post-construction BMP.

b. Discuss how proposed management methods comply with requirements.

c. Post-construction BMP maintenance plan.

i. Operation and maintenance of post-construction BMPs.

d. Identify post development stormwater impacts to adjacent properties and mitigation measures for any potential impacts.

e. Offsite/downstream conditions and runoff analysis if applicable.

(6) *Maps.*

a. Existing drainage contour map illustrating and labeling pre-development drainage patterns, basins, swales/ditches, creeks, river, streams, etc. and any other relevant on-site or off-site information.

b. Proposed drainage contour map illustrating and labeling post development drainage patterns, areas for which stormwater management will be provided, conveyance methods (pipes, swales, etc.) and any other relevant on-site or off-site information.

i. Location of existing and proposed buildings, roads, parking areas, utilities and

ii. Stormwater management facilities and erosion/sediment control, easements, ROWs;

iii. Preliminary stormwater storage estimation;

iv. Proposed land use;

v. Existing and proposed drainage patterns;

vi. Limits of clearing and grading.

c. Map(s) identifying where stormwater runoff enters and leaves the project limits.

d. Watershed area delineations.

e. Floodplain delineations.

f. Natural Resources Inventory Map.

(7) *BMP operation and maintenance plan.*

a. The applicant shall provide to the city an operation and maintenance plan detailing the operation and maintenance and repair procedures for all stormwater BMPs. These plans will identify the parts of components of a stormwater BMP that will need maintained. The operation and maintenance plan will also identify the responsible party.

b. The ongoing operation and maintenance procedures must be documented in the SFMA.

(O.16,073, 16,428)

Sec. 42-563. Stormwater Management Plan application process.

(a) A SWMP must be submitted by the applicant for approval by the city engineer.

(b) The city engineer shall review the SWMP for conformance with the objectives set forth in this article. Each plan will be evaluated on its own merits according to the particular characteristics of the project and the site to be developed.

(c) The city engineer shall approve or disapprove a complete SWMP per grading permit, site plan, and/or plat approval process, as applicable.

(d) Sustainable stormwater management practices identified in the ISWMM, such as rain gardens, bioswales, permeable pavement, or other such technologies, may be utilized and may be required when determined reasonably practicable by the city engineer.

(e) An applicant desiring a full or partial waiver of compliance with this section may make a written application on forms supplied by the city engineer. Waiver applicants must show that incorporation of stormwater management standards set forth in this article are not possible to install due to exceptional physical limitations of the site. If a waiver is granted, the applicant must develop and incorporate other measures, which the applicant can demonstrate to the satisfaction of the city engineer comply with the requirements of this article to the

extent reasonably possible. Requests for waivers shall be granted or denied, in writing by the city engineer.

(f) Prior to approval of the subdivision plat, site plan, grading permit or SWMP, or the issuance of any permit that has a SWMP requirement, the applicant or property owner must execute a SFMA that shall be binding on all benefited property in compliance with section 42-564.

(g) Prior to approval and recording of the SFMA, the applicant and property owner on which the BMPs are located shall be responsible for the maintenance of the BMPs to their design capacity unless or until the city engineer agrees in writing to a transfer of such responsibility to another person or entity or responsible party. (O.16,073)

Sec. 42-564. Stormwater Facility Maintenance Agreement (SFMA) requirements.

(a) The Stormwater Facility Maintenance Agreement is comprised of a maintenance/repair easement and a maintenance agreement and permanent covenant approved by the city engineer. The SFMA shall be recorded with the appropriate county recorder's office by the applicant or property owner at their expense and they shall provide a copy of the recoded SFMA to the city engineer. The SFMA shall reference the operation and maintenance requirements for the BMPs included in the SWMP and provide for periodic inspections by the responsible party to ensure that the BMPs are maintained in proper working condition to meet the SWMP requirements. If operation and maintenance requirements are updated, the current version will be appended to the SWMP that is on file with the city.

(b) Maintenance and repair easement requirements. The easement shall provide for access to the BMPs and the benefitted property at reasonable times for inspection and maintenance purposes by the responsible party and for the city or the city's designee for inspection for maintenance purposes, at the city's discretion, to ensure that the BMPs are maintained in proper working condition to meet the SWMP requirements, and to the city for regular or special assessments of property owners to ensure that the BMPs are maintained in proper working condition.

(c) Maintenance agreement and covenant requirements. The maintenance agreement shall provide that maintenance of all BMPs shall be ensured through the creation of a maintenance covenant that must be approved by the city engineer and recorded as part of the SFMA. As part of such covenant, a schedule shall be developed for when and how often maintenance will occur to ensure proper function of the stormwater BMPs. The covenant shall also include plans for periodic inspections to ensure proper performance of the BMPs. As determined to be needed by the city engineer or director, the maintenance agreement and covenant may require the following:

(1) Removal of litter, sediment and debris.

(2) Requirements for vegetation management. The vegetation shall not be removed or changed without the prior written consent of the city engineer or director except for BMPs that must be moved in accordance with the SWMP.

(3) No yard debris as defined in chapter 98 of this Code, soil or rocks or concrete, or similar materials, shall be placed within a BMP without the prior written consent of the city engineer or director.

(4) The area of the BMPs shall not re-graded without the prior written consent of the city engineer or director.

(5) Any action that will render a BMP inoperable or will significantly decrease its functioning is prohibited.

(O.16,073)

Sec. 42-565. Stormwater Facility Maintenance Agreement process.

(a) Responsible party inspections. All BMPs must undergo, at the minimum, an annual inspection by the responsible party to document maintenance and repair needs and ensure compliance with the requirements of this article. Any required maintenance identified by inspection must be corrected by the responsible party within 30 days of identification of such maintenance and repair needs. In the event the identified maintenance or repair cannot be completed within 30 days of notice or identification, the responsible party must contact the city with 30 days of notice to explain why repair or maintenance cannot be completed within 30 days and provide a plan acceptable to the city engineer or director for completing repair or maintenance.

(b) All responsible party maintenance records must be maintained by the responsible party for at least five years.

(c) The inspection and maintenance requirement may be increased as deemed necessary by the city engineer or director to ensure proper functioning of the BMPs after a city inspection has been completed and a violation has been documented pursuant to section 42-566(b).

(d) City inspection of stormwater BMPs. Inspection programs may be established by the city engineer or director on any reasonable basis, including but not limited to: routine inspections; random inspections; inspections based upon complaints or other notice of possible violations; inspection of drainage basins or areas identified as higher than typical sources of sediment or other contaminants or pollutants; inspections of businesses or industries of a type associated with higher than usual discharges of contaminants or pollutants or with discharges of a type which are more likely than the typical discharge to cause violations of state or federal water or sediment quality standards or the NPDES stormwater permit; and joint inspections with other agencies inspecting under environmental or safety laws. Inspections may include but are not limited to: reviewing maintenance and repair records; sampling discharges, surface water, groundwater, and material or water in BMPs, and evaluating the condition of BMPs.

(e) Right of entry for inspection. When any new stormwater BMP is installed on private property, or when any new connection is made between private property and a public drainage facility as defined in section 42-477 of this chapter, sanitary sewer or combined sewer, the property owner shall grant to city the right to enter the property at reasonable times and in a reasonable manner for the purpose of inspection. This includes the right to enter a property when city has a reasonable basis to believe that a violation of this article is occurring or has occurred, and to enter when necessary for abatement of a public nuisance or correction of a violation of this article.

(f) Records of installation, maintenance and repair activities. Upon request, the Responsible Party shall submit to the city engineer a maintenance and inspection report including all records of the installation and of all maintenance and repairs conducted for up to the previous five years. These records shall be made available to the city during inspection of the SBMP and at other reasonable times upon request.

(g) As-built drawings.

(1) At the time of final completion of the BMP, as-built drawings shall be prepared and provided to the city for all BMPs to determine compliance with the SWMP design.

(2) If deemed necessary by the city during the life of the BMPs, the city engineer may request updated as-built drawing of BMPs to determine compliance with the SWMP design.

(3) At such time as a property owner or applicant, including developers, transfers control of BMPs to a homeowner association, the city or other responsible party, the developer shall provide notice to the city engineer and the city may require the responsible party complete updated as-built drawings of the BMPs, and the city shall have the right to confirm that

the BMPs are in compliance with the SWMP design. prior to transfer. A maintenance bond or letter of credit shall be provided to the city for any required work to stormwater BMPs to correct to as-built standard prior to transfer of ownership or responsibility. After transfer of ownership or responsibility, the bond or letter of credit will be released by the city.

(O.16,073)

Sec. 42-566. Enforcement.

(a) The department of public works or city engineer may enter at all reasonable times and as often as necessary in or upon any private property for the purpose of investigating BMP which may be maintained in violation of this article and to determine compliance with this article; including the right to take samples and examine and copy records and the performance of additional duties defined by state and federal laws. The requirements of this article shall be enforced by the department of public works or the city engineer. The director or city engineer shall have full authority to declare a violation and issue notices provided for in this article and to take action as required and permitted by this article. The director or city engineer shall have all powers and authority necessary to cause the abatement of violations under this article. The director shall have the authority to terminate access to the municipal storm water system of a person or entity violating this article if such termination would abate a violation pursuant to this article.

(b) The city engineer or director or his designee is authorized to issue a notice of violation imposing an administrative penalty upon any person or entity or responsible party who fails to perform an act required by this section, including the benefitted property owner(s) or the property owners or parties responsible for the maintenance in accordance with the SFMA for the cost of repair work.

(1) The administrative penalty for such violations shall be as provided in the schedule of administrative penalties adopted by the city council by resolution.

(2) Notice of violation, with the applicable penalty for such violation noted thereon, shall be issued to the violator by the director or city engineer. Service of the notice may be by regular mail or delivery in person. Penalties shall be paid in full within 30 days of the issuance of the notice.

(3) Such notice shall include:

i. a statement that the violator has a right to appeal regarding the violation; and

ii. a statement that the violator may file a written request for hearing with the director or city engineer, as applicable, or his or her authorized representative. The appeal must be made within 30 days of issuance of the notice and identify the notice of violation appealed from, state the basis for the appeal, and the violator's name, mailing address, email address, and daytime telephone number. The director or city engineer, or his or her authorized representative will review the appeal on the basis of the record and will notify the violator by mail, telephone or email of the decision as promptly as is reasonably possible. The appeal shall stay payment of the administrative penalty until the appeal is decided. If issuance of the notice of violator is upheld, the violator shall have 30 days from issuance of the appeal decision to pay the administrative penalty.

(4) Penalties assessed pursuant to notice of violation shall be paid by the violator in full as directed in the notice within 30 days of its issuance. Corrective action as required pursuant to notice of violation shall be completed by the violator as directed in the notice within 30 days of its issuance. The public works department or engineering department, as applicable, shall maintain a record of all administrative penalties charged or other enforcement actions taken.

(5) The administrative penalties set out in the schedule of administrative penalties shall be charged in lieu of the fines and penalties provided for in section 1-15 of this Code, unless the violator refuses to correct the violation and pay the scheduled administrative penalty, or the director determines that immediate prosecution pursuant to misdemeanor or municipal infraction prosecution pursuant to section 1-15 is, in view of the particular circumstances of the case, necessary to achieve compliance with the requirements of this article.

(c) Recipients of notice of violation imposing an administrative penalty pursuant to this section whose appeal pursuant to this section is denied by the director or city engineer, or his or her designee, may request an administrative hearing in writing, which is either hand-delivered to the city clerk no later than seven calendar days from the date of the decision, or sent to the city clerk via regular mail postmarked by official U.S. postal service cancellation and not by postage meter no later than seven calendar days from the date of the decision. Such request for hearing shall be made pursuant to section 42-358.02(b). The conduct of such administrative hearing shall be as set forth in sections 42-358.02(c), (d) and (e). If the recipient of the notice of violation chooses to have an agent duly authorized by the recipient to file a request for an administrative hearing and/or to represent him/her at the hearing, such agent must be identified in a notarized statement filed with the request for administrative hearing.

(d) Failure to maintain BMPs in violation of this article or the SFMA are deemed to constitute a public nuisance.

(e) If the director or the city engineer determines that a violation of this article, has occurred or is occurring, such nuisance may be abated and enforced against and the costs of such abatement invoiced and assessed as set forth in and pursuant to article VI of chapter 42 of the Code and this section. The city may correct a violation by performing all necessary work to place the BMPs in proper working condition after providing the responsible party with notice of the need to abate such nuisance, that if not abated the city will cause such abatement, the costs of abatement and that the city will assess the costs for such abatement. The notice shall be provided to the benefitted property owner(s) or the property owners or parties responsible for the maintenance in accordance with the SFMA and provide at least a 24 hour period for abatement of the nuisance prior to the city's abatement action, provided, however, that the city may cause such abatement without prior notice in the event that such failure to repair presents an imminent risk of harm to person or property, and the director or city engineer declares an emergency on account thereof.

(f) When the city abates the nuisance pursuant to article VI, chapter 42, the city may assess the actual costs of such abatement to the benefitted property owner(s) or the property owners or parties responsible for the maintenance in accordance with the SFMA for the cost of repair work, in addition to taking any other action provided for in this section.

(g) Any person who fails to perform an act required by this article or who commits an act prohibited by this article or who resists the enforcement of any section of this article shall be guilty of a misdemeanor punishable by a fine as provided in section 1-15 of this Code.

(h) Any person who fails to perform an act required by this chapter or who commits an act prohibited by this chapter or who resists the enforcement of any section of this article shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.

(i) The public works department or city engineer may enter at all reasonable times in or upon any or public private property to inspect and investigate work being done which is not in compliance with the requirements of this article and to inspect and investigate conditions and practices which may be a violation of this article. The director or city engineer shall have the authority to issue an order in writing to the owner of the property and/or any person engaged

in such activities on the property, ordering such person or persons to cease and desist from construction activities due to failure to implement or maintain the SWMP or to maintain any BMPs therein identified. The order shall be delivered by personal service unless any of the above cannot be found within the city, in which event notice shall be by ordinary mail addressed to the person's last known address and by posting a copy of the notice in a conspicuous place at the construction site.

(1) Construction activities shall cease on the date stated in the city engineer's or director's order and shall not recommence without the prior written approval of the city engineer.

(2) The person to whom the notice is directed may make a written request to the city engineer or director, as appropriate, for a reconsideration and hearing on the cease and desist order and/or abatement order within ten days from the issuance of the order, provided, however, that work on such property shall cease pending the outcome of the hearing.

(3) The request for hearing shall (1) contain the address of the person requesting the hearing and to which all further notices shall be mailed or served, and (2) shall state the basis for the appeal.

(4) The hearing shall be scheduled to be held as soon as practicable and no later than 14 days after the request for hearing was filed with the city engineer or director. The person requesting the hearing shall be notified in writing or by telephone of the date and place of such hearing at least three days in advance thereof. At such hearing the city engineer or director and the person requesting the hearing may be represented by counsel, examine witnesses, and present evidence as necessary.

(5) If the city engineer or director determines that the violation has created a public nuisance, the city engineer may order abatement of the nuisance by whatever means the city engineer or director may determine appropriate.

(6) The determination of the city engineer or director shall be a final administrative decision.

(7) In the event that the abatement as ordered by the city engineer or director is not performed, the city engineer or director may cause the abatement of the nuisance and assess the costs of abatement to the property in compliance with this article.

(j) The city is not precluded from seeking alternative relief from the court, including an order for abatement or injunctive relief, in the event that the city files a misdemeanor citation, notice of administrative penalty, and/or files a municipal infraction for the same violation of this article.
(O.16,073)

ARTICLE XII. NUISANCE VEGETATION MANAGEMENT

Sec. 42-567. Definitions.

The definitions found in sections 42-28, 42-451 and 42-477 shall apply to the provisions of this article, provided, however, that the following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Building shall mean any structure designed or intended for the support, enclosure, shelter, or protection of persons, animals, or property, but not including signs, general advertising signs, or wireless telecommunication towers.

City shall mean the City of Des Moines, Iowa.

Code, unless the context clearly requires otherwise, shall mean and refer to the Municipal Code of the City of Des Moines as amended from time to time.

Conservation easement means an easement in, servitude upon, restriction upon the use of, or

other interest in land owned by another, created for any of the purposes set forth in section 457A.1 of the State Code of Iowa.

Developed lot is any parcel of real property within the corporate limits of the city upon which there is any type of building, whether partial or complete, or upon which any preliminary grading or excavation for purposes of development has occurred. A parcel of land shall not be considered developed and utilized solely because of the preparation, approval, and recordation of a plat; the installation of streets; or the installation of utility lines.

Development shall have the same meaning as provided in section 135-12.6 of this Code.

Farmland means a parcel of land, not less than five contiguous acres in area, suitable and actively used for the production of farm products.

Farm products shall have the same meaning as defined in Iowa Code section 352.2(7) or any successor provision thereto.

Flower garden is a garden or part of a garden where plants that flower are purposely-planted, grown, and displayed.

Forest shall have the same meaning as defined in Iowa Code section 161A.42 or any successor provision thereto.

Garden is a plot of ground where plants other than lawn grasses are intentionally cultivated.

Hazard is any weed, grasses, or other herbaceous vegetation which interferes with: (1) any sidewalk or the traveled portion of any roadway or alley; or (2) with visibility at any intersection, or traffic control light or device; or (3) constitutes a reasonable health, safety, or fire hazard; or (4) otherwise endangers life or property.

Native vegetation means any indigenous plant species originally found in the state's prairies, excluding any noxious weeds.

Natural area is an area of forest, wetlands, waterways, or areas certified as wildlife habitat.

Noxious weeds mean the same as the definition provided by Iowa Code section 317.1A or the Iowa Administrative Code, or any successor statute or regulation thereto, as amended.

Property owner is the legal title-holder to any parcel of land. Property owner shall also mean and include any contract purchaser(s) of any parcel of land.

Purposely-planted means a plant that was intentionally planted by a human in a certain space with the intent to cultivate such plant in such space.

Undeveloped area is any real property within the city limits that is not a developed lot.

Vacant lot shall mean any property of less than one acre in size that has not been improved by the installation of a building, home, or other structural improvements or that was previously improved by the installation of a building, home, or other structural improvement but all such improvements have been removed from the property.

Vegetable garden is a garden where fruits, vegetables, and herbs are purposely-planted and grown for personal or household use.

Waterway means water occurring in any river, stream, or creek having definite banks and bed with visible evidence of the flow of water.

Weed(s) means: (1) any plant which is not intentionally cultivated or maintained and is unsightly; or (2) any undesirable or noxious plant as defined in Iowa Code Chapter 317 and any related regulations found in the Iowa Administrative Code; or (3) any plant which constitutes a hazard. Intentionally cultivated or maintained means the plant is routinely cared for by any person to foster the plant's growth or cared for to prevent overgrowth, disease, or decay. Intentionally cultivated or maintained includes planting, watering, fertilizing, trimming, cutting, or pruning.

Weed official is the neighborhood inspections administrator or designee hereby given the authority to enforce the provisions of this chapter.

Wetlands are an area of two or more acres in a natural condition that is mostly under water or waterlogged during the spring growing season and is characterized by vegetation of hydric soils.

Woody perennials are plants that live two or more years that create stiff structures above ground that they use through their lives. Woody perennials shall include trees, shrubs, and vines. (O.16,346)

Sec. 42-568. Duties of owners.

(1) The property owner of all developed lots within the city shall keep the property free from weeds.

(2) Property owners of developed lots may not allow grass on such lot to exceed ten inches in height.

(3) Property owners of developed lots may not allow for the uncontrolled growth of vegetation in areas unfit or unreasonable for such growth as determined by the weed official.
(O.16,346)

Sec. 42-569. Exceptions.

The following shall be exceptions to the requirements of section 42-568:

(1) Vegetable garden. Plants located within vegetable gardens shall be permitted to exceed ten inches in height if such gardens are maintained free from weeds;

(2) Flower garden. Plants, including ornamental grasses as well as natural grasses, located within flower gardens, shall be permitted to exceed ten inches in height if such gardens are maintained free from weeds;

(3) Woody perennials. Purposefully-planted woody perennials shall be permitted to exceed ten inches in height if they are planted and maintained in compliance with this code of ordinances and all other applicable laws;

(4) Native vegetation. Purposefully-planted native vegetation shall be permitted to exceed ten inches in height provided they do not constitute a nuisance under this Code;

(5) Weeds and other growth on any undeveloped area shall be permitted to exceed ten inches in height if any of the following apply:

a. Due to terrain or other factors naturally occurring on the parcel, such parcel is not amenable to weed control by any practical means; or

b. The undeveloped area is not located in such proximity to any developed area that uncontrolled weed growth thereon will constitute a nuisance or hazard to developed areas; or

c. Such weed growth or growth of vegetation with a height of more than ten inches is located a distance of 100 feet or more from any public street, publicly-owned property, or any developed area.

(6) Vegetative growth necessary to combat soil erosion on an active construction site may be permitted to exceed ten inches on a temporary basis at the discretion of the weed official. A construction site shall be considered active if there is a current building, grading, or other city-issued permit and work has been performed in the past 60 days;

(7) Land owned or managed by the city;

(8) Legally recorded and recognized conservation easements;

(9) Any farmland located within the city;

(10) Any natural area located within the city.

This section shall not be construed so as to permit the growing of noxious weeds as defined in Iowa Code Chapter 317
(O.16,346)

Sec. 42-570. Notice to property owner.

At least ten days prior to the abatement of the growth as authorized by this chapter, the weed official shall give notice of the proposed action in one of the following manners:

(1) By publication in a daily newspaper of general circulation in the city, notifying such property owners that unless such weeds, vines, brush, bushes, and noxious weeds as defined by the Iowa Code or the City Code, or other growths are cut or destroyed before the dates stated in the notice, the city will cut or destroy such weeds, vines, brush, bushes, and noxious weeds or other growths and assess the cost thereof to the property owner(s); or

(2) By causing a dated and signed placard to be posted in a conspicuous place on each lot found to be in violation of this chapter, the placard to state that the lot is in violation of this article, and that failure of the property owner to abate the growths within ten days of the date stated on the placard will result in the city abating the violation and assessing the actual costs and an administrative fee against the property; or

(3) By regular mail and certified mail to the property owner(s) as shown by the records of the county assessor, the notice to state that the referred lot is in violation of this article, and that failure of the owner to abate the growth within ten days of the date of the notice will result in the city abating the growth and assessing the actual costs and an administrative fee against the property.

The notice provided to the property owner shall provide directions to appeal the cited violation.
(O.16,346)

Sec. 42-571. Failure to comply.

(1) In the event that property owners fail to comply with a notice for violations of this article, the weed official shall have all powers and authority necessary to cause the abatement of the nuisance in accordance with this article. If entry onto real property for the purposes described in this section is refused, an administrative search warrant may be obtained as provided in section 1-19 of this Code. Such work completed by the city or its designee shall be done at the expense of the property owner. An invoice for the work and an administrative fee shall be sent to the owner upon completion of the work.

(2) Should the property owner not make payment in full for the costs due following abatement of the violations by the city or the city's designee, the costs due shall be assessed against the lot and collected in the same manner as a property tax.
(O.16,346)

Sec. 42-572. Compliance with other codes.

Compliance with this Code shall not be construed as to allow for violation of other city, state, or federal laws, ordinances, codes, or regulations.
(O.16,346)

Chapters 43—45

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Chapter 46

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***Editor's note—**Ord. No. 15,546, § 1, adopted Dec. 19, 2016, effective March 1, 2017, repealed the former Ch. 46, and enacted a new Ch. 46 as set out herein. The former Ch. 46 pertained to similar subject matter and derived from Code 1962. For complete derivation see the Code Comparative Table.

Cross reference—Buildings and building regulations, ch. 26.

State law reference—Authority to provide for fire protection, I.C. § 364.16.

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ARTICLE I. IN GENERAL

Sec. 46-1. Permits required.

(a) It shall be unlawful for any person to use a building or premises or engage in any activities for which a permit is required by this chapter without first having obtained such permit. Permits are required from the fire prevention bureau for the uses listed in subsections (b) through (f) of this section.

(b) The fire code official, as defined in the International Fire Code, is authorized to issue operational permits for the operations set forth in fire code sections 105.5.1 through 105.5.58 of the International Fire Code and as stated below in this subsection in addition to the following facilities or uses, and the fee for each such installation or use shall be the amount established in the schedule of fees adopted by the city council by resolution:

(1) Acetylene generator. To operate an acetylene generator having a carbide capacity of five pounds or greater.

(2) Inspection, maintenance and certification of fire appliances.

(3) Operation for conducting a fireworks or fire, open flames or flammable material display or compound, use or store of pyrotechnic special effects material (see section 46-215 of this chapter).

(c) The fire code official is authorized to issue construction permits for work as set forth in sections 105.6.1 through 105.6.25. of the fire code and the following. The fee for issuance of such permit shall be the amount established in the schedule of fees adopted by the city council by resolution:

(1) Demolition of a fire protection system (without replacement or modification).

(d) Exemption for certain classes of applicants. Persons performing work or operations for the federal government or the state may obtain permits for such work or operations without paying the permit fees described in this section.

(e) A permit shall be required for open-flame decorative devices/fire pits pursuant to section 46-73. Outdoor fireplaces or grills burning untreated wood or charcoal used solely for the non-commercial preparation of food shall not be required to obtain a permit.

(f) The permit fees required by this section shall be doubled whenever a permit is not obtained prior to conducting the activities described in this section. No additional permits shall be issued to any person who owes the city the double fee established in this subsection.
(O.15,546, 15,666, 15,860, 16,318, 16,521)

Sec. 46-2. Fire zones and boundaries.

For the purpose of this chapter, the entire city is declared to be and is established a fire district, and such fire district shall be known and designated as fire zones no. 1, no. 2, no. 3, and no. 4, and shall include such territory or portions of the city as follows:

(1) *Fire zone no. 1.* Fire zone no. 1 shall be all that district east and west of the Des Moines River, within the following boundaries.

a. East of Des Moines River. Beginning on the east bank of the Des Moines River at the projected centerline of East Vine Street, thence east along the centerline of East Vine Street to the centerline of East Seventh Street, thence north along the centerline of East Seventh Street to the centerline of East Locust Street, thence west along the centerline of East Locust Street to the centerline of East Sixth Street, thence north along the centerline of East Sixth Street to the centerline of Des Moines Street, thence west along the centerline of Des Moines Street and the westerly projection thereof to the east bank of the Des Moines River, thence continuing on said westerly projection to the west bank of the Des Moines River; thence south along the west bank of the Des Moines River to the westerly

projection of the centerline of East Vine Street; thence east along the westerly projection of East Vine Street to the point of beginning.

b. West of Des Moines River. Beginning on the west bank of the Des Moines River at the centerline of Center Street, thence west along the centerline of Center Street to the centerline of Third Street, thence south along the centerline of Third Street to the centerline of Park Street, thence west along the centerline of Park Street and along the centerline of Keosauqua Way to the centerline of Ninth Street, thence south along the centerline of Ninth Street to the centerline of Pleasant Street, thence west along the centerline of Pleasant Street to the centerline of Tenth Street, thence south along the centerline of Tenth Street to the centerline of High Street, thence west along the centerline of High Street to the centerline of Twelfth Street, thence south along centerline of Twelfth Street to the centerline of Mulberry Street, thence east along the centerline of Mulberry Street to the centerline of Tenth Street, thence south along the centerline of Tenth Street to the centerline of Vine Street, thence east along the centerline of Vine Street and the easterly projection thereof to the west bank of the Des Moines River, thence north along the west bank of the Des Moines River to the point of beginning.

(2) *Fire zone no. 2.* Fire zone no. 2 shall be all that district lying outside of fire zone no. 1 but within the boundaries defined as follows:

a. West Des Moines River. Beginning on the west bank of the Des Moines River at the south right of way line of the MacVicar Freeway, thence west along the south right of way line of the MacVicar Freeway to the projection north of the centerline of Fifteenth Street, thence south along the projection north and along the centerline of Fifteenth Street to the intersection of centerline of Fifteenth Street and the centerline of Sixteenth Street, thence south along the centerline of Sixteenth Street to the main line track of the Chicago, Rock Island & Pacific Railroad Company, thence southeasterly along the tracks to the centerline of Vine Street, thence east along the centerline of Vine Street extended to the west bank of the Des Moines River, thence north along the west bank of the Des Moines river to the point of beginning.

b. East of Des Moines River. Beginning on the east bank of the Des Moines River at the centerline of Des Moines Street, thence east along the centerline of Des Moines Street to the centerline of East Sixth Street, thence north along the centerline of East Sixth Street to the south right of way line of the MacVicar Freeway, thence west along the south right of way line of the MacVicar Freeway to the east bank of the Des Moines River, thence continuing along the south right of way line of MacVicar Freeway to the west bank of the Des Moines River, thence south along the west bank of the Des Moines River to the westerly projection of the centerline of Des Moines Street, thence east along said westerly projection to the point of beginning.

(3) *Fire zone no. 3.* Fire zone no. 3 shall be all that district lying outside of fire zone no. 1 and no. 2 but within the boundaries defined as follows:

a. Beginning at the centerline of Ingersoll Avenue intersecting with the centerline of Fifteenth Street, thence west along the centerline of Ingersoll Avenue to the centerline of Martin Luther King Jr. Parkway,

thence south along the centerline of Martin Luther King Jr. Parkway to the north bank of the Raccoon River, thence east along the Raccoon River to confluence of the Des Moines and Raccoon Rivers, thence north along the west bank of the Des Moines River to the centerline of West Martin Luther King Jr Parkway, thence east along the centerline of West Martin Luther King Jr. Parkway and along the centerline of East Martin Luther King Jr. Parkway to the centerline of Southeast 6th Street, thence north along the centerline of Southeast 6th Street to the centerline of East Vine Street, thence west along the centerline of East Vine Street and along the centerline of Vine Street to the main track of the Chicago, Rock Island & Pacific Railroad Company; thence northwest along the tracks to the centerline of Sixteenth Street, thence north along the centerline of Sixteenth Street to the intersection of the centerline of Fifteenth Street and the centerline of Sixteenth Street; thence northeast and north along the centerline of Fifteenth Street to the point of beginning.

(4) *Fire zone no. 4.* Fire zone no. 4 shall include all that part of the city not included in fire zones no. 1, 2, and 3.

(O.15,546, 16,318, 16,377, 16,521)

Sec. 46-3. Violations.

(a) Any person who fails to perform an act required by the provisions of this chapter, or who commits an act prohibited by the provisions of this chapter, shall be guilty of a misdemeanor punishable by fine as provided by section 1-15, or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15, subject to the simple misdemeanor minimum fines below in subsections (c), (d) and (e).

(b) The fire department may also proceed under public nuisance provisions set forth in this code, and/or pursue any other remedy available at law, to address any failure to perform an act required by the provisions of this chapter or any action prohibited by the provisions of this chapter.

(c) A person who sells consumer fireworks to a person who is less than 18 years of age commits a simple misdemeanor, punishable by a fine of not less than $250.00. A person who is less than 18 years of age who purchases consumer fireworks commits a simple misdemeanor, punishable by a fine of not less than $250.00.

(d) A person who uses or explodes consumer fireworks in violation of this article commits a simple misdemeanor, punishable by a fine of $200.00.

(e) A person who uses or explodes display fireworks while the use of such devices is in violation of this article commits a simple misdemeanor, punishable by a fine of not less than $250.00.

(O.15,546, 15,586, 16,365)

Sec. 46-4. Municipal infractions.

(a) The first violation of chapter 46 within the calendar year shall be deemed the first offense punishable by a civil penalty not to exceed $750.00, plus inspection fees where applicable. The second and each subsequent violation of chapter 46 within a calendar year shall be a repeat offense, punishable by a civil penalty not to exceed $1,000.00, plus inspection fees where applicable.

(b) When enforcement is sought through a municipal infraction proceeding, the fire chief or the chief's authorized representative may enter into consent orders, assurances of voluntary compliance, or other similar documents establishing an agreement with the person responsible for the violation. Such orders will include specific action to be taken by the person responsible for the violation to correct said violation within a time period specified by the order.

(O.15,546, 16,521)

Sec. 46-5. Notice of violation—Administrative penalties—Corrective action order.

(a) The fire department is authorized to issue a notice of violation imposing administrative penalties upon any person who fails to perform an act required by chapter 46 of this Code or who commits an act prohibited by said chapter.

(b) Such notice of violation may include a corrective action order requiring compliance with the violated code section within 30 days.

(c) The administrative penalty for such violations shall be as provided in the schedule of administrative penalties adopted by the city council by resolution.

(d) Notice of violation, with the applicable penalty for such violation noted thereon, shall be issued to and served upon the violator. Service of the notice upon the violator may be by regular mail or certified mail or by delivery in person. Such notice shall include:

(1) A statement that the violator has a right to appeal regarding the violation; and

(2) A statement that the violator may file a written appeal with the fire marshal or the marshal's authorized representative. The appeal must be made within 30 days of issuance of the notice and must identify the notice of violation appealed from and state the basis for the appeal, the violator's name, mailing address, email address, and daytime telephone number. The fire marshal or the marshal's authorized representative will consider the appeal on the basis of the appeal and record and will notify the violator by mail or email of the decision as promptly as is reasonably possible. The appeal shall stay payment of the administrative penalty and performance of the corrective action until the appeal is decided. If issuance of the notice of violation is upheld, the violator shall have 30 days from issuance of the appeal decision to pay the administrative penalty and to perform the corrective action.

(e) Penalties assessed pursuant to notice of violation shall be paid by the violator in full as directed in the notice within 30 days of its issuance. Corrective action as required pursuant to notice of violation shall be completed by the violator as directed in the notice within 30 days of its issuance.

(f) The administrative penalties set out in the schedule of administrative penalties shall be charged in lieu of the fines and penalties provided for in sections 46-3 and 46-4 unless:

(1) The violator refuses to correct the violation and pay the scheduled administrative penalty, or

(2) The fire chief or the chief's authorized representative determines that immediate enforcement action by misdemeanor or municipal infraction prosecution pursuant to sections 46-3 and 46-4, by public nuisance procedure, or any other remedy available at law is necessary to achieve compliance with the requirements of this chapter in view of the particular circumstances of the case.

The fire department shall maintain a record of all violations, administrative penalties charged, or other enforcement actions taken.
(O.15,546, 15,860, 16,318, 16,521)

Sec. 46-6. Liability for damages.

(a) The city or any employee is not liable for damages to a person or property as a result of any act or failure to act in the enforcement of this chapter, unless the act of enforcement constitutes false arrest.

(b) This chapter shall not be construed to relieve from or lessen the responsibility of any person owning, operating, or controlling any equipment or structure regulated in this chapter for damages to a person or property caused by its defects, nor shall the city or any city employee be held as assuming any such liability because of the inspections authorized by this chapter or any approvals issued under this chapter.
(O.15,546, 16,521)

Sec. 46-7. Fire protection system inspection permits.

All fire protection system(s), as defined in the International Fire Code and required by the fire chief, shall be inspected and shall have an approved tag affixed to them showing the date of inspection and the identity of the person inspecting them. No fire protection system shall be inspected by any person unless he or she has first obtained a permit from the fire prevention bureau. Such permit shall be issued to any person successfully passing a standard qualifying examination for the fire protection system and any other requirements adopted by the bureau.
(O.15,546, 16,318)

Secs. 46-8—46-30. Reserved.

ARTICLE II. FIRE DEPARTMENT*

Sec. 46-31. Title; references.

Except for purposes of administration and organization, this article shall be known and may be cited as "fire department." For the purpose of this article, the term "fire division" shall be synonymous with and refer to the fire department.
(O.15,546)

Sec. 46-32. Chief.

(a) *Appointment; responsibility.* The chief of the fire department, also known as the fire chief, shall be appointed by the city manager and responsible to the manager for the functions of the fire department.

(b) *Supervision of department.* The chief of the fire department shall supervise and direct the fire department.

(c) *Absence or disability.* In the absence or disability of the chief of the fire department, the city manager shall designate an assistant fire chief to act as chief of the fire department during such absence or disability.

(d) *Powers and duties generally.* The chief of the fire department shall be responsible for the protection of life and property against fire, prevention and extinguishment of fires, and the removal of fire hazards. The chief of the fire department shall see that all provisions of law or ordinance passed for the protection of the city against fire are enforced.

(e) *Authority to prescribe rules and regulations.* The fire chief shall have the power to promulgate and establish, with the approval of the city manager, rules and regulations for the government of the fire department.

(f) *Property and equipment.* The fire chief shall be responsible for the care, maintenance, and custody of all property and equipment of the fire department.
(O.15,546, 16,521)

Sec. 46-33. Reserved.

Editor's note—Ord. No. 16,149, § 1, adopted June 27, 2022, repealed § 46-33, which pertained to copies of fire and medical records and reports and derived from Ord. No. 15,546.

Sec. 46-34. Organization base of geographical districts.

The fire department shall be organized on the basis of geographical districts of the city. Its personnel and equipment shall be assigned by the chief of the fire department, with the approval of the city manager, to the various geographical districts. Insofar as possible, these assignments shall be made in such a manner that all areas of the city have adequate fire protection.
(O.15,546)

Secs. 46-35—46-60. Reserved.

ARTICLE III. CODE

Sec. 46-61. Adoption of International Fire Code.

(a) This chapter shall consist of the International Fire Code, 2024 edition, published by the International Code Council, Inc., and known commonly and referenced in this chapter

*__Cross reference—__Departments, § 2-536 et seq.

as the "International Fire Code" and as the "fire code," which volume is incorporated in this chapter by this reference as fully as though set forth in this chapter in its entirety, excepting only such portions as are stated to be deleted therefrom and such amendments or additional provisions as are set forth in this article.

(b) This chapter and all provisions incorporated in this chapter, by reference or otherwise, shall be known as the fire prevention code, may be cited as such, and will be referred to in this chapter as such and as "this code," "this article," or "this chapter." Further references made in this chapter to chapters will be to chapters of the International Fire Code. References to section numbers not preceded by "46-" will be to sections in the International Fire Code.
(O.15,546, 15,860, 16,318, 16,521)

Sec. 46-62. Deletions.

The following sections are hereby deleted from the International Fire Code adopted in section 46-61 of this article and are of no force or effect in this chapter:

(1) Sections 101.1, 608.13.4 Item #5, 806.1.1 Exception #2, Exemption for 105.5.36.

(2) Appendix A.

(3) Section 907.6.3 Exceptions #1, 2, and 4 (see section 46-475 of this chapter).

(O.15,546, 15,860, 16,318, 16,521)

Sec. 46-63. Amendments and additions.

(a) Article I of this chapter and the remaining sections in this chapter are and represent amendments and additions to the requirements contained in the International Fire Code. Where the requirements conflict with those of the International Fire Code, the requirements of this chapter shall prevail.

(b) The following sections of the International Fire Code are deleted and are amended as follows:

(1) Section 113.4, except section 113.4.1 thereof which is not amended or deleted and remain incorporated in this chapter (see sections 46-3, 46-4, and 46-5 of this chapter.)

(2) Section 5608.2 (see article VI of this chapter).

(3) Section 6104, except 6104.1 and 6104.3, which are not amended or deleted and remains incorporated in this chapter (see article VIII of this chapter).

(4) Section 4104.2 (see section 46-66 of this chapter).

(5) Section 1101.4 (see section 46-68 of this chapter).

(6) Section 307.4.2 (see section 46-72 of this chapter).

(7) Section 503.2.1 (see section 46-442 of this chapter).

(8) Section 505.1 (see section 46-443 of this chapter).

(9) Section 507.5.1.1. (see section 46-445 of this chapter).

(10) Section 507.5.5 (see section 46-445 of this chapter).

(11) Section 508.1 (see section 46-456 of this chapter).

(12) Section 508.1.3 (see section 46-456 of this chapter).

(13) Section 903.2.1.1 (see section 46-469 of this chapter).

(14) Section 903.2.1.2 (see section 46-469 of this chapter).

(15) Section 903.2.1.3 (see section 46-469 of this chapter).

(16) Section 903.2.1.4 (see section 46-469 of this chapter).

(17) Section 903.2.2 (see section 46-469 of this chapter).

(18) Section 903.2.3 (see section 46-469 of this chapter).

(19) Section 903.2.4 (see section 46-469 of this chapter).

(20) Section 903.2.7 (see section 46-469 of this chapter).

(21) Section 903.2.9 (see section 46-469 of this chapter).

(22) Section 903.2.9.1 (see section 46-469 of this chapter).

(23) Section 903.3.1.2 (see section 46-469 of this chapter).

(24) Section 903.4.3 (see section 46-469 of this chapter).

(25) Section 910.2.1 (see section 46-472 of this chapter).

(26) Section 914.3.1.2 (see section 46-473 of this chapter).

(27) Section 907.6.6 (see section 46-476 of this chapter).

(28) Section 3301.2 (see section 46-520 of this chapter).

(29) Section 3307.1.2(see section 46-522 of this chapter).

(30) Section 3307.5 (see section 46-523 of this chapter).

(31) Section D105.3 (see section 46-580 of this chapter).

(32) Section D107.1 Exception #2 (see section 46-583 of this chapter)

(33) Section 311.1, 311.1.1, 311.2, and 311.7 (see section 46-70 of this chapter).

(c) The addition of the following sections/ appendices:

(1) Appendices B, C, D, I, K M, and O with an added exception to section M102.1 (see section 46-474 of this chapter).

(2) Section 1103.5.3 (see section 46-68.1 of this chapter).

(3) Section 115.8 (see section 46-69 of this chapter).

(4) Section 105.5.58 (see section 46-72 of this chapter).

(5) Sections 105.5.59, 308.5., and 308.5.1 (see section 46-73 of this chapter).

(6) Section 5601.4 Exception (see section 46-218 of this chapter).

(7) Section 105.5.51 Exception #3 (see section 46-318 of this chapter).

(8) Section 503.1.4 (see section 46-441 of this chapter).

(9) Section 511 (see section 46-444 of this chapter).

(10) Section 507.5.7 (see section 46-445 of this chapter).

(11) Section 507.5.8 (see section 46-445 of this chapter).

(12) Table 508.1 (see section 46-456 of this chapter).

(13) Section 1201.4 (see section 46-457 of this chapter).

(14) Section 1201.5 (see section 46-457 of this chapter).

(15) Section 905.3.8 (see section 46-470 of this chapter).

(16) Section 907.1.4 (see section 46-471 of this chapter).

(17) Section 1014.5 item #6 (see section 46-488 of this chapter).

(18) Section 1108.1 (see section 46-498 of this chapter).

(19) Section 1108.2 (see section 46-498 of this chapter).

(20) Section 1108.3 (see section 46-498 of this chapter).

(21) Section 3202.2 (see section 46-510 of this chapter).

(22) Section 3206.2.2 (see section 46-510 of this chapter).

(23) Section 3206.4.2 (see section 46-510 of this chapter).

(24) Section 3307.1.4 (see section 46-521 of this chapter).

(25) Section D104.4 (see section 46-584 of this chapter).

(26) Section D106.4 (see section 46-585 of this chapter).

(27) Section D107.3 (see section 46-586 of this chapter).

(28) Section 106.2.2.1 (see section 46-587 of this chapter).

(29) Section 903.3.1.1.4 (see section 46-588 of this chapter).

(O.15,546, 15,860, 15,939, 16,318, 16,333, 16,521)

Sec. 46-64. Appeals.

(a) Other than notices of immediate enforcement action by misdemeanor or municipal infraction prosecution or other remedies at law, or public nuisance violations addressed through procedures set forth elsewhere in this code, any person affected by a decision of the building official, fire chief or the designee of either may request and shall be granted a hearing before the building and fire code board of appeals on the decision if the person files in the permit and development center a written petition requesting a hearing and setting forth a brief statement of the grounds within 15 days after receiving notice of the decision. Upon receipt of the petition, the permit and development center shall set a time and place for the hearing and shall give the petitioner written notice thereof at least three days before the hearing, unless such notice requirement is waived in writing by the petitioner. The hearing shall be commenced not later than 30 days after the day on which the petition was filed, unless for good cause shown the building official grants a postponement in writing.

(b) At the hearing the petitioner shall be given an opportunity to be heard to show why the decision of the building official, fire chief, or either's designee should be modified or withdrawn. The building official or fire chief or designee shall have the opportunity to be heard to show why their decision should be affirmed.

(c) After the hearing as provided in this section, the building and fire code board of appeals shall affirm, modify, or withdraw the decision of the building official, fire chief, or either's designee. The decision of the building and fire code board of appeals is the final administrative decision.

(d) The proceedings at any hearing before the board, including the findings and decision of the building official, fire chief, or either's designee, if applicable, shall be summarized, reduced to writing, and entered as a matter of public record in the permit and development center. This record shall include a copy of every notice or order issued in connection with the matter.

(O.15,546, 16,521)

Sec. 46-65. Inspections for multi-family dwellings.

Group R-3 and R-4 (formerly referred to as R division 3) occupancies shall be inspected upon request of the occupant. Fire department personnel will not be responsible for the inspection of group R-1 and R-2 (formerly referred to as R division 1) occupancies, except hotels and dormitories. The Neighborhood Inspection Division shall be responsible for enforcement of the housing code and fire safety requirements as provided in article IV of chapter 26 of the City Code.

(O.15,546, 15,860, 16,318, 16,521)

Sec. 46-66. Open flame cooking devices.

Delete section 4104.2 and insert in lieu thereof the following new section:

4104.2 Open-flame cooking devices. Charcoal burners, other open-flame cooking devices, and other devices that produce ashes or embers shall not be operated on balconies or within 20 feet (6096 mm) of combustible construction. Location of LP containers shall comply with section 6104.

Exceptions:

1. One- and two-family dwellings, constructed in accordance with the International Residential Code.

2. LP-gas cooking devices having LP-gas container with a water capacity not greater than 20 pounds.

(O.15,546, 16,521)

Sec. 46-67. Single and multiple station smoke alarms.

Listed single and multiple-station smoke alarms complying with UL 268 shall be installed in accordance with provisions of this code and the household fire warning equipment provision of NFPA 72. Smoke alarms in dwelling units shall be addressable with sounder bases and monitored by the building fire alarm system as a supervisory signal only. Mini horns in dwelling units are not required if notification from a building fire alarm system is through the smoke alarms with sounder bases. Section 46-67 only applies to the R-1, R-2, R-4 and I-1 occupancies as defined in the International Fire Code. Single and multi-station smoke alarms shall be installed in locations detailed in sections 907.2.11.
(O.15,546, 15,860, 16,318)

Sec. 46-68. Owner notification for retroactive provisions.

(a) Upon the issuance of a building permit under chapter 26 of the City Code and determination by the fire code official that alterations are needed to the existing building to provide a minimum degree of fire and life safety to persons occupying said building, the property owner has three calendar years from the date of issuance of the building permit to comply with the requirements of chapter 11 of the International Fire Code in effect at the time of permit issuance that apply to the building in question. If, at the end of the initial three-year period, the fire code official determines that the property owner has made substantial progress in bringing the property into compliance, the fire code official may grant a single two-year extension to the owner to complete such work. If, however, the fire code official determines that substantial progress has not been made by the property owner by the end of the initial three-year period or, when applicable, the property owner fails to complete the work during the two-year extension period, then the property will be subject to compliance with the retroactive requirements of chapter 11 in effect at the end of the initial three-year period or, when applicable, the two-year extension period that apply to the building in question.

(b) Upon determination by the fire code official that alterations are needed to an existing building to provide a minimum degree of fire and life safety to persons occupying said building and/or to provide for fire prevention and response within said building, the fire code official may require the property owner to comply with some or all of the requirements of chapter 11 of the International Fire Code in effect at the time of such determination, and may require the property owner to comply with the specified requirements within the time period set forth in written notice given by the fire code official to the property owner, not to exceed three calendar years from the date of said notice or as dictated in the International Fire Code, whichever is longer.
(O.15,546, 15,860)

Sec. 46-68.1. Group I-2, Condition 2.

The following text shall be added to the end of section 1103.5.3:

> The automatic sprinkler system shall be installed as established by section 46-68 of the city code.

(O.16,318, 16,521)

Sec. 46-69. Securing fire-damaged premises after fire event.

Section 115 of the international fire code is amended by adding a new section 115.8 to read as follows:

Section 115.8 Securing fire-damaged premises after fire event.

(1) The following definitions apply to this section:

"Fire event" means a response by the Des Moines Fire Department to extinguish a fire within a building, dwelling or other structure that commences with the dispatching of fire department resources and concludes with the fire officer in charge terminating the incident.

"Fire-damaged structure" means a building, dwelling or other structure

within the corporate limits of the city that has been partially burned during a fire event.

"Nuisance" means injurious or dangerous to public safety and constituting an emergency requiring immediate abatement pursuant to article VI, chapter 42 of the city code and/or other applicable city code section(s).

"Property owner" means the record titleholder(s) and/or contract purchaser(s) of the real property upon which a fire-damaged structure is located.

(2) A fire-damaged structure in an unsecured condition may be determined by a designated fire department official, in his or her sole discretion, to constitute a nuisance.

(3) The designated fire department official may but is not required to give notice to the property owner(s) of such a determination of nuisance requiring immediate abatement, and a hearing regarding the existence of the nuisance pursuant to section 42-358.02(c) of this code may be held if practical under the circumstances, but shall not be required to be held if impractical under the circumstances, prior to abatement of the nuisance by the property owner or the city.

(4) A fire-damaged structure determined to constitute a nuisance shall be secured by the property owner(s), at the property owner's sole expense, in accordance with this section and within the time allowed by the designated fire department official, in his or her sole discretion, unless the designated fire official determines that securing of the fire-damaged structure during the fire event is required.

(5) Prior to securing a fire-damaged structure determined to constitute a nuisance, the property owner(s) shall remove or cause to be removed all living beings from such structure.

(6) The property owner(s) shall secure all windows, doors, and other structural openings of the fire-damaged structure determined to constitute a nuisance to prevent access by unauthorized persons.

(7) A fire-damaged structure determined to constitute a nuisance which cannot be properly secured from access to the interior by the use of window locks, door locks, padlocks, or other appropriate locking mechanisms, shall be secured by the property owner(s) as follows:

a. Completely enclosing over all structural openings (windows, doors, roof openings) on the exterior of such fire-damaged structure with plywood; or

b. Completely enclosing such fire-damaged structure with a temporary snow fence of not less than forty-eight (48") inches in height; or

c. By any different and/or additional measures set forth in any written notice given by the designated fire department official to the property owner(s).

(8) If the property owner(s) fails to secure a fire-damaged structure determined to constitute a nuisance in accordance with the requirements of this section, or if the designated fire official determines that securing of the fire-damaged structure during the fire event is required, the fire chief or his or her designee, who may include the development services department director or his or her designee, may cause such fire-damaged structure

to be secured and assess the costs thereof against the real property upon which such fire-damaged structure is located for collection in the same manner as a property tax, following hearing in accordance with article VI, chapter 42 of the city code and/or other applicable city code sections.

(9) Property owner(s) shall be joint and severally liable for performing the actions required by this section and for any property assessments arising from failure to perform such actions.

(O.15,546, 16,318, 16,521)

Sec. 46-70. Vacant premises.

(a) Section 311.1 of the International Fire Code is amended to read as follows:

311.1 General. Permanently or temporarily unoccupied buildings, structures, premises or portions thereof, including tenant spaces, shall be safeguarded and maintained in accordance with sections 311.1.1 through 311.6.

(b) Section 311.1.1 of the International Fire Code is amended to read as follows:

311.1.1 Abandoned premises. Buildings, structures, and premises for which an owner cannot be identified or located by dispatch of a certificate of mailing to the last known or registered address, which persistently or repeatedly become unprotected or unsecured, which have been occupied by unauthorized persons or for illegal purposes, or which present a danger of structural collapse or fire spread to adjacent properties may be considered abandoned, declared unsafe and abated by demolition or rehabilitation in accordance with chapters 26, 42 and/or 60 of the city code, as applicable.

(c) Section 311.2 of the International Fire Code is amended to read as follows:

311.2 Safeguarding vacant premises. Permanently or temporarily unoccupied buildings, structures, premises, or portions thereof (collectively "premises") shall be secured and protected by persons owning or in charge or control of such premises in accordance with sections 311.2.1 through 311.2.3.

(d) Section 311 of the International Fire Code is amended by adding a new section 311.7 as follows:

Section 311.7 Compliance. The fire code official may notify the person(s) owning, or in charge or control of, a vacant building, structure, premises or portion thereof (collectively "premises") of failure to comply with any of the requirements of sections 311.2 to 311.4 and may require compliance by such person(s) within the time set forth in the notice. If compliance does not occur within the time set forth in the notice, the fire chief or the chief's designee may seek available remedies, including but not limited to abatement and assessment of costs pursuant to chapters 26, 42 and/or 60 of the city code, as applicable.

(O.15,546, 15,860, 16,318, 16,521)

Sec. 46-71. Reserved.

Editor's note—Ord. No. 16,521, § 1, adopted Dec. 8, 2025, repealed § 46-71, which pertained to bonfires and derived from Ord. No. 15,860.

Sec. 46-72. Recreational fires.

Insert new section 105.5.36.1 with the following language:

Section 105.5.36.1 Permit Required. A permit shall be obtained prior to conducting any type of recreational fire.

Exception: Outdoor fireplaces or grills burning untreated wood or charcoal used solely for the non-commercial preparation of food. Such fires shall be extinguished upon completion of the food preparation. Such fires shall be conducted in an appliance that: provides for air entrainment underneath the fuel source, provides a cooking grate, and provides a non-combustible cover.

(O.15,860, 16,521)

Sec. 46-73. Open-flame decorative devices/fire pits.

Insert new section 105.5.58 of the International Fire Code with the following language:

Section 105.5.58 Permit Required. A permit shall be obtained prior to installing or using an open flame decorative device/fire pit.

Exception: One- and two-family dwellings.

Insert new section 308.5 with the following language:

Section 308.5 Open-flame Decorative Devices/Fire Pits. Open-flame decorative devices/fire pits shall comply with the restrictions identified in section 308.3.1 of the fire code.

Insert new section 308.5.1 with the following language:

Section 308.5.1. Gas Fired Open-flame Decorative Devices/Fire Pits. An approved emergency shut-off valve designed to close in the event of a fire or other emergency shall be provided. The valve shall be capable of being activated by a switch within 75-feet of the fueled device. The switch shall be labeled "EMERGENCY FUEL SHUT-OFF" and shall be provided with ready access.
(O.15,860, 16,318, 16,521)

Sec. 46-74. Administrative permits.

Insert new section 106.2.2.1 with the following language:

106.2.2.1 Administrative permits. The fire code official shall have the authority to adopt policies and procedures regarding the required documentation and permit processes for additions or remodeling of existing systems where they are deemed to not require a full set of submittal documentation. Such permits shall still meet the intents of the applicable codes and a full set of construction documents shall be submitted for approval upon request of the fire code official.
(O.16,521)

Sec. 46-75. Parking garage sprinkler design.

Insert new section 903.3.1.1.4 Parking garages.

903.3.1.1.4 Parking garages. Sprinkler systems shall be designed in accordance with Extra Hazard (Group 1) of NFPA 13 for parking garages where located one or more stories below an A, B, E, I, M, or R occupancy.
(O.16,521)

Secs. 46-76—46-90. Reserved.

ARTICLE IV. HAZARDOUS SUBSTANCES

Sec. 46-91. Scope.

This article shall apply to the release of hazardous substances and the notification, cleanup, and recovery of costs associated with the mitigation of hazardous conditions.
(O.15,546, 16,521)

Sec. 46-92. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Assisted political entity means any city, county, township, or the state entering into an I.C. ch. 28E agreement with the city, the purpose of which is to render assistance to such political entity in cases of hazardous conditions within its jurisdiction or affecting the environment of its jurisdiction as defined in this chapter creating a hazardous substance emergency.

Cleanup means the removal of the hazardous substances to a place where the waste will not cause any danger to persons or the environment, in accordance with the state statutes, rules, and regulations therefor, or the treatment of the material as defined in this article to eliminate the hazardous condition, including the restoration of the area to a general good appearance without noticeable odor as far as practicable. The term "cleanup" includes all actions necessary to contain, collect, identify, analyze, treat,

disperse, remove, or dispose of a hazardous substance and to restore the situs from which such hazardous substance was cleaned up.

Hazardous condition means any situation involving the actual, imminent, or probable spillage, leakage, or release of a hazardous substance:

(1) Within the city or onto city property located outside the city which, because of the quantity, strength, and toxicity of the hazardous substance, its mobility in the environment and its persistence, creates an immediate or potential danger to the public health or safety; or

(2) Onto land, into the waters within the state or into the atmosphere, but outside the city, which, because of the quantity, strength, and toxicity of the hazardous substance, its mobility in the environment and its persistence, creates an immediate or potential danger to the public health or safety of persons or property within the city.

The term "hazardous condition" includes any accident involving hazardous materials required to be reported under I.C. § 321.266(4).

Hazardous substance means any substance or mixture of substances that presents a danger to the public health, safety, or environment and includes but is not limited to a substance that is toxic, corrosive, flammable, or an irritant or that, in confinement, generates pressure through decomposition, heat, or other means. The following are examples of substances which, in sufficient quantity, may be hazardous: acids; alkalis; explosives; fertilizers; heavy metals such as chromium, arsenic, mercury, lead and cadmium; industrial chemicals; paint thinners; paints; pesticides; petroleum products; poisons; radioactive materials; sludges; and organic solvents. The term "hazardous substance" includes any hazardous waste identified or listed by the administrator of the United States Environmental Protection Agency under the Solid Waste Disposal Act as amended by the Resource Conservation and Recovery Act of 1976; any toxic pollutant listed under section 307 of the federal Water Pollution Control Act of 1976 as amended to January 1, 1977; any hazardous substance designated under section 311 of the federal Water Pollution Control Act as amended to January 1, 1977; any hazardous material designated by the Secretary of Transportation under the Hazardous Materials Transportation Act; or any hazardous substance listed under the Comprehensive Environmental Response, Compensation, and Liability Act of 1980.

Person means a natural person, his or her heirs, executors, administrators, or assigns, and also includes a firm, partnership, or corporation, its or their successors or assigns or any other similar legal entity or the agent of any of such.

Responsible person means the person, whether the owner, agent, lessor, or tenant, in charge of the hazardous substance being stored, processed, or handled or the owner or bailee transporting hazardous wastes or substances, whether on public ways or grounds or on private property, where the spill would cause danger to the public or to any person or to the environment.

Treatment means a method, technique, or process, including neutralization, designed to change the physical, chemical, or biological character or composition of a hazardous substance so as to neutralize it or to render the substance nonhazardous, safer for transport, amenable for recovery, amenable for storage, or to reduce it in volume. Treatment includes any activity or processing designed to change the physical form or chemical composition of hazardous substance to render it nonhazardous.
(O.15,546, 16,521)

Cross reference—Definitions generally, § 1-2.

Sec. 46-93. Notifications.

When a hazardous condition is created, the responsible person shall notify the fire department immediately upon discovery of the condition but in no instance later than 30 minutes after the discovery of the hazardous condition.
(O.15,546)

Sec. 46-94. Cleanup required.

Whenever a hazardous condition is created by the deposit, injection, dumping, spilling, leaking, or placing of a hazardous substance so that the hazardous substance or a constituent of the

hazardous substance may enter the environment or be emitted into the air or discharged into any waters, including groundwaters, the fire chief or the chief's designee may remove or provide for the removal and disposal of the hazardous substance at any time, unless the fire chief or the chief's designee determines such removal will be properly and promptly accomplished by the responsible person. If the responsible party does not initiate and complete cleanup within the time designated by the fire department, the city may proceed to remedy the hazardous condition by performing the necessary cleanup services.
(O.15,546, 16,521)

Sec. 46-95. Loss, burden, or costs and charges.

(a) A responsible person, except as otherwise provided in this article, shall be liable to the city for all cleanup costs incurred by the city, including but not limited to chemical damage, contamination of equipment, and the use of consumable materials, but shall not be liable for those losses, burdens, or costs normally associated with response to fire emergencies which do not involve hazardous conditions. Charges for such cleanup costs shall be billed and collected by the city unless otherwise provided by an I.C. ch. 28E agreement or other contract. However, the costs of any cleanup requiring less than one hour of emergency service shall not be charged against the responsible person.

(b) An assisted political entity shall be liable to the city for all costs incurred by the city, including but not limited to use of personnel, chemical damages, contamination of equipment, and the use of consumable materials, the amount of such costs to be determined by a per-hour fee based on actual costs to the city approved by the city council. These costs shall be billed directly to the assisted political entity by the city.

(c) The city manager shall determine the costs to the city of providing the services of the city in an amount equal to the actual costs to the city expended in responding to hazardous conditions. The costs as determined by the city manager shall be promulgated as a schedule of fees, which the city manager shall review and revise not less than once a year. Fees established by the city manager shall be charged to and collected from the responsible person as provided in this section.
(O.15,546, 16,521)

Secs. 46-96—46-120. Reserved.

ARTICLE V. RESERVED*

Secs. 46-121—46-210. Reserved.

ARTICLE VI. FIREWORKS AND PYROTECHNIC SPECIAL EFFECTS MATERIAL

Sec. 46-211. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Consumer fireworks means those fireworks as defined by Iowa Code section 727.2 and includes the below described First-Class Consumer Fireworks and Second-Class Consumer Fireworks.

First-class consumer fireworks means the following Consumer Fireworks, as described in American Pyrotechnics Association Standard 87-1, chapter 3.

(1) Aerial shell kits and reloadable tubes.

(2) Chasers.

(3) Helicopter and aerial spinners.

(4) Firecrackers.

(5) Mine and shell devices.

(6) Missile-type rockets.

(7) Roman candles.

(8) Sky rockets and bottle rockets.

(9) Multiple tube devices under this definition that are manufactured in

*__Editor's note—__Ord. No. 16,521, § 1, adopted Dec. 8, 2025, repealed § 46-121, which pertained to welding and cutting, calcium carbide and acetylene—Permits required and derived from Ord. No. 15,546.

accordance with American Pyrotechnics Association Standard APA 87-1, section 3.5.

Second-class consumer fireworks means the following consumer fireworks, as described in American Pyrotechnics Association Standard 87-1, chapter 3.

(1) Cone fountains.

(2) Cylindrical fountains.

(3) Flitter sparklers.

(4) Ground and hand-held sparkling devices, including multiple tube ground and hand-held sparkling devices that are manufactured in accordance with American Pyrotechnics Association Standard 87-1, section 3.5.

(5) Ground spinners.

(6) Illuminating torches.

(7) Toy smoke devices that are not classified as novelties pursuant to American Pyrotechnics Association Standard 87-1, section 3.2.

(8) Wheels.

(9) Wire or dipped sparklers that are not classified as novelties pursuant to American Pyrotechnics Association Standard 87-1, section 3.2.

Display fireworks includes any explosive composition, or combination of explosive substances, or article prepared for the purpose of producing a visible or audible effect by combustion, explosion, deflagration, or detonation, and includes fireworks containing any explosive or flammable compound, or other device containing any explosive substance. Display fireworks do not include consumer fireworks.

Fireworks means consumer fireworks and display fireworks. Fireworks does not include novelties as defined in American Pyrotechnics Association Standard 87-1, chapter 3 and that comply with the labeling regulations promulgated by the United States Consumer Product Safety Commission.
(O.15,546, 15,586, 16,521)

Cross reference—Definitions generally, § 1-2.

Sec. 46-212. Prohibitions.

(a) It shall be unlawful to manufacture fireworks within the city limits.

(b) It shall be unlawful to sell display fireworks within the city limits.

(c) It shall be unlawful for a person to possess, use, or explode display fireworks except in possession of and in compliance with all requirements of a permit issued under section 46-215.

(d) It shall be unlawful for a person to use or explode consumer fireworks within the city limits on any day or time other than July 3 from 9:00 am to 10:00 pm, July 4 from 9:00 am to 11:00 pm, or December 31 from 9:00 am to 11:59 pm.

(e) No consumer fireworks may be used or exploded on city property or public right of way and may only be used or exploded on private property by or with the consent of the owner of the property.
(O.15,546, 15,586, 15,619, 16,474, 16,521)

Sec. 46-213. Sale of consumer fireworks.

(a) It shall be unlawful for a person to offer for sale, expose for sale, or sell at retail consumer fireworks, unless a person is a retailer or community group as defined in Iowa Code chapter 100 and possesses and complies with all requirements of a consumer fireworks seller license issued by the state fire marshal. Consumer fireworks may only be sold during the dates and times as allowed under Iowa Code chapter 100 and in zoning districts permitted by this code.

(b) It shall be unlawful for a person to sell consumer fireworks to a person less than 18 years of age and it shall be unlawful for a person who is less than 18 years of age to purchase consumer fireworks.

(c) The following information must be stated in an easily readable type size and prominently posted at the place of payment at each location selling consumer fireworks:

(1) The use or explosion of consumer fireworks within the city limits is prohibited; and

(2) A violation of section 46-212(d) prohibiting the use or explosion of consumer

fireworks within the city limits constitutes a simple misdemeanor, punishable by a fine of $200.00.

(O.15,546, 15,586, 15,671, 16,365, 16,521)

Sec. 46-214. Reserved.

Editor's note—Ord. No. 15,619, § 1, adopted Oct. 9, 2017, repealed § 46-214, which pertained to restrictions on use of consumer fireworks and derived from Ord. No. 15,546; Ord. No. 15,586.

Sec. 46-215. Permits required.

(a) For the purpose of this article, a permit shall be obtained to:

(1) Use or explode display fireworks, except for display fireworks at the Iowa State Fairgrounds by the Iowa State Fair Board.

(2) Compound, store, or use pyrotechnic special effects material.

(3) Conduct a display involving fire, open flames, or flammable material other than fireworks or pyrotechnic special effects material.

(b) Application for a permit required by this article shall be made through the city's permitting process to the fire prevention bureau at least 14 days in advance of the display, use storage, or compounding.

(O.15,546, 15,586, 15,671, 16,318, 16,521)

Sec. 46-216. Insurance and indemnification for permit.

(a) Unless otherwise specified in this section, the applicant for the permit required by this article shall, at the time application is made for a permit, attach thereto a certificate of insurance naming the applicant as insured and showing liability insurance coverage with a limit of not less than $5,000,000.00, provided that the fire chief or finance director at his or her discretion or the city council may at its discretion require a greater amount. The type of liability insurance to be required shall be determined by the city's finance director or designee. The insurance shall inure to the use and benefit of any person who suffers damage either to person or property because of the display, use, or explosion of display fireworks, the compounding, storage, or use of pyrotechnic special effects material, or the display involving fire, open flames, or other flammable material other than fireworks or pyrotechnic special effects material. The applicant shall further comply with all insurance and indemnification provisions set forth in the permit required by this article.

(b) Notwithstanding the foregoing, if a display involving fire, open flames, or other flammable material other than display fireworks or pyrotechnic special effects material is to be held outside in an open area using non-detonating materials and is determined by the fire chief to be a low-hazard display, then the applicant for the permit required by this article for such a display shall, at the time application is made for a permit, attach thereto a certificate of insurance naming the applicant as insured and showing liability insurance coverage with a limit of not less than $2,000,000.00, provided that the fire chief or finance director at his or her discretion may require a greater amount. The type of liability insurance to be required shall be determined by the city's finance director or designee. The insurance shall inure to the use and benefit of any person who suffers damage either to person or property because of the display involving fire, open flames, or other flammable material other than display fireworks or pyrotechnic special effects material. The applicant shall further comply with all insurance and indemnification provisions set forth in the permit required by this article.

(O.15,546, 15,586, 16,521)

Sec. 46-217. Seizure of fireworks.

The fire chief may seize, take, remove, or cause to be removed at the expense of the owner all stocks of fireworks offered or exposed for sale, used, stored, or held in violation of this chapter.

(O.15,546, 15,586, 16,521)

Sec. 46-218. Firework operator certification.

Add the following exception to section 5601.4:

Exception: Persons in charge of using or exploding Display Fireworks or pyrotechnic special

effect operations may be less than 21 years of age if they possess a valid PGI display fireworks operator certification or equivalent certification approved by the fire code official.
(O.15,546, 15,586, 16,521)

Secs. 46-219—46-245. Reserved.

ARTICLE VII. FLAMMABLE AND COMBUSTIBLE LIQUIDS

Sec. 46-246. Special liquid tank requirements.

The storage of class I or II flammable or combustible liquids in aboveground tanks is prohibited in fire zone nos. 1 and 2 and 3, as defined in section 46-2 of this chapter; an exception may be made at a construction site if requested in writing and approved by the fire chief.
(O.15,546, 16,318, 16,521)

Secs. 46-247—46-275. Reserved.

ARTICLE VIII. LIQUEFIED PETROLEUM GASES

Sec. 46-276. Scope.

This article shall apply to all storage and handling of liquefied petroleum gas and the installation of all equipment pertinent to systems for such uses.
(O.15,546)

Sec. 46-277. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Liquefied petroleum gas means any material which is composed predominantly of any of the following hydrocarbons or mixtures of them: propane, propylene, butane (normal butane or isobutane), and butylenes.

Liquefied petroleum gas equipment means all containers; apparatus; safety devices; piping, not including utility distribution piping systems; and equipment pertinent to the storage and handling of liquefied petroleum gas. Gas-consuming appliances shall not be considered as being liquefied petroleum gas equipment.
(O.15,546, 16,521)

Cross reference—Definitions generally, § 1-2.

Sec. 46-278. Permit and reports of installations.

(a) A permit shall be obtained for each installation of liquefied petroleum gas employing one or more container(s) in the individual or aggregate amount of equal to or more than 150 gallons or 636 pounds aggregate. Prior to making such an installation, an installer shall submit plans to the fire prevention bureau, and if compliance with the requirements of the fire prevention code is shown by such plans, a permit shall be issued.

(b) An annual permit shall be obtained for the operation and maintenance of a liquefied petroleum gas installation for each year after the system has been installed and approved, as required in subsection (a) of this section.

(c) Installers shall maintain a record of all installations for which a permit is not required by subsection (a) of this section, but not including installation of gas-burning appliances and replacing of portable cylinders, and shall have it available for inspection by the fire prevention bureau.
(O.15,546, 16,318)

Sec. 46-279. Location of containers.

(a) No liquefied petroleum gas installation shall be permitted in fire zone nos. 1 and 2 and 3 of the fire district as defined in section 46-2 of this chapter.

Exemptions:

(1) Special approval by the fire chief, or the fire chief's designee, for a temporary installation no more than 180 days.

(2) Containers that are not larger than 20 pounds, located outside a building, and are dedicated to cooking purposes.

(b) The aggregate capacity of any one installation shall not exceed 1,000 gallons of water capacity, except that in particular installations this limit may be altered at the discretion of the fire marshal or the fire marshal's designee after due consideration of all factors involved. Bulk plants, gas utility plants, container charging operations, and larger amounts of storage shall be governed by approved national standards and state regulations.

(c) Containers and first-stage regulating equipment shall be located outside of buildings, other than buildings especially provided for this purpose, except that small department of transportation containers and regulating equipment may be used indoors under the following conditions:

(1) If temporarily used for demonstration purposes and the container has a maximum water capacity of 20 pounds.

(2) If used with a completely self-contained gas hand torch or similar equipment and the container has a maximum water capacity of 2½ pounds.

(d) Each individual container shall be located in accordance with Table 6104.3 of the fire code.

(e) Containers installed for use shall not be stacked one above the other. Containers of 1,000 gallons or less shall be set on concrete pads of sufficient size to prevent tipping. Concrete blocks or bricks shall not be used.

(f) The minimum separation between liquefied petroleum gas containers and flammable liquid tanks shall be 20 feet, and the minimum separation between a container and the centerline of the dike shall be ten feet.
(O.15,546, 15,860, 16,318, 16,521)

Secs. 46-280—46-315. Reserved.

ARTICLE IX. TENTS

Sec. 46-316. Reserved.

Editor's note—Ord. No. 16,521, § 1, adopted Dec. 8, 2025, repealed § 46-316, which pertained to distance and derived from Ord. No. 15,546.

Sec. 46-317. Reserved.

Editor's note—Ord. No. 16,521, § 1, adopted Dec. 8, 2025, repealed § 46-317, which pertained to permit requirements and derived from Ord. No. 15,546.

Sec. 46-318. Approval required.

Delete Exception #2 of section 105.5.51 of the International Fire Code and insert in lieu thereof the following new section:

105.5.51 Temporary membrane structures, special event structures and tent.

Exceptions:

2. Individual 10' × 10' tents arranged in a linear row no wider than 10'.

(O.16,318, 16,521)

Secs. 46-319—46-429. Reserved.

ARTICLE X. FIRE DEPARTMENT INSPECTIONS

Sec. 46-430. Fire department permit inspections; cost of initial inspection included in permit fee; fee for follow-up inspections.

Whenever the provisions of this chapter require the issuance of a permit and payment of a permit fee in connection with the operation or maintenance of any facility, the permit fee for such activity shall be deemed to include payment of all costs incurred by the fire department for the initial routine inspection that it conducts in connection with the issuance of said permit. Permit fees shall not be deemed to include payment of costs incurred by the fire department for follow-up inspections deemed necessary by the department to obtain or confirm compliance with the requirements of this chapter for the issuance of such permits. The fees for follow-up inspections shall be in the amounts and calculated as provided in the schedule of fees adopted by the city council by resolution. The fee for a follow-up inspection conducted to obtain or confirm compliance with a specification, regulation, permit condition, or fire department order, after a permittee is informed of a violation thereof, shall be

expressed in such schedule as hourly rates which are to be based on the average salary, benefit, and overhead costs to the city of the inspectors providing follow-up inspection services. Follow-up inspection services shall be charged on the basis of the number of hours of inspector time spent providing follow-up inspection services, multiplied by the applicable hourly rates in the schedule.
(O.15,546, 16,521)

Sec. 46-431. Fee for follow-up inspection to be charged to persons violating provisions of this chapter.

Any person who is notified of or charged with a violation of any provision of this chapter or of a fire department order shall pay a fee for follow-up inspections deemed necessary by the department to obtain or confirm compliance with such provision or order. The fees for follow-up inspections shall be in the amounts and calculated as provided in the schedule of fees adopted by the city council by resolution. The fee for a follow-up inspection conducted to obtain or confirm compliance with a specification, regulation, permit condition, or fire department order, after the responsible person is informed of a violation thereof, shall be expressed in such schedule as hourly rates which are to be based on the average salary, benefit, and overhead costs to the city of the inspectors providing follow-up inspection services. Follow-up inspection services shall be charged on the basis of the number of hours of inspector time spent providing follow-up inspection services, multiplied by the applicable hourly rates in the schedule.
(O.15,546, 16,521)

Secs. 46-432—46-440. Reserved.

ARTICLE XI. ACCESS AND IDENTIFICATION

Sec. 46-441. Outdoor venue access.

Insert new section 503.1.4 with the following language:

503.1.4 Outdoor Venue Access. A 10 ft. wide emergency access road designed to support a 36,000 lb. weight load shall be provided within 350-feet of all portions of an outdoor venue designed and used for public gathering events (e.g. soccer complex, park, skate park, sports fields, amphitheaters) to facilitate emergency vehicle access.

Exception: The fire code official is authorized to increase the dimension of 350 feet where emergency access roads cannot be installed because of the location on property, topography, waterway, nonnegotiable grades, or other similar conditions, frequency of use and an approved alternative means of emergency access is provided.
(O.15,860, 16,521)

Sec. 46-442. Fire access road clear height.

Delete section 503.2.1 and insert in lieu thereof the following new section:

503.2.1 Dimensions. Fire apparatus access roads shall have a minimum unobstructed width of not less than 20 feet (6096 mm), exclusive of shoulders, except for approved security gates in accordance with section 503.6, and an unobstructed vertical clearance of not less than 14 feet (4268 mm).
(O.15,546, 16,521)

Sec. 46-443. Premise identification.

Delete section 505.1 and insert in lieu thereof the following new section:

505.1 Address identification. New and existing buildings shall be provided with approved address identification. The address identification shall be legible and placed in a position that is visible from the street or road fronting the property. Address identification characters shall contrast with their background. Address numbers shall be Arabic numbers or alphabetical letters. Numbers shall not be spelled out. Numbers and letters shall be a minimum height and a minimum stroke width as dictated by Table 505.1. Where required by the fire code official, address identification shall be provided in additional approved locations to facilitate emergency response. Where access is by means of a private road and the building cannot be viewed from the public way, a

monument, pole, or other sign or means shall be used to identify the structure. Address identification shall be maintained.

Table 505.1
Minimum Height and Stroke Width[a, b]

Distance from the Centerline of the Public Way (ft.)		*Minimum Height (in.)*	*Minimum Stroke Width (in.)*
Less than 100		4	½
100	199	6	¾
200	299	8	1
For each additional 100		Increase 2	Increase ½

[a] Exterior suite identification, minimum height shall be 4 inches and stroke width shall be ½ inch.

[b] Interior suite identification, minimum height shall be 2 inches and stroke width shall be ¼ inch.

(O.15,546, 16,521)

Sec. 46-444. Fire and emergency vehicle access.

Insert new section 511 with the following language:

Section 511 Fire and Emergency Vehicle Lanes.

Section 511.1. General. Fire and emergency vehicle lanes shall be provided and maintained in accordance with section 511.1 through 511.6, and referred to as fire lanes in this ordinance.

Section 511.2 Purpose. The requirement that Fire Lanes be established in certain parking areas and the enforcement of restrictions on parking in such Fire Lanes established in this chapter are designed to ensure adequate access to commercial, office, multi-family, and other high density use facilities by fire-fighting and other emergency vehicles.

Section 511.3. Designation. The fire code official may designate fire lanes on private and public property as deemed necessary for the protection of life and property.

Section 511.4 Obstruction. No person shall park or place a vehicle or other obstruction in a designated fire lane that would prevent such fire lane from being immediately accessible to emergency vehicles, or deter or hinder emergency vehicles from gaining immediate access to the fire lane. A written request to the jurisdictional fire code official for temporary obstruction of a fire lane shall be submitted for approval.

Section 511.5 Signs and markings. Wherever a fire lane has been designated, the code official shall cause appropriate signs and markings to be placed identifying such fire lanes. Signs or markings shall be maintained in a clean and legible condition at all times and shall be replaced or repaired when necessary to provide adequate visibility. Fire lanes may be established or relocated at the time of plan review, pre-construction site inspection, and/or post-construction site inspection, as well as any time during the life of the occupancy as needed to provide and maintain emergency vehicle access. All designated fire lanes shall be clearly marked in the following manner:

(1) Vertical curbs shall be painted red on the top and side, extending the length of the designated fire lane. Rolled curbs or surfaces without curbs shall have a red six (6) inch wide stripe painted the length of the designated fire lane. One of the following identification lettering methods shall be utilized:

a. The words "NO PARKING — FIRE LANE (Except for Emergency Vehicles)" shall be stenciled with three (3) inch white letters and a minimum three-quarter (¾) inch stroke on the face of the curbing, or in the absence of vertical curbing, on the red stripe, and spaced at fifty (50) foot intervals or portions thereof, or

b. The pavement adjacent to the painted curbs shall be marked with minimum eighteen (18) inch in height block lettering with a minimum three (3) inch brush stroke reading: "NO PARKING — FIRE LANE."

Lettering shall be red and spaced at fifty (50) foot intervals or portions thereof.

(2) Signage identifying fire lanes shall conform to the following: Fire lane signs shall be 18 inches tall × 12 inches wide with red letters on a white reflective background to read "Fire Lane No Parking Except For Emergency Vehicles" or similar verbiage as approved by the fire code official. Fire lane signs shall be placed 2—4 feet from the edge of the Fire Lane. The bottom of fire lane signs shall be between five (5) and seven (7) feet from the ground. Intermediate fire lane signs shall be set every one hundred (100) feet in a continuous fire lane. The BEGINS sign shall mark the beginning of a fire lane and shall be mounted below the first fire lane sign. The ENDS sign shall mark the ending of a fire lane and shall be mounted below the last fire lane sign. The BEGINS and ENDS signage may be omitted by the fire code official due to the location of the fire lane. Signs may be placed on a building when approved by the fire code official.

Section 511.6 Maintenance. The owner, manager, or person in charge of any property upon which designated fire lanes have been established shall provide marking as required above and shall maintain fire lanes at their expense as often as needed to clearly identify the designated area as being a fire lane.

(O.15,546, 16,318, 16,521)

Sec. 46-445. Fire hydrants.

Delete section 507.5.1.1 and insert in lieu thereof the following new section:

507.5.1.1 Hydrant for fire department connections. Buildings equipped with a fire department connection installed in accordance with section 912 shall have a fire hydrant located on a fire access road within 100 feet (30 m) of the fire department connection as measured by an approved route around the exterior of the building.

Exceptions:

1. The distance shall be permitted to exceed 100 feet (30 m) where approved by the fire code official.
2. Buildings without standpipes and having a floor area less than 40,000 square feet.
3. Existing buildings without standpipes.

Delete section 507.5.5 and insert in lieu thereof the following new section:

507.5.5 Clear space around hydrants. A 5-foot (1524 mm) horizontal clear space shall be maintained around the circumference of fire hydrants, as measured from the center-point of the hydrant, except as otherwise required or approved.

Insert new section 507.5.7 with the following language:

507.5.7 Fire Hydrant Markers and Identification Color. When required by the fire code official, hydrant locations shall be identified by the installation of an approved reflective marker. Both public and private hydrants shall comply with and be painted to Local Water Utility specifications.

Insert new section 507.5.8 with the following language:

507.5.8 Fire Hydrant Installation. Fire hydrants shall be installed with the grade mark on the fire hydrant at the level of finished grade. The large diameter connection shall be installed such that the connection is oriented facing the fire department access road.

(O.15,546, 16,318, 16,521)

Secs. 46-446—46-455. Reserved.

ARTICLE XII. SPECIAL OCCUPANCY REQUIREMENTS

Sec. 46-456. Fire command centers.

Delete section 508.1 and insert in lieu thereof the following new section:

508.1 General. Where required by other sections of this code, Table 508.1, and in all buildings classified as high-rise buildings by the International Building Code, a fire command center for fire department operations shall be provided and shall comply with sections 508.1.1 through 508.1.7.

Insert new section Table 508.1 with the following language:

Table 508.1
Fire Command Center Thresholds

Occupancy	*Threshold Requiring a Fire Command Center*
Group A	5,000 occupants
Group E	100,000 gross square feet
Group I	50,000 gross square feet
Group R-1	Greater than 200 dwelling units or sleeping units
Any Occupancy	200,000 gross square feet

Delete section 508.1.3 and insert in lieu thereof the following new section:

508.1.3 Size. The fire command center shall be not less than 0.015 percent of the total building area of the facility served or 200 square feet (19 m^2) in area, whichever is greater, with a minimum dimension of 0.7 times the square root of the room area or 10 feet (3048 mm), whichever is greater.

Exception:

1. Where a fire command center is required by Table 508.1, the fire command center shall have a minimum size of 96 square feet (9 m^2) with a minimum dimension of 8 feet (2438 mm) only where approved by the fire code official.
2. Where a fire command center is required by Table 508.1 and the building is less than 500,000 gross square feet, the fire command center shall be permitted to be a shared space (such as a fire pump room or fire riser room) where approved by the fire code official.

(O.15,546, 16,318, 16,521)

Sec. 46-457. Emergency power.

Insert new section 1201.4 with the following language:

Section 1201.4 Shutdown of Energy Systems. In addition to the requirements of NFPA 110 for a remote manual stop, a switch of an approved type shall be provided to disable the power source. The switch shall be provided at an approved location.

Insert new section 1201.5 with the following language:

Section 1201.5 Secondary Power Supply Signs. Main electrical disconnects and main breaker panels supplied by the generator shall be provided with approved signs. Additionally, doors accessing power systems shall be provided with approved signs. Approved signs shall contain the word CAUTION in black letters at least 2 inches (50 mm) high on a yellow background. Such warning signs shall be placed so as to be readily discernible.

(O.15,546, 15,860, 16,521)

Sec. 46-458. Reserved.

Editor's note—Ord. No. 15,860, § 1, adopted Feb. 10, 2020, repealed § 46-458, which pertained to fire doors and derived from Ord. No. 15,546.

Secs. 46-459—46-468. Reserved.

ARTICLE XIII. FIRE PROTECTION SYSTEMS

Sec. 46-469. Automatic fire sprinkler requirements.

Delete section 903.2.1.1 and insert in lieu thereof the following new section:

903.2.1.1 Group A-1. An automatic sprinkler system shall be provided throughout stories

containing Group A-1 occupancies and throughout all stories from the Group A-1 occupancy to and including the levels of exit discharge serving that occupancy where one of the following conditions exists:

1. The fire area exceeds 6,000 square feet (557.5 m^2).
2. The fire area has an occupant load of 300 or more.
3. The fire area is located on a floor other than a level of exit discharge serving such occupancies.
4. The fire area contains a multiple-theater complex.

Delete section 903.2.1.2 and insert in lieu thereof the following new section:

903.2.1.2 Group A-2. An automatic sprinkler system shall be provided throughout stories containing Group A-2 occupancies and throughout all stories from the Group A-2 occupancy to and including the levels of exit discharge serving that occupancy where one of the following conditions exists:

1. The fire area exceeds 1,500 square feet (139 m^2).
2. The fire area has an occupant load of 50 or more.
3. The fire area is located on a floor other than a level of exit discharge serving such occupancies.

Delete section 903.2.1.3 and insert in lieu thereof the following new section:

903.2.1.3 Group A-3. An automatic sprinkler system shall be provided throughout stories containing Group A-3 occupancies and throughout all stories from the Group A-3 occupancy to and including the levels of exit discharge serving that occupancy where one of the following conditions exists:

1. The fire area exceeds 6,000 square feet (557.5 m^2).
2. The fire area has an occupant load of 300 or more.
3. The fire area is located on a floor other than a level of exit discharge serving such occupancies.

Delete section 903.2.1.4 and insert in lieu thereof the following new section:

903.2.1.4 Group A-4. An automatic sprinkler system shall be provided throughout stories containing Group A-4 occupancies and throughout all stories from the Group A-4 occupancy to and including the levels of exit discharge serving that occupancy where one of the following conditions exists:

1. The fire area exceeds 6,000 square feet (557.5 m^2).
2. The fire area has an occupant load of 300 or more.
3. The fire area is located on a floor other than a level of exit discharge serving such occupancies.

Delete section 903.2.2 and insert in lieu thereof the following new section:

903.2.2 Group B. An automatic sprinkler system shall be provided throughout buildings containing a Group B occupancy where one of the following conditions exists:

1. A Group B fire area exceeds 12,000 square feet (557.5 m^2).
2. A Group B fire area is located more than three stories above grade plane.
3. The combined area of all Group B fire areas on all floors, including any mezzanines, exceeds 24,000 square feet (1115 m^2).
4. As required by 903.2.2.1 & 903.2.2.2

Delete section 903.2.3 and insert in lieu thereof the following new section:

903.2.3 Group E. An automatic sprinkler system shall be provided throughout stories containing Group E occupancies and throughout all stories from the Group E occupancy to and including the levels of exit discharge serving that occupancy where one of the following conditions exists:

1. The fire area exceeds 1,500 square feet (139 m^2).

2. The fire area has an occupant load of 50 or more.
3. The fire area is located on a floor other than a level of exit discharge serving such occupancies.

Delete section 903.2.4 and insert in lieu thereof the following new section:

903.2.4 Group F-1. An automatic sprinkler system shall be provided throughout all buildings containing a Group F-1 occupancy where one of the following conditions exists:

1. A Group F-1 fire area exceeds 6,000 square feet (557.5 m^2).
2. A Group F-1 fire area is located more than three stories above grade plane.
3. The combined area of all Group F-1 fire areas on all floors, including any mezzanines, exceeds 12,000 square feet (1115 m^2).
4. A Group F-1 occupancy is used to manufacture lithium-ion or lithium metal batteries.
5. A Group F-1 occupancy is used to manufacture vehicles, energy storage systems, or equipment containing lithium-ion or lithium metal batteries where the batteries are installed as part of the manufacturing process.

Delete section 903.2.7 and insert in lieu thereof the following new section:

903.2.7 Group M. An automatic sprinkler system shall be provided throughout buildings containing a Group M occupancy where one of the following conditions exists:

1. A Group M fire area exceeds 6,000 square feet (557.5 m^2).
2. A Group M fire area is located more than three stories above grade plane.
3. The combined area of all Group M fire areas on all floors, including any mezzanines, exceeds 12,000 square feet (1115 m^2).

Delete section 903.2.9 and insert in lieu thereof the following new section:

903.2.9 Group S-1. An automatic sprinkler system shall be provided throughout all buildings containing a Group S-1 occupancy where one of the following conditions exists:

1. A Group S-1 fire area exceeds 6,000 square feet (557.5 m^2).
2. A Group S-1 fire area is located more than three stories above grade plane.
3. The combined area of all Group S-1 fire areas on all floors, including any mezzanines, exceeds 12,000 square feet (1115 m^2).
4. A Group S-1 fire area used for the storage of commercial motor vehicles where the fire area exceeds 5,000 square feet (464 m^2).
5. A Group S-1 fire area used for the storage of lithium-ion or lithium metal powered vehicles where the fire area exceeds 500 square feet (46.4 m^2).

Delete section 903.2.9.1 and insert in lieu thereof the following new section:

903.2.9.1 Repair garages. An automatic sprinkler system shall be provided throughout all buildings used as repair garages in accordance with section 406.8 of the International Building Code, as shown:

1. Buildings not more than one story above grade plane, with a fire area containing a repair garage exceeding 3,500 square feet (325 m^2).
2. Buildings with repair garages servicing vehicles parked in basements.
3. A Group S-1 fire area used for the repair of commercial motor vehicles where the fire area exceeds 3,500 square feet (325 m^2).
4. A Group S-1 fire area used for the storage of lithium-ion or lithium metal powered vehicles where the fire area exceeds 500 square feet (46.4 m^2)

Delete section 903.2.11.1.3 and insert in lieu thereof the following new section:

903.2.11.1.3 Basements. Where any portion of a basement is located more than 75 feet (22,860 mm) from openings required by section 903.2.11.1, the basement shall be equipped throughout with an approved automatic sprinkler system.

Delete section 903.3.1.2 and insert in lieu thereof the following new section:

903.3.1.2 NFPA 13R sprinkler systems. Automatic sprinkler systems in Group R occupancies shall be installed throughout in accordance with NFPA 13, unless allowed to be sprinklered in accordance with NFPA 13D by the International Building Code.

Delete section 903.4.3 and insert in lieu thereof the following new section:

903.4.3 Alarms. An approved weather proof audible device suitable for outdoor use with 110 candela visual signal shall be connected to every automatic sprinkler system. The audible device shall be a horn style device that produces a "tri-tone" signal in accordance with NFPA 72. Such sprinkler water-flow alarm devices shall be activated by water flow equivalent to the flow of a single sprinkler of the smallest orifice size installed in the system. A weather-proof horn-strobe shall be installed on a separate Notification Appliance Circuit (NAC) or shall be installed as an addressable device that is able to function as if the alarm is on a separate NAC. This alarm shall be included in any battery and voltage drop calculations. This device shall only operate on active water flow from the sprinkler system, shall not be able to be silenced, and shall continue to be active until water flow has stopped and the fire alarm panel has been reset. The alarm device(s) shall be provided on the exterior of the building in an approved location adjacent to each fire department connection. Where a fire alarm system is installed, actuation of the automatic sprinkler system shall actuate the building fire alarm system.

(O.15,546, 15,860, 16,318, 16,521)

Sec. 46-470. Standpipe requirements.

Insert new section 905.3.8 with the following language:

905.3.8 Building Footprint and Access. Where the most remote portion of a floor or story is more than 400 feet from a hose connection or fire department access road the fire code official is authorized to require standpipes to be provided in approved locations. Class I manual standpipes shall be allowed.

(O.15,546, 16,521)

Sec. 46-471. Fire alarm requirements.

Insert new section 907.1.4 with the following language:

907.1.4 FACP (Fire Alarm Control Panels). Each building shall have no more than 1 FACP. Installation of fire alarm panel shall be not exceed six feet in height measured from the floor to the top of the unit.

Exception: Suppression system releasing panels are not required to meet the height requirement or the limitation in the number of panels.

(O.15,546, 16,333, 16,521)

Sec. 46-472. Smoke and heat vent requirements.

Delete section 910.2.1 and insert in lieu thereof the following new section:

910.2.1 Group F-1 or S-1. Smoke and heat vents installed in accordance with section 910.3 or a mechanical smoke removal system installed in accordance with section 910.4 shall be installed in buildings and portions thereof used as a Group F-1 or S-1 occupancy having more than 30,000 square feet (2787 m^2) of undivided area. In occupied portions of a building equipped throughout with an automatic sprinkler system in accordance with 903.3.1.1, where the upper surface of the story is not a roof assembly, a mechanical smoke removal system in accordance with section 910.4 shall be installed.

Exception: Group S-1 aircraft repair hangars.

(O.15,546, 16,521)

Sec. 46-473. Fire pump requirements.

Delete section 914.3.1.2 and insert in lieu thereof the following new section:

914.3.1.2 Water supply to required fire pumps. Required fire pumps shall be supplied by connections to a minimum of two water mains located in different streets. Separate supply piping shall be provided between each connection to the water main and the pumps. Each connection and the supply piping between the connection and the pumps shall be sized to supply the flow and pressure required for the pumps to operate.

Exception: Two connections to the same main shall be permitted provided the main is valved such that an interruption can be isolated so that the water supply will continue without interruption through at least one of the connections.

(O.15,546, 16,521)

Sec. 46-474. High-rise buildings automatic sprinkler retrofit requirement.

Insert new exception number 5 in section M102.1 with the following language:

M102.1 High-rise buildings.

Exceptions:

5. Buildings comprised of individually-owned dwelling units (as of November 1, 2020), as defined in the International Fire Code.

(O.15,939, 16,521)

Sec. 46-475. Initiating device identification.

Delete exceptions #1, 2, and 4 of section 907.6.3.

(O.16,318, 16,521)

Sec. 46-476. Monitoring.

Delete section 907.6.6 and insert in lieu thereof the following new section:

907.6.6 Monitoring. Fire alarm systems required by this chapter or by the International Building Code shall be monitored by a central station approved and listed under UL 827 in accordance with NFPA 72. Information required to be transmitted to the central station shall be as set forth in section 907.6.3

Exception:

Monitoring station is not required for:

1. Automatic sprinkler and fire alarm systems in one- and two-family dwellings.

(O.16,318, 16,521)

Secs. 46-477—46-483. Reserved.

ARTICLE XIV. EGRESS

Sec. 46-484. Reserved.

Editor's note—Ord. No. 15,860, § 1, adopted Feb. 10, 2020, repealed § 46-484, which pertained to exit illumination and derived from Ord. No. 15,546.

Sec. 46-485. Reserved.

Editor's note—Ord. No. 16,521, § 1, adopted Dec. 8, 2025, repealed § 46-485, which pertained to walking surface and derived from Ord. No. 15,546; Ord. No. 15,860; Ord. No. 16,318.

Sec. 46-486. Reserved.

Editor's note—Ord. No. 15,860, § 1, adopted Feb. 10, 2020, repealed § 46-486, which pertained to locks and derived from Ord. No. 15,546.

Sec. 46-487. Reserved.

Editor's note—Ord. No. 16,318, § 1, adopted Jan. 8, 2024, repealed § 46-487, which pertained to exit signs and derived from Ord. No. 15,546; Ord. No. 15,860.

Sec. 46-488. Handrails.

Insert new section 1014.5 item #6 with the following language:

6. Handrails within a dwelling unit or serving an individual dwelling unit of groups R-2 and R-3 shall be permitted to be interrupted at one location in a straight stair when the rail terminates into a wall or ledge and is offset and immediately continues.

(O.15,860, 16,521)

Sec. 46-489. Reserved.

Editor's note—Ord. No. 16,318, § 1, adopted Jan. 8, 2024, repealed § 46-489, which pertained to guards and derived from Ord. No. 15,860.

Sec. 46-490. Reserved.

Editor's note—Ord. No. 16,318, § 1, adopted Jan. 8, 2024, repealed § 46-490, which pertained to emergency escape and derived from Ord. No. 15,860.

Secs. 46-491—46-497. Reserved.

ARTICLE XV. FUEL FIRED APPLIANCES

Sec. 46-498. Fuel fired appliances.

Insert new section 1108.1 with the following language:

1108.1 Protection of Fuel Fired Appliances. Where required or upon notification from the fire code official an existing building or tenant space containing a fuel fired appliance(s) shall be protected with 1 hour rated construction enclosure or a limited area sprinkler system complying with section 903.3.8.

Exception: Buildings protected by an approved automatic fire sprinkler system complying with section 903.3.1.1 or 903.3.1.2.

Insert new section 1108.2 with the following language:

1108.2 CSST Bonding Requirements in Rental Dwellings. All rental dwellings shall be bonded in accordance with sections NFPA 54, unless deemed technically infeasible by the fire code official.

Insert new section 1108.3 with the following language:

1108.3 CSST Bonding Requirements for Alterations, Repairs, or Additions. For other than rental dwelling units, where alterations, repairs or additions requiring a permit to occur, CSST shall be bonded in accordance with NFPA 54, unless deemed technically infeasible by the fire code official.

(O.15,546, 15,860, 16,318, 16,521)

Secs. 46-499—46-509. Reserved.

ARTICLE XVI. SPECULATIVE BUILDINGS

Sec. 46-510. High-piled storage.

Insert new section 3202.2 with the following language:

3202.2 Definitions.

SPECULATIVE BUILDING. A Group S, F, or M occupancy having an interior clear height greater than 12 feet (3657 mm) where high-piled storage may accrue and the client leasing or the occupant owner does not know the commodity that will be stored or the method of storage.

Insert new section 3206.2.2 with the following language:

3206.2.2 Speculative building. Group S, F, and M speculative buildings that have an interior clear height greater than 12 feet where high piled storage may accrue shall comply with this chapter.

Insert new section 3206.4.2 with the following language:

(1) *3206.4.2 Sprinkler design.*

a. *3206.4.2.1 General.* The design of automatic sprinkler systems for the protection of Group F, H, M, or S occupancies containing high-piled storage or high-challenge commodities over an area equal to or greater than 2,500 ft.^{2} (232 m^2) and designed for the protection of hazardous materials stored more than one pallet high in Group F, H, M, or S occupancies, shall be in accordance with this section. This section does not apply to miscellaneous storage within the scope of NFPA 13.

b. *3206.4.2.2 Requirements for all plan submittals.* See sections 903.1.9 and 3201.3 for plan submittal requirements.

c. *3206.4.2.3 Minimum design requirements for speculative warehouses.* The design of the automatic sprinkler system for speculative warehouses

shall be based on storage of a cartoned Class A non-expanded plastic to the available storage height. The storage height shall be determined by subtracting 48 inches as measured from the highest point of the roof for ESFR and 30 inches for area density applications.

d. *3206.4.2.4 Minimum requirements for client leased or occupant-owned warehouses.*

1. The design of an automatic sprinkler system for client leased or occupant owned buildings containing high piled storage shall be based on the requirements of NFPA 13. The responsible Fire Protection Contractor shall perform a survey of the building to determine commodity classification, storage configuration, building height, and other information related to the development of an appropriate sprinkler system design. The Contractor shall also make reasonable efforts to meet with the building owner or operator to understand seasonal or customer related fluctuations to the stored commodities, storage height, and configuration.

2. The sprinkler design shall be based on the most demanding requirements determined through the on-site survey and discussions with the building owner or operator. Technical Report shall clearly define the basis for determining the commodity and sprinkler design selection, along with how the commodities will be isolated or separated, and the referenced design document(s), including NFPA 13 or the current applicable Factory Mutual Data Sheets. If a specific fire test is used as the basis of design, a copy of the fire test report shall be provided at the time of plan review.

e. *3206.4.2.5 Required information at plan submittal.* All plans, hydraulic calculations and technical reports shall be submitted with the plan submittal form. The individual submitting the design package shall ensure that all of the required information requested on the plan submittal form is included.

f. *3206.4.2.6 Minimum plan information requirements.* In addition to the requirements of NFPA 13, the following information shall be included in the plans or technical report.

1. *3206.4.2.6.1 Classes I through IV and Group A plastic commodities.*

i. An owner's certificate in accordance with NFPA 13. The design criteria, e.g., NFPA 13, Factory Mutual Data Sheet, or a specific fire test report.

ii. A Water Supply Flow & Pressure Test Report performed within 90 days of the plan submittal.

iii. The type of design, e.g., Control Mode Density/ Design Area Method; Specific Application Control Mode Method; Suppression Mode Method, including appropriate code references.

iv. A description of the stored commodities and how the commodity classification was determined.

v. A layout of the proposed storage arrangement. If the storage is in racks, a plan and elevation detail

illustrating rack heights, flue dimensions, and arrangement. This detail is not required for speculation warehouses.

vi. The aisle dimensions between each storage array.

vii. If a high challenge commodity is separated using fire-resistive construction, the boundary of the fire-resistive construction shall be illustrated.

viii. A data sheet for the backflow preventer. If a data sheet is not available, the design professional shall include a statement addressing the minimum required pressure loss.

ix. A data sheet for each installed automatic sprinkler.

x. A data sheet for each pipe hanger used to hang or support the sprinkler piping.

xi. If a fire pump will be installed or used, the manufacturer's factory test curve shall be included in the submittal.

xii. A cross-section view illustrating obstructions to the ceiling sprinklers, e.g., lights, structural members, cable trays, electrical bus ducts, and HVAC ductwork.

2. *3206.4.2.6.2 Hazardous materials.* In addition to the requirements of this section, the following information shall be included in a hazardous materials technical report:

i. A hazardous materials inventory statement.

ii. For flammable & combustible liquids, an analysis of the miscibility of Class I liquids, the size and type of the packaging, the packaging materials of construction, and if the containers have a pressure relieving mechanism.

iii. For Level 2 or 3 aerosols, a statement indicating that the aerosols are cartoned or uncartoned.

g. *3206.4.2.7 Identification of sprinkler system capabilities and limitations.* A label shall be permanently installed at or adjacent to each sprinkler riser. When a building contains more than four risers, the sign shall be located at an approved location inside the building. The minimum sign dimension is 6-inches (152 mm) high by 4-inches (101 mm) wide. The sign shall specify the capabilities and limitations of the automatic sprinkler system. The sign shall include the following information:

1. The design base or basis, including the edition used.

2. A statement indicating if the sprinkler design is control mode density area method, control mode specific application, suppression mode, or any combination thereof.

3. When used, all of the storage conditions stipulated NFPA 13 for Special Designs.

4. The maximum storage height.

5. The minimum required aisle width.

6. If storage is in racks, the maximum rack width and minimum transverse and longitudinal flue widths.

7. Storage Capabilities: Commodities designed to be protected by the automatic sprinkler system.
8. Limits on storage heights of idle wood and plastic storage.
9. Limits on storage heights of miscellaneous Group A plastic, tire, and rolled paper storage.
10. Locations where in-rack sprinklers are required.
11. Locations where horizontal and/or vertical barriers are required.
12. Information explaining the manufacturer, sprinkler identification number, k-factor, and operating temperature of the overhead sprinklers protecting the high-piled storage.
13. Fire Protection Contractor contact information.

(2) The following example illustrates a suggested label or sign:

Automatic Sprinkler System
Capabilities & Limitations

Stored Commodity	Class I water miscible flammable liquids in 1 & 5 gallon polyethylene containers in fiberboard cartons
Design Documents	NFPA 13, 2013 edition & NFPA 30
Design Type	Control Mode, Density/ Area Method
Max. Storage Height	25 feet
Min. Aisle Width	8 feet
Max. Rack Width	9 feet
Flue Dimensions	Longitudinal: Min. 6 inches Transverse: Min. 3 inches
System Capabilities	Class I-IV commodities, stored commodity, solid pile or palletized Group A plastics to 12 feet; rack storage of Group A plastics to 25 feet.
Idle Pallets	6 feet maximum storage height
Tire Storage	5 feet maximum storage height
Rolled Paper Storage	5 feet maximum storage height
In-rack sprinklers	In-rack sprinklers are required at each of 3 rack tiers containing the stored commodity. In-rack sprinklers are Tyco/ Central FS-B, 17/32" orifice, QR 155°F element, SIN TY0041
Horizontal Barriers	Required at each rack tier containing the stored commodity.
Ceiling Sprinkler	Tyco ELO-231B, ¾" orifice, SR 286°F element, upright, SIN TY0030
FP Contractor	ABC Sprinkler Co. Designer: John Smith

(O.15,546, 15,860, 16,318, 16,521)

Secs. 46-511—46-519. Reserved.

ARTICLE XVII. CONSTRUCTION AND REMODELING

Sec. 46-520. Purpose.

Delete section 3301.2 and insert in lieu thereof the following new section:

3301.2 Purpose. This chapter prescribes minimum safeguards for construction, alteration, and demolition operations to provide reasonable safety to life and property from fire and other emergencies during such operations.

(O.15,546, 16,521)

Sec. 46-521. Access.

Insert new section 3307.1.4 with the following language:

Section 3307.1.4 Construction Site Access. Approved fire apparatus access roads shall be provided for every facility, building, or portion of a building as soon as construction commences. The fire apparatus access road shall comply with the requirements of section 503.2 and this section and shall extend to within

100 feet (30,480 mm) of all portions of the facility and all portions of the exterior walls of the first story of the building as measured by an approved route around the exterior of the building or facility.

Exception: The fire code official is authorized to increase the dimension of 100 feet (30,480 mm) where:

(1) The building is equipped throughout with an approved automatic sprinkler system that is fully functional and installed in accordance with section 903.3.1.1, 903.3.1.2, or 903.3.1.3.

(2) Fire apparatus access roads cannot be installed because of location on property, topography, waterways, nonnegotiable grades or other similar conditions, and an approved alternative means of fire protection is provided.

(O.15,546, 16,318, 16,521)

Sec. 46-522. Stairways.

Delete section 3307.1.2 and insert in lieu thereof the following new section:

3307.1.2 Stairways required. Where building construction exceeds 30-feet (9,144 mm) in height above the lowest level of fire department vehicle access, a temporary or permanent stairway shall be provided. As construction progresses, such stairway shall be extended to within one floor of the highest point of construction having secured decking or flooring.

(O.15,860, 16,318, 16,521)

Sec. 46-523. Standpipes.

Delete section 3307.5 and insert in lieu thereof the following new section:

3307.5 Where required. In buildings required to have standpipes by section 905.3.1, not less than one standpipe shall be provided for use during construction. Such standpipe shall be installed prior to construction exceeding 30-feet (9,144 mm) in height above the lowest level of fire department vehicle access. Such standpipe shall be provided with fire department hose connections at approved locations complying with section 3311.1. As construction progresses, such standpipes shall be extended to within one floor of the highest of construction having secured decking or flooring.

(O.15,860, 16,318, 16,521)

Secs. 46-524—46-529. Reserved.

ARTICLE XVIII. SPECIAL EVENTS

DIVISION 1. GENERAL

Sec. 46-530. Scope.

Special events including trade shows and exhibitions, outdoor assembly events, outdoors mazes, special amusement buildings, and special scaffolding structures shall comply with this chapter and section 1032. Temporary indoor vehicle displays and vehicle competition or demonstrations shall comply with this chapter and section 314.

(O.15,546, 16,318, 16,521)

Sec. 46-531. Site plans.

A detailed site plan shall be submitted to the fire code official with each permit application for approval.

(1) *Outdoor events:* The permit application and site plan shall be submitted a minimum of 30 business days prior to the event. Site plans shall include, but not be limited to:

a. The means of egress.

b. Location and width of exits and aisles.

c. Location of exit signs.

d. Location of fencing or means used to confine attendees.

e. Total square footage of enclosed space.

f. Location and arrangement of all tents, booths, or cooking equipment.

g. Locations of fire apparatus access roads.

h. Location of fire protection equipment.

i. Type and location of heating and electrical equipment where applicable.

j. Location of temporary staffed water stations and permanent water fountains.

(2) *Trade shows and exhibitions:* The permit application and site plan shall be submitted a minimum of 30 business days prior to the event. Site plans shall include, but not be limited to:

a. The means of egress.

b. Location and width of exits and aisles.

c. Location of exit signs.

d. Total square footage of space.

e. Location and arrangement of all booths and cooking equipment.

f. Location of all fire protection equipment.

g. Type and location of heating and electrical equipment where applicable.

h. Location of covered or multi-level exhibits or booths.

(3) *Mazes:* The permit application and site plan shall be submitted a minimum of 30 business days prior to the event. Site plans shall include, but not be limited to:

a. Means of egress.

b. Location and width of exits and aisles.

c. Location of exit signs.

d. Total square footage of space.

e. Location and arrangement of all booths and cooking equipment.

f. Location of all fire protection equipment.

g. Location of means to confine attendees.

h. Locations of fire apparatus access roads.

i. Type and location of heating and electrical equipment where applicable.

j. Locations of structures.

At time of permit application, the event coordinator shall submit a letter from the property owner authorizing the use of the site, the address of the site, dates and hours of operation, and names and 24-hour phone numbers of at least two principals.

(4) *Temporary indoor vehicle displays:* The permit application and site plan shall be submitted a minimum of 10 business days prior to the display of electric, liquid- or gas-fueled vehicles, boats or other motor craft. Floor plans shall include, but not be limited to:

a. The means of egress.

b. Location and width of exits and aisles.

c. Location of exit signs.

d. Total square footage of space.

e. Location and arrangement of all booths and cooking equipment.

f. Location of all fire protection equipment.

g. Type and location of heating and electrical equipment where applicable.

h. Location and size of exhibits and booths.

i. Location of structures.

Exception: Auto dealerships.

(5) *Vehicle competition or demonstration:* The permit application and site plan shall be submitted a minimum of 10 business days prior to the competition or demonstration of electric, liquid- or gas-

fueled vehicles, boats or other motor craft. A floor plan shall include, but not be limited to:

a. The means of egress.

b. Location and width of exits and aisles.

c. Location of exit signs.

d. Total square footage of space.

e. Location and arrangement of all booths and cooking equipment.

f. Location of all fire protection equipment.

g. Type and location of heating and electrical equipment where applicable.

h. Location and size of exhibits and booths.

i. Location of structures.

j. Location of fire apparatus access roads where applicable.

(O.15,546, 16,521)

DIVISION 2. GENERAL REQUIREMENTS

Sec. 46-532. Access for firefighting and medical services.

Approved vehicle access for fire fighting and medical services shall be provided in accordance with sections 503 of the International Fire Code and 46-444 of this Code.
(O.15,546, 16,318, 16,521)

Sec. 46-533. Combustible storage.

Combustible materials stored at special events shall be stored in approved locations and containers.
(O.15,546)

Sec. 46-534. Crowd managers.

Crowd managers shall be provided where the fire code official determines that an indoor or outdoor gathering warrants crowd control. Crowd managers shall be in accordance with section 403.11.3.1.
(O.15,546, 16,318, 16,521)

Sec. 46-535. Decorative materials and furnishings.

Curtains, drapes, and decorations including, but not limited to drapes, signs, banners, acoustical materials, cotton, hay, fabric, paper, straw, moss, split bamboo, and wood chips, shall be flame resistant as demonstrated by testing in accordance with NFPA 701, or provide documentation of flame retardancy. Field flame test shall be in accordance with section 807. Materials that cannot be treated for flame retardancy shall not be used unless approved by the fire code official. This includes but is not limited to oilcloth, tarpaper, nylon, plastic cloth, and other plastic materials.
(O.15,546, 16,318, 16,521)

Sec. 46-536. Fire protection equipment clearance.

Clearance around all fire protection equipment shall be in accordance with section 901.4.7.
(O.15,546, 16,521)

Sec. 46-537. Fire extinguishers.

Fire extinguishers shall be in accordance with section 906 and NFPA 10.
(O.15,546, 16,521)

Sec. 46-538. Fire watch.

Fire watch shall be in accordance with section 403.11.1.
(O.15,546, 16,318, 16,521)

Sec. 46-539. Fireworks, pyrotechnics.

Fireworks and pyrotechnics shall comply with chapter 56 [of the International Fire Code].
(O.15,546, 16,521)

Sec. 46-540. Housekeeping.

The special event area and related areas shall be kept free from combustible debris at all times.
(O.15,546)

Sec. 46-541. LP-gas heaters.

Fuel supplies for liquefied-petroleum gas-fired heaters shall comply with chapter 61 of the International Fire Code.
(O.15,546, 16,521)

Sec. 46-542. Open flame devices.

Open flame devices shall comply with section 308.
(O.15,546, 16,521)

Sec. 46-543. Waste disposal.

Combustible debris shall not be accumulated at special events. Combustible debris, rubbish, and waste material shall be removed from special events at the end of each shift of work. Combustible debris, rubbish, and waste material shall not be disposed of by burning on the site unless approved.
(O.15,546, 16,521)

DIVISION 3. TRADE SHOWS AND EXHIBITIONS

Sec. 46-544. General.

Trade shows and exhibitions conducted within any occupancy shall comply with chapter 31 [of the International Fire Code].
(O.15,546, 16,318, 16,521)

Sec. 46-545. Vehicles.

Liquid- and gas-fueled and electric vehicles, boats, or other motor-craft and equipment used for display, competition, or demonstration within a building shall be in accordance with section 314.
(O.15,546, 16,521)

Sec. 46-546. Means of egress.

Means of egress shall comply with this section and the requirements of chapter 10.

(1) *Travel distance.* The maximum travel distance from any point in an exhibit to an exit access aisle shall not exceed 50 feet (15240 mm).

(2) *Aisles.*

a. *Aisle width.* Minimum aisle width inside a trade show or exhibition shall comply with the following:

b. *Square footage of trade show or exhibition minimum aisle width:*

Greater than 15,000 square feet (1393 m^2)	10 feet (3048 mm)
5,000 square feet (465 square meters) to 15,000 square feet (1393 m^2)	8 feet (2438 mm)
Less than 5,000 square feet (465 m^2)	6 feet (1829 mm)

(3) *Obstructions.* Aisles shall be kept clear of all obstructions, including but not limited to, fixtures and displays of goods for sale, chairs, tables, product, displays, vehicles, and trailer tongues.

(4) *Exit signs.* Exit signs shall be visible from all locations in the occupancy.
(O.15,546, 16,521)

Sec. 46-547. Exhibit construction and materials.

The materials used for an exhibit shall comply with section 3104 and chapter 8:

(1) Materials shall be one of the following:

a. Noncombustible or limited-combustible materials.

b. Wood that is greater than ¼-inch (6 mm) nominal thickness.

c. Wood ¼-inch (6 mm) nominal thickness or less that is pressure-treated fire-retardant wood meeting the requirements of NFPA 703, Standard for Fire Retardant Impregnated Wood and Fire Retardant Coatings for Building Materials. The product shall be marked or labeled by the manufacturer. The product shall not be painted or similarly modified until the material has been inspected and the marking or labeling verified, or provide documentation acceptable to the fire code official.

(2) Flame retardant materials. Materials shall comply with chapter 8.

(3) Wall and ceiling coverings. Textile wall coverings, such as carpeting and similar products used as wall or ceiling finishes, shall comply with chapter 8.

(4) Other Materials. Materials not listed above shall be limited to those that comply with chapter 8. Plastics used in trade shows and exhibitions with an occupant load of 300 or more shall be Class A or Class B. Plastics used in trade shows and exhibitions with an occupant load of less than 300 shall be Class A, Class B, or Class C.

(O.15,546, 16,318, 16,521)

Sec. 46-548. Combustible materials storage.

(a) *Quantity.* Combustible materials shall be limited to a one-day supply.

(b) *Location.* Storage of combustible materials behind exhibits, booths, or tents is prohibited. Combustible materials, including but not limited to wood crates, paper, and cardboard boxes, shall be stored outside the building in an approved area or in a storeroom having a fire-resistance rating of at least one hour and protected by an approved automatic fire-extinguishing system.
(O.15,546, 16,521)

Sec. 46-549. Covered exhibits and booths.

Fire Protection—Automatic sprinkler systems. An approved sprinkler system shall be provided in covered exhibits and booths exceeding 300 square feet (2787 m^2). Each level of multi-level exhibit booths shall be protected throughout, including the uppermost level where the uppermost level is covered with a ceiling.
(O.15,546)

Sec. 46-550. Multi-level booths.

Construction documents for all multi-level exhibits shall be approved and stamped by a licensed structural engineer or architect and shall be submitted with the permit application. This includes any exhibit where a live load is proposed above the exhibit area floor level, regardless of the accessibility of the area to the public. Upper levels of multi-level booths with an occupant load greater than ten persons shall have at least two remote exits.
(O.15,546)

Sec. 46-551. Hazardous materials.

Hazardous materials shall comply with this section and chapters 50 through 67.

(1) Specific prohibitions. The following hazardous materials shall not be stored, handled, or used in trade shows and exhibitions:

a. Division 1.1, 1.2, 1.3, and 1.5 explosives as classified by the U.S. Department of Transportation.

b. Detonable, Class I, and Class II organic peroxides.

c. Class I-A flammable liquids.

d. Class 4 and Class 3 oxidizers.

e. Class 4 and Class 3 (unstable) reactive materials.

f. Class 3 water-reactive materials.

g. Pyrophoric materials.

h. Highly toxic materials.

i. Toxic gases.

j. Fueling or defueling of flammable or combustible that are stored or used as liquids, cryogenics, or compressed gases.

(O.15,546, 16,521)

Sec. 46-552. Demonstration cooking and warming equipment or devices.

(a) General. Cooking and warming devices for demonstration purposes only shall be in accordance with section 4104

(b) Public Isolation. Equipment and devices shall be isolated from the public by not less than 4 feet (1219 mm) or by a noncombustible 3-sided barrier between the equipment and devices and the public.

(c) Protection. Single-well cooking equipment using combustible oils or solids shall meet the following:

(1) A noncombustible lid shall be immediately available. The lid shall be of sufficient size to cover the cooking well completely.

(2) The cooking surface shall not exceed 288 square inches (1858 cm^2).

(3) The equipment shall be placed on a noncombustible surface.

(4) The equipment shall be separated from each other by a horizontal distance of not less than 2 feet (609 mm).

(d) Cooking equipment shall be separated from combustible materials by a horizontal distance of at least 2 feet (609 mm).

(e) Butane. Butane for cooking equipment shall be limited to one 10 oz cylinder and one spare in storage, of the same size, per appliance. Storage location shall be approved by the fire code official.

(1) Portable butane-fueled appliances. Portable butane-fueled appliances are allowed in restaurants and in attended commercial food catering operations where fueled by not more than two 10 oz (296 ml) LP-gas capacity, nonrefillable butane containers that have a water capacity not exceeding 1.08 lb (0.489 kg) per container. The containers shall be directly connected to the appliance, and manifolding of containers is not permitted. Storage of cylinders is limited to 24 containers, with an additional 24 permitted where protected by a 2-hour fire-resistance-rated barrier.

(O.15,546, 16,521)

DIVISION 4. OUTDOOR ASSEMBLY EVENTS

Sec. 46-553. General.

Outdoor assembly events shall be in accordance with section 3107 and chapter 10 of the International Fire Code.
(O.15,546, 16,318, 16,521)

Sec. 46-554. Occupant load.

The fire code official shall establish an occupant load for the event site.
(O.15,546)

Sec. 46-555. Exits.

Exits shall comply with chapter 10 of the International Fire Code and be as remote from each other as practical and shall be provided as follows:

Occupant Load	*Minimum Number of Exits*
1 to 500	2
501 to 1,000	3
1,001 or 1,500	4
Each additional 500 persons	36 additional inches of exit width

(1) *Width.* The aggregate clear width of exits shall be a minimum of 36 inches wide (914 mm) for each 500 persons to be accommodated.

(2) *Signs.* Exits shall be identified with signs that read "EXIT." The signs shall be weather-resistant with lettering on a contrasting background. The lettering shall be of sufficient height and brush stroke to be immediately visible from 75 feet (22,860 mm). Placement of the exit signs shall be approved by the fire code official.

(O.15,546, 16,318, 16,521)

Sec. 46-556. Concession stands, food booths, and retail booths.

(a) *General.* Concession stands, food booths, and retail booths shall be in accordance with section 3108.

(1) *Distances.* A minimum of 20 feet (6096 mm) shall be provided between every 150 linear feet (45,720 mm) of booth space. A minimum of 30 feet (9144 mm) shall be provided between booths used for cooking and the vehicles, generators, or any other internal combustion engines. A minimum of 30 feet (9144 mm) shall be provided between booths used for cooking and amusement rides or devices.

(b) *Cooking appliances or devices.*

(1) *Public isolation.* Cooking appliances or devices shall be isolated from the public by not less than 4 feet (1219 mm) or by a non-combustible 3-sided barrier between the equipment and devices and the public.

(2) *Protection.* Single-well cooking equipment using combustible oils or solids shall meet the following:

a. A noncombustible lid shall be immediately available. The lid shall be of sufficient size to cover the cooking well completely.

b. The cooking surface shall not exceed 288 square inches (18,580 cm^2).

c. The equipment shall be placed on a noncombustible surface; and

d. The equipment shall be separated from each other by a horizontal distance of not less than 2 feet (609 mm).

(3) *Liquefied petroleum gas (LP-gas).* LP-gas shall be in accordance with chapter 61 of the International Fire Code and NFPA 58.

a. *Maximum number and quantity.* A maximum of a total aggregate water capacity of 50 gallons (189 L) of LP-gas is permitted at one concession stand or booth used for cooking.

b. *LP-gas high-pressure cylinder hoses.* Hoses shall be designed for a working pressure of 350 PSIG (2413 kPa) with a safety factor of 5 to 1 and shall be continuously marked with LP-GAS, PROPANE, 350 PSI (2413 kPa) WORKING PRESSURE, and the manufacturer's name or trademark. Hose assemblies, after the application of couplings, shall have a design capability of 700 PSIG (4826 kPa). Hose shall not exceed 12 feet (3658 mm) unless approved by the fire code official.

c. *LP-gas low-pressure cylinder hoses.* Hoses with a working pressure of 5 psig shall be allowed when a fix regulator is set a 5 psi and is connected directly to the LP GAS cylinder. The hose shall not exceed 12 feet (3658 mm) unless approved by the fire code official.

(4) *Storage of containers.* Containers shall be stored in accordance with chapter 61 of the International Fire Code.

(c) *Generators / electrical.* The generators shall be installed at least 10 feet (3048 mm) from combustible materials; shall be isolated from the public by physical guard, fence, or enclosure installed at least 3 feet (914 mm) away from the internal combustion power source; and be provided with a compliant portable fire extinguisher per section 906 of the International Fire Code and NFPA 10.

(d) *Temporary water stations.* When outdoor temperatures are expected to exceed 90°F (32.2°C), the event sponsor shall provide and maintain a minimum of one water station for each 5,000-projected attendance. The water station shall include adequate water supply, cups, and a means for rapid replenishing of exhausted water. Each water station shall be located as far apart as practicable to allow ease of access for event attendees.
(O.15,546, 15,860, 16,318, 16,521)

DIVISION 5. MOBILE FOOD VEHICLES

Sec. 46-557. General.

Mobile food vehicles that are temporarily or permanently stored on a property where food items are processed or prepared and sold to the public shall comply with section 4106 of the International Fire Code.

Exception: Food peddlers operating a retail food establishment from a vehicle designated to be readily movable in which food is sold or given away but not composed, compounded, thawed, reheated, cut, cooked, processed, or prepared.
(O.15,546, 16,318, 16,521)

Sec. 46-558. Reserved.

Editor's note—Ord. No. 16,318, § 1, adopted Jan. 8, 2024, repealed § 46-558, which pertained to hoods and derived from Ord. No. 15,546.

Sec. 46-559. Reserved.

Editor's note—Ord. No. 16,318, § 1, adopted Jan. 8, 2024, repealed § 46-559, which pertained to fire extinguishers and derived from Ord. No. 15,546.

Sec. 46-560. Liquefied petroleum gas (LP-gas).

LP-gas shall be in accordance with chapter 41 and chapter 61 of the International Fire Code and NFPA 58.

(1) *LP-gas cylinder hoses.* Hoses shall be designed for a working pressure of 350 psig (2413 kPa) with a safety factor of 5 to 1 and shall be continuously marked with LP-GAS, PROPANE, 350 PSI WORKING PRESSURE, and the manufacturer's name or trademark. Hose assemblies, after the application of couplings, shall have a design capability of 700 psig (4826 kPa). Hose assemblies shall be leak tested at the time of installation at not less the operating pressure of the system in which they are installed.

(O.15,546, 16,318, 16,521)

Sec. 46-561. Location.

Mobile food vehicles shall not be located inside of or within 20 feet (6096 mm) of buildings, tents, canopies, or membrane structures.
(O.15,546, 16,318, 16,521)

DIVISION 6. SPECIAL AMUSEMENT BUILDINGS

Sec. 46-562. General.

Special amusement buildings shall be in accordance with this section and section 411 of the International Building Code.

Exception: Amusement buildings or portions thereof, which are without walls or a roof and are constructed to prevent the accumulation of smoke.
(O.15,546, 16,521)

Sec. 46-563. Use of combustible decorative materials.

Use of combustible decorative materials shall be in accordance with chapter 8.
(O.15,546, 16,521)

Sec. 46-564. Assistance.

Adult monitors with flashlights shall be available to provide assistance in the event someone becomes lost or disoriented. One adult monitor shall be provided for every 60 persons.
(O.15,546)

Sec. 46-565. Automatic sprinkler system.

Special amusement buildings shall be equipped throughout with an automatic sprinkler system in accordance with chapter 9.
(O.15,546, 16,521)

Sec. 46-566. Temporary special amusement buildings.

Where the special amusement building is temporary, the sprinkler water supply shall be of an approved temporary means.
(O.15,546, 16,318)

DIVISION 7. MAZES

Sec. 46-567. General.

Mazes, including but not limited to corn stalk or hedge mazes, shall be in accordance with this section.

(1) *Safe refuge areas.* Safe refuge areas shall be established outside of the maze or building and structure, and shall not be closer than 50 feet (15240 mm).

(2) *Paths.* Paths throughout the maze shall be a minimum of 36 inches (914 mm) in width and shall be clear and unobstructed width.

(3) *Separation.* A minimum of 20 feet (6096 mm) shall be provided between mazes and buildings and structures. The 20-foot (6096 mm) clearance shall be free from vegetation and obstructions.

(4) *Means of egress.* Each exit shall be a minimum of 6 feet (1828 mm) wide.

a. *Travel distance.* The maximum travel distance to reach an exit access shall not exceed 75 feet (22,860 mm). The travel distance shall be determined by using the maze path.

b. *Number.* The travel distance required to reach an exit access shall determine the number of exits required. Locking devices shall remain unlocked on exits when the maze is occupied.

c. *Exit signs.* Exit signs shall be provided next to or above each exit. The lettering shall be a minimum of 12 inches (305 mm) high with 2-inch (51mm) brushstroke. The signs shall read EXIT with lettering in a color contrasting to the sign's background.

(O.15,546, 16,521)

Sec. 46-568. Event plans.

The following plans shall be submitted to the fire code official.

(a) *General fire safety plan.* The plan shall include, but not be limited to, procedures that shall be used to prevent over-drying of vegetation throughout the site, documentation of decorative materials flame-retardancy, and the maximum number of attendees.

(b) *Security plan.* The plan shall document who shall provide security (e.g., off-duty police officers, sheriff's posse, employees). All security personnel shall be provided with a 2-way radio and flashlight.

(c) *Evacuation plans.* The plan shall document the responsibilities of all on-site employees. The plan shall also document how attendees will be evacuated and where they will be evacuated.

(d) *Maze rules.* Maze rules shall be posted at maze entrance.

(O.15,546, 16,521)

Sec. 46-569. Employee responsibilities.

Each employee shall be familiar with the evacuation plan and with fire extinguisher locations. Documentation of training shall be provided to the fire code official.

(1) *Guides.* An employee shall be responsible for guiding a group of not more than 14 attendees through the maze. Each employee shall be provided with a minimum of one flashlight and two-way radio. The employees shall be responsible for detecting and reporting fire or smoke to a competent person posted at the maze main entrance and begin evacuation procedures.

(2) *Main entrance employee.* Each maze shall be manned by an employee at the entrance. The employee shall be capable of communicating with the employees and shall be provided with a cellular telephone. When the main entrance employee receives a report of smoke, fire, or injury, the employee shall immediately call 9-1-1.

(O.15,546, 16,521)

Sec. 46-570. Watering.

Corn stalk and hedge mazes shall be provided with sufficient water and at a frequency that prevents the vegetation from becoming dry or brittle. Failure to comply with this provision is an imminent hazard, and the fire code official shall issue a stop order.

(O.15,546, 16,521)

Sec. 46-571. Buildings and structures.

When buildings and structures are intended to be occupied by attendees, the building and structure shall comply with section 3105.

(O.15,546, 16,521)

DIVISION 8. COVERED MALL BUILDINGS

Sec. 46-572. General.

Temporary use of the common pedestrian area within a covered mall building for promotional, Group A, Group E, Group M, or similar activities shall be in accordance with section 3108.
(O.15,546, 16,521)

Sec. 46-573. General requirements.

(a) *Main aisle width.* Main aisles shall be a minimum of 10 feet (3048 mm) in width or the minimum required means of egress width, whichever is greater, and shall be maintained in accordance with chapter 10. Main aisles shall not be obstructed.

(b) *Cross aisle width.* Cross aisles shall be a minimum of 15 feet (4572 mm) in width or the required means of egress width, whichever is greater, and shall be maintained in accordance with chapter 10.

(c) *Fueled equipment.* Liquid- or gas-fueled or electric appliances, tools, apparatus, craft, or vehicles shall be displayed in a mall in accordance with section 314. LP-gas powered floor maintenance machines may be used when in accordance with chapter 61.
(O.15,546, 16,521)

Sec. 46-574. Combustible decorative materials.

Combustible decorative materials shall be in accordance with chapter 8.
(O.15,546, 16,521)

Secs. 46-575—46-579. Reserved.

ARTICLE XIX. FIRE DEPARTMENT ACCESS

Sec. 46-580. Aerial access.

Delete section D105.3 and insert in lieu thereof the following new section:

D105.3 Proximity to building. At least one of the required access routes meeting this condition shall be positioned along a minimum of one-fourth of the building perimeter and located within the minimum and a maximum dictated by the table below, Table D105.3. The arrangement of the aerial fire apparatus access road shall be approved by the fire code official and may be discontinuous with approval.

Building Height (ft)		*Distance from Building (ft)*	
Minimum	*Maximum*	*Minimum*	*Maximum*
30	40	15	50
40	50	15	40
50	N/A	15	30

(O.15,546, 16,318, 16,521)

Sec. 46-581. Reserved.

Editor's note—Ord. No. 16,318, § 1, adopted Jan. 8, 2024, repealed § 46-581, which pertained to access points and derived from Ord. No. 15,546; Ord. No. 15,860.

Sec. 46-582. Reserved.

Editor's note—Ord. No. 16,318, § 1, adopted Jan. 8, 2024, repealed § 46-582, which pertained to remoteness and derived from Ord. No. 15,546; Ord. No. 15,860.

Sec. 46-583. One- and two-family dwellings on a single access road.

Delete section D107.1 exception #2 and insert in lieu thereof the following new section:

2. The number of dwelling units on a single fire apparatus access road shall not be increased unless alternative fire and life safety measures have been provided, as determined by the fire code official. Even when alternative fire and life safety measures have been implemented, at no time shall the number of dwelling units on a single fire apparatus access road exceed 60 units.

(O.15,546, 16,521)

Sec. 46-584. Commercial and industrial access roads.

Insert new section D104.4 with the following language:

D104.4 Public Streets. Where two fire apparatus access roads are required, they both shall be public streets. Where public streets are not

available, both access roads or private streets shall be designed, constructed, and maintained as public streets.

(O.15,860, 16,521)

Sec. 46-585. Multi-family residential developments—Access roads.

Insert new section D106.4 with the following language:

D106.4 Public Streets. Where two or more fire apparatus access roads are required, all streets throughout the development shall be public streets complying with city code and policy in design and installation standards.

Exemption: Where a fire apparatus access road only serves an isolated portion of the development for compliance with IFC 503, and that isolated portion would not require two fire apparatus access roads, all as determined by the fire code official, such fire apparatus access road may be but shall not be required to be a public street.

D106.4.1 Alternative to Public Streets. Where public streets are not required for the development other than as specified in IFC appendix D or the exemption in city code section 106.4 applies, the fire apparatus access roads shall be permitted, but not required, to be privately owned when the following requirements are met and are recorded as an easement in favor of the city on the development plat:

1. All fire apparatus access roads shall meet the requirements of IFC 503 and IFC appendix D including the design capacity, width, turn radius, turnarounds, and lengths.
2. The access easement granted to the city for access to and use of the privately owned fire apparatus access road shall comply with the following:
   - 2.1 Will be a permanent easement releasable only by resolution of the city council.
   - 2.2 Will indicate which of the properties are responsible for maintaining the road to provide all-weather driving capabilities.
   - 2.3 Will prohibit any structures from being built within 15 feet on either side of the fire apparatus access road, as measured from the back of the road curb. The distance can be reduced to 7 feet in limited locations where there is sufficient space across the road as approved in advance by the fire department.
3. Fire Lane requirements of section 511, as set forth in city code section 46-444, shall be met for the privately owned fire apparatus access road.
4. Portions of roads, driveways, or other pavement that are not needed for compliance with IFC 503.1.1 shall not be required to comply with this section.

(O.15,860, 16,471, 16,521)

Sec. 46-586. One- or two-family residential developments—Access roads.

Insert new section D107.3 with the following language:

D107.3 Public Streets. Where two or more fire apparatus access roads are required, all streets throughout the development shall be public streets complying with city code and policy in design and installation standards.

Exemption: Where a fire apparatus access road only serves an isolated portion of the development for compliance with IFC 503, and that isolated portion would not require two fire apparatus access roads, all as determined by the fire code official, such fire apparatus access road may be but shall not be required to be a public street.

D107.3.1 Alternative to Public Streets. Where public streets are not required for the development other than as specified in IFC Appendix D or the exemption in city code section 107.3 applies, the fire apparatus access roads shall

be permitted, but not required, to be privately owned when the following requirements are met and are recorded as an easement in favor of the city on the development plat:

1. All fire apparatus access roads shall meet the requirements of IFC 503 and IFC Appendix D including the design capacity, width, turn radius, turn arounds and lengths.

2. The access easement granted to the city for access to and use of the privately owned fire apparatus access road shall comply with the following:

   2.1 Will be a permanent easement releasable only by resolution of the city council.

   2.2 Will indicate which of the properties are responsible for maintaining the road to provide all-weather driving capabilities.

   2.3 Will prohibit any structures from being built within 15 feet on either side of the fire apparatus access road, as measured from the back of the road curb. The distance can be reduced to 7 feet in limited locations where there is sufficient space across the road as approved in advance by the fire department.

3. Fire Lane requirements of section 511, as set forth in city code section 46-444, shall be met for the privately owned fire apparatus access road.

4. Portions of roads, driveways or other pavement that are not needed for compliance with IFC 503.1.1 shall not be required to comply with this section.

(O.15,860, 16,471, 16,521)

Sec. 46-587. Emergency responder communications enhancement systems.

Delete Exemption #4 of section 510.1 of the International Fire Code and insert in lieu thereof the following new exemption:

4. Buildings, three-stories or less, with an aggregate floor area of less than 50,000 ft^2 and less than 5,000 ft^2 below grade.

(O.16,521)

Sec. 46-588. Replacement of battery-powered smoke alarm.

Upon replacement of a smoke or heat alarm with an existing primary power source of a battery, the new smoke or heat alarm must comply with the power supply requirements of NFPA 72 section 29.9.1.

(O.16,521)

Chapters 47—49

RESERVED

Chapter 50

FLOODPLAINS*

Article I. In General

Secs. 50-1—50-25. Reserved.

Article II. Floodplain Development

Sec. 50-26. Definitions.
Sec. 50-27. Title.
Sec. 50-28. Findings of fact.
Sec. 50-29. Purpose.
Sec. 50-30. Interpretation and conflicts.
Sec. 50-31. Warning and disclaimer of liability.
Sec. 50-32. Amendments.
Sec. 50-32.05. Administration.
Sec. 50-33. Floodplain boundaries.
Sec. 50-34. Performance standards.
Sec. 50-35. Certificate of compliance.
Sec. 50-36. Penalties.

*__Cross references—__Buildings and building regulations, ch. 26; environment, ch. 42; grading and soil erosion control, § 42-26 et seq.; health and sanitation, ch. 54; planning, ch. 82; streets, sidewalks, skywalks and other public places, ch. 102; subdivisions, ch. 106; utilities, ch. 118; waterways, ch. 130; zoning, ch. 134.

ARTICLE I. IN GENERAL

Secs. 50-1—50-25. Reserved.

ARTICLE II. FLOODPLAIN DEVELOPMENT

Sec. 50-26. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

100-year flood or *base flood* means a flood, the magnitude of which has a one-percent chance of being equaled or exceeded in any given year. All determinations of the 100-year flood level shall be based on data provided by the Federal Insurance Administration. If the Federal Insurance Administration has not provided sufficient data to make a determination, the city shall obtain, review and reasonably utilize data available from the state department of natural resources and from any other source in making such determination.

100-year flood elevation or *base flood elevation* means the elevation that floodwaters would reach at a particular site during the occurrence of the 100-year flood.

Accessory structure means a structure which is on the same parcel of the property as the principal structure to be insured and the use of which is incidental to the use of the principal structure.

Basement means any enclosed area of a building which has its floor below ground level (subgrade) on all sides.

Compensatory storage means an excavated hydrologically and hydraulically equivalent volume of storage created to offset the loss of existing flood storage.

Development means any manmade change to improved or unimproved real estate, including but not limited to buildings or other structures, mining, dredging, filling, grading, paving, excavation or drilling operations or storage of equipment or materials. "Development" does not include the following:

(1) Small development activities (except for filling, grading and excavating) valued at less than $500.00;

(2) Normal maintenance of structures such as re-roofing, replacing roofing tiles and replacing siding;

(3) Exterior and interior painting, papering, tiling, carpeting, cabinets, counter tops and similar finish work;

(4) Basement sealing;

(5) Repairing or replacing damaged or broken window panes;

(6) Repairing plumbing systems, electrical systems, heating or air conditioning systems and repairing wells or septic systems; or

(7) Other repairs necessary to keep a structure in a safe and habitable condition that do not trigger a building permit, provided they are not associated with a general improvement of the structure or repair of a damaged structure.

Factory-built home means any structure, designed for residential use, which is wholly or in substantial part made, fabricated, formed or assembled in manufacturing facilities for installation or assembly and installation on a building site. For the purposes of this article, factory-built homes include mobile homes, manufactured homes and modular homes and also include park trailers, travel trailers and other similar vehicles placed on a site for greater than 180 consecutive days.

Flood means a general and temporary condition of partial or complete inundation of normally dry land areas resulting from the overflow of streams or rivers or from the unusual and rapid accumulation or runoff of surface waters from any source.

Flood insurance rate maps (FIRMs) means the official maps prepared as part of, but published

separately from, the Flood Insurance Studies which delineate both the flood hazard areas and the risk premium zones applicable to the city.

Flood insurance studies means the Polk County Flood Insurance Study dated February 1, 2019, including but not limited to Panels 19153C0189F, 0195F, 0215F, 0220F, 0327F, 0329F, 0335F, 0340F, 0345F, 0355F, 0360F, 0365F, 0370F, 0380F, and the Warren County Flood Insurance Study dated November 16, 2018, including but not limited to Panels 19181C0043G, 0044G, 0065G, 0068G, 0132G, 0151G, 0152G, 0156G, all of which are made a part of this article by reference, together with the flood profiles and all explanatory material contained therein, subject to any amendments thereto adopted by ordinance enacted by the city council pursuant to section 50-33. The flood insurance studies are reports published by the Federal Emergency Management Agency (FEMA) for the city and issued together with the flood insurance rate maps. Said studies contain such background data as the base flood discharge and water surface elevation that were used to prepare the flood insurance rate map. The flood insurance studies shall be on file in the office of the city engineer.

Floodplain means any land area susceptible to being inundated by water from any source during the 100-year flood. The floodplain includes all areas designated as "A-" zones on the flood insurance rate maps, including but not limited to A, AE, A1—A30, AH and AO.

Floodproofing and *floodproofed* mean any combination of structural and nonstructural additions, changes or adjustments to structures, including utility and sanitary facilities, which will reduce or eliminate, and/or have reduced or eliminated, flood damage to such structures.

Floodway means the channel of a river or other watercourse and the adjacent land areas designated to carry the waters of a 100-year flood without increasing the water surface elevation of that flood more than 1.0 foot. Floodways include the areas designated as floodway areas within Zone AE on the flood insurance rate maps in the flood insurance studies. The city council may by ordinance designate additional floodway areas which have been identified through engineering studies.

Highest adjacent grade means the highest natural elevation of the ground surface, prior to construction, next to the proposed walls of a structure.

Historic structure means any structure that is:

(1) Listed individually in the National Register of Historic Places (a listing maintained by the Department of the Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register;

(2) Certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the Secretary to qualify as a registered historic district;

(3) Individually listed on the state register of historic places; or

(4) Individually designated as a city landmark.

Lowest floor means the floor of the lowest enclosed area in a building or factory-built home, including a basement, except that when the lowest enclosed area satisfies all of the criteria set forth in the following subsections, the lowest floor is the floor of the next highest enclosed area that does not satisfy such criteria:

(1) The enclosed area is designed to flood to automatically equalize hydrostatic pressure from flood forces on exterior walls by allowing for the entry and exit of floodwaters through walls or openings which satisfy the requirements of subsection 50-34(4) of this article.

(2) The enclosed area is unfinished (i.e., not carpeted, drywalled, etc.) and is used solely for low damage potential uses such as building access, parking or storage.

(3) All machinery and service facilities contained in the enclosed area shall meet all applicable performance standards set forth in section 50-34.

(4) The enclosed area is not a basement, as defined in this section.

Market value means the value of a structure determined using the most recent applicable county assessor's building valuation, or, if determined necessary by the city engineer, by independent appraisal provided by an applicant and verified and approved by the city engineer.

Minimum flood protection elevation means, for all floodplain areas except areas designated as AO zones on the flood insurance rate maps, the elevation of three feet above the 100-year flood elevation. The additional elevation above the 100-year flood elevation is also known as "freeboard". For all areas designated as AO zones on the rate maps, the minimum flood protection elevation shall be equal to the depth as specified on the rate map above the highest adjacent grade plus one foot, or, if no depth is specified, at least three feet above the highest adjacent grade.

New construction means structures for which the start of construction commenced on or after the effective date of a floodplain management regulation (ordinance) adopted by the city and includes any subsequent improvements to such structures.

Recreational vehicle means a vehicle which is:

(1) Built on a single chassis;

(2) Four hundred square feet or less when measured at the largest horizontal projection;

(3) Designed to be self-propelled or permanently towable by a light-duty truck; and

(4) Designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.

Start of construction includes substantial improvement, and means the date the building permit was issued, provided the actual start of construction, repair, reconstruction, rehabilitation, addition placement or other improvement was within 180 days of the permit date. The *actual start* means either the first placement of permanent construction of a structure on a site, such as the pouring of a slab or footing, the installation of piles, the construction of columns, any work beyond the stage of excavation; or the placement of a manufactured home on a foundation. Permanent construction does not include land preparation, such as clearing, grading and filling, nor does it include the installation of streets and/or walkways; nor does it include excavation for a basement, footings, piers, or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory structures, such as garages or sheds not occupied as dwelling units and not part of the main structure. For a substantial improvement, the *actual start of construction* means the first alteration of any wall, ceiling, floor, or other structural part of a building, whether or not that alteration affects the external dimensions of the building.

Structure means anything constructed or erected with a fixed location on the ground or attached to something having a fixed location on the ground. Structures include but are not limited to buildings, sheds, cabins, factory-built homes, gas or liquid storage tanks, monument signs, grain storage facilities and/or other similar uses.

Substantial damage means damage of any origin sustained by a structure whereby the cost of restoring the structure to its before-damaged condition would equal or exceed 50 percent of the market value of the structure before the damage occurred.

Substantial improvement means any reconstruction, rehabilitation, repairs, addition, modification, or other improvement of a structure, which satisfies either of the following criteria:

(1) The cost of which equals or exceeds 50 percent of the market value of the structure before the start of construction of the improvement.

(2) Any addition which increases the original floor area of a building or factory-built

home by 25 percent or more. All additions constructed after February 4, 1981, shall be added to any proposed addition in determining whether the total increase in original floor space would exceed 25 percent.

The term "substantial improvement" includes structures which have incurred substantial damage, regardless of the actual repair work performed. The term does not, however, include either: (i) any project for improvement of a structure to correct existing violations of state or local health, sanitary, or safety code specifications which have been identified by the local code enforcement officer and which are the minimum necessary to ensure safe living conditions: or (ii) any alteration which will not preclude the structure's continued designation as a "historic structure."

Variance means a grant of relief by the city council from the terms of this chapter pursuant to section 50-35(c).

Violation means the failure of a structure or other development to be fully compliant with the requirements of this chapter. A structure or other development without a certificate of compliance or other evidence of compliance with the requirements in section 50-34 is presumed to be in violation until such time as that documentation is provided.
(C79, § 12-1; O.10,027, 10,225; C85, § 12-1; O.10,991; C91, § 12-1; O.11,773, 13,201, 15,722, 15,919, 15,985, 16,043)

Cross reference—Definitions generally, § 1-2.

Sec. 50-27. Title.

This article shall be known, cited and referred to as the "Floodplain Development Regulations of the City of Des Moines, Iowa."
(C79, § 12-2; O.10,027; C91, § 12-2)

Sec. 50-28. Findings of fact.

Statutory authority. The Legislature of the State of Iowa has in Chapter 414, Code of Iowa, as amended, delegated the power to cities to enact zoning regulations to secure safety from flood and to promote health and the general welfare.

It is declared that the floodplain areas of the city are subject to periodic inundation which can result in loss of life and property, health and safety hazards, disruption of commerce and governmental services, extraordinary public expenditures for flood protection and relief, and impairment of the tax base, all of which adversely affect the health, safety, and general welfare of the community. These losses, hazards and related adverse effects are caused by the occupancy of floodplain areas by uses vulnerable to flood damages which create hazardous conditions as a result of being inadequately elevated or otherwise protected from flood and by the cumulative effect of floodplain construction on flood flows, which causes increases in flood heights and floodwater velocities. This article relies upon engineering methodology for analyzing flood hazards which is consistent with the standards established by the state department of natural resources.
(C79, § 12-3; O.10,027; C85, § 12-3; O.10,991; C91, § 12-3; O.15,722)

Sec. 50-29. Purpose.

It is the purpose of this article to promote the public health, safety and general welfare by minimizing those flood losses described in section 50-28 of this article with provisions designed to:

(1) Restrict or prohibit uses which are dangerous to health, safety or property in times of flood or which cause excessive increases in flood heights or velocities.

(2) Require that uses vulnerable to floods, including public utilities which serve such uses, be protected against flood damage at the time of initial construction.

(3) Ensure that eligibility is maintained for property owners in the community to purchase flood insurance through the National Flood Insurance Program.

(4) Protect individuals from buying lands which may not be suited for their intended purposes because of flood hazard.

(C79, § 12-4; O.10,027; C91, § 12-4, 15,311)

Sec. 50-30. Interpretation and conflicts.

(a) In their interpretation and application, the sections of this article shall be held to be minimum requirements for the promotion of the public health, safety, and general welfare.

(b) This article is not intended to interfere with, abrogate, or annul any other ordinance, rule or regulations, statute, or other provision of law. Where any section of this article imposes restrictions different from those imposed by any other section of this article or any other provision of any ordinance, rule or regulation, or other provision of law, whichever provisions are more restrictive or impose higher standards shall control.

(c) This article is not intended to abrogate any easement, covenants, or other private agreement or restriction, provided that where the sections of this article are more restrictive or impose higher standards or regulations than such easement, covenant, or other private agreement or restriction, the requirements of this article shall govern.

(d) If any section, subsection, sentence, clause or phrase of this chapter is held to be unconstitutional and invalid for any reason, such decision shall not affect the validity of the remaining portions of this chapter. The city council hereby declares that it would have passed this chapter and each section, subsection, sentence, clause or phrase thereof, irrespective of the fact that any one or more sections, subsections, sentences, clauses or phrases may be declared unconstitutional or invalid. To this end the provisions of this chapter are severable.
(C79, § 12-5; O.10,027; C91, § 12-5; O.15,722)

Sec. 50-31. Warning and disclaimer of liability.

The degree of flood protection required by this article is considered reasonable for regulatory purposes and is based on engineering and scientific methods of study. Larger floods may occur on rare occasions. Flood heights may be increased by manmade or natural causes, such as ice jams and bridge openings restricted by debris. This article does not imply that areas outside the floodplain areas or land uses permitted within the floodplain areas will be free from flooding or flood damages. This article shall not create liability on the part of the city or any officer or employee thereof for any flood damages that result from reliance on this article or any administrative decision lawfully made under this article.
(C79, § 12-6; O.10,027; C91, § 12-6)

Sec. 50-32. Amendments.

The regulations or provisions of this article may from time to time be amended, supplemented, changed or repealed by the city council, after notice to the Federal Emergency Management Agency and the state department of natural resources.
(C79, § 12-7; O.10,027; C85, § 12-7; O.10,991; C91, § 12-7)

Sec. 50-32.05. Administration.

(a) The city engineer is hereby designated to administer and implement the provisions of this chapter.

(b) The duties of the city engineer under this chapter shall include, but not be limited to:

(1) Review of all applications for certificates of compliance to assure that sites are reasonably safe from flooding and that the performance standards of this chapter have been satisfied.

(2) Review all applications for certificates of compliance to assure that all necessary permits have been obtained from those governmental agencies from which approval is required by federal or state law, including, but not limited to and when applicable, the Iowa Department of Natural Resources for floodplain structure(s) and section 404 of the federal Water Pollution Control Act Amendments of 1972, 33 U.S.C. § 1334.

(3) Review all subdivision proposals and other new development, including manufactured home parks, to determine whether such proposals will be reasonably safe from flooding.

(4) Record and maintain a record of: (i) elevation of the lowest floor (including basement) of all new or substantially improved structure; or (ii) the elevation to which all new or substantially improved structures have been floodproofed.

(5) Issue certificates of compliance for all approved applications.

(6) Notify adjacent communities and the state department of natural resources prior to any alteration or relocation of a watercourse, and submit evidence of such notification to the Federal Emergency Management Agency.

(7) Keep a record of all permits, appeals, and such other transactions and correspondence pertaining to the administration of this chapter.

(8) Maintain the accuracy of the community's flood insurance rate maps when;

a. Development placed within the floodway results in any of following:

1. An increase in the base flood elevations, or

2. Alteration to the floodway boundary.

b. Development placed in Zones A, AE, AH and A1—A30 that does not include a designated floodway that will cause a rise of more than one foot in the base elevation; or

c. Development relocates or alters a channel.

Within six months of the completion of the development, the applicant shall submit to FEMA all scientific and technical data necessary for a letter of map revision.

(9) Maintain any certificates of floodproofing, and information on the elevation (in relation to North American Vertical Datum 1988) of the level of the lowest floor (including basement) of all new or substantially improved structures, and include whether or not such structures contain a basement, and if the structures have been floodproofed, the elevation (in relation to North American Vertical Datum 1988) to which the structures were floodproofed.

(10) Maintain records of damage, reconstruction, rehabilitation, repairs, additions, modifications, or other improvements to buildings within floodplain areas.

(11) Perform site observations at time of building permit issuance to ensure compliance with the standards of this chapter.

(O.15,311, 15,722, 15,919, 15,985)

Sec. 50-33. Floodplain boundaries.

(a) The boundaries of the floodplain areas are shown on the flood insurance rate maps contained within the flood insurance studies. The city council may by ordinance designate additional floodway areas which have been identified through engineering studies.

(b) The general location of the floodplain boundaries shall be determined by scaling distances on the flood insurance rate maps; however, when a more precise determination is needed as to the exact location of the boundary in relation to a particular property, the determination shall be based upon elevation, using the elevation reference mark set forth in the flood insurance studies. If the elevation reference mark has been obliterated, a new mark, referenced to the North American Vertical Datum of 1988 if located on the Polk County Flood Insurance Rate Maps dated February 1, 2019, or the Warren County Flood Insurance Rate Maps dated November 16, 2018, shall be provided by the city engineer utilizing precise level crews of either the city or the Federal Insurance Administration. The elevation of the property in question shall be shown in a report prepared by a person registered as both a land surveyor and professional engineer under state laws, which report shall be approved by the city engineer as to method and form.

(c) If such report indicates that the boundary in question is significantly different from the boundary shown on the flood insurance rate maps, such report shall be forwarded by the city engineer to the state department of natural

resources and to the Federal Emergency Management Agency for their examination. If both the state department of natural resources and the Federal Emergency Management Agency notify the city that they are in concurrence with such report, the city engineer shall thereafter recommend that the city council pass an ordinance changing the boundary in question.

(d) If the city council passes an ordinance changing the boundary in question or adding a new floodway area, the ordinance number and the date of the change shall be recorded by the city engineer on the flood insurance rate maps.

(e) In floodplain areas where the flood insurance study has not provided floodway and 100-year flood elevation information, the applicant shall be responsible for providing the state department of natural resources with sufficient technical information for the computation of such information. The city shall seek the concurrence of the department of natural resources before issuing a building permit in such areas.
(C79, § 12-8; O.10,027; C85, § 12-8; O.10,991, 11,545; C91, § 12-8; O.15,311, 15,722)

Sec. 50-34. Performance standards.

No structure or land shall hereafter be placed to a use and no structure shall be constructed, located, expanded, converted to a new use or structurally altered without full compliance with the terms of this chapter. All development within floodplain areas must be consistent with the need to minimize flood damage and shall meet the following applicable performance standards:

(1) All structures and factory-built homes (whether or not placed in existing factory-built home parks or subdivisions) for which the start of construction commenced on or after February 4, 1981, or to which substantial improvements have been made on or after February 4, 1981, shall be:

a. Adequately anchored to prevent flotation, collapse or lateral movement of the structure during conditions of flooding. Anchorage systems may include, but are not limited to, use of over-the-top or frame tied ground anchors;

b. Constructed with materials and utility equipment resistant to flood damage;

c. Constructed by methods and practices minimizing flood damage; and

d. Unless otherwise provided in this section 50-34, constructed with (i) machinery and equipment serving the building, such as electric meter and panel box, water heater, and heating, air conditioning, and ventilation equipment (including ductwork), elevated or floodproofed equal to or above the minimum flood protection elevation; and (ii) service utilities such as plumbing, electric service, gas service, and water/gas meters designed and installed to be watertight and withstand inundation or elevated equal to or above the minimum flood protection elevation.

e. Reviewed to assure that all necessary permits have been received from those governmental agencies from which approval is required by federal or state law, including, but not limited to and when applicable, the Iowa Department of Natural Resources for floodplain structure(s) and section 404 of the federal Water Pollution Control Act of 1972, 22 U.S.C. §1334.

(2) All residential buildings and factory-built homes (whether or not placed in existing factory-built home parks or subdivisions) for which the start of construction commenced on or after February 4, 1981, or to which substantial improvements have been made on or after February 4, 1981, shall have the lowest floor, including basement, elevated equal to or above the minimum flood protection elevation. Machinery and

equipment serving the building, such as electric meter and panel box, water heater, and heating, air conditioning and ventilation equipment (including ductwork), shall also be elevated equal to or above the minimum flood protection elevation, and service utilities such as plumbing, electric service, gas service, and water/gas meters must be designed and installed to be watertight and withstand inundation or elevated equal to or above the minimum flood protection elevation. Elevation shall be achieved by means of compacted fill or by such other methods, including piers, as the city engineer determines to be adequate to support the structure as well as withstand the various forces and hazards associated with flooding.

(3) All nonresidential buildings for which the start of construction commenced on or after February 4, 1981, or to which substantial improvements have been made on or after February 4, 1981, shall have the lowest floor, including basement, elevated equal to or above the minimum flood protection elevation or shall be floodproofed to the minimum flood protection elevation. Machinery and equipment serving the building, such as electric meter and panel box, water heater, and heating, air conditioning and ventilation equipment (including ductwork), shall also be elevated or floodproofed equal to or above the minimum flood protection elevation; and service utilities such as plumbing, electric service, gas service, and water/gas meters must be designed and installed to be watertight and withstand inundation or elevated equal to or above the minimum flood protection elevation. When floodproofing is utilized, a professional engineer registered in the state shall certify that the floodproofing methods used are adequate to withstand the flood depths, pressures, velocities, impact and uplift forces and other factors associated with the 100-year flood and that the structure, below the minimum flood protection elevation, is watertight with walls substantially impermeable to the passage of water. A record of the certification indicating the specific elevation, in relation to North American Vertical Datum, to which any buildings are floodproofed shall be maintained by the office of the building official.

(4) Within all buildings and factory-built homes (whether or not placed in existing factory-built home parks or subdivisions) for which the start of construction commenced on or after February 4, 1981, or to which substantial improvements have been made on or after February 4, 1981, any enclosed areas below the lowest floor shall be designed to automatically equalize hydrostatic pressure from flood forces on exterior walls by allowing for the entry and exit of floodwaters. Designs for meeting this requirement either must be certified by a registered professional engineer or must meet the following criteria:

a. A minimum of two openings having a total net area of not less than one square inch for every square foot of enclosed area subject to flooding shall be provided.

b. The bottom of all openings shall be no higher than one foot above grade.

c. Openings may be equipped with screens, louvers, valves, or other coverings or devices, provided that they permit the automatic entry and exit of floodwaters.

d. Such enclosed areas shall be used solely for parking of vehicles, building access and low damage potential storage.

(5) Utility and sanitary systems shall satisfy the following criteria:

a. All new and replacement sanitary sewer systems shall be designed to minimize or eliminate infiltration of floodwaters into the system as well as the discharge of effluent into floodwaters. Wastewater treatment facilities shall be provided with a

level of flood protection equal to or above the minimum flood protection elevation.

b. On-site waste disposal systems shall be located or designed to avoid impairment to the system or contamination from the system during flooding.

c. New or replacement water supply systems shall be designed to minimize or eliminate infiltration of floodwaters into the system. Water supply treatment facilities shall be provided with a level of protection equal to or above the minimum flood protection elevation.

d. Utilities such as gas and electrical systems shall be located and constructed to minimize or eliminate flood damage to the system and the risk associated with such flood damaged or impaired systems.

(6) Flood control structural works such as levees and floodwalls shall provide, at a minimum, protection from a 100-year flood with a minimum of three feet of design freeboard and shall provide for adequate interior drainage. In addition, structural flood control works shall be approved by the state department of natural resources.

(7) Storage of materials and equipment that are flammable, explosive or injurious to human, animal or plant life is prohibited unless stored indoors and elevated equal to or above the minimum flood protection elevation. Other material and equipment must either be:

a. Similarly elevated;

b. Not subject to major flood damage and anchored to prevent movement due to floodwaters; or

c. Readily removable from the area within the time available after flood warning.

(8) No development shall affect the capacity or conveyance of the channel or floodway of any tributary to the main stream, drainage ditch or other drainage facility or system.

(9) All subdivisions shall be consistent with the need to minimize flood damages and shall have adequate drainage provided to reduce exposure to flood damage. Development associated with subdivision proposals shall meet the applicable performance standards. Subdivision proposals intended for residential development shall provide all lots with a means of vehicular access that will remain dry during occurrence of the 100-year flood. Proposals for subdivisions and other proposed developments, including proposals for manufactured home parks and subdivisions, greater than five acres or 50 lots, whichever is the lesser, shall include 100-year flood elevations for those areas located within the floodplain.

(10) Detached garages, sheds and similar accessory structures that are incidental to a single-family (single-household) or two-family (two-household) residential use are exempt from the minimum flood protection elevation requirements, provided all of the following criteria are met:

a. The structure shall not be used for human habitation, and shall be used solely for low flood damage potential purposes such as vehicle parking and limited storage.

b. The structure shall be designed to have low flood damage potential. Those portions of the structures located below the minimum flood protection elevation must be constructed of flood-resistant materials as determined by the Federal Emergency Management Agency.

c. The structure shall be constructed and placed on the building site so as to offer minimum resistance to the flow of floodwaters.

d. The structure shall be firmly anchored to prevent flotation, col-

lapse and lateral movement which may result in damage to other structures.

e. The structure's service facilities such as electrical, heating, ventilation, plumbing, and air conditioning equipment shall be elevated or floodproofed to a level equal to or above the minimum flood protection elevation.

f. The structure's walls shall include openings that satisfy the provisions of subsection (4) of this section.

g. The owner of the structure must sign a non-conversion agreement whereby the owner agrees not to modify the enclosed area in any way that would make it more susceptible to flood damage. The agreement must contain a legal description sufficient to identify the property upon which the structure is located, and be recorded at the owner's expense with the applicable county recorder. The agreement shall allow the city the right to inspect the enclosed area at any time.

(11) Recreational vehicles shall not be placed on sites within the areas designated as A1—A30, AO, AE, and AH on the flood insurance rate maps or in other approximate "A-" zones for which base flood elevation data has been obtained or provided by IDNR or the city engineer, unless the recreational vehicle will:

a. Be on the site for fewer than 180 consecutive days;

b. Be fully licensed and ready for highway use; or

c. Meet the permit, elevation and anchoring requirements for a factory-built home.

A recreational vehicle is ready for highway use if it is on its wheels or jacking system, is attached to the site only by disconnect-type utilities and security devices, and has no permanent attached additions.

(12) Pipeline river and stream crossings shall be buried in the streambed and banks, or otherwise sufficiently protected to prevent rupture due to channel degradation and meandering or due to the action of flood flows, and shall be constructed, operated, and maintained so as not to create premature overbank flow or excessive scour to the channel or banks. Spoil material resulting from the construction of a pipeline crossing shall be disposed of in a manner which will not obstruct low flow or flood flows.

(13) In the AH and AO zones as shown by the flood insurance rate maps, all structures on slopes for which the start of construction commenced on or after February 4, 1981, or to which substantial improvements have been made after February 4, 1981, shall have adequate drainage paths to guide floodwaters around and away from the structure.

a. In AO zones, as designated on the flood insurance rate map, the minimum flood protection elevation for all new construction and substantial improvements of residential structures shall be equal to or above the number of feet as specified on the flood insurance rate map plus one foot (or a minimum of three feet, if no number is specified) above the highest adjacent grade to the structure, and the minimum flood protection elevation for all new construction and substantial improvements of nonresidential structures shall (i) be equal to the number of feet as specified in the flood insurance rate map plus one foot (or a minimum of three feet, if no number is specified) above the highest adjacent grade, or (ii) together with attendant utility and sanitary facilities be completely floodproofed so that below the base

flood level the structure is watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy.

b. In AH zones, as designated on the flood insurance rate map, the minimum flood protection elevation for all new construction and substantial improvements of residential structures shall be equal to or above the elevation as specified on the flood insurance rate map plus one foot, and the minimum flood protection elevation for all new construction and substantial improvements of nonresidential structures shall (i) be equal to or above the number of feet as specified in the flood insurance rate map plus one foot, or (ii) together with attendant utility and sanitary facilities, be designed so that below the base flood level the structure is watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy.

(14) All encroachments, including fill, new construction, substantial improvements, and other development, within a designated floodway are hereby prohibited unless it has been demonstrated to the reasonable satisfaction of the city engineer through hydrologic and hydraulic analysis performed in accordance with standard engineering practices that the proposed encroachment will not result in any increase in flood levels within the flood plain during the occurrence of a 100-year flood.

a. No development shall be permitted in the floodway that would result, individually or collectively, in any increase in the base flood elevation. Consideration of the effects of any development on flood levels shall be based upon the assumption that an equal degree of development would be allowed for all similarly situated lands. Notwithstanding the foregoing sentence, a structure, associated fill, or another potential obstruction owned, operated, or maintained by a local, state or federal governmental entity, whose location in the floodway provides a substantial public benefit, such as bridge embankments, water supply intake structures, and water wells with appurtenant fill, may be allowed if the resulting increase in flood levels is mitigated by purchase of flooding easements or execution of other appropriate agreements with the owners of property on which flooding would be increased.

b. No development shall affect the capacity or conveyance of the channel or floodway of any tributary to the main stream, drainage ditch or any other drainage facility or system.

c. Structures, if permitted, shall have a low flood damage potential and shall not be used for human habitation.

d. Storage of materials or equipment that are buoyant, flammable, explosive or injurious to human, animal or plant life is prohibited.

e. Watercourse alterations or relocations must be designed to maintain the flood carrying capacity within the altered or relocated portion. In addition, such alterations or relocations must be approved by the department of natural resources.

f. Pipeline and river crossings shall be buried in the steambed and banks or otherwise sufficiently protected to prevent rupture due to channel degradation and meandering or due to the action of flood flows.

(15) For any development in the floodplain in Zones A, AE, AH and A1—A30 for which no floodway is delineated, documentation must be provided to the city, in the form and to the extent required by the city engineer, demonstrating that such development will not cause a rise of more than one foot in the base flood elevation.

(16) Any addition to a structure or factory-built home (whether or not placed in an existing factory-built home park or subdivision) constructed on or after February 4, 1981, which addition increases the original floor area of the applicable structure or factory-built home by any amount, shall comply with subsections (a) through (e) of subsection 1 of this section.

a. Any addition constructed on or after February 4, 1981 to a residential building or factory-built home (whether or not placed in an existing factory-built home park or subdivision), which addition increases the original floor area of the applicable structure or factory-built home by any amount, shall have its lowest floor, including basement, elevated equal to or above the minimum flood protection elevation. Machinery and equipment serving the building, such as electric meter and panel box, water heater, and heating, air conditioning and ventilation equipment (including ductwork), shall also be elevated equal to or above the minimum flood protection elevation; and service utilities such as plumbing, electric service, gas service, and water/gas meters must be designed and installed to be watertight and withstand inundation or elevated equal to or above the minimum flood protection elevation. Elevation of the addition shall be achieved by means of compacted fill or by such other methods, including piers, as the city engineer determines to be adequate to support the structure as well as withstand the various forces and hazards associated with flooding.

b. Any addition constructed on or after February 4, 1981 to a nonresidential building, which addition increases the original floor area of the applicable structure by any amount, shall have its lowest floor, including basement, elevated equal to or above the minimum flood protection elevation or shall be floodproofed to the minimum flood protection elevation. Machinery and equipment serving the building, such as electric meter and panel box, water heater, and heating, air conditioning and ventilation equipment (including ductwork), shall also be elevated or floodproofed equal to or above the minimum flood protection elevation; and service utilities such as plumbing, electric service, gas service, and water/gas meters must be designed and installed to be watertight and withstand inundation or elevated equal to or above the minimum flood protection elevation. When floodproofing is utilized, a professional engineer registered in the state shall certify that the floodproofing methods used are adequate to withstand the flood depths, pressures, velocities, impact and uplift forces and other factors associated with the 100-year flood and that the structure, below the minimum flood protection elevation, is watertight with walls substantially impermeable to the passage of water. A record of the certification indicating the specific elevation, in relation to North American Vertical Datum, to which any additions are floodproofed shall be maintained by the office of the building official.

(17) Unless otherwise specified in this subsection, development in the floodplain shall result in no net loss of natural floodplain storage, and compensatory storage equal to at least 1.5 times the volume of floodplain storage displaced shall be provided for all development above grade in the floodplain. All required compensatory storage shall be located at a hydraulically equivalent site on the same cross-section or as demonstrated by modeling provided by the applicant and prepared by an engineer licensed in the State of Iowa. For developments that are required to have stormwater detention facilities, the storage volume required to meet the city's stormwater management regulations for the 100-year flood event does not count as credit towards satisfying the compensatory storage requirement.

a. The following development projects are required to meet a compensatory storage requirement in accordance with this subsection equal to at least 1.0 times the volume of floodplain storage displaced, rather than equal to at least 1.5 times the volume of floodplain storage displaced:

i. Projects undertaken wholly within the geographic area mapped by the city engineer and generally described as the Des Moines River floodplain from the centerline of the East University Avenue bridge to a point that is 1,400 feet east of the centerline of the Southeast 14th Street bridge and the Raccoon River floodplain from the centerline of the Southwest 9th Street bridge to the confluence with the Des Moines River.

b. The following development projects are not required to meet the compensatory storage requirement unless specifically required by the city engineer after review of the initial certificate of compliance application:

i. Minor projects clearly having negligible impact, such as street/parking lot resurfacing/rehabilitation, certain utility infrastructure and appurtenances (e.g. hydrants, poles, manholes, underground pipes), bridge/culvert rehabilitation projects, landscaping, property maintenance, stream rehabilitation, restoration of natural floodplain functions, and minor water quality features which typically pose no increased fill or flood potential and do not inhibit the free flow of water.

ii. Flood protection of existing buildings for floodplain volume displaced by the building and within the area of ten feet adjacent to said building.

(18) All new structures constructed on fill in the floodplain must be constructed on properly designed and compacted fill that has appropriate protection from erosion and scour. Compacted fill must be placed, compacted, and sloped to minimize shifting, slumping, and erosion during the rise and fall of flood water. Where shallow foundations will bear on compacted fill material, a geotechnical investigation report must be prepared in accordance with the International Building Code, published by the International Code Council, as adopted and amended in chapter 26 of this Municipal Code. Records of soil testing and inspection must be provided to the city prior to prior to obtaining a certificate of occupancy.

(C79, § 12-9; O.10,027, 10,225; C85, § 12-9; O.10,991; C91, § 12-9; O.13,012, 13,201, 15,311, 15,722, 15,919, 15,985, 16,043)

Sec. 50-35. Certificate of compliance.

(a) *Required.* An application for a certificate of compliance, also known as a floodplain development permit, shall be filed with the city permit and development center and a certificate of compliance must be issued pursuant to subsection (c) of this section prior to commencement of any proposed development or encroachment within a floodplain area. No application for any of the following shall be approved respecting proposed development within a floodplain area unless a certificate of compliance has been issued pursuant to subsection (c) of this section:

(1) Site plan or alternate design documentation approval, pursuant to article 9 of chapter 135 of this Code.

(2) Grading permit approval, pursuant to section 42-86 of this Code.

(3) Building permit approval, pursuant to chapter 26 of this Code.

(4) Subdivision approval, pursuant to chapter 106 of this Code.

(5) Issuance of certificate of zoning compliance, pursuant to section 134-1.7 of chapter 134 of this Code.

(6) Development plan approval, pursuant to division 11 (R-5), division 12 (R-6), division 13 (PUD), division 14 (PBP) and division 23 (C-4) of article III of chapter 134 this Code if approved prior to December 15, 2019, and pursuant to legacy PUD approval in chapters 134 and 135 of this Code if approved on or after December 15, 2019.

(b) *Required information.* Every application for a certificate of compliance shall contain the following information, which information shall be provided for city review and consideration prior to issuance of a certificate of compliance pursuant to subsection (c) of this section:

(1) A description of the work for which application is to be made.

(2) A description of the land on which the proposed work is to be done (i.e., lot, block, tract, street address or similar description) that will readily identify and locate the work to be done.

(3) Indication of the use or occupancy for which the proposed work is intended.

(4) A report showing the elevation, in relation to National Geodetic Vertical Datum, of the lowest floor, including basement, of a building and of the level to which a building is to be floodproofed. In addition, such report shall include such information regarding the elevation of the 100-year flood and flood velocities during the 100-year flood as the city engineer deems reasonably necessary for the purpose of this article. Such report shall be prepared by a professional engineer registered under state laws, which report shall be approved by the city engineer as to method and form.

(5) For buildings being improved or rebuilt, the estimated cost of improvements and market value of the building prior to the improvements.

(6) Volumetric calculations demonstrating compensatory storage when required by this article.

(7) Geotechnical investigation report and records of soil testing and inspection when required by this article.

(8) A recorded copy of the applicable nonconversion agreement, showing the book and page number and recording date, for detached garages, sheds, and similar accessory structures to which section 50-34(10) of this article applies.

(9) Such other information as the city engineer deems reasonably necessary for the purpose of this article.

(c) *Determination and action.* The city engineer shall review each floodplain development application and shall, within a reasonable time, make a determination as to whether the proposed development meets the applicable performance standards of section 50-34 of this article and, on the basis of such determination, shall issue or deny the certificate of compliance. For a denial, the

applicant shall be informed, in writing, of the specific reasons therefore and shall have the right to appeal to the city council for a variance of the requirements of this article on the grounds that (i) the city engineer made an erroneous determination or (ii) an exception or modification should be made to the full application of the performance standards of section 50-34 of this article in order to avoid unnecessary hardship to the applicant or to further the public interest. The city council shall authorize such a variance only as follows:

(1) Variances shall only be issued upon (i) a showing of good and sufficient cause, (ii) a determination that failure to grant the variance would result in exceptional hardship to the applicant, and (iii) a determination that the granting of the variance will not result in increased flood heights, additional threats to public safety, extraordinary public expense, create nuisances, cause fraud on or victimization of the public or conflict with existing local codes or ordinances.

(2) Variances shall not be issued within any designated floodway if any increase in flood levels during the 100-year flood would result. Consideration of the effects of any development on flood levels shall be based upon the assumption that an equal degree of development would be allowed for similarly situated lands.

(3) Variances shall only be granted upon a determination that the variance is the minimum necessary, considering the flood hazard, to afford relief.

(4) In cases where the variance involves a lower level of flood protection for buildings than what is ordinarily required by this article, the applicant shall be notified in writing over the signature of the city engineer that: (i) the issuance of a variance will result in increased premium rates for flood insurance up to amounts as high as $25.00 for $100.00 of insurance coverage and (ii) such construction increases risks to life and property. This statement shall be maintained as a required record under section 50-35(e) below.

(5) All variances granted shall have the concurrence or approval of the department of natural resources.

(6) In addition to the above conditions in this subsection, variances may be issued for the repair or rehabilitation of historic structures upon a determination that the proposed repair or rehabilitation will not preclude the structure's continued designation as a historic structure and the variance is the minimum necessary to preserve the historic character and design of the structure.

All actions by the city council in granting or denying appeals shall be by written decision setting forth the specific reasons therefore. The city council may attach such conditions to the granting of an exception or modification as it deems necessary to further the purposes of this article. If an appeal is granted by the city council, the city engineer shall thereafter issue a certificate of compliance.

(d) *Construction and use as provided in application and plans.* Certificates of compliance issued on the basis of approved plans and applications authorize only the use, arrangement and construction set forth in such approved plans and applications and no other use, arrangement or construction. Any use, arrangement or construction at variance with that authorized shall be deemed a violation of this article and shall be punishable as provided in section 50-36 of this article. The applicant shall be required to submit certification by a professional engineer or land surveyor, as appropriate, registered in the state, that the finished fill, building floor elevations, floodproofing, or other flood protection measures were accomplished in compliance with this article prior to the use or occupancy of any structure.

(e) *Required records.* The city engineer shall compile and maintain records of actions taken on all requests for a certificate of compliance, including justification for issuance or denial. The city permit and development center shall compile and maintain records of the elevation, in relation

to National Geodetic Vertical Datum, of the lowest floor, including basement, of all new and substantially improved buildings within floodplain areas.
(C79, § 12-10; O.10,027; C85, § 12-10; O.10,991; C91, § 12-10; O.11,773, 13,269, 15,311, 15,722, 15,819, 15,919)

Sec. 50-36. Penalties.

Any person who fails to perform an act required by this article or who commits an act prohibited by this article shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code, or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.
(C79, § 12-11; O.10,027; C91, § 12-11; O.15,608)

Chapters 51—53

RESERVED

Chapter 54

HEALTH AND SANITATION*

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*__Cross references—__Animals, ch. 18; buildings and building regulations, ch. 26; environment, ch. 42; floodplains, ch. 50; offenses against public health, § 70-121 et seq.; solid waste, ch. 98; utilities, ch. 118; sewer district, app. G.

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Article VI. Entertainment Arcades

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ARTICLE I. IN GENERAL

Sec. 54-1. Cleanliness of premises.

Every person owning or occupying premises in the city is required to keep them clean and free from all offensive material which is likely to engender offensive odors and sights.
(C42, § 35-4; C54, C62, § 24-74; C75, C79, C91, § 13-37)

Secs. 54-2—54-30. Reserved.

ARTICLE II. ADMINISTRATION AND ENFORCEMENT*

DIVISION 1. GENERALLY

Sec. 54-31. Enforcement.

Except as otherwise provided, the environmental health division shall enforce this chapter. Every member of the police department, upon being advised or discovering that any of the sections of this chapter is being violated, may make a report of the violation through the chief of the police department to the community development department.
(C42, § 35-33; C54, C62, § 24-81; C75, C79, § 13-44; O.9830; C91, § 13-44; O.13,012)

Sec. 54-32. Civil violations and penalties.

(a) Any person who violates or resists the enforcement of any of the sections of this chapter shall be guilty of a municipal infraction punishable by a civil penalty of $100.00 for the initial offense and $200.00 for each repeat offense. Each day that a municipal infraction occurs constitutes a separate offense. Any person who violates a section of this chapter after having previously been found guilty of violating the same section of this chapter at the same location or at a different location shall be guilty of a repeat offense. This municipal infraction penalty shall be in addition to the penalties provided for in section 1-15 of this Code.

(b) Seeking a civil penalty as authorized in this section does not preclude the city from seeking alternative relief, including an order for abatement or injunctive relief, from the court in the same action or as a separate action.
(C85, § 13-2; O.11,030, 11,445; C91, § 13-2)

Secs. 54-33—54-60. Reserved.

DIVISION 2. ENVIRONMENTAL HEALTH OFFICER

Sec. 54-61. Appointment; powers and duties.

(a) There is established in the city, within the community development department, the environmental health division, which shall be under the direction and supervision of the environmental health officer. The environmental health officer shall be appointed by and responsible to the director of the community development department. Such officer shall be responsible for those matters pertaining to health and sanitation in the community over which the city has jurisdiction by virtue of ordinance, statute or agreement and shall carry out those health policies assigned by the city council and the city manager.

(b) Whenever the environmental health official or his or her designee finds a public nuisance exists which requires immediate action to protect the public health and safety, such official may issue an order reciting its existence and requiring that action be taken as he or she deems necessary. The action required by such official shall depend upon the nature of the nuisance, the danger to the public which the nuisance presents, the condition and deterioration of the premises and the time reasonably necessary to take the required action. If the owner does not comply with the order within the time specified in such order, such official may authorize the taking of that action specified in the order. Any costs incurred may be assessed against the property or a personal judgment taken against the responsible party.

(c) A copy of the order shall be sent to all owners reasonably known to the environmental health officer or his or her designee at their last known addresses. Notice of the order shall be

*__Cross reference—__Administration, ch. 2.

given to all owners, tenants, and other persons holding a property interest in the premises who are reasonably known to such official. The method by which such notice shall be given shall be that method which shall give such notice within the shortest practicable period of time, considering the nature of the emergency and any difficulties in notifying the owners. If an owner or other person holding a property interest in the premises cannot be found, an affidavit shall be completed by the person attempting to locate such person, describing the efforts made, and held on file.
(C54, § 24-1; O.5730, 5860; C62, § 24-1; O.7721; C75, C79, § 13-1; O.9830, 10,154; C91, § 13-1; O.13,012, 13,137)

Secs. 54-62—54-90. Reserved.

ARTICLE III. FILLING OR DRAINING OF DEPRESSIONS AND EXCAVATIONS

Sec. 54-91. Duty of owner or occupant of premises.

When any depression or excavation upon any lot or premises in the city shall from any cause whatsoever become the repository of stagnant water or any other decayed or offensive substance, liquid or solid, the owner or occupant of the premises, within three days after receiving written notice from the environmental health division, shall cause such depression or excavation upon any of such premises to be drained or filled with clean earth within the time specified in the notice.
(C42, § 35-19; C54, C62, § 24-17; C75, C79, § 13-18; O.9830; C91, § 13-18; O.13,012)

Sec. 54-92. Breeding places for mosquitoes.

No person shall allow stagnant water likely to afford breeding places for mosquitoes within the corporate limits, including stagnant water in fish ponds, swimming pools, tires, open barrels, ravines and other substances holding water. When such a situation is discovered the environmental health division shall notify the owner and occupant of the property on which the violation exists, in writing, of the remedial action required and shall allow a specified time reasonable for performance of the required action. Failure on the part of the owner and occupant of the property to take such remedial action shall be a violation of this section.
(C75, § 13-18.01; O.9037; C79, § 13-18.01; O.9830; C91, § 13-18.01; O.13,012)

Sec. 54-93. Authority of council.

(a) The city council may at any time, by resolution, order and require any lot or parcel of land in the city, subject at any time to be covered with stagnant water, to be filled and raised or adequately drained and shall also fix a reasonable time for the completion of the work.

(b) Upon the passage of such resolution a copy thereof shall be issued by the city clerk and shall be served upon the owner of the lot or parcel of land, either personally or by leaving a copy of the resolution at his or her usual place of residence. Service may be proved by the return of the person making it, endorsed on the back of the original copy of the resolution issued by the city clerk. The return of service shall be filed in the office of the city clerk after having been duly served.

(c) If the owner of such lot or parcel of land shall be a nonresident of the city, notice shall be given by the city clerk by publication in two newspapers of general circulation published in the city once each week for two consecutive weeks. Publication may be proved by the affidavit of the publisher or appropriate representative of the newspaper in which the publication was made, which shall be filed with the city clerk.
(C42, § 35-20; C54, C62, § 24-18; C75, C79, C91, § 13-19)

Sec. 54-94. Work done by city.

If the owner of any lot or parcel of land shall, after notice in the manner provided in section 54-93 of this article, neglect or refuse to fill and raise or adequately drain a lot or parcel of land as designated in such resolution, within the time therein specified, to the height prescribed therein, the city council may cause such filling and raising to be done, and the cost thereof, including incidental expenses, shall be assessed against the

property and shall also be a lien on the lot and parcel of land from the time of adopting the resolution.
(C42, § 35-21; C54, C62, § 24-19; C75, C79, C91, § 13-20)

Sec. 54-95. Supervision of work by city.

Whenever the city council shall cause any lot or parcel of land to be raised and filled or drained in consequence of the neglect or refusal of the owner, within the time specified, to comply with the order of the city council requiring the work to be done, the work, whether executed by contract or otherwise, shall be performed under the supervision of the department of public works.
(C42, § 35-22; C54, C62, § 24-20; C75, C79, C91, § 13-21)

Sec. 54-96. Duty of department of public works upon completion of work.

Upon the completion of the filling and raising or draining of any lot or parcel of land by the department of public works, that department shall ascertain the cost thereof, including the cost of notices, preparing the assessment and the schedule. It shall also ascertain what portion of the cost is by law and city ordinance assessable upon the property filled and raised or drained and shall prepare and file with the city clerk a report thereof, together with a schedule showing the separate lots or parcels of land subject to assessment for the cost, the names of the owners thereof, as far as practicable, and the amount to be assessed against each lot and parcel of land.
(C42, § 35-22; C54, C62, § 24-21; C75, C79, C91, § 13-22)

Sec. 54-97. Notice of filing of report; objections to proceedings; assessment.

After the report and schedule referred to in section 54-96 of this article is filed, the city clerk shall give notice by publication in two newspapers published in the city, once each week for two consecutive weeks, that the report and schedule are on file and that prior to a date named, which must be at least 20 days after the first publication of the notice, all objections to the schedule and the assessment proposed and the prior proceedings on account of errors, irregularities or inequalities must be made in writing and filed with the city clerk. The council, after hearing the objections and making necessary corrections, shall by resolution assess upon the lots and parcels of land, upon which such improvements were made, the entire cost of the filling and raising or draining or so much thereof as may be by law or ordinance assessable as shown in the schedule as corrected and approved.
(C42, § 35-21; C54, C62, § 24-22; C75, C79, C91, § 13-23)

Sec. 54-98. Interest on assessment; lien.

The amount of any assessment made pursuant to this article shall bear interest at six percent per annum from the date of the assessment and shall be certified to the county auditor, shall be placed on the tax list, shall be a lien, shall bear interest and shall be collected the same as special taxes levied for street improvements.
(C42, § 35-23; C54, C62, § 24-23; C75, C79, C91, § 13-24)

Sec. 54-99. Tax.

If the owner of any lot or parcel of land, the assessment of which is embraced in any certificate provided for in section 54-100 of this article, shall, within 30 days after the assessment is made, promise and agree in writing, endorsed on such certificate or in a separate agreement, that in consideration of having the right to pay his or her assessment in installments he or she will not make any objection because of any illegality or irregularity as to the assessment or levy of the tax upon and against his or her property and will pay the assessment or tax with interest at six percent per annum. Such tax as levied shall be payable in four equal installments, which shall mature and be payable at the time and in the manner provided for assessments for street improvements. If no such promise and agreement in writing is made, the whole of the tax, with interest, shall mature at one time and shall be due and payable, with interest, on the date of assessment and shall be collected at the next succeeding March semiannual payment of ordinary taxes.
(C42, § 35-23; C54, C62, § 24-24; C75, C79, C91, § 13-25)

Sec. 54-100. Assessment certificates.

When the contract with the contractor for raising and filling or draining lots or parcels of land as provided in this article shall provide for the payment of the cost of raising and filling or draining such lots and parcels of land in assessment certificates, the city clerk shall issue and deliver to the contractor assessment certificates for the amount assessed to such property for raising and filling or draining by the contractor. Each such certificate shall state the amount of one or more assessments and shall designate the property assessed and the owner thereof and shall transfer to the contractor, assigns or bearer the assessment and shall authorize him or her to collect and receive the amount thereof, with interest at the rate of six percent per annum, by any method provided by law. The amount of the assessment with interest may be paid by the taxpayer to the county treasurer, who shall receipt for the payment and cause the amount thereof to be applied to the payment of the certificate issued therefor or may pay the assessment to the city clerk, who shall apply the amount to the payment of such certificates.
(C42, § 35-24; C54, C62, § 24-25; C75, C79, C91, § 13-26)

Secs. 54-101—54-125. Reserved.

ARTICLE IV. MANURE

Sec. 54-126. Removal.

The owner or occupant or tenant or keeper of any boarding, sales, livery stable or other stable or other premises where any horse, mule, cow or other domestic animal is kept shall remove or cause to be removed all manure from such stable or premises at least twice weekly from March 15 to December 1 or more often as deemed necessary and once a week from December 1 to March 15. The owner, occupant, tenant or keeper shall be required to store in flyproof receptacles, not accessible to flies, all such manure pending its removal.
(C42, § 35-25; C54, C62, § 24-64; C75, C79, § 13-27; O.9830; C91, § 13-27)

Sec. 54-127. Use as fertilizer.

From June 1 to October 1, manure shall not be used as fertilizer on gardens, lots or other open areas, unless and until thoroughly mixed with soil and so covered with soil that flies will not be attracted thereto.
(C42, § 35-26; C54, C62, § 24-65; C75, C91, § 13-28)

Sec. 54-128. Dumping.

No manure shall be dumped or left on the street, sidewalk, alley or open area or lot in any inhabited section nor shall it be used to grade, in whole or in part, any sidewalk, street, alley, open area or lot in such section.
(C42, § 35-27; C54, C62, § 24-66; C75, C79, § 13-29; O.9830; C91, § 13-29)

Sec. 54-129. Conveying through streets.

Manure shall be conveyed through the streets in the city in such vehicles only as are properly protected against flies by suitable covering.
(C42, § 35-28; C54, C62, § 24-67; C75, C79, C91, § 13-30)

Sec. 54-130. Stacking for fertilizer.

All manure stacked or piled for fertilizing purposes on any truck farm or garden in a thickly settled neighborhood shall be so stacked or piled at a distance of not less than 50 feet from any buildings used, in whole or in part, for dwelling purposes. It shall be stored in a closed bin or screened receptacle so as to prevent access of flies thereto.
(C42, § 35-29; C54, C62, § 24-68; C75, C79, C91, § 13-31)

Sec. 54-131. Duty of owner's agent.

Whenever the duty is put upon the owner of any premises, stable, lot, open area or public place in this article in the owner's absence, his or her agent shall comply with this article. For the purposes thereof any person receiving or collect-

ing rent or attending to such property in any manner shall be deemed to be the agent of the owner.
(C42, § 35-30; C54, C62, § 24-69; C75, C79, C91, § 13-32)

Sec. 54-132. Receptacles.

Every person owning, controlling, operating or having in charge any stable, barn or other place where horses, mules, cows or other livestock are kept shall have and maintain at all times upon the premises a flytight receptacle of sufficient dimensions for the purpose of containing the droppings of manure from stock. The receptacle shall have a top or lid so arranged as to be flytight and to exclude therefrom all flies and therein to deposit promptly all droppings from stock. The lid shall be kept thereon, except when necessarily open for the purpose of depositing therein or removing therefrom, and shall be closed in such a manner as to prevent the ingress of flies. Every person having or keeping manure in the city shall cause the manure to be removed from the premises at least once a week or more often if required by the department of building.
(C42, § 35-31; C54, C62, § 24-70; C75, C79, § 13-33; O.9830; C91, § 13-33)

Sec. 54-133. Removal from streets and alleys.

All receptacles for manure from any animal mentioned in this article and the receptacles for filth, offal, debris or refuse of any kind located in any street, alley or public place shall be removed therefrom by the owner, agent or occupant of the premises adjoining the place where the receptacle is located.
(C42, § 35-32; C54, C62, § 24-71; C75, C79, C91, § 13-34)

Secs. 54-134—54-160. Reserved.

ARTICLE V. RAT AND PEST CONTROL

Sec. 54-161. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Business building means any structure, whether public or private, that is adapted for occupancy for transaction of business; for rendering of professional service; for amusement; for the display, sale or storage of goods, wares or merchandise; or for the performance of work or labor, including hotels, apartment buildings, tenement houses, roominghouses, office buildings, public buildings; and stores, theaters, markets, restaurants, grain elevators, abattoirs, warehouses, workshops and factories. It shall also include all outbuildings, sheds, barns and other structures on premises used for business purposes.

Health officer means the health officer or any employee or representative authorized by such officer who shall be the legally designated city health official and who shall have the responsibility for administering and enforcing this article.

Occupant means the individual who or partnership or corporation that uses or occupies any premises or building or part or fraction thereof, whether the actual owner or tenant. For vacant premises or buildings or vacant portions thereof, the owner, agent or custodian shall have the responsibility as occupant.

Owner means the actual owner, agent or custodian of the premises or building, whether individual, partnership or corporation. The lessee shall be construed as the "owner" for the purpose of this article when building agreements hold the lessee responsible for maintenance and repairs.

Rat eradication means the elimination or extermination of rats either on premises or within or without buildings by any or all of the measures accepted by the public health procedures or pest control service.

Rat harborage means any condition which provides shelter or protection for rats, thus favoring

their multiplication and continued existence in, under or outside of any structure or on any premises.

Ratproofing applies to a form of construction to prevent the ingress of rats into business buildings from the exterior or from one business building or establishment to another. It consists essentially of treatment with material, impervious to rat gnawing, of all actual or potential openings in exterior walls, ground or first floor, basement, roof and foundation that may be reached by rats from the ground by climbing or by burrowing.
(C42, § 42-1.01; O.5024; C54, § 46-1; O.6730; C62, § 46-1; O.8899; C75, C79, § 13-63; O.9830; C91, § 13-63)

Cross reference—Definitions generally, § 1-2.

Sec. 54-162. Ratproofing of business buildings.

All business buildings in the city shall be ratproofed, freed of rats and maintained in a ratproof and ratfree condition.
(C42, § 42-1.02; O.5024; C54, C62, § 46-2; C75, C79, C91, § 13-64)

Sec. 54-163. Notice to begin work.

Upon receipt of a written notice or order from the health officer, the owner of any business building specified therein shall take immediate measures for ratproofing the building.
(C42, § 42-1.03; O.5024; C54, C62, § 46-3; C75, C79, § 13-65; O.9830; C91, § 13-65)

Sec. 54-164. Failure to complete work as required by notice.

Unless the work and improvements have been completed by the owner in the time specified in the written notice required by section 54-163, in no event to be less than 15 days, or within the time to which a written extension may have been granted by the health officer, the owner shall be deemed guilty of an offense under this article.
(C42, § 42-1.03; O.5024; C54, C62, § 46-4; C75, C79, § 13-66; O.9830; C91, § 13-66)

Sec. 54-165. Failure to begin and maintain work of eradication.

Whenever the health officer notifies the owner or occupant of any building or any premises, improved or vacant, or any open lot or alley in the city in writing that there is evidence of rat infestation, the owner or occupant shall immediately institute rat eradication measures and shall continuously maintain such measures until the premises are declared by the health officer to be free of rat infestation. Unless such measures are undertaken within five days after receipt of the notice, it shall be construed as a violation of this article, and the owner or occupant shall be held responsible therefor.
(C42, § 42-1.04; O.5024; C54, § 46-5; O.6730; C62, § 46-5; C75, C79, § 13-67; O.9830; C91, § 13-67)

Sec. 54-166. Duty of owners.

The owners of all ratproofed business buildings are required to maintain the premises of such buildings in a ratproof condition and to repair all breaks or leaks that may occur in the ratproofing without a specific order of the health officer.
(C42, § 42-1.05; O.5024; C54, C62, § 46-6; C75, C79, § 13-68; O.9830; C91, § 13-68)

Sec. 54-167. Inspection by health officer.

The health officer is empowered to make unannounced inspections of the interior and exterior of business buildings to determine full compliance with this article. When any evidence is found indicating the presence of rats or openings through which rats may again enter a business building, the health officer shall serve the owner or occupant with a notice or order to abate the conditions found.
(C42, § 42-1.06; O.5024; C54, C62, § 46-7; C75, C79, § 13-69; O.9830; C91, § 13-69)

Sec. 54-168. Authority to order major repairs.

Whenever conditions inside or under occupied business buildings provide extensive harborage for rats, the health officer is empowered, after due notification in accordance with section 54-163 of this article, to order ratproofing pursuant to that section and rat eradication pursuant to section

54-165 of this article. He or she may also order, if necessary, the installation of suitable concrete floors in basements or replacements of wooden first or ground floors with concrete or other major repairs to facilitate rat eradication.
(C42, § 42-1.07; O.5024; C54, C62, § 46-8; C75, C79, § 13-70; O.9830; C91, § 13-70)

Sec. 54-169. Institution of condemnation and destruction proceedings in unoccupied buildings.

Whenever conditions inside or under unoccupied buildings provide extensive harborage for rats, the health officer is empowered to require compliance with section 54-164 of this article. If such conditions are not corrected within a time period specified by the health officer, the health officer is empowered to institute condemnation and destruction proceedings.
(C42, § 42-1.08; O.5024; C54, C62, § 46-9; C75, C79, § 13-71; O.9830; C91, § 13-71)

Sec. 54-170. Barns and sheds.

Whenever conditions inside or under sheds, barns and other structures on all premises provide extensive harborage for rats, the health officer is empowered, after due notification in accordance with section 54-163 of this article, to institute condemnation and destruction proceedings.
(C42, § 42-1.08; O.5024; C54, C62, § 46-10; C75, C79, § 13-72; O.9830; C91, § 13-72)

Sec. 54-171. Removal of ratproofing; making new openings.

Under this article the occupant, owner, contractor, public utility company, plumber or any other person shall not remove and fail to restore in a like condition the ratproofing from any business building for any purpose. No person or agent shall make any new openings that are not closed or sealed against the entrance of rats.
(C42, § 42-1.09; O.5024; C54, C62, § 46-11; C75, C79, C91, § 13-73)

Sec. 54-172. Construction, remodeling or repair to comply.

No person shall construct, repair or remodel any business building, stable, market or other structure covered by this article, unless it shall render the building or other structure ratproof in accordance with this article. This section applies only to such construction, repairs, remodeling or installation as affect the ratproof condition of any building or other structure.
(C42, § 42-1.10; O.5024; C54, C62, § 46-12; C75, C79, C91, § 13-74)

Sec. 54-173. Buildings where foodstuffs are handled.

No person shall occupy any new or existing business buildings wherein foodstuffs are to be stored, kept, handled, sold, held or offered for sale without complying with section 54-172 of this article. Unless there is compliance with this section, no city license or permit to conduct or carry on such business, as defined in this section, will be issued.
(C42, § 42-1.11; O.5024; C54, C62, § 46-13; C75, C79, C91, § 13-75)

Sec. 54-174. Storage of animal feed.

All food and feed within the city for feeding chickens, cows, pigs, dogs, birds, horses and other animals shall be stored in ratfree and ratproof containers, compartments or rooms unless stored in a ratproof building.
(C42, § 42-1.12; O.5024; C54, C62, § 46-14; C75, C79, § 13-76; O.9830; C91, § 13-76)

Sec. 54-175. Garbage and dead animals.

Within the corporate limits, all garbage or refuse consisting of waste animal or vegetable matter upon which rats, dogs, or other animals may feed and all small dead animals shall be placed and stored until collected in covered containers of a type permitted by section 98-58 of this Code. No person shall dump or place on any premises, land or waterway any dead animals or any waste vegetable or animal matter of any kind.
(C42, § 42-1.13; O.5024; C54, C62, § 46-15; O.8181; C75, C79, C91, § 13-77)

Sec. 54-176. Accumulation of garbage, rubbish and trash.

No person shall place, leave, dump or permit to accumulate any garbage, rubbish or trash in any

building, dwelling, or on any premises, improved or vacant, or on any open lot or alley in the city so that such shall or may afford food or harborage for rats.
(C42, § 42-1; O.5024; C54, C62, § 46-16; C75, C79, § 13-78; O.9830; C91, § 13-78)

Sec. 54-177. Storage of lumber, barrels, bottles, cans and containers.

No person shall permit to accumulate on any premises, improved or vacant, or on any open lot or alley in the city lumber, boxes, barrels, bottles, cans, containers or materials if such may be determined by the health officer to constitute a rat harborage. The health officer is empowered to order such materials or articles placed on open racks that are elevated not less than 18 inches above the ground and evenly piled or stacked or may otherwise order such materials or articles be stored in such a manner so as to not constitute a rat harborage. This section shall not apply to any person manufacturing or dealing in such articles or commodities.
(C42, § 42-1.16; O.5024; C54, C62, § 46-17; C75, C79, § 13-79; O.9830; C91, § 13-79)

Secs. 54-178—54-230. Reserved.

ARTICLE VI. ENTERTAINMENT ARCADES

Sec. 54-211. Definitions.

The following terms as used in this article shall have the following meanings:

Entertainment arcade means any place to which the public is admitted wherein one or more coin or slug-operated or electrically, electronically, or mechanically controlled still or motion picture machines. projectors, or video cassettes are maintained for the purpose of showing still or motion pictures or videos, or where other forms of entertainment is viewed for a fee; provided, however, "entertainment arcade" shall not include any building or portion of a building which constitutes an assembly occupancy as defined by chapter 26 of this Code and shall not include hotels or motels.

Person means employee, agent, partner, director, officer, stockholder, or manager of any entertainment arcade.
(O.13,749)

Sec. 54-212. Requirements for booths and partitions.

(a) Booths, stalls or rooms within an entertainment arcade shall be maintained open, with no doors, curtains, or other closure devices of any kind.

(b) Dividers, partitions, or walls separating or enclosing viewing booths, stalls or rooms within an entertainment arcade shall be solid with no openings or holes through to the other side. A door otherwise required by chapter 26 of this Code is not considered an opening or hole for purposes of this subsection.
(O.13,749)

Sec. 54-213. Violations.

(a) No person shall maintain an entertainment arcade that is not in compliance with the requirements of section 54-212 of this article.

(b) No person shall knowingly allow or permit any act of sexual intercourse, sodomy, oral copulation, or masturbation to be committed in an entertainment arcade, or knowingly permit or allow an entertainment arcade to be used as a place in which solicitations for sexual intercourse, sodomy, oral copulation, or masturbation openly occur.
(O.13,749)

Chapters 55—57

RESERVED

Chapter 58

HISTORICAL PRESERVATION*

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Article IV. Historic Review of Proposed Demolition

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Sec. 58-70. Historic review.

*__Cross references—__Buildings and building regulations, ch. 26; environment, ch. 42; planning, ch. 82; zoning ordinance, ch. 134.

ARTICLE I. IN GENERAL

Secs. 58-1—58-25. Reserved.

ARTICLE II. HISTORIC DISTRICTS

Sec. 58-26. Purpose.

It is declared as a matter of public policy that the protection, enhancement and perpetuation of districts of historical and cultural significance is required in the interest of the health, prosperity, safety and welfare of the public. The purpose of this article is to:

(1) Promote the educational, cultural, economic and general welfare of the public through the protection, enhancement and perpetuation of districts of historical and cultural significance;

(2) Safeguard the heritage of the city by preserving districts in the city which reflect the elements of its cultural, social, economic, political, historical, aesthetic and architectural significance;

(3) Stabilize and improve property values and the equity held by the citizens in their property;

(4) Foster civic beauty and pride and enhance civic design;

(5) Protect and enhance the city's attraction to tourists and visitors;

(6) Strengthen the economy of the city;

(7) Facilitate the rehabilitation and revitalization of certain older neighborhoods; and

(8) Provide for a variety of living experiences within the city for both old and new residents.

(C79, § 2-205.43; O.9937; C91, § 2-205.43)

Sec. 58-27. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alteration means any action to change, modify, reconstruct, remove or demolish any exterior features of an existing structure. For the purposes of this article, ordinary maintenance and repair to correct any deterioration, decay or damage to a structure and to restore the structure as nearly as practicable to its condition prior to such deterioration, decay or damage are excluded from the definition of the term "alteration," provided such work does not involve a change in type of building materials. For the purposes of this article, changes made in the type and design of storm windows and in the color of the outer surfaces of a structure are considered to be ordinary maintenance and repair.

Applicant means the party making application for a certificate of appropriateness from the historic preservation commission.

Commission means the historic preservation commission.

Construction means the act of building, erecting or placing any structure on a site.

Exterior features means the architectural style, general design and general arrangement of the exterior of a building or other structure, including the kind and texture of the building material and the type and style of all windows, doors, light fixtures, signs and other appurtenant fixtures. For an outdoor advertising sign, the term "exterior features" means the style, material, size and location of the sign.

Plan of preservation means a prioritized list of the needed work and the timeframe for completing work, accompanied by appropriate written and illustrative materials such as photographs, plans, and printed and written documentation.

Property owner means an individual or corporation who is the owner of real estate for taxation purposes.

Structure means anything constructed or erected with a fixed location on the ground or attached to something with a fixed location on the ground. Among other things, structures include buildings, walls, fences, gates, towers,

mobile homes, billboards, poster panels, utility poles, streets, sidewalks, alleys and hard-surfaced parking areas. For the purposes of this article, freestanding flagpoles and yard lights are excluded from the definition of the term "structure."
(C79, § 2-205.44; O.9937; C91, § 2-205.44; O.14,231)

Cross reference—Definitions generally, § 1-2.

Sec. 58-28. Designation criteria.

(a) For the purpose of this article, a historic district designation may be placed upon any area containing contiguous pieces of real estate under diverse ownership which:

(1) Are significant in American history, architecture, archaeology and culture; and

(2) Possess integrity of location, design, setting, materials, workmanship, feeling and association; and

(3) Are associated with events that have been a significant contribution to the patterns of our history; or

(4) Are associated with the lives of persons significant in our past; or

(5) Embody the distinctive characteristics of a type, period, or method of construction or represent the work of a master or possess high artistic values or represent a significant and distinguishable entity whose components may lack individual distinction;

(6) Have yielded or may be likely to yield information important in prehistory or history.

(b) Designation of an area as a historic district shall be proposed either by the city council on its own motion or by the filing of a petition with the development services department, on a standard form approved by that department, which shall be furnished by that department upon request. Each such petition shall include but not be limited to the following:

(1) Signatures of the owners of 51 percent of the total number of parcels of real estate within the proposed district, excluding parcels owned by governmental bodies, provided that each parcel, within the meaning of this subsection, shall constitute a separate parcel for property tax assessment purposes, as shown in the records of the county assessor on the date of the filing of the petition.

(2) A vicinity map showing the general location of the proposed district.

(3) The legal description of the boundary of the proposed district.

(4) A statement documenting the area's historical, architectural and cultural significance.

(5) A plat, at a scale of not more than 400 feet to the inch, showing the existing uses of all properties within the proposed district.

(c) The development services department shall submit a description of the proposed district or the petition describing the proposed district, if a petition has been filed, to the historical division of the state department of cultural affairs for its report and recommendations. If the historical division determines that the proposed district does not meet the requirements of state law for designation as a historic district, no further action shall be taken toward designation of the proposed district. The report and recommendations of the historical division shall be made available for public viewing at the office of the development services department.
(C79, § 2-205.45; O.9937; C91, § 2-205.45; O.13,010, 16,344)

State law reference—Areas of historical significance, I.C. § 303.34.

Sec. 58-29. Procedures.

(a) The procedures of this section shall apply to all proposals for designation of historic districts, provided such proposals meet the criteria set forth in section 58-28 of this article. The procedures of this section shall also apply to all proposed amendments to the boundaries of existing historic districts, which amendments may be initiated by the city council, the historic preservation commission or the plan and zoning commis-

sion. The procedures of this section shall also apply to all proposals for repeal of an existing historic district, which may be proposed either by the city council on its own motion or by the filing of a petition signed by the owners of 51 percent of the total number of parcels of real estate within the proposed district, excluding parcels owned by governmental bodies, provided that each parcel, within the meaning of this subsection, shall constitute a separate parcel for property tax assessment purposes, as shown in the records of the county assessor on the date of the filing of the petition.

(b) Each such proposal shall be scheduled for separate public hearings before the historic preservation commission and the plan and zoning commission, except that no such hearing shall be held before the historic preservation commission on the proposal for designation of the city's first historic district. The historic preservation commission shall give prior notice of the time, date, place and subject matter of such hearing. Such notice shall be served by regular mail addressed to each property owner of land included within such proposal at his or her last known address, or if the address of any such property owner is unknown, such notice shall be served by regular mail addressed to "owner" at the street address of the property in question. After public hearing, the historic preservation commission and the plan and zoning commission shall each forward its report and recommendations concerning such proposal to the city council.

(c) Upon receipt of such reports and recommendations, the city council shall schedule a public hearing to consider such proposal and shall provide notice of such hearing as required by law. After public hearing, the city council shall act to approve, approve with modification, or disapprove such proposal. In so acting the city council may delete area from the original proposal, but the council shall not add area which was not included in the original proposal. The designation, amendment or repeal of a historic district shall each be completed on the effective date of an ordinance relating thereto. A copy of each such ordinance shall be forwarded to the historical division of the state department of cultural affairs.

(C79, § 2-205.46; O.9937; C91, § 2-205.46; O.14,231)

Sec. 58-30. Historic preservation commission.

(a) A historic preservation commission is created. The commission shall consist of six at large members and two residents from each designated historic district. At the time of their appointment, each member shall have a demonstrated interest in historic preservation, and at least four of the at large members shall have at least one of the following professional qualifications by education, training or experience: architect, landscape architect, urban planner, structural or civil engineer, historian, architectural historian, sociologist, archeologist, real estate broker, real estate attorney or builder. No appointment of an at-large member shall be effective if it results in the appointment of a third at-large member without the required professional qualifications. As soon as practical, but in any event within one year after their initial appointment to the commission, each person appointed to the commission shall attend at least one training seminar providing training on the duties of a local historic preservation review commission. The chair of the commission shall promptly report to the city council the name of any member of the commission who does not timely satisfy this training requirement. All references in this code to the historic preservation commission shall be interpreted to refer to the historic preservation commission.

(b) Each member of the city council other than the mayor may recommend a candidate to fill one of the at large positions on the commission. The mayor may recommend candidates to fill each of the positions required to be held by a resident of a designated historic district. If the recognized neighborhood association for a recognized historic district has provided the city council with a list of at least three qualified candidates, the mayor shall recommend one of those candidates to fill any position required to be held by a resident of that district. The commission shall endeavor to provide the city council with a list of at least three qualified candidates willing to accept appointment to the commission whenever a vacancy occurs in any at large position, or in any position required to be held by a resident of a specific district when a

list of qualified candidates has not been provided by the recognized neighborhood association for that district. Each commission member shall be appointed for a term of three years.

(c) The commission annually, during December, shall elect a chair and vice chair from among its members. The development services department is hereby designated as the secretary and staff of the commission; and the office of the development services department shall be the office of the commission.

(d) The meetings of the commission shall be held at the call of the chair and at such other times as the commission or its staff may determine. All meetings of the commission shall be open to the public. The commission shall keep minutes of its proceedings, showing the vote of each member on each question, or if absent and failing to vote, indicating that fact, and shall keep written records of its other official actions, all of which shall be on file in the office of the development services department and shall be a public record. A majority of the membership of the commission shall be necessary to constitute a quorum.

(e) The commission shall have the following powers and duties:

(1) The commission shall review and act upon all applications for a certificate of appropriateness, pursuant to section 58-31 of this article.

(2) The commission shall adopt the rules and regulations necessary to carry out its powers, duties and responsibilities. These shall include the adoption of the 1983 or later revised edition of the Secretary of the Interior's Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings and the establishment of additional design guidelines, standards and criteria for reviewing and approving applications for certificates of appropriateness, pursuant to section 58-31 of this article, provided that all such design guidelines, standards and criteria shall be approved by the city council and shall be copied and made available to property owners within each historic district.

(3) The commission shall review and make recommendations to the city council concerning all proposals for designation of historic districts, all proposed amendments to the boundaries of existing historic districts, and all proposals for repeal of existing historic districts, pursuant to section 58-29 of this article. However, no such recommendations shall be made by the commission until after the designation of the city's first historic district.

(4) The commission shall cooperate with property owners and city agencies and departments to develop preservation solutions and plans, pursuant to section 58-33 of this article.

(5) The commission shall further the efforts of historic preservation in the city by making recommendations to the city council and city commissions and boards on preservation issues, when appropriate, by encouraging the protection and enhancement of structures with historical, architectural or cultural value, and by encouraging persons and organizations involved in preservation activities.

(6) The commission may request written or oral evidence from experts to aid in its deliberations in appropriate cases.

(7) The commission shall not obligate itself or the city in any financial undertaking, unless authorized to do so by the city council.

(8) The commission may make a recommendation to the historical division of the state department of cultural affairs for the listing of a historical district or site in the National Register of Historic Places and may conduct a public hearing thereon.

(9) The commission may adopt a list of alterations for which a certificate of appropriateness may be administratively granted by

the development services department on behalf of the commission pursuant to section 58-32 of this article.

(C79, § 2-205.47; O.9937, 10,232, 10,715; C85, § 2-205.47; O.11,385; C91, § 2-205.47; O.11,788, 11,964, 11,965, 13,010, 13,365, 13,686, 13,909, 14,148, 15,880, 16,344)

Cross reference—Boards, commissions, committees and agencies, § 2-1046 et seq.

Sec. 58-31. Certificate of appropriateness required.

(a) No individual or corporation shall undertake the construction of a structure within a historic district or the alteration of any exterior features of a structure within a historic district, nor shall the development services department issue a building permit for any such proposed construction or alteration, unless a certificate of appropriateness has been granted by the historic preservation commission.

(b) Application for a certificate of appropriateness shall be filed with the development services department. Each application shall include plans showing the proposed appearance, texture, materials, shapes and sizes of the work to be done and such additional information as deemed necessary by the historic preservation commission. An application may include a plan of preservation and, if a certificate of appropriateness is granted based on such plan, it shall be valid for one year and renewable for one additional year with the approval of the commission. Before an application may be filed with the development services department, the applicant shall pay to the city treasurer a fee of $10.00 to be credited to the general fund of the city; provided, however, that if the application is for work also requiring a building permit, the fee shall not be required.

(c) All applications received before the closing date, to be established by the commission, shall be considered by the commission at its next regularly scheduled meeting. In acting upon each application, the commission shall consider the following:

(1) Design guidelines, standards and criteria developed by the commission and approved by the city council, pursuant to subsection 58-30(e)(2) of this article.

(2) Standards for rehabilitation promulgated by the Secretary of the Interior.

(3) The relationship of proposed changes to exterior features of structures in the neighborhood.

Furthermore, it is the intent of this article that the commission shall be reasonable in its judgments and shall endeavor to approve proposals for alteration of structures of little historical, architectural and cultural value, except when such a proposal would seriously impair the historical values and character of the surrounding area. Also, the commission shall be sympathetic to proposals utilizing energy saving modifications, such as solar panels.

(d) When an application involves the proposed demolition of a building which is defined by the district's National Register nomination to be either a pivotal or contributing structure, the commission shall not issue a certificate of appropriateness until the following conditions have been satisfied:

(1) The city shall advertise that the owner will entertain offers from any person or governmental agency desiring to purchase such building and the lot upon which it stands, provided the prospective purchaser agrees to preserve and rehabilitate the building in accordance with the recommended procedures in the Secretary of the Interior's Standards for Rehabilitation and Guidelines for Rehabilitating Historic Buildings.

(2) When it has been determined by the commission that such building must be moved to mitigate adverse impact, in lieu of the requirements of subsection (d)(1) of this section, the city shall advertise that the owner will entertain offers from any person or governmental agency desiring to purchase such building, provided the prospective purchaser agrees to cause such building to be moved by a professional mover in accordance with the recommended approaches in the Department of the Interior's "Moving Historic Buildings."

(3) The city shall publish such advertisement in a newspaper of general circulation within the city, in both a legal notice and a classified advertisement, once a month for three months for contributing structures and once a month for six months for pivotal structures.

(4) Upon the affirmative vote of a majority of the full membership of the commission, the advertising requirements of this subsection (d)(3) of this section may be waived when such waiver is determined to be in the public interest.

If the conditions of this subsection have been satisfied and no entity has purchased the building for purpose of rehabilitating or moving it, the commission shall consider the demolition proposal at its next regularly scheduled meeting.

(e) After reviewing such application for a certificate of appropriateness, the commission shall approve, approve with modification, or disapprove the application, in whole or in part. If an application is approved or approved with modification by the commission, the development services department shall thereafter issue a certificate of appropriateness. The findings of the commission on each application shall be contained in a written resolution setting forth the full reason for its decision and the vote of each member participating therein. Such resolution shall be placed on file for public inspection in the office of the development services department within five business days after the meeting at which the application was acted upon. A copy of such resolution shall be emailed, mailed or delivered to the applicant.

(f) Any party aggrieved by any decision of the commission may appeal the commission's action to the city council. Such an appeal must be in writing and must be filed with the city clerk no later than ten business days after the filing of the resolution, unless the city council waives such ten-day requirement upon a showing of good and sufficient cause. The city council shall fix a reasonable time for a public hearing on the appeal, give public notice thereof as well as due notice to the applicant and to the appellant, if different from the applicant, and decide the appeal within a reasonable time. At such hearing any party may appear in person or by agent or attorney. In deciding such appeal, the city council shall consider whether the commission has exercised its powers and followed the guidelines established by law and ordinance and whether the commission's action was patently arbitrary or capricious.

(g) If not satisfied with the decision of the city council, any party to the appeal before the council may appeal to the county district court within 60 days after the council's decision.

(h) Certificates of appropriateness issued on the basis of approved plans and applications authorize only the construction or alteration set forth in such approved plans and applications and no other construction or alteration. It shall be the duty of the development services department to inspect from time to time any work performed pursuant to such a certificate to ensure compliance with the requirements of such certificate, regardless of whether or not a building permit is required for such work. If it is found that such work is not being carried out in accordance with the certificate, the development services department shall issue a stop work order. Any construction or alteration at variance with that authorized shall be deemed a violation of this article and shall be punishable as provided in section 58-34 of this article.
(C79, § 2-205.48; O.9937, 10,313; C91, § 2-205.48; O.13,010, 13,365, 14,231, 16,344)

Sec. 58-32. Administrative approval of certificate of appropriateness.

(a) The historic preservation commission may adopt a list of alterations for which a certificate of appropriateness may be administratively granted pursuant to this article, provided that any such list or amendment thereto shall be approved by the city council and shall be published and made available to property owners within each historic district.

(b) The development services director or the director's designee may issue a certificate of appropriateness for any alteration on the approved list which the development services director or the director's designee determines may be granted

in harmony with the intent and purposes of this article. The certificate of appropriateness shall not be issued until the third day after a notice of intent to issue such certificate is posted in the office of the development services department and emailed to the chair and each member of the commission.

(c) The development services director shall not issue a certificate of appropriateness for an alteration if the chair or vice-chair of the commission directs that the application be considered by the commission.

(d) The decision of the development services director to issue a certificate of appropriateness in accordance with this section may be appealed to the city council in the same manner as a decision of the commission.
(C91, § 2-205.4801; O.11,965, 13,010, 14,231, 16,344)

Sec. 58-33. Remedy of dangerous conditions.

(a) City enforcement agencies and departments shall give the historic preservation commission 30 days' prior notice of any proposed order which may affect the exterior features of any structure within a historic district by directing the removal, alteration or demolition of such structure for the purpose of remedying conditions determined to be dangerous to life, health or property.

(b) The commission shall have the power to require that the work not materially change the exterior features of the structure when the danger to life, health or property may be abated without detracting from the exterior appearance of the structure. In such cases it shall be the responsibility of the commission and the city agency or department to cooperate with the property owner in an attempt to achieve a preservation solution whereby the dangerous conditions will be corrected with minimal adverse effects to exterior features.

(c) If a preservation solution is not developed within a reasonable time, the city agency or department shall proceed to issue and enforce its proposed order. If agreement is reached on a preservation solution, a plan of preservation shall be prepared. Such plan shall include immediate building stabilization if necessary, a prioritized list of the needed work, a timeframe for completing the work, and identification of anticipated sources of funding the work. Such plan shall be approved by the commission and shall be signed by the chair of the commission, the property owner and the head of the city agency or department.
(C79, C91, § 2-205.49; O.9937, 14,231)

Sec. 58-34. Enforcement, violations and penalties.

(a) It shall be the duty of the development services department to enforce this article and to bring to the attention of the city council any violations or lack of compliance with this article.

(b) Appropriate actions and proceedings may be taken by law or in equity to prevent any violation of this article; to prevent unlawful construction; to recover damages; and to restrain, correct, or abate a violation, and these remedies shall be in addition to the penalties described in section 1-15 of this Code.
(C79, § 2-205.50; O.9937; C91, § 2-205.50; O.13,010, 16,344)

Sec. 58-35. Applicability.

This article shall be inapplicable to the construction or alteration of any structure within a historic district where a permit for the performance of such work was issued by the development services department prior to the effective date of the ordinance enacted pursuant to this article, including the subject property within the boundaries of such historic district.
(C79, § 2-205.51; O.9937; C91, § 2-205.51; O.13,010, 16,344)

Sec. 58-36. Conflict with other laws.

(a) This article is not intended to interfere with, abrogate, or annul any other ordinance, rule, statute, or other provision of law. Where any section of this article imposes restrictions different from those imposed by any other section of this article or any other ordinance, rule,

statute, or other provision of law, whichever provisions are more restrictive or impose higher standards shall control.

(b) This article is not intended to abrogate any easement, covenants, or other private agreement or restriction, provided that where the sections of this article are more restrictive or impose higher standards or regulations than such easement, covenant, or other private agreement or restriction, the requirements of this article shall govern.
(C79, § 2-205.52; O.9937; C91, § 2-205.52(a), (b))

Secs. 58-37—58-54. Reserved.

ARTICLE III. LANDMARKS

Sec. 58-55. Historic preservation commission.

(a) The historic preservation commission shall consider the nomination of landmarks and landmark sites and the alteration of landmarks and landmark sites, including both those located within and outside of locally designated historic districts.
(O.14,135, 14,231, 16,183, 16,344)

Sec. 58-56. Purpose.

It is declared as a matter of public policy that the protection, enhancement, perpetuation and use of improvements of special character or special historical or aesthetic interest or value is a public necessity and is required in the interest of health, prosperity, safety and welfare of the people. The purpose of this article is to:

(1) Effect and accomplish the protection, enhancement and perpetuation of such improvements which represent or reflect elements of the city's cultural, social, economic, political and architectural history;

(2) Safeguard the city's historic, aesthetic and cultural heritage, as embodied and reflected in such improvements;

(3) Stabilize and improve property values;

(4) Foster civic pride in the beauty and accomplishments of the past;

(5) Protect and enhance the city's attractions to residents, tourists, and visitors and serve as a support and stimulus to business and industry;

(6) Strengthen the economy of the city; and

(7) Promote the use of landmarks for the education, pleasure and welfare of the people of the city.
(C75, § 2-205.03; O.9322; C79, C91, § 2-205.03)

Sec. 58-57. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alteration means any action to change, modify, reconstruct, remove or demolish any exterior features of an existing structure. For the purpose of this article, ordinary maintenance and repair to correct any deterioration, decay or damage to a structure and to restore the structure as nearly as practicable to its condition prior to such deterioration, decay or damage are excluded from the definition of the term "alteration," provided such work does not involve a change in type of building materials. For the purposes of this article, changes made in the type and design of storm windows and in the color of the outer surfaces of a structure are considered to be ordinary maintenance and repair.

Applicant means the party making application for a certificate of appropriateness.

Capable of earning a reasonable return means having the capacity under reasonably efficient and prudent management of earning a reasonable return.

Certificate of appropriateness means a certificate authorizing plans for alterations, construction, removal or demolition of a landmark or an improvement on a landmark site.

Commission means the historic preservation commission.

Construction means the act of building, erecting or placing any structure on a site.

Exterior features means the architectural style, general design and general arrangement of the exterior of a building or other structure, including the kind and texture of the building material and the type and style of all windows, doors, light fixtures, signs and other appurtenant fixtures. For an outdoor advertising sign, the term "exterior features" means the style, material, size and location of the sign.

Historic district means an area designated by the city council as a historic district pursuant to article 2 of this chapter.

Improvement means any building, structure, place, parking facility, fence, gate, wall, work of art or other object constituting a physical betterment of real property, or any part of such betterment.

Improvement parcel means a unit of property which includes a physical betterment constituting an improvement and the land embracing the site thereof, which is treated as a single entity for the purpose of levying real estate taxes. However, the term "improvement parcel" shall also include any unimproved area of land which is treated as a single entity for such tax purposes.

Landmark means any improvement which has a special character or special historical or aesthetic interests or value as part of the development, heritage or cultural characteristics of the city, state or nation and which has been designated as a landmark pursuant to this article.

Landmark site means a parcel of land of historic significance which has substantial value in tracing the history of humans or upon which an historic event has occurred and which has been designated as a landmark site under this article, or an improvement parcel or part thereof on which is situated a landmark and any abutting improvement parcel or part thereof used as and constituting part of the premises on which the landmark is situated.

Notice to proceed means authorization by the city council for work which would require a certificate of appropriateness, but which work does not meet the applicable standards for issuance of a certificate of appropriateness.

Owner means any person having such right to, title to, or interest in any improvement so as to be legally entitled to, upon obtaining the required permits and approvals from the city's agencies having jurisdiction over building construction, to perform with respect to such property any construction, alteration, removal, demolition or other work.

Person in charge means the person possessed of the freehold of an improvement or parcel of land or a lesser estate therein, a mortgagee or vendee in possession, assignee of rents, receiver, executor, trustee, lessee, agent or any other person directly or indirectly in control of an improvement or parcel of land.

Principal improvement or building means any primary building upon a landmark site or improvement parcel.

Structure means anything constructed or erected with a fixed location on the ground or attached to something with a fixed location on the ground. Among other things, structures include buildings, walls, fences, gates, towers, mobile homes, billboards, poster panels, utility poles, streets, sidewalks, alleys and hard-surfaced parking areas. For the purposes of this article, freestanding flagpoles and yard lights are excluded from the definition of the term "structure."

(C75, § 2-205.04; O.9322; C79, § 2-205.04; O.10,559; C91, § 2-205.04; O.14,135, 14,231, 16,344)

Cross reference—Definitions generally, § 1-2.

Sec. 58-58. Designation criteria.

(a) For purpose of this article, a landmark or landmark site designation may be placed on any site, natural or improved, including any building, improvement or structure located thereon that possesses integrity of location, design, setting, materials, workmanship, feeling and association and that:

(1) Is significant in American history, architecture, archaeology and culture;

(2) Is associated with events that have made a significant contribution to the broad patterns of our history;

(3) Is associated with the lives of persons significant in our past;

(4) Embodies the distinctive characteristics of a type, period, or method of construction, or represents the work of a master, or possesses high artistic values, or represents a significant and distinguishable entity whose components may lack individual distinction; or

(5) Has yielded or may be likely to yield information important in prehistory or history.

(b) Ordinarily cemeteries, birthplaces, or graves of historical figures; properties owned by religious institutions or used for religious purposes; structures that have been moved from their original locations; reconstructed historic buildings; properties primarily commemorative in nature; and properties that have achieved significance within the past 50 years shall not be considered eligible for the landmark designation. However, such properties will qualify if they fall within the following categories:

(1) A religious property deriving primary significance from architectural or artistic distinction or historical importance.

(2) A building or structure removed from its original location which is significant primarily for architectural value, or which is the surviving structure most importantly associated with a historic person or event.

(3) A birthplace or grave of a historical figure of outstanding importance, if there is no appropriate site or building directly associated with his or her productive life.

(4) A cemetery which derives its primary significance from graves of persons of transcendent importance, from age, from distinctive design features, or from association with historic events.

(5) A reconstructed building when accurately executed in a suitable environment and presented in a dignified manner as part of a restoration master plan, and when no other building or structure with the same association has survived.

(6) A property primarily commemorative in nature, if design, age, tradition or symbolic value has invested it with its own historical significance.

(7) A property achieving significance within the past 50 years, if it is of exceptional importance.

(c) The historic preservation commission may adopt specific operating guidelines for landmark and landmark site designations, providing such are in conformity with this article.
(C75, § 2-205.05; O.9322; C79, § 2-205.05; O.10,559; C91, § 2-205.05; O.14,135, 16,344)

Sec. 58-59. Application for designation.

The owner of an improvement or parcel of land seeking landmark or landmark site designation, or a group of persons or association by petition signed by at least 50 eligible electors of the city may request a designation of a landmark or a landmark site by submitting an application for such designation to the development services department on a form furnished by the department. The historic preservation commission or city council, in addition, may, on its own motion, initiate proceedings for the designation of a landmark or a landmark site.
(C75, § 2-205.06; O.9322; C79, § 2-205.06; O.10,559; C91, § 2-205.06; O.13,010, 14,135, 14,231, 15,448, 16,344)

Sec. 58-60. Procedures.

(a) The historic preservation commission shall consider the nomination of landmarks and landmark sites, and make a report and recommendation on such nomination to the city plan and zoning commission and city council as provided below.

(b) Notice that an application for designation of a landmark or landmark site is being considered shall be given to the owner of the parcel on which

the proposed landmark is situated or which is part of the proposed landmark site in accordance with the following:

(1) Such notice shall be served by certified mail, addressed to the owner at his or her last known address as such appears in the records of the county treasurer's office, or if there is no name on such records, such notice may be served by regular mail addressed to "owner" at the street address of the property in question.

(2) Such owner shall have the right to confer with the historic preservation commission prior to final action by the commission on the application.

(3) The historic preservation commission may, in addition, hold the public hearing of the proposed designation by giving notice as required by law.

(c) After such investigation by the historic preservation commission, but in no case more than 60 days after the receipt of the complete application, the application for designation shall be recommended for approval or disapproval. Such recommendation shall be in writing and shall state the reasons for recommending approval or disapproval. The recommendation may limit itself to the proposed landmark or landmark site as described in the application or may include modifications thereof. Such recommendation shall be forwarded to and filed with the plan and zoning commission, within five days after making such recommendation.

(d) Upon receipt of such recommendation, the plan and zoning commission shall schedule a public hearing at a specific place, date and time, not more than 30 days after such receipt, by giving notice as required by law.

(e) Within 30 days after the public hearing, the plan and zoning commission shall forward such application to the city council, together with the recommendation of the historic preservation commission. The plan and zoning commission may adopt the recommendation of the historic preservation commission as its own or may prepare a written recommendation of its own. The plan and zoning commission may limit itself to the proposed landmark or landmark site or may include modifications thereof. If the modification requires an additional public hearing, the plan and zoning commission shall hold such hearing before forwarding the application to the city council.

(f) Upon receipt of such recommendation, the council shall schedule a public hearing to consider the recommendation at a specific place, date and time, not more than 30 days after such receipt, by giving notice as required by law.

(g) The city council, after public hearing, may approve, approve with modification, or disapprove the recommendation of the plan and zoning commission by a majority vote of its membership. If the plan and zoning commission shall have failed to act within the time limit set forth in this section, the city council may, nevertheless, approve, approve with modification, or disapprove the proposed landmark or landmark site as originally proposed or modified by a majority vote of its membership.
(C75, § 2-205.07; O.9322, 9605; C79, § 2-205.07; O.10,559; C91, § 2-205.07; O.13,365, 14,135, 14,231, 16,344)

Sec. 58-61. Effect of approval of designation.

(a) Following a designation of a landmark or landmark site, the city clerk shall immediately file the description of such landmark or landmark site with the development services department and shall thereafter record the description of such landmark or landmark site in the office of the county recorder.

(b) Any designation made under this article shall be in full force and effect from and after the date of recording.

(c) A landmark or landmark site designation may be amended or rescinded by the same process as for the designation of a landmark. The historic preservation commission and plan and zoning commission shall have the same powers to recommend disapproval of an amendment or rescission of a designation as a landmark

or as a landmark site as they had to recommend disapproval of an original designation as a landmark or as a landmark site.

(d) If agreed to by the owner, at such time as a landmark or landmark site has been properly recorded, the city council may cause to be prepared and erected on such property, at city expense, a suitable plaque declaring that such property is a landmark or landmark site. Such plaque shall be so placed as to be easily visible to passing pedestrians. If a landmark, the plaque shall state the accepted name of the landmark, the date of its construction, and other information deemed proper by the city council. If a landmark site which is not the site of a landmark building, such plaque shall state the common name of the site and such other information deemed appropriate by the city council.

(e) In addition to those duties already specified in this article, the historic preservation commission shall:

(1) Actively work for the passage of enabling legislation which would permit the granting of full or partial tax exemptions to properties it has designated under this article in order to encourage landmark owners to assist in carrying out the intent of this article.

(2) Work closely with the state historic preservation officer in attempting to include such properties designated as landmark or landmark sites on the National Register of Historic Places.

(3) Work for the continuing education of the citizens of the city about the historic heritage of this city and the landmark and landmark sites designated under this article.

(4) Solicit funds for the purpose of landmark preservation in the city. Such funds, upon acceptance by the city council, shall be placed in a special city account for such purpose.

(C75, § 2-205.08; O.9322; C79, § 2-205.08; O.10,559; C91, § 2-205.08; O.13,010, 14,135, 14,231, 16,344)

Sec. 58-62. Construction, reconstruction, demolition and exterior alteration; certificate of appropriateness.

(a) No owner or person in charge of a landmark or landmark site shall reconstruct, alter, or demolish all or any part of the exterior of such property or construct any improvement upon such designated property or cause or permit any such work to be performed upon such property until a certificate of appropriateness has been applied for and obtained for such work pursuant to this section. The development services department shall not issue a permit for any such work until a certificate of appropriateness for such work is first obtained.

(b) The historic preservation commission shall consider applications for the alteration of landmarks and landmark sites located within historic districts, and make a decision on such matters as provided below. The historic preservation commission shall consider applications for the alteration of landmarks and landmark sites located outside historic districts and make a decision as provided below.

(c) All applications concerning landmarks received before the closing date to be established by the commission, shall be considered by the commission at its next regularly scheduled meeting.

(d) In acting upon such application, the commission shall consider:

(1) Design guidelines, standards and criteria developed by the historic preservation commission and approved by the city council, pursuant to subsection 58-30(e)(2) of this Code.

(2) Standards for rehabilitation promulgated by the Secretary of the Interior.

(3) The comprehensive plan for the city and any adopted urban renewal plan for the area.

(4) For an application respecting construction, reconstruction or exterior alteration other than on the principal improvement, the proposed work would adversely

change, destroy or affect any exterior feature of the improvement upon which such work is being done, or, if it is new construction, it would lack harmony with the landmark site and whether the proposed work would be appropriate for and consistent with the purpose of this article.

(5) For an application respecting new construction of principal improvements upon a landmark site, the proposed work would adversely affect the aesthetic quality of the site or lack harmony with the external appearance of other improvements on the site or upon neighboring sites.

(6) For an application respecting demolition of all or part of a landmark or an improvement within a landmark site, the condition of the landmark or improvement within a landmark site is determined to be dangerous to life, health or property, and such condition cannot be abated without demolishing such landmark or improvement within a landmark site or part thereof.

(e) If an application is approved or approved with modification by the commission, the development services department shall thereafter issue a certificate of appropriateness. The findings of the commission on each application shall be contained in a written resolution setting forth the full reason for its decision and the vote of each member participating therein. Such resolution shall be placed on file for public inspection in the office of the development services department within five business days after the meeting at which the application was acted upon. A copy of such resolution shall be emailed, mailed or delivered to the applicant.

(f) Any party aggrieved by any decision of the historic preservation commission may appeal the commission's action to the city council. Such an appeal must be in writing and must be filed with the city clerk no later than ten business days after the filing of the resolution mentioned in subsection (d) of this section, unless the city council waives such ten-day requirement upon a showing of good and sufficient cause. The city council shall fix a reasonable time for a public hearing on the appeal, shall give public notice thereof as well as due notice to the applicant and to the appellant, if different from the applicant, and shall decide the appeal within a reasonable time. At such hearing any party may appear in person or by agent or attorney. In deciding such appeal, the city council shall consider whether the commission has exercised its powers and followed the guidelines established by law and ordinance, and whether the commission's action was patently arbitrary or capricious. A vote of six-sevenths of the membership of the city council shall be required to reverse any decision of the commission.

(g) If not satisfied with the decision of the city council, any party to the appeal before the council may petition the county district court for a writ of certiorari within 30 days after the council's decision.

(h) Certificates of appropriateness issued on the basis of approved plans and applications authorize only the construction or alteration set forth in such approved plans and applications and no other construction or alteration. It shall be the duty of the development services department to inspect from time to time any work performed pursuant to such a certificate to ensure compliance with the requirements of such certificate, regardless of whether or not a building permit is required for such work. If it is found that such work is not being carried out in accordance with the certificate, the development services department shall issue a stop work order. Any construction or alteration at variance with that authorized shall be deemed a violation of this article and shall be punishable as provided in section 58-67.

(C75, § 2-205.09; O.9322, 9605; C79, § 2-205.09; O.10,559; C91, § 2-205.09; O.13,010, 13,365, 14,135, 14,231, 16,344)

Sec. 58-63. Determination of unnecessary hardship.

(a) In addition to the appeal rights granted to an appellant pursuant to section 58-62 of this article, if an application for a certificate of

appropriateness is denied, or approved subject to conditions not acceptable to the applicant, the applicant may appeal to the city council for a notice to proceed if the applicant establishes to the satisfaction of the council that there is unnecessary hardship in the strict application of the provisions of this article.

(b) A notice to proceed may not be granted unless the applicant provides proof that all of the following facts and conditions exist:

(1) The land or improvement in question cannot yield a reasonable return if the proposed construction, removal, alteration or demolition is not permitted.

(2) The plight of the applicant is due to unique circumstances.

(3) The hardship is the result of the application of this article and is not the result of any act or omission of the applicant.

(c) Any relief granted shall be in conformance with the objectives of this article and shall be limited to the minimum required to effect substantial justice and shall be in harmony with the general purpose and intent of this article.

(d) In granting a notice to proceed, the council shall prescribe any conditions that it deems necessary.

(e) A notice to proceed pursuant to this section shall relate solely to proposed plans accompanying the application or otherwise submitted to the council for official consideration prior to issuance of the notice to proceed. It shall be unlawful to deviate from the plan, including any modifications required as a condition of approval of such plan by the council, upon which issuance was granted, unless an amended notice to proceed shall be applied for and issued.

(f) The council exercising or performing its powers, duties or functions under this article with respect to any landmark or improvement within a landmark site may apply or impose, with respect to the construction, removal, alteration, demolition or use of such improvement, regulations, limitations, determinations or conditions which are more restrictive than those prescribed or made by or pursuant to other provisions of law applicable to such activities, work or use.
(C75, § 2-205.10; O.9322; C79, § 2-205.10; O.10,559, C91, § 2-205.10; O.13,365, 14,135)

Sec. 58-64. Maintenance and repair.

(a) Every person in charge of a landmark or other improvement upon a landmark site shall keep in good repair all of the exterior portions of such improvements and all interior portions thereof which, if not so maintained, may cause or tend to cause the exterior portions of such improvement to deteriorate, decay or become damaged or otherwise to fall into a state of disrepair. This subsection shall be in addition to all other provisions of law requiring such improvements to be kept in good repair. Such conditions shall be considered dangerous conditions and shall follow the process set forth in section 58-33.

(b) Such governmental enforcement agency shall give the historic preservation commission or landmark review board, as applicable, 30 days' prior notice of any proposed order or direction which affects or may affect the exterior appearance of the landmark. The commission or board shall have the power to require that the work not materially change the exterior appearance of the landmark or improvement on the landmark site where the danger of life, health or property may be abated without detracting from the exterior appearance of same.
(C75, § 2-205.11; O.9322; C79, § 2-205.11; O.10,559; C91, § 2-205.11; O.14,135, 14,231, 16,344)

Sec. 58-65. Extension of time for action.

Whenever, under this article, the historic preservation commission or the plan and zoning commission is required within a prescribed period of time to make any determination or perform any act in relation to any application for designation or for a certificate of appropriateness, the applicant may extend such period of time by his or her written consent filed with the development services department.
(C75, § 2-205.12; O.9322; C79, § 2-205.12; O.10,559; C91, § 2-205.12; O.14,135, 14,231, 16,344)

Sec. 58-66. Applicability.

This article shall be inapplicable to the construction, removal, alteration or demolition of any landmark or any improvement on a landmark site where a permit for the performance of such work was issued by the development services department prior to the effective date of the recording of such designation or amended or modified designation pursuant to this article.
(C75, § 2-205.14; O.9322; C79, § 2-205.14; O.10,405; C79, § 2-205.13; O.10,559; C91, § 2-205.13; O.13,010, 16,344)

Sec. 58-67. Enforcement, violations and penalties.

(a) It shall be the duty of the development services department to enforce this article and to bring to the attention of the city council any violations or lack of compliance with this article.

(b) Appropriate actions and proceedings may be taken by law or in equity to prevent any violation of this article; to prevent unlawful construction; to recover damages; and to restrain, correct or abate a violation, and these remedies shall be in addition to the penalties described in section 1-15 of this Code.
(C75, § 2-205.13; O.9322, 10,405; C79, § 2-205.14; C91, § 2-205.14; O.13,010, 16,344)

Sec. 58-68. Separability.

If any provision of this article or the application thereof to any person or circumstances is held invalid, the remainder of this article and the application of such provision to other persons or circumstances shall not be affected thereby.
(C75, § 2-205.15; O.9322, C79, § 2-205.15; O.10,405; C91, § 2-205.15)

ARTICLE IV. HISTORIC REVIEW OF PROPOSED DEMOLITION

Sec. 58-69. Purpose.

It is declared as a matter public policy that the review and consideration for the potential continuation of use and historic documentation of buildings and structures of historic, cultural or architectural significance is in the interest of the health, prosperity, safety and welfare of the public. The purpose of this article is to provide adequate opportunities for the review and exploration of viable alternatives to demolition and the completion of a historical record of buildings and structures that contain features of architectural merit and are historically significant. This article shall not serve to preclude or cause any delay to the procedures for historic district or landmark designation contained elsewhere in this chapter.
(O.15,405)

Sec. 58-70. Historic review.

(a) An application made under section 26-303 for a demolition permit of all or part of a building or structure and an application made under the plumbing code (chapter 26, article XI) for a plumbing permit for the disconnection of sewer service in preparation of such demolition, on property that is not otherwise subject to the requirement of a certificate of appropriateness under sections 58-31 or 58-62, shall be subject to the procedures for historic review set forth in this article.

(b) The community development director or his designee shall conduct an initial review within ten days of the submittal of the completed application for a demolition permit or related plumbing permit. The community development director shall notify members of the historic preservation commission of the application for proposed demolition of an entire single-family building that is, or is greater than, 80 years old, an entire building other than single family that is, or is greater than, 50 years old or an entire building that appears to contain features of architectural merit. Following such initial review, issuance of a demolition permit in accordance with section 26-303 and related plumbing permit in accordance with the plumbing code shall be authorized if it is determined that the building or structure proposed for demolition constitutes any of the following:

(1) Is a single-family building or structure less than 80 years old or a building or structure other than single-family less than 50 years old and contains no features of architectural merit.

(2) Is an imminent threat to the public health or safety.

(3) Is limited to a deck, porch, steps, stoops or similar structural element.

(4) Is limited to a building addition that is less than 80 years old and contains no features of architectural merit.

(5) Is a single-family building that is, or is greater than, 80 years old or a building or structure other than single-family that is, or is greater than, 50 years old, contains no features of architectural merit and the community development director has determined it is not historically significant.

(c) If, following initial review, the community development director has determined that the building or structure proposed for demolition is a single-family building or structure that is, or is greater than, 80 years old or a building or structure other than single-family that is, or is greater than 50 years old and/or contains features of architectural merit, is deemed historically significant but does not meet the criteria for landmark designation set forth in section 58-58, development services department staff shall be directed to work with the owner of the building or structure to determine, within 30 days, whether any alternatives to demolition are feasible. Such alternatives to be considered may include, but are not limited to, the following:

(1) Rehabilitation of the building or structure with the assistance of federal or state tax incentives or other private financial assistance.

(2) Adapting the building or structure to a viable new use.

(3) Finding a new owner who is interested in purchasing, preserving and rehabilitating the building or structure.

(4) Incorporating the building or structure into the owner's plans for redevelopment of the site.

(5) Assisting the owner in finding an alternative site for its proposed redevelopment.

(6) Moving the building or structure to an alternative site.

If the development services department staff and the owner of the building or structure do not reach an agreement on a feasible alternative to demolition, then with the guidance of development services department staff, the owner will be required to document and photograph the exterior and interior of the building or structure and provide the city with a copy of such documentation and photographs. The owner will further be required to salvage for re-use as many fixtures and as much material as possible from the building or structure. Provided that owner has conducted the documentation and salvage to the satisfaction of the community development director, then issuance of a demolition permit in accordance with section 26-303 and related plumbing permit in accordance with the plumbing code shall be authorized.

(d) If, following initial review, the community development director has determined that the building or structure proposed for demolition is a single-family building or structure that is, or is greater than, 80 years old or a building or structure other than single-family that is, or is greater than 50 years old and/or contains features of architectural merit, is deemed historically significant and meets the criteria for landmark designation set forth in section 58-58, the application for demolition or related plumbing permit shall be referred to the city council for review at a regularly scheduled city council meeting held within 20 days of the date of referral. The owner of the building or structure and, if applicable, any designated legal agent shall be provided notice of the time and location of city council review by certified mail and by regular mail at the addresses provided in the application for demolition permit. At such meeting, the city council will consider oral and written comments from all interested parties and determine whether or not to refer the application for proposed demolition or related plumbing work to the historic preservation commission for further study and review. If the city council determines not to refer the application to the historic preservation commission, then with the guidance of develop-

ment services department staff, the owner will be required to document and photograph the exterior and interior of the building or structure and provide the city with a copy of such documentation and photographs. The owner will further be required to salvage for re-use as many fixtures and as much material as possible from the building or structure. Provided that the owner has conducted the documentation and salvage to the satisfaction of the community development director, then issuance of a demolition permit in accordance with section 26-303 and related plumbing permit in accordance with the plumbing code shall be authorized.

(e) If the application for proposed demolition of the building or structure is referred by the city council to the historic preservation commission, the historic preservation commission shall be directed at regularly scheduled and/or special meetings of the historic preservation commission to work with the owner of the building or structure to determine, within 90 days, whether any alternatives to demolition are feasible. Such alternatives to be considered may include, but are not limited to, the following:

(1) The building or structure can be considered for landmark designation.

(2) Rehabilitation of the building or structure with the assistance of federal or state tax incentives or other private financial assistance.

(3) Adapting the building or structure to a viable new use.

(4) Finding a new owner who is interested in purchasing, preserving and rehabilitating the building or structure.

(5) Incorporating the building or structure into the owner's plans for redevelopment of the site.

(6) Assisting the owner in finding an alternative site for its proposed redevelopment.

(7) Moving the building or structure to an alternative site.

If the historic preservation commission and the owner of the building or structure do not reach an agreement on a feasible alternative to demolition, then with the guidance of development services department staff, the owner will be required to document and photograph the exterior and interior of the building or structure and provide the city with a copy of such documentation and photographs. The owner will further be required to salvage for re-use as many fixtures and as much material as possible from the building or structure. Provided that owner has conducted the documentation and salvage to the satisfaction of the community development director, then issuance of a demolition permit in accordance with section 26-303 and related plumbing permit in accordance with the plumbing code shall be authorized.

(O.15,405, 16,344)

Chapter 59

RESERVED

Chapter 60

RENTAL PROPERTY MAINTENANCE AND BLIGHTED PROPERTY CODE*

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*__Editor's note—__Ord. No. 16,392, § 1, adopted Dec. 23, 2024, eff. Feb. 1, 2025, repealed the former Ch. 60 and enacted a new Ch. 60 as set out herein. The former Ch. 60 pertained to housing code and derived from Ord. No. 15,562, § 1, adopted Feb. 20, 2017, as amended.

__Cross references—__Buildings and building regulations, ch. 26; environment, ch. 42; fire prevention and protection, ch. 46; floodplains, ch. 50; health and sanitation, ch. 54; historical preservation, ch. 58; planning, ch. 82; public housing, ch. 90; public improvements, ch. 94; solid waste, ch. 98; streets, sidewalks, skywalks and other public places, ch. 102; subdivisions, ch. 106; utilities, ch. 118; vegetation, ch. 122; waterways, ch. 130; zoning ordinance, ch. 134; sewer districts, app. G.

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ARTICLE I. GENERAL

Sec. 60-1. Title.

This chapter and all provisions incorporated in this chapter, by reference or otherwise, shall be known as the Housing Code and hereafter will be referred to as this "chapter".
(O.16,392)

Sec. 60-2. Scope.

Unless otherwise specified herein, the provisions of this article I and article II of this chapter shall apply to the maintenance, repair, equipment, use, and occupancy of all residential rental structures, accessory structures, and premises now in existence or hereafter constructed, rehabilitated, renovated, or converted to residential use within the corporate limits. Unless otherwise specified herein, the provisions of article III apply to all premises within the corporate limits.

The provisions of this chapter shall constitute the minimum requirements and standards for premises, structures, equipment and facilities for provision of light, ventilation, space, heating, sanitation, protection from the elements, a reasonable level of safety from fire and other hazards, a reasonable level of sanitary maintenance, and for a workmanlike level of continued property maintenance to maintain and improve the city's housing stock.
(O.16,392)

Sec. 60-3. Intent.

Unless otherwise specified herein, this chapter shall be interpreted to ensure public health, safety, and welfare as they are affected by the occupancy and maintenance of residential structures, accessory structures and premises occupied, and/or under notice of violation, as rental units, owner-occupied structures and nonresidential structures. This chapter shall further be interpreted to require structures to be maintained in good condition and good repair using a workmanlike level of maintenance so as to stabilize and improve the housing and commercial building stock of the city. Existing structures that do not comply with these provisions shall be altered or repaired to provide the level of workmanship, health and safety required herein.
(O.16,392)

Sec. 60-4. Application of other codes.

(1) This chapter shall adopt the International Property Maintenance Code ("IPMC"), 2021 edition, published by the International Code Council and any standard, national, and international codes adopted in the Municipal Code of the City of Des Moines.

(2) Where the City of Des Moines Municipal Code is the subject of reference in this chapter, it will be referred to as "the Municipal Code."
(O.16,392)

Sec. 60-5. Deletions.

The following sections and/or references are hereby deleted from the 2021 International Property Maintenance Code, and are of no force or effect in this chapter:

(1) Section 103 Code compliance agency;

(2) Section 107 Means of Appeal;

(3) Section 108 Board of Appeals;

(4) Section 111.4.2 Method of Service;

(5) Section 111 Transfer of Ownership;

(6) Section 111.7 Placarding;

(7) Section 113 Demolition;

(8) Section 307 Handrails and Guardrails.
(O.16,392)

Sec. 60-6. Amendments and additions.

The remaining sections of this chapter represent amendments and additions to the requirements contained in any of the referenced codes. In the event of a conflict between any of the provisions contained in any of the referenced codes and this chapter, the requirements of this chapter prevail.
(O.16,392)

Sec. 60-7. Powers.

(1) The administrator is hereby authorized and directed to enforce the provisions of this chapter. The administrator shall have the authority to render interpretations of this chapter and to adopt policies and procedures to clarify the application of its provisions. Such interpretations and polices shall be consistent with the intent and purpose as set out in this chapter. Such policies and procedures shall not have the effect of waiving requirements specifically provided in this chapter.

(2) The administrator shall make all of the required inspections or shall accept reports of inspections by approved agencies or individuals. Reports of such inspections shall be in writing and be certified by a responsible officer of such approved agency or by the responsible individual.

(3) The administrator is authorized, subject to any approval required by the Municipal Code, to consult with and engage any subject matter expert as the administrator deems necessary to interpret and enforce any provisions of this chapter requiring specialized knowledge, training, or experience.

(4) The administrator shall keep and maintain all records of inspections, licenses, extensions, housing appeals board actions, fines, modifications, and all other records maintained by the division for such time period as required by any applicable federal, state, or local law or policy.

(5) The administrator is authorized to enter into renovation agreements and agreements to extend time for compliance with this chapter.
(O.16,392)

Sec. 60-8. Right of entry.

Where it is necessary to make an inspection to enforce the provisions of this chapter, or whenever the administrator has reasonable cause to believe that there exists in a structure or upon any premises a condition in violation of this chapter, the administrator is authorized to enter the structure or premises at reasonable times to inspect or perform the duties imposed by this chapter, so long as the following procedures are followed:

(1) If such structure or premises is occupied, the administrator shall first present credentials to the occupant and request entry;

(2) If such structure or premises is unoccupied, the administrator shall first make a reasonable effort to locate the owner, the authorized management agent or other persons having charge or control of the structure or the premises and request entry from such person;

(3) If the administrator's entry is refused, the administrator may pursue a municipal infraction and/or obtain an administrative search warrant as provided by law to gain entry onto the premises or into the structure for the purpose of inspection or otherwise as provided by law.

(O.16,392)

Sec. 60-9. Identification.

The administrator shall carry proper identification when inspecting structures or premises in the performance of duties under this chapter.
(O.16,392)

Sec. 60-10. Modifications.

(1) Whenever there are practical difficulties involved in carrying out the provisions of this chapter, the administrator shall have the authority to grant modifications for individual cases upon application of the owner(s) or authorized management agent.

(2) An appeal for a modification must:

(a) Set out the code requirement from which the modification is sought;

(b) Detail what effect the modification will have in the health and safety of the occupants and the integrity of the structure; and

(c) Explain what effect the modification would have on the maintenance of the premises or building.

(3) Before granting a modification, the administrator shall find that:

(a) Strict compliance with a specific code requirement relating to the structure or premises would be impossible or impractical;

(b) Such impossibility or impracticality has not been caused or created by the owner, the authorized management agent, or any other employee, agent, or representative thereof;

(c) The modification is in compliance with the intent and purpose of the Code; and

(d) Such modification does not lessen the health, life, and fire safety requirements or the integrity of the structure.

(4) An owner(s) or authorized management agent may appeal a denial of a modification to the housing appeals board.

(5) The administrator shall record, or cause to be recorded, documentation of all granted modifications within the division's official records.

(6) For any modification previously granted by the administrator, the administrator may revoke the modification upon a showing that the basis for granting the modification no longer exists or upon a showing that a condition of the modification has been violated.

(a) Before revoking a modification, the administrator shall notify the owner(s) or authorized management agent of the reason for the requested revocation and the right to appeal such revocation.

(O.16,392)

Sec. 60-11. Alternative materials, design, methods of construction, and equipment.

The provisions of this chapter are not intended to prevent the installation of any material or to prohibit any design or method of construction not specifically prescribed by this chapter provided that any such alternative has been approved by the city.

(1) An alternative material, design or method of construction shall be approved by city staff where it is found:

(a) The proposed material, design or method of construction is satisfactory and complies with the intent of the provisions of this chapter; and

(b) The proposed material, design or method of construction is not less than the equivalent in quality, strength, effectiveness, fire resistance, durability, and safety of that prescribed in this chapter.

(2) The use of used materials that meet the requirements of this chapter for new materials may be permitted. Materials, equipment, and devices shall not be reused unless such elements are in good repair or have been reconditioned and tested where necessary, placed in good condition, and approved by the administrator.

(3) Materials, design, equipment, and devices approved shall be constructed and installed in accordance with any conditions of such approval.

(4) Where the alternative material, design, or method of construction is not approved, the administrator shall issue a decision in writing and state the reasons the alternative was not approved.

(5) An owner(s) or authorized management agent may appeal a denial of an alternative material, design, or method of construction to the housing appeals board.

(O.16,392)

Sec. 60-12. Stop work order.

(1) Whenever the administrator finds any work regulated by this chapter is being performed in a manner contrary to the provisions of this chapter or in a dangerous or unsafe manner, the Administrator is authorized to issue a stop work order.

(2) A stop work order shall be in writing and shall be posted at the site of the violation(s) and a copy shall also be provided to the owner(s), to the authorized management agent, and/or to the person doing the work. Upon issuance of a stop work order, the cited work shall cease immediately. The stop work order shall state the reason for the order and the conditions under which the cited work is authorized to resume.

(3) Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe conditions, shall be subject to enforcement as set out in this chapter.
(O.16,392)

Sec. 60-13. Emergency action.

Whenever, in the opinion of the administrator, there is imminent danger due to an unsafe condition(s), emergency action shall be required, and the administrator may seek authority to have the premises and/or structure vacated and/or may order the necessary work to be done to remove the imminent danger with or without notice, including, but not limited to, the boarding up of openings, to render such structure and/or premises temporarily safe whether or not any legal procedure herein described has been instituted; and may cause such other action to be taken as the administrator deems necessary to mitigate or eliminate such emergency. Such action shall be completed to standards adopted by the city in Appendix A of the 2021 IPMC.
(O.16,392)

Sec. 60-14. Costs of emergency actions.

Costs of emergency actions shall be billed to the owner(s) and if unpaid will be collected as a special assessment, personal judgment, or any other collection measure the city deems appropriate.
(O.16,392)

Sec. 60-15. Collection of costs.

(1) Costs imposed upon the owner in the enforcement of this chapter shall be payable to the city within 30 days of the date of notice which will be provided to the owner or authorized management agent as designated in the business account maintained with the division; and

(2) The invoice shall include notice that if unpaid the amount due will be collected as a special assessment, personal judgment, or any other collection measure the city deems appropriate.
(O.16,392)

Sec. 60-16. Closing streets or sidewalks.

When necessary for public safety, the administrator is authorized to temporarily close or order closing of structures, sidewalks, streets, public ways and places adjacent to unsafe structures, and prohibit the same from being utilized.
(O.16,392)

Sec. 60-17. Civil actions; alternative relief.

(1) Any person who fails to perform an act required by this chapter or who commits an act prohibited by this chapter shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of the Municipal Code.

(2) Proceeding with an administrative hearing, civil action, or emergency action as authorized in this chapter does not preclude the city from seeking alternative relief from a court in the same action or as a separate action, including but not limited to an order for abatement, injunctive relief, or vacation of the premises.

(3) In addition to other remedies set forth in this chapter, when the administrator determines that a nuisance exists and/or that a person is a habitual violator, the city may file a civil action in the district court seeking an order enjoining the person from further violation of this chapter on any premises owned or controlled by such person or real property where such person acts as an agent, tenant, or lessee of any structure or premises within the city. The city may further request that upon entry of the injunction the court allow the city to abate further violations without notice and/or seek an order of contempt.
(O.16,392)

Sec. 60-18. Ordinance not limiting.

The responsibilities imposed under this chapter shall not limit or abridge any duty, requirement, obligation or liability created by another provision of law, or under contract between parties. (O.16,392)

Sec. 60-19. Definitions.

Unless otherwise expressly stated, or the context clearly indicates a different intention, the following terms have the following meanings and shall be so construed wherever they appear in this article:

Accessory structure means a structure on the same lot, separate from, and of a nature customarily incidental and subordinate to the principal structure. Trailers, semi-trailers, tents, motor vehicles, and component parts thereof shall not be considered accessory structures. A structure which might otherwise be considered an accessory structure, but which is connected to the principal structure by a breezeway or other extension of the principal structure containing a functional roof and floor shall, for the purposes of this chapter lose its status as an accessory structure, be deemed part of the principal structure, and be subject to all restrictions applicable to a principal structure.

Administrator means the administrator of the division or their designee. The administrator is the code official for this chapter and shall be the authorized representative for the enforcement of this chapter and for the administration of the division.

Anchored means secured in a manner that provides positive connection.

Authorized management agent means any person appointed by the owner(s) who has charge, care, or control of any rented structure or premises. Such person shall be authorized to accept service of communications from the city.

Basement means that portion of a structure which is partially or completely below grade.

Bathroom means a room containing a toilet and sink and which may also contain a bathtub, shower, or other fixtures or equipment.

Carbon monoxide alarm(s) means one or more devices comprised of a sensor, control components, and an alarm notification appliance in a single unit operated from a power source either in the unit or obtained at the point of installation which detect carbon monoxide gas for the purpose of alerting occupants to its presence. The alarm notification appliance must issue a distinct audible signal and may also issue a visible light alert. Carbon monoxide alarms include but are not limited to combination carbon monoxide alarm/smoke alarms. All carbon monoxide alarms must meet the standards established by the Underwriters Laboratories (UL), the National Fire Protection Association (NFPA) Standard 720, and be UL Listed in accordance with UL 2034.

City means the City of Des Moines, Iowa.

Common area means those areas of premises and structures that are available for use by all residents of rental units but that remain under the ownership, possession, and control of the owner.

Condominium means a single-household dwelling unit located within a multi-unit structure where ownership of each unit is separately held by deed.

Cooking facility means a room or portion thereof designated and/or customarily used as a place for the preparation and sanitation of food and containing equipment and appliances customarily associated therewith including, but not limited to: Sink, stove, refrigerator, oven, freezer, or any other similar appliance or fixture.

Corporate limits means the geographical limits of the City of Des Moines as set forth in Municipal Code section 2-1.

Cost(s) means all inspection fees, re-inspection fees, fines, civil penalties, eviction costs, demolition costs, asbestos survey, landfill fees, title searches, mailings, postings, photographs, research fees, copy fees, administrative costs, and legal costs, and any other expenditure of time or money incurred from the enforcement of this chapter incurred by the division in the enforcement of this chapter and for all other fees as set out in the schedule of fees as adopted by the city council.

Detached means a structural element which is physically disconnected from another and that would require connection to provide a positive connection.

Deterioration means the state of being weakened, disintegrated, corroded, rusted, or decayed.

Duplex means a structure containing exactly two attached dwelling units under the same ownership.

Dwelling unit means a single unit providing complete, independent living facilities for one or more persons, including permanent provisions for living, sleeping, eating, cooking, and sanitation.

Easement means that portion of land or property reserved for present or future use by a person or agency other than the owner(s)of the real estate.

Equipment means tangible personal property that is generally non-expendable, functionally complete for its intended purpose, and may or may not be considered a fixture to the premises.

Exit means a continuous and unobstructed means of access to a public way, including intervening doors, doorways, corridors, exterior exit balconies, ramps, stairways, smoke-proof enclosures, horizontal exits, exit passageways, exit courts, and yards.

Exterior property means the open space on the premises, adjacent public way(s) and on adjoining property under the control of the owner(s) or authorized management agent of such premises that is outside of any structure located on the premises.

Fuel-burning appliance means any device which utilizes combustible fuel and produces heat.

Garbage or *rubbish* may be used interchangeably and mean animal or vegetable waste resulting from the handling, preparation, cooking, and/or consumption of food and all other combustible and non-combustible waste materials.

Good condition means structurally sound with no obvious maintenance or repair required and all major components and materials still functioning as intended.

Good repair means fit for human habitation in accordance with all applicable codes. Everything operates as it should, and the property is clean and well maintained inside and out. There is no wasting or neglect of the property, and it is maintained in good condition.

Grade means the finished ground level adjoining any structure at all exterior walls.

Guards means a building component or a system of building components located at or near the open sides of elevated walking surfaces that minimizes the possibility of a fall from the walking surface to a lower level.

Habitable space means space in a structure for living, sleeping, eating, or cooking. Bathrooms, toilet rooms, closets, halls, storage, or utility space and similar areas are not considered habitable spaces.

Historic building means any building or structure that is one or more of the following:

(1) Listed or certified as eligible for listing by the state historic preservation office or the keeper of the National Register of Historic Places in the National Register of Historic Places;

(2) Designated as historic under an applicable state or local law; or

(3) Certified as a contributing resource within a National Register or state or locally recognized historic district.

Hotel shall have the same meaning as used in section 6A-1 of Appendix F of the Municipal Code.

Imminent danger means a condition which could cause serious or life-threatening injury or death within a short period of time if the condition is not remediated.

Infestation means the presence of insects, rats, vermin, or other pests within or contiguous to a structure or premises of insects, rodents, vermin or other pests.

Knockout panel means a piece of material over a hole in a door, window or other openable access into another unit in a multi-unit structure that is intended to be removed to allow for access to another unit within the same structure for the purpose of emergency egress.

Labeled means equipment, materials or products to which have been affixed a label, seal, symbol or other identifying mark of a nationally recognized testing laboratory, inspection agency or other organization concerned with product evaluation that maintains periodic inspection of the production of the above-labeled items and whose labeling indicates either that the equipment, material or product meets identified standards or has been tested and found suitable for specified purpose.

Lead-based paint means any liquid substance applied or intended for application to surfaces containing more lead by weight than the percentage allowed by federal regulations now existing or hereafter adopted, calculated as lead metal in the total nonvolatile content of such liquid substance or in the dry film of such liquid substance after application.

Luminaire means a complete lighting unit affixed to a structure consisting of a light source and a hard-wired power supply.

Mobile home means any vehicle without motive power and so designed, constructed, or reconstructed as a dwelling unit to permit the vehicle to be used as a place for human habitation by one or more persons. It may also include any such vehicle with motive power not registered as a motor vehicle in this state. A mobile home is factory-built housing built on a chassis. A mobile home may not be construed to be a travel trailer or other form of recreational vehicle. A mobile home shall be construed to remain a mobile home, subject to all regulations pertaining thereto, whether or not wheels, axles, hitches or other appurtenances of mobility are removed and regardless of the nature of the foundation provided.

Multi-unit structure means any structure containing two or more units. A duplex is not considered a multi-unit structure for purposes of this chapter.

Neglect means the lack of proper maintenance for a structure or premises or any part thereof.

Neighborhood inspection division or *division* means the division within the city's organizational structure charged with the duty to inspect premises and structures for compliance with this chapter, and may also mean, as the context indicates, a member of that division.

Nuclear family member means a parent, grandparent, child, grandchild, non-marital partner, stepchild, or spouse.

Occupancy means the purpose for which a building or portion thereof is utilized or occupied.

Occupant means any individual living or sleeping in a structure or portion thereof or having possession of a space within a structure.

Openable area means the part of a window, skylight, or door which is available for unobstructed ventilation, and which opens directly to the outdoors.

Opening protective has the same meaning as set forth in NFPA 80 as may be amended from time to time.

Overhang extension means any portion of a structure or any element anchored thereto that extends beyond the structure's exterior walls at a height of eight feet or more above grade.

Owner, for purposes of this chapter, except article III, means the holder of legal title of any premises. For purposes of this definition, a contract purchaser will be deemed an owner only if the real estate purchase contract has been filed of record in the office of the recorder for the county in which the premises are located.

Owner, for the purposes of article III, means any person, agent, firm or corporation having legal or equitable interest in the dwelling unit(s); or a recorded interest as shown in the official records of the state or county as holding legal or equitable title to the real estate; or otherwise having control of the real estate or dwelling unit(s), including but not limited to the guardian of the estate of any such person, the executor or

administrator of the estate of such person who is ordered to take possession or control of the real estate by the court.

Pest elimination means the control and elimination of insects, rodents or other pests by eliminating their harborage places; by removing or making inaccessible material that serve as the food or water; or by other approved pest elimination methods.

Premises means a lot, plot, or parcel of land, easement or public way, including any structure or other improvement thereon.

Public way means any sidewalk, street, alley, right-of-way or similar place of land essentially unobstructed from the ground to the sky, which is deeded, dedicated or otherwise permanently appropriated to the public for public use.

Rent or rental means to allow the use and/or occupancy of any structure and/or premises or any portion thereof by any person who is not the owner thereof whether allowed in exchange for any consideration or not.

Rental structure(s) means a structure containing at least one rented dwelling unit or rooming unit which is occupied by one or more persons who is not the owner(s).

Residential means the use of a structure or part thereof providing living accommodation for one or more persons.

Rooming house means a structure containing rooming units.

Rooming unit means any room or group of rooms forming a single habitable unit occupied or intended to be occupied for sleeping or living that does not contain cooking facilities.

Sink means a fixed bowl or basin with running water and drainpipe for washing

Structure means that which is built, assembled, or constructed or a portion thereof.

Tenant means a person, corporation, partnership, entity or group, not the legal owner(s) of record, renting and occupying a structure or portion thereof.

Toilet means a plumbing fixture consisting of a water-flushable container used for urinating and defecating.

Toilet room means a room containing a toilet or urinal but not a bathtub or shower.

Townhome (row houses) means a single-household dwelling unit constructed in a group of three or more attached units in which each unit extends from the foundation to roof and with open space on at least two sides.

Unlawful structure means one found in whole or in part to be occupied by more persons than permitted under this chapter, or was erected, altered, used, or occupied contrary to law.

Ventilation means the natural or mechanical process of supplying conditioned or unconditioned air to, or removing such air from, any space.

Workmanlike means repairs, maintenance work, alterations or installations that are required, directly or indirectly, by this chapter which shall be executed and installed in accordance with the manufacturer's instructions in a skilled manner, generally plumb, level, square, in line, undamaged, without marring adjacent work, using compatible materials approved for the use, like in nature and look to remaining material if there is a partial replacement or repair, to maintain the structure and premises in good condition, and in compliance with all applicable code requirements,.
(O.16,392)

Secs. 60-20—60-23. Reserved.

ARTICLE II. RENTAL PROPERTY MAINTENANCE CODE

DIVISION 1. [GENERALLY]

Subdivision I. Powers, Duties and Enforcement

Sec. 60-24. General.

The administrator shall cause inspections to be made to determine the condition of rental structures, rooming houses, accessory structures,

and the premises upon which the foregoing are located within the corporate limits and may issue notices as provided in this chapter.
(O.16,392)

Sec. 60-25. Exceptions.

The following are exempt from this article:

(1) Structures and premises owned, licensed, and/or operated by any governmental unit or governmental agency.

(2) Single-household dwellings occupied by the owner(s) or members of the owner's nuclear family. If the owner does not reside in the dwelling, the owner(s) must register the names of the nuclear family members who reside in the dwelling with the administrator every three years or notify the division if there is a change in occupancy when such change occurs.

(3) A duplex if the owner(s) occupies one of the dwelling units and the other dwelling unit is occupied by a member of the owner's nuclear family.

(4) Nonresidential occupancies.

(5) Hotels.

(6) Where a nonresidential business or activity or a state-licensed or state-approved use occupies a portion of a structure and the structure also contains any area which would otherwise be subject to this article, this article shall be and remain applicable to all areas of such structure and premises not exempted by this section.

(O.16,392)

Secs. 60-26—60-29. Reserved.

Subdivision II. Inspections and Notice

Sec. 60-30. Rental business license required.

No owner(s) shall rent any dwelling unit or rooming unit unless that owner(s) holds a valid rental business license for such property.
(O.16,392)

Sec. 60-31. Required owner(s) or authorized management agent information.

(1) The owner(s) of any residential rental structure in the city who resides in Polk County or any county contiguous thereto shall provide the administrator the owner's physical address, email address, tax identification number and telephone number(s).

(2) The owner(s) of any residential rental structure located in the city who resides outside Polk County or any contiguous county shall provide the administrator with the information required in section 60-31(1) and the name, physical addresses, email address, tax identification number, and telephone number(s) of an individual over the age of 18 who shall reside in Polk County or any county contiguous thereto and who shall be designated as the authorized management agent responsible for maintenance of the property and for receiving notice and service of process.
(O.16,392)

Sec. 60-32. Application for a business account and/or rental business license.

(1) Every owner of any residential rental structure within the city shall establish a business account with the city submitting a complete rental application. Each owner shall only be required to establish a single business account with the city and may associate all of that owner's rental structures with that single account.

(2) All the information set forth in section 60-31 shall be required in order for a rental business account and rental business license application to be considered complete.

(3) An application for a rental license shall be automatically rejected if there is not appropriate zoning classification for the number of units that are listed on the rental license application.

(4) No rental license will be issued unless a complete application has been submitted.

(5) The owner must request a rental business license for each rental structure at least 90 days prior to rental occupancy. Notwithstanding the foregoing, each owner of a rental unit that is a distinct real estate parcel shall be required to have a rental business license for each separate parcel. The license will be issued upon an approved completed application and the property passing a rental inspection.

(6) Upon transfer of a property that has a current rental business license and will continue to be used as a rental property:

(a) the transferee shall establish a business account and a rental business license;

(b) the property shall remain subject to any active notice of violation previously issued under this chapter and the violations must be abated so as to bring the property into compliance with this chapter;

(c) the renewal inspection will be scheduled on the same schedule as the renewal for the previous owner; and

(d) an administrative fee in the amount set forth in the schedule of fees adopted by the city council may be charged for the transfer of an existing license to a new owner.

(7) If the information provided in the rental business license application does not include the information required in section 60-31 of this article, a research fee will be charged in the amount set forth in the schedule of fees adopted by the city council by resolution for compensation for staff time in collecting the additional information. Each request for information will result in an additional research fee.

(8) Sixty days prior to the expiration date of the rental business license, the division will mail or email a notification to the property owner(s), and the authorized management agent that the notice of the expiration of the license is in their account. The notice will include the expiration date of the license and pertinent information for contacting the division. Failure by the division to send the notice of expiration does not eliminate the obligation of the owner(s) to request a renewal inspection and failure to obtain the inspection will result in expiration of the rental business license.

(9) The owner(s) or authorized management agent(s) shall be required to update the business account information provided in the application within ten days of any change in information, including but not limited to a change in the telephone number(s), mailing address, physical address, email information, authorized management agent or ownership of the property.

(10) It is the responsibility of the owner(s) or authorized management agent to contact the division to set the date and time of all inspections.

(11) A business license application may be rejected if the owner or authorized management agent has a substantiated history of violations of this chapter, the Uniform Residential Landlord and Tenant Act, any Fair Housing Act, or other similar Civil Rights statutes, ordinances, or regulations.
(O.16,392)

Sec. 60-33. Inspection, notice of violation and method of service.

(1) Following submission of a completed application and prior to issuance of a business rental license and in accordance with the schedule set forth in section 60-35 of this chapter, the administrator or designee shall inspect or cause to be inspected each rental structure, accessory structure(s), and premises located within the city.

(2) The owner or their authorized management agent shall provide sufficient notice to tenants of the time and date of the inspection in compliance with state law.

(3) Failure by the owner or their authorized management agent to appear for the inspection may result in a failing inspection.

(4) If the administrator determines that the structure(s) and/or premises are being maintained in violation of this chapter, the administrator shall provide notice of the violation(s) to the owner(s) and authorized management agent of

the premises to the physical and email address designated in the business account maintained with the division.

(5) If there is no application or business account on file with the division, the administrator shall provide notice of the violation to the physical address for the owner of the property as shown in the records of the county assessor. Such notice shall:

(a) Be in writing;

(b) Include a description of the real estate sufficient for identification;

(c) Describe the violation and remedial action required;

(d) State that all violations must be corrected within 30 days from receipt of this notice;

(e) Advise that if a violation still exists upon re-inspection, the administrator will suspend a valid rental business license;

(f) Advise that upon failure of the owner(s) or authorized management agent to arrange for a re-inspection within 30 days from receipt of the notice, it will be presumed the violations have not been abated and administrator will suspend a valid rental business license and refer the owner(s) or authorized management agent to the city legal department to pursue a municipal infraction or other appropriate remedy;

(g) Advise of the right to file an appeal of a violation set out in the notice of violation and the amount of the appeal fee; and

(h) Include a statement of the right of the division to collect unpaid costs by personal judgment, collection, or assessment to be collected as a property tax.

(6) Units that are vacant in a multi-unit structure and will not be occupied during the duration of the rental business license shall be inspected to confirm that no safety violations exist that would threaten the health or safety of the other occupants in the structure. The fee for the inspection of the vacant unit shall be as set forth in the schedule of fees adopted by the city council. The administrator shall denote in the division's records that the vacant unit is not fit for rental occupancy but that shall not prevent the issuance of a rental business license for the remainder of the structure not so designated. If the owner wishes to allow occupancy of a vacant unit that was previously denoted as unfit for occupancy, the owner shall request, and the unit shall pass a rental inspection in that unit prior to allowing rental occupancy.
(O.16,392)

Sec. 60-34. Renovation agreement.

(1) If an owner cannot abate any violations of this chapter within the time allowed in the notice of violation because of weather constraints or extraordinary circumstances not of the owner(s)' or authorized management agent's making or are beyond the owner's or authorized management agent's control they may request an extension of time to abate such violation(s).

(2) An owner(s) or authorized management agent may make a request accompanied by the fee set forth in the schedule of fees adopted by the city council, for an extension that is specific to the structure or premises and must show that:

(a) Timely compliance with this chapter is impractical;

(b) The extension does not violate the intent and purpose of the Municipal Code; and

(c) Such extension does not endanger the life, health, or safety of the occupants or the integrity of the structure.

(3) At the administrator's discretion, information regarding the proposed extension, including, but not limited to proposed scope of work, project budget, project schedule, and proof of financial ability to complete the repair(s) identified in the proposed scope of work may be requested and, if requested, must be provided by the owner(s) or authorized management agent prior to approval.

(4) If an extension of time is granted, the owner(s) or authorized management agent and the administrator shall enter into a written renovation agreement setting forth the terms and conditions of any approved time extension.

(5) Upon execution of a renovation agreement, a temporary rental business license will be issued which will expire upon the date set for completion of the repairs or abatement as set out in the agreement.

(6) An owner(s) or authorized management agent may appeal a denial of an extension to the housing appeals board.
(O.16,392)

Sec. 60-35. Compliance and rental business license.

(1) Upon submission and approval of a completed rental business license application, establishment of a business account with the division, completion of satisfactory inspection, and payment of all required costs, the division shall issue a rental business license. Notice of the issuance will be provided by email or regular mail to the owner or authorized management agent as designated in the business account or rental business license application maintained with the division.

(2) The division shall send an invoice by email or regular mail to owner(s) and authorized management agent at the email or physical address on file with the division for all costs owed.

(a) Rental inspection fees will be charged in the amount set forth in the schedule of fees adopted by the city council.

(b) Costs imposed upon the owner in the enforcement of this chapter shall be payable within 30 days of the date of billing and if unpaid will be collected as a special assessment, personal judgment, or any other collection measure the city deems appropriate.

(c) Structures referred for legal action will be inspected as necessary to enforce this chapter and any and all associated costs will be billed as set out in the schedule of fees adopted by the city council.

(3) The rental business license issued under this article shall contain the following information:

(a) The owner(s) name(s);

(b) The name of the authorized management agent;

(c) Contact information, including email and physical addresses and telephone number(s)for the owner(s) and the authorized management agent;

(d) The local address and type of structure;

(e) The number of units;

(f) The date of inspection;

(g) The date of issuance; and

(h) The license expiration date.

(i) Any conditions imposed on the license by the division such as identification of any units subject to section 60-33(5) of this chapter.

(4) A rental business license will be issued for the following periods:

LICENSE CATEGORY I	
1 or 2 units — No violations on first inspection	License length 3.5 years
3 plus units — No violations on first inspection	License length 2.5 years
1. Must have valid business account information on file prior to inspection; 2. Must have had no founded maintenance complaints since the last inspection; 3. Must have no outstanding costs due the division for the property; 4. Must be current on property taxes and special assessments due the division for the property; and 5. Must have had no nuisance clean ups or impounds since the last renewal license was issued.	

LICENSE CATEGORY II	
1 or 2 units—Not more than 8 violations per unit	License length 2.5 years
3 to 12 units—Violations Not more than 1.5 violations per unit and common areas	License length 1.5 years

LICENSE CATEGORY II	
More than 13 units—Violations Not more than 1 per unit and common areas	License length 1.5 years
1. Must have valid rental business license information on file before extension of the license; 2. Must have had no more than one founded maintenance complaint since the last inspection; 3. Must have no outstanding fees due the division for the property; and 4. Must be current on taxes and special assessments due the division for the property	

LICENSE CATEGORY III	
1 to 2 units—More than 8 violations or HAB referral	License renewal length 1.5 years
3 through 12 units—More than 1.5 violations per unit per building and common areas or HAB referral	License renewal length 9 months
More than 13 units—More than 1 violation per unit per building and common areas or HAB referral	License renewal length 9 months

(5) The owner(s) of a multiple-household structure shall display a copy of the rental business license in a common hallway of each building or in the on-site management office. The owner(s) of single-household dwelling unit or duplex must provide a copy of the rental business license upon request.

(6) Newly constructed or renovated rental structure(s) issued a certificate of occupancy will be required to make application for a rental business license, pay a registration fee in the amount set forth in the schedule of fees adopted by the city council when the certificate of occupancy is issued.

(a) Residential apartment buildings will be issued a rental business license valid for 2.5 years.

(b) Single-household structures and duplexes will be issued a rental business license valid for 3.5 years.

(c) Thereafter applications and license re-inspections will occur in accordance with this article.

(O.16,392)

Sec. 60-36. Rental complaints.

(1) Tenants may submit complaints about alleged violations of this chapter to the division only after written notice has been given to the owner or authorized management agent and the owner has failed to correct the complaint within seven days of such notice.

(2) Upon the division's receipt of the complaint and confirmation that the tenant provided opportunity for the owner to make correction within seven days and the correction has not been made, the division shall provide notice of the complaint to the owner or authorized management agent.

(a) Notice of the complaint under this subparagraph shall contain the following:

(i) The owner(s) name(s);

(ii) The name of the authorized management agent;

(iii) Contact information, including email and physical addresses and telephone number(s)for the owner(s) and the authorized management agent

(iv) The local address including unit number(s);

(v) The date of tenant notice under subsection (1) above;

(vi) The date of issuance of notice under this subsection (2);

(vii) Notice that correction of alleged violations or demonstration that violations do not exist or have been abated must be delivered to the division within seven days of the date of the notice issued under this subsection (2).

(b) Upon notification to the division that the alleged violations specified in the notice of complaint persist following the expiration of the seven-day period in subsection (2)(a)(vii), the division may schedule and conduct an inspection with the owner.

(c) If the division's inspection determines that violations exist that are not a result of intentional or reckless action by the tenant, a notice of violation will be issued to the owner pursuant to section 60-33 of this Code.

(d) If the violations identified at the inspection of the rental complaint have not been corrected upon the compliance date identified in the notice of violation, the rental business license may be suspended.

(e) The time requirements referenced in this section are not applicable in situations deemed an emergency by the administrator or their designee.

(O.16,392)

Sec. 60-37. Revocation or suspension of a rental business license.

(1) If an owner fails to comply with the provisions of this chapter following notice and an opportunity to comply, the administrator may revoke or suspend the rental business license for the property.

(2) If the administrator determines that a condition(s) constituting an imminent threat to health, life, or safety exists on the premises or within any structure thereon or emanates therefrom, the administrator may revoke or suspend the rental business license for the property until such condition is abated.

(3) Operation of a rental property without a rental business license may be prosecuted as a municipal infraction.

(4) An owner may appeal the revocation or suspension of a rental business license to the housing appeals board pursuant to section 60-41.

(5) Structures that are deemed to be a public nuisance in accordance with section 60-192 of this Code shall have their rental business licenses revoked.

(O.16,392)

Sec. 60-38. Penalty for noncompliance with chapter 60.

(1) If, after notice of violation of this chapter and a reasonable amount of time has been afforded to the owner to correct any violations has passed and the owner has failed to correct such violations, the owner shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.

(2) The administrator may impose a fine for any violation of this chapter in the amount set forth in the schedule of administrative penalties adopted by the city council, including but not limited to the following:

(a) For each day the owner fails to arrange for an inspection within the time set forth in this chapter.

(b) For each violation not corrected within the time designated in the notice of violation or within such time the owner has been granted an extension of time.

(i) Failure to arrange for a timely re-inspection shall give rise to a presumption that the violation was not corrected and a fine shall be imposed accordingly.

(ii) Violations not corrected in the allotted time shall be subject to the maximum fine, retroactive to the original date set forth in the violation notice.

(c) The administrator shall have the authority to impose the maximum fine, a lesser fine, or to waive the fine upon good cause shown.

(O.16,392)

Sec. 60-39. Reserved.

DIVISION 2. [HOUSING APPEALS BOARD]

Sec. 60-40. Housing appeals board.

(1) There is established a board known as the housing appeals board (hereinafter "board").

(2) The board shall be composed of seven members. At least three members must possess familiarity and knowledge of matters related to property maintenance beyond that of an ordinary person gained through education, training, experience, or any combination thereon. Additionally, at least one member must have a demonstrated

interest in historic preservation. No city employee or elected official shall be permitted to serve on the board. Not more than three members shall be owners of rental structures within the city. Each member shall serve a three-year term.

(3) If the city council by resolution finds that no suitable person with the required qualifications is available for appointment to fill a board vacancy that has remained open for at least two months, then the city council may appoint a representative of the general public to fill the vacancy. The member so appointed shall not be reappointed unless the city council, by resolution, finds that no suitable person with the required qualifications is then available for appointment to the board.

(4) The housing appeals board shall elect a chair from its membership who will serve for a term of one year. The chair shall be the administrative officer and shall preside at meetings and hearings.

(5) Quorum shall be a majority of the appointed members at the time of the meeting; however, quorum shall not be less than three members.
(O.16,392)

Sec. 60-41. Powers and duties.

The housing appeals board shall have the power to hear and decide appeals filed with the administrator for any of the reasons set forth in section 60-42. In addition, the board may consider requests from the administrator seeking the revocation of a modification previously granted by the board upon a showing that the basis for granting the modification no longer exists or upon a showing that a condition of the modification has been violated.
(O.16,392)

Sec. 60-42. Appeals.

(1) *Appeal rights.* Any person directly affected by a decision of the administrator, issued under this chapter shall have the right to appeal to the housing appeals board provided that written application is filed within ten days after the date the decision or order was mailed or emailed and shall be accompanied by payment of a filing fee charged in the amount set forth in the schedule of fees adopted by the city council. Items that in the determination of the administrator constitute a threat to life and/or safety are not appealable.

(2) *Bases for appeal.* The following shall be the sole bases for appeal to the board:

(a) The administrator has incorrectly applied the provisions of this chapter based on a mistake of law or fact;

(b) This chapter or some part thereof does not apply;

(c) The requirements of this chapter are adequately satisfied by other means which the appellant presented to the administrator who denied such alternative means, methods, or equipment;

(d) A decision of the administrator or the division is arbitrary or not based upon the evidence presented.

(3) *Contents and timing of appeal.*

(a) A written appeal shall be filed within ten days of the date of the written decision or notice appealed from accompanied by payment of a filing fee charged in the amount set forth in the schedule of fees adopted by the city council. The filing fee shall be refunded if the board finds that the objection is valid and grants the relief requested by the appeal.

(b) The written appeal shall state:

(i) Those violations that are being contested;

(ii) The reasons for contesting the stated violations; and

(iii) The relief requested.

(c) In addition to the requirements of subsection (3)(b), an appeal of a denial by the administrator of a request for modifications, use of an alternative material, method, or equipment or a renovation agreement shall include:

(i) The code requirement for which the modification, request for use of an

alternative material, method or equipment or a renovation agreement is sought;

(ii) details of the reason(s) for the requested modification, request for use of an alternative material, method or equipment or a renovation agreement;

(iii) What effect the modification, request for use of an alternative material, method or equipment, or a renovation agreement will have on the health and safety of the occupants;

(iv) What effect the modification, request for use of an alternative material, method or equipment, or a renovation agreement will have on the ongoing maintenance of the premises or structure.

(O.16,392)

Sec. 60-43. Housing appeals board notices.

At least ten days before any board meeting, the administrator shall notify the appellant and all board members of the date, time, and location of the hearing.
(O.16,392)

Sec. 60-44. Hearing.

(1) At the hearing the appellant and/or a person representing the appellant and the city shall have the opportunity to be heard, to call witnesses, and to be represented by counsel.

(2) In all appeals, the burden is on the appellant to show that the administrator or division's decision was based upon a mistake of law or fact, or that the decision was arbitrary and capricious, or that the provisions of this chapter were incorrectly applied, or to prove that a modification, request for use of an alternative material, method or equipment, or a renovation agreement outweighs any resulting detriment to the public health, safety, and welfare and ongoing maintenance of the building.

(3) Following conclusion of the hearing, the board shall issue a ruling which must be based only upon the evidence presented and applicable law.

(4) The administrator shall provide a copy of the written appeal decision of the board to the owner(s) and authorized management agent including the amount of the fine imposed if any, by email or by regular mail to the email and/or physical address on file with the division.

(5) The administrator shall keep an accurate record of the proceedings.

(6) A copy of the minutes shall be issued to all members of the board prior to the next board meeting.

(7) The board shall adopt rules of procedure governing the conduct of hearings before it.
(O.16,392)

Sec. 60-45. Stay upon appeal.

When an appeal is filed under this article, the administrator may stay all administrative proceedings regarding the appeal until the appeal is decided, unless a violation appealed from is deemed to be an immediate threat to the health, safety, and welfare of the occupants or public.
(O.16,392)

Secs. 60-46—60-59. Reserved.

DIVISION 3. [REQUIREMENTS]

Subdivision I. Generally Applicable Standards

Sec. 60-60. General maintenance.

Equipment, systems, devices, and safeguards required by this chapter or a previous regulation or code under which the structure or premises was constructed, altered, or repaired shall be maintained in good repair. No owner(s) or authorized management agent, or occupant shall cause any service, facility, equipment or utility that is required under this article to be removed from, shut off from, or discontinued for any occupied rental structure except for such temporary interruption as necessary while repairs

or alterations are in progress. The requirements of this chapter are not intended to provide the basis for removal or abrogation of fire protection and safety systems and devices in existing structure. Except as otherwise specified herein, the owners' authorized management agent shall be responsible for the maintenance of structures and premises. Any structure that was in compliance on the day previous to the effective date of this chapter will be deemed legal non-conforming until such time as renovation shall dictate compliance with current codes. Items that previously passed inspections but are through subsequent inspection found to be in a violation of this chapter are subject to enforcement.
(O.16,392)

Sec. 60-61. Structural members.

All structural members shall be maintained structurally sound and capable of supporting the imposed loads.
(O.16,392)

Sec. 60-62. Handrails and guards.

Every handrail and guard shall be firmly fastened and capable of supporting normally imposed loads and shall be maintained in good condition.

(1) Handrails shall have minimum and maximum heights of 30 inches and 38 inches respectively, measured vertically from the nosing of the treads and shall be provided on at least one side of the stairway. All required handrails shall be continuous the full length of the stairs for four or more risers from a point directly above the top riser of the flight to a point directly above the lowest riser of the flight. Continuous handrails shall be permitted to be interrupted by newel posts at turns and at one location in straight stairs when the rail terminates into a wall or ledge and is offset and immediately continues. Ends shall be returned or shall terminate in newel posts or safety terminals. Handrails adjacent to a wall shall have space of not less than one and one-half inches between the wall and the handrail.

(2) Handrails with circular cross section shall have an outside diameter of at least one and one-quarter inches and not greater than two inches or shall provide equivalent graspability.

(3) Guards shall be required for those portions of open-sided walking surfaces, including floors, stairs, porches, balconies, ramps, and landings, driveways, sidewalks, patios and decks that are located more than 30 inches measured vertically to the floor or grade below at any point within 36 inches horizontally to the edge of the open side. Insect screening shall not be considered as a guard.

   (a) For one- and two-family dwellings and within individual dwelling units in a multiple family occupancy, required guards shall be not less than 36 inches in height.

   (b) For multiple-family occupancies, required guards shall be not less than 42 inches in height.

(4) Every exterior and interior flight of stairs having more than four continuous risers shall have a handrail on at least one side of the stair(s).

(O.16,392)

Sec. 60-63. Building security.

Doors, windows or hatchways for dwelling units and rooming units shall be provided with devices designed to provide security for the occupants and property within.

(1) Doors providing access to a rental unit from a common area or exterior property shall be equipped with a deadbolt lock or other mechanism approved by the city designed to be readily openable from the side from which egress is to be made without the need for keys, special knowledge or effort and shall have a minimum lock throw of one inch. Such deadbolt or other mechanism approved by the city shall be installed according to the manufacturer's specifications and maintained in good condition. For the

purposes of this section, a sliding bolt shall not be considered an acceptable deadbolt lock.

(2) Openable windows located in whole or in part within six feet above ground level or a walking surface below that provide access to a dwelling unit or rooming unit that is rented, leased or let shall be equipped with a window sash locking device.

(3) Basement hatchways that provide access to a dwelling unit or rooming unit shall be equipped with devices that secure the units from unauthorized entry.

(O.16,392)

Sec. 60-64. Stairs and walking surfaces.

Every stair, ramp, landing, balcony, porch, deck, or other walking surface shall be maintained in good condition and good repair.
(O.16,392)

Sec. 60-65. Responsibility.

The owner(s) or authorized management agent of a rental property within the city shall maintain the structures and premises in compliance with the requirements in this article and any code as adopted and referenced in the Municipal Code. A person shall not permit another person to occupy premises which are not in a safe and sanitary condition, and which do not comply with the requirements of this chapter.
(O.16,392)

Sec. 60-66. Repairs.

All repairs shall be done in a workmanlike manner and the premises shall be maintained in a safe and sanitary condition. All work must be done in accordance with the 2021 International Property Maintenance Code, and any other applicable standard, national, and international codes as adopted by the Municipal Code of the City of Des Moines.
(O.16,392)

Subdivision II. Exterior Property Areas

Sec. 60-67. Sanitation.

All exterior property and premises shall be maintained in a clean, safe, and sanitary condition. The occupant shall keep that part of the exterior property which such occupant occupies or controls in a clean and sanitary condition.
(O.16,392)

Sec. 60-68. Grading and drainage.

All premises shall be graded and maintained to prevent the erosion of soil and to prevent the accumulation of stagnant water. All properties shall have positive drainage away from foundation or mobile home.

This section shall not apply to any retention areas and reservoirs approved by the city.
(O.16,392)

Sec. 60-69. Sidewalks and driveways.

(1) All privately-owned sidewalks, walkways, stairs, driveways, ramps, parking spaces and similar areas shall be kept in good repair and maintained free from hazardous conditions.

(2) A defective condition exists when it exhibits one or more of the following characteristics:

(a) Vertical separations equal to three-fourth inch or more;

(b) Horizontal separations equal to three-fourth inch or more;

(c) Holes or depressions equal to three-fourth inch or more;

(d) Spalling over 50 percent of a single square or panel of sidewalk with one or more depressions equal to one-half inch or more;

(e) A single square or panel of sidewalk cracked in such a manner that no part thereof has a piece greater than one square foot, or is cracked in such a manner that it constitutes danger or potential danger to the public;

(f) A sidewalk with any part thereof missing to the full depth;

(g) A deviation on the staked and constructed grade equal to three-fourth inch or more;

(h) Covered in whole or in part with weeds or other plants, garbage, junk, rubbish, debris, solid waste, bird or animal droppings or any nuisances, obstructions or hazards which makes or tends to make pedestrian travel either dangerous or impractical.

(3) Gravel drives or parking areas must be maintained with a surface area consisting of a uniform layer of gravel evenly distributed, and must be free of bare spots, ruts, and vegetation. The consistency of the surface must be tightly bound and consistently graded. All defects must be repaired with clean fill material consistent with the existing drive or parking area that does not contain dirt, sticks, construction debris or other foreign material.
(O.16,392)

Sec. 60-70. Nuisance vegetation.

Properties must be maintained in compliance with chapter 42, article XII.
(O.16,392)

Sec. 60-71. Rodent harborage.

All structures, exterior property and premises shall be kept free from rodent harborage and infestation. Where rodents are found, they shall be promptly exterminated by an approved process which will not be injurious to human health. After extermination, proper precautions shall be taken to eliminate rodent harborage and prevent further re-infestation.
(O.16,392)

Sec. 60-72. Trees.

Dead, diseased, dying, or damaged trees, or portions thereof, shall not be permitted to stand or create a hazard to residents on the property or on neighboring properties.
(O.16,392)

Sec. 60-73. Accessory structures.

All accessory structures shall be structurally sound and in good condition.
(O.16,392)

Sec. 60-74. Motor vehicles.

No owner shall allow for motor vehicles on the property that are in violation of other provisions of the municipal code.
(O.16,392)

Sec. 60-75. Swimming pools.

Swimming pools shall be maintained in a clean and sanitary condition, and in good repair.
(O.16,392)

Sec. 60-76. Swimming pool enclosures.

Private swimming pools, hot tubs and spas, capable of containing water more than 24 inches in depth shall comply with security and fencing requirements in chapter 26 of this Code of Ordinances.
(O.16,392)

Subdivision III. General Maintenance Exterior Structure

Sec. 60-77. General maintenance.

(1) The exterior of a structure shall be maintained in good repair, structurally sound and sanitary so as not to pose a threat to public health, safety, or welfare. Exterior wood surfaces, other than decay-resistant woods, shall be protected from the elements and decay by painting or other protective covering or treatment. Peeled, flaked, and chipped paint shall be eliminated, and surfaces repainted

(2) All metal surfaces subject to rust or corrosion shall be coated to inhibit such rust or corrosion and all surfaces with rust or corrosion shall be stabilized and coated to inhibit future rust and corrosion. Oxidation stains shall be removed from exterior surfaces. Surfaces designed for stabilization by oxidation are exempt from this requirement.

(3) Soffit, fascia, and trim must be in good repair and impervious to weather.
(O.16,392)

Sec. 60-78. Premises identification.

Principal structures shall have approved address numbers, building numbers, or building identification placed in a position to be plainly legible from the public way fronting the property. These numbers shall contrast with their background. Address numbers shall be Arabic numerals or Roman letters. Numbers or letters shall be not less than four inches (102 mm) in height with a minimum stroke width of 0.5 inch (12.7 mm).
(O.16,392)

Sec. 60-79. Foundation walls.

All foundation walls shall be maintained plumb and free from open cracks and breaks and shall be kept in such condition so as to prevent the entry of rodents and other pests.
(O.16,392)

Sec. 60-80. Exterior walls.

All exterior walls shall be free from holes, breaks, and loose or rotting materials; and maintained weatherproof and properly surface-coated where required to prevent deterioration. All siding and masonry joints as well as those between the building envelope and the perimeter of windows, doors, and skylights shall be maintained weather-resistant and watertight.
(O.16,392)

Sec. 60-81. Roofs and drainage.

The shingles and flashing shall be in good condition and weather tight. Roof drainage shall be adequate to prevent dampness or deterioration in the walls or interior portion of the structure. Roof drains, gutters, and downspouts shall be maintained in good repair and free from obstructions. Roof water shall not be discharged in a manner that creates a nuisance.
(O.16,392)

Sec. 60-82. Overhang extensions.

Overhang extensions shall be maintained in good repair and be properly anchored so as to be kept in a good condition. Where required, all exposed surfaces of metal or wood shall be protected from the elements and against decay or rust by periodic application of weather-coating materials, such as paint or similar surface treatment.
(O.16,392)

Sec. 60-83. Stairways, decks, porches and balconies.

Every exterior stairway, deck, porch, and balcony and all appurtenances attached thereto, shall be maintained structurally sound in good repair with proper anchorage and capable of supporting the imposed loads.
(O.16,392)

Sec. 60-84. Chimneys and towers.

All chimneys, cooling towers, smokestacks, and similar appurtenances shall be maintained structurally safe and sound and in good repair. All exposed surfaces of metal or wood shall be protected from the elements and against decay or rust by periodic application of weather-coating material, such as paint or similar surface treatment.
(O.16,392)

Sec. 60-85. Gates.

Exterior gates, gate assemblies, operator systems if provided, and hardware shall be maintained in good condition. Latches at all entrances shall tightly secure the gates
(O.16,392)

Sec. 60-86. Windows, skylights and door frames.

(1) Every door and frame, window or skylight shall be kept in good condition, good repair and weather tight. All glazing materials shall be maintained free from cracks and holes.

(2) Every window, other than a fixed window, shall be easily openable and capable of being held in position by window hardware.

(3) All openable windows in habitable rooms, inclusive of all bathrooms shall be supplied with approved tight-fitting screens of not less than 16 mesh per inch. All screen doors required for ventilation shall be supplied with 16 mesh per inch. Every screen door shall have a self-closing device in good working order.

(4) Exterior doors, door assemblies, operator systems if provided, and hardware shall be maintained in good condition. Locks at all entrances to dwelling units and sleeping units shall tightly secure the door.

(5) Every basement hatchway shall be maintained to prevent the entrance of rodents, rain, and surface drainage water.
(O.16,392)

Secs. 60-87—60-99. Reserved.

Subdivision IV. Interior

Sec. 60-100. Unit identification.

Individual units of a multi-unit structure shall be clearly identifiable by letters or numbers observable from the common area or exterior property of such structure.
(O.16,392)

Sec. 60-101. General.

The interior of a structure and equipment therein shall be maintained in good repair, good condition and in a sanitary condition. Occupants shall keep that part of the structure which they occupy or control in a clean and sanitary condition. Every owner(s) of a multi-unit structure, shall maintain, the common areas of the structure and premises in a clean and sanitary condition.
(O.16,392)

Sec. 60-102. Interior surfaces.

All interior surfaces, including windows and doors, shall be maintained in good repair and good condition. Peeled, flaked, and chipped paint shall be repaired, removed, or covered. Cracked or loose plaster, decayed wood, and other defective surface conditions shall be corrected.
(O.16,392)

Sec. 60-103. Interior door.

Every interior door shall fit within its frame and shall be capable of being opened and closed by being properly and securely attached to jambs, headers, or tracks as intended by the manufacturer for the attachment hardware.
(O.16,392)

Sec. 60-104. Accumulation of rubbish or garbage.

(1) Exterior property and premises, and the interior of every rental structure, shall be free from any accumulation of rubbish or garbage. Every occupant of a structure shall dispose of all rubbish in a clean and sanitary manner by placing such rubbish in approved containers. The owner of every occupied rental structure shall supply approved covered containers for garbage until it is removed from the premises for disposal.

(2) Recycling bins shall be provided for all multi-unit dwellings over four units.

(3) All covered containers for garbage and recycling shall be stored within a dumpster enclosure constructed in compliance with the Municipal Code of the City of Des Moines, Iowa.
(O.16,392)

Sec. 60-105. Infestation.

All structures shall be kept free from insect and rodent infestation. Where insects or rodents are found, they shall promptly be exterminated by processes that will not be injurious to health or property. After pest elimination, proper precautions shall be taken to prevent reinfestation.

(a) *Owner.* The owner(s) of any structure shall be responsible for pest elimination within the structure and premises except as noted in subsection (b) of this section.

(b) *Single occupant.* The occupant of a single-family dwelling shall be responsible for extermination. However, in the event the infestation is a direct result of the owner(s) failure to maintain the property in accordance with this chapter, the owner shall be responsible for extermination.

(O.16,392, 16,413)

Secs. 60-106—60-109. Reserved

Subdivision V. Habitable Space

Sec. 60-110. General.

No area shall be used as a habitable space, dwelling unit, or rooming unit unless all requirements for habitable space within this chapter have been met.
(O.16,392)

Sec. 60-111. Minimum room widths.

A habitable room, other than a kitchen, shall be not less than seven feet in any plan dimension. Kitchens shall have a minimum clear passageway of three feet between counter-fronts and appliances or counter-fronts and walls.
(O.16,392)

Sec. 60-112. Minimum ceiling heights.

Habitable spaces, hallways, corridors, laundry areas, bathrooms, toilet rooms, and habitable basement areas shall have a clear ceiling height of not less than seven feet.

Exceptions:

(1) In one- and two-unit dwellings, beams or girders may be spaced not less than four feet on center and projecting not more than six inches below the required ceiling height.

(2) Basement rooms in one- and two-unit dwellings occupied exclusively for laundry, study, or recreation purposes, may have a ceiling height of not less than six feet eight inches, with not less than six feet four inches of clear height under beams, girders, ducts, and similar obstructions.

(3) Rooms occupied exclusively for sleeping, study, or similar purposes may have a sloped ceiling over all or part of the room but must have a clear ceiling height of at least seven feet over not less than one-third of the required minimum floor area. In calculating the floor area of such rooms, only those portions of the floor area with a clear ceiling height of five feet or more shall be included.
(O.16,392)

Sec. 60-113. Bedroom and living room requirements.

Every bedroom and living room shall comply with the following:

(1) *Room area.* Every living room shall contain not less than 120 square feet, and every bedroom shall contain not less than 70 square feet and every bedroom occupied by more than one person shall contain not less than 50 square feet of floor area per each occupant thereof.

(2) *Access for bedrooms.* Bedrooms shall not constitute the only means of access to other bedrooms or habitable spaces and shall not serve as the only means of egress from other habitable space. This requirement shall not apply to units that contain fewer than two bedrooms.

(3) *Bathroom accessibility.* Every bedroom shall have access to not less than one toilet and one sink without passing through another bedroom. Every bedroom in a dwelling unit shall have access to not less than one toilet and sink located in the same story or an adjacent story as the bedroom.

(4) *Prohibited occupancy.* Kitchens and uninhabitable spaces shall not be used for sleeping purposes.
(O.16,392)

Sec. 60-114. Overcrowding.

(1) Dwelling units shall not be occupied by more occupants than permitted by the minimum area requirements.

Table 60-114 Minimum Area Requirements

Space	*1—2 Occupants*	*3—5 Occupants*	*6 or more Occupants*
Living room	120 square feet	120 square feet	150 square feet
Dining room	No requirement	80 square feet	100 square feet

Table 60-114 Minimum Area Requirements			
Space	*1—2 Occupants*	*3—5 Occupants*	*6 or more Occupants*
Bedrooms	Shall comply with section 60-113		

(2) The minimum occupancy area required by table 60-114 shall not be included as a sleeping area in determining the minimum occupancy area for sleeping purposes. Sleeping areas shall comply with section 60-113.

(3) Combined living room and dining room spaces shall be deemed to comply with the requirements of Table 60-114 if the total area is equal to that required for separate rooms and if the space is located so as to function as a combination living room/dining room.
(O.16,392)

Subdivision VI. Light and Ventilation

Sec. 60-115. Light.

(1) Every habitable space shall have at least one window of approved size as required by section 60-116 facing directly to the exterior property allowing sufficient supply of natural light into the space. The minimum total glazed area for every habitable space shall be eight percent of the floor area of such room. Wherever walls or other portions of a structure face a window of any room and such obstructions are located less than three feet from the window and extend to a level above that of the ceiling of the room, such window shall not be deemed to face directly to the exterior property and shall not be included as contributing to the required minimum total window area for the room.

Exception: Where natural light for rooms or spaces without exterior glazing areas is provided through an adjoining room the unobstructed opening to the adjoining room shall be at least eight percent of the floor area of the interior room or space, but not less than 25 square feet. The exterior glazing area shall be based on the total area being served.

(2) Every common hall and stairway in residential occupancies, other than in one- and two-unit dwellings, shall be lighted at all times with at least one 60-watt standard incandescent light bulb for each 200 square feet of floor area or equivalent illumination, provided that the spacing between lights shall not be greater than 30 feet.

(3) Other spaces shall be provided with natural or artificial light sufficient to permit the maintenance of sanitary conditions, and the safe occupancy of the space and utilization of the appliances, equipment and fixtures.
(O.16,392, 16,413)

Sec. 60-116. Ventilation.

(1) Every habitable space shall have at least one openable window. The total openable area of the window in every room shall be equal to at least 45 percent of the minimum glazed area required in section 60-115 of this article.

Exception: Where rooms and spaces without openings to the outdoors are ventilated through an adjoining room, the unobstructed opening to the adjoining room shall be at least eight percent of the floor area of the interior room or space, but not less than 25 square feet. The Ventilation opening to the outdoors shall be based on a total floor area being ventilated.

(2) Every bathroom and toilet room shall comply with the ventilation requirements for habitable spaces, except that a window shall not be required in such spaces equipped with a mechanical ventilation system. Air exhausted by a mechanical ventilation system from a bathroom or toilet room shall discharge to the outdoors and shall not be recirculated.

(3) Clothes dryer exhaust systems shall be independent of all other systems and shall be exhausted outside the structure in accordance with the manufacturer's instructions. Transition ducts used to connect the dryer to the exhaust duct system shall be a single length that is listed and labeled in accordance with UL 215 8A. Transition ducts shall be a maximum of eight feet in length and shall not be concealed within construction. This requirement shall not apply to listed and labeled condensing (ductless) clothes dryers.
(O.16,392)

Sec. 60-117. Cooking facilities and food preparation.

Unless approved through the certificate of occupancy, cooking facilities or appliances shall not be permitted in any rooming unit or dormitory unit. Small cooking appliances such as coffee pots and microwave ovens shall not be considered to be cooking appliances.

Exception: Where specifically approved in writing by the administrator.

All spaces to be occupied for food preparation purposes shall contain suitable space and equipment to store, prepare and serve foods in a sanitary manner. There shall be adequate facilities and services for the sanitary disposal of food wastes and refuse, including facilities for temporary storage.
(O.16,392)

Secs. 60-118—60-123. Reserved.

Subdivision VII. Plumbing

Sec. 60-124. General.

Plumbing fixtures and connections to an approved water source shall be properly installed and maintained in good repair and good condition, and shall be kept free from obstructions, leaks and defects and be capable of performing the function for which such plumbing fixtures and connections are designed. All plumbing repairs and or replacement of plumbing components must be installed in a workmanlike manner.
(O.16,392)

Sec. 60-125. Plumbing system hazards.

(1) Where it is found that a plumbing system in a structure or its connection constitutes a hazard to the occupants or the structure by reason of inadequate service, inadequate venting, cross connection, back siphonage, improper installation, deterioration or damage or for similar reason, the administrator shall require the defects to be corrected to eliminate the hazard.

(2) Lead service line replacement. Lead water service lines for rental structures must be replaced no later than July 1, 2034. If a plumbing permit is pulled for a sewer replacement or repair of water service at a rental structure prior to July 1, 2034, all lead water service lines shall be removed at the time such permitted work is undertaken. The permit shall not be closed, and a final inspection shall not be completed until the lead water service has been replaced in its entirety.
(O.16,392)

Sec. 60-126. Required facilities.

(1) Every dwelling unit shall contain its own bathtub or shower, bathroom sink, toilet, and kitchen sink which shall be maintained in a sanitary, safe, working condition. The bathroom sink shall be placed in the same room as the toilet or located in close proximity to the door leading directly into the toilet room. A kitchen sink shall not be used as a substitute for the required bathroom sink.

(2) Every rooming house shall contain at least one toilet, bathroom sink, and bathtub or shower shall be supplied for each four rooming units therein. Toilet rooms and bathrooms serving rooming units shall have access by traversing not more than one flight of stairs and shall have access from a common hall or passageway.
(O.16,392)

Sec. 60-127. Privacy.

Toilet rooms and bathrooms shall provide privacy and shall not constitute the only passageway to a hall or other space, or to the exterior. A door and interior locking device shall be provided for all common or shared bathrooms and toilet rooms in a multiple unit dwelling.
(O.16,392)

Sec. 60-128. Water system supply and sanitary drainage.

Every sink, bathtub, shower, toilet, or other plumbing fixture shall be properly connected to

either a public water system or a private water system tested in accordance with state law and connected to either a public sanitary sewer system or an approved private sewage disposal system in good condition and good repair. All kitchen sinks, bathroom sinks, laundry facilities, bathtubs, and showers shall be supplied with hot and cold running water in sufficient volume and at pressures adequate to enable the fixtures to function properly, safely, and free from defects and leaks.
(O.16,392)

Sec. 60-129 Water heating facilities.

Water heating facilities shall be properly installed, maintained, and capable of providing an adequate amount of water to be drawn at every required sink, bathtub, shower, and laundry facility at a minimum temperature of 110 degrees Fahrenheit or 43 degrees Celsius. A gas-burning water heater shall not be located in any bathroom, toilet room, bedroom, or other habitable space normally kept closed, unless adequate combustion air is provided. An approved combination temperature and pressure relief valve and relief valve discharge pipe shall be properly installed and maintained on water heaters.
(O.16,392)

Secs. 60-130—60-135. Reserved.

Subdivision VIII. Electrical

Sec. 60-136. General.

Electrical equipment, connections, wiring and appliances shall be properly installed and maintained in good condition and good repair and in compliance with required permits.
(O.16,392)

Sec. 60-137. Facilities required.

Every occupied rental structure shall be provided with an electrical system and connection in compliance with the requirements of the Municipal Code.
(O.16,392)

Sec. 60-138. Service.

The size and usage of appliances and equipment shall serve as the basis for determining the need for additional facilities in accordance with the applicable standard, national, and international codes. Every rental dwelling unit shall be served by its own three-wire 120/240-volt, single phase electrical service having a rating of not less than 60 amperes.
(O.16,392)

Sec. 60-139. Electrical hazard.

Where it is found that the electrical service in or connecting to a structure constitutes a hazard to the occupants or the structure by reason of inadequate service, improper fusing, insufficient receptacle and lighting outlets, improper wiring or installation, deterioration or damage, or for similar reasons, the administrator shall require the defects to be corrected to eliminate the hazards.
(O.16,392)

Sec. 60-140. Receptacles.

Every habitable space in a rental dwelling shall contain not less than two separate and remote receptacle outlets. Every laundry area shall contain not less than one grounding-type receptacle or a receptacle with a ground fault circuit interrupter. Every bathroom shall contain not less than one receptacle. Any new bathroom receptacle outlet shall have ground fault circuit interrupter protection. All electrical outlets shall have the appropriate faceplate cover for the location.
(O.16,392)

Sec. 60-141. Luminaires.

Every public hall, interior stairway, toilet room, kitchen, bathroom, laundry room, boiler room, and furnace room shall contain not less than one electric luminaire.
(O.16,392)

Sec. 60-142. Wiring.

Flexible cords shall not be used for permanent wiring, or for running through doors, windows, or cabinets, or concealed within walls, floors or ceilings.
(O.16,392)

Subdivision IX. Mechanical

Sec. 60-143. Mechanical equipment.

Mechanical heating units, boilers, appliances, air conditioning units, fireplaces, fuel-burning appliances, cooking appliances and water heating appliances shall be properly installed and maintained in good repair and good condition.
(O.16,392)

Sec. 60-144. Heating equipment.

When the temperature is below 60 degrees Fahrenheit, every rental dwelling unit and rooming unit shall be provided with heating facilities capable of maintaining a minimum room temperature of 68 degrees Fahrenheit at a point of three feet above the floor and two feet from exterior walls in all habitable spaces, bathrooms and toilet rooms.

Exceptions: When the outdoor temperature is below the winter outdoor design temperature for the locality, maintenance of the minimum room temperature shall not be required provided that the heating system is operating at its full design capacity. The winter outdoor design temperature for the locality shall be as indicated in Appendix D of the International Plumbing Code.
(O.16,392)

Sec. 60-145. Separation of shared forced air heating sources.

Shared forced air heating sources are unsafe and shall be eliminated so each dwelling unit has a separate heating source with the elimination of shared vents and ductwork.
(O.16,392)

Sec. 60-146. Inspections of mechanical equipment.

The administrator may require an independent inspection and certification of mechanical heating units, boilers, appliances, air conditioning units within or connected to a rental structure by an Iowa contractor licensed to work on such systems. Upon request, the owner shall provide a statement from the contractor to the division stating that the system has been inspected, is operating as intended, and is in good condition and good repair.

The administrator may require an independent inspection and certification of any fireplace within a rental unit by an individual qualified by specialized knowledge, training, or experience to conduct such inspection and certification. Upon request, the owner shall provide a statement from the inspector to the division stating that the fireplace has been inspected, is operating as intended, and is in good condition and good repair.
(O.16,392)

Secs. 60-147—60-165. Reserved.

Subdivision X. Fire Safety

Sec. 60-166. General.

Systems, devices, and equipment to detect a fire, actuate an alarm, or suppress or control a fire or any combination of the foregoing shall be maintained in good condition and good repair at all times.
(O.16,392)

Sec. 60-167. Means of egress.

A safe, continuous and unobstructed path of travel shall be provided from any point in a structure to the public way. Means of egress shall comply with the International Fire Code. Means of egress doors shall be readily openable from the side from which egress is to be made without the need for keys, special knowledge or effort, except where the door hardware conforms to that permitted by another applicable code.
(O.16,392)

Sec. 60-168. Emergency escape and rescue openings.

Required emergency escape and rescue openings shall be maintained in accordance with the code in effect at the time of construction, and both of the following:

1. Required emergency escape and rescue openings shall be operational from the inside of the room without the use of keys or tools.
2. Bars, grilles, grates or similar devices are permitted to be placed over emergency escape and rescue openings provided that the minimum net clear opening size complies with the code that was in effect at the time of construction and the unit is equipped with smoke alarms installed in accordance with the applicable provisions of the International Building Code. Such devices shall be releasable or removable from the inside without the use of a key, tool or force greater than that which is required for normal operation of the escape and rescue opening.

(O.16,392)

Sec. 60-169. Fire resistance ratings.

Fire-resistance rated construction required by the International Fire Code within rental structures including fire walls, fire barriers, and fire partitions shall be maintained. Openings made therein for the passage of pipes, electrical conduit, wires, ducts, air transfer and any other reason shall be protected with code-approved methods capable of resisting the passage of smoke and fire. Openings through fire-resistance-rated assemblies shall be protected by self- or automatic-closing doors of code approved construction meeting the fire protection requirements for the assembly.
(O.16,392)

Sec. 60-170. Opening protectives.

Opening protectives shall be maintained in an operative condition in accordance with NFPA 80. The application of field-applied labels associated with the maintenance of opening protectives shall follow the requirements of the approved third-party certification organization accredited for listing the opening protective. Fire doors and smoke barrier doors shall not be blocked or obstructed, or otherwise made inoperable.
(O.16,392)

Sec. 60-171. Knockout panels.

All knockout panels are deemed to be a hazardous means of egress and shall be eliminated and prohibited from new installation.
(O.16,392)

Sec. 60-172. Exit signs.

In common areas of multi-unit structures, every exit doorway or change of direction of a corridor shall be marked with a lighted exit sign or other approved Exit sign, having letters of contrasting color from the material on which they are placed, at least six inches high.
(O.16,392)

Sec. 60-173. Fire extinguishers.

(1) Unless otherwise excepted, portable fire extinguishers having a minimum rating of 2-A:10-B:C shall be installed in all rental structures in conspicuous locations where they will be readily accessible and immediately available for use. These locations shall be along normal paths of travel and shall located so that no person will have to travel more than 75 feet from any point to reach the nearest extinguisher. Extinguishers shall not be obstructed or obscured from view; in rooms or areas in which visual obstruction cannot be completely avoided, means shall be provided to indicate the locations of extinguishers.

Exceptions:

1. Single dwelling unit structures and duplexes.
2. Multi-unit rental structures where each unit is provided with a portable fire extinguisher having a minimum rating of 1-A:10-B:C

(2) Hand-held portable fire extinguishers, not housed in cabinets, shall be installed on the hangers or brackets supplied. Hangers or brackets

shall be securely Anchored to the mounting surface in accordance with the manufacturer's installation instructions.

(3) Cabinets used to house portable fire extinguishers shall not be locked, except where fire extinguishers are subject to malicious use. Cabinets with break-front panels shall be provided with breaker bars or hammers designed for accessing the extinguisher during a fire emergency.

(4) Fire extinguishers shall be inspected at least once per year and shall have an approved tag showing the date of last inspection or recharge and the identity of the licensed person inspecting or recharging.
(O.16,392)

Sec. 60-174. Smoke alarms.

(1) Listed single- and multiple-station smoke alarms complying with UL 217 shall be installed in all of the following locations:

(a) Every dwelling unit shall have an approved smoke alarm on the ceiling or wall outside of each separate sleeping area in the immediate vicinity thereof.

(b) Every sleeping area shall have an approved smoke alarm inside such sleeping area.

(c) Every story within a dwelling unit, including basements and cellars, but not including crawlspaces and uninhabitable attics, shall have an approved smoke alarm. In dwellings or dwelling units with split levels and without an intervening door between the adjacent levels, a smoke alarm installed on the upper level shall suffice for the adjacent lower level, provided that the lower level is less than one full story below the upper level.
(O.16,392)

Sec. 60-175 Carbon monoxide alarms.

(1) Carbon monoxide alarms are required in rental structures and rooming houses if the structure is served by a fuel-burning appliance or has an attached garage. Installations shall be in accordance with the International Fire Code, the manufacturer's specifications and in the following locations:

(a) Carbon monoxide alarms shall be installed outside of each separate sleeping area in the immediate vicinity of the bedrooms.

(b) Where a fuel-burning appliance is located within a bedroom or its attached bathroom, carbon monoxide detection shall be installed within the bedroom.
(O.16,392)

Sec. 60-176. Fire alarm systems.

All fire alarm or suppression systems that have been installed shall be maintained in good condition and good repair at all times. Fire alarm or suppression systems shall be inspected at least once a year and shall have an approved tag showing the date of the last inspection and the identity of the licensed person inspecting it. All plans for the installation of a new fire alarm or suppression system shall be approved by the fire marshal before the system is installed.
(O.16,392)

Sec. 60-177. Combustible materials.

(1) Combustible materials shall not be stored in furnace rooms, in or on stairways, or under stairways unless the stairway is protected by a one-hour fire separation. Charcoal burners and open flame cooking devices which produce ashes or embers shall not be operated or stored on combustible balconies or within ten feet of combustible construction with the exception of:

(a) Single Unit dwellings and Duplexes; or

(b) The cooking device is an LP-gas burner connected to (one) 20-pound LP gas container.
(O.16,392)

Secs. 60-178—60-189. Reserved.

ARTICLE III. BLIGHTED STRUCTURE CODE

DIVISION 1. GENERALLY

Sec. 60-190. General.

When a structure, equipment, or premises is found by the administrator to be unsafe or dangerous, or when a structure or premises is found unfit for human occupancy, or is found unlawful, such structure, equipment, or premises shall be deemed a public nuisance pursuant to the provisions of this chapter.
(O.16,392)

Sec. 60-191. Vacation and abatement.

Any structure or premises declared to be a public nuisance and unfit for human habitation or use, and so designated by the administrator, shall immediately be vacated and the nuisance shall be abated by repair, rehabilitation, demolition, or any other city-approved corrective action. The owner(s) shall be responsible for the vacation and abatement of the nuisance at such owner's expense. If not brought into compliance by such owner(s), then the nuisance may be abated by the city at the owner's expense. Both the owner of a mobile home and the owner of the land upon which the mobile home sits shall be responsible for vacation and abatement of the public nuisance.
(O.16,392)

Sec. 60-192. Unsafe and dangerous structure or premises.

For the purpose of this article, any structure or premises that has any or all of the conditions or defects described below shall be considered dangerous and a public nuisance:

(1) Any structure or portion thereof that, in the opinion of the administrator is likely to partially or completely collapse, or to become detached or dislodged, or fail or give way.

(2) The structure or any remnant or component part thereof is neglected, damaged, dilapidated, unsecured or abandoned so as to become an attractive nuisance or hazard to the public.

(3) Any structure that the administrator determines is unfit for human occupancy meaning that such structure is unsafe, unlawful or, because of the degree to which the structure is in disrepair or lacks maintenance, is unsanitary, vermin or rat infested, contains filth and contamination, or lacks ventilation, illumination, sanitary or heating facilities or other essential equipment required by this code, or because the location of the structure constitutes a hazard to the occupants of the structure or to the public.

(4) Structural members that have evidence of deterioration or that are not capable of safely supporting all nominal loads and load affects.

(5) Foundation systems that are not firmly supported by footings, are not plumb and free from open cracks and breaks, are not properly anchored or are not capable of supporting all nominal loads and resisting all load effects.

(6) Roof or roofing components that have defects that admit rain, roof surfaces with inadequate drainage, or any portion of the roof framing that is fatigued or without proper anchorage and incapable of supporting all nominal loads and resisting all load effects.

(7) Any structure, because of lack of sufficient or proper fire-resistance-rated construction or fire protection systems, is determined by the administrator to be a threat to life or health.

(8) Any structure that is found to be dangerous to the life, health, property, or safety of the public or the occupants of the structure by not providing minimum safeguards to protect or warn occupants in the event of fire, or that contains unsafe fire suppression equipment.

(9) Stairs, decks, porches, balconies, walking systems, landings, and all similar

appurtenances attached thereto, including guards and handrails that are not structurally sound, not properly anchored or that are anchored with connections not capable of supporting all nominal loads and resisting all load effects.

(10) Mechanical equipment, appliances, fireplaces, boilers, solid fuel-burning appliances, cooking appliances and water heating appliances shall be properly installed and maintained in good condition and good repair.

(11) Where it is found that a plumbing system in a structure constitutes a hazard to the occupants or the structure by reason of inadequate service inadequate venting, cross connection, back siphonage, improper installation, deterioration or damage or for similar reasons, the code official shall require the defects to be corrected to eliminate the hazard.

(12) Where it is found that the electrical system in a structure constitutes a hazard to the occupants or the structure by reason of inadequate service, improper fusing, insufficient receptacle and lighting outlets, improper wiring or installation, deterioration, or damage, or for similar reasons, the code official shall require the defects to be corrected to eliminate the hazard.

(13) Where any fire safety components are not maintained and do not function as intended or do not have the fire resistance required by the code under which the building was constructed or altered, such components or portions thereof shall be deemed unsafe conditions in accordance with Section 114.1.1 of the International Fire Code. Components or portions thereof determined to be unsafe shall be repaired or replaced to conform to that code under which the building was constructed or altered. Where the condition of components is such that any building, structure or portion thereof presents an imminent danger to the occupants of the building, structure or portion thereof, the fire code official shall act in accordance with Section 114.2 of the International Fire Code.

(O.16,392)

Sec. 60-193. Structure to be placarded.

At the time a structure or premises is declared to be a public nuisance, the administrator shall cause to be posted at each entrance to the structure, the structure or portion thereof a notice to read "DANGER — PUBLIC NUISANCE UNSAFE OR UNFIT FOR HUMAN OCCUPANCY. ADMINISTRATOR NEIGHBORHOOD INSPECTION DIVISION, CITY OF DES MOINES." This notice shall remain posted until the required repairs, demolition, or removal is completed. Until required repairs are made or the structure or premises are demolished or removed, the notice shall not be removed, and no person shall enter the structure except to make the required repairs or to demolish the structure. (O.16,392)

Sec. 60-194. Defacing and removing placard.

No person shall deface or remove the placard, except as authorized by the administrator. (O.16,392)

Sec. 60-195. Emergency measures to vacate.

If one or more of the following exists, the administrator is hereby authorized and empowered to order and require the owner(s) and/or occupant(s) to vacate the premises immediately:

(1) There is imminent danger of failure of collapse of a structure that endangers life;

(2) Any structure or part of a structure has fallen, and life is endangered by occupation of the structure; or

(3) There is actual or potential danger to the building occupants or those in proximity of any structure because of explosives, explosive fumes or vapors or the pres-

ence of toxic fumes, gases or materials, or operation of defective or dangerous equipment.

(O.16,392)

Sec. 60-196. Public nuisance notice procedure.

(a) At the time a structure or premises is declared to be a public nuisance under this article except for any violation under section 60-195, the department shall provide notice to the owner(s) and legally interested parties shall be notified in writing.

(b) The notice shall contain:

(1) The name and last known address of those receiving notice;

(2) The legal description of the subject real estate and its street address including lot or unit number as applicable;

(3) A description of the conditions that constitute the nuisance and the remedial action required to abate the nuisance;

(4) A deadline for abatement of the nuisance;

(5) A statement the city council may approve legal action at the expiration of the deadline for abatement of the nuisance if a renovation agreement is not entered into or the nuisance is not otherwise abated prior to the deadline.

(6) A statement of the right of the division to collect unpaid costs by personal judgment, collection, or assessment to be collected as a property tax.

(c) The notice shall be served in the manner of an original notice pursuant to the Iowa Rules of Civil Procedure.

(O.16,392)

Sec. 60-197. Referral to city council.

Any and all structures or premises determined to be public nuisances under this article, which are not brought into compliance in the time required, or for which a renovation agreement has not been entered into, and against which no emergency procedure for removal has been undertaken pursuant to this article shall be referred to the city council.

(1) If the city council finds that a public nuisance exists and confirms the action of the administrator, it shall direct the legal department to file an action for nuisance abatement in district court or take other appropriate action.

(2) If the city council finds that the structure or premises is not a public nuisance, it shall revoke the determination of the administrator and direct such other action as it finds appropriate.

(3) If the city abates the nuisance, the city council shall direct the abatement costs to be collected as a personal judgment against the current owner(s) of the structure and the real estate and may be collected against any other person or entity who owned the property while declared a public nuisance. The city may also assess the abatement costs against the property to be collected as a property tax.

(4) If the city council determines the structure can be renovated, the city council may authorize the administrator to enter into a renovation agreement or other extension of time pursuant to section 60-201 of this chapter, authorize and direct the city's legal representatives to release liens and judgments or dismiss pending litigation, or take other or additional action to allow the structure's renovation.

(O.16,392)

Sec. 60-198. Service by public utilities.

The administrator shall have the authority to request disconnection of any utility serviced to the building, structure or system regulated by this code in case of emergency where necessary to eliminate an immediate hazard to life or property or where such utility connection has been made without approval. The administrator shall notify the serving utility and, whenever

possible, the owner and occupant of the building, structure, or service system of said request prior to taking such action.
(O.16,392)

Sec. 60-199. Approval for occupancy.

The owner of a structure declared to be a public nuisance shall not thereafter allow it to be occupied or used until approval is secured from the administrator and all necessary permits have been issued, inspected, and closed. The public nuisance designation may be removed by the administrator upon the owner or their representative eliminating the nuisance at the property or for other good cause.
(O.16,392)

Sec. 60-200. Costs.

(1) Inspection fees and re-inspection fees and all other costs associated with any enforcement action will be charged in the amount set forth in the schedule of fees adopted by the city council.

(2) Costs imposed upon the owner in the enforcement of this article shall be payable within 30 days of the date of billing and if unpaid will be collected as a special assessment, personal judgment, or any other collection measure deemed appropriate.

(3) Structures referred to the legal department for prosecution will be inspected as necessary to enforce the code and associated costs will be billed as set out in the schedule of fees adopted by the city council.
(O.16,392)

Sec. 60-201. Public nuisance renovation agreements.

(1) If an owner cannot abate any violations of this chapter within the time allowed in the notice of violation because of weather constraints, extensive scope of work, or extraordinary circumstances not of the owner(s)' or authorized management agent's making or are beyond the owner's or authorized management agent's control they may request an extension of time to abate such violation(s).

(2) An owner(s) or authorized management agent may make a request accompanied by the fee set forth in the schedule of fees adopted by the city council, for an extension that is specific to the structure or premises and must show that:

(a) Timely compliance with this chapter is impractical;

(b) The extension does not violate the intent and purpose of the Municipal Code; and

(c) Such extension does not endanger adjacent properties or the integrity of the structure.

(3) At the administrator's discretion, information regarding the proposed extension, including, but not limited to proposed scope of work, project budget, project schedule, and proof of financial ability to complete the repair(s) identified in the proposed scope of work may be requested and, if requested, must be provided by the owner(s) or authorized management agent prior to approval.

(4) If an extension of time is granted, the owner(s) or authorized management agent and the Administrator shall enter into a written renovation agreement setting forth the terms and conditions of any approved time extension.
(O.16,392)

Chapter 61

PROPERTY MAINTENANCE*

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***Editor's note—**Ord. No. 16,407, § 1, adopted Dec. 23, 2024, eff. Feb. 1, 2025, repealed the former Ch. 61 and enacted a new Ch. 61 as set out herein. The former Ch. 61 pertained to vacant property registration ordinance and derived from Ord. No. 16,190.

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ARTICLE I. GENERAL AND PROPERTY MAINTENANCE

DIVISION 1. GENERAL

Sec. 61-1. Title.

Chapter 61 shall be known as "Property Maintenance" and hereafter referred to as this "chapter".
(O.16,407)

Sec. 61-2. Scope.

It is the intent of the City of Des Moines, through the adoption of this chapter, to establish a mechanism to ensure all properties are free of exterior code violations and to set forth guidelines for the maintenance of all properties; to protect residential and commercial districts from becoming blighted through the lack of maintenance and security due to vacant properties; to establish a Vacant Property Registration program; and to establish the Improving Our Neighborhoods subsidy program.

Unless otherwise specified herein, the provisions of article I and article II of this chapter shall apply to the maintenance, repair, use, and occupancy of all equipment, structures, accessory structures, and premises now in existence or hereafter constructed, rehabilitated, or renovated within the corporate limits.
(O.16,407)

Sec. 61-3. Intent.

Unless otherwise specified herein, this chapter shall be interpreted to ensure public health, safety, and welfare as they are affected by the condition of such properties within the city. This chapter shall further be interpreted to require structures to be maintained in good condition and good repair using a workmanlike level of maintenance so as to stabilize and improve the building stock of the city. Existing structures that do not comply with these provisions shall be altered or repaired to provide the level of workmanship, health and safety required herein.
(O.16,407)

Sec. 61-4. Conflicting provisions.

If the provisions of this chapter are inconsistent with one another or if they conflict with provisions found in other adopted ordinances or regulations of the city, the more restrictive provision governs unless otherwise expressly stated. The more restrictive provision is the one that imposes more stringent controls.
(O.16,407)

Sec. 61-5. Powers.

(1) The administrator is hereby authorized and directed to enforce the provisions of this chapter. The administrator shall have the authority to render interpretations of this chapter and to adopt policies and procedures to clarify the application of its provisions. Such interpretations and polices shall be consistent with the intent and purpose as set out in this chapter. Such policies and procedures shall not have the effect of waiving requirements specifically provided in this chapter.

(2) The administrator is authorized, subject to any approval required by the Municipal Code, to consult with and engage any subject matter expert as the administrator deems necessary to interpret and enforce any provisions of this chapter requiring specialized knowledge, training, or experience.

(3) The administrator shall keep and maintain all records of inspections, licenses, extensions, administrative hearings, fines, modifications, contracts, and all other records maintained by the division for such time period as required by any applicable federal, state, or local law or policy.

(4) The administrator is authorized to enter into renovation agreements and agreements to extend time for compliance with this chapter.

(5) The administrator is authorized to enter into contractual agreements in fulfillment of the Improving Our Neighborhoods Program, established within article III.
(O.16,407)

Sec. 61-6. Exemptions.

Except with respect to any property upon which the administrator or their designee in their sole discretion determines an emergency exists, property shall be exempt from the requirements of this chapter if either of the following conditions exist.

(a) The property is under construction and the contractor has applied for and is covered by a valid building or trade permit(s).

(b) The structure(s) and/or premises are owned, licensed, and/or operated by any governmental unit or governmental agency.

At such time either of the qualifications for exemption cease to exist, the property shall be subject to the requirements of this chapter. (O.16,407)

Sec. 61-7. Identification.

The administrator, or any designee thereof, shall carry proper city-issued identification when inspecting structures or premises in the performance of duties under this chapter. (O.16,407)

Sec. 61-8. Definitions.

Unless otherwise expressly stated, or the context clearly indicates a different intention, the following terms have the following meanings and shall be so construed wherever they appear in this article:

Accessory structure means a structure on the same lot, separate from, and of a nature customarily incidental and subordinate to the principal structure. Trailers, semi-trailers, tents, motor vehicles, and component parts thereof shall not be considered accessory structures. A structure which might otherwise be considered an accessory structure, but which is connected to the principal structure by a breezeway or other extension of the principal structure containing a functional roof and floor shall, for the purposes of this chapter lose its status as an accessory structure, be deemed part of the principal structure, and be subject to all restrictions applicable to a principal structure.

Administrator means the administrator of the division or their designee. The administrator is the code official for this chapter and shall be the authorized representative for the enforcement of this chapter and for the administration of the division.

Authorized management agent means any person appointed by the owner(s) who has charge, care, or control of any structure or premises. Such person shall be authorized to accept service of communications from the city.

City means the City of Des Moines, Iowa.

Corporate limits means the geographical limits of the City of Des Moines as set forth in Municipal Code section 2-1.

Cost(s) means all inspection fees, re-inspection fees, fines, civil penalties, eviction costs, demolition costs, asbestos survey, landfill fees, title searches, mailings, postings, photographs, research fees, copy fees, administrative costs, and legal costs, and any other expenditure of time or money incurred from the enforcement of this chapter incurred by the division in the enforcement of this chapter and for all other fees as set out in the schedule of fees as adopted by the city council.

Department means the neighborhood services department of the city.

Deterioration means the state of being weakened, disintegrated, corroded, rusted, or decayed.

Director means the neighborhood services director.

Dwelling unit means a single unit providing complete, independent living facilities for one or more persons, including permanent provisions for living, sleeping, eating, cooking, and sanitation.

Easement means that portion of land or property reserved for present or future use by a person or agency other than the owner(s) of the real estate.

Equipment means tangible personal property that is generally non-expendable, functionally complete for its intended purpose, and may or may not be considered a fixture to the premises.

Evidence of vacancy means any condition or circumstance that on its own, or combined with other conditions or circumstances present, would lead a reasonable person to believe that a property is vacant. Such conditions may include, but not are limited to, disconnection of utility services, broken windows and or doors, overgrown or dead vegetation, including lawns, shrubbery and other plantings; accumulation of abandoned personal property, trash or waste; visible lack of maintenance of any building or structure on the property, including accessory structures; graffiti on or other defacement of buildings or structures on the property; and any other condition or circumstance reasonably indicating that the premise is not occupied.

Exterior property means the open space on the premises, adjacent public way(s) and on adjoining property under the control of the owner(s) or authorized management agent of such premises that is outside of any structure located on the premises.

Extermination means the control and elimination of insects, rats, or other pests by elimination of harborage places; by removing or making inaccessible materials that serve as food; by poison spraying, fumigation, trapping or by any other approved pest elimination method.

Foreclosure means the process, either judicial or non-judicial, invoked by the owner(s) or holder of a mortgage, by which a property placed as security for a real estate loan in which the mortgage holder is notified of a default, the filing of a foreclosure, sold at public or private sale to satisfy the debt of the borrower in the event of a default by the borrower under the terms of the promissory note or mortgage.

Garbage or rubbish may be used interchangeably and mean animal or vegetable waste resulting from the handling, preparation, cooking, and/or consumption of food and all other combustible and non-combustible waste materials.

Good condition means structurally sound with no obvious maintenance or repair required and all major components and materials still functioning as intended.

Good repair means fit for human habitation in accordance with all applicable codes. Everything operates as it should, and the property is clean and well maintained inside and out. There is no wasting or neglect of the property, and it is maintained in good condition.

Grade means the finished ground level adjoining any structure at all exterior walls.

Habitual violator means any person who is found to have violated this article three or more times within a 36-month period at any address in the city.

Infestation means the presence of insects, rats, vermin, or other pests within or contiguous to a structure or premises of insects, rodent's vermin or other pests.

Inoperable motor vehicle means a vehicle which cannot be driven upon the public street for reasons including but not limited to being unlicensed, wrecked, abandoned, in a state of disrepair, or incapable of being moved under its own power.

Junk means all old or scrap copper, brass, lead, or any other non-ferrous metal; old rope, rags, batteries, paper, trash, rubber debris, waste, used lumber or salvaged wood; dismantled or inoperable motor vehicles, unsafe vehicles, machinery and appliances or parts of such vehicles, machinery or appliances; iron, steel, or other old or scrap ferrous material; old discarded glass, tin ware, plastic, or old discarded household goods or hardware; cut brush, including dead or decaying plant material, except a contained compost pile or orderly stacked firewood if cut in lengths less than or equal to four feet and stored at least 18 inches above the ground surface.

Legally occupied means a structure or premises that complies with all applicable provisions of the Municipal Code including, but not limited to Building Code, Electrical Code, Fire Code,

Nuisance Code, and any other applicable state, national, and international codes as adopted by the Municipal Code.

Mortgagee means the person or entity that is the owner(s) or holder of a mortgage, deed of trust or similar instrument encumbering real property as security for a promissory note or other debt.

Mobile home means any vehicle without motive power and so designed, constructed, or reconstructed as a dwelling unit to permit the vehicle to be used as a place for human habitation by one or more persons. It may also include any such vehicle with motive power not registered as a motor vehicle in this state. A mobile home is factory-built housing built on a chassis. A mobile home may not be construed to be a travel trailer or other form of recreational vehicle. A mobile home shall be construed to remain a mobile home, subject to all regulations pertaining thereto, whether or not wheels, axles, hitches or other appurtenances of mobility are removed and regardless of the nature of the foundation provided.

Municipal Code means the City of Des Moines Municipal Code when it is the subject of reference in this chapter.

Neglect means the lack of proper maintenance for a structure or premises or any part thereof.

Occupancy means the purpose for which a building or portion thereof is utilized or occupied.

Occupant means any individual living or sleeping in a structure or portion thereof or having possession of a space within a structure.

Overhang extension means any portion of a structure or any element anchored thereto that extends beyond the structure's exterior walls at a height of eight feet or more above grade.

Owner, for the purposes of chapter means any person, agent, firm or corporation having legal or equitable interest in the premises; or a recorded interest in the official records of the state or county as holding title to the real estate; or otherwise having control of the real estate or dwelling unit(s), including but not limited to the guardian of the estate of any such person, the executor or administrator of the estate of such person who is ordered to take possession or control of the real estate by the court.

Premises means a lot, plot, or parcel of land, easement, or public way, including any structure or other improvement thereon.

Public way means any sidewalk, street, alley, right-of-way or similar place of land essentially unobstructed from the ground to the sky, which is deeded, dedicated or otherwise permanently appropriated to the public for public use.

Property improvement division (hereinafter "division") means the division within the city charged with the duty to inspect premises and structures for compliance with this article, and may also mean, as the context indicates, a member of that division.

Structure means that which is built, assembled, or constructed or a portion thereof.

Vacant property means any property, including any building or structure thereon, shows evidence of vacancy and that is not legally occupied.

Workmanlike means repairs, maintenance work, alterations or installations that are required, directly or indirectly, by this chapter which shall be executed and installed in accordance with the manufacturer's instructions in a skilled manner, generally plumb, level, square, in line, undamaged, without marring adjacent work, using compatible materials approved for the use, like in nature and look to remaining material if there is a partial replacement or repair, to maintain the structure and premises in good condition, and in compliance with all applicable code requirements.
(O.16,407)

Secs. 61-9—61-12. Reserved.

DIVISION 2. NOTICE OF VIOLATION, APPEAL, COMPLIANCE, AND COSTS

Sec. 61-13. Inspections.

The administrator or designee shall be authorized to inspect or cause to be inspected property located within the city to ensure compliance with this chapter.
(O.16,407)

Sec. 61-14. Alternative materials and methods.

The provisions of this chapter are not intended to prevent the installation of any material or to prohibit any design or method of construction not specifically prescribed by this chapter provided that any such alternative has been approved by the city.

(1) An alternative material, design or method of construction may be approved by city staff where it is found:

(a) The proposed material, design or method of construction is satisfactory and complies with the intent of the provisions of this chapter; and

(b) The proposed material, design or method of construction is not less than the equivalent in quality, strength, effectiveness, fire resistance, durability, and safety of that prescribed in this chapter.

(2) The use of used materials that meet the requirements of this chapter for new materials may be permitted. Materials, equipment, and devices shall not be reused unless such elements are in good repair or have been reconditioned and tested where necessary, placed in good condition, and approved by the administrator.

(3) Materials, design, equipment, and devices approved shall be constructed and installed in accordance with any conditions of such approval.

(4) Where the alternative material, design, or method of construction is not approved, the administrator shall issue a decision in writing and state the reasons the alternative was not approved.

(5) An owner(s) or authorized management agent may appeal a denial of an alternative material, design, or method of construction to the director.
(O.16,407)

Sec. 61-15. Renovation agreement.

(1) If an owner cannot abate any violations of this chapter within the time allowed in the notice of violation because of weather constraints or extraordinary circumstances not of the owner(s)' or authorized management agent's making or are beyond the owner's or authorized management agent's control they may request an extension of time to abate such violation(s).

(2) An owner(s) or authorized management agent may make a request accompanied by the fee set forth in the schedule of fees adopted by the city council, for an extension that is specific to the property and must show that:

(a) Timely compliance with this chapter is impractical;

(b) The extension does not violate the intent and purpose of the Municipal Code; and

(c) Such extension does not endanger the life, health, or safety of the occupants or the integrity of the structure or any neighboring structure.

(3) At the administrator's discretion, information regarding the proposed extension, including, but not limited to proposed scope of work, project budget, project schedule, and proof of financial ability to complete the repair(s) identified in the proposed scope of work may be requested and, if requested, must be provided by the owner(s) or authorized management agent prior to approval.

(4) If an extension of time is granted, the owner(s) or authorized management agent and the administrator shall enter into a written renovation agreement setting forth the terms and conditions of any approved time extension.

(5) An owner(s) or authorized management agent may appeal a denial of an extension to the director.
(O.16,407)

Sec. 61-16. Notice to abate.

(1) Notice to abate a violation shall be given prior to city action to enforce the provisions of this chapter, except that in the event of an emergency, such notice as is practical under the circumstances, if any is practical, shall be given; provided, however, that nothing herein shall require notice in an emergency if impractical. If notice to abate a violation is given pursuant to this article, said notice shall contain the following information:

(a) A description, to the extent possible, of the conditions that constitute the violation;

(b) A description of the location of the violation;

(c) A statement that the person liable for the presence of the violation must correct the violation within the reasonable time set forth in the notice and in accordance with this article; and

(d) A statement that upon failure to comply with this chapter within the time set forth in the notice, the person so notified of the violation shall be deemed liable for the violation, and that the City may enter onto the real property and cause the conditions which constitute the violation to be abated and assess the costs of abatement against the real property for collection in the same manner as a property tax, following administrative hearing process if a hearing is requested or court action as applicable.

(e) If the division elects to follow the administrative hearing procedure set forth in this article, the notice shall also contain a statement that the person notified, or the person's duly authorized agent as identified in a notarized statement provided by the person notified, may file a written request for an administrative hearing as set forth in section 61-18 of this article.

(2) Notice of costs of abatement shall be given prior to city assessment of such costs. If notice of costs of abatement is given following administrative hearing procedure or emergency action pursuant to this article, said notice shall contain the following information:

(a) A statement that upon failure to make full payment as directed in the notice within the time set forth in the notice, the city may assess the costs of abatement against the real property for collection in the same manner as a property tax, following administrative hearing if requested.

(b) A statement that the person notified, or the person's duly authorized agent as identified in a notarized statement provided by the person notified, may file a written request for an administrative hearing on costs of abatement only, as set forth in section 61-18 of this article.

(O.16,407)

Sec. 61-17. Service of notice.

Notices given pursuant to this article shall be served by certified mail and regular mail, postage prepaid, to all persons deemed responsible for the violation, and to all other parties required by law or by departmental policy or procedure to receive such notices, at their last known mailing addresses as shown by the records of the county auditor, and if deemed appropriate by administrator or his/her designee, at their last known mailing addresses as shown by any other available public record. In addition to and concurrently with mailing, notice may be delivered by a peace officer, process server, or any other method deemed appropriate. Failed attempts to locate the person responsible for the violation shall be documented by the division.
(O.16,407)

Sec. 61-18. Administrative hearings.

(1) Recipients of notices pursuant to this article are not entitled to administrative hearings, and administrative hearings shall not be held, if the division elects to solely bring civil action to abate the violation and collect costs for abatement rather than to follow the administrative hearing procedure, as stated in the notice.

(2) Recipients of notices pursuant to this article for which the division elects to follow the administrative hearing procedure, as stated in the notice, may request an administrative hearing as follows:

(a) Requests shall be made in writing, and either hand-delivered to the city clerk no later than 30 calendar days from the date of the notice or sent to the city clerk via regular mail postmarked by official U.S. postal service cancellation and not by postage meter no later than 30 calendar days from the date of the notice.

(b) Each request for hearing shall contain the name, address, electronic mail (e-mail) address and daytime telephone number of any person requesting a hearing and of any attorney and/or agent duly authorized by the person who has received the notice to represent him/her at the hearing.

(c) Each request for hearing shall set out the requester's basis for the appeal.

(d) Failure to request a hearing within 30 calendar days from the date of the notice shall be deemed a waiver of the right to contest the validity of the determination of violation and/or determination of costs stated in the notice, as applicable. The information set forth in the notice will be deemed to be valid, and abatement and/or assessment of abatement costs will proceed as indicated in the notice.

(3) All administrative hearings requested in compliance with this section shall proceed as follows:

(a) Shall be scheduled by the city clerk to occur as soon as practical following the date of the notice.

(b) Shall be held before a hearing officer and be conducted informally. The department and the person in receipt of the notice may be represented by counsel or duly authorized agent, and examine witnesses, and present evidence.

(c) The person requesting the hearing shall be notified in writing by regular mail or by electronic mail (e-mail), or by phone of the date and time for the hearing at least three business days in advance thereof.

(d) For hearings following notice to abate a violation, the hearing officer shall either find that a violation exists, or void or reverse the notice. If the hearing officer finds that a violation exists and evidence of plans for abatement are presented at the hearing by the recipient of the notice, the hearing officer may grant additional reasonable time for the abatement of the violation by the recipient of the notice prior to city abatement of the violation.

(e) For hearings following notice of costs of abatement, the hearing officer shall either uphold the amount billed, reduce the amount billed, or waive the costs, and shall not determine any other issue relating to the violation abatement including but not limited to any issue that may have been raised at a hearing following notice to abate a violation. Any costs not waived by the hearing officer may be assessed against the real property for collection in the same manner as a property tax.

(f) If an owner(s) or their representative fails to appear at the hearing, they shall be considered in default and the requested relief shall not be granted.

(4) The determination of the hearing officer shall be in writing, including findings of fact, and is the final administrative decision of the city.

(a) Any party aggrieved by the determination of the hearing officer pursuant to this article may challenge whether the officer exceeded proper jurisdiction or otherwise acted illegally by commencing a certiorari action in the district court for Polk County, Iowa. The petition to initiate a certiorari action must be filed within 30 days after the entry of the final determination unless an extension of time is allowed by the reviewing court pursuant to Division XIV of the Iowa Rules of Civil Procedure. The city manager is

hereby authorized to initiate a certiorari on behalf of the city when the city manager, in consultation with the city attorney, deems it necessary and appropriate.

(b) The filing of an action in the district court challenging the determination of the hearing officer does not automatically stop the city from taking action pursuant to such determination. Unless the city has been served with an order from the district court directing otherwise, the city may proceed with enforcement of a determination.

(5) Request for an administrative hearing does not stay an action by the city for alternative relief as allowed by law.
(O.16,407)

Sec. 61-19. Violations enforced by civil action.

Notices pursuant to this article for which the department elects to proceed by civil action shall be served in the manner set forth in section 61-17 of this article and shall contain all information set forth in section 61-17 of this article as well as a statement that the city may file a civil action and seek a court order relating to the existence, abatement, and recovery of costs of the violation.
(O.16,407)

Sec. 61-20. Civil infractions; alternative relief.

(1) Any person who fails to perform an act required by this chapter or who commits an act prohibited by this chapter shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of the Municipal Code.

(2) Proceeding with an administrative hearing, civil action, or emergency action as authorized in this chapter does not preclude the city from seeking alternative relief from a court in the same action or as a separate action, including but not limited to an order for abatement, injunctive relief, or authorization to make repairs.

(3) In addition to other remedies set forth in this chapter, when it is determined by the administrator that a violation exists and/or that a person is a habitual violator, the city may file a civil action in the district court seeking an order enjoining the person from further violation of this chapter on real property owned or controlled by such person or real property where such person acts as an agent, tenant, or lessee of any residential dwelling, commercial establishment and/or real property within the city. The city may further request that upon entry of the injunction the court allow the city to abate further violations without notice and/or seek an order of contempt.
(O.16,407)

Sec. 61-21. Penalty for non-compliance.

(1) If, after notice of violation of this chapter and a reasonable amount of time has been afforded to the owner to correct any violations has passed and the owner has failed to correct such violations, the owner shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.

(2) The administrator may impose a fine for any violation of this chapter in the amount set forth in the schedule of administrative penalties adopted by the city council, including but not limited to the following:

(a) For each day the owner fails to arrange for an inspection within the time set forth in this chapter.

(b) For each violation not corrected within the time designated in the notice of violation or within such time the owner has been granted an extension of time, may be subject to the maximum fine, retroactive to the original date set forth in the violation notice.

(3) The administrator shall have the authority to impose the maximum fine, a lesser fine, or to waive the fine upon good cause shown.

(4) Notwithstanding any other provision of this chapter to the contrary, the department shall not enforce any violation of division 3 of this chapter against any property or owner who

has applied for and been approved for participation in the Improving Our Neighborhoods (ION) program established by article III of this chapter. The exemption from enforcement set forth in this subsection shall only apply to properties or owners who are in compliance with the requirements of the ION program as set forth in that program's policies, procedures, guidelines, and any written agreements entered into for purposes of participation in the ION program.

(5) Notwithstanding any other provision of this chapter to the contrary, the department shall not enforce any violation of division 3 of this chapter against any residential, owner-occupied structure when the owner of such structure would be considered a low- or moderate-income person as defined by the United States Department of Housing and Urban Development during any fiscal year for which the city council has not provided funding in that year's budget for the Improving Our Neighborhoods (ION) program established by article III of this chapter.
(O.16,407)

Sec. 61-22. Collection of costs.

(1) Costs imposed upon the owner in the enforcement of this chapter shall be payable to the city within 30 days of the date of notice which will be provided to the owner or authorized management agent; and

(2) The invoice shall include notice that if unpaid the amount due will be collected as a special assessment, personal judgment, or any other collection measure the city deems appropriate.
(O.16,407)

Sec. 61-23. Ordinance not limiting.

The responsibilities imposed under this chapter shall not limit or abridge any duty, requirement, obligation or liability created by another provision of law, or under contract between parties.
(O.16,407)

Secs. 61-24, 61-25. Reserved.

DIVISION 3. MAINTENANCE STANDARDS

Subdivision I. Exterior Property Area

Sec. 61-26. General maintenance.

Equipment, systems, devices, and safeguards required by this chapter or a previous regulation or code under which the structure or premises was constructed, altered, or repaired shall be maintained in good repair. The requirements of this chapter are not intended to provide the basis for removal or abrogation of fire protection and safety systems and devices in existing structure(s). Except as otherwise specified herein, the owner or their authorized management agent shall be responsible for the maintenance of structures and premises. Items that previously passed inspections but are through subsequent inspection found to be in violation of this chapter are subject to enforcement.
(O.16,407)

Sec. 61-27. Repairs.

All repairs shall be done in a workmanlike manner and the premises shall be maintained in a safe and sanitary condition. All work must be done in accordance with any other applicable standard, national, and international codes as adopted by the Municipal Code.
(O.16,407)

Sec. 61-28. Sanitation.

All exterior property and premises shall be maintained in a clean, safe, and sanitary condition.
(O.16,407)

Sec. 61-29. Grading and drainage.

All premises shall be graded and maintained to prevent the erosion of soil and to prevent the accumulation of stagnant water. All properties shall have positive drainage away from foundation or mobile home.

This section shall not apply to any retention areas and reservoirs approved by the city.
(O.16,407)

Sec. 61-30. Sidewalks, driveways, and parking spaces.

(1) All privately-owned sidewalks, driveways, parking spaces and similar areas shall be kept in good repair and maintained free from hazardous conditions. A defective condition exhibits one or more of the following characteristics:

(a) Covered in whole or in part with weeds or other plants, garbage, junk, rubbish, debris, solid waste, bird or animal droppings or any violations, obstructions or hazards which makes or tends to make pedestrian travel either dangerous or impractical.

(b) Trip hazards or other breaks, shifts or separations or deterioration as visible from a public space.

(2) Gravel drives or parking areas must be maintained with a surface area consisting of a uniform layer of gravel evenly distributed, and must be free of bare spots, ruts, and vegetation. The consistency of the surface must be tightly bound and consistently graded. All defects must be repaired with clean fill material consistent with the existing drive or parking area that does not contain dirt, sticks, construction debris or other foreign material.
(O.16,407)

Sec. 61-31. Nuisance vegetation.

Properties must be maintained in compliance with chapter 42, article XII.
(O.16,407)

Sec. 61-32. Rodent harborage.

All structures, exterior property and premises shall be kept free from rodent harborage and infestation. Where rodents are found, they shall be promptly exterminated by an approved process which will not be injurious to human health. After extermination, proper precautions shall be taken to eliminate rodent harborage and prevent further re-infestation.
(O.16,407)

Sec. 61-33. Accessory structures.

All accessory structures shall be structurally sound and in good condition.
(O.16,407)

Sec. 61-34. Motor vehicles.

No owner shall allow for inoperable motor vehicles or motor vehicles that are in violation of other provisions of the Municipal Code on the property.
(O.16,407)

Secs. 61-35—61-42. Reserved.

Subdivision II. Exterior Structure

Sec. 61-43. General maintenance.

(1) The exterior of a structure shall be maintained in good repair, structurally sound and sanitary so as not to pose a threat to public health, safety, or welfare. Exterior wood surfaces, other than decay-resistant woods, shall be protected from the elements and decay by painting or other protective covering or treatment. Peeled, flaked, and chipped paint shall be eliminated, and surfaces repainted.

(2) All metal surfaces subject to rust or corrosion shall be coated to inhibit such rust or corrosion and all surfaces with rust or corrosion shall be stabilized and coated to inhibit future rust and corrosion. Oxidation stains shall be removed from exterior surfaces. Surfaces designed for stabilization by oxidation are exempt from this requirement.

(3) Soffit, fascia, and trim must be in good repair and impervious to weather.
(O.16,407)

Sec. 61-44. Premises identification.

Principal structures shall have approved address numbers, building numbers, or building identification placed in a position to be plainly legible from the public way fronting the property. These numbers shall contrast with their background. Address numbers shall be Arabic numerals or Roman letters. Numbers or letters

shall be not less than four inches (102 mm) in height with a minimum stroke width of 0.5 inch (12.7 mm).
(O.16,407)

Sec. 61-45. Structural members.

All structural members shall be maintained structurally sound and capable of supporting the imposed loads.
(O.16,407)

Sec. 61-46. Foundation walls.

All foundation walls shall be maintained plumb and free from open cracks and breaks and shall be kept in such condition so as to prevent the entry of rodents and other pests.
(O.16,407)

Sec. 61-47. Exterior walls.

All exterior walls shall be free from holes, breaks, and loose or rotting materials; and maintained weatherproof and properly surface-coated where required to prevent deterioration. All siding and masonry joints as well as those between the building envelope and the perimeter of windows, doors, and skylights shall be maintained weather-resistant and watertight.
(O.16,407)

Sec. 61-48. Roofs and drainage.

The shingles and flashing shall be in good condition and weather tight. Roof drainage shall be adequate to prevent dampness or deterioration in the walls or interior portion of the structure. Roof drains, gutters, and downspouts shall be maintained in good repair and free from obstructions.
(O.16,407)

Sec. 61-49. Overhang extensions.

Overhang extensions shall be maintained in good repair and be properly anchored so as to be kept in a good condition. Where required, all exposed surfaces of metal or wood shall be protected from the elements and against decay or rust by periodic application of weather-coating materials, such as paint or similar surface treatment.
(O.16,407)

Sec. 61-50. Stairways, decks, porches and balconies.

Every exterior stairway, deck, porch, and balcony and all appurtenances attached thereto, shall be maintained structurally sound in good repair with proper anchorage and capable of supporting the imposed loads.
(O.16,407)

Sec. 61-51. Chimneys and towers.

All chimneys, cooling towers, smokestacks, and similar appurtenances shall be maintained structurally safe and sound and in good repair. All exposed surfaces of metal or wood shall be protected from the elements and against decay or rust by periodic application of weather-coating material, such as paint or similar surface treatment.
(O.16,407)

Sec. 61-52. Gates.

Exterior gates, gate assemblies, operator systems if provided, and hardware shall be maintained in good condition. Latches at all entrances shall tightly secure the gates.
(O.16,407)

Sec. 61-53. Windows, skylights and door frames.

(1) Every door and frame, window or skylight shall be kept in good condition, good repair and weather tight. All glazing materials shall be maintained free from cracks and holes.

(2) Exterior doors, door assemblies, operator systems if provided, and hardware shall be maintained in good condition. All doors must be secured from unwanted entry.

(3) Every basement hatchway shall be maintained to prevent the entrance of rodents, rain, and surface drainage water and secure from unwanted entry.
(O.16,407)

Secs. 61-54—61-61. Reserved.

ARTICLE II. VACANT PROPERTY REGISTRY

Sec. 61-62. General.

(1) The administrator shall cause inspections to be made to determine the condition of all structures and premises exhibiting evidence of vacancy within the corporate limits and may issue notices as provided in this chapter.

(2) This article shall apply to vacant properties with residential, accessory, or commercial occupancies or improvements located thereon.

(3) This article shall also apply to properties that are the subject of a foreclosure action as set out in this article.

This article shall be considered cumulative and not superseding of, or subject to, any other law or provision relating to the same subject but shall rather be an additional remedy available to the city above and beyond any other state, county or local law or regulation.
(O.16,407)

Sec. 61-63. Vacant property registration and licensing required.

(1) Any owner(s) of any vacant property located within the city shall register the property as required by this chapter within ten days of a property becoming vacant.

(2) No owner(s) shall own any vacant property unless that owner(s) holds a valid vacant property registry business license for such property.
(O.16,407)

Sec. 61-64. Exceptions.

In addition to the exemptions provided in section 61-6, property shall not be required to comply with the requirements of this article if all of the following conditions exist:

(1) The property is not the subject of foreclosure; and

(2) The property is listed in the applicable multiple listing service(s) or other substantial competent evidence of active marketing; and

(3) The property has remained vacant less than 180 days; and

(4) The outward appearance of the property is being maintained.

At such time any of the conditions for the exception ceases to exist, the property shall be subject to the requirements of this article.
(O.16,407)

Sec. 61-65. Properties in foreclosure.

Any mortgagee who files a foreclosure or notice of lis pendens on a vacant property shall comply with the registration requirements of this chapter, within ten days of such filing.
(O.16,407)

Sec. 61-66. Required owner or authorized management agent information.

(1) Owner(s) of vacant property who reside in Polk County or any county contiguous thereto shall provide the division with their physical address, email address, tax identification number and telephone numbers.

(2) Owner(s) of vacant property who reside outside Polk County or any contiguous county shall provide the administrator with their physical address, email address, tax identification number and telephone numbers and the name, physical addresses, email address, tax identification number, and telephone number of an individual over the age of 18 who shall reside in Polk County or any county contiguous thereto and who shall be designated as the "authorized management agent" responsible for maintenance of the property and for receiving notice and service of process.

(3) Owner(s) of vacant property shall provide the division with the name of insurance carrier, agent, and contact information that provides coverage to the vacant property.
(O.16,407)

Sec. 61-67. Application for vacant property license.

(1) Every owner of any vacant property within the city shall establish a business account with the city by submitting a complete vacant property license application. Each owner shall only be required to establish a single business account with the city and may associate all the owner's vacant properties with that single account.

(2) All the information set forth in section 61-66 shall be required for a vacant property registry business account and vacant property registry license application to be considered complete.

(3) No vacant property registry license will be issued unless a complete application has been submitted.

(4) Upon transfer of a property that has a current vacant property registry business license and will continue to be a vacant property:

(a) The transferee shall establish a business account and a vacant property registry business license;

(b) The property shall remain subject to any active notice of violation previously issued under this chapter and the violations must be abated so as to bring the property into compliance with this chapter;

(c) The renewal inspection will be scheduled on the same schedule as the renewal for the previous owner; and

(d) An administrative fee in the amount set forth in the schedule of fees adopted by the city council may be charged for the transfer of an existing license to a new owner.

(5) The owner(s) or authorized management agent(s) shall be required to update the business account information provided in the application within ten days of any change in information, including but not limited to a change in the telephone number(s), mailing address, physical address, email information, authorized management agent or ownership of the property.

(6) The owner(s) of the property shall be required to update the business account information anytime a change in information is made, including but not limited to mailing address, physical address, email information, change in authorized management agent or sale of the property.

(7) If the information provided in the vacant property registry business license application does not include the information required in section 61-66 of this article, a research fee will be charged in the amount set forth in the schedule of fees adopted by the city council by resolution for compensation for staff time in collecting the additional information. Each request for information will result in an additional research fee.

(8) Sixty days prior to the expiration date of the vacant property registry business license, the division will mail or email a notification to the property owner(s), and the authorized management agent that the notice of the expiration of the license is in their account. The notice will include the expiration date of the license and pertinent information for contacting the division. Failure by the division to send the notice of expiration does not eliminate the obligation of the owner(s) to submit a renewal application and payment for the vacant property registry business license.
(O.16,407)

Sec. 61-68. Compliance and vacant property registration license.

(1) Upon submission and approval of a completed vacant property registry business license application, establishment of a business account with the division, completion of satisfactory inspection, and payment of all required costs, the division shall issue a vacant property registry business license. Notice of the license issuance will be provided by email or regular mail to the owner or authorized management agent as designated in the business account or vacant property registry business license application maintained with the division.

(2) The division shall send an invoice by email or regular mail to owner(s) and authorized management agent at the email or physical address on file with the division for all costs owed.

(a) Inspection fees will be charged in the amount set forth in the schedule of fees adopted by the city council.

(b) Costs imposed upon the owner in the enforcement of this article shall be payable within 30 days of the date of billing and if unpaid will be collected as a special assessment, personal judgment, or any other collection measure the city deems appropriate.

(c) Properties referred for legal action will be inspected as necessary to enforce this article and any and all associated costs will be billed as set out in the schedule of fees adopted by the city council.

(3) The vacant property registry business license issued under this article shall contain the following information:

(a) The owner(s) name(s);

(b) The name of the authorized management agent;

(c) Contact information, including email and physical addresses and telephone number(s)for the owner(s) and the authorized management agent;

(d) The local address;

(e) The date of issuance; and

(f) The license expiration date.

(O.16,407)

Sec. 61-69. Revocation of vacant property license.

(1) If an owner fails to comply with the provisions of this chapter following notice and an opportunity to comply, the administrator may revoke or suspend the vacant property registry business license for the property.

(2) Operation of a vacant property without a vacant property registry business license may be prosecuted as a municipal infraction.

(3) An owner may appeal the revocation or suspension of a vacant registry business license by requesting an administrative hearing, pursuant to section 61-18.

(4) Structures that are under enforcement per chapter 60, article III of the Municipal Code shall have their vacant property registry business licenses revoked.

(O.16,407)

Sec. 61-70. Registration of vacant structure.

For so long as the property remains vacant, or subject to a notice of lis pendens or a foreclosure action, a registration fee shall be due from the owner or authorized management agent, as applicable under the circumstances, each year not later than the fifteenth day of the month following the month in which the original registration was made. The annual registration fee shall be set out it the schedule of fees adopted by the city council for each year it remains registered.

(O.16,407)

Sec. 61-71. Security requirements.

(1) The owner or authorized management agent shall secure vacant structures subject to this article, so they are not accessible to unauthorized persons.

(2) Broken and/or boarded windows shall be secured with glass by replacement or repair and reglazing.

(3) Boarded up, broken doors or other entry points shall be repaired in a workmanlike manner.

(4) Should the city find the structure open and unsecured the structure will be immediately boarded as an emergency action with no prior notice.

(O.16,407)

Sec. 61-72. Additional authority as to maintenance and security.

The division shall have authority to require the owner, mortgagee, and authorized management agent implement additional maintenance

and security measures as may be reasonably required to prevent decline of the vacant property.
(O.16,407)

Sec. 61-73. Emergency actions.

If the administrator determines that a violation exists which constitutes an emergency requiring immediate abatement, the city may perform any emergency action necessary to abate the violation without prior notice or abatement hearing.
(O.16,407)

Sec. 61-74. Cost of emergency actions.

Costs of emergency actions shall be payable within 30 days of the date of billing and if unpaid will be collected as a special assessment, personal judgment, or any other collection measure the city deems appropriate.
(O.16,407)

Secs. 61-75—61-84. Reserved.

ARTICLE III. IMPROVING OUR NEIGHBORHOODS PROGRAM

Sec. 61-85. Establishment of the Improving Our Neighborhoods Program.

(1) The city council finds, determines, and declares it to be conducive to the benefit of residents and the health of the city's neighborhoods and in compliance with the requirements of this chapter, that a subsidy program be established to assist qualifying property owners(s) to make repairs to the exterior of their properties, which help to encourage home ownership and investment in the community. This program shall be named the Improving Our Neighborhoods Program (hereinafter "ION Program"). The city council shall have the right to suspend or terminate this program.

(2) The administrator shall establish ION Program policies, procedures, and guidelines (hereinafter "ION Policies and Procedures").
(O.16,407)

Chapter 62

HUMAN RIGHTS

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ARTICLE I. IN GENERAL

Sec. 62-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Arrest means the taking of a person into custody when and in the manner authorized by law or military authority due to an accusation or suspicion that the person committed a crime.

City manager means the City Manager of the City of Des Moines, or his or her designee, or any acting or interim city manager.

Commission or human rights commission means the Des Moines Human Rights Commission.

Conviction means any adjudication of guilt or sentence arising from a verdict or plea of guilty or no contest or the equivalent in relation to a crime, including a sentence of incarceration, a suspended sentence, a sentence of probation, a sentence of unconditional discharge, or a diversion program.

Criminal record means information regarding a conviction, arrest, or pending criminal charge.

Covered multifamily dwelling means:

(1) A building consisting of four or more units of such building having one or more elevators; and

(2) Ground floor units in other buildings consisting of four or more units.

Disability means the physical or mental impairment that substantially limits one or more of the major life activities of a person; a record of this impairment; or being regarded as having such an impairment. Disability does not include current, illegal use of or addiction to a controlled substance as defined in section 102 of the Controlled Substance Act (21 USC 802). In reference to employment, under this chapter, the term "disability" also means the physical or mental condition of a person which constitutes a substantial handicap, but is unrelated to such person's ability to engage in a particular occupation.

Discriminate, discrimination, or discriminatory means any significant and unreasonable difference in treatment because of age, race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry, disability or familial status and includes any and all of the illegal discriminatory practices enumerated in this chapter. This term shall also mean to separate, to segregate, or to make a distinction against any persons, because of age, race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry, disability or familial status. This term shall also include any significant and unreasonable difference in treatment because of a person's association with another of a different age, race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry, disability or familial status. This term also means any additional protected class or classes as are identified and/or defined by Iowa Code Chapter 216.

Dwelling means any building, structure, or portion thereof, including but not limited to trailer courts, trailer parks, or mobile home courts, whether such building or portion is constructed or is to be constructed, which is occupied as or designed or intended for occupancy as a residence or sleeping place of one or more persons or families and any vacant land or real estate which is offered for sale, rent, or lease for the construction or location thereof of any such building, structure, or portion thereof or real property usable for purposes of human habitation or for the construction thereon of a residential facility.

Educational institution includes any preschool, elementary or secondary school, community college, area education agency, or postsecondary college or university and their governing boards.

Employee includes any person employed by an employer but does not include an individual employed by that person's parents, spouse, or child or in the domestic service of any person.

Employer includes, but is not limited to, any person in this city employing four or more persons; any person acting directly or indirectly for an employer; and the city and any other governmental

entity or any board, commission, department, or agency thereof employing persons whose employment or any part thereof is within this city.

Employment agency includes any person or governmental agency undertaking, with or without compensation, to procure employees or opportunities to work, or to procure, recruit, refer, or place employees or any person holding itself equipped to do so.

Familial status means one or more individuals who have not attained the age of 18 years being domiciled with:

(1) A parent or another person having legal custody of such individual; or

(2) The designee of such parent or other person having such custody of the individual, with the written permission of such parent or other person.

The protections afforded against discrimination on the basis of familial status shall apply to any person who is pregnant or is in the process of securing legal custody of any individual who has not attained the age of 18 years.

Financial institution includes any person regularly engaged in the business of lending money or guaranteeing such loans on dwellings.

Gender identity means a gender-related identity of a person, regardless of the person's assigned sex at birth.

Illegal discriminatory practice means those practices specified as illegal or discriminatory in articles III and V of this chapter and in sections 62-101, 62-102, 62-103, 62-104, 62-166, 62-168, 62-169 of this chapter or as otherwise specified as illegal in this chapter.

Inquiry means any direct or indirect conduct intended to gather information, using any mode of communication, including but not limited to a box or blank that seeks to elicit information about an applicant's criminal record on an employment application form.

Interview means any direct contact by the employer with the applicant, whether in person or by telephone, to discuss the employment being sought or the applicant's qualifications.

Labor organization includes any organization which exists for the purpose, in whole or in part, of collective bargaining or of dealing with employers concerning grievances, terms, or conditions or privileges of employment or of mutual aid or protection in connection with employment.

Non-violent misdemeanor offense means a misdemeanor offense excluding an offense involving assault, disorderly conduct, harassment in the first or second degree, interference with official acts, animal abuse, animal torture, or sexually predatory offense.

Owner includes the owner, lessee, sublessee, assignee, agent, or other person having the right to sell, rent, lease, or transfer any housing accommodation or real property within the corporate limits.

Pending criminal charge means an existing accusation that a person has committed a crime, lodged by a prosecutor, law enforcement agency or military authority through an indictment, complaint, or other formal charge, where the accusation has not yet resulted in a final judgment, acquittal, conviction, plea, dismissal or withdrawal.

Person includes, but is not limited to, one or more individuals, partnerships, associations, labor organizations, corporations, legal representatives, mutual companies, trusts, trustees, trustees in bankruptcy or receivers, fiduciaries, joint stock companies, unincorporated organizations, and the state, county and city and any other governmental entity and any of their respective departments, divisions, boards, commissions, officials, agents and employees.

Public accommodations includes any person who caters or offers his or her goods, services, facilities, privileges, advantages, and accommodations to the public, (including but not limited to) state and local governmental units and tax-supported district of whatever kind. (see Iowa Code § 216.2(a)(12)

Real estate broker includes any person, licensed or not, who, either for a fee or other valuable consideration or without fee, sells, purchases, exchanges, rents, negotiates, or attempts to negotiate the sale, purchase, exchange, or rental of a

dwelling as a regular practice, whether for himself or herself or another person, or who acts as a go-between for a would-be-purchaser and seller of a dwelling.

Real estate salesperson or *agent* includes any person, licensed or not, employed by a real estate broker to perform or to assist in the performance of any or all of the functions of a real estate broker, whether individually or for another person, or who acts as a go-between for would-be-purchasers and sellers of housing accommodations or real property on behalf of a real estate broker or individually.

Respondent means the person accused in any illegal discriminatory practices and any other person identified in the course of investigation and notified as required.

Sex means gender. It includes but is not limited to pregnancy, childbirth, and related medical conditions; and women affected by pregnancy, childbirth or related medical conditions shall be treated the same for all purposes covered by this chapter.

Sexual orientation means actual or perceived heterosexuality, homosexuality or bisexuality. *Sexual orientation* does not include participation in acts which are prohibited by law.

Source of income means money, funds, income, and support, payable directly or indirectly to or on behalf of a renter or buyer of housing, derived from any pension, annuity, child support, or alimony, or any tax supported federal, state or local funds, including but not limited to, social security, supplemental security income, temporary assistance for needy families, family investment program, general relief, food stamps, unemployment compensation, housing choice voucher rent subsidies, and similar rent subsidy programs.
(C54, § 2-418; O.5775; C62, § 2-418; O.7738; C62, § 25A-1; O.8291, 8565, 8920; C75, § 2-312; O.9337; C79, § 2-312; O.10,244; C91, § 2-312; O.11,784, 12,072, 13,922, 13,965, 15,067, 15,283, 15,781, 16,083)

Cross reference—Definitions generally, § 1-2.

Sec. 62-1.1. State Code protected classes adopted.

(a) The protected classes in section 62-42 of this chapter include all protected classes as are identified and/or defined by Iowa Code Chapter 216 as now enacted or hereinafter amended from time to time.

(b) The protected classes in section 62-71 and 62-166 of this chapter include all protected classes as are identified and/or defined by Iowa Code section 216.6 as now enacted or hereinafter amended from time to time.

(c) The protected classes in sections 62-101 and 62-103 of this chapter include the protected classes as are identified and/or defined by Iowa Code sections 216.8 and 216.12 applied respectively as now enacted or hereinafter amended from time to time.

(d) The protected classes in sections 62-136 and 62-137 of this Chapter include the protected classes as are identified and/or defined by Iowa Code sections 216.7(1) and 217.7(2) applied respectively as now enacted or hereinafter amended from time to time.

(e) The protected classes in section 62-104 of this chapter include the protected classes as are identified and/or defined by Iowa Code section 216.8 as now enacted or hereinafter amended from time to time.

(f) The protected classes in section 62-169 of this chapter include the protected classes as are identified and/or defined by Iowa Code Chapter 216 except age and familial status as now enacted or hereinafter amended from time to time.
(O.15,067)

Sec. 62-2. Complaints filed.

(a) Any person claiming to be aggrieved by an illegal discriminatory practice, as defined in this chapter, may file, personally or by an attorney, with the human rights commission or any staff member of the commission, a sworn complaint setting forth the particulars of the alleged discrimination or discriminatory practices and including the name and address of the person alleged to have committed the illegal discrimina-

tory practice and such other particulars as may be required by the commission. Upon the filing of the complaint, the complainant shall be informed of the confidentiality of the commission's investigation and conciliation efforts, and the complainant's cooperation in maintaining the nonadversarial environment such confidentiality fosters shall be sought by commission staff.

(b) Any complaint must be filed within 300 days after the complainant knew or should have known of the most recent act constituting the alleged illegal discriminatory practice.

(c) A complaint may be amended at any time before the final order is entered.
(C62, § 2-430; O.7079, 7738; C62, § 25A-13; O.8920; C75, § 2-321; O.9337; C79, § 2-321; C85, § 2-321; O.11,468; C91, § 2-321; O.13,922, 14,778)

Sec. 62-3. Procedure for processing complaints.

(a) Whenever a verified complaint is filed pursuant to this chapter, a true copy of the complaint shall be transmitted to the person alleged to have committed the illegal discriminatory practice, referred to as the "respondent," within ten days with a bill of particulars setting out the dates and facts upon which the complaint is based. Upon receipt of the complaint, the respondent shall be advised of the right to file a written response to the allegations of the complaint, of the right to counsel and the right to present evidence at any stage of the investigation and hearing and shall be informed of the confidentiality of the human rights commission's investigation and conciliation efforts and the respondent's cooperation in maintaining the nonadversarial environment such confidentiality fosters shall be sought by commission staff.

(b) The director of the human rights commission shall appoint a member of the commission staff who, under the supervision of the director, shall make a prompt and full investigation of the alleged illegal discriminatory practice and forward to the director a summary of the investigation. If a complainant or respondent fails or refuses to provide information requested for an investigation, the director may issue a subpoena for that information.

(c) The director and staff member may determine during the investigation that the complaint has no validity or is not within the jurisdiction of the commission. Upon such determination the complaint may be closed with a ministerial finding of no probable cause or no jurisdiction and the complainant and respondent shall be so notified by regular mail at their last known addresses and by electronic mail if an email addresses is known. The complainant may appeal such ministerial finding to the chair, vice-chair, and secretary of the commission within ten days of the mailing of the notification. If complainant timely appeals, respondent shall be notified and given ten days to respond with reasons the appeal should not be granted.

(d) If it is determined by the director that no probable cause exists for the complaint, or any part of the complaint, the complainant and respondent shall be promptly notified in writing by regular mail and electronic mail if an email address is known and the case shall be closed, or in the case of mixed determinations of cause and no probable cause, the investigation of the portion(s) determined to have no probable cause shall be closed, unless this finding is appealed to the chair, vice-chair, and secretary of the commission within ten days of the mailing of the notification. If complainant timely appeals, respondent shall be notified and given ten days to respond with reasons the appeal should not be granted.

(e) Appeals of ministerial findings closing any portion of a complaint shall be determined by the chair, vice chair, and secretary of the commission. The complaint and information on file with the commission concerning the complaint and the appeal shall be considered according to commission rules. The chair, vice-chair, and secretary shall either affirm the director's decision, reverse the director's decision, or remand to the director and staff for further investigation. If the director's decision is affirmed, a final order shall be entered and the complainant and respondent shall be promptly notified. If the director's decision is reversed or remanded staff shall be directed to proceed accordingly with notice sent to the complainant and respondent.

(f) If the director determines that probable cause exists for crediting the allegations in the complaint, the staff shall proceed with conciliation and persuasion under the director's supervision.

(g) An investigation shall be deferred if the same complaint has been filed with an agency with duties and powers similar to the commission which is proceeding with its own investigation of the complaint. The commission's investigation may be stayed pending the completion of the other agency's investigation if it is determined by the executive director to be in the best interests of the commission.
(C54, § 2-423; O.5775; C62, § 2-423; O.7738; C62, § 25A-14; O.8291, 8920; C75, § 2-322; O.9337; C79, § 2-322; C85, § 2-322; O.11,468; C91, § 2-322; O.11,784, 13,911, 15,838, 15,968)

Sec. 62-4. Additional proceedings on housing discrimination.

(a) The human rights commission shall investigate the alleged discriminatory housing practice and make its determination no later than 100 days after a complaint is filed unless any of the following applies:

(1) It is impracticable to make the determination within that time period;

(2) The commission has approved a mediation agreement relating to the complaint; or

(3) If the commission is unable to complete the investigation within the time period, provided the commission shall notify the complainant and respondent in writing of the delay.

(b) The commission, upon written notice, may amend the complaint to join a person, not named in the complaint, as an additional or substitute respondent if, in the course of the investigation, the commission determines that the person should be alleged to have committed an illegal discriminatory practice. The procedure shall be as follows:

(1) Notice shall be served no later than ten days after the filing of an amended complaint or identification of such substitute or additional respondent.

(2) The commission shall include in a notice to a respondent an explanation of the basis for the determination that the person is properly joined as a respondent.

(3) The added or substitute respondent may file, not later than ten days after receipt of the notice, an answer to such complaint.

(c) The commission shall, during the period beginning with the filing of a complaint and ending with the filing of a charge or a dismissal by the commission, to the extent feasible, engage in mediation with respect to the complaint in accordance with the following:

(1) A mediation agreement is an agreement between a respondent and the complainant and is subject to commission approval.

(2) A mediation agreement may provide for binding arbitration or other method of dispute resolution. Dispute resolution that results from a mediation agreement may authorize appropriate relief, including monetary relief.

(3) A mediation agreement shall be made public unless the complainant and respondent agree otherwise, and the commission determines that disclosure is not neces-

sary to further the purposes of this chapter relating to unfair or discriminatory practices in housing or real estate.

(4) The proceedings or results of mediation shall not be made public or used as evidence in a subsequent proceeding under this chapter without the written consent of the persons who are party to the mediation.

(d) When the commission has reasonable cause to believe that a respondent has breached a mediation agreement, the commission shall refer this matter to its attorney with a recommendation that a civil action be filed for the enforcement of the agreement. The attorney may commence a civil action in the appropriate district court not later than the expiration of 90 days after referral of the breach.

(e) If the commission concludes, following the filing of a complaint, that prompt judicial action is necessary to carry out the purposes of this chapter relating to illegal or discriminatory housing or real estate practices, the commission may authorize a civil action for appropriate temporary or preliminary relief pending final disposition of the complaint in accordance with the following:

(1) Upon receipt of the commissions's authorization, the commission's attorney shall promptly file the action.

(2) A temporary restraining order or other order granting temporary relief under this section is governed by the applicable Iowa rules of civil procedure.

(3) The filing of a civil action under this section does not affect the initiation or continuation of administrative proceedings in regard to an administrative hearing.

(f) The commission shall determine based on the facts whether probable cause exists to believe that a discriminatory housing or real estate practice has occurred or is about to occur in accordance with the following:

(1) The commission shall prepare a final investigative report.

(2) A final report under this section may be amended by the commission if additional evidence is later discovered.

(g) If the commission determines that probable cause exists to believe that a discriminatory housing or real estate practice has occurred or is about to occur, the commission shall immediately issue a determination unless the commission determines that the legality of a zoning or land use law or ordinance is involved. If the commission determines that the matter involves the legality of a state statute, the commission shall not issue a determination and shall immediately refer the matter to the attorney for the commission for appropriate action.

(h) A determination issued by the commission shall:

(1) Consist of a short and plain statement of the facts on which the commission has found probable cause to believe that a discriminatory housing or real estate practice has occurred or is about to occur.

(2) Be based on the final investigative report.

(3) Not be limited to the facts or grounds alleged in the complaint.

(i) Not later than 20 days after the commission issues a determination, unless it is impracticable to do, the commission shall send a copy of the determination with information concerning the election under section 62-106 of this chapter to the following persons:

(1) Each respondent, together with a notice of the opportunity for a public hearing as provided under this section and section 62-8 of this article.

(2) Each aggrieved person on whose behalf the complaint was filed.

If the commission is unable to send a copy of the determination within 20 days, it shall notify the parties in writing of the delay.

(j) If the commission determines that no probable cause exists to believe that a discriminatory housing or real estate practice has occurred or is about to occur, the commission shall promptly dismiss the complaint.

(k) The commission shall not issue a determination under this section regarding an alleged discriminatory housing or real estate practice after the beginning of the trial of a civil action commenced by the aggrieved party under federal or state law seeking relief with respect to that discriminatory housing or real estate practice.

(l) If a timely election is not made under section 62-106 of this chapter, the commission shall provide an opportunity for a hearing on the charges in the complaint in accordance with the following:

(1) Except as provided by subsection (l)(2) of this section, the hearing shall be conducted in accordance with this section and section 62-8 of this article.

(2) A hearing under this section shall not be continued regarding an alleged discriminatory housing or real estate practice after the beginning of the trial of a civil action commenced by the aggrieved person under federal or state law seeking relief with respect to that discriminatory housing or real estate practice.

(m) If the commission determines at a hearing under this section that a respondent has engaged or is about to engage in a discriminatory housing or real estate practice, the commission may order the appropriate relief, including actual damages, reasonable attorney's fees, court costs, and other injunctive or equitable relief. Such order may, to vindicate the public interest, assess a civil penalty against the respondent in an amount not to exceed those established by I.C. § 216.15A.
(C91, § 2-322.01; O.11,784, 12,072, 13,922)

Sec. 62-5. Conciliation and persuasion.

Immediately after a finding of probable cause pursuant to this article or sooner, if the complainant and respondent consent, the staff and the executive director of the human rights commission shall endeavor to eliminate the illegal discriminatory practice by conciliation and persuasion. If the complaint is successfully resolved to the satisfaction of the commission, complainant and respondent through conferences, conciliation and persuasion, it shall be formalized in a binding written agreement signed by a representative of the commission, complainant and respondent, and the commission shall furnish both the complainant and respondent with a copy of terms of the conciliation.
(C62, §§ 2-432, 2-433; O.7079; C62, §§ 2-432, 2-433; O.7738; C62, § 25A-15; O.8920; C75, § 2-323; O.9337; C79, C91, § 2-323; O.11,784)

Sec. 62-6. Failure to honor commitment.

The human rights commission may investigate a conciliated complaint filed pursuant to this article at a later date to ensure that the respondent is complying with the terms of the conciliation. In any case where the respondent has made commitments in the conciliation and the commission finds that the commitments have not been kept, it may open all of its files, previous complaints and proceedings involving the respondent for public inspection and proceed with such further steps it finds appropriate including initiation of a proceeding in Polk County district court to effectuate the purposes of this chapter.
(C62, § 2-435; O.7079, 7738; C62, § 25A-16; O.8920; C75, § 2-324; O.9337; C79, C91, § 2-324)

Sec. 62-7. Confidentiality.

(a) If a complaint filed pursuant to this chapter is successfully conciliated or it is found that no discrimination was practiced, the names of the parties to the complaint and all proceedings with regard to such parties and the place of alleged discrimination shall be and remain confidential unless otherwise agreed by mutual consent of the parties; provided, however, that the terms of the conciliation may be published. This section shall not prohibit disclosure made in connection with the conduct of an investigation or any disclosure to the Iowa civil rights commission or a similar government agency conducting an investigation involving illegal discriminatory practices.

(b) The members of the human rights commission and its staff shall not disclose the filing of a complaint, the information gathered during the investigation, or the endeavor to eliminate such illegal discriminatory practice by conciliation or persuasion except when such disclosure is made in connection with the conduct of the investigation, including enforcement of a subpoena. The identity of individuals interviewed shall remain

confidential except as the disclosure of their identity becomes necessary at the time of public hearing.

(c) If a complaint is not successfully conciliated and a determination has been made to proceed to public hearing, the executive director shall promptly forward to the respondent the names and addresses of those persons who shall be called as witnesses at such public hearing.
(C62, §§ 2-432, 2-433; O.7079; C62, §§ 2-432, 2-433; O.7738; C62, § 25A-15; O.8920; C62, § 25A-17; C75, § 2-325; O.9337, 9539; C79, § 2-325; O.10,656; C85, § 2-325; O.11,468; C91, § 2-325; O.13,922)

Sec. 62-8. Public hearing.

(a) In the event of failure to eliminate illegal discriminatory practice by means of conciliation and persuasion, the human rights commission may hold a public hearing if the executive director determines that the circumstances warrant, in accordance with the following:

(1) Hearings shall be conducted by the full commission or the commission may direct the chair of the commission to designate three members of the commission or a disinterested third party to act as a hearing officer to conduct the hearing.

(2) Where the chairperson has designated a panel of commissioners to serve as hearing officers at a public hearing, the chair shall designate one member of the panel to act as presiding commissioner. All rulings and determinations shall be made on majority rule.

(3) The hearing shall be held not less than ten days after the respondent has been served with a statement of the charges made in the complaint and a notice of the time, place, and nature of the hearing.

(4) Such written notice shall be delivered by personal service as in civil actions or by certified mail, return receipt requested.

(5) If a party fails to appear in a public hearing after proper service of a notice, the person conducting the hearing may proceed and make a decision in the absence of the party.

(6) The burden of proof shall be on the commission.

(b) The respondent shall have the right to file an answer to the statement of charges, to appear at the hearing in person, to be represented by an attorney at the respondent's own expense or by any other person, to examine and cross examine witnesses, and to present evidence.

(c) Oral proceedings shall be open to the public and shall be recorded either by mechanized means or by certified shorthand reporters. Oral proceedings or any part thereof shall be transcribed at the request of any party at his or her or its expense. The recording or stenographic notes of oral proceedings or the transcription thereof shall be filed with and maintained by the commission for at least five years from the date of decision. Notice of public hearing shall be disseminated among local news media at least five days prior to the date of the hearing.

(d) A complaint or any part thereof may be amended by the complainant or by the commission at any time before the final order is entered in the case. However, if an amendment requires proof of additional facts, the commission shall, if circumstances reasonably warrant such action, allow the respondent sufficient time to gather evidence to rebut such facts, which shall include the granting of a continuance or any other relief that may be reasonably appropriate.

(e) After a review of the transcript, the evidence, and the briefs, the hearing commissioners or the hearing officer shall issue in writing the findings of fact, conclusions of law and the order, then recommend such to the commission for its adoption, modification or rejection. Costs incurred by the commission for the public hearing may be equitably taxed as between the parties as circumstances warrant in the judgment of the hearing officer or the commission.

(f) When the commission presides at the reception of evidence in a public hearing, the decision of the commission is a final decision. When the commission did not preside at the reception of

the evidence in a public hearing, the hearing commissioners or the hearing officer shall make a proposed decision.

(g) Upon receipt of the hearing commissioner's or hearing officer's proposed decision, the commission shall forward a copy of the proposed decision to each of the parties. The commission shall include a notice of the date, time and place of the meeting at which the commission shall review the proposed decision. The notice shall also advise the parties of their appeal rights. An appeal shall be filed within 20 days after the receipt of notice of the commission's final decision.

(h) The commission may adopt, modify or reject the hearing commissioner's or hearing officer's proposed decision or it may remand the case to the hearing commissioners or hearing officer for the taking of such additional evidence and the making of such further recommended findings of fact, conclusions of law, decision and order as the commission deems necessary. Upon completing its review of the hearing commissioner's or hearing officer's proposed decision, the commission shall cause the appropriate order to be issued.

(i) The commission shall, within 60 days of the date it receives the proposed decision, review the proposed decision at the commission meeting. The commission shall consider all timely filed appeals, exceptions and briefs at the time it reviews the proposed decision.

(j) If the commission fails to issue an order within 60 days from the date the hearing commissioners or the hearing officer issues recommendations, the proposed findings shall become final.

(k) If the commission concurs with the hearing commissioners or the hearing officer, it shall issue an order requiring the respondent to cease and desist from the illegal discriminatory practice and to take such affirmative action as the hearing officer or hearing commissioners found appropriate to remedy the illegal discriminatory practice. Such affirmative action may include but is not limited to the following:

(1) Hiring, reinstatement or upgrading of employees with or without pay. Interim earned income and unemployment compensation shall operate to reduce the pay otherwise allowable.

(2) Admission or restoration of individuals to a labor organization or admission or participation in a guidance program, apprenticeship training program, on-the-job training program or other occupational training or retraining program, with the utilization of objective criteria in the admission of individuals to such programs.

(3) Admission of individuals to a public accommodation or an educational institution.

(4) Sale, exchange, lease, rental, assignment or sublease of real property to an individual.

(5) Extension to all individuals of the full and equal enjoyment of the advantages, facilities, privileges and services of the respondent denied to the complainant because of the discriminatory or unfair practice.

(6) Reporting as to the manner of compliance.

(7) Posting notices in conspicuous places in the respondent's place of business in a form prescribed by the commission and inclusion of notices in advertising material.

(8) Payment to the complainant of damages for an injury caused by the discriminatory or unfair practice, which damages shall include actual damages suffered by the complainant, court costs and reasonable attorney's fees.

(l) If the commission disagrees with any portion of the order so proposed, it may hold a hearing which shall be limited solely to its points of disagreement, at which hearing the complainant, respondent and the commission staff shall be given an opportunity to be heard and after

which it may accept, amend, or reject the questioned action and shall issue its order pursuant to its conclusion at such hearing.
(C62, § 2-434; O.7079, 7738; C62, § 25A-17; O.8920; C62, § 25A-18; C75, § 2-326; O.9337; C79, § 2-326; O.10,244, 10,256; C91, § 2-326; O.11,784, 13,922, 15,711)

Sec. 62-9. Judicial review.

(a) Any complainant or respondent claiming to be aggrieved by a final order of the human rights commission or by the commission's refusal to

issue an order, may obtain judicial review thereof, and the commission may obtain an order of court for the enforcement of commission orders, in a proceeding as provided in this section.

(b) Such proceeding shall be brought in the Polk County district court according to the Iowa rules of civil procedure and this chapter.

(c) Such proceeding shall be initiated by the filing of a petition in the court and the service of a copy thereof upon the city clerk, a representative of the commission and upon the respondent or complainant. Thereupon the commission shall file with the court a transcript of the record of the hearing before it. The court shall have jurisdiction of the proceeding according to this chapter.

(d) An objection that has not been urged before the commission shall not be considered by the court, unless the failure or neglect to urge such objection shall be excused because of extraordinary circumstances.

(e) Any party may move the court to remit the case to the commission in the interest of justice for the purpose of adducing additional specified and material evidence and seeking findings thereon, provided such party shall show reasonable grounds for the failure to adduce such evidence before the commission.

(f) The court may affirm the commission action or remand to the commission for further proceedings. The court shall reverse, modify, or grant any other appropriate relief from the commission action, equitable or legal and including declaratory relief, if substantial rights of the complainant have been prejudiced because the commission action is:

(1) In violation of constitutional or statutory provisions;

(2) In excess of the authority of the commission;

(3) In violation of commission rule;

(4) Pursuant to unlawful procedure;

(5) Affected by other error of law;

(6) In a contested case, unsupported by substantial evidence in the record made before the commission when that record is viewed as a whole; or

(7) Unreasonable, arbitrary or capricious or characterized by an abuse of discretion or a clearly unwarranted exercise of discretion.

(g) An aggrieved or adversely affected party to the judicial review proceeding may obtain a review of any final judgment of the district court under this chapter by appeal to the supreme court. The appeal shall be taken as in other civil cases, although the appeal may be taken regardless of the amount involved.

(h) The commission's copy of a transcript of testimony shall be available to all parties for examination at all reasonable times, without cost, and for the purpose of judicial review of the commission's orders.

(i) The commission may appear in court by its own attorney.

(j) Unless otherwise directed by the commission or court, commencement of review proceedings under this section shall operate as a stay of any order of the commission.

(k) Petitions filed under this section shall be heard expeditiously and determined upon the transcript filed without requirement for printing.

(l) If a proceeding for judicial review is not instituted by a complainant or respondent within 30 days from the service of an order of the commission under section 62-8 of this article, the commission may obtain an order of the court for the enforcement of such order upon showing that the respondent is subject to the jurisdiction of the commission and resides or transacts business within the county in which the petition for enforcement is brought.

(C62, § 25A-19; O.8920; C75, § 2-327; O.9337; C79, § 2-327; O.9745; C91, § 2-327)

State law reference—Similar provisions, I.C. § 216.17.

Sec. 62-10. Temporary injunction.

If, at any time after a complaint is filed pursuant to this chapter, it shall appear to the human rights commission that there is reason to believe that the party charged has violated this chapter and there is reason to believe that the person charged is about to do acts which would make compliance with an order of the commission to alleviate the grievance difficult, the commission may request the attorney for the commission to seek a temporary injunction or other order granting preliminary or temporary relief, restraining the respondent from violation of this chapter.
(C62, § 2-434; O.7079, 7738; C62, § 25A-17; O.8920, C62, § 25A-20; C75, C79, C91, § 2-328; O.11,784, 13,922)

Sec. 62-11. Administration of chapter.

The human rights commission shall be the administrative agency of this chapter and shall promulgate rules and procedures to govern, expedite and effectuate this chapter and its own actions under this chapter. A copy of such rules shall be filed with the city clerk after adoption by the commission.
(C62, § 25A-18; O.7738, 8920; C62, § 25A-21; C75, § 2-329; O.9337; C79, C91, § 2-329)
Cross reference—Administration, ch. 2.

Sec. 62-12. Attorney.

The city attorney or a member of his or her staff shall be the attorney for the human rights commission, except the commission may hire or retain an attorney, other than the city attorney or a member of his or her staff, on a per-diem basis to represent it when, in the opinion of the commission, there is a conflict of interest between the commission and another city department, commission or board because of representation of such department, commission or board by the city legal department. In assigning a member of his or her staff, the city attorney shall make such assignment the first priority of such attorney's duties, up to and including the assignment of such attorney on a full-time basis to the commission whenever the commission deems such assignment necessary. The city attorney shall cooperate with the commission to ensure it receives the legal representation and counsel commensurate with its mission.
(C62, § 25A-19; O.7738, 8920; C62, § 25A-22; C75, C79, C85, § 2-330; O.11,468; C91, § 2-330)

Sec. 62-13. Director.

(a) Subject to the review and direction of the city manager after consultation with the commission, the director of the human rights commission shall serve as the principal administrative officer of the commission. The director shall be a person skilled in human relations, knowledgeable by training and experience in civil rights law and procedure with sufficient management and communication skills to effectuate the purposes of this chapter and work effectively within the established parameters of city government. The city manager shall conduct a performance evaluation at least ten days before the commission's annual meeting, at which meeting the commission shall review the city manager's evaluation of the director's performance for the year.

(b) In addition to such evaluation, the commission may from time to time, as it deems it necessary or advisable, confer with the city manager regarding the relative strengths and weaknesses of the director's job performance and the steps needed to maximize or correct the job performance. If such steps are not promptly taken with a measurable improvement in the performance of duty by the director, the commission may initiate appropriate action including directing the city manager to consider and initiate the director's removal, subject to section 62-41(l).
(C62, § 25A-20; O.7738, 8920; C62, § 25A-23; C75, C79, C85, § 2-331; O.11,468; C91, § 2-331; O.13,922, 15,283)

Sec. 62-14. Construction of chapter.

This chapter shall be construed broadly to effectuate its purpose.
(C62, § 25A-24; O.8920; C75, C91, § 2-332)

Sec. 62-15. Effect of remedies.

The remedies contained in this chapter shall be exclusive, and the provisions of section 1-15 of this Code shall not apply.
(C54, § 2-421; O.5775; C62, § 2-421; O.7738; C62, §§ 25A-4, 25A-5; O.8291, 8920; C75, § 2-315; O.9337; C79, § 2-315; O.10,244; C91, § 2-315(c); O.13,922)

Sec. 62-16. Sixty-day administrative release.

(a) A person claiming to be aggrieved by an illegal discriminatory practice must initially seek administrative relief by filing a complaint with the commission in accordance with section 62-2. After the proper filing of a complaint with the commission, a complainant may subsequently commerce an action for relief in the district court if all of the following conditions have been satisfied:

(1) The complainant has timely filed the complaint with the commission as provided in section 62-2(b); and

(2) The complaint has been on file with the commission for at least 60 days and the commission has issued a release to the complainant pursuant to subsection (b) of this section.

(b) Upon a request by the complainant, and after the expiration of 60 days from the timely filing of a complaint with the commission, the commission shall issue to the complainant a release stating that the complainant has a right to commence an action in the district court. A release under this subsection shall not be issued if a finding of no probable cause has been made on the complaint, a conciliation agreement has been executed under section 62-5, the commission has served notice of hearing upon the respondent pursuant to section 62-8, or the complaint is closed as an administrative closure and two years have elapsed since the issuance date of the closure.

(c) An action authorized under this section is barred unless commenced within 90 days after issuance by the commission of a release under subsection (b) of this section. If a complainant obtains a release from the commission under subsection (b) of this section, the commission is barred from further action on the complaint.

(d) Venue for an action under this section shall be in the county in which the respondent resides or has its principal place of business, or in the county in which the alleged unfair or discriminatory practice occurred.

(e) The district court may grant any relief in an action under this section which is authorized by this chapter to be issued by the commission. The district court may also award the respondent reasonable attorney's fees and the court costs if the court finds that the complainant's action was frivolous.
(O.14,520)

Secs. 62-17—62-40. Reserved.

ARTICLE II. COMMISSION*

Sec. 62-41. Established; appointment; composition; terms.

(a) There is established in the city government a commission to be known as the Des Moines Civil and Human Rights Commission.

(b) This commission shall consist of seven members broadly representative of the community.

(c) Commission members shall be appointed by the city council. All appointments shall be for a term of three years until the first Monday in April of the year in which the term ends. No member shall be appointed to serve more than two consecutive terms.

(d) The commission shall elect a chair, vice-chair, and secretary and such other officers as it deems appropriate from its members on an annual basis.

(e) Officers shall serve in their respective offices for a term of one year or until their successors shall be appointed and qualified.

*__Cross reference—__Boards, commissions, committees and agencies, § 2-1046 et seq.

(f) Any four members shall constitute a quorum.

(g) All commission members shall serve without compensation.

(h) If any member dies or resigns, a successor shall be appointed to serve for the unexpired period of the member's term.

(i) The commission may name subcommittees which in its judgment will aid in effectuating the purposes of this chapter and may empower it to study the problems of prejudice, intolerance, bigotry, and discrimination in any fields of human relationships within the purview of this chapter.

(j) In addition to the general requirements applicable to boards, commissions, committees and agencies under Chapter 2 Article VI of this Code, commission members are subject to the removal or retention requirements as stated in the commission rules and regulations and the city council may remove or retain a commission member pursuant to those rules.

(k) The appointment of the director shall be made by the city manager. The director shall be compensated in such amount as the city manager shall fix. The director shall serve at the pleasure of the city manager.

(l) The removal of the director must be approved by a majority vote of all commission members and concurrence of the city manager. Removal may be initiated by either the commission or the city manager.

(m) The director may recommend to the city manager additional personnel deemed necessary to carry out the purposes of this chapter.

(n) The expenses of activities shall be paid out of the funds appropriated for the purpose. The commission shall in addition be authorized to receive gifts and grants from any other sources to carry on its work.
(C54, § 2-419, O.5775; C62, § 2-419; O.7738; C62, § 25A-2; O.7745, 8920; C75, § 2-313; O.9337; C79, § 2-313; O.10,265; C85, § 2-313; O.11,468; C91, § 2-313; O.11,788, 13,922, 14,006, 15,283, 15,598)

Sec. 62-42. Powers and duties of commission and director.

(a) The human rights commission shall have the power and duty to:

(1) Initiate, receive, hear, and investigate complaints of discrimination by or against any person or group and to make a report to the city council of any violations of this chapter and of any illegal discrimination found to exist and issue orders to remedy such discrimination.

(2) Seek to conciliate complaints.

(3) Direct the attorney for the commission to petition the district court to seek a subpoena for books, papers, records and any other material evidence necessary to the investigation and hearings of any complaint filed pursuant to this chapter.

(4) Hold hearings upon any complaint filed against any respondent pursuant to section 62-2 of this chapter; demand witnesses and compel their attendance, and compel respondents to produce for examination any books, papers, and materials relating to any matters material to the subject of the complaint; and administer oaths and take the testimony of any person under oath. Such hearings may be held by the commission itself or by duly appointed hearing officers. There shall be issued findings of fact, recommendations and orders. If a witness either fails or refuses to obey a demand issued by the commission, the commission may petition the district court having jurisdiction for issuance of a subpoena, and the court shall in a proper case issue the subpoena.

(5) From time to time, but not less than once a year, render to the city council a written report of its activities and recommendations; hold regular meetings as otherwise required by this Code, including an annual meeting in September of each year at which officers shall be elected, the city manager's evaluation of the director's performance shall be reviewed,

and the commission's annual report to the city council, if not already filed, shall be approved and forwarded to the city clerk for receipt and filing by the city council; hold a joint meeting with the city council at least once each year.

(6) Formulate and carry out a comprehensive educational program designed to prevent and eliminate discrimination because of age, race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry, disability or familial status, including the provision of training and educational services to businesses, professional groups, and educational agencies requesting workshops, seminars, or speakers to address specific issues and concerns within the purview of this chapter, as well as maintaining as a part of the commission's formal educational program a series of public forums addressing upon a rotating basis the various matters within this chapter about which there is the need to increase public awareness and response. The commission shall prepare and distribute a brochure explaining its mission, purpose, and procedures for dissemination within the city and shall publish and distribute a quarterly newsletter of its activities and concerns. The commission's educational and training efforts shall be undertaken in cooperation with any private, quasi-public, or public organization, agency, or association offering its support to such endeavor by providing staff to be trained to assist in the workshops and seminars sponsored by the commission, by providing clerical support services or professional expertise in the preparation and release of the brochure and newsletter, or providing financial support for the commission's educational and training program.

(7) Adopt such rules and regulations as may be necessary to govern, expedite, and effectuate this chapter and keep a record of its activities and minutes of its meetings.

(8) Investigate and study housing patterns and group relationships within the city and the extent of discrimination, prejudice and segregation in public accommodations, employment, apprenticeship programs, on-the-job training programs, housing and public, private, and vocational schools because of age, sex, sexual orientation, gender identity, race, religion, creed, color, national origin, ancestry, disability or familial status and the effect of such discrimination, and segregation in public accommodations, employment, apprenticeship programs, on-the-job training programs, housing patterns and public, private and vocational schools; and advise and cooperate with the mayor, the board and officials with relation to any such problems. The commission shall from time to time make recommendations to the mayor, the city council, the city manager, agencies, and officials, for the betterment of housing patterns and intergroup relationships within the community.

(9) Devise and recommend to the mayor and city council ways and means of discouraging and combating prejudice, intolerance, and bigotry in all groups and in their relations with one another.

(10) Discover all practices and policies calculated to create conflicts and tensions and recommend ways and means for their elimination.

(11) Report and recommend means of eliminating any unfair or unjust discrimination against any person or group which would be deemed detrimental to the best interests of the community.

(12) Enlist the cooperation of all racial, religious, educational, community, civic, business, fraternal, and benevolent associations and all other groups, associations and societies and all constructive community forces and talents that might be helpful to it in discharging its duties.

(13) Cooperate with federal, state, and city agencies, citizens, citizen organizations, the board of education, and parochial

and private schools in formulating and developing courses of education to accomplish the objectives of this chapter.

(14) Initiate and conduct voluntary surveys; assemble pertinent data, confer with groups and hold hearings; and expedite the work of the commission by making investigations and surveys through subcommittees.

(15) Endeavor by persuasion and education to induce public and private owners, lay and professional organizations of the housing industry, contractors, and lending institutions to institute nondiscriminatory practices in the procurement and financing of housing accommodations, according to one's ability to pay, without regard to age, race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry, disability or familial status.

(16) Assist in creating advisory agencies which will aid in effectuating the purposes of this chapter, which may be authorized to study the problem of discrimination in all or specific fields or instances of discrimination because of age, race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry, disability or familial status and which may be authorized to foster, through community effort or otherwise, good will, cooperation and conciliation among the groups and elements of the population of this city and make recommendations to the commission for the development of rules and procedures, and for the programs of formal and informal education, which the commission may recommend to the appropriate local agency. Advisory agencies shall be composed of representative citizens serving without pay. The commission may itself make the studies and perform the acts authorized by this subsection. The commission may, by voluntary conference with parties in interest, endeavor by conciliation and persuasion to eliminate discrimination in all the stated fields and to foster good will and cooperation among all elements of the population of this city.

(17) Act as a deferral agency of the Iowa Civil Rights Commission, the equal employment opportunity commission and of other regulatory governmental agencies deemed appropriate; receive such complaints as the state commission may refer; investigate and process them in the same manner as a complaint originally filed with the city commission; and report its investigative results, findings, conclusions, recommendations and orders to the state commission or other agency.

(18) Apply for and maintain referral agency status with the Iowa Civil Rights Commission as set out in I.C. § 216.1 et seq., and the administrative rules promulgated pursuant to such chapter in the Iowa Administrative Code; correct any deficiencies which prevent the referral status being granted, including seeking any necessary city council action; and negotiate and present for city council approval and consent a referral contract with the Iowa Civil Rights Commission, including a provision that charges involving city staff as complainants or respondents, or otherwise aggrieved parties or alleged perpetrators, may be referred to and may be accepted by the Iowa Civil Rights Commission for investigation and determination.

(19) Any of the powers and duties described above may be delegated to the city manager or to the director.

(20) Engage in community mediation of matters, disagreements or disputes among persons the subject of which are voluntarily submitted to the commission by all involved parties pursuant to section 62-191 of this chapter.

(b) The director shall exercise the following powers and duties:

(1) Perform such duties as the commission or city manager may direct or delegate.

(2) Assist the commission in exercising its powers and performing its duties as set out in this chapter.

(3) Under the direction of the city manager, supervise and manage the staff of the commission.

(4) Report to the commission and the city manager at each monthly meeting the activities and performance of duties of the director and commission staff. Copies of this report shall be submitted to the mayor and city manager.

(5) Develop a plan and procedure to prevent any case being on file with the commission for more than 120 days without having been preliminarily screened for probable cause.

(6) Design and implement an orientation and ongoing training program for all staff and commissioners with emphasis on the commission's mandate, mission, and importance of each commissioner's participation and attendance.

(7) Perform any and all responsibilities set out in this chapter to be performed by the director.

(8) Perform any and all other tasks and duties which the commission deems necessary or appropriate to effectuate the purposes of this chapter as assigned by the city manager after consulting with the commission.

(9) Prepare and submit for commission comment and approval and city manager review the annual comprehensive report of the commission's activities and recommendations to the city council pursuant to this chapter.

(10) Under the direction of the city manager, act as the legislative liaison for the commission for all matters within the purview of this chapter.

(11) Under the direction of the city manager, actively seek grants and other types of funding consistent with the commission's mission for presentation to and consideration of the commission after official approval and direction from the commission and council.

(C54, § 2-420; O.5775; C62, § 2-420; O.7738; C62, § 25A-3; O.8291, 8920; C75, § 2-314; O.9337; C79, § 2-314; O.10,244, 10,256; C85, § 2-314; O.11,468; C91, § 2-314; O.11,784, 12,072, 13,922, 13,965, 15,067, 15,283, 16,083)

Sec. 62-43. Fair housing training fees.

The commission, or its director or his or her designee, is authorized to charge and collect a fee for training persons who are not residents of the City of Des Moines concerning the subject of fair housing. The fee shall be in the amount set in the schedule of fees adopted by the city council by resolution.

(O.15,314)

Secs. 62-44—62-70. Reserved.

ARTICLE III. DISCRIMINATORY EMPLOYMENT PRACTICES*

Sec. 62-71. Enumerated.

It shall be an illegal discriminatory employment practice for:

(1) An employer to fail or to refuse to hire or to discharge any individual or otherwise to discriminate against any individual with respect to such individual's compensation, terms, conditions or privileges of employment, or to limit, segregate, or classify employees or applicants for employment in any way which would deprive or tend to deprive any individual of employment opportunities or otherwise adversely affect such individual's status as an employee, because of such individual's age, race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry or disability. Sexual harassment is a prohibited discriminatory practice.

*__Cross reference—__Businesses, ch. 30.

(2) A labor organization or the employees, agents, or members thereof to refuse to admit to membership any applicant; to expel any member; to limit, segregate, or classify its membership or applicants for membership; or to classify or fail or refuse to refer for employment any individual in any way which would adversely affect such individual's status as an employee or as an applicant for employment or to otherwise discriminate against any applicant for membership or any member in the privileges, rights or the benefits of such membership because of age, race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry or disability or to discriminate against any employer or any person employed by an employer because of age, race, religion, creed, color, sex, sexual orientation, national origin, ancestry or disability.

(3) An employer, employment agency, labor organization or the employees, agents or members thereof to directly or indirectly print or circulate or cause to be printed or circulated any advertisement, statement, or publication or to use any form of application for employment or membership or to make any inquiry in connection with prospective employment or membership which expresses, directly or indirectly, any limitation, specification, or discrimination as to age, race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry or disability.

(4) Any employer, employment agency, labor organization or employees, agents or members thereof to discriminate in hiring, classifying, procuring, recruiting, referring, or placing persons for employment because of age, race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry or disability.

(5) An employer, labor organization, employment agency, or employees, agents or members thereof to discharge, expel, harass, or otherwise discriminate against any person because such person has opposed any practice forbidden under this chapter or has filed a complaint, testified or assisted in any proceeding under this chapter.

(6) Any person to aid, abet, incite, compel or coerce the doing of any of the practices declared illegal or discriminatory by this chapter.

(C54, § 2-421; O.5775; C62, § 2-421; O.7738; C62, §§ 25A-4, 25A-5; O.8291, 8920; C75, § 2-315; O.9337; C79, § 2-315; O.10,244; C91, § 2-315(a); O.13,965, 15,067)

Sec. 62-71.1. Criminal record inquiry for employment purposes.

(a) In connection with the proposed employment of any person, it shall be an illegal discriminatory employment practice for an employer to include a criminal record inquiry on any application for employment. It shall further be an illegal discriminatory employment practice for an employer, but not private schools providing a regular course of instruction for any part of kindergarten through high school education, to engage in any of the following activity:

(1) To make any inquiry regarding or to require any person to disclose or reveal any convictions, arrests, or pending criminal charges during the application process, including but not limited to any interview. However, if the applicant voluntarily discloses any information regarding the applicant's criminal record at the interview, the employer may discuss the criminal record disclosed by the applicant.

The application process shall begin when the applicant inquiries about the employment being sought and shall end when an employer has extended a conditional offer of employment to the applicant.

(b) Employers shall comply with any obligations arising under federal or state law relating to authorization for background checks, notifying applicants about adverse hiring decisions

based on an applicant's criminal history, and any other matters involving use of criminal record information.
(O.16,083)

Sec. 62-72. Exemptions.

Nothing in this article shall be construed to apply to the following:

(1) The employment of individuals to render personal service to the person or the employer or members of the employer's family.

(2) Any employer who regularly employs fewer than four individuals. For purposes of this chapter, individuals who are members of the employer's family shall not be counted as employees.

(3) The employment of individuals for work within the home of the employer if the employer or members of the employer's family reside therein during such employment.

(4) Any exempt qualifications for employment imposed by a bona fide religious institution or its educational facility, association, corporation, or society as specified in I.C. § 216.6(6)(d).

Nothing in section 62-71.1 shall be constructed to apply to the following:

(5) The United States or any agency thereof.

(6) The state or any of its political subdivisions other than the city.

(7) Any employer inquiry on an application or in an interview that is required by federal or state law or regulation.

(C54, § 2-421; O.5775; C62, § 2-421; O.7738; C62, §§ 25A-4, 25A-5; O.8291, 8920; C75, § 2-315; O.9337; C79, § 2-315; O.10,244; C91, § 2-315(b); O.15,067, 16,083)

Secs. 62-73—62-100. Reserved.

ARTICLE IV. DISCRIMINATORY HOUSING PRACTICES*

Sec. 62-101. Enumeration of illegal practices.

(a) It shall be an illegal discriminatory housing practice for any person, or for any owner or person acting for an owner of rights to a dwelling, with or without compensation, including but not limited to persons licensed as real estate brokers or salespersons, attorneys, auctioneers, appraisers, agents or representatives by power of attorney or appointment, or any person acting under court order, deed of trust, or will to:

(1) Refuse to sell, lease or rent after making of a bona fide offer; refuse to show or represent that a dwelling is unavailable; or refuse to negotiate for the sale, lease or rental of any dwelling or refuse to sublease or assign or otherwise make unavailable or deny a dwelling to any person because of race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry, disability, familial status, or source of income.

(2) Directly or indirectly advertise or in any other manner indicate or publicize that the purchase, rental, lease, assignment, or sublease of any dwelling or any part, portion or interest therein, by persons of any particular race, color, sex, sexual orientation, gender identity, creed, religion, national origin, ancestry, disability, familial status, or source of income, is unwelcome, objectionable, not acceptable, or not solicited.

(3) Include in the terms, conditions or privileges of any sale, lease, sublease, rental, assignment or other transfer of any dwelling, any clause, condition or restriction discriminating against any person in the use or occupancy of the dwelling because of race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry, disability, familial status, or source of income.

*__Cross references—__Housing code, § 26-436 et seq.; public housing, ch. 90.

(4) Discriminate in the furnishing of any facilities or services for any dwelling because of race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry, disability, familial status, or source of income.

(5) Make, utter, print, publish or circulate or cause to be made, printed, uttered, published or circulated any notice, statement or advertisement; announce a policy; use any form of application with respect to the sale, purchase, lease, rental or financing of dwelling; or make any record or inquiry in connection with the prospective purchase, rental or lease of a dwelling which either records the race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry, disability, familial status, or source of income of applicants or indicates directly or indirectly any preference, limitation, specification or discrimination on the basis of race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry, disability, familial status, or source of income or an intention to make any such preference, limitation, specification or discrimination.

(6) Discriminate against any other person because the latter has opposed any practice forbidden under this chapter or has filed a complaint, testified, or assisted in a proceeding under this chapter.

(7) Coerce, intimidate, threaten, or interfere with any person in the exercise or enjoyment of, or on account of that person having exercised or enjoyed, or on account of that person having aided or encouraged any other person in the exercise or enjoyment of, any right granted or protected by this chapter.

(8) Aid, incite, compel, coerce, or participate in the doing of any act declared to be a discriminatory housing practice under this section; attempt, directly or indirectly, to commit any act declared by this section to be a discriminatory practice; or attempt in any fashion to coerce, intimidate, compel, threaten, interfere, or in any other fashion force any person not to cooperate or participate in any hearing or other proceeding conducted by the human rights commission or its staff.

(9) For profit, induce or attempt to induce any person to sell or rent any dwelling by representations regarding the entry or prospective entry into the neighborhood of a person of a particular race, sex, sexual orientation, gender identity, color, creed, religion, ancestry, national origin, disability or familial status, or with a particular source of income.

(10) Steer or channel a prospective buyer into or away from an area because of race, sex, sexual orientation, gender identity, creed, religion, national origin, ancestry, color, disability, familial status, or source of income, by action by a real estate broker or salesperson which is intended to influence the choice of a prospective dwelling buyer on the basis of racial, religious, national origin, sex, sexual orientation, gender identity, religion, national origin, color, disability, ancestry, familial status, or source of income.

(11) Deny another person access to or membership or participation in a multiple-listing service, real estate brokers' organization or other service, organization, or facility relating to the business of selling or renting dwellings or discriminate against a person in terms or conditions of access, membership, or participation in such organization because of race, color, creed, sex, sexual orientation, gender identity, religion, ancestry, national origin, disability, familial status, or source of income.

(b) As used in this subsection, the term "residential real-estate-related transaction" means any of the following: (i) the making or purchasing of loans, accepting mortgages or providing other financial assistance for purchasing, constructing, improving, repairing, or maintaining a dwelling or secured by residential real estate; (ii) the selling, brokering, or appraising of

residential real property. It shall be an illegal discriminatory housing practice for any person, owner or person acting for an owner, of rights to dwelling, with or without compensation, including but not limited to persons licensed as real estate brokers, salespersons or entities whose business includes engaging in residential real-estate-related transactions to discriminate against any person in making available such a transaction or in the terms or conditions of such a transaction, because of race, color, creed, religion, sex, sexual orientation, gender identity, ancestry, disability, familial status, national origin, or source of income to discriminate in rates, terms, conditions or provisions of any such financial assistance or in the extension of services in connection therewith because of race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry, disability, familial status, or source of income of the applicant for such loan or funds or of the would-be-purchaser or lessee or prospective occupant of dwelling or of the racial makeup of the neighborhood in which the property is located.

(C62, §§ 2-428, 2-436; O.7079, 7362, 7738; C62, §§ 25A-6, 25A-7; O.8291, 8920; C75, § 2-316; O.9337; C79, § 2-316; O.10,244; C85, § 2-316; O.10,802; C91, § 2-316; O.11,784, 12,072, 13,922, 13,965, 15,067, 15,781)

Editor's note—Ord. No. 15,781, § 2, states: This ordinance shall be in full force and effect from and after September 1, 2019, following its passage and publication as provided by law.

Sec. 62-102. Illegal discriminatory practices based on disability.

(a) A person shall not discriminate in the sale or rental or otherwise make unavailable or deny a dwelling to a buyer or renter because of a disability of any of the following persons:

(1) That buyer or renter.

(2) A person residing in or intending to reside in that dwelling after it is sold, rented, or made available.

(3) A person associated with that buyer or renter.

(b) A person shall not discriminate against another person in the terms, conditions, or privileges of sale or rental of a dwelling or in the provision of services or facilities in connection with the dwelling because of a disability of any of the following persons:

(1) That person.

(2) A person residing in or intending to reside in that dwelling after it is sold, rented, or made available.

(3) A person associated with that person.

(c) For the purpose of this section only, discrimination includes any of the following circumstances:

(1) A refusal to permit, at the expense of the disabled person, reasonable modifications of existing premises occupied or to be occupied by the person if the modifications are necessary to afford the person full enjoyment of the premises. For a rental, a landlord may, where reasonable to do so, condition permission for a modification on the renter's agreement to restore the interior of the premises to the condition that existed before the modification, reasonable wear and tear excepted.

(2) A refusal to make reasonable accommodations in rules, policies, practices, or services, when the accommodations are necessary to afford the person equal opportunity to use and enjoy a dwelling.

(3) In connection with the design and construction of covered multifamily dwellings for first occupancy after March 16, 1992, a failure to design and construct those dwellings in a manner that meets the following requirements:

a. The public use and common use portions of the dwellings are readily accessible to and usable by disabled persons.

b. All doors designed to allow passage into and within all premises within

the dwellings are sufficiently wide to allow passage by disabled persons in wheelchairs.

c. All premises within the dwellings contain the following features of adaptive design:

1. An accessible route into and through the dwelling.
2. Light switches, electrical outlets, thermostats, and other environmental controls in accessible locations.
3. Reinforcements in bathroom walls to allow later installation of grab bars.
4. Usable kitchens and bathrooms so that a person in a wheelchair can maneuver about the space.

(d) Compliance with the appropriate requirements of the American National Standard for buildings and facilities providing accessibility and usability for physically handicapped people, commonly cited as ANSI A 117.1, satisfies the requirements of subsection (c)(3)c of this section.

(e) Nothing in subsections (a), (b) and (c) of this section requires that a dwelling be made available to a person whose tenancy would constitute a direct threat to the health or safety of other persons or whose tenancy would result in substantial physical damage to the property of others.
(C91, § 2-316.01; O.11,784, 12,072)

Sec. 62-103. Exemptions; applicability.

(a) Nothing in sections 62-101 and 62-102 of this article shall be construed to apply to the following:

(1) The rental or leasing of a dwelling in a building which contains dwellings for not more than two families living independently of each other, if the owner resides in one of such dwellings.

(2) Any exempt qualifications imposed by a bona fide religious institution as specified in I.C. § 216.12(1)(a).

(3) The rental or leasing of less than four rooms within a single dwelling by the occupant or owner of such dwelling, if the occupant or owner resides in the dwelling.

(4) The rental or leasing of a dwelling within which residents of both sexes must share a common bathroom facility on the same floor of the building. This exemption does not apply to race, color, creed, religion, sexual orientation, gender identity, national origin, ancestry, disability or familial status basis, or on the basis of source of income.

(5) The rental or leasing of a dwelling in a building which contains dwellings for not more than four families living independently of each other, if the owner resides in one of the dwellings for which the owner qualifies for the homestead tax credit under I.C. § 425.1.

(b) Nothing in sections 62-101 and 62-102 of this article regarding familial status shall apply with respect to housing for older persons. As used in this subsection, the term "housing for older persons" means housing:

(1) Provided under any state or federal program that is specifically designed and operated to assist elderly persons, as defined in the state or federal program, that the human rights commission determines to be consistent with determinations made by the Secretary of Housing and Urban Development;

(2) Intended for and solely occupied by persons 62 years of age or older; or

(3) For 80-percent occupancy by at least one person 55 years of age or older per unit, and providing significant facilities and services specifically designed to meet the physical or social needs of the persons, and the housing facility must publish and adhere to policies and procedures which demonstrate an intent by the owner or manager to provide housing for persons 55 years of age or older.

(c) None of the exemptions stated in subsections (a) and (b) of this section shall apply to advertising.

(d) Nothing in section 62-101(b) prohibits a person engaged in the business of furnishing appraisals of real property to take into consideration factors other than race, color, religion, creed, national origin, ancestry, sex, sexual orientation, gender identity, disability, familial status, or source of income.

(e) The protection against source of income discrimination in section 62-101 of this article shall not:

(1) Require a person to rent to any participant receiving a source of income for the sole reason that the individual has such income source. Section 62-101 does not create a preference for persons with a source of income over those without such income source.

(2) Prohibit a person from refusing to lease a dwelling to a potential or current renter who is relying on a rent subsidy source of income administered by the city municipal housing agency or other city department, or administered by any other entity, for payment of part or all of the rent for a dwelling, if and when the entity administering the applicable source of income, or the U.S. Department of Housing and Urban Development determine that:

a. The rent for the dwelling exceeds the fair market rent authorized by the U.S. Department of Housing and Urban Development or by other regulations or contract requirements governing the applicable rent subsidy source of income; or

b. The person is not eligible or qualified for participation in the applicable rent subsidy program due to federal or local regulations and requirements, insufficient program funding, or other determinations made by the U.S. Department of Housing and Urban Development or by the entity administering the applicable rent subsidy source of income.

(f) Nothing in section 62-101 of this article prohibits any person, and any owner or person acting for an owner of rights to a dwelling, with or without compensation, from:

(1) Determining the ability of any potential buyer or renter to pay a purchase price or pay rent by:

a. Verifying, in a commercially reasonable manner, the source of income and amount thereof of the potential buyer or renter, including any rental or purchase payments or portions of thereof that will be made by other individuals or entities providing the source of income, on the same basis as payments to be made directly by the potential buyer or renter.

b. Evaluating, in a commercially reasonable manner, the prospective stability, security, and credit worthiness of the potential buyer or renter or any source of income of the potential buyer or renter, including any rental or purchase payments or portions thereof that will be made by other individuals or entities providing the source of income.

c. Refusing to consider income derived from any criminal activity.

(2) Obtaining and retaining records regarding a lessee's or purchaser's race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry, disability, familial status, or source of income, when and for the sole purpose that such records are required for compliance with a federal, state, or local funding, loan, grant, or tax credit program, or federal, state, or local property development, rehabilitation, or redevelopment program, used, in whole or in part, to construct, operate, or maintain a housing project, or sharing said records with the applicable federal, state or local agency administering said program.

(3) Renting or selling a dwelling in accordance with restrictions for unit affordability, project unit mixes, area median income, owner-occupancy, or similar requirements, as required for compliance with a federal, state, or local funding, loan, grant, or tax credit program, or federal, state, or local property development, rehabilitation or redevelopment program, used, in whole or in part, to construct, operate, or maintain a housing project.

(C91, § 2-316.02; O.11,784, 12,072, 13,965, 15,067, 15,781, 16,083)

Editor's note—Ord. No. 15,781, § 2, states: This ordinance shall be in full force and effect from and after September 1, 2019, following its passage and publication as provided by law.

Sec. 62-104. Threat of force or intimidation; penalty.

(a) A person commits a public offense if the person, whether or not acting under color of law, by force or threat of force, intentionally intimidates or interferes with or attempts to interfere with a person under any of the following circumstances:

(1) Because of the person's race, color, creed, sex, sexual orientation, gender identity, religion, national origin, ancestry, disability, familial status, or source of income, and because the person is or has been selling, purchasing, renting, occupying, or financing, contracting for, or negotiating for the sale, purchase, rental or occupation of any dwelling, or applying for or participating in a service, organization, or facility relating to the business of selling or renting dwellings.

(2) Because the person is or has been doing any of the following:

a. Participating, without discrimination because of race, color, creed, sex, sexual orientation, gender identity, religion, national origin, ancestry, disability, familial status, or source of income, in an activity service, organization, or facility described in subsection (a)(1) of this section.

b. Affording another person the opportunity or protection to so participate.

c. Lawfully aiding or encouraging other persons to participate, without discrimination because of race, color, sex, sexual orientation, gender identity, religion, national origin, ancestry, disability, familial status, or source of income, in an activity, service, organization, or facility described in subsection (a)(1) of this section.

(b) Any person who fails to perform an act required by this section or who commits an act prohibited by this section shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.

(C91, § 2-316.03; O.11,784, 13,965, 15,067, 15,608, 15,781)

Editor's note—Ord. No. 15,781, § 2, states: This ordinance shall be in full force and effect from and after September 1, 2019, following its passage and publication as provided by law.

Sec. 62-105. Effect on other law.

This article does not affect a reasonable local or state restriction regarding maximum number of occupants permitted to occupy a dwelling.

(C91, § 2-316.04; O.11,784)

Sec. 62-106. Civil action.

(a) A complainant, a respondent, or an aggrieved person on whose behalf the complaint was filed pursuant to this chapter may elect to have the charges asserted in the complaint decided in a civil action as provided by section 62-107 of this article in accordance with the following:

(1) The election must be made not later than 20 days after the date of receipt by the electing person of service under subsection 62-4(h)(2) of this chapter, or for the human rights commission not later than 20 days after the date of such service.

(2) The person making the election shall give notice to the commission and to all other complainants and respondents to whom the election relates.

(3) The election to have the charges of a complaint decided in a civil action as provided in this subsection is only available if it is alleged that there has been a violation of section 62-101 or 62-102 of this article.

(b) An aggrieved person may, as provided I.C. § 216.16A, file a civil action in district court not later than two years after the occurrence of the termination of an alleged discriminatory housing or real estate practice or the breach of a mediation agreement entered into in section 62-4 of this chapter, whichever occurs last, to obtain appropriate relief with respect to the discriminatory housing or real estate practice or breach in accordance with the following:

(1) The two-year period does not include any time during which a public hearing under sections 62-4 and 62-8 of this chapter is pending with respect to a complaint or charge based on the discriminatory housing or real estate practice. This subsection does not apply to actions arising from a breach of a mediation agreement.

(2) An aggrieved person may file an action under this subsection whether or not a discriminatory housing or real estate complaint has been filed under section 62-2 of this chapter and without regard to the status of any discriminatory housing or real estate complaint filed under that section.

(3) However, an aggrieved person shall not file an action under this subsection with respect to an alleged discriminatory housing or real estate practice that forms the basis of a charge issued by the commission if the commission has begun a hearing on the record under sections 62-4 and 62-8 of this chapter with respect to the charge.

(4) If the commission has obtained a mediation agreement with the consent of an aggrieved person, the aggrieved person shall not file an action under this subsection with respect to the alleged discriminatory practice that forms the basis for the complaint except to enforce the terms of the agreement.

(C91, § 2-322.02; O.12,072)

State law reference—Similar provisions, I.C. § 216.16A.

Sec. 62-107. Additional civil proceedings.

(a) Additional civil proceedings are available in the area of discriminatory housing practices as follows:

(1) If timely election is made under section 62-106 of this article, the parties are entitled to all rights, protections and remedies provided by I.C. § 216.17A.

(2) An aggrieved person may intervene in the action.

(3) If the district court finds that a discriminatory housing or real estate practice has occurred or is about to occur, the district court may grant any relief that a court may grant in a civil action under I.C. § 216.17A.

(4) If monetary relief is sought for the benefit of an aggrieved person who does not intervene in the civil action, the district court, as provided by I.C. § 216.17A, shall not award the monetary relief if that aggrieved person has not complied with discovery orders entered by the district court.

(b) An order of the human rights commission under sections 62-4 and 62-8 of this chapter and a commission order that has been substantially affirmed by judicial review do not affect a contract, sale, encumbrance, or lease that was consummated before the commission issued the order and involved a bona fide purchaser, encumbrancer, or tenant who did not have actual notice of the charge issued under this section.

(c) If the human rights commission issues an order with respect to a discriminatory housing practice that occurred in the course of a business subject to a licensing or regulation by a

governmental agency, the commission, not later than 30 days after the date of issuance of the order, shall do all of the following:

(1) Send copies of the findings and the order to the governmental agency.

(2) Recommend to the governmental agency appropriate disciplinary action.

(d) If the commission issues an order against a respondent against whom another order was issued within the preceding five years under section 62-4 or 62-8 of this chapter, the commission shall send a copy of each order issued under that section to the state attorney general.

(e) On application by a person alleging a discriminatory housing practice or by a person against whom a discriminatory practice is alleged, the district court may, as provided by I.C. § 216.17A, appoint an attorney for the person.

(f) In an action under this section, if the district court finds that a discriminatory housing or real estate practice has occurred or is about to occur, the district court may, as provided by I.C. § 216.17A, award or issue to the plaintiff one or more of the following:

(1) Actual and punitive damages.

(2) Reasonable attorney's fees.

(3) Court costs.

(4) Subject to subsection (g) of this section, any permanent or temporary injunction, temporary restraining order, or other order, including an order enjoining the defendant from engaging in the practice or ordering appropriate affirmative action.

(g) Relief granted under this section does not affect a contract, sale, encumbrance, or lease that was consummated before the granting of the relief and involved a bona fide purchaser, encumbrancer, or tenant who did not have actual notice of the filing of a complaint under section 62-2 of this chapter or a civil action under this section.

(h) On the request of the human rights commission, the attorney may intervene in an action under this section if the commission certifies that the case is of general public importance. The attorney may obtain the same relief available to the attorney under subsection (i) of this section.

(i) On the request of the human rights commission, the commission's attorney shall file a civil action in district court for appropriate relief if the commission has reasonable cause to believe that any of the following applies:

(1) A person is engaged in a pattern or practice of resistance to the full enjoyment of any housing right granted by section 62-161 or 62-102 of this chapter.

(2) A person has been denied any housing right granted by this chapter and that denial raises an issue of general public importance.

(j) In an action under this section, the district court may, as provided by I.C. § 216.17A, do any of the following:

(1) Order preventive relief, including a permanent or temporary injunction, restraining order, or other order against the person responsible for a violation of housing rights as necessary to ensure the full enjoyment of the housing rights granted by this chapter.

(2) Order another appropriate relief, including the awarding of monetary damages, reasonable attorney's fees, and court costs.

(3) To vindicate the public interest, assess a civil penalty against the respondent in an amount not to exceed those established by I.C. § 216.17A as follows:

a. Fifty thousand dollars for a first violation.

b. One hundred thousand dollars for a second or subsequent violation.

(k) A person may intervene in an action under this section if the person is any of the following:

(1) An aggrieved person to the discriminatory housing or real estate practice.

(2) A party to a mediation agreement concerning the discriminatory housing or real estate practice.

(l) The attorney, on behalf of the commission or other party at whose request a subpoena is issued, may enforce the subpoena in appropriate proceedings in district court.

(m) A court in a civil action brought under this section or the commission in an administrative hearing under sections 62-4 and/or 62-8 of this chapter may award reasonable attorney's fees to the prevailing party and assess court costs against the non-prevailing party.
(C91, § 2-322.03; O.12,072, 13,922)

Secs. 62-108—62-135. Reserved.

ARTICLE V. DISCRIMINATORY PUBLIC ACCOMMODATIONS PRACTICES*

Sec. 62-136. Enumerated.

It shall be an illegal discriminatory public accommodations practice for any person, owner, lessor, lessee, sublessee, proprietor, manager, superintendent, agent, or employee of any place of public accommodation to:

(1) Refuse or deny to any person because of race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry or disability the accommodations, advantages, facilities, goods, services, or privileges thereof or otherwise discriminate, separate, segregate or make a distinction against any person because of race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry or disability in the furnishing of such accommodations, advantages, facilities, goods, services or privileges.

(2) Directly or indirectly print or circulate or cause to be printed or circulated any advertisement, statement, publication or use any form of application for entrance and membership which expresses, directly or indirectly, any limitation, specification or discrimination as to race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry or disability or indicate or publicize that the patronage of persons of any particular race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry or disability is unwelcome, objectionable, not acceptable, or not solicited.

(3) Discriminate against any other person because such person has opposed any practice forbidden under this chapter or has filed a complaint, testified or assisted in any proceeding under this chapter.

(4) Aid, incite, compel, coerce, or participate in the doing of any act declared to be a discriminatory accommodations practice under this section, or attempt, directly or indirectly, to commit any act declared by this section to be a discriminatory practice.

(C62, §§ 25A-8, 25A-9; O.7738, 8291, 8920; C75, § 2-317; O.9337; C79, § 2-317; C91, § 2-317(a); O.13,965, 15,067)

Sec. 62-136.1. Commercial tenancy discrimination.

It shall be an illegal discriminatory practice for any person, owner, lessor, lessee, sublessee, proprietor, manager, superintendent, agent, or employee of any commercial space to refuse or deny to any person because of race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry or disability the rental, leasing, subleasing, licensing, transferring, use, occupancy, tenure or enjoyment, of commercial space or the beneficial use of its facilities, goods, services, or privileges thereof or otherwise discriminate, separate, segregate or make a distinction against any person because of race, religion, creed, color, sex, sexual orientation, gender identity, national origin, age, ancestry or disability in the offering or furnishing of commercial space, or beneficial use of its facilities, goods, services or privileges thereof.

The provisions of this section shall not be construed by negative implication or otherwise to narrow or restrict any part or portion of section 62-136 or any other provisions of this chapter.
(O.16,083)

*__Cross reference—__Businesses, ch. 30.

Sec. 62-137. Exemptions.

Nothing in this article shall be construed to apply to the following:

(1) Any exempt qualifications imposed by a bona fide religious institution as specified in I.C. § 216.7(2)(a).

(2) The rental or leasing to transient individuals of fewer than six rooms within a single housing accommodation by the occupant or owner of such housing accommodation if the occupant or owner or members of the occupant's or owner's family reside therein.

(3) Restrictions based on sex on the rental or leasing of housing accommodations by nonprofit corporations.

(4) Restrictions based on sex on the rental or leasing of housing accommodations which the owner can show were operated for the purpose of providing housing for persons of any one sex prior to January 21, 1972.

(C62, §§ 25A-8, 25A-9; O.7738, 8291, 8920; C75, § 2-317; O.9337; C79, § 2-317; C91, § 2-317(b); O.13,965, 15,067, 16,083)

Secs. 62-138—62-165. Reserved.

ARTICLE VI. DISCRIMINATORY MUNICIPAL PRACTICES*

Sec. 62-166. Illegal practices.

It shall be an illegal discriminatory municipal practice for the city or any employee, official, agent or representative of the city to refuse or deny to any person, because of age, race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry, disability, familial status or source of income, the services, advantages, facilities or privileges offered by the city or otherwise to discriminate, separate, segregate, or make a distinction against any person, because of age, race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry, disability, familial status or source of income, in the furnishing of such services, advantages, facilities or privileges.

(C62, § 25A-10; O.7738, 8291, 8920; C75, § 2-318; O.9337; C79, C91, § 2-318; O.13,922, 13,965, 15,067, 15,781)

Editor's note—Ord. No. 15,781, § 2, states: This ordinance shall be in full force and effect from and after September 1, 2019, following its passage and publication as provided by law.

Sec. 62-167. Reasonable accommodation.

The city declares its intent to make reasonable accommodation in rules, policies, practices, or services, when the accommodations are necessary to afford a person with a disability equal opportunity to use and enjoy a dwelling. Any person seeking reasonable accommodation in any rules, policies, practices, or services of the city, other than those adopted by the city in its capacity as a municipal housing agency, shall make application in the manner provided in section 2-1233 of this Code. Any person seeking reasonable accommodation in any rules, policies, practices, or services adopted by the city in its capacity as a municipal housing agency shall make application to the director of housing services.

(C91, § 2-318.01; O.13,383)

Sec. 62-168. City contracts.

The city and all of the contracting departments, divisions, boards, commissions, officials, agents and employees shall include in all contracts a provision obligating the contractor not to commit any of the illegal discriminatory employment practices set forth in this chapter and shall require such contractor to include the same provision in all subcontracts.

(C54, § 2-422; O.5775; C62, § 2-422; O.7738; C62, § 25A-11; O.8920; C75, § 2-319; O.9337; C79, C91, § 2-319; O.13,922)

Sec. 62-169. Nondiscrimination in urban renewal projects.

Nondiscrimination clauses shall be included in all leases and contracts which the city proposes to enter into with respect to the lease, sublease,

*__Cross reference—__Administration, ch. 2.

transfer, use, occupancy, tenure, or enjoyment of any land in an urban renewal project, in substantially the following form:

(1) *Leases.* The lessee herein covenants by and for the lessee and the lessee's heirs, executors, administrators and assigns, and all persons claiming under or through them, and this lease is made and accepted upon and subject to the following conditions: That there shall be no discrimination against or segregation of any person or group of persons on account of race, religion, creed, color, sex, sexual orientation, gender identity, national origin, ancestry, disability, familial status or source of income, in the leasing, subleasing, transferring, use, occupancy, tenure or enjoyment of the premises herein leased, nor shall the lessee or any person claiming under or through the lessee establish or permit any such practices of discrimination or segregation with reference to the selection, location, number, use or occupancy of tenants, lessees, sublessees, subtenants or vendees in the premises herein leased.

(2) *Contracts.* In contracts relating to the sale, transfer, or leasing of land, or any interest therein acquired by the city, within any urban renewal area or project, the provisions in subsection (1) of this section in substantially the forms set forth shall be included, and such contracts shall further provide that such provisions shall be binding upon and shall obligate the contracting party and any subcontracting party or other transferees under such instrument.

(C54, § 2-425.01; O.6076; C62, § 2-425.01; O.7738; C62, § 25A-12; O.8291, 8920; C75, § 2-320; O.9337; C79, C91, § 2-320; O.13,965, 15,067, 15,781)

Editor's note—Ord. No. 15,781, § 2, states: This ordinance shall be in full force and effect from and after September 1, 2019, following its passage and publication as provided by law.

Secs. 62-170, 62-171. Reserved.

ARTICLE VII. DISCRIMINATORY EDUCATION, CREDIT, OTHER PRACTICES

Sec. 62-172. Illegal credit practices.

(a) It shall be an illegal discriminatory practice for any:

(1) Creditor to refuse to enter into a consumer credit transaction or impose finance charges or conditions more onerous than those regularly extended by that creditor to consumers of similar economic backgrounds because of age, color, creed, national origin, race, religion, marital status, sex, sexual orientation, gender identity, physical disability or familial status.

(2) Persons authorized or licensed to do business in this state pursuant to I.C. chs. 524, 533, 536, or 536A to refuse to loan or extend credit or impose terms or conditions more onerous than those regularly extended to persons of similar economic backgrounds because of age, color, creed, national origin, race, religion, marital status, sex, sexual orientation, gender identity, physical disability or familial status.

(3) Creditor to refuse to offer credit life or health and accident insurance because of age, color, creed, national origin, race, religion, marital status, sex, sexual orientation, gender identity, physical disability or familial status. Refusal by a creditor to offer credit life or health and accident insurance based upon the age or physical disability of the consumer shall not be an unfair or discriminatory practice if such denial is based solely upon bona fide underwriting considerations not prohibited by I.C. title XIII, subtitle 1.

(b) The provisions of this section shall not be construed by negative implication or otherwise to narrow or restrict any other provisions of this chapter.

(O.16,083)

Sec. 62-173. Dwelling tenancy discrimination.

(a) It shall be an illegal discriminatory practice for an owner of a dwelling to deny a prospective tenant or to remove or evict a current tenant based on the tenant's five-year-old arrests or convictions for non-violent misdemeanor offenses under Iowa law, municipal or county ordinance or their equivalent categorization of offense if from another jurisdiction outside the state.

(b) Nothing in this section shall be construed to apply to a participant in a federal, state or local government housing assistance program that requires denial of a prospective tenant, or the removal or eviction of a current tenant based on such prior arrests or convictions.
(O.16,083)

Secs. 62-174—62-190. Reserved.

ARTICLE VIII. COMMUNITY MEDIATION

Sec. 62-191. Voluntary community mediation.

The commission, in its mission to establish mutual understanding and respect among persons within the city, may engage in mediation of matters, disagreements or disputes between persons which may have a real or perceived discriminatory impact or consequence and which may not constitute an illegal discriminatory practice under this chapter, or of any other dispute regarding human relations or rights. The commission shall promulgate rules and procedures for voluntary mediation in accordance with section 62-11, which rules and procedures shall include the following:

(1) Mediation shall be initiated only after the commission has received a formal request for mediation services signed by all involved parties and the director. The director or one of its designees shall preside over the mediation and shall use conference, conciliation, and persuasion with the involved parties and any resolution shall be embodied in a conciliation agreement signed by all involved parties and the director.

(2) If director or its designee is unable, after reasonable efforts, to resolve the matter, disagreement or dispute through mediation, the director or its designee shall declare an impasse, withdraw and not participate further. The director or its designee may advise the involved parties of such appropriate or available remedies as may exist to further pursue the resolution of the matter, disagreement or complaint.

(O.16,083)

Chapters 63—65

RESERVED

Chapter 66

LIBRARY*

Article I. In General

Sec. 66-1. Composition; function.
Sec. 66-2. Use by nonresidents.
Sec. 66-3. Operation and maintenance account.
Sec. 66-4. Annual report.
Secs. 66-5—66-30. Reserved.

Article II. Board of Trustees

Sec. 66-31. Composition; appointment.
Sec. 66-32. Qualifications of members.
Sec. 66-33. Organization.
Sec. 66-34. Powers and duties.
Sec. 66-35. Power to contract for use of library.

*__Cross references—__Administration, ch. 2; streets, sidewalks, skywalks and other public places, ch. 102.

ARTICLE I. IN GENERAL

Sec. 66-1. Composition; function.

The public library of the city is comprised of the main library and all branch libraries established by the city. It shall function as a free public library for city residents.
(C75, § 2-333; O.8957; C79, C91, § 2-333)

Sec. 66-2. Use by nonresidents.

The library board of trustees may authorize the use of the library by nonresidents by any one or more of the following ways:

(1) Lending the books or other materials of the library to nonresidents on the same terms and conditions as to residents of the city or upon payment of a special nonresident library fee.

(2) Establishing depositories of library books or other materials to be loaned to nonresidents.

(3) The transportation of books or other library materials by mobile or other conveyance for lending to nonresidents.

(4) Establishing branch libraries for lending books or other library materials to nonresidents.

(C75, § 2-339; O.8957; C79, C91, § 2-339)

Sec. 66-3. Operation and maintenance account.

All money appropriated by the city council from the general fund for the operation and maintenance of the library shall be set aside by the finance director in an account for the library and shall be paid out only upon the orders of the library board of trustees, signed by its president and secretary.
(C42, § 97-3; C54, C62, § 27-4; C75, § 2-340; O.8957; C79, C91, § 2-340)

Sec. 66-4. Annual report.

The library board of trustees shall make a report to the city council immediately after the close of the municipal fiscal year. This report shall contain statements of the condition of the library, the number of books added thereto, the number circulated, the number not returned or lost, the amount of fines collected, and the amount of money expended in the maintenance of the library during the year, together with such further information required by the council.
(C75, § 2-341; O.8957; C79, C91, § 2-341)

Secs. 66-5—66-30. Reserved.

ARTICLE II. BOARD OF TRUSTEES*

Sec. 66-31. Composition; appointment.

The board of trustees of the public library, referred to as the "board," consists of five members. All board members shall be appointed by the mayor with the approval of the council.
(C75, § 2-334; O.8957; C79, C85, § 2-334; O.11,385; C91, § 2-334)

Sec. 66-32. Qualifications of members.

All members of the library board of trustees shall be bona fide citizens and residents of the city and shall be 18 years of age or over.
(C75, § 2-335; O.8957; C79, C91, § 2-335)

Sec. 66-33. Organization.

Appointments to the library board of trustees shall be for six years, except to fill vacancies. Each term shall commence on July 1. Appointments shall be made every two years of one-third the total number of the board as nearly as possible.
(C75, § 2-336; O.8957; C79, C85, § 2-336; O.11,385; C91, § 2-336)

Sec. 66-34. Powers and duties.

The library board of trustees shall have and exercise the power and duty to:

(1) Meet and elect from its members a president, a secretary, and such other officers as it deems necessary. The finance director shall serve as treasurer of the board but shall not be a member of the board.

*__Cross reference—__Boards, commissions, committees and agencies, § 2-1046 et seq.

(2) Have charge, control and supervision of the public library, its appurtenances and fixtures, and rooms containing such.

(3) Direct and control all of the affairs of the public library.

(4) Employ a librarian, such assistants and employees as may be necessary for the proper management of the library, and fix their compensation; provided, however, that prior to such employment, the compensation of the librarian, assistants, and employees shall have been fixed by a majority of the members of the board voting in favor thereof.

(5) Remove by a two-thirds vote of the board such librarian, assistants, or employees for misdemeanor, incompetency, or inattention to the duties of such employment, subject to I.C. ch. 35C.

(6) Select, or authorize the librarian to select, and make purchases of books, pamphlets, magazines, periodicals, papers, maps, journals, other library materials, furniture, fixtures, stationery, and supplies for the library.

(7) Authorize the use of the library by nonresidents of the city and fix charges therefor.

(8) Make and adopt, amend, modify, or repeal bylaws, rules and regulations, not inconsistent with state law or local ordinance, for the care, use, government, and management of the library and the business of the board, fixing and enforcing penalties for violation thereof.

(9) Have exclusive control of the expenditures of all funds allocated for library purposes by the city council and of all moneys available by gift or otherwise for the erection of library buildings and of all other moneys belonging to the library, including fines and rentals collected under the rules adopted by the board.

(10) Accept gifts of real property, personal property, or mixed property and devises and bequests, including trust funds; take title to such property in the name of the library; execute deeds and bills of sale for the conveyance of such property; and expend the funds received from such gifts, for the improvement of the library.

(11) Keep records of its proceedings.

(12) Enforce the performance of conditions on gifts, donations, devises and bequests to or for the library and accepted by the city, taking such action as may be necessary to do so against the city council.

(13) In its discretion, make agreements with Polk County historical associations, where such exist, and set apart the necessary room and to care for such articles as may come into the possession of the association; in its discretion, purchase necessary receptacles and materials for the preservation and protection of such articles as are in its judgment of a historical and educational nature and pay for such out of the funds allocated for library purposes.

(14) Contract with the board of trustees of the central Iowa regional library system to strengthen local public library services throughout such region.

(C42, §§ 97-2, 97-3; C54, C62, §§ 27-2, 27-3; C75, § 2-337; O.8957; C79, C91, § 2-337)

Sec. 66-35. Power to contract for use of library.

(a) The library board of trustees may contract with boards of trustees of other free public libraries or with any other city, school corporation, private or semiprivate organization, institution of higher learning, township or county or with the trustees of any county library district for the use of the library by their respective residents.

(b) Such a contract may be terminated at any time by mutual consent of the contracting parties. It may also be terminated by the vote of a majority of the electors represented by either of the contracting parties. Such a termination proposition shall be submitted to the electors by the governing body of a contracting party upon a written petition of not less than five percent in number of the electors who voted for governor in the territory of that party at the last general

election. The petition must be presented to the governing body no less than 40 days before the election. The proposition may be submitted at any election provided by law that is held in the territory of the party seeking to terminate the contract.
(C75, § 2-338; O.8957; C79, C91, § 2-338)

Chapters 67—69

RESERVED

Chapter 70

OFFENSES AND MISCELLANEOUS PROVISIONS*

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*__Cross references—__Police, ch. 86; traffic and vehicles, ch. 114.

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ARTICLE I. IN GENERAL

Sec. 70-1. Penalty.

Except as otherwise provided in this chapter, any person who fails to perform an act required by this chapter or who commits an act prohibited by this chapter shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.
(C85, § 17-84; O.11,562; C91, § 17-84; O.13,648, 15,608)

Secs. 70-2—70-30. Reserved.

ARTICLE II. OFFENSES AGAINST PUBLIC PEACE

Sec. 70-31. Disorderly assembly.

It shall be unlawful for three or more persons to assemble together for the purpose of or with the intent to injure or use unlawful force or violence against any person or property of individuals or to damage or destroy in any manner any public or private buildings or other property or to disturb the public peace or quiet or to intimidate or wrongfully restrain or prevent any person from doing any lawful act.
(C42, § 106-1; C54, C62, § 32-4; O.7786; C75, C79, C91, § 17-7)

State law reference—Similar provisions, I.C. § 723.2.

Sec. 70-32. Riots; responsibility for damages.

When three or more persons together commit an unlawful act and injure or use force or violence against any person or property of individuals or damage or destroy in any manner any public or private building or other property or disturb the public peace or quiet or intimidate or wrongfully restrain or prevent any person from doing any lawful act, they are guilty of a riot and shall be answerable to any person injured or the owner or person having control of any property damaged or destroyed to the full amount of the damage sustained.
(C62, § 32-4.01; O.7787; C75, C79, C85, § 17-8; O.11,567; C91, § 17-8)

State law reference—Similar provisions, I.C. § 723.1.

Sec. 70-33. Trials for violation of section 70-31 or 70-32; allegation as to number.

Any person guilty of violating section 70-31 or 70-32 of this article may alone be tried and convicted thereof, but it must be alleged in the information and proved on the trial that three or more persons were engaged therein.
(C62, § 32-4.02; O.7788; C75, C79, C91, § 17-9)

Sec. 70-34. Command to leave or disperse.

No person in the near vicinity of a disorderly assembly or riot, whether an active participant or not, and who has been commanded by any law enforcement officer to leave the vicinity or disperse shall fail or refuse to do so without justifiable cause.
(C62, § 32-4.03; O.7789; C75, C79, C91, § 17-10)

State law reference—Similar provisions, I.C. § 723.3.

Sec. 70-35. Disorderly houses.

(a) For the purpose of this section, the term "disorderly house" shall mean and include any building, house, enclosure or place where riotous, noisy or disorderly conduct or loud or unusual noises or loud, profane or vulgar language or drunkenness, quarreling or fighting is engaged in or permitted; or to which prostitutes and vagrants resort.

(b) No person shall keep, maintain, operate, or be concerned in keeping, maintaining or operating within the city any illegal gambling place; disorderly house; house of prostitution; place where illegal narcotics are kept, used, or sold; or place where intoxicating liquor is illegally kept, sold or served. No person shall frequent or be found in any such place or be employed therein.

(c) No person knowing the character or reputation of any such place shall transport others to or from the place.
(C42, §§ 106-4, 106-5; C54, C62, § 32-5; C75, C79, C85, § 17-11; O.11,567; C91, § 17-11)
State law reference—Similar provisions, I.C. § 723.4.

Sec. 70-36. Disturbing peace or quiet.

(a) No person shall act with a purpose, or with willful or wanton disregard, to disturb or aid in disturbing the peace, quiet or good order of or disrupt or aid in disrupting any person or assembly, place or meeting, public or private, by doing any of the following:

(1) An act of violence or by any act likely to produce violence or by engaging in fighting, threatening or tumultuous behavior except that participants in athletic contests may engage in such conduct which is reasonably related to that sport,

(2) By making any unreasonably loud noise to cause public inconvenience, annoyance or alarm, or recklessly creating a risk of public inconvenience, annoyance or alarm,

(3) By addressing abusive language, threats, or gestures to any person present which the person knows or reasonably should know is likely to provoke a violent reaction by another,

(4) Without lawful authority or color of authority, otherwise engage in conduct intended to disrupt a lawful assembly or meeting of persons.

(b) Nothing contained in subsection (a) of this section shall be held to prohibit peaceful picketing, public speaking, the ordinary conduct of a legitimate business, or other lawful expressions of opinion not in contravention of other laws.
(C42, § 106-2; C54, C62, § 32-6; O.7990; C75, C79, C91, § 17-12; O.15,828)
State law reference—Similar provisions, I.C. § 723.4.

Sec. 70-37. Standing, loitering and obstructing persons.

(a) No person shall congregate, stand, loaf or loiter upon any street, sidewalk, bridge or crossing so as to obstruct the street, sidewalk, bridge or crossing or hinder or prevent persons passing or attempting or desiring to pass thereon.

(b) No person shall congregate, stand, loaf or loiter in or in front of any hall, lobby, doorway, passage or entrance of any public building, theater, hotel, eating house, lodginghouse, office building, store, shop, office or factory or other like building so as to obstruct such place or hinder or prevent persons walking along or into or out of such place or attempting or desiring to do so.

(c) No person shall sit upon or lean upon or against any railing or other barrier about any area, entrance, basement or window to obstruct the light or prevent passage of persons or tenants occupying the building to which such area, entrance, basement or window belongs.

(d) No person shall stand, loaf, loiter, or remain in or in the immediate vicinity of or frequent a public transportation terminal, whether publicly or privately owned, unless there present with intent to use or to accompany or meet a person using the public transportation there offered or to use one or some of the accessory convenience facilities operated at such terminal for the use of travelers.

(e) No person shall congregate, stand, loiter, or remain in any parking garage, whether publicly or privately owned, so as to interfere with the property of others or with any person's ability to use the services afforded by the garage, unless present there with the intent to park or use any other services afforded by the garage.
(C42, § 106-3; C54, C62, § 32-28; O.8216; C75, § 17-13; O.9424; C79, C91, § 17-13; O.11,798)

Sec. 70-38. Loitering on public property.

No persons shall collect, assemble or group together and, after being so collected, assembled or grouped together, stand or loiter on any sidewalk, parking or any street corner or at any other place in the city to the hindrance or obstruction to free passage of any person passing on or along any sidewalk or street in the city.
(C54, § 32-28.01; O.6519, 6547; C62, § 32-28.01; O.8216; C75, C79, C91, § 17-14)

Sec. 70-39. Loitering near government buildings.

(a) No person shall congregate, stand, loaf or loiter in or in front of or around any school or other public building occupied in whole or in part

by any governmental subdivision, including any agency, body, department, office, board or commission and the like thereof, so as to obstruct, hinder, prevent or disrupt the normal functions carried on therein or thereat or so as to obstruct, hinder or prevent persons passing by or into or out of the school or other public building or attempting or desiring to do so.

(b) Nothing contained in subsection (a) of this section shall be held to prohibit peaceful picketing, public speaking, the ordinary conduct of a legitimate business, or other lawful expressions of opinion not in contravention of other laws.
(C62, § 32-28.02; O.7795, 8216; C75, C79, C91, § 17-15)

Secs. 70-40—70-65. Reserved.

ARTICLE III. OFFENSES AGAINST PUBLIC SAFETY

Sec. 70-66. False reports to or communications with public safety entities.

(a) It shall be unlawful for a person to report or cause to be reported false information to a fire department, a law enforcement authority, or other public safety entity, knowing that the information is false, or to report the alleged occurrence of a criminal act, knowing the act did not occur.

(b) It shall be unlawful for a person to telephone an emergency 911 communications center, knowing that the person is not reporting an emergency or otherwise needing emergency information or assistance.

(c) It shall be unlawful for a person to knowingly provide false information to a law enforcement officer who enters the information on a citation.
(C42, § 112-5; C54, C62, § 32-7; C75, C79, § 17-17; C54, § 32-7.01; O.5983, 5989; C62, § 32-7.01; C75, C79, § 17-18; C85, §§ 17-16, 17-17; O.10,946, 11.567; C91, §§ 17-16—17-18; O.13,385)

State law reference—Similar provisions, I.C. § 718.6.

Sec. 70-66.1. False reports to or communications with public safety entities based on membership in or association with a protected class.

(a) It shall be unlawful for a person to report or cause to be reported false information to a fire department, a law enforcement authority, or other public safety entity, knowing that the information is false, or to report the alleged occurrence of a criminal act, knowing the act did not occur if the report is based in whole or part on the reported or accused person's membership in or association with a protected class identified and/or defined in chapter 62 of this Code or I.C. ch. 216.

(b) A person who commits an act in violation of this section shall be guilty of a misdemeanor punishable by a fine of $855.00 or shall be guilty of a municipal infraction punishable by a civil penalty of $750.00 and, for a repeat violation, a civil penalty of $1,000.00.
(O.16,084)

Sec. 70-67. Resisting officer.

No person shall resist or obstruct the chief of police, any police officer, or any member of the fire department or other city officer or employee in the performance of any official duty.
(C42, § 112-1; C54, C62, § 32-36; C75, C79, C91, § 17-19)

State law reference—Similar provisions, I.C. § 718.4.

Sec. 70-68. Placing stench bombs in public assembly.

No person shall place in any theater, school or public assembly of persons or public place any stench bombs, sneezing powders or tear gas or any substance obnoxious to the smell or any substance intended to create sneezing, tears or any bodily discomfort.
(C42, § 108-8; C54, C62, § 32-39; C75, C79, C91, § 17-20)

Sec. 70-69. Definition of noxious substance.

Unless otherwise expressly stated or the context clearly indicates a different intention, the follow-

ing term shall, for the purpose of sections 70-70 and 70-71 of this article, have the meaning in this section:

Noxious substance means any substance or material or any device containing a substance or material, which contains any of the following materials, has any of the following effects, or which may be described in any of the following ways: stench bombs, sneezing powder, tear gas, mustard gas, phosgene gas, chlorine gas, chloracetophenone (CN), orthochlorobenzal-malononitrile (CS), oleoresin capsicum, or any other obnoxious substances or nauseating gases or mixtures of chemicals designed to produce and capable of producing vile, injurious or nauseating odors or gases or which produce tears, sneezing or any other bodily discomfort.
(C42, § 108-9; C54, C62, § 32-40; C75, § 17-21; Repealed by O.9472, Reenacted by O.9492; C79, C91, § 17-21)

Cross reference—Definitions generally, § 1-2.

Sec. 70-70. Sale of noxious substances or devices.

(a) No person shall sell, offer for sale or keep for sale any noxious substance or any device which releases a noxious substance, as defined in section 70-69 of this article, unless such has been certified as not being a hazardous substance pursuant to the provisions of the Federal Hazardous Substances Act of 1961, 15 USC 47.

(b) If a noxious substance or device is classified as a hazardous substance pursuant to the provisions of the federal act mentioned in subsection (a) of this section, the provisions of that act and of regulations promulgated pursuant thereto shall control as to the limitations on the sale or possession of such substances or devices. No person shall sell, offer for sale, or keep for sale any noxious substance or device which releases a noxious substance which is not controlled by the provisions of the federal act unless the device is accompanied by a complete description of the device's capabilities and effects, including the following:

(1) Whether the particular device fires a stream or mist and the scope of the stream or mist.

(2) The maximum range of the particular device.

(3) The effect that a breeze or wind may have on the accuracy of the stream or spray.

(4) The effects that the particular device or substance will have on an individual who is sprayed.

(5) The antidote or recommended treatment for the effects of the substance.

(C75, § 17-21.01; O.9492; C79, C91, § 17-21.01)

Sec. 70-71. Use of noxious substances.

No person shall maliciously or without just cause release or cause or procure to be released in any private home, place of business or place of public gathering any noxious substance which results in bodily injury to any person from such release. Nothing contained in this section shall prevent the use of noxious substances by peace officers in the proper performance of their duties or by any person in the lawful protection of a person or property.
(C75, § 17-21.02; O.9492; C79, C91, § 17-21.02)

Sec. 70-72. Abandoned or unattended refrigerators.

It shall be unlawful for any person to abandon or otherwise leave unattended any refrigerator, icebox, or similar container, with doors that may become locked, outside of buildings and accessible to children or to allow any such refrigerator, icebox, or similar container to remain abandoned or unattended outside of a building on premises in the person's possession or control and so accessible to children.
(C42, § 108-1.01; O.5503; C54, C62, § 32-1; C75, C79, § 17-22; C42, § 108-1.02; O.5503; C54, C62, § 32-2; C75, C79, § 17-23; C42, § 108-1.03; O.5503; C54, C62, § 32-3; C75, C79, C85, § 17-24; O.11,567; C91, §§ 17-22—17-24)

State law reference—Similar provisions, I.C. § 727.3.

Sec. 70-73. Emptying flammable liquids into sewers.

No person shall deposit into any public sewer or into any sewer connecting with a public sewer

any flammable liquid, including but not limited to benzine, benzol, naphtha, gasoline or any other liquid product of petroleum.
(C42, § 108-10; C54, C62, § 32-37; C75, C79, C85, § 17-25; O.11,567; C91, § 17-25)

Cross references—Fire prevention and protection, ch. 46; sewers and sewage disposal, § 118-31 et seq.; sewer districts, app. G.

Sec. 70-74. Swimming.

(a) No person shall bathe or swim in the Des Moines River or Raccoon River, except as authorized by the city council by resolution if the person has obtained a permit from the Iowa Department of Natural Resources, or in any other unsupervised place within the city or within a city-owned park, except by written permission of the park and recreation director per section 74-112(a) of this Code.

(b) Nothing contained in this section shall be construed to prohibit swimming or bathing at any regular municipal bathhouse or other public bathing place under such rules and regulations as may be prescribed by the city park and recreation board.
(C42, §§ 113-1 to 113-3; C54, § 32-41; O.5927; C62, § 32-41; O.8653; C75, C79, C91, § 17-26; O.15,018)

Sec. 70-75. Cutting holes in ice.

(a) No person shall cut or make air holes of any size or for any purpose whatsoever in the ice in the Des Moines River or Raccoon River or in any lake or pond within the corporate limits without first obtaining permission of the chief of police.

(b) Any person cutting or making any holes in the ice as provided for in subsection (a) of this section shall erect and maintain a sufficient warning which shall be readily recognizable and, where necessary, shall erect and maintain a fence or barrier around such hole not less than ten feet from the edge of the hole.
(C42, §§ 113-4, 113-5; C54, C62, § 32-19; C75, C79, C91, § 17-33)

Sec. 70-76. Sale or exchange of daggers, brass knuckles.

No person shall exhibit for sale, exchange, gift or any other purpose, in any showcase, show

window or other place exposed to public view, any dagger, Bowie knife, stiletto, butterfly knife, switchblade knife or other knife or instrument which opens by hand pressure applied to a button or other device in the handle of the knife or by operation of inertia, gravity or both; throwing stars or any other martial arts weapon; brass knuckles or knuckles of lead, brass or other metal or materials, nor shall any person display any sign, poster, cartoon or card, suggesting the keeping for sale, exchange or gift of any of the articles described in this section. Nothing in this section shall be deemed to prohibit the display of such articles for educational or historical purposes.
(C42, § 108-2; C54, C62, § 32-42; C75, C79, C85, § 17-34; O.11,567; C91, § 17-34)

Sec. 70-77. Possession of knives by minors.

(a) No minor under 18 years of age shall possess, own or carry on or about his or her person, whether concealed or not, within the city any knife which opens by hand pressure applied to a button, lever, switch, or other device in the handle of the knife or by operation of inertia, gravity or both.

(b) No person shall furnish to any minor under 18 years of age, by gift, sale, or otherwise, any such knife.
(C75, § 17-34.01; O.9036; C79, § 17-34.01; C85, § 17-34.01; O.11,567; C91, § 17-34.01)

Sec. 70-78. Knives on school property.

No person shall possess, own or carry on or about his or her person, whether concealed or not, any knife on primary or secondary school property within the city, with the exception of a knife furnished by such school system or specifically authorized by such school system, and then only in connection with the specific activity for which so authorized.
(C75, § 17-34.02; O.9036; C79, C91, § 17-34.02)

Sec. 70-79. Use of blowguns; throwing objects.

No person shall use any blowgun or similar device or throw any stone, stick or other substance in such a manner as to hit, injure or endanger any person, window or other property.
(C42, § 108-4; C54, § 32-43; O.5911; C62, § 32-43; O.8808; C75, C79, C91, § 17-35)

Sec. 70-80. Use of slings or slingshots.

No person shall keep, possess, sell, give, use, fire, shoot or discharge any sling, slingshot, wrist slingshot or wrist-supported slingshot of any type or kind within the corporate limits.
(C62, § 32-43.01; O.8808; C75, C79, C91, § 17-35.01)

Sec. 70-81. Airguns and BB guns.

(a) The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Airgun means any gun, including handguns, capable of propelling a pellet or other projectile from the barrel of such gun by nonexplosive means, such as compressed air, CO_2 or other gas.

BB gun means any airgun capable of propelling a BB or other projectile from the barrel by means of a spring mechanism or air.

Shoot, fire, or discharge means the act of triggering the mechanism of an airgun or BB gun so that it propels a pellet, BB or other projectile from the barrel of such gun.

(b) No person shall shoot, fire, or discharge any airgun or BB gun, except pursuant to sections 70-82 and 70-84 of this article and section 22-59 of this Code, within the city or within a city-owned park without written permission of the chief of police. Such permission shall limit the time and place of shooting and may be revoked by the chief of police.

(c) No person under the age of 18 shall shoot, fire or discharge any airgun or BB gun unless under the direct supervision of an adult.

(d) No person shall shoot, fire or discharge any airgun or BB gun at any live animal or bird unless express written permission to do so has been granted by the chief of police, except as provided in section 22-59 of this Code.
(C75, § 17-35.02; O.9036; C79, C91, § 17-35.02; O.13,999, 14,903)

Cross reference—Definitions generally, § 1-2.

Sec. 70-82. Use of airguns and BB guns.

(a) Airguns and BB guns may be fired or discharged within the city by persons for target shooting purposes without written permission of the chief of police in the following situations:

(1) In connection with educational programs of a public or private school under the supervision of school personnel.

(2) At enclosed shooting ranges or firing ranges, either in target competition or in practice, under the continuing supervision of the owner or his or her designee.

(3) In any park areas specifically designed for such and designated by the city park and recreation board, under such rules as that board may enact to ensure the safety of participants and others.

(4) In enclosed private buildings.

(b) No person shall shoot, fire or discharge any airgun or BB gun under authority of this section in such fashion that the discharged pellet, projectile or BB travels beyond the building in which such airgun or BB gun is fired or, for outdoor shooting, beyond the boundaries of the designated shooting area in which the person is shooting.
(C75, § 17-35.03; O.9036; C79, C91, § 17-35.03, 14,903)

Sec. 70-83. Trapping.

No person shall set or use a steel, claw, or box trap outside of any structure or building for the purpose of taking, killing, maiming, wounding, ensnaring, trapping, or capturing an animal or which is injurious to persons or animals, except for the following:

(1) Any trap designed for the primary use of capturing mice, rats, gophers, moles, or aquatic rodents which are trapped in water.

(2) Any trapping by a governmental unit to capture animals which are creating a public nuisance or for the protection of public or private property.

(3) Any trapping by a business licensed by the state department of natural resources to trap and relocate nondomestic animals or wildlife.

(4) Live trapping with cage or box traps by landowners or tenants for relocation outside of the city limits of any nondomestic animal or wildlife that presents a nuisance or danger to any person or property.
(C75, § 17-35.04; O.9224; C79, § 17-35.04; O.9912; C91, § 17-35.04; O.13,223, 13,619)

Cross reference—Animals, ch. 18.

Sec. 70-84. Hunting.

(a) No person shall pursue, hunt, kill, snare, net, search for, shoot at, stalk, or lie in wait for any game, animal, or bird with an airgun, BB gun, firearm, bow and arrow, or any other thrown or propelled device within the city limits except as provided in subsections (b), (c), (d) and (e) of this section, and sections 70-81(d) and 22-59 of this Code.

(b) Licensed bow hunters meeting the requirements established by the state department of natural resources (DNR) may hunt antlerless deer within the areas designated as the "Des Moines Special Deer Management Zones" on public or private property, under all the following conditions:

(1) Hunting may occur only on dates designated by the DNR as bow hunting season in the Des Moines Special Deer Management Zone (zone) by persons who are at least 18 years of age and licensed for such hunting, and this license must be carried on his or her person;

(2) Hunters must have written permission from the property owner and must carry that written permission form on his or her person and the portion of the special deer management zone map which verifies that the property is within the zone;

(3) Hunters cannot carry an uncased bow within 100 feet of any residence or within 75 feet of any trail, road or building;

(4) Hunters must have a permit issued by the director of the park and recreation depart-

ment and comply with the terms and conditions of such permit. A permit application fee of $10.00 shall be paid by hunters to the park and recreation department from August 1—31. The application fee shall be $20.00 for applications received after August 31st during the current deer hunting season.

(5) Upon application of the property owner, the director of the park and recreation department may issue a permit which waives the 100 feet residency requirement as provided in subsection (b)(3) of this section and provide for a lesser distance. Such waiver permit may be issued only after an on-site inspection by the park and recreation department and a determination by the director that the hunt may be safely performed. Such waiver permit may include special hunt restrictions to ensure the safety of the hunt and must adhere to the distance requirements provided in subsection (b)(3) of this section from adjoining properties;

(6) Hunters must take all shots from an elevated stand and shoot no further than 25 yards;

(7) Hunters must comply with all rules of the state department of natural resources for hunting in such zone; and

(8) Hunters must take all deer meat to be processed or given to charity.

(c) Bow hunting for deer may occur in Des Moines Water Works Park according to the requirements of this Code if permitted by resolution of the city water works board of trustees, which resolution may impose greater restrictions than are provided in this Code. No hunting may occur in any other park owned by the city and operated by the park and recreation department except bow hunting for deer during the dates designated by the DNR as bow hunting season within the areas designated as the "Des Moines Special Deer Management Zones" with written permit issued by the park and recreation director, which permit may limit the dates, time of day and area that hunting is allowed. No hunting may occur within 75 feet of any city-owned recreational trail or on any other property owned or leased by the city, other than the water works park, except as provided in section 22-59 of this Code.

(d) Licensed bow hunters meeting the requirements established by the state department of natural resources (DNR) may hunt antlered deer within the areas designated as the special deer management zones on public or private property, under all the following conditions:

(1) All conditions listed in subsection (b) above must be met.

(2) A limited number of antlered deer may be taken according to an incentive program that may be adopted by the county deer task force and approved by the state department of natural resources (DNR).

(e) Hunting, including but not limited to hunting for deer and waterfowl, may occur on private property subject to compliance with each of the following limitations:

(1) All such hunting activities must be conducted in compliance with all rules and regulations imposed by the Code of Iowa and the Iowa Department of Natural Resources, including, but not limited to, all licensing provisions of the Iowa Department of Natural Resources.

(2) No firearm may be used for any such hunting activity except a shotgun, muzzle loading rifle, or BB gun rifle. Pistols shall not be used for hunting.

(3) The property must be a minimum of 20 contiguous acres or more in size, located within the A-1 agricultural district, and assessed as agricultural property for property tax purposes.

(4) The hunters must either be under the direct supervision of a record titleholder of the property, or have in their possession written permission from a record titleholder of the property to hunt on such property.

(5) No person shall hunt with a bow or BB gun rifle within 100 feet of a public park or public street, highway or recreational trail; and no person shall hunt with a

firearm within 200 yards of a public park or public street, highway or recreational trail.

(6) A person shall not hunt with a bow or BB gun rifle within 100 feet of a building inhabited by people or domestic livestock or within 100 feet of a feedlot as defined in I.C. § 481A.123, and no person shall hunt with a firearm within 200 yards of a building inhabited by people or domestic livestock or within 200 yards of a feedlot, unless the owner or tenant of such building or feedlot has given consent.

(7) A person shall not shoot any firearm, BB gun or arrow on or over any public waters, highways, streets, alleys or recreational trail, or any railroad right-of-way.

(8) No person shall hunt with a shotgun using slugs or with a muzzle loading rifle except for deer hunting from an elevated stand or platform at least ten feet above the ground, and without the aid of other persons used to drive or concentrate the deer in the vicinity of the hunter.

(f) Any violation of this section is punishable as provided in section 1-15 of this Code.
(C91, § 17-35.05; O.12,050, 13,608, 13,741, 13,999, 14,131, 14,524, 14,587, 14,710, 14,903, 15,252)
Cross reference—Animals, ch. 18.

Sec. 70-85. Concealed weapons.

(a) No person shall carry under his or her clothes or concealed about his or her person any of the following:

(1) A pistol or other firearm.

(2) Brass knuckles or knuckles of lead, brass or other metal or materials.

(3) An airgun of any description.

(4) A dagger, Bowie knife, stiletto, butterfly knife, switchblade knife or other knife or instrument which opens automatically by hand pressure applied to a button or other device in the handle of the knife or by operation of inertia, gravity or both.

(5) A throwing star or any other martial arts weapon.

(6) A dangerous weapon, instrument or device as defined by I.C. ch. 702.

(b) This section shall not be construed to prohibit any officer of the United States or of any state, any person having an authorized permit or any peace officer from wearing or carrying such weapons as may be convenient, necessary and proper for the discharge of his or her official duties.
(C42, § 108-3; C54, C62, § 32-44; C75, C79, C85, § 17-36; O.11,266, 11,567; C91, § 17-36)
State law reference—Similar provisions, I.C. § 724.4.

Sec. 70-86. Discharging firearms.

(a) No person shall fire or discharge any cannon, gun, pistol or other firearm within the city, except as provided in this section or for hunting as permitted by section 70-84.

(b) Blank charges may be discharged from firearms at a burial or memorial service held at a public or private cemetery or upon public property in recognition of or honoring any deceased person or class of deceased people when:

(1) The discharge is conducted by a Congressionally recognized veteran's organization, an active or reserve branch of the armed forces, or a law enforcement agency;

(2) No more than seven people participate in the discharge, and

(3) No more than three rounds are discharged from any one weapon, and the total time elapsed at any one event from the first discharge to the last discharge is not more than three minutes.

(c) Blank charges may be discharged from firearms if the chief of police has been given at least 48 hours' notice of the proposed discharge and the discharge is part of:

(1) An educational event sponsored and supervised by public or private school officials upon public school property, or upon the property of any private school, college or university; or

(2) A theatrical performance in which actors or actresses or both take part in person in a performance given in what is commonly

called a theater to which admission may be had by payment of a fee or by purchase and presentation of a ticket or token obtained for money and to which the public generally may gain admission.

(d) Discharge of firearms is permitted at target ranges authorized by the state law enforcement academy or as otherwise authorized for law enforcement officials.

(e) Discharge of a pistol or shotgun loaded with specialized pyrotechnics for the purpose of controlling birds and mammals may be authorized by the chief of police. Such authorization shall limit the time and place of such firing and may be revoked at the discretion of the chief of police.

(f) Discharge of a shotgun, loaded with no larger than no. 6 shot, for purposes of education or professional shooting exhibitions may be authorized by the chief of police if approved by the Iowa Department of Natural Resources (DNR) Shooting Sports Coordinator or other DNR designee. Such authorization shall limit the time and place of the discharge and may be revoked at the discretion of the chief of police.
(C42, § 108-1; C54, C62, § 32-45; O.8653; C75, C79, C85, § 17-37; O.10,970, 11,076, 11,173; C91, § 17-37; O.13,586, 13,999, 14,878, 14,903, 15,144)

Sec. 70-87. Use of bows and arrows generally.

Except as provided in section 70-84 of this article, no person shall shoot a bow and arrow within the city, except pursuant to sections 70-88, 70-89, and 70-90 of this article, without permission from the chief of police, which permission shall limit the time and place of shooting and may be revoked by the chief of police. In this section and in sections 70-88, 70-89 and 70-90 of this article, the term "shoot a bow and arrow" means to place the nock of the arrow in the string of a bow or of any other object and to release the arrow in such fashion that, when the string is pulled and released, the arrow thrusts forward.
(C62, § 32-45.01; O.8819; C75, C79, C91, § 17-37.01; O.13,608, 14,903)

Sec. 70-88. Restrictions on use of bows and arrows.

No person shall shoot a bow and arrow within the city limits except as follows:

(1) Any person may participate in a supervised program of physical education or competitive sports in a public or private school.

(2) Any person may shoot a bow and arrow at a public or private lane or range that has been certified by the Archery Range and Retailers Organization or the National Field Archery Association.

(3) Any participant may shoot a bow and arrow in a tournament which either has been approved by the city manager or his or her designee at least one week prior to the time of the tournament and for which tournament rules have been submitted to the city manager or his or her designee or which is conducted at a licensed lane or range.

(4) Any person may shoot a bow and arrow on private or school property, provided the requirements of section 70-89 of this article are met.

(5) A properly licensed qualified person may shoot a bow and arrow for hunting as provided in section 70-84 of this article.
(C62, § 32-45.02; O.8819; C75, C79, C91, § 17-37.02; O.13,608, 14,903)

Sec. 70-89. Use of bows and arrows on private or school property.

No person shall shoot a bow and arrow in such fashion that it travels beyond the boundaries of the private or school property on which the person is shooting. Except as provided in section 70-84 of this article, any person shooting a bow and arrow on private or school property shall direct the arrow toward a backdrop composed of a substance which will not allow the arrow to pass through, and such backdrop must extend at least five feet beyond the target on the top and both sides and must extend from the bottom of the target to the

ground. The target shall be constructed and installed so that the target face cannot move more than two inches in any direction.
(C62, § 32-45.03; O.8819; C75, C79, C91, § 17-37.03; O.13,608, 14,903)

Sec. 70-90. Use of bows and arrows for hunts.

No person shall shoot a bow and arrow within the city limits at any living being such as an animal, bird, fish, or fowl, except as provided in section 70-84 of this article.
(C62, § 32-45.04; O.8819; C75, C79, C91, § 17-37.04; O.13,608, 14,903)

Sec. 70-91. Use of bows and arrows by minors.

No person shall furnish to any minor under 15 years of age, by gift, sale, or otherwise, any arrows or components thereof unless such minor is participating in a supervised school program or is practicing at an approved public or private archery lane or range or is practicing on the private property of the supervising adult.
(C62, § 32-45.05; O.8819; C75, C79, C91, § 17-37.05)

Secs. 70-92—70-120. Reserved.

ARTICLE IV. OFFENSES AGAINST PUBLIC HEALTH*

Sec. 70-121. Selling poisons.

Except as otherwise provided, it shall be unlawful to vend, sell, dispense, or give away any poison enumerated in I.C. § 205.5 or sodium chlorate or crude carbolic acid or any other potent poisons, without affixing to the bottle, box, vessel, or package containing the poison a label containing the name of the poison, either printed or plainly written; the word "poison" printed in red ink; and the name and place of business of the distributor, manufacturer, wholesaler or dealer. Every package or container which contains ammonia water; concentrated lye; denatured alcohol; formaldehyde; benzol; carbon tetrachloride; or commercial hydrochloric, nitric, sulfuric or oxalic acids shall be labeled with the name of the poison, which label shall bear the name and place of business of the distributor, manufacturer, wholesaler, or dealer and the most available antidote and the word "poison" printed in red ink in a conspicuous place thereon.
(C42, § 108-7; C54, C62, § 32-33; C75, C79, C91, § 17-38)

State law reference—Similar provisions, I.C. § 207.5.

Sec. 70-122. Lead poisoning.

(a) No person shall use any battery casing, lead-containing box, case or other lead-containing device as fuel for cooking or heating.

(b) No person shall sell or give to any person or allow any person to remove from his or her premises any battery casing, lead-containing box, case or other lead-containing device when the seller or giver has or should have reason to believe that such material will be used as fuel for cooking or heating.
(C62, § 32-33.01; O.8258; C75, C79, C91, § 17-39)

Sec. 70-123. Public consumption of alcohol.

A person shall not use or consume alcoholic liquor, wine or beer upon the public streets, sidewalks or highways, except this prohibition shall not apply to the consumption of wine or beer on a sidewalk along a bona fide parade route while a parade is in progress or along any street, sidewalk or highway which has been temporarily closed by action of the city council during the period of temporary closure.
(C42, § 106-10; C54, C62, § 32-27; O.7316, 8895; C75, C79, C85, § 17-40; O.11,128; C91, § 17-40)

Cross reference—Alcoholic beverages, ch. 10.

Sec. 70-124. Glue sniffing.

(a) As used in this section, the term "model glue" means any glue or cement commonly used in the building of model airplanes, boats and

*__Cross reference—__Health and sanitation, ch. 54.

automobiles and containing toluene, acetone or other solvent or chemical having the property of releasing toxic vapors.

(b) No person shall, for the purpose of causing a condition of intoxication, euphoria, excitement, exhilaration, stupefaction, or dulling of the senses or nervous system, intentionally smell or inhale the fumes from any model glue.

(c) This section shall not apply to the inhalation of any anesthesia for medical or dental purposes.

(d) No person shall intentionally possess any type of model glue for the purpose of using the glue in the manner prohibited by this section.
(C62, § 32-27.03; O.7720; C75, C79, C91, § 17-43)

Sec. 70-125. Smoking prohibited.

(a) *Prohibition.* A person shall not smoke in a parking garage or ramp owned by the City of Des Moines except in designated smoking areas clearly marked by signs.

(b) *Smoking defined.* For purposes of this section "smoke" or "smoking" means to carry or exercise control over a lighted cigar, cigarette, pipe, or other lighted smoking equipment.
(O.14,632)

Editor's note—Section 2 of Ord. No. 14,632, adopted Feb. 26, 2007, states that this section shall be in full force and effect on May 1, 2007.

Secs. 70-126—70-150. Reserved.

ARTICLE V. OFFENSES AGAINST PUBLIC MORALS

DIVISION 1. GENERALLY

Secs. 70-151—70-175. Reserved.

DIVISION 2. VICE AND NARCOTICS

Sec. 70-176. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Pandering means a person who persuades or arranges for another to become an inmate of a brothel or to become a prostitute, such person not having previously engaged in prostitution, or to return to the practice of prostitution after having abandoned it, or who keeps or maintains a brothel or who knowingly takes a share in the income from a brothel.

Pimping means a person who solicits a patron for a prostitute or who knowingly takes or shares in the earnings of a prostitute or who knowingly furnishes a room or other place to be used for the purpose of prostitution, whether for compensation or not.

Prostitution means a person who sells or offers for sale such person's services as a partner in a sex act or who purchases or offers to purchase such services.

Public property means, in addition to its usual meaning, any street, highway, avenue, alley, sidewalk, skywalk bridge, public place, other real property owned or controlled by the city, or the doorway or other opening of any building adjacent to such place.

Sex act means any sexual contact between two or more persons, by penetration of the penis into the vagina or anus, by contact between the mouth and genitalia or by contact between the genitalia of one person and the genitalia or anus of another person or by use of artificial sexual organs or substitutes therefor in contact with the genitalia or anus.
(C42, § 106-11; C54, C62, § 32-38; C75, § 17-44; O.9590; C79, C85, § 17-44; O.10,834; 10,945; C91, § 17-44)

Cross reference—Definitions generally, § 1-2.

Sec. 70-177. Prostitution, pimping or pandering prohibited.

No person shall engage in prostitution, pimping or pandering as defined in section 70-176 of this division and I.C. ch. 725.
(C42, § 106-11; C54, C62, § 32-38; C75, § 17-44; O.9590; C75, C79, C85, § 17-45; O.10,834, 11,567; C91, § 17-45)

State law reference—Similar provisions, I.C. § 725.1.

Sec. 70-178. Leasing premises for prostitution.

It shall be unlawful for a person to rent or let any building, structure or part thereof or any boat, trailer or other place offering shelter or seclusion knowing or having reason to know that the lessee or tenant is using such for the purposes of prostitution and to not, immediately upon acquiring such knowledge, terminate the tenancy or effectively put an end to such practice of prostitution in such place.
(C42, § 106-11; C54, C62, § 32-38; C75, § 17-44; O.9590; C75, C79, § 17-45; C85, § 17-45.01; O.10,834; C91, § 17-45.01)
State law reference—Similar provisions, I.C. § 725.4.

Sec. 70-179. Transportation for purpose of prostitution.

No person shall knowingly transport, offer to transport or knowingly aid or assist in transporting any person in, on, over or through public property by means of a motor vehicle for the purpose of prostitution.
(C85, § 45.02; O.10,834; C91, § 17-45.02; O.14,101)
Cross reference—Traffic and vehicles, ch. 114.

Sec. 70-180. Use of public property for purpose of prostitution.

(a) No person shall behave in or upon any public property in a manner in and under circumstances by which such person manifests the purpose of inducing, inviting, enticing, persuading, soliciting or procuring another to commit an act of prostitution.

(b) The violator's conduct must be such as to demonstrate a specific intent to induce, invite, entice, persuade, solicit or procure another to commit an act of prostitution.

(c) Intent to induce, invite, entice, persuade, solicit or procure another to commit an act of prostitution shall be shown by specific acts which may, but need not, include any of the following:

(1) Repeatedly beckoning to, stopping or attempting to stop or engage passersby in conversation;

(2) Repeatedly stopping or attempting to stop motor vehicle operators by hailing, waving of arms, or any other bodily gesture; or

(3) Repeatedly interfering with the free passage of other persons.

(C85, § 17-45.03; O.10,834, 10,945; C91, § 17-45.03)

Sec. 70-181. Public exposure.

(a) Except as provided in this section, no person shall expose the following parts of such person's body to another in any public place or in any place where such exposure is seen by another person located in any public place:

(1) A woman's nipple, the areola thereof, or full breast, except as necessary in the breast feeding of a baby.

(2) The pubic hair, pubes, perineum, or anus of a male or female; the penis or scrotum of a male; or the vagina of a female, excepting such body parts of prepubescent infants of either sex.

(b) This section shall not apply to limited or minimal exposures incident to the use of public restrooms or locker rooms or such other places where such exposures occur incident to the prescribed use of those facilities.

(c) This section shall not apply to exposures occurring in live stage plays, live theatrical performances, or live dance performances conducted in a theater, concert hall or similar establishment which is primarily devoted to theatrical performances.
(C42, § 106-13; C54, C62, § 32-20; Repealed by O.8906; Reenacted by O.8941; C75, § 17-46; O.8976; C79, C91, § 17-46)
State law reference—Similar provisions, I.C. § 709.9.

Sec. 70-182. Public defecation and urination.

It shall be unlawful for any person to urinate or defecate in or upon any street, alley, sidewalk, skywalk bridge, skywalk corridor or other place

open to public view, provided that this section shall not apply to private restrooms or public facilities designated for such purpose.
(C85, § 17-46.01; O.11,170; C91, § 17-46.01)

Sec. 70-183. Use of public property for drug trafficking.

(a) No person shall behave in or upon any public property in a manner in and under circumstances by which he or she manifests the purpose of inducing, inviting, enticing, persuading, soliciting or procuring another to conduct an illegal drug transaction.

(b) The violator's conduct must be such as to demonstrate a specific intent to induce, invite, entice, persuade, solicit or procure another to conduct an illegal drug transaction.

(c) Intent to induce, invite, entice, persuade, solicit or procure another to conduct an illegal drug transaction shall be shown by specific acts which may, but need not, include any of the following:

(1) Repeatedly beckoning to, stopping or attempting to stop or engage passersby in conversation;

(2) Repeatedly stopping or attempting to stop motor vehicle operators by hailing, waving of arms, or any other bodily gesture; or

(3) Repeatedly interfering with the free passage of other persons.

(C91, § 17-47; O.11,656)

Sec. 70-184. Drug paraphernalia.

(a) The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Controlled substance has the same meaning as contained in the Uniform Controlled Substances Act, I.C. ch. 124.

Drug paraphernalia.

(1) The term "drug paraphernalia" means all equipment, products and materials of any kind which are used, intended for use or designed for use in planting, propagating, cultivating, growing, harvesting, manufacturing, compounding, converting, producing, processing, preparing, testing, analyzing, packaging, repackaging, storing, concealing, containing, injecting, ingesting, inhaling, or otherwise introducing into the human body a controlled substance in violation of I.C. ch. 124, commonly known as the Uniform Controlled Substances Act. It includes but is not limited to the following:

a. Kits used, intended for use or designed for use in planting, propagating, cultivating, growing or harvesting of any species of plant which is a controlled substance or from which a controlled substance can be derived.

b. Kits used, intended for use or designed for use in manufacturing, compounding, converting, producing, processing, or preparing controlled substances.

c. Isomerization devices used, intended for use or designed for use in increasing the potency of any species of plant which is a controlled substance.

d. Testing equipment used, intended for use or designed for use in identifying or in analyzing the strength, effectiveness or purity of controlled substances, except for such equipment of a peace officer or any person acting as an agent of or under the direction of any police agency.

e. Scales and balances used, intended for use or designed for use in weighing or measuring controlled substances.

f. Diluents and adulterants, such as quinine, hydrochloride, mannitol, mannite, dextrose or lactose, used, intended for use or designed for use in cutting controlled substances.

g. Separation gins and sifters used, intended for use or designed for use in

removing twigs and seeds from or in otherwise cleaning and refining marijuana.

h. Blenders, bowls, containers, spoons, and mixing devices used, intended for use or designed for use in compounding controlled substances.

i. Capsules, balloons, envelopes and other containers used, intended for use or designed for use in packaging small quantities of controlled substances.

j. Containers and other objects used, intended for use or designed for use in storing or concealing controlled substances.

k. Hypodermic syringes, needles and other objects used, intended for use or designed for use in primarily injecting controlled substances into the human body.

l. Objects used, intended for use or designed for use in ingesting, inhaling, or otherwise introducing heroin, marijuana, cocaine, methamphetamine, hashish or hashish oil into the human body, such as:

1. Metal, wooden, acrylic, glass, stone, plastic or ceramic pipes with or without screens, permanent screens, hashish beads or punctured metal bowls.
2. Water pipes, chamber pipes, carburetor pipes, electric pipes, air-driven pipes, bongs, ice pipes or chillers.
3. Carburetor tubes and devices.
4. Smoking and carburetion masks.
5. Roach clips, meaning objects used to hold burning materials, such as a marijuana cigarette that has become too small or too short to be held in the hand.
6. Miniature cocaine spoons and cocaine vials.

(2) In determining whether an object is drug paraphernalia for the purpose of enforcing this section, the following factors should be considered in addition to all other logically relevant factors:

a. Statements by an owner or by anyone in control of the object concerning its use.

b. Prior convictions, if any, of an owner or anyone in control of the object under any state or federal law relating to any controlled substances.

c. The proximity of the objects in time and space to a direct violation of the Uniform Controlled Substances Act, I.C. ch. 124.

d. The proximity of the object to controlled substances.

e. The existence of any residue of a controlled substance on the object.

f. Direct or circumstantial evidence of the intent of any owner or of anyone in control of the object to deliver it to persons whom he or she knows or should reasonably know intend to use the object to facilitate a violation of the Uniform Controlled Substances Act, I.C. ch. 124. The innocence of an owner or of anyone in control of the object as to a direct violation of the Uniform Controlled Substances Act, I.C. ch. 124, should not prevent a finding that the object is intended for use or designed for use as drug paraphernalia.

g. Instruction, oral or written, provided with the object concerning its use.

h. Descriptive materials accompanying the object which explain or depicts its use.

i. The manner in which the object is displayed for sale.

j. Whether the owner or anyone in control of the object is a legitimate supplier of like or related items to

the community, such as a licensed distributor or dealer of tobacco products.

k. Direct or circumstantial evidence of the ratio of sales of the object to the total sales of the business enterprise.

l. The existence and scope of legitimate uses for the objects in the community.

m. Expert testimony concerning its use.

(b) No person shall use or shall possess with intent to use drug paraphernalia to plant, propagate, cultivate, grow, harvest, manufacture, compound, convert, produce, process, prepare, test, analyze, pack, repack, store, contain, conceal, inject, ingest, inhale or otherwise introduce into the human body a controlled substance in violation of the Uniform Controlled Substances Act, I.C. ch. 124.

(c) No person shall deliver, possess with intent to deliver, or manufacture with intent to deliver drug paraphernalia, intending that the drug paraphernalia will be used or knowing or under circumstances where one should reasonably know that it will be used or knowing that it is designed for use to plant, propagate, cultivate, grow, harvest, manufacture, compound, convert, produce, prepare, test, analyze, pack, repack, store, contain, conceal, inject, ingest, inhale, or otherwise introduce into the human body a controlled substance in violation of the Uniform Controlled Substances Act, I.C. ch. 124.
(C91, §§ 17-47.01—17-47.03; O.13,181)

Cross reference—Definitions generally, § 1-2.

Secs. 70-185—70-210. Reserved.

DIVISION 3. SPECIFIED CRIME PROPERTY

Sec. 70-211. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Bootlegging means the illegal sale or service of alcoholic liquor, wine, or beer in violation of chapter 10 of this Code or I.C. ch. 123.

Chief of police means the person who has the responsibility to supervise and direct the police department, as defined by section 86-27 of this Code, and for purposes of this division may include his or her designee.

Controlled substance means a drug, substance or immediate precursor as defined by I.C. ch. 204.

Gambling means games of skill or chance as defined by I.C. ch. 99B and prohibited by I.C. ch. 725.

Owner means any person, agent, firm, corporation, association, or a partnership, including a mortgagee in possession, in whom is vested all or part of the legal title to property or all or part of the beneficial ownership and the right to present use and enjoyment of the premises.

Person means any natural person, association, partnership, corporation, or other legal entity capable of owning or using property.

Prostitution, pimping, and pandering means those acts or activities as defined by section 70-176 of this chapter or by I.C. ch. 725.

Specified crime property means any structure, including the real property upon which it is situated, in which activity involving the unauthorized delivery, possession or manufacture of a controlled substance, illegal gambling, bootlegging, prostitution, pimping or pandering, disorderly house under section 70-35 of this chapter, or any criminal activity involving a weapon such as but not limited to discharging, carrying concealed, or assault with a weapon is occurring or has occurred, except when a resident, owner, tenant, or landlord sought law enforcement assistance or other emergency assistance for the victim of abuse, a victim of a crime, or an individual in an emergency, if it is established that either: (1) the resident, owner, tenant or landlord seeking assistance had a reasonable belief that the emergency assistance was necessary to prevent the perpetration or escalation of the abuse, crime, or emergency, or (2) in the event of abuse, crime, or other emergency, the emergency assistance was actually needed.

Structure means any building, building complex or structure, including but not limited to edifice, units, or any portion thereof, and the real property upon which such building, building complex or structure is situated.
(C91, § 17-85; O.11,804, 13,308, 13,663, 14,678, 15,502)

Cross reference—Definitions generally, § 1-2.

Sec. 70-212. Prohibited.

No person shall use or allow to be used any structure as specified crime property. When the structure and the property upon which it is situated are owned by different persons, each person shall not use or allow to be used such structure and property as specified crime property.
(C91, § 17-86; O.11,804, 13,308)

Sec. 70-213. Penalties.

Any person who violates the provisions of section 70-212 or section 70-220 of this division shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.
(C91, § 17-87; O.11,804, 13,648, 14,678, 15,502)

Sec. 70-214. Procedure for enforcement.

(a) When the chief of police has a reasonable belief that a structure is being used or maintained as a specified crime property, the chief of police shall notify the owner of record in writing that the structure has been declared to be a specified crime property.

(b) A reasonable belief that a structure is being used as specified crime property may be found from but is not limited to evidence of drug paraphernalia in or around the structure; an increase in vehicular or pedestrian traffic in or around the structure; observations of the exchange of money; verified citizen complaints of bootlegging; unauthorized delivery or manufacture of a controlled substance; illegal gambling, bootlegging, prostitution, pimping or pandering; police case investigation reports indicating activity of disorderly house or crimes involving weapons; and any other activity which leads a police officer to reasonably believe violations of this division exist.
(C91, § 17-88; O.11,804, 14,678)

Sec. 70-215. Notice.

The notice required in section 70-214 of this division shall notify the owner of record in writing that a structure owned by him or her has been declared to be a specified crime property, and such notice shall contain the following information:

(1) The street address and a description sufficient for identification of the premises on which the structure is located; and

(2) A statement that the chief of police has found the structure to be in violation of this division, with an explanation as to why the structure has been declared a specified crime property.

(C91, § 17-89; O.11,804)

Sec. 70-216. Service of notice.

(a) A copy of the notice given pursuant to this division shall be served on the owner or an agent at least 20 days prior to the commencement of any judicial action by the city. Service shall be made either personally or by mailing a copy of the notice by registered or certified mail, postage prepaid, return receipt requested, to each person at his or her address as it appears in the records of the county auditor. In the event that notice is impossible to be served as set out above, a copy of the notice may be posted at the property if ten days have elapsed from the service or mailing of the notice to the owner and no response or reply has been received by the city from the owner during that period of time.

(b) The failure of any owner to receive actual notice of the determination of the chief of police shall not preclude future proceedings under this division.
(C91, § 17-90; O.11,804, 13,663)

Sec. 70-217. Administrative appeal.

(a) Upon receipt of a notice of specified crime property as set out in sections 70-215 and 70-216 of this division, the owner of record may chal-

lenge such notice by filing a request for an administrative hearing. Such request shall be in writing and filed with the city clerk or his or her designee within ten days of the service of the notice of specified crime property. A copy of this division shall be available at the city clerk's office upon request.

(b) Failure to request a hearing within such time period or to attend a scheduled hearing shall be deemed a waiver of the right to such a hearing.

(c) Upon filing of a request for an administrative hearing, further judicial action pursuant to this division shall be stayed pending the outcome of the administrative hearing.
(C91, § 17-91; O.11,804, 13,663)

Sec. 70-218. Conduct of hearing.

(a) The hearing held pursuant to this division shall be conducted before a hearing officer designated by the city manager within a reasonable period of time, but not to exceed 15 business days, excluding Saturdays, Sundays and city holidays, from the date of a written demand therefor. Such hearing may be continued for good cause. A notice of hearing, including the time, date and location of the hearing, shall be made by mailing a copy of the notice by first class mail, postage prepaid to the owner of record.

(b) The sole issue before the hearing officer shall be whether there exists a reasonable belief that the structure was being used as specified crime property as described in the declaration of specified crime property made pursuant to section 70-214. The hearing officer shall decide only that either (i) there is a reasonable belief that the structure was used as specified crime property and that the provisions of this division shall apply, or (ii) there is not a sufficient reasonable belief that the structure was being used as specified crime property and that the procedures of this division as to the notice being appealed shall be permanently stayed. A finding of no reasonable belief however shall not preclude a future independent complaint, investigation and notice of specified crime property.

(c) The decision of the hearing officer shall be issued within four days of the hearing and the owner of record shall be notified consistent with the notice provisions of this division.

(d) The decision of the hearing officer shall be final.
(C91, § 17-92; O.11,804, 13,663, 14,678)

Sec. 70-219. Effect of notice.

(a) Subsequent to the declaration and notice that there exists a specified crime property, an owner shall have the opportunity to abate the illegal activity within ten days. If a landlord/tenant relationship exists, the owner/landlord may be deemed to have abated the activity upon demonstration that he or she has taken legal action under I.C. § 562A.27A or any other applicable statute to terminate the rental agreement, or if immediate termination of the rental agreement is not permitted by law, has delivered a written notice to cure to the tenant or tenants under I.C. § 562A.27 or any other applicable statute, and continues in good faith to follow abatement procedures and provides the chief of police with copies of all notices served in accordance with I.C. ch. 562A.

(b) If after 20 days the chief of police determines that a specified crime property has not been abated, a notice of fine and an order of abatement shall be filed in compliance with I.C. § 364.22.
(C91, § 17-93; O.11,804, 14,678)

Sec. 70-220. Right to summon emergency assistance—Landlord prohibitions.

(a) A landlord shall not prohibit or limit a resident's or tenant's rights to summon law enforcement assistance or other emergency assistance by or on behalf of a victim of abuse, a victim of a crime, or an individual in an emergency.

(b) A landlord shall not impose monetary or other penalties on a resident or tenant who exercises the resident's or tenant's right to summon law enforcement assistance or other emergency assistance.

(c) Penalties prohibited by this subsection include all of the following:

(1) The actual or threatened assessment of penalties, fines, or fees.

(2) The actual or threatened eviction, or causing the actual or threatened eviction, from the premises.

(d) This subsection shall not be construed to prohibit a landlord from recovering from a resident or tenant an amount equal to the costs incurred to repair property damage if the damage is caused by law enforcement or other emergency personnel summoned by the resident or tenant.

(e) This section does not prohibit a landlord from terminating, evicting, or refusing to renew a tenancy or rental agreement when such action is premised upon grounds other than the resident's or tenant's exercise of the right to summon law enforcement assistance or other emergency assistance by or on behalf of a victim of abuse, a victim of a crime, or an individual in an emergency.

(f) For purposes of this section, *"resident"* means a member of a tenant's family and any other person occupying the dwelling unit with the consent of the tenant.
(O.15,502)

Secs. 70-221—70-245. Reserved.

ARTICLE VI. OFFENSES AGAINST PROPERTY

DIVISION 1. GENERALLY

Sec. 70-246. Criminal mischief.

A person commits criminal mischief who does either of the following:

(1) Intentionally disinters human remains from a burial site without lawful authority.

(2) Intentionally disinters human remains that have state and national significance from a historical or scientific standpoint for the inspiration and benefit of the United States without the permission of the state archaeologist.

(C42, § 109-1; C54, C62, § 32-23; O.7791; C75, C79, C91, § 17-55)

State law reference—Similar provisions, I.C. §§ 716.5, 716.6.

Sec. 70-247. Damaging awnings, lamps, gas or water lines, railings or fences.

No person shall cut or in other manner intentionally damage any awning, lamppost, lamp, gas or water line, railing, fence or other property not owned by such person.
(C42, § 109-1; C54, C62, § 32-24; C75, C79, C91, § 17-56)

State law reference—Similar provisions, I.C. §§ 716.5, 716.6.

Sec. 70-248. Grade stakes.

No person shall remove, break or in any way injure any grade stake, stone or other mark or monument set by or under the authority of the city engineer or any of his or her assistants to designate grades, corners, lines or benchmarks, or in any manner erase or deface any letters or figures thereon.
(C42, § 109-2; C54, C62, § 32-25; C75, C79, C91, § 17-57)

Sec. 70-249. Interference with tools, instruments, animals used by city.

No person negligently or willfully shall interfere with, injure, deface or remove any implement, tool, receptacle, utensil or animal while being used by the city or by any of its agents or employees in the service of the city.
(C42, § 112-6; C54, C62, § 32-26; C75, C79, C91, § 17-58)

State law reference—Similar provisions, I.C. §§ 714.2(3)—(5), 716.5, 716.6.

Sec. 70-250. Occupying building unlawfully.

No person shall move into any room, house or building without authority or permission from the owner or his or her authorized agent.
(C42, § 109-4; C54, C62, § 32-32; C75, C79, C91, § 17-59)

Secs. 70-251—70-274. Reserved.

DIVISION 2. GRAFFITI

Sec. 70-275. Purpose and intent.

The purpose of this division is to prevent the spread of graffiti and to require and provide for its removal from city and other public and private property. The presence of graffiti on both city and other public and private buildings, structures, or places causes blight within the city, which leads to a deterioration of property values for surrounding properties and neighborhoods, to the detriment of the city. The city council finds and determines that graffiti is a public nuisance which must be abated to avoid the detrimental impact on the city.
(O.15,648)

Sec. 70-276. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Graffiti means any marking, inscription, drawing, picture, letter, number, symbol or other defacement or other written communication, etched, scratched, or made with spray paint, paint, ink, chalk, dye, or similar substance, or in any manner, on any public or private property, including, but not limited to, streets, sidewalks, buildings, walls, bridges, fences, or other structures which was made without the consent and under the direction of the owner of such property

Minor means a person under 18 years of age.

Spray paint means any liquified or semi-liquified substance that when released under pressure will produce a colored substance where sprayed without the use of any other implement or mechanism.
(C85, § 17-70; O.11,105; C91, § 17-80, 15,648)

Cross reference—Definitions generally, § 1-2.

Sec. 70-277. Graffiti prohibited.

No person shall by use of any substance whatsoever, inclusive of spray paint, mark, create, make or inscribe graffiti upon any public or private property, including but not limited to streets, sidewalks, buildings, walls, bridges, fences or other structures, sidewalk or other property privately held without the consent and under the direction of the owner
(C85, § 17-81; O.11,562; C91, § 17-81; O.13,083, 15,648)

Sec. 70-278. Penalty.

Any person who violates section 70-277 shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.
(C85, § 16-82; O.11,562; C91, § 17-82; O.15,648)

Sec. 70-279. Reserved.

Editor's note—Ord. No. 15,648, § 1, adopted March 8, 2018, repealed § 70-279, which pertained to license fee and issuance of license and derived from Code 1985, § 16-83; Ord. No. 11,562; Code 1991, § 17-83; Ord. No. 14,185.

Sec. 70-280. Reserved.

Editor's note—Ord. No. 15,648, § 1, adopted March 8, 2018, repealed § 70-280, which pertained to issuance of license and derived from Ord. No. 14,185.

Secs. 70-281—70-299. Reserved.

ARTICLE VII. SALE OF PRODUCTS CONTAINING PSEUDOEPHEDRINE IN COMBINATION WITH OTHER ACTIVE INGREDIENTS

Sec. 70-300. Purpose.

The illegal manufacture of methamphetamine continues to rise in Polk County and in Central Iowa exposing children and other innocent victims to the caustic manufacturing process and causing those children and other victims incalculable harm. The manufacture and use of methamphetamine continues to cause an increase in crime and a strain on the resources of Polk County. It is therefore in the public interest to place reasonable conditions on the sale of products

necessary to manufacture methamphetamine, products containing pseudoephedrine in combination with other active ingredients.
(O.14,414)

Sec. 70-301. Definitions.

[The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

Seller means any person and/or business selling, transferring or otherwise passing for consideration to the general public any product containing a detectable amount of pseudoephedrine in combination with other active ingredients.
(O.14,414)

Sec. 70-302. Storage and display of products containing pseudoephedrine in combination with other active ingredients.

All sellers shall display any product containing a detectable amount of pseudoephedrine in combination with other active ingredients behind a store counter, in an area not accessible to customers, or shall display those products in a locked case so that customers wanting access to the product must receive seller assistance.
(O.14,414)

Sec. 70-303. Identification of purchaser required.

All sellers shall require any person seeking to purchase products containing a detectable amount of pseudoephedrine in combination with other active ingredients to produce photo identification and to provide name, address and telephone number. Such information shall be kept by the seller for a period of one year in a log that shall be accessible to any law enforcement officer upon request.
(O.14,414)

Sec. 70-304. Limitations on quantity available for purchase.

A maximum of two pre-packaged units, not to exceed 192 pills, tablets, capsules or other form of individual dosage units or 20 fluid ounces, may be purchased during a calendar day per customer.
(O.14,414)

Sec. 70-305. Violations.

Any seller violating this article shall be guilty of a simple misdemeanor punishable by a fine of up to $500.00 or 30 days in jail per occurrence.
(O.14,414)

Sec. 70-306. Effective date.

This article shall become effective 60 days after publication as required by law.
(O.14,414)

ARTICLE VIII. RESERVED*

Secs. 70-307—70-311. Reserved.

*__Editor's note—__Ord. No. 14,877, adopted August 10, 2009, repealed Art. VIII, §§ 70-307—70-311, which pertained to residency restrictions for sex offenders.

Chapters 71—73

RESERVED

Chapter 74

PARKS AND RECREATION*

Article I. In General

Secs. 74-1—74-25. Reserved.

Article II. Parks and Recreation Board

Sec. 74-26. Duties generally.
Sec. 74-27. Advisory committees.
Sec. 74-28. Appointment, composition and terms.
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Article III. Parks and Recreation Department

Sec. 74-56. Supervision by director.
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Sec. 74-110. Multi-use recreational trails.
Sec. 74-111. Smoking prohibited.
Sec. 74-112. Sledding, ice skating, cross-country skiing and snowshoeing at parks and golf courses.
Secs. 74-113—74-174. Reserved.

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*__Editor's note—__Ord. No. 15,788, § 1, adopted August 5, 2019, repealed the former Ch. 74, §§ 74-26—74-29, 74-56—74-64, 74-91—74-117, 74-141—74-149, 74-175—74-187, 74-201, 74-202, 74-210, and enacted a new Ch. 74 as set out herein. The former Ch. 74 pertained to similar subject matter and derived from Code 1942; Code 1954; Code 1962; Code 1975; Code 1979; Code 1991, as amended. See the Code Comparative Table for complete derivation.

__Cross references—__Environment, ch. 42; streets, sidewalks, skywalks and other public places, ch. 102; traffic regulations for municipally owned parks, § 114-1101 et seq.; vegetation, ch. 122; waterways, ch. 130.

Article V. Fees

Sec. 74-175. Outdoor sport courts.
Sec. 74-176. Ball diamonds and soccer fields.
Sec. 74-177. Bike and related equipment rental.
Sec. 74-178. Temporary concession.
Sec. 74-179. Park between Tenth and Fifteenth Streets and Grand Avenue and Locust Street a/k/a "Western Gateway Park"—Rentals.
Sec. 74-180. Community recreation center building admissions and rentals.
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Sec. 74-183. Aquatic centers, swimming pools and marina.
Sec. 74-184. Brenton Skating Plaza.
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Sec. 74-186. Principal Riverwalk.
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Sec. 74-188. Miscellaneous.
Sec. 74-189. Set program fees and authority to make temporary fee adjustments.
Sec. 74-190. Penalty and enforcement.
Secs. 74-191—74-209. Reserved.

Article VI. Mobile Food Vendors in Designated Parks

Sec. 74-210. Mobile food vendors and transient merchants.

ARTICLE I. IN GENERAL

Secs. 74-1—74-25. Reserved.

ARTICLE II. PARKS AND RECREATION BOARD*

Sec. 74-26. Duties generally.

(a) The city parks and recreation board shall:

(1) Advise on the planning, coordination and execution of the city's parks and recreation programs and facilities by the parks and recreation director and his or her staff.

(2) Advise and make appropriate recommendations to the city council on subsection (a)(1) of this section.

(3) Approve and advise on the necessary rules and regulations for the equipping, maintenance, conduct, supervision and control of the city parks, community recreation centers and recreational facilities.

(4) Advise the city's parks and recreation director in the preparation of the annual budget.

(b) All such rules and regulations adopted by the city parks and recreation board in the performance of the duties in subsection (a) of this section shall be reported to the city council and shall be effective when approved by the city council.
(O.15,788)

Sec. 74-27. Advisory committees.

The parks and recreation board may create and appoint members to committees to perform certain duties and advise the board on various parks and recreation issues. Members of such committees may include residents and nonresidents of the city.
(O.15,788, 16,529)

*__Cross reference—__Boards, commissions, committees and agencies, § 2-1046 et seq.

Sec. 74-28. Appointment, composition and terms.

(a) The parks and recreation board shall consist of 15 members. Each city councilmember may recommend candidates for appointment to two positions on the board. The Des Moines Independent Community School District board of education may recommend one of its members for appointment to the board, subject to approval by the city council.

(b) Each member of the board shall be appointed for a term of four years, with no more than four members' terms expiring each year.

(c) The parks and recreation board is the successor to the city parks board.
(O.15,788, 16,085)

Sec. 74-29. Liaison with board of education.

The parks and recreation department shall cooperate where possible with the Des Moines Independent Community School District board of education in providing for the joint operation and maintenance of all school grounds and school structures under the jurisdiction of the board of education when jointly used as city parks, playgrounds and community recreation centers.
(O.15,788, 16,085)

Secs. 74-30—74-55. Reserved.

ARTICLE III. PARKS AND RECREATION DEPARTMENT†

Sec. 74-56. Supervision by director.

The parks and recreation director shall supervise the parks and recreation department.
(O.15,788)

Sec. 74-57. Appointment of director.

The city manager shall appoint the parks and recreation director.
(O.15,788)

†__Cross reference—__Departments, § 2-536 et seq.

Sec. 74-58. Duties of director generally.

The parks and recreation director shall be responsible in the parks and recreation department for the following:

(1) The maintenance and repair of city parks, including park properties, structures and specialized facilities, golf courses, recreational trails, leased and assigned areas, sports courts, aquatic facilities, boat ramps and marinas, riverfronts, and stadia.

(2) The management, care, and maintenance of city cemeteries.

(3) The management of recreation activities sponsored and/or conducted under the aegis of the department, to include but not be limited to year-round activities and centers, sports, athletics, arts; programs for seniors and persons with disabilities; and informational services to the general public.

(4) The management of staff and material support necessary to operate the department. This shall include landscape and horticultural services, the city greenhouse, clerical support, professional staff services, and material supplies.

(5) Liaison with the parks and recreation board in the preparation of budgets; the expenditure of funds; the coordination, planning and execution of the department's programs, activities, facilities, and ordinances; provide the necessary support services to the board for the conduct of its monthly meetings and year-round administrative requirements.

(6) Other duties and functions as may be assigned by this Code and other city ordinances or by the city manager.

(O.15,788, 16,085)

Secs. 74-59—74-90. Reserved.

ARTICLE IV. FACILITIES

Sec. 74-91. Public meetings and organized uses and permits issued by the parks and recreation director.

Public meetings—religious, political or otherwise—including picnic parties and entertainment for charitable or religious purposes, may be held in any city park upon first obtaining permission from the parks and recreation director or his or her designee. Such assemblages shall be conducted in a lawful and orderly manner, shall be under the supervision of the parks and recreation department supervising staff and shall occupy such ground as may be reserved for them. Permits shall be obtained from the parks and recreation director for use of parks and facilities by organized groups and individuals for all such purposes, including athletic and sporting activities.

(O.15,788, 16,529)

Sec. 74-92. Consumption of alcohol; intoxication.

(a) It is unlawful for any person to use, possess or consume beer, wine or alcoholic liquor on or in any city parks, trails, land and facilities managed by the parks and recreation department including all park roads and parking areas in parks, except in accordance with all federal, state and local laws and by issuance of a permit or pursuant to a concession agreement and either:

(1) Approval of the parks and recreation board; or

(2) Such use, possession or consumption is within an enclosed park shelter; or

(3) Such use, possession or consumption is within the Clare and Miles Mills Rose Garden, Sylvan Theater, Lilac Arboretum, Simon Estes Amphitheater or the Gray's Lake Park Christine Hensley Terrace and Terrace building and designated outdoor areas; or

(4) Such use, possession or consumption is within specified areas of the Principal

Riverwalk including Long Look Garden, Brenton Skating Plaza and plaza adjacent to World Food Prize building; or

(5) Such use, possession or consumption is allowed within the fields and stands at Carney Softball Park, James W. Cownie Soccer Park and Baseball Park, Savage Softball Fields at Easttown Park, and George Davis Softball Park when said park facilities are in use for adult events unless other fields at said park facilities are in use for youth events; or

(6) Such use, possession or consumption is within the park between Tenth and Fifteenth Streets and Grand Avenue and Locust Street a/k/a "Western Gateway Park"; or

(7) Within Riverview Park or in conjunction with the Prairie Meadows Riviera Amphitheater at Riverview Park.

(b) The permit must be obtained from the parks and recreation director or his or her designee.

(c) Use, possession or consumption of beer or wine is allowed pursuant to a concession agreement covering:

(1) Birdland Marina service building and designated outdoor areas.

(d) In addition to the above requirements, a state liquor control license and approval of the parks and recreation board is required in order to use, possess or consume keg beer or alcoholic liquor, except that parks and recreation board approval is not required for use, possession or consumption within "Western Gateway Park," Birdland Marina and Christine Hensley Terrace and Terrace building and designated outdoor areas.

(e) No person shall be intoxicated or simulate intoxication in a city park.
(O.15,788, 16,085, 16,210, 16,314, 16,529)

Cross reference—Alcoholic beverages, ch. 10.

Sec. 74-93. Destruction of plant or animal life.

(a) No person, except persons authorized, shall in any manner deface, disturb, injure or remove any tree, shrub, turf, plant, or fungi standing or growing in any city park or recreation facility or pick or destroy any flowers or seeds growing therein. No person, except persons authorized, shall feed, remove or attempt to remove, disturb, injure, or kill any bird, waterfowl or other animal in any city park or recreation facility.

(b) No person shall cut or remove any wood, flowers, seeds, fungi, vegetables, nuts, turf, grass, soil, rock, sand or gravel from any city park without a written permit from the parks and recreation director, including for the purpose of metal detecting any underground object.
(O.15,788, 16,085, 16,314, 16,529)

Cross references—Animals, ch. 18; vegetation, ch. 122.

Sec. 74-94. Fires.

No person shall kindle, build, maintain, or in any way light a fire in any city park, parkland or recreational property or facility, except in a permanent barbecue grill provided by the city, or by permit from the parks and recreation director after a determination that such fire creates no hazards to the park or to persons in the immediate vicinity when requirements of the permit are followed. Any fire in a permanent barbecue grill provided by the city or permitted for use by the parks and recreation director shall be enclosed within the fireplace or barbecue grill and continuously under the care and control of a competent person from the time it is kindled until it is extinguished. Said fire shall not impact or cause damage to any person, park improvement, plant or animal life.
(O.15,788, 16,314, 16,529)

Cross reference—Fire prevention and protection, ch. 46.

Sec. 74-95. Firearms, weapons, fireworks and explosives.

(a) No person shall use firearms or other weapons within any city park, community recreation center or recreational facility unless permitted under section 70-86 of this Code.

(b) No person shall use or possess explosives or fireworks as defined in article VI of chapter 46 of this Code and novelties as defined in American Pyrotechnics Association Standard 87-1, Chapter 3, in any city park, community recreation center or recreational facility.
(O.15,788, 16,085, 16,529)

Cross references—Fire prevention and protection, ch. 46; offenses and miscellaneous provisions, ch. 70.

Sec. 74-96. Containers; materials; belongings.

In all city parks, trails, land and facilities managed by the parks and recreation department including all park roads and parking areas in parks, no person shall:

(a) Bring into, use or possess a bottle, jar, drinking cup or other container made of glass, except by approval of the parks and recreation director by permit for a special event or when a liquor, wine or beer license has been obtained;

(b) Litter the ground or any fixture with any form of material. All waste material shall be deposited in receptacles provided for that purpose or shall otherwise be legally disposed of elsewhere. Park waste receptacles shall not be used for dumping trash or rubbish introduced in that form to the park; or

(c) Store or leave belongings unaccompanied, nor store or leave belongings in a manner that impedes use of said facilities and properties by others.

(O.15,788, 16,085, 16,278, 16,529)

Cross reference—Solid waste, ch. 98.

Sec. 74-97. Lakes, ponds and lagoons.

(a) No person shall throw or place any foreign or waste substance in any lake, pond, lagoon or swimming beach in any public park.

(b) Boats and other personal watercraft are not permitted in lakes and ponds, with the exception of Gray's Lake, without the permission of the parks and recreation director.

(c) No person shall fish from or dangle any object from the Gray's Lake watercraft rental dock, the Gray's Lake swimming beach, the Gray's Lake pedestrian bridges, MacRae Park Boardwalk or any pedestrian bridges in any city park.

(d) Where fishing is permitted at lakes, ponds and lagoons, only rod and reel or pole fishing are allowed.

(O.15,788, 16,210, 16,314, 16,405, 16,529)

Cross reference—Waterways, ch. 130.

Sec. 74-98. Posted notices.

No person shall enter upon any land owned or leased to the city and under the jurisdiction of the parks and recreation department and conduct activities thereon in disregard of signs or posted notices forbidding those activities.
(O.15,788)

Sec. 74-99. Dogs and other pets.

(a) No dog or other pet shall be allowed to run at large in any city park or multi-use recreational trail or other hard or soft surface trail.

(b) Any dog or other pet shall be deemed to be found running at large unless the owner carries such dog or other pet; leads such animal by a chain, strap, or rope not exceeding six feet in length; or keeps any such animal confined in an automobile in compliance with section 18-55 of this Code.

(1) However, a service dog or dog employed by and under the control of an authorized person for the sole use of waterfowl control and management and trained for such purpose, except for a high risk dog as defined in section 18-41 of this Code, and accompanying such person shall not be deemed to be running at large, even though restraints as described in this section are not used. Such person shall keep the service dog under control and shall be liable for any damage done to the premises or facilities by the dog.

(c) No dog in a designated off leash area in any public park shall be deemed at large if such dog and owner or person given charge of the dog

are in compliance with section 18-55(a)(6) of this Code. High risk dogs must be on a leash while in such designated off leash area in compliance with section 18-56 of this Code.

(d) No person shall bring, lead, ride or otherwise allow a horse or similar animal to enter or remain in any city park, parkland, or recreational facility other than allowed for service purposes by federal or state law.
(O.15,788, 16,085, 16,405, 16,529)

Cross reference—Dogs generally, § 18-41 et seq.

Sec. 74-100. Park facility hours.

The hours of operation for all public parks, community recreation centers, aquatic centers, pools, wading pools, splash pools, spraygrounds, and city recreational facilities, except for the Greater Des Moines Botanical Garden, A. H. Blank Park Zoo, Principal Park, and Prairie Meadows Riviera Amphitheater at Riverview Park, shall be established by the Des Moines parks and recreation board by vote at one board meeting. The parks and recreation director shall thereafter have authority to adjust such hours, for a period of one season, unless otherwise directed by the Des Moines parks and recreation board. The hours of the Brenton Skating Plaza and support pavilion shall be established by the parks and recreation director. For the purposes of this section, "one season" shall mean the first weekend in April through the last weekend in October or the Monday following the last weekend of October up to the first weekend in April.

(a) No person or vehicle shall enter or remain in any public park, community recreation center or recreational facility at times inconsistent with those set by this section without special permission from the parks and recreation director for such persons or group of persons and their respective vehicle(s) to remain there. Such permit shall not allow use of the park for more than two (2) hours prior to its opening time or more than two (2) hours after its closing time, unless issued in compliance with section 74-101.

(b) No person or vehicle shall enter or remain in or on any city park, inclusive of municipal golf courses, from 10:00 p.m. until 6:00 a.m.

Exceptions are made for:

(1) *Clubhouses and related facilities on golf courses.* These facilities may remain open until 2:00 a.m.

(2) *Concerts at the Simon Estes Riverfront Amphitheater.* This facility may remain open until 12:00 a.m. (midnight).

(3) *Prairie Meadows Riviera Amphitheater at Riverview Park.* This facility may remain open until 12:00 a.m. (midnight).

(4) *Birdland Marina.* This facility may remain open until 11:00 p.m.

(5) *Brenton Skating Plaza.* This facility may remain open until 12:00 a.m. (midnight).

(6) *Western Gateway Park and John and Mary Pappajohn Sculpture Park.* This facility may remain open until 12:00 a.m. (midnight).

(7) *Gray's Lake Park.* This facility may remain open from 6:00 a.m. until 10:00 p.m. from November 1—March 31 and from 5:00 a.m. until 10:00 p.m. from April 1—October 31.

(8) *Principal Riverwalk* (excluding trails and trail heads, which follow multi-use recreational trails hours, and the Hub Spot and Rotary Riverwalk Park, which follow standard park hours): These facilities may remain open until 2:00 a.m.

(9) *Multi-use recreational trails.* These facilities shall be open at all times.

(10) *James W. Cownie Soccer Park, James W. Cownie Baseball Park, George Davis Softball Park, Savage Softball Fields at Easttown Park and Carney Softball Park.* These facilities may be open until 12:00 a.m. (midnight).
(O.15,788, 16,085, 16,210, 16,314, 16,405, 16,529)

Sec. 74-101. Overnight use of parks by special permit.

(a) Purpose. The city's parks and park facilities are not designed for unlimited overnight use. The unlimited use of city parks after hours of operation, such as for camping or storage of personal property, interferes with the rights of others to use the parks for the recreational, leisure and environmental purposes for which they are intended. The purpose of this section is to allow the city's parks to be maintained in a clean and accessible condition and to protect the health, safety and welfare of the city and its residents, while recognizing that infrequent overnight use, subject to reasonable conditions, can be beneficial to the recreational, cultural or educational needs of the community.

(b) For the purpose of this section, overnight use shall mean remaining in or being in a park during hours when the park is not open for operation without a permit issued pursuant to subsection (c) of this section. Unpermitted overnight use shall be subject to prohibitions, disposition and removal pursuant to chapter 102, article VI, and sections 102-8 and 102-615, of this Code.

(c) The city parks and areas within such park in which overnight use is permitted and the conditions on such use, including camping, may be established by the parks and recreation director with the consultation of the parks and recreation board. Overnight use shall be allowed only by permit issued by the director. No more than ten days of overnight use per calendar year per park shall be allowed. No person shall be permitted overnight use of a city park for more than three days per calendar year per park, unless permitted by the city manager for a compelling recreational, cultural or educational need of the community. Commercially manufactured tents designed for no more than eight persons may be permitted with overnight use of a park, although no other buildings or structures as defined in chapter 134 of this Code or which are regulated by chapters 26 or 42 of this Code shall be allowed for overnight use.

(d) Overnight use of the parks for city sponsored or hosted events, activities, and programs shall be exempt from the requirements of this section.

(e) Moorage at the Birdland Marina pursuant to a rental agreement shall be exempt from the requirements of this section.

(O.15,788, 16,085, 16,210, 16,376, 16,529)

Cross references—Buildings and regulations, ch. 26; environment, ch. 42; streets, sidewalks, skywalks and other public places, ch. 102; zoning, ch. 134.

Sec. 74-102. Signage in parks, land and facilities managed by the parks and recreation department.

Only signs which are city signs, or sponsorship or donor signage authorized by an agreement with the city, are permitted on or in city parks, land and facilities managed by the parks and recreation department. Such signs shall be deemed to be city signs and are under the control of the parks and recreation department. Temporary signage in connection with an event during the time of the event may be permitted by the director of parks and recreation.

(O.15,788, 16,085)

Sec. 74-103. Baseballs; softballs.

(a) No one shall throw, hit or play with a baseball in any city park except in areas clearly designated as baseball fields.

(b) No one shall throw, hit or play with a softball in any city park except in areas clearly designated as softball fields.

(O.15,788, 16,405, 16,529)

Sec. 74-104. Golf balls.

No one shall drive, hit or play with a golf ball in any city park.

(O.15,788)

Sec. 74-105. Power-driven model airplanes.

No one shall fly, glide or play with a power-driven model airplane in any city park except in areas clearly designated by a sign posted in a conspicuous place permitting such activity.

(O.15,788)

Sec. 74-106. Responsibility of parent or guardian.

No parent, guardian or custodian of a minor shall knowingly allow the minor to do any act prohibited by any park rules or by this article.
(O.15,788)

Sec. 74-107. Beaches.

(a) Swimming and wading in bodies of water in the parks is permitted only within the marked area adjacent to designated swimming beaches, except by written permission of the parks and recreation director.

(b) Swimming and wading adjacent to authorized swimming beaches shall be permitted only inside the buoys and only during the swimming season as established by the parks and recreation board. The director may extend or shorten the swimming season or may eliminate or close areas adjacent to such beaches as authorized swimming areas with due regard for weather conditions and public safety.

(c) Watercraft are not allowed within the buoys at the swimming beach.

(d) No person shall change clothes in a park except in a restroom or other authorized place designated for such activity.

(e) No person shall swim, dive or enter the water within marked areas adjacent to any swimming beach while wearing or carrying an air or gas tank for the purpose of underwater breathing, in the activity commonly known as skindiving or scuba diving, without special permission from the parks and recreation director.

(f) No person shall disregard notices, prohibitions or directions on any beach sign or disobey the lawful order of any public officer or parks and recreation department staff.

(g) No person shall act at any swimming beach or in the water in such a manner as to jeopardize the safety and health of that person or others.

(h) Nothing contained in this section shall be construed to prohibit swimming or wading (i) in the conduct of official duties, or (ii) when fishing or seining for minnows at such times and places as may be authorized.
(O.15,788, 16,314, 16,529)

Sec. 74-108. Peddling.

No person shall sell or offer for sale, hire or lease anything in any recreation facility or park without a permit from the parks and recreation director.
(O.15,788)

Sec. 74-109. Photographs and cinematic productions.

No person shall take still photographs or shoot video, including by use of a drone, for a commercial purpose in any park, recreation facility or park road, exclusive of the Greater Des Moines Botanical Garden, Principal Park or A.H. Blank Park Zoo, without a permit from the parks and recreation director. No such permit shall be required of a commercial photographer or videographer who has been hired to take still photographs or video of an individual, a group or gathering in any such locations for non-commercial use by such individual, group or gathering.
(O.15,788, 16,085)

Sec. 74-110. Multi-use recreational trails.

(a) *Definitions.*

(1) "Multi-use recreational trail" is defined pursuant to section 114-1 of this Code and excludes a bicycle lane within the city right-of-way.

(2) "Electric personal assistive mobility devices" is defined as a self-balancing device with two non-tandem wheels, designed to transport not more than one person, and operated by an electric propulsion system. A Segway is an example device.

(3) "Single user electric device" means a device with or without handlebars designed to be stood or sat upon by the

operator, and powered by electric motor that is capable of propelling the device with or without human propulsion. An One Wheel is an example device.

(b) *Permitted uses.* Except as otherwise provided, the following recreation, transportation, fitness and other similar uses are permitted on multi-use recreational trails:

(1) Persons walking, jogging or running;

(2) Persons utilizing or operating a non-motorized device, such as a bicycle, skateboard, inline skates, scooter, wheelchair, or other similar activities;

(3) Persons utilizing or operating an electric-motorized device of one horsepower or less, such as bicycles as defined in section 114-677 of this Code, single user electric devices, electric personal assistive mobility devices, or other similar activities in compliance with chapter 114, division 1 of this Code;

(4) Persons with mobility impairments or disabilities using manually operated or power-driven wheelchairs and manually powered mobility aids for the purpose of locomotion;

(5) Persons with mobility impairments or disabilities using another power-driven mobility device for the purpose of locomotion, as provided in 28 CFR 35; and

(6) Official emergency vehicles and authorized maintenance vehicles as necessary to perform the duties of the operator.

(c) *Uses not permitted.* Except as otherwise provided, the following uses are not permitted on multi-use recreational trails:

(1) Motorized vehicles, except where the trail utilizes an existing road, street or highway and except by authorized personnel for the purpose of maintenance;

(2) Equestrian uses; and

(3) Skateboards are not permitted on portions of trails that utilize an existing park road except at designated crossings as indicated by surfacing markings and or signage.

(d) *Hours of permitted use.* Multi-use recreational trails shall be open for use by the public for recreation and transportation at all times, except for the following:

(1) Hours of use of sections of trails may be limited by the parks and recreation director;

(2) Sections of trails may be closed temporarily by the parks and recreation director for emergency situations; and

(3) Sections of trails may be closed temporarily by the parks and recreation director for improvement projects.

(e) *Official signs.* Every user of a recreational trail shall observe and obey any and all official signs posted along a recreational trail, including, but not limited to, speed limits, hours of use, surface markings, stop signs, yield signs and trail closures.

(f) *Reasonable speed.* Each person using the trail shall travel at a speed that is reasonable and prudent under the conditions then existing and shall not travel in such a manner as to constitute a willful or wanton disregard for the safety of persons or property.

(O.15,788, 16,085, 16,314, 16,405, 16,529)

Cross reference—Traffic and vehicles, ch. 114.

Sec. 74-111. Smoking prohibited.

(a) No person shall smoke upon the premises of any city park or recreation facility property, including sports facilities, golf courses, trails and community recreation centers.

(b) No person shall smoke within 25 feet of the entrance to any city park or recreation facility property. For purposes of this section "smoke" or "smoking" means to carry or exercise control over a lighted cigar, cigarette, pipe, or other lighted smoking equipment.

(c) No person shall use tobacco of any kind upon the premises of any city or recreation facility property, including sports facilities, golf courses, trails and community recreation centers.

"Tobacco" means any product made or derived from tobacco that is intended for human use, including both cigarettes and tobacco products as both are defined in Iowa Code section 453A.1, and includes any kind of vapor product as defined in Iowa Code section 453A.1 or any kind of electronic smoking device. "Electronic smoking devices" means any device that can be used to deliver an aerosolized solution that may or may not contain nicotine to the person inhaling from the device, including, but not limited to, an e-cigarette, e-cigar, e-pipe, vape pen, e-hookah, or other simulated smoking device. Nicotine products approved by the United States Food and Drug Administration for tobacco cessation shall be allowed in or on park property.

(d) This section does not apply to the Greater Des Moines Botanical Garden, A.H. Blank Park Zoo or Principal Park.
(O.15,788, 16,085, 16,529)

Sec. 74-112. Sledding, ice skating, cross-country skiing and snowshoeing at parks and golf courses.

(a) The city council finds that the following are valuable recreational activities and are favored by considerations of social policy:

(1) Sledding in city parks and in designated areas in municipal golf courses ("sledding"); and

(2) Skating on designated ponds in city parks and on man-made, temporary ice surfaces created by or under the authority of the parks and recreation department ("temporary ice rinks") in municipal golf courses or city parks ("ice skating"); and

(3) Cross-country skiing and snowshoeing in designated areas in municipal golf courses and in parks ("cross-country skiing and snowshoeing").

(b) The city council further finds that the parks and recreation department budget does not contain sufficient funds to provide for supervision or inspection or grooming of sledding hills in city parks and golf courses, ponds and temporary ice rinks in parks and municipal golf courses for ice skating, and cross-country skiing and snowshoeing trails in municipal golf courses and parks. As a result of the inability to supervise or groom the sledding hills, skating ponds, temporary ice surfaces and cross-country skiing and snowshoeing trails, such surfaces are uneven and may contain bumps, dips, ramps, ice, or thinning ice, trees and other hard and fixed objects in close proximity to a sledding or ice skating or skiing area and other dangers associated with numerous people utilizing various devices to proceed rapidly down icy or snowy inclines and enjoying various forms of recreational skating activities, cross-country skiing and snowshoeing. As sledding, ice skating, cross-country skiing and snowshoeing can be dangerous activities, the city council finds that persons desiring to sled in city parks or golf courses, to skate on ponds in city parks or temporary ice rinks, to cross-country ski and snowshoe in municipal golf courses and parks have the obligation to inspect the sledding, ice skating, and skiing area conditions prior to using such areas. In balancing the social policies favoring family friendly but potentially dangerous sledding, ice skating, cross-country skiing and snowshoeing activities and the economic policies which prevent the city from supervising or inspecting or grooming such surfaces and areas, the city council finds that:

(1) Sledding is allowed in areas and during times designated by the parks and recreation director at municipal golf courses or parks designated by the director;

(2) Ice skating is allowed at temporary ice rinks designated by the parks and recreation director at municipal golf courses and at ponds within parks designated by the director during times designated by the director; and

(3) Cross-country skiing and snowshoeing are allowed at municipal golf courses designated by the park and recreation director, except on tees and greens, during the times designated by the director and at city parks.

(c) Winter recreational activities, including skating, sledding, ice fishing, snowshoeing and skiing, are not permitted in or on the water or ice of Gray's Lake.
(O.15,788, 16,085, 16,314, 16,529)

Secs. 74-113—74-174. Reserved.

ARTICLE V. FEES

Sec. 74-175. Outdoor sport courts.

(a) Fees for rental with reservations for tennis, futsal or Mini-Pitch, pickleball, basketball sport courts, and table tennis/ping pong tables are $10.00 per hour per court.

(b) All reservations are subject to approval of recreation manager. No fee is required for first-come, first-served use for non-reserved courts.
(O.15,788, 16,085, 16,314, 16,405, 16,529)

Sec. 74-176. Ball diamonds and soccer fields.

(a) *Scope.* Fees for use of city ball diamonds and soccer fields shall be as provided in this section.

(b) *Ball diamonds.* Fees for exclusive use of ball diamonds, shall be as follows:

Ball Diamond	*Tournament Per Field Per Day*	*Per Game*	*Practice* Per Hour*
George Davis Softball Park**	$150.00	$50.00	$25.00
Savage Softball Fields at Easttown Park	N/A	$50.00	$25.00
Carney Softball Park	N/A	N/A	$25.00
James W. Cownie Baseball Park**	N/A	$50.00	$25.00
Ashfield Park Field	N/A	N/A	$12.00
*Practice shall include only one (1) team on the field at a time. Multiple teams present on a single field will be considered a game. **All ball diamonds at these facilities require reservations for use. Diamonds at the other facilities may be used on a first-come, first-served basis when they *are* not rented.			

(c) *James W. Cownie Soccer Park.*

(1) Fees for exclusive use of soccer fields:

(i) For youth, college/university soccer practices: $75.00 per hour per field.

(ii) For adult (participants ages 19 and older) practices: $100.00 per hour per field.

(iii) For games: $150.00 per game for youth (ages 18 and younger), $200.00 per game for adults (ages 19 and older).

(2) All uses are by reservation only; no first-come, first-served use.

(3) Use of night lighting: $30.00 per match per field.

(d) *James W. Cownie Baseball Park.*

(1) Fees for dragging and lining:

(i) Upon request after every third game: Included in the base fee listed in the section 74-176 table above.

(ii) Additional marking or lining requested beyond established department marking standards: $50.00 per game.

(e) *George Davis Softball Park.*

(1) Fees for dragging and lining:

(i) Upon request after every third game: Included in the base fee listed in the section 74-176 table above.

(ii) Additional marking or lining requested beyond established department marking standards: $50.00 per game.

(2) Field Dry. $30.00 per bag.

(3) Temporary fencing: $200.00 per field.

(O.15,788, 16,085, 16,210, 16,405, 16,529)

Sec. 74-177. Bike and related equipment rental.

Fees for use of bicycles and related equipment are as follows:

Item	*Fee Per Hour*	*Fee Per Half Day (6 hours)*
Hybrid or Mountain Bike with Bike Helmet—Ages 13 and over	$15.00	$45.00
Hybrid or Mountain Bike with Bike Helmet—Ages 12 and younger	$10.00	$30.00
Road Bike with Helmet—Ages 13 and over	$15.00	$45.00
Road Bike with Helmet—Ages 12 and younger	$10.00	$30.00
Tandem Bikes	$25.00	$50.00

(O.15,788, 16,085, 16,210, 16,314, 16,529)

Sec. 74-178. Temporary concession.

In addition to payment of all other required fees, the following fees shall be paid for use of park facilities for temporary concession purposes related to food, beverage and novelty items less than $15.00 each. The payment for the sale of items which cost more than $15.00 each, a concession for more than six events or special service items shall be negotiated in a separate agreement and approved by the parks and recreation director or the city manager:

Number of Persons Attending	*Charge Per Day Per Vendor*
Less than 5,000	$100.00
5,000 and more	$300.00

(O.15,788, 16,085, 16,210)

Sec. 74-179. Park between Tenth and Fifteenth Streets and Grand Avenue and Locust Street a/k/a "Western Gateway Park"—Rentals.

For the purposes of this section "Facility Use Outdoor Rooms" shall be considered the area of ambience around a specific sculpture or grouping of sculptures within the John and Mary Pappajohn Sculpture Park and the "Lawn Areas" shall be the open space surrounding the Pappajohn Higher Education Center and the Central Des Moines Public Library.

Item	*Fee*	*Notes*
Facility Use Outdoor Rooms	$1,500.00/half day (6 hours)	
Facility Use Outdoor Rooms	$3,000.00/day (during park hours)	
Lawn Areas	$650.00/day (during park hours)	
Set-up/tear down (rooms) Set-up/tear down (lawn)	$500.00/half day (6 hours) $250.00/day	Does not include hours when park is closed
Clean up if City deems necessary	$40.00/hour per staff position, two-hour minimum	Billed to renter after event
Seeding if City deems necessary	Contractor cost	Billed to renter after event
Sodding if City deems necessary	Contractor cost	Billed to renter after event
Repair of damage if City deems necessary	Actual cost of replacement	Billed to renter after event

(O.15,788, 16,085, 16,210, 16,405, 16,529)

Sec. 74-180. Community recreation center building admissions and rentals.

(a) Community recreation center building admission fees shall be as follows:

Admission Fee	*Ages Under 19*	*Ages 19 to 59*	*Ages Over 59*
Daily entry fee per person	$0.00	$2.00	$1.00
Monthly pass per person	$0.00	$24.00	$12.00
Annual pass per person	$0.00	$150.00	$100.00

(b) Community recreation center building rental fees shall be as follows:

Rental Fees	*Per Hour During Regular Operating Hours (2-hour minimum)*	*Per Hour During Holidays and Non-Operating Hours (2-hour minimum)*
Rental by governmental, public school and recognized Neighborhood Associations	No charge	No charge
Rental for exclusive use and public admissions where no fee or admission is charged and nothing is sold:		
Small meeting room	$20.00	$35.00
Multipurpose room	$35.00	$65.00
Gymnasium	$35.00	$65.00

(O.15,788, 16,085, 16,314, 16,529, 16,537)

Sec. 74-181. Golf courses.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

(1) *Weekdays* are Monday through Thursday, except Seniors are Monday through Friday.

(2) *Weekends* are Friday, Saturday, Sunday and holidays before 3:00 p.m.

(3) *Twilight* is from 3:00 p.m. until sunset on Friday and 3:00 p.m. until sunset on Saturday and Sunday and as otherwise designated during non-peak periods by the parks and recreation director.

(b) *Green fees.* Greens fees for golf courses shall be as follows:

(1) *Daily:*

	9-Holes Weekday	*18-Holes Weekday*	*9-Holes Weekday with Cart*	*18-Holes Weekday with Cart*	*9-Holes Weekend before 3:30 p.m.*	*18-Holes Weekend before 3:30 p.m.*	*9-Holes Weekend before 3:30 p.m. with Cart*	*18-Holes Weekend before 3:30 p.m. with Cart*	*Twilight*	*Twilight with Cart*
A.H. Blank	$21.00	27.00	36.00	45.00	23.00	34.00	38.00	52.00	23.00	38.00
Bright Grandview	$20.00	25.00	35.00	43.00	21.00	29.00	36.00	47.00	21.00	36.00
Waveland	$23.00	30.00	38.00	48.00	26.00	37.00	41.00	55.00	26.00	41.00

a. *Youth mentor rates.* No charge for youth (under 18) playing with a paying adult, Monday through Thursday. Valid with non-discounted daily fee only; does not include season badge players.

(2) *Military.* Active military personnel with a valid ID, fees for golf shall be as follows:

	9-Holes Weekday	*18-Holes Weekday*	*9-Holes Weekday with Cart*	*18-Holes Weekday with Cart*	*Twilight*	*Twilight with Cart*
A.H. Blank	$18.00	23.00	33.00	41.00	23.00	38.00
Bright Grandview	$17.00	22.00	32.00	40.00	21.00	36.00
Waveland	$20.00	25.00	35.00	43.00	26.00	41.00

(3) *Senior.* For seniors (62 years and older), fees shall be as follows:

	9-Holes Weekday	*18-Holes Weekday*	*9-Holes Weekday with Cart*	*18-Holes Weekday with Cart*	*Twilight*	*Twilight with Cart*
A.H. Blank	$18.00	23.00	33.00	41.00	23.00	38.00
Bright Grandview	$17.00	22.00	32.00	40.00	21.00	36.00
Waveland	$20.00	25.00	35.00	43.00	26.00	41.00

(c) *Season badges.* Fees for golf badges shall be as follows:

	5 Day Pass Mon.—Fri.	*7 Day Golf Pass*	*7 Day Golf Pass with a Cart*	*5 Day Senior Pass Mon.—Fri.*	*7 Day Senior Golf Pass*	*5 Day Couple Pass*	*5 Day Senior Couple Pass*	*7 Day Couple Pass*	*7 Day Senior Couple Pass*	*Jr. Badge (17 and Under)*
All Courses Under City's Contractor's Management	$1,000.00	1,400.00	2,425.00	800.00	1,150.00	1,425.00	1,100.00	2,020.00	1,565.00	300.00

(1) 5-day badges are valid for play Monday through Friday and weekends and holidays after 3:30 p.m.

(2) 7-day badges are valid for play all days and open hours.

(d) *Golf carts.*

(1) Fees for renting golf carts for use on the course rented from are as follows:

Course	*9-Holes*	*18-Holes*
A.H. Blank	$15.00	$18.00
Bright Grandview	$15.00	$18.00
Waveland	$15.00	$18.00

(2) Private golf carts registered by an individual with a city of Des Moines municipal golf course before May 1, 1996 with the same registrant as the operator are permitted. Such registrations may not be transferred to another individual. No new private golf cart registrations are accepted after April 30, 1996. The fee for use of private golf carts shall be one of the following:

(i) Registration fee - $200.00, plus a Daily Trail fee, per course, per cart - $8.00; or

(ii) Season cart badge - $650.00.

(e) *[Miniature golf course.]* Miniature (a.k.a. mini) golf course fees shall be as follows:

Rate Type	*Fee*
Child (ages 4 and under)	Free
Child (ages 5 through 12)	$8.00
Adult (ages 13 and older)	$11.00
Groups of 10 or more	$8.00 each player

(f) *High school team* golf course fees involving at least one Des Moines high school team shall be as follows:

(1) Practices (Des Moines high schools only) (start time 2:30—4:00 p.m.): $1.00 per person.

(2) Dual meets (start time 2:30—4:00 p.m.): $4.00 per player.

(3) Tournament (more than two teams, start time 2:30—4:00 p.m.): $15.00 per player.

(4) Tournament (more than two teams, start time before 2:30 p.m.): $17.00 per player.

(5) Schedules must be submitted to golf course management by March 1 each year.

(6) Events scheduled are subject to change of date/time at the discretion of golf course management up to one week prior to the event.

(7) Free golf cart use may be offered to officials/coaches at the discretion of golf course management.

(O.15,788, 15,850, 16,085, 16,210, 16,314, 16,405, 16,529)

Sec. 74-182. Park shelters and other park rentals.

Fees for park shelters and other park rentals shall be as follows:

(1) *Sylvan Theater*

a. Fee based event: $750.00 for half-day (6:00 a.m.—1:00 p.m. or 2:00 p.m.—9:00 p.m.).

b. Events free to the public and exclusive use events (i.e. weddings): $350.00 first two (2) hours (minimum); $150.00 each additional hour.

(2) *Garden reservation fees.* Must specify garden area:

a. Clare and Miles Mills Rose Garden at Greenwood Park: $350.00 first two hours (minimum), $150.00 each additional hour.

b. Floral Garden at Union Park: $15.00 per hour.

c. Lilac Arboretum at Ewing Park: $50.00 per hour.

(3) *Shelters.* Unless otherwise specified, each rental session is for the hours of 10:00 a.m. to 9:00 p.m. No rentals on New Year's Day, Thanksgiving Day, day after Thanksgiving, Christmas Eve, Christmas Day and New Year's Eve.

a. *Enclosed shelters:*

Enclosed Shelter	*Monday through Thursday*	*Friday through Sunday*
Birdland Park—Ding Darling Shelter	$225.00	$315.00
Columbus Park Shelter	$200.00	$250.00
Drake Park Shelter	$200.00	$250.00
Grandview Park—Bob Mahaffey Shelter	$200.00	$250.00
Greenwood Park—Jay Spence Shelter	$200.00	$250.00
Hub Spot Shelter	$225.00	$315.00
MacRae Park—W.C. Walker Shelter	$200.00	$250.00
Martin Luther King Jr. Park Shelter	$65.00 per hour for minimum of two hours, $40.00 per hour for each additional hour between the hours of 8:00 a.m. to 9:30 p.m. on Saturday and Sunday and 4:00 p.m.—9:30 p.m. Monday—Friday.	
Pioneer Park Shelter	$85.00	$105.00
Union Park—Bill and Nellie Ritchie Shelter (East)	$85.00	$105.00
Union Park—Margaret Swanson Shelter (West)	$85.00	$105.00

b. *Open-air shelters.*

Capacity	*10:00 a.m.—3:00 p.m.*	*4:00 p.m.—9:00 p.m.*	*10:00 a.m.—9:00 p.m. (all-day rental)*
Capacity of more than 100 • Crivaro Park Large Open Shelter (East) • Pioneer Park West Open Shelter (Large)	$75.00	$75.00	$140.00
Capacity of 100 or less • Any open-air shelter not listed above)	N/A	N/A	$50.00

(4) *Stewart Square Park and Stage.* Each rental session is for an 11-hour block (reserved for only one group per day): $50.00

(5) *Gray's Lake Park.*

a. Christine Hensley Terrace Rental: $250.00 per 3-hour block, $75.00 per hour for each additional hour.

b. Designated open space rental: $250.00 per half day (six hours maximum).

c. Canoe/paddle boat/stand up paddle board rental: $8.00 per half hour and $15.00 per hour.

d. Kayaks: $10.00 per half hour and $18.00 per hour.

e. Sailboat rental: $25.00 per hour, 2-hour minimum.

f. Gray's Lake Railroad Corridor: $500.00 per day per area as defined by parks and recreation department (accessible during park hours only).

(6) *Trail event use fees.* $1.00 per participant.

a. A refund may be requested if actual participant count is demonstrated to be less than estimated fee amount.

b. Additional participant fee will be assessed if determined by the city that the estimated fee amount did not account for all actual participants.

c. A cleaning fee, as defined in section 74-182(9)(c), will be assessed if trail conditions post-event are not similar to pre-event conditions.

(7) *Community garden plot.* $35.00 per plot per year.

(8) *Miscellaneous.*

a. Equipment rental:

1. Snowshoes: $5.00 per day or $10.00 for weekend (Friday noon until noon on Monday).

2. Late fee for each day late: $5.00.

b. Additional trash cans: $15.00 each up to 10 total.

c. Cleaning fee: $40.00 per hour with a 2-hour minimum for all uses, except $50.00 per hour with a 2-hour minimum for trail use cleaning.

d. Cancellation/transfer administrative fee: $10.00 for activities and rentals up to $100.00, $30.00 for activities and rentals over $100.00.

(9) *Open space permit.* $10.00 per hour per field.

(10) *Disc golf tournament.* $100.00 per day per location for recreational tournaments.

(11) *Park road closures.* $25.00 per hour for a maximum of six hours during a rental on parks roads in Ashworth, Birdland, Grandview, Greenwood, MacRae, Pioneer, Prospect and Union Parks.

(O.15,788, 16,085, 16,210, 16,314, 16,405, 16,529)

Sec. 74-183. Aquatic centers, swimming pools and marina.

(a) Fees for use of city aquatic centers, swimming pools and the marina shall be as follows:

(1) *Northwest, Nahas and Teachout Aquatic Centers and Ashworth and Birdland Pools admissions*:*

a. Children (under 3 years of age): Free.

b. Youth (3 through 18 years of age): $3.00.

c. Adult (19 through 59 years of age): $5.00.

d. Senior (60 years of age and over): $3.00.

*Half price admission after 5:00 p.m. Monday through Friday.

(2) Season swim passes at aquatic centers and swimming pools:

*Pass Type** *(valid at all locations)*	*Early Bird Rate*	*Standard Rate*
Single	$40.00	$45.00

*Pass Type** *(valid at all locations)*	*Early Bird Rate*	*Standard Rate*
1st and 2nd family members or shared residence	$75.00	$80.00
3rd and 4th family member	Additional $25.00 each	Additional $30.00 each
Additional family members beyond 4th	Additional $10.00 each	Additional $10.00 each
Replacement tags	$7.00	$7.00
Youth agency (i.e. daycares):		
1 day a week child	N/A	$30.00
2 days a week child	N/A	$40.00
3 days a week child	N/A	$50.00
4 days a week child	N/A	$60.00
5 days a week child	N/A	$70.00
Replacement tags	N/A	$7.00

A season pass to the Heritage Carousel of Des Moines at Union Park may be added to the purchase of any season swim pass for $25.00. All members included on the season swim pass will be included on the carousel pass. The carousel pass is valid for unlimited rides during the same season as the season swim pass. A new carousel pass must be purchased each season.

(3) *Pool rental for exclusive use.* $250.00/hour for a minimum block of two hours. This fee includes $150.00 per hour for pool use plus $100.00 per hour for a minimum of four lifeguards and a supervisor. All rentals shall be outside of regular business hours unless approved by the parks and recreation director.

(4) *Pool rental for athletic programs and practices.* $90.00 per hour for a minimum of two hours. This fee includes $50.00 per hour for pool use plus $40.00 per hour for a minimum of one lifeguard and a supervisor.

(5) *Swim meets.* $1,000.00/day, maximum of 12 hours. This fee includes exclusive use for a single facility; the city will provide lifeguards.

(b) *Birdland Marina moorage fees.* Moorage allowed annually from March 15 through November 15. All rentals are based on availability and are as follows:

(1) *Seasonal Double access:* $665.00.

(2) *Seasonal Single access:* $580.00.

(3) *Replacement moorage decal:* $5.00.

(4) *Boat left past last day:* $20.00 per day.

(O.15,788, 16,085, 16,210, 16,314, 16,405, 16,529)

Sec. 74-184. Brenton Skating Plaza.

(a) Fees for use of the Brenton Skating Plaza ice rink during the skating season, as determined by the parks and recreation department based on seasonal conditions, shall be as follows:

(1) *Admission and skate rental fees:*

Fee	*Rate*
Adult (ages 13—59)	$10.00
Child (6—12)/Senior (60+)	$6.00
Children under 5 years of age	$2.00

Fee	*Rate*
Skate rental	$5.00
Punch Pass #1—10 admissions including skate rentals, all ages	$ 95.00
Punch Pass #2—Available from January 2 to end of season—Four admissions including skate rentals, all ages	$25.00
Skate rental with paid admission on Monday OR Tuesday January 2 to end of season	Free

(2) *Ice rink rental:* Fee for exclusive use of the Brenton Skating Plaza: $250.00 per hour, minimum of two hours.

(b) Fees for use of the Brenton Skating Plaza during the non-skating season, as determined by the parks and recreation department based on seasonal conditions, are as follows:

(1) *Monday through Friday rental:* $75.00 per hour, minimum of two hours.

(2) *Saturday and Sunday rental:* $100.00 per hour, minimum of two hours.
(O.15,788, 16,085, 16,210, 16,314, 16,405, 16,529)

Sec. 74-185. Simon Estes Riverfront Amphitheater.

(a) *Rental fees.* Rental fees for the use of the amphitheater shall be as follows:

(1) *Events free to the public and private parties (i.e. weddings):*

a. Per eight-hour session: $1,000.00.

b. For each additional hour: $100.00.

(2) *Fee based event:*

a. Per eight-hour session: $1,500.00.

b. For each additional hour: $175.00.
(O.15,788, 16,085)

Sec. 74-186. Principal Riverwalk.

(a) *Long Look Garden:* $200.00—4-hour time block, $100.00 for each additional hour, weekends only.

(b) *Union Pacific Railroad Bridge:* $50.00—4-hour time interval for either the north or south area.

(c) *World Food Prize Plaza adjacent to World Food Prize Hall of Laureates:* $500.00—4-hour block, $100.00 for each additional hour.

(d) *Iowa Women of Achievement Bridge:* $50.00—4-hour block, either the north or the south section of the bridge.

(e) *Rotary Riverwalk Park:* $50.00 per hour—playground must remain open to public during a permitted event.

(f) *SW 1st Street Bridge (Water Street):* $50.00—4-hour block, down river (east) section of the bridge.
(O.15,788, 16,085, 16,210, 16,529)

Sec. 74-187. Riverview Park.

(a) Rental fees for use of the Prairie Meadows Rivera Amphitheater at Riverview Park, shall be as follows:

(1) *Events free to the public and private parties (i.e. weddings):* $2,000.00, per day.

(2) *Fee-based event:* $4,000.00, per day.
(O.15,788, 16,085)

Sec. 74-188. Miscellaneous.

(a) Commercial photography or video permits issued per section 74-109: Per day: $20.00.

(b) Permits for special lighting on facilities equipped with programmable multi-colored L.E.D lighting features: $150.00 per day defined for this fee as from sunset to sunrise.

(1) Facilities include the Chris and Marcie Coleman Bridge, the Ruan Connector,

and the Women of Achievement Bridge. Additional facilities may be added if equipped with programmable multi-colored L.E.D. lighting features, subject to approval of the parks and recreation director.

(2) Permits are subject to approval of the parks and recreation director and must promote the city, its civic institutions, state and federal holidays, and other public events of community significance per applicant.

(3) Each applicant may request up to two permits per calendar year. Each permit shall be limited to no more than three consecutive total days and one color scheme.

(O.15,788, 15,957, 16,085, 16,210, 16,529)

Sec. 74-189. Set program fees and authority to make temporary fee adjustments.

Recreation program fees, administrative fees for processing refunds, cancellations and customer requested program schedule changes that are not related to admissions or rental charges established in this section shall be set by the parks and recreation director taking into consideration market conditions and direct expenses related to said program offerings. Fees as determined in sections 74-175 through 74-188, and section 34-34 of this Code may be changed at the discretion of the parks and recreation director for engaging in special projects, programs or promotions that justify such change, including reduced fees to provide access to parks and recreation programs and facilities to low-income residents, organizations solely or primarily devoted to serving low-income individuals or not-for-profit agencies. The parks and recreation director shall report annually in January to the parks and recreation board and city manager on changed fees for the preceding year's activities that were approved by the director.
(O.15,788, 16,085, 16,529)

Sec. 74-190. Penalty and enforcement.

(a) Any person who fails to perform an act required by the provisions of this chapter, or who commits an act prohibited by the provisions of this chapter, shall be guilty of a misdemeanor punishable by a fine of $50.00 or shall be guilty of a municipal infraction punishable by a civil penalty in the amount set forth in the schedule of administrative penalties adopted by the city council.

(b) The parks and recreation department staff may and all police officers shall enforce this article.
(O.16,529)

Secs. 74-191—74-209. Reserved.

ARTICLE VI. MOBILE FOOD VENDORS IN DESIGNATED PARKS

Sec. 74-210. Mobile food vendors and transient merchants.

(a) (i) Mobile vendors operating mobile vendor vehicles, as defined in article V of chapter 78 of this Code, and transient merchants, as defined in article III of chapter 78 of this Code, may be located or operated only in the following parks:

(1) Ashworth Park

(2) Evelyn K. Davis Park

(3) Ewing Park

(4) Grandview Park

(5) Greenwood Park

(6) MacRae Park

(7) Riverview Park

(8) Simon Estes Amphitheater Plaza

(9) Union Park

(ii) Mobile vendors operating mobile vendor vehicles, as defined in article V of chapter 78 of this Code, and transient merchants, as defined in article III of chapter 78 of this Code, may be located or operated only in the following parks, subject to written advance approval from the parks and recreation department and alignment with the concessionaire agreement:

(1) George Davis Softball Park

(2) James W. Cownie Baseball Park

(3) James W. Cownie Soccer Park

(b) Mobile vendor vehicles and transient merchant push carts, structures, and vehicles may only be located in a parking space within the paved parking lot or park road. Use of parking spaces are on a first-come, first-serve basis each day. No other parking space or parking on unpaved areas within the parks may be used for mobile vendor vehicles or transient merchant push carts, structures, or vehicles. Mobile vendors and transient merchants are not allowed to place any items within the park, other than the mobile vendor vehicle, such as tables or chairs.

(c) Mobile vendor vehicles and transient merchant push carts, structures, and vehicles are only allowed in the above-designated parks during the days of the year when permanent restrooms are open to the public in such parks and only during hours when the park is open to the public.

(d) Every mobile food vendor operating or locating a mobile vendor vehicle within the designated parks must have a current mobile vendor license issued in compliance with article V of chapter 78 of this Code and operate in compliance with all license and article V of chapter 78 requirements. Every transient merchant operating or locating a pushcart, structure, or vehicle within the designated parks must have a current transient merchant license issued in compliance with article III of chapter 78 of this Code and operate in compliance with all license and article III of chapter 78 requirements.

(e) Every mobile food vendor and transient merchant operating or locating a mobile vendor vehicle within the above designated parks must have a mobile food vendor or transient permit issued by the parks and recreation director. An application for such permit must be made by submitting an application form provided by the department at least three business days prior to use. The application must include a copy of the applicant's mobile vendor or transient merchant license issued by the city clerk and payment of the application fee established by city council for an annual permit or a 1-day permit as applicable. The parks and recreation director may designate dates within the permit period during which mobile vendors are prohibited from operating within the designated parks.

(f) The permit must be displayed within the mobile vendor vehicle or on the transient merchant push carts, structures, or vehicles in a manner such that it is readily visible to all persons seeking to conduct business with the mobile vendor.

(g) Upon complaint or a reasonable suspicion that a permittee or the permittee's employees or agents has furnished any false information in its application or has violated or failed to comply with any of the requirements of this article or chapter 78 of this Code, or any other provisions of this Code, the suspension or revocation provisions in section 78-73 or 78-211 of this Code, as applicable, shall apply, with the parks and recreation director or director's designee in substitution for the city clerk or city clerk's designee.

(h) Section 74-178 does not apply to mobile vendors or transient merchants.

(i) Notwithstanding subsection 74-210(a) above, up to two total mobile vendors operating mobile vendor vehicles, as defined in article V of chapter 78 of this code, and/or transient merchants, as defined in article III of chapter 78 of this code, may be located or operated in Birdland Marina within the concession area pursuant to a concession agreement approved by resolution of the city council.

(O.15,788, 16,085, 16,210, 16,405, 16,529)

Cross reference—Peddler and solicitors, ch. 78.

Chapters 75—77

RESERVED

Chapter 78

PEDDLERS AND SOLICITORS*

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*__Cross references—__Businesses, ch. 30; peddling at park and recreation facilities, § 74-113; streets, sidewalks, skywalks and other public places, ch. 102.

Article V. Mobile Food Venders

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ARTICLE I. IN GENERAL

Secs. 78-1—78-9. Reserved.

Sec. 78-10. Limitation on retail premises.

No person shall engage in the business of displaying for sale, or selling, food, beverages or merchandise within the city from any vehicle, trailer, tent, or temporary structure or from any temporary location or place, except:

(1) *Permitted premises.* Activities conducted in compliance with a certificate of zoning compliance issued pursuant to section 134-1.7, entirely within a building in compliance with chapter 134 or in conformance with a site plan approved pursuant to article 9 of chapter 135.

(2) *Yard sales.* The casual and occasional sales of used household goods by the owner thereof to the public, on a nonreceiving basis, if the seller, at the time of the sale, is not engaged for profit in the business of selling goods of that or a similar nature, so long as such sales are not conducted in excess of four consecutive days and no more than two times annually.

(3) *Licensed use of right-of-way.* Sales activities conducted in compliance with an entertainment district license, a sidewalk sales permit, a farmers' or public market permit, or a sidewalk cafe license or lease issued for the premises pursuant to article VII of chapter 102 of this Code.

(4) *Street use permit.* Sales activities conducted in compliance with a street use permit issued pursuant to article XVI of chapter 102 of this Code.

(5) *Conditional use.* Sales activities conducted pursuant to conditional use approval by the zoning board of adjustment pursuant to article 6 of chapter 134 of this Code.

(6) *Peddlers.* Sales activities conducted in compliance with a peddlers license issued pursuant to article II of this chapter.

(7) *Transient merchants.* Sales activities by a transient merchant which are conducted in compliance with a transient merchant license issued pursuant to article III of this chapter, or which are exempt from the requirement to obtain a transient merchant license under section 78-62.

(8) *Parks.* The sale of food and beverages in public parks and rivers with permission of the park and recreation board.

(9) *Emergency response sites.* Sales of food and beverages at the site of an emergency or disaster with the permission of the police chief, fire chief or public works director.

(10) *Mobile venders*. Sales activities by a mobile vender which are conducted in compliance with a mobile vender license issued pursuant to article V of this chapter.

(O.14,807, 15,362, 15,819)

Sec. 78-11. Criminal and civil penalties.

(a) No person shall engage in or cause any activity to be done in violation of any provision of this chapter.

(b) Persons who fail to perform an act required by the provisions of this chapter or who commit an act prohibited by the provisions of this chapter shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code, or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.

(c) The city may obtain injunctive relief to enforce the provisions of this chapter.

(O.14,853, 15,608)

Secs. 78-12—78-24. Reserved.

ARTICLE II. PEDDLERS

Sec. 78-25. Purpose.

The purpose of this article is to protect residents of the city against fraud, and to ensure the safety of the residents by protecting them from intrusion into the privacy of their homes by licensing and regulating peddlers.

(O.15,155)

Sec. 78-26. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Peddler means any person carrying goods, merchandise or offering services who sells or offers for sale such goods, merchandise, or services from house to house including any person who takes orders house to house for goods, merchandise or services for later delivery.

Peddling means the selling or offering for sale services, goods or merchandise which are carried by a person from house to house including the taking of orders house to house for goods, merchandise, or services for later delivery.
(C42, §§ 57-1, 57-3, 57-4, 57-5; C54, C62, §§ 36-8, 36-16, 36-17, 36-19; O.7539, 8461, 8834; C62, § 36-1; C75, C79, C91, § 9-96; O.14,186, 15,155, 15,578)

Cross reference—Definitions generally, § 1-2.

Sec. 78-27. License and bond required.

(a) Any person engaging in peddling in this city without first obtaining a license as provided in this article shall be in violation of this article.

(b) No peddlers license shall be issued until the applicant has delivered to the city clerk a cash bond for no less than $200.00 per license or $1,000.00 for an employer employing a group of five or more license applicants.

(1) The bond shall be held to indemnify and pay the city any penalties or costs incurred in the enforcement of any of the sections of this article and indemnify or reimburse any purchaser of services, goods, wares, merchandise or stock for any judgment which may be obtained by a purchaser for damages in any action commenced within three months from the date of purchase, due to misrepresentations as to the kind, quality or value of such services, goods, wares, merchandise or stock, whether the misrepresentations were made by the owner or by his or her servants, agents or employees, either at the time of making the sale or through any advertisement of any character, printed or circulated, with reference to such stock of goods, wares, merchandise, services or any part thereof.

(2) The balance of the bond shall be released by the city clerk and returned to the applicant or employer upon request by the applicant or employer at any time more than four months after expiration of the peddlers license(s) for which the cash bond was provided, unless the city clerk has received notice of a pending action in the state or federal courts seeking a judgment upon a claim eligible for payment from the bond. Except as otherwise provided by court order, the city clerk shall not release any bond during the pendency of any such action.

(C62, § 36-2; O.8834; C75, C79, C91, § 9-97; O.15,155)

Sec. 78-28. Exemptions.

This article shall not apply to the following:

(1) Persons making door-to-door sales for the purpose of a community improvement or benefit approved by the city council on behalf of nonprofit, tax-exempt corporations; or

(2) Persons licensed as a salvage dealer under division 2 of article VIII of chapter 30 of this Code; or

(3) Persons licensed as a solicitor under article IV of this chapter; or

(4) Persons delivering and selling goods or merchandise to established customers; or

(5) Persons having written permission from a street use permit holder to make sales within the street area closed for an event.

(C42, § 57-7; C54, C62, § 36-2; O.8189, 8834; C62, § 36-3; C75, C79, § 9-98; O.9694; C91, § 9-98; O.14,186, 14,745, 15,155)

Sec. 78-29. Application for license.

An application shall be filed with the city clerk for a license required under this article. The applicant shall provide the following information:

(1) Applicant's name, e-mail address, if any, and local phone number or cell phone number;

(2) Permanent and local address, business address, business e-mail address, and phone number, if any;

(3) A government-issued photo I.D.;

(4) Applicant's employer, if any, and the employer's address, e-mail address, and phone number, if any;

(5) The nature of the applicant's business;

(6) The last three places of such business;

(7) The length of time sought to be covered by the license;

(8) Applicant's federal identification number and the federal identification number for any business applicant is peddling under as an agent, employee or otherwise;

(9) An Iowa sales tax permit number or a letter from the Iowa Department of Revenue confirming a sales tax permit is not required;

(10) A Department of Criminal Investigation criminal history report/record for applicant from the state of applicant's residence for the previous five years to include pending charges, such report or record must be dated no more than 30 days prior to the application;

(11) Whether applicant has been listed on any sex offender registry within the last five years;

(12) Whether applicant has had a peddlers license suspended, revoked, or denied by this or any other city in the last five years and the reasons therefore;

(13) The dates of any previous peddlers licenses issued by the city clerk.

(C62, § 36-5; O.8834; C75, C79, C91, § 9-100; O.15,155, 15,777)

Sec. 78-30. Issuance of license; fee; appeal.

(a) The city clerk, upon review of the license application with the police department and any other appropriate department or agency, shall determine whether a license will be issued to the applicant. A waiting period of not less than three business days from the date of the application shall be in effect to provide sufficient time for the city clerk's fact gathering process to be completed in a reasonable period. In making his/her decision, the clerk shall consider the following factors:

(1) The information in the application is found to be correct.

(2) All information required has been provided and the application is complete.

(3) The required bond is paid.

(4) Applicant does not have a peddlers license under suspension or revocation under this article.

(b) Upon the city clerk deciding the factors have been satisfied by the applicant a license shall issue upon payment of the bond and the nonrefundable fee in advance as set in the schedule of fees adopted by the city council by resolution.

(c) A denial of a license may be appealed in the same manner and under the same procedures stated at section 78-34 of this article.

(C42, §§ 57-1, 57-3, 57-4, 57-5; C54, C62, §§ 36-10, 36-12, 36-16, 36-17, 36-19; O.7539, 8461, 8834; C62, § 36-6; C75, § 9-101; O.9140; C79, C85, § 9-101; O.11,548; C91, § 9-101; O.15,155)

Sec. 78-31. Display of license.

Each peddler shall at all times while doing business in this city keep in his or her possession the license provided for in section 78-30 of this article and shall leave a copy of the license with

each prospective customer while peddling as evidence that he or she has complied with all requirements of this article.
(C62, § 36-7; O.8834; C75, C79, C85, § 9-102; O.11,602; C91, § 9-102; O.15,155)

Sec. 78-32. Transferability of license.

No peddler's license shall be sold or transferred. The license must be issued in the name of the person actually peddling.
(C62, § 36-8; O.8834; C75, C79, C85, § 9-103; O.11,602; C91, § 9-103)

Sec. 78-33. Licenses for short period.

Licenses may be issued to peddlers for periods of one week for each week for which such license is granted, one month for each month for which such license is granted, or for a period of three months for a fee for each respective time period in the amount set in the schedule of fees adopted by the city council by resolution.
(C42, §§ 57-2, 57-6; C54, C62, §§ 36-11, 36-20; O.8834; C62, § 36-9; C75, § 9-104; O.9140; C79, C85, § 9-104; O.11,548; C91, § 9-104; O.14,186)

Sec. 78-34. Suspension, revocation, or denial of license and appeal.

(a) *Suspension, revocation or denial.* Any license issued pursuant to this article shall be either summarily suspended or revoked by the city clerk for violation of this article or for misrepresentation of facts in the application. A license may be denied for failure to meet the factors stated in section 78-30(a) of this article.

(b) *Notice and appeal process.* A summary suspension, revocation or denial, shall be promptly communicated to the applicant or the applicant's representative by phone at the phone number provided in the application. Written notice shall also be mailed by U.S. mail to the applicant at the business address identified in the application informing the applicant of the suspension, revocation or denial, the reasons therefore, and the applicant's right to appeal to a hearing officer pursuant to Chapter 3 of this Code. The only issue on appeal shall be whether the suspension, revocation or denial is supported by a preponderance of the evidence.

(c) *Effect or suspension or revocation.* A suspension shall be for the amount of time stated in the suspension which may be for up to one year. A licensee whose license has been revoked shall not be eligible for another such license for two years after such revocation.
(C42, § 57-10; C54, C62, § 36-10; O.8834; C75, C79, § 9-105; O.10,723; C85, § 9-105; O.11,602; C91, § 9-105; O.15,155)

Sec. 78-35. Prohibited acts.

(a) No peddler shall conduct peddling with any person situated in a motor vehicle upon any public street, alley, driveway access, or public way.

(b) No peddler shall conduct peddling upon any part of the public right-of-way along a parade route on the day of any permitted parade.

(c) No peddler shall conduct peddling within 1,800 feet of the perimeter of a street closure, or inside such perimeter, for an event where a street use permit has been issued unless written permission from the street use permit holder has been obtained.

(d) No peddler shall conduct peddling between the hours of 9:00 p.m. and 9:00 a.m.

(e) No peddler shall do business or attempt to do business upon any property on which has a posted notice prohibiting peddling or soliciting.

(f) No peddler shall harass, intimidate, coerce or threaten any individual to induce a sale.

(g) No peddler shall falsely or fraudulently misrepresent the quality, character or quantity of any article, item or commodity offered for sale or sell any unwholesome or tainted food or foodstuffs.

(h) No peddler shall conduct business in such a manner as to endanger the public health, welfare, or safety of the public.
(O.13,846, 14,745, 15,155, 15,357)

Secs. 78-36—78-60. Reserved.

ARTICLE III. TRANSIENT MERCHANTS*

Sec. 78-61. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Food service establishment shall have that meaning established by section 481-30.2 of the Iowa Administrative Code.

Pushcart means a non-motorized cart which is self-propelled by the operator.

Transient merchant means a person, principal or agent who engages in a merchandising business from a temporary location or structure in the city, and who, for the purpose of carrying on such business, hires, leases or occupies any land, structure, trailer or truck for the exhibition and sale of such goods, wares or merchandise and including the sale of any article, food, beverage, fruit, vegetable or farm product; provided however that the following types of sales activities shall not constitute sales by a transient merchant:

(1) *Yard sales.* The casual and occasional sales of used household goods by the owner thereof to the public, on a nonreceiving basis, if the seller, at the time of the sale, is not engaged for profit in the business of selling goods of that or a similar nature, so long as such sales are not conducted in excess of four consecutive days and no more than two times annually.

(2) *Licensed use of right-of-way.* Sales activities conducted in compliance with an entertainment district license, a sidewalk sales permit, a farmers' or public market permit, or a sidewalk cafe license or lease issued for the premises pursuant to article VII of chapter 102 of this Code.

(3) *Street use permit.* Sales activities conducted in compliance with a street use permit issued pursuant to article XVI of chapter 102 of this Code.

(4) *Conditional use.* Sales activities conducted pursuant to a conditional use approval by the zoning board of adjustment pursuant to article 6 of chapter 134 of this Code.

(5) *Peddlers.* Sales activities conducted in compliance with a peddler's license issued pursuant to article II of this chapter.

(6) *Parks.* The sale of food and beverages in city parks with permission of the department director.

(7) *Emergency response sites.* Sales of food and beverages at the site of an emergency or disaster with the permission of the police chief, fire chief or public works director.

(8) *Mobile venders*. Sales activities by a mobile vender which are conducted in compliance with a mobile vender license issued pursuant to article V of this chapter.

(9) *Transient merchant premises permit* means a permit issued to the owner of real estate to allow a transient merchant or a mobile food vender to operate on the owner's real estate subject to the provisions of articles III and IV of chapter 78.

(O.14,807, 15,362, 15,489, 15,819)

Sec. 78-62. Exceptions.

The following sales by transient merchants do not require a license under this article; however, section 78-74 of this article shall apply to the conduct of all sales by transient merchants:

(1) The sale of food located within the area known as Cowles Commons and bounded by Locust, Walnut and 3rd Streets and the extension of 4th Street.

(2) The sale of raw fruits and/or vegetables.

(3) The sale of natural Christmas trees during the months of November and December.

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*__Editor's note—__Ord. No. 14,807, § 1, adopted Nov. 10, 2008, effective Jan. 15, 2009, repealed the former Art. III, §§ 78-61—78-68, 78-69.01—78-74, and enacted a new Art. III as set out herein. The former Art. III pertained to similar subject matter and derived from Code 1942, §§ 53-1—53-6, 53-8—53-10 and Code 1991, §§ 9-118—9-130, 9-132, as amended. See the Code Comparative Table for complete derivation.

(4) Sales activities by a charitable, educational or religious organization which is exempt from taxation under section 501(c)(3) of the United States Internal Revenue Code when the proceeds thereof shall be applied to the payment of the expenses thereof and to the charitable or religious object for which the charitable or religious society exists, provided that such sales are not conducted by such organization in excess of three consecutive days in any seven-day period at the same location.

(5) Sales activities conducted on property zoned for retail sales use and owned by a non-profit corporation where such sales activities are sponsored by the non-profit corporation and are limited to the weekends in the months of June through August.

(O.14,807, 14,966, 15,489)

Editor's note—Ord. No. 14,966 stated "Sec. 2. Paragraph (1) of Section 78-62 shall become effective January 1, 2011, to allow the pushcart operators who were formerly exempt from the licensing requirements time to obtain a transient merchant license. All other provisions of this ordinance shall be in full force and effect from and after its passage and publication as provided by law."

Sec. 78-63. Reserved.

Sec. 78-64. Licenses and permits required.

(a) Except for premises listed in subsection b, the owner or tenant of premises upon which a transient merchant or mobile food vender operates shall obtain a transient merchant premises permit as provided in this article before allowing for sale of any food, goods, wares or merchandise in the city.

(b) The following premises are exempt from the requirements of subsection a:

(1) Premises upon which sales occur that are exempt from license pursuant to section 78-62.

(2) Mobile vender zones.

(3) City parkland.

(c) Except for those exempt activities identified in section 78-62, every transient merchant shall, before offering for sale any food, goods, wares or merchandise in the city, obtain a license for their sale from the city clerk as provided in this article.

(d) A three-day transient merchant license shall permit the operation of the licensed business during three consecutive days. A thirty-day transient merchant license shall permit the operation of the licensed business during 30 consecutive days. An annual transient merchant license shall permit the operation of the licensed business for 365 consecutive days.

(O.14,807, 15,489)

Sec. 78-65. Reserved.

Sec. 78-66. Application for license—All applicants.

Every transient merchant shall apply to the city clerk for a transient merchant license at least three business days prior to use by providing the following information upon a form to be provided by the city clerk:

(1) The full name, age, permanent address and phone number of the applicant.

(2) A description of the merchandise or food to be sold.

(3) The business name and address.

(4) The starting date and duration of the proposed sale.

(5) If known, the address of the private property where the sale will be held, and the name and address of the property owner or person in control of that property.

(6) If known, a written statement from the property owner or person in control of the property listed in subsection (5) of this section that the applicant is authorized to use the property for a sale on the proposed dates.

(7) The period of time the applicant has been engaged in the same or similar business,

and the jurisdictions in which the applicant has previously conducted business in the last year.

(8) A description of the structure, vehicle, tent, trailer or other configuration from which the sale will be conducted.

(9) The application must be accompanied by a copy of all required permits and licenses, including but not limited to, a retail sales tax permit issued by the Iowa Department of Revenue. Applicant is required to obtain and establish in its application that it has obtained insurance of the type and in the amounts specified by section 78-66.01.

(10) Written permission from a street use permit applicant if the proposed location for sales are within 1,800 feet of the perimeter of a street use closure for an event when an application is on file with the city clerk for a street use permit or when the street use permit has been issued.

(11) A description of how bathroom facilities will be provided to satisfy the requirements of section 78-67.

(O.14,807, 14,966, 15,357, 15,489)

Sec. 78-66.01. Application for license—Licensees selling food.

In addition to the requirements in section 78-66, any transient merchant selling food must include in its application the information in section 78-204 and must comply with the requirements of sections 78-204.5, 78-205 and 78-212(g), except that automobile liability insurance must have a limit of not less than $500,000.00 per occurrence, combined single limit. Merchants operating under a valid transient merchant license on the effective date of this amendment are exempt from the requirement of a Type 1 hood with fire suppression system on any vehicle already in use until the first inspection following December 31, 2017, at which time the vehicle must comply with all existing fire codes. The requirements of section 78-204(7)(c) and section 78-212(g) apply to transient merchants beginning on January 1, 2018.
(O.15,489)

Sec. 78-67. Application for a transient merchant premises permit.

At least three business days prior to allowing a transient merchant or mobile food vender, currently licensed by the city, to operate on premises within the city, an owner or lessee of the premises must obtain a transient merchant premises permit from the city clerk. The application for the permit must be on a form provided by the city clerk and must demonstrate to the satisfaction of the city clerk and the zoning administrator that the premises meet the following requirements:

(1) All applicable requirements of this article, the City Code, the Iowa Code and the Iowa Administrative Code.

(2) The premises is within a commercial or industrial zoning district.

(3) The premises is not on a parcel having a residential use as its principle use.

(4) Trailers, vehicles, tents, equipment, and areas used for the storage, display or sale of food or merchandise will be located only on a paved surface outside required setback for structures under chapters 134 and 135 and outside any required fire lanes and drive approaches.

(5) The premises has at least three paved off-street parking spaces dedicated to the transient merchant or mobile vender operations and is served by a paved driveway from a public right-of-way. Property located in DX1, DX2 and DXR zoning districts are exempt from the off-street parking requirement. For purposes of this subsection, a transient merchant or mobile vender may share parking with an existing business on the site only if available parking is sufficient to serve the normal operations of both. If the operation of a transient merchant or mobile vender at the site has caused an

overflow of customer or employee parking into the street or other private parking lots in the vicinity within the past year, shared parking is presumed to be insufficient.

(6) The premises must have a dumpster enclosure unless the premises is legally in use by a licensed transient merchant on the effective date of this amendment, in which case a dumpster enclosure must be provided within one year after the issuance of a premises permit. The requirement for a dumpster enclosure may be waived if permit holder can establish to the satisfaction of the neighborhood inspection zoning administrator that it has a non-residential alternative location for taking its garbage.

(7) Only one transient merchant or mobile vender currently licensed by the city is allowed to operate on the parcel at any time.

(8) The permit holder must provide a paved area for display and sale by the transient merchant. This provision does not apply to premises that are covered by a valid transient merchant license on the effective date of this ordinance if a premises permit is applied for on or before the expiration of the existing transient merchant license. This exemption terminates when a premises permit is not timely renewed or is denied for any reason. The owner of the premises must comply with all zoning requirements relating to the premises.

(9) If the transient merchant or mobile vender is selling or serving food, the premises must also:

a. Assure that the transient merchant or mobile vender complies with the requirements established by Iowa Administrative Code § 481-31 for a food establishment other than a food processing plant.

b. Provide bathroom facilities for the business workers and customers on the licensed premises or by agreement for the use of bathroom facilities located within a reasonable distance from the licensed facilities that are open the same hours as the transient merchant or mobile vendor.

c. The premises must not be located within 100 feet of any public entrance into the waiting of service area of any street level restaurant operating on the date of the application. This provision does not apply to premises permits issued to locations at which any transient merchant is legally operating within a 100 feet of an existing restaurant on the effective date of this ordinance; however, this provision applies if a permit lapses for any period of time or if a restaurant subsequently begins operations within 100 feet of the premises, then this provision applies to all future applications.

(O.14,807, 14,966, 15,489, 15,640, 15,819)

Sec. 78-68. Cash bond.

(a) Except as provided in paragraph (b) below, no transient merchant license shall be issued until the applicant has delivered to the city clerk a cash bond as set out in the schedule of fees. The bond shall be held to indemnify and pay the city any penalties or costs incurred in the enforcement of any of the sections of this article and indemnify or reimburse any purchaser of food, goods, wares, merchandise or stock for any judgment which may be obtained by a purchaser for damages in any action commenced within three months from the date of purchase, due to misrepresentations as to the kind, quality or value of such food, goods, wares, merchandise or stock, whether the misrepresentations were made by the owner or by his or her servants, agents or employees, either at the time of making the sale or through any advertisement of any character, printed or circulated, with reference to such stock of food, goods, wares or merchandise or any part thereof.

(b) The balance of the bond shall be released by the city clerk and returned to the applicant upon request by the applicant at any time more than four months after expiration of all transient merchant licenses for which the cash bond was provided, unless the city clerk has received notice of a pending action in the state or federal courts seeking a judgment upon a claim eligible for payment from the bond. Except as otherwise provided by court order, the city clerk shall not release any bond during the pendency of any such action.
(O.14,807, 15,489)

Sec. 78-69. License and permit fee.

(a) The applicant for a transient merchant license or a transient merchant premises permit shall pay a fee at the time of filing the application in the amount set in the schedule of fees adopted by city council by resolution.

(b) In the event the application for a transient merchant license or a transient merchant premises permit is denied or withdrawn by the applicant, either all or a portion of the license fee in an amount set in the schedule of fees adopted by the city council shall be retained by the city to defray the administrative costs incurred.
(O.14,190, 15,489)

Sec. 78-69.01. Reserved.

Editor's note—Ord. No. 15,489, § 1, adopted July 25, 2016, repealed § 78-69.01, which pertained to priority of street use events, refund of license fee and derived from Ord. No. 14,807.

Sec. 78-70. License or permit issuance.

(a) A transient merchant license or transient merchant premises permit shall not be issued more than fifteen days in advance of the commencement of the term of the license.

(b) A transient merchant license or transient merchant premises permit shall be denied to any applicant who has operated a transient merchant business or transient merchant premises in material violation of any of the requirements of this article or any other chapter of this Code within the prior 180 days.

(c) The city clerk or the city clerk's designee shall, upon satisfaction that the information provided in an application for a transient merchant license or transient merchant premises permit is true and correct, and that the requirements of this article for issuance of the license or permit have been satisfied, and upon payment of the license or permit fee and posting of a cash bond, if required by this article, issue the license.

(d) The city clerk shall deny any application for the operation of a transient merchant business or transient merchant premises that does not conform with all applicable requirements of this article, the City Code, the Iowa Code and the Iowa Administrative Code.
(O.14,807, 15,489)

Sec. 78-70.01. Appeal of denial.

(a) The denial of an application for a transient merchant license or transient merchant premises permit may be appealed pursuant to the administrative appeal process set forth in chapter 3 of this Code.

(b) In the event an application for a transient merchant license or transient merchant premises permit is denied, the city clerk or the city clerk's designee shall cause notice of such denial to be promptly communicated to the applicant or the applicant's representative by phone at the phone number provided in the application. Written notice shall also be sent by first class mail to the applicant at the business address identified in the application informing the applicant of the denial, the reasons therefore, and the applicant's right to appeal the denial to an administrative hearing officer by filing a written notice of appeal with the city clerk within ten business days after the date of such notice.
(O.14,807, 15,130, 15,489)

Sec. 78-71. Transferability of license or permit.

Transient merchant licenses or transient merchant premises permits issued under this article shall not be transferable.
(O.14,807, 15,489)

Sec. 78-72. Renewal of license or permit.

Annual and thirty-day transient merchant licenses may be renewed for the same period so long as there have been no violations of this article, upon payment of the fee required by section 78-69 of this article and upon posting of the cash bond required by section 78-68 of this article. Three-day transient merchant licenses are not subject to renewal. Transient merchant premises permits may be renewed so long as there have been no violations of this article, upon payment of the fee required by section 78-69 of this article.
(O.14,807, 15,489)

Sec. 78-73. Suspension or revocation of license or permit.

(a) Upon complaint or reasonable suspicion that a licensee or permit holder or the licensee's or permit holder's employees or agents has furnished any false information required under this article or has violated or failed to comply with any of the requirements of this article or any other chapter of this Code, the city clerk or the city clerk's designee may cause the matter to be investigated. If the city clerk or the city clerk's designee finds that the licensee or permit holder or the licensee's or permit holder's employees or agents has furnished any false information required under this article or has violated or failed to comply with any of the requirements of this article or any other chapter of this Code, the city clerk or the city clerk's designee may give notice to the licensee of the city's intent to suspend or revoke the license, or to deny its renewal.

(b) Notice of the city's intent to suspend, revoke, or deny the renewal of a license or permit and a brief summary of the factual basis for such remedial action shall be served upon the licensee or permit holder. Such notice shall inform the licensee or permit holder of the time, date and place of a meeting where the licensee or permit holder may meet with the city clerk or the city clerk's designee for the purpose of presenting additional information regarding the intended remedial action and the factual basis therefore, and that a final decision on appropriate remedial action will made after the schedule time for such meeting. Such notice shall be served upon the licensee or permit holder by personal service or by service upon a cashier, 18 years of age or older, for the business where business is conducted, or by regular mail addressed to the licensee at the licensee's business address as shown on the application a minimum of five business days prior to the date set for the meeting.

(c) If, after the scheduled meeting and after consideration of all the available information including any information provided at the meeting by the licensee or permit holder, the city clerk or the city clerk's designee makes a finding based on substantial evidence that a violation of this article or another chapter of this Code did in fact take place as alleged, the city clerk or the city clerk's designee may suspend or revoke the license or permit or deny its renewal; the determination of whether to so suspend or revoke the license or permit or deny its renewal shall be in the discretion of the city clerk or the city clerk's designee and shall be dependent upon the circumstances surrounding the violation and its severity. The decision to suspend, revoke or deny renewal of a license or permit shall be in writing and shall identify the basis for such action. The decision shall be promptly served in the same manner as required for the service of the notice required under subsection (b), and shall not be effective until ten days after so served. The decision shall also give notice that it may be appealed to an administrative hearing officer by filing a notice of appeal with the city clerk within ten business days of the date of the decision.

(d) The decision of the city clerk or the city clerk's designee to suspend, revoke or deny renewal of a license or permit pursuant to this section may be appealed pursuant to the administrative appeal process set forth in chapter 3 of this Code.

(e) A licensee or permit holder whose license or permit has been revoked or denied for renewal shall not be eligible for a license or permit under this article for a period of 180 days after such revocation or denial of renewal.
(O.14,807, 15,130, 15,489)

Sec. 78-74. Restrictions on operations of transient merchants and transient merchant premises.

(a) Transient merchants and mobile food venders operating on premises subject to a transient merchant premises permit shall not sell to any person located on any public street, alley, driveway access, or public way.

(b) Only one sign is allowed on premises that are subject to a transient merchant premises permit. Such sign shall be located outside the required front yard setback area designated by chapter 135 of this Code. Such sign shall have a single face or two parallel faces, with each face not to exceed 24 square feet in area. Such sign shall be securely anchored so as to prevent its displacement by weather. Vehicle signs painted or attached directly to the body of the vehicle shall not be subject to this limitation.

(c) Transient merchants and mobile food venders operating on premises subject to a transient merchant premises permit shall not use any display that exceeds the height of 15 feet.

(d) Transient merchants and mobile food venders operating on premises subject to a transient merchant premises permit shall display wares or products using anchoring or affixing such wares or products in such a manner so as to prevent their displacement by weather conditions.

(e) Transient merchants and mobile food venders operating on premises subject to a transient merchant premises permit shall not conduct business within the setback area designated by chapter 135 of this Code. Transient merchants and mobile food venders operating on premises subject to a transient merchant premises permit are only allowed to sell, display or store merchandise or equipment within the boundaries of the area designated for the operation of such business in a permit issued pursuant to this article.

(f) Transient merchants and mobile food venders operating on premises subject to a transient merchant premises permit must display the license required by this article and a valid sales tax permit in a manner that it is readily visible to the public during operation.

(g) Transient merchants shall operate the business in a manner that does not violate any applicable food and sanitation laws.

(h) Transient merchants and mobile food venders operating on premises subject to a transient merchant premises permit shall remove all equipment, temporary structures, garbage, and any vehicle or trailer used in the operation of the business from the licensed premises and the underlying parcel at any time not open for business and during hours business is prohibited. This section does not apply to temporary closures of the business of up to 30 minutes two times during allowed hours of operations. This requirement does not apply to the sale of raw fruits and vegetables, natural Christmas trees, live plants and nursery stock.

(i) Private property owner shall not allow, permit or authorize any person to conduct a transient sale or allow a mobile food vender to operate on the premises without a premises permit required by this article.

(j) Private property owners or lessees shall not allow, permit, or authorize the use of any property within the control of the private property owner or lessee in violation of any of the sections of this article.

(k) Transient merchants and mobile food venders operating on premises subject to a transient merchant premises permit shall not operate the business in a manner that violates the Noise Control Ordinance of the City of Des Moines set forth in article IV of chapter 42 of this Code.

(l) Only one transient merchant or mobile vender may operate on premises with permit at any time.

(m) Hours of operation. Transient merchants are permitted to operate between 5:30 a.m. and 1:30 a.m. the following day unless the premises is located within 125 feet of any residentially-zoned property. Within 125 feet of a residential property, transient merchants are allowed to operate between 8:00 a.m. and 10:30 p.m. on the same day. For any transient merchant licensed to operate on the effective date of this amendment, the transient merchant is allowed to operate between 5:30 a.m. and 1:30 a.m. the following

day as long as the transient merchant is operating with a license on the same premises it operated on the effective date of this amendment and its ownership does not change. If a license lapses for any period of time, the licensee is not permitted to operate outside of 8:00 a.m. to 10:30 p.m. the same day within 125 feet of a residential property. For purposes of this section, DX1, DX2 and DXR, are not considered residentially zoned property.

(n) The display and sale area cannot exceed 1,000 square feet, with no side exceeding 50 feet in length.
(O.14,807, 14,966, 15,489, 15,819)

Sec. 78-75. Municipal infractions and penalties.

(a) Any person who violates this article shall be guilty of a municipal infraction punishable pursuant to Municipal Code section 1-15. Any person who violates a section of this article after having previously been found guilty of violating the same section of this article shall be guilty of a repeat offense.

(b) Relief under this section shall be in addition to the remedies set forth in section 78-73.
(O.15,489)

Secs. 78-76—78-100. Reserved.

ARTICLE IV. RESERVED*

Secs. 78-101—78-199. Reserved.

*__Editor's note—__Ord. No. 15,712, § 1, adopted Oct. 8, 2018, repealed Art. IV, §§ 78-101—78-115, which pertained to solicitation of funds and derived from Code 1942, §§ 61-161-3, 61-5—61-7, 61-9, 61-10; Ord. No. 5091; Ord. No. 5356; Code 1954; Ord. No. 6023; Code 1962, §§ 52-1—52-3, 52-6, 52-8—52-10, 52-12, 52-13; Ord. No. 8654; Code 1975, §§ 22-1—22-11; Ord. No. 8988; Ord. No. 9231; Code 1979, §§ 22-1, 22-3.01, 22-4—22-9, 22-9.01, 22-11; Code 1985, §§ 22-1—22-15; Ord. No. 11,224; Ord. No. 11,240; Ord. No. 11,534; Code 1991, §§ 22-1—22-15; Ord. No. 13,944; Ord. No. 14,190; Ord. No. 14,589; Ord. No. 15,144.

ARTICLE V. MOBILE FOOD VENDERS†

Sec. 78-200. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Certified food protection manager is a person who holds an active certified food protection manager certificate from a program approved by the National Conference for Food Protection.

Fire marshal shall mean any individual designated by the fire chief to serve as the city fire marshal, or to perform the duties of the fire marshal under this article.

Food service establishment shall have that meaning established by § 481-30.2 of the Iowa Administrative Code.

Meter hood means a bag owned by the city and issued to a mobile vender for temporary use during the term of the mobile vender's license. Subject to the requirements of this article, the meter hood may be placed over a parking meter to reserve and hold a parking space within the mobile vender zones for use by the mobile vender to whom the meter hood was issued. However, nothing in this article shall be interpreted as authorizing a mobile vender vehicle to be parked at a location which would not otherwise then be available for general public use, unless the use of such location is specifically limited to use by mobile vender vehicles.

Mobile vender means a person engaged in the business of selling food or beverages from a mobile vender vehicle. For purposes of operation in a city park pursuant to section 74-210, the term "mobile vender" includes a transient merchant licensed to sell food pursuant to Article III. A transient merchant licensed to sell food and operating in a city park must comply with all relevant provisions in Article III, including specifically, but not limited to, the requirements of sections 78-66 and 78-66.01.

†__Cross reference—__Mobile food venders in designated parks, § 74-210.

Mobile vender vehicle means a motorized vehicle or trailer used for the sale of food or beverages for immediate consumption.

Restaurant means a food service establishment which derives at least 50 percent of its gross receipts from the sale of food for immediate consumption on the premises.

Tow vehicle means a motorized vehicle used to pull a trailer used as a mobile vender vehicle.

Zone means the mobile vender zones as defined in section 78-201 of this article.
(O.15,362, 15,447, 15,489)

Sec. 78-201. Location of operation.

(a) Subject to the requirements of this article, a mobile vender license is only valid for the sale of food or beverages for immediate consumption from a mobile vender vehicle lawfully parked within one of the following zones or locations:

(1) The downtown mobile vender zones identified in subsection (b), below.

(2) The neighborhood mobile vender zones identified in subsection (c), below.

(3) A specified location, including adjacent streets, outside of the zones referenced in subsections (1) and (2) above, in conjunction with an event held pursuant to a temporary use permit issued by the neighborhood services director in accordance with section 134-3.10.

(4) A specified location, including adjacent streets, outside of the zones referenced in subsections (1) and (2) above, in conjunction with events held of a recurring nature pursuant to a conditional use approved by the board of adjustment in accordance with section 134-6.4 of this code.

(b) The downtown mobile vender zones consist of and are limited to the following street segments:

(1) *Downtown mobile vender zone A:*

Grand Avenue from 4th Street to 15th Street,

Locust Street from 4th Street to 16th Street,

Walnut Street from 4th Street to 16th Street,

4th Street from Grand Avenue to Locust Street,

5th Street from Grand Avenue to Walnut Street,

6th Street from Grand Avenue to Walnut Street,

7th Street from Grand Avenue to Walnut Street,

8th Street from Grand Avenue to Walnut Street,

9th Street from Grand Avenue to Walnut Street,

10th Street from Grand Avenue to Walnut Street,

12th Street from Grand Avenue to Walnut Street,

13th Street from Grand Avenue to Walnut Street,

15th Street from Grand Avenue to Walnut Street, and

16th Street from Locust Street to Walnut Street.

(2) *Downtown mobile vender zone B:*

Center Street from 5th Avenue to 9th Street,

Crocker Street from 5th Avenue to 9th Street,

Park Street from 3rd Street to 7th Street, and

Watson Powell Jr Way from 3rd Street to 7th Street.

(3) *Downtown mobile vender zone C:*

Cherry Street from 5th Avenue to 9th Street,

Mulberry Street from 5th Avenue to 7th Street, and

5th Avenue from Vacated Vine Street to Mulberry Street.

(4) *Downtown mobile vender zone D:*

East Court Avenue from East 2nd Street to East 6th Street,

East Grand Avenue from Robert D Ray Drive to East 4th Street,

Locust Street and East Locust Street from the west end of the Locust Street bridge over the Des Moines River to East 4th Street,

East Walnut Street from East 1st Street to East 7th Street,

Robert D Ray Drive from East Grand Avenue to East Locust Street,

East 2nd Street from East Walnut Street to E Court Avenue,

East 3rd Street from East Walnut Street to E Court Ave,

East 4th Street from East Walnut Street to East Court Avenue, and

East 7th Street from East Walnut Street to a point 240 feet south of East Court Avenue.

(c) The neighborhood mobile vender zones consist of and are limited to the following street segments during the days of the week and the hours of the day identified for each such zone below:

(1) Neighborhood mobile vender zone 1: *Reserved*

Location:

Days and hours of operation:

(d) Subject to the requirements of this article, a mobile food vendor license is valid for the sale of food or beverages for immediate consumption from a mobile food vender vehicle on premises for which a transient merchant premises permit has been issued. In addition to being subject to the requirements of this article, a mobile vender operating on private property is deemed a transient merchant for purposes of article III during those operations and is subject to all requirements contained in article III except for the requirement that it obtain a transient merchant license.
(O.15,362, 15,447, 15,489, 15,526, 16,046)

Sec. 78-202. Reserved.

Editor's note—Ord. No. 15,447, § 1, adopted Feb. 17, 2016, repealed § 78-202, which pertained to pilot project—Transitional provisions and derived from Ord. No. 15,362; Ord. No. 15,418.

Sec. 78-203. License required.

(a) Every mobile vender shall, before offering for sale any food or beverages in the city, obtain a license for their sale from the city clerk as provided in this article.

(b) A mobile vender license authorizes the operation of a mobile vender vehicle upon the public streets within the mobile vender zones or locations set forth in subsection 78-201(a), subject to the regulations set forth in this article and to any applicable conditions set forth in a temporary use permit or approved conditional use.

(c) A separate mobile vender license shall be required for each mobile vending vehicle.
(O.15,362, 16,046)

Sec. 78-204. Application for license.

(a) Every mobile vender shall apply to the city clerk for a mobile vender license at least three business days prior to use by providing the following information upon a form to be provided by the city clerk, and paying the application fee in the amount set in the schedule of fees adopted by the city council by resolution:

(1) The full name, age, permanent address and phone number of the applicant.

(2) The business name and address.

(3) A description of the motorized vehicle or trailer from which the sale will be conducted, including the license plate number, and the length of the motorized vehicle or the trailer and tow vehicle.

(4) A summary of the cuisine of food to be sold.

(5) The period of time the applicant has been engaged in the same or similar business, and the jurisdictions in which the applicant has previously conducted business in the last year.

(6) The application must be accompanied by a copy of a retail sales tax permit issued to the applicant by the Iowa Department of Revenue.

(7) If the mobile vender sells food or beverages other than prepackaged items that do not require hot or cold handling procedures, then the application shall also contain the following:

a. A copy of the mobile food unit license issued by the Iowa Department of Inspections and Appeals for the mobile vender vehicle.

b. A copy of the appropriate food establishment license issued by the Iowa Department of Inspection and Appeals for any commissary kitchen or other premises where food is prepared for sale from the mobile vender vehicle, and the name and contact information for the individual or business responsible for the operation of such kitchen or premises.

c. The name of one or more certified food protection managers employed by the business and a copy of their current certification as a certified food protection manager.

d. The addresses of the businesses or facilities at which any fat, oil or grease generated in the operation of the mobile vender business are disposed of, including the contact information for the individual or business responsible for the operation of each such business or facility. Any change in the businesses or facilities used for the disposal of such fat, oil and grease shall be reported to the city clerk in writing by the mobile vender within three business days of the first use of a the new business or facility.

e. A certificate of annual compliance issued by the fire marshal pursuant to section 78-204.5 identifying that the mobile vender vehicle has been inspected within the prior six months and determined to be in compliance with the fire code.

(8) The location where the mobile vender vehicle will be regularly parked when not in use.

(9) Evidence of liability insurance for operation of the mobile vender vehicle, or the tow vehicle if the mobile vender vehicle is a trailer, providing the coverages required by section 78-205.

(b) A mobile vender shall notify the city clerk in writing of any change to the information provided pursuant to subsection a, above, within five business days of such change.
(O.15,362, 15,447)

Sec. 78-204.5. Inspection.

(a) If an applicant for a mobile vender license proposes to sell food or beverages other than prepackaged items that do not require hot or cold handling procedures, the mobile vender vehicle must be inspected by the fire marshal and determined to be in compliance with the fire code as provided in this section.

(b) An applicant for a mobile vender license who sells food or beverages other than prepackaged items that do not require hot or cold handling procedures shall pay an inspection fee to the city clerk in the amount set in the schedule of fees adopted by the city council by resolution. The city clerk shall direct the applicant to contact the fire marshal to schedule an inspection of the mobile vender vehicle and to present the receipt to the fire marshal as proof of payment of the inspection fee.

(c) Upon direction by the city clerk after paying the inspection fee, the applicant shall contact the fire marshal to schedule an inspection of the mobile vender vehicle and shall cooperate in scheduling and completing the inspection.

(d) If the fire marshal determines after inspection that the mobile vender vehicle satisfies the applicable requirements of the fire code, the fire marshal shall issue a certificate of annual compli-

ance identifying that the mobile vender vehicle has been inspected and determined to be in compliance with the fire code.
(O.15,447)

Sec. 78-205. Insurance.

Every mobile vender shall maintain liability insurance for operation of the mobile vender vehicle, or the tow vehicle if the mobile vender vehicle is a trailer, and provide proof of the following coverages in its application for a mobile vender license and any time upon request by the city clerk:

(1) An insurance policy or policies, or certificate of insurance, issued by an insurance company having an A.M. Best rating of no less than B+. The policy(ies) shall include commercial general liability insurance coverage and automobile liability insurance coverage, or the equivalent thereof, for the owner of the mobile vender vehicle and tow vehicle if applicable, and for the mobile vender business if different from the vehicle owner. The commercial general liability insurance shall include coverage for bodily injury, death and property damage with limits of liability of not less than $1,000,000.00 per occurrence and aggregate combined single limit. The automobile liability insurance shall include coverage for bodily injury, death and property damage with limits of liability of not less than $1,000,000.00 per occurrence, combined single limit.

(2) The certificate of insurance referred to in this section shall provide that the insurance policy or policies have been endorsed to provide 30 days advance written notice of cancellation, 45 days advance written notice of non-renewal, and ten days advance written notice of cancellation due to nonpayment of premium, and that these written notices shall be provided by e-mail, facsimile, delivery or regular mail to the city clerk.

(3) The cancellation or other termination of any required insurance policy shall automatically revoke and terminate the mobile vender license, unless another policy(ies), complying with this section, shall be provided and in effect at the time of such cancellation or termination. The city clerk shall immediately issue written notification of the revocation of the mobile vender license.

(O.15,362)

Sec. 78-206. Cash bonds.

(a) Except as provided in paragraph (c) below, no mobile vender license shall be issued until the applicant has delivered to the city clerk a cash bond as set out in the schedule of fees. The bond shall be held to indemnify and pay the city any penalties or costs incurred in the enforcement of any of the sections of this article and indemnify or reimburse any purchaser of food or beverages for any judgment which may be obtained by a purchaser for damages in any action commenced within three months from the date of purchase, due to misrepresentations as to the kind, quality or value of such food or beverages, whether the misrepresentations were made by the owner or by his or her agents or employees, either at the time of making the sale or through any advertisement of any character, printed or circulated, with reference to such food or beverages.

(b) A single bond may be used for all licenses obtained by the same mobile vender.

(c) The balance of the bond shall be released by the city clerk and returned to the applicant upon request by the applicant at any time more than four months after expiration of all mobile vender licenses for which the cash bond was provided, unless the city clerk has received notice of a pending action in the state or federal courts seeking a judgment upon a claim eligible for payment from the bond. Except as otherwise provided by court order, the city clerk shall not release any bond during the pendency of any such action.
(O.15,362, 15,489)

Sec. 78-207. Meter hoods or metered parking.

(a) In order to operate in a downtown mobile vender zone, a mobile vender, is required to obtain a meter hood to be issued by the city clerk

for each licensed mobile vender vehicle. If the mobile vender vehicle, or the mobile vender vehicle and tow vehicle if the mobile vender is a trailer, is longer than 20 feet and no longer than 25 feet the mobile vender may elect to obtain a second meter hood from the city clerk. If the mobile vender vehicle is a trailer, and the mobile vender vehicle and tow vehicle are longer than 25 feet, the mobile vender is required to obtain a second meter hood to be issued by the city clerk

(b) The annual fee for the use of the first and second meter hoods issued with each mobile vender license shall be in the amount set in the schedule of fees adopted by the city council by resolution.

(c) To secure the return of each meter hood at the expiration or termination of the mobile vender license, a deposit in the amount set in the schedule of fees adopted by the city council by resolution shall be collected by the city clerk for each meter hood so issued, including replacement hoods. Upon request to the city clerk and return of the meter hood in good condition, excepting ordinary wear, the city clerk shall cause the deposit to be refunded to the mobile vender by mailing payment to the address of record for such vender.

(d) In the event any meter hood is lost, stolen or damaged, the mobile vender may obtain a replacement meter hood upon payment of the replacement hood fee and deposit in the amounts set in the schedule of fees adopted by the city council by resolution.

(e) A mobile vender must pay for parking fees at a meter for both the tow vehicle and the mobile vender vehicle for a permitted or approved location outside a mobile vendor zone.
(O.15,362, 15,489, 16,046)

Sec. 78-208. License issuance.

(a) A mobile vender license shall be denied to any applicant who has operated a mobile vender business in material violation of any of the requirements of this article or any other chapter of this Code within the prior 180 days.

(b) The city clerk or the city clerk's designee shall, upon satisfaction that the information provided in an application for a mobile vender license is true and correct and that the requirements of this article for issuance of the license have been satisfied, and upon payment of the cash bond required by section 78-206 and the meter hood fee, if required to operate, and deposit required by section 78-207, issue the license and one or two meter hoods as provided in section 78-207. The license shall identify whether the mobile vender is limited to the sale of prepackaged food and beverages that do not require hot or cold handling procedures.

(c) The city clerk shall deny any application for the operation of a mobile vender business that does not conform with all applicable requirements of this article, the City Code, the Iowa Code and the Iowa Administrative Code.

(d) In the event an application for a mobile vender license is denied, the city clerk or the city clerk's designee shall cause notice of such denial to be promptly communicated to the applicant or the applicant's representative by phone at the phone number provided in the application. Written notice shall also be sent to the applicant at the business address identified in the application informing the applicant of the denial, the reasons therefore, and the applicant's right to appeal the denial to an administrative hearing officer by filing a written notice of appeal with the city clerk within ten business days after the date of such notice.

(e) If no appeal from the denial of a license is timely filed, or if the denial is not reversed upon final disposition of any appeal, the city clerk shall promptly refund the refundable portion of the application fee, as set in the schedule of fees adopted by the city council by resolution.

(f) A mobile vender license shall be effective for one year, or the portion thereof remaining after issuance of the license until the following March 1st. All mobile vender licenses shall expire on March 1st.
(O.15,362, 15,447, 15,489)

Sec. 78-209. Appeal of denial.

The denial of an application for a mobile vender license may be appealed pursuant to the administrative appeal process set forth in chapter 3 of this Code.
(O.15,362)

Sec. 78-210. Transferability of license.

(a) Mobile vender licenses issued under this article are not transferable between individuals or businesses.

(b) A mobile vender may apply to transfer their mobile vender license to another mobile vender vehicle as follows:

(1) The mobile vender shall file an amended application meeting the requirements of section 78-204 for the new mobile vender vehicle and shall return the mobile vender license previously issued for the original mobile vender vehicle.

(2) The mobile vender shall pay the transfer fee in the amount set forth in the schedule of fees adopted by the city council by resolution.

(c) The city clerk or the city clerk's designee shall, upon satisfaction that the information provided in the amended application for a mobile vender license is true and correct, and that the requirements of this article for issuance of the amended license have been satisfied, issue the new license.
(O.15,362)

Sec. 78-211. Suspension or revocation of license.

(a) Upon complaint or reasonable suspicion that a licensee or the licensee's employees or agents has furnished any false information required under this article or has violated or failed to comply with any of the requirements of this article or any other provisions of this Code, the city clerk or the city clerk's designee may cause the matter to be investigated. If the city clerk or the city clerk's designee finds that the licensee or the licensee's employees or agents has furnished any false information required under this article or has violated or failed to comply with any of the requirements of this article or any other provisions of this Code, the city clerk or the city clerk's designee may give notice to the licensee of the city's intent to suspend or revoke the license, or to deny its renewal.

(b) Notice of the city's intent to suspend, revoke, or deny the renewal of a license and a brief summary of the factual basis for such remedial action shall be served upon the licensee. Such notice shall inform the licensee of the time, date and place of a meeting where the licensee may meet with the city clerk or the city clerk's designee for the purpose of presenting additional information regarding the intended remedial action and the factual basis therefore, and that a final decision on appropriate remedial action will made after the schedule time for such meeting. Such notice shall be served upon the licensee by personal service or by service upon a cashier for the business at a licensed premises, or by regular mail addressed to the licensee at the licensee's business address as shown on the application a minimum of five business days prior to the date set for the meeting.

(c) If, after the scheduled meeting and after consideration of all the available information including any information provided at the meeting by the licensee, the city clerk or the city clerk's designee makes a finding based on substantial evidence that a violation of this article or another provision of this Code did in fact take place as alleged, the city clerk or the city clerk's designee may suspend or revoke the license or deny its renewal; the determination of whether to so suspend or revoke the license or deny its renewal shall be in the discretion of the city clerk or the city clerk's designee and shall be dependent upon the circumstances surrounding the violation and its severity. The decision to suspend, revoke or deny renewal of a license shall be in writing and shall identify the basis for such action. The decision shall be promptly served in the same manner as required for the service of the notice required under subsection (b), and shall not be effective until ten days after so served. The decision shall also give notice that it may be appealed to an administrative hearing

officer by filing a notice of appeal with the city clerk within ten business days of the date of the decision.

(d) If the city clerk or the city clerk's designee upon investigation of a complaint or reasonable suspicion, makes a finding based upon substantial evidence that a licensee or the licensee's employees or agents has again furnished any false information required under this article or again has violated or failed to comply with any of the requirements of this article or any other provisions of this Code which are the same as, or of a similar nature to, violations which were determined to have occurred within the prior 18 months in a decision issued pursuant to subsection (c) above, the city clerk or the city clerk's designee may decide to suspend, revoke or deny the license without another meeting with the licensee. The determination of whether to so suspend or revoke the license or deny its renewal shall be in the discretion of the city clerk or the city clerk's designee and shall be dependent upon the circumstances surrounding the violations and their severity. The decision to suspend, revoke or deny renewal of a license shall be in writing and shall identify the basis for such action. The decision shall be promptly served in the same manner as required for the service of the notice required under subsection (b), and shall not be effective until ten days after so served. The decision shall also give notice that it may be appealed to an administrative hearing officer by filing a notice of appeal with the city clerk within ten business days of the date of the decision.

(e) The decision of the city clerk or the city clerk's designee to suspend, revoke or deny renewal of a license pursuant to this section may be appealed pursuant to the administrative appeal process set forth in chapter 3 of this Code.

(f) A licensee whose license has been revoked or denied for renewal shall not be eligible for another such license for a period of 180 days after such revocation or denial of renewal.
(O.15,362, 15,447)

Sec. 78-212. General regulations.

(a) *Hours of operation.*

(1) *Downtown mobile vender zones.* Between 1:30 a.m. and 5:30 a.m., no mobile vender vehicle shall be open for business within the downtown mobile vender zones. Between 1:45 a.m. and 5:30 a.m., no mobile vender vehicle may be parked within the downtown mobile vender zones.

(2) *Neighborhood mobile vender zones.* No mobile vender vehicle shall be open for business within a neighborhood mobile vender zone at any time outside the hours of operation established for that mobile vender zone in section 78-201. No mobile vender vehicle shall be parked within a neighborhood mobile vender zone at any time outside the hours of operation established for that mobile vender zone in section 78-201, except that the mobile vender shall be allowed 15 minutes beyond the end of such hours of operation to prepare the mobile vender vehicle for movement.

(3) *Permitted or approved locations outside mobile vendor zones.* Between the hours set for the permitted or approved event but in no case longer than five hours at a metered parking space.

(b) *Allowed locations.*

(1) No mobile vender shall conduct any sale from a mobile vender vehicle which is not lawfully parked in a parallel parking space in a mobile vender zone.

(2) No mobile vender shall conduct any sale from a parking space which is designated as an accessible parking space with a blue meter, or designated as a 30 minute parking space with a green meter, or designated as restricted for residential permit parking only.

(3) No mobile vender shall conduct any sale from a mobile vender vehicle located within 100 feet of any public entrance into the waiting or service area of any street level restaurant then open for business.

(4) During the time that any part of a street is closed for an event for which a street use permit has been issued, and except as allowed within the event area by the

party holding the street use permit, no mobile vender shall conduct any sale within the affected blocks or within two blocks of the affected blocks. For purposes of this section:

a. A "block" is the entire right-of-way of a public street extending from the centerline of an intersecting street or the lateral centerline of any river bridge, to the centerline of the next intersecting street or the lateral centerline of any river bridge, whichever is closer; and,

b. The "affected blocks" are any blocks containing any portion of the street closure for which the street use event has been issued.

(c) *Mobile vender vehicle.*

(1) Any motorized vehicle used as a mobile vender vehicle shall be no larger than 37 feet long and eight and one-half feet wide. Any trailer used as a mobile vender vehicle together with the tow vehicle shall be no larger than 37 feet long, and eight and one-half feet wide.

(2) Except for the storage and preparation of food and beverages at a separate kitchen or commissary kitchen, all storage and preparation of food and beverages offered for sale by a mobile vender shall occur within a fully enclosed space within the mobile vender vehicle.

(3) A trailer used as a mobile vender vehicle may be detached from the tow vehicle for leveling, but the tow vehicle must remain in front of the trailer at all times while the trailer is parked in a mobile vender zone.

(4) A mobile vender vehicle shall not have a second story or any interior space used for customer service or seating.

(d) *Display of license.* The license required by this article and a valid sales tax permit for such business shall be displayed within the mobile vender vehicle a manner such that it is readily visible to all persons seeking to conduct business with the mobile vender.

(e) *Sale of merchandise.* No mobile vender shall offer any merchandise or wares for sale other than food and beverages for immediate consumption. If the license identifies that the mobile vender is limited to the sale of prepackaged food and beverages that do not require hot or cold handling procedures, the vender shall not offer any other items for sale.

(f) *Meter hoods.*

(1) No mobile vender shall cause or permit any meter hood issued to them to be placed over any parking meter outside the mobile vender zones at any time. No mobile vender shall cause or permit any meter hood issued to them to be placed over any parking meter inside the mobile vender zones at any time between 1:45 a.m. and 5:30 a.m. Any meter hood found being used in violation of this paragraph may be immediately confiscated by any police officer or community development inspector who shall cause it to be returned to the city clerk. Confiscation of a meter hood may include cutting, ripping or destroying the meter hood if required for its prompt removal.

(2) No person shall place a meter hood over the parking meter for a parking space that is then occupied by any vehicle other than the mobile vender vehicle operated by the mobile vender to whom the meter hood was issued.

(3) When a parking meter is covered by a mobile vender bag, no person shall park any vehicle in the corresponding parking space except the mobile vender vehicle operated by the mobile vender to whom the meter hood was issued. Violation of this paragraph shall also constitute illegal parking in violation of a traffic control device.

(4) No mobile vender shall conduct any sale from a mobile vender vehicle within the downtown mobile vender zones unless such vehicle, including the tow vehicle if applicable, is lawfully parked in one or two metered parallel parking spaces with

the corresponding parking meters covered by a meter hood issued for that mobile vender vehicle.

(5) Nothing in this article shall be interpreted as authorizing a mobile vender vehicle to be parked at a location which is not then available for general public use, but for the use of the meter hood, unless the use of such location is specifically limited to use by mobile vender vehicles.

(6) Mobile venders shall cooperate with any person authorized to place a street closure bag or restricted parking bag over a parking meter then covered by a meter hood, including but not limited to promptly and temporarily removing the meter hood to allow a street closure bag to be placed over the meter and under the hood.

(g) *Food safety.* Any mobile vender who offers food or beverages for sale, other than prepackaged items that do not require hot or cold handling procedures, shall be subject to the following additional requirements:

(1) A valid mobile food unit license for the mobile vender vehicle shall be displayed within the mobile vender vehicle in a location that is readily visible to all customers.

(2) Any such mobile vender who is not a certified food protection manager shall employ at least one certified food protection manager; shall maintain a copy of their certification(s) as a certified food protection manager in the mobile vending vehicle; and shall produce the certification documents for inspection upon request by any police officer or community development department inspector.

(3) No mobile vender shall operate the business in a manner that violates any applicable food and sanitation laws.

(h) *Noise.* No mobile vender shall operate the business in a manner that violates the Noise Control Ordinance of the City of Des Moines set forth in article IV of Chapter 42 of this Code. No person shall offer for sale or sell anything from a mobile vending vehicle by shouting or raised voice.

(i) *Use of street and sidewalk.* No mobile vender shall place any tables, chairs, furniture, equipment, signage or other material on the ground, streets or sidewalks. No mobile vender shall place any food, materials or equipment on the ground or on tables, chairs, or shelves that are not incorporated into the mobile vending vehicle.

(j) *Trash receptacles.* A mobile vender shall provide one or more trash receptacles readily accessible to its customers either in or attached to the mobile vender vehicle. All such trash receptacles and all accumulations of trash and litter shall be removed from the site by the mobile vender before departing.

(k) *All sales from sidewalk side.* No mobile food vender shall conduct any sales from outside the mobile vender vehicle. All sales activities and the transfer of food and beverages to the customer shall occur only on the sidewalk side of the mobile vender vehicle. No mobile vender shall sell to any person situated in a motor vehicle. However, nothing in this paragraph shall be interpreted to prohibit such reasonable accommodation as may be needed to serve a customer with a disability. This requirement does not apply to mobile venders operating on private property.

(l) *Grease disposal.*

(1) All fat, oil and grease generated in the operation of a mobile vender business shall be disposed of at the business or facility identified in the mobile vender's application for a license. Any change in the businesses or facilities used for the disposal of such fat, oil and grease shall be reported to the city clerk in writing by the mobile vender within three business days of the first use of a the new business or facility.

(2) All fat, oil and grease generated in the operation of a mobile vender business shall be disposed of in compliance with the requirements of division 5, article III

of chapter 118 regarding the discharge of fat, oil and grease by food service establishments.

(O.15,362, 15,447, 15,489, 16,046)

Sec. 78-213. Municipal infractions and penalties.

(a) Any person who violates this article shall be guilty of a municipal infraction punishable pursuant to Municipal Code section 1-15. Any person who violates a section of this article after having previously been found guilty of violating the same section of this article shall be guilty of a repeat offense.

(b) Relief under this section shall be in addition to the remedies set forth in section 78-211. (O.15,362)

Chapters 79—81

RESERVED

Chapter 82

PLANNING*

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Sec. 82-1. Plan and zoning commission fees.
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Article IV. Architectural Work

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***Cross references—**Administration, ch. 2; buildings and building regulations, ch. 26; environment, ch. 42; floodplains, ch. 50; historical preservation, ch. 58; public improvements, ch. 94; streets, sidewalks, skywalks and other public places, ch. 102; subdivisions, ch. 106; telecommunications, ch. 110; traffic and vehicles, ch. 114; utilities, ch. 118; vegetation, ch. 122; vehicles for hire, ch. 126; waterways, ch. 130; zoning ordinance, ch. 134; electric franchise, app. C; gas franchise, app. D; sewer district, app. G.

Article V. Reserved

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Article VII. Strategic Planning Commission

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Article VIII. Urban Renewal Activities

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Article X. Planning Review Fees

Sec. 82-450. Generally.
Sec. 82-451. Fees.

ARTICLE I. IN GENERAL

Sec. 82-1. Plan and zoning commission fees.

The required fee for a change in district classification or boundaries or text amendment under chapter 134 of this Code shall be in the amount set in the schedule of fees adopted by the city council by resolution. In addition to the fees, the owner shall pay the notification costs for property owners, publication costs and recording costs as established by the community development department.
(C91, § 2-205.53; O.11,777, 11,779, 13,004, 13,010, 13,438, 14,169, 15,819)

Sec. 82-2. Board of adjustment fees.

The required fee for an application for a variance, exception, special permit, conditional use or other relief from the board of adjustment shall be in the amount set in the schedule of fees adopted by the city council by resolution. In addition to such fee the applicant shall pay the estimated notification costs for the hearing as determined by the community development department.
(C91, § 2-205.54; O.11,777, 13,759, 14,170)

Sec. 82-3. Community development department fees.

The required fees for a certificate of occupancy and compliance under chapter 134 of this Code shall be in the amounts set in the schedule of fees adopted by the city council by resolution.
(C91, § 2-205.55; O.11,777, 13,010, 13,541, 14,018, 14,171, 15,819)

Secs. 82-4—82-30. Reserved.

ARTICLE II. PLAN AND ZONING COMMISSION*

Sec. 82-31. Created.

There is created a city plan and zoning commission. The plan and zoning commission is designated and appointed as the zoning commission pursuant to I.C. § 414.6.
(C42, § 96-1; C54, C62, § 2-388; C75, § 2-175; O.9322; C79, C91, § 2-175; O.13,297)

Sec. 82-32. Appointment of members.

The plan and zoning commission shall consist of 15 members.
(C42, § 96-2; C54, C62, § 2-389; C75, § 2-176; O.9322; C79, C85, § 2-176; O.11,385; C91, § 2-176; O.11,823, 13,297, 13,909)

Sec. 82-33. Qualifications of members.

All members of the plan and zoning commission shall be qualified by knowledge or experience to act in matters pertaining to the development and execution of a city plan. No person holding an elective office in the municipal government shall be eligible to appointment or service upon the commission.
(C42, § 96-3; C54, C62, § 2-390; C75, § 2-177; O.9322; C79, C85, § 2-177; O.11,385; C91, § 2-177; O.13,297)

Sec. 82-34. Term of office.

The terms of office of members of the plan and zoning commission shall be for five years. The expiration date for all terms of office shall be the first Monday in July.
(C42, § 96-4; C54, C62, § 2-391; C75, § 2-178; O.9322; C79, C91, § 2-178; O.11,823, 13,297)

Sec. 82-35. Meetings.

(a) *Regular.* The plan and zoning commission shall hold regular meetings, at least once each month, at a time and place it may determine by resolution.

***Cross reference—**Boards, commissions, committees and agencies, § 2-1046 et seq.

(b) *Special.* Special meetings of the plan and zoning commission may be held upon the call of the chair or upon written request signed by three commission members. At least 24 hours' notice shall be given of any special meeting.
(C42, §§ 96-6, 96-7; C54, C62, §§ 2-393, 2-394, 2-395; C75, § 2-180; O.9322, 9967; C79, C91, § 2-180; O.13,297)

Sec. 82-36. Joint meetings with city council.

Joint meetings with the city council and plan and zoning commission shall be held at least two times per year with the first meeting focused on the annual work plan and the second meeting focused on long range planning issues. The long range planning meeting will conclude with a determination by the council and commission of the appropriate amount of time to be devoted to long range planning for the fiscal year.
(C42, § 96-29; C54, C62, § 2-397; C75, § 2-181; O.9322; C79, C85, § 2-181; O.11,286; C91, § 2-181)

Sec. 82-37. Quorum.

Eight members of the plan and zoning commission shall constitute a quorum for the transaction of business, but eight affirmative votes shall be required to approve any public improvement.
(C42, § 96-8; C54, C62, § 2-398; C75, § 2-182; O.9322; C79, C91, § 2-182; O.13,297)

Sec. 82-38. Rights of chair.

In the matter of motions or of voting, the chair of the plan and zoning commission shall have the same rights with reference thereto as the other members of the commission.
(C42, § 96-9; C54, C62, § 2-399; C75, § 2-183; O.9322; C79, C91, § 2-183; O.13,297)

Sec. 82-39. Officers.

The officers of the plan and zoning commission shall be a chair, a vice-chair and a second vice-chair, who shall perform the usual duties pertaining to such offices. These officers shall be chosen by the commission from its members. The vice-chair shall perform all the duties of the chair, during the absence or disability of the chair. The second vice-chair shall perform all the duties of the chair, during the absence or disability of both the chair and vice-chair. All officers shall be elected for a term of one year, at the second regular meeting in January of each year.
(C42, § 96-10; C54, C62, § 2-400; C75, § 2-184; O.9322; C79, C85, § 2-184; O.11,286; C91, § 2-184; O.11,823, 13,297, 14,040)

Sec. 82-40. Relationship to city council and city manager.

(a) In its role as an advisory body to the city council, the plan and zoning commission is a key factor in the growth and development of the city. Participation by the commission, its individual members and through the established commission committee structure is of critical importance to the community. The commission will be involved in the decision-making process for all planning and development issues.

(b) The detailed and formal role of the commission and planning staff and their relationship to the city manager's office and the council shall be established and governed by a written policy adopted by resolution of the council. Such policy shall implement the following goals and objectives:

(1) Subject to the overall supervision of the city manager, the city planning staff, consisting of the following divisions of the community development department, shall be under the direction of the planning director:
   a. Development and planning division.
   b. Neighborhood planning division.
   c. Planning and urban design division.

(2) The planning director shall be charged with the responsibility of looking at the longterm and visioning issues related to growth, development of longterm planning and comprehensive planning.

(3) The commission, planning director and planning staff shall jointly prepare and submit an annual work program for the planning staff to the city manager and

city council for review and approval each year. After city council approval of the annual work program, the commission shall work for execution of the annual work program and shall report on the progress of such work to the city council. Proposed changes to the approved annual work program shall be reviewed by the commission and the city manager prior to submission to the city council for review and approval.

(4) The commission and the planning director shall be involved in the development of the operating budget for the planning staff for submission to the city council.

(5) A formal communication system between the city manager, planning director and the commission shall be established.

(6) The basic mission and informational needs of each of the committees of the commission shall be identified.

(7) The commission may present specific capital improvement proposals to the city manager and shall be involved in reviewing the capital improvement needs of the city.

(8) The director shall be given opportunity to express the recommendation of the commission and the director's professional opinion on planning issues as part of the regular city council meetings.

(C91, § 2-185; O.11,981, 13,010)

Editor's note—The written policy referred to in subsection (b) of this section was adopted by Roll Call No. 93-1419 on April 19, 1993.

Sec. 82-41. Quarterly reports.

The plan and zoning commission should provide, as elements of its quarterly reports, site plans, subdivisions, legacy planned unit developments and work program status together with a perspective on long-range planning issues.

(C54, C62, § 2-403; C75, § 2-187; O.9322; C79, C85, § 2-187; O.11,286; C91, § 2-187; O.15,819)

Sec. 82-42. Approval of public improvements.

No public building, bridge, viaduct, street fixture, public structure or appurtenance shall be located or erected or site thereof obtained, nor shall any permit be issued by any department of the municipal government for the erection or location thereof, unless and until the design and proposed location of any such improvement shall have been submitted to the plan and zoning commission and its recommendations thereon obtained. The requirement for recommendations shall not act as a stay upon action of any such improvement if the commission, after 30 days' written notice requesting such recommendations, shall have failed to file the recommendations.

(C42, § 96-14; C54, C62, § 2-405; O.7552; C75, § 2-189; O.9322; C79, C91, § 2-189; O.13,297, 14,147)

Sec. 82-43. Plats and subdivisions.

All plans, plats, replats of subdivisions or resubdivisions of land embraced within the corporate limits that are laid out in lots, or plats with the streets, alleys, or other portions of such intended to be dedicated to the public in the city shall first be submitted to the plan and zoning commission and its recommendation obtained before approval or acceptance by the city council.

(C42, § 96-15; C54, C62, § 2-406; C75, § 2-194; O.9322; C75, C79, C91, § 2-190)

Sec. 82-44. Streets, parks, public improvements.

No plan for any street, park, parkway, boulevard, trafficway, riverfront, or other public improvement affecting the city plan shall be finally approved by the city or the character or location thereof determined unless such proposal shall first have been submitted to the plan and zoning commission and the latter shall have had 30 days within which to file its recommendations thereon.

(C42, § 96-16; C54, C62, § 2-407; C75, § 2-195; O.9322; C75, C79, C91, § 2-191; O.13,297)

Sec. 82-45. Improvements or changes.

No improvements or change shall be made in any park, parkway, boulevard, playground or other public place, until a plan for such improvement has been made and submitted to the plan and zoning commission.
(C42, § 96-22; C54, C62, § 2-408; C75, § 2-196; O.9322; C75, C79, C91, § 2-192; O.13,297)

Sec. 82-46. Councilmembers' attendance at meetings.

The members of the city council may attend the meetings of the plan and zoning commission for the purpose of study, consultation or discussion of any of the problems coming before the commission.
(C42, § 96-17; C54, C62, § 2-409; C75, § 2-197; O.9322; C75, C79, C91, § 2-193; O.13,297)

Sec. 82-47. Assistance of officers and employees.

All city officers and employees shall give such aid and assistance to the plan and zoning commission and its members as will enable the commission most effectively to perform its duties. The city clerk and the directors of the several city departments are authorized and directed to furnish to the commission, upon its request, any record, document, ordinance, plat, map, chart or other information which may be in possession of such city clerk or department and which the commission may need for its consideration in connection with its duties.
(C42, § 96-17; C54, C62, § 2-410; C75, § 2-198; O.9322; C75, C79, C91, § 2-194; O.13,297)

Sec. 82-48. Investigation and report of committees.

Whenever any plan, plat or proposal shall be submitted to the plan and zoning commission by the city council or any member thereof, the plan, plat or proposal shall be referred immediately to the proper committee of the commission. This committee shall, with a reasonable promptness, make such investigation as may be necessary or required and report the result of its investigation to the commission.
(C42, § 96-23; C54, C62, § 2-412; C75, § 2-200; O.9322; C75, C79, C91, § 2-196; O.13,297)

Sec. 82-49. Promptness in making reports.

The plan and zoning commission shall be prompt in making its reports on all plans or proposals submitted to it by the city council or any member thereof. If a request is made in writing by the city council or by the member submitting the plan or proposal for a report within a stated time, the commission shall, if reasonably possible, make its report within such time. If a report is not made by the commission within 30 days after submission of any plan or proposal to it by the city council or any member thereof, it shall be assumed that the commission has no report to make, and the plan or proposal shall be construed as approved by the commission.
(C42, § 96-24; C54, C62, § 2-413; C75, § 2-201; O.9322; C75, C79, C91, § 2-197; O.13,297)

Sec. 82-50. Validity of contracts.

The failure of the city council or the plan and zoning commission to comply with any of the sections of this chapter shall in no sense or manner invalidate any contract or obligation of the city otherwise valid and shall not be any basis of objection or reason for failure to pay any special assessment that may be levied or any other obligation due and owing to the city, and shall in no manner affect validity of any improvements pending, except insofar as such shall be binding upon the city by virtue of the incorporation of the provisions in the statutory enactments of the state.
(C42, § 96-30; C54, C62, § 2-417; C75, § 2-205; O.9322; C75, C79, C91, § 2-200; O.13,297)

Secs. 82-51—82-75. Reserved.

ARTICLE III. COMPREHENSIVE PLAN

Sec. 82-76. Preparation.

The plan and zoning commission shall promptly work out, adopt and submit to the city council for its consideration and action thereon a comprehensive plan for the general development

of the city and shall lay out and submit a program for carrying the comprehensive plan into effect.
(C42, § 96-25; C54, C62, § 2-414; C75, § 2-202; O.9322; C75, C79, C91, § 2-201; O.13,297)

Sec. 82-77. Hearings.

Before adopting the comprehensive plan or any part of it or any substantial amendment thereof, the plan and zoning commission shall hold at least one public hearing thereon. The adoption of the plan or part or amendment thereof shall be by motion of the commission carried by the affirmative vote of not less than two-thirds of the members of the commission. After adoption of such plan or amendment by the commission, a copy of the plan or amendment, together with the report and recommendation of the commission, shall be forwarded to the city council, and the council may approve the plan or amendment, following public hearing and publication as required by state law. When such plan or any modification or amendment thereof shall receive the approval of the council, the plan until subsequently modified or amended shall constitute the official city plan.
(C75, § 2-202.01; O.8958, 9322; C75, C79, C91, § 2-202; O.11,753, 13,243, 13,297, 15,819)

Sec. 82-78. Amendment.

When the comprehensive plan has been adopted as provided in this article, no substantial amendment or modification thereof shall be made without such proposed change being first referred to the plan and zoning commission for its recommendation. If the commission disapproves the proposed change, it may be adopted by the city council only by the affirmative vote of at least six-sevenths of all the membership of the council.
(C75, § 2-202.02; O.8958, 9322; C75, C79, C91, § 2-203; O.13,297)

Sec. 82-79. Fees.

An owner of property may initiate an amendment to the comprehensive plan affecting property owned by him or her by depositing a fee in the amount set in the schedule of fees adopted by the city council by resolution, and submitting a written request for amendment of the comprehensive plan to the community development department. Where the city council initiates an amendment at the request of one or more owners of affected property, the required fee shall be paid within a reasonable period of time after council action. No further action shall be taken as to any such proposed amendment for which a fee is required until the fee has been paid. Under no circumstances shall the required fee be refunded upon failure of the proposed amendment to be approved.
(C91, § 2-203.01; O.11,777, 13,010, 14,169)

Secs. 82-80—82-105. Reserved.

ARTICLE IV. ARCHITECTURAL WORK

DIVISION 1. GENERALLY

Secs. 82-106—82-135. Reserved.

DIVISION 2. RESERVED*

Secs. 82-136—82-205. Reserved.

ARTICLE V. RESERVED†

Secs. 82-206—82-245. Reserved.

*__Editor's note—__Ord. No. 14,147, § 1, adopted Oct. 7, 2002, repealed div. 2, §§ 82-136—82-138, which pertained to the architectural advisory committee and derived from Code 1962, §§ 2-405.01—2-405.03; Ord. No. 7552; Ord. No. 7913; Ord. No. 7948; Code 1975, §§ 2-190, 2-192; Ord. No. 9332; Code 1975, §§ 2-204, 2-205, 2-205.01; Ord. No. 10,405; Code 1979, §§ 2-205, 2-205.01; Ord. No. 10,595; Code 1985, §§ 2-204, 2-205, 2-205.01; Ord. No. 10,751; Ord. No. 11,385; Ord. No. 11,574; Code 1991, §§ 2-204, 2-205, 2-205.01; and Ord. No. 14,045.

†__Editor's note—__Ord. No. 15,819, § 1, adopted Oct. 16, 2019, effective Dec. 15, 2019, repealed Art. V, §§ 82-206—82-219, which pertained to site plan review and derived from Code 1975, §§ 2-205.16—2-205.23; Code 1985, §§ 2-205.17—2-205.20, 2-205.23; Code 1991, §§ 2-205.16—2-205.23; Ord. No. 8322; Ord. No. 9322; Ord. No. 9352; Ord. No. 9419; Ord. No. 9425; Ord. No. 9491; Ord. No. 9554; Ord. No. 9728; Ord. No. 9781; Ord. No. 10,259; Ord. No. 10,310; Ord. No. 10,405; Ord. No. 10,560; Ord. No. 10,570; Ord. No. 10,732; Ord. No. 10,927; Ord. No. 11,002; Ord. No. 11,777; Ord. No. 11,813; Ord. No. 13,010; Ord. No. 13,439; Ord. No. 13,490; Ord. No. 13,541; Ord. No. 13,878; Ord. No. 13,881; Ord. No. 14,018; Ord. No. 14,081; Ord. No. 14,147; Ord. No. 14,171; Ord. No.

ARTICLE VI. RESERVED*

Secs. 82-246—82-275. Reserved.

ARTICLE VII. STRATEGIC PLANNING COMMISSION†

Sec. 82-276. Public purpose.

On December 18, 1995, by roll call no. 95-4610, the city adopted a citywide strategic plan titled "Des Moines, Today and Tomorrow," which identifies community goals and priorities. The city council desires to periodically establish a commission to advise the city council regarding the updating and implementation of the citywide strategic plan.
(C91, § 2-390; O.13,498, 14,046)

Sec. 82-277. Creation.

When the city council determines it appropriate to update the citywide strategic plan, it shall by resolution establish a strategic planning commission. Once so created, the commission shall thereafter exist until terminated by resolution of the city council.
(C91, § 2-391; O.13,498, 14,046)

Sec. 82-278. Qualifications and nominations.

(a) The strategic planning commission shall have 19 members. All nominations to the strategic planning commission are subject to confirmation by the city council.

(b) The mayor and council members shall each nominate one member to the commission.

(c) The airport authority board, plan and zoning commission, park and recreation board, urban design review board and board of trustees of the library shall each nominate one of their members to be a member of the commission.

(d) Downtown Partnership, Inc., may nominate one of the members of its board or staff to be a member of the commission.

(e) Des Moines Neighbors may nominate one of the members of its executive committee to be a member of the commission.

(f) Polk-Des Moines Taxpayers Association may nominate one of the members of its board or staff to be a member of the commission.

(g) The Des Moines Independent School District may nominate one of the members of its board or staff to be a member of the commission.

(h) The county board of supervisors may nominate one of the members of its board or staff to be a member of the commission. Such member is exempt from the residency requirement in section 2-1049 of this Code.
(C91, § 2-392; O.13,498, 14,045, 14,046, 14,147, 15,144, 16,193)

Sec. 82-279. Terms of office.

(a) The appointments to the strategic planning commission shall be for in indefinite term expiring upon the termination of the commission as provided in section 82-277.

(b) Whenever any member of the commission shall cease to satisfy the minimum qualifications established in section 82-278 of this article for his or her appointment to the commission, such member shall immediately cease to be a member of the commission, and his or her successor shall be appointed in the same manner as the member was originally appointed.
(C91, § 2-393; O.13,498, 14,046)

Sec. 82-280. Responsibilities and duties.

The strategic planning commission shall have the following responsibilities and duties:

(1) Update the citywide strategic plan and advise the city council on the community's goals.

14,231; Ord. No. 14,326; Ord. No. 14,455; Ord. No. 14,708; Ord. No. 14,767; Ord. No. 14,890; Ord. No. 14,979; Ord. No. 15,060; Ord. No. 15,311; Ord. No. 15,514.

*__Editor's note—__Ord. No. 16,193, § 1, adopted Oct. 24, 2022, repealed Art. VI, §§ 82-246—82-249, which pertained to neighborhood revitalization board and derived from Code 1991, §§ 2-368—2-371; Ord. No. 13,469; Ord. No. 13,614; Ord. No. 13,860; Ord. No. 13,909; Ord. No. 14,211; Ord. No. 15,037.

†__Cross reference—__Boards, commissions, committees and agencies, § 2-1046 et seq.

(2) Recommend strategic priorities for the city to the city council.

(3) Evaluate and make recommendations to the city council as to how the city's operating budget and capital improvement budget may implement the city's strategic priorities.

(4) Cooperate with other city boards with budgetary review authority to ensure that funding recommendations support priorities established by the commission and such boards.

(C91, § 2-394; 0.13,498, 14,046)

Secs. 82-281—82-305. Reserved.

ARTICLE VIII. URBAN RENEWAL ACTIVITIES

DIVISION 1. GENERALLY

Sec. 82-306. Local public agency.

The city is, by election under I.C. § 403.1 et seq., the local public agency for urban renewal purposes. The city has all the rights, duties, powers and responsibilities appertaining to such an agency under provisions of the law. The city council is the local governing body of the local public agency and shall have original and final jurisdiction over all matters covered by I.C. § 403.1 et seq.

(C62, § 59A-1; O.7380; C75, C79, C91, § 2-345)

Secs. 82-307, 82-308. Reserved.

Editor's note—Ord. No. 14,147, § 1, adopted Oct. 7, 2002, repealed §§ 82-307 and 82-308, which pertained to staff supervision and staff assistance, respectively, and derived from Code 1962, §§ 59A-6, 59A-7; Ord. No. 7380; Code 1975, Code 1979, and Code 1985, §§ 2-351, 2-352; Ord. No. 11,557; Code 1991, §§ 2-351, 2-352; and Ord. No. 14,045.

Secs. 82-309—82-335. Reserved.

DIVISION 2. URBAN DESIGN REVIEW BOARD*

Sec. 82-336. Created; composition; appointments.

(a) There is created in and for the city an urban design review board, which shall be an advisory board composed of eleven members. The membership of the urban design review board shall consist of: four Iowa registered architects, one of whom must have significant experience in the restoration of historic buildings; two Iowa registered landscape architects; one developer, realtor or real estate broker; and four at large citizen representatives, one of whom must have a demonstrated interest in historical renovation and restoration.

(b) Each ward councilmember may recommend candidates for appointment to two positions on the urban design review board. The mayor and the two at large council members may each recommend candidates for appointment to one position on the urban design review board.

(c) The term of each member shall be three years expiring on June 30th, except that the terms of three of the initial members shall be for one year, and the terms of four of the initial members shall be for two years.

(d) The economic development administrator, or their designee, shall serve as an ex officio member of the board.

(O.14,147, 16,343)

Sec. 82-337. Officers.

At its first meeting each calendar year, the urban design review board shall elect a chair and

*__Editor's note—__Ord. No. 14,147, § 1, adopted Oct. 7, 2002, repealed the former div. 2 and enacted a new division as set out herein. The former div. 2, §§ 82-336—82-339, pertained to the urban development board and derived from Code 1962, §§ 59A-2, 59A-3, 59A-5, 59A-5.01; Ord. No. 7380; Ord. No. 8553; Code 1975, Code 1979, and Code 1985, §§ 2-346, 2-347, 2-349, 2-350; Ord. No. 11,385; Ord. No. 11,557; Code 1991, §§ 2-346, 2-350; Ord. No. 13,290; Ord. No. 13,910; and Ord. No. 14,045. Prior to the repeal and reenactment of div. 2 by Ord. No. 14,147, Ord. No. 14,045, § 1, adopted Jan. 28, 2002, changed the title of div. 2 from "Urban Renewal Board" to "Urban Development Board".

Cross reference—Boards, commissions, committees and agencies, § 2-1046 et seq.

vice-chair from its own members who shall serve in such capacities for a period of one year or until their successors shall be elected and qualified. (O.14,147)

Sec. 82-338. Duties.

(a) The urban design review board shall advise the city council regarding:

(1) The design of public improvements pursuant to section 82-42 and the exterior design of major projects pursuant to section 82-339.

(2) Whether a proposed urban renewal project's design qualifies for funding from tax increment revenues under the applicable urban renewal plan.

(3) Recommended approval of urban renewal plans and plan amendments.

(4) The selection of urban renewal sites for clearance or rehabilitation, and problems relating to acquisition, clearance or rehabilitation of property, relocation of displaced persons, and disposition of acquired property.

(5) The operation of the skywalk system pursuant to section 102-321.

(b) The board shall recommend one of its members to serve on the strategic planning commission pursuant to section 82-278. (O.14,147, 16,343)

Sec. 82-339. Architectural review.

(a) The urban design review board shall review, evaluate, and make recommendations to the city council concerning architectural plans and concepts of:

(1) The exterior design of major projects involving new construction or installation of buildings, parking facilities, and landscaping improvements to be owned or leased by the city and used for civic or municipal purposes. Major projects shall not include exterior repairs or maintenance where the design is not substantially altered. Major projects are defined as those for which construction costs, excluding land costs, are in excess of $1,000,000.00.

(b) The urban design review board may undertake a preliminary review of all major projects as defined in this section during the schematic design phase. The materials submitted for the preliminary review of a building project may include a site plan, building plan and elevations, and a perspective, model or other three-dimensional representation sufficient to convey the project in its context.

The urban design board shall undertake a final design review based on the submittal of the following materials: site plan, building plan and elevations, a landscaping plan, a perspective, model or other three-dimensional representation of the project in its surroundings, and materials samples to show finishes, textures and colors. Such review shall occur at the first scheduled meeting of the urban design review board that is scheduled 12 calendar days after all required review materials have been submitted to staff.

The city manager shall be responsible for conducting a design review of all nonmajor construction, installation, remodeling, and renovation projects.

(c) The urban design review board shall review, evaluate and make recommendations to the city council regarding the exterior design of buildings, site plans, and open space plans for property which the city intends to convey or lease through the urban renewal process and for all real estate development projects proposed to receive tax increment financing incentives.

All proposed urban renewal projects shall be presented by the developer or city staff to the board at a public meeting. The board shall complete its review and submit its recommendation to the city council as soon as possible, but in any event within 30 days of the initial presentation of the project to the board. The city council shall then act to approve, modify, or disapprove the recommendations regarding design of the proposed urban renewal project. The stated time requirements are dependent upon complete and adequate materials having been submitted by

the developer at the time of final submittal. Complete and adequate materials shall be defined by the specific urban renewal offering requirements for the property. The review, evaluation and recommendation shall be guided by the applicable urban renewal plan requirements and associated urban renewal documents.
(O.14,147, 16,343)

Secs. 82-340—92-399. Reserved.

ARTICLE IX. PUBLIC ARTS PROGRAM*

Sec. 82-400. Establishment of a public arts program.

There is hereby established a public arts program as set forth in this article.
(O.14,005, 14,344)

Sec. 82-401. Purpose.

The purpose of the public arts program is to:

(1) Enhance the city's physical environment and public spaces;

(2) Provide an educational component to each public art project.

(3) Integrate the work and thinking of artists into the planning, design and construction of eligible city facilities, buildings, infrastructure, parks and other public facilities and spaces, and private sector projects;

(4) Celebrate the multi-cultural and diverse character of the city's residential and commercial neighborhoods and citizens;

(5) Contribute a sense of citizen ownership and pride in public facilities and spaces;

(6) Mitigate potential adverse impacts of construction;

(7) Engage the citizens, neighborhoods, businesses, and community organizations of the city in creative partnerships with artists;

(8) Support, educate, and assist citizens, neighborhoods, businesses, and organizations with their community activities;

(9) Integrate public art and aesthetic elements in city projects that stimulate the eye, mind and spirit of the public, and serve as cultural, educational, and tourism resources that celebrate and promote Iowa and the city's unique qualities, it's character, cultural heritage, history, pride and sense of place.

(10) Assist in community initiated projects.
(O.14,005, 14,344)

Secs. 82-402—82-408. Reserved.

Sec. 82-409. Funding, appropriations, and use of funds.

(a) The goal of the public arts program is to annually fund the public arts fund at a level equal to 1½ percent of the amount of general obligation funds appropriated for capital improvements through the city's capital improvement program, for the purpose of enhancing the city's physical environment and public spaces and achieving the other objectives identified in section 82-401. The public arts fund shall be a separate city account created to hold any funds allocated by the city or received from any other source which are held exclusively for the purpose of implementing the programs and policies described in this article.

(b) Commencing with the preparation of the capital improvement program for the 2002/2003 fiscal year, the city manager shall provide to the city council and the public estimates of the total amount of general obligation funds to be allocated for capital improvements in the capital improvement program, and the amount of funds proposed by the city manager to be allocated to the public arts fund in each of the next five fiscal years.

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*__Editor's note—__Ord. No. 14,344, § 1, adopted June 21, 2004, repealed §§ 82-402—82-408 and 82-410—82-414 of art. IX. Said sections pertained to the public arts commission and derived from Ord. No. 14,005. As Ord. No. 14,344 eliminated the public arts commission, the title of art. IX has been changed from "Public Arts Commission" to "Public Arts Program" at the discretion of the editor.

__Cross reference—__Boards, commissions, committees and agencies, § 2-1046 et seq.

(c) The city manager shall timely submit the manager's budget recommendations for the public arts program for receipt by the city council at its first meeting in September of each year. The city manager's budget recommendations shall identify and prioritize proposals for use of the public arts funds.

(d) Appropriate use of program funds. The public arts fund shall support the following uses:

(1) The selection, acquisition and display of works of art, which may be an integral part of the project, or placed in, on or about the project or other public space.

(2) Design, planning and pre-design service contracts, fees and commissions of artists, architects, engineers and other design professionals.

(3) Expenses for technical assistance provided by architects and/or engineers to artists, in order to design, document and/or certify the artwork.

(4) Repair and maintenance of city public artworks.

(5) Public arts program administrative expenses, relating to acquiring, developing, or maintaining public art.

(6) Participation by citizens or costs of communicating with and receiving input from citizens, working with professional artists, introduction of public art to children, and education of the public about the county's rich cultural and artistic heritage.

(7) Documentation and public education material for the public arts program.

(8) Pilot or demonstration projects of the public arts program.

(9) Contracting with a non-profit agency to administer a public arts program to support the foregoing uses.

(e) Distribution of funds. In the event the city has contracted with a non-profit agency to administer the public arts program, the city manager is hereby authorized to make any necessary payments under such contract from the available funds appropriated to the public arts fund.
(O.14,005, 14,344)

Secs. 82-410—82-449. Reserved.

ARTICLE X. PLANNING REVIEW FEES

Sec. 82-450. Generally.

The purpose of this article is to provide for the recovery of the administrative costs of reviewing specified types of projects for conformance with the city's land use plan, comprehensive housing plan, strategic development plan and other adopted city facility and development plans and objectives.
(O.14,172)

Sec. 82-451. Fees.

A fee is hereby imposed upon the following activities in the amounts set in the Schedule of fees adopted by the city council by resolution:

(1) Request for city approval or support of an application to the state finance authority for low income housing tax credits.

(O.14,172)

Chapters 83—85

RESERVED

Chapter 86

POLICE*

Article I. In General

Secs. 86-1—86-25. Reserved.

Article II. Police Department

Sec. 86-26. Citation of article.
Sec. 86-27. Chief of police.
Sec. 86-28. Service and execution of warrants and other process.
Sec. 86-29. Copies and abstracts of records; fees.
Sec. 86-30. Fingerprint services; fees.
Sec. 86-30.1. Bond processing fee.
Sec. 86-30.2. Junking certificate fee.
Sec. 86-31. Organization, appointments and assignments.
Sec. 86-32. Impersonating officer.
Sec. 86-33. Blowing police whistles.
Sec. 86-34. Police reserves created; membership; supervision.
Sec. 86-35. Removal of members of police reserves.
Sec. 86-36. Rules of police reserves.
Sec. 86-37. Records of members of police reserves.
Sec. 86-38. Uniform and insignia of police reserves.
Sec. 86-39. Sidearms of police reserves.
Sec. 86-40. Employment status of police reserves.
Sec. 86-41. Automatic dialing alarms.

Article III. Unbiased Policing

Sec. 86-42. Policy statement.
Sec. 86-43. Definitions.
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Sec. 86-45. Complaints and compliance.
Sec. 86-46. Training.
Sec. 86-47. Annual review.

*__Cross references—__Administration, ch. 2; emergency services, ch. 38; false police alarm, § 38-116 et seq.; offenses and miscellaneous provisions, ch. 70; traffic and vehicles, ch. 114.

ARTICLE I. IN GENERAL

Secs. 86-1—86-25. Reserved.

ARTICLE II. POLICE DEPARTMENT*

Sec. 86-26. Citation of article.

Except for purposes of administration and organization, this article shall be known and may be cited as "police department."
(C54, C62, § 39-1; C75, C79, C85, § 2-127; O.11,531; C91, § 2-127)

Sec. 86-27. Chief of police.

(a) *Supervision of department.* The chief of police shall supervise and direct the police department.

(b) *Appointment; responsibility.* The chief of police shall be appointed by the city manager and shall be responsible to the city manager for police department functions.

(c) *Duties as marshal.* The chief of police shall perform the duties and shall be the marshal of the city.

(d) *Disability.* In the disability of the chief of police, the city manager shall designate a sworn member of the police department to act as chief during such disability.

(e) *Duty to enforce laws, ordinances.* The chief of police shall see that all laws of the state, the sections of this Code and the provisions of other city ordinances are enforced. When any violation thereof shall occur, he or she shall cause the person so offending to be apprehended and charges filed. He or she shall conduct investigations to detect violations of the law and shall cause all sections of this Code and other ordinances relating to offenses against public morals, decency, public peace and quiet and public safety to be enforced to the suppression of such offenses.

(f) *Authority to prescribe rules and regulations.* The chief of police shall have the power and authority, subject to the approval of the city manager, to prescribe rules and regulations for the conduct and management of the police department. Such regulations may provide for payment of sums, not exceeding in the aggregate the sums appropriated therefor, as are deemed necessary for detecting and bringing to trial and punishment persons guilty of violating state laws or sections of this Code or city ordinances when such expenses are not otherwise provided by law. Any regulations providing for such payment shall prescribe maintenance of a special cash fund within the police department from which to pay such sums, for funding thereof to maintain a certain minimum cash balance, for strict accounting, and for such security measures as are reasonably necessary to comply with the provisions of I.C. § 22.1 et seq., to protect the public interest and save harmless the payees of such sums.

(g) *Power to arrest.* The chief of police and all police officers under his or her supervision shall have power to arrest all persons in the city found in the act of violating any law, section of this Code or provision of other city ordinance or aiding or abetting in any such violation, and if a public offense has in fact been committed and the police officer shall have reasonable grounds for believing that the person to be arrested has committed such public offense.
(C42, §§ 12-2, 12-7, 12-12, 12-13; O.5278, 5290; C54, §§ 39-2 to 39-9; O.5732, 5862; C62, §§ 39-2 to 39-9; O.8519; C75, C79, C85, § 2-128; O.11,531; C91, § 2-128)

Sec. 86-28. Service and execution of warrants and other process.

The chief of police and all police officers under his or her supervision shall have power and authority and it shall be their duty to serve and execute warrants and other process in the city for summoning, apprehending and committing any person charged with the violation of any section of this Code or the provision of any ordinance or with any crime or misdemeanor or offense against the laws of the city or state.
(C42, § 12-8; C54, C62, § 39-10; C75, C79, C91, § 2-129)

Sec. 86-29. Copies and abstracts of records; fees.

(a) The chief of police or his or her designee is hereby authorized to prepare and deliver upon request a copy or reproduction of records made

*__Cross reference—__Departments, § 2-536 et seq.

by police officers in the course of an investigation and to charge for such service a fee to cover the cost of copying or reproducing the records. However, copies or reproductions of the reports required by state law and designated confidential shall not be made available to the public.

(b) The chief of police or his or her designee is further authorized to prepare and deliver upon request a copy or reproduction of records made by police officers in the course of a motor vehicle accident investigation and to charge for such service a fee to cover the cost of copying or reproducing the records. However, copies or reproductions of the reports required by state law and designated confidential shall not be made available to the public.

(c) The chief of police or his or her designee is further authorized to deliver upon request photographic copies of police investigative scenes and to charge for such service a fee to cover the cost of reproducing the photographs.

(d) The chief of police or his or her designee is further authorized to prepare and deliver upon request an abstract of the arrest record of any person and to charge for such service a fee to cover the cost of compiling said abstract.

(e) The chief of police or his or her designee is further authorized to prepare and deliver upon request a copy or reproduction of trip logs indicating calls for police service and to charge for such service a fee to cover the cost of copying or reproducing the logs.

(f) The chief of police or his or her designee is further authorized to prepare and deliver upon request a verification of theft of property from a specifically named victim and to charge for such service a fee to cover the cost of producing said verification.

(g) The chief of police or his or her designee shall permit persons to view police investigative reports and arrest records under supervision for a reasonable period of time, and there shall be no charge for such viewing. Persons viewing such records or reports shall be permitted to make notes on their own paper from said records or reports but no person shall be permitted to make notes, marks or erasures on any such reports or records. However, reports required by state law and designated confidential shall not be made available to the public.

(h) Except for tapes designated confidential, the chief of police or his or her designee shall permit persons to listen to and record excerpts of dispatch tapes within 30 days of a recorded call to the police department. A service fee shall be collected for recording reproductions made by the police department for a requestor. The requestor must supply a blank cassette tape for such reproductions.

(i) Except for tapes designated confidential, the chief of police or his or her designee shall permit persons to observe and record excerpts of video tapes originally recorded by the police department within 30 days of the recorded event. A service fee shall be collected for recording reproductions made by the police department for a requestor. The requestor must supply a blank VHS type tape for such reproductions.

(j) The chief of police shall have authority, subject to the approval of the city manager, to prescribe rules and regulations relating to the furnishing, making, and handling of all said copies, reproductions, and abstracts and the terms and conditions upon which they shall be made available.
(C54, § 39-10.01; O.6175, 6253, 6711; C62, § 39-10.01; O.8148, 8480, 8774; C75, C79, § 2-130; O.10,143; C85, § 2-130; O.11,531, 11,594; C91, § 2-130; O.11,830, 13,689, 14,180, 16,150)

Sec. 86-30. Fingerprint services; fees.

(a) The chief of police or his or her designee is authorized to provide fingerprinting service to individuals requesting such service for but not limited to the purpose of employment, licensing or permits and to charge a fee to cover the cost of such service. The fee shall be in the amount set in the schedule of fees adopted by the city council by resolution.

(b) The chief of police is authorized to establish reasonable times in which the fingerprinting service may be offered to the public.
(C79, § 2-130.01; O.10,614; C85, § 2-130.01; O.11,531; C91, § 2-130.01; O.14,180)

Sec. 86-30.1. Bond processing fee.

The chief of police or his or her designee is hereby authorized to charge and collect an administrative fee for processing bonds for pretrial detainees who are released on bond from the city temporary holding facility. The fee shall be in the amount set in the schedule of fees adopted by the city council by resolution.
(O.14,180)

Sec. 86-30.2. Junking certificate fee.

(a) *Authority for fee.* The chief of police or his or her designee is hereby authorized to charge and collect an administrative fee for processing applications for authority to obtain junking certificates on motor vehicles pursuant to I.C. § 321.90(2). The fee shall be in the amount set in the schedule of fees adopted by the city council by resolution.

(b) *Exemption.* Any person that has a contract with the city for impounding, towing or storage of motor vehicles shall be exempt from the fee authorized at subsection 86-30.2(a) on vehicles impounded, towed, or stored as a result of any violation of this Code.
(O.14,316)

Sec. 86-31. Organization, appointments and assignments.

The chief of police shall have supervision of the organization of the police department, including the establishment or revision of divisions or sections, the appointment and assignment of supervisors, and the assignment of all police department personnel, subject to the control and direction of the city manager.
(C54, § 39-11; O.5781, 5975; C62, § 39-11; C75, C79, C85, § 2-131; O.11,531; C91, § 2-131)

Sec. 86-32. Impersonating officer.

No private citizen shall adopt or wear upon any street or in any public place the official uniform worn by the city police department or a uniform likely to be confused with such official uniform, nor shall any person, not a member of the police department, represent himself or herself as or assume to be a police officer.
(C42, § 112-2; C54, C62, § 39-15; O.8256; C75, C79, C91, § 2-134)

State law reference—Impersonating a peace officer, I.C. § 718.2.

Sec. 86-33. Blowing police whistles.

No person, not a member of the police department, shall blow any whistle or other instrument in imitation of the whistles used by the police department in such a manner as to interfere with the police department or with the intent to intimidate or molest any person.
(C42, § 112-3; C54, C62, § 39-16; C75, C79, C91, § 2-135)

Sec. 86-34. Police reserves created; membership; supervision.

(a) *Created.* There is created the city police reserves.

(b) *Membership.* The police reserves shall consist of a volunteer police reserve company composed of as many members as the city council shall designate by resolution. Membership in the police reserves shall be determined by standards as provided pursuant to I.C. § 80D.1 et seq. Applicants for membership in the police reserves shall be appointed to membership by the city manager upon recommendation by the chief of police and after taking an oath of office in the form and manner prescribed by the legal department.

(c) *Physical examination.* No person shall be appointed to the police reserves until he or she has satisfactorily complied with the standards set out in I.C. § 80D.1 et seq.

(d) *Supervision.* The chief of police shall have supervision of the police reserves, subject to the control and direction of the city manager.
(C62, §§ 39-17 to 39-22; O.7778; C75, § 2-136; O.9262; C79, § 2-136; O.10,646; C85, § 2-136; O.11,531; C91, § 2-136; O.11,970)

Sec. 86-35. Removal of members of police reserves.

The members of the police reserves shall serve at the discretion of the city manager. They shall be removed and discharged from such position and their city employment terminated by the city manager after recommendation by the chief of police.
(C62, § 39-23; O.7778; C75, § 2-137; O.9262; C79, C91, § 2-137)

Sec. 86-36. Rules of police reserves.

The police reserves shall be subject to applicable rules and regulations of the police department. These rules shall become effective only upon approval by the city manager. The police chief may prescribe other rules and regulations in regard to the police reserves, not inconsistent with ordinances or laws, subject to the approval of the city manager.
(C62, § 39-24; O.7778; C75, § 2-138; O.9262; C79, § 2-138; O.10,646; C85, § 2-138; O.11,531; C91, § 2-138)

Sec. 86-37. Records of members of police reserves.

The city personnel officer shall keep an accurate record of all members of the police reserves and their dates of admission and discharge.
(C62, § 39-25; O.7778; C75, § 2-139; O.9262; C79, C91, § 2-139)

Sec. 86-38. Uniform and insignia of police reserves.

During their hours of duty, members of the police reserves shall wear a uniform, which shall be that prescribed by the chief of police. They shall also wear a badge of office upon their outer garments and in plain view, which uniform and badge shall identify their membership in the police reserves.
(C62, § 39-26; O.7778; C75, § 2-140; O.9262; C79, C91, § 2-140)

Sec. 86-39. Sidearms of police reserves.

A member of the police reserves may carry a sidearm on his or her person while in uniform and on duty, which uniform shall be that prescribed by the chief of police. However, no member of the police reserves shall carry sidearms until he or she has been certified by the Des Moines Regional Police Academy to carry weapons.
(C62, § 39-28; O.7778; C75, § 2-142; O.9262; C79, C91, § 2-142)

Sec. 86-40. Employment status of police reserves.

Members of the police reserves shall be considered city employees while they are performing police duties as authorized and directed by the chief of police. They shall receive a salary from the city of $1.00 per year. Members while in such employment status shall not be subject to all provisions of chapter 2 of this Code or this chapter, except that the members shall be subject to the sections applicable to the police department.
(C62, § 39-29; O.7778; C75, § 2-143; O.9262; C79, § 2-143; O.10,646; C91, § 2-143)

State law references—Status of reserve police officers, I.C. § 80D.6; compensation of reserve police officers, I.C. § 80D.11.

Sec. 86-41. Automatic dialing alarms.

(a) *Definitions.* The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Alarm subscriber means any person owning, leasing, renting, or using any protected premises where an automatic dialing alarm system is installed.

Automatic dialing alarm system means any robbery, burglary, or fire alarm, including all equipment, apparatus and connecting telephone lines and cables thereof, which, when activated, automatically dials specific designated telephone numbers, which are preset into the alarm system, and conveys a prerecorded telephone message to the receiving party when the automatically dialed telephone number is answered.

Crime alert number means any telephone number or series of numbers assigned by the telephone company to the police department communications center for the purpose of receiving

emergency police calls or calls relating to the occurrence of crimes, accidents, injuries, or calls of any type or nature for which the calling party requests police assistance. The crime alert number includes the telephone number 911 or any number designated as the crime alert radio dispatcher or police emergency telephone number.

Fire alarm number means any telephone number or series of numbers assigned by the telephone company to the fire department communications center for the purpose of receiving emergency fire calls or calls relating to the occurrence of fires, accidents, injuries, or calls of any type or nature for which the calling party requests assistance from the fire department. The fire alarm number includes the telephone number 911 or any number designated as the fire alarm telephone number.

Protected premises means any property, real or personal, building or any part thereof in which an automatic dialing alarm system is installed and operational.

(b) *Standards for use.* The following standards shall apply in the use of automatic dialing alarms:

(1) Automatic dialing alarms shall signal the fire department communications centers using telephone numbers assigned for such purpose by the fire chief.

(2) The prerecorded alarm message of automatic dialing alarm systems shall clearly, concisely and audibly state in the English language that it is a fire alarm, the name and address of the protected premises, the name of the subscriber or other person who will be called in sequence by such alarm system to assist the fire department in its investigation of the alarm, and that the alarm system is silent or audible on the protected premises.

(3) Automatic dialing alarms shall not commence a new dialing sequence after completion of the first dialing sequence unless such system is programmed not to resignal the communications centers.

(c) *Signalling crime alert or fire alarm numbers prohibited.* No automatic dialing alarm system shall be installed, constructed or wired to signal or connect into the crime alert or fire alarm number. No person shall install, own, lease, operate or maintain any automatic dialing alarm system which signals or connects into the crime alert or fire alarm number.
(C75, § 2-144; O.8992; C79, § 2-144; O.10,585; C91, § 2-144)

ARTICLE III. UNBIASED POLICING

Sec. 86-42. Policy statement.

The City of Des Moines and the Des Moines Police Department shall be committed to the unbiased, equitable treatment of all. Department employees shall treat all in a fair, impartial and objective manner, in accordance with law, and without consideration of their individual demographics as defined in this article.
(O.15,906)

Sec. 86-43. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this article, except where the context clearly indicates a different meaning:

Biased policing means differential treatment in the performance of law enforcement duties or delivery of police services towards a person or classes of persons when one or more individual demographics was a motivating factor in the action taken. If a person's individual demographics played a motivating factor in the city employee's decision, then that personal characteristic was a motivating factor of the action taken.

Fair and impartial treatment means persons, irrespective of individual demographics, are treated in the same manner under the same or similar circumstances. Reasonable concessions and accommodations may be made, when dealing with individuals with physical, developmental or mental disabilities, injury, illness, deafness, blindness, substance abuse disorders or similar conditions, individuals whose primary language

is a language other than English, individuals of various cultural backgrounds, and individuals of youthful age, or when information about a person legally necessitates different treatment.

Individual demographics means personal characteristics to include, but not limited to: race, creed, color, ethnicity, national origin, ancestry, religion, age, gender, sex, gender identity/expression, sexual orientation, socioeconomic status, disability, immigration status, familial status, housing status, occupation, language fluency, cultural group, political status, or source of income, or any other identifiable characteristics.

Police services means actions and activities that contribute to the overall well-being and safety of the public. These tasks include but are not limited to: crime prevention and investigation, preventive patrol, traffic control, traffic accidents, medical emergencies and lifesaving services, assistance at fire scenes, public information and education.

Racial profiling means that form of biased policing where a motivating factor of the action taken is based on an individual's race, color, ethnicity, religion or national origin rather than on the individual's behavior or on information of the type and kind customarily and reasonably relied upon in identifying the individual as having engaged in prohibited activity. Racial profiling includes but is not limited to vehicle, pedestrian, and bicycle stops where race, color, ethnicity, religion or national origin was a motivating factor for the stop or enforcement action taken during the stop.

Specific subject description-based identification means a reasonably detailed physical description of the personal identifying characteristics of a potential suspect or victim, including but not limited to age, sex, ethnicity, race, or English language proficiency.
(O.15,906)

Sec. 86-44. Prohibitions and procedures.

(a) *Fair and impartial treatment.*

(1) Biased policing is prohibited both in enforcement of the law and the delivery of police services by any employee.

(2) Racial profiling is prohibited both in enforcement of the law and the delivery of police services by any employee. Discriminatory pretextual stops are prohibited under state and federal law and are also prohibited by this ordinance.

(3) Employees shall exercise their authority and act to accord fair and impartial treatment to all persons.

(4) Employees shall not consider individual demographics when performing law enforcement duties or delivering police services except when such characteristics are part of a specific subject description-based identification.

(5) Employees shall not use any terms, language or remarks that are derogatory, tend to belittle, show contempt for or defame any individual demographic, except when necessary to include such terms, language or remarks used by another for the preparation of official reports or testimony.

(6) Employees must be able to articulate reasonable suspicion or probable cause supporting any police action.

(7) Employees shall not take any law-enforcement action based on information from members of the public or other employees that they know, or reasonably should know, under all circumstances present is the product of, or motivated by, bias based on individual demographics unless the circumstances indicate that harm is imminent or a crime has been committed.

(b) *Department policies and procedures accessible to the public.* Hard copies shall be available upon request in accordance with Iowa Code Chapter 22. Department's personnel policies and standard operating procedures shall be made available to the public through publication on the city's website as soon as practicable in accordance with Iowa Code Chapter 22.
(O.15,906)

Sec. 86-45. Complaints and compliance.

(a) Employees who witness or who are aware of instances of biased policing or racial profiling shall report the incident to a supervisor and shall provide all information known to them before the end of the shift during which they make the observation or become aware of the incident or as soon thereafter as practicable under the circumstances; where use of force occurs, officers have a duty to intervene to prevent or stop the use of unreasonable force by another officer when it is safe and a reasonable opportunity exists. Where appropriate, employees are encouraged to intervene at the time the biased policing or racial profiling incident occurs and in any event shall report such biased policing or racial profiling to a supervisor as soon as practicable under the circumstances.

(b) Any employee who opposes any practice occurring in violation of this article shall not be discriminated against in any manner for opposing such practice, testifying, assisting or participating in any investigation, proceeding or hearing arising out of this article.

(c) Supervisors shall ensure the working environment is free of bias and free of racial profiling. This oversight responsibility may include periodic inspections of body and in-car audio/video systems, traffic stop data, reports and field inspections during police/citizen interactions. Supervisors shall:

(1) Take the appropriate action when a violation of this article occurs.

(2) Ensure that there is no retaliation for individuals reporting such violations.

(d) Any person claiming to be aggrieved or to have witnessed biased policing or racial profiling may file a complaint. No person shall be discouraged, intimidated, or coerced from filing such a complaint, nor shall any person be discriminated or retaliated against because he or she has filed a complaint of this nature.

(1) While the civil and human rights commission will not have jurisdiction to investigate or adjudicate alleged violations of this ordinance, the commission staff shall educate the public about the complaint process and shall offer to assist, and shall assist individuals in preparing and filing a biased policing or racial profiling complaint with the Iowa Civil Rights Commission. The ICRC has jurisdiction over racial profiling complaints against law enforcement as such complaints allege discrimination in public accommodations by a local government unit that offers services to the public based on the individual demographics prohibited by the Iowa Civil Rights Act, Iowa Code § 216.7. See also, Iowa Code § 216.2(13) as now adopted or hereinafter amended. The remedies afforded by the Iowa Civil Rights Act are not exclusive and do not foreclose a person from asserting any remedies he or she may have based on the federal or Iowa Constitutions, federal or Iowa Codes, or common law.

(2) All complaints of biased policing or racial profiling brought to the city shall be directed to the department's office of professional standards (OPS) or the Des Moines Civil and Human Rights Commission, or to both. If directed to the Des Moines Civil and Human Rights Commission, the Commission shall perform an intake function and also notify OPS. If directed to OPS, OPS shall perform an intake function and notify the Des Moines Civil and Human Rights Commission of the filed complaint.

(3) OPS will conduct a thorough investigation, consistent with the established citizen complaint process, for review by supervisory staff and the chief of police. The completed investigation with findings and recommendations will be reviewed by a committee consisting of the city manager, civil and human rights commission director, and city attorney. The committee will provide their insight and advice to the chief of police who is responsible for the disposition.

(4) If the complaint is substantiated, the department will take appropriate measures commensurate to the severity of the substantiated complaint.

(5) OPS shall maintain data relating specifically to complaints of biased policing and racial profiling. Information shall be provided to the chief of police or designated authority in a manner most suitable for administrative review, problem identification, and development of appropriate corrective actions to prevent biased policing and racial profiling.

(O.15,906)

Sec. 86-46. Training.

At least annually all sworn officers shall receive and participate in training and guidance in regard to unbiased policing and prohibited racial profiling while conducting law enforcement activities and police services, which training shall include de-escalation, cultural diversity, cultural competency, and implicit bias and may include, but is not limited to: training on subjects related to police ethics, police-citizen interaction, standards of conduct, conducting motor vehicle stops, and related topics suitable for preventing incidents of biased policing and racial profiling.
(O.15,906)

Sec. 86-47. Annual review.

This topic and policy under this article will be reviewed annually and the city manager shall certify such review to the city council no later than the first day of the fiscal year.
(O.15,906)

Chapters 87—89

RESERVED

Chapter 90

PUBLIC HOUSING*

Article I. In General

Sec. 90-1. Municipal housing agency powers and governing board.
Sec. 90-2. Powers reserved by governing board.
Sec. 90-3. Administrative and support services.
Sec. 90-4. Operating emergencies.
Secs. 90-5—90-30. Reserved.

Article II. Housing Services Board

Sec. 90-31. Established.
Sec. 90-32. Residency requirement.
Sec. 90-33. Organization, quorum and board action.
Sec. 90-34. Meeting and minutes.
Sec. 90-35. Powers and duties.
Secs. 90-36—90-60. Reserved.

Article III. Housing Services Division of the Neighborhood Services Department

Sec. 90-61. Director of neighborhood services.
Sec. 90-62. Division of housing services personnel.

*__Cross references—__Buildings and building regulations, ch. 26; housing code, § 26-436 et seq.; discriminatory housing practices, § 62-101 et seq.

ARTICLE I. IN GENERAL

Sec. 90-1. Municipal housing agency powers and governing board.

(a) The city has determined it to be in the public interest for the city to directly exercise its municipal housing powers under I.C. § 403A.1 et seq. The city is the designated municipal housing agency for the city. The governing body of the municipal housing agency shall be the municipal housing governing board, referred to in this chapter as the "governing board", consisting of the city council. The governing board shall comply with the procedural rules of the city council and shall have final jurisdiction over all matters of the municipal housing agency. The city manager or his or her designee is authorized to direct, administer, and manage the agency as a division of housing services within the department of neighborhood services.

(b) The mayor or mayor pro tem shall preside at all meetings of the governing board and shall execute agreements, deeds and other documents using his/her title of Mayor of the City of Des Moines.
(C91, § 2-344.01; O.12,097, 13,214, 13,966, 14,837, 15,695, 16,080)

Sec. 90-2. Powers reserved by governing board.

(a) For the purposes of this chapter, the following powers are specifically reserved to the governing board, including:

(1) To ratify or modify all programs and projects initiated by the housing services board within 45 days of board action or adoption.

(2) Approval and acceptance of all state or federal grants or subsidies, including the approval of all grant applications.

(3) The acquisition, mortgage, sale or conveyance of municipal housing agency real property.

(4) The exercise of the power of eminent domain.

(5) The undertaking of debt, including the issuance of bonds, or the execution of any form of loan or promissory note.

(6) The representation and defense of the municipal housing agency in all disputes, claims, actions or lawsuits, including the settlement of all such matters.

(7) a. The purchase, lease, sale or exchange of supplies, equipment, and materials and procurement of services or work to the extent unencumbered funds are available, when such contracts or agreements exceed the amount of $250,000.00 or when the city manager or director of neighborhood services determine that governing board consideration is necessary due to the expedited timing of such contracts or agreements. All references to the city council in Subdivision V, Procurement Division of Chapter 2, Administration of Article V, Departments of Division 3, Finance of this Code shall be deemed to mean the governing board in their application as provided in this chapter, provided that such references pertain to the governing board doing business on behalf of the Des Moines Municipal Housing Agency.

b. In addition to the purchasing and procurement powers set forth in section (7)a. above, the governing board may approve Competitive Proposal Contracts (a/k/a "negotiated procurement") for the procurement of goods and services submitted by the city manager or the director of neighborhood services or his or her designee which comply with the procurement policies of the United States Department of Housing and Urban Development (HUD) as set forth in HUD procurement handbook No. 7460.8 REV 2, as amended, doing business on behalf of the Des Moines Municipal Housing Agency, when such Competitive Proposal Contracts exceed the amount of

$250,000.00 or when the city manager or director of neighborhood services determine that governing board consideration is necessary due to the expedited timing of such contracts.

(b) As the governing body of the municipal housing agency, the governing board shall retain final jurisdiction over all municipal housing projects.
(C91, § 2-344.07; O.13,214, 13,966, 16,080)

Sec. 90-3. Administrative and support services.

The city shall provide and the division of housing services shall utilize services of the city, including but not limited to engineering services, personnel services, legal services, accounting services, payroll services, property acquisition services, contract procurement and administrative services, purchasing services, financial services, fire services, police services and general administrative services, to administer, operate and maintain municipal housing agency programs and property. The reasonable cost of providing such city services shall be paid by the public housing special revenue fund.
(C91, § 2-344.10; O.13,214, 15,695)

Sec. 90-4. Operating emergencies.

(a) In the event of an operating emergency as determined by the city manager, the city manager may procure, by purchase or lease, or may authorize in writing the procurement administrator of the housing services division, or the director of the neighborhood services department, or the housing services board to procure, by purchase or lease, in the open market without filing a requisition, purchase order, request for proposals or estimate therefor and without advertisement, any goods and/or services that could not have been reasonably foreseen or anticipated, for immediate delivery or furnishing to meet such operating emergency. A full written account of any such operating emergency, together with a requisition for the goods or services required therefor, shall be submitted immediately to the city manager and shall be open to public inspection for a period of at least one year subsequent to the date of the emergency purchases. If the amount so expended for such operating emergency exceeds $50,000.00, the city manager, at the next immediate governing board meeting, shall formally communicate the emergency expenditure in a full written account to the governing board. This exercise of the authority invested in the city manager in respect to purchases to meet such bona fide operating emergencies shall not be dependent upon the mayor governing the city by proclamation.

(b) In the event of an operating exigency as determined by the city manager, the city manager may temporarily extend any contract for the provision of goods and/or services to the municipal housing agency, provided that the city manager shall determine and report such to the governing board. If the governing board does not concur that the continued provision of such goods and/or services to the city by the current provider is vital to the city's interests and that the procurement of a new contract for the provision of such goods and/or services by competitive bid or request for proposals is impractical within the time remaining under the current contract, such contract shall be terminated within the time required by the governing board.

(c) Procurement and contract extension authorized by this section shall comply with the emergency procurement policies of the United States Department of Housing and Urban Development (HUD) as set forth in HUD procurement handbook No. 7460.8 REV 2, as amended.
(O.16,080)

Secs. 90-5—90-30. Reserved.

ARTICLE II. HOUSING SERVICES BOARD*

Sec. 90-31. Established.

(a) There is established in and for the city as a successor commission to the public housing board, the housing services board, referred to in

*__Editor's note—__Ord. No. 15,036, § 1, adopted August 29, 2011, amended Art. II in its entirety to read as herein set out. Former Art. II, §§ 90-31—90-35, pertained to public housing board, and derived from Code 1991, §§ 2-344.02—2-344.06, as amended.

__Cross reference—__Boards, commissions, committees and agencies, § 2-1046 et seq.

this article as "the board," for the purpose of carrying out the provisions of this chapter and this Code. Each member of the public housing board shall continue to serve on the housing services board after expiration of the member's term of office until his or her successor is appointed and confirmed.

(b) The board shall consist of nine members, each having the right to vote. The mayor and each council person shall appoint one member of the board. The mayor shall appoint one additional member from the Polk County Housing Continuum or an individual performing one of the functions below who shall be confirmed as provided in section (d) below. All appointments shall be for three years, provided, however, that each member shall hold over until his or her successor is appointed and confirmed. Any vacancies occurring in the membership shall be filled in accordance with sections 2-1046 and 2-1047 of this Code. Any member may be removed by a majority vote of the city council. The terms of board members shall expire on June 30 of the year in which their terms expire. All appointments after the original appointments shall be in accordance with sections 2-1046 and 2-1047 of this Code.

(c) All nominations to the board are subject to confirmation by the city council.

(d) The neighborhood services director or his or her designee shall select and recommend for council member appointment one member of the board who shall be either a current resident of a Des Moines Municipal Housing Agency-owned unit or a resident of a unit where rent is subsidized by the Section 8 program.
(O.15,036, 15,695, 16,080, 16,193, 16,234)

Sec. 90-32. Residency requirement.

To be eligible to be appointed a member of the housing services board, the appointee must be a resident of the city.
(O.15,036)

Sec. 90-33. Organization, quorum and board action.

The board shall elect a chairperson from its own membership. The board shall in a timely manner adopt board policies and procedures to govern the proceedings of the board in accordance with section 2-1055 of this Code. The presence of greater than fifty percent of the appointed members of the board shall constitute a quorum for the transaction of business. All actions of the board shall be by resolution or motion, and the affirmative vote of at least a majority of the members present at the meeting shall be required for the passage of either action.
(O.15,036, 16,234)

Sec. 90-34. Meeting and minutes.

The board shall hold one public meeting each month, at such time as the board shall establish in its policies and procedures. Minutes of each meeting shall be kept, and all resolutions and minutes shall be open to public inspection. Board meetings shall be conducted in compliance with all applicable state or federal laws including, but not limited to I.C. ch. 21 pertaining to open meetings.
(O.15,036)

Sec. 90-35. Powers and duties.

The board is delegated the following authority:

(1) Initiate programs or projects, including grant applications that further the policies and plans of the city's municipal housing agency, including tenant conduct and relations, in accordance with applicable local, state or federal laws, rules or regulations.

(2) Interact with other governmental agencies with respect to the application for and implementation of grants and other funding programs.

(3) Review and comment on the department director's annual operating and capital budgets prior to their submission to the city manager.

(4) a. Buy, lease, sell or exchange supplies, equipment and materials and procure services or work to the extent unencumbered funds are available when such contracts or agreements

exceed the amount set forth in Subdivision V, Procurement Division of Chapter 2, Administration of Article V, Departments of Division 3, Finance, but do not exceed the amount of $250,000.00, and when such contracts or agreements have not been presented by the city manager or director of neighborhood services to the governing board for approval due to the expedited timing thereof. All references to the city council in Subdivision V, Procurement Division of Chapter 2, Administration of Article V, Departments of Division 3, Finance of this Code shall be deemed to mean the board in their application as provided in this chapter, provided that such references pertain to the board doing business on behalf of the Des Moines Municipal Housing Agency.

b. In addition to the purchasing and procurement powers set forth in section (4)a. above, the public housing board may approve Competitive Proposal Contracts (a/k/a "negotiated procurement") for the procurement of goods and services submitted by the city manager or the director of neighborhood services or his or her designee which comply with the procurement policies of the United States Department of Housing and Urban Development (HUD) as set forth in HUD procurement handbook No. 7460.8 REV 2, as amended, doing business on behalf of the Des Moines Municipal Housing Agency, when such Competitive Proposal Contracts do not exceed the amount of $250,000.00 and when such contracts have not been presented by the city manager or director of neighborhood services to the governing board for approval due to the expedited timing thereof.

(5) Oversight of the development of municipal housing agency real property in accordance with governing board approved housing projects.

(O.15,036, 15,695, 16,080)

Secs. 90-36—90-60. Reserved.

ARTICLE III. HOUSING SERVICES DIVISION OF THE NEIGHBORHOOD SERVICES DEPARTMENT*

Sec. 90-61. Director of neighborhood services.

(a) The city manager and the chair of the housing services board may discuss the performance of the director of neighborhood services or his or her designee at appropriate times.

(b) The director of neighborhood services or his or her designee shall be responsible for the following:

(1) The professional implementation of the policies, programs, and plans adopted by the housing services board and for representing the position of the board with regard thereto.

(2) Assisting the board in official communications.

(3) Preparation of an annual operating and capital budget included as part of the total city budget.

(4) Assisting the board in the initiation of programs and projects including grant applications for governing board ratification.

(5) Supervision of the division of housing services and its employees.

(6) All municipal housing agency operations and activities.

*__Editor's note—__Ord. No. 16,080, § 1, adopted Nov. 15, 2021, amended the title of Art. III to read as herein set out. Formerly, said article was entitled "Housing Services Division of the Community Development Department."

(7) Maintenance and protection of municipal housing agency real property.

(8) Other duties assigned by the city manager.

(C91, § 2-344.08; O.13,214, 13,966, 15,695, 16,080)

Sec. 90-62. Division of housing services personnel.

All personnel of the division of housing services shall be city employees. All personnel and labor relations matters relating to employees of the division of housing services or relating to administrative or support services provided by the city shall remain the responsibility of and under the control of the city manager in accordance with I.C. § 20.1 et seq. The director of neighborhood services shall report to the city manager with respect to these specific areas.

(C91, § 2-344.09; O.13,214, 15,695, 16,080)

Chapters 91—93

RESERVED

Chapter 94

PUBLIC IMPROVEMENTS*

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ARTICLE I. IN GENERAL

Sec. 94-1. Applicability.

The provisions of articles II through X of this chapter shall apply to street and sewer improvements constructed and paid for in whole or in part by special assessments levied pursuant to I.C. ch. 384. The provisions of this article shall apply to all construction contracts entered into by the city for public improvement projects within the city. The provisions of Article VII shall apply to all public improvement projects bid pursuant to Iowa Code Chapter 26 with an estimated total cost exceeding the competitive bid threshold established in accordance with Iowa Code Chapter 26. The provisions of Article XI shall apply to construction of public improvements constructed by other than the city.
(C42, § 80-1; O.5320; C54, C62, § 44-1; C75, § 18-1; O.9591; C79, C91, § 18-1; O.11,653, 16,235)

Sec. 94-2. Duty of officers.

(a) *City manager.* The city manager shall advise the city council with respect to the needs, method of financing, plans, specifications, form of contract, proposed assessments and all other matters respecting public improvements.

(b) *Chief civil engineer.* The person performing the duties of chief civil engineer shall be the city engineer and shall be responsible for the preparation of plans and specifications for any public improvement; advising the city council and the city manager as to the general utility, necessity or efficiency of any proposed public improvement; the preparation of resolutions of necessity, schedules of assessments, valuations; and any other duties and functions as may be assigned by state law, by this Code, by other city ordinances or by the city manager.

(c) *Director of finance.* The director of finance or authorized representative shall advise the city manager upon the method of financing any proposed public improvement.

(d) *City attorney or deputy city attorney.* The city attorney or the deputy city attorney for the infrastructure and services division shall advise the city council and city manager as to the proper legal procedure in ordering or constructing any public improvement and in assessing and financing the public improvement.
(C42, §§ 80-2, 80-4; O.5320; C54, C62, § 44-2; O.7482; C75, § 18-2; O.9091; C79, C91, § 18-2; O.11,653)

Sec. 94-3. Conflict of interest in public improvements and property acquisition.

(a) No city employee, officer or agent shall participate in selection, award, or administration of a contract for the construction of a public improvement or a consulting contract for a public improvement project, nor shall any employee, officer, or agent participate in the acquisition of property or property interests for a city project or operation, if a conflict of interest, real or apparent, would be involved. Such a conflict would arise when any of the following has a financial or other interest in a contractor selected for award of a public improvement construction contract, in a consulting firm on a public improvement project, or in a property or property interest to be acquired in conjunction with a city project or operation:

(1) The employee, officer or agent;

(2) Any member of the employee's, officer's or agent's immediate family;

(3) The employee's, officer's or agent's partner; or

(4) An organization which employs or is about to employ any of the persons listed in this subsection.

The city's officers, employees, or agents will neither solicit nor accept gratuities, favors or anything of monetary value from city contractors or consultants, from potential city contractors or consultants, from parties to subagreements with city contractors, or from persons from whom the city is acquiring a property or property interest. Any employee, officer or agent who violates this section may be subject to appropriate disciplinary action.

(b) This section is in addition to the conflict of interest prohibitions found in sections 2-423, 2-713 and 2-1054 of this Code.

(c) Exceptions under federal law. To the extent allowed by applicable federal law or regulation, the city council may permit exceptions to conflicts of interest under this section which do not constitute a violation of applicable provisions of state law. The grant of such exceptions shall be specifically conditioned upon approval by the appropriate federal agency.
(C91, § 18-2.01; O.13,431)

Secs. 94-4—94-30. Reserved.

ARTICLE II. VALUATION COMMITTEE*

Sec. 94-31. Created; composition; appointment of members.

As an aid in determining valuations under this chapter, the city council shall appoint, as provided in I.C. § 384.46, three appraisers skilled in the knowledge of real estate values within the city. Such appraisers shall be appointed by the city council at the time of its informal hearing on each project from a list of qualified individuals who shall be retained for such service.
(C42, § 80-3; O.5320; C54, C62, § 44-3; C75, C79, C85, § 18-3; O.11,385; C91, § 18-3; O.13,307)

Sec. 94-32. Term; reappointment.

Members of the valuation committee shall serve as to one or more improvements or for any length of time not exceeding one year. Any member may be reappointed.
(C42, § 80-3; O.5320; C54, C62, § 44-4; C75, C79, C91, § 18-4)

Sec. 94-33. Compensation.

The members of the valuation committee shall receive compensation at an hourly rate for time actually employed in performing committee duties equivalent to range 30A, step 5 of the city salary schedule.
(C42, § 80-3; O.5320; C54, C62, § 44-5; O.8622; C75, C79, § 18-5; O.9729; C85, § 18-5; O.11,276; C91, § 18-5)

Sec. 94-34. Allocation of compensation charges.

Compensation of members of the valuation committee shall be a proper incidental expense chargeable to any proposed improvement.
(C42, § 80-3; O.5320; C54, C62, § 44-6; C75, C79, C91, § 18-6)

Sec. 94-35. Secretary.

The valuation committee shall designate one of its members as secretary. The secretary shall attend all meetings; shall have charge of all books, papers and records; and shall keep a record of all valuations fixed by the committee.
(C42, § 80-3; O.5320; C54, C62, § 44-8; C75, C79, C91, § 18-8; O.11,653)

Sec. 94-36. Qualification of members.

The members of the valuation committee shall be persons skilled in the knowledge of real estate values within the city and possessing the qualifications which will justify the reception of their testimony in the state district court in and for the county, as experts upon real estate valuations.
(C42, § 80-3; O.5320; C54, C62, § 44-10; C75, C79, C91, § 18-9)

Sec. 94-37. Duties.

The duties of the valuation committee shall consist of viewing the affected properties and determining the present fair market value of each property with the proposed public improvement completed and thereafter furnishing a written report of the fair market value of each lot within the district subject to proposed assessment when ordered by the city council or the city manager.
(C42, § 80-3; O.5320; C54, C62, § 44-11; C75, C79, C91, § 18-10)

*__Cross reference—__Boards, commissions, committees and agencies, § 2-1046 et seq.

Secs. 94-38—94-65. Reserved.

ARTICLE III. SPECIAL ASSESSMENT RECORDS

Sec. 94-66. Required.

The city clerk shall provide and keep in his or her office the necessary files and books for the preservation of the records of all special assessments levied by the city pursuant to this chapter. Files are to be properly indexed and numbered in a systematic manner.
(C42, § 92-1; C54, C62, § 44-12; C75, C79, C91, § 18-11)

Sec. 94-67. Copies of assessment proceedings.

The city clerk shall file and preserve a complete copy of all of the proceedings of the city council concerning any special assessment made pursuant to this chapter, together with all objections, requests for agricultural deferment, requests for assessment credit, recommendations or petitions filed with the city clerk and addressed to the city council relative to the special assessment.
(C42, § 92-2; C54, C62, § 44-13; C75, C79, C91, § 18-12; O.11,653)

Sec. 94-68. Records for improvements.

The city clerk shall keep on file a complete copy of the schedule of assessments, the plat, the plans and the contract and specifications for each improvement, the cost of which is to be paid by a special assessment against the real estate abutting upon or benefitted by such public improvement.
(C42, § 92-3; C54, C62, § 44-14; C75, C79, C91, § 18-13)

Secs. 94-69—94-95. Reserved.

ARTICLE IV. DEFAULT FUND*

Sec. 94-96. Applicability of article.

This article applies only to assessments levied under I.C. ch. 384 after the effective date of the ordinance from which this section derives.
(C75, § 18-24.01; O.9591; C79, § 18-24.01; O.10,660; C79, C85, § 18-15; O.11,230; C91, § 18-15)

Sec. 94-97. Collection credited to schedule.

The city treasurer shall credit to the schedule of special assessments all collections received from the county treasurer. These collections shall include those for the default fund consisting of not more than ten percent of the total estimated cost of the improvement included in the assessment in addition to all incidentals.
(C42, § 92-4; O.4825; C54, C62, §§ 44-16, 44-17; C75, C79, §§ 18-15, 18-16; O.10,660; C79, C85, § 18-16; O.11,230; C91, § 18-16)

Sec. 94-98. Use of fund.

The default fund collected by the city treasurer shall be used to pay unpaid assessments as set out in section 94-100 of this article and unforeseen costs and expenses incidental to improvement and assessment, including payments made by the city for tax sales, scavenger tax sales or redemption from tax sales. No part of the cost of the improvement or incidentals shall be deducted from the fund by any city officer or employee.
(C42, § 92-4; O.4825; C54, C62, § 44-18; C75, C79, C85, § 18-17; O.11,230; C91, § 18-17)

Sec. 94-99. Refunds to property owners.

All rebates under this article shall be made in accordance with article VI of this chapter. No more shall be rebated or refunded to a property owner than was contributed by him or her to the default fund. In no event shall there be rebated or refunded to property owners in any schedule amounts, respectively, in excess of the default fund originally approved by decree of the district court, nor shall there be any rebate or refund to

*__State law reference—__Special assessments, I.C. § 384.37 et seq.

property owners in excess of the cash in the hands of the city treasurer after all lawful charges and deductions have been made therefrom.
(C42, § 92-4; O.4825; C54, C62, § 44-19; C75, C79, C85, § 18-18; O.11,230; C91, § 18-18)

Sec. 94-100. Unpaid assessments.

All unpaid special assessments with associated interest thereon shall be deducted from the default fund before rebate to property owners under article VI of this chapter.
(C42, § 92-4; O.4825; C54, C62, § 44-22; C75, § 18-21; O.9591; C79, C85, § 18-21; O.11,230; C91, § 18-21)

Secs. 94-101—94-125. Reserved.

ARTICLE V. GENERAL DEFAULT FUND

Sec. 94-126. Applicability of article.

This article applies only to certificates and bond schedules for assessments levied under I.C. ch. 384.
(C79, § 18-25.01; O.10,660; C85, § 18-25; O.11,230; C91, § 18-25)

Sec. 94-127. Account to be kept.

The city treasurer shall set up an account on the books in his or her office a fund known as the default fund composed of items collected from the county treasurer pursuant to this article in accordance with I.C. § 384.44.
(C42, § 92-5; O.4825; C54, C62, § 44-26; C75, C79, § 18-25; O.10,660; C79, C85, § 18-25.01; O.11,230; C91, § 18-25.01)

Sec. 94-128. Source.

The items collected from the county treasurer for the default fund shall be the proceeds of the collection of special assessments uncalled for by the holders of special assessment certificates for the particular project upon which the default fund assessment is made.
(C42, § 92-5; O.4825; C54, C62, § 44-27; C75, C79, C85, § 18-26; O.11,230; C91, § 18-26)

Secs. 94-129—94-155. Reserved.

ARTICLE VI. CONSOLIDATED IMPROVEMENT FUND

Sec. 94-156. Account to be kept.

The city treasurer shall set up an account on the books in his or her office a fund known as the consolidated improvement fund.
(C42, § 92-6; O.4825; C54, C62, § 44-30; C75, C79, C91, § 18-29)

Sec. 94-157. Manner of collection, control, use and disposal.

The consolidated improvement fund shall be collected, controlled, used and disposed of in the manner provided for in I.C. § 384.68(4) and (5) and this article after all bonds, interest, penalties, deficits, defaulted installments and proper charges against the proceeds for the collection of any special assessment levied under I.C. ch. 384 for each public improvement are fully paid.
(C42, § 92-6; O.4825; C54, C62, § 44-31; C75, § 18-30; O.9591; C79, C85, § 18-30; O.11,230; C91, § 18-30)

Sec. 94-158. Refund to property owners.

Annually the engineering department shall prepare a schedule proposing refund of unused default installments and/or payments on all assessment schedules that are beyond ten years and seven months from the date of certification to the county treasurer.
(C42, § 92-6; O.4825; C54, C62, § 44-32; C75, § 18-31; O.9591; C79, C85, § 18-31; O.11,230; C91, § 18-31)

Sec. 94-159. Determination of refunds and procedures.

The engineering department shall research the records of the county treasurer during preparation of the refund schedule and collect information to determine which property owners are due a refund based upon the following guidelines:

(1) The property owner named in the original schedule of assessments must have made payments in full.

(2) All payments were made by such named property owner on time or, if sold for taxes, were redeemed by the named property owner within the allowable time to pay.

(3) If all payments were not paid by the named property owner but were paid by someone else, no refund is allowed.

(4) If all payments were not paid, the unpaid amounts shall be recorded and deducted, including interest, from the default funds collected for the assessment schedule.

(C42, § 92-6; O.4825; C54, C62, § 44-33; C75, C79, C85, § 18-32; O.11,230; C91, § 18-32)

Sec. 94-160. Calculation of refunds.

Refund of the unused portion of the default fund shall be made to those property owners who qualify under section 94-159 of this article. Refunds shall be calculated as follows:

(1) All unpaid installments and/or payments, associated interest on such unpaid installments and/or payments, and all costs associated with preparation of the refund schedule and preparation of and mailing of notices of the refund shall be deducted from the amount of default funds actually collected to determine the default funds available for refund.

(2) The default funds available for refund shall be divided among or spread over all parcels originally shown on each individual assessment schedule in the same ratio as the default funds each parcel theoretically paid was to the total default fund shown on the original assessment schedule.

(3) If the amount of the assessment for any parcel was adjusted by decree of the district court, the refund as calculated shall be based upon the amount of the assessment under the district court decree.

(4) Refund shall not be made to the property owner on that portion of default funds available for refund which was paid as part of any assessment subsidy program nor to those portions of default funds which relate to deficiency assessments or agriculturally deferred assessments not actually paid at the time the schedule required by section 94-158 of this article is prepared.

(C85, § 18-32.01; O.11,230; C91, § 18-32.01)

Sec. 94-161. Exception for holders of bonds.

The holders of any bonds in default may file a claim upon the consolidated improvement fund for payment of principal and interest on such bonds. Payment, if allowed, shall be made in the order of allowance of these claims, provided that the claims are upon a bond not more than ten years in default.

(C42, § 92-6; O.4825; C54, C62, § 44-34; C75, C79, C91, § 18-33; O.11,653)

Sec. 94-162. Council approval.

The engineering department shall present the refund schedule to the city council for approval. Within two weeks after city council approval of the refund schedule, the engineering department shall mail notices by ordinary mail addressed to the last known addresses of such property owners as best determinable from county or city records relevant to the payment of such special assessments, notifying such property owners that a refund schedule has been approved and instructing the property owners how to file for such refund.

(C42, § 92-6; O.4825; C54, C62, § 44-35; C75, § 18-34; O.9591; C79, C85, § 18-34; O.11,230; C91, § 18-34)

Sec. 94-163. Contents of notice.

The notice referred to in section 94-162 of this article shall inform the property owners named in the original schedule of assessments, describing generally the improvement, that claims will be received against the balance in such schedule until the day fixed in the notice and that all funds remaining in such schedule after allowing all proper claims will be transferred to the

consolidated improvement fund, and all rights and title of such property owners therein will be forfeited.
(C42, § 92-6; O.4825; C54, C62, § 44-37; C75, C79, § 18-36; C85, § 18-34.01; O.11,230; C91, § 18-34.01)

Sec. 94-164. Time to file for refund.

To claim a refund pursuant to this article, a property owner must file for refund with the city treasurer within 180 days after the city council approval of the refund schedule. The claim for refund must show that the property owners fulfill the requirements of section 94-159 of this article. The city treasurer shall make payment in accordance with standard city procedures.
(C42, § 92-6; O.4825; C54, C62, § 44-36; C75, C79, C85, § 18-35; O.11,230; C91, § 18-35; O.11,653)

Sec. 94-165. Transfer of funds.

All default fund balances that are not refundable and/or that are not claimed under the policy of this article shall be transferred to the consolidated improvement fund and shall become the property of the city, subject to the rights of holders of special assessments bonds as provided in state law.
(C42, § 92-6; O.4825; C54, C62, § 44-37; C75, C79, C85, § 18-36; O.11,230; C91, § 18-36)

Sec. 94-166. Notice of transfer to property owners.

The balances in any schedule of assessments levied under I.C. ch. 384 shall not be transferred to the consolidated improvement fund until notice has been given to the property owners named in the original schedule who have paid all assessments for the project in question.
(C42, § 92-6; O.4825; C54, C62, § 44-35; C75, § 18-34; O.9591; C79, § 18-34; C85, § 18-37; O.11,230; C91, § 18-37; O.11,653)

Sec. 94-167. Amount of refunds.

Under this article, no property owner named in any schedule of assessments shall be entitled to any amount in excess of that paid in by him or her to the original default and deficiency fund set forth in the schedule, without interest.
(C42, § 92-6; O.4825; C54, C62, § 44-39; C75, C79, C91, § 18-38)

Sec. 94-168. Payment of refunds.

Refunds made pursuant to this article shall be paid by the city treasurer in accordance with a schedule prepared by the city engineer and approved by the city council. Refunds shall be payable only to the owner who was originally assessed and then only upon an affidavit being filed by each property owner giving his or her name, address, legal description of the property assessed, and setting forth a sworn statement that the property owner has paid all the special assessment upon the property upon which a refund from the default and deficiency fund is demanded. The right of any person to any refund under this article shall not be transferable or assignable, at law or in equity. The facts alleged in the affidavit shall be verified by the city engineer and the city treasurer and upon their joint approval shall be confirmed by the city council. Upon confirmation the city treasurer shall have authority to rebate or refund the amount approved within 30 days after confirmation.
(C42, § 92-6; O.4825; C54, C62, § 44-40; C75, C79, C85, § 18-39; O.11,230; C91, § 18-39; O.11,653)

Sec. 94-169. Transfer of balance remaining in special assessment fund.

After all bonds issued in payment of the cost of any street or sewer improvement and all proper charges have been paid or set aside for payment from the funds received from the collection of special assessments made therefor and there remains in such funds a sum in excess of the default fund, any amount remaining in excess of the default fund for which no claim is made, as well as any future income therefrom, shall be transferred to the consolidated improvement fund and used for any purpose for which such fund may be used.
(C42, § 92-7; O.4825; C54, C62, § 44-42; C75, C79, § 18-41; C85, § 18-40; O.11,230; C91, § 18-40; O.11,653)

Secs. 94-170—94-195. Reserved.

ARTICLE VII. ADVERTISING AND RECEIVING OF BIDS*

Sec. 94-196. Opening of bids.

The city engineer or his or her designee shall preside at the public opening convened to open and announce the amount of the bids for public improvements bid pursuant to Iowa Code Chapter 26 with an estimated total cost exceeding the competitive bid threshold established in accordance with Iowa Code Chapter 26. The sufficiency and compliance of the bid security to the bid requirements shall be determined before the bid is opened. Those bids submitted with insufficient or noncompliant bid security shall not be opened, read or announced. After the bid is opened, it shall be reviewed by the engineering representative for its conformity with the city's invitation to the bidders and bid requirements. Thereafter all bids determined to be sufficient shall be read by the engineering representative. The reading of a bid or the reading of a bid under advisement shall not operate as a waiver of any defects or deficiencies in the bid or in the bid security, and the city council may reject any bid if it is determined prior to the council's acceptance thereof that the bid or bid security is insufficient. The bid tabulation submitted to the city council shall include a brief description of such defect or irregularity. The city council may thereafter waive any and all such defects or irregularities upon determining such waiver to be in the best interest of the city.
(C62, § 44-44; O.7321; C75, C79, § 18-43; O.10,660; C85, § 18-43; O.11,442; C91, § 18-42; O.11,653, 15,879, 16,235)

Sec. 94-197. Tie low bids.

If identical low bids are received on a given public improvement project bid pursuant to Iowa Code Chapter 26 with an estimated total cost exceeding the competitive bid threshold established in accordance with Iowa Code Chapter 26, both or all by bidders deemed to be responsible, award of the contract will be determined by toss of a coin if both or all of the identical low bidders concur in advance to such resolution. Failing such total concurrence by the time of the first meeting of the council following receipt of bids, the council may either reject all bids or award the contract based upon its determination of which bidder is the most responsible following notice to the identical low bidders and hearing before the council. This section shall not be controlling in those areas where a different type of resolution of tie bids is required by the source or manner of funding of all or a part of the costs of a project.
(C85, § 18-44; O.11,441; C91, § 18-43; O.11,653, 16,235)

Sec. 94-198. Disqualification of bidders.

Upon the recommendation of the city engineer, the city council may disqualify a contractor or subcontractor from bidding on future public improvement construction or repair contracts or from participating in such as a subcontractor for a period of up to three years. A contractor or subcontractor may be disqualified upon a determination by the city council that the contractor or subcontractor has:

(1) Continually failed or refused to remove and replace materials or work found by the city engineer not to be in reasonably close conformity with the contract documents or to correct such material or work so as to cause such materials or finished product to be reasonably acceptable work;

(2) Continually and, in the judgment of the city engineer, without good cause therefor failed to carry on the work in an acceptable manner or refused to comply with a written order of the engineer within a reasonable time;

(3) Failed to perform with its own organization the work as required or otherwise assigned or disposed of work or the contract or any part thereof without approval of the city council;

(4) Forfeited a bid bond and failed to enter into the contract upon an offer of award by the city council in response to a prior

*__State law reference—__Bid procedures, I.C. § 384.95 et seq.

advertisement for bids for the same project or any combination of projects involving the project for which award is currently being considered;

(5) Failed to comply with nondiscrimination requirements of the standard specifications or special provision;

(6) Habitually failed to comply with the city's program to encourage utilization of disadvantaged business enterprises (DBE) subcontractors on city public improvement projects;

(7) Failed to comply with the requirement to pay prevailing wages, as required by federal law or article XI of this chapter;

(8) Been disqualified, suspended, or debarred by an agency of the state or federal government;

(9) Subcontracted, employed, or otherwise used services, for work of the city, of one who is disqualified by the city, except to fulfill agreements for work on existing contracts;

(10) Been convicted of or pled guilty or nolo contendere to a charge of engaging in any conspiracy, combination, or other unlawful act in restraint of trade or of similar charges in any federal court or a court of this or any other state; or

(11) Offered or given gifts or gratuities to employees of the city in violation of state law or has had as his or her employee a person who was at the time also a city employee.

(C91, § 18-44; O.11,653)

Sec. 94-199. Procedure for disqualification.

(a) If the city engineer determines that cause exists to disqualify a contractor or subcontractor from future participation in or bidding upon public improvement construction or repair projects for any of the reasons set for in section 94-198 of this article and further determines to recommend disqualification to the city council, the city engineer shall so notify the affected contractor or subcontractor. The notice shall set forth the reasons supporting disqualification and the proposed period for disqualification and shall be sent to the contractor or subcontractor by certified mail, return receipt requested.

(b) Upon written request of the contractor or subcontractor filed within ten days of mailing of the notice provided in subsection (a) of this section, the city engineer shall schedule a hearing at which the contractor or subcontractor may present evidence or argument why he or she should not be disqualified. Such hearing shall be scheduled and held within ten days of receipt of request therefor. The city engineer's recommendation shall be issued within 30 days of the conclusion of the hearing and shall be mailed to all parties participating in the hearing. If the city engineer's recommendation is to disqualify the contractor or subcontractor, the city engineer shall set out therein the recommended period of disqualification, not to exceed three years, and shall forward a copy thereof to the city council.

(c) If the city council does not act upon the city engineer's recommendation to disqualify a contractor or subcontractor within 30 days of its receipt, the recommendation shall be considered accepted. Disqualification shall commence upon the earlier of the expiration of the 30-day period or council action accepting the city engineer's recommendation to disqualify.

(C91, § 18-44.01; O.11,653)

Secs. 94-200—94-225. Reserved.

ARTICLE VIII. SPECIAL ASSESSMENT SUBSIDY

Sec. 94-226. Assessment credit required.

The city has allocated from the general fund a sum sufficient to provide a subsidy, in accordance with criteria and limitations set out in this article, to homeowners resident within the corporate limits whose homes are located on parcels assessed for certain projects for the construction of sanitary, storm and combined sewers, street grading, paving, curbing and gut-

tering. Public improvement subsidy shall also be available each year for projects for construction of sidewalks.
(C62, § 44-46; O.8371, 8418, 8552, 8804; C75, § 18-45; O.8996, 9309, 9479; C79, § 18-45; O.9731, 9837, 9969, 10,098, 10,664; C85, § 18-45; O.11,052; C91, § 18-45; O.11,936)

Sec. 94-227. Method of payment.

The public improvement special assessment subsidy shall be paid by the finance director by issuing warrants charged against the general fund payable to the county treasurer.
(C62, § 44-47; O.8371, 8455; C75, § 18-46; O.9309; C79, C85, § 18-46; O.11,052; C91, § 18-46; O.11,936)

Sec. 94-228. Application required.

(a) As used in this section, the term "member of the family" is defined as a relationship to the homeowner and his or her spouse and includes father, mother, grandfather, grandmother, son, daughter, grandson, granddaughter, niece and nephew.

(b) Each homeowner believed to be qualified for receipt of a subsidy provided for in this article may make application for such subsidy by filing on a form to be provided a verified statement with the city engineer showing:

(1) The applicant's status as head of the household and the total annual income as defined in subsection (c) of this section.

(2) The applicant makes his or her domicile on a parcel which has been assessed for a public improvement within the meaning of I.C. § 384.1 et seq., or repair, replacement, or reconstruction of a sidewalk which

has been assessed under I.C. § 364.1 et seq., and the applicant has a recorded legal or equitable title to the parcel.

(3) The street frontage, expressed in linear feet, of the assessed parcel relative to which the application for subsidy is being made.

(4) The applicant expressly waives any confidentiality as to all sources of information necessary for verification of income, whether from employment, social security benefits, interest or dividends, rental income, room and board receipts or any other regularly received income as more fully set out in subsection (c) of this section.

(c) An applicant's total annual income for the 12-month period immediately preceding the date of application shall be computed by including the following factors:

(1) The applicant's earnings.

(2) The spouse's earnings and earnings of all other members of the family who share the household, if the employment of the spouse or other family members is a definite characteristic of family life. Excluded is the income of any household resident who is not a member of the family but included are any funds contributed or paid to the family on a regular basis by such person.

(3) Other income regularly received by the applicant or his or her family from any source, except the payment of monthly social security benefits for educational purposes to the children of individuals entitled to disability or old-age social security insurance benefits.

(4) Payments to the head of the household for support of a minor or payments nominally to a minor for his or her support but controlled for his or her benefit by the head of the household or a resident family member other than the head who is responsible for his or her support.

(5) Income from the rental units in the property based upon the difference between the following (cannot be less than $0.00):

a. Gross rental income.

b. On the basis of an average of experience for two or more years' expenditures for mortgage principal and interest, mortgage insurance premium, service charges, hazard insurance, real estate taxes and special assessments, maintenance and repairs, heating and utilities, ground rent, and other cash expenditures for the property, such as advertising vacancies. If the applicant has not owned the property for two or more years, the engineering department shall estimate the income and expenditures on the available experience.

(d) Any person making a false statement, claim or affidavit for the purpose of obtaining the subsidy provided for in this article or any two or more persons who conspire and confederate together to make such false statement, claim or affidavit or to assist another to so make shall be recommended to the county attorney for criminal prosecution. (C62, § 44-48; O.8371, 8455, 8804; C75, § 18-47; O.8996, 9479, 9600; C79, § 18-47; O.10,003; C85, § 18-47; O.11,052; C91, § 18-47; O.11,936)

Sec. 94-229. Eligibility.

(a) As used in this section, the term "designated neighborhood" is defined as a portion of the city that has been designated by the city council by resolution as a specific area or neighborhood in which special funding and resources are to be allocated for the planning and implementation of various neighborhood and infrastructure improvements as identified in the approved neighborhood plans.

(b) The city engineer shall certify eligibility and requisition payment of the special assessment subsidy, plus interest, except with regard to persons referred to in subsection (e) of this section when all of the criteria in this subsection are fully met for the 1989 program and each successive year thereafter. To be eligible for a special assess-

ment subsidy, the applicant must have a recorded legal or equitable title to the parcel and meet the following guidelines:

(1) The applicant is a head of household and the adjusted annual income, as defined in accordance with subsection (c) of this section is at or below 80 percent of the median income guidelines for the Des Moines Metropolitan Statistical Area as established by the U.S. Department of Housing and Urban Development Block Grant (CDBG) programs (called median income guidelines) for the year in which the resolution of necessity for construction of the public improvement is approved by the city council, or for I.C. ch. 364 assessments the year in which the final assessment schedule is adopted by city council. The amount of the subsidy shall be calculated in accordance with subsection (d) of this section as further limited in this section.

(2) The applicant resides within a designated neighborhood and is a head of household and the adjusted annual income, as defined in accordance with subsection (c) of this section, is above 80 percent through and including 120 percent of the median income guidelines for the year in which the resolution of necessity for construction of the public improvement is approved by the city council, or for I.C. ch. 364 assessments the year in which the final assessment schedule is adopted by the city council. The amount of the subsidy shall be calculated in accordance with subsection (e) of this section as further limited in this section.

However, if the assessed parcel has a frontage of more than 80 feet, the subsidy shall be for only that portion of the assessment which is applicable to the lot which bears the applicant's domicile and has a frontage of not more than 80 feet. The frontage on a lot owned by the applicant on which no dwelling is located and which is contiguous to the lot on which the domicile is located may be used to allow the applicant to qualify for the maximum 80-foot credit if the lot on which the domicile is located has a frontage of less than 80 feet. The contiguous lot with the highest assessed value shall be used when two or more contiguous lots would otherwise qualify. Lots which are contiguous to and under the same ownership as lots qualifying under this subsection and which do not front on either the street used to determine the frontage on such qualifying lots or on a street parallel to such street shall be considered as part of such qualifying lots; subsidy extended to such lots shall not exceed the subsidy extended to the qualifying lots.

(c) An applicant's adjusted annual income shall be computed as the total annual income of all members of the family, less:

(1) The income of any family member, other than the head of the household or his or her spouse, who is under 18 years of age or is a full-time student.

(2) The first $300.00 of the income of a secondary wage earner who is the spouse of the head of the household.

(3) An amount equal to $300.00 for each member of the family residing in the household, other than the head of the household or his or her spouse, who is under 18 years of age or who is 18 years of age or older and is disabled or handicapped or a full-time student.

(4) Nonrecurring income, as determined by the finance department.

(5) Five percent of the family's gross income, ten percent for elderly families over 60 years of age.

(6) Extraordinary medical expenses, defined to mean medical expenses in excess of 7½ percent of total family income, where not compensated for or covered by insurance and where reported on the applicant's federal and state income tax returns.

(7) An amount equal to the sums received by the head of the household or his or her spouse from or under the direction of any public or private nonprofit child placing agency for the care and maintenance of one or more persons who are under 18 years of age and where placed in the household by such agency.

(8) Unusual occupational expenses not compensated for by the employers, such as special tools and equipment, but only to the extent to which such expenses exceed normal and usual expenses incidental to the type of employment engaged in by the employee.

(9) Amounts paid by the family for the care of children or sick or incapacitated family members when determined to be necessary to employment of the head of household or spouse, except that the amount deducted shall not exceed the amount of income received by the family member thus released. No person in the family shall be entitled to more than one exemption.

(d) If applicant meets the criteria in subsection (c) of this section, the applicant will be required to pay an assessment equal to three percent of the applicant's adjusted annual income for assessments resulting from storm sewer and/or flood control construction projects; three percent of the applicant's adjusted annual income for assessments resulting from sidewalk construction, repair, replacement, or reconstruction projects; and five percent of the applicant's adjusted annual income for assessments resulting from other types of construction projects per section 94-226 of this article; while the remaining amount of the assessment will be paid as an assessment subsidy up to the maximum frontage width of 80 feet in accordance with subsection (b) of this section.

(e) If the applicant resides within a designated neighborhood and if the city council has approved community development block grant (CDBG) funds to be utilized as supplemental assessment subsidy to pay the applicant's portion of the special assessment in accordance with subsection (d) of this section, applicants above 80 percent through and including 120 percent of median income guidelines shall receive assessment subsidy as defined in this subsection. If the applicant meets the criteria, the applicant will be required to pay a reduced assessment based upon the applicant's adjusted annual income as follows as a percentage of the median income guidelines:

Income (percent)	*Portion of Assessment Paid by Applicant (percent)*
Above 80 and including 90	50
Above 90 and including 100	70
Above 100 and including 110	80
Above 110 and including 120	90
Above 120 of median income	100

The applicant's assessment resulting from all types of construction projects per section 94-226 of this article will be reduced as shown, while the remaining amount of the assessment will be paid as an assessment subsidy up to the maximum frontage width of 80 feet in accordance with subsection (b) of this section.

(f) Any person receiving reimbursement under I.C. § 425.23 of an amount payable upon a special assessment, as verified by the engineering department, shall have such amount deducted from the subsidy provided for in this section. No person shall be entitled to a duplication of benefits by virtue of participation in both the state and city programs.
(C62, § 44-49; O.8371, 8455, 8699, 8804; C75, § 18-48; O.8996, 9479, 9600; C79, § 18-48; O.9837, 9969, 10,003, 10,268, 10,388, 10,664; C85, § 18-48; O.10,975, 11,052, 11,307; C91, § 18-48; O.11,936)

Sec. 94-230. Board of review.

(a) All decisions of the city engineer to grant or deny application for subsidy made in accordance with the criteria set out in section 94-229 of this article shall be final when in accord with the evidence the applicant is required to submit by section 94-228 of this article.

(b) When the applicant asserts that the decision of the city engineer is not in accord with the evidence submitted, the matter shall, on request of the applicant, be submitted for review to the physical services task force of the central advisory board. Such board of review shall examine the application submitted to the city engineer and determine whether the decision of the city engineer is in accord with the evidence contained therein.

(c) If the board of review determines that the decision of the city engineer was not in accord with the verified application, a report will be sent to the city manager with a recommendation for appropriate remedial action.
(C62, § 44-51; O.8371, 8455; C75, C79, § 18-50; O.10,003; C91, § 18-50; O.11,936)

Sec. 94-231. Administration.

The city manager shall take responsibility for making such procedural and administrative determinations as shall be required and not in conflict with the provisions and intent of this article.
(C62, § 44-52; O.8371; C75, C79, C91, § 18-51)

Sec. 94-232. Real estate interests included.

(a) For the purposes of this article, the expression "legal or equitable title" shall include the following:

(1) The rights of persons occupying as a surviving spouse.

(2) Persons occupying under contract of purchase.

(3) Persons occupying under devise or by operation of the inheritance laws where the whole interest passes or where the divided interest is shared only by persons related or formerly related to each other by blood, marriage or adoption.

(4) Persons occupying under deed which conveys a divided interest where the divided interest is shared only by persons related or formerly related to each other by blood, marriage or adoption.

Provided, however, that such interests are conveyed or vested prior to the city council resolution initiating the public improvement for which an assessment subsidy is sought and that such interests are recorded in the office of the county recorder for the county.

(b) The expression "legal or equitable title" shall not, for the purposes of this article, include a leasehold, an option to buy, or a contract of purchase, the vendor and vendee of which contract were previously landlord and tenant with respect to the same real estate parcel and signed subsequent to January 1, 1972, unless the circumstances of the transaction clearly support a conclusion that the change of relationship from a landlord and tenant to vendor and vendee was not made for the purpose of obtaining benefit of the subsidy provided in this article and shall not include any other interest in real property acquired solely for the purpose of obtaining the subsidy provided for in this article.
(C62, § 44-53; O.8371, 8455; C75, C79, C85, § 18-52; O.11,052; C91, § 18-52; O.11,936)

Sec. 94-233. Scope.

(a) The public improvement special assessment subsidy provided for each year in this article shall be limited to the projects during each year for sanitary, storm and combined sewers; street grading, paving, curbing and guttering; and sidewalks for which the resolution of necessity is adopted after December 16, 1986 and on or before December 15, 1987 or for like period in each successive year following December 15, 1987, or for sidewalk replacement under I.C. § 364.1 et seq., for like period.

(b) No application for assessment subsidy shall be received by the city engineer after 180 days from the date of the city council's adoption of the resolution of necessity relating to the particular assessment project for which the assessment credit is sought, except as provided in subsection (c) of this section. No application related to the replacement, repair, and reconstruction of a sidewalk shall be received by the city engineer after 180 days from the hearing on the final adoption of the assessment schedule and acceptance of the work.

(c) For the joint Hamilton drain project between the city and the county, no application for assessment subsidy shall be received by the city engineer after 180 days from the date of the county board of supervisor's adoption of the resolution of necessity for the Hamilton drain assessment project.
(C62, § 44-54; O.8371, 8455, 8552, 8688, 8804; C75, § 18-53; O.8996, 9309, 9479, 9600; C79, § 18-53; O.9631, 9705, 9731, 9742, 9774, 9837, 9969, 10,003, 10,098, 10,664; C85, § 18-53; O.11,052, 11,067; C91, § 18-53; O.11,936)

Secs. 94-234—94-260. Reserved.

ARTICLE IX. AMORTIZATION PERIOD FOR SPECIAL ASSESSMENTS

Sec. 94-261. Amortization period for public improvements.

The period of amortization for public improvement projects for opening, establishing or grading streets and the construction of Portland cement concrete or asphalt concrete street improvements, storm sewers, sanitary sewers, water mains, pedestrian underpasses and overpasses, sewage pumping stations, disposal or treatment plants, drainage conduits, channels and levees, street lighting, parking facilities, and appurtenant facilities is established as ten years. The period of amortization for public improvement projects for the construction of sidewalks is established as five years. The period of amortization shall be calculated commencing from the date of adoption by the city council of the resolution levying assessments and conditional deficiency assessments for the completed public improvements, in such manner as to coincide with the maturity and collection of annual assessment installments pursuant to I.C. § 384.65.
(C75, § 18-55; O.9334; C79, C91, § 18-55; O.14,091)

Sec. 94-262. Three-year amortization period.

The period of amortization, to be computed in the same manner as established in section 94-261 of this article, is established as three years for the repair of street grading, street surfacing with oil, gravel, oil and gravel or chloride, to be calculated in the same manner as provided in section 94-261 of this article.
(C75, § 18-56; O.9334; C79, C91, § 18-56)

Sec. 94-263. Special amortization periods.

When the council determines that the period of amortization under sections 94-261 and 94-262 of this article of a public improvement should be for a different time period than established, the council may so provide for such period by amendment to this article, prescribing the appropriate amortization period as may be applicable to these specific public improvements.
(C75, § 18-57; O.9334; C79, C91, § 18-57)

Sec. 94-264. Waiver of certain deficiencies.

All special assessment conditional deficiencies of less than $100.00 against any lot are forgiven, and the county treasurer and the city engineer are authorized to delete the amounts from their records of conditional deficiency assessments.
(C75, § 18-58; O.9334; C79, C91, § 18-58; O.13,014)

Sec. 94-265. Application of amortization since July 1, 1975.

This article shall be applicable to all conditional deficiency assessments made in connection with public improvements undertaken pursuant to I.C. ch. 384 at any time commencing with July 1, 1975.
(C75, § 18-59; O.9334; C79, C91, § 18-59)

Secs. 94-266—94-290. Reserved.

ARTICLE X. DIVISION OF CONDITIONAL DEFICIENCIES

Sec. 94-291. Application to subdivision of land.

No plat for the subdivision of land against which there is a conditional deficiency may be approved by the city council until the engineering department has approved a schedule for the division of conditional deficiency. When such a schedule has been provided to and approved by the city council, it shall be certified to the county treasurer as soon as practicable after the plat is approved.
(C79, § 18-60; O.9665, 9732; C91, § 18-60)

Sec. 94-292. Submission of request.

Requests for division of conditional deficiencies shall be submitted to the department of engineering pursuant to sections 94-291 and 94-294 of this article. A copy of the schedule for the division of

conditional deficiency shall be submitted to the plan and zoning department pursuant to sections 106-74 and 106-103 of this Code.
(C79, § 18-61; O.9665, 9732, 10,664; C91, § 18-61)

Sec. 94-293. Schedule.

(a) A schedule for division of conditional deficiency prepared after certification of a final assessment schedule shall provide for proration of the conditional deficiency over all lots into which the affected land has been subdivided.

(b) If the certification of a final assessment schedule is subsequent to the approval of a schedule for division of conditional deficiency as provided for in this article, the final assessment schedule shall be deemed to supersede the schedule for division of conditional deficiency.

(c) Upon approval of a plat by the city council and certification of the related schedule for division of conditional deficiency by the city council to the county treasurer, a copy of such related schedule shall be sent by the engineering department to the community development department along with the legal description of the land before its subdivision.
(C79, § 18-62; O.9665; C91, § 18-62; O.13,014)

Sec. 94-294. Fee.

A fee in an amount no less than $25.00 and not to exceed $500.00 shall be charged to the subdivider for review of each request for division of conditional deficiency. The fee shall be paid prior to the engineering department's approval of a request submitted under this article.
(C79, § 18-63; O.9665, 10,664; C91, § 18-63)

Secs. 94-295—94-320. Reserved.

ARTICLE XI. PRIVATE CONTRACTS FOR CONSTRUCTION

Sec. 94-321. Procedures for approval of three party contract.

(a) Prior to the commencement of construction of any street or sewer improvements associated with subdivision development, site plan development, or any private construction project, involving the construction of streets or sewers which are to be dedicated to and maintained by the city, the construction of private sewers upon city property or street rights-of-way, or the construction of private streets or private sewer mains serving more than one building, the person desiring to construct such improvements shall make application to the city engineer for approval of the private construction contract pursuant to which the such improvements will be constructed. The application shall be in the form of a letter requesting approval and shall be accompanied by reproducible Mylars of engineering design drawings of such improvements approved by the city engineer, executed originals of all proposed contracts for the construction of such improvements, the contractor's surety bond for the performance, payment and maintenance of such work, and a certificate of insurance evidencing insurance coverages as required by the engineering department. The application shall also be accompanied by payment of an administrative fee for the city's costs of processing and approving the contract and accepting the work performed thereunder, together with an inspection and testing fee for the city's costs of inspecting and testing the work performed under the contract, said fees to be calculated upon the basis of the schedule of fees adopted by the city council by resolution. All such proposed contracts shall be three-party contracts in substantially the form provided and required by the engineering department. Under such contract, the city is to be a named third-party beneficiary of the contractor's obligations and commitments with regard to the construction of the improvements and an obligee under the contractor's bond. Surety bonds and insurance certificates shall likewise be in substantially the form provided and required by the engineering department.

(b) Upon receipt of an application requesting approval accompanied by all required documentation, and upon payment of fees as required in subsection (a) above, the city engineer shall make a recommendation to the city council as to the approval or rejection of the proposed contract, taking into consideration the following:

(1) The financial responsibility of the contractor.

(2) The past record of transactions and experience with the contractor, including the quality of workmanship; the number of liens, claims or complaints filed; and the number of repairs made on prior public improvement construction projects involving that contractor.

(3) The adequacy of the contractor's equipment and materials.

(4) The contractor's demonstrated ability to complete performance of the work.

(5) The conformity of the proposed contract and related documents with the requirements of this section.

(c) A proposed contract may be rejected upon a determination by the city council that the contractor has:

(1) Without good cause therefor failed to carry on or complete prior work under a three-party contract in an acceptable manner or refused to comply with a written order of the engineer with regard thereto within a reasonable time;

(2) Failed to perform prior work under a three-party contract in reasonably close conformity with the plans and specifications therefor or in reasonably close conformity with the city's design standards;

(3) Failed or refused to remove and replace materials or work found by the city engineer not to be in reasonably close conformity with the plans and specifications or city design standards, as applicable, or failed to correct such material or work so as to cause such materials or finished product to be reasonably acceptable work;

(4) Assigned or disposed of work or the contract or any part thereof without approval of the city engineer; or

(5) Offered or given gifts or gratuities to city employees in violation of state law or has had as its employee a person who was at the time also a city employee.

(d) If the city engineer determines to recommend rejection of the contract to the city council, the city engineer shall so notify the affected contractor. The notice shall set forth the reasons supporting rejection of the proposed contract, shall indicate that the contractor may appeal the city engineer's determination in that regard, and shall be sent to the contractor by certified mail, return receipt requested.

(e) Upon written request of the contractor filed within ten days of mailing of the notice provided in subsection (c) of this section, the city engineer shall schedule a hearing at which the contractor may present evidence or argument why his or her proposed contract should not be rejected. Such hearing shall be scheduled and held within ten days of receipt of request therefor. The city engineer's recommendation shall be issued within 30 days of the conclusion of the hearing, shall be mailed to all parties participating in the hearing, and shall be forwarded to the city council for consideration. If the city engineer's recommendation is to reject the proposed contract, the city engineer shall notify the contractor by certified mail, return receipt requested, of the date, time, and location of the city council meeting at which the city engineer's recommendation will be presented to the city council for consideration.

(f) The city council may accept or reject the city engineer's recommendation with respect to the proposed contract, but if the city council determines to reject the proposed contract, the reasons for rejection shall be set forth in the council resolution memorializing that action.

(g) In the event a contract is rejected, the administrative portion of the fee will be retained and the inspection and testing portion of the fee shall be refunded to the applicant.
(C91, § 18-64; O.13,046, 14,173)

Sec. 94-322. Disqualification of contractors.

Upon the recommendation of the city engineer, the city council may disqualify a contractor from participating in the construction of public improvements under three-party contracts as provided in section 94-321 of this article for a period of up to three years. A contractor may be disqualified upon a determination by the city council that the

contractor has failed to meet any of the criteria set forth or has failed to perform as required in subsection 94-321(b) of this article.
(C91, § 18-65; O.13,046)

Sec. 94-323. Procedure for disqualification.

(a) If the city engineer determines to recommend disqualification to the city council as provided in section 94-322 of this article, the city engineer shall so notify the affected contractor. The notice shall set forth the reasons supporting disqualification and the proposed period for disqualification, shall indicate that the contractor may appeal the city engineer's determination in that regard, and shall be sent to the contractor by certified mail, return receipt requested.

(b) Upon written request of the contractor filed within ten days after the contractor's receipt of the notice provided in subsection (a) of this section, the city engineer shall schedule a hearing at which the contractor may present evidence or argument why he or she should not be disqualified from future participation in three-party contracts for the construction of public improvements. Such hearing shall be scheduled and held within ten days of receipt of the request therefor. The city engineer's recommendation shall be issued within 30 days of the conclusion of the hearing and shall be mailed to all parties participating in the hearing. If the city engineer's recommendation is to disqualify the contractor, the recommendation shall include the recommended period of disqualification, not to exceed three years. The city engineer's recommendation shall be forwarded to the city council for consideration, and the city engineer shall notify the contractor of the date, time, and location of the city council meeting at which the city engineer's recommendation will be presented to the city council for consideration.

(c) The city council may accept or reject the city engineer's recommendation to disqualify a contractor on the basis of the criteria set forth in subsection 94-321(b) of this article, but the reasons for rejection shall be set forth in the council resolution memorializing that action. If the city council does not act upon the city engineer's recommendation to disqualify a contractor within 30 days of its receipt, the recommendation shall be considered accepted. Disqualification shall commence upon the earlier of the expiration of such 30-day period or the council action accepting the city engineer's recommendation to disqualify.
(C91, § 18-66; O.13,046)

Sec. 94-324. Failure to complete improvements; collection against bond.

Where a bond has been posted and required bonded improvements have not been constructed or installed as set forth by the terms of the three-party contract and the bond, the city council may cause notice of contractor's default to be served upon the contractor and the contractor's surety, therein demanding full performance within a specified period of time. If the contractor or the surety does not perform as required within the time specified in the default notice, the city council may thereupon declare such bond to be due and shall draw upon the bond funds in an amount sufficient to cover the costs of completion of the improvements. The principals and sureties shall be jointly and severally liable as their obligations may appear on the bond for completing all required improvements.
(C91, § 18-67; O.13,046)

Secs. 94-325—94-350. Reserved.

ARTICLE XII. SPECIAL ASSESSMENT SUBSIDY FOR DRAINAGE IMPROVEMENT PROJECTS

Sec. 94-351. Established.

(a) The city has allocated from the stormwater management revenues a sum sufficient to provide a subsidy, as described in section 94-355, to property owners whose properties were assessed for the Dean's Lake I, Dean's Lake II, Hamilton Drain, or Fiftieth and Franklin drainage improvement projects. The amount of the assessment subsidy shall be equal to the monthly stormwater management charges accrued against such properties.

(b) For purposes of this article, the term "property owner" or "owner" shall mean the owner of record of a property or the party in possession

thereof under lease or contract who paid special assessments applicable to the property, and who is responsible for payment of municipal utility charges against the property, including water service charges, sewer service charges, solid waste collection service charges, and stormwater management charges.

(c) For purposes of this article, the term "property" shall mean those properties against which the city has certified special assessments for the Dean's Lake I, Dean's Lake II, Hamilton Drain, or Fiftieth and Franklin drainage improvement projects.
(C91, § 18-68; O.13,079, 14,359)

Secs. 94-352—94-354. Reserved.

Editor's note—Ord. No. 14,359, § 1, adopted July 26, 2004, repealed §§ 94-352—94-354 which pertained to initial application and annual recertification required, eligibility, and appeal of city engineer's determination, respectively, and derived from Code 1991, §§ 18-69—18-71; Ord. No. 13,079; and Ord. No. 13,229.

Sec. 94-355. Method of advancing subsidy credits.

(a) The city engineer shall advance an assessment subsidy credit provided in this article to the city water works, with direction to credit the amount of the subsidy for each property to the stormwater management portion of the account for each property for each monthly billing by the city water works.

(b) The assessment subsidy credits accumulated from the period of September 1, 2002 through October 31, 2003, shall be credited as a lump sum to the combined services charges on each property owner's city water works account. Such accumulated credit shall be applied to city water works accounts beginning during the month of September, 2004 and continuing until said accumulated credit is expended or a refund is granted. In the event that a property owner ceases to own and occupy or reside at the property before such accumulated credit has been expended, the property owner shall receive reimbursement for such unexpended subsidy amount less the amount of combined services fees due at the time of the refund request.

(c) Assessment subsidy credits remaining after the accumulated credits described in section 94-355(b) have been made shall continue thereafter as a credit in the amount of the monthly stormwater management charges on the property owner's monthly city water works account billing.

(d) The monthly assessment subsidy credits shall continue until the entire assessment against the property has been reimbursed or until June 30, 2024, the termination date of stormwater management charges pursuant to section 118-29 of the Code, whichever occurs first, so long as the person continues to own and occupy or reside at the property.
(C91, § 18-72; O.13,079, 14,359)

Sec. 94-356. Administration.

The city manager shall make all procedural and administrative determinations necessary to implement this article not in conflict with the provisions and intent of this article.
(C91, § 18-73; O.13,079)

Sec. 94-357. Limitations.

(a) In no case shall the city's assessment subsidy credit pursuant to this article and/or pursuant to article VIII of this chapter exceed the amount of the assessment paid or to be paid by the property owner for drainage improvements.

(b) Properties whose drainage improvement special assessments have been paid in full pursuant to article VIII of this chapter shall not be eligible for further subsidy credit pursuant to this article.

(c) Any person making a false statement, claim or affidavit for the purpose of obtaining the subsidy credit provided for in this article for any two or more persons who conspire and confederate together to make such false statement, claim or affidavit or to assist another to do so shall be recommended to the county attorney for criminal prosecution.
(C91, § 18-74; O.13,079, 14,359)

Secs. 94-358, 94-359. Reserved.

ARTICLE XIII. EMERGENCY REPAIR OF PUBLIC IMPROVEMENTS

Sec. 94-360. Contracts for emergency repair of public improvements.

When emergency repair of a public improvement is necessary and the delay of advertising and a public letting might cause serious loss or injury to the city, the mayor, as the chief official of the city, or the city manager, as the chief officer of the city, shall each have authority to make a finding of the necessity to institute emergency proceedings under I.C. § 384.103 and shall procure a certificate from a competent licensed professional engineer or registered architect, certifying that emergency repairs are necessary. The mayor and the city manager shall each have authority to accept, enter into and make payment under a contract for emergency repairs without holding a public hearing and advertising for bids in accordance with I.C. § 384.103.
(O.14,867)

Chapters 95—97

RESERVED

Chapter 98

SOLID WASTE*

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*__Cross references—__Buildings and building regulations, ch. 26; environment, ch. 42; littering, § 42-391 et seq.; health and sanitation, ch. 54; glass containers and waste materials at park and recreational facilities, § 74-96; putting glass or other debris on highway, § 114-369; utilities, ch. 118.

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ARTICLE I. IN GENERAL

Secs. 98-1—98-25. Reserved.

ARTICLE II. COLLECTION AND DISPOSAL

DIVISION 1. GENERALLY

Sec. 98-26. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

(a) *Appliances* include, but are not limited to, refrigerators, freezers, kitchen ranges, air conditioning units, dehumidifiers, water heaters, furnaces, thermostats, clothes washers, clothes dryers, dishwashers, microwave ovens, and fluorescent light fixtures (excluding bulbs). These items may contain Polychlorinated Biphenyl (PCB), capacitors, refrigerants and components containing mercury which are restricted by law from being disposed of at a landfill.

Authority means the Metro Waste Authority, successor agency to the Des Moines Metropolitan Area Solid Waste Agency.

(b) *Reserved.*

(c) *Capacitor* means a device for accumulating and holding a charge of electricity that consists of conducting surfaces separated by a dielectric fluid.

City-owned container means those solid waste containers which the city purchases and provides to the owners or occupants of residential premises for the placement of solid waste for collection by the city.

Complex or residential buildings means two or more adjacent buildings defined as residential premises that share a common address and ownership.

(d) *Director* means the director of public works or any authorized employee or representative who shall have responsibility for administering and enforcing this chapter.

Disposal site means a sanitary landfill transfer station or other facility for receiving or disposing of solid waste.

(e) *Extra trash* item means one 33-gallon trash bag or one box no larger than 24 × 24 × 36 inches with a maximum weight of 40 pounds.

(f) *Reserved.*

(g) *Reserved.*

(h) *Hazardous substance* has the same meaning and definition as appears in I.C. § 455B.381 and includes but is not limited to explosive materials, rags or other wastes soaked in volatile and inflammable materials; drugs, poisons; radioactive materials; highly combustible materials; and other materials which may present a special hazard to collection or disposal personnel or equipment or to the public.

Hazardous waste has the same meaning and definition as appears in I.C. § 455B.411 and includes but is not limited to fly ash or other fine or powdery material and other material which may present a special hazard to collection or disposal personnel or equipment or to the public.

(i) *Reserved.*

(j) *Reserved.*

(k) *Reserved.*

(l) *Large item* means an item that does not fit in a 33-gallon trash bag or box no larger than 24 × 24 × 36 inches. Large items include, but are not limited to, a table, a couch, a loveseat, a mattress, a box spring, four kitchen chairs, five boxes or bags (maximum 40 pounds each), or five rolls of carpet (four foot length by 18 inches in diameter).

(m) *Multifamily residential premises* means a multiple-family dwelling building, an apartment building, a condominium, or a complex of residential buildings, containing five or more individual living units.

Multiple chamber incinerator means any incinerator used to dispose of combustible refuse by burning, consisting of three or more refractory lined combustion furnaces in series, physically separated by refractory walls, interconnected

by gas passage ports or ducts and employing adequate design parameters necessary for maximum combustion of the material to be burned, the refractories having a pyrometric cone equivalent of 31, tested according to the method described in the American Society for Testing and Materials, method C-24-56.

(n) *Reserved.*

(o) *Owner* means and includes, the record titleholder, or any person residing in, renting, leasing, occupying, operating or transacting business in any premises, and as between such parties the duties, responsibilities, liabilities and obligations imposed in this chapter shall be joint and several.

(p) *Person* means and includes an individual or group or association of individuals; a firm or any member thereof; a corporation, or any executive officer, manager, person in charge or employee thereof; and the use of a pronoun specifying one gender shall include both genders.

(q) *Reserved.*

(r) *Recyclable materials* means newspaper, corrugated containers, magazines, catalogs, junk mail, kraft bags, bimetal and ferrous cans, aluminum cans, glass containers, recyclable plastics, and paper food cartons, whether alone or in combination.

Residential premises means and includes single-family dwellings and any multiple-family dwelling up to and including four separate living units or family quarters. Garden-type apartments and row-type housing units shall be considered residential premises regardless of the total number of such apartments or units which may be included in a given housing development.

Rubble means dirt, stone, brick, or similar inorganic material, or street sweepings.

(s) *Solid waste* means useless, unwanted or discarded materials resulting from commercial, industrial, domestic and agricultural operations and other normal community activities. Wastes which are solid or semisolid containing insufficient liquid to be free-flowing are considered to be solid wastes and include in part the following: garbage; rubbish; ashes and other residue of incineration; street refuse or sweepings; dead animals; solid animal waste; decrepit automobiles and parts thereof; agricultural, commercial and industrial wastes; construction and demolition wastes; sewage treatment solid residue. For purposes of sections 98-74 and 98-75, the term "solid waste" shall have the meaning prescribed by this section except that it shall not include solid waste resulting from residential, farming, manufacturing, mining, or commercial activities on land owned or leased by the person conducting such activities if the dumping or depositing of such on that land does not violate other sections of this Code or city ordinances or statutes or regulations adopted by the state or federal government, but it shall include such solid waste which has come into the possession or control of a person because of the operation by that person of a collection, hauling, disposal, or other waste disposition service. For purposes of sections 98-74 through 98-76, the term "solid waste" shall not include rubble or a reasonable amount of organic material gathered and suitably contained for purposes of composting or fertilizing agricultural or floral plots. "Solid waste" shall not include yard debris.

(t) *Transfer station* means an intermediate solid waste disposal facility, the principal business of which is the transferring of loads of solid waste, with or without reduction of volume, from one transportation unit to another for ultimate disposal at a solid waste disposal site. The term includes an intermediate facility, as described in this definition, at which materials of a like or similar kind are also isolated, segregated, or otherwise gathered as an incident to such activities for salvage and reutilization by recycling through one or more commercial facilities; however, the term shall not include junkyards, salvage yards, or the collection, processing or transferring exclusively of recyclable materials.

(u) *Reserved.*

(v) *Reserved.*

(w) *Reserved.*

(y) *Yard debris* means grass clippings, leaves, garden wastes, brush, or tree branches or trimmings two inches or less in diameter.

(z) *Reserved.*

(C62, § 52A-1; O.8074, 8898; C75, C79, § 16-94; O.9835; C91, §§ 16-94, 16-119.03; O.13,350, 14,064, 14,228, 14,448, 14,471, 15,664)

Cross reference—Definitions generally, § 1-2.

Secs. 98-27—98-51. Reserved.

DIVISION 2. PROCEDURES

Sec. 98-52. Intent of division.

It is the intent of this division to provide for certain collection and disposal procedures relative to solid waste.

(C62, § 52A-25; O.8074; C75, § 16-92; O.8987; C79, C91, § 16-92)

Sec. 98-53. Enforcement.

The director of public works shall enforce this division.

(C62, § 52A-26; O.8074; C75, C79, § 16-93; O.9835; C91, § 16-93)

Sec. 98-54. Collection.

The city proposes to provide solid waste collection service to remove solid wastes from residential premises subject to the following conditions, prohibitions and requirements:

(1) Such collection shall be made on a weekly basis not less than 52 times per annum in accordance with schedules to be developed by the city manager. If such scheduled weekly collection is deferred to a following day to conform to holiday observances or weather conditions, the city will pick up an allowed number of containers as specified in this section from allowed locations as specified in this section which is commensurate with the elapsed time since the last previous collection.

(2) The city manager is authorized and empowered, jointly, to change or amend such schedules from time to time as he or she shall deem necessary.

(3) Collection of solid waste shall be made from streets unless specifically approved by the public works director for alley or alternate collection, pursuant to the following:

a. Whenever solid waste is collected from the street, residents desiring to have solid waste collected by the city shall cause it to be deposited upon the parking or terrace adjacent to and within approximately 18 inches of the near edge of the roadway in front of their premises and three feet away from any other object, including other solid waste containers.

b. As to residential premises approved for alley pickup, solid waste or solid waste containers shall be placed adjacent to the alley right-of-way and three feet away from any other object, including other solid waste containers.

c. No solid waste or solid waste containers shall be deposited by any person upon any sidewalk, crosswalk, or roadway, or upon any alley right-of-way, so as to obstruct or block pedestrian movement or vehicular traffic.

d. No person shall deposit solid waste or solid waste containers upon the parking or terrace of the street in front of premises more than 12 hours before the date designated for solid waste collection. No person shall allow solid waste containers to remain on the parking or terrace of the street in front of that person's premises for more than 12 hours after the date designated for solid waste collections.

e. The city manager is authorized and directed to promulgate regulations by which the city manager or his or her designee shall grant an exception to the street or alley collection points described in this subsection and shall provide back yard service for collection of solid waste contain-

ers at residential premises in which the persons residing therein have physical limitations which prevent them from placing their solid waste containers at the street or alley collection point.

f. No person shall place an appliance for collection unless such person shall have affixed to said appliance an appliance disposal sticker in a clearly visible location, and shall have scheduled the collection of said appliance in advance through the public works department at its 24-hour customer service center. Appliances shall not be placed for collection more than 12 hours prior to the scheduled collection time established by the public works department.

g. No person shall place an extra trash item for collection unless such person shall have affixed an extra trash sticker to such extra trash item prior to its collection.

h. No person shall place a large item for collection unless such person shall have affixed a large item disposal sticker to said item in a clearly visible location prior to its collection, and shall have scheduled the collection of said large item through the public works department. Large items shall not be placed for collection more than 12 hours prior to the scheduled collection time established by the public works department.

i. Solid waste will only be collected from a residential premises if it is placed for collection in a city-owned container billed to that residence, or if it is placed for collection as an extra trash item or a large item as provided in subsections g. and h. above.

(4) The number of containers to be collected per residential premises per week shall not exceed the number of city-owned containers billed to the residence and extra trash and large items with the appropriate stickers unless during specified periods by council resolution in response to council-perceived temporary needs or objectives or is permitted by a declaration of a collection emergency by the city manager.

(5) Any failure to comply with this section or sections 98-58 or 98-69 of this division by the owner of such residential premises shall relieve the city of its obligation to collect such solid waste therefrom which is not in compliance therewith as to type, preparation, volume or place of storage, but in all cases such solid waste from such premises as meets the requirements of such section shall be collected as provided in this section.

(6) No person, unless pursuant to contract with the city permitting that person to collect and remove rubbish and refuse or unless that person is a city employee acting under the direction of the city council and the city manager, shall collect or remove any rubbish or refuse which has been deposited or placed by another person on the parking or curb along the roadway adjoining the latter's premises for collection by the city as provided in city ordinances.

(7) Upon application by the owner of property, demonstrating that a particular property is unoccupied and uninhabitable due to disrepair; due to damage by flood, storm, or fire; or due to the fact that it is undergoing renovation or reconstruction, the director may temporarily suspend the collection of solid waste from such premises and direct that the property not be charged the monthly charge for solid waste collection service as provided in this division. Such application shall be made in writing to the public works department on the form provided by the department for that purpose. The applicant shall therein verify that the property is not occupied and shall identify

the conditions that make it uninhabitable. The public works department may require verification of uninhabitability in the form of reports, orders, or permits issued by the community development department or the fire department. If the premises is unoccupied and uninhabitable due to flood, storm, or fire damage or due to renovation or reconstruction, the applicant shall be required to arrange for interim collection of damage or construction debris from the premises and to identify and verify the existence of those arrangements in the application. Collection services shall not be suspended for more than a period of one month, but such suspension shall be renewable monthly upon oral request for up to five additional months. No additional period of suspension shall thereafter be granted unless the owner makes reapplication for suspension of collection service as provided in this subsection.

(C62, § 52A-2; O.8074, 8896; C75, § 16-95; O.8987, 9382; C79, § 16-95; O.9906; C85, § 16-95; O.11,409, 11,499, 11,515, 11,563; C91, § 16-95; O.13,189, 14,064, 14,228, 15,664)

Sec. 98-55. Charges for collection service.

(a) A monthly collection fee shall be charged by the city and collected from each owner or occupant of a "residential premises" as defined in section 98-26 of this Code served by solid waste collection service as provided in section 98-54 of this division, except as to those owners or occupants of residential premises for whom a subsidized rate is established in subsection (c) of this section. Said monthly fee shall be in payment for collection and disposal of solid waste as defined, and shall be collected in full each month from all owners or occupants of residential premises except as to those owners or occupants for whom a subsidized rate is allowed as provided in subsection (c) of this section. The fee per month for city-owned solid waste containers, excluding yard debris containers, assigned to a residential premises shall be as follows:

City-owned Solid Waste Containers Type	*Rates Prior to July 1, 2025*	*Rates on and after July 1, 2025*
	The fee per month	
First 64-gallon	$14.56	$16.81
First 96-gallon	$15.66	$17.91
Additional 64-gallon	$12.35	$14.60
Additional 96-gallon	$13.45	$15.70

(b) The solid waste collection fee shall be billed to the "owner" as herein defined every month, payable in advance within 30 days from date of such billing.

(c) A subsidized rate of $10.00 per month for one city-owned 64-gallon wheeled container and a subsidized rate of $11.00 per month for one city-owned 96-gallon wheeled container (a) for the first container assigned to a residential premises (no reduction will be allowed for each additional container) shall be allowed and authorized by the city for each owner of a residential premises served by solid waste collection service who (1) as the record titleholder of the residential premises, has filed claim for tax reimbursement and has established eligibility for such reimbursement under the provisions for property tax relief for elderly and disabled contained in the I.C. §§ 425.16-425.37, with reference to such residential premise, or as a renter of the residential premise, has filed a claim for reimbursement of rent constituting property taxes paid and has established eligibility for such State of Iowa Rent Reimbursement program under the provisions of I.C. §§ 425.18-425.37, with reference to such residential property; (2) has waived any right to confidentiality relating to all income tax information obtainable through the state department of revenue; and (3) has filed an application with the city reciting such facts and asking for the benefits of this provision subject to verification by the state department of revenue.

(1) Such subsidized rate shall be on a 12-month period basis, shall commence on the first day of the first month of the first monthly billing period following approval of the application therefore and shall be valid thereafter for a 12-month period unless the applicant is for any reason disqualified as a claimant under the I.C. §§ 425.16-425.37. In event of

such disqualification, the owner's or renter's eligibility for such subsidized rate shall terminate at the termination of the billing period in which such disqualification occurs and shall be billed at the rate prescribed by subsection (a) of this section, unless and until the owner's or renter's qualification is reviewed and eligibility for such subsidized rate is re-established pursuant to a new application to the city for the subject premises. In any event, each such application must be reviewed at least 30 days before the end of the 12-month period aforesaid and approved as aforesaid in order for such subsidized rate to be effective for a succeeding 12-month period, and annually upon such schedule thereafter, failing which the eligibility for such subsidized rate shall automatically cease at the end of the current 12-month period. Subsidized rate application forms shall be available at city hall in such form, manner and location as the city manager shall direct. Such applications shall be as informal as possible and may be made by the owner or renter of a residential premises, or may be made on behalf of such owner or renter by any person or institution reasonably expected to act in accordance with the wishes and best interests of the owner or renter, as applicable.

(2) Termination of city allowance of subsidized rate for any cause, other than loss of status as a qualified claimant for reimbursement under said act or by lapse of time as aforesaid, shall occur only by action of the city council after reasonable notice and hearing. Said notice shall identify the reason for loss of eligible status and shall be served in the manner of service of original notice at least ten days before date of hearing. Appeal to the courts shall be permitted the applicant in any manner allowed by the Iowa rules of civil procedure within time limitations as therein stated.

(d) The subsidized rate per month per subsection (c) above shall be shown each month on the owner's or renter's billing statement for solid waste collection service.

(e) A fee of $1.00 shall be charged for each extra trash item sticker and a fee of $5.00 shall be charged for each large item sticker.

(f) A fee of $35.00 (7 - $5.00 stickers) shall be charged for the sale of an appliance disposal sticker to cover the cost of collection, demanufacturing, and disposal of appliances as defined in section 98-26.

(g) Appliance disposal stickers, extra trash stickers, and large item stickers shall be made available at multiple retail locations, a listing of which shall be available at the Public Works Department's 24 hour Customer Service Center. The city manager shall direct the distribution of appliance disposal stickers, extra trash stickers, and large item stickers to retailers under such distribution and auditing procedures as the city manager shall establish upon the advice of the finance director. Such stickers shall be made available to members of the public at retail outlets at a cost not exceeding $35.00 for appliance disposal, $1.00 for extra trash, and $5.00 for large items. The city manager shall make said stickers available only to retailers who agree to market same at the above indicated retail price.

(h) The owner of a multiple-family dwelling with four separate living units or family quarters may, upon prior arrangement with the director with respect to day and location of collection, verification of number of units, and execution of a hold harmless agreement in favor of the city, arrange for city collection and disposal of solid waste placed by residents of such multiple-family dwelling in one or more dumpsters of not more than eight cubic yards capacity each. Such placement and collection of solid waste shall in all other respects be conducted as provided in section 98-54 of this division. A fee of $9.73 prior to July 1, 2025 and a fee of $11.98 per dumpster per month for the period beginning on and after July 1, 2025 shall be charged by the city and collected from the owner or owners of such multiple-family dwelling, which fee shall be in addition to the per unit solid waste collection and disposal fee charged as provided in (a) above.

(i) The owner or occupant of a residential premises may request a one-time container exchange for a change in container size free of charge. Such free of charge exchange will be allowed for both a solid waste container and a yard waste container. For each additional exchange, there will be a $25.00 service fee.

(j) Upon request of the owner, the director of public works is authorized and empowered to except from city solid waste collection a residential premises that is adjacent to a multifamily residential premises if such dwellings are commonly owned, are not separated by a street or public alley, and were being served by private solid waste collection as of January 1, 2005. When either the multifamily residential premises or the adjacent residential premises change ownership the residential premises shall be served by city solid waste collection.

(C62, § 52A-28; O.8074, 8512, 8885; C75, § 16-96; O.9006, 9359; C79, § 16-96; O.9733, 10,170, 10,344; C85, § 16-96; O.11,015, 11,099, 11,364, 11,618; C91, § 16-96; O.13,702, 14,064, 14,144, 14,228, 14,448, 14,733, 15,664, 15,772, 15,895, 16,158, 16,451)

Editor's note—Ord. No. 15,772, § 2, states: This ordinance shall be in full force and effect as of July 1, 2019.

Sec. 98-56. Assessment of unpaid charges.

The collection of solid waste, as provided by this division, from residential premises and maint-

tenance of the availability of such service, whether or not such service is used regularly or at all by the owner of such residential premises, is declared a benefit to the premises at least equal to the monthly charges specified in section 98-55 of this division. If the owner of a residential premises fails to pay the monthly charge as provided in section 118-159 of this Code, the monthly charge may be assessed as a lien against the property benefitted as provided by I.C. § 384.84.
(C62, § 52A-29; O.8074; C75, § 16-97; O.9006; C79, § 16-97; C91, § 16-97; O.13,166)

Sec. 98-57. Billing procedure and collection of delinquent accounts.

The procedures for billing of the solid waste collection charges provided in section 98-55 of this division and for the collection of delinquent solid waste collection charges shall be as provided in sections 118-158 and 118-159 of this Code.
(C62, § 52A-30; O.8074; C75, § 16-98; O.9006; C79, C91, § 16-98; O.11,696, 13,166)

Sec. 98-58. Container specifications.

(a) Only city-owned containers provided by the city shall be used for the placement of solid waste for collection by the city. City-owned containers shall be assigned to a particular residential premises and shall remain at that residential premises in the event the owner or occupant moves. If a city-owned container is lost or stolen from a residential premises, the owner or occupant of the residential premises shall report such event to the public works department's 24-hour customer service center. In the event of loss or theft, a replacement city-owned container or containers shall be provided to the owner or occupant at the owner's or occupant's cost.

(b) Disposable cardboard boxes not larger than 24 by 24 by 36 inches may be used for extra trash or yard debris not weighing more than 40 pounds. Tree limbs and brush placed for collection as yard debris may be securely tied in bundles not larger than 48 inches long and 18 inches in diameter and weighing not more than 40 pounds.

(c) Extra trash and large bulky items such as furniture, large tree limbs, automobiles and major parts thereof and appliances that cannot be reduced to fit approved containers shall not be collected; provided that special arrangements can be made for the collection of appliances, extra trash, and large items as provided in section 98-54(3)g.
(C62, § 52A-3; O.8074, 8180; C75, § 16-99; O.8987, 9577; C79, C91, § 16-99; O.13,350, 14,064, 14,228)

Sec. 98-59. Treatment pending collection.

All solid waste consisting of waste animal and vegetable matter, which may attract flies, dogs or rodents, shall be drained of all excess liquid, wrapped in paper or disposable containers, and placed or stored, until collected, in covered suitable containers as described in section 98-58 of this division.
(C62, § 52A-4; O.8074; C75, C79, C91, § 16-100)

Sec. 98-60. Accumulations hazardous to health.

No person shall permit to accumulate on any premises, improved or vacant, or on any public place quantities of solid waste, either in containers or not, that shall constitute a health or sanitation hazard.
(C62, § 52A-5; O.8074; C75, C79, C91, § 16-101)

Sec. 98-61. Accumulations hazardous to property.

No person shall permit to accumulate quantities of solid waste within or close to any building, unless the waste is stored in containers in such a manner as not to create a health or fire hazard.
(C62, § 52A-6; O.8074; C75, C79, C91, § 16-102)

Sec. 98-62. Permit to haul waste.

No person shall engage in the business of removing or hauling residential, commercial or industrial solid waste from the premises of others, other than those resulting from construction or demolition activities, unless such person shall have first applied for and received a permit to do so from the city. Such permits shall be issued and renewed on an annual basis for a fiscal year commencing July 1 of each year.
(C62, § 52A-7; O.8074; C75, § 16-103; O.9137; C79, § 16-103; O.10,489; C91, § 16-103)

Sec. 98-63. Waste hauler's permit requirements.

(a) An application for a permit required by section 98-62 of this division shall be filed with the city clerk and shall contain the following information:

(1) The name and address of the applicant.

(2) The vehicles to be used.

(3) General information concerning the routes to be traveled and places to be served.

(4) A statement by the applicant that all of the requirements of this section 98-63, as well as other applicable requirements of this chapter, shall be complied with at all times during the period of the permit.

(b) No permit shall be issued or renewed unless the vehicles to be used meet the following requirements:

(1) Construction of the vehicles shall be such that rubbish or bulk material loaded therein or transported thereby shall be securely contained. A truck with open sides, such as a stake-body truck, must have some type of paneling installed on the interior of the stakes so as to prevent the loss of any rubbish or bulk material. Plywood or hardboard may be used to line the interior; however, large sections of cardboard will not be acceptable.

(2) All vehicles shall be equipped with a permanently attached covering over the bed of the vehicle or with a suitable tarpaulin. The tarpaulin must be constructed in such a manner so that both sides and the end of the tarpaulin can be securely tied down or loaded so as to prevent the rubbish or bulk material from being blown or allowed to escape.

(3) All vehicles other than stake-body types must be equipped with a tailgate of rigid construction of at least 1½ feet which, when closed, shall securely hold and contain all rubbish and bulk material. Acceptable paneling as indicated in this subsection may be used in lieu of a tailgate only on stake-body vehicles.

(4) Any compaction-type vehicle must be equipped with a tightfitting tarpaulin or other means to prevent rubbish or other material from being blown or allowed to escape from the hopper area.

(c) All vehicles licensed under this section shall prominently display the permit number on the upper or lower left corner of the windshield of the vehicle upon a decal to be furnished by the city.
(C79, § 16-103.01; O.10,489; C85, § 16-103.01; O.11,548; C91, § 16-103.01; O.15,297)

Sec. 98-63.5. Permit fees.

(a) An applicant for a waste hauler's permit shall submit the annual permit fee and the fee for each vehicle to the city clerk at the time of filing the application.

(b) An applicant who files for renewal less than 30 days prior to the date of permit expiration shall pay a late fee at the time of filing the application.

(c) If the application is denied or if the application is withdrawn before final action is taken by the city clerk, a portion of the application fee shall be retained by the city clerk for the cost of administration.

(d) The permit fee, its nonrefundable portion, the fee for each vehicle, and the late fee for a waste hauler's permit shall be in the amounts set in the schedule of fees adopted by the city council by resolution.
(O.14,187, 15,297)

Sec. 98-64. Waste hauler's liability insurance.

(a) No permit required by section 98-62 of this division shall be issued or renewed until the applicant shall have obtained insurance coverage from an insurance company licensed to do business in the state, providing insurance coverage of minimum liability in the amount of $1,000,000.00 combined single limit each for general liability and for automobile liability. A policy written with an umbrella form will be acceptable. Insurance coverage must be maintained for the period the permit is in effect.

(b) The applicant shall furnish evidence to the city of the required insurance coverage by submitting a certificate of insurance. The certificate of insurance shall provide that the insurance cannot be cancelled or terminated until 30 days' notice by registered mail of such cancellation or termination shall have been given to the city.
(C79, § 16-103.02; O.10,489; C91, § 16-103.02)

Sec. 98-65. Permit exemptions.

Vehicles owned and operated by the authority or the city or operated under contract to either shall be deemed to be engaged in a public service function exempt from the requirements of section 98-62 of this of this division.
(C62, § 52A-8; O.8074; C75, § 16-104; O.8987; C79, C91, § 16-104; O.13,350)

Sec. 98-66. Suspension and revocation of permits.

(a) Any permit issued pursuant to this division may be revoked for violations of this division. No revocation shall issue except upon notice delivered to the permittee by mailing the notice in the regular mail addressed to the permittee at the address listed on the application a minimum of ten days prior to the date set for the hearing before the city manager or his or her designee. Such notice shall inform the permittee of the time, date and place of the hearing; the purpose of the hearing; and shall set out the reasons therefor. However, if a violation of this division is of such nature that the violation is deemed to be an immediate hazard by the public works director and such report is submitted to the city clerk in writing, the city clerk shall be authorized to temporarily suspend the permit until notice can be given and a hearing held.

(b) If, after such a hearing, the city manager or his or her designee makes a finding based on substantial evidence that a violation of this division did in fact occur as alleged, the city manager or his or her designee may continue suspension of or may revoke the permit; the determination of whether to revoke such permit shall be in the discretion of the city manager or his or her designee and shall be dependent upon the circumstances surrounding the violation and its severity.

(c) The decision of continued suspension or revocation made by the city manager or his or her designee may be appealed to the city council. In order to appeal such decision, written notice of appeal must be filed with the city clerk within three days after receipt of the decision. Failure to file such written notice of appeal shall constitute a waiver of the right to appeal the decision of continued suspension or revocation of the city manager or his or her designee.

(d) The notice of appeal shall state the grounds for such appeal and shall be delivered personally or by certified mail to the city clerk. The hearing of such appeal shall be scheduled at the next regular council meeting, if such notice is received by 5:00 p.m. on the Wednesday before the next regular council meeting. If notice is not received by the designated time, the hearing will be scheduled for the next following council meeting, if notice is received within three days after receipt of the decision by the city manager or his or her designee. The hearing may be continued for good cause. The hearing shall be confined to the record made before the city manager or his or her designee and the arguments of the parties or their representatives, but no additional evidence shall be taken. After such hearing the city council may affirm or reverse the order of the city manager or his or her designee. Such determination shall be contained in a written decision and shall be filed with the city clerk within three days after the hearing or any continued session thereof.

(e) If the city council affirms the action of the city manager or his or her designee continuing the suspension or revocation, the city council shall so state and order in its written decision.

(f) A permittee whose permit has been revoked shall not be eligible for another permit to haul waste for a period of two years.
(C62, § 52A-27; O.8074; C75, C79, C85, § 16-105; O.11,452; C91, § 16-105)

Sec. 98-67. Protection of hauling vehicles.

No person shall haul any solid wastes upon the city streets, alleys or public places in any manner except in a vehicle or container so equipped as to

prevent the blowing or leakage or dropping off of any of the contents on such public streets or on private property therein.
(C62, § 52A-9; O.8074, 8464; C75, C79, C91, § 16-106)

Sec. 98-68. Authorized disposal sites.

No person licensed under section 98-62 of this division shall haul or cause to be hauled any solid waste material of any kind, other than that resulting from construction or demolition activities, to any disposal place or site or area other than the following:

(1) A sanitary disposal site operating under permit from the state department of natural resources pursuant to I.C. ch. 455B; or

(2) A solid waste transfer station licensed and operating pursuant to section 98-76 of this division.

(C62, § 52A-10; O.8074; C75, § 16-107; O.9137; C79, C91, § 16-107; O.13,350)

Sec. 98-69. Hazardous substances and hazardous wastes.

No person shall deposit in a solid waste container or otherwise offer for city collection any hazardous substance or hazardous waste as defined in section 98-26. Hazardous substances and hazardous wastes shall be transported by the owner, responsible person or his or her agent to a place of safe deposit or disposal as prescribed by the rules and regulations of the state department of natural resources. Persons improperly disposing of hazardous solid waste materials by placing them for collection at the curb shall be responsible for all costs incurred by the city on account thereof, including but not limited to costs associated with injury to city or authority personnel, damage to city or authority property, or cleanup of city or authority property or equipment.
(C62, § 52A-11; O.8074; C75, § 16-108; O.8987, 9137; C79, § 16-108; O.9835; C91, § 16-108; O.13,350)

Sec. 98-70. Littering.

No owner shall throw, rake, deposit, place, drop or spill yard debris, as defined in division 1 of this article, litter, solid waste, waste material or other foreign material upon the streets, sidewalks, or other public rights-of-way or city property except as provided in sections 98-58 and 98-115 of this division. In any proceedings charging a violation of this section, proof that the particular violation described constitutes a violation of this section, together with proof that the violator was the owner of the residential dwelling, commercial establishment and/or real estate from which the yard debris, litter, solid waste, waste material or other foreign material was removed, shall be deemed to create a rebuttable presumption that such violator was the party violating this section.
(C62, § 52A-12; O.8074; C75, C79, C91, § 16-109; O.13,350, 14,792)

Sec. 98-71. Disposition of inert materials.

The prohibitions contained in this division shall not apply to the placing of inert wastes, not potentially injurious to health or the public welfare, where permission to place such materials has been obtained from the owner or responsible agent, nor to the filling in or grading of property with earth, mud, ashes or similar materials providing such actions are in compliance with all other applicable local and state laws.
(C62, § 52A-15; O.8074; C75, C79, C91, § 16-112)

Sec. 98-72. Disposition in accordance with instructions.

(a) Each application for a permit to haul solid waste under section 98-62 of this division and each application for license for a transfer station under section 98-76 of this division shall contain an undertaking to the effect that, as a condition of the grant by the city of such a permit or such a license and the validity of such permit and such license once granted, such applicant shall deliver or cause to be delivered all solid waste coming within his or her control to a sanitary disposal site operating under permit from the state department of natural resources pursuant to I.C. ch. 455B.

(b) Failure on the part of any such permittee under section 98-62 or the licensee under section 98-76 of this division to in fact cause such solid

waste to be so delivered shall be cause for the city council on reasonable notice and hearing to revoke such permit or license.

(c) If a permit or license issued is revoked by the city council for such cause, the permittee or licensee shall be ineligible for reinstatement or renewal thereof or for a new permit or license for a period of 12 months from the date of such revocation.

(d) Each person charged with responsibility for the ultimate disposition of solid waste, other than that collected under the city residential solid waste collection program, shall cause the solid waste to be delivered to a permittee or licensee as described in this division. Failure to do so shall constitute a violation of this division.
(C62, § 52A-16; O.8074; C75, § 16-113; O.9137; C79, C91, § 16-113; O.13,350)

Sec. 98-73. Materials excluded from agency deposit sites.

At the discretion of the authority, certain materials may be excluded from those solid wastes which may be deposited at an authority landfill site. These excluded materials may include junk automobile bodies and similar bulky objects which may require special processing prior to disposal; trees and tree limbs, unless they have been cut into pieces not exceeding ten feet in length; burning materials or materials containing hot or live coals; hazardous materials; and other materials which the agency deems necessary to exclude. However, hazardous materials may be deposited upon the receipt of written permission of a responsible official or attendant of the agency and subject to any special instructions issued with such permission. Hazardous material shall include explosive materials, materials contaminated by infectious or contagious disease, fly ash or other fine or powdery material, and other material which may present a special hazard to landfill personnel, equipment or to the public.
(C62, § 52A-17; O.8074; C75, C79, C91, § 16-114; O.13,350)

Sec. 98-74. Unauthorized disposal sites.

No person shall operate or permit the operation on his or her property of a disposal site in the city for the disposal of solid waste of any kind, excepting rubble, from any source other than construction or demolition activities.
(C75, § 16-115.01; O.8986; C79, C91, § 16-115.01)

Sec. 98-75. License required for private landfill sites for construction or demolition materials.

(a) No person shall operate or permit the operation on his or her property of a disposal site in the city for the disposal of solid waste from construction or demolition activities unless such person shall have first applied for and received a license to do so from the city. Such a license shall be issued by the city council upon application by such person filed with the zoning enforcement officer; must be accompanied by a conditional use approval by the city board of adjustment, and a state permit issued by the appropriate state agency to conduct a construction or demolition materials disposal operation on the site in question; must demonstrate full present and contemplated compliance with the specific subsections of this section and the operational details and physical site proposals contained in plans accompanying the application, as well as the ability to do so; and shall be subject to annual renewal by the city council as set forth in this section. In reviewing the demolition landfill site application, the city council must weigh the need for such landfill to economically dispose of demolition and construction rubble against the inherent hazard, evaluated on the information and criteria in this subsection, and with professional advice as required. Such need must likewise be weighed against the potential for site pollution or danger to persons or property who might predictably have direct or indirect contact with the site. To merit approval for licensing, such proposed operation must be demonstrated by the application to be operationally feasible and to be substantially free of negative environmental effect as it is proposed to be operated upon the site proposed. The application for a license to operate a disposal site for the disposal of solid waste from construction or demolition activities shall be accompanied by the documentation described in this subsection. Plans for construction and demolition landfills shall be prepared under the

direct supervision of a registered engineer in conformity with I.C. ch. 542B. Such requirement shall not preclude the inclusion in the application of reports of geologists, architects, landscape architects, or such other disciplines as may be necessary or desirable to substantiate proposals contained in the application. The plans shall show conformance to the following requirements:

(1) *Location of site.* The location of the site shall conform to the following:

a. The site shall be located outside of floodplain or riverfront land unless such requirement is waived by the appropriate state agency.

b. If the site is within 1,000 feet of a federal or state highway or major city thoroughfare, the site must be satisfactorily screened by natural objects, planting, fences or other.

c. The site shall be at least 1,000 feet from any existing well that draws water for human or livestock consumption unless hydrologic conditions are shown to be such that a greater or lesser distance is proper.

(2) *Zoning and land use.* The application will be accompanied by a copy of the conditional use approval issued for such operation on the site by the city board of adjustment and the plan submitted with the application shall:

a. Be accompanied by a map showing all zoning within 1,000 feet surrounding the site. The plan shall also indicate the land use proposed for the site after the filling is completed, although such indication shall not be binding upon the city. A proposed land use which will be an impediment to the city's execution of its general plan will not be approved.

b. Indicate the land use shown for the site area in the future in the general plan for the city.

(3) *Site plan.* The following particulars shall be included in maps of the site plan, as set forth in this subsection, and shall accompany the application:

a. A map of the disposal site and immediate surroundings, on which a north arrow and scale of drawing are indicated. Generally, a scale of less than one inch to 100 feet will not be approved.

b. The boundaries of the disposal site shall be shown thereon with sufficient data, including legal description, that a land surveyor can easily locate the boundary. Natural and manmade monuments indicating the boundary shall be noted. Where the site is located in an undeveloped area, four-inch boundary markers at least six feet high and painted a bright color shall be used to identify the boundary so that field inspection teams can easily identify the site.

c. Two-foot contours of the existing terrain shall be shown thereon.

d. All existing utilities, including storm and sanitary sewers, which lead up to or cross the site shall be shown thereon.

e. Existing and future drainage shall be shown thereon along with any proposed storm sewers.

f. The location of the drill holes required by subsection (a)(6)a, of this section shall be shown thereon.

g. Two-foot contours of the final proposed terrain shall be shown on a separate drawing.

(4) *Vicinity map.* A map showing the area in the vicinity of the site, which shall be known as the vicinity map, shall be submitted, of a scale of one inch to 600 feet or less. The area covered by the vicinity map shall be sufficient to contain the following:

a. Location of test holes for the monitoring of water quality and the findings from each.

b. Streets and street names, as well as all existing public rights-of-way on and adjacent to the site.

c. The nearest fire hydrants. Generally, if there is not a fire hydrant adjacent to the entrance drive and within 300 feet of the active portion of the landfill site, a fire hydrant shall be so installed and connected with an appropriate extension of the water main. If covering and compacting is performed daily or if other equivalent means of providing fire protection are available, this requirement may be waived by the city council (see subsection (a)(7)d of this section).

d. The haul road routes from the nearest city truck route.

e. Proposed screening of the site from highways, streets, parks and residences and other amenities, as well as the schedule of installation of such; such screening shall meet the requirements of chapter 134 of this Code and shall have been demonstrated to and approved by the board of adjustment.

f. All private wells within 1,000 feet of the site shall be located and identified thereon.

g. All occupied homes and buildings on the site or within 1,000 feet of the boundaries thereof shall be shown, with their addresses and uses indicated, by color coding or otherwise.

(5) *Traffic.* The haul routes shown in the plan shall be reviewed by the department of engineering and the chief civil engineer, who shall make recommendations thereon to the city council. Such haul routes shall be chosen to avoid undue hardships to residents living adjacent to them and to minimize the likelihood of premature deterioration of city streets so chosen.

(6) *Soils and geology.*

a. The plans shall contain a description of the drill holes shown on the site plan, which shall be sufficient in number to prepare geological cross sections of the site, to facilitate a determination of the acceptability of the site location.

b. The water table depth and bedrock depth shall be indicated. If the bedrock is excessively deep, it may be estimated.

c. A soil report shall be provided which indicates the acceptability of the soil on the site for cover material and the stability of the slopes after the fill is complete. The vulnerability of the soil classification to erosion shall also be indicated.

(7) *Operating site.*

a. The estimated active life of the site and the total cubic dimensions of the area to be filled shall be indicated.

b. The volume of construction and demolition material expected annually and on the peak days shall be indicated.

c. The number, size and shape of cells of demolition material shall be indicated.

d. The approximate depth and type of cover material shall be indicated. The volume of cover material needed for the entire site shall be indicated as well as the source and soil classification of the cover material and frequency of covering. Once-a-week compacting of demolition material and covering with dirt will be acceptable, provided a bulldozer with a blade, operator on call, and a stockpile of cover material are available at all times on the site if a fire occurs. More frequent covering and compacting may be required by the city if it is deemed necessary to

abate a nuisance and shall be mandatory if the requirements of subsection (a)(4)c of this section for fire hydrants are not met.

e. The times at which the gates will be open as well as provisions for maintaining the fence at locations required in this section shall be indicated.

f. The intended continuing vector control, principally rat abatement and mosquito abatement, shall be indicated.

g. The personnel and equipment planned to operate the site, and the hours and days of the week when they will be on the site, shall be indicated.

(8) *Summary of environmental controls.* Expected environmental impact problems, with specific treatment or controls intended to eliminate or mitigate negative effects of each, shall be listed.

(9) *Insurance.*

a. The applicant shall file a certificate of insurance evidencing the issuance to the applicant of liability insurance which shall protect the public and any and all persons from injury which may be sustained because of the operation or condition of the landfill and that the applicant carries insurance which meets the requirements of the state worker's compensation law. Proof of such insurance shall show a minimum cancellation time of ten days and shall embody a requirement that the city shall have a right to such notice before such cancellation can become effective. The proof shall specify evidence of the following forms of insurance protection:

1. Liability insurance covering all operations performed by the licensed applicant and all persons in the licensed applicant's direct employment.

2. Public liability insurance covering all operations performed by any subcontractor or independent contractor to whom a portion of the operations may have been assigned or which in the future be assigned or by any person or legal entity acting for or on behalf of the licensed applicant at or on the site.

3. Motor vehicle bodily injury insurance and property damage liability insurance on motor vehicles employed on the site, whether or not owned by the licensed applicant or by either the subcontractors or independent contractors under contract to the licensee or by any other person or legal entity acting for or on behalf of the licensed applicant at or on the site.

b. The main protection shall be as follows:

1. Public liability insurance, $250,000.00 per person, $500,000.00 per accident.

2. Motor vehicle bodily injury, $250,000.00 per person, $500,000.00 per accident.

c. The city shall be named as an additional insured under all liability policies without expense to it.

(b) *License fee.* An annual license fee of $800.00 payable to the city treasurer shall accompany the initial application for the license and each application for renewal of the license.

(c) *Renewal requirements.* An application for renewal need comply with the documentation requirements of subsection (a) of this section only if there has been a substantial change in the conditions or circumstances on or off the site which significantly affects the proposed operation or its effects during the proposed renewal period, except that a showing must be made in such application that required insurance is in

force and has continued in force during the current license year. The application for such renewal must specifically negate or affirm the existence of any such circumstances or conditions and shall be documented accordingly. The application for renewal must also be accompanied by a showing of a current permit, issued by the appropriate state agency, for the operation of the construction or demolition materials landfill site. The zoning enforcement officer, upon receipt of such application for renewal, shall process the application as though it were an initial application for the license and shall report his or her findings and recommendations thereon, which shall be reviewed by the city council before issuance of the renewal.

(d) *Site accessibility.* The location of the fence and gates, which shall be provided to exclude people from the active fill site, shall be shown. They shall be located to prevent illegal dumping, children from playing on the site, and debris from being blown off the site. The fence shall be at least six feet high and composed of a metal fabric, and it shall comply with all street intersection setback requirements. The fence shall be constructed before landfill operations begin. For purposes of this subsection, the term "active fill site" shall mean that portion of the land covered by the license which is in fact regularly receiving waste, whether or not at the instance of the applicant. The applicant shall maintain any unfenced area free of solid waste, and in the event of accumulation of waste upon or abutting the site, the director of building may require the applicant to install such further fencing as can ensure that the then-active remainder of the site shall remain free of unauthorized or improper accumulation of solid waste.

(e) *Signs.* A prominent legible sign shall be provided at all site entrances indicating the name of the site owner and operator and emergency telephone numbers.

(f) *Public agencies.* Neither the city nor any other public agency shall be required to obtain the license required by this section, but each such public body shall file with the council before beginning operation and annually thereafter evidence of substantial compliance with all subsections of this section except the requirements of subsections (a)(2), (a)(9), and (b) of this section. It is, however, specifically provided that such exemption from licensing shall not operate to exempt the city or other public agencies from any other specific requirements of law relating to or regulating such operation to which such operation would be otherwise subject.

(g) *Plan content mandatory.* The operational details and physical site proposals contained in the plans filed with an application which has been approved by the city council shall be obligatory and binding upon the licensee, who shall conform to each such detail and proposal unless specifically relieved of such conformance by the city council.

(h) *Revocation or denial of license renewal.* If there is a substantial failure on the part of the licensee to conform to the requirements of state or federal statutes or regulations or the requirements set out in this section, as well as those made obligatory and binding upon the licensee because of their inclusion in the application and approval by the city council or other city ordinances, the city manager shall report the noncompliance to the city council, which shall set a public hearing thereon and direct that the notice of the time, date and place of the public hearing and of the city manager's report be given to the licensee. Such hearing shall occur not less than ten days after such notice has been mailed to the licensee at the address shown in the application or such other address as has been provided by the licensee during the period of the license. If, upon such hearing, the city council shall find substantial noncompliance by the licensee with any of such requirements, the city council may revoke the license or, if such determination is made while an application for renewal is pending, may deny renewal of the license. Notice of such revocation or denial following such hearing may be either by formal notice to the licensee at the appropriate address or by so advising representatives of the licensee personally present at such hearing or by any other means reasonably calculated to apprise the licensee of such revocation or such denial. No person whose license shall have been revoked or the renewal thereof denied pursuant to this

section and no successors or assigns or other legal entities in which such person shall have a substantial interest may obtain a license pursuant to this section within the city for a period of two years from the date of cessation of activities at such landfill site pursuant to such revocation or denial. The operation of a disposal site without having a presently valid license to do so shall be prohibited.
(C75, § 16-115.02; O.8986, 9153; C79, C91, § 16-115.02; O.11,776, 13,013, 13,350, 15,819)

Sec. 98-76. Transfer station license.

(a) *Required.* No person shall operate or permit the operation on his or her property of a transfer station in the city unless such person shall have first applied for and received a license to do so from the city. A license to operate a transfer station shall be issued by the city council upon application filed with the zoning enforcement officer. The application must be accompanied by any state permit required by state law or regulation and issued by the appropriate state agency to conduct a transfer station operation on the site in question; must demonstrate full present and contemplated compliance with the zoning regulations in chapter 134, and the specific subsections of this section and the operational details and physical site proposals contained in plans accompanying the application, as well as the ability to do so; and shall be subject to annual renewal by the city council as set forth in this section. In reviewing such application, the city council must weigh the need for the transfer station against the potential for site pollution, danger to persons or property likely to have direct or indirect contact with the site, the feasibility of the operation, the likelihood of freedom from negative environmental effect of such operation, and such other factors as shall reflect the public interest in balance against the interests of the applicant to operate such a facility on the site in question.

(b) *Information required and site plans.* The application for a license to operate a transfer station shall be accompanied by plans prepared under the direct supervision of a registered engineer in conformity with I.C. ch. 542B. The site as shown on the plans shall physically conform to the following requirements, and the application shall contain either sufficient written information to show such conformity or it shall be shown by depiction of physical detail on the plan, as applicable:

(1) *Site.* The site shall be located outside floodplain or riverfront land unless such requirement is waived by the appropriate governmental agency. The boundaries of the site shall be shown on the plan with sufficient data, including legal description, that a land surveyor can easily locate the boundaries. Two-foot contours of the existing terrain shall likewise be shown on the plan. Proposed screening of the site from highways, streets, parks, residences and other amenities, as well as the schedule of installation of such, shall be shown; such screening shall meet the requirements of chapter 134 of this Code and shall have been demonstrated to and approved by the board of adjustment. The site shall be enclosed with a chainlink fence not less than six feet in height, which fence shall completely surround all portions of the site intended to be used in connection with the operation of the transfer station. The location of such fence and of the access gates through such fence shall be shown on the plan.

(2) *Permits.* The application will be accompanied by a copy of the conditional use approval for such operation by the board of adjustment and by a copy of the permit issued by the applicable state agency, each approving the operation of a transfer station on the site.

(3) *Vehicular travel.* The plan shall show the areas on the site over which haul vehicles and transfer equipment will travel. Such areas shall be hard surfaced, and the thickness and composition of such surfaces shall be shown on the plans. Barricades of a semipermanent nature, affixed to the ground, shall be placed to prevent vehicular travel on unsurfaced areas on the site; the location of such barricades shall be shown on the plan. The haul

road routes from the nearest city truck route shall be shown and identified on the plan. Such routes shall be reviewed by the department of engineering and the chief civil engineer, who shall make recommendations thereon to the city council. Such haul roads shall be chosen to avoid undue hardship to residents living adjacent to them and to minimize the likelihood of premature deterioration of city streets so chosen.

(4) *Unloading area.* All unloading, compacting and transfer activities shall be conducted within a fully enclosed structure. Each such structure shall be clearly depicted on the plan, with dimensions, in such fashion as to clearly show the type and location of equipment, the proposed routing of unloading and transfer vehicles, all vehicle entrance and exit facilities to and from such structure, and the waiting area for unloading vehicles, which shall be sufficient to accommodate expected traffic. Such structures and waiting area shall be of sufficient size and appropriate design as will ensure that the volume of vehicles expected on site at any one time can be accommodated without spillover on surrounding streets.

(5) *Drainage and sewers.* Floor surfaces in each unloading, compacting and transfer structure shall be so constructed that they can be cleaned by flushing and that they will permit the draining of liquids without ponding; all such floor surfaces shall be equipped with floor drains or a sump pump and with a trap or other mechanical device which shall prevent the passage of solids, which system shall be connected to a sanitary sewer. A storm drainage system for the site shall provide adequate storm drainage with minimum ponding and shall connect to a storm sewer. All interior drainage lines from the unloading, compacting and transfer areas as well as other drainage lines within the site shall be adequate to handle volumes of water and liquids which may be expected. All drainage and sewer systems, floor drains, floor surface construction and locations of connections to sewers shall be clearly identified in the plan, showing dimensions and composition where appropriate.

(6) *Sanitation and environmental control.* All solid waste shall be confined to unloading, compacting and transfer structures, and all solid waste remaining at the transfer station at the end of each day shall be stored in leakproof, flyproof, and rodentproof containers. Vector control, principally rat abatement and mosquito abatement, shall be the responsibility of the operator. The transfer station site shall be kept in a suitably clean and sanitary condition at all times. The application shall list the provisions at the site and the schedule for cleaning vehicles, structures and grounds, as well as the intended continuing vector control.

(7) *Fire prevention.* Burning of solid waste, either open or controlled, is prohibited at the transfer station site. If a fire hydrant is not located adjacent to the property and within 300 feet of the unloading, compacting and transfer structure, a fire hydrant shall be so installed and connected to an appropriate extension of the water main. The location of the nearest hydrants to the transfer station shall be shown on the plan, as shall such installations and extensions, where applicable.

(8) *Equipment.* The transfer station shall be so designed and maintained that the operational failure of one component part will not result in a total shutdown of the operation. An inventory of the equipment to be used in connection with the unloading, compacting and transfer operation shall be contained in the application, as well as a list of backup equipment available or, failing direct availability, the sources from which such equipment shall be obtained in time of need.

(9) *Prohibited materials.* Sewage solids or liquids and hazardous wastes shall not be unloaded or accepted at the transfer

station. Solid waste material of such bulk as cannot be accommodated by direct transfer shall likewise be excluded from the transfer station.

(10) *Recycling.* If the operation of the transfer station includes isolation, segregation and gathering of materials of a like or similar kind for salvage and reutilization by recycling, the equipment, methods and proposed operation in connection therewith shall be fully depicted and described in the application. Solid waste which is received at the transfer station site and which is not thereat separated for recycling may only be disposed of by hauling to a sanitary disposal project which has been approved by the appropriate governmental agency and which is legally operating. Scavenging at the transfer station site shall be prohibited, and all materials so separated and gathered for salvage and reutilization by recycling shall be retained in suitable containers as described in this division until removed by appropriate vehicles to off-site destinations.

(11) *Personnel and hours.* The personnel planned to operate the site, the times during which the gates will be open, and the hours and days of the week during which the site will be open to receive solid waste shall be indicated in the application. Appropriate signs meeting the requirements of chapter 134 of this Code for the zoning district in which located shall be located at all entrance gates, shall be lighted if appropriate, shall identify such hours, shall list prohibited materials, and shall contain such further information as will ensure conformance of visitors to the site to the requirements of this section. An attendant shall be on duty at the site at all times when it is open for public use.

(12) *Insurance.*

a. The applicant shall file a certificate of insurance evidencing the issuance to the applicant of liability insurance which shall protect the public and any and all persons from injury which may be sustained because of the operation or condition of the transfer station and that the applicant carries insurance which meets the requirements of the state worker's compensation law. Proof of such insurance shall show a minimum cancellation time of ten days and shall embody a requirement that the city shall have a right to such notice before such cancellation can become effective. The proof shall specify evidence of the following forms of insurance protection:

1. Liability insurance covering all operations performed by the licensed applicant and all persons in the licensed applicant's direct employment.
2. Public liability insurance covering all operations performed by any subcontractor or independent contractor to whom a portion of the operations may have been assigned or which in the future may be assigned, or by any person or legal entity acting for or on behalf of the licensed applicant at or on the site.
3. Motor vehicle bodily injury insurance and property damage liability insurance on motor vehicles employed on the site, whether or not owned by the licensed applicant or by either the subcontractors or independent contractors under contract to the licensee or by any other person or legal entity acting for or on behalf of the licensed applicant at or on the site.

b. The main protection shall be as follows:

1. Public liability insurance, $250,000.00 per person, $500,000.00 per accident.

2. Motor vehicle bodily injury, $250,000.00 per person, $500,000.00 per accident.

c. The city shall be named as an additional insured under all liability policies without expense to it.

(13) *License and renewal.* An annual license fee of $800.00 payable to the city treasurer shall accompany the initial application for the license and each application for renewal of the license. The provisions for renewal of the license for construction or demolition materials disposal sites shall likewise apply to the annual renewal of a transfer station license.

(14) *Public agencies.* Neither the city nor any other public agency shall be required to obtain the license required by this section, but each such public body shall file with the council before beginning operation and annually thereafter evidence of substantial compliance with all subsections of this section except the requirements of subsections (a) and (b)(12), (13) and (15) of this section. It is, however, specifically provided that such exemption from licensing shall not operate to exempt the city or other public agencies from any other specific requirements of law relating to or regulating such operation to which such operation would be otherwise subject.

(15) *Revocation or denial.* The provisions for revocation or denial of renewal of a license for construction or demolition materials disposal sites shall apply to the license and licensee of a transfer station.

(c) *Delivery of waste.* Every person operating a transfer station licensed under this section shall deliver or cause to be delivered all solid waste coming within the control of the transfer station to a sanitary disposal site operating under permit from the state department of natural resources pursuant to I.C. ch. 455B.
(C75, § 16-115.03; O.8986, 9137, 9153; C79, C85, § 16-115.03; O.11,363; C91, § 16-115.03; O.11,776, 13,013, 13,350, 14,471, 15,819)

Sec. 98-77. Conditions subject to abatement.

(a) If any private solid waste disposal operation within the corporate limits is found to be conducted in a way detrimental to the health and welfare of the public or contrary to this division, the city shall notify the owner of the land upon which such operation is being carried on and the operator thereof in writing of the objectionable conditions and give them a reasonable time, not less than ten days, to correct the condition.

(b) If the owner or operator or both fail to correct such conditions within such time, the city manager is authorized to seek abatement of such conditions as a public nuisance and to abate such nuisance in such manner as any court of competent jurisdiction may direct. The abatement shall be considered of benefit to the owner of the land, and the cost of such corrective action shall be chargeable to the owner. If not paid, the cost shall constitute a lien upon the premises and shall be assessed in the manner of a special assessment and collected in the same manner as general taxes as is provided by law.
(C62, § 52A-19; O.8074; C75, C79, C91, § 16-116)

Sec. 98-78. Authority disposal fees.

Gate fees paid to the authority for the use of the public solid waste disposal facilities shall be in accordance with the posted and published schedule of fees of the authority.
(C62, § 52A-24; O.8074; C75, C79, C91, § 16-118; O.13,350)

Sec. 98-79. Penalty.

Any person who fails to perform an act required by this chapter or who commits an act prohibited by this chapter shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.
(C62, § 52A-32; O.8074; C75, § 16-119; O.9137; C79, C85, § 16-119; O.11,030; C91, § 16-119; O.14,792, 14,798, 15,608)

Sec. 98-79.02. Administrative penalties—Notice of violations.

(a) The director of public works or his or her designated representative or any police officer is authorized to impose an administrative penalty upon any owner of any real estate who violates section 98-70 or 98-117(b). The administrative penalty for such violation shall be as provided in the schedule of administrative penalties adopted by the city council by resolution.

(b) Penalties shall be paid in full within 30 days of the issuance of the notice.

(c) Notice of violation, with the applicable penalty for such violation noted thereon, shall be issued to the violator by the director of public works or his or designated representative or any police officer. Service of the notice may be by regular mail or delivery in person. Such notice shall include:

(1) A statement that the violator has a right to an administrative hearing regarding the violation;

(2) A statement that the violator may file a written request for hearing as set forth in section 98-79.05. The request of hearing shall stay payment of the administrative penalty until the hearing is decided. If issuance of the notice of violation is upheld, the violator shall have 30 days from issuance of the hearing decision to pay the administrative penalty.

(O.14,792, 14,798)

Sec. 98-79.05. Administrative hearing.

A person to whom a notice of administrative penalty has been issued may request an administrative hearing for review of the finding that a violation occurred pursuant to the administrative appeal process set forth in chapter 3 of this Code by filing a written notice of appeal with the city clerk within ten business days after the date of the decision appealed from. Failure to timely file a written notice of appeal shall constitute a waiver of any right to appeal the decision.

(O.14,792, 15,664)

Sec. 98-79.07. Right of city to seek alternative relief.

The city is not precluded from seeking alternative relief from the court, including an order for abatement or injunctive relief, in the event that the city issues a notice of violation and/or files a municipal infraction for the same violation of this division.

(O.14,792)

Sec. 98-80. Exceptions.

Excepted from this division shall be those substances which might be considered solid wastes within the definitions of sections 98-26 but that retain their utility because of resource recovery operations conducted by or sponsored by the city; substances which lend themselves to waste stream reduction objectives under city programs; and substances, the ultimate disposition of which are governed by an approved facilities plan of the Environmental Protection Agency or an approved comprehensive plan of the state department of natural resources. Except as provided by subsection 98-76(d) of this division, the functions of the city and of others implementing such operations and programs under contract with or in concert with the city shall likewise be exempt from this division.

(C85, § 16-119.01; O.11,455; C91, § 16-119.01)

Secs. 98-81—98-111. Reserved.

DIVISION 3. RECYCLABLE MATERIALS AND YARD DEBRIS

Sec. 98-112. Title.

This division may be cited as the "recyclable materials and yard debris ordinance."

(C91, § 16-119.02; O.11,900, 13,405)

Sec. 98-113. Separation of yard debris required; establishment of recycling program for multifamily residential premises required.

(a) All persons owning or residing in a residential premises shall separate from solid waste generated at that premises all yard debris,

as defined in this division, and shall dispose of the yard debris only as provided in this division.

(b) Every person owning or operating a multifamily residential premises shall establish a program for the collection and disposal of recyclable materials generated by the residents of all living units as provided in this division.
(C91, § 16-119.04; O.11,900, 13,405)

Sec. 98-114. Curbside recycling at residential premises and other approved premises.

(a) The city has established a voluntary single stream curbside recycling program, pursuant to which recyclable materials are collected at curbside in blue wheeled carts provided by the city for that purpose. Persons owning or residing in residential premises who elect to participate in the curbside recycling program shall place recyclable materials unsorted in the blue recyclable materials wheeled cart for bi-weekly collection.

(b) Consistent with the Metro Waste Authority's business recycling program, the city will allow owners of premises other than residential premises as defined in section 98-26 to elect to participate in the city's curbside recycling program if the solid waste collection provider for such premises does not offer recycling service and the premises is located on an established residential route. The property owner must verify that their current solid waste collection provider does not provide recycling services in order to participate. The city will charge a one-time $90.00 fee for the purchase of each recyclable materials cart. There will be a $40.00 annual fee (per cart) for the collection service. Such customers may purchase up to five recyclable materials carts.
(C91, § 16-119.05; O.11,900, 13,254, 13,405, 14,228, 14,919)

Sec. 98-115. Disposal of yard debris.

(a) The provisions of subsection 98-54(5) of this article to the contrary notwithstanding, yard debris will be collected from residential premises only in bags, containers, boxes, or bundles designated for that purpose as provided in this section. All persons owning or residing in residential premises shall dispose or provide for the disposal of yard debris by placing the yard debris for curbside collection by the city in separate bags, solid waste containers, or boxes designated as provided in subsection (b) of this section for the collection of yard debris, or in bundles, or, for single-family residences, by composting the yard debris upon such premises as provided in this section.

(b) Yard debris may be placed for collection at curbside on any regular collection day along with other solid waste in:

(1) A degradable bag bearing the Compost It! logo of the Metro Waste Authority and sold for that purpose by the Metro Waste Authority;

(2) A 64- or 96-gallon solid waste container with a green lid issued by the public works department designating such container for use for collection of yard debris;

(3) A cardboard box not larger than 24 × 24 × 36 inches or degradable store brand yard waste paper bag bearing a sticker issued by the Metro Waste Authority designating such box or bag for use for collection of yard debris; or

(4) A bundle of tree limbs or brush no larger than 48 inches long and 18 inches in diameter secured by twine or cord and Christmas trees each bearing a Metro Waste Authority yard debris sticker.

Such bags, containers, boxes, or bundles, when placed for collection, shall not contain more than 40 pounds of yard debris.

(c) There shall be no limit on the number of bags, containers, boxes, or bundles of yard debris that may be placed for collection on a single collection day, unless a limit is temporarily imposed by the city manager in an emergency situation.

(d) As an alternative to the placement of yard debris in bags, containers, boxes, or bundles for curbside collection, persons owning or residing

in single-family residences may dispose of yard debris by composting, if such composting meets the following requirements:

(1) Composting may be conducted on the premises of a single-family residence only if the lot upon which the residence is located has an area of not less than 5,000 square feet.

(2) A compost pile shall not be located less than 50 feet from any neighboring dwelling.

(3) Each compost pile shall be fenced to screen it from view from neighboring residences and to prevent wind from scattering debris.

(4) Compost piles shall be established and maintained in accordance with recognized guidelines or those provided to the city's solid waste collection customers or otherwise published by the public works department; provided, however, that household food waste, scrap food or garbage shall not be composted with or added to a yard debris compost pile.

(5) Compost piles which are not properly fenced resulting in the dispersal of debris or which create odors resulting in complainants by neighboring residents or which, in the judgment of the public works department sanitation superintendent or the office of environmental health, create a risk of fire or other threat to public health, safety, or welfare shall, when so ordered by the sanitation superintendent or the office of environmental health, be removed from the premises and disposed of by curbside collection as provided in this section.

(6) Yard debris that did not originate upon or which was not collected from the residential lot upon which a compost pile is established shall not be added to such compost pile; provided, however, that a communal compost pile may be established and shared by two or more single-family residences upon approval by the sanitation superintendent.

(e) The city may refuse to collect any bag or container of yard debris if it contains material other than yard debris or if it contains more than 65 pounds of yard debris.
(C91, § 16-119.06; O.11,900, 13,254, 14,228, 14,733, 15,664)

Sec. 98-116. Recycling at multifamily residential premises.

(a) *Responsibility of owner or operator.* It shall be the responsibility of the owner or operator of a multifamily residential premises to establish an appropriate system for the separation and separate storage, collection, and disposal of recyclable materials consistent with recycling market requirements and with the requirements of this section. Compliance with the requirements of this section shall be a condition precedent to the issuance of rental inspection certificates for all multifamily residential premises in the city.

(b) *Bulk containers for storage and collection of materials.* The owner or operator of a multifamily residential premises shall provide or shall arrange for the provision of a sufficient number of bulk containers to store all recyclable materials which are generated by residents and which accumulate in the interval between collection of such materials.

(c) *Location of bulk containers.* Bulk containers for the storage of recyclable materials may be located on the premises of a multifamily residential premises or on property immediately adjacent thereto, provided that the permission of the owner of such adjacent property is obtained in writing and provided that the proposed location of the bulk containers meets all applicable zoning and planning and design requirements. Bulk containers for the storage of recyclable materials may be located in designated parking stalls for the multifamily residential premises or in the setback or side yard thereof, provided that the owner or operator thereof obtains the permission of the director of the community development department or a design alternative, as

applicable, therefor if such is required by chapter 135 of this Code. The location of bulk containers for the storage of recyclable materials shall not interfere with private or public sidewalks, walkways, or driveways; with roads, streets, or highways; or with entrances and exits of private or public buildings. The owner or operator of a multifamily residential premises shall ensure that each dwelling unit has reasonable access to all necessary bulk containers.

(d) *Construction and maintenance specifications for bulk containers.* Bulk containers for the storage of recyclable materials shall be durable, watertight and made of metal or plastic; shall be marked with the recycling symbol or other acceptable markings clearly indicating its intended use for storage of recyclable materials; and shall be acceptable to the director of the community development department. Bulk containers for the storage of recyclable materials shall have lids, if necessary, to avert a public nuisance and protect the marketing quality of recyclable materials. Such lids must remain closed except when recyclable materials are being placed in or removed from the bulk container. Bulk containers for the storage of recyclable materials shall be clearly marked with both the recycling symbol and with the type of material to be deposited in the container. Bulk containers shall remain on the premises at all times. The number of such containers shall be sufficient to handle the volume of recyclables which accumulate between collection intervals. The owner or operator of the multifamily residential premises shall maintain bulk containers in good repair and in a clean and sanitary condition, free of offensive odors and the presence of flies and vermin, and shall maintain the location of such bulk containers free of all litter and spillage of recyclable materials. If one or more of such bulk containers becomes filled with recyclable materials prior to the scheduled collection day, the owner or operator of the multifamily residential premises shall immediately collect and dispose of such materials or shall arrange for the immediate collection and disposal of such materials by its contract waste hauler, all as required in this section.

(e) *Collection of recyclable materials.* The owner or operator of a multifamily residential premises shall either collect and dispose of recyclable materials as provided in this section or shall contract with a waste hauler, licensed pursuant to sections 98-62 through 98-67 of division 2 of this article, for the collection and disposal of recyclable materials from the bulk storage containers located on the premises. If the owner or operator of the multifamily residential premises determines that he or she will not collect and dispose of recyclable materials generated at the premises, such owner or operator shall contract with a private waste hauler, licensed as provided in sections 98-62 through 98-67 of division 2 of this article, for the provision of such service. In that event, the owner or operator shall provide a copy of the contract with the private waste hauler to the city and shall promptly advise the city of any cessation of such service by the private waste hauler. When a private waste hauler provides solid waste collection services to a multifamily residential premises, the bulk containers for the storage of recyclable materials shall be located on such premises at a location agreed upon by the owner or operator of the premises and the private waste hauler.

(f) *Disposal of recyclable materials.* The owner or operator of multifamily residential premises or his or her authorized waste haulers shall provide for the disposal of recyclable materials at a qualified recycling facility approved for that purpose by the director of community development.

(g) *Enforcement.* This section shall be enforced by the community development department as part of its rental inspection program, and housing inspectors are authorized to inspect all multifamily residential premises for compliance with this section. Upon application of the owner or operator of a multifamily residential premises not exceeding ten units in size, showing inability to comply with the bulk container location requirements of this section due to lack of space for bulk containers and inability to obtain an off-site location therefor, the director of the community development department is authorized to waive the requirements of this section. Failure to comply with this section shall be grounds for denial or revocation of a rental inspection certificate, pursuant to the procedures set forth in article IV of chapter 26 of this Code.
(C91, § 16-119.06A; O.13,405, 15,819)

Sec. 98-117. Prohibited acts.

(a) Persons owning or residing in a residential premises shall not place yard debris for collection as disposable waste mixed with other solid wastes or in bags, containers, boxes, or bundles not designated for the collection of such materials. Violation of this subsection is a municipal infraction punishable as provided in section 98-79 of this article.

(b) Persons owning or residing in a residential premises shall not place other solid wastes in bags, containers, boxes, or bundles designated for yard debris, nor shall they place other solid wastes for collection with recyclable materials. Violation of this subsection is a municipal infraction punishable as provided in section 98-79 of this article.

(c) Persons owning or residing at a residential premises shall not compost yard debris except in compliance with section 98-115 of this division. Failure to comply with a notice or order from the city with respect to establishment, maintenance, or removal of a compost pile shall constitute a municipal infraction punishable as provided in section 98-79 of this article.

(d) The city may reject any bags or containers placed for collection in violation of subsection (a) or (b) of this section. Upon rejection of a bag or container, the bag or container will be placed upon the violator's property, and the violator will be required to correct the violation before placing the bag or container for collection again. If bags or containers are persistently placed for collection in violation of subsection (a) or (b) of this section, a violation notice may be left at the violator's residence or upon an empty solid waste container or may be mailed to the violator's residence.

(e) Persons residing in a multifamily residential premises and owners of other premises which are participating in the city's curbside recycling program shall not place other solid wastes for collection with recyclable materials. Violation of this subsection is a municipal infraction punishable as provided in section 98-79 of this article.

(f) The owner or operator of a multifamily residential premises shall establish a program meeting the requirements of this section for the storage and collection of recyclable materials generated by the residents of such premises. Failure to comply with this subsection shall constitute a municipal infraction punishable as provided in section 98-79 of this article and shall be grounds for denial or revocation of the rental inspection certificate for the premises.
(C91, § 16-119.07; O.11,900, 13,254, 13,405, 14,919)

Sec. 98-118. Sale and issuance of bags, stickers and city-owned containers designated for yard debris.

The Metro Waste Authority shall be responsible for the sale and issuance of bags and stickers designated for yard debris for cardboard boxes and tree limb or brush bundles. The public works department shall be responsible for the sale and issuance of the 64- and 96-gallon green lid city-owned solid waste containers for yard debris. The charge for yard debris containers for each 64-gallon green lid container is at $8.34 per month and $10.42 per month for each 96-gallon open lid container plus a one-time fee of $25.00 for container processing, billed and collected pursuant to sections 98-55, 98-56, and 98-57 of this chapter.
(C91, § 16-119.08; O.11,900, 13,254, 13,350, 13,702, 14,228, 14,733, 15,664)

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ARTICLE III. DISPOSAL FACILITIES

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A schedule of the rates, fees, tolls, and other charges to be levied and collected from city residents for the use and services of the solid waste disposal facilities shall be established and put into effect whenever necessary in order for the city to comply with the provisions of its solid waste disposal service contract; provided, however,

the city may in its discretion apply such other lawfully available moneys it has on hand for such purpose.
(C62, § 52B-2; O.8347; C75, C79, C91, § 16-121)

Chapters 99—101

RESERVED

Chapter 102

STREETS, SIDEWALKS, SKYWALKS AND OTHER PUBLIC PLACES*

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*__Cross references—__Any ordinance dedicating, accepting the dedication of, naming, establishing, locating, opening, paving, widening, vacating, etc., any street, alley, public way or public park in the city saved from repeal, § 1-20(4); any ordinance establishing or prescribing street grades in the city saved from repeal, § 1-20(6); buildings and building regulations, ch. 26; cemeteries, ch. 34; environment, ch. 42; floodplains, ch. 50; library, ch. 66; parks and recreation, ch. 74; peddlers and solicitors, ch. 78; planning, ch. 82; public improvements, ch. 94; subdivisions, ch. 106; telecommunications, ch. 110; traffic and vehicles, ch. 114; vision clearance at street intersections, § 114-14; utilities, ch. 118; vegetation, ch. 122; vehicles for hire, ch. 126; waterways, ch. 130; zoning ordinance, ch. 134; electric franchise, app. C; gas franchise, app. D; sewer district, app. G.

__State law reference—__Municipal responsibility for public places, I.C. § 364.12.

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ARTICLE I. IN GENERAL & BORDER AREAS

DIVISION 1. GENERALLY

Sec. 102-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Border area means all property between the lot lines or property lines and the curblines upon the public streets or travelled street surfaces, if no curbing is constructed.

Carriage walk means a paved portion of the city right-of-way within the border area, constructed by the adjacent property owner for the purpose of connecting the curbline of a public street or travelled street surface, if no curbing is constructed, to the private property line at the edge of the street right-of-way.

Property owner and *owner of property* are synonymous and are defined in section 102-123 of this chapter.
(C85, § 23-2.01; O.11,361; C91, § 23-2.02; O.13,000, 16,478)

Cross reference—Definitions generally, § 1-2.

Sec. 102-2. Reserved.

Editor's note—Ord. No. 16,478, § 1, adopted June 30, 2025, repealed § 102-2, which pertained to maintenance of border area and derived from Code 1985, § 23-2.03; Ord. No. 11,361; Code 1991, § 23-2.03; Ord. No. 13,314; Ord. No. 14,164; Ord. No. 15,588; Ord. No. 15,775. The user's attention is directed to § 102-21 et seq.

Sec. 102-3. Penalties.

(a) Any person who fails to perform an act required by this chapter or who commits an act prohibited by this chapter or who violates or resists the enforcement of the provisions of this chapter shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.

(b) In addition to the fines or penalties provided for in section 102-3(a), violations of section 102-21 constitute public nuisances subject to abatement and enforcement pursuant to the procedures set forth in article VI of chapter 42 of this Code.

(c) Seeking a civil penalty as authorized in this section does not preclude the city from seeking alternative relief, including but not limited to any order for abatement or injunctive relief from the court in the same action or as a separate action.
(C85, § 23-2.04; O.11,361, 11,583; C91, § 23-2.04; O.13,648, 15,588, 15,608, 16,478)

Sec. 102-3.5. Administrative penalties—Notice of violations.

(a) The director of public works or his or her designated representative or any police officer is authorized to impose an administrative penalty upon any owner or tenant or lessee of any real estate who fails to maintain the border area. The administrative penalty for such violation shall be as provided in the schedule of administrative penalties adopted by the city council by resolution.

(b) Penalties shall be paid in full within 30 days of the issuance of the notice.

(c) Notice of violation, with the applicable penalty for such violation noted thereon, shall be issued to the violator by the director of public works or his or her designated representative or any police officer. Service of the notice may be by regular mail or delivery in person. Such notice shall include:

(1) a statement that the violator has a right to an administrative hearing regarding the violation;

(2) a statement that the violator may file a written request for hearing as set forth in section 102-126.07. The request of hearing shall stay payment of the administrative penalty until the hearing is decided. If issuance of the notice of violation is upheld, the violator shall

have 30 days from issuance of the hearing decision to pay the administrative penalty.
(O.15,775)

Sec. 102-4. Use of coasters, skateboards and similar devices.

(a) No person upon a skateboard, coaster, or similar device shall operate or use such on any street, highway, alley, or parking garage.

(b) No person upon a skateboard, coaster, or similar device shall operate or use such on any work of art, sculpture or monument or on any planter, freestanding flower or tree box, flower bed or garden, fountain or park equipment, nor shall such devices be used on any public stairway or access ramps, including those built for use by persons with disabilities, nor on any area designed and used for public seating in an amphitheater or similar area.
(C42, § 111-3; C54, C62, § 54-3; C75, C79, C85, § 23-3; O.11,188; C91, § 23-3; O.15,000)

Sec. 102-5. Abandoned property declared nuisance.

No person shall abandon, leave or place in any street, alley or public place property of any kind. Any property so abandoned, left or placed in any such street, alley or public place and any property abandoned, left or placed by any person on any private property is declared to be a public nuisance and an obstruction and a menace to the public welfare, comfort, safety and health.
(C42, § 89-7; C54, C62, § 54-4; O.7199; C75, C79, C91, § 23-4)

Sec. 102-6. Removal of abandoned property.

The city manager or his or her authorized representative shall look after the removal of the obstruction and abatement of the nuisance described in section 102-5 of this article as soon as possible after receiving a report.
(C42, § 89-8; C54, C62, § 54-5; O.7199; C75, C79, C91, § 23-5)

Sec. 102-7. Custody of abandoned property; expenses.

The city manager or his or her authorized representative shall take possession of any article of property abandoned, left or placed on public or private property, under sections 102-5 and 102-6 of this article and if the property is believed to have any value to keep it and attempt to find the owner thereof. The city manager or his or her authorized representative shall maintain a place to keep any such article until it is claimed or otherwise disposed of. The city shall have a lien thereon for the reasonable expenses incurred and value or cost of the time and effort necessary in taking, removing and storing the article and for the value of the storage and may retain possession until any and all liens are discharged.
(C42, § 89-9; C54, C62, § 54-6; O.7199; C75, C79, C91, § 23-6)

Sec. 102-8. Disposition of abandoned property.

If any abandoned property as referred to in sections 102-5, 102-6 and 102-7 of this article has been or is kept for 30 days or more without being claimed, it may be disposed of by the city manager or his or her authorized representative. If the city manager elects to sell the property, it may be sold ten days after notice of the proposed sale has been given by one publication in any newspaper published in the city. The city may be a bidder at the sale. If at any such sale an amount is bid in excess of the charges or lien of the city, the excess shall be used at the discretion of the city manager.
(C42, § 89-10; C54, C62, § 54-7; O.7199; C75, C79, C91, § 23-7; O.16,381)

Sec. 102-9. Bonfires.

No person, either by himself or herself or through his or her employee, agent or servant, shall rake or place leaves, grass or any rubbish or material on any street, sidewalk, parking, alley or public grounds or set fire to or attempt to burn or to burn the material on any street, sidewalk, border area, alley or public ground.
(C42, § 89-13; C54, C62, § 54-8.01; C75, C79, C85, § 23-8; O.11,583; C91, § 23-8)

Secs. 102-10—102-13. Reserved.

Editor's note—Ord. No. 14,329, § 1, adopted April 5, 2004, repealed §§ 102-10—102-13 which pertained to street parade permit required, application; issuance of permit, fee, form; funeral processions excepted from permit; and authority of chief of police for parades and processions, respectively, and derived from Code 1942, §§ 93-1—93-3; Code 1954 and Code 1962, §§ 30-2, 54-9—54-11, 54-14; Ord. No. 8084; Code 1975 and Code 1979, §§ 23-9—23-11, 23-14, 27-2, 30-2; Code 1991, §§ 23-9—23-11, 23-14, 27-2; Ord. No. 13,734; and Ord. No. 13,753.

Sec. 102-14. Reporting chapter violations.

Every police officer shall promptly report any violation of this chapter and shall promptly file information in the associate district court against any person willfully violating this chapter.
(C42, § 89-6; C54, C62, § 54-15; C75, C79, C91, § 23-15)

Secs. 102-15—102-20. Reserved.

DIVISION 2. BORDER AREAS

Sec. 102-21. Maintenance of border area.

(a) The abutting property owner shall maintain the border area in a well-kept and safe condition free from defects, garbage, junk, rubbish, debris, solid waste, nuisances, obstructions (other than those obstructions permitted in this section) or any other hazards, except as permitted in section 98-54 or 98-58 of this Code; provided, however the property owner shall not be required to remove diseased trees or dead or fallen tree limbs.

(b) The abutting property owner may intentionally plant grass, flowers, shrubs, and plants, which shall exclude trees, in the border, subject to the following restrictions:

(1) No noxious weeds, as declared in Iowa Code 317.1A, or edible plants shall be allowed.

(2) No turfgrass shall exceed 12 inches in height.

(3) No flowers, shrubs, or plants shall exceed 36 inches in height. Flower stalks from the following plants are exempt from the 36 inch height requirement:

a. Lily
b. Daylily
c. Hosta
d. Iris
e. Coneflower
f. Bellflower
g. Yarrow
h. Astilbe
i. Poppy
j. Milkweed
k. Yucca
l. Columbine
m. Allium
n. Lupine
o. Veronica
p. Larkspur
q. Marigold
r. Zinnia
s. Snapdragon

(4) Said grass, flowers, shrubs, and plants shall not fully or partially obstruct any portion of any signs or traffic control devices.

(5) Said grass, flowers, shrubs, and plants shall not grow on or attach to any signs, signposts, or traffic control devices.

(c) The abutting property owner may place landscaping edging for the purpose of providing a border for intentionally planted grass, flowers, shrubs, and plants in the border area, subject to the following restrictions:

(1) No edging material may be used except landscaping blocks made of stone, brick or concrete or formed concrete.

(2) Where landscaping brick or blocks are used, edging material may only be single

level and may not be stacked to increase the height of the edging above a single level.

(3) Where formed concrete is used, the height may not exceed six inches, the depth may not exceed eight inches, and width may not exceed eight inches.

(d) Only turfgrass less than 12 inches in height, ground cover only as approved by the fire chief or fire marshal, or concrete pavement or pavers flush with the surrounding finished grade, shall be located within five feet of any fire hydrant.

(e) Only turfgrass less than 12 inches in height shall be located within five feet of any utility or light pole, sign post/pole, traffic control device, utility boxes or access points or any item placed within the border by the city, franchisee, or other licensed user of the right-of-way.

(f) All grass, flowers, shrubs, plants, groundcover, landscape edging, carriage walks, and retaining walls planted, placed or constructed by or for the property owner shall be at the property owner's sole risk and cost. The city shall not be required to incur any cost associated with such materials planted, placed or constructed by or for the property owner.

(g) In the event the city is required to restore any portion of the border area, such restoration shall be limited to turfgrass only.

(h) All grass, flowers, shrubs, plants, groundcovers, landscape edging, carriage walks, and retaining walls planted, placed or constructed in the border area shall be subject to all requirements of chapters 122, 134 and 135 of this Code.

(i) All grass, flowers, shrubs, plants, groundcovers, landscape edging, carriage walks, and retaining walls located within the vision clearance triangle shall be subject to the requirements of sections 114-14, 114-14.01, and 114-14.02 of this Code.

(j) The location of said grass, flowers, shrubs, plants, groundcovers, landscape edging, carriage walks, and retaining walls shall not interfere with access to, installation, construction, repair, reconstruction, relocation, or maintenance of any utilities located and/or operated within the border area. All grass, flowers, shrubs, plants, groundcovers, landscape edging, carriage walks, and retaining walls placed within the border area shall be subject to existing and future utilities within the border area. In the event said grass, flowers, shrubs, plants, groundcovers, landscape edging, carriage walks, and retaining walls are impacted, removed or damaged for the installation, construction, repair, reconstruction, relocation or maintenance of the border area, the property owner shall be solely responsible for the replanting or reconstruction of any items placed or planted in the border by the property owner. All damage to utilities resulting from the planting or placement of said grass, flowers, shrubs, plants, groundcovers, landscape edging, carriage walks, and retaining walls shall be at the sole cost of the property owner.

(k) The location of said grass, flowers, shrubs, plants, groundcovers, landscape edging, carriage walks, and retaining walls shall not interfere with access to, installation, construction, repair, reconstruction, relocation or maintenance of any public improvements located and/or operated within the border area. All grass, flowers, shrubs, plants, groundcovers, landscape edging, carriage walks, and retaining walls placed within the border area shall be subject to existing and future public improvements within the border area. In the event said grass, flowers, shrubs, plants, groundcovers, landscape edging, carriage walks, and retaining walls are impacted, removed or damaged for the installation, construction, repair, reconstruction, relocation or maintenance of the border area, the property owner shall be responsible for the replanting or reconstruction of any items placed or planted in the border by the property owner. All damage to utilities and/or the public right-of-way resulting from the planting of said grass, flowers, shrubs, plants, groundcovers, landscape edging, carriage walks, and retaining walls shall be at the sole cost of the property owner.

(l) Said grass, flowers, shrubs, plants, groundcovers, landscape edging, carriage walks, and retaining walls shall not encroach upon any portion of the roadway, alley, or sidewalk which

decrease the width of a sidewalk to less than four feet or the width of an alley to less than ten feet.

(m) All carriage walks, as defined in article I, section 102-1, shall be subject to the requirements in section 102-22.

(n) The abutting property owner may place mulch or landscaping rock as groundcover in the border. Rocks may not exceed two inches in diameter.

(n) A retaining wall may be placed within the border area where required to retain soil to prevent movement or erosion. When a retaining wall is placed in the border, a license shall be required subject to the requirements of sections 102-605 and 102-606 of this Code.

(o) The abutting property owner shall keep the border area free of any structures, materials or objects, except grass, flowers, shrubs, plants, groundcovers, landscape edging, carriage walks, and retaining walls as allowed herein, breakaway mailboxes or other obstructions approved by the city through a process provided for in this Code.

(p) Initial installation, repair, and maintenance of all groundcover, landscape edging, carriage walks, and retaining walls shall be subject to the permit requirements in article IX, division 2.

(q) The abutting property owner may be liable for damages caused by failure to maintain the border area.

(r) This section shall not apply to multi-use recreational trails, traffic control devices, traffic signs, parking meters, newspaper boxes, United States postal boxes or those erected for home delivery, or street trees planted in conformance with city standards that do not constitute a safety hazard, obstruction of view or nuisance.
(O.16,478)

Sec. 102-22. Carriage walks.

(a) If the owner or occupant of any property abutting a city street desires to construct a carriage walk within the city street right-of-way, it shall be the responsibility of the owner or occupant of the abutting property to protect and maintain the carriage walk constructed in the city right-of-way. The city or any other person, firm or governmental entity having utility, traffic control or other equipment in the city right-of-way where the carriage walk is situated shall not have any duty to protect or repair the carriage walk if it is destroyed, damaged, disturbed or adversely impacted due to the repair, maintenance or replacement of any such equipment.

(b) A maximum of one carriage walk per property may be constructed using concrete or brick.

(c) The carriage walk cannot exceed five feet in width and must be constructed a minimum of 40 feet from midblock and intersection pedestrian crossings. Where designated pedestrian crossings are not present at an intersection, the 40 feet shall be measured from end of the intersection radius return.

(d) All carriage walks shall be subject to the permit requirements in article IX, division 2. A sidewalk permit as outlined in section 102-75 shall not be required for the construction of a carriage walk.

(e) All carriage walks shall comply with requirements outlined in sections 102-21 and 102-3.5 of this Code.
(O.16,478)

Secs. 102-23—102-40. Reserved.

ARTICLE II. SIDEWALKS

DIVISION 1. GENERALLY

Sec. 102-41. Horses or vehicles.

No person shall push, draw, lead or drive any horse, cart, wagon or other vehicle upon any sidewalk except in crossing the sidewalk to go into a yard or lot nor shall any person leave any horse, cart, wagon or other vehicle upon any sidewalk so as to obstruct its free use. Manually operated or power-driven wheelchairs, manually-powered mobility aids, and other power driven mobility devices used by persons with a mobility

disability for the purpose of locomotion, as provided in 28 CFR 35, shall be permitted upon sidewalks.
(C42, § 111-8; C54, C62, § 54-2; C75, C79, C91, § 23-2; O.15,000)

Sec. 102-42. Maintenance.

(a) The owner of any property abutting a public sidewalk shall maintain the sidewalk in a safe condition, in a state of good repair, and free from defects. The abutting property owner may be liable for damages caused by failure to maintain the sidewalk.

(b) In the sole discretion of the department director and if funds and personnel are available for the same, the city inspector may, but is not required to, conduct voluntary inspections of city sidewalks following receipt of a sidewalk complaint to assure that the owners of property abutting sidewalks are complying with the maintenance requirements imposed above.

(c) (1) If, through sidewalk complaint and voluntary inspection or otherwise, it comes to the attention of a city inspector that an owner of property abutting a sidewalk is not complying with the maintenance requirements imposed above, then the city inspector may cause to be served upon the property owner, by certified mail at the property owner's last known address as shown by the records of the county auditor, notice of the sidewalk defect and of the requirement to cure said defect and/or reconstruct the defective sidewalk or a portion thereof within 180 days from the date of said notice.

(2) In response to said notice, the property owner may submit a written request to the city inspector for an 180 day extension of time to cure the sidewalk defect and/or reconstruct the defective sidewalk, for a total period, as extended, of up to 360 days from the date of the notice to cure and/or reconstruct.

(3) Said notice, if given, shall also state the nature of any immediate or interim repairs or precautions required to be undertaken by the property owner following notice but prior to repair of the sidewalk defect, including but not limited to temporary asphalt wedges, barricading, and placement of protective devices.

(4) Said notice, if given, shall also state that if the property owner does not make the required immediate or interim repairs, and/or cure the sidewalk defect and/or reconstruct the sidewalk within 180 days from the date of the notice or within such extended time as approved by the city inspector, the city may pursue action against the property owner for civil infraction, and/or may give notice and take action pursuant to sections 102-83 and 102-84 of this Code, and/or may pursue any other legally available remedy. Failure of the abutting property owner to complete the maintenance within 180 days from the date of the notice or within such extended time as approved by the city inspector may be punishable as a municipal infraction by a civil penalty pursuant to section 1-15 of this Code.

(d) Curing of sidewalk defect and/or sidewalk reconstruction as ordered by this section shall be undertaken by property owners in accordance with division 2 of this article, except that the following Code sections shall not apply: sections 102-71, 102-74, 102-81, 102-91, 102-92 and 102-93.

(e) The department director may, in his or her sole discretion, establish policies and procedures relating to income-based subsidies, and to reimbursement of part or all of the cost to repair a sidewalk defect determined by the city inspector at time of inspection to have been caused by city activities and/or city trees, for property owners receiving notice of sidewalk defect. Any subsidies or reimbursements authorized in

accordance with such policies shall be subject to funding availability, as determined by the department director in his or her sole discretion.

(f) In the sole discretion of the department director and if funds and personnel are available for the same, the public works department, at the request of the city inspector, may, but is not required to, place barricades or other devices or materials in such places as may serve to protect the public from sidewalks not in compliance with the maintenance requirements imposed above. If such protective devices are placed by the department, they shall not be removed until all sidewalk defects are corrected. Premature removal of the protective devices may be punishable as a municipal infraction by a civil penalty pursuant to section 1-15 of this Code, which penalty shall be available to the city as a remedy in addition to all other legally available remedies.

(g) The department director shall keep records of all sidewalk complaints received, all voluntary sidewalk inspections conducted, notices of defects sent, protective devices placed and sidewalk work done by the city for a period of three years from the date of the action and shall, to the extent required by open records law, make the same available to all persons who claim to have been damaged or injured as a result of the failure to maintain a sidewalk by an abutting property owner.

(h) This section shall not apply to multi-use recreational trails as defined pursuant to section 114-1 of this Code.

(i) Nothing set forth in this section shall be construed so as to prevent or preclude the city, or the department(s) and department director(s) responsible for enforcement of this article, from taking any emergency action or nuisance abatement action, including but not limited to notice and assessment of costs, as deemed appropriate pursuant to chapter 42 of this Code in the event that sidewalk defects are determined by the department director to constitute a nuisance.
(C85, § 23-2.01; O.11,361; C91, § 23-2.01; O.13,314, 14,092, 14,164, 14,800, 15,107)

Sec. 102-43. Definitions—Maintenance of sidewalks.

As used in divisions 1 and 2 of this article, the following words have the following meanings:

City inspector means any city employee designated by the department director to undertake the city's inspection and notice actions as set forth in divisions 1 and 2 of this article.

Defect or *defective condition* means a public sidewalk has a defect or defective condition when it exhibits one or more of the following characteristics:

(1) Vertical separations equal to three-fourth inch or more;

(2) Horizontal separations equal to three-fourth inch or more;

(3) Holes or depressions equal to three-fourth inch or more;

(4) Spalling over 50 percent of a single square or panel of sidewalk with one or more depressions equal to one-half inch or more;

(5) A single square or panel of sidewalk cracked in such a manner that no part thereof has a piece greater than one square foot, or is cracked in such a manner that it constitutes danger or potential danger to the public;

(6) A sidewalk with any part thereof missing to the full depth;

(7) A deviation on the staked and constructed grade equal to three-fourth inch or more;

(8) Covered in whole or in part with weeds or other plants, garbage, junk, rubbish, debris, solid waste, bird or animal droppings or any nuisances, obstructions or hazards which makes or tends to make pedestrian travel either dangerous or impractical.

Department director means the director of any city department charged with enforcement of any section of divisions 1 and 2 of this article, or his or her designee.

Maintain or *maintenance* means the duty to remove and replace a public sidewalk, or a portion of a public sidewalk, all work to be performed in accordance with established city specifications in effect at the time the work is commenced, so as to render the sidewalk free from defect.

Property owner or *owner* means the record holder of legal title, and the contract purchaser, if there is one of record, and may be referred to as "person" in division 2 of this article.

Sidewalk means the paved portion of that area between the curb lines of the roadway and the adjacent property lines intended for the use of pedestrians.
(O.14,092, 15,107, 16,478)

Secs. 102-44—102-70. Reserved.

DIVISION 2. CONSTRUCTION

Sec. 102-71. Authority to order.

The city council may, by its own initiation or petition, approve or order the construction or reconstruction of permanent sidewalks upon any street, highway, avenue, public ground, landing or marketplace within the corporate limits.
(C62, § 54-88; O.7944; C75, C79, C91, § 23-77; O.11,811)

Sec. 102-72. Procedure for levy of special assessments.

(a) *Construction of new sidewalk.* If the resolution ordering construction of a new sidewalk provides that all or any portion of the costs thereof shall be assessed against the lots or parcels of land in front of which or abutting which the sidewalk shall be constructed, the procedures for making and levying a special assessment pursuant to this division and for an appeal of the assessment shall be the same procedures as are provided in I.C. § 384.37 et seq., pertaining to special assessments.

(b) *Reconstruction of existing sidewalk.* If the resolution ordering reconstruction of an existing sidewalk provides that all or any portion of the costs thereof shall be assessed against the lots or parcels of land in front of which or abutting which the sidewalk shall be reconstructed, the procedures for making and levying a special assessment pursuant to this division and for an appeal of the assessment shall be the same procedures as are provided in I.C. §§ 364.12—364.13B, 384.59—384.67, and 384.72—384.75, inclusive.
(C62, § 54-89; O.7944; C75, § 23-78; O.9095; C79, C91, § 23-78; O.11,811)

Sec. 102-73. Plans and specifications.

Permanent sidewalks shall be constructed and/or reconstructed in accordance with the current edition of the SUDAS Design Manual and the SUDAS Standard Specifications as adopted by city council and current edition of the City of Des Moines Supplemental Specifications to the SUDAS Standard Specifications. Sidewalks shall be constructed of brick, stone, Portland cement concrete or architectural pavers, all of which shall be subject to approval by the city engineer.
(C54, § 54-91; O.6483; C62, § 54-91; O.7944; C62, § 54-94; C75, § 23-83; O.9095; C79, C91, § 23-83; O.11,811, 15,107)

Sec. 102-74. Notice to owners fronting on proposed sidewalk.

(a) If the resolution ordering construction of sidewalks provides that the costs thereof shall be assessed against the lots or parcels of land in front of which the sidewalk shall be constructed, upon passage of the resolution for construction, the notice shall be given to the owners or agents of property fronting on the proposed sidewalk that the city council has ordered its construction.

(b) The notice shall state the following:

(1) The type, width, class, and location of the sidewalk to be constructed and the date of the passage of the resolution for construction.

(2) Unless the sidewalk is constructed by the owner within 30 days after service of the notice, the city will cause the sidewalk to be constructed by the city contractor or by the city, as may be prescribed in the

resolution ordering construction, and the entire cost thereof assessed against the property.

(3) If the property owner constructs the sidewalk, the owner must obtain a permit therefor from the city and must construct it in accordance with this division and other laws and ordinances or plans and specifications approved by the city council and on file in the office of the city clerk.

(c) Notice shall be served by certified mail sent to the last known address of the owners or agents.
(C42, § 87-3; O.5339; C54, § 54-92; O.6483; C62, § 54-92; O.7944; C62, § 54-95; C75, § 23-84; O.9095; C79, C91, § 23-84; O.11,811)

Sec. 102-75. Permit required.

(a) No person shall construct, reconstruct or remove any sidewalk either for the purpose of rebuilding or replacing the sidewalk whether ordered by the city council or not, or proceed with the work of removing the present sidewalk, excavating, filling or depositing material for the construction or reconstruction of any sidewalk, unless such person shall obtain a permit from the building official or his or her designee. However, no sidewalk permit shall be required for a sidewalk section which is included in the construction, reconstruction or removal of the driveway approach, when such work is undertaken pursuant to a driveway approach permit issued under article V of this chapter.

(b) City work forces and city contractors are exempt from the permit requirement when engaged in the construction or reconstruction of sidewalks at the direction of and on behalf of the city.
(C42, § 87-13; O.5339; C54, § 54-93; O.6483; C62, § 54-93; O.7944; C62, § 54-108; C75, § 23-97; O.9095; C79, C85, § 23-97; O.11,583; C91, § 23-97; O.11,811, 13,010, 15,107)

Sec. 102-76. Compliance agreement required with permit application.

Any person desiring a permit to construct, reconstruct or remove any sidewalk shall, upon application for the permit, agree in writing that he or she will, in the removal, construction, reconstruction or in the repair of such sidewalk, comply with this Code and other city ordinances and with the specifications for sidewalks as prepared by the city engineer and approved by the city council. Such work shall be done under the direction and supervision of and subject to the inspection and approval of the city engineer or his or her duly authorized representative.
(C42, § 87-13; O.5339; C54, § 54-94; O.6483; C62, § 54-94; O.7944; C62, § 54-109; C75, C79, C91, § 23-98)

Sec. 102-77. Permit fees.

The fee for a permit to construct, reconstruct or remove any sidewalk shall be in the amount(s) set forth in the approved schedule of fees on file in the office of the city clerk. A copy of the permit, together with the written agreement referred to in section 102-76 of this division, shall be filed and preserved with the building official or his or her designee.
(C42, § 87-13; O.5339; C54, § 54-95; O.6027, 6483; C62, § 54-95; O.7944; C62, § 54-110; O.8450; C75, § 23-99; O.9095; C79, § 23-99; O.10,649; C85, § 23-99; O.11,583; C91, § 23-99; O.11,748, 13,010, 15,107)

Sec. 102-78. Permit fee exemption.

The federal government, the state or any political subdivision of the state shall be exempt from payment of the fees prescribed in section 102-77 of this division.
(C62, § 54-95.01; O.7461, 7944; C62, § 54-111; C75, C79, § 23-100; O.10,371; C85, § 23-100; O.11,583; C91, § 23-100)

Sec. 102-79. Determination of propriety of work; commencement and completion dates; extension of time.

Before granting any permit to remove, construct, reconstruct or repair any sidewalk, the building official or the building official's designee shall determine the propriety of the work and shall state in all permits issued when the work is to be commenced and when the

sidewalk is to be completed. The time of completion for the construction or reconstruction of any sidewalk may be extended by the building official or his or her designee when in his or her judgment the extension is deemed necessary; however, for permits issued to property owners for cure of sidewalk defects and/or sidewalk reconstruction ordered under section 102-43 of this Code, the permit shall not be extended beyond the time allowed by the city inspector pursuant to section 102-43(c).
(C42, § 87-13; O.5339; C54, § 54-96; O.6483; C62, § 54-96; O.7944; C62, § 54-112; C75, § 23-101; O.9095; C79, C85, § 23-101; O.11,583; C91, § 23-101; O.13,010, 15,107)

Sec. 102-80. Permits issued in compliance with resolution or division.

All permits for the construction or reconstruction of sidewalks shall be issued in compliance with the resolution of the city council ordering the construction or reconstruction. All permits for the construction or reconstruction of sidewalks not ordered by resolution of the city council shall be issued in compliance with this division and of the same width, line and material in each respective block and shall conform in width, line and material with sidewalks laid in each respective block.
(C42, § 87-13; O.5339; C54, § 54-97; O.6483; C62, § 54-97; O.7944; C62, § 54-113; C75, C79, C91, § 23-102)

Sec. 102-81. Withholding permit issuance.

The building official or his or her designee may withhold the issuance of any permit for the construction or reconstruction of any sidewalk for a sufficient period to determine the necessity for the construction of such sidewalk.
(C42, § 87-13; O.5339; C54, § 54-98; O.6483; C62, § 54-98; O.7944; C62, § 54-114; C75, § 23-103; O.9095; C79, C85, § 23-103; O.11,583; C91, § 23-103; O.13,010, 15,107)

Sec. 102-82. Direction and supervision of work; inspection.

All sidewalks, constructed, reconstructed, removed, renewed, restored and repaired and the work thereof shall be done under the direction and supervision of and subject to the inspection and approval of the city engineer or his or her duly authorized representative.
(C42, § 87-14; O.5339; C54, § 54-99; O.6483; C62, § 54-99; O.7944; C62, § 54-115; C75, C79, C91, § 23-104)

Sec. 102-83. Failure to comply with division; notice.

Whenever any sidewalk is constructed, reconstructed or repaired which does not conform to this division and with the specifications referred to in this division or where any sidewalk is removed, constructed, reconstructed or repaired without obtaining a permit therefor as provided in this division or is not restored, constructed, reconstructed or repaired at the time provided for and stated in the permit obtained, the department director may serve upon the property owner or his or her agent and upon the contractor or party interested and doing such work a notice to obtain a permit therefor, if not already obtained, or if the sidewalk is in the course of construction to stop the work, and if the sidewalk work has been completed to obtain a permit therefor to construct, reconstruct or repair sidewalk within five days from the receipt of notice, as the case may be, in the proper manner and of proper materials as required by this division and specifications referred to in this division.
(C42, § 87-14; O.5339; C54, § 54-100; O.6483; C62, § 54-100; O.7944; C62, § 54-116; C75, § 23-105; O.9095; C79, C91, § 23-105; O.15,107)

Sec. 102-84. Failure to comply with notice; work done by city.

If the property owner or the contractor or any one of them shall fail to comply with this division, after notice by certified mail, the city engineer may cause the sidewalk to be constructed, reconstructed or repaired in a proper manner and of proper materials and report to the city council the complete cost thereof if known. The cost shall be assessed to the property fronting thereon and in the manner provided in section

102-72 of this division for assessing the cost of constructing, reconstructing or repairing of sidewalks.
(C42, § 87-14; O.5339; C54, § 54-101; O.6483; C62, § 54-101; O.7944; C62, § 54-117; C75, § 23-106; O.9095; C79, C91, § 23-106; O.15,107)

Sec. 102-85. Barricades and signal lights.

Whenever any material of any kind shall be deposited on any street, avenue, highway, passageway or alley, for the construction, reconstruction or repair of any sidewalk or approaches thereto, or when any sidewalk is being built, repaired or removed or if from any other cause the sidewalk is in a dangerous condition, it shall be the duty of all persons having an interest therein, either as owner, agent, contractor or as owner or lessee of the property in front of or along which such material may be deposited or such dangerous condition exists, to put in conspicuous places at each end of the sidewalk and at each end of any pile of material deposited in the street, at twilight each day, a sufficient number of approved signal lights or flares and to keep them burning during the entire night and to erect sufficient barricades both at night and in the daytime to secure the sidewalk.
(C42, § 87-15; O.5339; C54, § 54-102; O.6483; C62, § 54-102; O.7944; C62, § 54-118; C75, C79, C91, § 23-107)

Sec. 102-86. Liability for injury or damage.

The person using the street for any of the purposes specified in this division shall be liable for all injuries or damage to persons or property arising from any wrongful act or negligence of such person or his or her agents or employees or for any misuse of the privileges conferred by this division or for any failure to comply with this division.
(C42, § 87-15; O.5339; C54, § 54-103; O.6483; C62, § 54-103; O.7944; C62, § 54-119; C75, C79, C91, § 23-108)

Sec. 102-87. Interference with work; damaging.

No person shall knowingly or willfully drive any vehicle or livestock upon any portion of any sidewalk or approach thereto while in the course of construction, reconstruction or repair or upon any portion of any completed sidewalk or approach thereto, and no person shall remove or destroy any part or all of any sidewalk or approach thereto or remove, destroy, mar or deface any sidewalk at any time.
(C42, § 87-16; O.5339; C54, § 54-104; O.6483; C62, § 54-104; O.7944; C62, § 54-120; C75, C79, C91, § 23-109)

Sec. 102-88. Reserved.

Editor's note—Ord. No. 15,107, § 1, adopted May 21, 2012, effective July 1, 2012, repealed § 102-88, which pertained to repair and maintenance generally and derived from Code 1942, § 87-17; Ord. No. 5339; Code 1954, § 54-105; Ord. No. 6483; Code 1962, § 54-105; Ord. No. 7898, 7944; Code 1962, § 54-121; Code 1975; Code 1979; Code 1991, § 23-110; Ord. No. 11,811.

Sec. 102-89. Cost of repair.

The cost of repairing sidewalks and of taking up or removing dangerous sidewalks due to emergency or nuisance determinations, pursuant to section 102-43(i) and/or chapter 42 of this Code, shall be paid by the owners of the property fronting thereon and shall be assessed against such property in accordance with section 102-72 of this division. This section shall not apply to multi-use recreational trails as defined pursuant to section 114-1 of this Code.
(C42, § 87-17; O.5339; C54, § 54-106; O.6483; C62, § 54-106; O.7944; C62, § 54-122; C75, C79, C91, § 23-111; O.11,811, 14,164, 15,107)

Sec. 102-90. Funds to pay cost of repairs.

The cost of repairing sidewalks shall be paid from the fund appropriated for the purpose, and assessments when collected shall be credited to such fund. The cost may also be paid from the sidewalk fund or any other proper fund as provided for by law or ordinance or resolution of the city council.
(C42, § 87-17; O.5339; C54, § 54-112; O.6483; C62, § 54-112; O.7944; C62, § 54-128; C75, C79, C91, § 23-117; O.11,811)

Sec. 102-91. Temporary sidewalks generally.

The city council may by resolution order the construction or reconstruction of temporary sidewalks upon any street, avenue, highway or public ground within the corporate limits.
(C42, § 87-18; O.5339; C54, § 54-113; O.6483; C62, § 54-113; O.7944; C62, § 54-129; C75, C79, C91, § 23-118)

Sec. 102-92. Specifications and assessment of costs of temporary sidewalks.

The resolution ordering the construction or reconstruction of temporary sidewalks shall prescribe the width, grade and location of the sidewalk and may provide that the costs thereof may be assessed against the property in front of which or abutting which the sidewalk shall be laid in accordance with section 102-72 of this division.
(C42, § 87-18; O.5339; C54, § 54-114; O.6483; C62, § 54-114; O.7944; C62, § 54-130; C75, C79, C91, § 23-119; O.11,811)

Sec. 102-93. Procedures for construction of temporary sidewalks.

Except as otherwise provided in this section and sections 102-91 and 102-92 of this division and by statute, the procedures for the construction or reconstruction of temporary sidewalks shall be the same as is provided in this division for the construction or reconstruction of permanent sidewalks.
(C42, § 87-18; O.5339; C54, § 54-115; O.6483; C62, § 54-115; O.7944; C62, § 54-131; C75, C79, C85, § 23-120; O.11,583)

Sec. 102-94. Alternative procedures.

In addition to this division, sidewalks may be constructed, reconstructed and financed by any method provided in state law.
(C62, § 54-143.01; O.7221, 7944; C62, § 54-132; C75, C79, C91, § 23-121)

Sec. 102-95. Construction of heated sidewalk.

(a) If the owner or occupant of any property abutting a city street desires to construct a heated sidewalk within the city street right-of-way, the owner or occupant shall so state in its permit application. It shall be the responsibility of the owner or occupant of the abutting property to protect and maintain the sidewalk and sidewalk heating system constructed in the city right-of-way. The city or any other person, firm or governmental entity having utility, traffic control or telecommunications equipment in the city right-of-way where the heated sidewalk is situated shall use reasonable care to avoid damaging or destroying the sidewalk heating system, but shall not have any duty to protect or repair the sidewalk heating system if same is destroyed, damaged, disturbed or adversely impacted due to the repair, maintenance or replacement of any such equipment.

(b) The sidewalk permit applicant shall provide the following information with respect to such sidewalk:

(1) A drawing signed by the owner and/or occupant of the abutting property showing the proposed location of the heating system within the sidewalk on city right-of-way, and showing the connection point or points where such system will be connected to the glycol heating/pumping equipment, which equipment shall be located on the property abutting the city right-of-way.

(2) A statement from the abutting property owner stating that it understands and agrees to the conditions outlined in this section.

(c) The only type of sidewalk heating system which will be allowed to be installed in a sidewalk constructed in city right-of-way shall be glycol circulated in PVC piping installed when the concrete sidewalk is poured, unless an alternate system is approved by the city engineer. The owner or occupant of the abutting property shall be allowed to place flush mounted monuments in the sidewalk surface indicating the presence of a heated sidewalk heating system, and advising who should be contacted if the sidewalk will be disturbed by construction or excavation activities.

(d) It is the responsibility of the owner of the heated sidewalk (owner) to repair any and all damage to the heated sidewalk resulting from work done by a contractor working within the city right-of-way with an excavation permit (contractor). The contractor is responsible for the cost to repair the sidewalk as per city specifications. The owner, or a representative thereof, must complete repairs to the heated sidewalk system within the time period outlined in the contractor's excavation permit. If the heated sidewalk repairs are not completed within the specified time frame and time extension arrangements have not been made between the owner and the contractor, the contractor may replace the sidewalk without repairing the heated sidewalk system.
(O.14,463)

Secs. 102-96—102-120. Reserved.

DIVISION 3. SNOW AND ICE REMOVAL

Sec. 102-121. Intent of division.

It is the intent of this division to provide for certain procedures relative to removal of snow and ice from sidewalks and private property and for certain penalties for failure to comply with this division.
(C85, § 23-164.04; O.10,949; C91, § 23-164.04; O.14,386)

Sec. 102-122. Enforcement.

The director of public works or his or her designated representative or any police officer shall enforce this division.
(C85, § 23-164.05; O.10,949; C91, § 23-164.05)

Sec. 102-123. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Hearing officer means the city manager or designated representative.

Person means and includes an individual or group or association of individuals; a firm or any member thereof; a corporation or any executive officer, manager, person in charge or employee thereof; and the use of a pronoun specifying one gender shall include both genders.

Owner means the record title holder or the contract purchaser, if any. Where the city holds title to real estate, which by operation of state law is under the charge and supervision or management and control of an independent board, utility, or enterprise, such board, utility or enterprises shall be considered the owner of the real estate.

Snow season means the period beginning October 15 and ending April 15.
(C85, § 23-164.06; O.10,949; C91, § 23-2.02; O.13,000; C91, § 23-164.06; O.13,943)
Cross reference—Definitions generally, § 1-2.

Sec. 102-124. Obligation of owner or person in possession of real estate to remove snow or ice from a public sidewalk.

(a) The owner or tenant or lessee of any real estate abutting a public sidewalk shall remove snow and ice from the sidewalk within a reasonable time but in no case more than 48 hours following the cessation of the weather event by which such snow or ice was deposited; provided, however, that in extraordinary weather circumstances the director of public works or his or her designated representative may provide additional time for removal under this section.

(b) In any proceedings charging a violation of this section, proof that the particular violation described constitutes a violation of this section, together with proof that the particular violator was the owner, agent, tenant, or lessee of the residential dwelling, commercial establishment and/or real estate upon which the violation occurred, shall be deemed to create a rebuttal presumption that such violator was the party violating this section.

(c) The owners or tenants or lessees of the abutting real estate upon which a violation of this division is found shall be jointly and severally responsible for compliance with this division

and jointly and severally liable for any fines or administrative penalties or assessments imposed under this division.

(d) The owner or tenants or lessee of any real estate abutting a multi-use recreational trail which also serves as a public sidewalk bordering a public street shall only be required to remove snow or ice for a width of four feet upon such public sidewalk.

(e) When ice has formed upon any public sidewalk so that it cannot be reasonably removed, the owner or tenant or lessee of the abutting real estate shall within 48 hours following the cessation of the weather event by which such ice was deposited, keep such ice sprinkled with sand or deicing chemicals in such manner as to provide traction and prevent the sidewalk from being dangerous to persons using the sidewalk. Nothing in this section shall be construed to be a substitute for the removal of ice, as required in subsection (a) of this section. This subsection shall only apply when ice cannot be reasonably removed; however, all accumulations of ice shall be removed as soon as practical.
(C42, § 90-1; O.5363; C54, C62, § 54-185; C75, C79, C85, § 23-165; O.10,949, 11,583; C91, § 23-165; O.13,943, 14,164, 14,386)

Sec. 102-125. Reserved.

Editor's note—Ord. No. 14,386, § 1, adopted Nov. 8, 2004, repealed § 102-125, which pertained to treatment of unremovable ice and derived from Code 1942, § 90-9; Ord. No. 5363; Code 1954; Code 1962, § 54-193; Code 1975; Code 1979, § 23-174; Code 1985, § 23-166; Ord. No. 10,949; Ord. No. 11,583; Code 1991, § 23-166; and Ord. No. 13,943.

Sec. 102-126. Deposit on public property.

(a) No person shall remove or cause to be removed snow or ice from private property and deposit such snow or ice or cause the snow or ice to be deposited upon any public right-of-way, street, avenue, alley, public square or other city property within the city.

(b) No person shall remove or cause to be removed snow or ice from a public sidewalk or from a driveway approach in the public right-of-way and deposit or cause to be deposited such snow or ice upon the traveled portion of any public right-of-way, street, avenue, alley, public square or other city property within the city.

(c) Nothing in this section shall prohibit the removal of snow or ice from a public sidewalk or from a driveway approach in the public right-of-way, and the deposit of such snow or ice on the public border area abutting such sidewalk or driveway.

(d) In any proceedings charging a violation of this section, proof that the particular violation described constitutes a violation of this section, together with proof that the violator was the owner, agent, tenant or lessee of the residential dwelling, commercial establishment and/or real estate from which the snow or ice was removed, shall be deemed to create a rebuttable presumption that such violator was the party violating this section.
(C85, § 23-167; O.11,048, 11,583; C91, § 23-167; O.13,943, 14,386)

Sec. 102-126.05. Administrative penalties—Notice of violations.

(a) The director of public works or his or her designated representative or any police officer is authorized to impose an administrative penalty upon any owner or tenant or lessee of any real estate who fails to remove snow or ice from the abutting sidewalks or multi-use trails as required by this division or upon any person who removes or deposits, or causes to be removed and deposited snow or ice in violation of this division. The administrative penalty for such violations shall be as provided in the schedule of administrative penalties adopted by the city council by resolution.

(b) Penalties shall be paid in full within 30 days of the issuance of the notice.

(c) Notice of violation, with the applicable penalty for such violation noted thereon, shall be issued to the violator by the director of public works or his or her designated representative or any police officer. Service of the notice may be by regular mail or delivery in person. Such notice shall include:

(1) A statement that the violator has a right to an administrative hearing regarding the violation;

(2) A statement that the violator may file a written request for hearing as set forth in section 102-126.07. The request of hearing shall stay payment of the administrative penalty until the hearing is decided. If issuance of the notice of violation is upheld, the violator shall have 30 days from issuance of the hearing decision to pay the administrative penalty.

(O.14,386)

Sec. 102-126.07. Administrative hearing.

(a) A person to whom a notice of administrative penalty has been issued for violation of sections 102-21, 102-124 and/or 102-126 may request an administrative hearing for review of the finding that a violation occurred pursuant to and in conformance with chapter 3 of this Code.

(b) A request for hearing on a notice of administrative penalty shall be made in writing and filed with the city clerk within ten calendar days of the date of issuance of the notice. Such request shall include the address of the violator and state the basis for the appeal.

(O.14,386, 15,408, 15,775, 15,809, 16,478)

Sec. 102-127. Reserved.

Editor's note—Ord. No. 15,608, § 1, adopted Sept. 11, 2017, repealed § 102-127, which pertained to municipal infractions and derived from Code 1985, § 23-168; Ord. No. 10,949; Ord. No. 11,583; Code 1991, § 23-168; Ord. No. 13,943; Ord. No. 14,386.

Sec. 102-128. Right of city to seek alternative relief.

The city is not precluded from seeking alternative relief from the court, including an order for abatement or injunctive relief, in the event that the city issues an administrative penalty, a notice of violation, and/or files a municipal infraction for the same violation of this chapter.

(C85, § 23-169; O.10,949; C91, § 23-169; O.13,943, 14,386, 15,775)

Sec. 102-129. Removal by city of snow or ice.

(a) Whenever snow or ice shall have remained on any sidewalk in violation of section 102-124 of this division, the city may cause such snow or ice to be removed, after providing the owner of the abutting real property with notice of the need to remove such snow or ice and that if not removed the city will cause such removal and will assess the costs for such removal. Service of the notice shall be by posting at the property, or by regular or certified mail, addressed to the owner of the abutting real estate. The notice shall provide at least 24 hours to remove the snow or ice prior to the city's removal. Provided, however, that the city may cause such removal without prior notice in the event that an emergency is declared by the director of public works or his or her designated representative.

(b) Whenever snow or ice shall be removed from private property and deposited upon any public right-of-way, street, avenue, alley, public square or other city property in violation of section 102-126 of this division, the city may cause such snow or ice to be removed, after providing the person who removed and deposited or caused to be deposited such snow or ice with notice of the need to remove such snow or ice and that if not removed the city will cause such removal and will assess the costs for such removal. Service of the notice shall be by posting at the property, or by regular or certified mail, addressed to the owner of the abutting real estate. The notice shall provide at least 24 hours to remove the snow or ice prior to the city's removal. Provided, however, that the city may cause such removal without prior notice in the event that an emergency is declared by the director of public works or his or her designated representative.

(C42, § 90-2; O.5363; C54, C62, § 54-186; C75, C79, § 23-167; C85, § 23-170; O.10,949, 11,048, 11,583; C91, § 23-170; O.14,386)

Sec. 102-130. Right to assess costs of removal by city.

(a) When the city removes snow or ice under section 102-129 of this division, the city may assess the actual cost of removing such snow from the real estate abutting the sidewalk found to be in violation of section 102-124 of this division pursuant to sections 102-129 through 102-136 of this division, in addition to taking any other action provided for in this division.

(b) When the city removes snow or ice under section 102-129 of this division, the city may assess the actual cost of removing such snow from the real estate of the person who removed and deposited or caused to be deposited such snow or ice found to be in violation of section 102-126 of this division pursuant to sections 102-129 through 102-136 of this division, in addition to taking any other action provided for in this division.
(C85, § 23-170.01; O.10,949, 11,583; C91, § 23-170.01; O.13,943, 14,386)

Sec. 102-131. Assessment of costs of removal by city.

(a) The actual cost of removing snow or ice from the sidewalks in violation of section 102-124 of this division shall be paid by the owner of the real estate abutting the sidewalk and shall be assessed against such real estate.

(b) The actual cost of removing snow or ice from the sidewalks in violation of section 102-126 of this division shall be paid by the person who removed and deposited or caused to be deposited such snow or ice the real estate abutting the sidewalk and shall be assessed against the real estate owned by such person.
(C42, § 90-3; O.5363; C54, C62, § 54-187; C75, C79, § 23-168; C85, § 23-170.02; O.10,949; C91, § 23-170.02; O.13,943, 14,386)

Sec. 102-132. Notice of right to hearing regarding assessments.

(a) When the city removes snow or ice pursuant to section 102-129, a notice shall be given of the right to a hearing regarding costs of the removal. The notice shall contain the following information:

(1) A description, to the extent possible, of the violation of section 102-124 or 102-126;

(2) A description of the location where snow or ice was removed;

(3) An indication of the date and time that the city caused the removal, and that the costs of the removal will be assessed against the real estate abutting the sidewalk from which the removal occurred, or against the real estate owned by the person removing or depositing such snow or ice or causing such deposit, for collection in the same manner as a property tax, or to be collected as a personal judgment;

(4) An itemization of the costs incurred by the city in the removal of the snow or ice;

(5) That the person notified, or the person's duly authorized agent, may file a written request for hearing as set forth in this division; and

(6) That failure to make a written request for a hearing within ten calendar days of receipt of the notice shall be considered a waiver of the right to a hearing and it will be thereafter conclusively presumed that the violation and removal occurred and costs will be assessed against the abutting real estate without further notice.

(b) Service of the notice provided for in subsection (a) hereof shall be by regular mail and certified mail, addressed to the owner of the real estate abutting the sidewalk upon which the violation occurred for violations under sections 102-124 or 102-126.
(O.13,943, 14,386, 15,408)

Editor's note—Ord. No. 13,943, § 1, adopted May 7, 2001, repealed the former § 102-132 and enacted a new section as set out herein. The former § 102-132 pertained to schedule of assessments for removal by city and derived from Code 1942, § 90-4; Ord. No. 5363; Code 1954 and Code 1962, § 54-188; Code 1975 and Code 1979, § 23-169; Code 1985, § 23-170.03; Ord. No. 10,949; Ord. No. 11,048; Ord. No. 11,583; and Code 1991, § 23-170.03.

Sec. 102-133. Administrative hearing for assessment of costs for removal of snow or ice.

(a) Any person in receipt of a notice of right to hearing regarding assessment for removal of snow or ice by the city may have, upon request, an appeal hearing with a hearing officer to determine if the assessment shall be placed against the subject real estate.

(b) A request for hearing shall be made in writing and filed with the city clerk within ten calendar days of the receipt of the notice.

(c) Each request for hearing shall contain the address of the person requesting the hearing and to which all further notices shall be mailed or served and shall state the basis for the appeal.

(d) The hearing shall be held pursuant to and in conformance with chapter 3 of this Code.
(O.13,943, 14,386, 15,408)

Editor's note—Ord. No. 13,943, § 1, adopted May 7, 2001, repealed the former § 102-133 and enacted a new section as set out herein. The former § 102-132 pertained to notice for filing objections to schedule of assessment and derived from Code 1942, § 90-5; Ord. No. 5363; Code 1954 and Code 1962, § 54-189; Code 1975 and Code 1979, § 23-170; Code 1985, § 23-170.04; Ord. No. 10,949; and Code 1991, § 23-170.04.

Sec. 102-134. Reserved.

Editor's note—Ord. No. 13,943, § 1, adopted May 7, 2001, repealed § 102-133 which pertained to adoption of assessment schedule and derived from Code 1942, § 90-6; Ord. No. 5363; Code 1954 and Code 1962, § 54-190; Code 1975, Code 1979, and Code 1991, § 23-171.

Sec. 102-135. Certification of assessments for collection.

Upon adoption by the city council, the schedule of assessments for the removal of snow and ice from sidewalks and the resolution approving such shall be certified by the city clerk to the county auditor for collection in the manner provided by law.
(C42, § 90-7; O.5363; C54, C62, § 54-191; C75, C79, C91, § 23-172)

Sec. 102-136. Allocation of cost.

The cost of removing snow or ice from sidewalks, any public right-of-way, street, avenue, alley, public square or other city property shall be paid from the proper fund and when collected shall be credited to that fund.
(C42, § 90-8; O.5363; C54, C62, § 54-192; C75, C79, C91, § 23-173; O.14,386)

Secs. 102-137—102-165. Reserved.

ARTICLE III. STREETS AND ALLEYS

DIVISION 1. GENERALLY

Secs. 102-166—102-190. Reserved.

DIVISION 2. ACCEPTANCE

Sec. 102-191. Conform to specifications.

No street or alley which shall be dedicated to public use by any proprietor of ground in the city shall be deemed a public street or alley or under the use or control of the city council nor shall such streets or alleys be in any manner bladed, improved or repaired unless the streets or alleys shall conform to the regular width of the streets or alleys designated by the city council, after recommendation by the community development director or the city plan and zoning commission as applicable pursuant to chapter 135 of this Code, for that area and unless such streets or alleys shall first be brought to such grade as shall be recommended by the city engineer and adopted by the city council. No street or alley dedicated to public use shall be deemed a public street or alley nor under the use or control of the city council, unless it has been accepted by resolution of the city council or by adoption by the city council of an acknowledged plat containing the street or alley.
(C42, § 81-1; C54, C62, § 54-219; C75, C79, C91, § 23-206; O.15,819)

Sec. 102-192. Improvement.

No city officer, employee or agent shall perform or order performed any improvement, work, repair or grading done upon any street or alley dedicated to the city if its cost shall be payable out of city funds, unless the street or alley has been accepted and confirmed as provided by section 102-191 of this division.
(C42, § 81-2; C54, C62, § 54-220; C75, C79, C85, § 23-207; O.11,583; C91, § 23-207)

Secs. 102-193—102-220. Reserved.

DIVISION 3. NAMING OF STREETS

Sec. 102-221. Division lines.

There are hereby established, for the purpose of naming the city streets, division lines as follows:

(1) *Line A.* A line beginning at the intersection of the centerline of Vine Street with the middle of the channel of the Des Moines River, thence westerly along the centerline of Vine Street and the westerly projection of the centerline of Vine Street to the north right-of-way line of C., R.I. & P. Railway, thence westerly along the north right-of-way line of the C., R.I. & P. Railway to the centerline of the Fleur Drive bridge over the Raccoon River, thence southwesterly along the centerline of the Fleur Drive bridge and the centerline of Fleur Drive to the centerline of West Martin Luther King, Jr. Parkway; thence west along the centerline of West Martin Luther King, Jr. Parkway to the centerline of Martin Luther King, Jr. Parkway, thence northerly along the centerline of Martin Luther King, Jr. Parkway to the north right-of-way line of C., R.I. & P. Railway, thence westerly along the north right-of-way line of the C. R.I. and P. Railway to the intersection with the east and west centerline of section 7-78-24, thence west along the centerline of section 7-78-24 and sections 12 and 11, township 78, range 25, to the west city limits, designated as and called line A.

(2) *Line B.* A line beginning at the intersection of East Vine Street with the Des Moines River, thence easterly along the centerline of East Vine Street and along the westerly projection of the centerline of East Vine Street to the intersection with the north track of the C., R.I. & P. Railway main line to the intersection with the westerly projection of the centerline of East Court Avenue at East Twentieth Street, thence east along the centerline of East Court Avenue and the westerly projected centerline of East Court Avenue to the west line of Laurel Hill Cemetery, thence eastward to the city limits on a line parallel to the centerline of sections 5 and 6, township 78, range 23, designated as and called line B.

(3) *Line C.* A line beginning at a point in the channel of the Des Moines River, which is on a line connecting the centerline of Vine Street west of the Des Moines River and the centerline of East Vine Street east of the Des Moines River, thence following the middle of the channel of the Des Moines River in a northerly and westerly direction to where it intersects with the southerly projection of the centerline of First Street south of Guthrie Avenue, thence north along the southerly projected centerline of First Street and the centerline of First Street to the intersection of the centerline of Sheridan Avenue, thence east along the centerline of East Sheridan Avenue to the southerly extension of the centerline of First Street north of East Sheridan Avenue, thence north along the centerline of First Street and north along the northerly projected centerline of First Street from Euclid Avenue to Douglas Avenue, thence north along the centerline of First Street to the north city limits, designated as and called line C.

(4) *Line D.* A line beginning at a point in the channel of the Des Moines River, which is on a line connecting the centerline of Vine Street west of the Des Moines River and the centerline of East Vine Street east of the Des Moines River, thence following the middle of the channel of the Des Moines River in a southerly direction to a point which is the intersection of the

channel of the Des Moines River and the centerline of South Union Street projected in a northerly direction to the channel, thence southerly along the projected centerline of South Union Street and the centerline of South Union Street and along the southerly projected centerline of South Union Street to intersect with the centerline of Indianola Avenue, thence southerly in a straight line to the intersection of the centerline of Hartford Avenue and the centerline of South Union Street, thence south along the centerline of South Union Street and the projected centerline of South Union Street to the south city limits, designated as and called line D.

(C42, § 86-10; C54, C62, § 54-144; C75, C79, § 23-122; O.10,651; C91, § 23-122; O.14,397)

Sec. 102-222. Southwest.

(a) *Numerical streets.* All numerically named streets south of line A and west of line D shall have the word "southwest" as a part of the name thereof, preceding the number.

(b) *Named streets.* All named streets south of line A and west of line D shall have the word "southwest" as a part of the name thereof, if it is determined by the city council that there is a lack of continuity with existing east/west streets because of a major barrier, such as the airport.

(C42, § 86-11; C54, C62, § 54-145; C75, C79, C85, § 23-123; O.11,290; C91, § 23-123)

Sec. 102-223. Southeast.

All numerically named streets south of line B and east of line D shall have the word "southeast" as a part of the name thereof, preceding the number.

(C42, § 86-12; C54, C62, § 54-146; C75, C79, C91, § 23-124)

Sec. 102-224. East.

(a) *Numerical streets.* All numerically named streets north of line B and east of line C shall have the word "east" as a part of the name thereof, preceding the number.

(b) *Named streets.* All named streets east of lines C and D, having names identical with streets west of such lines except for the provision made in this division, shall have the word "east" as a part of the name thereof, preceding the name.

(C42, §§ 86-13, 86-14; C54, C62, §§ 54-147, 54-148; C75, C79, C91, § 23-125)

Sec. 102-225. Place and court.

All streets west of lines C and D, between and extending parallel to streets bearing consecutive numbers, shall take the number of the street having the lower consecutive number, to which shall be added the word "place." All such streets east of lines C and D shall have the word "court" added to the number thereof.

(C42, § 86-15; C54, C62, § 54-149; C75, C79, C91, § 23-126)

Sec. 102-226. Existing streets not affected.

It is not the intent and purpose under sections 102-221 to 102-225, inclusive, of this division to change the names of streets named by the city council, and all streets so named are not affected by the terms of such sections.

(C42, § 86-16; C54, C62, § 54-150; C75, C79, C85, § 23-127; O.11,583; C91, § 23-127)

Sec. 102-227. Placing and maintaining signs at corners of blocks.

Numbers or signs bearing the names of the traveled streets of the city so as to be easily legible to persons passing along the streets shall be placed and maintained by the department of engineering at the corners of blocks.

(C42, § 86-17; C54, C62, § 54-151; C75, C79, C91, § 23-128)

Secs. 102-228—102-255. Reserved.

DIVISION 4. TEMPORARY CLOSING

Sec. 102-256. Required for construction or repair.

Whenever any portion of any city street, highway, avenue or alley shall be in the process of construction or repair, the department of engineer-

ing, in cooperation with the department of public works and upon receiving appropriate clearance from police and fire personnel, may cause the roadway along it or such portion thereof as may, in the judgment of the department of engineering be deemed advisable, to be closed against public travel and use. No such street, highway, avenue or alley shall be closed for more than 60 days at any one time nor for a longer time than shall be necessary for the proper completion, seasoning and hardening of paving, unless otherwise provided by resolution of the city council. Access along one side of that street, highway, avenue or alley shall be kept open for use by pedestrians to the maximum extent practical.
(C42, § 91-9; C54, C62, § 54-230; C75, C79, § 23-231; O.10,649; C85, § 23-231; O.11,535; C91, § 23-231)

Sec. 102-257. Signs, barricades and other traffic control devices.

Whenever the department of engineering shall order any portion of any street, highway, avenue or alley to be closed for construction or repair, it shall cause proper warning signs, barricades and other traffic control devices to be placed and maintained until the proper completion of the repairs along the portion of the street so closed. The signs, barricades and any other traffic control devices so placed shall meet the requirements of the latest adopted edition of the Iowa Manual on Uniform Traffic Control Devices, including lighting devices and reflectorization or illumination for use during the hours of darkness.
(C42, § 91-2; C54, C62, § 54-231; C75, C79, C85, § 23-232; O.11,535; C91, § 23-232)

Sec. 102-258. Duties of contractors.

Any contractor engaged in construction or repairs of streets shall erect and maintain at his or her own expense warning signs, barricades and other traffic control devices as provided in section 102-257 of this division. In addition, whenever so ordered by the department of engineering, the contractor shall also keep upon such work a guard during hours that shall be prescribed. The guard shall be charged with the duty of properly guarding and protecting the signs, barricades and other devices erected as provided in this section. The guard shall have the powers of a police officer for the proper enforcement of this division. Upon failure of any contractor to maintain signs, barricades, other traffic control devices or a guard as provided in this section, the department of engineering shall cause such to be done. All costs of the work and materials, including the guard's compensation, shall then be charged to the contractor and deducted from the amount payable under the contract.
(C42, § 91-3; C54, C62, § 54-232; C75, C79, § 23-233; O.10,649; C85, § 23-233; O.11,535; C91, § 23-233)

Sec. 102-259. Driving vehicles or animals over closed streets.

Whenever any portion of any street, highway, avenue or alley shall be closed by order of the department of engineering, as provided in this division, no person shall drive any vehicle or livestock over the portion of such street, highway, avenue, or alley so closed or remove, disturb or interfere with any sign, barricade, guard or other traffic control device along the street, highway, avenue, or alley. Violation of this division shall be a misdemeanor as provided in section 1-15 of this Code.
(C42, § 91-4; C54, C62, § 54-233; C75, C79, C85, § 23-234; O.11,535; C91, § 23-234)

Sec. 102-260. Notice posted on portion of closed street.

Whenever the department of engineering shall cause any portion of any street, highway, avenue or alley to be closed, as provided in this division, it shall cause to be conspicuously posted upon each end of the portion of street, highway, avenue or alley so closed and upon intersecting streets, highways, avenues or alleys proper signs stating that such street or portion thereof is closed to public travel.
(C42, § 91-5; C54, C62, § 54-234; C75, C79, C85, § 23-235; O.11,535; C91, § 23-235)

Secs. 102-261—102-285. Reserved.

DIVISION 5. VACATION AND CONVEYANCE

Sec. 102-286. Procedures.

(a) *Application.* Any person holding an interest in real estate may file an application with the community development department for the vacation or vacation and conveyance of any street or alley adjoining such real estate. The application shall contain the following:

(1) The name, address and telephone number of the applicant and the legal description, if known by the applicant, of the real estate owned by the applicant adjacent to the street or alley sought to be vacated.

(2) A description of the street, alley, or portion thereof sought to be vacated.

(3) Proof of payment to the city treasurer of the required fee for an application to vacate a street or alley.

(4) A consent to the proposed vacation on a form acceptable to the legal department signed by all owners of land adjoining the portion of street or alley sought to be vacated. However, such consents are not needed if the street or alley is not open and in regular use.

(5) The interest, if any, in the vacated right-of-way sought to be conveyed to the owners of the adjoining property.

(b) *Investigation and recommendation.* The plan and zoning commission shall make a timely report and recommendation to the city council regarding such application. In preparing its report and recommendation the commission may hold a public hearing thereon. However, if the right-of-way sought to be vacated is for use as a sidewalk cafe in conformance with the adopted Design Standards for Sidewalk Cafes, or is otherwise determined by the city traffic engineer to have no significant impact upon the public use of the right-of-way, the city manager may instead present a staff report and recommendation to the city council without review by the commission

(c) *Initial determination.* Upon receipt of the report and recommendation of the plan and zoning commission or city manager, the city council shall determine if the city is interested in pursuing the proposed vacation. No further action shall be taken under this section if the council determines that the city is not interested in pursuing the proposed vacation.

(d) *Documentation.* Upon instruction by the city council, the city staff shall prepare the necessary documents and proposed legislation to complete the vacation, or vacation and conveyance as appropriate.

(e) *Final action.* Upon completion of the necessary documents and proposed legislation and receipt of the estimated publication and recording expense as determined by the city clerk, the proposed vacation, or vacation and conveyance shall be presented to the city council for its consideration. The council shall consider the matter at a public hearing as provided by law. Upon a finding that there is no public need for the right-of-way, the council may approve the vacation or vacation and conveyance of the right-of-way subject to such conditions and reservations as the council deems to be in the public interest.

(f) *Fee.* The required fee for a petition to vacate a street or alley shall be in the amount set in the schedule of fees adopted by the city council by resolution. The required fee and the publication costs collected pursuant to paragraph (e), above, shall not be refundable. If the proposed vacation is rejected by the city council, the recording expense deposited by the applicant shall be refunded. Such fees and costs are in addition to the purchase price set for such conveyance in accordance with city policies.
(O.14,574)

Editor's note—Ord. No. 14,574, § 1, adopted July 10, 2006, repealed the former § 102-286, and enacted a new § 102-286 as set out herein. The former § 102-286 pertained to similar subject matter and derived from Code 1991, § 23-246; Ord. No. 11,897.

Sec. 102-287. Reserved.

Editor's note—Ord. No. 14,574, § 1, adopted July 10, 2006, repealed § 102-287, which pertained to sale of vacated residential streets and alleys and derived from Code 1991, § 23-247; Ord. No. 11,897.

Secs. 102-288—102-315. Reserved.

ARTICLE IV. SKYWALKS*

Sec. 102-316. Title.

This article shall be known and may be cited and referred to as the "skywalk ordinance" of the city.
(C79, § 23-236; O.9781; C91, § 23-236)

Sec. 102-317. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Nodal area means an area in the skywalk system where a pedestrian has the choice of two or more paths of travel, such as the intersection of two or more skywalk corridors, the intersection of one or more skywalk corridors and one or more vertical access facilities, or the connection of a skywalk bridge to a non-endpoint of a skywalk corridor. The primary public purpose of a nodal area is to provide sufficient area for pedestrians from different pathways to change paths and to use and enjoy aesthetic and functional amenities that enhance the skywalk system. Therefore, a nodal area should be of greater dimension than the intersecting pathways. Each nodal area which exceeds the area of the skywalk corridors included in it shall be deemed dedicated to such public purpose if an easement therefor is offered to the city and accepted by the city council.

Skywalk bridge means a skywalk-level bridge from building or structure face to building or structure face which spans one and only one street or alley and which continues the skywalk system pathway in a direction perpendicular or nearly perpendicular to the face of the building or structure to which it attaches. The primary public purpose of a skywalk bridge is to permit public pedestrian travel at the skywalk level across open spaces, such as streets, sidewalks, alleys and land where a building is set back from the public right-of-way. Each skywalk bridge shall be deemed dedicated to such public purpose upon passage of a resolution so stating by the city council.

Skywalk corridor means a skywalk-level pathway of the skywalk system which is within, along or on top of a building or is part of a separate structure over private property and whose termini are skywalk bridges, other skywalk corridors or an opening in a building through which the skywalk corridor connects to an adjacent building. The primary public purpose of a skywalk corridor is the accommodation of public pedestrian travel from point to point at or near the second story level. Each skywalk corridor shall be deemed dedicated to such public purpose upon the acceptance of an easement for such corridor by the city council.

Skywalk system means the planned skywalk system shown on the skywalk system plan map and includes skywalk corridors, nodal points within public easements, skywalk bridges and vertical access facilities planned, at any given time, for inclusion in the skywalk system, as well as those already included in the system.

Vertical access facility means a pathway for pedestrians to move between the skywalk level skywalk corridors and the ground level public sidewalk and consists of an escalator, stairs, elevator or other means of vertical transfer or a combination thereof, as well as the pathways between a skywalk corridor and the skywalk level access to the means of vertical transfer and the pathway between the ground level access to the means of vertical transfer and the public sidewalk. The primary public purpose of a vertical access facility is to allow pedestrians to move between the skywalk level and ground level sidewalk systems. Each vertical access facility shall be deemed a part of the skywalk system upon the acceptance of its designation as such by the city council. However, each vertical access facility shall remain under the control of those with interests in the property on which it is located.
(C79, § 23-239; O.9781; C91, § 23-239; O.13,281)

*__Cross reference—__Skywalk system, § 26-221 et seq.

__Cross reference—__Definitions generally, § 1-2.

Sec. 102-318. Purposes and policy.

The city finds and declares that it is the responsibility of the city to coordinate and integrate the development of the transportation system for downtown, including streets, parking facilities and accommodations, sidewalks, skywalks, bus stops and taxi stops, related street signs, traffic control devices, markings and regulations and other related structures and facilities, and further finds and declares that the development of a skywalk-level sidewalk system (to be known as the skywalk system) in the skywalk district, as an integral part of the transportation system, is a benefit to the public in that it (i) enables pedestrians with or without physical disabilities to move in an enclosed second story skywalk system protected from adverse weather and vehicles, (ii) reduces pedestrian-vehicle conflicts at the street level, (iii) encourages a more efficient use of public parking facilities, (iv) promotes increased and more efficient pedestrian travel within the downtown, (v) encourages shopping and economic growth in the urban renewal area and other adjacent portions of the downtown area by inducing redevelopment, remodeling and more intensive retail, commercial and residential use, thereby increasing employment opportunities and increasing the tax base for the city and other taxing jurisdictions, and (vi) provides an opportunity for aesthetic improvements, particularly at nodal areas of the skywalk system. Therefore, it is the policy of the city to participate in developing the public skywalk system shown on the skywalk system plan map by constructing the skywalk bridges across the public rights-of-way and by obtaining easements for skywalk corridors and nodal points under the provisions and within the limitations of this article.
(C79, § 27-237; O.9781; C91, § 23-237; O.15,000)

Sec. 102-319. Skywalk district and skywalk map.

(a) The skywalk district is the area enclosed by the following described boundary:

The west bank of the Des Moines River from the north line of Grand Avenue to the south line of Court Avenue; the south line of Court Avenue from the west bank of the Des Moines River to the west line of Fifth Avenue; the west line of Fifth Avenue from the south line of Court Avenue to the north line of Cherry Street; the north line of Cherry Street from the west line of Fifth Avenue to the west line of Thirteenth Street; the west line of Thirteenth Street from the north line of Cherry Street to the north line of Walnut Street; the north line of Walnut Street from the west line of Thirteenth Street to the west line of Sixteenth Street; the west line of Sixteenth Street from the north line of Walnut Street to the south line of Locust Street; the south line of Locust Street from the west line of Sixteenth Street to the east line of vacated Eleventh Street; the east line of vacated Eleventh Street from the south line of Locust Street to the north line of Grand Avenue; the north line of Grand Avenue from the east line of 11th Street to the east line of 12th Street; the east line of 12th Street from the north line of Grand Avenue to the south line of relocated High Street; the south line of relocated High Street from the east line of 12th Street to the west line of 6th Avenue; the west line of 6th Avenue from the south line of High Street to the north line of Center Street; the north line of Center Street from the west line of 6th Avenue to the west line of 7th Street; the west line of 7th Street from the north line of Center Street to the north line of Crocker Street; the north line of Crocker Street from the west line of Seventh Street to the east line of relocated Third Street; the east line of relocated Third Street from the north line of Crocker Street to the north line of Watson Powell, Jr. Way; the north line of Watson Powell, Jr. Way from the east line of Third Street to the east line of Second Avenue; the east line of Second Avenue from the north line of Watson Powell, Jr. Way to the north line of Grand Avenue; and the north line of Grand Avenue from the east line of Second Avenue to the west bank of the Des Moines River.

(b) The planned skywalk system shall be shown on the skywalk system plan map. The skywalk system plan map shows the general location of each part of and appurtenance to the entire planned skywalk system to within a distance of one-quarter of the length of the block on either

side of its indicated location. Where a planned skywalk corridor is shown on the map over the length of an alley, it indicates that the skywalk corridor will be located within a building on property on either side of the alley or, if the city vacates or leases the air rights over the alley, it may be located within a building extending into such air space. Wherever it is located, and unless otherwise agreed by all property interests affected, property interests on both sides of the alley shall have the right to connect to a skywalk corridor:

(1) By paying the cost of connection; and

(2) If the skywalk corridor is in or over an alley,

a. Either by obtaining waivers from all affected property interests abutting such alley skywalk corridor of any claims against the city for loss of access, air, light or view occasioned by construction of such skywalk corridors, or by agreeing to indemnify, defend and hold harmless the city from any claims against the city for loss of access, air, light or view to result from such construction;

b. By paying a pro rata share of the costs for support of such skywalk corridor on the side of the alley on which such property interest is located, which pro rata share is two times the pro rata share fraction set forth in subsection (b)(2)c of this section; and

c. By paying a pro rata share of the cost of construction and operation, maintenance and repair of that skywalk corridor. The pro rata share for each property abutting such alley skywalk corridor and connected to the skywalk system shall be a fraction whose numerator is the lineal frontage of such property adjacent to such alley skywalk corridor and whose denominator is the product of two multiplied by the total lineal frontage of all property having access to the skywalk system and abutting such alley skywalk corridor on the same side of such alley as the property whose pro rata share is being calculated. However, if a property interest on either side of such skywalk corridor agrees in an approved skywalk agreement to provide an equivalent skywalk corridor within its building by the same deadline for which such skywalk corridor otherwise must be constructed over the alley before (i) the city enters a skywalk agreement which requires present construction of such alley skywalk corridor and (ii) a property interest has entered a construction contract for such skywalk corridor, then any obligation to construct such portion of alley skywalk corridor shall terminate, and such property interest providing the equivalent skywalk corridor shall not be obligated for any costs for any skywalk corridor actually constructed over such alley, and those constructing such alley corridor shall bear the entire costs thereof.

(c) The skywalk system plan map shall not be amended to relocate any such skywalk corridor or skywalk bridge a distance of more than one-quarter of the length of the block from the location shown thereon, unless all property interests who would have had the right of connection as a consequence of the prior location consent to such relocation and to an acceptable alternative plan for providing such property interests access to the relocated portion of the skywalk system without any additional cost to the city.

(d) The exact location of existing portions of the skywalk system shall be shown on the official skywalk map.

(e) All the notations, references and other matters shown on the skywalk system plan map and on the official skywalk map at the time each is adopted by the city council are incorporated in and made a part of that map.

(f) The skywalk system plan map and the official skywalk map shall each be on file in the office of the city clerk and shall bear the signature of the mayor, attested by the city clerk, under the certification that the document is the map referred to in this section.

(g) The city council may from time to time adopt and place on file a new skywalk system plan map or a new official skywalk map which shall supersede the prior version of such map.

(h) If, in accordance with this article, changes are made in the skywalk system or other matters portrayed on the skywalk system plan map or on the official skywalk map, the respective map shall be appropriately changed and the ordinance or resolution number and date of the change shall be recorded by the city clerk on the affected map.

(i) The skywalk system plan map shall only be amended by ordinance. The official skywalk map shall be deemed amended by each resolution accepting an easement for a skywalk corridor or accepting completed construction of a skywalk bridge and may be amended otherwise by resolution.
(C79, § 23-238; O.9781, 10,043, 10,438; C91, § 23-238; O.13,970, 14,564, 14,565, 15,006, 15,464)

Sec. 102-320. Skywalk committee/urban design review board.

(a) The powers and duties formerly held by the skywalk commission under this Code have been transferred to the urban design review board created by section 82-336 and to the skywalk committee created below.

(b) The urban design review board and the skywalk committee are hereby designated as the successors to the skywalk commission. The urban design review board shall have all those advisory duties and responsibilities not constituting the exercise of some portion of the power of the city, formerly held by the skywalk commission under the various skywalk agreements between the city and the owners, tenants and occupants of property within the skywalk system. The skywalk committee shall have all those powers and duties constituting the exercise of some portion of the power of the city, formerly held by the skywalk commission under the various skywalk agreements between the city and the owners, tenants and occupants of property within the skywalk system.

(c) A five member skywalk committee is hereby created. The membership of the skywalk committee shall consist of two members nominated by the urban design review board from its members, and three members nominated by the Des Moines Skywalk Association. The three members nominated by the association shall consist of an ownership representative who shall be an owner of an interest in property containing a skywalk corridor, or an officer of a business which owns such property; a tenant representative who shall be an owner of an interest in a business which leases property containing a skywalk corridor, or an officer of such a business; and an Association representative who serves on the governing board of the association. All such nominations shall be subject to approval by the city council. In the event that any nomination is rejected by the city council or not approved within 60 days of receipt by the city clerk, the nominating body shall promptly proceed with nominating a qualified alternate candidate.

(d) The term of the two members of the skywalk committee who are members of the urban design review board shall terminate concurrent with the termination of their term on the board. The term of all other members shall be three years. Any of the three members nominated by the Des Moines Skywalk Association who cease to hold the qualifications for appointment to the seat they hold on the skywalk committee shall automatically cease to be a member of the skywalk committee.
(C79, § 23-240; 0.9781, 10,031, 10,229, 10,589; C85, § 23-240; O.11,169, 11,385, 11,546; C91, § 23-240; O.13,910, 14,045, 14,147, 14,308, 15,352)

Sec. 102-321. Advisory powers of urban design review board.

The urban design review board shall review and advise the city council on the following:

(1) Any proposed amendment to this article;

(2) Any proposed amendment to any other ordinance that may affect the skywalk system;

(3) Any proposed amendment to the skywalk system plan map or the official skywalk map;

(4) Any proposed location or change in location of a skywalk corridor or vertical access facility;

(5) The policy and design standards for skywalk bridges;

(6) Any request to extend the three-year period for reconstruction of a destroyed skywalk corridor; and

(7) Such other matters as it determines should be brought to the city council's attention.

(C85, § 23-240.01; O.11,385; C91, § 23-240.01; O.13,910, 14,045, 14,147)

Sec. 102-322. Decision powers of skywalk committee.

For the purpose of this article, the skywalk committee shall:

(1) Establish minimum standards for operation, maintenance and repair of the skywalk system. The term "operation" shall include heating, cooling, lighting, cleaning and providing surveillance for the skywalk system.

(2) Establish the policy and approve the design for the skywalk logo, skywalk maps and route directories, skywalk directional signs and store and building name signs and building directories.

(3) Approve erection of sculpture, plantings, or supports for public announcements or artwork or other amenities in any part of a nodal area on a public easement, the dimensions of which exceed the minimum skywalk corridor dimensions.

(4) Approve or disapprove a request by any person to change the hours of operation for any portion of the skywalk system, except vertical access facilities, provided such change does not reduce the hours that portion of the skywalk system is open below the minimum hours provided in this article. A request to so change the hours a portion of the skywalk system is open signed by all private property interests on the portion of the skywalk system affected by the change shall be deemed granted upon notice to the skywalk committee. A request to extend the hours a portion of the skywalk system shall remain open shall be granted upon evidence that there will be substantial usage of that portion of the system during such hours, provided those persons requesting such extension of hours present the committee with an executed agreement providing for payment of all operation and repair costs on that portion of skywalk system during such hours. The skywalk committee may approve or may approve subject to such reasonable conditions as are necessary to protect the interests of other persons along the affected portion of the skywalk system or may disapprove a request to change hours of operation, but if the skywalk committee does not approve subject to condition or disapproves a proposed change in hours within 15 days of the date such request is filed with the skywalk committee, the proposed change shall be deemed approved.

(5) Upon its own notice or upon the complaint of any person, determine whether or not a skywalk corridor constructed or otherwise provided by a private property interest conforms to the minimum design standards for skywalk corridors contained in this article. Any private property interest may submit plans for the construction or other provision of a skywalk corridor to the skywalk committee for determination as to whether or not such plans conform to such minimum design standards.

(C85, § 23-240.02; O.11,385; C91, § 23-240.02; O.13,910, 14,045)

Sec. 102-323. Variances.

(a) The skywalk committee shall approve or approve with such reasonable conditions as the committee may determine or disapprove a request for a variance from the requirement for minimum clearance of a skywalk corridor or a skywalk bridge over an alley, provided that the committee may grant such variance only when it is satisfied under the evidence before it that:

(1) Because of exceptional topographical conditions or other extraordinary or exceptional circumstances, the strict application of the terms of this article actually prohibits connection of a property to the

skywalk system in a manner reasonably similar to that of other property in the skywalk district;

(2) The plight in question is due to unique circumstances shown by the evidence and is not of the making of any person with a property interest in any property abutting on such skywalk corridor or skywalk bridge; and

(3) The requested variation shall be in harmony with the intended spirit and purpose of this article, provided, further, that no variance shall be granted which provides for a minimum clearance of a skywalk corridor or skywalk bridge over an alley of less than 13 feet eight inches over the highest point of the surface of such alley.

(b) The applicant for such variance shall have the burden to present evidence and to prove that the conditions for granting a variance have been satisfied.

(c) The decision on an application for variance shall be made after a public hearing. Notice of such public hearing shall be given at least ten days prior to the date of the public hearing by publication once in a newspaper of general circulation in the city and by registered or certified mail addressed to the last known address of all persons with a property interest in each property abutting on such alley. The applicant shall pay the city an application fee of $5.00 and the actual costs of notice of the public hearing.

(d) Within ten days after the date the skywalk committee renders its decision, any person aggrieved by such decision may appeal to the city council by written notice of such appeal directed to the city clerk, the skywalk committee and all persons with a property interest in each property abutting on such alley. The city council shall consider such appeal at a public hearing held after at least ten days' notice given in the same manner as for the original hearing before the skywalk committee. The appellant shall pay the city a fee of $5.00 and the actual costs of notice of the public hearing. The city council may grant or deny a variance on the same basis as the skywalk committee.

(C85, § 23-240.03; O.11,385; C91, § 23-240.03; O.13,910, 14,045)

Sec. 102-324. Changes of hours, conditions.

When any portion of the skywalk system extends to serve only a single building or business, and no further, and when the building or business served is not regularly open to the public throughout the minimum hours of operation for the skywalk system provided in this article, the skywalk committee, with the written consent of all private property interests associated with the building or business, may approve a reduction in the hours of operation of that portion of the skywalk system serving only that single building or business, so that portion of the skywalk system shall be closed for public pedestrian travel during all or a portion of the hours in which the building or business is not regularly open to the public. However, in no event shall the skywalk committee approve such a reduction in the minimum hours of operation so as to close the affected portion of the skywalk system during any of the hours in which the building or business is regularly open. Any associated private property interest at any time may revoke its consent to such a reduction in hours by filing a written notice of revocation with the skywalk committee. Upon receipt by the skywalk committee of such notice from any associated private property interest, the prior approval granted by the committee to the reduction in hours shall be deemed revoked, and the affected portion of the skywalk system shall be required to remain open in accordance with the minimum hours of operation for the skywalk system provided in this article.

(C85, § 23-240.04; O.11,385; C91, § 23-240.04; O.13,910, 14,045)

Sec. 102-325. Arbitration.

(a) Any person aggrieved by a decision of the skywalk committee made under a decision power granted it in section 102-322 of this article may request binding arbitration by a written request filed with the secretary of the committee within ten days after receipt of the decision. Thereafter,

within five days, the skywalk committee and the party requesting arbitration shall each appoint one arbitrator. Within five days of their mutual appointment, those two arbitrators shall select a third arbitrator who shall chair the arbitration panel. The arbitration panel shall schedule a public hearing within ten days of such final selection, and the city clerk shall publish notice of the hearing and shall notify affected property owners and tenants by mail. Any interested person may present evidence or argument at the hearing. The arbitration panel shall have the power to reach the same decisions pursuant to the same standards as the skywalk committee. If the majority of the arbitration panel does not render its written decision and reasons within ten days of its hearing, the decision of the skywalk committee shall prevail. Each party shall pay for the costs of the arbitrator it appoints, and the arbitration panel shall apportion all additional costs of arbitration as justice warrants.

(b) For purposes of this section, the city manager, on behalf of the city, shall be a person who may request arbitration or appeal of a decision of the skywalk committee to the same extent that any other person can.
(C85, § 23-240.05; O.11,385; C91, § 23-240.05; O.11,793, 13,910, 14,045)

Sec. 102-326. Application to be included in skywalk system.

(a) No person may construct a portion of or connection from a property interest granted the right of connection by section 102-319 or by subsection 102-329(l) of this article to the skywalk system without approval of the city.

(b) The city council shall receive and consider an application for the development of a portion of or connection to the skywalk system from an applicant who effectively represents all properties, except those owned by the city and those already traversed by a portion of the skywalk system, to be traversed by the proposed portion of or connection to the skywalk system with the power of attorney to commit such properties to the skywalk usages and restrictions provided by this article. The city council shall receive the advice of the urban design review board before acting on the application.

(c) In determining the priority of construction and location of skywalk bridges, the city council shall give favorable consideration to construction of such bridges to blocks in which all necessary property interests grant the city the right to all easements necessary to complete or extend the skywalk system to all faces of the block and necessary to permit connection to the skywalk system by those property interests within the block that are granted such right of connection by this article, which easements shall come into being at such time as the city council determines they are necessary for such purposes.

(d) The city council shall grant the application to construct a portion of the skywalk system and shall construct any necessary bridges over public rights-of-way at public expense according to specifications on file in the city clerk's office and shall grant the application to construct a connection to the skywalk system if:

(1) The applicant:

a. Demonstrates that the proposed portion of the skywalk system or connection thereto is part of the skywalk system as shown on the skywalk system plan map or as included on the map by amendment or is a connection thereto allowed by section 102-319 or by subsection 102-329(l) of this article;

b. Grants the city at no cost an easement for public pedestrian travel through and over all skywalk corridors across such private property and, further, grants the city the right to an easement for public pedestrian travel through and over any future skywalk corridor across such property that is or may become necessary to extend the skywalk system beyond such property to an adjacent property, which easement shall come into being at such time as the city council determines it is necessary for such extension of the skywalk sys-

tem. Such easements shall be deemed dedicated to public pedestrian travel only during the hours that such skywalk corridors are open according to the terms of this article. Each such easement for a skywalk corridor shall provide as direct a pathway across such property to the skywalk system connections to other property as is reasonable and practical. The location of each such easement shall be the location approved by the city council. Such private property interests shall have the right to change the location of a skywalk corridor easement upon notification to and approval by city council upon the advice of the urban design review board, which approval shall not be unreasonably withheld, and upon completion of construction of such relocated portions of the skywalk system;

c. Signs a skywalk agreement with the city to construct all portions of or connections to the skywalk system to be built at private expense according to minimum design standards for the skywalk system and to abide by all terms and conditions of the skywalk agreement and all terms and conditions of this article as are in effect on the date such skywalk agreement is made; and

(2) The city council determines that the city can finance its obligations or, in the alternative, if the applicant agrees that the city can perform its obligations or any part of them as soon as the city council determines it can finance them.

(C79, § 23-241; O.9781; C91, § 23-241; O.13,910, 14,045, 14,147)

Sec. 102-327. City's responsibilities.

(a) In the approved portions of the skywalk system, the city shall construct the skywalk bridges over public rights-of-way according to specifications on file in the city clerk's office and shall assume the cost of construction of that portion of the skywalk bridges which is over the public right-of-way.

(b) If any city-owned skywalk bridge is so damaged or destroyed that it is not usable, the city shall immediately create a temporary vertical access facility to the ground level and back up to the skywalk level around such damage, and the city shall rebuild the skywalk bridge at city expense as soon as practicable.

(c) The city shall construct any skywalk corridors, nodes, or vertical access facilities in city-owned buildings.

(d) If any skywalk corridor or vertical access facility in a city-owned building is so damaged or destroyed that it is no longer usable, the city shall immediately either provide a temporary route around the damaged portion or create a temporary vertical access facility to the ground level and back up to the skywalk level around such damage, and the city shall rebuild the skywalk corridor or vertical access facility at public expense as soon as possible and in any event within three years, unless the city council for good cause shown extends the three-year period.

(e) The city shall pay for the maintenance, repair and operational expenses for that portion of the skywalk system which traverses a city-owned building and shall pay the same share of such expenses for all skywalk bridges connecting to such city-owned building as if the city were a private property interest.

(C79, § 23-242; O.9781, 9854; C91, § 23-242)

Sec. 102-328. Obligations of private property interests.

(a) In addition to granting the easements required by section 102-326 of this article, the owners of any private property interest traversed by the skywalk system and the skywalk-level tenants of such property (referred to in this section as "the private property interests") and their successors or assigns:

(1) May grant the city at no cost an easement for skywalk purposes for so much of a nodal area as exceeds the skywalk corridor easement. The location of these ease-

ments shall be as approved by the city council and shall be shown on the official skywalk map. The private property interests shall have the right to change the location of such nodal area easements upon notification to and approval by the city council upon the advice of the urban design review board, which approval shall not be unreasonably withheld, and upon construction of the relocated portions of the skywalk system. The private property interests shall have the right to terminate any such nodal area easement upon three weeks' written notice to the city council.

(2) Shall construct or otherwise provide at their own expense all portions of the skywalk system traversing their property and shall construct or provide such skywalk system according to the minimum design standards and criteria of this article.

(3) If the portion of the skywalk system traversing private property is so damaged or destroyed as to be unusable, shall be responsible for providing either an immediate temporary route around the damaged portion or construction of a temporary route to the ground level and a temporary route back to the skywalk system at the other end of the damaged portion and shall rebuild or otherwise replace the damaged portion of the skywalk system as soon as is reasonable, but in any event within three years, unless the city council for good cause shown extends the three-year period, subject to such reasonable conditions as it may impose, for such reasonable period of time as is necessary to complete the repairs or replacement. Any person aggrieved by the decision of the city council may request binding arbitration by the same procedure as provided in subsection 102-325 of this article.

(4) Shall be responsible for the costs of operation, maintenance and repair of that portion of the skywalk system traversing their private property and shall be responsible for that share of such costs for each skywalk bridge connected to their private property as is determined by the following ratio: 1/N, where N equals the number of private properties connected to such skywalk bridge at any given time which are subject to a skywalk agreement then in existence, all in conformance to the operation, maintenance and repair standards set by the skywalk committee. If a particular private property interest fails to fulfill its responsibilities for operation, maintenance or repair after notice to do so from the city, the city shall secure such operation, maintenance or repair and assess the cost of performing such operation, maintenance or repair against the private property upon reasonable notice and hearing before the city council.

(5) Shall be responsible for providing surveillance of and on that portion of the skywalk system traversing their private property and for providing surveillance of and on each skywalk bridge connected to their private property, all in conformance to or exceeding the standards for such surveillance set by the skywalk committee. If, as a result of such surveillance or otherwise, a private property interest has knowledge of a violation of law, such private property interest, in its sole discretion, either shall undertake the initial action to handle the situation itself or shall immediately contact the city police department. The city shall be responsible at least to provide customary city police protection to the skywalk bridges and skywalk corridors in the same manner as it provides police protection to other private and public properties within the city limits. If a particular private property interest fails to fulfill its responsibilities for surveillance after notice to do so from the city, the city shall secure such surveillance and assess the cost of performing such surveillance against the private property upon reasonable notice and hearing before the city council.

(6) May enhance, to the extent they choose, a nodal area dedicated to the city by erec-

tion of sculpture, artwork, plantings or other amenities as approved by the skywalk committee.

(7) Shall provide liability insurance for the portion of the skywalk system traversing their property in an appropriate amount, naming the private parties and the city as insureds, and shall carry casualty insurance in an amount sufficient to rebuild the skywalk system that traverses their private property.

(8) Shall be entirely responsible for any additional construction or costs necessary to provide security or separation between the skywalk system and the private property.

(b) Private property interests that are party to a skywalk agreement entered into after April 1, 1992 and their successors and assigns shall become members in good standing of a business organization that provides skywalk security and surveillance pursuant to a valid I.C. ch. 28E agreement with the city. The obligation set forth in this subsection shall not apply to the federal government.

(c) The obligation of a private property interest shall cease if it transfers its interest to another who assumes its obligation under this article. The obligations of the private property interests and their successors and assigns shall cease if the private property is taken by an exercise of the power of eminent domain or if the portion of the skywalk system traversing their property is formally abandoned by the city as part of the skywalk system. In addition, any time after 30 years from the date they entered a skywalk agreement, all private property interests in a property or their successors or assigns may jointly terminate their obligations upon two years' written notice to the city council, which notice may be given at any time after 28 years from the date of such skywalk agreement; provided, however:

(1) If the city makes significant capital repairs or replacements to a skywalk bridge abutting on such private property interests' property on or before 15 years from the date of their skywalk agreement, they cannot so terminate their skywalk agreement until 25 years after completion of such significant capital repairs and replacements or 30 years from the date of their skywalk agreement, whichever is later; provided that in such event the prior written notice referred to in this subsection may be given at any time after 23 years from the completion of such significant capital repairs and replacements or 28 years from the date of their skywalk agreement, whichever is later; and

(2) If the city makes significant capital repairs or replacements to a skywalk bridge abutting on such private property interests' property after 15 years from the date of their skywalk agreement, they cannot so terminate their skywalk agreement until any time on or after 40 years from the date of their skywalk agreement; provided that in such event the prior notice referred to in this subsection may be given at any time after 38 years from the date of their skywalk agreement.

Significant capital repairs or replacements shall include only those capital repairs or replacements for which the city expends money not derived from insurance or the proceeds of a judgment awarded the city in an amount which exceeds 50 percent of the original cost of the skywalk bridge to which such capital repairs or replacements are to be made as such original cost is increased or decreased by the change in the index for "Building Cost" for Kansas City contained in Engineering News-Record from the date of award of the contract for original construction of the skywalk bridge to the last known figure for such component prior to the date of first action by the city council on such proposed significant capital repairs or replacements.

(C79, § 23-243; O.9781, 9854, 10,229; C85, § 23-243; O.10,883; C91, § 23-243; O.11,793, 13,910, 14,045, 14,147)

Sec. 102-329. Development criteria.

(a) There shall be at most one skywalk bridge per block face; provided, however, that a second skywalk bridge may be constructed in a block face if:

(1) At least one of the blocks to be connected by such skywalk bridge has at least 1,500 persons regularly employed or residing within such block;

(2) A property in such block to be connected to such skywalk bridge has at least 500 persons regularly employed or residing and does not have any other connection to the skywalk system shown on the skywalk system plan map;

(3) Such skywalk bridge shall be connected to a skywalk corridor which is shown on the skywalk system plan map; and

(4) There shall be a vertical access facility accessible from such skywalk bridge in each block connected by such skywalk bridge.

(b) There shall be at least one vertical access facility in each block accessible to and usable by the handicapped. However, in the event two adjoining blocks are consolidated by the vacation of the intervening street and are occupied by single building, one vertical access facility may be used to serve the two consolidated blocks if two or more other vertical access facilities are also maintained in adjoining blocks at locations immediately accessible from a skywalk bridge connecting to the two consolidated blocks. A vertical access facility may utilize an existing vertical transfer system in a private property traversed by the skywalk system.

(c) All doors in the public skywalk system shall be built entirely at private expense, except that doors at the end of a skywalk bridge connecting to city property or within city property shall be built at city expense.

(d) The method of transfer between skywalk corridors in different buildings of different heights shall be accessible to and usable by handicapped persons.

(e) The skywalk system shall be maintained free of all obstructions, except that sculpture, plantings, supports for public announcements or artworks or other amenities, as approved by the skywalk committee, may be erected in those portions of the nodal areas, skywalk corridors or skywalk bridges which exceed 14 feet in width and which have been dedicated for public skywalk purposes. Where a public utility contracts to provide public communication equipment and service in one or more such locations, the owner or lessee of such location shall be entitled to the proceeds from such contract.

(f) Skywalk corridors shall conform to the following minimum design standards:

(1) *Width.* Skywalk corridors shall have a minimum width of 14 feet free and clear of any obstructions or intrusions. However, in the following circumstances, the lesser widths specified may be allowed:

a. Where a column, pipe or other integral structural feature or member of an existing building will intrude into a skywalk corridor, such corridor and the easement therefor shall be for that narrower width for the minimum distance which is necessary to prevent such intrusion.

b. Where a skywalk corridor is constructed over an alley or vacated alley between existing buildings, and where a column, pipe or other integral structural feature or member of an existing building or buildings restrict the available width for construction of the skywalk corridor, such corridor and the easement therefor shall be of the maximum width that can reasonably be constructed, such reduced width shall be for the minimum distance possible, and no portion of the corridor shall be less than 13 feet free and clear of any obstructions or intrusions.

c. Where the easement for a skywalk corridor is in a building corridor already constructed as of July 3, 1980, such skywalk corridor shall have a

minimum width of 12 feet free and clear of any obstructions or intrusions.

d. The city council in its discretion may accept a right to an easement for a skywalk corridor 14 feet in width and may restrict the actual width of the easement for a skywalk corridor to no less than 12 feet in those situations where on one side of the skywalk corridor any barricade wall or other physical barrier or obstruction, including but not limited to chainlink mesh, clear glass or other material, which stands or is erected or placed between such corridor and the abutting private property interest, meets all of the following criteria during the regular hours the building or business in which the skywalk corridor is located is open:

1. Such physical barrier or obstruction comprises no more than 40 percent of the area of the vertical plane between floor and ceiling running parallel to and at the edge of such corridor through such property interest.

2. In those open portions of such areas where such barrier does not extend from floor to ceiling, the private property interest may place or stand temporary obstructions within the 14-foot right to an easement area but without the 12-foot easement on the open side, so long as no such obstruction shall be placed or stood within the 14-foot right to an easement width which exceeds 36 inches in height measured from the floor and/or the ceiling; provided, however, that any such temporary obstruction affixed to the ceiling must not extend lower than seven feet above the floor. Where such open spaces exist on both sides of such corridor, such intrusion shall be limited to a total of two feet divided between the two sides of the corridor at the private property interest's discretion; provided, however, that the amount of intrusion on each side of the corridor shall be uniform for the length of such corridor through the private property.

Doors which are normally closed but which open into a skywalk corridor shall not be deemed barriers, obstructions, or intrusions as referred to in this subsection. Doors that are provided for fire protection or for atmospheric pressure control with a total opening width of ten feet eight inches or more shall not be deemed barriers, obstructions or intrusions as referred to in this subsection.

(2) *Height.* Skywalk corridors shall have a minimum height of nine feet or the existing ceiling height of the space through which the corridor is to pass, whichever is lower, free and clear of any obstructions or intrusions except at those points of the corridor where a beam, pipe or other similar structural feature of the existing building requires a lower height for that minimum distance necessary to pass such beam, pipe or other similar structural feature.

(3) *Delineation.* Skywalk corridors shall be readily identifiable and distinguishable from the surrounding parts of the buildings through which they pass. The skywalk corridor may be delineated by different floor coverings, by walls or by physical barriers.

(4) *Lighting.* There shall be artificial lighting capable of providing a minimum intensity at every point along the skywalk corridor floor of either:

a. 30 footcandles; or

b. an amount equivalent to the recommended illumination standards for Transition Spaces, Public, Independent Passageways (ages 65 and older),

as identified in The Lighting Handbook, Tenth Edition (the "Lighting Handbook"), published by the Illuminating Engineering Society. Lighting controls intended to reduce artificial light output and conserve energy are acceptable as long as the recommended minimum standards in the Lighting Handbook are met. For new construction and reconstruction of existing skywalk lighting systems, the illumination shall meet the average/minimum uniformity ratios identified in the Lighting Handbook.

Lighting fixtures shall be recessed in or attached in immediate proximity to the ceiling, except that hanging or pendant fixtures will be permitted which do not invade the minimum skywalk corridor height. If additional lighting fixtures must be provided, they shall be supplied with electricity in such a manner that the interruption of service in any circuit inside the building will not result in total interruption of the required lighting.

(5) *Heating and cooling.* The skywalk corridor must be serviced by heating and cooling equipment capable of sustaining skywalk corridor temperatures between 65 degrees and 85 degrees Fahrenheit at all times.

(6) *Minimum clearance over alleys.* Any skywalk corridor constructed over an alley shall have a minimum clearance over the surface of the alley of 14 feet six inches, unless a variance is granted in accordance with section 102-323 of this article which permits a lower minimum clearance over an alley.

(g) The only signs that will be allowed in skywalk corridors and skywalk bridges are skywalk logos, skywalk map and route directories, skywalk directional signs and skywalk building identification signs as approved by the skywalk committee. The private property interests shall be allowed to erect store or building name signs and building directories on the sidewalls of skywalk corridors with approval by the skywalk committee and shall be allowed to erect any signs they wish on the private property adjacent to the skywalk corridors, so long as these signs are not so similar to skywalk graphics as to cause confusion.

(h) Skywalk corridors shall conform to such minimum design standards for skywalk corridors as exist at the time the easement for the corridor comes into being.

(i) Skywalk bridges shall have a minimum width of 14 feet and a minimum height of nine feet, both free and clear of any obstructions or intrusions; shall have a minimum clearance over the traveled portion of streets of 16 feet six inches and over the surface of alleys of 14 feet six inches, unless a variance is granted in accordance with subsection 102-323 of this article which permits a lower minimum clearance over an alley; and shall conform to such other minimum design standards as are adopted from time to time by the city council and kept on file in the city clerk's office. However, if the city council determines to incorporate into the skywalk system any skywalk bridges existing as of the effective date of the ordinance from which this article derives, such bridges need not meet the minimum standards of this subsection. Doors that are provided for fire protection or for atmospheric pressure control with a total opening width of ten feet eight inches or more shall not be deemed as obstructions or intrusions as referred to in this subsection. Such doors shall be located at the building face or within the building. One set of intermediate structural supports may be located not less than every 100 feet where necessary to avoid bridge spans exceeding 100 feet, and a clear opening width of at least 12 feet shall be provided at each support location, provided that the clear open width may be less than 14 feet for only that minimum distance necessary to provide such support, which minimum distance shall not exceed two feet measured parallel to the length of the bridge.

(j) Structural foundations and supports for skywalk bridges shall be built outside the public right-of-way lines wherever possible. They shall be built at private expense, except for those

structural foundations and supports on that end of a skywalk bridge which connects to a city-owned building.

(k) Those skywalk bridges, skywalk corridors and vertical access facilities which are designated by the city council as fire exits or paths to fire exits must be open in accordance with the applicable city fire ordinances, as may be from time to time amended, and all fire prevention code requirements as to the construction of skywalk corridors to a point of access to the outside must be observed. Private property interests may not use skywalk bridges or skywalk corridors as fire exits without specific permission from the city council.

(l) If there is no plan for a person's property to be traversed by the skywalk system, as shown by the skywalk system plan map, and if such person's property touches a property which is traversed by an existing portion of the skywalk system, such person may apply for connection to the skywalk system under section 102-326 of this article.
(C79, § 23-244; O.9781, 9854, 9900, 9982, 10,031, 10,052, 10,589, 10,666; C91, § 23-244; O.11,793, 13,910, 13,996, 14,045, 14,564, 15,178)

Sec. 102-330. Standards of usage.

(a) The skywalk corridors and skywalk bridges shall be open for public pedestrian travel between the hours of 6:00 a.m. and 2:00 a.m. seven days a week, except that the skywalk corridors and skywalk bridges or portions thereof shall be open for such additional hours as the skywalk committee may approve in accordance with subsection 102-322(4) of this article and except that portions of the skywalk corridors and skywalk bridges shall be open for such reduced hours as the skywalk committee may approve in accordance with subsection 102-324 of this article. The vertical access facilities shall be open during the regular building or business hours of the building or business in which they are located, but not in excess of the hours the skywalk corridors they serve are open.

(b) During the hours when a portion of the skywalk system is open, it shall be available for use by the general public without restriction as to age, sex, religion, race, national origin or physical disability. During the hours when a portion of the skywalk system is open, no private property interest whose property is traversed by that portion of the skywalk system shall block or close that portion of the skywalk system designated as open.

(c) It shall be unlawful for persons to collect, assemble or group together and after being so collected, assembled or grouped together to stand or loiter on any portion of the skywalk system to the hindrance or obstruction of free passage of any person passing on or along such skywalk system.

(d) It shall be unlawful for persons to congregate, stand, loaf or loiter in or in front of any doorway, passage or entrance to any portion of the skywalk system so as to obstruct the doorway, passage or entrance or to hinder or prevent persons walking along or into or out of the skywalk system or attempting or desiring to do so.

(e) Groups of three or more persons who do not immediately leave the vicinity or disperse when asked to do so by any member of the public or by a police officer shall be presumed to have congregated, stood, loafed or loitered in violation of subsection (c) or (d) of this section, but it shall not be necessary to request such people to move, leave the vicinity or disperse in order to prove a violation of subsection (c) or (d) of this section.

(f) No more than two persons at any one time shall use a skywalk bridge as a locus for peaceful picketing, public speaking, leafleting, or other lawful expressions of opinion not in contravention of other laws, and no person shall conduct such activities in any portion of the skywalk system except on a skywalk bridge. It shall be unlawful to conduct such activities in such a manner as to block, obstruct or hinder any use of the skywalk system or normal activities in the adjacent buildings or properties.

(g) No person shall bring, allow or permit an animal to be in the skywalk system, except that a person with a disability or a person training a service animal has the right to be accompanied by a service animal, as defined in section 18-41 of this Code and as provided by 28 CFR 35, which is under control.

(h) Other than wheelchairs, motorized wheelchairs or electric scooters used by handicapped persons and vehicles used in operating, maintaining and repairing the skywalk system, no person shall use or operate a motor vehicle, moped, bicycle, skateboard or roller skates in the skywalk system.

(i) No person shall play a radio, tape recorder, or other sound-amplifying device in the skywalk system so as to permit the sound from the radio, tape player or other sound-amplifying device to be audible to another person, except that peace officers and security personnel may play radios tuned to official police or security frequencies and except that persons in those businesses along the skywalk system may continue to play radios, tape recorders or other sound-amplifying devices as is usual in the course of business.

(j) No person shall stand or sit on any radiator or other fixture in the skywalk system, except on a bench or seat provided in that portion of a nodal area outside the skywalk corridor.

(k) No person shall erect any advertising or signs, other than official skywalk system signs approved by the skywalk committee, in any skywalk corridor or skywalk bridge, except that store or building name signs or building directories may be permitted by the skywalk committee on the sidewalls of skywalk corridors, and except that temporary street banner signs announcing a public event or service attached to the exterior of skywalk bridges may be permitted providing that specific approval is granted under regulations established by the city council. No person shall erect any sign on property adjacent to the skywalk system that is so similar to an official skywalk sign or graphics as to cause confusion.

(l) No person shall be upon or remain upon any skywalk corridor or skywalk bridge roof without the authorization of the skywalk committee unless use of such roof is for a bona fide maintenance activity or emergency.

(m) No person shall use or consume alcoholic liquor, wine or beer in any skywalk corridor or skywalk bridge during the hours when such skywalk corridor or skywalk bridge is open for public pedestrian travel.

(n) No person shall enter upon any portion of the skywalk system, its skywalk bridges or corridors and conduct activities thereon in disregard of signs or posted notices as promulgated or authorized by the skywalk committee.

(o) No person shall willfully fail or refuse to comply with any lawful order or direction of a peace officer invested by law with authority to patrol the skywalk system and its skywalk bridges and corridors.

(p) Violation of this section shall be punishable as a simple misdemeanor.
(C79, § 23-245; O.9781, 10,589; C85, § 23-245; O.11,169, 11,174, 11,430, 11,532; C91, § 23-245; O.11,793, 13,551, 13,865, 13,910, 14,045, 15,000, 15,001)

Secs. 102-331—102-355. Reserved.

ARTICLE V. DRIVEWAYS

Sec. 102-356. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Abandoned driveway approach means a driveway approach no longer used or whose condition is such that it may no longer be used in accordance with the terms and conditions of this article.

Commercial driveway approach means a driveway approach providing access to an office, retail or institutional building; to an industrial or commercial development; or to an apartment building having nine or more dwelling units.

Curb drop means any depression in the curbing along the traveled portion of a street right-of-way originally designed or later created to facilitate passage of motor vehicles between that street and any private property adjacent to it.

Driveway approach means any area between the right-of-way line of any public street and the traveled portion of that street used for the

purpose of providing access for motor vehicles from the traveled way of the public street to any private property adjacent to the street.

Driveway width means the width of the driveway approach in feet measured at the right-of-way line of any public street except where the driveway radii are greater than the distance between the right-of-way line and traveled portion of that street, in which case the width of the driveway approach shall be measured at the end of the driveway radii on private property.

Permanent driveway approach means a driveway approach constructed on a street which is improved with permanent street surfacing. Such permanent driveway approaches can only be surfaced with Portland cement or asphaltic concrete in conformance with construction plans and specifications on file in the city clerk's office.

Residential driveway approach means a driveway approach providing access to a single-family residence, to a duplex, or to an apartment building containing eight or less dwelling units.

Temporary driveway approach means a driveway approach surfaced with a material other than Portland cement or asphaltic concrete in conformance with construction plans and specifications, on file in the office of the building official.
(C62, § 54-221; O.7371; C75, C79, § 23-208; O.9963; C85, § 23-208; O.11,583; C91, § 23-208; O.13,010)

Cross reference—Definitions generally, § 1-2.

Sec. 102-357. Compliance with article.

No person shall construct or replace any driveway approach or curb drop without first complying with this article.
(C62, § 54-222; O.7371; C75, C79, C85, § 23-209; O.11,583; C91, § 23-209)

Sec. 102-358. Permit.

No person shall cut into, remove or destroy any part of any curb along the edge of any traveled way or construct, reconstruct or remove a permanent or temporary driveway approach without first securing a permit for a driveway approach, except that no permit is required for restoring an existing temporary driveway approach to an unimproved street at such time as the street is paved.
(C62, § 54-223; O.7371; C75, C79, § 23-210; O.9963; C85, § 23-210; O.11,583; C91, § 23-210)

Sec. 102-359. Application to construct.

Prior to the construction or emplacement of any driveway approach, any person having a vested interest in the parcel of land to which the approach will run or the person who is to perform the work incident to the construction or emplacement of the driveway approach shall file an application in the office of the building official. The application shall contain the following information:

(1) The name of the owner of the parcel of land to which the proposed driveway approach will run.

(2) The name of the applicant, if the application is made by a person other than the owner of the parcel of land to which the approach will run.

(3) The location of the parcel of land, legal description, or other means of specific identification.

(4) The type of materials to be used in the construction or replacement thereof.

(5) The name and address of the contractor or other person who is to undertake the work incident to the construction or replacement of the driveway approach.

(6) Attached to or as a part of the application, a plat showing the parcel of land, the location and the nature of parking or driveway improvements upon the land and the proposed location and design of the driveway approach and curb drop showing its proposed dimensions and design. All plats for commercial driveway approaches shall contain either the written approval of the city engineer or that of the building official issued during a site plan review pursuant to article 9 of chapter 135 of this Code.

(7) Other information as may be deemed necessary by the building official or the city engineer.

(C62, § 54-224; O.7371; C75, C79, § 23-211; O.9963; C85, § 23-211; O.11,583; C91, § 23-211; O.13,010, 15,819)

Sec. 102-360. Amendments to application.

If it is determined that the proposed construction or replacement will not be in conformity with this article or the provisions of any other law or regulation or will create a traffic hazard, the building official shall advise the applicant of all necessary changes. The applicant shall file such amendments to his or her application as may be necessary to incorporate the changes. If amendments are sufficient to show the necessary changes, the building official shall issue the permit as provided in this article. If the proposed construction or replacement is in conformity with this article and is denied by the building official upon the recommendation of the city engineer based upon the creation of a traffic hazard, the applicant may, within 30 days of the denial, appeal the decision to the city council.

(C62, § 54-225; O.7371, 8450; C75, C79, § 23-212; O.9963; C85, § 23-212; O.11,583; C91, § 23-212; O.13,010)

Sec. 102-361. Permit fees.

(a) In order to defray the costs of administering this article, the fees for permits to construct a residential curb drop and/or driveway approach, to construct a commercial curb drop and/or driveway approach, and to construct a temporary driveway approach, shall be in the amounts set forth in the approved schedule of fees on file in the office of the city clerk.

(b) If a permanent sidewalk has not been constructed in the area of a permanent driveway approach, a permanent sidewalk section shall be constructed through the permanent driveway approach, unless the requirement for the sidewalk has been waived by the city engineer.

(c) The fees in subsection (a) of this section shall be paid at the office of the building official, and no permit shall be issued until such fee has been paid.

(C62, § 54-225; O.7371, 8450; C75, § 23-213; O.9125; C79, § 23-213; O.9963; C85, § 23-213; O.11,583; C91, § 23-213; O.11,748, 13,010, 15,112)

Sec. 102-362. Permit fee exemptions.

The federal government, the state or any political subdivision of the state shall be exempt from payment of the fees prescribed in section 102-361 of this article.

(C62, § 54-225.01; O.7461, 7496; C75, C79, § 23-214; O.10,371; C85, § 23-214; O.11,583; C91, § 23-214)

Sec. 102-363. Permit issuance.

If the proposed driveway approach conforms to all sections of this article and shall be constructed in accord with all construction plans and specifications described in section 102-369 of this article and shall otherwise meet the requirements of all other laws and regulations, the building official shall issue a permit for construction, to be issued in the name of the owner. No permit shall be issued if the proposed construction will be in violation of this article or of any other law or regulation.

(C62, § 54-225; O.7371, 8450; C75, C79, § 23-215; O.9963; C85, § 23-215; O.11,583; C91, § 23-215; O.13,010)

Sec. 102-364. Disqualification of permit applicants.

Any person who has previously violated any section of this article shall not be granted any permit under this article pertaining to the location at which the violation exists unless and until the conditions causing the prior violation at the location have been remedied.

(C62, § 54-226; O.7371; C75, C79, C91, § 23-216)

Sec. 102-365. Indemnification.

The applicant for a permit required by this article shall, as owner or as authorized agent of the owner, execute a covenant indemnifying the city against all claims for damages of any kind and against all judgments predicted upon such claims which may arise by virtue of the construction of the driveway approach; the storage or emplacement of any equipment, tools or materials incident thereto; and the performance of all work incidental to such construction.

(C62, § 54-227; O.7371; C75, C79, C91, § 23-217)

Sec. 102-366. Duration and renewal of permit.

Each permit issued under this article shall be valid for a period of six months from the date of issuance. However, when curb drops and driveway approaches are constructed in conjunction with a major building project, a longer period not in excess of 18 months may be specified on the permit. The construction of any approach or curb drop shall be commenced under the permit within the period specified in such permit. Any such permit may be renewed for the initial period by payment of an additional fee of $5.00 to the building official.
(C62, § 54-229.04; O.7371; C75, C79, C85, § 23-218; O.11,583; C91, § 23-218; O.13,010)

Sec. 102-367. Reservation of right to remove.

The city specifically reserves the right and power to remove any driveway approach or part thereof if removal is deemed necessary as a matter of public safety.
(C62, § 54-229.02; O.7371; C75, C79, C91, § 23-219)

Sec. 102-368. Grounds for removal; notice; costs.

(a) The following shall be grounds for immediate removal of a driveway approach by the city at the expense of the present owner of the property served or formerly served thereby and for restoration of the curb drop and driveway approach to grade by the city at the owner's expense:

(1) Construction of a driveway approach without a permit.

(2) Construction of a driveway approach which does not conform to the permit issued, to this article or to any other provision of law.

(3) Abandonment of use of a driveway approach.

(b) The city engineer shall give notice to the present owner of the property served or formerly served by such a driveway approach that the driveway approach to his or her property is not in compliance with this article or other provision of law, specifying the deficiency. If the owner after receiving notice shall for a period of 30 days neglect or refuse to correct the deficiency, the city council may order removal and restoration. The actual cost of the work shall be assessed against the property and shall be collected in like manner as other special assessments.
(C62, § 54-229; O.7371; C75, C79, C85, § 23-220; O.11,583; C91, § 23-220)

Sec. 102-369. Plans and specifications.

All driveway approaches and curb drops shall be constructed in accordance with the plans and specifications for such construction adopted by the city council for such work and filed in the offices of the city engineer and of the city clerk.
(C62, § 54-228; O.7371, 7488; C75, C79, § 23-221; O.9963; C85, § 23-221; O.11,583; C91, § 23-221)

Sec. 102-370. Conformity of construction.

No permittee, his or her agent, servant, contractor or employee shall construct any driveway approach in any manner not in conformity with the application and the permit and this article.
(C62, § 54-229.01; O.7371; C75, C79, C91, § 23-222)

Sec. 102-371. Maintenance; abandonment.

The persons holding the legal title to or actual control of the land to which the approach runs shall maintain the driveway approach and any public sidewalk therewith or across which the approach runs in a safe condition of repair and free from defects. The person holding the legal title to the land to which the approach runs shall remove the driveway approach and restore the curb when the approach is abandoned.
(C62, § 54-229.03; O.7371; C75, C79, C91, § 23-223)

Sec. 102-372. Time limit for completion.

(a) The construction of any driveway approach shall be completed within 30 days after its commencement. However, if weather conditions, other forces of nature or circumstances beyond the control of the permittee make construction within such period impossible, upon written application by the permittee to the city engineer

and if such conditions are found to exist, construction shall be completed within 30 days after termination of the conditions, to be determined by the city engineer.

(b) Failure to complete construction within the time limit established in subsection (a) of this section shall result in a new permit having to be secured for construction at such location.
(C62, § 54-229.05; O.7371; C75, C79, C85, § 23-224; O.11,583; C91, § 23-224)

Sec. 102-373. Parking space served by approach.

No driveway approach permit shall be issued unless the proposed driveway approach shall lead to a space on private property upon which one or more vehicles predictably expected to use the approach may be parked without protruding into the street right-of-way.
(C62, § 54-229.07; O.7371; C75, C79, C91, § 23-225)

Sec. 102-374. Curb drop location limitations.

(a) A curb drop shall not be constructed within an intersection, unless the only street frontage to a parcel of ground falls within the intersection; provided, however, that at a tee intersection a curb drop may be constructed opposite the street which does not extend through the intersection at a location approved by the city engineer.

(b) A curb drop shall not be constructed beyond the property line extended at any location except where joint driveways are constructed across a property line to serve two adjoining properties or one property and an alley. Such joint drive approaches and curb drops shall be considered as a single approach, and the curb drop and shall conform to this article.

(c) A curb drop shall not extend into a crosswalk.

(d) A curb drop shall not extend closer than 48 inches to a drainage intake unless the intake can be located entirely within the driveway approach. If the drainage intake falls within the curb drop, it shall be reconstructed at the permittee's expense and in accordance with city specifications.

(e) The beginning of the curb drop for a driveway approach shall be no closer than five feet to the curb radius point at an intersection.

(f) Where there is a raised median in the street, the nearest edge of the curb drop for a driveway approach shall not be closer than 20 feet from the end of the median measured at right angles to the median. This does not apply to driveway approaches centered on median openings.

(g) No two commercial driveway approaches serving the same property shall be constructed closer than 60 feet measured between the two nearest edges of the driveway approaches, except that the city engineer may recommend approval of driveway approaches with a minimum separation of 34 feet under the following conditions:

(1) Two-way drives serving a single parking lot with 90-degree parking and the drive approaches are centered on the parking lot aisles;

(2) One-way drives serving a commercial building or parking lot where the traffic flow and parking layout will provide for one-way operation at each drive, with one drive serving as an entrance drive and the second drive serving as an exit drive; or

(3) Other special conditions or combination of conditions where the minimum driveway spacing is necessary to provide reasonable access to the property; provided, however, that street frontage of insufficient length to satisfy all the requirements of this section for two separate driveway approaches does not constitute such a special condition warranting reduced driveway spacing and such minimum separation is determined by the city engineer not to create a traffic hazard. Estimated driveway volumes of greater than 100 vehicles per day, street speed limit greater than 30 miles per hour, inadequate sight distance, and other

conditions may be considered singly or in combination to constitute a traffic hazard.

(h) On two-way streets with four or more lanes of traffic without separation by a raised median or barrier and on the approach lanes of one-way streets with three or more lanes or on the approach lanes of a street with a raised median or barrier, no commercial driveway approach shall be constructed closer than 60 feet from the nearest edge of the driveway approach to the curb radius at a signalized intersection. On the exit lanes at a signalized intersection, on a one-way street with three or more lanes, or on a street with a raised median or barrier, a commercial driveway approach may be constructed closer than 60 feet from the intersection but shall not be constructed closer than 20 feet from the intersection as measured pursuant to this article.
(C62, § 54-229.11; O7371; C75, C79, § 23-229; C91, § 23-227)

Sec. 102-375. Number and width limitations.

(a) In general the number of driveway approaches to a property shall be the minimum number required to serve the development or proposed development of the property. In addition the following limitations or driveway approaches shall apply:

(1) The total width of driveway approaches shall not exceed 60 percent of the property frontage of any parcel of land.

(2) Residential driveway approaches providing access to a building containing eight or less dwelling units shall be from eight feet to 24 feet wide and shall be constructed with a return radius or taper of from two feet to 15 feet.

(3) Commercial driveway approaches shall be from 15 feet to 36 feet wide and shall be constructed with a return radius of from ten feet to 20 feet.

(4) When the curb drops and driveway approaches serve an industrial or commercial development with significant vehicular or truck traffic or a multifamily residential development, the curb drop and driveway approach shall be constructed in accordance with requirements set by the city engineer, notwithstanding the limitations on width set forth in this article, but in no event shall such driveway approach width exceed 52 feet.

(b) The application for a driveway approach under this section may be required, by the city engineer, to contain an independent traffic engineering study to justify the proposed design.
(C62, § 54-229.10; O.7371, 8234; C75, C79, § 23-228; O.9963; C85, § 23-228; O.11,583; C91, § 23-228)

Sec. 102-376. Service stations.

No driveway approach or curb drop shall be constructed to any parcel of land containing any oil-draining pit or fuel-dispensing appliance which is within 15 feet of a street right-of-way line.
(C62, § 54-229.11; O.7371; C75, C79, C91, § 23-229)

Sec. 102-377. Conditions for building permit issuance.

The issuance of a curb drop and driveway approach permit shall be a condition precedent to the issuance of a building permit under other sections of this Code when the proposed building will require any new curb drop or driveway approach or substantial alteration of any existing curb drop or driveway approach.
(C62, § 54-229.12; O.7371; C75, C79, C91, § 23-230)

Sec. 102-378. Streets being paved or reconstructed.

When existing streets are paved or reconstructed, driveway approaches and curb drops serving existing developed property shall be located or relocated in conformance with this article, except the city council, individually on a case-by-case basis or by endorsing its approval of the paving or reconstruction plans, may waive any of the driveway approach or curb drop

location limitations for an existing driveway if it determines that by doing so no traffic hazard will be created.
(C79, § 23-230.01; O.9963; C85, § 23-230.01; O.11,583; C91, § 23-230.01)

Sec. 102-379. Alleys.

(a) In general the requirements for driveway approaches to alleys shall conform to the requirements for streets; however, variations may be considered on an individual basis by the city engineer.

(b) Nothing in this article shall preclude perpendicular or angle parking adjacent to an alley, provided that no portion of a parked vehicle shall encroach upon the alley width and provided that sufficient space behind each stall, inclusive of the alley width, is available for vehicle maneuvering in accordance with the requirements of article 6 of chapter 135 of this Code behind each stall, inclusive of the alley width.
(C79, § 23-230.02; O.9963; C85, § 23-230.02; O.11,583; C91, § 23-230.02; O.15,819)

Secs. 102-380—102-405. Reserved.

ARTICLE VI. PROHIBITED CAMPING*

Sec. 102-406. Definitions.

Unless the context requires otherwise the following definitions apply to this article:

Campsite means any place where bedding, sleeping bag, or other material used for bedding purposes, or any stove or fire is placed, established, or maintained for the purpose of maintaining a temporary place to live, whether or not such place incorporates the use of any tent, lean-to, shack, or any other structure, or any vehicle or part thereof.

Local agency means an organization skilled and experienced in services to the homeless and associated human services. The city is not restricted to working with one local agency.

Personal property means any item reasonably recognizable as belonging to a person and having apparent utility or monetary value.

To camp means to set up or to remain in or at a campsite.
(O.16,382)

Sec. 102-407. Sleeping on sidewalks, streets, alleys or doorways prohibited.

(a) No person may sleep on public sidewalks, streets, alleys, doorways at any time as a matter of individual and public safety.

(b) No person may sleep in any pedestrian or vehicular entrance to public or private property abutting a public sidewalk.

(c) In addition to any other remedy provided by law, any person found in non-compliance of this section may be immediately removed from the premises.
(O.16,382)

Sec. 102-408. Camping prohibited.

No person may occupy a campsite in or upon any sidewalk, street, alley, lane, public right of way, park, bench, or any other publicly owned property or under any bridge or viaduct, unless authorized by the city manager or their designee or otherwise specifically authorized by section 74-101.
(O.16,382)

Sec. 102-409. Removal of campsite on public property.

Upon discovery of a campsite on public property, removal of the campsite by the city may occur under the following circumstances:

(a) Prior to removing the campsite, the city shall post a notice at the campsite. The

*__Editor's note—__**Editor's note—**Prior to reenactment by Ord. No. 16,382, Ord. No. 16,005, § 1, adopted April 19, 2021, repealed Art. VI, §§ 102-406—102-430, which pertained to benches and derived from Code 1942, §§ 88-27—88-29, 88-32—88-35, 88-38—88-42; Code 1954, §§ 54-199, 54-201, 54-208, 54-211; Code 1962, §§ 54-194—54-212, 54-212.01—54-212.03, 54-212.05, 54-212.06; Code 1975; Code 1979; Code 1985, §§ 23-175, 23-184, 23-185, 23-187, 23-189, 23-194; Code 1991, §§ 23-175—23-199; Ord. No. 4976; Ord. No. 5650; Ord. No. 8454; Ord. No. 8558; Ord. No. 11,406; Ord. No. 11,548; Ord. No. 11,583; Ord. No. 12,048; Ord. No. 14,095; Ord. No. 14,174; Ord. No. 14,935.

notice shall state the name, address and telephone number of the department director; that the campsite is in violation of the requirements of this article; that the owner or user is ordered to cause immediate removal from the public property, which date of removal shall be no less than 24-hours after the date the notice was posted.

(b) At the time a 24-hour notice is posted, the city shall inform a local agency of the location of the campsite.

(c) After the 24-hour notice period has passed, the city is authorized to remove the campsite and all personal property related thereto.

(O.16,382)

Sec. 102-410. Offense and fine.

(a) It is the city council's intent that this article shall be utilized for compliance purposes to discourage non-compliant behavior and not as a general enforcement mechanism.

(b) A person who is not a minor and who fails to comply with sections 102-407 or 102-408 commits a simple misdemeanor, punishable by a fine of $15.00 and specifically excludes imprisonment.

(c) For any person who fails to comply with sections 102-407 or 102-408, prior to carrying out those sections, a police officer shall offer a one-time transport as time allows to the shelter location or provide directions to the shelter location. A person who refuses to accept the shelter space offered and fails to comply with this article shall be deemed to be in non-compliance of sections 102-407 or 102-408 as applicable.

(O.16,382, 16,504)

Sec. 102-411. Disposition and release of personal property.

(a) At the time of removal, items having no apparent utility or monetary value and items in an unsanitary condition may be immediately discarded. Weapons, drug paraphernalia, items appearing to be stolen, and evidence of a crime may be retained as evidence by the city until an alternate disposition is determined.

(b) All personal property removed from the campsite which is not disposed of, or retained as evidence pursuant to subsection (a) above, shall be stored by the city for no less than 30 days in accordance with city policy.

(c) The owner of personal property which is not disposed of or retained as evidence pursuant to subsection (a) above, may request return of the property in accordance with city policy. The owner of personal property may appeal a decision by the city not to return property stored pursuant to subsection (b) above pursuant to the administrative appeal process set forth in chapter 3 of this Code by filing a written notice of appeal with the city clerk within 30 days commencing on the date of posting the notice of removal of the personal property. Failure to timely file a written notice of appeal shall constitute a waiver of any right to contest such decision. The administrative hearing officer's authority on appeal shall be limited to ordering personal property that is stored pursuant to subsection (b) above to be provided to the appellant.

(O.16,382)

Secs. 102-412—102-455. Reserved.

ARTICLE VII. USE OF STREETS AND SIDEWALKS FOR BUSINESS PURPOSES*

DIVISION 1. GENERALLY

Sec. 102-456. Display of goods and wares in fire zones.

No person shall use any part of the sidewalks of the city in fire zone no. 1 and fire zone no. 2, as such fire zones are established and designated in section 46-2 of this Code, for the display of any goods, wares or merchandise, except as otherwise provided in this article.
(C42, § 88-1; O.5092, 5442; C54, C62, § 54-16; C75, C79, C85, § 23-16; O.11,251, 11,583; C91, § 23-16)

Sec. 102-457. Depositing goods on sidewalks.

No person shall use any part of the sidewalks of the city for the deposit of any goods, wares or merchandise, in bulk or otherwise, except the necessary time consumed in transit or as otherwise provided in this article.
(C42, § 88-2; C54, C62, § 54-17; C75, C79, C85, § 23-17; O.11,251; C91, § 23-17)

Sec. 102-458. Reserved.

Editor's note—Ord. No. 15,362, adopted April 6, 2015, effective April 17, 2015, repealed § 102-458, which pertained to refreshment stands and derived from Code 1942, § 88-3; Code 1954; Code 1962, § 54-18; Code 1975; Code 1979; Code 1985, § 23-18; Ord. No. 11,251; Code 1991, § 23-18.

Sec. 102-459. Reserved.

Editor's note—Ord. No. 15,578, § 1, adopted April 17, 2017, repealed § 102-459, which pertained to lunchwagons, fruit stands, shoe shining parlors and derived from Code 1942, § 88-4; Code 1954; Code 1962, § 54-19; Code 1975; Code 1979; Code 1985, § 23-19; Ord. No. 11,251; Code 1991, § 23-19; Ord. No. 15,362.

*__Cross reference—__Businesses, ch. 30.

Secs. 102-460—102-485. Reserved.

DIVISION 2. ENTERTAINMENT DISTRICT LICENSE

Sec. 102-486. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Entertainment district means a specifically identified area or zone of the city, other than residential, which is composed of a group or organization of businesses such as restaurants and bars and shall allow the district to offer food, nonalcoholic beverages, merchandise or entertainment on a portion of the public sidewalk. The district may allow associated signage, planters, flowerpots, artwork, or historic markers or plaques on a portion of the public sidewalk within the entertainment district except the public sidewalk may not be obstructed beyond the portion needed for two directional pedestrian traffic.
(C91, § 23-19.01; O.13,042, 13,735)

Cross reference—Definitions generally, § 1-2.

Sec. 102-487. Required.

No person, group, or organization shall use a portion of the public sidewalk, except where otherwise authorized by ordinance or council resolution, for the sale of food, beverage, merchandise, or any other wares or for the purpose of entertainment without an entertainment district license as provided in this division.
(C91, § 23-19.02; O.13,042, 13,735)

Sec. 102-488. Application.

Any organization or group applying for an entertainment district license shall make written application to the city clerk. No license shall be issued unless an application containing the following information is first completed:

(1) The name, address and phone number of the sponsoring organization or group.

(2) The name, address and phone number of a person who will be responsible for the operation and conduct of the activities in the district.

(3) A diagram and a description of the area to be declared an entertainment district.

(4) The names of the businesses which will be in the district and a signed release from each business owner or operator agreeing to the use of the sidewalk which fronts the business for entertainment district purposes.

(5) Number of vendors/entertainers, their names, and permanent addresses, if known.

(6) Type of entertainment or food to be offered.

(7) A certificate of insurance issued by an insurance company licensed to do business in this state, providing commercial general liability insurance (ISO CG 00 01 10 93 or its equivalent replacement addition or non-ISO equivalent) including an aggregate per location endorsement and a minimum limit of liability of $1,000,000.00 per occurrence, and workers compensation insurance to the extent required by the Code of Iowa, and the city's additional insured endorsement, governmental immunities endorsement and cancellation and material change endorsement, and any other types of insurance endorsement as deemed necessary by the city's risk management office based on the nature of the activities to take place.

(C91, § 23-19.03; O.13,042, 13,735)

Sec. 102-489. Issuance.

Upon the city clerk determining that an organization or group has complied with the terms of section 102-488 above, the chief of police, city engineer and community development director agree that the proposed district and its activities will not disrupt pedestrian and vehicular traffic in the area; that no other application has been submitted within 30 days of filing which proposes a similar geographic location for the district; that

no other licenses have been issued for conduct in the district, including but not limited to, a farmer's or public market license, whose operation or conduct will be disrupted by the grant of an entertainment district license; that the ordinances of the city or laws of the state will be obeyed in the conduct of the entertainment district; and upon payment of the appropriate fees, the city clerk shall issue a license to conduct an entertainment district. In the event of a denial of the permit, the city clerk shall state the reason therefor on the face of the application and so inform the applicant.
(C91, § 23-19.04; O.13,042, 13,735)

Sec. 102-490. Duration.

The entertainment district license shall be issued in the name of the sponsoring organization and shall be valid through December 31 of the year in which the license is issued.
(C91, § 23-19.05; O.13,042)

Sec. 102-491. Fee.

(a) The applicant for an entertainment district license shall pay a license fee to the city clerk at the time of filing the application in the amount set in the schedule of fees adopted by the city council by resolution.

(b) In the event the application is withdrawn by the applicant or is denied either initially or on appeal, either all or a portion of such fee in an amount set in the schedule of fees adopted by the city council by resolution shall be retained by the city to defray the administrative costs incurred.
(C91, § 23-19.06; O.13,042, 13,735; 14,174)

Sec. 102-492. Appeal of denial.

An entertainment district license denial may be appealed to the city council within ten days of the denial by submitting a written request for appeal to the city clerk. The city council shall consider the denial at its next regular meeting and shall either affirm the denial or direct the city clerk to issue the license upon receipt of the appropriate fees. The city council shall base its decision upon a review of the application, the reasons for denial, and any statements from interested parties. If more than one application has been submitted which proposes an entertainment district in similar geographic locations, the council shall consider the following criteria to determine which application to grant:

(1) Experience in managing an entertainment district.

(2) For which purpose an entertainment district will be used.

(C91, § 23-19.07; O.13,042)

Sec. 102-493. Conduct of licensee.

(a) An entertainment district licensee as well as all agents, employees, or representatives shall comply with all applicable ordinances of this Code and laws of the state.

(b) No person shall erect booths, tables, or display merchandise, provide entertainment or in any other manner participate in an entertainment district's activities without the express consent of the licensee and the participating business.

(c) An entertainment district licensee as well as all agents, employees, members, or representatives shall remove upon request any sign, planter, flowerpot, artwork, or historic marker or plaque causing a safety hazard or an obstruction to the orderly flow of pedestrian or vehicular traffic within the entertainment district. The chief of police, city engineer, community development director or their designees may determine if any such safety hazard or obstruction exists requiring such removal.
(C91, § 23-19.08; O.13,042, 13,735)

Secs. 102-494—102-520. Reserved.

DIVISION 3. SIDEWALK SALE PERMIT

Sec. 102-521. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Sidewalk sale means the offering of merchandise for sale to the public by any person, persons or organization when such merchandise is displayed on a portion of, or entirely on a public sidewalk or public place not designed for vehicular traffic.

(C85, § 23-20; O.11,251; C91, § 23-20; O.13,736)

Cross reference—Definitions generally, § 1-2.

Sec. 102-522. Required.

No person shall conduct a sidewalk sale, as defined in this division, without having first obtained a permit as provided in this division.

(C85, § 23-20.01; O.11,251; C91, § 23-20.01)

Sec. 102-523. Application.

Any person applying for a permit to conduct a sidewalk sale shall make written application to the city clerk at least 30 days prior to the proposed date of the sidewalk sale. No permit shall be issued unless an application containing the following information is first completed:

(1) The name, address and phone number of the applicant and/or the sponsoring organization he or she represents.

(2) The location of the sale and the names of the businesses which the proposed sale will front.

(3) If such businesses are not participating in the sale, written permission from the owners permitting the sale in the proposed location.

(4) The proposed date of the sale and its hours of operation.

(5) The number of merchants involved in the sale and their names and permanent addresses.

(6) The type of merchandise to be sold.

(C85, § 23-20.02; O.11,251; C91, § 23-20.02)

Sec. 102-524. Issuance.

Upon the city clerk determining that a person applying for a sidewalk sale permit has complied with the terms of section 102-523 of this division, the police and engineering departments agree that the proposed sale will not unreasonably disrupt pedestrian and vehicular traffic in the area, that the other sections of this division and this Code and city ordinances will be obeyed in the conduct of the sidewalk sale, and upon payment of the appropriate fees, the city clerk shall issue a permit to conduct a sidewalk sale. If the permit is denied, the city clerk shall state the reasons therefor on the face of the application and shall so inform the applicant. No sidewalk sale permit shall be issued for a sale within any residential zone of the city.

(C85, § 23-20.03; O.11,251; C91, § 23-20.03)

Sec. 102-525. Appeal of denial.

Any sidewalk sale permit denied may be appealed to the city council within ten days of the denial by submitting a written request for appeal to the city clerk. The city council shall consider the denial at its next regular meeting and shall either affirm the denial or direct the city clerk to issue the permit upon receipt of the appropriate fees. The city council shall base its decision upon a review of the application, the reasons for denial and any statements from interested parties.

(C85, § 23-20.04; O.11,251; C91, § 23-20.04)

Sec. 102-526. Duration.

(a) The sidewalk sale permit shall be issued in the name of the individual or sponsoring organization and contain the date(s) of the sale and shall be valid for one sale not to exceed five consecutive days.

(b) No more than three sidewalk sale permits may be issued for any location in any 12-month period.

(C85, § 23-20.05; O.11,251; C91, § 23-20.05; O.13,736)

Sec. 102-527. Fee.

(a) The applicant for the sidewalk sale permit shall pay a permit fee to the city clerk at the time of filing the application in the amount set in the schedule of fees adopted by the city council by resolution.

(b) If the application is withdrawn by the applicant or denied either initially or on appeal, either all or a portion of such fee in an amount set in the schedule of fees adopted by the city council by resolution shall be retained by the city to defer the administrative costs incurred.
(C85, § 23-20.06; O.11,251; C91, § 23-20.06; 0.14,174)

Sec. 102-528. Conduct of permittee.

A sidewalk sale permittee as well as all agents, employees or representatives shall comply with the following in conducting a sale:

(1) No person shall conduct a sidewalk sale from 10:00 p.m. until 8:00 a.m. the following day.

(2) No person shall erect booths, tables or display merchandise in such a manner so as to block pedestrian or vehicular traffic.

(3) No person shall conduct a sidewalk sale without the cooperation, participation or permission of the person whose permanent business is located immediately adjacent to the sidewalk sale.

(4) No person shall leave his or her merchandise, booths, tables or display cases on the site of the sale after 10:00 p.m., regardless of the fact that the sale may continue the following day at 8:00 a.m.

(5) No person shall sell merchandise of a type that is not originally sold by the permanent business located immediately adjacent to the sidewalk sale.

(6) No person shall sell food, beverage or provide entertainment.

(C85, § 23-20.07; O.11,251; C91, § 23-20.07; O.13,736)

Secs. 102-529—102-555. Reserved.

DIVISION 4. FARMERS' OR PUBLIC MARKET

Sec. 102-556. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Farmers' or public market means a sale of products, the majority of which have been produced in the state, including but not limited to raw fresh vegetables, fruit, honey, herbs, flowers, plants, nuts, baked goods or handcrafted items which conform to all applicable city, county or state health and safety provisions, particularly state department of agriculture and land stewardship regulations, and which are offered for sale by any person, business, or organization on a portion of or entirely on a public street, sidewalk, alley, park or public place during set hours, no more than two days per week within a one-year period.

Market manager means a person who or organization which holds a farmers' or public market permit and who organizes the participants of the market, promulgates regulations for the conduct of the market consistent with section 102-564 of this division, and generally is responsible for the operation of the market.
(C91, § 23-20.08; O.13,023)

Cross reference—Definitions generally, § 1-2.

Sec. 102-557. Required.

No person shall conduct a farmers' or public market, as defined in section 102-556 of this division, without first having obtained a permit as provided in sections 102-558 and 102-559 of this division. This shall not apply to activities sponsored by and held at the state fairgrounds.
(C91, § 23-20.09; O.13,023)

Sec. 102-558. Application.

Any person applying for a permit to conduct a farmers' or public market shall make written application to the city manager's office at least 30 days prior to the first proposed date for the

market. No permit shall be issued unless an application containing the following information is first completed:

(1) The name, address and phone number of the applicant and/or market manager he or she represents.

(2) The proposed location of the market and the names of any businesses which the market will front.

(3) If such businesses are not participating in the market, a copy of the notice sent to such businesses of the market, its location and duration.

(4) The proposed dates of the market and its hours of operation.

(5) The number of vendors involved in the market, their names, and permanent addresses.

(6) The type of merchandise to be sold.

(7) A certificate of insurance demonstrating compliance with all insurance requirements. The amount and type of liability insurance to be required shall be determined by the city's finance director or designee and are hereby, by reference, made a part of the permit application form.

(C91, § 23-20.10; O.13,023, 13,737, 15,104)

Sec. 102-559. Issuance.

Upon the city clerk determining that a person or organization applying for farmers' or public market permit has complied with the terms of section 102-558 of this division; the chief of police, the city engineer, and, if a market is held in a park, the director of park and recreation and the park and recreation board agree that the proposed sale will not reasonably disrupt pedestrian and vehicular traffic in the area of the market; that no other application has been submitted which proposes a similar geographic location for the market; that the city ordinances will be obeyed in the conduct of the market; and upon payment of the appropriate fees, the city clerk shall issue a permit to conduct a farmers' or public market. If the permit is denied, the city clerk shall state the reason therefor on the face of the application and shall so inform the applicant. No farmers' or public market permit shall be issued for a market within any residential zone of the city.
(C91, § 23-20.11; O.13,023)

Sec. 102-560. Appeal of denial.

Any farmers' or public market permit denial may be appealed to the city council within ten days of the denial by submitting a written request for appeal to the city clerk. The city council shall consider the denial at its next regular meeting and shall either affirm the denial or direct the city clerk to issue the permit upon receipt of the appropriate fees. The city council shall base its decision upon a review of the application, the reasons for denial, and any statements from interested parties. If more than one application has been submitted which proposes a farmers' or public market in similar geographic locations, the council shall consider the following criteria to determine which application to grant:

(1) Experience in managing a farmers' or public market.

(2) For what purpose the proceeds of the farmers' or public market will be used.

(C91, § 23-20.12; O.13,023)

Sec. 102-561. Duration.

The farmers' or public market permit shall be issued in the name of the market manager and contain the dates of the sale and shall be valid through December 31 of the year in which the market is held.
(C91, § 23-20.13; O.13,023)

Sec. 102-562. Fee.

(a) The applicant for a farmers' or public market permit shall pay a permit fee to the city clerk at the time of filing the application in the amount set in the schedule of fees adopted by the city council by resolution.

(b) In the event the application is withdrawn by the applicant or denied either initially or on appeal, either all or a portion of such fee in an

amount set in the schedule of fees adopted by the city council by resolution shall be retained by the city to defray the administrative costs incurred.
(C91, § 23-20.14; O.13,023, 13,737; 14,174)

Sec. 102-563. Market manager's responsibilities.

(a) Under this division, the market manager's responsibilities shall be to:

(1) Contact the city engineer to arrange for the appropriate signs and/or barriers to control traffic and/or parking in the area of the market, including but not limited to obtaining street closing permits and any other permit required by this Code.

(2) Provide, maintain, and remove portable toilets, the requisite number to be designated by the environmental health officer.

(3) Ensure that trash containers are provided in the market and that the market area is reasonably free of trash during and at the close of the market.

(b) Failure to comply with any of the subsections in subsection (a) of this section shall be punishable as a simple misdemeanor and may result in the revocation of the farmers' or public market permit.
(C91, § 23-20.15; O.13,023)

Sec. 102-564. Conduct of permittee.

A farmers' or public market permittee as well as all agents, employees or representatives shall comply with the following in conducting a farmers' or public market:

(1) No person shall conduct a farmers' or public market from 10:00 p.m. until 7:00 a.m. the following day.

(2) No person shall erect booths, tables, or display merchandise in such a manner so as to block pedestrian or vehicular traffic.

(3) No person shall erect booths, tables, or display merchandise or in any other manner participate in a farmers' or public market without the express consent of the market manager.
(C91, § 23-20.16; O.13,023)

Secs. 102-565—102-574. Reserved.

DIVISION 5. SIDEWALK CAFES

Sec. 102-575. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Community development director means the head of the community development department or that person's duly authorized representative.

Design standards and operational requirements for sidewalk cafes means those standards and requirements adopted by resolution of the city council for the design and operation of a sidewalk cafe upon city property occupied under authority of a sidewalk cafe permit or lease.

Sidewalk cafe means the use of a portion of the public sidewalk by an adjoining business for the operation of an outdoor service area for the sale of food and beverages.

Sidewalk cafe lease means a lease agreement approved by the city granting the lessee the right to lease a vacated portion of the public sidewalk or other property owned by the city, for the operation of a sidewalk cafe for a term not exceeding three years. The leased area may be used for the sale of alcoholic beverages and for the placement of semi-permanent improvements for the term of the lease, subject to obtaining all necessary licenses and permits.

Sidewalk cafe permit means a permit agreement approved by the city granting the permit holder the right to use a portion of the public sidewalk or other property owned by the city, for the operation of a sidewalk cafe for a term not exceeding three years. The permitted area cannot be used for the sale of alcoholic beverages, and the permitted area must be cleared and restored for public use during all hours the business is not in operation and open to the public.
(O.14,574, 15,161)

Sec. 102-576. Sidewalk cafes.

(a) Any person seeking to operate a sidewalk cafe upon the public sidewalk or other property owned by the city shall make application for a sidewalk cafe permit or a sidewalk cafe lease to the permit and development center upon a form to be provided by the city staff for that purpose. Each application for a sidewalk cafe permit or lease shall be accompanied by payment of an application fee in the amount set in the schedule of fees adopted by the city council by resolution.

(b) The community development director, or his designee, may sign a sidewalk cafe permit agreement on behalf of the city if the permit agreement complies with the requirements of this division and is in the form of sidewalk cafe permit agreement approved by resolution of the city council, with such additions and changes as may be required by the community development director and approved by the city legal department.

(c) Following approval of an application for a sidewalk cafe lease by the community development director, the real estate division manager may sign a sidewalk cafe lease agreement on behalf of the city. For renewal sidewalk cafe lease agreements, following approval of an application for a sidewalk cafe lease by the community development director, the real estate division manager may sign such renewal if the leased premises was leased for use as a sidewalk cafe in the current or preceding calendar year, the lease is in good standing, and the lease agreement complies with the requirements of this division, and is in the form of a sidewalk cafe lease agreement approved by resolution of the city council, with such additions and changes as may be required by the real estate division manager and approved by the city legal department.

(d) Any decision by the community development director to deny a sidewalk cafe lease or permit shall be set forth in a written decision which identifies the basis for such denial. The decision shall be promptly served upon the applicant by personal service, by service upon a cashier at the business address shown on the application, or by regular mail addressed to the applicant at such business address. If the denial is for reasons other than that the proposed site of the sidewalk cafe is needed for a public purpose, the decision shall also give notice that it may be appealed to an administrative hearing officer by filing a notice of appeal with the city clerk within ten business days of the date of the decision. If the denial is, in whole or in part for the reason that the proposed site of the sidewalk cafe is needed for a public purpose, the decision shall also give notice that it may be appealed to the city council by filing a notice of appeal with the city clerk within ten business days of the date of the decision.

(e) The decision of the community development director to deny a sidewalk cafe permit or lease pursuant to this subsection for reasons other than that the proposed site of the sidewalk cafe is needed for a public purpose may be appealed pursuant to the administrative appeal process set forth in chapter 3 of this Code. If the denial is, in whole or in part for the reason that the proposed site of the sidewalk cafe is needed for a public purpose, the decision may be appealed to the city council pursuant to section 102-578.

(f) Any sidewalk cafe lease agreement for premises that were not leased for use as a sidewalk cafe in the current or preceding calendar year shall not be effective until the proposed lease area has been vacated and approved by the city council.

(g) No sidewalk cafe permit agreement shall be issued until the applicant has paid the rental in the amount set in the schedule of fees adopted by the city council by resolution. No sidewalk cafe lease agreement shall be issued until the applicant has paid the fair market lease rate, as determined by the real estate division.

(h) The real estate division manager shall monitor and keep a record of all sidewalk cafe leases issued pursuant to this division, with a copy provided to the community development director. The community development director shall monitor and keep a record of all sidewalk cafe permits issued pursuant to this division.

(i) The community development director shall be responsible for enforcement of any violations of the requirements for all sidewalk cafe permits and sidewalk cafe leases issued pursuant to this division.
(O.14,574, 15,161, 15,882)

Sec. 102-577. Suspension, revocation or non-renewal for cause.

(a) Upon complaint or reasonable suspicion that a permit holder or lessee, their employees or agents, have violated or failed to comply with any of the requirements of the sidewalk cafe permit agreement or lease agreement or any provision of this Code, the community development director may cause the matter to be investigated. If the community development director finds that the permit holder or lessee, their employees or agents, have materially violated or failed to comply with any of the requirements of the applicable permit agreement or lease agreement or any provisions of this Code, the community development director may give notice to the permit holder or lessee of the city's intent to suspend or revoke the permit or lease, or to deny its renewal.

(b) Notice of the city's intent to suspend, revoke, or deny the renewal of a sidewalk cafe permit agreement or lease agreement and a brief summary of the factual basis for such remedial action shall be served upon the permit holder or lessee. Such notice shall inform the permit holder or lessee of the time, date and place of a meeting where the permit holder or lessee may meet with the community development director for the purpose of presenting additional information regarding the intended remedial action and the factual basis therefore, and that a final decision on appropriate remedial action will made after the schedule time for such meeting. Such notice shall be served upon the permit holder or lessee by personal service or by service upon a cashier for the business at the leased or permitted premises, or by regular mail addressed to the permit holder or the lessee at the business address shown on the permit agreement or lease agreement a minimum of five business days prior to the date set for the meeting.

(c) If, after the scheduled meeting and after consideration of all the available information including any information provided at the meeting by the permit holder or lessee, the community development director makes a finding based on substantial evidence that a material violation of this article or another provision of this Code did in fact take place as alleged, the community development director may revoke or temporarily suspend the permit or lease or deny its renewal; the determination of whether to so suspend, revoke or deny renewal of a sidewalk cafe permit agreement or lease agreement shall be in the discretion of the community development director and shall be dependent upon the circumstances surrounding the violation and its severity. The decision to suspend, revoke or deny renewal of a permit agreement or lease agreement shall be in writing and shall identify the basis for such action. The decision shall be promptly served in the same manner as required for the service of the notice required under subsection (b), and shall not be effective until ten days after the date of the decision. The decision shall also give notice that it may be appealed to an administrative hearing officer by filing a notice of appeal with the city clerk within ten business days of the date of the decision.

(d) The decision of the community development director to suspend, revoke or deny renewal of a sidewalk cafe permit agreement or lease agreement pursuant to this section may be appealed pursuant to the administrative appeal process set forth in chapter 3 of this Code.

(e) Any violation for nonpayment of rent shall not be subject to the requirements of this division and shall be subject to the termination provisions contained in the permit or lease agreement.
(O.15,161, 15,882)

Sec. 102-578. Denial, revocation or non-renewal for public purpose.

(a) If an application for a sidewalk cafe lease or permit is denied by the community development director, in whole or in part for the reason that the proposed site of the sidewalk cafe is needed for a public purpose, the decision may be

appealed to the city council by filing a notice of appeal with the city clerk within ten business days of the date of the decision. If such an appeal is timely filed, the community development director shall present the matter to the city council for consideration at a public hearing.

(b) If the community development director determines, with the concurrence of the city manager, that a sidewalk cafe permit agreement or lease agreement should be revoked because the city property occupied by a sidewalk cafe is needed for a public purpose, the community development director shall present the matter to the city council for consideration at a public hearing.

(c) Notice of the public hearing required by this section, and of the city council's intent to consider the denial or revocation of the sidewalk cafe permit agreement or lease agreement shall be served upon the permit holder or lessee by personal service or by service upon a cashier for the business at the leased or permitted premises, or by regular mail addressed to the permit holder or the lessee at the business address shown on the application a minimum of five business days prior to the date set for the public hearing.

(d) If upon the close of the public hearing the city council makes a finding that the property occupied by the sidewalk cafe is needed for a public purpose the city council may revoke the permit or lease or deny its renewal effective upon a specified date, which in the absence of an emergency shall be not less than 45 days after the date of the hearing.
(O.15,161)

Secs. 102-579—102-595. Reserved.

ARTICLE VIII. ENCROACHMENTS

Sec. 102-596. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Barrier means a man-made object, other than a bollard, which is used to obstruct the passage of vehicles and to separate pedestrian and vehicular traffic.

Border area means as defined in section 102-1.

Bollard means a vertical post designed and used to obstruct the passage of vehicles and to separate pedestrian and vehicular traffic.

Breakaway mailbox means a mailbox approved by the U.S. Postal Service and used for the curbside delivery of mail, which is supported by a wood post no greater in cross section than four inches square or by a post with a strength no greater than a two-inch diameter standard steel pipe. Two such posts may be used to support a cluster of four or more mailboxes.

City engineer means the head of the engineering department or the engineer's duly authorized designee.

Department means any city department charged with the enforcement of any section enumerated in this article.

Department director means the head of any city department or that person's duly authorized designee.

Encroachment, in addition to its usual meaning, means any tent or other material configured or used for habitation or shelter, architectural projection, chimney, stairway, platform, step, railing, door, grate, vault, sign, banner, canopy, marquee, awning, newsrack, trash container, bench, vehicle impact protection device, areaway, obstruction, retaining wall, opening or structure, or failure to maintain the border area as provided in section 102-21 of this Code.

Event venue means a structure that hosts gatherings of people with a seating capacity of 2,500 or more.

Newspaper delivery receptacle means a device for receiving and containing newspapers delivered for and at the request of a subscriber to the newspaper.

Newsrack means an encroachment in the form of an unmanned device for the vending or free distribution of newspapers or news periodicals; provided, however, that this definition shall not include newspaper delivery receptacles.

Public property, in addition to its usual meaning, means any street, highway, avenue, alley, sidewalk, skywalk bridge, public place or other real property owned or controlled by the city.

Vehicle means as defined in section 114-1.

Vehicle impact protection device means a device that is designed, engineered, and sited so as to effectively separate areas of pedestrian and vehicular travel and prevent vehicles from entering areas which are solely intended for pedestrian use and travel and shall be comprised of bollards, barriers, or a combination of both.
(C54, § 54-29.01; O.5995; C62, § 54-29.01; C75, C79, § 23-24; O.10,411, 10,482; C85, § 23-24; O.11,583; C91, § 23-24; O.14,236, 15,143, 15,588, 15,660, 16,478)

Cross reference—Definitions generally, § 1-2.

Sec. 102-597. Nuisances.

This article shall not be construed as authorizing the creation or maintenance of a nuisance.
(C42, § 82-3; C54, C62, § 54-30; C75, C79, § 23-25; O.10,411, 10,482; C91, § 23-25)

Sec. 102-598. Damages.

Any injury or damage to persons or property occurring in consequence of the construction, use or maintenance of any of the encroachments described in this article or because of any defect therein shall be paid by the person using or maintaining such encroachment.

After July 1, 2003, the responsibility for damage to a mailbox upon public property by the city, its officers, employees and agents, shall be limited to replacement of the damaged mailbox by the city with a breakaway mailbox of a standard design and color selected by the city. The owner of any mailbox remaining upon public property after July 1, 2003, shall be deemed to have agreed to this limitation as a condition of the owner's continued use of the public right-of-way.
(C42, § 82-42; C54, C62, § 54-31; C75, C79, § 23-26; O.10,411, 10,482; C91, § 23-26; O.14,236)

Sec. 102-599. Inspections.

The city manager or his or her authorized agent is authorized to inspect, at any time, the different encroachments mentioned in this article.
(C42, § 82-9; C54, C62, § 54-32; C75, C79, § 23-27; O.10,411, 10,482; C91, § 23-27)

Sec. 102-600. Authority to make alterations.

The city manager or his or her authorized agent shall have the authority to place in any area, room or vault under, in or upon the surface of any public property any pipe or conduit for carrying electric or telephone wires, gas or water or to alter, extend or repair such pipes or conduits. Pipes or conduits shall, at all times, be placed so as to interfere as little as possible with the use of such areas, rooms or vaults. The city manager or his or her authorized agent is authorized to enter such areas, rooms or vaults for any purpose in connection with the legitimate use of such public property.
(C42, § 82-9; C54, § 54-33; O.5995; C62, § 54-33; C75, C79, §§ 23-28, 23-29; O.10,411; C79, § 23-28; O.10,482; C91, § 23-28)

Sec. 102-601. Records.

The city engineer shall keep a record of all encroachments under, in, upon or over the surface of any public property, with the accurately computed area of the encroachment, and the fee for each as prescribed by this article. A separate detailed record shall be kept by the city engineer of the newsracks and trash containers maintained on public property pursuant to section 102-608 of this article.
(C42, § 82-9; C54, § 54-34; O.5995; C62, § 54-34; O.7930; C75, § 23-30; O.9500; C79, § 23-30; O.10,411; C79, § 23-29; O.10,482; C85, § 23-29; O.11,583; C91, § 23-29)

Sec. 102-602. Areaway permit.

(a) The engineering department will issue areaway permits for placement of encroachments as defined by subsections 102-608(g) of this article.

(b) Areaway permits are an annual permit with renewal on April 1st of each year.

(c) Areaway permits are issued for temporary encroachments within the city right-of-way. These encroachment types may include: building-mounted signage, awnings/canopies, trash receptacles, planters, bike racks, or other temporary or removable obstructions.

(d) Areaway permits shall be subject to the areaway permit fees set forth in the schedule of fees.
(C85, § 23-29.01; O.11,406, 11,583; C91, § 23-29.01; O.15,883)

Sec. 102-603. Barricades and warning devices.

Whenever the placing or causing of any encroachment under, in, upon or over the surface of any public property may present a hazard to public safety, the person responsible therefor shall secure the encroachment in a manner as required by the state manual on uniform traffic control devices.
(C42, § 89-1; C54, C62, § 54-35; C75, C79, § 23-31; O.10,411; C79, § 23-30; O.10,482; C91, § 23-30)

Sec. 102-604. Exemptions from article.

Nothing in this article shall be held in any way to prohibit or regulate the maintenance or placement of the following:

(1) Manholes, pits or covers in connection with the construction and operation of any water, telephone, gas or electric connections, pipes or conduits or the use of any public property by public service corporations to whom such right has been granted by franchise.

(2) Footings or foundations of buildings constructed in accordance with the city building code.

(3) Any official flag which projects over public property at least eight feet above grade and not closer than two feet from a curbline measured horizontally.

(4) Any fascia sign on and parallel to any wall or building at least eight feet above grade and projecting 18 inches or less over public property.

(5) Temporary encroachments that are regulated under the city building code, provided that encroachments closer than four feet to the curbline shall receive the approval of the city engineer.

(6) Encroachments within the skywalk system. Any such encroachments shall be regulated under article IV of this chapter.

(7) Newspaper delivery receptacles when installed by any person who publishes a newspaper of general circulation, as defined by state law, for and at the request of subscribers to the newspaper, so long as the receptacles do not encroach in, upon or over the traveled portion of the public way.

(8) Fire escapes.

(9) Portable flower pots and planters, not permanently attached to the sidewalk, provided: i) an unobstructed pathway over the sidewalk is maintained having a width of at least six feet, or the full width of any sidewalk less than six feet wide; ii) the pot or planter occupies less than eight square feet of area; iii) the pot or planter does not create a hazard to pedestrian or vehicular travel; and iv) no signage is placed on the pot or planter.

(10) Breakaway mailboxes.

(11) Mailboxes constructed prior to May 1, 2003, that are not breakaway mailboxes. However, the burden of establishing that an existing mailbox was constructed prior to May 1, 2003, shall be upon the owner. Any mailbox, when replaced, shall be replaced with a breakaway mailbox.

(12) The use of a sidewalk or other city-owned property for a sidewalk cafe operated pursuant to a sidewalk cafe permit agreement or sidewalk cafe lease agreement pursuant to section 102-576.

(13) Retaining walls constructed in the border area, prior to July 1, 2025, when the following qualifications are met:

a. The burden of establishing that the retaining wall was constructed prior to July 1, 2025, shall be upon the owner.

b. A license must be in place within 60 days of notification to the property owner by the city, if the city determines that the retaining wall is not exempt from acquiring a license under this section.

c. Any retaining wall, when replaced, shall require a new license.

(C42, §§ 82-1, 82-12; C54, §§ 54-36, 54-37; O.5995; C62, §§ 54-36 to 54-36.04, 54-37; O.7930, 7956, 7983, 8086; C75, §§ 23-32, 23-33; O.9500; C79, §§ 23-32, 23-33; O.10,411; C79, § 23-31; O.10,482; C91, § 23-31; O.14,230, 14,236, 14,574, 15,161, 15,883, 16,478)

Sec. 102-605. License construct.

Except as provided in subsection 102-610(d) of this article, no person shall construct, use or maintain any temporary or removeable encroachment not provided for in subsection 102-602 under, in, upon or over the surface of any public property, unless and until a written license is obtained from the city pursuant to this article. No such license shall be required for any encroachment exempted pursuant to section 102-604 of this article.

(C42, § 82-1; C54, § 54-37; O.5995; C62, § 54-37; O.7930. 7983, 8086; C75, § 23-33; O.9500; C79, § 23-33; O.10,411; C79, § 23-32; O.10,482; C85, § 23-32; O.11,583; C91, § 23-32; O.15,883)

Sec. 102-606. Application for license.

An applicant interested in obtaining a license to construct or maintain a temporary or removeable encroachment shall provide the following information to the city engineer:

(1) The name, address and telephone number of the applicant.

(2) The name, address and telephone number of a responsible person whom the city may notify or contact at any time concerning the encroachment.

(3) The exact location and dimensions of the encroachment. The applicant shall also provide a plat of survey and metes and bounds legal description to define the licensed area, if determined necessary by the city engineer.

(4) With respect to vehicle impact protection devices, the applicant shall submit detailed plans showing the location and dimensions of all proposed vehicle impact protection devices and their associated footings, device spacing, color and material, color of the reflective band, and dimensions to existing utilities in the border area (surface and subsurface). If the plan identifies vehicle impact protection devices outside of the border area, said plan must clearly identify the border area boundary. The applicant shall also provide a plat of survey and metes and bounds legal description to define the licensed area, if determined necessary by the city engineer.

(C79, § 23-33; O.10,411, 10,482, 10,569; C85, § 23-33; O.11,583; C91, § 23-33; O.15,660, 15,883)

Sec. 102-607. Criteria for issuance of license.

(a) No license required under this article shall be granted for any encroachment until the required fee has been paid, sufficient proof of insurance, which sufficiency shall be determined in the sole discretion of the city engineer, and until all items required in section 102-606 have been filed with and approved by the city engineer.

(b) No license shall be granted or renewed for any encroachment when it would unreasonably obstruct the rights of travel which the general public has on any public property or would unreasonably interfere with or impede the flow of pedestrian or vehicular traffic.

(c) No license shall be granted or renewed for any encroachment that would be placed or erected upon a sidewalk so as to occupy more than 25

percent of the width of the sidewalk and a minimum sidewalk width of six feet must be maintained at all times.

(d) No license shall be granted or renewed for any encroachment that would be placed or erected at a street corner within the vision clearance triangle described in section 114-14 of this Code.

(e) No license shall be granted or renewed for any sign which extends over the surface of any public property when the city has contracted

with another public body to prohibit the encroachment of signs over the surface of such public property.

(f) No license shall be granted or renewed for any permanent encroachments under, in, upon or over the surface of any public alley or street right-of-way, such as steps, stairways, building footings, architectural projections, and balcony overhangs. All permanent encroachments shall require vacation of the right-of-way and purchase of a permanent easement for building encroachment.
(C42, § 82-2; C54, § 54-38; O.5995; C62, § 54-38; O.7397, 7930; C75, § 23-34; O.9500; C79, § 23-34; O.10,411, 10,482; C91, § 23-34; O.15,883)

Sec. 102-608. Special restrictions for newsracks and trash containers.

(a) In addition to the general regulations set forth in this article, newsracks and trash containers on public property are subject to this section.

(b) No newsrack shall be located:

(1) Within five feet of any fire hydrant, fire or police alarm box, or other emergency facility.

(2) Within two feet of any marked crosswalk or any driveway.

(3) Where it restricts access to a bus shelter or a bus bench.

(4) Where it interferes with loading or unloading at the front and rear doors of buses.

(5) On any handicap access ramp.

(6) In such a manner as to reduce the clear space for the passageway of pedestrians on sidewalks to a continuous and unobstructed width of less than six feet.

(7) On the right-of-way of any street where parking is prohibited on both sides for all or any portion of the day or within 50 feet of such street on the right-of-way of any intersecting street, except that this shall not apply to DX1, DX2, or DXR commercial district zoned areas.

(8) Within the vision clearance triangle as defined in section 114-14 of this Code.

(c) Newsracks on public street rights-of-way shall only be placed either:

(1) Not more than one foot back from the face of the curb;

(2) Not more than six inches from a public utility pole or a traffic sign pole located near the curb; or

(3) Parallel to the wall of a building and not more than six inches from the wall.

Newsracks placed near the curb shall be placed so that the opening through which newspapers or news periodicals are dispensed does not face the curbline.

(d) No newsrack shall exceed five feet in height or two feet in depth. The maximum width of a newsrack shall be computed by multiplying by two and one-half feet the number of laterally installed vending compartments, which number shall not include vending compartments installed on top of other such compartments.

(e) A newsrack which is permitted through an areaway permit may be moved to a new site without the requirement of a new application and fee, provided that a site plan showing the exact new location is filed with the city engineer no later than the next business day of the city after the move and provided that the placement of the newsrack at the new site is in compliance with this article and any other applicable legal requirements.

(f) No privately owned trash container shall be located on a public street right-of-way, other than alleys, except for those containers required to facilitate solid waste collection from residential premises by the city pursuant to sections 98-51 through 98-58, inclusive, of this Code.

(g) All privately owned newsracks and trash containers on public property shall obtain a valid areaway permit, issued by the engineering department.

(h) No privately owned newsracks and trash containers shall be placed on public property if such placement would cause such public property to fail to comply with the Americans with Disabilities Act.

(i) It shall be the responsibility of the owner/user of any newsrack/trash container placed on public property to maintain an accurate up-to-date listing with the city engineer of the locations at which each such newsrack/trash container is placed.
(C79, § 23-35; O.10,411, 10,482, 10,569; C85, § 23-35; O.11,406, 11,583; C91, § 23-35; O.15,819, 15,883)

Sec. 102-609. Reserved.

Editor's note—Ord. No. 15,883, § 1, adopted April 20, 2020, repealed § 102-609, which pertained to newsracks within skywalk system and derived from Code 1979, § 23-35.01; Ord. No. 10,569; Code 1985, § 23-35.01; Ord. No. 11,583; Code 1991, § 23-35.01; Ord. No. 13,910; Ord. No. 14,045.

Sec. 102-610. License issuance, expiration; proration of fee; temporary placement of newsracks.

(a) The city engineer shall review the information provided by each applicant and may grant a license which he or she determines to be in compliance with this article and any other applicable legal requirements. If the city engineer elects to proceed with a license for an encroachment, the city engineer shall draft a license agreement and send the agreement to the applicant for signature.

(b) Upon receipt of the original version of the license agreement executed by the applicant, and authorization is requested to construct, use, and or maintain an encumbrance within city-owned property, including public right-of-way, a license may be granted for a period of up to three years. Any license granted for a period of more than three years must be approved by the city council, after notice and a public hearing is held as required by law. The fee for each license shall be negotiated between the city and licensee but in no event shall such fee be less than the fair market value of the interest which a licensee shall acquire.

(c) Any person desiring to immediately place one or more newsracks on public property shall have the right to so place such a newsrack prior to the filing of the application and the payment of the fee, provided that the newsrack is placed and thereafter maintained in such a manner as to be in compliance with this article and any other applicable legal requirements and provided that the required application is filed and the required fee paid no later than the next business day of the city after the newsrack is so placed.

(d) When authorization is requested to construct, use and maintain vehicle impact protection devices pursuant to this article in the border area, a license may be granted for a period of up to three years by the city engineer, or upon approval of the city council for such a period exceeding three years as the city council may determine after notice and hearing as required by law. The fee or rental for such space shall be negotiated between the city and the licensee but in no event shall such fee or rental be less than the fair market value of the interest which a licensee shall acquire.
(C42, §§ 82-2, 82-13, 82-13.01; O.4784, 5632; C54, §§ 54-39, 54-45, 54-45.01; O.5995; C62, §§ 54-39, 54-45 to 54-45.02; O.7397, 7930, 8373; C75, C79, §§ 23-35, 23-41; O.10,411; C79, § 23-36; O.10,482; C91, § 23-36; O.15,660, 15,883)

Sec. 102-610.1. License of vehicle impact protection devices.

The city engineer is authorized to grant a license for vehicle impact protection devices in the border area that meet the requirements set forth in this article, all other applicable provisions of the Municipal Code, and the following requirements:

(1) Vehicle impact protection devices must be immediately adjacent to and border an event venue as defined in this article.

(2) Applicant shall demonstrate to the satisfaction of the city engineer that there is not sufficient room within applicant's adjacent property for the location of vehicle impact protection devices to adequately provide protection for the size of crowds using the event venue.

(3) All vehicle impact protection devices shall be located outside of the vision clearance triangle in accordance with section 114-14 of the municipal code. Vehicle impact protection devices shall be located outside a 5 foot × 5 foot area at the top of the Americans with Disability Act (ADA) curb ramp at intersections.

(4) Vehicle impact protection devices shall not be linked in any manner, including with ropes or chains. Bollards shall be no larger than 12 inches in diameter, no higher than four feet from the top of sidewalk, and they must have a white or yellow reflective band. Barriers shall be no longer than 15 feet and no higher than four feet from the top of sidewalk.

(5) Vehicle impact protection devices shall be a minimum of 30 inches from the back of curb and, when possible, placed in line with street furniture, light poles, and tree wells. In accordance with section 102-607(b), devices within the accessible path for pedestrians as defined by the ADA must be a minimum of 48 inches from perimeter edge to perimeter edge. Outside of the accessible path, the minimum distance from perimeter edge to perimeter edge can be reduced to 36 inches. Removable or retractable bollards can be spaced closer than 36 inches, but for no more than a continuous distance of 50 feet and they cannot be placed within the accessible path.

(6) The design, installation, location, size, spacing, color and height of all vehicle impact protection devices within the border area must comply with the applicable requirements of the Americans with Disabilities Act and its implementing regulations. It is the obligation of the licensee to comply with those requirements at its sole cost and expense at all times, including the cost of moving or removing those vehicle impact protection devices that do not comply as determined by the city engineer.

(7) Vehicle impact protection devices shall be repaired and maintained to the appearance consistent with what was approved by the city engineer for installation. Licensee shall be responsible for maintaining and repairing the vehicle impact protection devices, including but not limited to any alterations or damage caused by third parties.

(8) Vehicle impact protection devices granted a license are placed within the border area at licensee's sole risk and cost. The city shall not be required to incur any cost associated with the vehicle impact protection devices.

(9) The location of vehicle impact protection devices and their associated footings shall not interfere with access to any utilities located and/or operated within the border area. All licenses for vehicle impact protection devices shall be issued subject to existing and future utilities within the border area. The license agreement shall provide that, in the event any vehicle impact protection devices are impacted, removed or damaged for the installation, construction, repair, reconstruction, relocation or maintenance of utilities within the border area, licensee shall be solely responsible for the repair and reinstallation of all vehicle impact protection devices at licensee's sole expense. All damage to utilities resulting from the installation, maintenance and use of vehicle impact protection devices shall be at the sole cost of the licensee.

(10) Licensee shall obtain all required permits and licenses required therein, including but not limited to sidewalk permits and/or ROW excavation permits.

(11) Additional requirements as may be deemed advisable by the city engineer with respect to a specific location.

(O.15,660)

Sec. 102-611. Indemnification.

In addition to any terms and conditions negotiated between the city and the licensee, upon

signing a license under this article, the licensee shall be deemed to have agreed to hold the city harmless from and indemnified against all damages arising from the construction, use or maintenance of the encroachment. Any person who publishes a newspaper of general circulation as defined by state law and who installs delivery receptacles for such newspaper in accordance with subsection 102-604(7) of this article, shall be deemed to have agreed to hold and shall hold the city harmless from and indemnified against all damages arising from the installation, placement, use or maintenance of such receptacles.
(C42, § 82-2; C54, § 54-43; O.5995; C62, § 54-43; O.7930, 7983; C75, C79, § 23-39; O.10,411; C79, § 23-37, O.10,482; C85, § 23-37; O.11,583; C91, § 23-37; O.15,883)

Sec. 102-612. Insurance.

Before granting a license under this article, the city engineer may require liability insurance in an amount satisfactory to the city engineer and sufficient to hold the city harmless from and indemnified against all damages arising from or growing out of the construction, use or maintenance of such encroachment, when the city engineer has determined that such insurance is required by the public interest; provided, however, that such liability insurance shall not be required with respect to any newsrack licensed under this article.
(C42, § 82-2; C54, § 54-44; O.5995; C62, § 54-44; O.7930; C75, § 23-40; O.9500; C79, § 23-40; O.10,411; C79, § 23-38; O.10,482; C91, § 23-38; O.15,883)

Sec. 102-613. Failure to secure or renew license.

(a) Any person failing to secure a license required under this article shall cause the subject encroachment to be removed immediately from the public property and the public property restored to its condition prior to the installation of the encroachment.

(b) Any encroachment license not renewed on or before its date of expiration shall automatically expire, and the encroachment used or maintained thereunder shall immediately be removed by the licensee without further notice from the city engineer and the public property restored to a condition acceptable to the city engineer.

(c) Any license issued pursuant to this article which has expired may be reinstated by payment of the required fee plus an administrative charge of ten percent for each month or part thereof for which the fee is overdue, up to a maximum of 100 percent of the original fee.

(d) Any encroachment with an expired license which has reached a penalty of 30 percent may be dealt with in accordance with subsections 102-615(b) and (c) and section 102-617 of this article when the city engineer deems such action appropriate.
(C42, § 82-15; C54, § 54-46; O.5995; C62, § 54-46; O.7930, 8504; C75, § 23-42; O.9500; C79, § 23-42; O.10,411; C79, § 23-39; O.10,482; C85, § 23-39; O.11,406, 11,583; C91, § 23-39; O.15,143, 15,660)

Sec. 102-614. Revocation of license.

(a) In addition to any terms negotiated between the city and the licensee, the city engineer may revoke any license issued under this article for any of the following reasons:

(1) Failure to comply with the requirements of the license, this article, other applicable provisions of this code, or any other applicable legal requirements.

(2) Fraud, deceit or misrepresentation in connection with an application for a license.

(3) City engineer determination that the space where an encroachment is located shall be required for public use.

(4) For any other reason in the city's interest.

(b) When a license is revoked by the city engineer pursuant to (3) or (4), the grantee shall be entitled to a partial fee refund for any remaining portion of the license term, which refund shall be prorated to the month of removal of the encroachment. In all other cases where a license

is revoked, no refund of any portion of the required annual fee shall be paid to the grantee.

(c) The city engineer may revoke a license and order removal of the encroachment and restoration of the public property to its condition prior to the installation of the encroachment by giving written notice of such revocation and order.
(C42, §§ 82-2, 82-10, 82-11, 82-14; C54, §§ 54-40, 54-41, 54-42; O.5995; C62, §§ 54-40, 54-41, 54-42; O.7397, 7930; C75, §§ 23-36, 23-37, 23-38; O.9500; C79, §§ 23-36, 23-37, 23-38; O.10,411; C79, § 23-40; O.10,482; C91, § 23-40; O.14,147, 15,660, 15,883)

Sec. 102-615. Removal.

(a) *License.* Whenever the city engineer has revoked a license required under this article or the license has expired, the owner or user of the subject encroachment shall cause it to be removed immediately from the public property.

(b) *Three day notice.* Whenever a department finds any encroachment constructed, used or maintained without the required license having been secured or maintained in effect, the director of that department may, as an alternative to any other remedy allowed by this Code, order the removal of the encroachment by giving written notice of such order by certified mail to the address of the owner or user of the encroachment, if known, or, if such address is not known, he or she may post such notice on or next to the encroachment. The notice shall state the name, address and telephone number of the department director; the location and a description of the encroachment; that the encroachment is in violation of the requirements of this article; that the owner or user is ordered to cause immediate removal of the encroachment from the public property; that the encroachment may be removed and stored, as applicable, by the city for a period of time in accordance with city policy, but not less than 30 days after the date of removal designated in the notice, which date of removal shall be no less than three days after the date the notice was mailed or first posted, as the case may be. If such notice is given and the encroachment is still on public property after the date specified in the notice, the department director may cause removal and storage, as applicable, of the encroachment for a period of time no less than 30 days in accordance with city policy.

(c) *Removal without notice.* As an alternative to any other remedy allowed by this Code and notwithstanding any other section of this article, a department director may cause immediate removal and storage, as applicable, for a period of time no less than 30 days from the date of removal in accordance with city policy, of any encroachment on public property where its construction, use or maintenance unreasonably endangers the safety of persons or property or unreasonably interferes with or impedes the flow of pedestrian or vehicular traffic. Any person aggrieved by the removal of an encroachment pursuant to this section may appeal the city's decision to remove and store the encroachment, as applicable, pursuant to the administrative appeal process set forth in chapter 3 of this Code by filing a written notice of appeal with the city clerk within 30 days commencing on the date of the city's removal of the encroachment. Failure to timely file a written notice of appeal shall constitute a waiver of any right to contest the city's decision to remove and store, as applicable, the encroachment.

(d) *Pre-removal hearing.* Following the service of a notice under subsection (b) above, the owner or user of the encroachment may appeal the city's decision to remove the encroachment pursuant to the administrative appeal process set forth in chapter 3 of this Code by filing a written notice of appeal with the city clerk within 3 days from the date of the notice to remove. Failure to timely file a written notice of appeal shall constitute a waiver of any right to contest the city's decision to remove the encroachment. The administrative hearing officer's authority in a pre-removal appeal hearing shall be limited to a review of the city decision to remove the encroachment from its present location.

(e) *Post-removal hearing.* The owner or user of the encroachment may appeal the city's decision under subsection (b) or (c) to retain and store the property or for property damage, loss, or disposal, of the encroachment pursuant to the

administrative appeal process set forth in chapter 3 of this Code by filing a written notice of appeal with the city clerk within 30 days commencing on the date of the city's removal of the encroachment. Failure to timely file a written notice of appeal shall constitute a waiver of any right to contest to appeal such decision. The administrative hearing officer's authority on appeal shall be limited to ordering personal property that is stored by the city to be provided to the appellant.
(C42, § 82-15; C54, § 54-46; O.5995; C62, § 54-46; O.7930; C62, § 54-47; C75, C79, § 23-43; O.10,411; C79, § 23-41; O.10,482; C85, § 23-41; O.11,583; C91, § 23-41; O.15,143, 15,660, 16,381)

Sec. 102-616. City council hearings; notice.

(a) At least ten days prior to the date of any city council hearing required under section 102-615 of this article, the city engineer shall send by certified mail with return receipt a written notice to the address of the responsible person designated in the application for the license, or if no such application was filed, to the address of the owner or user of the encroachment or, if the identity of the owner or user is unknown, the city engineer shall post such notice on or in the near vicinity of the encroachment. The notice shall state the address and telephone number of the city engineer; the subject matter to be discussed at the hearing; and the date, time and place of the hearing.

(b) At any city council hearing required under section 102-615 of this article, the owner or user of the subject encroachment may be represented by legal counsel, may call witnesses and present evidence on his or her behalf.
(C79, § 23-42; O.10,411, 10,482; C91, § 23-42; O.15,143, 15,883)

Sec. 102-617. Violation constitutes a public nuisance.

(a) Every encroachment, the removal of which is required by this article, shall also constitute a public nuisance subject to abatement and enforcement pursuant to the procedures set forth in article VI of chapter 42 of this Code.

(b) The processes set forth in this article are not exclusive remedies for the city and alternate relief may be sought pursuant to any other sections of this Code or Iowa law that may be applicable, as well as any terms negotiated between the city and the licensee.
(C42, § 82-15; C54, § 54-46; O.5995; C62, § 54-46; O.7930; C62, § 54-47; C75, C79, § 23-43; O.10,411, 10,482; C85, § 23-43; O.11,583; C91, § 23-43; O.15,143, 15,608, 15,883)

Sec. 102-618. Reserved.

Editor's note—Ord. No. 15,883, § 1, adopted April 20, 2020, repealed § 102-618, which pertained to license fees for encroachments under, upon or in public property and derived from Code 1942, § 82-5; Code 1954, §§ 54-47, 54-48; Ord. No. 5995; Code 1962, §§ 54-47, 54-48; Ord. No. 7930; Ord. No. 8373; Code 1975, § 23-44; Ord. No. 9125; Ord. No. 9500; Code 1979, § 23-44; Ord. No. 10,087; Ord. No. 10,100; Ord. No. 10,411; Ord. No. 10,482; Ord. No. 10,569; Code 1991, § 23-44; Ord. No. 14,095; Ord. No. 14,174.

Sec. 102-619. Reserved.

Editor's note—Ord. No. 15,883, § 1, adopted April 20, 2020, repealed § 102-619, which pertained to lease fees for newsracks within skywalk system and derived from Code 1979, § 23-44.01; Ord. No. 10,569; Code 1991, § 23-44.01; 0rd. No. 14,174.

Sec. 102-620. Reserved.

Editor's note—Ord. No. 15,883, § 1, adopted April 20, 2020, repealed § 102-620, which pertained to license for grates and openings and derived from Code 1942, § 82-6; Code 1954, § 54-49; Ord. No. 5995; Code 1962, § 54-49; Ord. No. 7930; Code 1975, § 23-45; Ord. No. 9125; Ord. No. 9500; Code 1979, § 23-45; Ord. No. 10,411; Ord. No. 10,482; Code 1985, § 23-45; Ord. No. 11,583; Code 1991, § 23-45; Ord. No. 14,174.

Sec. 102-621. Reserved.

Editor's note—Ord. No. 15,883, § 1, adopted April 20, 2020, repealed § 102-621, which pertained to leases and fees for encroachments over public property and derived from Code 1942, § 82-7; Code 1954, § 54-50; Ord. No. 5995; Code 1962, § 54-50; Ord. No. 7930; Ord. No. 8079; Ord. No. 8086; Ord. No. 8092; Ord. No. 8373; Code 1975, § 23-46; Ord. No. 9125; Ord. No. 9500; Code 1979, § 23-46; Ord. No. 10,411; Ord. No. 10,482; Code 1985, § 23-46; Ord. No. 11,583; Code 1991, § 23-46; Ord. No. 13,695; Ord. No. 13,716; Ord. No. 14,174.

Sec. 102-622. Reserved.

Editor's note—Ord. No. 15,883, § 1, adopted April 20, 2020, repealed § 102-622, which pertained to lease fee for architectural projections and derived from Code 1962, § 54-50.01; Ord. No. 7930; Code 1975, § 23-47; Ord. No. 9500; Code 1979, § 23-47; Ord. No. 10,411; Ord. No. 10,482; Code 1985, § 23-47; Ord. No. 11,583; Code 1991, § 23-47; Ord. No. 14,174.

Sec. 102-623. Reserved.

Editor's note—Ord. No. 15,883, § 1, adopted April 20, 2020, repealed § 102-623, which pertained to license fee for coin-operated telephones installed upon public property and derived from Code 1962, § 54-50.02; Ord. No. 7595; Ord. No. 7930; Code 1975; Code 1979, § 23-48; Ord. No. 10,411; Ord. No. 10,482; Code 1991, § 23-48; Ord. No. 14,174.

Sec. 102-624. Exemption from fees.

Any governmental agency, organization, or institution created by the federal government, the state or any political subdivision of the state shall be exempt from the payment of fees required by this article for property directly used by it for public purposes and not held for pecuniary profit. (C54, § 54-38.01; O.6165; C62, § 54-38.01; O.7759, 7930; C62, § 54-50.03; O.7983; C75, C79, § 23-49; O.10,179, 10,371, 10,411, 10,482; C91, § 23-49)

Sec. 102-625. Payment of fees.

All fees for licenses granted under this article shall be paid to the city treasurer.
(C42, § 82-8; C54, § 54-51; O.5995; C62, § 54-51; O.7930; C75, C79, § 23-50; O.10,411, 10,482; C91, § 23-50; O.15,883)

Sec. 102-626. Reserved.

Editor's note—Ord. No. 15,883, § 1, adopted April 20, 2020, repealed § 102-626, which pertained to notice of fee payment due and derived from Code 1942, § 82-8; Code 1954, § 54-52; Ord. No. 5995; Code 1962, § 54-52; Ord. No. 7930; Code 1975; Code 1979, § 23-51; Ord. No. 10,411; Ord. No. 10,482; Code 1985, § 23-51; Ord. No. 11,583; Code 1991, § 23-51.

Secs. 102-627—102-655. Reserved.

ARTICLE IX. RIGHT-OF-WAY OCCUPANCY

DIVISION 1. GENERALLY

Sec. 102-656. Legislative findings; statement of purpose and intent.

(a) The city council makes the following findings and adopts the following statement of purposes:

(1) The city's street and alley rights-of-way are owned or held by the city primarily for the purpose of pedestrian and vehicular passage and for the city's provision of essential public safety services, including police, fire, and emergency medical response services; and public health services, including sanitary sewer, water, and storm drainage services.

(2) Pedestrian and vehicular passage, and the public safety and public health services mentioned in subsection (a)(1) of this section should in all cases be considered and treated as the dominant and preeminent uses of public rights-of-way.

(3) All other uses of public rights-of-way, including use for the provision of utility services, private communication services, and private utility services, must in all cases be subordinate to the use of the rights-of-way for pedestrian and vehicular passage and for the provision of the public safety and public health services mentioned in subsection (a)(1) of this section.

(4) In order to provide for the health, safety and well-being of its citizens, as well as to ensure the structural integrity of its streets and the use of the rights-of-way, the city strives to keep its rights-of-way in a state of good repair and free from unnecessary encumbrances. Although the general population bears the financial burden for the upkeep of the rights-of-way, a primary cause for the early and excessive deterioration of its rights-of-way is their frequent excavation by persons whose equipment is located therein.

(5) Right-of-way obstructions disrupt the flow of vehicular and pedestrian traffic and are a source of frustration for merchants, business owners and the general population who either incur travel delays due to such obstructions or who must change travel plans to avoid such obstructions. Persons whose equipment is located within the right-of-way are a primary cause of these frequent obstructions.

(6) The city recognizes that it holds the rights-of-way within its geographical boundaries as an asset in trust for its citizens. The city and other public entities have invested millions of dollars in public funds to acquire, build, and maintain the right-of-way. It also recognizes that some persons, by placing their equipment in the right-of-way and charging the citizens of the city for goods and services delivered thereby, are using for private gain this property held by the city for the public good. Although such services are often necessary or convenient for the citizens, such persons receive revenue and/or profit through their use of public property.

(7) In response to the findings in this subsection, the city council amends article VI of this chapter by enacting new divisions 1 and 2 of this article relating to right-of-way administration and right-of-way permits, and division 3 of this article relating to franchises, licenses, or leases for use of city rights-of-way. The city council explicitly finds and declares that this section enacting new divisions 1 and 2 of this article impose reasonable regulations on the placement and maintenance of equipment within city rights-of-way or to be placed therein at some future time. Under this article, persons disturbing and obstructing the rights-of-way will bear a fair share of the financial responsibility for their integrity. This article also provides for the recovery of out-of-pocket and projected costs from persons using the public rights-of-way. Finally, this article provides for uniform procedures and standards for the franchising, licensing, and leasing of rights-of-way for private or commercial use.

(8) The city council finds that it is in the public interest to provide for the payment of right-of-way permit fees by all persons using and occupying the right-of-way for the purpose of operating their businesses. This provides equity by requiring all users of the right-of-way to pay compensation to the city so that it may recoup the costs imposed on the city attributable to such use.

(9) In these situations, the city council desires to exercise its lawful police power and common law authority and all statutory authority which is available to it, including but not limited to the powers conferred on it under its Charter and under this Code and I.C. chs. 362 through 392. The city council finds and determines that the public interest will be best protected by adopting this article regulating the use and occupancy of public rights-of-way, conditioned upon the payment of right-of-way permit fees.

(10) The city council does not intend in this article to provide for the creation or establishment of a franchise or license for general and longterm use of the right-of-way by any person, nor does the council intend to provide for the creation or establishment of a permit for general or longterm use of the right-of-way, except as to limited, shortterm right-of way permits provided for in section 102-707 of this article.

(11) The city council recognizes that this article represents a significant departure from existing city policies and procedures regarding the regulation of private use of city rights-of-way. The city council further recognizes that city staff charged with enforcing this article will require a significant amount of time to fully implement it, and that those regulated by this article will likewise require a significant amount of time to familiarize themselves with this article and its requirements and to come into compliance therewith. Accordingly, this article provides in detail for the phased implementation of its provisions.

(b) The city manager and city engineer are directed, during the implementation phase, to give those regulated by this article advice, assistance, and adequate opportunity to comply with its requirements. The city manager and city engineer are further charged with the responsibility of developing and promulgating implementation regulations consistent with the phased implementation sections of this article. Furthermore, the city engineer is directed to periodically report to the city council on the status and progress of implementation, to report to the city council any unanticipated problems in implementing this article, and to report to the city council and seek formal approval of any changes to or delays in the implementation schedule.

(C42, §§ 84-1, 111-9; C54, C62, § 54-64; O.7397; C75, C79, C85, § 23-53; O.11,711; C91, § 23-53; O.13,010, O.13,638)

Sec. 102-657. Definitions.

The definitions in this section apply to divisions 1 through 3 of this article. References to sections are, unless otherwise specified, references to sections in this Code. Defined terms remain defined terms whether or not capitalized in the text. The following words, terms and phrases, when used in divisions 1 through 3 of this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Applicant means any person requesting permission to excavate or obstruct a right-of-way.

City cost or *city cost component* means the direct and indirect costs borne by the city for management of public rights-of-way, including but not limited to pavement management, traffic management, risk management, financial management, cost recovery, infrastructure oversight, budget analysis, recordkeeping, legal assistance, systems analysis, application processing and checking, issuing permits, inspecting job sites, creating and updating mapping systems, degradation costs, construction costs, operating costs, disruptive costs, and including other costs the city may incur in managing public rights-of-way and in performing all of the tasks required by this article.

City engineer means the city engineer, as director of the engineering department, or his or her designee.

City manager means the city manager or his or her designee.

City utilities or *city enterprises* means any city-owned and/or city-operated utility other than the city stormwater management utility.

Communications system means any telephone or telegraph system or any other system of cables, wires, fibers, or conduits and any related equipment, facilities, manholes or overhead poles operated and maintained for communications purposes, or operated for the purpose of transmitting data, but excluding cable television systems franchised to provide that service by the city.

Customer means any person who purchases any utility services provided by a utility or any other person occupying or using the right-of-way.

Disruptive cost or disruptive cost component means the cost the city will incur that is reasonably related to the disruption or interruption of normal vehicular and/or pedestrian usage of the right-of-way.

Department means the city engineering department.

Department inspector means any person authorized by the city engineer to carry out inspections related to divisions 1 and 2 of this article.

Disruptive cost or disruptive cost component means the cost the city will incur that is reasonably related to the disruption or interruption of normal vehicular and/or pedestrian usage of the right-of-way.

Downtown business district means the portion of the city lying within and bounded by the following: on the east by Southeast Fourteenth Street, on the north by Interstate 235 (McVicar Freeway), on the west by Fleur Drive, and on the south by the Raccoon and Des Moines Rivers.

Emergency means a condition that poses a clear and immediate danger to life or health or of a significant loss of property or which prevents the performance of or threatens to cause a delay in the performance of vital city operations or activities.

Equipment means any tangible thing located in any right-of-way, including underground and in-ground irrigation facilities and site plan approved tree wells, but excluding street trees required pursuant to city subdivision regulations and other ornamental plantings.

Excavate means to dig into or in any way remove or physically disturb or penetrate any part of a right-of-way.

Excavation permit means the permit which, pursuant to divisions 1 and 2 of this article, must be obtained before a person may excavate a right-of-way.

Excavation permit fee means money paid to the city by an applicant for an excavation permit to cover the costs as provided in section 102-711.

Franchisee means any person who has been granted a franchise by the city for the use or occupancy of right-of-way or who is granted a franchise for the use or occupancy of right-of-way in accordance with division 3 of this article.

High-intensity corridor means a corridor where the city engineer has determined that no new utilities can be installed in the right-of-way, until such time as a public common corridor can be developed.

In, when used in conjunction with a right-of-way, means over, above, in, within, on or under a right-of-way.

Lessee means any person to whom the city has granted a lease to use or occupy the right-of-way or to whom the city grants a lease to use or occupy the right-of-way in accordance with division 3 of this article.

Licensee means any person to whom the city has issued a license to use or occupy a right-of-way or to whom the city issues a license to use or occupy a right-of-way in accordance with division 3 of this article.

Local exchange area means an area, as established under regulations of the state, in which intra-area communications service is provided by an incumbent local exchange carrier and/or a competitive local exchange service provider or carrier, as such entities are defined and regulated pursuant to state or federal law and regulation.

Local representative means the person or designee of such person authorized by a registrant to accept service and to make decisions for that registrant regarding all matters within the scope of divisions 1 and 2 of this article.

Long distance carrier means the operator of a long distance system.

Long distance system means a communications system furnishing communications services between stations located in different local exchange areas.

Non-allocable right-of-way management program costs or *non-allocable costs* means right-of-way management costs which will be incurred by the city, but which will not be allocable to particular users of the right-of-way and which cannot be recovered through permit fees.

Obstruct means to impede the free and unrestricted use of the right-of-way by others or to place any tangible object upon the surface of a right-of-way so as to hinder free and open passage over that or any part of the right-of-way, or so as to effectively impede the free and unrestricted use of the right-of-way by others.

Obstruction permit means the permit which, pursuant to divisions 1 and 2 of this article, must be obtained before a person may obstruct a right-of-way.

Obstruction permit fee means money paid to the city by an applicant for an obstruction permit to cover the costs as provided in section 102-711.

Outlay and expense or all outlay and expense means the full and actual costs and expenses incurred by the city, including interest, benefits and overhead where applicable, and including but not limited to all contract or employee expense, all equipment usage or rental, materials, testing, outside experts, attorneys' fees including overhead expenses of the city's staff attorneys, and all costs and expenses of litigation as they are incurred by the city.

Permit or right-of-way permit means a permit to excavate or obstruct a right-of-way issued by the city pursuant to division 2 of this article or a permit to excavate a right-of-way issued pursuant to the provisions of this article, as those provisions existed prior to September 14, 1998.

Permittee means any person to whom a permit to excavate or obstruct a right-of-way has been issued by the city pursuant to division 2 of this article or any person to whom a permit to excavate a right-of-way has been issued pursuant to the provisions of this article, as those provisions existed prior to September 14, 1998.

Person means any natural or corporate person, business association or other business entity, including but not limited to a partnership, a sole

proprietorship, a political subdivision, a public or private agency of any kind, a utility, a successor or assign of any of the foregoing, or any other legal entity.

Probation means the status of a person that has not complied with the conditions of division 1 or 2 of this article.

Probationary period means the one-year period which commeces on the date that a person has been notified in writing that he or she has been put on probation.

Registrant means any person who has registered as required under division 1 of this article due to the fact that the person:

(1) Has or seeks to have its equipment located in any right-of-way; or

(2) In any way occupies or uses or seeks to occupy or use the right-of-way or any equipment located in the right-of-way.

For purposes of the regulatory provisions of this article, as set forth in section 102-661.01, registrant includes any person who uses or occupies the right-of-way, regardless whether the city has implemented the registration provisions of this article, and regardless whether such person has registered with the city as required by this article, but excludes SWF permittees.

Restoration means the process by which an excavated or obstructed right-of-way is returned to its proper and required condition pursuant to the city's utility accommodation and street restoration specifications.

Restoration fee means an amount of money paid to the city by a permittee to cover the cost of restoration as provided and required in section 102-717.

Right-of-way means the surface and space above and below any public street, boulevard, road, highway, freeway, lane, alley, court, sidewalk, parkway, tunnel, viaduct, or bridge which has been officially dedicated for public travel and which has traditionally been used for the provision of utility services to the public, in which the city has an interest in law or in equity, whether held in fee or other estate or interest, or as a trustee for the public; provided, however, that skywalks, sidewalks within public cemeteries, and sidewalks and trails within public parks and on river levees shall not be considered right-of-way available for private or commercial use under this article.

Right-of-way permit fee means either the excavation permit fee or the obstruction permit fee or both, depending on the content, required by divisions 1 and 2 of this article.

Right-of-way user means any person who has equipment located in any right-of-way, or who occupies or uses the right-of-way or any equipment in the right-of-way, and includes registrants, franchisees, licensees, lessees and unregistered users as herein defined.

Service or utility service means and includes:

(1) The services provided by a corporation organized for the purposes set forth in I.C. § 476.1 et seq., or provided by a public utility as therein defined; and

(2) Those services for which cities have been granted franchising authority pursuant to I.C. § 364.2, including electric light and power, heating, telegraph, cable television, district telegraph and alarm, motorbus, trolley bus, street railway or other public transit, water works, or gasworks services provided to customers within the city.

Small wireless facility ("SWF") means a wireless facility that meets the following requirements:

(1) Each antenna is no more than six cubic feet in volume.

(2) a. All other equipment associated with the small wireless facility is cumulatively no more than 28 cubic feet in volume.

b. For purposes of this subparagraph, volume shall be measured by the external displacement of the primary equipment enclosure, not the internal volume of such enclosure. An associated electric meter, concealment, telecommunications demarcation box, ground-based enclosures,

battery backup power systems, grounding equipment, power transfer switch, cutoff switch, cable, conduit, and any equipment that is concealed from public view within or behind an existing structure or concealment may be located outside of the primary equipment enclosure and shall not be included in the calculation of the equipment volume.

(3) The city has determined that the design and installation of the small wireless facility reasonably matches the aesthetics of an existing utility pole or wireless support structure that incorporates decorative elements.

(4) The city has determined that the small wireless facility will not result in any noncompliance by the city with the federal Americans With Disabilities Act.

(5) The city has determined that the small wireless facility will not impair, interfere with, or preclude the safe and effective use of facilities already located in the public right-of-way for pedestrian, vehicular, utility or other city public right-of-way purposes.

Small wireless facility public right-of-way use permittee or SWF permittee means any person to whom a small wireless facility public right-of-way use permit, also known as a SWF permit, has been issued by the city for the placement of a small wireless facility within the right-of-way in accordance with division III of this article.

Supplementary application means an application made to excavate or obstruct more of the right-of-way than allowed in, or to extend the duration of, a permit that has already been issued.

System or utility system means all equipment which a person has that is located in public right-of-way and that is used to provide a service either to the person or to others as part of the person's business.

Transfer means the sale, assignment, or conveyance, in whole or in part, of a registrant's, franchisee's, or licensee's equipment in the right-of-way to another person; the sale, assignment, or conveyance, in whole or in part, of a registrant's, franchisee's, or licensee's business, whether pursuant to sale, merger, or reorganization, to another person; or the sale, assignment, or conveyance, in whole or in part, of a franchisee's franchise or a licensee's license to another person.

Transferee means the person to whom a registrant's, franchisee's, or licensee's equipment in the right-of-way is sold, assigned, or conveyed, in whole or in part; to whom a registrant's, franchisee's, or licensee's business is sold, assigned, or conveyed, in whole or in part; or to whom a franchisee's franchise or a licensee's license is sold, assigned, or conveyed, in whole or in part.

Unit or *unit of equipment* means utility equipment placed in the right-of-way at individual location(s) and that is not part of and/or is measured separately from a lineal-footage equipment system.

Unregistered right-of-way user or unregistered user means any person who has equipment located in any right-of-way, or who occupies or uses the right-of-way or any equipment in the right-of-way, but is not registered as required by section 102-661.

Unused equipment means equipment located in the right-of-way which has remained unused for six months or more and for which the registrant is unable to provide proof that it has either a plan to begin using that equipment within the next 12 months or a potential purchaser or user of that equipment for the same purpose. Unused equipment shall not be deemed to include equipment which is installed as backup equipment to be used in the event of damage to or outage of equipment which is being used or which is installed to provide capacity to meet future service needs.

Utility accommodation and street restoration specifications means the utility accommodation and street restoration specifications approved by the city council on June 24, 1991, pursuant to roll call no. 91-2686.

Utility pole means a pole or similar structure owned or installed by or on behalf of a SWF

permittee that is designed specifically for and used to carry one or more small wireless facilities and/or transmission equipment or wires for wireless telecommunications service use and that meets the following requirements:

(1) The utility pole does not exceed the greater of ten feet in height above the tallest utility pole, as defined in Iowa Code Section 8C.2, existing on or before July 1, 2017, located within 500 feet of the proposed new, replacement, or modified utility pole, or 40 feet in height above ground level, unless a greater height is allowed by chapter 102 of this Code.

(2) Other than a utility pole replacing an existing pole, the utility pole is not located within an underground district designated by city council resolution or ordinance prior to submittal of the pole application.

(3) Other than a utility pole replacing an existing pole, the utility pole is not located within an area zoned and used for single-family residential use.

(4) The city has determined that the utility pole will not result in any noncompliance by the city with the federal Americans With Disabilities Act.

(5) The city has determined that the utility pole will not impair, interfere with, or preclude the safe and effective use of facilities already located in the public right-of-way for pedestrian, vehicular, utility or other city public right-of-way purposes.

Unless otherwise described, for purposes of the Right-of-Way Management Ordinance, a "utility pole" is considered a "small wireless facility".
(O.13,638, 14,043, 14,202, 15,386, 15,761, 15,909)

Cross reference—Definitions generally, § 1-2.

Sec. 102-658. Administration.

The city engineer, as the director of the engineering department, shall be the principal city official responsible for the administration of the rights-of-way; of registration by users of the rights-of-way; of right-of-way permits; of the franchising, licensing, and leasing of the use of rights-of-way; and of all sections of this Code and city ordinances relating thereto. The city engineer may delegate any or all of his or her duties under this article.
(O.13,638)

Sec. 102-659. Utility coordination committee.

There is created a utility coordination committee. This committee shall be mandatory and advisory to the city engineer. It shall be composed of all registrants and SWF permittees to assist the city in establishing appropriate policies and procedures for regulating the use of rights-of-way to preserve and maximize its asset value to all users, to improve the coordination of work performed in the rights-of-way, and to improve the quality of construction work performed therein.
(O.13,638, 15,761)

Sec. 102-660. Persons subject to registration, permitting and licensing.

(a) Each person who occupies, uses, or seeks to occupy or use the right-of-way or any equipment located in the right-of-way or who has or seeks to have equipment located in any right-of-way shall register with the department. No person may construct, install, repair, remove, or relocate equipment located in any right-of-way or perform any other work on or use any equipment or any part thereof located in any right-of-way, without first being registered with the department. No person shall obstruct or excavate in any street right-of-way without obtaining appropriate permits as required by division 2 of this article.

(b) No person shall construct a tree well in any right-of-way unless such tree well is shown in an approved site plan or a permit for such has been obtained pursuant to division 2 of this article.

(c) No person shall construct an irrigation system in any right-of-way unless a permit for such has been obtained pursuant to division 2 of this article.

(d) No person shall plant a street tree or any ornamental plantings in the right-of-way unless either a permit for such has been obtained pursuant to chapter 122 of this Code or a garden lease has been obtained pursuant to chapter 74 of this Code. Persons constructing or maintaining tree wells or irrigation systems in the right-of-way or planting or maintaining street trees or ornamental plantings in the right-of-way shall not be deemed to use or occupy the right-of-way for purposes of this division and shall not be required to register such use.

(e) A person having a franchise from the city, or a franchise or similar rights from the state of Iowa, for the use of city right-of-way for the provision of a utility service shall be required to register as provided in this division, obtain right-of-way permits and pay right-of-way permit fees to excavate in or obstruct the right-of-way as provided in division 2 of this article. However, if such franchise provides for the payment of a franchise fee, the franchisee shall not be required to pay permit fees in addition to the franchise fee.

(f) City utilities and enterprises and public utilities which occupy and use right-of-way, other than by easement granted of record by the city, for the provision of utility and enterprise services shall be required to register as provided in this division. All city utilities and enterprises and public utilities which occupy and use right-or-way shall obtain right-of-way permits and pay right-of-way permit fees to excavate in or obstruct the right-of-way as provided in division 2 of this article. Work crews and contractors performing work in the right-of-way on behalf of the city and/or public utility shall be required to obtain right-of-way permits and pay right-of-way permit fees to excavate in or obstruct the right-of-way as provided in division 2 of this article.

(g) Governmental entities or agencies of the federal government, the state, or the county which occupy and use right-of-way for the provision of communications or utility services for governmental purposes shall be required to comply with the registration requirements of this division, except the insurance and bonding requirements associated therewith. Such governmental entities and agencies shall be required to obtain right-of-way permits and pay right-of-way permit fees to excavate in or obstruct the right-of-way as provided in division 2 of this article. Such governmental entities or agencies shall be exempt from the licensing requirements of division 3 of this article.
(O.13,638, 14,043, 14,314, 14,366, 15,386, 15,909)

Sec. 102-661. Registration.

(a) For the purposes of this article, registration will consist of completing a registration form and providing registration information to and as required by the city engineer, and providing evidence of liability insurance.

(b) The information provided to the department at the time of registration shall include but not be limited to the following:

(1) Each registrant's name, registration certificate number, address and e-mail address, if applicable, and telephone and facsimile numbers.

(2) The name, address, and e-mail address, if applicable, and telephone and facsimile numbers of a local representative. The local representative shall be available at all times. Current information regarding how to contact the local representative in an emergency shall be provided at the time of registration.

(3) If the registrant is a corporation, a copy of the certificate required to be filed under I.C. ch. 490, as recorded and certified to by the secretary of state.

The registrant shall keep all of the information listed in this subsection current at all times by immediately providing to the department information of proposed or approved changes therein.

(c) Each registrant shall be required to provide a certificate of insurance to the department at the time of registration and to complete that part of the registration form pertaining to insurance and liability. The certificate of insurance shall demonstrate compliance with the insurance and indemnification requirements applicable to registrant's use and occupancy of the city right-of-way, as defined and set forth in this article,

including but not limited to insurance against claims for bodily injury, including death, as well as claims for property damage, arising out of the following:

(1) Use and occupancy of the right-of-way by the registrant, its officers, agents, employees and permittees; and

(2) Construction, reconstruction, repair, maintenance, replacement, monitoring, locating, and use of equipment in the right-of-way by the registrant, its officers, agents, employees and permittees, including but not limited to protection against liability arising from completed operations, damage of underground equipment and collapse of property.

The amount of insurance to be required in each instance shall be determined by the city finance director or designee.
(O.13,638, 14,043, 15,092)

Sec. 102-661.01. Application of regulatory provisions to unregistered users and occupants of the right-of-way.

The regulatory provisions of this division, and of division 2 of this article, including but not limited to sections 102-662 through 102-672, 102-674, 102-709, 102-720, 102-724, 102-725 and 102-726 shall apply to users and occupants of the right-of-way who fail to register as herein provided and required, and the city engineer shall enforce the regulatory provisions of this article as to such unregistered users and occupant; provided that the city engineer may in his or her discretion, after the required date of registration for any user or occupant of the right-of-way, refuse to issue right-of-way permits to such unregistered user or occupant, and may refuse to recognize the status of such person as a user or occupant of the right-of-way.
(O.14,202)

Sec. 102-662. Registrant reporting obligations.

(a) *Operations.* A registrant who intends to construct or emplace new equipment in the right-of-way or who intends to undertake a major maintenance project shall, on or before April 1, file a construction and major maintenance plan with the department. Such plan shall be submitted using a format designated or approved by the city engineer and shall contain the information determined by the city engineer to be necessary to facilitate the coordination and reduction in the frequency of excavations and obstructions of rights-of-way. The plan shall include but not be limited to the following information: (i) the specific locations and the beginning and ending dates of all projects to be commenced during the next calendar year (in this section, a next-year project), and (ii) the tentative locations and beginning and ending dates for all projects contemplated for the two-year period following the next calendar year (in this section, a two-year project). The term "project" in this section shall include both next-year projects and two-year projects. By January 1 of each year the department will have available for inspection in its offices a composite list of all projects of which it has been informed in the annual plans. All registrants are responsible for keeping themselves apprized of the current status of this list. Thereafter, by February 1, each registrant may change any project in the list of next-year projects, and must notify the city engineer and all of the

registrants of all such changes in the list. Notwithstanding the foregoing, a registrant may at any time join in a next-year project of another registrant that was listed by the other registrant.

(b) *Registrants limited to projects identified in construction and major maintenance plan.* A registrant who does not file a construction and major maintenance plan with the department as provided in subsection (a) of this section may be denied right-of-way permits to construct or emplace new equipment or to engage in major maintenance of existing equipment in the right-of-way during the two-year period succeeding the date upon which such plan was due. A registrant who seeks to undertake a project to construct or emplace new equipment in the right-of-way or to undertake a major maintenance project as to existing equipment, which project is not identified in the construction and major maintenance plan for the year in which the registrant seeks to undertake the project, may be denied a right-of-way permit for such project. This subsection shall not apply to emergency repair projects or utility service extension projects which the registrant could not have anticipated for inclusion in the construction and major maintenance plan.

(c) *Annual update of information.* Each registrant is required to maintain such records of the location of its equipment in the rights-of-way within the city and such other records as the city engineer may require as will permit and enable the proper and efficient enforcement of this article. Each registrant shall annually make such reports, in such form as the city engineer may require. Each registrant shall annually certify that the records on file in the city engineer's office are accurate and complete. If the city engineer determines that information contained in such records is erroneous, he or she may require the registrant to conduct an independent audit of such records at the registrant's expense to verify the accuracy and completeness of the information.

(d) *Exemptions.* Registrants who own or occupy buildings abutting a city right-of-way on either side thereof and who have or desire to establish utility or telecommunications connections between such buildings and whose utility or telecommunications equipment is or will be contained within ducts or tunnels which cross, rather than run parallel in, city rights-of-way or who have or will have less than 300 lineal feet of such ducts or tunnels in city rights-of-way are exempt from the requirement of submitting construction and major maintenance plans with respect to:

(1) The construction of ducts or tunnels for such equipment;

(2) The maintenance of equipment within such ducts or tunnels; and

(3) The placement of additional utility or telecommunications equipment (pipes, wires, or cables) within such ducts or tunnels.

(O.13,638)

Sec. 102-663. Mapping data required of registrants.

(a) Under this division, each registrant shall provide to the department information indicating the horizontal and vertical locations, relative to the boundaries of the right-of-way, of all equipment which it owns or over which it has control and which is located in any right-of-way. With respect to equipment which was in place as of December 31, 1998, the registrant may satisfy this requirement by providing copies of maps showing equipment locations which were developed and kept by the registrant in the ordinary course of business, provided that if such maps do not show the location of all such existing equipment, the registrant will be required to field locate equipment not shown on such maps and provide mapping data for such equipment. With respect to equipment which the registrant places within the right-of-way after December 31, 1998, the registrant shall provide mapping data with the specificity and in the format required by the department for inclusion in the mapping system used by the department, as more specifically provided in the city's utility accommodation and street restoration specifications.

(b) Within six months of the acquisition, installation, or construction of additional equipment or any relocation, abandonment, or disuse of

existing equipment, each registrant shall supplement the mapping information required in this section.

(c) Mapping data provided to the city by registrants shall be for the exclusive use of the city in administering the use and occupancy of the public right-of-way within the city and shall not be provided to or relied on by any person for any other purpose. Persons working in the right-of-way shall be required to make use of the state one-call system for utility location, and shall not be entitled to rely on city mapping data for that purpose. At the request of any registrant, any information requested from the department with respect to the location or type of equipment which that registrant maintains or plans to install in the right-of-way, which qualifies as trade-secret information under I.C. § 550.1 et seq., shall be treated as trade-secret information in accordance with I.C. § 22.1 et seq., pertaining to examination of public records.

(d) A registrant's provision of mapping data to the city as required in this section shall not relieve the registrant of its obligation to provide utility accommodation information to the city upon request or direction of the city engineer. Utility accommodation information is such information which is not required to be filed with the city, but may be necessary from time to time for the city to carry out its duties, including but not limited to information regarding the depth and location of a registrant's equipment in the right-of-way with respect to known monuments or other utility equipment; information regarding the type of equipment in place in the right-of-way, the general type of service it provides, and a general description of the customers it serves; and information with respect to the age and service life of equipment in place in the right-of-way.
(O.13,638)

Sec. 102-664. Location of equipment.

(a) *Underground.* Within the underground district, all cables, wires, fibers, pipes and conduits in connection with any utility system shall be placed underground, except where aboveground connection to buildings or other locations aboveground is reasonably necessary. Such aboveground connection shall be by means of poles located, as far as reasonably practicable, within alleys.

(b) *Aboveground.* Outside the underground district, cables, wires, fibers, pipes and conduits in connection with any utility system may be placed either underground or on poles aboveground, except when undergrounding is required pursuant to the city's subdivision or site plan requirements as expressed in this Code. No such poles shall be installed or erected and no license or permit for such shall be issued until the city engineer has approved the proposed location of such poles.

(c) *High-density corridors.* The city engineer shall assign specific corridors within the right-of-way or any particular segment thereof as may be necessary for each type of equipment that is within the right-of-way pursuant to current technology, or that the city engineer expects will someday be located within the right-of-way. Registrants shall, when installing or replacing equipment in the right-of-way, place and locate such equipment in the appropriate corridor, either as provided in the city's utility accommodation and street restoration specifications or as ordered by the city engineer. Excavation and obstruction permits issued by the department, involving the installation or replacement of equipment in the right-of-way, may designate the proper corridor for the equipment, and permittees shall be required to install or place such equipment in the location therein specified.

(d) *Nuisance.* Any equipment found in a right-of-way which has not been registered, or which is found (i) in a location other than the location specified therefor in the city's utility accommodation and street restoration specifications, or (ii) in a location other than the location specified therefor by the city engineer, or (iii) in a location other than the location shown on the maps filed in the office of the city engineer by the person owning or operating that equipment, shall be deemed to be a nuisance, and the city may exercise any remedies or rights it has at law or in equity, including but not limited to bringing an action for nuisance abatement, pursuant to sec-

tion 42-349, in which the city may seek the abatement of the nuisance or authority to take possession of the equipment.

(e) *Limitation of space.* The city engineer shall have the power to prohibit or limit the placement of new or additional equipment within the right-of-way if there is insufficient space to accommodate all of the requests of registrants or persons to occupy and use the right-of-way. In making such decisions, the city engineer shall strive to the extent possible to accommodate all existing and potential users of the right-of-way, but shall be guided primarily by considerations of the public interest, the public's need for the particular utility service, the condition of the right-of-way, the time of year with respect to essential utilities, the protection of existing equipment in the right-of-way, and future city plans for public improvements and developmental projects which have been determined to be in the public interest.
(O.13,638)

Sec. 102-665. Relocation or removal of equipment; payment of city costs due to improper location of equipment.

(a) Under this article, the city engineer shall order the removal or relocation of equipment, as he or she deems appropriate, if the city engineer determines at any time that:

(1) A registrant's or permittee's continued use of the public right-of-way will unduly burden the city or the public in its use of that property;

(2) The public right-of-way which the registrant or permittee is using or occupying will be required for municipal purposes;

(3) The registrant's or permittee's equipment at a particular location will interfere with:

a. A present or future city use of the right-of-way;

b. A public improvement undertaken or to be undertaken by the city;

c. An economic development project in which the city has an interest or investment; or

d. The public's safety or convenience in using the right-of-way for ordinary travel; or

(4) The public health, safety and welfare requires it.

(b) Registrants under this division, permittees under division 2 of this article, and franchisees, licensees, and lessees under division 3 of this article whose equipment is located in the right-of-way in a position at variance with the corridors established in the city's utility accommodation and street restoration specifications, or at variance with the location specified therefor by the city engineer, or aboveground in an area which the city council has designated as part of the underground district pursuant to amendment of the definition thereof found at section 1-2, shall, no later than at the time of next reconstruction or excavation by the department of the area where its equipment is located or sooner if ordered by the city, move that equipment to its assigned location within the right-of-way, unless this requirement is waived by the city.

(c) Registrants under this division, permittees under division 2 of this article, and franchisees, licensees, and lessees under division 3 of this article shall promptly and at their own expense, with due regard for seasonal working conditions, permanently remove their equipment or relocate their equipment within the right-of-way, whenever the city engineer orders such removal or relocation, and shall at their sole expense restore the right-of-way to its proper and required condition pursuant to the city's utility accommodation and street restoration specifications.

(d) If a city work crew or a city contractor encounters equipment in the right-of-way (i) in a location other than the location specified therefor in the city's utility accommodation and street restoration specifications, or (ii) in a location other than the location specified therefor by the city engineer, or (iii) in a location other than the location shown on the maps filed in the office of

the city engineer by the person owning or operating that equipment; and if such improper location of equipment prevents the performance of city operations or activities or prevents or delays the performance of work under contract, the registrant, permittee, franchisee, licensee, or lessee whose improperly placed equipment occasioned such delay in performance or nonperformance shall be required to reimburse the city for all outlay and expense thereby incurred by the city.

(e) Nothing contained in this division shall be construed to prevent the city council from exercising the right of the city to change the boundaries to increase or decrease the size of the underground district.

(f) The removal or relocation of SWF permittees' equipment shall be subject to the terms of the SWF permit.
(O.13,638, 15,761)

Sec. 102-666. Preexcavation equipment location.

(a) In addition to complying with the requirements of I.C. § 480.1 et seq., pertaining to one-call excavation notice system before the start date of any right-of-way excavation, each registrant, permittee, SWF permittee, franchisee, licensee, or lessee who has equipment located in the area to be excavated shall be responsible to mark the horizontal and approximate vertical placement of all such equipment.

(b) Any registrant, permittee, SWF permittee, franchisee, licensee, or lessee whose equipment is less than 20 inches below a concrete or asphalt surface shall notify and work closely with the excavation contractor in an effort to establish the exact location of its equipment and the best procedure for excavation.
(O.13,638, 15,761)

Sec. 102-667. Damage to other equipment.

(a) When any city department performs work in the right-of-way and finds it necessary to maintain, support, or move a registrant's, permittee's, franchisee's, licensee's, or lessee's equipment in order to protect it, the costs associated therewith will be billed to that person and must be paid within 30 days from the date of billing. In such event, the city engineer or city department performing such work shall notify the affected registrant, permittee, franchisee, licensee, or lessee, informing such person of the action it intends to take with respect to such equipment and affording such person the opportunity to review and comment on the action proposed to be taken. If circumstances permit it, the city engineer or city department performing the work may allow the affected registrant, permittee, franchisee, licensee, or lessee to take the action necessary to maintain, support, or move its equipment.

(b) Each registrant, permittee, franchisee, licensee, or lessee shall be responsible for the cost of repairing any equipment in the right-of-way which it or its equipment damages. Each registrant, permittee, franchisee, licensee, or lessee shall be responsible for the cost of repairing any damage to the equipment of another registrant, permittee, franchisee, licensee, or lessee occurring during the city's response to an emergency occasioned by that registrant's equipment.
(O.13,638)

Sec. 102-668. Right-of-way vacation.

If the city vacates a right-of-way wherein a franchisee's licensee's, or SWF permittee's equipment is located, the city may in its discretion reserve, to and for itself and all franchisee's licensee's or SWF permittee's having equipment in the vacated right-of-way, the right to install, maintain and operate any equipment in the vacated right-of-way and to enter upon such right-of-way at any time for the purpose of reconstructing, inspecting, maintaining or repairing the equipment. If the vacation requires the relocation of the equipment of a registrant under this division or of a permittee under division 2 of this article, and:

(1) If the vacation proceedings are initiated by that registrant or permittee, the registrant or permittee must pay the relocation costs; or

(2) If the vacation proceedings are initiated by the city or by another governmental entity, the registrant or permittee must pay the relocation costs unless otherwise agreed to by the city or such other governmental entity.

(O.13,638, 15,761)

Sec. 102-669. Indemnification and liability.

(a) The city does not, because of the acceptance of a registration required by this division or the grant of a right-of-way permit, assume any liability for:

(1) Bodily or other injuries to any individual or person, for damage to property, including loss of use thereof, or for loss of service claims;

(2) Claims or penalties of any sort resulting from the installation, presence, maintenance, or operation of equipment by registrants or activities of registrants; or

(3) Damage to the registrant's or permittee's equipment, or for damage to the equipment of another registrant or permittee.

(b) A registrant, by registering with the department, and a permittee, by accepting a permit under this division or division 2 of this article, shall be required, and shall be deemed to have agreed, to release the city from all claims and to defend, indemnify, and hold the city harmless from all outlay and expense and from claims and suits for damages of any kind, arising out of the construction, presence, installation, maintenance, repair or operation of its equipment in the right-of-way or out of any activity undertaken by it in or near a right-of-way, whether or not any act or omission complained of is authorized, allowed, or prohibited by a right-of-way permit. Each registrant or permittee shall further be required to agree and shall be deemed to have agreed that it will not bring or cause to be brought any action, suit or other proceeding claiming damages or seeking any other relief against the city on any claim, nor shall it bring or cause to be brought any action, suit or other proceeding for any award arising out of the presence, installation, maintenance or operation of its equipment or any activity undertaken by it in or near a right-of-way, whether or not the act or omission complained of is authorized, allowed or prohibited by a right-of-way permit. This section is not, as to third parties, a waiver of any defense or immunity otherwise available to a registrant, to a permittee, or to the city, and the registrant or permittee, in defending any action on behalf of the city, shall be entitled to assert in any action every defense or immunity that the city could assert in its own behalf.

(O.13,638)

Sec. 102-670. No special duty created.

Divisions 1 through 3 of this article are enacted to protect the general health, welfare, and safety of the public at large, and no special duty is created as to any registrant, permittee, SWF permittee, franchisee, licensee, or lessee by the enactment of this article or by acceptance of registration, by issuance of a permit or license, or by grant of a franchise or lease.

(O.13,638, 15,761)

Sec. 102-671. Abandoned and unused equipment.

(a) Under this article, a registrant, franchisee, or licensee who has determined to discontinue its operations in the city, in whole or in part, or who has discontinued use of part or all of its equipment in the right-of-way, must either:

(1) Provide information satisfactory to the city engineer that its obligations for its equipment in the right-of-way under this division and division 2 of this article have been lawfully assumed by another registrant, franchisee, or licensee; or

(2) Submit to the city engineer a proposal and instruments for transferring ownership of its equipment to the city. If a registrant, franchisee, or licensee proceeds under this subsection, the city may, at its option:

a. Assume ownership of and responsibility for the equipment; or

b. Refuse transfer of ownership to the city and require the registrant, at its own expense, to remove the equipment.

(b) A registrant, franchisee, or licensee who fails to comply with subsection (a) of this section and whose equipment remains unused for a period of two years shall be deemed to have abandoned such equipment. Equipment of a registrant, franchisee, or licensee which fails to comply with subsection (a) of this section and which remains unused for two years shall be deemed to be abandoned. Abandoned equipment is deemed to be a nuisance. The city may, with respect to abandoned equipment which is deemed a nuisance, exercise any remedies or rights it has at law or in equity, including but not limited to:

(1) Bringing an action for nuisance abatement, pursuant to section 42-349, in which the city may seek the abatement of the nuisance and/or authority to take possession of the equipment; or

(2) Requiring removal of the equipment by the registrant, franchisee, or licensee.

Any registrant, franchisee, or licensee who has unused equipment in any right-of-way shall remove it from the right-of-way during the next scheduled excavation, unless this requirement is waived by the city engineer.

(c) A registrant, franchisee, or licensee who abandons or ceases use of its equipment as provided in this section and whose proposal to transfer such equipment to the city is accepted by the city shall, nonetheless, be allowed to remove wires or cables from underground conduits and to remove movable equipment from underground vaults or handholes if the city engineer determines that such removal can be accomplished without damaging such conduits or vaults, and provided such removal can be accomplished without extensive excavation or longterm obstruction of the right-of-way. Such removal shall be accomplished pursuant to appropriate right-of-way permits, which may include conditions regarding the manner of removal and schedule for removal.
(O.13,638)

Sec. 102-672. Sale, assignment or change in use of registrant's equipment or business prohibited without city's consent.

(a) Under this article, a registrant shall not transfer its equipment located in the right-of-way or its business to any other person without giving the city engineer 90 days' prior written notice of such proposed transfer and without obtaining the prior consent of the city to such transfer. In such notice, the registrant shall clearly identify the proposed transferee, giving the name and address of a representative of the transferee who is authorized to discuss and provide information to the city regarding the transfer. As a condition of such consent, the proposed transferee shall be required to register and to indicate its proposed use of public right-of-way as provided in section 102-660. The city may refuse consent to a proposed transfer if it determines that the proposed transferee lacks the expertise, experience, financial resources or sufficient personnel required to maintain the registered equipment and/or the right-of-way associated therewith or if the proposed transferee's right to use or occupy the city right-of-way has previously been revoked, cancelled, or terminated or if such right is then under suspension or if the proposed transferee is then in default of any of its obligations under this article. The transferee of a registrant's equipment or business or license shall not be entitled to enter upon public rights-of-way for the purpose of operating or maintaining the equipment registered under this division unless and until it completes the formal transfer of such equipment or business, and obtains the city's consent to such transfer. Notwithstanding the foregoing, no transfer of a registrant's business shall be deemed to have occurred for purposes of this subsection when a registrant is a publicly held entity whose stock is traded on recognized stock exchanges, and where transfer of ownership of the business has effectively occurred due to stock sales or trading in the open market. However, if a merger, consolidation, transfer or disposal of substantially all of such a registrant's assets occurs, the city shall, upon written notice to the registrant, have the right, in its sole discretion and without cause or further showing,

to order the registrant to cease its use and occupancy of the right-of-way. Upon notice to the city by such a registrant of such merger, consolidation, transfer or disposal of assets, the city shall have six months within which to order the registrant to cease its use and occupancy of the right-of-way.

(b) A registrant shall not change the use of its equipment without giving the city 90 days' prior written notice of such proposed change in use and without obtaining the prior written consent of the city engineer to such change in use. In such notice, the registrant shall clearly and completely set forth the proposed change in use of equipment, how it would be accomplished, including any excavations required to accomplish such change, and projections as to the future maintenance implications of such change in use. In such notice, the registrant shall also provide the name and address of a representative of the registrant who is authorized to discuss and provide information to the city regarding such change in use of equipment. The city engineer's consent to such change in use may be withheld if he or she determines that the proposed use of the equipment at that location would be incompatible with or would likely damage or endanger other uses of the right-of-way, would involve a higher level of maintenance activities than the present use, would involve more street excavation or greater traffic disruption than the present use, or would be otherwise inappropriate.

(c) In lieu of this section, the consent to transfer provisions of section 102-770 shall apply to registrants whose use of the right-of-way has been authorized pursuant to a franchise, license, or lease.
(O.13,638)

Sec. 102-673. Reservation of regulatory and police powers.

(a) The city, by registering a person under section 102-660 or by issuing of a right-of-way permit under division 2 of this article or a license or SWF permit under division 3 of this article or by granting a franchise or a lease under division 3 of this article, does not surrender or to any extent lose, waive, impair, or lessen the lawful powers and rights which it has or which may be vested in the city under the state constitution, state law, and the City Charter to regulate the use of the right-of-way by such persons. All such persons, by registration or by acceptance of a right-of-way permit, SWF permit, franchise, license, or lease are deemed and shall be held to agree that all lawful powers and rights, regulatory power, or police power, or otherwise as are or may be from time to time vested in or reserved to the city, shall be in full force and effect and subject to the exercise thereof by the city at any time. All such persons are further deemed to acknowledge that their rights are subject to the regulatory and police powers of the city to adopt and enforce general ordinances necessary to the safety and welfare of the public and are deemed to have agreed to comply with all applicable general laws and ordinances enacted by the city pursuant to such powers.

(b) Any conflict between the provisions of a registration or of a right-of-way permit, SWF permit, franchise, license, or lease and any other lawful exercise of the city's regulatory or police powers shall be resolved in favor of the city's exercise of its lawful powers.
(O.13,638, 15,761)

Sec. 102-674. Severability.

If any section, subsection, sentence, clause, phrase, or portion of this division or of divisions 2 through 5 of this article is for any reason held invalid or unconstitutional by any court or administrative agency of competent jurisdiction, such portion shall be deemed a separate, distinct, and independent provision and such holding shall not affect the validity of the remaining portions thereof. If a regulatory body or a court of competent jurisdiction should determine by a final, nonappealable order that any registration or permit issued under this division or division 2 of this article or any portions thereof is illegal or unenforceable, any such registration or permit granted or deemed to exist under this article shall be considered as a revocable registration or permit, terminable by either party without cause upon giving 60 days' written notice to the other party. The requirements and conditions of such a revocable registration or permit shall be the

same requirements and conditions as set forth in the registration or permit, respectively, except for conditions relating to the term of the permit and the right of termination. If a registration or permit shall be considered revocable as provided in this article, the registrant or permittee must acknowledge the authority of the city council to issue such revocable registration or permit and the power to revoke it.
(O.13,638)

Sec. 102-675. Existing franchises.

If a conflict of language occurs between the provisions of this article and a franchise existing on September 14, 1998, or between the provisions of this article and a lease of vacated right-of-way, existing on September 14, 1998, the conflict shall be resolved by honoring the terms of the franchise or lease until it expires.
(O.13,638)

Sec. 102-676. Construction of article.

Nothing in this article shall be construed as an acquiescence in or ratification of the occupancy or use of any public right-of-way in the city by any person occupying the right-of-way without legal right, nor shall this article be construed as conferring the right to occupy or use any public right-of-way within the city upon any such person illegally or without authority occupying the right-of-way.
(O.13,638)

Secs. 102-677—102-705. Reserved.

DIVISION 2. RIGHT-OF-WAY PERMITS

Sec. 102-706. Interference with use of right-of-way.

When working in public rights-of-way, permittees under this division shall not unreasonably interfere with the safety, health, and convenience of the public in the public's use thereof for ordinary travel, nor shall they interfere with public safety or public health services provided by the city to its residents by means of the public rights-of-way.
(O.13,638)

Sec. 102-707. Permits required.

(a) Except as otherwise provided in this article, no person shall excavate or obstruct any right-of-way without first obtaining an excavation permit, obstruction permit, tree well permit, or irrigation system permit, as described in this subsection, from the city engineer issued pursuant to this division.

(1) *Excavation permit.* An excavation permit is a permit which allows the holder to excavate in a specified city right-of-way and to hinder free and open passage over and use of the specific portion of right-of-way by placing equipment described therein, to the extent and for the duration specified therein.

(2) *Obstruction permit.* An obstruction permit is a permit which allows the holder to hinder free and open passage over and use of the specified portion of the right-of-way by placing equipment described therein on the right-of-way for the duration specified therein.

(3) *Tree well permit.* A tree well permit is a permit which allows the holder to construct a tree well in the right-of-way in the area between the property line and the back of the curb, provided such tree well has been approved as part of a site plan.

(4) *Irrigation system permit.* An irrigation system permit is a permit which allows the holder to construct an irrigation system or any part thereof in the right-of-way immediately adjacent to the permit holder's abutting property.

(b) No person may excavate or obstruct the right-of-way beyond the date specified in the permit unless such person:

(1) Makes a supplementary application for another right-of-way permit before the expiration of the initial permit; and

(2) A new permit or permit extension is issued.

(c) It shall be the responsibility of the owner or occupant of the abutting property to protect and maintain a treewell or irrigation system which it constructs or installs in the city right-of-way. Neither the city nor any other person, firm or governmental entity having utility, traffic control or telecommunications equipment in the city right-of-way where a treewell or irrigation system is situated shall have any duty to protect, repair or restore such treewell or irrigation system if same is destroyed, damaged, disturbed or adversely impacted due to the repair, maintenance or replacement of any such equipment. Persons installing tree wells or irrigation systems in the right-of-way pursuant to a permit issued under this section shall acquire no right or interest in the right-of-way allowing the continued use of the right-of-way for such purpose, nor shall such persons be entitled to make claim against the city or any other person, firm or governmental entity having utility, traffic control or telecommunications equipment in the city right-of-way due to damage, disruption or removal of such facilities. Tree wells and irrigation systems placed in the right-of-way pursuant to permit issued under this section shall be considered emplaced in the right-of-way at the city's sufferance and shall be subject to the city's right to remove or disrupt the tree well or irrigation system with or without prior notice to the permit holder, during the course of constructing, repairing, maintaining, or replacing any city equipment or other facilities in the right-of-way, whether such work is performed by city work crews or city contractors.

(d) Except as otherwise provided in this article, no person shall occupy any portion of the right-of-way or obtain an obstruction permit or excavation permit for the purpose of providing or maintaining ongoing utility services without first obtaining a franchise, license, or SWF permit from the city.
(O.13,638, 14,463, 15,761)

Sec. 102-708. Permit applications; plans and specifications; insurance; indemnification.

(a) Before any permit required by this article shall be issued, an application shall be made to the city engineer. A permit application will be accepted only if all of the following conditions have been met and the permit applicant has:

(1) If required, registered with the department pursuant to section 102-660.

(2) Fulfilled all obligations related to prior permits, including but not limited to the restoration of the right-of-way, and payment to the city of all money due for the following:

a. Prior obstruction or excavation permits;

b. Any loss, damage, or expense suffered by the city as a result of the applicant's prior excavations or obstructions of the rights-of-way or any emergency actions taken by the city in connection therewith;

c. Restoration of the right-of-way by the city or the city's contractor; and

d. Fines assessed to the applicant pursuant to section 102-710.

(3) Submitted a completed permit application form, which includes (i) all required attachments, and (ii) scaled drawings showing the location and area of the proposed project and the location of all existing and proposed equipment, and which states or identifies the following:

a. The place, extent and purpose of the contemplated work including the identity of and location in the right-of-way at which any excavation is to be made.

b. The time when the work is to be commenced and the time it is to be completed.

c. For whom and in connection with what abutting property, if any, the work is to be performed.

d. To what street main, if any, the sewer, water, or gas connection is to be made or to what electric or telephone line, if any, the electric or telephone connection is to be made.

e. The name of the person or contractor who will do the work, the person who will be in charge thereof, and the public registration number issued by the state labor commissioner pursuant to I.C. ch. 91C for all contractors to be involved in the work for which the permit is sought.

(4) Provided as-built maps or GIS mapping data for all equipment which it has placed in the right-of-way in the past.

(5) Corrected deficiencies, if any, in prior restoration work performed by it.

(b) Plans and specifications shall be filed with an application for a permit to make an excavation involving the construction or installation of equipment within the right-of-way. Plans and specifications shall be in sufficient detail to identify the exact type of equipment to be constructed or installed in the right-of-way, and the horizontal and vertical location of such equipment within the right-of-way, with respect to right-of-way/property lines and established monuments, which location shall be established on such plans according to available existing records. Except where plans and specifications have been provided to the city pursuant to an application for a grading permit under section 42-87 or pursuant to the requirements of articles II and III of chapter 110 of this Code and articles IV, V and VI of chapter 118 of this Code, detailed plans and specifications shall not be required for individual excavations, such as individual water, sewer, gas, electric, or telephone connections to a building. Unless a regulation approved and issued by the city engineer provides otherwise, a simple sketch on the application form provided by the city, including the dimensions of the proposed excavation in reference to permanent landmarks, shall be provided for individual excavations.

(c) If an applicant for an excavation permit is not qualified to perform right-of-way restoration work as provided in section 102-717, the application shall contain a stipulation that the applicant shall immediately notify the city engineer upon completion of the work done in connection with the excavation and that the applicant shall pay the actual costs that the city incurs in the refilling, replacement of pavement, and restoration and maintenance of the right-of-way by the city work crews or contractor working on behalf of the city, which costs shall be billed to the applicant following completion of the right-of-way restoration work and paid by the applicant in accordance with section 102-717(f) of this code.

(d) Applications for obstruction and excavation permits shall be accompanied by an insurance certificate as required by section 102-709, unless such certificate has been previously filed with the department and is still in effect. Applications for excavation permits, and obstruction permits when required as provided for in section 102-717(i), shall further be accompanied by a surety or performance and maintenance bond or other form or security as required by section 102-717, as applicable, unless such bond has been previously filed with the department and is still in effect.

(e) Except as otherwise provided in section 102-730, all applications for a permit under this article shall contain a stipulation that the applicant shall indemnify and hold harmless the city from any and all costs, expenses or liability for damages or injuries to persons or property or liability of any kind whatsoever arising from or growing out of any excavation or trench or surface restoration for which the permit is issued pursuant to this article.

(f) Permits for the construction or installation of equipment in the right-of-way, which is to be owned or operated by a franchised or licensed utility, shall be issued in the name of the franchisee or licensee. Permits for the construction or installation of equipment in the right-of-way, which is to be owned by the city water works, may be issued either in the name of the water works or in the name of its contractor. Permits for the construction or installation of equipment in the right-of-way, which is to be owned by a city utility or enterprise, may be

issued either in the name of the municipal utility or enterprise or in the name of its contractor. Permits for the construction or installation of equipment in the right-of-way, which is to be owned or operated by an abutting property owner, may in the city engineer's discretion be issued either in the name of the abutting property owner or the abutting property owner's contractor. Permits for construction in the right-of-way of underground sewer, water, gas, electric, or telephone connections to an abutting property shall be issued in the name of the abutting property owner's contractor.
(C42, § 84-2; C54, C62, § 54-65; O.7397; C75, C79, C85, § 23-54; O.11,711; C91, § 23-54; O.11,993, 13,638, 15,092, 15,188, 15,909)

Sec. 102-709. Liability insurance.

(a) Before any permit required by this article shall be issued, the applicant shall place or have on file in the office of the city engineer a certificate of insurance evidencing the existence of liability insurance deemed adequate by the city to cover the risk presented by the work being undertaken in the right-of-way. The amount and type of insurance to be required in each instance shall be determined by the city finance director or designee, and such requirements are by this reference made part of the permit application form. When the applicant is required by the terms of the permit and this article to fill and restore the excavation or trench, the insurance shall remain in full force and effect until the maintenance period provided for in this article has expired and work under the permit has been completed.

(b) This section shall not apply where indemnification and hold harmless have been provided to the city by the city water works pursuant to the requirements of chapter 26 of this Code or by a franchised utility pursuant to the requirements of articles II and III of chapter 110 of this Code and articles IV, V and VI of chapter 118 of this Code.
(C42, § 84-2; C54, C62, § 54-66; O.7397; C75, C79, C85, § 23-55; O.11,469, 11,711; C91, § 23-55; O.13,010, 13,638, 15,092)

Sec. 102-710. Administrative penalties for scheduled violations.

(a) The city engineer is authorized to impose administrative penalties upon persons who commit the following violations of this article:

(1) Failure to obtain permit;

(2) Failure to provide required notification of emergency trenching or excavations;

(3) Failure to provide required traffic control devices;

(4) Failure to restore as required;

(5) Failure to properly secure steel plates;

(6) Failure to provide required notification for inspection by plumbing inspector;

(7) Failure of restoration within the maintenance period;

(8) Failure to restore street cuts within the period provided in the permit;

(9) Failure to comply with permit conditions;

(10) Failure to comply with orders issued by the city engineer or the city engineer's designee;

(11) Failure to complete work within the time provided in the permit, or within a time extension of the permit granted by the city engineer or the city engineer's designee;

(12) Failure to provide factually accurate, truthful or complete information in making application for a permit; or

(13) Working, storing equipment or materials, or parking vehicles outside the permit area.

The administrative penalty for each violation shall be as provided in the schedule of administrative penalties adopted by the city council by resolution. Notice of violation, with the applicable penalty for such violation noted thereon, shall be issued by the city engineer to the violator. Penalties shall be paid in full within 30 days of the issuance of the notice at the city's permit and development center.

(b) The administrative penalties set out in the schedule of administrative penalties shall be charged in lieu of the fines and penalties provided for in section 102-3, unless the violator refuses to correct the violation and pay the scheduled administrative penalty, or the city engineer determines that immediate enforcement action by misdemeanor or municipal infraction prosecution pursuant to section 102-3 is, in view of the particular circumstances of the case, necessary to achieve compliance with the requirements of this article. The city engineer shall maintain a record of all violations, administrative penalties charged or other enforcement actions taken and shall make available such performance record to the building official when refusal to issue a permit pursuant to section 102-713 is being contemplated. The applicant shall be liable for any and all costs incurred by the city because of such violations.
(C42, § 84-4; C54, C62, § 54-71; O.8450; C75, § 23-56; O.9125; C79, C85, § 23-56; O.11,711; C91, § 23-56; O.13,010, 13,638, 14,202, 14,463)

Sec. 102-711. Permit fees.

(a) *Excavation permit fee.* An excavation permit fee shall be charged to every person who makes application to excavate in the right-of-way. The excavation permit fee shall be determined by the city engineer and shall be in an amount sufficient to recover the following costs:

(1) The city cost component, the disruptive cost component, and the inspection cost component; and

(2) The GIS cost component, which is the cost of creating and maintaining information on a geographical information system (GIS) mapping system.

In addition, the city engineer may in appropriate circumstances include a degradation cost component in the calculation of excavation permit fees, which is to recover the accelerated depreciation of the right-of-way which will result from the excavation to take place thereon.

Such fee shall, in part, be based on the size of the area to be excavated or impacted by the excavation; the duration that the area will be unavailable for public use; the amount of vehicular, bicycle, and pedestrian traffic that is disrupted thereby; and such other factors as the city engineer shall deem appropriate.

(b) *Obstruction permit fee.* An obstruction permit fee shall be charged to every person who makes application to undertake activities in the right-of-way which will result in the obstruction of vehicular or pedestrian traffic. The obstruction permit fee shall be determined by the city engineer and shall be in an amount sufficient to recover the following costs:

(1) The city cost component, the disruptive cost component, and the inspection cost component.

(2) The GIS cost component, which is the cost of creating and maintaining information on a geographical information system (GIS) mapping system.

Such fee shall, in part, be based on the size of the area to be obstructed or impacted by the obstruction; the duration that the area will be unavailable for public use; the amount of vehicular, bicycle, and pedestrian traffic that is disrupted thereby; and such other factors as the city engineer shall deem appropriate.

(c) *Computation of disruptive cost component for permitting purposes.* The disruptive cost is the cost the city will incur in managing the vehicular and/or pedestrian traffic which will be disrupted by permitted excavation and/or obstruction activities in the right-of-way. The city engineer shall determine the disruptive cost component of the fees for excavation and obstruction permits by using economic and accounting principles. Fees may vary from one location to another based on: the size of the area to be obstructed; the duration that the right-of-way or parts of it will be unavailable for public use and travel; the proximity of businesses and enterprises which rely in whole or in part on access by members of the public or the delivery of supplies or raw materials; the importance of the particular right-of-way to the traveling public; the use of the particular right-of-way for emergency vehicles and the availability of alternate routes; the traffic volumes carried by the particular right-of-way; the amount of vehicular, bicycle, and pedestrian traffic that is reasonably likely to be

disrupted thereby; the traffic control measures and activities which the city will have to undertake to appropriately manage the disruption of traffic, including maintenance of special traffic control signage or signals, and the provision of traffic control personnel; and the loss of revenues to the city, including but not limited to the loss of parking revenues due to loss of access to parking spaces or facilities.

(d) *Computation of inspection cost component.* A schedule of fees for inspection services shall be developed by the city engineer to recover the costs incurred by the department in having its inspectors conduct inspections of street restoration work undertaken in connection with excavation permits issued to permittees. The base fee for an inspection shall be expressed in such schedule as a per square foot fee for the area to be excavated or obstructed or impacted by excavation or obstruction. The fee for a follow-up inspection, conducted to obtain or confirm compliance with a specification, regulation, permit condition or city engineer's order, after a permittee is informed of a violation thereof, shall be expressed in such schedule as hourly rates which are to be based on the salary, benefit, and overhead costs to the city of the inspectors providing follow-up inspection services. Follow-up inspection services shall be charged to permittees on the basis of the number of hours of inspector time spent providing follow-up inspection services with respect to work performed in connection with each permit, multiplied by the applicable hourly rates in the schedule.

(e) *Payment of permit fees.* Permit fees, computed as provided in this section by the city engineer, shall be paid by the permittee prior to issuance of the excavation or obstruction permit, unless in the discretion of the city engineer permission is given to pay such fee within 30 days after billing therefor by the city.

(f) *Plan review fee*. A plan review fee shall be charged to any person or permit applicant who submits plans and specifications for review by the city as required by section 102-708. The plan review fee is intended to recover the salary, benefit, and overhead costs to the city of the city employees reviewing such plans and specifications, and shall be based on the size of the area proposed to be excavated. The plan review fee shall be in the amount set in the schedule of fees adopted by the city council by resolution.

(g) *Payment of plan review fee.* If the plans and specifications are submitted for review and approval prior to application for an excavation permit, the plan review fee shall be paid prior to the city engineer's approval of such plans and specifications, or prior to city's acceptance of the permit application. If the plans and specifications are submitted for review as part of an application for an excavation permit, the plan review fee shall be paid prior to issuance of the permit.

(h) *Fees doubled during probation.* All permit fees shall be doubled during a probationary period.

(i) *Refund after revocation of permit.* Permit fees which were paid in connection with a permit which the city engineer has revoked for a breach as provided in section 102-729 are not refundable.

(j) *Schedule of fees.*

(1) The permit fees to be paid in each instance shall be determined by the city engineer by reference to a schedule of permit fees, which shall be developed in conformance with the requirements of I.C. ch. 480A, shall be updated as needed prior to each construction season, and shall be approved by the city council by resolution.

(O.13,638, 14,043, 14,202, 14,463, 15,386, 15,761, 15,909)

Sec. 102-712. Issuance of permits.

(a) Except as otherwise provided in this section, when the application made in accordance with sections 102-708 and 102-709 shall be approved, and the certificate of insurance and the bond, when applicable, or receipt of deposit in lieu of bond by the city treasurer as provided for in this article, shall be approved and placed on file in the office of the city engineer, the excavation permit or obstruction permit, as the case may be, shall be issued to the applicant to allow for the particular work specified in the

application to commence. The city engineer may impose conditions, restrictions, or requirements upon the issuance of the permit and the performance of the applicant thereunder in order to protect the public health, safety and welfare; to ensure the structural integrity of the right-of-way; to maximize efficient use of the right-of-way; to protect the property and safety of other users of the right-of-way; and to minimize the disruption and inconvenience to the traveling public, which conditions, restrictions, or requirements shall be stated on the face of the permit or communicated to the permittee in writing by the city engineer. The permit shall specifically state that it is issued subject to all stipulations of the applicant made in applying for the permit and that the work shall be done in accordance with the detailed plans and specifications approved in connection with the application and in accordance with any and all further conditions, restrictions, or requirements stated on the permit.

(b) Immediate notice shall be given to the city engineer whenever emergency work must be commenced prior to application for a permit under this article. Such notice shall be given no later than upon the first business day after commencement of such emergency work, and application for an excavation permit shall be made within three business days of the commencement of the work.

(c) Except as otherwise provided in this subsection, a permit shall not be issued to excavate in a permanently improved street within the first four years following completion and acceptance by the city council of the improvement project. In such instances applicants shall determine and submit for approval of the city engineer alternative methods of making the utility service connections; provided, however, the city engineer may give written permission for a street excavation permit to be issued in such instances upon determining that one or more of the following conditions exists:

(1) An emergency endangering life or property exists which warrants allowing the requested excavation;

(2) An interruption of essential utility service is threatened unless the requested excavation is allowed;

(3) The public work for which the excavation is requested is mandated by city, state or federal legislation;

(4) There is no other reasonable means of providing utility service to a property except by allowing the requested excavation; or

(5) The requested excavation is in the best interest of the general public.

(O.13,638, 14,202, 15,092)

Sec. 102-713. Refusal to issue permit.

The city engineer may refuse to issue the permits provided for in this article to any former permit holder who has intentionally violated the sections of this Code relating to excavations in or obstruction of any public right-of-way or who has failed to conform to the requirements of any previously issued permit or who has violated the orders or instructions of city officials issued pursuant to this article.

(C42, § 84-9; C54, C62, § 54-72; O.7397; C75, C79, C85, § 23-59; O.11,711, 13,010; C91, § 23-59; O.13,010, 13,638)

Sec. 102-714. Records.

The department shall keep a duplicate copy of each permit issued as provided in this division corresponding to each original permit issued and shall provide a copy of each such permit to the city permit and development center for filing with the detailed plans and specifications as approved by city staff. Permits shall be regularly numbered in the order issued. Each permit shall contain the name of the person to whom it is issued, the location of the premises, the purpose of any excavation and the time at which work under it shall be commenced and completed. The permit shall not take effect until the time stated therein, nor shall any work be done under it until such time. The permit shall expire at the time stated thereon for completion unless an extension is granted in writing by the city engineer; provided, however, that the obligation to restore the right-of-way, and the obligation to

provide and maintain insurance and bonds to the city in connection with such work shall remain in effect until restoration of the right-of-way is completed.
(C42, § 84-3; C54, C62, § 54-68; O.7397; C75, C79, § 23-60; C85, § 23-60; O.11,711; C91, § 23-60; O.13,010, 13,638)

Sec. 102-715. On-site exhibit of permit; contractor identification signage.

(a) One copy of the permit required by this article shall be kept and exhibited at every work site for which an excavation permit has been issued for a period of five days or more.

(b) Persons performing work pursuant to an excavation permit shall display their name, address, and telephone number on all motor vehicles and equipment, including tractors, trailers, and wheeled equipment capable of being driven or towed on the street, which are utilized in performing such work. This shall not apply to personal or privately owned vehicles used solely to transport workers to a job site or to rental vehicles or equipment utilized in performing the work if the name, address, and telephone number of the rental company appears on such vehicles or equipment. Utility service companies which provide such service to residential, commercial, and industrial customers on a citywide basis and whose customer or emergency service telephone number is published in a city telephone directory and is available to city residents without long distance charge need only display the name of the company on company-owned vehicles and equipment utilized in performing work in the right-of-way. Contractors and their subcontractors working in the right-of-way on behalf of such utility service companies shall display their name, address, and telephone number on all motor vehicles and equipment as required in this subsection.

(c) The information required by subsection (b) of this section shall be exhibited in at least two locations on the vehicle and shall be either a temporary magnetic or permanent decal or painted lettering of a type and size, and with a contrasting color, rendering it legible from a distance of not less than 50 feet.
(C42, § 84-3; C54, C62, § 54-69; O.7397; C75, C79, C85, § 23-61; O.11,711; C91, § 23-61; O.13,010, 13,638)

Sec. 102-716. Coordination with paving project.

If the application for a permit required by this division is for the purpose of making an excavation or trench in any street ordered by the city council to be permanently improved, the applicant shall promptly notify the city engineer of the issuance of the permit so that the excavation or trenching can be coordinated with the work of the paving project as the city engineer deems appropriate. Work under such permit shall in no event commence before the requirements of this section are satisfied.
(C91, § 23-62; O.11,711, 13,638)

Sec. 102-717. Right-of-way restoration; performance and maintenance bond or other form of security requirements for excavation permit; surety bond requirements for obstruction permit.

(a) *Restoration required.* The work to be done under an excavation permit issued pursuant to this article and the restoration of the right-of-way as required in this division must be completed within the dates specified in the permit. In addition to its own work, the permittee must restore or pay for the restoration of the general area of the work, and the surrounding areas, including the paving, its foundations and any special features, to its proper and required condition in accordance with the city's utility accommodation and street restoration specifications, unless the city engineer deems other or additional specifications must be utilized in order to secure proper restoration. Further, the permittee shall inspect the area of the work and use reasonable care to maintain the same condition for 48 months thereafter. If special features in the right-of-way at a proposed excavation site, including but not limited to special sidewalk surfaces, heated sidewalks, underground vaults, areaways, and landscaping, cannot be preserved or protected, the City must be notified prior to the applicant beginning work.

(b) *Performance and maintenance bond.* An applicant for an excavation permit shall, at the time of application for an excavation permit, post a performance bond in an amount determined by the city engineer to be sufficient to cover the cost of restoring the right-of-way to its proper and required condition pursuant to the city's utility accommodation and street restoration specifications and in accordance with the current restoration cost schedule established by resolution of the city council. If at the conclusion of the 48-month period after completion of the restoration of the right-of-way, the department determines that the right-of-way has been properly restored, the surety on the performance bond shall be released.

(c) *Bond condition.* The bond shall be conditioned upon:

(1) The faithful performance of the right-of-way restoration work required under this article, or payment of the restoration costs incurred by the city; and

(2) The faithful performance of the terms of the permit, the provisions of this article, and any other requirements provided by law.

If the applicant fails or neglects to properly restore the right-of-way to its proper condition within the time for completion set forth in the permit, or within a reasonable time after notice by the city engineer of such failure or neglect, or fails to pay the restoration costs incurred by the city or fails or neglects to properly maintain the right-of-way to its proper condition within a reasonable time after notice by the city engineer of such failure or neglect, or fails to pay the maintenance costs incurred by the city, the right-of-way shall be restored or maintained by the city and the costs thereof, as certified by the city engineer, shall be promptly paid by the applicant or bonding company as the case may be.

(d) *Alternate forms of security.* In lieu of filing a performance bond in connection with each excavation permit application, an applicant may, in the discretion of the city engineer, be allowed to post with the city treasurer an alternate form of security in the form of an annual performance bond, letter of credit, certificate of deposit, or certified check in an amount deemed sufficient by the city engineer, but in no event less than $25,000.00, to secure the applicant's performance of all restoration work which the applicant will

become responsible for during the next 12-month period in accordance with the current restoration cost schedule established by resolution of the city council upon the recommendation of the city engineer. Such alternate form of security shall be conditioned upon the applicant's performance as provided in subsection (c) of this section. If the costs as certified by the city engineer during such year are less than such letter of credit, certificate or deposit, or certified check, or if the maintenance period provided for in the permit has expired with the applicant having satisfied all of its restoration and maintenance responsibilities, the balance thereof shall upon request be returned to the applicant. If it appears to the city engineer at any time after issuance of a permit that the security so provided by letter of credit, certificate of deposit, or certified check is inadequate to secure the performance of all such restoration work, the city engineer may require the permittee to increase such security. If the costs during such year exceed the amount of such additional security provided by letter of credit, certificate of deposit, or certified check, the applicant shall be required to pay such difference to the city. Such excess costs shall be paid before any subsequent application by the applicant for a permit under this article may be processed by the department. If the city incurs any outlay and expense in collecting its costs from the applicant, such outlay and expense shall be paid by the applicant or bonding company in addition to other amounts due.

(e) *Bond for licensed plumbing contractors.* A licensed plumbing contractor may satisfy the requirements of subsections (a) through (d) of this section by maintaining on file with the department a surety bond in the amount of $5,000.00 for the period running concurrently with the plumbing contractor's license, so long as such bond specifically provides coverage for any and all street excavations undertaken pursuant to this article during such period, unless the city engineer determines such bond amount is insufficient to cover the anticipated cost of restoration of the right-of-way for which the permit is sought. A plumbing contractor qualified to perform street right-of-way restoration work who chooses to perform the street right-of-way restoration work itself or through its qualified subcontractor or independent contractor must comply with subsections (a) through (d) and (g) through (i) of this section.

(f) *Restoration by city or city contractor.* If an applicant for an excavation permit is not qualified to perform right-of-way restoration work as provided in this division and requests in the permit application to have the city or the city's contractor restore the right-of-way, the applicant shall pay the costs thereof within 30 days of billing. If, during the 48 months following such restoration, the pavement settles due to the permittee's improper backfilling, the permittee shall pay to the city, within 30 days of billing, the cost of repairing the pavement.

(g) *Restoration by permittee.* An applicant for an excavation permit who has been determined qualified to perform right-of-way restoration work as provided in this section and who intends to itself restore the right-of-way shall so indicate in its application for an excavation permit. The permittee shall perform the work in accordance with the city's utility accommodation and street restoration specifications, unless the city engineer deems other or additional specifications must be utilized in order to secure proper restoration. The city engineer shall have the authority to prescribe the manner and extent of the restoration and may do so in written procedures of general application or on a case-by-case basis. The city engineer in exercising this authority shall be guided by the following standards and considerations: the number, size, depth and duration of the excavations, disruptions or damage to the right-of-way; the preexcavation condition of the right-of-way; the remaining life expectancy of the right-of-way affected by the excavation; whether the relative cost of the method of restoration to the permittee is in reasonable balance with the prevention of the accelerated depreciation of the right-of-way that would otherwise result from the excavation, disturbance or damage to the right-of-way; and the likelihood that the particular method of restoration would be effective in slowing the degradation of the right-of-way that would otherwise take place. Methods of restoration may include but are not limited to patching, replacement of the right-of-way base, and milling and overlay of the entire area of the right-of-way

affected by the work. By choosing to restore the right-of-way itself, the permittee guarantees its work and shall maintain it for 48 months following its completion. During this 48-month period, the permittee shall, upon notification from the department, correct all restoration work to the extent necessary using the method required by the department. Such work shall be completed within the period of time allotted therefor as set forth in the notice from the department. If the permittee fails to restore the right-of-way in the manner and to the condition required by the department or fails to satisfactorily and timely complete all repairs required by the department, the city, at its option, may do such work or cause its contractor to do such work. In that event, the permittee shall pay to the city, within 30 days of billing, all costs incurred by the city in restoring the right-of-way.

(h) *Identity of person performing restoration work.* Any person restoring a permanently improved street shall provide permanent identification of the person performing the restoration work and the month and year such work was performed by imprint or medallion within the restored surface, as provided in the city's utility accommodation and street restoration specifications.

(i) *Bond for obstruction permit.* If the city engineer determines in his or her sole discretion that an obstruction permit applicant's proposed use of the right-of-way poses a risk of damage to the right-of-way, the city engineer may require such applicant to post a surety bond before the obstruction permit is issued. Such bond, if required, shall be placed on file with and approved by the city engineer; shall be in the minimum amount of $5,000.00 or such other amount determined by the city engineer to be sufficient to cover the anticipated cost of damage to the right-of-way; and shall be conditioned to ensure removal of the obstruction and restoration of the right-of-way and all public improvements thereon by or before the expiration date of such obstruction permit or such extended time as may be granted by the city engineer.

(C42, § 84-5; C54, C62, § 54-73; C75, C79, § 23-62; C91, § 23-63; O.11,711, 13,638, 14,202, 14,463, 15,092, 15,188)

Sec. 102-718. Qualification to perform right-of-way restoration work.

(a) The city engineer shall determine the qualifications of permit applicants to perform right-of-way restoration work as provided in section 102-717. In determining if an applicant is qualified to perform right-of-way restoration work, the city engineer may consider any of the following factors, which the applicant shall be obligated to demonstrate to the satisfaction of the city engineer:

(1) The financial responsibility of the applicant.

(2) The city's past record of transactions and experience with the applicant, including the quality of workmanship on past right-of-way restoration projects; the number of liens, claims or complaints filed regarding such past projects; and the number of repairs made on prior right-of-way restoration projects involving that applicant.

(3) The adequacy of the applicant's equipment and materials.

(4) The competency and experience of the applicant's managerial and supervisory personnel in performing right-of-way restoration work.

(5) The applicant's demonstrated ability to complete performance of right-of-way restoration work or work of a similar nature.

(b) The city engineer may decline to qualify an applicant for the performance of right-of-way restoration work if the city engineer determines that the applicant has not demonstrated satisfactory compliance with the criteria in subsection (a) of this section or if the city engineer determines that the applicant has:

(1) Without good cause therefor failed to carry on or complete prior right-of-way restoration work or work of a similar nature in an acceptable manner or refused to comply with a written order of the engineer with regard thereto within a reasonable time;

(2) Failed to perform prior right-of-way restoration work or work of a similar nature

in reasonably close conformity with the plans and specifications therefor, or in reasonably close conformity with the city's design standards or the city's utility accommodation and street restoration specifications;

(3) Failed or refused to remove and replace materials or work found by the city engineer not to be in reasonably close conformity with the plans and specifications or city's utility accommodation and street restoration specifications, as applicable, or failed to correct such material or work so as to cause such materials or finished product to be reasonably acceptable work; or

(4) Offered or given gifts or gratuities to city employees in violation of state law or has had as its employee a person who was at the time also a city employee.

(c) If the city engineer determines not to qualify an applicant to perform right-of-way restoration work, the city engineer shall so notify the affected applicant. The notice shall set forth the reasons supporting the city engineer's determination not to qualify the applicant and shall indicate that the city engineer's determination shall be considered final unless the applicant files a written request for review with the city manager within 30 days of the applicant's receipt of notice thereof. The notice shall be sent to the applicant by certified mail, return receipt requested.

(d) Upon written request of the applicant received within 30 days of mailing of the notice provided in subsection (c) of this section, the city manager shall schedule and hold a hearing thereon, as provided in section 102-802. At such hearing, the applicant may present evidence or argument why it should be qualified to perform right-of-way restoration work.
(C91, § 23-63.01; O.13,638, 15,092, 15,188)

Sec. 102-719. Disqualification of person previously qualified to perform right-of-way restoration work.

(a) Upon a determination by the city engineer that a person previously qualified to perform right-of-way restoration work has failed to meet any of the criteria set forth in subsection 102-718(a) or has failed to perform as provided in subsection 102-718(b), the city engineer may disqualify such person from the further performance of such work, as provided in this section. Upon making such determination, the city engineer shall give notice to the affected party of his or her determination and shall therein set forth the reasons supporting disqualification and the proposed period for disqualification and shall indicate that the city engineer's determination shall be considered final unless the applicant files a written request for review with the city manager within 30 days of the applicant's receipt of notice thereof.

(b) Upon written request of the affected party received within 30 days after the affected party's receipt of the notice provided in subsection (a) of this section, the city manager shall schedule and hold a hearing thereon, as provided in section 102-802. At such hearing, the affected party may present evidence or argument why it should not be disqualified from performance of right-of-way restoration work.
(C91, § 23-63.02; O.13,638)

Sec. 102-720. Joint applications.

Registrants are encouraged to make joint application for permits to excavate or obstruct the right-of-way at the same place and time. Registrants who join in a scheduled obstruction or excavation performed by the city or a city contractor, whether or not it is a joint application by two or more registrants or a single application, are not required to pay the obstruction and degradation portions of the permit fee. Registrants who apply for permits for the same obstruction or excavation, which is not performed by the city or a city contractor, may share in the payment of the obstruction or excavation permit fee. Registrants must agree among themselves as to the portion each will pay and indicate such on their applications.
(C42, § 84-6; C54, C62, § 54-74; C75, C79, § 23-63; C91, § 23-64; O.11,711, 13,638)

Sec. 102-721. Supplementary applications.

(a) A right-of-way permit is valid only for the area of the right-of-way specified in the permit. No permittee may perform any work outside the

area specified in the permit, except as provided in this section. Any permittee who determines that an area greater than that specified in the permit must be obstructed or excavated must, before working in that area:

(1) Make application for a permit extension and pay any additional fees necessitated thereby; and

(2) Be issued a new permit or permit extension.

(b) A right-of-way permit is valid only for the dates specified in the permit. No permittee may begin work before the permit start date or, except as provided in this subsection, continue working after the end date. If a permittee does not finish the work by the permit end date, it must make application for a new permit for the additional time it needs and receive the new permit or an extension of the old permit before working after the end date of the previous permit. This supplementary application must be submitted and completed before the permit end date.
(C91, § 23-64.01; O.13,638)

Sec. 102-722. Permittee's other obligations.

(a) Obtaining a right-of-way permit does not relieve a permittee of its duty to obtain all other necessary permits, licenses, and authority and to pay all fees required by any other city, county, state, or federal rules, laws or regulations.

(b) A permittee shall comply with all requirements of local, state and federal laws, including I.C. § 480.1 et seq., pertaining to underground facilities information (one-call excavation notice system).

(c) A permittee shall perform all work in conformance with all applicable codes and established rules and regulations, and is responsible for all work done in the right-of-way pursuant to its permit, regardless of who performs the work.

(d) Except in an emergency and with the approval of the city engineer, no right-of-way obstruction or excavation may be performed when seasonally prohibited or when conditions are unreasonable for such work.

(e) A permittee shall not so obstruct a right-of-way that the natural free and clear passage of water through the gutters or other waterways shall be interfered with.

(f) Work under a permit shall be conducted within the permit area, and work vehicles, equipment and materials shall be stored within the permit area. Private vehicles may not be parked within or adjacent to a permit area. The loading or unloading of trucks adjacent to a permit area is prohibited unless specifically authorized by the permit.

(g) A permittee shall comply with all conditions stated in the permit, and with orders issued by the city engineer or the city engineer's designated representative with respect to work being performed under the permit.

(h) A permittee shall complete all work authorized by a permit within the time provided in the permit, or within a time extension of the permit granted by the city engineer or the city engineer's designee.

(i) A permittee shall provide factually accurate, truthful and complete information in making application for a permit.
(C91, § 23-64.02; O.13,638, 14,463)

Sec. 102-723. Denial of permit.

(a) *Mandatory denial.* Except in an emergency, no right-of-way permit will be issued:

(1) To any person required by section 102-660 to be registered who has not done so;

(2) To any person required by section 102-662 to file an annual report who has failed to do so;

(3) For any next-year project not listed in the construction and major maintenance plan, and not exempted from such requirement, pursuant to section 102-662;

(4) For any project which requires the excavation of any portion of a permanently improved street which was constructed or reconstructed within the preceding four years, unless the city engineer has given

permission for the issuance of the permit for such project pursuant to subsection 102-712(c);

(5) To any person who has failed within the past three years to comply or is not in full compliance with the requirements of divisions 1 through 3 of this article;

(6) To any person who has outstanding debt owed to the city;

(7) To any person as to whom there exists grounds for the revocation of a permit under section 102-728; and

(8) If, in the discretion of the city engineer, the issuance of a permit for the particular date and/or time would cause a conflict or interfere with an exhibition, celebration, festival, or any other event. The city engineer, in exercising this discretion, shall be guided by the safety and convenience of ordinary travel of the public over the right-of-way, and by considerations relating to the public health, safety and welfare.

(b) *Permissive denial.* The city engineer may deny a permit in order to protect the public health, safety and welfare; to prevent interference with the safety and convenience of ordinary travel over the right-of-way; or when necessary to protect the right-of-way and its users. In determining to deny a permit, the city engineer may, in his or her discretion, consider one or more of the following factors: the extent to which right-of-way space where the permit is sought is available; the competing demands for the particular space in the right-of-way; the availability of other locations in the right-of-way or in other rights-of-way for the equipment of the particular company; the applicability of this article or other regulations of the right-of-way that affect location of equipment in the right-of-way; the degree of compliance of the applicant with the terms and conditions of its franchise, license or lease, divisions 1 and 2 of this article, and other applicable ordinances and regulations; the degree of disruption to surrounding communities and businesses that will result from the use of that part of the right-of-way; the condition and age of the right-of-way, and whether and when it is scheduled for total or partial reconstruction; and the balancing of the costs of disruption to the public and damage to the right-of-way against the benefits to that part of the public served by the expansion into additional parts of the right-of-way.

(c) *Discretionary issuance.* Notwithstanding subsections (a) and (b) of this section, the city engineer may issue a permit in any case where the permit is necessary to:

(1) Prevent substantial economic hardship to a customer of the permit applicant;

(2) Allow such customer to materially improve its utility service; or

(3) Allow a new economic development project.

(C91, § 23-64.03; O.13,638)

Sec. 102-724. Construction and installation requirements; certification by permittee.

(a) When working in public rights-of-way, permittees under this article shall not unreasonably interfere with the safety, health, and convenience of the public in the public's use thereof for ordinary travel along and over the rights-of-way, nor shall they interfere with public safety or public health services provided by the city to its residents by means of the public rights-of-way.

(b) All work performed in the right-of-way by a registrant or permittee, including but not limited to the construction, installation, repair, maintenance, or replacement of equipment, shall be done in conformance with the city's utility accommodation and street restoration specifications. Equipment shall be constructed or installed in the right-of-way at a location as required by subsections 102-664(a) through (c) and shall be constructed as shown and placed in the location as shown on the plans and specifications therefor submitted in connection with the permit application, unless the permittee makes a written request to the city engineer to approve a change in location of such equipment. In no event shall equipment be constructed or installed in the right-of-way at a location other than that shown on the plans and specifications without the prior written consent of the city engineer.

(c) Within 30 days after completing the construction or installation of any equipment for which a permit was required, the permittee shall certify to the city engineer, on a form provided for that purpose by the department, that the equipment was constructed or installed at the location shown on the plans and specifications therefor submitted with the permit application or at an alternate location approved by the city engineer. This shall be in addition to the requirement stated in section 102-663 that mapping data be supplemented within six months after completion of the construction or installation of such equipment.

(d) Equipment constructed or installed at a location other than shown on the plans and specifications or at a location other than the alternate location approved by the city engineer shall be subject to immediate removal or relocation at the direction of the city engineer.

(e) No person shall leave or keep open any excavation or vault on, in or under any right-of-way. All excavations and vaults shall be protected in accordance with the city's utility accommodation and street restoration specifications.
(C91, § 23-64.04; O.13,638)

Sec. 102-725. Inspection.

(a) When the work under any permit issued pursuant to this article is completed, the permittee shall notify the city engineer.

(b) The permittee shall make the work site available to the department inspector and to all others as authorized by law for inspection at all reasonable times during the execution and upon completion of the work.

(c) At the time of inspection, the department inspector may order the immediate cessation of any work which poses a serious threat to the life, health, safety or well-being of the public.

(d) The department inspector may issue an order to the registrant for any work which does not conform to the applicable standards, conditions or codes. The order shall state that failure to correct the violation will be cause for revocation of the permit. Within ten days after issuance of the order, the registrant shall present proof to the city engineer that the violation has been corrected. If such proof has not been presented within the required time, the city engineer may revoke the permit pursuant to section 102-728.
(C91, § 23-64.05; O.13,638)

Sec. 102-726. Work done without permit.

(a) *Emergency situations.* Each registrant under this article shall immediately notify the city engineer of any event regarding its equipment which it considers to be an emergency. The registrant may proceed to take whatever actions are necessary in order to respond to the emergency. Within two business days after the occurrence of the emergency, the registrant shall apply for the necessary right-of-way permits, pay the fees associated therewith and fulfill the rest of the requirements necessary to bring itself into compliance with divisions 1 and 2 of this article for the actions it took in response to the emergency. If a storm, flood, or other citywide emergency event causes system-wide damages to the equipment of a utility service company, requiring emergency repairs without obtaining the necessary right-of-way permits, the city council may, upon request by the company sustaining such damage, waive or modify the requirement that permits be obtained after the making of emergency repairs in response to such event. If the city engineer becomes aware of an emergency regarding a registrant's equipment, the department may attempt to contact the local representative of each registrant affected or potentially affected by the emergency. In any event, the department may take whatever action it deems necessary in order to respond to the emergency, the cost of which shall be borne by the registrant whose equipment occasioned the emergency.

(b) *Nonemergency situations.* Except in an emergency, any person who obstructs or excavates a right-of-way without a permit must subsequently obtain a permit, pay double the normal fee for such permit, pay double all the other fees required by this Code, deposit with the department the fees necessary to correct any damage to the right-of-way and comply with all of the requirements of divisions 1 and 2 of this article. In lieu of requiring such person to pay double the fees as

provided in this subsection, the city engineer may assess an administrative penalty against such person as provided in subsection 102-710(a).
(C91, § 23-64.06; O.13,638)

Sec. 102-727. Supplementary notification by permittee.

If the obstruction or excavation of the right-of-way begins later or ends sooner than the date given on the permit, the permittee shall notify the department of the accurate information as soon as this information is known. If the obstruction of a right-of-way is of a shorter duration than that estimated on the permit application, the department will, upon request, refund or credit to the permittee a proportionate amount from that part of the permit fee which was based on the duration of the obstruction.
(C91, § 23-64.07; O.13,638)

Sec. 102-728. Revocation.

(a) Permittees hold right-of-way permits as a privilege and not as a right. The city reserves the right, as provided in this section, to revoke any right-of-way permit, without fee refund, for a substantial breach of the terms and conditions of any statute, ordinance, rule or regulation or any condition of the permit. A substantial breach by the permittee shall include but shall not be limited to the following:

(1) The violation of any material provision of the right-of-way permit;

(2) An evasion or attempt to evade any material provision of the right-of-way permit or the perpetration or attempt to perpetrate any fraud or deceit upon the city or its citizens;

(3) Any material misrepresentation of fact in the application for a right-of-way permit;

(4) The failure to maintain the required bonds and/or insurance;

(5) The failure to complete the work in a timely manner; or

(6) The failure to correct a condition indicated on an order issued pursuant to section 102-725.

(b) If the city engineer determines that the permittee has committed a substantial breach of a term of condition of any statute, ordinance, rule, regulation or any condition of the permit, the city engineer shall make a written demand upon the permittee to remedy such violation. The demand shall state that continued violations may be cause for revocation of the permit. Further, a substantial breach, as stated in this subsection, will allow the city engineer, at his or her discretion, to place additional or revised conditions on the permit.

(c) Within 24 hours of receiving notification of the breach, the permittee shall contact the city engineer with a plan, acceptable to the city engineer, for its correction. The permittee's failure to so contact the city engineer or the permittee's failure to submit an acceptable plan or the permittee's failure to reasonably implement the approved plan shall be cause for immediate revocation of the permit. Further, the permittee's failure to so contact the city engineer or the permittee's failure to submit an acceptable plan or permittee's failure to implement the approved plan shall automatically place the permittee on probation for one full year. From time to time, the city engineer may establish a list of permit conditions which, if breached, will automatically place the permittee on probation for one full year, such as but not limited to working out of the allotted time period or working on right-of-way grossly outside of the permit.

(d) If a permittee, while on probation, commits a breach as outlined in this section, the permittee's permit will automatically be revoked, and the permittee will not be allowed further permits for one full year, except for emergency repairs.

(e) If a permit is revoked, the permittee shall also reimburse the city for the city's reasonable costs, including restoration costs and the costs of collection and reasonable attorneys' fees, incurred in connection with such revocation.
(C91, § 23-64.08; O.13,638)

Sec. 102-729. City's remedies not exclusive.

The remedies provided in divisions 1 through 3 of this article and in other chapters in this Code are not exclusive or in lieu of other rights and remedies that the city may have at law or in

equity. The city is authorized to seek legal and equitable relief for actual or threatened injury to the public rights-of-way, including damages to the rights-of-way, whether or not caused by a violation of any of the sections of this article or other sections of this Code.
(C91, § 23-64.09; O.13,638)

Sec. 102-730. Duty to defend, indemnify and hold harmless.

Except where the duty to defend, indemnify, and hold the city harmless has been undertaken by the city water works pursuant to the requirements set out in chapter 26 of this Code or by a utility pursuant to the requirements set out in articles II and III of chapter 110 and articles IV, V, and VI of chapter 118 of this Code, every applicant for a right-of-way permit shall execute, as part of its permit application, an agreement to defend, indemnify, and hold harmless the city from any and all costs, expenses, or liability for damages or injuries to persons or property or liability of any kind whatsoever arising from or growing out of any obstruction, excavation, or restoration work within the right-of-way by the applicant for which a permit is required pursuant to this article.
(C91, § 23-65; O.11,711, 13,638)

Sec. 102-731. Sewer and water connections.

All excavations for sewer and water connections shall be left unfilled and the connections left exposed until inspected by the building official. Any person making any excavation for such connections shall notify the building official at the time the connection is completed in order that it may be properly inspected before the work of refilling is commenced.
(C42, § 84-6; C54, C62, § 54-75; C75, C79, § 23-64; C91, § 23-66; O.11,711, 13,010, 13,638)

Sec. 102-732. Tunneling.

No person shall tunnel under the surface of any right-of-way in the city for the purpose of making any gas, sewer, water, steam heating pipe, underground electric, telecommunications, telephone, or cable television connection without special permission from the city engineer.
(C91, § 23-66.01; O.13,638)

Sec. 102-733. Traffic control devices, lighting and plating.

(a) The public shall be protected at all excavations or trenches or open vaults in the right-of-way by the placement of proper traffic control devices, lighting and plating as specified in the state manual on uniform traffic control devices and applicable provisions of the city's utility accommodation and street restoration specifications.

(b) Every person making such an excavation or trench shall maintain any and all protection required under subsection (a) of this section until the trench or excavation has been refilled and the street, pavement, sidewalk or curb has been restored to its proper condition as provided in the city's utility accommodation and street restoration specifications.
(C91, § 23-66.02; O.13,638)

Secs. 102-734—102-760. Reserved.

DIVISION 3. FRANCHISE, LICENSE OR SMALL WIRELESS FACILITY PUBLIC RIGHT-OF-WAY USE (SWF) PERMIT FOR RIGHT-OF-WAY USE*

Sec. 102-761. Franchise, license or SWF permit required.

(a) Except as otherwise provided in this article, no person shall occupy or use public right-of-way on a citywide basis for the purpose of providing utility services to private customers without first obtaining a franchise from the city as provided and required by I.C. § 364.2, or obtaining a SWF permit from the city, unless such utility service is provided by a governmental entity having jurisdiction and authority to provide such service within the city.

***Editor's note—**Ord. No. 15,761, § 1, adopted April 8, 2019, amended the title of Div. 3 to read as herein set out. Formerly, said division was entitled "Franchise or License for Right-of-Way Use".

(b) Except as otherwise provided in this article, no person shall occupy or use any portion of the right-of-way for the purpose of operating or conducting a private business without first obtaining a license from the city.

(c) The city shall not grant, issue, or enter into any franchise, license or SWF permit that grants or allows exclusive use or occupancy of the right-of-way. Any person seeking a franchise or license for use of city right-of-way shall register with the city engineer as provided in sections 102-660 and 102-661. Any person seeking a franchise, license, or SWF permit for use of city right-of-way shall make application for a franchise, license, or SWF permit, as applicable, as provided in this division.

(d) An application for a franchise, license, or SWF permit for occupancy or use of a right-of-way shall be filed with the city engineer on a form provided by the city and shall include all registration information required to be submitted pursuant to section 102-661, if applicable.
(C91, § 23-66.03; O.13,638, 15,761)

Sec. 102-762. Grant of franchise; persons eligible.

(a) Under this division, franchises will be granted in accordance with the procedures provided therefor in I.C. ch. 364. The terms and conditions of a franchise shall be subject to negotiation between the franchise applicant and the city and shall be incorporated into the form of an ordinance. A franchise shall not be considered to have been granted by the city unless and until the form and provisions of the franchise ordinance have been approved and adopted by the city council, the grant of the franchise has been approved by the city electorate at an election, and the franchise has been duly recorded, all as required by I.C. ch. 364. The proposal to grant a franchise shall not be submitted at an election until the city council has duly passed and approved the ordinance containing the proposed franchise.

(b) A franchise will be granted only when the following conditions are met:

(1) The franchise applicant provides or proposes to provide a utility service to all of the city residents or to all of the residents within a given area of the city; or

(2) The franchise applicant provides or proposes to provide utility service within the city or within a given part thereof and is by law required to provide universal service within its service area; and

(3) The franchise applicant proposes that it be authorized to utilize any and all street and alley rights-of-way within the city or within a given part thereof for the purpose of providing such service; or

(4) The city council determines that the franchise applicant will ultimately require authorization to utilize any and all street and alley rights-of-way within the city or within a given part thereof for the purpose of providing such service; and

(5) The franchise applicant has obtained a certificate of public convenience and necessity from the state utilities board for the provision of that service, if required, and has met all other legal requirements to provide the utility service.

(c) Persons providing utility services, except local exchange telephone services, on the effective date of the ordinance from which this subsection derives:

(1) Which are not franchised by the city; and

(2) Which possess a certificate of public convenience and necessity from the Iowa utilities board for the provision of that service, if required; or

(3) Which provide utility service to all or a substantial proportion of the residents of the city, or to all or a substantial proportion of the residents of a given part of the city; and

(4) Which utilize all or a substantial proportion of the street and/or alley rights-of-way within the city, or within a given part of the city, for the purpose of providing such service;

shall be required to obtain a franchise for the continued provision of that utility service and for the continued use and occupancy of city street rights-of-way for that purpose.

(d) Pursuant to I.C. § 364.2(4)(a), as amended during the 1998 Session of the Iowa legislature, persons providing local exchange telephone service under the circumstances identified in subsection (c) of this section shall be exempt from the obligation to obtain a franchise as therein provided, but shall be required to obtain a communications system license, all as provided and required in this article and in article III of chapter 110 of this Code.
(C91, § 23-66.04; O.13,638)

Sec. 102-762.01. Persons eligible for issuance of SWF permit.

The following persons shall not be eligible for the grant of a franchise or a license, but shall instead be eligible for the issuance of a SWF permit for the use of the right-of-way in accordance with Iowa Code Chapter 8C and in accordance with all zoning and design requirements of this Code:

(1) Any person, and/or any person acting on behalf of another person, engaged in the business of providing wireless telecommunications services or the wireless telecommunications infrastructure required for wireless telecommunications services and who submits an application in accordance with this article and/or in accordance with chapter 134 of this Code, as applicable, for the purpose of installing a small wireless facility, a utility pole, or both in the right-of-way.

(O.15,761)

Sec. 102-763. Persons eligible for issuance of license.

(a) The following persons shall not be eligible for the grant of a franchise or SWF permit, but shall instead be eligible for the issuance of a license for the use of the right-of-way at the discretion of the city engineer:

(1) a. A person who provides or proposes to provide utility services to all residents within the city or to all residents within a given part thereof but who intends to utilize for that purpose only certain street or alley rights-of-way constituting only a small portion of the street or alley rights-of-way within the city or within that part of the city; or

b. A person who the city determines can provide such service by utilizing only certain street or alley rights-of-way constituting only a small portion of the street or alley rights-of-way within the city or within a given part of the city.

(2) The owner of two or more properties which abut a street or alley right-of-way on either side thereof and which properties are zoned for multifamily, commercial, or industrial use, who desires to use such street and/or alley right-of-way to provide a private service connection between two or more buildings or facilities located on such properties.

(3) The owner of two or more properties within the boundaries of the city, which properties are used collectively as a campus for residential, business, and/or educational purposes, who desires to use the streets and/or alleys connecting said properties to provide a private service connection not to exceed a four-block radius or 10,000 equivalent linear feet between two or more buildings or facilities located on such properties.

(4) A person who provides or proposes to provide wholesale services and/or support to its customers or clients who use the person's equipment and facilities within the city right-of-way. Upon request by such person for license, or for license renewal or license amendment increasing the equivalent linear footage of the person's equipment within the right-of-way existing on the effective date of the ordinance from which this section derives by ten percent or greater, the city engineer shall review the then-anticipated cost of

relocation and removal of the person's proposed equipment and restoration of the city right-of-way due to said relocation or removal, and prior to issuing such license, or renewal or amendment, the city engineer may, in his or her sole discretion, require such person to make payment to the city of an upfront deposit payment or to post a performance and maintenance bond in the amount as more fully described in subsection (a)(5)(d) of this section, and to be used as more fully described in subsection (a)(5)(d) of this section. Nothing set forth herein relieves such person of its obligation to additionally pay applicable fees, or to remove and/or relocate its equipment following its license term and/or renewal(s) thereof following city engineer order, or to otherwise comply with all provisions of this Code applicable to such person's use of the city right-of-way.

(5) A person who provides or proposes to provide a private service connection that does not cross a street or alley right-of-way between two or more buildings or facilities on either side thereof in accordance with subsection (a)(2) of this section, or that exceeds a four-block radius or 10,000 equivalent linear feet in accordance with subsection (a)(3) of this section, and who, in the discretion of the city engineer, fulfills all of the following criteria:

a. Owns a minimum of one property used for non-residential purposes within the boundaries of the city, as determined by the records of the county assessor and/or auditor within which county the property is located, for the duration of the initial license term and renewal(s) thereof; and

b. Provides a broad based public benefit to the city and its residents in the form of economic activity, and/or job creation, and/or the promotion of the health, safety or welfare of the city's residents; and

c. Does or will own the proposed equipment within the right-of-way, and whose proposed use of the right-of-way has a minimal current impact and minimal anticipated future impact on such right-of-way, and of the use thereof by the city or other parties allowed by the city pursuant to this article; and

d. Prior to license issuance, or to license renewal or amendment increasing the equivalent linear footage of the person's equipment within the right-of-way existing on the effective date of the ordinance from which this section derives by ten percent or greater, either pays to the city an upfront deposit payment or posts a performance and maintenance bond in the full amount recommended by the city engineer, including the anticipated cost of relocation and removal of such person's proposed equipment, plus the anticipated cost of restoration of the right-of-way due to said relocation or removal in the greater of the amount of $25,000.00 or the amount calculated pursuant to the city's utility accommodation and street restoration specifications and in accordance with the current restoration cost schedule established by resolution of the city council. Said deposit payment shall be held in separate account by the city, and any interest gained thereon shall be paid to the city. Said bond shall be in a form approved by the city engineer and city legal department, subject to the requirements of section 102-717(b)—(c) of this Code, and issued and/or renewed for the duration of the license issued pursuant to this section and all renewal(s) thereof and for a 48-month period following termination of such license and renewal(s). Upon request by such person for license renewal or amendment, the city engineer shall review the

amount of the deposit or bond, as applicable, and the then-anticipated cost of relocation and removal of such person's equipment and restoration of the city right-of-way due to said relocation or removal, and prior to issuing such renewal or amendment the city engineer may, in his or her sole discretion, require such person to pay additional funds to the deposit or increase the amount of the bond, as applicable, to account for inflation or other factors. Following full removal by such person of all of its equipment from the right-of-way and restoration thereof to the satisfaction of the city engineer, as required at the end of the license term or renewal(s) thereof or by order of the city engineer, then the deposit shall be reimbursed by the city to such person or the surety on the bond shall be released, as applicable. If such person fails to remove all of its equipment from the right-of-way and restore the right-of-way to the satisfaction of the city engineer at the end of the license term or renewal(s) thereof or following order of the city engineer, the deposit shall be deemed forfeited and shall not be returned to such person or the surety on the bond shall not be released, as applicable. Such forfeited deposit or unreleased bond may be used by the city to pay and/or reimburse all of the city's costs related to the removal or relocation of such person's equipment from the right-of-way and restoration of the right-of-way, or such forfeited deposit may be transferred to a general account to be used by the city, when and as determined in the sole discretion of the city engineer, to pay and/or reimburse all of the city's costs related to the removal or relocation of any abandoned equipment in the right-of-way and restoration of the right-of-way associated with any city project or city repair or maintenance activity. Nothing set forth herein relieves such person of its obligation to additionally pay applicable fees, or to remove and/or relocate its equipment following its license term and/or renewal(s) thereof or following city engineer order, or to otherwise comply with all provisions of this Code applicable to such person's use of the city right-of-way.

(b) Appeals of the city engineer's decisions regarding eligibility for the issuance of a license for the use of the right-of-way may be made pursuant to section 102-802 of this Code.
(C91, § 23-66.05; O.13,638, 15,120, 15,761)

Sec. 102-764. Authority to issue license and SWF permit; form of license and SWF permit.

(a) Licenses and SWF permits required by this division shall be issued by the city engineer. The city engineer shall review each application and shall issue each license or SWF permit which he or she determines to be in compliance with the requirements of this division and any other applicable legal requirements. In issuing a license, the city engineer may require a change in the proposed location of the licensee's equipment where necessary to avoid interference with other equipment placed within the public right-of-way.

(b) Licenses issued pursuant to this division shall be in writing, shall be executed by the licensee, and shall not take effect until approved by the legal department. The form of licenses to be issued pursuant to this division shall be uniform, but shall be subject to periodic review and modification.

(c) SWF permits issued pursuant to this division shall be in writing, uniform, and subject to periodic review and modification.
(C91, § 23-66.06; O.13,638, 15,761)

Sec. 102-765. Limit on term of franchises and SWF permits; limit on initial or renewal term of licenses.

(a) No franchise for use of the public right-of-way shall be granted for a term in excess of 25 years.

(b) No license for use of the public right-of-way issued by the city engineer shall be issued or renewed for a term in excess of five years.

(c) Every license issued by the city prior to July 1, 1998 for use or occupancy of public rights-of-way shall terminate on the date provided in the license, or if no such termination is provided in the license, the license shall terminate on the earlier of the tenth anniversary of its issuance or July 1, 2008.

(d) SWF permits shall not be limited in duration, provided, however, that the construction of a small wireless facility or a utility pole permitted by SWF permit shall commence no later than two years following the date that the permit is issued, or two years after any appeals related thereto are exhausted.
(C91, § 23-66.07; O.13,638, 15,761)

Sec. 102-766. Compensation required; franchise fees.

(a) No franchise for use of public right-of-way shall be granted, and no license for the use of public right-of-way shall be issued without requiring the grantee or licensee thereof to compensate the city for such use by payment of a reasonable and competitively neutral fee.

(b) All franchises granted by the city shall require the franchisee to pay an annual franchise fee. The franchise fee shall be provided for in the franchise ordinance.

(c) Franchise fees shall be paid at the city treasurer's office. The acceptance of any such fee payment by the city shall not be construed as an acknowledgment that the amount paid is the correct amount due, nor shall such acceptance of payment be construed as a release of any claim which the city may have for additional sums due and payable. Franchisees shall, within 90 days of the date of a written request from the city engineer, provide the city with an annual audit of the fees paid to the city during the reporting period indicating that the fee paid the city during that period is equal to the franchise fee due for such period. If such audit results in a determination that an additional amount of franchise fee is owing to the city for the prior year, such additional amount shall be due and payable immediately, together with interest at the rate of ten percent per year calculated from the due dates for the franchise fee payments in question. The city manager may waive the audit requirement when he or she determines that the franchise fee amount owing to the city is too minimal to justify audit.

(d) Nothing in this division shall be construed to limit the liability of a franchisee or licensee for all applicable federal, state and local taxes.

(e) Nothing in this division shall be construed to prevent the city council from exercising the right of the city to change the amount of any of the fees required by this division.
(C91, § 23-66.08; O.13,638, 15,386, 15,421, 15,422, 15,909)

Sec. 102-766.01. Access to equipment trenches and ducts.

(a) Franchisees and licensees may be requested by the city to provide access to equipment trenches or ducts at locations designated by the city in order for the city to install city equipment therein. Such installation shall be undertaken so as not to impact the applicable franchisee's or licensee's equipment or use of the trench or duct. Such access shall be at no cost to the city; shall not require separate access agreement; shall not occur until at least 90 calendar days' notice is given by the city to the applicable franchisee or licensee; and shall not occur until approval by the applicable franchisee or licensee is granted, which approval shall not be unreasonably withheld. Franchisees and licensees shall be obligated to respond to the city's notice requesting access within 30 calendar days from the date stated on such notice, and if approved, the applicable

franchisee or licensee shall be required to cooperate with the city to coordinate the access within a reasonable timeframe.

(b) In the event of an emergency relating to a building permit, the city shall contact the owner of the small wireless facility and/or utility pole, as applicable, at issue and provide the owner with a reasonable opportunity, given the nature of the emergency, to alleviate such emergency or participate with the city to make any repairs necessary to alleviate such emergency. If the owner of the small wireless facility and/or utility pole, as applicable, does not respond in a timely manner, as determined by the city given the nature of the emergency, the city may remove or make alterations to the small wireless facility as necessary to ensure public safety. For purposes of this subsection, "emergency" means exigent and extraordinary circumstances under which the physical or electrical failure of a utility pole, wireless support structure, or small wireless facility threatens imminent physical harm to persons or there is a substantial likelihood of imminent and significant harm to property.
(O.15,421, 15,422, 15,761)

Sec. 102-766.02. Reporting requirements.

On or before January 1 of each year, all licensees shall make a detailed report to the city engineer on the right-of-way usage reporting form provided by the city for that purpose, setting forth the amount of equipment that each such user has in city street rights-of-way, measured in equivalent lineal feet and/or on a per-unit basis, as applicable and as instructed on such form.
(O.15,909)

Sec. 102-767. Application for initial issuance of a license; registration required.

A person desiring to obtain a license as required in this division shall register such proposed use and occupancy of public right-of-way pursuant to division 1 of this article, shall make application for a license for such use and occupancy as provided in this article, and shall pay an application fee for initial issuance of the license. The application fee for initial issuance of a license and any future changes thereto shall be effective upon its inclusion in a schedule of fees adopted by the city council by resolution. The application for initial issuance of a license shall be filed with the city engineer not less than 60 days prior to the proposed effective date of the license and shall be filed upon a form provided by the city for that purpose. The application shall include, at a minimum, the following information:

(1) The name, address and telephone number of the applicant.

(2) The name, address and telephone number of a responsible person whom the city may notify or contact at any time or in case of emergency concerning the equipment or utility system.

(3) A statement of the purpose for the equipment or system proposed for installation in the public right-of-way, the type of service it will provide, and the intended customers which it will serve.

(4) Any additional information which the city engineer in his or her discretion may require.

(C91, § 23-66.09; O.13,638, 14,202)

Sec. 102-768. Issuance and renewal of licenses and SWF permits; revocation and cancellation.

(a) Prior to the initial issuance of a license for use or occupancy of public right-of-way, the city engineer shall conduct a review of the licensee's background to determine the licensee's ability to meet the requirements stated in subsection (e) of this section. If on the basis of such review the city engineer determines that it would not be appropriate to issue the license, the city engineer shall give notice of intent not to issue the license as provided in subsection (g) of this section.

(b) To obtain renewal of a license, the licensee shall file a renewal application with the city engineer on the form provided by the city and pay an application fee for renewal of the license. The renewal application fee and any future changes thereto shall be effective upon its inclusion in a schedule of fees adopted by the city

council by resolution. The renewal application shall be filed with the city engineer not less than 180 days prior to the expiration of the initial or any renewal term of the license. Upon receipt of the renewal application, the city engineer shall conduct a review of the licensee and the licensee's prior use of the public right-of-way to determine the licensee's continued compliance with the requirements stated in subsections (c) and (e) of this section. If on the basis of such review the city engineer determines that the licensee and the licensee's prior use of the public right-of-way comply with all requirements stated in subsections (c) and (e) of this section, the city engineer may renew the license for an additional term of up to five years. If on the basis of such review the city engineer determines that the licensee and the licensee's use of public right-of-way do not comply with one or more of the requirements stated in subsections (c) and (e) of this section, the city engineer shall give notice of intent not to renew the license as provided in subsection (g) of this section. If a licensee holds multiple licenses for use or occupancy of various rights-of-way within the city for the same or similar purpose, the licensee shall be required to renew all such licenses under a single license at such time as the earliest issued license expires.

(c) In determining the length of the term of an initial or a renewal license, the city engineer shall take into consideration the likelihood that the city will require the use of the licensed right-of-way for municipal purposes or that such use of the licensed right-of-way will unduly burden the city or the public in its use of the licensed right-of-way during the proposed term of the license. A license shall not be issued or renewed if the city engineer determines that any of the following conditions exist in the right-of-way proposed for licensing:

(1) There is insufficient space in the right-of-way to accommodate the proposed use, given the other existing uses thereof;

(2) The proposed private utility service connection would interfere with or conflict with existing or planned city equipment or utility equipment located or to be located in the right-of-way;

(3) Such use is incompatible with adjacent public or private uses of that right-of-way;

(4) Such use would involve an unacceptably high frequency of repair or maintenance to the private utility service equipment thereby requiring excessive excavation in or obstruction of the right-of-way; or

(5) The construction or installation of such private utility service equipment would interfere with a public improvement undertaken or to be undertaken by the city or with an economic development project in which the city has an interest or investment.

(d) If during the term of any license the city engineer determines that the license should be revoked due to the licensee's failure to comply with any of the requirements stated in subsection (e) of this section, the city engineer shall give notice of intent to revoke such license as provided in subsection (g) of this section.

(e) The following shall constitute grounds for refusal to issue or renew a license, or for revocation of a license for use or occupancy of public right-of-way:

(1) The licensee's failure to observe or comply with any of the following:

a. The licensee's use or prior use of public right-of-way has been conducted in full and timely compliance with all laws and regulations applicable thereto, and the licensee has complied fully and in a timely manner with the requirements of any previously issued license, and with the orders or instructions of city officials issued pursuant to this chapter; or

b. The licensee is current in the payment of license fees, if applicable, and the licensee has made such payments fully and when due.

(2) The licensee's commission of any of the following acts:

a. The licensee has made a misleading statement or a material

misrepresentation in connection with an application for initial issuance or renewal of a license, in connection with its registration of its use of the public right-of-way or in connection with its use of public right-of-way; or

b. The licensee has transferred or attempted to transfer its equipment, its business, or its license to another person or has made a change in use of its equipment, without giving the city notice thereof and obtaining city consent thereto.

(f) The city engineer shall give notice of intent to cancel such license as provided in subsection (g) of this section if during the term of any license the city engineer determines that:

(1) The licensee's continued use of the public right-of-way will unduly burden the city or the public in its use of that property;

(2) The public right-of-way for which the license was issued will be required for municipal purposes during the term of the license;

(3) The licensee's equipment at a particular location will interfere with:

a. A present or future city use of the right-of-way;

b. A public improvement undertaken or to be undertaken by the city;

c. An economic development project in which the city has an interest or investment; or

d. The public's safety or convenience in using the right-of-way for ordinary travel;

(4) The public health, safety and welfare requires it; or

(5) The continued existence of the license is not in the city's best interests.

(g) Notice of intent not to issue a license for use of the public right-of-way shall be given to the applicant, either by certified mail, return receipt requested, or by actual service or delivery thereof, which notice shall be given not more than 30 days after submission of the application. Notice of intent not to renew a license for use of the public right-of-way shall be given to the licensee, either by certified mail, return receipt requested, or by actual service or delivery thereof, which notice shall be given not more than 90 days after submission of the renewal application. Notice of intent to revoke or cancel a license shall also be given to the licensee. The notice shall set forth the grounds for refusal to issue or renew or for revocation or cancellation and shall inform the applicant or licensee of the right to an appeal hearing upon request. Such request for hearing shall be filed in writing with the city manager, and the hearing shall be scheduled and held as provided in section 102-802. At the hearing, the applicant or licensee shall have the burden of establishing that the grounds asserted in the notice do not exist.

(h) Upon the effective date of revocation or cancellation as provided in the city engineer's notice thereof, or upon the effective date specified in the city engineer's written decision upon the licensee's appeal, the licensee shall be required to cease its use and occupancy of the right-of-way or to remove or relocate its equipment therefrom, as provided in the notice or decision. Equipment not removed or relocated from the right-of-way as required in such notice or order shall be considered a nuisance and may be removed, relocated, or taken possession of by the city, at the licensee's expense. Except in emergency circumstances, the requirement to relocate, remove, or cease use of equipment shall be suspended during the pendency of any appeal taken by a licensee pursuant to division 4 of this article.

(i) Notwithstanding the notice and hearing requirements of subsection (g) of this section, the city engineer may in emergency circumstances order the immediate relocation or removal of equipment from the right-of-way and may, upon the licensee's failure to comply with such order, immediately remove, relocate, or take possession of such equipment at the licensee's expense.

(j) SWF permit applications shall be subject to denial in accordance with the provisions of Iowa Code Section 8C.7A and 8C.7C. SWF permits

shall be subject to revocation and/or cancellation in the event that the SWF permittee fails to comply with all provisions set forth in the SWF permit, or as otherwise set forth in Iowa Code Chapter 8C. A SWF permit may be modified upon city approval following written application by a SWF permittee, or in accordance with the following when applicable:

(1) If the city undertakes any maintenance, public improvement project, or reconstruction of property or equipment which requires the modification, relocation, or reconstruction of the small wireless facility or utility pole, in which event such work and the costs thereof shall be the responsibility of the building permittee or its successor.

(2) If a project is undertaken necessitating the modification, relocation, or reconstruction of the small wireless facility or utility pole for a private commercial purpose, in which event the city may require the owner or successor to modify, relocate, or reconstruct the small wireless facility or new utility pole upon prepayment of the costs of such work by the private commercial entity whose project facilitates the need for such work.

(C91, § 23-66.10; O.13,638, 14,202, 15,761, 15,909)

Sec. 102-769. Failure to secure, renew or comply.

(a) Any person who fails to secure a franchise, license, or SWF permit required under this division or any franchisee, licensee, or SWF permittee who fails to comply with the requirements of the respective franchise, license, or SWF permit, or this division, or with any other applicable legal requirements shall, upon notification of such violation by the city engineer, immediately act either to abate the violation or to cease its use and occupancy of the right-of-way and remove its equipment or system from the right-of-way.

(b) The city reserves the right either to remove or to disconnect and render inoperative any equipment or system in the right-of-way under franchise or license which is used or maintained contrary to this article; provided, however, that the city will give written notice of its intent to take such action, including the date upon which such action will be taken, to the affected franchisee or licensee not less than seven days prior to taking such action.

(C91, § 23-66.11; O.13,638, 15,761)

Sec. 102-770. Transfer of franchise, license, business, or equipment without city's consent; change in use of equipment without city's consent.

(a) A franchise granted by the city council pursuant to this division shall not be transferred to any other person without the prior consent of the city council. A franchisee shall not transfer its franchise, its business, or its equipment in the right-of-way to another person without giving the city council 90 days' prior written notice of such proposed transfer and without the prior consent of the city council. In such notice the franchisee shall clearly identify the proposed transferee, giving the name and address of a representative of the transferee who is authorized to discuss and provide information to the city regarding the transfer. The city council may, as a condition of its consent to such transfer, require the transferee to make application for a franchise as provided in section 102-767 of this division and to register its proposed use of the public right-of-way as provided in section 102-660 of this article. Upon receipt of the such application by a transferee, the city engineer shall conduct a review of the transferee and its prior and proposed use of the public right-of-way to determine the transferee's compliance or ability to comply with the requirements stated in subsections 102-

768(c) and (e), and shall report the results of such investigation to the city council. The city council may refuse consent to a proposed franchise transfer if it determines that the proposed transferee lacks the expertise, experience, financial resources or sufficient personnel required to maintain the franchised equipment and/or the right-of-way associated therewith, or if the city has previously revoked or cancelled a franchise or license or terminated a lease held by the proposed transferee, or if the proposed transferee, is then in default of any of its obligations under this article. If a franchise includes provisions regarding transfer which are more specific than those included in this subsection, the more specific provisions of the franchise shall prevail over the provisions of this subsection.

(b) A license issued or a lease granted pursuant to this division shall not be transferred to any other person without the prior written consent of the city engineer. A licensee or lessee shall not transfer the license or lease, the business, or the equipment in the right-of-way to another person without giving the city engineer 90 days' prior written notice of such proposed transfer and without the prior written consent of the city engineer. In such notice, the licensee or lessee shall clearly identify the proposed transferee, giving the name and address of a representative of the transferee who is authorized to discuss and provide information to the city regarding the transfer. The city engineer may, as a condition of consent to such transfer, require the transferee to make application for such license or lease as provided in this division and to register its proposed use of the public right-of-way as provided in section 102-660 of this article. Upon receipt of the such application by a transferee, the city engineer shall conduct a review of the transferee and the prior and proposed use of public right-of-way to determine the transferee's compliance or ability to comply with the requirements stated in subsections 102-768(c) and (e). The city engineer may refuse consent to a proposed transfer if he or she determines that the proposed transferee lacks the expertise, experience, financial resources or sufficient personnel required to maintain the equipment and/or the right-of-way associated therewith, or if the city has previously revoked or cancelled a franchise or license or terminated a lease held by the proposed transferee, or if the proposed transferee is then in default of any of its obligations under this article.

(c) The transferee of a franchisee's or licensee's equipment, business, franchise, or license shall not be entitled to enter upon public rights-of-way for the purpose of operating or maintaining such equipment unless and until it completes the formal transfer of such equipment, business, franchise or license and obtains the city's consent to such transfer.

(d) A franchisee, licensee, or SWF permittee shall not change the use of its equipment without giving the city 90 days' prior written notice of such proposed change in use. In such notice, the franchisee, licensee, or SWF permittee shall clearly and completely set forth the proposed change in use of equipment, how it would be accomplished, including any excavations required to accomplish such change, and projections as to the future maintenance implications of such change in use. Any proposed change in use of a franchisee's, licensee's, or SWF permittee's equipment shall require the prior approval of the city engineer. For franchisees and licensees, such approval may be withheld if the city engineer determines that the proposed use of the equipment at that location would be incompatible with or would likely damage or endanger other uses of the right-of-way, would involve a higher level of maintenance activities than the present use, would involve more street excavation or greater traffic disruption than the present use, or would be otherwise inappropriate. For SWF permittees, such approval may be withheld if the city engineer determines that the proposed use of the equipment at that location is subject to denial in accordance with the provisions of Iowa Code Section 8C.7A and/or 8C.7C.

(e) Notwithstanding the foregoing, no transfer of a franchisee's, licensee's, or SWF permittee's business shall be deemed to have occurred for purposes of this subsection when the franchisee, licensee, or SWF permittee is a publicly held entity whose stock is traded on recognized stock exchanges, and where transfer of ownership of the business has effectively occurred due to stock

sales or trading in the open market. However, if a merger, consolidation, transfer or disposal of substantially all of such a franchisee's, licensee's assets occurs, or if there is an assignment of its interest in a franchise or license granted or issued by the city under this division, the city shall, upon written notice to the franchisee or licensee have the right, in its sole discretion and without cause or further showing, to terminate the franchise or license. Upon notice to the city by such a franchisee or licensee of such merger, consolidation, transfer or disposal of its assets or assignment of its interest in a franchise, license, or lease granted or issued by the city, the city shall have six months within which to terminate the franchise or license. The provisions of a franchise or of a franchise regulatory ordinance with respect to the merger, consolidation, transfer or disposal of substantially all of the franchisee's assets or assignment of its interest in a franchise shall control over this subsection.

(f) Notwithstanding the foregoing, in approving the lease of any vacated city right-of-way, the city council may provide for the lessee's transfer or assignment of the leasehold interest without the prior consent of the city. Leases of vacated city right-of-way in existence on the effective date of the ordinance from which this section derives which provide for the lessee's transfer or assignment of its leasehold interest without the prior consent of the city, or which have a different consent requirement than is provided in this division, shall remain in effect, may be renewed, and shall prevail over the consent to transfer provisions of this section.

(g) Notwithstanding the foregoing, the city engineer's consent shall not be required for the transfer of a license issued pursuant to this division if such transfer is contemporaneous with and incidental to the transfer of two or more parcels of real estate from one person or entity to another person or entity; if the improvements on such parcels are interconnected by the licensed equipment for the purposes of providing integrated internal communications, electrical, heating or cooling services to the improvements on such parcels; and if the licensed equipment will continue to be utilized for the same purpose or purposes after the transfer is completed. However, the transferee shall notify the city engineer of such transfer within 30 days after its completion and shall provide evidence satisfactory to the city engineer that it has complied with this subsection and has assumed all obligations of the transferor with respect to the license.

(h) SWF permittees shall notify the city engineer within 60 days of any transfer of business and/or equipment ownership described in this section. The person to whom the business and/or equipment ownership is transferred shall be subject to all terms set forth in the initially issued SWF permit and subject to compliance with this Code.
(C91, § 23-66.12; O.13,638, 15,761)

Sec. 102-771. Amendment to license.

If a licensee with a current license issued pursuant to this division proposes to expand, reduce, relocate or modify any portion of its equipment or system within public right-of-way, the licensee shall file an application for an amendment to the current license with the city engineer, shall pay the administrative application fee as provided in section 102-767 of this division and pay a deposit or post a bond if required pursuant to section 102-763 of this division, and shall further comply with all other applicable requirements pursuant to section 102-763 of this division. An application for an amendment to a current license shall include relevant new information of the type required in connection with the initial application for a license. If approved, the amended license shall be issued by the city engineer in the same manner as the original license. However, if the amendment involves only one or more new hook-on connections to the licensed utility system and if the new connections will be made entirely through existing underground utility conduit or ducts so as not to require any excavation in the public right-of-way or by means of overhead wires or cables between existing utility poles, the licensee shall not be required to pay an additional administrative fee as part of the application for amendment.
(C91, § 23-66.13; O.13,638, 15,120)

Sec. 102-772. Duties of licensee and SWF permittee.

(a) No license or SWF permit required under this division or amendment to such license shall be issued for any equipment or system until the required fees have been paid and until a complete application has been filed with and approved by the city engineer.

(b) The licensee's equipment or system shall be installed or constructed in accordance with applicable industry standards, the city's utility accommodation and street restoration specifications, and the terms and conditions imposed by the city. The SWF permittee's equipment shall be designed, installed and constructed in accordance with the requirements of the SWF permit and of Iowa Code Section 8C.7A and 8C.7C, as applicable, including but not limited to the following requirements:

(1) The design and installation of any proposed small wireless facility reasonably matches the aesthetics of an existing utility pole or wireless support structure that incorporates decorative elements.

(2) For any proposed wireless facility to be mounted, installed, maintained, modified, operated or replaced on or adjacent to a new or replacement utility pole, such pole shall be of a similar appearance as an existing utility pole and located within a 500-foot radius of the existing utility pole. For purposes of this subsection, "utility pole" is as defined in Iowa Code Section 8C.2.

(3) Any proposed small wireless facility will not result in any noncompliance by the city with the Federal Americans With Disabilities Act.

(4) Any proposed small wireless facility will not impair, interfere with, or preclude the safe and effective use of facilities already located in the public right-of-way for pedestrian, vehicular, utility or other city public right-of-way purposes.

(5) Any proposed utility pole does not exceed the greater of 10 feet in height above the tallest utility pole, as defined in Iowa Code Section 8C.2, existing on or before July 1, 2017, located within 500 feet of the proposed new, replacement, or modified utility pole, or 40 feet in height above ground level, unless a greater height is allowed by chapter 102 of this Code.

(6) Other than a utility pole replacing an existing pole, any proposed utility pole is not located within an underground district designated by city council resolution or ordinance prior to submittal of the pole application.

(7) Other than a utility pole replacing an existing pole, the utility pole is not located within an area zoned and used for single-family residential use.

(c) If it becomes necessary to excavate or obstruct any public right-of-way in connection with the installation, construction, reconstruction, repair, operation, disconnection or removal of a licensee's or SWF permittee's equipment or system, the licensee or SWF permittee shall first obtain a permit from the city to do so in accordance with division 2 of this article.

(d) The licensee or SWF permittee shall maintain its equipment and all parts of its system in good condition, order and repair.

(e) The licensee or SWF permittee shall be responsible for repairing or reimbursing other licensed or franchised utilities or other persons or entities lawfully using the right-of-way for any damage to their property caused by negligence of the licensee or its agents, employees or contractors in connection with the installation, construction, reconstruction, repair, operation, disconnection or removal of the licensee's equipment or system.

(f) No license or SWF permit required under this division shall be issued to authorize placement of a utility system in any space which is required for public use.
(C91, § 23-66.14; O.13,638, 15,761)

Sec. 102-773. Indemnification.

It shall be a term and condition of any license issued pursuant to this division that, as part of

the consideration supporting the issuance of such license and the city's permission thereby to occupy and use the public right-of-way of the city, the licensee shall agree to indemnify, protect, save and hold harmless and defend the city from and against any and all liability, losses and damages to property, or bodily injury or death to any person, including payments made under worker's compensation laws, arising out of or in any way connected with the installation, construction, reconstruction, repair, operation, disconnection or removal of the licensee's system. The licensee shall pay all reasonable expenses incurred by the city in defending itself with regard to any of such claims, including all out-of-pocket expenses such as attorneys' fees and the value of any services rendered by the legal department or any other city officers or employees. If any litigation on account of any such claims shall be commenced against the city, and upon receipt by the licensee of written notice of such litigation from the city, the licensee shall defend the litigation at its own cost and expense. The record of any judgment rendered against the city on account of such claims shall be conclusive as against the licensee and shall entitle the city to recover the full amount thereof with interest and costs and attorneys' fees incurred by the city. The right of action therefor shall accrue to the city as soon as judgment shall have been rendered. The city shall fully cooperate with the licensee's defense of any such claim or action.
(C91, § 23-66.15; O.13,638)

Secs. 102-774—102-800. Reserved.

DIVISION 4. APPEALS

Sec. 102-801. Appeal to city council.

(a) Any person who is aggrieved by a decision of the department or of the city engineer with respect to the denial of registration required by this article or with respect to the denial or revocation of a right-of-way permit or who believes that the fees imposed on such person pursuant to this article do not conform to the requirements of I.C. § 480A.1 et seq., may request in writing that such denial, revocation, or fee imposition be reviewed by the city council.

(b) Such person shall file his or her written request for review with the city clerk within 30 days after the occurrence complained of and shall set forth therein the factual and legal basis for his or her objection to the action taken by the department or city engineer. The city council shall render its decision in writing on such request for review within 60 days after the timely filing of the request for review as provided in this section. Such written decision shall be mailed to the party requesting review.

(c) If the city council affirms the decision or action complained of and if the appealing person is still aggrieved by such decision or action, the appealing person may do either of the following:

(1) With the consent of the city council, have the matter finally resolved by binding arbitration. Binding arbitration shall be before an arbitrator agreed to by both the city council and the appealing person. If the parties are unable to agree on an arbitrator, the matter shall be resolved by a three-person arbitration panel made up of one arbitrator selected by the city council, one arbitrator selected by the appealing person, and one arbitrator selected by the other two arbitrators. The cost and expense of a single arbitrator shall be borne equally by the city and the appealing person. If a three-person arbitration panel is selected, each party shall bear the expense of its own arbitrator, and the parties shall jointly and equally bear the cost and expense of the third arbitrator and of the arbitration. Each party to the arbitration shall pay its own costs, disbursements, and attorney fees.

(2) Bring an action for declaratory ruling in district court to review the decision of the city council.

(C42, § 84-6; C54, C62, § 54-76; C75, C79, § 23-65; C85, § 23-67; O.11,711; C91, § 23-67; O.13,638)

Sec. 102-802. Appeals to city manager.

(a) Any person who is aggrieved by a decision or action of the department or of the city engineer with respect to any other matter covered or

regulated by this article may request in writing that such decision or action be reviewed by the city manager. Upon receipt of such request, the city manager may undertake to make a determination of the appeal or may assign the appeal to an administrative hearing officer for determination.

(b) Such person shall file his or her written request for review with the city manager's office within 30 days after the occurrence or action complained of and shall set forth therein the factual and legal basis for his or her objection to the decision made or action taken by the department or city engineer. The city manager shall render a decision in writing on such request for review within 60 days after the timely filing of the request for review as provided in this section. Such written decision shall be mailed to the party requesting review or participating in the hearing.

(c) If the city manager or hearing officer affirms the decision or action complained of and if the appealing person is still aggrieved by such decision or action, the appealing person may make further appeal to the city council as provided in section 102-801 of this division.

(d) If the city council affirms the decision or action complained of and if the appealing person is still aggrieved by such decision or action, the appealing person may bring an action for declaratory ruling in district court to review the decision of the city council.
(C42, § 84-7; C54, C62, § 54-77; C75, C79, § 23-66; C91, § 23-67.01; O.11,711, 13,638)

Sec. 102-803. Appeals relating to small wireless facility public right-of-way use (SWF) permits.

In lieu of the appeal processes set forth in sections 102-801 and 102-802, the following process shall be followed for appeals relating to SWF permits:

(1) A party aggrieved by the final action of the city, either by its affirmative action on a permit, term or condition, or rate, or by its inaction, may bring an action for review in any court of competent jurisdiction, except that if the final action of the city was the denial of a conditional or special use permit pursuant to chapter 134 of this Code, the party must first seek review under Iowa Code Section 414.10 and chapter 134 of this Code if deemed applicable by the city's community development director and if permitted under federal law.

(2) If a SWF permittee and the city cannot resolve a dispute relating to emergency action as set forth in section 102-766.01 above, any party may file an action concerning an alleged violation under section 102-766.01 or under Iowa Code Section 8C.7B in the district court for the county in which the violation is alleged to have occurred, for any appropriate remedy, including the removal of a small wireless facility deemed by the court to be in violation of Iowa Code Chapter 8C or the Iowa Electrical Safety Code. However, this section shall not preclude a party from bringing an action pursuant to the Iowa Electrical Safety Code or 47 CFR Section 1.1401 et seq.

(O.15,761)

Secs. 102-804—102-830. Reserved.

DIVISION 5. IMPLEMENTATION

Sec. 102-831. City engineer authorized to promulgate implementing regulations.

The city engineer is authorized to develop, as he or she determines necessary and expedient, regulations to implement this article, including but not limited to regulations relating to the application of the obstruction permitting requirement to routine utility or building maintenance activities and minor utility service connections, regulations relating to the requirement that detailed plans and specifications or sketches be submitted as part of excavation permit applications, and regulations further deferring the effective date of particular sections of this article.
(C91, § 23-67.05; O.12,099, 13,334, 13,638)

Sec. 102-832. Procedure for promulgation of implementing regulations.

(a) Regulations proposed by the city engineer to implement this article shall be in writing and shall be promulgated as follows and in the order listed:

(1) The city engineer shall file the proposed regulation with the city clerk.

(2) The city clerk shall publish notice of intent to approve the regulation and of the time and place of a public hearing thereon, including therein a description of the regulation and its proposed effective date, and stating that it is on file in the office of the city clerk.

(3) The city engineer shall promulgate the proposed regulation among the members of any class of right-of-way users which will be directly and particularly affected by a proposed regulation.

(4) The city engineer shall notify the city council of the proposed effective date of the regulation and provide a copy thereof to the city council for its review.

(5) The city engineer shall hold a public hearing on the proposed regulation.

(6) After council review of the proposed regulation, the city engineer shall formally approve and issue the regulation and cause the city clerk to publish it prior to its effective date as provided by I.C. § 362.5.

The city engineer's failure to promulgate a proposed regulation to a member of a class of right-of-way users which will be directly and particularly affected by a proposed regulation shall not impair the effect of the regulation.

(b) If, upon its review of a regulation proposed by the city engineer as provided in subsection (a) of this section, the city council determines that such regulation is inconsistent with this chapter of this Code or is inconsistent with any applicable state or federal law or regulation or is otherwise objectionable, the city council may direct that the proposed regulation shall not be published and shall not take effect. Regulations approved by the by the city engineer shall be effective upon their publication.
(C91, § 23-67.06; O.12,099, 13,638)

Sec. 102-833. Legal effect of regulations approved by city engineer.

Regulations approved by the city engineer, after promulgation, public hearing, and council review as provided in this division, shall have the effect of law. Any person who fails to perform an act required by such regulations or who commits an act prohibited by such regulations shall be guilty of a misdemeanor punishable as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.
(C91, § 23-67.07; O.12,099, 13,334, 13,638)

Secs. 102-834—102-860. Reserved.

ARTICLE X. GRADES

Sec. 102-861. City datum established.

The datum plane or base of levels for establishing the grades of any streets within the corporate limits shall be the low water mark at the junction of the Des Moines River and Raccoon River as described in Ordinance No. 60, passed on March 14, 1870, which is indicated by the following benchmarks:

The triangle mark on the water table at the base of the cornerstone on the northeast corner of the Municipal Building (city hall) at the southwest corner of East First and Grand Avenue is 28,932/1,000 feet above datum plane. A United States Geological Survey standard disk, stamped "TRAV. Station 8," at the state capitol, in the top of the statue platform at the west entrance, and nine steps higher than the walk is 90,103/1,000 feet above datum plane. A United States Geological Survey standard disk stamped "803.214 K 4 1930" in the concrete foundation at the first basement window well north from

southwest corner of Polk County Building east side of Second Avenue north of Court Avenue is 29,342/1,000 feet above datum plane. An Iowa DOT bronze plug southwest corner concrete handrail on Des Moines River Bridge at Southeast Fourteenth Street is 32,610/1,000 feet above datum plane. An "X" cut on concrete handrail northwest corner bridge over Raccoon River at Fleur Drive is 57,727/1,000 feet above datum plane. A United States Geological Survey standard disk in limestone wall southeast corner of bridge over Four Mile Creek at Douglas Avenue is 45,511/1,000 feet above datum plane.

(C42, § 85-1; C54, C62, § 54-79; C75, C79, § 23-68; O.10,107; C91, § 23-68)

Sec. 102-862. Calculation.

The grade of streets shall be calculated for the tops of the curbs or the tops of the sidewalks at the curblines and if the corner of the streets is mentioned the curb corner or the intersection of the curblines is meant.

(C42, § 85-2; C54, C62, § 54-80; C75, C79, C91, § 23-69)

Sec. 102-863. Ordinance required to establish or change.

The grade of any street or alley shall not be established or changed except by an ordinance duly passed therefor.

(C42, § 85-3; C54, C62, § 54-81; C75, C79, C91, § 23-70)

Sec. 102-864. Nonconforming grade.

For any street, highway or alley which has been improved by paving or curbing and the grade thereof as indicated by such improvement differs from the established grade, that grade shall be and is so changed and established as to conform to the grade shown by the improvement. However, nothing in this section shall be construed as changing any such special sidewalk grade established where permanent sidewalks have been built thereon.

(C42, § 85-4; C54, C62, § 54-82; C75, C79, C91, § 23-71)

Sec. 102-865. Uniformity between intersections.

All grades on any street, highway or alley shall be uniform between the grade points given, and the grade of the alley in any block shall conform to the grade of the street intersecting such alley and shall be uniform between streets unless the grades thereof are otherwise established by ordinance.

(C42, § 85-5; C54, C62, § 54-83; C75, C79, C91, § 23-72)

Sec. 102-866. Permits.

No person shall make or cause to be made any change in the established or natural grade of any street, alley or public place or deposit or cause to be deposited any earth, material or other substance therein or make or cause to be made any excavation therein without first procuring the necessary permit as required by this chapter.

(C42, § 85-9; C54, C62, § 54-84; O.7397; C75, C79, C91, § 23-73)

Sec. 102-867. Unauthorized change.

No person owning or occupying any real estate in the city shall permit any change in the established or natural grade of any street, alley or public place or permit to be deposited any earth, material or other substance therein or permit any excavation to be made therein adjoining premises owned or occupied by any such person for more than three days after knowledge thereof is received.

(C42, § 85-10; C54, C62, § 54-85; C75, C79, C91, § 23-74)

Sec. 102-868. Corner marks.

No person or his or her agent shall remove any stone or other mark made or set by the authority of the city engineer to designate any established corner, line or benchmark of the city. When it becomes necessary to have the stone or other mark relocated for the purpose of opening any street or alley, a person shall request the city engineer to remove and replace the stone or mark. Upon receipt of the application the city engineer shall remove and replace the stone, mark or other device as soon as practicable.

(C42, § 85-6; C54, C62, § 54-86; C75, C79, C91, § 23-75)

Sec. 102-869. Grade stakes.

No person shall injure, pull up, break off or erase any letter or figure or in any manner deface any grade stakes set by authority of the city engineer.
(C42, § 85-7; C54, C62, § 54-87; C75, C79, C91, § 23-76)

Secs. 102-870—102-895. Reserved.

ARTICLE XI. ENVIRONMENTAL ASSESSMENT AND REMEDIATION ACTIVITIES ON CITY PROPERTY*

DIVISION 1. GENERALLY

Secs. 102-896—102-920. Reserved.

DIVISION 2. LICENSE

Sec. 102-921. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Environmental assessment or assessment means the process of reviewing the history of use of a particular property and obtaining soil and/or groundwater samples therefrom for the purpose of determining if any form of environmental pollution exists upon the property.

Environmental remediation or remediation means the process of removing and/or treating contaminated soils or groundwater that are found to exist on a property so as to bring such soils or groundwater within acceptable levels or limits for such contaminants, as determined by appropriate environmental agencies of the state or federal government.
(C91, § 23-67.13; O.13,334)

Cross reference—Definitions generally, § 1-2.

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*__**Cross reference—**Environment, ch. 42.

Sec. 102-922. Required.

(a) No person shall engage in any environmental assessment or remediation activities upon or in any city property, including but not limited to streets, avenues, highways, alleys, parks, or other public places within the city, without first obtaining a license for such activities from the city permit and development center. No such license shall authorize the installation of wells or boreholes upon the paved portion of any street or highway right-of-way or upon any street or highway median, except upon express authorization of the city council.

(b) Environmental assessment or remediation projects undertaken by or on behalf of other governmental entities, which involve access to city property, shall be subject to the licensing requirements of this division, but the licensees for such projects shall be exempt from payment of license fees as required in this division. If such assessment or remediation work is to be performed by the employees of another governmental entity, the governmental licensee shall be exempt from the insurance and performance bond requirements of this division.

(c) Firms performing environmental assessment or remediation work on city property on behalf of the city pursuant to city contract and prospective purchasers of city property who desire to conduct an environmental assessment of those properties prior to completing the purchase thereof shall be exempt from the licensing requirements of this division, provided that the city may require such firms or purchasers to procure such insurance and/or performance bond as the city deems necessary and prudent under the circumstances.
(C91, § 23-67.03; O.12,099, 13,334)

Sec. 102-923. Application; information; cost where work done by city.

(a) Before a license is issued pursuant to this division, an application shall be made to the city permit and development center on a form provided by the city. The application shall identify the following:

(1) The place, extent and purpose of the contemplated work including a description of

the streets, alleys, or city properties upon which the activities are to be undertaken;

(2) The nature of the environmental contaminants to be assessed or remediated, the method of assessment or remediation, the probable source of such contaminants, and the party responsible for such contamination, if known;

(3) The time when assessment and/or remediation activities are to be commenced and completed;

(4) For whom and in connection with what property the activities are to be undertaken; and

(5) The name of the person engaged in doing the work and the person in charge thereof.

(b) The applicant shall include a simple sketch with its application showing the location of each monitoring well, injection or recovery well, or borehole which it proposes to install or make, with appropriate references to the location of sidewalks, curbs, driveways, utility poles, and other permanent landmarks.

(c) Each license issued pursuant to this division shall be subject to the following terms, requirements, and conditions, whether or not stated in the license, and individual licenses may impose additional or more stringent terms, requirements, or conditions:

(1) The licensee shall undertake and complete the assessment or remediation activities upon city property in a prudent and responsible manner, in conformance with all applicable laws and regulations, and shall properly operate and maintain any wells or boreholes which it installs, including city property immediately adjacent thereto.

(2) The licensee shall follow the procedures provided in I.C. § 480.1 et seq., regarding obtaining locator service prior to the commencement of any excavation or drilling activities on city property.

(3) Within a reasonable time after completion of each step of any of the activities on the city property, the licensee shall cause any tools, equipment, or materials placed thereon to be removed.

(4) The licensee shall promptly remove and properly abandon any well or borehole which it installed upon city property when the well or borehole is no longer needed for the purposes as originally installed or when it is notified by the city that the city property upon which a particular well or borehole is located is required for municipal purposes, including but not limited to street, sewer, traffic control, or water utility construction or repair.

(5) The licensee shall, at its own expense, properly remove, abandon, and fill each well or borehole that it installs upon city property and if necessary file a well closure report or other appropriate documentation with state or federal officials.

(6) The licensee shall restore the city property upon which it conducted assessment or remediation activities to the condition it was in prior to the commencement of such activities, to the satisfaction of the city engineer,

(7) The licensee shall accept all responsibility and liability for damage to underground facilities owned or operated by the city, which damages are occasioned by drilling or excavation work or by the installation, operation, or maintenance of wells or boreholes by the licensee or its agents, regardless whether the city provided locator services for such facilities.

(8) If the licensee fails to properly maintain any well or borehole or the city property immediately adjacent thereto or fails to remove a well or borehole after being advised that the city property upon which it is located is required for municipal purposes or fails to properly restore city property as required in this section, the city may either (i) deny the licensee access thereto, or (ii) declare the well or borehole a nuisance, cause such to be removed, and

assess the costs of abatement against the licensee or its property, all as provided in article VI of chapter 24 of this Code.

(9) The licensee shall indemnify and hold harmless the city from any and all costs, expenses or liability for damages or injuries to persons or property or liability of any kind whatsoever arising from or growing out of any environmental assessment or remediation activity for which a license has been issued pursuant to this division.

(C91, § 23-67.04; O.12,099)

Sec. 102-924. Liability insurance and performance bond.

(a) Before a license is issued as provided in this division, the applicant shall cause an insurance policy or certificate of insurance to be placed on file with the city permit and development center, evidencing coverages in the type and amount required by the city. The type and amount of insurance to be required shall in each instance be determined by the city's risk manager. The insurance policy or certificate shall include the city as an additional named insured, shall be issued by an insurance company licensed to do business in the state, and shall provide that the insurance may not be canceled or terminated except upon the giving of ten days' written notice to the city of the cancellation or termination.

(b) Before a license is issued as provided in this division, the applicant shall file with the city permit and development center a performance bond in an amount sufficient to cover the estimated cost of removal and proper abandonment of all wells and boreholes to be installed on city property, the cost of restoration of city property, and potential damage to city facilities occasioned by the proposed assessment and remediation activities to be undertaken, all in accordance with the current schedule of costs established by resolution of the city council upon the recommendation of the city engineer, such schedule to remain on file in the office of the city clerk. The bond shall be for the faithful performance of the terms of the license, this division and any other requirements provided by law. If the applicant fails to pay the costs and/or damages incurred by the city, fails or neglects to properly remove wells or boreholes, fails to restore city property to its proper condition within a reasonable time, or fails to maintain city property, after notice of such failure or neglect from the city engineer, the costs shall be paid or the work shall be performed by the city, and the costs thereof, as certified by the city engineer, shall be promptly paid by the licensee or bonding company, as the case may be. The bond shall be retained by the city until the licensee satisfactorily performs pursuant to all requirements, conditions, or provisions as provided in the license agreement or this division.

(c) Upon approval of the permit and development center, the license applicant may deposit with the city treasurer a cash bond, certificate of deposit, or a certified check payable to the city treasurer. The city treasurer's receipt therefor shall be attached to the application in lieu of the performance bond required in subsection (b) of this section. If the costs as certified by the city engineer are less than such deposit, or if the licensee has satisfied any and all maintenance, removal, or restoration responsibilities, the balance of the deposit shall be returned to the applicant. If the costs exceed the amount of the deposit, the licensee shall be liable to the city for such difference. Such excess costs shall be paid before any subsequent application by the licensee for a license under this division may be processed by the city permit and development center.

(d) In lieu of the bond provided in subsection (b) of this section or the deposit provided in subsection (c) of this section, an applicant or licensee may, upon the prior approval of the permit and development center, provide a performance bond in the minimum amount of $10,000.00 to cover all assessment and/or remediation work to be performed or being performed by or on behalf of the applicant/licensee at various license sites within the city. The bond shall comply in all respects with the bonding requirements set forth in subsection (b) of this section. If the permit and development center should at any time determine that a bond provided pursuant to this subsection is insufficient in amount to cover all outstanding work undertaken or to be undertaken by a licensee, it may require the licensee to provide

additional security therefor by increasing the amount of its bond or by providing an additional bond.

(e) If the city incurs additional expense, including but not limited to attorney fees, in collecting its costs from the licensee, such additional expenses shall be paid by the licensee or bonding company, as the case may be. The licensee's performance bond shall be retained until such time as the licensed premises is properly restored and all wells and boreholes are properly removed and closed, as provided in this division. The permit and development center is authorized to execute bond release documents upon review and approval thereof by the legal department.
(C91, § 23-67.05; O.12,099, 13,334)

Sec. 102-925. Fines for scheduled violations.

(a) The schedule of fines provided in section 102-710 of this chapter shall apply to violations of this division. Notice of violation with the applicable fine for such violation noted thereon shall be issued by the city engineer to the violator. Fines shall be paid in full within 30 days of the issuance of the notice at the office of the building department.

(b) The fines set out in subsection 102-710(a) of this chapter shall be charged in lieu of the enforcement penalties provided for in section 102-3 of this chapter, unless the violator refuses to correct the violation and pay the scheduled fine, or the city engineer determines, in view of the particular circumstances of the case, that immediate enforcement action pursuant to section 102-3 of this chapter is necessary to achieve compliance with the requirements of this division. The city engineer shall maintain a record of all violations, fines charged or other enforcement actions taken with respect to each licensee and may consider that record in determining whether to renew or issue any new license to a particular licensee.
(C91, § 23-67.06; O.12,099)

Sec. 102-926. Fee; issuance and renewal.

(a) Upon approval of the application, certificate of insurance and performance bond, or receipt of deposit in lieu of the bond, and payment of a license fee as provided in this section, the license shall be issued to the applicant, allowing commencement of those assessment and/or remediation activities approved by the permit and development center and described in the license.

(b) Licenses for environmental assessment or remediation may be issued either to the person who will be conducting the environmental assessment or remediation activities or to the person on whose behalf such work will be performed or to both. The permit and development center, in consultation with the legal department, shall determine the appropriate parties to be licensed under the circumstances of each case.

(c) A license for environmental assessment and remediation activities may be issued for an initial period of up to one year, and may be renewed for additional periods of one year as provided in this section. The application for initial issuance of a license shall be accompanied an application fee, plus an annual fee to be charged per well or borehole to be placed on city property. The application for renewal of a license shall be accompanied an application fee, plus an annual fee to be charged per well or borehole in place or to be placed on city property.

(d) If during the term of the license, the licensee desires to place additional wells or boreholes or to conduct additional assessment or remediation activities on city property at the licensed site, or desires to place additional wells or boreholes or to conduct additional assessment or remediation activities on city property immediately adjacent to the licensed site, the licensee shall make application in writing to amend its license, including therewith a plat of the location of such additional activities, wells, or boreholes. Such application shall be accompanied by a license amendment processing fee, together with the required annual fee per well or borehole to be placed on city property, as provided in subsection (c) of this section. If the permit and development center declines to approve any particular well or borehole site proposed by the applicant or licensee, that portion of the fee attributable to such well or borehole shall be refunded to the applicant or licensee.

(e) The license may include such provisions, requirements and conditions as the permit and development center shall determine necessary to protect the city's interests, not inconsistent with this chapter. All such licenses proposed for issuance by the permit and development center shall be subject to review and approval by the legal department.

(f) The fees provided in this section shall not apply to assessment or remediation activities being conducted by or on behalf of the city. The city council reserves the right to waive the fees as to assessment or remediation activities being conducted on city property by or on behalf of any other governmental entity.

(g) The permit and development center may renew licenses for environmental assessment or remediation activities upon city property for such additional period of time as is necessary for completion of the work, but all such renewals shall be discretionary upon the city engineer's determination that continued utilization of city property for that purpose will not unduly burden the city or the public in its use of city property and that such renewal is in the city's best interests. If the city engineer determines not to renew a license, notice of such determination shall be given to the licensee pursuant to section 102-928 of this division.

(h) The application fee for initial issuance of a license, the application fee for renewal or amendment of a license, and the annual fee per well or borehole placed on city property shall be in the amounts set in the schedule of fees adopted by the city council by resolution.
(C91, § 23-67.07; O.12,099, 13,334, 14,229)

Sec. 102-927. Activities by city work crews or city contractors.

No license shall be required for environmental assessment or remediation activities being performed by city work crews or by contractors performing such work on behalf of the city, provided that the city may require its contractors to procure such insurance and/or performance bond as the city deems necessary and prudent under the circumstances.
(C91, § 23-67.08; O.12,099, 13,334)

Sec. 102-928. Refusal to issue or renew; revocation.

(a) The city engineer may, after notice and hearing, refuse to issue or renew or revoke any license provided for under this division for any of the following reasons:

(1) Failure to comply with the requirements of this division or any other applicable legal requirements.

(2) Fraud, deceit or misrepresentation in connection with an application for a license.

(3) The city's determination that the licensed city property, or the property for which a license is requested, will be required for municipal purposes.

(4) Failure to conform to the requirements of any previously granted license, or violation of the orders or instructions of city officials issued pursuant to this division.

(b) The city engineer's notice of intent not to issue or renew a license shall be mailed to the licensee by certified mail, return receipt requested, not more than 30 days after submission of the application or renewal request, as the case may be. Notice of license revocation shall also be mailed to the licensee by certified mail, return receipt requested. The notice shall set forth the reasons for refusal to issue or renew or for revocation and shall inform the applicant or licensee of the right to an appeal hearing upon request. Such request for hearing shall be filed in writing with the city engineer not more than ten days after the applicant's or licensee's receipt of notice from the city engineer. Such hearing shall be held within 30 days of the filing of the request therefor, unless the time for the hearing is extended by mutual agreement. At the hearing, the applicant or licensee shall have the burden of establishing its entitlement to a license. The city engineer shall issue a written decision on the appeal within 30 days of the conclusion of the hearing.

(c) If a license is refused or revoked upon the basis that the city property licensed or proposed for licensing is required for municipal purposes, the applicant or licensee shall not be entitled to appeal. However, in that event, the licensee shall be entitled to a partial fee refund to be computed

on the basis of 1/12 of the required annual fee multiplied by the number of unexpired whole months of the year remaining in the license term. In all other cases where a license is revoked, no refund of any portion of the required annual fee shall be paid to the grantee.
(C91, § 23-67.09; O.12,099)

Sec. 102-929. Records.

The permit and development center shall maintain a record of each license issued pursuant to this division. Licenses shall be regularly numbered in the order issued. The license shall contain the name of the person to whom it is issued, the location of the private property and city property upon which environmental assessment or remediation activities are being undertaken, and the schedule pursuant to which such activities are to be commenced and completed. The license shall not take effect until the time stated therein, nor shall any work be performed under it until such time. The license shall expire at the time stated thereon for completion unless renewed as provided in this division.
(C91, § 23-67.10; O.12,099)

Sec. 102-930. License to be exhibited on-site.

One copy of the license required by this division shall be kept at the work site and exhibited to any police officer, inspector or agent of the city engineer asking for the license. Any person performing work pursuant to such license shall provide signage at the work site in accordance with the city's utility accommodation and street restoration specifications, giving clear notice to the traveling public of the name, address, and telephone number of the contractor performing the work.
(C91, § 23-67.11; O.12,099)

Sec. 102-931. Separate street excavation permit.

If, during the course or environmental assessment or remediation activities on street or highway rights-of-way within the city, the licensee will be required to engage in any excavation or trenching work, the licensee will be required to obtain a separate street excavation permit pursuant to article IX of this chapter.
(C91, § 23-67.12; O.12,099)

Secs. 102-932—102-960. Reserved.

ARTICLE XII. NUMBERING OF BUILDINGS*

Sec. 102-961. House numbers.

There are established, as division lines for the purpose of numbering buildings, the following lines:

(1) *Line A.* A line beginning at the intersection of the centerline of Vine Street with the middle of the channel of the Des Moines River; thence westerly along the centerline of Vine Street to the intersection of the projected centerline of Vine Street and the north right-of-way line of C., R.I. & P. Railway; thence westerly along the north right-of-way line of the C., R.I. & P. Railway to the intersection with the east and west centerline of section 7-78-24; thence west along the centerline of section 7-78-24 and sections 12 and 11, Township 78, Range 25, to the west city limits, designated as and called line A.

(2) *Line B.* A line beginning at the intersection of East Vine Street with the Des Moines River; thence easterly along the centerline of East Vine Street and along the westerly projection of the centerline of East Vine Street to the intersection with the north track of the C., R.I. & P. Railway main line to the intersection with the westerly projection of the centerline of East Court Avenue at East Twentieth Street; thence east along the centerline of East Court Avenue and the westerly projected centerline of East Court Avenue to the west line of Laurel Hill Cemetery; thence eastward to the city

*__Cross reference—__Painting house numbers on curbing, § 30-156 et seq.

limits on a line parallel to the centerline of Sections 5 and 6, Township 78, Range 23, designated as and called line B.

(3) *Line C.* A line beginning at a point in the channel of the Des Moines River, which is on a line connecting the centerline of Vine Street west of the Des Moines River and the centerline of East Vine Street east of the Des Moines River; thence following the middle of the channel of the Des Moines River in a northerly and westerly direction to where it intersects with the southerly projection of the centerline of First Street south of Guthrie Avenue; thence north along the southerly projected centerline of First Street and the centerline of First Street to the intersection of the centerline of Sheridan Avenue; thence east along the centerline of East Sheridan Avenue, to the southerly extension of the centerline of First Street, north of East Sheridan Avenue; thence north along the centerline of First Street and north along the northerly projected centerline of First Street from Euclid Avenue to Douglas Avenue; thence north along the centerline of First Street to the north city limits, designated as and called line C.

(4) *Line D.* A line beginning at a point in the channel of the Des Moines River, which is on a line connecting the centerline of Vine Street west of the Des Moines River and the centerline of East Vine Street east of the Des Moines River; thence following the middle of the channel of the Des Moines River in a southerly direction to a point which is the intersection of the channel of the Des Moines River and the centerline of South Union Street projected in a northerly direction to the channel; thence southerly along the projected centerline of South Union Street and the centerline of South Union Street, and along the southerly projected centerline of South Union Street to intersect with the centerline of Indianola Avenue; thence southerly in a straight line to the intersection of the centerline of Hartford Avenue and the centerline of South Union Street; thence south along the centerline of South Union Street and the projected centerline of South Union Street to the south city limits, designated as and called line D.

(C42, § 86-1; C54, C62, § 54-152; C75, C79, § 23-129; O.10,651; C91, § 23-129)

Cross reference—Buildings and building regulations, ch. 26.

Sec. 102-962. Assigning numbers.

(a) *North and south streets.* All buildings on the west side of streets extending in a northerly and southerly direction shall be assigned even numbers, and all buildings on the east side of such streets shall be assigned odd numbers.

(b) *East and west streets.* All buildings on the south side of streets extending in an easterly and westerly direction, west of lines C and D, shall be assigned even numbers, and all buildings on the north side of these streets shall be assigned odd numbers. All buildings on the south side of easterly and westerly streets east of lines C and D shall be assigned odd numbers, and all buildings on the north side of these streets shall be assigned even numbers.

(C42, §§ 86-2, 86-3; C54, C62, §§ 54-153, 54-154; C75, C79, C91, § 23-130)

Sec. 102-963. House number plats.

The numbering of buildings shall be in accordance with plats on file in the development services department. These plats shall be preserved and extended by the development services director or designee in accordance with the plans of such plats as new streets are opened.

(C42, § 86-4; C54, C62, § 54-155; C75, C79, C91, § 23-131; O.16,329)

Sec. 102-964. Notice of street number.

The zoning enforcement officer or designee as established by policy shall deliver to each owner, agent or lessee making application therefor and furnishing him or her with a description of the premises and an accurate statement of the location thereon of the building for which a number

is sought a notice of street number or, if a discrepancy in street address is discovered and corrected, a notice of change of address for the affected property, showing the number to be placed on the building.
(C42, § 86-5; C54, C62, § 54-156; C75, C79, § 23-132; O.10,651; C91, § 23-132; O.13,010, 16,164, 16,329)

Sec. 102-965. Display.

The owner, agent or lessee of any building in the city owned, controlled or occupied by him or her and not bearing a proper number shall place or cause to be placed on the building in a conspicuous place, as near as may be to the main entrance thereto so that it may be easily seen from the street extending in front of the building, its number as shown in the notice issued by the building director.
(C42, § 86-6; C54, C62, § 54-157; C75, C79, C91, § 23-133)

Sec. 102-966. Size and material.

The digits comprising the numbers placed on the building shall be not less than four inches in height and shall be painted on wood, glass or metal or shall be cut from metal and so colored as to be easily read.
(C42, § 86-7; C54, C62, § 54-158; C75, C79, C91, § 23-134; O.16,329)

Sec. 102-967. Enforcement.

The zoning enforcement officer or designee shall enforce this article respecting the duty of owners, agents or lessees to number buildings. Any person refusing to number a building as provided in this article or who shall fail to do so for a period of 30 days after being notified in writing by the zoning enforcement officer or designee to do so shall be deemed guilty of a simple misdemeanor. The zoning enforcement officer or designee may proceed to place a suitable number on the building and shall report the cost thereof to the city council. The council may assess the cost thereof against the property for collection in the same manner as a special assessment.
(C42, § 86-8; C54, C62, § 54-159; O.7588; C75, C79, C85, § 23-135; O.11,583; C91, § 23-135; O.13,010, 16,329)

Secs. 102-968—102-995. Reserved.

ARTICLE XIII. MOVING OF HOUSES AND HEAVY EQUIPMENT*

Sec. 102-996. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

House mover means any person who engages in the business or work of house moving in any way within the city.

House moving means the moving of any house, building, structure or any part thereof, except structures or parts of structures less than 15 feet wide and less than 12 feet high, from one location to another when moving requires traveling upon, across, along or over any street, avenue, highway, thoroughfare, alley, sidewalk or other public ground in the city.
(C62, § 54-160; O.7176; C75, C79, C91, § 23-136)
Cross reference—Definitions generally, § 1-2.

Sec. 102-997. House mover's license required.

No person shall engage in the business of house moving unless and until he or she has obtained a license therefor.
(C62, § 54-161; O.7176; C75, C79, C91, § 23-137)

Sec. 102-998. House mover's license application.

Any person intending to engage in the business of house moving shall file a written application for a house mover's license in the department of engineering. The application shall set forth in such detail as may be required by the city engineer the applicant's qualifications and experience, the kind or type of equipment he or she intends to use and whether or not he or she owns

*__Cross references—__Buildings and building regulations, ch. 26; traffic and vehicles, ch. 114; permit for moving buildings, § 122-7.

such equipment, and other information as may be necessary to determine his or her qualifications as a house mover.
(C62, § 54-162; O.7176; C75, C79, C85, § 23-138; O.11,583; C91, § 23-138)

Sec. 102-999. House mover's bond.

The applicant for a house mover's license shall file a bond, with the application, with an approved corporate surety in the penal sum of $25,000.00, conditioned that all work done under the license shall be done in a good and workmanlike manner, in accordance with all sections of this Code and all city ordinances relating to house moving, and that the applicant will pay to the city or to any person injured all damages for injuries to persons or property, including but not limited to damages to any street, curb, sidewalk or any other public property caused by negligence, fault or mismanagement of the applicant or any person in his or her employ or due to any other cause in doing any work under the license or permit.
(C62, § 54-163; O.7176; C75, C79, C91, § 23-139; O.14,245)

Sec. 102-1000. House mover's license fee and term.

The fee for a license as a house mover shall be a fee in the amount set in the schedule of fees adopted by the city council by resolution, and the license shall expire on April 1 of each year.
(C62, § 54-164; O.7176, 7330; C75, C79, C91, § 23-140; O.14,174)

Sec. 102-1001. Insurance.

(a) Before any license required by section 102-997 of this article is issued, the applicant shall obtain insurance as described in this section and provide a certificate of insurance disclosing such compliance. Such insurance shall include coverage for workers' compensation, automobile liability and general liability. Workers' compensation insurance shall be provided if required of the licensee under I.C. ch. 85. If workers' compensation insurance is required, employer's liability insurance shall be included with limits of not less than $100,000.00 each accident for bodily injury by accident, $100,000.00 each accident for bodily injury by disease, and a policy limit of $500,000.00 for bodily injury by disease. Automobile liability insurance shall be in an amount of not less than $1,000,000.00 combined single limit. General liability insurance shall be comprehensive or commercial general liability insurance coverage in an amount of not less than $1,000,000.00 for each occurrence and/or general aggregate combined single limit. Both the automobile liability and general liability insurance policies shall include contractual liability coverage. The general liability insurance policy shall also include in its definition of an insured contract the indemnification of a municipality when required either by ordinance or contract or otherwise. All insurance policies under this section shall provide that they may not be cancelled without 30 days' written notice to the city.

(b) Indemnification. Licensee shall defend, pay on behalf of, indemnify and hold harmless the city, its elected and appointed officials, employees and volunteers and others working on behalf of the city, against any and all claims, demands, suits, or loss, including any and all outlay and expense connected therewith, by reason of bodily injury, death, damage to property or loss of use thereof, which arises out of the activities of the licensee, or others affiliated with licensee, while operating under permissions granted by this license.

(c) Waiver of subrogation. Licensee shall release the city, its elected and appointed officials, employees and volunteers and others working on behalf of the city, from liability or responsibility for any injury, damage, liability, loss or expense incurred by the licensee or others affiliated with the licensee, by way of subrogation or otherwise, for any loss or damage to property caused by fire or any other casualty while arising out of the activities of the licensee, or other affiliated with licensee, while operating under permissions granted by this license.
(C62, § 54-165; O.7176; C75, C79, C85, § 23-141, O.11,201, 11,583; C91, § 23-141; O.14,245)

Sec. 102-1002. Issuance of house mover's license.

Upon payment of the proper fee and the filing of the bond and insurance policy as required in

this article and after obtaining the approval of the city engineer, the city engineer shall issue to the applicant a house mover's license.
(C62, § 54-166; O.7176; C75, C79, C85, § 23-142; O.11,583; C91, § 23-142)

Sec. 102-1003. Revocation of house mover's license.

Any person who shall, in any application for a house mover's license or house moving permit, make any false or untrue statement or who shall violate this article or who shall fail to pay any costs or expense incurred by the city as a result of his or her operations or whose bond or insurance as required in this article has been cancelled or otherwise terminated shall, upon such finding, have his or her license revoked.
(C62, § 54-167; O.7176; C75, C79, C91, § 23-143)

Sec. 102-1004. Transferability of house mover's license or permit.

No license or permit issued pursuant to this article shall be transferable.
(C62, § 54-168; O.7176; C75, C79, C91, § 23-144)

Sec. 102-1005. House moving permit.

No person shall move any house, building or structure or part thereof except that which is less than 15 feet wide and less than 12 feet high, unless and until he or she has obtained a house moving permit, which shall not be issued to anyone except a person licensed as a house mover under this article.
(C62, § 54-169; O.7176; C75, C79, C85, § 23-145; O.11,583; C91, § 23-145)

Sec. 102-1006. Application for house moving permit.

Any person desiring a house moving permit as required in this article shall file an application in the office of the city engineer at least 30 days prior to the commencement of the work. The application shall contain the following:

(1) The date and time of moving the house, structure or building.

(2) The detailed statement setting forth the proposed route to be followed in moving the structure, the equipment to be used and specifying the person in charge of the moving operation.

(3) The location of the premises to which the structure is to be moved and the zoning classification thereof.

(4) The name of the owner of the structure and the name of the owner of the premises to which it is being moved and showing that the applicant is entitled to move the house.

(5) A plot plan of the location to which the structure is to be moved, showing the exact proposed location of the structure, the boundaries of the lot upon which the structure is to be placed, and the dimensions of the lot.

(6) A statement showing the maximum length and width, including eaves and loaded height, of the structure to be moved. Verification of the dimensions of the loaded structure shall be provided to the city by the applicant and shall become a part of the application. In addition, the mover shall verify that the designated route will accommodate the structure to be moved. Damages due to variances from the verified dimensions shall be the responsibility of the house mover.

(7) An agreement that the house mover shall indemnify and hold the city harmless from any claims or damages for injuries to persons or property resulting from the moving of the structure for which the permit is requested.

An agreement that the applicant shall immediately report any damage done by the moving operation to any street, sidewalk, alley, curb, avenue, boulevard, highway, tree or other public property and that the applicant will upon demand pay the cost of repair occasioned by the damage to the city.

Upon receiving the application, the city engineer shall notify the community development department of the proposed move. The community development department shall notify the recognized neighborhood organization for

the proposed house location, and any other recognized neighborhood organization along the proposed route. The notification shall include the name and phone number of the owner of the structure to be moved or a representative of the moving company that residents can contact for additional information.
(C62, § 54-170; O.7176, 7397; C75, C79, C91, § 23-146; O.14,245)

Sec. 102-1007. Utility company consents.

The applicant for a permit required under section 102-1005 of this article shall file with the application the consent of the electric energy company, the telephone company and any franchise cable television company, and any communications company or other utility with overhead wires across the proposed route, to use the proposed route.
(C62, § 54-171; O.7176; C75, C79, C85, § 23-147; O.11,583; C91, § 23-147; O.14,245)

Sec. 102-1008. House moving permit fees.

The fees for house moving permits shall be in the amounts set in the schedule of fees adopted by the city council by resolution. This fee shall be paid at the time the application is filed.
(C62, § 54-172; O.7176, 7330; C75, § 23-148; O.9125, 9161; C79, C91, § 23-148; O.14,174)

Sec. 102-1009. Issuance of house moving permit.

Upon the filing of the application with the city engineer and payment of the fee as required in this article and upon the approval of the city engineer, and the director of public works, a house moving permit shall be issued by the city in accordance with this article.
(C62, § 54-173; O.7176, 7397; C75, C79, C91, § 23-149; O.14,245)

Sec. 102-1010. Denial of house moving permit.

(a) When, in the judgment of the city engineer or the director of public works, the proposed work will result in an undue hazard to traffic or undue damage to streets, avenues, boulevards, thoroughfares, highways, curbs, sidewalks, trees or other public or private property, the house moving permit shall be denied and the reasons therefor endorsed upon the application. In the review process, the preservation of the urban forest, and the preservation of historically and/or architecturally significant houses shall be given strong consideration.

(b) The permit shall also be denied if the structure will not comply with pertinent sections of this Code or city ordinances or state laws relating to electrical and plumbing requirements of new structures, unless the owner has obtained a building permit to correct the violations, or if the power, gas, telephone or cable company refuses to consent to the operations or if the structure will not comply with the zoning or the planning and design requirements affecting the proposed location.
(C62, § 54-174; O.7176, 7397; C75, C79, C91, § 23-150; O.14,245, 15,819)

Sec. 102-1011. Restrictions on house moving permit.

(a) A permit issued pursuant to section 102-1009 of this article may be restricted if, in the judgment of the city engineer, the moving operations would create undue traffic congestion or hazards. The city engineer may require police escorts or temporary removal of traffic control devices for the moving operations, or he or she may restrict or specify the hours during which the moving operation must be accomplished.

(b) A permit issued shall not become valid for moving a structure unless the house mover provides written notice to each residence or commercial property along the planned route at least seven calendar days prior to the planned move, using printed notices that identify the proposed date, time and route for the move, the size of the structure to be moved, and the anticipated effects of the move, such as temporary cutoff of utility service, temporary removal of parking on the street, or other effects.

(c) If legally parked vehicles on the proposed route will interfere with the move, the house mover shall notify the city engineer and shall install temporary emergency no parking signs along such portions of the route as may be

needed at least 24 hours prior to the start of the move, and shall promptly remove such signs after the move is completed.

(d) If traffic signs, traffic signals or other existing city facilities along the proposed route will interfere with the move and will require adjustment or relocation to allow the move, the house mover shall notify the city engineer at least seven

calendar days prior to the planned move, and shall pay the costs for any such adjustment or relocation as directed by the city engineer.

(e) The cost of these requirements shall be borne by the house mover.
(C62, § 54-175; O.7176, 7397; C75, C79, C85, § 23-151; O.11,583; C91, § 23-151; O.14,245)

Sec. 102-1012. Parking permission.

No person shall stop, stand or park a house, equipment, material or structure upon privately owned property without first having obtained the consent of the owner or person in charge of that property. Upon complaint of the owner or person in charge, failure of the person to obtain consent is declared to be a misdemeanor.
(C62, § 54-175.01; O.7330; C75, C79, C91, § 23-152)

Sec. 102-1013. Equipment.

(a) All equipment used in the house moving operation must be equipped with adequate warning flares and lights.

(b) The house mover shall at all times comply with the state statutes pertaining to wheel loadings.

(c) The house mover shall not use any equipment, which travels upon the streets, avenues, boulevards, highways, alleys, sidewalk or other public grounds, that is not equipped with rubber tires. Tire chains shall not be used on city roadways.
(C62, § 54-176; O.7176; C75, C79, C91, § 23-153; O.14,245)

Sec. 102-1014. Placement of equipment.

All caster wheels or other rolling gear shall be placed under the house, structure, or building to be moved in such a manner that the measurement of the maximum outside width of casters, wheels or rolling gear shall be at least two feet less than the width of the traveled portion of the roadway upon which the house, structure or building is to be moved.
(C62, § 54-177; O.7176; C75, C79, C91, § 23-154)

Sec. 102-1015. Report of damage.

The house mover shall report any damage done to any street, avenue, highway, boulevard, alley, sidewalk, curb, tree, telephone or light poles or wires, or to any other public or private property, except property owned by the house mover or the structure being moved, to the director of public works within 12 hours from and after the occurrence. Failure to report damage as required in this section shall be a misdemeanor.
(C62, § 54-177.01; O.7176, 7397; C75, C79, C91, § 23-155)

Sec. 102-1016. Payment for damages.

The house mover shall upon demand pay any damages resulting from any injury to any person or property, which injury is required to be reported to the director of public works under section 102-1015 of this article. Nothing in this section shall be construed to prevent the house mover from contesting any claim in good faith in any court.
(C62, § 54-177.02; O.7176, 7397; C75, C79, C85, § 23-156; O.11,583; C91, § 23-156)

Sec. 102-1017. Reconstruction.

The work proposed by the permit obtained pursuant to section 102-1009 of this article shall be completed within six months from the date the house, structure or building is moved.
(C62, § 54-177.03; O.7176; C75, C79, C85, § 23-157; O.11,583; C91, § 23-157)

Sec. 102-1018. Permit for moving construction machinery or for vehicle with indivisible load.

The city engineer may upon application and with good cause being shown therefor issue permits for the movement of construction machinery being temporarily moved on streets, roads, or highways and for vehicles with indivisible loads carried thereon which exceed the maximum dimensions and weights specified in state law. Permits so issued may be single-trip permits or annual permits. All permits shall be in writing and shall be carried in the cab of the vehicle for which the permit has been issued and shall be available for inspection at all times. The vehicle

and load for which the permit has been issued shall be open to inspection by any peace officer or to any authorized agent of any permit granting authority. When in the judgment of the city engineer the movement of a vehicle with an indivisible load or construction machinery which exceeds the maximum dimensions and weights will be unduly hazardous to public safety or will cause undue damage to streets, avenues, boulevards, thoroughfares, highways, curbs, sidewalks, trees or other public or private property, the permit shall be denied and the reasons therefor endorsed upon the application. Permits shall designate the date, time and route upon which loads and construction machinery may be moved.
(C42, §§ 88-23 to 88-25; C54, C62, §§ 54-178 to 54-182; O.7397; C75, §§ 23-158—23-162; O.9161; C79, C91, § 23-158)

Sec. 102-1019. Escorts for oversize or overweight vehicles.

All movements of mobile homes and other vehicles, the width of which, including any load, exceeds the roadway lane width of the highway or street being traversed, shall be under escort. All other movements of oversize or overweight vehicles, if in the judgment of the department of engineering may be unduly hazardous, shall be under escort.
(C75, § 23-159; O.9161; C79, C91, § 23-159)

Sec. 102-1020. Load limits per axle.

(a) The gross weight on any axle of any vehicle or combination of vehicles traveling under a permit issued in accordance with this article shall not exceed the maximum axle load prescribed in I.C. § 321.463, except that construction machinery being temporarily moved on streets, roads, or highways may have a gross weight of 36,000 pounds on any single axle equipped with minimum size 26.5-inch by 25-inch flotation pneumatic tires and a maximum gross weight of 20,000 pounds on any single axle equipped with minimum size 18-inch by 25-inch flotation pneumatic tires, provided that the total gross weight of the vehicle or a combination of vehicles does not exceed a maximum of 126,000 pounds, and except that a manufacturer of machinery or equipment manufactured or assembled in this state may be granted a permit for the movement of such machinery or equipment mounted on pneumatic tires with axle loads exceeding the maximum axle load prescribed in I.C. § 321.463 for distances not to exceed 25 miles at a speed not greater than 20 miles per hour. The movement of such machinery or equipment shall be over a specified route between the place of assembly or manufacture and a storage area, shipping point, proving ground, experimental area, weighing station, or another manufacturing plant.

(b) Special mobile equipment, as defined in I.C. § 321.1(75), is not subject to the requirements for distance in feet between the extremes of any group of axles or the extreme axles of the vehicle or combination of vehicles as required by this article when being moved upon the highway.

(c) Trailers registered in the state as of March 31, 1983 for the 1983 registration year used exclusively in the transportation of soil conservation equipment are not subject to the requirements for distance in feet between the extremes of any group of axles or the extreme axles of the vehicle or combination of vehicles as are required under I.C. § 321.463.
(C75, § 23-160; O.9161; C79, C85, § 23-160; O.10,807, 11,583; C91, § 23-160)

Sec. 102-1021. Annual permits for vehicles with indivisible loads.

Under this article, annual permits shall be issued in accordance with the following:

(1) Vehicles with indivisible loads having an overall width not to exceed 12 feet five inches or mobile homes including appurtenances not to exceed 12 feet five inches and an overall length not to exceed 75 feet zero inches may be moved for unlimited distances. The vehicle and load shall not exceed the height of 13 feet ten inches and the total gross weight as prescribed in I.C. § 321.463.

(2) Vehicles with indivisible loads, including mobile homes and factory-built structures, having an overall width not to exceed 14 feet six inches and an overall length not to exceed 85 feet zero inches shall be restricted to trip distances not to

exceed 50 highway and street miles in total aggregate. The vehicle and load shall not exceed the height as prescribed in I.C. § 321.456 and the total gross weight as prescribed in I.C. § 321.463.

(3) Vehicles with indivisible loads having an overall length not to exceed 100 feet zero inches shall be restricted to trip distances not to exceed 50 highway and street miles in total aggregate. The vehicle and load shall not exceed the width as prescribed in I.C. § 321.454 and the total gross weight as prescribed in I.C. § 321.463.

(4) All movements of mobile homes and other vehicles, the width of which, including any load, exceeds the roadway lane width of the street or highway being traversed, shall be under escort.

(C75, § 23-160; O.9161; C79, C85, § 23-161; O.10,807, 11,583; C91, § 23-161)

Sec. 102-1022. Single-trip permits for vehicles with indivisible loads.

Under this article, single-trip permits shall be issued in accordance with the following:

(1) Vehicles with indivisible loads having an overall width not to exceed 40 feet zero inches, an overall length not to exceed 120 feet zero inches, or a total gross weight not to exceed 100,000 pounds may be moved, provided the gross weight on any one axle shall not exceed the maximum prescribed in I.C. § 321.463 pursuant to rules adopted pursuant to I.C. § 17A.1 et seq. The height of the vehicles and loads shall be limited only to height limitations of underpasses, bridges, power lines and other established height restrictions on the specified route. A mobile home shall not be moved under this section if the actual mobile home width exceeds 12 feet five inches or length exceeds 65 feet six inches, excluding hitch or any overhang. The vehicle with load shall be accompanied by an escort as required by rules adopted pursuant to I.C. § 17A.1 et seq.

(2) Vehicles with indivisible loads exceeding the width, length, and total gross weight provided in subsection (1) of this section may be moved in special or emergency situations, provided the gross weight on any one axle shall not exceed the maximum prescribed in I.C. § 321.463. The vehicle and load shall be accompanied by an escort as required by rules adopted pursuant to I.C. § 17A.1 et seq. The issuing authority may impose any special restrictions as deemed necessary on movements by permit under this subsection.

(3) Vehicles or combinations of vehicles consisting of construction machinery being temporarily moved on streets, roads, and highways with a maximum total gross weight limitation and a single axle weight limitation prescribed in I.C. § 321E.7, an overall width not to exceed 14 feet zero inches, an overall length not to exceed 80 feet zero inches may be moved for unlimited distances over specified routes when accompanied by an escort as required by rules adopted pursuant to I.C. § 17A.1 et seq. The height of the vehicle or combination of vehicles shall be limited only to the height limitations of underpasses, bridges, power lines, and other established height restrictions on the specified route.

(4) The city engineer may refuse to issue a permit for a vehicle with an indivisible load of 15 feet zero inches or more when in his or her judgment the movement will be unduly hazardous to public safety or cause undue damage to streets, highways, curbs, trees, sidewalks or other public or private property. The permit shall be denied and the reasons therefor endorsed upon the application.

(C75, § 23-162; O.9161; C79, C85, § 23-162; O.10,807, 11,583; C91, § 23-162)

Sec. 102-1023. Movement times.

(a) Movements by permit in accordance with this article shall be permitted only during the hours indicated on the permit.

(b) No movement by permit shall be allowed on a Sunday, a holiday, after 12:00 noon on a Saturday, after 12:00 noon on a day preceding a

holiday and holiday weekend, or during a special event when abnormally high traffic volumes can be expected.
(C75, § 23-163; O.9161; C79, C91, § 23-163)

Sec. 102-1024. Financial responsibility.

(a) In accepting a permit under this article, the party receiving the permit shall be deemed to have agreed to hold and shall hold the city harmless from and indemnified against all damages arising from or growing out of the movement authorized by the permit.

(b) Prior to the issuance of any permit, the applicant for a permit shall be required to file proof of financial responsibility or to post a bond not to exceed $10,000.00 with the issuing authority. Such bond shall be used as security for repair or replacement of official signs, signals, and roadway foundations, surfaces, or structures which may be damaged or destroyed during the movement of a vehicle and load operating under such permit.
(C75, § 23-164; O.9161; C79, C91, § 23-164)

Sec. 102-1025. Fees for permits.

(a) The fees for annual and single trip permits shall be in the amount set in the schedule of fees adopted by the city council by resolution.

(b) The city may charge a permit applicant for the cost of trimming trees and removal and replacement of natural obstructions or official signs and signals or other public or private property required to be removed during the movement of a vehicle and load. In addition to the fees provided in this section, the annual fee for a permit for special mobile equipment, as defined in I.C. § 321.1(75), operated pursuant to I.C. § 321E.7(2), shall be in the amount set in the schedule of fees adopted by the city council by resolution.
(C75, § 23-164.01; O.9161; C79, C85, § 23-164.01; O.10,807, 11,583; C91, § 23-164.01; O.14,174)

Sec. 102-1026. Use of highways of interstate system.

Use of the National System of Interstate and Defense Highways within the corporate limits is prohibited and shall not be used for any oversize or overweight movement under this article.
(C75, § 23-164.02; O.9161; C79, C91, § 23-164.02)

Sec. 102-1027. License required for driver of escort vehicle.

Any operator of an escort vehicle, serving as an escort in the movement of vehicles and loads of excess size and weight under permits as required by this article, shall have a valid operator's or chauffeur's license.
(C75, § 23-164.03; O.9161; C79, C91, § 23-164.03)

Secs. 102-1028—102-1055. Reserved.

ARTICLE XIV. METER PITS

Sec. 102-1056. Defective covers, rims or appliances.

It is declared a public nuisance for any person or any public utility whose funds are not subject to the administration or control or in the possession of the city council or the city treasurer to construct, install, maintain, operate or use in any street, alley or public grounds of the city a meter pit which is or may become unsafe for the traveling public or which has a cover, rim or appliance connected therewith which is defective, loose, cracked, broken or without safety devices to prevent tipping when stepped upon. No meter pit, part or appliance shall be installed, maintained, operated or used without compliance with article VIII of this chapter.
(C42, § 89-16; O.4795; C54, C62, § 54-213; C75, C79, C91, § 23-200)

Sec. 102-1057. Safety requirements; approval of design.

All meter pits located in any street, alley or public ground of the city shall have a metal cover of such weight and thickness and so fitted into a metal rim and having such safety devices and appliances attached to and a part thereof as will

cause such cover to be stable and prevent it from tipping or becoming unstable, displaced or unsafe when walked upon by pedestrians or by ordinary travel over the cover. Meter pit covers, rims and appliances installed in strict accord with the design approved by the city engineer shall be deemed in compliance with this article so long as such device or appliance is properly maintained and operated.
(C42, § 89-17; O.4795; C54, C62, § 54-214; C75, C79, § 23-201; O.10,649; C91, § 23-201)

Sec. 102-1058. Repairing or refilling.

The city engineer is authorized and directed to notify by mail, at the last known address, the owner, occupant or any person in possession of the property for the convenience and benefit of which any meter pit was installed or is being used and the consumer being served through it of any insufficiency of the cover of any such meter pit and of any defective or unsafe condition of the cover thereof or of any appliance connected therewith and directing the repair thereof within 30 days or the abandonment of such meter pit within 30 days by filling such pit and placing the surface over the location thereof in safe condition for ordinary travel. A copy of this notice shall be forwarded to any utility delivering service through any such meter pit.
(C42, § 89-18; O.4795; C54, C62, § 54-215; C75, C79, § 23-202; O.10,649; C91, § 23-202)

Sec. 102-1059. Cessation of service by public utility.

Any utility delivering its service through any meter pit is directed and required to remove its meter therefrom and discontinue serving the consumer at the end of 30 days after notice is given either the owner, occupant, person in possession or the consumer by the city engineer of the defective or unsafe condition of the cover or any appliance connected therewith, unless the repairs required by the city engineer are made sooner.
(C42, § 89-19; O.4795; C54, C62, § 54-216; C75, C79, C91, § 23-203)

Sec. 102-1060. Withdrawal of permission.

Any consent, license, permit or permission issued or granted for the construction or installation of any meter pit in any street, alley or public ground of the city shall be vacated, cancelled and withdrawn upon failure to make the repairs required by the city engineer within 30 days after notice to do so as provided in this article.
(C42, § 89-20; O.4795; C54, C62, § 54-217; C75, C79, C91, § 23-204)

Sec. 102-1061. Securing of covers.

It is declared a violation of this article for any person to fail to replace any meter pit cover after removing it in as secure a position as the condition of the cover and devices for securing it will reasonably permit. It is the duty of such person discovering, upon attempting to replace such cover, that the condition of the cover and the devices do not allow the cover to be placed and to remain in a secure position to immediately inform the city engineer of such condition and hazard.
(C42, § 89-21; O.4795; C54, C62, § 54-218; C75, C79, § 23-205; O.10,649; C91, § 23-205)

Sec. 102-1062. Inability to finance repairs.

Any owner desirous of complying with the city engineer's order to repair pursuant to this article, but unable to secure and pay for such repairs within the 30-day period, may elect to have the city make the necessary repairs and have the costs thereof assessed against the property for collection in the same manner as a property tax.
(C79, § 23-205.01; O.10,649; C91, § 23-205.01)

Secs. 102-1063—102-1090. Reserved.

ARTICLE XV. FAULTY WATER SERVICE*

Sec. 102-1091. Repairs.

(a) Whenever the public works director or his or her designee finds a public nuisance exists because of a faulty water service which is releasing or discharging water upon or under the city streets and/or sidewalks, the director shall:

(1) Bring such conditions to the immediate attention of the city council for a declara-

*__Cross reference—__Water generally, § 118-586 et seq.

tion of public nuisance and authorization to issue a notice to the owner of such declaration and of the time within which such condition must be corrected.

(2) If by virtue of weather conditions such water is freezing upon the city streets and/or sidewalks or if by virtue of such release or discharge the city streets and/or sidewalks are being undermined so as to necessitate immediate action to protect the public health, issue an order to abate such nuisance reciting its existence and requiring that such action be taken as the officer deems necessary. Compliance with such order must be within 48 hours after receiving notice thereof.

(b) If the owner provides a consent and waiver authorizing the city to undertake such repairs and to assess the costs against the property or if the owner does not comply with an order to abate the public nuisance within the time allowed, the public works director or his or her designee shall authorize the taking of the corrective action specified in the order. Any costs incurred shall be assessed against the property for collection in the same manner as a property tax.
(C79, § 23-174.01; O.10,315; C91, § 23-174.01)

Secs. 102-1092—102-1120. Reserved.

ARTICLE XVI. STREET USE PERMIT

Sec. 102-1121. Purpose.

(a) *General.* The streets in possession of the city are primarily for the use of the public in the ordinary way. However, under proper and uniform circumstances special street use may be allowed subject to reasonable municipal regulation and control. Therefore, this article is enacted to regulate and control the use of streets pursuant to a street use permit to the end that the health, safety and general welfare of the public and the good order of the city can be protected and maintained.

(b) *Standard street use permit.* A standard street use permit allows for the temporary closure of streets in a commercial and/or residential district. The purpose of a temporary closure of streets can be a timed event, activity, block party, festival, or events of similar character and nature, over a one- to five-day period, or a total of five days over a 30-day period.

(c) *Annual street use permit.* An annual street use permit allows for the temporary closure of a street either for recurring events of one hour or less in duration and provided the dates for closure are approved in advance by the street use team, or when the street use is part of a farmer's or public market and a farmer's or public market permit is also obtained as required by section 102-557 of this chapter.
(O.13,738, 14,329)

Sec. 102-1122. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

City means the City of Des Moines, in the County of Polk, in the State of Iowa.

Entertainment district means a specifically identified area or zone of the city, other than residential, which is composed of a group or organization of businesses such as restaurants and bars.

Farmer's or public market means the sale of products, the majority of which have been produced in the state, including but not limited to, raw fresh vegetables, fruit, honey, herbs, flowers, plants, nuts, baked goods or handcrafted items which conform to all applicable city, county or state health and safety provisions, particularly state department of agriculture regulations, and which are offered for sale by any person, persons, business, or organization on a portion of, or entirely on a public street, sidewalk, alley, park or public place during set hours, no more than two days per week within a one-year period.

Person means any natural person, his or her heirs, executors, administrators or assigns, firm, partnership, association, corporation, company or organization, its or their successors or assigns, or the agent of any of them.

Residential event means a neighborhood-centered activity on a non-primary street in an area that is not zoned commercial or industrial.

Street means that portion of the public right-of-way normally used for vehicular traffic and including the abutting bicycle lanes and sidewalks except for any portion of the sidewalk that has been leased or licensed.

Timed event means any event, activity, competition or race, not including the use of motorized vehicles, involving three or more people for which the successful completion relies upon a participant's time or order of finish which obstructs the free flow of pedestrian or vehicular traffic on the streets, sidewalks, alleys or public places of the city.
(O.13,738, 14,329, 14,745, 15,648)

Sec. 102-1123. Permit required.

A standard or annual street use permit is required for the temporary closure of any portion of a street for any timed event, activity, block party, festival, or events of similar character and nature. Events conducted on city park property are exempt when approved by the park and recreation director or his or her designee.
(O.13,738, 14,107, 14,329)

Sec. 102-1123.01. Permits not transferable.

Street use permits issued under this division are not transferable to any other person or entity.
(O.14,329)

Sec. 102-1123.02. Exemptions.

(a) Nothing in this article shall be construed as requiring a street use permit for funeral processions.

(b) Nothing in this article shall be construed as requiring a street use permit for parades as defined in article XVII, section 102-1170 of this Code.
(O.14,329)

Sec. 102-1123.03. Authority of chief of police for street use events.

The chief of police is empowered to prescribe the conditions governing any street use event under this article, including the designation of the routes to be followed, held or proposed to be held on any public street. If the public interest so requires, he or she may for limited periods of time prohibit or restrict parking on any street where unrestricted or restricted parking is permitted under this code. Signs may be placed, police officers stationed or other steps taken to inform the public of special regulations.
(O.14,329)

Sec. 102-1124. Street use team.

(a) The street use team shall consist of representatives of the city departments of engineering (traffic and transportation division), police, fire, city clerk, public works, park and recreation, finance (risk manager), and community development (building safety division). Other city representatives or outside representatives will be added as necessary.

(b) The street use team may require the person or representative of the group applying for a street use permit to be present when the street use team meets regarding the application for a permit. At that time, the applicant may be required to provide any additional information that is reasonably necessary to make a fair determination.

(c) The street use team may also require the person or representative of the group applying for a street use permit to meet with the police department and/or traffic and transportation staff to discuss their traffic control barricade plan and police staffing needs for the event.
(O.13,738, 14,329, 14,745, 15,289)

Sec. 102-1125. Application.

(a) *Contents.* A written application for a street use permit by persons or groups desiring the same shall be made on a form provided by the city manager's office and shall be filed with the

city manager's office. The application shall set forth the following information regarding the proposed street use:

(1) The name, address, telephone number, facsimile number and e-mail address of the applicant(s) or sponsor(s) of the event and contact person(s).

(2) If the proposed street use is to be conducted for, on behalf of, or by an organization, the name, address, and telephone number of the headquarters of the organization and of the authorizing responsible heads of such organization.

(3) The date(s) and duration of time for which the requested use of the street is proposed to occur.

(4) An accurate description of that portion of the street proposed to be used including a map or diagram of proposed locations of food stands, generators, dumpsters, trash receptacles, temporary restroom facilities, or any other noise or odor generating item proposed to be used, placement of banners and temporary inscriptions or markings in the closed portion of the street to be used, and full description of event route if applicable including street closure times.

(5) The estimated number of participants/attendees.

(6) The proposed use, described in detail, including a description of the activities planned.

(7) After initial filing of the application, any additional information may be requested that the street use team deems reasonably necessary to make a fair determination as to whether a permit should be issued, including but not limited to a crowd control/security plan and a traffic control barricade plan. These plans can be prepared by an outside contractor or the person or representative of the group applying for a street use permit. There will be an additional fee charged if city staff prepares the traffic control barricade plan or the crowd control/security plan.

(b) *Deadline for applications.*

(1) Applications that include a commercially zoned district must be submitted not less than 90 calendar days prior to the date of the event. Applications received less than 90 days in advance will be assessed the late fee set in the schedule of fees and may be denied.

(2) Applications limited to a residential district must be submitted not less than 30 calendar days prior to the date of the event. Applications received less than 30 days in advance will be assessed the late fee set in the schedule of fees and may be denied.

(c) *Petition required.*

(1) For all street closure applications with planned street closures at any one location lasting more than 1 hour except events taking place entirely in a residentially zoned district, a petition is required designating the proposed areas of the street to be used and the time of the proposed use. The petition shall be signed by more than 60 percent of the business owners either abutting or within a building that abuts the portion of the street to be closed for more than one hour.

(2) A good faith attempt shall be made to obtain signatures from all business owners/managers either abutting or within a building that abuts the portion of the street to be closed for more than one hour.

(3) Applications with petitions that do not have more than 60 percent approval pursuant to this section will be denied unless appealed pursuant to section 102-1133 of this division.

(4) The petition form shall be available from the street use team and when completed the petition may be verified by the street use team.

(5) Applicants who have obtained a farmers or public market permit for the current year pursuant to sections 102-556 through 102-564 are exempt from the petition required by this section.

(d) *Notice.* The applicant shall provide notice of the event to all residents and commercial tenants, owners, lessees, and to the respective business or neighborhood association satisfactory to the street use team. Such notice shall include maps, closure times, and contact information.
(O.13,738, 13,753, 13,923, 14,329, 14,745, 15,289, 15,648, 15,789, 15,831)

Sec. 102-1126. Application process.

(a) Upon receipt of a completed street use permit application, the non-refundable application fee(s), petition, map, and any accompanying materials, the city manager's office shall immediately forward copies of the application to the street use team.

(b) The team shall evaluate the application and materials using the standards found elsewhere in this article or other city ordinances. The team shall either approve with conditions as necessary to control potential odor and/or noise issues to ensure the safety of the public and provide for an orderly event, or deny the application. Upon approval, the city manager's office shall issue the permit, including any special provisions or conditions.

(c) The approval or denial of a completed application by the team shall be made to the applicant as soon as reasonably practicable.
(O.13,738, 14,329, 15,648, 15,789)

Sec. 102-1127. Related licenses and permits/ vendor exception.

(a) All related licenses and permits required by the Des Moines Municipal Code shall be obtained by licensee/permittee, except banner license requirements do not apply under this article. Proposed banners and inscriptions or markings are subject to the approval of the street use team. The street use team will advise which additional licenses and permits may be required based upon information provided by the applicant.

(b) A vendor that has permission to operate within the street closure may operate under the street use permit if authorized by the street use permit holder and shall not be required to obtain a license or permit while participating in the event except for either the sale of alcoholic beverages, or sales made where a sidewalk café lease or license has been issued.
(O.13,738, 14,329, 14,745, 15,648)

Sec. 102-1128. Fire apparatus access road.

Fire apparatus access roads shall be provided as required in the currently adopted International Fire Code, unobstructed access width of not less than 20 feet and unobstructed vertical clearance of not less than 13 feet six inches.
(O.13,738, 14,329, 14,745)

Sec. 102-1128.1. Clear passage on sidewalks.

A six-foot clear passage on all sidewalks must be maintained during the street closure.
(O.14,745)

Sec. 102-1128.2. Access to businesses.

(a) Access to businesses that abut the street closure shall be maintained during the normal business hours of the affected business.

(b) Access to businesses within the street closure for deliveries shall be maintained up to one hour before the event opens.

(c) Service vehicles present for the event shall not block entrances to businesses.
(O.14,745, 15,789)

Sec. 102-1128.3. Clean up required.

(a) Trash and litter shall be cleaned up in the permitted street closure area and within a one block radius of the permitted street closure area upon the end of the event.

(b) All grease spills on the street that occur during the street closure shall be cleaned off if not prevented with a protective covering.
(O.15,789)

Sec. 102-1129. Reserved.

Editor's note—Ord. No. 14,329, § 1, adopted April 5, 2004, repealed § 102-1129 which pertained to standards for issuance and derived from Ord. No. 13,738.

Sec. 102-1130. Criteria and standards in reviewing street use permit applications.

The criteria to be considered in reviewing street use permit applications may include:

(1) Whether the applicant appeared at the street use meeting at the request of the street use team and/or supplied information requested by the street use team.

(2) Whether the time and size of the event would substantially interrupt the safe and orderly movement of pedestrian and vehicular traffic in the vicinity of the event's location;

(3) Whether the concentration of persons at the event would unduly interfere with proper fire and police protection of, or other emergency service through, the event or to areas adjacent to the event's location;

(4) Whether the estimated number of participants or the size or type of event equipment is sufficient to close a street or if there is an alternative available to closing a street;

(5) Whether another street use permit has already been granted for substantially the same time and location;

(6) Whether the size or time of the event would require so great a diversion of the city police department as to prevent normal police protection of the city or to prevent adequate police protection at another previously scheduled city-wide event;

(7) Whether a recurring event conflicts with the requested location and time.

(8) Whether city personnel necessary to regulate and monitor the event can reasonably be made available.

(9) Whether the event is reasonably likely to cause injury to persons or property and there is adequate planning for crowd control or participants;

(10) Whether adequate sanitation or other health facilities will be available at the event;

(11) Whether there is a sufficient number of parking places within a reasonable distance to accommodate the number of vehicles expected;

(12) Whether the time, size, or nature of the events are compatible with the normal activity at that location;

(13) Whether the proposed use or event will have a significantly adverse environmental impact;

(14) Whether negative police or other official reports of past activities sponsored by the same applicant or in the same location merit a recommendation of denial; or

(15) Whether the sponsor, applicant, their employees or agents have violated the Des Moines Municipal Code at past events.

(16) Whether applicant(s) have paid the city all fees due and owing under any chapter of the Des Moines Municipal Code.

(17) Whether the sponsor, applicant, their employees or agents have followed all conditions which may have been placed on a prior street use permit including, but not limited to, the placement of potential noise and/or odor generating items or have caused excess noise and/or odors at past events.

(O.13,738, 14,329, 14,745, 15,789)

Sec. 102-1130.1. Buffer zone.

(a) A street use permit shall not be granted when the proposed location is within 1,800 feet of the perimeter of the street closure and conflicts with the time of another street use permit,

unless the event organizer/applicant of the earlier applied for street use permit approves of the issuance of the street use permit proposed for a location closer than 1,800 feet to the perimeter of the street closure for the event. This subsection does not apply to events that occur four or more times per calendar year, or to City of Des Moines' department events.

(b) The holder of a street use permit may give written permission to peddlers and transient merchants to operate within 1,800 feet of the perimeter of their event as provided under sections 78-66 and 78-35.
(O.14,745, 15,289)

Sec. 102-1131. Fees.

(a) An applicant who seeks a street use permit shall pay the applicable nonrefundable application fee(s) in the amount(s) set in the schedule of fees adopted by the city council by resolution. The applicable fee(s) shall be paid at the time of application. Applicants who have obtained a farmers or public market permit for the current year pursuant to sections 102-556 through 102-564 are exempt from the application fee.

(b) If the permitted use will require use of any city equipment or services, to include but is not limited to traffic control and barricade plan creation and/or review or crowd control/ security plan creation and/or review, the applicant shall pay in advance when requested by the street use team, otherwise upon billing pursuant to subsection (c) of this section, either the actual costs or estimated costs when actual costs are not known for use of that equipment and those services in accordance with the schedule of rental and service fees approved by the city council.

(c) The applicant shall pay, within 30 days of billing, any additional actual costs due according to the schedule of fees approved by the city council by resolution.

(d) If a street use event is cancelled and police officers have reported for duty to work the street use event, the applicant shall pay for two hours of police service due within 30 days of billing.
(O.13,738, 13,753, 13,894, 13,923, 14,329, 15,289, 15,831)

Sec. 102-1132. Insurance.

(a) The applicant for a street use permit agrees to indemnify, and hold harmless the city, its employees, and agents, and to purchase and maintain liability insurance as per the requirements set forth in the city's risk management special events policy.

(b) The amount and type of liability insurance to be required in the city's risk management special events policy shall be determined by the city's finance director or designee and are hereby, by reference, made a part of the permit application form. The requirements of insurance shall be determined using objective standards including, but not limited to, the size and nature of the event, the number of expected participants, and the potential for physical injury or property damage caused by participants.

(c) As evidence of the applicant's ability to perform the conditions of the permit, the applicant shall furnish a certificate of insurance at the time of application to the city manager's office.
(O.13,738, 14,329, 15,104)

Sec. 102-1133. Appeal procedure.

(a) The street use team's decision to approve or deny a street use permit may be appealed to the city council by making a request to the city clerk in writing that the appeal be placed on the next council meeting agenda.

(b) The decision of the city council shall be a final determination and shall be subject to review in District Court of Polk County as may be provided by law. Any party aggrieved by the decision may seek review thereof but in no event later than 30 days after the date of the final determination.
(O.13,738, 14,329)

Sec. 102-1134. Revocation of a street use permit.

A street use permit for any event in progress may be revoked and the event terminated by the chief of police, or designees, or the fire chief, or designees if the safety of the public is imminently endangered by activities generated during the event; the participants engage in violent or

destructive behavior causing injury to persons or damage to property; or if there is a major violation of the conditions of the permit such that the standards of issuance are no longer met. (O.13,738, 14,329)

Sec. 102-1135. Violations.

No person shall:

(1) Hold, sponsor or be in charge of any activity for which a street use permit is required without possessing a valid street use permit;

(2) Violate any condition placed upon a street use permit;

(3) Provide false or inaccurate information on a written application for a street use permit;

(4) Knowingly participate in an activity for which a street use permit is required without a valid street use permit having been granted; or after a permit has been revoked pursuant to section 102-1134, of this division.

(5) Disobey or encourage others to disobey this section after a police officer has informed him or her of any provisions of this section or the terms of the street use permit that he or she is violating; or

(6) Violate any other subsection of this article.
(O.13,738, 14,329)

Sec. 102-1136. Reserved.

Editor's note—Ord. No. 15,608, § 1, adopted Sept. 11, 2017, repealed § 102-1136, which pertained to penalties and derived from Ord. No. 13,738; Ord. No. 14,329.

Secs. 102-1137—102-1169. Reserved.

ARTICLE XVII. PARADE PERMIT

Sec. 102-1170. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Chief of police means the city chief of police or the chief's designees in the police department.

City means the City of Des Moines, in the County of Polk, in the State of Iowa.

City clerk means the city clerk or the clerk's designees in the city clerk's office.

Parade means any march, procession or other similar activity consisting of persons, animals, vehicles or things, or a combination thereof, upon any public street ordinarily used for vehicular traffic, which requires a street closing or otherwise requires police officers to stop or reroute vehicular traffic because the participants in the parade will not comply with the normal and usual traffic regulations or controls.

Person means any natural person, his or her heirs, executors, administrators or assigns, firm, partnership, association, corporation, company or organization, its or their successors or assigns, or the agent of any of them.
(O.14,329)

Sec. 102-1171. Permit required.

No person shall engage in or conduct any parade unless a parade permit is issued by the chief of police.
(O.14,329)

Sec. 102-1172. Exceptions.

This article shall not apply to the following:

(1) Funeral processions; and

(2) A governmental agency acting within the scope of its functions.
(O.14,329)

Sec. 102-1173. Application.

(a) A person seeking a parade permit shall file an application under oath with the city clerk's office on a form provided by the city clerk a copy of which shall be immediately delivered to the chief of police and to the street use team as designated under article XVI, section 102-1124 of this chapter.

(b) For single, non-recurring parades, an application for a permit shall be filed at least four days and not more than one year before the parade is proposed to commence. For good cause shown, the chief of police may waive the four days limit. Good cause shall be shown when the application can be processed in compliance with the provisions of this chapter in sufficient time to allow the parade to proceed as scheduled and without hazard to the public safety given due consideration of the date, time, place, anticipated number of participants, and the city services required in connection with the parade.

(c) For parades held on a regular or recurring basis on a substantially similar route, an application for a permit shall be filed at least 60 days and not more than one year before the parade is proposed to commence. For good cause shown, the chief of police may waive the 60 days limit. Good cause shall be shown when the application can be processed in compliance with the provisions of this chapter in sufficient time to allow the parade to proceed as scheduled and without hazard to the public safety given due consideration of the date, time, place, anticipated number of participants, and the city services required in connection with the parade

(d) The application shall set forth the following information:

(1) The name, address, telephone number, facsimile number and e-mail address of the person seeking to conduct the parade.

(2) If the proposed parade is to be conducted for, on behalf of, or by an organization, the name, address, and telephone number of the headquarters of the organization and of the authorizing responsible heads of such organization.

(3) The date and duration of time for which the parade is proposed to occur.

(4) The route proposed to be traveled, including the starting point, termination point, assembly and dispersal areas, including a map, a barricade plan and crowd control/security plan if required per subsection (d)(8) of this section.

(5) The approximate number of persons who, and animals and vehicles which will constitute such parade and the type of animals and descriptions of the vehicles.

(6) The time at which units of the parade will begin to assemble.

(7) The intervals of space to be maintained between units of the parade.

(8) After initial filing of the application, any additional information that the chief of police or the chief's designee deems reasonably necessary to a fair determination as to whether a permit should be issued, including but not limited to a crowd control/security plan and a traffic control barricade plan. These plans can be prepared by an outside contractor or the person or representative of the group applying for a parade permit. There will be an additional fee charged if city staff prepares the crowd control/security plan or the traffic control barricade plan.

(O.14,329, 15,289)

Sec. 102-1174. Fees.

(a) The applicant shall pay to the city a non-refundable application fee when the application is filed in the amount set in the schedule of fees adopted by the city council by resolution.

(b) If the parade will require use of any city equipment or services, to include but is not limited to traffic control and barricade plan creation and/or review or crowd control/security plan creation and/or review, the applicant shall pay in advance, otherwise upon billing pursuant to subsection (d) of this section, either the actual costs or estimated costs when actual costs are not known for use of that equipment and those services in accordance with the schedule of fees approved by the city council and subsection (c) of this section.

(c) The fees for police services shall be determined by the chief of police based upon the number of officers reasonably necessary for vehicular and pedestrian traffic control issues brought about due to the parade based on the parade route, the time of day, date, day of the

week, duration, general vehicular and pedestrian traffic conditions along the parade route, size in terms of participants and spectators, number of intersections blocked, marked and unmarked intersections along the parade route, and the need to detour or preempt citizen travel on adjoining streets and sidewalks together with the number of marked and unmarked intersections and traffic control devices in the detour area. The speech content of the parade shall not be a factor in determining the number of officers necessary for traffic control.

(d) The applicant shall pay, within 30 days of billing, any additional actual costs due according to the schedule of fees approved by the city council by resolution.

(e) If a parade is cancelled and police officers have reported for duty to the parade, the applicant shall pay for two hours of police service due within 30 days of billing.

(f) The fees under this section shall not apply to parades conducted for the primary purpose of public issue speech protected by the First Amendment to the U.S. Constitution.
(O.14,329, 15,289, 15,831)

Sec. 102-1175. Standards for issuance.

The chief of police shall issue a parade permit as provided for in this article when, from the consideration of the application and from other information as may otherwise be obtained, it appears that:

(1) The conduct of the parade will not substantially interrupt the safe and orderly movement of other pedestrian or vehicular traffic in or contiguous to the route or location of the parade;

(2) The conduct of the parade will not require the diversion of so great a number of city police officers to properly police the line of movement and the areas contiguous thereto as to prevent normal police protection of the city;

(3) The concentration of persons, animals and/or vehicles caused by the parade will not interfere unduly with proper fire and police protection of or ambulance service to areas contiguous to the parade or other areas of the city;

(4) The conduct of the parade is not reasonably likely to cause injury to persons or property;

(5) The proposed parade is scheduled to move from its point of origin to its point of termination expeditiously and without unreasonable delays en route;

(6) There are sufficient parking places near the parade to accommodate the number of vehicles reasonably expected;

(7) The applicant has prepaid fees according to section 102-1174 and has paid those fees for past parades, if any;

(8) The proposed parade is not for the primary purpose of advertising any product, goods or event that is primarily for private profit, and the parade itself is not primarily for profit provided, however, the prohibition against advertising any product, goods or event shall not apply to signs identifying organizations or sponsors furnishing or sponsoring exhibits or structures used in the conduct of the parade;

(9) No parade permit application for the same time and location is already granted or has been received and will be granted;

(10) No parade permit application for the same time but not location is already granted or has been received and will be granted, and the police resources required for that prior parade are so great that in combination with the subsequent proposed application, the resulting deployment of police services would have an immediate and adverse effect upon the welfare and safety of persons and property;

(11) No event is scheduled elsewhere in the city where the police resources required for that event are so great that the deployment of police services for the proposed parade would have an immediate and adverse effect upon the welfare and safety of persons and property;

(12) The proposed parade will not interfere with previously scheduled maintenance or repair work to be carried out on the streets or public ways to be used; and

(13) The applicant and parade organizers will comply with the requirements under this article.

(O.14,329)

Sec. 102-1176. Notice and appeal procedure.

(a) The chief of police will either issue the parade permit or deny it within 30 days after the application is filed. In the case of applications filed less than 30 days prior to the proposed parade the chief of police will act on the application as soon as reasonably practicable but not less than 48 hours prior to the proposed start time of the parade unless extenuating circumstances prevent notice to be made in that time frame. If denied the notice shall state the reasons for denial. The notice of issuance or denial shall be served by personal delivery, regular or certified mail or in any other fashion reasonably calculated to provide notice to the applicants.

(b) The decision of the chief of police may be appealed to the city council by making a request to the city clerk in writing that the issue of the parade permits issuance or denial be placed upon the next council meeting agenda. If the council is not scheduled to meet prior to the proposed parade then a special council meeting may be called to hear the appeal.

(c) The decision of the city council shall be based upon the standards contained in section 102-1175 and shall be a final determination subject to review in District Court of Polk County as may be provided by law. Any party aggrieved by the decision may seek review thereof but in no event later than 30 days after the date of the final determination.

(O.14,329)

Sec. 102-1177. Alternative permit.

(a) The chief of police, in denying an application for a parade permit, may authorize the conduct of the parade at a date, time, location, or route different from that named by the applicant in consideration of the standards in section 102-1175. An applicant desiring to accept an alternate permit shall, within five days after notice of the action of the chief of police, file a written notice of acceptance with the chief of police.

(b) An alternate parade permit shall conform to the requirements of, and shall have the effect of, a parade permit issued under this article.

(O.14,329)

Sec. 102-1178. Special parking authority.

The chief of police has the authority to prescribe special parking regulations when, in connection with a parade if the public interest so requires, he or she may for limited periods of time prohibit or restrict parking on any street where unrestricted or restricted parking is permitted under this code. Signs may be placed, police officers stationed or other steps taken to inform the public of special regulations.

(O.14,329)

Sec. 102-1179. Termination of a parade.

A parade in progress may be terminated by the chief of police, the fire chief or their designees, if the safety of the public is imminently endangered by activities generated during the parade; the participants engage in violent or destructive behavior causing injury to persons or damage to property; or if there is a major violation of the conditions of the permit such that the standards of issuance are no longer met.

(O.14,329)

Sec. 102-1180. Violations.

No person shall:

(1) Hold, sponsor or be in charge of any activity for which a parade permit is required without possessing a valid parade permit;

(2) Violate any condition placed upon a parade permit;

(3) Provide false or inaccurate information on a written application for a parade permit;

(4) Knowingly participate in an activity for which a parade permit is required without a valid parade permit having been granted; or after a permit has been terminated pursuant to section 102-1179 of this article;

(5) Disobey or encourage others to disobey this section after a police officer has informed him or her of any provisions of this section or the terms of the street use permit that he or she is violating;

(6) Hamper, obstruct, impede, or interfere with any parade or with any person, vehicle, or animal participating or used in a parade; or

(7) Violate any other provision of this article. (O.14,329)

Sec. 102-1181. Reserved.

Editor's note—Ord. No. 15,608, § 1, adopted Sept. 11, 2017, repealed § 102-1181, which pertained to penalties and derived from Ord. No. 14,329.

Chapters 103—105

RESERVED

Chapter 106

SUBDIVISIONS*

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State law reference—Authority to establish subdivision regulations, I.C. § 354.8.

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ARTICLE I. IN GENERAL

Sec. 106-1. Title.

This chapter shall be known, cited and referred to as the "subdivision regulations" of the city. (C62, § 55-1; O.7716; C75, § 24-1; O.9305; C75, C79, C91, § 24-2)

Sec. 106-2. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alley means a public or private right-of-way primarily designed to serve as secondary access to the side or rear of those properties whose principal frontage is on some other street.

Applicant means a proprietor or subdivider of land proposed to be subdivided or his or her representative.

Auditor's plat means a subdivision plat required by either the county auditor or the county assessor and prepared by a registered land surveyor under the direction of the county auditor.

Bond means cash deposits, surety bonds or instruments of credit in an amount and form satisfactory to the city attorney and finance director or their authorized representatives.

Building means any structure, excluding signs and billboards, designed or intended for the support, enclosure, shelter or protection of persons, animals or property.

Building line means a line on a plat between which line and public right-of-way line no buildings or other structures may be erected.

City engineer means the chief civil engineer of the city or his or her designated representative.

Cluster subdivision means an alternative to conventional subdivision development wherein variable lot sizes are permitted in conjunction with a minimum lot size standard and which retains the same types and density of uses established by the applicable regulations and restrictions of chapter 134 of this Code.

Commission means the city plan and zoning commission.

Comprehensive plan means the current comprehensive plan for the general development of the city adopted by the city council pursuant to section 82-77 of this Code, including any part of such plan and any amendment to such plan separately adopted.

Construction plan means the maps or drawings prepared by a registered professional engineer accompanying a plat and showing the specific location and design of improvements to be installed in the subdivision in accordance with the requirements of the city engineer and the plan and zoning commission.

Design standards means the design standards policy manual for construction of public improvements approved by the commission and adopted by the city council.

Drainageway, improved means an improved ditch with invert protection, graded slopes and controlled velocities.

Drainageway, natural means an existing ditch in as natural a condition as possible and which can be maintained as such in the opinion of the city engineer.

Escrow means a deposit of cash with the city in lieu of an amount required and still in force under the surety bond and placed in an identified separate account by the city treasurer.

Flood fringe means the portion of a floodplain between a floodway and the outer limits of a 100-year flood.

Floodway means the channel of a stream or other watercourse and the adjacent land areas required to carry and discharge a 100-year flood.

Grade means the slope of a road, street or other public way, specified in percent of vertical to horizontal measurements.

Improvement means any drainage ditch, roadway, parkway, storm sewer, sanitary sewer, water main, sidewalk, pedestrian way, or other facility for which the city may ultimately assume

the responsibility for maintenance and operation or which may affect an improvement for which city responsibility is established.

Lot means a tract of land in a subdivision intended as a unit for the purpose, whether immediate or future, of transfer of ownership or for building development and represented and identified by a letter or number designation on a plat.

Model building means a building used initially for display purposes which typifies the type of units that will be constructed in the subdivision.

Official plat means either a subdivision plat or an auditor's plat that meets the requirements of I.C. § 354.1 et seq., and this chapter and that has been filed for record in the offices of the county recorder, auditor and assessor.

Parcel means a part of a tract of land.

Permit and development center coordinator means the individual assigned to manage the city permit and development center.

Planning director means the planning director of the city or his or her designated representative.

Plans of record means plans prepared by a registered professional engineer showing his or her signature and certifying that the public improvements have been constructed as shown.

Plat means a graphical representation of the subdivision of land, prepared by a registered land surveyor, having a number or letter designation for each lot and a succinct name or title that is unique.

Plat, major means any subdivision plat, which incorporates a new street.

Plat, minor means any subdivision plat, which does not include a new street.

Plat of survey means the graphical representation of a survey of one or more parcels of land, including a complete and accurate description of each parcel within the plat, prepared by a registered land surveyor.

Proprietor means any person who has a recorded interest in land sought to be subdivided under this chapter, including a person selling or buying the land pursuant to a contract, but excluding persons holding a mortgage, easement or lien interest.

Registered land surveyor means a land surveyor properly licensed and registered in the state who engages in the practice of land surveying pursuant to I.C. ch. 542B.

Registered professional engineer means an engineer properly licensed and registered in the state who engages in the practice of engineering pursuant to I.C. ch. 542B.

Right-of-way means a strip of land to be dedicated as a roadway, walkway, or another special use established and shown on a final plat as separate and distinct from the adjoining lots and not included within the dimensions of such lots.

Standard specifications means the standard specifications for construction of public improvements adopted by the city council.

Street, dead-end means a street permanently or temporarily closed to through traffic.

Street, major means a street that provides for traffic movement between collector or arterial streets and local streets and direct access to abutting property.

Street, minor means a local service street used primarily for access to abutting property.

Street tree means a tree in a public place, street, special easement, or right-of-way adjoining a street.

Structure means anything constructed or erected with a fixed location on the ground, or attached to something having a fixed location on the ground.

Subdivider means any person who:

(1) Having an interest in the land causes it, directly or indirectly, to be divided into a subdivision or to be included in a proposed subdivision;

(2) Directly or indirectly, sells, leases, or develops or offers to sell, lease, or develop

or advertise for sale, lease, or development any interest, lot, parcel, site, unit, or plat in a proposed subdivision; or

(3) Engages, directly or through an agent, in the business of selling, leasing, developing or offering for sale, lease, or development a subdivision or any interest, lot, parcel, site, unit, or plat in a proposed subdivision.

Subdivision means a tract of land divided or proposed to be divided into three or more parcels, whether by subdivision plat, plat of survey, or otherwise; the act of creating a subdivision.

Tract means an aliquot part of a section within the United States public land survey system, a lot within an official plat, or a government lot.

Urban transportation plan means a part of the comprehensive plan providing for the development of traffic circulation throughout the city in a manner that will safely accommodate increased traffic volume at optimal speeds.

Zoning ordinance means the official zoning ordinance of the city, together with any and all amendments thereto, set forth in article X of chapter 22 and in chapter 134 of this Code.
(C42, § 3A-1; O.4972; C54, C62, § 55-1; O.7716; C62, § 55-2; O.8251; C75, § 24-2; O.9305; C75, C79, § 24-1; O.9726; C85, § 24-1; O.11,191, 11,611; C91, § 24-1; O.13,004, 13,289, 14,708)

Cross reference—Definitions generally, § 1-2.

Sec. 106-3. Policy.

(a) It is declared to be the policy of the city to consider the subdivision of land and the subsequent development of the subdivided plat as subject to the control of the city to ensure orderly and planned development in conformance with the comprehensive plan.

(b) Land to be subdivided shall be of such character that it can be used safely for building purposes without danger to health or peril from fire and flood and shall not be subdivided until adequate utilities, drainage, streets and similar improvements exist or are satisfactorily provided.

(c) The existing and proposed improvements shall conform to and be properly related to the proposals shown in the comprehensive plan, and it is intended that this chapter shall supplement and facilitate the enforcement of the provisions and standards contained in building and housing codes, the zoning ordinance and the comprehensive plan.

(d) A plat of survey may be approved in lieu of a subdivision plat when the permit and development coordinator, with the concurrence of the planning director and city engineer, determines that each parcel has access to all necessary public utilities and all necessary public improvements are in place.
(C75, § 24-3; O.9305; C79, C85, § 24-3; O.11,611; C91, § 24-3; O.13,004, 16,074)

Sec. 106-4. Purposes.

(a) This chapter is adopted to:

(1) Protect and provide for the public health, safety, and general welfare of the city.

(2) Guide the future growth and development of the city, in accordance with the comprehensive plan.

(3) Provide for adequate light, air, and privacy, and secure safety from fire and flooding.

(4) Guide public and private policy and action in order to provide adequate and efficient transportation, water, sewerage, schools, parks, playgrounds, recreation, and other public requirements and facilities.

(5) Provide the most beneficial relationship between the uses of land and buildings and circulation of traffic in and adjacent to proposed development and the pedestrian traffic movements appropriate to the various uses of land and buildings, and provide for the proper location and width of streets and building lines.

(6) Establish reasonable standards of design and procedures for subdivisions, in order to further the orderly layout and use of

land, and ensure proper legal descriptions and monumenting of subdivided land.

(7) Ensure that public facilities are available and will have a sufficient capacity to serve the proposed subdivision.

(8) Prevent the pollution of air, streams, and ponds; ensure the adequacy of drainage facilities; safeguard the water table; and encourage the wise use and management of natural resources throughout the city in order to preserve the integrity, stability, and beauty of the community and the value of land.

(9) Preserve as much as possible the natural beauty and topography of the city and ensure appropriate development with regard to these natural features.

(10) Provide for due consideration to be given to the preservation of canopied areas and mature trees and to provide for the mitigation of canopied areas and mature trees which are removed for development.

(11) Provide for open spaces through the most efficient design and layout of the land.

(12) Provide for the extent and manner in which streets shall be graded and improved and the extent to which water, sewer and other utility services shall be provided to protect the public health and general welfare.

(b) To the extent the applicant has complied with the remaining sections of this chapter and the design standards, standard specifications and any other standards set by the city engineer, it shall be presumed that the policies and purposes set forth in subsection (a) of this section have been addressed.
(C75, § 24-4; O.9305; C79, C85, § 24-4; O.11,611; C91, § 24-4; O.14,890)

Sec. 106-5. Jurisdiction.

(a) The city's review and approval of subdivisions pursuant to this chapter shall apply to the subdivision of land within the city boundaries and, under the authority of I.C. § 354.9, to the subdivision of land within the area that includes all land within two miles of the city boundaries.

(b) The subdivision of land within the city boundaries or within the area that includes all land within two miles of the city boundaries shall be of no effect unless a subdivision plat or plat of survey for such subdivision has received final approval from the city and such plat has been recorded in the office of the county recorder.

(c) No building permit shall be issued for any parcel of land within a subdivision unless the subdivision plat or plat of survey for such subdivision has received final approval from the city and has been recorded in the office of the county recorder, except as provided for in this chapter.

Further, no excavation of land or construction of improvements for a proposed subdivision shall commence except as provided for in this chapter.

(d) Notwithstanding subsections (a) through (c) of this section, the city council may by resolution waive the city's right to review a subdivision within the area that includes all land within two miles of the city boundaries, provided the following conditions are met:

(1) The city has received certification from the county that the subdivision complies with all county ordinances and regulations;

(2) The city council has determined that the subdivision will not conflict with the extension of existing city streets and other city rights-of-way; and

(3) The city council has determined that the subdivision will not interfere with development under the comprehensive plan.

The city council shall not act to waive the city's right to review a subdivision until after it has received the recommendations of the plan and zoning commission. If the city council acts to waive the city's right to review, the city clerk shall deliver a certified copy of the city council resolution to the subdivider for recordation with the plat.
(C42, § 3A-2; O.4972; C54, C62, § 55-2, O.7716; C62, § 55-3; O.8542; C75, § 24-4; O.9305; C75, C79, C85, § 24-5; O.11,611; C91, § 24-5; O.13,004)

Sec. 106-6. Interpretation and conflict.

(a) In its interpretation and application, this chapter shall be held to be the minimum requirements to further orderly community growth and to promote the public health, safety, and general welfare.

(b) This chapter is not intended to interfere with, abrogate, or annul federal, state or local statute, rule, regulation, or other provision of law.

(c) This chapter is not intended to abrogate any easement, covenants, or other private agreement or restriction.
(C75, § 24-6; O.9305; C79, C85, § 24-6; O.11,611; C91, § 24-6(a)—(c))

Sec. 106-7. Amendments.

Any regulation or section of this chapter may be amended from time to time by the city council. However, such amendments shall not become effective until after study and report by the plan and zoning commission and until after public notice and hearing before the commission and the city council.
(C42, § 3A-7; O.4972; C54, C62, § 55-7; O.7716; C62, § 55-9; C75, § 24-26; O.9305; C75, C79, C85, § 24-9; O.11,611; C91, § 24-9)

Sec. 106-8. Compliance with conditions.

Under this chapter, each applicant has the duty of compliance with reasonable conditions laid down by the plan and zoning commission for design, dedication, improvement, and use of the land so as to conform to the physical and economical development of the city and to the safety and general welfare of the future lot owners. To that end, the commission may require that a proprietor incorporate certain regulations in this chapter as deed restrictions. Such regulations shall be intended to protect the character and value of the surrounding development and shall also tend to secure the most appropriate character of development in the property which is subdivided.
(C42, § 3A-4; O.4972, 5105; C54, § 55-4; O.6642; C62, § 55-4; O.7585, 7716; C62, § 55-5; O.8400, 8542; C75, § 24-20; O.9305; C75, C79, C85, § 24-10; O.11,611; C91, § 24-10)

Sec. 106-9. Acre subdivision.

Whenever a tract of land is subdivided and the plat shows one or more lots containing more than one acre of land so situated that such lot might eventually be further subdivided into smaller lots, the plan and zoning commission may require that the plat allow for the future opening of streets and the ultimate extension of adjacent streets. Easements providing for the

future opening and extension of such streets may be required as a condition to approval of the plat.
(C42, § 3A-4; O.4972, 5105; C54, § 55-4, O.6642; C62, § 55-4; O.7585, 7716; C62, § 55-5; O.8400, 8542; C75, § 24-13; O.9305; C75, C79, C85, § 24-11; O.11,611; C91, § 24-11)

Sec. 106-10. Auditor's plats.

With regard to auditor's plats, the plan and zoning commission and the council shall have the right to waive provisions governing preliminary approval and public improvements outlined in article II and in division 1 of article III of this chapter, providing there is on file with the commission a copy of the request of the county auditor or county assessor ordering such plat and a letter from the county auditor stating that the plat as submitted is satisfactory.
(C42, § 3A-2; O.4972; C54, C62, § 55-2; O.7716; C62, § 55-3; O.8542; C75, § 24-5; O.9305; C75, C79, C85, § 24-12; O.11,611; C91, § 24-12)

Sec. 106-11. Area plan.

If a tract of land proposed for subdivision is a part of a larger area that could reasonably be subdivided, the community development department may prepare a possible plan of such larger undeveloped area to be used by the plan and zoning commission and the city council as an aid in judging the proposed plat. The city engineer shall cooperate in the preparation of this plan and shall furnish surveys and data as may be deemed necessary.
(C42, § 3A-2; O.4972; C54, C62, § 55-2; O.7716; C62, § 55-3; O.8542; C75, § 24-6; O.9305; C75, C79, C85, § 24-13; O.11,611; C91, § 24-13; O.13,015)

Sec. 106-12. Variations and exceptions.

(a) Whenever the tract proposed to be subdivided is of such unusual size or shape or is surrounded by such development or unusual conditions that the strict application of the requirements contained in this chapter would result in substantial hardships or injustices, the applicant, at time of preliminary plat application, may request a modification or variation of such requirements. The plan and zoning commission shall review and make its recommendation concerning such request at the time of consideration of the preliminary plat. Within 30 days thereafter, the recommendation of the commission concerning such requested variation or modification shall be placed upon the agenda for the next regularly scheduled meeting of the city council.

(b) All such variations and exceptions granted under this chapter shall be in harmony with the intended spirit of this chapter and granted with the view toward protecting the public welfare and interest of the city and surrounding areas.
(C54, § 55-4.01; O.6229; C62, § 55-4.01; O.7716; C62, § 55-6; C75, § 24-23; O.9305; C75, § 24-16; O.9353; C79, C85, § 24-16; O.11,611; C91, § 24-16)

Sec. 106-13. Fees.

(a) Before a preliminary plat, a plat of survey or an amendment to an approved plat may be considered by the city, the applicant shall deposit a fee in the amount set in the Schedule of Fees adopted by the city council by resolution. In addition to said fee, the applicant shall pay the costs for any required notification to property owners as determined and established by the community development department.

(b) Resubmission of a plat due to amendments required or made to the plat as previously submitted may be made once without additional fee. Thereafter, the resubmitted plat shall not be considered by the plan and zoning commission until the applicant has deposited the additional fee in the amount set in the Schedule of Fees adopted by the city council by resolution.

(c) An application made for property wholly owned by the federal government may be made without paying the fee described in this section.
(C42, § 3A-5; O.4972; C54, C62, § 55-5; O.7716; C62, § 55-7; O.8521; C75, § 24-24; O.9202, 9305; C75, C79, C85, § 24-17; O.11,611; C91, 24-17; O.11,777, 11,813, 13,004, 14,169, 15,323)

Sec. 106-14. Enforcement, violations and penalties.

(a) It shall be the duty of the zoning enforcement officer to enforce this chapter and to bring to the attention of the city council any violations or lack of compliance with this chapter.

(b) Appropriate actions and proceedings may be taken by law or in equity to prevent any violation of this chapter; to prevent unlawful construction; to recover damages; to restrain, correct, or abate a violation; and to prevent illegal occupancy of a building, structure or premises, and these remedies shall be in addition to the penalties described in section 1-15 of this Code.

(c) Any person who fails to perform an act required by this chapter or who commits an act prohibited by this chapter shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.
(C42, § 3A-6; O.4972; C54, C62, § 55-6; O.7585, 7716; C62, § 55-8; C75, § 24-25; O.9305; C75, C79, C91, § 24-18; O.15,608)

Secs. 106-15—106-40. Reserved.

ARTICLE II. APPLICATION, PROCEDURE AND APPROVAL PROCESS

DIVISION 1. GENERALLY

Sec. 106-41. General procedure.

(a) Whenever a subdivision of land is proposed, the subdividing owner or his or her authorized agent shall apply for and secure approval of such proposed subdivision in accordance with the following procedure:

(1) Subdivision plats and cluster subdivisions.
   a. Preapplication conference with staff.
   b. Preliminary plat approval by the plan and zoning commission.
   c. Final plat approval by the city council.
   d. Assurance for completion of improvements.

(2) Plat of survey.
   a. Preapplication conference with staff.
   b. Plat of survey approval by permit and development coordinator.

(b) No contract shall be made for the sale of any part of the proposed subdivision and no permit for the erection of a structure in such proposed subdivision shall be granted until compliance with the procedures set out in subsection (a) of this section, except as provided in subsection 106-72(h) of this article.
(C75, § 24-19; O.9305; C79, § 24-19; O.10,561; C85, § 24-19; O.11,191; C91, § 24-19; O.13,004)

Secs. 106-42—106-70. Reserved.

DIVISION 2. MAJOR PLATS AND CLUSTER SUBDIVISIONS

Sec. 106-71. Preapplication conference.

Whenever a major plat of any tract or parcel of land located within the platting jurisdiction of the city is proposed, the applicant shall submit to the city permit and development center a request for a preapplication conference. The conference shall include the applicant, his or her engineer and appropriate city staff. The purpose of the conference shall be to acquaint city staff with the proposed subdivision and acquaint the applicant and his or her engineer with procedures and with the regulations and policies that might relate to the subdivision. The applicant shall furnish a legal description of the property to be subdivided at the time he or she submits his or her request for a preapplication conference, and the conference shall be held within 15 days of such request.
(C42, § 3A-2; O.4972; C54, C62, § 55-2; O.7716; C62, § 55-3; O.8542; C75, § 24-3; O.9305; C75, C79, § 24-21; O.10,561; C85, § 24-21; O.11,611; C91, § 24-21; O.13,004)

Sec. 106-72. Preliminary plat approval by commission.

(a) After completion of the preapplication conference required in section 106-71 of this division and if the applicant wishes to proceed to subdivide the property that was the subject of such preapplication conference, he or she shall cause to be prepared a preliminary plat of such

subdivision and shall submit 13 copies of such preliminary plat and such other information as is required in this section to the city permit and development center for preliminary study and recommendation.

(b) The preliminary plat shall be drawn to a scale of not less than one inch to 100 feet, shall be certified by a registered professional engineer and a registered land surveyor and shall show the following:

(1) Title and complete legal description of the tract of land to be subdivided, showing north point, scale, date, certification by the surveyor staking the lots, and the names, addresses and telephone numbers of the owner, subdivider and surveyor/engineer.

(2) Existing and proposed contour intervals of not more than two feet; provided, however, that a minimum of two contours shall be shown on any plat. If the applicant does not propose to grade any portion of the subject property, he or she shall so indicate on the plat.

(3) The location of property lines, existing and proposed public easements, and all such surface features as buildings, railroads, utilities, watercourses, canopied areas and similar items affecting the development; also, the general location and size of all existing and proposed subsurface features such as storm and sanitary sewers, water mains, culverts, gas mains, underground electric lines or cables, and drainpipes. The preliminary plat must be accompanied by a tree removal and mitigation plan containing the information required by section 42-554 of the tree removal and mitigation ordinance.

(4) A vicinity sketch or key map at a scale of not more than 500 feet to the inch shall be shown on or shall accompany the proposed plat. Such map shall show existing streets and alleys and neighboring subdivisions or undeveloped property.

(5) All existing adjacent subdivisions, streets and tract lines of acreage parcels together with the names of record owners of unsubdivided parcels of land immediately adjoining the proposed subdivision and between it and the nearest existing streets.

(6) The sites proposed for streets, alleys, parks, open areas, school property, other areas of public use and outlot areas set aside for future development, all assigned a progressive letter with the proposed use clearly designated.

(7) The zoning district classification of the tract of land to be subdivided.

(8) Proposed street paving widths, the radii of curvature of streets, maximum grades for streets, and changes in grades of streets in accordance with division 1 of article III of this chapter, the design standards and the standard specifications.

(9) A soils report for the tract of land to be subdivided prepared by a registered professional engineer experienced in soils investigation showing general soil conditions and including recommendations as to the adaptability of such soils for the proposed development. This requirement may be waived at the discretion of the city engineer.

(10) All established floodway or flood fringe encroachment limits.

(11) A drainage report prepared in accordance with the design standards by a registered professional engineer.

(12) The numbered address of each proposed lot assigned pursuant to article XII of chapter 102 of this Code.

(c) Upon submission of such preliminary plat, the permit and development center coordinator shall retain three copies and forward copies to city departments, county agencies and utilities, as appropriate. The permit and development center coordinator shall instruct the city departments, county agencies and utilities to complete their review of the preliminary plat and forward their comments concerning the plat to the city

permit and development center within 14 days after the date of submission of such plat to the city permit and development center.

(d) Upon receipt of comments from the appropriate city departments, county agencies and utilities, the permit and development center coordinator shall prepare a report on the preliminary plat which shall incorporate the comments and concerns of the city departments, county agencies and utilities. To ensure compatibility with the city's planning goals and policies, such report shall be reviewed with the planning director, after which the permit and development center coordinator, in consultation with the planning director, shall prepare a recommendation on the preliminary plat and forward such recommendation to the applicant. The planning director shall forward the plat and recommendation to the plan and zoning commission for consideration.

(e) Before approving a preliminary plat, the commission shall hold a public hearing. The commission shall determine if such preliminary plat conforms to the standards and requirements outlined in I.C. § 354.1 et seq., and this chapter and shall approve, conditionally approve or reject such plat within 45 days after the date of submission to the city permit and development center. Unless the applicant agrees in writing to an extension of time, the preliminary plat shall be deemed approved if the commission does not act within such 45-day period.

(f) The permit and development center coordinator shall promptly notify the applicant of the commission's recommendations regarding the plat. Decisions of the commission rejecting or conditionally approving a preliminary plat may be appealed to the city council by the applicant. Appeal shall be made, without cost, by written notification received by the city clerk within 30 days after the date of the determination of the commission. The city council shall decide all appeals by public hearing within 30 days after the written notification has been received by the city clerk, or as soon as practical thereafter in the event that the public hearing is continued by resolution of the city council. A majority vote of the city council shall be necessary to overturn or modify the action of the plan and zoning commission.

(g) The commission's action for approval or conditional approval, or the city council's action for approval or conditional approval on appeal if applicable, shall be null and void unless the final plat is submitted to the city permit and development center within 270 days after the date of such action as applicable; provided, however, that the permit and development center coordinator may grant, upon written request of the applicant, up to a 90-day extension for submittal of the final plat to the city permit and development center.

(h) Subject to approval of the permit and development center coordinator, one model building may be constructed prior to final approval of the plat, provided:

(1) The model building shall be constructed on a designated parcel on the proposed plat;

(2) The designated parcel shall derive its access from an existing open street;

(3) The designated parcel shall meet all minimum bulk regulations of the zoning district in which it is located;

(4) The designated parcel is not located in an area where a future street or other improvement is proposed;

(5) The designated parcel shall be shown as a lot in the proposed plat; and

(6) If the designated parcel is sold prior to completion of the plat, the subdivider shall:

a. Ensure the installation of required improvements for the parcel; and

b. Obtain all documents from the subsequent proprietors, mortgage holders and lienholders required as attachments to plats under I.C. § 354.1 et seq.

(i) If the applicant desires to commence construction of any required improvement after approval of the preliminary plat, but prior to approval of the final plat by the city council, he or she shall comply with the contractor's bond requirements set forth in division 2 of article III of this chapter.

(j) Grading of the site shall comply with the following:

(1) If the applicant proposes to grade, strip, excavate, fill, undertake or cause any earth change on the site or stockpile any granular construction materials in excess of 5,000 cubic yards on the site, he or she shall submit to the city permit and development center an application for a grading permit, containing all of the information set forth in section 42-87 of this Code. The application for the grading permit shall be processed in the manner set forth in section 42-88 of this Code.

(2) An application for grading permit may be submitted at the time the preliminary plat is submitted to the city permit and development center, or at any time thereafter, but in no event shall the applicant proceed to grade, strip, excavate, fill, undertake or cause any earth change on the site or stockpile any granular construction material in excess of 5,000 cubic yards on the site until after approval of the preliminary plat and issuance of the grading permit by the city engineer.

(3) The bond requirements set forth in division 2 of article III of this chapter shall apply to the installation and construction of permanent soil erosion control measures on areas of the site to be dedicated to the city.

(C42, §§ 3A-2, 3A-3; O.4972; C54, C62, §§ 55-2, 55-3; O.7716; C62, § 55-4; C75, §§ 24-3, 24-10; O.9305, C75, § 24-22; O.9455; C79, § 24-22, O.9726, 10,561; C85, § 24-22; O.11,191, 11,611; C91, § 24-22; O.13,289, 14,890, 15,481)

Sec. 106-73. Final plat approval.

(a) Within 270 days after approval of the preliminary plat by the plan and zoning commission, or by the city council on appeal if applicable, plus any extensions granted by the permit and development center coordinator pursuant to subsection 106-72(e) of this division, the applicant shall submit to the city permit and development center for its review and recommendation five copies of a final plat of the subdivision made from an accurate survey certified by a registered land surveyor and drawn to a scale of 100 feet to the inch or larger, which plat shall contain the following information:

(1) The boundaries of the plat, the right-of-way lines and width of all proposed streets and alleys, and lines for any parks, open areas, school property, other areas of public use and outlot areas set aside for future development accurately established by sufficient information, including dimensions and angles or bearings. The boundaries of the plat shall be accurately described and shall give reference to two section corners within the United States public land survey system in which the plat lies or, if the plat is a subdivision of any portion of an official plat, two established monuments within the official plat. All streets, alleys, parks, open areas, school property, other areas of public use and outlot areas set aside for future development shall be assigned a progressive letter and shall have the proposed use clearly designated.

(2) The right-of-way lines, width and names of adjoining streets and alleys.

(3) All lot lines, with applicable addresses and all easements, accurately established by sufficient information, including dimensions and angles or bearings.

(4) All surveying dimensions and requirements as set forth in division 1 of article III of this chapter.

(5) A complete legal description and list of proprietors of the property to be subdivided, showing the location and extent, points of compass, scale of plat, and certification and name of the surveyor responsible for staking the lots. All adjoining properties shall be identified, and where such adjoining properties are a part of an official plat, the name of that plat shall be shown.

(6) An outline of all property to be reserved by deed covenant for the common use of subsequent property owners in the subdivision.

(7) A proposed consent to plat statement and proposed dedication statement for all property within the plat to be designated for streets, alleys, parks, open areas, school property, or other public use.

(8) All other information required under I.C. § 354.6.

(b) Upon submission of such proposed final plat with all required documents and information, the permit and development center coordinator shall retain three copies and forward copies to city departments, county agencies and utilities as appropriate. The permit and development center coordinator shall instruct the city departments, county agencies and utilities to complete their review of the proposed final plat and forward their comments concerning the plat to the permit and development center within 21 days after the date of submission of such final plat to the permit and development center.

(c) The permit and development center coordinator shall determine if the proposed final plat conforms to the standards and requirements outlined in I.C. § 354.1 et seq., and this chapter and shall approve, conditionally approve or reject such plat. The permit and development center coordinator shall notify the applicant of the action regarding the proposed final plat within 30 days after the date of submission thereof to the permit and development center. Unless the applicant agrees in writing to an extension of time, the proposed final plat shall be deemed approved if the permit and development center coordinator does not act within such 30-day period.

(d) The applicant may make a written appeal, in whole or in part, of the action of the permit and development center coordinator to the plan and zoning commission. Such written appeal must be submitted to the permit and development center within 30 days after the date of final action by the permit and development center coordinator.

(e) If an appeal occurs, the commission, in conformity with the standards and requirements outlined in I.C. § 354.1 et seq., and this chapter, shall hear and decide such appeal within 30 days of the date the appeal is submitted to the permit and development center. If the commission does not act within such 30-day period, the portion of the permit and development center coordinator's action appealed from shall be deemed reversed.

(f) The permit and development center coordinator shall promptly notify the applicant of the commission's decision on the appeal. Decisions of the commission rejecting or conditionally approving a final plat may be appealed by the applicant to the city council. Appeal shall be made, without cost, by written notification received by the city clerk within 30 days after the date of the determination of the commission. The city council shall decide all appeals by public hearing within 30 days after the written notification has been received by the city clerk, or as soon as practical thereafter in the event that the public hearing is continued by resolution of the city council. A majority vote of the city council shall be necessary to overturn or modify the action of the plan and zoning commission.

(g) The action for approval or conditional approval shall be null and void unless a complete application for final plat approval is submitted to the city council within one year after the date on which action on such plat was taken by the permit and development center coordinator, or by the plan and zoning commission or city council on appeal as applicable; provided, however, that the permit and development center coordinator may grant, upon written request of the applicant, a 90-day extension for submittal of the final plat to the city council.
(C42, §§ 3A-2, 3A-3; O.4972; C54, C62, §§ 55-2, 55-3; O.7716; C62, § 55-4; O.8542; C75, §§ 24-7, 24-11; O.9305; C85, § 24-23; O.11,611; C91, § 24-23; O.11,816, 13,289, 15,481)

Sec. 106-74. Final approval by city council.

(a) Within one year after the date on which action on the proposed final plat is taken by the permit and development center coordinator, plus any extensions granted by the permit and develop-

ment center coordinator pursuant to subsection 106-73(g) of this division, the applicant shall apply for final plat approval by the city council by submitting the following items to the permit and development center:

(1) Twenty copies of the proposed final plat as recommended for approval.

(2) A statement by the proprietors and their spouses, if any, that the plat is prepared with their free consent and in accordance with their desire, signed and acknowledged before an officer authorized to take the acknowledgment of deeds. The statement by the proprietors shall also include a dedication to the public of all lands within the plat that are designated for streets, alleys, ways, parks, open areas, school property, improvements or other public use.

(3) A statement from the mortgage holders or lienholders, if any, that the plat is prepared with their free consent and in accordance with their desire, signed and acknowledged before an officer authorized to take the acknowledgement of deeds. An affidavit and bond, as provided for in I.C. § 354.12, may be recorded in lieu of the consent of the mortgage or lienholder. When a mortgage or lienholder consents to the subdivision, a release of mortgage or lien shall be recorded for any areas and improvements conveyed to the city council or dedicated to the public.

(4) An opinion by an attorney at law admitted to practice in the state who has examined the abstract of title of the land being platted, which abstract shall be dated no earlier than 30 days prior to the date set for city council action on approval of the plat. The opinion shall state the names of the proprietors and holders of mortgages, liens, or other encumbrances on the land being platted and shall note the encumbrances, along with any bonds securing the encumbrances. Utility easements shall not be construed to be encumbrances for the purpose of this section.

(5) All public easements required by the city engineer for access to and for construction, maintenance and operation of improvements.

(6) Statement of compliance with section 106-138 of this chapter.

(7) A subdivision bond as required under division 2 of article III of this chapter.

(8) A copy of the schedule for the division of conditional deficiency as required under article X of chapter 94 of this Code.

The application shall be considered complete for approval by the city council only after the proposed final plat has been recommended for approval pursuant to section 106-73 of this division and after all items referenced in this subsection have been submitted in their proper form to the permit and development center. Following a recommendation for approval of the proposed final plat pursuant to section 106-73 of this division, the date all items referenced in this subsection are submitted in their proper form shall be the date of application for final plat approval by the city council.

(b) Upon submission of the complete application for final plat approval by the city council, the permit and development center coordinator shall:

(1) Forward a copy of all documents required under subsection (a) of this section to the legal department for review.

(2) Forward copies of the plat to the city engineer and the planning director for review and certification.

(3) Forward a copy of any subdivision bond to the legal department for review and approval.

(4) Forward a copy of any schedule for the division of conditional deficiency to the engineering department for review and approval.

If all documents required under subsection (a) of this section are given necessary approval or certification, the permit and development center coordinator shall cause the application for final

plat approval to be placed upon the agenda for the next regularly scheduled meeting of the city council.

(c) The city council shall study such final proposed plat and shall determine whether it conforms with the standards and requirements outlined in I.C. § 354.1 et seq., and this chapter and shall determine whether it conforms to the comprehensive plan. The council shall further give consideration to the possible burden on public improvements and to a balance of interests between the proprietors, future purchasers and the public interest in the plat. The council shall act to approve, conditionally approve or reject the plat. The council shall not issue final approval of the plat unless the plat conforms to I.C. §§ 355.8, 354.6 and 354.11, and this chapter. If the council disapproves the plat, it shall state how the plat is objectionable. As part of plat approval, the council shall approve any dedication to the public of all lands within the plat that are designated for streets, alleys, ways, parks, open areas, school property or other public use.

(d) The council shall review and approve the subdivision bond in the manner set forth in division 2 of article III of this chapter.

(e) The council shall review, approve and certify to the county auditor the schedule for division of conditional deficiency in the manner set forth in article X of chapter 94 of this Code.

(f) The permit and development center coordinator shall promptly notify the applicant of the city council's action on the final plat.
(C42, § 3A-2; O.4972; C54, C62, § 55-2; O.7716; C62, § 55-3; O.8542; C75, § 24-8; O.9305; C75, § 24-24; O.9353; C79, § 24-24; O.9726, 9847, 10,561; C85, § 24-24; O.11,611; C91, § 24-24; O.13,289)

Sec. 106-75. Issuance of building permits.

(a) Upon approval of the subdivision final plat by the council, the city clerk shall certify such approval on the plat.

(b) Within 30 days after approval of the final plat by the city council, the applicant shall cause the certified final plat with all attachments required under I.C. § 354.1 et seq., to be recorded in the office of the county recorder and shall cause an exact copy of the plat to be filed in the offices of the county auditor and assessor. The applicant shall then notify the city clerk in writing that the plat has been recorded in compliance with I.C. § 354.1 et seq. Following recording of the certified final plat and notification to the city clerk, the applicant may proceed to offer, sell, lease or develop any interest in a tract of land, lot, or parcel, within the plat.

State law reference—Similar provisions, I.C. § 354.18.

(c) The city clerk shall confirm that the certified final plat has been recorded and shall forward exact copies of the plat to city departments, county agencies and utilities as appropriate. The building official may then proceed to issue building permits for lots contained within such plat.

(d) Unless written application for an extension of time is granted by the city council, approval of the final plat by the council shall become null and void if the plat is not recorded within 30 days after the approval date. The permit and development center coordinator shall notify the county recorder in writing if the final plat becomes null and void.

(C75, § 24-25; O.9305; C79, § 24-25; O.9847, 10,561; C85, § 24-25; O.11,611; C91, § 24-25; O.13,015, 13,289)

Secs. 106-76—106-100. Reserved.

DIVISION 3. MINOR PLATS

Sec. 106-101. Preapplication conference.

Whenever a minor plat of any tract or parcel of land located within the platting jurisdiction of the city is proposed, the applicant shall submit to the city permit and development center a request for a preapplication conference. The conference shall include the applicant, his or her engineer and appropriate city staff. The purpose of the conference shall be to acquaint the city staff with the proposed subdivision and acquaint the applicant and his or her engineer with the procedures and with the regulations and policies that might relate to the subdivision. The applicant shall furnish a legal description of the property to be subdivided at the time he or she submits his or her request for a preapplication conference, and the conference shall be held within 15 days of such request.

(C42, § 3A-2; O.4972; C54, C62, § 55-2; O.7716; C62, § 55-3; O.8542; C75, § 24-3; O.9305; C75, C79, § 24-27; O.10,561; C85, § 24-27; O.11,611; C91, § 24-27; O.13,004)

Sec. 106-102. Plat approval by commission.

(a) After completion of the preapplication conference required in section 106-101 of this division and if the applicant wishes to proceed to subdivide the property that was the subject of such preapplication conference, he or she shall cause to be prepared a preliminary plat and proposed final plat of such subdivision and shall submit 13 copies of such preliminary plat and five copies of such final plat and such other information as is required in this section to the city permit and development center for its study and recommendation.

(b) Such plats shall be drawn to a scale of not less than one inch to 100 feet. The preliminary plat shall be certified by a registered professional engineer and a registered land surveyor, and the final plat shall be certified by a registered land surveyor and shall contain the following:

(1) The preliminary plat shall show the following:

a. Title and complete legal description of the tract of land to be subdivided, showing north point, scale, date, certification by the surveyor staking the lots, and the names, addresses, and telephone numbers of the owner, subdivider and surveyor/engineer.

b. Existing and proposed contour intervals of not more than two feet; provided, however, that a minimum of two contours shall be shown on any plat. If the applicant does not propose to grade any portion of the subject property, he or she shall so indicate on the plat.

c. The location of property lines, existing and proposed public easements, and all such surface features as buildings, railroads, utilities, watercourses, canopied areas, and similar items affecting the development; also, the location and size of all existing and proposed subsurface features such as storm and sanitary sewers, water mains, culverts, gas mains, underground electric lines or cables, and drainpipes. The preliminary plat must be accompanied by a tree removal and mitigation plan containing the information required by section 42-554 of the tree removal and mitigation ordinance.

d. A vicinity sketch or key map at a scale of not more than 500 feet to the inch shall be shown on or shall accompany the proposed plat. Such map shall show existing streets and alleys and neighboring subdivisions or undeveloped property.

e. All existing adjacent subdivisions, streets and tract lines of acreage parcels, together with the names of record owners of unsubdivided parcels of land immediately adjoining the proposed subdivision and between it and the nearest existing streets.

f. The sites proposed for parks, open areas, school property, other areas of public use and outlot areas set aside for future development, all assigned a progressive letter with the proposed use clearly designated.

g. The zoning district classification of the tract of land to be subdivided.

h. All established floodway and flood fringe encroachment limits.

i. A soils report for the tract of land to be subdivided prepared by a registered professional engineer experienced in soils investigation showing general soil conditions and including recommendations as to the adaptability of such soils for the proposed development. This requirement may be waived at the discretion of the city engineer.

j. A drainage report prepared in accordance with the design standards by a registered professional engineer.

k. The numbered address of each proposed lot assigned pursuant to article XII of chapter 102 of this Code.

(2) The proposed final plat shall show the following:

a. An outline of all property to be reserved by deed covenant for the common use of subsequent property owners of the subdivision.

b. All surveying dimensions and requirements set forth in division 1 of article III of this chapter.

c. All lot lines, with applicable addresses and all easements, accurately established by sufficient information, including dimensions and angles or bearings.

d. The boundaries of the plat and lines for any parks, open areas, school property, other areas of public use and outlot areas set aside for future development accurately established by sufficient information, including dimensions and angles or bearings. The boundaries of the plat shall be accurately described by giving reference to two section corners within the United States public land survey system in which the plat lies or, if the plat is a subdivision of any portion of an official plat, two established monuments within the official plat. All parks, open areas, school property, other areas of public use and outlot areas set aside for future development shall be assigned a progressive letter and shall have the proposed use clearly designated.

e. A complete legal description and list of proprietors of the property to be

subdivided, showing the location and extent, points of compass, scale of plat, and certification and name of the engineer or surveyor responsible for staking the lots. All adjoining properties shall be identified, and where such adjoining properties are a part of an official plat, the name of that plat shall be shown.

f. A proposed consent to plat statement and proposed dedication statement for all property within the proposed plat to be designated for parks, open areas, school property, improvements or other public use.

g. All other information required under I.C. § 354.6.

(c) Upon submission of such plats, the permit and development center coordinator shall retain three copies of the preliminary plat and three copies of the proposed final plat and shall forward copies to city departments, county agencies and utilities as appropriate. The permit and development center coordinator shall instruct the city departments, county agencies and utilities to complete their review of the plats and forward their comments concerning the plats to the city permit and development center within 20 days after the date of submission of such plats to the city permit and development center.

(d) Upon receipt of comments from the appropriate city departments, county agencies and utilities, the permit and development center coordinator shall prepare a report on the plats which shall incorporate the comments and concerns of the city departments, county agencies and utilities. To ensure compatibility with the city's planning goals and policies, such report shall be reviewed with the planning director, after which the permit and development center coordinator, in consultation with the planning director, shall prepare a recommendation on the plats and forward such recommendation to the applicant. The planning director shall forward the preliminary plat and recommendation to the plan and zoning commission for consideration.

(e) The commission shall determine if the preliminary plat conforms to the standards and requirements outlined in I.C. § 354.1 et seq., and this chapter and shall approve, conditionally approve or reject such plat within 45 days after the date of submission thereof to the city permit and development center. Unless the applicant agrees in writing to an extension of time, the preliminary plat shall be deemed approved if the commission does not act within such 45-day period.

(f) Before approving the preliminary plat, the commission may in its discretion hold a public hearing, notice of which shall be given as provided by law.

(g) After approval of the preliminary plat by the commission, the permit and development center coordinator shall determine if the proposed final plat conforms to the standards and requirements outlined in I.C. § 354.1 et seq., and this chapter and shall approve, conditionally approve or reject such plat within ten days after the date of approval of the preliminary plat by the commission. Unless the applicant agrees in writing to an extension of time, the proposed final plat shall be deemed approved if the permit and development center coordinator does not act within such ten-day period.

(h) The permit and development center coordinator shall promptly notify the applicant of the action taken by the commission and the permit and development center coordinator regarding the plats.

(i) The applicant may make a written appeal, in whole or in part, of the action of the permit and development center coordinator to the commission. Such written appeal must be submitted to the city permit and development center within 30 days after the date of final action by the permit and development center coordinator.

(j) If an appeal occurs, the commission, in conformity with the standards and requirements outlined in I.C. § 354.1 et seq., and this chapter, shall hear and decide such appeal within 30 days of the date the appeal is submitted to the city permit and development center. If the commission does not act within such 30-day period, the por-

tion of the permit and development center coordinator's action appealed from shall be deemed reversed.

(k) The permit and development center coordinator shall promptly notify the applicant of the commission's decision on the appeal.

(l) The action for approval or conditional approval shall be null and void unless a complete application for final plat approval is submitted to the city council within six months after the date on which action on such plat was taken by the permit and development center coordinator; provided, however, that the permit and development center coordinator may grant, upon written request of the applicant, a 90-day extension for submittal of the final plat to the city council.

(m) If the applicant desires to commence construction of any required improvement after approval of the preliminary plat, but prior to approval of the final plat by the city council, he or she shall comply with the contractor's bond requirements set forth in division 2 of article III of this chapter.

(n) Grading of the site shall comply with the following:

(1) If the applicant proposes to grade, strip, excavate, fill, undertake or cause any earth change on the site or stockpile any granular construction material in excess of 5,000 cubic yards on the site, he or she shall submit to the city permit and development center an application for a grading permit, containing all of the information set forth in section 42-87 of this Code. The application for the grading permit shall be processed in the same manner set forth in section 42-88 of this Code.

(2) An application for grading permit may be submitted at the time the preliminary and final plats are submitted to the city permit and development center or at any time thereafter, but in no event shall the applicant proceed to grade, strip, excavate, fill, undertake or cause any earth change on the site or stockpile any granular construction material in excess of 5,000 cubic yards on the site until after approval of the preliminary plat and issuance of the grading permit by the city engineer.

(3) The bond requirements set forth in division 2 of article III of this chapter shall apply to the installation and construction of permanent soil erosion control measures on areas of the site to be dedicated to the city.

(C42, §§ 55-2, 55-3; O.4972; C54, C62, §§ 55-2, 55-3; O.7716; C62, § 55-4; O.8542; C75, §§ 24-3, 24-7, 24-10, 24-11; O.9305; C75, § 24-28; O.9455; C79, § 24-28; O.9726, 10,561; C85, § 24-28; O.11,611; C91, § 14-28; O.11,816; C91, § 24-28; O.13,289, 14,890)

Sec. 106-103. Final approval by city council.

(a) Within one year after the date on which action on the proposed final plat is taken by the permit and development center coordinator, plus any extensions granted by the permit and development center coordinator pursuant to subsection 106-102(l) of this division, the applicant shall apply for final plat approval by the city council by submitting the following items to the city permit and development center:

(1) Twenty copies of the proposed final plat as recommended for approval.

(2) A statement by the proprietors and their spouses, if any, that the plat is prepared with their free consent and in accordance with their desire, signed and acknowledged before an officer authorized to take the acknowledgment of deeds. The statement by the proprietors shall also include a dedication to the public of all lands within the plat that are designated for parks, open areas, school property, improvements or other public use.

(3) A statement from the mortgage holders or lienholders, if any, that the plat is prepared with their free consent and in accordance with their desire, signed and acknowledged before an officer authorized to take the acknowledgement of deeds. An affidavit and bond as provided for in I.C. § 354.12, may be recorded in lieu of the consent of the mortgage or lienholder.

When a mortgage or lienholder consents to the subdivision, a release of mortgage or lien shall be recorded for any areas and improvements conveyed to the city council or dedicated to the public.

(4) An opinion by an attorney at law admitted to practice in the state who has examined the abstract of title of the land being platted, which abstract shall be dated no earlier than 30 days prior to the date set for city council action on approval of the plat. The opinion shall state the names of the proprietors and holders of mortgages, liens, or other encumbrances on the land being platted and shall note the encumbrances, along with any bonds securing the encumbrances. Utility easements shall not be construed to be encumbrances for the purpose of this section.

(5) All public easements required by the city engineer for access to and for construction, maintenance and operation of improvements.

(6) Statement of compliance with section 106-138 of this chapter.

(7) A subdivision bond as required under division 2 of article III of this chapter.

(8) A copy of the schedule for the division of conditional deficiency as required under article X of chapter 94 of this Code.

The application shall be considered complete for approval by the city council only after the proposed final plat has been recommended for approval pursuant to section 106-102 of this division and after all items referenced in this subsection have been submitted in their proper form to the city permit and development center. Following a recommendation for approval of the proposed final plat pursuant to section 106-102 of this division, the date all such items referenced in this subsection are submitted in their proper form shall be the date of application for final plat approval by the city council.

(b) Upon submission of the complete application for final plat approval by the city council, the permit and development center coordinator shall:

(1) Forward a copy of all documents required under subsection (a) of this section to the legal department for review.

(2) Forward copies of the plat to the city engineer and the planning director for review and certification.

(3) Forward a copy of any subdivision bond to the legal department for review and approval.

(4) Forward a copy of any schedule for the division of conditional deficiency to the engineering department for review and approval.

If all documents required under subsection (a) of this section are approved or certified, the permit and development center coordinator shall cause the application for final plat approval to be placed upon the agenda for the next regularly scheduled meeting of the city council.

(c) The city council shall study such final proposed plat and shall determine whether it conforms with the standards and requirements outlined in I.C. § 354.1 et seq., and this chapter and shall determine whether it conforms to the comprehensive plan. The council shall further give consideration to the possible burden on public improvements and to a balance of interests between the proprietors, future purchasers and the public interest in the plat. The council shall act to approve, conditionally approve or reject the plat. The council shall not issue final approval of the plat unless the plat conforms to I.C. §§ 355.8, 354.6 and 354.11 and this chapter. If the council disapproves the plat, it shall state how the plat is objectionable. As part of plat approval, the council shall approve any dedication to the public of all lands within the plat that are designated for parks, open areas, school property or other public use.

(d) The council shall review and approve the subdivision bond in the manner set forth in division 2 of article III of this chapter.

(e) The council shall review, approve and certify to the county auditor the schedule for division of conditional deficiency in the manner set forth in article X of chapter 94 of this Code.

(f) The permit and development center coordinator shall promptly notify the applicant of the city council's action on the final plat.

(C42, § 3A-2; O.4972; C54, C62, § 55-2; O.7716; C62, § 55-3; O.8542; C75, § 24-8; O.9305; C75,

§ 24-29; O.9353; C79, § 24-29; O.9726, 9847, 10,561; C85, § 24-29; O.11,611; C91, § 24-29; O.13,289)

Sec. 106-104. Issuance of building permits.

(a) Upon approval of the subdivision final plat by the council, the city clerk shall certify such approval on the plat.

(b) Within 30 days after approval of the final plat by the city council, the applicant shall cause the certified final plat with all attachments required under I.C. § 354.1 et seq., to be recorded in the office of the county recorder and shall cause an exact copy of the plat to be filed in the offices of the county auditor and assessor. The applicant shall then notify the city clerk in writing that the plat has been recorded in compliance with I.C. § 354.1 et seq. Following recording of the certified final plat and notification to the city clerk, the applicant may proceed to offer, sell, lease or develop any interest in a tract of land, lot, or parcel within the plat.

(c) The city clerk shall confirm that the certified final plat has been recorded and shall forward exact copies of the plat to city departments, county agencies and utilities as appropriate. The building official may then proceed to issue building permits for lots contained within such plat.

(d) Unless written application for an extension of time is granted by the city council, approval of the final plat by the council shall become null and void if the plat is not recorded within 30 days after the approval date. The permit and development center coordinator shall notify the county recorder in writing if the final plat becomes null and void.
(C75, § 24-30; O.9305; C79, § 24-30; O.9847, 10,561; C85, § 24-30; O.11,611; C91, § 24-30; O.13,015, 13,289)

Secs. 106-105—106-130. Reserved.

ARTICLE III. IMPROVEMENTS

DIVISION 1. GENERALLY

Sec. 106-131. Conformance to applicable rules and regulations.

(a) The applicant shall submit construction plans of all sidewalks, streets and alleys; storm, sanitary and footing drain sewers; utility services; and improved drainageways to the city permit and development center prior to or at the time of submission of the proposed subdivision final plat. The construction plans shall comply with the design standard specifications, and, with the exception of sidewalk improvements, all required improvements shall be designed by a registered professional engineer. In addition to the requirements established in this division, all subdivision plats shall comply with the following plans, laws, rules and regulations:

(1) All applicable sections of state law, as amended.

(2) All applicable sections of this Code, as amended.

(3) The comprehensive plan and the urban transportation plan of the city.

(4) All applicable rules of the Iowa Administrative Code.

(5) The design standards and standard specifications and other applicable standards and requirements of all boards, commissions, departments, agencies and officials of the city adopted pursuant to any law or ordinance.

(6) All applicable federal statutes, rules and regulations.

(b) When the design standards and standard specifications are not applicable or complete for any particular situation or are not applicable to a proposed modification in an improvement design, the city engineer shall set all necessary additional standards. Plat approval shall be withheld if a subdivision is not in conformity with the regulations and requirements established in subsection (a) of this section.
(C75, § 24-36; O.9305; C79, § 24-36; O.9726; C85, § 24-36; O.11,611; C91, § 24-36)

Sec. 106-132. Platting of land.

In the design of any subdivision plat, due consideration shall be given to the preservation of scenic and historic sites, drainageways, stands of

fine trees, marshes, lakes and ponds, and watersheds and shall be in accordance with the following:

(1) *Suitability of land.* Land subject to improper surface or subsurface drainage, excessive erosion, or steep or unstable slopes and which, for these reasons, is unsuitable for development shall not be platted for any use that will constitute a danger to health, safety, or property. Land subject to flooding within the floodway limits as established by the U.S. Army Corps of Engineers or the state department of natural resources shall only be developed for usage allowed within an FW floodway zoning district and in accordance with article II of chapter 50 of this Code. Land located within the flood fringe may be platted subject to the applicable requirements set forth by the U.S. Army Corps of Engineers, the state department of natural resources, article II of chapter 50 of this Code, article X of chapter 22 of this Code and chapter 134 of this Code and the plan and zoning commission.

(2) *Block design.*

a. The lengths, widths, and shape of blocks shall be suited for the planned use of the land, zoning requirements, and need for convenient access, control and safety of street traffic and the limitations of topography.

b. Two dimensions of a block in a residential area shall not be less than 600 feet in length between street lines unless dictated by unusual topography or other limiting factors of good design.

c. Blocks shall have sufficient width to provide for two tiers of lots of appropriate depth except where otherwise required to separate residential development from through traffic. Public rights-of-way for interior pedestrian walks shall be not less than ten feet in width and shall be provided near the center and entirely across any block which is 900 feet or more in length where such is necessary to provide adequate pedestrian circulation or access to schools, commercial areas, churches, parks, transportation facilities, or other residences.

(3) *Lot design.* The lots shall be designed to provide a proper architectural orientation with regard to sunlight, air, abutting street or other rights-of-way, and lot grades for the buildings contemplated. In addition the development of lots shall conform to the following:

a. Corner lot lines shall have an extra width over that required in the zoning district in which the property is located to permit adequate building setbacks from side streets.

b. Lot depth should generally not exceed three times the lot width.

c. Lot depth should generally follow municipal boundary lines rather than cross them.

d. Double frontage and reverse frontage lots may be approved at the time of final plat approval where necessary to provide separation of residential development from through traffic or overcome specific disadvantages of terrain and orientation.

e. Residential lots fronting or backing on a railroad right-of-way or on major streets shall be platted with a minimum depth of 150 feet to permit increased distances between the buildings and trafficways.

f. Minimum lot dimensions and lot area shall conform to the requirements of the zoning ordinance. Each lot shall have an average depth of at least 100 feet.

g. Any lot not served by a sanitary sewer shall have a lot area of not less than one acre.

h. When land is subdivided into larger lots than typically required for building, such lots shall be arranged in

such a manner as to allow for the opening of future streets and logical further subdivision of the lots.

i. Depth and width of lots reserved or laid out for commercial or industrial use shall be adequate to provide for the off-street service and parking facilities required by the type of use and development contemplated.

j. Where application of the building setback requirements of the zoning ordinance would not properly safeguard the character of adjacent existing development or because of unusual physical condition, more restrictive setback lines may be established by the commission.

k. No land shall be reserved by the subdivider unless the land is of sufficient size and shape to be of some practical use or service as determined by the commission. All areas to be reserved shall be clearly described on the plat.

l. If a tract being subdivided contains a water body, or portion thereof, lot lines shall be so drawn as to distribute the entire ownership of the water body among the owners of adjacent lots. The commission may approve an alternative plan of ownership and use, provided the ownership of and responsibility for safe maintenance of the water body is placed on private entities. Where a watercourse separates the buildable area of a lot from the street by which it has access, provisions shall be made for suitable vehicular/pedestrian access.

(4) *Surveying requirements.*

a. The applicant shall have a registered land surveyor install permanent control monuments at least 30 days prior to the conveyance of the first lot after the recording of the final plat.

b. Permanent control monuments shall be constructed of reasonably permanent material solidly embedded in the ground and capable of being detected by commonly used magnetic or electronic equipment. The registered land surveyor shall affix to the top of the monument reasonably inert material bearing an embossed or stencil cut marking of his or her state registration number.

c. Control monuments and additional monuments shall be placed at locations required by state law. Additional control monuments may be required by the city engineer.

d. All dimensions, both linear and angular, necessary for locating boundaries of the subdivided area or of the lots, streets, alleys, easements, and building line setback and any other similar public or private uses shall be shown on the final plat. The linear dimensions shall be expressed in feet and decimals of a foot. The angular dimensions shall be expressed in degrees and minutes and, if required, seconds.

e. All radii, arc and chords, points of tangency, central angles for all curvilinear streets, and radii for rounded corners shall be shown in the final plat.

f. All surveyor's monuments, together with their descriptions shall be shown on the final plat.

g. All distances shall be shown on the final plat in feet to the nearest $^1/_{100}$ of a foot, and in accordance with the definition of the international foot. All measurements shall refer to the horizontal plane.

h. The course of every boundary line shown on the plat shall be indicated by a direct bearing reference or by an angle between the boundary line and an intersecting line having a shown bearing, except when the

boundary line has an irregular or constantly changing course, as along a body of water, or when a description of the boundary line is better achieved by measurements shown at points or intervals along a meander line having a shown course. All bearings and angles shown shall be given to at least the nearest minute of arc.

i. The minimum unadjusted acceptable error of closure for all subdivision boundaries shall be 1:10,000 and shall be 1:5,000 for any individual lot.

(5) *Tree preservation and mitigation.* The proposed tree removal and mitigation plan shall comply with the requirements of the tree removal and mitigation ordinance codified in article X of chapter 42 of this Code.

(6) *Scenic and historic sites and natural features.* The design of any subdivision shall give due consideration to the preservation of scenic and historic sites, drainageways, marshes, lakes and ponds, and watersheds.

(7) *Buffer strips.* Buffer strips include treatment of railroad rights-of-way and limited access highways. Wherever the proposed subdivision contains or is adjacent to a railroad right-of-way or limited access highway or where lots back onto a public street, the subdivision shall provide the following treatment: In residential districts a buffer strip at least 25 feet in depth, in addition to the required lot depth, shall be provided adjacent to a railroad right-of-way. This strip shall be a part of the platted lots and shall contain planted materials approved by the planning director. The plat shall contain the following restriction lettered on the face: Buffer strip to be planted by subdivider and maintained by property owners; erection of any aboveground structure is prohibited.

(8) *Plats straddling municipal boundaries.* Wherever access to the subdivision is required across land outside the corporate limits, the commission may request that access be legally established, subject to approval of the city engineer to ensure that the access road is adequately improved, or that a bond has been duly executed and is sufficient to ensure construction of the access road.

(9) *Final plat approval.* Approval of the final plat by the council is subject to installation of improvements designated in this division, together with a bond that such improvements shall be installed. The city engineer shall be responsible for approving all plans and specifications for the required improvements and shall ensure adequate inspection of construction for compliance with the approved plans and specifications and for issuing a certificate of satisfactory completion upon the acceptable completion of the work.

(C42, §§ 3A-3, 3A-4; O.4972, 5105; C54, §§ 55-3, 55-4; O.6642; C62, § 55-4; O.7585, 7716; C62, § 55-5; O.8400, 8542; C75, §§ 24-11, 24-17, 24-18; O.9305; C75, C79, C85, § 24-37; O.11,611; C91, § 24-37; O.13,289, 14,890)

Sec. 106-133. Street layout.

(a) *Generally.* Street layout in a subdivision shall be in compliance with the following:

(1) In any new subdivision the street layout and construction shall conform to the current comprehensive plan, urban transportation plan and the design standards. In areas where such plans may not apply, the streets shall be designed and located in proper relation to existing and proposed streets, terrain, natural features such as streams and tree growth, public convenience and safety, proposed use of the land served by such streets, and suitable development of the adjoining area.

(2) Proposed streets shall extend to the boundary line of the tract being subdivided unless prevented by topography or other physical conditions or unless, in the opinion of the plan and zoning commission, such extension is not necessary or desir-

able for the coordination of the layout of the subdivision or for the suitable development of the adjacent tracts.

(3) The following shall apply to all subdivision streets within the city:

a. Grading. All public streets shall be graded to their full right-of-way width unless special conditions warrant the waiving of this requirement by the city engineer. Finished grade, cross section and profiles for each street shall be approved by the city engineer.

b. Paving. Road base and paving shall be installed in accordance with the standard specifications.

(b) *Relation to adjoining street system.* The arrangement of streets in new subdivisions shall provide for the continuation and proper intersection of the principal streets with existing streets and shall provide for proper projection to accommodate the extension of improvements on adjoining property that has not been subdivided. The width of such streets in new subdivisions shall comply with the requirements established by the design standards. If a principal street in an existing subdivision is continued in the new subdivision, the applicant shall provide for the removal of any vehicular turnaround on such street, and the applicant shall be responsible for the construction or reconstruction of driveways and sidewalks and regrading made necessary as a result of such removal.

(c) *Half streets.* Where an existing dedicated half street is adjacent to the tract being subdivided, the other half of the street right-of-way shall be dedicated and built by the subdivider. Half street dedications for new streets are not permitted, except where the city council may require extension of an existing street and (i) all adjacent owners agree to construct the full street or (ii) the city is the owner of the other half of the proposed street and gives the subdivider permission to build over the street at the subdivider's expense.

(d) *Relation to railroad right-of-way or limited access highways.* The relation of streets to railroad rights-of-way or limited access highways shall be as follows:

(1) In commercial and industrial districts, provisions shall be made on each side of a railroad right-of-way or limited access highway for streets approximately parallel to such right-of-way or highway at a distance suitable for the appropriate commercial or industrial use of the land. In no instance shall this be less than 150 feet.

(2) Streets parallel to the railroad right-of-way or limited access highway shall, when intersecting a major street, be located at a minimum distance of 250 feet from such right-of-way or highway. Such distance, where desirable and practicable, shall be determined with due consideration of the minimum distance required for the future separation of grades by means of appropriate approach gradients. Location of minor streets immediately adjacent and parallel to railroad right-of-way shall be avoided.

(e) *Limited access.* Access to major streets may be limited as follows:

(1) Wherever the proposed subdivision contains or is adjacent to a major street, adequate protection of residential properties, limitations of access, and the separation of through and local traffic shall be considered. Where feasible there shall be a reserved frontage strip with screen planting, provided by the subdivider and maintained by the owner, plus a nonaccess deed restriction covering such strip or provision of a frontage road.

(2) There shall be no reserve strips controlling access to streets. Frontage roads may be included in the final plat with the concurrence of the commission.

(f) *Intersections.* Street intersections shall be in compliance with the following:

(1) Streets shall intersect each other at as nearly right angles as permitted by topog-

raphy or other limiting factors of good design. There shall not be more than four street approaches at any intersection.

(2) The number of new intersections with major streets shall be held to a minimum. Wherever practicable the distance between such intersections shall not be less than 1,200 feet. Property lines at street intersections need not be rounded unless required by the commission or recommendation of the city engineer.

(3) Minor streets need not continue across major or collector streets. However, if the centerlines of such minor streets approach the major streets from opposite sides thereof, such centerlines shall be directly aligned or offset a minimum distance of 125 feet.

(g) *Dead-end streets.* Dead-end streets shall be in compliance with the following:

(1) *Permanent dead-end street.* Where a street does not extend to the boundary of the subdivision and its continuation is not required by the commission for access to adjoining property, its terminus should normally not be nearer to such boundary than 50 feet. However, the commission may require the reservation of an appropriate easement to accommodate the extension of drainage facilities, pedestrian traffic or utilities. A turnaround shall be provided at the end of a permanent dead-end street in accordance with the design standards and standard specifications. Permanent dead-end streets shall not have a length greater than 660 feet from the centerline of the intersecting street to the center of the turnaround.

(2) *Temporary dead-end street.* Where a street extends to the boundary of a subdivision and its continuation may be required by the commission for future access to adjoining property, such street shall be provided with a vehicular turnaround in accordance with the design standards and standard specifications. Such vehicular turnaround shall not be required for temporary dead-end streets having a depth of one lot or less. The commission may require the reservation of appropriate easements to accommodate the extension of drainage facilities, pedestrian traffic, utilities, or paving turnaround.

(h) *Street right-of-way and paving widths.* The minimum right-of-way and paving widths of all proposed streets shall be those specified in the design standards.

(i) *Street grades.* Grades of streets shall be in compliance with the following:

(1) The maximum street grades shall not exceed those established in the design standards except as otherwise permitted by the city engineer to compensate for unusual terrain.

(2) All changes in street grades shall be connected by vertical curves and shall be designed for safe stopping sight distances as determined by the city engineer in accordance with the design standards and American Association of State Highway Transportation Officials (AASHTO) standards.

(3) Wherever practicable, street grades shall be established in such a manner to avoid excessive grading or removal of ground cover and tree growth and general leveling of the terrain. However, grades so established shall be such as to minimize hazards by maintaining adequate sight distances based on the street type and anticipated traffic volume.

(j) *Street radii of curvature.* Circular curves shall have a radius of curvature on the centerline set forth in the design standards. Any variations to these standards shall be subject to approval by the city engineer.

(k) *Required street improvements.* Required street improvements shall be as follows:

(1) *Street trees.* The applicant shall provide for the planting of shade trees in accordance with the design standards.

(2) *Signing and barricading.* Street name signs and dead-end street barricades shall be provided and erected by the developer in accordance with the adopted standards and specifications of the city engineer.

(C42, § 3A-4; O.4972, 5105; C54, § 55-4; O.6642; C62, § 55-4; O.7585, 7716; C62, § 55-5; O.8400, 8542; C75, §§ 24-14, 24-15, 24-16; O.9305; C75, C79, § 24-38; O.9847, 10,561; C85, § 24-38; O.11,611; C91, § 24-38)

Sec. 106-134. Sanitary sewers.

(a) Under this chapter, the applicant shall construct sanitary sewers and provide a connection for each lot in conformance with the standard specifications. All sewers shall be designed by a registered professional engineer and sized with capacity to permit ultimate development of the sewer service area. The sewer lines shall be constructed to the extremities of the development where necessary to accommodate future extension. Sewage treatment plants and pumping stations, if necessary, shall be designed and constructed in conformance with the design standards and specification requirements of the state department of natural resources and shall be subject to approval by the city engineer.

(b) The applicant shall dedicate all sewers and convey permanent maintenance easements to the city for all sanitary sewers required by the city engineer. These easements shall have a minimum width of 15 feet on each side of the sewer centerline and such additional width as deemed necessary by the city engineer to ensure access by city maintenance equipment.

(c) Where existing and adequate sewer lines for connection are not located within a reasonable distance, as determined by the city engineer, installation of private sewer facilities or septic tanks may be permitted subject to the requirements and approval of the city and the county.

(C42, § 3A-4; O.4972, 5105; C54, § 55-4; O.6642; C62, § 55-4; O.7585, 7716; C62, § 55-5; O.8400, 8542; C75, § 24-22; O.9305; C75, C79, C85, § 24-39; O.11,611; C91, § 24-39)

Sec. 106-135. Storm sewers or drainageways.

(a) Under this chapter, the applicant shall construct storm sewers in conformance with the design standards and standard specifications. Where improved drainageways are recommended by the city engineer, they shall be designed in conformance with such design standards to ensure the improvements necessary to properly accommodate storm flows in a manner to control erosion and possible loss and damage to life, land, and property. If a drainageway is proposed over an area with existing physical features such as streams, ponds, ravines, wooded areas, or other natural features, the width and location of the drainageway shall be approved by the plan and zoning commission following recommendation of the city engineer in order to protect the existing physical features.

(b) All storm drainage facilities shall be designed by a registered professional engineer and sized with capacity to permit ultimate development of the drainage basin, and the improvements shall be constructed to the extremities of the development where necessary to accommodate future extension.

(c) The subdivider shall dedicate to the city all public storm drainage facilities required by the city engineer so as to provide for the drainage of stormwater through the development. The subdivider shall convey permanent storm sewer maintenance easements to the city for all such facilities. The minimum width for storm sewer easements shall not be less than 30 feet. Natural or improved drainageway easements shall have a width that complies with the design standards. Bridges and culverts shall be constructed only at locations approved by the city engineer in accordance with the design standards.

(C42, § 3A-4; O.4972, 5105; C54, § 55-4; O.6642; C62, § 55-4; O.7585, 7716; C62, § 55-5; O.8400, 8542; C75, §§ 24-21, 24-22; O.9305; C75, § 24-40; O.9455; C79, C85, § 24-40; O.11,611; C91, § 24-40)

Sec. 106-136. Reserved.

Editor's note—Ord. No. 16,074, § 1, adopted Nov. 1, 2021, effective Feb. 1, 2022, repealed § 106-136, which pertained to stormwater runoff control and derived from Code 1975, § 24-41; Ord. No. 9305; Code 1979; Code 1991, § 24-41; Ord. No. 14,708. The user's attention is directed to § 42-558 et seq.

Sec. 106-137. Sidewalks.

Sidewalks shall be constructed by the subdivider on all new and existing streets, within the street right-of-way and public pedestrian walk right-of-way in accordance with the standard specifications. However, in the interest of a better arrangement of pedestrian circulation and to accommodate special design features of the development, this requirement may be waived or alternative locations required as approved by the plan and zoning commission and the council. (C42, § 3A-4; O.4972, 5105; C54, § 55-4; O.6642; C62, § 55-4; O.7585, 7716; C62, § 55-5; O.8400, 8542; C75, § 24-22; O.9305; C75, C79, C85, § 24-42; O.11,611; C91, § 24-42)

Sec. 106-138. Utilities.

(a) All utility lines and mains including telephone, electric, cable television and street lighting lines; gas and water mains; and other necessary facilities, except electric lines in excess of 15,000 volts, shall be installed under ground in the subdivision. The subdivider shall be responsible for making the necessary arrangements with the utility companies for installation of such facilities. Such utility lines shall be installed in such a manner so as not to interfere with other underground utilities. Incidental appurtenances, such as transformers and their enclosures, pedestal-mounted terminal boxes, meters and meter cabinets may be placed above ground subject to the approval of the city engineer, but shall be located so as not to be unsightly or hazardous to the public. Such incidental appurtenances shall be in accordance with the design standards.

(b) Water distribution systems, including the number and location of fire hydrants, shall be designed by a registered professional engineer and approved by the city water board prior to installation by the subdivider.
(C42, § 3A-4; O.4972, 5105; C54, § 55-4; O.6642; C62, § 55-4; O.7585, 7716; C62, § 55-5; O.8400, 8542; C75, § 24-22; O.9305; C75, C79, C85, § 24-43; O.11,611; C91, § 24-43)

Sec. 106-139. Standards for cluster subdivisions.

(a) *Minimum size.* The minimum size of the area to be included in a cluster subdivision shall be five acres.

(b) *Density.* The maximum number of dwelling units to be erected within the cluster subdivision shall not exceed the number of dwelling units allowed by the zoning district in which the cluster subdivision is located.

(c) *Principal permitted use.* Only those types of dwelling units allowed by the zoning district in which the cluster subdivision is located shall be permitted.

(d) *Bulk regulations.* Lots, yards and heights shall be in compliance with the following:

(1) Lot area shall not be less than 75 percent of the minimum permitted by the zoning district in which the cluster subdivision is located.

(2) Lot area per dwelling unit shall not be less than 75 percent of the minimum permitted by the zoning district in which the cluster subdivision is located.

(3) Front yard shall not be less than 75 percent of the minimum permitted by the zoning district in which the cluster subdivision is located.

(4) Side yard shall not be less than 75 percent of the minimum permitted by the zoning district in which the cluster subdivision is located.

(5) Rear yard shall not be less than 75 percent of the minimum permitted by the zoning district in which the cluster subdivision is located.

(6) Building height shall be the same as allowed by the zoning district in which the cluster subdivision is located.

(7) Contiguous lots shall be grouped in such a manner so as to provide open space, and no more than 15 lots may be grouped in a continuous row.

(e) *Open space.* At least ten percent of the gross area of the cluster subdivision shall be reserved as public or private open space, as follows:

(1) *Private open space.*

a. If the open space is to be privately owned, such area shall be delineated on the subdivision plat with an appropriate notation indicating the manner in which such open space is reserved and that such reservation shall be for the benefit of all future purchasers of property within the subdivisions for a period of 21 years, subject to renewal as provided in I.C. § 614.24.

b. If the open space is to become an open space for all property owners within the cluster subdivision, its ownership and maintenance shall be by an undivided interest of all owners of property located within the cluster subdivision or by a homeowners' association that is a legal entity.

1. If the ownership and maintenance of the common open space is to be by private homeowners' association, the following shall be filed with the city: proposed bylaws of the homeowners' association fully defining the functions, responsibilities and operating procedures of the association. The proposed bylaws shall include and not be limited to the following:

i. Automatically extending membership in the association to all owners of dwelling units within the subdivision.

ii. Granting to each owner of a dwelling within the subdivision the right to use and enjoy the open space.

iii. Place any responsibility for operating and maintenance in the association.

iv. Giving every owner of a dwelling unit voting rights in the association.

v. If the subdivision will combine rental and for sale dwelling units, stating the relationship between the renters and the homeowners' association and the right that renters shall have to the use of the open space.

2. If the owners of property within the cluster subdivision are to have an undivided interest in the area designated as open space, there shall be filed with the city permit and development center documentation evidencing such ownership interest, including adequate provisions for maintenance of such open space by such owners.

c. If the open space is not to become an open space for all property owners within the cluster subdivision, the following notations shall be set forth on the final subdivision plat and shall be included in appropriate deed restrictions to future purchasers for those lots or parts thereof included within the boundaries of such open spaces:

1. No structures, permanent or temporary, other than yard recreational equipment, arbors, trellises, flagpoles, statuary or similar decorative items, shall be constructed, erected or placed upon or within the area designated as open space, nor shall the grade, elevation or contours of any part of such area be changed or altered in any manner whatsoever.

2. To the extent that a lot or part thereof is included within that area designated as open space, it shall be the responsibility of the owner of such lot or part thereof to maintain such designated open space area.

(2) *Public open space.*

a. If any of the open spaces are to be publicly owned, such areas shall be at least ten percent of the gross area of the cluster subdivision but in no case shall it be less than one acre in size.

b. The proposed dedication of land to the city shall be referred to the park and recreation department for report and recommendation prior to action on the final plat by the city council.

(C75, § 24-44; O.9305; C79, C85, § 24-44; O.11,611; C91, § 24-44)

Secs. 106-140—106-165. Reserved.

DIVISION 2. ASSURANCE FOR COMPLETION AND MAINTENANCE

Sec. 106-166. Improvement and subdivision bonds.

(a) *Completion of improvements.* All applicants shall be required to complete all street, sanitary sewer and other improvements as required in this chapter and as specified in the construction plans approved by the city engineer and in the proposed final subdivision plat approved by the permit and development center coordinator and to dedicate the improvements to the city, free and clear of all liens and encumbrances on the property and the dedicated improvements.

(b) *Performance bonds.* The following performance bonds shall be given:

(1) *Contractor's bond.* After approval of the preliminary plat, the applicant may submit to the city permit and development center a written request to commence construction of any required improvement. Such request shall include satisfactory documentation that all conditions to

the preliminary plat approval have been resolved, two sets of construction plans required by this chapter for such improvement and four copies of all contracts required under subsection (d) of this section. If the city engineer approves the request to commence construction, the contractor whose name appears on the improvement contracts shall post a contractor's bond estimated by the city engineer as sufficient to secure to the city the satisfactory construction, installation and acceptance of the required improvement. Such bond shall comply with all requirements of state law.

(2) *Subdivision bond.* If the city council has not acknowledged completion or accepted all of the improvements required to be installed in such subdivision pursuant to subsection 106-167(c) of this division at the time of submission of the plat for final approval by the city council, the applicant shall post a subdivision bond estimated by the city engineer as sufficient to secure to the city the satisfactory construction, installation and acceptance of all such required improvements remaining to be constructed, installed, accepted and/or dedicated to the city. Such subdivision bond shall not be required to secure those improvements that are secured by a contractor's bond approved pursuant to subsection (b)(1) of this section.

(3) *Compliance; time periods.* All bonds shall comply with all statutory requirements and shall be satisfactory to the city legal department as to form, sufficiency, and manner of execution as set forth in this chapter. The planning director shall recommend a time period on each bond, and the required improvements shall be completed within the time period specified on each bond. The time period on each bond shall not exceed three years from the date of final plat approval by the city council, unless an extension of the completion date for sidewalk improvements is granted by the city council in accordance with section 106-168 of this division.

(4) *Approval.* All bonds shall be approved by the city council as to amount, surety and conditions. The council, upon recommendation of the planning director at any time during the period of a bond, may accept a substitution of principal or surety on the bond.

(5) *Street trees.* No bond shall be required for street trees. Upon construction of a building on a lot in the subdivision, the street trees required for that lot shall be installed before a certificate of occupancy may be issued.

(c) *Costs of improvement.* All required improvements shall be constructed by the applicant, at his or her sole expense, without reimbursement from the city in any manner.

(d) *Required contracts.* Contracts for construction of improvements shall be required as follows:

(1) Prior to commencement of construction of any required improvement, the applicant shall submit to the city engineer copies of all contracts entered into by the applicant for the construction of such improvement. The form of such contract shall be substantially that as set forth in the design standards and standard specifications.

(2) The city engineer shall thereafter recommend approval or rejection of each such contract, taking into consideration the following:

a. Financial responsibility of the contractor.

b. Past record of transactions and experience with the contractor, including quality of workmanship; the number of liens, claims or complaints filed; and the number of repairs made.

c. Adequacy of the contractor's equipment and materials.

d. The contractor's demonstrated ability to complete performance.

e. Conformity of the proposed contract with the requirements of this section.

(3) If the city engineer recommends approval of a contract, the contract shall be submitted to the city council for its approval and execution. If the city engineer recommends rejection of a contract, the applicant may appeal such decision to the city council which, if it deems the city engineer's recommendation incorrect on the basis of the criteria in this subsection, may approve and execute such contract.

(e) *Failure to complete improvements.* Where a bond has been posted and required bonded improvements have not been constructed or installed as set forth by the terms of the bond, the city council may thereupon declare such bond to be due and shall draw upon the bond funds in an amount sufficient to cover the costs of completion of the improvements. The principals and sureties shall be severally and jointly liable as their obligations may appear on the bond for completing all required improvements.
(C42, § 3A-4; O.4972, 5105; C54, § 55-4; O.6642; C62, § 55-4; O.7585, 7716; C62, § 55-5; O.8400, 8542; C75, § 24-22; O.9305; C75, C79, § 24-31; O.9726, 10,561; C85, § 24-31; O.11,079, 11,611; C91, § 24-31; O.13,289)

Sec. 106-167. Inspection of improvements.

(a) *General procedure.* The city engineer shall provide for inspection of required subdivision improvements during construction to ensure their satisfactory completion. Such inspection during construction shall be conducted by city personnel under the direct supervision of the city engineer or, if approved in writing by the city engineer, by technically qualified personnel under the supervision of the applicant's engineer. If the applicant's engineer supervises inspection, such inspection shall be conducted in accordance with the requirements of the city engineer and as outlined in the design standards and standard specifications.

(b) *Fees for construction inspection.* Prior to the acceptance of an improvement by the city, the applicant shall pay the city the actual costs incurred by the city for inspection during the construction. These costs shall include but are not limited to the cost of contract preparation, printing, administration, field inspection, materials testing, as-built surveys, preparation of plans of record, and engineering review for compliance.

(c) *Certificate of satisfactory completion.* The applicant shall notify the city engineer in writing upon final completion of any required improvement. If such improvement has been satisfactorily completed in accordance with the design standards and standard specifications and the approved construction plans, the city engineer shall cause to be issued a certificate of satisfactory completion as to such improvement. Upon submission of such certificate, the city council shall acknowledge completion and acceptance of such improvement, in accordance with established procedure at the point of completion of some or all of the improvements therein.

(d) *Reduction of bond.* Upon completion of 50 percent or more of the required bonded improvements in a subdivision and upon written request by the contractor or applicant, as applicable, the city council may reduce a subdivision bond in an amount recommended by the city engineer that is sufficient to cover the costs of completion of the required improvements. No subdivision bond shall be reduced below 25 percent of the original principal amount.
(C75, § 24-32; O.9305; C79, C85, § 24-32; O.11,611; C91, § 24-32)

Sec. 106-168. Waiver of improvements or extensions of completion date for sidewalk improvements.

(a) At any time after final subdivision plat approval, the city council, after recommendation by the planning director and subject to appropriate conditions, may waive the requirement for construction of any improvement or, with regard only to sidewalk improvements, may extend the completion date set forth in the bond. Such waiver or extension may be granted only upon a determination by the council that it is justified because of incompatible grades, future planning or inadequate or nonexistent connection facilities, and that it will not adversely affect the public health, safety or general welfare.

(b) No such extension of the completion date for sidewalk improvements shall be granted if 70 percent or more of the lots in the subdivision are developed with buildings. If 45 percent or more, but less than 70 percent, of the lots are so developed, such extension shall not exceed one year. If 20 percent or more, but less than 45 percent, of the lots are so developed, such extension shall not exceed two years. If less than 20 percent of the lots are so developed, such extension shall not exceed three years. Only one extension may be granted.

(c) With regard to any extension granted pursuant to this section, the applicant shall have the option of discharging his or her obligation under the bond to complete the sidewalk improvements by payment in cash to the city of an amount estimated by the city engineer as sufficient to cover the costs of completion of the improvements.

(C42, § 3A-4; O.4972, 5105; C54, § 55-4; O.6642; C62, § 55-4; O.7585, 7716; C62, § 55-5; O.8400, 8542; C75, § 24-21; O.9305; C75, C79, § 24-33; O.9726; C85, § 24-33; O.11,079, 11,611; C91, § 24-33)

Sec. 106-169. Issuance of building permits and certificates of occupancy.

(a) Except as set forth in subsection (b) of this section, no certificate of occupancy for any building in the subdivision shall be issued prior to the completion of street, water, and sanitary sewer improvements and dedication of such to and acceptance by the city or the entity responsible for the operation and maintenance of such improvement, as specified in the approved construction plans and in the official plat for the subdivision.

(b) No certificate of occupancy shall be issued for the final ten percent of lots in a subdivision or, if ten percent is less than two lots, for the final two lots of a subdivision, until all required improvements required for the plat have been fully completed, dedicated to and accepted by the city.

(C75, § 24-34; O.9305; C79, C85, § 24-34, O.11,079, 11,611; C91, § 24-34)

Sec. 106-170. Maintenance of improvements.

(a) After acceptance of required subdivision improvements by the city council, the applicant shall maintain all such improvements free of defects for the time period established in the contract for the improvements.

(b) The applicant shall post a maintenance bond estimated by the city engineer as sufficient to secure to the city the satisfactory maintenance and condition of all required improvements. Such maintenance bond shall be in a form satisfactory to the city legal department and shall be in effect for the entire maintenance period established in the contract for the improvements.

(C75, § 24-35; O.9305; C79, § 24-35; O.9847; C85, § 24-35; O.11,611; C91, § 24-35)

Secs. 106-171—106-195. Reserved.

ARTICLE IV. SUBDIVISION BY PLAT OF SURVEY

Sec. 106-196. General procedure and limitations.

Whenever a subdivision of land is proposed by a plat of survey, the subdividing owner or the owner's authorized agent shall apply for and secure approval of such proposed plat of survey in accordance with the procedure set forth in this article.

(C91, § 24-45; O.13,004)

Sec. 106-197. Preapplication conference.

Whenever a subdivision of land is proposed by a plat of survey, the applicant shall submit to the city permit and development center a request for a preapplication conference. The conference shall include the applicant and appropriate city staff. The purpose of the conference is to acquaint city staff with the proposed subdivision and acquaint the applicant with the regulations and policies that might relate to the subdivision. The applicant shall furnish a legal description of the property to be subdivided at the time of submission of the request for a preapplication conference, and the conference shall be held within 15 days of such request.

(C91, § 24-46; O.13,004)

Sec. 106-198. Approval of plat.

(a) After completion of the preapplication conference required in section 102-197 of this article and if the applicant wishes to proceed to divide the property that was the subject of such preap-

plication conference, the applicant shall cause to be prepared a plat of survey of the tract to be divided and shall submit four copies of such plat and such other information as is required in this section to the city permit and development center for its study and determination.

(b) The plat of survey shall be drawn to a scale of not less than one inch to 100 feet, shall be certified by a registered land surveyor and, together with any necessary attachments, shall show the following:

(1) All surveying dimensions and requirements set forth in subsection 106-132(4) of this chapter.

(2) All parcel boundary lines, with applicable addresses and all easements, accurately established by sufficient information, including dimensions and angles or bearings.

(3) A complete legal description and list of proprietors of the property to be divided, showing the location and extent, points of compass, scale of plat, and certification and name of the surveyor responsible for staking the parcels. All adjoining properties shall be identified, and where such adjoining properties are a part of an official plat, the name of that plat shall be shown.

(4) Copies of proposed easements for the extension of water; sanitary and storm sewer; gas, electrical, cable television and telephone service to the parcels.

(5) If any parcel created by the plat of survey is not individually developable under the applicable zoning and land use regulations, such parcel shall be identified as an "outlot." The permit and development coordinator may require the plat to also show the adjoining parcel with which the outlot is to be assembled for development.

(6) The location of each existing structure and the setback of each such structure from the boundary lines.

(c) Upon submission of four copies of such plat and all required attachments, the permit and development center coordinator shall forward copies to city departments as appropriate. The permit and development center coordinator shall instruct the city departments to complete their review of the plat and forward their comments concerning the plat to the city permit and development center within 15 days after the date of submission of such plat to the city permit and development center.

(d) Upon receipt of comments from the appropriate city departments, the permit and development center coordinator shall, with the concurrence of the planning director and city engineer, determine if the proposed plat of survey conforms to the standards and requirements outlined in section 106-132 of this chapter, excluding subsection (7), and in subsection (b) of this section and shall approve, conditionally approve or reject such plat of survey within 30 days after the date of submission thereof to the permit and development center. No plat of survey shall be approved except upon an express finding that each parcel has access to all necessary public utilities and that all necessary public improvements are in place. The permit and development center coordinator shall promptly notify the applicant of the determination.

(e) The permit and development center coordinator, with the concurrence of the planning director and city engineer, may waive the requirement for construction of any improvement or may approve a plat of survey subject to the restriction that no certificate of occupancy will be granted for the property until the improvement is completed, when they determine that such waiver is justified because of incompatible grades, future planning or inadequate or nonexistent connection facilities, and that such waiver will not adversely affect the public health, safety or general welfare.
(C91, § 24-47; O.13,004, 14,169, 15,323)

Sec. 106-199. Appeals.

(a) Under this article, the applicant may appeal the determination of the permit and development coordinator to the plan and zoning commission. Appeal shall be made, without cost, by

written notification received by the department of community development within 30 days after the date of the determination by the permit and development center coordinator.

(b) The commission shall decide all appeals within 30 days after the written notification has been received by the department of community development, provided the appellant may agree to a longer time period not to exceed 60 days after receipt of the written notification. Failure to decide the appeal within such period shall have the effect of overturning the coordinator's action and approving the plat of survey as appealed. Except as provided in this section, the affirmative vote of at least eight commission members shall be necessary to overturn or modify the action of the coordinator. At the commission meeting, the appealing party shall be presented a reasonable opportunity to present his or her views.

(c) Decisions of the commission may be appealed to the city council in the same manner as appeals from the action of the coordinator, provided a majority vote of the city council shall be necessary to overturn or modify the action of the commission.

(d) In making its decision on an appeal, an appellate body shall determine whether the coordinator's decision is in conformity with the requirements of this article. Each decision of an appellate body shall be in writing and shall be filed in the office of the department of community development, and notice of such decision shall be mailed by the department of community development, within two business days after its filing, to all parties to the appeal.
(C91, § 24-48; O.13,004, 13,289)

Sec. 106-200. Enforcement.

No building permit and no certificate of occupancy shall be issued for any structure located on a subdivision created by a plat of survey unless such plat of survey has been approved as set forth in this article and the plat of survey and all required easements have been filed of record.
(C91, § 24-49; O.13,004)

Sec. 106-201. Reserved.

Editor's note—Ord. No. 16,074, § 1, adopted Nov. 1, 2021, effective Feb. 1, 2022, repealed § 106-201, which pertained to stormwater management facilities enforcement and derived from Ord. No. 14,708; Ord. No. 15,608. The user's attention is directed to § 42-558 et seq.

Chapters 107—109

RESERVED

Chapter 110

TELECOMMUNICATIONS*

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*__Cross references—__Businesses, ch. 30; planning, ch. 82; streets, sidewalks, skywalks, and other public places, ch. 102; utilities, ch. 118.

ARTICLE I. IN GENERAL

Secs. 110-1—110-25. Reserved.

ARTICLE II. CABLE TELEVISION

Sec. 110-26. Purpose and scope.

The purpose of this article is to require that all cable television systems within the city operate pursuant to city franchise and this article and to regulate such activity consistent with the Federal Cable Communications Policy Act of 1984, the Federal Communications Commission rules and regulations promulgated thereunder, as well as any and all other applicable statutes and regulations.
(C62, § 12A-1; O.8370, 8570; C75, C79, § 26-1; O.10,554; C91, § 26-1)

Sec. 110-27. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Basic service means any service tier which includes the retransmission of local television broadcast signals.

Cable television system or CATV system means a system of antennas, cables, wires, lines, towers, waveguides, or other conductors, converters, equipment or facilities designed and constructed for the purpose of producing, receiving, transmitting, amplifying and distributing audio, video and other forms of electronic or electrical signals, located in the city. Any such system that serves only subscribers in one or more multiple-unit dwellings under common ownership, control or management, no part of which system uses the city right-of-way, is not included in this definition.

Channel means a six-megahertz band for transmission of visual and audio signals for television.

Connection, existing means the connection of the cable or wire to a television or radio receiver when the house drop has previously been installed.

Connection, new means the installation of a house drop and the connection of the cable or wire to a television or radio receiver.

Converter means a device capable of providing more than the number of channels on a standard television receiver.

Distortion means the departure, during transmission or amplification, from the received signal waveform from that of the original transmitted waveform.

Franchise means a legal contract between the city and a person, which contract contains terms and conditions for constructing and operating a cable television system.

Ghost images means weak or shadowy images in the received picture, offset from the primary image.

Grantee means a person holding a franchise to operate a cable television system within the corporate limits of the city.

Gross revenues from all cable services means any and all compensation, in whatever form, exchange, or otherwise, derived from the grantee's CATV operation within the franchise area, including but not limited to revenues from subscriber rates, pay services, leased channels, advertising, installations, connection charges, data transmission, microwave activity, provided no tax on service furnished by the grantee imposed directly on any subscriber or user by a local, state or federal governmental unit and collected by the grantor for such entity shall be included.

House drop means the wire or cable that connects each building or home to the main (trunk) cable.

Outlet means the point of connection of the cable or wire to a television or radio receiver.

Pay television means cable programming services which are billed at a separate rate on a per-view, per-channel, per-tier or any other subscription basis.

Person means any individual or any corporation, partnership, business, firm or other organization.

Subscriber means a person who purchases cable television services.
(C62, § 12A-2; O.8370, 8570; C75, C79, § 26-2; O.10,554; C91, § 26-2; O.13,388)

Cross reference—Definitions generally, § 1-2.

Sec. 110-28. Grant of authority.

(a) The grantee has a nonexclusive right and privilege to construct, erect, operate, maintain and remove in, upon, along, across, above, over and under the streets, alleys, public ways and public places, including any and all public easements held by the city for utility purposes laid out or dedicated and all extensions thereof and additions thereto in the city poles, wires, cables, underground conduits, manholes, and other cable conductors and fixtures necessary for the maintenance and operation in the city of a cable communications system, to be used for the sale and distribution of cable services to the city residents.

(b) The grantee shall conduct its operations at all times during the life of its franchise in accordance with the provisions of both the franchise and this article and shall be subject to all lawful exercises by the city of its police powers.
(C79, § 26-3; O.10,554; C91, § 26-3)

Sec. 110-29. Compliance with applicable law.

All cable television activity within the city shall be undertaken pursuant to a franchise granted by the city and shall be in accord with this article. A grantee shall at all times comply with the rules and regulations of the Federal Communications Commission as well as with all other applicable statutes, ordinances and regulations. Federal Communications Commission rules and regulations shall in all cases be controlling if any part of this article or any cable television franchise is in conflict with any Federal Communications Commission rules and regulations.
(C62, § 12A-3; O.8370, 8434, 8570; C75, C79, § 26-3; O.10,554; C79, C91, § 26-4)

Sec. 110-30. Signal quality.

A grantee shall deliver a picture in black and white or in color that is undistorted, free from ghost images, and accompanied by proper sound to subscribers with typical standard production television sets in good repair. A grantee shall transmit signals of sufficient strength to produce good pictures with good sound at all outlets throughout the city without causing cross modulation in the cables or interfering with other electrical or electronic systems.
(C62, § 12A-4; O.8370, 8570; C75, C79, § 26-4; O.10,554; C79, C91, § 26-5)

Sec. 110-31. Operation and maintenance.

A grantee shall perform the following with regard to the operation and maintenance of a cable television system:

(1) Maintain an office within the city open to the public during all normal business hours with a directory listed telephone. The office shall be equipped with adequate telephone line capability and staff to enable complaints and requests for repairs or adjustments to be received on a 24-hour basis. Staffing of the office shall include a local system manager with the authority to make timely resolutions of operating emergencies and subscriber complaints.

(2) Maintain a repair and maintenance crew which responds to subscriber complaints or requests for service with appropriate repairs or service within 24 hours of receipt of the complaint. Upon failing to correct total loss of customer service within 72 hours, an amount equal to 1/30 of the subscriber's monthly charges shall be credited to the subscriber's account for each 24-hour period following the receipt of the subscriber complaint during which no service is provided. No charge shall be made to the subscriber for maintenance or repair services unless the service call is a result of damage caused by the subscriber.

(3) Construct and maintain all parts of the CATV system in good working condition throughout the entire franchise period.

(4) Accept this subsection as the direction from the city council to extend cable services to the underground district described in section 102-657 of this Code.

(5) Disconnect cable service without charge after request of a subscriber for termination of service.

(6) Render efficient service, make repairs promptly and properly, and interrupt service only for good cause and for the shortest time possible. Such interruptions, insofar as possible, shall be preceded by notice and shall occur during periods of minimum system use.

(7) Distribute television signals to subscribers as required by the Federal Communications Commission.

(8) Take all necessary steps to ensure that its operations do not interfere with television reception of persons who are not subscribers, and that its system does not interfere with, obstruct or hinder in any manner the operation of the various other utilities and/or electronic or radar surveillance systems serving the city residents.

(9) Provide, upon request, services, facilities and equipment for production of programming on the public access channel at a cost which allows the grantee to recoup its actual expenses of providing such services, facilities and equipment.

(10) Provide, on request, assistance to any person seeking to develop the necessary skills to produce programs on the public access channels and cooperate with any person wishing to organize training workshops in connection with the use of the access channels.

(C62, § 12A-5; O.8370, 8570; C75, C79, § 26-5; O.10,554; C79, C91, § 26-6)

Sec. 110-32. Service standards deviations.

The grantee shall continue, through the term of the franchise, to maintain the technical, operational, and maintenance standards and quality of service set forth in this article. If the city council finds that the grantee has failed to maintain the standards and quality of service in this article, the grantee shall make such improvements necessary to bring the system into conformity with the grantee's representations in its grantee's proposal. Failure to make such improvements within 90 days may constitute sufficient grounds to terminate the franchise.
(C79, § 26-7; O.10,554; C91, § 26-7)

Sec. 110-33. Continuity of service.

(a) All cable television subscribers shall receive continuous service so long as their financial and other obligations to the grantee are satisfied. If the grantee elects to overbuild, rebuild, modify or sell the system or the city council gives notice of its intent to terminate the franchise or if the franchise is not renewed, for whatever reason, the grantee shall take all reasonable steps within its control to act so as to ensure that all subscribers receive continuous, uninterrupted service regardless of the circumstances. If the grantee changes or if a new operator acquires the system, the grantee shall cooperate with the city and new grantee or operator in maintaining continuity of service to all subscribers. During such interim period, the grantee shall be entitled to the CATV system revenues for any period during which it actually operates the system, in order to cover the reasonable costs for continuing its services.

(b) The grantee shall immediately and fully inform the city manager of any cessation of operations of 72 or more hours duration, its causes, and the steps being taken to remedy such crises. If the grantee, for whatever reason, fails to operate the system for four consecutive days, the city manager shall so inform the city council which may, at its option, elect to take any and all steps necessary to itself temporarily operate the system or designate a temporary operator until such time as a permanent operator is selected. If the city assumes responsibility for the temporary operation of the CATV system for the grantee, the grantee shall reimburse the city for all reasonable costs associated with such operation from system revenues, whether collected by the city or by the grantee.
(C79, § 26-8; O.10,554; C91, § 26-8)

Sec. 110-34. Complaint procedure.

(a) The city manager or his or her designee shall be responsible for the city's continuing administration of the CATV franchise, including the grantee's complaint procedures.

(b) The grantee shall establish standard procedures for receiving, acting upon, and resolving subscriber complaints, which procedures shall be in writing and filed with the city manager's office. The grantee shall furnish a notice of such procedures to each subscriber at the time of initial subscription to the system.

(c) The grantee shall keep at its general corporate offices a maintenance service log which records the nature of each service complaint, the date and time it was received, and the disposition of the complaint, including the time and date of resolution. This log shall be made available upon request for inspection by the city manager. All service complaint records shall be retained on file for a period consisting of the most recent two years.

(d) When there are a number of similar complaints made or when there appear, in the judgment of the city manager, circumstances indicative of unreliable and/or poor quality cable service being delivered to subscribers, the city manager shall have the right and authority to compel the grantee at its own expense to test, analyze, and report on the performance of the system. Such report shall be delivered to the city manager no later than 14 days after the city manager formally notifies the grantee of its need to review performance and shall include the following information: the nature of the complaints which precipitated the special tests; the specific system components which were tested, the equipment used and procedures employed in the testing; the results of such tests; and the method in which the subscriber complaints were resolved.

(e) The city manager may, if the circumstances appear to merit such attention, require that such tests and analyses be supervised and/or conducted by an independent professional engineer with the requisite expertise in cable television operations who is not a member of the staff of the grantee. The engineer responsible for the testing shall sign all records of the special tests and shall prepare a report interpreting the results of the tests and recommending corrective actions to be taken by the grantee. The grantee shall forward to the city manager such records without revisions, deletions or substitutions.

(C62, § 12A-5.01; O.8945; C75, C79, § 26-5.01; O.10,554; C79, C91, § 26-9)

Sec. 110-35. Program alteration prohibited.

All programs of broadcasting stations carried by a grantee on the cable communications system shall be carried without alteration in compliance with Federal Communications Commission regulations.

(C62, § 12A-6; O.8370, 8570; C75, C79, § 26-6; O.10,554; C79, C91, § 26-10)

Sec. 110-36. Removal of existing antennas.

A grantee shall in no way tamper with or remove an existing television antenna without the owner's consent.

(C62, § 12A-7; O.8570; C75, C79, § 26-7; O.10,554; C79, C91, § 26-11)

Sec. 110-37. Safety requirements.

A grantee shall at all times employ reasonable care in the installation and maintenance of a cable television system and shall install and maintain such system in accordance with commonly accepted good engineering methods and practices. A grantee shall install and maintain its wires, cables, fixtures, and other equipment in accordance with the requirements of article III of this chapter and article III of chapter 26 and article IV of chapter 118 and of this Code pertaining to electricity. All structures, lines, equipment, or connections in, over, under, or upon the streets, sidewalks, alleys and public ways or places of the city shall at all times be kept and maintained in a safe condition and in good working order and repair and shall not in any way interfere with any installation of the city or of any public utility serving the city.

(C62, § 12A-8; O.8370, 8570; C75, C79, § 26-8; O.10,554; C79, C91, § 26-12)

Sec. 110-38. Conditions on street occupancy.

A grantee shall be allowed to use the city streets, alleys, rights-of-way and other public ways and places, including any and all public easements held by the city for utility purposes, for the construction and operation of its cable television system pursuant to the granting of a franchise; provided, however, that in such use and occupancy a grantee shall be subject to all applicable city ordinances, including but not limited to

article III of this chapter and article IV of chapter 118 of this Code pertaining to excavations for underground cables and chapter 102 of this Code pertaining to streets and sidewalks.
(C62, § 12A-9; O.8370, 8570; C75, C79, § 26-9; O.10,554; C79, C91, § 26-13)

Sec. 110-39. Placement and use of poles.

(a) Where poles or other wire-holding structures already serving the city are available for use by any grantee, but the grantee does not make arrangements for such use, the city may require a grantee to use such poles and structures if the city determines that the public convenience would be enhanced thereby and if the terms of the use available to the grantee are just and reasonable.

(b) Where the city or a public utility serving the city desires to make use of the poles or other wire-holding structures of a grantee but agreement with a grantee cannot be reached, the city may require the grantee to permit such use for such consideration and upon such terms as the city shall deem to be just and reasonable, if the city determines that the use would enhance the public convenience and would not unduly interfere with a grantee's operations.

(c) No grantee shall erect or maintain any poles or aerial wires or cables within any underground districts which have been established by the city or which may be established by the city. Furthermore, no poles or aerial wires or cables shall be installed or maintained in any area where other utilities are required by law to be underground or where such other utilities are already installed underground.
(C62, § 12A-10; O.8370, 8570; C75, C79, § 26-10; O.10,554; C79, C91, § 26-14)

Sec. 110-40. Removal of equipment upon expiration of franchise.

Upon the expiration or termination of any cable television franchise, a grantee shall remove its poles, cable television transmission and distribution systems, and all other appurtenances from the streets, sidewalks and public ways of the city, when ordered to do so by the city, and shall restore the streets, sidewalks and public ways to their original condition, unless, upon such expiration or termination, the CATV system including all such equipment is transferred to a subsequent grantee to be utilized pursuant to a franchise granted by the city. If a grantee refuses to remove such items or fails to remove such items in a reasonable time after notification by the city, the city shall have the right and authority to remove such poles, cable television transmission and distribution systems and other appurtenances from the city streets, sidewalks, and public ways. The grantee shall reimburse the city for all reasonable costs associated with such removal.
(C62, § 12A-11; O.8370, 8570; C75, C79, § 26-11; O.10,554; C79, C91, § 26-15)

Sec. 110-41. Revocation of franchise.

(a) For a material breach of the terms and conditions of the grantee's cable television system franchise and the subsequent failure of the grantee to correct its default under or noncompliance with the terms of its franchise, the city council shall revoke the franchise and all rights of grantee thereunder. A material breach of the franchise shall include but not be limited to the grantee's:

(1) Violation of any material provision of the franchise or any material rule, order, regulation or determination of the city council made pursuant to the franchise;

(2) Attempt to evade any material provision of the franchise or to practice any fraud or deceit upon the subscribers, the city or the general public;

(3) Failure to begin or complete system construction or system extension as provided in the franchise;

(4) Failure to provide the types of services required in this article;

(5) Failure to restore service after 96 consecutive hours of interrupted service, except where the city manager has been fully informed regarding such crisis and the steps being taken to remedy the crisis as required in subsection 110-33(b) of this article; or

(6) Material misrepresentation of a fact in the application for or negotiation of the

franchise or in any other appearance before or document submitted to the city council or to subscribers.

(b) The city council shall not revoke the grantee's franchise if the interruption in service is without fault of the grantee or occurs as a result of circumstances beyond its control; however, the grantee shall not be excused by mere economic hardship nor by misfeasance or malfeasance of its shareholders, directors, officers, or employees.

(c) Upon a material breach, the city manager shall make written demand that the grantee immediately comply with any such provision, rule, order, or determination under or pursuant to its franchise. If the violation by the grantee continues for a period of 90 days following such written demand without the submission of written proof that the corrective action has been taken or is being actively and expeditiously pursued, the city manager may recommend revocation of the franchise to the city council. The city manager shall cause to be served upon grantee, at least 20 days prior to the date of such city council hearing, a written notice of intent to request such revocation and the time and place of the hearing. Public notice shall be given not less than four days or more than 20 days prior to the hearing and shall include a description of the issue which the city council is to consider.

(d) The city council shall hear and consider the issue and shall hear any person interested therein and shall determine, in its discretion, whether or not any violation by the grantee of the franchise has occurred.

(e) If the city council determines that a violation of the franchise has occurred, the city council shall, by resolution, declare that the franchise of the grantee shall be revoked and terminated unless there is compliance within such period as the city council may fix, such period not to be less than 60 days, provided no opportunity for compliance shall be granted for a violation because of fraud or misrepresentation.

(f) At the expiration of such period, the city council shall determine whether the grantee has achieved compliance. The city council then may revoke the franchise forthwith on finding that the grantee has failed to achieve compliance or may further extend the period, at its discretion.
(C79, § 26-16; O.10,554; C91, § 26-16)

Sec. 110-42. Service rules and regulations of grantee.

A grantee shall have the right to prescribe reasonable service rules and regulations regarding access channels not inconsistent with the provisions of the grantee's franchise, this article, or any other city ordinances and not inconsistent with the laws of the state and the United States. Such rules shall be filed with the city. A grantee shall also submit to the city the form of its service agreements between the grantee and its subscribers and shall furnish any amendments or alterations to the service agreement.
(C62, § 12A-12; O.8370, 8570; C75, C79, § 26-12; O.10,554; C79, C91, § 26-17)

Sec. 110-43. Subscriber service rates.

(a) The city shall follow the Federal Communications Commission rate regulations in its regulation of cable television basic service rates and charges, notwithstanding any different or inconsistent provisions in the franchise or in this Code.

(b) When the city shall pass upon such cable television rates and charges, the city shall provide a reasonable opportunity for consideration for the views of interested parties.
(C62, § 12A-13.01; O.8938; C75, § 26-13.01; O.9413; C79, § 26-13.01; O.10,554; C79, C91, § 26-18; O.12,044, 12,081)

Sec. 110-44. Franchise fee.

(a) Within 60 days after the end of each quarter of the grantee's fiscal year, the grantee shall pay to the city a franchise fee equivalent to five percent of gross revenues from all cable services for that quarter.

(b) The grantee shall, within 90 days of the close of its fiscal year, provide the city with an annual audit of gross revenues prepared by a certified public accountant with an auditor's cer-

tification that the total of the fees paid to the city during the reporting period is equal to the franchise fee due for such period.
(C62, § 12A-13.03; O.8945; C75, § 26-13.03; O.9478; C79, § 26-13.03; O.10,554; C79, C91, § 26-19; O.13,107, 13,388)

Sec. 110-45. Maps, plats and reports.

A grantee shall submit to the city engineer upon request maps and plats showing all existing and proposed cable television installations in the city. A grantee shall make periodic reports, but not less than annually, to the city concerning cable television operations. A grantee shall submit with such reports any and all business records necessary to make a full and complete presentation of its CATV operations within the city.
(C62, § 12A-14; O.8370, 8570; C75, C79, § 26-14; O.10,554; C79, C91, § 26-20)

Sec. 110-46. Emergency use of facilities.

If any emergency or disaster occurs, a grantee shall, upon request of the city manager, make its facilities available to the city for emergency use during the emergency or disaster.
(C62, § 12A-15; O.8370, 8570; C75, C79, § 26-15; O.10,554; C79, C91, § 26-21)

Sec. 110-47. Public access; service to city; service to independent community school district.

(a) A grantee shall provide at least one specially designated noncommercial public access channel available to the public on a first come, nondiscriminatory basis.

(b) In addition to the noncommercial public access channel, a grantee shall provide at least one specially designated channel to the city and at least one specially designated channel to the Des Moines Independent Community School District. Such channels shall be provided to the city and the school district free of charge during the term of any cable television franchise. Furthermore, a grantee shall also supply, pursuant to section 110-44(b) of this article, installation and equipment to public primary and secondary schools and to any municipally owned buildings located within the city upon the request of the board of directors of the Des Moines Independent Community School District or upon request of the city council, as the case may be, unless it is commercially impracticable for the grantee to comply with this requirement.

(c) A grantee may, at its own election, provide similar services without cost to private schools, including parochial or other religious schools.

(d) If any one of the public access governmental or educational channels become fully utilized, the grantee shall make every reasonable effort to make a second access channel available to the public.

(e) A grantee shall provide public access, governmental, or educational users with the services, facilities and equipment pursuant to the requirements of subsections 110-31(9) and (10) of this article.
(C62, § 12A-16; O.8370, 8434, 8570; C75, C79, § 26-16; O.10,554; C79, C91, § 26-22)

Sec. 110-48. Change of control of grantee.

Prior approval of the city council shall be required where ownership or control of more than 25 percent of the right of control of a cable television system franchise grantee is acquired by a person or several persons acting in concert, none of whom already owns or controls 25 percent or more of such right of control, singularly or collectively. Any such acquisition occurring without prior approval of the city council shall constitute a violation of a grantee's franchise.
(C62, § 12A-17; O.8370, 8570; C75, C79, § 26-17; O.10,554; C79, C91, § 26-23)

Sec. 110-49. Inspection of records.

The city shall have the right, power, and authority to inspect the records of any cable television system franchise grantee at the premises of such grantee during the normal business hours of any working day or at any other reasonable time and place, providing the grantee is given no less than seven days' notice.
(C62, § 12A-18; O.8370, 8570; C75, C79, § 26-18; O.10,554; C79, C91, § 26-24)

Sec. 110-50. Performance evaluation hearings.

(a) The city council and the grantee shall hold franchise performance evaluation public hearings within 30 days of the sixth and 12th anniversary dates of the grantee's award or renewal of the franchise in conjunction with or in addition to any such hearings required by federal and state law.

(b) Special evaluation hearings may be held at any time during the term of the franchise at the request of the city or the grantee.

(c) All evaluation hearings shall be open to the public. A grantee shall notify its subscribers of all evaluation hearings by announcement on at least two channels of its system between the hours of 7:00 p.m. and 9:00 p.m., for five consecutive days preceding each session. In addition, notice of the evaluation hearing shall be published in a nonlegal section of a newspaper published at least once weekly and having general circulation in the city at least once not less than four days nor more than 20 days before the evaluation hearing.

(d) Issues which may be discussed at any scheduled or special evaluation hearing shall include but not be limited to identification of future cable-related community needs and interests, franchise fee, penalties, free or discounted services, application of new technologies, system performance, services provided, programming offered, customer complaints, privacy, amendments to this article, judicial and Federal Communications Commission rulings, line extension policies, and grantee or city rules.
(C79, § 26-25; O.10,554; C91, § 26-25)

Sec. 110-51. Supervision and inspection.

The city shall have the right to supervise any construction or installation work performed by any grantee in the city and make such inspections as it finds necessary to ensure compliance with the terms of any cable television franchise, this article or other pertinent provisions of law.
(C62, § 12A-19; O.8370, 8570; C75, C79, § 26-19; O.10,554; C79, C91, § 26-26)

Sec. 110-52. Filings and communications with regulatory agencies.

Copies of all petitions, applications and communications and reports submitted by any grantee to the Federal Communications Commission, Securities and Exchange Commission, or any other federal or state regulatory commission or agency having jurisdiction in regard to any matters affecting cable television within the corporate limits shall also be submitted simultaneously to the city council.
(C62, § 12A-20; O.8370, 8570; C75, C79, § 26-20; O.10,554; C79, C91, § 26-26.01)

Sec. 110-53. Discrimination prohibited.

A cable television system franchise grantee shall not, as to rates, charges, services, service facilities, rules and regulations, or in any other respect, make or grant any undue preference or advantage to any person, nor subject any person to prejudice or disadvantage. Nothing in this section, however, shall be deemed to prohibit promotional campaigns to stimulate basic service subscriptions to the system or deemed to prohibit the charging of special rates for such service so long as that rate is not in excess of the basic service charge approved by the city council. A grantee shall not discriminate against any person on the basis of race, religion, creed, color, sex, national origin or ancestry. Furthermore, a grantee shall also take affirmative action to recruit employees from members of minority groups.
(C62, § 12A-21; O.8370, 8570; C75, C79, § 26-21; O.10,554; C79, C91, § 26-26.02)

Sec. 110-54. Rights of individuals.

(a) No signals shall be transmitted from a subscriber terminal for purposes of monitoring individual viewing patterns or practices without the express written permission of the subscriber. The request for such permission shall be contained in a separate document with a prominent statement that the subscriber is authorizing the permission in full knowledge of its provision. The authorization shall be revokable at any time by the subscriber without penalty of any kind whatsoever. Such authorization shall be required for each type or classification of two-way cable communications activity planned; except that the grantee shall be entitled to conduct systemwide or individually addressed "sweeps" for the purpose of verifying system integrity, controlling return-path transmission, or billing for pay services.

(b) The grantee or any of its agents or employees shall not, without the specific written authorization of each subscriber involved, sell, or otherwise make available to any party, except as is necessary to the conduct of the grantee's business:

(1) Lists including the name and address of such subscriber; or

(2) Any list which identifies the individual viewing habits of such subscriber.

(C79, § 26-26.03; O.10,554; C91, § 26-26.03)

Sec. 110-55. Hold harmless.

(a) A grantee shall at all times defend, indemnify, protect, and hold harmless the city from and against any and all liability, losses, and damage to property or bodily injury or death to any person, including payments made under worker's compensation laws, which may arise out of or be caused by the erection, construction, replacement, removal, maintenance or operation of a grantee's cable television system and caused by any act or failure to act on the part of a grantee, its agents, officers, servants, or employees. A grantee shall hold the city harmless against any damages resulting from legal action which may be brought against it in connection with the establishment or operation of a grantee's cable television system in the city and shall defend at its own expense any action brought against the city because of the erection, construction, replacement, removal, maintenance or operation of a grantee's cable television system.

(b) This hold harmless and indemnity agreement shall include any claim arising out of the nonobservance by the grantee of the provisions of any laws, statutes, ordinances, resolutions, regulations or rules duly promulgated by any governmental entity which may be applicable, directly or indirectly, to rights, privileges, and authority, and the obligations and liabilities assumed by the grantee under the franchise and/or the nonobservance by the grantee of any of the terms and conditions of the franchise and/or the granting of the franchise by the city.

(c) The grantee shall pay all reasonable expenses incurred by the city in defending itself with regard to all damages, penalties or other claims resulting from the acts of the grantee, its assigns, employees, agents, invitees, or other persons. The expenses shall include all out-of-pocket expenses such as attorney's fees, and shall include the value of any service rendered by the city attorney or any other city officers or employees.

(C62, § 12A-23; O.8370, 8570; C75, C79, § 12A-23; O.10,554; C79, C91, § 26-26.04)

Sec. 110-56. Insurance.

A grantee shall promptly, after the granting of a grantee's cable television system franchise, provide public liability insurance for personal injuries and/or death growing out of any one accident or other cause in the following amounts: $100,000.00 as to any one person, $500,000.00 as to any one occurrence for injury or death to persons, and $100,000.00 for damages to property, with, as to grantee, so-called umbrella coverage of at least $5,000,000.00; worker's compensation insurance as provided by state law; and automobile insurance with limits of not less than $100,000.00/$500,000.00 of public liability coverage and automobile property damage insurance with a limit of not less than $100,000.00 covering all automotive equipment, with, as to grantee, so-called umbrella coverage of at least $5,000,000.00. A grantee shall maintain such insurance with insurance underwriters authorized to do business in the state satisfactory to the city. All policies shall name the city, its employees, servants, agents and officers as additional named insured parties. In addition, the city shall receive at least 30 days' prior written notice of any cancellation or change in any such insurance policy. A grantee shall furnish the city with a certificate of insurance from the grantee's carrier indicating that there is such insurance coverage as provided in this section, and if requested by the city shall submit to the city two certified copies of the policies.

(C62, § 12A-24; O.8370, 8570; C75, C79, § 26-24; O.10,554; C79, C91, § 26-26.05)

Sec. 110-57. Payment of costs.

In the granting of any cable television franchise, the city shall be governed by the applicable provisions of I.C. § 364.1 et seq., or such other enactments of the general assembly which might

amend or supersede such sections. Furthermore, any person asking the city council to initiate the submission of the question of granting a cable television franchise to the electors of the city or any person petitioning the city council to so submit the cable television franchise question shall pay the costs incurred in holding such franchise election.
(C62, § 12A-26; O.8370, 8570; C75, C79, § 26-26; O.10,554; C79, § 26-26.07; C91, § 26-26.06)

Secs. 110-58—110-85. Reserved.

ARTICLE III. COMMUNICATIONS SYSTEMS WITHIN PUBLIC RIGHT-OF-WAY

Sec. 110-86. Definitions.

The definitions found at section 102-657 of this Code shall apply to this article. The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Communications system means any telephone or telegraph system or any other system of cables, wires, fibers, or conduits, and any related equipment, facilities, manholes or overhead poles, operated and maintained for communications purposes, or operated for the purpose of transmitting data, but excluding cable television systems franchised to provide that service by the city.
(C85, § 26-49; O.10,993; C91, § 26-49; O.13,637)
Cross reference—Definitions generally, § 1-2.

Sec. 110-87. Technical standards.

All technical standards governing installation, construction, reconstruction, repair, operation, disconnection and removal of a communications system licensed under this article shall be in accordance with all applicable Federal Communications Commission and other federal, state and city laws and regulations.
(C85, § 26-54; O.10,993; C91, § 26-54; O.11,931, 13,637)

Sec. 110-88. License fees.

(a) A license fee shall, to the extent allowed by the constitution and laws of the state, be assessed on all new licenses issued for use or occupancy of the right-of-way for telecommunications uses upon and after the city council's approval by resolution of a schedule of license fees for use of the city right-of-way. The schedule of fees for use of the city right-of-way shall reflect the diminution in the functional utility of the right-of-way for use by the city and shall be based upon such factors as the value or rental value of private property abutting the right-of-way to be used and the licensee's avoided cost in using city right-of-way as opposed to establishing a private right-of-way for the licensed use upon abutting private property. The schedule of fees for use of the city right-of-way shall establish such fees in terms of per-linear-foot charges for the right-of-way used, and assuming a use width of not more than ten feet, with the schedule reflecting the per-foot value of such right-of-way in identified segments of the city.

(b) In addition to being required to pay a license fee as provided in subsection (a) of this section, communication system licensees may, to the extent allowed by I.C. § 480A.1 et seq., be required to provide in-kind services as compensation for such use, including but not limited to:

(1) The installation by the licensee of city equipment in the trenches excavated by or in the duct banks constructed by the licensee; and/or

(2) Access to such trenches or ducts so that the city can install its equipment therein.

A communication system licensee who provides such services as utility services, as defined in article IX of chapter 102 of this Code, may, to the extent allowed by I.C. § 480A.1 et seq., also be required to provide the city access to the communications services to be provided by the licensee, at no cost equivalent to the services of a T-1 line, such service to be provided at a location to be designated by the city, or payment to the city of the equivalent value of such service to be provided at the location as an additional quarterly fee.

(c) License fees shall be paid at the city treasurer's office. The acceptance of any license fee payment by the city shall not be construed as an acknowledgment that the license is valid or that the amount paid is the correct amount due, nor shall such acceptance of payment be construed as a release of any claim which the city may have for additional sums due and payable. The licensee shall, within 90 days of the close of the license year, provide the city with an annual audit of the fees paid to the city during the reporting period indicating the fee paid the city during that period is equal to the license fee due for such period. If such audit results in a determination that an additional amount of license fee is owing to the city for the prior license year, such additional amount shall be due and payable immediately, together with interest at the rate of ten percent per year calculated from the due dates for the quarterly license fee payments in question. The city manager may waive the audit requirement when he or she determines that the license fee amount owing to the city is too minimal to justify audit.

(d) The licensee shall pay interest at the rate of ten percent per year on any overdue license fee calculated from the due date thereof.

(e) Nothing in this article shall be construed to limit the liability of the licensee for all applicable federal, state and local taxes.

(f) Nothing in this article shall be construed to prevent the city council from exercising the right of the city to change the amount of any of the fees required by this section.
(C85, § 26-56; O.10,993; C91, § 26-56; O.13,637)

Sec. 110-89. Aboveground cables, wires, conduits and poles; undergrounding required in underground district.

(a) Within the underground district, as defined at section 1-2 of this Code, all cables, wires, fibers and conduits in connection with any communications system shall be placed underground, except where aboveground connection to buildings or other locations aboveground is reasonably necessary, and except where they can be located in private structures. Such aboveground connection shall be by means of poles located, as far as reasonably practicable, within alleys.

(b) Outside the underground district, cables, wires, fibers and conduits in connection with any communications system may be placed either underground or on poles aboveground, except when undergrounding is required pursuant to the city's subdivision or site plan requirements as expressed in this Code. No such poles shall be installed or erected, and no license or permit for such shall be issued, until the city engineer has approved the proposed location of such poles.
(C85, § 26-61; O.10,993; C91, § 26-61; O.13,637)

Sec. 110-90. Appeals.

Any person who believes that the license fee imposed on such person pursuant to this article does not conform to the requirements of I.C. § 480A.1 et seq., may request in writing that such decision or action be reviewed by the city council, pursuant to section 102-801 of this Code. Any person who is aggrieved by a decision of the department or of the city engineer with respect to the issuance, denial, revocation or suspension of a license for a telecommunications system may request in writing that such decision or action be reviewed by the city manager, pursuant to section 102-802 of this Code.
(C91, § 26-61.01; O.13,637)

Sec. 110-91. Construction of article.

Nothing in this article shall be construed as an acquiescence in or ratification of the occupation of any of the public right-of-way or public places of the city by any person occupying the right-of-way or public place without legal right, nor shall this article be construed as conferring the right to occupy any of the public rights-of-way or public places of the city upon any such person illegally or without authority occupying the right-of-way or public place.
(C85, § 26-62; O.10,993; C91, § 26-62; O.13,637)

Chapters 111—113

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*__Cross references—__Noise control for motorized vehicles, § 42-258; littering from vehicle loads, § 42-395; littering from placing handbills on vehicles, § 42-398; offenses and miscellaneous provisions, ch. 70; transportation for purpose of prostitution, § 70-179; planning, ch. 82; police, ch. 86; streets, sidewalks, skywalks, and other public places, ch. 102; moving of houses and heavy equipment, § 102-996 et seq.; vehicles for hire, ch. 126.

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Sec. 114-1298. Reserved.
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Sec. 114-1307. Delaware Avenue.
Sec. 114-1308. Dixon Street.
Sec. 114-1309. Douglas Avenue.
Sec. 114-1310. East Douglas Avenue.

Sec. 114-1311. Easter Lake Drive.
Sec. 114-1312. Easton Boulevard.
Sec. 114-1312.05. Echo Valley Drive.
Sec. 114-1313. Euclid Avenue.
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Sec. 114-1338. East McKinley Avenue.
Sec. 114-1339. Southwest McKinley Avenue.
Sec. 114-1339.05. Meredith Drive.
Sec. 114-1340. Merklin Way.
Sec. 114-1341. Merle Hay Road.
Sec. 114-1342. East Merle Hay Frontage Road.
Sec. 114-1342.05. East Oakhill Drive.
Sec. 114-1343. Park Avenue.
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Sec. 114-1345. East Payton Avenue.
Sec. 114-1346. Pennsylvania Avenue.
Sec. 114-1347. East Pine Avenue.
Sec. 114-1348. Southwest Pine Avenue.
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Sec. 114-1350. Reserved.
Sec. 114-1351. Redhead Road.
Sec. 114-1352. Reserved.
Sec. 114-1353. Reserved.
Sec. 114-1353.05. Reserved.
Sec. 114-1354. Saylor Road.
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Sec. 114-1356. South Union Street.

Sec. 114-1357. Thomas Beck Road.
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Sec. 114-1358. University Avenue.
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Sec. 114-1360. Urbandale Avenue.
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Sec. 114-1362. Reserved.
Sec. 114-1363. Vandalia Road.
Sec. 114-1363.01. Veterans Parkway.
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Sec. 114-1428. Beaver Avenue.
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Sec. 114-1429.02. East Broadway Avenue.
Sec. 114-1430. Carpenter Avenue.
Sec. 114-1431. Center Street.
Sec. 114-1432. Reserved.
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Sec. 114-1433. Clark Street.
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Sec. 114-1436. College Avenue.
Sec. 114-1437. Cornell Street.
Sec. 114-1438. Cottage Grove Avenue.
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Sec. 114-1438.02. County Line Road.
Sec. 114-1439. Court Avenue.
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Sec. 114-1441. Crocker Street.
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Sec. 114-1444. Dean Avenue.
Sec. 114-1445. Delaware Avenue.
Sec. 114-1445.01. East Diehl Avenue.
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Sec. 114-1446. Dixon Street.
Sec. 114-1447. Douglas Avenue.
Sec. 114-1447.01. East Douglas Avenue.
Sec. 114-1448. Easton Boulevard.
Sec. 114-1449. Euclid Avenue.
Sec. 114-1450. East Euclid Avenue.
Sec. 114-1451. Fleur Drive.
Sec. 114-1452. Forest Avenue.
Sec. 114-1453. Franklin Avenue.
Sec. 114-1454. Fremont Street.
Sec. 114-1454.01. George Flagg Parkway.
Sec. 114-1455. Grand Avenue.
Sec. 114-1456. East Grand Avenue.
Sec. 114-1457. Reserved.
Sec. 114-1458. Guthrie Avenue.
Sec. 114-1459. Hartford Avenue.
Sec. 114-1460. Hickman Road.
Sec. 114-1461. High Street.
Sec. 114-1462. Holcomb Avenue.
Sec. 114-1463. Hull Avenue.
Sec. 114-1464. Reserved.
Sec. 114-1465. Indianola Avenue.
Sec. 114-1465.01. Indianola Road.
Sec. 114-1465.02. Reserved.
Sec. 114-1466. Ingersoll Avenue.
Sec. 114-1467. Interstate 235 (Des Moines Freeway).
Sec. 114-1467.01. Iowa Highway 28.
Sec. 114-1467.02. East Jackson Avenue.
Sec. 114-1468. Keosauqua Way.
Sec. 114-1468.01. Kingman Boulevard.
Sec. 114-1468.02. Laurel Street.
Sec. 114-1469. Locust Street.
Sec. 114-1470. East Locust Street.
Sec. 114-1471. Lower Beaver Road.
Sec. 114-1472. Reserved.
Sec. 114-1473. Madison Avenue.
Sec. 114-1474. East Madison Avenue.
Sec. 114-1475. Reserved.
Sec. 114-1476. Martin Luther King Jr Parkway.
Sec. 114-1476.01. East Martin Luther King Jr Parkway.
Sec. 114-1477. Maury Street.
Sec. 114-1478. McKinley Avenue.
Sec. 114-1479. East McKinley Avenue.
Sec. 114-1479.01. Southwest McKinley Avenue.
Sec. 114-1480. Merle Hay Road.
Sec. 114-1480.01. Morton Avenue.
Sec. 114-1481. Mulberry Street.
Sec. 114-1482. New York Avenue.
Sec. 114-1483. Park Avenue.
Sec. 114-1484. East Park Avenue.
Sec. 114-1485. Park Street.
Sec. 114-1486. Pennsylvania Avenue.
Sec. 114-1487. Pleasant Street.
Sec. 114-1488. Polk Boulevard.
Sec. 114-1489. Porter Avenue.
Sec. 114-1490. East Porter Avenue.

Sec. 114-1491. Scott Avenue.
Sec. 114-1492. Railroad Avenue.
Sec. 114-1493. Reserved.
Sec. 114-1493.01. Tuttle Street.
Sec. 114-1494. University Avenue.
Sec. 114-1495. East University Avenue.
Sec. 114-1496. Reserved.
Sec. 114-1497. Reserved.
Sec. 114-1497.01. Virginia Avenue.
Sec. 114-1498. Walker Street.
Sec. 114-1499. Walnut Street.
Sec. 114-1500. East Walnut Street.
Sec. 114-1501. East Washington Avenue.
Sec. 114-1502. Watrous Avenue.
Sec. 114-1503. East Watrous Avenue.
Sec. 114-1503.01 Watson Powell Jr Way.
Sec. 114-1503.05. West Martin Luther King Jr Parkway.
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Subdivision III. Devices at Other Than Intersections

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Sec. 114-1532.01. Beaver Avenue.
Sec. 114-1532.05. Aurora Avenue.
Sec. 114-1533. Cornell Street.
Sec. 114-1533.01. East County Line Road.
Sec. 114-1534. Crocker Street.
Sec. 114-1535. Reserved.
Sec. 114-1536. East Douglas Avenue.
Sec. 114-1537. Easton Boulevard.
Sec. 114-1538. Euclid Avenue.
Sec. 114-1539. Evergreen Avenue.
Sec. 114-1540. Reserved.
Sec. 114-1540.5. Forest Avenue.
Sec. 114-1541. Grand Avenue.
Sec. 114-1541.01. Reserved.
Sec. 114-1542. Hickman Road.
Sec. 114-1543. Hull Avenue.
Sec. 114-1544. Reserved.
Sec. 114-1544.01. Indianola Avenue.
Sec. 114-1544.05. Keosauqua Way.
Sec. 114-1545. East Madison Avenue.
Sec. 114-1546. East Market Street.
Sec. 114-1546.001. Martin Luther King Jr Parkway.
Sec. 114-1546.01. Merle Hay Road.
Sec. 114-1546.05. Park Avenue.
Sec. 114-1547. Reserved.
Sec. 114-1547.01. East University Avenue.
Sec. 114-1547.02. University Avenue.
Sec. 114-1547.03. Urbandale Avenue.
Sec. 114-1547.04. Walker Street.
Sec. 114-1548. Reserved.
Sec. 114-1548.01. Reserved.
Sec. 114-1548.02. Second Avenue.
Sec. 114-1548.05. Third Street.
Sec. 114-1548.06. Southeast Fifth Street.
Sec. 114-1548.08. Sixth Avenue.
Sec. 114-1549. Southeast Sixth Street.
Sec. 114-1549.05. Southwest Ninth Street.

Sec. 114-1550. Southwest Fourteenth Street.
Sec. 114-1550.03. Fourteenth Street.
Sec. 114-1550.5. Reserved.
Sec. 114-1550.07. Southeast Fourteenth Street.
Sec. 114-1550.08. Southeast Twenty-second Street.
Sec. 114-1550.7. Southeast Twenty-second Street.
Sec. 114-1551. East Twenty-ninth Street.
Sec. 114-1551.01. Thirtieth Street.
Sec. 114-1552. Thirty-first Street.
Sec. 114-1553. East Thirty-third Street.
Sec. 114-1554. Forty-first Street.
Sec. 114-1554.01. Forty-second Street.
Sec. 114-1554.02. East Forty-second Street.
Sec. 114-1554.05. Reserved.
Secs. 114-1555—114-1580. Reserved.

Division 4. Snow Routes

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Sec. 114-1582. Southeast First Street.
Sec. 114-1583. Second Avenue.
Sec. 114-1584. Southwest Second Street.
Sec. 114-1585. Third Street.
Sec. 114-1586. Southwest Third Street.
Sec. 114-1587. Southeast Fifth Street.
Sec. 114-1588. Southwest Fifth Street.
Sec. 114-1588.01. Fifth Avenue.
Sec. 114-1589. Sixth Avenue.
Sec. 114-1590. East Sixth Street.
Sec. 114-1591. Southeast Sixth Street.
Sec. 114-1591.01. Southwest Sixth Street.
Sec. 114-1592. Seventh Street.
Sec. 114-1593. Southwest Seventh Street.
Sec. 114-1594. Eighth Place.
Sec. 114-1595. Eighth Street.
Sec. 114-1596. Southwest Eighth Street.
Sec. 114-1597. Ninth Street.
Sec. 114-1598. East Ninth Street.
Sec. 114-1599. Southwest Ninth Street.

Sec. 114-1600. Reserved.
Sec. 114-1600.5. Eleventh Street.
Sec. 114-1601. Twelfth Street.
Sec. 114-1602. East Twelfth Street.
Sec. 114-1602.01. Southeast Twelfth Street.
Sec. 114-1603. Thirteenth Street.
Sec. 114-1604. Reserved.
Sec. 114-1605. Reserved.
Sec. 114-1606. East Fourteenth Street.
Sec. 114-1607. Southeast Fourteenth Street.
Sec. 114-1608. Southwest Fourteenth Street.
Sec. 114-1609. Fifteenth Street.
Sec. 114-1610. East Fifteenth Street.
Sec. 114-1610.01. Southeast fifteenth street.
Sec. 114-1611. Southwest Fifteenth Street.
Sec. 114-1612. Sixteenth Street.
Sec. 114-1613. East Sixteenth Street.
Sec. 114-1614. Reserved.
Sec. 114-1614.04. Eighteenth Street.
Sec. 114-1614.05. East Eighteenth Street.
Sec. 114-1614.06. Southeast Eighteenth Street.
Sec. 114-1615. Nineteenth Street.
Sec. 114-1616. Southeast Nineteenth Street.
Sec. 114-1616.05. Southeast Twentieth Street.
Sec. 114-1617. East Twenty-first Street.
Sec. 114-1618. Southeast Twenty-second Street.
Sec. 114-1618.5. Reserved.
Sec. 114-1619. Southeast Twenty-third Street.
Sec. 114-1620. Reserved.
Sec. 114-1621. Reserved.
Sec. 114-1622. Reserved.
Sec. 114-1623. Reserved.
Sec. 114-1624. Reserved.
Sec. 114-1625. Reserved.
Sec. 114-1626. Southeast Twenty-fifth Court.
Sec. 114-1627. East Twenty-sixth Street.
Sec. 114-1628. Southwest Twenty-sixth Street.
Sec. 114-1628.05. Reserved.
Sec. 114-1628.06. Northeast Twenty-seventh Avenue.
Sec. 114-1629. Reserved.
Sec. 114-1630. Southwest Twenty-eighth Street.
Sec. 114-1631. Reserved.
Sec. 114-1632. East Twenty-ninth Street.
Sec. 114-1633. Thirtieth Street.
Sec. 114-1634. East Thirtieth Street.
Sec. 114-1635. Southeast Thirtieth Street.
Sec. 114-1635.01. Southwest Thirtieth Street.
Sec. 114-1636. Thirty-first Street.
Sec. 114-1637. Southwest Thirty-first Street.
Sec. 114-1638. East Thirty-third Street.
Sec. 114-1639. Thirty-fourth Street.
Sec. 114-1640. Southeast Thirty-fourth Street.
Sec. 114-1641. Thirty-fifth Street.
Sec. 114-1641.01. Southeast Thirty-sixth Street.
Sec. 114-1642. East Thirty-eighth Street.
Sec. 114-1643. Forty-first Street.
Sec. 114-1644. Forty-second Street.
Sec. 114-1645. East Forty-second Street.
Sec. 114-1646. Southwest Forty-second Street.
Sec. 114-1646.03. Southeast Forty-fifth Street.

Sec. 114-1646.05. Forty-eighth Street.
Sec. 114-1647. Fiftieth Street.
Sec. 114-1648. Fifty-fifth Street.
Sec. 114-1649. Fifty-sixth Street.
Sec. 114-1649.01. East Fifty-sixth Street.
Sec. 114-1649.02. Southwest Fifty-sixth Street.
Sec. 114-1650. Fifty-ninth Street.
Sec. 114-1650.05. Southwest Sixty-first Street.
Sec. 114-1651. Sixty-third Street.
Sec. 114-1652. Southwest Sixty-third Street.
Sec. 114-1652.01. Reserved.
Sec. 114-1652.02. Arlington Avenue.
Sec. 114-1653. Army Post Road.
Sec. 114-1654. East Army Post Road.
Sec. 114-1654.01. Ascension Street.
Sec. 114-1655. Amos Avenue.
Sec. 114-1656. East Aurora Avenue.
Sec. 114-1657. Aurora Avenue.
Sec. 114-1658. Avenue Frederick M. Hubbell.
Sec. 114-1658.05. Bancroft Street.
Sec. 114-1659. Beaver Avenue.
Sec. 114-1660. Bell Avenue.
Sec. 114-1661. Bloomfield Road.
Sec. 114-1661.02. East Broadway Avenue.
Sec. 114-1661.03. Bronze Street
Sec. 114-1661.05. Southeast Brooks Drive.
Sec. 114-1662. Reserved.
Sec. 114-1663. Carpenter Avenue.
Sec. 114-1664. Center Street.
Sec. 114-1665. Reserved.
Sec. 114-1666. Reserved.
Sec. 114-1667. Clark Street.
Sec. 114-1668. Reserved.
Sec. 114-1668.01. Reserved.
Sec. 114-1669. Cornell Street.
Sec. 114-1670. Cottage Grove Avenue.
Sec. 114-1670.04. County Line Road.
Sec. 114-1670.05. East County Line Road.
Sec. 114-1671. East Court Avenue.
Sec. 114-1672. Crocker Street.
Sec. 114-1673. Cummins Parkway.
Sec. 114-1674. Day Street.
Sec. 114-1675. Dean Avenue.
Sec. 114-1676. Delaware Avenue.
Sec. 114-1677. Des Moines Street.
Sec. 114-1677.02. Dixon Street.
Sec. 114-1678. Douglas Avenue.
Sec. 114-1679. East Douglas Avenue.
Sec. 114-1680. Easter Lake Drive.
Sec. 114-1681. Easton Boulevard.
Sec. 114-1682. Euclid Avenue.
Sec. 114-1683. Evergreen Avenue.
Sec. 114-1684. East Euclid Avenue.
Sec. 114-1685. Fleur Drive.
Sec. 114-1686. Forest Avenue.
Sec. 114-1687. Franklin Avenue.
Sec. 114-1687.01. Gannett Avenue.
Sec. 114-1687.05. George Flagg Parkway.
Sec. 114-1687.06. Good Park Drive.
Sec. 114-1688. Grand Avenue.

Sec. 114-1689. East Grand Avenue.
Sec. 114-1690. Guthrie Avenue.
Sec. 114-1691. Havens Avenue.
Sec. 114-1692. Hartford Avenue.
Sec. 114-1693. Hickman Road.
Sec. 114-1694. High Street.
Sec. 114-1694.01. Hubbell Avenue.
Sec. 114-1695. Hull Avenue.
Sec. 114-1696. Reserved.
Sec. 114-1697. Indianola Avenue.
Sec. 114-1697.01. Indianola Road.
Sec. 114-1698. Ingersoll Avenue.
Sec. 114-1699. Iowa Highway 28.
Sec. 114-1700. Jackson Avenue.
Sec. 114-1701. East Jackson Avenue.
Sec. 114-1702. Jefferson Avenue.
Sec. 114-1703. Johnson Court.
Sec. 114-1704. Keosauqua Way.
Sec. 114-1705. King Avenue.
Sec. 114-1706. Kingman Boulevard.
Sec. 114-1707. East Lacona Avenue.
Sec. 114-1708. Leado Avenue.
Sec. 114-1708.02. Lincoln Place Drive.
Sec. 114-1709. Lower Beaver Road.
Sec. 114-1710. Lyon Street.
Sec. 114-1711. Madison Avenue.
Sec. 114-1711.01. Reserved.
Sec. 114-1711.02. Reserved.
Sec. 114-1712. Martin Luther King Jr Parkway.
Sec. 114-1712.01. West Martin Luther King Jr Parkway.
Sec. 114-1712.02. East Martin Luther King Jr Parkway.
Sec. 114-1713. Maury Street.
Sec. 114-1714. McKinley Avenue.
Sec. 114-1715. East McKinley Avenue.
Sec. 114-1716. Southwest McKinley Avenue.
Sec. 114-1717. Meredith Drive.
Sec. 114-1718. Merklin Way.
Sec. 114-1719. Merle Hay Road.
Sec. 114-1720. Merle Hay Frontage Road.
Sec. 114-1721. Murphy Street.
Sec. 114-1721.02. East Oakhill Drive.
Sec. 114-1721.05. Reserved.
Sec. 114-1722. Park Avenue.
Sec. 114-1723. East Park Avenue.
Sec. 114-1724. Park Street.
Sec. 114-1725. Payton Avenue.
Sec. 114-1726. Reserved.
Sec. 114-1727. Pennsylvania Avenue.
Sec. 114-1727.02. East Pine Avenue.
Sec. 114-1728. Polk Boulevard.
Sec. 114-1728.05. Porter Avenue.
Sec. 114-1728.06. Post Street.
Sec. 114-1729. Redhead Road.
Sec. 114-1729.03. Rittenhouse Street.
Sec. 114-1729.05. River Oaks Drive.
Sec. 114-1730. Reserved.
Sec. 114-1730.05. Saylor Road.
Sec. 114-1731. Scott Avenue.
Sec. 114-1732. Reserved.
Sec. 114-1733. Reserved.

Sec. 114-1734. Reserved.
Sec. 114-1734.05. Southridge Boulevard.
Sec. 114-1735. South Union Street.
Sec. 114-1736. State Street.
Sec. 114-1737. Thomas Beck Road.
Sec. 114-1738. Thornton Avenue.
Sec. 114-1739. Tuttle Street.
Sec. 114-1740. University Avenue.
Sec. 114-1741. East University Avenue.
Sec. 114-1742. Urbandale Avenue.
Sec. 114-1743. Reserved.
Sec. 114-1743.001. Veterans Parkway.
Sec. 114-1743.01. East Virginia Avenue.
Sec. 114-1744. Reserved.
Sec. 114-1744.02. Reserved.
Sec. 114-1744.03. East Walnut Street.
Sec. 114-1745. East Watrous Avenue.
Sec. 114-1746. Watrous Avenue.
Sec. 114-1747. Reserved.
Sec. 114-1747.01. Willowmere Drive.
Sec. 114-1748. Woodland Avenue.
Sec. 114-1749. Williams Court.
Sec. 114-1750. Williams Street.
Sec. 114-1751. Reserved.
Sec. 114-1752. Vandalia Road.
Secs. 114-1753—114-1780. Reserved.

Division 5. One-Way Streets

Subdivision I. In General

Secs. 114-1781—114-1805. Reserved.

Subdivision II. Westbound

Sec. 114-1806. Designated.
Sec. 114-1807. Carpenter Avenue.
Sec. 114-1808. Center Street.
Sec. 114-1809. Reserved.
Sec. 114-1810. Day Street.
Sec. 114-1810.01. Geil Avenue.
Sec. 114-1811. Grand Avenue.
Sec. 114-1811.1. Hoffman Avenue.
Sec. 114-1812. Kasson Street.
Sec. 114-1812.1. Loomis Avenue.
Sec. 114-1813. Maple Street.
Sec. 114-1814. Reserved.
Sec. 114-1815. Walker Street.
Sec. 114-1816. Reserved.
Secs. 114-1817—114-1845. Reserved.

Subdivision III. Eastbound

Sec. 114-1846. Designated.
Sec. 114-1847. Boulder Avenue.
Sec. 114-1847.1. Capitol Avenue.
Sec. 114-1848. Center Street.
Sec. 114-1848.5. Chamberlain Avenue.
Sec. 114-1849. Reserved.
Sec. 114-1850. Euclid Avenue.
Sec. 114-1850.5. Filmore Street.

Sec. 114-1851. Reserved.
Sec. 114-1852. Reserved.
Sec. 114-1853. Locust Street.
Sec. 114-1854. Reserved.
Sec. 114-1855. Lyon Street.
Sec. 114-1855.05. Maple Street.
Sec. 114-1856. Reserved.
Sec. 114-1857. Park Street.
Sec. 114-1857.05. Raccoon Street.
Sec. 114-1858. Railroad Avenue.
Sec. 114-1859. Rollins Avenue.
Sec. 114-1860. School Street.
Sec. 114-1860.05. Reserved.
Sec. 114-1861. Walker Street.
Sec. 114-1861.01. Reserved.
Secs. 114-1863—114-1890. Reserved.

Subdivision IV. Northbound

Sec. 114-1891. Designated.
Sec. 114-1892. Second Avenue.
Sec. 114-1893. Southwest Second Street.
Sec. 114-1894. Reserved.
Sec. 114-1895. Sixth Avenue.
Sec. 114-1895.5. Southwest Sixth Street.
Sec. 114-1896. Seventh Street.
Sec. 114-1897. Eighth Place.
Sec. 114-1898. Eighth Street.
Sec. 114-1899. Ninth Street.
Sec. 114-1900. Tenth Street.
Sec. 114-1901. Twelfth Street.
Sec. 114-1901.1. East Twelfth Street.
Sec. 114-1902. East Thirteenth Street.
Sec. 114-1903. Fifteenth Street.
Sec. 114-1904. East Fifteenth Street.
Sec. 114-1905. Reserved.
Sec. 114-1906. East Eighteenth Street.
Sec. 114-1907. Nineteenth Street.
Sec. 114-1908. Southeast Twenty-Fifth Street.
Sec. 114-1909. Twenty-seventh Street.
Sec. 114-1910. Thirty-seventh Street.
Sec. 114-1910.1. East Thirty-ninth Street.
Sec. 114-1910.2. Cambridge Street.
Sec. 114-1911. Johnson Court.
Sec. 114-1912. Lay Street.
Sec. 114-1912.1. Oxford Street.
Sec. 114-1913. Pennsylvania Avenue.
Secs. 114-1914—114-1940. Reserved.

Subdivision V. Southbound

Sec. 114-1941. Designated.
Sec. 114-1942. Third Street.
Sec. 114-1943. Southwest Third Street.
Sec. 114-1944. Reserved.
Sec. 114-1945. East Sixth Street.
Sec. 114-1946. Seventh Street.
Sec. 114-1946.5. Southwest Seventh Street.
Sec. 114-1947. Ninth Street.
Sec. 114-1948. Reserved.
Sec. 114-1949. East Fourteenth Street.

Sec. 114-1949.01. Southwest Fifteenth Street.
Sec. 114-1950. Reserved.
Sec. 114-1951. Nineteenth Street.
Sec. 114-1952. Southeast Twenty-fourth Court.
Sec. 114-1953. East Twenty-fifth Street.
Sec. 114-1954. Thirty-eighth Street.
Sec. 114-1954.1. East Thirty-ninth Court.
Sec. 114-1955. Fifty-sixth Street.
Sec. 114-1956. Ascension Street.
Sec. 114-1957. Good Park Drive.
Sec. 114-1958. Martin Luther King Jr Parkway.
Sec. 114-1959. Merklin Way.
Secs. 114-1960—114-1985. Reserved.

Division 6. Through Streets

Sec. 114-1986. Designated.
Sec. 114-1987. Reserved.
Sec. 114-1988. First Street.
Sec. 114-1989. Southeast First Street.
Sec. 114-1990. Southwest First Street.
Sec. 114-1991. Second Avenue.
Sec. 114-1992. Southeast Second Street.
Sec. 114-1993. Southwest Second Street.
Sec. 114-1994. Third Street.
Sec. 114-1995. Southwest Third Street.
Sec. 114-1996. Southeast Third Street.
Sec. 114-1997. Fourth Street.
Sec. 114-1998. Southeast Fourth Street.
Sec. 114-1999. Southwest Fourth Street.
Sec. 114-2000. Fifth Avenue.
Sec. 114-2001. Southeast Fifth Street.
Sec. 114-2002. Southwest Fifth Street.
Sec. 114-2003. Sixth Avenue.
Sec. 114-2004. East Sixth Street.
Sec. 114-2005. Southeast Sixth Street.
Sec. 114-2006. Seventh Street.
Sec. 114-2007. East Seventh Street.
Sec. 114-2007.5. Reserved.
Sec. 114-2008. Southwest Seventh Street.
Sec. 114-2009. Eighth Place.
Sec. 114-2010. Eighth Street.
Sec. 114-2011. East Eighth Street.
Sec. 114-2012. Southeast Eighth Street.
Sec. 114-2013. Southwest Eighth Street.
Sec. 114-2014. Ninth Street.
Sec. 114-2015. East Ninth Street.
Sec. 114-2015.5. Southeast Ninth Street.
Sec. 114-2016. Southwest Ninth Street.
Sec. 114-2017. Tenth Street.
Sec. 114-2018. East Tenth Street.
Sec. 114-2018.5. Southeast Tenth Street.
Sec. 114-2019. Southwest Tenth Street.
Sec. 114-2020. Eleventh Street.
Sec. 114-2020.5. Southeast Eleventh Street.
Sec. 114-2021. Southwest Eleventh Street.
Sec. 114-2022. Twelfth Street.
Sec. 114-2023. East Twelfth Street.
Sec. 114-2023.5. Southeast Twelfth Street.

Sec. 114-2024. Southwest Twelfth Street.
Sec. 114-2024.5. Southeast Twenty-fifth Court.
Sec. 114-2025. Thirteenth Street.

Sec. 114-2026. East Thirteenth Street.
Sec. 114-2027. Southwest Thirteenth Street.
Sec. 114-2028. Fourteenth Place.
Sec. 114-2029. Fourteenth Street.
Sec. 114-2030. East Fourteenth Street.
Sec. 114-2031. Southeast Fourteenth Street.
Sec. 114-2032. Southwest Fourteenth Street.
Sec. 114-2033. Fifteenth Street.
Sec. 114-2034. East Fifteenth Street.
Sec. 114-2034.4. Southeast Fifteenth Street.
Sec. 114-2034.5. Southwest Fifteenth Street.
Sec. 114-2035. Sixteenth Street.
Sec. 114-2036. East Sixteenth Street.
Sec. 114-2037. Southwest Sixteenth Street.
Sec. 114-2038. Seventeenth Street.
Sec. 114-2039. East Seventeenth Court.
Sec. 114-2040. East Seventeenth Street.
Sec. 114-2041. Southeast Seventeenth Street.
Sec. 114-2042. Eighteenth Street.
Sec. 114-2043. East Eighteenth Street.
Sec. 114-2044. Southeast Eighteenth Street.
Sec. 114-2045. Southwest Eighteenth Street.
Sec. 114-2046. Southeast Eighteenth Court.
Sec. 114-2047. Nineteenth Street.
Sec. 114-2048. East Nineteenth Street.
Sec. 114-2049. East Twentieth Court.
Sec. 114-2050. East Twentieth Street.
Sec. 114-2051. East Twenty-first Street.
Sec. 114-2052. East Twenty-second Street.
Sec. 114-2053. Twenty-second Street.
Sec. 114-2054. East Twenty-first Street.
Sec. 114-2055. Twenty-first Street.
Sec. 114-2056. Southeast Twenty-second Street.
Sec. 114-2056.05. Reserved.
Sec. 114-2057. Twenty-third Street.
Sec. 114-2058. East Twenty-third Street.
Sec. 114-2059. Southeast Twenty-third Street.
Sec. 114-2060. East Twenty-fourth Street.
Sec. 114-2061. Southwest Twenty-third Street.
Sec. 114-2061.5. Northeast Twenty-third Avenue.
Sec. 114-2062. Twenty-fourth Street.
Sec. 114-2063. Southwest Twenty-fourth Street.
Sec. 114-2063.5. Southeast Twenty-fourth Street.
Sec. 114-2064. Twenty-fifth Street.
Sec. 114-2065. Southeast Twenty-fifth Court.
Sec. 114-2066. East Twenty-fifth Street.
Sec. 114-2066.5. Southeast Twenty-fifth Street.
Sec. 114-2067. Reserved.
Sec. 114-2068. Southwest Twenty-sixth Street.
Sec. 114-2069. East Twenty-sixth Street.
Sec. 114-2070. Twenty-seventh Street.
Sec. 114-2071. East Twenty-seventh Street.
Sec. 114-2072. East Twenty-seventh Court.
Sec. 114-2073. Southeast Twenty-seventh Street.
Sec. 114-2073.01. Northeast Twenty-seventh Avenue.
Sec. 114-2074. Twenty-eighth Street.
Sec. 114-2075. East Twenty-eighth Street.
Sec. 114-2076. Southeast Twenty-eighth Street.
Sec. 114-2077. Southwest Twenty-eighth Street.
Sec. 114-2078. Twenty-ninth Street.

Sec. 114-2079. East Twenty-ninth Street.
Sec. 114-2079.5. Southeast Twenty-ninth Court.
Sec. 114-2080. Thirtieth Street.
Sec. 114-2081. East Thirtieth Street.
Sec. 114-2082. Southeast Thirtieth Street.
Sec. 114-2083. Southwest Thirtieth Street.
Sec. 114-2084. Thirty-first Street.
Sec. 114-2084.5. Southeast Thirty-first Street.
Sec. 114-2085. Southwest Thirty-first Street.
Sec. 114-2085.1. Thirty-second Street.
Sec. 114-2086. East Thirty-second Street.
Sec. 114-2087. Thirty-third Street.
Sec. 114-2088. East Thirty-third Street.
Sec. 114-2088.05. Southeast Thirty-third Street.
Sec. 114-2089. East Thirty-third Court.
Sec. 114-2090. Thirty-fourth Street.
Sec. 114-2091. East Thirty-fourth Street.
Sec. 114-2092. Southeast Thirty-fourth Street.
Sec. 114-2093. Southwest Thirty-fourth Street.
Sec. 114-2094. Southwest Thirty-fourth Street.
Sec. 114-2095. Thirty-fifth Street.
Sec. 114-2095.5. Southeast Thirty-fifth Street.
Sec. 114-2095.6. Southeast Thirty-fifth Court.
Sec. 114-2096. Thirty-sixth Street.
Sec. 114-2097. Southeast Thirty-sixth Street.
Sec. 114-2098. East Thirty-sixth Court.
Sec. 114-2099. Thirty-seventh Street.
Sec. 114-2100. East Thirty-seventh Street.
Sec. 114-2101. East Thirty-seventh Court.
Sec. 114-2102. Southwest Thirty-seventh Street.
Sec. 114-2103. Thirty-eighth Place.
Sec. 114-2104. Thirty-eighth Street.
Sec. 114-2105. East Thirty-eighth Street.
Sec. 114-2106. Thirty-ninth Street.
Sec. 114-2107. Fortieth Street.
Sec. 114-2108. East Fortieth Street.
Sec. 114-2109. East Fortieth Court.
Sec. 114-2110. Fortieth Place.
Sec. 114-2111. Forty-first Street.
Sec. 114-2112. Forty-second Street.
Sec. 114-2113. Southwest Forty-second Street.
Sec. 114-2114. East Forty-second Street.
Sec. 114-2115. East Forty-third Street.
Sec. 114-2116. East Forty-third Court.
Sec. 114-2117. Forty-fourth Street.
Sec. 114-2118. Forty-fifth Street.
Sec. 114-2118.01. Southeast Forty-fifth Street.
Sec. 114-2119. Forty-sixth Street.
Sec. 114-2119.01. East Forty-sixth Street.
Sec. 114-2119.5. Reserved.
Sec. 114-2120. Forty-seventh Street.
Sec. 114-2121. Forty-eighth Street.
Sec. 114-2122. Forty-eighth Place.
Sec. 114-2123. Fiftieth Street.
Sec. 114-2123.02. East Fiftieth Street.
Sec. 114-2123.1. Fifty-first Street.
Sec. 114-2124. Fifty-second Street.
Sec. 114-2125. Fifty-fifth Street.
Sec. 114-2126. Fifty-sixth Street.
Sec. 114-2126.01. East Fifty-sixth Street.

Sec. 114-2127. Southwest Fifty-sixth Street.
Sec. 114-2128. Fifty-ninth Street.
Sec. 114-2129. Sixtieth Street.
Sec. 114-2130. Sixty-first Street.
Sec. 114-2131. Sixty-second Street.
Sec. 114-2132. Sixty-third Street.
Sec. 114-2133. Southwest Sixty-third Street.
Sec. 114-2134. Adams Avenue.
Sec. 114-2135. Amherst Street.
Sec. 114-2135.5. Amick Avenue.
Sec. 114-2136. Amos Avenue.
Sec. 114-2136.5. Ankeny Avenue.
Sec. 114-2137. Ardmore Road.
Sec. 114-2138. Army Post Road.
Sec. 114-2139. East Army Post Road.
Sec. 114-2140. Arthur Avenue.
Sec. 114-2141. Ascension Street.
Sec. 114-2142. Aurora Avenue.
Sec. 114-2143. East Aurora Avenue.
Sec. 114-2144. Avenue Frederick M. Hubbell.
Sec. 114-2145. Beaver Avenue.
Sec. 114-2146. Beavercrest Drive.
Sec. 114-2147. Bel-Aire Road.
Sec. 114-2148. Bell Avenue.
Sec. 114-2149. East Bell Avenue.
Sec. 114-2149.02. Bloomfield Road.
Sec. 114-2149.05. Border Street.
Sec. 114-2150. Boston Avenue.
Sec. 114-2151. Bowdoin Street.
Sec. 114-2152. Brinkwood Road.
Sec. 114-2152.01. East Broadway Avenue.
Sec. 114-2152.03. Brook Ridge Court.
Sec. 114-2152.5. Brook Run Drive.
Sec. 114-2152.05. Southeast Brooks Drive.
Sec. 114-2153. Reserved.
Sec. 114-2154. Buchanan Street.
Sec. 114-2155. Bundy Street.
Sec. 114-2156. Burlington Terrace.
Sec. 114-2156.5. Burnham Avenue.
Sec. 114-2157. Cambridge Street.
Sec. 114-2158. Capitol Avenue.
Sec. 114-2159. Carpenter Avenue.
Sec. 114-2160. Casady Drive.
Sec. 114-2161. Caulder Avenue.
Sec. 114-2162. Center Street.
Sec. 114-2163. Chamberlain Avenue.
Sec. 114-2164. Chautauqua Parkway.
Sec. 114-2165. Cherry Street.
Sec. 114-2166. Chicago Avenue.
Sec. 114-2167. Clark Street.
Sec. 114-2168. Cleveland Avenue.
Sec. 114-2169. Reserved.
Sec. 114-2170. Clinton Avenue.
Sec. 114-2171. College Avenue.
Sec. 114-2172. Columbia Street.
Sec. 114-2173. Reserved.
Sec. 114-2173.01. Reserved.
Sec. 114-2174. Cornell Street.
Sec. 114-2175. Corning Avenue.
Sec. 114-2176. Cottage Grove Avenue.

Sec. 114-2177. County Line Road.
Sec. 114-2177.01. East County Line Road.
Sec. 114-2178. Court Avenue.
Sec. 114-2179. East Court Avenue.
Sec. 114-2180. Crestmoor Place.
Sec. 114-2181. Crocker Street.
Sec. 114-2182. Cummins Parkway.
Sec. 114-2183. Davis Avenue.
Sec. 114-2184. Day Street.
Sec. 114-2185. Dean Avenue.
Sec. 114-2186. Delaware Avenue.
Sec. 114-2187. Des Moines Street.
Sec. 114-2188. Reserved.
Sec. 114-2189. East Diehl Avenue.
Sec. 114-2190. Dixon Street.
Sec. 114-2191. Douglas Avenue.
Sec. 114-2192. East Douglas Avenue.
Sec. 114-2193. Dubuque Avenue.
Sec. 114-2194. East Dunham Avenue.
Sec. 114-2195. Easter Lake Drive.
Sec. 114-2196. Easton Boulevard.
Sec. 114-2196.05. Echo Valley Drive.
Sec. 114-2197. Edison Avenue.
Sec. 114-2198. Elm Street.
Sec. 114-2199. Elder Lane.
Sec. 114-2200. Elizabeth Avenue.
Sec. 114-2201. Euclid Avenue.
Sec. 114-2202. East Euclid Avenue.
Sec. 114-2203. Evans Street.
Sec. 114-2204. Evergreen Avenue.
Sec. 114-2205. Filmore Street.
Sec. 114-2206. Fleming Avenue.
Sec. 114-2207. Fleur Drive.
Sec. 114-2208. Forest Avenue.
Sec. 114-2209. Franklin Avenue.
Sec. 114-2210. Fremont Street.
Sec. 114-2211. Garden Avenue.
Sec. 114-2212. Garfield Avenue.
Sec. 114-2213. Reserved.
Sec. 114-2213.01. George Flagg Parkway.
Sec. 114-2214. East Glenwood Drive.
Sec. 114-2215. Glover Avenue.
Sec. 114-2216. Grand Avenue.
Sec. 114-2217. East Grand Avenue.
Sec. 114-2218. Grandview Avenue.
Sec. 114-2219. Granger Avenue.
Sec. 114-2220. Gray Street.
Sec. 114-2220.5. Gray's Parkway.
Sec. 114-2221. Greenwood Drive.
Sec. 114-2222. Guthrie Avenue.
Sec. 114-2223. Hackley Avenue.
Sec. 114-2224. Hart Avenue.
Sec. 114-2225. Harrison Avenue.
Sec. 114-2226. Hartford Avenue.
Sec. 114-2227. Harwood Drive.
Sec. 114-2228. Heliotrope Drive.
Sec. 114-2229. Henderson Avenue.
Sec. 114-2230. Hickman Road.
Sec. 114-2231. High Street.
Sec. 114-2232. Highview Drive.

Sec. 114-2232.5. Hillside Avenue.
Sec. 114-2233. Holcomb Avenue.
Sec. 114-2233.05. Hubbell Avenue.
Sec. 114-2234. Hull Avenue.
Sec. 114-2235. Indiana Avenue.
Sec. 114-2236. Reserved.
Sec. 114-2237. Indianola Avenue.
Sec. 114-2238. Indianapolis Avenue.
Sec. 114-2239. Ingersoll Avenue.
Sec. 114-2240. Interstate 235 (Des Moines Freeway).
Sec. 114-2241. Iola Avenue.
Sec. 114-2242. Iowa Highway 28.
Sec. 114-2243. Jackson Avenue.
Sec. 114-2244. East Jackson Avenue.
Sec. 114-2245. Jefferson Avenue.
Sec. 114-2246. East Jefferson Avenue.
Sec. 114-2247. John Patterson Road.
Sec. 114-2248. Johnson Court.
Sec. 114-2249. Reserved.
Sec. 114-2250. Kasson Street.
Sec. 114-2251. East Kenyon Avenue.
Sec. 114-2252. Keosauqua Way.
Sec. 114-2253. King Avenue.
Sec. 114-2254. Kingman Avenue.
Sec. 114-2255. Kingman Boulevard.
Sec. 114-2256. Kinsey Avenue.
Sec. 114-2257. Kirkwood Avenue.
Sec. 114-2258. Lacona Avenue.
Sec. 114-2258.5. Lake Ridge Avenue.
Sec. 114-2259. Lally Street.
Sec. 114-2260. Laurel Street.
Sec. 114-2261. Lawnwoods Drive.
Sec. 114-2262. Lay Street.
Sec. 114-2263. Leach Avenue.
Sec. 114-2264. East Leach Avenue.
Sec. 114-2265. Leado Avenue.
Sec. 114-2266. Leland Avenue.
Sec. 114-2267. East Leland Avenue.
Sec. 114-2268. Lewis Avenue.
Sec. 114-2269. Lincoln Avenue.
Sec. 114-2270. Lincoln Place Drive.
Sec. 114-2270.5. Lindlavista Way.
Sec. 114-2270.7. East Livingston Avenue.
Sec. 114-2271. Locust Street.
Sec. 114-2272. East Locust Street.
Sec. 114-2273. Logan Avenue.
Sec. 114-2274. Lower Beaver Road.
Sec. 114-2275. Lyon Street.
Sec. 114-2276. Madison Avenue.
Sec. 114-2277. East Madison Avenue.
Sec. 114-2277.1. Mahaska Avenue.
Sec. 114-2278. Maple Street.
Sec. 114-2279. East Market Street.
Sec. 114-2280. Martin Luther King Jr Parkway.
Sec. 114-2280.01. East Martin Luther King Jr Parkway.
Sec. 114-2281. Mattern Avenue.
Sec. 114-2282. Maury Street.
Sec. 114-2283. McCormick Street.
Sec. 114-2284. McKinley Avenue.
Sec. 114-2285. East McKinley Avenue.

Sec. 114-2286. Southwest McKinley Avenue.
Sec. 114-2287. Mercy Drive.
Sec. 114-2287.05. Meredith Drive.
Sec. 114-2288. Merklin Way.
Sec. 114-2289. Merle Hay Road.
Sec. 114-2290. Methodist Drive.
Sec. 114-2290.05. Reserved.
Sec. 114-2291. Mulberry Street.
Sec. 114-2292. Murphy Street.
Sec. 114-2292.5. Muskogee Avenue.
Sec. 114-2293. Nash Drive.
Sec. 114-2294. New York Avenue.
Sec. 114-2295. Northwest Drive.
Sec. 114-2296. North Union Street.
Sec. 114-2296.05. East Oakhill Drive.
Sec. 114-2297. Oak Park Avenue.
Sec. 114-2298. Ohio Street.
Sec. 114-2299. Olive Street.
Sec. 114-2300. Ovid Avenue.
Sec. 114-2301. East Ovid Avenue.
Sec. 114-2302. Oxford Street.
Sec. 114-2303. Park Avenue.
Sec. 114-2304. East Park Avenue.
Sec. 114-2305. Park Street.
Sec. 114-2306. Payne Road.
Sec. 114-2307. Payton Avenue.
Sec. 114-2308. East Payton Avenue.
Sec. 114-2309. Pennsylvania Avenue.
Sec. 114-2310. Philip Street.
Sec. 114-2310.5. East Philip Street.
Sec. 114-2311. East Pine Avenue.
Sec. 114-2312. Pioneer Road.
Sec. 114-2313. Pleasant Street.
Sec. 114-2314. Polk Boulevard.
Sec. 114-2315. Porter Avenue.
Sec. 114-2316. East Porter Avenue.
Sec. 114-2317. Post Street.
Sec. 114-2318. Raccoon Street.
Sec. 114-2319. Redhead Road.
Sec. 114-2320. Reserved.
Sec. 114-2321. Rittenhouse Street.
Sec. 114-2321.05. Riverwoods Avenue.
Sec. 114-2321.055. River Ridge Road.
Sec. 114-2321.06. Robert D Ray Drive.
Sec. 114-2322. Rollins Avenue.
Sec. 114-2323. Rose Avenue.
Sec. 114-2324. East Rose Avenue.
Sec. 114-2325. Rutland Avenue.
Sec. 114-2326. Saylor Road.
Sec. 114-2327. Scandia Avenue.
Sec. 114-2328. School Street.
Sec. 114-2329. Scott Avenue.
Sec. 114-2330. Searle Street.
Sec. 114-2331. Seneca Avenue.
Sec. 114-2332. East Seneca Avenue.
Sec. 114-2332.05. Shaw Street.
Sec. 114-2333. Shawnee Avenue.
Sec. 114-2334. East Shawnee Avenue.

Sec. 114-2335. Sheridan Avenue.
Sec. 114-2336. East Sheridan Avenue.
Sec. 114-2337. Southlawn Drive.

Sec. 114-2337.01. Southridge Boulevard.
Sec. 114-2338. South Union Street.
Sec. 114-2338.5. Stanton Avenue.
Sec. 114-2339. State Avenue.
Sec. 114-2340. Stewart Street.
Sec. 114-2341. Thomas Beck Road.
Sec. 114-2342. Thompson Avenue.
Sec. 114-2343. Thornton Avenue.
Sec. 114-2344. East Thornton Avenue.
Sec. 114-2345. Tiffin Avenue.
Sec. 114-2346. Timber Lane.
Sec. 114-2347. Titus Avenue.
Sec. 114-2348. Tomlin Lane.
Sec. 114-2349. Tonka Avenue.
Sec. 114-2350. Tuttle Street.
Sec. 114-2351. Twana Drive.
Sec. 114-2352. University Avenue.
Sec. 114-2353. East University Avenue.
Sec. 114-2354. Urbandale Avenue.
Sec. 114-2355. Reserved.
Sec. 114-2356. Vale Street.
Sec. 114-2357. Reserved.
Sec. 114-2358. Vandalia Road.
Sec. 114-2358.01. Veterans Parkway.
Sec. 114-2358.5. Village Run Drive.
Sec. 114-2358.7. East Vine Street.
Sec. 114-2359. Virginia Avenue.
Sec. 114-2360. Wakonda Court.
Sec. 114-2361. Walker Street.
Sec. 114-2362. Wall Avenue.
Sec. 114-2363. East Wall Avenue.
Sec. 114-2364. Walnut Street.
Sec. 114-2365. East Walnut Street.
Sec. 114-2366. East Washington Avenue.
Sec. 114-2367. Washington Avenue.
Sec. 114-2367.05. Southwest Water Street.
Sec. 114-2368. Watrous Avenue.
Sec. 114-2369. East Watrous Avenue.
Sec. 114-2369.5. Watson Powell Jr Way.
Sec. 114-2370. West Street.
Sec. 114-2370.05. West Martin Luther King Jr Parkway.
Sec. 114-2371. Westover Boulevard.
Sec. 114-2372. Williams Street.
Sec. 114-2372.05. Willow Creek Avenue.
Sec. 114-2373. Windsor Drive.
Sec. 114-2374. Winona Avenue.
Sec. 114-2375. Wisconsin Avenue.
Sec. 114-2376. Wolcott Avenue.
Sec. 114-2377. Woodland Avenue.
Sec. 114-2378. Woodlawn Drive.
Sec. 114-2379. Wright Street.
Sec. 114-2380. York Street.
Secs. 114-2381—114-2405. Reserved.

Division 7. Controlled Access

Sec. 114-2406. Designated.
Sec. 114-2407. Second Avenue—Euclid Avenue north to corporate limits.
Sec. 114-2408. East Fourteenth Street.

Sec. 114-2409. East Thirtieth Street—Southeast Forty-third Street and Carlisle Road to East University Avenue.
Sec. 114-2410. Army Post Road.
Sec. 114-2411. Douglas Avenue—Merle Hay Road west to corporate limits.
Sec. 114-2412. Euclid Avenue—Avenue Frederick M. Hubbell.
Sec. 114-2413. East Euclid Avenue—East Fourteenth Street to 575 feet east of East Thirty-second Street.
Sec. 114-2414. Hickman Road—Douglas Avenue—Euclid Avenue.
Sec. 114-2415. Interstate Route No. 235 (Des Moines Freeway—MacVicar Freeway).
Sec. 114-2416. Merle Hay Road—Douglas Avenue.
Sec. 114-2417. Merle Hay Road—Douglas Avenue north to corporate limits.
Sec. 114-2418. East University Avenue—East Fourteenth Street to east corporate limits.
Sec. 114-2419. Fully controlled access facilities.
Sec. 114-2420. Partially controlled access facilities.
Secs. 114-2421—114-2445. Reserved.

Division 8. Truck Routes

Sec. 114-2446. Designated.
Sec. 114-2447. Reserved.
Sec. 114-2448. Southeast First Street.
Sec. 114-2449. Second Avenue.
Sec. 114-2450. Reserved.
Sec. 114-2451. Southwest Second Street.
Sec. 114-2452. Third Street.
Sec. 114-2453. Southwest Third Street.
Sec. 114-2454. Fifth Avenue.
Sec. 114-2455. Sixth Avenue.
Sec. 114-2455.01. Southwest Sixth Street.
Sec. 114-2456. East Sixth Street.
Sec. 114-2457. Southeast Sixth Street.
Sec. 114-2458. Seventh Street.
Sec. 114-2459. Southwest Seventh Street.
Sec. 114-2460. Eighth Street.
Sec. 114-2461. Southwest Eighth Street.
Sec. 114-2462. Ninth Street.
Sec. 114-2463. Southeast Ninth Street.
Sec. 114-2464. Southwest Ninth Street.
Sec. 114-2465. Twelfth Street.
Sec. 114-2465.01. Southwest Twelfth Street.
Sec. 114-2465.02. Southeast Twelfth Street.
Sec. 114-2466. Thirteenth Street.
Sec. 114-2467. East Fourteenth Street.
Sec. 114-2468. Southeast Fourteenth Street.
Sec. 114-2469. Fifteenth Street.
Sec. 114-2469.01. East Fifteenth Street.
Sec. 114-2470. Southeast Fifteenth Street.
Sec. 114-2471. Sixteenth Street.
Sec. 114-2472. Seventeenth Street.
Sec. 114-2473. East Seventeenth Street.
Sec. 114-2474. Eighteenth Street.
Sec. 114-2475. East Eighteenth Street.
Sec. 114-2476. Southeast Eighteenth Street.
Sec. 114-2477. Nineteenth Street.
Sec. 114-2478. East Twenty-first Street.
Sec. 114-2479. Reserved.
Sec. 114-2479.05. Southeast Twenty-third Street.
Sec. 114-2480. Reserved.

Sec. 114-2481. East Thirtieth Street.
Sec. 114-2482. Southeast Thirtieth Street.
Sec. 114-2483. Southwest Thirtieth Street.
Sec. 114-2484. Forty-second Street.
Sec. 114-2485. Reserved.
Sec. 114-2485.05. East Fifty-sixth Street.
Sec. 114-2486. Sixty-third Street.
Sec. 114-2487. Southwest Sixty-third Street.
Sec. 114-2488. Army Post Road.
Sec. 114-2489. East Army Post Road.
Sec. 114-2489.05. Ascension Street.
Sec. 114-2490. East Aurora Avenue.
Sec. 114-2491. Avenue Frederick M. Hubbell.
Sec. 114-2492. Reserved.
Sec. 114-2492.05. Bancroft Street.
Sec. 114-2493. Bell Avenue.
Sec. 114-2493.05. East Broadway Avenue.
Sec. 114-2494. Carpenter Avenue.
Sec. 114-2495. Center Street.
Sec. 114-2496. Cherry Street.
Sec. 114-2497. Reserved.
Sec. 114-2497.01. Reserved.
Sec. 114-2498. Cottage Grove Avenue.
Sec. 114-2499. Court Avenue.
Sec. 114-2500. East Court Avenue.
Sec. 114-2501. Reserved.
Sec. 114-2502. Dean Avenue.
Sec. 114-2503. Delaware Avenue.
Sec. 114-2504. Dixon Street.
Sec. 114-2505. Douglas Avenue.
Sec. 114-2506. Easton Boulevard.
Sec. 114-2507. Reserved.
Sec. 114-2508. Euclid Avenue.
Sec. 114-2509. East Euclid Avenue.
Sec. 114-2510. Fleur Drive.
Sec. 114-2510.01. George Flagg Parkway.
Sec. 114-2511. Grand Avenue.
Sec. 114-2512. East Grand Avenue.
Sec. 114-2513. Guthrie Avenue.
Sec. 114-2514. Hartford Avenue.
Sec. 114-2515. Hickman Road.
Sec. 114-2516. High Street.
Sec. 114-2516.05. Hubbell Avenue.
Sec. 114-2517. Hull Avenue.
Sec. 114-2518. Indianola Avenue.
Sec. 114-2518.01. Indianola Road.
Sec. 114-2519. Ingersoll Avenue.
Sec. 114-2520. Interstate 235 (Des Moines Freeway).
Sec. 114-2521. Iowa Highway 28.
Sec. 114-2521.01. Iowa Highway 5.
Sec. 114-2522. Jackson Avenue.
Sec. 114-2523. East Jackson Avenue.
Sec. 114-2523.05. Johnson Court.
Sec. 114-2524. Reserved.
Sec. 114-2525. Keosauqua Way.
Sec. 114-2526. Locust Street.
Sec. 114-2527. East Market Street.
Sec. 114-2528. Martin Luther King Jr Parkway.
Sec. 114-2528.01. East Martin Luther King Jr Parkway.
Sec. 114-2529. Maury Street.

Sec. 114-2530. Merle Hay Road.
Sec. 114-2531. Mulberry Street.
Sec. 114-2531.5. New York Avenue.
Sec. 114-2532. Park Avenue.
Sec. 114-2533. Park Street.
Sec. 114-2534. Pennsylvania Avenue.
Sec. 114-2535. Raccoon Street.
Sec. 114-2536. Redhead Road.
Sec. 114-2537. Searle Street.
Sec. 114-2538. Scott Avenue.
Sec. 114-2538.05. Southridge Boulevard.
Sec. 114-2539. Thomas Beck Road.
Sec. 114-2540. University Avenue.
Sec. 114-2541. East University Avenue.
Sec. 114-2542. Reserved.
Sec. 114-2543. Reserved.
Sec. 114-2544. Vandalia Road.
Sec. 114-2544.01. Veterans Parkway.
Sec. 114-2545. Walnut Street.
Sec. 114-2546. East Walnut Street.
Sec. 114-2547. East Washington Avenue.
Sec. 114-2548. Reserved.
Sec. 114-2548.05. West Martin Luther King Jr Parkway.
Sec. 114-2548.07. Willow Creek Avenue.
Sec. 114-2549. Watson Powell Jr Way.
Secs. 114-2550—114-2575. Reserved.

Division 9. Prohibited/Limited Parking

Sec. 114-2576. Designated.
Sec. 114-2577. Southeast First Court—Parmer Drive to south city limits.
Sec. 114-2578. First Street—Vine Street to Aurora Avenue.
Sec. 114-2579. East First Street—East Vine Street to East Court Avenue.
Sec. 114-2580. East First Street—East Court Avenue to East Walnut Street.
Sec. 114-2581. Reserved.
Sec. 114-2582. Reserved.
Sec. 114-2583. Reserved.
Sec. 114-2584. Southeast First Street—East Vine Street to south city limits.
Sec. 114-2585. Southwest First Street—Clay Avenue to Davis Avenue.
Sec. 114-2586. Second Avenue—Vine Street to Walnut Street.
Sec. 114-2587. Second Avenue—Walnut Street to Locust Street.
Sec. 114-2588. Second Avenue—Locust Street to Grand Avenue.
Sec. 114-2589. Second Avenue—Grand Avenue to University Avenue.
Sec. 114-2590. Second Avenue—University Avenue to Euclid Avenue.
Sec. 114-2591. Second Avenue—Euclid Avenue to Douglas Avenue.
Sec. 114-2592. Second Avenue—Douglas Avenue to Aurora Avenue.
Sec. 114-2593. Second Place—Forest Avenue to College Avenue.
Sec. 114-2594. Southeast Second Court—Dead end north of East Livingston Avenue to Southeast Burnham Street.
Sec. 114-2595. East Second Street—East Vine Street to East Court Avenue.
Sec. 114-2596. East Second Street—East Court Avenue to East Walnut Street.
Sec. 114-2597. East Second Street—East Walnut Street to East Locust Street.
Sec. 114-2597.1. East Second Street—East Locust Street to East Grand Avenue.
Sec. 114-2598. East Second Street—East Grand Avenue to Maple Street.
Sec. 114-2599. Southeast Second Street—East Vine Street to south city limits.
Sec. 114-2600. Southwest Second Street—Vine Street to Lally Street.
Sec. 114-2601. Southwest Third Place—Kenyon Avenue to Porter Avenue.
Sec. 114-2602. Southeast Third Court—East Philip Street to East Emma Avenue.
Sec. 114-2603. Third Street—Vine Street to Court Avenue.

Sec. 114-2604. Third Street—Court Avenue to Walnut Street.
Sec. 114-2605. Third Street—Walnut Street to Locust Street.
Sec. 114-2606. Third Street—Locust Street to Grand Avenue.
Sec. 114-2607. Third Street—Grand Avenue to Watson Powell Jr Way.
Sec. 114-2608. Third Street—Watson Powell Jr Way to School Street.
Sec. 114-2609. Third Street—School Street to University Avenue.
Sec. 114-2610. Third Street—University Avenue to Aurora Avenue.
Sec. 114-2611. East Third Street—East Court Avenue to Maple Street.
Sec. 114-2611.01. Reserved.
Sec. 114-2612. Southeast Third Street—East Vine Street to East Army Post Road.
Sec. 114-2613. Southeast Third Street—East Army Post Road to East Burnham Avenue.
Sec. 114-2614. Southwest Third Street—Vine Street to Army Post Road.
Sec. 114-2615. Fourth Street—Vine Street to Court Avenue.
Sec. 114-2616. Fourth Street—Court Avenue to Walnut Street.
Sec. 114-2617. Fourth Street—Locust Street to Grand Avenue.
Sec. 114-2618. Fourth Street—Grand Avenue to Watson Powell Jr Way.
Sec. 114-2619. Fourth Street—Watson Powell Jr Way to Park Street.
Sec. 114-2620. Reserved.
Sec. 114-2621. Fourth Street—Center Street to Aurora Avenue.
Sec. 114-2622. East Fourth Street—East Vine Street to Maple Street.
Sec. 114-2623. Southeast Fourth Court—East Park Avenue to dead end south of East Trowbridge Street.
Sec. 114-2624. Southeast Fourth Street—East Vine Street to East Army Post Road.
Sec. 114-2624.01. Southeast Fourth Street—Army Post Road to East County Line Road.
Sec. 114-2625. Southwest Fourth Street—Vine Street to Leland Avenue.
Sec. 114-2626. Southwest Fourth Place—Loomis Avenue to dead end south.
Sec. 114-2627. Fifth Avenue—Vine Street to Mulberry Street.
Sec. 114-2628. Reserved.
Sec. 114-2629. Fifth Avenue—Court Avenue to Walnut Street.
Sec. 114-2630. Fifth Avenue—Walnut Street to Locust Street.
Sec. 114-2631. Fifth Avenue—Locust Street to Grand Avenue.
Sec. 114-2632. Fifth Avenue—Grand Avenue to Watson Powell Jr Way.
Sec. 114-2633. Fifth Avenue—Watson Powell Jr Way to School Street.
Sec. 114-2634. Fifth Avenue—School Street to Aurora Avenue.
Sec. 114-2635. East Fifth Street—East Walnut Street to Lyon Street.
Sec. 114-2636. Southeast Fifth Street—East Vine Street to East County Line Road.
Sec. 114-2637. Southwest Fifth Place—Porter Avenue to dead end south.
Sec. 114-2638. Southwest Fifth Street—Vine Street to Army Post Road.
Sec. 114-2639. Sixth Avenue—Cherry Street to Mulberry Street.
Sec. 114-2640. Sixth Avenue—Mulberry Street to Walnut Street.
Sec. 114-2640.5. Reserved.
Sec. 114-2641. Sixth Avenue—Walnut Street to Locust Street.
Sec. 114-2642. Sixth Avenue—Locust Street to Grand Avenue.
Sec. 114-2643. Sixth Avenue—Grand Avenue to High Street.
Sec. 114-2644. Sixth Avenue—High Street to Watson Powell Jr Way.
Sec. 114-2645. Sixth Avenue—Watson Powell Jr Way to Crocker Street.
Sec. 114-2646. Sixth Avenue—Crocker Street to University Avenue.
Sec. 114-2647. Sixth Avenue—University Avenue to Forest Avenue.
Sec. 114-2648. Sixth Avenue—Forest Avenue to College Avenue.
Sec. 114-2649. Sixth Avenue—College Avenue to Hickman Road.
Sec. 114-2650. Sixth Avenue—Hickman Road to Euclid Avenue.
Sec. 114-2651. Sixth Avenue—Euclid Avenue to Aurora Avenue.
Sec. 114-2652. East Sixth Street—East Vine Street to East Walnut Street.
Sec. 114-2653. East Sixth Street—East Walnut Street to East Locust Street.
Sec. 114-2654. East Sixth Street—East Locust Street to East Grand Avenue.

Sec. 114-2655. East Sixth Street—East Grand Avenue to Des Moines Street.
Sec. 114-2656. East Sixth Street—Des Moines Street to East University Avenue.
Sec. 114-2657. Southeast Sixth Street—East Vine Street to East Porter Avenue.
Sec. 114-2658. Southwest Sixth Street—Cherry Street to Army Post Road.
Sec. 114-2659. Southeast Seventh Court—East Diehl Avenue to Hart Avenue.
Sec. 114-2660. Seventh Place—Aurora Avenue to dead end south.
Sec. 114-2661. Seventh Street—Vine Street to Mulberry Street.
Sec. 114-2662. Seventh Street—Mulberry Street to Walnut Street.
Sec. 114-2663. Seventh Street—Walnut Street to Locust Street.
Sec. 114-2664. Seventh Street—Locust Street to Grand Avenue.
Sec. 114-2665. Seventh Street—Grand Avenue to High Street.
Sec. 114-2666. Seventh Street—High Street to Watson Powell Jr Way.
Sec. 114-2667. Seventh Street—Watson Powell Jr Way to Park Street.
Sec. 114-2668. Seventh Street—Park Street to University Avenue.
Sec. 114-2669. Seventh Street—Indiana Avenue to Shawnee Avenue.
Sec. 114-2670. East Seventh Street—East Vine Street to East Aurora Avenue.
Sec. 114-2671. Southeast Seventh Street—East Vine Street to East Porter Avenue.
Sec. 114-2672. Southwest Seventh Street—Vine Street to Army Post Road.
Sec. 114-2673. Southeast Eighth Court—Hartford Avenue to East Broad Street.
Sec. 114-2674. Eighth Place—Park Street to dead end north of Shawnee Avenue.
Sec. 114-2675. Eighth Street—Vine Street to Mulberry Street.
Sec. 114-2676. Eighth Street—Mulberry Street to Walnut Street.
Sec. 114-2677. Eighth Street—Walnut Street to Locust Street.
Sec. 114-2678. Eighth Street—Locust Street to Grand Avenue.
Sec. 114-2679. Eighth Street—Grand Avenue to High Street.
Sec. 114-2680. Eighth Street—High Street to Pleasant Street.
Sec. 114-2681. Eighth Street—Pleasant Street to Park Street.
Sec. 114-2682. Eighth Street—Park Street to Aurora Avenue.
Sec. 114-2683. East Eighth Street—East Vine Street to East Aurora Avenue.
Sec. 114-2684. Southeast Eighth Street—East Vine Street to Hart Avenue.
Sec. 114-2685. Southwest Eighth Street—Vine Street to Payton Avenue.
Sec. 114-2686. Southwest Ninth Place—Southdale Drive to County Line Road.
Sec. 114-2687. Ninth Street—Vine Street to Mulberry Street.
Sec. 114-2688. Ninth Street—Mulberry Street to Walnut Street.
Sec. 114-2689. Ninth Street—Walnut Street to Locust Street.
Sec. 114-2690. Reserved.
Sec. 114-2691. Ninth Street—Grand Avenue to High Street.
Sec. 114-2692. Reserved.
Sec. 114-2693. Ninth Street—Pleasant Street to Chestnut Street.
Sec. 114-2694. Ninth Street—Chestnut Street to Keosauqua Way.
Sec. 114-2695. Ninth Street—Keosauqua Way to Aurora Avenue.
Sec. 114-2696. East Ninth Street—East Vine Street to East Aurora Avenue.
Sec. 114-2697. Southeast Ninth Street—East Market Street to East Kenyon Avenue.
Sec. 114-2698. Southwest Ninth Street—Vine Street to Park Avenue.
Sec. 114-2699. Southwest Ninth Street—Park Avenue to County Line Road.
Sec. 114-2700. Southwest Tenth Place—Southdale Drive to County Line Road.
Sec. 114-2701. Tenth Street—Vine Street to Cherry Street.
Sec. 114-2702. Tenth Street—Cherry Street to Mulberry Street.
Sec. 114-2703. Tenth Street—Mulberry Street to Walnut Street.
Sec. 114-2704. Tenth Street—Walnut Street to Locust Street.
Sec. 114-2705. Tenth Street—Locust Street to Grand Avenue.
Sec. 114-2706. Tenth Street—Grand Avenue to High Street.
Sec. 114-2707. Tenth Street—High Street to Woodland Avenue.
Sec. 114-2708. Tenth Street—Woodland Avenue to Aurora Avenue.
Sec. 114-2709. East Tenth Street—Des Moines Street to East Aurora Avenue.
Sec. 114-2710. Southeast Tenth Street—East Vine Street to East Philip Street.
Sec. 114-2711. Southwest Tenth Street—Vine Street to County Line Road.

Sec. 114-2712. Eleventh Place—Seneca Avenue to Aurora Avenue.
Sec. 114-2713. Eleventh Street—Vine Street to Mulberry Street.
Sec. 114-2714. Reserved.
Sec. 114-2715. Eleventh Street—Grand Avenue to High Street.
Sec. 114-2716. Reserved.
Sec. 114-2717. Eleventh Street—Keosauqua Way to Aurora Avenue.
Sec. 114-2718. East Eleventh Street—Des Moines Street to Arthur Avenue.
Sec. 114-2719. Southeast Eleventh Street—East Market Street to East Philip Street.
Sec. 114-2720. Southwest Eleventh Street—Vine Street to County Line Road.
Sec. 114-2721. Reserved.
Sec. 114-2722. Southwest Twelfth Place—Pleasant View Drive to Army Post Road.
Sec. 114-2722.01. Twelfth Street—West Martin Luther King Jr Parkway to Cherry Street.
Sec. 114-2723. Twelfth Street—Cherry Street to Mulberry Street.
Sec. 114-2724. Twelfth Street—Mulberry Street to Walnut Street.
Sec. 114-2725. Twelfth Street—Walnut Street to Locust Street.
Sec. 114-2726. Twelfth Street—Locust Street to Grand Avenue.
Sec. 114-2727. Twelfth Street—Grand Avenue to High Street.
Sec. 114-2728. Twelfth Street—High Street to Woodland Avenue.
Sec. 114-2729. Twelfth Street—Woodland Avenue to Keosauqua Way.
Sec. 114-2730. Twelfth Street—Keosauqua Way to Aurora Avenue.
Sec. 114-2731. East Twelfth Street—East Vine Street to East Euclid Avenue.
Sec. 114-2732. Southeast Twelfth Street—Raccoon Street to East Philip Street.
Sec. 114-2733. Southwest Twelfth Street—Tuttle Street to Havens Avenue.
Sec. 114-2734. Thirteenth Place—Carpenter Avenue to Forest Avenue.
Sec. 114-2735. Reserved.
Sec. 114-2736. Thirteenth Street—Mulberry Street to Walnut Street.
Sec. 114-2737. Thirteenth Street—Walnut Street to Locust Street.
Sec. 114-2738. Thirteenth Street—Locust Street to Grand Avenue.
Sec. 114-2739. Reserved.
Sec. 114-2740. Thirteenth Street—Park Street to Shawnee Avenue.
Sec. 114-2741. East Thirteenth Street—East Vine Street to East Douglas Avenue.
Sec. 114-2742. Southeast Thirteenth Street—East Vine Street to dead end south of East Thornton Avenue.
Sec. 114-2743. Southwest Thirteenth Place—Pleasant View Drive to Leland Avenue.
Sec. 114-2744. Southwest Thirteenth Street—Vine Street to Havens Avenue.
Sec. 114-2745. East Fourteenth Court—East Vine Street to East Grand Avenue.
Sec. 114-2746. Southeast Fourteenth Court—Scott Avenue to Hartford Avenue.
Sec. 114-2747. Fourteenth Place—Woodland Avenue to University Avenue.
Sec. 114-2748. Fourteenth Street—Falcon Drive to Grand Avenue.
Sec. 114-2749. Fourteenth Street—Grand Avenue to Linden Street.
Sec. 114-2750. Fourteenth Street—Linden Street to Ingersoll Avenue.
Sec. 114-2751. Reserved.
Sec. 114-2752. Fourteenth Street—Dead end south of Laurel Street to Aurora Avenue.
Sec. 114-2753. East Fourteenth Street—Southeast Fourteenth Street to East Aurora Avenue.
Sec. 114-2754. Southeast Fourteenth Street—East Fourteenth Street to East County Line Road.
Sec. 114-2755. Southwest Fourteenth Street—Market Street to Havens Avenue.
Sec. 114-2756. Southeast Fifteenth Court—East Vine Street to dead end south of East Watrous Avenue.
Sec. 114-2757. Fifteenth Place—Keosauqua Way to Carpenter Avenue.
Sec. 114-2757.01. Fifteenth Street—Mulberry Street to Sixteenth Street.
Sec. 114-2758. Reserved.
Sec. 114-2759. Fifteenth Street—Walnut Street to Ingersoll Avenue.

Sec. 114-2760. Fifteenth Street—Ingersoll Avenue to dead end north of Shawnee Avenue.
Sec. 114-2761. East Fifteenth Street—East Vine Street to East Ovid Avenue.
Sec. 114-2762. Southeast Fifteenth Street—East Vine Street to dead end south of East Watrous Avenue.
Sec. 114-2763. Southwest Fifteenth Street—Emma Avenue to Havens Avenue.
Sec. 114-2764. East Sixteenth Court—East Vine Street to Dean Avenue.
Sec. 114-2765. Southeast Sixteenth Court—Indianola Avenue to East Army Post Road.
Sec. 114-2766. Southwest Sixteenth Place—Southwest Sixteenth Street to Frazier Avenue.
Sec. 114-2767. Sixteenth Street—West Martin Luther King Jr Parkway to Ingersoll Avenue.
Sec. 114-2768. Sixteenth Street—High Street to Shawnee Avenue.
Sec. 114-2769. East Sixteenth Street—East Vine Street to East Aurora Avenue.
Sec. 114-2770. Southeast Sixteenth Street—East Leach Avenue to East Emma Avenue.
Sec. 114-2771. Southwest Sixteenth Street—West Martin Luther King Jr Parkway to Johnson Street.
Sec. 114-2772. Southeast Seventeenth Court—Indianola Avenue to East Emma Avenue.
Sec. 114-2773. East Seventeenth Court—Walker Street to Mattern Avenue.
Sec. 114-2774. Seventeenth Street—Locust Street to Ingersoll Avenue.
Sec. 114-2775. Seventeenth Street—Ingersoll Avenue to Douglas Avenue.
Sec. 114-2776. East Seventeenth Street—Dean Avenue to East Aurora Avenue.
Sec. 114-2777. Southeast Seventeenth Street—Pioneer Road to East Park Avenue.
Sec. 114-2778. Southeast Seventeenth Street—East Leach Avenue to East Emma Avenue.
Sec. 114-2779. Southwest Seventeenth Street—West Martin Luther King Jr Parkway to Havens Avenue.
Sec. 114-2780. Southeast Eighteenth Court—Dead end north of East Lacona Avenue to East Maish Avenue.
Sec. 114-2781. Eighteenth Street—Locust Street to Ingersoll Avenue.
Sec. 114-2782. Eighteenth Street—Woodland Avenue to Hickman Road.
Sec. 114-2783. East Eighteenth Street—Southeast Eighteenth Street north to Kinsey Avenue.
Sec. 114-2784. Southeast Eighteenth Street—East Vine Street to East Maish Avenue.
Sec. 114-2785. Southwest Eighteenth Street—Dead end north of Pleasant View Drive to Army Post Road.
Sec. 114-2786. East Nineteenth Court—Dean Avenue to East Walnut Street.
Sec. 114-2787. Nineteenth Place—Center Street to dead end north of Olive Avenue.
Sec. 114-2788. Nineteenth Street—Grand Avenue to Woodland Avenue.
Sec. 114-2789. Nineteenth Street—Woodland Avenue to University Avenue.
Sec. 114-2790. Nineteenth Street—University Avenue to Washington Avenue.
Sec. 114-2791. East Nineteenth Street—East Court Avenue to Guthrie Avenue.
Sec. 114-2792. Southeast Nineteenth Court—Park Avenue to Bloomfield Road.
Sec. 114-2793. Southeast Nineteenth Street—East Market Street to East Park Avenue.
Sec. 114-2794. Southeast Nineteenth Street—East Park Avenue to Southeast Nineteenth Court.
Sec. 114-2795. Southwest Nineteenth Street—McKinley Avenue to Army Post Road.
Sec. 114-2796. Southeast Twentieth Street—East Park Avenue to East Maish Avenue.
Sec. 114-2797. East Twentieth Court—East Grand Avenue to Easton Boulevard.
Sec. 114-2798. Twentieth Place—Meek Avenue to Mondamin Avenue.
Sec. 114-2799. Twentieth Street—Woodland Avenue to School Street.

Sec. 114-2800. Southeast Twentieth Street—East Caulder Avenue to Evergreen Avenue.
Sec. 114-2801. East Twenty-first Court—Ankeny Avenue to Avenue Frederick M. Hubbell.
Sec. 114-2802. Southeast Twenty-first Court—East Maish Avenue to the dead end north.
Sec. 114-2803. Twenty-first Street—Olive Avenue to Franklin Avenue.
Sec. 114-2804. East Twenty-first Street—East Walnut Street to Hull Avenue.
Sec. 114-2804.5. Southeast Twenty-first Street—Maury Street to dead end south of Maury Street.
Sec. 114-2805. Southeast Twenty-first Street—East Park Avenue to East Hughes Street.
Sec. 114-2806. Southeast Twenty-second Court—East Park Avenue to East Rose Avenue.
Sec. 114-2807. East Twenty-second Court—Ankeny Avenue to Hull Avenue.
Sec. 114-2808. Twenty-second Street—High Street to Lincoln Avenue.
Sec. 114-2809. East Twenty-second Street—Dean Avenue to Hull Avenue.
Sec. 114-2810. Southeast Twenty-second Street—Hartford Avenue to East Philip Avenue.
Sec. 114-2811. Southwest Twenty-second Street—Bell Avenue to County Line Road.
Sec. 114-2812. Twenty-third Place—Dead end south of Rollins Avenue to Olive Avenue.
Sec. 114-2813. Southeast Twenty-third Court—Scott Avenue to East Philip Street.
Sec. 114-2814. East Twenty-third Court—Maple Street to East University Avenue.
Sec. 114-2815. Twenty-third Street—Ingersoll Avenue to Holcomb Avenue.
Sec. 114-2816. East Twenty-third Street—Dean Avenue to East Aurora Avenue.
Sec. 114-2817. Southeast Twenty-third Street—East Martin Luther King Jr Parkway to East Southdale Drive.
Sec. 114-2818. Southwest Twenty-third Street—George Flagg Parkway to Emma Avenue.
Sec. 114-2819. East Twenty-fourth Court—Maple Street to north city limits.
Sec. 114-2820. Southeast Twenty-fourth Court—Dean Avenue to East Payton Avenue.
Sec. 114-2821. Twenty-fourth Drive—Twenty-fourth Street to Franklin Avenue.
Sec. 114-2822. Twenty-fourth Place—College Avenue to dead end north.
Sec. 114-2823. Twenty-fourth Street—Ingersoll Avenue to Bennett Avenue.
Sec. 114-2824. East Twenty-fourth Street—Dean Avenue to East Aurora Avenue.
Sec. 114-2825. Southeast Twenty-fourth Street—Shaw Street to East Payton Avenue.
Sec. 114-2826. Southwest Twenty-fourth Street—Park Avenue to dead end south of Wakonda View.
Sec. 114-2827. East Twenty-fifth Court—Maple Street to dead end north of East Ovid Avenue.
Sec. 114-2828. Southeast Twenty-fifth Court—East Market Street to C.B. & Q.
Sec. 114-2829. Twenty-fifth Street—Woodland Avenue to Payne Road.
Sec. 114-2830. East Twenty-fifth Street—Dean Avenue to East Aurora Avenue.
Sec. 114-2831. Southwest Twenty-fifth Street—Marion Street to Stanton Avenue.
Sec. 114-2832. Southeast Twenty-fifth Street—Shaw Street to East Payton Avenue.
Sec. 114-2833. Southeast Twenty-sixth Court—Scott Avenue to East Porter Avenue.
Sec. 114-2834. East Twenty-sixth Court—Maple Street to Chicago Avenue.
Sec. 114-2835. Twenty-sixth Place—Boston Avenue to Ashby Avenue.
Sec. 114-2836. Twenty-sixth Street—Woodland Avenue to Ashby Avenue.
Sec. 114-2837. East Twenty-sixth Street—East Court Avenue to East Madison Avenue.
Sec. 114-2838. Southwest Twenty-sixth Street—Thornton Avenue to McKinley Avenue.

Sec. 114-2839. Southeast Twenty-sixth Street—Dead end north of East Market Street to East Leach Avenue.
Sec. 114-2840. Southwest Twenty-seventh Street—Miller Avenue to dead end south.
Sec. 114-2841. East Twenty-seventh Court—Maple Street to East Jefferson Avenue.
Sec. 114-2842. Twenty-seventh Place—Holcomb Avenue to Euclid Avenue.
Sec. 114-2843. Southeast Twenty-seventh Court—East Market Street to East Leach Avenue.
Sec. 114-2844. Twenty-seventh Street—Terrace Road to Aurora Avenue.
Sec. 114-2845. East Twenty-seventh Street—Dean Avenue to East Aurora Avenue.
Sec. 114-2846. Southeast Twenty-seventh Street—East Market Street to East Pine Avenue.
Sec. 114-2847. East Twenty-eighth Court—East Court Avenue to University Avenue.
Sec. 114-2848. Southeast Twenty-eighth Court—Scott Avenue to East Porter.
Sec. 114-2849. Southwest Twenty-eighth Place—Wolcott Avenue to Watrous Avenue.
Sec. 114-2850. Twenty-eighth Street—Dead end south of Terrace Drive to Euclid Avenue.
Sec. 114-2851. East Twenty-eighth Street—East Court Avenue to East Aurora Avenue.
Sec. 114-2852. Southeast Twenty-eighth Street—East Market Street to south city limits.
Sec. 114-2853. Southwest Twenty-eighth Street—George Flagg Parkway to dead end south of Summit Vista Drive.
Sec. 114-2854. Southwest Twenty-eighth Street—Army Post Road to Gannett Avenue.
Sec. 114-2855. East Twenty-ninth Court—Dead end south of Dean Avenue to Avenue Frederick M. Hubbell.
Sec. 114-2856. Southeast Twenty-ninth Court—East Market Street to East Payton Avenue.
Sec. 114-2857. Twenty-ninth Street—Forest Drive to north city limits.
Sec. 114-2858. East Twenty-ninth Street—East Court Avenue to East Aurora Avenue.
Sec. 114-2859. Southwest Twenty-ninth Street—Seniomsed Avenue to Emma Avenue.
Sec. 114-2860. Southeast Twenty-ninth Street—East Elm Street to East Porter Avenue.
Sec. 114-2861. East Thirtieth Court—Dean Avenue to East Walnut Street.
Sec. 114-2861.1. Southeast Thirtieth Court—East Diehl Avenue to Hart Avenue.
Sec. 114-2862. Thirtieth Street—Terrace Drive to dead end north of Aurora Avenue.
Sec. 114-2863. East Thirtieth Street—East Court Avenue to East Aurora Avenue.
Sec. 114-2864. Southeast Thirtieth Street—East Court Avenue to Brockway Drive.
Sec. 114-2865. Southwest Thirtieth Street—George Flagg Parkway to dead end south of Summit Vista Drive.
Sec. 114-2866. Reserved.
Sec. 114-2867. East Thirty-first Court—East Washington Avenue to Avenue Frederick M. Hubbell.
Sec. 114-2867.1. Southeast Thirty-first Court—East Titus Avenue to Easter Lake Drive.
Sec. 114-2868. Thirty-first Street—John Lynde Road to dead end north of Lincoln Avenue.
Sec. 114-2869. Southwest Thirty-first Street—Seniomsed Avenue to McKinley Avenue.
Sec. 114-2870. Southeast Thirty-first Street—Maury Street to East Payton Avenue.

Sec. 114-2871. East Thirty-first Street—Carr Street to East Douglas Avenue.
Sec. 114-2872. East Thirty-second Court—East Court Avenue to East Tiffin Avenue.
Sec. 114-2873. Southeast Thirty-second Court—East Court Avenue to Laurel Hill Road.
Sec. 114-2874. Thirty-second Place—John Lynde Road to Terrace Drive.
Sec. 114-2875. Thirty-second Street—Woodland Avenue to Hickman Road.
Sec. 114-2876. East Thirty-second Street—East Court Avenue to East Aurora Avenue.
Sec. 114-2876.1. Southeast Thirty-second Street—East Titus Avenue to East Wall Avenue.
Sec. 114-2877. Southwest Thirty-second Street—Wolcott Avenue to McKinley Avenue.
Sec. 114-2878. East Thirty-third Court—East Court Avenue to Dubuque Avenue.
Sec. 114-2879. Southeast Thirty-third Court—East Court Avenue to Laurel Hill Road.
Sec. 114-2880. Thirty-third Street—Woodland Avenue to Aurora Avenue.
Sec. 114-2881. East Thirty-third Street—East Court Avenue to East Douglas Avenue.
Sec. 114-2882. Southeast Thirty-third Street—East Court Avenue to East Payton Avenue.
Sec. 114-2883. Southwest Thirty-third Street—Park Avenue to cul-de-sac south of Gannett Avenue.
Sec. 114-2884. Thirty-fourth Place—Davisson Road to Adams Avenue.
Sec. 114-2884.05. Southwest Thirty-fourth Place—Rose Avenue to dead end north of Rose Avenue.
Sec. 114-2885. Thirty-fourth Street—John Lynde Road to Seneca Avenue.
Sec. 114-2886. East Thirty-fourth Street—East Court Avenue to East Aurora Avenue.
Sec. 114-2887. Southeast Thirty-fourth Street—East Court Avenue to Vandalia Road.
Sec. 114-2888. Southeast Thirty-fourth Street—East Watrous Avenue to East Payton Avenue.
Sec. 114-2888.3. Southeast Thirty-fourth Court—East Herold Avenue to dead end.
Sec. 114-2888.5. Southwest Thirty-fourth Street—Park Avenue to Gannett Avenue.
Sec. 114-2889. East Thirty-fifth Court—East Court Avenue to Garfield Avenue.
Sec. 114-2890. Thirty-fifth Street—John Lynde Road to Adams Avenue.
Sec. 114-2891. East Thirty-fifth Street—East Court Avenue to Avenue Frederick M. Hubbell.
Sec. 114-2892. Southwest Thirty-fifth Street—Park Avenue to Wolcott Avenue.
Sec. 114-2893. Southeast Thirty-fifth Street—East Court Avenue to East Payton Avenue.
Sec. 114-2893.05. Southeast Thirty-fifth Court—Evergreen Avenue to dead end.
Sec. 114-2893.7. Southeast Thirty-fifth Circle—East Hart Avenue to the dead end north of East Hart Avenue.
Sec. 114-2894. Thirty-sixth Place—Madison Avenue to Crestwood Road.
Sec. 114-2895. East Thirty-sixth Court—East University Avenue to East Euclid Avenue.
Sec. 114-2896. Thirty-sixth Street—Grand Avenue to Madison Avenue.
Sec. 114-2897. East Thirty-sixth Street—East Court Avenue to Hull Avenue.
Sec. 114-2898. Southeast Thirty-sixth Street—East Court Avenue to Vandalia Road.
Sec. 114-2899. East Thirty-seventh Court—East University Avenue to Hull Avenue.
Sec. 114-2900. Thirty-seventh Street—John Lynde Road to Douglas Avenue.
Sec. 114-2901. East Thirty-seventh Street—East University Avenue to Avenue Frederick M. Hubbell.

Sec. 114-2902. Southeast Thirty-seventh Street—Granger Avenue to Vandalia Road.
Sec. 114-2903. Southwest Thirty-seventh Street—Southern Hills Drive to Gannett Avenue.
Sec. 114-2904. East Thirty-eighth Court—Mattern Avenue to East Douglas Avenue.
Sec. 114-2905. Thirty-eighth Place—Marsh Drive to Hillcrest Drive.
Sec. 114-2905.01. Southwest Thirty-eighth Place—Park Avenue to dead end north.
Sec. 114-2906. Thirty-eighth Street—Ingersoll Avenue to Lindlavista Way.
Sec. 114-2907. East Thirty-eighth Street—East University Avenue to north city limits.
Sec. 114-2908. Southeast Thirty-eighth Street—Granger Avenue to Vandalia Road.
Sec. 114-2909. East Thirty-ninth Court—Mattern Avenue to East Fortieth Street.
Sec. 114-2910. Thirty-ninth Place—Madison Avenue to Aurora Avenue.
Sec. 114-2911. Thirty-ninth Street—Grand Avenue to Crestmoor Place.
Sec. 114-2912. East Thirty-ninth Street—Four Mile Drive to East Douglas Avenue.
Sec. 114-2913. Southwest Thirty-ninth Street—Welker Avenue to cul-de-sac south of Park Avenue.
Sec. 114-2914. Fortieth Place—Center Street to Amick Avenue.
Sec. 114-2915. Fortieth Street—Grand Avenue to Crestmoor Drive.
Sec. 114-2916. East Fortieth Street—Timber Lane to East Madison Avenue.
Sec. 114-2917. Southwest Fortieth Street—Southwest Thirty-ninth Street to Park Avenue.
Sec. 114-2918. East Fortieth Court—Timber Lane to East Ovid Avenue.
Sec. 114-2919. East Forty-first Court—Four Mile Drive to dead end north of East Euclid Avenue.
Sec. 114-2920. Forty-first Place—Forest Avenue to Urbandale Avenue.
Sec. 114-2921. Forty-first Street—Grand Avenue to north city limits.
Sec. 114-2922. East Forty-first Street—Maple Street to dead end north of East Madison Avenue.
Sec. 114-2923. Forty-second Street—John Lynde Road to dead end north of Aurora Avenue.
Sec. 114-2924. East Forty-second Street to East Aurora Avenue.
Sec. 114-2925. Southwest Forty-second Street—John Lynde Road to Watrous Avenue.
Sec. 114-2926. Forty-third Street—Greenwood Drive to dead end north of Aurora Avenue.
Sec. 114-2927. Southwest Forty-third Street—Parklawn Drive to dead end north.
Sec. 114-2928. Southeast Forty-third Street—Vandalia Road to Carlisle Road.
Sec. 114-2928.05. East Forty-third Court—Hull Avenue to East Douglas Avenue.
Sec. 114-2928.06. East Forty-third Court—Grover Woods Lane to the north city limits.
Sec. 114-2928.3. East Forty-third Street—Clinton Avenue to dead end south.
Sec. 114-2929. Forty-fourth Place—Dead end south of Kingman Boulevard to Skyline Drive.
Sec. 114-2930. Southwest Forty-fourth Place—Dead end north of Caulder Avenue to Parklawn Drive.
Sec. 114-2931. Forty-fourth Street—Dead end south of Grand Avenue to Ovid Avenue.
Sec. 114-2931.5. East Forty-fourth Street—East Aurora Avenue to Honey Bee Ridge.
Sec. 114-2932. Southwest Forty-fourth Street—Parklawn Drive to dead end south.
Sec. 114-2933. Forty-fifth Place—Harwood Drive to Boulevard Place.
Sec. 114-2934. Forty-fifth Street—Greenwood Drive to Aurora Avenue.

Sec. 114-2934.5. East Forty-Fifth Street—East Aurora Avenue to East Twana Drive.
Sec. 114-2935. Forty-sixth Street—Grand Avenue to dead end north of Brinkwood Road.
Sec. 114-2936. Forty-seventh Street—University Avenue to Aurora Avenue.
Sec. 114-2936.25. East Forty-seventh Street—South city limits to north city limits.
Sec. 114-2936.5. East Forty-eighth Street—Wisconsin Avenue to north city limits.
Sec. 114-2937. Forty-eighth Place—Hickman Road to Madison Avenue.
Sec. 114-2938. Forty-eighth Street—Dead end south of Ingersoll Avenue to Crestmoor Drive.
Sec. 114-2938.5. East Forty-ninth Court—Dead end south of East Sheridan Avenue to north city limits.
Sec. 114-2939. Forty-ninth Place—Hickman Road to Urbandale Avenue.
Sec. 114-2940. Forty-ninth Street—Waterbury Road to Madison Avenue.
Sec. 114-2940.1. Forty-ninth Street—Madison Avenue to Forty-Ninth Place.
Sec. 114-2940.5. East Forty-ninth Street—Richmond Avenue to Park Side Drive.
Sec. 114-2940.75. East Fiftieth Court—Northeast Twenty-third Avenue to Grandview Avenue.
Sec. 114-2941. Fiftieth Place—Allison Avenue to Lincoln Avenue.
Sec. 114-2942. Fiftieth Street—Woodland Avenue to Meredith Drive.
Sec. 114-2942.5. East Fiftieth Street—Northeast Twenty-third Avenue to East Broadway Avenue.
Sec. 114-2943. Fifty-first Street—Welker Avenue to Aurora Avenue.
Sec. 114-2944. Fifty-second Street—Robertson Drive to Aurora Avenue.
Sec. 114-2944.01. East Fifty-second Street—Brook View Drive to Walnut Ridge Drive.
Sec. 114-2945. Southwest Fifty-second Street—Welker Avenue to dead end north.
Sec. 114-2946. Fifty-third Street—Dead end south of Robertson Drive to Aurora Avenue.
Sec. 114-2946.01. East Fifty-third Court—Brook View Avenue to Village Run Avenue.
Sec. 114-2947. Fifty-fourth Street—Ingersoll Avenue to Twana Drive.
Sec. 114-2947.05. East Fifty-fourth Court—Dead end south of Brook View Avenue to East Douglas Avenue.
Sec. 114-2948. Fifty-fifth Street—Harwood Drive to Aurora Avenue.
Sec. 114-2949. Fifty-sixth Street—North Valley Drive to Aurora Avenue.
Sec. 114-2950. Southwest Fifty-sixth Street—Park Avenue to south city limits.
Sec. 114-2951. Fifty-seventh Place—University Avenue to Northwest Drive.
Sec. 114-2952. Fifty-seventh Street—Waterbury Road to Aurora Avenue.
Sec. 114-2953. Fifty-eighth Place—Dead end south of Grand Avenue to Grand Avenue.
Sec. 114-2954. Fifty-eighth Street—Terrace Drive to University Avenue.
Sec. 114-2955. Southwest Fifty-eighth Drive—Fifty-sixth Street to Fifty-eighth Street.
Sec. 114-2955.5. Southwest Fifty-eighth Street—Watrous Avenue to Rose Avenue.
Sec. 114-2956. Fifty-ninth Street—Dead end south of Grand Avenue to Douglas Avenue.
Sec. 114-2957. Southwest Fifty-ninth Street—Muskogee Avenue to dead end south of Tonka Avenue.
Sec. 114-2958. Sixtieth Street—Grand Avenue to New York Avenue.
Sec. 114-2959. Southwest Sixtieth Street—Gregory Lane to dead end south of Southwest Leland Avenue.
Sec. 114-2960. Sixty-first Street—Grand Avenue to Douglas Avenue.
Sec. 114-2960.5. Southwest Sixty-first Street—Gordon Avenue to Southwest Mckinley Drive.
Sec. 114-2961. Sixty-second Place—Woodland Road to Douglas Avenue.

Sec. 114-2962. Sixty-second Street—Grand Avenue to Douglas Avenue.
Sec. 114-2962.01. Southwest Sixty-second Street—County Line Road to Gordon Avenue.
Sec. 114-2963. Sixty-third Street—Vine Street to dead end north of Dawson Drive.
Sec. 114-2964. Southwest Sixty-second Street—Muskogee Avenue to Railroad Avenue.
Sec. 114-2965. Southwest Sixty-third Street—Vine Street to south city limits.
Sec. 114-2966. Sixty-seventh Street—Holcomb Avenue to Urbandale Avenue.
Sec. 114-2967. Sixty-fourth Street—Dead end south of Robin Drive to dead end north of Robin Drive.
Sec. 114-2968. Sixty-fourth Street—Center Street to dead end south.
Sec. 114-2969. Adams Avenue—Martin Luther King Jr Parkway to Thirtieth Street.
Sec. 114-2970. Adams Avenue—Fortieth Place to Beaver Avenue.
Sec. 114-2971. Adams Avenue—Beaver Avenue to Forty-fourth Street.
Sec. 114-2972. Algonquin Road—Kingman Boulevard to dead end west.
Sec. 114-2973. Allen Place—Terrace Road to Forest Drive.
Sec. 114-2974. Allen Street—Southeast Second Street to Southeast Twelfth Street.
Sec. 114-2975. Allison Avenue—Sixth Avenue to Merle Hay Road.
Sec. 114-2976. Alpha Avenue—East Eighth Street to Tichenor Street.
Sec. 114-2977. Amherst Street—Guthrie Avenue to East Aurora Avenue.
Sec. 114-2978. Amick Avenue—Twenty-seventh Street to Forty-seventh Street.
Sec. 114-2979. Anita Avenue—Southeast Eighth Court to dead end east.
Sec. 114-2980. Amos Avenue—Southwest Ninth Street to Southwest Seventeenth Street.
Sec. 114-2981. Ankeny Avenue—East Twentieth Street to East Twenty-second Street.
Sec. 114-2982. Arapahoe Drive—Southwest Thirty-fifth Street to Thirty-seventh Street.
Sec. 114-2983. Ardmore Road—Thirty-sixth Place to Aurora Avenue.
Sec. 114-2984. Arlington Avenue—Orchard Avenue to Sixth Avenue.
Sec. 114-2985. Army Post Road—South Union Street to Southwest Ninth Street.
Sec. 114-2986. Army Post Road—Southwest Ninth Street to Southwest Fourteenth Street.
Sec. 114-2987. Army Post Road—Southwest Fourteenth Street to Fleur Drive.
Sec. 114-2988. Army Post Road—Fleur Drive to west city limits.
Sec. 114-2989. East Army Post Road—South Union Street to Southeast Fifth Street.
Sec. 114-2990. East Army Post Road—Southeast Fifth Street to Southeast Fourteenth Street.
Sec. 114-2991. East Army Post Road—Southeast Fourteenth Street to east city limits.
Sec. 114-2992. Arnolds Road—Twenty-sixth Street to Thirtieth Street.
Sec. 114-2993. Arthur Avenue—First Street to east city limits.
Sec. 114-2994. Ascension Street—Fifth Avenue to Fourteenth Place.
Sec. 114-2995. Ashby Avenue—Dead end east of Twenty-sixth Street to Forty-fourth Street.
Sec. 114-2996. Astor Street—East Vine Street to Dean Avenue.
Sec. 114-2996.05. Southeast Astor Street—East Vine Street to the dead end south of East Vine Street.
Sec. 114-2997. Atkins Street—Sixteenth Street to Twenty-first Street.
Sec. 114-2998. Aurora Avenue—First Street to Lower Beaver Road.
Sec. 114-2999. Aurora Avenue—Lower Beaver Road to west city limits.
Sec. 114-3000. East Aurora Avenue—First Street to Northeast Forty-eighth Street.
Sec. 114-3001. Avalon Road—Chautauqua Parkway to Sixteenth Street.
Sec. 114-3002. Avenue Frederick M. Hubbell—East Grand Avenue to northeast city limits.

Sec. 114-3003. Bancroft Street—Southwest Ninth Street to Hillside Avenue.
Sec. 114-3003.1. Bay View Court—East Marion Street to dead end.
Sec. 114-3004. Beaver Avenue—Forest Avenue to Franklin Avenue.
Sec. 114-3005. Beaver Avenue—Franklin Avenue to Urbandale Avenue.
Sec. 114-3006. Beaver Avenue—Urbandale Avenue to Douglas Avenue.
Sec. 114-3007. Beaver Avenue—Douglas Avenue to north city limits.
Sec. 114-3008. Beavercrest Drive—Beaver Avenue to Kenway Drive.
Sec. 114-3009. Beckwith Street—Fifth Avenue to Eighth Street.
Sec. 114-3010. Bel-Aire Road—Sawyers Drive to dead end west of Fifty-first Street.
Sec. 114-3011. Bell Avenue—South Union Street to Southwest Ninth Street.
Sec. 114-3012. Bell Avenue—Southwest Ninth Street to Southwest Fourteenth Street.
Sec. 114-3013. Bell Avenue—Southwest Fourteenth Street to Fleur Drive.
Sec. 114-3014. Bell Avenue—Fleur Drive to Southwest Thirtieth Street.
Sec. 114-3015. East Bell Avenue—South Union Street to King Avenue.
Sec. 114-3016. Belmar Drive—Leyden Avenue to East Douglas Avenue.
Sec. 114-3017. Bennett Avenue—Martin Luther King Jr Parkway to Thirtieth Street.
Sec. 114-3017.1. Bent Ridge Court—Grand River Drive to Hartford Avenue.
Sec. 114-3017.3. Reserved.
Sec. 114-3018. Birch Lane—Southwest Twelfth Street to Southwest Fourteenth Street.
Sec. 114-3019. Bloomfield Road—Southeast Fourteenth Street to dead end east of Indianola Avenue.
Sec. 114-3020. Bolton Drive—Thirty-seventh Street to dead end east.
Sec. 114-3021. Boston Avenue—Second Avenue to west city limits.
Sec. 114-3022. Boulder Avenue—Dead end east of Southwest Seventh Street to Southwest Tenth Street.
Sec. 114-3023. Boulevard Place—Forty-fifth Place to Polk Boulevard.
Sec. 114-3024. Bowdoin Street—East Sheridan Avenue to East Aurora Avenue.
Sec. 114-3025. Boyd Street—Bowdoin Street to the east city limits.
Sec. 114-3026. Bradway Place—Harwood Drive to Pleasant Street.
Sec. 114-3027. Brattleboro Avenue—Twenty-eighth Street to Fifty-seventh Street.
Sec. 114-3028. Brentwood Drive—River Oaks Drive to dead end west.
Sec. 114-3029. Briarcliff Drive—East Madison Avenue to East Forty-second Street.
Sec. 114-3030. Bridal Row—Fifteenth Street to Pleasant Street.
Sec. 114-3031. Brinkwood Road—Lawnwoods Drive to Forty-sixth Street.
Sec. 114-3031.05. Brockway Drive—Fayrdale Drive to dead end.
Sec. 114-3032. Broad Street—South Union Street to Southwest Fourteenth Street.
Sec. 114-3033. East Broad Street—South Union Street to Southeast Tenth Street.
Sec. 114-3033.0002. East Broadway Avenue—West city limits to east city limits.
Sec. 114-3033.0003. East Broadway Avenue/Hubbell Avenue North Frontage Road—East Broadway Avenue to Hubbell Avenue.
Sec. 114-3033.0005. Brook Landing Circle—Cul-de-sac north of Brook Landing Drive to East Fifty-fourth Court.
Sec. 114-3033.0006. Brook Landing Court—East Fifty-sixth Street to Brook View Avenue.
Sec. 114-3033.0007. Brook Landing Drive—Brook Landing Circle to East Fifty-fourth Court.
Sec. 114-3033.001. Brook Ridge Circle—Brook Run Drive to Dead end.
Sec. 114-3033.01. Brook Ridge Court—East Douglas Avenue to Village Run Avenue.
Sec. 114-3033.03. Brook Run Drive—North dead end to south dead end.
Sec. 114-3033.05. Brook View Avenue—Brook Ridge Court to east city limits.

Sec. 114-3033.09. Brook View Drive—Wisconsin Avenue to Brook Ridge Court.
Sec. 114-3034. Brown's Drive—Thirty-eighth Place to Tonawanda Drive.
Sec. 114-3035. Reserved.
Sec. 114-3036. Buchanan Street—East Seventh Street to East Seventeenth Street.
Sec. 114-3037. Bundy Street—Southwest Ninth Street to Southwest Fourteenth Street.
Sec. 114-3038. East Bundy Avenue—Southeast Second Court to Southeast Third Street.
Sec. 114-3039. Burlington Terrace—Chautauqua Parkway to Sixteenth Street.
Sec. 114-3040. Burnham Street—Southwest Ninth Street to Southwest Seventeenth Street.
Sec. 114-3041. Southeast Burnham Street—Southeast Second Street to Southeast Fifth Street.
Sec. 114-3042. Burson Street—East Nineteenth Street to Avenue Frederick M. Hubbell.
Sec. 114-3043. California Drive—Chamberlain Avenue to Forty-third Street.
Sec. 114-3044. Cambridge Street—East Sheridan Avenue to East Aurora Avenue.
Sec. 114-3045. Capitol Avenue—East Twelfth Street to East Twenty-second Street.
Sec. 114-3046. Capitol Avenue—East Twenty-second Street to East Thirtieth Street.
Sec. 114-3047. Carlisle Road—Vandalia Road to Southeast Forty-third Street.
Sec. 114-3048. Carpenter Avenue—Eleventh Street to Sixteenth Street.
Sec. 114-3049. Carpenter Avenue—Sixteenth Street to Twenty-third Street.
Sec. 114-3050. Carpenter Avenue—Twenty-third Street to Twenty-eighth Street.
Sec. 114-3051. Carpenter Avenue—Twenty-ninth Street to Forty-eighth Street.
Sec. 114-3052. Carpenter Avenue—Merle Hay Road to Cummins Parkway.
Sec. 114-3052.01. Carr Street—East Thirteenth Street to East Thirty-fourth Street.
Sec. 114-3053. Casady Drive—Southwest Fourteenth Street to Bell Avenue.
Sec. 114-3054. Carrie Avenue—Southeast Tenth Street to Wakonda Parkway.
Sec. 114-3055. Caulder Avenue—Southwest Second Street to dead end west of Southwest Forty-fourth Place.
Sec. 114-3056. East Caulder Circle—Southeast First Street to Southeast Fifth Street.
Sec. 114-3057. Caulder Court—Dead end west of Southeast Twenty-third Street to dead end east of Southeast Twenty-third Street.
Sec. 114-3058. C.B. & Q. Street—Southeast Twenty-fourth Court to Southeast Thirtieth Street.
Sec. 114-3059. Cedar Court—East Hughes Avenue to dead end north.
Sec. 114-3060. Center Street—Second Avenue to Third Street.
Sec. 114-3061. Center Street—Fifth Avenue to Eighth Street.
Sec. 114-3062. Center Street—Eighth Street to Keosauqua Way.
Sec. 114-3063. Center Street—Twelfth Street to Martin Luther King Jr Parkway.
Sec. 114-3064. Center Street—Twenty-fourth Street to Thirty-fifth Street.
Sec. 114-3065. Center Street—Thirty-fifth Street to city limits.
Sec. 114-3066. Chamberlain Avenue—Forty-second Street to Polk Boulevard.
Sec. 114-3067. Chamberlain Drive—Fifty-eighth Street to Fifty-ninth Street.
Sec. 114-3068. Chautauqua Parkway—Hickman Road to Hickman Road.
Sec. 114-3069. Cherokee Avenue—Pennsylvania Avenue to East Eighth Street.
Sec. 114-3070. Cherry Street—Fifth Avenue to Sixth Avenue.
Sec. 114-3071. Cherry Street—Sixth Avenue to Seventh Street.
Sec. 114-3072. Cherry Street—Seventh Street to Eighth Street.
Sec. 114-3073. Cherry Street—Eighth Street to Ninth Street.
Sec. 114-3074. Cherry Street—Ninth Street to Tenth Street.
Sec. 114-3075. Cherry Street—Tenth Street to Eleventh Street.
Sec. 114-3076. Cherry Street—Eleventh Street to Twelfth Street.
Sec. 114-3076.05. Reserved.
Sec. 114-3077. Chestnut Street—Ninth Street to Twelfth Street.

Sec. 114-3078. Chicago Avenue—East Twenty-sixth Street to dead end east of East Thirty-seventh Street.
Sec. 114-3079. Clark Boulevard—Fifty-sixth Street to Merle Hay Road.
Sec. 114-3080. Clark Street—Michigan Street to Ninth Street.
Sec. 114-3081. Clark Street—Ninth Street to Thirtieth Street.
Sec. 114-3082. Clark Street—Thirtieth Street to Sixty-third Street.
Sec. 114-3083. Clarkson Avenue—Martin Luther King Jr Parkway to dead end west of Martin Luther King Jr Parkway.
Sec. 114-3084. Clay Street—South Union Street to Southwest First Street.
Sec. 114-3085. East Clay Street—South Union Street to dead end east.
Sec. 114-3086. Claypool Street—East Nineteenth Street to Avenue Frederick M. Hubbell.
Sec. 114-3087. Cleveland Avenue—Pennsylvania Avenue to East Thirty-third Street.
Sec. 114-3088. Reserved.
Sec. 114-3089. Clinton Avenue—Sixth Avenue to Beaver Avenue.
Sec. 114-3090. East Clinton Avenue—East Twenty-eighth Street to East Thirty-third Street.
Sec. 114-3091. Colfax Avenue—East Douglas Avenue to East Aurora Avenue.
Sec. 114-3092. College Avenue—West River Drive to Second Avenue.
Sec. 114-3093. College Avenue—Second Avenue to Ninth Street.
Sec. 114-3094. College Avenue—Ninth Street to Martin Luther King Jr Parkway.
Sec. 114-3095. College Avenue—Twenty-third Street to Thirty-fourth Street.
Sec. 114-3096. College Avenue—Forty-first Street to Forty-eighth Street.
Sec. 114-3097. College Avenue—Fifty-fifth Street to Sixty-second Street.
Sec. 114-3098. Columbia Street—East Sheridan Avenue to East Aurora Avenue.
Sec. 114-3099. Columbus Avenue—South Union Street to Southwest Second Street.
Sec. 114-3100. East Columbus Avenue—South Union Street to East Hillside Avenue.
Sec. 114-3100.01. Reserved.
Sec. 114-3100.05. Copper Ridge Circle—Cul-de-sac west of East Fiftieth Street to East Fiftieth Street.
Sec. 114-3101. Cornell Street—East Sheridan Avenue to East Euclid Avenue.
Sec. 114-3102. Cornell Street—East Euclid Avenue to East Aurora Avenue.
Sec. 114-3103. Corning Avenue—Oxford Street to dead end west of Seventh Street.
Sec. 114-3104. Cottage Drive—Dagle Drive to Cummins Parkway.
Sec. 114-3105. Cottage Grove Avenue—Nineteenth Street to Martin Luther King Jr Parkway.
Sec. 114-3106. Cottage Grove Avenue—Martin Luther King Jr Parkway to Twenty-fifth Street.
Sec. 114-3107. Cottage Grove Avenue—Twenty-eighth Street to Forty-second Street.
Sec. 114-3108. Country Club Boulevard—Grand Avenue to Fifty-sixth Street.
Sec. 114-3109. County Line Road—South Union Street to Fleur Drive.
Sec. 114-3110. County Line Road—South Union Street to Southeast Fourteenth Street.
Sec. 114-3111. Court Avenue—Water Street to Second Avenue.
Sec. 114-3112. Court Avenue—Second Avenue to Third Street.
Sec. 114-3113. Court Avenue—Third Street to Fourth Street.
Sec. 114-3114. Court Avenue—Fourth Street to Fifth Avenue.
Sec. 114-3115. East Court Avenue—Water Street to East Second Street.
Sec. 114-3116. East Court Avenue—East Second Street to East Sixth Street.
Sec. 114-3117. East Court Avenue—East Sixth Street to East Fourteenth Street.
Sec. 114-3118. East Court Avenue—East Fourteenth Street to Eighteenth Street.
Sec. 114-3119. East Court Avenue—East Thirtieth Street to East Thirty-sixth Street.

Sec. 114-3120. Courtland Drive—Lacona Avenue to Indianola Road.
Sec. 114-3121. Creighton Avenue—Second Avenue to Fourth Street.
Sec. 114-3122. Crescent Drive—Ingersoll Avenue to Thirty-fourth Street.
Sec. 114-3122.05. Crestmoor Drive—Bel-Aire Road to Fifty-first Street.
Sec. 114-3123. Crestmoor Place—Lawnwoods Drive to Fifty-first Street.
Sec. 114-3124. Creston Avenue—South Union Street to Southwest Ninth Street.
Sec. 114-3125. Creston Avenue—Southwest Ninth Street to Southwest Sixty-third Street.
Sec. 114-3126. East Creston Avenue—South Union Street to King Avenue.
Sec. 114-3127. Crestwood Road—Thirty-sixth Place to Manor Lane.
Sec. 114-3128. Crocker Street—Second Avenue to Sixth Avenue.
Sec. 114-3129. Crocker Street—Sixth Avenue to Fourteenth Street.
Sec. 114-3130. Crocker Street—Fifteenth Street to Nineteenth Place.
Sec. 114-3131. Crocker Street—Thirty-first Street to Chamberlain Avenue.
Sec. 114-3131.5. Crossroads Drive—Southeast First Street to Southeast Second Street.
Sec. 114-3132. Cummins Parkway—Grand Avenue to Merle Hay Road.
Sec. 114-3133. Cummins Circle—Cummins Parkway to dead end east.
Sec. 114-3134. Crown Lane—Cummins Parkway to Sixty-third Street.
Sec. 114-3135. Cummins Road—Southeast Fifth Street to Southeast Fourteenth Street.
Sec. 114-3136. Cutler Avenue—Southwest Fifth Street to Southwest Fifteenth Street.
Sec. 114-3136.1. East Cutler Avenue—Southeast Twenty-Seventh Street to Southeast Thirty-first Street.
Sec. 114-3137. Dagle Drive—Fifty-sixth Street to Sixty-third Street.
Sec. 114-3137.05. Dart Way—Southwest Ninth Street to Southwest Eleventh Street.
Sec. 114-3138. Davis Avenue—South Union Street to dead end west of Southwest Twelfth Street.
Sec. 114-3139. Dawson Drive—Sixty-second Street to dead end west of Sixty-third Street.
Sec. 114-3140. Davisson Road—Thirty-fourth Street to Thirty-eighth Street.
Sec. 114-3141. Day Street—First Street to Cottage Grove Avenue.
Sec. 114-3142. Dean Avenue—East Fourteenth Street to East Eighteenth Street.
Sec. 114-3143. Dean Avenue—East Eighteenth Street to east city limits.
Sec. 114-3143.1. Deep Woods Court—Riverwoods Avenue to cul-de-sac north and south.
Sec. 114-3143.5. Deerpath Court—East Glenwood Drive to cul-de-sac south.
Sec. 114-3143.7. Deer Ridge Drive—East Virginia Avenue to East Park Avenue.
Sec. 114-3144. Delaware Avenue—Easton Boulevard to north city limits.
Sec. 114-3145. Denver Avenue—Fifth Avenue to Sixth Avenue.
Sec. 114-3146. Depot Street—Third Street to Fifth Avenue.
Sec. 114-3147. Des Moines Street—Robert D Ray Drive to East Ninth Street.
Sec. 114-3148. Des Moines Street—East Ninth Street to East Eighteenth Street.
Sec. 114-3149. Des Moines Street—East Eighteenth Street to East Thirtieth Street.
Sec. 114-3150. DeWolfe Street—East University Avenue to Hull Avenue.
Sec. 114-3150.5. Dickman Road—Southwest Ninth Street to easterly dead end.
Sec. 114-3151. Diehl Avenue—Southwest Third Street to Southwest Fourth Street.
Sec. 114-3152. East Diehl Avenue—South Union Street to Southeast Thirty-second.
Sec. 114-3153. Division Street—West River Drive to Illinois Street.
Sec. 114-3154. Dixon Court—East Washington Avenue to Guthrie Avenue.
Sec. 114-3155. Dixon Street—Dead end south of Lyon Street to East Aurora Avenue.
Sec. 114-3156. Don Lee Court—Avenue Frederick M. Hubbell to East Tiffin Avenue.

Sec. 114-3157. Dosh Road—Oakshire Road to Madison Avenue.
Sec. 114-3158. Douglas Avenue—First Street to Sixteenth Street.
Sec. 114-3159. Douglas Avenue—Martin Luther King Jr Parkway to west city limits.
Sec. 114-3160. East Douglas Avenue—First Street to East Fourteenth Street.
Sec. 114-3161. East Douglas Avenue—Delaware Avenue to east city limits.
Sec. 114-3162. Drake Park Avenue—Twenty-first Street to Twenty-fifth Street.
Sec. 114-3162.1. Driftwood Avenue—Three Lakes Parkway to dead end.
Sec. 114-3163. Druid Hill Drive—Bell Avenue to Pleasant View Drive.
Sec. 114-3164. Dubuque Avenue—Avenue Frederick M. Hubbell to Williams Street.
Sec. 114-3165. Dunham Avenue—South Union Street to Southwest Second Street.
Sec. 114-3165.05. Eagle Point Circle—Grand River Drive to dead end.
Sec. 114-3166. East Dunham Avenue—South Union Street to Southeast Ninth Street.
Sec. 114-3166.05. Eagle Point Court—Grand River Drive to the dead end north of Grand River Drive.
Sec. 114-3166.1. Easter Bay Court—East Marion Street to dead end.
Sec. 114-3167. Easter Lake Drive—Indianola Avenue to Southeast Thirty-sixth Street.
Sec. 114-3168. Easton Boulevard—East University Avenue to east city limits.
Sec. 114-3169. Easton Boulevard—East Twenty-second Street to East Twenty-ninth Street.
Sec. 114-3170. Easton Boulevard—East Twenty-ninth Street to east city limits.
Sec. 114-3171. Eastwood Drive—East Thirty-fourth Street to East Thirty-fifth Street.
Sec. 114-3171.05. Echo Valley Drive—Fleur Drive to west city limits.
Sec. 114-3172. Edgemont Street—Southwest Twelfth Street to Heliotrope Drive.
Sec. 114-3173. Edison Avenue—South Union Street to Southwest Second Street.
Sec. 114-3174. East Edison Avenue—South Union Street to Southeast Fourteenth Court.
Sec. 114-3175. Edwards Avenue—Southwest Twenty-ninth Street to Southwest Sixty-third Street.
Sec. 114-3176. Elder Lane—Southwest Ninth Street to Wakonda Parkway.
Sec. 114-3177. Elizabeth Avenue—East Twenty-second Street to East Twenty-fifth Street.
Sec. 114-3178. Elmwood Drive—Thirty-first Street to Thirty-fourth Street.
Sec. 114-3179. Elm Street—Dead end east of Southwest Sixth Street to Southwest Seventh Street.
Sec. 114-3180. East Elm Street—Southeast First Street to Southeast Thirty-sixth Street.
Sec. 114-3181. Emma Avenue—South Union Street to Southwest Twenty-ninth Street.
Sec. 114-3182. East Emma Avenue—South Union Street to Southeast Thirty-fifth Court.
Sec. 114-3183. Enden Lane—Dead end west of Hickory Hill Lane to Winegardner Road.
Sec. 114-3184. Enos Avenue—Eighth Street to Fifteenth Street.
Sec. 114-3185. Euclid Avenue—First Street to Sixth Avenue.
Sec. 114-3186. Euclid Avenue—Sixth Avenue to Martin Luther King Jr Parkway.
Sec. 114-3187. Euclid Avenue—Post Street to Forty-eighth Place.
Sec. 114-3188. East Euclid Avenue—First Street to East Forty-second Street.
Sec. 114-3189. South Euclid Avenue Frontage Road—East Euclid Avenue to northwestern railroad tracks.
Sec. 114-3190. Evans Street—Southwest Tenth Street to Southwest Seventeenth Street.
Sec. 114-3191. Evergreen Avenue—Indianola Avenue to dead end.
Sec. 114-3192. Fagen Drive—Thirty-eighth Street to Beaver Avenue.
Sec. 114-3193. Fairlane Drive—East Park Avenue to Parmer Drive.

Sec. 114-3194. Falcon Drive—Thirteenth Street to Mulberry Street.
Sec. 114-3194.5. Fanny Pruce Drive—Cummins Parkway to Sixty-third Street.
Sec. 114-3195. Farwell Road—Arthur Avenue to Avenue Frederick M. Hubbell.
Sec. 114-3195.05. Fayrdale Drive—Sweetwater Drive to dead end.
Sec. 114-3196. Filmore Street—East River Drive to East Thirteenth Street.
Sec. 114-3197. Flamingo Court—Sherman Boulevard to dead end east.
Sec. 114-3198. Fleming Avenue—Thirtieth Street to dead end west of Forty-eighth Street.
Sec. 114-3199. East Fleming Avenue—East Fourteenth Street to East Sixtieth Street.
Sec. 114-3200. Fleetwood Drive—Truber Place to dead end west.
Sec. 114-3201. Fleur Drive—Locust Street to County Line Road.
Sec. 114-3202. Forest Avenue—Michigan Street to Second Avenue.
Sec. 114-3203. Forest Avenue—Second Avenue to Ninth Street.
Sec. 114-3204. Forest Avenue—Ninth Street to Sixteenth Street.
Sec. 114-3205. Forest Avenue—Sixteenth Street to Twenty-third Street.
Sec. 114-3206. Forest Avenue—Twenty-third Street to Thirtieth Street.
Sec. 114-3207. Forest Avenue—Thirtieth Street to Sixty-third Street.
Sec. 114-3208. Forest Drive—Grand Avenue to Twenty-ninth Street.
Sec. 114-3209. Forestdale Drive—Forest Avenue to Maquoketa Drive.
Sec. 114-3210. Foster Drive—Forty-second Street to Southwest Forty-second Street.
Sec. 114-3211. Four Mile Drive—East Jefferson Avenue to Williams Street.
Sec. 114-3212. Francis Avenue—Dead end east of Eighteenth Street to Sixty-second Street.
Sec. 114-3213. Francis Drive—Thirtieth Street to dead end west.
Sec. 114-3214. Franklin Avenue—Ohio Street to Thirty-fourth Street.
Sec. 114-3215. Franklin Avenue—Thirty-fourth Street to west city limits.
Sec. 114-3216. Frazier Avenue—Southwest Ninth Street to dead end west of Southwest Nineteenth Street.
Sec. 114-3217. Frederick Avenue—Southwest Ninth Street to dead end west of Southwest Ninth Street.
Sec. 114-3218. Fremont Street—East Seventh Street to East Fifteenth Street.
Sec. 114-3219. Fulton Drive—South Union Street to Southwest Ninth Street.
Sec. 114-3220. East Fulton Drive—South Union Street to Southeast Fifth Street.
Sec. 114-3220.1. Gannett Avenue—Southwest Forty-second Street to Fleur Drive.
Sec. 114-3220.5. Gannett Avenue—Fleur Drive to Southwest Forty-second Street.
Sec. 114-3221. Garden Avenue—Eleventh Street to Lower Beaver Road.
Sec. 114-3222. East Garden Avenue—East Twenty-sixth Street to East Forty-second Street.
Sec. 114-3223. Garden Ridge—Thirtieth Street to dead end east.
Sec. 114-3224. Garden Road—Southwest Twenty-third Street to Southwest Twenty-eighth Street.
Sec. 114-3225. Garfield Avenue—East Ninth Street to East Thirty-seventh Court.
Sec. 114-3226. Geil Street—Southwest Ninth Street to Southwest Fifteenth Street.
Sec. 114-3226.01. George Flagg Parkway—Fleur Drive to Park Avenue.
Sec. 114-3227. Germania Drive—Forest Avenue to Forty-First Street.
Sec. 114-3228. Gillette Street—Sixteenth Street to Eighteenth Street.
Sec. 114-3229. Gilmore Street—Southwest Twenty-eighth Street to Northwood Drive.
Sec. 114-3230. Glenview Drive—Forty-second Street to Woodlawn Drive.
Sec. 114-3231. Glennor Road—Martin Luther King Jr Parkway to Sherwood Drive.
Sec. 114-3232. Glenarm Court—Welbeck Road to dead end north.
Sec. 114-3233. Glenbrook Drive—Osceola Avenue to East Sheridan Avenue.

Sec. 114-3234. Glenwood Circle—Southeast Nineteenth Street to cul-de-sac west.
Sec. 114-3235. East Glenwood Drive—Southeast Fourteenth Street to cul-de-sac east.
Sec. 114-3236. Gleaves Court—East Ovid Avenue to dead end south.
Sec. 114-3237. Glen Ellen Avenue—East Thirty-eighth Street to East Thirty-ninth Street.
Sec. 114-3238. Glover Avenue—Southwest Ninth Street to Leach Avenue.
Sec. 114-3238.5. Golf House Drive—Echo Valley Drive to south city limits.
Sec. 114-3239. Goode Street—Arlington Avenue to Fourth Street.
Sec. 114-3240. Good Park Drive—Keosauqua Way to University Avenue.
Sec. 114-3241. Gordon Avenue—Southwest Sixty-first Street to Southwest Sixty-third Street.
Sec. 114-3242. Goddard Court—Fourteenth Street to dead end west.
Sec. 114-3243. Governors Square Drive—East Fourteenth Street to Johnson Court.
Sec. 114-3244. Grand Avenue—Des Moines River to Second Avenue.
Sec. 114-3245. Grand Avenue—Second Avenue to Third Street.
Sec. 114-3246. Grand Avenue—Third Street to Fourth Street.
Sec. 114-3247. Grand Avenue—Fourth Street to Fifth Avenue.
Sec. 114-3248. Grand Avenue—Fifth Avenue to Sixth Avenue.
Sec. 114-3249. Grand Avenue—Sixth Avenue to Seventh Street.
Sec. 114-3250. Grand Avenue—Seventh Street to Eighth Street.
Sec. 114-3251. Grand Avenue—Eighth Street to Ninth Street.
Sec. 114-3252. Grand Avenue—Ninth Street to Tenth Street.
Sec. 114-3253. Grand Avenue—Tenth Street to Twelfth Street.
Sec. 114-3254. Reserved.
Sec. 114-3255. Grand Avenue—Twelfth Street to Thirteenth Street.
Sec. 114-3256. Grand Avenue—Thirteenth Street to Fifteenth Street.
Sec. 114-3257. Reserved.
Sec. 114-3258. Grand Avenue—Fifteenth Street to Seventeenth Street.
Sec. 114-3259. Grand Avenue—Seventeenth Street to Eighteenth Street.
Sec. 114-3260. Grand Avenue—Eighteenth Street to Nineteenth Street.
Sec. 114-3261. Grand Avenue—Nineteenth Street to Twenty-eighth Street.
Sec. 114-3262. Grand Avenue—Twenty-eighth Street to Thirty-first Street.
Sec. 114-3263. Grand Avenue—Thirty-first Street to Thirty-fifth Street.
Sec. 114-3264. Grand Avenue—Thirty-fifth Street to Forty-second Street.
Sec. 114-3265. Grand Avenue—Forty-second Street to Polk Boulevard.
Sec. 114-3266. Grand Avenue—Polk Boulevard to west city limits.
Sec. 114-3267. East Grand Avenue—Des Moines River to Robert D Ray Drive.
Sec. 114-3268. East Grand Avenue—Robert D Ray Drive to East Fourth Street.
Sec. 114-3269. East Grand Avenue—East Fourth Street to East Fifth Street.
Sec. 114-3270. East Grand Avenue—East Fifth Street to East Sixth Street.
Sec. 114-3271. East Grand Avenue—East Sixth Street to Pennsylvania Avenue.
Sec. 114-3272. East Grand Avenue—Pennsylvania Avenue to East Twelfth Street.
Sec. 114-3273. East Grand Avenue—East Twelfth Street to East Fifteenth Street.
Sec. 114-3274. East Grand Avenue—East Fifteenth Street to East Eighteenth Street.
Sec. 114-3275. East Grand Avenue—East Eighteenth Street to East Thirtieth Street.
Sec. 114-3275.1. Grand River Drive—King Avenue to cul-de-sac southeast of Riverwoods Avenue.
Sec. 114-3276. Grandview Avenue—Cornell Street to east city limits.
Sec. 114-3277. Reserved.
Sec. 114-3278. East Granger Avenue—South Union Street to Southeast Thirty-eighth Street.
Sec. 114-3279. Gray Street—South Union Street to Southeast Fifth Street.
Sec. 114-3280. Gray Street—Highland Street to Southwest Fourteenth Street.

Sec. 114-3281. Greenwood Drive—Thirty-eighth Place to Forty-fifth Street.
Sec. 114-3282. Gratis Avenue—Southeast Eighth Court to Southeast Fourteenth Street.
Sec. 114-3282.5. Grover Woods Lane—Cul-de-sac west of Honey Bee Ridge to East Forty-fourth Street.
Sec. 114-3283. Reserved.
Sec. 114-3284. Reserved.
Sec. 114-3285. Guthrie Avenue—First Street to East Fourteenth Street.
Sec. 114-3286. Guthrie Avenue—East Fourteenth Street to East Thirty-second Street.
Sec. 114-3287. Hackley Avenue—South Union Street to Fleur Drive.
Sec. 114-3287.1. East Hackley Avenue—South Union Street to Southeast Fourteenth Street.
Sec. 114-3288. Hart Avenue—South Union Street to Southeast Thirty-first Street.
Sec. 114-3288.5. Reserved.
Sec. 114-3289. Harwood Court—Sixty-fourth Street to dead end east.
Sec. 114-3290. Harrison Avenue—Thirteenth Street to Sixteenth Street.
Sec. 114-3291. Harriet Street—Southeast Fourteenth Street to dead end east of Southeast Fifteenth Street.
Sec. 114-3292. Hartford Avenue—South Union Street to East Watrous Avenue.
Sec. 114-3293. Harwood Drive—Forty-second Street to Sixty-second Street.
Sec. 114-3294. Havens Avenue—Southview Drive to Southwest Seventeenth Street.
Sec. 114-3294.1. East Havens Avenue—Indianola Avenue to East Pine Avenue.
Sec. 114-3295. Heliotrope Drive—Creston Avenue to Bell Avenue.
Sec. 114-3296. Henderson Avenue—York Street to Villa Vista Drive.
Sec. 114-3297. Henry Street—Park Avenue to Caulder Avenue.
Sec. 114-3298. Herold Avenue—Southwest Second Street to Southwest Fourteenth Street.
Sec. 114-3299. East Herold Avenue—Southeast Fourteenth Street to Southeast Thirty-fifth Court.
Sec. 114-3300. Hickman Lane—Twenty-sixth Street to dead end west.
Sec. 114-3301. Hickman Road—Sixth Avenue to west city limits.
Sec. 114-3302. Hickory Hill Lane—Enden Lane to Winegardner Road.
Sec. 114-3303. High Street—Sixth Avenue to Seventh Street.
Sec. 114-3304. High Street—Seventh Street to Eighth Street.
Sec. 114-3305. High Street—Eighth Street to Ninth Street.
Sec. 114-3306. High Street—Ninth Street to Tenth Street.
Sec. 114-3307. High Street—Tenth Street to Eleventh Street.
Sec. 114-3308. High Street—Eleventh Street to Twelfth Street.
Sec. 114-3309. High Street—Twelfth Street to Fourteenth Street.
Sec. 114-3310. Reserved.
Sec. 114-3310.01. High Street—Fourteenth Street to Fifteenth Street.
Sec. 114-3311. Reserved.
Sec. 114-3312. High Street—Fifteenth Street to Sixteenth Street.
Sec. 114-3313. High Street—Sixteenth Street to Seventeenth Street.
Sec. 114-3314. High Street—Seventeenth Street to Nineteenth Street.
Sec. 114-3315. High Street—Nineteenth Street to Martin Luther King Jr Parkway.
Sec. 114-3316. High Street—Martin Luther King Jr Parkway to Thirty-first Street.
Sec. 114-3317. Highview Drive—Southwest Twelfth Street to Fleur Drive.
Sec. 114-3317.5. East Highview Drive—Indianola Avenue to east city limits.
Sec. 114-3318. Highland Street—Fulton Drive to Davis Avenue.
Sec. 114-3319. Hillcrest Drive—Lyndale Avenue to Brinkwood Road.
Sec. 114-3320. Hillside Avenue—South Union Street to Southwest Ninth Street.
Sec. 114-3321. East Hillside Avenue—South Union Street to Southeast Fourteenth Street.
Sec. 114-3322. Hoffman Avenue—North Union Street to dead end east of East Tenth Street.

Sec. 114-3323. Holcomb Circle—Holcomb Avenue to dead end south of Holcomb Avenue.
Sec. 114-3324. Holcomb Avenue—Oxford Street to west city limits.
Sec. 114-3325. East Holcomb Avenue—Oxford Street to cul-de-sac east of Saylor Road.
Sec. 114-3326. Holmes Street—Indianola Road to Summit Street.
Sec. 114-3326.5. Honey Bee Ridge—Grover Woods Lane to East Forty-fourth Street.
Sec. 114-3327. Hughes Avenue—Dead end east of Southwest Second Street to dead end west of Glover Avenue.
Sec. 114-3328. East Hughes Avenue—Fairlane Drive to Southeast Twenty-second Street.
Sec. 114-3329. Holland Drive—Maryland Pike to Hickman Road.
Sec. 114-3329.05. Hubbell Avenue—Northeast Forty-third Court—to northeast city limits.
Sec. 114-3330. Hull Avenue—Second Avenue to East Fourteenth Street.
Sec. 114-3331. Hull Avenue—East Fourteenth Street to the dead end east of East Forty-third Court.
Sec. 114-3331.5. East Hull Avenue—East Forty-eighth Street to east city limits.
Sec. 114-3332. Hunter Avenue—Thirty-eighth Place to Thirty-ninth Street.
Sec. 114-3333. Huntland Drive—Northwest Drive to Forty-first Street.
Sec. 114-3334. Hutton Street—East University Avenue to East Washington Avenue.
Sec. 114-3335. Hyde Drive—Caulder Avenue to Southwest Twelfth Street.
Sec. 114-3336. Idaho Street—Garfield Avenue to Morton Avenue.
Sec. 114-3337. Illinois Street—Dead end south of University Avenue to Washington Avenue.
Sec. 114-3338. Indiana Avenue—Michigan Street to Ninth Street.
Sec. 114-3339. Indianapolis Avenue—East Twenty-sixth Street to East Forty-first Street.
Sec. 114-3340. Reserved.
Sec. 114-3341. Indianola Avenue—Jackson Avenue to south city limits.
Sec. 114-3341.01. Indianola Road—South Union Street to Southeast First Street.
Sec. 114-3341.02. Indianola Road—South Union Street to Thomas Beck Road.
Sec. 114-3342. Ingersoll Avenue—Fourteenth Street to Martin Luther King Jr Parkway.
Sec. 114-3343. Ingersoll Avenue—Martin Luther King Jr Parkway to Twenty-eighth Street.
Sec. 114-3344. Ingersoll Avenue—Twenty-eighth Street to Thirty-fifth Street.
Sec. 114-3345. Ingersoll Avenue—Thirty-fifth Street to Fifty-ninth Street.
Sec. 114-3346. Iola Avenue—Thirty-first Street to Thirty-sixth Street.
Sec. 114-3347. Iowa Highway 28.
Sec. 114-3348. Irving Street—Holmes Street to Bancroft Street.
Sec. 114-3349. Jackson Avenue—South Union Street to Southwest Third Street.
Sec. 114-3350. East Jackson Avenue—South Union Street to Southeast Ninth Street.
Sec. 114-3351. Jarvis Street—Southwest Ninth Street to Glover Avenue.
Sec. 114-3352. Johnson Court—Dead end south of East Vine Street to Fremont Street.
Sec. 114-3353. Jerlynn Avenue—North Union Street to dead end east of East Tenth Street.
Sec. 114-3354. Jewett Lane—Arapahoe Drive to dead end east.
Sec. 114-3355. Jefferson Avenue—Des Moines River to Sixteenth Street.
Sec. 114-3356. Jefferson Avenue—Sixteenth Street to Thirty-sixth Street.
Sec. 114-3357. East Jefferson Avenue—East Eighth Street to Williams Street.
Sec. 114-3358. John Patterson Road—Avenue Frederick M. Hubbell to East Thirty-second Street.
Sec. 114-3359. Johnson Street—Southwest Ninth Street to Southwest Seventeenth Street.

Sec. 114-3360. John Lynde Road—Lincoln Place Drive to Forty-second Street.
Sec. 114-3361. Jordan Drive—Southeast Fifth Street to Hart Avenue.
Sec. 114-3362. Juniper Court—Southeast Twentieth Street to dead end west.
Sec. 114-3363. Kendallwood Circle—Southwest Twenty-ninth Street to dead end west.
Sec. 114-3363.5. Kennedy Drive—East Douglas Avenue to dead end east.
Sec. 114-3364. East Kenyon Avenue—South Union Street to Southeast Thirty-second Street.
Sec. 114-3365. Kenyon Avenue—South Union Street to Fleur Drive.
Sec. 114-3365.5. East Kenyon Circle—Cul-de-sac north of Southeast Twenty-fifth Street to Southeast Twenty-fifth Street.
Sec. 114-3366. Kenway Drive—Maryland Pike to Beavercrest Drive.
Secs. 114-3367—114-3371. Reserved.
Sec. 114-3372. Keosauqua Way—Eighth Place to Twelfth Street.
Sec. 114-3373. Keosauqua Way—Twelfth Street to Crocker Street.
Sec. 114-3374. Keosauqua Way—Crocker Street to Nineteenth Street.
Sec. 114-3375. Keyes Drive—Jarvis Street to Thornton Avenue.
Sec. 114-3376. King Avenue—Southeast Eighth Court to dead end east.
Sec. 114-3377. Kingman Avenue—Fifty-sixth Street to Fifty-ninth Street.
Sec. 114-3378. Kingman Boulevard—Twenty-fourth Street to Twenty-eighth Street.
Sec. 114-3379. Kingman Boulevard—Twenty-eighth Street to Thirty-fifth Street.
Sec. 114-3380. Kingman Boulevard—Thirty-fifth Street to Forty-second Street.
Sec. 114-3381. Kingman Boulevard—Forty-second Street to Fifty-ninth Street.
Sec. 114-3382. Kingman Circle—Kingman Boulevard to cul-de-sac, south.
Sec. 114-3383. Kinsey Avenue—East Seventeenth Court to East Thirty-eighth Street.
Sec. 114-3384. Kirkwood Avenue—South Union Street to Southwest Eleventh Street.
Sec. 114-3385. East Kirkwood Avenue—South Union Street to Southeast Fourteenth Street.
Sec. 114-3386. Knob Hill Drive—Timber Lane to Winegardner Road.
Sec. 114-3387. East Lacona Avenue—Southeast Sixth Street to dead end east of Southeast Nineteenth Street.
Sec. 114-3388. Lally Street—South Union Street to Southwest Ninth Street.
Sec. 114-3389. Lacona Avenue—South Union Street to Southwest Ninth Street.
Sec. 114-3390. East Lally Street—South Union Street to Southeast Fifth Street.
Sec. 114-3391. Lake Avenue—Boston Avenue to Eighth Street.
Sec. 114-3391.015. Lake Hill Drive—Sweetwater Drive to Brockway Drive.
Sec. 114-3391.025. Lake Ridge Avenue—Lake Hill Drive to East Pine Avenue.
Sec. 114-3391.05. Lakeland Court—Ridgeview Drive to Dead End.
Sec. 114-3392. Lakeview Drive—Polk Boulevard to dead end west.
Sec. 114-3392.05. Lakewood Lane—Evergreen Avenue to Dead End.
Sec. 114-3393. Lanewood Drive—Forestdale Drive to Waveland Drive.
Sec. 114-3394. Laurel Hill Road—Southeast Thirty-fourth Street to the Dead End East of Southeast Thirty-sixth Street.
Sec. 114-3395. Laurel Street—Second Avenue to Fourteenth Street.
Sec. 114-3396. Lawnview Drive—Thirtieth Street to Lawnwoods Drive.
Sec. 114-3397. Lawnwoods Drive—Douglas Avenue to Hillcrest Drive.
Sec. 114-3398. Lay Street—Easton Boulevard to East Aurora Avenue.
Sec. 114-3399. Leach Avenue—South Union Street to Glover Avenue.
Sec. 114-3400. East Leach Avenue—South Union Street to Southeast Thirteenth Street.
Sec. 114-3401. East Leach Avenue—Southeast Sixteenth Street to East Watrous Avenue.
Sec. 114-3402. Leado Avenue—Thirtieth Street to Urbandale Avenue.
Sec. 114-3403. East Leland Avenue—South Union Street to Indianola Road.
Sec. 114-3404. Leland Avenue—South Union Street to Fleur Drive.
Sec. 114-3405. Lewis Avenue—Southwest Ninth Street to Southwest Sixteenth Street.

Sec. 114-3406. Leyden Avenue—East Thirty-eighth Street to east city limits.
Sec. 114-3407. Leonard Place—Forty-first Street to dead end west.
Sec. 114-3408. Leyner Street—Nineteenth Street to dead end west of Martin Luther King Jr Parkway.
Sec. 114-3409. Lincoln Avenue—Ninth Street to Sixty-first Street.
Sec. 114-3410. Lincoln Place Drive—John Lynde Road to Southwest Forty-second Street.
Sec. 114-3411. Linden Lane—Southwest Thirteenth Street to Wakonda Parkway.
Sec. 114-3412. Lindlavista Way—Lyndale Drive to dead end west of Thirty-eighth Place.
Sec. 114-3413. Linda Circle—Thirty-sixth Street to dead end west.
Sec. 114-3414. Linworth Lane—East Hughes Avenue to East Miller Avenue.
Sec. 114-3415. Linden Street—Dead end east of Twenty-eighth Street to Twenty-eighth Street.
Sec. 114-3415.05. Line Drive—Southwest Second Street to Southwest Third Street.
Sec. 114-3416. East Livingston Avenue—South Union Street to Van Buren Avenue.
Sec. 114-3417. Livingston Avenue—South Union Street to Southwest Second Street.
Sec. 114-3418. Reserved.
Sec. 114-3419. Locust Street—Robert D Ray Drive to Second Avenue.
Sec. 114-3420. Locust Street—Second Avenue to Third Street.
Sec. 114-3421. Locust Street—Third Street to Fourth Street.
Sec. 114-3422. Locust Street—Fourth Street to Fifth Avenue.
Sec. 114-3423. Locust Street—Fifth Avenue to Sixth Avenue.
Sec. 114-3424. Locust Street—Sixth Avenue to Seventh Street.
Sec. 114-3425. Locust Street—Seventh Street to Eighth Street.
Sec. 114-3426. Locust Street—Eighth Street to Ninth Street.
Sec. 114-3427. Locust Street—Ninth Street to Tenth Street.
Sec. 114-3428. Locust Street—Tenth Street to Twelfth Street.
Sec. 114-3429. Reserved.
Sec. 114-3430. Locust Street—Twelfth Street to Thirteenth Street.
Sec. 114-3431. Locust Street—Thirteenth Street to Fifteenth Street.
Sec. 114-3432. Reserved.
Sec. 114-3433. Locust Street—Fifteenth Street to Eighteenth Street.
Sec. 114-3434. East Locust Street—Robert D Ray Drive to East Second Street.
Sec. 114-3434.01. East Locust Street—East Second Street to East Third Street.
Sec. 114-3435. East Locust Street—East Third Street to East Fourth Street.
Sec. 114-3436. East Locust Street—East Fourth Street to East Fifth Street.
Sec. 114-3437. East Locust Street—East Fifth Street to East Sixth Street.
Sec. 114-3438. East Locust Street—East Sixth Street to Pennsylvania Avenue.
Sec. 114-3439. Logan Avenue—East Seventeenth Street to East Thirty-first Street.
Sec. 114-3440. Loomis Avenue—South Union Street to dead end west of Heliotrope Drive.
Sec. 114-3441. Lower Beaver Road—Douglas Avenue to north city limits.
Sec. 114-3441.05. East Luster Lane—Southeast Thirty-third Street to East Havens Avenue.
Sec. 114-3442. Luster Lane—Southwest Ninth Street to Southview Drive.
Sec. 114-3443. Lynner Drive—Martin Luther King Jr Parkway to Aurora Avenue.
Sec. 114-3444. Lynn Street—Sixteenth Street to Keosauqua Way.
Sec. 114-3445. Lyon Street—East Fifth Street to East Thirtieth Street.
Sec. 114-3446. Lynch Street—Oxford Street to Cambridge Street.
Sec. 114-3447. Lyndale Drive—Lindlavista Way to Skyline Drive.
Sec. 114-3448. Madison Avenue—First Street to Sixteenth Street.
Sec. 114-3449. Madison Avenue—Martin Luther King Jr Parkway to Beaver Avenue.
Sec. 114-3450. Madison Avenue—Beaver Avenue to Merle Hay Road.

Sec. 114-3451. East Madison Avenue—First Street to dead end east of East Forty-second Street.
Sec. 114-3452. Mahaska Avenue—East Twenty-ninth Street to Williams Street.
Sec. 114-3453. Mahaska Parkway—Lincoln Place Drive to Edwards Avenue.
Sec. 114-3454. Maine Street—University Avenue to Washington Avenue.
Sec. 114-3455. East Maish Court—Southeast Twenty-second Street to dead end west.
Sec. 114-3456. East Maish Avenue—Southeast Eighteenth Street to Southeast Twenty-first Court.
Sec. 114-3457. Maish Avenue—Dead end east of Southwest Seventh Street to cul-de-sac west of Southwest Fifty-sixth Street.
Sec. 114-3458. Manor Lane—Marianna Trail to Shawnee Avenue.
Sec. 114-3459. Mann Avenue—Dead end east of Twenty-sixth Street to Thirty-second Street.
Sec. 114-3460. Mansfield Drive—East Twenty-fourth Street to Hull Avenue.
Sec. 114-3461. Maple Street—East Second Street to Knob Hill Drive.
Sec. 114-3461.5. Maquoketa Drive—Dead end east of Forestdale Drive to Germania Drive.
Sec. 114-3462. Mar Ella Trail—Washington Avenue to Franklin Avenue.
Sec. 114-3463. Marianna Trail—Thirty-sixth Place to Manor Lane.
Sec. 114-3464. East Marion Street—Southeast First Street to Southeast Twenty-sixth Street.
Sec. 114-3465. Marion Street—Southwest Fifth Street to Southwest Twenty-fifth Street.
Sec. 114-3466. Market Street—Southwest Water Street to Southwest Sixth Street.
Sec. 114-3467. Reserved.
Sec. 114-3468. East Market Street—Des Moines River to Southeast Twenty-ninth Court.
Sec. 114-3469. Marsh Drive—Thirty-eighth Place to Tonawanda Drive.
Sec. 114-3469.05. Martin Luther King Jr Parkway—West Martin Luther King Jr Parkway to Ingersoll Avenue.
Sec. 114-3469.06. East Martin Luther King Jr Parkway—Center of Des Moines River to east city limits.
Sec. 114-3470. Martin Luther King Jr Parkway—Ingersoll Avenue to University Avenue.
Sec. 114-3471. Martin Luther King Jr Parkway—University Avenue to Hickman Road.
Sec. 114-3472. Martin Luther King Jr Parkway—Hickman Road to Euclid Avenue.
Sec. 114-3473. Martin Luther King Jr Parkway—Euclid Avenue to Madison Avenue.
Sec. 114-3474. Mason Avenue—Southwest Ninth Street to Southview Drive.
Sec. 114-3475. Mary Avenue—Ninth Street to Fifteenth Street.
Sec. 114-3476. Mattern Avenue—East Ninth Street to East Forty-second Street.
Sec. 114-3477. Maryland Pike—Beaver Avenue to Beavercrest Drive.
Sec. 114-3478. Maryland Avenue—Fourteenth Street to Fifteenth Street.
Sec. 114-3479. East Maxwelton Drive—South Union Street to Southeast Third Street.
Sec. 114-3480. Maxwelton Drive—Southwest Second Street to Southwest Ninth Street.
Sec. 114-3481. Maury Street—Southeast Fifth Street to dead end east of Southeast Thirty-first Street.
Sec. 114-3482. McCormick Street—East University Avenue to East Washington Avenue.
Sec. 114-3483. McKee Street—East Seventh Street to Pennsylvania Avenue.
Sec. 114-3484. East McKinley Avenue—South Union Street to Indianola Avenue.
Sec. 114-3485. McKinley Avenue—South Union Street to Southwest Forty-second Street.
Sec. 114-3486.0. Southwest Mckinley Avenue—Southwest Forty-second Street to Southwest Sixty-third Street.

Sec. 114-3486.2. Southwest Mckinley Drive—Dead end east of Southwest Sixty-first Street to cul-de-sac west.
Sec. 114-3486.3. Meadow Wood Circle—Brook Ridge Court to dead end.
Sec. 114-3486.4. Meadow Chase Lane—Bloomfield Road to Indianola Avenue.
Sec. 114-3486.6. East Meadow Lane—Indianola Avenue to East Havens Avenue.
Sec. 114-3486.7. Meadowlands Drive—Meadow Chase Lane to East Army Post Road.
Sec. 114-3486.8. Meadow Court—Meadowlands Drive to Indianola Avenue.
Sec. 114-3487. Meek Avenue—Martin Luther King Jr Parkway to dead end west of Twenty-seventh Street.
Sec. 114-3487.5. Merced Drive—Cul-de-sac east of Twenty-ninth Street to cul-de-sac west of Twenty-ninth Street.
Sec. 114-3488. Merced Street—Thirty-eighth Street to Fifty-fourth Street.
Sec. 114-3488.5. East Merced Street—Northeast Forty-sixth Street to East Forty-eighth Street.
Sec. 114-3489. Merle Hay Road—University Avenue to north city limits.
Sec. 114-3490. East Merle Hay Frontage Road—Merle Hay Road to north city limits.
Sec. 114-3491. East Merle Hay Road Frontage Road—Dead end south of Meredith Drive to dead end north of Meredith Drive.
Sec. 114-3492. Methodist Drive—Chestnut Street to Twelfth Street.
Sec. 114-3493. Michigan Street—Forest Avenue to College Avenue.
Sec. 114-3494. Miller Avenue—Dead end east of Southwest Second Street to dead end west of Southwest Twenty-eighth Street.
Sec. 114-3495. East Miller Avenue—Southeast Third Street to dead end east of Southeast Eighth Street.
Sec. 114-3496. Milton Avenue—East Fourteenth Street to dead end east of East Twenty-first Street.
Sec. 114-3497. Mondamin Avenue—Thirteenth Street to Thirty-third Street.
Sec. 114-3498. Monona Avenue—Indianola Road to dead end south.
Sec. 114-3498.1. Moonlight Drive—Three Lakes Parkway to dead end.
Sec. 114-3499. Morgan Street—Southwest Ninth Street west to the dead end.
Sec. 114-3500. Morton Avenue—Bowdoin Street to east city limits.
Sec. 114-3501. Motley Street—Fulton Drive to Hillside Avenue.
Sec. 114-3502. Moyer Street—Twenty-seventh Street to Twenty-eighth Street.
Sec. 114-3503. Reserved.
Sec. 114-3504. Mulberry Street—Fifth Avenue to Sixth Avenue.
Sec. 114-3505. Mulberry Street—Sixth Avenue to Seventh Street.
Sec. 114-3506. Mulberry Street—Seventh Street to Eighth Street.
Sec. 114-3507. Mulberry Street—Eighth Street to Ninth Street.
Sec. 114-3508. Reserved.
Sec. 114-3509. Mulberry Street—Tenth Street to Eleventh Street.
Sec. 114-3510. Mulberry Street—Eleventh Street to Twelfth Street.
Sec. 114-3511. Mulberry Street—Twelfth Street to Thirteenth Street.
Sec. 114-3512. Mulberry Street—Thirteenth Street to Fifteenth Street.
Sec. 114-3513. Murphy Street—Southwest Fifth Street to Southwest Sixteenth Street.
Sec. 114-3514. Muskogee Avenue—Southwest Thirty-first Street to Southwest Sixty-third Street.
Sec. 114-3515. Nash Drive—Chautauqua Parkway to Hickman Road.
Sec. 114-3516. Neola Avenue—East Sixth Street to Pennsylvania Avenue.
Sec. 114-3517. Nevada Avenue—East Thirteenth Street to York Street.
Sec. 114-3518. New York Avenue—First Street to Onthank Drive.
Sec. 114-3519. New York Avenue—Forty-second Street to Sixty-second Street.
Sec. 114-3520. New York Circle—Sixty-seventh Street to dead end east.
Sec. 114-3521. East New York Avenue—First Street to Oxford Street.
Sec. 114-3522. Nierob Court—Thirty-sixth Street to dead end.
Sec. 114-3523. North Union Street—Union Park entrance to East Aurora Avenue.
Sec. 114-3524. North Valley Drive—Southwest Fifty-sixth Street to Southwest Fifty-ninth Street.

Sec. 114-3525. North Waterbury Road—Fifty-sixth Street to Sixtieth Place.
Sec. 114-3526. Northwest Drive—Beaver Avenue to dead end west of Sixty-second Street.
Sec. 114-3527. Northwood Drive—Terrace Road to Gilmore Street.
Sec. 114-3528. Norton Avenue—Thirteenth Street to Fourteenth Street.
Sec. 114-3529. Oak Forest Drive—Southwest Forty-second Street to dead end east.
Sec. 114-3530. Oaklyn Drive—Brinkwood Road to Skyline Drive.
Sec. 114-3531. Oak Park Avenue—Sixth Avenue to Sixteenth Street.
Sec. 114-3532. East Oak Park Avenue—East Twelfth Street to East Thirtieth Street.
Sec. 114-3533. Oakcrest Drive—Euclid Avenue to dead end north of Euclid Avenue.
Sec. 114-3534. Oakridge Drive—Keosauqua Way to Fifteenth Street.
Sec. 114-3535. Oakshire Road—Lynner Drive to Sherwood Drive.
Sec. 114-3536. Ohio Street—University Avenue to Franklin Avenue.
Sec. 114-3537. Olinda Avenue—South Union Street to Southwest Ninth Street.
Sec. 114-3538. East Olinda Avenue—South Union Street to Indianola Avenue.
Sec. 114-3538.01. Oneida Point—Southwest Thirty-seventh Street to Southwest Thirty-eighth Place.
Sec. 114-3539. Olive Avenue—Seventeenth Street to Twenty-fourth Street.
Sec. 114-3540. Osceola Avenue—East Ninth Street to East Forty-first Street.
Sec. 114-3541. Orchard Avenue—Arlington Avenue to Fifth Avenue.
Sec. 114-3542. Orchard Lane—Ravina Drive to dead end south.
Sec. 114-3543. Ovid Avenue—First Street to Merle Hay Road.
Sec. 114-3544. East Ovid Avenue—First Street to East Forty-second Street.
Sec. 114-3544.5. East Ovid Avenue—East Forty-second Street to east city limits.
Sec. 114-3545. Oxford Street—Guthrie Avenue to East Aurora Avenue.
Sec. 114-3545.5. Palm Avenue—Beaver Avenue to Bel-Aire Road.
Sec. 114-3546. Palmer Place—Courtland Drive to dead end west of Palmer Place.
Sec. 114-3547. Park Avenue—South Union Street to Southwest Ninth Street.
Sec. 114-3548. Park Avenue—Southwest Ninth Street to Fleur Drive.
Sec. 114-3549. Park Avenue—Fleur Drive to Southwest Sixty-third Street.
Sec. 114-3550. East Park Avenue—South Union Street to dead end east of Southeast Twenty-fifth Street.
Sec. 114-3551. Park Place—Terrace Road to Forest Drive.
Sec. 114-3552. Park Street—Second Avenue to Fourth Street.
Sec. 114-3553. Park Street—Fourth Street to Fifth Avenue.
Sec. 114-3554. Park Street—Fifth Avenue to Sixth Avenue.
Sec. 114-3555. Park Street—Sixth Avenue to Seventh Street.
Sec. 114-3556. Park Street—Seventh Street to Eighth Street.
Sec. 114-3557. Park Street—Eighth Street to Eighth Place.
Sec. 114-3558. Park Hill Drive—Glenview Drive to Foster Drive.
Sec. 114-3559. Park Plaza Drive—Willowmere Drive to Park Avenue.
Sec. 114-3559.5. Park Side Drive—Brook Run Drive to dead end north of East Ovid Avenue.
Sec. 114-3560. Parklawn Drive—Southwest Forty-second Street to dead end west of Southwest Forty-fourth Place.
Sec. 114-3561. Parmer Drive—Fairlane Drive to cul-de-sac east of East First Court.
Sec. 114-3562. Payne Road—Martin Luther King Jr Parkway to Thirtieth Street.
Sec. 114-3563. Payton Avenue—South Union Street to Fleur Drive.
Sec. 114-3564. East Payton Avenue—South Union Street to east city limits.
Sec. 114-3565. Pennsylvania Avenue—East Locust Street to East University Avenue.
Sec. 114-3566. Pennsylvania Avenue—East University Avenue to a point 170 feet north of Cherokee Avenue.

Sec. 114-3567. East Philip Street—South Union Street to dead end.
Sec. 114-3568. Philip Street—South Union Street to Southwest Ninth Street.
Sec. 114-3569. Reserved.
Sec. 114-3569.01. East Pine Avenue—Indianola Avenue to east city limits.
Sec. 114-3570. Pioneer Road—Indianola Avenue to Pioneer Park.
Sec. 114-3571. Plainview Drive—Fortieth Street to Forty-second Street.
Sec. 114-3572. Pleasant Drive—Fifty-sixth Street to Sixty-third Street.
Sec. 114-3573. Reserved.
Sec. 114-3574. Pleasant Street—Ninth Street to Tenth Street.
Sec. 114-3575. Pleasant Street—Tenth Street to Martin Luther King Jr Parkway.
Sec. 114-3576. Pleasant Street—Twenty-fourth Street to Fifty-second Street.
Sec. 114-3577. Pleasant View Circle—Southeast Nineteenth Street to dead end west.
Sec. 114-3578. Pleasant View Drive—South Union Street to Southwest Eighteenth Street.
Sec. 114-3579. East Pleasant View Drive—South Union Street to Southeast Seventeenth Street.
Sec. 114-3580. Reserved.
Sec. 114-3581. Polk Boulevard—Grand Avenue to University Avenue.
Sec. 114-3581.01. Pond View Circle—Brook Ridge Court to dead end.
Sec. 114-3582. Porter Avenue—South Union Street to Fleur Drive.
Sec. 114-3583. East Porter Avenue—South Union Street to Southeast Thirty-second Street.
Sec. 114-3584. Prospect Road—Martin Luther King Jr Parkway to Twenty-seventh Street.
Sec. 114-3585. Prospect Drive—Thirtieth Street to dead end west.
Sec. 114-3586. Raccoon Street—Southeast Second Street to Scott Avenue.
Sec. 114-3587. Railroad Avenue—Dead end east of Southwest Sixty-second Street to Southwest Sixty-third Street.
Sec. 114-3588. East Railroad Avenue—Southeast Seventh Street to dead end east of Southeast Twenty-eighth Street.
Sec. 114-3589. Reserved.
Sec. 114-3590. Randall Place—Forest Avenue to cul-de-sac, south.
Sec. 114-3591. Randolph Street—Southwest Ninth Street to dead end west of Southwest Twelfth Street.
Sec. 114-3592. Raymond Drive—Holland Drive to Beavercrest Drive.
Sec. 114-3593. Ravina Drive—Waverly Drive to Oak Park Avenue.
Sec. 114-3593.1. Register Drive—Army Post Road to Gannett Avenue.
Sec. 114-3594. Reynolds Lane—Farwell Road to Arthur Avenue.
Sec. 114-3595. Richland Drive—Guthrie Avenue to Arthur Avenue.
Sec. 114-3596. East Reigart Street—First Street to Oxford Street.
Sec. 114-3597. Richmond Avenue—York Street to east city limits.
Sec. 114-3598. Reserved.
Sec. 114-3599. Ridge Road—Twenty-eighth Street to Twenty-ninth Street.
Sec. 114-3599.05. Ridgeview Drive—Lakewood Lane to Southeast Thirty-fourth Street.
Sec. 114-3600. Rittenhouse Street—Southwest Ninth Street to Southwest Twenty-eighth Street.
Sec. 114-3601. Reserved.
Sec. 114-3602. River Oaks Drive—Lincoln Place Drive to Southwest Forty-second Street.
Sec. 114-3602.03. River Meadows Circle—River Ridge Road to cul-de-sac east.
Sec. 114-3602.05. River Meadows Drive—King Avenue to River Ridge Road.
Sec. 114-3602.1. River Ridge Road—Southeast Twenty-second Street to cul-de-sac southeast of Riverwoods Avenue.
Sec. 114-3603. Riverview Drive—Ravina Drive to Waverly Drive.
Sec. 114-3604. Riverview Street—Pennsylvania Avenue to dead end west.
Sec. 114-3605. River Vista Drive—Southwest Twelfth Street to dead end west of Southwest Twelfth Street.
Sec. 114-3605.1. Riverwoods Avenue—East Park Avenue to Hartford Avenue.

Sec. 114-3605.05. Robert D Ray Drive—East Locust Street to East Grand Avenue.
Sec. 114-3605.06. Robert D Ray Drive—East Grand Avenue to Filmore Street.
Sec. 114-3606. Robertson Drive—Fifty-first Street to Fifty-sixth Street.
Sec. 114-3607. Robin Drive—Sixty-second Street to Westover Boulevard.
Sec. 114-3608. Roblang Court—Tiffin Avenue to dead end south of Tiffin Avenue.
Sec. 114-3609. Rollins Avenue—Twenty-third Street to Sixty-third Street.
Sec. 114-3610. Ronwood Drive—Cummins Parkway to dead end west.
Sec. 114-3611. Roosevelt Avenue—Pennsylvania Avenue to East Ninth Street.
Sec. 114-3612. Rose Avenue—South Union Street to Southwest Fifty-eighth Street.
Sec. 114-3612.5. Rose Circle—Southwest Fifty-eighth Street to cul-de-sac west.
Sec. 114-3613. East Rose Avenue—South Union Street to dead end east of Southeast Twenty-third Street.
Sec. 114-3614. Rose Hedge Drive—Thirty-sixth Place to Aurora Avenue.
Sec. 114-3615. Royer Street—East Fourteenth Street to dead end east.
Sec. 114-3616. Rutland Avenue—Twenty-eighth Street to Cummins Parkway.
Sec. 114-3616.01. Rutland Drive—Fifty-ninth Street to Cummins Parkway.
Sec. 114-3616.5. Saint Andrews Circle—dead end west of Southeast Twenty-fifth Street to Southeast Twenty-fifth Street.
Sec. 114-3617. Sampson Street—East University Avenue to Hull Avenue.
Sec. 114-3618. St. John's Road—Thirty-first Street to Thirty-seventh Street.
Sec. 114-3619. Sandahl Avenue—North Union Street to East Eighth Street.
Sec. 114-3620. Sani Drive—Huntland Drive to Beaver Avenue.
Sec. 114-3620.5. Sawyers Drive—Hillcrest Drive to Twana Drive.
Sec. 114-3621. Saylor Road—From a point 170 feet north of Cherokee Avenue to East Sheridan Avenue.
Sec. 114-3622. Scandia Avenue—Southeast Third Street to Southeast Seventh Street.
Sec. 114-3623. Scandia Circle—Southeast Third Street to dead end, west.
Sec. 114-3624. School Street—Second Avenue to Fortieth Place.
Sec. 114-3625. Scott Avenue—Southeast First Street to east city limits.
Sec. 114-3626. Searle Street—East University Avenue to Guthrie Avenue.
Sec. 114-3627. Seniomsed Avenue—Southwest Twenty-ninth Street to Southwest Thirty-first Street.
Sec. 114-3628. Seneca Avenue—First Street to Forty-ninth Street.
Sec. 114-3629. East Seneca Avenue—First Street to East Forty-second Street.
Sec. 114-3629.05. Shadow Creek Circle—River Ridge Road to cul-de-sac east.
Sec. 114-3629.1. Shadow Creek Lane—River Ridge Road to cul-de-sac south of Riverwoods Avenue.
Sec. 114-3630. Shady Oak Drive—Thirtieth Street to dead end east of Thirtieth Street.
Sec. 114-3631. Shaw Street—Southeast Fifth Street to dead end east of Southeast Twenty-fifth Court.
Sec. 114-3632. Shawnee Avenue—First Street to Beaver Avenue.
Sec. 114-3633. East Shawnee Avenue—First Street to Colfax Avenue.
Sec. 114-3634. Shawnee Place—Lower Beaver Road to Ardmore Road.
Sec. 114-3635. Sheridan Avenue—First Street to Forty-fourth Street.
Sec. 114-3636. Sheridan Avenue—Fifty-fourth Street to west city limits.
Sec. 114-3637. East Sheridan Avenue—First Street to east city limits.
Sec. 114-3638. Sherman Boulevard—Douglas Avenue to Madison Avenue.
Sec. 114-3639. Sherrick Avenue—Sixty-second Street to west city limits.
Sec. 114-3640. Sherwood Drive—Martin Luther King Jr Parkway to Madison Avenue.
Sec. 114-3640.1. Shoreview Circle—East Army Post Road to dead end.
Sec. 114-3641. Shortview Drive—Elmwood Drive to St. John's Road.
Sec. 114-3641.5. Shriver Avenue—Country Club Boulevard to Fifty-sixth Street.
Sec. 114-3642. Sims Drive—East Thirty-third Court to East Thirty-fifth Street.
Sec. 114-3643. Skyline Drive—Lyndale Drive to dead end west of Forty-fourth Place.

Sec. 114-3644. Skeies Drive—East Twenty-seventh Court to East Twenty-eighth Street.
Sec. 114-3645. Snyder Avenue—Forty-eighth Street to Sixty-first Street.
Sec. 114-3645.1. East Southdale Drive—Indianola Avenue to East County Line Road.
Sec. 114-3646. Southlawn Drive—Southwest Twelfth Street to Fleur Drive.
Sec. 114-3646.1. East Southlawn Drive—Southeast Twenty-fourth Street to east city limits.
Sec. 114-3647. Southdale Drive—Southwest Ninth Street to dead end west of Southwest Eleventh Street.
Sec. 114-3648. Southview Drive—Amos Avenue to dead end south of Luster Lane.
Sec. 114-3649. Spring Street—Southwest Ninth Street to Southwest Fourteenth Street.
Sec. 114-3650. East Spring Street—Southeast Fifth Street to Southeast Thirty-second Street.
Sec. 114-3650.5. Springwood Lane—Brook View Drive to East Fifty-second Street.
Sec. 114-3651. State Avenue—East Twenty-third Street to East Thirty-third Street.
Sec. 114-3652. Stanton Avenue—Fleur Drive to Southwest Thirty-fourth Street.
Sec. 114-3652.1. Star View Street—East Army Post Road to East Pine Avenue.
Sec. 114-3653. Stephenson Way—Chautauqua Parkway to Nash Drive.
Sec. 114-3653.5. Sterling Trace—Southeast Thirty-fourth Street to Southeast Thirty-fifth Street.
Sec. 114-3654. South Union Street—Clay Street to Park Avenue.
Sec. 114-3655. South Union Street—Park Avenue to Army Post Road.
Sec. 114-3656. Stewart Street—East University Avenue to Kinsey Avenue.
Sec. 114-3656.03. Stream Side Circle—from Brook View Drive to west cul-de-sac.
Sec. 114-3657. Summit Street—Irving Street to dead end north.
Sec. 114-3658. Summit Vista Drive—Southwest Twenty-eighth Street to dead end west of Southwest Thirty-second Street.
Sec. 114-3659. Sunset Drive—Fleur Drive to Southwest Twenty-eighth Street.
Sec. 114-3659.05. Sweetwater Drive—Lake Hill Drive to East Pine Avenue.
Sec. 114-3660. Taylor Street—Summit Street to Southwest Ninth Street.
Sec. 114-3661. Terrace Drive—Twenty-eighth Street to Fifty-eighth Street.
Sec. 114-3662. Terrace Road—Grand Avenue to Twenty-eighth Street.
Sec. 114-3663. Thomas Beck Road—Indianola Road to Bell Avenue.
Sec. 114-3664. Thompson Avenue—East Ninth Street to East Thirty-fifth Street.
Sec. 114-3665. Thornton Avenue—South Union Street to Southwest Sixty-third Street.
Sec. 114-3666. East Thornton Avenue—South Union Street to dead end east of Southeast Twenty-fifth Street.
Sec. 114-3667. Thornton Court—Southeast Twentieth Street to dead end west.
Sec. 114-3668. Thornton Drive—Fleur Drive to Southwest Twenty-fourth Street.
Sec. 114-3668.1. Three Lakes Parkway—East Army Post Road to East Pine Avenue.
Sec. 114-3669. Tichenor Street—Dead end south of Alpha Avenue to Guthrie Avenue.
Sec. 114-3670. Tiffin Avenue—Second Avenue to East Fortieth Court.
Sec. 114-3670.1. Timber Hill Court—Riverwoods Avenue to cul-de-sac south.
Sec. 114-3671. Timber Lane—East Fortieth Street to east city limits.
Sec. 114-3671.1. Timberwolf Lane—Moonlight Drive to dead end.
Sec. 114-3672. East Titus Avenue—South Union Street to Southeast Thirty-second Street.
Sec. 114-3673. Titus Avenue—South Union Street to Southwest Thirteenth Street.
Sec. 114-3674. Tomlin Lane—Guthrie Avenue to Arthur Avenue.

Sec. 114-3675. Tonawanda Drive—Grand Avenue to Forty-second Street.
Sec. 114-3676. Tonka Avenue—Southwest Thirty-first Street to Southwest Sixty-third Street.
Sec. 114-3677. Trisha Avenue—East Tenth Street to dead end east.
Sec. 114-3678. Trowbridge Avenue—Southwest Fifth Street to Southwest Ninth Street.
Sec. 114-3679. East Trowbridge Street—Southeast Second Street to Southeast Seventh Street.
Sec. 114-3680. Truber Place—East Miller Avenue to Fleetwood Drive.
Sec. 114-3681. Reserved.
Sec. 114-3682. Tuttle Street—Southwest Fifth Street to Southwest Fourteenth Street.
Sec. 114-3683. Twana Drive—Twenty-ninth Street to Fifty-fourth Street.
Sec. 114-3683.5. East Twana Drive—East Forty-Fifth Street to East Forty-Sixth Street.
Sec. 114-3684. University Avenue—Illinois Street to Sixth Avenue.
Sec. 114-3685. University Avenue—Sixth Avenue to Seventh Street.
Sec. 114-3686. University Avenue—Seventh Street to Thirteenth Street.
Sec. 114-3687. University Avenue—Thirteenth Street to Martin Luther King Jr Parkway.
Sec. 114-3688. University Avenue—Martin Luther King Jr Parkway to Twenty-third Street.
Sec. 114-3689. University Avenue—Twenty-third Street to Twenty-fifth Street.
Sec. 114-3690. University Avenue—Twenty-fifth Street to Twenty-eighth Street.
Sec. 114-3691. University Avenue—Twenty-eighth Street to Thirty-first Street.
Sec. 114-3692. University Avenue—Thirty-first Street to Fifty-fifth Street.
Sec. 114-3693. Reserved.
Sec. 114-3694. University Avenue—Fifty-fifth Street to Sixty-third Street.
Sec. 114-3695. East University Avenue—Illinois Street to east city limits.
Sec. 114-3696. East University Court—East Twentieth Court to East Twenty-first Street.
Sec. 114-3697. Urbandale Avenue—Martin Luther King Jr Parkway to Forty-fourth Street.
Sec. 114-3698. Urbandale Avenue—Forty-fourth Street to Westover Boulevard.
Sec. 114-3699. Ure Street—East University Avenue to dead end north.
Sec. 114-3700. U.S. Highway 65/69.
Sec. 114-3701. Valdez Drive—Dead end east of Lower Beaver Road to Fifty-fourth Street.
Sec. 114-3701.5. East Valdez Drive—Northeast Forty-sixth Street to East Forty-eighth Street.
Sec. 114-3702. Vale Street—Dead end west of Southeast Seventh Street to Southeast Twenty-sixth Court.
Sec. 114-3703. Valley Circle—Winegardner Road to dead end west of Winegardner Road.
Sec. 114-3704. Reserved.
Sec. 114-3705. Vandalia Road—Carlisle Road to Southeast Forty-third Street.
Sec. 114-3706. Vermont Street—University Avenue to Washington Avenue.
Sec. 114-3706.01. Veterans Parkway—Iowa Highway 28 to west city limits.
Sec. 114-3707. Victoria Drive—Thirtieth Street to Lincoln Avenue.
Sec. 114-3708. Villa Vista Drive—Hull Avenue to Henderson Avenue.
Sec. 114-3708.01. Village Run Avenue—East Fifty-second Street to east city limits.
Sec. 114-3708.05. Village Run Drive—East Fifty-second Street to East Douglas Avenue.
Sec. 114-3709. Vilura Parkway—Thirtieth Street to Lower Beaver Road.
Sec. 114-3709.01. Vine Street (eastbound)—Southwest Water Street to Southwest Second Street.
Sec. 114-3709.02. Vine Street (westbound)—Southwest Water Street to Southwest Second Street.
Sec. 114-3710. Vine Street—Southwest Second Street to Southwest Twelfth Street.

Sec. 114-3711. East Vine Street—East/Southeast Sixth Street to East Sixteenth Court.
Sec. 114-3712. Virginia Circle—Southeast Nineteenth Street to dead end west.
Sec. 114-3713. Virginia Avenue—South Union Street to dead end west of Southwest Twenty-third Street.
Sec. 114-3714. Virginia Place—Glenwood Drive to dead end south.
Sec. 114-3715. East Virginia Avenue—South Union Street to cul-de-sac east.
Sec. 114-3716. Wabash Street—Southwest Sixteenth Street to Southwest Seventeenth Street.
Sec. 114-3717. Waco Court—Wakonda Court to dead end west.
Sec. 114-3718. Wade Street—Southwest Ninth Street to Southwest Fourteenth Street.
Sec. 114-3719. Reserved.
Sec. 114-3720. Wakonda Court—Park Avenue to Watrous Avenue.
Sec. 114-3721. Wakonda Drive—Fleur Drive to Wakonda Court.
Sec. 114-3722. Wakonda Parkway—Watrous Avenue to Southwest Sixteenth Street.
Sec. 114-3723. Wakonda View—Fleur Drive to Southwest Twenty-fourth Street.
Sec. 114-3724. Walker Street—East Seventh Street to East Twelfth Street.
Sec. 114-3725. Walker Street—East Twelfth Street to East Fifteenth Street.
Sec. 114-3726. Walker Street—East Fifteenth Street to East Thirtieth Street.
Sec. 114-3727. Wall Avenue—South Union Street to Southwest Thirteenth Place.
Sec. 114-3728. East Wall Avenue—South Union Street to Southeast Thirty-second Street.
Sec. 114-3729. Wallace Lane—Ashby Avenue to Ashby Avenue.
Sec. 114-3730. Walnut Hill Avenue—Fifty-sixth Street to Sixty-second Street.
Sec. 114-3731. Walnut Ridge Drive—from Brook View Drive to Brook View Avenue.
Sec. 114-3732. Walnut Street—Water Street to Second Avenue.
Sec. 114-3733. Walnut Street—Second Avenue to Third Street.
Sec. 114-3734. Walnut Street—Third Street to Fourth Street.
Sec. 114-3735. Walnut Street—Fourth Street to Fifth Avenue.
Sec. 114-3736. Reserved.
Sec. 114-3737. Reserved.
Sec. 114-3738. Reserved.
Sec. 114-3739. Walnut Street—Eighth Street to Ninth Street.
Sec. 114-3740. Walnut Street—Ninth Street to Tenth Street.
Sec. 114-3741. Walnut Street—Tenth Street to Eleventh Street.
Sec. 114-3742. Walnut Street—Eleventh Street to Twelfth Street.
Sec. 114-3743. Walnut Street—Twelfth Street to Thirteenth Street.
Sec. 114-3744. Walnut Street—Thirteenth Street to Fifteenth Street.
Sec. 114-3745. Walnut Street—Fifteenth Street to Sixteenth Street.
Sec. 114-3746. East Walnut Street—Water Street to East First Street.
Sec. 114-3747. East Walnut Street—East First Street to East Second Street.
Sec. 114-3748. East Walnut Street—East Second Street to East Third Street.
Sec. 114-3749. East Walnut Street—East Third Street to East Fourth Street.
Sec. 114-3750. East Walnut Street—East Fourth Street to East Fifth Street.
Sec. 114-3751. East Walnut Street—East Fifth Street to East Fourteenth Street.
Sec. 114-3752. East Walnut Street—East Fourteenth Street to East Eighteenth Street.
Sec. 114-3753. East Walnut Street—East Eighteenth Street to East Thirtieth Street.
Sec. 114-3754. Washington Avenue—Michigan Street to Twenty-fourth Street.
Sec. 114-3755. Washington Avenue—Thirty-fourth Street to College Avenue.
Sec. 114-3756. East Washington Avenue—Dead end west of Pennsylvania Avenue to the dead end of East Thirty-third Street.
Sec. 114-3757. Water Street—Walnut Street to Vine Street.
Sec. 114-3758. Southwest Water Street—Vine Street to Southeast First Street.

Sec. 114-3759. Waterbury Circle—Fifty-sixth Street to North Waterbury Road.
Sec. 114-3760. Waterbury Road—Polk Boulevard to Waterbury Circle.
Sec. 114-3761. Watrous Avenue—South Union Street to Southwest Sixty-third Street.
Sec. 114-3762. East Watrous Avenue—South Union Street to east city limits.
Sec. 114-3763. Watson Avenue—First Street to Saylor Road.
Sec. 114-3764. Watson Powell Jr Way—Third Street to Fourth Street.
Sec. 114-3765. Watson Powell Jr Way—Fourth Street to Fifth Avenue.
Sec. 114-3766. Watson Powell Jr Way—Fifth Avenue to Sixth Avenue.
Sec. 114-3767. Watson Powell Jr Way—Sixth Avenue to Seventh Street.
Sec. 114-3768. Wauwatosa Drive—Park Avenue to Wakonda Court.
Sec. 114-3769. Waveland Court—Forty-fifth Place to Polk Boulevard.
Sec. 114-3770. Waveland Drive—Lanewood Drive to Forty-first Street.
Sec. 114-3771. Waverly Drive—Ravina Drive to Riverview Drive.
Sec. 114-3772. Wayne Street—East University Court to Guthrie Avenue.
Sec. 114-3773. Webster Street—Hillside Avenue to dead end north.
Sec. 114-3774. Wedgewood Road—East Twenty-sixth Street to East Twenty-ninth Street.
Sec. 114-3775. Welbeck Road—Martin Luther King Jr Parkway to Boston Avenue.
Sec. 114-3776. Welker Avenue—Southwest Thirty-ninth Street to Southwest Sixty-third Street.
Sec. 114-3777. West Street—Southwest Ninth Street to Southwest Fourteenth Street.
Sec. 114-3778. West Martin Luther King Jr Parkway—Southwest Second Street to Martin Luther King Jr Parkway.
Sec. 114-3779. Westover Boulevard—Hickman Road to Urbandale Avenue.
Sec. 114-3780. Reserved.
Sec. 114-3781. Westwood Drive—Cul-de-sac east of Fifty-sixth Street to Fifty-sixth Street.
Sec. 114-3782. Whispering Ridge Drive—River Ridge Road to King Avenue.
Sec. 114-3783. Williams Court—Williams Street to East Forty-second Street.
Sec. 114-3784. Williams Street—Dean Avenue to East Douglas Avenue.
Sec. 114-3785. Willow Creek Avenue—Southwest Forty-second Street to west city limits.
Sec. 114-3786. Willowmere Circle—Southwest Fortieth Street to dead end west.
Sec. 114-3787. Willowmere Drive—Dead end north of Park Plaza Drive to Southwest Sixty-third Street.
Sec. 114-3788. Wilmers Avenue—Southeast Third Street to Southeast Fifth Street.
Sec. 114-3789. Wilson Avenue—East Fourteenth Street to Glenbrook Drive.
Sec. 114-3790. Windsor Drive—Fifty-eighth Street to Sixty-third Street.
Sec. 114-3791. Winegardner Road—Dead end south of Enden Lane to East University Avenue.
Sec. 114-3792. Winona Avenue—Dead end east of Southwest Sixty-second Street to Southwest Sixty-third Street.
Sec. 114-3793. Wisconsin Avenue—North Union Street to east city limits.
Sec. 114-3794. Witmer Parkway—Thirty-fourth Street to Beaver Avenue.
Sec. 114-3795. Witmer Street—Twenty-seventh Street to Twenty-eighth Street.
Sec. 114-3796. Wolcott Avenue—Southwest Ninth Street to Southwest Thirty-seventh Street.
Sec. 114-3796.5. Wolcott Circle—Southwest Fifty-sixth Street to cul-de-sac west.
Sec. 114-3796.7. Woodbury Circle—Walnut Ridge Drive to the dead end north of Walnut Ridge Drive.
Sec. 114-3797. Woodland Avenue—Tenth Street to Fifteenth Street.
Sec. 114-3798. Woodland Avenue—Fifteenth Street to Martin Luther King Jr Parkway.
Sec. 114-3799. Woodland Avenue—Martin Luther King Jr Parkway to Twenty-eighth Street.

Sec. 114-3800. Woodland Avenue—Twenty-eighth Street to Thirty-fifth Street.
Sec. 114-3801. Woodland Avenue—Thirty-fifth Street to Forty-second Street.
Sec. 114-3802. Woodland Avenue—Harwood Drive to Fifty-sixth Street.
Sec. 114-3803. Woodland Road—Fifty-seventh Street to Sixty-third Street.
Sec. 114-3804. Woodlawn Drive—Forty-second Street to Foster Drive.
Sec. 114-3805. Woods Drive—Thirty-eighth Place to Tonawanda Drive.
Sec. 114-3806. Wrenwood Drive—Twenty-sixth Street to Twenty-seventh Street.
Sec. 114-3807. Wright Street—Hull Avenue to East Douglas Avenue.
Sec. 114-3808. York Street—Fremont Street to East Aurora Avenue.
Sec. 114-3809. Zwart Road—Forest Drive to Twenty-eighth Street.
Secs. 114-3810—114-3830. Reserved.

Division 10. Reserved

Secs. 114-3831—114-4174. Reserved.

Division 11. Odd/Even Side Snow Parking Zones

Sec. 114-4175. Designated.
Secs. 114-4176—114-4179. Reserved.

Division 12. Central Business District Boundary Description

Sec. 114-4180. Designated.

ARTICLE I. IN GENERAL

Sec. 114-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alley applies to that part of a public highway extending into or intersecting blocks between streets.

Arterial is synonymous with the term "through" or "thru" when applied to city streets and highways.

Authorized emergency vehicles means vehicles of the fire department, police vehicles, ambulances and emergency vehicles owned or operated by the United States, the state or any subdivision of the state or any municipality therein, and such privately owned or operated ambulances or rescue or disaster vehicles as are designated or authorized by the director of the state department of transportation under I.C. § 321.451.

Bicycle means a metal device consisting of but not limited to two wheels arranged tandem, united by a frame with the seat of the operator upon it, propelled by the feet of the operator acting on pedals connected with one of the axles and steered by a handlebar guiding the direction of the front wheel. The term "bicycle" includes every device propelled by human power upon which any person may ride, having two tandem wheels, either of which is over 16 inches in diameter. This term also includes every tricycle with a wheel which is over 24 inches in diameter.

Bicyclist means a person operating a bicycle as defined by the Iowa State Code.

Business district means the territory contiguous to and including a street or highway when 50 percent or more of the frontage thereon for a distance of 300 feet or more is occupied by buildings in use for business.

Connecting roadway means that roadway allowing access from one street to another street or from one direction of a divided highway to another direction.

Controlled access facility includes the terms "fully controlled access facility" and "partially controlled access facility." Such highways or streets may be freeways open to use by all customary forms of street and highway traffic or they may be parkways from which trucks, buses, and other commercial vehicles shall be excluded.

Crosswalk means that portion of a roadway ordinarily included within the prolongation or connection of the lateral lines of sidewalks at intersections, or any portion of a street distinctly indicated for pedestrian crossing by lines or other markings on the surface.

Curb applies to the outer boundaries or the raised margins of the traveled portion of a street.

Curb bump-out means an expansion of the curb line, painted or raised, into the lane of the roadway adjacent to the curb (typically a parking lane) for a portion of a block either at an intersection or mid-block.

Delinquent parking ticket means a parking ticket that has not been paid within 30 days of issuance.

Driver means every person who drives or is in actual physical control of a vehicle.

Electric vehicle charging station means a public or private parking space that is served by battery charging station equipment that has as its primary purpose the transfer of electric energy (by conductive or inductive means) to a battery or other energy storage device in an electric vehicle.

Electric vehicle charging station usage means active charging of an electric vehicle, at a public or private parking space, that is served by battery charging station equipment. Active charging requires that the vehicle parked in the space is being electronically charged by the installed equipment (by conductive or inductive means).

Flashing beacon means a section of a standard traffic signal head having an amber or red lens in each face, which is illuminated by intermittent flashes.

Fully controlled access facility means a highway, street or road which gives preference to through

traffic by providing access connections at interchanges with selected public roads only and by prohibiting crossings at grade or direct access at driveway connections; owners or occupants of abutting land or other persons have no right or easement of access, light, air or view because of the fact that their property abuts upon such controlled access facility or for any other reason.

Habitual violator means a person who has allowed four or more parking tickets issued on a single motor vehicle to become delinquent.

Intersection or *street intersection* means the area embraced within the prolongation or connection of the lateral curblines or, if none, the lateral boundary lines of the roadways of two streets which join one another at or approximately at right angles, or the area within which vehicles traveling upon different streets joining at any other angles may come in conflict.

Laned highway means a highway or street, the roadway of which is divided into three or more clearly marked lanes for vehicular traffic.

Metal tire means every tire, the surface of which in contact with the highway is wholly or partly of metal or other hard, nonresilient material.

Motor truck means every motor vehicle designed primarily for carrying livestock, merchandise, freight of any kind, or over nine persons as passengers.

Motor vehicle means every self-propelled device in, upon, or by which any person or property is or may be transported or drawn upon a public highway or street. Terms such as "car," "automobile," "truck," "bus," and "motorcycle" are synonymous with the term "motor vehicle."

Motorcycle means every motor vehicle having a saddle or seat for the use of the rider and designed to travel on not more than three wheels in contact with the ground, including a motor scooter and a bicycle with motor attached, but excluding a tractor.

Multi-use recreational trail means a way or place, the use of which is controlled by the city as an owner of real property, designated by the multi-use recreational trail maps, as approved by resolution by the city council, and no multi-use recreational trail shall be considered as a street or highway.

Operator means every person who drives or is in actual physical control of a vehicle upon a highway.

Operator of a bicycle or *person operating a bicycle* includes a minor who has the use and control of a bicycle with the knowledge and consent of the minor's parent or guardian.

Park or *parking* means the standing of a vehicle, whether occupied or not, upon a street otherwise than momentarily for the purpose of and while actually engaged in receiving or discharging passengers, loading or unloading of goods or merchandise or in obedience to traffic regulations, signs or signals or an involuntary stopping of the vehicle because of causes beyond the control of the operator.

Park roads means roads within city parks, the use of which is controlled by the city as an owner of real property in accordance with I.C. § 321.251, and no park road shall be considered as a street or highway.

Parking meter means and includes any device or multi-space meter not inconsistent with this chapter placed or erected for the regulation of parking by authority of this chapter. Each parking meter space or zone installed shall indicate by proper legend the legal parking time established by the city.

Parking meter district means that area designated by ordinance which shall be subject to this chapter and includes those streets or parts of streets upon which parking meters are installed and in operation. A district may include one or more time and rate zones.

Parking meter space means any space or zone so designated within a parking meter district. More than one motorcycle may be parked in a parking meter space, provided each such motorcycle is parked with the rear wheel no more than 18 inches from the curb and with the front of such motorcycle facing away from that curb. No motorcycle may share a parking meter space with a motor vehicle having more than two

wheels. No motorcycle shall extend beyond the limits of the parking space in violation of section 114-640 of this chapter.

Partially controlled access facility means a highway or street especially designed for through traffic, and over, from or to which owners or occupants of abutting land or other persons have only a controlled right or easement of access, light, air or view because of the fact that their property abuts upon such controlled access facility or for any other reason.

Pedestrian means a person going on foot or a person using a pedestrian conveyance.

Pedestrian conveyance means any human-powered device by which a pedestrian may move other than by walking or by which a pedestrian may move another person, including but not limited to a wheelchair, stroller, skateboard, scooter, or other similar device. *Pedestrian conveyance* also includes an electric personal assistive mobility device, and any other device used to move a person sitting or standing on the device regardless of whether the device is powered by an electric motor, so long as the electric motor produces less than 750 watts. *Pedestrian conveyance* does not include a bicycle.

Pedestrian crossing signals means traffic signals erected for the purpose of regulating or stopping traffic in order that pedestrians might cross a street.

Pneumatic tire means every tire in which compressed air is designed to support the load.

Police officer or *peace officer* means every officer of the city police department or any officer authorized to direct or regulate traffic or to make arrests for violations of traffic regulations in addition to its meaning in I.C. § 801.4(7).

Private road or driveway means every way or place in private ownership and used for vehicular travel by the owner and those having express or implied permission from the owner, but not by other persons.

Railroad means a carrier of persons or property upon cars, other than streetcars, operated upon stationary rails.

Railroad signal means any device, whether manually, electrically or mechanically operated, by which traffic is directed to stop at a railroad crossing by means of alternating flashing red lights and when deemed necessary by use of gates.

Residence district means the territory contiguous to and including a highway not comprising a business district or a school district, where 40 percent or more of the frontage on such highway for a distance of 300 feet or more is occupied by dwellings or dwellings and buildings in use for business.

Right-of-way means the privilege of the immediate use of the highway.

Road work zone means the portion of a street or highway which is identified by posted or moving signs as the site of construction, maintenance, survey, or utility work. The zone starts upon meeting the first sign identifying the zone and continues until a posted or moving sign indicates that the work zone has ended.

Roadway means that portion of a highway improved, designed or ordinarily used for vehicular travel.

Safety zone means the area or space officially set apart within a roadway for the exclusive use of pedestrians and which is protected or is so marked as to be plainly visible at all times while set apart as a safety zone.

School crossing signals means traffic signals erected for the purpose of regulating or stopping traffic in order that a school child might cross a street.

School district means the territory contiguous to and including a highway for a distance of 200 feet in either direction from a school facility.

Semitrailer means every vehicle without motive power designed for carrying persons or property and for being drawn by a motor vehicle and so constructed that some part of its weight and that of its load rests upon or is carried by another vehicle.

Sidewalk means that portion of a street between the curblines, or the lateral lines of a roadway, and the adjacent property lines intended for the use of pedestrians.

Sign, advertising means a sign that is not an identification or directional sign.

Sign, building or wall means a sign other than a roof sign, which is supported by a building or wall, and is further defined as follows:

(1) *Sign, fascia* means a single-faced building or wall sign which is parallel to its supporting wall.

(2) *Sign, projecting* means a building or wall sign other than a fascia sign.

Sign, directional means a sign for the purpose of traffic control which is located on private property.

Sign, identification means one of the following types of signs:

(1) *Type one* means an on-premises sign that displays no more than the name, numerical address and crest or insignia of an occupant of the premises.

(2) *Type two* means an on-premises sign that displays no more than the name, occupation or profession of an occupant of the premises, name of any building on the premises or the trademark of the occupant.

Sign, internally illuminated means a sign illuminated by an artificial light source not visible but which reaches the eye through a diffusing medium.

Snowmobile means any self-propelled vehicle designed for travel on snow, ice or land steered by wheels, skis or runners and propelled by endless belt-type tread.

Solid tire means every tire of rubber or other resilient material which does not depend upon compressed air for the support of the load.

Stand or *standing* means the halting of a vehicle, whether occupied or not, other than for the purpose of and while actually engaged in receiving or discharging passengers.

Stop or *stopping* means:

(1) When required, the complete cessation of movement.

(2) When prohibited, any stopping of a vehicle except when necessary to avoid conflict with other traffic or in compliance with the direction of a police officer or traffic control sign or signal.

Street or *highway* means the entire width between property lines of every way or place of whatever nature when any part thereof is open to the use of the public, as a matter of right, for purposes of vehicular traffic.

Street intersection means the area embraced within the prolongation or connection of the lateral curblines or, if none, the lateral boundary lines of the roadways of two streets which join one another at or approximately at right angles, or the area within which vehicles traveling upon different streets joining at any other angles may come in conflict.

Through street or highway means every street or highway or portion thereof at the entrances to which vehicular traffic from intersecting streets and highways is required by law to stop or yield before entering or crossing the street or highway and when stop or yield signs are erected as provided in this chapter or such entrances are controlled by a police officer or traffic control signal.

Time means Central Standard Time or Central Daylight Saving Time as may be in current use in this city.

Time zone means that period of time during which a vehicle may park at a parking meter as designated by ordinance or other sections of this chapter.

Traffic means pedestrians, ridden or herded animals, vehicles, and other conveyances and devices, either singly or together, while using any street for purposes of travel, standing, stopping or parking.

Traffic control devices means all signs, signals, markings and devices not inconsistent with this chapter placed or erected by authority of the city

council or the official having jurisdiction, for the purpose of regulating, warning or guiding traffic.

Traffic control signal means any device, whether manually, electrically or mechanically operated, by which traffic is alternately directed to stop and to proceed.

Trailer means every non-motorized device designed for carrying persons or property and designed to be drawn by a motor vehicle.

Travel trailer means every non-motorized device used, manufactured or constructed to permit its use as a conveyance upon the public streets and highways and designed to permit its use as a place of human habitation by one or more persons.

Vehicle means every self-propelled device in, upon, or by which any person or property is or may be transported or drawn upon a public highway or street, excepting devices moved by human power, including a low-speed electric bicycle and a pedestrian conveyance or used exclusively upon stationary rails or tracks. Terms such as "car," "automobile," "truck," "bus" and "motorcycle" shall be synonymous with the term "vehicle."
(C62, § 30-1; O.8084, 8351, 8593, 8810; C75, C79, C85, § 27-1; O.10,937, 11,504; C91, § 27-1; O.11,650, 14,141, 14,374, 15,577, 15,583, 16,122, 16,151, 16,409, 16,419)

Cross reference—Definitions generally, § 1-2.

State law reference—Similar provisions, I.C. § 321.1.

Sec. 114-2. Reserved.

Sec. 114-3. Identification of funeral processions.

A funeral composed of a procession of vehicles shall be identified as such by the lighting of vehicle headlights, which shall be kept lighted during the time the vehicles are in the procession.
(C62, § 30-3; O.8084; C75, C79, C91, § 27-3)

Sec. 114-4. Driving through processions.

No driver of a vehicle shall drive between the vehicles comprising a funeral or other authorized procession while they are in motion and when such vehicles are conspicuously designated as required in this article. This section shall not apply at intersections where traffic is controlled by traffic control signals or police officers.
(C62, § 30-4; O.8084; C75, C79, C91, § 27-4)

Sec. 114-5. Driving in processions.

Each driver in a funeral or other procession shall drive as near to the right-hand edge of the roadway as practicable and safe.
(C62, § 30-5; O.8084; C75, C79, C91, § 27-5)

Sec. 114-6. Use of coasters, roller skates and similar devices restricted.

No person upon roller skates or riding in or by means of any coaster, toy vehicle or similar device shall go upon any roadway except while crossing a street at a crosswalk and except upon streets set aside as play streets when and as authorized by city ordinance.
(C62, § 30-6; O.8084; C75, C79, C91, § 27-6)

Sec. 114-7. Coasting or sliding in streets.

No person shall coast or slide upon any sled, device or vehicle upon or across any traveled street or highway unless such highway shall have been closed temporarily by authority of the city council for the purpose of permitting sliding or coasting thereon.
(C62, § 30-7; O.8084; C75, C79, C91, § 27-7)

Sec. 114-8. Climbing on vehicles prohibited.

No person shall jump or climb or hang upon any moving vehicle on any street, alley or other public ground or place without the permission of the driver.
(C62, § 30-8; O.8084; C75, C79, C91, § 27-8)

Sec. 114-9. Clinging to moving vehicle.

No person riding on any motorcycle, bicycle, sled, roller skates, coaster, scooter or similar device shall cling to or attach himself or herself or his or her vehicle to any other moving vehicle upon the public highway.
(C62, § 30-9; O.8084; C75, C79, C91, § 27-9)

Sec. 114-10. Boarding or alighting from moving vehicles.

No person shall board or alight from any vehicle on the public highway while it is in motion.
(C62, § 30-10; O.8084; C75, C79, C91, § 27-10)

Sec. 114-11. Riding on portion of vehicle not intended for passengers.

No person shall ride on any vehicle upon any portion thereof not designed or intended for the use of passengers. This section shall not apply to an employee engaged in the necessary discharge of a duty or to a person riding within a truck body in space intended for merchandise.
(C62, § 30-11; O.8084; C75, C79, C91, § 27-11)

Secs. 114-12, 114-13. Reserved.

Sec. 114-14. Intersections sight distance at street intersection.

(a) On a corner lot where a setback or side yard exists, except for utility poles, fire hydrants, traffic signals, parking meters, standard United States postal and mail boxes, street tree trunks in approved locations, legally parked cars, and traffic control devices, no objects which obstruct vision shall be allowed between a height of two feet and ten feet above the edge of the traveled roadway grades of intersecting streets within the vision clearance triangular, whose two sides are measured based on Intersection Sight Distance Table in subsection (c) of this section, and whose third side is a line connecting said two sides (See the 2-Way Stop Control figures in subsection (d) of this section for a visual depiction). For intersections controlled all ways by traffic control devices or traffic control signals, the first vehicle stopped on one approach should be visible to the first vehicle stopped on each of the other approaches (See the All-Way Stop Control figure and Signal Control figure in the Intersection Sight Distance figures in subsection (d) of this section for a visual depiction.

(b) At a street intersection involving one-way streets, special sight distance conditions, unusual intersection configuration, such as right turn on red at a traffic signal or other unusual conditions, the city engineer shall determine the limits of the intersection sight distance zone. Such intersections include but are not limited to:

(1) Large parkways.

(2) Medians dividing the street.

(3) Property at a higher grade than street level.

(4) Y intersections.

(5) T intersections.

(6) Offset intersections.

(7) Roundabouts.

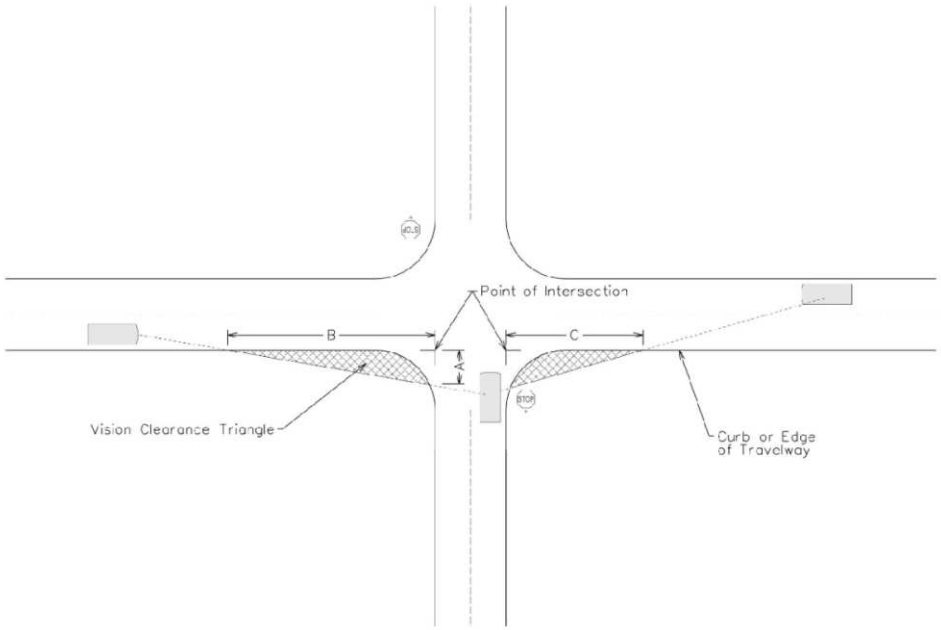
(c) Intersection sight distance table.

Posted Speed Limit on Major Roadway (mph)	*Intersection Sight Distance (ft.)*								
	# of Lanes on Major Roadway								
		2 Lanes		*3 Lanes*		*4 Lanes*		*5 Lanes*	
	A	*B*	*C*	*B*	*C*	*B*	*C*	*B*	*C*
20	15	170	130	170	100	170	85	170	75
25	15	200	155	200	125	200	100	200	90
30	15	235	180	235	145	235	120	235	105
35	15	270	205	270	165	270	135	270	120
40	15	300	230	300	185	300	155	300	135
45	15	335	255	335	205	335	170	335	150

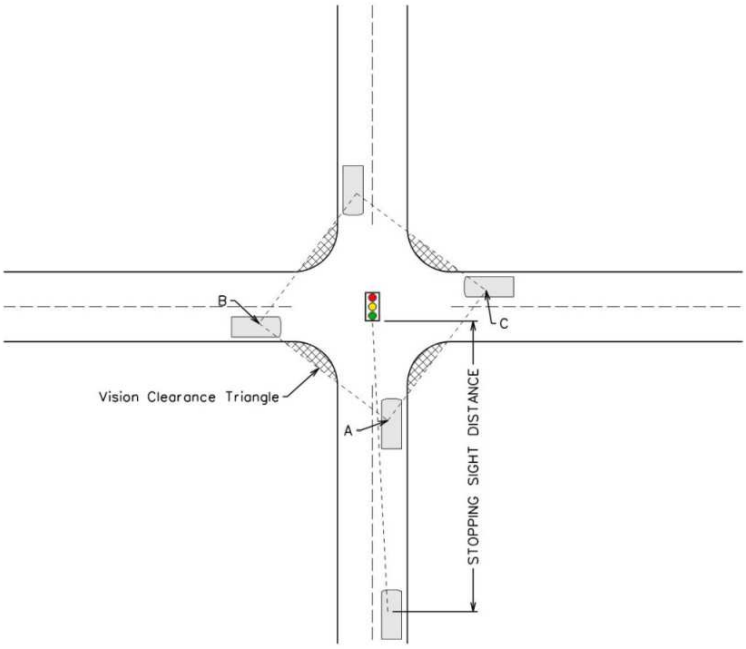
[The next page is CD114:72.1]

(d) Intersection sight distance figures.

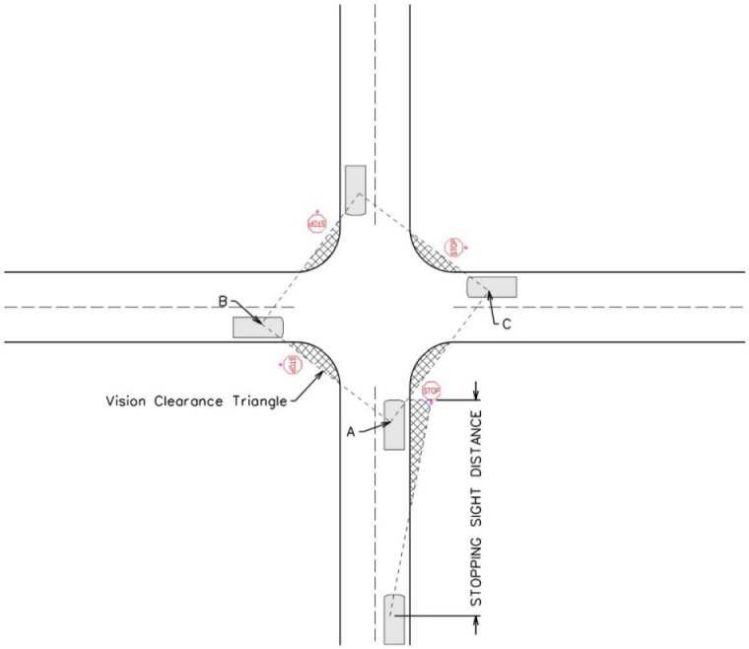
2-Way Stop Control



Signal Control



All-Way Stop Control



(C62, § 30-14; O.8084; C75, C79, C91, § 27-14; O.10,693, 15,925)

Cross reference—Streets, sidewalks, skywalks and other public places, ch. 102.

Sec. 114-14.01. Removal of vision obstructions.

(a) Except as provided in subsection (b) of this section, when the city engineer inspects an intersection and finds a violation of section 114-14 of this article, the adjoining property owner shall be directed by certified mail to remove the vision obstruction within 15 days of receipt of the notice to remove the obstruction. If the adjoining property owner fails to remove the obstruction, the city engineer shall report the violation to the public works director who shall cause the obstruction to be removed, and the public works director shall report the costs to the city council for assessment against the property pursuant to I.C. § 364.12(3)(h).

(b) When the city engineer inspects an intersection and finds an obstruction in violation of section 114-14 of this article and determines that a hazardous condition exists which constitutes an immediate danger to public safety, such obstruction shall be immediately reported to the forestry division of the public works department for enforcement action pursuant to section 122-10 or section 42-360 of this Code.

(C79, § 27-14.01; O.10,693; C91, § 27-14.01; O.11,650, 11,952, 15,925)

Sec. 114-14.02. Obstruction of enforcement.

No person shall hinder, obstruct or otherwise interfere with the agents or employees of the engineering department or the public works department while engaged in carrying out this chapter.

(C91, § 27-14.02; O.11,952)

Sec. 114-15. Rental company responsibilities—Parking violations.

Whenever a rental vehicle is involved in a parking violation described in this chapter com-

mitted by a customer or employee of the rental company, the company shall be chargeable with the violation and shall be required to pay any parking fine resulting from such violation if not paid by the violator.
(O.14,244)

Sec. 114-16. Reserved.

Sec. 114-17. Misdemeanor to violate registration provisions.

A person shall not drive or move, nor shall an owner knowingly permit to be driven or moved, upon the highway a vehicle of a type required to be registered under this chapter which is not registered, or for which the appropriate fees have not been paid, except as provided in Iowa Code § 321.109, subsection 3.
(O.15,808)

State law reference—Similar provisions, I.C. § 321.17.

Secs. 114-18—114-20A. Reserved.

Sec. 114-20B. Proof of security against liability—Driving without liability coverage.

Except as otherwise provided in Iowa Code Chapter 321 or 321A, a person shall not drive a motor vehicle on the highways of this state unless financial liability coverage, as defined in Iowa Code § 321.1, subsection 24B, is in effect for the motor vehicle and unless the driver has in the motor vehicle the proof of financial liability coverage card issued for the motor vehicle, or if the vehicle is registered in another state, other evidence that financial liability coverage is in effect for the motor vehicle. A proof of financial liability coverage card may be produced in paper or electronic format. Acceptable electronic formats include electronic images displayed on a cellular telephone or any other portable electronic device that has a display screen with touch input or a miniature keyboard.
(O.15,808)

State law reference—Similar provisions, I.C. § 321.20B.

Secs. 114-21—114-31. Reserved.

Sec. 114-32. Registration card carried and exhibited—Exception.

(a) A vehicle's registration card shall at all times be carried in the vehicle to which it refers and shall be shown to any peace officer upon the officer's request.

(b) This section shall not apply when the registration card is being used for the purpose of making application for renewal of registration or upon a transfer of registration for that vehicle.
(O.15,808)

State law reference—Similar provisions, I.C. § 321.32.

Secs. 114-33—114-36. Reserved.

Sec. 114-37. Display of plates.

(a) Registration plates issued for a motor vehicle other than an autocycle, motorcycle, motorized bicycle, or truck tractor shall be attached to the motor vehicle, one in the front and the other in the rear. The registration plate issued for an autocycle, motorcycle, or other vehicle required to be registered hereunder shall be attached to the rear of the vehicle. The registration plate issued for a truck tractor shall be attached to the front of the truck tractor. The special plate issued to a dealer shall be attached on the rear of the vehicle when operated on the highways of this state.

(b) Registration plates issued for a motor vehicle which is model year 1948 or older, and reconstructed or specially constructed vehicles built to resemble a model year 1948 vehicle or older, other than a truck registered for more than five tons, autocycle, motorcycle, or truck tractor, may display one registration plate on the rear of the vehicle if the other registration plate issued to the vehicle is carried in the vehicle at all times when the vehicle is operated on a public highway.

(c) It is unlawful for the owner of a vehicle to place any frame around or over the registration plate which does not permit full view of all numerals and letters printed on the registration plate.
(O.15,808)

State law reference—Similar provisions, I.C. § 321.37.

Sec. 114-38. Plates—Method of attaching—Imitations prohibited.

Every registration plate shall at all times be securely fastened in a horizontal position to the vehicle for which it is issued so as to prevent the plate from swinging and at a height of not less than 12 inches from the ground, measuring from the bottom of the plate, in a place and position to be clearly visible and shall be maintained free from foreign materials and in a condition to be clearly legible. An imitation plate or plates imitating or purporting to imitate the official registration plate of any other state or territory of the United States or of any foreign government shall not be fastened to the vehicle.
(O.15,808)

State law reference—Similar provisions, I.C. § 321.38.

Secs. 114-39—114-71. Reserved.

ARTICLE II. RAILROADS*

Sec. 114-72. Signs at crossings.

Any person operating any railroad within the city shall place signs in accordance with the requirements as stated in the state manual on uniform traffic control devices.
(C42, § 103-1; C54, C62, § 45-1; C75, C79, C91, § 19-72)

Sec. 114-73. Sounding of bell or horn at crossings generally; reducing speed.

The conductor and engineer of any locomotive engine, car, or cars attached thereto shall cause the engine bell or horn to be sounded upon the approach of the locomotive whenever any person, domestic animal or motor vehicle may be upon or approaching the railroad track and, if necessary to avoid danger, reduce the speed of such locomotive.
(C42, § 103-2; C54, C62, § 45-2; C75, C79, C85, § 19-73; O.11,109; C91, § 19-73)

***Cross reference—**Businesses, ch. 30.

Sec. 114-74. Sounding of bells or whistles in switching yards.

No person shall cause any bell or whistle on any railroad locomotive within the switching yards in the city to be sounded, except within a reasonable distance before approaching a street crossing, and such person must cease sounding such bell or whistle after passing over such street crossing.
(C42, § 103-5; C54, C62, § 45-3; C75, C79, C91, § 19-74)

Secs. 114-75, 114-76. Reserved.

Sec. 114-77. Cars in motion.

No person, except officers and employees connected therewith and passengers departing and arriving thereon, shall get on or attempt to get on or off of any railroad car or locomotive engine while the car or engine shall be in motion.
(C42, § 111-6; C54, C62, § 45-6; C75, C79, C91, § 19-77)

Sec. 114-78. Use of boxcars or movable structures for boarding or sleeping purposes.

No railway company or other corporation or person shall permit the use of any boxcar or other temporary movable structure, erected or maintained upon any railway track or right-of-way of any railway company within the city limits, for boarding or sleeping purposes or permit any of its employees or other persons to be quartered, lodged or boarded in any such car or structure. Nothing in this section, however, shall be construed to prevent companies operating their regular sleeping and Pullman car services or the use of other cars for boarding and lodging purposes while in transit through the city.
(C42, § 103-12; C54, C62, § 45-7; C75, C79, C91, § 19-78)

Sec. 114-79. Cars containing offensive or dangerous matter.

No cars owned, controlled, operated or in charge of any railway company which are loaded with cattle, hogs, sheep or which contain decayed fruit, vegetables, manure, filth or other offensive or dangerous substances shall be permitted to remain upon any railway track or sidetrack within 200 feet of any building used for dwelling purposes within the corporate limits for more than a period of two hours.
(C42, § 35-17; C54, C62, § 45-8; C75, C79, C91, § 19-79)

Sec. 114-80. Reserved.

Sec. 114-81. Mechanical signal devices.

Unless otherwise provided in this article, the suitable mechanical signal devices required in this article shall consist of automatic electric flashing light signals combined with a warning bell.
(C42, § 103-15; O.5357, 5409; C54, C62, § 45-10; C75, C79, C91, § 19-81)

Sec. 114-82. Continuous operation or flagperson required upon entering streets or highways.

No person shall cause or permit any railroad locomotive or engine or any railroad car propelled by a railroad locomotive or engine to enter the traveled portion of any street or public highway within the city where one or more mechanical signal devices required in this article have been installed, unless:

(1) The mechanical signal device has been in continuous operation for at least 20 seconds immediately prior to such entry; or

(2) A flagperson has been positioned prior to such entry and remains in position at time of entry to warn oncoming vehicular traffic of the approach of the railroad locomotive, engine, or railroad car.

(C62, § 45-10.01; O.7843; C75, C79, C91, § 19-82)

Sec. 114-83. Displacing flagperson or gates.

The suitable mechanical signal devices required in this article shall meet the specifications of the state department of transportation and the

state manual on uniform traffic control devices and shall be in lieu of crossing flagpersons or gates unless otherwise stated.
(C42, §§ 103-10, 103-16, 103-18; O.5357, 5368; C54, C62, § 45-11; C75, C79, § 19-83; O.10,673; C91, § 19-83)

Sec. 114-84. Indemnification of city.

The railroad companies mentioned in this article shall hold the city harmless from and indemnified against all claims, damages and causes of action arising from or growing out of the erection, maintenance or use of signals.
(C42, § 103-36; O.5357, 5409; C54, C62, § 45-12; C75, C79, C91, § 19-84)

Sec. 114-85. Avenue Frederick M. Hubbell crossing.

A suitable mechanical signal device as defined in section 114-81 of this article, and short arm gates constructed according to the specifications and standards of the state department of transportation shall be erected, maintained and operated by the Union Pacific Company at the intersection of the main line tracks with Avenue Frederick M. Hubbell.
(C42, § 103-14; C54, C62, § 45-13; C75, C79, § 19-85; O.10,673; C91, § 19-85; O.14,428)

Sec. 114-86. Dean Avenue crossing.

A suitable mechanical signal device as defined in section 114-81 of this article, and short arm gates constructed according to the specifications and standards of the state department of transportation shall be erected, maintained and operated by the Union Pacific Company at the intersection of their tracks on East Twentieth Street with Dean Avenue.
(C54, C62, § 45-14; C75, C79, § 19-86; O.10,673; C91, § 19-86; O.14,428)

Sec. 114-87. Capitol Avenue crossing.

A suitable mechanical signal device shall as defined in section 114-81 of this article, and short arm gates constructed according to the specifications and standards of the state department of transportation be erected, maintained and operated by the Union Pacific Company at the intersection of the main line tracks with Capitol Avenue.
(C42, § 103-14; C54, C62, § 45-15; C75, C79, § 19-87; O.10,673; C91, § 19-87; O.14,428)

Sec. 114-88. Des Moines Street crossing.

A suitable mechanical signal device as defined in section 114-81 of this article, and short arm gates constructed according to the specifications and standards of the state department of transportation shall be erected, maintained and operated by the Union Pacific Company at the intersection of the main line tracks with Des Moines Street.
(C42, § 103-14; C54, C62, § 45-16; C75, C79, § 19-88; O.10,673; C91, § 19-88; O.14,428)

Sec. 114-89. East Fifth Street crossings.

(a) A suitable mechanical signal device shall be erected, maintained and operated by the Iowa Interstate Railroad Company at the intersection of its tracks on East Vine Street with East Fifth Street.

(b) A suitable mechanical signal device shall be erected, maintained and operated by the Norfolk & Southern Railroad Company at the intersection of its tracks between East Court Avenue and East Vine Street with East Fifth Street.
(C42, § 103-17; C54, C62, § 45-17; C75, C79, § 19-89; O.10,673; C91, § 19-89; O.14,428)

Secs. 114-90, 114-91. Reserved.

Sec. 114-92. East Fourth Street crossing.

A suitable mechanical signal device shall be erected, maintained and operated by the Burlington Northern & Santa Fe Railroad Company at the intersection of its tracks on East Vine Street with East Fourth Street.
(C54, C62, § 45-20; C75, C79, § 19-92; O.10,673; C91, § 19-92; O.14,428)

Sec. 114-93. East Grand Avenue crossing.

A suitable mechanical signal device as defined in section 114-81 of this article, and short arm gates constructed according to the specifications

and standards of the state department of transportation shall be erected, maintained and operated by the Union Pacific Railroad Company at the intersection of the main line tracks with East Grand Avenue.
(C42, § 103-14; C54, C62, § 45-21; C75, C79, § 19-93; O.10,673; C91, § 19-93; O.14,428)

Sec. 114-94. Reserved.

Sec. 114-95. Easton Boulevard crossing.

A suitable mechanical signal device shall be erected, maintained and operated by the Union Pacific Railroad Company at the intersection of the main line tracks with Easton Boulevard.
(C42, § 103-14; C54, C62, § 45-23; C75, C79, § 19-95; O.10,673; C91, § 19-95; O.14,428)

Sec. 114-96. Reserved.

Sec. 114-97. East Third Street crossing.

A suitable mechanical signal device shall be erected, maintained and operated by the Iowa Interstate Railroad Company at the intersection of its tracks on East Vine Street with East Third Street.
(C42, § 103-17; C54, C62, § 45-25; C75, C79, § 19-97; O.10,673; C91, § 19-97; O.14,428)

Sec. 114-98. Southeast Thirtieth Street crossings.

A suitable mechanical signal device shall be erected, maintained and operated by Norfolk & Southern Railroad Company at the intersection of its tracks at East Thirtieth Street at CB&Q Street.
(C79, § 27-98; O.10,673; C91, § 19-98; O.14,428)

Sec. 114-99. East Thirty-fourth Street crossing.

In order to promote the public safety and general welfare, the Union Pacific Railroad Company is ordered to erect, maintain and operate suitable mechanical signal devices as defined in section 114-81 of this article, and short arm gates constructed according to the specifications and standards of the state department of transportation at the intersection of the tracks of the railroad on Southeast Thirty-fourth Street in the city.
(C42, § 103-28; O.5554; C54, C62, § 45-26.01; C75, C79, § 19-99; O.10,673; C91, § 19-99; O.14,428)

Sec. 114-100. Reserved.

Sec. 114-101. Reserved.

Editor's note—Ord. No. 14,428, § 1, adopted April 11, 2005, repealed § 114-101 which pertained to East Vine Street crossing and derived from Code 1954; Code 1962, § 45-28; Code 1975; Code 1979, § 19-101; Ord. No. 10,673; and Code 1991, § 19-101.

Sec. 114-102. East Walnut Street crossing.

A suitable mechanical signal device as defined in section 114-81 of this article, and short arm gates constructed according to the specifications and standards of the state department of transportation shall be erected, maintained and operated by the Union Pacific Railroad Company at the intersection of the main line tracks with East Walnut Street.
(C54, C62, § 45-29; C75, C79, § 19-102; O.10,673; C91, § 19-102; O.14,428)

Sec. 114-103. East Euclid Avenue crossing.

A suitable mechanical signal device shall be erected, maintained and operated by the Union Pacific Railroad Company at the intersection of its tracks at East Seventeenth Street with East Euclid Avenue.
(C42, § 103-30; O.5409; C54, C62, § 45-30; C75, C79, § 19-103; O.10,673; C91, § 19-103; O.14,428)

Sec. 114-103.01. Grand Avenue crossing.

A suitable mechanical signal device shall be erected, maintained and operated by the Iowa Interstate Railroad Company at the intersection of its tracks at Grand Avenue just east of Walnut Creek.
(C79, § 19-103.01; O.10,673; C91, § 19-103.01; O.14,428)

Sec. 114-104. Hull Avenue crossing.

(a) A suitable mechanical signal device shall be erected, maintained and operated by the Union Pacific Railroad Company at the intersection of its tracks on East Seventeenth Street with Hull Avenue.

(b) A suitable mechanical signal device as defined in section 114-81 of this article, and short arm gates constructed according to the specifications and standards of the state department of transportation shall be erected, maintained and operated by the Union Pacific Railroad Company at the intersection of its tracks located on Hull Avenue between Dixon Street and Delaware Avenue.
(C42, § 103-13; C54, C62, § 45-31; C75, C79, § 19-104; O.10,673; C91, § 19-104; O.14,428)

Sec. 114-105. Maury Street crossing.

A suitable mechanical signal device, as defined in section 114-81 of this article, and short arm gates constructed according to the specifications and standards of the state department of transportation shall be erected, maintained and operated by the Union Pacific Railroad Company at the intersection of its tracks located on Maury Street between Southeast Nineteenth Street and Southeast Twentieth Street.
(C42, § 103-35; O.5409; C54, C62, § 45-32; C75, C79, § 19-105; O.10,673; C91, § 19-105; O.14,428)

Sec. 114-106. Park Avenue crossing.

In order to promote the public safety and general welfare, the Union Pacific Railroad Company is ordered to erect, maintain and operate suitable mechanical signal devices at the intersection of the tracks of the railroad on Park Avenue in the city.
(C62, § 45-32.01; O.6980; C75, C79, § 19-106; O.10,673; C91, § 19-106; O.14,428)

Sec. 114-107. Park Avenue crossing in vicinity of 5200 Park Avenue.

In order to promote the public safety and general welfare, Monarch Cement of Iowa, Inc. is ordered to erect, maintain and operate suitable mechanical signal devices at the intersection of the tracks of the railroad on Park Avenue in the city. Monarch Cement of Iowa, Inc. is also ordered to construct and repair all street surface between the rails of their tracks, and one foot outside, at their own expense, in accordance with the requirements of I.C. § 364.11.
(O.14,413)

Secs. 114-108, 114-109. Reserved.

Sec. 114-110. Sixty-third Street crossings.

In order to promote the public safety and general welfare, the Iowa Interstate Railroad Company is ordered to erect, maintain and operate suitable mechanical signal devices and gates according to the specifications and standards of the state department of transportation at the intersection of the tracks of the railroad on Sixty-third Street lying north of Grand Avenue in the city.
(C62, § 45-35.01; O.6979; C75, C79, § 19-110; O.10,673; C91, § 19-110; O.14,428)

Sec. 114-110.01. Southwest Sixty-third Street crossing.

Suitable mechanical signal devices, as defined in section 114-81 of this article, and short arm gates constructed according to the specifications and standards of the state department of transportation shall be erected, maintained and operated by Union Pacific Railroad Company at the intersection of its tracks at Southwest Sixty-third Street lying just south of Railroad Avenue.
(O.14,428)

Sec. 114-111. Southeast Eighteenth Street crossings.

Suitable mechanical signal devices, as defined in section 114-81 of this article, and short arm gates constructed according to the specifications and standards of the state department of transportation shall be erected, maintained and operated by the Norfolk & Southern Railroad Company and the Burlington Northern & Santa Fe

Railroad Company at the intersections of their tracks on Southeast Eighteenth Street between Court Avenue and Market Street.
(C42, §§ 103.22 to 103.24; O.5357; C54, C62, § 45-36; C75, C79, § 19-111; O.10,673; C91, § 19-111; O.14,428)

Sec. 114-112. Reserved.

Editor's note—Ord. No. 14,428, § 1, adopted April 11, 2005, repealed § 114-112, which pertained to Southeast First Street crossing and derived from Code 1942, § 103-34; Ord. No. 5409; Code 1954, § 45-37; Ord. No. 5703; Code 1962, § 45-37; Code 1975; Code 1979, § 19-112; Ord. No. 10,673; and Code 1991, § 19-112.

Sec. 114-112.01. East Sixth Street crossings.

(a) A suitable mechanical signal device shall be erected, maintained and operated by the Norfolk & Southern Railroad Company at the intersection of its tracks with East Sixth Street south of Court Avenue.

(b) A suitable mechanical signal device shall be erected, maintained and operated by the Burlington Northern & Santa Fe Railroad Company at the intersection of its tracks on East Vine Street with East Sixth Street.
(C79, § 27-112.01; O.10,673; C91, § 19-112.01; O.14,428)

Sec. 114-113. Reserved.

Sec. 114-114. Reserved.

Editor's note—Ord. No. 14,428, § 1, adopted April 11, 2005, repealed § 114-114, which pertained to Southwest Thirtieth Street crossing and derived from Code 1954; Code 1962, § 45-39; Code 1975; Code 1979, § 19-114; Ord. No. 10,673; and Code 1991, § 19-114.

Sec. 114-114.01. Vandalia Road crossing.

A suitable mechanical signal device shall be erected, maintained and operated by Burlington Northern & Santa Fe Railroad Company at the intersection of its tracks with Vandalia Road by the sewage treatment plant.
(C79, § 19-114.01; O.10,673; C91, § 19-114.01; O.14,428)

Sec. 114-114.02. West Martin Luther King Jr Parkway crossing.

Suitable mechanical signal devices, as defined in section 114-81 of this article, and short arm gates constructed according to the specifications and standards of the state department of transportation shall be erected, maintained and operated by Norfolk Southern Railroad at the intersection of its tracks between Southwest Eleventh Street and Southwest Sixteenth Street.
(O.14,418)

Sec. 114-115. Eighth street crossings.

A suitable mechanical signal device shall be erected, maintained and operated by the Iowa Interstate Railroad Company at the intersection of its tracks with Eighth Street under the viaduct.
(C42, § 103-27; O.5368; C54, C62, § 45-40; C75, C79, § 19-115; O.10,673; C91, § 19-115; O.14,428)

Sec. 114-116. Fifth Avenue crossings.

A suitable mechanical signal device shall be erected, maintained and operated by the Iowa Interstate Railroad Company at the intersection of its tracks with Fifth Avenue.
(C42, § 103-19; O.5067; C54, C62, § 45-41; C75, C79, § 19-116; O.10,673; C91, § 19-116; O.14,428)

Sec. 114-117. First Water Street crossings.

A suitable mechanical signal device shall be erected, maintained and operated by the Iowa Interstate Railroad Company at the intersection of its tracks with Water Street.
(C42, § 103-19; O.5067; C54, C62, § 45-42; C75, C79, § 19-117; O.10,673; C91, § 19-117; O.14,428)

Sec. 114-118. Fourth Street crossings.

A suitable mechanical signal device shall be erected, maintained and operated by the Iowa Interstate Railroad Company at the intersection of its tracks with Fourth Street.
(C42, § 103-19; O.5067; C54, C62, § 45-43; C75, C79, § 19-118; O.10,673; C91, § 19-118; O.14,428)

Sec. 114-119. Reserved.

Editor's note—Ord. No. 14,428, § 1, adopted April 11, 2005, repealed § 114-119, which pertained to West Grand

Avenue crossing and derived from Code 1954; Code 1962, § 45-44; Code 1975; Code 1979, § 19-119; Ord. No. 10,673; and Code 1991, § 19-119.

Sec. 114-120. Ninth Street crossings.

A suitable mechanical signal device shall be erected, maintained and operated by the Iowa Interstate Railroad Company at the intersection of its tracks with Ninth Street under the viaduct.
(C42, § 103-27; O.5368; C54, C62, § 45-45; C75, C79, § 19-120; O.10,673; C91, § 19-120; O.14,428)

Sec. 114-121. Second Avenue crossings.

A suitable mechanical signal device shall be erected, maintained and operated by the Iowa Interstate Railroad Company at the intersection of its tracks with Second Avenue.
(C42, § 103-19; O.5067; C54, C62, § 45-46; C75, C79, § 19-121; O.10,673; C91, § 19-121; O.14,428)

Sec. 114-122. Third Street crossings.

A suitable mechanical signal device shall be erected, maintained and operated by the Iowa Interstate Railroad Company at the intersection of its tracks with Third Street.
(C42, § 103-19; O.5067; C54, C62, § 45-47; C75, C79, § 19-122; O.10,673; C91, § 19-122; O.14,428)

Sec. 114-122.01. East First Street crossing.

A suitable mechanical signal device shall be erected, maintained and operated by the Iowa Interstate Railroad Company at the intersection of its tracks with East Vine Street.
(O.14,428)

Sec. 114-122.02. East Second Street crossing.

(a) A suitable mechanical signal device shall be erected, maintained and operated by the Norfolk & Southern Railroad Company at the intersection of its tracks with East Second Street lying south of East Court Avenue.

(b) A suitable mechanical signal device shall be erected, maintained and operated by the Iowa Interstate Railroad Company at the intersection of its tracks on East Vine Street with East Second Street.
(O.14,428)

Sec. 114-122.03. Sixth Avenue crossing.

A suitable mechanical signal device, as defined in section 114-81 of this article, and short arm gates constructed according to the specifications and standards of the state department of transportation shall be erected, maintained and operated by the Iowa Interstate Railroad Company at the intersection of its tracks with Sixth Avenue lying south of Cherry Street.
(O.14,428)

Sec. 114-122.04. Seventh Street crossing.

A suitable mechanical signal device, as defined in section 114-81 of this article, and short arm gates constructed according to the specifications and standards of the state department of transportation shall be erected, maintained and operated by the Iowa Interstate Railroad Company at the intersection of its tracks with Seventh Street lying south of Cherry Street.
(O.14,428)

Sec. 114-122.05. East Seventh Street crossing.

A suitable mechanical signal device, as defined in section 114-81 of this article, and short arm gates constructed according to the specifications and standards of the state department of transportation shall be erected, maintained and operated by the Iowa Interstate Railroad Company at the intersection of its tracks with East Seventh Street lying south of East Court Avenue.
(O.14,428)

Sec. 114-122.06. Twelfth Street crossing.

A suitable mechanical signal device, as defined in section 114-81 of this article, and short arm gates constructed according to the specifications and standards of the state department of transportation shall be erected, maintained and oper-

ated by the Iowa Interstate Railroad Company at the intersection of its tracks with Twelfth Street lying south of Cherry Street.
(O.14,428)

Sec. 114-122.07. Sixteenth Street crossing.

A suitable mechanical signal device, as defined in section 114-81 of this article, and short arm gates constructed according to the specifications and standards of the state department of transportation shall be erected, maintained and operated by the Union Pacific Railroad Company at the intersection of its tracks with Sixteenth Street lying north West Martin Luther King Jr Parkway.
(O.14,428)

Sec. 114-122.08. Dixon Street crossing.

A suitable mechanical signal device, as defined in section 114-81 of this article, and short arm gates constructed according to the specifications and standards of the state department of transportation shall be erected, maintained and operated by the Union Pacific Railroad Company at the intersection of its tracks located on Dixon Street between Hull Avenue and Guthrie Avenue.
(O.14,428)

Sec. 114-122.09. East Madison Avenue crossing.

A suitable mechanical signal device shall be erected, maintained and operated by the Union Pacific Railroad Company at the intersection of its tracks located on East Madison Avenue between East Sixteenth Street and East Seventeenth Street.
(O.14,428)

Sec. 114-122.10. Mahaska Parkway crossing.

(a) A suitable mechanical signal device shall be erected, maintained and operated by the Union Pacific Railroad Company at the intersection of its tracks crossing between Mahaska Parkway and Edwards Avenue.

(b) A suitable mechanical signal device shall be erected, maintained and operated by the Iowa Interstate Railroad Company at the intersection of its tracks crossing between Mahaska Parkway and Edwards Avenue.
(O.14,428)

Sec. 114-122.11. Evergreen Avenue crossing.

A suitable mechanical signal device, as defined in section 114-81 of this article, and short arm gates constructed according to the specifications and standards of the state department of transportation shall be erected, maintained and operated by the Union Pacific Railroad Company at the intersection of its tracks located on Evergreen Avenue between Southeast Fortieth Street and Southeast Forty-fifth Street.
(O.14,905)

Sec. 114-122.12. Northeast Twenty-seventh Avenue crossing.

A suitable mechanical signal device, as defined in section 114-81 of this article, and short arm gates constructed according to the specifications and standards of the state department of transportation shall be erected, maintained and operated by the Iowa Interstate Railroad at the intersection of its tracks located on Northeast Twenty-seventh Avenue between East Oakhill Drive and U.S. Highway 65.
(O.14,905)

Sec. 114-122.13. East Martin Luther King Jr Parkway crossing.

A suitable mechanical signal device, as defined in section 114-81 of this article, and short arm gates constructed according to the specifications and standards of the state department of transportation shall be erected, maintained and operated by the Burlington Northern & Santa Fe Railroad Company crossing of East Martin Luther King Jr Parkway between Southeast Twelfth Street and Southeast Fifteenth Street.
(O.15,387)

Sec. 114-122.14. Southeast Fifteenth Street crossing.

A suitable mechanical signal device, as defined in section 114-81 of this article, and short arm gates constructed according to the specifications and standards of the state department of transportation shall be erected, maintained and operated by the Burlington Northern & Santa Fe Railroad Company crossing of Southeast Fifteenth Street between East Martin Luther King Jr Parkway and Scott Avenue.
(O.15,387)

Secs. 114-123—114-173. Reserved.

Sec. 114-174. Operators licensed—Operation of commercial motor vehicles.

(a) A person, except those expressly exempted under I.C. § 321.176, shall not operate any motor vehicle upon a street in the city limits unless the person has a driver's license issued by the state department of transportation valid for the vehicle's operation.

(b) A person operating a commercial motor vehicle shall not have more than one driver's license. A nonresident of Iowa may operate a commercial motor vehicle in the city limits if the nonresident has been issued a license by another state, a nonresident commercial driver's license, or a driver's license issued by a foreign jurisdiction which the federal highway administration has determined to be issued in conformity with the federal commercial driver testing and licensing standards, if the license, commercial driver's license, or driver's license is valid for the vehicle operated. A person who operates a commercial motor vehicle upon the streets of this city without having been issued a driver's license valid for the vehicle operated commits a simple misdemeanor.
(O.14,374)

Sec. 114-174A. Operation of motor vehicle with expired license.

A person shall not operate a motor vehicle upon a street in this city with an expired driver's license.
(O.14,374)

Secs. 114-175—114-177. Reserved.

Sec. 114-178. Use of electronic device with restricted license.

A person issued a restricted license under this section shall not use an electronic communication device or an electronic entertainment device while driving a motor vehicle unless the motor vehicle is at a complete stop off the traveled portion of the roadway. This subparagraph division does not apply to the use of electronic equipment which is permanently installed in the motor vehicle or to a portable device which is operated through permanently installed equipment.
(O.15,808)

State law reference—Similar provisions, I.C. § 321.178.

Secs. 114-179—114-192. Reserved.

Sec. 114-193. Restrictions on licenses.

A person shall not operate a motor vehicle in any manner in violation of the restrictions imposed on a restricted license issued to that person by the state department of transportation.
(O.14,374)

Secs. 114-194—114-215. Reserved.

Sec. 114-216. Unlawful use of license or nonoperator's identification card.

It is a simple misdemeanor for any person to:

(1) Display or cause or permit to be displayed or have in the person's possession a canceled, revoked, suspended, fictitious, or fraudulently altered driver's license or nonoperator's identification card.

(2) Lend that person's driver's license or nonoperator's identification card to another person or knowingly permit the use of the license by another.

(3) Display or represent as one's own a driver's license or nonoperator's identification card not issued to that person.

(4) Fail or refuse to surrender to the department upon its lawful demand a driver's

license or nonoperator's identification card which has been suspended, revoked, or canceled.

(5) Permit an unlawful use of a driver's license or nonoperator's identification card issued to that person.

(O.14,374)

Secs. 114-217, 114-218. Reserved.

Sec. 114-219. Permitting unauthorized minor to drive.

A person shall not cause or knowingly permit the person's child or ward under the age of 18 years to drive a motor vehicle upon any street when the minor is not authorized under I.C. ch. 321.

(O.14,374)

Sec. 114-220. Permitting unauthorized person to drive.

A person shall not knowingly authorize or permit a motor vehicle owned by the person or under the person's control to be driven upon a highway by a person who is not issued a driver's license valid for the vehicle's operation.

(O.14,374)

Secs. 114-221—114-228. Reserved.

ARTICLE III. OBEDIENCE TO TRAFFIC LAWS

DIVISION 1. GENERALLY

Sec. 114-229. Obedience to peace officers.

No person shall willfully fail or refuse to comply with any lawful order or direction of any peace officer invested by law with authority to direct, control, or regulate traffic.

(C62, § 30-21; O.8084; C75, C79, § 27-25; C91, § 27-229; O.11,650)

State law reference—Similar provisions, I.C. § 321.229.

Sec. 114-229.01. Police to direct traffic; directing traffic at fire or emergency.

(a) Officers of the police department are authorized to direct all traffic by voice, hand or signal in conformance with this chapter. If a fire or other emergency occurs or to expedite traffic or to safeguard pedestrians, officers of the police department may direct traffic as conditions may require, notwithstanding this chapter.

(b) Officers of the fire department, when at the scene of a fire, may direct or assist the police in directing traffic at the fire or in the immediate vicinity.

(C62, § 30-20; O.8084; C75, C79, § 27-24; C91, § 27-229.01; O.11,650)

Sec. 114-230. Obedience by public officers.

The sections of this chapter applicable to the drivers of vehicles upon the highways shall apply to the driver of any vehicle owned by or used in the service of the United States government, the state or any county, city, town, district or any other political subdivision of the state, subject to the specific exceptions set forth in this chapter or exceptions set forth in state law with reference to authorized emergency vehicles.

(C62, § 30-22; O.8084; C75, C79, § 27-26; C91, § 27-230; O.11,650)

State law reference—Similar provisions, I.C. § 321.230.

Sec. 114-231. Emergency vehicles.

(a) The driver of an authorized emergency vehicle, when responding to an emergency call or when in the pursuit of an actual or suspected perpetrator of a felony or in response to an incident dangerous to the public or when responding to but not upon returning from a fire alarm, may exercise the privileges set forth in this section.

(b) The driver of any authorized emergency vehicle may:

(1) Park or stand an authorized emergency vehicle, irrespective of the restrictions of this chapter.

(2) Disregard laws or regulations governing direction of movement for the minimum

distance necessary before an alternative route that conforms to the traffic laws and regulations is available.

(c) The driver of a fire department vehicle, police vehicle or ambulance may:

(1) Proceed past a red or stop signal or stop sign, but only after slowing down as may be necessary for safe operation.

(2) Exceed the maximum speed limits so long as the driver does not endanger life or property.

(d) The exemptions granted to an authorized emergency vehicle under subsection (b) of this section and for a fire department vehicle, police vehicle or ambulance, as provided in subsection (c) of this section, shall apply only when such vehicle is making use of an audible signaling device meeting the requirements of I.C. § 321.433 or a visual signaling device approved by the state department of transportation, except that use of an audible or visual signaling device shall not be required when exercising the exemption granted under subsection (c)(2) of this section when the vehicle is operated by a peace officer pursuing a suspected violator of the speed restrictions imposed by or pursuant to this chapter, for the purpose of determining the speed of travel of suspected violator.

(e) This section shall not relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons, nor shall this section protect the driver from the consequences of the driver's reckless disregard for the safety of others.
(C62, § 30-23; O.8084; C75, C79, § 27-27; C91, § 27-231; O.11,650, 13,340)

State law reference—Similar provisions, I.C. § 321.231.

Secs. 114-232, 114-233. Reserved.

Sec. 114-234. Pushcarts and animal-drawn vehicles.

Every person propelling any pushcart or riding an animal upon a roadway and every person driving any animal-drawn vehicle shall be subject to the relevant sections of this chapter applicable to the driver of any vehicle.
(C62, § 30-24; O.8084; C75, C79, § 27-28; C91, § 27-234; O.11,650, 15,083)

State law reference—Similar provisions, I.C. § 321.234.

Sec. 114-234.01. All-terrain vehicles.

An all-terrain vehicle shall be operated on a highway only between sunrise and sunset and only when the operation on the highway is incidental to the vehicle's use for agricultural purposes. A person operating an all-terrain vehicle on a highway shall have a valid motor vehicle license, and the vehicle shall be operated at speeds of less than 30 miles per hour. When operated on a highway, an all-terrain vehicle shall have a bicycle safety flag which extends not less than five feet above the ground attached to the rear of the vehicle. The bicycle safety flag shall be triangular in shape with an area of not less than 30 square inches, shall be dayglow in color, and shall be in lieu of the reflective equipment required by I.C. § 321.383.
(C91, § 27-234.01; O.11,650)

State law reference—Similar provisions, I.C. § 321.234A.

Sec. 114-234.02. Snowmobiles.

(a) No person shall operate a snowmobile nor shall any snowmobile be operated within the city limits upon any plowed or unplowed roadway or alley unless:

(1) The roadway or alley shall not be passable by conventional motor vehicles because of snow or ice coverage; or

(2) Because of snow, ice, or storm conditions, the city manager has authorized the use of snowmobiles citywide as necessary to meet the emergency needs of the public. In such event, snowmobiles may be operated where and when necessary to deal with such emergency needs during that authorized period.

(b) No person shall operate a snowmobile nor shall any snowmobile be operated:

(1) On any sidewalk within the city limits.

(2) On any portion of the street lying between the sidewalk and the roadway within the city limits.

(3) Within any city-owned park, except upon such portion of a city-owned park as shall be designated by the city park and recreation board and approved by the city council.

(C62, §§ 30-168.01, 30-168.02; O.8810; C75, C79, §§ 27-175.01, 27-175.02; C91, §§ 27-234.02, 27-234.03; O.11,650)

Sec. 114-235. Reserved.

Sec. 114-236. Vehicle and parking restrictions in snow conditions.

(a) As used in this section, the term "snow tires" means tires designed for use when there are conditions of snow or ice on the highways and meeting the requirements which shall be promulgated by rule of the director of the state department of transportation pursuant to I.C. § 321.236(12).

(b) When conditions of snow or ice exist on the traffic surface of a designated snow route, it is unlawful for the driver of a vehicle to impede or block traffic if the driving wheels of the vehicle are not equipped with snow tires, tire chains or nonslip differential.

(c) Any person charged with impeding or blocking traffic for lack of snow tires, chains or nonslip differential shall have the charge dismissed upon a showing to the court that his or her motor vehicle was equipped with a nonslip differential.

(d) Standing or parking of vehicles upon a street designated as a "snow route" shall be prohibited at any time when snow route snow-removal operations are in progress and before such operations have resulted in the removal or clearance of snow from such streets curb to curb.

(e) Standing or parking of vehicles upon streets, except those streets where allowed in subsection (f) below, in designated "odd/even side snow parking" zones, shall be prohibited at any time when city-wide snow-removal operations are in progress and before such operations have resulted in the removal or clearance of snow from such city streets curb to curb.

(f) Parking shall be allowed on streets that allow parking on both sides of the street or one side of the street during city-wide snow removal operations in the "odd/even side snow parking" zones on alternating sides of the street as follows:

(1) On odd numbered dates on the side of the street with odd numbered addresses, and for streets without numbered addresses, on the north or east side; and

(2) On even numbered dates on the side of the street with even numbered addresses, and for streets without numbered addresses, on the south or west side; and

(3) This exception shall not apply to snow route streets and where parking is prohibited on both sides of the street.

"Odd/even side snow parking" zones are designated in division 11 of article XVI of this chapter.

(g) Standing or parking of vehicles shall be allowed during city-wide snow removal operations on the streets or portions of streets designated in the central business district in division 12 of article XVI of this chapter.

(h) The parking prohibitions of section 114-358 of this chapter apply to this section.

(i) A person who violates the provisions of subsections (d) or (e) of this section shall pay a fine of $35.00.

(C62, § 30-660.01; O.8267; C75, § 27-675.01; O.9008; C79, § 27-675.01; C91, § 27-236; O.11,650, 14,244, 14,891, 14,963, 15,126)

Sec. 114-236.01. Snow route locations designated.

On the streets of portions of streets designated in division 4 of article XVI of this chapter, it shall be unlawful, when official signs have been erected

giving notice of the designation of such streets as a snow route, to operate a motor vehicle contrary to section 114-236(d).
(C62, § 30-660.02; O.8267; C75, C79, § 27-675.02; C91, § 27-236.01; O.11,650, 14,891)

Sec. 114-236.015. Odd/even side snow parking zones designated.

On the streets or portions of streets designated in division 11 of article XVI of this chapter as within an "odd/even side snow parking" zone, it shall be unlawful, when official signs have been erected per section 114-236.02 giving notice of the designation of such streets as within an odd/even side snow parking zone, to operate a motor vehicle contrary to section 114-236(e).
(O.14,891, 15,056, 15,126)

Cross reference—Odd/even side snow parking zones, § 114-4175.

Sec. 114-236.02. Erection of signs.

The city engineer shall place and maintain signs indicating a snow route at the entrances to the street or part thereof affected and along its length, except where parking is prohibited at all times. The city engineer shall place and maintain signs indicating an odd/even side snow parking zone at the entrances to the streets which are on the boundaries of an area of streets designated as an odd/even side snow parking zone and along streets within these designated areas that have parking prohibited on one side. These signs shall conform to the specifications set forth in the manual on uniform traffic control devices adopted by the state department of transportation.
(C62, § 30-660.144; O.8267; C75, C79, § 27-675.144; C91, § 27-236.02; O.11,650, 14,891, 14,963, 15,126, 15,263)

Secs. 114-237—114-240. Reserved.

DIVISION 2. TRANSPORTATION SAFETY COMMITTEE*

Sec. 114-241. Created; composition; appointment; terms.

(a) There is established in and for the city a transportation safety committee.

(b) The transportation safety committee shall consist of 12 voting members. Eight of the members shall be appointed by the city council. One member shall be appointed by each council member with two members appointed by the mayor. The two members appointed by the mayor shall consist of a Des Moines Street Collective Board Member, or similarly focused organization, and a state of Iowa licensed professional engineer with transportation experience. One member shall be appointed by the superintendent of the Des Moines Independent Community School District to represent the interest of the schools citywide. One member shall be a Des Moines Area Regional Transit Authority staff member appointed by the Des Moines Area Regional Transit Authority to represent the interest of transit citywide. One member shall be appointed by the executive director of the Polk County Health Department to represent the perspective and issues involving transportation and health. One member shall be an Iowa Department of Transportation staff member appointed by the Iowa Department of Transportation District One Engineer to provide input and insights relative to state routes within Des Moines as well as other matters that may be impacted by or might impact state-wide practices to promote active transportation and safety.

(c) The term of office of each of the eight appointed members of the transportation safety committee shall be for staggered terms of three years. The expiration date for all terms of appointed members shall be December 31. Each member of the city council may recommend a candidate to fill one position on the board. Any of

*__Editor's note—__Ord. No. 15,589, § 1, adopted June 26, 2017, amended the title of Div. 2 to read as herein set out. Formerly, said division was titled "Traffic Safety Advisory Committee."

Cross reference—Boards, commissions, committees and agencies, § 2-1046 et seq.

the two members nominated by the mayor who cease to hold the qualifications for appointment to the seat they hold on the transportation safety committee shall cease to be a member of the transportation safety committee.

(d) Notwithstanding section 2-1059 regarding term limits, only the members of the transportation safety committee representing the Des Moines Independent Community School District, the Des Moines Area Regional Transit Authority, the Polk County Health Department and the Iowa Department of Transportation may be appointed and serve more than two full terms.

(e) Any five members shall constitute a quorum.

(f) Primary staff support for the transportation safety committee shall be provided by the city traffic engineer or a designee. Additional staff support shall be provided by a member of the Des Moines Police Department.
(C85, § 2-363; O.11,385; C91, § 2-363; O.11,788, 13,909, 14,987, 15,222, 15,528, 15,589, 16,330)

Sec. 114-242. Duties.

The transportation safety committee shall advise the city council on matters relating to the safe and efficient use of all transportation modes within the City of Des Moines. These transportation modes include but are not limited to motor vehicles, bicycles, and pedestrian modes used as part of the transportation system. The transportation system includes, but is not limited to, streets, sidewalks, and related transportation facilities.

The transportation safety committee shall advise the city council on all elements of the City of Des Moines transportation network including all council-approved plans related to transportation. The transportation safety committee shall, as it determines necessary, provide a public forum to hear citizen comments and requests regarding transportation matters on existing, new, or potential transportation facilities.

The transportation safety committee shall have the following duties:

(1) Advise the city council and make recommendations on any matter pertaining to the safe and efficient movement of all transportation modes.

(2) Review all proposed transportation project designs for the city's transportation system and recommend appropriate revisions to such designs as needed to provide compliance with the city's approved transportation plans and policies.

(3) Discuss the implementation of the city's Transportation Safety Action Plan at two regular meetings per year. At these meetings, the Committee will receive progress updates from staff on the Transportation Safety Action Plan, and provide high level and broad-based input towards the Transportation Safety Action Plan's implementation, support and any outreach and community engagement efforts. Periodic updates will be provided by the city staff to the city council of the progress of the Transportation Safety Action Plan as well as to other boards. Commissions or committees of the city.

(4) Perform such other and further duties as the city council may from time to time place upon the committee.

(C85, § 2-364; O.11,385; C91, § 2-364, 15,589, 16,330)

DIVISION 3. AUTOMATED TRAFFIC ENFORCEMENT

Sec. 114-243. Civil automated traffic enforcement.

(a) *Policy statement.* Having been presented with information and opinions concerning Automated Traffic Enforcement ("ATE"), the Des Moines City Council finds as follows:

(1) The use of ATE advances public interests of traffic safety and safety of emergency responders, as well as the interests of Des Moines taxpayers in cost effective enforcement of traffic laws;

(2) The use of ATE devices which capture an image of only the rear license plate strikes a desirable balance between the above stated public interests and privacy interests of the motoring public;

(3) The National Law Enforcement Telecommunications System ("Nlets") is a cost effective means for determining ownership of vehicles detected as traveling in violation of traffic laws within the city limits of Des Moines; and

(4) The technology underlying ATE is self-calibrating and reliable, and its accuracy is readily verifiable.

(b) *General.* The City of Des Moines, in accordance with the police powers authorized it by the State of Iowa for governing safe traffic flow and pursuant to Iowa Code section 321P, may deploy, erect or cause to have erected an automated traffic enforcement system for making video images of vehicles that fail to obey red light traffic signals at intersections designated by the city manager or his designee or fail to obey speed regulations at other locations in the city. The system may be managed by the private contractor that owns and operates the requisite equipment with supervisory control vested in the city's police department. Video images shall be provided to the police department by the contractor for review. The police department will determine which vehicle owners are in violation of the city's traffic control ordinances and are to receive a notice of violation for the offense.

(c) *Definitions.* The following phrases or terms when used in this section shall have the meanings ascribed to them herein:

Automated traffic enforcement system means an electronic system consisting of a photographic, video, or electronic camera and a vehicle sensor installed to work in conjunction with an official traffic controller or police department employee to automatically produce photographs, video or digital images of each vehicle violating a standard traffic control device or speed restriction.

Vehicle owner means the person or entity identified by the Iowa Department of Transportation, or registered with any other state vehicle registration office, as the registered owner of a vehicle. However, if the motor vehicle is the subject of a security agreement with a right of possession in the debtor, the debtor is deemed the owner, or if the motor vehicle is leased as defined in Iowa Code section 321.493, the lessee is deemed the owner for this section.

(d) *Offense.*

(1) The vehicle owner shall be liable for a civil penalty as imposed below if such vehicle crosses a marked stop line or the intersection plane at a system location when the traffic signal for that vehicle's direction is emitting a steady red light or red arrow.

(2) The vehicle owner or vehicle driver if the vehicle owner submitted evidence that the owner was not operating the motor vehicle at the time of the violation shall be liable for a civil penalty as imposed below if such vehicle travels at a speed above the posted speed limit.

(3) The violation may be rebutted by a showing that a stolen vehicle report was made on the vehicle encompassing the time period in question.

(4) The notice of violation shall not be reported to the Iowa Department of Transportation or similar department of any other state for the purpose of being added to the vehicle owner's driving record.

(e) *Penalty and appeal.*

(1) Any violation of subsection (d)(1) or subsection (d)(2) above shall be considered for a notice of violation for which a civil penalty in the amount specified in the schedule of administrative penalties adopted by city council by resolution shall be imposed, payable to the city at the city's finance department or a designee.

(2) A recipient of an automated traffic enforcement notice of violation may dispute the notice of violation by requesting an administrative hearing pursuant to chapter 3 or by requesting issuance of a municipal infraction by the police department. The owner of a motor vehicle who receives a citation for speeding may

submit evidence at the hearing that the owner was not operating the motor vehicle at the time of the violation. As part of the proceeding, the owner shall provide the name and address of the person who was operating the motor vehicle at the time of the violation. The request for an administrative hearing or issuance of a municipal infraction must initially be made within 30 days of the date that the notice of violation is issued. If the recipient of an automated traffic notice of violation who requests an administrative hearing is not satisfied with the determination of the hearing officer, he or she may request the police department to issue a municipal infraction within 30 days of the date of determination. If a timely request is made to the police department for the issuance of a municipal infraction, the city may issue a municipal infraction or dismiss the notice.

(O.14,885, 15,594, 15,808, 15,875, 16,372)

Secs. 114-244—114-254. Reserved.

ARTICLE IV. TRAFFIC SIGNS, SIGNALS AND MARKINGS

Sec. 114-255. Authority to install traffic control devices.

The city engineer shall place and maintain or shall cause to be placed and maintained traffic control signs, signals and devices when and as required under this chapter and other city traffic ordinances and may place and maintain or may cause to be placed and maintained additional traffic control devices as he or she may deem necessary to regulate traffic under this chapter or under city traffic ordinances or under state law or to guide or warn traffic.

(C62, § 30-25; O.8084; C75, C79, § 27-29; C91, § 27-255; O.11,650)

State law reference—Authority to install traffic control signs, signals and devices, I.C. § 321.255.

Sec. 114-256. Obedience to official traffic control devices.

The driver of any vehicle shall obey the instruction of any official traffic control device applicable thereto placed in accordance with this chapter and other city traffic ordinances, unless otherwise directed by a police officer, subject to the exceptions granted the driver of an authorized emergency vehicle in this chapter.

(C62, § 30-26; O.8084; C75, C79, § 27-30; C91, § 27-256; O.11,650)

State law reference—Similar provisions, I.C. § 321.256.

Sec. 114-256.01. Location of traffic control devices at intersections.

Traffic control devices shall be installed and maintained at the intersections designated in subdivision II of division 3 of article XVI of this chapter, and the driver of a vehicle shall obey the instruction of any such traffic control device as provided in this chapter.

(C62, § 30-35; O.8084; C75, C79, § 27-39; C91, § 27-256.01; O.11,650)

Sec. 114-256.02. Location of traffic control devices at other than intersections.

Traffic control devices shall be installed and maintained at the locations other than intersections designated in subdivision III of division 3 of article XVI of this chapter, and the driver of a vehicle shall obey the instruction of any such traffic control device as provided in this chapter.

(C62, § 30-106; O.8084; C75, C79, § 27-113; C91, § 27-256.02; O.11,650)

Sec. 114-256.03. Traffic control devices required for enforcement purposes.

No section of this chapter for which signs are required shall be enforced against an alleged violation if at the time and place of the alleged violation an official sign is not in proper position and sufficiently legible to be seen by an ordinarily observant person. Whenever a particular

section does not state that signs are required, such section shall be effective without signs being erected to give notice thereof.
(C62, § 30-27; O.8084; C75, C79, § 27-31; C91, § 27-256.03; O.11,650)

Sec. 114-256.04. Obedience to no-turn signs and turning markers.

Whenever authorized signs are erected indicating that no right turn or left turn or U-turn is permitted, no driver of a vehicle shall disobey the directions of any such sign, and when authorized marks, buttons, or other indications are placed within an intersection indicating the course to be traveled by vehicles turning at the intersection, no driver of a vehicle shall disobey the directions of such indications.
(C62, § 30-28; O.8084; C75, C79, § 27-32; C91, § 27-256.04; O.11,650)

Sec. 114-257. Traffic control signal legend.

(a) Whenever traffic is controlled by traffic control signals exhibiting different colored lights, or colored lighted arrows successively one at a time or in combination, only the colors green, red and yellow shall be used, except for special pedestrian signals carrying a word legend. These lights shall indicate and apply to drivers of vehicles and pedestrians as follows:

(1) *Green indication.*

a. Vehicular traffic facing a circular green signal may proceed straight through or turn right or left unless a sign at such place prohibits either such turn. Vehicular traffic, including vehicles turning right or left, shall yield the right-of-way to other vehicles and to pedestrians lawfully within the intersection or an adjacent crosswalk at the time the signal is exhibited.

b. Vehicular traffic facing a green arrow signal, shown alone or in combination with another indication, may cautiously enter the intersection only to make the movement indicated by the arrow, or other movement as is permitted by other indications shown at the same time. Such vehicular traffic shall yield the right-of-way to pedestrians lawfully within an adjacent crosswalk and to other traffic lawfully using the intersection.

c. Unless otherwise directed by a pedestrian control signal as provided in section 114-257.03 of this article, pedestrians facing any green signal, except when the sole green signal is a turn arrow, may proceed across the roadway within any marked or unmarked crosswalk.

(2) *Steady yellow indication.*

a. Vehicular traffic facing a steady circular yellow signal or a steady yellow arrow signal is thereby warned that the related green movement is being terminated, and vehicular traffic shall no longer proceed into the intersection and shall stop. If the stop cannot be made in safety, a vehicle may be driven cautiously through the intersection.

b. Pedestrians facing a steady yellow signal, unless otherwise directed by a pedestrian control signal as provided in section 114-257.03 of this article, are thereby advised that there is insufficient time to cross the roadway, and any pedestrian then starting to cross shall yield the right-of-way to all vehicles.

(3) *Steady red indication.*

a. Vehicular traffic facing a steady red signal alone shall stop before entering the crosswalk on the near side of the intersection or, if none, before entering the intersection and shall remain standing until a green indication is shown. A right turn shall be permitted at an intersection by vehicular traffic which has come to a complete stop unless a sign is in place prohibiting such a turn. Vehicular traffic on a one-way

highway facing a steady red signal may, after making a stop pursuant to this subsection, cautiously enter the intersection and make a left turn onto an intersecting one-way highway on which traffic travels to the left, unless a sign is in place prohibiting such a turn. Any turn made pursuant to this subsection shall be made in such a manner that it does not interfere with other vehicular or pedestrian traffic lawfully using the intersection.

b. Unless otherwise directed by a pedestrian control signal as provided in section 114-257.03 of this article, pedestrians facing a steady red signal alone shall not enter the roadway unless they can do so safely and without interfering with any vehicular traffic.

(b) If an official traffic control signal is erected and maintained at a place other than an intersection, this section shall be applicable except those subsections which by their nature can have no application. Any stop required shall be made at a sign or marking on the pavement indicating where the stop shall be made, but in the absence of any such sign or marking the stop shall be made at the signal.

(C62, § 30-29; O.8084, 8229, 8807; C75, C79, § 27-33; O.10,337; C91, § 27-257; O.11,650)

State law reference—Similar provisions, I.C. § 321.257.

Sec. 114-257.01. Prohibited turn on red.

No person shall make a right or left turn with a vehicle after coming to a stop in obedience to a red signal until a green indication or flashing yellow arrow indication is shown at the following locations:

(1) At the intersection of Hickman Road, Merle Hay Road and Merklin Way, prohibiting right turns from eastbound Hickman Road to southbound Merle Hay Road or Merklin Way and from northbound Merle Hay Road to eastbound Hickman Road or southbound Merklin Way.

(2) At the intersection of Easton Boulevard, Avenue Frederick M. Hubbell and East Twenty-fifth Street, prohibiting right turns from eastbound Easton Boulevard to southbound East Twenty-fifth Street or westbound Avenue Frederick M. Hubbell or prohibiting right turns from southbound Frederick M. Hubbell Avenue to westbound Easton Boulevard.

(3) At the intersection of Mulberry Street and Fifth Avenue, prohibiting right turns from eastbound Mulberry Street to southbound Fifth Avenue.

(4) At the intersection of Court Avenue, and Water Street, prohibiting right turns from eastbound Court Avenue to southbound Water Street and from northbound Water Street to eastbound Court Avenue.

(5) At the intersection of Grand Avenue and Thirty-first Street, prohibiting right turns from northbound Thirty-first Street to eastbound Grand Avenue and southbound Thirty-first Street to westbound Grand Avenue.

(6) At the intersection of Grand Avenue and Fleur Drive, prohibiting right turns from eastbound Grand Avenue to southbound Fleur Drive.

(7) At the intersection of the Eighth Street Service Road west of the viaduct at Mulberry Street, prohibiting right turns from northbound Eighth Street Service Road to eastbound Mulberry Street.

(8) At the intersection of Eighth Street and Mulberry Street, prohibiting right turns from westbound Mulberry Street to northbound Eighth Street.

(9) At the intersection of Eighth Street and Mulberry Street, prohibiting right turns from northbound Eighth Street to eastbound Mulberry Street.

(10) At the intersection of East Thirty-third Street and Frederick M. Hubbell Avenue, prohibiting right turns from southbound East Thirty-third Street to westbound Frederick M. Hubbell Avenue.

(11) At the intersection of Forty-second Street and Center Street, prohibiting right turns from southbound Forty-second Street to westbound Center Street.

(12) At the intersection of Martin Luther King Jr Parkway and Interstate 235 Eastbound Exit Ramp, prohibiting right turns from eastbound Interstate 235 to southbound Martin Luther King Jr Parkway.

(13) At the intersection of Grand Avenue and Ninth Street, prohibiting left turns from westbound Grand Avenue to southbound Ninth Street.

(14) At the intersection of Hickman Road and 6th Avenue, prohibiting right turns from eastbound Hickman Road to southbound 6th Avenue.

(C62, § 30-146.01; O.8832; C75, § 27-153.01; O.9065, 9163, 9308; C79, § 27-153.01; C85, § 27-153.01; O.11,008; C91, § 27-257.01; O.11,650, 13,750, 14,437, 14,653, 14,764, 15,049, 15,606, 16,218, 16,399, 16,541)

Sec. 114-257.02. Flashing signals.

(a) Whenever an illuminated flashing red or yellow signal is used in a traffic sign or signal, it shall require obedience by vehicular traffic as follows:

(1) *Flashing red (stop signal).* When a red lens is illuminated with rapid intermittent flashes, drivers of vehicles shall stop before entering the nearest crosswalk at an intersection or at a limit line when marked or, if none, before entering the intersection, and the right to proceed shall be subject to the rules applicable after making a stop at a stop sign.

(2) *Flashing yellow (caution signal).* When a yellow lens is illuminated with rapid intermittent flashes, drivers of vehicles may proceed through the intersection or past such signal only with caution.

(b) This section shall not apply at railroad grade crossings. Conduct of drivers of vehicles approaching railroad grade crossings shall be governed by the rules as set forth in section 114-341 of this chapter.
(C62, § 30-31; O.8084; C75, C79, § 27-35; C91, § 27-257.02; O.11,650)

Sec. 114-257.03. Pedestrian control signals.

Whenever special pedestrian control signals exhibiting the words "walk" or "don't walk" are in place, such signals shall indicate as follows:

(1) *Walk.* Pedestrians facing such signals may proceed across the roadway in the direction of the signal and shall be given the right-of-way by the drivers of all vehicles.

(2) *Don't walk.* No pedestrian shall start to cross the roadway in the direction of such signal, but any pedestrian who has partially completed his or her crossing on the walk signal shall proceed to a sidewalk or safety island while the don't walk signal is showing.
(C62, § 30-30; O.8084; C75, C79, § 27-34; C91, § 27-257.03; O.11,650)

Sec. 114-257.04. Stop when traffic obstructed.

No driver shall enter an intersection or a marked crosswalk unless there is sufficient space on the other side to accommodate the vehicle he or she is operating without obstructing the passage of other vehicles or pedestrians, notwithstanding any traffic control signal indication to proceed.
(C62, § 30-157; O.8084; C75, C79, § 27-164; C91, § 27-257.04; O.11,650)

Sec. 114-257.05. Reserved.

Editor's note—Ord. No. 15,172, § 1, adopted March 11, 2013, repealed § 114-257.05, which pertained to Walnut Transit Mall traffic restrictions and derived from Code 1985, § 27-174.01; Ord. No. 10,748; Ord. No. 11,028; Code 1991, § 27-257.05; Ord. No. 11,650.

Sec. 114-257.06. Reserved.

Editor's note—Ord. No. 15,583, § 1, adopted May 22, 2017, repealed § 114-257.06, which pertained to Ingersoll bus lane traffic restrictions and derived from Ord. No. 14,227.

Sec. 114-258. Reserved.

Sec. 114-259. Display of unauthorized signs, signals or markings.

(a) No person shall place, maintain or display upon or in view of any highway any unauthorized sign, signal, marking or device which purports to be or is an imitation of or resembles an official parking sign, curb or other marking, traffic control device or railroad sign or signal or which attempts to direct the movement of traffic or which hides from view or interferes with the effectiveness of any official traffic control device or any railroad sign or signal, and no person shall place or maintain upon any highway any traffic sign or signal bearing thereon any commercial advertising. This shall not be deemed to prohibit the erection upon private property adjacent to highways of signs, giving useful directional information of a type that cannot be mistaken for official signs.

(b) The following signs interfere with the effectiveness of traffic control devices and are prohibited:

(1) All illuminated, projecting advertising or identification signs which are located over the surface of the city street right-of-way within 25 feet of the intersection of the property lines at any signalized intersection, to a point 16 feet above grade.

(2) All illuminated fascia advertising or identification signs located from nine to 14 feet above grade, within five feet of any signalized intersection measured along the property line.

(3) All illuminated advertising or identification signs located from nine to 14 feet above grade, within the triangular area

formed by the city street right-of-way lines and a line drawn through points ten feet away from the intersection of the property lines at a signalized intersection.

(4) All signs using or containing a light source wherein the light from that light source is concentrated into a flood, beacon or ray by means of any lens reflector or other light-concentrating or -intensifying device and wherein the light source, lens or other light-concentrating or -intensifying device is so displayed that it is visible to a motorist driving on a public way.

(5) All whirling, undulating, fluttering signs, flashers or chasers that contain an exposed lamp with a rating of more than 11 watts or an inert gas tube with a rating of more than 60 milliamps wherein the lamp or tube is visible to a motorist driving on a public way. If inside frosted lamps or exposed lamps with a diffusing screen are used, no lamps shall exceed a rating of 25 watts.

(c) Every such prohibited sign, signal or marking is declared to be a public nuisance and may be removed without notice.

(C62, § 30-32; O.8084; C75, C79, § 27-36; C91, § 27-259; O.11,650)

State law reference—Similar provisions, I.C. § 321.259.

Sec. 114-260. Interference with traffic devices.

A person who willfully and intentionally, without lawful authority, attempts to or in fact alters, defaces, injures, knocks down, or removes an official traffic control device; an authorized warning sign or signal or barricade, whether temporary or permanent; a railroad sign or signal; an inscription, shield or insignia on any of such devices, signs, signals, or barricades; or any other part thereof shall, upon conviction, be guilty of a simple misdemeanor and shall be required to make restitution to the city. Nothing in this section shall prevent the issuance of a citation and prosecution of the violation under I.C. § 321.260 if the severity of the circumstances warrant such action.

(C91, § 27-260; O.11,650)

State law reference—Similar provisions, I.C. § 321.260.

Sec. 114-261. Reserved.

ARTICLE V. OPERATION OF VEHICLES

DIVISION 1. ACCIDENTS

Sec. 114-262. Damage to vehicle.

The driver of any vehicle involved in an accident resulting only in damage to a vehicle which is driven or attended by any person shall immediately stop such vehicle at the scene of such accident or as close thereto as possible, but shall forthwith return to and in every event shall remain at the scene of such accident until he or she has fulfilled the notice and aid requirements of I.C. § 321.263. Every such stop shall be made without obstructing traffic more than is necessary. Any person failing to stop or comply with these requirements under such circumstances shall be guilty of a simple misdemeanor.

(C85, § 27-18; O.10,937; C91, § 27-262; O.11,650)

State law reference—Similar provisions, I.C. § 321.262.

Sec. 114-263. Reserved.

Sec. 114-264. Striking unattended vehicle.

The driver of any vehicle which collides with any vehicle which is unattended shall immediately stop and shall then and there either locate and notify the operator or owner of such vehicle of the name and address of the driver and owner of the vehicle striking the unattended vehicle or shall leave in a conspicuous place on the vehicle struck a written notice giving the name and address of the driver and of the owner of the vehicle doing the striking and a statement of the circumstances thereof.

(C85, § 27-19; O.10,937; C91, § 27-264; O.11,650)

State law reference—Similar provisions, I.C. § 321.264.

Sec. 114-265. Striking fixtures upon highway.

The driver of a vehicle involved in an accident resulting in damage to property legally upon or adjacent to a highway shall take reasonable steps to locate and notify the owner, a peace officer or person in charge of the property of the damage and shall inform the person of the driver's name and address and the registration number of the vehicle causing the damage and shall upon request and if available exhibit the driver's motor vehicle license and shall make report of the accident when and as required in I.C. § 321.266.
(C85, § 27-20; O.10,937, 11,305; C91, § 27-265; O.11,650)

State law reference—Similar provisions, I.C. § 321.265.

Secs. 114-266—114-274. Reserved.

DIVISION 2. MOTORCYCLES AND MOTORIZED BICYCLES

Sec. 114-275. Operation.

(a) *Applicability of chapter.* All sections of this chapter shall apply to the operators of motorcycles and motorized bicycles to the extent reasonable and practicable.

(b) *Riders.*

(1) *Motorized bicycles.* A person operating a motorized bicycle on the highways shall not carry any other person on the vehicle.

(2) *Motorcycles.* A person shall not operate or ride a motorcycle on the highways with another person on the motorcycle unless the motorcycle is designed to carry more than one person. The additional passenger may ride upon the permanent and regular seat if designed for two persons, or upon another seat firmly attached to the motorcycle at the rear of the operator. The motorcycle shall be equipped with footrests for the passenger unless the passenger is riding in a sidecar or enclosed cab. The motorcycle operator shall not carry any person nor shall any other person ride in a position that will interfere with the operation or control of the motorcycle or the view of the operator.

(c) *Sitting position.* A person operating a motorcycle or motorized bicycle shall ride only upon the vehicle's permanent and regular attached seat. Every person riding upon the vehicle shall be sitting astride the seat, facing forward, with one leg on either side of the vehicle.

(d) *Use of traffic lanes.* Persons shall not operate motorcycles or motorized bicycles more than two abreast in a single lane. Except for persons operating such vehicles two abreast, a motor vehicle shall not be operated in a manner depriving a motorcycle or motorized bicycle operator of the full use of a lane. A motorcycle or motorized bicycle shall not be operated between lanes of traffic or between adjacent lines or rows of vehicles. The operator of a motorcycle or motorized bicycle shall not overtake and pass in the same lane occupied by the vehicle being overtaken unless the vehicle being overtaken is a motorcycle or motorized bicycle.

(e) *Use of headlights.* A person shall not operate a 1977 or later model year motorcycle or any model year motorized bicycle upon the highways without displaying at least one lighted headlamp of the type prescribed by the state department of transportation. However, this section is subject to the exceptions with respect to parked vehicles as provided in this chapter.

(f) *Carrying of packages.* The operator of a motorcycle or motorized bicycle shall not carry any package, bundle, or other article which prevents the operator from keeping both hands on the handlebars.

(g) *Handlebars.* A person shall not operate a motorcycle or motorized bicycle with handlebars more than 15 inches in height above that portion of the seat occupied by the operator.

(h) *Parades.* The sections of this division do not apply to motorcycles or motorized bicycles when used in a parade authorized by a proper permit pursuant to chapter 102 of this Code.

(i) *Bicycle safety flags required on motorized bicycles.* When operated on a highway, a motorized bicycle shall have a bicycle safety flag which extends not less than five feet above the ground attached to the rear of the motorized bicycle. The bicycle safety flag shall be triangular in shape with an area of not less than 30 square inches and shall be dayglow in color.
(C85, § 27-175.03; O.10,937; C91, § 27-275; O.11,650)

State law reference—Similar provisions, I.C. § 321.275.

Sec. 114-276. Use of electronic communication device while driving.

(a) For purposes of this section:

(1) *"Electronic message"* includes images visible on the screen of a hand-held electronic communication device including a text-based message, an instant message, a portion of electronic mail, an internet site, a social media application, or a game.

(2) *"Engage in a call"* means talking or listening on a mobile telephone or other portable electronic communication device.

(3) *"Hand-held electronic communication device"* means a mobile telephone or other portable electronic communication device capable of being used to write, send, or view an electronic message. "Hand-held electronic communication device" does not include a voice-operated or hands-free device which allows the user to write, send, or view an electronic message without the use of either hand except to activate or deactivate a feature or function. "Hand-held electronic communication device" does not include a wireless communication device used to transmit or receive data as part of a digital dispatch system. "Hand-held electronic communication device" includes a device which is temporarily mounted inside the motor vehicle, unless the device is a voice-operated or hands-free device.

(4) The terms *"write"*, *"send"*, and *"view"*, with respect to an electronic message, mean the manual entry, transmission, or retrieval of an electronic message, and include playing, browsing, or accessing an electronic message.

(b) A person shall not use a hand-held electronic communication device to write, send, or view an electronic message while driving a motor vehicle unless the motor vehicle is at a complete stop off the traveled portion of the roadway.

(1) A person does not violate this section by using a global positioning system or navigation system or when, for the purpose of engaging in a call, the person selects or enters a telephone number or name in a hand-held mobile telephone or activates, deactivates, or initiates a function of a hand-held mobile telephone.

(2) The provisions of this subsection relating to writing, sending, or viewing an electronic message do not apply to the following persons:

a. A member of a public safety agency, as defined in Iowa Code § 34.1, performing official duties.

b. A health care professional in the course of an emergency situation.

c. A person receiving safety-related information including emergency, traffic, or weather alerts.

d. Nothing in this section shall be construed to authorize a peace officer to confiscate a hand-held electronic communication device from the driver or occupant of a motor vehicle.

e. A violation of this section shall not be considered a moving violation for purposes of this chapter or rules adopted pursuant to this chapter.

(O.15,808)

State law reference—Similar provisions, I.C. § 321.276.

DIVISION 3. SPEED

Sec. 114-277. Reckless driving.

(a) Any person who drives any vehicle in such manner as to indicate either a willful or a wanton disregard for the safety of persons or property is guilty of reckless driving.

(b) Every person convicted of reckless driving shall be guilty of a simple misdemeanor.
(C62, § 30-167; O.8084; C75, C79, § 27-174; C91, § 27-277; O.11,650, 14,374)

State law reference—Similar provisions, I.C. § 321.277.

Sec. 114-277.01. Reserved.

Editor's note—Ord. No. 14,374, § 1, adopted Sept. 27, 2004, repealed § 114-277.01 which pertained to squealing tires and derived from Code 1985, § 27-174.02; Ord. No. 10,769; Code 1991, § 27-227.01; and Ord. No. 11,650.

Sec. 114-277A. Careless driving.

(a) A person commits careless driving if the person intentionally operates a motor vehicle on a public road or highway in any one of the following ways:

(1) Creates or causes unnecessary tire squealing, skidding, or sliding upon acceleration or stopping.

(2) Simulates a temporary race.

(3) Causes any wheel or wheels to unnecessarily lose contact with the ground.

(4) Causes the vehicle to unnecessarily turn abruptly or sway.

(b) A person convicted of violating this section shall pay the scheduled fine in the amount stated at I.C. § 805.8A, subsection 6, paragraph c.
(O.14,374)

Sec. 114-278. Drag racing.

No person shall engage in any motor vehicle speed contest or exhibition of speed on any street or highway, and no person shall aid or abet any motor vehicle speed contest or speed exhibition on any street or highway, except that a passenger shall not be considered as aiding and abetting. The term "motor vehicle speed contest" or "exhibition of speed" is defined as one or more persons competing in speed in excess of the applicable speed limit in vehicles on the public streets or highways.
(C62, § 30-168; O.8084; C75, C79, § 27-175; C91, § 27-278; O.11,650)

State law reference—Similar provisions, I.C. § 321.278.

Secs. 114-279, 114-280. Reserved.

Sec. 114-281. Actions against bicyclists.

(a) A person operating a motor vehicle shall not steer the motor vehicle unreasonably close to or toward a person riding a bicycle on a highway, including the roadway or the shoulder adjacent to the roadway.

(b) A person shall not knowingly project any object or substance at or against a person riding a bicycle on a highway.
(O.15,808)

State law reference—Similar provisions, I.C. § 321.281.

Secs. 114-282, 114-283. Reserved.

Sec. 114-284. Open containers in motor vehicles—Drivers.

A driver of a motor vehicle upon a public street or highway shall not possess in the passenger area of the motor vehicle an open or unsealed bottle, can, jar, or other receptacle containing an alcoholic beverage. "Passenger area" means the area designed to seat the driver and passengers while the motor vehicle is in operation and any area that is readily accessible to the driver or a passenger while in their seating positions, including the glove compartment. An open or unsealed receptacle containing an alcoholic beverage may be transported in the trunk of the motor vehicle. An unsealed receptacle containing an alcoholic beverage may be transported behind the last upright seat of the motor vehicle if the motor vehicle does not have a trunk.
(O.15,808)

State law reference—Similar provisions, I.C. § 321.284.

Sec. 114-285. General restrictions.

(a) Any person driving a motor vehicle on a highway shall drive the vehicle at a careful and prudent speed not greater than nor less than is reasonable and proper, having due regard to the traffic, surface, and width of the highway and of any other conditions then existing, and no person shall drive any vehicle upon a highway at a speed greater than will permit the person to bring it to a stop within the assured clear

distance ahead, such driver having the right to assume, however, that all persons using such highway will observe the law.

(b) Except as modified in this chapter, the lawful speed in any business, school, or residence district shall be 25 miles per hour. Any speed in excess thereof shall be unlawful.
(C62, § 30-169; O.8084; C75, C79, § 27-176; C91, § 27-285; O.11,650)

State law reference—Similar provisions, I.C. § 321.285.

Sec. 114-285.01. Locations designated.

On the through streets or on streets or portions thereof designated in division 2 of article XVI of this chapter, any speed in excess of the speed limit specifically provided therein shall be unlawful when official signs have been erected giving notice of the authorized speed. The maximum speed limits provided for in such division shall not be applicable in established school districts at such locations and times as approved by the city council and when the city engineer shall have caused variable display school speed limit signs and beacons to be erected and illuminated.
(C62, § 30-172; O.8084; C75, C79, C85, § 27-179; O.11,382; C91, § 27-285.01; O.11,650)

Secs. 114-286, 114-287. Reserved.

Sec. 114-288. Control of vehicle; reduced speed.

(a) A person operating a motor vehicle shall have the vehicle under control at all times.

(b) A person operating a motor vehicle shall reduce the speed to a reasonable and proper rate when:

(1) Approaching and passing a person walking in the traveled portion of the public highway.

(2) Approaching and passing an animal which is being led, ridden, or driven upon a public highway.

(3) Approaching and traversing a crossing or intersection of public highways or a bridge, sharp turn, curve, or steep descent in a public highway.

(4) Approaching and passing an emergency warning device displayed in accordance with rules adopted under I.C. § 321.449 or an emergency vehicle displaying a revolving or flashing light.

(5) Approaching and passing a slow moving vehicle displaying a reflective device as provided by I.C. § 321.383.

(6) Approaching and passing through a sign-posted construction or maintenance zone upon the public highway.

(C62, § 30-171; O.8084; C75, C79, § 27-178; O.9897; C85, § 27-178; O.11,305; C91, § 27-288; O.11,650)

State law reference—Similar provisions, I.C. § 321.288.

Sec. 114-289—114-293. Reserved.

Sec. 114-294. Impeding traffic by slow speed.

No person shall drive a motor vehicle at such a slow speed as to impede or block the normal and reasonable movement of traffic except when reduced speed is necessary for safe operation or in compliance with the law. Peace officers are authorized to enforce this section by direction to drivers. The apparent willful disobedience of this section and refusal to comply with the direction of an officer in accordance with this section shall constitute a violation of this chapter and shall be punishable as a scheduled violation in the amount stated at I.C. § 805.8A, subsection 8.
(C62, § 30-170; O.8084; C75, C79, § 27-177; C91, § 27-294; O.11,650, 14,374)

State law reference—Similar provisions, I.C. § 321.294.

Secs. 114-295, 114-296. Reserved.

DIVISION 4. OVERTAKING AND PASSING

Sec. 114-297. Driving on right-hand side of roadway.

(a) A vehicle shall be driven upon the right half of the roadway upon all roadways of sufficient width, except as follows:

(1) When overtaking and passing another vehicle proceeding in the same direction under the rules governing such movement.

(2) When an obstruction exists making it necessary to drive to the left of the center of the roadway, provided any person doing so shall yield the right-of-way to all vehicles traveling in the proper direction upon the unobstructed portion of the roadway within such distance as to constitute an immediate hazard.

(3) Upon a roadway divided into three marked lanes for traffic under the rules applicable thereon.

(4) Upon a roadway restricted to one-way traffic.

(b) Any vehicle proceeding at less than the normal speed of traffic at the time and place and under the conditions then existing shall be driven in the right-hand lane then available for traffic upon all roadways or as close as practicable to the right-hand curb or edge of the roadway, except when overtaking and passing another vehicle proceeding in the same direction or when preparing for a left turn at an intersection, an alley, a private road or a driveway.

(c) A vehicle shall not be driven upon any roadway, having four or more lanes for moving traffic and providing for two-way movement of traffic, to the left of the centerline of the roadway, except when authorized by official traffic control devices designating certain lanes to the left side of the center of the roadway for use by traffic not otherwise permitted to use such lanes, or except as permitted under subsection (a)(2) of this section. This subsection shall not be construed as prohibiting the crossing of the centerline making a left turn into or from an alley, a private road, or a driveway.
(C62, § 30-132; O.8084, 8626; C75, C79, § 27-140; C91, § 27-297; O.11,650)

State law reference—Similar provisions, I.C. § 321.297.

Sec. 114-298. Meeting and yielding.

Except as otherwise provided in section 114-297 of this division, persons on horseback or in vehicles, including motor vehicles, meeting each other on the public highways shall yield one-half of the traveled way thereof by turning to the right.
(C62, § 30-133; O.8084, 8626; C75, C79, § 27-141; C91, § 27-298; O.11,650)

State law reference—Similar provisions, I.C. § 321.298.

Sec. 114-299. Overtaking a vehicle.

The following shall govern the overtaking and passing of vehicles proceeding in the same direction subject to those limitations, exceptions and special rules stated:

(1) The driver of a vehicle overtaking another vehicle proceeding in the same direction shall pass to the left thereof at a safe distance and shall not again drive to the right side of the roadway until safely clear of the overtaken vehicle.

(2) Except when overtaking and passing on the right is permitted, the driver of an overtaken vehicle shall give way to the right in favor of the overtaking vehicle and shall not increase the speed of his or her vehicle until completely passed by the overtaking vehicle.

(C62, § 30-134; O.8084; C75, C79, § 27-142; C91, § 27-299; O.11,650)

State law reference—Similar provisions, I.C. § 321.299.

Secs. 114-300, 114-301. Reserved.

Sec. 114-302. Overtaking on right.

(a) The driver of a vehicle may overtake and pass upon the right of another vehicle which is making or about to make a left turn.

(b) The driver of a vehicle may overtake and, allowing sufficient clearance, pass another vehicle proceeding in the same direction either upon the left or upon the right on a roadway with unobstructed pavement of sufficient width for four or more lanes of moving traffic when such movement can be made in safety.
(C62, § 30-135; O.8084; C75, C79, § 27-143; C91, § 27-302; O.11,650)

State law reference—Similar provisions, I.C. § 321.302.

Sec. 114-303. Limitations on overtaking on left.

No vehicle shall be driven to the left side of the center of the roadway in overtaking and passing another vehicle proceeding in the same direction unless such left side is clearly visible and is free of oncoming traffic for a sufficient distance ahead to permit overtaking and passing to be completely made without interfering with the safe operation of any vehicle approaching from the opposite direction or any vehicle overtaken. The overtaking vehicle must always return to the right-hand side of the roadway before coming within 100 feet of any vehicle approaching from the opposite direction.
(C62, § 30-136; O.8084; C75, C79, § 27-144; C91, § 27-303; O.11,650)

State law reference—Similar provisions, I.C. § 321.303.

Sec. 114-304. Reserved.

Sec. 114-305. One-way roadways and rotary traffic islands.

(a) Upon a roadway designated and sign-posted for one-way traffic, a vehicle shall be driven only in the direction designated.

(b) A vehicle passing around a rotary traffic island shall be driven only to the right of such island.
(C91, § 27-305; O.11,650)

State law reference—Similar provisions, I.C. § 321.305.

Sec. 114-305.01. Locations of one-way streets.

The streets or parts of streets set out in division 5 of article XVI of this chapter are designated as one-way streets, and vehicular traffic shall move thereon only in the direction indicated, when signs are erected giving notice thereof.
(C62, § 30-247; O.8084; C75, C79, § 27-257; C91, § 27-305.01; O.11,650)

Sec. 114-305.02. Erection of signs for one-way streets.

The city engineer shall place and maintain signs indicating the direction of lawful traffic movement at every intersection of the streets designated in division 5 of article XVI of this chapter where movement of traffic in the opposite direction is prohibited.
(C62, § 30-248; O.8084; C75, C79, § 27-258; C91, § 27-305.02; O.11,650)

Sec. 114-305.03. One-way street parking.

(a) Unless prohibited by this Code or other city ordinances regulating or restricting the parking or standing of vehicles on the streets as designated in division 5 of article XVI of this chapter, vehicles may be stopped or parked on such one-way streets with the lefthand wheels adjacent to and within 18 inches but not closer than two inches of the lefthand curb of such streets. Any motorcycle may be stopped or parked with its rear wheel within 18 inches of the lefthand curb.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-249; O.8084, 8754; C75, C79, § 27-259; C91, § 27-305.03; O.11,650, 14,244, 16,470)

Sec. 114-305.04. One-way alleys designated.

(a) All alleys less than 20 feet in width within any business district shall be one-way alleys. Except for the portion of such alleys in which two-way traffic is permitted, all east and west alleys in any business district shall be traversed from east to west, and all north and south alleys shall be traversed from south to north.

(b) The north and south alley between Rollins Avenue and Crocker Street from Forty-first Street to Forty-second Street shall be traversed from south to north.

(c) The east and west alley between East Twenty-first Street and East Twenty-second Street, just north of East University Avenue, shall be traversed from west to east.

(d) The east and west alley between Second Avenue and Third Street, 160 feet south of Court Avenue, shall be traversed from east to west.

(e) The east and west alley between Second Avenue and Third Street, 310 feet south of Court Avenue, shall be traversed from west to east.
(C62, § 30-245; O.8084, 8839; C75, C79, § 27-255; O.10,638; C85, § 27-255; O.11,402; C91, § 27-305.04; O.11,650, 13,218)

Sec. 114-305.05. Erection of signs for one-way alleys.

The city engineer shall place and maintain signs indicating the direction of lawful traffic movement at every intersection of the alleys designated in section 114-305.04, and vehicular traffic shall move thereon only in the direction indicated when such signs are erected.
(C62, § 30-246; O.8084; C75, C79, § 27-256; C91, § 27-305.05; O.11,650)

Sec. 114-306. Marking of traffic lanes; rules for travel.

(a) The city engineer is authorized to mark traffic lanes upon the roadway of any street or highway where a regular alignment of traffic is necessary.

(b) Whenever any roadway has been divided into three or more clearly marked lanes for traffic, the following rules in addition to all others consistent with this section, shall apply:

(1) A vehicle shall be driven as nearly as practical entirely within a single lane and shall not be moved from that lane until such movement can be made with safety.

(2) Upon a roadway which is divided into three lanes, a vehicle shall not be driven in the center lane except when overtaking and passing another vehicle where the roadway is clearly visible and the center lane is clear of traffic within a safe distance, or in preparation for a left turn or where such center lane is at the time allocated exclusively to traffic moving in the direction the vehicle is proceeding and is signposted to give notice of such allocation.

(3) Official signs may be erected directing slow moving traffic to use a designated lane or allocating specified lanes to traffic moving in the same direction, and drivers of vehicles shall obey the directions of every such sign.

(4) Vehicles moving in a lane designated for slow moving traffic shall yield the right-of-way to vehicles moving in the same direction in a lane not so designated when such lanes merge to form a single lane.

(C62, § 30-137; O.8084; C75, C79, § 27-145; C91, § 27-306; O.11,650)

State law reference—Similar provisions, I.C. § 321.306.

Sec. 114-306.01. Traffic lanes allocated.

No person shall operate a vehicle in violation of the signs erected or pavement markings installed giving notice of the allocation of lanes of the street designated in this section. The director of traffic and transportation shall cause necessary and appropriate signs to be posted or necessary pavement markings installed along the street designated as follows, informing the general public of the restrictions:

(1) On Southeast First Street, from Southwest Water Street to Indianola Road, one lane

northbound, one lane southbound, and the center lane northbound and southbound left turn only.

(2) On Sixth Avenue, from Ascension Street to Euclid Avenue, two lanes northbound, two lanes southbound, and the center lane northbound and southbound left turn only.

(3) On Southwest Ninth Street, from West Street to Wade Street, one lane northbound, one lane southbound, and the center lane northbound and southbound left turn only.

(4) On Southwest Ninth Street, from a point 230 feet south of McKinley Avenue to a point 300 feet south thereof, two lanes northbound, two lanes southbound, and the center lane northbound and southbound left turn only.

(5) On Easton Boulevard, from East Twenty-second Street to Avenue Frederick M. Hubbell, one lane eastbound, one lane westbound, and the center lane eastbound and westbound left turn only.

(6) On Bell Avenue, from 200 feet east of Fleur Drive to 150 feet west of Druid Hill Drive, one lane eastbound, one lane westbound, and center lane eastbound and westbound left-turn only.

(7) On Grand Avenue, from West Third Street to East Sixth Street, one lane eastbound and the remaining lanes westbound.

(8) On Crocker Street, from Sixteenth Street to Nineteenth Street, two lanes westbound and one lane eastbound.

(9) On Hickman Road, from 400 feet west of Thirtieth Street to Fortieth Place, two lanes eastbound, two lanes westbound and the center lane eastbound and westbound left turn lane.

(10) On Hickman Road, from a point 300 feet west of Beaver Avenue to Fifty-seventh Street, two lanes eastbound, two lanes westbound and the center lane eastbound and westbound left turn lane.

(11) On University Avenue, from Twenty-fourth Street to 650 feet west of Forty-eight Street, two lanes eastbound, two lanes westbound, and the center lane eastbound and westbound left turn only.

(12) On Beaver Avenue, from Urbandale Avenue to a point 290 feet north of Madison Avenue, and from Shawnee Avenue to Aurora Avenue, one lane northbound, one lane southbound, and the center lane northbound and southbound left turn only.

(13) On Lower Beaver Road, from Douglas Avenue to Valdez Drive (west leg), on lane northbound, one lane southbound, and the center lane northbound and southbound left turn only.

(14) On East Court Avenue, from a point 500 feet east of East Seventh Street to a point 300 feet west of East Fourteenth Street, one lane eastbound, one lane westbound, and the center lane eastbound and westbound left turn only.

(15) On Ingersoll Avenue, from a point 160 feet west of Fourteenth Street to a point 170 feet east of Forty-second Street, one lane eastbound, one lane westbound, and the center lane eastbound and westbound left turn only.

(16) On Scott Avenue, from a point 150 feet west of Southeast Fourth Street to Southeast Sixth Street, one lane eastbound, one lane westbound, and the center lane eastbound and westbound left turn only.

(C62, § 30-138; O.8084, 8096, 8389; C75, § 27-146; O.8974, 9070; C79, § 27-146; O.10,722; C85, § 27-146; O.11,340; C91, § 27-306.01; O.11,650, 11,848, 11,935, 13,707, 13,972, 14,057, 14,336, 14,437, 14,472, 14,580, 14,884, 15,209, 16,299)

Sec. 114-307. Following too closely.

The driver of a motor vehicle shall not follow another vehicle more closely than is reasonable

and prudent, having due regard for the speed of such vehicles and the traffic upon and the condition of the highway.
(C62, § 30-139; O.8084; C75, C79, § 27-147; C91, § 27-307; O.11,650)

State law reference—Similar provisions, I.C. § 321.307.

Secs. 114-308—114-310. Reserved.

DIVISION 5. TURNING AND STARTING AND SIGNALS ON STOPPING AND TURNING

Sec. 114-311. Turning at intersections.

The following shall be applicable when the driver of a vehicle intends to turn:

(1) Right at an intersection. Both the approach for a right turn and a right turn shall be made as close as practical to the right-hand curb or edge of the roadway.

(2) Left on two-way streets. At any intersection where traffic is permitted to move in both directions on each street entering the intersection, an approach for a left turn shall be made in that portion of the right half of the roadway nearest the centerline thereof and by passing to the right of such centerline where it enters the intersection, and after entering the intersection the left turn shall be made so as to leave the intersection to the right of the centerline of the roadway being entered.

(3) Left on other than two-way streets.

a. At any intersection where traffic is restricted to one direction on one or more of the streets, both the approach for a left turn and a left turn shall be made as close as practical to the left-hand curb or edge of the roadway.

b. The city engineer is authorized to place markers, buttons, or signs within or adjacent to intersections indicating the course to be traveled by vehicles turning at such intersections; the course to be traveled as so indicated may conform to or be other than as prescribed by this section.

(C62, §§ 30-141, 30-142; O.8084; C75, C79, § 27-149; C62, § 30-140; O.8084; C75, C79, § 27-148; C91, § 27-311; O.11,650)

State law reference—Similar provisions, I.C. § 321.311.

Sec. 114-311.01. Limitations on turning around.

(a) The driver of any vehicle shall not turn his or her vehicle so as to proceed in the opposite direction (sometimes referred to as a U-turn) upon any street in a business district when official traffic control devices are erected and shall not upon any other street so turn a vehicle unless such movement can be made in safety and without interfering with other traffic.

(b) No person shall make a U-turn with a vehicle within any intersection where traffic is controlled by a traffic control signal.
(C62, § 30-143; O.8084; C75, C79, § 27-150; C91, § 27-311.01; O.11,650)

Sec. 114-311.02. Certain U-turns prohibited.

No driver of any motor vehicle shall make a U-turn within 200 feet of any traffic channelizing island.
(C62, § 30-144; O.8084; C75, C79, § 27-151; C91, § 27-311.02; O.11,650)

Sec. 114-311.03. Prohibited right turns.

No person shall make a right turn with a vehicle at the following location: at the intersection of Pennsylvania Avenue and Walker Street, prohibiting right turns from northbound Pennsylvania Avenue to eastbound Walker Street.
(C85, § 27-151.01; O.11,547; C91, § 27-311.03; O.11,650)

Sec. 114-312. Reserved.

Sec. 114-313. Starting parked vehicle.

No person shall start or otherwise put in motion a vehicle which is stopped, standing or parked unless and until such movement can be made with reasonable safety.
(C85, § 27-175.04; O.10,937; C91, § 27-313; O.11,650)

State law reference—Similar provisions, I.C. § 321.313.

Sec. 114-314. Signal required for turning.

No person shall turn a vehicle from a direct course upon a street unless and until such movement can be made with reasonable safety and then only after a clearly audible signal by sounding the horn, if any pedestrian may be affected by such movement, or after giving an appropriate signal in the manner provided in this division, if any other vehicle may be affected by such movement.
(C62, § 30-147; O.8084; C75, C79, § 27-154; C91, § 27-314; O.11,650)

State law reference—Similar provisions, I.C. § 321.314.

Sec. 114-315. Continuous signal of intent to turn.

A signal of intention to turn right or left shall be given continuously during not less than the last 100 feet traveled by the vehicle before turning when the speed limit is 45 miles per hour or less and a continuous signal during not less than the last 300 feet when the speed limit is in excess of 45 miles per hour.
(C62, § 30-148; O.8084; C75, C79, § 27-155; C91, § 27-315; O.11,650)

State law reference—Similar provisions, I.C. § 321.315.

Sec. 114-316. Signal upon slowing down or stopping.

No person shall stop or suddenly decrease the speed of a vehicle without first giving an appropriate signal in the manner provided in this division to the driver of any vehicle immediately to the rear when there is opportunity to give such signal.
(C62, § 30-149; O.8084; C75, C79, § 27-156; C91, § 27-316; O.11,650)

State law reference—Similar provisions, I.C. § 321.316.

Sec. 114-317. Signal by hand and arm or signal device.

(a) The signals required under this division may be given either by means of the hand and arm as provided in section 114-318 of this division or by a mechanical or electrical directional signal device or light of a type approved by the state department of transportation and conforming to the sections of this chapter relating thereto.

(b) Directional signal devices shall be designed with white, yellow or amber lamps to be displayed on the front of vehicles and with lamps of red, yellow or amber to be displayed on the rear of vehicles. Such devices shall be capable of clearly indicating any intention to turn either to the right or to the left and shall be visible and understandable during both daylight and darkness from a distance of at least 100 feet from the front and rear of a vehicle equipped therewith.

(c) No person shall sell or offer for sale or operate on the city highways any vehicle subject to registration under state law which has never been registered in this or any other state prior to January 1, 1954, unless the vehicle is equipped with a directional signal device of a type approved by the state department of transportation and is in compliance with subsection (b) of this section. Motorcycles, motor scooters, bicycles with motor attached and semitrailers and trailers less than 40 inches in width are exempt from this section.

(d) When a vehicle is equipped with a directional signal device, such device shall at all times be maintained in good working condition. No directional signal device shall project a glaring or dazzling light. All directional signal devices shall be self-illuminated when in use while other lamps on the vehicle are lighted.

(e) Whenever any vehicle or combination of vehicles is disabled or for other reason may present a vehicular traffic hazard requiring unusual care in approaching, overtaking or passing during the hours of darkness, the operator may display on such vehicle or combination of

vehicles four directional signals of a type complying with this section relating to directional signal devices in simultaneous operation.
(C62, § 30-151; O.8084; C75, C79, § 27-157; C91, § 27-317; O.11,650)

State law reference—Similar provisions, I.C. § 321.317.

Sec. 114-318. Method of giving hand and arm signals.

All signals required under this division which may be given by hand and arm shall, when so given, be given from the left side of the vehicle, and the following manner and interpretation thereof is suggested:

(1) *Left turn.* Hand and arm extended horizontally.

(2) *Right turn.* Hand and arm extended upward.

(3) *Stop or decrease of speed.* Hand and arm extended downward.

(C62, § 30-151; O.8084; C75, C79, § 27-158; C91, § 27-318; O.11,650)

State law reference—Similar provisions, I.C. § 321.318.

DIVISION 6. RIGHT-OF-WAY

Sec. 114-319. Approaching or entering intersections.

(a) When two vehicles enter an intersection from different highways or public streets at approximately the same time, the driver of the vehicle on the left shall yield the right-of-way to the vehicle on the right.

(b) The rule in subsection (a) of this section is modified at through streets and as otherwise stated in this chapter.
(C62, § 30-152; O.8084; C75, C79, § 27-159; C91, § 27-319; O.11,650)

State law reference—Similar provisions, I.C. § 321.319.

Sec. 114-319.02. Locations of three-way stop intersections.

The following intersections are hereby designated as three-way intersections. Stop signs shall be installed and maintained at the following intersections and the driver of a vehicle approaching these intersections from the directions hereinafter designated shall stop in accordance with this chapter before entering these intersections:

(1) East Douglas Avenue and East Thirty-eighth Street. The driver of a vehicle approaching this intersection from the south, east and west shall stop before entering the intersection.

(2) Pennsylvania Avenue and East Washington Avenue. The driver of a vehicle approaching this intersection from the east, north and south shall stop before entering the intersection.

(3) County Line Road and Southeast Fifth Street. The driver of a vehicle approaching this intersection from the north, east and west shall stop before entering this intersection.

(4) Watrous Avenue and Southwest Twenty-sixth Street. The driver of a vehicle approaching this intersection from the east, north and south shall stop before entering the intersection.

(5) Guthrie Avenue (west) and North Union Street. The driver of a vehicle approaching this intersection from the north, south and west shall stop before entering the intersection.

(6) Mulberry Street and Thirteenth Street. The driver of a vehicle approaching this intersection from the north, east and west shall stop before entering the intersection.

(7) Southwest Eleventh and DART Way. The driver of a vehicle approaching this intersection from the north, south, and east shall stop before entering the intersection.

(8) Lynner Drive and Martin Luther King Jr Parkway. The driver of a vehicle approaching this intersection from the north, south, and west shall stop before entering the intersection.

(9) Walnut Street and Fourth Street. The driver of a vehicle approaching this

intersection from the south, east and west shall stop before entering the intersection.

(10) Glenview Drive/River Oaks Drive and Southwest Forty-second Street. The driver of a vehicle approaching this intersection from the north, east, and west shall stop before entering the intersection.

(11) East Market Street (private) and Southeast Second Street. The driver of a vehicle approaching this intersection from the north, south, and east shall stop before entering the intersection.

(12) East Market Street (private) and Southeast Third Street. The driver of a vehicle approaching this intersection from the north, east, and west shall stop before entering the intersection.

(C62, § 30-550; O.8084, 8108; C75, § 27-562; O.9503, 9609; C79, § 27-562; O.10,466; C85, § 27-562; O.11,382; C91, § 27-319.02; O.11,650, 13,393, 13,581, 13,647, 13,773, 13,918, 13,933, 14,437, 14,721, 14,982, 14,987, 15,620, 15,750, 15,881, 15,947, 16,370)

Sec. 114-319.03. Location of four-way stop intersections.

The following intersections are designated as four-way stop intersections. Stop signs shall be installed and maintained at the following intersections, and the driver of a vehicle approaching these intersections from all directions shall stop in accordance with this chapter before entering the intersections:

(1) Adams Avenue and Thirty-eighth Street.

(1a) Arthur Avenue and East Ninth Street.

(2) Aurora Avenue and Sixth Avenue.

(2a) Aurora Avenue and Fiftieth Street.

(3) Aurora Avenue and Cornell Street.

(3a) Bel-Aire Road and Lower Beaver Road.

(3b) Buchanan Street and East Thirteenth Street.

(4) Carpenter Avenue and Twenty-fifth Street.

(4a) Cassady Drive and Druid Hill Drive.

(5) Center Street and Twelfth Street.

(5a) Center Street and Fifteenth Street.

(5b) Center Street and Nineteenth Street.

(5b.5) Cherry Street and Eight Street.

(5b.6) Cherry Street and Ninth Street.

(5c) Clark Street and Ninth Street.

(6) Clark Street and Thirteenth Street.

(7) Clark Street and Sixteenth Street.

(8) Cleveland Avenue and East Twelfth Street.

(9) Cleveland Avenue and East Thirteenth Street.

(9a) Cleveland Avenue and Hutton Street.

(10) College Avenue at Seventh Street.

(11) College Avenue at Eighth Street.

(12) College Avenue at Ninth Street.

(12a) College Avenue at Thirteenth Street.

(12b) College Avenue and Forty-fourth Street.

(13) Cornell Street and East Douglas Avenue.

(14) Cornell Street and Hull Avenue.

(15) Cornell Street and East Madison Avenue.

(16) Cornell Street and East Sheridan Avenue.

(17) Corning Avenue and Fourth Street.

(18) Cottage Grove Avenue and Twenty-fifth Street.

(18a) Cottage Grove Avenue and Twenty-eighth Street.

(19) Not Used.

(20) Delaware Avenue and Hull Avenue.

(20a) East Fifth and Des Moines Street.

(21) East Diehl Avenue and Southeast Eighth Street.

(21a) Dixon Street and Hull Avenue.

(22) Drake Park Avenue and Twenty-third Street.

(23) Drake Park Avenue and Twenty-fourth Street.

(24) Douglas Avenue and Ninth Street.

(24a) Douglas Avenue and East Twenty-eighth Street.

(25) Not Used.

(26) East Douglas Avenue and East Forty-second Street.

(26a) East Hull Avenue and East Fortieth Court.

(27) Easton Boulevard and Delaware Avenue.

(28) Easton Boulevard and East Forty-second Street.

(29) Evergreen Avenue and Southeast Twenty-second Street.

(30) Evergreen Avenue and Southeast Thirty-fourth Street.

(31) Forest Avenue and Ninth Street.

(32) Forest Avenue and Thirteenth Street.

(33) Forest Avenue and Sixteenth Street.

(34) Forest Avenue and Forty-first Street.

(34a) Forest Avenue and Forty-fourth Street.

(35) Fremont Street and East Ninth Street.

(36) Franklin Avenue, Merklin Way and Fifty-sixth Street.

(37) Franklin Avenue and Merle Hay Road.

(37a) Franklin Avenue and Thirty-fourth Street.

(37b) Franklin Avenue and Thirty-eighth Street.

(38) Franklin Avenue and Forty-eighth Street.

(38a) Franklin Avenue and Fifty-fifth Street.

(38b) Garfield Avenue and East Twelfth Street.

(39) Geil Avenue and Southwest Fourteenth Street.

(39a) Grandview Avenue and East Thirteenth Street.

(40) Greenwood Drive and Forty-second Street.

(41) Guthrie Avenue and East Ninth Street.

(41a) Hart Avenue and Southeast Twenty-fourth Street.

(42) Hull Avenue and East Twenty-fourth Street.

(42a) Hillcrest Drive and Lyndale Drive.

(43) Hull Avenue and East Twenty-fifth Street.

(44) Hull Avenue and East Thirty-eighth Street.

(45) Ingersoll Avenue and Polk Boulevard.

(45a) Ingersoll Avenue and Fifty-sixth Street.

(45b) Jefferson Avenue and Seventh Street.

(46) Kingman Boulevard and Twenty-fifth Street.

(47) Kingman Boulevard and Twenty-eighth Street.

(47a) Kingman Boulevard and Thirty-fifth Street.

(47b) Kingman Avenue and Fifty-eighth Street.

(48) Madison Avenue and Twelfth Street.

(48a) Lawnwoods Drive and Twana Drive.

(48b) Laurel Street and Fifth Avenue.

(48c) Lower Beaver Road and Bel Aire Road.

(48d) East Locust Street at East Fifth Street.

(49) Madison and Thirtieth Street.

(49a) Madison and Thirty-ninth Street.

(50) Madison Avenue and Fiftieth Street.

(51) McKinley Avenue and South Union Street.

(51a) Southwest McKinley and Southwest Fifty-sixth Street.

(52) Meredith Drive at Fiftieth Street.

(52a) Morton Avenue and East Thirteenth Street.

(52b) Mulberry Street and Thirteenth Street.

(53) New York Avenue and Forty-seventh Street.

(54) North Union Street and Sheridan Avenue.

(55) Park Avenue and South Union Street.

(56) Park Avenue and Southwest Twelfth Street.

(57) Park Avenue and Southeast Twenty-second Street.

(58) East Park Avenue and Southeast Fifth Street.

(59) East Park Avenue and Southeast Eighth Street.

(60) Payton Avenue and South Union Street.

(60a) Pleasant Street and Tenth Street.

(61) Pleasant Street and Nineteenth Street.

(62) Porter Avenue and Southwest Fourteenth Street.

(63) Porter Avenue and South Union Street.

(63a) East Porter Avenue and Southeast Twenty-fourth Street.

(64) Scott Avenue and Southeast Sixth Street.

(64a) Scott Avenue and Southeast Twenty-eighth Street.

(65) Shawnee Avenue and Forty-third Street.

(65a) East Sheridan Avenue and East Twenty-fifth Street

(66) East Sheridan Avenue and East Thirty-eighth Street.

(66a) South Union Street and Leach Avenue.

(67) South Union Street and Watrous Avenue.

(67a) Stanton Avenue and Southwest Twenty-sixth Street.

(67b) Twana Drive and Forty-sixth Street.

(67b.5) Urbandale Avenue and Fiftieth Street

(67c) Walnut Street & Fifteenth Street

(67d) East Walnut Street and East Sixteenth Street.

(68) East Washington Avenue and East Ninth Street.

(69) East Washington Avenue and East Twelfth Street.

(70) East Washington Avenue and East Thirteenth Street.

(71) Watrous Avenue and Southwest Fourteenth Street.

(72) East Watrous Avenue and Southeast Fifth Street.

(72a) Watson Powell Jr Way and Fourth Street.

(73) Woodland Avenue and Fifteenth Street.

(73a) Woodland Avenue and Seventeenth Street.

(73b) Woodland Avenue and Twenty-fourth Street.

(74) Woodland Avenue and Twenty-eighth Street.

(75) Woodland Avenue and Thirty-ninth Street.

(C62, § 30-551; O.8084, 8094, 8108, 8274, 8412, 8501, 8586, 8698; C75, § 27-563; O.9061, 9116, 9163, 9219, 9254, 9331, 9390, 9490, 9508, 9541, 9602, 9613; C79, § 27-563; O.9681, 9721, 9766, 9800, 9814, 9823, 9840, 9853, 9976, 10,037, 10,046, 10,323, 10,476, 10,692; C85, § 27-563; O.11,086; 11,096, 11,199, 11,256, 11,277, 11,296, 11,448; C91, § 27-319.03; O.11,650, 11,725, 11,751, 11,774, 11,877, 11,920, 12,005, 12,049, 12,089, 13,073, 13,099, 13,207, 13,235, 13,291, 13,292, 13,341, 13,393, 13,543, 13,566, 13,610, 13,646, 13,647, 13,666, 13,724, 13,740, 13,762, 13,780, 13,833, 13,869, 13,877, 13,933, 13,954, 14,132, 14,189, 14,198, 14,246, 14,297, 14,304, 14,309, 14,322, 14,339, 14,371, 14,388, 14,404, 14,418, 14,421, 14,437, 14,537, 14,541, 14,576, 14,579, 14,704, 14,816, 14,833, 14,876, 14,939, 14,970, 14,982, 15,262, 15,330, 15,340, 15,351, 15,614, 15,692, 15,815, 15,881, 15,943, 15,991, 16,255, 16,299, 16,397, 16,511)

Sec. 114-319.04. Location of five-way stop intersections.

The following intersections are designated as five-way stop intersections. Stop signs shall be installed and maintained at the following intersections, and the driver of a vehicle approaching these intersections from any direction shall stop in accordance with this chapter before entering the intersections:

(1) Forty-ninth Street, Woodland Avenue and Country Club Boulevard.

(2) Sixtieth Street, Cummins Parkway and Clark Street.

(C62, § 30-552; O.8084; C75, C79, § 27-564; C91, § 27-319.04; O.11,650, 13,858, 16,299)

Sec. 114-320. Yielding for left turns.

The driver of a vehicle intending to turn to the left within an intersection or into an alley, private road, or driveway shall yield the right-of-way to all vehicles approaching from the opposite direction which are within the intersection or so close to the intersection, alley, private road or driveway as to constitute an immediate hazard, then the driver, having so yielded and having given a signal when and as required by this chapter, may make such left turn.

(C62, § 30-153; O.8084, 8626; C75, C79, § 27-160; O.10,245; C91, § 27-320; O.11,650)

State law reference—Similar provisions, I.C. § 321.320.

Sec. 114-320.01. Prohibited left turns.

No person shall make a left turn with a vehicle at the following locations:

(1) At the intersection of East Euclid Avenue and Des Moines Freeway (Interstate Highway 235), prohibiting left turns from westbound East Euclid Avenue to southbound ramp, and prohibiting left turns from eastbound East Euclid Avenue to the northbound entrance ramp.

(2) At the intersection of Sixth Avenue and Mercy Drive, prohibiting left turns from westbound Mercy Drive to southbound Sixth Avenue, between 3:00 p.m. and 6:00 p.m.

(3) At the intersection of Forty-second Street and Des Moines Freeway (Interstate Highway 235), prohibiting left turns from southbound Forty-second Street to the eastbound entrance ramp.

(4) At the intersection of Southwest Ninth Street and Tuttle Street, prohibiting left turns from the southbound service road of Southwest Ninth Street to Tuttle Street.

(5) Reserved.

(6) At the intersection of Hickman Road and Sixty-first Street, prohibiting left turns from eastbound Hickman Road to northbound Sixty-first Street, between 7:00 a.m. to 9:00 a.m. and 4:00 p.m. to 6:00 p.m., Monday through Saturday.

(7) At the intersection of Fleur Drive and Iowa Highway 5, prohibiting left turns from southbound Fleur Drive to the eastbound Iowa 5 entrance ramp, and prohibiting left turns from northbound Fleur Drive to the westbound Iowa 5 entrance ramp.

(8) At the intersection of Iowa Highway 28 and Iowa Highway 5, prohibiting left turns from southbound Iowa 28 to the eastbound Iowa 5 entrance ramp, and prohibiting left turns from northbound Iowa 28 to the westbound Iowa 5 entrance ramp.

(9) At the intersection of Forty-first Street and University Avenue, prohibiting left turns and through movements from southbound Forty-first Street to and/or across University Avenue.

(10) At the intersection of East Diehl Avenue and a private driveway 220 feet west of Southeast Fourteenth Street, prohibiting left turns northbound from the driveway to East Diehl Avenue.

(11) At the intersection of Fifty-seventh Street and a private driveway 350 feet north of Douglas Avenue, prohibiting left turns eastbound from the driveway to Fifty-seventh Street.

(12) At the intersection of Grand Avenue and a private driveway 500 feet west of 19th Street, prohibiting left turns northbound from the driveway to Grand Avenue.

(13) At the intersection of Grand Avenue and a private driveway 1,140 feet west of 19th Street, prohibiting left turns northbound from the driveway to Grand Avenue.

(14) At the intersection of Forty-second Street and Chamberlain Avenue, prohibiting left turns and through movements from eastbound Chamberlain Avenue to and/or across Forty-second Street.

(C62, § 30-145; O.8084, 8366, 8412, 8798, 8886, 8905; C75, C79, § 27-152; O.10,260; C85, § 27-

152; O.11,098; C91, § 27-320.01; O.11,650, 12,006, 14,237, 14,653, 14,732, 14,861, 14,920, 15,242, 15,736)

Sec. 114-320.02. Reserved.

Editor's note—Ord. No. 15,172, § 1, adopted March 11, 2013, repealed § 114-320.02, which pertained to Walnut Transit Mall turning restrictions and derived from Code 1985, § 27-152.01; Ord. No. 10,748; Code 1991, § 27-320.02; Ord. No. 11,650.

Sec. 114-321. Entering through highways.

The driver of a vehicle shall stop or yield as required by this chapter at the entrance to a through highway and shall yield the right-of-way to other vehicles which have entered the intersection from the through highway or which are approaching so closely on the through highway as to constitute a hazard. The driver having so yielded may proceed cautiously and with due care enter the through highway.
(C62, § 30-154; O.8084; C75, C79, § 27-161; C91, § 27-321; O.11,650)

State law reference—Similar provisions, I.C. § 321.321.

Sec. 114-321.01. Signs required at through streets.

Whenever any section of this Code or city ordinance designates and describes a through street, the city engineer shall place and maintain a stop or yield sign on every street intersecting such through street unless traffic at any such intersection is controlled at all times by traffic control signals. However, at the intersection of two such through streets or at the intersection of a through street and a heavy traffic street not so designated, stop signs or traffic control signals may be erected at the approaches of either of such streets as may be determined by the city engineer upon the basis of an engineering and traffic study.
(C62, § 30-331; O.8084; C75, C79, § 27-342; O.10,696, 10,730; C91, § 27-321.01; O.11,650)

Sec. 114-321.02. Location of through streets.

The streets or parts of streets set out in division 6 of article XVI of this chapter are designated as through streets and shall be controlled by stop or yield signs as indicated in this division, and connecting roadways at intersections designated shall be controlled by stop or yield signs as indicated.
(C62, § 30-332; O.8084; C75, C79, § 27-343; O.10,730; C91, § 27-321.02; O.11,650)

Sec. 114-322. Entering stop or yield intersection.

(a) The driver of a vehicle shall likewise stop or yield in obedience to a stop or yield sign as required in this chapter at an intersection where a stop or yield sign is erected at one or more entrances thereto although not a part of a through highway. He or she shall proceed cautiously, yielding to vehicles not so obliged to stop or yield which are within the intersection or approaching so closely as to constitute a hazard, but may then proceed.

(b) The driver of a vehicle approaching a yield sign shall in obedience to such sign slow down to a speed reasonable for the existing conditions or shall stop if necessary and shall yield the right-of-way to any pedestrian legally crossing the roadway on which he or she is driving and to any vehicle in the intersection or approaching on another highway so closely as to constitute a hazard. The driver having so yielded may proceed with caution.
(C62, § 30-155; O.8084; C75, C79, § 27-162; C91, § 27-322; O.11,650)

State law reference—Similar provisions, I.C. § 321.322.

Sec. 114-323. Backing vehicle on street or highway.

No person shall cause a vehicle to be moved in a backward direction on a street or highway unless and until he or she can do so with reasonable safety, and he or she shall yield the right-of-way to any approaching vehicle on the street or highway or intersecting street or highway thereto which is so close thereto as to constitute an immediate hazard.
(C62, § 30-162; O.8084; C75, C79, § 27-169; C91, § 27-323; O.11,650)

State law reference—Similar provisions, I.C. § 321.323.

Sec. 114-324. Operation upon approach of emergency vehicles.

(a) Upon the immediate approach of an authorized emergency vehicle, with any lamp or device displaying a red light or flashing red light from directly in front thereof or when the driver is giving audible signal by siren, exhaust whistle or bell, the driver of every other vehicle shall yield the right-of-way and shall immediately drive to a position parallel to and as close as possible to the right-hand edge or curb of the highway clear of any intersection and shall stop and remain in such position until the authorized emergency vehicle has passed, except when otherwise directed by a police officer.

(b) This section shall not operate to relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons using the highway.
(C62, § 30-156; O.8084; C75, C79, § 27-163; C91, § 27-324; O.11,650)

State law reference—Similar provisions, I.C. § 321.324.

ARTICLE VI. PEDESTRIAN RIGHTS AND DUTIES

Sec. 114-325. Obedience to traffic signals.

(a) Pedestrians shall be subject to traffic control signals at intersections as declared in this chapter, but at all other places pedestrians shall be accorded the privileges and shall be subject to the restrictions stated in sections 114-327 to 114-330 of this article.

(b) Any person failing to heed the command of an automatic traffic control signal shall be subject to punishment as provided in subsection 1-15(b) of this Code.
(C62, § 30-122; O.8084; C75, C79, § 27-130; C91, § 27-325; O.11,650)

State law reference—Similar provisions, I.C. § 321.325.

Sec. 114-326. Reserved.

Sec. 114-327. Right-of-way.

Where traffic control signals are not in place or in operation, the driver of a vehicle shall yield the right-of-way, slowing down or stopping if need be to so yield, to a pedestrian or a person riding a bicycle crossing the roadway within any marked crosswalk or within any unmarked crosswalk at an intersection, except as otherwise provided in this chapter.
(C62, § 30-123; O.8084; C75, C79, § 27-131; C91, § 27-327; O.11,650, 16,409)

State law reference—Similar provisions, I.C. § 321.327.

Sec. 114-327.01. Designation of crosswalks and establishment of safety zones.

The city engineer is authorized to:

(1) Designate and maintain, by appropriate devices, marks, or lines upon the surface of the roadway, crosswalks at intersections and at such other places as he or she may deem necessary where there is particular danger to pedestrians crossing the roadway.

(2) Establish safety zones of such kind and character and at such places as he or she may deem necessary for the protection of pedestrians.

(C62, § 30-131; O.8084; C75, C79, § 27-139; C91, § 27-327.01; O.11,650)

Sec. 114-328. Pedestrian safety, yielding.

(a) Every pedestrian crossing a roadway at any point other than within a marked crosswalk or within an unmarked crosswalk at an intersection shall yield the right-of-way to all vehicles upon the roadway.

(b) No pedestrian shall cross a roadway with a speed limit of 30 miles per hour or higher or in any business or school district other than in a crosswalk.
(C62, § 30-124; O.8084; C75, C79, § 27-132; C91, § 27-328; O.11,650, 15,770)

State law reference—Similar provisions, I.C. § 321.328.

Sec. 114-328.01. Pedestrian safety, use of medians.

(a) The city council makes the following findings and adopts the following statement of purposes of this section:

(1) Pedestrian fatalities increased in the United States by 46% from 2009 to 2016,

with the largest increases in urban arterial streets, according to the Insurance Institute for Highway Safety.

(2) Fifty percent of pedestrians who are struck by a vehicle travelling at 30 miles per hour are killed; as speed increases, a higher percentage of people struck are killed, according to the U. S. Department of Transportation, *Literature Review on Vehicle Travel Speeds and Pedestrian Injuries* (2000).

(3) The National Association of City Transportation Officials Urban Street Design Guide (2011) states that a median or island should be at least six feet wide where pedestrians are present. This is consistent with the Public Rights-of-Way Accessibility Guidelines promulgated by the United States Access Board which specify that a pedestrian refuge in a street must have a top surface width of six feet, excluding curbs.

(4) The city engineer has determined based on city GIS maps and/or, where appropriate, site visits that the intersections listed in subsection (b) of this section do not have medians or islands of adequate width for pedestrian refuge; therefore, pedestrians should be prohibited from standing, sitting or staying in the medians at these intersections for any purpose other than to cross the street.

(b) For streets with a speed limit of 30 miles per hour or higher, pedestrians are prohibited from standing, sitting or staying on a median for any purpose other than to cross the street unless the width of the top surface of the median, excluding the curbs is at least six feet wide. This prohibits pedestrians from standing, sitting or staying on a median at the following intersections in the city:

E 9th St and E University Ave

E Park Ave and SE 14th St

McKinley Ave and Fleur Dr

McKinley Ave and Indianola Ave

McKinley Ave and SE 14th St

McKinley Ave and SW 9th St

Park Ave and Fleur Dr

Park Ave and SW 9th St

S Union St and Army Post/E Army Post Rd

SE 1st St and Indianola Ave

SE 5th St and E Army Post Rd

SW 14th St and Army Post Rd

SW 2nd/Indianola Ave and SE 2nd/Jackson Ave

SW 9th St and Bell Ave

SW 9th St and Boulder Ave

SW 9th St and Herold Ave

Thornton Ave and SW 63rd/SE 1st St

Watrous Ave and Fleur Dr

Watrous Ave and SE 14th St

Watrous Ave and SW 9th St

63rd St and Ashworth Rd

63rd St and Grand Ave

63rd St and University Ave

63rd St and Vine St

Army Post Rd and HWY 28

Army Post Rd and SW 14th St

Army Post Rd and SW 42nd St

Army Post Rd and SW 7th St

Bell Ave and Fleur Dr

Douglas Ave and 57th St

Douglas Ave and 59th St

Douglas Ave and 61st St

Douglas Ave and 62nd St

Douglas Ave and Beaver Ave

Douglas Ave and Lower Beaver/Euclid Ave

E 14th St and E Court Ave

E 14th St and Andy Williams Ave

E 14th St and E Douglas Ave

E 14th St and E Euclid Ave

E 14th St and E Oak Park Ave

E 14th St and E Seneca Ave
E 14th St and E University Ave
E 14th St and Fremont St
E 14th St and Guthrie Ave
E 14th St and Hull Ave
E 14th St and NE Aurora Ave
E 15th St and Johnson Ct
E Army Post Rd and S Union St
E Army Post Rd and SE 14th St
E Euclid Ave and Delaware Ave
E Euclid Ave and Dixon St
E Euclid Ave and E 25th St
E Euclid Ave and E 26th St - East
E Euclid Ave and E 26th St - West
E Euclid Ave and E 28th St
E Euclid Ave and E 29th St
E Euclid Ave and E 30th St
E Euclid Ave and E 31st St
E Euclid Ave and E 32nd St
E Euclid Ave and E 33rd St
E Euclid Ave and I 235 Ramp - East
E University Ave and E 22nd Ct
E University Ave and E 22nd St
E University Ave and E 23rd Ct
E University Ave and E 23rd St
E University Ave and E 24th St
E University Ave and E 25th Ct
E University Ave and E 25th St
E University Ave and E 26th St
E University Ave and E 27th St
E University Ave and E 28th Ct
E University Ave and E 29th St
E University Ave and E 30th St
E University Ave and E 32nd St
E University Ave and E 33rd Ct
E University Ave and E 33rd St
E University Ave and E 8th St
E University Ave and E 9th St
E University Ave and Hubbell Ave
E University Ave and Pennsylvania Ave
E University Ave and Williams St
Echo Valley Dr and SW 42nd St
Euclid Ave and Martin Luther King Jr Pkwy
Euclid Ave and Polk County Offices
Fleur Dr and Cowles/Highview Dr
Fleur Dr and Cowles/Porter Ave
Fleur Dr and Crossroad Pl
Fleur Dr and Echo Valley Dr/County Line Rd
Fleur Dr and Gannett Ave
Fleur Dr and George Flagg Pkwy
Fleur Dr and Grays Lake/John R Grubb Ln
Fleur Dr and Hackley Ave
Fleur Dr and HWY 5 Ramp - North
Fleur Dr and HWY 5 Ramp - South
Fleur Dr and Kenyon Ave
Fleur Dr and Leland Ave
Fleur Dr and McKinley Ave
Fleur Dr and Park Ave
Fleur Dr and Payton Ave
Fleur Dr and Rittenhouse St
Fleur Dr and Southlawn Dr
Fleur Dr and Stanton Ave
Fleur Dr and Wakonda View Dr
Fleur Dr and Watrous Ave
Fleur Dr and Willowmere Dr
Guthrie Ave and Delaware Ave
Guthrie Ave and I 235 Ramps
Guthrie Ave and Tichenor St
Hickman Rd and 18th St
Hickman Rd and 59th St

Hickman Rd and 62nd St

Hickman Rd and 63rd St

Hickman Rd and Merle Hay Rd

Hickman Rd and Westover Blvd

Hickman Rd and 30th St

Hubbell Ave and E 29th St

Hubbell Ave and E 37th St

Hubbell Ave and E Broadway Ave

Hubbell Ave and E Euclid Ave

HWY 28 and Pine Ave

HWY 28 and SW Leland Ave

HWY 28 and Willow Creek Ave

Indianola Ave and Dunham Ave

Indianola Ave and E Porter Ave

Indianola Ave and Easter Lake Dr

Indianola Ave and Ewing Trace Blvd

Indianola Ave and Hart Ave

Indianola Ave and McKinley Ave

Indianola Ave and SE 1st/Indianola RD

Indianola Ave and SE 60th Ave

Indianola/SW 2nd St and Jackson/SE 2nd St

Johnson Ct and E Court Ave

Johnson Ct and Walker St

Keo Way and 10th St

Keo Way and 11th St

Keo Way and 12th St

Keo Way/19th St and Carpenter Ave

Keo Way and Crocker/Oakridge Dr

Keo Way and I 235 Ramps

Martin Luther King Jr Pkwy and Hickman Rd

Martin Luther King Jr Pkwy and Ingersoll Ave

Martin Luther King Jr Pkwy and Post St

Martin Luther King Jr Pkwy and Urbandale Ave

Martin Luther King Jr Pkwy and Woodland Ave

Merle Hay Rd and Aurora Ave

Merle Hay Rd and Boston Ave

Merle Hay Rd and Douglas Ave

Merle Hay Rd and Madison Ave

Merle Hay Rd and Meredith Dr

Merle Hay Rd and Merle Hay Mall Entrance

Merle Hay Rd and Sutton Dr

Merle Hay Rd and Urbandale Ave

Mulberry Street and 8th Street

Mulberry Street and 9th Street

Park Ave and SW 56th St

Park Ave and SW 61st St

SE 14th St and Cummins Rd

SE 14th St and E Bell Ave

SE 14th St and E Diehl Ave

SE 14th St and E Edison Ave

SE 14th St and E Emma Ave

SE 14th St and E Herold Ave

SE 14th St and E Kenyon Ave

SE 14th St and E Lacona Ave

SE 14th St and E Park Ave

SE 14th St and E Railroad Ave

SE 14th St and E Thornton Ave

SE 14th St and E Virginia Ave

SE 14th St and Harriet St

SE 14th St and Hart Ave

SE 14th St and Hartford Ave

SE 14th St and Indianola Ave

SE 14th St and King Ave

SE 14th St and Maury St

SE 14th St and McKinley Ave

SE 14th St And Pioneer Rd

SE 14th St and SE Peach/Bloomfield Rd

SE 14th St and Watrous Ave

SE 5th St and Army Post Rd

SW 63rd St and Locust/Welker Ave

SW 63rd St and Scout Trail

SW 63rd St and Thornton Ave

SW 63rd St and Tonka Ave

SW 63rd St and Veterans Pkwy

SW 63rd St and Walnut/Muskogee Ave

SW 63rd St and Watrous Ave

SW 7th St and Thomas Beck/Indianola Rd

SW 9th St and Army Post Rd

SW 9th St and Herold Ave

SW 9th St and Hillside Ave

SW 9th St and McKinley Ave

SW 9th St and Morgan St

SW 9th St and SW 9th/Bancroft St

Thomas Beck Rd and SW 9th St

Thomas Beck/Indianola Rd and SW 7th and Courtland Dr

University Ave and Illinois St

University Ave and 2nd Ave

University Ave and 6th Avenue

W Martin Luther King, Jr Pkwy and Fleur Dr

W Martin Luther King, Jr Pkwy and SW 16th St

(c) Section 114-328.01(b) does not apply to:

(1) Police officers, peace officers and parking enforcement personnel of the police department or employees of the fire department while performing official duties of the city.

(2) Employees or contactors for the city or other individuals authorized by the city to perform construction or maintenance work on city streets or rights-of-way, while performing construction or maintenance work on the street provided that proper street signage is used and streets are blocked off as required by the city.

(3) Any individual responding to an emergency in the street.

(C62, § 30-125; O.8084; C75, C79, § 27-133; C91, § 27-328.01; O.11,650, 15,770, 16,061, 16,276)

Sec. 114-329. Duty of driver to exercise due care.

(a) Notwithstanding section 114-328 of this article, every driver of a vehicle shall exercise due care to avoid colliding with any pedestrian upon any roadway and shall give warning by sounding the horn when necessary and shall exercise due care upon observing any child or any confused or incapacitated person upon a roadway.

(b) Every driver of a vehicle shall yield the right-of-way to pedestrian workers engaged in maintenance or construction work on a street whenever the driver is notified of their presence by a flagperson or a warning sign.

(C62, § 30-126; O.8084; C75, C79, § 27-134; C91, § 27-329; O.11,650)

State law reference—Similar provisions, I.C. § 321.329.

Sec. 114-330. Use of crosswalks.

Pedestrians shall move, whenever practicable, upon the right half of crosswalks.

(C62, § 30-127; O.8084; C75, C79, § 27-135; C91, § 27-330; O.11,650)

State law reference—Similar provisions, I.C. § 321.330.

Sec. 114-331. Soliciting rides.

(a) No person shall stand in a roadway for the purpose of soliciting a ride from the driver of any private vehicle.

(b) Nothing in this section or chapter shall be construed to prevent any pedestrian from standing on that portion of the highway or roadway, not ordinarily used for vehicular traffic, for the purpose of soliciting a ride from the driver of any vehicle.

(C62, § 30-128; O.8084; C75, C79, § 27-136; C91, § 27-331; O.11,650)

State law reference—Similar provisions, I.C. § 321.331.

Sec. 114-332. White canes restricted to blind persons.

No person except one wholly or partially blind shall carry or use on any public street, highway or sidewalk a cane or walking stick white in color or white tipped with red.
(C62, § 30-129; O.8084; C75, C79, § 27-137; C91, § 27-332; O.11,650)

State law reference—Similar provisions, I.C. § 321.332.

Sec. 114-333. Duty of drivers to blind pedestrians.

(a) Any driver of a vehicle or operator of a motor-driven vehicle who approaches or comes in contact with a person wholly or partially blind carrying a cane or walking stick white in color or white tipped with red or being led by a guide dog wearing a harness and walking on either side of or slightly in front of such blind person shall immediately come to a complete stop and take such precautions as may be necessary to avoid accident or injury to such person.

(b) It shall be unlawful for any person to carry a cane or walking stick such as prescribed in I.C. § 321.332 contrary to this section or to fail to heed the approach of a person lawfully so carrying a cane or walking stick white in color or white tipped with red or being led by a guide dog or assistive animal, as defined in I.C. § 216C.11, or to fail to immediately come to a complete stop and take precautions against accident or injury to such person.
(C62, § 30-130; O.8084; C75, C79, § 27-138; C91, § 27-333; O.11,650)

State law reference—Similar provisions, I.C. § 321.333.

Secs. 114-334—114-339. Reserved.

Sec. 114-340. Driving through safety zones.

No vehicle shall at any time be driven through or within a safety zone.
(C62, § 30-161; O.8084; C75, C79, § 27-168; C91, § 27-340; O.11,650)

State law reference—Similar provisions, I.C. § 321.340.

Sec. 114-340.01. Driving in zones of quiet.

Whenever authorized signs are erected indicating a zone of quiet, no person operating a motor vehicle within any such zone shall sound the horn or other warning device of the vehicle except in an emergency.
(C62, § 30-159; O.8084; C75, C79, § 27-166; C91, § 27-340.01; O.11,650)

Sec. 114-340.02. Driving on sidewalks.

No person shall drive a vehicle upon any sidewalk or within any sidewalk area except at a permanent or temporary driveway.
(C62, § 30-163; O.8084; C75, C79, § 27-170; C91, § 27-340.02; O.11,650)

Sec. 114-340.03. Driving on public lands.

(a) As used in this section, the term "public land" shall mean any land owned by the city, the county, the state, or the federal government, not specifically designated a public park, which lies within the law enforcement jurisdiction of the city police department. The term shall include levees constructed and located along the banks of the Des Moines and Raccoon Rivers in this city.

(b) It shall be unlawful for any person to ride or drive any motorized vehicle upon any public land except upon established roads and ways designated and marked for such purpose on such land, and no person shall exceed a speed limit of 20 miles per hour upon any such road or way.

(c) The owner of public land as set forth in subsection (a) of this section shall cause to be erected at the entrance to or borders of such land signs which state that motor vehicles are prohibited thereon. The sign shall identify the governmental entity which owns or controls the land.

(d) Nothing contained in this section shall be construed to forbid the owner of public land as set forth in subsection (a) of this section from designating specific areas upon which motorized vehicles may be ridden or driven other than on established roads and ways.
(C79, § 27-170.01; O.9934; C91, § 27-340.03; O.11,650)

Sec. 114-340.04. Encroachment on end portion of dead-end streets or culs-de-sac for recreational activities.

(a) At the request of an abutting property owner, the city council shall determine whether to allow an encroachment for recreational activities at the end portion of a dead-end street or cul-de-sac.

(b) Before granting such request the city council shall hold a hearing upon such proposed encroachment with written notice of such hearing mailed to each abutting property owner by certified mail, return receipt requested, at least ten days prior to the date of the hearing. The city council shall determine at the public hearing whether the encroachment necessary to the anticipated recreational activity may be safely erected, maintained and utilized as proposed and whether such recreational activity is compatible with maintaining reasonable use of the street right-of-way by the other abutting owners and their families, business and social visitors and invitees.

(c) Upon approval of such encroachment, the abutting owner who is desirous of erecting and maintaining such encroachment over, upon or in the public right-of-way shall secure a license or lease for such encroachment pursuant to article VIII of chapter 102 of this Code; provided, however, in issuing such license or lease the city engineer shall require pursuant to section 102-612 liability insurance in an amount not less than $100,000.00 general liability coverage with the city named as an additional insured on the policy.

(d) Upon the granting of such a license or lease for encroachment, the city engineer shall cause an appropriate warning sign to be installed in accordance with the provisions of the state manual on uniform traffic control devices as most recently adopted by the state department of transportation. Whenever such signs are erected no person shall drive a vehicle upon any such street or portion thereof, except those persons whose residences are within the encroachment area, their families, business or social visitors and invitees, or drivers of emergency vehicles, and then all such drivers shall exercise the greatest care in driving upon such street or portion thereof.

(e) Any such encroachment already existing in the public right-of-way prior to the effective date of the ordinance from which this section derives shall be brought to the attention of the city council by the city engineer so that this section may be followed.

(C62, § 30-160; O.8084; C75, C79, § 27-167; C85, § 27-167; O.11,102; C91, § 27-340.04; O.11,650)

Sec. 114-340.05. Operation for purpose of advertising prohibited.

No person shall operate on any street any vehicle for the primary purpose of advertising.

(C62, § 30-166; O.8084; C75, C79, § 27-173; C91, § 27-340.05; O.11,650)

ARTICLE VII. SPECIAL STOPS

Sec. 114-341. Obedience to signal of train.

(a) When a person driving a vehicle approaches a railroad grade crossing and warning is given by automatic signal, crossing gates, a flagperson, or otherwise of the immediate approach of a train, the driver of the vehicle shall stop within 50 feet but not less than 15 feet from the nearest rail and shall not proceed until the driver can do so safely.

(b) The driver of a vehicle shall stop and remain standing and shall not traverse such a grade crossing when a crossing gate is lowered or when a flagperson gives or continues to give a signal of the approach or passage of a train.

(C62, § 30-33; O.8084; C75, C79, § 27-37; C91, § 27-341; O.11,650)

State law reference—Similar provisions, I.C. § 321.341.

Sec. 114-342. Specifications for traffic control devices.

Whenever, by this division or other section of this chapter or other city traffic ordinance, traffic control devices are required to be erected, the form and size of the traffic control devices shall conform to such standards as may be fixed by the state manual on uniform traffic control devices

adopted by the state department of transportation, but if not fixed by it the city engineer is authorized to determine the form and size thereof. (C62, § 30-34; O.8084; C75, C79, § 27-38; C91, § 27-342; O.11,650)

Secs. 114-343—114-352. Reserved.

Sec. 114-353. Stop before crossing sidewalk; right-of-way.

(a) The driver of a vehicle emerging from a public or private roadway, alley, driveway or building shall stop such vehicle immediately prior to driving onto the sidewalk area, and thereafter he or she shall proceed into the sidewalk area only when he or she can do so without danger to pedestrian traffic. Such driver shall yield the right-of-way to any vehicular traffic on the street into which his or her vehicle is entering.

(b) The driver of a vehicle about to enter or cross a street from a private road or driveway shall stop the vehicle immediately prior to driving on the street and shall yield the right-of-way to all approaching vehicles.
(C62, § 30-158; O.8084; C75, C79, § 27-165; C91, § 27-353; O.11,650)

State law reference—Similar provisions, I.C. § 321.353.

Sec. 114-354. Reserved.

ARTICLE VIII. STOPPING, STANDING AND PARKING*

Sec. 114-354.01. Buses.

(a) The operator of a bus shall not stop such vehicle upon any street at any place for the purpose of loading or unloading passengers or their baggage other than at a bus stop, bus stand or passenger loading zone, except in an emergency.

(b) The operator of a bus shall enter a bus stop, bus stand or passenger loading zone on a public street in such a manner that the bus, when stopped to load or unload passengers or baggage, shall be in a position with the right front wheel of the vehicle not further than 18 inches from the curb and the bus approximately parallel to the curb so as not to impede unduly the movement of other vehicular traffic.

(c) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-679; O.8084; C75, C79, § 27-694; C91, § 27-354.01; O.11,605, 14,244, 16,470)

Secs. 114-355, 114-356. Reserved.

Sec. 114-357. Parking on viaducts.

(a) No person shall park or permit a vehicle to stand on any viaduct within the city.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-673; O.8084; C75, C79, § 27-688; C91, § 27-357; O.11,650, 14,244, 16,470)

Sec. 114-358. Prohibited in specified places.

(a) No person shall stop, stand or park a vehicle, except when necessary to avoid a conflict with other traffic or in compliance with the directions of a police officer or traffic control device, in any of the following places:

(1) On a sidewalk.

(2) In front of or within two feet of a public or private driveway.

(3) Within an intersection.

(4) On a crosswalk.

(5) Within 25 feet upon the approach to any flashing beacon, stop sign or traffic control signal located at the side of a roadway.

(6) Between a safety zone and the adjacent curb or within ten feet of points on the curb immediately opposite the ends of a safety zone.

(7) Within 50 feet of the nearest rail of a railroad crossing, except when parked parallel with such rail and not exhibiting a red light.

*__Cross references—__Outdoor parking lot, § 30-126 et seq.; zoning ordinance, ch. 134.

(8) Alongside or opposite any street excavation or obstruction when such stopping, standing or parking would obstruct traffic.

(9) On the roadway side of any vehicle stopped or parked at the edge or curb of a street.

(10) Adjacent to or on the center parkway or dividing area of any divided street.

(11) In front of a curb cut or ramp which is located on public or private property in a manner which blocks access to the curb cut or ramp.

(12) Adjacent to or in front of a curb bump-out when such stopping, standing or parking would obstruct traffic.

(13) Within a minimum of 40 feet approaching an intersection and within 25 feet following an intersection.

(14) Within a minimum of 25 feet of a marked crosswalk not located within an intersection.

(b) No person shall stop, stand or park a vehicle, except when necessary to avoid a conflict with other traffic or in compliance with the directions of a police officer or traffic control device, in any of the following places:

(1) Within five feet of a fire hydrant.

(2) Within 20 feet of the driveway entrance to any fire station and on the side of a street opposite the entrance to any fire station within 75 feet of the entrance when property signposted.

(3) Where any official traffic control device prohibits stopping or parking.

(4) Within a distance up to 150 feet from an intersection, where the city traffic engineer has determined that parking in such area would restrict the turning movement or visibility of traffic on an approaching side street and has caused official parking restriction signs to be installed to clearly identify the restricted parking area.

(c) No person shall stop, stand or park a vehicle, except when necessary to avoid a conflict with other traffic or in compliance with the directions of a police officer or traffic control device, upon any street when the stopping, standing or parking is prohibited by the sections of this chapter relating to removal of snow or ice from the streets.

(d) A person who violates the provisions of this section shall pay a $35.00 fine.
(C62, § 30-663; O.8084, 8817, 8855; C75, C79, § 27-678; C91, § 27-358; O.11,650, 14,244, 14,518, 15,577, 16,421, 16,470)

State law reference—Similar provisions, I.C. § 321.358.

Sec. 114-359. Moving vehicles of others into prohibited areas.

No person shall move a vehicle not owned by him or her into any area prohibited by this article or an unlawful distance away from a curb.
(C62, § 30-668; O.8084; C75, C79, § 27-683; C91, § 27-359; O.11,650)

State law reference—Similar provisions, I.C. § 321.359.

Sec. 114-360. Parking in spaces in front of assembly places.

(a) A space of 25 feet is reserved at the side of the street in front of every theater, auditorium, hotel having more than 25 sleeping rooms, office building having more than three stories or other building where large assemblages of people are being held. No motor vehicle shall be left standing, parked or stopped within these spaces except in taking on or discharging passengers or freight or picking up tickets, and then only for a length of time necessary for such purposes, provided that such spaces shall first be marked by signs with the words "no parking - loading zone" or "no parking - ticket pick-up" thereon, as appropriate, or the curbing adjacent thereto painted with yellow paint.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-671; O.8084; C75, C79, § 27-686; O.10,418; C91, § 27-360; O.11,650, 14,244, 16,470)

State law reference—Similar provisions, I.C. § 321.360.

Sec. 114-361. Parking at right-hand curb.

(a) Except as otherwise provided in this chapter and including as specifically provided in section 114-305.03 of this chapter as to one-way streets, every vehicle stopped or parked upon a roadway where there is an adjacent curb shall be stopped or parked with the righthand wheels of the vehicle parallel with and within 18 inches but not closer than two inches of the righthand curb.

(b) It shall be unlawful to drive any vehicle against or upon any curb damaging any part thereof.

(c) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-661; O.8084; C75, C79, § 27-676; C91, § 27-361; O.11,650, 14,244, 16,470)

State law reference—Similar provisions, I.C. § 321.361.

Sec. 114-361.01. Angle parking.

(a) The initiation of angle parking at any location where such parking is not in existence is prohibited except at the following locations:

(1) Bridal Row, on the east side, from Fifteenth Street to Pleasant Street.

(2) Court Avenue, on the south side, from Water Street to Fifth Avenue.

(3) Keosauqua Way, on both sides, from Sixth Avenue to Seventh Street.

(4) East Hillside Avenue, on the south side, from Southeast Sixth Avenue to 240 feet west thereof.

(5) Murphy Street, on the south side, from Southwest Eleventh Street to 500 feet east thereof.

(6) East Market Street, on the south side, from Southeast Fifth Street to Southeast Sixth Street.

(b) The initiation of back-in angle parking at any location is prohibited except at the following locations:

(1) Court Avenue, on the south side, from Water Street to East Third Street.

(2) Walnut Street, on the north side, from Water Street to East First Street.

(3) East Fourth Street, on the west side, from Locust Street to Grand Avenue.

(4) East Fourth Street, on both sides, from Grand Avenue to Des Moines Street.

(5) East Fifth Street, on the east side, from Walnut Street to Grand Avenue.

(6) Shaw Street, on the south side, from Southeast Fifth Street to Southeast Sixth Street.

(7) Twenty-third Street, on the west side, from Ingersoll Avenue to High Street.

(8) Chamberlain Avenue, on the north side, from Forty-second Street to a point 135 feet west thereof.

(9) Southeast Seventh Street, on the west side, from East Vine Street to East Elm Street.

(10) East Vine Street, on the south side, from Southeast Sixth Street to Southeast Seventh Street.

(c) When signs are erected giving notice thereof, no person shall park a vehicle in any parking space designated for back-in angle parking except by positioning their vehicle entirely within the marked space, with the rear of the vehicle to the curb side of the street and the front of the vehicle to the traveled lanes of the street.

(d) Angle parking shall be permitted to continue at locations where the distance between the painted centerline and the parking curb line is equal to or greater than the minimum requirement established by the following formula:

Minimum Width from Centerline to Parking Curb line = VAVE/400 × 10' + 19'

(e) The letters "VAVE" as used in the formula in subsection (b) of this section represent the average hourly volume of cars during the four highest hours of a day.

(f) The cost of installing and maintaining facilities for angle parking shall be borne by the abutting property owners, and if they or any of them shall fail to refuse to do so, the city reserves the right to withdraw the privilege of this method of parking.

(g) Nothing within this section shall prohibit parking by more than one motorcycle within one parking space as otherwise provided in this chapter.

(h) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-662; O.8084, 8754; C75, C79, C85, § 27-677; O.10,894; C91, § 27-361.01; O.11,650, 11,667, 13,600, 13,727, 13,924, 14,244, 14,437, 14,608, 14,901, 15,649, 15,670, 15,736, 15,926, 16,470)

Sec. 114-361.02. Illegal off-street parking.

(a) No person shall drive, stop, stand, or park a vehicle onto or upon privately owned property or an area developed as an off-street parking facility, without the consent of the owner, lessee or person in charge of the privately owned property or facility. If a parking permit is issued by the property owner to the lessee, it must be displayed. A violation of this section shall place such vehicle in the status of an illegally parked vehicle and, upon complaint of the owner, lessee or person in charge of the privately owned property or facility, the vehicle may be dealt with pursuant to section 114-485.01 and/or 114-485.11 of this chapter.

(b) No person shall park a vehicle in violation of the parking provisions in subsection 135-6.6 of this Code.

(c) Reserved.

(d) No person shall park a car in a publicly owned parking space developed as a parking space for an electric vehicle charging station without actively charging their vehicle (by conductive or inductive means).

(1) Parking spaces for electric vehicle charging stations that are controlled by parking meters shall require the user to insert payment in accordance with the parking meter rates defined in section 114-643.

(e) A person who violates any provisions of this section shall pay a fine of $40.00.
(C62, § 30-664; O.8084, 8557; C75, C79, § 27-679; C91, § 27-361.02; O.11,650, 14,195, 14,244, 14,795, 15,079, 15,583, 15,819)

Sec. 114-361.03. Designation of parking spaces for city employees and officials on city-owned property.

(a) The following described parking areas are reserved parking space for city employees and officials, designated by the city manager:

(1) The north 133.4 feet of block 3, East Fort Des Moines, lying south of and adjoining East Grand Avenue between Robert D. Ray Drive and East Second Street.

(2) All of the entire paved parking lot lying between the west curbline of East First Street and the Des Moines River and between the north line of East Vine Street and the main line track of the Des Moines Union Railway Company.

(3) All of the entire paved parking lot lying between the south line of the Municipal Court Building and such line projected east, and a line ten feet north of and parallel to the centerline of the main line track of the Des Moines Union Railway Company and extending from the east line of East First Street to the west line of East Second Street.

(4) All of the entire paved parking lot lying between the south line of the police department garage and such line projected west and the south line of the Municipal Court Building projected east and extending from the east line of the Municipal Court Building to the west line of East Second Street.

(5) All of the entire paved right-of-way under the Eighth Street Viaduct from Cherry Street to a point 180 feet north thereof.

(6) The south 20 feet of vacated East Vine Street from the east right-of-way line of East First Street to the west right-of-way line of East Second Street, and the north 22 feet of lot 5, all of lots 6 and 7 and the vacated north/south alley of and adjoining lot 7, all in block C, Scott and Dean's Addition.

(7) All that part of vacated East Elm Street lying south of and adjoining block 30, Town of De Moine.

(8) All of the entire gravel parking lot including lots 7, 8, 9, 10 and 11 and all that part of the vacated north/south alley right-of-way lying west of and adjoining said lots 10 and 11, all in Block D, Scott and Dean's Addition.

(b) Only the designated city employees and officials shall park in the reserved and restricted areas. Every such employee and official must display an authorized city parking permit on the vehicle.

(c) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-665; O.8084, 8153, 8510; C75, C79, § 27-680; O.9984; C85, § 27-680; O.10,808; C91, § 27-361.03; O.11,650, 14,244, 14,437, 15,670, 16,470)

Sec. 114-361.05. Designation of parking spaces for school district lots.

(a) No person shall drive, stop or park a vehicle onto or upon property controlled by the Des Moines Independent Community School District between the hours of 6:00 a.m. to 12:00 midnight, Monday through Friday, except those persons who have obtained permission from the school district and clearly display a permit to park on such property. A violation of this section shall place such vehicle in the status of an illegally parked vehicle and, upon complaint of the school district, the vehicle may be dealt with pursuant to section 114-485.11 of this chapter.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C85, § 27-680.02; O.10,902; C91, § 27-361.05; O.11,650, 14,244, 16,470)

Sec. 114-361.06. Public library and public park lots.

(a) No person shall park a vehicle in the underground reserved section of the main library parking lot at Tenth Street and Grand Avenue without authorization granted by the library director. All non-reserved parking spaces in this area are considered public parking spaces and is restricted to two hour parking only

(b) No person shall park a vehicle in the paved parking lot immediately south of the branch library at 3516 Fifth Avenue after business hours. This lot is reserved for library customers only during business hours.

(c) No person shall park a vehicle in the paved parking lot adjacent to the branch library at 5000 Franklin Avenue after business hours. This lot is reserved for library customers only during business hours.

(d) No person shall park a vehicle in the paved parking lots immediately adjacent to the mid-city branch library at 1305 University Avenue and directly south of the branch library on the south side of University after business hours. These lots are reserved for library customers only during business hours.

(e) No person shall park a vehicle in the paved parking lot on the east side of Second Avenue immediately southwest of the Women of Achievement Bridge after 11:00 p.m. This lot is restricted to two hour parking only during park hours.

(f) A person who violates any provision of this section shall pay a fine of $20.00.
(C85, § 27-680.03; O.11,211; C91, § 27-361.06; O.11,650, 14,244, 14,748, 15,736, 16,470)

Sec. 114-361.07. Armory parking lot; designation of parking spaces.

(a) The following described portion of the city-owned parking lot located north of and adjacent to the Armory Building at East First and Des Moines Streets is reserved as parking spaces for authorized American Legion employees and city employees and officials:

Lot 1 of block 1, East Fort Des Moines Addition, except the south 27 feet thereof; lot 1, through and including lot 12, Sibley Addition, except the south 27 feet of lot 12; the 14-foot wide alley between lot 9, Water Power Place Plat Two and Sibley Addition; part of lot 9, Water Power Place Plat Two beginning at the

northeast corner of such lot 9 thence southerly 330 feet along the east lot line; thence westerly to the top of the riverbank; thence northerly along the top of the riverbank to the east abutment of the Center Street Dam; thence northerly along the east abutment to the north lot line; thence easterly along such north lot line to the point of beginning; also, the south half of lot 13, Griffiths Outlots and the alley between such lot 13 and lot 1, Sibley Addition.

No person except those designated persons shall park in the reserved and restricted area between the hours of 7:00 a.m. and 4:30 p.m. All designated persons must display an authorized city parking permit on their vehicle.

(b) No person shall park a motor truck at any time in the armory parking lot.

(c) The city engineer is directed to erect appropriate signs informing the general public of the restrictions.

(d) A person who parks a vehicle in violation of any provision of this section shall pay a fine of $20.00.
(C62, § 30-666; O.8084; C75, C79, § 27-681; O.9984; C91, § 27-361.07; O.11,650, 14,244, 16,470)

Sec. 114-361.08. Parking without valid registration plates.

(a) No person shall park nor shall any owner knowingly permit to be parked upon any street, park road or publicly owned parking facility any motor vehicle required to be registered unless there shall be attached thereto and displayed thereon when and as required by law a valid registration plate issued therefor for the current registration year.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C79, § 27-682; O.10,273; C91, § 27-361.08; O.11,650, 14,244, 16,470)

Sec. 114-361.09. Parking in alleys.

(a) No person shall park a vehicle in any alley except for the expeditious loading, unloading and delivery which is incident to the loading and unloading of material or merchandise or passengers. In no event shall any vehicle park in any alley for more than 40 minutes at any one time unless otherwise designated in subsection (b) of this section.

(b) Any person otherwise in compliance with subsection (a) shall park for no more than ten minutes at any one time in the following described alleys:

(1) Alley between East Locust Street and East Grand Avenue, on both sides, from East Fourth Street to East Fifth Street.

(c) A person who violates any provision of this section shall pay a fine of $30.00.
(C62, § 30-699; O.8084; C75, § 27-684; C91, § 27-361.09; O.11,650, 14,244, 16,352)

Sec. 114-361.10. Parking outside curblines.

(a) No person shall park a vehicle on any portion of any street between the curbline and the lot line, except that on recommendation of the city engineer, duly approved by resolution of the city council, parking may be permitted at such locations when requested in writing by property owners.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-670; O.8084; C75, C79, § 27-685; C91, § 27-361.10; O.11,650, 13,620, 14,195, 14,244, 16,470)

Sec. 114-361.11. Parking near mail collection boxes adjacent to streets.

(a) No vehicle shall be parked within a distance of 20 feet on either side of a United States Post Office-owned mail collection box which is so placed and equipped as to permit the deposit of mail from vehicles on the roadway.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-672; O.8084; C75, § 27-687; O.9308; C79, § 27-687; C91, § 27-361.11; O.11,650, 14,244, 16,470)

Sec. 114-361.12. Parking under bridge or viaduct.

(a) No person shall park a motor vehicle under any bridge or viaduct within the city when signs giving notice of the regulation have been posted under the bridge or viaduct.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-674; O.8084; C75, C79, § 27-689; C91, § 27-361.12; O.11,650, 14,244, 16,470)

Sec. 114-361.13. Parking continuously in one place more than 24 hours.

(a) No person shall park any vehicle and permit it to remain standing upon any public street or public metered lot in the city continuously and in one place for a period of more than 24 hours except as specified in subsection 114-361.13(b).

(b) Vehicles and trailers owned or operated by city departments, or used for work directly under contract or subcontract with the city shall be exempt from sections 114-361.13(a) and 114-632.

(c) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-675; O.8084, 8777; C75, C79, § 27-690; O.10,421; C91, § 27-361.13; O.11,650, 14,244, 16,470, 16,511)

Sec. 114-361.14. Parking for certain purposes prohibited.

(a) No person shall stand or park a vehicle upon any roadway for the principal purpose of:

(1) Advertising.

(2) Displaying it for sale.

(3) Washing, greasing or repairing it, except for repairs necessitated by an emergency.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-676; O.8084; C75, C79, § 27-691; C91, § 27-361.14; O.11,650, 14,244, 16,470)

Sec. 114-361.15. Erection of temporary signs prohibiting parking near excavations and obstructions.

(a) No person shall excavate or obstruct any street until he or she shall have first obtained a permit authorizing such excavation.

(b) The city engineer may authorize the erection of temporary no parking signs alongside or opposite the area of excavation if the stopping, standing or parking of vehicles therein would obstruct traffic.

(c) A person who parks a vehicle in violation of the no parking signs erected by authority of this section shall pay a fine of $20.00.
(C62, § 30-677; O.8084; C75, C79, § 27-692; C91, § 27-361.15; O.11,650, 14,244, 16,470)

Sec. 114-361.16. Parking on culs-de-sac and on dead-end streets.

(a) When signs are erected giving notice thereof, no person shall park a motor vehicle on any cul-de-sac.

(b) When signs are erected giving notice thereof, no person shall park in the turnaround area nor at any place between the posted sign and the dead end of a dead-end street.

(c) A person who violates any provision of this section shall pay a fine of $20.00.
(C75, § 27-692.01; O.9139; C79, § 27-692.01; C91, § 27-361.16; O.11,650, 14,244, 16,470)

Sec. 114-361.17. No parking on emergency order of chief of police.

(a) The chief of police may, upon issuance of an emergency order, cause temporary no parking signs to be posted on or about streets of the city. No person shall park in violation of signs so posted.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-678; O.8084; C75, C79, § 27-693; C91, § 27-361.17; O.11,650, 14,244, 16,470)

Sec. 114-361.18. Special parking permits.

Except as provided by section 114-361.17 of this article, the sections of this chapter regulating the parking and standing of vehicles shall not apply to a vehicle parking or standing in accord with a permit issued by the city engineer. (C62, § 30-678.01; O.8846; C75, § 27-693.01; O.9218; C79, § 27-693.01; C91, § 27-361.18; O.11,650)

Sec. 114-361.19. Special parking permit issuance.

(a) The city traffic engineer is authorized to issue a special parking permit for a vehicle, trailer or container to park or stand or for any other use on a public street where such parking, standing or use is otherwise prohibited or regulated by the provisions of this chapter. Application therefor shall list one or more specific vehicles, trailers, containers or uses, shall be directed to the office of the city traffic engineer, and shall contain information as the city traffic engineer shall deem pertinent to the application. Such permit shall only be issued when the city traffic engineer reasonably determines that said parking, standing or use is required in the performance of a public service or to satisfy a public need under the guidance of section 114-361.21 of this article. Such permit shall grant permission for parking, standing or other use in a specific area of a public street or way in the city.

(b) The city traffic engineer is authorized to issue a special parking permit for the use of parking spaces or other specific areas of a public street or way in the city in conjunction with a street use permit issued under article XVI of chapter 102 of this Code.

(c) The effective period of the permit may be a set number of days, not to exceed one year, and the inclusive dates of the permit shall be clearly displayed thereon. The permit may also specify the time or times of day when such parking is authorized as well as the days of the week to which it is limited.

(d) Except in situations of immediate emergency or in unique situations which have been recognized and approved by the city traffic engineer, such parking shall be prohibited during specific hours in locations where signs are currently in place prohibiting parking during those hours.

(e) The permit shall be clearly displayed in the window of the vehicle or on the trailer or container for which it is issued.

(f) Applicants are required to pay an application fee, the daily meter rate fee and the meter hood fee of the reserved meter(s) for the time period the meters are reserved, not less than a 24-hour period, except as specified in subsection 114-361.19(h). Payment is required at the time the permit is issued. The charges for the application fee, daily meter rate fee, and the meter hood fee may be waived or reduced by the city traffic engineer or his or her designated representative in accordance with policy adopted by the city council by resolution.

(g) The application fee, meter hood fee and daily meter rate fee as may be reduced in accordance with city council adopted policy are set out in the schedule of fees adopted by the city council by resolution. The daily meter rate charged for hooding parking meters shall be calculated using the specific parking meter district location of the meter(s) to be hooded and the daily meter rates designated in section 114-643 of this Code and be calculated based upon a 12-hour day. The daily meter rate fee shall be an additional fee only during normal days of parking meter operations as designated in section 114-644 of this Code. A meter hood fee will be charged for days when the daily meter rate fee is not charged.

(h) Vehicles, trailers and containers owned or operated by governmental agencies, or used for work directly under contract or subcontract with the city shall be exempt from the application fee, daily meter rate fee and meter hood fee requirements.

(i) A person who parks a vehicle in violation of any provision of this section or of the terms of the special parking permit shall pay a fine as set out in the schedule of fees.
(C75, § 27-693.02; O.9218; C79, § 27-693.02; O.10,600; C85, § 27-693.02; O.11,548; C91, § 27-361.19; O.11,650, 13,727, 14,084, 14,195, 14,244, 14,533, 14,556, 14,811, 15,454, 15,750, 15,778)

Sec. 114-361.20. Parking permitted by special act of city council.

The city traffic engineer reserves the right to revoke the permit if requirements of the permit are not followed or there are unforeseen impacts to motorized or non-motorized traffic flow as a

result of permit issuance. The city council may upon application of any interested person review the issuance, revocation, or denial of any permit issued under this article by the city engineer, either individually or collectively, and, after determining the applicability of the pertinent provisions of section 114-361.21 of this article, direct the issuance, modification or revocation of the permit.
(C75, § 27-693.03; O.9218; C79, § 27-693.03; C91, § 27-361.20, O.11,650, 15,454)

Sec. 114-361.21. Standards for issuance of special parking permits.

For the purposes of the city traffic engineer issuing a special parking permit pursuant to subsection 114-361.19(a) of this article on the basis of whether proposed parking, standing or use is required in the performance of a public service or to satisfy a public need, such required parking, standing or use may generally include but not be limited to the following use of a parking space or specific area:

(1) Funeral vehicles during performance of funeral service.

(2) Moving vans in actual service.

(3) Vehicles or equipment parked to facilitate special events.

(4) Charter buses or school buses parked for special events.

(5) Construction vehicles while delivering materials, special equipment (e.g., concrete trucks), or mobile construction equipment in use.

(6) Vehicles involved in utility or city construction or maintenance work in streets right-of-way.

(7) Vehicles containing cable or public TV remote facilities in actual service.

(8) Temporary moving storage containers in actual service for adjacent properties.

(9) Dumpsters in actual service for adjacent construction activity.

(C75, § 27-693.04; O.9218; C79, § 27-693.04; C91, § 27-361.21; O.11,650, 14,084, 14,556, 14,811, 15,454, 15,750, 15,778)

ARTICLE IX. MISCELLANEOUS RULES

Sec. 114-362. Unattended motor vehicles.

(a) No person driving or in charge of a motor vehicle shall permit it to stand unattended without first stopping the engine, locking the ignition and removing the key, or, when standing upon any perceptible grade, without effectively setting the brake thereon and turning the front wheels to the curb or side of the highway.

(b) A person who violates any provision of this section shall pay a fine of $10.00.
(C62, § 30-680; O.8084; C75, C79, § 27-695; C91, § 27-361.22; O.11,650; C91, § 27-362; O.14,244)
State law reference—Similar provisions, I.C. § 321.362.

Sec. 114-363. Obstruction to driver's view.

(a) No person shall drive a vehicle when it is so loaded or when there are in the front seat such number of persons, exceeding three, as to obstruct the view of the driver to the front or sides of the vehicle or as to interfere with the driver's control over the driving mechanism of the vehicle.

(b) No passenger in a vehicle shall ride in such position as to interfere with the driver's view ahead or to the sides or to interfere with his or her control over the driving mechanism of the vehicle.
(C62, § 30-12; O.8084; C75, C79, § 27-12; C91, § 27-363; O.11,650)
State law reference—Similar provisions, I.C. § 321.363.

Sec. 114-364. Sound system operation in vehicle.

No person operating or in control of a motor vehicle on a street or in a public place shall operate or permit the operation of a sound system in the vehicle so as to produce a vibration or sound that is clearly detectable at a distance of 50 feet from the vehicle between the hours of 7:00 a.m. and 7:00 p.m. or clearly detectable at a distance of 25 feet from the vehicle between the hours of 7:00 p.m. to 7:00 a.m.
(O.14,808)

Sec. 114-365. Reserved.

Sec. 114-366. Acts prohibited on fully controlled access facilities.

(a) It is unlawful for a person, except a person operating highway maintenance equipment or an authorized emergency vehicle, to do any of the following on any controlled access facility designated in division 7 of article XVI of this chapter:

(1) Drive a vehicle over, upon or across a curb, central dividing section, or other separation or dividing line.

(2) Make a left turn or a semicircular or U-turn at a maintenance crossover where an official sign prohibits the turn.

(3) Drive a vehicle except in the proper lane provided for that purpose and in the proper direction and to the right of the central dividing curb, separation, section or line.

(4) Drive any vehicle into the controlled access facility from a local service road except through an opening provided for that purpose in the dividing curb or dividing section or dividing line which separates the service road from the controlled access facility property.

(b) As to a fully controlled access facility, it is also unlawful except as otherwise provided by this section to:

(1) Drive a vehicle into the facility from a local service road.

(2) Stop, park or leave standing a vehicle, attended or unattended, upon the paved portion.

(3) Stop, park or leave standing a vehicle, whether attended or unattended, upon the shoulders, or the right-of-way except at designated rest areas or if an emergency or other dire necessity occurs.

(C85, § 27-175.06; O.10,937, 11,305; C91, § 27-366; O.11,650)

State law reference—Similar provisions, I.C. § 321.366.

Sec. 114-366.01. Points of access.

(a) No person shall have any right of ingress or egress to, from or across the controlled access facility except at points permitted by the state department of transportation and the city department of engineering.

(b) Applications for changes in or for additional points of access shall state the following:

(1) The proposed location expressed in terms of stations and feet, referring to the official state department of transportation plans and specifications for the controlled access facility.

(2) The proposed use of the access point.

(3) The use for which the abutting properties to be served is zoned, if any.

(4) The legal description of the abutting properties to be served and the names of the owners thereof.

(c) Applications shall be filed with the city engineer and shall be executed and acknowledged by all of the owners of the abutting properties to be served by the access points requested.

(d) All access points and curb openings shall be constructed at the expense of the abutting owners under the direction of and in accordance with the specifications of the state department of transportation in order to safeguard the condition of the controlled access facility.

(e) Changes in and additional access points may be granted only with the approval and consent of the state department of transportation and upon the conditions required by such authorities. Applications for changes in and additional access points shall be considered with regard to the effect thereof upon the safety of the users of the controlled access facility in relation to the use and development of the abutting properties involved.

(f) This section shall apply to all controlled access facilities within the city.

(C62, § 30-311; O.8084; C75, C79, § 27-322; C91, § 27-366.01; O.11,650)

Sec. 114-366.03. Pedestrians on freeway.

No person shall walk upon, along or across any portion of the right-of-way of the Des Moines Freeway, also known as Interstate Highway 235 and as the MacVicar Freeway, when such right-of-way has been enclosed by fence, except for persons engaged in construction, maintenance, or law enforcement thereon and except for persons present thereon in connection with leaving or removing a disabled vehicle or giving aid to the injured. Any violation of this section shall be punishable as provided in section 1-15 of this Code. Nothing in this section shall be construed as prohibiting pedestrian traffic upon regularly established bridges or pedestrian overpasses or underpasses which cross the right-of-way.
(C62, § 30-327; O.8084; C75, C79, § 27-338; C91, § 27-366.03; O.11,650)

Sec. 114-366.04. Bicycles, horses.

No person shall drive, ride, or lead any horse or other animal upon any portion of the Des Moines Freeway, also known as Interstate Highway 235 and as the MacVicar Freeway, nor shall any person ride or drive any bicycle or vehicle other than a motor vehicle upon that freeway. Any violation of this section shall be punishable as provided in section 1-15 of this Code. Nothing in this section shall be construed as prohibiting the otherwise lawful transportation of a horse, other animal, bicycle, or other vehicle within or upon a motor vehicle upon the freeway, nor shall this section be construed as prohibiting the otherwise lawful towing of a trailer or other vehicle thereon by means of a motor vehicle.
(C62, § 30-328; O.8084; C75, C79, § 27-339; C91, § 27-366.04; O.11,650)

Sec. 114-366.05. Stopping, standing or parking.

(a) No person shall stop, park or leave standing any vehicle, whether attended or unattended, within any fenced portion of the right-of-way of the Des Moines Freeway, also known as Interstate Highway 235 and as the MacVicar Freeway, except duly authorized construction, maintenance and law enforcement vehicles and vehicles present for the purpose of servicing or removing a disabled vehicle or aiding the injured. This subsection shall not apply to the driver of any vehicle which is disabled in such manner and to such extent that it is impossible to avoid stopping and temporarily leaving a disabled vehicle in such position.

(b) The driver of a disabled vehicle shall, if possible, stop or push the vehicle off the paved or improved part of the main traveled part of the right-of-way. Whenever any peace officer finds a vehicle standing upon such right-of-way in violation of this section or disabled, such officer is authorized to remove the vehicle or to cause the driver or other person in charge of the vehicle to remove the vehicle.

(c) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-329; O.8084; C75, C79, § 27-340; C91, § 27-366.05; O.11,650, 14,244, 16,470)

Sec. 114-367. Following fire apparatus.

The driver of any vehicle other than one on official business shall not follow any fire apparatus traveling in response to a fire alarm closer than 500 feet or drive into or park such vehicle within the block where fire apparatus has stopped in answer to a fire alarm.
(C62, § 30-164; O.8084; C75, C79, § 27-171; C91, § 27-367; O.11,650)

State law reference—Similar provisions, I.C. § 321.367.

Sec. 114-368. Crossing fire hose.

No vehicle shall be driven over an unprotected hose of the fire department when laid down on any street or private driveway to be used at any fire or alarm of fire, without the consent of the fire department official in command.
(C62, § 30-165; O.8084; C75, C79, § 27-172; C91, § 27-368; O.11,650)

State law reference—Similar provisions, I.C. § 321.368.

Sec. 114-369. Putting glass or other debris on highway.

No person shall throw or deposit upon any highway any glass bottle, glass, nails, tacks, wire, cans, trash, garbage, rubbish, litter, offal,

or any other debris. No substance likely to injure any person, animal or vehicle shall be thrown or deposited by any person upon any highway.
(C62, § 30-15; O.8084; C75, C79, § 27-15; C91, § 27-369; O.11,650)

Cross reference—Solid waste, ch. 98.

State law reference—Similar provisions, I.C. § 321.369.

Sec. 114-370. Removing injurious material.

Any person who drops or permits to be dropped or thrown upon any highway any destructive or injurious material and other material as defined in section 114-369 of this article shall immediately remove the material or cause it to be removed.
(C62, § 30-16; O.8084; C75, C79, § 27-16; C91, § 27-370; O.11,650)

State law reference—Similar provisions, I.C. § 321.370.

Sec. 114-371. Cleaning up highway after wreck.

Any person removing a wrecked or damaged vehicle from a highway shall remove any glass or other injurious substance dropped upon the highway from such vehicle.
(C62, § 30-17; O.8084; C75, C79, § 27-17; C91, § 27-371; O.11,650)

Sec. 114-372. Passing school bus.

(a) The driver of a vehicle, including the driver of a vehicle operating on a private road or driveway, when meeting a school bus with flashing amber warning lamps shall reduce the vehicle's speed to not more than 20 miles per hour, and shall bring the vehicle to a complete stop when the school bus stops and the stop signal arm is extended. The vehicle shall remain stopped until the stop signal arm is retracted after which time the driver may proceed with due caution.

(b) The driver of a vehicle, including the driver of a vehicle operating on a private road or driveway, overtaking a school bus shall not pass a school bus when red or amber warning signal lights are flashing. The driver shall bring the vehicle to a complete stop no closer than 15 feet from the school bus when it is stopped and the stop arm is extended, and the vehicle shall remain stopped until the stop arm is retracted and the school bus resumes motion.

(c) A person convicted of a violation of this section is guilty of a simple misdemeanor punishable as provided in section 1-15.
(O.15,808)

State law reference—Similar provision, I.C. § 321.372.

Secs. 114-373—114-380. Reserved.

ARTICLE X. EQUIPMENT

DIVISION 1. GENERALLY

Sec. 114-381. Movement of unsafe or improperly equipped vehicles.

No person shall drive or move or cause or knowingly permit to be driven or moved on any street or highway any vehicle or combination of vehicles which is in such unsafe condition as to endanger any person or which does not contain those parts or is not at all times equipped with such lamps and other equipment in proper condition and adjustment as required in this chapter, or which is equipped with one or more unsafe tires or which is equipped in any manner in violation of this chapter or applicable state department of transportation rules and regulations.
(C85, § 27-1764.01; O.10,937, 11,305; C91, § 27-381; O.11,650)

State law reference—Similar provisions, I.C. § 321.381.

Secs. 114-382, 114-383. Reserved.

DIVISION 2. LIGHTING

Sec. 114-384. Lighted lamps required.

(a) Every vehicle upon a street or highway within the city at any time from sunset to sunrise and at any other time when there is not sufficient light to render clearly discernible persons and vehicles on the highway at a distance of 500 feet ahead shall display lighted lamps and illuminating devices as, respectively, required in this division for different classes of vehicles.

(b) Whenever a requirement is declared in this division as to the distance from which certain lamps and devices shall render objects visible or within which such lamps or devices shall be visible, the provision shall apply during the times stated in subsection (a) of this section upon a straight level unlighted highway under a normal atmospheric condition unless a different time or condition is expressly stated.

(c) This section shall not apply when an accident extinguishes such light and renders a vehicle incapable of use, and when the person in control of the vehicle erects, at the earliest opportunity after the accident, such proper light at or near the vehicle as will give warning of the presence of the vehicle.
(C62, § 30-1717; O.8084; C75, C79, § 27-1745; C91, § 27-384; O.11,650)

State law reference—Similar provisions, I.C. § 321.384.

Sec. 114-385. Headlamps on motor vehicles.

Every motor vehicle other than a motorcycle shall be equipped with at least two headlamps with at least one on each side of the front of the motor vehicle. The headlamps shall comply with requirements and limitations set forth in this chapter.
(C62, § 30-1718; O.8084; C75, C79, § 27-1746; C91, § 27-385; O.11,650)

State law reference—Similar provisions, I.C. § 321.385.

Sec. 114-386. Headlamps on motorcycles.

Every motorcycle shall be equipped with at least one and not more than two headlamps which shall comply with the requirements and limitations of this chapter.
(C62, § 30-1719; O.8084; C75, C79, § 27-1747; C91, § 27-386; O.11,650)

State law reference—Similar provisions, I.C. § 321.386.

Sec. 114-387. Rear lamps.

Every motor vehicle and every vehicle which is being drawn at the end of a train of vehicles shall be equipped with a lighted rear lamp exhibiting a red light plainly visible from a distance of 500 feet to the rear. All lamps and lighting equipment originally manufactured on a motor vehicle shall be kept in working condition or shall be replaced with equivalent equipment.
(C62, § 30-1720; O.8084; C75, C79, § 27-1748; C91, § 27-388; O.11,650; C91, § 27-387)

State law reference—Similar provisions, I.C. § 321.387.

Sec. 114-388. Illumination of rear plates.

Either the rear lamp or a separate lamp shall be so constructed and placed as to illuminate with a white light the rear registration plate and render it clearly legible from a distance of 50 feet to the rear. When the rear license plate is illuminated by an electric lamp other than the required rear lamp, such two lamps shall be turned on or off only by the same control switch at all times whenever headlamps are lighted.
(C62, § 30-1721; O.8084; C75, C79, § 27-1749; O.11,650; C91, § 27-388)

State law reference—Similar provisions, I.C. § 321.388.

Sec. 114-389. Rear reflector required.

Every new motor vehicle, trailer, or semitrailer sold and every commercial vehicle operated on a highway shall also carry at the rear, either as a part of the rear lamp or separately, a red reflector meeting the requirements of I.C. ch. 321.
(C62, § 30-1722; O.8084; C75, C79, § 27-1750; C91, § 27-389; O.11,650)

State law reference—Similar provisions, I.C. § 321.389.

Sec. 114-390. Reflector used as substitute for lamps.

Whenever a red reflector is required or permitted, as provided in I.C. § 321.389, to be used in substitution of lamps upon a vehicle, such reflector shall be mounted upon the vehicle at a height not to exceed 42 inches nor less than 20 inches above the ground upon which the vehicle stands, and every such reflector shall be so designed and maintained as to be visible at night from all distances within 300 feet to 50 feet from such vehicle, except that on a commercial vehicle the reflector shall be visible from all distances within 500 feet to 50 feet from such vehicle when directly in front of a motor vehicle displaying lawfully lighted headlamps as provided in I.C. § 321.409.
(C62, § 30-1723; O.8084; C75, C79, § 27-1751; C91, § 27-390; O.11,650)

State law reference—Similar provisions, I.C. § 321.390.

Secs. 114-391—114-393. Reserved.

Sec. 114-394. Lamp or flag on projecting load.

Whenever the load upon any vehicle extends to the rear four feet or more beyond the bed or body of such vehicle, there shall be displayed at the extreme rear end of the load, at the times specified in section 114-384 of this division, a red light or lantern plainly visible from a distance of at least 500 feet to the sides and rear. The red light

or lantern shall be in addition to the red rear light required upon every vehicle. At any other time there shall be displayed at the extreme rear end of such load a red flag or cloth not less than 16 inches square.
(C62, § 30-1724; O.8084; C75, C79, § 27-1752; C91, § 27-394; O.11,650)

State law reference—Similar provisions, I.C. § 321.394.

Secs. 114-395, 114-396. Reserved.

Sec. 114-397. Reserved.

Editor's note—Ord. No. 15,083, § 1, adopted Feb. 27, 2012, repealed § 114-397, which pertained to lamps and reflectors on bicycles and derived from Code 1942, § 21-8; Code 1954; Code 1962, § 10-16; Ord. No. 8616; Code 1975; Code 1979, § 27-1803; Code 1991, § 27-397; Ord. No. 11,650; Ord. No. 14,141. The user's attention is directed to § 114-677 et seq.

Sec. 114-398. Lamps on other vehicles and equipment.

All vehicles, including animal-drawn vehicles not specifically required to be equipped with lamps, shall, at the times specified in section 114-384 of this division, be equipped with at least one lighted lamp or lantern exhibiting a white light visible from a distance of 500 feet to the front of such vehicle and with a lamp or lantern exhibiting a red light visible from a distance of 500 feet to the rear.
(C62, § 30-1725; O.8084; C75, C79, § 27-1753; C91, § 27-398; O.11,650)

State law reference—Similar provisions, I.C. § 321.398.

Secs. 114-399—114-401. Reserved.

Sec. 114-402. Spotlamps.

Any motor vehicle may be equipped with not to exceed one spotlamp, and every lighted spotlamp shall be so aimed and used upon approaching another vehicle that no part of the high intensity portion of the beam will be directed to the left of the prolongation of the extreme left side of the vehicle nor more than 100 feet ahead of the vehicle.
(C62, § 30-1726; O.8084; C75, C79, § 27-1754; C91, § 27-402; O.11,650)

State law reference—Similar provisions, I.C. § 321.402.

Sec. 114-403. Auxiliary driving lamps.

A motor vehicle may not be equipped with more than three auxiliary driving lamps mounted on the front at a height of not less than 12 inches nor more than 42 inches above the level surface upon which the vehicle stands, and every such auxiliary driving lamp shall meet the requirements and limitations set forth in this chapter.
(C85, § 27-1755.01; O.10,937; C91, § 27-403; O.11,650)

State law reference—Similar provisions, I.C. § 321.403.

Sec. 114-404. Signal lamps and signal devices.

Every motor vehicle shall be equipped with a signal lamp or signal device which is so constructed and located on the vehicle as to give a signal of intention to stop, which shall be red or yellow in color, which signal shall be plainly visible and understandable in normal sunlight and at night from a distance of 100 feet to the rear but shall not project a glaring or dazzling light.
(C85, § 27-1761; O.10,937; C91, § 27-404; O.11,650)

State law reference—Similar provisions, I.C. § 321.404.

Secs. 114-405—114-414. Reserved.

Sec. 114-415. Duty to dim lights.

Whenever the driver of a vehicle approaches an oncoming vehicle within 500 feet, he or she shall use a distribution of lights or composite beam so aimed that the glaring rays are not projected into the eyes of the oncoming driver. In no case shall the high-intensity portion which is projected to the left of the prolongation of the extreme left side of the vehicle be aimed higher than the center of the lamp from which it comes at a distance of 25 feet ahead, and in no case higher than a level of 42 inches above the level upon which the vehicle stands at a distance of 75 feet ahead.
(C62, § 30-1728; O.8084; C75, C79, § 27-1756; C91, § 27-415; O.11,650)

State law reference—Similar provisions, I.C. § 321.415.

Secs. 114-416—114-418. Reserved.

Sec. 114-419. Number of driving lamps required or permitted.

At all times specified in section 114-384 of this division, at least two lighted lamps, except where only one is permitted, shall be displayed, one on each side at the front of every motor vehicle, except when such vehicle is parked subject to the regulations governing lights on parked vehicles.
(C62, § 30-1727; O.8084; C75, C79, § 27-1755; C91, § 27-419; O.11,650)

State law reference—Similar provisions, I.C. § 321.419.

Secs. 114-420, 114-421. Reserved.

Sec. 114-422. Red light in front.

No person shall drive or move any vehicle or equipment upon any highway with any lamp or device thereon displaying or reflecting a red light visible from directly in front thereof. This section shall not apply to authorized emergency vehicles, or school buses and vehicles as defined by the state department of transportation. No person shall display any color of light other than red on the rear of any vehicle, except that stoplights and directional signals may be red, yellow or amber.
(C85, § 27-1754.01; O.10,937; C91, § 27-422; O.11,650)

State law reference—Similar provisions, I.C. § 321.422.

Secs. 114-423—114-429. Reserved.

DIVISION 3. BRAKES

Sec. 114-430. Required.

Every motor vehicle, trailer, semitrailer, motorcycle and bicycle used upon the public highways of the city shall be provided with brakes that comply with I.C. § 321.430.
(C62, § 30-1729; O.8084; C75, C79, § 27-1757; C91, § 27-430; O.11,650)

Sec. 114-431. Reserved.

DIVISION 4. MISCELLANEOUS EQUIPMENT

Sec. 114-432. Horns and warning devices.

Every motor vehicle when operated upon a highway shall be equipped with a horn in good working order and capable of emitting sound audible under normal conditions from a distance of not less than 200 feet, but no horn or other warning device shall emit an unreasonably loud or harsh sound or a whistle. The driver of a motor vehicle shall, when reasonably necessary to ensure safe operation, give audible warning with his or her horn, but shall not otherwise use the horn when upon a highway.
(C62, § 30-1730; O.8084; C75, C79, § 27-1758; C91, § 27-432; O.11,650)

State law reference—Similar provisions, I.C. § 321.432.

Sec. 114-432.01. Loud signalling at night.

Loud signaling devices of a vehicle shall not be used during the period of from one hour after sunset to one hour before sunrise, unless absolutely necessary to avoid accidents.
(C62, § 30-1732; O.8084; C75, C79, § 27-1760; C91, § 27-432.01; O.11,650)

Sec. 114-433. Sirens and bells prohibited.

No vehicle shall be equipped with nor shall any person use upon a vehicle any siren, whistle or bell, except as otherwise permitted in this section. It is permissible but not required that any commercial vehicle be equipped with a theft alarm signal device which is so arranged that it cannot be used by the driver as an ordinary warning sign. Any authorized emergency vehicle may be equipped with a siren, whistle, or bell, capable of emitting sound audible under normal conditions from a distance of not less than 500 feet and of a type approved by the state motor vehicle department. The siren shall not be used except when the vehicle is operated in response to an emergency call or in the immediate pursuit of an actual or suspected violator of the law, in which event the driver of such vehicle shall sound the siren when necessary to warn pedestrians and other drivers of his or her approach.
(C62, § 30-1731; O.8084; C75, C79, § 27-1759; C91, § 27-433; O.11,650)

State law reference—Similar provisions, I.C. § 321.433.

Sec. 114-434. Reserved.

Editor's note—Ord. No. 15,083, § 1, adopted Feb. 27, 2012, repealed § 114-434, which pertained to bicycle sirens or whistles and derived from Code 1991, § 27-434; Ord. No. 11,650. The user's attention is directed to § 114-677 et seq.

Sec. 114-435. Reserved.

Sec. 114-436. Mufflers, prevention of noise.

Every motor vehicle shall at all times be equipped with a muffler in good working order and in constant operation to prevent excessive or unusual noise and annoying smoke, and no person shall use a muffler cutout, bypass or similar device upon a motor vehicle on a highway.
(C91, § 27-436; O.11,650)

State law reference—Similar provisions, I.C. § 321.436.

Sec. 114-437. Reserved.

Sec. 114-438. Windshields and windows.

(a) No person shall drive a motor vehicle equipped with a windshield, sidewings, or side or rear windows which do not permit clear vision.

(b) No person shall operate on the highway a motor vehicle equipped with a front windshield, a side window to the immediate right or left of the driver, or a sidewing forward of and to the left or right of the driver which is excessively dark or reflective so that it is difficult for a person outside the motor vehicle to see into the motor vehicle through the windshield, window or sidewing. "Excessively dark or reflective" means that the windshield, front side windows or front sidewings do not meet the minimum measurable standard of transparency established by rules promulgated by the state department of transportation.
(C62, § 30-13; O.8084; C75, C79, § 27-13; O.10,639; C91, § 27-438; O.11,650, 13,992)

State law reference—Similar provisions, I.C. § 321.438.

Sec. 114-439. Windshield wipers.

The windshield on every motor vehicle shall be equipped with a device for cleaning rain, snow, or other moisture from the windshield, which device shall be so constructed as to be controlled or operated by the driver of the vehicle.
(C91, § 27-439; O.11,650)

State law reference—Similar provisions, I.C. § 321.439.

Sec. 114-440. Restrictions on tires.

Every solid rubber tire on a vehicle shall have rubber on its entire traction surface at least one inch thick above the edge of the flange of the entire periphery. Any pneumatic tire on a vehicle shall be considered unsafe if it has:

(1) Any part of the ply or cord exposed.

(2) Any bump, bulge or separation.

(3) A tread design depth of less than 1/16 of an inch measured in any two or more adjacent tread grooves, exclusive of tie bars or, for those tires with tread wear indicators, worn to the level of the tread wear indicators in any two tread grooves.

(4) A marking indicating "not for highway use," "for racing purposes only," "unsafe for highway use."

(5) Tread or sidewall cracks, cuts or snags deep enough to expose the body cord.

(6) Such other conditions as may be reasonably demonstrated to render it unsafe.

(7) Been regrooved or recut below the original tread design depth, excepting special tires which have extra undertread rubber and are identified as such, or if a pneumatic tire was originally designed without grooves or tread, the safety standards therefor shall be established by the director of the state department of transportation.

(C62, § 30-1734; O.8084; C75, C79, § 27-1762; O.10,245; C91, § 27-440; O.11,650)

State law reference—Similar provisions, I.C. § 321.440.

Sec. 114-441. Metal tires prohibited.

No person shall operate or move on any highway any motor vehicle, trailer or semitrailer having any metal tire in contact with the roadway.
(C62, § 30-1735; O.8084; C75, C79, § 27-1763; C91, § 27-441; O.11,650)

State law reference—Similar provisions, I.C. § 321.441.

Sec. 114-442. Projections on wheels.

No tire on a vehicle moved on a highway shall have on its periphery any block, stud, flange, cleat, or spike or any other protuberances of any

material other than rubber which projects beyond the tread of the traction surface of the tire, except that it shall be permissible to use:

(1) Farm machinery with tires having protuberances which will not injure the highway.

(2) Tire chains of reasonable proportions upon any vehicle when required for safety because of snow, ice, or other conditions tending to cause a vehicle to skid.

(3) Pneumatic tires with inserted ice grips or tire studs projecting not more than 1/16 inch beyond the tread of the traction surface of the tire upon any vehicle from November 1 of each year to April 1 of the following year, except that a school bus and fire department emergency apparatus may use such tires at any time.

(C62, §§ 30-1736, 30-1737; O.8084; C75, C79, § 27-1764; C91, § 27-442; O.11,650)

State law reference—Similar provisions, I.C. § 321.442.

Secs. 114-443, 114-444. Reserved.

Sec. 114-445. Use of safety belts and safety harnesses required.

(a) Except for motorcycles or motorized bicycles, 1966 model year or newer motor vehicles subject to registration in this state shall be equipped with safety belts and safety harnesses which conform with federal motor vehicle safety standards specified in I.C. § 321.445 subsection 1.

(b) The driver and front seat occupants of a type of motor vehicle which is subject to registration in this state, except a motorcycle or a motorized bicycle, shall each wear a properly adjusted and fastened safety belt or safety harness any time the vehicle is in forward motion on a street or highway in this state, except that a child under 18 years of age shall be secured as required under section 114-446 of this division. This subsection does not apply to the following:

(1) The driver or front seat occupants of a motor vehicle which is not required to be equipped with safety belts or safety harnesses under rules adopted by the state department of transportation.

(2) The driver and front seat occupants of a motor vehicle who are actively engaged in work which requires them to alight from and reenter the vehicle at frequent intervals, providing the vehicle does not exceed 25 miles per hour between stops.

(3) The driver of a motor vehicle while performing duties as a rural letter carrier for the United States Postal Service. This exemption applies only between the first delivery point after leaving the post office and the last delivery point before returning to the post office.

(4) Passengers on a bus.

(5) A person possessing a written certification from a health care provider licensed under I.C. chs. 148 or 151 on a form provided by the state department of transportation that the person is unable to wear a safety belt or safety harness due to physical or medical reasons. The certification shall specify the time period for which the exemption applies. The time period shall not exceed 12 months, at which time a new certification may be issued, unless the certifying physician is from a United States military facility, in which case the certificate may specify a longer period of time or a permanent exemption.

(6) Front seat occupants of an authorized emergency vehicle while they are being transported in an emergency. However, this exemption does not apply to the driver of the authorized emergency vehicle.

(c) The driver and front seat passengers may be each charged separately for improperly used or unused equipment under subsection (b) of this section. However, the driver shall not be charged for a violation committed by a passenger who is 14 years of age or older unless the passenger is unable to properly fasten a seat belt due to a temporary or permanent disability. The owner of the motor vehicle may be charged for equipment violations under subsection (a) of this section.

(C85, § 27-22; O.10,937; C91, § 27-445; O.11,650, 14,947)

State law reference—Similar provisions, I.C. § 321.445.

Sec. 114-446. Child restraint devices.

(a) A child under one year of age and weighing less than 20 pounds who is being transported in a motor vehicle subject to registration under state law, except a school bus or motorcycle, shall be secured during transit in a rear-facing child restraint system that is used in accordance with the manufacturer's instructions.

(b) A child under six years of age who does not meet the description in subsection (a) and who is being transported in a motor vehicle subject to registration under state law, except a school bus or motorcycle, shall be secured during transit by a child restraint system that is used in accordance with the manufacturer's instructions.

(c) A child at least six years of age but under 18 years of age who is being transported in a motor vehicle subject to registration under state law, except a school bus or motorcycle, shall be secured during transit by a child restraint system that is used in accordance with the manufacturer's instructions or by a safety belt or safety harness of a type approved under section 114-445.

(d) This section does not apply to the following:

(1) Peace officers acting on official duty.

(2) The transportation of children in 1965 model year or older vehicles, authorized emergency vehicles, buses, or motor homes, except when a child is transported in a motor home's passenger seat situated directly to the driver's right.

(3) The transportation of a child who has been certified by a physician licensed under I.C. ch. 148 as having a medical, physical, or mental condition that prevents or makes inadvisable securing the child in a child restraint system, safety belt or safety harness.

(4) A back seat occupant of a motor vehicle for whom no safety belt is available because all safety belts are being used by other occupants or cannot be used due to the use of a child restraint system in the seating position for which a belt is provided.

(e) The operator who violates subsection (a), (b) or (c) of this section is guilty of a misdemeanor and subject to a scheduled fine as required under I.C. § 805.8. Violations shall be charged as follows:

(1) An operator who transports a passenger under 14 years of age in violation of subsections (a), (b) or (c) may be charged with a violation of this section.

(2) If a passenger 14 years of age or older is unable to properly fasten a seatbelt due to a temporary or permanent disability, an operator who transports such a person in violation of subsection (c) may be charged with a violation of this section. Otherwise, a passenger 14 years of age or older who violates subsection (c) shall be charged in lieu of the operator.

(3) If a child under 14 years of age, or a child 14 years of age or older who is unable to fasten a seatbelt due to a temporary or permanent disability, is being transported in a taxicab in a manner that is not in compliance with subsection (a), (b) or (c), the parent, legal guardian, or other responsible adult traveling with the child shall be served with a citation for a violation of this section in lieu of the taxicab operator. Otherwise, if a passenger being transported in the taxicab is 14 years of age or older, the citation shall be served on the passenger in lieu of the taxicab operator.

(f) A person who is first charged for a violation of subsection (a) or (b) of this section and who has not purchased or otherwise acquired a child restraint system shall not be convicted if the person produces in court, within a reasonable time, proof that the person has purchased or otherwise acquired a child restraint system which meets federal motor vehicle safety standards.

(g) Failure to use a child restraint system, safety belts, or safety harnesses as required by this section does not constitute negligence nor is the failure admissible as evidence in a civil action.

(h) For purposes of this section, "child restraint system" means a specially designed seating system, including a belt-positioning seat or a booster seat, that meets federal motor vehicle safety standards specified in I.C. § 321.446.
(C85, § 27-21; O.10,937; C91, § 27-446; O.11,650, 14,947)

State law reference—Similar provisions, I.C. § 321.446.

Secs. 114-447—114-459. Reserved.

ARTICLE XI. SIZE, WEIGHT AND LOAD

Sec. 114-460. Truck boxes for trash hauling.

Any person owning or operating a truck for the purpose of hauling rubbish, trash or waste material shall equip the box of such truck with sides, end gate and a top cover or canvas so as to prevent the contents from being dropped or blown from the box while the truck is in operation.
(C62, § 30-1738; O.8084; C75, C79, § 27-1765; C91, § 27-460; O.11,650)

State law reference—Similar provisions, I.C. § 321.460.

Sec. 114-460.01. Permits for excessive size and weight.

The city engineer shall, upon application in writing and good cause being shown therefor, issue a special permit in writing authorizing the applicant to operate or move a vehicle or combination of vehicles of a size or weight or load exceeding the maximum specified in this article or otherwise not in conformity with the provisions of this article upon any highway under the city's jurisdiction and for the maintenance of which the city is responsible.
(C62, § 30-1739; O.8084; C75, C79, § 27-1766; C91, § 27-460.01; O.11,650)

Sec. 114-460.02. Limitation in the use of streets by certain vehicles.

(a) The city council may by ordinance deny or restrict the use of any street to certain types of vehicles when the recommendation for such restriction has been submitted to the city council by the city engineer on showing that such use would either tend to destroy the pavement or create a hazard endangering the public safety, health or morals.

(b) When signs are erected giving notice of such restrictions, any person failing to comply with the notice shall be deemed guilty of a misdemeanor.
(C62, § 30-1740; O.8084; C75, C79, § 27-1767; C91, § 27-460.02; O.11,650)

Sec. 114-460.03. Maximum load limit for certain designated bridges and viaducts.

(a) There is fixed for users of the following bridges and viaducts the maximum load limit, including the weight of the vehicle, together with trailer or other attachments thereto, designated for each bridge or viaduct:

(1) East Payton Avenue, over the creek south of Easter Lake, a maximum load limit of 14 tons per straight truck, 21 tons per truck plus semitrailer, and 24 tons per truck plus trailer. Maximum load limit of 24 tons for all vehicles.

(2) Southwest Ninth Street Viaduct, over Martin Luther King Jr Parkway, a maximum load limit of 20 tons.

(b) The city engineer shall post adequate warning signs at each end of the bridge. This notice shall state the maximum load limit permitted by this section.

(c) When official signs are erected giving notice thereof, it shall be unlawful for any person to drive, pull or otherwise propel any vehicle exceeding the maximum load limit provided in this section onto the bridges and viaducts.
(C62, § 30-1741; O.8084, 8355, 8394, 8657, 8864, 8891; C75, § 27-1768; O.9004, 9156, 9190; C79, § 27-1768; O.9904, 9923, 10,523; C85, § 27-1768; O.10,747, 11,302, 11,476; C91, § 27-460.03; O.11,650, 13,893, 14,039, 14,116, 14,145, 14,550)

Sec. 114-460.04. Reserved.

Editor's note—Ord. No. 13,893, § 1, adopted Dec. 4, 2000, repealed § 114-640.04 which pertained to specific vehicles prohibited from using certain bridge and derived

from Code 1962, § 30-1740.01; Ord. No. 8389; Ord. No. 8417; Code 1975, Code 1979 and Code 1985, § 27-1768.01; Ord. No. 11,476; Code 1991, § 27-460.04; and Ord. No. 11,650.

Secs. 114-461—114-470. Reserved.

Sec. 114-471. City truck routes designated.

(a) Every commercial vehicle which has a gross weight of up to but not exceeding 12,000 pounds, loaded or unloaded, shall have free and unrestricted use of all paved city streets.

(b) Every commercial vehicle which has a gross weight in excess of 12,000 pounds, loaded or unloaded, shall not be operated at any time upon any of the city streets or parts of streets except the streets which are specifically designated for their use in division 8 of article XVI of this chapter, except that such vehicles may be operated on any paved street or parts of streets for the purpose of delivering or picking up materials or merchandise and then only by entering such street at the intersection nearest the destination of the vehicle and proceeding thereon no farther than the nearest intersection thereafter. Those streets or parts of streets designated in division 8 of article XVI of this chapter are established as truck routes, on which a vehicle having a gross weight in excess of 12,000 pounds will have free and unrestricted use.

(c) Nothing in this article shall be construed to prohibit the Des Moines Metropolitan Transit Authority from operating their passenger buses upon any streets or parts of streets within the city which are or shall be designated as bus routes.

(d) For the purpose of this article, street identification signs posted on a blue background designate official truck routes. Street identification signs posted on a green background designate streets prohibited to commercial vehicles over 12,000 pounds except as allowed in subsection (b) of this section.

(e) No person shall permit a commercial vehicle owned or controlled by him or her to be operated directly or through an agent, employee or other person on city streets except as otherwise allowed in this section.

(C62, § 30-577; O.8084; C75, C79, C85, § 27-592; O.11,305; C91, § 27-471; O.11,650, 13,984)

State law reference—Authority to establish, I.C. § 321.471.

Sec. 114-471.01. Penalty for violation of truck routes.

(a) Any person who violates section 114-471(b) of this article shall be fined in the amount of $100.00.

(b) Any person who violates section 114-471(e) of this article shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.

(C85, § 27-592.01; O.10,917; C91, § 27-471.01; O.11,650; C91, § 27-471.02; O.11,650, 13,984)

Sec. 114-471.02. Erection of signs designating truck routes.

The city engineer shall cause necessary signs to be posted along the streets designated in division 8 of article XVI of this chapter informing the general public of the truck route restrictions.

(C62, § 30-659; O.8084; C75, C79, § 27-674; C91, § 27-471.02; O.11,650)

Sec. 114-471.03. Reserved.

Editor's note—Ord. No. 14,437, § 1, adopted April 25, 2005, repealed § 114-471.03, which pertained to restricted use of Riverside Drive and derived from Code 1962, § 30-660; Ord. No. 8084; Code 1975; Code 1979, § 27-675; Code 1991, § 27-471.03; and Ord. No. 11,650.

Secs. 114-472—114-481. Reserved.

ARTICLE XII. CRIMINAL AND CIVIL RESPONSIBILITY*

Sec. 114-482. Penalties.

Any person who fails to perform an act required by this chapter or who commits an act prohibited by this chapter shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.
(C62, § 30-1742; O.8084; C75, C79, § 27-1769; C91, § 27-482; O.11,650, 15,608)

State law reference—Similar provisions, I.C. § 321.482.

Sec. 114-483. Road work zone violations.

The scheduled fine for any moving traffic violation under this chapter, as provided in I.C. § 805.8A and made applicable to city ordinances by I.C. § 805.8, shall be doubled if the violation occurs within any road work zone, as defined in section 114-1 of this chapter.
(O.14,374)

Sec. 114-484. Offenses by owners.

(a) It is unlawful for the owner or any other person employing or otherwise directing the driver of any vehicle to require or knowingly to permit the operation of such vehicle upon a highway in any manner contrary to law.

(b) The owner of a vehicle shall not be held responsible for a violation of a provision regulating the stopping, standing or parking of a vehicle, whether the provision is contained in this chapter or state law or an ordinance or other regulation or rule, if the owner establishes that at the time of the violation the vehicle was in the custody of an identified person other than the owner pursuant to a lease as defined in I.C. ch. 321F. The furnishing to the clerk of the county district court where the charge is pending of a copy of the certificate of responsibility prescribed by I.C. § 321F.6 that was in effect for the vehicle at the time of the alleged violation shall be prima facie evidence that the vehicle was in the custody of an identified person other than the owner within the meaning of this section, and the charge against the owner shall be dismissed. The clerk of the district court then shall cause a uniform citation and complaint to be issued against the lessee of the vehicle, and the citation shall be served upon the defendant by ordinary mail directed to the defendant at the address shown in the certificate of responsibility.

(c) If a peace officer has reasonable cause to believe the driver of a motor vehicle has violated section 114-262 or 114-264 of this chapter, the officer may request any owner of the motor vehicle to supply information identifying the driver. When requested, the owner of the vehicle shall identify the driver to the best of his or her ability. However, the owner of the vehicle is not required to supply identification information to the officer if the owner believes the information is self-incriminating.
(C85, § 27-175.07; O.10,937; C91, § 27-484; O.11,650)

State law reference—Similar provisions, I.C. § 321.484.

Sec. 114-485. Procedure upon arrest.

(a) Whenever a peace officer has reasonable cause to believe that a person has violated any section of this chapter punishable as a simple, serious, or aggravated misdemeanor, such officer may:

(1) Immediately arrest such person and take the person before a magistrate; or

(2) Without arresting the person, either:

a. Prepare a written citation to appear in court containing the name and address of such person; the driver's license number, if any; the registration number, if any, of the person's vehicle; the offense charged; and the time and place the person shall appear in court; or

b. Prepare a memorandum of the alleged traffic violation containing the name and address of such person, the registration number, if any, of the person's vehicle, the offense alleged to have been committed,

*__Editor's note—__Ord. No. 15,608, § 1, adopted Sept. 11, 2017, amended the title of Ch. 114, Art. XII to read as herein set out. Formerly, said article was entitled "Criminal Responsibility."

and such other information as may be prescribed by the state commissioner of public safety with the concurrence of the state director of transportation.

(b) If the officer prepares either a citation or a memorandum as provided in this section, the alleged offender shall be requested to sign it. If the person signs, the person may be released without arrest. If a citation is issued, the signing shall constitute a written promise to appear as stated in the citation. A copy of the citation shall be presented to the person named therein. If a memorandum is prepared, the original shall be retained by the officer, and a copy shall be sent to the state department of transportation, and a copy shall be presented to the person named therein.

(c) For preparing the summons or memorandum referred to in this section, there shall be charged to the person named in the summons or memorandum, upon conviction, a fee of $2.00. The fee shall be assessed as part of the court costs.

(d) The number of copies and the form of the citations and memoranda authorized by this section shall be as prescribed by the state commissioner of public safety with the concurrence of the state director of transportation.

(e) This section shall not apply to a traffic offense which must be charged upon a uniform citation and complaint as provided in I.C. § 805.6.
(C62, § 30-1743; O.8084, 8778; C75, C79, § 27-1770; C91, § 27-485; O.11,650)

State law reference—Similar provisions, I.C. § 321.485.

Sec. 114-485.01. Notice on illegally parked vehicles.

Whenever any motor vehicle without a driver is found parked or stopped in violation of any of the restrictions imposed by this chapter or any other city ordinance or by state law, the officer, designated city employee, agent or government partner finding such vehicle shall take its registration number and may take any other information displayed on the vehicle which may identify its owner or user and shall conspicuously affix to such vehicle a citation-complaint in writing, on a form as provided in section 114-485.04 of this article, for the owner to appear to the charge against him or her at the city clerk's office or in the county district court as designated in the citation-complaint.
(C62, § 30-1744; O.8084, 8878; C75, C79, C85, § 27-1771; O.11,305; C91, § 27-485.01; O.11,650, 16,367)

Sec. 114-485.02. Habitual violator.

(a) For the purposes of this article, a delinquent parking citation-complaint is one which has not been paid within 30 days of the date upon which the violation occurred.

(b) Any person who has allowed four or more overtime and/or illegal parking citation-complaints issued on a motor vehicle or registration plate to become delinquent shall be deemed to be a habitual violator.

(c) No person shall park a vehicle and permit it to remain standing upon any public street or public metered lot or city-owned parking facility when there are four or more delinquent parking citation-complaints outstanding against that vehicle.

(d) A violation of this section shall place such vehicle in the status of an illegally parked vehicle, and the vehicle may be dealt with pursuant to section 114-485.11 of this article.

(e) A person who violates any provision of this section shall pay a fine of $30.00.
(C85, § 27-1772; O.11,504; C91, § 27-485.02; O.11,650, 11,896, 14,244)

Sec. 114-485.04. Form and use of parking citation-complaint forms.

Parking citation-complaints shall be issued by the police department, the department of engineering, agents, government partners and by officers and other designated personnel upon serially numbered sets of parking citation-complaint forms, each copy of each set to be clearly imprinted with the citation-complaint number. Copies of the citation-complaint forms shall be used as follows: one to be used as a notice of violation to be delivered to the owner of the vehicle, or affixed to the vehicle illegally parked, as provided

in sections 114-485 and 114-485.01 of this article; one to be placed on file with the city clerk which may be proceeded upon as a simple notice pursuant to I.C. § 321.236 which, if admitted, may be paid to the city clerk as specified in the citation-complaint or which, if denied, shall be sworn to by an officer as an information and filed in the county district court upon the filing of a written request to receive a date for entering a court appearance and plea as provided in this article; and one to be retained for record purposes by the police department. Citation-complaints which are denied as provided in this article shall be filed in the traffic division of the office of the clerk of the county district court and prosecuted pursuant to law.
(C62, § 30-1746; O.8084, 8778; C75, C79, C85, § 27-1773; O.11,305; C91, § 27-485.04; O.11,650, 15,126, 16,367)

Sec. 114-485.05. Payment or contest of parking citation-complaint.

Parking citation-complaints shall be paid at the office of the city clerk within 30 days of the date issued unless the owner of the vehicle contests the parking citation-complaint by filing a written request within seven business days of the issuance of the citation for administrative review or for an appearance date before the county district court. The written request for administrative review shall be filed in the office of the city clerk and shall stop the running of the 30-day period for payment. Upon a decision of the administrative review panel to uphold the parking citation-complaint, the period for payment set out in this section shall resume.
(C91, § 27-485.05; O.11,650)

Sec. 114-485.06. Administrative review panel.

An administrative review panel comprised of the city clerk or the city clerk's designee, as chairperson of the panel, and two other city employees appointed by the city manager to serve upon such panel shall, at the written request of the owner of the vehicle, review the facts and circumstances upon which a citation was issued and shall decide whether the parking citation-complaint should be voided or should be upheld.
(C91, § 27-485.06; O.11,650)

Sec. 114-485.07. Action following administrative review.

If the administrative review panel determines the parking citation-complaint should be voided, such action shall be promptly taken by the city clerk. If the administrative review panel upholds the parking citation-complaint, it shall be paid within the period set out in section 114-485.05 of this article, unless the owner of the vehicle wishes to deny the parking citation-complaint and files with the city clerk, within seven business days of the administrative review panel's decision, a written request to receive a date upon which to appear and enter a plea to the parking citation-complaint before the county district court. Failure to timely pay a parking citation-complaint after administrative review or to timely request an appearance date shall render the parking citation-complaint delinquent and subject to section 114-485.02 of this article.
(C91, § 27-485.07; O.11,650)

Sec. 114-485.08. Assignment of court appearance date.

Upon the written request of the owner of the vehicle, filed pursuant to section 114-485.05 or 114-485.07 of this article, the city clerk shall fix the date upon which an appearance and plea to the charges contained in the parking citation-complaint must be entered in the district court. The city clerk shall forward the citation-complaint to the city prosecutor for filing in the traffic division of the office of the clerk of the district court.
(C91, § 27-485.08; O.11,650)

Sec. 114-485.09. Failure to pay or to contest.

(a) Failure to pay a parking citation-complaint within 30 days of its issuance or to timely contest such citation under this article shall render the charges contained herein admitted.

(b) Except for handicapping parking violations under section 114-616 of this chapter. The fine on all other parking violations in this chapter or chapter 22 of this Code are increased by $5.00 if the parking violation is not paid within 30 days of the date upon which the violation occurred, unless the parking violation is timely contested pursuant to section 114-485.05 of this Code. If the parking violation is timely contested then the provisions of section 114-485.05 of the code shall apply for purposes of the stopping and starting of the 30-day period.
(C91, § 27-485.09; O.11,650, 14,244)

Sec. 114-485.11. Removal and impoundment of illegally parked vehicles.

The police department, the department of public works, acting through the director of public works, or the department of community development, acting through the director of community development, may remove and impound vehicles or cause vehicles to be removed and impounded when the vehicles are stopped or parked in violation of this chapter or other city ordinances and, in so doing, may employ such means as are reasonably necessary. Impounded vehicles shall be stored in a location designated by the city.
(C62, § 30-1752; O.8084, 8777; C75, C79, § 27-1779; O.10,362; C91, § 27-485.11; O.11,650, 13,483)

Sec. 114-485.12. Right of owner to redeem impounded vehicle.

(a) The registered owner or person having a legal entitlement to possession of a motor vehicle impounded pursuant to section 114-485.11 of this article may redeem the vehicle by paying the city's towing contractor an amount sufficient to cover all of the towing contractor's charges attributable to the towing and storage of the vehicle. If a hearing pursuant to the administrative appeal process set forth in chapter 3 of this Code is held and the administrative hearing officer determines there was no probable cause to impound the vehicle, the costs attributable to the impoundment and storage not to exceed 15 days shall be refunded by the city clerk through the normal procurement process.

(b) If a motor vehicle was impounded pursuant to section 114-485.02 of this article, all delinquent parking citation-complaints must be satisfied.

(c) If the vehicle is not redeemed until a final determination has been entered pursuant to the administrative appeal process set forth in chapter 3 of this Code, the vehicle may be redeemed upon payment of all charges referred to in section 114-485.16 of this article less any portion thereof subject to refund under paragraph (a) above.
(C62, § 30-1753; O.8084, 8777; C75, C79, § 27-1780; O.10,362; C91, § 27-485.12; O.11,650, 11,896, 14,203, 15,131, 16,436)

Sec. 114-485.13. Failure of owner to claim impounded vehicle.

If an impounded vehicle is not claimed by the owner within ten days after impoundment, the unclaimed vehicle shall be placed in the status of and shall be deemed an abandoned vehicle as provided by state law. However, the vehicle may be declared abandoned within the ten-day period by commencing the notification process provided by state law.
(C62, § 30-1754; O.8084, 8777; C75, C79, § 27-1781; O.10,362; C91, § 27-485.13; O.11,650, 13,535)

Sec. 114-485.14. Notice of impoundment.

When a vehicle has been impounded pursuant to this chapter, the registered owner of the vehicle shall be sent, by certified mail to the owner's last known address of record within 72 hours of the impoundment, excluding weekends and holidays, a notice of the impoundment along with a description of any personal property contained within the vehicle and of the right to a hearing pursuant to this article. Notice personally presented within such period to the owner or person having a legal entitlement to possession shall satisfy the mailing requirement. The notice shall identify: i) that the owner or any person having a legal entitlement to possession of the vehicle may appeal whether there was probable cause to impound the vehicle by filing a notice of appeal with the city clerk within ten business days of the date of such notice; and ii) if the appeal results in a determination that there was

no probable cause to impound the vehicle, the costs attributable to the impoundment and storage not to exceed 15 days will be refunded.
(C79, § 27-1782; O.10,362, 10,681; C91, § 27-485.14; O.11,650, 15,131)

Sec. 114-485.15. Right to hearing.

(a) The registered owner or a person having a legal entitlement to possession of a vehicle impounded pursuant to this article has a right to a post-seizure administrative hearing before an administrative hearing officer pursuant to the administrative appeal process set forth in chapter 3 of this Code to determine whether there was probable cause to impound the vehicle and any personal property contained within the vehicle, provided the registered owner or person having a legal entitlement to possession files a written notice of appeal with the city clerk's office within ten business days of the date of the notice of the impoundment.

(b) Failure to request a hearing within such time period or to attend a scheduled hearing on such appeal shall be deemed a waiver of the right to such a hearing.
(C79, § 27-1783; O.10,362, 10,681; C91, § 27-485.15; O.11,650, 13,535, 15,131)

Sec. 114-485.16. Conduct of hearing.

The post-seizure administrative hearing provided in this article shall be conducted pursuant to the administrative appeal process set forth in chapter 3 of this Code. If the administrative hearing officer determines there was no probable cause to impound the vehicle, the costs attributable to the impoundment and storage not to exceed fifteen days shall be refunded pursuant to section 114-485.12 of this article. The decision of the hearing officer shall in no way affect any criminal proceeding in connection with the impoundment in question. Criminal charges, if any, may only be challenged in the appropriate court.
(C79, § 27-1784; O.10,362, 10,681; C85, § 27-1784; O.11,289; C91, § 27-485.16; O.11,650, 15,131)

Sec. 114-485.17. Probable cause to impound.

For the purposes of this article, the term "probable cause to impound" shall mean such a state of facts as would lead a person of ordinary care and prudence to believe there was a breach of law for which the vehicle may be removed and impounded under section 114-485.11 of this article.
(C79, § 27-1785; O.10,362; C91, § 27-485.17; O.11,650)

Sec. 114-485.18. Reserved.

Editor's note—Ord. No. 15,131, § 1, adopted Sept. 10, 2012, repealed § 114-485.18, which pertained to right to appeal hearing officer's decision and derived from Code 1979, § 27-1786; Ord. No. 10,362; Code 1991, § 27-485.18; Ord. No. 11,650.

Sec. 114-485.19. Reserved.

Editor's note—Ord. No. 15,131, § 1, adopted Sept. 10, 2012, repealed § 114-485.19, which pertained to appeal process and derived from Code 1979, § 27-1786.01; Ord. No. 10,362; Code 1991, § 27-485.19; Ord. No. 11,650.

Sec. 114-485.20. Designation of garages private storage of impounded vehicles.

At least once each year the city council shall take bids from privately owned garages for schedules of fees for towing and storing impounded vehicles or vehicles taken up because of being illegally parked. Thereupon, the city council shall designate such of the bidders as shall be geographically located to tow and store such vehicles at a minimum cost, if city facilities are not available for towing or storing vehicles to be impounded. The chief of police is authorized to direct the private garage designated by the city and located nearest to the vehicle to tow and store the vehicle until disposed of as provided in this article. Such garage is authorized to retain the vehicle until the fees for towing and storage on the basis of the bid shall be paid.
(C62, § 30-1760; O.8084; C75, C79, § 27-1787; C91, § 27-485.21; O.11,650; C91, § 27-485.20)

Secs. 114-486—114-491. Reserved.

Sec. 114-492. Peace officer's authority.

Any peace officer is authorized to stop any vehicle to require exhibition of the driver's motor vehicle license; to serve a summons or memorandum of traffic violation; to inspect the condition of the vehicle; to inspect the vehicle with reference to size, weight, cargo, log book, bills of lading or other manifest of employment, tires and safety equipment; or to inspect the registration certificate, the compensation certificate, travel order, or permit of the vehicle. All peace officers as defined in this chapter may, having reasonable grounds that equipment violations exist, conduct spot inspections.
(C91, § 27-492; O.11,650)

State law reference—Similar provisions, I.C. § 321.492.

Secs. 114-493—114-599. Reserved.

ARTICLE XIII. PROHIBITED PARKING AND LIMITED PARKING RESTRICTIONS

DIVISION 1. GENERALLY

Sec. 114-600. No parking at any time.

(a) When signs are erected giving notice thereof, no person shall park a vehicle at any time at any of the locations designated in division 9 of article XVI of this chapter as subject to such restriction.

(b) A person who violates any provision of this section shall pay a fine of $30.00.
(C62, § 30-681; O.8084; C75, C79, § 27-696; C91, § 27-600; O.11,650, 14,244)

Sec. 114-601. Parking prohibited during certain hours.

(a) When signs are erected giving notice thereof, no person shall park a vehicle between the hours specified in this section on any day at any of the locations designated in division 9 of article XVI of this chapter as subject to such restriction:

(1) No parking 7:00 a.m. to 6:00 p.m.

(2) No parking 4:00 p.m. to 9:00 a.m.

(3) No parking 10:00 p.m. to 7:00 a.m.

(4) No parking 7:00 a.m. to 4:00 p.m.

(5) No parking 7:00 a.m. to 5:00 p.m.

(6) No parking 8:00 a.m. to 5:00 p.m.

(7) No parking 4:00 p.m. to 9:00 a.m.

(8) No parking 10:00 p.m. to 6:00 a.m.

(9) No parking 6:00 p.m. to 6:00 a.m.

(b) A person who violates any provision of this section shall pay a fine of $30.00.
(C62, § 30-682; O.8084, 8851; C75, C79, C85, § 27-697; O.10,934, 11,024; C91, § 27-601; O.11,650, 14,161, 14,244, 15,081)

Sec. 114-602. Parking prohibited during certain hours on certain days.

(a) When signs are erected giving notice thereof, no person shall park a vehicle between the hours specified in this section on certain days at any of the locations designated in division 9 of article XVI of this chapter as subject to such restriction:

(1) No parking 7:00 a.m. to 5:00 p.m., school days.

(2) No parking 8:00 a.m. to 5:00 p.m., school days.

(3) No parking Monday through Friday.

(4) No parking Monday through Saturday.

(5) No parking 7:00 a.m. to 9:00 a.m., Monday through Friday.

(6) No parking 7:00 a.m. to 9:00 a.m., school days.

(7) No parking 7:00 a.m. to 6:00 p.m., Monday through Friday.

(8) No parking 7:00 a.m. to 5:00 p.m., Monday through Friday.

(9) No parking 7:00 a.m. to 6:00 p.m., Monday through Saturday.

(10) No parking 8:00 a.m. to 5:00 p.m., Monday through Saturday.

(11) No parking 8:00 a.m. to 3:00 p.m., school days.

(12) No parking 8:00 a.m. to 1:00 p.m., Sundays.

(13) No parking 4:00 p.m. to 6:00 p.m., Monday through Friday.

(14) No parking 1:00 p.m. Sunday through 1:00 a.m. the following Sunday.

(15) No parking 6:00 a.m. to 6:00 p.m.

(16) No parking 3:00 p.m. to 6:00 p.m., Monday through Friday.

(17) No parking 2:00 p.m. to 3:00 p.m., Wednesday.

(18) No parking 9:00 a.m. to 3:00 p.m., Monday through Friday.

(19) No parking 9:00 p.m. to 6:00 a.m., Friday, Saturday, and Sunday.

(b) A person who violates any provision of this section shall pay a fine of $30.00.
(C62, § 30-683; O.8084, 8484; C75, § 27-698; O.9190; C79, § 27-698; O.9766, 9957, 10,007, 10,311, 10,532, 10,668; C85, § 27-698; O.10,747, 11,024, 11,161; C91, § 27-602; O.11,650, 12,057, 13,591, 14,244, 14,486, 14,635, 14,939, 15,997)

Sec. 114-603. Stopping or standing prohibited during certain hours and days.

When signs are erected giving notice thereof, no person shall park a vehicle between the hours specified in this section on certain days at any of the locations designed in division 9 of article XVI of this chapter as subject to such restriction:

(1) No standing or stopping 7:00 a.m. to 5:00 p.m. on any school day.

(2) No standing or stopping 6:00 a.m. to 6:00 p.m.

(3) No standing or stopping 9:00 p.m. to 6:00 a.m. on Friday, Saturday and Sunday.

(4) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-684; O.8084; C75, C79, § 27-699; C91, § 27-603; O.11,650, 14,244, 14,486, 15,997, 16,470)

Sec. 114-604. No stopping or standing at any time.

(a) When signs are erected giving notice thereof, no person shall stop or stand a vehicle at any time at any of the locations designated in division 9 of article XVI of this chapter as subject to such restriction.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-685; O.8084; C75, C79, § 27-700; C91, § 27-604; O.11,650, 14,244, 16,470)

Sec. 114-605. No stopping or standing except buses.

(a) When signs are erected giving notice thereof, no person shall stop or stand a vehicle except buses at any time at any of the locations designated in division 9 of article XVI of this chapter as subject to such restriction.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C85, § 27-700.01; O.10,840; C91, § 27-605; O.11,650, 14,244, 16,470)

Sec. 114-606. Reserved.

Editor's note—Ord. No. 14,244, § 1, adopted June 23, 2003, repealed § 114-606 which pertained to no parking at the airport observation lot and derived from Code 1985, § 27-700.02; Ord. No. 11, 213; Code 1991, § 27-606; and Ord. No. 11,650.

Sec. 114-607. Commercial loading zone.

(a) Within and at commercial loading zones designated in division 9 of article XVI of this chapter as subject to such restriction, parking is prohibited between the hours of 8:00 a.m. and 6:00 p.m., Monday through Saturday, except that a vehicle involved in commercial loading or unloading and delivery which is incident to commercial loading or unloading may use such zones for those purposes during such period, subject to the restriction that no vehicle shall park in any commercial loading zone for the purpose of such loading, unloading and delivery at any time to exceed 20 minutes.

(b) A person who violates any provision of this section shall pay a fine of $30.00.
(C62, § 30-686; O.8084; C75, § 27-701; O.9594; C79, § 27-701; C91, § 27-607; O.11,650, 14,244)

Sec. 114-608. Loading zones.

(a) Within and at loading zones designated in division 9 of article XVI of this chapter as subject to such restriction, parking is prohibited, except that a vehicle involved in loading, unloading and delivery which is incident to loading and unloading may use such zones for those purposes, subject to the restriction that no vehicle shall park in any loading zone for the purpose of such loading, unloading and delivery at any time to exceed 20 minutes.

(b) A person who violates any provision of this section shall pay a fine of $30.00.
(C75, § 27-701.01; O.9595; C79, § 27-701.01; C91, § 27-608; O.11,650, 14,244)

Sec. 114-609. School bus loading zones.

(a) When signs are erected giving notice thereof, no person shall park any vehicle other than a school bus for the purpose of loading and unloading passengers between the hours of 7:00 a.m. and 5:00 p.m. on school days, at any of the locations designated in division 9 of article XVI of this chapter as subject to such restriction for a time exceeding 20 minutes.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-687; O.8084; C75, C79, § 27-702; C91, § 27-609; O.11,650, 14,244, 16,470)

Sec. 114-610. School passenger loading and unloading zones.

(a) When signs are erected giving notice thereof, no person shall park any vehicle for other than the purpose of loading or unloading school passengers at any time or at the times specified in this section at any of the locations designated in division 9 of article XVI of this chapter as subject to such restriction:

(1) School passenger loading and unloading, 7:00 a.m. to 5:00 p.m. school days.

(2) School passenger loading and unloading, 7:00 a.m. to 5:00 p.m. school days; no parking at all other times.

(3) School passenger loading and unloading, 7:00 a.m. to 5:00 p.m. school days, 20 minutes only; no parking at all other times.

(4) School passenger loading and unloading, 7:00 a.m. to 9:00 a.m. school days, 20 minutes only.

(5) School passenger loading and unloading, 2:00 p.m. to 4:00 p.m. school days, 20 minutes only.

(6) School passenger loading and unloading, 7:00 a.m. to 4:00 p.m. school days, 30-minute limit.

(7) School passenger loading and unloading, 7:00 a.m. to 9:00 a.m. and 1:00 p.m. to 4:00 p.m., 30-minute limit.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-688; O.8084; C75, C79, C85, § 27-702.01; O.10,768; C91, § 27-610; O.11,650, 13,600, 14,244, 14,486, 15,110, 15,165, 16,470)

Sec. 114-611. Bus loading zones.

(a) When signs are erected giving notice thereof, no person shall park any vehicle, other than a bus for the purpose of loading or unloading passengers at any of the locations designated in division 9 of article XVI of this chapter as subject to such restriction.

(1) If days and times are indicated on the sign, bus loading and unloading is allowed only during those dates and times.

(2) Unless posted otherwise, such bus shall not park for such purpose for a time exceeding 20 minutes.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 390-688.01; O.8755; C75, C79, § 27-703; C91, § 27-611; O.11,650, 14,244, 15,278, 16,470)

Sec. 114-612. Passenger loading and unloading zones.

(a) When signs are erected giving notice thereof, no person shall park any vehicle for other than the purpose of loading or unloading passengers at any time or at the times specified in this section at any of the locations designated in division 9 of article XVI of this chapter as subject to such restriction:

(1) Passenger loading and unloading, 7:00 a.m. to 6:00 p.m., Monday through Friday.

(2) Passenger loading and unloading, 7:00 a.m. to 6:00 p.m., Monday through Friday, 20 minutes only.

(3) Passenger loading and unloading, 7:00 a.m. to 9:00 a.m. and 4:00 p.m. to 6:00 p.m., Monday through Friday.

(4) Passenger loading and unloading, 7:00 a.m. to 9:00 a.m. and 4:00 p.m. to 6:00 p.m., 20 minutes only, Monday through Friday.

(5) Passenger loading and unloading, ten minutes only.

(6) Passenger loading and unloading, 7:00 a.m. to 6:00 p.m., 20 minutes only.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-686.01; O.8283, 8925; C75, C79, § 27-703.01; O.10,615; C91, § 27-612; O.11,650, 13,066, 13,282, 14,244, 15,165, 16,470)

Sec. 114-612.01. Handicapped passenger loading and unloading zones.

(a) When signs are erected giving notice thereof, no person shall park any vehicle for other than the purpose of loading or unloading handicapped passengers, at any time, or during the times specified in this section, at any of the locations designated in division 9 of article XVI of this chapter as subject to such restrictions:

(1) Handicapped passenger loading and unloading, one hour limit only, 24 hours daily.

(2) Handicapped passenger loading and unloading, 30 minutes limit only, 24 hours daily.

(b) No person shall park a vehicle in a space designated as a loading and unloading zone for physically handicapped persons unless the vehicle displays, in a manner visible from outside such vehicle, a special handicapped parking identification device issued by the state department of transportation and only when the vehicle is being used, either as operator or passenger, by the individual to whom the device has been issued or by or for another individual who is confined to a wheelchair or is otherwise so physically handicapped as to have significant difficulty or insecurity in walking and who has been issued a permanent or temporary special handicapped parking identification device issued by the state department of transportation, that is properly displayed as noted above.

(c) Para-transit vehicles licensed by the City of Des Moines, emergency rescue vehicles licensed as "official" state, county or city vehicles by the State of Iowa and Des Moines Area Regional Transit (DART) para-transit vehicles will automatically meet all of the requirements for loading and unloading in any designated handicapped loading and unloading spaces, unless their parking in a handicapped loading and unloading designated area is related to a life threatening emergency, they shall abide by the posted time limit for use of that area.

(d) Handicapped loading and unloading areas shall be designated by a handicapped parking sign bearing the international symbol of accessibility, with a supplementary message or sign placard indicating that the area is a handicapped loading zone and also indicating the designated time limit allowed for use of that space and by no other means. Painting of the curbing or the pavement in some alternative manner is not sufficient designation and will not be permitted.

(e) A person who violates any provision of this section shall pay a fine as defined in section 114-616(c).
(O.15,187)

Sec. 114-613. Taxicab stands.

(a) No person shall stop, stand, or park a vehicle other than a taxicab in a taxicab stand designated in division 9 of article XVI of this chapter as subject to such restriction and appropriately signed, except that the driver of a passenger vehicle may temporarily stop therein for the purpose of and while actually engaged in loading or unloading passengers when stopping does not interfere with any taxicab waiting to enter or about to enter the zone.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-689; O.8084; C75, C79, § 27-704; C91, § 27-613; O.11,650, 14,244, 16,470)

Sec. 114-613.01. Reserved.

Editor's note—Ord. No. 15,750, § 1, adopted Feb. 25, 2019, repealed § 114-613.01, which pertained to parking in spaces designated for resident parking permits and derived from Ord. No. 14,123; Ord. No. 14,244; Ord. No. 14,722.

Sec. 114-613.02. Parking in spaces designated for City of Des Moines Municipal Employee Permit Parking.

(a) When official signs are erected, no person shall park a vehicle in a parking space designated as a space for City of Des Moines Municipal Employee Permit Parking unless the vehicle properly displays a municipal employee parking permit.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(O.14,635, 16,470)

Sec. 114-614. Parking spaces for police department personnel.

(a) When official signs are erected no person except police department personnel shall park a vehicle in those spaces and at those locations designated in division 9 of article XVI of this chapter as subject to such restriction.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-690; O.8084; C75, C79, § 27-705; O.9994; C91, § 27-614; O.11,650, 14,244, 16,470)

Sec. 114-614.01. Parking spaces for city vehicles.

When official signs are erected no vehicles except official city vehicles shall be parked in those spaces and at those locations designated in division 9 of article XVI of this chapter as subject to such restriction.
(C91, § 27-614.01; O.13,239)

Sec. 114-614.02. Parking spaces for fire department vehicles.

When official signs are erected, no vehicles except official fire department vehicles shall be parked in those spaces and at those locations designated in division 9 of article XVI of this chapter as subject to such restriction.
(C91, § 27-614.02; O.11,743)

Sec. 114-615. Parking spaces for juvenile court officials.

When official signs are erected no person except juvenile court officials shall park a vehicle in those spaces and at those locations designated in division 9 of article XVI of this chapter as subject to such restriction.
(C62, § 30-691; O.8084; C75, C79, § 27-706; C91, § 27-615; O.11,650)

Sec. 114-616. Parking in spaces for physically handicapped persons.

(a) When official signs are erected, no person shall park a vehicle in a parking space designated as a space for physically handicapped persons unless the vehicle displays, in a manner visible from outside such vehicle, a special identification device issued by the state department of transportation and the vehicle is being used, either as operator or passenger, by the individual to whom the device has been issued or another individual who is confined to a wheelchair or is otherwise so physically handicapped as to have significant difficulty or insecurity in walking.

(b) Parking spaces for the physically handicapped shall be in locations which are as convenient as is feasible to the exits from or

entrances to the garages, metered lots, and public employee lots of the municipal parking system.

(c) A person who violates any provision of this section shall pay a fine of $200.00 for each violation or the fine as established in section 805.8A, subsection 1, paragraph "c" of the Iowa State Code, whichever is greater.
(C62, § 30-693; O.8084; C75, § 27-707; O.9360; C79, § 27-707; O.9628; C91, § 27-616; O.11,650, 14,244, 15,316)

Sec. 114-616.01. Parking in loading zones designated for physically handicapped persons.

(a) When official signs are erected, as noted in section 14-612.01(d), no person shall even momentarily stop a vehicle in a loading zone area designated as a space for physically handicapped persons to load and unload, unless their vehicle properly displays, in a manner visible from outside such vehicle, an official handicapped identification placard or handicapped designated license plates, issued by the state department of transportation and, only when the vehicle is being used, either as operator or passenger by the individual to whom the handicapped placard or handicapped license plate have been issued.

(b) Designated loading and unloading areas for the physically handicapped shall be in locations which are as convenient as is feasible to the exits from or entrances to accessible residential facilities.

(c) The installation of handicapped loading and unloading areas will be considered by the city traffic engineer or their designated representative, based on each individual request and based on the information provided in each request. The requestor must provide the following as proof of need.

(1) A written request for the installation of a handicapped loading and unloading area, stating the exact area where needed.

(2) Written approval/agreement from the adjacent property owner(s) for the installation of a handicapped loading and unloading area.

(3) Provide individual proof of residence, for each requestor, at this location.

(4) Provide a statement from the requestor giving the reason(s) why a handicapped loading zone is necessary or preferred over any other type of designated loading or unloading zone.

(d) A person who violates any provision of this section shall pay a fine as defined in section 114-616(c).
(O.15,187)

Sec. 114-617. Handicapped parking spaces required; penalty.

(a) The city and any other political subdivision which provides on-street parking areas within a business district shall by ordinance define and establish a business district and shall designate not less than two percent of the total parking spaces within each business district as handicapped parking spaces. A new nonresidential facility in which construction has been completed on or after July 1, 1991, providing parking to the general public shall provide handicapped parking spaces as follows:

Total Parking Spaces in Lot or Facility	*Required Minimum Number of Handicapped Parking Spaces*
10 to 25	1
26 to 50	2
51 to 75	3
76 to 100	4
101 to 150	5
151 to 200	6
201 to 300	7
301 to 400	8
401 to 500	9
501 to 1,000	2% of total
1,001 and over	20 plus 1 for each 100 over 1,000

(b) A person may also set aside handicapped parking spaces on the person's property, provided each parking space is clearly and prominently designated as a parking space. The use of a

handicapped parking space by a motor vehicle not displaying such a handicapped identification device or by a motor vehicle displaying such a device but not being used by a handicapped person, as operator or passenger, shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.
(C79, § 27-707.01; O.10,067; C85, § 27-707.01; O.11,229, 11,492; C91, § 27-617; O.11,650, 11,876, 13,369, 15,608)

Sec. 114-618. Handicapped parking space signs.

Handicapped parking spaces shall be designated by a handicapped parking sign bearing the international symbol of accessibility, and by no other means. Painting the international symbol of accessibility on the pavement alone is not sufficient designation of the handicapped parking spaces.
(C79, § 27-707.02; O.10,067; C91, § 27-618; O.11,650, 15,606)

Sec. 114-618.01. Handicapped passenger loading and unloading signs.

Handicapped loading and unloading spaces shall be designated by a handicapped parking sign bearing the international symbol of accessibility, with the addition of a supplementary message indicating the designated spaces are for loading and unloading and that a specific time limit exists, and by no other means. Painting the international symbol of accessibility on the pavement, painting curbs or other methods of designating these spaces are not sufficient to properly designate the handicapped parking loading and unloading spaces.
(O.15,187)

Sec. 114-619. Business district delineated.

For purposes of this article, the business district shall be constituted of all the streets and avenues located within the area bounded by the south side of Mulberry Street at Tenth Street; thence east to the west side of Sixth Avenue; thence south to the south side of Cherry Street; thence east to the east side of Fifth Avenue; thence north to the south side of Court Avenue; thence east to the east side of First Street; thence north to the north side of Grand Avenue; thence west to the east side of Second Avenue; thence north to the south side of Watson Powell Jr Way, but not including Watson Powell Jr Way; thence west to the east side of Eighth Street; thence south to the north side of Pleasant Street; thence west to the west side of Tenth Street; thence south to the south side of Mulberry Street.
(C85, § 27-707.03; O.11,492; C91, § 27-619; O.11,650, 13,855)

Sec. 114-620. Parking spaces for sheriffs.

(a) When official signs are erected no person except sheriffs shall park a vehicle in those spaces and at those locations designated in division 9 of article XVI of this chapter as subject to such restriction.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-694; O.8084; C75, C79, § 27-708; C91, § 27-620; O.11,650, 14,244, 16,470)

Sec. 114-621. Parking spaces for office of clerk of district court.

(a) When official signs are erected it shall be unlawful for any person except assigned employees of the clerk of the district court to park a vehicle in those spaces and at those locations designated in division 9 of article XVI of this chapter as subject to such restriction.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-694.01; O.8904; C75, C79, § 27-708.01; C91, § 27-621; O.11,650, 14,244, 16,470)

Sec. 114-622. Parking spaces for Federal Bureau of Investigation officials.

When official signs are erected no person except Federal Bureau of Investigation officials

shall park a vehicle in those spaces and at those locations designated in division 9 of article XVI of this chapter as subject to such restriction.
(C62, § 30-695; O.8084; C75, C79, § 27-709; C91, § 27-622; O.11,650)

Sec. 114-623. Parking spaces for United States Marshals.

(a) When official signs are erected, no person except United States Marshals shall park a vehicle in those spaces and at those locations designated in division 9 of article XVI of this chapter as subject to such restriction.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C85, § 27-709.01; O.10,747; C91, § 27-623; O.11,650, 14,244, 16,470)

Sec. 114-624. Parking spaces for Department of the Treasury.

(a) When official signs are erected no person except Department of the Treasury officials shall park a vehicle in those spaces and at those locations designated in division 9 of article XVI of this chapter as subject to such restriction.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C85, § 27-709.02; O.10,806; C91, § 27-624; O.11,650, 14,244, 16,470)

Sec. 114-625. One-hour parking between 9:00 a.m. and 4:00 p.m.

(a) Subject to all other sections of this article and when signs are erected giving notice thereof, no person shall park a vehicle continuously in any one block for more than one hour between the hours of 9:00 a.m. and 4:00 p.m., except Sundays, New Year's Day, Memorial Day, Fourth of July, Labor Day, Thanksgiving Day and Christmas Day, at any of the locations designated in division 9 of article XVI of this chapter as subject to such restriction.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-696; O.8084; C75, C79, § 27-710; C91, § 27-625; O.11,650, 11,891, 14,244, 16,470)

Sec. 114-626. Two-hour parking.

(a) Subject to all other sections of this chapter and when signs are erected giving notice thereof, no person shall park a vehicle continuously in any one block for more than two hours at any of the locations designated in division 9 of article XVI of this chapter as subject to such restriction.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-696.01; O.8915; C75, C79, § 27-710.01; C91, § 27-626; O.11,650, 14,244, 16,470)

Sec. 114-627. Two-hour parking between 9:00 a.m. and 4:00 p.m.

(a) Subject to all other sections of this chapter and when signs are erected giving notice thereof, no person shall park a vehicle continuously in any one block for more than two hours between the hours of 9:00 a.m. and 4:00 p.m., except Sundays, New Year's Day, Memorial Day, Fourth of July, Labor Day, Thanksgiving Day and Christmas Day, at any of the locations designated in division 9 of article XVI of this chapter as subject to such restriction.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-697; O.8084; C75, C79, § 27-711; C91, § 27-627; O.11,650, 11,891, 14,244, 16,470)

Sec. 114-627.1. Two-hour parking between 9:00 a.m. and 9:00 p.m.

(a) Subject to all other sections of this chapter and when signs are erected giving notice thereof, no person shall park a vehicle continuously in any one block for more than two hours between the hours of 9:00 a.m. and 9:00 p.m., except Sundays, New Year's Day, Memorial Day, Fourth of July, Labor Day, Thanksgiving Day and Christmas Day, at any of the locations designated in division 9 of article XVI of this chapter as subject to such restriction.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(O.16,511)

Sec. 114-628. Parking signs required.

Whenever by this chapter or any city ordinance any parking time limit is imposed or parking is prohibited on designated streets, the city engineer shall erect appropriate signs giving notice thereof, and no such regulations shall be effective unless the signs are erected and in place at the time of any alleged offense.
(C62, § 30-698; O.8084; C75, C79, § 27-712; C91, § 27-628; O.11,560)

Sec. 114-628.01. Parking in municipal buildings.

(a) No person shall park any vehicle across any line or marking or in an area designated as a public parking space in a city-owned or controlled parking garage or city-owned or controlled parking lot in such a manner that the vehicle shall not be entirely within the parking area designated by lines, markings or traffic control signing which indicates the limits of a designated parking space.

(b) A person who violates such provision of this section shall pay a fine of $20.00.
(O.14,506, 16,470)

Sec. 114-629. Overtime parking.

(a) No person shall cause, allow, permit or suffer any vehicle registered in the name of or operated by such person to be parked overtime or beyond the period of legal parking time at any location designated in division 9 of article XVI of this chapter as subject to such restriction.

(b) Any person violating this section shall be deemed guilty of a simple misdemeanor. The fine for overtime parking is $5.00 if paid within 30 days of the date upon which the violation occurred. Any ticket which is not paid within 30 days of issuance shall be deemed delinquent. The fine for delinquent overtime parking tickets is $10.00.
(C62, § 30-699; O.8084; C75, C79, § 27-713; C91, § 27-629; O.11,650, 14,195)

DIVISION 2. LOADING OR UNLOADING ON SPECIFIED STREETS

Sec. 114-630. Prohibited within certain downtown areas between 4:00 p.m. and 6:00 p.m.

(a) No person shall stop, stand or park a vehicle for the purpose of unloading and delivering or picking up and loading of any articles or materials of any kind, between the hours of 7:00 a.m. and 9:00 a.m. and 4:00 p.m. and 6:00 p.m., upon any of the streets within the boundary of the downtown area, not including alleys, as set forth in subsection (b) of this section.

(b) The downtown area shall be an area commencing at the southwest corner of the intersection of Sixteenth Street and Mulberry Street; thence easterly along the south curbline of Mulberry Street to the southwest corner of the intersection of Fifth Avenue and Mulberry Street; thence southerly along the west curbline of Fifth Avenue to the southwest corner of the intersection of Fifth Avenue and Court Avenue; thence easterly along the south curbline of Court Avenue to the west bank of the Des Moines River; thence northerly to Center Street; thence westerly along the north curbline of Center Street to the northwest corner of Ninth Street and Center Street; thence southerly along the west curbline of Ninth Street to the northwest corner of the intersection of Ninth Street and High Street, thence westerly along the north curbline of High Street to the northwest corner of the intersection of High Street and Ingersoll Avenue; thence westerly along the north curbline of Ingersoll Avenue to the northwest corner of the intersection of Eighteenth Street and Ingersoll Avenue; thence southerly along the west curbline of Eighteenth Street to the southwest corner of the intersection of Eighteenth Street and Locust Street; thence easterly along the south curbline of Locust Street to the southwest corner of the intersection of Locust Street and Sixteenth Street; thence southerly along the west curbline of Sixteenth Street to the point of beginning.

(c) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-1495; O.8084; C75, § 27-1528; O.9595; C79, § 27-1528; C91, § 27-630; O.11,650, 14,244, 16,470)

Sec. 114-631. Trucks.

(a) Within the area described in subsection (b) of this section, all drivers or operators of any truck with a length that exceeds 35 feet are prohibited from loading or unloading at any street curbs where parking is prohibited, between the hours of 7:00 a.m. and 6:00 p.m., without first obtaining a permit from the city engineer as provided in section 114-361.19 of this chapter.

(b) The area where parking is prohibited under subsection (a) of this section is the area commencing at the southwest corner of the intersection of Sixteenth Street and Mulberry Street; thence easterly along the south curbline of Mulberry Street to the southwest corner of the intersection of Fifth Avenue and Mulberry Street; thence southerly along the west curbline of Fifth Avenue to the southwest corner of the intersection of Fifth Avenue and Court Avenue; thence easterly along the south curbline of Court Avenue to the west bank of the Des Moines River; thence northerly to Center Street; thence westerly along the north curbline of Center Street to the northwest corner of Ninth Street and Center Street; thence southerly along the west curbline of Ninth Street to the northwest corner of the intersection of Ninth Street and High Street; thence westerly along the north curbline of High Street to the northwest corner of the intersection of High Street and Ingersoll Avenue; thence westerly along the north curbline of Ingersoll Avenue to the northwest corner of the intersection of Eighteenth Street and Ingersoll Avenue; thence southerly along the west curbline of Eighteenth Street to the southwest corner of the intersection of Eighteenth Street and Locust Street; thence easterly along the south curbline of Locust Street to the southwest corner of the intersection of Locust Street and Sixteenth Street; thence southerly along the west curbline of Sixteenth Street to the point of beginning.
(C62, § 30-1496; O.8084; C75, § 27-1529; O.9595; C79, § 27-1529; C91, § 27-631; O.11,650)

DIVISION 3. PARKING OF TRUCKS, TRACTORS, TRAILERS OR SEMITRAILERS ON SPECIFIED STREETS

Sec. 114-632. Parking prohibited.

(a) No person shall park a motor truck, or any trailer, semitrailer, tractor, road tractor or truck tractor unit having a freight capacity greater than one ton at any time upon any portion of a street abutting property zoned N-1 to N-5 or NX1 to NX3 occupancy, as defined in chapter 134 of this Code unless otherwise permitted in this chapter.

(b) No person shall park any motor truck having a freight capacity greater than one ton or any trailer, semitrailer, travel trailer, road tractor or truck tractor unit at any time on any city street. This subsection shall not apply to motor trucks, trailers, semitrailers, travel trailers, road tractors or truck tractors parked on a city street abutting and for use at an active construction site between the hours of 7:00 a.m. and 10:00 p.m. or as otherwise permitted by this chapter.

(c) A person who violates any provision of this section shall pay a fine of $100.00.
(C62, § 30-1497; O.8084; C75, C79, § 27-1530; C91, § 27-632; O.11,650, 14,244, 15,819, 16,079, 16,122, 16,511)

Sec. 114-633. Reserved.

Sec. 114-634. Reserved.

Editor's note—Ord. No. 15,608, § 1, adopted Sept. 11, 2017, repealed § 114-634, which pertained to penalty and derived from Code 1975, § 27-1531.01; Ord. No. 8985; Code 1979, § 27-1531.01; Code 1991, § 27-634; Ord. No. 11,650.

Sec. 114-635. Reserved.

DIVISION 4. PARKING METERS

Sec. 114-636. Parking meter district.

The parking meter district shall be comprised of all the streets and avenues located within the area bounded by the north right-of-way line of West Martin Luther King Jr Parkway beginning at the west bank of the Des Moines River, thence west to the west side of Sixteenth Street, thence

north along the westerly side of Sixteenth Street to the south side of Locust Street, thence west along the south side of Locust Street to the west side of Seventeenth Street, thence north along the westerly side of Seventeenth Street to the south side of Grand Avenue, thence west along the south side of Grand Avenue to the west side of Nineteenth Street, thence north along the west side of Nineteenth Street to the north side of Woodland Avenue, thence east along the north side of Woodland Avenue to the north extension of the west side of Twelfth Street, thence north along the north extension of the west side of Twelfth Street to a point even with the westerly extension of the north side of Chestnut Street, thence east along the west extension of the north side of Chestnut Street and along the north side of Chestnut Street to the west side of Ninth Street, thence north along the west side of Ninth Street to the south side of Keosauqua Way, thence northwest along the south side of Keosauqua Way to the west side of Tenth Street, thence north along the west side of Tenth Street and along the north extension of the west side of Tenth Street to the south right-of-way line of Interstate 235, thence east along the south right-of-way line of Interstate 235 to the west bank of the Des Moines River, thence south along the west bank of the Des Moines River to the north side of Grand Avenue, thence east along the north side of Grand Avenue to the west side of Robert D. Ray Drive to a point even with the westerly extension of the north side of Lyon Street, then east along the west extension of the north side of Lyon Street and along the north side of Lyon Street to the east side of Pennsylvania Avenue; thence south along the east side of Pennsylvania Avenue to the point of intersection with the east extension of the south side of East Locust Street and said point also being the east side of East Seventh Street; thence south along the east side of East Seventh Street and Southeast Seventh Street to the north right-of way line of East Martin Luther King Jr Parkway; thence west along the north right-of-way line of East Martin Luther King Jr Parkway and along the right-of-way line West Martin Luther King Jr Parkway to the point of beginning.

(C62, § 30-1500; O.8084, 8690; C75, § 27-1533; O.9292; C79, § 27-1533; O.10,241; C85, § 27-1533; O.11,426; C91, § 27-635; O.11,650, 13,568, 13,646, 13,815, 13,855, 14,122, 14,437, 14,458, 14,519, 15,387, 15,658, 15,750, 16,095)

Sec. 114-637. Reserved.

Editor's note—Ord. No. 15,658, § 1, adopted May 7, 2018, repealed § 114-637, which pertained to parking meter and resident permit parking district no. II and derived from Code 1962, § 30-1501; Ord. No. 8084; Code 1975, § 27-1534; Ord. No. 9227; Ord. No. 9292; Code 1979, § 27-1534; Ord. No. 10,241; Code 1985, § 27-1534; Ord. No. 11,248; Ord. No. 11,426; Ord. No. 11,437; Code 1991, § 27-636; Ord. No. 11,650; Ord. No. 12,042; Ord. No. 13,568; Ord. No. 13,646; Ord. No. 13,815; Ord. No. 13,855; Ord. No. 14,122; Ord. No. 14,437; 14,458; Ord. No. 14,519; Ord. No. 15,387; Ord. No. 15,415.

Sec. 114-638. Reserved.

Editor's note—Ord. No. 15,658, § 1, adopted May 7, 2018, repealed § 114-638, which pertained to parking meter and resident permit parking district no. III and derived from Ord. No. 13,568; Ord. No. 14,122; Ord. No. 14,437; Ord. No. 14,458; Ord. No. 15,278; Ord. No. 15,387; Ord. No. 15,415.

Sec. 114-639. Parking meter district map.

The city traffic engineer shall cause to be filed in the office of the city clerk a detailed map depicting the boundaries of the parking meter district as established by this division.

(C62, § 30-1503; O.8084; C75, C79, § 27-1536; C91, § 27-638; O.11,650, 13,568, 15,658, 15,750)

Sec. 114-640. Designation of parking spaces.

The city traffic engineer may apportion the appropriate parts of the streets in the parking meter district into individual metered parking spaces and may cause such parking spaces to be designated by meters or appropriate signage placed on the sidewalk or border area of the street. No vehicle shall be parked which is not entirely within the limits of the space adjacent to the parking meter or appropriate signage. The city traffic engineer may cause the removal of any parking meter or signage placed for any parking space.

(C62, § 30-1504; O.8084; C75, § 27-1537; O.9227; C79, § 27-1537; C85, § 27-1537; O.11,426; C91, § 27-639; O.11,650, 13,568, 15,658, 15,750, 16,095, 16,470)

Sec. 114-640.01. Reserved.

Editor's note—Ord. No. 15,750, § 1, adopted Feb. 25, 2019, repealed § 114-640.01, which pertained to resident parking permits and derived from Ord. No. 14,122; Ord. No. 14,722; Ord. No. 14,811; Ord. No. 15,454; Ord. No. 15,658.

Sec. 114-640.02. Reserved.

Editor's note—Ord. No. 15,750, § 1, adopted Feb. 25, 2019, repealed § 114-640.02, which pertained to resident parking permit placement and derived from Ord. No. 14,122; Ord. No. 14,722; Ord. No. 14,811.

Sec. 114-640.03. Reserved.

Editor's note—Ord. No. 15,750, § 1, adopted Feb. 25, 2019, repealed § 114-640.03, which pertained to residency requirements for issuance of a resident parking permit and derived from Ord. No. 14,122; Ord. No. 14,722; Ord. No. 15,658.

Sec. 114-641. Installation, construction and maintenance of meters.

In the parking meter district the city traffic engineer shall cause parking meters or appropri-

ate signage to be installed for the metered parking spaces designated in section 114-640 of this division. The parking meters may be either multi-space parking meters or pay stations or be single space parking meters and shall be devices that take payment and measure the permissible, predetermined metered time for permitted parking. Metered time is credited to an individual metered parking space for payment of the applicable parking rate and such metered time runs continuously from the time of payment until expiration. The city traffic engineer shall be responsible for the regulation, control, operation, maintenance and use of parking meters. Each device shall be constructed to display a record of legal permitted metered parking time for the metered parking space upon payment method. Each device or display record shall indicate when the lawful metered parking period has expired. The right of such vehicle to occupy such metered parking space shall cease upon expiration of the metered parking period.
(C62, § 27-1505; O.8084; C75, § 27-1538; O.9227; C79, § 27-1538; C85, § 27-1538; O.11,426; C91, § 27-640; O.11,650, 15,658, 16,095, 16,470)

Sec. 114-642. Operation of meters.

(a) Except in a period of emergency determined by an officer of the fire or police department or in compliance with the directions of a police officer or traffic control sign or signal, no vehicle shall be parked within a designated metered parking space except pursuant to the terms and conditions regulating parking space, as indicated on installed signs or parking meters.

(b) Upon a vehicle entering a metered parking space, meter payment shall immediately be made in a single space meter serving that parking space or, if the parking space is not served by a single space meter, at any functioning multi-space parking meter or pay station, and no vehicle shall continue to be parked or remain in the parking space beyond the expiration of the period of parking time prescribed by the meter serving the parking space.

(c) No vehicle shall be parked in a metered parking space where a person has made payment for the purpose of extending the parking time for that vehicle beyond the maximum parking time limit for that parking space as established in section 114-643.

(d) No vehicle shall be parked in a metered parking space served by a single space meter that is out of order.

(e) A person who violates any provision of this section shall pay a fine as set for in section 114-645.
(C62, § 30-1506; O.8084, 8754; C75, § 27-1539; O.9227; C79, § 27-1539; C91, § 27-641; O.11,650, 15,658, 16,095)

Sec. 114-643. Parking meter rates and time zones.

(a) Three parking meter rate and time zones within the parking meter district designated as zone I, zone II and zone III shall be established and may subsequently be amended by resolution adopted by the city council. The parking meter rate and time zones may be comprised of contiguous or non-contiguous area. Zone I shall designate a peak pricing area and all zones shall designate the locations of handicapped meter parking spaces. The resolution establishing the parking meter rate and time zones together with all appended zone maps and descriptions incorporated therein shall be filed in the office of the city clerk. The following parking rates, peak pricing parking rates and maximum parking time limits for each zone are as follows:

Zone	*Parking Rate per hour*	*Peak Pricing Parking Rate per hour*	*Maximum Parking Time Limit*
I	$1.25	$1.75	4 hours
II	$0.75	None	None
III	$0.25	None	None

(b) No vehicle shall be parked in a metered parking space in Zone I beyond the maximum parking time limit.

(c) At the direction of the city traffic engineer, temporary reduced parking meter rates may be charged during all or any designated times of meter operation for any parking spaces for up to six months, as an incentive to attract additional parking customers during times when unused spaces are available. Such temporary reduced rates shall be charged only when a preliminary

analysis has indicated that total parking revenues will increase at the parking spaces where such reduced rates are proposed. The implementation of temporary reduced rates shall be subject to the prior review and approval of the city manager and city attorney to ensure compliance with any financial obligations of the parking facilities system. Any time that temporary reduced rates are charged, the city traffic engineer shall conduct an analysis to determine the impact on actual revenues and shall terminate the temporary reduced rates if such rates have an adverse impact on actual revenues to the parking facilities system.

(C62, § 30-1507; O.8084; C75, § 27-1540; O.9227; C79, § 27-1540; O.10,241; C85, § 27-1540; O.11,426; C91, § 27-642; O.11,650, 13,568, 13,705, 13,785, 13,815; C00, § 114-643; O.14,195, 14,519, 14,727, 15,658, 15,750, 16,095, 16,470)

Sec. 114-644. Hours of meter operation.

Except on Sundays and the legal holidays of New Year's Day, January 1; Memorial Day, the last Monday in May; Independence Day, July 4; Labor Day, the first Monday in September; Thanksgiving Day, the fourth Thursday in November; and Christmas Day, December 25, parking meters in the parking meter district established by this division shall be operated every day between the hours of 9:00 a.m. and 9:00 p.m.; provided, however, that on those segments of streets where parking is prohibited during specified times by this chapter, the parking meters on such segments of streets shall be operated only at times parking is permitted.
(C62, § 30-1508; O.8084, 8102, 8690; C75, § 27-1541; O.9292; C79, § 27-1541; C85, § 27-1541; O.11,261, 11,425; C91, § 27-643; O.11,650, 13,785, 15,658, 15,750)

Sec. 114-645. Parking related fines.

A person who violates any provision of this section shall pay a fine of $20.00 unless otherwise provided.
(C62, § 30-1509; O.8084; C75, § 27-1542; O.9561; C79, § 27-1542; O.10,576; C85, § 27-1542; O.11,504; C91, § 27-644; O.11,650, 14,244, 15,658, 16,095, 16,470)

Sec. 114-646. Use of parking spaces.

(a) No part of a vehicle shall be parked in a metered parking space parallel to the curb in a manner that infringes upon another metered parking space. No part of a vehicle shall be parked outside the designated lines or markings for an angled metered parking space. Payment shall be made for the total number of parking spaces occupied by a vehicle, with or without a trailer, that is too large to be confined to a single metered parking space and such vehicle shall be parked in a manner that occupies the least number of required metered parking spaces.

(b) No motorcycle shall be parked in a metered parking space unless each motorcycle is parked with its rear wheel no further than 18 inches from the curb and the front of each motorcycle faces away from the curb. No motorcycle shall be parked in a metered parking space that is also occupied by a vehicle that exceeds two wheels. No part of a motorcycle shall extend outside the metered parking space.
(C62, § 30-1510; O.8084; C75, C79, § 27-1543; C91, § 27-645; O.11,650, 13,785, 14,244, 16,095, 16,470)

Sec. 114-647. Injuring or tampering with meter.

No person shall deface, injure, tamper with, open or willfully break, destroy or impair the usefulness of any parking meter installed under this chapter. A person who violates this provision shall be guilty of a simple misdemeanor punishable under section 1-15 of this Code.
(C62, § 30-1511; O.8084; C75, C79, § 27-1544; C91, § 27-646; O.11,650, 16,470)

Sec. 114-648. False or unapproved payment prohibited.

No vehicle may be parked in a metered parking space where a person has deposited or caused to be deposited any false or unapproved form of payment.
(C62, § 30-1512; O.8084; C75, C79, § 27-1545; C91, § 27-647; O.11,650, 16,095, 16,470)

Sec. 114-649. Special parking meter fund created.

There is created a fund to be known as special parking meter fund to which shall be credited all receipts from parking meter fees and any other receipts or revenues derived in any manner from the use or operation of parking meters.
(C62, § 30-1513; O.8084; C75, C79, § 27-1546; C91, § 27-648; O.11,650)

Sec. 114-650. System of accounting established.

The director of finance is directed to establish a system of accounts relating to the purchase, use, operation, maintenance, repair and control of parking meters and the receipts and disbursements in any manner connected therewith, including the amount of any contract entered into by the city council or city manager with any person respecting the use, operation, maintenance and repair of parking meters or parts thereof in the installation or transportation charges connected therewith in accordance with any contract.
(C62, § 30-1514; O.8084; C75, C79, § 27-1547; C91, § 27-649; O.11,650, 15,658)

Sec. 114-651. Deposit of collections with city treasurer.

All receipts, fees or revenues in any manner collected from parking meters shall be deposited with the city treasurer, who shall enter the amount thereof upon the city's parking meter records or accounts.
(C62, § 30-1515; O.8084; C75, § 27-1548; O.9227; C79, § 27-1548; C91, § 27-650; O.11,650)

Sec. 114-652. Manner of collecting monies from meters.

All monies shall be collected from parking meters under the direction and control of the city traffic engineer. All monies so collected shall be deposited by the city treasurer. The maintenance and operation shall be under the supervision, direction and control of the city traffic engineer.
(C62, § 30-1517; O.8084; C75, § 27-1550; O.9227; C79, § 27-1550; C91, § 27-652; O.11,650, 15,658, 16,095)

Sec. 114-653. Designation of collectors; disposition of monies collected.

The city traffic engineer shall designate city employees or contracted persons under its supervision to make regular collections of the money deposited in parking meters. The person so designated shall remove from the parking meters the coin box contained therein, placing it in a locked coin-collection cart provided for collection purposes and shall deliver such locked coin-collection cart to the counting room or bank designated by the city treasurer, where the coin-collection cart will be unlocked, the coins contained therein counted, and deposited in the special parking meter fund.
(C62, § 30-1518; O.8084; C75, § 27-1551; O.9227; C79, § 27-1551; C91, § 27-653; O.11,650, 13,815, 15,658, 16,095)

Sec. 114-654. Reserved.

Editor's note—Ord. No. 15,658, § 1, adopted May 7, 2018, repealed § 114-654, which pertained to time zones in parking meter districts and derived from Code 1962, § 30-1521; Ord. No. 8084; Code 1975; Code 1979, § 27-1554; Code 1991, § 27-654; Ord. No. 11,650.

Sec. 114-655. Reservation of powers.

Nothing in this division shall be construed as prohibiting the city from providing for bus stops, taxicab stands and other matters of similar nature, including the loading or unloading of trucks, vans or other commercial vehicles.
(C62, § 30-1520; O.8084; C75, C79, § 27-1553; C91, § 27-655; O.11,650, 15,658)

Sec. 114-656. Reserved.

DIVISION 5. MUNICIPALLY OWNED PARKING GARAGES

Sec. 114-657. Operations.

The city traffic engineer is hereby authorized and directed to operate the city parking garages with the rates charged for parking to be those established in section 114-658 of this subchapter unless the city council directs otherwise as provided in section 114-666 of this subchapter.

No charge shall be made for parking in the parking garages on Sunday with the following exception: certain special events designated by the city traffic engineer.
(C85, § 27-1825; O.11,565; C91, § 27-656; O.11,650, 11,890, 13,673, 13,815, 14,519, 15,047, 15,617, 15,634, 15,769)

Sec. 114-658. Rates for city parking garages.

(a) Subject to section 114-666 of this subchapter, the following rates shall be charged at city parking garages.

	Fifth and Walnut Parking Garage	*Seventh and Center Parking Garage*	*Fifth and Keo Parking Garage*	*Fourth and Grand Parking Garage*	*Ninth and Locust Parking Garage*	*Third and Court Parking Garage*	*East Second Parking Garage*	*East Fourth and Des Moines Parking Garage*(2)	*1200 Mulberry Parking Garage*
Hourly Rate (first hour)	$1.00	$1.00	$1.00	$1.00	$1.00	$1.00	$1.00	$1.00	$1.00
Hourly Rate (each additional hour)	$1.00	$0.50	$1.00	$1.00	$1.00	$1.00	$1.00	$1.00	$1.00
12 Hour Maximum	$7.00	$5.00	$7.00	$7.00	$7.00	$7.00	$7.00	$7.00	$7.00
24 Hour Maximum	$10.00	$6.00	$10.00	$10.00	$10.00	$10.00	$10.00	$10.00	$10.00
Floater Rate (per month)	$120.00	$63.00	$120.00	$120.00	$120.00	$120.00	$120.00	$120.00	$120.00
Preferred Rate (per month)	$140.00	$75.00	$140.00	$140.00	$140.00	$140.00	$140.00	$140.00	$140.00
Reserved Rate (per month)	$160.00	N/A	$160.00	$160.00	$160.00	$160.00	N/A	N/A	N/A
Resident Floater (per month)	N/A	N/A	$63.00	$63.00	N/A	N/A	N/A	N/A	N/A
Resident Preferred (per month)	N/A	N/A	$73.00	$73.00	N/A	N/A	N/A	N/A	N/A
Floater Rooftop Night(1)	N/A	N/A	N/A	N/A	N/A	N/A	$60.00	N/A	N/A
Prepaid Special Event	$5.00—$20.00	$5.00—$20.00	$5.00—$20.00	$5.00—$20.00	$5.00—$20.00	$5.00—$20.00	$5.00—$20.00	$5.00—$20.00	$5.00—$20.00
Prepaid Saturday (after 4:00 p.m.	N/A	N/A	N/A	N/A	N/A	$5.00	N/A	N/A	N/A
Parking Meters (per hour)	N/A	N/A	N/A	N/A	$1.25	N/A	N/A	N/A	$1.00

(1) Floater Rooftop Night rate allows parking between 5:00 p.m. and 8:00 a.m., Monday through Friday. All day Saturday, Sunday and holidays.

(2) Applies to ground floor, City-leased spaces only.

(b) For purposes of any outstanding parking license agreement for parking in a city parking garage, this section shall be deemed the successor code section to amended or repealed code sections 114-658, 114-659, 114-662, 114-663, 114-664, 114-665 and 114-665.05.

(C85, § 27-1826; O.11,565; C91, § 27-657; O.11,650, 11,890, 12,080, 13,673, 13,815, 14,519, 15,373, 15,473, 15,634, 15,649, 15,769, 15,830, 15,986, 16,420, 16,438)

Sec. 114-659. Reserved.

Editor's note—Ord. No. 15,769, § 1, adopted April 22, 2019, repealed § 114-659, which pertained to rates for Seventh and Center Park and Ride Parking Garage and derived from Code 1985, § 27-1827; Ord. No. 11,565; Code 1991, § 27-657.01; Ord. No. 11,650; Ord. No. 11,890; Ord. No. 13,673; Ord. No. 13,815; Ord. No. 14,519; Ord. No. 15,373; Ord. No. 15,634; Ord. No. 15,649. The user's attention is directed to § 114-658.

Sec. 114-660. Reserved.

Editor's note—Ord. No. 15,617, § 1, adopted Oct. 9, 2017, repealed § 114-660, which pertained to rates for Fifth and Walnut Parking Garage and derived from Code 1985, § 27-1828; Ord. No. 11,565; Code 1991, § 27-657.02; Ord. No. 11,650; Ord. No. 11,890; Ord. No. 13,815; Ord. No. 14,519; Ord. No. 15,047; Ord. No. 15,373; Ord. No. 15,473.

Sec. 114-661. Reserved.

Editor's note—Ord. No. 15,473, § 1, adopted May 23, 2016, repealed § 114-661, which pertained to rates for Seventh and Grand Parking Garage and derived from Code 1985, § 27-1829; Ord. No. 11,565; Code 1991, § 27-657.03; Ord. No. 11,650; Ord. No. 11,890; Ord. No. 13,838; Ord. No. 13,907; Ord. No. 14,519; Ord. No. 15,373.

Sec. 114-662. Reserved.

Editor's note—Ord. No. 15,769, § 1, adopted April 22, 2019, repealed § 114-662, which pertained to rates for Fifth and Keo Parking Garage and derived from Code 1985, § 27-1830; Ord. No. 11,565; Code 1991, § 27-657.04; Ord. No. 11,650; Ord. No. 11,890; Ord. No. 13,218; Ord. No. 13,815; Ord. No. 14,519; Ord. No. 15,373; Ord. No. 15,473; Ord. No. 15,634; Ord. No. 15,649. The user's attention is directed to § 114-658.

Sec. 114-663. Reserved.

Editor's note—Ord. No. 15,769, § 1, adopted April 22, 2019, repealed § 114-663, which pertained to rates for Fourth and Grand Parking Garage and derived from Code 1985, § 27-1831; Ord. No. 11,565; Code 1991, § 27-657.05; Ord. No. 11,650; Ord. No. 11,890; Ord. No. 13,218; Ord. No. 13,815; Ord. No. 13,907; Ord. No. 14,519; Ord. No. 15,047; Ord. No. 15,373; Ord. No. 15,473; Ord. No. 15,634; Ord. No. 15,649. The user's attention is directed to § 114-658.

Sec. 114-664. Reserved.

Editor's note—Ord. No. 15,769, § 1, adopted April 22, 2019, repealed § 114-664, which pertained to rates for Ninth and Locust Parking Garage and derived from Code 1985, § 27-1832; Ord. No. 11,565; Ord. No. 11,603; Code 1991, § 27-657.06; Ord. No. 11,650; Ord. No. 11,890; Ord. No. 13,029; Ord. No. 13,342; Ord. No. 13,815; Ord. No. 13,994; Ord. No. 14,519; Ord. No. 14,627; Ord. No. 14,727; Ord. No. 15,373; Ord. No. 15,473; Ord. No. 15,634; Ord. No. 15,649. The user's attention is directed to § 114-658.

Sec. 114-665. Reserved.

Editor's note—Ord. No. 15,769, § 1, adopted April 22, 2019, repealed § 114-665, which pertained to rates for Third and Court Parking Garage and derived from Code 1991, § 27-657.07; Ord. No. 12,080; Ord. No. 13,245; Ord. No. 13,519; Ord. No. 13,815; Ord. No. 14,519; Ord. No. 15,047; Ord. No. 15,373; Ord. No. 15,473; Ord. No. 15,634; Ord. No. 15,649. The user's attention is directed to § 114-658.

Sec. 114-665.05. Reserved.

Editor's note—Ord. No. 15,769, § 1, adopted April 22, 2019, repealed § 114-665.05, which pertained to rates for East Second Parking Garage and derived from Ord. No. 15,617. The user's attention is directed to § 114-658.

Sec. 114-666. Adjustment of rates.

(a) The rates established in this division may be adjusted by resolution of the city council so long as such adjustment is consistent with city council established guidelines for free or reduced rate parking and the city council finds each such adjustment to be in the best interest of the city and without jeopardy to the city's ability to achieve and maintain bond financing for its parking facilities system.

(b) The rates established in this division may be adjusted by the city council in conjunction with city council approval of an economic development grant, loan or other financial assistance for job creation or job retention provided that any

reduction of rates will not have an adverse impact on actual revenues to the parking facilities system.

(c) At the direction of the city traffic engineer, temporary reduced monthly or daily rates may be charged in any parking garage for up to six months, or temporary reduced monthly rates may be charged in any parking garage for up to 12 months in conjunction with a contemplated long-term parking arrangement, as an incentive to attract additional parking customers during times when unused spaces are available. Such temporary reduced rates shall be charged only when a preliminary analysis has indicated that total parking revenues will increase in the garage or garages where such reduced rates are proposed. The implementation of temporary reduced rates shall be subject to the prior review and approval of the city manager and city attorney to ensure compliance with any parking system revenue bond covenants and restrictions relating to tax exemption. Any time that temporary reduced rates are charged, the city traffic engineer shall conduct an analysis to determine the impact on actual revenues and shall terminate the temporary reduced rates if such rates have an adverse impact on actual revenues to the parking facilities system.

(d) At the discretion of the city traffic engineer, the base prepaid special event rate of $5.00 may be increased up to $20.00 in any parking garage based on the anticipated increased parking demand related to the special event.
(C85, § 27-1833; O.11,565; C91, § 27-658; O.11,650, 14,519, 15,047, 15,292, 15,373, 16,420)

Sec. 114-667. Reserved.

DIVISION 6. MUNICIPALLY OWNED PARKING LOTS

Sec. 114-668. Scope of division.

(a) Parking of vehicles is limited in the locations specifically designated in this division between the hours stated for each location.

(b) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-1712; O.8084; C75, C79, § 27-1741; C91, § 27-659; O.11,650, 14,244, 16,470)

Sec. 114-669. Fifth Avenue and Euclid Avenue.

One-hour parking in the Highland Park Branch Library parking lot is permitted between 9:00 a.m. and 9:00 p.m.
(C62, § 30-1713; O.8084; C75, C79, § 27-1742; C91, § 27-660; O.11,650)

Sec. 114-670. 1300 Locust Street.

Paid parking from 9:00 a.m. to 9:00 p.m., Monday through Saturdays at a rate of $1.00 per hour. Free parking during all other hours. The charge for prepaid special events is $5.00 to $10.00 and can be adjusted in accordance with Municipal Code section 114-666 in division 5.
(O.16,323)

Editor's note—Prior to reenactment by Ord. No. 16,323, Ord. No. 15,009, § 1, adopted Apr. 11, 2011, repealed § 114-670, which pertained to Second Avenue and Walnut street Municipal Parking Lot and derived from Code 1979, § 12-1742.1; Ord. Nos. 9676, 10,292; Code 1985, § 27-1742.01; Ord. No. 11,426; Code 1990, § 27-661; Ord. Nos. 11,650, 12,096, 13,815, 13,994, 14,519.

Sec. 114-671. 1290 Walnut Street.

Paid parking every day at a rate of $60.00 per month. The charge for prepaid special events is $5.00 to $10.00 and can be adjusted in accordance with Municipal Code section 114-666 in division 5.
(O.16,323)

Editor's note—Prior to reenactment by Ord. No. 16,323, Ord. No. 15,453, § 1, adopted March 21, 2016, repealed § 114-671, which pertained to East Fifth Street and East Grand Avenue Municipal Parking Lot and derived from Code 1962, § 30-1715; Ord. No. 8084; Code 1975, § 27-1743; Ord. No. 9227; Code 1979, § 27-1743; Code 1985, § 27-1743; Ord. No. 10,767; Ord. No. 11,426; Code 1991, § 27-662; Ord. No. 11,650; Ord. No. 13,218; Ord. No. 13,815; Ord. No. 14,102; Ord. No. 14,519.

Sec. 114-671.1. Reserved.

Editor's note—Ord. No. 15,453, § 1, adopted March 21, 2016, repealed § 114-671.1, which pertained to 411 E. Grand Municipal Parking Lot and derived from Ord. No. 14,608.

Sec. 114-671.1.1. Reserved.

Editor's note—Ord. No. 15,453, § 1, adopted March 21, 2016, repealed § 114-671.1.1, which pertained to 409 E. Grand Municipal Parking Lot and derived from Ord. No. 15,207.

Sec. 114-672. Reserved.

Editor's note—Ord. No. 15,226, § 1, adopted Oct. 21, 2013, repealed § 114-672, which pertained to 425 E. Grand Municipal Parking Lot and derived from Code 1962, § 30-1716; Ord. No. 8084; Code 1975, § 27-1744; Ord. No. 9227; Code 1979, § 27-1744; Ord. No. 10,578; Code 1985, § 27-1744; Ord. No. 11,231; Ord. No. 11,426; Ord. No. 11,492; Code 1991, § 27-663; Ord. No. 11,650; Ord. No. 13,218; Ord. No. 13,815; Ord. No. 14,418; Ord. No. 14,519.

Sec. 114-673. Reserved.

Editor's note—Ord. No. 14,418, § 1, adopted March 7, 2005, repealed § 114-673 which pertained to Mulberry Street and Eighth Street Municipal Parking Lot and derived from Ord. No. 13,785; and Ord. No. 13,815.

Sec. 114-674. Reserved.

Editor's note—Ord. No. 14,753, § 1, adopted April 21, 2008, repealed § 114-674, which pertained to E. Fifth Street and E. Walnut Municipal Parking Lot and derived from Ord. No. 14,519.

Sec. 114-675. Reserved.

Editor's note—Ord. No. 15,701, § 1, adopted Sept. 10, 2018, repealed § 114-675, which pertained to 1212 Cherry Street Municipal Parking Lot and derived from Ord. No. 14,876.

DIVISION 7. ELECTRIC VEHICLE CHARGING STATIONS

Sec. 114-676. Operations.

The city traffic engineer is hereby authorized and directed to operate electric vehicle charging stations in the city-operated public parking garages and surface lots within the city traffic engineer's discretion. Rates charged for public use of electric vehicle charging stations shall be those established in section 114-676A of this subchapter unless the city council directs otherwise as provided in section 114-676B of this subchapter.
(O.16,410)

Sec. 114-676A. Rates for electric vehicle charging stations.

Subject to section 114-676B of this subchapter, the following rates shall be charged at city-operated public parking garages and surface lots:

(a) *Usage fee:* The usage fee for anyone using an electric vehicle charging station shall be $0.16 per kilowatt hour, except as provided in section 114-676B.

(b) *Idling:* If a vehicle is plugged into an electric vehicle charging station for 30 minutes after a charging session has ended, the fee assessed on the account paying for the charge shall be $5.00 plus an additional fee of $1.25 for each 15 minute period thereafter. The city traffic engineer may implement a system that allows the billing system to notify people that their charging is complete prior to assessing the idling fee.

(c) *Failure to use charger:* Failure to use a charger while occupying marked space at an electric vehicle charging station is prohibited. A person violating this provision shall pay a fine as set forth in section 114-645. This fine shall be enforced as a parking meter violation under the Municipal Code.

(O.16,410)

Sec. 114-676B. Adjustment of rates.

The rates established in this division may be adjusted by resolution of the city council so long as such adjustment and the city council finds each such adjustment to be in the best interest of the city and without jeopardy to the city's ability to achieve and maintain bond financing for its parking facilities system.
(O.16,410)

ARTICLE XIV. BICYCLES AND PEDICABS*

DIVISION 1. BICYCLES

Sec. 114-677. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Bicycle means either of the following:

(1) A device having up to four wheels and having at least one saddle or seat for the use of a rider which is propelled by human power.

(2) A device having up to four wheels with fully operable pedals and an electric motor of one horsepower or less.

Multi-use trail means a way or place, the use of which is controlled by the city as an owner of real property, designated by the multi-use recreational trail maps, as approved by resolution by the city council, and no multi-use trail shall be considered as a street or highway.
(O.15,083)

Sec. 114-678. Alteration of serial frame number.

It shall be unlawful for any person to willfully or maliciously remove, destroy, mutilate or alter the manufacturer's serial frame number of any bicycle.
(O.15,083)

*__Editor's note—__Ord. No. 15,083, § 1, adopted Feb. 27, 2012, amended Art. XIV in its entirety to read as herein set out. Former Art. XIV, §§ 114-677—114-698, pertained to similar subject matter, and derived from Code 1942, §§ 20-87, 21-4, 21-6, 21-6.01, 21-8—21-19, 21-36. See the Code Comparative Table for complete derivation. Futhermore, Ord. No. 15,487, adopted July 11, 2016, amended the title of Art. XIV to read as herein set out. Formerly, said Art. XIV was entitled "Bicycles."

Sec. 114-679. Sirens and whistles prohibited.

A bicycle shall not be equipped with and a person shall not use upon a bicycle any siren or whistle. This section shall not apply to bicycles ridden by peace officers in the line of duty.
(O.15,083)

Sec. 114-680. Lamps and reflectors.

(a) Every bicycle ridden at any time from sunset to sunrise and at such other times when conditions such as fog, snow, sleet, or rain provide insufficient lighting to render clearly discernible persons and vehicles on the highway at a distance of 300 feet ahead shall be equipped with a lamp on the front exhibiting a white light visible from a distance of at least 300 feet to the front.

(b) Every bicycle shall be equipped with a lamp on the rear exhibiting a red light visible from a distance of 300 feet to the rear; except that a red reflector may be used in lieu of a rear light.

(c) Equivalent equipment such as headlamps and red light attachments to the arm or leg may be used in lieu of a lamp on the front and a red light on the rear of the bicycle.

(d) A peace officer riding a police bicycle is not required to use either front or rear lamps if duty so requires.
(O.15,083)

Sec. 114-681. Stopping.

Every bicycle used upon the city streets, sidewalks, highways, park roads or multi-use trails shall be able to come to a complete stop within a safe distance.
(O.15,083)

Sec. 114-682. Applicability of motor vehicle laws.

Every person operating a bicycle upon the city streets, highways, park roads, or multi-use trails shall be subject to this chapter and other city traffic ordinances and the state statutes applicable to the drivers of motor vehicles, except as to special regulations in this chapter and except as

to those provisions of ordinances and statutes which by their nature can have no application or those provisions for which specific exceptions have been set forth regarding police bicycles.
(O.15,083)

Sec. 114-683. Obedience to signals.

Every person operating a bicycle shall obey the directions of official traffic signals, signs and other control devices applicable to other vehicles, unless otherwise directed by a police officer, and shall obey direction signs relative to turns permitted, unless such person dismounts from the bicycle, when he or she shall then obey the regulations applicable to pedestrians.
(O.15,083)

Sec. 114-684. Improper riding.

(a) A person propelling a bicycle on any street, sidewalk, highway, park road or multi-use recreational trail, shall not ride other than upon or astride a permanent and regular seat attached to the bicycle and shall not use a bicycle to carry more persons at one time than the number of persons for which the bicycle is designed and equipped.

(b) This section does not apply to the use of a bicycle in a parade or special event authorized by the city.
(O.15,083)

Sec. 114-685. Carrying packages.

No person operating a bicycle upon a street, sidewalk, highway, park road or multi-use trail shall carry any package, bundle or article which prevents the rider from keeping at least one hand upon the handlebars.
(O.15,083)

Sec. 114-686. Control with hands on handlebars

The operator of a bicycle upon a street, sidewalk, highway, park road or multi-use trail shall keep the bicycle under control at all times and at all times during operation shall have one or both hands upon the handlebars and the feet engaged with the braking device if the braking device is designed to be actuated by the feet.
(O.15,083)

Sec. 114-687. Place of riding.

(a) Any person operating a bicycle upon a roadway at a speed less than the normal speed of traffic moving in the same direction shall ride as close as practicable to the right-hand curb or edge of the roadway except under any of the following situations:

(1) When overtaking and passing another bicycle vehicle proceeding in the same direction.

(2) When preparing for a left turn at an intersection or into a private road or driveway.

(3) When reasonably necessary to avoid conditions (including, but not limited to, fixed or moving objects, vehicles, bicycles, pedestrians, animals, surface hazards, or substandard width lanes) that make it unsafe to continue along the right-hand curb or edge. For purposes of this section, a "substandard width lane" is a lane that is too narrow for a bicycle and a vehicle to travel safely side by side within the lane.

(4) A facility that would allow bicycle traffic on the left side of the roadway.

(b) Any person operating a bicycle upon a roadway which carries traffic in one direction only and has two or more marked traffic lanes, may ride as near the left-hand curb or edge of such roadway as practicable.

(c) When so riding upon any multi-use trail with other cyclists, there shall not be more than two abreast.

(d) This section does not apply to the use of a bicycle in a parade or special event authorized by the city.
(O.15,083)

Sec. 114-688. Bicycle lanes.

(a) Whenever a bicycle lane has been established on a roadway, any person operating a bicycle upon the roadway moving in the same direction may ride within the bicycle lane.

(b) Any person operating a bicycle within a bicycle lane may move out of the lane when overtaking and passing another bicycle, vehicle, or pedestrian within the lane or about to enter the lane if such overtaking and passing cannot be done safely within the lane.

(c) No person operating a bicycle shall leave a bicycle lane until the movement can be made with reasonable safety and then only after giving an appropriate signal.

(d) No person shall drive a motor vehicle in a bicycle lane established on a roadway except as follows:

(1) To park where parking is permitted.

(2) To enter or leave the roadway.

(3) To prepare for a turn within a distance of 200 feet from the intersection.

(O.15,083)

Sec. 114-689. Emerging from alley or driveway.

The operator of a bicycle emerging from an alley, driveway or building shall, upon approaching a sidewalk or the sidewalk area extending across any alleyway or driveway, yield the right-of-way to all pedestrians approaching on the sidewalk or sidewalk area and upon entering the roadway shall yield the right-of-way to all vehicles approaching on the roadway.
(O.15,083)

Sec. 114-690. Operation on sidewalk.

Bicycles may be operated upon the public sidewalks in a careful and prudent manner and except where signs are erected to prohibit riding on the sidewalk. Every person lawfully operating a bicycle upon a public sidewalk, shall yield the right-of-way when approaching a pedestrian and shall give an audible signal before overtaking and passing.
(O.15,083)

Sec. 114-691. Clinging to other vehicles.

No person riding upon any bicycle on a street, sidewalk, highway, park road or multi-use trail shall attach the bicycle or himself or herself to any moving vehicle by tow rope, hand grip or otherwise.
(O.15,083)

Sec. 114-692. Following emergency vehicles.

No person riding a bicycle shall follow closer than 500 feet of an emergency vehicle as defined by Iowa Code section 321.1 which has emergency lights and/or siren activated, and shall not stop, park, or leave a bicycle within 500 feet of an emergency vehicle stopped in response to an emergency.
(O.15,083)

Sec. 114-693. Parking.

No person shall leave a bicycle lying on its side on any sidewalk, or shall park a bicycle on a sidewalk in any other position, so that there is not an adequate path for pedestrian traffic.
(O.15,083)

Sec. 114-694. Reckless operation.

No person shall operate a bicycle with willful or wanton disregard for the safety of persons or property.
(O.15,083)

DIVISION 2. PEDICABS

Sec. 114-695. Definitions.

(a) *Pedicab* means a device having up to four wheels that transports or is capable of transporting passengers on an attached single bench passenger seat, powered by pedals. A Pedicab may be propelled solely by human power or by human power assisted by a motor of no greater than 750 watts operating as a Class 1 low-speed electric bicycle, as defined in Section 321.1(36A) of the Iowa Code.

(b) *Pedicab business* means the business of operating one or more pedicabs for the recreational or physical transportation of the general public for profit, not-for-profit, or as a free service accepting tips or displaying advertising.
(O.15,487, 16,371)

Sec. 114-696. Compliance with division 1, bicycles.

Every operator of a pedicab shall comply with all provisions of division 1, bicycles, except section 114-684, improper riding.
(O.15,487)

Sec. 114-697. License required.

Every pedicab shall have affixed to the back of the pedicab a current City of Des Moines pedicab license, which is clearly visible to others using the roadway. All city ordinances related to operating a business within the City of Des Moines apply.
(O.15,487, 16,371)

Sec. 114-698. License application.

(a) Applications for a pedicab license must be submitted to the City of Des Moines Traffic Engineer and approved prior to operating a pedicab.

(b) Requirements for approval:

(1) Provide to the traffic engineer a certificate of a general liability insurance policy covering the operation of the pedicab(s) including coverage for bodily injury, death and property damage with limits of liability not less than $1,000,000.00 per occurrence and aggregate combined single limit. Insurance must be effective for same period as the license remains valid and effective.

(2) The certificate of insurance referred to in this section shall provide that the insurance policy or policies have been endorsed to provide 30 days advance written notice of cancellation, 45 days advance written notice of non-renewal, and ten days advance written notice of cancellation due to nonpayment of premium, and that these written notices shall be provided by e-mail, facsimile, delivery, or regular mail to the traffic engineer.

(3) The cancellation or other termination of any required insurance policy shall automatically revoke and terminate the pedicab license.

(c) The pedicab license shall be valid and effective from January 1 to December 31 of the year approved.
(O.15,487, 16,371)

Sec. 114-699. Prohibitions.

(a) No person under the age of 16 shall operate a pedicab.

(b) No person shall operate a pedicab without a pedicab license.

(c) No person shall operate a Class 2 or 3 low-speed electric bicycle as a pedicab.

(d) No person shall operate a pedicab on a street with a posted speed limit of 35 miles per hour or greater, except for the purpose of crossing the street.

(e) No person, while operating a pedicab, shall stop on a street with a posted speed limit of 35 miles per hour or greater in order to pick up or drop off passengers.
(O.15,487, 16,371)

Sec. 114-700. Penalty.

Any person who fails to perform an act required by this division or who commits an act prohibited by this division shall be guilty of a simple misdemeanor punishable by a penalty as provided by section 1-15 of this Code.
(O.15,487)

Secs. 114-701—114-1100. Reserved.

ARTICLE XV. MUNICIPALLY OWNED PARKS*

Sec. 114-1101. Classification of park roads.

Park roads do not occupy the status of public streets, and parking areas therein are not controlled by section 114-361.01 of this chapter.
(C62, § 30-1716.01; O.8351; C75, C79, § 27-1744.01; C91, § 27-664; O.11,650)

Sec. 114-1102. Hours of use of roads.

The hours during which park roads may be used by the public will be the same hours during which the public is authorized to use the park, with the exception of those times when the parks and recreation director closes those roads for repairs, emergencies, or to facilitate other park activities.
(C62, § 30-1716.02; O.8351; C75, C79, § 27-1744.02; C91, § 27-665; O.11,650)

Sec. 114-1103. Speed limits.

No person shall ride or drive in any city park except upon the established roads and ways, and no person shall exceed a speed limit of 20 miles per hour at any time unless otherwise posted.
(C62, § 30-1716.03; O.8351; C75, C79, C85, § 27-1744.03; O.11,324; C91, § 27-666; O.11,650, 14,030, 15,852)

Sec. 114-1104. Parking after hours.

(a) No person shall park a vehicle or allow a parked vehicle to remain in any public park, cemetery, community center or city recreational facility, except during the park facility hours set for that property in section 74-101 or in violation of section 114-361.06 of this Code, unless special permission shall have been given by the parks and recreation director for such vehicle to remain there.

(b) A violation of this section shall place such vehicle in the status of an illegally parked vehicle, and the vehicle may be dealt with pursuant to section 114-485.11 of this chapter.

(c) A person who violates any provision of this section shall pay a fine of $20.00.
(C62, § 30-1716.04; O.8351; C75, C79, C85, § 27-1744.04; O.11,211; C91, § 27-667; O.11,650, 14,244, 15,736, 16,470)

Sec. 114-1105. Parking restrictions.

(a) No person shall park a vehicle in any city park, cemetery, community center or city recreational facility in such a manner as to block access to any road, driveway or building.

(b) No person shall park a vehicle in any city park, cemetery, community center or city recreational facility except in the places designated by the parks and recreation director.

(c) A violation of this section shall place such vehicle in the status of an illegally parked vehicle, and the vehicle may be dealt with pursuant to section 114-485.11 of this chapter.

(d) A person who violates any provision of this section shall pay a fine of $50.00.
(C85, § 27-1744.041; O.11,211, 11,575; C91, § 27-668; O.11,650, 14,244, 15,852)

Sec. 114-1106. Commercial vehicles.

No person shall drive a truck or other commercial vehicle having a freight capacity greater than one ton along or over any park roads or drives except to deliver its load for use in such park.
(C62, § 30-1716.05; O.8351; C75, C79, § 27-1744.05; O.10,639; C91, § 27-669; O.11,650)

Sec. 114-1107. One-way traffic and stop signs.

No person shall operate a vehicle contrary to one-way traffic or stop signs posted on park roads.
(C62, § 30-1716.06; O.8367; C75, C79, § 27-1744.06; C91, § 27-670; O.11,650)

Sec. 114-1108. Pedestrian use of park roads.

Every pedestrian crossing a park road at any point other than within a marked crosswalk or

*__Cross reference—__Parks and recreation, ch. 74.

within an unmarked crosswalk at an intersection shall yield the right-of-way to all vehicles upon the park road.
(C62, § 30-1716.07; O.8367; C75, C79, § 27-1744.07; C91, § 27-671; O.11,650)

Secs. 114-1109—114-1205. Reserved.

ARTICLE XVI. SCHEDULES

DIVISION 1. GENERALLY

Secs. 114-1206—114-1230. Reserved.

DIVISION 2. SPEED

Sec. 114-1231. Restrictions established.

As provided in and in accordance with section 114-285.01 of this chapter, speed shall be restricted on the streets indicated in this division, or the indicated portions of such streets, to not more than the speed indicated in each section.

Sec. 114-1232. Southeast First Street.

Southeast First Street, from Southwest Water Street to Indianola Road, 30 miles per hour.
(C62, § 30-173; O.8084; C75, C79, § 27-180; O.9866; C91, § 27-710; O.11,650, 14,057, 14,437)

Sec. 114-1233. Reserved.

Editor's note—Ord. No. 14,437, § 1, adopted April 25, 2005, repealed § 114-1233, which pertained to Southwest First Street and derived from Code 1979, § 27-180.01; Ord. No. 9866; Code 1991, § 27-711; and Ord. No. 11,650.

Sec. 114-1234. Second Avenue.

Second Avenue, from Vine Street to Court Avenue, 30 miles per hour.

Second Avenue, from Watson Powell Jr Way to University Avenue, 35 miles per hour.

Second Avenue, from University Avenue to Douglas Avenue, 30 miles per hour.

Second Avenue, from Douglas Avenue to the north city limits, 35 miles per hour.
(C62, § 30-174; O.8084, 8750; C75, C79, § 27-181; O.9759; C91, § 27-712; O.11,650, 13,218, 13,855)

Sec. 114-1235. Southwest Second Street.

Southwest Second Street, from Vine Street to Southwest Third Street, 30 miles per hour.
(C91, § 27-712.01; O.13,218)

Sec. 114-1236. Third Street.

Third Street, from Court Avenue to Vine Street, 30 miles per hour.

Third Street, from Watson Powell Jr Way to Laurel Street, 35 miles per hour.
(C62, § 30-175; O.8084; C75, C79, § 27-182; C91, § 27-713; O.11,650, 13,218, 13,855, 14,437)

Sec. 114-1237. Southwest Third Street.

Southwest Third Street, from Vine Street to Jackson Avenue, 30 miles per hour.
(C91, § 27-713.01; O.13,218)

Sec. 114-1238. Fifth Avenue.

Fifth Avenue, from northerly west bound off-ramp Interstate 235 (Des Moines Freeway) to Watson Powell Jr Way, 35 miles per hour.
(C62, § 30-176; O.8084; C75, C79, § 27-183; C91, § 27-714; O.11,650, 13,855, 14,437)

Sec. 114-1239. Southeast Fifth Street.

Southeast Fifth Street, from East Park Avenue to East Army Post Road, 30 miles per hour.

Southeast Fifth Street, from East Army Post Road to a point 350 feet south of Burnham Avenue, 35 miles per hour.

Southeast Fifth Street, from a point 350 feet south of Burnham Avenue to East County Line Road, 40 miles per hour.
(C79, § 27-183.01; O.9741; C91, § 27-715; O.11,650, 13,658)

Sec. 114-1240. Sixth Avenue.

Sixth Avenue, from Watson Powell Jr Way to Seneca Avenue, 30 miles per hour.

Sixth Avenue, from a point 300 feet north of Madison Avenue to the north city limits, 30 miles per hour.
(C62, § 30-177; O.8084, 8750; C75, C79, § 27-184; O.9759; C91, § 27-716; O.11,650, 13,855)

Sec. 114-1241. East Sixth Street.

East Sixth Street, from Pennsylvania Avenue to East Grand Avenue, 30 miles per hour.
(C62, § 30-178; O.8084; C75, C79, § 27-185; C91, § 27-717; O.11,650)

Sec. 114-1242. Southeast Sixth Street.

Southeast Sixth Street, from Scott Avenue to East Livingston Avenue, 30 miles per hour.

Southeast Sixth Street, from East Dunham Avenue to Indianola Avenue, 30 miles per hour.
(C62, § 30-178.01; O.8204, 8750; C75, C79, § 27-185.01; C91, § 27-718; O.11,650, 14,057, 14,437)

Sec. 114-1242.5. Southwest Sixth Street.

Southwest Sixth Street, from Vine Street to Southwest Seventh Street, 35 miles per hour.
(O.13,773)

Sec. 114-1243. Seventh Street.

Seventh Street, from Watson Powell Jr Way to Day Street, 35 miles per hour.

Seventh Street, from Day Street to Ascension Street, 30 miles per hour.
(C62, § 30-179; O.8084; C75, C79, § 27-186; C91, § 27-719; O.11,650, 13,855)

Sec. 114-1244. Southwest Seventh Street.

Southwest Seventh Street, from Vine Street to Indianola Road, 35 miles per hour.
(C62, § 30-180; O.8084, 8615; C75, C79, § 27-187; O.10,574; C91, § 27-720; O.11,650, 13,773, 14,057)

Sec. 114-1244.01. Eighth Street.

Eighth Street, from Vine Street to Mulberry Street, 35 miles per hour.
(O.14,437)

Sec. 114-1245. Southwest Eighth Street.

Southwest Eighth Street, from Southwest Ninth Street to Vine Street, 35 miles per hour.
(C62, § 30-181; O.8084, 8615; C75, C79, § 27-188; C91, § 27-721; O.11,650, 14,437)

Sec. 114-1246. East Ninth Street.

East Ninth Street, from East Grand Avenue to Hull Avenue, 30 miles per hour.
(C62, § 30-181.01; O.8299; C75, C79, § 27-188.01; C91, § 27-722; O.11,650, 14,437)

Sec. 114-1247. Ninth Street.

Ninth Street, from Center Street to University Avenue, 35 miles per hour.

Ninth Street, from University Avenue to Hickman Road, 30 miles per hour.

Ninth Street, from Mulberry Street to Vine Street, 35 mile per hour.
(C75, § 27-188.02; O.9429; C79, § 27-188.02; O.9977, 10,044; C91, § 27-723; O.11,650, 14,437)

Sec. 114-1248. Southwest Ninth Street.

Southwest Ninth Street, from Vine Street to Bancroft Street, 35 miles per hour.

Southwest Ninth Street, from Bancroft Street to McKinley Avenue, 30 miles per hour.

Southwest Ninth Street, from McKinley Avenue to a point 1970 feet south of County Line Road, 35 miles per hour.

Southwest Ninth Street, from a point 1970 feet south of County Line Road to south city limits, 45 miles per hour.
(C62, § 30-182; O.8084, 8750; C75, C79, § 27-189; O.9759; C91, § 27-724; O.11,650, 11,660, 11,722, 14,437, 14,905, 14,965, 15,687)

Sec. 114-1249. Twelfth Street.

Twelfth Street, from Keosauqua Way to School Street, 30 miles per hour.
(C79, § 27-189.01; O.10,400; C91, § 27-725; O.11,6500)

Sec. 114-1249.01. Southeast Twelfth Street.

Southeast Twelfth Street, from East Martin Luther King Jr Parkway to Maury Street, 30 miles per hour.
(O.15,387)

Sec. 114-1250. Reserved.

Editor's note—Ord. No. 14,437, § 1, adopted Apr. 25, 2005, repealed § 114-1250, which pertained to East Fourteenth Court and derived from Code 1962, § 30-183; Ord. No. 8084; Code 1975; Code 1979, § 27-190; Code 1991, § 27-726; and Ord. No. 11,650.

Sec. 114-1251. East Fourteenth Street.

East Fourteenth Street, from East Vine Street to the north city limits, 35 miles per hour.
(C62, § 30-184; O.8084; C75, C79, § 27-191; C91, § 27-727; O.11,650)

Sec. 114-1252. Southwest Fourteenth Street.

Southwest Fourteenth Street, from Park Avenue to Army Post Road, 30 miles per hour.
(C79, § 27-191.01; O.9957, 9977; C91, § 27-728; O.11,650, 13,122)

Sec. 114-1253. Southeast Fourteenth Street.

Southeast Fourteenth Street, from East Vine Street to a point 50 feet north of East Creston Avenue, 40 miles per hour.

Southeast Fourteenth Street, from a point 50 feet north of East Creston Avenue to a point 800 feet south of Indianola Avenue, 35 miles per hour.

Southeast Fourteenth Street, from a point 800 feet south of Indianola Avenue to a point 200 feet south of East Army Post Road, 40 miles per hour.

Southeast Fourteenth Street, from a point 200 feet south of East Army Post Road to a point 1,640 feet south of East Army Post Road, 45 miles per hour.

Southeast Fourteenth Street, from a point 1,640 feet south of East Army Post Road along Southeast Fourteenth Street to Southridge Boulevard, 55 miles per hour.

Southeast Fourteenth Street, from Southridge Boulevard to East County Line Road, 35 miles per hour.
(C62, § 30-185; O.8084; C75, § 27-192; O.9068; C79, C85, § 27-192; O.10,847, 11,470; C91, § 27-729; O.11,650, 14,057, 14,437, 14,982)

Sec. 114-1254. Fifteenth Street.

Fifteenth Street, from Woodland Avenue to Crocker Street, 30 miles per hour.
(C62, § 30-185.01; O.8501; C75, C79, § 27-192.01; C91, § 27-730; O.11,650)

Sec. 114-1255. East Fifteenth Street.

East Fifteenth Street, from Dean Avenue to Maple Street, 35 miles per hour.
(C62, § 30-186; O.8084; C75, C79, § 27-193; C91, § 27-731; O.11,650)

Sec. 114-1256. East Seventeenth Street.

East Seventeenth Street, from East Washington Avenue to Guthrie Avenue, 30 miles per hour.
(C75, § 27-193.01; O.9295; C79, § 27-193.01; C91, § 27-732; O.11,650)

Sec. 114-1257. Nineteenth Street.

Nineteenth Street, from Cottage Grove to Interstate 235, 35 miles per hour.

Nineteenth Street, from Interstate 235 to Martin Luther King Jr Parkway, north of Mondamin Avenue, 30 miles per hour.
(C62, § 30-187; O.8084, 8615, 8750, 8850; C75, C79, § 27-194; C91, § 27-733; O.11,650, 11,660, 11,935, 14,418)

Sec. 114-1258. Southeast Twenty-second Street.

Southeast Twenty-second Street, from Evergreen Avenue to Hartford Avenue, 30 miles per hour.
(C85, § 27-194.001; O.11,470; C91, § 27-734; O.11,650)

Sec. 114-1258.05. Northeast Twenty-seventh Avenue.

Northeast Twenty-seventh Avenue, from East Oakhill Drive to east city limits, 35 miles per hour.
(O.14,905)

Sec. 114-1259. Reserved.

Editor's note—Ord. No. 16,558, § 1, adopted May 18, 2026, repealed § 114-1259, which pertained to Twenty-eighth Street and derived from Code 1962, § 30-187.01; Ord. No. 8615; Ord. No. 8852; Code 1975; Code 1979, § 27-194.01; Code 1991, § 27-735; ; Ord. No. 11,650.

Sec. 114-1260. Reserved.

Editor's note—Ord. No. 14,437, § 1, adopted April 25, 2005, repealed § 114-1260, which pertained to Southwest Twenty-eighth Street and derived from Ord. No. 13,643.

Sec. 114-1261. East Twenty-ninth Street.

East Twenty-ninth Street, from East University Avenue to Tiffin Avenue, 30 miles per hour.

East Twenty-ninth Street, from East Ovid Avenue to East Euclid Avenue, 30 miles per hour.

East Twenty-ninth Street, from a point 400 feet north of East Douglas Avenue to the north city limits, 30 miles per hour.
(C62, § 30-188; O.8084, 8750; C75, C79, § 27-195; C91, § 27-736; O.11,650)

Sec. 114-1262. Thirtieth Street.

Thirtieth Street, from University Avenue to Francis Avenue, 30 miles per hour.

Thirtieth Street, from a point 500 feet north of Hickman Road to Euclid Avenue, 30 miles per hour.
(C62, § 30-188.01; O.8204, 8750; C75, C79, § 27-195.01; C91, § 27-737; O.11,650)

Sec. 114-1263. East Thirtieth Street.

East Thirtieth Street, from East University Avenue to a point 950 feet south of Dean Avenue, 35 miles per hour.
(C62, § 30-189; O.8084; C75, C79, § 27-196; O.9770; C85, § 27-196; O.11,530; C91, § 27-738; O.11,650)

Sec. 114-1264. Southwest Thirtieth Street.

Southwest Thirtieth Street, from George Flagg Parkway to Park Avenue, 30 miles per hour.
(C75, § 27-196.01; O.9325; C79, § 27-196.01; O.9628; C91, § 27-739; O.11,650, 14,080)

Sec. 114-1265. Southeast Thirtieth Street.

Southeast Thirtieth Street, from a point 950 feet south of Dean Avenue to Vandalia Road, 35 miles per hour.
(C62, § 30-190; O.8084; C75, C79, § 27-197; O.9770; C91, § 27-740; O.11,650)

Sec. 114-1266. Thirty-first Street.

Thirty-first Street, from Ingersoll Avenue to Pleasant Street, 30 miles per hour.

Thirty-first Street, from a point 100 feet north of Center Street to University Avenue, 30 miles per hour.
(C62, § 30-190.01; O.8204, 8750; C75, C79, § 27-197.01; O.9628; C91, § 27-741; O.11,650)

Sec. 114-1267. Southwest Thirty-first Street.

Southwest Thirty-first Street, from Park Avenue to McKinley Avenue, 30 miles per hour.
(C75, § 27-197.02; O.8983; C79, § 27-197.02; C91, § 27-742; O.11,650)

Sec. 114-1268. East Thirty-third Street.

East Thirty-third Street, from East University Avenue to a point 250 feet south of Easton Street, 30 miles per hour.

East Thirty-third Street, from a point 250 feet south of Easton Boulevard to East Euclid Avenue, 35 miles per hour.
(C62, § 30-191; O.8084, 8750; C75, C79, § 27-198; C91, § 27-743; O.11,650, 11,722, 13,122, 13,772, 14,437)

Sec. 114-1269. Southeast Thirty-fourth Street.

Southeast Thirty-fourth Street, from East Watrous Avenue to Evergreen Avenue, 30 miles per hour.

Southeast Thirty-fourth Street, from Evergreen Avenue to Easter Lake Drive, 35 miles per hour.
(C85, § 27-198.001; O.11,302; C91, § 27-744; O.11,650, 13,658, 14,015)

Sec. 114-1270. Reserved.

Editor's note—Ord. No. 14,339, § 1, adopted May 17, 2004, repealed § 114-1270 which pertained to Southwest Thirty-fourth Street and derived from Code 1985, § 27-198.005; Ord. No. 11,293; Code 1991, § 27-745; and Ord. No. 11,650.

Sec. 114-1271. Thirty-fourth Street.

Thirty-fourth Street, from University Avenue to Franklin Avenue, 30 miles per hour.
(C62, § 30-190.02; O.8615; C75, C79, § 27-198.01; C91, § 27-746; O.11,650)

Sec. 114-1272. Reserved.

Editor's note—Ord. No. 16,359, § 1, adopted May 6, 2024, repealed § 114-1272, which pertained to Thirty-fifth Street and derived from Code 1962, § 30-191.01; Ord. No. 8204; Code 1975; Code 1979, § 27-198.02; Code 1991, § 27-747; Ord. No. 11,650.

Sec. 114-1273. Southeast Thirty-sixth Street.

Southeast Thirty-sixth Street, from Easter Lake Drive to East County Line Road, 45 miles per hour.
(C85, § 27-198.021; O.11,302, 11,470; C91, § 27-748; O.11,650)

Sec. 114-1274. East Thirty-eighth Street.

East Thirty-eighth Street, from Easton Boulevard to East Broadway Avenue, 30 miles per hour.

East Thirty-eighth Street, from East Broadway Avenue to Sage Street, 40 miles per hour.

East Thirty-eighth Street, from Sage Street to north city limits, 30 miles per hour.
(C62, § 30-191.02; O.8453, 8730, 8750; C75, C79, § 27-198.03; C91, § 27-749; O.11,650, 13,122, 14,905)

Sec. 114-1274.02. Southeast Thirty-eighth Street.

Southeast Thirty-eighth Street, from East Pine Avenue to south city limits, 45 miles per hour.
(O.14,905)

Sec. 114-1274.05. Southeast Fortieth Street.

Southeast Fortieth Street, from Hart Avenue to Evergreen Avenue, 35 miles per hour.
(O.14,905)

Sec. 114-1275. Forty-first Street.

Forty-first Street, from Forest Avenue to Beaver Avenue, 30 miles per hour.
(C62, § 30-191.03; O.8615; C75, C79, § 27-198.04; C91, § 27-750; O.11,650)

Sec. 114-1276. Forty-second Street.

Forty-second Street, from Grand Avenue to Forest Avenue, 30 miles per hour.
(C79, § 27-198.05; O.9741; C91, § 27-751; O.11,650, 11,660)

Sec. 114-1277. East Forty-second Street.

East Forty-second Street, from Williams Court to East Sheridan Avenue, 30 miles per hour.

East Forty-second Street, from Boyd Avenue to Avenue Frederick M. Hubbell, 30 miles per hour.
(C79, § 27-198.051; O.9994, 10,057, 10,085; C91, § 27-752; O.11,650, 14,437, 16,045)

Sec. 114-1278. Southwest Forty-second Street.

Southwest Forty-second Street, from Park Avenue to McKinley Avenue, 30 miles per hour.

Southwest Forty-second Street, from Southwest McKinley Avenue to Army Post Road, 45 miles per hour.
(C85, § 27-198.052; O.11,293, 11,302, 11,470; C91, § 27-753; O.11,650, 14,132, 14,339, 14,437)

Sec. 114-1279. Southeast Forty-third Street.

Southeast Forty-third Street, from Vandalia Road to Carlisle Road, 45 miles per hour.
(C79, § 27-198.06; O.9770; C91, § 27-754; O.11,650)

Sec. 114-1279.03. Southeast Forty-fifth Street.

Southeast Forty-fifth Street, from north city limits to East Pine Avenue, 55 miles per hour.
(O.14,905)

Sec. 114-1280. Southwest Forty-sixth Street.

Southwest Forty-sixth Street, from Park Avenue to Southwest McKinley Avenue, 45 miles per hour.
(C85, § 27-198.07; O.11,470; C91, § 27-755; O.11,650)

Sec. 114-1280.01. East Forty-sixth Street.

East Forty-sixth Street, from East Broadway Avenue to Sage Street or 4,260 feet north of East Broadway Avenue, 35 miles per hour.

East Forty-sixth Street, from East Aurora Avenue to East Broadway Avenue, 30 miles per hour.
(O.14,905)

Sec. 114-1281. Reserved.

Editor's note—Ord. No. 16,313, § 1, adopted Dec. 18, 2023, repealed § 114-1281, which pertained to Forty-eighth Street and derived from Code 1962, § 30-192; Ord. No. 8084; Code 1975; Code 1979, § 27-199; Code 1991, § 27-756; Ord. No. 11,650.

Sec. 114-1282. Fifty-fifth Street.

Fifty-fifth Street, from Brattleboro Avenue to Franklin Avenue, 30 miles per hour.
(C62, § 30-193; O.8084, 8572; C75, C79, § 27-200; C91, § 27-757; O.11,650, 14,437)

Sec. 114-1283. Fifty-sixth Street.

Fifty-sixth Street, from Ingersoll Avenue to Brattleboro Avenue, 30 miles per hour.
(C62, § 30-194; O.8084, 8204; C75, C79, § 27-201; C91, § 27-758; O.11,650, 14,437, 15,330, 16,370)

Sec. 114-1284. Southwest Fifty-sixth Street.

Southwest Fifty-sixth Street, from Park Avenue to Watrous Avenue, 30 miles per hour.

Southwest Fifty-sixth Street, from Watrous Avenue to Southwest McKinley Avenue, 35 miles per hour.

Southwest Fifty-sixth Street, from Southwest McKinley Avenue to Southwest Leland Avenue, 45 miles per hour.
(C85, § 27-201.1; O.11,302, 11,470; C91, § 27-759; O.11,650, 13,102, 14,437, 16,327)

Sec. 114-1284.01. East Fifty-sixth Street.

East Fifty-sixth Street, from south city limits lying south of East Oakhill Drive to north city limits, 45 miles per hour.

East Fifty-sixth Street, 30 miles per hour.
(O.14,905)

Sec. 114-1285. Sixty-third Street.

Sixty-third Street, from Vine Street to Grand Avenue, 40 miles per hour.

Sixty-third Street, from Grand Avenue to a point 200 feet south of University Avenue, 35 miles per hour.

Sixty-third Street, from a point 200 feet south of University Avenue to Hickman Road, 30 miles per hour.
(C62, § 30-195; O.8084; C75, § 27-202; O.9326; C79, § 27-202; O.10,401; C91, § 27-760; O.11,650, 13,295)

Sec. 114-1286. Southwest Sixty-third Street.

Southwest Sixty-third Street, from Vine Street to a point 1,000 feet south of Railroad Avenue, 40 miles per hour.

Southwest Sixty-third Street, from a point 1,000 feet south of Railroad Avenue to Iowa Highway 28, 50 miles per hour.

Southwest Sixty-third Street, from a point starting 4,311 feet north of Southwest Leland Avenue to Army Post Road, 40 miles per hour.
(C62, § 30-196; O.8084; C75, C79, § 27-203; O.10,401; C91, § 27-761; O.11,650, 13,295, 13,621, 15,242)

Sec. 114-1287. Army Post Road.

Army Post Road, from South Union Street to Southwest Ninth Street, 40 miles per hour.

Army Post Road, from Southwest Ninth Street to Fleur Drive, 35 miles per hour.

Army Post Road, from Fleur Drive to a point 300 feet west of Fleur Drive, 35 miles per hour.

Army Post Road, from a point 300 feet west of Fleur Drive to a point 300 feet west of Southwest Twenty-eighth Street, 45 miles per hour.

Army Post Road, from a point 300 feet west of Southwest Twenty-eighth Street to Iowa Highway 28, 50 miles per hour.
(C62, § 30-197; O.8084; C75, C79, C85, § 27-204; O.11,302; C91, § 27-762; O.11,650, 13,643, 13,948, 14,437, 15,330, 15,559)

Sec. 114-1288. East Army Post Road.

East Army Post Road, from South Union Street to a point 400 feet east of Southeast Fourteenth Street, 40 miles per hour.

East Army Post Road, from a point 400 feet east of Southeast Fourteenth Street to a point 200 feet east of Southeast Nineteenth Street, 45 miles per hour.

East Army Post Road, from a point 200 feet east of Southeast Nineteenth Street to a point 1,000 feet east of Indianola Avenue, 45 miles per hour.

East Army Post Road, from a point 1,000 feet east of Indianola Avenue to a point 3,500 feet east thereof, 50 miles per hour.

East Army Post Road, from a point 4,500 feet east of Indianola Avenue to the east city limits, 55 miles per hour.
(C62, § 30-198; O.8084; C75, C79, C85, § 27-205; O.11,470; C91, § 27-763; O.11,650, 13,658, 14,057, 14,437)

Sec. 114-1289. Ascension Street.

Ascension Street, from Sixth Avenue to Seventh Street, 30 miles per hour.
(C62, § 30-199; O.8084; C75, C79, § 27-206; C91, § 27-764; O.11,650)

Sec. 114-1290. Aurora Avenue.

Aurora Avenue, from First Street to Twelfth Street, 30 miles per hour.
(C62, § 30-199.01; O.8204, 8750; C75, C79, § 27-206.01; O.9759, 10,574; C91, § 27-765; O.11,650, 14,309, 14,354, 16,397)

Sec. 114-1291. East Aurora Avenue.

East Aurora Avenue, from First Street to Dixon Street, 30 miles per hour.
(C79, § 27-206.02; O.10,574; C91, § 27-766; O.11,650, 14,437)

Sec. 114-1292. Avenue Frederick M. Hubbell.

Avenue Frederick M. Hubbell, from East Grand Avenue to East University Avenue, 30 miles per hour.

Avenue Frederick M. Hubbell, from East University Avenue to East Thirtieth Street, 35 miles per hour.

Avenue Frederick M. Hubbell, from East Thirtieth Street to East Forty-third Court, 40 miles per hour.
(C62, § 30-200; O.8084; C75, C79, § 27-207; C91, § 27-767; O.11,650, 14,905)

Sec. 114-1293. Beaver Avenue.

Beaver Avenue, from Forest Avenue to Hickman Road, 30 miles per hour.

Beaver Avenue, from Urbandale Avenue to a point 300 feet north of Aurora Avenue, 30 miles per hour.

Beaver Avenue, from a point 300 feet north of Aurora Avenue to the north city limits, 35 miles per hour.
(C62, § 30-201; O.8084; C75, § 27-208; O.9607; C79, § 27-208; C91, § 27-768; O.11,650, 11,660)

Sec. 114-1294. Bell Avenue.

Bell Avenue, from Fleur Drive to Thomas Beck Road, 35 miles per hour.

Bell Avenue, from Fleur Drive to Southwest Thirtieth Street, 30 miles per hour.
(C62, § 30-202; O.8084, 8210; C75, C79, § 27-209; C91, § 27-769; O.11,650)

Sec. 114-1295. Bloomfield Road.

Bloomfield Road, from Southeast Fourteenth Street to Indianola Avenue, 40 miles per hour.
(C85, § 27-209.005; O.11,302; C91, § 27-770; O.11,650, 14,437)

Sec. 114-1295.01. Border Street.

Border Street, from Fleur Drive to Southwest Twenty-eighth Avenue, 45 miles per hour.
(O.14,905)

Sec. 114-1295.02. East Broadway Avenue.

East Broadway Avenue, from East Thirty-eight Street to Avenue Frederick M. Hubbell, 35 miles per hour.

East Broadway Avenue, from Avenue Frederick M. Hubbell to east city limits, 45 miles per hour.
(O.14,905, 16,311)

Sec. 114-1295.03. East Broadway Avenue Frontage Road.

East Broadway Avenue Frontage Road, from Hubbell Avenue Frontage Road to East Fiftieth Street, 30 miles per hour.
(O.14,905)

Sec. 114-1295.05. Southeast Brooks Drive.

Southeast Brooks Drive, from East Watrous Avenue to Evergreen Avenue, 30 miles per hour.
(O.14,905)

Sec. 114-1296. Reserved.

Editor's note—Ord. No. 15,242, § 1, adopted Dec. 9, 2013, repealed § 114-1296, which pertained to Browns Woods Drive and derived from Code 1991, § 27-770.01; Ord. No. 13,363.

Sec. 114-1297. Reserved.

Editor's note—Ord. No. 15,992, § 1, adopted March 22, 2021, repealed § 114-1297, which pertained to Carlisle Road and derived from Code 1991, § 27-770.05; Ord. No. 11,871; Ord. No. 14,437.

Sec. 114-1298. Reserved.

Editor's note—Ord. No. 14,437, § 1, adopted April 25, 2005, repealed § 114-1298, which pertained to Center Street and derived from Code 1962, § 30-202.02; Ord. No. 8615; Code 1975; Code 1979, § 27-209.01; Code 1991, § 27-771; Ord. No. 11,650; and Ord. No. 11,935.

Sec. 114-1299. Reserved.

Editor's note—Ord. No. 14,057, repealed § 114-1299 which pertained to Clifton Avenue and derived from Code 1991, § 27-771.05; Ord. No. 11663.

Sec. 114-1299.01. Reserved.

Editor's note—Ord. No. 15,355, § 1, adopted March 9, 2015, repealed § 114-1299.01, which pertained to Southwest Connector and derived from Ord. No. 15,242.

Sec. 114-1300. Cornell Street.

Cornell Street, from East Sheridan Avenue to the north city limits, 30 miles per hour.
(C62, § 30-202.01; O.8501, 8836; C75, C79, § 27-209.02; C91, § 27-772; O.11,650, 11,957)

Sec. 114-1301. Cottage Grove Avenue.

Cottage Grove Avenue, from Nineteenth Street to Twenty-fifth Street, 30 miles per hour.
(C62, § 30-203; O.8084, 8750, 8836; C75, C79, § 27-210; C91, § 27-773; O.11,650, 14,371)

Sec. 114-1302. County Line Road.

County Line Road, from South Union Street to Southwest Ninth Street, 35 miles per hour.

County Line Road, from Southwest Ninth Street to a point 300 feet west of Southwest Eleventh Street, 30 miles per hour.

County Line Road, from a point 300 feet west of Southwest Eleventh Street to Fleur Drive, 35 miles per hour.
(C62, § 30-203.01; O.8098, 8750; C75, C79, C85, § 27-211; O.11,302; C91, § 27-774; O.11,650, 11,722, 13,773, 14,855)

Sec. 114-1303. East County Line Road.

East County Line Road, from Southeast Fourteenth Street to Southridge Boulevard, 40 miles per hour.

East County Line Road, from Southeast Fifth Street to Southeast Fourteenth Street, 35 miles per hour.

East County Line Road, from South Union Street to Southeast Fifth Street, 35 miles per hour.
(C62, § 30-203.02; O.8098, 8750; C75, C79, C85, § 27-212; O.11,302, 11,470; C91, § 27-775; O.11,650, 11,722, 11,987, 13,773, 14,437, 14,982)

Sec. 114-1304. East Court Avenue.

East Court Avenue, from East First Street to East Seventh Street, 30 miles per hour.

East Court Avenue, from East Seventh Street to East Fourteenth Street, 35 miles per hour.

East Court Avenue, from East Fourteenth Street to East Eighteenth Street, 30 miles per hour.
(C62, § 30-204; O.8084, 8661; C75, § 27-213; O.9009; C79, § 27-213; C91, § 27-776; O.11,650)

Sec. 114-1305. Crocker Street.

Crocker Street, from Fifteenth Street to Nineteenth Street, 30 miles per hour.
(C62, § 30-205; O.8084; Repealed by O.8750; Reenacted by O.8850; C75, C79, § 27-214; C91, § 27-777; O.11,650, 11,660)

Sec. 114-1306. Dean Avenue.

Dean Avenue, from Redhead Road to East Thirty-first Street, 30 miles per hour.

Dean Avenue, from East Thirty-first Street to east city limits, 35 miles per hour.
(C62, § 30-206; O.8084, 8750; C75, § 27-215; O.9027; C79, § 27-215; C91, § 27-778; O.11,650, 11,722, 13,375)

Sec. 114-1307. Delaware Avenue.

Delaware Avenue, from Easton Boulevard to East Euclid Avenue, 30 miles per hour.

Delaware Avenue, from East Euclid Avenue to the north city limits, 35 miles per hour.
(C62, § 30-207; O.8084, 8098; C75, C79, § 27-216; C91, § 27-779; O.11,650)

Sec. 114-1308. Dixon Street.

Dixon Street, from Guthrie Avenue to East Aurora Avenue, 30 miles per hour.
(C62, § 30-207.01; O.8661; C75, § 27-216.01; O.9295; C79, § 27-216.01; C91, § 27-780; O.11,650, 11,688)

Sec. 114-1309. Douglas Avenue.

Douglas Avenue, from Euclid Avenue to the west city limits, 35 miles per hour.
(C62, § 30-208; O.8084; C75, C79, § 27-217; C91, § 27-781; O.11,650)

Sec. 114-1310. East Douglas Avenue.

East Douglas Avenue, from East Forty-second Street to a point 200 feet east of East Forty-third Court, 30 miles per hour.

East Douglas Avenue, from a point 200 feet east of East Forty-third Court to the east city limits, 35 miles per hour.
(C91, § 27-781.05; O.13,043, 15,363)

Sec. 114-1311. Easter Lake Drive.

Easter Lake Drive, from Indianola Avenue to Southeast Thirty-fourth Street, 35 miles per hour.

Easter Lake Drive, from Southeast Thirty-fourth Street to Southeast Thirty-sixth Street, 40 miles per hour.
(C85, § 27-217.1; O.11,302, 11,470; C91, § 27-782; O.11,650, 13,539, 13,658, 14,437)

Sec. 114-1312. Easton Boulevard.

Easton Boulevard, from East University Avenue to the east city limits, 30 miles per hour.
(C62, § 30-209; O.8084, 8750; C75, C79, § 27-218; C91, § 27-783; O.11,650, 11,722, 16,148)

Sec. 114-1312.05. Echo Valley Drive.

Echo Valley Drive, from Fleur Drive to a point 2,500 feet west of Fleur Drive, 40 miles per hour.

Echo Valley Drive, from a point 2,500 feet west of Fleur Drive to the west city limits, 50 miles per hour.
(O.14,855)

Sec. 114-1313. Euclid Avenue.

Euclid Avenue, from a point 225 feet west of Twelfth Street, to First Street, 30 miles per hour.

Euclid Avenue, from Douglas Avenue to a point 225 feet west of Twelfth Street, 35 miles per hour.

Euclid Avenue, from Thirtieth Street to Douglas Avenue, 30 miles per hour.
(C62, § 30-210; O.8084, 8615; C75, C79, C85, § 27-219; O.10,791; C91, § 27-784; O.11,650, 11,688, 14,855)

Sec. 114-1314. East Euclid Avenue.

East Euclid Avenue, from First Street to a point 150 feet east of Columbia Street, 30 miles per hour.

East Euclid Avenue, from a point 150 feet east of Columbia Street to East Twenty-ninth Street, 35 miles per hour.

East Euclid Avenue, from East Twenty-ninth Street to Avenue Frederick M. Hubbell, 40 miles per hour.
(C62, § 30-211; O.8084; C75, C79, C85, § 27-220; O.10,791, 11,530; C91, § 27-785; O.11,650, 11,688, 14,855)

Sec. 114-1314.05. Evergreen Avenue.

Evergreen Avenue, from Indianola Avenue to East Marion Street, 30 miles per hour.

Evergreen Avenue, from East Watrous Avenue to Southeast Thirty-fourth Street, 35 miles per hour.

Evergreen Avenue, from Southeast Brooks Drive to Southeast Fortieth Street, 30 miles per hour.

Evergreen Avenue, from Southeast Fortieth Street to Southeast Forty-fifth Street, 40 miles per hour.
(O.14,905, 15,367)

Sec. 114-1315. Fleur Drive.

Fleur Drive, from Locust Street southwesterly including the north bound and south bound ramp systems to its reconnection with the north-south bound Fleur Drive, 30 miles per hour.

Fleur Drive, from West Martin Luther King Jr Parkway to Army Post Road, 35 miles per hour.

Fleur Drive, from Army Post Road to Border Street, 40 miles per hour.
(C62, § 30-212; O.8084, 8700, 8750; C75, C79, § 27-221; C91, § 27-786; O.11,650, 14,418, 14,905, 16,313)

Sec. 114-1316. Reserved.

Editor's note—Ord. No. 15,355, § 1, adopted March 9, 2015, repealed § 114-1316, which pertained to Evergreen Avenue and derived from Code 1979, § 27-221.01; Ord. No. 10,264; Code 1985, § 27-221.01; Ord. No. 11,302; Code 1991, § 27-787; Ord. No. 11,650; Ord. No. 14,057; Ord. No. 14,437.

Sec. 114-1317. Forest Avenue.

Forest Avenue, from Nineteenth Street to Forty-first Street, 30 miles per hour.
(C62, § 27-213; O.8084, 8615; C75, C79, § 27-222; C91, § 27-788; O.11,650)

Sec. 114-1318. Franklin Avenue.

Franklin Avenue, from Merle Hay Road to Sixty-third Street, 30 miles per hour.
(C62, § 30-214; O.8084, 8750; C75, C79, § 27-223; O.9628, 10,099; C91, § 27-789; O.11,650, 13,122, 15,910, 16,255)

Sec. 114-1318.01. George Flagg Parkway.

George Flagg Parkway, from Fleur Drive to Southwest Thirtieth Street, 35 miles per hour.

George Flagg Parkway, from Southwest Thirtieth Street to Park Avenue, 40 miles per hour.
(O.14,080)

Sec. 114-1319. Grand Avenue.

Grand Avenue, from a point 950 feet west of Nineteenth Street to Fifty-sixth Street, 30 miles per hour.

Grand Avenue, from Fifty-sixth Street to the west city limits, 35 miles per hour.
(C62, § 30-215; O.8084, 8750, 8776; C75, C79, C85, § 27-224; O.11,279, 11,382, 11,436; C91, § 27-790; O.11,650, 11,660, 15,456)

Sec. 114-1320. East Grand Avenue.

East Grand Avenue, from Pennsylvania Avenue to East Thirtieth Street, 30 miles per hour.
(C62, § 30-216; O.8084, 8204; C75, C79, § 27-225; C91, § 27-791; O.11,650)

Sec. 114-1321. Guthrie Avenue.

Guthrie Avenue, from East Seventeenth Street to a point 380 feet west of East Twenty-third Street, 35 miles per hour.

Guthrie Avenue, from a point 380 feet west of East Twenty-third Street to Avenue Frederick M. Hubbell, 30 miles per hour.
(C62, § 30-217; O.8084; C75, § 27-226; O.9513; C79, § 27-226; O.10,680; C91, § 27-792; O.11,650)

Sec. 114-1321.05. Hart Avenue.

Hart Avenue, from Southeast Thirty-sixth Street to Southeast Forty-fifth Street, 50 miles per hour.
(O.14,905)

Sec. 114-1322. Hartford Avenue.

Hartford Avenue, from Indianola Avenue to Southeast Fourteenth Street, 30 miles per hour.

Hartford Avenue, from Southeast Fourteenth Street to Southeast Twenty-second Street, 40 miles per hour.
(C75, § 27-227.01; O.9325; C79, § 27-227.01; C91, § 27-794; O.11,650, 13,387, 14,437)

Sec. 114-1323. Hickman Road.

Hickman Road, from Sixth Avenue to Thirtieth Street, 35 miles per hour.

Hickman Road, from Thirtieth Street to Merle Hay Road, 30 miles per hour.

Hickman Road, from Merle Hay Road to west city limits, 35 miles per hour.
(C62, § 30-219; O.8084, 8098, 8262, 8750; C75, C79, C85, § 27-228; O.11,382; C91, § 27-795; O.11,650, 11,660, 14,580)

Sec. 114-1323.01. Hubbell Avenue.

Hubbell Avenue, from 700 feet northeast of East Forty-second Street to northeasterly city limits, 45 miles per hour.
(O.14,905, 15,456)

Sec. 114-1323.02. Hubbell Avenue Frontage Road.

Hubbell Avenue Frontage Road, from a point 750 feet northeasterly of East Forty-sixth Street to East Broadway Avenue Frontage Road, 30 miles per hour.
(O.14,905)

Sec. 114-1324. Reserved.

Editor's note—Ord. No. 16,241, § 1, adopted April 24, 2023, repealed § 114-1324, which pertained to Hull Avenue and derived from Code 1962, § 30-219.01; Ord. No. 8204; Code 1975; Code 1979, § 27-228.01; Code 1991, § 27-796; Ord. No. 11,650.

Sec. 114-1325. Reserved.

Editor's note—Ord. No. 14,057, repealed § 114-1325 which pertained to Indianola Avenue and derived from Code 1962, § 30-220; Ord. No. 8084; Ord. No. 8262; Ord. No. 8750; Code 1975, Code 1979; Code 1985, § 27-229; Ord. No. 10,951; Code 1991, § 27-797; Ord. No. 11,650.

Sec. 114-1326. Indianola Avenue.

Indianola Avenue, from Jackson Avenue to a point 1,000 feet south of Marion Street, 35 miles per hour.

Indianola Avenue, from a point 1,000 feet south of Marion Street to East Army Post Road, 40 miles per hour.

Indianola Avenue, from East Army Post Road to East Pine Avenue, 45 miles per hour.

Indianola Avenue, from East Pine Avenue to US Highway 69, 35 miles per hour.
(C62, § 30-220.01; O.8750; C75, § 27-229.01; O.9308; C79, C85, § 27-229.01; O.11,279, 11,302, 11,382; C91, § 27-798; O.11,650, 11,722, 13,658, 14,437, 14,846)

Sec. 114-1326.01. Indianola Road.

Indianola Road, from Southwest Ninth Street to Southwest Seventh Street, 35 miles per hour.

Indianola Road, from Southwest Seventh Street to a point 300 feet west of Southwest First Street, 30 miles per hour.
(O.14,057, 14,437)

Sec. 114-1327. Reserved.

Editor's note—Ord. No. 16,546, § 1, adopted April 6, 2026, repealed § 114-1327, which pertained to Ingersoll Avenue and derived from Code 1962, § 30-221; Ord. No. 8084; Code 1975; Code 1979, § 27-230; Code 1991, § 27-799; Ord. No. 11,650; Ord. No. 16,081; Ord. No. 16,299.

Sec. 114-1328. Interstate 235 (Des Moines Freeway).

On the following portion of Interstate 235, any speed in excess of 55 miles per hour shall be unlawful when official signs are erected giving notice of the authorized speed: from a point 100 feet west of Thirty-first Street (Mile Post 6.21) to a point 2,475 feet south of Guthrie Avenue (Mile Post 10.88).

On the following portion of Interstate 235, any speed in excess of 60 miles per hour shall be unlawful when official signs are erected giving notice of the authorized speed: from the west city limit to a point 100 feet west of Thirty-first Street (Mile Post 6.21) and from a point 2,475 feet south of Guthrie Avenue (Mile Post 10.88) to the north city limit.

On all portions of Interstate 235, any speed less than 40 miles per hour, road conditions permitting, shall be unlawful when official signs are erected giving notice of the authorized speed.
(C62, § 30-222; O.8084; C75, C79, § 27-231; O.9684; C91, § 27-800; O.11,650, 14,753)

Sec. 114-1329. Iowa Highway 28.

Iowa Highway 28, from Southwest McKinley Avenue to south city limits, 50 miles per hour.
(C91, § 27-800.05; O.13,268, 14,437)

Sec. 114-1329.01. Iowa Highway 5.

Iowa Highway 5, from the west city corporate limits to the east city corporate limits, 65 miles per hour.
(O.14,437)

Sec. 114-1329.05. Johnson Court.

Johnson Court, beginning at its south connection with East Fourteenth Street and extending northeast to Dean Avenue, 35 miles per hour.

Johnson Court, beginning at Maple Street and extending northwest to its connection with East Fourteenth Street, 35 miles per hour.
(O.14,437)

Sec. 114-1330. Keosauqua Way.

Keosauqua Way, from Interstate 235 to Nineteenth Street, 35 miles per hour.
(C62, § 30-223; O.8084, 8615; C75, C79, § 27-232; O.10,044; C91, § 27-801; O.11,650, 15,301, 16,370)

Sec. 114-1331. Reserved.

Editor's note—Ord. No. 14,371, § 1, adopted Sept. 13, 2004, repealed § 114-1331 which pertained to Kingman Boulevard and derived from Code 1962, § 30-224; Ord. No. 8084; Code 1975 and Code 1979, § 27-233; Code 1991, § 27-802; and Ord. No. 11,650.

Sec. 114-1332. Lower Beaver Road.

Lower Beaver Road, from Douglas Avenue to Fleming Avenue, 30 miles per hour.

Lower Beaver Road, from Shawnee Place to the north city limits, 30 miles per hour.
(C62, § 30-225; O.8084, 8750; C75, C79, § 27-234; C91, § 27-803; O.11,650)

Sec. 114-1333. Madison Avenue.

Madison Avenue, from Beaver Road to Merle Hay Road, 30 miles per hour.
(C79, § 27-234.01; O.10,175; C91, § 27-804; O.11,650, 13,122, 13,833, 14,388)

Sec. 114-1334. East Market Street.

East Market Street, from Southeast Eighteenth Street to Southeast Twenty-fourth Court, 30 miles per hour.
(C62, § 30-226; O.8084; C75, C79, § 27-235; C91, § 27-805; O.11,650)

Sec. 114-1335. Martin Luther King Jr Parkway.

Martin Luther King Jr Parkway, from West Martin Luther King Jr Parkway to Interstate 235, 35 miles per hour.

Martin Luther King Jr Parkway, from Interstate 235 to Hickman Road, 30 miles per hour.

Martin Luther King Jr Parkway, from Hickman Road to Euclid Avenue, 35 miles per hour.

Martin Luther King Jr Parkway, from Euclid Avenue Lynner Drive, 30 miles per hour.
(C62, § 30-218; O.8084, 8750, 8836; C75, C79, § 27-227; O.10,057; C91, § 27-793; O.11,650; C91, § 27-805.01; O.11,935, 14,418, 14,939, 15,624, 16,313)

Sec. 114-1335.01. East Martin Luther King Jr Parkway.

East Martin Luther King Jr Parkway, from the center of Des Moines River to Southeast Thirtieth Street, 35 miles per hour.
(O.14,982, 15,387, 15,466)

Sec. 114-1336. Maury Street.

Maury Street, from Southeast Sixth Street to Southeast Fourteenth Street, 30 miles per hour.

Maury Street, from Southeast Fourteenth Street to Southeast Twenty-fourth Street, 35 miles per hour.

Maury Street, from Southeast Twenty-fourth Street to Southeast Twenty-eighth Street, 30 miles per hour.
(C62, § 30-226.01; O.8510; C75, C79, § 27-235.01; O.9976, 10,574; C91, § 27-806; O.11,650, 15,466)

Sec. 114-1337. McKinley Avenue.

McKinley Avenue, from South Union Street to Southwest Forty-second Street, 30 miles per hour.
(C62, § 30-227; O.8084, 8750; C75, C79, § 27-236; O.10,042; C91, § 27-808; O.11,650, 14,339)

Sec. 114-1338. East McKinley Avenue.

East McKinley Avenue, from South Union Street to Southeast Fourteenth Street, 30 miles per hour.

East McKinley Avenue, from Southeast Fourteenth Street to Indianola Avenue, 30 miles per hour.
(C62, § 30-228; O.8084; C75, § 27-237; O.9308; C79, C85, § 27-237; O.11,302; C91, § 27-809; O.11,650, 14,437)

Sec. 114-1339. Southwest McKinley Avenue.

Southwest McKinley Avenue, from Southwest Forty-second Street to Southwest Forty-sixth Street, 45 miles per hour.

Southwest McKinley Avenue, from Southwest Forty-sixth Street to a point 1,000 feet east of Iowa Highway 28, 35 miles per hour.

Southwest McKinley Avenue, from a point 1,000 feet east of Iowa Highway 28 to Iowa Highway 28, 30 miles per hour.
(C85, § 27-237.1; O.11,302, 11,470; C91, § 27-810; O.11,650, 13,363, 15,966)

Sec. 114-1339.05. Meredith Drive.

Meredith Drive, from Beaver Avenue to Merle Hay Road, 35 miles per hour.
(O.14,437)

Sec. 114-1340. Merklin Way.

Merklin Way, from Hickman Road to Franklin Avenue, 30 miles per hour.
(C62, § 30-229; O.8084, 8750; C75, C79, § 27-238; C91, § 27-811; O.11,650, 13,122)

Sec. 114-1341. Merle Hay Road.

Merle Hay Road, from University Avenue to Hickman Road, 30 miles per hour.

Merle Hay Road, from Hickman Road to the north city limits, 35 miles per hour.
(C62, § 30-230; O.8084, 8204, 8750; C75, C79, § 27-239; C91, § 27-812; O.11,650, 13,122)

Sec. 114-1342. East Merle Hay Frontage Road.

East Merle Hay Frontage Road, from a point 1,300 feet north of Aurora Avenue to the north city limits, 30 miles per hour.
(C62, § 30-230.01; O.8100; C75, C79, § 27-240; C91, § 27-813; O.11,650)

Sec. 114-1342.05. East Oakhill Drive.

East Oakhill Drive, from Northeast Twenty-seventh Avenue to East Fifty-sixth Street, 30 miles per hour.
(O.14,905)

Sec. 114-1343. Park Avenue.

Park Avenue, from South Union Street to George Flagg Parkway, 30 miles per hour.

Park Avenue, from George Flagg Parkway to Southwest Sixty-third Street, 35 miles per hour.
(C62, § 30-231; O.8084, 8683, 8750; C75, § 27-241; O.9190, 9331; C79, § 27-241; O.9628; C85, § 27-241; O.11,279; C91, § 27-814; O.11,650, 11,722, 11,957, 13,951, 14,080, 15,210)

Sec. 114-1344. East Park Avenue.

East Park Avenue, from South Union Street to Southeast Eighth Street, 30 miles per hour.

East Park Avenue, from Southeast Fourteenth Street to Southeast Twenty-second Street, 30 miles per hour.
(C62, § 30-232; O.8084, 8750; C75, C79, § 27-242; O.9741; C91, § 27-815; O.11,650)

Sec. 114-1345. East Payton Avenue.

East Payton Avenue, from Indianola Avenue to Southeast Thirty-sixth Street, 40 miles per hour.
(C85, § 27-242.1; O.11,302, 11,470; C91, § 27-816; O.11,650, 13,539, 14,437)

Sec. 114-1346. Pennsylvania Avenue.

Pennsylvania Avenue, from East Grand Avenue to East Washington Avenue, 30 miles per hour.

Pennsylvania Avenue, from East Washington Avenue to Saylor Road, 30 miles per hour.
(C62, § 30-233; O.8084, 8501; C75, C79, § 27-243; C91, § 27-817; O.11,650, 14,437)

Sec. 114-1347. East Pine Avenue.

East Pine Avenue, from Indianola Avenue to Southeast

Forty-fifth Street, 40 miles per hour.
(C85, § 27-243.1; O.11,302, 11,470; C91, § 27-818; O.11,650, 13,658, 14,437, 14,905)

Sec. 114-1348. Southwest Pine Avenue.

Southwest Pine Avenue, from Iowa Highway 28 to west city limits, 35 miles per hour.
(C85, § 27-243.2; O.11,470; C91, § 27-819; O.11,650, 13,874)

Sec. 114-1349. Polk Boulevard.

Polk Boulevard, from Grand Avenue to University Avenue, 30 miles per hour.
(C62, § 30-234; O.8084, 8750; C75, C79, § 27-244; O.9759; C91, § 27-820; O.11,650)

Sec. 114-1350. Reserved.

Editor's note—Ord. No. 14,437, § 1, adopted April 25, 2005, repealed § 114-1350, which pertained to Riverside Drive and derived from Code 1979, § 27-244.01; Ord. No. 9866; Code 1991, § 27-821; and Ord. No. 11,650.

Sec. 114-1351. Redhead Road.

Redhead Road, from East Court Avenue to Dean Avenue, 30 miles per hour.
(C62, § 30-235; O.8084; C75, C79, § 27-245; C91, § 27-822; O.11,650)

Sec. 114-1352. Reserved.

Editor's note—Ord. No. 14,437, § 1, adopted April 25, 2005, repealed § 114-1352, which pertained to East River Drive and derived from Code 1962, § 30-235.01; Ord. No. 8204; Code 1975; Code 1979, § 27-245.01; Code 1991, § 27-823; and Ord. No. 11,650.

Sec. 114-1353. Reserved.

Editor's note—Ord. No. 15,881, § 1, adopted April 20, 2020, repealed § 114-1353, which pertained to West River Drive and derived from Code 1962, § 30-235.02; Ord. No. 8204; Code 1975; Code 1979, § 27-245.02; Code 1991, § 27-824; Ord. No. 11,650; Ord. No. 14,437.

Sec. 114-1353.05. Reserved.

Editor's note—Ord. No. 15,372, § 1, adopted June 8, 2015, repealed § 114-1353.05, which pertained to Robert D Ray Drive and derived from Ord. No. 14,437.

Sec. 114-1354. Saylor Road.

Saylor Road, from Cherokee Avenue to East Sheridan Avenue, 30 miles per hour.
(C62, § 30-235.03; O.8501; C75, C79, § 27-245.03; C91, § 27-825; O.11,650, 14,437)

Sec. 114-1355. Scott Avenue.

Scott Avenue, from Southeast First Street to Southeast Twenty-second Street, 30 miles per hour.

Scott Avenue, from Southeast Thirty-sixth Street to the east city limits, 35 miles per hour.
(C75, § 27-245.04; O.9035; C79, § 27-245.04; C91, § 27-826; O.11,650, 13,076, 13,282)

Sec. 114-1355.05. Southridge Boulevard.

Southridge Boulevard, from Southeast Fourteenth Street to Southeast Twenty-sixth Street, 55 miles per hour.

Southridge Boulevard, from Southeast Twenty-sixth Street to south city limits, 65 miles per hour.
(O.14,905, 14,982)

Sec. 114-1356. South Union Street.

South Union Street, from Hartford Avenue to Watrous Avenue, 30 miles per hour.

South Union Street, from East Maxwelton Drive to Kenyon Avenue, 30 miles per hour.

South Union Street, from East Diehl Avenue to Army Post Road, 30 miles per hour.
(C79, § 27-245.05; O.10,359; C91, § 27-827; O.11,650, 14,437)

Sec. 114-1357. Thomas Beck Road.

Thomas Beck Road, from Indianola Road to Bell Avenue, 35 miles per hour.
(C62, § 30-236; O.8084; C75, C79, § 27-246; C91, § 27-828; O.11,650, 11,663, 14,057)

Sec. 114-1357.5. Thornton Avenue.

Thornton Avenue, from Southwest Fifty-sixth Street to Southwest Sixty-third Street, 30 miles per hour.
(O.13,698)

Sec. 114-1358. University Avenue.

University Avenue, from Maine Street to Fourth Street, 35 miles per hour.

University Avenue, from Fourth Street to Twenty-fifth Street, 30 miles per hour.

University Avenue, from Twenty-fifth Street to Thirty-first Street, 25 miles per hour.

University Avenue, from Thirty-first Street to the entrance to Waveland Park Golf Course, 30 miles per hour.

University Avenue, from the entrance to the Waveland Park Golf Course to Fifty-fifth Street, 35 miles per hour.

University Avenue, from Fifty-fifth Street to Sixty-third Street, 30 miles per hour.
(C62, § 30-237; O.8084, 8750; C75, C79, § 27-247; O.9628, 9741; C91, § 27-829; O.11,650, 11,660, 15,934)

Sec. 114-1359. East University Avenue.

East University Avenue, from Maine Street to East Thirty-seventh Street, 35 miles per hour.

East University Avenue, from East Thirty-seventh Street to the east city limits, 40 miles per hour.
(C62, § 30-238; O.8084; C75, C79, § 27-248; C91, § 27-830; O.11,650, 13,384)

Sec. 114-1360. Urbandale Avenue.

Urbandale Avenue, from Martin Luther King Jr Parkway to Thirtieth Street, 30 miles per hour.

Urbandale Avenue, from Thirty-fifth Street to the west city limits, 30 miles per hour.
(C62, § 30-239; O.8084; C75, § 27-249; O.9009; C79, § 27-249; O.9640; C91, § 27-831; O.11,650, 11,935)

Sec. 114-1361. Reserved.

Editor's note—Ord. No. 14,982, § 1, adopted Dec. 20, 2010, repealed § 114-1361 which pertained to U.S. Highway 69 and derived from Code 1985, § 27-249; Ord. No. 11,302; Code 1991, § 27-832; Ord. No. 11,650; Ord. No. 14,437; Ord. No. 14,905.

Sec. 114-1362. Reserved.

Editor's note—Ord. No. 14,080, § 1, adopted April 22, 2002, repealed § 114-1362 which pertained to Valley Drive and derived from Code 1962, § 30-240; Ord. No. 8084; Code 1975 and Code 1979, § 27-250; Code 1991, § 27-833; and Ord. No. 11,650.

Sec. 114-1363. Vandalia Road.

Vandalia Road, from Southeast Thirtieth Street to a point 1,600 feet south of East Granger Street, 35 miles per hour.

Vandalia Road, from a point 1,600 feet south of East Granger Street to Southeast Forty-third Street, 45 miles per hour.
(C62, § 30-241; O.8084; C75, C79, § 27-251; O.9770; C91, § 27-834; O.11,650)

Sec. 114-1363.01. Veterans Parkway.

Veterans Parkway, from Iowa Highway 28 to west city limits, 35 miles per hour.
(O.15,355)

Sec. 114-1364. East Walnut Street.

East Walnut Street, from East Fourteenth Street to East Thirtieth Street, 30 miles per hour.
(C62, § 30-242; O.8084, 8750; C75, C79, § 27-252; C91, § 27-835; O.11,650, 13,122)

Sec. 114-1365. East Washington Avenue.

East Washington Avenue, from East Fourteenth Street to Wayne Street, 30 miles per hour.
(C75, § 27-252.01; O.9219; C79, § 27-252.01; C91, § 27-836; O.11,650)

Sec. 114-1365.05. Reserved.

Editor's note—Ord. No. 15,355, § 1, adopted March 9, 2015, repealed § 114-1365.05, which pertained to Southwest Water Street and derived from Ord. No. 14,437.

Sec. 114-1366. Watrous Avenue.

Watrous Avenue, from South Union Street to Southwest Twelfth Street, 30 miles per hour.

Watrous Avenue, from Southwest Thirteenth Street to Fleur Drive, 30 miles per hour.
(C62, § 30-243; O.8084; C75, § 27-253; O.9106; C79, C85, § 27-253; O.11,293; C91, § 27-837; O.11,650, 14,437)

Sec. 114-1367. East Watrous Avenue.

East Watrous Avenue, from South Union Street to Indianola Avenue, 30 miles per hour.

East Watrous Avenue, from East Marion Street to Evergreen Avenue, 35 miles per hour.

East Watrous Avenue, from Southeast Thirty-Fourth Street to Southeast Brooks Drive, 30 miles per hour.
(C62, § 30-244; O.8084; C75, C79, C85, § 27-254; O.11,256; C91, § 27-838; O.11,650, 14,437, 15,367, 16,546)

Sec. 114-1367.05. West Martin Luther King Jr Parkway.

West Martin Luther King Jr Parkway, from the center of Des Moines River to Martin Luther King Jr Parkway, 35 miles per hour.
(O.14,418, 14,982)

Sec. 114-1368. Williams Street.

Williams Street, from Dean Avenue to Williams Court, 30 miles per hour.
(C79, § 27-254.01; O.9957, 9994; C91, § 27-839; O.11,650, 13,691, 14,437, 16,045)

Sec. 114-1368.01. Williams Court.

Williams Court, from Williams Street to East Forty-second Street, 30 miles per hour.
(O.14,437, 16,045)

Sec. 114-1368.05. Willow Creek Avenue.

Willow Creek Avenue, from Southwest Forty-second Street to Iowa 28, 40 miles per hour.

Willow Creek Avenue, from Iowa 28 to west city limits, 45 miles per hour.
(O.15,559)

Secs. 114-1369—114-1395. Reserved.

DIVISION 3. TRAFFIC CONTROL

Subdivision I. In General

Secs. 114-1396—114-1420. Reserved.

Subdivision II. Devices at Intersections

Sec. 114-1421. Designated.

As provided in and in accordance with section 114-256.01 of this chapter, the intersections designated in the following sections of this subdivision are designated as traffic control intersections with devices to be installed as indicated, and drivers of vehicles shall obey the traffic control devices placed at such intersections.

Sec. 114-1422. Reserved.

Editor's note—Ord. No. 14,428, § 1, adopted April 11, 2005, repealed § 114-1422, which pertained to Adams Avenue and derived from Code 1962, § 30-36; Ord. No. 8084; Code 1975; Code 1979, § 27-40; Code 1991, § 27-840; and Ord. No. 11,650.

Sec. 114-1423. Arlington Avenue.

Arlington Avenue and Sixth Avenue, traffic control signal.
(C62, § 30-37; O.8084; C75, C79, § 27-41; C91, § 27-841; O.11,650)

Sec. 114-1424. Army Post Road.

Army Post Road and South Union Street, traffic control signal.

Army Post Road and Southwest Ninth Street, traffic control signal.

Army Post Road and Southwest Fourteenth Street, traffic control signal.

Army Post Road and Fleur Drive, traffic control signal.

Army Post Road and Southwest Twenty-eighth Street, traffic control signal.

Army Post Road and Southwest Thirty-fourth Street, traffic control signal.

Army Post Road and Southwest Forty-second Street, traffic control signal.

Army Post Road and Iowa Highway 28, traffic control signal.
(C62, § 30-38; O.8084; C75, C79, C85, § 27-42; O.11,063, 11,302; C91, § 27-842; O.11,650, 13,268, 13,643, 13,647, 14,428)

Sec. 114-1424.01. Reserved.

Editor's note—Ord. No. 15,559, § 1, adopted Feb. 20, 2017, repealed § 114-1424.01, which pertained to Old Army Post Road and derived from Ord. No. 14,428.

Sec. 114-1425. East Army Post Road.

East Army Post Road and Southeast Third Street, traffic control signal.

East Army Post Road and Southeast Fifth Street, traffic control signal.

East Army Post Road and Southeast Fourteenth Street, traffic control signal.

East Army Post Road and Indianola Avenue, traffic control signal.
(C62, § 30-38.01; O.8226; C75, § 27-42.01; O.9581; C79, § 27-42.01; C91, § 27-843; O.11,650, 14,428, 14,982)

Sec. 114-1426. Aurora Avenue.

Aurora Avenue and Beaver Avenue, traffic control signal.

Aurora Avenue and Merle Hay Road, traffic control signal.

Aurora Avenue and Second Avenue, traffic control signal.
(C62, § 30-39; O.8084; C75, C79, § 27-43; C91, § 27-844; O.11,650, 14,542, 15,203)

Sec. 114-1426.01. East Aurora Avenue.

East Aurora Avenue and East Fourteenth Street, traffic control signal.
(O.14,428)

Sec. 114-1427. Avenue Frederick M. Hubbell.

Avenue Frederick M. Hubbell and East Grand Avenue and East Eighteenth Street, traffic control signal.

Avenue Frederick M. Hubbell and East University Avenue, traffic control signal.

Avenue Frederick M. Hubbell and Easton Boulevard, traffic control signal.

Avenue Frederick M. Hubbell and Guthrie Avenue, traffic control signal.

Avenue Frederick M. Hubbell and East Twenty-ninth Street, traffic control signal.

Avenue Frederick M. Hubbell and East Thirty-third Street, traffic control signal.

Avenue Frederick M. Hubbell and East Euclid Avenue, traffic control signal.

Avenue Frederick M. Hubbell and East Douglas Avenue (west leg), traffic control signal.

Avenue Frederick M. Hubbell and East Douglas Avenue (east leg), traffic control signal.

Avenue Frederick M. Hubbell and East Forty-second Street, traffic control signal.

Avenue Frederick M. Hubbell and East Forty-sixth Street, traffic control signal.
(C62, § 30-40; O.8084, 8394; C75, C79, § 27-44; C91, § 27-845; O.11,650, 14,428, 14,542, 15,687, 15,707, 15,881)

Sec. 114-1428. Beaver Avenue.

Beaver Avenue and Franklin Avenue, traffic control signal.

Beaver Avenue and Hickman Road, traffic control signal.

Beaver Avenue and Urbandale Avenue, traffic control signal.

Beaver Avenue and Douglas Avenue, traffic control signal.

Beaver Avenue and Madison Avenue, traffic control signal.
(C62, § 30-41; O.8084; C75, C79, § 27-45; O.10,323; C91, § 27-846; O.11,650, 14,428)

Sec. 114-1429. Bell Avenue.

Bell Avenue and Southwest Ninth Street, traffic control signal.

Bell Avenue and Fleur Drive, traffic control signal.
(C62, § 30-42; O.8084; C75, C79, § 27-46; O.10,441; C91, § 27-847; O.11,650)

Sec. 114-1429.01. East Bell Avenue.

East Bell Avenue and Southeast Fourteenth Street, traffic control signal.
(O.14,428)

Sec. 114-1429.02. East Broadway Avenue.

East Broadway Avenue and Hubbell Avenue, traffic control signal.
(O.14,905)

Sec. 114-1430. Carpenter Avenue.

Carpenter Avenue and Nineteenth Street, traffic control signal.

Carpenter Avenue and Martin Luther King Jr Parkway, traffic control signal.
(C62, § 30-44; O.8084; C75, C79, § 27-48; C91, § 27-848; O.11,650, 11,935)

Sec. 114-1431. Center Street.

Center Street and Fifth Avenue, traffic control signal.

Center Street and Sixth Avenue, traffic control signal.

Center Street and Seventh Street, traffic control signal.

Center Street and Ninth Street, traffic control signal.

Center Street and Polk Boulevard, traffic control signal.
(C62, § 30-44.02; O.8226; C75, C79, § 27-48.01; C91, § 27-849; O.11,650, 12,042, 14,428)

Sec. 114-1432. Reserved.

Editor's note—Ord. No. 14,428, § 1, adopted April 11, 2005, repealed § 114-1432, which pertained to Chamberlain Avenue and derived from Code 1962, § 30-44.01; Ord. No. 8084; Code 1975; Code 1979, § 27-49; Code 1991, § 27-850; and Ord. No. 11,650.

Sec. 114-1432.05. Cherry Street.

Cherry Street and Fifth Avenue, traffic control signal.

Cherry Street and Sixth Avenue, traffic control signal.

Cherry Street and Seventh Street, traffic control signal.

Cherry Street and Twelfth Street, traffic control signal.
(O.13,773, 14,428, 15,943)

Sec. 114-1433. Clark Street.

Clark Street and Nineteenth Street, traffic control signal.

Clark Street and Martin Luther King Jr Parkway, traffic control signal.
(C62, § 30-45; O.8084, 8758; C75, C79, § 27-50; C91, § 27-851; O.11,650, 11,935)

Sec. 114-1434. Cleveland Avenue.

Cleveland Avenue and East Fourteenth Street, school signal.
(C62, § 30-46; O.8084, 8226; C75, C79, § 27-51; C91, § 27-852; O.11,650, 15,021)

Sec. 114-1435. Reserved.

Editor's note—Ord. No. 14,057, repealed § 114-1435 which pertained to Clifton Avenue and derived from Code 1962, § 30-47; Ord. No. 8084; Code 1975, Code 1979, § 27-52; Code 1991, § 27-853; Ord. No. 11,650.

Sec. 114-1436. College Avenue.

College Avenue and Second Avenue, traffic control signal.

College Avenue and Sixth Avenue, traffic control signal.
(C62 § 30-48; O.8084; C75, C79, § 27-53; C91, § 27-854; O.11,650, 14,428)

Sec. 114-1437. Cornell Street.

Cornell Street and East Euclid Avenue, traffic control signal.
(C62, § 30-49; O.8084; C75, C79, § 27-54; C91, § 27-855; O.11,650)

Sec. 114-1438. Cottage Grove Avenue.

Cottage Grove Avenue and Martin Luther King Jr Parkway, traffic control signal.

Cottage Grove Avenue and Nineteenth Street, traffic control signal.
(C62, § 30-50; O.8084; C75, C79, § 27-55; O.9814, 10,694; C91, § 27-856; O.11,650, 11,935, 14,304, 14,428)

Sec. 114-1438.01. East County Line Road.

East County Line Road and U.S. Highway 69, traffic control signal.
(O.14,428)

Sec. 114-1438.02. County Line Road.

County Line Road and Southwest Ninth Street, traffic control signal.
(O.14,542)

Sec. 114-1439. Court Avenue.

Court Avenue and Water Street, traffic control signal.

Court Avenue and Second Avenue, traffic control signal.

Court Avenue and Third Street, traffic control signal.

Court Avenue and Fourth Street, traffic control signal.
(C62, § 30-51; O.8084; C75, § 27-56; O.8984; C79, C85, § 27-56; O.10,938; C91, § 27-857; O.11,650, 14,428)

Sec. 114-1440. East Court Avenue.

East Court Avenue and East Sixth Street, traffic control signal.

East Court Avenue and East Fourteenth Street, traffic control signal.

East Court Avenue and Johnson Court, traffic control signal.
(C62, § 30-52; O.8084; C75, C79, § 27-57; C91, § 27-858; O.11,650, 13,102, 14,428)

Sec. 114-1440.5. Creston Avenue.

Creston Avenue and Southwest Sixty-third Street, traffic control signal.
(O.15,687)

Sec. 114-1441. Crocker Street.

Crocker Street and Second Avenue, traffic control signal.

Crocker Street and Third Street, traffic control signal.

Crocker Street and Fifth Avenue, traffic control signal.

Crocker Street and Sixth Avenue, traffic control signal.

Crocker Street and Seventh Avenue, traffic control signal.

Crocker Street and Forty-second Street, traffic control signal.
(C62, § 30-52; O.8084; C75, C79, § 27-58; O.9632; C91, § 27-859; O.11,650, 14,212, 14,428, 14,855, 15,736)

Sec. 114-1442. Cummins Road.

Cummins Road and Southeast Fourteenth Street, traffic control signal.
(C85, § 27-58.01; O.11,064; C91, § 27-860; O.11,650)

Sec. 114-1442.05. Dart Way.

Dart Way and Southwest Ninth Street, traffic control signal.
(O.14,855)

Sec. 114-1443. Reserved.

Editor's note—Ord. No. 14,428, § 1, adopted April 11, 2005, repealed § 114-1443, which pertained to Day Street and derived from Code 1962, § 30-54; Ord. No. 8084; Ord. No. 8226; Code 1975; Code 1979, § 27-59; Code 1991, § 27-861; and Ord. No. 11,650.

Sec. 114-1444. Dean Avenue.

Dean Avenue and East Thirtieth Street, traffic control signal.
(C62, § 30-55; O.8084; C75, C79, § 27-60; C91, § 27-862; O.11,650)

Sec. 114-1445. Delaware Avenue.

Delaware Avenue and Guthrie Avenue, traffic control signal.

Delaware Avenue and East Euclid Avenue, traffic control signal.
(C62, § 30-56; O.8084; C75, § 27-61; O.9445; C79, § 27-61; C91, § 27-863; O.11,650)

Sec. 114-1445.01. East Diehl Avenue.

East Diehl Avenue and Southeast Fourteenth Street, traffic control signal.
(O.14,428)

Sec. 114-1445.05. Des Moines Street.

Des Moines Street and East Sixth Street, traffic control signal.
(O.15,687)

Sec. 114-1446. Dixon Street.

Dixon Street and East Euclid Avenue, traffic control signal.

Dixon Street and Guthrie Avenue, traffic control signal.
(C91, § 27-863.05; O.11,688)

Sec. 114-1447. Douglas Avenue.

Douglas Avenue and Second Avenue, traffic control signal.

Douglas Avenue and Lower Beaver Road, traffic control signal.

Douglas Avenue and Thirty-eight Street, traffic control signal.

Douglas Avenue and Fiftieth Street, traffic control signal.

Douglas Avenue and Merle Hay Road, traffic control signal.

Douglas Avenue and Fifty-ninth Street, Traffic Control signal. Douglas Avenue, on the south side, at a point 219 feet east of Sixty-second Street, traffic control signal.
(C62, § 30-57; O.8084, 8758; C75, C79, § 27-62; C91, § 27-864; O.11,650, 14,428, 14,542)

Sec. 114-1447.01. East Douglas Avenue.

East Douglas Avenue and East Fifty-sixth Street, traffic control signal.
(O.14,905)

Sec. 114-1448. Easton Boulevard.

Easton Boulevard and East Thirty-third Street, traffic control signal.

Easton Boulevard and East Twenty-ninth Street, traffic control signal.
(C62, § 30-58; O.8084, 8394; C75, C79, § 27-63; C91, § 27-865; O.11,650, 14,428)

Sec. 114-1449. Euclid Avenue.

Euclid Avenue and Second Avenue, traffic control signal.

Euclid Avenue and Sixth Avenue, traffic control signal.

Euclid Avenue and Eleventh Street, traffic control signal.

Euclid Avenue and Martin Luther King Jr Parkway, traffic control signal.
(C62, § 30-59; O.8084; C75, C79, § 27-64; C91, § 27-866; O.11,650, 11,935, 15,103)

Sec. 114-1450. East Euclid Avenue.

East Euclid Avenue and Oxford Street, traffic control signal.

East Euclid Avenue and East Fourteenth Street, traffic control signal.

East Euclid Avenue and Interstate 235 west, traffic control signal.

East Euclid Avenue and Interstate 235 east, traffic control signal.

East Euclid Avenue and East Twenty-fifth Street, traffic control signal.

East Euclid Avenue and East Twenty-sixth Street, traffic control signal.

East Euclid Avenue and East Twenty-ninth Street, traffic control signal.

East Euclid Avenue and East Thirty-third Street, traffic control signal.
(C62, § 30-60; O.8084, 8226, 8562; C75, C79, C85, § 27-65; O.11,098; C91, § 27-867; O.11,650, 11,688, 14,428, 15,332)

Sec. 114-1451. Fleur Drive.

Fleur Drive and Grays Lake north Park Road, traffic control signal.

Fleur Drive and George Flagg Parkway, traffic control signal.

Fleur Drive and Park Avenue, traffic control signal.

Fleur Drive and Watrous Avenue, traffic control signal.

Fleur Drive and Stanton Avenue, traffic control signal.

Fleur Drive and McKinley Avenue, traffic control signal.

Fleur Drive and Highview Drive, traffic control signal.

Fleur Drive and County Line Road, traffic control signal.
(C62, § 30-61; O.8084; C75, § 27-66; O.8981; C79, § 27-66; C91, § 27-868; O.11,650, 13,643, 14,080, 14,428)

Sec. 114-1452. Forest Avenue.

Forest Avenue and Sixth Avenue, traffic control signal.

Forest Avenue and Nineteenth Street, traffic control signal.

Forest Avenue and Martin Luther King Jr Parkway, traffic control signal.

Forest Avenue and Twenty-fifth Street, traffic control signal. Forest Avenue and Twenty-seventh Street, traffic control signal.

Forest Avenue and Thirtieth Street, traffic control signal.
(C62, § 30-62; O.8084; C75, C79, § 27-67; O.10,694; C91, § 27-869; O.11,650, 11,935, 14,428)

Sec. 114-1453. Franklin Avenue.

Franklin Avenue and Forty-fourth Street, traffic control signal.
(C62, § 30-63; O.8084; C75, C79, § 27-68; C91, § 27-870; O.11,650, 14,428)

Sec. 114-1454. Fremont Street.

Fremont Street and Pennsylvania Avenue, traffic control signal.
(C62, § 30-64; O.8084; C75, C79, § 27-69; C91, § 27-871; O.11,650, 14,428)

Sec. 114-1454.01. George Flagg Parkway.

George Flagg Parkway and Fleur Drive, traffic control signal.
(O.14,080)

Sec. 114-1455. Grand Avenue.

Grand Avenue and Second Avenue, traffic control signal.

Grand Avenue and Third Street, traffic control signal.

Grand Avenue and Fourth Street, traffic control signal.

Grand Avenue and Fifth Avenue, traffic control signal.

Grand Avenue and Sixth Avenue, traffic control signal.

Grand Avenue and Seventh Street, traffic control signal.

Grand Avenue and Eighth Street, traffic control signal.

Grand Avenue and Ninth Street, traffic control signal.

Grand Avenue and Tenth Street, traffic control signal.

Grand Avenue and Twelfth Street, traffic control signal.

Grand Avenue and Thirteenth Street, traffic control signal.

Grand Avenue and Fifteenth Street, traffic control signal.

Grand Avenue and Seventeenth Street, traffic control signal.

Grand Avenue and Eighteenth Street, traffic control signal.

Grand Avenue and Nineteenth Street, traffic control signal.

Grand Avenue and Twenty-eighth Street, traffic control signal.

Grand Avenue and Thirty-first Street, traffic control signal.

Grand Avenue and Thirty-fifth Street, traffic control signal.

Grand Avenue and Thirty-seventh Street, traffic control signal.

Grand Avenue and Forty-second Street, traffic control signal.

Grand Avenue and Fifty-sixth Street, traffic control signal.

Grand Avenue and Sixty-third Street, traffic control signal.
(C62, § 30-65; O.8084, 8758; C75, C79, C85, § 27-70; O.11,516; C91, § 27-872; O.11,650, 14,428)

Sec. 114-1456. East Grand Avenue.

East Grand Avenue and Robert D Ray Drive, traffic control signal.

East Grand Avenue and East Fourth Street, traffic control signal.

East Grand Avenue and East Sixth Street, traffic control signal.

East Grand Avenue and Pennsylvania Avenue, traffic control signal.

East Grand Avenue and East Ninth Street, traffic control signal.

East Grand Avenue and East Twelfth Street, traffic control signal.

East Grand Avenue and East Fourteenth Street, traffic control signal.

East Grand Avenue and East Fifteenth Street, traffic control signal.

East Grand Avenue and East Sixteenth Street, traffic control signal.

East Grand Avenue and East Thirtieth Street, traffic control signal.
(C62, § 30-66; O.8084; C75, C79, § 27-71; O.10,694; C91, § 27-873; O.11,650, 11,660, 13,954, 14,428)

Sec. 114-1457. Reserved.

Editor's note—Ord. No. 14,855, § 1, adopted May 18, 2009, repealed § 114-1457, which pertained to Grandview Avenue and derived from Code 1962, § 30-67; Ord. No. 8084; Code 1975; Code 1979, § 27-72; Code 1991, § 27-874; Ord. No. 11,650; Ord. No. 14,428.

Sec. 114-1458. Guthrie Avenue.

Guthrie Avenue and East Fourteenth Street, traffic control signal.

Guthrie Avenue and Interstate 235 west, traffic control signal.

Guthrie Avenue and Interstate 235 east, traffic control signal.
(C62, § 30-68; O.8084, 9198; C75, C79, § 27-73; O.10,364; C91, § 27-875; O.11,650, 14,428, 14,542)

Sec. 114-1459. Hartford Avenue.

Hartford Avenue and Southeast Sixth Street, traffic control signal.

Hartford Avenue and Southeast Fourteenth Street, traffic control signal.
(C62, § 30-70; O.8084, 8394; C75, C79, C85, § 27-75; O.11,199; C91, § 27-877; O.11,650)

Sec. 114-1460. Hickman Road.

Hickman Road and Martin Luther King Jr Parkway, traffic control signal.

Hickman Road and Thirtieth Street, traffic control signal.

Hickman Road and Forty-eighth Street, traffic control signal.

Hickman Road and Merle Hay Road, traffic control signal.

Hickman Road and Sixty-third Street, traffic control signal.
(C62, § 30-71; O.8084; C75, C79, § 27-76; O.10,014, 10,037; C91, § 27-878; O.11,650, 11,935, 14,428, 14,855)

Sec. 114-1461. High Street.

High Street and Sixth Avenue, traffic control signal.

High Street and Seventh Street, traffic control signal.

High Street and Eighth Street, traffic control signal.

High Street and Ninth Street, traffic control signal.

High Street and Tenth Street, traffic control signal.

High Street and Eleventh Street, traffic control signal.

High Street and Twelfth Street, traffic control signal.
(C62, § 30-72; O.8084, 8758; C75, C79, § 27-77; C91, § 27-879; O.11,650, 14,982)

Sec. 114-1462. Holcomb Avenue.

Holcomb Avenue and Second Avenue, traffic control signal.

Holcomb Avenue and Sixth Avenue, traffic control signal.
(C62, § 30-73; O.8084; C75, C79, § 27-78; C91, § 27-880; O.11,650)

Sec. 114-1463. Hull Avenue.

Hull Avenue and Second Avenue, traffic control signal.

Hull Avenue and East Ninth Street, traffic control signal.

Hull Avenue and East Fourteenth Street, traffic control signal.
(C62, § 30-74; O.8084, 8226, 8394; C75, C79, § 27-79; O.9983; C91, § 27-881; O.11,650, 14,428)

Sec. 114-1464. Reserved.

Editor's note—Ord. No. 14,057, repealed § 114-1464 which pertained to Indianola Avenue and derived from Code 1962, § 30-75; Ord. No. 8084; Code 1975, Code 1979, § 27-80; Code 1991, § 27-882; Ord. No. 11,650.

Sec. 114-1465. Indianola Avenue.

Indianola Avenue and Southeast First Street, traffic control signal.

Indianola Avenue and Hartford Avenue, traffic control signal.

Indianola Avenue and Southeast Sixth Street, traffic control signal.

Indianola Avenue and East Park Avenue, traffic control signal.

Indianola Avenue and Southeast Fourteenth Street, traffic control signal.

Indianola Avenue and Evergreen Avenue, traffic control signal.

Indianola Avenue and East Watrous Avenue, traffic control signal.

Indianola Avenue and East McKinley Avenue, traffic control signal.

Indianola Avenue and Easter Lake Drive, traffic control signal.

Indianola Avenue and East Payton Avenue, traffic control signal.
(C62, § 30-75.01; O.8084; C75, C79, § 27-81; C91, § 27-883; O.11,650, 14,428, 14,982, 15,341, 15,556)

Sec. 114-1465.01. Indianola Road.

Indianola Road and Southwest Seventh Street, traffic control signal.
(O.14,057)

Sec. 114-1465.02. Reserved.

Editor's note—Ord. No. 14,542, § 1, adopted Feb. 6, 2006, repealed § 114-1465.02, which pertained to Indianola Road and derived from Ord. No. 14,057.

Sec. 114-1466. Ingersoll Avenue.

Ingersoll Avenue and Fifteenth Street, traffic control signal.

Ingersoll Avenue and Seventeenth Street, traffic control signal.

Ingersoll Avenue and Eighteenth Street, traffic control signal.

Ingersoll Avenue and Martin Luther King Jr Parkway, traffic control signal.

Ingersoll Avenue and Twenty-eighth Street, traffic control signal.

Ingersoll Avenue and Thirty-first Street, traffic control signal.

Ingersoll Avenue and Thirty-fifth Street, traffic control signal.

Ingersoll Avenue and Forty-second Street, traffic control signal.
(C62, § 30-76; O.8084, 8226; C75, C79, § 27-82; O.10,694; C91, § 27-884; O.11,650, 11,935, 14,322)

Sec. 114-1467. Interstate 235 (Des Moines Freeway).

Interstate 235 Ramp and Second Avenue south, traffic control signal.

Interstate 235 Ramp and Third Street south, traffic control signal.

Interstate 235 Ramp and Fifth Avenue north, traffic control signal.

Interstate 235 Ramp and Fifth Avenue south, traffic control signal.

Interstate 235 Ramp and Sixth Avenue north, traffic control signal.

Interstate 235 Ramp and Sixth Avenue south, traffic control signal.

Interstate 235 Ramp and East Sixth Street north, traffic control signal.

Interstate 235 Ramp and East Sixth Street south, traffic control signal.

Interstate 235 Ramp and Seventh Street north, traffic control signal.

Interstate 235 Ramp and Seventh Street south, traffic control signal.

Interstate 235 Ramp and East Fourteenth Street north, traffic control signal.

Interstate 235 Ramp and East Fourteenth Street south, traffic control signal.

Interstate 235 Ramp and East Fifteenth Street north, traffic control signal.

Interstate 235 Ramp and East Fifteenth Street south, traffic control signal.

Interstate 235 Ramp and Nineteenth Street north, traffic control signal.

Interstate 235 Ramp and Nineteenth Street south, traffic control signal.

Interstate 235 Ramp and Martin Luther King Jr Parkway north, traffic control signal.

Interstate 235 Ramp and Martin Luther King Jr Parkway south, traffic control signal.

Interstate 235 Ramp and Thirty-first Street north, traffic control signal.

Interstate 235 Ramp and Thirty-first Street south, traffic control signal.

Interstate 235 Ramp and Forty-second Street north, traffic control signal.

Interstate 235 Ramp and Forty-second Street south, traffic control signal.

Interstate 235 Ramp and Fifty-sixth Street north, traffic control signal.

Interstate 235 Ramp and Fifty-sixth Street south, traffic control signal.

Interstate 235 Ramp and Sixty-third Street south, traffic control signal.

Interstate 235 Ramp and Sixty-third Street north, traffic control signal.

Interstate 235 Ramp and Pennsylvania Avenue north, traffic control signal.

Interstate 235 Ramp and Pennsylvania Avenue south, traffic control signal.
(C62, § 30-77; O.8084; C75, C79, C85, § 27-83; O.11,503; C91, § 27-885; O.11,650, 14,428, 14,542)

Sec. 114-1467.01. Iowa Highway 28.

Iowa Highway 28 and Iowa Highway 5 west bound off-ramp, traffic control signal.

Iowa Highway 28 and Willow Creek Avenue, traffic control signal.
(O.14,428, 15,559)

Sec. 114-1467.02. East Jackson Avenue.

East Jackson Avenue and Southeast First Street, traffic control signal.
(O.14,428)

Sec. 114-1468. Keosauqua Way.

Keosauqua Way and Eighth Street, traffic control signal.

Keosauqua Way and Ninth Street, traffic control signal.

Keosauqua Way and Twelfth Street, traffic control signal.
(C62, § 30-78; O.8084; C75, C79, § 27-84; O.9632; C85, § 27-84; O.11,516; C91, § 27-886; O.11,650, 13,855)

Sec. 114-1468.01. Kingman Boulevard.

Kingman Boulevard and Thirty-first Street, traffic control signal.

Kingman Boulevard and Forty-second Street, traffic control signal.
(O.14,428, 14,855)

Sec. 114-1468.02. Laurel Street.

Laurel Street and Sixth Avenue, traffic control signal.

Laurel Street and Seventh Street, traffic control signal.
(O.14,428, 14,542, 14,950)

Sec. 114-1469. Locust Street.

Locust Street and Second Avenue, traffic control signal.

Locust Street and Third Street, traffic control signal.

Locust Street and Fifth Avenue, traffic control signal.

Locust Street and Sixth Avenue, traffic control signal.

Locust Street and Seventh Street, traffic control signal.

Locust Street and Eighth Street, traffic control signal.

Locust Street and Ninth Street, traffic control signal.

Locust Street and Tenth Street, traffic control signal.

Locust Street and Twelfth Street, traffic control signal.

Locust Street and Thirteenth Street, traffic control signal.

Locust Street and Fifteenth Street, traffic control signal.

Locust Street and Seventeenth Street, traffic control signal.
(C62, § 30-79; O.8084; C75, C79, § 27-85; O.9975; C85, § 27-85; O.11,516; C91, § 27-887; O.11,650, 16,491)

Sec. 114-1470. East Locust Street.

East Locust Street and East Fourth Street, traffic control signal.

East Locust Street and East Sixth Street, traffic control signal.

East Locust Street and East Seventh Street, traffic control signal.
(C62, § 30-80; O.8084; C75, C79, C85, § 27-86; O.11,402; C91, § 27-888; O.11,650, 13,344, 14,428)

Sec. 114-1471. Lower Beaver Road.

Lower Beaver Road and Madison Avenue, traffic control signal.
(C62, § 30-81; O.8084; C75, C79, § 27-87; C91, § 27-889; O.11,650, 14,428)

Sec. 114-1472. Reserved.

Editor's note—Ord. No. 14,428, § 1, adopted April 11, 2005, repealed § 114-1472, which pertained to Lyon Street and derived from Code 1985, § 27-87.01; Ord. No. 11,161; Code 1991, § 27-890; and Ord. No. 11,650.

Sec. 114-1473. Madison Avenue.

Madison Avenue and Second Avenue, traffic control signal.

Madison Avenue and Sixth Avenue, traffic control signal.

Madison Avenue and Merle Hay Road, traffic control signal.
(C62, § 30-82; O.8084; C75, C79, § 27-88; C91, § 27-891; O.11,650, 14,428)

Sec. 114-1474. East Madison Avenue.

East Madison Avenue and East Fourteenth Street, traffic control signal.
(C62, § 30-83; O.8084; C75, C79, § 27-89; C91, § 27-892; O.11,650)

Sec. 114-1475. Reserved.

Editor's note—Ord. No. 14,428, § 1, adopted April 11, 2005, repealed § 114-1475, which pertained to Maple Street and derived from Code 1962, § 30-84; Ord. No. 8084; Code 1975; Code 1979, § 27-90; Code 1991, § 27-893; and Ord. No. 11,650.

Sec. 114-1476. Martin Luther King Jr Parkway.

Martin Luther King Jr Parkway and Woodland Avenue, traffic control signal.

Martin Luther King Jr Parkway and University Avenue, traffic control signal.

Martin Luther King Jr Parkway and Prospect Road, traffic control signal.

Martin Luther King Jr Parkway and Urbandale Avenue, traffic control signal.
(C62, § 30-69; O.8084; C75, C79, C85, § 27-74; O.10,799; C91, § 27-876; O.11,650; C91, § 27-893.01; O.11,935, 15,687)

Sec. 114-1476.01. East Martin Luther King Jr Parkway.

East Martin Luther King Jr Parkway and Southeast Fourth Street, traffic control signal.

East Martin Luther King Jr Parkway and Southeast Sixth Street, traffic control signal.

East Martin Luther King Jr Parkway and Southeast Ninth Street, traffic control signal.

East Martin Luther King Jr Parkway and Southeast Twelfth Street, traffic control signal.

East Martin Luther King Jr Parkway and Southeast Fifteenth Street, traffic control signal.

East Martin Luther King Jr Parkway and Southeast Eighteenth Street, traffic control signal.

East Martin Luther King Jr Parkway and Southeast Twenty-third Street, traffic control signal.

East Martin Luther King Jr Parkway and Southeast Twenty-fifth Court, traffic control signal.

East Martin Luther King Jr Parkway and Southeast Thirtieth Street, traffic control signal.
(O.14,982, 15,387, 15,466)

Sec. 114-1477. Maury Street.

Maury Street and Southeast Fourteenth Street, traffic control signal.
(C62, § 30-85; O.8084, 8226; C75, C79, § 27-91; O.10,046; C91, § 27-894; O.11,650)

Sec. 114-1478. McKinley Avenue.

McKinley Avenue and Southwest Ninth Street, traffic control signal.

McKinley Avenue and Southwest Fourteenth Street, traffic control signal.
(C62, § 30-86; O.8084, 8226; C75, § 27-92; O.9602; C79, § 27-92; C91, § 27-896; O.11,650, 14,428)

Sec. 114-1479. East McKinley Avenue.

East McKinley Avenue and Southeast Fourteenth Street, traffic control signal.
(C62, § 30-86.01; O.8226; C75, C79, § 27-92.01; C91, § 27-897; O.11,650)

Sec. 114-1479.01. Southwest McKinley Avenue.

Southwest McKinley Avenue and Iowa Highway 28, traffic control signal.
(O.14,428)

Sec. 114-1480. Merle Hay Road.

Merle Hay Road and University Avenue, traffic control signal.

Merle Hay Road and Urbandale Avenue, traffic control signal.

Merle Hay Road and Meredith Drive, traffic control signal.

Merle Hay Road and Sutton Place, traffic control signal.
(C62, § 30-87; O.8084; C75, C79, § 27-93; C91, § 27-898; O.11,650, 14,428)

Sec. 114-1480.01. Morton Avenue.

Morton Avenue and East Fourteenth Street, traffic control signal.
(O.14,428, 14,855)

Sec. 114-1481. Mulberry Street.

Mulberry Street and Fifth Street, traffic control signal.

Mulberry Street and Sixth Avenue, traffic control signal.

Mulberry Street and Seventh Street, traffic control signal.

Mulberry Street and Eighth Street, traffic control signal.

Mulberry Street and Ninth Street, traffic control signal.

Mulberry Street and Tenth Street, traffic control signal.

Mulberry Street and Eleventh Street, traffic control signal.

Mulberry Street and Twelfth Street, traffic control signal.
(C62, § 30-88; O.8084; C75, C79, § 27-94; C91, § 27-899; O.11,650, 14,428)

Sec. 114-1482. New York Avenue.

New York Avenue and Second Avenue, traffic control signal.
(C62, § 30-89; O.8084; C75, C79, § 27-95; C91, § 27-900; O.11,650)

Sec. 114-1483. Park Avenue.

Park Avenue and Southwest Ninth Street, traffic control signal.

Park Avenue and Southwest Twenty-fourth Street, traffic control signal.

Park Avenue and Southwest Forty-second Street, traffic control signal.

Park Avenue and George Flagg Parkway, traffic control signal.

Park Avenue and Southwest Fifty-sixth Street, traffic control signal.

Park Avenue and Southwest Sixty-third Street, traffic control signal.
(C62, § 30-90; O.8084, 8226, 8559; C75, C79, § 27-96; C91, § 27-901; O.11,650, 13,833, 14,428, 14,542)

Sec. 114-1484. East Park Avenue.

East Park Avenue and Southeast Fourteenth Street, traffic control signal.
(C62, § 30-90.01; O.8226; C75, C79, § 27-96.01; C91, § 27-902; O.11,650)

Sec. 114-1485. Park Street.

Park Street and Third Street, traffic control signal.

Park Street and Fifth Avenue, traffic control signal.

Park Street and Sixth Avenue, traffic control signal.

Park Street and Seventh Street, traffic control signal.
(C62, § 30-91; O.8084, 8562; C75, C79, § 27-97; O.9975; C85, § 27-97; O.11,516; C91, § 27-903; O.11,650, 14,542)

Sec. 114-1486. Pennsylvania Avenue.

Pennsylvania Avenue and East University Avenue, traffic control signal.
(C62, § 30-92; O.8084; C75, C79, § 27-98; C91, § 27-904; O.11,650, 14,428)

Sec. 114-1487. Pleasant Street.

Pleasant Street and Eighth Street, traffic control signal.

Pleasant Street and Ninth Street, traffic control signal.
(C62, § 30-93; O.8084; C75, § 27-99; O.9513; C79, § 27-99; C91, § 27-905; O.11,650)

Sec. 114-1488. Polk Boulevard.

Polk Boulevard and University Avenue, traffic control signal.
(C62, § 30-94; O.8084, 8226; C75, C79, § 27-100; C91, § 27-906; O.11,650, 14,428)

Sec. 114-1489. Porter Avenue.

Porter Avenue and Southwest Ninth Street, traffic control signal.
(C62, § 30-95; O.8084; C75, C79, § 27-101; C91, § 27-907; O.11,650)

Sec. 114-1490. East Porter Avenue.

East Porter Avenue and Southeast Fifth Street, traffic control signal.
(C79, § 27-101.01; O.10,264; C91, § 27-908; O.11,650)

Sec. 114-1491. Scott Avenue.

Scott Avenue and Southeast Sixth Street, traffic control signal.

Scott Avenue and Southeast Thirtieth Street, traffic control signal.
(O.13,613, 14,982)

Sec. 114-1492. Railroad Avenue.

Railroad Avenue and Southwest Sixty-third Street, traffic control signal.
(O.14,542)

Sec. 114-1493. Reserved.

Editor's note—Ord. No. 14,428, § 1, adopted April 11, 2005, repealed § 114-1493, which pertained to Shawnee Avenue and derived from Code 1962, § 30-96.01; Ord. No. 8084; Code 1975; Code 1979, § 27-103; Code 1991, § 27-910; and Ord. No. 11,650.

Sec. 114-1493.01. Tuttle Street.

Tuttle Street and Southwest Seventh Street, traffic control signal.
(O.14,428)

Sec. 114-1494. University Avenue.

University Avenue and Second Avenue, traffic control signal.

University Avenue and Sixth Avenue, traffic control signal.

University Avenue and Ninth Street, traffic control signal.

University Avenue and Thirteenth Street, traffic control signal.

University Avenue and Nineteenth Street, traffic control signal.

University Avenue and Twenty-fourth Street, traffic control signal.

University Avenue and Twenty-fifth Street, traffic control signal.

University Avenue and Twenty-eighth Street, traffic control signal.

University Avenue and Thirty-first Street, traffic control signal.

University Avenue and Forty-second Street, traffic control signal.

University Avenue and Fifty-fifth Street, traffic control signal.

University Avenue and Sixty-third Street, traffic control signal.
(C62, § 30-97; O.8084; C75, § 27-104; O.9339; C79, § 27-104; C91, § 27-911; O.11,650, 11,935, 14,428)

Sec. 114-1495. East University Avenue.

East University Avenue and East Ninth Street, traffic control signal.

East University Avenue and East Fourteenth Street, traffic control signal.

East University Avenue and East Twenty-first Street, traffic control signal.

East University Avenue and East Twenty-sixth Street, traffic control signal.

East University Avenue and East Thirtieth Street, traffic control signal.

East University Avenue and East Thirty-third Street, traffic control signal.

East University Avenue and East Thirty-sixth Street, traffic control signal. (Temporary signal during Iowa State Fair).

East University Avenue and Williams Street, traffic control signal.
(C62, § 30-98; O.8084; C75, § 27-105; O.8974, 9325; C79, C85, § 27-105; O.10,770; C91, § 27-912; O.11,650, 14,428)

Sec. 114-1496. Reserved.

Editor's note—Ord. No. 14,428, § 1, adopted April 11, 2005, repealed § 114-1496, which pertained to Urbandale Avenue and derived from Code 1962, § 30-99; Ord. No. 8084; Code 1975; Code 1979, § 27-106; Code 1991, § 27-913; and Ord. No. 11,650.

Sec. 114-1497. Reserved.

Editor's note—Ord. No. 14,080, § 1, adopted April 22, 2002, repealed § 114-1497 which pertained to Valley Drive and derived from Code 1962, § 30-100; Ord. No. 8084; Code 1975 and Code 1979, § 27-107; Code 1991, § 27-914; and Ord. No. 11,650.

Sec. 114-1497.01. Virginia Avenue.

Virginia Avenue and Southwest Ninth Street, traffic control signal.
(O.14,428)

Sec. 114-1498. Walker Street.

Walker Street and East Fourteenth Street, traffic control signal.

Walker Street and Johnson Court, traffic control signal.
(C62, § 30-101; O.8084; C75, C79, § 27-108; C91, § 27-915; O.11,650, 14,428)

Sec. 114-1499. Walnut Street.

Walnut Street and Second Avenue, traffic control signal.

Walnut Street and Third Street, traffic control signal.

Walnut Street and Fifth Street, traffic control signal.

Walnut Street and Sixth Avenue, traffic control signal.

Walnut Street and Seventh Street, traffic control signal.

Walnut Street and Eighth Street, traffic control signal.

Walnut Street and Ninth Street, traffic control signal.

Walnut Street and Tenth Street, traffic control signal.

Walnut Street and Twelfth Street, traffic control signal.

Walnut Street and Thirteenth Street, traffic control signal.
(C62, § 30-102; O.8084; C75, C79, § 27-109; O.9975; C85, § 27-109; O.10,938; C91, § 27-916; O.11,650, 14,428, 14,542, 15,750)

Sec. 114-1500. East Walnut Street.

East Walnut Street and East Sixth Street, traffic control signal.

East Walnut Street and East Fourteenth Street, traffic control signal.

East Walnut Street and East Fifteenth Street, traffic control signal.

East Walnut Street and East Thirtieth Street, traffic control signal.
(C62, § 30-103; O.8084; C75, C79, C85, § 27-110; O.11,402; C91, § 27-917, 14,428)

Sec. 114-1501. East Washington Avenue.

East Washington Avenue and East Fourteenth Street, traffic control signal.
(C75, § 27-110.01; O.9198; C79, § 27-110.01; C91, § 27-919; O.11,650)

Sec. 114-1502. Watrous Avenue.

Watrous Avenue and Southwest Ninth Street, traffic control signal.
(C62, § 30-104; O.8084; C75, C79, § 27-111; C91, § 27-919; O.11,650, 14,428)

Sec. 114-1503. East Watrous Avenue.

East Watrous Avenue and Southeast Fourteenth Street, traffic control signal.
(C62, § 30-104.01; O.8226; C75, C79, § 27-111.01; C91, § 27-920; O.11,650)

Sec. 114-1503.01 Watson Powell Jr Way.

Watson Powell Jr Way and Third Street, traffic control signal.

Watson Powell Jr Way and Fifth Avenue, traffic control signal.

Watson Powell Jr Way and Sixth Avenue, traffic control signal.
(O.13,855, 14,428, 14,579)

Sec. 114-1503.05. West Martin Luther King Jr Parkway.

West Martin Luther King Jr Parkway and Southwest Second Street, traffic control signal.

West Martin Luther King Jr Parkway and Southwest Third Street, traffic control signal.

West Martin Luther King Jr Parkway and Southwest Fifth Street, traffic control signal.

West Martin Luther King Jr Parkway and Southwest Seventh Street, traffic control signal.

West Martin Luther King Jr Parkway and Southwest Eleventh Street, traffic control signal.

West Martin Luther King Jr Parkway and Southwest Sixteenth Street, traffic control signal.

West Martin Luther King Jr Parkway and Martin Luther King Jr Parkway, traffic control signal.
(O.14,418)

Secs. 114-1504—114-1530. Reserved.

Subdivision III. Devices at Other Than Intersections

Sec. 114-1531. Designated.

As provided in and in accordance with section 114-256.02 of this chapter, the locations designated in the following sections of this subdivision are designated as traffic control locations other than intersections with devices to be installed as indicated, and drivers of vehicles shall obey the traffic control devices placed at such locations.

Sec. 114-1532. East Army Post Road.

East Army Post Road, on the south side, at a point 940 feet west of East Fourteenth Street, traffic control signal.

East Army Post Road, on the south side, at a point 760 feet east of Southeast Fifth Street, traffic control signal.
(C75, § 27-113.01; O.9177; C79, § 27-113.01; C91, § 27-922; O.11,650, 13,933)

Sec. 114-1532.01. Beaver Avenue.

Beaver Avenue, on the east side, at a point 53 feet southeasterly of Adams Avenue, school signal.
(O.14,428)

Sec. 114-1532.05. Aurora Avenue.

Aurora Avenue, on the north side, at a point 370 feet west of Forty-eighth Street, school signal.
(O.14,354, 14,542)

Sec. 114-1533. Cornell Street.

Cornell Street, on the west side, at a point 400 feet south of East Euclid Avenue, school signal.
(C91, § 27-922.50; O.11,741)

Sec. 114-1533.01. East County Line Road.

East County Line Road, on the north side, at a point 1,305 feet west of Southeast Fifth Street, school signal.
(O.14,542)

Sec. 114-1534. Crocker Street.

Crocker Street, on the south side, at a point 100 feet east of Seventeenth Street, school signal.
(C62, § 30-107.01; O.8559; C75, C79, § 27-114.01; C91, § 27-923; O.11,650)

Sec. 114-1535. Reserved.

Editor's note—Ord. No. 15,394, § 1, adopted August 10, 2015, repealed § 114-1535, which pertained to Douglas Avenue and derived from Code 1962, § 30-108; Ord. No. 8084; Ord. No. 8758; Code 1975; Code 1979, § 27-115; Code 1991, § 27-924; Ord. No. 11,650; Ord. No. 14,428.

Sec. 114-1536. East Douglas Avenue.

East Douglas Avenue, on the south side, at a point 70 feet west of East Thirty-eighth Court, school signal.

East Douglas Avenue, on the south side, at a point 50 feet east of East Thirty-eighth Street, flashing school beacon, amber.

East Douglas Avenue, on the north side, of East Thirty-ninth Street, flashing school beacon, amber.
(C75, § 27-115.01; O.9581; C79, § 27-115.01; C91, § 27-925; O.11,650, 13,146)

Sec. 114-1537. Easton Boulevard.

Easton Boulevard, on the south side, at a point 111 feet east of East Thirty-ninth Street, school signal.
(C62, § 30-109; O.8084; C75, C79, § 27-116; C91, § 27-926; O.11,650)

Sec. 114-1538. Euclid Avenue.

Euclid Avenue, on the south side, at a point 877 feet east of Martin Luther King Jr Parkway, traffic control signal.
(C62, § 30-110; O.8084; C75, C79, § 27-117; C91, § 27-927; O.11,650, 11,935)

Sec. 114-1539. Evergreen Avenue.

Evergreen Avenue, on the north side, at a point 865 feet east of Indianola Avenue, school signal.
(O.13,629, 14,428)

Sec. 114-1540. Reserved.

Editor's note—Ord. No. 14,428, § 1, adopted April 11, 2005, repealed § 114-1540, which pertained to Franklin Avenue and derived from Code 1962, § 30-111; Ord. No. 8084; Code 1975; Code 1979, § 27-118; Code 1991, § 27-928; and Ord. No. 11,650.

Sec. 114-1540.5. Forest Avenue.

Forest Avenue, on the south side, at a point 50 feet east of Eighteenth Street, school signal.
(O.14,388)

Sec. 114-1541. Grand Avenue.

Grand Avenue, on the north side, at a point 350 feet east of Second Avenue, pedestrian signal.

Grand Avenue, on the north side, at a point east side of Polk Boulevard, pedestrian signal.

Grand Avenue, on the south side, at a point 188 feet east of Forty-fourth Street, school signal.

Grand Avenue, on the north side, at a point 1,240 feet east of Fifty-sixth Street, school signal.
(C62, § 30-112; O.8084; C75, C79, § 27-119; C91, § 27-929; O.11,650, 14,982, 15,180)

Sec. 114-1541.01. Reserved.

Editor's note—Ord. No. 15,687, § 1, adopted July 23, 2018, repealed § 114-1541.01, which pertained to East Grand Avenue and derived from Ord. No. 14,428.

Sec. 114-1542. Hickman Road.

Hickman Road, on the north side, at a point 124 feet east of Fifty-sixth Street, school signal.

Hickman Road, on the north side, at a point 123 feet west of Forty-fourth Street, pedestrian signal.
(C62, § 30-114; O.8084; C75, C79, § 27-121; C85, § 27-930; O.11,650; C91, § 27-930; O.14,428)

Sec. 114-1543. Hull Avenue.

Hull Avenue, on the south side, at a point 125 feet east of Oxford Street, school signal.

Hull Avenue, on the south side, at a point 125 feet east of East Twelfth Street, school signal.
(C85, § 27-121.001; O.11,382; C91, § 27-931; O.11,650, 14,428)

Sec. 114-1544. Reserved.

Editor's note—Ord. No. 14,982, § 1, adopted Dec. 20, 2010, repealed § 114-1544 which pertained to Indianola Avenue and derived from Code 1962, § 30-114.01; Ord. No. 8452; Code 1975; Code 1979, § 27-121.01; Code 1991, § 27-932; Ord. No. 11,650; Ord. No. 14,428.

Sec. 114-1544.01. Indianola Avenue.

Indianola Avenue, on the west side, at a point 30 feet south of Jackson Avenue, pedestrian signal.
(O.14,428, 14,542, 16,539)

Sec. 114-1544.05. Keosauqua Way.

Keosauqua Way, on the southwest side, at a point 88 feet northwesterly of Oakridge Drive, pedestrian signal.
(O.16,121)

Sec. 114-1545. East Madison Avenue.

East Madison Avenue, on the south side, 125 feet east of East Eighth Street, school signal.
(C85, § 27-121.02; O.11,381; C91, § 27-933; O.11,650)

Sec. 114-1546. East Market Street.

East Market Street, on the north side, at a point 159 feet east of Southeast Twenty-fourth Court, pedestrian signal.
(C62, § 30-115; O.8084; C75, C79, § 27-122; C91, § 27-934; O.11,650)

Sec. 114-1546.001. Martin Luther King Jr Parkway.

Martin Luther King Jr Parkway, on the east side, at a point 140 feet north of Jefferson Avenue, pedestrian signal.

Martin Luther King Jr Parkway, on the east side, at a point 200 feet north of Allison Avenue, pedestrian signal.
(O.15,341)

Sec. 114-1546.01. Merle Hay Road.

Merle Hay Road, on the east side, at a point 650 feet north of Douglas Avenue, traffic control signal.
(O.14,855)

Sec. 114-1546.05. Park Avenue.

Park Avenue, on the south side, at a point 156 feet east of Southwest Twenty-eighth Street, school signal.

Park Avenue, on the north side, at a point 1,305 feet west of George Flagg Parkway, traffic control signal.

Park Avenue, on the north side, at a point 2,755 feet west of George Flagg Parkway, traffic control signal.
(O.13,918, 14,542, 14,855)

Sec. 114-1547. Reserved.

Editor's note—Ord. No. 16,255, § 1, adopted June 12, 2023, repealed § 114-1547, which pertained to South Union Street and derived from Code 1979, § 27-123; Ord. No. 10,590; Code 1991, § 27-935; Ord. No. 11,650.

Sec. 114-1547.01. East University Avenue.

East University Avenue, on the north side, at East Fifteenth Street, pedestrian hybrid beacon signal.

East University Avenue, on the north side, at East Seventeenth Street, pedestrian signal.
(O.14,428, 16,276, 16,370)

Sec. 114-1547.02. University Avenue.

University Avenue, on the south side, at a point 125 feet east of Twenty-ninth Street, school signal.

University Avenue, on the south side, at a point 90 feet west of 59th Street, pedestrian signal.
(O.14,855, 15,807)

Sec. 114-1547.03. Urbandale Avenue.

Urbandale Avenue, on the north side, at a point 80 feet east of Fifty-sixth Street, school signal.
(O.14,982)

Sec. 114-1547.04. Walker Street.

Walker Street, on the south side, at a point 325 feet east of East Fourteenth Street, school signal.
(O.14,982)

Sec. 114-1548. Reserved.

Editor's note—Ord. No. 13,954 repealed § 114-1548 which pertained to East Walnut Street and derived from Code 1962, § 30-117; Ord. No. 8084; Code 1975 and Code 1979, § 27-124; Code 1991, § 27-936; and Ord. No. 11,650.

Sec. 114-1548.01. Reserved.

Editor's note—Ord. No. 14,542, § 1, adopted Feb. 6, 2006, repealed § 114-1548.01, which pertained to U.S. Highway 69 and derived from Ord. No. 14,428.

Sec. 114-1548.02. Second Avenue.

Second Avenue, at a point on the south side of Center Street, pedestrian signal.
(O.14,982)

Sec. 114-1548.05. Third Street.

Third Street, on the east side, at a point 50 feet north of Center Street, pedestrian signal.
(O.14,428)

Sec. 114-1548.06. Southeast Fifth Street.

Southeast Fifth Street, on the east side, at a point 52 feet south of East Virginia Avenue, pedestrian signal.
(O.14,542)

Sec. 114-1548.08. Sixth Avenue.

Sixth Avenue, on the west side, at a point 272 feet north of Crocker Street, pedestrian signal.
(O.16,121)

Sec. 114-1549. Southeast Sixth Street.

Southeast Sixth Street, on the west side, at a point 120 feet north of East Granger Avenue, school signal.
(C79, § 27-124.01; O.10,590; C91, § 27-937; O.11,650)

Sec. 114-1549.05. Southwest Ninth Street.

Southwest Ninth Street, on the east side, at a point 575 feet north of Bell Avenue, pedestrian signal.

Southwest Ninth Street, on the west side, at a point 45 feet north of Loomis Avenue, school signal.
(O.14,542)

Sec. 114-1550. Southwest Fourteenth Street.

Southwest Fourteenth Street, on the east side, at a point 210 feet north of Hackley Avenue, school signal.
(C79, § 27-126; O.10,590; C91, § 27-938; O.11,650)

Sec. 114-1550.03. Fourteenth Street.

East Fourteenth Street, on the west side, at Garfield Avenue, pedestrian hybrid beacon signal.

East Fourteenth Street, on the east side, at a point 300 feet north of Morton Avenue, school signal.
(O.14,855, 16,370)

Sec. 114-1550.5. Reserved.

Editor's note—Ord. No. 14,428, § 1, adopted April 11, 2005, repealed § 114-1550.5, which pertained to Southeast Fourteenth Street and derived from Ord. No. 13,727.

Sec. 114-1550.07. Southeast Fourteenth Street.

Southeast Fourteenth Street, on the west side, at a point 970 feet south of Bloomfield Road, traffic control signal.

Southeast Fourteenth Street, on the west side, at a point 1,068 feet south of East McKinley Avenue, traffic control signal.
(O.14,428)

Sec. 114-1550.08. Southeast Twenty-second Street.

Southeast Twenty-second Street, on the west side, at a point 675 feet north of East Virginia Avenue, school signal.
(O.14,542)

Sec. 114-1550.7. Southeast Twenty-second Street.

Southeast Twenty-second Street, on the west side, at a point 650 feet south of King Avenue, school signal.
(O.13,833)

Sec. 114-1551. East Twenty-ninth Street.

East Twenty-ninth Street, on the west side, at a point 460 feet north of Tiffin Avenue, school signal.

East Twenty-ninth Street, on the west side, at a point 172 feet south of East Douglas Avenue, school signal.
(C62, § 30-120; O.8084; C75, C79, § 27-127; C91, § 27-939; O.11,650, 13,295)

Sec. 114-1551.01. Thirtieth Street.

Thirtieth Street, on the west side, at a point five feet north of Carpenter Avenue, school signal.
(O.14,855)

Sec. 114-1552. Thirty-first Street.

Thirty-first Street, on the east side, at a point 280 feet south of Center Street, school signal.
(C79, § 27-127.01; O.10,435; C91, § 27-940; O.11,650)

Sec. 114-1553. East Thirty-third Street.

East Thirty-third Street, on the east side, at a point 100 feet south of Cleveland Avenue, school signal.

East Thirty-third Street, on the east side, at a point 240 feet north of East Washington Avenue, school signal.
(C62, § 30-120.01; O.8084; C75, C79, § 27-128; C91, § 27-941; O.11,650, 14,542)

Sec. 114-1554. Forty-first Street.

Forty-first Street, on the west side, at a point 55 feet south of College Avenue, school signal.
(C62, § 30-121; O.8084; C75, C79, § 27-129; C91, § 27-942; O.11,650)

Sec. 114-1554.01. Forty-second Street.

Forty-second Street, on the east side, at a point ten feet north of Rollins Avenue, pedestrian signal.
(O.14,428, 15,736)

Sec. 114-1554.02. East Forty-second Street.

East Forty-second Street, on the west side, at a point 135 feet north of Morton Avenue, school signal.
(O.14,542)

Sec. 114-1554.05. Reserved.

Editor's note—Ord. No. 14,982, § 1, adopted Dec. 20, 2010, repealed § 114-1554.05 which pertained to Walker Avenue and derived from Ord. No. 14,576; Ord. No. 14,592.

Secs. 114-1555—114-1580. Reserved.

DIVISION 4. SNOW ROUTES

Sec. 114-1581. Designated.

As provided in and in accordance with section 114-236.01 of this chapter, snow routes are established on the indicated portions of the streets as set out in the following sections of this division, and drivers of vehicles shall conform to the provisions of section 114-236 of this chapter.

Sec. 114-1582. Southeast First Street.

Southeast First Street, from Scott Street to Indianola Avenue.
(C62, § 30-660.03; O.8267; C75, C79, § 27-675.03; C91, § 27-943; O.11,650, 14,387)

Sec. 114-1583. Second Avenue.

Second Avenue, from Vine Street to Court Avenue.

Second Avenue, from Grand Avenue to north city limits.
(C62, § 30-660.04; O.8267; C75, § 27-675.04; O.9596; C79, § 27-675.04; C91, § 27-944; O.11,650, 13,218, 14,387)

Sec. 114-1584. Southwest Second Street.

Southwest Second Street, from Southwest Third Street to Vine Street.
(C91, § 27-944.01; O.13,218)

Sec. 114-1585. Third Street.

Third Street, from Laurel Street to Grand Avenue.

Third Street, from Vine Street to Court Avenue.
(C62, § 30-660.05; O.8267; C75, § 27-675.05; O.9596; C79, § 27-675.05; C91, § 27-945; O.11,650, 13,218, 14,387)

Sec. 114-1586. Southwest Third Street.

Southwest Third Street, from Vine Street to Jackson Avenue.
(C91, § 27-945.01; O.13,218)

Sec. 114-1587. Southeast Fifth Street.

Southeast Fifth Street, from Indianola Avenue to East County Line Road.
(C62, § 30-660.06; O.8267; C75, § 27-675.06; O.9593; C79, § 27-675.06; O.10,575; C91, § 27-946; O.11,650, 14,057, 14,387)

Sec. 114-1588. Southwest Fifth Street.

Southwest Fifth Street, from Murphy Street to Vine Street.
(C85, § 27-675.061; O.10,935; C91, § 27-947; O.11,650, 14,387)

Sec. 114-1588.01. Fifth Avenue.

Fifth Avenue, from Vine Street to Mulberry Street.

Fifth Avenue, from Watson Powell Jr Way to School Street.
(O.14,387)

Sec. 114-1589. Sixth Avenue.

Sixth Avenue, from Watson Powell Jr Way to north city limits.

Sixth Avenue, from Vine Street to Mulberry Street.
(C62, § 30-660.07; O.8267; C75, § 27-675.07; O.9596; C79, § 27-675.07; C91, § 27-948; O.11,650, 14,387)

Sec. 114-1590. East Sixth Street.

East Sixth Street, from East Vine Street to East Court Avenue.

East Sixth Street, from East Grand Avenue to Buchanan Street.
(C62, § 30-660.08; O.8267; C75, § 27-675.08; O.9596; C79, § 27-675.08; C91, § 27-949; O.11,650, 14,387)

Sec. 114-1591. Southeast Sixth Street.

Southeast Sixth Street, from Indianola Avenue to East Vine Street.
(C62, § 30-660.09; O.8267; C75, C79, § 27-675.09; C91, § 27-950; O.11,650, 14,387)

Sec. 114-1591.01. Southwest Sixth Street.

Southwest Sixth Street, from Vine Street to Southwest Seventh Street.
(O.14,387)

Sec. 114-1592. Seventh Street.

Seventh Street, from Vine Street to Mulberry Street.

Seventh Street, from Watson Powell Jr Way to Ascension Street.
(C62, § 30-660.10; O.8267; C75, § 27-675.10; O.9596; C79, § 27-675.10; C91, § 27-951; O.11,650, 14,387)

Sec. 114-1593. Southwest Seventh Street.

Southwest Seventh Street, from Indianola Road to Vine Street.
(C62, § 30-660.11; O.8267; C75, C79, § 27-675.11; C91, § 27-952; O.11,650, 14,057)

Sec. 114-1594. Eighth Place.

Eighth Place, from Keosauqua Way to Ninth Street.
(C75, § 27-675.1101; O.9593; C79, § 27-675.1101; C91, § 27-953; O.11,650)

Sec. 114-1595. Eighth Street.

Eighth Street, from the middle of the Eighth Street Viaduct to Mulberry Street.
(C62, § 30-660.12; O.8267; C75, § 27-675.12; O.9596; C79, § 27-675.12; C91, § 27-954; O.11,650)

Sec. 114-1596. Southwest Eighth Street.

Southwest Eighth Street, from Southwest Ninth to the middle of the Eighth Street Viaduct.
(C62, § 30-660.14; O.8267; C75, § 27-675.14; O.9593; C79, § 27-675.14; C91, § 27-955; O.11,650)

Sec. 114-1597. Ninth Street.

Ninth Street, from Vine Street to Mulberry Street.

Ninth Street, from Keosauqua Way to Hickman Road.
(C62, § 30-660.15; O.8267; C75, § 27-675.15; O.9596; C79, § 27-675.15; C91, § 27-956; O.11,650, 14,387)

Sec. 114-1598. East Ninth Street.

East Ninth Street, from East Grand Avenue to Hull Avenue.
(C62, § 30-660.16; O.8267; C75, C79, § 27-675.16; C91, § 27-957; O.11,650)

Sec. 114-1599. Southwest Ninth Street.

Southwest Ninth Street, from Bronze Street to Vine Street.
(C62, § 30-660.17; O.8267; C75, C79, § 27-675.17; C91, § 27-958; O.11,650, 14,905)

Sec. 114-1600. Reserved.

Editor's note—Ord. No. 15,397, § 1, adopted August 24, 2015, repealed § 114-1600, which pertained to East Tenth Street and derived from Code 1975, § 27-675.1701; Ord. No. 9593; Code 1979, § 27-675.1701; Code 1991, § 27-959; Ord. No. 11,650.

Sec. 114-1600.5. Eleventh Street.

Eleventh Street, from Euclid Avenue to Madison Avenue.
(O.13,772)

Sec. 114-1601. Twelfth Street.

Twelfth Street, from Madison Avenue to Aurora Avenue.

Twelfth Street, from High Street to Woodland Avenue.
(C62, § 30-660.18; O.8267; C75, C79, § 27-675.18; C91, § 27-960; O.11,650, 13,301, 13,772, 14,387, 14,635, 15,397)

Sec. 114-1602. East Twelfth Street.

East Twelfth Street, from East Walnut Street to East Grand Avenue.
(C62, § 30-660.20; O.8267; C75, C79, § 27-675.20; C91, § 27-961; O.11,650, 14,387, 15,397)

Sec. 114-1602.01. Southeast Twelfth Street.

Southeast Twelfth Street, from East Martin Luther King Jr Parkway to Maury Street.
(O.15,387)

Sec. 114-1603. Thirteenth Street.

Thirteenth Street, from University Avenue to Jefferson Street.
(C62, § 30-660.21; O.8267; C75, § 27-675.21; O.9596; C79, § 27-675.21; C91, § 27-962; O.11,650, 15,397)

Sec. 114-1604. Reserved.

Editor's note—Ord. No. 15,397, § 1, adopted August 24, 2015, repealed § 114-1604, which pertained to East Thirteenth Street and derived from Code 1985, § 27-675.211; Ord. No. 10,935; Code 1991, § 27-963; Ord. No. 11,650.

Sec. 114-1605. Reserved.

Editor's note—Ord. No. 14,387, § 1, adopted Nov. 8, 2004, repealed § 114-1605, which pertained to Fourteenth Street and derived from Code 1962, § 30-660.22; Ord. No. 8267; Code 1975; Code 1979, § 27-675.22; Code 1991, § 27-964; and Ord. No. 11,650.

Sec. 114-1606. East Fourteenth Street.

East Fourteenth Street, from East Vine Street to north city limits.
(C62, § 30-660.23; O.8267; C75, C79, § 27-675.23; C91, § 27-965; O.11,650)

Sec. 114-1607. Southeast Fourteenth Street.

Southeast Fourteenth Street, from East Vine Street to U.S. Highway 65/69.
(C62, § 30-660.24; O.8267; C75, C79, § 27-675.24; O.10,575; C85, § 27-675.24; O.11,302; C91, § 27-966; O.11,650)

Sec. 114-1608. Southwest Fourteenth Street.

Southwest Fourteenth Street, from Park Avenue to Havens Avenue.
(C62, § 30-660.25; O.8267; C75, § 27-675.25; O.9593; C79, § 27-675.25; C91, § 27-967; O.11,650, 14,387)

Sec. 114-1609. Fifteenth Street.

Fifteenth Street, from High Street to Crocker Street.

Fifteenth Street, Keosauqua Way to University Avenue.
(C62, § 30-660.26; O.8267; C75, C79, C85, § 27-675.26; O.11,581; C91, § 27-968; O.11,650, 14,387)

Sec. 114-1610. East Fifteenth Street.

East Fifteenth Street, from Dean Avenue to Maple Street.
(C62, § 30-660.27; O.8267; C75, § 27-675.27; O.9593; C79, § 27-675.27; C91, § 27-969; O.11,650)

Sec. 114-1610.01. Southeast fifteenth street.

Southeast Fifteenth Street, from East Martin Luther King Jr Parkway to Maury Street.
(O.15,387)

Sec. 114-1611. Southwest Fifteenth Street.

Southwest Fifteenth Street, from Havens Avenue to Amos Avenue.
(C79, § 27-675.281; O.10,575; C91, § 27-970; O.11,650)

Sec. 114-1612. Sixteenth Street.

Sixteenth Street, from Jefferson Avenue to Hickman Road.
(C62, § 30-660.29; O.8267; C75, C79, § 27-675.29; C91, § 27-971; O.11,650)

Sec. 114-1613. East Sixteenth Street.

East Sixteenth Street, from East Walnut Street to East Grand Avenue.
(C62, § 30-660.30; O.8267; C75, C79, § 27-675.30; C91, § 27-972; O.11,650)

Sec. 114-1614. Reserved.

Editor's note—Ord. No. 14,387, § 1, adopted Nov. 8, 2004, repealed § 114-1614, which pertained to Seventeenth Street and derived from Code 1962, § 30-660.32; Ord. No. 8267; Code 1975, § 27-675.32; Ord. No. 9596; Code 1979, § 27-675.32; Code 1991, § 27-973; and Ord. No. 11,650.

Sec. 114-1614.04. Eighteenth Street.

Eighteenth Street, from Locust Street to Ingersoll Avenue.
(O.14,387)

Sec. 114-1614.05. East Eighteenth Street.

East Eighteenth Street, from East Vine Street to Avenue Frederick M. Hubbell.
(O.14,387)

Sec. 114-1614.06. Southeast Eighteenth Street.

Southeast Eighteenth Street, from East Vine Street to Maury Street.
(O.14,387)

Sec. 114-1615. Nineteenth Street.

Nineteenth Street, from Grand Avenue to Ingersoll Avenue.

Nineteenth Street, from Center Street to Crocker Street.

Nineteenth Street, from Cottage Grove to Martin Luther King Jr Parkway.
(C62, § 30-660.34; O.8267; C75, C79, § 27-675.34; O.10,575; C91, § 27-974; O.11,650, 14,387)

Sec. 114-1616. Southeast Nineteenth Street.

Southeast Nineteenth Street, from King Avenue to East Park Avenue.
(C79, § 27-675.341; O.10,575; C91, § 27-975; O.11,650)

Sec. 114-1616.05. Southeast Twentieth Street.

Southeast Twentieth Street, from East Virginia Avenue to King Avenue.
(O.14,387)

Sec. 114-1617. East Twenty-first Street.

East Twenty-first Street, from Avenue Frederick M. Hubbell to Easton Boulevard.
(C62, § 30-660.35; O.8267; C75, C79, § 27-675.35; C91, § 27-976; O.11,650)

Sec. 114-1618. Southeast Twenty-second Street.

Southeast Twenty-second Street, from Evergreen Avenue to Hartford Avenue.
(C79, § 27-675.351; O.10,575; C85, § 27-675.351; O.11,103; C91, § 27-977; O.11,650, 13,539, 14,387, 16,067)

Sec. 114-1618.5. Reserved.

Editor's note—Ord. No. 15,397, § 1, adopted August 24, 2015, repealed § 114-1618.5, which pertained to East Twenty-third Street and derived from Ord. No. 14,634.

Sec. 114-1619. Southeast Twenty-third Street.

Southeast Twenty-third Street, from East Rose Avenue to Evergreen Avenue.
(C85, § 27-675.3511; O.11,581; C91, § 27-978; O.11,650)

Sec. 114-1620. Reserved.

Editor's note—Ord. No. 14,634, § 1, adopted March 12, 2007, repealed § 114-1620, which pertained to East Twenty-

second Street and derived from Code 1962, § 30-660.36; Ord. No. 8267; Code 1975; Code 1979, § 27-675.36; Code 1991, § 27-979; Ord. No. 11,650.

Sec. 114-1621. Reserved.

Editor's note—Ord. No. 15,397, § 1, adopted August 24, 2015, repealed § 114-1621, which pertained to Southwest Twenty-third Street and derived from Code 1975, § 27-675.361; Ord. No. 9593; Code 1979, § 27-675.361; Code 1991, § 27-980; Ord. No. 11,650.

Sec. 114-1622. Reserved.

Editor's note—Ord. No. 15,397, § 1, adopted August 24, 2015, repealed § 114-1622, which pertained to Twenty-fourth Street and derived from Code 1962, § 30-660.37; Ord. No. 8267; Code 1975; Code 1979, § 27-675.37; Code 1991, § 27-981; Ord. No. 11,650.

Sec. 114-1623. Reserved.

Editor's note—Ord. No. 15,397, § 1, adopted August 24, 2015, repealed § 114-1623, which pertained to East Twenty-fourth Street and derived from Code 1962, § 30-660.38; Ord. No. 8267; Code 1975; Code 1979, § 27-675.38; Code 1991, § 27-982; Ord. No. 11,650.

Sec. 114-1624. Reserved.

Editor's note—Ord. No. 15,397, § 1, adopted August 24, 2015, repealed § 114-1624, which pertained to Twenty-fifth Street and derived from Code 1962, § 30-660.39; Ord. No. 8267; Code 1975; Code 1979, § 27-675.39; Code 1991, § 27-983; Ord. No. 11,650.

Sec. 114-1625. Reserved.

Editor's note—Ord. No. 15,397, § 1, adopted August 24, 2015, repealed § 114-1625, which pertained to East Twenty-fifth Street and derived from Code 1962, § 30-660.40; Ord. No. 8267; Code 1975; Code 1979, § 27-675.40; Code 1991, § 27-984; Ord. No. 11,650.

Sec. 114-1626. Southeast Twenty-fifth Court.

Southeast Twenty-fifth Court, from Scott Street to East Martin Luther King Jr Parkway.
(C62, § 30-660.41; O.8267; C75, C79, § 27-675.41; C91, § 27-985; O.11,650, 15,397)

Sec. 114-1627. East Twenty-sixth Street.

East Twenty-sixth Street, from East Euclid Avenue to East Douglas Avenue.
(C79, § 27-675.411; O.10,067; C91, § 27-986; O.11,650)

Sec. 114-1628. Southwest Twenty-sixth Street.

Southwest Twenty-sixth Street, from Thornton Avenue to Watrous Avenue.
(C75, § 27-675.421; O.9534; C79, § 27-675.421; C91, § 27-987; O.11,650)

Sec. 114-1628.05. Reserved.

Editor's note—Ord. No. 15,397, § 1, adopted August 24, 2015, repealed § 114-1628.05, which pertained to Twenty-seventh Street and derived from Ord. No. 14,635.

Sec. 114-1628.06. Northeast Twenty-seventh Avenue.

Northeast Twenty-seventh Avenue, from East Oakhill Drive to east city limits.
(O.14,905)

Sec. 114-1629. Reserved.

Editor's note—Ord. No. 15,397, § 1, adopted August 24, 2015, repealed § 114-1629, which pertained to Twenty-eighth Street and derived from Code 1962, § 30-660.43; Ord. No. 8267; Code 1975; Code 1979, § 27-675.43; Code 1991, § 27-988; Ord. No. 11,650.

Sec. 114-1630. Southwest Twenty-eighth Street.

Southwest Twenty-eighth Street, from Park Avenue to Thornton Avenue.
(C75, § 27-675.431; O.9534; C79, § 27-675.431; C91, § 27-989; O.11,650)

Sec. 114-1631. Reserved.

Editor's note—Ord. No. 15,397, § 1, adopted August 24, 2015, repealed § 114-1631, which pertained to Southeast Twenty-eighth Street and derived from Code 1975, § 27-675.432; Ord. No. 9593; Code 1979, § 27-675.432; Code 1991, § 27-990; Ord. No. 11,650; Ord. No. 14,387.

Sec. 114-1632. East Twenty-ninth Street.

East Twenty-ninth Street, from East University Avenue to north city limits.
(C62, § 30-660.44; O.8267; C75, C79, § 27-675.44; C91, § 27-991; O.11,650, 14,387)

Sec. 114-1633. Thirtieth Street.

Thirtieth Street, from University Avenue to Euclid Avenue.
(C62, § 30-660.45; O.8267; C75, C79, § 27-675.45; C91, § 27-992; O.11,650, 14,387, 14,635)

Sec. 114-1634. East Thirtieth Street.

East Thirtieth Street, from East Court Avenue to State Street.
(C62, § 30-660.46; O.8267; C75, C79, C85, § 27-675.46; O.10,935; C91, § 27-993; O.11,650)

Sec. 114-1635. Southeast Thirtieth Street.

Southeast Thirtieth Street, from East Court Avenue to Vandalia Road.
(C62, § 30-660.47; O.8267; C75, C79, § 27-675.47; C91, § 27-994; O.11,650)

Sec. 114-1635.01. Southwest Thirtieth Street.

Southwest Thirtieth Street, from Park Avenue to George Flagg Parkway.
(O.14,387)

Sec. 114-1636. Thirty-first Street.

Thirty-first Street, from John Lynde Road to University Avenue.
(C62, § 30-660.48; O.8267; C75, C79, § 27-675.48; O.10,476; C91, § 27-995; O.11,650)

Sec. 114-1637. Southwest Thirty-first Street.

Southwest Thirty-first Street, from Lincoln Place Drive to John Lynde Road.

Southwest Thirty-first Street, from Park Avenue to McKinley Avenue.
(C79, § 27-675.481; O.10,278, 10,476; C91, § 27-996; O.11,650)

Sec. 114-1638. East Thirty-third Street.

East Thirty-third Street, from East University Avenue to Avenue Frederick M. Hubbell.
(C62, § 30-660.49; O.8267; C75, C79, § 27-675.49; C91, § 27-997; O.11,650)

Sec. 114-1639. Thirty-fourth Street.

Thirty-fourth Street, from University Avenue to Hickman Road.
(C62, § 30-660.50; O.8267; C75, C79, § 27-675.50; C91, § 27-998; O.11,650, 15,397, 15,726)

Sec. 114-1640. Southeast Thirty-fourth Street.

Southeast Thirty-fourth Street, from East Watrous Avenue to Easter Lake Drive.
(C85, § 27-675.501; O.11,302; C91, § 27-999; O.11,650, 14,905)

Sec. 114-1641. Thirty-fifth Street.

Thirty-fifth Street, from Grand Avenue to University Avenue.
(C62, § 30-660.51; O.8267; C75, C79, § 27-675.51; C91, § 27-1000; O.11,650)

Sec. 114-1641.01. Southeast Thirty-sixth Street.

Southeast Thirty-sixth Street, from Easter Lake Drive to East Army Post Road.
(O.15,397)

Sec. 114-1642. East Thirty-eighth Street.

East Thirty-eighth Street, from Easton Boulevard to East Douglas Avenue.

East Thirty-eighth Street, from East Broadway Avenue to north city limits.
(C62, § 30-660.52; O.8267; C75, C79, § 27-675.52; O.10,077; C91, § 27-1001; O.11,650, 14,905, 15,881)

Sec. 114-1643. Forty-first Street.

Forty-first Street, from Forest Avenue to Beaver Avenue.
(C62, § 30-660.54; O.8267; C75, C79, § 27-675.54; C91, § 27-1002; O.11,650)

Sec. 114-1644. Forty-second Street.

Forty-second Street, from John Lynde Road to Forest Avenue.
(C62, § 30-660.55; O.8267; C75, C79, § 27-675.55; C91, § 27-1003; O.11,650)

Sec. 114-1645. East Forty-second Street.

East Forty-second Street, from Williams Court to Avenue Frederick M. Hubbell.
(C62, § 30-660.56; O.8267; C75, C79, § 27-675.56; O.10,077, 10,575; C91, § 27-1004; O.11,650)

Sec. 114-1646. Southwest Forty-second Street.

Southwest Forty-second Street, from John Lynde Road to River Oaks Drive.

Southwest Forty-second Street, from Park Avenue to McKinley Avenue.
(C62, § 30-660.57; O.8267; C75, C79, C85, § 27-675.57; O.11,302; C91, § 27-1005; O.11,650, 14,387)

Sec. 114-1646.03. Southeast Forty-fifth Street.

Southeast Forty-fifth Street, from Evergreen Avenue to East Army Post Road.
(O.14,905)

Sec. 114-1646.05. Forty-eighth Street.

Forty-eighth Street, from University Avenue to Hickman Road.
(O.14,387)

Sec. 114-1647. Fiftieth Street.

Fiftieth Street, from Hickman Road to Urbandale Avenue.

Fiftieth Street, from Aurora Avenue to Madison Avenue.
(C79, § 27-675.581; O.10,207; C91, § 27-1006; O.11,650, 15,397, 16,067)

Sec. 114-1648. Fifty-fifth Street.

Fifty-fifth Street, from Brattleboro Avenue to Hickman Road.
(C62, § 30-660.59; O.8267; C75, C79, § 27-675.59; C91, § 27-1007; O.11,650, 15,559, 15,785)

Sec. 114-1649. Fifty-sixth Street.

Fifty-sixth Street, from Grand Avenue to Brattleboro Avenue.
(C62, § 30-660.60; O.8267; C75, C79, § 27-675.60; O.10,575; C91, § 27-1008; O.11,650, 14,387)

Sec. 114-1649.01. East Fifty-sixth Street.

East Fifty-sixth Street, from south city limits lying south of East Oakhill Drive to north city limits.
(O.14,905)

Sec. 114-1649.02. Southwest Fifty-sixth Street.

Southwest Fifty-sixth Street, from Park Avenue to Thornton Avenue.
(O.15,785)

Sec. 114-1650. Fifty-ninth Street.

Fifty-ninth Street, from Grand Avenue to Ingersoll Avenue.
(C62, § 30-660.61; O.8267; C75, C79, § 27-675.61; C91, § 27-1009; O.11,650)

Sec. 114-1650.05. Southwest Sixty-first Street.

Southwest Sixty-first Street, from Thornton Avenue to Willowmere Drive.
(O.14,387, 15,785)

Sec. 114-1651. Sixty-third Street.

Sixty-third Street, from Muskogee Avenue to Hickman Road.
(C91, § 27-1009.05; O.13,268)

Sec. 114-1652. Southwest Sixty-third Street.

Southwest Sixty-third Street, from Muskogee Avenue to Southwest McKinley Avenue.
(C91, § 27-1009.06; O.13,268, 14,339)

Sec. 114-1652.01. Reserved.

Editor's note—Ord. No. 15,397, § 1, adopted August 24, 2015, repealed § 114-1652.01, which pertained to Allison Avenue and derived from Ord. No. 14,387.

Sec. 114-1652.02. Arlington Avenue.

Arlington Avenue, from Sixth Avenue to Franklin Avenue.
(O.14,387)

Sec. 114-1653. Army Post Road.

Army Post Road, from South Union Street to Fleur Drive.

Army Post Road, from Fleur Drive to Iowa Highway 28.
(C62, § 30-660.63; O.8267; C75, C79, § 27-675.63; O.10,575; C85, § 27-675.63; O.11,302; C91, § 27-1010; O.11,650, 13,643, 14,387, 15,559)

Sec. 114-1654. East Army Post Road.

East Army Post Road, from South Union Street to east city limits.
(C85, § 27-675.6301; O.11,302; C91, § 27-1011; O.11,650)

Sec. 114-1654.01. Ascension Street.

Ascension Street, from Sixth Avenue to Seventh Street.
(O.14,387)

Sec. 114-1655. Amos Avenue.

Amos Avenue, from Southwest Fourteenth Street to Southwest Fifteenth Street.
(C79, § 27-675.631; O.10,575; C91, § 27-1012; O.11,650)

Sec. 114-1656. East Aurora Avenue.

East Aurora Avenue, from East Twenty-fifth Street to East Twenty-ninth Street.
(C62, § 30-660.64; O.8267; C75, C79, § 27-675.64; C91, § 27-1013; O.11,650, 14,387, 14,635, 15,397)

Sec. 114-1657. Aurora Avenue.

Aurora Avenue, from Beaver Avenue to west city limits.
(C79, § 27-675.641; O.10,575; C91, § 27-1014; O.11,650)

Sec. 114-1658. Avenue Frederick M. Hubbell.

Avenue Frederick M. Hubbell, from East Grand Avenue to East Forty-third Street.
(C62, § 30-660.65; O.8267; C75, C79, § 27-675.65; C91, § 27-1015; O.11,650, 14,905)

Sec. 114-1658.05. Bancroft Street.

Bancroft Street, from Southwest Ninth Street to Thomas Beck Road.
(O.14,387)

Sec. 114-1659. Beaver Avenue.

Beaver Avenue, from Forest Avenue to north city limits.
(C62, § 30-660.66; O.8267; C75, C79, § 27-675.66; C91, § 27-1016; O.11,650)

Sec. 114-1660. Bell Avenue.

Bell Avenue, from Thomas Beck Road to Southwest Thirtieth Street.
(C62, § 30-660.67; O.8267; C75, § 27-675.67; O.8991, 9593; C79, § 27-675.67; C91, § 27-1017; O.11,650, 14,387)

Sec. 114-1661. Bloomfield Road.

Bloomfield Road, from Southeast Fourteenth Street to Indianola Avenue.
(C85, § 27-675.68; O.11,581; C91, § 27-1018; O.11,650, 14,387)

Sec. 114-1661.02. East Broadway Avenue.

East Broadway Avenue, from East Thirty-eighth Street to east city limits.
(O.14,905)

Sec. 114-1661.03. Bronze Street

Bronze Street, from Fleur Drive to Southwest Ninth Street.
(O.14,905)

Sec. 114-1661.05. Southeast Brooks Drive.

Southeast Brooks Drive, from East Watrous Avenue to Evergreen Avenue.
(O.14,905)

Sec. 114-1662. Reserved.

Editor's note—Ord. No. 15,242, § 1, adopted Dec. 9, 2013, repealed § 114-1662, which pertained to Browns Woods Drive and derived from Code 1991, § 27-1018.01; Ord. No. 13,363.

Sec. 114-1663. Carpenter Avenue.

Carpenter Avenue, from Nineteenth Street to Martin Luther King Jr Parkway.
(C62, § 30-660.69; O.8267; C75, C79, § 27-675.69; C91, § 27-1019; O.11,650, 11,935)

Sec. 114-1664. Center Street.

Center Street, from Second Avenue to Third Street.

Center Street, from Fifth Avenue to Keosauqua Way.

Center Street, from Fifteenth Street to Nineteenth Street.
(C62, § 30-660.70; O.8267; C75, C79, § 27-675.70; C91, § 27-1020; O.11,650, 11,935, 13,301, 14,387, 15,397)

Sec. 114-1665. Reserved.

Editor's note—Ord. No. 14,418, § 1, adopted March 7, 2005, repealed § 114-1665 which pertained to Chamberlain Avenue and derived from Code 1962, § 30-660.71; Ord. No. 8267; Code 1975; Code 1979, § 27-675.71; Ord. No. 10,575; Code 1991, § 27-1021; Ord. No. 11,650; and Ord. No. 14,387.

Sec. 114-1666. Reserved.

Editor's note—Ord. No. 15,397, § 1, adopted August 24, 2015, repealed § 114-1666, which pertained to Chautauqua Parkway and derived from Code 1962, § 30-660.72; Ord. No. 8267; Code 1975; Code 1979, § 27-675.72; Code 1991, § 27-1022; Ord. No. 11,650; Ord. No. 14,387.

Sec. 114-1667. Clark Street.

Clark Street, from Thirtieth Street to Thirty-fourth Street.
(C62, § 30-660.73; O.8267; C75, C79, § 27-675.73; C91, § 27-1023; O.11,650, 14,635, 15,397)

Sec. 114-1668. Reserved.

Editor's note—Ord. No. 14,057, repealed § 114-1668 which pertained to Clifton Avenue and derived from Code 1962, § 30-660.74; Ord. No. 8267; Code 1975, Code 1979, § 27-675.74; Code 1991, § 27-1024; Ord. No. 11,650.

Sec. 114-1668.01. Reserved.

Editor's note—Ord. No. 15,355, § 1, adopted March 9, 2015, repealed § 114-1668.01, which pertained to Southwest Connector and derived from Ord. No. 15,242.

Sec. 114-1669. Cornell Street.

Cornell Street, from East Sheridan Avenue to East Aurora Avenue.
(C62, § 30-660.75; O.8267; C75, C79, § 27-675.75; C91, § 27-1025; O.11,650, 14,387, 16,338)

Sec. 114-1670. Cottage Grove Avenue.

Cottage Grove Avenue, from Nineteenth Street to Twenty-eighth Street.
(C62, § 30-660.76; O.8267; C75, C79, § 27-675.76; O.10,575; C91, § 27-1026; O.11,650)

Sec. 114-1670.04. County Line Road.

County Line Road, from Southwest Ninth Street to Clover Hill Drive (Warren County).
(O.14,387)

Sec. 114-1670.05. East County Line Road.

East County Line Road, from Clover Hill Drive (Warren County) to Southeast Fifth Street.

East County Line Road, from a point 250 feet west of Southridge Boulevard to Southridge Boulevard.
(O.14,387, 14,982)

Sec. 114-1671. East Court Avenue.

East Court Avenue, from Dey Street to East Eighteenth Street.
(C62, § 30-660.77; O.8267; C75, C79, § 27-675.77; C91, § 27-1027; O.11,650, 14,387)

Sec. 114-1672. Crocker Street.

Crocker Street, from Fifth Avenue to Seventh Street.

Crocker Street, from Fifteenth Street to Nineteenth Street.
(C62, § 30-660.78; O.8267; C75, C79, § 27-675.78; O.10,057; C85, § 27-675.78; O.10,935; C91, § 27-1028; O.11,650, 14,387, 14,418)

Sec. 114-1673. Cummins Parkway.

Cummins Parkway, from University Avenue to Merle Hay Road.
(C79, § 27-675.781; O.10,575; C91, § 27-1029; O.11,650)

Sec. 114-1674. Day Street.

Day Street, from Sixth Avenue to Seventh Street.
(C62, § 30-660.79; O.8267; C75, C79, § 27-675.79; C91, § 27-1030; O.11,650, 14,387, 14,635, 15,397)

Sec. 114-1675. Dean Avenue.

Dean Avenue, from Redhead Road to east city limits.
(C62, § 30-660.84; O.8267; C75, C79, § 27-675.84; C91, § 27-1037; O.11,650)

Sec. 114-1676. Delaware Avenue.

Delaware Avenue, from Easton Boulevard to north city limits.
(C62, § 30-660.81; O.8267; C75, C79, § 27-675.81; C91, § 27-1032; O.11,650)

Sec. 114-1677. Des Moines Street.

Des Moines Street, from Pennsylvania Avenue to East Ninth Street.
(C85, § 27-675.811; O.10,935; C91, § 27-1033; O.11,650)

Sec. 114-1677.02. Dixon Street.

Dixon Street, from East Euclid Avenue to East Aurora Avenue.
(O.14,387)

Sec. 114-1678. Douglas Avenue.

Douglas Avenue, from Martin Luther King Jr Parkway to west city limits.
(C62, § 30-660.82; O.8267; C75, C79, § 27-675.82; C91, § 27-1034; O.11,650, 11,935)

Sec. 114-1679. East Douglas Avenue.

East Douglas Avenue, from East Twenty-sixth Street to East Twenty-ninth Street.

East Douglas Avenue, from Avenue Frederick M. Hubbell to east city limits.
(C62, § 30-660.83; O.8267; C75, C79, § 27-675.83; O.10,067; C91, § 27-1035; O.11,650, 14,387, 15,397)

Sec. 114-1680. Easter Lake Drive.

Easter Lake Drive, from Indianola Avenue to Southeast Thirty-sixth Street.
(C85, § 27-675.835; O.11,302; C91, § 27-1036; O.11,650, 14,387, 15,397)

Sec. 114-1681. Easton Boulevard.

Easton Boulevard, from East University Avenue to east city limits.
(C62, § 30-660.84; O.8267; C75, C79, § 27-675.84; C91, § 27-1037; O.11,650, 14,387, 14,634)

Sec. 114-1682. Euclid Avenue.

Euclid Avenue, from Martin Luther King Jr Parkway to First Street.

Euclid Avenue, from Lower Beaver Road to Post Street.
(C62, § 30-660.85; O.8267; C75, § 27-675.85; O.9593; C79, § 27-675.85; C91, § 27-1038; O.11,650, 11,935, 14,387)

Sec. 114-1683. Evergreen Avenue.

Evergreen Avenue, from East Watrous Avenue to Southeast Thirty-fourth Street.

Evergreen Avenue, from Indianola Avenue to East Marion Street.

Evergreen Avenue, from Southeast Brooks Drive to Southeast Forty-fifth Street.
(C85, § 27-675.851; O.11,302; C91, § 27-1039; O.11,650, 14,387, 14,635, 14,905)

Sec. 114-1684. East Euclid Avenue.

East Euclid Avenue, from First Street to Avenue Frederick M. Hubbell.
(C62, § 30-660.86; O.8267; C75, § 27-675.86; O.9593; C79, § 27-675.86; C91, § 27-1040; O.11,650)

Sec. 114-1685. Fleur Drive.

Fleur Drive, from Bronze Street to West Martin Luther King Jr Parkway.

Fleur Drive, from Locust Street southwesterly including the north bound and south bound ramp systems to its reconnection with the north-south bound Fleur Drive.
(C62, § 30-660.87; O.8267; C75, C79, § 27-675.87; C91, § 27-1041; O.11,650, 13,643, 14,387, 14,418, 14,905)

Sec. 114-1686. Forest Avenue.

Forest Avenue, from Second Avenue to Forty-eighth Street.
(C62, § 30-660.88; O.8267; C75, C79, § 27-675.88; C91, § 27-1042; O.11,650, 14,387)

Sec. 114-1687. Franklin Avenue.

Franklin Avenue, from Second Avenue to Arlington Avenue north of Franklin Avenue.

Franklin Avenue, from Thirty-fourth Street to Sixty-third Street.
(C62, § 30-660.89; O.8267; C75, C79, § 27-675.89; C91, § 27-1043; O.11,650, 14,387)

Sec. 114-1687.01. Gannett Avenue.

Gannett Avenue, from Southwest Twenty-eighth Street to Southwest Thirty-fourth Street.
(O.15,397)

Sec. 114-1687.05. George Flagg Parkway.

George Flagg Parkway, from Fleur Drive to Park Avenue.
(O.14,387)

Sec. 114-1687.06. Good Park Drive.

Good Park Drive from Keosauqua Way to University Avenue.
(O.14,387)

Sec. 114-1688. Grand Avenue.

Grand Avenue, from Eighteenth Street to west city limits.
(C62, § 30-660.90; O.8267; C75, § 27-675.90; O.9596; C79, § 27-675.90; C91, § 27-1044; O.11,650, 14,387)

Sec. 114-1689. East Grand Avenue.

East Grand Avenue, from Pennsylvania Avenue to East Thirtieth Street.
(C62, § 30-660.91; O.8267; C75, § 27-675.91; O.9596; C79, § 27-675.91; O.10,575; C91, § 27-1045; O.11,650)

Sec. 114-1690. Guthrie Avenue.

Guthrie Avenue, from East Fourteenth Street to East Twenty-ninth Street.
(C62, § 30-660.92; O.8267; C75, C79, § 27-675.92; O.10,402; C91, § 27-1046; O.11,650, 15,726)

Sec. 114-1691. Havens Avenue.

Havens Avenue, from Southwest Fourteenth Street to Southwest Fifteenth Street.
(C79, § 27-675.931; O.10,575; C91, § 27-1048; O.11,650)

Sec. 114-1692. Hartford Avenue.

Hartford Avenue, from South Union Street to Southeast Twenty-Second Street.
(C62, § 30-660.94; O.8267; C75, C79, § 27-675.94; O.10,575; C91, § 27-1049; O.11,650, 14,387, 16,067)

Sec. 114-1693. Hickman Road.

Hickman Road, from Sixth Avenue to west city limits.
(C62, § 30-660.95; O.8267; C75, C79, § 27-675.95; C91, § 27-1050; O.11,650)

Sec. 114-1694. High Street.

High Street, from Twelfth Street to Fifteenth Street.
(C85, § 27-675.951; O.11,581; C91, § 27-1051; O.11,650)

Sec. 114-1694.01. Hubbell Avenue.

Hubbell Avenue, from East Forty-third Street to northeasterly city limits.
(O.14,905)

Sec. 114-1695. Hull Avenue.

Hull Avenue, from Second Avenue to East Twenty-ninth Street.
(C62, § 30-660.96; O.8267; C75, C79, § 27-675.96; C91, § 27-1052; O.11,650)

Sec. 114-1696. Reserved.

Editor's note—Ord. No. 14,057, repealed § 114-2236 which pertained to Indianola Avenue and derived from Code 1962, § 30-660.97; Ord. No. 8267; Code 1975; Code 1979, § 27-675.97; Code 1991, § 27-1053; Ord. No. 11,650; Ord. No. 14,057.

Sec. 114-1697. Indianola Avenue.

Indianola Avenue, from Jackson Avenue to Southridge Boulevard.
(C62, § 30-660.98; O.8267; C75, C79, C85, § 27-675.98; O.11,302; C91, § 27-1054; O.11,650, 14,387, 14,982)

Sec. 114-1697.01. Indianola Road.

Indianola Road, from Southeast First Street to Southwest Ninth Street.
(O.14,057, 14,387, 14,635)

Sec. 114-1698. Ingersoll Avenue.

Ingersoll Avenue, from High Street to Fifty-ninth Street.
(C62, § 30-660.99; O.8267; C75, C79, § 27-675.99; C91, § 27-1055; O.11,650, 14,387)

Sec. 114-1699. Iowa Highway 28.

Iowa Highway 28, from Southwest McKinley Avenue to South City Limits.
(C91, § 27-1055.05; O.13,268, 14,339, 14,387)

Sec. 114-1700. Jackson Avenue.

Jackson Avenue, from Southwest Third Street to South Union Street.
(C62, § 30-660.101; O.8267; C75, C79, § 27-675.101; C91, § 27-1056; O.11,650, 14,387)

Sec. 114-1701. East Jackson Avenue.

East Jackson Avenue, from South Union Street to Southeast Sixth Street.
(C62, § 30-660.102; O.8267; C75, § 27-675.102; O.9474; C79, § 27-675.102; C91, § 27-1057; O.11,650)

Sec. 114-1702. Jefferson Avenue.

Jefferson Avenue, from Thirteenth Street to Sixteenth Street.
(C62, § 30-660.103; O.8267; C75, C79, § 27-675.103; C91, § 27-1058; O.11,650, 15,397)

Sec. 114-1703. Johnson Court.

Johnson Court, from Southeast Fourteenth Street to Dean Avenue.

Johnson Court, from Maple Street to Fremont Street.
(C75, § 27-675.1031; O.9593; C79, § 27-675.1031; C91, § 27-1059; O.11,650)

Sec. 114-1704. Keosauqua Way.

Keosauqua Way, from Eighth Street to Nineteenth Street.
(C62, § 30-660.105; O.8267; C75, C79, § 27-675.105; C91, § 27-1060; O.11,650)

Sec. 114-1705. King Avenue.

King Avenue, from Southeast Nineteenth Street to Southeast Twentieth Street.
(C79, § 27-675.1051; O.10,575; C85, § 27-675.1051; O.11,103; C91, § 27-1061; O.11,650, 14,387)

Sec. 114-1706. Kingman Boulevard.

Kingman Boulevard, from Cottage Grove Avenue to Polk Boulevard.
(C62, § 30-660.106; O.8267; C75, C79, § 27-675.106; O.10,005, 10,575; C91, § 27-1062; O.11,650)

Sec. 114-1707. East Lacona Avenue.

East Lacona Avenue, from Southeast Sixth Street to Southeast Fourteenth Street.
(C62, § 30-660.107; O.8267; C75, C79, § 27-675.107; C91, § 27-1063; O.11,650, 14,387)

Sec. 114-1708. Leado Avenue.

Leado Avenue, from Urbandale Avenue to Thirtieth Street.
(C62, § 30-660.108; O.8267; C75, C79, § 27-675.108; C91, § 27-1064; O.11,650, 14,387)

Sec. 114-1708.02. Lincoln Place Drive.

Lincoln Place Drive, from Thirty-first Street to River Oaks Drive.
(O.14,387)

Sec. 114-1709. Lower Beaver Road.

Lower Beaver Road, from Euclid Avenue to north city limits.
(C62, § 30-660.111; O.8267; C75, C79, § 27-675.111; C91, § 27-1065; O.11,650)

Sec. 114-1710. Lyon Street.

Lyon Street, from East Sixth Street to East Ninth Street.
(C85, § 27-675.1111; O.10,935; C91, § 27-1066; O.11,650)

Sec. 114-1711. Madison Avenue.

Madison Avenue, from Eleventh Street to Twelfth Street.

Madison Avenue, from Martin Luther King Jr Parkway to Fiftieth Street.
(C62, § 30-660.112; O.8267; C75, C79, § 27-675.112; C91, § 27-1067; O.11,650, 13,301, 14,387, 14,635, 15,397, 16,338)

Sec. 114-1711.01. Reserved.

Editor's note—Ord. No. 14,635, § 1, adopted March 12, 2007, repealed § 114-1711.01, which pertained to Maple Street and derived from Ord. No. 14,387.

Sec. 114-1711.02. Reserved.

Editor's note—Ord. No. 15,397, § 1, adopted August 24, 2015, repealed § 114-1711.02, which pertained to East Market Street and derived from Ord. No. 14,387.

Sec. 114-1712. Martin Luther King Jr Parkway.

Martin Luther King Jr Parkway, from Ingersoll Avenue to Madison Avenue.

Martin Luther King Jr Parkway, from Ingersoll Avenue to West Martin Luther King Jr Parkway.
(C62, § 30-660.93; O.8267; C75, C79, § 27-675.93; C91, § 27-1047; O.11,650; C91, § 27-1067.01; O.11,935, 14,418, 16,338)

Sec. 114-1712.01. West Martin Luther King Jr Parkway.

Martin Luther King Jr Parkway, from the center of Des Moines River to Martin Luther King Jr Parkway.
(O.14,418, 14,982)

Sec. 114-1712.02. East Martin Luther King Jr Parkway.

East Martin Luther King Jr Parkway, from the center of Des Moines River to Southeast Thirtieth Street.
(O.14,982, 15,387, 15,466)

Sec. 114-1713. Maury Street.

Maury Street, from Southeast Sixth Street to Southeast Twenty-eighth Street.
(C62, § 30-660.113; O.8267; C75, C79, § 27-675.113; C91, § 27-1068; O.11,650, 15,466)

Sec. 114-1714. McKinley Avenue.

McKinley Avenue, from South Union Street to Southwest Forty-second Street.
(C62, § 30-660.114; O.8267; C75, C79, § 27-675.114; O.10,278; C91, § 27-1069; O.11,650, 14,339)

Sec. 114-1715. East McKinley Avenue.

East McKinley Avenue, from South Union Street to Indianola Avenue.
(C62, § 30-660.115; O.8267; C75, C79, § 27-675.115; C91, § 27-1070; O.11,650, 16,338)

Sec. 114-1716. Southwest McKinley Avenue.

Southwest McKinley Avenue, from a point 50 feet west of Southwest Forty-sixth Street to Iowa Highway 28.
(C85, § 27-675.1151; O.11,302; C91, § 27-1071; O.11,650, 13,363)

Sec. 114-1717. Meredith Drive.

Meredith Drive, from Beaver Avenue to Merle Hay Road.
(C91, § 27-1071.05; O.13,298)

Sec. 114-1718. Merklin Way.

Merklin Way, from Hickman Road to Franklin Avenue.
(C62, § 30-660.116; O.8267; C75, C79, § 27-675.116; C91, § 27-1072; O.11,650)

Sec. 114-1719. Merle Hay Road.

Merle Hay Road, from University Avenue to north city limits.
(C62, § 30-660.117; O.8267; C75, C79, § 27-675.117; C91, § 27-1073; O.11,650)

Sec. 114-1720. Merle Hay Frontage Road.

Merle Hay Frontage Road, from the start of the frontage road lying south of Meredith Drive to north city limits.
(C85, § 27-675.1171; O.10,935; C91, § 27-1074; O.11,650, 14,387)

Sec. 114-1721. Murphy Street.

Murphy Street, from Southwest Fifth Street to Southwest Ninth Street.
(C62, § 30-660.118; O.8267; C75, C79, § 27-675.118; C91, § 27-1075; O.11,650)

Sec. 114-1721.02. East Oakhill Drive.

East Oakhill Drive, from East Fifty-sixth Street to Northeast Twenty-seventh Avenue.
(O.14,905)

Sec. 114-1721.05. Reserved.

Editor's note—Ord. No. 15,397, § 1, adopted August 24, 2015, repealed § 114-1721.05, which pertained to East Ovid Avenue and derived from Ord. No. 14,387.

Sec. 114-1722. Park Avenue.

Park Avenue, from Southwest Sixty-third Street to South Union Street.
(C62, § 30-660.120; O.8267; C75, C79, § 27-675.120; C91, § 27-1076; O.11,650)

Sec. 114-1723. East Park Avenue.

East Park Avenue, from South Union Street to Southeast Twenty-second Street.
(C62, § 30-660.121; O.8267; C75, C79, § 27-675.121; O.10,575; C91, § 27-1077; O.11,650, 14,387)

Sec. 114-1724. Park Street.

Park Street, from Keosauqua Way to Second Avenue.
(C91, § 27-1077.05; O.13,301)

Sec. 114-1725. Payton Avenue.

Payton Avenue, from Indianola Road to Southeast Thirty-sixth Street.
(O.15,785)

Editor's note—Prior to reenactment by Ord. No. 15,785, Ord. No. 15,397, § 1, adopted August 24, 2015, repealed § 114-1725, which pertained to Payne Road and derived from Code 1962, § 30-660.122; Ord. No. 8267; Code 1975; Code 1979, § 27-675.122; Code 1991, § 27-1078; Ord. No. 11,650; Ord. No. 11,935.

Sec. 114-1726. Reserved.

Editor's note—Ord. No. 15,397, § 1, adopted August 24, 2015, repealed § 114-1726, which pertained to East Payton Avenue and derived from Code 1979, § 27-675.1221; Ord. No. 10,575; Code 1991, § 27-1079; Ord. No. 11,650.

Sec. 114-1727. Pennsylvania Avenue.

Pennsylvania Avenue, from East Grand Avenue to a point 140 feet north of Cherokee Avenue.
(C62, § 30-660.123; O.8267; C75, § 27-675.123; O.9596; C79, § 27-675.123; C91, § 27-1080; O.11,650, 14,387)

Sec. 114-1727.02. East Pine Avenue.

East Pine Avenue, from Indianola Avenue to Three Lakes Parkway.
(O.15,397)

Sec. 114-1728. Polk Boulevard.

Polk Boulevard, from Grand Avenue to University Avenue.
(C62, § 30-660.124; O.8267; C75, C79, § 27-675.124; C91, § 27-1081; O.11,650)

Sec. 114-1728.05. Porter Avenue.

Porter Avenue from Southwest Ninth to Fleur Drive.
(O.14,387)

Sec. 114-1728.06. Post Street.

Post Street, from Euclid Avenue to Martin Luther King Jr Parkway.
(O.14,387)

Sec. 114-1729. Redhead Road.

Redhead Road, from East Court Avenue to Dean Avenue.
(C62, § 30-660.126; O.8267; C75, C79, § 27-675.126; C91, § 27-1082; O.11,650)

Sec. 114-1729.03. Rittenhouse Street.

Rittenhouse Street, from Fleur Drive to Southwest Twenty-eighth Street.
(O.15,397)

Sec. 114-1729.05. River Oaks Drive.

River Oaks Drive, from Lincoln Place Drive to Southwest Forty-second Street.
(O.14,387)

Sec. 114-1730. Reserved.

Editor's note—Ord. No. 15,397, § 1, adopted August 24, 2015, repealed § 114-1730, which pertained to East Rose Avenue and derived from Code 1985, § 27-675.1261; Ord. No. 11,581; Code 1991, § 27-1083; Ord. No. 11,650.

Sec. 114-1730.05. Saylor Road.

Saylor Road, from a point 140 feet north of Cherokee Avenue to East Sheridan Avenue.
(O.14,387)

Sec. 114-1731. Scott Avenue.

Scott Avenue, from Southeast First Street to Southeast Sixth Street.

Scott Avenue, from Southeast Twenty-fifth Court to the east city limits.
(C62, § 30-660.127; O.8267; C75, § 27-675.127; O.9593; C79, § 27-675.127; O.10,005, 10,575; C91, § 27-1084; O.11,650, 14,387, 15,726)

Sec. 114-1732. Reserved.

Editor's note—Ord. No. 15,397, § 1, adopted August 24, 2015, repealed § 114-1732, which pertained to East Seneca Avenue and derived from Code 1962, § 30-660.128; Ord. No. 8267; Code 1975; Code 1979, § 27-675.128; Code 1991, § 27-1085; Ord. No. 11,650.

Sec. 114-1733. Reserved.

Editor's note—Ord. No. 15,397, § 1, adopted August 24, 2015, repealed § 114-1733, which pertained to Shawnee Avenue and derived from Code 1962, § 30-660.129; Ord. No. 8267; Code 1975; Code 1979, § 27-675.129; Code 1991, § 27-1086; Ord. No. 11,650.

Sec. 114-1734. Reserved.

Editor's note—Ord. No. 15,397, § 1, adopted August 24, 2015, repealed § 114-1734, which pertained to East Shawnee Avenue and derived from Code 1962, § 30-660.130; Ord. No. 8267; Code 1975; Code 1979, § 27-675.130; Code 1991, § 27-1087; Ord. No. 11,650.

Sec. 114-1734.05. Southridge Boulevard.

Southridge Boulevard, from Southeast Fourteenth Street to south city limits.
(O.14,905, 14,982)

Sec. 114-1735. South Union Street.

South Union Street, from Hartford Avenue to Army Post Road.
(C75, § 27-675.1311; O.9593; C79, § 27-675.1311; O.10,575; C91, § 27-1088; O.11,650, 14,057, 14,387)

Sec. 114-1736. State Street.

State Street, from East Twenty-ninth Street to East Thirtieth Street.
(C85, § 27-675.1312; O.10,935; C91, § 27-1089; O.11,650)

Sec. 114-1737. Thomas Beck Road.

Thomas Beck Road, from Bell Avenue to Indianola Road.
(C62, § 30-660.132; O.8267; C75, C79, § 27-675.132; C91, § 27-1090; O.11,650, 14,057)

Sec. 114-1738. Thornton Avenue.

Thornton Avenue, from Southwest Twenty-sixth Street to Southwest Twenty-eighth Street.

Thornton Avenue, from Southwest Fifty-sixth Street to Southwest Sixty-third Street.
(C75, § 27-675.1321; O.9534; C79, § 27-675.1321; C91, § 27-1091; O.11,650, 15,785)

Sec. 114-1739. Tuttle Street.

Tuttle Street, from Southwest Fifth Street to Southwest Ninth Street.
(C91, § 27-1091.05; O.13,298, 14,387)

Sec. 114-1740. University Avenue.

University Avenue, from Maine Street to west city limits.
(C62, § 30-660.135; O.8267; C75, C79, § 27-675.135; C91, § 27-1092; O.11,650)

Sec. 114-1741. East University Avenue.

East University Avenue, from Maine Street to east city limits.
(C62, § 30-660.136; O.8267; C75, C79, § 27-675.136; C91, § 27-1093; O.11,650)

Sec. 114-1742. Urbandale Avenue.

Urbandale Avenue, from west city limits to Leado Avenue.
(C62, § 30-660.137; O.8267; C75, C79, § 27-675.137; C91, § 27-1094; O.11,650)

Sec. 114-1743. Reserved.

Editor's note—Ord. No. 14,982, § 1, adopted Dec. 20, 2010, repealed § 114-1743 which pertained to U.S. Highway 69 and derived from Code 1985, § 27-675.1381; Ord. No. 11,302; Code 1991, § 27-1095; Ord. No. 11,650; Ord. No. 14,387; Ord. No. 14,905.

Sec. 114-1743.001. Veterans Parkway.

Veterans Parkway, from Iowa Highway 28 to west city limits.
(O.15,355)

Sec. 114-1743.01. East Virginia Avenue.

East Virginia Avenue, from Southeast Twentieth Street to Southeast Twenty-second Street.
(O.14,387)

Sec. 114-1744. Reserved.

Editor's note—Ord. No. 15,263, § 1, adopted March 10, 2014, repealed § 114-1744, which pertained to East Walnut Street and derived from Code 1962, § 30-660.139; Ord. No. 8267; Code 1975, § 26-675.139; Ord. No. 9596; Code 1979, § 27-675.139; Code 1991, § 27-1096; Ord. No. 11,650; Ord. No. 14,387.

Sec. 114-1744.02. Reserved.

Editor's note—Ord. No. 14,635, § 1, adopted March 12, 2007, repealed § 114-1744.02, which pertained to Water Street and derived from Ord. No. 14,387.

Sec. 114-1744.03. East Walnut Street.

East Walnut Street, from East Fourteenth Street to East Eighteenth Street.
(O.15,670)

Sec. 114-1745. East Watrous Avenue.

East Watrous Avenue, from South Union Street to Southeast Fourteenth Street.

East Watrous Avenue, from East Marion Street easterly to Evergreen Avenue.

East Watrous Avenue, from Southeast Thirty-fourth Street to Southeast Brooks Drive.
(C75, § 27-675.1391; O.9226; C79, C85, § 27-675.1391; O.11,302; C91, § 27-1097; O.11,650, 14,635, 14,905)

Sec. 114-1746. Watrous Avenue.

Watrous Avenue, from South Union Street to Southwest Twenty-sixth Street.
(C62, § 30-660.140; O.8267; C75, § 27-675.140; O.9226, 9534; C79, § 27-675.140; C91, § 27-1098; O.11,650)

Sec. 114-1747. Reserved.

Editor's note—Ord. No. 15,397, § 1, adopted August 24, 2015, repealed § 114-1747, which pertained to Westover Boulevard and derived from Code 1975, § 27-675.1401; Ord. No. 9021; Code 1979, § 27-675.1401; Code 1991, § 27-1099; Ord. No. 11,650.

Sec. 114-1747.01. Willowmere Drive.

Willowmere Drive, from Southwest Sixty-first Street to Southwest Sixty-third Street.
(O.14,387)

Sec. 114-1748. Woodland Avenue.

Woodland Avenue, from Twelfth Street to Thirty-first Street.
(C62, § 30-660.141; O.8267; C75, C79, § 27-675.141; C91, § 27-1100; O.11,650, 15,397)

Sec. 114-1749. Williams Court.

Williams Court, from Williams Street to East Forty-second Street.
(C79, § 27-675.1411; O.10,575; C91, § 27-1101; O.11,650)

Sec. 114-1750. Williams Street.

Williams Street, from East University Avenue to Williams Court.
(C79, § 27-675.1412; O.10,575; C91, § 27-1102; O.11,650, 13,691, 14,387)

Sec. 114-1751. Reserved.

Editor's note—Ord. No. 15,397, § 1, adopted August 24, 2015, repealed § 114-1751, which pertained to Wright Street and derived from Code 1962, § 30-660.142; Ord. No. 8267; Code 1975; Code 1979, § 27-675.142; Code 1991, § 27-1103; Ord. No. 11,650.

Sec. 114-1752. Vandalia Road.

Vandalia Road, from Southeast Thirtieth Street to east city limits.
(C62, § 30-660.143; O.8267; C75, C79, § 27-675.143; C91, § 27-1104; O.11,650)

Secs. 114-1753—114-1780. Reserved.

DIVISION 5. ONE-WAY STREETS

Subdivision I. In General

Secs. 114-1781—114-1805. Reserved.

Subdivision II. Westbound

Sec. 114-1806. Designated.

As provided in and in accordance with section 114-305.01 of this chapter, the streets or indicated portions thereof set out in the following sections of this subdivision are designated as westbound one-way streets, and drivers of vehicles thereon shall move only in a westbound direction.

Sec. 114-1807. Carpenter Avenue.

Carpenter Avenue, from Eleventh Street to Thirteenth Street, westbound.
(O.15,920)

Editor's note—Prior to reenactment by Ord. No. 15,920, Ord. No. 14,285, § 1, adopted Oct. 20, 2003, repealed § 114-1807 which pertained to Buchanan Street and derived from Code 1962, § 30-250; Ord. No. 8084; Codes 1975 and 1979, § 27-260; Code 1991, § 27-1105; and Ord. No. 11,650.

Sec. 114-1808. Center Street.

Center Street, from Sixth Avenue to Keosauqua Way, westbound.

Center Street, from Forty-second Street to Polk Boulevard, westbound.
(C62, § 30-251; O.8084; C75, C79, § 27-261; C91, § 27-1106; O.11,650, 12,042, 13,727, 14,437)

Sec. 114-1809. Reserved.

Editor's note—Ord. No. 15,753, § 1, adopted March 11, 2019, repealed § 114-1809, which pertained to Crocker Street and derived from Code 1962, § 30-252; Ord. No. 8084; Code 1975; Code 1979, § 27-262; Code 1991, § 27-1107; Ord. No. 11,650.

Sec. 114-1810. Day Street.

Day Street, from First Street to Ninth Street, westbound.

Day Street, from Eighteenth Street to Cottage Grove Avenue, westbound.
(C62, § 30-253; O.8084; C75, C79, § 27-263; C85, § 27-1108; O.11,650; C91, § 27-1108)

Sec. 114-1810.01. Geil Avenue.

Geil Avenue, from Southwest Fourteenth Street to Southwest Fifteenth Street, westbound, between 7:00 a.m. and 9:00 a.m. and between 2:00 p.m. and 4:00 p.m.; school days.
(O.14,132, 15,681)

Sec. 114-1811. Grand Avenue.

Grand Avenue, from Fifth Avenue to Fifteenth Street, westbound.
(C62, § 30-254; O.8084; C75, C79, § 27-264; C91, § 27-1109; O.11,650, 16,245, 16,491)

Sec. 114-1811.1. Hoffman Avenue.

Hoffman Avenue, from East Eighth Street east for a distance of 100 feet, westbound, between 7:00 a.m. and 9:00 a.m. and between 2:00 p.m. and 4:00 p.m.; school days.
(O.14,965, 15,681)

Sec. 114-1812. Kasson Street.

Kasson Street, northwesterly from East Court Avenue to East Walnut Street, westbound.
(C62, § 30-255; O.8084; C75, C79, § 27-265; C91, § 27-1110; O.11,650)

Sec. 114-1812.1. Loomis Avenue.

Loomis Avenue, from Southwest Ninth Street to Glover Avenue, westbound.
(O.13,972)

Sec. 114-1813. Maple Street.

Maple Street, from East Fourteenth Street to a point 270 feet east of East Fifteenth Street, westbound.
(C62, § 30-256; O.8084; C75, C79, § 27-266; C91, § 27-1111; O.11,650)

Sec. 114-1814. Reserved.

Editor's note—Ord. No. 14,437, § 1, adopted April 25, 2005, repealed § 114-1814, which pertained to Railroad Court and derived from Code 1962, § 30-258; Ord. No. 8084; Code 1975; Code 1979, § 27-268; Code 1991, § 27-1113; and Ord. No. 11,650.

Sec. 114-1815. Walker Street.

Walker Street, from Pennsylvania Avenue to East Ninth Street, westbound.
(C85, § 27-268.01; O.11,547; C91, § 27-1114; O.11,650)

Sec. 114-1816. Reserved.

Editor's note—Ord. No. 14,608, § 1, adopted Nov. 20, 2006, repealed § 114-1816, which pertained to Walnut Street and derived from Code 1962, § 30-259; Ord. No. 8084; Code 1975; Code 1979, § 27-269; Ord. No. 10,734; Code 1991, § 27-1115; Ord. No. 11,650.

Secs. 114-1817—114-1845. Reserved.

Subdivision III. Eastbound

Sec. 114-1846. Designated.

As provided in and in accordance with section 114-305.01 of this chapter, the streets or indicated portions thereof set out in the following sections of this subdivision are designated as eastbound one-way streets, and drivers of vehicles thereon shall move only in an eastbound direction.

Sec. 114-1847. Boulder Avenue.

Boulder Avenue, from Southwest Ninth Street to Southwest Seventh Street, eastbound, between 1:00 p.m. and 4:00 p.m., school days.
(O.15,681)

Sec. 114-1847.1. Capitol Avenue.

Capitol Avenue, from East Fifteenth Street to East Sixteenth Street, eastbound.
(O.13,954)

Sec. 114-1848. Center Street.

Center Street, from Martin Luther King Jr Parkway to Nineteenth Street, eastbound.
(C62, § 30-260; O.8084; C75, C79, § 27-270; C91, § 27-1117; O.11,650, 11,935)

Sec. 114-1848.5. Chamberlain Avenue.

Chamberlain Avenue, from a point 200 feet west of Forty-second Street to Forty-second Street, eastbound.
(O.15,736)

Sec. 114-1849. Reserved.

Editor's note—Ord. No. 14,608, § 1, adopted Nov. 20, 2006, repealed § 114-1849, which pertained to Court Avenue and derived from Code 1962, § 30-261; Ord. No. 8084; Code 1975; Code 1979, § 27-271; Code 1991, § 27-1118; Ord. No. 11,650; Ord. No. 14,472.

Sec. 114-1850. Euclid Avenue.

Euclid Avenue, from Lower Beaver Road to Thirtieth Street, eastbound.
(C62, § 30-262; O.8084; C75, C79, § 27-272; C91, § 27-1119; O.11,650)

Sec. 114-1850.5. Filmore Street.

Filmore Street, from East Twelfth Street to East Thirteenth Street, east bound.
(O.13,762)

Sec. 114-1851. Reserved.

Editor's note—Ord. No. 13,855, § 1, adopted Aug. 21, 2000, repealed § 114-1851 which pertained to Keosauqua Way and derived from Code 1962, § 30-264; Ord. No. 8084; Ord. No. 8762; Code 1975, Code 1979 and Code 1985, § 27-274; Ord. No. 10,930; Code 1991, § 27-1120; Ord. No. 11,650; and Ord. No. 12,042.

Sec. 114-1852. Reserved.

Editor's note—Ord. No. 15,426, § 1, adopted Nov. 23, 2015, repealed § 114-1852, which pertained to Linden Street and derived from Code 1962, § 30-265; Ord. No. 8084; Code 1975; Code 1979, § 27-275; Code 1991, § 27-1121; Ord. No. 11,650.

Sec. 114-1853. Locust Street.

Locust Street, from Fifteenth Street to Second Avenue, eastbound.
(C62, § 30-266; O.8084; C75, C79, § 27-276; C91, § 27-1122; O.11,650, 14,250, 16,491)

Sec. 114-1854. Reserved.

Editor's note—Ord. No. 14,250, § 1, adopted July 14, 2003, repealed § 114-1854 which pertained to East Locust Street and derived from Code 1962, § 30-267; Ord. No. 8084; Code 1975 and Code 1979, § 27-277; Ord. No. 10,260; Code 1991, § 27-1123; and Ord. No. 11,650.

Sec. 114-1855. Lyon Street.

Lyon Street, from East Fourteenth Street to East Sixteenth Street, eastbound.
(C62, § 30-268; O.8084; C75, C79, § 27-278; C91, § 27-1124; O.11,650)

Sec. 114-1855.05. Maple Street.

Maple Street, from East Twelfth Street to East Thirteenth Street, eastbound.
(O.14,669)

Sec. 114-1856. Reserved.

Editor's note—Ord. No. 13,773, § 1, adopted Dec. 20, 1999, repealed § 114-1856 which pertained to Mulberry Street and derived from Ord. No. 10,931; Code 1991, § 27-1125; and Ord. No. 11,650.

Sec. 114-1857. Park Street.

Park Street, from Keosauqua Way to Sixth Avenue, eastbound.
(C91, § 27-1125.01; O.12,042, 14,437)

Sec. 114-1857.05. Raccoon Street.

Raccoon Street, from Southeast Sixth Street to Southeast Seventh Street, eastbound.
(O.16,491)

Sec. 114-1858. Railroad Avenue.

Railroad Avenue, from Southeast Twenty-fourth Court to Southeast Twenty-fifth Street, eastbound.
(C62, § 30-271; O.8084; C75, C79, § 27-281; C91, § 27-1126; O.11,650)

Sec. 114-1859. Rollins Avenue.

Rollins Avenue, from Thirty-seventh Street to Thirty-fifth Street, eastbound.

Rollins Avenue, from Forty-second Street to Forty-first Street, eastbound.
(C62, § 30-272; O.8084; C75, C79, § 27-282; C91, § 27-1127; O.11,650)

Sec. 114-1860. School Street.

School Street, from Seventh Street to Second Avenue, eastbound.

School Street, from Martin Luther King Jr Parkway to Eighteenth Street, eastbound.
(C62, § 30-273; O.8084; C75, C79, § 27-283; C91, § 27-1128; O.11,650, 11,935)

Sec. 114-1860.05. Reserved.

Editor's note—Ord. No. 16,194, § 1, adopted Nov. 7, 2022, repealed § 114-1860.05, which pertained to St. Johns Road and derived from Ord. No. 16,182.

Sec. 114-1861. Walker Street.

Walker Street, from East Eighteenth Street to East Nineteenth Street, eastbound.
(C62, § 30-274; O.8084; C75, C79, § 27-284; C91, § 27-1129; O.11,650)

Sec. 114-1861.01. Reserved.

Editor's note—Ord. No. 14,579, § 1, adopted August 7, 2006, repealed § 114-1861.01, which pertained to Watson Powell Jr Way and derived from Ord. No. 13,855; and Ord. No. 14,437.

Secs. 114-1863—114-1890. Reserved.

Subdivision IV. Northbound

Sec. 114-1891. Designated.

As provided in and in accordance with section 114-305.01 of this chapter, the streets or indicated portions thereof set out in the following sections of this subdivision are designated as northbound one-way streets, and drivers of vehicles thereon shall move only in a northbound direction.

Sec. 114-1892. Second Avenue.

Second Avenue, from Vine Street to Laurel Street, northbound.
(C62, § 30-276; O.8084; C75, C79, § 27-286; C91, § 27-1130; O.11,650, 13,218)

Sec. 114-1893. Southwest Second Street.

Southwest Second Street, from Southwest Third Street to Vine Street, northbound.
(C91, § 27-1130.01; O.11,848, 13,218)

Sec. 114-1894. Reserved.

Editor's note—Ord. No. 15,736, § 1, adopted Dec. 17, 2018, repealed § 114-1894, which pertained to Fourth Street and derived from Code 1962, § 30-277; Ord. No. 8084; Code 1975; Code 1979, § 27-287; Ord. No. 9911; Code 1991, § 27-1131; Ord. No. 11,650; Ord. No. 14,437; Ord. No. 14,608.

Sec. 114-1895. Sixth Avenue.

Sixth Avenue, from Mulberry Street to Ascension Street, northbound.

Sixth Avenue, from Vine Street to Cherry Street, northbound.
(C62, § 30-278; O.8084; C75, § 27-288; O.9021; C79, § 27-288; C91, § 27-1132; O.11,650, 13,773, 14,437)

Sec. 114-1895.5. Southwest Sixth Street.

Southwest Sixth Street, from Southwest Seventh Street to Vine Street, northbound.
(O.13,773)

Sec. 114-1896. Seventh Street.

Seventh Street, from Seneca Avenue to Madison Avenue, northbound.
(C91, § 27-1132.05; O.13,176)

Sec. 114-1897. Eighth Place.

Eighth Place, from Park Street to Center Street, northbound.
(C62, § 30-279.01; O.8389; C75, C79, § 27-289; C91, § 27-1133; O.11,650, 12,042, 13,028)

Sec. 114-1898. Eighth Street.

Eighth Street, from a point 500 feet south of Murphy Street to Mulberry Street, including the service road west of the viaduct from Tuttle Street to Elm Street and the service road west of the viaduct from Cherry Street to Mulberry Street, northbound.

Eighth Street, from Mulberry Street to Keosauqua Way, northbound.

Eighth Street, from College Avenue south for a distance of 200 feet, northbound, between 7:00 a.m. and 9:00 a.m. and 2:00 p.m. and 4:00 p.m., school days.
(C62, § 30-280; O.8084, 8389; C75, C79, § 27-290; C91, § 27-1134; O.11,650, 15,363, 15,681)

Sec. 114-1899. Ninth Street.

Ninth Street, on the service road east of the Raccoon River Bridge, from a point 480 feet south of Morgan Street to Morgan Street, northbound.
(C62, § 30-281; O.8084; C75, C79, § 27-291; C91, § 27-1135; O.11,650)

Sec. 114-1900. Tenth Street.

Tenth Street, from Pleasant Street to Chestnut Street, northbound.
(C62, § 30-281.01; O.8878; C75, C79, § 27-291.01; C91, § 27-1136; O.11,650)

Sec. 114-1901. Twelfth Street.

Twelfth Street, from Mulberry Street to High Street, northbound.
(C62, § 30-282; O.8084; C75, C79, § 27-292; C91, § 27-1137; O.11,650)

Sec. 114-1901.1. East Twelfth Street.

East Twelfth Street, from Tiffin Avenue south for a distance of 100 feet, northbound, between 7:00 a.m. and 9:00 a.m. and between 2:00 p.m. and 4:00 p.m., school days.
(O.14,965, 15,681)

Sec. 114-1902. East Thirteenth Street.

East Thirteenth Street, from Maple Street to Walker Street, northbound.
(C79, § 27-293; O.10,250; C91, § 27-1138; O.11,650)

Sec. 114-1903. Fifteenth Street.

Fifteenth Street, from Keosauqua Way to University Avenue, northbound.
(C62, § 30-284; O.8084; C75, C79, § 27-294; C91, § 27-1139; O.11,650)

Sec. 114-1904. East Fifteenth Street.

East Fifteenth Street, from Dean Avenue to Maple Street, northbound.
(C62, § 30-285; O.8084; C75, C79, § 27-295; C91, § 27-1140; O.11,650)

Sec. 114-1905. Reserved.

Editor's note—Ord. No. 16,491, § 1, adopted August 18, 2025, repealed § 114-1905, which pertained to Eighteenth Street and derived from Code 1962, § 30-286; Ord. No. 8084; Code 1975; Code 1979, § 27-296; Code 1991, § 27-1141; Ord. No. 11,650.

Sec. 114-1906. East Eighteenth Street.

East Eighteenth Street, from Maple Street to Walker Street, northbound.
(C62, § 30-287; O.8084; C75, C79, § 27-297; C91, § 27-1142; O.11,650)

Sec. 114-1907. Nineteenth Street.

Nineteenth Street, from Center Street to Washington Avenue, northbound.
(C62, § 30-288; O.8084; C75, C79, § 27-298; C91, § 27-1143; O.11,650)

Sec. 114-1908. Southeast Twenty-Fifth Street.

Southeast Twenty-fifth Street, from Railroad Avenue to Railroad Court, northbound.
(C62, § 30-289; O.8084; C75, C79, § 27-299; C91, § 27-1144; O.11,650)

Sec. 114-1909. Twenty-seventh Street.

Twenty-seventh Street, from Carpenter Avenue to Forest Avenue, northbound.
(C91, § 27-1144.05; O.11,913)

Sec. 114-1910. Thirty-seventh Street.

Thirty-seventh Street, from Kingman Boulevard to Cottage Grove Avenue, northbound, between 8:00 a.m. and 1:00 p.m. on Sundays.
(C62, § 30-290; O.8084; C75, C79, § 27-300; C91, § 27-1145; O.11,650)

Sec. 114-1910.1. East Thirty-ninth Street.

East Thirty-ninth Street, from Mattern Avenue to Easton Boulevard, northbound, between 7:00 a.m. and 4:00 p.m., school days.
(O.15,681)

Sec. 114-1910.2. Cambridge Street.

Cambridge Street, from Euclid Avenue south for a distance of 100 feet, northbound, between 1:00 p.m. and 4:00 p.m., school days.
(O.15,713)

Sec. 114-1911. Johnson Court.

Johnson Court, beginning at its south connection with East Fourteenth Street and extending northeast to Dean Avenue, northbound.

Johnson Court, beginning at Maple Street and extending northwest to its connection with East Fourteenth Street, northbound.
(C79, § 27-300.01; O.9719; C91, § 27-1146; O.11,650)

Sec. 114-1912. Lay Street.

Lay Street, from East Washington Avenue to East Jefferson Avenue, northbound.
(C75, § 27-301.01; O.9597; C79, § 27-301.01; C91, § 27-1148; O.11,650)

Sec. 114-1912.1. Oxford Street.

Oxford Street, from Tiffin Avenue south for a distance of 100 feet, northbound, between 2:00 p.m. and 4:00 p.m., school days.
(O.15,163, 15,681)

Sec. 114-1913. Pennsylvania Avenue.

Pennsylvania Avenue, from East Grand Avenue to Buchanan Street, northbound.
(C62, § 30-292; O.8084; C75, C79, § 27-302; C91, § 27-1149; O.11,650, 15,854)

Secs. 114-1914—114-1940. Reserved.

Subdivision V. Southbound

Sec. 114-1941. Designated.

As provided in and in accordance with section 114-305.01 of this chapter, the streets or indicated portions thereof set out in the following sections of this subdivision are designated as southbound one-way streets, and drivers of vehicles thereon shall move only in a southbound direction.

Sec. 114-1942. Third Street.

Third Street, from Laurel Street to Vine Street, southbound.
(C62, § 30-293; O.8084; C75, C79, § 27-303; C91, § 27-1150; O.11,650, 13,218)

Sec. 114-1943. Southwest Third Street.

Southwest Third Street, from Vine Street to Southwest Second Street, southbound.
(C91, § 27-1150.01; O.11,848, 13,218)

Sec. 114-1944. Reserved.

Editor's note—Ord. No. 16,245, § 1, adopted May 8, 2023, repealed § 114-1944, which pertained to Fifth Avenue and derived from Code 1962, § 30-294; Ord. No. 8084; Code 1975; Code 1979, § 27-304; Ord. No. 9911; Code 1991, § 27-1151; Ord. No. 11,650; Ord. No. 14,437.

Sec. 114-1945. East Sixth Street.

East Sixth Street, from Buchanan Street to Des Moines Street, southbound.
(C62, § 30-295; O.8084; C75, C79, § 27-305; C91, § 27-1152; O.11,650)

Sec. 114-1946. Seventh Street.

Seventh Street, from Ascension Street to Vine Street, southbound.
(C62, § 30-296; O.8084; C75, C79, § 27-306; C91, § 27-1153; O.11,650, 13,773)

Sec. 114-1946.5. Southwest Seventh Street.

Southwest Seventh Street, from Vine Street to Southwest Sixth Street, southbound.

Southwest Seventh Street, from Boulder Avenue to Park Avenue, southbound, between 1:00 p.m. and 4:00 p.m., school days.
(O.13,773, 15,681)

Sec. 114-1947. Ninth Street.

Ninth Street, from Center Street to a point 400 feet south of Murphy Street, including the service road east of the viaduct from Mulberry Street to Cherry Street, and the service road west of the viaduct from Elm Street to Tuttle Street, and the service road west of the Raccoon River Bridge from Morgan Street to a point 480 feet south thereof, southbound.
(C62, § 30-297; O.8084; C75, C79, § 27-307; C91, § 27-1154; O.11,650, 12,042)

Sec. 114-1948. Reserved.

Editor's note—Ord. No. 14,838, § 1, adopted Feb. 23, 2009, repealed § 114-1948, which pertained to Thirteenth Street and derived from Code 1962, § 30-298; Ord. No. 8084; Code 1975; Code 1979, § 27-308; Code 1991, § 27-1155; Ord. No. 11,650; Ord. No. 14,537.

Sec. 114-1949. East Fourteenth Street.

East Fourteenth Street, from the south curbline of Fremont Street to a point 645 feet south of the south curbline of East Court Avenue, southbound.
(C62, § 30-299; O.8084; C75, C79, § 27-309; C91, § 27-1156; O.11,650)

Sec. 114-1949.01. Southwest Fifteenth Street.

Southwest Fifteenth Street, from Geil Avenue to Burnham Avenue, southbound, between 7:00 a.m. and 9:00 a.m. and between 2:00 p.m. and 4:00 p.m.; school days.
(O.14,132, 15,681)

Sec. 114-1950. Reserved.

Editor's note—Ord. No. 16,491, § 1, adopted August 18, 2025, repealed § 114-1950, which pertained to Seventeenth Street. and derived from Code 1962, § 30-300; Ord. No. 8084; Code 1975; Code 1979, § 27-310; Code 1991, § 27-1157; Ord. No. 11,650.

Sec. 114-1951. Nineteenth Street.

Nineteenth Street, from Ingersoll Avenue to Grand Avenue, southbound.

Nineteenth Street, from Woodland Avenue to High Street, southbound.
(C62, § 30-301; O.8084; C75, C79, C85, § 27-311; O.10,768; C91, § 27-1158; O.11,650)

Sec. 114-1952. Southeast Twenty-fourth Court.

Southeast Twenty-fourth Court, from Railroad Court to Railroad Avenue, southbound.
(C62, § 30-302; O.8084; C75, C79, § 27-312; C91, § 27-1159; O.11,650)

Sec. 114-1953. East Twenty-fifth Street.

East Twenty-fifth Street, from Easton Boulevard to Elizabeth Avenue, southbound.
(C62, § 30-303; O.8084; C75, C79, § 27-313; C91, § 27-1160; O.11,650)

Sec. 114-1954. Thirty-eighth Street.

Thirty-eighth Street, from Cottage Grove Avenue to Kingman Boulevard, southbound, between 8:00 a.m. and 1:00 p.m. on Sundays.
(C62, § 30-304; O.8084; C75, C79, § 27-314; C91, § 27-1161; O.11,650)

Sec. 114-1954.1. East Thirty-ninth Court.

East Thirty-ninth Court, from Easton Boulevard to Mattern Avenue, southbound, between 7:00 a.m. and 4:00 p.m., school days.
(O.15,681)

Sec. 114-1955. Fifty-sixth Street.

Fifty-sixth Street, from University Avenue to Brattleboro Avenue, southbound.
(C91, § 27-1161.01; O.13,387)

Sec. 114-1956. Ascension Street.

Ascension Street, from Sixth Avenue to Seventh Street, southbound.
(C62, § 30-305; O.8084; C75, C79, § 27-315; C91, § 27-1162; O.11,650)

Sec. 114-1957. Good Park Drive.

Good Park Drive, from University Avenue to Keosauqua Way, southbound.
(C62, § 30-306; O.8084; C75, C79, § 27-316; C91, § 27-1163; O.11,650)

Sec. 114-1958. Martin Luther King Jr Parkway.

Martin Luther King Jr Parkway, from Washington Avenue to Center Street, southbound.
(C62, § 30-307; O.8084; C75, C79, § 27-317; C91, § 27-1164; O.11,650, 11,935)

Sec. 114-1959. Merklin Way.

Merklin Way, southeasterly from Hickman Road and Merle Hay Road to Franklin Avenue, southbound.
(C62, § 30-308; O.8084; C75, C79, § 27-319; C91, § 27-1165; O.11,650)

Secs. 114-1960—114-1985. Reserved.

DIVISION 6. THROUGH STREETS

Sec. 114-1986. Designated.

As provided in and in accordance with section 114-321.02 of this chapter, the streets indicated in the following sections of this division are designated as through streets. Vehicles on

intersecting streets as indicated shall obey restrictions indicated by stop or yield signs as noted in the following sections.

Sec. 114-1987. Reserved.

Editor's note—Ord. No. 14,437, § 1, adopted April 25, 2005, repealed § 114-1987, which pertained to East First Street and derived from Code 1962, § 30-333; Ord. No. 8084; Code 1975; Code 1979, § 27-344; Ord. No. 10,730; Code 1985, § 27-344; Ord. No. 11,516; Code 1991, § 27-1166; and Ord. No. 11,650.

Sec. 114-1988. First Street.

First Street, at Corning Avenue, stop.

First Street, at Tiffin Avenue, stop.
(C85, § 27-344.01; O.10,799; C91, § 27-1167; O.11,650, 13,047, 13,241)

Sec. 114-1989. Southeast First Street.

The driver of a vehicle southbound on Southwest Water Street using the connecting roadway to turn left at Southeast First Street shall stop for southbound traffic on Southeast First Street, stop.

The driver of a vehicle southbound on Southwest Water Street at Southeast First Street shall yield the right-of-way to southbound traffic on Southeast First Street, yield.

Southeast First Street, from the north line of East Livingston Avenue to the east line of Indianola Avenue, stop.
(C62, § 30-334; O.8084; C75, § 27-345; C79, §§ 27-345, 27-534.01; O.9983, 10,730; C91, § 27-1168; O.11,650, 14,057, 14,437)

Sec. 114-1990. Southwest First Street.

Southwest First Street, at Edison Avenue, stop.

Southwest First Street, at Hillside Avenue, stop.
(O.15,210, 15,914)

Sec. 114-1991. Second Avenue.

Second Avenue, from the north line of Vine Street to the north corporate limits, stop.
(C62, §§ 30-336, 30-538; O.8084; C75, C79, §§ 27-347, 27-550; O.10,730; C85, § 27-347; O.11,516; C91, § 27-1170; O.11,650, 13,218)

Sec. 114-1992. Southeast Second Street.

Southeast Second Street, at East Lally Street, stop.
(C91, § 27-1170.05; O.13,241, 14,982)

Sec. 114-1993. Southwest Second Street.

Southwest Second Street, at Line Drive, stop.

Southwest Second Street, from Southwest Third Street to the north line of Vine Street, stop.

Southwest Second Street, at Hughes Avenue, stop.

Southwest Second Street, at Miller Avenue, stop.

Southwest Second Street, at Rose Avenue, stop.
(C62, § 30-337.01; O.8387; C75, C79, § 27-348.01; O.10,730; C85, § 27-348.01, O.11,066; C91, § 27-1171; O.11,650, 11,848, 13,218, 13,241, 13,317, 14,437)

Sec. 114-1994. Third Street.

Third Street, from the north line of Vine Street to the south line of School Street, stop.

Third Street, at Creighton Avenue, stop.
(C62, § 30-338; O.8084; C75, C79, § 27-349; O.10,730; C91, § 27-1172; O.11,650, 13,218, 13,241)

Sec. 114-1995. Southwest Third Street.

Southwest Third Street, from the north line of Vine Street to the north line of Jackson Avenue, stop.
(C91, § 27-1172.01; O.11,848, 13,218)

Sec. 114-1996. Southeast Third Street.

Southeast Third Street, at East Vine Street, stop.

Southeast Third Street, at East Dunham Avenue, stop.

Southeast Third Street, at East Fulton Drive, stop.

Southeast Third Street, at East Rose Avenue, stop.

Southeast Third Street, from the south line of Wilmers Avenue to the north line of East Maxwelton Drive, stop.

Southeast Third Street, at East Emma Avenue, stop.

Southeast Third Street, at East Diehl Avenue, stop.

Southeast Third Street, at Hart Avenue, stop.
(C91, § 27-1172.05; O.13,102, 13,241, 16,370)

Sec. 114-1997. Fourth Street.

Fourth Street, at Shawnee Avenue, stop.

Fourth Street, at Seneca Avenue, stop.

Fourth Street, at Boston Avenue, stop.
(C62, § 30-339; O.8084; C75, C79, § 27-350; O.10,730; C91, § 27-1173; O.11,650, 12,042, 13,241, 14,579, 15,736)

Sec. 114-1998. Southeast Fourth Street.

Southeast Fourth Street, at Columbus Avenue Stop.

Southeast Fourth Street, at Granger Avenue Stop.

Southeast Fourth Street, from the north line of East Market Street to the north line of Scott Avenue, stop.

Southeast Fourth Street, at East Lally Street, stop.
(C85, § 27-351; O.10,747; C91, § 27-1174; O.11,650, 13,047, 13,241, 13,724)

Sec. 114-1999. Southwest Fourth Street.

Southwest Fourth Street, at Rose Avenue, stop.
(C91, § 27-1174.05; O.13,241)

Sec. 114-2000. Fifth Avenue.

Fifth Avenue, from the south line of Cherry Street to the south line of School Street, stop.
(C62, § 30-341; O.8084; C75, C79, § 27-352; O.10,730; C91, § 27-1175; O.11,650)

Sec. 114-2001. Southeast Fifth Street.

Southeast Fifth Street, from the south line of East Court Avenue to the north line of Raccoon Street, stop.

Southeast Fifth Street, from the north line of the west leg of Bell Avenue to the south line of the east leg of Bell Avenue, stop.

Southeast Fifth Street, from the south line of Indianola Avenue to the north line of East Park Avenue, stop.

Southeast Fifth Street, from the south line of East Park Avenue to the north line of East Watrous Avenue, stop.

Southeast Fifth Street, from the south line of East Watrous Avenue to the north line of East McKinley Avenue, stop.

Southeast Fifth Street, from the south line of East McKinley Avenue to the north line of East Army Post Road, stop.
(C62, § 30-342; O.8084; C75, § 27-353; O.9613; C79, § 27-353; O.10,730; C91, § 27-1176; O.11,650, 13,241, 13,901, 14,057, 14,982, 15,670)

Sec. 114-2002. Southwest Fifth Street.

Southwest Fifth Street, from the south line of Cherry Street to the Southwest Fifth Street Bridge, stop.

Southwest Fifth Street, at Virginia Avenue, stop.

Southwest Fifth Street, at Maxwelton Drive, stop.

Southwest Fifth Street, at Leland Avenue, stop.
(C62, § 30-343; O.8084; C75, § 27-354; O.9226; C79, § 27-354; O.10,730; C91, § 27-1177; O.11,650, 13,317, 15,203)

Sec. 114-2003. Sixth Avenue.

Sixth Avenue, from the north line of Cherry Street to the north corporate limits, stop.
(C62, § 30-344; O.8084; C75, C79, § 27-355; O.10,730; C91, § 27-1178; O.11,650)

Sec. 114-2004. East Sixth Street.

East Sixth Street, from the north line of East Court Avenue to the south line of East University Avenue, stop.
(C62, § 30-345; O.8084; C75, C79, § 27-356; O.10,730; C91, § 27-1179; O.11,650)

Sec. 114-2005. Southeast Sixth Street.

Southeast Sixth Street, from the south line of East Court Avenue to the north line of Scott Avenue, stop.

Southeast Sixth Street, from the south line of Scott Avenue to the north line of Hartford Avenue, stop.

Southeast Sixth Street, from the south line of Hartford Avenue to the north line of Indianola Avenue, stop.
(C62, § 30-346; O.8084, 8108; C75, § 27-357; O.9390; C79, § 27-357; O.10,730; C91, § 27-1180; O.11,650, 14,057)

Sec. 114-2006. Seventh Street.

Seventh Street, from the middle of the Seventh Street Viaduct to the north line of Laurel Street, stop.

Seventh Street, at Washington Avenue, stop.

Seventh Street, at Beckwith Street, stop.
(C62, § 30-347; O.8084; C75, § 27-358; O.9508; C79, § 27-358; O.10,730; C91, § 27-1181; O.11,650, 13,241)

Sec. 114-2007. East Seventh Street.

East Seventh Street, from the north line of Hull Avenue to the south line of East Euclid Avenue, stop.
(C62, § 30-348; O.8084; C75, C79, § 27-359; O.10,730; C91, § 27-1182; O.11,650)

Sec. 114-2007.5. Reserved.

Editor's note—Ord. No. 14,982, § 1, adopted Dec. 20, 2010, repealed § 114-2007.5 which pertained to Southeast Seventh Street and derived from Ord. No. 13,726; Ord. No. 14,665; Ord. No. 14,738.

Sec. 114-2008. Southwest Seventh Street.

Southwest Seventh Street, from the middle of the Seventh Street Viaduct to the south line of Indianola Road, stop.

Southwest Seventh Street, at Marion Street, stop.

Southwest Seventh Street, at Trowbridge Avenue, stop.
(C62, § 30-349; O.8084; C75, C79, § 27-360; O.10,730; C91, § 27-1183; O.11,650, 13,241, 14,057)

Sec. 114-2009. Eighth Place.

Eighth Place, from the north line of Keosauqua Way to the east line of Ninth Street, stop.
(C75, § 27-360.01; O.9593; C79, § 27-360.01; O.10,730; C91, § 27-1184; O.11,650)

Sec. 114-2010. Eighth Street.

Eighth Street, at Shawnee Avenue, stop.

Eighth Street, at Seneca Avenue, stop.

Eighth Street, from the middle of the Eighth Street Viaduct to the south line of Crocker Street, stop.

Eighth Street at College Avenue, stop.

Eighth Street, at Clinton Avenue, stop.
(C62, § 30-350; O.8084; C75, § 27-361; O.9593; C79, § 27-361; O.10,730; C85, § 27-361; O.11,416; C91, § 27-1185; O.11,650, 13,241, 14,102)

Sec. 114-2011. East Eighth Street.

East Eighth Street, at Tiffin Avenue, stop.

East Eighth Street, at East Seneca Avenue, stop.
(C85, § 27-361.005, O.11,293; C91, § 27-1186; O.11,650, 13,241)

Sec. 114-2012. Southeast Eighth Street.

Southeast Eighth Street, from the south line of Maury Street to the south line of East Railroad Avenue, stop.

Southeast Eighth Street, at East Broad Street, stop.

Southeast Eighth Street, from the south line of Indianola Avenue to the north line of East Watrous Avenue, stop.

Southeast Eighth Street, at Diehl Avenue, stop.
(C62, § 30-350.01; O.8844; C75, § 27-361.01; O.9593; C79, § 27-361.01; O.10,730; C91, § 27-1187; O.11,650, 13,047, 13,135, 13,241, 13,726, 14,550, 14,982)

Sec. 114-2013. Southwest Eighth Street.

Southwest Eighth Street, from the east line of Southwest Ninth Street to the middle of the Eighth Street Viaduct, stop.
(C62, § 30-351; O.8084; C75, § 27-362; O.9593; C79, § 27-362; O.10,730; C91, § 27-1188; O.11,650, 14,102)

Sec. 114-2014. Ninth Street.

Ninth Street, from the middle of the Ninth Street Viaduct to the south line of Forest Avenue, stop.

Ninth Street, from the north line of Forest Avenue to the south line of Clark Street, stop.

Ninth Street, from the north line of Clark Street to the south line of College Avenue, stop.

Ninth Street, from the north line of College Avenue to the south line of Hickman Road, stop.

The driver of a vehicle southbound on Ninth Street (west leg) shall yield the right-of-way to southbound traffic on Ninth Street (east leg) south of Hickman Road, yield.

Ninth Street, at Clinton Avenue, stop.

Ninth Street, at Seneca Avenue, stop.

Ninth Street, at Shawneee Avenue, stop.
(C62, § 30-352; O.8084, 8108; C75, C79, §§ 27-363, 27-536.01; O.9503, 10,730; C91, § 27-1189; O.11,650, 13,241, 14,371)

Sec. 114-2015. East Ninth Street.

East Ninth Street, from the north line of East Grand Avenue to the south line of Fremont Street, stop.

East Ninth Street, from the north line of Fremont Street to the south line of Arthur Avenue, stop.

East Ninth Street, from the north line of Arthur Avenue to the south line of Hull Avenue, stop.
(C62, § 30-353; O.8084, 8094; C75, C79, § 27-364; O.10,730; C91, § 27-1190; O.11,650)

Sec. 114-2015.5. Southeast Ninth Street.

Southeast Ninth Street, from the south line of Scott Street to the north line of Maury Street, stop.

Southeast Ninth Street, from the south line of Maury Street to the south line of East Railroad Avenue, stop.
(O.13,726, 14,550, 14,982)

Sec. 114-2016. Southwest Ninth Street.

Southwest Ninth Street, from the middle of the Ninth Street Viaduct to the south corporate limits, stop.

The driver of a vehicle eastbound on Southwest Ninth Place using the connecting roadway to turn right at Southwest Ninth Street shall yield the right-of-way to southbound traffic on Southwest Ninth Street, yield.
(C62, §§ 30-354, 30-525; O.8084; C75, C79, §§ 27-365, 27-537; O.10,730; C91, § 27-1191; O.11,650)

Sec. 114-2017. Tenth Street.

Tenth Street, from the north line of Cherry Street to the south line of Pleasant Street, stop.

Tenth Street, at Chestnut Street, stop.

Tenth Street, at Mary Avenue, stop.
(C62, § 30-355; O.8084, 8893; C75, C79, § 27-366; O.10,730; C91, § 27-1192; O.11,650, 13,028)

Sec. 114-2018. East Tenth Street.

East Tenth Street, at Hoffman Avenue, stop.

East Tenth Street, from the north line of East Madison Avenue to the south line of East Aurora Avenue, stop.
(C75, § 27-366.01; O.9593; C79, § 27-366.01; O.10,730; C91, § 27-1193; O.11,650)

Sec. 114-2018.5. Southeast Tenth Street.

Southeast Tenth Street, from the south line of Raccoon Street to the north line of Scott Street, stop.

Southeast Tenth Street, from the south line of Scott Street to the north line of Maury Street, stop.
(O.13,726, 14,550)

Sec. 114-2019. Southwest Tenth Street.

Southwest Tenth Street, from the south line of Army Post Road to the north line of Wade Street, stop.
(C91, § 27-1193.05; O.13,241, 15,328)

Sec. 114-2020. Eleventh Street.

Eleventh Street, from the north line of Cherry Street to the south line of High Street, stop.

Eleventh Street, from the north line of Euclid Avenue to the south line of Douglas Avenue, stop.

Eleventh Street, from the north line of Douglas Avenue to the south line of Madison Avenue, stop.

Eleventh Street, from the north line of Madison Avenue to the north corporate limits, stop.
(C62, § 30-357; O.8084; C75, C79, § 27-368; O.10,730; C91, § 27-1194; O.11,650)

Sec. 114-2020.5. Southeast Eleventh Street.

Southeast Eleventh Street, from the south line of Scott Street to the north line of Maury Street, stop.
(O.14,550)

Sec. 114-2021. Southwest Eleventh Street.

Southwest Eleventh Street, at Geil Street, stop.

Southwest Eleventh Street, at Burnham Street, stop.

Southwest Eleventh Street, from the south line of Rittenhouse Street to the north line of Amos Avenue, stop.

Southwest Eleventh Street, from the north line of Dart Way to the south line of Martin Luther King Jr Parkway, stop.
(C62, § 30-358; O.8084; C75, C79, § 27-369; O.10,730; C91, § 27-1195; O.11,650, 13,241, 13,248, 14,987, 15,486)

Sec. 114-2022. Twelfth Street.

Twelfth Street, from the north line of Cherry Street to the south line of Woodland Avenue, stop.

Twelfth Street, at Carpenter Avenue, stop.

Twelfth Street, from the north line of Euclid Avenue to the north corporate limits, stop.
(C62, § 30-359; O.8084; C75, § 27-370; O.9219; C79, § 27-370; O.10,730; C91, § 27-1196; O.11,650, 13,076)

Sec. 114-2023. East Twelfth Street.

East Twelfth Street, from the north line of East Walnut Street to the south line of East University Avenue, stop.

East Twelfth Street, at Garfield Avenue, stop.

East Twelfth Street, at Jefferson Avenue, stop.

East Twelfth Street, from the north line of Hull Avenue to the south line of East Euclid Avenue, stop.
(C62, § 30-360; O.8084, 8320, 8867; C75, § 27-371; O.8974; C79, §§ 27-371, 27-548.02; O.10,579, 10,730; C91, § 27-1197; O.11,650, 13,028)

Sec. 114-2023.5. Southeast Twelfth Street.

Southeast Twelfth Street, from the south line of East Martin Luther King Jr Parkway to the north line of Maury Street, stop.
(O.14,550, 15,387)

Sec. 114-2024. Southwest Twelfth Street.

Southwest Twelfth Street, from the south line of Davis Avenue to the north line of Watrous Avenue, stop.

Southwest Twelfth Street, at Carrie Avenue, stop.

Southwest Twelfth Street, from the south line of Porter Avenue to the north line of Army Post Road, stop.
(C62, § 30-361; O.8084; C75, C79, § 27-372; O.10,696, 10,730; C91, § 27-1198; O.11,650, 13,047, 13,241)

Sec. 114-2024.5. Southeast Twenty-fifth Court.

Southeast Twenty-fifth Court, from the south line of East Martin Luther King Jr Parkway to the north line of Maury Street, stop.
(O.15,466)

Sec. 114-2025. Thirteenth Street.

Thirteenth Street, from the north line of Mulberry Street to the south line of Grand Avenue, stop.

Thirteenth Street, from the south line of Day Street to the south line of Forest Avenue, stop.

Thirteenth Street, from the north line of Forest Avenue to the south line of Clark Street, stop.

Thirteenth Street, from the north line of Clark Street to the south line of College Avenue, stop.

Thirteenth Street, from the north line of College Avenue to the south line of Chautauqua Parkway, stop.
(C62, § 30-362; O.8084; C75, C79, § 27-373; O.10,730; C91, § 27-1199; O.11,650, 14,833, 14,939)

Sec. 114-2026. East Thirteenth Street.

East Thirteenth Street, from the north line of Maple Street to the south line of Buchanan Street, stop.

East Thirteenth Street, from the north line of Buchanan Street to the south line of east University Avenue, stop.

East Thirteenth Street, from the north line of Cleveland Avenue to the south line of Thompson Avenue, stop.

East Thirteenth Street, at Garfield Avenue, stop.

East Thirteenth Street at Tiffin Avenue, stop.

East Thirteenth Street, from the north line of Grandview Avenue to the south line of Hull Avenue, stop.

East Thirteenth Street, from the south line of Morton Avenue to the north line of Guthrie Avenue, stop.
(C62, § 30-363; O.8084; C75, § 27-374; O.9474; C79, § 27-374; O.10,730; C91, § 27-1200; O.11,650, 11,884, 13,028, 13,099, 14,421, 14,576, 15,210, 15,330)

Sec. 114-2027. Southwest Thirteenth Street.

Southwest Thirteenth Street, at Caulder Avenue, stop.

Southwest Thirteenth Street, from the south line of Army Post Road to the north line of Amos Street, stop.
(C62, § 30-364; O.8084; C75, C79, § 27-375; O.10,730; C91, § 27-1201; O.11,650, 13,047, 13,241)

Sec. 114-2028. Fourteenth Place.

Fourteenth Place, at Enos Avenue, stop.
(C91, § 27-1201.05; O.13,241)

Sec. 114-2029. Fourteenth Street.

Fourteenth Street, from the north line of Locust Street to the south line of Ingersoll Avenue, stop.

Fourteenth Street, from the north curbline of Euclid Avenue to the south curbline of Madison Avenue, stop.

Fourteenth Street, at Seneca Avenue, stop.
(C62, § 30-365; O.8084; C75, C79, § 27-376; O.10,730; C91, § 27-1202; O.11,650, 11,933, 13,241, 14,855)

Sec. 114-2030. East Fourteenth Street.

East Fourteenth Street, from the north line of East Court Avenue to the north corporate limits, stop.
(C62, § 30-366; O.8084; C75, C79, § 27-377; O.10,730; C91, § 27-1203; O.11,650)

Sec. 114-2031. Southeast Fourteenth Street.

Southeast Fourteenth Street, from the south line of East Court Avenue to U.S. Highway 65/69, stop.
(C62, § 30-367; O.8084; C75, C79, § 27-378; O.10,730; C85, § 27-378; O.11,302; C91, § 27-1204; O.11,650)

Sec. 114-2032. Southwest Fourteenth Street.

Southwest Fourteenth Street, from the north line of Creston Avenue to the north line of Park Avenue, stop.

Southwest Fourteenth Street, from the south line of Park Avenue to the north line of Watrous Avenue, stop.

Southwest Fourteenth Street, from the south line of Watrous Avenue to the north line of Porter Avenue, stop.

Southwest Fourteenth Street, from the south line of Porter Avenue to the north line of Geil Avenue, stop.

Southwest Fourteenth Street, from the south line of Geil Avenue to the south line of Havens Avenue, stop.
(C62, § 30-368; O.8084; C75, § 27-379; O.9613; C79, § 27-379; O.10,730; C85, § 27-379, O.11,066; C91, § 27-1205; O.11,650, 13,047, 13,610)

Sec. 114-2033. Fifteenth Street.

Fifteenth Street, at Walnut Street, stop.

Fifteenth Street, from the north line of High Street to the east line of Sixteenth Street, stop.

Fifteenth Street at Seneca Avenue, stop.

Fifteenth Street, at Madison Avenue, stop.
(C62, §§ 30-369, 30-549; O.8084, 8187; C75, C79, §§ 27-380, 27-561; O.9703, 10,730; C85, § 27-380; O.11,086; C91, § 27-1206; O.11,650, 13,241, 13,282, 13,366)

Sec. 114-2034. East Fifteenth Street.

East Fifteenth Street, at Richmond Avenue, stop.

East Fifteenth Street, at Garfield Avenue, stop.

East Fifteenth Street, from the south line of Dean Avenue to the north line of Maple Street, stop.
(C75, § 27-380.01; O.9593; C79, § 27-380.01; O.10,730; C91, § 27-1207; O.11,650, 13,241, 13,951)

Sec. 114-2034.4. Southeast Fifteenth Street.

Southeast Fifteenth Street, from the south line of East Martin Luther King Jr Parkway to the north line of Maury Street, stop.
(O.15,387)

Sec. 114-2034.5. Southwest Fifteenth Street.

Southwest Fifteenth Street, at Amos, stop.
(O.13,698)

Sec. 114-2035. Sixteenth Street.

Sixteenth Street, from the north line of Walnut Street to the south line of Ingersoll Avenue, stop.

Sixteenth Street, from the north line of Clark Street to the south line of Hickman Road, stop.
(C62, § 30-370; O.8084; C75, C79, § 27-381; O.10,730; C91, § 27-1208; O.11,650)

Sec. 114-2036. East Sixteenth Street.

East Sixteenth Street, at Garfield Avenue, stop.

East Sixteenth Street, at Walker Street, stop.

East Sixteenth Street, at Capitol Avenue, stop.
(C62, § 30-371; O.8084, 8780; C75, § 27-382; O.9023; C79, § 27-382; O.10,730; C91, § 27-1209; O.11,650, 13,241, 13,528)

Sec. 114-2037. Southwest Sixteenth Street.

Southwest Sixteenth Street, at Railroad Avenue, stop.

Southwest Sixteenth Street, at Wabash Avenue, stop.

Southwest Sixteenth Street, at Evans Street, stop.

Southwest Sixteenth Street, from the north line of Burnham Avenue to the south line of Amos Avenue, stop.
(C62, § 30-372; O.8084; C75, C79, § 27-383; O.10,730; C91, § 27-1210; O.11,650, 13,241, O.13,698)

Sec. 114-2038. Seventeenth Street.

Seventeenth Street, from the north line of Locust Street to the south line of Ingersoll Avenue, stop.
(C62, § 30-373; O.8084; C75, C79, § 27-384; O.10,730; C91, § 27-1211; O.11,650)

Sec. 114-2039. East Seventeenth Court.

East Seventeenth Court, at Garfield Avenue, stop.
(C91, § 27-1211.05; O.13,241)

Sec. 114-2040. East Seventeenth Street.

East Seventeenth Street, from the north curbline of East Grand Avenue to the south curbline of Lyon Street, stop.

East Seventeenth Street, at Garfield Avenue, stop.

East Seventeenth Street, from the north line of East Washington Avenue to the south line of Guthrie Avenue, stop.
(C75, § 27-384.01; O.9295; C79, § 27-384.01; O.10,730; C91, § 27-1212; O.11,650, 13,146, 14,292)

Sec. 114-2041. Southeast Seventeenth Street.

Southeast Seventeenth Street, from the north line of East Kirkwood Avenue to the south line of King Avenue, stop.

Southeast Seventeenth Street, from the north line of East Virginia Avenue to the south line of East Pleasant View Drive, stop.
(C79, § 27-384.02; O.10,730; C91, § 27-1213; O.11,650, 13,047)

Sec. 114-2042. Eighteenth Street.

Eighteenth Street, from the north line of Locust Street to the south line of Ingersoll Avenue, stop.

Eighteenth Street, at Atkins Street, stop.

Eighteenth Street, from the north curbline of Franklin Avenue to the south curbline of Hickman Road, stop.
(C62, § 30-374; O.8084; C75, C79, § 27-385; O.10,730; C91, § 27-1214; O.11,650, 11,933, 13,241)

Sec. 114-2043. East Eighteenth Street.

East Eighteenth Street, from the north line of Dean Avenue to the south line of East Walnut Street, stop.

East Eighteenth Street, from the north line of East Walnut Street to the south line of East Grand Avenue, stop.

East Eighteenth Street, from the south line of Des Moines Street to the north line of Maple Street, stop.

East Eighteenth Street, at Walker Street, stop.
(C62, § 30-375; O.8084; C75, C79, § 27-386; O.10,730; C91, § 27-1215; O.11,650)

Sec. 114-2044. Southeast Eighteenth Street.

Southeast Eighteenth Street, from the south line of Dean Avenue to the north line of Maury Street, stop.
(C62, § 30-376; O.8084; C75, C79, § 27-387; O.10,730; C91, § 27-1216; O.11,650)

Sec. 114-2045. Southwest Eighteenth Street.

Southwest Eighteenth Street, at Druid Hill Drive, stop.

Southwest Eighteenth Street, from the north curbline of Kenyon Avenue to the south curbline of McKinley Avenue, stop.
(C91, § 27-1216.05; O.13,146, 13,241)

Sec. 114-2046. Southeast Eighteenth Court.

Southeast Eighteenth Court, from the north line of Army Post Road to the dead end north of Southeast Diehl Avenue, stop.
(C85, § 27-387.01; O.11,302; C91, § 27-1217; O.11,650)

Sec. 114-2047. Nineteenth Street.

Nineteenth Street, from the north line of Woodland Avenue to the south line of Center Street, stop.

Nineteenth Street, from the north line of Center Street to the north line of Mondamin Avenue, stop.
(C62, § 30-377; O.8084; C75, C79, § 27-388; O.10,730; C91, § 27-1218; O.11,650)

Sec. 114-2048. East Nineteenth Street.

East Nineteenth Street, from the north line of Avenue Frederick M. Hubbell to the south line of East University Avenue, stop.

The driver of a vehicle northbound on East Nineteenth Street at ramp U-1, Interstate 235 (Des Moines Freeway), shall yield the right-of-way to eastbound traffic on ramp U-1, Interstate 235 (Des Moines Freeway), yield.
(C75, §§ 27-388.01, 27-538.01; O.8994, 9012; C79, §§ 27-388.01, 27-538.01; O.10,730; C91, § 27-1219; O.11,650)

Sec. 114-2049. East Twentieth Court.

East Twentieth Court, from the north line of East Grand Avenue to the south line of Maple Street, stop.
(C85, § 27-388.015; O.11,448; C91, § 27-1220; O.11,650, 13,047)

Sec. 114-2050. East Twentieth Street.

East Twentieth Street, from the north line of Maple Street to the south line of Avenue Frederick M. Hubbell, stop.
(C85, § 27-388.016; O.11,448; C91, § 27-1221; O.11,650)

Sec. 114-2051. East Twenty-first Street.

East Twenty-first Street, at Capitol Avenue, stop.

East Twenty-first Street, at Milton Avenue, stop.
(C91, § 27-1221.05; O.13,241, 13,874)

Sec. 114-2052. East Twenty-second Street.

East Twenty-second Street, at Ankeny Avenue, stop.

East Twenty-second Street, from the north line of Avenue Frederick M. Hubbell to the north line of Elizabeth Avenue, stop.

East Twenty-second Street, at East Jefferson Avenue, stop.
(C75, § 27-388.02; O.9593; C79, § 27-388.02; O.10,730; C91, § 27-1222; O.11,650, 16,093, 16,311)

Sec. 114-2053. Twenty-second Street.

Twenty-Second Street, at Drake Park Avenue, stop.
(C85, § 27-388.021; O.11,066; C91, § 27-1223; O.11,650)

Sec. 114-2054. East Twenty-first Street.

East Twenty-first Street, from the north line of Avenue Frederick M. Hubbell to the south line of Easton Boulevard, stop.
(C79, § 27-388.03; O.9708, 10,730; C91, § 27-1224; O.11,650)

Sec. 114-2055. Twenty-first Street.

Twenty-first Street, at Drake Park Avenue, stop.

Twenty-first Street, from the north line of University Avenue to the south line of Forest Avenue, stop.
(C62, §§ 30-378, 30-532; O.8084; C75, C79, §§ 27-389, 27-544; O.9957, 10,730; C91, § 27-1226; O.11,650, 16,276)

Sec. 114-2056. Southeast Twenty-second Street.

Southeast Twenty-second Street, from the south line of Hartford Avenue to north line of East Park Avenue, stop.

Southeast Twenty-second Street, from the south line of East Park Avenue to the north line of Evergreen Avenue, stop.
(C85, § 27-389.005; O.11,600; C91, § 27-1227; O.11,650, 13,047, 15,756)

Sec. 114-2056.05. Reserved.

Editor's note—Ord. No. 16,093, § 1, adopted Dec. 20, 2021, repealed § 114-2056.05, which pertained to East Twenty-second Street and derived from Ord. No. 14,627.

Sec. 114-2057. Twenty-third Street.

Twenty-third Street, at Drake Park Avenue, stop.

Twenty-third Street, from the north curbline of Clark Street to the south curbline of Hickman Road, stop.
(C62, § 30-378.01; O.8217; C75, C79, § 27-389.01; O.10,730; C91, § 27-1228; O.11,650, 13,160)

Sec. 114-2058. East Twenty-third Street.

East Twenty-third Street, from the north line of East Grand Avenue to the south line of East University Avenue, stop.

East Twenty-third Street, from the north line of East University Avenue to the south line of Avenue Frederick M. Hubbell, stop.

East Twenty-third Street, from the north line of East Walnut Street to the south line of East Grand Avenue, stop.

East Twenty-third Street, at Thompson Avenue, stop.

East Twenty-third Street, at East Washington Avenue, stop.

East Twenty-third Street, from the north line of Dean Avenue to the south line of East Walnut Street, stop.
(C85, § 27-389.011; O.10,770, 11,448; C91, § 27-1229; O.11,650, 11,892, 13,102)

Sec. 114-2059. Southeast Twenty-third Street.

Southeast Twenty-third Street, at East Rose Avenue, stop.
(C91, 27-1229.05; O.13,241)

Sec. 114-2060. East Twenty-fourth Street.

East Twenty-fourth Street, from the north curbline of East Grand Avenue to the south curbline of Maple Street, stop.

East Twenty-fourth Street, at Capitol Avenue, stop.

East Twenty-fourth Street, at Logan Avenue, stop.

East Twenty-fourth Street, from the north line of Easton Boulevard to the south line of Guthrie Avenue, stop.

East Twenty-fourth Street, at East Sheridan Avenue, stop.
(C75, § 27-389.02; O.9503; C79, § 27-389.02; O.10,730; C91, § 27-1230; O.11,650, 11,908, 13,102, 13,241)

Sec. 114-2061. Southwest Twenty-third Street.

Southwest Twenty-third Street, from the south line of Bell Avenue to the south line of Virginia Avenue, stop.

Southwest Twenty-third Street, at Willowmere Drive, stop.
(C75, § 27-389.03; O.9593; C79, § 27-389.03; O.10,730; C85, § 27-389.03; O.11,066; C91, § 27-1231; O.11,650, 13,047)

Sec. 114-2061.5. Northeast Twenty-third Avenue.

Northeast Twenty-third Avenue, at East Forty-seventh Street, stop.

Northeast Twenty-third Avenue, at East Fiftieth Street, stop.

Northeast Twenty-third Avenue, at East Fiftieth Court, stop.
(O.15,750)

Sec. 114-2062. Twenty-fourth Street.

Twenty-fourth Street, from the north line of Woodland Avenue to the south line of Rollins Avenue east leg, stop.

Twenty-fourth Street, from the north line of Cottage Grove Avenue to the south line of Forest Avenue, stop.
(C62, § 30-379; O.8084, 8205; C75, C79, § 27-390; O.10,730; C91, § 27-1232; O.11,650, 14,428)

Sec. 114-2063. Southwest Twenty-fourth Street.

Southwest Twenty-fourth Street, at Thornton Avenue, stop.
(C91, § 27-1232.05; O.13,241)

Sec. 114-2063.5. Southeast Twenty-fourth Street.

Southeast Twenty-fourth Street, at Hart Avenue, stop.
(O.14,851)

Sec. 114-2064. Twenty-fifth Street.

Twenty-fifth Street, at Pleasant Street, stop.

Twenty-fifth Street, at Drake Park Avenue, stop.
(C62, § 30-379.01; O.8217; C75, § 27-390.01; O.9593; C79, § 27-390.01; O.10,730; C91, § 27-1233; O.11,650)

Sec. 114-2065. Southeast Twenty-fifth Court.

Southeast Twenty-fifth Court, from the south line of Scott Avenue to the north line of Maury Street, stop.

Southeast Twenty-fifth Court, at East Rose Avenue, stop.
(C75, § 27-390.02; O.9593; C79, § 27-390.02; O.10,730; C91, § 27-1234; O.11,650, 13,241, 15,756)

Sec. 114-2066. East Twenty-fifth Street.

East Twenty-fifth Street, from the north line of Dean Avenue to the south line of East Walnut Street, stop.

East Twenty-fifth Street, from the north line of East Walnut Street to the south line of East Grand Avenue, stop.

East Twenty-fifth Street, from the north line of East Grand Avenue to the south line of Maple Street, stop.

East Twenty-fifth Street, from the north line of Maple Street to the south line of East University Avenue, stop.

East Twenty-fifth Street, from the north line of East University Avenue to the south line of Easton Boulevard, stop.

East Twenty-fifth Street, from the north line of Guthrie Avenue to the south line of East Sheridan Avenue, stop.

East Twenty-fifth Street, from the north line of East Sheridan Avenue to the south line of Hull Avenue, stop.

East Twenty-fifth Street, from the north line of Hull Avenue to the south line of East Euclid Avenue, stop.

East Twenty-fifth Street, from the north line of East Douglas Avenue to the south line of East Aurora Avenue, stop.
(C62, § 30-380; O.8084, 8210; C75, § 27-391; O.9593; C79, § 27-391; O.10,730; C85, § 27-391; O.11,448; C91, § 27-1235; O.11,650, 14,537)

Sec. 114-2066.5. Southeast Twenty-fifth Street.

Southeast Twenty-fifth Street, from the south line of Easter Lake Drive to the north line of East Porter Avenue, stop.
(O.15,583)

Sec. 114-2067. Reserved.

Editor's note—Ord. No. 15,756, § 1, adopted March 25, 2019, repealed § 114-2067, which pertained to Southeast Twenty-sixth Court and derived from Code 1991, § 27-1235.05; Ord. No. 13,241.

Sec. 114-2068. Southwest Twenty-sixth Street.

Southwest Twenty-sixth Street, at Watrous Avenue, stop.

Southwest Twenty-sixth Street, from the south line of Stanton Avenue to the north line of McKinley Avenue, stop.
(C62, § 30-380.01; O.8529; C75, § 27-391.01; O.9061; C79, § 27-391.01; O.10,730; C85, § 27-391.01. O.11,066; C91, § 27-1236; O.11,650, 13,933)

Sec. 114-2069. East Twenty-sixth Street.

East Twenty-sixth Street, from the north line of Dean Avenue to the south line of East Walnut Street, stop.

East Twenty-sixth Street, from the north line of East Walnut Street to the south line of East Grand Avenue, stop.

East Twenty-sixth Street, from the north line of East Grand Avenue to the south line of East University Avenue, stop.

East Twenty-sixth Street, at Garfield Avenue, stop.

East Twenty-sixth Street, from the north line of Hull Avenue to the south line of East Euclid Avenue, stop.
(C75, § 27-391.02; O.9226; C79, § 27-391.02; O.10,730; C85, § 27-391.02; O.11,448; C91, § 27-1237; O.11,650, 13,241)

Sec. 114-2070. Twenty-seventh Street.

Twenty-seventh Street, from the north line of Carpenter Street to the north line of Allison Avenue, stop.
(C62, § 30-381; O.8084; C75, C79, § 27-392; O.10,730; C91, § 27-1238; O.11,650, 13,241, 14,421)

Sec. 114-2071. East Twenty-seventh Street.

East Twenty-seventh Street, at Capitol Avenue, stop.

East Twenty-seventh Street, from the north line of East University Avenue to the south line of Easton Boulevard, stop.

East Twenty-seventh Street, at John Patterson Road, stop.

East Twenty-seventh Street, from the north line of Avenue Frederick M. Hubbell to the south line of Hull Avenue, stop.
(C62, § 30-381.01; O.8239; C75, C79, § 27-392.01; O.10,189, 10,730; C85, § 27-392.01; O.10,978, 11,199; C91, § 27-1239; O.11,650, 11,860, 13,047, 13,062, 13,241)

Sec. 114-2072. East Twenty-seventh Court.

East Twenty-seventh Court, at State Avenue, stop.

East Twenty-seventh Court, at Cleveland Avenue, stop.

East Twenty-seventh Court, at Kinsey Avenue, stop.
(C91, § 27-1239.05; O.13,241)

Sec. 114-2073. Southeast Twenty-seventh Street.

Southeast Twenty-seventh Street, from the north side of Elm Street to the south line of Raccoon Street, stop.
(C91, § 27-1239.06; O.13,241, 13,951)

Sec. 114-2073.01. Northeast Twenty-seventh Avenue.

Southeast Twenty-seventh Street, from East Oakhill Drive to the east city limits, stop.
(O.14,905)

Sec. 114-2074. Twenty-eighth Street.

Twenty-eighth Street, from the north line of Grand Avenue to the south line of Woodland Avenue, stop.

Twenty-eighth Street, from the north line of Woodland Avenue to the south line of Kingman Avenue, stop.

Twenty-eighth Street, from the north line of Kingman Avenue to the south line of Cottage Grove Avenue, stop.

Twenty-eighth Street, from the north line of Cottage Grove Avenue to the south line of University Avenue, stop.

Twenty-eighth Street, at Forest Drive, stop.
(C62, § 30-382; O.8084; C75, C79, § 27-393; O.10,730; C91, § 27-1240; O.11,650, 11,778, 13,241, 14,304)

Sec. 114-2075. East Twenty-eighth Street.

East Twenty-eighth Street, at East Washington Avenue, stop.

East Twenty-eighth Street, at Indianapolis Avenue, stop.

East Twenty-eighth Street, at Chicago Avenue, stop.

East Twenty-eighth Street, at State Avenue, stop.

East Twenty-eighth Street, at Logan Avenue, stop.

East Twenty-eighth Street, from the north line of East Grand Avenue to the south line of Maple Street, stop.
(C91, § 27-1240.05; O.13,241)

Sec. 114-2076. Southeast Twenty-eighth Street.

Southeast Twenty-eighth Street, at Market Street, yield.

Southeast Twenty-eighth Street, from the south line of Market Street to the south line of Raccoon Street, stop.
(C91, § 27-1240.06; O.13,241, 13,600, 13,951)

Sec. 114-2077. Southwest Twenty-eighth Street.

Southwest Twenty-eighth Street, from the south line of Park Avenue to the north line of Thornton Avenue, stop.
(C91, § 27-1240.07; O.13,241, 13,643, 14,437)

Sec. 114-2078. Twenty-ninth Street.

Twenty-ninth Street, at Brattleboro Avenue, stop.
(C62, § 30-383; O.8084; C75, C79, § 27-394; O.10,730; C91, § 27-1241; O.11,650)

Sec. 114-2079. East Twenty-ninth Street.

East Twenty-ninth Street, from the north line of Easton Boulevard to the north corporate limits, stop.

East Twenty-ninth Street, from the north line of East University Avenue to the south line of Easton Boulevard, stop.

East Twenty-ninth Street, from the north line of East Grand Avenue to the south line of East University Avenue, stop.

East Twenty-ninth Street, at Capitol Avenue, stop.
(C62, § 30-384; O.8084; C75, C79, § 27-395; O.10,730; C91, § 27-1242; O.11,650, 13,241)

Sec. 114-2079.5. Southeast Twenty-ninth Court.

Southeast Twenty-ninth Court, from the south line of Easter Lake Drive to the south dead end, stop.
(O.13,726)

Sec. 114-2080. Thirtieth Street.

Thirtieth Street, from the north line of University Avenue to the south line of Euclid Avenue, stop.

Thirtieth Street, from the north line of Douglas Avenue to the south line of Madison Avenue, stop.

Thirtieth Street, from the north line of Madison Avenue to the south line of Aurora Avenue, stop.
(C62, § 30-385; O.8084, 8674; C75, C79, § 27-396; O.10,730; C91, § 27-1243; O.11,650, 11,774, 13,047)

Sec. 114-2081. East Thirtieth Street.

East Thirtieth Street, from the north line of Dean Avenue to the south line of East Washington Avenue, stop.
(C62, § 30-386; O.8084; C75, § 27-397; O.9028; C79, § 27-397; O.10,730; C91, § 27-1244; O.11,650)

Sec. 114-2082. Southeast Thirtieth Street.

Southeast Thirtieth Street, from the south line of Dean Avenue to the south line of East Granger Avenue, stop.

Southeast Thirtieth Street, from the south line of East Army Post Road to the north line of Brockway Drive, stop.
(C62, § 30-387; O.8084; C75, C79, § 27-398; O.10,730; C91, § 27-1245; O.11,650, 16,475)

Sec. 114-2083. Southwest Thirtieth Street.

Southwest Thirtieth Street, from the south line of George Flagg Parkway to the north line of Park Avenue, stop.
(C62, § 30-388; O.8084; C75, C79, § 27-399; O.10,730; C85, § 27-399; O.10,958; C91, § 27-1246; O.11,650, 13,047, 14,080)

Sec. 114-2084. Thirty-first Street.

Thirty-first Street, from the north line of University Avenue to the south line of Forest Avenue, stop.

Thirty-first Street, from the south line of Terrace Drive to the south line of University Avenue, stop.
(C62, § 30-389; O.8084, 8843; C75, C79, § 27-400; O.10,730; C85, § 27-400; O.11,506; C91, § 27-1247; O.11,650)

Sec. 114-2084.5. Southeast Thirty-first Street.

Southeast Thirty-first Street, from the south line of Easter Lake Drive to the south dead end, stop.
(O.13,726)

Sec. 114-2085. Southwest Thirty-first Street.

Southwest Thirty-first Street, from the south line of Park Avenue to the north line of McKinley Avenue, stop.

Southwest Thirty-first Street, at Stanton Avenue, stop.
(C62, § 30-390; O.8084; C75, § 27-401; O.8979; C79, § 27-401; O.10,730; C91, § 27-1248; O.11,650, 13,047)

Sec. 114-2085.1. Thirty-second Street.

Thirty-second Street, at Francis Avenue, stop.
(O.13,973)

Sec. 114-2086. East Thirty-second Street.

East Thirty-second Street, at Mahaska Avenue, stop.

East Thirty-second Street, at Dubuque Avenue, stop.

East Thirty-second Street, at Indianapolis Avenue, stop.
(C91, § 27-1248.05; O.13,241)

Sec. 114-2087. Thirty-third Street.

Thirty-third Street, at Pleasant Street, stop.

Thirty-third Street, at College Avenue, stop.

Thirty-third Street, at Vilura Parkway, stop.
(C91, § 27-1248.06; O.13,241, 15,665)

Sec. 114-2088. East Thirty-third Street.

East Thirty-third Street, from the north line of East University Avenue to the south line of East Euclid Avenue, stop.

East Thirty-third Street, at East Court Avenue, stop.
(C62, § 30-391; O.8084; C75, C79, § 27-402; O.10,730; C91, § 27-1249; O.11,650; O.13,772, 15,580)

Sec. 114-2088.05. Southeast Thirty-third Street.

Southeast Thirty-third Street, at East Court Avenue, stop.
(O.15,580)

Sec. 114-2089. East Thirty-third Court.

East Thirty-third Court, at Mahaska Avenue, stop.
(C91, § 27-1249.05; O.13,241)

Sec. 114-2090. Thirty-fourth Street.

Thirty-fourth Street, at St. John's Road, stop.

Thirty-fourth Street, from the north line of Clark Street to the south line of Franklin Avenue, stop.

Thirty-fourth Street, from the north line of Franklin Avenue to the south line of Hickman Road, stop.

Thirty-fourth Street, from the north line of Hickman Road to the south line of Urbandale Avenue, stop.
(C62, § 30-392; O.8084; C75, C79, § 27-403; O.10,730; C91, § 27-1250; O.11,650, 13,869)

Sec. 114-2091. East Thirty-fourth Street.

East Thirty-fourth Street, at East Court Avenue, stop.

East Thirty-fourth Street, at Thompson Avenue, stop.
(C91, § 27-1250.05; O.13,241, 15,580)

Sec. 114-2092. Southeast Thirty-fourth Street.

Southeast Thirty-fourth Street, at East Court Avenue, stop.

Southeast Thirty-fourth Street, from the south line of Evergreen Avenue to the north line of Easter Lake Drive, stop.

Southeast Thirty-fourth Street, at East Southlawn Drive, stop.
(C85, § 27-403.01; O.11,302; C91, § 27-1251; O.11,650, 13,241, 13,646, 14,844)

Sec. 114-2093. Southwest Thirty-fourth Street.

Southwest Thirty-fourth Street, at John Lynde Road, stop.
(C91, § 27-1251.05; O.13,241)

Sec. 114-2094. Southwest Thirty-fourth Street.

Southwest Thirty-fourth Street, at Stanton Avenue, stop.
(C62, § 30-393; O.8084; C75, C79, § 27-404; O.10,730; C85, § 27-404; O.11.066; C91, § 27-1252; O.11,650)

Sec. 114-2095. Thirty-fifth Street.

Thirty-fifth Street, from the north line of Grand Avenue to the south line of University Avenue, stop.

Thirty-fifth Street, at Holcomb Avenue, stop.
(C62, § 30-394; O.8084; C75, C79, § 27-405; O.10,730; C91, § 27-1253; O.11,650, 13,241)

Sec. 114-2095.5. Southeast Thirty-fifth Street.

Southeast Thirty-fifth Street, at Sterling Trace, stop.
(O.14,844)

Sec. 114-2095.6. Southeast Thirty-fifth Court.

Southeast Thirty-fifth Court, from the south line of Evergreen Avenue to the south dead end, stop.
(O.15,563)

Sec. 114-2096. Thirty-sixth Street.

Thirty-sixth Street, at Holcomb Avenue, stop.
(C91, § 27-1253.05; O.13,241)

Sec. 114-2097. Southeast Thirty-sixth Street.

Southeast Thirty-sixth Street, from the south line of Laurel Hill Road to the north line of Scott Avenue, stop.

Southeast Thirty-sixth Street, from Easter Lake Drive to the north line of East Army Post Road, stop.

Southeast Thirty-sixth Street, from the south line of Army Post Road to the north line of East Pine Avenue, stop.

Southeast Thirty-sixth Street, from the south line of East Pine Avenue to East County Line Road, stop.
(C85, § 27-405.01; O.11,302; C91, § 27-1254; O.11,650, 15,404)

Sec. 114-2098. East Thirty-sixth Court.

East Thirty-sixth Court, at East Ovid Avenue, stop.

East Thirty-sixth Court, at East Sheridan Avenue, stop.
(C91, § 27-1254.05; O.13,241)

Sec. 114-2099. Thirty-seventh Street.

Thirty-seventh Street, at Woodland Avenue, stop.
(C62, § 30-395; O.8084; C75, C79, § 27-406; O.10,730; C91, § 27-1255; O.11,650)

Sec. 114-2100. East Thirty-seventh Street.

East Thirty-seventh Street, at Hull Avenue, stop.

East Thirty-seventh Street, at East Euclid Avenue, stop.
(C91, § 27-1255.05; O.13,241)

Sec. 114-2101. East Thirty-seventh Court.

East Thirty-seventh Court, at East Sheridan Avenue, stop.
(C91, § 27-1255.06; O.13,241)

Sec. 114-2102. Southwest Thirty-seventh Street.

Southwest Thirty-seventh Street, at Thornton Avenue, stop.
(C91, § 27-1255.07; O.13,241)

Sec. 114-2103. Thirty-eighth Place.

Thirty-eighth Place, at Brown's Drive, stop.

Thirty-eighth Place, at Greenwood Drive, stop.

Thirty-eighth Place, at Wood's Drive, stop.
(C79, § 27-406.01; O.10,730; C91, § 27-1256; O.11,650, 14,019)

Sec. 114-2104. Thirty-eighth Street.

Thirty-eighth Street, at Crocker Street, stop.

Thirty-eighth Street, at Washington Avenue, stop.

Thirty-eighth Street, at Holcomb Avenue, stop.

Thirty-eighth Street, at Amick Avenue, stop.

Thirty-eighth Street, at Valdez Drive, stop.

Thirty-eighth Street, at Bel-Aire Road, stop.
(C62, § 30-396; O.8084; C75, C79, § 27-407; O.10,730; C91, § 27-1257; O.11,650, 13,241, 13,248, 15,253)

Sec. 114-2105. East Thirty-eighth Street.

East Thirty-eighth Street, from the north line of Easton Boulevard to the south line of East Douglas Avenue, stop.

East Thirty-eighth Street, from the north line of Avenue Frederick M. Hubbell to the north corporate limits, stop.
(C62, § 30-397; O.8084; C75, C79, § 27-408; O.10,730; C91, § 27-1258; O.11,650, 15,881)

Sec. 114-2106. Thirty-ninth Street.

Thirty-ninth Street, at Holcomb Avenue, stop.

Thirty-ninth Street, at School Street, stop.
(C91, § 27-1258.05; O.13,241)

Sec. 114-2107. Fortieth Street.

Fortieth Street, at Pleasant Street, stop.

Fortieth Street, at Holcomb Avenue, stop.

Fortieth Street, at Aurora Avenue, stop.

Fortieth Street, at Bel Aire Avenue, stop.
(C75, § 27-408.01; O.9391; C79, § 27-408.01; O.10,730; C91, § 27-1259; O.11,650, 13,241; O.13,724, 13,780)

Sec. 114-2108. East Fortieth Street.

East Fortieth Street, from the north line of East University Avenue to the north line of East Washington Avenue, stop.
(C62, § 30-398; O.8084; C75, C79, § 27-409; O.10,730; C91, § 27-1260; O.11,650)

Sec. 114-2109. East Fortieth Court.

East Fortieth Court, from the north line of East Sheridan Avenue to the south line of East Hull Avenue, stop.

East Fortieth Court, from the north line of East Hull Avenue to the south line of East Ovid Avenue, stop.
(C75, § 27-409.01; O.9593; C79, § 27-409.01; O.10,730; C91, § 27-1261; O.11,650, 14,418)

Sec. 114-2110. Fortieth Place.

Fortieth Place, from the north line of Adams Avenue to the south line of Amick Avenue, stop.
(C91, § 27-1261.05; O.13,241)

Sec. 114-2111. Forty-first Street.

Forty-first Street, from the north line of University Avenue to the south line of Beaver Avenue, stop.
(C62, § 30-399; O.8084; C75, C79, § 27-410; O.10,730; C91, § 27-1262; O.11,650)

Sec. 114-2112. Forty-second Street.

Forty-second Street, from the north line of Mahaska Parkway to the south line of Forest Avenue, stop.
(C62, § 30-400; O.8084; C75, C79, § 27-411; O.10,730; C91, § 27-1263; O.11,650)

Sec. 114-2113. Southwest Forty-second Street.

Southwest Forty-second Street, from the south line of Park Avenue to McKinley Avenue, stop.

Southwest Forty-second Street, from Southwest McKinley Avenue to south city limits, stop.
(C79, § 27-411.01; O.10,730; C85, § 27-411.01; O.10,890, 11,302; C91, § 27-1264; O.11,650, 13,047, 14,339)

Sec. 114-2114. East Forty-second Street.

East Forty-second Street, from Williams Street to the south line of Avenue Frederick M. Hubbell, stop.
(C62, § 30-401; O.8084, 8262, 8730; C75, C79, § 27-412; O.10,730; C91, § 27-1265; O.11,650, 12,005)

Sec. 114-2115. East Forty-third Street.

East Forty-third Street, from the south line of East Douglas Avenue to the south line of Boyd Street, stop.
(C91, § 27-1265.05; O.13,241, 15,614)

Sec. 114-2116. East Forty-third Court.

East Forty-third Court, at Leyden Avenue, stop.
(C91, § 27-1265.06; O.13,241)

Sec. 114-2117. Forty-fourth Street.

Forty-fourth Street, from the north line of Hickman Road to the south line of Urbandale Avenue, stop.
(C79, § 27-412.01; O.10,037, 10,730; C91, § 27-1266; O.11,650)

Sec. 114-2118. Forty-fifth Street.

Forty-fifth Street, at Holcomb Avenue, stop.

Forty-fifth Street, at New York Avenue, stop.
(C91, § 27-1266.05; O.12,005, 13,241)

Sec. 114-2118.01. Southeast Forty-fifth Street.

Southeast Forty-fifth Street, from East Pine Avenue to the south line of Evergreen Avenue, stop.

Southeast Forty-fifth Street, from the north line of Evergreen to the north city limits, stop.
(O.14,905, 15,506)

Sec. 114-2119. Forty-sixth Street.

Forty-sixth Street, from the north line of University Avenue to the south line of Forest Avenue, stop.

Forty-sixth Street, at Holcomb Avenue, stop.

Forty-sixth Street, at Valdez Drive, stop.

Forty-sixth Street, at Palm Avenue, stop.
(C85, § 27-412.001; O.11,416; C91, § 27-1267; O.11,650, 13,047, 13,135, 13,241)

Sec. 114-2119.01. East Forty-sixth Street.

East Forty-sixth Street, from north line of East Aurora Avenue to Sage Street, stop.
(O.14,905)

Sec. 114-2119.5. Reserved.

Editor's note—Ord. No. 14,905, § 1, adopted Oct. 26, 2009, repealed § 114-2119.5, which pertained to Northeast Forty-sixth Street and derived from O.14,634.

Sec. 114-2120. Forty-seventh Street.

Forty-seventh Street, from the north line of University Avenue to the south line of Forest Avenue, stop.

Forty-seventh Street, at Holcomb Avenue, stop.

Forty-seventh Street, at New York Avenue, stop.

Forty-seventh Street, at Euclid Avenue, stop.
(C85, § 27-412.005; O.11,416; C91, § 27-1268; O.11,650, 13,047, 13,241, 14,158, 14,437)

Sec. 114-2121. Forty-eighth Street.

Forty-eighth Street, at Waterbury Road, stop.

Forty-eighth Street, from the north line of University Avenue to the south line of Hickman Road, stop.

Forty-eighth Street, from the north line of Hickman Road to the south line of Urbandale Avenue, stop.

Forty-eighth Street, from the north line of Aurora Avenue to the south line of Twana Drive, stop.
(C62, § 30-402; O.8084; C75, C79, § 27-413; O.10,730; C91, § 27-1269; O.11,650, 13,241, 13,248, 16,522)

Sec. 114-2122. Forty-eighth Place.

Forty-eighth Place, at Snyder Avenue, stop.
(C91, § 27-1269.05; O.13,241)

Sec. 114-2123. Fiftieth Street.

Fiftieth Street, from the north line of Aurora Avenue to the south line of Meredith Drive, stop.
(C79, § 27-413.01; O.9649, 10,730; C91, § 27-1270; O.11,650)

Sec. 114-2123.02. East Fiftieth Street.

East Fiftieth Street, at East Sheridan Avenue, stop.
(O.15,750)

Sec. 114-2123.1. Fifty-first Street.

Fifty-first Street, from the south line of Grand Avenue to Welker Street, stop.
(O.15,503)

Sec. 114-2124. Fifty-second Street.

Fifty-second Street, from the north line of Urbandale Avenue to the south line of Douglas Avenue, stop.
(C85, § 27-413.001; O.11,347; C91, § 27-1271; O.11,650)

Sec. 114-2125. Fifty-fifth Street.

Fifty-fifth Street, from the north line of University Avenue to the south line of Franklin Avenue, stop.
(C62, § 30-403; O.8084; C75, C79, § 27-414; O.10,730; C91, § 27-1272; O.11,650)

Sec. 114-2126. Fifty-sixth Street.

Fifty-sixth Street, at Ovid Avenue, stop.

Fifty-sixth Street, at Francis Avenue, stop.

Fifty-sixth Street, from the south line of Robertson Drive to the south line of Franklin Avenue, stop.

Fifty-sixth Street, at North Valley Drive, yield.
(C62, § 30-404; O.8084, 8478; C75, C79, § 27-415; O.10,730; C85, § 27-415; O.10,885; C91, § 27-1273; O.11,650, 13,047, 13,241, 13,528)

Sec. 114-2126.01. East Fifty-sixth Street.

East Fifty-sixth Street, from the south city limits to the north city limits, stop.
(O.14,905, 15,876)

Sec. 114-2127. Southwest Fifty-sixth Street.

Southwest Fifty-sixth Street, from the south line of Park Avenue to the north line of Southwest McKinley Avenue, stop.

Southwest Fifty-sixth Street, from the south line of Southwest McKinley Avenue to the north line of Army Post Road, stop.
(C85, § 27-415.01; O.11,302; C91, § 27-1274; O.11,650)

Sec. 114-2128. Fifty-ninth Street.

Fifty-ninth Street, from the north line of Grand Avenue to the north line of Ingersoll Avenue, stop.

Fifty-ninth Street, from the north line of Hickman Road to the south line of Sheridan Avenue, stop.
(C62, § 30-405; O.8084; C75, C79, § 27-416; O.10,730; C85, § 27-416; O.11,538; C91, § 27-1275; O.11,650, 13,047)

Sec. 114-2129. Sixtieth Street.

Sixtieth Street, at Crown Lane, stop.

Sixtieth Street, at Northwest Drive, stop.

Sixtieth Street, at Lincoln Avenue, stop.
(C91, § 27-1275.03; O.13,241)

Sec. 114-2130. Sixty-first Street.

Sixty-first Street, at Northwest Drive, stop.

Sixty-first Street, at New York Avenue, stop.

Sixty-first Street, at Boston Avenue, stop.
(C91, § 27-1275.05; O.13,135, 13,241)

Sec. 114-2131. Sixty-second Street.

Sixty-second Street, at Holcomb Avenue, stop.

Sixty-second Street, at Northwest Drive, stop.
(C91, § 27-1275.06; O.13,241, 13,248)

Sec. 114-2132. Sixty-third Street.

Sixty-third Street, on that portion of the street which is within the corporate limits, from the north line of Grand Avenue to the south line of Hickman Road, stop.
(C62, § 30-406; O.8084; C75, C79, § 27-417; O.10,730; C91, § 27-1276; O.11,650)

Sec. 114-2133. Southwest Sixty-third Street.

Southwest Sixty-third Street, on the east half, from the south line of Grand Avenue to Iowa Highway 28, stop.

Southwest Sixty-third Street, on the east side, from a point starting 4,311 feet north of Southwest Leland Avenue to Army Post Road, stop.
(C62, § 30-407; O.8084; C75, C79, § 27-418; O.10,730; C91, § 27-1277; O.11,650, 13,268, 13,363, 15,242)

Sec. 114-2134. Adams Avenue.

Adams Avenue, at Thirty-eighth Street, stop.

Adams Avenue, at Fortieth Place, stop.
(C62, § 30-408; O.8084; C75, C79, § 27-419; O.10,730; C91, § 27-1278; O.11,650, 14,782)

Sec. 114-2135. Amherst Street.

Amherst Street, at Tiffin Avenue, stop.
(C91, § 27-1278.05; O.11,987)

Sec. 114-2135.5. Amick Avenue.

Amick Avenue, at Fortieth Place, stop.
(O.14,872)

Sec. 114-2136. Amos Avenue.

Amos Avenue, from the west line of Southwest Ninth Street to the east line of Southwest Fourteenth Street, stop.
(C62, § 30-409; O.8084; C75, C79, § 27-420; O.10,730; C91, § 27-1279; O.11,650, 13,047)

Sec. 114-2136.5. Ankeny Avenue.

Ankeny Avenue, from the east line of Hubbell Avenue to the east line of East Twentieth Court, stop.
(O.15,287)

Sec. 114-2137. Ardmore Road.

Ardmore Road, at Thirty-sixth Place, stop.
(C91, § 27-1279.05; O.13,241)

Sec. 114-2138. Army Post Road.

Army Post Road, from the east line of South Union Street to Fleur Drive, stop.

Army Post Road, from Fleur Drive to the east curbline of Southwest Twenty-eighth Street, stop.

Army Post Road, from the west curbline of Southwest Twenty-eighth Street to Iowa Highway 28, stop.

The driver of a vehicle southbound on Fleur Drive using the connecting roadway to turn right at Army Post Road shall yield the right-of-way to westbound traffic on Army Post Road, yield.
(C62, §§ 30-410, 30-536; O.8084; C75, C79, §§ 27-421, 27-548; O.10,730; C91, § 27-1280; O.11,650, 13,643, 13,647, 14,437, 15,559)

Sec. 114-2139. East Army Post Road.

East Army Post Road, from the west line of South Union Street to the east corporate limits, stop.

The driver of a vehicle southbound on Southeast Fourteenth Street using the connecting roadway to turn right at East Army Post Road shall yield the right-of-way to westbound traffic on East Army Post Road, yield.
(C62, §§ 30-411, 30-527; O.8084; C75, C79, §§ 27-422, 27-539; O.10,730; C91, § 27-1281; O.11,650)

Sec. 114-2140. Arthur Avenue.

Arthur Avenue, at East Sixteenth Street, stop.
(C91, § 27-1281.05; O.13,241)

Sec. 114-2141. Ascension Street.

The driver of a vehicle southbound on Seventh Street at Ascension Street shall yield the right-of-way to southbound traffic on Ascension Street, yield.
(C62, § 30-524; O.8084; C75, C79, § 27-536; O.10,730; C79, § 27-422.01; C91, § 27-1282; O.11,650)

Sec. 114-2142. Aurora Avenue.

Aurora Avenue, at Thirtieth Street, stop.

Aurora Avenue, on the south half, from the east line of First Street to the east line of Second Avenue, stop.

Aurora Avenue, on the south half, from the west line of Second Avenue to the east line of Sixth Avenue, stop.

Aurora Avenue, on the south half, from the west line of Sixth Avenue to the east line of Twelfth Street, stop.

Aurora Avenue, from the west line of Beaver Avenue to the east line of Merle Hay Road, stop.
(C62, § 30-412; O.8084; C75, C79, § 27-423; O.10,730; C91, § 27-1283; O.11,650, O.13,724)

Sec. 114-2143. East Aurora Avenue.

East Aurora Avenue, on the south half, from the west line of First Street to the west line of Cornell Street, stop.

East Aurora Avenue, on the south half, from the east line of Cornell Street to the west line of East Fourteenth Street, stop.

East Aurora Avenue, on the south half, from the east line of East Fourteenth Street to the east line of Dixon Street, stop.

East Aurora Avenue, on the south half, from the east line of East Twenty-fifth Street to the west line of East Twenty-ninth Street, stop.

East Aurora Avenue, on the south half, from the east line of East Twenty-ninth Street to the west line of Colfax Avenue, stop.
(C62, § 30-413; O.8084; C75, § 27-424; O.9593; C79, § 27-424; O.9693, 10,730; C91, § 27-1284; O.11,650, 15,934)

Sec. 114-2144. Avenue Frederick M. Hubbell.

Avenue Frederick M. Hubbell, from the north line of East Grand Avenue to East Forty-third Court, stop.
(C62, § 30-414; O.8084; C75, C79, § 27-425; O.10,730; C91, § 27-1285; O.11,650, 14,905)

Sec. 114-2145. Beaver Avenue.

Beaver Avenue, from the south line of Forest Avenue to the north corporate limits, stop.
(C62, § 30-415; O.8084; C75, C79, § 27-426; O.10,730; C91, § 27-1286; O.11,650)

Sec. 114-2146. Beavercrest Drive.

Beavercrest Drive, from the west line of Beaver Avenue to the east line of Forty-fourth Street, stop.

Beavercrest Drive, from the west line of Forty-fourth Street to the east line of Forty-eighth Street, stop.
(C62, § 30-415.01; O.8274; C75, C79, § 27-426.01; O.10,037, 10,730; C91, § 27-1287; O.11,650)

Sec. 114-2147. Bel-Aire Road.

Bel-Aire Road, from the west line of Beaver Avenue to the east line of Fiftieth Street, stop.
(C85, § 27-426.02; O.11,402; C91, § 27-1288; O.11,650, 13,047, 13,241, 14,876)

Sec. 114-2148. Bell Avenue.

Bell Avenue, from the west line of South Union Street to the east line of Southwest Ninth Street, stop.

Bell Avenue, from a point 1,008 feet east of the east line of Fleur Drive to the east line of Southwest Thirtieth Street, stop.

The driver of a vehicle southbound on Fleur Drive using the connecting roadway to turn right at Bell Avenue shall yield the right-of-way to westbound traffic on Bell Avenue, yield.

The driver of a vehicle northbound on Fleur Drive using the connecting roadway to turn right at Bell Avenue shall yield the right-of-way to eastbound traffic on Bell Avenue, yield.
(C62, §§ 30-416, 30-536; O.8084, 8210; C75, C79, §§ 27-427, 27-548; O.10,730; C91, § 27-1289; O.11,650, 13,047)

Sec. 114-2149. East Bell Avenue.

East Bell Avenue, from the east line of Southeast Sixth Street to the west line of Southeast Fourteenth Street, stop.
(C79, § 27-427.01; O.10,730; C91, § 27-1290; O.11,650)

Sec. 114-2149.02. Bloomfield Road.

Bloomfield Road, from the north line of East Luster Lane to the south line of Meadow Chase Lane, stop.
(O.15,590)

Sec. 114-2149.05. Border Street.

Border Street, from Fleur Drive to Southwest Twenty-eighth Street, stop.
(O.14,905)

Sec. 114-2150. Boston Avenue.

Boston Avenue, at Third Street, stop.

Boston Avenue, at Fifth Avenue, stop.

Boston Avenue, at Fifty-ninth Street, stop.
(C91, § 27-1290.01, O.13,241, 13,539)

Sec. 114-2151. Bowdoin Street.

Bowdoin Street, at Tiffin Avenue, stop.

Bowdoin Street, at East Shawnee Avenue, stop.
(C91, § 27-1290.05; O.11,987, 13,241)

Sec. 114-2152. Brinkwood Road.

Brinkwood Road, at Thirty-eighth Place, stop.

Brinkwood Road, at Forty-fourth Place, stop.
(C91, § 27-1290.06; O.13,241)

Sec. 114-2152.01. East Broadway Avenue.

East Broadway Avenue, from East Thirty-eighth Street east to the city limits, stop.
(O.14,905)

Sec. 114-2152.03. Brook Ridge Court.

Brook Ridge Court, at Brook View Drive/Brook View Avenue, stop.
(O.15,876)

Sec. 114-2152.5. Brook Run Drive.

Brook Run Drive, at Park Side Drive/East Hull Avenue, stop.
(O.14,862)

Sec. 114-2152.05. Southeast Brooks Drive.

Southeast Brooks Drive, from the south line of East Watrous Avenue to Evergreen Avenue, stop.
(O.14,905)

Sec. 114-2153. Reserved.

Editor's note—Ord. No. 15,242, § 1, adopted Dec. 9, 2013, repealed § 114-2153, which pertained to Browns Woods Drive and derived from Code 1991, § 27-1290.07; Ord. No. 13,363.

Sec. 114-2154. Buchanan Street.

Buchanan Street, at East Seventh Street, stop.
(C91, § 27-1290.08; O.13,241)

Sec. 114-2155. Bundy Street.

Bundy Street, at Southwest Eleventh Street, stop.
(C79, § 27-427.02; O.10,730; C91, § 27-1291; O.11,650, 13,047, 13,241, 15,328)

Sec. 114-2156. Burlington Terrace.

Burlington Terrace, at Chautauqua Parkway, stop.
(C91, § 27-1291.01; O.13,241)

Sec. 114-2156.5. Burnham Avenue.

Burnham Avenue, at Southeast Third Street, stop.

Burnham Avenue, at Southwest Fifteenth Street, stop.
(O.13,698, 13,972)

Sec. 114-2157. Cambridge Street.

Cambridge Street, at Tiffin Avenue, stop.
(C91, § 27-1291.05; O.11,987)

Sec. 114-2158. Capitol Avenue.

Capitol Avenue, at East Seventeenth Street, stop.

Capitol Avenue, at East Nineteenth Street, stop.

Capitol Avenue, at East Twenty-second Street, stop.

Capitol Avenue, at East Twenty-eighth Street, stop.
(C91, § 27-1291.06; O.13,241)

Sec. 114-2159. Carpenter Avenue.

Carpenter Avenue, at Sixteenth Street, stop.

Carpenter Avenue, from the west line of Twenty-first Street to the east line of Twenty-fourth Street, stop.
(C62, § 30-418; O.8084, 8700; C75, C79, § 27-429; O.10,730; C85, § 27-429; O.11,391, 11,416; C91, § 27-1292; O.11,650, 11,760, 16,276)

Sec. 114-2160. Casady Drive.

Casady Drive, at Druid Hill Drive, stop.
(C62, § 30-418.01; O.8417; C75, C79, § 27-429.01; O.10,730; C91, § 27-1293; O.11,650, 13,047)

Sec. 114-2161. Caulder Avenue.

Caulder Avenue, at Southwest Seventh Street, stop.

Caulder Avenue, at Southwest Eighth Street, stop.

Caulder Avenue, at Southwest Twelfth Place, stop.
(C79, § 27-429.02; O.10,730; C91, § 27-1294; O.11,650, 13,241)

Sec. 114-2162. Center Street.

Center Street, from the west line of Second Avenue to the east line of Ninth Street, stop.

The driver of a vehicle southbound on Twelfth Street using the connecting roadway to turn right at Center Street shall yield the right-of-way to westbound traffic on Center Street, yield.

Center Street, from the east line of Twelfth Street to the east line of Fifteenth Street, stop.

Center Street, from the west line of Fifteenth Street to the east line of Nineteenth Street, stop.

Center Street, from the east line of Nineteenth Street to the east line of Martin Luther King Jr Parkway, with the following restrictions:

(1) Westbound traffic on Center Street shall stop at Nineteenth Street, stop;

(2) The driver of a vehicle southbound on Martin Luther King Jr Parkway using the connecting roadway to turn left at Center Street shall stop for eastbound traffic on Center Street, stop.

Center Street, from the west line of Twenty-fourth Street to the east line of Thirty-fifth Street, stop.

Center Street, at 39th Street, stop.
(C62, §§ 30-419, 30-526, 30-539; O.8084; C75, C79, §§ 27-430, 27-538, 27-551; O.10,730; C85, § 27-430; O.10,770; C91, § 27-1295; O.11,650, 11,935, 12,042, 13,681, 16,293)

Sec. 114-2163. Chamberlain Avenue.

Chamberlain Avenue, from the west line of Forty-second Street to the east line of Polk Boulevard, stop.
(C62, § 30-420; O.8084; C75, C79, § 27-431; O.10,730; C91, § 27-1296; O.11,650, 14,437, 15,753)

Sec. 114-2164. Chautauqua Parkway.

Chautauqua Parkway, from the east line of Thirteenth Street to the east line of Sixteenth Street, stop.
(C62, § 30-421; O.8084; C75, C79, § 27-432; O.10,730; C91, § 27-1297; O.11,650, 13,725)

Sec. 114-2165. Cherry Street.

Cherry Street, from the west line of Fifth Avenue to the east line of Thirteenth Street, stop.
(C62, § 30-422; O.8084; C75, C79, § 27-433; O.10,730; C91, § 27-1298; O.11,650)

Sec. 114-2166. Chicago Avenue.

Chicago Avenue, at East Twenty-seventh Court, stop.
(C91, § 27-1298.05; O.13,241)

Sec. 114-2167. Clark Street.

Clark Street, from the west line of Second Avenue to the east line of Sixth Avenue, stop.

Clark Street, from the west line of Sixth Avenue to the east line of Ninth Street, stop.

Clark Street, from the west line of Ninth Street to the east line of Thirteenth Street, stop.

Clark Street, from the west line of Thirteenth Street to the east line of Sixteenth Street, stop.

Clark Street, from the west line of Sixteenth Street to the east line of Nineteenth Street, stop.

Clark Street, from the west line of Nineteenth Street to the east line of Twenty-seventh Street, stop.

Clark Street, from the west line of Twenty-seventh Street to the east line of Thirty-fourth Street, stop.

Clark Street, at Fifty-seventh Street, stop.

Clark Street, at Fifty-seventh Place, stop.

Clark Street, at Sixty-second Street, stop.

Clark Street, at Illinois Street, stop.

Clark Street, from the west line of Michigan Street to the east line of Illinois Street, stop.
(C62, § 30-424; O.8084; C75, C79, § 27-435; O.10,730; C91, § 27-1299; O.11,650, 11,733, 13,241, 13,248, 13,780)

Sec. 114-2168. Cleveland Avenue.

Cleveland Avenue, from the east line of East Thirteenth Street to the west line of East Fourteenth Street, stop.

Cleveland Avenue, from the east line of East Fourteenth Street to the west line of Wayne Street, stop.

Cleveland Avenue, at East Twenty-eighth Street, stop.

Cleveland Avenue, at East Thirty-second Street, stop.
(C62, § 30-425; O.8084; C75, C79, § 27-436; O.10,730; C91, § 27-1300; O.11,650, 11,877, 13,241)

Sec. 114-2169. Reserved.

Editor's note—Ord. No. 14,057, repealed § 114-2169 which pertained to Clifton Avenue and derived from Code 1962, § 30-426; Ord. No. 8084; Code 1975, Code 1979, § 27-437; Ord. No. 10,730; Code 1991, § 27-1301; Ord. No. 11,650.

Sec. 114-2170. Clinton Avenue.

Clinton Avenue, at Forty-second Street, stop.
(C91, § 27-1301.05; O.13,241)

Sec. 114-2171. College Avenue.

College Avenue, from the east line of Michigan Street to the east line of Ninth Street, stop.

College Avenue, from the west line of Ninth Street to the east line of Sixteenth Street, stop.

College Avenue, from the west line of Forty-first Street to the east line of Forty-eighth Street, stop.

College Avenue, at Fifty-seventh Place, stop.

College Avenue, at Sixtieth Street, stop.
(C62, § 30-427; O.8084, 8273; C75, § 27-438; O.8970; C79, § 27-483; O.10,730; C91, § 27-1302; O.11,650, 13,241)

Sec. 114-2172. Columbia Street.

Columbia Street, at Grandview Avenue, stop.

Columbia Street, at Tiffin Avenue, stop.
(C85, § 27-438.01; O.10,799, 11,566; C91, § 27-1303; O.11,650, 13,241)

Sec. 114-2173. Reserved.

Editor's note—Ord. No. 13,724 repealed § 114-2173 which pertained to Columbus Avenue and derived from Code 1991, § 27-1303.5 and Ord. No. 13,102.

Sec. 114-2173.01. Reserved.

Editor's note—Ord. No. 15,355, § 1, adopted March 9, 2015, repealed § 114-2173.01, which pertained to Southwest Connector and derived from Ord. No. 15,242.

Sec. 114-2174. Cornell Street.

Cornell Street, from the north line of East Sheridan Avenue to the south line of Hull Avenue, stop.

Cornell Street, from the north line of Hull Avenue to the south line of East Madison Avenue, stop.

Cornell Street, from the north line of East Madison Avenue to the north corporate limits, stop.
(C62, § 30-428; O.8084; C75, § 27-439; O.9116, 9163; C79, § 27-439; O.9800, 9823, 10,730; C91, § 27-1304; O.11,650)

Sec. 114-2175. Corning Avenue.

Corning Avenue, from the west line of Second Avenue to the east line of Sixth Avenue, stop.
(C62, § 30-429; O.8084; C75, C79, § 27-440; O.10,730; C91, § 27-1305; O.11,650)

Sec. 114-2176. Cottage Grove Avenue.

The driver of a vehicle southbound on Martin Luther King Jr Parkway using the connecting

roadway to turn right at Cottage Grove Avenue shall yield the right-of-way to westbound traffic on Cottage Grove Avenue, yield.

Cottage Grove Avenue, from the west line of Nineteenth Street to the east line of Thirty-first Street, stop.

Cottage Grove Avenue, from the west line of Thirty-first Street to the east line of Thirty-fifth Street, stop.

Cottage Grove Avenue, from the west line of Thirty-fifth Street to the east line of Forty-second Street, stop.
(C62, §§ 30-430, 30-539; O.8084, 8670, 8689; C75, C79, §§ 27-441, 27-551; O.9814, 10,730; C91, § 27-1306; O.11,650, 11,935)

Sec. 114-2177. County Line Road.

County Line Road, from the west line of Southwest Ninth Street to the east line of Fleur Drive, stop.

County Line Road, from the east line of Southwest Ninth Street to the west line of South Union Street, stop.
(C62, § 30-431; O.8084; C75, C79, § 27-442; C91, § 27-1307; O.11,650, 14,855, 14,905, 14,982)

Sec. 114-2177.01. East County Line Road.

East County Line Road, on the north half, from the east line of South Union Street to the west line of Southeast Fourteenth Street, stop.

East County Line Road, from the east line of Southeast Fourteenth Street to Southridge Boulevard, stop.
(O.14,982)

Sec. 114-2178. Court Avenue.

Court Avenue, from the middle of the Court Avenue Bridge over the Des Moines River to the east line of Fifth Avenue, stop.
(C62, § 30-432; O.8084; C75, C79, § 27-443; O.10,730; C91, § 27-1308; O.11,650)

Sec. 114-2179. East Court Avenue.

East Court Avenue, from the middle of the Court Avenue Bridge over the Des Moines River to the east line of East Sixteenth Court, stop.

East Court Avenue, at East Thirty-second Court Avenue/Southeast Thirty-second Court Avenue, stop.

East Court Avenue, at East Thirty-third Court Avenue/Southeast Thirty-third Court Avenue stop.
(C62, § 30-433; O.8084; C75, C79, § 27-444; O.10,730; C91, § 27-1309; O.11,650, 15,580)

Sec. 114-2180. Crestmoor Place.

Crestmoor Place, at Thirty-eighth Place, stop.
(C91, § 27-1309.05; O.13,241, 13,248)

Sec. 114-2181. Crocker Street.

Crocker Street, from the west line of Seventh Street to the east line of Ninth Street, stop.

Crocker Street, from the west line of Ninth Street to the east line of Twelfth Street, stop.

Crocker Street, from the east line of Sixteenth Street to the east line of Nineteenth Street, stop.

Crocker Street, from the west line of Thirty-first Street to the east line of Thirty-fifth Street, stop.

Crocker Street, from the west line of Thirty-fifth Street to the east line of Thirty-eighth Street, stop.

Crocker Street, from the west line of Thirty-eighth Street to the east line of Forty-second Street, stop.

Crocker Street, from the west line of Forty-second Street to the north line of Chamberlain Avenue, stop.
(C62, § 30-434; O.8084, 8187; C75, C79, § 27-445; O.10,730; C91, § 27-1310; O.11,650, 15,253, 15,736)

Sec. 114-2182. Cummins Parkway.

Cummins Parkway, from the south line of Windsor Drive to the south line of University Avenue, west leg, stop.

Cummins Parkway, from the north line of University Avenue to the west line of Merle Hay Road, stop.
(C62, § 30-352; O.8084; C75, C79, §§ 27-544, 27-544.01 to 27-544.04, 27-545.01, 27-548.01, 27-558.01, 27-561.02, 27-561.02; O.9957, 10,730; C79, § 27-445.01; C91, § 27-1311; O.11,650, 13,047, 13,102)

Sec. 114-2183. Davis Avenue.

Davis Avenue, at Courtland Drive, stop.
(C91, § 27-1311.05; O.13,241)

Sec. 114-2184. Day Street.

Day Street, from the west line of Ninth Street to the west line of Thirteenth Street, stop.
(C62, § 30-435; O.8084; C75, C79, § 27-446; O.10,730; C91, § 27-1312; O.11,650)

Sec. 114-2185. Dean Avenue.

Dean Avenue, from the east line of East Fifteenth Street to the west line of Redhead Road, stop.

Dean Avenue, from the northwest line of Redhead Road to the east line of East Thirty-fourth Street, stop.

Dean Avenue, from the east line of Southeast Thirty-sixth Street to the east city limits, stop.
(C62, § 30-436; O.8084; C75, § 27-447; O.9023; C79, § 27-447; O.10,730; C85, § 27-447; O.11,372; C91, § 27-1313; O.11,650, 13,375)

Sec. 114-2186. Delaware Avenue.

Delaware Avenue, from the south line of Easton Boulevard to the north corporate limits, stop.
(C62, § 30-437; O.8084; C75, C79, § 27-448; O.10,730; C91, § 27-1314; O.11,650)

Sec. 114-2187. Des Moines Street.

Des Moines Street, from the east line of Robert D Ray Drive to the west line of East Fifth Street, stop.

Des Moines Street, from the east line of East Ninth Street to the west line of East Twelfth Street, stop.

Des Moines Street, from the east curbline of East Fifteenth Street to the west curbline of East Seventeenth Street, stop.

Des Moines Street, at East Twenty-second Street, stop.

Des Moines Street, at East Twenty-seventh Street, stop.
(C62, § 30-438; O.8084; C75, § 27-449; O.9023; C79, § 27-449; O.10,730; C91, § 27-1315; O.11,650, 13,146, 13,241, 14,254, 14,437)

Sec. 114-2188. Reserved.

Editor's note—Ord. No. 16,462, § 1, adopted May 5, 2025, repealed § 114-2188, which pertained to DeWolf Street and derived from Code 1985, § 27-449.005; Ord. No. 11,248; Code 1991, § 27-1316; Ord. No. 11,650.

Sec. 114-2189. East Diehl Avenue.

East Diehl Avenue, at Southeast Second Street, stop.

East Diehl Avenue, at Southeast Fourth Street, stop.
(C91, § 27-1316.05; O.13,241)

Sec. 114-2190. Dixon Street.

Dixon Street, from the north line of East Washington Avenue to the south line of Hull Avenue, stop.

Dixon Street, from the north line of Hull Avenue to the south line of East Aurora Avenue, stop.
(C75, § 27-449.01; O.9295; C79, § 27-449.01; O.10,730; C85, § 27-449.01; O.11,402; C91, § 27-1317; O.11,650, 11,688, 16,462)

Sec. 114-2191. Douglas Avenue.

Douglas Avenue, from the east line of First Street to the east line of Sixth Avenue, stop.

Douglas Avenue, from the west line of Sixth Avenue to the east line of Ninth Street, stop.

Douglas Avenue, from the west line of Ninth Street to the east line of Twelfth Street, stop.

Douglas Avenue, from Euclid Avenue at the west line of Martin Luther King Jr Parkway to the west corporate limits, stop.

The driver of a vehicle eastbound on Douglas Avenue using the connecting roadway to turn right at Euclid Avenue shall yield the right-of-way to westbound traffic on Euclid Avenue, yield.
(C62, §§ 30-439, 30,534; O.8084; C75, C79, §§ 27-450, 27-546; O.10,730; C91, § 27-1318; O.11,650, 11,935, 13,646)

Sec. 114-2192. East Douglas Avenue.

East Douglas Avenue, from the west line of First Street to the west line of East Fourteenth Street, stop.

East Douglas Avenue, from the east line of Lay Street to the west line of East Twenty-ninth Street, stop.

East Douglas Avenue, at East Thirty-third Street/Colfax Avenue, stop.

East Douglas Avenue, at Kennedy Drive, stop.

East Douglas Avenue, from the east line of Avenue Frederick M. Hubbell to the east city limits, stop.
(C62, § 30-440; O.8084; C75, § 27-451; O.9197, 9518, 9541, 9593; C79, § 27-451; O.10,730; C85, § 27-451; O.11,277; C91, § 27-1319; O.11,650, 12,049, 13,516, 13,877, 15,881)

Sec. 114-2193. Dubuque Avenue.

Dubuque Avenue, from the east line of East Thirty-third Street to the west line of East Fortieth Street, stop.

Dubuque Avenue, at East Forty-first Street, stop.
(C62, § 30-440.01; O.8433; C75, C79, § 27-451.01; O.10,730; C91, § 27-1320; O.11,650, 13,241)

Sec. 114-2194. East Dunham Avenue.

East Dunham Avenue, at Southeast Second Street, stop.

East Dunham Avenue, at Southeast Fourth Street, stop.

East Dunham Avenue, at Southeast Eighth Street, stop.
(C91, § 27-1320.05; O.13,102, 13,241)

Sec. 114-2195. Easter Lake Drive.

Easter Lake Drive (eastbound), from the east line of Indianola Avenue to Southeast Thirty-sixth Street, stop.

Easter Lake Drive (westbound), from the west line of Southeast Thirty-fourth Street to the west line of Indianola Avenue, stop.
(C85, § 27-451.01; O.11,302; C91, § 27-1321; O.11,650, 14,396)

Sec. 114-2196. Easton Boulevard.

Easton Boulevard, from the north line of East University Avenue to the west line of East Twenty-first Street, stop.

Easton Boulevard, from the east line of East Twenty-second Street to the west line of East Forty-second Street, stop.

Easton Boulevard, from the east line of East Forty-second Street to the east corporate limits, stop.
(C62, § 30-441; O.8084; C75, C79, § 27-452; O.10,730; C91, § 27-1322; O.11,650, 12,005)

Sec. 114-2196.05. Echo Valley Drive.

County Line Road, on the north half, from the west line of Fleur Drive to the west corporate limits, stop.
(O.14,855)

Sec. 114-2197. Edison Avenue.

Edison Avenue, at Southeast Second Street, stop.

Edison Avenue, at Southeast Third Street, stop.
(C62, § 30-442; O.8084; C75, C79, § 27-453; O.10,730; C91, § 27-1323; O.11,650, 13,047, 13,241)

Sec. 114-2198. Elm Street.

Elm Street, at Southeast Twenty-seventh Court, stop.

Elm Street, from the west line of Southwest Seventh Street to the west line of Southwest Eighth Street, stop.
(C62, § 30-442.01; O.8205; C75, C79, § 27-453.01; O.10,730; C91, § 27-1324; O.11,650, 13,218, 13,951, 14,102, 15,790)

Sec. 114-2199. Elder Lane.

Elder Lane, at Southwest Thirteenth Place, stop.
(C91, § 27-1324.05; O.13,241)

Sec. 114-2200. Elizabeth Avenue.

Elizabeth Avenue, at East Twenty-fourth Street, stop.
(C91, § 27-1324.06; O.13,241)

Sec. 114-2201. Euclid Avenue.

Euclid Avenue, from the east line of First Street to Douglas Avenue at the east line of Martin Luther King Jr Parkway, stop.

Euclid Avenue, from the east line of Twenty-seventh Street to the west line of Twenty-eighth Street, stop.

Euclid Avenue, at Thirtieth Street, stop.
(C62, § 30-443; O.8084, 8674; C75, C79, § 27-454; O.10,730; C91, § 27-1325; O.11,650, 11,935, 13,298)

Sec. 114-2202. East Euclid Avenue.

East Euclid Avenue, from the west line of First Street to the east line of Avenue Frederick M. Hubbell, stop.
(C62, § 30-444; O.8084; C75, C79, § 27-455; O.10,730; C91, § 27-1326; O.11,650)

Sec. 114-2203. Evans Street.

Evans Street, at Southwest Twelfth Street, stop.
(C91, § 27-1326.05; O.13,241)

Sec. 114-2204. Evergreen Avenue.

Evergreen Avenue, from the east line of Indianola Avenue to the west line of Southeast Twenty-second Street, stop.

Evergreen Avenue, from the east line of Southeast Twenty-second Street to the north line of East Watrous Avenue, stop.

Evergreen Avenue, from the south line of East Watrous Avenue to the west line of Southeast Thirty-fourth Street, stop.

Evergreen Avenue, from Southeast Brooks Drive to Southeast Fortieth Street, stop.
(C75, § 27-455.01; O.9429; C79, § 27-455.01; O.10,730; C91, § 27-1327; O.11,650, 11,892, 13,762, 14,057, 14,905, 15,506)

Sec. 114-2205. Filmore Street.

Filmore Street, at East Eight Street, stop.
(C79, § 27-546.01; O.9957, 10,730; C79, § 27-455.02; C91, § 27-1328; O.11,650, 14,727, 14,855)

Sec. 114-2206. Fleming Avenue.

Fleming Avenue, at Lawnwoods Drive, stop.
(C91, § 27-1328.05; O.13,241)

Sec. 114-2207. Fleur Drive.

Fleur Drive, from the south line of West Martin Luther King Jr Parkway and Martin Luther King Jr Parkway intersection south to George Flagg Parkway, stop.

Fleur Drive, from the south line of Locust Street to Border Street, stop.

Fleur Drive, from Border Street on the east half of Fleur Drive to Bronze Street, stop.

The driver of a vehicle westbound on Bell Avenue using the connecting roadway to turn right at Fleur Drive shall yield the right-of-way to northbound traffic on Fleur Drive, yield.

The driver of a vehicle westbound on Relocated Army Post Road using the connecting roadway to turn right at Fleur Drive shall yield the right-of-way to northbound traffic on Fleur Drive, yield.

The driver of a vehicle eastbound on Relocated Army Post Road using the connecting roadway to turn right at Fleur Drive shall yield the right-of-way to southbound traffic on Fleur Drive, yield.
(C62, §§ 30-445, 30-530, 30-531; O.8084; C75, C79, §§ 27-456, 27-542, 27-543; O.10,730; C91, § 27-1329; O.11,650, 13,647, 14,418, 14,905)

Sec. 114-2208. Forest Avenue.

Forest Avenue, from the west line of Second Avenue to the east line of Sixth Avenue, stop.

Forest Avenue, from the west line of Sixth Avenue to the east line of Beaver Avenue, stop.

Forest Avenue, from the west line of Beaver Avenue to the east line of Forty-fourth Street, stop.

Forest Avenue, from the west line of Forty-fourth Street to the east line of Forty-eight Street, stop.

Forest Avenue, at Fifty-seventh Place, stop.

Forest Avenue, at Sixty-second Street, stop.
(C62, § 30-446; O.8084; C75, C79, § 27-457; O.10,730; C91, § 27-1330; O.11,650, 13,241, 13,248, 13,869)

Sec. 114-2209. Franklin Avenue.

The driver of a vehicle southbound on Second Avenue using the connecting roadway to turn right at Franklin Avenue shall yield the right-of-way to westbound traffic on Franklin Avenue, yield.

Franklin Avenue, at Tenth Street, stop.

Franklin Avenue, at Oakland Avenue, stop.

Franklin Avenue, at Arlington Avenue, stop (northbound).

Franklin Avenue, at Arlington Avenue, yield (southbound).

Franklin Avenue, from the west line of Thirty-fourth Street to the west corporate limits, stop.
(C62, §§ 30-447, 30-523, 30-529; O.8084; C75, C79, §§ 27-458, 27-535, 27-541; O.10,525, 10,730; C91, § 27-1331; O.11,650, 13,241)

Sec. 114-2210. Fremont Street.

Fremont Street, from the east line of Pennsylvania Avenue to the west line of East Ninth Street, stop.
(C85, § 27-458.001; O.11,506; C91, § 27-1332; O.11,650)

Sec. 114-2211. Garden Avenue.

Garden Avenue, at Lawnwoods Drive, stop.
(C91, § 27-1332.01; O.13,241)

Sec. 114-2212. Garfield Avenue.

Garfield Avenue, at Dixon Street, stop.

Garfield Avenue, at East Twenty-fourth Street, stop.

Garfield Avenue, at East Twenty-fifth Court, stop.

Garfield Avenue, at East Twenty-sixth Court, stop.

Garfield Avenue, from the east curbline of East Twenty-seventh Street to the west curbline of East Twenty-ninth Street, stop.

Garfield Avenue, at East Thirty-second Street, stop.
(C91, § 27-1332.05; O.11,904, 13,241, 13,858)

Sec. 114-2213. Reserved.

Editor's note—Ord. No. 15,328, repealed § 114-2213, which pertained to Geil Avenue and derived from Code 1979, § 27-458.01; Ord. No. 10,730; Code 1991, § 27-1333; Ord. No. 11,650; Ord. No. 13,047.

Sec. 114-2213.01. George Flagg Parkway.

George Flagg Parkway, from the south line of Park Avenue to the west line of Fleur Drive, stop.

The driver of a vehicle southbound on Fleur Drive using the connecting roadway to turn right at George Flagg Parkway shall yield the right-of-way to westbound traffic on George Flagg Parkway, yield.
(O.14,080)

Sec. 114-2214. East Glenwood Drive.

East Glenwood Drive, at Southeast Seventeenth Street, stop (southbound).
(C79, § 27-458.02; O.10,730; C91, § 27-1334; O.11,650, 13,282)

Sec. 114-2215. Glover Avenue.

Glover Avenue, from the south line of Park Avenue to the north line of Thornton Avenue, stop.

Glover Avenue, from the south line of Thornton Avenue to the north line of Watrous Avenue, stop.
(C91, § 27-2334.05; O.13,077)

Sec. 114-2216. Grand Avenue.

Grand Avenue, from the middle of the Grand Avenue Bridge over the Des Moines River to the west corporate limits, stop.
(C62, § 30-448; O.8084; C75, C79, § 27-459; O.10,730; C91, § 27-1335; O.11,650)

Sec. 114-2217. East Grand Avenue.

East Grand Avenue, from the middle of the Grand Avenue Bridge over the Des Moines River to the west line of East Thirtieth Street, stop.
(C62, § 30-449; O.8084; C75, C79, § 27-460; O.10,730; C91, § 27-1336; O.11,650)

Sec. 114-2218. Grandview Avenue.

Grandview Avenue, at Bowdoin Street, stop.
(C91, § 27-1336.01; O.13,241)

Sec. 114-2219. Granger Avenue.

Granger Avenue, from the east curbline of Southeast First Street to the west curbline of Southeast Fifth Street, stop.

Granger Avenue, at Southeast Eighth Street, stop.
(C91, § 27-1336.05; O.13,102, 13,241)

Sec. 114-2220. Gray Street.

Gray Street, at Courtland Drive, stop.

Gray Street, at Southeast Third Street, stop.
(C91, § 27-1336.08; O.13,241, 14,381)

Sec. 114-2220.5. Gray's Parkway.

Gray's Parkway, at Southwest Twelfth Street, stop.

Gray's Parkway, from the west line of Southwest Eleventh Street to the west line of Southwest Fourteenth Street, stop.
(O.15,858, 16,539)

Sec. 114-2221. Greenwood Drive.

Greenwood Drive, at Tonawanda Drive, stop.
(C62, § 30-450; O.8084; C75, C79, § 27-461; O.10,730; C91, § 27-1337; O.11,650)

Sec. 114-2222. Guthrie Avenue.

Guthrie Avenue, from the east line of East Ninth Street to the west line of East Twenty-ninth Street, stop.

Guthrie Avenue, at East Eighth Street, stop.
(C62, § 30-451; O.8084; C75, § 27-462; O.9445; C79, § 27-462; O.10,382, 10,730; C91, § 27-1338; O.11,650, 15,068)

Sec. 114-2223. Hackley Avenue.

Hackley Avenue, at Southwest Thirteenth Street, stop.
(C91, § 27-1338.01; O.13,420)

Sec. 114-2224. Hart Avenue.

Hart Avenue, at Southeast Second Street, stop.

Hart Avenue, at Southeast Fourth Street, stop.

Hart Avenue, at Southeast Twenty-fifth Street, stop.

Hart Avenue, from the east line of Southeast Thirty-sixth Street to the west line of Southeast Forty-fifth Street, stop.
(C91, § 27-1339; O.13,241, 14,844, 14,851, 14,905)

Sec. 114-2225. Harrison Avenue.

Harrison Avenue, at Fourteenth Street, stop.
(C91, § 27-1339.05; O.13,241)

Sec. 114-2226. Hartford Avenue.

Hartford Avenue, from the east line of Indianola Avenue to the west line of Southeast Sixth Street, stop.

Hartford Avenue, from the east line of Southeast Sixth Street to the west line of Southeast Fourteenth Street, stop.

Hartford Avenue, from the east line of Southeast Fourteenth Street to the east line of Southeast Twenty-second Street, stop.
(C62, § 30-452.01; O.8491; C75, C79, § 27-463.01; O.10,730; C91, § 27-1340; O.11,650, 14,057)

Sec. 114-2227. Harwood Drive.

Harwood Drive, at Fiftieth Street, stop.

Harwood Drive, at Fifty-second Street, stop.

Harwood Drive, at Fifty-third Street, stop.

Harwood Drive, at Woodland Avenue (east leg), yield.

Harwood Drive, at Bradway Place, yield.
(C91, § 27-1340.05; O.13,241, 15,140, 15,466)

Sec. 114-2228. Heliotrope Drive.

Heliotrope Drive, at Loomis Avenue, stop.
(C91, § 27-1340.06; O.13,241)

Sec. 114-2229. Henderson Avenue.

Henderson Avenue, at East Fifteenth Street, stop.
(C91, § 27-1340.07; O.13,241)

Sec. 114-2230. Hickman Road.

Hickman Road, from the west line of Sixth Avenue to the west corporate limits, stop.
(C62, § 30-453; O.8084; C75, C79, § 27-464; O.10,730; C91, § 27-1341; O.11,650)

Sec. 114-2231. High Street.

High Street, from the west line of Sixth Avenue to the east line of Martin Luther King Jr Parkway, stop.

High Street, from the west line of Martin Luther King Jr Parkway to the east line of Twenty-eighth Street, stop.

High Street, from the west line of Twenty-eighth Street to the east line of Thirty-first Street, stop.

The driver of a vehicle northbound on Fourteenth Street at High Street shall yield the right-of-way to westbound traffic on High Street, yield.
(C62, §§ 30-454, 30-540; O.8084, 8205; C75, C79, §§ 27-465, 27-552; O.10,730; C91, § 27-1342; O.11,650, 11,935)

Sec. 114-2232. Highview Drive.

Highview Drive, at Southwest Eighteenth Street, stop.
(C75, § 27-465.01; O.8981; C79, § 27-465.01; O.10,730; C91, § 27-1343; O.11,650, 13,047)

Sec. 114-2232.5. Hillside Avenue.

Hillside Avenue, at Southwest Fourth Street, stop.
(O.13,724)

Sec. 114-2233. Holcomb Avenue.

Holcomb Avenue, at Oxford Street, stop.

Holcomb Avenue, at Twenty-sixth Street, stop.

Holcomb Avenue, at Thirty-seventh Street, stop.

Holcomb Avenue, at Fortieth Place, stop.

Holcomb Avenue, from the west line of Fifty-ninth Street to the east line of Sixty-second Street, stop.
(C91, § 27-1343.05; O.11,860, 11,892, 13,047, 13,241, 14,428)

Sec. 114-2233.05. Hubbell Avenue.

Hubbell Avenue, from East Forty-third Court to the northeast corporate limits, stop.
(O.14,905)

Sec. 114-2234. Hull Avenue.

Hull Avenue, from the east line of Second Avenue to the west line of Cornell Street, stop.

Hull Avenue, from the east line of Cornell Street to the west line of Dixon Street, stop.

Hull Avenue, from the east line of Dixon Street to the west line of East Twenty-ninth Street, stop.

Hull Avenue, at East Thirty-fifth Street, stop.

Hull Avenue, at East Thirty-sixth Court, stop.
(C62, § 30-455; O.8084, 8108; C75, C79, § 27-466; O.10,730; C85, § 27-466; O.11,382, 11,600; C91, § 27-1344; O.11,650, 13,241, 15,301)

Sec. 114-2235. Indiana Avenue.

Indiana Avenue, at Illinois Street, stop.

Indiana Avenue, at Maine Street, stop.

Indiana Avenue, from the west line of Second Avenue to the east line of Sixth Avenue, stop.

Indiana Avenue, at Eighth Street, stop.
(C79, §§ 27-535.01, 27-535.02; O.10,056, 10,270, 10,730; C79, § 27-446.01; C85, § 27-466.01; O.11,372; C91, § 27-1345; O.11,650, 11,908, 14,102, 15,964, 16,093)

Sec. 114-2236. Reserved.

Editor's note—Ord. No. 14,057, repealed § 114-2236 which pertained to Indianola Avenue and derived from Code 1962, § 30-456; Ord. No. 8084; Code 1975; Code 1979, § 27-467; Ord. No. 10,730; Code 1985, § 27-467; Ord. No. 11,256; Code 1991, § 27-1346; Ord. No. 11,650; Ord. No. 14,057.

Sec. 114-2237. Indianola Avenue.

Indianola Avenue, from the south line of Jackson Avenue to the north line of East Army Post Road, stop.

Indianola Avenue, from the south line of East Army Post Road to the northerly line of Southridge Boulevard, stop.
(C85, § 27-467.01; O.11,302; C91, § 27-1347; O.11,650, 14,057, 14,437, 14,982)

Sec. 114-2238. Indianapolis Avenue.

Indianapolis Avenue, at East Twenty-seventh Court, stop.

Indianapolis Avenue, at East Twenty-eighth Street, stop.
(C91, § 27-1347.05; O.13,241, 13,874)

Sec. 114-2239. Ingersoll Avenue.

Ingersoll Avenue, from the west line of Fourteenth Street to the east line of Polk Boulevard, stop.

Ingersoll Avenue, from the west line of Polk Boulevard to the east line of Fifty-sixth Street, stop.

Ingersoll Avenue, from the west line of Fifty-sixth Street to the east line of Fifty-ninth Street, stop.
(C62, § 30-457; O.8084; C75, C79, § 27-468; O.10,730; C91, § 27-1348; O.11,650, 16,299)

Sec. 114-2240. Interstate 235 (Des Moines Freeway).

The driver of a vehicle eastbound on Ramp P-2, Interstate 235 (Des Moines Freeway), turning left at Pennsylvania Avenue shall yield the right-of-way to northbound traffic on Pennsylvania Avenue, yield.

The driver of a vehicle westbound on Ramp P-3, Interstate 235 (Des Moines Freeway), turning right at Pennsylvania Avenue shall yield the right-of-way to northbound traffic on Pennsylvania Avenue, yield.

The driver of a vehicle westbound on Ramp 6-2, Interstate 235 (Des Moines Freeway), turning left at East Sixth Street shall yield the right-of-way to southbound traffic on East Sixth Street, yield.

The driver of a vehicle westbound on Ramp P-6, Interstate 235 (Des Moines Freeway), at East Sixth Street shall yield the right-of-way to westbound traffic on Ramp 6-3, Interstate 235 (Des Moines Freeway), yield.

The driver of a vehicle westbound on Ramp S-5, Interstate 235 (Des Moines Freeway), turning left at Third Street shall yield the right-of-way to southbound traffic on Third Street, yield.

The driver of a vehicle westbound on Ramp K-4, Interstate 235 (Des Moines Freeway), turning right at Keosauqua Way shall yield the right-of-way to northbound traffic on Keosauqau Way, yield.

The driver of a vehicle eastbound on Ramp K-7, Interstate 235 (Des Moines Freeway), turning right at Keosauqua Way shall yield the right-of-way to northbound traffic on Keosauqua Way, yield.

The driver of a vehicle westbound on Ramp 31-4, Interstate 235 (Des Moines Freeway), turning right at Thirty-first Street shall yield the right-of-way to northbound traffic on Thirty-first Street, yield.

The driver of a vehicle westbound on Ramp 42-4, Interstate 235 (Des Moines Freeway), turning right at Forty-second Street shall yield the right-of-way to northbound traffic on Forty-second Street, yield.

The driver of a vehicle westbound on Ramp 56-4, Interstate 235 (Des Moines Freeway), turning right at Fifty-sixth Street shall yield the right-of-way to northbound traffic on Fifty-sixth Street, yield.

The driver of a vehicle westbound on Ramp 63-4, Interstate 235 (Des Moines Freeway), turning right at Sixty-third Street shall yield the right-of-way to northbound traffic on Sixty-third Street, yield.
(C62, § 30-541; O.8084; C75, C79, § 27-553; O.10,730; C79, § 27-468.01; C91, § 27-1349; O.11,650)

Sec. 114-2241. Iola Avenue.

Iola Avenue, at Thirty-third Street, stop.
(C91, § 27-1349.05; O.13,241)

Sec. 114-2242. Iowa Highway 28.

Iowa Highway 28, from Southwest Sixty-third Street to Army Post Road, stop.
(C91, § 27-1349.07; O.13,363)

Sec. 114-2243. Jackson Avenue.

Jackson Avenue, at Southwest First Street, stop.

Jackson Avenue, at South Union Street, stop.
(C62, § 30-458; O.8084; C75, C79, § 27-469; O.10,730; C91, § 27-1350; O.11,650, 13,047, 13,218)

Sec. 114-2244. East Jackson Avenue.

East Jackson Avenue, from the east line of Southeast First Street to the west line of Southeast Sixth Street, stop.

East Jackson Avenue, at Southeast Eighth Street, stop.
(C79, § 27-469.01; O.10,730; C91, § 27-1351; O.11,650, 13,047, 13,241)

Sec. 114-2245. Jefferson Avenue.

Jefferson Avenue, from the west line of Sixth Avenue to the east line of Twelfth Street, stop.

Jefferson Avenue, at East Eighteenth Street, stop.
(C62, § 30-459; O.8084; C75, C79, § 27-470; O.10,730; C85, § 27-470, O.11,248; C91, § 27-1352; O.11,650)

Sec. 114-2246. East Jefferson Avenue.

East Jefferson Avenue, at East Twenty-third Street, stop.

East Jefferson Avenue, at Lay Street, stop.
(C91, § 27-1352.05; O.13,102)

Sec. 114-2247. John Patterson Road.

John Patterson Road, at East Thirty-first Street, stop.
(C91, § 27-1352.06; O.13,241)

Sec. 114-2248. Johnson Court.

Johnson Court, from the east line of East Fourteenth Street to the south line of Dean Avenue, stop.

Johnson Court, from the north line of Maple Street to the east line of East Fourteenth Street, stop.
(C75, § 27-470.01; O.9593; C79, § 27-470.01; O.10,730; C91, § 27-1353; O.11,650)

Sec. 114-2249. Reserved.

Editor's note—Ord. No. 15,328, repealed § 114-2249, which pertained to Johnson Street and derived from Code 1979, § 27-470.02; Ord. No. 10,730; Code 1991, § 27-1354; Ord. No. 11,650; Ord. No. 13,047.

Sec. 114-2250. Kasson Street.

Kasson Street, from the south line of East Walnut Street to the north line of East Court Avenue, stop.
(C62, § 30-460; O.8084; C75, C79, § 27-471; O.10,730; C91, § 27-1355; O.11,650)

Sec. 114-2251. East Kenyon Avenue.

East Kenyon Avenue, at Southeast First Court, stop.
(C91, § 27-1355.05; O.13,241)

Sec. 114-2252. Keosauqua Way.

Keosauqua Way, from the west line of Eighth Place to the east line of Nineteenth Street, stop.

The driver of a vehicle southbound on Good Park Drive at Keosauqua Way shall yield the right-of-way to southbound traffic on Keosauqua Way, yield.
(C62, §§ 30-461, 30-537; O.8084; C75, C79, §§ 27-472, 27-549; O.10,730; C91, § 27-1356; O.11,650, 12,042, 13,855)

Sec. 114-2253. King Avenue.

King Avenue, at Southeast Nineteenth Street, stop.

King Avenue, from the east line of Southeast Twenty-second Street to the east of River Ridge Road, stop.
(C85, § 27-472.01; O.11,225; C91, § 27-1357; O.11,650, 13,047, 14,918, 15,534, 15,756)

Sec. 114-2254. Kingman Avenue.

Kingman Avenue, at Fifty-seventh Street, stop.

Kingman Avenue, at Fifty-eighth Street, stop.
(C91, § 27-1357.05; O.13,241, 13,942)

Sec. 114-2255. Kingman Boulevard.

Kingman Boulevard, from the west line of Cottage Grove Avenue to the east line of Twenty-eighth Street, stop.

Kingman Boulevard, from the west line of Twenty-eighth Street to the east line of Thirty-first Street, stop.

Kingman Boulevard, from the west line of Thirty-first Street to the east line of Thirty-fifth Street, stop.

Kingman Boulevard, from the west line of Thirty-fifth Street to the east line of Forty-second Street, stop.

Kingman Boulevard, from the west line of Forty-second Street to the east line of Polk Boulevard, stop.
(C62, § 30-462; O.8084, 8670; C75, C79, § 27-473; O.10,730; C91, § 27-1358; O.11,650, 11,778)

Sec. 114-2256. Kinsey Avenue.

Kinsey Avenue, at East Twenty-eighth Street, stop.

Kinsey Avenue, at East Thirty-second Street, stop.
(C91, § 27-1358.05; O.13,241)

Sec. 114-2257. Kirkwood Avenue.

Kirkwood Avenue, at Courtland Drive, stop.
(C91, § 27-1358.06; O.13,241)

Sec. 114-2258. Lacona Avenue.

Lacona Avenue, from the east line of Southeast Sixth Street to the west line of Southeast Fourteenth Street, stop.

Lacona Avenue, at Southeast Eighteenth Court, stop.
(C62, § 30-463; O.8084; C75, C79, § 27-474; O.10,730; C91, § 27-1359; O.11,650, 13,047, 13,241)

Sec. 114-2258.5. Lake Ridge Avenue.

Lake Ridge Avenue at Brockway Driveway, stop.
(O.16,475)

Sec. 114-2259. Lally Street.

Lally Street, from the west line of Southwest Fifth Street to the east line of Southwest Ninth Street, stop.
(C91, § 27-1359.05; O.13,241)

Sec. 114-2260. Laurel Street.

Laurel Street, from the west line of Second Avenue to the east line of Sixth Avenue, stop.
(C62, § 30-464; O.8084; C75, C79, § 27-475; O.10,730; C91, § 27-1360; O.11,650)

Sec. 114-2261. Lawnwoods Drive.

Lawnwoods Drive, at Seneca Avenue, stop.

Lawnwoods Drive, at Lindlavista Way, stop.

Lawnwoods Drive, at Bel-Aire Road, stop.
(C91, § 27-1360.01; O.13,241, 14,876)

Sec. 114-2262. Lay Street.

Lay Street, at Thompson Avenue, stop.

Lay Street, at East Madison Avenue, stop.
(C91, § 27-1360.05; O.11,904, 13,102, 13,282)

Sec. 114-2263. Leach Avenue.

Leach Avenue, from the west line of South Union Street to the east line of Southwest Ninth Street, stop.
(C62, § 30-465; O.8084; C75, C79, § 27-476; O.10,730; C91, § 27-1361; O.11,650, 13,047)

Sec. 114-2264. East Leach Avenue.

East Leach Avenue, from the east line of South Union Street to the west line of Southeast Fifth Street, stop.
(C79, § 27-476.01; O.10,730; C91, § 27-1362; O.11,650, 13,047)

Sec. 114-2265. Leado Avenue.

Leado Avenue, from the west line of Thirtieth Street to the west line of Thirty-fourth Street, stop.
(C62, § 30-466; O.8084; C75, C79, § 27-477; O.10,730; C91, § 27-1363; O.11,650)

Sec. 114-2266. Leland Avenue.

Leland Avenue, at Southwest Second Street, stop.
(C62, § 30-467; O.8084; C75, C79, § 27-478; O.10,730; C91, § 27-1364; O.11,650, 13,317)

Sec. 114-2267. East Leland Avenue.

East Leland Avenue, at Southeast Second Street, stop.

East Leland Avenue, at Southeast Fourth Street, stop.
(C91, § 27-1364.01; O.13,241)

Sec. 114-2268. Lewis Avenue.

Lewis Avenue, at Southwest Tenth Street, stop.
(C91, § 27-1364.02; O.13,241)

Sec. 114-2269. Lincoln Avenue.

Lincoln Avenue, from the west curbline of Martin Luther King Jr Parkway to the east curbline of Twenty-third Street, stop.
(C91, § 27-1364.05; O.13,160)

Sec. 114-2270. Lincoln Place Drive.

Lincoln Place Drive, at John Lynde Road, stop.

Lincoln Place Drive, at Mahaska Parkway, stop.
(C91, § 27-1364.06; O.13,333)

Sec. 114-2270.5. Lindlavista Way.

Lindlavista Way, at Thirty-eighth Street, stop.
(O.13,724)

Sec. 114-2270.7. East Livingston Avenue.

East Livingston Avenue, at Southeast Third Street, stop.
(O.15,590)

Sec. 114-2271. Locust Street.

Locust Street, from the middle of the Locust Street Bridge over the Des Moines River to the east line of Eighteenth Street, stop.
(C62, § 30-468; O.8084; C75, C79, § 27-479; O.10,730; C91, § 27-1365; O.11,650)

Sec. 114-2272. East Locust Street.

East Locust Street, from the middle of the Locust Street Bridge over the Des Moines River to the west line of East Fifth Street, stop.

East Locust Street, from the east line of East Fifth Street to the east line of East Seventh Street, stop.
(C62, § 30-469; O.8084; C75, C79, § 27-480; O.10,730; C91, § 27-1366; O.11,650, 15,340)

Sec. 114-2273. Logan Avenue.

Logan Avenue, at East Twenty-seventh Street, stop.

Logan Avenue, at East Twenty-ninth Street, stop.

Logan Avenue, at East Thirtieth Court, stop.
(C91, § 27-1366.05; O.13,241)

Sec. 114-2274. Lower Beaver Road.

Lower Beaver Road, from the north line of Douglas Avenue to the south line of Bel-Aire Road, stop.

Lower Beaver Road, from the north line of Bel-Aire Road to the north corporate limits, stop.
(C62, § 30-470; O.8084; C75, C79, § 27-481; O.10,730; C91, § 27-1367; O.11,650, 14,541)

Sec. 114-2275. Lyon Street.

Lyon Street, at East Seventeenth Street, stop.

Lyon Street, at East Twenty-second Street, stop.

Lyon Street, at East Twenty-seventh Street, stop.
(C91, § 27-1367.05; O.13,146, 13,241)

Sec. 114-2276. Madison Avenue.

Madison Avenue, from the east line of First Street to the east line of Twelfth Street, stop.

Madison Avenue, from the west line of Twelfth Street to the east line of Fifteenth Street, stop.

Madison Avenue, from the east line of Martin Luther King Jr Parkway to the east line of Merle Hay Road, stop.
(C62, § 30-471; O.8084; C75, § 27-482; O.9219; C79, § 27-482; O.10,730; C91, § 27-1368; O.11,650, 11,935)

Sec. 114-2277. East Madison Avenue.

East Madison Avenue, from the west line of First Street to the west line of Dixon Street, stop.

East Madison Avenue, at East Twenty-third Street (south approach), stop.

East Madison Avenue, from the east line of East Twenty-fifth Street to the west line of East Twenty-ninth Street, stop.

East Madison Avenue, at East Thirtieth Street, stop.
(C62, § 30-472; O.8084; C75, § 27-483; O.9163, 9541; C79, § 27-483; O.10,730; C85, § 27-483; O.11,402; C91, § 27-1369; O.11,650, 11,924, 13,047, 13,241, 14,918, 15,934)

Sec. 114-2277.1. Mahaska Avenue.

Mahaska Avenue, at East Thirty-eighth Street, stop.

Mahaska Avenue, at East Forty-first Street, stop.
(O.13,874)

Sec. 114-2278. Maple Street.

Maple Street, from the dead end west of East Twentieth Street to the west line of East Twenty-third Street, stop.

Maple Street, from the east line of East Twenty-third Street to the west line of East Twenty-sixth Street, stop.

Maple Street, from the east line of East Twenty-sixth Street to the west line of East Twenty-ninth Street, stop.
(C62, § 30-473; O.8084; C75, § 27-484; O.9023; C79, § 27-484; O.10,730; C85, § 27-484; O.11,448; C91, § 27-1370; O.11,650)

Sec. 114-2279. East Market Street.

East Market Street, from the east line of Southeast Eighteenth Street to the west line of Southeast Twenty-eighth Street, stop.
(C62, § 30-473.01; O.8124; C75, C79, § 27-485; O.10,730; C91, § 27-1371; O.11,650, 13,951)

Sec. 114-2280. Martin Luther King Jr Parkway.

Martin Luther King Jr Parkway, from the north line of West Martin Luther King Jr Parkway to the north line of Madison Avenue, stop.

The driver of a vehicle westbound on Mondamin Avenue at Martin Luther King Jr Parkway shall yield the right-of-way to southbound traffic on Martin Luther King Jr Parkway, yield.

The driver of a vehicle eastbound on Post Street at Martin Luther King Jr Parkway shall yield the right-of-way to southbound traffic on Martin Luther King Jr Parkway, yield.
(C62, §§ 30-452, 30-542, 30-544; O.8084; C75, C79, §§ 27-463, 27-554, 27-556; O.10,730; C91, § 27-1339; O.11,650; C91, § 27-1371.01; O.11,935, 14,418)

Sec. 114-2280.01. East Martin Luther King Jr Parkway.

East Martin Luther King Jr Parkway, from the center of Des Moines River to the east line of Southeast Thirtieth Street, stop.
(O.14,982, 15,387, 15,466)

Sec. 114-2281. Mattern Avenue.

Mattern Avenue, at East Twelfth Street, stop.

Mattern Avenue, at York Street, stop.

Mattern Avenue, at Williams Street, stop.
(C79, § 27-485.01; O.9851, 10,730; C91, § 27-1372; O.11,650, 13,028)

Sec. 114-2282. Maury Street.

Maury Street, from the east line of Southeast Sixth Street to the east line of Southeast Twenty-eighth Street, stop.
(C62, § 30-474; O.8084; C75, § 27-486; O.9602; C79, § 27-486; O.9976, 10,730; C91, § 27-1373; O.11,650, 15,466)

Sec. 114-2283. McCormick Street.

McCormick Street, at Garfield Avenue, stop.
(C91, § 27-1374; O.13,061)

Sec. 114-2284. McKinley Avenue.

McKinley Avenue, from the west line of South Union Street to the east line of Southwest Fourteenth Street, stop.

McKinley Avenue, from the west line of Southwest Fourteenth Street to Southwest Forty-second Street, stop.
(C62, § 30-475; O.8084, 8108; C75, C79, § 27-487; O.10,730; C91, § 27-1375; O.11,650, 14,339)

Sec. 114-2285. East McKinley Avenue.

East McKinley Avenue, from the east line of South Union Street to the west line of Indianola Avenue, stop.
(C62, § 30-476; O.8084, 8412; C75, C79, § 27-488; O.10,730; C91, § 27-1376; O.11,650)

Sec. 114-2286. Southwest McKinley Avenue.

Southwest McKinley Avenue, from the west line of Southwest Forty-second Street to the east line of Iowa Highway 28, stop.
(C85, § 27-488.001; O.11,302; C91, § 27-1377; O.11,650, 13,363)

Sec. 114-2287. Mercy Drive.

Mercy Drive, at Fifth Avenue, stop.
(C62, § 30-476.01; O.8891; C75, C79, § 27-488.01; O.10,730; C91, § 27-1378; O.11,650)

Sec. 114-2287.05. Meredith Drive.

Meredith Drive, from the west line of Beaver Avenue to the east line of 50th Street, stop.

Meredith Drive, from the west line of 50th Street to the east line of Merle Hay Road, stop.
(O.15,262)

Sec. 114-2288. Merklin Way.

Merklin Way, from the north line of Franklin Avenue to the east line of Merle Hay Road, stop.
(C62, § 30-477; O.8084; C75, C79, § 27-489; O.10,730; C91, § 27-1379; O.11,650)

Sec. 114-2289. Merle Hay Road.

Merle Hay Road, from the north line of University Avenue to the north corporate limits, stop.
(C62, § 30-478; O.8084; C75, C79, § 27-490; O.10,730; C91, § 27-1380; O.11,650)

Sec. 114-2290. Methodist Drive.

Methodist Drive, at Chestnut Street, stop.
(C62, § 30-478.01; O.8893; C75, C79, § 27-490.01; O.10,730; C91, § 27-1381; O.11,650)

Sec. 114-2290.05. Reserved.

Editor's note—Ord. No. 15,330, repealed § 114-2290.05, which pertained to Morton Avenue and derived from Ord. No. 15,210.

Sec. 114-2291. Mulberry Street.

Mulberry Street, from the west line of Fifth Avenue to the east line of Thirteenth Street, stop.
(C62, § 30-479; O.8084; C75, C79, § 27-491; O.10,730; C91, § 27-1382; O.11,650)

Sec. 114-2292. Murphy Street.

Murphy Street, at Southwest Sixth Street, stop.

Murphy Street, from the west line of Southwest Eleventh Street to the east line of Southwest Sixteenth Street, stop.
(C62, § 30-480; O.8084; C75, C79, § 27-492; O.10,730; C91, § 27-1383; O.11,650, 15,858, 16,539)

Sec. 114-2292.5. Muskogee Avenue.

Muskogee Avenue, from the east line of Southwest Fifty-ninth Street to the east line of Southwest Sixty-third Street, stop.
(O.14,704)

Sec. 114-2293. Nash Drive.

Nash Drive, at Burlington Terrace, stop.
(C91, § 27-1383.01; O.13,241)

Sec. 114-2294. New York Avenue.

New York Avenue, at First Street, stop.
(C91, § 27-1383.05; O.13,241)

Sec. 114-2295. Northwest Drive.

Northwest Drive, at Sani Drive, stop.

Northwest Drive, at Fifty-ninth Street, stop.
(C91, § 27-1383.08; O.13,241)

Sec. 114-2296. North Union Street.

North Union Street, from the south line of Wisconsin Avenue to the north line of Arthur Avenue, stop.

North Union Street, from the south line of Morton Avenue to the south line of Hull Avenue, stop.

North Union Street, at Tiffin Avenue, stop.

North Union Street, at East Seneca Avenue, stop.

North Union Street, at East Shawnee Avenue, stop.
(C62, § 30-481; O.8084; C75, C79, § 27-493; O.10,730; C85, § 27-493; O.11,248; C91, § 27-1384; O.11,650, 13,241, 13,516, 13,543)

Sec. 114-2296.05. East Oakhill Drive.

East Oakhill Drive, from East Fifty-sixth Street to Northeast Twenty-seventh Avenue, stop.
(O.14,905)

Sec. 114-2297. Oak Park Avenue.

Oak Park Avenue, at Eighth Street, stop.

Oak Park Avenue, at Eleventh Street, stop.

Oak Park Avenue, at Fourteenth Street, stop.

Oak Park Avenue, at York Street, stop.

Oak Park Avenue, at Ravina Drive, stop.
(C62, § 30-482; O.8084; C75, C79, § 27-494; O.10,730; C91, § 27-1385; O.11,650, 11,810, 13,241, 15,966)

Sec. 114-2298. Ohio Street.

Ohio Street, from the north line of University Avenue to the south line of College Avenue, stop.

Ohio Street, from the north line of College Avenue to the south line of Franklin Avenue, stop.
(C75, § 27-494.01; O.8970; C79, § 27-494.01; O.10,730; C91, § 27-1386; O.11,650)

Sec. 114-2299. Olive Street.

Olive Street, at Eighteenth Street, stop.

Olive Street, at Twenty-third Street, stop.
(C91, § 27-1386.05; O.13,241)

Sec. 114-2300. Ovid Avenue.

Ovid Avenue, from the east line of First Street to the east line of Second Avenue, stop.

Ovid Avenue, from the west line of Second Avenue to the east line of Sixth Avenue, stop.
(C62, § 30-483; O.8084, 8349; C75, C79, § 27-495; O.10,730; C91, § 27-1387; O.11,650)

Sec. 114-2301. East Ovid Avenue.

East Ovid Avenue, from the west line of First Street to the west line of Cornell Street, stop.

East Ovid Avenue, from the east line of Cornell Street to the west line of East Seventh Street, stop.

East Ovid Avenue, from the east line of East Seventh Street to the west line of Wright Street, stop.

East Ovid Avenue, from the east line of Wright Street to the west line of East Twelfth Street, stop.

East Ovid Avenue, from the east line of East Twelfth Street to the west line of East Fourteenth Street, stop.

East Ovid Avenue, at East Thirty-seventh Street, stop.

East Ovid Avenue, from the east line of East Thirty-eighth Street to the west line of East Forty-second Street, stop.
(C62, § 30-483.01; O.8349; C75, § 27-495.01; O.8974, 9593; C79, § 27-495.01; O.10,730; C91, § 27-1388; O.11,650, 13,241)

Sec. 114-2302. Oxford Street.

Oxford Street, at Arthur Avenue, stop.

Oxford Street, from the south line of East Ovid Avenue to the north line of Hull Avenue, stop.

Oxford Street, at Seneca Avenue, stop.
(C85, § 27-495.02; O.11,278; C91, § 27-1389; O.11,650, 13,241)

Sec. 114-2303. Park Avenue.

Park Avenue, from the west line of South Union Street to the west corporate limits, stop.

The driver of a vehicle westbound on George Flagg Parkway at Park Avenue shall yield the right-of-way to westbound traffic on Park Avenue, yield.
(C62, §§ 30-484, 30-543; O.8084; C75, C79, §§ 27-496, 27-555; O.10,730; C91, § 27-1390; O.11,650, 14,080)

Sec. 114-2304. East Park Avenue.

East Park Avenue, from the east line of South Union Street to the west line of Southeast Fifth Street, stop.

East Park Avenue, from the east line of Southeast Fifth Street to the west line of Southeast Eight Street, stop.

East Park Avenue, from the east line of Southeast Eighth Street to the west line of Southeast Twenty-second Street, stop.

East Park Avenue, at Southeast Twenty-second Court/Riverwoods Avenue, stop.
(C62, § 30-485; O.8084; C75, § 27-497; O.9429; C79, § 27-497; O.10,730; C91, § 27-1391; O.11,650, 13,241, 15,756)

Sec. 114-2305. Park Street.

Park Street, from the west line of Second Avenue to the east line of Eighth Place, stop.
(C62, § 30-486; O.8084; C75, C79, § 27-498; O.10,730; C85, § 27-498; O.11,516; C91, § 27-1392; O.11,650, 12,042, 13,028)

Sec. 114-2306. Payne Road.

Payne Road, from the west line of Martin Luther King Jr Parkway to the east line of Thirtieth Street, stop.
(C62, § 30-487; O.8084; C75, C79, § 27-499; O.10,730; C91, § 27-1393; O.11,650, 11,935)

Sec. 114-2307. Payton Avenue.

Payton Avenue, from the east line of South Union Street to the east line of Southwest Ninth Street, stop.

Payton Avenue, from the west line of Southwest Ninth Street to the east line of Southwest Fourteenth Street, stop.

Payton Avenue, from the west line of Southwest Fourteenth Street to the east line of Fleur Drive, stop.
(C62, § 30-488; O.8084; C75, C79, §§ 27-500, 27-534.02, 27-535.011, 27-535.012, 27-535.03, 27-535.04, 27-535.05; O.10,549, 10,696, 10,730; C85, § 27-500; O.10,929; C91, § 27-1394; O.11,650, 11,751, 13,047)

Sec. 114-2308. East Payton Avenue.

East Payton Avenue, from the east line of South Union Street to the west line of Southeast Fifth Street, stop.

East Payton Avenue, from the east line of Indianola Avenue to the west line of Southeast Thirty-sixth Street, stop.
(C62, § 30-489; O.8084; C75, C79, § 27-501; O.10,263, 10,696, 10,730; C85, § 27-501; O.11,302; C91, § 27-1395; O.11,650, 11,751, 13,047)

Sec. 114-2309. Pennsylvania Avenue.

Pennsylvania Avenue, from the north line of East Grand Avenue to the south line of Washington Avenue (east leg), stop.

Pennsylvania Avenue, from the north line of Washington Avenue (east leg) to the north line of Cherokee Avenue at Saylor Road, stop.
(C62, § 30-490; O.8084; C75, C79, § 27-502; O.10,730; C91, § 27-1396; O.11,650, 13,581)

Sec. 114-2310. Philip Street.

Philip Street, at Southwest Fifth Street, stop.
(C62, § 30-491; O.8084; C75, C79, § 27-503; O.10,730; C91, § 27-1397; O.11,650, 13,047)

Sec. 114-2310.5. East Philip Street.

East Philip Street, from the east line of Southeast Thirty-fourth Street to the east dead end, stop.
(O.15,563)

Sec. 114-2311. East Pine Avenue.

East Pine Avenue, from the east line of Indianola Avenue to the west line of Southeast Forty-fifth Street, stop.
(C85, § 27-503.001; O.11,302; C91, § 27-1398; O.11,650, 14,905)

Sec. 114-2312. Pioneer Road.

Pioneer Road, at Southeast Fifth Street, stop.

Pioneer Road, at Southeast Eighth Street, stop.

Pioneer Road, at Southeast Seventeenth Street, stop.
(C75, § 27-503.01; O.9524; C79, § 27-503.01; O.10,730; C91, § 27-1399; O.11,650, 13,047)

Sec. 114-2313. Pleasant Street.

Pleasant Street, from the west line of Eighth Street to the east line of Twelfth Street, stop.

Pleasant Street, from the west line of Fifteenth Street to the east line of Nineteenth Street, stop.

Pleasant Street, from the west line of Nineteenth Street to the east line of Martin Luther King Jr Parkway, stop.

Pleasant Street, at Twenty-sixth Street, stop.

Pleasant Street, at Twenty-seventh Street, stop.

Pleasant Street, at Thirty-second Street, stop.

Pleasant Street, at Thirty-fourth Street, stop.

Pleasant Street, at Forty-first Street, stop.
(C62, § 30-492; O.8084, 8187; C75, C79, § 27-504; O.10,730; C91, § 27-1400; O.11,650, 11,935, 13,241)

Sec. 114-2314. Polk Boulevard.

Polk Boulevard, from the north line of Grand Avenue to the south line of University Avenue, stop.
(C62, § 30-493; O.8084; C75, C79, § 27-505; O.10,730; C91, § 27-1401; O.11,650)

Sec. 114-2315. Porter Avenue.

Porter Avenue, from the west line of South Union Street to the east line of Fleur Drive, stop.
(C62, § 30-494; O.8084; C75, C79, § 27-506; O.10,730; C91, § 27-1402; O.11,650)

Sec. 114-2316. East Porter Avenue.

East Porter Avenue, from the east line of South Union Street to the west line of Southeast Fifth Street, stop.

East Porter Avenue, at Southeast Twenty-fourth Street, stop. East Porter Avenue, at Southeast Thirtieth Street, stop.
(C62, § 30-495; O.8084; C75, C79, § 27-507; O.10,730; C91, § 27-1403; O.11,650, 13,726, 14,851)

Sec. 114-2317. Post Street.

Post Street, at Euclid Avenue, yield.
(C62, §§ 30-496, 30-535; O.8084, 8674; C75, C79, §§ 27-508, 27-547; O.10,730; C91, § 27-1404; O.11,650)

Sec. 114-2318. Raccoon Street.

Raccoon Street, at Southeast Fifth Street, stop.

Raccoon Street, at Southeast Twenty-seventh Court, stop.

Raccoon Street, from the east line of Southeast Sixth Street to the west line of Southeast Eleventh Street, stop.

Raccoon Street, at Southeast Twenty-ninth Street, stop.
(C62, § 30-497; O.8084, 8205; C75, C79, § 27-509; O.9965, 10,730; C85, § 27-509; O.10,747; C91, § 27-1405; O.11,650, 13,047, 13,726, 13,951, 14,982)

Sec. 114-2319. Redhead Road.

Redhead Road, from the south line of East Court Avenue to the north line of Dean Avenue, stop.
(C62, § 30-498; O.8084; C75, C79, § 27-510; O.10,730; C91, § 27-1406; O.11,650)

Sec. 114-2320. Reserved.

Editor's note—Ord. No. 13,951 repealed § 114-2320 which pertained to Richmond Avenue and derived from Code 1991, § 27-1406.05 and Ord. No. 13,241.

Sec. 114-2321. Rittenhouse Street.

Rittenhouse Street, at Southwest Eleventh Street, stop.

Rittenhouse Street, at Southwest Twenty-second Street, stop.
(C79, § 27-510.01; O.10,730; C91, § 27-1407; O.11,650, 13,047, 13,241, 13,772, 15,328)

Sec. 114-2321.05. Riverwoods Avenue.

Riverwoods Avenue, from the north line of East Park Avenue to the east line of Grand River Drive, stop.
(O.13,726, 15,534, 15,756)

Sec. 114-2321.055. River Ridge Road.

River Ridge Road, from the north line of River Meadows Drive/River Meadows Circle to the north line of King Avenue, stop.
(O.15,534, 15,756)

Sec. 114-2321.06. Robert D Ray Drive.

Robert D Ray Drive, from the north line of East Locust Street to the north line of Des Moines Street, stop.

The driver of a vehicle southbound on Robert D Ray Drive at East Sixth Street shall yield the right-of-way to westbound traffic from East Sixth Street, yield.
(O.14,437, 14,855)

Sec. 114-2322. Rollins Avenue.

The driver of a vehicle eastbound on Rollins Avenue at Ramp 35-2, Interstate 235 (Des Moines

Freeway), shall yield the right-of-way to eastbound traffic on Ramp 35-2, Interstate 235 (Des Moines Freeway), yield.

Rollins Avenue, at Twenty-fifth Street, stop.

Rollins Avenue, at Fortieth Place, stop.

Rollins Avenue, at Forty-first Street, stop.
(C62, § 30-546; O.8084; C75, C79, § 27-558; O.10,730; C79, § 27-510.02; C91, § 27-1408; O.11,650, 13,241)

Sec. 114-2323. Rose Avenue.

Rose Avenue, at Southwest Third Street, stop.
(C91, § 27-1408.05; O.13,241)

Sec. 114-2324. East Rose Avenue.

East Rose Avenue, at Southeast Twenty-fifth Street, stop.
(C91, § 27-1408.06; O.13,241)

Sec. 114-2325. Rutland Avenue.

Rutland Avenue, at Twenty-ninth Street, stop.
(C91, § 27-1408.08; O.13,241)

Sec. 114-2326. Saylor Road.

Saylor Road, from the south line of Cherokee Avenue at Pennsylvania Avenue to the south line of East Sheridan Avenue, stop.
(C62, § 30-499; O.8084; C75, § 27-511; O.9116; C79, § 27-511; O.10,730; C91, § 27-1409; O.11,650)

Sec. 114-2327. Scandia Avenue.

Scandia Avenue, at Southeast Sixth Street, stop.
(C91, § 27-1409.05; O.13,241)

Sec. 114-2328. School Street.

School Street, from the west line of Second Avenue to the east line of Sixth Avenue, stop.

School Street, at Tenth Street, stop.

School Street, at Eleventh Street, stop.

School Street, from the east line of Fifteenth Street to the east line of Martin Luther King Jr Parkway, stop.

School Street from the west line of Twenty-fourth Street to the east line of Twenty-eighth Street, stop.

School Street, at Twenty-ninth Street, stop.

School Street, at Thirty-third Street, stop.

School Street, at Thirty-eighth Street, stop.

School Street, at Fortieth Street, stop.

The driver of a vehicle eastbound on School Street at Ramp S-3, Interstate 235 (Des Moines Freeway), shall yield the right-of-way to eastbound traffic on Ramp S-3, Interstate 235 (Des Moines Freeway), yield.
(C62, §§ 30-500, 30-547; O.8084; C75, C79, §§ 27-512, 27-559; O.10,730; C91, § 27-1410; O.11,650, 11,935, 13,241, 13,248)

Sec. 114-2329. Scott Avenue.

Scott Avenue, from the east line of Southwest Water Street to the west line of Southeast Sixth Street, stop.

Scott Avenue, from the east line of Southeast Sixth Street to the west line of Southeast Twelfth Street, stop.

Scott Avenue, from the east line of Southeast Twelfth Street to the west line of Southeast Fifteenth Street, stop.

Scott Avenue, from the east line of Southeast Fifteenth Street to the west line of Southeast Eighteenth Street, stop.

Scott Avenue, from the east line of Southeast Twenty-fifth Court to the west line of Southeast Twenty-eighth Street, stop.

Scott Avenue, from the east line of Southeast Twenty-eighth Street to the west line of Southeast Thirtieth Street, stop.

Scott Avenue, from the east line of Southeast Thirtieth Street to the east corporate limits, stop.
(C62, § 30-501; O.8084; C75, § 27-513; O.9069; C79, § 27-513; O.10,730; C91, § 27-1411; O.11,650, 14,437, 14,816, 15,387)

Sec. 114-2330. Searle Street.

Searle Street, from the south line of Thompson Avenue to the north line of Easton Boulevard, stop.
(C91, § 27-1411.05; O.13,102)

Sec. 114-2331. Seneca Avenue.

Seneca Avenue, at First Street, stop.

Seneca Avenue, at Third Street, stop.

Seneca Avenue, at Fifth Street, stop.

Seneca Avenue, at Seventh Street, stop.

Seneca Avenue, at Eighth Place, stop.

Seneca Avenue, at Tenth Street, stop.

Seneca Avenue, at Thirteenth Street, stop.
(C85, § 27-513.0001; O.11,107; C91, § 27-1412; O.11,650, 13,047, 13,241)

Sec. 114-2332. East Seneca Avenue.

East Seneca Avenue, at Cambridge Street, stop.

East Seneca Avenue, at East Ninth Street, stop.

East Seneca Avenue, at East Tenth Street, stop.
(C91, § 27-1412.01; O.13,241)

Sec. 114-2332.05. Shaw Street.

Shaw Street, at Southeast Fifteenth Court, stop.
(O.16,215)

Sec. 114-2333. Shawnee Avenue.

Shawnee Avenue, from the east line of First Street to the east line of Second Avenue, stop.

Shawnee Avenue, at Third Street, stop.

Shawnee Avenue, at Fifth Avenue, stop.

Shawnee Avenue, at Eighth Place, stop.

Shawnee Avenue, at Tenth Street, stop.

Shawnee Avenue, at Fourteenth Street, stop.

Shawnee Avenue, from the south line of Aurora Avenue to the west line of Thirty-ninth Place, stop.

Shawnee Avenue, from the east line of Forty-first Street to the east line of Beaver Avenue, stop.
(C62, § 30-501.01; O.8273; C75, § 27-513.01; O.9254; C79, § 27-513.01; O.10,162, 10,730; C91, § 27-1413; O.11,650, 13,241, 13,724)

Sec. 114-2334. East Shawnee Avenue.

East Shawnee Avenue, from the west line of First Street to the west line of Cornell Street, stop.

East Shawnee Avenue, at East Eighth Street, stop.

East Shawnee Avenue, at Amherst Street, stop.

East Shawnee Avenue, at Columbia Street, stop.

East Shawnee Avenue, from the east line of East Twenty-ninth Street to the west line of Colfax Avenue, stop.
(C62, § 30-502; O.8084; C75, C79, § 27-514; O.10,162, 10,730; C91, § 27-1414; O.11,650, 13,241)

Sec. 114-2335. Sheridan Avenue.

Sheridan Avenue, at Fifty-ninth Street, stop.
(C91, § 27-1414.05; O.13,241)

Sec. 114-2336. East Sheridan Avenue.

East Sheridan Avenue, at East Thirty-sixth Street, stop.

East Sheridan Avenue, at East Thirty-seventh Street, stop.

East Sheridan Avenue, from the east line of East Thirty-eighth Street to the west line of East Forty-second Street, stop.

East Sheridan Avenue, at East Fiftieth Court, stop.
(C62, § 30-502.01; O.8262; C75, C79, § 27-514.01; O.10,730; C91, § 27-1415; O.11,650, 13,241, 15,750)

Sec. 114-2337. Southlawn Drive.

Southlawn Drive, at Southwest Eighteenth Street, stop.
(C62, § 30-503; O.8084; C75, C79, § 27-515; O.10,730; C91, § 27-1416; O.11,650, 13,047)

Sec. 114-2337.01. Southridge Boulevard.

Southridge Boulevard, from Southeast Fourteenth Street to the south city limits, stop.

The driver of any vehicle southbound from Southeast Twenty-sixth Street, using the connecting roadway to cross or enter the southbound roadway of Southridge Boulevard, shall yield the right-of-way to southbound traffic on Southridge Boulevard, yield.

The driver of any vehicle southbound from U.S. Highway 65/69, using the connecting roadway to cross or enter the southbound roadway of U.S. Highway 65/69, shall yield the right-of-way to southbound traffic on U.S. Highway 65/69, yield.
(O.14,905, 14,982)

Sec. 114-2338. South Union Street.

South Union Street, from the south line of Jackson Avenue to the north line of East Edison Avenue, stop.

South Union Street, from the north line of Hartford Avenue to the north line of Army Post Road, stop.

South Union Street, at East Border Street, stop.

South Union Street, at Border Street, stop.
(C62, § 30-504; O.8084; C75, § 27-516; O.9593; C79, § 27-516; O.10,730; C91, § 27-1417; O.11,650, 13,047, 14,057, 14,905, 14,982)

Sec. 114-2338.5. Stanton Avenue.

Stanton Avenue, from the west line of Fleur Drive to the east line of Southwest Twenty-Sixth Street, stop.

Stanton Avenue, from the west line of Southwest Twenty-Sixth Street to the east line of Southwest Thirty-First Street, stop.

Stanton Avenue, from the west line of Southwest Thirty-First Street to the east line of McKinley Avenue, stop.
(O.15,287)

Sec. 114-2339. State Avenue.

State Avenue, at East Thirty-second Street, stop.
(C91, § 27-1417.05; O.13,241)

Sec. 114-2340. Stewart Street.

Stewart Street, at Garfield Avenue, stop.
(C85, § 27-516.01; O.11,248; C91, § 27-1418; O.11,650, 13,241, 16,327)

Sec. 114-2341. Thomas Beck Road.

Thomas Beck Road, from the east line of Southwest Ninth Place to a point 1,008 feet east of the east line of Fleur Drive, stop.

The driver of a vehicle eastbound on Indianola Avenue at Thomas Beck Road shall yield the right-of-way to eastbound traffic on Thomas Beck Road, yield.
(C62, §§ 30-505, 30-533; O.8084; C75, C79, §§ 27-517, 27-545; O.10,730; C91, § 27-1419; O.11,650, 14,057)

Sec. 114-2342. Thompson Avenue.

Thompson Avenue, from the east line of East Ninth Street to the west line of East Fourteenth Street, stop.

Thompson Avenue, at East Eighteenth Street, stop.

Thompson Avenue, at Searle Street, stop.
(C85, § 27-517.005; O.11,248; C91, § 27-1420; O.11,650, 13,102, 13,658)

Sec. 114-2343. Thornton Avenue.

Thornton Avenue, at Southwest Seventh Street, stop.

Thornton Avenue, at Southwest Eighth Street, stop.

Thornton Avenue, at Southwest Twenty-sixth Street, yield.

Thornton Avenue, at Southwest Twenty-ninth Street, stop.

Thornton Avenue, at Glover Avenue, stop.

Thornton Avenue, at Southwest Sixty-first Street, stop.
(C91, § 27-1420.005; O.13,077, 13,241, 13,248, 13,698, 15,084)

Sec. 114-2344. East Thornton Avenue.

East Thornton Avenue, at Southeast Third Street, stop.

East Thornton Avenue, at Southeast Eleventh Street, stop.
(C91, § 27-1420.01; O.12,090, 13,241)

Sec. 114-2345. Tiffin Avenue.

Tiffin Avenue, at East Ninth Street, stop.

Tiffin Avenue, at East Twenty-fifth Court, stop.

Tiffin Avenue, at East Fifteenth Street, stop.

Tiffin Avenue, at York Street, stop.
(C91, § 27-1420.05; O.11,884, 13,241, 13,248, 13,548)

Sec. 114-2346. Timber Lane.

Timber Lane, at Winegardner Road, stop.
(C91, § 27-1420.06, O.13,516)

Sec. 114-2347. Titus Avenue.

Titus Avenue, from the west line of Southwest Ninth Street to the east line of Southwest Thirteenth Street, stop.
(C79, § 27-517.01; O.10,514, 10,730; C91, § 27-1421; O.11,650, 13,047)

Sec. 114-2348. Tomlin Lane.

Tomlin Lane, at Farwell Road, stop.
(C91, § 27-1421.05; O.13,241)

Sec. 114-2349. Tonka Avenue.

Tonka Avenue, at Southwest Sixty-second Street, stop.
(C91, § 27-1421.06; O.13,241)

Sec. 114-2350. Tuttle Street.

Tuttle Street, at Southwest Sixth Street, stop.

Tuttle Street, from the west line of Southwest Eleventh Street to the east line of Southwest Sixteenth Street, stop.
(C62, § 30-506; O.8084; C75, C79, § 27-518; O.10,730; C91, § 27-1422; O.11,650, 15,858, 16,539)

Sec. 114-2351. Twana Drive.

Twana Drive, at Forty-eighth Street, stop.

Twana Drive, at Lawnwoods Drive, stop.
(C91, § 27-1422.05; O.13,135, 13,241, 13,248, 14,246)

Sec. 114-2352. University Avenue.

University Avenue, from the east line of Maine Street to the west corporate limits, stop.
(C62, § 30-507; O.8084; C75, C79, § 27-519; O.10,730; C91, § 27-1423; O.11,650)

Sec. 114-2353. East University Avenue.

East University Avenue, from the west line of Maine Street to the east corporate limits, stop.

The driver of a vehicle northbound on East Thirtieth Street using the connecting roadway to turn right at East University Avenue shall yield the right-of-way to eastbound traffic on East University Avenue, yield.
(C62, §§ 30-508, 30-528; O.8084; C75, C79, §§ 27-520, 27-540; O.10,730; C91, § 27-1424; O.11,650)

Sec. 114-2354. Urbandale Avenue.

Urbandale Avenue, from the east line of Thirty-Fourth Street to the east line of Fiftieth Street, stop.

Urbandale Avenue, from the west line of Fiftieth Street to the west corporate limits, stop.
(C62, § 30-509; O.8084; C75, C79, § 27-521; O.10,730; C91, § 27-1425; O.11,650, 14,876)

Sec. 114-2355. Reserved.

Editor's note—Ord. No. 14,982, § 1, adopted Dec. 20, 2010, repealed § 114-2355 which pertained to U.S. Highway 69 and derived from Code 1985, § 27-521.01; Ord. No. 11,302; Code 1991, § 27-1427; Ord. No. 11,650; Ord. No. 14,905.

Sec. 114-2356. Vale Street.

Vale Street, at Southeast Seventh Street, stop.
(C62, § 30-510; O.8084; C75, C79, § 27-522; O.10,730; C91, § 27-1427; O.11,650)

Sec. 114-2357. Reserved.

Editor's note—Ord. No. 14,080, § 1, adopted April 22, 2002, repealed § 114-2357 which pertained to Valley Drive and derived from Code 1962, §§ 30-511, 30-536; Ord. No. 8084; Code 1975 and Code 1979, §§ 27-523, 27-548; Ord. No. 10,730; Code 1991, § 27-1428; and Ord. No. 11,650.

Sec. 114-2358. Vandalia Road.

Vandalia Road, from the north line of East Granger Avenue to the east corporate limits, stop.
(C62, § 30-512; O.8084; C75, C79, § 27-524; O.10,730; C91, § 27-1429; O.11,650)

Sec. 114-2358.01. Veterans Parkway.

Veterans Parkway, from Highway 28 to west city limits, stop.
(O.15,355)

Sec. 114-2358.5. Village Run Drive.

Village Run Drive, at Brook View Drive, stop.
(O.14,298, 15,726, 15,991)

Sec. 114-2358.7. East Vine Street.

East Vine Street, at East Fifteenth Street/Southeast Fifteenth Street, stop.

East Vine Street, at Astor Street/Southeast Astor Street, stop.

East Vine Street, at East Sixteenth Street/Southeast Sixteenth Street, stop.
(O.16,393)

Sec. 114-2359. Virginia Avenue.

Virginia Avenue, at Southwest Seventh Street, stop.
(C62, § 30-513; O.8084; C75, C79, § 27-525; O.10,730; C91, § 27-1430; O.11,650, 13,241, 15,203)

Sec. 114-2360. Wakonda Court.

Wakonda Court, from the south line of Park Avenue to the south line of Wakonda Drive, stop.

Wakonda Court, at Thornton Drive, stop.
(C75, § 27-525.01; O.9593; C79, § 27-525.01; O.10,730; C91, § 27-1431; O.11,650, 13,047)

Sec. 114-2361. Walker Street.

Walker Street, from the east line of East Ninth Street to the west line of East Twelfth Street, stop.

Walker Street, from the west line of East Fourteenth Street to the west line of East Sixteenth Street, stop.

Walker Street, from the east line of East Sixteenth Street to the east line of East Eighteenth Street, stop.
(C62, § 30-514; O.8084, 8320, 8905; C75, C79, § 27-526; O.10,730; C91, § 27-1432; O.11,650, 13,528)

Sec. 114-2362. Wall Avenue.

Wall Avenue, from the east curbline of Southwest Ninth Street to the west curbline of Southwest Fourth Street, stop.

Wall Avenue, from the east curbline of Southwest Fourth Street to the west curbline of South Union, stop.
(C79, § 27-526.01; O.10,077, 10,247, 10,730; C91, § 27-1433; O.11,650, 11,904, 14,297)

Sec. 114-2363. East Wall Avenue.

East Wall Avenue, from the east curbline of South Union Street to the west curbline of Southeast Fifth Street, stop.
(C79, § 27-526.02; O.10,077, 10,730; C91, § 27-1434; O.11,650, 11,904)

Sec. 114-2364. Walnut Street.

Walnut Street, from the middle of the Walnut Street Bridge over the Des Moines River to the east line of Fifteenth Street, stop.
(C62, § 30-515; O.8084; C75, C79, § 27-527; O.10,730; C91, § 27-1435; O.11,650)

Sec. 114-2365. East Walnut Street.

East Walnut Street, from the middle of the Walnut Street Bridge over the Des Moines River to the west line of East Sixteenth Street, stop.

East Walnut Street, from east line of East Sixteenth Street to the west line of East Thirtieth Street, stop.
(C62, § 30-516; O.8084, 8867; C75, C79, § 27-528; O.10,730; C91, § 27-1436; O.11,650, 13,954)

Sec. 114-2366. East Washington Avenue.

East Washington Avenue, from the east line of East Ninth Street to the west line of East Fourteenth Street, stop.

East Washington Avenue, from the east line of East Fourteenth Street to the west line of Wayne Street, stop.

East Washington Avenue, at East Twenty-seventh Court, stop.
(C75, § 27-528.01; O.9219, 9437; C79, § 27-528.01; O.10,730; C91, § 27-1437; O.11,650, 13,241)

Sec. 114-2367. Washington Avenue.

Washington Avenue, at Eighth Street, stop.

Washington Avenue, at Eleventh Street, stop.

Washington Avenue, at Twelfth Street, stop.

Washington Avenue, from the west curbline of Martin Luther King Jr Parkway to the east curbline of Twenty-third Street, stop.
(C75, § 27-528.02; O.9228, 9474; C79, § 27-528.02; O.10,730; C91, § 27-1438; O.11,650, 13,160, 13,241)

Sec. 114-2367.05. Southwest Water Street.

Southwest Water Street, from the north line of Vine Street to the north line of West Martin Luther King Jr Parkway, stop.
(O.14,437, 15,355)

Sec. 114-2368. Watrous Avenue.

Watrous Avenue, from the west line of South Union Street to the east line of Southwest Fourteenth Street, stop.

Watrous Avenue, from the west line of Southwest Fourteenth Street to the east line of Southwest Thirtieth Street, stop.

Watrous Avenue, from the west line of Southwest Fifty-sixth Street to the east line of Southwest Sixty-third Street, stop.
(C62, § 30-517; O.8084, 8586; C75, § 27-529; O.9593; C79, § 27-529; O.10,730; C91, § 27-1439; O.11,650, 16,299)

Sec. 114-2369. East Watrous Avenue.

East Watrous Avenue, from the east line of South Union Street to the west line of Southeast Fifth Street, stop.

East Watrous Avenue, from the east line of Southeast Fifth Street to the east line of Southeast Fourteenth Street, stop.

East Watrous Avenue, from the west line of Southeast Fourteenth Street to the west line of Indianola Avenue, stop.

East Watrous Avenue, on the north line of Evergreen Avenue to Hartford Avenue, stop.
(C62, § 30-518; O.8084; C75, § 27-530; O.9429; C79, § 27-530; O.9721, 10,162, 10,730; C85, § 27-1440; O.11,566; C91, § 27-1440; O.11,650, 13,047)

Sec. 114-2369.5. Watson Powell Jr Way.

Watson Powell Jr Way, from the east line of Second Avenue to the east line of Seventh Street, stop.
(O.13,855)

Sec. 114-2370. West Street.

West Street, at Southwest Eleventh Street, stop.
(C75, § 27-530.01; O.9474; C79, § 27-530.01; O.10,730; C91, § 27-1441; O.11,650, 13,047, 15,328)

Sec. 114-2370.05. West Martin Luther King Jr Parkway.

West Martin Luther King Jr Parkway, from the center of Des Moines River to the east line of Martin Luther King Jr Parkway, stop.
(O.14,418, 14,982)

Sec. 114-2371. Westover Boulevard.

Westover Boulevard, from the north line of Hickman Road to the south line of Urbandale Avenue, stop.
(C62, § 30-519; O.8084; C75, C79, § 27-531; O.10,730; C91, § 27-1442; O.11,650)

Sec. 114-2372. Williams Street.

Williams Street, from Dean Avenue to East Forty-second Street, stop.
(C62, § 30-519.01; O.8730; C75, C79, § 27-531.01; O.10,730; C91, § 27-1443; O.11,650, 13,691)

Sec. 114-2372.05. Willow Creek Avenue.

Willow Creek Avenue, from the west line of Southwest Forty-second Street to the west corporate limits, stop.
(O.15,559)

Sec. 114-2373. Windsor Drive.

The driver of a vehicle eastbound on Windsor Drive turning right onto Cummins Parkway shall yield for southbound traffic on Cummins Parkway, yield.

Windsor Drive, at Fifty-ninth Street, stop.

Windsor Drive, at Cummins Parkway, east leg, stop.
(C91, § 27-1443.05; O.13,102, 13,241)

Sec. 114-2374. Winona Avenue.

Winona Avenue, at Southwest Sixty-second Street, stop.
(C91, § 27-1443.06; O.13,241)

Sec. 114-2375. Wisconsin Avenue.

Wisconsin Avenue, at East Twenty-eighth Street, stop.

Wisconsin Avenue, at East Forty-seventh Street, stop.
(C91, § 27-1443.07; O.13,241, 15,750)

Sec. 114-2376. Wolcott Avenue.

Wolcott Avenue, from the west line of Southwest Thirty-first Street to the east line of Southwest Forty-second Street, stop.
(C85, § 27-531.02; O.11,402; C91, § 27-1444; O.11,650, 13,282)

Sec. 114-2377. Woodland Avenue.

Woodland Avenue, from the west line of Tenth Street to the east line of Seventeenth Street, stop.

Woodland Avenue, from the west line of Seventeenth Street to the east line of Thirty-first Street, stop.

Woodland Avenue, from the west line of Thirty-first Street to the east line of Thirty-fifth Street, stop.

Woodland Avenue, from the west line of Thirty-fifth Street to the east line of Thirty-seventh Street, stop.

Woodland Avenue, from the west line of Thirty-seventh Street to the east line of Forty-second Street, stop.

Woodland Avenue, at Forty-sixth Street, stop.

Woodland Avenue, at Forty-eighth Street, stop.
(C62, § 30-520; O.8084; C75, C79, § 27-532; O.10,730; C91, § 27-1445; O.11,650, 13,241, 13,869)

Sec. 114-2378. Woodlawn Drive.

Woodlawn Drive, at Glenview Drive, stop.
(C79, § 27-532.01; O.9698, 10,730; C91, § 27-1446; O.11,650)

Sec. 114-2379. Wright Street.

Wright Street, from the north line of Hull Avenue to the south line of Euclid Avenue, stop.
(C62, § 30-521; O.8084; C75, C79, § 27-533; O.10,730; C91, § 27-1447; O.11,650)

Sec. 114-2380. York Street.

York Street, at Jefferson Avenue, stop.

York Street, at Garfield Avenue, stop.
(C91, § 27-1447.05; O.13,028)

Secs. 114-2381—114-2405. Reserved.

DIVISION 7. CONTROLLED ACCESS

Sec. 114-2406. Designated.

As provided in and in accordance with sections 114-366 and 114-366.01 of this chapter, the areas described in the following sections of this division are designated controlled access facilities, and drivers of vehicles in such areas shall obey and be subject to the restrictions set out in such sections 114-366 and 114-366.01 of this chapter.

Sec. 114-2407. Second Avenue—Euclid Avenue north to corporate limits.

There is fixed and established a controlled access facility on primary road system extension improvement designated as Project No. FA-132(2), Primary Road No. Iowa No. 415, in the city described as follows:

> Beginning at the intersection of Euclid Avenue and Second Avenue (station 100+00.0), thence northerly along Second Avenue approximately 3262 feet to the north corporation limits (station 132+62.4), at approximately the west quarter corner of section 23, township 79 north, range 24 west,

regulating access to and from Second Avenue from abutting properties along said street, all in accordance with the plans for such improvement identified as Project No. FA-132(2), on file in the office of the city clerk, and subject to the provisions of sections 114-320 to 114-322 of this chapter.
(C62, § 30-313; O.8084; C75, C79, § 27-324; C91, § 27-1448; O.11,650)

Sec. 114-2408. East Fourteenth Street.

There is fixed and established a controlled access facility on primary road system extension improvement designated as Project Nos. SNFA-89(2), FA-104(B), WPMH-104, WPMH-104(G),

WPMH-104(D), WPMH-104(E), U-104, U-104(12), Primary Road No. U.S. No. 69 in the city, described as follows:

> Beginning at the east corporation line approximately 580 feet southeast of the northwest corner of section 35, township 78 north, range 24 west, (station 77+00); thence northwesterly approximately 580 feet to the intersection of Army Post Road and Southeast Fourteenth Street; thence along Southeast Fourteenth Street northerly approximately 7.5 miles to the north corporation line at approximately the west quarter corner of section 24, township 79 north, range 24 west (station 305+44.6),

and regulating access to and from such facility from abutting properties along such facility, all in accordance with the plans for such improvement identified as Project Nos. SNFA-89(2), FA-104(B), WPMH-104, WPMH-104(G), WPMH-104(D), WPMH-104(E), U-104 and U-104(12), on file in the office of the city clerk, and subject to the provisions of sections 114-320 to 114-322 of this chapter.
(C62, § 30-314; O.8084; C75, C79, § 27-325; C91, § 27-1449; O.11,650)

Sec. 114-2409. East Thirtieth Street—Southeast Forty-third Street and Carlisle Road to East University Avenue.

There is fixed and established a controlled access facility on the primary road system exten-

sion improvement designated as Project FN-867, Primary Road No. 46, in the city, described as follows:

> Beginning at the intersection of Southeast Forty-third Street and Carlisle Road; thence north approximately 3836.2 feet along Southeast Forty-third Street to Vandalia Road; thence west and northwesterly along Vandalia Road to Southeast Thirtieth Street; thence north along Southeast Thirtieth Street to East University Avenue,

and providing parking restrictions thereon and regulating access to and from such facility from abutting properties, all in accordance with the plans for such improvement identified as Project No. FN-867 on file in the office of the city clerk, and subject to the provisions of sections 114-320 to 114-322 of this chapter.
(C62, § 30-315; O.8084; C75, C79, § 27-326; C91, § 27-1450; O.11,650)

Sec. 114-2410. Army Post Road.

There is fixed and established a controlled access facility on primary road system extension improvement designated as Project Nos. U-199(2) and U-996, Primary Road No. 5 in the city, described as follows:

> Beginning at the west corporation line at its intersection with Army Post Road; thence easterly along Army Post Road to the east corporation line,

and providing parking restrictions thereon and regulating ingress or egress to, from or across such controlled access facility from abutting properties along such facility, all in accordance with the plans for such improvement identified as Project Nos. U-199(2) and U-996, on file in the office of the city clerk, and subject to the provisions of sections 114-320 to 114-322 of this chapter.
(C62, § 30-316; O.8084; C75, C79, § 27-327; C91, § 27-1451; O.11,650)

Sec. 114-2411. Douglas Avenue—Merle Hay Road west to corporate limits.

There is fixed and established a controlled access facility on the primary road system extension improvement designated as Project No. U-1068(3) in the City of Des Moines, Iowa, described as follows:

> Beginning at the intersection of the northwest corporation line and Douglas Avenue, midway between Sixty-fourth Street and Sixty-second Street (station 1672+29.0); thence east to Merle Hay Road (station 1688+81.3),

and providing parking restrictions thereon and regulating access to and from Douglas Avenue from abutting properties along such street, all in accordance with the plans for such improvement identified as Project No. U-1068(3), on file in the office of the city clerk, and subject to the provisions of sections 114-320 to 114-322 of this chapter.
(C62, § 30-317; O.8084; C75, C79, § 27-328; C91, § 27-1452; O.11,650)

Sec. 114-2412. Euclid Avenue—Avenue Frederick M. Hubbell.

There is fixed and established controlled access facilities on the primary road system extension improvement Project No. U-206(14), Primary Roads Nos. U.S. 6 and 65 and Iowa 64, within the city, described as follows:

> Beginning at the intersection of Avenue Frederick M. Hubbell and Euclid Avenue (station 0+00); thence west on Euclid Avenue 1830 feet (station 18+30); also beginning at a point on Avenue Frederick M. Hubbell 1,000 feet (station 490+00) southwest of the intersection of Euclid Avenue and Avenue Frederick M. Hubbell (station 500+00); thence northeast on Avenue Frederick M. Hubbell to the northeast junction of the corporate limits (station 557+52.9),

regulating access to and from Avenue Frederick M. Hubbell and Euclid Avenue from abutting properties along such avenue, all in accordance with the plans for such improvement identified as Project No. U-206(14), on file in the office of the city clerk and subject to the provisions of sections 114-320 to 114-322 of this chapter.
(C62, § 30-318; O.8084; C75, C79, § 27-329; C91, § 27-1453; O.11,650)

Sec. 114-2413. East Euclid Avenue—East Fourteenth Street to 575 feet east of East Thirty-second Street.

There is fixed and established a controlled access facility on primary road system improvement designated as Project Nos. U-206(17), UG-206(18) and UG-206(16), Primary Road Nos. U.S. No. 6 and No. 65 in the city, described as follows:

> Beginning at the intersection of East Fourteenth Street and East Euclid Avenue (station 0+50); thence east to a point 575 feet east of East Thirty-second Street (station 129+00),

and providing parking restrictions thereon and regulating access to and from such facility from abutting properties along such facility, all in accordance with the plans for such improvement identified as Project Nos. U-206(17), UG-206(18) and UG-206(16), on file in the office of the city clerk, and subject to the provisions of sections 114-320 to 114-322 of this chapter.
(C62, § 30-319; O.8084; C75, C79, § 27-330; C91, § 27-1454; O.11,650)

Sec. 114-2414. Hickman Road—Douglas Avenue—Euclid Avenue.

There is fixed and established a controlled access facility on primary road system extension improvement designated as Project No. U-206(8) and U-206, Primary Road No. U.S. No. 6, in the city, described as follows:

> Beginning at the west corporation line at the intersection of Sixty-third Street and Hickman Road (station 755+28.95); thence easterly along Hickman Road approximately 971 feet to Sixtieth Street (station 765+00); also, from the intersection of Merle Hay Road and Douglas Avenue (station 824+63.45); thence easterly along Douglas Avenue to intersection of Martin Luther King Jr Parkway and Euclid Avenue; thence easterly along Euclid Avenue to East Fourteenth Street (station 0+00),

regulating access to and from Hickman Road, Douglas Avenue and Euclid Avenue from abutting properties along such streets, all in accordance with the plans for such improvement designated as Project No. U-206(8) and U-206, on file in the office of the city clerk, and subject to the provisions of sections 114-320 to 114-322 of this chapter.
(C62, § 30-320; O.8084; C75, C79, § 27-331; C91, § 27-1455; O.11,650, 11,935)

Sec. 114-2415. Interstate Route No. 235 (Des Moines Freeway—MacVicar Freeway).

There are fixed and established controlled access facilities on Primary Road No. I-235, within the city, also known as Interstate Route 235, and as Des Moines Freeway and MacVicar Freeway, described as follows:

> From the west corporate limits (station 238+75) easterly and northerly to the north corporate limits (station 712+45) including ramps, connections and crossings,

and regulating access to and from I-235 from station 238+75 to station 712+45 and related ramps, connections and cross streets and to and from abutting properties along such highway and street, all in accordance with the plans for such improvements identified as Project No. I-235-2, on file in the office of the city clerk.
(C62, § 30-321; O.8084; C75, C79, § 27-332; C91, § 27-1456; O.11,650)

Sec. 114-2416. Merle Hay Road—Douglas Avenue.

There is fixed and established a controlled access facility on primary road system extension improvement Project No. U-206(15), Primary Road U.S. No. 6, in the city, described as follows:

> Beginning at the intersection of Hickman Road and Merle Hay Road; thence north on Merle Hay Road to the intersection of Merle Hay Road and Douglas Avenue,

regulating access to and from Merle Hay Road from abutting properties along such street, all in accordance with the plans for such improvement identified as Project No. U-206(15), on file in the office of the city clerk, and subject to the provisions of sections 114-320 to 114-322 of this chapter.
(C62, § 30-322; O.8084; C75, C79, § 27-333; C91, § 27-1457; O.11,650)

Sec. 114-2417. Merle Hay Road—Douglas Avenue north to corporate limits.

There is fixed and established a controlled access facility on the primary road system extension improvement designated as Project No. U-215(2), Primary Road Nos. 141 and 64, in the city, described as follows:

> Beginning at the intersection of Douglas Avenue and Merle Hay Road (station 100+11.00); thence north on Merle Hay Road to the north corporate limits (station 126+51.0),

and providing parking restrictions thereon and regulating access to and from Merle Hay Road from abutting properties along such street, all in accordance with the plans for such improvement identified as Project No. U-215(2), on file in the office of the city clerk, and subject to the provisions of sections 114-320 to 114-322 of this chapter.
(C62, § 30-323; O.8084; C75, C79, § 27-334; C91, § 27-1458; O.11,650)

Sec. 114-2418. East University Avenue—East Fourteenth Street to east corporate limits.

There is fixed and established a controlled access facility on primary road system extension improvement designated as Project Nos. U-216(5), U-216, FA-216(D), and FAGM-216(c), Primary Road No. Iowa No. 163, in the city, described as follows:

> Beginning at the intersection of East Fourteenth Street and east corporate line (station 57+50.0) at approximately the north of section 36, township 79 north, range 24 west; thence easterly along East University Avenue approximately 2.65 miles to the east corporate line (station 57+50.0) at approximately the north quarter corner of section 5, township 78 north, range 23 west,

and regulating access to and from such facility from abutting properties along such facility, all in accordance with the plans for such improvement identified as Project Nos. U-216(5), U-216, FA-216(D) and FAGM-216(c), on file in the office of the city clerk, and subject to the provisions of sections 114-320 to 114-322 of this chapter.
(C62, § 30-324; O.8084; C75, C79, § 27-335; C91, § 27-1459; O.11,650)

Sec. 114-2419. Fully controlled access facilities.

Fully controlled access facilities are designated as I-235 from the west corporate limits (station 238+75) easterly and northerly to the north corporate limits (station 712+45), including all entrance and exit ramps leading to or from I-235 and the city streets and related cross streets, as follows:

(1) Sixty-third Street, on the east side, from Pleasant Drive northerly to relocated Windsor Drive.

(2) Fifty-sixth Street, on the west side, from Pleasant Drive northerly 904 feet.

(3) Fifty-sixth Street, on the east side, from Fifty-fifth Street northerly 1,557 feet.

(4) Polk Boulevard, on both sides, from Pleasant Street to Center Street.

(5) Forty-second Street, on the west side, from a point 62 feet south of Pleasant Street northerly to a point 220 feet north of Center Street.

(6) Forty-second Street, on the east side, from a point 123 feet north of Pleasant Street northerly to a point 265 feet north of Center Street.

(7) Thirty-fifth Street, on both sides, from Rollins Avenue to Crocker Street.

(8) Rollins Avenue, on the south side, from Thirty-fifth Street westerly 180 feet.

(9) Thirty-first Street, on the east side, from a point 119 feet south of Iola Street southerly to a point 122 feet north of Center Street.

(10) Thirty-first Street, on the west side, from Crocker Street to Center Street.

(11) Crocker Street, on the north side, from Thirty-first Street westerly 200 feet.

(12) Cottage Grove Avenue, on the northerly side, from Martin Luther King Jr Parkway to Twenty-first Street.

(13) Cottage Grove Avenue, on the southerly side, from Kingman Boulevard to Martin Luther King Jr Parkway.

(14) Martin Luther King Jr Parkway, on the west side, from Cottage Grove Avenue southerly to relocated Olive Avenue.

(15) Keosauqua Way, on the southwest side, from a point 770 feet northwesterly of Crocker Street northwesterly a distance of 1,329 feet.

(16) Keosauqua Way, on the northeasterly side, from a point 240 feet northwesterly of Crocker Street northwesterly a distance of 1,430 feet.

(17) Service Street No. 5 (a street on the north side of I-235 from Twenty-second Street to Eighteenth Street) on both sides, from Eighteenth Street to Twenty-second Street.

(18) School Street, on both sides, from Eighteenth Street to Nineteenth Street.

(19) School Street, on both sides, from a point 105 feet west of Seventh Street to relocated Second Avenue.

(20) Twelfth Place, on the west side, from School Street south 360 feet.

(21) Twelfth Street, on the west side, from School Street south 105 feet.

(22) Service Street A (a street running parallel and north of I-235 from Ninth Street to First Street) on the south side, from Ninth Street to Seventh Street.

(23) Service Street A, on both sides, from Seventh Street to First Street.

(24) Seventh Street, on the east side, from Service Street A southerly to a point 50 feet south of School Street.

(25) Seventh Street, on the west side, from Service Street A southerly to a point 190 feet south of School Street.

(26) Sixth Avenue, on both sides, from a point 48 feet south of School Street northerly 515 feet.

(27) Fifth Avenue, on both sides, from Service Street A southerly to a point 420 feet south of School Street.

(28) Third Street, on both sides, from a point 94 feet south of School Street northerly 1,212 feet to relocated Ridge Street.

(29) Second Avenue, on the west side, from Crocker Street northerly to a point 660 feet north of relocated Ridge Street.

(30) Second Avenue, on the east side, from Crocker Street northerly to a point 430 feet north of relocated Ridge Street.

(31) Relocated East Sixth Street, on both sides, from Buchanan Street southerly to Maple Street.

(32) Pennsylvania Avenue, on the west side, from a point 200 feet north of Lyon Street to Buchanan Street.

(33) Pennsylvania Avenue, on the east side, from a point 200 feet north of Lyon Street to Walker Street.

(34) East Ninth Street, on both sides, from a point 220 feet north of Lyon Street northerly 350 feet.

(35) East Twelfth Street, on both sides, from Lyon Street to Maple Street.

(36) East Fourteenth Street, on both sides, from Lyon Street to Maple Street.

(37) East Fifteenth Street, on both sides, from Lyon Street to Maple Street.

(38) East University Avenue, on the northerly side, from Dixon Street to East Twenty-first Street.

(39) East University Avenue, on the southerly side, from Stewart Street extended to a point 113 feet east of East Nineteenth Street.

(40) Stewart Street, on both sides, from Easton Boulevard to East University Avenue.

(41) Guthrie Avenue, on the south side, from Tichenor Street to a point 80 feet west of Searle Street.

(42) Guthrie Avenue, on the north side, from a point 78 feet east of Tichenor Street east to a point 80 feet west of Searle Street.

(43) Euclid Avenue, on the north side, from a point 793 feet west of the centerline of I-235 easterly 1,671 feet.

(44) Euclid Avenue, on the south side, from a point 763 feet west of the centerline of I-235 easterly 1,600 feet.

(C62, § 30-325; O.8084; C75, C79, § 27-336; C91, § 27-1460; O.11,650, 11,935)

Sec. 114-2420. Partially controlled access facilities.

Partially controlled access facilities are designated as follows:

(1) Fifty-sixth Street, on the west side, from a point 904 feet north of Pleasant Drive northerly 320 feet.

(2) Fifty-sixth Street, on the east side, from Fifty-fifth Street southerly 152 feet.

(3) Forty-second Street, on the west side, from a point 62 feet south of Pleasant Street southerly 160 feet.

(4) Forty-second Street, on the east side, from a point 123 feet north of Pleasant Street southerly to a point 222 feet south of Pleasant Street.

(5) Thirty-first Street, on the east side, from Iola Street southerly 119 feet.

(6) Thirty-first Street, on the east side, from Center Street northerly 122 feet.

(7) Thirty-first Street, on the west side, from Iola Street southerly to Crocker Street.

(8) School Street, on the south side, from Nineteenth Street to Twentieth Street.

(9) Martin Luther King Jr Parkway, on the westerly side, from Cottage Grove Avenue to School Street.

(10) Martin Luther King Jr Parkway, on the easterly side, from the alley 100 feet north of Cottage Grove Avenue northerly to School Street.

(11) East Fifteenth Street, and connections to East Fourteenth Street, on both sides, from East Fourteenth Street at Vine Street northerly to East Fourteenth Street at Fremont Street.

(C62, § 30-326; O.8084; C75, C79, § 27-337; C91, § 27-1461; O.11,650, 11,935)

Secs. 114-2421—114-2445. Reserved.

DIVISION 8. TRUCK ROUTES

Sec. 114-2446. Designated.

As provided in and in accordance with section 114-471 of this chapter, the portions of streets described in the following sections of this division are designated as truck routes, and commercial vehicles in excess of 12,000 pound, loaded or unloaded, shall be driven only on such routes, except as otherwise provided in section 114-471 of this chapter.

Sec. 114-2447. Reserved.

Editor's note—Ord. No. 14,421, § 1, adopted March 7, 2005, repealed § 114-2447 which pertained to First Street and derived from Code 1962, § 30-578; Ord. No. 8084; Code 1975; Code 1979, § 27-593; Code 1991, § 27-1462; and Ord. No. 11,650.

Sec. 114-2448. Southeast First Street.

Southeast First Street, from Scott Avenue to Indianola Avenue.

(C62, § 30-579; O.8084; C75, C79, § 27-594; C91, § 27-1463; O.11,650, 14,057, 14,421)

Sec. 114-2449. Second Avenue.

Second Avenue, from Vine Street to the north corporate limits.

(C62, § 30-580; O.8084; C75, C79, § 27-595; C91, § 27-1464; O.11,650, 13,218)

Sec. 114-2450. Reserved.

Editor's note—Ord. No. 14,421, § 1, adopted March 7, 2005, repealed § 114-2450 which pertained to Southeast

Second Street and derived from Code 1962, § 30-581; Ord. No. 8084; Code 1975; Code 1979, § 27-596; Code 1991, § 27-1465; and Ord. No. 11,650.

Sec. 114-2451. Southwest Second Street.

Southwest Second Street, from Vine Street to Southwest Third Street.
(C91, § 27-1465.01; O.13,218)

Sec. 114-2452. Third Street.

Third Street, from Vine Street to Laurel Street.
(C62, § 30-582; O.8084; C75, C79, § 27-597; C91, § 27-1466; O.11,650, 13,218, 14,421)

Sec. 114-2453. Southwest Third Street.

Southwest Third Street from Vine Street to Jackson Avenue.
(C91, § 27-1466.01; O.13,218)

Sec. 114-2454. Fifth Avenue.

Fifth Avenue, from Cherry Street to Mulberry Street.
(C62, § 30-583; O.8084; C75, C79, § 27-598; C91, § 27-1467; O.11,650)

Sec. 114-2455. Sixth Avenue.

Sixth Avenue, from Vine Street to New York Avenue.
(C62, § 30-584; O.8084; C75, C79, § 27-599; C91, § 27-1468; O.11,650, 13,855, 14,421, 15,068)

Sec. 114-2455.01. Southwest Sixth Street.

Southwest Sixth Street, from Vine Street to Southwest Seventh Street.
(O.14,421)

Sec. 114-2456. East Sixth Street.

East Sixth Street, from East Vine Street to Pennsylvania Avenue.
(C62, § 30-585; O.8084; C75, § 27-600; O.9190; C79, § 27-600; C91, § 27-1469; O.11,650)

Sec. 114-2457. Southeast Sixth Street.

Southeast Sixth Street, from East Vine Street to Hartford Avenue.
(C62, § 30-586; O.8084; C75, C79, § 27-601; O.9190; C91, § 27-1470; O.11,650)

Sec. 114-2458. Seventh Street.

Seventh Street, from Vine Street to Ascension Street.
(C62, § 30-587; O.8084; C75, C79, § 27-602; C91, § 27-1471; O.11,650, 13,855, 14,421)

Sec. 114-2459. Southwest Seventh Street.

Southwest Seventh Street, from Vine Street to Indianola Road.
(C62, § 30-588; O.8084; C75, C79, § 27-603; C91, § 27-1472; O.11,650, 14,057)

Sec. 114-2460. Eighth Street.

Eighth Street, from Vine Street to Keosauqua Way.
(C62, § 30-589; O.8084; C75, C79, § 27-604; C91, § 27-1473; O.11,650, 14,421)

Sec. 114-2461. Southwest Eighth Street.

Southwest Eighth Street, from Vine Street to Southwest Ninth Street.
(C62, § 30-590; O.8084; C75, C79, § 27-605; C91, § 27-1474; O.11,650, 14,421)

Sec. 114-2462. Ninth Street.

Ninth Street, from Vine Street to Keosauqua Way.
(C62, § 30-591; O.8084; C75, C79, § 27-606; C91, § 27-1475; O.11,650, 14,421)

Sec. 114-2463. Southeast Ninth Street.

Southeast Ninth Street, from Raccoon Street to Scott Avenue.
(C62, § 30-592; O.8084; C75, C79, § 27-607; C91, § 27-1476; O.11,650)

Sec. 114-2464. Southwest Ninth Street.

Southwest Ninth Street, from Vine Street to Army Post Road.
(C62, § 30-593; O.8084; C75, C79, § 27-608; C91, § 27-1477; O.11,650, 14,421)

Sec. 114-2465. Twelfth Street.

Twelfth Street, from Vine Street to High Street.
(C62, § 30-594; O.8084; C75, C79, § 27-609; C91, § 27-1478; O.11,650, 14,421)

Sec. 114-2465.01. Southwest Twelfth Street.

Southwest Twelfth Street, from Vine Street to West Martin Luther King Jr Parkway.
(O.14,421)

Sec. 114-2465.02. Southeast Twelfth Street.

Southeast Twelfth Street, from East Martin Luther King Jr Parkway to Maury Street.
(O.15,387)

Sec. 114-2466. Thirteenth Street.

Thirteenth Street, from Mulberry Street to Grand Avenue.
(C62, § 30-595; O.8084; C75, C79, § 27-610; C91, § 27-1479; O.11,650, 14,855)

Sec. 114-2467. East Fourteenth Street.

East Fourteenth Street, from East Vine Street to the north corporate limits.
(C62, § 30-596; O.8084; C75, C79, § 27-611; C91, § 27-1480; O.11,650)

Sec. 114-2468. Southeast Fourteenth Street.

Southeast Fourteenth Street, from East Vine Street to Southridge Boulevard.
(C62, § 30-597; O.8084; C75, C79, C85, § 27-612; O.11,302; C91, § 27-1481; O.11,650, 14,421, 14,982)

Sec. 114-2469. Fifteenth Street.

Fifteenth Street, from Walnut Street to Ingersoll Avenue.

Fifteenth Street, from Walnut Street to West Martin Luther King Jr Parkway.
(C62, § 30-597.01; O.8317; C75, C79, § 27-612.01; C91, § 27-1482; O.11,650, 14,421)

Sec. 114-2469.01. East Fifteenth Street.

East Fifteenth Street, from Dean Avenue to Maple Street.
(O.14,421)

Sec. 114-2470. Southeast Fifteenth Street.

Southeast Fifteenth Street, from East Martin Luther King Jr Parkway to Maury Street.
(C62, § 30-598; O.8084; C75, C79, § 27-613; C91, § 27-1483; O.11,650, 15,387)

Sec. 114-2471. Sixteenth Street.

Sixteenth Street, from Walnut Street to Locust Street.
(C62, § 30-599; O.8084; C75, C79, § 27-614; C91, § 27-1484; O.11,650)

Sec. 114-2472. Seventeenth Street.

Seventeenth Street, from Locust Street to Ingersoll Avenue.
(C62, § 30-600; O.8084; C75, C79, § 27-615; C91, § 27-1485; O.11,650)

Sec. 114-2473. East Seventeenth Street.

East Seventeenth Street, from East Washington Avenue to Guthrie Avenue.
(C62, § 30-600.01; O.8703; C75, C79, § 27-615.01; C91, § 27-1486; O.11,650)

Sec. 114-2474. Eighteenth Street.

Eighteenth Street, from Locust Street to Ingersoll Avenue.
(C62, § 30-601; O.8084; C75, C79, § 27-616; C91, § 27-1487; O.11,650)

Sec. 114-2475. East Eighteenth Street.

East Eighteenth Street, from East Vine Street to East Grand Avenue.
(C62, § 30-602; O.8084; C75, C79, § 27-617; C91, § 27-1488; O.11,650)

Sec. 114-2476. Southeast Eighteenth Street.

Southeast Eighteenth Street, from East Vine Street to Maury Street.
(C62, § 30-603; O.8084; C75, C79, § 27-618; C91, § 27-1489; O.11,650)

Sec. 114-2477. Nineteenth Street.

Nineteenth Street, from Grand Avenue to Ingersoll Avenue.

Nineteenth Street, from Cottage Grove Avenue to Martin Luther King Jr Parkway.
(C62, § 30-604; O.8084; C75, C79, § 27-619; C91, § 27-1490; O.11,650, 14,421)

Sec. 114-2478. East Twenty-first Street.

East Twenty-first Street, from Avenue Frederick M. Hubbell to Easton Boulevard.
(C62, § 30-605; O.8084; C75, C79, § 27-620; C91, § 27-1491; O.11,650)

Sec. 114-2479. Reserved.

Editor's note—Ord. No. 14,816, § 1, adopted Nov. 24, 2008, repealed § 114-2479, which pertained to Southeast Twenty-eighth Street and derived from Code 1962, § 30-606; Ord. No. 8084; Code 1975, Code 1979, § 27-621; Code 1991, § 27-1492; Ord. No. 11,650; Ord. No. 14,421.

Sec. 114-2479.05. Southeast Twenty-third Street.

Southeast Twenty-third Street, from Maury Street to East Martin Luther King Jr Parkway.
(O.15,466)

Sec. 114-2480. Reserved.

Editor's note—Ord. No. 14,421, § 1, adopted March 7, 2005, repealed § 114-2480 which pertained to Southwest Twenty-eighth Street and derived from Ord. No. 13,647.

Sec. 114-2481. East Thirtieth Street.

East Thirtieth Street, from East Vine Street to East University Avenue.
(C62, § 30-607; O.8084; C75, C79, § 27-622; C91, § 27-1493; O.11,650)

Sec. 114-2482. Southeast Thirtieth Street.

Southeast Thirtieth Street, from East Vine Street to Vandalia Road.
(C62, § 30-608; O.8084; C75, C79, § 27-623; C91, § 27-1494; O.11,650)

Sec. 114-2483. Southwest Thirtieth Street.

Southwest Thirtieth Street, from George Flagg Parkway to Bell Avenue.
(C62, § 30-609; O.8084; C75, C79, § 27-624; C91, § 27-1495; O.11,650, 14,080)

Sec. 114-2484. Forty-second Street.

Forty-second Street, from Grand Avenue to University Avenue.
(C62, § 30-609.01; O.8915; C75, C79, § 27-624.01; C91, § 27-1496; O.11,650)

Sec. 114-2485. Reserved.

Editor's note—Ord. No. 14,421, § 1, adopted March 7, 2005, repealed § 114-2485 which pertained to Southwest Forty-second Street and derived from Code 1985, § 27-624.011; Ord. No. 11,302; Code 1991, § 27-1497; and Ord. No. 11,650.

Sec. 114-2485.05. East Fifty-sixth Street.

East Fifty-sixth Street, from south city limits lying south of East Oakhill Drive to north city limits.
(O.14,905)

Sec. 114-2486. Sixty-third Street.

Sixty-third Street, from a point 1,935 feet south of Grand Avenue to Hickman Road.
(C62, § 30-610; O.8084; C75, C79, § 27-625; C91, § 27-1498; O.11,650)

Sec. 114-2487. Southwest Sixty-third Street.

Southwest Sixty-third Street, from a point 1,935 feet south of Grand Avenue to Southwest McKinley Avenue.
(C62, § 30-611; O.8084; C75, C79, § 27-626; C91, § 27-1499; O.11,650, 13,268, 14,339)

Sec. 114-2488. Army Post Road.

Army Post Road, from South Union Street to Fleur Drive.

Army Post Road, from Fleur Drive to Iowa Highway 28.
(C62, § 30-612; O.8084; C75, C79, § 27-627; C91, § 27-1500; O.11,650, 13,643, 14,421, 15,559)

Sec. 114-2489. East Army Post Road.

East Army Post Road, from South Union Street to the east corporate limits.
(C62, § 30-613; O.8084; C75, C79, § 27-628; C91, § 27-1501; O.11,650)

Sec. 114-2489.05. Ascension Street.

Ascension Street, from Sixth Avenue to Seventh Street.
(O.14,421)

Sec. 114-2490. East Aurora Avenue.

East Aurora Avenue, from East Fourteenth Street to Dixon Street.
(C91, § 27-1501.05; O.13,239)

Sec. 114-2491. Avenue Frederick M. Hubbell.

Avenue Frederick M. Hubbell, from East Grand Avenue to Northeast Forty-third Court.
(C62, § 30-614; O.8084; C75, C79, § 27-629; C91, § 27-1502; O.11,650, 14,905)

Sec. 114-2492. Reserved.

Editor's note—Ord. No. 13,707 repealed § 114-2492 which pertained to Beaver Avenue and derived from Code 1962, § 30-614.01; Ord. No. 8619, Code 1975, Code 1979, § 27-629.01; Code 1991, § 27-1503; and Ord. No. 11,650.

Sec. 114-2492.05. Bancroft Street.

Bancroft Street, from Thomas Beck Road to Southwest Ninth Street.
(O.14,421)

Sec. 114-2493. Bell Avenue.

Bell Avenue, from Thomas Beck Road to Southwest Thirtieth Street.
(C62, § 30-615; O.8084; C75, C79, § 27-630; C91, § 27-1504; O.11,650)

Sec. 114-2493.05. East Broadway Avenue.

East Broadway Avenue, from East Thirty-eighth Street to the east city limits.
(O.14,905)

Sec. 114-2494. Carpenter Avenue.

Carpenter Avenue, from Nineteenth Street to Martin Luther King Jr Parkway.
(C62, § 30-616; O.8084; C75, C79, § 27-631; C91, § 27-1505; O.11,650, 11,935)

Sec. 114-2495. Center Street.

Center Street, from Second Avenue to Third Street.

Center Street, from Fifth Avenue to Keosauqua Way.
(C62, § 30-617; O.8084; C75, C79, § 27-632; C91, § 27-1506; O.11,650, 11,935, 12,042, 13,855, 14,421)

Sec. 114-2496. Cherry Street.

Cherry Street, from Fifth Avenue to Twelfth Street.
(C62, § 30-618; O.8084; C75, C79, § 27-633; C91, § 27-1507; O.11,650, 14,855)

Sec. 114-2497. Reserved.

Editor's note—Ord. No. 14,057, repealed § 114-2497 which pertained to Clifton Avenue and derived from Code 1962, § 30-619; Ord. No. 8084; Code 1975, Code 1979, § 27-634; Code 1991, § 27-1508; Ord. No. 11,650.

Sec. 114-2497.01. Reserved.

Editor's note—Ord. No. 15,355, § 1, adopted March 9, 2015, repealed § 114-2497.01, which pertained to Southwest Connector and derived from Ord. No. 15,242.

Sec. 114-2498. Cottage Grove Avenue.

Cottage Grove Avenue, from Nineteenth Street to Martin Luther King Jr Parkway.
(C62, § 30-620; O.8084; C75, C79, § 27-635; C91, § 27-1509; O.11,650, 11,935)

Sec. 114-2499. Court Avenue.

Court Avenue, from Water Street to Fifth Avenue.
(C62, § 30-621; O.8084; C75, C79, § 27-636; C91, § 27-1510; O.11,650, 14,421)

Sec. 114-2500. East Court Avenue.

East Court Avenue, from Water Street to Redhead Road.
(C62, § 30-622; O.8084; C75, C79, § 27-637; C91, § 27-1511; O.11,650, 14,421)

Sec. 114-2501. Reserved.

Editor's note—Ord. No. 14,421, § 1, adopted March 7, 2005, repealed § 114-2501 which pertained to Crocker Street and derived from Code 1962, § 30-622.01; Ord. No. 8305; Code 1975; Code 1979, § 27-637.01; Code 1991, § 27-1512; and Ord. No. 11,650.

Sec. 114-2502. Dean Avenue.

Dean Avenue, from Redhead Road to East Thirtieth Street.
(C62, § 30-623; O.8084; C75, C79, § 27-638; C91, § 27-1513; O.11,650)

Sec. 114-2503. Delaware Avenue.

Delaware Avenue, from Easton Boulevard to the north corporate limits.
(C62, § 30-624; O.8084; C75, C79, § 27-639; C91, § 27-1514; O.11,650)

Sec. 114-2504. Dixon Street.

Dixon Street, from East Washington Avenue to East Aurora Avenue.
(C62, § 30-624.01; O.8700; C75, C79, § 27-639.01; C91, § 27-1515; O.11,650, 11,688)

Sec. 114-2505. Douglas Avenue.

Douglas Avenue, from Martin Luther King Jr Parkway to the west corporate limits.
(C62, § 30-625; O.8084; C75, C79, § 27-640; C91, § 27-1516; O.11,650, 11,935, 14,421)

Sec. 114-2506. Easton Boulevard.

Easton Boulevard, from East University Avenue to Avenue Frederick M. Hubbell.
(C62, § 30-626; O.8084; C75, C79, § 27-641; C91, § 27-1517; O.11,650)

Sec. 114-2507. Reserved.

Editor's note—Ord. No. 14,421, § 1, adopted March 7, 2005, repealed § 114-2507 which pertained to Elm Street and derived from Code 1962, § 30-627; Ord. No. 8084; Code 1975; Code 1979, § 27-642; Code 1991, § 27-1518; and Ord. No. 11,650.

Sec. 114-2508. Euclid Avenue.

Euclid Avenue, from First Street to Martin Luther King Jr Parkway.
(C62, § 30-628; O.8084; C75, C79, § 27-643; C91, § 27-1519; O.11,650, 11,935)

Sec. 114-2509. East Euclid Avenue.

East Euclid Avenue, from First Street to Avenue Frederick M. Hubbell.
(C62, § 30-629; O.8084; C75, C79, § 27-644; C91, § 27-1520; O.11,650)

Sec. 114-2510. Fleur Drive.

Fleur Drive, from Locust Street to south ramp of Iowa Highway 5.

Fleur Drive, from the intersection of Martin Luther King Jr Parkway and West Martin Luther King Jr Parkway south to George Flagg Parkway.
(C62, § 30-630; O.8084; C75, C79, § 27-645; C91, § 27-1521; O.11,650, 13,643, 14,418, 14,421)

Sec. 114-2510.01. George Flagg Parkway.

George Flagg Parkway, from Fleur Drive to Park Avenue.
(O.14,080)

Sec. 114-2511. Grand Avenue.

Grand Avenue, from Watson Powell Jr Way to the west corporate limits.
(C62, § 30-631; O.8084; C75, C79, § 27-646; C91, § 27-1522; O.11,650, 14,421)

Sec. 114-2512. East Grand Avenue.

East Grand Avenue, from Watson Powell Jr Way to Avenue Frederick M. Hubbell.
(C62, § 30-632; O.8084; C75, C79, § 27-647; C91, § 27-1523; O.11,650, 14,421)

Sec. 114-2513. Guthrie Avenue.

Guthrie Avenue, from East Seventeenth Street to Interstate 235 (Des Moines Freeway).
(C62, § 30-633; O.8084; C75, § 27-648; O.9315; C79, § 27-648; C91, § 27-1524; O.11,650)

Sec. 114-2514. Hartford Avenue.

Hartford Avenue, from Southeast Sixth Street to Southeast Fourteenth Street.
(C75, § 27-649.01; O.9190; C79, § 27-649.01; O.9855, 10,014; C91, § 27-1526; O.11,650)

Sec. 114-2515. Hickman Road.

Hickman Road, from Sixth Avenue to the west corporate limits.
(C62, § 30-635; O.8084, 8305; C75, C79, § 27-650; C91, § 27-1527; O.11,650)

Sec. 114-2516. High Street.

High Street, from Twelfth Street to Ingersoll Avenue.
(C62, § 30-636; O.8084; C75, C79, § 27-651; C91, § 27-1528; O.11,650)

Sec. 114-2516.05. Hubbell Avenue.

Hubbell Avenue, from East Forty-third Court to the northeast corporate limits.
(O.14,905)

Sec. 114-2517. Hull Avenue.

Hull Avenue, from Dixon Street to Delaware Avenue.
(C79, § 27-651.01; O.9863; C91, § 27-1529; O.11,650)

Sec. 114-2518. Indianola Avenue.

Indianola Avenue, from Jackson Avenue to Southeast Fourteenth Street.
(C62, § 30-637; O.8084; C75, C79, § 27-652; C91, § 27-1530; O.11,650, 14,057, 14,421)

Sec. 114-2518.01. Indianola Road.

Indianola Road, from Southwest Ninth Street to Southeast First Street.
(O.14,057)

Sec. 114-2519. Ingersoll Avenue.

Ingersoll Avenue, from 42nd Street to High Street.
(C62, § 30-638; O.8084; C75, C79, § 27-653; C91, § 27-1531; O.11,650, 11,935, 15,035)

Sec. 114-2520. Interstate 235 (Des Moines Freeway).

Interstate 235 (Des Moines Freeway), from the west corporate limits to the north corporate limits.
(C62, § 30-639; O.8084; C75, C79, § 27-654; C91, § 27-1532; O.11,650)

Sec. 114-2521. Iowa Highway 28.

Iowa Highway 28, from Southwest McKinley Avenue to south corporate limits.
(C91, § 27-1532.001; O.13,268, 14,339, 14,421)

Sec. 114-2521.01. Iowa Highway 5.

Iowa Highway 5, from west corporate limits to east corporate limits.
(O.14,421)

Sec. 114-2522. Jackson Avenue.

Jackson Avenue, from South Union Street to Southwest Third Street.
(C91, § 27-1532.01; O.13,218)

Sec. 114-2523. East Jackson Avenue.

East Jackson Avenue, from South Union Street to Southeast First Street.
(C91, § 27-1532.02; O.13,218)

Sec. 114-2523.05. Johnson Court.

Johnson Court, from Dean Avenue to East Fourteenth Street.

Johnson Court, from Maple Street to Fremont Street.
(O.14,421)

Sec. 114-2524. Reserved.

Editor's note—Ord. No. 14,635, § 1, adopted March 12, 2007, repealed § 114-2524, which pertained to Kasson Street and derived from Code 11962, § 30-640; Ord. No. 8084; Code 1975; Code 1979, § 27-655; Code 1991, § 27-1533; Ord. No. 11,650.

Sec. 114-2525. Keosauqua Way.

Keosauqua Way, from Eighth Place to Nineteenth Street.
(C62, § 30-641; O.8084; C75, C79, § 27-656; C91, § 27-1534; O.11,650, 12,042, 13,028, 13,855)

Sec. 114-2526. Locust Street.

Locust Street, from Second Avenue to Eighteenth Street.
(C62, § 30-642; O.8084; C75, C79, § 27-657; C91, § 27-1535; O.11,650, 14,421)

Sec. 114-2527. East Market Street.

East Market Street, from Southeast Eighteenth Street to Southeast Twenty-eighth Street.
(C62, § 30-643; O.8084; C75, C79, § 27-658; C91, § 27-1536; O.11,650)

Sec. 114-2528. Martin Luther King Jr Parkway.

Martin Luther King Jr Parkway, from West Martin Luther King Jr Parkway to Euclid Avenue.
(C62, § 30-634; O.8084; C75, C79, § 27-649; C91, § 27-1525; O.11,650; C91, § 27-1536.01; O.11,935, 14,418)

Sec. 114-2528.01. East Martin Luther King Jr Parkway.

East Martin Luther King Jr Parkway, from the center of Des Moines River to Southeast Thirtieth Street.
(O.14,982, 15,387, 15,466)

Sec. 114-2529. Maury Street.

Maury Street, from Southeast Sixth Street to Southeast Twenty-third Street.
(C62, § 30-644; O.8084; C75, § 27-659; O.9235; C79, § 27-659; C91, § 27-1537; O.11,650, 15,466)

Sec. 114-2530. Merle Hay Road.

Merle Hay Road, from University Avenue to the north corporate limits.
(C62, § 30-645; O.8084; C75, C79, § 27-660; C91, § 27-1539; O.11,650)

Sec. 114-2531. Mulberry Street.

Mulberry Street, from Fifth Avenue to Thirteenth Street.
(C62, § 30-646; O.8084; C75, C79, § 27-661; C91, § 27-1540; O.11,650)

Sec. 114-2531.5. New York Avenue.

New York Avenue, from Second Avenue to Sixth Avenue.
(O.15,068)

Sec. 114-2532. Park Avenue.

Park Avenue, from George Flagg Parkway to Southwest Sixty-third Street.
(C62, § 30-647; O.8084; C75, C79, § 27-662; C91, § 27-1541; O.11,650, 14,080)

Sec. 114-2533. Park Street.

Park Street, from Second Avenue to Eighth Place.
(C91, § 27-1541.01; O.12,096, 13,028)

Sec. 114-2534. Pennsylvania Avenue.

Pennsylvania Avenue, from East Grand Avenue to East University Avenue.
(C62, § 30-648; O.8084; C75, C79, § 27-663; C91, § 27-1542; O.11,650)

Sec. 114-2535. Raccoon Street.

Raccoon Street, from Southeast Sixth Street to Southeast Eleventh Street.
(C62, § 30-649; O.8084; C75, C79, § 27-664; C91, § 27-1543; O.11,650, 14,421)

Sec. 114-2536. Redhead Road.

Redhead Road, from East Court Avenue to Dean Avenue.
(C62, § 30-650; O.8084; C75, C79, § 27-665; C91, § 27-1544; O.11,650)

Sec. 114-2537. Searle Street.

Searle Street, from Avenue Frederick M. Hubbell to State Street.
(O.13,645)

Sec. 114-2538. Scott Avenue.

Scott Avenue, from Southeast First Street to Southeast Eighteenth Street.
(C62, § 30-651; O.8084; C75, C79, § 27-666; C91, § 27-1545; O.11,650, 14,838)

Sec. 114-2538.05. Southridge Boulevard.

Southridge Boulevard, from Southeast Fourteenth Street to south city limits.
(O.14,905, 14,982)

Sec. 114-2539. Thomas Beck Road.

Thomas Beck Road, from Indianola Road to Bell Avenue.
(C62, § 30-652; O.8084; C75, C79, § 27-667; C91, § 27-1546; O.11,650, 14,057)

Sec. 114-2540. University Avenue.

University Avenue, from Maine Street to the west corporate limits.
(C62, § 30-653; O.8084; C75, C79, § 27-668; C91, § 27-1547; O.11,650)

Sec. 114-2541. East University Avenue.

East University Avenue, from Maine Street to the east corporate limits.
(C62, § 30-654; O.8084; C75, C79, § 27-669; C91, § 27-1548; O.11,650)

Sec. 114-2542. Reserved.

Editor's note—Ord. No. 14,982, § 1, adopted Dec. 20, 2010, repealed § 114-2542 which pertained to U.S. Highway 69 and derived from Code 1991, § 27-1548.05; Ord. No. 13,268; Ord. No. 14,905.

Sec. 114-2543. Reserved.

Editor's note—Ord. No. 14,080, § 1, adopted April 22, 2002, repealed § 114-2543 which pertained to Valley Drive and derived from Code 1962, § 30-655; Ord. No. 8084; Code 1975 and Code 1979, § 27-670; Code 1991, § 27-1549; and Ord. No. 11,650.

Sec. 114-2544. Vandalia Road.

Vandalia Road, from Southeast Thirtieth Street to the east corporate limits.
(C62, § 30-656; O.8084; C75, C79, § 27-671; C91, § 27-1550; O.11,650)

Sec. 114-2544.01. Veterans Parkway.

Veterans Parkway, from Iowa Highway 28 to west city limits.
(O.15,355)

Sec. 114-2545. Walnut Street.

Walnut Street, from Water Street to Third Street.

Walnut Street, from Thirteenth Street to Sixteenth Street.
(C62, § 30-657; O.8084; C75, C79, § 27-672; C91, § 27-1551; O.11,650, 14,421)

Sec. 114-2546. East Walnut Street.

East Walnut Street, from Water Street to East Sixth Street.

East Walnut Street, from East Fourteenth Street to East Twenty-first Street.
(C62, § 30-658; O.8084. 8412; C75, C79, § 27-673; C91, § 27-1552; O.11,650, 14,421, 14,635)

Sec. 114-2547. East Washington Avenue.

East Washington Avenue, from East Fourteenth Street to Dixon Street.
(C62, § 30-658.01; O.8703; C75, C79, § 27-673.01; C91, § 27-1553; O.11,650, 11,688)

Sec. 114-2548. Reserved.

Editor's note—Ord. No. 14,421, § 1, adopted March 7, 2005, repealed § 114-2548 which pertained to East Watrous Avenue and derived from Code 1991, § 27-1553.05; and Ord. No. 11,892.

Sec. 114-2548.05. West Martin Luther King Jr Parkway.

West Martin Luther King Jr Parkway, from the center of Des Moines River to Martin Luther King Jr Parkway.
(O.14,418, 14,982)

Sec. 114-2548.07. Willow Creek Avenue.

Willow Creek Avenue, from Iowa 28 to the west corporate limits.
(O.15,559)

Sec. 114-2549. Watson Powell Jr Way.

Watson Powell Jr Way, from Second Avenue to Seventh Street.
(O.13,855)

Secs. 114-2550—114-2575. Reserved.

DIVISION 9. PROHIBITED/LIMITED PARKING

Sec. 114-2576. Designated.

As provided in and in accordance with sections 114-600—114-605, 114-607—114-615, 114-620—114-627 and 114-629 of this chapter, the areas described in the following sections of this division are designated prohibited or limited parking areas as described in the sections of this division, and it shall be unlawful to park a vehicle in conflict with sections 114-600—114-605, 114-607—114-615, 114-620—114-627 and 114-629 of this chapter or the following sections of this division.

Sec. 114-2577. Southeast First Court—Parmer Drive to south city limits.

Southeast First Court, on the east side, from Parmer Drive to East Thornton Avenue, no parking any time.

Southeast First Court, on the west side, from a point 50 feet north of East Thornton Avenue to East Thornton Avenue, no parking any time.

Southeast First Court, on the west side, from Crossroads Drive to the cul-de-sac south and including any part of the cul-de-sac, no parking any time.
(C75, § 27-713.01; O.9152; C91, § 27-1554; O.11,650, 15,726, 16,215)

Sec. 114-2578. First Street—Vine Street to Aurora Avenue.

First Street, on the east side, from Sheridan Avenue to a point 75 feet north thereof, no parking any time.

First Street, on the west side, from a point 230 feet south of New York Avenue to a point 80 feet south thereof, no parking any time.

First Street, on the west side, from a point 100 feet south of New York Avenue to Corning Avenue, no parking any time.

First Street, on the east side, from a point 80 feet south of New York Avenue to a point 75 feet north of Sheridan Avenue, commercial loading zone.

First Street, on the east side, from a point 80 feet south of New York Avenue to Euclid Avenue, no parking any time.

First Street, on the west side, from Tiffin Avenue to a point 40 feet north thereof, no parking any time.

First Street, on the west side, from a point 80 feet north of Ovid Avenue to a point 25 feet north thereof, is designated as a handicapped parking space and is subject to the same prohibition as is found in subsection 114-616(a) of this chapter.

First Street, on the west side, from Euclid Avenue to a point 50 feet south thereof, no parking any time.

First Street, on the east side, from Douglas Avenue to Aurora Avenue, no parking any time.
(C62, § 30-700; O.8084, 8394, 8767; C75, § 27-714; O.9461; C79, § 27-714; O.9629, 9849, 9927, 9957, 10,099, 10,311, 10,402, 10,418, 10,476, 10,598, 10,695; C85, § 27-714; O.10,947, 10,965, 11,089; C91, § 27-1555; O.11,650, 13,339, 13,640, 14,437, 14,518 (installed 12/9/16), 16,171, 16,515)

Sec. 114-2579. East First Street—East Vine Street to East Court Avenue.

East First Street, on the west side, from East Vine Street to a point 243 feet south of East Court Avenue, no parking any time.

East First Street, on the east side, from a point 45 feet south of East Court Avenue to a point 50 feet south thereof, is designated as handicapped parking spaces and are subject to the same prohibition as is found in subsection 114-616(a) of this chapter.

East First Street, on the west side, from East Court Avenue to a point 55 feet south thereof, no parking any time.

East First Street, on the east side, from East Court Avenue to a point 20 feet south thereof, no parking any time.

East First Street, on the east side, from a point 95 feet south of East Court Avenue to a point 295 feet south thereof, reserved for official police vehicles.
(C62, § 30-701; O.8084; C75, § 27-715; O.9513, 9595; C79, C85, § 27-715, O.11,278; C91, § 27-1556; O.11,650, 11,766, 11,891, 15,186, 15,338, 16,042)

Sec. 114-2580. East First Street—East Court Avenue to East Walnut Street.

East First Street, on the west side, from East Court Avenue to East Walnut Street, no parking any time.
(C62, § 30-702; O.8084, 8798; C75, C79, § 27-716; C85, § 27-716; O.10,806; C91, § 27-1557; O.11,650, 14,075, 16,502)

Sec. 114-2581. Reserved.

Editor's note—Ord. No. 14,437, § 1, adopted April 25, 2005, repealed § 114-2581, which pertained to East First Street—East Locust Street to East Grand Avenue and derived from Code 1962, § 30-704; Ord. No. 8084; Ord. No. 8153; Ord. No. 8443; Code 1975; Code 1979, § 27-718; Code 1991, § 27-1558; Ord. No. 11,650; and Ord. No. 13,727.

Sec. 114-2582. Reserved.

Editor's note—Ord. No. 14,437, § 1, adopted April 25, 2005, repealed § 114-2582, which pertained to East First Street—East Grand Avenue to Des Moines Street and derived from Code 1962, § 30-705; Ord. No. 8084; Ord. No. 8453; Code 1975, § 27-719; Ord. No. 9292; Code 1979, § 27-719; Ord. No. 10,647; Code 1991, § 27-1559; and Ord. No. 11,650.

Sec. 114-2583. Reserved.

Editor's note—Ord. No. 14,437, § 1, adopted April 25, 2005, repealed § 114-2583, which pertained to East First Street—Des Moines Street to East River Drive and derived from Code 1962, § 30-706; Ord. No. 8084; Code 1975, § 27-720; Ord. No. 8998; Code 1979, § 27-720; Ord. No. 10,418; Code 1991, § 27-1560; and Ord. No. 11,650.

Sec. 114-2584. Southeast First Street—East Vine Street to south city limits.

Southeast First Street, on the west side, from East Elm Street to Raccoon Street, no parking any time.

Southeast First Street, on the west side, from East Vine Street to a point 50 feet south thereof, no parking any time.

Southeast First Street, on both sides, from Indianola Avenue to Southwest Water Street, no parking any time.

Southeast First Street, on the east side, from East Hughes Avenue (east leg) to a point 40 feet south thereof, no parking any time.

Southeast First Street, on the west side, from East Hughes Avenue to East Caulder Avenue, no parking any time.

Southeast First Street, on the west side, from East Watrous Avenue to East Leach Avenue, no parking any time.

Southeast First Street, on the east side, from East Leach Avenue to a point 50 feet north thereof, no parking any time.

Southeast First Street, on the east side, from Crossroads Drive to south city limits, no parking any time.
(C62, § 30-707; O.8084, 8096; C75, § 27-721; O.9330, 9513; C79, § 27-721; O.9886, 10,111, 10,402; C91, § 27-1561; O.11,650, 12,079; C00, § 114-2584; O.14,057, 14,437, 14,518 (installed 12/29/14), 15,726, 16,171)

Sec. 114-2585. Southwest First Street—Clay Avenue to Davis Avenue.

Southwest First Street, on the east side, from Clay Avenue to Jackson Avenue, no parking any time.

Southwest First Street, on the east side, from Dunham Avenue to Edison Avenue, no parking any time.

Southwest First Street, on the east side, from Edison Avenue to a point 175 feet north of Indianola Road, school passenger loading and unloading, 7:00 a.m. to 5:00 p.m. school days.

Southwest First Street, on the west side, from a point 50 feet north of Indianola Road to Hillside Avenue, no parking any time.

Southwest First Street, on the east side, from a point 175 feet north of Indianola Road to a point 150 feet south of Indianola Road, no parking any time.

Southwest First Street, on the east side, from Hillside Avenue to Fulton Drive, no parking any time.

Southwest First Street, on the east side, from Olinda Avenue to Davis Avenue, no parking any time.

Southwest First Street, on the west side, from a point 50 feet north of Fulton Drive to Fulton Drive, no parking any time.
(C62, § 30-708; O.8084, 8298, 8317, 8850; C75, C79, § 27-722; O.9693, 9849, 9971, 10,111, 10,264, 10,535, 10,549; C85, § 27-722; O.10,812, 11,278; C91, § 27-1562; O.11,650, 11,892, 11,951, 13,218, 13,360, 13,593, 13,691, 13,908, 14,057, 14,437, 16,477)

Sec. 114-2586. Second Avenue—Vine Street to Walnut Street.

Second Avenue, on the west side, from Court Avenue to a point 245 feet north thereof, no parking any time.

Second Avenue, on the west side, from Walnut Street to a point 245 feet north of Court Avenue, no stopping or standing.

Second Avenue, on the west side, from a point 180 feet south of Court Avenue to a point 70 feet south thereof, is designated a 24-hour loading zone.
(C62, § 30-709; O.8084, 8153, 8317, 8412; C75, § 27-723; O.8964, 9227, 9269, 9292; C79, § 27-723; O.10,418, 10,734; C85, § 27-723; O.11,137, 11,199, 11,203; C91, § 27-1563; O.11,650, 12,090, 13,546, 14,389, 14,851)

Sec. 114-2587. Second Avenue—Walnut Street to Locust Street.

Second Avenue, on the east side, from Walnut Street to a point 25 feet north thereof, no parking any time.

Second Avenue, on the east side, from Locust Street to a point 75 feet south thereof, no parking any time.

Second Avenue, on the west side, from Walnut Street to a point 25 feet north thereof, no parking any time.

Second Avenue, on the west side, from Locust Street to a point 25 feet south thereof, no parking any time.
(C62, § 30-710; O.8084, 8098, 8867; C75, § 27-724; O.9292; C79, § 27-724; O.9629, 9714; C91, § 27-1564; O.11,650, 13,582)

Sec. 114-2588. Second Avenue—Locust Street to Grand Avenue.

Second Avenue, on the west side, from Grand Avenue to a point 165 feet south thereof, no parking any time.
(C62, § 30-711; O.8084, 8124; C75, § 27-725; O.9227, 9292; C79, § 27-725; O.9629; C91, § 27-1565; O.11,650, 13,162, 16,265, 16,313)

Sec. 114-2589. Second Avenue—Grand Avenue to University Avenue.

Second Avenue, on both sides, from Grand Avenue to Watson Powell Jr Way, no parking any time.

Second Avenue, on the east side, from Watson Powell Jr Way to University Avenue, no parking any time.

Second Avenue, on the west side, from Watson Powell Jr Way to Center Street, no parking 4:00 p.m. to 6:00 p.m.

Second Avenue, on the west side, from Center Street to University Avenue, no parking any time.
(C62, § 30-712; O.8084; C75, C79, § 27-726; C91, § 27-1566; O.11,650, 14,437, 14,550)

Sec. 114-2590. Second Avenue—University Avenue to Euclid Avenue.

Second Avenue, on the west side, from University Avenue to Euclid Avenue, no parking any time.

Second Avenue, on the east side, from University Avenue to Euclid Avenue, no parking any time.
(C62, § 30-713; O.8084; C75, C79, § 27-727; O.10,476; C91, § 27-1567; O.11,650)

Sec. 114-2591. Second Avenue—Euclid Avenue to Douglas Avenue.

Second Avenue, on both sides, from Euclid Avenue to Douglas Avenue, no parking any time.
(C62, § 30-714; O.8084, 8096; C75, C79, § 27-728; C91, § 27-1568; O.11,650)

Sec. 114-2592. Second Avenue—Douglas Avenue to Aurora Avenue.

Second Avenue, on both sides, from Douglas Avenue to Aurora Avenue, no parking any time.
(C62, § 30-715; O.8084, 8096; C75, C79, § 27-729; C91, § 27-1569; O.11,650)

Sec. 114-2593. Second Place—Forest Avenue to College Avenue.

Second Place, on the west side, from Forest Avenue to College Avenue, no parking any time.

Second Place, on the east side, from College Avenue to a point 50 feet south thereof, no parking any time.
(C62, § 30-708.01; O.8310, 8562; C75, C79, § 27-729.01; C91, § 27-1570; O.11,650, 14,855)

Sec. 114-2594. Southeast Second Court—Dead end north of East Livingston Avenue to Southeast Burnham Street.

Southeast Second Court, on the west side, from a point 150 feet north of east of Livingston Avenue to East Jackson Avenue, no parking any time.

Southeast Second Court, on the east side, from East Edison Avenue to East Columbus Avenue, no parking any time.

Southeast Second Street, on the east side, from East Bundy Avenue to Southeast Burnham Street, no parking any time.
(C79, § 27-729.02; O.9849, 9971; C91, § 27-1571; O.11,650, 13,160)

Sec. 114-2595. East Second Street—East Vine Street to East Court Avenue.

East Second Street, on the west side, from East Court Avenue to a point 275 feet south thereof, no parking any time.

East Second Street, on the east side, from East Court Avenue to a point 208 feet south thereof, no parking any time.
(C62, § 30-716; O.8084, 8893; C75, C79, § 27-730; O.10,386; C91, § 27-1572; O.11,650; C00, § 114-2595; O.14,518 (installed 1/6/06), 15,338, 16,171, 16,265, 16,370)

Sec. 114-2596. East Second Street—East Court Avenue to East Walnut Street.

East Second Street, on the west side, from East Court Avenue to 205 feet north thereof, no parking any time.

East Second Street, on the east side, from East Court Avenue to a point 30 feet north thereof, no parking any time.

East Second Street, on the east side, from 105 feet north of East Walnut Street to a point 30 feet north thereof, no parking any time.

East Second Street, on the east side, from East Walnut Street to a point 20 feet south thereof, no parking any time.

East Second Street, on the east side, from a point 45 feet south of East Walnut Street to a point 25 feet south thereof, commercial loading zone.
(C62, § 30-717; O.8084; C75, § 27-731; O.9593; C79, § 27-731; O.10,418, 10,476; C85, § 27-731; O.10,747; C91, § 27-1573; O.11,650, 11,828, 13,348, 15,332, 15,624, 16,042, 16,502)

Sec. 114-2597. East Second Street—East Walnut Street to East Locust Street.

East Second Street, on the west side, from East Walnut Street to East Locust Street, no parking any time.
(C62, § 30-718; O.8084; C75, C79, § 27-732; C91, § 27-1574; O.11,650, 15,577, 16,042)

Sec. 114-2597.1. East Second Street—East Locust Street to East Grand Avenue.

East Second Street, on the east side, from a point 160 feet north of East Locust Street to East Grand Avenue, no parking any time.

East Second Street, on the west side, from East Locust Street to East Grand Avenue, no parking any time.
(O.15,621)

Sec. 114-2598. East Second Street—East Grand Avenue to Maple Street.

East Second Street, on the east side, from Des Moines Street to a point 755 feet north thereof, no parking any time.

East Second Street, on the west side, from a point 250 feet north of Des Moines Street to a point 265 feet north thereof, no parking any time.

East Second Street, on the west side, from Des Moines Street to a point 50 feet north thereof, no parking any time.
(C62, § 30-719; O.8084, 8539; C75, § 27-733; O.9267; C79, § 27-733; O.10,239, 10,647; C91, § 27-1575; O.11,650, 15,426, 15,723)

Sec. 114-2599. Southeast Second Street—East Vine Street to south city limits.

Southeast Second Street, on the west side, from a point 174 feet south of East Vine Street to a point 72 feet south thereof, loading zone, 20 minute limit.

Southeast Second Street, on the east side, from a point 216 feet south of East Vine Street to a point 24 feet south thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in section 114-616(a) of this Code.

Southeast Second Street, on the west side, from a point 289 feet south of East Market Street to a point 24 feet south thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in section 114-616(a) of this Code.

Southeast Second Street, on the east side, from a point 132 feet south of East Market Street to a point 95 feet south thereof, loading zone, 20 minute limit.

Southeast Second Street, on the west side, from Dean Avenue to Scott Avenue, no parking any time.

Southeast Second Street, on the east side, from East Jackson Avenue to East Edison Avenue, no parking any time.

Southeast Second Street, on both sides and at the dead end, from East Edison Avenue to the dead end south, no parking any time.

Southeast Second Street, on the west side, from East Watrous Avenue to East Trowbridge Street, no parking any time.

Southeast Second Street, on the west side, from East Porter Avenue to East Army Post Road, no parking any time.

Southeast Second Street, on the east side, from East Army Post Road to a point 50 feet north thereof, no parking any time.

Southeast Second Street, on the west side, from Crossroads Drive to south city limits, no parking any time.
(C62, § 30-720; O.8084, 8484, 8639, 8772; C75, § 27-734; O.9464, 9518; C79, § 27-734; O.9849, 9886, 9771, 10,402, 10,598; C85, § 27-734; O.11,288, 11,315; C91, § 27-1576; O.11,650, 11,982, 13,332, 14,506, 14,982, 15,726, 16,370)

Sec. 114-2600. Southwest Second Street—Vine Street to Lally Street.

Southwest Second Street, on the east side, from Vine Street (eastbound) to a point 15 feet south thereof, no parking any time.

Southwest Second Street, on the east side, from a point 15 feet north of Market Street to a point 35 feet south of Market Street, no parking any time.

Southwest Second Street, on the east side, from a point 121 feet south of Market Street to West Martin Luther King Jr Parkway, no parking any time.

Southwest Second Street, on the west side, from Market Street to a point 54 feet south thereof, no parking any time.

Southwest Second Street, on the west side, from a point 100 feet south of Market Street to a point 50 feet south thereof, commercial loading zone.

Southwest Second Street, on the west side, from a point 150 feet south of Market Street to a point 27 feet south thereof, no parking any time.

Southwest Second Street, on the west side, from Martin Luther King Jr Parkway to as point 50 feet north thereof, no parking any time.

Southwest Second Street, on the west side, from Martin Luther King Jr Parkway to Southwest Third Street, no parking any time.

Southwest Second Street, on the east side, from Columbus Avenue to a point 50 feet north thereof, no parking any time.

Southwest Second Street, on the west side, from Livingston Avenue to Columbus Avenue, no parking any time.

Southwest Second Street, on the east side, from Dunham Avenue to a point 50 feet south thereof, no parking any time.

Southwest Second Street, on the east side, from Park Avenue to Pleasant View Drive, no parking any time.

Southwest Second Street, on the west side, from Park Avenue to Thornton Avenue, no parking any time.

Southwest Second Street, on the east side, from Hughes Avenue to a point 50 feet north thereof, no parking any time.

Southwest Second Street, on the west side, from Thornton Avenue to a point 40 feet south thereof, no parking any time.

Southwest Second Street, on the east side, from Thornton Avenue to Watrous Avenue, no parking any time.

Southwest Second Street, on the east side, from Philip Street to a point 70 feet south thereof, no parking any time.

Southwest Second Street, on the west side, from Philip Street to McKinley Avenue, no parking any time.

Southwest Second Street, on the east side, from McKinley Avenue to a point 50 feet north thereof, no parking any time.

Southwest Second Street, on the west side, from Porter Avenue to Lally Street, no parking any time.

Southwest Second Street, on the east side, from Porter Avenue to a point 150 feet south thereof, school passenger loading and unloading, 7:00 a.m. to 5:00 p.m. school days.
(C62, § 30-721; O.8084, 8283, 8298, 8317, 8520, 8655, 8732; C75, § 27-735; O.9226; C79, § 27-735; O.9849, 9886, 10,096, 10,111, 10,173, 10,272; C85, § 27-735; O.10,767, 10,792; 10,891, 10,938, 10,974, 11,098, 11,203, 11,215, 11,238, 11,278, 11,379, 11,480; C91, § 27-1577; O.11,650, 11,848, 11,904, 11,951, 13,121, 13,162, 13,218, 13,239, 13,593; C00, § 114-2600; O.14,270, 14,518 (installed 12/15/14, 10/12/16), 14,566, 15,301, 15,621, 16,171, 16,418, 16,515)

Sec. 114-2601. Southwest Third Place—Kenyon Avenue to Porter Avenue.

Southwest Third Place, on the west side, from Kenyon Avenue to Porter Avenue, no parking any time.

Southwest Third Place, on the east side, from Kenyon Avenue to a point 60 feet south thereof, no parking any time.

Southwest Third Place, on the east side, from Porter Avenue to a point 50 feet north thereof, no parking any time.
(C62, § 30-721.01; O.8084; C75, C79, § 27-735.01; O.9855; C85, § 27-735.01; O.10,913, 10,932, 10,999; C91, § 27-1578; O.11,650)

Sec. 114-2602. Southeast Third Court—East Philip Street to East Emma Avenue.

Southeast Third Court, on the east side, from East Philip Street to East Emma Avenue, no parking any time.
(C75, § 27-735.02; O.9420; C79, § 27-735.02; C91, § 27-1579; O.11,650)

Sec. 114-2603. Third Street—Vine Street to Court Avenue.

Third Street, on the west side, from Vine Street to a point 40 feet north thereof, no parking any time.

Third Street, on the west side, from a point 108 feet north of Vine Street to a point 30 feet north thereof, no parking any time.

Third Street, on the west side, from Court Avenue to a point 40 feet south thereof, no parking any time.

Third Street, on the west side, from a point 115 feet south of Court Avenue to a point 60 feet south thereof, loading zone.

Third Street, on the west side from Court Avenue to a point 115 feet south thereof, no parking 9:00 p.m. to 6:00 a.m., Friday and Saturday.

Third Street, on the east side, from Vine Street to a point 40 feet north thereof, no parking any time.

Third Street, on the east side, from Court Avenue to a point 80 feet south thereof, loading zone.
(C62, § 30-722; O.8084, 8268; C75, § 27-736; O.9227, 9292, 9518, 9595, C79, § 27-736; O.9861, 9927, 10,407; C85, § 27-736; O.11,137, 11,561; C91, § 27-1580; O.11,650, 11,951, 13,139, 14,126, 14,753, 15,081, 15,665, 16,462, 16,491)

Sec. 114-2604. Third Street—Court Avenue to Walnut Street.

Third Street, on the east side, from Court Avenue to a point 65 feet north thereof, no parking any time.

Third Street, on the east side, from a point 140 feet north of Court Avenue to a point 105 feet north thereof, no parking any time.

Third Street, on the east side, from a point 65 feet north of Court Avenue to a point 75 feet north thereof, no parking 2:00 a.m. to 6:00 p.m.

Third Street, on the east side, from a point 65 feet north of Court Avenue to a point 80 feet north thereof, taxicab stand 6:00 p.m. to 2:00 a.m.

Third Street, on the east side, from a point 245 feet north of Court Avenue to Walnut Street, no stopping or standing.

Third Street, on the west side, from a point 104 feet north of Court Avenue to a point 50 feet north thereof, commercial loading zone.

Third Street, on the west side, from a point 154 feet north of Court Avenue to a point 29 feet north thereof, no parking any time.

Third Street, on the west side, from a point 207 feet north of Court Avenue to a point 115 feet north thereof, no parking 9:00 p.m. to 6:00 a.m., Friday and Saturday.

Third Street, on the west side, from Walnut Street to a point 90 feet south thereof, loading zone, 8:00 a.m. to 6:00 p.m., Monday to Saturday.

Third Street, on the west side, from Court Avenue to a point 207 feet north thereof, no parking 6:00 p.m. to 6:00 a.m., Friday and Saturday.
(C62, § 30-723; O.8084, 8919; C75, § 27-737; O.8970; C79, § 27-737; O.10,085, 10,734; C85, § 27-737; O.11,256, 11,381, 11,426; C91, § 27-1581; O.11,650, 11,891, 12,090, 13,066, 13,546, 14,428, 14,458, 14,704, 14,861, 15,081, 15,665)

Sec. 114-2605. Third Street—Walnut Street to Locust Street.

Third Street, on the west side, from Walnut Street to Locust Street, no parking any time.

Third Street, on the east side, from Walnut Street to a point 200 feet north thereof, loading zone.

Third Street, on the east side, from a point 200 feet north of Walnut Street to Locust Street, no parking anytime.
(C62, § 30-724; O.8084; C75, § 27-738; O.8970, 9292; C79, § 27-738; C85, § 27-738; O.10,891; C91, § 27-1582; O.11,650, 13,705, 13,785, 15,367)

Sec. 114-2606. Third Street—Locust Street to Grand Avenue.

Third Street, on the east side, from Locust Street to a point 150 feet north thereof, no parking any time.

Third Street, on the east side, from a point 196 feet north of Locust Street to a point 27 feet north thereof, is designated a handicapped loading zone, 30-minute limit, and is subject to the same prohibitions as are found in subsection 114-616(a) and in section 114-608 of this chapter.

Third Street, on the east side, from a point 150 feet north of Locust Street to a point 46 feet north thereof, loading zone.

Third Street, on the east side, from a point 223 feet north of Locust Street to Grand Avenue, no parking any time.

Third Street, on the west side, from a point 65 feet north of Locust Street to a point 20 feet north thereof, commercial loading zone.

Third Street, on the west side, from Grand Avenue to a point 65 feet south thereof, no parking any time.
(C62, § 30-725; O.8084; C75, § 27-739; O.8970, 9292, 9541, 9595, C79, § 27-739; O.10,476, 10,540, 10,734; C85, § 27-739; O.10,812, 10,938; C91, § 27-1583; O.11,650, 13,446, 13,604, 14,428, 15,187, 16,255)

Sec. 114-2607. Third Street—Grand Avenue to Watson Powell Jr Way.

Third Street, on the west side, from Grand Avenue to Watson Powell Jr Way, no parking any time.

Third Street, on the east side, from Grand Avenue to a point 35 feet north thereof, no parking any time.

Third Street, on the east side, from a point 35 feet north of Grand Avenue to Watson Powell Jr Way, no parking 7:00 a.m. to 9:00 a.m.
(C62, § 30-726; O.8084; C75, § 27-740; O.9292; C79, § 27-740; C85, § 27-740; O.11,522; C91, § 27-1584; O.11,650, 13,855)

Sec. 114-2608. Third Street—Watson Powell Jr Way to School Street.

Third Street, on the west side, from Watson Powell Jr Way to Park Street, no parking any time.

Third Street, on the west side, from Park Street to a point 100 feet north thereof, no parking any time.

Third Street, on the west side, from a point 100 feet north of Park Street to a point 140 feet north thereof, passenger loading and unloading only, 20 minute limit, 9:00 a.m. to 7:00 a.m.

Third Street, on the west side, from a point 100 feet north of Park Street to a point 140 feet north thereof, no parking 7:00 a.m. to 9:00 a.m.

Third Street, on the west side, from a point 240 feet north of Park Street to a point 35 feet north thereof, taxicab stand.

Third Street, on the west side, from a point 275 feet north of Park Street to Center Street, no stopping or standing any time.

Third Street, on the west side, from Center Street to a point 570 feet south of Crocker Street, no stopping or standing any time.

Third Street, on the west side, from a point 110 feet south of Crocker Street to a point 460 feet south thereof, passenger loading and unloading only, 20 minute limit, 9:00 a.m. to 7:00 a.m.

Third Street, on the west side, from a point 110 feet south of Crocker Street to a point 460 feet south thereof, no parking 7:00 a.m. to 9:00 a.m.

Third Street, on the west side, from School Street to a point 110 feet south of Crocker Street, no parking any time.

Third Street, on the east side, from Watson Powell Jr Way to a point 65 feet north thereof, no parking any time.

Third Street, on the east side, from a point 65 feet north of Watson Powell Jr Way to a point 135 feet south of Center Street, no parking 7:00 a.m. to 9:00 a.m.

Third Street, on the east side, from Center Street to Park Street, no parking any time.

Third Street, on the east side, from Center Street to a point 120 feet north thereof, no parking any time.

Third Street, on the east side, from a point 120 feet north of Center Street to a point 150 feet north thereof, passenger loading and unloading only, 20 minute limit, 9:00 a.m. to 7:00 a.m.

Third Street, on the east side, from a point 120 feet north of Center Street to a point 150 feet north thereof, no parking 7:00 a.m. to 9:00 a.m.

Third Street, on the east side, from a point 270 feet north of Center Street to School Street, no parking any time.
(C62, § 30-727; O.8084, 8619; C75, § 27-741; O.9574; C79, § 27-741; C91, § 27-1585; O.11,650, 13,855, 14,404, 14,437, 14,580, 16,052)

Sec. 114-2609. Third Street—School Street to University Avenue.

Third Street, on both sides, from School Street to Laurel Street, no parking any time.
(C62, § 30-728; O.8084; C75, C79, § 27-742; O.9649; C85, § 27-742; O.10,784, 10,947; C91, § 27-1586; O.11,650, 14,855)

Sec. 114-2610. Third Street—University Avenue to Aurora Avenue.

Third Street, on the east side, from University Avenue to Forest Avenue, no parking any time.

Third Street, on the west side, from a point 50 feet south of Creighton Avenue to a point 50 feet north of Creighton Avenue, no parking any time.

Third Street, on the west side, from a point 50 feet south of Indiana Avenue to a point 50 feet north of Indiana Avenue, no parking any time.

Third Street, on the west side, from New York Avenue to a point 25 feet north thereof, no parking any time.

Third Street, on the east side, from New York Avenue to a point 50 feet north of Euclid Avenue, no parking any time.

Third Street, on the west side, from a point 200 feet north of New York Avenue to a point 100 feet north thereof, no parking any time.

Third Street, on the west side, from Euclid Avenue to a point 50 feet south thereof, no parking any time.

Third Street, on the west side, from Euclid Avenue to Aurora Avenue, no parking any time.
(C62, § 30-729; O.8084, 8098, 8878; C75, C79, § 27-743; O.9849, 10,018, 10,271, 10,476, 10,598; C91, § 27-1587; O.11,650, 13,724, 13,935)

Sec. 114-2611. East Third Street—East Court Avenue to Maple Street.

East Third Street, on the west side, from a point 100 feet north of East Court Avenue to a point 65 feet north thereof, no parking any time.

East Third Street, on the east side, from a point 290 feet north of East Court Avenue to a point 70 feet north thereof, no parking any time.
(C62, § 30-730; O.8084, 8539, 8586; C75, § 27-744; O.9001, 9292; C79, § 27-744; O.10,026, 10,418; C91, § 27-1588; O.11,650, 13,218, 13,529, 14,542, 14,653, 15,363, 15,736)

Sec. 114-2611.01. Reserved.

Editor's note—Ord. No. 16,370, § 1, adopted July 22, 2024, repealed § 114-2611.01, which pertained to East Third Street—East Court Avenue to Market Street and derived from Ord. No. 15,363.

Sec. 114-2612. Southeast Third Street—East Vine Street to East Army Post Road.

Southeast Third Street, on both sides, from East Vine Street to East Market Street, no parking any time.

Southeast Third Street, on the east side, from the dead end north of East Livingston Avenue to East Columbus Avenue, no parking any time.

Southeast Third Street, on the west side, from East Columbus Avenue to a point 75 feet north thereof, no parking any time.

Southeast Third Street, on the west side, from Hartford Avenue to East Gray Street, no parking any time.

Southeast Third Street, on the west side, from East Park Avenue to East Rose Avenue, no parking any time.

Southeast Third Street, on the west side, from East Rose Avenue to a point 50 feet south thereof, no parking any time.

Southeast Third Street, on the west side, from East Watrous Avenue to a point 50 feet north thereof, no parking any time.

Southeast Third Street, on the east side, from East Park Avenue to a point 75 feet south thereof, no parking any time.

Southeast Third Street, on the east side, from East Rose Avenue to a point 50 feet north thereof, no parking any time.

Southeast Third Street, on the east side, from East Rose to East Watrous Avenue, no parking any time.

Southeast Third Street, on the west side, from East Watrous Avenue to East Marion Street, no parking any time.

Southeast Third Street, on the east side, from East Leach Avenue to East Emma Avenue, no parking any time.

Southeast Third Street, on the west side, from a point 80 feet north of East Maxwelton Drive to a point 70 feet south of East Maxwelton Drive, no parking any time.

Southeast Third Street, on both sides, from East Emma Avenue to East McKinley Avenue, no parking any time.

Southeast Third Street, on the east side, from East Porter Avenue to East Army Post Road, no parking any time.

Southeast Third Street, on the west side, from East Army Post Road to a point 50 feet north thereof, no parking any time.
(C62, § 30-731; O.8084, 8661; C75, § 27-745; O.8979, 9009; C79, § 27-745; O.9849, 9886, 10,111, 10,402, 10,598; C85, § 27-745; O.10,848; C91, § 27-1589; O.11,650, 13,534, 13,724, 14,025, 14,053, 14,518 (installed 4/23/19, 12/18/19), 14,982, 15,590, 16,042, 16,171, 16,370)

Sec. 114-2613. Southeast Third Street—East Army Post Road to East Burnham Avenue.

Southeast Third Street, on the west side, from East Army Post Road to East Burnham Avenue, no parking any time.

Southeast Third Street, on the east side, from East Army Post Road to East Bundy Avenue, no parking any time.

Southeast Third Street, on the east side, from a point 50 feet north of East Burnham Avenue to East Burnham Avenue, no parking any time.
(C91, § 27-1589.05; O.13,160; C00, § 114-2613; O.14,255, 14,518 (installed 8/5/15), 15,415, 16,171, 16,546)

Sec. 114-2614. Southwest Third Street—Vine Street to Army Post Road.

Southwest Third Street, on the west side, from Vine Street to a point 15 feet south thereof, no parking any time.

Southwest Third Street, on the west side, from a point 80 feet south of Vine Street to vacated Market Street, no parking any time.

Southwest Third Street, on the east side, from Market Street to a point 32 feet north, no parking any time.

Southwest Third Street, on the west side, from a point 40 feet south of vacated Market Street to a point 12 feet south thereof, no parking any time.

Southwest Third Street, on the west side, from a point 72 feet south of vacated Market Street to West Martin Luther King Jr Parkway, no parking any time.

Southwest Third Street, on the west side, from West Martin Luther King Jr Parkway to Jackson Avenue, no parking any time.

Southwest Third Street, on the east side, from Market Street to Jackson Avenue, no parking any time.

Southwest Third Street, on the west side, from Thornton Avenue to Watrous Avenue, no parking any time.

Southwest Third Street, on the east side, from Maxwelton Drive to Herold Avenue, no parking any time.

Southwest Third Street, on the west side, from McKinley Avenue to a point 105 feet south thereof, no parking any time.

Southwest Third Street, on the west side, from Kenyon Avenue to Porter Avenue, no parking any time.

Southwest Third Street, on the east side, from Porter Avenue to Payton Avenue, no parking any time.

Southwest Third Street, on the west side, from Wall Avenue to a point 50 feet north thereof, no parking any time.

Southwest Third Street, on the west side, from Payton Avenue to Army Post Road, no parking any time.

Southwest Third Street, on the east side, from Army Post Road to a point 50 feet north thereof, no parking any time.

(C62, § 30-732; O.8084, 8231, 8262; C75, § 27-746; O.9209, 9572; C79, § 27-746; O.9849, 9886, 10,111, 10,418, 10,598; C85, § 27-746; O.11,089, 11,098, 11,412; C91, § 27-1590; O.11,650, 11,848, 11,951, 13,091, 13,103, 13,218, 13,375, 13,593; C00, § 114-2614; O.13,924, 14,437, 14,458, 14,506, 14,518 (installed 2/17/09), 15,621, 15,914, 16,171)

Sec. 114-2615. Fourth Street—Vine Street to Court Avenue.

Fourth Street, on the east side, from Vine Street to a point 20 feet north thereof, no parking any time.

Fourth Street, on the east side, from a point 20 feet north of Vine Street, to a point 45 feet north thereof, commercial loading zone.

Fourth Street, on the west side, from Vine Street to a point 35 feet north thereof, no parking any time.

Fourth Street, on the west side, from a point 35 feet north of Vine Street, to a point 60 feet north thereof, commercial loading zone.

(C85, § 27-747; O.10,894, 11,063, 11,098; C91, § 27-1591; O.11,650, 13,516, 13,613, 15,590)

Sec. 114-2616. Fourth Street—Court Avenue to Walnut Street.

Fourth Street, on both sides, from Court Avenue to a point 60 feet north thereof, no parking any time.

Fourth Street, on the west side, from a point 60 feet north of Court Avenue to a point 70 feet north thereof, loading zone.

Fourth Street, on the east side, from a point 160 feet north of Court Avenue to a point 75 feet north thereof, no parking any time.

Fourth Street, on the west side, from a point 245 feet north of Court Avenue to a point 90 feet north thereof, no parking any time.

Fourth Street, on the east side, from a point 235 feet north of Court Avenue to a point 50 feet north thereof, loading zone.

Fourth Street, on the west side, from Walnut Street to a point 27 feet south thereof, no parking any time.

Fourth Street, on the west side, from a point 134 feet south of Walnut Street to a point 15 feet south thereof, no parking any time.
(C62, § 30-734; O.8084, 8122, 8152; C75, § 27-748; O.9595; C79, § 27-748; O.9971, 10,141, 10,309, 10,582; C85, § 27-748; O.10,894; C91, § 27-1592; O.11,650, 13,239, 13,762, 15,025, 15,172)

Sec. 114-2617. Fourth Street—Locust Street to Grand Avenue.

Fourth Street, on the west side, from Locust Street to a point 120 feet north thereof, loading zone.

Fourth Street, on the west side, from Grand Avenue to a point 180 feet south thereof, no parking any time.

Fourth Street, on the east side, from Locust Street to a point 60 feet north thereof, no parking from here to corner.

Fourth Street, on the east side, from a point 145 feet north of Locust Street to Grand Avenue, no parking any time.
(C62, § 30-736; O.8084; C75, § 27-750; O.9518, 9595, C79, § 27-750; O.9657, 10,734; C91, § 27-1593; O.11,650, 11,724, 11,891; C00, § 114-2617; O.14,518 (installed 9/17/21), 16,171)

Sec. 114-2618. Fourth Street—Grand Avenue to Watson Powell Jr Way.

Fourth Street, on the west side, from Grand Avenue to a point 50 feet north thereof, no parking any time.

Fourth Street, on the west side, from a point 50 feet north of Grand Avenue to a point 25 feet north thereof, commercial loading zone.

Fourth Street, on the west side, from a point 50 feet south of Watson Powell Jr Way to a point 35 feet south thereof, loading zone.
(C62, § 30-737; O.8084; C75, § 27-751; O.9405, 9593; C79, § 27-751; O.10,126; C91, § 27-1594; O.11,650, 11,848, 13,855, 15,776, 16,484)

Sec. 114-2619. Fourth Street—Watson Powell Jr Way to Park Street.

Fourth Street, on the east side, from Watson Powell Jr Way to a point 150 feet north thereof, no parking any time.

Fourth Street, on the west side, from Park Street to a point 38 feet south thereof, no parking any time.

Fourth Street, on both sides, from Park Street to the dead end north, no parking any time.
(C62, § 30-738; O.8084, 8204; C75, § 27-752; O.9227, 9595; C79, § 27-752; O.10,734; C91, § 27-1595; O.11,650, 13,855, 14,322, 14,437)

Sec. 114-2620. Reserved.

Editor's note—Ord. No. 14,437, § 1, adopted April 25, 2005, repealed § 114-2620, which pertained to Fourth Street—Park Street to Center Street and derived from Code 1962, § 30-739; Ord. No. 8084; Code 1975; Code 1979; Code 1985, § 27-753; Ord. No. 10,768; Ord. No. 10,947; Ord. No. 11,041; Code 1991, § 27-1596; and Ord. No. 11,650.

Sec. 114-2621. Fourth Street—Center Street to Aurora Avenue.

Fourth Street, on the east side, from University Avenue to Forest Avenue, no parking any time.

Fourth Street, on the east side, from Clark Street to a point 100 feet north thereof, no parking any time.

Fourth Street, on the west side, from a point 50 feet south of Indiana Avenue to a point 50 feet north of Indiana Avenue, no parking any time.

Fourth Street, on the west side, from Forest Avenue to Orchard Avenue, no parking any time.

Fourth Street, on the east side, from Orchard Avenue to College Avenue, no parking any time.

Fourth Street, on the west side, from New York Avenue to Aurora Avenue, no parking any time.

Fourth Street, on the east side, from Euclid Avenue to a point 50 feet south thereof, no parking any time.

Fourth Street, on the east side, from Euclid Avenue to a point 210 feet north thereof, no parking any time.

Fourth Street, on the east side, from Aurora Avenue to a point 60 feet south thereof, no parking any time.
(C62, § 30-740; O.8084, 8387, 8417; C75, § 27-754; O.9080, 9524; C79, § 27-754; O.10,111, 10,271, 10,598; C91, § 27-1597; O.11,650, 14,250, 14,437)

Sec. 114-2622. East Fourth Street—East Vine Street to Maple Street.

East Fourth Street, on the east side, from East Vine Street to East Court Avenue, no parking any time.

East Fourth Street, on the west side, from East Walnut Street to a point 220 feet south thereof, no parking any time.

East Fourth Street, on the west side, from East Walnut Street to a point 50 feet north thereof, no parking any time.

East Fourth Street, on the west side, from East Locust Street to a point 30 feet north thereof, no parking any time.

East Fourth Street, on the west side, from a point 100 feet north of East Locust Street to a point 40 feet north thereof, commercial loading zone.

East Fourth Street, on the west side, from East Grand Avenue to a point 25 feet south thereof, no parking any time.

East Fourth Street, on the east side, from East Locust Street to a point 25 feet north thereof, no parking any time.

East Fourth Street, on the east side, from a point 115 feet north of East Locust Street to East Grand Avenue, no parking any time.

East Fourth Street, on both sides, from a point 50 feet north of East Grand Avenue to a point 50 feet south thereof, no parking any time.

East Fourth Street, on both sides, from a point 50 feet south of Des Moines Street to Des Moines Street, no parking any time.

East Fourth Street, on the east side, from Des Moines Street to a point 50 feet north thereof, no parking any time.

East Fourth Street, on the east side, from a point 200 feet north of Des Moines Street to a point 90 feet north thereof, no parking any time.

East Fourth Street, on the west side, from Des Moines Street to a point 740 feet north thereof, no parking any time.

East Fourth Street, on the west side, from a point 880 feet north of Des Moines Street to Maple Street, no parking any time.
(C85, § 27-754.01; O.11,315; C91, § 27-1598; O.11,650, 13,162, 13,268, 14,371, 14,855, 14,923, 15,338, 15,369, 15,723)

Sec. 114-2623. Southeast Fourth Court—East Park Avenue to dead end south of East Trowbridge Street.

Southeast Fourth Court, on the west side, from East Park Avenue to a point 500 feet south thereof, and any part of the cul-de-sac, no parking any time.

Southeast Fourth Court, on the east side, from East Leach Avenue to a point 120 feet south of East Trowbridge Street and any part of the cul-de-sac, no parking any time.
(C79, § 27-754.02; O.9886, 10,111; C91, § 27-1599; O.11,650)

Sec. 114-2624. Southeast Fourth Street—East Vine Street to East Army Post Road.

Southeast Fourth Street, on the west side, from East Market Street to a point 105 feet south thereof, no parking any time.

Southeast Fourth Street, on the west side, from a point 105 feet south of East Market Street to 160 feet south thereof, no parking 7:00 a.m. to 6:00 p.m.

Southeast Fourth Street, on the west side, from a point 265 feet south of East Market Street to East Elm Street, no parking any time.

East Fourth Street, on the east side, from East Market Street to a point 30 feet south thereof, no parking any time.

East Fourth Street, on the east side, from a point 30 feet south of East Market Street to a point 125 feet south thereof, no parking 7:00 a.m. to 6:00 p.m.

East Fourth Street, on the east side, from a point 155 feet south of East Market Street to East Elm Street, no parking any time.

Southeast Fourth Street, on both sides, from Martin Luther King Jr. Parkway to Scott Avenue, no parking any time.

Southeast Fourth Street, on the west side, from East Livingston Avenue to East Hillside Avenue, no parking any time.

Southeast Fourth Street, on the east side, from East Jackson Avenue to a point 75 feet north thereof, no parking any time.

Southeast Fourth Street, on the east side, from East Edison Avenue to a point 80 feet south thereof, no parking any time.

Southeast Fourth Street, on the west side, from East Park Avenue to East Miller Avenue, no parking any time.

Southeast Fourth Street, on the east side, from East Trowbridge Street to a point 120 feet south and any part of the cul-de-sac, no parking any time.

Southeast Fourth Street, on the west side, from East Philip Street to East McKinley Avenue, no parking Fridays 8:00 a.m. to 4:30 p.m.

Southeast Fourth Street, on both sides, from East McKinley Avenue to a point 75 feet north thereof, no parking any time.

Southeast Fourth Street, on the west side, from Wilmers Avenue to Scandia Avenue, no parking any time.

Southeast Fourth Street, on the west side, from East Porter Avenue to East Army Post Road, no parking any time.

Southeast Fourth Street, on the east side, from East Army Post Road to a point 50 feet north thereof, no parking any time.
(C62, § 30-741; O.8084, 8468; C75, § 27-755; O.9308; C79, § 27-755; O.9849, 9886, 10,111,

10,399, 10,434, 10,598; C85, § 27-755; O.10,756; C91, § 27-1600; O.11,650, 13,339, 13,973, 14,476, 14,861, 14,886, 14,982, 16,042, 16,293)

Sec. 114-2624.01. Southeast Fourth Street—Army Post Road to East County Line Road.

Southeast Fourth Street, from Burnham Avenue south and any part of the cul-de-sac, no parking any time.
(O.14,348)

Sec. 114-2625. Southwest Fourth Street—Vine Street to Leland Avenue.

Southwest Fourth Street, on the east side, from Vine Street to a point 40 feet south thereof, no parking any time.

Southwest Fourth Street, on the west side, from Vine Street to a point 50 feet south thereof, commercial loading zone.

Southwest Fourth Street, on the west side, from Market Street to a point 25 feet north thereof, no parking any time.

Southwest Fourth Street, on the west side, from Thornton Avenue to Watrous Avenue, no parking any time.

Southwest Fourth Street, on the east side, from a point 50 feet north of Rose Avenue to a point 50 feet south of Rose Avenue, no parking any time.

Southwest Fourth Street, on the west side, from a point 500 feet south of Wall Avenue to Diehl Avenue, no parking any time.
(C62, § 30-741.01; O.8619; C75, § 27-755.01; O.9068, 9458, 9572; C79, § 27-755.01; O.9849, 9935, 10,111; C85, § 27-755.01, O.11,199; C91, § 27-1601; O.11,650, 11,951, 13,306, 13,924, 14,437, 14,458, 15,790)

Sec. 114-2626. Southwest Fourth Place—Loomis Avenue to dead end south.

Southwest Fourth Place, on the west side, from Loomis Avenue to a point 150 feet south thereof, no parking any time.
(C79, § 27-755.02; O.10,111; C91, § 27-1602; O.11,650)

Sec. 114-2627. Fifth Avenue—Vine Street to Mulberry Street.

Fifth Avenue, on the east side, from Vine Street to Mulberry Street, no parking any time.

Fifth Avenue, on the west side, from Cherry Street to a point 275 feet south thereof, no parking any time.

Fifth Avenue, on the west side, from a point 105 feet north of Cherry Street to a point 25 feet north thereof, no parking any time.
(C62, § 30-742; O.8084; C75, § 27-756; O.9566; C79, § 27-756; O.10,040; C85, § 27-756; O.10,971; C91, § 27-1603; O.11,650, 15,803)

Sec. 114-2628. Reserved.

Editor's note—Ord. No. 15,803, § 1, adopted Sept. 23, 2019, repealed § 114-2628, which pertained to Fifth Avenue—Wagner Street to Mulberry Street and derived from Code 1962, § 30-743; Ord. No. 8084; Code 1975; Code 1979, § 27-757; Code 1985, § 27-757; Ord. No. 10,840; Ord. No. 11,248; Code 1991, § 27-1604; Ord. No. 11,650; Ord. No. 11,891; Ord. No. 14,304; Ord. No. 15,295; Ord. No. 15,964.

Sec. 114-2629. Fifth Avenue—Court Avenue to Walnut Street.

Fifth Avenue, on the east side, from Mulberry Street to Walnut Street, no parking any time.

Fifth Avenue, on the west side, from a point 90 feet south of Mulberry Street to a point 15 feet south thereof, no parking any time.

Fifth Avenue, on the west side, from Mulberry Street to Walnut Street, no parking any time.
(C62, § 30-744; O.8084, 8904; C75, C79, § 27-758; O.10,008, 10,734; C85, § 27-758; O.10,925; 10,978; C91, § 27-1605; O.11,650, 13,705, 14,615, 15,295, 15,974, 16,245)

Sec. 114-2630. Fifth Avenue—Walnut Street to Locust Street.

Fifth Avenue, on the east side, (northbound frontage street), from Walnut Street to a point 125 feet north thereof, loading zone, 8:00 a.m. to 6:00 p.m. No stopping 6:00 p.m. to 8:00 a.m.

Fifth Avenue, on the east side, (northbound frontage street), from a point 125 feet north of Walnut Street to Locust Street, no parking any time.

Fifth Avenue, on the west side (northbound frontage street), from Walnut Street to Locust Street, no parking any time.

Fifth Avenue, on the west side from Walnut Street to Locust Street, no parking any time.
(C62, § 30-745; O.8084; C75, § 27-759; O.9292, 9595; C79, § 27-759; O.9911, 10,342, 10,557, 10,734; C85, § 27-759; O.10,925, 10,978, 11,136; C91, § 27-1606; O.11,650, 13,456, 13,705, 14,901, 14,910, 15,079, 15,147, 15,295, 16,245)

Sec. 114-2631. Fifth Avenue—Locust Street to Grand Avenue.

Fifth Avenue, on the east side, from a point 25 feet south of Grand Avenue to a point 35 feet south thereof, loading zone.

Fifth Avenue, on the west side, from Locust Avenue to Grand Avenue, no parking any time.

Fifth Avenue, on the west side, from Locust Street to Grand Avenue, no parking any time.
(C62, § 30-746; O.8084; C75, § 27-760; O.9292, 9595, C79, § 27-760; O.9724, 10,734; C91, § 27-1607; O.11,650, 13,282, 13,600, 14,615, 14,635, 15,079, 15,113, 15,125, 16,245)

Sec. 114-2632. Fifth Avenue—Grand Avenue to Watson Powell Jr Way.

Fifth Avenue, on the east side, from Grand Avenue to a point 100 feet north thereof, no parking any time.

Fifth Avenue, on the east side, from a point 212 feet south of Watson Powell Jr Way to a point 21 feet south thereof, loading zone.

Fifth Avenue, on the east side, from a point 185 feet north of Grand Avenue to a point 130 feet north thereof, no parking any time.

Fifth Avenue, on the west side, from Grand Avenue to a point 150 feet north thereof, no parking any time.

Fifth Avenue, on the west side, from Watson Powell Jr Way to a point 30 feet south thereof, no parking any time.

Fifth Avenue, on the east side, from Watson Powell Jr Way to a point 40 feet south thereof, no parking any time.
(C62, § 30-747; O.8084, 8731; C75, § 27-761; O.9227; C79, § 27-761; O.9971, 10,734; C91, § 27-1608; O.11,650, 13,339, 13,482, 13,705, 13,855, 14,197, 14,338, 14,855, 15,295)

Sec. 114-2633. Fifth Avenue—Watson Powell Jr Way to School Street.

Fifth Avenue, on the east side, from Watson Powell Jr Way to a point 30 feet north thereof, no parking any time.

Fifth Avenue, on the west side, from Watson Powell Jr Way to a point 55 feet north thereof, no parking any time.

Fifth Avenue, on the east side, from a point 120 feet north of Watson Powell Jr Way to a point 30 feet north thereof, commercial loading zone.

Fifth Avenue, on both sides, from Park Street to a point 20 feet north thereof, no parking any time.

Fifth Avenue, on the east side, from Park Street to a point 55 feet south thereof, no parking any time.

Fifth Avenue, on the east side, from Center Street to a point 50 feet north thereof, no parking any time.

Fifth Avenue, on the west side, from Center Street to a point 20 feet south thereof, no parking any time.

Fifth Avenue, on the west side, from Crocker Street to a point 40 feet south thereof, no parking any time.

Fifth Avenue, on the east side, from a point 50 feet north of Center Street to a point 380 feet north thereof, passenger loading and unloading only, 10 minutes.

Fifth Avenue, on the east side, from 430 feet north of Center Street to Crocker Street, no parking any time.

Fifth Avenue, on the west side, from School Street to Crocker Street, no parking any time.

Fifth Avenue, on the east side, from Center Street to a point 40 feet south thereof, no parking any time.

Fifth Avenue, on the west side, from Center Street to a point 100 feet north thereof, no parking any time.

Fifth Avenue, on the east side, from Crocker Street to School Street, no parking any time.
(C62, § 30-748; O.8084, 8389, 8731; C75, C79, § 27-762; O.10,734; C91, § 27-1609; O.11,650, 13,855, 14,110, 14,437, 14,855, 15,113, 15,295, 15,577, 15,803, 16,218)

Sec. 114-2634. Fifth Avenue—School Street to Aurora Avenue.

Fifth Avenue, on both sides, from School Street to Day Street, no parking any time.

Fifth Avenue, on both sides, from Laurel Street to a point 240 feet south thereof, no parking any time.

Fifth Avenue, on the west side, from University Avenue to Clark Street, no parking any time.

Fifth Avenue, on the east side, from a point 50 feet south of Indiana Avenue to a point 50 feet north of Indiana Avenue, no parking any time.

Fifth Avenue, on the east side, from the north curbline of the diagonal section of Forest Avenue to a point 75 feet south of Orchard Avenue, no parking any time.

Fifth Avenue, on the east side, from Clark Street to College Avenue, no parking any time.

Fifth Avenue, on the east side, from a point 120 feet south of Corning Avenue to a point 75 feet south thereof, no parking any time.

Fifth Avenue, on the west side, from a point 50 feet south of Denver Avenue to a point 50 feet north of Denver Avenue, no parking any time.

Fifth Avenue, on the east side, from Corning Avenue to Ovid Avenue, no parking any time.

Fifth Avenue, on the west side, from a point 148 feet south of Corning Avenue to a point 45 feet south thereof, no parking 7:00 a.m. to 6:00 p.m., Monday through Friday.

Fifth Avenue, on the west side, from Ovid Avenue to a point 50 feet south thereof, no parking any time.

Fifth Avenue, on the west side, from Ovid Avenue to Aurora Avenue, no parking any time.

Fifth Avenue, on the east side, from Euclid Avenue to a point 145 feet south thereof, no parking any time.

Fifth Avenue, on the east side, from Euclid Avenue to a point 40 feet north thereof, no parking any time.

Fifth Avenue, on the east side, from a point 40 feet north of Euclid Avenue to a point 40 feet north thereof, commercial loading zone.
(C62, § 30-749; O.8084, 8098, 8108, 8124, 8152, 8453, 8798, 8878; C75, § 27-763; O.9330, 9357, 9607; C79, § 27-763; O.9640, 9708, 9849, 10,018, 10,271, 10,309; C85, § 27-763; O.11,412, 11,451, 11,480; C91, § 27-1610; O.11,650, 13,425; C00, § 114-2634; O.14,518 (installed 12/4/14, 9/4/18), 16,171)

Sec. 114-2635. East Fifth Street—East Walnut Street to Lyon Street.

East Fifth Street, on the east side, from East Locust Street to a point 60 feet south thereof, commercial loading zone.

East Fifth Street, on the east side, from East Walnut Street to a point 95 feet north thereof, commercial loading zone.

East Fifth Street, on the west side, from East Locust Street to a point 25 feet north thereof, no parking any time.

East Fifth Street, on the west side, from East Grand Avenue to a point 15 feet south thereof, no parking any time.

East Fifth Street, on the east side, from East Grand Avenue to a point 40 feet south thereof, no parking any time.

East Fifth Street, on the east side, from a point 95 feet north of East Locust Street to a point 45 feet north thereof, loading zone.

East Fifth Street, on the east side, from East Locust Street to a point 25 feet north thereof, no parking any time.

East Fifth Street, on the west side, from East Grand Avenue to a point 50 feet north thereof, no parking any time.

East Fifth Street, on the west side, from a point 75 feet south of Des Moines Street to a point 25 feet south thereof, no parking any time.

East Fifth Street, on the east side, from Des Moines Street to a point 50 feet south thereof, no parking any time.

East Fifth Street, on the east side, from a point 50 feet south of Des Moines Street to a point 50 feet south thereof, passenger loading and unloading.

East Fifth Street, on both sides, from Des Moines Street to a point 50 feet north thereof, no parking any time.

East Fifth Street, on the west side, from Lyon Street to a point 175 feet south thereof, no parking any time.

East Fifth Street, on the east side, from Lyon Street to a point 50 feet south thereof, no parking any time.
(C62, § 30-751; O.8084, 8167, 8891, C75, § 27-765; O.9267, 9292; C79, § 27-765; O.9658, 10,126, 10,272, 10,399, 10,418, 10,476; C85, § 27-765, O.11,278, 11,516, 11,522; C91, § 27-1611; O.11,650, 13,306, 13,516, 13,997, 14,901, 15,287, 15,363, 15,426, 16,042)

Sec. 114-2636. Southeast Fifth Street—East Vine Street to East County Line Road.

Southeast Fifth Street, on the west side, from East Market Street to East Elm Street, parking for city vehicles only.

Southeast Fifth Street, on the west side, from East Elm Street to Shaw Street, no parking any time.

Southeast Fifth Street, on the east side, from a point 75 feet south of East Elm Street to a point 85 feet south thereof, no parking any time.

Southeast Fifth Street, on the east side, from a point 35 feet north of Raccoon Street to a point 35 feet south of Raccoon Street, no parking any time.

Southeast Fifth Street, on the east side, from a point 40 feet north of Shaw Street to Shaw Street, no parking any time.

Southeast Fifth Street, on the east side, from East Livingston Avenue to East Jackson Avenue, no parking any time.

Southeast Fifth Street, on the west side, from a point 110 feet south of Livingston Avenue to a point 80 feet south thereof, no parking any time.

Southeast Fifth Street, on both sides, from East Jackson Avenue to East Granger Avenue, no stopping or standing.

Southeast Fifth Street, on both sides, from Hartford Avenue to East Bell Avenue, no parking any time.

Southeast Fifth Street, on the east side, from East Bell Avenue to a point 50 feet south thereof, no parking any time.

Southeast Fifth Street, on the west side, from East Bell Avenue to Indianola Avenue, no parking any time.

Southeast Fifth Street, on both sides, from Indianola Avenue to East Park Avenue, no parking any time.

Southeast Fifth Street, on the east side, from East Park Avenue to East Army Post Road, no parking any time.

Southeast Fifth Street, on the west side, from East Park Avenue to East Rose Avenue, no parking 7:00 a.m. to 6:00 p.m., Monday through Friday.

Southeast Fifth Street, on the west side, from East Rose Avenue to East Watrous Avenue, no parking any time.

Southeast Fifth Street, on the west side, from East Watrous Avenue to a point 75 feet south thereof, no parking any time.

Southeast Fifth Street, on the west side, from Trowbridge Street to Wilmers Avenue, no parking any time.

Southeast Fifth Street, on the west side, from East Leland Avenue to East Army Post Road, no parking any time.

Southeast Fifth Street, on both sides, from East Army Post Road to a point 50 feet south thereof, no parking any time.
(C62, § 30-752; O.8084, 8310; C75, § 27-766; O.8891, 9190, 9235, 9308, 9513, 9541; C79, § 27-766; O.9628, 9849, 9971, 10,035, 10,316, 10,342, 10,399, 10,598; C85, § 27-766; O.10,885, 10,932, 10,971, 11,208, 11,591; C91, § 27-1612; O.11,650, 11,724, 11,913; C00, § 114-2636; O.13,893, 13,954, 14,057, 14,518 (installed 6/30/20, 12/22/21), 15,021, 15,049, 16,171)

Sec. 114-2637. Southwest Fifth Place—Porter Avenue to dead end south.

Southwest Fifth Place, on the west side, from Porter Avenue to a point 300 feet south on any part of the cul-de-sac, no parking any time.
(C79, § 27-766.01; O.9849; C91, § 27-1613; O.11,650)

Sec. 114-2638. Southwest Fifth Street—Vine Street to Army Post Road.

Southwest Fifth Street, on the west side, from Vine Street to a point 30 feet south thereof, no parking any time.

Southwest Fifth Street, on the west side, from a point 100 feet south of Vine Street to a point 30 feet south thereof, commercial loading zone.

Southwest Fifth Street, on the west side, from a point 130 feet south of Vine Street to West Martin Luther King Jr Parkway, no parking any time.

Southwest Fifth Street, on the east side, from Vine Street to West Martin Luther King Jr Parkway, no parking any time.

Southwest Fifth Street, on the east side, from West Martin Luther King Jr Parkway to a point 130 feet south thereof, no parking any time.

Southwest Fifth Street, on the east side, from a point 130 feet south of West Martin Luther King Jr Parkway to a point 180 feet south thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Southwest Fifth Street, on the east side, from a point 310 feet south of West Martin Luther King Jr Parkway to a point 85 feet south thereof, no parking Monday to Friday, 7:00 a.m. to 6:00 p.m.

Southwest Fifth Street, on the east side, from a point 395 feet south of West Martin Luther King Jr Parkway to Tuttle Street, two-hour parking, 9:00 a.m. to 4:00 p.m.

Southwest Fifth Street, on the west side, from West Martin Luther King Jr Parkway to a point 60 feet south thereof, no parking any time.

Southwest Fifth Street, on the west side, from a point 60 feet south of West Martin Luther King Jr Parkway to a point 90 feet north of Tuttle Street, two hour parking.

Southwest Fifth Street, on the west side, from a point 40 feet north of Tuttle Street to a point 50 feet north thereof, loading zone, no parking any time.

Southwest Fifth Street, on the west side, from a point 40 feet north of Tuttle Street to a point 50 feet south of Tuttle Street, no parking any time.

Southwest Fifth Street, on the east side, from Tuttle Street to a point 250 feet south thereof, no parking any time.

Southwest Fifth Street, on the west side, from a point 50 feet north of Murphy Street to a point 50 feet south of Murphy Street, no parking any time.

Southwest Fifth Street, on both sides, from Broad Street to Virginia Street, no parking any time.

Southwest Fifth Street, on the east side, from Virginia Street to Pleasant View Drive, no parking any time.

Southwest Fifth Street, on the east side, from a point 400 feet north of Park Avenue to Hughes Avenue, no parking any time.

Southwest Fifth Street, on the east side, from Caulder Avenue to Thornton Street, no parking any time.

Southwest Fifth Street, on the west side, from Caulder Avenue to a point 80 feet south thereof, no parking any time.

Southwest Fifth Street, on the west side, from Watrous Avenue to Philip Street, no parking any time.

Southwest Fifth Street, on the east side, from Philip Street to a point 50 feet south of McKinley Avenue, no parking any time.

Southwest Fifth Street, on the west side, from McKinley Avenue to a point 50 feet north thereof, no parking any time.

Southwest Fifth Street, on the west side, from McKinley Avenue to Titus Avenue, no parking any time.

Southwest Fifth Street, on the west side, from Emma Avenue to a point 80 feet north thereof, no parking any time.

Southwest Fifth Street, on the east side, from Kenyon Avenue to Cutler Avenue, no parking any time.

Southwest Fifth Street, on the east side, from Wall Avenue to Army Post Road, no parking any time.

Southwest Fifth Street, on the west side, from Army Post Road to a point 50 feet north thereof, no parking any time.
(C62, § 30-753; O.8084, 8510; C75, § 27-767; O.9209, 9267, 9389, 9503, 9566; C79, § 27-767; O.9849, 9886, 10,040, 10,111, 10,386, 10,407, 10,418, 10,598; C85, § 27-767; O.10,872, 10,913, 11,208, 11,278, 11,600; C91, § 27-1614; O.11,650, 11,660, 11,951, 11,982, 13,076, 13,102, 13,239, 13,760; C00, § 114-2638; O.13,997, 14,348, 14,458, 14,518 (installed 6/14/12), 15,295, 15,577, 15,614, 15,665, 15,790, 15,934, 16,171, 16,418)

Sec. 114-2639. Sixth Avenue—Cherry Street to Mulberry Street.

Sixth Avenue, on the west side, from Cherry Street to a point 20 feet north thereof, no parking any time.

Sixth Avenue, on the west side, from a point 20 feet north of Cherry Street to a point 125 feet north thereof, official marked police vehicles only, Monday through Friday, 7:00 a.m. to 5:00 p.m.
(C62, § 30-755; O.8084, 8712, 8904; C75, § 27-769; O.8974, 9405, 9595; C79, § 27-769; O.9724, 10,381, 10,407, 10,434, 10,734; C85, § 27-769; O.10,918, 11,600; C91, § 27-1615; O.11,650, 14,025, 14,071, 15,197, 15,295, 15,776, 15,868)

Sec. 114-2640. Sixth Avenue—Mulberry Street to Walnut Street.

Sixth Avenue, on the east side, from Mulberry Street to a point 85 feet north thereof, no parking anytime.

Sixth Avenue, on the east side, from a point 85 feet north of Mulberry Street to a point 55 feet north thereof, no parking 7:00 a.m. to 9:00 a.m. and 4:00 p.m. to 6:00 p.m.

Sixth Avenue, on the east side, from a point 140 feet north of Mulberry Street to Walnut Street, no parking any time.

Sixth Avenue, on the west side, from Mulberry Street to a point 100 feet north thereof, loading zone.

Sixth Avenue, on the west side, from 200 feet north of Mulberry Street to a point 45 feet north thereof, commercial loading zone.
(C62, § 30-756; O.8084, 8120; C75, § 27-770; O.9595; C79, § 27-770; O.9803, 9859, 10,734; C91, § 27-1616; O.11,650, 13,705, 14,336, 15,577, 15,926, 15,943)

Sec. 114-2640.5. Reserved.

Editor's note—Ord. No. 15,943, § 1, adopted Nov. 23, 2020, repealed § 114-2640.5, which pertained to Sixth Avenue—Vine Street to Cherry Street and derived from Ord. No. 13,773; Ord. No. 13,972; Ord. No. 14,388; Ord. No. 15,295.

Sec. 114-2641. Sixth Avenue—Walnut Street to Locust Street.

Sixth Avenue, on the east side, from Walnut Street to a point 135 feet north thereof, no parking 7:00 a.m. to 9:00 a.m. and 4:00 p.m. to 6:00 p.m. Monday through Friday.

Sixth Avenue, on the east side, from a point 135 feet north of Walnut Street to Locust Street, no parking 7:00 a.m. to 6:00 p.m. Monday through Friday.

Sixth Avenue, on the west side, from a point 120 feet north of Walnut Street to a point 20 feet north thereof, commercial loading zone.
(C62, § 30-757; O.8084, 8120; C75, § 27-771; O.9595; C79, § 27-771; O.9803, 9859, 10,272, 10,734; C85, § 27-771; O.11,600; C91, § 27-1617; O.11,650, 11,891, 13,678, 13,697, 13,705, 14,280, 14,336, 14,653, 14,662, 15,306, 15,577)

Sec. 114-2642. Sixth Avenue—Locust Street to Grand Avenue.

Sixth Avenue, on the east side, from Locust Street to Grand Avenue, no parking 7:00 a.m. to 9:00 a.m. and 4:00 p.m. to 6:00 p.m.

Sixth Avenue, on the east side, from a point 70 feet north of Locust Street to a point 80 feet north thereof, commercial loading zone.

Sixth Avenue, on the east side, from Grand Ave to a point 35 feet south thereof, no parking, any time.

Sixth Avenue, on the west side, from a point 100 feet north of Locust Street to a point 100 feet north thereof, loading zone.

Sixth Avenue, on the west side, from a point 200 feet north of Locust Street to Grand Avenue, no parking 7:00 a.m. to 6:00 p.m., Monday through Friday.
(C62, § 30-758; O.8084, 8120; C75, § 27-772; O.9146, 9254, 9595; C79, § 27-772; O.9719, 9803, 10,057, 10,085; C91, § 27-1618; O.11,650, 13,705, 14,941, 14,987, 16,182)

Sec. 114-2643. Sixth Avenue—Grand Avenue to High Street.

Sixth Avenue, on the east side, from Grand Avenue to a point 130 feet north thereof, no parking any time.

Sixth Avenue, on the east side, from a point 130 feet north of Grand Avenue to High Street, no parking 7:00 a.m. to 9:00 a.m. and 4:00 p.m. to 6:00 p.m.

Sixth Avenue, on the west side, from Grand Avenue to High Street, no parking 4:00 p.m. to 6:00 p.m.
(C62, § 30-759; O.8084, 8120, 8614; C75, C79, § 27-773; C91, § 27-1619; O.11,650, 13,705, 16,182, 16,203)

Sec. 114-2644. Sixth Avenue—High Street to Watson Powell Jr Way.

Sixth Avenue, on the east side, from High Street to a point 70 feet north thereof, no parking 7:00 a.m. to 9:00 a.m. and 4:00 p.m. to 6:00 p.m.

Sixth Avenue, on the west side, from High Street to a point 30 feet south of Watson Powell Jr Way, no parking 4:00 p.m. to 6:00 p.m.

Sixth Avenue, on the west side, from Watson Powell Jr Way to a point 30 feet south thereof, no parking any time.

Sixth Avenue, on the east side, from a point 70 feet north of High Street to a point 140 feet south of Watson Powell Jr Way, no parking 7:00 a.m. to 6:00 p.m., Monday through Friday.

Sixth Avenue, on the east side, from Watson Powell Jr Way to a point 140 feet south thereof, no parking 7:00 a.m. to 9:00 a.m. and 4:00 p.m. to 6:00 p.m.
(C62, § 30-760; O.8084, 8120, 8614, 8731; C75, § 27-774; O.9429; C79, § 27-774; C91, § 27-1620; O.11,650, 13,193, 13,705, 13,855, 16,045)

Sec. 114-2645. Sixth Avenue—Watson Powell Jr Way to Crocker Street.

Sixth Avenue, on the east side, from Watson Powell Jr Way to Park Street, no parking Monday through Saturday.

Sixth Avenue, on the west side, from Watson Powell Jr Way to a point 30 feet north thereof, no parking any time.

Sixth Avenue, on the west side, from a point 30 feet north of Watson Powell Jr Way to a point 150 feet north of Park Street, no parking 4:00 p.m. to 6:00 p.m.

Sixth Avenue, on the east side, from Center Street to a point 40 feet south thereof, no parking any time.

Sixth Avenue, on the west side, from a point 150 feet north of Park Street to a point 80 feet north thereof, no parking any time.

Sixth Avenue, on the west side, from a point 230 feet north of Park Street to a point 75 feet north thereof, no parking 4:00 p.m. to 6:00 p.m.

Sixth Avenue, on the west side, from Center Street to Crocker Street, no parking any time.

Sixth Avenue, on the west side, from Center Street to a point 60 feet south of Crocker Street, no parking 4:00 p.m. to 6:00 p.m.

Sixth Avenue, on the east side, from Center Street to a point 535 feet north thereof, two-hour parking, 9:00 a.m. to 4:00 p.m.

Sixth Avenue, on the east side, from Park Street to a point 210 feet north thereof, no parking 4:00 p.m. to 6:00 p.m.

Sixth Avenue, on the east side, from a point 210 feet north of Park Street to a point 25 feet north thereof, no parking any time.

Sixth Avenue, on the east side, from a point 235 feet north of Park Street to a point 40 feet south of Center Street, no parking 4:00 p.m. to 6:00 p.m.

Sixth Avenue, on the east side, from Center Street to a point 90 feet south of Crocker Street, no parking 4:00 p.m. to 6:00 p.m.

Sixth Avenue, on the west side, from Center Street to a point 55 feet south thereof, no parking any time.

Sixth Avenue, on the west side, from Crocker Street to a point 60 feet south thereof, no parking any time.

Sixth Avenue, on the east side, from Crocker Street to a point 90 feet south thereof, no parking any time.

(C62, § 30-761; O.8084, 8404, 8661, 8731; C75, § 27-775; O.9068, 9227, C79, § 27-775; O.9714, 10,734; C91, § 27-1621; O.11,650, 12,060, 13,673, 13,726, 13,855)

Sec. 114-2646. Sixth Avenue—Crocker Street to University Avenue.

Sixth Avenue, on the west side, from Crocker Street to a point 200 feet south of School Street, no parking 4:00 p.m. to 6:00 p.m.

Sixth Avenue, on the west side, from a point 240 feet north of Crocker Street to a point 70 feet north, thereof, loading zone.

Sixth Avenue, on the west side, from School Street to a point 200 feet south thereof, no parking any time.

Sixth Avenue, on the east side, from Crocker Street to a point 150 feet south of School Street, no parking 4:00 p.m. to 6:00 p.m.

Sixth Avenue, on the east side, from School Street to a point 150 feet south thereof, no parking any time.

Sixth Avenue, on both sides, from School Street to Day Street, no parking any time.

Sixth Avenue, on the east side, from Day Street to University Avenue, no parking any time.

Sixth Avenue, on the west side, from a point 115 feet north of Day Street to a point 50 feet north thereof, no parking any time.

Sixth Avenue, on the west side, from Laurel Street to a point 50 feet south thereof, no parking any time.

Sixth Avenue, on the west side, from University Avenue to a point 290 feet south of Ascension Street, no parking any time.

(C62, § 30-762; O.8084, 8355, 8404; C75, C79, § 27-776; C91, § 27-1622; O.11,650, 13,415, 13,673, 14,421, 15,670)

Sec. 114-2647. Sixth Avenue—University Avenue to Forest Avenue.

Sixth Avenue, on the west side, from University Avenue to Forest Avenue, no parking any time.

Sixth Avenue, on the east side, from University Avenue to a point 170 feet north of Indiana Avenue, no parking any time.

Sixth Avenue, on the east side, from a point 255 feet south of Forest Avenue to Forest Avenue, no parking any time.
(C62, § 30-763; O.8084, 8361; C75, C79, § 27-777; C91, § 27-1623; O.11,650, 13,772, 16,174)

Sec. 114-2648. Sixth Avenue—Forest Avenue to College Avenue.

Sixth Avenue, on the west side, from Forest Avenue to College Avenue, no parking any time.

Sixth Avenue, on the east side, from Forest Avenue to a point 250 feet north thereof, no parking any time.

Sixth Avenue, on the east side, from a point 300 feet south of Clark Street to a point 95 feet north thereof, no parking any time.

Sixth Avenue, on the east side, from a point 100 feet south of Clark Street to a point 210 feet north of Clark Street, no parking any time.

Sixth Avenue, on the east side, from a point 315 feet north of Clark Street to College Avenue, no parking any time.
(C62, § 30-764; O.8084, 8186, 8345, 8700, 8732, 8908; C75, C79, § 27-778; C91, § 27-1624; O.11,650, 16,174)

Sec. 114-2649. Sixth Avenue—College Avenue to Hickman Road.

Sixth Avenue, on the west side, from College Avenue to Hickman Road, no parking any time.

Sixth Avenue, on the east side, from College Avenue to a point 140 feet south of Washington Avenue, no parking any time.

Sixth Avenue, on the east side, from a point 30 feet south of Washington Avenue to a point 65 feet north of Washington Avenue, no parking any time.

Sixth Avenue, on the east side, from a point 125 feet north of Washington Avenue to Jefferson Avenue, no parking any time.

Sixth Avenue, on the east side, from a point 110 feet north of Jefferson Avenue to Hickman Road, no parking any time.
(C62, § 30-765; O.8084; C75, § 27-779; O.9279; C79, § 27-779; O.10,162; C91, § 27-1625; O.11,650, 16,174)

Sec. 114-2650. Sixth Avenue—Hickman Road to Euclid Avenue.

Sixth Avenue, on both sides, from Hickman Road to Euclid Avenue, no parking any time.
(C62, § 30-766; O.8084, 8539; C75, § 27-780; O.9308; C79, § 27-780; O.10,207; C91, § 27-1626; O.11,650, 13,509)

Sec. 114-2651. Sixth Avenue—Euclid Avenue to Aurora Avenue.

Sixth Avenue, on the east side, from Euclid Avenue to a point 100 feet north thereof, no parking any time.

Sixth Avenue, on the east side, from a point 100 feet north of Euclid Avenue to a point 185 feet north thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Sixth Avenue, on the east side, from a point 285 feet north of Euclid Avenue to a point 35 feet north of Clinton Avenue, no parking any time.

Sixth Avenue, on the east side, from a point 35 feet north of Clinton Avenue to a point 40 feet north thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Sixth Avenue, on the east side, from a point 75 feet north of Clinton Avenue to a point 25 feet north thereof, commercial loading zone.

Sixth Avenue, on the east side, from a point 100 feet north of Clinton Avenue to a point 125 feet north thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Sixth Avenue, on the east side, from Douglas Avenue to a point 50 feet north thereof, no parking any time.

Sixth Avenue, on the west side, from Euclid Avenue to a point 90 feet north thereof, no parking any time.

Sixth Avenue, on the west side, from a point 90 feet north of Euclid Avenue to a point 42 feet north thereof, commercial loading zone.

Sixth Avenue, on the west side, from a point 132 feet north of Euclid Avenue to a point 50 feet south of Clinton Avenue, two-hour parking 9:00 a.m. to 4:00 p.m.

Sixth Avenue, on the west side, from a point 50 feet south of Clinton Avenue to Clinton Avenue, no parking any time.

Sixth Avenue, on the west side, from a point 50 feet north of Clinton Avenue to a point 68 feet south of Douglas Avenue, two-hour parking 9:00 a.m. to 4:00 p.m.

Sixth Avenue, on the west side, from a point 68 feet south of Douglas Avenue to a point 18 feet north thereof, commercial loading zone.

Sixth Avenue, on the west side, from Douglas Avenue to a point 75 feet north of Douglas Avenue, no parking any time.

Sixth Avenue, on both sides, from Madison Avenue to a point 100 feet south thereof, no stopping or standing.

Sixth Avenue, on the west side, from a point 100 feet south of Madison Avenue to a point 150 feet south thereof, passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Sixth Avenue, on the west side, from a point 250 feet south of Madison Avenue to a point 100 feet south thereof, bus loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Sixth Avenue, on the west side, from a point 350 feet south of Madison Avenue to a point 130 feet south thereof, passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days.
(C62, § 30-767; O.8084, 8554, 8683, 8738, 8832; C75, § 27-781; O.9203, 9349, 9609; C79, § 27-781; O.9693, 10,141, 10,476; C85, § 27-781; O.10,947, 11,231, 11,278, 11,315; C91, § 27-1627; O.11,650, 13,610, 13,694, 15,876, 16,034, 16,174, 16,541, 16,543)

Sec. 114-2652. East Sixth Street—East Vine Street to East Walnut Street.

East Sixth Street, on both sides, from East Vine Street to East Walnut Street, no parking any time.
(C62, § 30-768; O.8084, 8167; C75, § 27-782; O.9374, 9461; C79, § 27-782; O.11,650; C91, § 27-1628)

Sec. 114-2653. East Sixth Street—East Walnut Street to East Locust Street.

East Sixth Street, on the west side, from East Walnut Street to a point 135 feet north thereof, no parking any time.

East Sixth Street, on the east side, from East Walnut Street to a point 130 feet north thereof, no parking any time.

East Sixth Street, on the east side, from a point 150 feet north of East Walnut Street to a point 75 feet north thereof, loading zone.

East Sixth Street, on the east side, from East Locust Street to a point 20 feet south thereof, no parking any time.

East Sixth Street, on the west side, from East Locust Street to a point 25 feet south thereof, no parking any time.
(C62, § 30-769; O.8084; C75, § 27-783; O.9560; C79, § 27-783; O.10,035, 10,418; C85, § 27-783; O.10,896, 11,476; C91, § 27-1629; O.11,650, 13,785, 14,033, 14,987, 16,408)

Sec. 114-2654. East Sixth Street—East Locust Street to East Grand Avenue.

East Sixth Street, on the east side, from East Locust Street to East Grand Avenue, no parking any time.

East Sixth Street, on the west side, from East Grand Avenue to a point 20 feet south thereof, no parking any time.

East Sixth Street, on the west side, from a point 208 feet south of East Grand Avenue to East Locust Street, no parking any time.
(C62, § 30-770; O.8084; C75, C79, § 27-784; O.9909, 10,407; C85, § 27-784; O.11,279; C91, § 27-1630; O.11,650, 11,891, 14,910)

Sec. 114-2655. East Sixth Street—East Grand Avenue to Des Moines Street.

East Sixth Street, on the west side, from East Grand Avenue to a point 50 feet north thereof, no parking any time.

East Sixth Street, on the west side, from a point 50 feet north of East Grand Avenue to a point 115 feet north thereof, no parking 7:00 a.m. to 9:00 a.m., weekdays.

East Sixth Street, on the west side, from a point 50 feet north of East Grand Avenue to a point 60 feet north thereof, commercial loading zone, no parking 7:00 a.m. to 9:00 a.m., weekdays.
(C62, § 30-771; O.8084, 8776; C75, C79, § 27-785; O.10,044; C91, § 27-1631; O.11,650, 13,162, 14,348, 15,253, 15,963)

Sec. 114-2656. East Sixth Street—Des Moines Street to East University Avenue.

East Sixth Street, on both sides, from Des Moines Street to Lyon Street, no parking any time.

East Sixth Street, on the west side, from a point 125 feet north of Buchanan Street to a point 75 feet north thereof, no parking any time.

East Sixth Street, on the east side, from Buchanan Street to a point 775 feet north thereof, school passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days.

East Sixth Street, on the west side, from a point 75 feet south of Robert D Ray Drive to East University Avenue, no parking any time.

East Sixth Street, on the east side, from 775 feet north of Buchanan Street to East University Avenue, no parking any time.
(C62, § 30-772; O.8084, 8108; C75, § 27-786; O.9496, 9513; C79, § 27-786; O.9714, 10,402; C91, § 27-1632; O.11,650, 11,891, 13,354, 13,893, 14,855)

Sec. 114-2657. Southeast Sixth Street—East Vine Street to East Porter Avenue.

Southeast Sixth Street, on the west side, from East Vine Street to East Elm Street, no parking any time.

Southeast Sixth Street, on the east side, from East Vine Street to a point 45 feet south thereof, no parking any time.

Southeast Sixth Street, on the east side, from a point 30 feet north of East Market Street to a point 130 feet south thereof, no parking any time.

Southeast Sixth Street, on the east side, from a point 60 feet south of East Market Street to a point 50 feet south thereof, loading zone.

Southeast Sixth Street, on the east side, from East Elm Street to a point 60 feet north thereof, no parking any time.

Southeast Sixth Street, on both sides, from East Elm Street to Vale Street, no parking any time.

Southeast Sixth Street, on the east side, from Livingston Avenue to Hartford Avenue, no parking any time.

Southeast Sixth Street, on the west side, from East Livingston Avenue to a point 225 feet south of East Jackson Avenue, no parking any time.

Southeast Sixth Street, on the west side, from a point 225 feet south of East Jackson Avenue to a point 260 feet south thereof, school bus loading zone.

Southeast Sixth Street, on the west side, from a point 485 feet south of East Jackson Avenue to Hartford Avenue, no parking any time.

Southeast Sixth Street, on the east side, from Hartford Avenue to a point 50 feet south thereof, no parking any time.

Southeast Sixth Street, on the west side, from Hartford Avenue to a point 225 feet south thereof, no parking any time.

Southeast Sixth Street, on the east side, from a point 500 feet south of Hartford Avenue to Lacona Avenue, no parking any time.

Southeast Sixth Street, on the west side, from a point 250 feet south of Hartford Avenue to a point 20 feet south thereof, no parking any time.

Southeast Sixth Street, on the west side, from a point 320 feet south of Hartford Avenue to a point 20 feet south thereof, commercial loading zone.

Southeast Sixth Street, on the west side, from Lacona Avenue to a point 65 feet north thereof, no parking any time.

Southeast Sixth Street, on both sides, from Lacona Avenue to Indianola Avenue, no parking any time.

Southeast Sixth Street, on the west side, from East Pleasant View Drive to East Park Avenue, no parking any time.

Southeast Sixth Street, on the west side, from East Trowbridge Street to a point 300 feet south of Scandia Avenue, no parking any time.

Southeast Sixth Street, on the west side, from Spring Street south to and including the cul-de-sac, no parking any time, Thursday, 7:00 a.m. to 4:00 p.m.

Southeast Sixth Street, on the west side, from East Kenyon Avenue to East Porter Avenue, no parking any time.
(C62, § 30-773; O.8084, 8108, 8146, 8762, 8832; C75, § 27-787; O.9146, 9391; C79, § 27-787; O.9708, 9886, 10,004, 10,402; C91, § 27-1633; O.11,650, 11,688, 11,724, 11,760, 14,428, 15,926, 16,304)

Sec. 114-2658. Southwest Sixth Street—Cherry Street to Army Post Road.

Southwest Sixth Street, on the east side, from Cherry Street to a point 25 feet south thereof, no parking any time.

Southwest Sixth Street, on the east side, from a point 25 feet south of Cherry Street to a point 90 feet south thereof, bus loading and unloading.

Southwest Sixth Street, on the east side, from a point 290 feet south of Cherry Street to West Martin Luther King Jr Parkway, no parking any time.

Southwest Sixth Street, on the west side, from Cherry Street to West Martin Luther King Jr Parkway, no parking any time.

Southwest Sixth Street, on the east side, from Elm Street to a point 335 feet south thereof, no parking any time.

Southwest Sixth Street, on the west side, from Market Street to Elm Street, no parking any time.

Southwest Sixth Street, on the east side, from Pleasant View Drive to a point 60 feet south thereof, no parking any time.

Southwest Sixth Street, on the west side, from Pleasant View Drive to Park Avenue, no parking any time.

Southwest Sixth Street, on the east side, from Park Avenue to a point 50 feet north thereof, no parking any time.

Southwest Sixth Street, on the east side, from Thornton Avenue to Rose Avenue, no parking any time.

Southwest Sixth Street, on the east side, from Emma Avenue to Hackley Avenue, no parking any time.

Southwest Sixth Street, on the west side, from McKinley Avenue to a point 75 feet south thereof, no parking any time.

Southwest Sixth Street, on the west side, from Leland Avenue to Army Post Road, no parking any time.

Southwest Sixth Street, on the east side, from Army Post Road to a point 50 feet north thereof, no parking any time.
(C62, § 30-774; O.8084, 8478, 8615; C75, § 27-788; O.9111, 9128; C79, § 27-788; O.9849, 9886, 10,111, 10,580, 10,598; C85, § 27-788, O.11,278, 11,280; C91, § 27-1634; O.11,650, 11,951, 13,139, 13,162, 13,176, 14,338, 14,518 (installed 5/29/07), 15,943, 15,963, 16,171)

Sec. 114-2659. Southeast Seventh Court—East Diehl Avenue to Hart Avenue.

Southeast Seventh Court, on the east side, from East Diehl Avenue to Hart Avenue, no parking any time.
(C62, § 30-774.01; O.8780; C75, C79, § 27-788.01; C91, § 27-1635; O.11,650)

Sec. 114-2660. Seventh Place—Aurora Avenue to dead end south.

Seventh Place, on the east side, from Aurora Avenue to a point 200 feet south and any part of the cul-de-sac, no parking 7:00 a.m. to 6:00 p.m., Monday through Friday.
(C79, § 27-788.02; O.9849, 9928; C91, § 27-1636; O.11,650)

Sec. 114-2661. Seventh Street—Vine Street to Mulberry Street.

Seventh Street, on the west side, from Vine Street to a point 130 feet north of Cherry Street, no parking any time.

Seventh Street, on the east side, from Vine Street to Cherry Street, no parking any time.
(C79, § 27-788.03; O.10,734; C91, § 27-1637; O.11,650, 11,951, 13,773, 13,972, 14,566, 14,585, 15,140, 15,776)

Sec. 114-2662. Seventh Street—Mulberry Street to Walnut Street.

Seventh Street, on the east side, from Mulberry Street to a point 120 feet north thereof, no parking any time.

Seventh Street, on the east side, from a point 120 feet north of Mulberry Street to a point 75 feet north thereof, commercial loading zone.

Seventh Street, on the west side, from Mulberry Street to Walnut Street, no parking any time.
(C62, § 30-775; O.8084, 8168; C75, § 27-789; O.9226; C79, § 27-789; O.9803, 10,734; C85, § 27-789; O.10,895; C91, § 27-1638; O.11,650, 13,066, 15,577)

Sec. 114-2663. Seventh Street—Walnut Street to Locust Street.

Seventh Street, on the west side, from a point 65 feet south of Locust Street to a point 50 feet south thereof, loading zone.

Seventh Street, on the east side, from to a point 115 feet south of Locust Street to a point 30 feet south thereof, commercial loading zone.

Seventh Street, on the east side, from a point 145 feet south of Locust Street to a point 45 feet south thereof, no parking any time.

Seventh Street, on the east side, from a point 190 feet south of Locust Street to a point 40 feet north of Walnut Street, commercial loading zone.
(C62, § 30-776; O.8084, 8249; C75, § 27-790; O.9012; C79, § 27-790; O.9813, 10,077, 10,734; C85, § 27-790; O.10,895; C91, § 27-1639; O.11,650, 14,486, 16,052, 16,260)

Sec. 114-2664. Seventh Street—Locust Street to Grand Avenue.

Seventh Street, on the east side, from a point 40 feet south of Grand Avenue to a point 60 feet south thereof, passenger loading and unloading zone, 10 minutes only.

Seventh Street, on the west side, from Locust Street to a point 50 feet north thereof, no parking any time.

Seventh Street, on the west side, from Grand Avenue to 95 feet south thereof, no parking any time.
(C62, § 30-777; O.8084; C75, § 27-791; O.9190; C79, § 27-791; C91, § 27-1640; O.11,650, 14,322, 16,052, 16,203)

Sec. 114-2665. Seventh Street—Grand Avenue to High Street.

Seventh Street, on the west side, from High Street to a point 120 feet south thereof, no parking any time.
(C62, § 30-778; O.8084, 8851; C75, § 27-792; O.9001; C79, § 27-792; C91, § 27-1641; O.11,650, 16,045, 16,209)

Sec. 114-2666. Seventh Street—High Street to Watson Powell Jr Way.

Seventh Street, on the west side, from a point 260 feet north of High Street to a point 30 feet north thereof, no parking any time.

Seventh Street, on the west side, from a point 380 feet north of High Street to the north line of Watson Powell Jr Way, no parking any time.

Seventh Street, on the east side, from a point 215 feet south of Watson Powell Jr Way to a point 21 feet south thereof, no parking any time.

Seventh Street, on the east side, from Watson Powell Jr Way to a point 50 feet south thereof, no parking any time.
(C62, § 30-779; O.8084, 8731; C75, § 27-793; O.9292; C79, § 27-793; C85, § 27-793; O.10,768; C91, § 27-1642; O.11,650, 11,891, 13,474, 13,705, 13,855, 16,042, 16,379)

Sec. 114-2667. Seventh Street—Watson Powell Jr Way to Park Street.

Seventh Street, on the west side, from a point 80 feet north of Watson Powell Jr Way to a point 80 feet north thereof, no parking any time.

Seventh Street, on the east side, from Watson Powell Jr Way to a point 50 feet north thereof, no parking any time.

Seventh Street, on the east side, from a point 50 feet north of Watson Powell Jr Way to a point 30 feet north thereof, commercial loading zone.
(C62, § 30-780; O.8084, 8731; C75, C79, § 27-794; O.10,399; C85, § 27-794; O.10,768; C91, § 27-1643; O.11,650, 12,042, 13,673, 13,705, 13,855, 16,052)

Sec. 114-2668. Seventh Street—Park Street to University Avenue.

Seventh Street, on the west side, from Park Street to Ascension Street, no parking any time.

Seventh Street, on the east side, from Park Street to a point 60 feet north thereof, no parking any time.

Seventh Street, on the east side, from Center Street to a point 15 feet north thereof, no parking any time.

Seventh Street, on the east side, from a point 170 feet north of Center Street to a point 150 feet north thereof, no parking any time.

Seventh Street, on the east side, from Crocker Street to a point 25 feet south thereof, no parking any time.

Seventh Street, on the east side, from Crocker Street to a point 250 feet north thereof, no parking any time.

Seventh Street, on the east side, from School Street to Ascension Street, no parking any time.

Seventh Street, on the east side, from a point 530 feet south of University Avenue to a point 125 feet south thereof, no parking any time.

Seventh Street, on the east side, from University Avenue to a point 350 feet south thereof, no parking any time.

Seventh Street, on the west side, from University Avenue to a point 175 feet south thereof, no parking any time.
(C62, § 30-781; O.8084, 8124, 8717; C75, § 27-795; O.9012, 9227, 9357; C79, § 27-795; O.9875; C85, § 27-795; O.10,897, 10,951, 11,278, 11,516; C91, § 27-1644; O.11,650, 11,774, 13,673)

Sec. 114-2669. Seventh Street—Indiana Avenue to Shawnee Avenue.

Seventh Street, on the east side, from Indiana Avenue to Forest Avenue, no parking any time.

Seventh Street, on the west side, from Forest Avenue to a point 40 feet south thereof, no parking any time.

Seventh Street, on the west side, from a point 210 feet north of Clark Street to College Avenue, school bus loading and unloading.

Seventh Street, on the east side, from a point 120 feet south of College Avenue to a point 50 feet north thereof, loading zone.

Seventh Street, on the east side, from a point 50 feet south of Franklin Avenue to Hickman Road, no parking any time.

Seventh Street, on the west side, from a point 50 feet south of Franklin Avenue to a point 50 feet north of Franklin Avenue, no parking any time.

Seventh Street, on the west side, from New York Avenue to Corning Avenue, no parking any time.

Seventh Street, on the east side, from Corning Avenue to a point 210 feet south thereof, no parking any time.

Seventh Street, on the east side, from Boston Avenue to Ovid Avenue, no parking any time.

Seventh Street, on the east side, from Douglas Avenue to a point 375 feet south of Madison Avenue, no parking any time.

Seventh Street, on the west side, from Madison Avenue to a point 50 feet south of Madison Avenue, no parking any time.

Seventh Street, on the east side, from Madison Avenue to a point 375 feet south thereof, school passenger loading and unloading.

Seventh Street, on the east side, from Madison Avenue to Shawnee Avenue, no parking any time.
(C62, § 30-782; O.8084, 8738, 8844; C75, § 27-796; O.8970, 9203, 9290, 9458, 9574; C79, § 27-796; O.9849, 10,271; C85, § 27-796; O.10,951; C91, § 27-1645; O.11,650, 11,725, 13,176, 15,583, 15,905, 16,393)

Sec. 114-2670. East Seventh Street—East Vine Street to East Aurora Avenue.

East Seventh Street, on the east side, from East Vine Street to East Court Avenue, no parking any time.

East Seventh Street, on the east side, from East Court Avenue to East Walnut Street, no parking any time.

East Seventh Street, on the west side, from a point 160 feet north of East Court Avenue to a point 40 feet north thereof, commercial loading zone.

East Seventh Street, on the west side, from East Walnut Street to a point 25 feet south thereof, no parking any time.

East Seventh Street, on the east side, from East Walnut Street to a point 20 feet north thereof, no parking any time.

East Seventh Street, on the west side, from Lyon Street to a point 340 feet north thereof, no parking any time.

East Seventh Street, on the east side, from Walker Street to a point 55 feet north thereof, no parking any time.

East Seventh Street, on the east side, from Buchanan Street to a point 50 feet south thereof, no parking any time.

East Seventh Street, on the west side, from Walker Street to Fremont Street, no parking any time.

East Seventh Street, on the east side, from a point 50 feet south of Fremont Street to Freemont Street, no parking any time.

East Seventh Street, on the east side, from Hull Avenue to a point 75 feet north thereof, no parking any time.

East Seventh Street, on the west side, from Hull Avenue to East Douglas Avenue, no parking any time.

East Seventh Street, on the east side, from East Euclid Avenue to a point 50 feet south thereof, no parking any time.

East Seventh Street, on the east side, from East Euclid Avenue to a point 50 feet north thereof, no parking any time.

East Seventh Street, on the west side, from East Shawnee Avenue to East Aurora Avenue, no parking any time.
(C62, § 30-783; O.8084, 8108, 8501, 8633, 8730; C75, § 27-797; O.8979, 9021, 9146, 9292, 9326, 9389, 9560; C79, § 27-797; O.9849, 10,035, 10,250, 10,402, 10,434, 10,498, 10,598; C85, § 27-797; O.11,027; C91, § 27-1646; O.11,650, 11,667; C00, § 114-2670; O.14,518 (installed 4/24/09), 14,855, 15,163, 15,172, 15,316, 15,665, 16,061, 16,171)

Sec. 114-2671. Southeast Seventh Street—East Vine Street to East Porter Avenue.

Southeast Seventh Street, on the east side, from East Vine Street to East Elm Street, no parking any time.

Southeast Seventh Street, on the west side, from East Elm Street to the dead end south of Vale Street, no parking any time.

Southeast Seventh Street, on the west side, from East Pioneer Road to a point 700 feet south of East Bell Avenue and any part of the cul-de-sac, no parking any time.

Southeast Seventh Street, on the west side, from Indianola Avenue to East Virginia Avenue, no parking 7:00 a.m. to 5:00 p.m., school days.

Southeast Seventh Street, on the east side, from Indianola Avenue to East Pleasant View Drive, no parking any time.

Southeast Seventh Street, on the west side from East Pleasant View Drive to East Park Avenue, no parking any time.

Southeast Seventh Street, on the east side, from a point 200 feet north of East Trowbridge Street to East Titus Avenue, no parking any time.

Southeast Seventh Street, on the east side, from East Spring Street to East Kenyon Avenue, no parking any time.

Southeast Seventh Street, on the west side, from East Kenyon Avenue to East Porter Avenue, no parking any time.

Southeast Seventh Street, on the west side, from a point 50 feet north of Scandia Avenue to a point 50 feet south, no parking any time.
(C79, § 27-797.01; O.9886, 10,004, 10,057, 10,111, 10,402; C91, § 27-1647; O.11,650, 13,604, 16,182)

Sec. 114-2672. Southwest Seventh Street—Vine Street to Army Post Road.

Southwest Seventh Street, on both sides, from Vine Street to Tuttle Street, no parking any time.

Southwest Seventh Street, on both sides, from Tuttle Street to Indianola Road, no parking any time.

Southwest Seventh Street, on the east side, from Lacona Avenue to Bell Avenue, no parking any time.

Southwest Seventh Street, on the west side, from Loomis Avenue to Creston Avenue, no parking any time.

Southwest Seventh Street, on the east side, from Broad Street to Pleasant View Drive, no parking any time.

Southwest Seventh Street, on the west side, from Boulder Avenue to a point 45 feet south thereof, no parking any time.

Southwest Seventh Street, on the west side from a point 45 feet south of Boulder Avenue to a point 330 feet south thereof, school passenger loading and unloading, 7:00 a.m. to 5:00 p.m., school days.

Southwest Seventh Street, on the west side, from a point 375 feet south of Boulder Avenue to Park Avenue, no parking any time.

Southwest Seventh Street, on the east side, from Boulder Avenue to a point 50 feet south thereof, no parking any time.

Southwest Seventh Street, on the east side, from Park Avenue to Thornton Avenue, no parking any time.

Southwest Seventh Street, on the west side, from Park Avenue to a point 75 feet south thereof, no parking any time.

Southwest Seventh Street, on the west side, from Thornton Avenue to Rose Avenue, no parking any time.

Southwest Seventh Street, on the east side, from Rose Avenue to a point 75 feet north thereof, no parking any time.

Southwest Seventh Street, on the east side, from Maish Avenue to Philip Street, no parking any time.

Southwest Seventh Street, on the west side, from Kenyon Avenue to Porter Avenue, no parking any time.

Southwest Seventh Street, on the west side, from a point 295 feet north of Wall Avenue to Wall Avenue, no stopping or standing 7:00 a.m. to 5:00 p.m. school days.

Southwest Seventh Street, on the west side, from Wall Avenue to Army Post Road, no parking any time.

Southwest Seventh Street, on the east side, from Lally Street to Army Post Road, no parking any time.
(C62, § 30-784; O.8084, 8572; C75, C79, § 27-798; O.9849, 9886, 10,111, 10,278, 10,526, 10,591; C85, § 27-798; O.11,248; C91, § 27-1648; O.11,650, 11,951, 13,773, 14,057, 14,132, 15,577, 15,836, 16,541)

Sec. 114-2673. Southeast Eighth Court—Hartford Avenue to East Broad Street.

Southeast Eighth Court, on the west side, from Hartford Avenue to Gratis Avenue, no parking any time.

Southeast Eighth Court, on the west side, from Pioneer Road to a point 50 feet south thereof, no parking any time.

Southeast Eighth Court, on the east side, from Pioneer Road to Kirkwood Avenue, no parking any time.

Southeast Eighth Court, on the west side, from Kirkwood Avenue to a point 50 feet north thereof, no parking any time.

Southeast Eighth Court, on the east side, from East Lacona Avenue to Anita Avenue, no parking any time.

Southeast Eighth Court, on the west side, from East Lacona Avenue to a point 60 feet south thereof, no parking any time.

Southeast Eighth Court, on the east side, from King Avenue to a point 75 feet south thereof, no parking any time.

Southeast Eighth Court, on the west side, from Bell Avenue to Broad Street, no parking any time.
(C62, § 30-785; O.8084; C75, § 27-799; O.9614; C79, § 27-799; O.10,111; C91, § 27-1649; O.11,650, 13,997, 14,388, 16,171, 16,515)

Sec. 114-2674. Eighth Place—Park Street to dead end north of Shawnee Avenue.

Eighth Place, on both sides, from Park Street to Center Street, no parking any time.

Eighth Place, on the east side, from Douglas Avenue to a point 260 feet north of Shawnee Avenue, no parking any time.
(C75, § 27-799.01; O.9593; C79, § 27-799.01; O.9849; C91, § 27-1650; O.11,650, 12,042)

Sec. 114-2675. Eighth Street—Vine Street to Mulberry Street.

Eighth Street, on both sides, from Vine Street to Cherry Street, no parking any time (under Eighth Street Viaduct).

Eighth Street, on both sides, from Vine Street to Mulberry Street, no parking any time (on Eighth Street Viaduct).

Eighth Street, on both sides, from Cherry Street to Mulberry Street, no stopping or standing (west service road).
(C62, § 30-786; O.8084; C75, § 27-800; O.9593; C79, § 27-800; C91, § 27-1651; O.11,650, 11,951)

Sec. 114-2676. Eighth Street—Mulberry Street to Walnut Street.

Eighth Street, on the west side, from Mulberry Street to a point 40 feet north thereof, no parking any time.

Eighth Street, on the west side, from a point 40 feet north of Mulberry Street to a point 100 feet north thereof, commercial loading zone.

Eighth Street, on the east side, from Walnut Street to a point 75 feet south thereof, no parking any time.
(C62, § 30-787; O.8084, 8168, 8283, 8731, 8922; C75, C79, § 27-801; O.10,668; C91, § 27-1652; O.11,650, 15,803, 16,511)

Sec. 114-2677. Eighth Street—Walnut Street to Locust Street.

Eighth Street, on the east side, from a point 35 feet north of Walnut Street to a point 50 feet north thereof, commercial loading zone.

Eighth Street, on the east side, from a point 85 feet north of Walnut Street to Locust Street, no parking any time.

Eighth Street, on the west side, from a point 90 feet south of Locust Street to a point 55 feet south thereof, commercial loading zone.
(C62, § 30-788; O.8084, 8244, 8283; C75, § 27-802; O.9518; C79, § 27-802; O.10,040, 10,173, 10,668, 10,734; C85, § 27-802; O.10,812, 11,063; C91, § 27-1653; O.11,650, 13,951, 14,379, 14,910, 15,624, 16,511)

Sec. 114-2678. Eighth Street—Locust Street to Grand Avenue.

Eighth Street, on the west side, from Locust Street to a point 185 feet north of Locust Street, no parking any time.
(C62, § 30-789; O.8084, 8283; C75, § 27-803; O.9292, 9331; C79, § 27-803; O.9747, 10,734; C85, § 27-803; O.11,380; C91, § 27-1654; O.11,650, 16,511)

Sec. 114-2679. Eighth Street—Grand Avenue to High Street.

Eighth Street, on the west side, from Grand Avenue to a point 100 feet north thereof, no parking any time.
(C62, § 30-790; O.8084, 8227, 8268, 8283; C75, C79, C85, § 27-804; O.11,522; C91, § 27-1655; O.11,650, 13,705, 13,973, 15,263, 16,045, 16,511)

Sec. 114-2680. Eighth Street—High Street to Pleasant Street.

Eighth Street, on the east side, from Pleasant Street to a point 70 feet south thereof, no parking any time.

Eighth Street, on the west side, from High Street to Pleasant Street, is designated a handicapped parking space and is subject to the same prohibition as is found in subsection 114-616(a) of this chapter, Sunday only.

Eighth Street, on the west side, from a point 55 feet south of Pleasant Street to a point 35 feet south thereof, commercial loading zone.
(C62, § 30-791; O.8084, 8283; C75, C79, § 27-805; O.10,466, 10,734; C85, § 27-805; O.10,770; C91, § 27-1656; O.11,650, 16,511)

Sec. 114-2681. Eighth Street—Pleasant Street to Park Street.

Eighth Street, on the east side, from Pleasant Street to a point 85 feet north thereof, no parking any time.

Eighth Street, on the east side, from a point 320 feet north of Pleasant Street to Park Street, no parking any time.
(C62, § 30-792; O.8084, 8283; C75, § 27-806; O.9292; C79, § 27-806; O.10,734; C85, § 27-806; O.10,768, 10,999; C91, § 27-1657; O.11,650, 12,042, 13,705, 15,858, 16,511)

Sec. 114-2682. Eighth Street—Park Street to Aurora Avenue.

Eighth Street, on both sides, from Crocker Street to a point 50 feet south thereof, no parking any time.

Eighth Street, on the west side, from Crocker Street to a point 50 feet north thereof, no parking any time.

Eighth Street, on the west side, from a point 210 feet north of Crocker Street to a point 75 feet north thereof, no parking any time.

Eighth Street, on the east side, from Crocker Street to School Street, no parking any time.

Eighth Street, on the west side, from School Street to a point 50 feet south thereof, no parking any time.

Eighth Street, on the east side, from University Avenue to a point 125 feet south thereof, no parking any time.

Eighth Street, on the west side, from a point 310 feet south of University Avenue to Forest Avenue, no parking any time.

Eighth Street, on the east side from Indiana Avenue to a point 75 feet north thereof, no parking any time.

Eighth Street, on the west side, from College Avenue to a point 35 feet south thereof, commercial loading zone.

Eighth Street, on the west side, from a point 35 feet south of College Avenue to a point 20 feet

south thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in section 114-616(a) of this Code.

Eighth Street, on the east side, from Clark Street to a point 60 feet south of College Avenue, school passenger loading and unloading, 7:00 a.m. to 5:00 p.m. school days.

Eighth Street, on the east side, from a point 60 feet south of College Avenue to College Avenue, no parking, standing or stopping.

Eighth Street, on the west side, from a point 40 feet south of Franklin Avenue to Hickman Road, no parking any time.

Eighth Street, on the east side, from a point 50 feet south of Franklin Avenue to a point 50 feet north of Franklin Avenue, no parking any time.

Eighth Street, on the east side, from Lake Avenue to Oak Park Avenue, no parking any time.

Eighth Street, on both sides, from Euclid Avenue to a point 50 feet south thereof, no parking any time.

Eighth Street, on the west side, from Euclid Avenue to a point 50 feet north thereof, no parking any time.

Eighth Street, on the east side, from Euclid Avenue to Aurora Avenue, no parking any time. (C62, § 30-793; O.8084, 8283, 8539, 8908; C75, § 27-807; O.9012, 9065, 9100, 9226, 9574, 9594; C79, § 27-807; O.9628, 9849, 9935, 10,035, 10,271, 10,598; C85, § 27-807; O.11,278, 11,407; C91, § 27-1658; O.11,650, 11,725, 12,042, 13,407, 13,529, 13,573, 13,773, 14,438, 14,855, 15,583)

Sec. 114-2683. East Eighth Street—East Vine Street to East Aurora Avenue.

East Eighth Street, on the east side, from East Washington Avenue to East Jefferson Avenue, no parking any time.

East Eighth Street, on the west side, from East Jefferson Avenue to a point 75 feet south thereof, no parking any time.

East Eighth Street, on the east side, from Buchanan Street to East University Avenue, no parking any time.

East Eighth Street, on the west side, from East University Avenue to a point 45 feet south thereof, no parking any time.

East Eighth Street, on the west side, from Alpha Avenue to Arthur Avenue, no parking any time.

East Eighth Street, on the west side, from Hull Avenue to East Euclid Avenue, no parking any time.

East Eighth Street, on the east side, from East Ovid Avenue to a point 25 feet north thereof, no parking any time.

East Eighth Street, on the east side, from a point 50 feet south of East Euclid Avenue to a point 50 feet north of East Euclid Avenue, no parking any time.

East Eighth Street, on the west side, from East Euclid Avenue to East Madison Avenue, no parking any time.

East Eighth Street, on the east side, from East Douglas Avenue to a point 50 feet north thereof, no parking any time.

East Eighth Street, on the east side, from Hoffman Avenue to a point 75 feet north thereof, no stopping or standing.

East Eighth Street, on the east side, from a point 75 feet north of Hoffman Avenue to a point 75 feet south of East Madison Avenue, school passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days.

East Eighth Street, on the east side, from East Madison Avenue to a point 75 feet south thereof, no stopping or standing.

East Eighth Street, on the east side, from a point 160 feet south of East Shawnee Avenue to East Aurora Avenue, no parking any time.
(C62, § 30-794; O.8084, 8722; C75, § 27-808; O.9035, 9117, 9152; C79, § 27-808; O.9813, 9849, 10,236, 10,242, 10,402, 10,598; C91, § 27-1659; O.11,650; C00, § 114-2683; O.14,087, 14,467, 14,518 (installed 3/18/08), 16,171)

Sec. 114-2684. Southeast Eighth Street—East Vine Street to Hart Avenue.

Southeast Eighth Street, on the west side, from East Vine Street to a point 250 feet south of East Railroad Avenue, no parking any time.

Southeast Eighth Street, on the west side, from Van Buren Avenue to East Edison Avenue, no parking any time.

Southeast Eighth Street, on the east side, from Hartford Avenue to a point 100 feet south of Indianola Avenue, no parking any time.

Southeast Eighth Street, on the west side, from Hartford Avenue to a point 60 feet south thereof, no parking any time.

Southeast Eighth Street, on the west side, from Lacona Avenue to a point 65 feet south thereof, no parking any time.

Southeast Eighth Street, on the west side, from 80 feet south of East Bell Avenue to a point 80 feet north of East Bell Avenue, no parking any time.

Southeast Eighth Street, on the west side, from a point 600 feet south of East Bell Avenue to a point 100 feet south thereof, no parking any time.

Southeast Eighth Street, on the west side, from Indianola Avenue to a point 75 feet north thereof, no parking any time.

Southeast Eighth Street, on the west side, from Indianola Avenue to East Emma Avenue, no parking any time.

Southeast Eighth Street, on the east side, from East Watrous Avenue to a point 50 feet north thereof, no parking any time.

Southeast Eighth Street, on the east side, from a point 100 feet north of East Emma Avenue to East Emma Avenue, no parking any time.

Southeast Eighth Street, on the west side, from East Spring Street to East Kenyon Avenue, no parking any time.

Southeast Eighth Street, on the east side, from East Porter Avenue to East Diehl Avenue, no parking any time.

Southeast Eighth Street, on the east side, from East Porter Avenue to a point 60 feet south thereof, no stopping, no standing, 7:00 a.m. to 5:00 p.m. school days.

Southeast Eighth Street, on the west side, from East Diehl Avenue to Hart Avenue, no parking any time.
(C62, § 30-795; O.8084, 8529, 8712; C75, C79, § 27-809; O.9849, 10,042, 10,057, 10,111, 10,250, 10,402; C85, § 27-809; O.10,747; C91, § 27-1660; O.11,650, 13,621; C00, § 114-2684; O.13,841, 13,870, 14,057, 14,518 (installed 4/23/08, 12/17/14), 16,171, 16,418)

Sec. 114-2685. Southwest Eighth Street—Vine Street to Payton Avenue.

Southwest Eighth Street, on both sides, from Tuttle Street to Southwest Ninth Street, no parking any time.

Southwest Eighth Street, on both sides, from Vine Street to Elm Street, no parking any time (under Eighth Street Viaduct).

Southwest Eighth Street, on both sides, from Vine Street to Tuttle Street, no parking any time (on Eighth Street Viaduct).

Southwest Eighth Street, on both sides, from Elm Street to Tuttle Street, no stopping or standing (west service road).

Southwest Eighth Street, on the east side, from Bell Avenue to Lacona Avenue, no parking any time.

Southwest Eighth Street, on the west side, from Bell Avenue to Lacona Avenue, no parking 7:00 a.m. to 5:00 p.m. school days.

Southwest Eighth Street, on the west side, from Park Avenue to Rose Avenue, no parking any time.

Southwest Eighth Street, on the east side, from Park Avenue to a point 60 feet south, no parking any time.

Southwest Eighth Street, on the west side, from Emma Avenue to Herold Avenue, no parking any time.

Southwest Eighth Street, on the east side, from a point 50 feet north of Herold Avenue to Herold Avenue, no parking any time.

Southwest Eighth Street, on the west side, from McKinley Avenue to a point 1,400 feet south thereof, no parking any time.

Southwest Eighth Street, on the east side, from Kenyon Avenue to Porter Avenue, no parking any time.

Southwest Eighth Street, on the west side, from Wall Avenue to Payton Avenue, no parking any time.
(C62, § 30-796; O.8084, 8100, 8484; C75, § 27-810; O.9004, 9015, 9069, 9593; C79, § 27-810; O.9886; C91, § 27-1661; O.11,650, 11,951, 13,391, 14,518 (installed 3/4/21), 16,171)

Sec. 114-2686. Southwest Ninth Place—Southdale Drive to County Line Road.

Southwest Ninth Place, on the east side, from Southdale Drive to County Line Road, no parking any time.
(C79, § 27-810.01; O.9685; C91, § 27-1662; O.11,650)

Sec. 114-2687. Ninth Street—Vine Street to Mulberry Street.

Ninth Street, on both sides, from Vine Street to Mulberry Street, no parking any time (on Ninth Street Viaduct).

Ninth Street, on both sides, from Cherry Street to Mulberry Street, no stopping or standing (east service road).

Ninth Street, on both sides, from Vine Street to Cherry Street, no parking any time (under Ninth Street Viaduct).
(C62, § 30-797; O.8084, 8262; C75, C79, § 27-811; C91, § 27-1663; O.11,650, 11,951)

Sec. 114-2688. Ninth Street—Mulberry Street to Walnut Street.

Ninth Street, on the west side, from Mulberry Street to a point 145 feet north thereof, no parking any time.

Ninth Street, on the west side, from Walnut Street to a point 50 feet south thereof, commercial loading zone.

Ninth Street, on the east side, from a point 100 feet north of Mulberry Street to a point 45 feet north thereof, commercial loading zone.
(C62, § 30-798; O.8084, 8124; C75, § 27-812; O.9227, 9292, 9336, 9357, 9431; C79, § 27-812; O.10,734; C85, § 27-812; O.10,925; C91, § 27-1664; O.11,650, 16,511)

Sec. 114-2689. Ninth Street—Walnut Street to Locust Street.

Ninth Street, on the west side, from Walnut Street to Locust Street, school passenger loading and unloading, 7:00 a.m. to 5:00 p.m. school days.
(C62, § 30-799; O.8084, 8732; C75, § 27-813; O.9292; C79, § 27-813; O.10,035, 10,734; C85, § 27-813; O.10,925, 11,466; C91, § 27-1665; O.11,650, 14,250, 14,304, 14,910, 16,379, 16,511)

Sec. 114-2690. Reserved.

Editor's note—Ord. No. 16,511, § 1, adopted Oct. 20, 2025, repealed § 114-2690, which pertained to Ninth Street—Locust Street to Grand Avenue and derived from Code 1962, § 30-800; Ord. No. 8084; Code 1975, § 27-814; Ord. No. 9080; Ord. No. 9234; Code 1979, § 27-814; Ord. No. 10,035; Code 1985, § 27-814; Ord. No. 10,925; Ord. No. 11,380; Ord. No. 11,466; Code 1991, § 27-1666; Ord. No. 11,650; Ord. No. 13,580; Ord. No. 13,705; Ord. No. 14,910.

Sec. 114-2691. Ninth Street—Grand Avenue to High Street.

Ninth Street, on the west side, from Grand Avenue to a point 140 feet north thereof, no parking any time.

Ninth Street, on the east side, from point 40 feet north of Grand to a point 25 feet north thereof, commercial loading zone.
(C62, § 30-801; O.8084; C75, § 27-815; O.8970, 9595; C79, § 27-815; O.10,203; C85, § 27-815; O.11,466, 11,522; C91, § 27-1667; O.11,650, 13,705, 13,727, 15,914, 16,141, 16,511)

Sec. 114-2692. Reserved.

Editor's note—Ord. No. 16,511, § 1, adopted Oct. 20, 2025, repealed § 114-2692, which pertained to Ninth Street—High Street to Pleasant Street and derived from Code 1962, § 30-802; Ord. No. 8084; Code 1975, § 27-816; Ord. No. 9292; Code 1979, § 27-816; Ord. No. 10,203; Code 1985, § 27-816; Ord. No. 11,522; Code 1991, § 27-1668; Ord. No. 11,650; Ord. No. 12,042; Ord. No. 12,096; Ord. No. 13,028; Ord. No. 15,914.

Sec. 114-2693. Ninth Street—Pleasant Street to Chestnut Street.

Ninth Street, on the west side, from a point 180 feet north of Pleasant Street to a point 50 feet north thereof, commercial loading zone. (C62, § 30-803; O.8084; C75, § 27-817; O.9292; C79, § 27-817; O.9798, 10,203; C85, § 27-817; O.10,947; C91, § 27-1669; O.11,650, 11,891, 12,042, 12,096, 13,028, 15,914, 16,141, 16,511)

Sec. 114-2694. Ninth Street—Chestnut Street to Keosauqua Way.

Ninth Street, on the east side from Chestnut Street to Keosauqua Way, no parking any time. (C62, § 30-804; O.8084; C75, C79, § 27-818; O.10,203; C85, § 27-818; O.10,947; C91, § 27-1670; O.11,650, 12,042, 16,511)

Sec. 114-2695. Ninth Street—Keosauqua Way to Aurora Avenue.

Ninth Street, on the east side, from Keosauqua Way to a point 250 feet north of Center Street, no parking any time.

Ninth Street, on the east side, from a point 75 feet south of Crocker Street to a point 100 feet north of Crocker Street, no parking any time.

Ninth Street, on the east side, from a point 250 feet north of Center Street to a point 75 feet south of Crocker Street. no parking 4:00 p.m. to 6:00 p.m.

Ninth Street, on the east side, from a point 100 feet north of Crocker Street to Day Street, no parking 4:00 p.m. to 6:00 p.m.

Ninth Street, on the east side, from a point 260 feet south of University to Enos Avenue, no parking 4:00 p.m. to 6:00 p.m.

Ninth Street, on the east side, from University Avenue to a point 260 feet south thereof, no parking any time.

Ninth Street, on the east side from University Avenue to Indiana Avenue, no parking any time. Ninth Street, on the west side, from Keosauqua Way to a point 165 feet north of Center Street, no parking any time.

Ninth Street, on the west side, from a point 165 feet north of Center Street to a point 225 feet south of Crocker Street, no parking 7:00 a.m. to 9:00 a.m.

Ninth Street, on the west side, from a point 225 feet south of Crocker Street to a point 100 feet north of Crocker Street, no parking any time.

Ninth Street, on the west side, from a point 100 feet north of Crocker Street to Day Street, no parking 7:00 a.m. to 9:00 a.m.

Ninth Street, on the east side, from School Street to a point 75 feet south thereof, no parking any time.

Ninth Street, on the east side, from Clark Street to a point 100 feet south thereof, no parking any time.

Ninth Street, on the west side, from Day Street to Hickman Road, no parking any time.

Ninth Street, on the west side, from a point 50 feet south of Euclid Avenue to a point 50 feet north of Euclid Avenue, no parking any time.

Ninth Street, on the west side, from Madison Avenue to a point 50 feet north thereof, no parking any time.

Ninth Street, on the east side, from Oak Park Avenue to Aurora Avenue, no parking any time.

Ninth Street, on the west side from a point 365 feet south of Aurora Avenue to Aurora Avenue, no parking any time.
(C62, § 30-805; O.8084, 8231; C75, § 27-819; O.9120, 9503, 9607; C79, § 27-819; O.9657, 9849, 10,040, 10,075, 10,123, 10,598; C85, § 27-819; O.10,890; 10,971; C91, § 27-1671; O.11,650, 13,028, 14,132, 14,404, 15,269, 15,282, 15,914, 15,920)

Sec. 114-2696. East Ninth Street—East Vine Street to East Aurora Avenue.

East Ninth Street, on the east side, from Des Moines Street to a point 130 feet north thereof, no parking any time.

East Ninth Street, on the west side, from Des Moines Street to a point 125 feet north thereof, no parking any time.

East Ninth Street, on the west side, from a point 50 feet north of Des Moines Street to Lyon Street, no parking 7:00 a.m. to 9:00 a.m., Monday through Friday.

East Ninth Street, on both sides, from Lyon Street to a point 100 feet south thereof, no parking any time.

East Ninth Street, on both sides, from Lyon Street to a point 150 feet north thereof, no parking any time.

East Ninth Street, on the east side from Buchanan Street to a point 60 feet south thereof, no parking any time.

East Ninth Street, on the west side, from a point 50 feet south of Fremont Street to a point 100 feet north of Fremont Street, no parking any time.

East Ninth Street, on the east side, from a point 100 feet south of Fremont Street to a point 50 feet north of Fremont Street, no parking any time.

East Ninth Street, on the east side, from a point 90 feet south of Filmore Street to a point 300 feet north of East University Avenue, no parking any time.

East Ninth Street, on the east side, from Filmore Street to East University Avenue, no parking any time.

East Ninth Street, on the west side, from Filmore Street to a point 300 feet north of East University Avenue, no parking any time.

East Ninth Street, on the east side, from a point 50 feet south of Garfield Avenue to a point 50 feet north of Garfield Avenue, no parking any time.

East Ninth Street, on the west side, from Roosevelt Avenue to a point 60 feet north thereof, no parking any time.

East Ninth Street, on the east side, from a point 75 feet south of Cleveland Avenue to a point 50 feet north of Cleveland Avenue, no parking any time.

East Ninth Street, on the west side, from Cleveland Avenue to a point 50 feet north thereof, no parking any time.

East Ninth Street, on the west side, from East Washington Avenue to a point 75 feet south thereof, no parking any time.

East Ninth Street, on the west side, from East Washington Avenue to East Jefferson Avenue, no parking any time.

East Ninth Street, on the east side, from a point 50 feet south of Osceola Avenue to Osceola Avenue, no parking any time.

East Ninth Street, on the east side, from Osceola Avenue to East Jefferson Avenue, no parking any time.

East Ninth Street, on the east side, from Alpha Avenue to a point 100 feet north of Guthrie Avenue, no parking any time.

East Ninth Street, on the west side, from Guthrie Avenue to a point 100 feet north thereof, no parking any time.

East Ninth Street, on the east side, from Arthur Avenue to a point 144 feet north of Boyd Street, no parking any time.

East Ninth Street, on the west side, from a point 35 feet south of Morton Avenue to a point 50 feet north of Morton Avenue, no parking any time.

East Ninth Street, on the west side, from a point 50 feet south of Grandview Avenue to a point 50 feet north of Grandview Avenue, no parking any time.

East Ninth Street, on the west side, from a point 50 feet north of Hull Avenue to a point 75 feet north thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

East Ninth Street, on the east side, from Hull Avenue to East Ovid Avenue, no parking any time.

East Ninth Street, on the west side, from Hull Avenue to a point 50 feet north thereof, no parking any time.

East Ninth Street, on the east side, from East Douglas Avenue to Hoffman Avenue, no parking any time.

East Ninth Street, on the west side, from East Seneca Avenue to a point 50 feet south thereof, no parking any time.

East Ninth Street, on the east side, from East Shawnee Avenue to East Aurora Avenue, no parking any time.
(C62, § 30-806; O.8084, 8094, 8152, 8878; C75, § 27-820; O.9271, 9402, 9418, 9431, 9560, 9607; C79, § 27-820; O.9630, 9849, 10,402, 10,476, 10,728; C85, § 27-820; O.11,516; C91, § 27-1672; O.11,650, 12,036, 13,043, 13,415, 13,613; C00, § 114-2696; O.13,841, 13,997, 14,250, 14,467, 14,518 (installed 10/19/17, 11/19/19), 16,171, 16,304)

Sec. 114-2697. Southeast Ninth Street—East Market Street to East Kenyon Avenue.

Southeast Ninth Street, on the west side, from a point 250 feet south of East Martin Luther King Jr Parkway to Raccoon Street, no parking any time.

Southeast Ninth Street, on the east side, from a point 215 feet south of East Martin Luther King Jr Parkway to Raccoon Street, no parking any time.

Southeast Ninth Street, on the east side, from Scott Avenue to the dead end south of Railroad Avenue, no parking any time.

Southeast Ninth Street, on the east side, from a point 150 feet north of East Jackson Avenue to Hartford Avenue, no parking any time.

Southeast Ninth Street, on the west side, from East Edison Avenue to a point 100 feet south thereof, no parking any time.

Southeast Ninth Street, on the east side, from Gratis Avenue to Pioneer Road, no parking any time.

Southeast Ninth Street, on the west side, from the west leg of East Broad Street to a point 50 feet south of the east leg of East Broad Street, no parking any time.

Southeast Ninth Street, on the east side, from East Broad Street to Indianola Avenue, no parking any time.

Southeast Ninth Street, on the east side, from East Spring Street to East Kenyon Avenue, no parking any time.
(C79, § 27-820.01; O.10,057, 10,111; C91, § 27-1673; O.11,650, 13,366, 14,518 (installed 5/21/07), 14,982, 16,017, 16,171)

Sec. 114-2698. Southwest Ninth Street—Vine Street to Park Avenue.

Southwest Ninth Street, on both sides, from Vine Street to Elm Street, no parking any time (under Ninth Street Viaduct).

Southwest Ninth Street, on both sides, from Elm Street to Tuttle Street, no stopping or standing (west service road).

Southwest Ninth Street, on both sides, from Vine Street to Tuttle Street, no parking any time (on Ninth Street Viaduct).

Southwest Ninth Street, on the east side, from Tuttle Street to Park Avenue, no parking any time.

Southwest Ninth Street, on the west side, from Tuttle Street to a point 75 feet south of Bell Avenue, no parking any time.

Southwest Ninth Street, on the west side, from a point 75 feet south of Bell Avenue to a point 120 feet north of Loomis Avenue, bus loading and unloading.

Southwest Ninth Street, on the west side, from a point 120 feet north of Loomis Avenue to Park Avenue, no parking any time.
(C62, § 30-807; O.8084; C75, C79, § 27-821; O.10,399; C91, § 27-1674; O.11,650, 11,951, 16,352)

Sec. 114-2699. Southwest Ninth Street—Park Avenue to County Line Road.

Southwest Ninth Street, on the east side, from Park Avenue to County Line Road, no parking any time.

Southwest Ninth Street, on the west side, from Park Avenue to Luster Lane, no parking any time.

Southwest Ninth Street, on the west side, from County Line Road to a point 300 feet north thereof, no parking any time.
(C62, § 30-808; O.8084, 8563, 8617; C75, § 27-822; O.9004; C79, § 27-822; O.10,399; C91, § 27-1675; O.11,650, 13,621, 15,035, 16,393)

Sec. 114-2700. Southwest Tenth Place—Southdale Drive to County Line Road.

Southwest Tenth Place, on the east side, from Southdale Drive to County Line Road, no parking any time.
(C62, § 30-808.01; O.8433; C75, C79, § 27-822.01; C91, § 27-1676; O.11,650)

Sec. 114-2701. Tenth Street—Vine Street to Cherry Street.

Tenth Street, on both sides, from Vine Street to Cherry Street, no parking any time.
(C62, § 30-809; O.8084; C75, C79, § 27-823; C91, § 27-1677; O.11,650)

Sec. 114-2702. Tenth Street—Cherry Street to Mulberry Street.

Tenth Street, on the east side, from a point 100 feet north of Cherry Street to a point 45 feet north thereof, commercial loading zone.

Tenth Street, on the east side, from Mulberry Street to a point 40 feet south thereof, no parking any time.

Tenth Street, on the west side, from a point 78 feet south of Mulberry Street to a point 73 feet south thereof, loading zone.

Tenth Street, on the west side, from a point 151 feet south of Mulberry Street to a point ten feet south thereof, no parking any time.

Tenth Street, on the west side, from a point 161 feet south of Mulberry Street to a point 80 feet south thereof, loading zone.
(C62, § 30-810; O.8084; C75, C79, § 27-824; O.10,407; C85, § 27-824; O.11,522; C91, § 27-1678; O.11,650, 11,891, 14,418)

Sec. 114-2703. Tenth Street—Mulberry Street to Walnut Street.

Tenth Street, on the east side, from Mulberry Street to a point 30 feet south thereof, no parking any time.

Tenth Street, on the east side, from a point 205 feet north of Mulberry Street to a point 40 feet north thereof, loading zone.

Tenth Street, on the east side, from a point 245 feet north of Mulberry Street to a point 50 feet north thereof, no parking any time.

Tenth Street, on the west side, from Walnut Street to a point 175 feet south thereof, loading zone.
(C62, § 30-811; O.8084, 8122; C75, § 27-825; O.9595; C79, C85, § 27-825; O.11,077; C91, § 27-1679; O.11,650, 13,646, 14,812, 15,858, 16,105)

Sec. 114-2704. Tenth Street—Walnut Street to Locust Street.

Tenth Street, on the west side, from Locust Street to a point 30 feet south thereof, no parking any time.

Tenth Street, on the west side, from Walnut Street to a point 28 feet north thereof, no parking any time.
(C62, § 30-812; O.8084; C75, C79, § 27-826; O.9766; C85, § 27-826; O.10,947, 11,466; C91, § 27-1680; O.11,650, 13,973, 14,161, 14,552, 14,910, 15,165, 15,367, 16,141, 16,379)

Sec. 114-2705. Tenth Street—Locust Street to Grand Avenue.

Tenth Street, on the west side, from Grand Avenue to a point 43 feet south thereof, no parking any time.

Tenth Street, on the east side, from Grand Avenue to a point 40 feet south thereof, no parking any time.

Tenth Street, on the east side, from Locust Street to a point 25 feet north thereof, no parking any time

Tenth Street, on the east side, from a point 160 feet north of Locust Street to a point 55 feet north thereof, no parking any time.

Tenth Street, on the west side, from a point 136 feet south of Grand Avenue to a point 25 feet south thereof, commercial loading zone.

Tenth Street, on the west side, from a point 161 feet south of Grand Avenue to Locust Street, no parking any time.
(C62, § 30-813; O.8084; C75, § 27-827; O.9080, 9292, 9389; C79, C85, § 27-827; O.10,965, 11,466; C91, § 27-1681; O.11,650, 13,705, 14,105, 14,539, 14,910, 16,045, 16,379, 16,484)

Sec. 114-2706. Tenth Street—Grand Avenue to High Street.

Tenth Street, on the west side, from High Street to a point 40 feet south thereof, no parking any time.
(C62, § 30-814; O.8084; C75, § 27-828; O.9080; C79, C85, § 27-828; O.11,466; C91, § 27-1682; O.11,650, 14,910, 14,982, 16,379)

Sec. 114-2707. Tenth Street—High Street to Woodland Avenue.

Tenth Street, on the west side, from Woodland Avenue to a point 35 feet south thereof, no parking any time.

Tenth Street, on the east side, from a point 140 feet north of High Street to a point 65 feet north thereof, no parking any time.

Tenth Street, on the east side, from Woodland Avenue to a point 34 feet south thereof, no parking any time.

Tenth Street, on the east side, from a point 205 feet north of High Street to a point 25 feet north thereof, commercial loading zone.
(C62, § 30-815; O.8084, 8905; C75, § 27-829; O.9080; C79, § 27-829; O.10,178; C85, § 27-829, 11,231, 11,278, 11,380; C91, § 27-1683; O.11,650, 11,774, 14,812, 16,141, 16,379)

Sec. 114-2708. Tenth Street—Woodland Avenue to Aurora Avenue.

Tenth Street, on the west side, from Woodland Avenue to a point 50 feet north thereof, no parking any time.

Tenth Street, on the east side, from a point 113 feet south of Pleasant Street to Woodland Avenue, no parking any time.

Tenth Street, on the east side, from Pleasant Street to a point 40 feet south thereof, no parking any time.

Tenth Street, on both sides, from Pleasant Street to Methodist Drive, no parking any time.

Tenth Street, on the west side, from Keosauqua Way to Crocker Street, no parking any time.

Tenth Street, on the west side, from Day Street to Forest Avenue, no parking any time.

Tenth Street, on the east side, from a point 50 feet south of Mary Street to a point 50 feet north of Mary Street, no parking any time.

Tenth Street, on the west side, from Clark Street to College Avenue, no parking any time.

Tenth Street, on the west side, from Washington Avenue to Hickman Road, no parking any time.

Tenth Street, on the west side, from Douglas Avenue to Shawnee Avenue, no parking any time.

Tenth Street, on the east side, from Shawnee Avenue to Aurora Avenue, no parking any time.
(C62, § 30-816; O.8084, 8867, 8905; C75, § 27-830; O.9080; C79, § 27-830; O.9849, 9935, 10,123, 10,540, 10,692; C91, § 27-1684; O.11,650, 13,028, 14,812, 16,379)

Sec. 114-2709. East Tenth Street—Des Moines Street to East Aurora Avenue.

East Tenth Street, on the east side, from Des Moines Street to Lyon Street, no parking any time.

East Tenth Street, on the west side, from Lyon Street to a point 100 feet south thereof, no parking any time.

East Tenth Street, on the west side, from East Seneca Avenue to East Aurora Avenue, no parking any time.

East Tenth Street, on the east side, from East Seneca Avenue to a point 50 feet north thereof, no parking any time.

East Tenth Street, on the east side, from East Aurora Avenue to a point 50 feet south thereof, no parking any time.
(C62, § 30-817; O.8084; C75, § 27-831; O.9566, 9593; C79, § 27-831; O.9630, 10,323, 10,359, 10,402; C91, § 27-1685; O.11,650, 13,756; C00, § 114-2709; O.14,518 (installed 3/26/12), 16,171)

Sec. 114-2710. Southeast Tenth Street—East Vine Street to East Philip Street.

Southeast Tenth Street, on the west side, from Raccoon Street to a point 600 feet south of East Railroad Avenue, no parking any time.

Southeast Tenth Street, on the east side, from Pioneer Road to East Lacona Avenue, no parking any time.

Southeast Tenth Street, on the west side, from East Broad Street to a point 400 feet north thereof, no parking any time.

Southeast Tenth Street, on the east side, from East Thornton Avenue to a point 50 feet south thereof, no parking any time.

Southeast Tenth Street, on the west side, from East Thornton Avenue to East Watrous Avenue, no parking any time.

Southeast Tenth Street, on the east side, from a point 50 feet south of Rose Avenue to a point 50 feet north of Rose Avenue, no parking any time.

Southeast Tenth Street, on the east side, from East Watrous Avenue to a point 75 feet north thereof, no parking any time.

Southeast Tenth Street, on the west side, from East Marion Street to East Philip Street, no parking any time.
(C62, § 30-817.01; O.8670; C75, § 27-831.01; O.9420; C79, § 27-831.01; O.9886, 10,057, 10,111, 10,207, 10,402; C85, § 27-831.01; O.10,895; C91, § 27-1686; O.11,650, 13,666, 15,387)

Sec. 114-2711. Southwest Tenth Street—Vine Street to County Line Road.

Southwest Tenth Street, on the east side, from Boulder Avenue to a point 50 feet south thereof, no parking any time.

Southwest Tenth Street, on the east side, from Park Avenue to a point 50 feet north thereof, no parking any time.

Southwest Tenth Street, on the east side, from Carrie Avenue to Emma Avenue, no parking any time.

Southwest Tenth Street, on the east side, from McKinley Avenue to Hackley Avenue, no parking any time.

Southwest Tenth Street, on the west side, from Frazier Avenue to Kenyon Avenue, no parking any time.

Southwest Tenth Street, on the east side, from Leland Avenue to Wade Street, no parking any time.

Southwest Tenth Street, on the west side, from Leland Avenue to a point 50 feet south thereof, no parking any time.

Southwest Tenth Street, on the west side, from a point 50 feet north of Army Post Road to a point 50 feet south of Army Post Road, no parking any time.

Southwest Tenth Street, on the west side, from West Street to a point 100 feet south thereof, no parking any time.

Southwest Tenth Street, on the west side, from Geil Avenue to a point 50 feet south thereof, no parking any time.

Southwest Tenth Street, on the west side, from Rittenhouse Street to Johnson Street, no parking any time.

Southwest Tenth Street, on the west side, from Southdale Drive to County Line Road, no parking any time.

Southwest Tenth Street, on the east side, from a point 50 feet north of County Line Road to County Line Road, no parking any time.
(C62, § 30-818; O.8084; C75, § 27-832; O.8979; C79, § 27-832; O.9685, 9849, 9886, 10,598; C91, § 27-1687; O.11,650, 13,076, 13,474; C00, § 114-2711; O.14,000, 14,518 (installed 1/6/12, 2/27/17, 8/9/21), 16,171)

Sec. 114-2712. Eleventh Place—Seneca Avenue to Aurora Avenue.

Eleventh Place, on the east side, from Seneca Avenue to Aurora Avenue, no parking any time.

Eleventh Place, on the west side, from Madison Avenue to a point 60 feet north thereof, no parking any time.
(C62, § 30-819; O.8084; C75, C79, § 27-833; O.9849; C91, § 27-1688; O.11,650, 13,924)

Sec. 114-2713. Eleventh Street—Vine Street to Mulberry Street.

Eleventh Street, on the west side, from Cherry Street to a point 40 feet north thereof, no parking any time.

Eleventh Street, on the west side, from a point 125 feet north of Cherry Street to a point 35 feet north thereof, commercial loading zone.

Eleventh Street, on the west side, from Mulberry Street to a point 25 feet south thereof, no parking any time.

Eleventh Street, on the west side, from a point 75 feet south of Mulberry Street to a point 25 feet south thereof, commercial loading zone.

Eleventh Street, on the east side, from Cherry Street to a point 25 feet north thereof, no parking any time.
(C62, § 30-820; O.8084; C75, C79, § 27-834; C91, § 27-1689; O.11,650, 13,678, 14,075, 14,542, 16,045)

Sec. 114-2714. Reserved.

Editor's note—Ord. No. 14,542, § 1, adopted Feb. 6, 2006, repealed § 114-2714, which pertained to Eleventh Street—Mulberry Street to Walnut Street and derived from Code 1962, § 30-821; Ord. No. 8084; Code 1975, § 27-835; Ord. No. 9292; Code 1979; Code 1985, § 27-835; Ord. No. 11,077; Ord. No. 11,278; Ord. No. 11,380; Ord. No. 11,466; Ord. No. 11,600; Code 1991, § 27-1690; Ord. No. 11,650; Ord. No. 11,860; Ord. No. 13,176; Ord. No. 14,161.

Sec. 114-2715. Eleventh Street—Grand Avenue to High Street.

Eleventh Street, on the west side, from High Street to Grand Avenue, no parking any time.
(C62, § 30-822; O.8084; C75, C79, § 27-836; O.9646, 10,342; C85, § 27-836; O.11,340, 11,466; C91, § 27-1691; O.11,650, 13,973, 14,486, 14,910, 14,982)

Sec. 114-2716. Reserved.

Editor's note—Ord. No. 14,542, § 1, adopted Feb. 6, 2006, repealed § 114-2716, which pertained to Eleventh Street—Chestnut Street to Keosauqua Way and derived from Code 1962, § 30-823; Ord. No. 8084; Code 1975; Code 1979, § 27-837; Code 1991, § 27-1692; Ord. No. 11,650.

Sec. 114-2717. Eleventh Street—Keosauqua Way to Aurora Avenue.

Eleventh Street, on both sides, from Keosauqua Way to Crocker Street, no parking any time.

Eleventh Street, on the west side, from Day Street to a point 200 feet north of University Avenue, no parking any time.

Eleventh Street, on the west side, from to a point 50 feet south of Carpenter Avenue, to a point 50 feet north of Carpenter Avenue, no parking any time.

Eleventh Street, on the east side, from Clark Street to a point 50 feet south thereof, no parking any time.

Eleventh Street, on the west side, from Clark Street to a point 50 feet north thereof, no parking any time.

Eleventh Street, on the east side, from College Avenue to a point 230 feet north thereof, no parking any time.

Eleventh Street, on the east side, from a point 230 feet north of College Avenue to a point 100 feet north thereof, passenger loading and unloading.

Eleventh Street, on the east side, from a point 330 feet north of College Avenue to a point 200 feet north of Franklin Avenue, no parking any time.

Eleventh Street, on the west side, from a point 120 feet north of Franklin Avenue to a point 80 feet north thereof, no parking any time.

Eleventh Street, on the east side, from Oak Park Avenue to Douglas Avenue, no parking any time.

Eleventh Street, on the west side, from a point 90 feet south of Euclid Avenue to a point 125 feet north of Euclid Avenue, no parking any time.

Eleventh Street, on the west side, from a point 40 feet south of Garden Avenue to a point 60 feet north of Garden Avenue, no parking any time.

Eleventh Street, on the east side, from Madison Avenue to a point 70 feet north thereof, no parking any time.

Eleventh Street, on the east side, from Madison Avenue to a point 200 feet south thereof, no parking any time.
(C62, § 30-824; O.8084, 8273, 8433, 8453; C75, § 27-838; O.9374, 9607; C79, § 27-838; O.10,123, 10,598; C85, § 27-838; O.10,747; C91, § 27-1693; O.11,650, 11,725, 11,892; C00, § 114-2717; O.14,371, 14,458, 14,518 (installed 3/29/12, 10/11/18), 16,171, 16,233)

Sec. 114-2718. East Eleventh Street—Des Moines Street to Arthur Avenue.

East Eleventh Street, on the east side, from Des Moines Street to Lyon Street, no parking any time.

East Eleventh Street, on the east side, from Maple Street to Buchanan Street, no parking any time.

East Eleventh Street, on the west side, from Guthrie Avenue to Arthur Avenue, no parking any time.
(C62, § 30-825; O.8084, 8250, 8323, 8484; C75, § 27-839; O.9009, 9429; C79, § 27-839; C91, § 27-1694; O.11,650, 14,255, 14,348, 14,764)

Sec. 114-2719. Southeast Eleventh Street—East Market Street to East Philip Street.

Southeast Eleventh Street, on the east side, from Scott Avenue to East Railroad Avenue, no parking any time.

Southeast Eleventh Street, on the east side, from a point 250 feet north of East Thornton Avenue, and any part of the cul-de-sac to East Rose Avenue, no parking any time.

Southeast Eleventh Street, on the east side, from East Marion Street to East Philip Street, no parking any time.
(C62, § 30-826; O.8084; C75, C79, § 27-840; O.9886, 10,111, 10,402; C91, § 27-1695; O.11,650, 15,387)

Sec. 114-2720. Southwest Eleventh Street—Vine Street to County Line Road.

Southwest Eleventh Street, on both sides, from Vine Street to Tuttle Street, no parking any time.

Southwest Eleventh Street, on the east side, from a point 60 feet south of Tuttle Street to a point 30 feet south thereof, is designated as a

handicapped parking space and is subject to the same prohibition as is found in subsection 114-616(a) of this chapter.

Southwest Eleventh Street, on both sides, from Davis Avenue to Kirkwood Avenue, no parking any time.

Southwest Eleventh Street, on the west side, from Army Post Road to a point 50 feet south thereof, no parking any time.

Southwest Eleventh Street, on the east side, from Army Post Road to Wade Street, no parking any time.

Southwest Eleventh Street, on the east side, from Wade Street to Amos Avenue, passenger loading and unloading.

Southwest Eleventh Street, on the east side, from Amos Avenue to Mason Avenue, no parking any time.

Southwest Eleventh Street, on the west side, from Wade Street to Amos Avenue, no stopping or standing 7:00 a.m. to 5:00 p.m. school days.

Southwest Eleventh Street, on the west side, from Southdale Drive to County Line Road, no parking any time.
(C62, § 30-827; O.8084; C75, C79, § 27-841; O.9685, 10,598; C91, § 27-1696; O.11,650, 11,951, 15,641)

Sec. 114-2721. Reserved.

Editor's note—Ord. No. 14,542, § 1, adopted Feb. 6, 2006, repealed § 114-2721, which pertained to Twelfth Place—Crocker Street to School Street and derived from Code 1979, § 27-841.01; Ord. No. 10,123; Code 1991, § 27-1697; Ord. No. 11,650.

Sec. 114-2722. Southwest Twelfth Place—Pleasant View Drive to Army Post Road.

Southwest Twelfth Place, on the east side, from Pleasant View Drive to Park Avenue, no parking any time.

Southwest Twelfth Place, on the west side, from Pleasant View Drive to a point 50 feet south thereof, no parking any time.

Southwest Twelfth Place, on the west side, from Park Avenue to Thornton Avenue, no parking any time.

Southwest Twelfth Place, on the west side, from Army Post Road to a point 50 feet north thereof, no parking any time.

Southwest Twelfth Place, on the east side, from Army Post Road to a point 310 feet north thereof, no parking any time.
(C62, § 30-828; O.8084; C75, § 27-842; O.9080; 9343; C79, § 27-842; O.9849, 10,598; C91, § 27-1698; O.11,650, 13,184)

Sec. 114-2722.01. Twelfth Street—West Martin Luther King Jr Parkway to Cherry Street.

Twelfth Street, on both sides, no parking any time.
(O.14,075, 14,542)

Sec. 114-2723. Twelfth Street—Cherry Street to Mulberry Street.

Twelfth Street, on the east side, from Cherry Street to a point 160 feet north thereof, no parking any time.

Twelfth Street, on the east side, from Mulberry Street to a point 25 feet south thereof, no parking any time.

Twelfth Street, on the west side, from Cherry Street to a point 25 feet north thereof, no parking any time.

Twelfth Street, on the west side, from Mulberry Street to a point 25 feet south thereof, no parking any time.
(C62, § 30-829; O.8084, 8105; C75, C79, C85, § 27-843; O.11,231; C91, § 27-1699; O.11,650, 11,904, 13,685, 13,935, 14,075, 14,876, 14,910, 15,353, 16,141)

Sec. 114-2724. Twelfth Street—Mulberry Street to Walnut Street.

Twelfth Street, on the east side, from Mulberry Street to a point 125 feet north thereof, no parking any time.

Twelfth Street, on the west side, from Walnut Street to a point 20 feet south thereof, no parking any time.

Twelfth Street, on the west side, from a point 105 feet south of Mulberry Street to a point 40 feet south thereof, loading zone.

Twelfth Street, on the west side, from Walnut Street to a point 28 feet north thereof, no parking any time.
(C62, § 30-830; O.8084, 8717, 8926; C75, § 27-844; O.9292; C79, § 27-844; O.10,035; C91, § 27-1700; O.11,650, 14,161, 14,830, 16,541)

Sec. 114-2725. Twelfth Street—Walnut Street to Locust Street.

Twelfth Street, on the east side, from Walnut Street to a point 30 feet north thereof, no parking any time.

Twelfth Street, on the east side, from a point 30 feet north of Walnut Street to Locust Street, no parking, standing or stopping from 9:00 p.m. until 6:00 a.m. on Friday, Saturday and Sunday.

Twelfth Street, on the west side, from Walnut Street to Locust Street, no parking any time.
(C62, § 30-831; O.8084; C75, § 27-845; O.9061; C79, § 27-845; O.10,203; C85, § 27-845; O.11,380, 11,466; C91, § 27-1701; O.11,650, 13,973, 14,161, 14,322, 14,542, 15,997, 16,061)

Sec. 114-2726. Twelfth Street—Locust Street to Grand Avenue.

Twelfth Street, on the east side, from Grand Avenue to a point 45 feet south thereof, no parking any time.

Twelfth Street, on the east side, from a point 50 feet north of Locust Street to a point 45 feet south of Grand Avenue, no parking, standing or stopping from 9:00 p.m. to 6:00 a.m. on Friday, Saturday and Sunday.

Twelfth Street, on the east side, from Locust Street to a point 50 feet north thereof, no parking any time.

Twelfth Street, on the west side, from Grand Avenue to Locust Street, no parking any time.
(C62, § 30-832; O.8084; C75, § 27-846; O.9292; C79, § 27-846; O.10,203; C85, § 27-846; O.11,466; C91, § 27-1702; O.11,650, 13,973, 14,404, 14,486, 14,539, 14,910, 15,997, 16,061)

Sec. 114-2727. Twelfth Street—Grand Avenue to High Street.

Twelfth Street, on the west side, from Grand Avenue to a point 45 feet north thereof, no parking any time.

Twelfth Street, on the west side, from a point 135 feet north of Grand Avenue to a point 85 feet north thereof, no parking any time.

Twelfth Street, on the west side, from a point 310 feet north of Grand Avenue to High Street, no parking any time.
(C62, § 30-833; O.8084; C75, § 27-847; O.9292; C79, § 27-847; O.9927; C85, § 27-847; O.11,466; C91, § 27-1703; O.11,650, 11,956, 14,910, 14,982)

Sec. 114-2728. Twelfth Street—High Street to Woodland Avenue.

Twelfth Street, on the east side, from High Street to a point 75 feet north thereof, no parking any time.

Twelfth Street, on the east side, from a point 125 feet north of High Street to Woodland Avenue, no parking any time.
(C62, § 30-834; O.8084; C75, C79, § 27-848; O.10,695; C85, § 27-848; O.11,089; C91, § 27-1704; O.11,650, 16,045)

Sec. 114-2729. Twelfth Street—Woodland Avenue to Keosauqua Way.

Twelfth Street, on both sides, from Center Street to Keosauqua Way, no parking any time.
(C62, § 30-835; O.8084, 8825; C75, C79, § 27-849; C91, § 27-1705; O.11,650)

Sec. 114-2730. Twelfth Street—Keosauqua Way to Aurora Avenue.

Twelfth Street, on both sides, from Crocker Street to a point 25 feet north thereof, no parking any time.

Twelfth Street, on both sides, from School Street to a point 125 feet south thereof, no parking any time.

Twelfth Street, on the west side, from Day Street to Enos Avenue, no parking any time.

Twelfth Street, on both sides, from a point 50 feet south of Carpenter Avenue to a point 50 feet north of Carpenter Avenue, no parking any time.

Twelfth Street, on the west side, from Jefferson Avenue to a point 450 feet north thereof, no parking any time.

Twelfth Street, on the west side, from a point 50 feet south of Madison Avenue to a point 50 feet north of Madison Avenue, no parking any time.

Twelfth Street, on the west side, from a point 50 feet south of Euclid Avenue to Clinton Avenue, no parking any time.

Twelfth Street, on the east side, from Oak Park Avenue to Aurora Avenue, no parking any time.

Twelfth Street, on the west side, from a point 50 feet south of Shawnee Avenue to a point 50 feet north of Shawnee Avenue, no parking any time.
(C62, § 30-836; O.8084, 8278, 8433, 8535, 8633, 8655, 8825; C75, C79, § 27-850; O.9640, 9863, 10,042, 10,123, 10,250, 10,598, 10,662, 10,728; C85, § 27-850; O.11,161; C91, § 27-1706; O.11,650, 11,712, 11,891, 11,982, 13,301; C00, § 114-2730; O.14,518 (installed 10/11/18), 16,171, 16,233, 16,400)

Sec. 114-2731. East Twelfth Street—East Vine Street to East Euclid Avenue.

East Twelfth Street, on the west side, from East Grand Avenue to Lyon Street, no parking any time.

East Twelfth Street, on the east side, from East Grand Avenue to a point 60 feet north thereof, no parking any time.

East Twelfth Street, on the west side, from Lyon Street to a point 75 feet north of Maple Street, no parking any time.

East Twelfth Street, on the east side, from Des Moines Street to Lyon Street, no parking any time.

East Twelfth Street, on the east side, from Lyon Street to a point 75 feet north of Maple Street, no parking any time.

East Twelfth Street, on the west side, from a point 50 feet south of Walker Street to a point 75 feet north of Walker Street, no parking any time.

East Twelfth Street, on the east side, from a point 75 feet south of Walker Street to a point 50 feet north of Walker Street, no parking any time.

East Twelfth Street, on both sides, from a point 50 feet south of Buchanan Street to a point 50 feet north of Buchanan Street, no parking any time.

East Twelfth Street, on both sides, from a point 50 feet south of Fremont Street to a point 50 feet north of Fremont Street, no parking any time.

East Twelfth Street, on the west side, from Filmore Street to East University Avenue, no parking any time.

East Twelfth Street, on the east side, from a point 50 feet south of Garfield Avenue to Garfield Avenue, no parking any time.

East Twelfth Street, on both sides from Garfield Avenue to a point 50 feet north thereof, no parking any time.

East Twelfth Street, on the west side, from a point 50 feet south of Garfield Avenue to a point 90 feet south thereof, school bus loading and unloading 7:00 a.m. to 5:00 p.m. school days.

East Twelfth Street, on the east side, from East Washington Avenue to Arthur Avenue, no parking any time.

East Twelfth Street, on the west side, from a point 60 feet south of Osceola Avenue to a point 70 feet north of Osceola Avenue, no parking any time.

East Twelfth Street, on the west side, from Guthrie Avenue to a point 50 feet south thereof, no parking any time.

East Twelfth Street, on the west side, from Arthur Avenue to a point 60 feet south thereof, no parking any time.

East Twelfth Street, on the west side, from Hull Avenue to a point 50 feet north thereof, no parking any time.

East Twelfth Street, on the east side, from Hull Avenue to a point 200 feet north thereof, no parking any time.

East Twelfth Street, on the east side, from a point 200 feet north of Hull Avenue to a point 260 feet north thereof, school passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days.

East Twelfth Street, on the east side, from a point 460 feet north of Hull Avenue to Tiffin Avenue, no stopping or standing.

East Twelfth Street, on the west side, from a point 75 feet south of Tiffin Avenue to Tiffin Avenue, no stopping or standing.

East Twelfth Street, on the west side, from Tiffin Avenue to East Ovid Avenue, no parking any time.

East Twelfth Street, on the east side, from Tiffin Avenue to a point 50 feet north thereof, no parking any time.

East Twelfth Street, on the east side, from East Ovid Avenue to East Oak Park Avenue, no parking any time.

East Twelfth Street, on both sides, from East Oak Park Avenue to East Euclid Avenue, no parking any time.
(C62, § 30-837; O.8084, 8244, 8283, 8473, 8852, 8915; C75, § 27-851; O.8974, 8983, 9012, 9027, 9061, 9321, 9490, 9560; C79, § 27-851; O.10,263, 10,309, 10,342, 10,373, 10,402; C85, § 27-851; O.10,826, 10,859, 11,161, 11,199, 11,278; C91, § 27-1707; O.11,650, 11,884, 13,425, 13,908, 14,518 (installed 7/11/07), 15,363, 15,614, 15,624, 16,171, 16,194, 16,311)

Sec. 114-2732. Southeast Twelfth Street—Raccoon Street to East Philip Street.

Southeast Twelfth Street, on both sides, from East Martin Luther King Jr Parkway to Maury Street, no parking any time.

Southeast Twelfth Street, on the west side, from Maury Street to East Railroad Avenue, no parking any time.

Southeast Twelfth Street, on the east side, from East Thornton Avenue to a point 50 feet south thereof, no parking any time.

Southeast Twelfth Street, on the west side, from East Thornton Avenue to East Rose Avenue, no parking any time.

Southeast Twelfth Street, on the west side from East Watrous Avenue to East Philip Street, no parking any time.

Southeast Twelfth Street, on the east side, from East Watrous Avenue to a point 50 feet south thereof, no parking any time.
(C79, § 27-851.01; O.10,057, 10,402; C91, § 27-1708; O.11,650, 13,360, 15,387, 16,174)

Sec. 114-2733. Southwest Twelfth Street—Tuttle Street to Havens Avenue.

Southwest Twelfth Street, on the east side, from Tuttle Street to Gray's Parkway, no parking any time.

Southwest Twelfth Street, on the east side, from Davis Avenue to Elder Lane, no parking any time.

Southwest Twelfth Street, on the west side, from Davis Avenue to a point 50 feet north of Bell Avenue, no parking 7:00 a.m. to 6:00 p.m., Monday through Friday.

Southwest Twelfth Street, on the west side, from a point 50 feet north of Bell Avenue to a point 50 feet south of Bell Avenue, no parking any time.

Southwest Twelfth Street, on the west side, from a point 50 feet south of Bell Avenue to Watrous Avenue, no parking 7:00 a.m. to 6:00 p.m., Monday through Friday.

Southwest Twelfth Street, on the west side, from Watrous Avenue to a point 75 feet south thereof, no parking any time.

Southwest Twelfth Street, on the west side, from Elder Lane to a point 75 feet north thereof, no parking any time.

Southwest Twelfth Street, on the west side, from McKinley Avenue to Hackley Avenue, no parking any time.

Southwest Twelfth Street, on the east side, from Porter Avenue to Army Post Road, no parking any time.

Southwest Twelfth Street, on the west side, from Highview Drive to a point 50 feet south thereof, no parking any time.

Southwest Twelfth Street, on the west side, from a point 50 feet north of Payton Avenue to a point 50 feet south of Payton Avenue, no parking any time.

Southwest Twelfth Street, on the west side, from Leland Avenue to a point 70 feet south thereof, no parking any time.

Southwest Twelfth Street, on the west side, from Army Post Road to a point 50 feet north thereof, no parking any time.

Southwest Twelfth Street, on the west side, from Amos Avenue to Havens Avenue, no parking any time.
(C62, § 30-838; O.8084, 8484; C75, C79, § 27-852; O.9849, 9886, 10,263, 10,373, 10,598; C85, § 27-852; O.10,799; C91, § 27-1709; O.11,650, 11,884, 13,924, 15,858, 16,121)

Sec. 114-2734. Thirteenth Place—Carpenter Avenue to Forest Avenue.

Thirteenth Place, on the west side, from Carpenter Avenue to Forest Avenue, no parking any time.

Thirteenth Place, on the east side, from Carpenter Avenue to a point 100 feet north thereof, no parking any time.
(C62, § 30-839; O.8084, 8852; C75, C79, § 27-853; C91, § 27-1710; O.11,650)

Sec. 114-2735. Reserved.

Editor's note—Ord. No. 14,855, § 1, adopted May 18, 2009, repealed § 114-2735, which pertained to Thirteenth Street—Cherry Street to Mulberry Street and derived from Code 1962, § 30-840; Ord. No. 8084; Code 1975, § 27-854; Ord. No. 9227; Code 1979, § 27-854; Code 1991, § 27-1711; Ord. No. 11,650.

Sec. 114-2736. Thirteenth Street—Mulberry Street to Walnut Street.

Thirteenth Street, on the west side, from Walnut Street to a point 20 feet south thereof, no parking any time.
(C91, § 27-1711.05; O.12,090, 14,458, 14,876, 14,910)

Sec. 114-2737. Thirteenth Street—Walnut Street to Locust Street.

Thirteenth Street, on the west side, from Walnut Street to a point 25 feet north thereof, no parking any time.
(C62, § 30-842; O.8084; C75, § 27-856; O.9227; C79, § 27-856; O.9704, 10,004; C85, § 27-856; O.11,466; C91, § 27-1712; O.11,650, 14,910, 15,081, 15,750)

Sec. 114-2738. Thirteenth Street—Locust Street to Grand Avenue.

Thirteenth Street, on the east side, from Grand Avenue to a point 135 feet south thereof, no parking any time.

Thirteenth Street, on the east side, from Locust Street to a point 45 feet north thereof, no parking any time.

Thirteenth Street, on the west side, from a point 110 feet north of Locust Street to a point 25 feet north thereof, commercial loading zone.
(C62, § 30-843; O.8084, 8851, 8891; C75, § 27-857; O.9227; C79, C85, § 27-857; O.11,098, 11,380, 11,466; C91, § 27-1713; O.11,650, 12,036, 14,121, 14,486, 14,513, 14,539, 14,722)

Sec. 114-2739. Reserved.

Editor's note—Ord. No. 14,855, § 1, adopted May 18, 2009, repealed § 114-2739, which pertained to Thirteenth Street—Grand Avenue to High Street and derived from Code 1962, § 30-844; Ord. No. 8084; Code 1975, § 27-858; Ord. No. 9227; Code 1979; Code 1985, § 27-858; Ord. No. 10,812; Ord. No. 11,278; Ord. No. 11,466; Code 1991, § 27-1714; Ord. No. 11,650; Ord. No. 14,486; Ord. No. 14,537.

Sec. 114-2740. Thirteenth Street—Park Street to Shawnee Avenue.

Thirteenth Street, on both sides, from a point 40 feet south of Carpenter Avenue to a point 40 feet north of Carpenter Avenue, no parking any time.

Thirteenth Street, on the east side, from Forest Avenue to a point 60 feet south thereof, no parking any time.

Thirteenth Street, on the east side, from a point 60 feet south of Forest Avenue to a point 100 feet south thereof, loading zone.

Thirteenth Street, on the west side, from Forest Avenue to a point 75 feet north thereof, bus loading zone.

Thirteenth Street, on the east side, from Clark Street to a point 75 feet south thereof, no parking any time.

Thirteenth Street, on the west side, from Clark Street to Jefferson Avenue, no parking any time.

Thirteenth Street, on the east side, from a point 50 feet south of College Avenue to a point 50 feet north of College Avenue, no parking any time.

Thirteenth Street, on both sides, from Jefferson Avenue to Chautauqua Parkway, no parking any time.

Thirteenth Street, on the east side, from Douglas Avenue to Shawnee Avenue, no parking any time.
(C62, § 30-845; O.8084, 8755; C75, C79, § 27-859; O.9849, 10,077; C85, § 27-859, O.11,098; C91, § 27-1715; O.11,650; C00, § 114-2740; O.14,132, 14,338, 14,518 (installed 1/4/06, 9/28/06, 10/25/18), 16,171)

Sec. 114-2741. East Thirteenth Street—East Vine Street to East Douglas Avenue.

East Thirteenth Street, on the west side, from Maple Street to a point 75 feet north of Walker Street, no parking any time.

East Thirteenth Street, on the west side, from Buchanan Street to a point 75 feet north thereof, no parking any time.

East Thirteenth Street, on the east side, from Maple Street to Walker Street, passenger loading and unloading.

East Thirteenth Street, on the east side, from Walker Street to East University Avenue, no parking any time.

East Thirteenth Street, on the east side, from East University Avenue to a point 50 feet north thereof, no parking any time.

East Thirteenth Street, on the west side, from East University Avenue to East Washington Avenue, no parking any time.

East Thirteenth Street, on the east side, from East Washington Avenue to Arthur Avenue, no parking any time.

East Thirteenth Street, on the west side, from Guthrie Avenue to a point 50 feet south thereof, no parking any time.

East Thirteenth Street, on the east side, from Arthur Avenue to a point 60 feet north thereof, no parking any time.

East Thirteenth Street, on the west side, from Arthur Avenue to Hull Avenue, no parking any time.

East Thirteenth Street, on the east side, from a point 50 feet south of East Sheridan Avenue to a point 50 feet north of East Sheridan Avenue, no parking any time.

East Thirteenth Street, on the east side, from a point 75 feet south of Morton Avenue to a point 75 feet north of Morton Avenue, no parking any time.

East Thirteenth Street, on the east side, from a point 75 feet south of Grandview Avenue to a point 75 feet north of Grandview Avenue, no parking any time.

East Thirteenth Street, on the east side, from a point 75 feet south of Boyd Street to a point 50 feet north of Boyd Street, no parking any time.

East Thirteenth Street, on the east side, from Hull Avenue to a point 50 feet north thereof, no parking any time.

East Thirteenth Street, on the west side, from Hull Avenue to a point 50 feet north thereof, no parking any time.

East Thirteenth Street, on the east side, from Hull Avenue to a point 50 feet south thereof, no parking any time.

East Thirteenth Street, on the east side, from Tiffin Avenue to a point 300 feet south thereof, no stopping or standing 7:00 a.m. to 5:00 p.m. school days.

East Thirteenth Street, on the west side, from Tiffin Avenue to a point 50 feet south thereof, no stopping or standing any time.

East Thirteenth Street, on the west side, from a point 50 feet south of Tiffin Avenue to a point 300 feet south of Tiffin Avenue, school passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days; no parking at all other times.

East Thirteenth Street, on the east side, from East Euclid Avenue to a point 50 feet north thereof, no parking any time.

East Thirteenth Street, on the west side, from East Euclid Avenue to East Douglas Avenue, no parking any time.
(C62, § 30-846; O.8084, 8108, 8244, 8417, 8453, 8619, 8905, 8915; C75, § 27-860; O.8974, 8983, 9244, 9490, 9508, 9524; C79, § 27-860; O.9693, 9849, 9904, 10,250, 10,402, 10,418, 10,598; C85, § 27-860; O.10,826, 10,859; C91, § 27-1716; O.11,650, 11,884, 13,130, 13,146, 13,218, 13,239, 13,602, 13,948, 14,025, 14,518 (installed 7/12/18), 14,886, 15,363, 16,171)

Sec. 114-2742. Southeast Thirteenth Street—East Vine Street to dead end south of East Thornton Avenue.

Southeast Thirteenth Street, on the east side, from East Thornton Avenue to a point 120 feet south thereof, no parking any time.

Southeast Thirteenth Street, on the east side, from East Watrous Avenue to East Philip Street, no parking any time.

Southeast Thirteenth Street, on the west side, from East Watrous Avenue to a point 100 feet south thereof, no parking any time.
(C75, § 27-860.01; O.9021; C79, § 27-860.01; O.10,111; C91, § 27-1717; O.11,650, 13,935)

Sec. 114-2743. Southwest Thirteenth Place—Pleasant View Drive to Leland Avenue.

Southwest Thirteenth Place, on the west side, from Pleasant View Drive to Caulder Avenue, no parking any time.

Southwest Thirteenth Place, on the east side, from Park Avenue, to a point 110 feet south thereof, no parking any time.

Southwest Thirteenth Place, on the east side, from Carrie Avenue to Lewis Avenue, no parking any time.

Southwest Thirteenth Place, on the west side, from Elder Lane to a point 60 feet north thereof, no parking any time.

Southwest Thirteenth Place, on the west side, from Porter Avenue to Leland Avenue, no parking any time.
(C79, § 27-860.02; O.9849, 9886, 10,111; C91, § 27-1718; O.11,650, 14,467, 14,518 (installed 1/9/17), 16,171)

Sec. 114-2744. Southwest Thirteenth Street—Vine Street to Havens Avenue.

Southwest Thirteenth Street, on the west side, from Pleasant View Drive to Carrie Avenue, no parking any time.

Southwest Thirteenth Street, on the west side, from Tuttle Street to Gray's Parkway, no parking any time.

Southwest Thirteenth Street, on the east side, from Park Avenue to a point 60 feet north thereof, no parking any time.

Southwest Thirteenth Street, on the east side, from Watrous Avenue to a point 50 feet south thereof, no parking any time.

Southwest Thirteenth Street, on the west side, from McKinley Avenue to a point 50 feet south thereof, no parking any time.

Southwest Thirteenth Street, on the east side, from McKinley Avenue to Hackley Avenue, no parking any time.

Southwest Thirteenth Street, on the west side, from Hackley Avenue to a point 300 feet south thereof, no parking any time.

Southwest Thirteenth Street, on the west side, from Frazier Avenue to Kenyon Avenue, no parking any time.

Southwest Thirteenth Street, on the east side, from Army Post Road to a point 35 feet north thereof, no parking any time.

Southwest Thirteenth Street, on the west side, from Leland Avenue to a point 50 feet south of Army Post road, no parking any time.

Southwest Thirteenth Street, on the west side, from a point 50 feet north of Wade Street to a point 50 feet south of Wade Street, no parking any time.

Southwest Thirteenth Street, on the east side, from Army Post Road to Havens Avenue, no parking any time.

Southwest Thirteenth Street, on the west side, from Amos Avenue to a point 65 feet south thereof, no parking any time.

Southwest Thirteenth Street, on the west side, from Havens Avenue to a point 45 feet north, no parking any time.
(C62, § 30-847; O.8084, 8703; C75, C79, § 27-861; O.9685, 9747, 9849, 9886, 10,263, 10,476, 10,598; C91, § 27-1719; O.11,650; C00, § 114-2744; O.13,893, 14,126, 14,518 (installed 7/7/10, 6/6/12), 16,171, 16,539)

Sec. 114-2745. East Fourteenth Court—East Vine Street to East Grand Avenue.

East Fourteenth Court, on the east side, from East Vine Street to and including the dead end north of East Vine Street, no parking any time.

East Fourteenth Court, on the east side, from Capitol Avenue to East Grand Avenue, two-hour parking 9:00 a.m. to 4:00 p.m.

East Fourteenth Court, on the west side, from Capitol Avenue to East Grand Avenue.
(C62, § 30-848; O.8084; C75, C79, § 27-862; O.10,123, 10,647; C91, § 27-1720; O.11,650, 16,462)

Sec. 114-2746. Southeast Fourteenth Court—Scott Avenue to Hartford Avenue.

Southeast Fourteenth Court, on the west side, from Scott Avenue to Maury Street, no parking any time.

Southeast Fourteenth Court, on the east side, from East Granger Avenue to Hartford Avenue, no parking any time.

Southeast Fourteenth Court, on the west side, from East Granger Avenue to a point 150 feet south thereof, no parking any time.
(C79, § 27-862.01; O.10,123; C91, § 27-1721; O.11,650, 14,371, 14,518 (installed 9/29/11), 16,171, 16,462)

Sec. 114-2747. Fourteenth Place—Woodland Avenue to University Avenue.

Fourteenth Place, on the east side, from Woodland Avenue to Pleasant Street, no parking any time.

Fourteenth Place, on the west side, from Woodland Avenue to a point 50 feet north thereof, no parking any time.

Fourteenth Place, on the west side, from a point 200 feet south of Pleasant Street to a point 150 feet south thereof, no parking any time.

Fourteenth Place, on the west side, from Pleasant Street to a point 50 feet south, no parking any time.

Fourteenth Place, on the east side, from Keosauqua Way to Ascension Street, no parking any time.

Fourteenth Place, on the west side, from Ascension Street to University Avenue, no parking any time.

Fourteenth Place, on the east side, from a point 50 feet south of Enos Avenue to a point 50 feet north of Enos Avenue, no parking any time.

Fourteenth Place, on the east side, from University Avenue to a point 100 feet south thereof, no parking any time.
(C62, § 30-849, O.8084; C75, C79, § 27-863; O.10,123; C91, § 27-1722; O.11,650, 11,774, 11,924, 13,184; C00, § 114-2747, O.14,518 (installed 5/26/21), 16,171)

Sec. 114-2748. Fourteenth Street—Falcon Drive to Grand Avenue.

Fourteenth Street, on the west side, from Walnut Street to a point 145 feet south thereof, no parking any time.

Fourteenth Street, on the east side, from Falcon Drive to Walnut Street, no parking any time.

Fourteenth Street, on both sides, from Walnut Street to Locust Street, no parking any time.
(C62, § 30-850; O.8084, 8147, 8693; C75, C79, C85, § 27-864; O.11,231, 11,248, 11,466; C91, § 27-1723; O.11,650, 13,176, 14,121, 14,542)

Sec. 114-2749. Fourteenth Street—Grand Avenue to Linden Street.

Fourteenth Street, on the east side, from Grand Avenue to Linden Street, no parking any time.
(C62, § 30-851; O.8084; C75, § 27-865; O.9227; C79, § 27-865, O.10,734; C85, § 27-865; O.11,466; C91, § 27-1724; O.11,650, 14,910)

Sec. 114-2750. Fourteenth Street—Linden Street to Ingersoll Avenue.

Fourteenth Street, on the east side, from Linden Street to Ingersoll Avenue, no parking any time.

Fourteenth Street, on the west side, from Linden Avenue to a point 120 feet north thereof, no parking 10:00 p.m. to 7:00 a.m.

Fourteenth Street, on the west side, from Ingersoll Avenue to a point 120 feet north of Linden Street, no parking any time.
(C62, § 30-852; O.8084; C75, § 27-866; O.9227; C79, C85, § 27-866; O.11,466; C91, § 27-1725; O.11,650, 16,045)

Sec. 114-2751. Reserved.

Editor's note—Ord. No. 14,855, § 1, adopted May 18, 2009, repealed § 114-2751, which pertained to Fourteenth Street—High Street to Woodland Avenue and derived from Code 1962, § 30-853; Ord. No. 8084; Code 1975; Code 1979, § 27-867; Code 1991, § 27-1726; Ord. No. 11,650; Ord. No. 11,774.

Sec. 114-2752. Fourteenth Street—Dead end south of Laurel Street to Aurora Avenue.

Fourteenth Street, on the east side, from and including the dead end south of Laurel Street to Carpenter Avenue, no parking any time.

Fourteenth Street, on the west side, from a point 50 feet south of the west leg of Enos Avenue to a point 70 feet north of the west leg of Enos Avenue, no parking any time.

Fourteenth Street, on the west side, from a point 100 feet south of University Avenue to a point 50 feet north thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in subsection 114-616(a) of this chapter.

Fourteenth Street, on the west side, from a point 50 feet south of University Avenue to University Avenue, no parking any time.

Fourteenth Street, on the west side, from Carpenter Avenue to and including the cul-de-sac north thereof, no parking any time.

Fourteenth Street, on the west side, from Forest Avenue to College Avenue, no parking any time.

Fourteenth Street, on the east side, from a point 50 feet south of Norton Avenue to a point 100 feet north of Norton Avenue, no parking any time.

Fourteenth Street, on the west side, from Washington Avenue to Jefferson Avenue, no parking any time.

Fourteenth Street, on the west side, from and including the dead end south of Ovid Avenue to and including the dead end north of Shawnee Avenue, no parking any time.

Fourteenth Street, on the east side, from a point 50 feet south of Euclid Avenue to a point 50 feet north of Euclid Avenue, no parking any time.
(C62, § 30-854; O.8084, 8389; C75, C79, § 27-868; O.10,071, 10,123, 10,418, 10,598; C85, § 27-868; O.11,420; C91, § 27-1727; O.11,650, 13,076, 13,387, 16,418, 16,462)

Sec. 114-2753. East Fourteenth Street—Southeast Fourteenth Street to East Aurora Avenue.

East Fourteenth Street, on both sides, from Southeast Fourteenth Street to East Aurora Avenue, no parking any time.
(C62, § 30-855; O.8084; C75, C79, § 27-869; O.9957; C91, § 27-1728; O.11,650, 16,462)

Sec. 114-2754. Southeast Fourteenth Street—East Fourteenth Street to East County Line Road.

Southeast Fourteenth Street, on both sides, from East fourteenth Street to East County Line Road, no parking any time.
(C62, § 30-856; O.8084; C75, C79, § 27-870; C91, § 27-1729; O.11,650, 16,462)

Sec. 114-2755. Southwest Fourteenth Street—Market Street to Havens Avenue.

Southwest Fourteenth Street, on both sides, from Market Street to Tuttle Street, no parking any time.

Southwest Fourteenth Street, on the east side, from Tuttle Street to Gray's Parkway, no parking any time.

Southwest Fourteenth Street, on the east side, from Creston Avenue to a point 75 feet south thereof, no parking any time.

Southwest Fourteenth Street, on the west side, from Casady Drive to a point 100 feet south of McKinley Avenue, no parking any time.

Southwest Fourteenth Street, on the east side, from a point 210 feet south of Thornton Avenue to Thornton Avenue, no parking any time.

Southwest Fourteenth Street, on the east side, from a point 100 feet north of Park Avenue to a point 100 feet south of Park Avenue, no parking any time.

Southwest Fourteenth Street, on the east side, from Carrie Avenue to a point 150 feet north of Carrie Avenue, no parking any time.

Southwest Fourteenth Street, on the east side, from a point 100 feet north of McKinley Avenue to a point 100 feet south of McKinley Avenue, no parking any time.

Southwest Fourteenth Street, on the east side, from a point 300 feet south of McKinley Avenue to a point 200 feet south thereof, bus loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Southwest Fourteenth Street, on the east side from a point 500 feet south of McKinley Avenue to a point 125 feet south thereof, no stopping or standing 7:00 a.m. to 5:00 p.m. school days.

Southwest Fourteenth Street, on the east side, from a point 625 feet south of McKinley Avenue to Hackley Avenue, passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Southwest Fourteenth Street, on the west side, from a point 100 feet south of McKinley Avenue to Hackley Avenue, no stopping or standing.

Southwest Fourteenth Street, on the west side, from Hackley Avenue to a point 150 feet north of Army Post Road, no parking any time.

Southwest Fourteenth Street, on the east side, from a point 75 feet north of Cutler Avenue to a point 100 feet north of Kenyon Avenue, no parking any time.

Southwest Fourteenth Street, from Payton Avenue to a point 135 feet north of Payton Avenue, no parking any time.

Southwest Fourteenth Street, on both sides, from Army Post Road to a point 150 feet north thereof, no stopping or standing.

Southwest Fourteenth Street, on the west side, from Army Post Road to a point 200 feet south thereof, no stopping or standing.

Southwest Fourteenth Street, on the west side, from a point 200 feet south of Army Post Road to a point 275 feet south thereof, passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Southwest Fourteenth Street, on the west side, from a point 475 feet south of Army Post Road to Geil Street, bus loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Southwest Fourteenth Street, on the east side, from Army Post Road to Geil Street, no stopping or standing.

Southwest Fourteenth Street, on the east side, from Geil Street to Havens Avenue, no parking any time.
(C62, § 30-857; O.8084, 8109, 8286, 8412, 8839, 8851; C75, § 27-871; O.9593; C79, § 27-871; O.9693, 10,111, 10,190, 10,207; C91, § 27-1730; O.11,650, 11,908, 12,036, 13,369, 13,958, 15,328, 16,539)

Sec. 114-2756. Southeast Fifteenth Court—East Vine Street to dead end south of East Watrous Avenue.

Southeast Fifteenth Court, on the west side, from East Vine Street to a point 420 feet south thereof, no parking any time.

Southeast Fifteenth Court, on the west side, from Scott Avenue to Maury Street, no parking any time.

Southeast Fifteenth Court, on the east side, from East Rose Avenue to a point 50 feet south thereof, no parking any time.

Southeast Fifteenth Court, on the west side, from East Rose Avenue to a point 1300 feet south of East Watrous Avenue, no parking any time.
(C79, § 27-871.01; O.9886, 10,123, 10,162, 10,412, 10,434, 10,476; C91, § 27-1731; O.11,650, 16,462)

Sec. 114-2757. Fifteenth Place—Keosauqua Way to Carpenter Avenue.

Fifteenth Place, on the west side, from University Avenue to Carpenter Avenue, no parking any time.
(C62, § 30-858; O.8084; C75, C79, § 27-872; C91, § 27-1732; O.11,650)

Sec. 114-2757.01. Fifteenth Street—Mulberry Street to Sixteenth Street.

Fifteenth Street, on both sides, from Mulberry Street to Sixteenth Street, no parking any time.
(O.15,240)

Sec. 114-2758. Reserved.

Editor's note—Ord. No. 16,397, § 1, adopted Oct. 21, 2024, repealed § 114-2758, which pertained to Fifteenth Street—Mulberry Street to Walnut Street and derived from Code 1962, § 30-858.01; Ord. No. 8478; Code 1975, § 27-872.01; Ord. No. 9120; Code 1979, § 27-872.01; Ord. No. 10,085; Ord. No. 10,144; Ord. No. 10,580; Code 1991, § 27-1733; Ord. No. 11,650; Code 2000, § 114-2758; Ord. No. 14,518 (installed 5/30/13); Ord. No. 14,876; Ord. No. 14,910; Ord. No. 15,240; Ord. No. 16,171.

Sec. 114-2759. Fifteenth Street—Walnut Street to Ingersoll Avenue.

Fifteenth Street, on the west side, from Walnut Street Ingersoll Avenue, no parking any time.

Fifteenth Street, on the east side, from Grand Avenue to Ingersoll Avenue, no parking any time.
(C62, § 30-859; O.8084; C75, § 27-873; O.9158, 9227, 9292; C79, § 27-873; O.10,085; C85, § 27-873; O.10,947, 11,279, 11,466, 11,561; C91, § 27-1734; O.11,650, 11,810, 11,904; C00, § 114-2759;

O.14,354, 14,449, 14,518 (installed 8/14/13), 14,542, 14,550, 14,861, 14,876, 14,910, 15,240, 16,171, 16,397)

Sec. 114-2760. Fifteenth Street—Ingersoll Avenue to dead end north of Shawnee Avenue.

Fifteenth Street, on the west side, from Ingersoll Avenue to High Street, no parking any time.

Fifteenth Street, on the east side, from Ingersoll Avenue to High Street, no parking any time.

Fifteenth Street, on both sides, from High Street to a point 50 feet north thereof, no parking any time.

Fifteenth Street, on both sides, from Woodland Avenue to a point 50 feet south thereof, no parking any time.

Fifteenth Street, on the west side, from Woodland Avenue to a point 50 feet north thereof, no parking any time.

Fifteenth Street, on the east side, from Woodland Avenue to Crocker Street, no parking any time.

Fifteenth Street, on the west side, from Bridal Row to a point 25 feet north and south thereof, no parking any time.

Fifteenth Street, on the west side, from a point 50 feet south of Pleasant Street to a point 50 feet north of Pleasant Street, no parking any time.

Fifteenth Street, on the west side, from a point 50 feet south of Park Street to School Street, no parking any time.

Fifteenth Street, on the east side, from Crocker Street to a point 345 feet north thereof, no parking 10:00 p.m. to 7:00 a.m.

Fifteenth Street, on the east side, from a point 345 feet north of Crocker Street to Oakridge Drive, no parking any time.

Fifteenth Street, on the east side, from a point 170 feet north of Enos Avenue to a point 100 feet north thereof, commercial loading zone.

Fifteenth Street, on the east side, from University Avenue to a point 150 feet north thereof, no parking any time.

Fifteenth Street, on the west side, from University Avenue to Carpenter Avenue, no parking any time.

Fifteenth Street, on the east side, from Carpenter Avenue to a point 40 feet south thereof, no parking any time.

Fifteenth Street, on the east side, from Douglas Avenue to Shawnee Avenue, no parking any time.

Fifteenth Street, on the west side, from Seneca Avenue to a point 50 feet south thereof, no parking any time.

Fifteenth Street, on the west side, from a point 50 feet south of Shawnee Avenue to a point 550 feet north of Shawnee Avenue to and including any part of the cul-de-sac, no parking any time.

Fifteenth Street, on the east side, from Shawnee Avenue to a point 50 feet north thereof, no parking any time.
(C62, § 30-860; O.8084, 8187, 8287, 8478, 8520; C75, § 27-874; O.9021, 9128, 9389; C79, § 27-874; O.10,044, 10,057, 10,638; C91, § 27-1735; O.11,650, 11,663, 11,828, 11,892; C00, § 114-2760; O.14,012, 14,298, 14,404, 14,467, 14,518 (installed 10/27/16, 5/21/19, 1/5/22), 14,592, 14,861, 15,110, 15,947, 16,013, 16,171)

Sec. 114-2761. East Fifteenth Street—East Vine Street to East Ovid Avenue.

East Fifteenth Street, on the east side, from East Vine Street to East Court Avenue, no parking any time.

East Fifteenth Street, on the west side, from East Court Avenue to Dean Avenue, no parking any time.

East Fifteenth Street, on both sides, from Dean Avenue north to Johnson Court, no parking any time.

East Fifteenth Street, on the west side, from Maple Street to Walker Street, no parking any time.

East Fifteenth Street, on the west side, from East University Avenue to a point 140 feet north thereof, passenger loading and unloading.

East Fifteenth Street, on the west side, from a point 140 feet north of East University Avenue to a point 140 feet north thereof, bus loading and unloading.

East Fifteenth Street, on the west side, from a point 280 feet north of East University Avenue to 50 feet south of Garfield Avenue, passenger loading and unloading.

East Fifteenth Street, on the east side, from East University Avenue to a point 50 feet south of Garfield Avenue, no parking 7:00 a.m. to 5:00 p.m. school days.

East Fifteenth Street, on the east side, from a point 50 feet south of Garfield Avenue to a point 75 feet north of Garfield Avenue, no parking any time.

East Fifteenth Street, on the west side, from a point 50 feet south of Garfield Avenue to Cleveland Avenue, no parking any time.

East Fifteenth Street, on the east side, from a point 50 feet south of Cleveland Avenue Cleveland Avenue, no parking any time.

East Fifteenth Street, on the west side, from Cleveland Avenue to East Washington Avenue, no parking any time.

East Fifteenth Street, on the west side, from Alpha Avenue to Guthrie Avenue, no parking any time.

East Fifteenth Street, on the west side, from Hull Avenue to East Ovid Avenue, no parking any time.

East Fifteenth Street, on the east side, from Hull Avenue to a point 50 feet north thereof, no parking any time.

East Fifteenth Street, on the east side, from a point 50 feet south of Richmond Avenue to Richmond Avenue, no parking any time.
(C62, § 30-861; O.8084; C75, § 27-875; O.9219, 9524, 9574; C79, § 27-875; O.10,123, 10,292, 10,598; C91, § 27-1736; O.11,650, 11,860; C00, § 114-2761; O,13,908, 14,518 (installed 1/24/07, 11/4/13, 4/2/18), 15,165, 15,899, 16,171, 16,462, 16,511)

Sec. 114-2762. Southeast Fifteenth Street—East Vine Street to dead end south of East Watrous Avenue.

Southeast Fifteenth Street, on the east side, from East Vine Street to and including the dead end south of East Vine Street, no parking any time.

Southeast Fifteenth Street, on both sides, from East Martin Luther King Jr Parkway to Scott Avenue, no parking any time.

Southeast Fifteenth Street, on the east side, from Scott Avenue to Harriett Street, no parking any time.

Southeast Fifteenth Street, on the west side, from East Granger Street to Hartford Avenue, no parking any time.

Southeast Fifteenth Street, on the east side, from a point 140 feet north of East Rose Avenue to East Watrous Avenue, no parking any time.

Southeast Fifteenth Street, on the east side, from East Watrous Avenue to a point 800 feet south and any part of the cul-de-sac, no parking any time.
(C79, § 27-875.01; O.9886, 9957, 10,123; C91, § 27-1737; O.11,650, 15,387, 16,462)

Sec. 114-2763. Southwest Fifteenth Street—Emma Avenue to Havens Avenue.

Southwest Fifteenth Street, on the west side, from Emma Avenue to McKinley Avenue, no parking any time.

Southwest Fifteenth Street, on the east side, from Evans Street to Southwest Sixteenth Street, no parking any time.

Southwest Fifteenth Street, on the east side, from Kenyon Avenue to Porter Avenue, no parking any time.

Southwest Fifteenth Street, on the west side, from Burnham Street to a point 75 feet north thereof, no parking any time.

Southwest Fifteenth Street, on the east side, from Geil Street to Havens Avenue, no parking any time.
(C62, § 30-862; O.8084; C75, § 27-876; O.9012; C79, § 27-876; O.9685, 9886, 10,216; C91, § 27-1738; O.11,650)

Sec. 114-2764. East Sixteenth Court—East Vine Street to Dean Avenue.

East Sixteenth Court, on the east side, from East Vine Street to East Court Avenue, no parking any time.

East Sixteenth Court, on the west side, from Redhead Road to Dean Avenue, no parking any time.
(C75, § 27-876.01; O.9349; C79, § 27-876.01; O.10,123; C85, § 27-876.01; O.11,216; C91, § 27-1739; O.11,650)

Sec. 114-2765. Southeast Sixteenth Court—Indianola Avenue to East Army Post Road.

Southeast Sixteenth Court, on the east side, from Indianola Avenue to East Leach Avenue, no parking any time.

Southeast Sixteenth Court, on the west side, from Indianola Avenue to a point 50 feet south thereof, no parking any time.

Southeast Sixteenth Court, on the west side, from East Leach Avenue to a point 50 feet north thereof, no parking any time.

Southeast Sixteenth Court, on the east side, from East Army Post Road to a point 1,400 feet north thereof, no parking any time.
(C91, § 27-1739.05; O.11,737, 13,260)

Sec. 114-2766. Southwest Sixteenth Place—Southwest Sixteenth Street to Frazier Avenue.

Southwest Sixteenth Place, on the west side, from Southwest Sixteenth Street to Frazier Avenue, no parking any time.
(C79, § 27-876.02; O.9886; C91, § 27-1740; O.11,650)

Sec. 114-2767. Sixteenth Street—West Martin Luther King Jr Parkway to Ingersoll Avenue.

Sixteenth Street, on the west side, from West Martin Luther King Jr Parkway to Locust Street, no parking any time.

Sixteenth Street, on the east side from West Martin Luther King Jr Parkway to a point 100 feet north of Fifteenth Street, no parking any time.

Sixteenth Street, on the east side, from a point 25 feet north of Walnut Street to a point 15 feet south of Walnut Street, no parking any time.

Sixteenth Street, on the east side, from a point 122 feet north of Walnut Street to a point 80 feet north thereof, no parking any time.

Sixteenth Street, on the east side, from Locust Street to a point 10 feet south thereof, no parking any time.

Sixteenth Street, on the west side, from Grand Avenue to a point 30 feet north thereof, no parking any time.

Sixteenth Street, on the east side, from Grand Avenue to a point 50 feet north thereof, no parking any time.

Sixteenth Street, on the west side, from Ingersoll Avenue to a point 60 feet south thereof, no parking any time.

Sixteenth Street, on the east side, from Ingersoll Avenue to a point 75 feet south thereof, no parking any time.
(C62, § 30-863; O.8084; C75, § 27-877; O.8981, 9021, 9209; C79, § 27-877; O.9686, 9714, 10,035, 10,373, 10,540, 10,582, 10,734; C85, § 27-877; O.11,466, 11,522; C91, § 27-1741; O.11,650, 13,245, 13,295, 13,306, 13,544, 14,542, 15,240, 15,534, 16,045, 16,221)

Sec. 114-2768. Sixteenth Street—High Street to Shawnee Avenue.

Sixteenth Street, on the west side, from High Street to a point 155 feet north of Woodland Avenue, no parking any time.

Sixteenth Street, on the east side, from Woodland Avenue to Pleasant Street, no parking any time.

Sixteenth Street, on the east side, from Day Street to Atkins Street, no parking any time.

Sixteenth Street, on the east side, from a point 120 feet north of Pleasant Street to a point 30 feet north thereof, commercial loading zone.

Sixteenth Street, on the west side, from Forest Avenue to a point 50 feet north thereof, no parking any time.

Sixteenth Street, on the west side, from Clark Street to a point 50 feet north thereof, no parking any time.

Sixteenth Street, on the west side, from Lynn Street to a point 50 feet north thereof, no parking any time.

Sixteenth Street, on the east side, from Lynn Street to Jefferson Avenue, no parking any time.

Sixteenth Street, on the west side, from a point 50 feet south of College Avenue to a point 50 feet north of College Avenue, no parking any time.

Sixteenth Street, on the west side, from 100 feet south of Mondamin Avenue to Mondamin Avenue, no parking 8:00 a.m. to 1:00 p.m. Sundays.

Sixteenth Street, on the east side from Jefferson Avenue to a point 55 feet north thereof, no parking any time.

Sixteenth Street, on the east side, from a point 55 feet north of Jefferson Avenue to a point 195 feet north thereof, passenger loading and unloading.

Sixteenth Street, on the east side, from a point 250 feet north of Jefferson Avenue to a point 150 feet north thereof, bus loading and unloading.

Sixteenth Street, on the east side, from a point 400 feet north of Jefferson Avenue to Hickman Road, no parking any time.

Sixteenth Street, on the west side, from a point 50 feet south of Jefferson Avenue to a point 50 feet north of Jefferson Avenue, no parking any time.

Sixteenth Street, on the west side, from a point 50 feet north of Jefferson Avenue to a point 50 feet south of Franklin Avenue, no parking 7:00 a.m. to 5:00 p.m. school days.

Sixteenth Street, on the west side, from a point 50 feet south of Franklin Avenue to a point 50 feet north of Franklin Avenue, no parking any time.

Sixteenth Street, on the east side, from Oak Park Avenue to Euclid Avenue, no parking any time.

Sixteenth Street, on the west side, from Euclid Avenue to Madison Avenue, no parking any time. (C62, § 30-864; O.8084, 8097, 8250; C75, § 27-878; O.9332; C79, § 27-878; O.9693, 9849, 9886, 10,018, 10,123, 10,399, 10,421; C85, § 27-878; O.11,379, 11,422; C91, § 27-1742; O.11,650; C00, § 114-2768; O.13,874, 14,322, 14,518 (installed 7/22/13), 14,939, 15,287, 16,171)

Sec. 114-2769. East Sixteenth Street—East Vine Street to East Aurora Avenue.

East Sixteenth Street, on the west side, from East Vine Street to East Walnut Street, no parking any time.

East Sixteenth Street, on the east side, from a point 125 feet south of East Court Avenue to a point 25 feet north thereof, is designated a handicapped parking space, and is subject to the same prohibition as is found in subsection 114-616(a) of this chapter.

East Sixteenth Street, on both sides, from a point 75 feet south of East Walnut Street to a point 75 feet north of East Walnut Street, no parking any time.

East Sixteenth Street, on the west side, from East Walnut Street to Capitol Avenue, no parking 7:00 a.m. to 5:00 p.m. school days.

East Sixteenth Street, on the east side, from East Grand Avenue to a point 60 feet south thereof, no parking any time.

East Sixteenth Street, on the west side, from East Grand Avenue to a point 45 feet south thereof, no parking any time.

East Sixteenth Street, on the east side, from a point 60 feet south of East Grand Avenue to a point 115 feet south thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

East Sixteenth Street, on the west side, from East Grand Avenue to Lyon Street, no parking any time.

East Sixteenth Street, on the east side, from East Grand Avenue to a point 50 feet north thereof, no parking any time.

East Sixteenth Street, on the east side, from a point 50 feet north of East Grand Avenue to a point 110 feet north thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

East Sixteenth Street, on the west side, from Maple Street to a point 75 feet north thereof, is designated a handicapped parking space, and is subject to the same prohibition as is found in subsection 114-616(a) of this chapter.

East Sixteenth Street, on the east side, from Maple Street to Walker Street, no parking any time.

East Sixteenth Street, on the west side, from Walker Street to East University Avenue, no parking any time.

East Sixteenth Street, on the west side, from East University Avenue to a point 50 feet north thereof, no parking any time.

East Sixteenth Street, on the east side, from a point 50 feet south of East University Avenue to a point 100 feet north of East University Avenue, no parking any time.

East Sixteenth Street, on the west side, from Cleveland Avenue to East Washington Avenue, no parking any time.

East Sixteenth Street, on the east side, from Alpha Avenue to Milton Avenue, no parking any time.

East Sixteenth Street, on the west side, from a point 50 feet south of Guthrie Avenue to a point 50 feet north of Guthrie Avenue, no parking any time.

East Sixteenth Street, on the west side, from Milton Avenue to Hull Avenue, no parking any time.

East Sixteenth Street, on the east side, from Hull Avenue to a point 50 feet south thereof, no parking any time.

East Sixteenth Street, on the east side, from a point 200 feet south of Hull Avenue to a point 200 feet south thereof, no parking any time.

East Sixteenth Street, on the east side, from East Fleming Avenue to East Aurora Avenue, no parking any time.
(C62, § 30-865; O.8084, 8158, 8510, 8554, 8674, 8703; C75, § 27-879; O.9069, 9106, 9513; C79, § 27-879; O.9693, 9849, 10,123, 10,476, 10,598, 10,728; C91, § 27-1743; O.11,650, 11,742, 13,725; C00, § 114-2769; O.14,518 (installed 7/5/17), 15,242, 15,723, 16,171)

Sec. 114-2770. Southeast Sixteenth Street—East Leach Avenue to East Emma Avenue.

Southeast Sixteenth Street, on the west side, from East Leach Avenue to East Emma Avenue, no parking any time.
(C79, § 27-879.01; O.10,123; C85, § 27-879.01; O.11,302; C91, § 27-1744; O.11,650, 16,462)

Sec. 114-2771. Southwest Sixteenth Street—West Martin Luther King Jr Parkway to Johnson Street.

Southwest Sixteenth Street, on the east side, from West Martin Luther King Jr Parkway to Wabash Street, no parking any time.

Southwest Sixteenth Street, on the west side, from Wabash Street to a point 50 feet north thereof, no parking any time.

Southwest Sixteenth Street, on the east side, from Lewis Avenue to Hackley Avenue, no parking any time.

Southwest Sixteenth Street, on the west side, from Wakonda Parkway to a point 50 feet south thereof, no parking any time.

Southwest Sixteenth Street, on the west side, from McKinley Avenue to appoint 70 feet south thereof, no parking any time.

Southwest Sixteenth Street, on the west side, from McKinley Avenue to a point 50 feet north thereof, no parking any time.

Southwest Sixteenth Street, on the west side, from Kenyon Avenue to Porter Avenue, no parking any time.

Southwest Sixteenth Street, on the west side, from Army Post Road to a point 35 feet south thereof, no parking any time.

Southwest Sixteenth Street, on the east side, from Army Post Road to Southwest Seventeenth Street, no parking any time.

Southwest Sixteenth Street, on the west side, from Burnham Street to a point 200 feet south thereof, no parking any time.
(C62, § 30-866; O.8084, 8152, 8738; C75, § 27-880; O.9607; C79, § 27-880; O.9685, 9886, 10,008; C91, § 27-1745; O.11,650; C00, § 114-2771; O.14,518 (installed 10/8/15, 4/29/22), 14,542, 16,171)

Sec. 114-2772. Southeast Seventeenth Court—Indianola Avenue to East Emma Avenue.

Southeast Seventeenth Court, on the east side, from Indianola Avenue to a point 140 feet south thereof, no parking any time.

Southeast Seventeenth Court, on the west side, from Indianola Avenue to East Emma Avenue, no parking any time.
(C85, § 27-880.001; O.11,302; C91, § 27-1746; O.11,650; C00, § 114-2772; O.14,518 (installed 7/22/13, 12/3/18), 16,171)

Sec. 114-2773. East Seventeenth Court—Walker Street to Mattern Avenue.

East Seventeenth Court, on the east side, from Walker Street to East Washington Avenue, no parking any time.

East Seventeenth Court, on the west side, from Kinsey Avenue to a point 50 feet south thereof, no parking any time.

East Seventeenth Court, on the west side, from a point 50 feet south of East University Avenue to a point 50 feet north of East University Avenue, no parking any time.
(C62, § 30-868.01; O.8761; C75, § 27-880.01; O.9219, 9306; C79, § 27-880.01; O.10,476, 10,598; C91, § 27-1747; O.11,650, 13,813)

Sec. 114-2774. Seventeenth Street—Locust Street to Ingersoll Avenue.

Seventeenth Street, on the west side, from Locust Street to a point 95 feet north thereof, no parking any time.

Seventeenth Street, on the west side, from Grand Avenue to a point 95 feet south thereof, no parking any time.

Seventeenth Street, on the west side, from Grand Avenue to a point 145 feet south of Ingersoll Avenue, no parking any time.

Seventeenth Street, on the west side, from Ingersoll Avenue to a point 45 feet south thereof, no parking any time.

Seventeenth Street, on the east side, from Locust Street to Ingersoll Avenue, no parking any time.
(C62, § 30-867; O.8084; C75, § 27-881; O.9292; C79, C85, § 27-881; O.11,278, 11,420, 11,466; C91, § 27-1748; O.11,650, 13,544, 14,662, 14,910, 15,263, 15,369, 16,379, 16,491)

Sec. 114-2775. Seventeenth Street—Ingersoll Avenue to Douglas Avenue.

Seventeenth Street, on the west side, from Ingersoll Avenue to Woodland Avenue, no parking any time.

Seventeenth Street, on the east side, from a point 100 feet north of Ingersoll Avenue to Woodland Avenue, two-hour parking, 9:00 a.m. to 4:00 p.m., Monday through Saturday.

Seventeenth Street, on the east side, from Crocker Street to a point 75 feet south thereof, no parking any time.

Seventeenth Street, on the west side, from Day Street to University Avenue, no parking any time.

Seventeenth Street, on the west side, from Forest Avenue to College Avenue, no parking any time.
(C62, § 30-868; O.8084, 8858; C75, § 27-882; O.9001; C79, § 27-882; O.9640, 9747; C91, § 27-1749; O.11,650, 11,742, 14,533, 15,947, 16,408)

Sec. 114-2776. East Seventeenth Street—Dean Avenue to East Aurora Avenue.

East Seventeenth Street, on the west side, from Dean Avenue to Lyon Street, no parking any time.

East Seventeenth Street, on the east side, from a point 50 feet south of East Walnut Street to a point 50 feet north of East Walnut Street, no parking any time.

East Seventeenth Street, on the east side, from a point 50 feet south of Capitol Avenue to a point 50 feet north of Capitol Avenue, no parking any time.

East Seventeenth Street, on the east side, from a point 75 feet south of East Grand Avenue to a point 100 feet north of East Grand Avenue, no parking any time.

East Seventeenth Street, on the east side, from Walker Street to East University Avenue, no parking any time.

East Seventeenth Street, on the west side, from a point 50 feet south of East University Avenue to a point 100 feet north of East University Avenue, no parking any time.

East Seventeenth Street, on the east side, from East University Avenue to a point 50 feet north thereof, no parking any time.

East Seventeenth Street, on the west side, from Garfield Avenue to East Washington Avenue, no parking any time.

East Seventeenth Street, on the east side, from East Washington Avenue to Guthrie Avenue, no parking any time.

East Seventeenth Street, on the east side, from East Madison Avenue to East Aurora Avenue, no parking any time.
(C62, § 30-869; O.8084, 8767; C75, § 27-883; O.9155, 9234, 9464; C79, § 27-883; O.10,123, 10,598; C85, § 27-883; O.10,890, 11,024, 11,395; C91, § 27-1750; O.11,650, 13,115; C00, § 114-2776; O.14,518 (installed 1/26/22), 16,171, 16,271, 16,334)

Sec. 114-2777. Southeast Seventeenth Street—Pioneer Road to East Park Avenue.

Southeast Seventeenth Street, on the east side, from King Avenue to East Park Avenue, no parking any time.

Southeast Seventeenth Street, on the west side, from East Glenwood Drive to a point 75 feet south thereof, no parking any time.

Southeast Seventeenth Street, on the west side, from East Virginia Avenue to East Pleasant View Drive, no parking any time.
(C91, § 28-1750; O.13,621; C00, § 114-2777; O.13,621, 14,518 (installed 7/1/20), 15,456, 16,171, 16,462)

Sec. 114-2778. Southeast Seventeenth Street—East Leach Avenue to East Emma Avenue.

East Seventeenth Street, on the east side, from East Leach Avenue to East Emma Avenue, no parking any time.
(C85, § 27-883.01; O.11,302; C91, § 27-1751; O.11,650, 13,354, 15,456)

Sec. 114-2779. Southwest Seventeenth Street—West Martin Luther King Jr Parkway to Havens Avenue.

Southwest Seventeenth Street, on the west side, from West Martin Luther King Jr Parkway to Wabash Street, no parking any time.

Southwest Seventeenth Street, on the west side, from Evans Street to Frazier Avenue, no parking any time.

Southwest Seventeenth Street, on both sides, from Army Post Road to a point 35 feet south thereof, no parking any time.

Southwest Seventeenth Street, on the east side, from a point 35 feet south of Army Post Road to Havens Avenue, no parking any time.

Southwest Seventeenth Street, on the west side, from Johnson Street to Amos Avenue, no parking any time.
(C62, § 30-870; O.8084; C75, C79, § 27-884; O.9886, 10,402; C91, § 27-1752; O.11,650, 14,542)

Sec. 114-2780. Southeast Eighteenth Court—Dead end north of East Lacona Avenue to East Maish Avenue.

Southeast Eighteenth Court, on the west side, from and including the cul-de-sac north of East Lacona Avenue to King Avenue, no parking any time.

Southeast Eighteenth Court, on the east side, from a point 50 feet north of King Avenue to King Avenue, no parking any time.

Southeast Eighteenth Court, on both sides, from East Park Avenue to a point 75 feet south thereof, no parking any time.

Southeast Eighteenth Court, on both sides, from Evergreen Avenue to East Thornton Avenue, no parking any time.

Southeast Eighteenth Court, on the west side, East Thornton Avenue to East Maish Avenue, no parking any time.
(C79, § 27-884.01; O.10,123; C91, § 27-1753; O.11,650, 13,239, 13,548; C00, § 114-2838; O.14,087, 14,518 (installed 6/18/18), 15,732, 16,171, 16,293)

Sec. 114-2781. Eighteenth Street—Locust Street to Ingersoll Avenue.

Eighteenth Street, on the east side, from a point 100 feet north of Grand Avenue to a point 40 feet north thereof, commercial loading zone, 8:00 a.m. to 6:00 p.m., Monday through Saturday.
(C62, § 30-871; O.8084, 8250, 8484, 8832; C75, § 27-885; O.9581; C79, § 27-885; O.9714, 10,162; C91, § 27-1755; O.11,650, 14,987, 15,213, 15,974, 16,255, 16,293, 16,491)

Sec. 114-2782. Eighteenth Street—Woodland Avenue to Hickman Road.

Eighteenth Street, on the east side, from Carpenter Avenue to Forest Avenue, no parking any time.

Eighteenth street, on the west side, from a point 285 feet north of Clark Street to a point 25 feet north thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in subsection 114-616(a) of this chapter.

Eighteenth Street, on the east side, from Clark Street to College Avenue, no parking any time.

Eighteenth Street, on the west side, from Franklin Avenue to Hickman Road, no parking any time.

Eighteenth Street, on the east side, from Hickman Road to a point 75 feet south thereof, no parking any time.
(C62, § 30-872; O.8084, 8730; C75, § 27-886; O.9234; C79, § 27-886; O.10,123; C85, § 27-886; O.11,278; C91, § 27-1756; O.11,650, 15,934, 16,121)

Sec. 114-2783. East Eighteenth Street—Southeast Eighteenth Street north to Kinsey Avenue.

East Eighteenth Street, on both sides, from Southeast Eighteenth Street north to East Grand Avenue, no parking any time.

East Eighteenth Street, on the east side, from the dead end south of Des Moines Street to Maple Street, no parking any time.

East Eighteenth Street, on the west side, from Easton Boulevard to Kinsey Avenue, no parking any time.

East Eighteenth Street, on the east side, from Easton Boulevard to a point 100 feet north thereof, no parking any time.
(C62, § 30-873; O.8084; C75, § 27-887; O.9219; C79, § 27-887; O.9697, 10,123; C85, § 27-887; O.11,082; C91, § 27-1757; O.11,650, 11,941, 14,360, 16,327, 16,462)

Sec. 114-2784. Southeast Eighteenth Street—East Vine Street to East Maish Avenue.

Southeast Eighteenth Street, on both sides, from East Vine Street to Maury Street, no parking any time.

Southeast Eighteenth Street, on the west side, from and including the cul-de-sac north of East Lacona Avenue to King Avenue, no parking any time.

Southeast Eighteenth Street, on the east side, from a point 650 feet south of East Lacona Avenue to King Avenue, no parking any time.

Southeast Eighteenth Street, on the east side, from East Thornton Avenue to East Maish Avenue, no parking any time.
(C62, § 30-874; O.8084; C75, C79, § 27-888; O.10,123; C91, § 27-1758; O.11,650, 13,239, 14,404, 15,756)

Sec. 114-2785. Southwest Eighteenth Street—Dead end north of Pleasant View Drive to Army Post Road.

Southwest Eighteenth Street, on the east side, from a point 160 feet north of Pleasant View Drive and any part of the cul-de-sac to Park Avenue, no parking any time.

Southwest Eighteenth Street, on the east side, from McKinley Avenue to a point 50 feet south thereof, no parking any time.

Southwest Eighteenth Street, on the west side, from McKinley Avenue to Porter Avenue, no parking any time.

Southwest Eighteenth Street, on the east side, from Porter Avenue to Payton Avenue, no parking any time.

Southwest Eighteenth Street, on the east side, from Leland Avenue to Army Post Road, no parking any time.

Southwest Eighteenth Street, on the west side, from Army Post Road to a point 35 feet north thereof, no parking any time.
(C62, § 30-875; O.8084, 8836; C75, C79, § 27-889; O.9849, 9886, 10,096, 10,111; C91, § 27-1759; O.11,650)

Sec. 114-2786. East Nineteenth Court—Dean Avenue to East Walnut Street.

East Nineteenth Court, on the east side, from Dean Avenue to East Walnut Street, no parking any time.
(C79, § 27-889.01; O.10,123; C91, § 27-1760; O.11,650)

Sec. 114-2787. Nineteenth Place—Center Street to dead end north of Olive Avenue.

Nineteenth Place, on both sides, from Center Street to Crocker Street, no parking any time.

Nineteenth Place, on the east side, from a point 65 feet south of Cottage Grove Avenue to a point 40 feet south thereof, commercial loading zone.

Nineteenth Place, on both sides, from Olive Avenue to a point 150 feet north thereof, no parking any time.
(C62, § 30-876; O.8084; C75, C79, § 27-890; O.10,123; C91, § 27-1761; O.11,650, 15,681)

Sec. 114-2788. Nineteenth Street—Grand Avenue to Woodland Avenue.

Nineteenth Street, on both sides, from Grand Avenue to the alley north of High Street, no parking any time.

Nineteenth Street, on the west side, from the alley north of High Street to Woodland Avenue, no parking any time.

Nineteenth Street, on the east side, from Woodland Avenue to a point 25 feet south thereof, no parking any time.
(C62, § 30-877; O.8084; C75, C79, § 27-891; C91, § 27-1762; O.11,650, 14,381)

Sec. 114-2789. Nineteenth Street—Woodland Avenue to University Avenue.

Nineteenth Street, on the east side, from Woodland Avenue to Cottage Grove Avenue, no parking any time.

Nineteenth Street, on the west side, from Woodland Avenue to a point 75 feet north thereof, no parking any time.

Nineteenth Street, on the west side, from a point 75 feet south of Pleasant Street to a point 75 feet north of Pleasant Street, no parking any time.

Nineteenth Street, on the east side, from Pleasant Street to a point 60 feet south thereof, two-hour parking.

Nineteenth Street, on the west side, from a point 75 feet south of Center Street to a point 75 feet north of Center Street, no parking any time.

Nineteenth Street, on the west side, from Leyner Street to a point 50 feet north, no parking any time.

Nineteenth Street, on the west side, from a point 100 feet south of the west leg of Crocker Street to Cottage Grove Avenue, no parking any time.

Nineteenth Street, on the east side, from Cottage Grove Avenue to University Avenue, no parking any time.

Nineteenth Street, on the west side, from Cottage Grove Avenue to Day Street, no parking any time.

Nineteenth Street, on the west side, from Day Street to a point 200 feet north thereof, no parking any time.

Nineteenth Street, on the west side, from University Avenue to a point 130 feet south thereof, no parking any time.
(C62, § 30-878; O.8084; C75, C79, § 27-892; C91, § 27-1763; O.11,650; C00, § 114-2789; O.13,933; 13,997, 14,518 (installed 12/15/05, 7/17/13, 3/8/16), 14,556, 15,140, 16,171, 16,174, 16,370)

Sec. 114-2790. Nineteenth Street—University Avenue to Washington Avenue.

Nineteenth Street, on the west side, from University Avenue to a point 75 feet south of Carpenter Avenue, no parking 1:00 p.m. Sunday through 1:00 a.m. the following Sunday.

Nineteenth Street, on the west side, from a point 75 feet south of Carpenter Avenue to Washington Avenue, no parking any time.

Nineteenth Street, on the east side, from University Avenue to Forest Avenue, no parking any time.

Nineteenth Street, on the east side, from Forest Avenue to Clark Street, no stopping or standing.

Nineteenth Street, on the east side, from Clark Street to Washington Avenue, no parking any time.
(C62, § 30-879; O.8084, 8572, 8858; C75, C79, § 27-893; C91, § 27-1764; O.11,650)

Sec. 114-2791. East Nineteenth Street—East Court Avenue to Guthrie Avenue.

East Nineteenth Street, on the east side, from Dean Avenue to Walker Street, no parking any time.

East Nineteenth Street, on the west side, from Avenue Frederick M. Hubbell to a point 100 feet north thereof, no parking any time.

East Nineteenth Street, on the west side, from Walker Street to a point 150 feet south thereof, no parking any time.

East Nineteenth Street, on both sides, from Walker Street to a point 275 feet north thereof, no parking any time.

East Nineteenth Street, on the west side, from Easton Boulevard to East Washington Avenue, no parking any time.

East Nineteenth Street, on the east side, from Easton Boulevard to a point 50 feet north thereof, no parking any time.
(C62, § 30-880; O.8084; C75, § 27-894; O.9219, 9566, C79, § 27-894; O.9957, 10,123; C91, § 27-1765; O.11,650, 13,218, 14,518 (installed 4/16/21), 16,171)

Sec. 114-2792. Southeast Nineteenth Court—Park Avenue to Bloomfield Road.

Southeast Nineteenth Court, on the east side, from the south intersection of Southeast Nineteenth Street to the north intersection of Southeast Nineteenth Street, no parking any time.

Southeast Nineteenth Court, on the south and east sides, from East Luster Lane to Bloomfield Road, no parking any time.
(C91, § 27-1765.05; O.13,139, 15,590)

Sec. 114-2793. Southeast Nineteenth Street—East Market Street to East Park Avenue.

Southeast Nineteenth Street, on the west side, from East Market Street to Scott Avenue, no parking any time.

Southeast Nineteenth Street, on the east side, from East Lacona Avenue north to and including the cul-de-sac, no parking any time.

Southeast Nineteenth Street, on the west side, from East Bell Avenue to East Creston Avenue, no parking any time.

Southeast Nineteenth Street, on the west side, from King Avenue to a point 50 feet south thereof, no parking any time.
(C79, § 27-894.01; O.10,123; C91, § 27-1766; O.11,650, 14,404, 14,518 (installed 11/2/18), 16,171)

Sec. 114-2794. Southeast Nineteenth Street—East Park Avenue to Southeast Nineteenth Court.

Southeast Nineteenth Street, on the west side, from East Park Avenue to Evergreen Avenue, no parking any time.

Southeast Nineteenth Street, on the east side, from East Thornton Avenue to East Maish Avenue, no parking any time.

Southeast Nineteenth Street, on both sides, from the dead end north of East Diehl Avenue to East Army Post Road, no parking any time.

Southeast Nineteenth Street, on the west side, from Southeast Nineteenth Court to East Luster Lane, no parking any time.
(C85, § 27-894.02; O.11,302; C91, § 27-1767; O.11,650, 13,239, 15,590)

Sec. 114-2795. Southwest Nineteenth Street—McKinley Avenue to Army Post Road.

Southwest Nineteenth Street, on the east side, from Hackley Avenue to McKinley Avenue, no parking any time.
(O.13,613)

Sec. 114-2796. Southeast Twentieth Street—East Park Avenue to East Maish Avenue.

Southeast Twentieth Street, on the east side, from East Caulder Avenue to East Maish Avenue, no parking any time.
(C91, § 27-1767.05; O.13,139, 13,239)

Sec. 114-2797. East Twentieth Court—East Grand Avenue to Easton Boulevard.

East Twentieth Court, on the west side, from East Grand Avenue to Maple Street, no parking any time.

East Twentieth Court, on the east side, from Maple Street to Ankeny Avenue, no parking any time.

East Twentieth Court, on the east side, from East University Court to a point 210 feet north thereof, and any part of the cul-de-sac, no parking any time.
(C62, § 30-881; O.8084; C75, C79, § 27-895; O.10,123; C91, § 27-1768; O.11,650)

Sec. 114-2798. Twentieth Place—Meek Avenue to Mondamin Avenue.

Twentieth Place, on the east side, from Meek Avenue to Mondamin Avenue, no parking any time.

Twentieth Place, on the west side, from Mondamin Avenue to a point 30 feet south thereof, no parking any time.
(C79, § 27-895.01; O.10,123; C91, § 27-1769; O.11,650; C00, § 114-2798; O.14,518 (installed 9/20/10), 16,171)

Sec. 114-2799. Twentieth Street—Woodland Avenue to School Street.

Twentieth Street, on both sides, from Woodland Avenue to a point 50 feet north thereof, no parking any time.
(C62, § 30-882; O.8084; C75, C79, § 27-896; C91, § 27-1770; O.11,650; C00, § 114-2799; O.14,518 (installed 3/6/08), 16,171)

Sec. 114-2800. Southeast Twentieth Street—East Caulder Avenue to Evergreen Avenue.

Southeast Twentieth Street, on the east side, from East Caulder Avenue to Evergreen Avenue, no parking any time.

Southeast Twentieth Street, on the west side, from East Caulder Avenue to a point 50 feet south thereof, no parking any time.
(C79, § 27-896.01; O.10,123; C91, § 27-1771; O.11,650, 11,941; C00, § 114-2800; O.14,518 (installed 12/17/14), 15,466, 16,171)

Sec. 114-2801. East Twenty-first Court—Ankeny Avenue to Avenue Frederick M. Hubbell.

East Twenty-first Court, on the east side, from Ankeny Avenue to Avenue Frederick M. Hubbell, no parking any time.
(C79, § 27-896.02; O.10,123; C91, § 27-1772; O.11,650)

Sec. 114-2802. Southeast Twenty-first Court—East Maish Avenue to the dead end north.

Southeast Twenty-first Court, on the west side, from East Maish Avenue to the dead end north thereof and including any parts of the cul-de-sac, no parking any time.
(C91, § 27-1772.05; O.13,139)

Sec. 114-2803. Twenty-first Street—Olive Avenue to Franklin Avenue.

Twenty-first Street, on the west side, from University Avenue to a point 75 feet north thereof, no parking any time.

Twenty-first Street, on the east side, from University Avenue to a point 50 feet north of Carpenter Avenue, no parking any time.

Twenty-first Street, on the west side, from Carpenter Avenue to a point 75 feet south thereof, no parking any time.

Twenty-first Street, on the west side, from Forest Avenue to a point 85 feet north thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Twenty-first Street, on the east side, from Forest Avenue to Clark Street, no parking any time.

Twenty-first Street, on the west side, from Meek Avenue to a point 50 feet north thereof, no parking any time.

Twenty-first Street, on the east side, from Meek Avenue to Mondamin Avenue, no parking any time.

Twenty-first Street, on the west side from Mondamin Avenue to a point 50 feet south thereof, no parking any time.

Twenty-first Street, on the west side, from Washington Avenue to a point 50 feet north thereof, no parking any time.

Twenty-first Street, on the east side, from Washington Avenue to Franklin Avenue, no parking any time.

Twenty-first Street, on the west side, from Franklin Avenue to a point 60 feet south thereof, no parking any time.
(C62, § 30-883; O.8084, 8767; C75, § 27-897; O.9021, 9331, 9596; C79, § 27-897; O.9779, 10,123; C91, § 27-1773; O.11,650; C00, § 114-2803; O.14,250, 14,379, 14,518 (installed 11/3/17), 16,171)

Sec. 114-2804. East Twenty-first Street—East Walnut Street to Hull Avenue.

East Twenty-first Street, on the east side, from East Grand Avenue to a point 50 feet north thereof, no parking any time.

East Twenty-first Street, on the east side, from East Grand Avenue to Des Moines Street, no parking any time.

East Twenty-first Street, on the west side, from East Walnut Street to East Grand Avenue, no parking any time.

East Twenty-first Street, on the east side, from Lyon Street to Maple Street, no parking any time.

East Twenty-first Street, on the west side, from Maple Street to a point 50 feet south thereof, no parking any time.

East Twenty-first Street, on the west side, from Ankeny Avenue to Avenue Frederick M. Hubbell, no parking any time.

East Twenty-first Street, on both sides, from Avenue Frederick M. Hubbell to Easton Boulevard, no parking any time.

East Twenty-first Street, on the west side, from the dead end south of East Washington Avenue to Guthrie Avenue, no parking any time.

East Twenty-first Street, on both sides, from Guthrie Avenue to a point 1,320 feet north thereof, no parking any time.

East Twenty-first Street, on the east side, from Boyd Street to Hull Avenue, no parking any time.
(C62, § 30-884; O.8084, 8303; C75, § 27-898; O.9566; C79, § 27-898; O.10,123; C85, § 27-898; O.11,420; C91, § 27-1774; O.11,650; 14,250, 15,876)

Sec. 114-2804.5. Southeast Twenty-first Street—Maury Street to dead end south of Maury Street.

Southeast Twenty-first Street, on the east side, from Maury Street to a point 525 feet south thereof, no parking any time.
(O.14,793)

Sec. 114-2805. Southeast Twenty-first Street—East Park Avenue to East Hughes Street.

Southeast Twenty-first Street, on the east side, from East Park Avenue to East Hughes Street, no parking any time.
(C79, § 27-898.01; O.10,123; C91, § 27-1775; O.11,650)

Sec. 114-2806. Southeast Twenty-second Court—East Park Avenue to East Rose Avenue.

Southeast Twenty-second Court, on the west and south sides, from East Park Avenue, to a point 450 feet south thereof, and any part of the cul-de-sac, no parking any time.

Southeast Twenty-second Court, on the east side, from East Rose Avenue to a point 100 feet north thereof, no parking any time.
(C79, § 27-898.02; O.10,123; C85, § 27-898.02; O.11,372; C91, § 27-1776; O.11,650, 13,239, 15,641)

Sec. 114-2807. East Twenty-second Court—Ankeny Avenue to Hull Avenue.

East Twenty-second Court, on the east side, from East University Avenue to a point 125 feet south thereof, no parking any time.

East Twenty-second Court, on the west side, from Maple Street to East University Avenue, no parking any time.

East Twenty-second Court, on the east side, from Maple Street to a point 50 feet north thereof, no parking any time.

East Twenty-second Court, on the east side, from Boyd Street to Hull Avenue, no parking any time.

East Twenty-second Court, on the west side, from Hull Avenue to a point 45 feet south thereof, no parking any time.
(C62, § 30-885; O.8084, 8798; C75, C79, § 27-899; O.10,123; C91, § 27-1777; O.11,650; C00, § 114-2807; O.14,396, 14,518 (installed 7/17/13, 7/2/14), 16,171)

Sec. 114-2808. Twenty-second Street—High Street to Lincoln Avenue.

Twenty-second Street, on the east side, from High Street to Woodland Avenue, no parking any time.

Twenty-second Street, on the west side, from High Street to a point 50 feet north thereof, no parking any time.

Twenty-second Street, on the west side, from Woodland Avenue to a point 60 feet south thereof, no parking any time.

Twenty-second Street, on the both sides, from a point 75 feet south of Drake Park Avenue to a point 75 feet north of Drake Park Avenue, no parking any time.

Twenty-second Street, on the west side, from University Avenue to a point 75 feet south thereof, no parking any time.

Twenty-second Street, on the east side, from University Avenue to a point 50 feet south thereof, no parking any time.

Twenty-second Street, on the west side, from the dead end north of University Avenue to a point 50 feet north thereof, no parking any time.

Twenty-second Street, on the east side, from University Avenue to Forest Avenue, no parking any time.

Twenty-second Street, on the east side, from Forest Avenue to Lincoln Avenue, no parking any time.

Twenty-second Street, on the west side, from Forest Avenue to a point 50 feet south thereof, no parking any time.
(C62, § 30-885.01; O.8922; C75, § 27-899.01; O.9155; C79, § 27-899.01; O.10,008, 10,123, 10,207; C91, § 27-1778; O.11,650, 11,891, 13,193, 13,647; C00, § 114-2808; O.14,518 (installed 7/30/13, 11/14/18), 14,476, 16,171)

Sec. 114-2809. East Twenty-second Street—Dean Avenue to Hull Avenue.

East Twenty-second Street, on the west side, from Dean Avenue to East Walnut Street, no parking any time.

East Twenty-second Street, on the east side, from East Walnut Street to East University Avenue, no parking any time.

East Twenty-second Street, on the west side, from a point 60 feet south of Ankeny Avenue to a point 65 feet north of Ankeny Avenue, no parking any time.

East Twenty-second Street, on the west side, from East Grand Avenue to a point 75 feet south thereof, no parking any time.

East Twenty-second Street, on the west side, from Des Moines Street to Lyon Street, school passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days.

East Twenty-second Street, on the west side, from Lyon Street to a point 50 feet north thereof, no parking any time.

East Twenty-second Street, on the west side, from a point 200 feet south of East University Avenue to East University Avenue, no parking any time.

East Twenty-second Street, on the west side, from East University Avenue to a point 75 feet north of Easton Boulevard, no parking any time.

East Twenty-second Street, on the east side, from Avenue Frederick M. Hubbell Avenue to a point 465 feet north thereof, no parking any time.

East Twenty-second Street, on the west side, from Frederick M. Hubbell Avenue to a point 120 feet north thereof, no parking any time.

East Twenty-second Street, on the west side, from a point 255 feet north of Frederick M. Hubbell Avenue to Elizabeth Avenue, no parking any time.

East Twenty-second Street, on the east side, from Easton Boulevard to a point 75 feet south thereof, no parking any time.

East Twenty-second Street, on the east side, from Easton Boulevard to Thompson Avenue, no parking any time.

East Twenty-second Street, on the east side, from Boyd Street to Hull Avenue, no parking any time.

East Twenty-second Street, on the west side, from Hull Avenue to a point 50 feet south thereof, no parking any time.
(C62, § 30-886; O.8084, 8478; C75, C79, § 27-900; O.10,123, 10,321, 10,598, 10,728; C91, § 27-1779; O.11,650; C00, § 114-2809; O.14,518 (installed 11/14/14), 14,848, 16,171, 16,437, 16,462)

Sec. 114-2810. Southeast Twenty-second Street—Hartford Avenue to East Philip Avenue.

Southeast Twenty-second Street, on the east side, from Hartford Avenue to a point 100 feet south thereof, no parking any time.

Southeast Twenty-second Street, on the west side, from Hartford Avenue to King Avenue, no parking any time.

Southeast Twenty-second Street, on the east side, from a point 50 feet north of River Ridge Road to a point 50 feet south of River Ridge Road, no parking any time.

Southeast Twenty-second Street, on the west side, from King Avenue to East Virginia Avenue, no stopping or standing.

Southeast Twenty-second Street, on the east side, from King Avenue to a point 510 feet south thereof, school passenger loading and unloading 7:00 a.m. to 5:00 p.m., school days.

Southeast Twenty-second Street, on the east side, from a point 510 feet south of King Avenue to a point 255 feet south thereof, no stopping or standing.

Southeast Twenty-second Street, on the east side, from a point 765 feet south of King Avenue to a point 50 feet north of East Virginia Avenue, school passenger loading and unloading 7:00 a.m. to 5:00 p.m., school days.

Southeast Twenty-second Street, on the east side, from a point 50 feet north of East Virginia Avenue to East Virginia Avenue, no parking any time.

Southeast Twenty-second Street, on the west side, from Evergreen Avenue to a point 310 feet south thereof, no parking any time.

Southeast Twenty-second Street, on the east side, from a point 20 feet north of the west leg of Maish Court to a point 315 feet south of the west leg of Maish Court, no parking any time.

Southeast Twenty-second Street, on the east side, from East Marion Street to a point 50 feet north thereof, no parking any time.

Southeast Twenty-second Street, on the west side, from East Marion Street to East Philip Avenue, no parking any time.
(C79, § 27-900.01; O.10,123; C91, § 27-1780; O.11,650, 13,239, 14,449, 14,518 (installed 5/16/08), 15,641, 16,171, 16,182, 16,304)

Sec. 114-2811. Southwest Twenty-second Street—Bell Avenue to County Line Road.

Southwest Twenty-second Street, on both sides, from Bell Avenue to a point 900 feet north thereof, no parking any time.

Southwest Twenty-second Street, on the east side, from Willowmere Drive to a point 200 feet south thereof, and any part of the cul-de-sac, no parking any time.

Southwest Twenty-second Street, on east side, from Rittenhouse Street to County Line Road, no parking any time.
(C62, § 30-887; O.8084; C75, C79, § 27-901; O.10,207; C91, § 27-1781; O.11,650, 14,226)

Sec. 114-2812. Twenty-third Place—Dead end south of Rollins Avenue to Olive Avenue.

Twenty-third Place, on the east side, from a point 150 feet south of Rollins Avenue to Olive Avenue, no parking any time.
(C79, § 27-901.01; O.10,123; C91, § 27-1782; O.11,650)

Sec. 114-2813. Southeast Twenty-third Court—Scott Avenue to East Philip Street.

Southeast Twenty-third Court, on the east side, from the dead end north of Shaw Street to Maury Street, no parking any time.

Southeast Twenty-third Court, on the east side, from East Marion Street to East Philip Street, no parking any time.

Southeast Twenty-third Court, on the west side, from East Marion Street to a point 45 feet south thereof, no parking any time.
(C79, § 27-901.02; O.10,123; C91, § 27-1783; O.11,650, 13,029, 13,239; C00, § 114-2813; O.13,954, 14,518 (installed 12/29/14), 15,466, 16,171)

Sec. 114-2814. East Twenty-third Court—Maple Street to East University Avenue.

East Twenty-third Court, on the east side, from Maple Street to East University Avenue, no parking any time.

East Twenty-third Court, on the west side, from East University Avenue to a point 50 feet south thereof, no parking any time.
(C79, § 27-901.03; O.10,321, 10,598; C91, § 27-1784; O.11,650)

Sec. 114-2815. Twenty-third Street—Ingersoll Avenue to Holcomb Avenue.

Twenty-third Street, on the west side, from Ingersoll Avenue to a point 165 feet north thereof, no parking any time.

Twenty-third Street, on the east side, from Ingersoll Avenue to Woodland Avenue, no parking any time.

Twenty-third Street, on the west side, from Woodland Avenue to a point 50 feet south thereof, no parking any time.

Twenty-third Street, on the east side, from a point 250 feet south of Rollins Avenue to a point 160 feet north of Olive Avenue, no parking any time.

Twenty-third Street, on the west side, from Olive Avenue to a point 50 feet south thereof, no parking any time.

Twenty-third Street, on the west side, from Cottage Grove Avenue to Drake Park Avenue, no parking any time.

Twenty-third Street, on the east side, from Cottage Grove Avenue to a point 295 feet north thereof, no parking any time.

Twenty-third Street, on the east side, from 50 feet south of Drake Park Avenue to Drake Park Avenue, no parking any time.

Twenty-third Street, on the west side, from University Avenue to a point 75 feet north thereof, no parking any time.

Twenty-third Street, on the east side, from University Avenue to Forest Avenue, no parking any time.

Twenty-third Street, on the west side, from Forest Avenue to Hickman Road, no parking any time.

Twenty-third Street, on the east side, from Forest Avenue to a point 50 feet north thereof, no parking any time.

Twenty-third Street, on the west side, from Forest Avenue to a point 50 feet south thereof, no parking any time.

Twenty-third Street, on the east side, from a point 130 feet south of Clark Street to a point 50 feet north of Clark Street, no parking any time.

Twenty-third Street, on the east side, from Hickman Road to a point 120 feet south thereof, no parking any time.
(C62, § 30-888; O.8084; C75, § 27-902; O.9226, 9446; C79, § 27-902; O.9658, 10,123, 10,207; C85, § 27-902; O.10,859; 10,947, 11,458; C91, § 27-1785; O.11,650, 11,781, 13,146, 13,193, 13,647; C00, § 114-2815; O.14,476, 14,518 (installed 4/21/09, 5/21/09, 11/14/18), 14,811, 15,763, 16,171, 16,299)

Sec. 114-2816. East Twenty-third Street—Dean Avenue to East Aurora Avenue.

East Twenty-third Street, on the east side, from Dean Avenue to Easton Boulevard, no parking any time.

East Twenty-third Street, on the west side, from Dean Avenue to a point 150 feet north thereof, no parking any time.

East Twenty-third Street, on the west side, from a point 125 feet south of Capitol Avenue to a point 40 feet south thereof, commercial loading zone.

East Twenty-third Street, on the west side, from a point 60 feet south of East Grand Avenue to a point 40 feet south thereof, commercial loading zone.

East Twenty-third Street, on the west side, from a point 50 feet north of Des Moines Street to a point 50 feet south of Des Moines Street, no parking any time.

East Twenty-third Street, on the west side, from East University Avenue to a point 140 feet south thereof, no parking any time.

East Twenty-third Street, on the west side, from East University Avenue to a point 50 feet north thereof, no parking any time.

East Twenty-third Street, on the west side, from Garfield Avenue to a point 50 feet south thereof, no parking any time.

East Twenty-third Street, on the west side, from Easton Boulevard to East Sheridan Avenue, no parking any time.

East Twenty-third Street, on the east side, from Easton Boulevard to a point 50 feet north thereof, no parking any time.

East Twenty-third Street, on the east side, from East Washington Ave to a point 50 feet north thereof, no parking any time.

East Twenty-third Street, on the east side, from Thompson Avenue to a point 65 feet north thereof, no parking any time.

East Twenty-third Street, on the east side, from Guthrie Avenue to a point 50 feet south thereof, no parking any time.

East Twenty-third Street, on the west side, from East Madison Avenue to a point 340 feet south thereof and on any part of the cul-de-sac, no parking any time.

East Twenty-third Street, on the east side, from a point 100 feet south of East Madison Avenue to East Aurora Avenue, no parking any time.
(C62, § 30-889; O.8084, 8310, 8683, 8806, 8851; C75, § 27-903; O.9120, 9235, 9389, 9513, C79, § 27-903; O.9686, 10,123, 10,598; C85, § 27-903; O.11,448; C91, § 27-1786; O.11,650, 11,760, 13,369, 13,407, 13,908, 16,515, 16,546)

Sec. 114-2817. Southeast Twenty-third Street—East Martin Luther King Jr Parkway to East Southdale Drive.

Southeast Twenty-third Street, on both sides, from East Martin Luther King Jr Parkway to Maury Street, no parking any time.

Southeast Twenty-third Street, on the east side, from East Park Avenue to Evergreen Avenue, no parking any time.

Southeast Twenty-third Street, on the west side, from Marion Street to a point 35 feet south thereof, no parking any time.

Southeast Twenty-third Street, on the east side, from East Marion Street, to East Philip Avenue, no parking any time.

Southeast Twenty-third Street, on the west side, from East Pine Avenue, to East Southdale Drive, no parking any time.
(C79, § 27-903.01; O.10,123; C85, § 27-903.01; 11,203, 11,225; C91, § 27-1787; O.11,650, 13,239, C00, § 114-2817; O.13,954, 14,226, 14,518 (installed 12/17/09), 15,466, 16,171)

Sec. 114-2818. Southwest Twenty-third Street—George Flagg Parkway to Emma Avenue.

Southwest Twenty-third Street, on the west side, from George Flagg Parkway to Sunset Road, no parking any time.

Southwest Twenty-third Street, on the east side, from Bell Avenue to Park Avenue, no parking any time.

Southwest Twenty-third Street, on the west side, from Bell Avenue to a point 100 feet south thereof, no parking any time.

Southwest Twenty-third Street, on the east side, from Stanton Avenue to a point 85 feet south thereof, no parking any time.

Southwest Twenty-third Street, on the west side, from Stanton Avenue to Emma Avenue, no parking any time.
(C62, § 30-890; O.8084; C75, C79, § 27-904; O.10,207; C91, § 27-1788; O.11,650, 14,080, 16,352)

Sec. 114-2819. East Twenty-fourth Court—Maple Street to north city limits.

East Twenty-fourth Court, on the west side, from East Aurora Avenue to a point 90 feet south thereof, no parking any time.

East Twenty-fourth Court, on the east side, from Maple Street to East University Avenue, no parking any time.

East Twenty-fourth Court, on the west side, from East University Avenue to a point 50 feet south thereof, no parking any time.

East Twenty-fourth Court, on the east side, from East Madison Avenue to a point 130 feet north of East Aurora Avenue, no parking any time.
(C75, § 27-904.01; O.9330; C79, § 27-904.01; O.9849, 10,598; C91, § 27-1789; O.11,650, 13,724)

Sec. 114-2820. Southeast Twenty-fourth Court—Dean Avenue to East Payton Avenue.

Southeast Twenty-fourth Court, on both sides, from East Market Street to a point 300 feet north thereof, no parking any time.

Southeast Twenty-fourth Court, on both sides, from Railroad Court to East Railroad Avenue, no parking any time.

Southeast Twenty-fourth Court, on the east side, from East Park Avenue south to the dead end, no parking any time.

Southeast Twenty-fourth Court, on the west side, from East Leach Avenue to East Twenty-fifth Street, no parking any time.

Southeast Twenty-fourth Court, on the west side, from Hart Avenue south to and including the cul-de-sac, no parking any time.
(C62, § 30-891; O.8084; C75, C79, § 27-905; O.10,123; C91, § 27-1790; O.11,650, 13,957, 13,973, 14,844)

Sec. 114-2821. Twenty-fourth Drive—Twenty-fourth Street to Franklin Avenue.

Twenty-fourth Drive, on the west side, from Twenty-fourth Street to Franklin Avenue, no parking any time.
(C79, § 27-905.01; O.10,123; C91, § 27-1791; O.11,650)

Sec. 114-2822. Twenty-fourth Place—College Avenue to dead end north.

Twenty-fourth Place, on the west side, from College Avenue to a point 270 feet north thereof, no parking any time.
(C79, § 27-905.02; O.10,123; C91, § 27-1792; O.11,650)

Sec. 114-2823. Twenty-fourth Street—Ingersoll Avenue to Bennett Avenue.

Twenty-fourth Street, on the west side, from Ingersoll Avenue to a point 95 feet north of Woodland Avenue, no parking any time.

Twenty-fourth Street, on the east side, from High Street to and including the dead end north of Olive Avenue, no parking any time.

Twenty-fourth Street, on the west side, from a point 50 feet south of Pleasant Street to a point 50 feet north of Pleasant Street, no parking any time.

Twenty-fourth Street, on the west side, from a point 50 feet south of Center Street to a point 50 feet north of Center Street, no parking any time.
Twenty-fourth Street, on the west side, from a point 50 feet south of Rollins Avenue to a point 50 feet north of Rollins Avenue, no parking any time.

Twenty-fourth Street, on the west side, from Olive Avenue to and including the dead end north thereof, no parking any time.

Twenty-fourth Street, on the east side, from School Street to a point 60 feet north of Cottage Grove Avenue, no parking any time.

Twenty-fourth Street, on both sides, from a point 75 feet south of Drake Park Avenue to a point 60 feet north of Drake Park Avenue, no parking any time.

Twenty-fourth Street, on the east side, from a point 295 feet south of University Avenue to a point 25 feet north thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in section 114-616(a) of this Code.

Twenty-fourth Street, on the east side, from a point 270 feet south of University Avenue to a point 110 feet north thereof, two-hour parking, 9:00 a.m. to 4:00 p.m.

Twenty-fourth Street, on the west side, from a point 260 feet south of University Avenue to University Avenue, two-hour parking, 9:00 a.m. to 4:00 p.m.

Twenty-fourth Street, on the east side, from a point 50 feet south of University Avenue to a point 50 north of University Avenue, no parking any time.

Twenty-fourth Street, on the west side, from University Avenue to a point 205 feet south of Carpenter Avenue, no parking any time.

Twenty-fourth Street, on the east side, from a point 250 feet north of University Avenue to a point 50 feet north thereof, loading zone.

Twenty-fourth Street, on the east side, from a point 300 feet north of University Avenue to a point 50 feet north of Carpenter Avenue, no parking any time.

Twenty-fourth Street, on the west side, from a point 205 feet south of Carpenter Avenue to a point 180 feet north thereof, two-hour parking, 9:00 a.m. to 4:00 p.m.

Twenty-fourth Street, on the west side, from a point 25 feet south of Carpenter Avenue to a point 65 feet north of Carpenter Avenue, no parking any time.

Twenty-fourth Street, on the west side, from Forest Avenue to a point 50 feet north thereof, no parking any time.

Twenty-fourth Street, on the west side from a point 60 feet south of Clark Street to Twenty-fourth Drive, no parking any time.

Twenty-fourth Street, on the east side, from Forest Avenue to a point 53 feet north of Clark Street, no parking any time.

Twenty-fourth Street, on the east side, from a point 50 feet south of College Avenue to College Avenue, no parking any time.

Twenty-fourth Street, on the east side, from a point 50 feet south of Twenty-fourth Drive to and including the dead end north of Franklin Avenue, no parking any time.

Twenty-fourth Street, on the east side, from Hickman Road to Bennett Avenue, no parking any time.

Twenty-fourth Street, on the west side, from Hickman Road to a point 75 feet north thereof, no parking any time.

Twenty-fourth Street, on the west side, from a point 100 feet south of Holcomb Avenue to a point 100 feet north of Holcomb Avenue, no parking any time.

Twenty-fourth Street, on the west side, from a point 50 feet south of Bennett Avenue to Bennett Avenue, no parking any time.
(C62, § 30-892; O.8084, 8453, 8539, 8586, 8639, 8661, 8738, 8897; C75, § 27-906; O.9445; C79, § 27-906; O.9813, 10,123, 10,309; 10,722; C85, § 27-906; O.11,186, 11,278; C91, § 27-1793; O.11,650, 13,169, 13,256, 13,420, 13,474, 13,487, 13,528, 13,727; C00, § 114-2823; O.14,428, 14,476, 14,518 (installed 4/21/09, 8/16/13, 10/3/17), 14,748, 14,764, 14,855, 15,763, 16,171, 16,241, 16,279, 16,393)

Sec. 114-2824. East Twenty-fourth Street—Dean Avenue to East Aurora Avenue.

East Twenty-fourth Street, on the east side, from Dean Avenue to East University Avenue, no parking any time.

East Twenty-fourth Street, on the west side, from a point 50 feet south of Logan Avenue to a point 50 feet north of Logan Avenue, no parking any time.

East Twenty-fourth Street, on the west side, from East Walnut Street to a point 50 feet south thereof, no parking any time.

East Twenty-fourth Street, on the west side, from East Grand Avenue to a point 55 feet north thereof, no parking any time.

East Twenty-fourth Street, on the west side, from Des Moines Street to a point 50 feet north thereof, no parking any time.

East Twenty-fourth Street, on the west side, from Maple Street to a point 50 feet north thereof, no parking any time.

East Twenty-fourth Street, on the west side, from East University Avenue to a point 100 feet south thereof, no parking any time.

East Twenty-fourth Street, on the east side, from State Avenue to Elizabeth Avenue, no parking any time.

East Twenty-fourth Street, on the west side, from State Avenue to a point 50 feet north thereof, no parking any time.

East Twenty-fourth Street, on the west side, from Elizabeth Avenue to Dubuque Avenue, no parking any time.

East Twenty-fourth Street, on both sides, from Avenue Frederick M. Hubbell to Easton Boulevard, no parking any time.

East Twenty-fourth Street, on the west side, from Easton Boulevard to Guthrie Avenue, no parking any time.

East Twenty-fourth Street, on the east side, from a point 110 feet south of Guthrie Avenue to Guthrie Avenue, no parking any time.

East Twenty-fourth Street, on the west side, from Morton Avenue to a point 210 feet north thereof, school passenger loading and unloading 7:00 a.m. to 5:00 p.m., school days.

East Twenty-fourth Street, on the west side, from a point 210 feet north of Morton venue to a

point 200 feet north thereof, school bus loading and unloading 7:00 a.m. to 5:00 p.m., school days.

East Twenty-fourth Street, on the west side, from a point 410 feet north of Morton Avenue to a point 150 feet north thereof, no stopping or standing, 7:00 a.m. to 5:00 p.m., school days.

East Twenty-fourth Street, on the west side, from a point 560 feet north of Morton Avenue to a point 50 feet south of Hull Avenue, school passenger loading and unloading 7:00 a.m. to 5:00 p.m., school days.

East Twenty-fourth Street, on the west side, from a point 50 feet south of Hull Avenue to Hull Avenue, no stopping and standing.

East Twenty-fourth Street, on the east side, from Guthrie Avenue to Morton Avenue, no parking any time.

East Twenty-fourth Street, on the east side, from Morton Avenue to Hull Avenue, no stopping or standing.

East Twenty-fourth Street, on the east side, from Hull Avenue to a point 500 feet north of Tiffin Avenue, no parking any time.

East Twenty-fourth Street, on the east side, from East Madison Avenue to East Aurora Avenue, no parking any time.
(C62, § 30-893; O.8084, 8108, 8147; C75, § 27-907; O.9234, 9267, 9349, 9405; C79, § 27-907; O.9697, 9849, 10,067, 10,123, 10,222, 10,250, 10,316, 10,598; C85, § 27-907; O.10,767, 10,792, 11,041; C91, § 27-1794; O.11,650, 13,762; C00, § 114-2824; O.14,518 (installed 4/28/16, 10/18/21), 16,171, 16,174)

Sec. 114-2825. Southeast Twenty-fourth Street—Shaw Street to East Payton Avenue.

Southeast Twenty-fourth Street, on the east side, from Shaw Street to Maury Street, no parking any time.

Southeast Twenty-fourth Street, on the west side, from East Marion Street to East Philip Avenue, no parking any time.

Southeast Twenty-fourth Street, on the west side, from Easter Lake Drive to Hart Avenue, no parking any time.

Southeast Twenty-fourth Street, on the east side, from a point 40 feet north of Hart Avenue to East Payton Avenue, no parking any time.

Southeast Twenty-fourth Street, on the west side, from Hart Avenue to a point 160 feet south thereof, no parking any time.
(C79, § 27-907.01; O.10,123; C91, § 27-1795; O.11,650, 13,029; C00, § 114-2825; O.14,518 (installed 11/5/13), 14,833, 15,466, 15,559, 15,583, 15,606, 16,171)

Sec. 114-2826. Southwest Twenty-fourth Street—Park Avenue to dead end south of Wakonda View.

Southwest Twenty-fourth Street, on the east side, from Park Avenue to Thornton Avenue, no parking any time.

Southwest Twenty-fourth Street, on the east side, from Marion Street to Wakonda View, no parking any time.
(C79, § 27-907.02; O.10,207; C91, § 27-1796; O.11,650)

Sec. 114-2827. East Twenty-fifth Court—Maple Street to dead end north of East Ovid Avenue.

East Twenty-fifth Court, on the west side, from Maury Street to a point 50 feet north thereof, no parking any time.

East Twenty-fifth Court, on the west side, from Maple Street to East University Avenue, no parking any time.

East Twenty-fifth Court, on the east side, from East University Avenue to a point 125 feet south thereof, no parking any time.

East Twenty-fifth Court, on the west side, from East University Avenue to a point 125 feet north thereof, no parking any time.

East Twenty-fifth Court, on the east side, from East University Avenue to a point 420 feet north of Garfield Avenue, no parking any time.

East Twenty-fifth Court, on the west side, from Mansfield Drive to a point 130 feet north of East Ovid Avenue, no parking any time.
(C62, § 30-894; O.8084; C75, § 27-908; O.9009, 9267; C79, § 27-908; O.10,123; C91, § 27-1797; O.11,650)

Sec. 114-2828. Southeast Twenty-fifth Court—East Market Street to C.B. & Q.

Southeast Twenty-fifth Court, on the east side, from East Market Street to a point 670 feet south thereof, no parking any time.

Southeast Twenty-fifth Court, on both sides, from Scott Avenue to C.B. & Q. Street, no parking any time.
(C79, § 27-908.01; O.10,123; C91, § 27-1798; O.11,650, 14,833, 14,844, 15,466, 16,399)

Sec. 114-2829. Twenty-fifth Street—Woodland Avenue to Payne Road.

Twenty-fifth Street, on the west side, from Woodland Avenue to a point 40 feet north thereof, no parking any time.

Twenty-fifth Street, on the east side, from Woodland Avenue to a point 65 feet north thereof, no parking any time.

Twenty-fifth Street, on the east side, from Center Street to a point 300 feet north of Rollins Avenue, no parking any time.

Twenty-fifth Street, on the east side, from School Street to a point 120 feet south thereof, and any part of the cul-de-sac, no parking any time.

Twenty-fifth Street, on the west side, from Cottage Grove Avenue to a point 50 feet north of Cottage Grove Avenue, no parking any time.

Twenty-fifth Street, on the east side, from Cottage Grove Avenue to a point 80 feet north thereof, no parking any time.

Twenty-fifth Street, on the east side, from a point 15 feet north of Cottage Grove Avenue to Kingman Boulevard, no parking any time.

Twenty-fifth Street, on the west side, from a point 50 feet north of Cottage Grove Avenue, to a point 75 feet south of University Avenue, no parking Monday through Saturday.

Twenty-fifth Street, on the west side, from University Avenue to a point 75 feet south thereof, no parking any time.

Twenty-fifth Street, on the west side, from University Avenue, to a point 185 feet south of Forest Avenue, no parking any time.

Twenty-fifth Street, on the west side, from a point 185 feet south of Forest Avenue to a point 135 feet north thereof, bus loading zone.

Twenty-fifth Street, on the west side, from Forest Avenue to a point 50 feet south thereof, no parking any time.

Twenty-fifth Street, on the east side, from a point 90 feet south of University Avenue to a point 85 feet south thereof, two-hour parking, 9:00 a.m. to 4:00 p.m.

Twenty-fifth Street, on the east side, from a point 50 feet south of University Avenue to a point 40 feet south thereof, commercial loading zone.

Twenty-fifth Street, on the east side, from University Avenue to a point 50 feet south thereof, no parking any time.

Twenty-fifth Street, on the east side, from University Avenue to a point 90 feet north thereof, two-hour parking, 9:00 a.m. to 4:00 p.m.

Twenty-fifth Street, on the east side, from a point 90 feet north of University Avenue to a point 40 feet north thereof, loading zone.

Twenty-fifth Street, on the east side, from a point 130 feet north of University Avenue to a point 560 feet south of Forest Avenue, two-hour parking, 9:00 a.m. to 4:00 p.m.

Twenty-fifth Street, on the east side, from a point 180 feet north of University Avenue to a point 20 feet north thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in section 114-616(a) of this Code.

Twenty-fifth Street, on the east side, from a point 560 feet south of Forest Avenue to a point 140 feet north thereof, no parking any time.

Twenty-fifth Street on the east side, from a point 420 feet south of Forest Avenue to a point 220 feet north thereof, two-hour parking, 9:00 a.m. to 4:00 p.m.

Twenty-fifth Street, on the east side, from Forest Avenue to a point 205 feet south thereof, no parking any time.

Twenty-fifth Street, on the west side, from Sheridan Avenue to Payne Road, no parking any time.

Twenty-fifth Street, on the east side, from Prospect Road (east leg) to a point 50 feet south thereof, no parking any time.

Twenty-fifth Street, on the east side, from Payne Road to a point 50 feet south thereof, no parking any time.
(C62, § 30-895; O.8084, 8535, 8832; C75, § 27-909; O.9607; C79, § 27-909; O.10,123, 10,476; C85, § 27-909; O.11,089, 11,422; C91, § 27-1799; O.11,650, 11,667, 11,742, 11,802, 11,875, 12,034, 13,169, 13,193, 13,658, 13,691; C00, § 114-2829; O.14,518 (installed 12/3/10, 06/27/11, 03/4/15), 14,722, 15,590, 15,776, 15,991, 16,171, 16,304)

Sec. 114-2830. East Twenty-fifth Street—Dean Avenue to East Aurora Avenue.

East Twenty-fifth Street, on the east side, from Dean Avenue to Easton Boulevard, no parking any time.

East Twenty-fifth Street, on the west side, from a point 170 feet south of Walnut Street to a point 50 feet north of Walnut Street, no parking any time.

East Twenty-fifth Street, on the west side, from Maple Avenue to a point 50 feet north thereof, no parking any time.

East Twenty-fifth Street, on the west side, from a point 100 feet north of Capitol Avenue to a point 25 feet north thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in subsection 114-616(a) of this chapter.

East Twenty-fifth Street, on the west side, from East University Avenue to a point 50 feet south thereof, no parking any time.

East Twenty-fifth Street, on the west side, from East University Avenue to a point 75 feet north thereof, no parking any time.

East Twenty-fifth Street, on the west side, from Garfield Avenue to a point 150 feet north thereof, no parking any time.

East Twenty-fifth Street, on the west side, from Elizabeth Avenue to a point 40 feet south thereof, no parking any time.

East Twenty-fifth Street, on the west side, from East Jefferson Avenue to Guthrie Avenue, no parking any time.

East Twenty-fifth Street, on the east side, from Guthrie Avenue to a point 120 feet north thereof, no parking any time.

East Twenty-fifth Street, on the east side, from Wedgewood Road to East Euclid Avenue, no parking any time.

East Twenty-fifth Street, on the west side, from Guthrie Avenue to East Euclid Avenue, no parking any time.

East Twenty-fifth Street, on the east side, from East Sheridan Avenue to a point 50 feet north thereof, no parking any time.

East Twenty-fifth Street, on the east side, from a point 120 feet north of Guthrie Avenue to East Sheridan Avenue, no parking 7:00 a.m. to 6:00 p.m., Monday through Friday.

East Twenty-fifth Street, on the east side, from a point 50 feet north of East Sheridan Avenue to Wedgewood Road, no parking 7:00 a.m. to 6:00 p.m., Monday through Friday.

East Twenty-fifth Street, on the east side, from East Douglas Avenue to East Aurora Avenue, no parking any time.

East Twenty-fifth Street, on the west side, from East Shawnee Avenue to East Aurora Avenue, no parking any time.
(C62, § 30-896; O.8084, 8098, 8152, 8210, 8231, 8244, 8562, 8839; C75, § 27-910; O.9267, 9593; C79, § 27-910; O.9760, 10,207, 10,239, 10,272; C85, § 27-910; O.11,248, 11,458; C91, § 27-1800; O.11,650, 13,248, 13,270, 13,726; C00, § 114-2830; O.14,015, 14,518 (installed 10/10/16), 16,086, 16,171)

Sec. 114-2831. Southwest Twenty-fifth Street—Marion Street to Stanton Avenue.

Southwest Twenty-fifth Street, on the west side, from Marion Street to Stanton Avenue, no parking any time.
(C79, § 27-910.01; O.10,207; C91, § 27-1801; O.11,650)

Sec. 114-2832. Southeast Twenty-fifth Street—Shaw Street to East Payton Avenue.

Southeast Twenty-fifth Street, on the west side, from Easter Lake Drive to East Porter Avenue, no parking any time.

Southeast Twenty-fifth Street, on the east side, from Shaw Street to Maury Street, no parking any time.

Southeast Twenty-fifth Street, on both sides, from Railroad Court to East Railroad Avenue, no parking any time.

Southeast Twenty-fifth Street, on the east side, from East Park Avenue south to and including the cul-de-sac, no parking any time.

Southeast Twenty-fifth Street, on the west side, from Southeast Twenty-fourth Court to East Leach Avenue, no parking any time.

Southeast Twenty-fifth Street, on the west side, from Hart Avenue to East Payton Avenue, no parking any time.
(C62, § 30-897; O.8084; C75, C79, § 27-911; O.10,123, 10,476; C91, § 27-1802; O.11,650, 13,957, 13,973, 14,833, 14,923, 15,583)

Sec. 114-2833. Southeast Twenty-sixth Court—Scott Avenue to East Porter Avenue.

Southeast Twenty-sixth Court, on the west side, from Scott Avenue to East Railroad Avenue, no parking any time.

Southeast Twenty-sixth Court, on the east side, from East Martin Luther King Jr Parkway to a point 75 feet south thereof, no parking any time.

Southeast Twenty-sixth Court, on the east, from East Leach Avenue north to and including the cul-de-sac, no parking any time.

Southeast Twenty-sixth Court, on the west side, from East Titus Avenue to East Porter Avenue, no parking any time.
(C62, § 30-897.01; O.8355, C75, C79, § 27-911.01; O.10,123, 10,476; C91, § 27-1803; O.11,650; C00, § 114-2833; O.13,957, 14,226, 14,518 (installed 5/4/16), 15,583, 16,171)

Sec. 114-2834. East Twenty-sixth Court—Maple Street to Chicago Avenue.

East Twenty-sixth Court, on the east side, from Maple Street to East University Avenue, no parking any time.

East Twenty-sixth Court, on the west side, from State Avenue to Chicago Avenue, no parking any time.

East Twenty-sixth Court, on the east side, from Chicago Avenue to a point 50 feet south thereof, no parking any time.

East Twenty-sixth Court, on the west side, from East University Avenue to a point 75 feet south thereof, no parking any time.
(C75, § 27-911.02; O.9267; C79, § 27-911.02; O.10,123; C91, § 27-1804; O.11,650, 13,115, 13,130)

Sec. 114-2835. Twenty-sixth Place—Boston Avenue to Ashby Avenue.

Twenty-sixth Place, on the east side, from Boston Avenue to a point 50 feet north thereof, no parking any time.

Twenty-sixth Place, on the west side, from Boston Avenue to Ashby Avenue, no parking any time.
(C79, § 27-911.03; O.10,123; C91, § 27-1805; O.11,650; C00, § 114-2835; O.14,518 (installed 4/20/21, 16,171)

Sec. 114-2836. Twenty-sixth Street—Woodland Avenue to Ashby Avenue.

Twenty-sixth Street, on the east side, from Woodland Avenue to a point 50 feet north thereof, no parking any time.

Twenty-sixth Street, on the west side, from Woodland Avenue to a point 250 feet north of Rollins Avenue, no parking any time.

Twenty-sixth Street, on the east side, from a point 250 feet south of School Street to School Street, no parking 8:00 a.m. to 5:00 p.m., Monday through Friday.

Twenty-sixth Street, on the east side, from School Street to Kingman Boulevard, no parking any time.

Twenty-sixth Street, on the east side, from Kingman Boulevard to University Avenue, no parking any time.

Twenty-sixth Street, on the west side, from University Avenue to a point 20 feet south thereof, no parking any time.

Twenty-sixth Street, on the west side, from a point 130 feet south of University Avenue to a point 75 feet south thereof, loading zone.

Twenty-sixth Street, on the west side, from Carpenter Avenue to a point 50 feet south thereof, no parking any time.

Twenty-sixth Street, on the east side, from Forest Avenue to a point 550 feet north of Clark Street, no parking any time.

Twenty-sixth Street, on the west side, from Washington Avenue to Franklin Avenue, no parking any time.

Twenty-sixth Street, on the east side, from Franklin Avenue to a point 50 feet south thereof, no parking any time.

Twenty-sixth Street, on both sides, from Lincoln Avenue to Hickman Road, no parking any time.

Twenty-sixth Street, on the east side, from Hickman Road to Holcomb Avenue, no parking any time.

Twenty-sixth Street, on the west side, from a point 200 feet north of Hickman Road to a point 200 feet north thereof, no parking any time.

Twenty-sixth Street, on the west side, from Holcomb Avenue to Mann Avenue, no parking any time.

Twenty-sixth Street, on the west side, from Payne Road to a point 50 feet north thereof, no parking any time.

Twenty-sixth Street, on the east side, from Payne Road to Arnolds Road, no parking any time.

Twenty-sixth Street, on the west side, from a point 165 feet north of Payne Road to a point 175 feet north and west thereof, no parking any time.

Twenty-sixth Street, on the east side, from Boston Avenue to Ashby Avenue, no parking any time.

Twenty-sixth Street, on the west side, from Ashby Avenue to a point 50 feet south thereof, no parking any time.
(C62, § 30-898; O.8084, 8124, 8595, 8639; C75, C79, § 27-912; O.9813, 10,096, 10,10,123, 10,342, 10,706; C85, § 27-912; O.11,422; C91, § 27-1806; O.11,650, 11,667, 12,023, 13,420; C00, § 114-2836; O.14,212, 14,518 (installed 7/12/06, 11/28/06, 2/14/17, 1/22/19), 15,736, 15,780, 16,013, 16,171)

Sec. 114-2837. East Twenty-sixth Street—East Court Avenue to East Madison Avenue.

East Twenty-sixth Street, on the west side, from Dean Avenue to Logan Avenue, no parking any time.

East Twenty-sixth Street, on the east side, from Dean Avenue to a point 200 feet north of East University Avenue, no parking any time.

East Twenty-sixth Street, on the west side, from East Grand Avenue to a point 75 feet north thereof, no parking any time.

East Twenty-sixth Street, on the west side, from a point 75 feet north of East Grand Avenue to a point 50 feet south of East Grand Avenue, no parking any time.

East Twenty-sixth Street, on the west side, from East University Avenue to a point 250 feet south thereof, no parking any time.

East Twenty-sixth Street, on the west side, from State Avenue to a point 420 feet north of Garfield Avenue, no parking any time.

East Twenty-six Street, on the east side, from a point 70 feet south of Garfield Avenue to a point 70 feet north of Garfield Avenue, no parking any time.

East Twenty-sixth Street, on the east side, from Easton Boulevard to a point 580 feet south thereof, no parking any time.

East Twenty-sixth Street, on the west side, from Easton Boulevard to a point 75 feet south thereof, no parking any time.

East Twenty-sixth Street, on the west side, from Hull Avenue to East Euclid Avenue, no parking any time.

East Twenty-sixth Street, on the east side, from a point 75 feet south of Wedgewood Road to East Euclid Avenue, no parking any time.

East Twenty-sixth Street, on both sides, from East Euclid Avenue to East Douglas Avenue, no parking any time.

East Twenty-sixth Street, on the west side, from East Garden Avenue to East Madison Avenue, no parking any time.

East Twenty-sixth Street, on the east side, from East Garden Avenue to a point 50 feet north thereof, no parking any time.

East Twenty-sixth Street, on the east side, from East Madison Avenue to a point 45 feet south thereof, no parking any time.
(C62, § 30-899; O.8084, 8361, 8394, 8816, 8911; C75, § 27-913; O.9155, 9356; C79, § 27-913; O.9770, 10,123, 10,418; C85, § 27-913; O.10,885; C91, § 27-1807; O.11,650, 13,043, 13,146, 13,218, 13,434; C00, § 114-2837; O.14,518 (installed 10/11/18), 16,171, 16,276, 16,477)

Sec. 114-2838. Southwest Twenty-sixth Street—Thornton Avenue to McKinley Avenue.

Southwest Twenty-sixth Street, on the east side, from Watrous Avenue to a point 700 feet north thereof, school passenger loading and unloading 7:00 a.m. to 5:00 p.m., school days.

Southwest Twenty-sixth Street, on the east side, from Watrous Avenue to a point 50 feet south thereof, no stopping or standing.

Southwest Twenty-sixth Street, on the west side, from Thornton Avenue to McKinley Avenue, no parking any time.

Southwest Twenty-sixth Street, on the east side, from Stanton Avenue to a point 60 feet south thereof, no stopping or standing.
(C62, § 30-899.01; O.8562, 8730; C75, C79, § 27-913.01; O.10,207; C91, § 27-1808; O.11,650, 13,933, 14,087)

Sec. 114-2839. Southeast Twenty-sixth Street—Dead end north of East Market Street to East Leach Avenue.

Southeast Twenty-sixth Street, on the west side, from East Market Street to a point 340 feet north thereof, no parking any time.

Southeast Twenty-sixth Street, on the east side, from East Watrous Avenue to East Leach Avenue, no parking any time.

Southeast Twenty-sixth Street, on the west side, from East Rose Avenue to a point 170 feet north thereof and any part of the cul-de-sac, no parking any time.
(C79, § 27-913.02; O.10,123; C91, § 27-1809; O.11,650, 13,239)

Sec. 114-2840. Southwest Twenty-seventh Street—Miller Avenue to dead end south.

Southwest Twenty-seventh Street, on the east side, from Miller Avenue to a point 180 feet south thereof, and any part of the cul-de-sac, no parking any time.
(C79, § 27-913.03; O.10,207; C91, § 27-1810; O.11,650)

Sec. 114-2841. East Twenty-seventh Court—Maple Street to East Jefferson Avenue.

East Twenty-seventh Court, on the east side, from Maple Street to East University Avenue, no parking any time.

East Twenty-seventh Court, on the west side, from East University Avenue to a point 50 feet north thereof, no parking any time.

East Twenty-seventh Court, on the east side, from East University Avenue to East Jefferson Avenue, no parking any time.

East Twenty-seventh Court, on the west side, from a point 230 feet south of Easton Boulevard to a point 30 feet south thereof, no parking any time.
(C62, § 30-900; O.8084; C75, C79, § 27-914; O.9708, 9724, 10,123, 10,459, 10,598; C91, § 27-1811; O.11,650, 14,126)

Sec. 114-2842. Twenty-seventh Place—Holcomb Avenue to Euclid Avenue.

Twenty-seventh Place, on the east side, from Holcomb Avenue to Sheridan Avenue, no parking any time.

Twenty-seventh Place, on the west side, from Amick Avenue to Euclid Avenue, no parking any time.
(C79, § 27-914.01, O.10,123; C91, § 27-1812; O.11,650)

Sec. 114-2843. Southeast Twenty-seventh Court—East Market Street to East Leach Avenue.

Southeast Twenty-seventh Court, on the west side, from East Market Street to the dead end south of Scott Avenue and including the turnaround, no parking any time.

Southeast Twenty-seventh Court, on the east side, from a point 665 feet south of Scott Avenue to the dead end south of Scott Avenue, no parking any time.

Southeast Twenty-seventh Court, on the west side, from the dead end north of Maury Street to Railroad Avenue, no parking any time.

Southeast Twenty-seventh Court on the east side, from a point 345 feet north of Maury Street to the dead end north of Maury Street and including the turnaround, no parking any time.

Southeast Twenty-seventh Court, on the east, from East Leach Avenue north to and including the cul-de-sac, no parking any time.
(C79, § 27-914.02; O.10,123; C91, § 27-1813; O.11,650, 13,957, 15,466)

Sec. 114-2844. Twenty-seventh Street—Terrace Road to Aurora Avenue.

Twenty-seventh Street, on the west side, from a point 195 feet north of Forest Avenue to a point 40 feet north thereof, loading zone.

Twenty-seventh Street, on both sides, from Forest Drive to Grand Avenue, no parking any time.

Twenty-seventh Street, on the east side, from Woodland Avenue to a point 50 feet north thereof, no parking any time.

Twenty-seventh Street, on the west side, from Woodland Avenue to Center Street, no parking any time.

Twenty-seventh Street, on the east side, from Center Street to a point 70 feet south thereof, no parking any time.

Twenty-seventh Street, on the east side, from School Street to a point 400 feet south thereof, no parking any time.

Twenty-seventh Street, on the west side, from School Street to University Avenue, no parking any time.

Twenty-seventh Street, on the east side, from Forest Avenue to a point 100 feet north of Clark Street, no parking any time.

Twenty-seventh Street, on the west side, from Forest Avenue to Lincoln Avenue, no parking any time.

Twenty-seventh Street, on the east side, from a point 50 feet south of Wrenwood Drive to a point 50 feet north of Wrenwood Drive, no parking any time.

Twenty-seventh Street, on the east side, from a point 50 feet south of Franklin Avenue to a point 50 feet north of Franklin Avenue, no parking any time.

Twenty-seventh Street, on the east side, from a point 50 feet south of Allison Avenue to a point 50 feet north of Allison Avenue, no parking any time.

Twenty-seventh Street, on the east side, from Lincoln Avenue to a point 50 feet south thereof, no parking any time.

Twenty-seventh Street, on the east side, from Holcomb Avenue to a point 300 feet north thereof, and on any part of the cul-de-sac, no parking any time.

Twenty-seventh Street, on the west side, from Sheridan Avenue to Arnolds Road, no parking any time.

Twenty-seventh Street, on the east side, from Adams Avenue to Boston Avenue, no parking any time.

Twenty-seventh Street, on the east side, from Amick Avenue to Euclid Avenue, no parking any time.

Twenty-seventh Street, on the west side, from Euclid Avenue to a point 50 feet south thereof, no parking any time.

Twenty-seventh Street, on the east side, from Shawnee Avenue to Aurora Avenue, no parking any time.
(C62, § 30-901; O.8084, 8152, 8294, 8595, 8858, 8893; C75, § 27-915; O.8974, 9069, 9343, 9436, 9560; C79, § 27-915; O.9653, 9849, 9878, 10,123; C85, § 27-915; O.11,256, 11,547; C91, § 27-1814; O.11,650, 11,860, 11,892, 12,093, 13,135; C00, § 114-2844; O.14,083, 14,418, 14,421, 14,518 (installed 3/21/08, 2/11/16, 11/14/18), 14,721, 15,675, 15,790, 16,171)

Sec. 114-2845. East Twenty-seventh Street—Dean Avenue to East Aurora Avenue.

East Twenty-seventh Street, on the east side, from Dean Avenue to East University Avenue, no parking any time.

East Twenty-seventh Street, on the east side, from a point 50 feet north of Capitol Avenue to a point 50 feet south of Capitol Avenue, no parking any time.

East Twenty-seventh Street, on the east side, from a point 50 feet north of East Grand Avenue to a point 50 feet south of East Grand Avenue, no parking any time.

East Twenty-seventh Street, on the east side, from East University Avenue to a point 50 feet north thereof, no parking any time.

East Twenty-seventh Street, on the west side, from East University Avenue to a point 75 feet north thereof, no parking any time.

East Twenty-seventh Street, on the east side, from Kinsey Avenue to a point 140 feet south thereof, no parking any time.

East Twenty-seventh Street, on the west side, from a point 75 feet south of East University Avenue to Guthrie Avenue, no parking any time.

East Twenty-seventh Street, on the east side, from Easton Boulevard to a point 125 feet north thereof, no parking any time.

East Twenty-seventh Street, on the east side, from a point 50 feet south of John Patterson Road to John Patterson Road, no parking any time.

East Twenty-seventh Street, on the east side, from a point 75 feet south of Guthrie Avenue to Guthrie Avenue, no parking any time.

East Twenty-seventh Street, on both sides, from Avenue Frederick M. Hubbell to Hull Avenue, no parking any time.

East Twenty-seventh Street, on the east side, from East Douglas Avenue to East Aurora Avenue, no parking any time.

East Twenty-seventh Street, on the west side, from East Douglas Avenue to a point 60 feet north thereof, no parking any time.

East Twenty-seventh Street, on the west side, from East Madison Avenue to a point 60 feet south thereof, no parking any time.
(C62, § 30-902; O.8084, 8166; C75, § 27-916; O.9100, 9267, 9279, 9330; C79, § 27-916; O.9708, 9855, 10,123, 10,373, 10,598; C91, § 27-1815; O.11,650, 13,028, 13,218, 14,015, 14,518 (installed 8/8/19, 9/10/20, 01/25/21), 15,484, 16,171)

Sec. 114-2846. Southeast Twenty-seventh Street—East Market Street to East Pine Avenue.

Southeast Twenty-seventh Street, on the west side, from East Market Street to Scott Avenue, no parking any time.

Southeast Twenty-seventh Street, on the west side, from the dead end north of Maury Street to East Railroad Avenue, no parking any time.

Southeast Twenty-seventh Street, on the east side, from a point 470 feet north of Maury Street to the dead end north of Maury Street and including the turnaround, no parking any time.

Southeast Twenty-seventh Street, on the east, from East Leach Avenue north to and including the cul-de-sac, no parking any time.

Southeast Twenty-seventh Street, on the west side, from East Titus Avenue to East Payton Avenue, no parking any time.

Southeast Twenty-seventh Street, on the west side, from East Pine Avenue to Sweetwater Drive, no parking any time.
(C79, § 27-961.01; O.10,123, 10,476; C91, § 27-1816; O.11,650, 13,957, 14,226, 14,322, 15,466, 15,583)

Sec. 114-2847. East Twenty-eighth Court—East Court Avenue to University Avenue.

East Twenty-eighth Court, on the west side, from Maple Street to East University Avenue, no parking any time.

East Twenty-eighth Court, on the east side, from East University Avenue to a point 50 feet south thereof, no parking any time.
(C62, § 30-393; O.8084; C75, C79, § 27-917; O.10,598; C91, § 27-1817; O.11,650)

Sec. 114-2848. Southeast Twenty-eighth Court—Scott Avenue to East Porter.

Southeast Twenty-eighth Court, on the west side, from Scott Avenue to a point 850 feet south thereof, no parking any time.

Southeast Twenty-eighth Court, on the east side, from East Kenyon Avenue to East Porter Avenue, no parking any time.
(C79, § 27-917.01; O.10,123; C91, § 27-1818; O.11,650, 13,973)

Sec. 114-2849. Southwest Twenty-eighth Place—Wolcott Avenue to Watrous Avenue.

Southwest Twenty-eighth Place, on the west side, from Wolcott Avenue to a point 550 feet south thereof, and any part of the cul-de-sac, no parking any time.

Southwest Twenty-eighth Place, on the east side, from Watrous Avenue to a point 330 feet north thereof, and any part of the cul-de-sac, no parking any time.
(C79, § 27-917.02; O.10,207; C91, § 27-1819; O.11,650)

Sec. 114-2850. Twenty-eighth Street—Dead end south of Terrace Drive to Euclid Avenue.

Twenty-eighth Street, on both sides, from Terrace Road to Forest Drive, no parking any time.

Twenty-eighth Street, on the west side, from Forest Drive to University Avenue, no parking any time.

Twenty-eighth Street, on the east side, from Grand Avenue to a point 75 feet south thereof, no parking any time.

Twenty-eighth Street, on the east side, from Grand Avenue north for a distance of 150 feet, no parking any time.

Twenty-eighth Street, on the east side, from Ingersoll Avenue to a point 50 feet north thereof, no parking any time.

Twenty-eighth Street, on the east side, from a point 100 feet north of Ingersoll Avenue to a point 60 feet north thereof, commercial loading zone.

Twenty-eighth Street, on the east side, from Linden Street to a point 35 feet north thereof, no parking any time.

Twenty-eighth Street, on the east side, from a point 70 feet south of High Street to a point 60 feet north of High Street, no parking any time.

Twenty-eighth Street, on the east side, from a point 100 feet south of Woodland Avenue to a point 100 feet north of Woodland Avenue, no parking any time.

Twenty-eighth Street, on the east side, from Pleasant Street to Center Street, no parking 7:00 a.m. to 5:00 p.m. school days.

Twenty-eighth Street, on the east side, from a point 75 feet south of School Street to 75 feet north of School Street, no parking any time.

Twenty-eighth Street, on the east side, from Kingman Boulevard to a point 75 feet north thereof, no parking any time.

Twenty-eighth Street, on the east side, from Kingman Boulevard to a point 75 feet south thereof, no parking any time.

Twenty-eighth Street, on the east side, from Cottage Grove Avenue to a point 60 feet north thereof, no parking any time.

Twenty-eighth Street, on the east side, from Cottage Grove Avenue to a point 85 feet south thereof, no parking any time.

Twenty-eighth Street, on the east side, from University Avenue to a point 50 feet south thereof, no parking any time.

Twenty-eighth Street, on the east side, from Forest Avenue to College Avenue, no parking any time.

Twenty-eighth Street, on the west side, from Clark Street to a point 50 feet north thereof, no parking any time.

Twenty-eighth Street, on the west side, from College Avenue to a point 50 feet south thereof, no parking any time.

Twenty-eighth Street, on the east side, from Moyer Street to Witmer Avenue, no parking any time.

Twenty-eighth Street, on the east side, from Amick Avenue to a point 50 feet north thereof, no parking any time.

Twenty-eighth Street, on the west side, from Amick Avenue to Euclid Avenue, no parking any time.

(C62, § 30-904; O.8084; C75, § 27-918; O.9343, 9374; C79, § 27-918; O.9971, 10,123, 10,207; C85, § 27-918; O.10,938; C91, § 27-1820; O.11,650, 11,778; C00, § 114-2850; O.13,658, 14,254, 14,304, 14,421, 14,476, 14,518 (installed 9/15/08, 2/11/16, 10/24/16, 1/22/19), 16,171, 16,515)

Sec. 114-2851. East Twenty-eighth Street—East Court Avenue to East Aurora Avenue.

East Twenty-eighth Street, on the west side, from a point 275 feet south of Dean Avenue to dead end south, no parking any time.

East Twenty-eighth Street, on the west side, from Dean Avenue to a point 50 feet south thereof, no parking any time.

East Twenty-eighth Street, on the east side, from Court Avenue to Easton Boulevard, no parking any time.

East Twenty-eighth Street, on the west side, from a point 50 feet north of Des Moines Street to a point 50 feet south of Des Moines Street, no parking any time.

East Twenty-eighth Street, on the west side, from a point 60 feet north of East Grand Avenue to a point 50 feet south of East Grand Avenue, no parking any time.

East Twenty-eighth Street, on the west side, from a point 50 feet north of Lyon Street to a point 50 feet south of Lyon Street, no parking any time.

East Twenty-eighth Street, on the west side, from East University Avenue to a point 75 feet south thereof, no parking any time.

East Twenty-eighth Street, on the west side, from East University Avenue to a point 50 feet north thereof, no parking any time.

East Twenty-eighth Street, on the west side, from a point 50 feet south of Easton Boulevard to Easton Boulevard, no parking any time.

East Twenty-eighth Street, on the west side, from Skeies Drive to John Patterson Road, no parking any time.

East Twenty-eighth Street, on the east side, from Guthrie Avenue to Arthur Avenue, no parking any time.

East Twenty-eighth Street, on the east side, from Arthur Avenue to Avenue Frederick M. Hubbell, no parking any time.

East Twenty-eighth Street, on the east side, from East Euclid Avenue to East Clinton Avenue, no parking any time.

East Twenty-eighth Street, on the west side, from East Euclid Avenue to East Aurora Avenue, no parking any time.
(C62, § 30-905; O.8084, 8166, 8433, 8478; C75, § 27-919; O.9226, 9445; C79, § 27-919; O.9909, 10,123, 10,222, 10,598; C91, § 27-1821; O.11,650, 13,218, 14,518 (installed 9/18/07), 16,171, 16,271)

Sec. 114-2852. Southeast Twenty-eighth Street—East Market Street to south city limits.

Southeast Twenty-eighth Street, on the east side, from East Market Street to Maury Street, no parking any time.

Southeast Twenty-eight Street, on the west side, from a point 50 feet south of Market Street to a point 100 feet north of Market Street, no parking any time.

Southeast Twenty-eighth Street, on the west side, from a point 75 feet north of Scott Avenue to a point 40 feet south of Scott Avenue, no parking any time.

Southeast Twenty-eighth Street, on the west side, from Maury Street to C.B. & Q. Street, no parking any time.

Southeast Twenty-eighth Street, on the east side, from East Leach Avenue north to and including the cul-de-sac, no parking any time.

Southeast Twenty-eight Street, on the east side, from Easter Lake Drive to East Porter Avenue, no parking any time.

Southeast Twenty-eighth Street, on the east side, from Brockway Drive south to and including the cul-de-sac, no parking any time.
(C75, § 27-919.01; O.9593; C79, § 27-919.01; O.10,123; C91, § 27-1822; O.11,650; C00, § 114-2852; O.13,957, 13,973, 14,486, 14,518 (installed 6/30/08, 4/24/09), 15,583, 16,171)

Sec. 114-2853. Southwest Twenty-eighth Street—George Flagg Parkway to dead end south of Summit Vista Drive.

Southwest Twenty-eighth Street, on the west side, from George Flagg Parkway to Sunset Road, no parking any time.

Southwest Twenty-eighth Street, on the east side, from Park Avenue to a point 60 feet south thereof, no parking any time.

Southwest Twenty-eighth Street, on the west side, from Park Avenue to Thornton Avenue, no parking any time.

Southwest Twenty-eighth Street, on the east side, from a point 60 feet north of Caulder Avenue to a point 50 feet south of Caulder Avenue, no parking any time.

Southwest Twenty-eighth Street, on the east side, from Wolcott Avenue to a point 500 feet south thereof, no parking any time.

Southwest Twenty-eighth Street, on the east side, from Watrous Avenue to a point 150 feet south of Summit Vista Drive, no parking any time.
(C79, § 27-919.011; O.10,207; C91, § 27-1823; O.11,650; C00, § 114-2853; O.14,080, 14,518 (installed 2/19/18), 16,171, 16,304)

Sec. 114-2854. Southwest Twenty-eighth Street—Army Post Road to Gannett Avenue.

Southwest Twenty-eighth Street, on both sides, from Army Post Road to Gannett Avenue, no parking any time.
(C85, § 27-919.012; O.11,302; C91, § 27-1824; O.11,650, 13,643, 14,226, 14,437, 15,559, 16,437)

Sec. 114-2855. East Twenty-ninth Court—Dead end south of Dean Avenue to Avenue Frederick M. Hubbell.

East Twenty-ninth Court, on the west side, from Dean Avenue to a point 100 feet south thereof, no parking any time.

East Twenty-ninth Court, on the east side, from Dean Avenue to a point 300 feet south thereof, school passenger loading and unloading 7:00 a.m. to 5:00 p.m., school days.

East Twenty-ninth Court, on the east side, from Grandview Avenue to Avenue Frederick M. Hubbell, no parking any time.
(C79, § 27-919.02; O.9685, 9911; C85, § 27-919.02; O.10,747; C91, § 27-1825; O.11,650, 11,774)

Sec. 114-2856. Southeast Twenty-ninth Court—East Market Street to East Payton Avenue.

Southeast Twenty-ninth Court, on the east side, from East Market Street to East Elm Street, no parking any time.

Southeast Twenty-ninth Court, on the east side, from Easter Lake Drive to the dead end south of East Payton Avenue, no parking any time.
(C79, § 27-919.03; O.9957; C91, § 27-1826; O.11,650, 13,973)

Sec. 114-2857. Twenty-ninth Street—Forest Drive to north city limits.

Twenty-ninth Street, on the east side, from Forest Drive to Woodland Avenue, no parking any time.

Twenty-ninth Street, on the west side, from Grand Avenue to a point 125 feet south thereof, no parking any time.

Twenty-ninth Street, on the west side, from Grand Avenue to a point 50 feet north thereof, no parking any time.

Twenty-ninth Street, on the west side, from a point 50 feet south of Ingersoll Avenue to a point 50 feet north of Ingersoll Avenue, no parking any time.

Twenty-ninth Street, on the west side, from High Street to a point 150 feet north thereof, no parking any time.

Twenty-ninth Street, on the west side, from Woodland Avenue to a point 60 feet south thereof, no parking any time.

Twenty-ninth Street, on the east side, from Center Street to a point 330 feet north thereof, no parking any time.

Twenty-ninth Street, on the east side, from School Street to a point 530 feet south thereof and any part of the cul-de-sac, no parking any time.

Twenty-ninth Street, on the west side, from School Street to Kingman Boulevard, no parking any time.

Twenty-ninth Street, on the east side, from Kingman Boulevard to University Avenue, no parking any time.

Twenty-ninth Street, on the west side, from a point 50 feet south of Rutland Avenue to a point 50 feet north of Rutland Avenue, no parking any time.

Twenty-ninth Street, on the west side, from Cottage Grove Avenue to a point 30 feet south thereof, no parking any time.

Twenty-ninth Street, on the west side, from Brattleboro Avenue to a point 50 feet south thereof, no parking any time.

Twenty-ninth Street, on the west side, from University Avenue to a point 50 feet south thereof, no parking any time.

Twenty-ninth Street, on the west side, from Forest Avenue to a point 600 feet north of Clark Street, no parking any time.

Twenty-ninth Street, on the east side, from Forest Avenue to a point 75 feet north thereof, no parking any time.

Twenty-ninth Street, on the east side, from Clark Street to a point 40 feet north thereof, no parking any time.

Twenty-ninth Street, on the east side, from Clark Street to a point 50 feet south thereof, no parking any time.

Twenty-ninth Street, on the east side, from a point 400 feet south of Madison Avenue to Aurora Avenue, no parking any time.

Twenty-ninth Street, on the west side, from Merced Drive to Twana Drive, no parking any time.
(C62, § 30-906; O.8084, 8249, 8262, 8317, 8706; C75, § 27-920; O.9267; C79, § 27-920; O.9849, 10,008, 10,123, 10,309; C85, § 27-920; O.10,885; C91, § 27-1827; O.11,650, 12,023, 13,391, 13,647, 13,918, 14,421, 14,449, 14,472, 14,476, 14,518 (installed 11/14/18), 14,833, 16,171)

Sec. 114-2858. East Twenty-ninth Street—East Court Avenue to East Aurora Avenue.

East Twenty-ninth Street, on the east side, from Dean Avenue to East Aurora Avenue, no parking any time.

East Twenty-ninth Street, on the west side, from Dean Avenue to a point 480 feet south thereof, no parking any time.

East Twenty-ninth Street, on the west side, from a point 50 feet north of Capitol Avenue to a point 50 feet south of Capitol Avenue, no parking any time.

East Twenty-ninth Street, on the west side, from a point 50 feet north of Des Moines Street to a point 50 feet south of Des Moines Street, no parking any time.

East Twenty-ninth Street, on the west side, from a point 50 feet north of East Grand Avenue to a point 50 feet south of East Grand Avenue, no parking any time.

East Twenty-ninth Street, on the west side, from a point 60 feet south of the west leg of Lyon Street to a point 50 feet north of the west leg of Lyon Street, no parking any time.

East Twenty-ninth Street, on the west side, from Avenue Frederick M. Hubbell to a point 205 feet south thereof, no parking any time.

East Twenty-ninth Street, on the west side, from Avenue Frederick M. Hubbell to East Boyd Street, no parking any time.

East Twenty-ninth Street, on the west side, from East University Avenue to a point 100 feet south thereof, no parking any time.

East Twenty-ninth Street, on the west side, from East University Avenue to a point 300 feet north of Easton Boulevard, no parking any time.

East Twenty-ninth Street, on the west side, from a point 70 feet south of Guthrie Avenue to Guthrie Avenue, no parking any time.

East Twenty-ninth Street, on the west side, from a point 150 feet north of Tiffin Avenue to a point 275 feet north thereof, school bus loading and unloading, 7:00 a.m. to 5:00 p.m. school days.

East Twenty-ninth Street, on the west side, from a point 425 feet north of Tiffin Avenue to a point 65 feet north thereof, no stopping or standing.

East Twenty-ninth Street, on the west side, from a point 490 feet north of Tiffin Avenue to a point 160 feet north thereof, school passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days.

East Twenty-ninth Street, on the west side, from East Ovid Avenue to East Clinton Avenue, no parking any time.

East Twenty-ninth Street, on the west side, from East Clinton Avenue to a point 200 feet north thereof, bus loading zone.

East Twenty-ninth Street, on the west side, from a point 200 feet north of East Clinton Avenue to East Douglas Avenue, no stopping or standing.

East Twenty-ninth Street, on the west side, from East Madison Avenue to a point 50 feet north thereof, no parking any time.

East Twenty-ninth Street, on the west side, from East Aurora Avenue to a point 75 feet south thereof, no parking any time.
(C62, § 30-907; O.8084, 8166; C75, § 27-921; O.9001, 9146, 9362, 9524, 9581, 9596; C79, § 27-921; O.10,086, 10,412, 10,476, 10,513; C85, § 27-921; O.11,089; C91, § 27-1828; O.11,650, 13,139, 13,193, 13,218, 13,295, 16,437, 16,511)

Sec. 114-2859. Southwest Twenty-ninth Street—Seniomsed Avenue to Emma Avenue.

Southwest Twenty-ninth Street, on the west side, from Seniomsed to Edwards Avenue, no parking any time.

Southwest Twenty-ninth Street, on the west side, from Willowmere Drive to a point 50 feet south thereof, no parking any time.

Southwest Twenty-ninth Street, on the east side, from Willowmere Drive to Park Avenue, no parking any time.

Southwest Twenty-ninth Street, on the east side, from Thornton Avenue to Watrous Avenue, no parking any time.

Southwest Twenty-ninth Street, on the west side, from Stanton Avenue to Emma Avenue, no parking any time.

Southwest Twenty-ninth Street, on the east side, from Stanton Avenue to a point 75 feet south thereof, no parking anytime.
(C79, § 27-921.01; O.9849, 10,207; C91, § 27-1829; O.11,650; C00, § 114-2859; O.14,518 (installed 11/29/17), 16,171, 16,352)

Sec. 114-2860. Southeast Twenty-ninth Street—East Elm Street to East Porter Avenue.

Southeast Twenty-ninth Street, on the east side, from East Elm Street to Scott Avenue, no parking any time.

Southeast Twenty-ninth Street, on the east side, from East Kenyon Avenue to East Porter Avenue, no parking any time.
(C79, § 27-921.02; O.10,123; C91, § 27-1830; O.11,650, 13,973)

Sec. 114-2861. East Thirtieth Court—Dean Avenue to East Walnut Street.

East Thirtieth Court, on the west side, from Dean Avenue to East Walnut Street, no parking any time.
(C62, § 30-907.01; O.8166; C75, C79, § 27-922; C91, § 27-1831; O.11,650)

Sec. 114-2861.1. Southeast Thirtieth Court—East Diehl Avenue to Hart Avenue.

Southeast Thirtieth Court, on the east side, from Hart Avenue north to and including the cul-de-sac, no parking any time.
(O.13,973)

Sec. 114-2862. Thirtieth Street—Terrace Drive to dead end north of Aurora Avenue.

Thirtieth Street, on the west side, from Terrace Drive to Northwood Road, no parking any time.

Thirtieth Street, on the west side, from Center Street to a point 217 feet north thereof and on any part of the cul-de-sac, no parking any time.

Thirtieth Street, on the west side, from School Street to a point 500 feet south thereof, no parking any time.

Thirtieth Street, on the east side, from University Avenue to Euclid Avenue, no parking any time.

Thirtieth Street, on the east side, from Carpenter Avenue to a point 300 feet north, loading zone.

Thirtieth Street, on the east side, from a point 80 feet south of Carpenter Avenue to a point 300 feet south thereof, loading zone.

Thirtieth Street, on the west side, from University Avenue to Francis Avenue, no parking any time.

Thirtieth Street, on the west side, from Francis Avenue to a point 60 feet north thereof, no stopping or standing.

Thirtieth Street, on the west side, from a point 60 feet north of Francis Avenue to a point 100 feet north thereof, school bus loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Thirtieth Street, on the west side, from a point 160 feet north of Francis Avenue to Hickman Road, no stopping or standing.

Thirtieth Street, on the west side, from Hickman Road to Euclid Avenue, no parking any time.

Thirtieth Street, on the east side, from Douglas Avenue to a point 50 feet north thereof, no parking any time.

Thirtieth Street, on the west side, from Douglas Avenue to Aurora Avenue, no parking any time.

Thirtieth Street, on the east side, from Madison Avenue to a point 75 feet north thereof, no parking any time.

Thirtieth Street, on the east side, from Aurora Avenue to a point 70 feet south thereof, no parking any time.
(C62, § 30-908; O.8084, 8639; C75, § 27-923; O.8998; C79, § 27-923; O.10,123, 10,207, 10,598; C91, § 27-1832; O.11,650, 13,794, 14,379, 16,241)

Sec. 114-2863. East Thirtieth Street—East Court Avenue to East Aurora Avenue.

East Thirtieth Street, on both sides, from East Court Avenue to East University Avenue, no parking any time.

East Thirtieth Street, on the west side, from East University Avenue to Mahaska Avenue, no parking any time.

East Thirtieth Street, on the east side, from East University Avenue to East Washington Avenue, no parking any time.

East Thirtieth Street, on the west side, from Kinsey Avenue to a point 80 feet north thereof, no parking any time.

East Thirtieth Street, on the west side, from East Jefferson Avenue to Easton Boulevard, no parking any time.

East Thirtieth Street, on the east side, from East Sheridan Avenue to Avenue Frederick M. Hubbell, no parking any time.

East Thirtieth Street, on the west side, from East Ovid Avenue to East Euclid Avenue, no parking any time.

East Thirtieth Street, on the east side, from East Ovid Avenue north for a distance of 160 feet, no parking any time.

East Thirtieth Street, on the east side, from East Euclid Avenue to a point 50 feet south thereof, no parking any time.

East Thirtieth Street, on the east side, from East Douglas Avenue to East Aurora Avenue, no parking any time.
(C62, § 30-909; O.8084, 8166, 8491; C75, § 27-924; O.9139, 9197; C79, § 27-924; O.9685, 10,598; C91, § 27-1833; O.11,650, 13,818, 16,437)

Sec. 114-2864. Southeast Thirtieth Street—East Court Avenue to Brockway Drive.

Southeast Thirtieth Street, on both sides, from East Court Avenue to Vandalia Road, no parking any time.

Southeast Thirtieth Street, on the west side, from Hartford Avenue to East Watrous Avenue, no parking any time.

Southeast Thirtieth Street, on the west side, from East Titus Avenue to Easter Lake Drive, no parking any time.

Southeast Thirtieth Street, on the east side, from East Titus Avenue to a point 80 feet south thereof, no parking any time.

Southeast Thirtieth Street, on the west side, from Easter Lake Drive to Hart Avenue, no parking any time.

Southeast Thirtieth Street, on the east side, from East Army Post Road to Brockway Drive, no parking any time.
(C62, § 30-910; O.8084; C75, C79, § 27-925; O.10,123; C91, § 27-1834; O.11,650, 13,973, 16,009, 16,475)

Sec. 114-2865. Southwest Thirtieth Street—George Flagg Parkway to dead end south of Summit Vista Drive.

Southwest Thirtieth Street, on the east side, from George Flagg Parkway to Park Avenue, no parking any time.

Southwest Thirtieth Street, on the west side, from Wolcott Avenue to a point 115 feet south thereof, no parking any time.

Southwest Thirtieth Street, on the east side, from a point 230 feet north of Wolcott Avenue and any part of the cul-de-sac to Rose Avenue, no parking any time.

Southwest Thirtieth Street, on the east side, from Watrous Avenue to a point 150 feet south of Summit Vista Drive, no parking any time.
(C79, § 27-926; O.10,207; C91, § 27-1835; O.11,650; C00, § 114-2865; O.14,080, 14,518 (installed 6/29/06, 11/6/13), 16,171)

Sec. 114-2866. Reserved.

Editor's note—Ord. No. 14,437, § 1, adopted April 25, 2005, repealed § 114-2866, which pertained to Southwest Thirtieth Street—Army Post Road to dead end south of Southwest Littell Avenue and derived from Code 1985, § 27-926.01; Ord. No. 11,302; Code 1991, § 27-1836; and Ord. No. 11,650.

Sec. 114-2867. East Thirty-first Court—East Washington Avenue to Avenue Frederick M. Hubbell.

East Thirty-first Court, on the east side, from East Washington Avenue to Easton Boulevard, no parking any time.

East Thirty-first Court, on the west side, from East Washington Avenue to a point 50 feet north thereof, no parking any time.

East Thirty-first Court, on the east side, from Avenue Frederick M. Hubbell to a point 140 feet south thereof, no parking any time.
(C62, § 30-912; O.8084; C75, C79, § 27-927; O.9685; C91, § 27-1837; O.11,650; C00, § 114-2867; O.14,518 (installed 9/11/17), 16,171)

Sec. 114-2867.1. Southeast Thirty-first Court—East Titus Avenue to Easter Lake Drive.

Southeast Thirty-first Court, on the east side, from East Spring Street north to and including the cul-de-sac, no parking any time.

Southeast Thirty-first Court, on the east side, from East Spring Street south to and including the cul-de-sac, no parking any time.
(O.13,973)

Sec. 114-2868. Thirty-first Street—John Lynde Road to dead end north of Lincoln Avenue.

Thirty-first Street, on the east side, from St. John's Road to Grand Avenue, no parking any time.

Thirty-first Street, on the west side, from Elmwood Drive to a point 125 feet north thereof, no parking any time.

Thirty-first Street, on the west side, from Grand Avenue to a point 150 feet south thereof, no parking any time.

Thirty-first Street, on the west side, from a point 150 feet south of Grand Avenue to a point 60 feet south thereof, commercial loading zone.

Thirty-first Street, on the west side, from a point 210 feet south of Grand Avenue to a point 210 feet south thereof, no parking any time.

Thirty-first Street, on the west side, from a point 420 feet south of Grand Avenue to a point 550 feet south thereof, no parking 8:00 a.m. to 5:00 p.m., Monday through Friday.

Thirty-first Street, on the east side, from Grand Avenue to a point 60 feet north thereof, no parking any time.

Thirty-first Street, on the west side, from Grand Avenue to Ingersoll Avenue, no parking any time.

Thirty-first Street, on the east side, from Ingersoll Avenue to a point 220 feet south thereof, no parking any time.

Thirty-first Street, on both sides, from Ingersoll Avenue to a point 250 feet north of Pleasant Street, no parking any time.

Thirty-first Street, on both sides, from a point 250 feet north of Pleasant Street to a point 200 feet north thereof, no stopping or standing.

Thirty-first Street, on both sides, from a point 450 feet north of Pleasant Street to University Avenue, no parking any time.

Thirty-first Street, on the west side, from University Avenue to Forest Avenue, no parking any time.

Thirty-first Street, on the east side, from 50 feet south of Carpenter Avenue to a point 50 feet north of Carpenter Avenue, no parking any time.

Thirty-first Street, on the west side, from Forest Avenue to a point 50 feet north thereof, no parking any time.

Thirty-first Street, on the east side, from Forest Avenue to the dead end north of College Avenue, no parking any time.

Thirty-first Street, on the west side, from a point 275 feet north of College Avenue to the dead end north thereof, no parking any time.

Thirty-first Street, on the west side, from Victoria Drive to a point 70 feet north thereof, no parking any time.

Thirty-first Street, on the east side, from Victoria Drive to Lincoln Avenue, no parking any time.
(C62, § 30-913; O.8084, 8205; C75, § 27-928; O.9290; C79, § 27-928; O.9795, 9886, 10,424, 10,435, 10,476; C85, § 27-928; O.10,848, 11,161; C91, § 27-1838; O.11,650, 13,780, 13,924, 14,518 (installed 12/15/20, 3/10/22), 14,627, 15,110, 15,466, 15,790, 16,171, 16,546)

Sec. 114-2869. Southwest Thirty-first Street—Seniomsed Avenue to McKinley Avenue.

Southwest Thirty-first Street, on the east side, from a point 75 feet north of Edwards Avenue to Edwards Avenue, no parking any time.

Southwest Thirty-first Street, on the west side, from Seniomsed Avenue to a point 300 feet south of Edwards Avenue, no parking any time.

Southwest Thirty-first Street, on the west side, from Park Avenue to McKinley Avenue, no parking any time.

Southwest Thirty-first Street, on the east side, from McKinley Avenue to a point 75 feet north thereof, no parking any time.
(C75, § 27-928.01; O.9226; C79, § 27-928.01; O.9849, 10,207; C91, § 27-1839; O.11,650, 14,518 (installed 2/25/21), 16,171)

Sec. 114-2870. Southeast Thirty-first Street—Maury Street to East Payton Avenue.

Southeast Thirty-first Street, on the west side, from Maury Street to Vale Street, no parking any time.

Southeast Thirty-first Street, on the east side, from East Spring Street south to and including the cul-de-sac, no parking any time.

Southeast Thirty-first Street, on the east side, from Easter Lake Drive to East Payton Avenue, no parking any time.
(C79, § 27-928.02; O.9685; C91, § 27-1840; O.11,650, 13,973)

Sec. 114-2871. East Thirty-first Street—Carr Street to East Douglas Avenue.

East Thirty-first Street, on the west side, from Carr Street to Dean Avenue, no parking any time.

East Thirty-first Street, on the east side, from Dean Avenue to East Walnut Street, no parking any time.

East Thirty-first Street, on the east side, from East Washington Avenue to Easton Boulevard, no parking any time.

East Thirty-first Street, on the west side, from Easton Boulevard to a point 75 feet south thereof, no parking any time.

East Thirty-first Street, on the east side, from Thompson Avenue to John Patterson Road, no parking any time.

East Thirty-first Street, on the west side, from East Euclid Avenue to a point 50 feet north thereof, no parking any time.

East Thirty-first Street, on the east side, from East Euclid Avenue to East Clinton Avenue, no parking any time.
(C62, § 30-913.01; O.8166; C75, § 27-929; O.9190; C79, § 27-929; O.9685, 10,278, 10,567; C85, § 27-929; O.11,476; C91, § 27-1841; O.11,650)

Sec. 114-2872. East Thirty-second Court—East Court Avenue to East Tiffin Avenue.

East Thirty-second Court, on the west side, from East Court Avenue to Carr Street, no parking any time.

East Thirty-second Court, on the west side, from East Washington Avenue to Easton Boulevard, no parking any time.

East Thirty-second Court, on the east side, from East Washington Avenue to a point 50 feet north thereof, no parking any time.

East Thirty-second Court, on the east side, from Easton Boulevard to a point 50 feet south thereof, no parking any time.

East Thirty-second Court, on the east side, from Tiffin Avenue to Hull Avenue, no parking any time.

East Thirty-second Court, on the west side, from Tiffin Avenue to a point 50 feet south thereof, no parking any time.
(C75, § 27-929.01; O.8964, 9387; C79, § 27-929.01; O.9639, 9649; C91, § 27-1842; O.11,650; C00, § 114-2872; O.14,518 (installed 12/22/15), 16,171)

Sec. 114-2873. Southeast Thirty-second Court—East Court Avenue to Laurel Hill Road.

Southeast Thirty-second Court, on the west side, from East Court Avenue to Laurel Hill Road, no parking any time.
(C79, § 27-929.02; O.9639; C91, § 27-1843; O.11,650)

Sec. 114-2874. Thirty-second Place—John Lynde Road to Terrace Drive.

Thirty-second Place, on the west side, from John Lynde Road to Terrace Drive, no parking any time.
(C79, § 27-929.03; O.9849; C91, § 27-1844; O.11,650)

Sec. 114-2875. Thirty-second Street—Woodland Avenue to Hickman Road.

Thirty-second Street, on the west side, from Woodland Avenue to Center Street, no parking any time.

Thirty-second Street, on the east side, from Woodland Avenue to a point 50 feet north thereof, no parking any time.

Thirty-second Street, on the east side, from a point 55 feet south of Center Street to Center Street, no parking any time.

Thirty-second Street, on the west side, from University Avenue to Forest Avenue, no parking any time.

Thirty-second Street, on the east side, from University Avenue to a point 60 feet north thereof, no parking any time.

Thirty-second Street, on the east side, from a point 50 feet south of Carpenter Avenue to a point 50 feet north of Carpenter Avenue, no parking any time.

Thirty-second Street, on the east side, from Forest Avenue to a point 150 feet south thereof, no parking any time.

Thirty-second Street, on the west side, from Forest Avenue to a point 50 feet north thereof, no parking any time.

Thirty-second Street, on the east side, from Forest Avenue to Mondamin Avenue, no parking any time.

Thirty-second Street, on the west side, from Clark Street to a point 50 feet north thereof, no parking any time.

Thirty-second Street, on the west side, from Lincoln Avenue to a point 50 feet south thereof, no parking any time.

Thirty-second Street, on the west side, from Lincoln Avenue to a point 60 feet north thereof, no parking any time.

Thirty-second Street, on the east side, from Lincoln Avenue to Hickman Road, no parking any time.

Thirty-second Street, on the west side, from a point 385 feet south of Hickman Road to a point 90 feet south thereof, no parking 7:00 a.m. to 5:00 p.m. school days.

Thirty-second Street, on the west side, from Hickman Road to a point 50 feet south thereof, no parking any time.
(C62, § 30-914; O.8084, 8262; C75, § 27-930; O.9330, 9607; C91, § 27-1845; O.11,650, 13,029, 13,794; C00, § 114-2875; O.14,212, 14,518 (installed 3/3/10, 1/3/12, 5/4/17, 5/22/18, 12/3/18, 3/17/20), 16,171)

Sec. 114-2876. East Thirty-second Street—East Court Avenue to East Aurora Avenue.

East Thirty-second Street, on the east side, from East Court Avenue to Dean Avenue, no parking any time.

East Thirty-second Street, on the west side, from East University Avenue to East Washington Avenue, no parking any time.

East Thirty-second Street, on the east side, from East University Avenue to a point 50 feet north thereof, no parking any time.

East Thirty-second Street, on the east side, from a point 50 feet north of State Avenue to a point 50 feet south of State Avenue, no parking any time.

East Thirty-second Street, on the east side, from a point 50 feet north of Mahaska Avenue to a point 50 feet south of Mahaska Avenue, no parking any time.

East Thirty-second Street, on the east side, from Cleveland Avenue to a point 60 feet north thereof, no parking any time.

East Thirty-second Street, on the east side, from a point 50 feet south of East Washington Avenue to Easton Boulevard, no parking any time.

East Thirty-second Street, on the east side, from a point 190 feet south of John Patterson Road to Guthrie Avenue, no parking any time.

East Thirty-second Street, on the west side, from Hull Avenue to Avenue Frederick M. Hubbell, no parking any time.

East Thirty-second Street, on the west side, from East Ovid Avenue to a point 50 feet north thereof, no parking any time.

East Thirty-second Street, on the east side, from East Ovid Avenue to East Euclid Avenue, no parking any time.

East Thirty-second Street, on the west side, from East Euclid Avenue to a point 50 feet south thereof, no parking any time.

East Thirty-second Street, on the east side, from East Douglas Avenue to a point 50 feet north thereof, no parking any time.

East Thirty-second Street, on the west side, from East Douglas Avenue to East Aurora Avenue, no parking any time.
(C62, § 30-915; O.8084, 8166, 8453; C75, § 27-931; O.9576, 9594; C79, § 27-931; O.9639, 9649, 9685, 10,598, 10,692; C91, § 27-1846; O.11,650, 12,093, 13,218, 13,256, 15,868)

Sec. 114-2876.1. Southeast Thirty-second Street—East Titus Avenue to East Wall Avenue.

Southeast Thirtieth Street, on the east side, from East Titus Avenue to East Wall Avenue, no parking any time.
(O.13,973)

Sec. 114-2877. Southwest Thirty-second Street—Wolcott Avenue to McKinley Avenue.

Southwest Thirty-second Street, on the west side, from Wolcott Avenue to Summit Vista Drive, no parking any time.
(C62, § 30-915.01; O.8501; C75, C79, § 27-931.01; O.10,207; C91, § 27-1847; O.11,650, 14,339)

Sec. 114-2878. East Thirty-third Court—East Court Avenue to Dubuque Avenue.

East Thirty-third Court, on the east side, from East Court Avenue to Carr Street, no parking any time.

East Thirty-third Court, on both sides, from Sims Drive to East University Avenue, no parking any time.

East Thirty-third Court, on the east side, from East University Avenue to Dubuque Avenue, no parking any time.

East Thirty-third Court, on the west side, from East University Avenue to a point 80 feet north thereof, no parking any time.

East Thirty-third Court, on the west side, from Mahaska Avenue to a point 50 feet north thereof, no parking any time.

East Thirty-third Court, on the west side, from a point 50 feet north of Mahaska Avenue to a point 50 feet south of Mahaska Avenue, no parking any time.

East Thirty-third Court, on the west side, from Dubuque Avenue to a point 60 feet south thereof, no parking any time.
(C62, § 30-916; O.8084; C75, C79, § 27-932; O.9685, 10,598; C91, § 27-1848; O.11,650, 11,872, 13,218, 13,407; C00, § 114-2878; O.14,518 (installed 2/26/08), 16,171)

Sec. 114-2879. Southeast Thirty-third Court—East Court Avenue to Laurel Hill Road.

Southeast Thirty-third Court, on the east side, from East Court Avenue to Laurel Hill Road, no parking any time.
(C79, § 27-932.01; O.9639; C91, § 27-1849; O.11,650)

Sec. 114-2880. Thirty-third Street—Woodland Avenue to Aurora Avenue.

Thirty-third Street, on the east side, from Woodland Avenue to Center Street, no parking any time.

Thirty-third Street, on the west side, from Woodland Avenue to a point 50 feet north thereof, no parking any time.

Thirty-third Street, on the west side, from Center Street to Rollins Avenue, no parking any time.

Thirty-third Street, on the west side, from Crocker Street to Kingman Boulevard, no parking any time.

Thirty-third Street, on the west side, from Kingman Boulevard to Cottage Grove Avenue, no parking any time.

Thirty-third Street, on the east side, from Cottage Grove Avenue to a point 50 feet south thereof, no parking any time.

Thirty-third Street, on both sides, from Cottage Grove Avenue to Brattleboro Avenue, no parking any time.

Thirty-third Street, on the west side, from the dead end south of Forest Avenue to a point 185 feet north thereof, no parking any time.

Thirty-third Street, on the west side, from a point 50 feet south of Forest Avenue to a point 50 feet north of Forest Avenue, no parking any time.

Thirty-third Street, on the east side, from a point 700 feet south of Forest Avenue to Clark Street, no parking any time.

Thirty-third Street, on the west side, from Clark Street to Mondamin Avenue, no parking any time.

Thirty-third Street, on the east side, from a point 155 feet north of College Avenue to a point 25 feet north thereof, is designated as handicapped parking spaces and are subject to the same prohibition as is found in subsection 114-616(a) of this chapter.

Thirty-third Street, on the west side, from Lincoln Avenue to Sheridan Avenue, no parking any time.

Thirty-third Street, on the east side, from Madison Avenue to Aurora Avenue, no parking any time.
(C62, § 30-916; O.8084; C75, § 27-933; O.8984, 9012; C79, § 27-933; O.9886, 10,123, 10,246, 10,402; C91, § 27-1850; O.11,650, 11,723, 13,130; C00, § 114-2880; O.14,033, 14,518 (installed 3/3/10), 15,899, 16,171, 16,380)

Sec. 114-2881. East Thirty-third Street—East Court Avenue to East Douglas Avenue.

East Thirty-third Street, on the east side, from East Court Avenue to Carr Street, no parking any time.

East Thirty-third Street, on the east side, from East University Avenue to State Avenue, no parking any time.

East Thirty-third Street, on the west side, from East University Avenue to Cleveland Avenue, no parking any time.

East Thirty-third Street, on the east side, from a point 50 feet south of Dubuque Avenue to a point 50 feet north of Dubuque Avenue, no parking any time.

East Thirty-third Street, on the east side, from a point 50 feet north of Dubuque Avenue to Indianapolis Avenue, no stopping or standing 7:00 a.m. to 5:00 p.m. school days.

East Thirty-third Street, on the west side, from Cleveland Avenue to a point 150 feet north thereof, no stopping or standing 7:00 a.m. to 5:00 p.m. school days.

East Thirty-third Street, on the east side, from a point 192 feet north of East Washington Avenue to a point 275 feet north thereof, no parking any time.

East Thirty-third Street, on the east side, from a point 45 feet north of Easton Boulevard to a point 55 feet north thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in subsection 114-616(a) of this chapter.

East Thirty-third Street, on the east side, from Easton Boulevard to a point 250 feet south thereof, no parking any time.

East Thirty-third Street, on the west side, from a point 250 feet south of Easton Boulevard to a point 530 feet north of Easton Boulevard, no parking any time.

East Thirty-third Street, on the east side, from Thompson Avenue to a point 230 feet south thereof, passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days.

East Thirty-third Street, on the west side, from Avenue Frederick M. Hubbell to a point 50 feet north of East Euclid Avenue, no parking any time.

East Thirty-third Street, on the east side, from Avenue Frederick M. Hubbell to East Douglas Avenue, no parking any time.
(C62, § 30-918; O.8084; C75, C79, § 27-934; O.9639, 9685, 10,018, 10,036, 10,239, 10,526, 10,598; C91, § 27-1851; O.11,650, 13,239, 14,970, 15,652)

Sec. 114-2882. Southeast Thirty-third Street—East Court Avenue to East Payton Avenue.

Southeast Thirty-third Street, on the east side, from East Court Avenue to Laurel Hill Road, no parking any time.

Southeast Thirty-third Street, on the west side, from Scott Avenue to a point 740 feet north thereof, no parking any time.

Southeast Thirty-third Street, on the west side, from East Southlawn Drive to the dead end south of East Hart Avenue, no parking any time.
(C79, § 27-934.01; O.9639, 9685; C91, § 27-1852; O.11,650, 14,812)

Sec. 114-2883. Southwest Thirty-third Street—Park Avenue to cul-de-sac south of Gannett Avenue.

Southwest Thirty-third Street, on the west side, from Park Avenue to and including the cul-de-sac south of Wolcott Avenue, no parking any time.

Southwest Thirty-third Street, on the west side, from and including the cul-de-sac north of Stanton Avenue to and including the cul-de-sac south of Stanton Avenue, no parking any time.

Southwest Thirty-third Street, on the west side, from Gannett Avenue to and including the cul-de-sac south of Gannett Avenue, no parking any time.

Southwest Thirty-third Street, on the east side, from Gannett Avenue to a point 70 feet south thereof, no parking anytime.
(C79, § 27-934.02; O.10,207; C91, § 27-1853; O.11,650, 14,226, 15,456, 15,534, 16,552)

Sec. 114-2884. Thirty-fourth Place—Davisson Road to Adams Avenue.

Thirty-fourth Place, on the east side, from Davisson Road to Adams Avenue, no parking any time.
(C62, § 30-918.01; O.8144; C75, C79, § 27-935; C91, § 27-1854; O.11,650)

Sec. 114-2884.05. Southwest Thirty-fourth Place—Rose Avenue to dead end north of Rose Avenue.

Southwest Thirty-fourth Place, on the west side, from Rose Avenue to a point 65 feet north thereof, no parking any time.
(C00, § 114-2884.05; O.14,518 (installed 3/10/06), 16,171)

Sec. 114-2885. Thirty-fourth Street—John Lynde Road to Seneca Avenue.

Thirty-fourth Street, on the west side, from St. John's Road to Elmwood Drive, no parking any time.

Thirty-fourth Street, on the west side, from Ingersoll Avenue to Woodland Avenue, no parking any time.

Thirty-fourth Street, on the east side, from Woodland Avenue to Center Street, no parking any time.

Thirty-fourth Street, on the west side, from Woodland Avenue to a point 50 feet north thereof, no parking any time.

Thirty-fourth Street, on the east side from Forest Avenue to a point 60 feet north thereof, no parking any time.

Thirty-fourth Street, on the east side, from University Avenue to Forest Avenue, no parking any time.

Thirty-fourth Street, on the west side, from University Avenue to Clark Street, no parking any time.

Thirty-fourth Street, on the east side, from a point 75 feet south of Clark Street to a point 75 feet north of Clark Street, no parking any time.

Thirty-fourth Street, on the east side, from a point 50 feet south of Jefferson Avenue to a point 50 feet north of Jefferson Avenue, no parking any time.

Thirty-fourth Street, on the west side, from a point 300 feet north of Clark Street to Urbandale Avenue, no parking any time.

Thirty-fourth Street, on the east side, from a point 50 feet south of Franklin Avenue to a point 50 feet north of Franklin Avenue, no parking any time.

Thirty-fourth Street, on the east side, from Lincoln Avenue to a point 50 feet south thereof, no parking any time.

Thirty-fourth Street, on the east side, from Hickman Road to a point 75 feet south thereof, no parking any time.

Thirty-fourth Street, on the east side, from Hickman Road to a point 60 feet north thereof, no parking any time.

Thirty-fourth Street, on the east side, from Sheridan Avenue to a point 50 feet south thereof, no parking any time.

Thirty-fourth Street, on the east side, from Urbandale Avenue to Adams Avenue, no parking any time.

Thirty-fourth Street, on the east side, from Douglas Avenue to a point 50 feet north thereof, no parking any time.

Thirty-fourth Street, on the west side, from Douglas Avenue to Seneca Avenue, no parking any time.

Thirty-fourth Street, on the east side, from a point 50 feet north of Douglas Avenue to Seneca Avenue, no parking 9:00 a.m. to 3:00 p.m., Monday through Friday.
(C62, § 30-919; O.8084, 8387; C75, § 27-936; O.8979, 9069, 9289, 9553; C79, § 27-936; O.9760, 9849, 9886, 10,123, 10,386, 10,598; C85, § 27-936; O.11,476, 11,600; C91, § 27-1855; O.11,650, 11,737, 13,193, 13,332; C00, § 114-2885; O.14,385, 14,518 (installed 4/22/09, 7/27/21), 14,987, 16,171)

Sec. 114-2886. East Thirty-fourth Street—East Court Avenue to East Aurora Avenue.

East Thirty-fourth Street, on the west side, from a point 50 feet north of East Court Avenue to a point 50 feet south of East Court Avenue, no parking any time.

East Thirty-fourth Street, on the east side, from East Court Avenue to Dean Avenue, no parking any time.

East Thirty-fourth Street, on both sides, from East University Avenue to Dubuque Avenue, no parking any time.

East Thirty-fourth Street, on the east side, from Kinsey Avenue to Eastwood Drive, no parking any time.

East Thirty-fourth Street, on the east side, from Easton Boulevard to East Thirty-third Street, no parking any time.

East Thirty-fourth Street, on the west side, from Easton Boulevard to a point 50 feet north thereof, no parking any time.

East Thirty-fourth Street, on the west side, from Colfax Avenue to East Aurora Avenue, no parking any time.
(C62, § 30-920; O.8084, 8019, 8166; C75, § 27-937; O.9209; C79, § 27-937; O.9685, 9849; C91, § 27-1856; O.11,650, 13,218, 13,239; C00, 14,518 (installed 7/11/07), 16,171)

Sec. 114-2887. Southeast Thirty-fourth Street—East Court Avenue to Vandalia Road.

Southeast Thirty-fourth Street, on the east side, from East Court Avenue to Laurel Hill Road, no parking any time.

Southeast Thirty-fourth Street, on the east side, from Scott Avenue to a point 845 feet north of Scott Avenue, and any part of the cul-de-sac, no parking any time.

Southeast Thirty-fourth Street, on both sides, from Vandalia Road to a point 35 feet north thereof, no parking any time.
(C62, § 30-921; O.8084, 8166; C75, C79, § 27-938; O.9685; C91, § 27-1857; O.11,650, 15,404)

Sec. 114-2888. Southeast Thirty-fourth Street—East Watrous Avenue to East Payton Avenue.

Southeast Thirty-fourth Street, on both sides, from East Watrous Avenue to Easter Lake Drive, no parking any time.

Southeast Thirty-fourth Street, on the west side, from the dead end north of East Southlawn Drive to East Payton Avenue, no parking any time.
(C79, § 27-938.01; O.10,207, 11,213; C85, § 27-938.01; O.11,302; C91, § 27-1858; O.11,650, 14,812)

Sec. 114-2888.3. Southeast Thirty-fourth Court—East Herold Avenue to dead end.

Southeast Thirty-fourth Court, on the west side from East Herold Avenue to 250 feet south of East Philip Street and any part of the cul-de-sac, no parking any time.
(O.15,563)

Sec. 114-2888.5. Southwest Thirty-fourth Street—Park Avenue to Gannett Avenue.

Southwest Thirty-fourth Street, on the east side, from Park Avenue to a point 60 feet south thereof, no parking any time.

Southwest Thirty-fourth Street, on the west side, from Park Avenue to a point 60 feet south thereof, no parking any time.

Southwest Thirty-fourth Street, on the east side, from Army Post Road to Gannett Avenue, no parking any time.
(O.13,681; C00, § 114-2888.5; O.14,226, 14,339, 14,518 (installed 4/8/16), 16,171)

Sec. 114-2889. East Thirty-fifth Court—East Court Avenue to Garfield Avenue.

East Thirty-fifth Court, on the east side, from East University Avenue to a point 50 feet north thereof, no parking any time.

East Thirty-fifth Court, on the west side, from East University Avenue to Garfield Avenue, no parking any time.

East Thirty-fifth Court, on the east side, from East Court Avenue to Dean Avenue, no parking any time.

East Thirty-fifth Court, on the west side, from Dean Avenue to a point 50 feet south thereof, no parking any time.
(C62, § 30-921.01; O.8166; C75, C79, § 27-939; O.10,085, 10,598; C85, § 27-939; O.11,203; C91, § 27-1859; O.11,650, 16,171)

Sec. 114-2890. Thirty-fifth Street—John Lynde Road to Adams Avenue.

Thirty-fifth Street, on the east side, from John Lynde Road to St. John's Road, no parking any time.

Thirty-fifth Street, on the east side, from Grand Avenue to University Avenue, no parking any time.

Thirty-fifth Street, on the west side, from Grand Avenue to a point 50 feet north of Cottage Grove Avenue, no parking any time.

Thirty-fifth Street, on the west side, from a point 50 feet north of Cottage Grove Avenue to a point 150 feet south of University Avenue, no parking Monday through Saturday.

Thirty-fifth Street, on the west side, from a point 150 feet south of University Avenue to University Avenue, no parking any time.

Thirty-fifth Street, on the east side, from Hickman Road to Sheridan Avenue, no parking any time.

Thirty-fifth Street, on the west side, from Franklin Avenue to Hickman Road, no parking any time.

Thirty-fifth Street, on the east side, from a point 50 feet south of Hickman Road to Hickman Road, no parking any time.

Thirty-fifth Street, on the east side, from Urbandale Avenue to Adams Avenue, no parking any time.
(C62, § 30-922; O.8084, 8210, 8233, 8389, 8501, 8535; C75, C79, § 27-940; O.9813, 10,099, 10,535, 10,638; C91, § 27-1860; O.11,650; C00, § 114-2890; O.14,518 (installed 3/12/20), 16,171, 16,359)

Sec. 114-2891. East Thirty-fifth Street—East Court Avenue to Avenue Frederick M. Hubbell.

East Thirty-fifth Street, on the west side, from East Court Avenue to Dean Avenue, no parking any time.

East Thirty-fifth Street, on the east side, from Sims Drive to Garfield Avenue, no parking any time.

East Thirty-fifth Street, on the west side, from a point 50 feet south of East University Avenue to a point 50 feet north of East University Avenue, no parking any time.

East Thirty-fifth Street, on the west side, from a point 60 feet south of Kinsey Avenue and any part of the cul-de-sac to a point 120 feet north of Eastwood Drive, no parking any time.

East Thirty-fifth Street on the east side, from Easton Boulevard to Arthur Avenue, no parking any time.

East Thirty-fifth Street, on the west side, from a point 25 feet south of Thompson Avenue to a point 25 feet north of Thompson Avenue, no parking any time.

East Thirty-fifth Street, on the west side, from Hull Avenue to Avenue Frederick M. Hubbell, no parking any time.

East Thirty-fifth Street, on the east side, from East Ovid Avenue to a point 100 feet north thereof, no parking any time.

East Thirty-fifth Street, on the east side, from a point 70 feet south of East Euclid Avenue to East Euclid Avenue, no parking any time.
(C62, § 30-923; O.8084; C75, § 27-941; O.9228; C79, § 27-941; O.9685, 9849, 10,598; C85, § 27-941; O.11,203; C91, § 27-1861; O.11,650; C00, § 114-2891; O.14,354, 14,518 (installed 11/17/06), 14,753, 14,987, 16,171, 16,311)

Sec. 114-2892. Southwest Thirty-fifth Street—Park Avenue to Wolcott Avenue.

Southwest Thirty-fifth Street, on the west side, from Park Avenue to a point 100 feet south thereof, no parking any time.

Southwest Thirty-fifth Street, on the east side, from Park Avenue to Caulder Avenue, no parking any time.
(C79, § 27-941.01; O.10,207; C91, § 27-1862; O.11,650, 11,955, 13,306)

Sec. 114-2893. Southeast Thirty-fifth Street—East Court Avenue to East Payton Avenue.

Southeast Thirty-fifth Street, on the west side, from Scott Avenue to East Elm Street, no parking any time.

Southeast Thirty-fifth Street, on both sides, from Vandalia Road to a point 35 feet north thereof, no parking any time.

Southeast Thirty-fifth Street, on the east side, from Evergreen Avenue to East Emma Avenue, no parking any time.

Southeast Thirty-fifth Street, on the west side, from East Southlawn Drive to East Hart Avenue, no parking any time.
(C62, § 30-924; O.8084; C75, C79, § 27-942; O.9685; C91, § 27-1863; O.11,650, 14,322, 14,812, 15,404)

Sec. 114-2893.05. Southeast Thirty-fifth Court—Evergreen Avenue to dead end.

Southeast Thirty-fifth Court, on the east side, from Evergreen Avenue to the dead end south of East Philip Street, no parking any time.
(O.14,322, 15,780)

Sec. 114-2893.7. Southeast Thirty-fifth Circle—East Hart Avenue to the dead end north of East Hart Avenue.

Southeast Thirty-fifth Circle, on the east side, from East Hart Avenue to and including the cul-de-sac north thereof, no parking any time.
(O.14,812)

Sec. 114-2894. Thirty-sixth Place—Madison Avenue to Crestwood Road.

Thirty-sixth Place, on the east side, from Madison Avenue to Crestwood Road, no parking any time.
(C79, § 27-942.01; O.9849; C91, § 27-1864; O.11,650)

Sec. 114-2895. East Thirty-sixth Court—East University Avenue to East Euclid Avenue.

East Thirty-sixth Court, on the west side, from Maple Street to East University Avenue, no parking any time.

East Thirty-sixth Court, on the east side, from East University Avenue to a point 50 feet south thereof, no parking any time.

East Thirty-sixth Court, on the east side, from East University Avenue to Kinsey Avenue, no parking any time.

East Thirty-sixth Court, on the west side, from East University Avenue to a point 75 feet north thereof, no parking any time.

East Thirty-sixth Court, on the east side, from Arthur Avenue to East Euclid Avenue, no parking any time.

East Thirty-sixth Court, on the west side, from a point 50 feet south of Hull Avenue to Hull Avenue, no parking any time.

East Thirty-sixth Court, on the west side, from East Euclid Avenue to a point 50 feet south thereof, no parking any time.
(C62, § 30-925; O.8084, 8535, 8851; C75, C79, § 27-943; O.9685, 10,598; C91, § 27-1865; O.11,650; C00, § 114-2895; O.14,348, 14,518 (installed 8/9/21), 16,171)

Sec. 114-2896. Thirty-sixth Street—Grand Avenue to Madison Avenue.

Thirty-sixth Street, on the west side, from Grand Avenue to a point 50 feet north of Ingersoll Avenue, no parking any time.

Thirty-sixth Street, on the east side, from Grand Avenue to a point 75 feet north thereof, no parking any time.

Thirty-sixth Street, on the east side, from 275 feet north of Grand Avenue to a point 105 feet north thereof, two-hour parking 9:00 a.m. to 4:00 p.m., Monday through Friday.

Thirty-sixth Street, on the east side, from Ingersoll Avenue to a point 100 feet south thereof, no parking any time.

Thirty-sixth Street, on the east side, from Ingersoll Avenue to Center Street, no parking any time.

Thirty-sixth Street, on the west side, from Center Street to a point 25 feet south thereof, no parking any time.

Thirty-sixth Street, on the west side, from Iola Avenue to Kingman Boulevard, no parking any time.

Thirty-sixth Street, on the east side, from Iola Avenue to a point 50 feet north thereof, no parking any time.

Thirty-sixth Street, on the east side, from Kingman Boulevard to University Avenue, no parking any time.

Thirty-sixth Street, on the west side, from a point 45 feet south of University Avenue to University Avenue, no parking any time.

Thirty-sixth Street, on the east side, from Washington Avenue to Franklin Avenue, no parking any time.

Thirty-sixth Street, on the west side, from Franklin Avenue to Davisson Road, no parking any time.

Thirty-sixth Street, on both sides, from Hickman Road to a point 50 feet south thereof, no parking any time.

Thirty-sixth Street, on the east side, from Urbandale Avenue to a point 50 feet north thereof, no parking any time.

Thirty-sixth Street, on the east side, from Douglas Avenue to a point 1200 feet south thereof, no parking any time.

Thirty-sixth Street, on the west side, from Douglas Avenue to a point 200 feet south thereof, no parking any time.

Thirty-sixth Street, on the west side, from a point 200 feet south of Douglas Avenue south to the dead end, no parking 9:00 a.m. to 3:00 p.m., Monday through Friday.

Thirty-sixth Street, on the west side, from Madison Avenue to a point 50 feet south thereof, no parking any time.

Thirty-sixth Street, on the west side, from a point 50 feet south of Douglas Avenue to a point 50 feet north of Douglas Avenue, no parking any time.

Thirty-sixth Street, on the east side, from Douglas Avenue to Madison Avenue, no parking any time.
(C62, § 30-926; O.8084, 8144, 8210, 8412; C75, § 27-944; O.9372, 9524, 9609; C79, § 27-944; O.9813, 9849, 9886, 10,547, 10,582, 10,598; C85,

§ 27-944; O.10,826; C91, § 27-1866; O.11,650, 11,916; C00, § 114-2896; O.13,918, 14,226, 14,518 (installed 12/7/09, 12/11/14); O.14,939, 16,171, 16,522)

Sec. 114-2897. East Thirty-sixth Street—East Court Avenue to Hull Avenue.

East Thirty-sixth Street, on the west side, from East Court Avenue to Dean Avenue, no parking any time.

East Thirty-sixth Street, on the west side, from East University Avenue to a point 50 feet north thereof, no parking any time.

East Thirty-sixth Street, on the east side, from East University Avenue to a point 350 feet north of Kinsey Avenue, no parking any time.

East Thirty-sixth Street, on the west side, from Arthur Avenue to Hull Avenue, no parking any time.

East Thirty-sixth Street, on the east side, from a point 50 feet south of Hull Avenue to Hull Avenue, no parking any time.
(C62, § 30-927; O.8084, 8825; C75, C79, § 27-945; O.9685, 10,207; C85, § 27-945; O.11,203; C91, § 27-1867; O.11,650, 16,304)

Sec. 114-2898. Southeast Thirty-sixth Street—East Court Avenue to Vandalia Road.

Southeast Thirty-sixth Street, on the west side, from Laurel Hill Road to Scott Avenue, no parking any time.

Southeast Thirty-sixth Street, on both sides, from Vandalia Road to a point 35 feet north thereof, no parking any time.

Southeast Thirty-sixth Street, on both sides, from Easter Lake Drive to East Army Post Road, no parking any time.
(C62, § 30-928; O.8084, 8389; C75, C79, § 27-946; C91, § 27-1868; O.11,650, 15,397)

Sec. 114-2899. East Thirty-seventh Court—East University Avenue to Hull Avenue.

East Thirty-seventh Court, on the east side, from East University Avenue to Garfield Avenue, no parking any time.

East Thirty-seventh Court, on the west side, from East University Avenue to a point 50 feet north thereof, no parking any time.

East Thirty-seventh Court, on the west side, from Garfield Avenue to a point 50 feet south thereof, no parking any time.

East Thirty-seventh Court, on the west side, from Easton Boulevard to Hull Avenue, no parking any time.
(C62, § 30-929; O.8084; C75, C79, § 27-947; O.9685, 10,598; C91, § 27-1869; O.11,650, 13,612)

Sec. 114-2900. Thirty-seventh Street—John Lynde Road to Douglas Avenue.

Thirty-seventh Street, on the east side, from John Lynde Road to a point 800 feet south of Grand Avenue, no parking any time.

Thirty-seventh Street, on the east side, from Grand Avenue to a point 800 feet south thereof, no stopping or standing.

Thirty-seventh Street, on the west side, from a point 485 feet south of Grand Avenue to a point 430 feet south thereof, passenger loading and unloading 8:00 a.m. to 5:00 p.m. school days.

Thirty-seventh Street, on the west side, from a point 230 feet south of Grand Avenue to a point 140 feet south thereof, no parking any time.

Thirty-seventh Street, on the west side, from Grand Avenue to a point 100 feet south thereof, no parking any time.

Thirty-seventh Street, on the west side, from Ingersoll Avenue to a point 50 feet north of Woodland Avenue, no parking any time.

Thirty-seventh Street, on the east side, from Ingersoll Avenue to a point 60 feet north thereof, no parking any time.

Thirty-seventh Street, on the east side, from a point 50 feet south of Woodland Avenue to Center Street, no parking any time.

Thirty-seventh Street, on the west side, from Center Street to Rollins Avenue, no parking any time.

Thirty-seventh Street, on the west side, from Crocker Street to a point 100 feet north thereof, no parking any time.

Thirty-seventh Street, on the east side, from Crocker Street to Kingman Boulevard, no parking any time.

Thirty-seventh Street, on the west side, from a point 50 feet south of Kingman Boulevard to a point 50 feet north of University Avenue, no parking any time.

Thirty-seventh Street, on the east side, from University Avenue to Carpenter Avenue, no parking any time.

Thirty-seventh Street, on the west side, from Carpenter Avenue to a point 50 feet south thereof, no parking any time.

Thirty-seventh Street, on both sides, from Beaver Avenue to a point 60 feet north thereof, no parking any time.

Thirty-seventh Street, on the west side, from Franklin Avenue to a point 640 feet north of Holcomb Avenue, no parking any time.

Thirty-seventh Street, on the east side, from Hickman Road to a point 70 feet north thereof, no parking any time.

Thirty-seventh Street, on the east side, from Adams Avenue to a point 300 feet south and any part of the cul-de-sac, no parking any time.

Thirty-seventh Street, on the west side, from Amick Avenue to Douglas Avenue, no parking any time.

Thirty-seventh Street, on the east side, from Douglas Avenue to a point 50 feet south thereof, no parking any time.
(C62, § 30-930; O.8084, 8108, 8852; C75, § 27-948; O.9308; C79, § 27-948; O.9886, 10,123, 10,207, 10,239, 10,549, 10,598; C85, § 27-948; O.11,279; C91, § 27-1870; O.11,650, 13,076, 13,301; C00, § 114-2900; O.13,973, 14,518 (installed 12/7/09), 15,081, 16,171, 16,352, 16,370)

Sec. 114-2901. East Thirty-seventh Street—East University Avenue to Avenue Frederick M. Hubbell.

East Thirty-seventh Street, on the east side, from East University Avenue to a point 50 feet north thereof, no parking any time.

East Thirty-seventh Street, on the west side, from East University Avenue to Indianapolis Avenue, no parking any time.

East Thirty-seventh Street, on the east side, from a point 50 feet south of Garfield Avenue to a point 50 feet north of Garfield Avenue, no parking any time.

East Thirty-seventh Street, on the east side, from Dubuque Avenue to a point 50 feet north thereof, no parking any time.

East Thirty-seventh Street, on the east side, from a point 100 feet south of the east leg of Indianapolis Avenue to a point 70 feet north of the east leg of Indianapolis Avenue, no parking any time.

East Thirty-seventh Street, on the west side, from Easton Boulevard to Avenue Frederick M. Hubbell, no parking any time.

East Thirty-seventh Street, on the east side, from a point 50 feet south of East Sheridan Avenue to a point 50 feet north of East Sheridan Avenue, no parking any time.

East Thirty-seventh Street, on the east side, from Avenue Frederick M. Hubbell to a point 50 feet south thereof, no parking any time.
(C62, § 30-931; O.8084, 8098, 8535, 8878; C75, § 27-949; O.9012, 9190, 9228; C79, § 27-949; O.9685, 10,598; C91, § 27-1871; O.11,650, 13,239, 13,658, 13,678; C00, § 114-2901; O.14,518 (installed 11/20/06, 6/5/20), 16,171, 16,283)

Sec. 114-2902. Southeast Thirty-seventh Street—Granger Avenue to Vandalia Road.

Southeast Thirty-seventh Street, on both sides, from Vandalia Road to a point 35 feet north thereof, no parking any time.
(C62, § 30-932; O.8084; C75, C79, § 27-950; C91, § 27-1872; O.11,650)

Sec. 114-2903. Southwest Thirty-seventh Street—Southern Hills Drive to Gannett Avenue.

Southwest Thirty-seventh Street, on the east side, from Caulder Avenue to Thornton Avenue, no parking any time.

Southwest Thirty-seventh Street, on the west side, from Army Post Road to Gannett Avenue, no parking any time.
(C79, § 27-950.01; O.10,207; C91, § 27-1873; O.11,650, 14,226)

Sec. 114-2904. East Thirty-eighth Court—Mattern Avenue to East Douglas Avenue.

East Thirty-eighth Court, on the west side, from Mattern Avenue to Hull Avenue, no parking any time.

East Thirty-eighth Court, on the east side, from a point 50 feet south of Easton Boulevard to a point 50 feet north of Easton Boulevard, no parking any time.

East Thirty-eighth Court, on the east side, from Leyden Avenue to East Douglas Avenue, no parking any time.

East Thirty-eighth Court, on the west side, from East Douglas Avenue to a point 50 feet south thereof, no parking any time.
(C62, § 30-933; O.8084, 8433, 8554; C75, C79, C85, § 27-951; O.10,932, 11,089; C91, § 27-1874; O.11,650, 14,518 (installed 8/12/19, 1/6/20), 16,171)

Sec. 114-2905. Thirty-eighth Place—Marsh Drive to Hillcrest Drive.

Thirty-eighth Place, on the west side, from Marsh Drive to Greenwood Drive, no parking any time.

Thirty-eighth Place, on the west side, from Brown's Drive to a point 60 feet south thereof, no parking any time.

Thirty-eighth Place, on the west side, from Grand Avenue to a point 130 feet south thereof, no parking any time.

Thirty-eighth Place, on the east side, from Greenwood Drive to Grand Avenue, no parking any time.

Thirty-eighth Place, on the west side, from Lindlavista Way to Hillcrest Drive, no parking any time.
(C62, § 30-934; O.8084; C75, § 27-952; O.9326; C79, § 27-952; O.9849; C91, § 27-1875; O.11,650, 13,301, C00, § 114-2905; O.14,518 (installed 07/8/10, 1/27/17), 14,550, 16,171)

Sec. 114-2905.01. Southwest Thirty-eighth Place—Park Avenue to dead end north.

Southwest Thirty-eighth Place, on the east side, from Park Avenue to the cul-de-sac, north and including any part of the cul-de-sac, no parking any time.
(O.14,370)

Sec. 114-2906. Thirty-eighth Street—Ingersoll Avenue to Lindlavista Way.

Thirty-eighth Street, on the east side, from Ingersoll Avenue to a point 200 feet north thereof, no parking any time.

Thirty-eighth Street, on the west side, from Ingersoll Avenue to a point 60 feet north thereof, no parking any time.

Thirty-eighth Street, on the west side, from a point 60 feet north of Ingersoll Avenue to a point 95 feet north thereof, loading zone.

Thirty-eighth Street, on the west side, from a point 155 feet north of Ingersoll Avenue to Woodland Avenue, no parking any time.

Thirty-eighth Street, on the east side, from Woodland Avenue to Center Street, no parking any time.

Thirty-eighth Street, on the west side, from Kingman Boulevard to a point 50 feet south thereof, no parking any time.

Thirty-eighth Street, on the east side, from Cottage Grove Avenue to University Avenue, no parking any time.

Thirty-eighth Street, on the west side, from University Avenue to a point 55 feet south thereof, no parking any time.

Thirty-eighth Street, on the west side, from Beaver Avenue to Madison Avenue, no parking any time.

Thirty-eighth Street, on the east side, from Hickman Road to a point 50 feet north thereof, no parking any time.

Thirty-eighth Street, on the east side, from Urbandale Avenue to a point 100 feet south thereof, no parking any time.

Thirty-eighth Street, on the east side, from a point 310 feet south of Urbandale Avenue to a point 300 feet south thereof, no parking any time.

Thirty-eighth Street, on the east side, from a point 150 feet south of Douglas Avenue to a point 200 feet north of Douglas Avenue, no parking any time.

Thirty-eighth Street, on the east side, from Madison Avenue to a point 50 feet south thereof, no parking any time.

Thirty-eighth Street, on the east side, from Aurora Avenue to Lindlavista Way, no parking any time.

Thirty-eighth Street, on the west side, from a point 50 feet south of Valdez Drive to a point 50 feet north of Valdez Drive, no parking any time.
(C62, § 30-935; O.8084, 8858; C75, C79, § 27-953; O.9849, 9886, 10,123, 10,692; C91, § 27-1876; O.11,650, 11,810, 12,057, 13,239; C00, § 114-2906; O.14,196, 14,354, 14,518 (installed 12/15/10), 16,171, 16,477)

Sec. 114-2907. East Thirty-eighth Street—East University Avenue to north city limits.

East Thirty-eighth Street, on the east side, from East Sheridan Avenue to a point 100 feet south thereof, no parking any time.

East Thirty-eighth Street, on the west side, from East University Avenue to a point 50 feet north thereof, no parking any time.

East Thirty-eighth Street, on the west side, from Mahaska Avenue to East Washington Avenue, no parking any time.

East Thirty-eighth Street, on the east side, from East University Avenue to Mahaska Avenue, no parking any time.

East Thirty-eighth Street, on the east side, from East Jefferson Avenue to Easton Boulevard, no parking any time.

East Thirty-eighth Street, on the east side, from Easton Boulevard to a point 149 feet north thereof, no parking any time.

East Thirty-eighth Street, on the west side, from Easton Boulevard to East Sheridan Avenue, no parking any time.

East Thirty-eighth Street, on the east side, from East Ovid Avenue to a point 50 feet south thereof, no parking any time.

East Thirty-eighth Street, on both sides, from a point 75 feet south of East Douglas Avenue to East Douglas Avenue, no parking any time.

East Thirty-eighth Street, on both sides, from Avenue Frederick M. Hubbell to East Broadway Avenue, no parking any time.
(C62, § 30-936; O.8084, 8535, 8851; C75, § 27-954; O.9429; C79, § 27-954; O.9685, 10,250, 10,582; 10,598; C85, § 27-954; O.10,932, 11,248; C91, § 27-1877; O.11,650, 13,146. 13,375, 13,760; C00, § 114-2907; O.14,905, 14,518 (installed 9/14/18), 15,363, 15,369, 15,577, 15,881, 16,171)

Sec. 114-2908. Southeast Thirty-eighth Street—Granger Avenue to Vandalia Road.

Southeast Thirty-eighth Street, on both sides, from Vandalia Road to a point 35 feet north thereof, no parking any time.
(C62, § 30-937; O.8084; C75, C79, § 27-955; C91, § 27-1878; O.11,650)

Sec. 114-2909. East Thirty-ninth Court—Mattern Avenue to East Fortieth Street.

East Thirty-ninth Court, on the west side, from East Sheridan Avenue to a point 50 feet south thereof, no parking any time.

East Thirty-ninth Court, on the west side, from East Sheridan Avenue to Hull Avenue, no parking any time.

East Thirty-ninth Court, on the west side, from Easton Boulevard to a point 75 feet south thereof, no parking no time.

East Thirty-ninth Court, on the west side, from a point 75 feet south of Easton Boulevard to a point 135 feet south thereof, school passenger loading and unloading 7:00 a.m. to 4:00 p.m. school days, 30-minute limit.

East Thirty-ninth Court, on the east side, from Mattern Avenue to East Sheridan Avenue, no parking any time.

East Thirty-ninth Court, on the west side, from East Ovid Avenue to East Seneca Avenue, no parking any time.

East Thirty-ninth Court, on the east side, from East Seneca Avenue to East Fortieth Street, no parking any time.
(C62, § 30-938; O.8084, 8484, 8535; C75, C79, § 27-956; O.9685, 9704; C85, § 27-956; O.11,208; C91, § 27-1879; O.11,650, 14,615, 15,282, 15,657)

Sec. 114-2910. Thirty-ninth Place—Madison Avenue to Aurora Avenue.

Thirty-ninth Place, on the west side, from Madison Avenue to a point 70 feet north thereof, no parking any time.

Thirty-ninth Place, on the east side, from Madison Avenue to Aurora Avenue, no parking any time.
(C79, § 27-956.01; O.9849; C91, § 27-1880; O.11,650, 16,511)

Sec. 114-2911. Thirty-ninth Street—Grand Avenue to Crestmoor Place.

Thirty-ninth Street, on the west side, from Grand Avenue to Center Street, no parking any time.

Thirty-ninth Street, on the east side, from Grand Avenue to a point 225 feet north thereof, no parking any time.

Thirty-ninth Street, on the east side, from a point 150 feet south of Ingersoll Avenue to a point 135 feet south thereof, no parking any time.

Thirty-ninth Street, on the east side, from a point 200 feet north of Ingersoll Avenue to a point 40 feet north thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in subsection 114-616(a) of this chapter.

Thirty-ninth Street, on the west side, from Rollins Avenue to a point 380 feet north of Kingman Boulevard, no parking any time.

Thirty-ninth Street, on the east side, from University Avenue to a point 280 feet south and any part of the cul-de-sac, no parking any time.

Thirty-ninth Street, on the east side, from University Avenue to a point 50 feet north thereof, no parking any time.

Thirty-ninth Street, on the west side, from University Avenue to a point 50 feet south thereof, no parking any time.

Thirty-ninth Street, on the west side, from University Avenue to Forest Avenue, no parking any time.

Thirty-ninth Street, on the east side, from a point 50 feet south of Carpenter Avenue to a point 50 feet north of Carpenter Avenue, no parking any time.

Thirty-ninth Street, on the east side, from Forest Avenue to a point 50 feet south thereof, no parking any time.

Thirty-ninth Street, on the east side, from a point 50 feet south of Hunter Avenue to a point 50 feet north of Hunter Avenue, no parking any time.

Thirty-ninth Street, on the east side, from Franklin Avenue to Urbandale Avenue, no parking any time.

Thirty-ninth Street, on the west side, from Franklin Avenue to a point 65 feet north thereof, no parking any time.

Thirty-ninth Street, on the west side, from Urbandale Avenue to a point 50 feet south thereof, no parking any time.

Thirty-ninth Street, on the east side, from Adams Avenue to a point 300 feet south thereof, no parking any time.

Thirty-ninth Street, from 300 feet south of Adams Avenue around the cul-de-sac, no parking 7:00 a.m. to 5:00 p.m., Monday through Friday.

Thirty-ninth Street, on the west side, from Douglas Avenue to a point 50 feet north thereof, no parking any time.

Thirty-ninth Street, on the east side, from Douglas Avenue to Marianna Trail, no parking any time.

Thirty-ninth Street, on the west side, from Madison Avenue to a point 75 feet south thereof, no parking any time.
(C62, § 30-939; O.8084, 8433, 8510; C75, § 27-957; O.8981, 9226, 9349; C79, § 27-957; O.9849, 9886, 9965, 10,067, 10,123, 10,476, 10,598; C85, § 27-957; O.11,248, 11,420; C91, § 27-1881; O.11,650, 13,256, 13,317, 13,323, 13,760, 14,518 (installed 11/30/06, 2/13/08, 12/10/08), 16,171, 16,437)

Sec. 114-2912. East Thirty-ninth Street—Four Mile Drive to East Douglas Avenue.

East Thirty-ninth Street, on the west side, from Mattern Avenue to Hull Avenue, no parking any time.

East Thirty-ninth Street, on the east side, from a point 285 feet south of Easton Boulevard to a point 185 feet north thereof, school bus loading and unloading 7:00 a.m. to 5:00 p.m. school days.

East Thirty-ninth Street, on the east side, from a point 100 feet south of Easton Boulevard to a point 45 feet north of Easton Boulevard, no parking any time.

East Thirty-ninth Street, on the east side, from a point 50 feet south of Hull Avenue to Hull Avenue, no parking any time.

East Thirty-ninth Street, on the east side, from Glen Ellen Drive to Richmond Avenue, no parking any time.

East Thirty-ninth Street, on the east side, from East Ovid Avenue to East Douglas Avenue, no parking any time.
(C62, § 30-940; O.8084, 8205, 8484; C75, § 27-958; O.8984; C79, § 27-958; O.9685, 9704, 10,040, 10,085; C85, § 27-958; O.11,458; C91, § 27-1882; O.11,650, 13,076; C00, § 114-2912; O.14,518 (installed 7/2/14), 14,615, 15,271, 16,171, 16,215)

Sec. 114-2913. Southwest Thirty-ninth Street—Welker Avenue to cul-de-sac south of Park Avenue.

Southwest Thirty-ninth Street, on the west side, from Welker Avenue to Lincoln Place Drive, no parking any time.

Southwest Thirty-ninth Street, on the east side, from Park Avenue to cul-de-sac south of Park Avenue, and including any part of the cul-de-sac, no parking any time.
(C79, § 27-958.01; O.9849, 10,207; C91, § 27-1883; O.11,650, 15,736)

Sec. 114-2914. Fortieth Place—Center Street to Amick Avenue.

Fortieth Place, on the east side, from a point 170 feet south of Rollins Avenue and any part of the cul-de-sac to School Street, no parking any time.

Fortieth Place, on the west side, from a point 35 feet south of Crocker Street to Crocker Street, no parking any time.

Fortieth Place, on the east side, from Franklin Avenue to Hickman Road, no parking any time.

Fortieth Place, on the west side, from Franklin Avenue to a point 50 feet south thereof, no parking any time.

Fortieth Place, on the west side, from Hickman Road to Sheridan Avenue, no parking any time.

Fortieth Place, on the east side, from Sheridan Avenue to a point 75 feet south thereof, no parking any time.

Fortieth Place, on the east side, from Hickman Road to a point 75 feet north thereof, no parking any time.

Fortieth Place, on the east side, from Holcomb Avenue to a point 75 feet south thereof, no parking any time.

Fortieth Place, on the west side, from Adams Avenue to Amick Avenue, no parking any time.
(C62, § 30-941; O.8084, 8389, 8535, 8563, 8624, 8839, 8860; C75, C79, § 27-959; O.9653, 9886, 10,342; C91, § 27-1884; O.11,650, 13,380, 13,639, 13,869, 16,283)

Sec. 114-2915. Fortieth Street—Grand Avenue to Crestmoor Drive.

Fortieth Street, on the west side, from Grand Avenue to Ingersoll Avenue, two-hour parking, 9:00 a.m. to 4:00 p.m.

Fortieth Street, on the west side, from Ingersoll Avenue to Center Street, no parking any time.

Fortieth Street, on the west side, from a point 90 feet south of Rollins Avenue to Plainview Drive, no parking any time.

Fortieth Street, on the east side, from Crocker Avenue to a point 50 feet north, no parking any time.

Fortieth Street, on the east side, from School Street to a point 50 feet south thereof, no parking any time.

Fortieth Street, on the west side, from University Avenue to Forest Avenue, no parking any time.

Fortieth Street, on the east side, from University Avenue to a point 75 feet north thereof, no parking any time.

Fortieth Street, on the east side, from Franklin Avenue to Thirty-ninth Street, no parking any time.

Fortieth Street, on the west side, from Franklin Avenue to a point 70 feet north thereof, no parking any time.

Fortieth Street, on the east side, from Adams Avenue to a point 510 feet north thereof, no parking any time.

Fortieth Street, on the east side, from Clinton Avenue to Douglas Avenue, no parking any time.

Fortieth Street, on the west side, from Douglas Avenue to a point 50 feet south thereof, no parking any time.

Fortieth Street, on the east side, from Douglas Avenue to a point 50 feet north thereof, no parking any time.

Fortieth Street, on the west side, from Douglas Avenue to Crestmoor Place, no parking any time.

Fortieth Street, on the east side, from Madison Avenue to a point 50 feet north thereof, no parking any time.

Fortieth Street, on the east side, from a point 50 feet south of Shawnee Avenue to a point 50 feet north of Shawnee Avenue, no parking any time.

Fortieth Street, on the east side, from a point 95 feet south of Aurora Avenue to a point 50 feet north of Aurora Avenue, no parking any time.

Fortieth Street, on the east side, from a point 50 feet south of Bel-Aire Road to a point 80 feet north of Bel-Aire Road, no parking any time.
(C62, § 30-942; O.8084, 8762, 8839; C75, § 27-960; O.9004, 9120; C79, § 27-960; O.9849, 9886, 10,018, 10,123, 10,598; C85, § 27-960; O.11,063, 11,315; C91, § 27-1885; O.11,650, 12,096, 13,360, 13,760, 13,780; C00, § 114-2915; O.13,869, 14,226, 14,260, 14,518 (installed 9/15/08, 1/25/17), 15,577, 16,171)

Sec. 114-2916. East Fortieth Street—Timber Lane to East Madison Avenue.

East Fortieth Street, on the west side, from Timber Lane to Maple Street, no parking any time.

East Fortieth Street, on the west side, from East University Avenue to Osceola Avenue, no parking any time.

East Fortieth Street, on the east side, from East University Avenue to a point 50 feet north thereof, no parking any time.

East Fortieth Street, on the west side, from Easton Boulevard to a point 50 feet south thereof, no parking any time.

East Fortieth Street, on the west side, from Hull Avenue to a point 140 feet south thereof, no parking 10:00 p.m. to 7:00 a.m.

East Fortieth Street, on the east side, from Mattern Avenue to Hull Avenue, no parking any time.

East Fortieth Street, on the west side, from East Douglas Avenue to East Madison Avenue, no parking any time.
(C62, § 30-943; O.8084, 8535; C75, C79, § 27-961; O.9685, 10,598; C91, § 27-1886; O.11,650, 13,123, 13,240)

Sec. 114-2917. Southwest Fortieth Street—Southwest Thirty-ninth Street to Park Avenue.

Southwest Fortieth Street, on the west side, from Southwest Thirty-ninth Street to Park Avenue, no parking any time.
(C79, § 27-961.01; O.10,207; C91, § 27-1887; O.11,650)

Sec. 114-2918. East Fortieth Court—Timber Lane to East Ovid Avenue.

East Fortieth Court, on the east side, from Timber Lane to Maple Street, no parking any time.

East Fortieth Court, on the west side, from Four Mile Drive to East Jefferson Avenue, no parking any time.

East Fortieth Court, on the west side, from Mattern Avenue to a point 75 feet north of East Sheridan Avenue, no parking any time.

East Fortieth Court, on the east side, from East Sheridan Avenue to East Ovid Avenue, no parking any time.

East Fortieth Court, on the east side, from Easton Boulevard to a point 50 feet north thereof, no parking any time.
(C62, § 30-943.01; O.8124, 8535, 8839; C75, C79, § 27-962; O.9685; C91, § 27-1888; O.11,650; C00, § 114-2918; O.14,518 (installed 7/18/17), 16,171)

Sec. 114-2919. East Forty-first Court—Four Mile Drive to dead end north of East Euclid Avenue.

East Forty-first Court, on the east side, from Four Mile Drive to East Jefferson Avenue, no parking any time.

East Forty-first Court, on the west side, from Easton Boulevard to East Sheridan Avenue, no parking any time.

East Forty-first Court, on the east side, from East Sheridan Avenue to a point 115 feet south thereof, no parking any time.

East Forty-first Court, on the west side, from Hull Avenue to East Ovid Avenue, no parking any time.

East Forty-first Court, on the east side, from a point 50 feet south of East Ovid Avenue to East Ovid Avenue, no parking any time.
(C62, § 30-943.02; O.8233; C75, C79, § 27-962.01; O.9685; C91, § 27-1889; O.11,650; C00, § 114-2919; O.14,518 (installed 1/14/20), 16,171)

Sec. 114-2920. Forty-first Place—Forest Avenue to Urbandale Avenue.

Forty-first Place, on the east side, from Forest Avenue to a point 50 feet north thereof, no parking any time.

Forty-first Place, on the west side, from Forest Avenue to College Avenue, no parking any time.

Forty-first Place, on the east side, from College Avenue to a point 50 feet south thereof, no parking any time.

Forty-first Place, on the west side, from Sheridan Avenue to Urbandale Avenue, no parking any time.

Forty-first Place, on the east side, from Sheridan Avenue to a point 50 feet north thereof, no parking any time.
(C62, § 30-944; O.8084, 8244; C75, § 27-963; O.9356; C79, C85, § 27-963; O.11,237; C91, § 27-1890; O.11,650; C00, § 114-2920; O.14,518 (installed 10/30/09, 7/30/13), 16,171)

Sec. 114-2921. Forty-first Street—Grand Avenue to north city limits.

Forty-first Street, on the east side, from Grand Avenue to Ingersoll Avenue, no parking any time.

Forty-first Street, on the east side, from Ingersoll Avenue to a point 30 feet north thereof, no parking any time.

Forty-first Street, on the west side, from Ingersoll Avenue to Center Street, no parking any time.

Forty-first Street, on the east side, from Crocker Street to a point 50 feet south thereof, no parking any time.

Forty-first Street, on the east side, from University Avenue to a point 55 feet north of Forest Avenue, no parking any time.

Forty-first Street, on the west side, from University Avenue to a point 125 feet north thereof, no parking any time.

Forty-first Street, on the west side, from a point 125 feet north of University Avenue to a point 100 feet south of Forest Avenue, no parking 8:00 a.m. to 4:00 p.m., Friday.

Forty-first Street, on the west side, from a point 375 feet north of University Avenue to a point 125 feet north thereof, no parking any time.

Forty-first Street, on the west side, from a point 775 feet north of University Avenue to a point 125 feet north thereof, no parking any time.

Forty-first Street, on the west side, from Forest Avenue to a point 100 feet south thereof, no parking any time.

Forty-first Street, on the east side, from a point 50 feet south of Northwest Drive to a point 75 feet north of Northwest Drive, no parking any time.

Forty-first Street, on the west side, from Forest Avenue to Beaver Avenue, no parking any time.

Forty-first Street, on the east side, from a point 110 feet south of Germania Drive to College Avenue, no parking any time.

Forty-first Street, on the east side, from Beaver Avenue to Northwest Drive, no parking any time.

Forty-first Street, on the east side, from Douglas Avenue to a point 50 feet north thereof, no parking any time.

Forty-first Street, on the west side, from Douglas Avenue to Shawnee Avenue, no parking any time.

Forty-first Street, on the east side, from Madison Avenue to a point 50 feet south thereof, no parking any time.

Forty-first Street, on the west side, from Aurora Avenue to a point 730 feet north thereof, no parking any time.

Forty-first Street, on the east side, from Aurora Avenue to a point 50 feet north thereof, no parking any time.
(C62, § 30-945; O.8084, 8144, 8700; C75, C79, § 27-964; O.9849, 9886, 10,123, 10,598; C85, § 27-964; O.10,895; C91, § 27-1891; O.11,650, 13,529, 13,639, 14,038, 14,071, 14,336, 14,518 (installed 9/28/07, 9/19/12), 14,653, 14,855, 16,171, 16,182, 16,477)

Sec. 114-2922. East Forty-first Street—Maple Street to dead end north of East Madison Avenue.

East Forty-first Street, on the west side, from Maple Street to Osceola Avenue, no parking any time.

East Forty-first Street, on the east side, from a point 50 feet south of East University Avenue to a point 50 feet north of East University Avenue, no parking any time.

East Forty-first Street, on both sides, from East University Avenue to Dubuque Avenue, no parking any time.

East Forty-first Street, on the east side, from East University Avenue to a point 145 feet south thereof, no parking any time.

East Forty-first Street, on the east side, from Four Mile Drive to East Sheridan Avenue, no parking any time.

East Forty-first Street, on the west side, from a point 50 feet south of Easton Boulevard to Easton Boulevard, no parking any time.

East Forty-first Street, on the east side, from Morton Avenue to Boyd Street, no parking any time.

East Forty-first Street, on the east side, from Hull Avenue to Leyden Avenue, no parking any time.

East Forty-first Street, on the east side, from East Madison Avenue to a point 110 feet north thereof, no parking any time.
(C62, § 30-946; O.8084; C75, § 27-965; O.8964; C79, § 27-965; O.9685, 10,598; C85, § 27-965; O.11,179; C91, § 27-1892; O.11,650; C00, 14,518 (installed 6/21/07, 10/21/19), 16,171, 16,174)

Sec. 114-2923. Forty-second Street—John Lynde Road to dead end north of Aurora Avenue.

Forty-second Street, on the east side, from John Lynde Road to a point 130 feet south of Rollins Avenue, no parking any time.

Forty-second Street, on the west side, from Greenwood Drive to Center Street, no parking any time.

Forty-second Street, on the west side, from Center Street to Chamberlain Avenue, no stopping or standing.

Forty-second Street, on the east side, from a point 130 feet south of Rollins Avenue to a point 65 feet north thereof, bus loading and unloading.

Forty-second Street, on the east side, from a point 65 feet south of Rollins Avenue to a point 65 feet north of Chamberlain Avenue, no parking any time.

Forty-second Street, on the west side, from Chamberlain Avenue to Forest Avenue, no parking any time.

Forty-second Street, on the east side, from a point 65 feet north of Chamberlain Avenue to a point 25 feet north thereof, commercial loading zone.

Forty-second Street, on the east side, from a point 110 feet north of Chamberlain Avenue to Forest Avenue, no parking any time.

Forty-second Street, on the east side, from Forest Avenue to College Avenue, no parking any time.

Forty-second Street, on the east side, from Franklin Avenue to a point 330 feet south thereof, no parking any time.

Forty-second Street, on the west side, from Franklin Avenue to a point 330 feet south thereof, no parking 8:00 a.m. to 1:00 p.m. Sundays.

Forty-second Street, on the west side, from Sheridan Avenue to Urbandale Avenue, no parking any time.

Forty-second Street, on the east side, from Urbandale Avenue to a point 300 feet north thereof, no parking any time.

Forty-second Street, on the west side, from Urbandale Avenue to a point 250 feet north thereof, no stopping or standing 7:00 a.m. to 5:00 p.m. school days.

Forty-second Street, on the east side, from Clinton Avenue to Shawnee Avenue, no parking any time.

Forty-second Street, on the west side, from a point 50 feet south of Douglas Avenue to a point 50 feet north of Douglas Avenue, no parking any time.

Forty-second Street, on the west side, from Madison Avenue to a point 75 feet north thereof, no parking any time.

Forty-second Street, on the west side, from Aurora Avenue to a point 810 feet north thereof, no parking any time.
(C62, § 30-947; O.8084; C75, § 27-966; O.9027; C79, § 27-966; O.9849, 9886, 10,476; C91, § 27-1893; O.11,650, 14,437, 15,140, 15,736)

Sec. 114-2924. East Forty-second Street to East Aurora Avenue.

East Forty-second Street, on the west side, from Boyd Street to a point 100 feet south, no parking any time.

East Forty-second Street, on the west side, from East Sheridan Avenue to a point 50 feet north thereof, no parking any time.

East Forty-second Street, on the west side, from a point 50 feet north of East Sheridan Avenue to a point 740 feet north thereof, passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days.

East Forty-second Street, on the west side, from a point 790 feet north of East Sheridan Avenue to a point 225 feet north thereof, no stopping or standing.

East Forty-second Street, on the west side, from a point 1,015 feet north of East Sheridan Avenue to a point 310 feet north thereof, passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days.

East Forty-second Street, on the west side, from Williams Street to Easton Boulevard, no parking any time.

East Forty-second Street, on the east side, from Easton Boulevard to the north city limits, no parking any time.

East Forty-second Street, on the west side, from a point 85 feet south of Avenue Frederick M. Hubbell to a point 35 feet north of Avenue Frederick M. Hubbell, no parking any time.

East Forty-second Street, on the west side, from Hull Avenue to East Ovid Avenue, no parking 7:00 a.m. to 5:00 p.m.

East Forty-second Street, on the east side, from a point 100 feet south of Wilson Avenue to a point 50 feet north of Wilson Avenue, no parking any time.
(C62, § 30-948; O.8084; C75, § 27-967; O.9445; C79, § 27-967; O.9685, 10,162, 10,180; C91, § 27-1894; O.11,650, 13,130, 14,322, 14,627, 15,490, 16,283)

Sec. 114-2925. Southwest Forty-second Street—John Lynde Road to Watrous Avenue.

Southwest Forty-second Street, on the east side, from John Lynde Road to River Oaks Drive, no parking any time.

Southwest Forty-second Street, on the west side, from 90 feet south of John Lynde Road to 200 feet south thereof, no parking any time.

Southwest Forty-second Street, on the east side, from Park Avenue to McKinley Avenue, no parking any time.
(C62, § 30-949; O.8084, 8730, 8852; C75, C79, § 27-968; O.10,207; C91, § 27-1895; O.11,650, 13,874, 14,339, 15,590)

Sec. 114-2926. Forty-third Street—Greenwood Drive to dead end north of Aurora Avenue.

Forty-third Street, on the west side, from Greenwood Drive to a point 925 feet north thereof, no parking any time.

Forty-third Street, on the east side, from Grand Avenue to a point 50 feet north thereof, no parking any time.

Forty-third Street, on the west side, from Grand Avenue to Ingersoll Avenue, no parking any time.

Forty-third Street, on the west side, from Crocker Street to a point 80 feet north thereof, no parking any time.

Forty-third Street, on the west side, from a point 80 feet north of Crocker Street to California Drive, no parking 8:00 a.m. to 3:00 p.m. school days.

Forty-third Street, on the east side, from Crocker Street to Kingman Boulevard, no parking any time.

Forty-third Street, on the east side, from University Avenue to a point 50 feet north thereof, no parking any time.

Forty-third Street, on the west side, from University Avenue to College Avenue, no parking any time.

Forty-third Street, on the east side, from Forest Avenue to a point 50 feet north thereof, no parking any time.

Forty-third Street, on the east side, from 50 feet south of College Avenue to a point 200 feet south thereof, passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Forty-third Street, on the east side, from College Avenue to a point 50 feet south thereof, no parking any time.

Forty-third Street, on the east side, from Franklin Avenue to a point 300 feet south thereof, no parking any time.

Forty-third Street, on the west side, from New York Avenue to Urbandale Avenue, no parking any time.

Forty-third Street, on the west side, from Douglas Avenue to a point 75 feet north thereof, no parking any time.

Forty-third Street, on the east side, from Douglas Avenue to a point 810 feet north of Aurora Avenue, no parking any time.
(C62, § 30-950; O.8084, 8105, 8124, 8772; C75, § 27-969; O.9190, 9246, 9560; C79, § 27-969; O.9693, 9849, 9886, 10,096, 10,476; C91, § 27-1896; O.11,650, 13,935, 14,437, 15,736, 15,821, 16,174)

Sec. 114-2927. Southwest Forty-third Street—Parklawn Drive to dead end north.

Southwest Forty-third Street, on the east side, from Parklawn Drive to a point 200 feet north thereof and any part of the cul-de-sac, no parking any time.
(C79, § 27-969.01; O.10,207; C91, § 27-1897; O.11,650)

Sec. 114-2928. Southeast Forty-third Street—Vandalia Road to Carlisle Road.

Southeast Forty-third Street, on both sides, from Vandalia Road to Carlisle Road, no parking any time.
(C62, § 30-951; O.8084; C75, C79, § 27-970; C91, § 27-1898; O.11,650)

Sec. 114-2928.05. East Forty-third Court—Hull Avenue to East Douglas Avenue.

East Forty-third Court, on the west side, from Hull Avenue to East Douglas Avenue, no parking any time.

East Forty-third Court, on the east side, from a point 115 feet south of East Douglas Avenue to East Douglas Avenue, no parking any time.
(O.13,841, 14,379, 16,215)

Sec. 114-2928.06. East Forty-third Court—Grover Woods Lane to the north city limits.

East Forty-third Court, on the east side, from Grover Woods Lane to Honey Bee Ridge, no parking any time.
(O.16,215)

Sec. 114-2928.3. East Forty-third Street—Clinton Avenue to dead end south.

East Forty-third Street, on the west side, from Clinton Avenue to the dead end south, no parking any time.
(O.13,841)

Sec. 114-2929. Forty-fourth Place—Dead end south of Kingman Boulevard to Skyline Drive.

Forty-fourth Place, on the east side, from Kingman Boulevard to a point 400 feet south thereof, no parking any time.

Forty-fourth Place, on the west side, from a point 250 feet south of Brinkwood Road to Skyline Drive, no parking any time.
(C79, § 27-970.01; O.9849, 9886; C91, § 27-1899; O.11,650)

Sec. 114-2930. Southwest Forty-fourth Place—Dead end north of Caulder Avenue to Parklawn Drive.

Southwest Forty-fourth Place, on the west side, from a point 100 feet north of Caulder Avenue to Parklawn Drive, no parking any time.
(C79, § 27-970.02; O.10,207; C91, § 27-1900; O.11,650)

Sec. 114-2931. Forty-fourth Street—Dead end south of Grand Avenue to Ovid Avenue.

Forty-fourth Street, on the east side, from Grand Avenue to a point 575 feet south thereof and on any part of the cul-de-sac, no parking any time.

Forty-fourth Street, on the west side, from Grand Avenue to a point 50 feet south thereof, no parking any time.

Forty-fourth Street, on the east side, from Grand Avenue to Pleasant Street, no parking any time.

Forty-fourth Street, on the west side, from Harwood Drive to Pleasant Street, no parking 8:00 a.m. to 3:00 p.m., school days.

Forty-fourth Street, on the east side, from Kingman Boulevard to University Avenue, no parking any time.

Forty-fourth Street, on the west side, from University Avenue to a point 50 feet south thereof, no parking any time.

Forty-fourth Street, on the west side, from University Avenue to a point 75 feet north thereof, no parking any time.

Forty-fourth Street, on the west side, from a point 50 feet south of Forest Avenue to a point 50 feet north thereof, no parking any time.

Forty-fourth Street, on the east side, from University Avenue to College Avenue, no parking any time.

Forty-fourth Street, on the west side from Carpenter Avenue to a point 50 feet south thereof, no parking any time.

Forty-fourth Street, on the east side, from College Avenue to a point 600 feet north thereof, passenger loading and unloading, 7:00 a.m. to 4:00 p.m., school days.

Forty-fourth Street, on the west side, from College Avenue to a point 650 feet north thereof, no parking any time.

Forty-fourth Street, on the east side, from a point 600 feet north of College Avenue to Ovid Avenue, no parking any time.

Forty-fourth Street, on the west side, from a point 100 feet south of Franklin Avenue to a point 100 feet north of Franklin Avenue, no parking any time.

Forty-fourth Street, on the west side, from Urbandale Avenue to a point 50 feet south thereof, no parking any time.
(C62, § 30-952; O.8084, 8108, 8303, 8693; C75, § 27-971; O.9349, 9387; C79, § 27-971; O.9855, 9886, 10,123, 10,476; C85, § 27-971; O.11,516; C91, § 27-1901; O.11,650, 13,593, 13,785, 13,869, 15,203, 15,797)

Sec. 114-2931.5. East Forty-fourth Street—East Aurora Avenue to Honey Bee Ridge.

East Forty-fourth Street, on both sides, from East Aurora Avenue to Hubbell Avenue, no parking any time.

East Forty-fourth Street, on the west side, from Hubbell Avenue to Honey Bee Ridge, no parking any time.
(O.15,992, 16,271)

Sec. 114-2932. Southwest Forty-fourth Street—Parklawn Drive to dead end south.

Southwest Forty-fourth Street, on the west side, from Parklawn Drive to a point 180 feet south thereof and any part of the cul-de-sac, no parking any time.
(C79, § 27-971.01; O.10,207; C91, § 27-1902; O.11,650)

Sec. 114-2933. Forty-fifth Place—Harwood Drive to Boulevard Place.

Forty-fifth Place, on the east side, from Harwood Drive to a point 350 feet north thereof, no parking any time.

Forty-fifth Place, on both sides, from Chamberlain Avenue to Boulevard Place, no parking any time.
(C62, § 30-953; O.8084; C75, C79, § 27-972; C91, § 27-1903; O.11,650, 14,437, 15,753)

Sec. 114-2934. Forty-fifth Street—Greenwood Drive to Aurora Avenue.

Forty-fifth Street, on both sides, from Grand Avenue to a point 1,080 feet south thereof, no parking any time.

Forty-fifth Street, on the east side, from Ingersoll Avenue to Harwood Drive, no parking any time.

Forty-fifth Street, on the east side, from Chamberlain Avenue to a point 50 feet north thereof, no parking any time.

Forty-fifth Street, on the east side, from a point 50 feet north of Chamberlain Avenue to Kingman Boulevard, no parking 8:00 a.m. to 3:00 p.m. school days.

Forty-fifth Street, on the west side, from Chamberlain Avenue to University Avenue, no parking any time.

Forty-fifth Street, on the west side, from Carpenter Avenue to Franklin Avenue, no parking any time.

Forty-fifth Street, on the east side, from Carpenter Avenue to a point 40 feet north thereof, no parking any time.

Forty-fifth Street, on the east side, from Forest Avenue to a point 50 feet north thereof, no parking any time.

Forty-fifth Street, on the east side, from a point 40 feet south of College Avenue to a point 40 feet north of College Avenue, no parking any time.

Forty-fifth Street, on the west side, from Hickman Road to a point 75 feet north thereof, no parking any time.

Forty-fifth Street, on the east side, from Hickman Road to Ovid Avenue, no parking any time.

Forty-fifth Street, on the east side, from Madison Avenue to Aurora Avenue, no parking any time.
(C62, § 30-954; O.8084, 8183, 8190, 8278; C75, C79, § 27-973; O.9849, 9886, 10,123, 10,162; C91, § 27-1904; O.11,650, 12,045; C00, § 114-2934; O.14,437, 14,518 (installed 8/17/10, 11/9/17), 15,753, 16,171)

Sec. 114-2934.5. East Forty-Fifth Street—East Aurora Avenue to East Twana Drive.

East Forty-Fifth Street, on the east side, from Aurora Avenue to East Twana Drive, no parking any time.
(O.16,539)

Sec. 114-2935. Forty-sixth Street—Grand Avenue to dead end north of Brinkwood Road.

Forty-sixth Street, on the east side, from Grand Avenue to Ingersoll Avenue, no parking any time.

Forty-sixth Street, on the east side, from University Avenue to a point 50 feet north thereof, no parking any time.

Forty-sixth Street, on the west side, from Ingersoll Avenue to Harwood Drive, no parking any time.

Forty-sixth Street, on the east side, from Ingersoll Avenue to a point 50 feet north thereof, no parking any time.

Forty-sixth Street, on the west side, from Kingman Boulevard to Hickman Road, no parking any time.

Forty-sixth Street, on the east side, from Forest Avenue to a point 50 feet north thereof, no parking any time.

Forty-sixth Street, on the east side, from Hickman Road to Urbandale Avenue, no parking any time.

Forty-sixth Street, on the west side, from Hickman Road to a point 50 feet north thereof, no parking any time.

Forty-sixty Street, on the east side, from Urbandale Avenue to a point 50 feet north thereof, no parking any time.

Forty-sixth Street, on the west side, from Urbandale Avenue to a point 640 feet north thereof, no parking any time.

Forty-sixth Street, on the east side, from Madison Avenue to Aurora Avenue, no parking any time.

Forty-sixth Street, on the west side, from Aurora Avenue to Bel-Aire Road, no parking any time.

Forty-sixth Street, on the east side, from a point 50 feet south of Twana Drive to a point 50 feet north of Twana Drive, no parking any time.

Forty-sixth Street, on the east side, from a point 50 feet south of Palm Drive to a point 50 feet north of Palm Drive, no parking any time.

Forty-sixth Street, on the west side, from a point 230 feet south of Brinkwood Road to a point 280 feet north of Brinkwood Road and on any part of the cul-de-sac, no parking any time.
(C62, § 30-955; O.8084, 8098, 8109, 8886; C75, § 27-974; O.9155, 9226; C79, § 27-974; O.9849, 9886, 10,123, 10,675; C91, § 27-1905; O.11,650, 13,218, 13,698; C00, § 114-2935; O.14,518 (installed 11/3/17), 14,634, 16,171)

Sec. 114-2936. Forty-seventh Street—University Avenue to Aurora Avenue.

Forty-seventh Street, on the east side, from University Avenue to a point 140 feet north thereof, no parking any time.

Forty-seventh Street, on the east side, from a point 60 feet south of Ovid Avenue to a point 60 feet north of Ovid Avenue, no parking any time.

Forty-seventh Street, on the east side, from Amick Avenue to a point 45 feet north thereof, no parking any time.

Forty-seventh Street, on the east side, from a point 150 feet north of Amick Avenue to a point 200 feet north of Euclid Avenue, no parking any time.

Forty-seventh Street, on the west side, from University Avenue to Douglas Avenue, no parking any time.

Forty-seventh Street, on the east side, from a point 50 feet south of Hickman Road to a point 80 feet north of Hickman Road, no parking any time.

Forty-seventh Street, on the east side, from Madison Avenue to Aurora Avenue, no parking 7:00 a.m. to 5:00 p.m. school days.

Forty-seventh Street, on the west side, from Madison Avenue to Aurora Avenue, no parking any time.

Forty-seventh Street, on the east side, from Douglas Avenue to a point 75 feet south thereof, no parking any time.
(C62, § 30-956; O.8084, 8186, 8905; C75, C79, § 27-975; C91, § 27-1906; O.11,650, 13,239, 13,751; C00, § 114-2936; O.14,437, 14,518 (installed 4/18/19), 16,171, 16,462)

Sec. 114-2936.25. East Forty-seventh Street—South city limits to north city limits.

East Forty-seventh Street, on the west side, from Wisconsin Avenue to the dead end north of East Sheridan Avenue, no parking any time.
(O.16,215)

Sec. 114-2936.5. East Forty-eighth Street—Wisconsin Avenue to north city limits.

East Forty-eighth Street, on the west side, from Wisconsin Avenue to East Sheridan Avenue, no parking any time.

East Forty-eighth Street, on the east side, from Wisconsin Avenue to a point 50 feet north thereof, no parking any time.

East Forty-eighth Street, on the east side, from East Valdez Drive to north city limits, no parking any time.
(C00, § 114-2936.5; O.14,518 (installed 7/9/19), 14,634, 15,466, 15,750, 16,171)

Sec. 114-2937. Forty-eighth Place—Hickman Road to Madison Avenue.

Forty-eighth Place, on the east side, from Hickman Road to a point 270 feet north of Euclid Avenue and any part of the cul-de-sac, no parking any time.

Forty-eighth Place, on the west side, from Douglas Avenue to a point 50 feet north thereof, no parking any time.

Forty-eighth Place, on the east side, from Douglas Avenue to Madison Avenue, no parking any time.

Forty-eighth Place, on the west side, from Madison Avenue to a point 75 feet south thereof, no parking any time.

Forty-eighth Place, on the west side, from Urbandale Avenue to a point 110 feet north thereof, no parking any time.
(C62, § 30-957; O.8084; C75, C79, § 27-976; O.9747, 9886, 10,598; C85, § 27-976; O.10,848; C91, § 27-1907; O.11,650, 13,332, 13,858)

Sec. 114-2938. Forty-eighth Street—Dead end south of Ingersoll Avenue to Crestmoor Drive.

Forty-eighth Street, on the west side, from a point 250 feet south of Ingersoll Avenue to Harwood Drive, no parking any time.

Forty-eighth Street, on the east side, from Waterbury Road to a point 50 feet north thereof, no parking any time.

Forty-eighth Street, on the west side, from University Avenue to Carpenter Avenue, no parking any time.

Forty-eighth Street, on the east side, from University Avenue to a point 170 feet north thereof, no parking any time.

Forty-eighth Street, on the east side, from a point 55 feet south of Carpenter Avenue to a point 55 feet north of Forest Avenue, no parking any time.

Forty-eighth Street, on the west side, from Forest Avenue to a point 630 feet north thereof, no parking any time.

Forty-eighth Street, on the east side, from a point 570 feet north of Forest Avenue to a point 75 feet north of College Avenue, no parking any time.

Forty-eighth Street, on the west side, from College Avenue to a point 750 feet north thereof, no parking any time.

Forty-eighth Street, on the east side, from a point 645 feet north of College Avenue to a point 85 feet north of Hickman Road, no parking any time.

Forty-eighth Street, on the west side, from Franklin Avenue to a point 200 feet south thereof, no parking any time.

Forty-eighth Street, on the west side, from Hickman Road to a point 60 feet south thereof, no parking any time.

Forty-eighth Street, on the west side, from a point 335 feet south of Hickman Road to a point 120 feet south thereof, no parking any time.

Forty-eighth Street, on the west side, from a point 650 feet south of Hickman Road to a point 130 feet south thereof, no parking any time.

Forty-eighth Street, on the west side, from Hickman Road to Euclid Avenue, no parking any time.

Forty-eighth Street, on the east side, from Beaver Crest Drive to a point 50 feet south thereof, no parking any time.

Forty-eighth Street, on the east side, from Urbandale Avenue to a point 75 feet north thereof, no parking any time.

Forty-eighth Street, on the west side, from Seneca Avenue to Madison Avenue, no parking any time.

Forty-eighth Street, on the east side, from Madison Avenue to a point 85 feet south thereof, no parking any time.

Forty-eighth Street, on the east side, from a point 50 feet north of Aurora Avenue to Merced Street, no parking 7:00 a.m. to 5:00 p.m. school days.

Forty-eighth Street, on the west side, from Aurora Avenue to Crestmoor Drive, no parking any time.

Forty-eighth Street, on the east side, from Aurora Avenue to a point 50 feet north thereof, no parking any time.
(C62, § 30-958; O.8084, 8231, 8268, 8878; C75, C79, § 27-977; O.9849, 9887, 10,239, 10,250, 10,270, 10,575; C85, § 27-977; O.11,225; C91, § 27-1908; O.11,650, 13,306, 14,110, 14,518 (installed 10/7/09, 8/24/12), 14,608, 14,634, 15,649, 15,947, 16,171)

Sec. 114-2938.5. East Forty-ninth Court—Dead end south of East Sheridan Avenue to north city limits.

East Forty-ninth Court, on the west side, from the dead end south of East Sheridan Avenue to East Sheridan Avenue, no parking any time.
(O.15,750)

Sec. 114-2939. Forty-ninth Place—Hickman Road to Urbandale Avenue.

Forty-ninth Place, on the west side, from Hickman Road to Holcomb Avenue, no parking any time.

Forty-ninth Place, on the east side, from Urbandale Avenue to a point 310 feet south thereof, no parking any time.

Forty-ninth Place, on the west side, from a point 120 feet south of Urbandale Avenue to a point 85 feet south thereof, no parking 7:00 a.m. to 5:00 p.m., Monday.

Forty-ninth Place, on the west side, from Bel-Aire Road north to Forth-ninth Street, no parking any time.
(C79, § 27-977.01; O.9886; C91, § 27-1909; O.11,650, 13,933, 14,075, 14,550)

Sec. 114-2940. Forty-ninth Street—Waterbury Road to Madison Avenue.

Forty-ninth Street, on the west side, from Grand Avenue to a point 50 feet south thereof, no parking any time.

Forty-ninth Street, on the east side, from Grand Avenue to a point 1,450 feet south thereof, no parking any time.

Forty-ninth Street, on both sides, from a point 1450 feet south of Grand Avenue to a point 200 feet south thereof, no parking any time.

Forty-ninth Street, on the west side, from Waterbury Road to Woodland Avenue, no parking any time.

Forty-ninth Street, on the east side, from Franklin Avenue to a point 700 feet north thereof, no parking any time.

Forty-ninth Street, on the west side, from Hickman Road to Douglas Avenue, no parking any time.

Forty-ninth Street, on the east side, from Snyder Avenue to Urbandale Avenue, no parking 7:00 a.m. to 6:00 p.m., Monday through Friday.

Forty-ninth Street, on the east side, from Urbandale Avenue to a point 50 feet north thereof, no parking any time.

Forty-ninth Street, on the east side, from Douglas Avenue to a point 200 feet south thereof, no parking any time.

Forty-ninth Street, on the west side, from Seneca Avenue to Madison Avenue, no parking any time.

Forty-ninth Street, on the east side, from a point 75 feet south of Madison Avenue to Madison Avenue, no parking any time.
(C62, § 30-959; O.8084, 8433, 8484; C75, § 27-978; O.9560; C79, § 27-978; O.9658, 9849, 10,342, 10,580; C91, § 27-1910; O.11,650, 16,511)

Sec. 114-2940.1. Forty-ninth Street—Madison Avenue to Forty-Ninth Place.

Forty-ninth Street, on the east side, from Bel-Aire Road to Forty-ninth Place, no parking any time.
(O.13,933)

Sec. 114-2940.5. East Forty-ninth Street—Richmond Avenue to Park Side Drive.

East Forty-ninth Street, north and west sides, from Richmond Avenue to Park Side Drive, no parking any time.
(O.14,862)

Sec. 114-2940.75. East Fiftieth Court—Northeast Twenty-third Avenue to Grandview Avenue.

East Fiftieth Court, on the east side, from East Sheridan Avenue to Grandview Avenue, no parking any time.
(O.15,992)

Sec. 114-2941. Fiftieth Place—Allison Avenue to Lincoln Avenue.

Fiftieth Place, on the west side, from Allison Avenue to Lincoln Avenue, no parking any time.
(C79, § 27-978.01; O.9685; C91, § 27-1911; O.11,650)

Sec. 114-2942. Fiftieth Street—Woodland Avenue to Meredith Drive.

Fiftieth Street, on the east side, from Woodland Avenue to Pleasant Street, no parking any time.

Fiftieth Street, on the west side, from a point 50 feet south of Hickman Road to a point 50 feet north of Hickman Road, no parking any time.

Fiftieth Street, on the east side, from Franklin Avenue to a point 50 feet north of Madison Avenue, no parking any time.

Fiftieth Street, on the west side, from Urbandale Avenue to a point 65 feet south thereof, no parking any time.

Fiftieth Street, on the west side, from Douglas Avenue to a point 50 feet south thereof, no parking any time.

Fiftieth Street, on the west side, from Douglas Avenue to a point 50 feet south of Madison Avenue, no parking 7:00 a.m. to 6:00 p.m., Monday through Friday.

Fiftieth Street, on the west side, from Madison Avenue to a point 50 feet south thereof, no parking any time.

Fiftieth Street, on the west side, from Madison Avenue to Aurora Avenue, no parking any time.

Fiftieth Street, on the east side, from a point 290 feet north of Madison Avenue to a point 120 feet north thereof, no parking any time.

Fiftieth Street, on the east side, from a point 490 feet north of Madison Avenue to a point 120 feet north thereof, no parking any time.

Fiftieth Street, on the east side, from Aurora Avenue to a point 50 feet south thereof, no parking any time.

Fiftieth Street, on the east side, from Aurora Avenue to a point 100 feet north thereof, no parking any time.

Fiftieth Street, on the east side, from a point 50 feet south of Twana Drive to a point 65 feet north of Twana Drive, no parking any time.

Fiftieth Street, on the east side, from a point 50 feet south of Bel-Aire Road to a point 50 feet north of Bel-Aire Road, no parking any time.

Fiftieth Street, on the east side from a point 80 feet south of Crestmoor Drive to a point 50 feet north of Crestmoor Drive, no parking any time.

Fiftieth Street, on the east side, from Meredith Drive to a point 100 feet south thereof, no parking any time.

Fiftieth Street, on the west side, from Aurora Avenue to Meredith Drive, no parking any time. (C62, § 30-960; O.8084, 8433; C75, § 27-979; O.9152, 9246, 9534; C79, § 27-979; O.9720, 9849, 10,598; C85, § 27-979; O.11,420; C91, § 27-1912; O.11,650, 13,727; C00, § 114-2942; O.14,518 (installed 6/6/12), 14,634, 14,950, 16,171)

Sec. 114-2942.5. East Fiftieth Street—Northeast Twenty-third Avenue to East Broadway Avenue.

East Fiftieth Street, on the west side, from Northeast Twenty-third Avenue to Grandview Avenue, no parking any time.

East Fiftieth Street, on the east side, from the dead end south of East Broadway Avenue to East Broadway Avenue, no parking any time.

East Fiftieth Street, on the west side, from a point 190 feet south of East Broadway Avenue to East Broadway Avenue, no parking any time. (O.15,563, 15,750, 15,992)

Sec. 114-2943. Fifty-first Street—Welker Avenue to Aurora Avenue.

Fifty-first Street, on the west side, from Welker Avenue to a point 120 feet north thereof, no parking any time.

Fifty-first Street, on the east side, from Welker Avenue to Grand Avenue, no parking any time.

Fifty-first Street, on the west side, from Greenwood Terrace to a point 30 feet north thereof, no parking any time.

Fifty-first Street, on the west side, from a point 60 feet south of Robertson Drive to a point 60 feet north of Robertson Drive, no parking any time.

Fifty-first Street, on the west side, from a point 550 feet south of Grand Avenue to a point 275 feet south thereof, no parking any time.

Fifty-first Street, on the west side, from Grand Avenue to a point 175 feet south thereof, no parking any time.

Fifty-first Street, on the west side, from Harwood Drive to Pleasant Street, no parking any time.

Fifty-first Street, on the west side, from Franklin Avenue to Allison Avenue, no parking any time.

Fifty-first Street, on the east side, from Allison Avenue to a point 40 feet south thereof, no parking any time.

Fifty-first Street, on the west side, from Lincoln Avenue to Hickman Road, no parking any time.

Fifty-first Street, on the east side, from Hickman Road to Urbandale Avenue, no parking any time.

Fifty-first Street, on the west side, from Hickman Road to 120 feet north thereof, no parking any time.

Fifty-first Street, on the west side, from Douglas Avenue to Aurora Avenue, no parking any time.

Fifty-first Street, on the east side, from Douglas Avenue to a point 50 feet north thereof, no parking any time.

Fifty-first Street, on the east side, from Madison Avenue to a point 50 feet south thereof, no parking any time.

Fifty-first Street, on the east side, from Madison Avenue to a point 50 feet north thereof, no parking any time.

Fifty-first Street, on the east side, from Aurora Avenue to Twana Drive, no parking any time.

Fifty-first Street, on the east side, from Aurora Avenue to a point 50 feet south thereof, no parking any time.

Fifty-first Street, on the west side, from Bel-Aire Road to Crestmoor Place, no parking any time.
(C62, § 30-961; O.8084; C75, § 27-980; O.9021; C79, § 27-980; O.9685, 9849, 9918, 10,238; C91, § 27-1913; O.11,650, 11,987, 13,369, 13,548; C00, § 114-2943; O.13,870, 14,518 (installed 9/14/11, 12/10/14, 9/30/20), 14,669, 14,941, 16,171)

Sec. 114-2944. Fifty-second Street—Robertson Drive to Aurora Avenue.

Fifty-second Street, on the west side, from Robertson Drive to a point 120 feet north thereof, no parking any time.

Fifty-second Street, on the east side, from Robertson Drive to a point 720 feet north thereof, no parking any time.

Fifty-second Street, on the west side, from Woodland Avenue to Pleasant Street, no parking any time.

Fifty-second Street, on the east side, from Franklin Avenue to Hickman Road, no parking any time.

Fifty-second Street, on the west side, from Hickman Road to a point 50 feet south thereof, no parking any time.

Fifty-second Street, on the east side, from Urbandale Avenue to a point 50 feet north thereof, no parking any time.

Fifty-second Street, on the west side, from Urbandale Avenue to Aurora Avenue, no parking any time.

Fifty-second Street, on the east side, from Douglas Avenue to a point 75 feet south thereof, no parking any time.

Fifty-second Street, on the east side, from Douglas Avenue to a point 50 feet north thereof, no parking any time.

Fifty-second Street, on the east side, from Madison Avenue to a point 50 feet north thereof, no parking any time.

Fifty-second Street, on the east side, from Aurora Avenue to a point 50 feet south thereof, no parking any time.
(C62, § 30-962; O.8084, 8389, 8535, 8554, 8661; C75, § 27-981; O.9405; C79, § 27-981; O.9653, 9849; C85, § 27-981; O.10,756, 11,225; C91, § 27-1914; O.11,650, 11,904, 14,038, 14,918)

Sec. 114-2944.01. East Fifty-second Street—Brook View Drive to Walnut Ridge Drive.

East Fifty-second Street, on the west side, from Brook View Drive to Walnut Ridge Drive, no parking any time.

East Fifty-second Street, on the east side, from Brook View Drive to a point 40 feet south thereof, no parking any time.
(C00, § 114-2944.01; O.13,957, 14,322, 14,518 (installed 11/4/13), 16,171)

Sec. 114-2945. Southwest Fifty-second Street—Welker Avenue to dead end north.

Southwest Fifty-second Street, on the east side, from Welker Avenue to a point 650 feet north thereof, no parking any time.
(C79, § 27-981.01; O.9849; C91, § 27-1915; O.11,650)

Sec. 114-2946. Fifty-third Street—Dead end south of Robertson Drive to Aurora Avenue.

Fifty-third Street, on the east side, from Robertson Drive to a point 280 feet south thereof, no parking any time.

Fifty-third Street, on the east side, from Ingersoll Avenue to Waterbury Road, no parking any time.

Fifty-third Street, on the west side, from Woodland Avenue to a point 710 feet north of Harwood Drive, no parking any time.

Fifty-third Street, on the west side, from Franklin Avenue to Urbandale Avenue, no parking any time.

Fifty-third Street, on the east side, from Franklin Avenue to a point 50 feet north thereof, no parking any time.

Fifty-third Street, on the east side, from Hickman Road to a point 50 feet north thereof, no parking any time.

Fifty-third Street, on the east side, from Ovid Avenue to Douglas Avenue, no parking any time.

Fifty-third Street, on the west side, from Douglas Avenue to a point 50 feet north thereof, no parking any time.

Fifty-third Street, on the west side, from Douglas Avenue to a point 50 feet south thereof, no parking any time.

Fifty-third Street, on the east side, from Douglas Avenue to Aurora Avenue, no parking any time.

Fifty-third Street, on the west side, from a point 70 feet south of Aurora Avenue to Aurora Avenue, no parking any time.
(C62, § 30-963; O.8084, 8244, 8595, 8717; C75, § 27-982; O.9534; C79, § 27-982; O.9855, 10,498, 10,598; C91, § 27-1916; O.11,650; C00, § 114-2946; O.14,518 (installed 3/8/12), 16,171, 16,511)

Sec. 114-2946.01. East Fifty-third Court—Brook View Avenue to Village Run Avenue.

East Fifty-third Court, on the west side, from Brook View Avenue to Village Run Avenue, no parking any time.
(O.13,957, 14,322)

Sec. 114-2947. Fifty-fourth Street—Ingersoll Avenue to Twana Drive.

Fifty-fourth Street, on both sides, from Ingersoll Avenue to Waterbury Road, no parking any time.

Fifty-fourth Street, on the east side, from Harwood Drive to a point 690 feet north thereof, no parking any time.

Fifty-fourth Street, on the east side, from Urbandale Avenue to a point 50 feet north thereof, no parking any time.

Fifty-fourth Street, on the east side, from Urbandale Avenue to a point 700 feet south of Sheridan Avenue, and on any part of the cul-de-sac, no parking any time.

Fifty-fourth Street, on the west side, from Urbandale Avenue to Twana Drive, no parking any time.

Fifty-fourth Street, on the east side, from Douglas Avenue to a point 200 feet south thereof, no parking any time.

Fifty-fourth Street, on the east side, from Douglas Avenue to a point 320 feet north thereof, no parking any time.

Fifty-fourth Street, on the east side, from Madison Avenue to a point 50 feet south thereof, no parking any time.

Fifty-fourth Street, on the east side, from Madison Avenue to a point 50 feet north thereof, no parking any time.

Fifty-fourth Street, on the east side, from Aurora Avenue to a point 50 feet north and south thereof, no parking any time.
(C62, § 30-964; O.8084, 8860; C75, § 27-983; O.8984, 9367, 9402; C79, § 27-983; O.9685, 9779, 9798, 9849, 9971, 10,018; C85, § 27-983; O.11,225; C91, § 27-1917; O.11,650, 13,698)

Sec. 114-2947.05. East Fifty-fourth Court—Dead end south of Brook View Avenue to East Douglas Avenue.

East Fifty-fourth Court, on the west side, from the dead end south of Brook View Avenue to East Douglas Avenue no parking any time.
(O.15,590, 15,876)

Sec. 114-2948. Fifty-fifth Street—Harwood Drive to Aurora Avenue.

Fifty-fifth Street, on the west side, from Fifty-sixth Street to Harwood Drive, no parking any time.

Fifty-fifth Street, on the west side, from a point 600 feet south of University Avenue to a point 800 feet north of University Avenue, no parking any time.

Fifty-fifth Street, on the east side, from a point 600 feet south of University Avenue to Hickman Road, no parking any time.

Fifty-fifth Street, on the west side, from a point 800 feet north of University Avenue to a point 100 feet south of Franklin Avenue, no parking 7:00 a.m. to 6:00 p.m., Monday through Saturday.

Fifty-fifth Street, on the west side, from a point 100 feet south of Franklin Avenue to a point 100 feet north of Franklin Avenue, no parking any time.

Fifty-fifth Street, on the west side, from a point 100 feet north of Franklin Avenue to a point 100 feet south of Hickman Road, no parking 7:00 a.m. to 6:00 p.m.

Fifty-fifth Street, on the west side, from Hickman Road to a point 100 feet south thereof, no parking any time.

Fifty-fifth Street, on the east side, from Douglas Avenue to a point 50 feet north thereof, no parking any time.

Fifty-fifth Street, on the west side, from Douglas Avenue to Aurora Avenue, no parking any time.

Fifty-fifth Street, on the east side, from a point 75 feet south of Madison Avenue to a point 50 feet north of Madison Avenue, no parking any time.
(C62, § 30-965; O.8084, 8241, 8268; C75, § 27-984; O.9226, 10,309, 10,598; C85, § 27-984; O.10,932; C91, § 27-1918; O.11,650, 16,327)

Sec. 114-2949. Fifty-sixth Street—North Valley Drive to Aurora Avenue.

Fifty-sixth Street, on the east side, from Welker Avenue to a point 200 feet south of Robertson Drive, no parking any time.

Fifty-sixth Street, on the west side, from Welker Avenue to a point 50 feet north thereof, no parking any time.

Fifty-sixth Street, on the east side, from Robertson Drive to a point 120 feet south thereof, passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Fifty-sixth Street, on the west side, from Robertson Drive to a point 100 feet north thereof, no stopping or standing.

Fifty-sixth Street, on the west side, from Robertson Drive to a point 100 feet south thereof, no stopping or standing 7:00 a.m. to 5:00 p.m. school days.

Fifty-sixth Street, on the east side, from Robertson Drive to a point 100 feet north thereof, no stopping or standing.

Fifty-sixth Street, on the east side, from a point 100 feet north of Robertson Drive to College Avenue, no parking any time.

Fifty-sixth Street, on the west side, from a point 150 feet south of Grand Avenue to a point 150 feet north of University Avenue, no parking any time.

Fifty-sixth Street, on the west side, from Merklin Way to Hickman Road, no parking any time.

Fifty-sixth Street, on the east side, from a point 80 feet south of Hickman Road to Hickman Road, no parking any time.

Fifty-sixth Street, on the west side, from Hickman Road to a point 150 feet north thereof, no stopping or standing.

Fifty-sixth Street, on the east side, from Hickman Road to a point 160 feet north thereof, no stopping or standing.

Fifty-sixth Street, on the west side, from a point 150 feet north of Hickman Road to a point 870 feet north thereof, no stopping or standing 7:00 a.m. to 5:00 p.m. school days.

Fifty-sixth Street, on the east side, from a point 160 feet north of Hickman Road to a point 362 feet north thereof, passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Fifty-sixth Street, on the east side, from a point 522 feet north of Hickman Road to a point 400 feet north thereof, school passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days; no parking at all other times.

Fifty-sixth Street, on the east side, from a point 922 feet north of Hickman Road to Aurora Avenue, no parking any time.

Fifty-sixth Street, on the west side, from New York Avenue to a point 50 feet north thereof, no parking any time.

Fifty-sixth Street, on the west side, from Urbandale Avenue to a point 75 feet north thereof, no parking any time.

Fifty-sixth Street, on the west side, from a point 75 feet south of Douglas Avenue to a point 245 feet north of Douglas Avenue, no parking any time.

Fifty-sixth Street, on the west side, from Madison Avenue to a point 50 feet north thereof, no parking any time.
(C62, § 30-966; O.8084, 8108, 8167, 8283, 8298, 8310, 8632; C75, § 27-985; O.9027, 9045, 9100, 9566; C79, § 27-985; O.9685, 9704, 9840, 10,111, 10,176, 10,582; C85, § 27-985; O.10,768, 11,458, 11,600; C91, § 27-1919; O.11,650; C00, § 114-2949; O.13,973, 14,518 (installed 8/22/16, 6/20/19, 11/6/19), 16,171)

Sec. 114-2950. Southwest Fifty-sixth Street—Park Avenue to south city limits.

Southwest Fifty-sixth Street, on the east side, from Park Avenue to the south city limits, no parking any time.
(C79, § 27-985.01; O.10,207; C91, § 27-1920; O.11,650)

Sec. 114-2951. Fifty-seventh Place—University Avenue to Northwest Drive.

Fifty-seventh Place, on the east side, from University Avenue to a point 50 feet north thereof, no parking any time.

Fifty-seventh Place, on the west side, from University Avenue to College Avenue, no parking any time.

Fifty-seventh Place, on the east side, from Washington Avenue to Northwest Drive, no parking any time.
(C62, § 30-967; O.8084, 8453, 8751; C75, § 27-986; O.9197; C79, § 27-986; O.9685; C91, § 27-1921; O.11,650)

Sec. 114-2952. Fifty-seventh Street—Waterbury Road to Aurora Avenue.

Fifty-seventh Street, on the west side, from Waterbury Road to Ingersoll Avenue, no parking any time.

Fifty-seventh Street, on the east side, from North Waterbury Road to Woodland Road, no parking any time.

Fifty-seventh Street, on the west side, from University Avenue to a point 50 feet north thereof, no parking any time.

Fifty-seventh Street, on the east side, from Kingman Avenue to College Avenue, no parking any time.

Fifty-seventh Street, on the east side, from Washington Avenue to Northwest Drive, no parking any time.

Fifty-seventh Street, on the west side, from Northwest Drive to Franklin Avenue, no parking any time.

Fifty-seventh Street, on the west side, from Urbandale Avenue to a point 800 feet north thereof, no parking any time.

Fifty-seventh Street, on the east side, from Urbandale Avenue to a point 60 feet north thereof, no parking any time.

Fifty-seventh Street, on the east side, from Hickman Road to a point 150 feet north thereof, no parking any time.

Fifty-seventh Street, on the west side, from Hickman Road to New York Avenue, no parking any time.

Fifty-seventh Street, on the east side, from a point 50 feet south of Douglas Avenue to a point 50 feet north of Douglas Avenue, no parking any time.

Fifty-seventh Street, on the east side, from Madison Avenue to a point 65 feet north thereof, no parking any time.

Fifty-seventh Street, on the west side, from Ovid Avenue to Aurora Avenue, no parking any time.

Fifty-seventh Street, on the east side, from Aurora Avenue to a point 50 feet south thereof, no parking any time.
(C62, § 30-968; O.8084, 8182, 8283, 8772; C75, C79, § 27-987; O.9641, 9685, 9747, 9849, 10,386, 10,598; C91, § 27-1922; O.11,650, 13,602, 13,645, 13,647, 14,132)

Sec. 114-2953. Fifty-eighth Place—Dead end south of Grand Avenue to Grand Avenue.

Fifty-eighth Place, on the east side, from Grand Avenue to a point 650 feet south thereof, no parking any time.

Fifty-eighth Place, on the west side, from Grand Avenue to a point 50 feet south thereof, no parking any time.
(C62, § 30-968.01; O.8529; C75, § 27-987.01; O.9534; C79, § 27-987.01; C91, § 27-1923; O.11,650)

Sec. 114-2954. Fifty-eighth Street—Terrace Drive to University Avenue.

Fifty-eighth Street, on the west side, from Terrace Drive to Grand Avenue, no parking any time.

Fifty-eighth Street, on the east side, from Terrace Drive to a point 60 feet north thereof, no parking any time.

Fifty-eighth Street, on the east side, from Grand Avenue to a point 110 feet south thereof, no parking any time.

Fifty-eighth Street, on the west side, from Walnut Hill Avenue to Waterbury Road, no parking any time.

Fifty-eighth Street, on the west side, from Chamberlain Drive to University Avenue, no parking any time.

Fifty-eighth Street, on the east side, from a point 150 feet south of University Avenue to University Avenue, no parking any time.
(C62, § 30-969; O.8084, 8639; C75, C79, § 27-988; O.9685, 9849; C91, § 27-1924; O.11,650, 13,780; C00, § 114-2954; O.14,518 (installed 2/12/20), 16,171)

Sec. 114-2955. Southwest Fifty-eighth Drive—Fifty-sixth Street to Fifty-eighth Street.

Southwest Fifty-eighth Drive, on the north side, from Fifty-sixth Street to a point 50 feet west thereof, no parking any time.

Southwest Fifty-eighth Drive, on the south side, from Fifty-sixth Street to Fifty-eighth Street, no parking any time.

Southwest Fifty-eighth Drive, on the east side, from a point 75 feet south of Terrace Drive to Terrace Drive, no parking any time.
(C79, § 27-988.01; O.9849; C91, § 27-1925; O.11,650; C00, § 114-2955; O.14,518 (installed 7/28/17), 16,171, 16,522)

Sec. 114-2955.5. Southwest Fifty-eighth Street—Watrous Avenue to Rose Avenue.

Southwest Fifty-eighth Street, on the east side, from Watrous Avenue to Rose Avenue, no parking any time.
(O.16,299)

Sec. 114-2956. Fifty-ninth Street—Dead end south of Grand Avenue to Douglas Avenue.

Fifty-ninth Street, on the east side, from Grand Avenue to a point 800 feet south thereof, no parking any time.

Fifty-ninth Street, on the east side, from North Waterbury Road to a point 100 feet north thereof, no parking any time.

Fifty-ninth Street, on the west side, from North Waterbury Road to Harwood Drive, no parking any time.

Fifty-ninth Street, on both sides, from Grand Avenue to Ingersoll Avenue, no parking any time.

Fifty-ninth Street, on the east side, from Chamberlain Drive to Dagle Drive, no parking any time.

Fifty-ninth Street, on the west side, from a point 50 feet south of Rutland Drive to a point 50 feet north of Rutland Drive, no parking any time.

Fifty-ninth Street, on the east side, from Dagle Drive to University Avenue, no stopping or standing.

Fifty-ninth Street, on the west side, from Dagle Drive to a point 50 feet north thereof, no parking any time.

Fifty-ninth Street, on the west side, from a point 50 feet north of Dagle Drive to a point 350 feet north thereof, passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Fifty-ninth Street, on the west side, from a point 400 feet north of Dagle Drive to University Avenue, no stopping or standing.

Fifty-ninth Street, on the west side, from College Avenue to Sheridan Avenue, no parking any time.

Fifty-ninth Street, on the east side, from Holcomb Avenue to a point 50 feet south thereof, no parking any time.

Fifty-ninth Street, on the east side, from Sheridan Avenue to New York Avenue, no parking any time.

Fifty-ninth Street, on the east side, from Boston Avenue to Douglas Avenue, no parking any time.

Fifty-ninth Street, on the west side, from a point 350 feet south of Douglas Avenue to a point 120 feet south thereof, no parking 7:00 a.m. to 6:00 p.m.

Fifty-ninth Street, on the west side, from Boston Avenue to a point 50 feet north, no parking any time.

Fifty-ninth Street, on the west side, from Douglas Avenue to a point 150 feet south thereof, no parking any time.
(C62, § 30-970; O.8084, 8144, 8310; C75, § 27-989; O.8974; C79, § 27-989; O.9685, 9849, 10,111, 10,386; C91, § 27-1926; O.11,650, 13,130, 13,239, 13,539; C00, § 114-2956; O.14,437, 14,518 (installed 2/5/08 and 11/17/10), 16,171)

Sec. 114-2957. Southwest Fifty-ninth Street—Muskogee Avenue to dead end south of Tonka Avenue.

Southwest Fifty-ninth Street, on the east side, from Muskogee Avenue to Tonka Avenue, no parking any time.
(C79, § 27-989.01; O.9849; C91, § 27-1927; O.11,650)

Sec. 114-2958. Sixtieth Street—Grand Avenue to New York Avenue.

Sixtieth Street, on the west side, from Grand Avenue to Walnut Hill Avenue, no parking any time.

Sixtieth Street, on the east side, from a point 75 feet south of Cara Carpenter Avenue to a point 60 feet north of Cara Carpenter Avenue, no parking any time.

Sixtieth Street, on the west side, from University Avenue to Cummins Parkway, no parking any time.

Sixtieth Street, on the east side, from Cummins Parkway to Crown Lane, no parking any time.

Sixtieth Street, on the west side, from Cummins Parkway to a point 50 feet north thereof, no parking any time.

Sixtieth Street, on the east side, from Northwest Drive to a point 50 feet south thereof, no parking any time.

Sixtieth Street, on the west side, from Crown Lane to Franklin Avenue, no parking any time.

Sixtieth Street, on the east side, from a point 50 feet south of College Avenue to a point 50 feet north of College Avenue, no parking any time.

Sixtieth Street, on the west side, from Lincoln Avenue to a point 80 feet north thereof, no parking any time.

Sixtieth Street, on the east side, from Franklin Avenue to New York Avenue, no parking any time.
(C62, § 30-971; O.8084; C75, C79, § 27-990; O.9685, 9849; C85, § 27-990; O.10,933; C91, § 27-1928; O.11,650, 13,474; C00, §114-2958; O.13,828, 14,518 (installed 8/19/08, 6/13/19), 16,171)

Sec. 114-2959. Southwest Sixtieth Street—Gregory Lane to dead end south of Southwest Leland Avenue.

Southwest Sixtieth Street, on the east side, from Gregory Lane to a point 320 feet south of Muskogee Avenue, no parking any time.

Southwest Sixtieth Street, on the west side, from Muskogee Avenue to a point 50 feet south thereof, no parking any time.

Southwest Sixtieth Street, on the east side, from Southwest Leland Avenue south to the dead end, no parking any time.
(C79, § 27-990.01; O.9849; C91, § 27-1929; O.11,650, 13,602, 14,145, 14,339, 16,171)

Sec. 114-2960. Sixty-first Street—Grand Avenue to Douglas Avenue.

Sixty-first Street, on the west side, from Grand Avenue to Walnut Hill Drive, no parking any time.

Sixty-first Street, on the east side, from a point 135 feet north of Grand Avenue to a point 70 feet north thereof, no parking Monday through Friday.

Sixty-first Street, on the east side, from a point 50 feet south of Walnut Hill Drive to Walnut Hill Drive, no parking any time.

Sixty-first Street, on the west side, from Woodland Road to Pleasant Drive, no parking any time.

Sixty-first Street, on the east side, from Clark Street to Crown Lane, no parking any time.

Sixty-first Street, on the west side, from College Avenue to Franklin Avenue, no parking any time.

Sixty-first Street, on the east side, from Franklin Avenue to Douglas Avenue, no parking any time.

Sixty-first Street, on the west side, from Hickman Road to a point 50 feet north thereof, no parking any time.

Sixty-first Street, on the west side, from Urbandale Avenue to a point 125 feet north thereof, no parking any time.

Sixty-first Street, on the west side, from Douglas Avenue to a point 650 feet south thereof, no parking any time.
(C62, § 30-972; O.8084; C75, § 27-991; O.9461; C79, § 27-991; O.9685, 9849, 9878, 10,018, 10,075; C91, § 27-1930; O.11,650; C00, § 114-2960; O.14,518 (installed 8/10/06, 10/27/16), 14,886, 16,171, 16,283)

Sec. 114-2960.5. Southwest Sixty-first Street—Gordon Avenue to Southwest McKinley Drive.

Southwest Sixty-first Street, on both sides, from Willowmere Drive to a point 100' south thereof, no parking any time.

Southwest Sixty-first Street, on both sides, from a point 140 feet north of Park Avenue to a point 260 feet south of Park Avenue, no parking any time.

Southwest Sixty-first Street, on both sides, from Thornton Avenue to Watrous Avenue, no parking any time.

Southwest Sixty-first Street, on both sides, from Southwest McKinley Avenue to Southwest McKinley Drive, no parking any time.
(O.15,966, 16,126)

Sec. 114-2961. Sixty-second Place—Woodland Road to Douglas Avenue.

Sixty-second Place, on the west side, from Pleasant Drive to Rollins Avenue, no parking any time.
(C62, § 30-973; O.8084; C75, C79, § 27-992; C91, § 27-1932; O.11,650)

Sec. 114-2962. Sixty-second Street—Grand Avenue to Douglas Avenue.

Sixty-second Street, on both sides, from Grand Avenue to Walnut Hill Avenue, no parking any time.

Sixty-second Street, on the east side, from Woodland Avenue to Pleasant Drive, no parking any time.

Sixty-second Street, on the east side, from Windsor Drive to Windsor Drive, no parking any time.

Sixty-second Street, on the east side, from University Avenue to Crown Lane, no parking any time.

Sixty-second Street, on the west side, from University Avenue to a point 50 feet north thereof, no parking any time.

Sixty-second Street, on the west side, from College Avenue to Hickman Road, no parking any time.

Sixty-second Street, on the east side, from College Avenue to a point 75 feet north thereof, no parking any time.

Sixty-second Street, on the west side, from Hickman Road to a point 140 feet north thereof, no parking any time.

Sixty-second Street, on the east side, from Hickman Road to Douglas Avenue, no parking any time.

Sixty-second Street, on the west side, from Robin Drive to a point 50 feet north thereof, no parking any time.

Sixty-second Street, on the west side, from Sherrick Avenue to a point 50 feet north thereof, no parking any time.

Sixty-second Street, on the west side, from Urbandale Avenue to a point 75 feet south thereof, no parking any time.

Sixty-second Street, on the west side, from Urbandale Avenue to a point 75 feet north thereof, no parking any time.

Sixty-second Street, on the west side, from a point 110 feet north of Boston Avenue to a point 225 feet north thereof, no parking any time.

Sixty-second Street, on the west side, from a point 805 feet north of Boston Avenue to a point 175 feet north thereof, no parking any time.

Sixty-second Street, on the west side, from Douglas Avenue to a point 200 feet south thereof, no parking any time.
(C62, § 30-974; O.8084; C75, § 27-993; O.8981; C79, § 27-993; O.9685, 9849, 10,441; C85, § 27-993; O.11,168, 11,199; C91, § 27-1933; O.11,650, 13,548, C00, § 114-2962; O.14,518 (installed 4/4/06, 12/7/06, 1/29/07, 5/4/17, 1/4/22), 16,171, 16,236)

Sec. 114-2962.01. Southwest Sixty-second Street—County Line Road to Gordon Avenue.

Southwest Sixty-second Street, on the west side, from Railroad Avenue to a point 60 feet north, no parking any time.
(O.14,102)

Sec. 114-2963. Sixty-third Street—Vine Street to dead end north of Dawson Drive.

Sixty-third Street, on the east side, from Vine Street to Hickman Road, no parking any time.

Sixty-third Street, on the west side, from a point 1305 feet south of Center Street to Center Street, no parking any time.

Sixty-third Street, on the west side, from Dawson Drive to the dead end north thereof, no parking any time.

Sixty-third Street, on the east side, from a point 220 feet north of Dawson Drive to the dead end north thereof, no parking any time.
(C62, § 30-975; O.8084; C75, C79, § 27-994; O.9685; C91, § 27-1934; O.11,650, 15,821)

Sec. 114-2964. Southwest Sixty-second Street—Muskogee Avenue to Railroad Avenue.

Southwest Sixty-second Street, on the east side, from Winona Avenue to Railroad Avenue, no parking any time.

Southwest Sixty-second Street, on the west side, from Railroad Avenue to a point 50 feet north thereof, no parking any time.
(C75, § 27-994.01; O.9405; C79, C85, § 27-994.01; O.11,186, 11,225; C91, § 27-1935; O.11,650)

Sec. 114-2965. Southwest Sixty-third Street—Vine Street to south city limits.

Southwest Sixty-third Street, on the east side, from Vine Street to Southwest McKinley Avenue, no parking any time.

Southwest Sixty-third Street, on the west side, from Scout Trail to Veterans Parkway, no parking any time.

Southwest Sixty-third Street, on the east side, from Southwest McKinley Avenue to the south city limits, no parking any time.
(C62, § 30-976; O.8084; C75, C79, § 27-995; C91, § 27-1936; O.11,650, 13,268, 14,339, 15,242, 15,821)

Sec. 114-2966. Sixty-seventh Street—Holcomb Avenue to Urbandale Avenue.

Sixty-seventh Street, on the west side, from Sheridan Avenue to Urbandale Avenue, no parking any time.

Sixty-seventh Street, on the east side, from Sheridan Avenue to a point 50 feet north thereof, no parking any time.

Sixty-seventh Street, on the east side, from a point 160 feet south of Sherrick Avenue to a point 20 feet south thereof, no parking any time.
(C75, § 27-995.01; O.9524; C79, § 27-995.01; O.9685; C85, § 27-995.01; O.11,288; C91, § 27-1937; O.11,650; C00, § 114-2966; O.14,518 (installed 12/2/15), 16,171)

Sec. 114-2967. Sixty-fourth Street—Dead end south of Robin Drive to dead end north of Robin Drive.

Sixty-fourth Street, on the east side, from a point 230 feet south of Robin Drive to a point 400 feet north of Robin Drive, no parking any time.
(C79, § 27-995.02; O.9685; C91, § 27-1938; O.11,650)

Sec. 114-2968. Sixty-fourth Street—Center Street to dead end south.

Sixty-fourth Street, on the east side, from Center Street to a point 230 feet south of Harwood Court and any part of the cul-de-sac, no parking any time.
(C79, § 27-995.03; O.9849; C91, § 27-1939; O.11,650)

Sec. 114-2969. Adams Avenue—Martin Luther King Jr Parkway to Thirtieth Street.

Adams Avenue, on the north side, from Martin Luther King Jr Parkway to Thirtieth Street, no parking any time.

Adams Avenue, on the south side, from Martin Luther King Jr Parkway to Twenty-seventh Street, no parking any time.

Adams Avenue, on the south side, from Thirtieth Street to a point 75 feet east thereof, no parking any time.
(C62, § 30-977; O.8084; C75, C79, § 27-996; C91, § 27-1940; O.11,650, 11,935)

Sec. 114-2970. Adams Avenue—Fortieth Place to Beaver Avenue.

Adams Avenue, on the north side, from Beaver Avenue to a point 275 feet east thereof, passenger loading and unloading.

Adams Avenue, on the south side, from Beaver Avenue to a point 50 feet east thereof, no parking any time.
(C62, § 30-978; O.8084, 8922; C75, § 27-997; O.9402; C79, § 27-997; O.9693, 10,638; C85, § 27-997; O.10,747, 10,885; C91, § 27-1941; O.11,650; C00, § 114-2970; O.14,518 (installed 6/21/06), 16,171)

Sec. 114-2971. Adams Avenue—Beaver Avenue to Forty-fourth Street.

Adams Avenue, on the south side, from Thirty-eighth Street to a point 50 feet west thereof, no parking any time.

Adams Avenue, on the north side, from Thirty-eighth Street to a point 50 feet east thereof, no parking any time.

Adams Avenue, on the north side, from a point 100 feet east of Forty-fourth Street to Forty-fourth Street, no parking any time.

Adams Avenue, on the north side, from Beaver Avenue to a point 150 feet west, no parking 7:00 a.m. to 5:00 p.m., school days.

Adams Avenue, on the south side, from Beaver Avenue to Forty-fourth Street, no parking any time.

(C62, § 30-979; O.8084; C75, C79, C85, § 27-998; O.11,315; C91, § 27-1942; O.11,650, 14,322, 14,518 (installed 9/12/12), 15,140, 16,171)

Sec. 114-2972. Algonquin Road—Kingman Boulevard to dead end west.

Algonquin Road, on the north side, from Kingman Boulevard to a point 600 feet west thereof, no parking any time.
(C79, § 27-988.01; O.9849; C91, § 27-1943; O.11,650)

Sec. 114-2973. Allen Place—Terrace Road to Forest Drive.

Allen Place, on the east side, from Terrace Road to Forest Drive, no parking any time.
(C62, § 30-980; O.8084; C75, § 27-999; O.9402; C79, § 27-999; O.10,278; C91, § 27-1944; O.11,650)

Sec. 114-2974. Allen Street—Southeast Second Street to Southeast Twelfth Street.

Allen Street, on the north side, from Southeast Second Street to Southeast Third Street, no parking any time.

Allen Street, on the north side, from Southeast Ninth Street to Southeast Eleventh Street, no parking any time.
(C79, § 27-999.01; O.10,402; C91, § 27-1945; O.11,650, 14,982)

Sec. 114-2975. Allison Avenue—Sixth Avenue to Merle Hay Road.

Allison Avenue, on the south side, from Sixth Avenue to a point 60 feet west thereof, no parking any time.

Allison Avenue, on the south side, from Chautauqua Parkway to Sixteenth Street, no parking any time.

Allison Avenue, on the north side, from Sixteenth Street to a point 50 feet east thereof, no parking any time.

Allison Avenue, on the north side, from Sixteenth Street to a point 50 feet west of Nineteenth Street, no parking any time.

Allison Avenue, on the south side, from Nineteenth Street to Martin Luther King Jr Parkway, no parking any time.

Allison Avenue, on the north side, from Martin Luther King Jr Parkway to a point 50 feet east thereof, no parking any time.

Allison Avenue, on the south side, from a point 50 feet west of Twenty-seventh Street to a point 50 feet east of Twenty-seventh Street, no parking any time.

Allison Avenue, on the north side, from a point 550 feet east of Twenty-seventh Street to a point 550 feet west of Twenty-seventh Street, no parking any time.

Allison Avenue, on the north side, from Thirtieth Street to a point 520 feet east thereof, no parking any time.

Allison Avenue, on the south side, from Thirtieth Street to a point 75 feet east thereof, no parking any time.

Allison Avenue, on the south side, from a point 185 feet west of Beaver Avenue to a point 50 feet west thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in subsection 114-616(a) of this chapter.

Allison Avenue, on the north side, from Beaver Avenue to Forty-fourth Street, no parking any time.

Allison Avenue, on the south side, from Forty-fourth Street to a point 25 feet east thereof, no parking any time.

Allison Avenue, on the north side, from Fiftieth Place to Fifty-first Street, no parking any time.

Allison Avenue, on the south side, from Fifty-first Street to a point 40 feet east thereof, no parking any time.

Allison Avenue, on the south side, from Merle Hay Road to a point 370 feet east thereof, no parking any time.
(C62, § 30-981; O.8084, 8572, 8767, 8825; C75, § 27-1000; O.9226, 9244, 9289, 9434, 9461; C79, § 27-1000; O.9685, 10,096, 10,123, 10,582; C91, § 27-1946; O.11,650, 11,828, 11,935, 13,534; C00, § 114-2975; O.14,204, 14,476, 14,518 (installed 3/4/10, 12/10/14, 10/6/17), 16,171)

Sec. 114-2976. Alpha Avenue—East Eighth Street to Tichenor Street.

Alpha Avenue, on the south side, from East Eighth Street to East Ninth Street, no parking any time.

Alpha Avenue, on the south side, from East Fourteenth Street to Glenbrook Drive, no parking any time.

Alpha Avenue, on the north side, from East Fourteenth Street to a point 300 feet east thereof, no parking any time.

Alpha Avenue, on the north side, from Glenbrook Drive to a point 75 feet west thereof, no parking any time.

Alpha Avenue, on the south side, from East Twenty-first Street to a point 50 feet east thereof, no parking any time.

Alpha Avenue, on the south side, from Tichenor Street to a point 50 feet west thereof, no parking any time.

Alpha Avenue, on the north side, from East Twenty-first Street to Tichenor Street, no parking any time.
(C62, § 30-982; O.8084; C75, § 27-1001; O.9461, C79, § 27-1001; O.10,402, 10,421, 10,613; C91, § 27-1947; O.11,650)

Sec. 114-2977. Amherst Street—Guthrie Avenue to East Aurora Avenue.

Amherst Street, on the east side, from Guthrie Avenue to Arthur Avenue, no parking any time.

Amherst Street, on the east side, from Boyd Street to a point 250 feet north of East Seneca Avenue and any part of the cul-de-sac, no parking any time.

Amherst Street, on the west side, from a point 50 feet south of East Euclid Avenue to a point 50 feet north of East Euclid Avenue, no parking any time.

Amherst Street, on the west side, from a point 60 feet south of East Seneca Avenue to a point 60 feet north of East Seneca Avenue, no parking any time.

Amherst Street, on the west side, from East Shawnee Avenue to a point 50 feet north thereof, no parking any time.

Amherst Street, on the east side, from East Madison Avenue to East Aurora Avenue, no parking any time.
(C62, § 30-983; O.8084; C75, C79, § 27-1002; O.9849, 10,321, 10,598; C91, § 27-1948; O.11,650, 14,518 (installed 8/21/20, 12/16/21), 16,171)

Sec. 114-2978. Amick Avenue—Twenty-seventh Street to Forty-seventh Street.

Amick Avenue, on the north side, from Twenty-seventh Street to Twenty-eighth Street, no parking any time.

Amick Avenue, on the north side, from Thirty-seventh Street to Thirty-eighth Street, no parking any time.

Amick Avenue, on the north side, from Thirty-eighth Street to Beaver Avenue, no parking any time.

Amick Avenue, on the south side, from Beaver Avenue to a point 150 feet east thereof, no parking any time.

Amick Avenue, on the north side, from Forty-seventh Street to a point 50 feet east thereof, no parking any time.

Amick Avenue, on the south side, from Forty-seventh Street to a point 920 feet east and any part of the cul-de-sac, no parking any time.
(C75, § 27-1004.01; O.9534; C79, § 27-1004.01; O.9886, 10,123; C91, § 27-1949; O.11,650, 11,688, 11,873; C00, § 114-2978; O.14,518 (installed 9/20/10), 16,171)

Sec. 114-2979. Anita Avenue—Southeast Eighth Court to dead end east.

Anita Avenue, on the south side, from Southeast Eighth Court to a point 300 feet east thereof, no parking any time.
(C79, § 27-1004.02; O.10,111; C91, § 27-1950; O.11,650)

Sec. 114-2980. Amos Avenue—Southwest Ninth Street to Southwest Seventeenth Street.

Amos Avenue, on the north side, from Southwest Ninth Street to a point 100 feet west thereof, no stopping or standing.

Amos Avenue, on the north side, from a point 100 feet west of Southwest Ninth Street to a point 100 feet east of Southwest Eleventh Street, passenger loading and unloading 7:00 a.m. to 5:00 p.m., school days.

Amos Avenue, on the north side, from Southwest Eleventh Street to a point 100 feet east thereof, no stopping or standing.

Amos Avenue, on the south side, from Southwest Ninth Street to Southwest Seventeenth Street, no parking any time.

Amos Avenue, on the north side, from Southwest Thirteenth Street to a point 50 feet west thereof, no parking any time.
(C62, § 30-986; O.8084, 8361; C75, C79, § 27-1005; O.9685, 10,018; C85, § 27-1005; O.10,767, 11,126; C91, § 27-1951; O.11,650, 13,193)

Sec. 114-2981. Ankeny Avenue—East Twentieth Street to East Twenty-second Street.

Ankeny Avenue, on the north side, from Avenue Frederick M. Hubbell to East Twenty-second Street, no parking any time.

Ankeny Avenue, on the south side, from East Twentieth Street to a point 75 feet east thereof, no parking any time.
(C75, § 27-1005.01; O.9332; C79, § 27-1005.01; O.10,123; C91, § 27-1952; O.11,650)

Sec. 114-2982. Arapahoe Drive—Southwest Thirty-fifth Street to Thirty-seventh Street.

Arapahoe Drive, on the south side, from Southwest Thirty-fifth Street to Southwest Thirty-seventh Street, no parking any time.
(C79, § 27-1005.02; O.9849; C91, § 27-1953; O.11,650)

Sec. 114-2983. Ardmore Road—Thirty-sixth Place to Aurora Avenue.

Ardmore Road, on the east side, from Thirty-sixth Place to Aurora Avenue, no parking any time.
(C79, § 27-1005.03; O.9849; C91, § 27-1954; O.11,650)

Sec. 114-2984. Arlington Avenue—Orchard Avenue to Sixth Avenue.

Arlington Avenue, on the east side, from Orchard Avenue to Goode Street, no parking any time.

Arlington Avenue, on the west side from Clark Street to College Avenue, no parking any time.

Arlington Avenue, on the north side, from Franklin Avenue to Sixth Avenue, no parking any time.

Arlington Avenue, on the west side, from Franklin Avenue to a point 100 feet north thereof, no parking any time.

Arlington Avenue, on the south side, from Sixth Avenue to a point 100 feet west thereof, no parking any time.
(C62, § 30-987; O.8084; C75, C79, § 27-1006; O.10,402; C85, § 27-1006; O.10,747; C91, § 27-1955; O.11,650, 11,688)

Sec. 114-2985. Army Post Road—South Union Street to Southwest Ninth Street.

Army Post Road, on both sides, from South Union Street to Southwest Ninth Street, no parking any time.
(C62, § 30-988; O.8084; C75, C79, § 27-1007; C91, § 27-1956; O.11,650)

Sec. 114-2986. Army Post Road—Southwest Ninth Street to Southwest Fourteenth Street.

Army Post Road, on both sides, from Southwest Ninth Street to Southwest Fourteenth Street, no parking any time.
(C62, § 30-989; O.8084; C75, C79, § 27-1008; C91, § 27-1957; O.11,650)

Sec. 114-2987. Army Post Road—Southwest Fourteenth Street to Fleur Drive.

Army Post Road, on both sides, from Southwest Fourteenth Street to Fleur Drive, no parking any time.
(C62, § 30-990; O.8084; C75, C79, § 27-1009; C91, § 27-1958; O.11,650)

Sec. 114-2988. Army Post Road—Fleur Drive to west city limits.

Army Post Road, on both sides, from Fleur Drive to Iowa Highway 28, no parking any time.
(C62, § 30-991; O.8084; C75, C79, § 27-1010; C91, § 27-1959; O.11,650, 13,643, 14,437, 15,559)

Sec. 114-2989. East Army Post Road—South Union Street to Southeast Fifth Street.

East Army Post Road, on both sides, from South Union Street to Southeast Fifth Street, no parking any time.
(C62, § 30-992; O.8084; C75, C79, § 27-1012; C91, § 27-1960; O.11,650)

Sec. 114-2990. East Army Post Road—Southeast Fifth Street to Southeast Fourteenth Street.

East Army Post Road, on both sides, from Southeast Fifth Street to Southeast Fourteenth Street, no parking any time.
(C62, § 30-993; O.8084; C75, C79, § 27-1013; C91, § 27-1961; O.11,650)

Sec. 114-2991. East Army Post Road—Southeast Fourteenth Street to east city limits.

East Army Post Road, on both sides, from Southeast Fourteenth Street to east city limits, no parking any time.
(C62, § 30-994; O.8084; C75, C79, § 27-1014; C91, § 27-1962; O.11,650)

Sec. 114-2992. Arnolds Road—Twenty-sixth Street to Thirtieth Street.

Arnolds Road, on the north side, from Twenty-sixth Street to Thirtieth Street, no parking any time.

Arnolds Road, on the south side, from Thirtieth Street to a point 125 feet east thereof, no parking any time.
(C62, § 30-995; O.8084; C75, C79, § 27-1015; O.9813, 10,008; C91, § 27-1963; O.11,650, 11,871)

Sec. 114-2993. Arthur Avenue—First Street to east city limits.

Arthur Avenue, on the north side, from First Street to a point 75 feet east of East Fourteenth Street, no parking any time.

Arthur Avenue, on the south side, from a point 50 feet west of Amherst Street to a point 130 feet east of Amherst Street, no parking any time.

Arthur Avenue, on the south side, from East Ninth Street to a point 50 feet west thereof, no parking any time.

Arthur Avenue, on the south side, from a point 50 feet west of East Eleventh Street to a point 50 feet east of East Eleventh Street, no parking any time.

Arthur Avenue, on the south side, from East Fourteenth Street to a point 75 feet west thereof, no parking any time.

Arthur Avenue, on the south side, from East Fourteenth Street to Glenbrook Drive, no parking any time.

Arthur Avenue, on the north side, from Glenbrook Drive to a point 50 feet west thereof, no parking any time.

Arthur Avenue, on the south side, from East Twenty-third Street to East Twenty-fourth Street, no parking any time.

Arthur Avenue, on the north side, from Lay Street to Farwell Road, no parking any time.

Arthur Avenue, on the south side, from East Twenty-fifth Street to a point 50 feet east thereof, no parking any time.

Arthur Avenue, on the south side, from a point 50 feet west of Richland Avenue to a point 60 feet east of Richland Avenue, no parking any time.

Arthur Avenue, on the north side, from a point 130 feet west of Farwell Road and any part of the cul-de-sac to Reynolds Lane, no parking any time.

Arthur Avenue, on the south side, from Avenue Frederick M. Hubbell to East Twenty-ninth Street, no parking any time.

Arthur Avenue, on the north side, from East Thirty-fourth Street to East Thirty-fifth Street, no parking any time.

Arthur Avenue, on the south side, from East Thirty-fourth Street to a point 50 feet east thereof, no parking any time.

Arthur Avenue, on the south side, from East Thirty-sixth Street to East Thirty-seventh Street, no parking any time.

Arthur Avenue, on the north side, from East Forty-second Street to east city limits, no parking any time.

Arthur Avenue, on the south side, from East Forty-second Street to a point 50 feet east thereof, no parking any time.
(C62, § 30-996; O.8084, 8152; C75, § 27-1016; O.9343; C79, § 27-1016; O.9685, 9849, 10,123, 10,207, 10,222, 10,278; C91, § 27-1964; O.11,650; C00, § 114-2993; O.13,948, 14,053, 14,518 (installed 11/24/14, 1/8/18), 14,753, 14,987, 16,171, 16,393)

Sec. 114-2994. Ascension Street—Fifth Avenue to Fourteenth Place.

Ascension Street, on both sides, from Sixth Avenue to Seventh Street, no parking any time.

Ascension Street, on the south side, from Twelfth Street east to and including the cul-de-sac, no parking any time.

Ascension Street, on the south side, from Thirteenth Street to Fourteenth Place, no parking any time.
(C62, § 30-997; O.8084; C75, C79, § 27-1017; C91, § 27-1965; O.11,650, 14,458)

Sec. 114-2995. Ashby Avenue—Dead end east of Twenty-sixth Street to Forty-fourth Street.

Ashby Avenue, on the south side, from Twenty-sixth Street to a point 500 feet west of Twenty-sixth Place, no parking any time.

Ashby Avenue, on the south side, from Fortieth Place to a point 380 feet east thereof, no parking any time.

Ashby Avenue, on the north side, from Fortieth Place to Beaver Avenue, no parking any time.

Ashby Avenue, on the north side, from Beaver Avenue to Forty-fourth Street, no parking any time.
(C62, § 30-997.01; O.8144, 8484; C75, C79, § 27-1018; O.9686, 9886, 10,077, 10,123; C91, § 27-1966; O.11,650)

Sec. 114-2996. Astor Street—East Vine Street to Dean Avenue.

Astor Street, on the west side, from East Vine Street to Dean Avenue, no parking any time.
(C75, § 27-1018.01; O.8970; C79, § 27-1018.01; O.10,123; C91, § 27-1967; O.11,650, 15,466, 16,462)

Sec. 114-2996.05. Southeast Astor Street—East Vine Street to the dead end south of East Vine Street.

Southeast Astor Street, on the west side, from East Vine Street to and including the dead end south of East Vine Street, no parking any time.
(O.16,462)

Sec. 114-2997. Atkins Street—Sixteenth Street to Twenty-first Street.

Atkins Street, on both sides, from Sixteenth Street to Seventeenth Street, no parking any time.

Atkins Street, on the north side, from a point 50 feet east of Nineteenth Street to Nineteenth Street, no parking any time.

Atkins Street, on the south side, from Nineteenth Street to Twenty-first Street, no parking any time.
(C62, § 30-998; O.8084; C75, C79, § 27-1019; O.10,123; C91, § 27-1968; O.11,650, 14,518 (installed 10/09/20), 16,171)

Sec. 114-2998. Aurora Avenue—First Street to Lower Beaver Road.

Aurora Avenue, on the south side, from First Street to Twelfth Street, no parking any time.

Aurora Avenue, on the north side, from Lower Beaver Road to a point 60 feet east thereof, no parking any time.

Aurora Avenue, on the north side, from Twenty-seventh Street to a point 450 feet east thereof, no parking any time.

Aurora Avenue, on the south side, from Twenty-seventh Street to Lower Beaver Road, no parking any time.
(C75, § 27-1019.01; O.9027, 9339; C79, § 27-1019.01; O.9849; C91, § 27-1969; O.11,650; C00, § 114-2998; O.14,518 (installed 5/22/12), 16,171)

Sec. 114-2999. Aurora Avenue—Lower Beaver Road to west city limits.

Aurora Avenue, on the north side, from Lower Beaver Road to a point 60 feet west thereof, no parking any time.

Aurora Avenue, on the south side, from Lower Beaver Road to Forty-third Street, no parking any time.

Aurora Avenue, on the north side, from a point 50 feet east of Fortieth Street to a point 50 feet west of Fortieth Street, no parking any time.

Aurora Avenue, on the north side, from Beaver Avenue to Fifty-first Street, no parking any times.

Aurora Avenue, on the south side, from Beaver Avenue to a point 170 feet west of Forty-seventh Street, no parking any time.

Aurora Avenue, on the south side, from a point 170 feet west of Forty-seventh Street to a point 500 feet west thereof, school bus loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Aurora Avenue, on the south side, from a point 670 feet west of Forty-seventh Steet to the west city limits, no parking anytime.

Aurora Avenue, on the north side, from Fifty-fifth Street to Merle Hay Road, no parking anytime.
(C62, § 30-999; O.8084, 8124, 8268; C75, § 27-1020; O.9269; C79, § 27-1020; O.9629, 9719, 10,434; C91, § 27-1970; O.11,650, 14,047, 14,518 (installed 1/25/17, 7/26/18), 14,634, 16,171, 16,397)

Sec. 114-3000. East Aurora Avenue—First Street to Northeast Forty-eighth Street.

East Aurora Avenue, on the south side, from First Street to a point 750 feet east of Dixon Street, no parking any time.

East Aurora Avenue, on the north side, from East Tenth Street to East Fourteenth Street, no parking any time.

East Aurora Avenue, on the north side, from East Twenty-third Street to East Twenty-fourth Court, no parking any time.

East Aurora Avenue, on the south side, from East Twenty-fifth Street to Colfax Avenue, no parking any time.

East Aurora Avenue, on the north side from East Forty-sixth Street to Northeast Forty-eighth Street, no parking any time.
(C62, § 30-1000; O.8084; C75, C79, § 27-1021; O.9685, 9849, 9909, 10,067, 10,111, 10,598; C85, § 27-1021; O.11,063; C91, § 27-1971; O.11,650, 14,905, 15,577, 15,934)

Sec. 114-3001. Avalon Road—Chautauqua Parkway to Sixteenth Street.

Avalon Road, on the west side, from Chautauqua Parkway to Burlington Terrace, no parking any time.
(C79, § 27-1021.01; O.10,123; C91, § 27-1972; O.11,650)

Sec. 114-3002. Avenue Frederick M. Hubbell—East Grand Avenue to northeast city limits.

Avenue Frederick M. Hubbell, on both sides, from East Eighteenth Street to Northeast Forty-third Court, no parking any time.
(C62, § 30-1001; O.8084; C75, C79, § 27-1022; C91, § 27-1973; O.11,650, 14,905)

Sec. 114-3003. Bancroft Street—Southwest Ninth Street to Hillside Avenue.

Bancroft Street, on the north side, from Southwest Ninth Street to a point 50 feet east thereof, no parking any time.

Bancroft Street, on the south side, from Southwest Ninth Street to Courtland Drive, no parking any time.
(C62, § 30-1002; O.8084; C75, C79, § 27-1023; O.10,598; C91, § 27-1974; O.11,650)

Sec. 114-3003.1. Bay View Court—East Marion Street to dead end.

Bay View Court, on the east side, from East Marion Street south to the dead end, no parking any time.
(O.13,954)

Sec. 114-3004. Beaver Avenue—Forest Avenue to Franklin Avenue.

Beaver Avenue, on the west side, from Forest Avenue to a point 350 feet southeast of Forty-first Street, no parking 7:00 a.m. to 9:00 a.m., Mondays through Saturdays.

Beaver Avenue, on the east side, from Clark Street to Witmer Parkway, no parking any time.

Beaver Avenue, on the east side, from Thirty-seventh Street to a point 50 feet south, no parking any time.

Beaver Avenue, on the east side, from thirty-seventh Street to a point 50 feet north, no parking any time.

Beaver Avenue, on the west side, from Franklin Avenue to a point 350 feet southeast of Forty-first Street, no parking any time.

Beaver Avenue, on the east side, from Franklin Avenue to a point 580 feet southeast thereof, no parking any time.
(C62, § 30-1003; O.8084, 8738; C75, § 27-1024; O.9593; C79, § 27-1024; C91, § 27-1975; O.11,650, 14,396)

Sec. 114-3005. Beaver Avenue—Franklin Avenue to Urbandale Avenue.

Beaver Avenue, on both sides, from Franklin Avenue to Holcomb Avenue, no parking any time.

Beaver Avenue, on the east side, from Holcomb Avenue to Sheridan Avenue, two-hour parking 9:00 a.m. to 4:00 p.m.

Beaver Avenue, on the east side, from Sheridan Avenue to a point 75 feet north thereof, no parking any time.

Beaver Avenue, on the west side, from Sheridan Avenue to a point 35 feet north thereof, no parking any time.

Beaver Avenue, on the east side, from a point 75 feet north of Sheridan Avenue to a point 95 feet south of Urbandale Avenue, two-hour parking 9:00 a.m. to 4:00 p.m.

Beaver Avenue, on the east side, from Urbandale Avenue to a point 95 feet south thereof, no parking any time.

Beaver Avenue, on the west side, from Urbandale Avenue to a point 70 feet south thereof, no parking any time.

Beaver Avenue, on the west side, from Holcomb Avenue to a point 80 feet south of Beavercrest Drive, two-hour parking 9:00 a.m. to 4:00 p.m.

Beaver Avenue, on the west side, from a point 80 feet south of Beavercrest Drive to a point 65 feet north of Beavercrest Drive, no parking any time.

Beaver Avenue, on the west side, from a point 65 feet north of Beavercrest Drive to a point 95 feet south of Urbandale Avenue, two-hour parking 9:00 a.m. to 4:00 p.m.
(C62, § 30-1004; O.8084, 8851; C75, § 27-1025; O.9405; C79, § 27-1024; C85, § 27-1025; O.11,029; C91, § 27-1976; O.11,650, 13,707, 13,756; C00, § 114-3005; O.14,518 (installed 11/17/10), 16,171, 16,174)

Sec. 114-3006. Beaver Avenue—Urbandale Avenue to Douglas Avenue.

Beaver Avenue, on the east side, from Urbandale Avenue to Fagan Drive, no parking any time.

Beaver Avenue, on the west side, from Urbandale Avenue to Douglas Avenue, no parking any time.

Beaver Avenue, on the east side, from Fagan Drive to a point 50 feet south of Adams, no parking 1:00 p.m. Sunday through 1:00 a.m. the following Sunday.

Beaver Avenue, on the east side, from a point 200 feet north of Adams Avenue to a point 350 feet north thereof, bus loading and unloading, 7:00 a.m. to 5:00 p.m., school days, parking allowed from 1:00 a.m. Sunday to 1:00 p.m. Sunday, no parking at all other times.

Beaver Avenue, on the east side, from a point 50 feet south of Adams Avenue to a point 200 feet north of Adams Avenue, no parking any time.

Beaver Avenue, the east side, from a point 550 feet north of Adams to Douglas Avenue, no parking any time.
(C62, § 30-1005; O.8084, 8097, 8893; C75, § 27-1026; O.9190, 9405; C79, § 27-1026; O.10,582; C85, § 27-1026; O.10,747, 10,885; C91, § 27-1977; O.11,650, 13,707)

Sec. 114-3007. Beaver Avenue—Douglas Avenue to north city limits.

Beaver Avenue, on both sides, from Douglas Avenue to the north city limits, no parking any time.
(C62, § 30-1006; O.8084; C75, C79, § 27-1027; O.10,257; C91, § 27-1978; O.11,650, 13,501, 13,707, 15,207)

Sec. 114-3008. Beavercrest Drive—Beaver Avenue to Kenway Drive.

Beavercrest Drive, on the north side, from Beaver Avenue to a point 75 feet west thereof, no parking any time.

Beavercrest Drive, on the south side, from Beaver Avenue to a point 50 feet west of Forty-fourth Street, no parking any time.

Beavercrest Drive, on the north side, from Forty-fourth Street to Forty-eighth Street, no parking any time.

Beavercreset Drive, on the south side, from Forty-eighth Street to a point 50 feet east thereof, no parking any time.
(C62, § 30-1007; O.8084; C75, C79, § 27-1028; O.9886; C91, § 27-1979; O.11,650, 11,688, 16,171)

Sec. 114-3009. Beckwith Street—Fifth Avenue to Eighth Street.

Beckwith Street, on the north side, from Fifth Avenue to a point 50 feet west thereof, no parking any time.

Beckwith Street, on the south side, from Fifth Avenue to Eighth Street, no parking any time.

Beckwith Street, on the north side, from a point 75 feet east of Sixth Avenue to a point 75 feet west of Sixth Avenue, no parking any time.
(C62, § 30-1008; O.8084; C75, C79, § 27-1029; O.10,402, 10,513; C91, § 27-1980; O.11,650, 11,810; C00, § 114-3009; O.14,518 (installed 12/4/15), 16,171)

Sec. 114-3010. Bel-Aire Road—Sawyers Drive to dead end west of Fifty-first Street.

Bel-Aire Road, on the north side, from Sawyers Drive to Lower Beaver Road, no parking any time.

Bel-Aire Road, on the south side, from Sawyers Drive to a point 120 feet west thereof, no parking any time.

Bel-Aire Road, on the south side, from Lower Beaver Road to a point 50 feet east thereof, no parking any time.

Bel-Aire Road, on the south side, from Lower Beaver Road, to Fortieth Street, no parking any time.

Bel-Aire Road, on the north side, from Fortieth Street to a point 490 feet east thereof, no parking 7:00 a.m. to 5:00 p.m., Monday through Friday, bus loading and unloading.

Bel-Aire Road, on the north side, from Beaver Avenue to a point 150 feet west thereof, no parking any time.

Bel-Aire Road, on the north side, from a point 50 feet east of Crestmoor Drive to a point 50 feet west of Crestmoor Drive, no parking any time.

Bel-Aire Road, on the north side, from a point 50 feet east of Forty-ninth Street to a point 50 feet west of Forty-ninth Street, no parking any time.

Bel-Aire Road, on the south side, from Beaver Avenue to Fifty-first Street, no parking any time.

Bel-Aire Road, on the north side, from Fifty-first Street to a point 300 feet west thereof, and on any part of the cul-de-sac, no parking any time.
(C62, § 30-1009; O.8084; C75, § 27-1030; O.9513; C79, § 27-1030; O.9685, 9704, 9855, 10,018, 10,323; C91, § 27-1981; O.11,650, 13,760, 14,518 (installed 11/29/11), 14,634, 14,833, 16,171)

Sec. 114-3011. Bell Avenue—South Union Street to Southwest Ninth Street.

Bell Avenue, on the north side, from South Union Street to Southwest Ninth Street, no parking any time.

Bell Avenue, on the south side, from South Union Street to a point 50 feet west thereof, no parking any time.

Bell Avenue, on the south side, from a point 50 feet west of South Union Street to a point 290 feet west thereof, no parking 7:00 a.m. to 6:00 p.m.

Bell Avenue, on the south side, from a point 575 feet west of South Union Street to a point 250 feet west thereof, no parking any time.

Bell Avenue, on the south side, from Southwest Seventh Street to a point 200 feet east of Southwest Ninth Street, no parking 7:00 a.m. to 5:00 p.m., school days.

Bell Avenue, on the south side, from Southwest Ninth Street to a point 200 feet east thereof, no parking any time.
(C62, § 30-1010; O.8084; C75, § 27-1031; O.9330, 9336, 9503; C79, § 27-1031; O.10,441; C91, § 27-1982; O.11,650, 12,079, 13,529)

Sec. 114-3012. Bell Avenue—Southwest Ninth Street to Southwest Fourteenth Street.

Bell Avenue, on the north side, from Southwest Ninth Street to Southwest Twelfth Street, no stopping or standing.

Bell Avenue, on the south side, from Southwest Ninth Street to a point 250 feet west thereof, no parking any time.

Bell Avenue, on the south side, from a point 250 feet west of Southwest Ninth Street to a point 50 feet east of Southwest Twelfth Street, school passenger loading and unloading, 7:00 a.m. to 5:00 p.m. school days.

Bell Avenue, on the south side, from a point 50 feet east of Southwest Twelfth Street to Southwest Twelfth Street, no parking any time.

Bell Avenue, on the north side, from Southwest Twelfth Street to Heliotrope Drive, no parking any time.

Bell Avenue, on the south side, from Southwest Twelfth Street to a point 50 feet west thereof, no parking any time.
(C62, § 30-1011; O.8084, 8293, 8905, 8925; C75, § 27-1032; O.8979; C79, § 27-1032; O.10,441; C91, § 27-1983; O.11,650, 14,518 (installed 1/31/12), 15,807, 16,171)

Sec. 114-3013. Bell Avenue—Southwest Fourteenth Street to Fleur Drive.

Bell Avenue, on the north side, from Thomas Beck Road to a point 1150 feet east thereof, no parking any time.

Bell Avenue, on both sides, from Thomas Beck Road to Fleur Drive, no parking any time.
(C62, § 30-1012; O.8084; C75, C79, § 27-1033; O.10,111; C91, § 27-1984; O.11,650)

Sec. 114-3014. Bell Avenue—Fleur Drive to Southwest Thirtieth Street.

Bell Avenue, on both sides, from Fleur Drive to Southwest Thirtieth Street, no parking any time.
(C62, § 30-1013; O.8084; C75, C79, § 27-1034; C91, § 27-1985; O.11,650)

Sec. 114-3015. East Bell Avenue—South Union Street to King Avenue.

East Bell Avenue, on both sides, from South Union Street to Indianola Avenue, no parking any time.

East Bell Avenue, on the south side, from Indianola Avenue to Southeast Fifth Street, no parking any time.

East Bell Avenue, on the south side, from Southeast Fifth Street to a point 50 feet east thereof, no parking any time.

East Bell Avenue, on the north side, from Southeast Fifth Street to and including the dead end east of Southeast Seventeenth Street, no parking any time.

East Bell Avenue, on the south side, from a point 50 feet west of Southeast Sixth Street to Southeast Seventh Street, no parking any time.

East Bell Avenue, on the south side, from Southeast Eighth Street to a point 150 feet east of Southeast Fourteenth Street, no parking any time.

East Bell Avenue, on the north side, from Southeast Nineteenth Street to King Avenue, no parking any time.
(C62, § 30-1013.01; O.8615; C75, C79, § 27-1034.01; O.9820, 10,111, 10,598, 10,731; C91, § 27-1986; O.11,650, 13,997, 14,322, 14,348, 15,790, 16,061)

Sec. 114-3016. Belmar Drive—Leyden Avenue to East Douglas Avenue.

Belmar Drive, on the west side, from Leyden Avenue to East Douglas Avenue, no parking any time.

Belmar Drive, on the east side, from East Douglas Avenue to a point 50 feet south thereof, no parking any time.
(C62, § 30-1014; O.8084; C75, § 27-1035; O.9234; C79, § 27-1035; C91, § 27-1987; O.11,650)

Sec. 114-3017. Bennett Avenue—Martin Luther King Jr Parkway to Thirtieth Street.

Bennett Avenue, on the south side, from Martin Luther King Jr Parkway to Twenty-fourth Street, no parking any time.

Bennett Avenue, on the south side, from Twenty-fourth Street to a point 50 feet west thereof, no parking any time.

Bennett Avenue, on the north side, from Twenty-fourth Street to a point 320 feet west thereof, no parking any time.

Bennett Avenue, on the north side, from Twenty-seventh Place to Thirtieth Street, no parking any time.

Bennett Avenue, on the south side, from a point 50 feet east of Thirtieth Street to Thirtieth Street, no parking any time.
(C75, § 27-1035.01; O.9445, 9471; C79, § 27-1035.01; O.10,123; C91, § 27-1988; O.11,650, 11,935, 13,474, 16,393)

Sec. 114-3017.1. Bent Ridge Court—Grand River Drive to Hartford Avenue.

Bent Ridge Court, on the north side, from Grand River Drive to and including the cul-de-sac east thereof, no parking any time.
(O.14,226)

Sec. 114-3017.3. Reserved.

Editor's note—Ord. No. 15,881, § 1, adopted April 20, 2020, repealed § 114-3017.3, which pertained to Bill Reichardt Way—Southeast Twenty-Second Street to dead end west and derived from Ord. No. 15,431.

Sec. 114-3018. Birch Lane—Southwest Twelfth Street to Southwest Fourteenth Street.

Birch Lane, on the north side, from Southwest Twelfth Street to Southwest Fourteenth Street, no parking any time.
(C79, § 27-1035.01; O.9686; C91, § 27-1989; O.11,650)

Sec. 114-3019. Bloomfield Road—Southeast Fourteenth Street to dead end east of Indianola Avenue.

Bloomfield Road, on both sides, from Southeast Fourteenth Street to dead end east of Indianola Avenue, no parking any time.
(C79, § 27-1035.03; O.9685; C85, § 27-1035.03; O.11,302; C91, § 27-1990; O.11,650)

Sec. 114-3020. Bolton Drive—Thirty-seventh Street to dead end east.

Bolton Drive, on the south side, from Thirty-seventh Street to a point 300 feet east thereof, no parking any time.
(C79, § 27-1035.04; O.9849; C91, § 27-1991; O.11,650)

Sec. 114-3021. Boston Avenue—Second Avenue to west city limits.

Boston Avenue, on the south side, from Second Avenue to a point 140 feet west thereof, no parking Monday through Saturday.

Boston Avenue, on the north side, from Second Avenue to Sixth Avenue, no parking any time.

Boston Avenue, on the south side, from Sixth Avenue to a point 150 feet east thereof, no parking any time.

Boston Avenue, on the south side, from Sixth Avenue to a point 50 feet west thereof, no parking any time.

Boston Avenue, on the north side, from Sixth Avenue to Lake Avenue, no parking any time.

Boston Avenue, on the north side, from Martin Luther King Jr Parkway to Thirtieth Street, no parking any time.

Boston Avenue, on the south side, from Thirtieth Street to a point 100 feet east thereof, no parking any time.

Boston Avenue, on the north side, from Thirty-eighth Street to a point 405 feet west thereof, no parking any time.

Boston Avenue, on the south side, from Merle Hay Road to the west city limits, no parking any time.

Boston Avenue, on the north side, from Merle Hay Road to a point 35 feet west thereof, no parking any time.

Boston Avenue, on the north side, from Fifty-ninth Street to a point 50 feet west thereof, no parking any time.

Boston Avenue, on the north side, from Sixty-second Street to a point 100 feet east thereof, no parking any time.
(C62, § 30-1015; O.8084, 8100, 8562, 8776; C75, § 27-1036; O.8994, 9004; C79, § 27-1036; O.9685, 9779, 9886; C91, § 27-1992; O.11,650, 11,884, 11,920, 11,935, 13,539)

Sec. 114-3022. Boulder Avenue—Dead end east of Southwest Seventh Street to Southwest Tenth Street.

Boulder Avenue, on the north side, from Southwest Seventh Street to Southwest Ninth Street, no stopping or standing any time.

Boulder Avenue, on the south side, from Southwest Ninth Street to a point 770 feet east thereof, no parking any time.

Boulder Avenue, on the south side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.

Boulder Avenue, on the north side, from Southwest Ninth Street to a point 530 feet west thereof, no parking any time.

Boulder Avenue, on the south side, from Southwest Tenth Street to a point 50 feet east thereof, no parking any time.
(C62, § 30-1016; O.8084, 8562; C75, C79, § 27-1037; O.10,111, 10,598; C91, § 27-1993; O.11,650, 11,908, 14,000)

Sec. 114-3023. Boulevard Place—Forty-fifth Place to Polk Boulevard.

Boulevard Place, on the south side, from Forty-fifth Place to Polk Boulevard, no parking any time.
(C62, § 30-1017; O.8084; C75, C79, § 27-1038; C91, § 27-1994; O.11,650)

Sec. 114-3024. Bowdoin Street—East Sheridan Avenue to East Aurora Avenue.

Bowdoin Street, on the east side, from East Sheridan Avenue to a point 50 feet north of East Euclid Avenue, no parking any time.

Bowdoin Street, on the west side, from a point 50 feet south of Hull Avenue to Hull Avenue, no parking any time.

Bowdoin Street, on the west side, from East Euclid Avenue to a point 50 feet south thereof, no parking any time.

Bowdoin Street, on the west side, from East Euclid Avenue to East Aurora Avenue, no parking any time.

Bowdoin Street, on the east side, from East Douglas Avenue to a point 50 feet north thereof, no parking any time.

Bowdoin Street, on the east side, from a point 50 feet south of East Madison Avenue to East Madison Avenue, no parking any time.
(C62, § 30-1018; O.8084; C75, § 27-1039; O.9032; C79, § 27-1039; O.10,321; C91, § 27-1995; O.11,650; C00, § 114-3024; O.14,518 (installed 4/1/22), 16,171, 16,215)

Sec. 114-3025. Boyd Street—Bowdoin Street to the east city limits.

Boyd Street, on the north side, from Bowdoin Street to East Ninth Street, no parking any time.

Boyd Street, on the south side, from North Union Street to East Ninth Street, no parking 7:00 a.m. to 6:00 p.m., Monday through Friday.

Boyd Street, on the south side, from East Ninth Street to East Fourteenth Street, no parking any time.

Boyd Street, on the north side, from a point 75 feet east of East Thirteenth Street to a point 75 feet west of East Thirteenth Street, no parking any time.

Boyd Street, on the north side, from a point 50 feet west of East Fourteenth Street to East Fourteenth Street, no parking any time.

Boyd Street, on the south side, from East Twenty-First Street to a point 140 feet east of East Twenty-second Court, no parking any time.

Boyd Street, on the south side, from East Twenty-fifth Street to East Twenty-ninth Street, no parking any time.

Boyd Street, on the north side, from East Twenty-fifth Street to a point 50 feet east thereof, no parking any time.

Boyd Street, on the south side, from East Fortieth Court to the east city limits, no parking any time.
(C62, § 30-1019; O.8084, 8926; C75, § 27-1040; O.9336, 9379, 9405; C79, § 27-1040; O.9685, 9747, 10,123, 10,359, 10,598; C85, § 27-1040; O.10,933; C91, § 27-1996; O.11,650, 14,339, 14,518 (installed 8/15/18), 16,171, 16,194)

Sec. 114-3026. Bradway Place—Harwood Drive to Pleasant Street.

Bradway Place, on the east side, from Harwood Drive to Pleasant Street, no parking any time.
(C62, § 30-1020; O.8084; C75, C79, § 27-1041; O.10,575; C91, § 27-1997; O.11,650)

Sec. 114-3027. Brattleboro Avenue—Twenty-eighth Street to Fifty-seventh Street.

Brattleboro Avenue, on the north side, from Twenty-eighth Street to Thirty-first Street, no parking any time.

Brattleboro Avenue, on the south side, from Twenty-eighth Street to a point 50 feet west thereof, no parking any time.

Brattleboro Avenue, on the south side, from Twenty-ninth Street to a point 25 feet east thereof, no parking any time.

Brattleboro Avenue, on the south side, from Twenty-ninth Street to a point 40 feet west thereof, no parking any time.

Brattleboro Avenue, on the south side, from Thirty-first Street to a point 40 feet east thereof, no parking any time.

Brattleboro Avenue, on the south side, from Thirty-third Street to a point 100 feet west thereof, no parking any time.

Brattleboro Avenue, on the north side, from Fifty-sixth Street to Fifty-seventh Street, no parking any time.
(C62, § 30-1021; O.8084, 8305; C75, C79, § 27-1042; O.9628, 9685, 10,476; C91, § 27-1998; O.11,650, 13,415, 16,418)

Sec. 114-3028. Brentwood Drive—River Oaks Drive to dead end west.

Brentwood Drive, on the north side, from River Oaks Drive to a point 700 feet west thereof and any part of the cul-de-sac, no parking any time.
(C79, § 27-1042.01; O.9849; C91, § 27-1699; O.11,650)

Sec. 114-3029. Briarcliff Drive—East Madison Avenue to East Forty-second Street.

Briarcliff Drive, on the south side, from East Madison Avenue to East Forty-second Street, no parking any time.
(C62, § 30-1021.01; O.8098; C75, C79, § 27-1043; C91, § 27-2000; O.11,650)

Sec. 114-3030. Bridal Row—Fifteenth Street to Pleasant Street.

Bridal Row, on the west side, from Fifteenth Street to Pleasant Street, no parking any time.
(C85, § 27-1043.005; O.11,247; C91, § 27-2001; O.11,650)

Sec. 114-3031. Brinkwood Road—Lawnwoods Drive to Forty-sixth Street.

Brinkwood Road, on the south side, from Lawnwoods Drive to Hillcrest Drive, no parking any time.

Brinkwood Road, on the north side, from Beaver Avenue to Forty-sixth Street, no parking any time.
(C79, § 27-1043.01; O.9849; C91, § 27-2002; O.11,650)

Sec. 114-3031.05. Brockway Drive—Fayrdale Drive to dead end.

Brockway Drive, on the south side, from Fayrdale Drive to dead end, no parking any time.
(O.14,322)

Sec. 114-3032. Broad Street—South Union Street to Southwest Fourteenth Street.

Broad Street, on the south side, from South Union Street to Southwest Ninth Street, no parking any time.

Broad Street, on the north side, from a point 225 feet west of South Union Street to a point 500 feet west thereof, no parking any time.

Broad Street, on the north side, from a point 185 feet east of Southwest Fifth Street to a point 135 feet west of Southwest Fifth Street, no parking any time.

Broad Street, on the north side, from Southwest Ninth Street to a point 50 feet east thereof, no parking any time.

Broad Street, on the south side, from a point 400 feet east of Southwest Twelfth Street to Southwest Fourteenth Street, no parking any time.
(C62, § 30-1022; O.8084; C75, C79, § 27-1044; O.10,111, 10,598; C91, § 27-2003; O.11,650, 16,241, 16,462)

Sec. 114-3033. East Broad Street—South Union Street to Southeast Tenth Street.

East Broad Street, on the south side, from South Union Street to Southeast Seventh Street, no parking any time.

East Broad Street, on the south side, from Southeast Eighth Street to Southeast Eighth Court, no parking any time.

East Broad Street, on the north side, from Southeast Fifth Street to a point 50 feet east thereof, no parking any time.

East Broad Street, on the north side, from Southeast Eighth Court to Southeast Tenth Street, no parking any time.

East Broad Street, on the south side, from Southeast Ninth Street to a point 190 feet west thereof, no parking any time.
(C62, § 30-1023; O.8084; C75, § 27-1045; O.9614; C79, § 27-1045; O.9672, 10,111; C91, § 27-2004; O.11,650; C00, § 114-3033; O.14,057, 14,518 (installed 4/6/18), 15,657, 16,017, 16,171)

Sec. 114-3033.0002. East Broadway Avenue—West city limits to east city limits.

East Broadway Avenue, on both sides, from the west city limits to the east city limits, no parking anytime.
(O.16,380)

Sec. 114-3033.0003. East Broadway Avenue/Hubbell Avenue North Frontage Road—East Broadway Avenue to Hubbell Avenue.

East Broadway Avenue/Hubbell Avenue North Frontage Road, on the north side, from East Broadway Avenue to a point 160 feet east thereof, no parking any time.

East Broadway Avenue/Hubbell Avenue North Frontage Road, on the north side, from a point 470 feet east of East Broadway Avenue to Hubbell Avenue, no parking any time.
(O.16,394)

Sec. 114-3033.0005. Brook Landing Circle—Cul-de-sac north of Brook Landing Drive to East Fifty-fourth Court.

Brook Landing Circle, on the west and south sides, from and including the cul-de-sac north of Brook Landing Drive to East Fifty-fourth Court, no parking any time.
(O.15,590, 15,876)

Sec. 114-3033.0006. Brook Landing Court—East Fifty-sixth Street to Brook View Avenue.

Brook Landing Court, on the south and west sides, from East Fifty-sixth Street to Brook View Avenue, no parking any time.
(O.15,590, 15,726, 15,876)

Sec. 114-3033.0007. Brook Landing Drive—Brook Landing Circle to East Fifty-fourth Court.

Brook Landing Drive, on the north side, from Brook Landing Circle to East Fifty-fourth Court, no parking any time.
(O.15,590, 15,876)

Sec. 114-3033.001. Brook Ridge Circle—Brook Run Drive to Dead end.

Brook Ridge Circle, on the south side, from Brook Run Drive west to and including the cul-de-sac, no parking any time.
(O.14,322)

Sec. 114-3033.01. Brook Ridge Court—East Douglas Avenue to Village Run Avenue.

Brook Ridge Court, on the west side, from East Douglas Avenue to Village Run Avenue, no parking any time.

Brook Ridge Court, on the east side, from East Douglas Avenue to a point 100 feet south thereof, no parking any time.

Brook Ridge Court, on the east side, from a point 50 feet south of Brook View Avenue to a point 50 feet north of Brook View Avenue, no parking any time.
(C00, § 114-3033.01; O.13,957, 14,322, 14,518 (installed 11/4/13, 8/26/16, 7/23/20), 16,171)

Sec. 114-3033.03. Brook Run Drive—North dead end to south dead end.

Brook Run Drive, on the east side, from the north dead end to the south dead end, no parking any time.

Brook Run Drive, on the west side, from East Douglas Avenue to a point 118 feet south thereof, no parking any time.
(C00, § 114-3033.03; O.14,322, 14,518 (installed 8/26/16), 16,171)

Sec. 114-3033.05. Brook View Avenue—Brook Ridge Court to east city limits.

Brook View Avenue, on the north side, from Brook Ridge Court to Brook Landing Court, no parking any time.

Brook View Avenue, on the south side, from Brook Ridge Court to a point 70 feet east thereof, no parking any time.

Brook View Avenue, on the south side, from Brook Landing Court to East Fifty-sixth Street, no parking any time.

Brook View Avenue, on the south and west sides, from East Fifty-sixth Street to the dead end southeast of Walnut Ridge Drive, no parking any time.

Brook View Avenue, on the north side, from East Fifty-sixth Street to a point 50 feet east thereof, no parking any time.
(C00, § 114-3033.05; O.13,957, 14,518 (installed 7/23/20), 15,590, 15,876, 16,171, 16,215)

Sec. 114-3033.09. Brook View Drive—Wisconsin Avenue to Brook Ridge Court.

Brook View Drive, on the west and north sides, from Wisconsin Avenue to Brook Ridge Court, no parking any time.

Brook View Drive, on the south side, from a point 50 feet west of East Fifty-second Street to a point 50 feet east of East Fifty-second Street, no parking any time.

Brook View Drive, on the south side, from a point 50 feet west of Brook Ridge Court to Brook Ridge Court no parking any time.
(C00, § 114-3033.09; O.13,957, 14,518 (installed 12/9/13), 15,750, 15,876, 15,992, 16,171)

Sec. 114-3034. Brown's Drive—Thirty-eighth Place to Tonawanda Drive.

Brown's Drive, on the south side, from Thirty-eighth Place to Tonawanda Drive, no parking any time.
(C79, § 27-1045.01; O.9849; C91, § 27-2005; O.11,650)

Sec. 114-3035. Reserved.

Editor's note—Ord. No. 15,242, § 1, adopted Dec. 9, 2013, repealed § 114-3035, which pertained to Browns Woods Drive and derived from Code 1991, § 27-2005.01; Ord. No. 13,363; Code 1991, § 27-2005.03.

Sec. 114-3036. Buchanan Street—East Seventh Street to East Seventeenth Street.

Buchanan Street, on the south side, from Pennsylvania Avenue to East Fifteenth Street, no parking any time.

Buchanan Street, on the north side, from Pennsylvania Avenue to East Seventh Street, no parking any time.

Buchanan Street, on the south side, from Pennsylvania Avenue to a point 100 feet west thereof, no parking any time.

Buchanan Street, on the north side, from East Thirteenth Street to a point 40 feet east thereof, no parking any time.

Buchanan Street, on the north side, from a point 50 feet west of East Fourteenth Street to a point 50 feet east of East Fourteenth Street, no parking any time.

Buchanan Street, on the north side, from a point 50 feet west of Johnson Court to a point 50 feet east of Johnson Court, no parking any time.

Buchanan Street, on the south side, from East Sixteenth Street to East Seventeenth Street, no parking any time.
(C62, § 30-1024; O.8084; C75, C79, § 27-1046; O.10,123, 10,598; C91, § 27-2006; O.11,650; C00, § 114-3036; O.14,285, 14,518 (installed 8/29/06), 16,171)

Sec. 114-3037. Bundy Street—Southwest Ninth Street to Southwest Fourteenth Street.

Bundy Street, on the north side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.

Bundy Street, on the south side, from Southwest Ninth Street to Southwest Fourteenth Street, no parking any time.

Bundy Street, on the north side, from a point 400 feet west of Southwest Eleventh Street to a point 385 feet west thereof, no parking any time.
(C62, § 30-1024.01; O.8244; C75, C79, § 27-1046.01; O.9685, 10,236, 10,598; C91, § 27-2007; O.11,650, 15,868)

Sec. 114-3038. East Bundy Avenue—Southeast Second Court to Southeast Third Street.

East Bundy Avenue, on the south side, from Southeast Second Court to Southeast Third Street, no parking any time.
(C91, § 27-2007.05; O.13,160, 13,691)

Sec. 114-3039. Burlington Terrace—Chautauqua Parkway to Sixteenth Street.

Burlington Terrace, on the south side, from the east leg of Chautauqua Parkway to Sixteenth Street, no parking any time.

Burlington Terrace, on the north side, from the west leg of Chautauqua Parkway to Sixteenth Street, no parking any time.

Burlington Terrace, on the north side, from Nash Drive to a point 50 feet east thereof, no parking any time.
(C79, § 27-1046.011; O.10,123; C91, § 27-2008; O.11,650, 14,348, 16,009)

Sec. 114-3040. Burnham Street—Southwest Ninth Street to Southwest Seventeenth Street.

Burnham Street, on the south side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.

Burnham Street, on the north side, from Southwest Ninth Street to Southwest Seventeenth Street, no parking any time.
(C62, § 30-1024.02; O.8478, 8510, 8619; C75, C79, § 27-1046.02; O.9685, 10,598; C91, § 27-2009; O.11,650)

Sec. 114-3041. Southeast Burnham Street—Southeast Second Street to Southeast Fifth Street.

Southeast Burnham Street, on the north side, from Southeast Second Street to Southeast Fifth Street, no parking any time.
(C91, § 27-2009.05; O.13,160)

Sec. 114-3042. Burson Street—East Nineteenth Street to Avenue Frederick M. Hubbell.

Burson Street, on the west side, from East Nineteenth Street to Avenue Frederick M. Hubbell, no parking any time.

Burson Street, on the east side, from Avenue Frederick M. Hubbell to a point 50 feet north thereof, no parking any time.
(C75, § 27-1046.03; O.9139, 9518; C79, § 27-1046.03; C91, § 27-2010; O.11,650)

Sec. 114-3043. California Drive—Chamberlain Avenue to Forty-third Street.

California Drive, on the east side, from Chamberlain Avenue to a point 150 feet north thereof, no parking any time.

California Drive, on the east side, from a point 150 feet north of Chamberlain Avenue to Forty-third Street, no parking 8:00 a.m. to 3:00 p.m. school days.

California Drive, on the west side, from Chamberlain Avenue to Forty-third Street, no parking any time.
(C62, § 30-1025; O.8084; C75, § 27-1047; O.9190; C79, § 27-1047; O.9886; C91, § 27-2011; O.11,650, 13,407, 14,437, 15,140, 15,753, 15,821)

Sec. 114-3044. Cambridge Street—East Sheridan Avenue to East Aurora Avenue.

Cambridge Street, on the east side, from East Sheridan Avenue to a point 75 feet north of Hull Avenue, no parking any time.

Cambridge Street, on the west side, from Sheridan Avenue to a point 50 feet north thereof, no parking any time.

Cambridge Street, on the west side, from a point 50 feet south of Hull Avenue to Tiffin Avenue, no parking any time.

Cambridge Street, on the east side, from Tiffin Avenue to East Ovid Avenue, no parking any time.

Cambridge Street, on the west side, from a point 50 feet south of East Ovid Avenue to a point 75 feet north of East Ovid Avenue, no parking any time.

Cambridge Street, on the east side, from a point 100 feet south of Euclid Avenue to Ovid Avenue, school passenger loading and unloading, 7:00 a.m. to 5:00 p.m. school days; no parking at all other times.

Cambridge Street, on the east side, from East Euclid Avenue to a point 100 feet south thereof, no stopping or standing.

Cambridge Street, on the west side, from a point 50 feet south of East Euclid Avenue to a point 300 feet south thereof, no parking 7:00 a.m. to 5:00 p.m. school days.

Cambridge Street, on the west side, from East Euclid Avenue to a point 50 feet south thereof, no parking any time.

Cambridge Street, on the east side, from East Euclid Avenue to a point 170 feet north thereof, no parking any time.

Cambridge Street, on the west side, from East Euclid Avenue to East Aurora Avenue, no parking any time.

Cambridge Street, on the east side, from East Aurora Avenue to a point 70 feet south, no parking any time.
(C62, § 30-1027; O.8084, 8453; C75, § 27-1049; O.9045, 9106, 9513; C79, § 27-1049; O.9693, 9849, 9965, 10,321; C85, § 27-1049; O.10,933; C91, § 27-2012; O.11,650, 12,052, 13,160, 13,534, 13,694, 14,025, 14,518 (installed 7/12/18), 16,171, 16,250)

Sec. 114-3045. Capitol Avenue—East Twelfth Street to East Twenty-second Street.

Capitol Avenue, on both sides, from East Fourteenth Street to a point 50 feet east thereof, no parking any time.

Capitol Avenue, on the north side, from a point 50 feet east of East Fourteenth Street to a point 50 feet west of East Fifteenth Street, two-hour parking, 9:00 a.m. to 4:00 p.m.

Capitol Avenue, on the south side, from a point 50 feet west of East Fourteenth Court to a point 30 feet east of East Fourteenth Court, no parking any time.

Capitol Avenue, on the south side, from East Fifteenth Street to a point 50 feet west thereof, no parking any time.

Capitol Avenue, on the north side, from a point 50 feet west of East Fifteenth Street to a point 50 feet east of East Fifteenth Street, no parking any time.

Capitol Avenue, on the south side, from East Fifteenth Street to a point 250 feet east thereof, passenger loading and unloading.

Capitol Avenue, on the south side, from a point 250 feet east of East Fifteenth Street to a point 150 feet east thereof, bus loading and unloading.

Capitol Avenue, on the south side, from a point 400 feet east of East Fifteenth Street to East Sixteenth Street, passenger loading and unloading.

Capitol Avenue, on both sides, from East Seventeenth Street to a point 50 feet west thereof, no parking any time.

Capitol Avenue, on both sides, from East Seventeenth Street to a point 50 feet east thereof, no parking any time.

Capitol Avenue, on the south side, from East Eighteenth Street to East Twenty-second Street, no parking any time.

Capitol Avenue, on the north side, from East Twentieth Street to a point 160 feet west thereof, no parking any time.

Capitol Avenue, on the north side, from East Twenty-First Street to a point 70 feet east thereof, no parking any time.
(C62, § 30-1028; O.8084; C75, § 27-1050; O.9234; C79, § 27-1050; O.9693, 10,123, 10,549, 10,598; C91, § 27-2013; O.11,650, 13,772; C00, § 114-3045; O.14,292, 14,518 (installed 4/21/09), 15,796, 16,171)

Sec. 114-3046. Capitol Avenue—East Twenty-second Street to East Thirtieth Street.

Capitol Avenue, on the south side, from East Twenty-second Street to East Thirtieth Street, no parking any time.

Capitol Avenue, on the north side, from a point 50 feet east of East Twenty-fifth Street to a point 50 feet west of East Twenty-fifth Street, no parking any time.

Capitol Avenue, on the north side, from East Twenty-sixth Street to a point 50 feet east thereof, passenger loading and unloading.

Capitol Avenue, on the north side, from a point 50 feet east of East Twenty-sixth Street to a point 25 feet east thereof is designated a handicapped parking space on Sunday and is subject to the same prohibition as is found in subsection 114-616(a) of this chapter.

Capitol Avenue, on the north side, from a point 50 feet east of East Twenty-eighth Street to a point 50 feet west of East Twenty-eighth Street, no parking any time.

Capitol Avenue, on the north side, from East Thirtieth Street to a point 75 feet west thereof, no parking any time.
(C62, § 30-1029; O.8084, 8166; C75, § 27-1051; O.9330; C79, § 27-1051; O.10,123, 10,582; C91, § 27-2014; O.11,650, 13,218)

Sec. 114-3047. Carlisle Road—Vandalia Road to Southeast Forty-third Street.

Carlisle Road, on both sides, from the dead end west of Southeast Forty-third Street to Southeast Forty-third Street, no parking any time.
(C79, § 27-1051.01; O.9983; C91, § 27-2015; O.11,650, 15,992)

Sec. 114-3048. Carpenter Avenue—Eleventh Street to Sixteenth Street.

Carpenter Avenue, on both sides, from Eleventh Street to Fourteenth Street, no parking any time.

Carpenter Avenue, on the north side, from Fourteenth Street to Sixteenth Street, no parking any time.

Carpenter Avenue, on the south side, from Sixteenth Street to a point 50 feet east thereof, no parking any time.
(C62, § 30-1030; O.8084; C75, C79, § 27-1052; O.10,123; C91, § 27-2016; O.11,650, 11,760)

Sec. 114-3049. Carpenter Avenue—Sixteenth Street to Twenty-third Street.

Carpenter Avenue, on the south side, from Sixteenth Street to a point 50 feet west thereof, no parking any time.

Carpenter Avenue, on the north side, from Sixteenth Street to Twenty-third Street, no parking any time.

Carpenter Avenue, on the south side, from Nineteenth Street to Martin Luther King Jr Parkway, no parking any time.

Carpenter Avenue, on the south side, from Twenty-first Street to a point 157 feet west thereof, no parking any time.

Carpenter Avenue, on the south side, from Twenty-third Street to a point 50 feet east thereof, no parking any time.
(C62, § 30-1031; O.8084; C75, § 27-1053; O.9306; C79, § 27-1053; O.10,123, 10,476, 10,731; C91, § 27-2017; O.11,650, 11,725, 11,760, 11,935)

Sec. 114-3050. Carpenter Avenue—Twenty-third Street to Twenty-eighth Street.

Carpenter Avenue, on the south side, from Twenty-third Street to a point 50 feet west thereof, no parking any time.

Carpenter Avenue, on the north side, from Twenty-third Street to Twenty-fifth Street, no parking any time.

Carpenter Avenue, on the south side, from a point 125 feet west of Twenty-fourth Street to a point 50 feet west thereof, no parking any time.

Carpenter Avenue, on the south side, from a point 175 feet west of Twenty-fourth Street to Twenty-fifth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

Carpenter Avenue, on the south side, from a point 50 feet east of Twenty-fourth Street to a point 50 feet west of Twenty-fourth Street, no parking any time.

Carpenter Avenue, on the south side, from Twenty-fifth Street to a point 20 feet east thereof, no parking any time.

Carpenter Avenue, on the south side, from Twenty-fifth Street to Twenty-seventh Street, no parking any time.

Carpenter Avenue, on the south side, from Twenty-seventh Street to point 100 feet east thereof, no parking any time.
(C62, § 30-1032; O.8084, 8539, 8595; C75, C79, § 27-1054; O.10,731; C85, § 27-1054; O.11,103, 11,225, 11,248, 11,288; C91, § 27-2018; O.11,650, 12,052, 13,193, 14,585, 14,905, 15,675)

Sec. 114-3051. Carpenter Avenue—Twenty-ninth Street to Forty-eighth Street.

Carpenter Avenue, on the north side, from Twenty-ninth Street to Thirty-first Street, no parking any time.

Carpenter Avenue, on the south side, from Twenty-ninth Street to Thirty-second Street, no parking any time.

Carpenter Avenue, on the north side, from Thirty-second Street to a point 50 feet east thereof, no parking any time.

Carpenter Avenue, on the south side, from Thirty-seventh Street to a point 25 feet west thereof, no parking any time.

Carpenter Avenue, on the north side, from Thirty-seventh Street to a point 270 feet west thereof, no parking any time.

Carpenter Avenue, on the south side, from Thirty-ninth Street to the dead end, east, no parking any time.

Carpenter Avenue, on the north side, from 3817 Carpenter Avenue east to and including the dead end, no parking 8:00 a.m. to 4:00 p.m., Fridays.

Carpenter Avenue, on the north side, from Forty-fourth Street to Forty-eighth Street, no parking any time.
(C62, § 30-1033; O.8084, 8241; C75, § 27-1055; O.9374; C79, § 27-1055; O.9886, 10,239; C91, § 27-2019; O.11,650, 14,371, 14,518 (installed 12/3/18), 16,171)

Sec. 114-3052. Carpenter Avenue—Merle Hay Road to Cummins Parkway.

Carpenter Avenue, on the south side, from Merle Hay Road to Sixtieth Street, no parking any time.

Carpenter Avenue, on the north side, from Sixtieth Street to Cummins Parkway, no parking any time.
(C62, § 30-1034; O.8084; C75, C79, § 27-1056; O.9685; C91, § 27-2020; O.11,650)

Sec. 114-3052.01. Carr Street—East Thirteenth Street to East Thirty-fourth Street.

Carr Street, on both sides, from East Thirty-second Street to East Thirty-fourth Street, no parking any time.

Carr Street, on the south side, from East Thirty-first Street to a point 60 feet west thereof, no parking any time.
(O.14,513, 14,518 (installed 5/14/09), 16,171)

Sec. 114-3053. Casady Drive—Southwest Fourteenth Street to Bell Avenue.

Casady Drive, on the east side, from Creston Avenue to a point 220 feet north thereof, no parking any time.

Casady Drive, on the south side, from Southwest Fourteenth Street to Druid Hill Drive, no parking any time.

Casady Drive, on the south side, from a point 100 feet west of Druid Hill Drive to a point 200 feet west thereof, no parking any time.

Casady Drive, on the north side, from a point 400 feet west of Creston Avenue to appoint 190 feet west thereof, no parking any time.

Casady Drive, on the north side, from Druid Hill Drive to Bell Avenue, no parking any time.

Casady Drive, on the west side, from Bell Avenue to a point 150 feet south thereof, no parking any time.
(C62, § 30-1034.01; O.8850; C75, § 27-1056.01; O.9212; C79, § 27-1056.01; O.10,111; C91, § 27-2021; O.11,650, 13,130, 13,369, 14,518 (installed 7/10/08), 15,328, 16,171)

Sec. 114-3054. Carrie Avenue—Southeast Tenth Street to Wakonda Parkway.

Carrie Avenue, on the north side, from Southwest Tenth Street to Southwest Fourteenth Street, no parking any time.

Carrie Avenue, on the south side, from a point 60 feet east of Southwest Fourteenth Street to Wakonda Parkway, no parking any time.
(C79, § 27-1056.02; O.9886; C91, § 27-2022; O.11,650; C00, § 114-3054; O.14,518 (installed 4/18/19), 16,171)

Sec. 114-3055. Caulder Avenue—Southwest Second Street to dead end west of Southwest Forty-fourth Place.

Caulder Avenue, on the south side, from Southwest Second Street to a point 300 feet west thereof, no parking any time.

Caulder Avenue, on the south side, from Southwest Fifth Street to a point 50 feet west thereof, no parking any time.

Caulder Avenue, on the north side, from Southwest Fifth Street to Southwest Ninth Street, no parking any time.

Caulder Avenue, on the south side, from a point 50 feet east of Southwest Eighth Street to a point 50 feet west of Southwest Eighth Street, no parking any time.

Caulder Avenue, on the north side, from Southwest Ninth Street to a point 80 feet west thereof, no parking any time.

Caulder Avenue, on the south side, from a point 80 feet east of Southwest Ninth Street to Southwest Twelfth Street, no parking any time.

Caulder Avenue, on the north side, from Henry Street to a point 50 feet west thereof, no parking any time.

Caulder Avenue, on the south side, from Southwest Twelfth Place to a point 50 feet east thereof, no parking any time.

Caulder Avenue, on the north side, from Southwest Twelfth Street to Southwest Fourteenth Street, no parking any time.

Caulder Avenue, on the north side, from a point 230 feet east of Southwest Twenty-eighth Street and any part of the cul-de-sac to a point 620 feet west of Southwest Twenty-eighth Street and any part of the cul-de-sac, no parking any time.

Caulder Avenue, on the north side, from Southwest Thirty-fifth Street to Southwest Thirty-seventh Street, no parking any time.

Caulder Avenue, on the north side, from Southwest Forty-fourth Place to a point 320 feet west thereof and any part of the cul-de-sac, no parking any time.
(C62, § 30-1035; O.8084; C75, § 27-1057; O.8979; C79, § 27-1057; O.10,111, 10,207, 10,386, 10,476, 10,598; C91, § 27-2023; O.11,650; C00, § 114-3055; O.14,467, 14,518 (installed 11/4/10, 12/7/12), 16,171)

Sec. 114-3056. East Caulder Circle—Southeast First Street to Southeast Fifth Street.

East Caulder Circle, on the south side, from Southeast First Street to a point 220 feet east thereof, and any part of the cul-de-sac, no parking any time.
(C79, § 27-1057.01; O.10,111; C91, § 27-2024; O.11,650, 13,685)

Sec. 114-3057. Caulder Court—Dead end west of Southeast Twenty-third Street to dead end east of Southeast Twenty-third Street.

Caulder Court, on the south side, from Southeast Twenty-third Street to a point 140 feet west thereof and any part of the cul-de-sac, no parking any time.

Caulder Court, on the north and east sides, from Southeast Twenty-third Street to a point 400 feet south thereof, no parking any time.
(C79, § 27-1057.02; O.10,123; C91, § 27-2025; O.11,650, 13,239)

Sec. 114-3058. C.B. & Q. Street—Southeast Twenty-fourth Court to Southeast Thirtieth Street.

C.B. & Q. Street, on both sides, from Southeast Thirtieth Street to a point 35 feet west thereof, no parking any time.
(C62, § 30-1036; O.8084; C75, C79, § 27-1058; C91, § 27-2026; O.11,650)

Sec. 114-3059. Cedar Court—East Hughes Avenue to dead end north.

Cedar Court, on the east side, from East Hughes Avenue to a point 140 feet north thereof, and any part of the cul-de-sac, no parking any time.
(C79, § 27-1058.01; O.10,123; C91, § 27-1727; O.11,650)

Sec. 114-3060. Center Street—Second Avenue to Third Street.

Center Street, on the north side, from Second Avenue to a point 60 feet east of Third Street, passenger loading and unloading only, 20 minute limit.

Center Street, on the north side, from Third Street to a point 60 feet east thereof, no parking any time.

Center Street, on the south side, from Third Street to a point 40 feet east thereof, no parking any time.
(C62, § 30-1037; O.8084; C75, § 27-1059; O.9292; C91, § 27-2028; O.11,650, 12,042, 13,028, 13,727, 14,437)

Sec. 114-3061. Center Street—Fifth Avenue to Eighth Street.

Center Street, on the south side, from a point 250 feet east of Fifth Avenue to Eighth Street, no parking any time.

Center Street, on the north side, from Fifth Avenue to a point 250 feet east thereof, no parking any time.

Center Street, on the north side, from Sixth Avenue to a point 100 feet west thereof, no parking any time.

Center Street, on the north side, from a point 100 feet west of Sixth Avenue to a point 70 feet west thereof, passenger loading and unloading only.

Center Street, on the north side, from Seventh Street to a point 20 feet east thereof, no parking any time.

Center Street, on the north side, from Eighth Street to a point 40 feet east thereof, no parking any time.
(C62, § 30-1038; O.8084; C75, § 27-1060; O.9292; C79, C85, § 27-1060; O.11,199; C91, § 27-2029; O.11,650, 12,042, 13,028, 13,540, 13,673, 14,437, 14,542, 16,379)

Sec. 114-3062. Center Street—Eighth Street to Keosauqua Way.

Center Street, on the south side, from Eighth Street to Keosauqua Way, no parking any time.

Center Street, on the north side, from a point 150 feet west of Eighth Street to Keosauqua Way, no parking any time.
(C62, § 30-1039; O.8084; C75, C79, § 27-1061; C91, § 27-2030; O.11,650, 12,042, 13,028)

Sec. 114-3063. Center Street—Twelfth Street to Martin Luther King Jr Parkway.

Center Street, on both sides, from Twelfth Street to Fifteenth Street, no parking any time.

Center Street, on the south side, from Fifteenth Street to a point 50 feet west thereof, no parking any time.

Center Street, on the south side, from a point 115 feet west of Sixteenth Street to a point 25 feet west thereof, no parking any time.

Center Street, on the south side, from Nineteenth Street to Martin Luther King Jr Parkway, no parking any time.

Center Street, on the north side, from Martin Luther King Jr Parkway to a point 60 feet east thereof, no parking any time.
(C62, § 30-1040; O.8084; C75, § 27-1062; O.9012; C79, § 27-1062; C91, § 27-2031; O.11,650, 11,935, 15,226)

Sec. 114-3064. Center Street—Twenty-fourth Street to Thirty-fifth Street.

Center Street, on the north side, from Twenty-fourth Street to Twenty-fifth Street, no parking any time.

Center Street, on the south side, from Twenty-fourth Street to Twenty-eighth Street, no parking 7:00 a.m. to 5:00 p.m. school days.

Center Street, on the north side, from a point 50 feet east of Thirtieth Street to a point 50 feet west of Thirtieth Street, no parking any time.

Center Street, on the south side, from a point245 feet east of Thirty-first Street to a point 50 feet west of Thirty-first Street, no parking any time.

Center Street, on the north side, from Thirty-first Street to a point 75 feet east thereof, no parking any time.

Center Street, on the north side, from a point 75 feet east of Thirty-first Street to a point 115 feet east thereof, no stopping or standing 7:00 a.m. to 5:00 p.m. school days.

Center Street, on the north side, from Thirty-first Street to Thirty-fifth Street, no parking any time.

Center Street, on the south side, from Thirty-third Street to a point 75 feet west thereof, no parking any time.

Center Street, on the south side, from a point 125 feet east of Thirty-fifth Street to Thirty-fifth Street, no parking any time.
(C62, § 30-1041; O.8084; C75, § 27-1063; O.9379; C79, § 27-1063; O.10,123, 10,435; C85, § 27-1063; O.11,278; C91, § 27-2032; O.11,650, 13,539; C00, § 114-3064; O.14,025, 14,038, 14,518 (installed 1/31/06), 15,387, 16,171, 16,418)

Sec. 114-3065. Center Street—Thirty-fifth Street to city limits.

Center Street, on the south side, from Thirty-fifth Street to a point 50 feet west thereof, no parking any time.

Center Street, on the north side, from Thirty-fifth Street to Forty-first Street, no parking any time.

Center Street, on the south side, from a point 50 feet east of Thirty-sixth Street to a point 50 feet west of Thirty-sixth Street, no parking any time.

Center Street, on the south side, from Thirty-seventh Street to a point 50 feet west thereof, no parking any time.

Center Street, on the south side, from Forty-second Street to a point 300 feet west thereof, no stopping or standing.

Center Street, on the north side, from Forty-second Street to a point 175 feet west thereof, no stopping or standing.

Center Street, on the north side, from a point 175 feet west of Forty-second Street to a point 200 feet west thereof, bus loading and unloading.

Center Street, on the north side, from a point 375 feet west of Forty-second Street to a point 155 feet west thereof, no parking any time.

Center Street, on the south side, from a point 300 feet west of Forty-second Street to a point 230 feet west thereof, no parking any time.

Center Street, on the north side, from a point 530 feet west of Forty-second Street to a point 470 feet west thereof, no parking any time.

Center Street, on both sides, from a point 1,000 feet west of Forty-second Street to a point 135 feet west thereof, no stopping or standing.

Center Street, on the north side, from a point 1,135 feet west of Forty-second Street to Polk Boulevard, no parking any time.

Center Street, on the south side, from Polk Boulevard to a point 142 feet east thereof, no parking any time.

Center Street, on the south side, from Sixty-third Street to a point 980 feet west of Sixty-fourth Street, no parking any time.
(C62, § 30-1042; O.8084, 8703, 8755; C75, C79, § 27-1064; O.9692, 9736, 9849, 10,397; C85, § 27-1064; O.11,552; C91, § 27-2033; O.11,650, 11,932, 13,162; C00, § 114-3065; O.14,518 (installed 1/26/06, 3/18/08, 11/7/17), 16,171)

Sec. 114-3066. Chamberlain Avenue—Forty-second Street to Polk Boulevard.

Chamberlain Avenue, on the south side, from Forty-second Street to a point 240 feet west thereof, no parking any time.

Chamberlain Avenue, on the north side, from a point 150 feet east of Crocker Street to a point 50 feet east of Crocker Street, two-hour parking 9:00 a.m. to 4:00 p.m.

Chamberlain Avenue, on the north side, from a point 50 feet east of Crocker Street to a point 50 feet west of Crocker Street, no parking any time.

Chamberlain Avenue, on the north side, from a point 50 feet west of Crocker Street to California Drive, no parking 7:00 a.m. to 5:00 p.m. school days.

Chamberlain Avenue, on the north side, from California Drive to Forty-fifth Street, no stopping or standing 7:00 a.m. to 5:00 p.m. school days.

Chamberlin Avenue, on the south side, from a point 50 feet west of Forty-fifth Street to a point 135 feet east of Forty-fifth street, no parking any time.

Chamberlain Avenue, on the south side, from a point 50 feet west of Forty-fifth Street to a point 85 feet east of Forty-fifth Street, no parking any time.

Chamberlain Avenue, on the north side, from a point 50 feet east of Forty-fifth Place to a point 50 feet west of Forty-fifth Place, no parking any time.

Chamberlain Avenue, on the north side, from Forty-fifth Street to a point 50 feet east of Forty-fifth Place, no parking 7:00 a.m. to 5:00 p.m. school days.

Chamberlain Avenue, on the north side, from a point 50 feet west of Forty-fifth Place to a point 150 feet east of Polk Boulevard, no parking 7:00 a.m. to 5:00 p.m. school days.

Chamberlain Avenue, on the south side, from Forty-fifth Place to a point 75 feet west thereof, no parking any time.

Chamberlain Avenue, on the north side, from Polk Boulevard to a point 150 feet east thereof, bus loading zone.

Chamberlain Avenue, on the south side, from Polk Boulevard to a point 50 feet east thereof, no parking any time.
(C62, § 30-1043;O.8084; C75, § 27-1065; O.9061; C79, § 27-1065; O.9657; C85, § 27-1065; O.10,932; C91, § 27-2034; O.11,650, 11,810, 11,932; C00, § 114-3066; O.14,437, 14,518 (installed 9/11/06), 15,736, 16,171, 16,182)

Sec. 114-3067. Chamberlain Drive—Fifty-eighth Street to Fifty-ninth Street.

Chamberlain Drive, on the south side, from Fifty-eighth Street to Fifty-ninth Street, no parking any time.
(C79, § 27-1066.01; O.9685; C91, § 27-2035; O.11,650)

Sec. 114-3068. Chautauqua Parkway—Hickman Road to Hickman Road.

Chautauqua Parkway, on the north side, from Avalon Road to Allison Avenue, no parking any time.

Chautauqua Parkway, on the east and south side, from Burlington Terrace to Thirteenth Street, no parking any time.

Chautauqua Parkway, on the north and west side, from a point 200 feet east of Thirteenth Street to a point 100 feet south of Stephenson Way, no parking any time.

Chautauqua Parkway, on the south and west sides, from Thirteenth Street to Burlington Terrace, no parking any time.

Chautauqua Parkway, on both sides, from Hickman Road to Burlington Terrace, no parking any time.
(C62, § 30-1045; O.8084; C75, C79, § 27-1067; O.10,123; C91, § 27-2036; O.11,650, 11,695, 13,252)

Sec. 114-3069. Cherokee Avenue—Pennsylvania Avenue to East Eighth Street.

Cherokee Avenue, on the north side, from Pennsylvania Avenue to East Eighth Street, no parking any time.
(C62, § 30-1046; O.8084; C75, C79, § 27-1068; C91, § 27-2037; O.11,650)

Sec. 114-3070. Cherry Street—Fifth Avenue to Sixth Avenue.

Cherry Street, on the north side, from Fifth Avenue to Sixth Avenue, no parking anytime.
(C62, § 30-1047; O.8084; C75, § 27-1069; O.8984; C79, § 27-1069; O.10,434, 10,734; C85, § 27-1069; O.11,522; C91, § 27-2038; O.11,650, 14,304, 15,943)

Sec. 114-3071. Cherry Street—Sixth Avenue to Seventh Street.

Cherry Street, on the south side, from Sixth Avenue to a point 55 feet west thereof, no parking any time.

Cherry Street, on the south side, from a point 55 feet west of Sixth Avenue to a point 68 feet west thereof, commercial loading zone.

Cherry Street, on the south side, from a point 123 feet west of Sixth Avenue to a point 28 feet west thereof, no parking any time, passenger loading and unloading only.

Cherry Street, on the south side, from a point 151 feet west of Sixth Avenue to a point 40 feet west thereof, no parking any time.

Cherry Street, on the south side, from Seventh Street to a point 24 feet east thereof, no parking any time.

Cherry Street, on the north side, from Sixth Avenue to Seventh Street, no parking any time.
(C62, § 30-1048; O.8084, 8339; C75, § 27-1070; O.8974, 9615; C79, § 27-1070; O.10,734; C85,

§ 27-1070; O.10,918, 10,978; C91, § 27-2039; O.11,650, 11,987, 12,036, 14,025, 15,140, 15,776)

Sec. 114-3072. Cherry Street—Seventh Street to Eighth Street.

Cherry Street, on both sides, from Seventh Street to Eighth Street, no parking any time.
(C75, § 27-1071; O.9292, 9420, 9461; C79, § 27-1071; O.10,734; C85, § 27-1071; O.10,978; C91, § 27-2040; O.11,650, 14,585, 15,583, 15,943)

Sec. 114-3073. Cherry Street—Eighth Street to Ninth Street.

Cherry Street, on both sides, from Eighth Street to Ninth Street, no parking any time.
(C62, § 30-1050; O.8084; C75, § 27-1072; O.9292, 9461; C79, § 27-1072; O.10,734; C85, § 27-1072; O.10,770; C91, § 27-2041; O.11,650, 14,585, 15,583, 15,943, 15,984)

Sec. 114-3074. Cherry Street—Ninth Street to Tenth Street.

Cherry Street, on the south side, from Ninth Street to Tenth Street, no parking any time.

Cherry Street, on the north side, from Ninth Street to a point 20 feet west thereof, no parking any time.
(C62, § 30-1051; O.8084; C75, C79, § 27-1073; O.10,734; C91, § 27-2042; O.11,650, 11,743, 13,682, 13,893, 15,415, 15,943)

Sec. 114-3075. Cherry Street—Tenth Street to Eleventh Street.

Cherry Street, on both sides, from Tenth Street to Eleventh Street, no parking any time.
(C62, § 30-1052; O.8084; C75, C79, § 27-1074; C91, § 27-2043; O.11,650)

Sec. 114-3076. Cherry Street—Eleventh Street to Twelfth Street.

Cherry Street, on both sides, from Eleventh Street to Twelfth Street, no parking any time.
(C62, § 30-1053; O.8084; C75, § 27-1075; O.9227; C79, C85, § 27-1075; O.11,278; C91, § 27-2044; O.11,650, 14,075, 15,943)

Sec. 114-3076.05. Reserved.

Editor's note—Ord. No. 14,855, § 1, adopted May 18, 2009, repealed § 114-3076.05, which pertained to Cherry Street—Twelfth Street to Thirteenth Street and derived from Ord. No. 13,685; Ord. No. 14,075; Ord. No. 14,458.

Sec. 114-3077. Chestnut Street—Ninth Street to Twelfth Street.

Chestnut Street, on the south side, from Tenth Street to Twelfth Street, no parking any time.

Chestnut Street, on the north side, from Ninth Street to Twelfth Street, no parking any time.
(C62, § 30-1055; O.8084; C75, C79, § 27-1077; O.10,035; C91, § 27-2045; O.11,650)

Sec. 114-3078. Chicago Avenue—East Twenty-sixth Street to dead end east of East Thirty-seventh Street.

Chicago Avenue, on the south side, from Dubuque Avenue to a point 295 feet east thereof, no parking any time.

Chicago Avenue, on the south side, from East Twenty-sixth Court to a point 50 feet east thereof, no parking any time.

Chicago Avenue, on the south side, from East Twenty-seventh Street to a point 50 feet west thereof, no parking any time.

Chicago Avenue, on the north side, from East Twenty-sixth Court to East Twenty-ninth Street, no parking any time.

Chicago Avenue, on the south side, from East Twenty-ninth Street to a point 60 feet west thereof, no parking any time.
(C79, § 27-1077.01; O.9685, 10,123; C91, § 27-2046; O.11,650, 13,115, 13,130; C00, § 114-3078; O.14,458, 14,518 (installed 1/18/07), 16,171)

Sec. 114-3079. Clark Boulevard—Fifty-sixth Street to Merle Hay Road.

Clark Boulevard, on the south side, from Fifty-sixth Street to Merle Hay Road, no parking any time.
(C79, § 27-1077.02; O.9685; C91, § 27-2047; O.11,650)

Sec. 114-3080. Clark Street—Michigan Street to Ninth Street.

Clark Street, on the north side, from Michigan Street to Second Avenue, no parking any time.

Clark Street, on the south side, from a point 400 feet east of Second Avenue to a point 90 feet east thereof, no parking any time.

Clark Street, on the south side, from Second Avenue to a point 75 feet east thereof, no parking any time.

Clark Street, on the north side, from Second Avenue to a point 130 feet west thereof, no parking any time.

Clark Street, on the south side, from Second Avenue to Ninth Street, no parking any time.

Clark Street, on the north side, from a point 70 feet east of Sixth Avenue to Sixth Avenue, no parking any time.
(C62, § 30-1056; O.8084; C75, § 27-1078; O.8970; C79, C85, § 27-1078; O.11,552; C91, § 27-2048; O.11,650, 13,600; C00, § 114-3080; O.14,518 (installed 2/18/10, 2/27/20), 16,171)

Sec. 114-3081. Clark Street—Ninth Street to Thirtieth Street.

Clark Street, on the north side, from a point 50 feet east of Thirteenth Street to a point 75 feet west of Thirteenth Street, no parking any time.

Clark Street, on the north side, from Fourteenth Street to a point 50 feet east thereof, no parking any time.

Clark Street, on the north side, from Fourteenth Street to a point 50 feet west thereof, no parking any time.

Clark Street, on the south side, from Ninth Street to Seventeenth Street, no parking any time.

Clark Street, on the north side, from a point 75 feet west of Sixteenth Street to a point 150 feet east of Sixteenth Street, no parking any time.

Clark Street, on the north side, from a point 50 feet east of Seventeenth Street to a point 50 feet west of Seventeenth Street, no parking any time.

Clark Street, on the south side, from Seventeenth Street to a point 200 feet west thereof, passenger loading and unloading.

Clark Street, on the south side, from a point 200 feet west of Seventeenth Street to Eighteenth Street, bus loading and unloading.

Clark Street, on the south side, from Eighteenth Street to a point 80 feet west thereof, no parking any time.

Clark Street, on the south side, from a point 80 feet east of Eighteenth Street to a point 190 feet west thereof, bus loading and unloading, 7:00 a.m. to 5:00 p.m., school days.

Clark Street, on the north side, from Eighteenth Street to Nineteenth Street, no stopping or standing, 7:00 a.m. to 5:00 p.m., school days.

Clark Street, on the north side, from Nineteenth Street to a point 65 feet west of Martin Luther King, Jr. Parkway, no parking any time.

Clark Street, on the south side, from a point 50 feet east of Nineteenth Street to Martin Luther King, Jr. Parkway, no parking any time.

Clark Street, on the south side, from Martin Luther King, Jr. Parkway to Twenty-third Street, no parking Monday through Saturday.

Clark Street, on the south side, from Twenty-third Street to Thirtieth Street, no parking any time.

Clark Street, on the north side, from a point 50 feet east of Twenty-third Street to a point 100 feet west of Twenty-third Street, no parking any time.

Clark Street, on the north side, from a point 50 feet east of Twenty-fourth Street to a point 50 feet west of Twenty-fourth Street, no parking any time.

Clark Street, on the north side, from a point 270 feet west of twenty-fourth Street to a point 125 feet west thereof, no parking any time.

Clark Street, on the north side, from a point 495 feet east of Twenty-seventh Street to a point 100 feet west thereof, no parking any time.

Clark Street, on the north side, from Twenty-seventh Street to a point 100 feet east thereof, no parking any time.

Clark Street, on the north side, from Twenty-seventh Street to a point 50 feet west thereof, no parking any time.

Clark Street, on the north side, from Twenty-eighth Street to a point 50 feet east thereof, no parking any time.

Clark Street, on the north side, from Twenty-eighth Street to a point 50 feet west thereof, no parking any time.

Clark Street, on the north side, from Twenty-ninth Street to a point 50 feet east thereof, no parking any time.

Clark Street, on the north side, from Twenty-ninth Street to a point 50 feet west thereof, no parking any time.
(C62, § 30-1057; O.8084, 8858; C75, § 27-1079; O.9234; C79, § 27-1079; O.9629, 10,018, 10,582; C85, § 27-1079; O.11,179, 11,288, 11,476, 11,600; C91, § 27-2049; O.11,650, 11,875, 11,935, 13,076, 13,160, 13,387, 13,780, 14,421, 14,428, 15,991, 16,250, 16,539)

Sec. 114-3082. Clark Street—Thirtieth Street to Sixty-third Street.

Clark Street, on both sides, from Thirtieth Street to a point 75 feet west thereof, no parking any time.

Clark Street, on the south side, from a point 60 feet east of Thirty-first Street to a point 50 feet west of Thirty-first Street, no parking any time.

Clark Street, on the north side, from a point 50 feet east of Thirty-first Street to a point 50 feet west of Thirty-first Street, no parking any time.

Clark Street, on the both sides, from a point 60 feet east of Thirty-second Street to a point 50 feet west of Thirty-second Street, no parking any time.

Clark Street, on the north side, from a point 75 feet east of Thirty-third Street to a point 50 feet west of Thirty-third Street, no parking any time.

Clark Street, on the south side, from a point 100 feet east of Thirty-fourth Street to Beaver Avenue, no parking any time.

Clark Street, on the south side, from Merle Hay Road to a point 50 feet west thereof, no parking any time.

Clark Street, on the north side, from Merle Hay Road to Sixtieth Street, no parking any time.

Clark Street, on the south side, from a point 60 feet east of Sixtieth Street to Sixtieth Street, no parking any time.

Clark Street, on the south side, from Cummins Parkway to Sixty-third Street, no parking any time.

Clark Street, on the north side, from Sixty-third Street to a point 50 feet east thereof, no parking any time.
(C62, § 30-1058; O.8084; C75, § 27-1080; O.9607; C79, § 27-1080; O.9685, 10,071, 10,250, 10,278, 10,321, 10,598; C85, § 27-1080; O.10,799; C91, § 27-2050; O.14,518 (installed 7/15/08, 9/4/18, 4/18/19, 8/21/20), 16,171, 16,283)

Sec. 114-3083. Clarkson Avenue—Martin Luther King Jr Parkway to dead end west of Martin Luther King Jr Parkway.

Clarkson Avenue, on the north side, from Martin Luther King Jr Parkway to a point 470 feet west thereof, no parking any time.

Clarkson Avenue, on the south side, from Martin Luther King Jr Parkway to a point 60 feet west thereof, no parking any time.

Clarkson Avenue, on the south side, from a point 380 feet west of Martin Luther King Jr Parkway to the dead end west thereof, no parking any time.
(C62, § 30-1058.01; O.8700; C75, C79, § 27-1081.01; C91, § 27-2051; O.11,650, 11,935, 14,226, 14,255)

Sec. 114-3084. Clay Street—South Union Street to Southwest First Street.

Clay Street, on the north side, from South Union Street to Southwest First Street, no parking any time.
(C79, § 27-1080.02; O.10,111; C91, § 27-2052; O.11,650)

Sec. 114-3085. East Clay Street—South Union Street to dead end east.

East Clay Street, on the north side, from South Union Street to a point 250 feet east thereof, no parking any time.
(C79, § 27-1080.03; O.10,111; C91, § 27-2053; O.11,650)

Sec. 114-3086. Claypool Street—East Nineteenth Street to Avenue Frederick M. Hubbell.

Claypool Street, on both sides, from Walker Street to Avenue Frederick M. Hubbell, no parking any time.
(C62, § 30-1059; O.8084; C75, C79, § 27-1081; C91, § 27-2054; O.11,650)

Sec. 114-3087. Cleveland Avenue—Pennsylvania Avenue to East Thirty-third Street.

Cleveland Avenue, on the north side, from Pennsylvania Avenue to a point 100 feet east thereof, no parking any time.

Cleveland Avenue, on the south side, from Pennsylvania Avenue to Wayne Street, no parking any time.

Cleveland Avenue, on the north side, from a point 60 feet west of East Ninth Street to a point 50 feet east of East Ninth Street, no parking any time.

Cleveland Avenue, on the north side, from East Thirteenth Street to a point 100 feet east thereof, no parking any time.

Cleveland Avenue, on the north side, from a point 75 feet west of East Fourteenth Street to a point 100 feet east of East Fourteenth Street, no parking any time.

Cleveland Avenue, on the north side, from a point 50 feet west of Hutton Street to a point 50 feet east of Hutton Street, no parking any time.

Cleveland Avenue, on the north side, from a point 50 feet west of DeWolf Street to a point 50 feet east of DeWolf Street, no parking any time.

Cleveland Avenue, on the south side, from East Twenty-seventh Street to a point 50 feet east thereof, no parking any time.

Cleveland Avenue, on the south side, from East Twenty-ninth Street to a point 50 feet east thereof, no parking any time.

Cleveland Avenue, on the south side, from a point 50 feet west of East Thirtieth Street to a point 55 feet east of East Thirtieth Street, no parking any time.

Cleveland Avenue, on the north side, from a point 260 feet west of East Twenty-seventh Street to East Thirty-third Street, no parking any time.

Cleveland Avenue, on the south side, from a point 50 feet west of East Thirty-second Street to East Thirty-second Street, no parking any time.
(C62, § 30-1060; O.8084, 8108, 8166, 8241; C75, § 27-1082; O.9219; C79, § 27-1082; O.9672, 10,123, 10,402, 10,684; C85, § 27-1082; O.10,799; C91, § 27-2055; O.11,650, 11,848, 13,344, 13,548, 14,518 (installed 5/21/07, 3/3/08, 4/28/16, 9/29/20, 10/21/20), 15,363, 16,171, 16,327)

Sec. 114-3088. Reserved.

Editor's note—Ord. No. 14,057, repealed § 114-3088 which pertained to Clifton Avenue—Courtland Drive to Taylor Street and derived from Code 1962, § 30-1061; Ord. No. 8084; Code 1975, Code 1979, § 27-1083; Code 1991, § 27-2056; Ord. No. 11,650.

Sec. 114-3089. Clinton Avenue—Sixth Avenue to Beaver Avenue.

Clinton Avenue, on the north side, from Sixth Avenue to Eighth Street, no parking any time.

Clinton Avenue, on the north side, from Twelfth Street to Sixteenth Street, no parking any time.

Clinton Avenue, on the north side, from Thirty-eighth Street to Beaver Avenue, no parking any time.

Clinton Avenue, on the south side, from Beaver Avenue to a point 284 feet east thereof, no parking any time.
(C62, § 30-1062; O.8084; C75, § 27-1084; O.9012, 9155, 9197, 9219; C79, § 27-1084; C91, § 27-2057; O.11,650)

Sec. 114-3090. East Clinton Avenue—East Twenty-eighth Street to East Thirty-third Street.

East Clinton Avenue, on the south side, from East Twenty-eighth Street to a point 50 feet east thereof, no parking any time.

East Clinton Avenue, on the north side, from East Twenty-eighth Street to East Twenty-ninth Street, no parking any time.

East Clinton Avenue, on the north side, from East Thirty-first Street to East Thirty-third Street, no parking any time.
(C79, § 27-1084.01; O.9685, 9849, 10,549; C91, § 27-2058; O.11,650)

Sec. 114-3091. Colfax Avenue—East Douglas Avenue to East Aurora Avenue.

Colfax Avenue, on the east side, from East Douglas Avenue to East Aurora Avenue, no parking any time.

Colfax Avenue, on the west side, from East Aurora Avenue to a point 65 feet south thereof, no parking any time.
(C79, § 27-1084.02; O.9685; C91, § 27-2059; O.11,650, 13,994)

Sec. 114-3092. College Avenue—West River Drive to Second Avenue.

College Avenue, on both sides, from Maine Street to Second Avenue, no parking any time.

College Avenue, on the south side, from Vermont Street to a point 50 feet west thereof, no parking any time.

College Avenue, on the north side, from Michigan Street to Maine Street, no parking any time.
(C62, § 30-1063; O.8084; C75, § 27-1085; O.8970; C79, C85, § 27-1085; O.11,208; C91, § 27-2060; O.11,650, 13,248)

Sec. 114-3093. College Avenue—Second Avenue to Ninth Street.

College Avenue, on the south side, from Second Avenue to Sixth Avenue, no parking any time.

College Avenue, on the north side, from Second Avenue to Arlington Avenue, no parking any time.

College Avenue, on the north side, from Arlington Avenue to Fourth Street, no parking Monday through Saturday.

College Avenue, on the north side, from Fourth Street to Sixth Avenue, no parking any time.

College Avenue, on the north side, from Sixth Avenue to a point 130 feet west thereof, no parking any time.

College Avenue, on the south side, from Sixth Avenue to a point 60 feet west thereof, no parking any time.

College Avenue, on the south side, from Seventh Street to Eighth Street, no stopping or standing.

College Avenue, on the north side, from Seventh Street to Eighth Street, no stopping or standing 7:00 a.m. to 5:00 p.m., school days.

College Avenue, on the south side, from Eighth Street to a point 35 feet west thereof, no parking any time.

College Avenue, on the north side, from Eighth Street to Ninth Street, no parking any time.
(C62, § 30-1064; O.8084, 8108, 8124, 8167; C75, § 27-1086; O.9574; C79, C85, § 27-1086; O.11,199; C91, § 27-2061; O.11,650, 11,725, 13,159, 13,773; C00, § 114-3093; O.14,161, 14,348, 14,518 (installed 11/23/09), 16,171)

Sec. 114-3094. College Avenue—Ninth Street to Martin Luther King Jr Parkway.

College Avenue, on the north side, from Ninth Street to Martin Luther King Jr Parkway, no parking any time.

College Avenue, on the south side, from Thirteenth Street to a point 50 feet west thereof, no parking any time.
(C62, § 30-1065; O.8084, 8453; C75, C79, § 27-1087; C91, § 27-2062; O.11,650, 11,935; C00, § 114-3094; O.14,518 (installed 1/4/06), 16,171)

Sec. 114-3095. College Avenue—Twenty-third Street to Thirty-fourth Street.

College Avenue, on the north side, from a point 170 feet east of Twenty-fourth Street to a point 140 feet west of Twenty-fourth Place, no parking any time.

College Avenue, on the south side, from Twenty-fourth Street to a point 90 feet west thereof, no parking any time.

College Avenue, on the north side, from Twenty-fourth Street to a point 50 feet east thereof, no parking any time.

College Avenue, on the south side, from Twenty-seventh Street to a point 90 feet east thereof, no parking any time.

College Avenue, on the north side, from Twenty-seventh Street to Twenty-eighth Street, no parking any time.

College Avenue, on the south side, from Twenty-eighth Street to a point 40 feet east thereof, no parking any time.

College Avenue, on both sides, from Thirtieth Street to Thirty-first Street, no parking any time.

College Avenue, on both sides, from Thirty-second Street to Thirty-fourth Street, no parking any time.
(C62, § 30-1066; O.8084, 8313; C75, C79, § 27-1088; O.10,123; C91, § 27-2063; O.11,650, 14,102, 14,476)

Sec. 114-3096. College Avenue—Forty-first Street to Forty-eighth Street.

College Avenue, on the north side, from Forty-first Street to Forty-second Street, no parking any time.

College Avenue, on the south side, from Forty-first Street to a point 50 feet west thereof, no parking any time.

College Avenue, on the south side, from Forty-second Street to a point 100 feet east of Forty-third Street, no parking any time.

College Avenue, on the south side from a point 100 feet east of Forty-third Street to a point 50 feet west of Forty-fourth Street, no stopping or standing.

College Avenue, on the north side, from a point 100 feet east of Forty-third Street to a point 50 feet west of Forty-third Street, no stopping or standing 7:00 a.m. to 5:00 p.m. school days.

College Avenue, on the north side, from a point 50 feet west of Forty-third Street to a point 100 feet east of Forty-fourth Street, school bus loading and unloading 7:00 a.m. to 5:00 p.m. school days.

College Avenue, on the north side, from Forty-fourth Street to a point 100 feet east thereof, no stopping or standing 7:00 a.m. to 5:00 p.m. school days.

College Avenue, on the north side, from Forty-fourth Street to a point 75 feet west thereof, no parking any time.

College Avenue, on the south side, from a point 50 feet west of Forty-fourth Street to Forty-eighth Street, no parking any time.

College Avenue, on the north side, from a point 40 feet east of Forty-fifth Street to a point 40 feet west of Forty-fifth Street, no parking any time.
(C62, § 30-1067; O.8084, 8105; C75, § 27-1089; O.9212, 9339, 9356; C79, § 27-1089; O.9886, 9957, 9983; C91, § 27-2064; O.11,650; C00, § 114-3096; O.14,518 (installed 12/17/15), 16,171)

Sec. 114-3097. College Avenue—Fifty-fifth Street to Sixty-second Street.

College Avenue, on the north side, from Fifty-fifth Street to Merle Hay Road, no parking any time.

College Avenue, on the south side, from Merle Hay Road to Sixty-second Street, no parking any time.

College Avenue, on the north side, from a point 50 feet east of Sixtieth Street to a point 50 feet west of Sixtieth Street, no parking any time.

College Avenue, on the north side, from a point 70 feet east of Sixty-first Street to a point 70 feet west of Sixty-first Street, no parking any time.

College Avenue, on the north side, from Sixty-second Street to a point 75 feet east thereof, no parking any time.

College Avenue, on the north side, from Merle Hay Road to a point 75 feet west thereof, no parking any time.
(C79, § 27-1089.01; O.9685; C85, § 27-1089.01; O.10,913; C91, § 27-2065; O.11,650; C00, § 114-3097; O.14,518 (installed 4/4/06, 6/13/19), 16,171, 16,418)

Sec. 114-3098. Columbia Street—East Sheridan Avenue to East Aurora Avenue.

Columbia Street, on the east side, from East Sheridan Avenue to East Aurora Avenue, no parking any time.

Columbia Street, on the west side, from a point 60 feet south of Grandview Avenue to a point 60 feet north of Grandview Avenue, no parking any time.

Columbia Street, on the west side, from a point 50 feet south of Hull Avenue to a point 50 feet north of Hull Avenue, no parking any time.

Columbia Street, on the west side, from a point 60 feet south of East Ovid Avenue to East Ovid Avenue, no parking any time.

Columbia Street, on the west side, from East Euclid Avenue to a point 50 feet south thereof, no parking any time.

Columbia Street, on the west side, from East Euclid Avenue to a point 50 feet north thereof, no parking any time.

Columbia Street, on the west side, from East Douglas Avenue to a point 60 feet north thereof, no parking any time.

Columbia Street, on the west side, from East Aurora Avenue to a point 50 feet south thereof, no parking any time.
(C62, § 30-1068; O.8084; C75, C79, § 27-1090; O.9747, 10,598; C91, § 27-2066; O.11,650; C00, § 114-3098; O.14,518 (installed 2/17/09, 6/6/12, 3/7/17, 1/14/20), 16,171, 16,215)

Sec. 114-3099. Columbus Avenue—South Union Street to Southwest Second Street.

Columbus Avenue, on the south side, from Southwest First Street to Southwest Second Street, no parking any time.

Columbus Avenue, on the north side, from Southwest Second Street to a point 50 feet east thereof, no parking any time.
(C62, § 30-1069; O.8084; C75, C79, § 27-1091; O.9849, 10,264; C85, § 27-1091; O.10,747; C91, § 27-2067; O.11,650, 11,892, 13,239)

Sec. 114-3100. East Columbus Avenue—South Union Street to East Hillside Avenue.

East Columbus Avenue, on the south side, from South Union Street to Southeast First Street, no parking any time.

East Columbus Avenue, on the south side, from Southeast Second Court to Southeast Hillside Avenue, no parking any time.

East Columbus Avenue, on the north side, from a point 60 feet west of Southeast Third Street to a point 50 feet east of Southeast Third Street, no parking any time.
(C62, § 30-1070; O.8084; C75, § 27-1092; O.9065; C79, § 27-1092; O.9849, 9971; C91, § 27-2068; O.11,650; C00, § 114-3100; O.14,518 (installed 11/17/10), 16,171)

Sec. 114-3100.01. Reserved.

Editor's note—Ord. No. 15,355, § 1, adopted March 9, 2015, repealed § 114-3100.01, which pertained to Southwest Connector—Iowa Highway 28 to west city limits and derived from Ord. No. 15,242.

Sec. 114-3100.05. Copper Ridge Circle—Cul-de-sac west of East Fiftieth Street to East Fiftieth Street.

Copper Ridge Circle, on the north side, from and including the cul-de-sac west of East Fiftieth Street to East Fiftieth Street, no parking any time.
(O.15,992)

Sec. 114-3101. Cornell Street—East Sheridan Avenue to East Euclid Avenue.

Cornell Street, on the east side, from East Sheridan Avenue to East Euclid Avenue, no parking any time.

Cornell Street, on the west side, from East Sheridan Avenue to a point 100 feet north thereof, no parking any time.

Cornell Street, on the west side, from a point 100 feet north of East Sheridan Avenue to Hull Avenue, no parking 7:00 a.m. to 6:00 p.m.

Cornell Street, on the west side, from Hull Avenue to a point 60 feet north thereof, no parking any time.

Cornell Street, on the west side, from a point 60 feet north of Hull Avenue to East Ovid Avenue, no parking 7:00 a.m. to 6:00 p.m.

Cornell Street, on the west side, from Euclid Avenue to a point 130 feet south thereof, no stopping or standing.

Cornell Street, on the west side, from a point 130 feet south of Euclid Avenue to a point 200 feet south thereof, bus loading and unloading.

Cornell Street, on the west side, from a point 330 feet south of Euclid Avenue to a point 80 feet south thereof, no stopping or standing.

Cornell Street, on the west side, from a point 410 feet south of Euclid Avenue to a point 120 feet south thereof, bus loading and unloading.

Cornell Street, on the west side, from a point 530 feet south of Euclid Avenue to Ovid Avenue, no stopping or standing.
(C62, § 30-1071; O.8084, 8394; C75, § 27-1093; O.9464; C79, § 27-1093; C91, § 27-2069; O.11,650, 12,052)

Sec. 114-3102. Cornell Street—East Euclid Avenue to East Aurora Avenue.

Cornell Street, on the east side, from East Euclid Avenue to East Aurora Avenue, no parking any time.

Cornell Street, on the west side, from East Euclid Avenue to a point 300 feet north thereof, no parking any time.

Cornell Street, on the west side, from East Madison Avenue to East Aurora Avenue, no parking 7:00 a.m. to 6:00 p.m., Monday through Friday.
(C62, § 30-1072; O.8084, 8478; C75, § 27-1094; O.9464; C79, § 27-1094; O.9658, 9799; C91, § 27-2070; O.11,650)

Sec. 114-3103. Corning Avenue—Oxford Street to dead end west of Seventh Street.

Corning Avenue, on the north side, from Oxford Street to Second Avenue, no parking any time.

Corning Avenue, on the south side, from Second Avenue to a point 30 feet west of Seventh Street, no parking any time.

Corning Avenue, on the north side, from Fifth Avenue to a point 50 feet east thereof, no parking any time.

Corning Avenue, on the south side, from a point 30 feet west of Seventh Street to a point 60 feet west thereof, loading zone.

Corning Avenue, on the north side, from a point 90 feet east of Seventh Street to and including the cul-de-sac west of Seventh Street, no parking any time.
(C62, § 30-1073; O.8084; C75, § 27-1095; O.9100; C79, § 27-1095; O.10,402; C85, § 27-1095; O.11,225; C91, § 27-2071; O.11,650, 13,298, 13,482, 16,352)

Sec. 114-3104. Cottage Drive—Dagle Drive to Cummins Parkway.

Cottage Drive, on the south side, from Dagle Drive to Cummins Parkway, no parking any time.
(C79, § 27-1095.01; O.9685; C91, § 27-2072; O.11,650)

Sec. 114-3105. Cottage Grove Avenue—Nineteenth Street to Martin Luther King Jr Parkway.

Cottage Grove Avenue, on both sides, from Nineteenth Street to Martin Luther King Jr Parkway, no parking any time.
(C62, § 30-1074; O.8084; C75, C79, § 27-1096; O.10,040; C85, § 27-1096; O.10,848; C91, § 27-2073; O.11,650, 11,935, 14,198)

Sec. 114-3106. Cottage Grove Avenue—Martin Luther King Jr Parkway to Twenty-fifth Street.

Cottage Grove Avenue, on both sides, from Martin Luther King Jr Parkway to Twenty-fifth Street, no parking any time.
(C62, § 30-1075; O.8084, 8147; C75, C79, § 27-1097; C91, § 27-2074; O.11,650, 11,935; C00, § 114-316; O.14,198, 14,396, 14,518 (installed 10/18/16, 1/22/19, 9/19/19), 16,171)

Sec. 114-3107. Cottage Grove Avenue—Twenty-eighth Street to Forty-second Street.

Cottage Grove Avenue, on the north side, from Twenty-eighth Street to Forty-second Street, no parking any time.

Cottage Grove Avenue, on the south side, from Twenty-eighth Street to a point 75 feet west thereof, no parking any time.

Cottage Grove Avenue, on the south side, from a point 50 feet east of Twenty-ninth Street to a point 50 feet west of Twenty-ninth Street, no parking any time.

Cottage Grove Avenue on the south side, from a point 80 feet east of Thirty-first Street to a point 80 feet west of Thirty-first Street, no parking any time.

Cottage Grove Avenue, on the south side, from a point 50 feet east of Thirty-third Street to a point 50 feet west of Thirty-third Street, no parking any time.

Cottage Grove Avenue, on the south side, from a point 80 feet east of Thirty-fifth Street to a point 80 feet west of Thirty-fifth Street, no parking any time.

Cottage Grove Avenue, on the south side, from a point 50 feet east of Thirty-sixth Street to a point 50 feet west of Thirty-sixth Street, no parking any time.

Cottage Grove Avenue, on the south side, from a point 75 feet east of Thirty-seventh Street to a point 75 feet west of Thirty-seventh Street, no parking any time.

Cottage Grove Avenue, on the south side, from a point 50 feet east of Thirty-eighth Street to a point 50 feet west of Thirty-eighth Street, no parking any time.

Cottage Grove Avenue, on both sides, from Forty-second Street to a point 50 feet east thereof, no parking any time.
(C62, § 30-1076; O.8084; C75, § 27-1098; O.9503; C79, § 27-1098; O.10,373, 10,706; C91, § 27-2075; O.11,650, 13,245, 14,304, 16,250)

Sec. 114-3108. Country Club Boulevard—Grand Avenue to Fifty-sixth Street.

Country Club Boulevard, on the west side, from Grand Avenue to Woodland Avenue, no parking any time.
(C62, § 30-1077; O.8084; C75, C79, § 27-1099; C91, § 27-2076; O.11,650)

Sec. 114-3109. County Line Road—South Union Street to Fleur Drive.

County Line Road, on the north side, from Southwest Ninth Street to Fleur Drive, no parking any time.
(C79, § 27-1099.01; O.9685; C91, § 27-2077; O.11,650, 14,855)

Sec. 114-3110. County Line Road—South Union Street to Southeast Fourteenth Street.

County Line Road, on the north side, from Suncrest Drive to a point 50 feet west of Pilmer Drive, school passenger loading and unloading 7:00 a.m. to 5:00 p.m., school days.

County Line Road, on the north side, from a point 50 feet west of Pilmer Drive to a point 50 feet east of Pilmer Drive, no stopping or standing.

County Line Road, on the north side, from a point 50 feet east of Pilmer Drive to Dema Drive, school passenger loading and unloading 7:00 a.m. to 5:00 p.m., school days.
(C62, § 30-1077.01; O.8108; C75, C79, § 27-1100; C91, § 27-2078; O.11,650)

Sec. 114-3111. Court Avenue—Water Street to Second Avenue.

Court Avenue, on the south side, from Water Street to a point 30 feet west thereof, no parking any time.

Court Avenue, on the south side, from Second Avenue to a point 130 feet east thereof, no parking any time.

Court Avenue, on the north side, from Water Street to a point 40 feet west thereof, no parking any time.

Court Avenue, on the north side, from Second Avenue to a point 20 feet east thereof, no parking any time.
(C62, § 30-1078; O.8084, 8153; C75, C79, C85, § 27-1101; O.10,894; C91, § 27-2079; O.11,650, 14,437)

Sec. 114-3112. Court Avenue—Second Avenue to Third Street.

Court Avenue, on the south side, from Second Avenue to a point 25 feet west thereof, no parking any time.

Court Avenue, on both sides, from Third Street to a point 45 feet east thereof, no parking any time.

Court Avenue, on the north side, from Second Avenue to a point 45 feet west thereof, no parking any time.

Court Avenue, on the north side, from a point 45 feet west of Second Avenue to Third Street, bus loading and unloading;

(1) 6:00 p.m. Friday to 3:00 a.m. Saturday.

(2) 6:00 p.m. Saturday to 3:00 a.m. Sunday.
(C62, § 30-1079; O.8084, 8283, 8743; C75, C79, C85, § 27-1102; O.10,894, 11,522; C91, § 27-2080; O.11,650, 15,278)

Sec. 114-3113. Court Avenue—Third Street to Fourth Street.

Court Avenue, on the south side, from Third Street to a point 25 feet west thereof, no parking any time.

Court Avenue, on the south side, from Fourth Street to a point 45 feet east thereof, no parking any time.

Court Avenue, on the north side, from Third Street to a point 30 feet west thereof, no parking any time.

Court Avenue, on the north side, from a point 145 feet west of Third Street to a point 60 feet west thereof, no parking any time.

Court Avenue, on the north side, from a point 80 feet west of Third Street to a point 65 feet west thereof, commercial loading zone.

Court Avenue, on the north side, from Fourth Street to a point 35 feet east thereof, no parking any time.
(C62, § 30-1081; O.8084, 8278; C75, § 27-1103; O.9292; C79, § 27-1103; O.10,014; C85, § 27-1103; O.10,894, 11,063; C91, § 27-2081; O.11,650, 11,891)

Sec. 114-3114. Court Avenue—Fourth Street to Fifth Avenue.

Court Avenue, on the north side, from Fifth Avenue to a point 185 feet east thereof, no parking any time.
(C62, § 30-1081; O.8084, 8147, 8268; C75, § 27-1104; O.9576, 9595; C79, § 27-1104; O.9640; C85, § 27-1104; O.10,894; C91, § 27-2082; O.11,650, 15,590)

Sec. 114-3115. East Court Avenue—Water Street to East Second Street.

East Court Avenue, on the north side, from Water Street to a point 95 feet east thereof, no parking any time.

East Court Street, on the south side, 85 feet east of Water Street to a point 60 feet east thereof, is designated a handicapped parking area and is subject to the same prohibition as is found in subsection 114-616(a) of this chapter.

East Court Avenue, on the north side, from East First Street to a point 65 feet west thereof, no parking any time.

East Court Street, on the south side, 80 feet west of East First Street to a point 95 feet west thereof, is designated a handicapped parking area and is subject to the same prohibition as is found in subsection 114-616(a) of this chapter.

East Court Avenue, on the south side, from East First Street to a point 35 feet east thereof, no parking any time.

East Court Avenue, on the south side, from a point 35 feet east of East First Street to a point 45 feet east thereof, loading zone, 20 minute limit.

East Court Avenue, on the south side of the street, from a point 80 feet east of East First Street to a point 50 feet west of East Second Street, back-in angle parking only, parking reserved for official police vehicles only.

East Court Avenue, on the north side, from a point 120 feet east of East First Street to a point 90 feet east thereof, loading zone.

East Court Avenue, on the south side, from East Second Street to a point 50 feet west thereof, no parking any time.

East Court Avenue, on the north side, from East First Street to a point 120 feet east thereof, marked police vehicle parking only.

East Court Avenue, on the north side, from a point 210 feet east of East First Street to East Second Street, marked police vehicle parking only.
(C62, § 30-1083; O.8084; C75, C79, § 27-1106; O.9994; C91, § 27-2083; O.11,650, 11,955, 13,102, 13,162, 13,193, 14,139, 14,812, 15,186, 15,338, 15,363, 15,367, 15,934, 16,045)

Sec. 114-3116. East Court Avenue—East Second Street to East Sixth Street.

East Court Avenue, on the north side, from East Third Street to a point 75 feet west thereof, no parking any time.

East Court Avenue, on the north side, from East Third Street to a point 160 feet east thereof, no parking any time.

East Court Avenue, on the south side, from a point 205 feet east of East Fourth Street to a point 25 feet east thereof, commercial loading zone.

East Court Avenue, on both sides, from East Fourth Street to a point 155 feet west thereof, no parking any time.

East Court Avenue, on the south side, from East Fifth Street to a point 50 feet west thereof, no parking any time.
(C62, § 30-1084; O.8084, 8100; C75, C79, § 27-1107; O.10,214, 10,706; C85, § 27-1107; O.11,141, 11,278; C91, § 27-2084; O.11,650)

Sec. 114-3117. East Court Avenue—East Sixth Street to East Fourteenth Street.

East Court Avenue, on the north side, from East Sixth Street to a point 50 feet east thereof, no parking any time.

East Court Avenue, on the north side, from a point 50 feet east of East Sixth Street to a point 75 feet west of East Seventh Street, two-hour parking 9:00 a.m. to 4:00 p.m.

East Court Avenue, on the north side, from a point 75 feet west of East Seventh Street to East Fourteenth Street, no parking any time.

East Court Avenue, on the south side, from East Sixth Street to East Fourteenth Street, no parking any time.
(C62, § 30-1085; O.8084; C75, C79, § 27-1108; O.10,272; C91, § 27-2085; O.11,650)

Sec. 114-3118. East Court Avenue—East Fourteenth Street to Eighteenth Street.

East Court Avenue, on the north side, from East Fourteenth Street to Astor Street, no parking any time.

East Court Avenue, on the south side, from East Fourteenth Street to a point 130 feet east of East Fifteenth Street, no parking any time.

East Court Avenue, on the north side, from East Sixteenth Court to a point 90 feet west thereof, no parking any time.

East Court Avenue, on both sides, from East Eighteenth Street to a point 375 feet west thereof, no parking any time.
(C62, § 30-1086; O.8084, 8468, 8670; C75, C79, § 27-1109; C91, § 27-2086; O.11,650; C00, § 114-3118; O.14,518 (installed 12/2/14), 16,171)

Sec. 114-3119. East Court Avenue—East Thirtieth Street to East Thirty-sixth Street.

East Court Avenue, on both sides, from East Thirty-second Street to East Thirty-fourth Street, no parking any time.

East Court Avenue, on the south side, from East Thirty-fourth Street to East Thirty-sixth Street, no parking any time.
(C62, § 30-1087; O.8084; C75, C79, § 27-1110; O.9639, 9849; C91, § 27-2087; O.11,650)

Sec. 114-3120. Courtland Drive—Lacona Avenue to Indianola Road.

Courtland Drive, on both sides, from Indianola Road to Hillside Avenue, no parking any time.

Courtland Drive, on the west side, from Fulton Drive to a point 165 feet north thereof, no parking any time.

Courtland Drive, on the east side, from Hillside Avenue to Lacona Avenue, no parking any time.

Courtland Drive, on the north side, from the north leg of Courtland Drive to a point 50 feet west thereof, no parking any time.
(C62, § 30-1088; O.8084; C75, § 27-1111; O.9405; C79, § 27-1111; O.10,111, 10,144; C91, § 27-2088; O.11,650; C00, § 114-3120; O.14,057, 14,518 (installed 2/10/12), 16,171)

Sec. 114-3121. Creighton Avenue—Second Avenue to Fourth Street.

Creighton Avenue, on the south side, from a point 50 feet east of Third Street to a point 50 feet west of Third Street, no parking any time.

Creighton Avenue, on the north side, from Second Avenue to Fourth Street, no parking any time.
(C62, § 30-1089; O.8084; C75, C79, § 27-1112; O.10,271; C91, § 27-2089; O.11,650)

Sec. 114-3122. Crescent Drive—Ingersoll Avenue to Thirty-fourth Street.

Crescent Drive, on the west side, from Ingersoll Avenue to a point 300 feet north thereof, no parking any time.

Crescent Drive, on the east side, from Ingersoll Avenue to a point 50 feet north thereof, no parking any time.

Crescent Drive, on the east and north sides, from a point 50 feet north of Ingersoll Avenue to Thirty-fourth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

Crescent Drive, on the south side, from Thirty-fourth Street to a point 300 feet east thereof, no parking any time.
(C62, § 30-1090; O.8084, 8394; C75, C79, C85, § 27-1113; O.10,958; 10,999; C91, § 27-2090; O.11,650)

Sec. 114-3122.05. Crestmoor Drive—Bel-Aire Road to Fifty-first Street.

Crestmoor Drive, on the west (and south) sides, from Bel-Aire Road to Fifty-first Street, no parking any time.
(O.14,521)

Sec. 114-3123. Crestmoor Place—Lawnwoods Drive to Fifty-first Street.

Crestmoor Place, on the south side, from Lawnwoods Drive to a point 300 feet west of Thirty-eighth Place, no parking any time.

Crestmoor Place, on the south side, from Fortieth Street to a point 150 feet west thereof and on any part of the cul-de-sac, no parking any time.

Crestmoor Place, on the north side, from Fiftieth Street to Fifty-first Street, no parking any time.
(C79, § 27-1113.01; O.9685, 9849; C91, § 27-2091; O.11,650, 13,248)

Sec. 114-3124. Creston Avenue—South Union Street to Southwest Ninth Street.

Creston Avenue, on the south side, from Southwest Ninth Street to a point 175 feet east thereof, no parking any time.

Creston Avenue, on the north side, from Southwest Ninth Street to a point 645 feet east of Southwest Seventh Street, no parking any time.
(C62, § 30-1091; O.8084; C75, C79, § 27-1114; C91, § 27-2092; O.11,650)

Sec. 114-3125. Creston Avenue—Southwest Ninth Street to Southwest Sixty-third Street.

Creston Avenue, on the north side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.

Creston Avenue, on the north side, from a point 50 feet west of Southwest Ninth Street to Southwest Fourteenth Street, no parking 7:00 a.m. to 5:00 p.m., school days.

Creston Avenue, on the south side, from Southwest Ninth Street to Southwest Fourteenth Street, no parking any time.

Creston Avenue, on the north side, from Southwest Twelfth Street to a point 65 feet west thereof, no parking any time.

Creston Avenue, on both sides, from Southwest Sixty-third Street east to and including the dead end cul-de-sac, no parking any time.
(C62, § 30-1092; O.8084; C75, § 27-1115; O.9503, 9518; C79, § 27-1115; O.10,598; C91, § 27-2093; O.11,650, 13,994, 14,381)

Sec. 114-3126. East Creston Avenue—South Union Street to King Avenue.

East Creston Avenue, on the south side, from South Union Street to a point 50 feet east thereof, no parking any time.

East Creston Avenue, on the north side, from South Union Street to Indianola Avenue, no parking any time.

East Creston Avenue, on the south side, from a point 1,350 feet east of South Union Street to a point 260 feet east thereof, no parking any time.

East Creston Avenue, on the north side, from Southeast Fourteenth Street to a point 50 feet east thereof, no parking any time.

East Creston Avenue, on the south side, from Southeast Fourteenth Street to Southeast Seventeenth Street, no parking any time.

East Creston Avenue, on the north side, from Southeast Eighteenth Court to King Avenue, no parking any time.

East Creston Avenue, on the north side, from King Avenue to a point 100 feet west thereof, no parking any time.
(C62, § 30-1093; O.8084, 8639, 8893; C75, C79, § 27-1116; O.10,123, 10,582, 10,598, 10,706; C85, § 27-1116; O.11,203; C91, § 27-2094; O.11,650, 14,057, 14,932)

Sec. 114-3127. Crestwood Road—Thirty-sixth Place to Manor Lane.

Crestwood Road, on the north side, from Thirty-sixth Place to Manor Lane, no parking any time.
(C79, § 27-1116.01; O.9849; C91, § 27-2095; O.11,650)

Sec. 114-3128. Crocker Street—Second Avenue to Sixth Avenue.

Crocker Street, on the south side, from Second Avenue to Sixth Avenue, no parking any time.

Crocker Street, on the north side, from Second Avenue to Sixth Avenue, no parking any time.
(C62, § 30-1094; O.8084, 8394; C75, C79, § 27-1117; C91, § 27-2096; O.11,650, 14,437, 16,017)

Sec. 114-3129. Crocker Street—Sixth Avenue to Fourteenth Street.

Crocker Street, on the south side, from Sixth Avenue to Eighth Street, no parking any time.

Crocker Street, on the north side, from Sixth Avenue to Seventh Street, no parking any time.

Crocker Street, on the north side, from Seventh Street to a point 50 feet west thereof, no parking any time.

Crocker Street, on the north side, from a point 50 feet east of Eighth Street to a point 50 feet west of Eighth Street, no parking any time.

Crocker Street, on the south side, from Eighth Street to Ninth Street, no parking any time.

Crocker Street, on the north side, from a point 50 feet east of Ninth Street to a point 50 feet west of Ninth Street, no parking any time.

Crocker Street, on the south side, from Ninth Street to Twelfth Street, no parking any time.

Crocker Street, on the north side, from Tenth Street to Eleventh Street, no parking any time.

Crocker Street, on the north side, from Twelfth Street to a point 50 feet east thereof, no parking any time.
(C62, § 30-1095; O.8084, 8205; C75, § 27-1118; O.8979, 9267, 9369, 9402; C79, § 27-1118; O.9640, 10,111, 10,162; C91, § 27-2097; O.11,650, 13,404, 13,580, 13,673, 15,081, 15,606, 16,017, 16,400)

Sec. 114-3130. Crocker Street—Fifteenth Street to Nineteenth Place.

Crocker Street, on the north side, from Fifteenth Street to a point 150 feet west of Fifteenth Street, no parking any time.

Crocker Street, on the south side, from a point 150 feet east of Sixteenth Street to a point 50 feet west of Nineteenth Street, no parking any time.

Crocker Street, on the north side, from a point 315 feet west of Fifteenth Street to Nineteenth Place, no parking any time.
(C62, § 30-1096; O.8084, 8187, 8355, 8639, 8858; C75, C79, § 27-1119; O.9693, 10,111, 10,131; C91, § 27-2098; O.11,650, 11,737, 11,935, 15,590, 15,947)

Sec. 114-3131. Crocker Street—Thirty-first Street to Chamberlain Avenue.

Crocker Street, on the south side, from Thirty-first Street to Thirty-fifth Street, no parking any time.

Crocker Street, on the north side, from Thirty-fifth Street to a point 75 feet east thereof, no parking any time.

Crocker Street, on the north side, from Thirty-eighth Street to a point 140 feet west thereof, no parking any time.

Crocker Street, on the south side, from Fortieth Street to a point 50 feet west thereof, no parking any time.

Crocker Street, on the north side, from Forty-first Street to a point 75 feet east thereof, no parking any time.

Crocker Street, on the south side, from a point 50 feet east of Forty-first Street to a point 50 feet west of Forty-first Street, no parking any time.

Crocker Street, on the north side, from a point 150 feet east of Forty-second Street to a point 95 feet west of Forty-second Street, no parking any time.

Crocker Street, on the south side, from a point 140 feet east of Forty-second Street to a point 170 feet north of Chamberlain Avenue, no parking any time.

Crocker Street, on the north side, from a point 50 feet east of Forty-third Street to a point 50 feet west of Forty-third Street, no parking any time.

Crocker Street, on the north side, from a point 50 feet west of Forty-third Street to a point 65 feet north of Chamberlain Avenue, no parking 8:00 a.m. to 3:00 p.m. school days.

Crocker Street, on the west side, from a point 65 feet north of Chamberlain Avenue to Chamberlain Avenue, no parking any time.

Crocker Street, on the east side, from a point 50 feet north of Chamberlain Avenue to Chamberlain Avenue, no parking any time.
(C62, § 30-1097; O.8084, 8825; C75, C79, § 27-1120; O.9886; C85, § 27-1120; O.10,826, 10,885, 11,098, 11,248; C91, § 27-2099; O.11,650, 11,908, 13,666; C00, § 114-3131; O.14,437, 14,518 (installed 6/20/06, 11/01/17, 8/8/18, 9/4/18), 14,627, 15,736, 15,821, 16,171)

Sec. 114-3131.5. Crossroads Drive—Southeast First Street to Southeast Second Street.

Crossroads Drive, on the south side, from Southeast First Street to Southeast Second Street, no parking any time.
(O.15,726)

Sec. 114-3132. Cummins Parkway—Grand Avenue to Merle Hay Road.

Cummins Parkway, on the west side, from Ronwood Drive to Pleasant Drive, no parking any time.

Cummins Parkway, on the east side, from Pleasant Drive to Windsor Drive, no parking any time.

Cummins Parkway, on the west side, from Rollins Avenue to a point 550 feet north thereof, no parking any time.

Cummins Parkway, on the east side, from University Avenue to a point 75 feet south thereof, no parking any time.
(C75, § 27-1120.01; O.9566; C79, § 27-1120.01; O.9849; C85, § 27-1120.01; O.11,168, 11,288; C91, § 27-2100; O.11,650)

Sec. 114-3133. Cummins Circle—Cummins Parkway to dead end east.

Cummins Circle, on the north side, from Cummins Parkway to a point 100 feet east thereof and any part of the cul-de-sac, no parking any time.
(C79, § 27-1120.02; O.9685; C91, § 27-2101; O.11,650)

Sec. 114-3134. Crown Lane—Cummins Parkway to Sixty-third Street.

Crown Lane, on the south side, from Sixtieth Street to a point 65 feet east thereof, no parking any time.

Crown Lane, on the south side, from Sixty-third Street to a point 50 feet east thereof, no parking any time.

Crown Lane, on the north side, from Cummins Parkway to Sixty-third Street, no parking any time.
(C79, § 27-1120.03; O.9685, 10,598; C91, § 27-2102; O.11,650; C00, § 114-3134; O.14,518 (installed 8/2/06), 16,171)

Sec. 114-3135. Cummins Road—Southeast Fifth Street to Southeast Fourteenth Street.

Cummins Road, on the north side, from Southeast Fifth Street to a point 50 feet east thereof, no parking any time.

Cummins Road, on the south side, from Southeast Fifth Street to a point 1300 feet east thereof, no parking any time.

Cummins Road, on the north side, from Southeast Fourteenth Street to and including the cul-de-sac west thereof, no parking any time.

Cummins Road, on the south side, from Southeast Fourteenth Street to a point 125 feet west thereof, no parking any time.
(C79, § 27-1120.04; O.9849, 10,598; C91, § 27-2103; O.11,650, 14,518 (installed 1/3/17), 15,624, 15,652, 15,914, 16,171)

Sec. 114-3136. Cutler Avenue—Southwest Fifth Street to Southwest Fifteenth Street.

Cutler Avenue, on both sides, from Southwest Fifth Street to Southwest Seventh Street, no parking any time.

Cutler Avenue, on the south side, from Southwest Fourteenth Street to Southwest Fifteenth Street, no parking any time.
(C62, § 30-1098; O.8084, 8743; C75, C79, § 27-1121; O.9886; C91, § 27-2104; O.11,650)

Sec. 114-3136.1. East Cutler Avenue—Southeast Twenty-Seventh Street to Southeast Thirty-first Street.

East Cutler Avenue, on the south side, from Southeast Twenty-Seventh Street to East Porter Avenue, no parking any time.

East Cutler Avenue, on the south side, from Southeast Thirtieth Street to Southeast Thirty-first Street, no parking any time.
(O.13,973, 15,583)

Sec. 114-3137. Dagle Drive—Fifty-sixth Street to Sixty-third Street.

Dagle Drive, on the south side, from Fifty-sixth Street to a point 50 feet west thereof, no parking any time.

Dagle Drive, on the north side, from Fifty-sixth Street to Fifty-seventh Street, no parking any time.

Dagle Drive, on the north side, from Fifty-ninth Street to a point 50 feet west thereof, no parking any time.

Dagle Drive, on the south side, from Fifty-ninth Street to Cummins Parkway, no parking any time.

Dagle Drive, on the north side, from Cummins Parkway to Sixty-third Street, no parking any time.

Dagle Drive, on the south side, from Sixty-third Street to a point 50 feet east thereof, no parking any time.
(C62, § 30-1098.01; O.8310, 8908; C75, § 27-1121.01; O.9434; C79, § 27-1121.01; O.9685, 10,598; C91, § 27-2105; O.11,650; C00, § 114-3137; O.14,518 (installed 10/21/19), 16,171)

Sec. 114-3137.05. Dart Way—Southwest Ninth Street to Southwest Eleventh Street.

Dart Way, on both sides, from Southwest Ninth Street to Southwest Eleventh Street, no parking any time.
(O.14,855, 14,987)

Sec. 114-3138. Davis Avenue—South Union Street to dead end west of Southwest Twelfth Street.

Davis Avenue, on the south side, from Courtland Drive to a point 50 feet west thereof, no parking any time.

Davis Avenue, on the south side, from South Union Street to a point 50 feet west thereof, no parking any time.

Davis Avenue, on the north side, from South Union Street to Southwest Ninth Street, no parking any time.

Davis Avenue, on the south side, from Southwest Ninth Street to a point 430 feet east thereof, no parking any time.

Davis Avenue, on the south side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.

Davis Avenue, on the north side, from Southwest Ninth Street to a point 450 feet west of Southwest Twelfth Street, no parking any time.
(C62, § 30-1099; O.8084; C75, C79, § 27-1122; O.9629, 10,096, 10,207, 10,598; C91, § 27-2106; O.11,650, 11,891, 13,726)

Sec. 114-3139. Dawson Drive—Sixty-second Street to dead end west of Sixty-third Street.

Dawson Drive, on the north side, from Sixty-second Street to a point 140 feet west of Sixty-third Street, no parking any time.

Dawson Drive, on the south side, from a point 120 feet west of Sixty-third Street to a point 20 feet west thereof, no parking any time.
(C75, § 30-1122.01; O.9279; C79, § 27-1122.01; O.9685; C91, § 27-2107; O.11,650)

Sec. 114-3140. Davisson Road—Thirty-fourth Street to Thirty-eighth Street.

Davisson Road, on the south side, from Thirty-eighth Street to a point 50 feet east thereof; no parking any time.

Davisson Road, on the north side, from Thirty-fourth Street to Thirty-eighth Street, no parking any time.
(C79, § 27-1122.02; O.9886; C91, § 27-2108; O.11,650, 13,750)

Sec. 114-3141. Day Street—First Street to Cottage Grove Avenue.

Day Street, on both sides, from First Street to Thirteenth Street, no parking any time.

Day Street, on the north side, from Sixteenth Street to Eighteenth Street, no parking any time.

Day Street, on both sides, from Nineteenth Street to Martin Luther King Jr Parkway, no parking any time.

Day Street, on the north side, from Twenty-second Street to Cottage Grove Avenue, no parking any time.
(C62, § 30-1100; O.8084; C75, C79, § 27-1123; C91, § 27-2109; O.11,650, 14,339)

Sec. 114-3142. Dean Avenue—East Fourteenth Street to East Eighteenth Street.

Dean Avenue, on the south side, from East Fourteenth Street to a point 50 feet east thereof, no parking any time.

Dean Avenue, on the north side, from East Fourteenth Street to East Eighteenth Street, no parking any time.

Dean Avenue, on the south side, from a point 100 feet west of East Fifteenth Street to a point 220 feet east of East Fifteenth Street, no parking any time.
(C62, § 30-1101; O.8084; C75, C79, § 27-1124; O.10,123, 10,598; C91, § 27-2110; O.11,650)

Sec. 114-3143. Dean Avenue—East Eighteenth Street to east city limits.

Dean Avenue, on the south side, from East Eighteenth Street to East Twenty-ninth Court, no parking any time.

Dean Avenue, on the north side, from a point 100 feet west of East Twenty-fourth Street to a point 60 feet east of East Twenty-fourth Street, no parking any time.

Dean Avenue, on the north side, from a point 60 feet east of East Twenty-fourth Street to a point 290 feet east thereof, no parking 7:00 a.m. to 6:00 p.m. Monday through Friday.

Dean Avenue, on the north side, from a point 50 feet east of East Twenty-fifth Street to a point 50 feet west of East Twenty-fifth Street, no parking any time.

Dean Avenue, on the north side, from a point 50 feet east of East Twenty-sixth Street to a point 75 feet west of East Twenty-sixth Street, no parking any time.

Dean Avenue, on the north side, from a point 50 feet east of East Twenty-seventh Street to a point 50 feet west of East Twenty-seventh Street, no parking any time.

Dean Avenue, on the north side, from a point 50 feet east of East Twenty-eighth Street to a point 50 feet west of East Twenty-eighth Street, no parking any time.

Dean Avenue, on the north side, from a point 50 feet east of East Twenty-ninth Street to a point 50 feet west of East Twenty-ninth Street, no parking any time.

Dean Avenue, on the north side, from a point 50 feet east of East Twenty-ninth Street to East Twenty-ninth Court, no parking 7:00 a.m. to 5:00 p.m. school days.

Dean Avenue, on the south side, from East Twenty-ninth Court to a point 50 feet east thereof, no parking any time.

Dean Avenue, on the south side, from a point 50 feet east of East Twenty-ninth Court to a point 175 feet east thereof, school bus loading and unloading.

Dean Avenue, on the south side, from East Thirtieth Street to a point 225 feet east of East Twenty-ninth Court, no parking any time.

Dean Avenue, on the south side, from East Thirtieth Street to the east city limits, no parking any time.

Dean Avenue, on the north side, from East Twenty-ninth Court to a point 640 feet east of East Thirty-second Street, no parking any time.

Dean Avenue, on the north side, from a point 640 feet east of East Thirty-Second Street to a point 330 feet west of East Thirty-fourth Street, passenger loading and unloading.

Dean Avenue, on the north side, from a point 330 feet west of East Thirty-fourth Street to the east city limits, no parking any time.
(C62, § 30-1102; O.8084, 8166, 8433, 8453, 8529; C75, C79, § 27-1125; O.9693, 10,067, 10,085, 10,373; C91, § 27-2111; O.11,650, 11,774, 13,162, 13,184, 13,218, 15,675, 15,726, 16,086)

Sec. 114-3143.1. Deep Woods Court—Riverwoods Avenue to cul-de-sac north and south.

Deep Woods Court, on the west side, from Riverwoods Avenue north to and including the cul-de-sac, no parking any time.

Deep Woods Court, on the west side, from Riverwoods Avenue south to and including the cul-de-sac, no parking any time.
(O.13,958)

Sec. 114-3143.5. Deerpath Court—East Glenwood Drive to cul-de-sac south.

Deerpath Court, on the east side, from East Glenwood Drive to and including the cul-de-sac south of Riverwoods Avenue, no parking any time.
(O.13,958, 15,577)

Sec. 114-3143.7. Deer Ridge Drive—East Virginia Avenue to East Park Avenue.

Deer Ridge Drive, on the west side, from East Park Avenue north to dead end, no parking any time.
(O.13,973)

Sec. 114-3144. Delaware Avenue—Easton Boulevard to north city limits.

Delaware Avenue, on both sides, from Easton Boulevard to the north city limits, no parking any time.
(C62, § 30-1103; O.8084; C75, C79, § 27-1126; O.10,042; C91, § 27-2112; O.11,650)

Sec. 114-3145. Denver Avenue—Fifth Avenue to Sixth Avenue.

Denver Avenue, on the north side, from Fifth Avenue to a point 50 feet west thereof, no parking any time.

Denver Avenue, on the south side, from Fifth Avenue to Sixth Avenue, no parking any time.
(C62, § 30-1104; O.8084; C75, C79, § 27-1127; C91, § 27-2113; O.11,650; C00, § 114-3145; O.14,518 (installed 9/4/18), 16,171)

Sec. 114-3146. Depot Street—Third Street to Fifth Avenue.

Depot Street, on the south side, from Third Street to Fourth Street, no parking any time.
(C79, § 27-1128; O.10,402; C91, § 27-2114; O.11,650, 14,542)

Sec. 114-3147. Des Moines Street—Robert D Ray Drive to East Ninth Street.

Des Moines Street, on the south side, from Robert D Ray Drive to a point 65 feet east thereof, reserved for City of Des Moines municipal employee permit parking, 7:00 a.m. to 4:00 p.m., Monday through Friday.

Des Moines Street, on the south side, from a point 65 feet east of Robert D Ray Drive to a point 80 feet east thereof, no parking any time.

Des Moines Street, on the north side, from Robert D Ray Drive to Pennsylvania Avenue, no parking any time.

Des Moines Street, on the south side, from a point 50 feet west of East Fourth Street to a point 50 feet east of East Fourth Street, no parking any time.

Des Moines Street, on the south side, from a point 50 feet west of East Fifth Street to a point 50 feet east of East Fifth Street, no parking any time.

Des Moines Street, on the south side, from a point 210 feet east of East Sixth Street to a point 60 feet east thereof, 24-hour loading zone.

Des Moines Street, on the south side, from a point 50 feet west of East Sixth Street to a point 25 feet west thereof, commercial loading zone.

Des Moines Street, on the south side, from a point 100 feet west of East Sixth Street to a point 60 feet east of East Sixth Street, no parking any time.

Des Moines Street, on the south side, from Pennsylvania Avenue to a point 270 feet east of East Sixth Street, no parking any time.

Des Moines Street, on the north side, from Pennsylvania Avenue to a point 100 feet east, no parking 7:00 a.m. to 6:00 p.m., Monday through Friday.

Des Moines Street, on the south side, from Pennsylvania Avenue to East Ninth Street, no parking Monday through Saturday.

Des Moines Street, on the north side, from East Ninth Street to a point 50 feet west thereof, no parking any time.
(C62, § 30-1106; O.8084, 8717; C75, § 27-1129; O.9155, 9332, 9372, 9401, 9461; C79, § 27-1129; O.9630, 10,044, 10,647, 10,695; C85, § 27-1129; O.11,041, 11,141, 11,278, 11,522; C91, § 27-2115; O.11,650, 11,660, 11,891, 13,647, 13,935, 14,371, 14,437, 14,635, 15,113, 15,263, 16,543)

Sec. 114-3148. Des Moines Street—East Ninth Street to East Eighteenth Street.

Des Moines Street, on the north side, from East Ninth Street to a point 75 feet east thereof, no parking any time.

Des Moines Street, on the south side, from East Ninth Street to a point 70 feet east thereof, no parking any time.

Des Moines Street, on the north side, from a point 75 feet west of East Tenth Street to a point 80 feet east of East Tenth Street, no parking any time.

Des Moines Street, on the north side, from a point 55 feet west of East Eleventh street to a point 75 feet east of East Eleventh Street, no parking any time.

Des Moines Street, on the north side, from a point 145 feet east of East Eleventh Street to a point 110 feet east thereof, no parking any time.

Des Moines Street, on the south side, from a point 70 feet east of East Ninth Street to a point 50 feet west of East Twelfth Street, no parking 7:00 a.m. to 6:00 p.m., Monday through Friday.

Des Moines Street, on the south side, from East Twelfth Street to a point 50 feet west, no parking any time.

Des Moines Street, on the south side, from a point 305 feet east of East Twelfth Street to a point 110 feet east thereof, no parking any time.

Des Moines Street, on the north side, from East Twelfth Street to a point 100 feet east of East Fourteenth Street, no parking any time.

Des Moines Street, on the south side, from East Twelfth Street to a point 60 feet east thereof, no parking any time.

Des Moines Street, on the south side, from a point 110 feet west of East Fourteenth Street to East Eighteenth Street, no parking any time.

Des Moines Street, on the north side, from East Fourteenth Street to a point 150 feet east thereof, no parking any time.

Des Moines Street, on the north side, from a point 75 feet west of East Fifteenth Street to a point 75 feet east of East Fifteenth Street, no parking any time.

Des Moines Street, on the north side, from East Eighteenth Street to a point 50 feet west thereof, no parking any time.
(C62, § 30-1107; O.8084, 8268, 8361, 8453, 8484, 8572, 8743; C75, § 27-1130; O.8979, 8994, 9401, 9490; C79, § 27-1130; O.9630, 10,309, 10,323, 10,342, 10,513; C85, § 27-1130; O.11,278; C91, § 27-2116; O.11,650, 13,176, 13,933, 14,060, 14,348, 14,518 (installed 6/15/07), 14,846, 15,624, 16,171)

Sec. 114-3149. Des Moines Street—East Eighteenth Street to East Thirtieth Street.

Des Moines Street, on the south side, from East Eighteenth Street to East Thirtieth Street, no parking any time.

Des Moines Street, on the north side, from Frederick M. Hubbell Avenue to a point 75 feet west thereof, no parking any time.

Des Moines Street, on the north side, from a point 252 feet east of East Nineteenth Street to a point 377 feet east thereof, no parking any time.

Des Moines Street, on the north side, from East Twenty-second Street to a point 250 feet west thereof, no stopping or standing 7:00 a.m. to 5:00 p.m., school days.

Des Moines Street, on the north side, from a point 250 feet west of East Twenty-second Street to a point 390 feet west thereof, school passenger loading and unloading 7:00 a.m. to 5:00 p.m., school days.

Des Moines Street, on the north side, from East Twenty-fourth Street to a point 50 feet north thereof, no parking any time.

Des Moines Street, on the north side, from a point 50 feet east of East Twenty-seventh Street to a point 50 feet west of East Twenty-seventh Street, no parking any time.

Des Moines Street, on the north side, from a point 50 feet east of East Twenty-ninth Street to a point 50 feet west of East Twenty-ninth Street, no parking any time.

Des Moines Street, on the north side, from East Thirtieth Street to a point 135 feet west thereof, no parking any time.
(C62, § 30-1108; O.8084, 8166, 8310, 8539; C75, § 27-1131; O.9009, 9234, 9308; C79, § 27-1131; O.10,123, 10,582; C91, § 27-2117; O.11,650, 13,218, 13,869)

Sec. 114-3150. DeWolfe Street—East University Avenue to Hull Avenue.

DeWolf Street, on the east side, from Easton Boulevard to Thompson Avenue, no parking any time.

DeWolf Street, on the west side, from Easton Boulevard to a point 55 feet north thereof, no parking any time.

DeWolf Street, on the west side, from Cleveland Avenue to a point 50 feet north thereof, no parking any time.
(C62, § 30-1109; O.8084; C75, C79, § 27-1132; O.10,123; C91, § 27-2118; O.11,650; C00, § 114-3150; O.14,518 (installed 3/3/08), 16,171, 16,293)

Sec. 114-3150.5. Dickman Road—Southwest Ninth Street to easterly dead end.

Dickman Road, on both sides, from Southwest Ninth Street east to the dead end (700 feet), no parking any time.
(O.13,750)

Sec. 114-3151. Diehl Avenue—Southwest Third Street to Southwest Fourth Street.

Diehl Avenue, on the north side, from Southwest Third Street to Southwest Fourth Street, no parking any time.
(C79, § 27-1132.01; O.9855; C91, § 27-2119; O.11,650)

Sec. 114-3152. East Diehl Avenue—South Union Street to Southeast Thirty-second.

East Diehl Avenue, on the south side, from Southeast Fifth Street to a point 70 feet west thereof, no parking any time.

East Diehl Avenue, on the south side, from South Union Street to a point 60 feet east thereof, no parking any time.

East Diehl Avenue, on the north side, from South Union Street to Southeast Fifth Street, no parking any time.

East Diehl Avenue, on the north side, from Jordan Drive to a point 50 feet east thereof, no parking any time.

East Diehl Avenue, on the north side, from a point 630 feet west of Southeast Fourteenth Street to a point 50 feet east of Southeast Fourteenth Street, no parking any time.

East Diehl Avenue, on the south side, from Jordan Drive to Southeast Nineteenth Street, no parking any time.

East Diehl Avenue, on the south side, from East Porter Avenue to Southeast Thirty-second Street, no parking any time.
(C62, § 30-1110; O.8084; C75, C79, § 27-1133; O.9629, 9704, 9855, 10,598; C85, § 27-1133; O.11,208, 11,302; C91, § 27-2120; O.11,650, 11,955; C00, § 114-3152; O.13,973, 14,518 (installed 10/6/15), 16,171, 16,393)

Sec. 114-3153. Division Street—West River Drive to Illinois Street.

Division Street, on both sides, from Illinois Street to West River Drive, no parking any time.
(C62, § 30-1111; O.8084; C75, C79, § 27-1134; C91, § 27-2121; O.11,650, 14,437)

Sec. 114-3154. Dixon Court—East Washington Avenue to Guthrie Avenue.

Dixon Court, on the east side, from East Washington Avenue to Mattern Avenue, no parking any time.
(C91, § 27-2121.05; O.11,688)

Sec. 114-3155. Dixon Street—Dead end south of Lyon Street to East Aurora Avenue.

Dixon Street, on the west side, from a point 200 feet south of Lyon Street to Maple Street, no parking any time.

Dixon Street, on the east side, from a point 50 feet south of East University Avenue to a point 50 feet north of East University Avenue, no parking any time.

Dixon Street, on the west side, from Walker Street to Garfield Avenue, no parking any time.

Dixon Street, on the west side, from Cleveland Avenue to East Washington Avenue, no parking any time.

Dixon Street, on the east side, from East Washington Avenue to Guthrie Avenue, no parking any time.

Dixon Street, on both sides, from Guthrie Avenue to East Euclid Avenue, no parking any time.

Dixon Street, on both sides, from East Euclid Avenue to East Aurora Avenue, no parking any time.
(C62, § 30-1112; O.8084, 8446; C75, § 27-1135; O.9100, 9219; C79, § 27-1135; O.10,123, 10,598; C91, § 27-2122; O.11,650, 11,688)

Sec. 114-3156. Don Lee Court—Avenue Frederick M. Hubbell to East Tiffin Avenue.

Don Lee Court, on the east side, from Avenue Frederick M. Hubbell to East Tiffin Avenue, no parking any time.

Don Lee Court, on the west side, from Frederick M. Hubbell Avenue to a point 70 feet north thereof, no parking any time.
(C79, § 27-1135.01; O.9685; C91, § 27-2123; O.11,650; C00 § 114-3156; O.14,518 (installed 2/5/10), 16,171)

Sec. 114-3157. Dosh Road—Oakshire Road to Madison Avenue.

Dosh Road, on the west side, from Oakshire Road to Madison Avenue, no parking any time.
(C79, § 27-1135.02; O.9849; C91, § 27-2124; O.11,650)

Sec. 114-3158. Douglas Avenue—First Street to Sixteenth Street.

Douglas Avenue, on both sides, from First Street to Second Avenue, no parking any time.

Douglas Avenue, on the south side, from Second Avenue to Fifth Avenue, no parking any time.

Douglas Avenue, on the north side, from Second Avenue to a point 125 feet west thereof, no parking any time.

Douglas Avenue, on the north side, from Sixth Avenue to a point 50 feet west thereof, no parking any time.

Douglas Avenue, on the south side, from Sixth Avenue to Sixteenth Street, no parking any time.
(C62, § 30-1113; O.8084; C75, § 27-1136; O.8964; C79, § 27-1136; O.9971, 10,476; C91, § 27-2125; O.11,650)

Sec. 114-3159. Douglas Avenue—Martin Luther King Jr Parkway to west city limits.

Douglas Avenue, on both sides, from Martin Luther King Jr Parkway to west city limits, no parking any time.
(C62, § 30-1114; O.8084; C75, C79, § 27-1137; C91, § 27-2126; O.11,650, 11,935)

Sec. 114-3160. East Douglas Avenue—First Street to East Fourteenth Street.

East Douglas Avenue, on both sides, from First Street to Oxford Street, no parking any time.

East Douglas Avenue, on the north side from Oxford Street to Cornell Street, no parking 7:00 a.m. to 6:00 p.m., Monday through Friday.

East Douglas Avenue, on the north side, from Cornell Street to a point 75 feet east thereof, no parking any time.

East Douglas Avenue, on the south side, from Oxford Street to East Fourteenth Street, no parking any time.

East Douglas Avenue, on the north side, from a point 110 feet west of East Fourteenth Street to East Fourteenth Street, no parking any time.
(C62, § 30-1115; O.8084; C75, § 27-1138; O.9330; C79, § 27-1138; O.9849, 10,476, 10,513; C91, § 27-2127; O.11,650, 11,660, 13,647, 16,215)

Sec. 114-3161. East Douglas Avenue—Delaware Avenue to east city limits.

East Douglas Avenue, on the south side, from a point 75 feet west of East Twenty-sixth Street to a point 75 feet east of East Twenty-sixth Street, no parking any time.

East Douglas Avenue, on the north side, from Lay Street to a point 90 feet east of East Thirty-Eighth Court, no parking any time.

East Douglas Avenue, on the south side, from Lay Street to a point 150 feet east thereof, no parking any time.

East Douglas Avenue, on the south side, from East Twenty-eighth Street to East Twenty-ninth Street, school passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days.

East Douglas Avenue, on the south side, from East Twenty-ninth Street to a point 75 feet east thereof, no parking any time.

East Douglas Avenue, on the north side, from a point 20 feet west of Belmar Drive to the east city limits, no parking any time.

East Douglas Avenue, on the south side, from a point 650 feet east of Colfax Avenue to a point 50 feet east of Belmar Drive, no parking any time.

East Douglas Avenue, on the south side, from a point 50 feet west of East Thirty-ninth Court to a point 50 feet east of East Thirty-ninth Court, no parking any time.

East Douglas Avenue, on the south side, from a point 50 feet west of East Forty-second Street to the east city limits, no parking any time.
(C62, § 30-1116; O.8084, 8695; C75, § 27-1139; O.8984, 8998, 9234, 9389, 9534; C79, § 27-1139; O.9649, 9685, 10,421, 10,598, 10,692, 10,706; C91, § 27-2128; O.11,650, 13,043, 13,295, 13,465, 13,643; C00, § 114-3161; O.14,518 (installed 3/20/13, 11/9/21), 15,363, 15,881, 16,113, 16,171, 16,271, 16,418)

Sec. 114-3162. Drake Park Avenue—Twenty-first Street to Twenty-fifth Street.

Drake Park Avenue, on the south side, from a point 75 feet east of Twenty-second Street to a point 75 feet west of Twenty-second Street, no parking any time.

Drake Park Avenue, on the north side, from Twenty-second Street to a point 50 feet east of Twenty-third Street, no parking any time.

Drake Park Avenue, on the north side, from a point 50 feet east of Twenty-fourth Street to Twenty-fourth Street, no parking any time.

Drake Park Avenue, on the south side, from Twenty-third Street to Twenty-fourth Street, no parking any time.

Drake Park Avenue, on the north side, from Twenty-fifth Street to a point 50 feet east thereof, no parking any time.
(C75, § 27-1139.01; O.9446; C79, § 27-1139.01; O.10,008; C91, § 27-2129; O.11,650, 11,781, 12,036)

Sec. 114-3162.1. Driftwood Avenue—Three Lakes Parkway to dead end.

Driftwood Avenue, on the south side, from Three Lakes Parkway west to the dead end, no parking any time.
(O.13,948)

Sec. 114-3163. Druid Hill Drive—Bell Avenue to Pleasant View Drive.

Druid Hill Drive, on the west side, from Bell Avenue to Southwest Eighteenth Street, no parking any time.

Druid Hill Drive, on the south side, from Southwest Eighteenth Street to Pleasant View Drive, no parking any time.
(C79, § 27-1139.02; O.10,111; C91, § 27-2130; O.11,650)

Sec. 114-3164. Dubuque Avenue—Avenue Frederick M. Hubbell to Williams Street.

Dubuque Avenue, on the south side, from Avenue Frederick M. Hubbell to East Twenty-fourth Street, no parking any time.

Dubuque Avenue, on the south side, from East Twenty-ninth Street to a point 90 feet east thereof, no parking any time.

Dubuque Avenue, on the north side, from East Twenty-ninth Street to East Thirty-third Street, no parking any time.

Dubuque Avenue, on the south side, from East Thirtieth Street to a point 50 feet west thereof, no parking any time.

Dubuque Avenue, on the south side, from East Thirty-second Street to a point 150 feet east thereof, no parking any time.

Dubuque Avenue, on the south side, from East Thirty-third Street to a point 50 feet west thereof, no parking any time.

Dubuque Avenue, on both sides, from East Thirty-third Street to East Thirty-sixth Street, no parking any time.

Dubuque Avenue, on the south side, from East Thirty-sixth Court to a point 50 feet east thereof, no parking any time.

Dubuque Avenue, on the north side, from East Thirty-sixth Street to Williams Street, no parking any time.
(C62, § 30-1117; O.8084, 8108, 8166; C75, § 27-1140; O.9045; C79, § 27-1140; O.9685, 10,123; C91, § 27-2131; O.11,650, 12,036, 13,218; C00; O.14,518 (installed 5/12/07, 8/1/07), 16,171)

Sec. 114-3165. Dunham Avenue—South Union Street to Southwest Second Street.

Dunham Avenue, on the south side, from South Union Street to Southwest Second Street, no parking any time.

Dunham Avenue, on the north side, from Indianola Avenue to a point 60 feet east thereof, no parking any time.

Dunham Avenue, on the north side, from Southwest First Street to a point 50 feet east thereof, no parking any time.
(C75, § 27-1140.01; O.9513, 9576; C85, § 27-1140.01; O.10,799; C91, § 27-2132; O.11,650; C00, § 114-3165; O.14,518 (installed 4/30/18), 16,171)

Sec. 114-3165.05. Eagle Point Circle—Grand River Drive to dead end.

Eagle Point Court, on the north side, from Grand River Drive to and including the cul-de-sac, no parking any time.
(O.14,322)

Sec. 114-3166. East Dunham Avenue—South Union Street to Southeast Ninth Street.

East Dunham Avenue, on the north side, from Southeast First Street to a point 50 feet east thereof, no parking any time.

East Dunham Avenue, on the south side, from South Union Street to Southeast Ninth Street, no parking any time.
(C62, § 30-1118; O.8084, 8100; C75, § 27-1141; O.9279, 9315; C79, § 27-1141; O.9849, 10,111; C85, § 27-1141; O.11,522; C91, § 27-2133; O.11,650)

Sec. 114-3166.05. Eagle Point Court—Grand River Drive to the dead end north of Grand River Drive.

Eagle Point Court, on the west side, Grand River Drive to and including the cul-de-sac north thereof, no parking any time.
(O.14,855)

Sec. 114-3166.1. Easter Bay Court—East Marion Street to dead end.

Easter Bay Court, on the east side, from East Marion Street south to the dead end, no parking any time.
(O.13,954)

Sec. 114-3167. Easter Lake Drive—Indianola Avenue to Southeast Thirty-sixth Street.

Easter Lake Drive, on both sides, from Indianola Avenue to Southeast Thirty-Sixth Street, no parking any time.
(C85, § 27-1141.01; O.11,302; C91, § 27-2134; O.11,650)

Sec. 114-3168. Easton Boulevard—East University Avenue to east city limits.

Easton Boulevard, on both sides, from East University Avenue to East Twenty-second Street, no parking any time.
(C62, § 30-1119; O.8084; C75, C79, § 27-1142; C91, § 27-2135; O.11,650, 11,924, 14,635, 16,148)

Sec. 114-3169. Easton Boulevard—East Twenty-second Street to East Twenty-ninth Street.

Easton Boulevard, on the south side, from East Twenty-second Street to East Twenty-ninth Street, no parking any time.

Easton Boulevard, on the north side, from East Twenty-second Street to a point 75 feet east thereof, no parking any time.

Easton Boulevard, on the north side, from Searle Street to a point 70 feet west thereof, no parking any time.

Easton Boulevard, on the north side, from a point 30 feet west of Lay Street to East Twenty-ninth Street, no parking any time.
(C62, § 30-1120; O.8084; C75, C79, § 27-1143; C91, § 27-2136; O.11,650, 13,193, 13,785, 14,038, 14,458, 14,635)

Sec. 114-3170. Easton Boulevard—East Twenty-ninth Street to east city limits.

Easton Boulevard, on the north side, from East Twenty-ninth Street to East Thirty-fourth Street, no parking any time.

Easton Boulevard, on the north side, from East Thirty-fifth Street to Four Mile Creek bridge, no parking any time.

Easton Boulevard, on the south side, from East Twenty-ninth Street to East Thirty-fourth Street, no parking any time.

Easton Boulevard, on both sides, from 85 feet east of East Thirty-ninth Street to 90 feet east thereof, no parking any time.

Easton Boulevard, on the south side, from a point 60 feet west of East Forty-first Street to a point 50 feet east of East Forty-first Street, no parking any time.

Easton Boulevard, on the south side, from East Forty-second Street to a point 310 feet east thereof, no parking any time.
(C62, § 30-1121; O.8084; C75, § 27-1144; O.9111; C79, § 27-1144; O.10,418; C91, § 27-2137; O.11,650, 13,193; C00, § 114-3170; O.14,518 (installed 10/3/18), 14,970, 15,271, 16,171)

Sec. 114-3171. Eastwood Drive—East Thirty-fourth Street to East Thirty-fifth Street.

Eastwood Drive, on the south side, from East Thirty-fourth Street to East Thirty-fifth Street, no parking any time.
(C75, § 27-1144.01; O.9209; C91, § 27-2138; O.11,650)

Sec. 114-3171.05. Echo Valley Drive—Fleur Drive to west city limits.

Echo Valley Drive, on the north side, from Fleur Drive to the west city limits, no parking any time.
(O.14,855)

Sec. 114-3172. Edgemont Street—Southwest Twelfth Street to Heliotrope Drive.

Edgemont Street, on the north side, from Southwest Twelfth Street to a point 50 feet west thereof, no parking any time.

Edgemont Street, on the south side, from Southwest Twelfth Street to Heliotrope Drive, no parking any time.
(C62, § 30-1122; O.8084, 8776; C75, C79, § 27-1145; C91, § 27-2139; O.11,650, 14,339)

Sec. 114-3173. Edison Avenue—South Union Street to Southwest Second Street.

Edison Avenue, on the south side, from South Union Street to Southwest First Street, school passenger loading and unloading 7:00 a.m. to 5:00 p.m., school days; no parking at all other times.

Edison Avenue, on the south side, from Southwest First Street to Southwest Second Street, no parking any time.
(C79, § 27-1145.01; O.9849, 9971; C91, § 27-2140; O.11,650, 11,892)

Sec. 114-3174. East Edison Avenue—South Union Street to Southeast Fourteenth Court.

East Edison Avenue, on the north side, from South Union Street to a point 135 feet west of Southeast First Street, no parking any time.

East Edison Avenue, on the south side, from Southeast First Street to a point 95 feet east thereof, no parking any time.

East Edison Avenue, on the north side, from Southeast First Street to Southeast Fourth Street, no parking any time.

East Edison Avenue, on the south side, from a point 75 feet west of Southeast Third Street to Southeast Third Street, no parking any time.

East Edison Avenue, on the south side, from Southeast Sixth Street to Southeast Ninth Street, no parking any time.

East Edison Avenue, on the north side, from Southeast Sixth Street to a point 75 feet east thereof, no parking any time.

East Edison Avenue, on the north side, from a point 100 feet west of Southeast Ninth Street to Southeast Ninth Street, no parking any time.

East Edison Avenue, on the south side, from Southeast Fourteenth Street to a point 50 feet east thereof, no parking any time.

East Edison Avenue, on the north side, from Southeast Fourteenth Street to Southeast Fourteenth Court, no parking any time.
(C62, § 30-1123; O.8084; C75, § 27-1146; O.9496; C79, § 27-1146; O.10,111, 10,598; C85, § 27-1146; O.11,476; C91, § 27-2141; O.11,650, 13,833, 14,491, 14,518 (installed 5/21/07, 3/8/16), 16,171, 16,437)

Sec. 114-3175. Edwards Avenue—Southwest Twenty-ninth Street to Southwest Sixty-third Street.

Edwards Avenue, on the north side, from Southwest Twenty-ninth Street to Mahaska Parkway, no parking any time.

Edwards Avenue, on the south side, from Southwest Sixty-first Street to Southwest Sixty-third Street, no parking any time.

Edwards Avenue, on the north side, from Southwest Sixty-third Street to a point 50 feet east thereof, no parking any time.
(C79, § 27-1146.01; O.9849, 10,598; C91, § 27-2142; O.11,650)

Sec. 114-3176. Elder Lane—Southwest Ninth Street to Wakonda Parkway.

Elder Lane, on the north side, from Southwest Ninth Street to a point 350 feet west thereof, no parking 7:00 a.m. to 6:00 p.m.

Elder Lane, on the south side, from Southwest Ninth Street to Wakonda Parkway, no parking any time.

Elder Lane, on the north side, from Southwest Twelfth Street to a point 150 feet west thereof, no parking any time.

Elder Lane, on the north side, from Southwest Fourteenth Street to a point 50 feet east thereof, no parking any time.
(C62, § 30-1124; O.8084; C75, § 27-1147; O.9405; C79, § 27-1147; O.9886, 10,373, 10,638; C91, § 27-2143; O.11,650)

Sec. 114-3177. Elizabeth Avenue—East Twenty-second Street to East Twenty-fifth Street.

Elizabeth Avenue, on the north side, from Avenue Frederick M. Hubbell to East Twenty-fifth Street, no parking any time.

Elizabeth Avenue, on the north side, from Searle Street to a point 100 feet west thereof, no parking any time.

Elizabeth Avenue, on the south side, from East Twenty-second Street to Searle Street, no parking any time.

Elizabeth Avenue, on the north side, from East Twenty-second Street to a point 50 feet east thereof, no parking any time.

Elizabeth Avenue, on the south side, from East Twenty-third Street to a point 75 feet east thereof, no parking any time.

Elizabeth Avenue, on the south side, from East Twenty-fifth Street to a point 40 feet west thereof, no parking any time.
(C62, § 30-1125; O.8084; C75, C79, § 27-1148; O.10,123; C91, § 27-2144; O.11,650, 13,380; C00, § 114-3177; O.14,437, 14,518 (installed 7/22/13), 16,171)

Sec. 114-3178. Elmwood Drive—Thirty-first Street to Thirty-fourth Street.

Elmwood Drive, on the north side, from Thirty-first Street to Thirty-fourth Street, no parking any time.
(C79, § 27-1148.01; O.9849; C91, § 27-2145; O.11,650)

Sec. 114-3179. Elm Street—Dead end east of Southwest Sixth Street to Southwest Seventh Street.

Elm Street, on both sides, from the dead end east of Southwest Sixth Street to Southwest Seventh Street, no parking any time.
(C62, § 30-1126; O.8084; C75, C79, C85, § 27-1149; O.11,347; C91, § 27-2146; O.11,650, 14,204, 14,437, 14,982, 15,790)

Sec. 114-3180. East Elm Street—Southeast First Street to Southeast Thirty-sixth Street.

East Elm Street, on the north side, from a point 117 feet east of Southeast Second Street to a point 72 feet east thereof, loading zone, 20 minute limit.

East Elm Street, on the south side, from a point 196 feet east of Southeast Second Street to a point 24 feet east thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in section 114-616(a) of this Code.

East Elm, on the north side, from a point 125 feet west of Southeast Fourth Street to a point 62 feet east thereof, loading zone, 20 minute limit.

East Elm, on the south side, from a point 84 feet west of Southeast Fourth Street to a point 24 feet east thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in section 114-616(a) of this Code.

East Elm Street, on both sides, from Southeast Fourth Street to Southeast Fifth Street, no parking any time.

East Elm Street, on both sides, from Southeast Seventh Street to Southeast Tenth Street, no parking any time.

East Elm Street, on the south side, from Southeast Eighteenth Street to Southeast Nineteenth Street, no parking any time.

East Elm Street, on the south side, from Southeast Twenty-sixth Street to Southeast Twenty-eighth Street, no parking any time.

East Elm Street, on the north side, from Southeast Twenty-ninth Street to a point 330 feet east of Southeast Twenty-ninth Court, no parking any time.

East Elm Street, on the south side, from Southeast Thirty-fifth Street to Southeast Thirty-sixth Street, no parking any time.
(C62, § 30-1126.02; O.8468; C75, C79, § 27-1149.01; O.10,123, 10,402; C91, § 27-2147; O.11,650, 13,954, 15,404, 15,926, 16,370)

Sec. 114-3181. Emma Avenue—South Union Street to Southwest Twenty-ninth Street.

Emma Avenue, on the south side, from South Union Street to Southwest Second Street, no parking any time.

Emma Avenue, on the north side, from Southwest Second Street to a point 50 feet east thereof, no parking any time.

Emma Avenue, on the south side, from Southwest Fifth Street to Southwest Ninth Street, no parking any time.

Emma Avenue, on the north side, from Southwest Fifth Street to a point 50 feet west thereof, no parking any time.

Emma Avenue, on the north side, from Southwest Ninth Street to a point 50 feet east thereof, no parking any time.

Emma Avenue, on the south side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.

Emma Avenue, on the north side, from Southwest Ninth Street to Southwest Sixteenth Street, no parking any time.

Emma Avenue, on the south side, from a point 50 feet east of Southwest Fourteenth Street to Southwest Fourteenth Street, no parking any time. Emma Avenue, on the north side, from Southwest Twenty-third Street to Southwest Twenty-sixth Street, no parking any time.

Emma Avenue, on the south side, from Southwest Twenty-sixth Street to Southwest Twenty-ninth Street, no parking any time.
(C62, § 30-1126.01; O.8345; C75, § 27-1149.02; O.9226, 9325; C79, § 27-1149.02; O.9886, 10,399, 10,598; C91, § 27-2148; O.11,650, 14,102, 14,518 (installed 6/17/19), 16,171, 16,352)

Sec. 114-3182. East Emma Avenue—South Union Street to Southeast Thirty-fifth Court.

East Emma Avenue, on the north side, from South Union Street to Southeast Third Street, no parking any time.

East Emma Avenue, on the south side, from Southeast Third Street to Southeast Third Court, no parking any time.

East Emma Avenue, on the north side, from Southeast Eighth Street to a point 100 feet east thereof, no parking any time.

East Emma Avenue, on the north side, from Southeast Fourteenth Street to a point 50 feet west thereof, no parking any time.

East Emma Avenue, on the south side, from Southeast Eighth Street to Southeast Fourteenth Street, no parking any time.

East Emma Avenue, on the south side, from the dead end west of Southeast Sixteenth Street to the dead end east of Southeast Seventeenth Court, no parking any time.

East Emma Avenue. on the north side, from Southeast Thirty-fifth Street to Southeast Thirty-fifth Court, no parking any time.
(C62, § 30-1127; O.8084, 8167; C75, § 27-1150; O.9420; C79, § 27-1150; O.10,598; C85, § 27-1150; O.11,302; C91, § 27-2149; O.11,650, 13,239, 14,322, 16,418)

Sec. 114-3183. Enden Lane—Dead end west of Hickory Hill Lane to Winegardner Road.

Enden Lane, on the south side, from a point 135 feet west of Hickory Hill Lane to Winegardner Road, no parking any time.

Enden Lane, on the north side, from Hickory Hill Lane to a point 60 feet east thereof, no parking any time.

Enden Lane, on the north side, from Winegardner Road to a point 50 feet west thereof, no parking any time.
(C79, § 27-1150.01; O.9685; C91, § 27-2150; O.11,650, 14,071, 14,087)

Sec. 114-3184. Enos Avenue—Eighth Street to Fifteenth Street.

Enos Avenue, on the north side, from Eighth Street to Ninth Street, no parking any time.

Enos Avenue, on the north side, from Twelfth Street to Fourteenth Street, no parking any time.

Enos Avenue, on the south side, from Fourteenth Street to Fifteenth Street, no parking any time.

Enos Avenue, on the north side, from Fourteenth Street to a point 50 feet west thereof, no parking any time.
(C62, § 30-1128; O.8084; C75, C79, § 27-1151; O.10,123, 10,402, 10,591; C91, § 27-2151; O.11,650, 13,681, 16,418)

Sec. 114-3185. Euclid Avenue—First Street to Sixth Avenue.

Euclid Avenue, on both sides, from First Street to Third Street, no parking any time.
(C62, § 30-1129; O.8084; C75, § 27-1152; O.9343; C79, § 27-1152; O.10,476; C85, § 27-1152; O.11,056; C91, § 27-2152; O.11,650, 11,667, 16,541)

Sec. 114-3186. Euclid Avenue—Sixth Avenue to Martin Luther King Jr Parkway.

Euclid Avenue, on both sides, from Sixth Avenue to Martin Luther King Jr Parkway, no parking any time.
(C62, § 30-1130; O.8084; C75, C79, § 27-1153; C91, § 27-2153; O.11,650, 11,935)

Sec. 114-3187. Euclid Avenue—Post Street to Forty-eighth Place.

Euclid Avenue, on both sides, from Thirtieth Street to Douglas Avenue, no parking any time.

Euclid Avenue, on the north side, from Beaver Avenue to Forty-seventh Street, no parking any time.

Euclid Avenue, on the south side, from Forty-eighth Street to Forty-eighth Place, no parking any time.
(C62, § 30-1131; O.8084, 8529; C75, § 27-1154; O.9015; C79, § 27-1154; O.9886; C91, § 27-2154; O.11,650)

Sec. 114-3188. East Euclid Avenue—First Street to East Forty-second Street.

East Euclid Avenue, on both sides, from First Street to Avenue Frederick M. Hubbell, no parking any time.

East Euclid Avenue, on the south side, from East Thirty-fifth Street to East Thirty-seventh Street, no parking any time.

East Euclid Avenue, on the north side, from East Thirty-fifth Street to a point 50 feet east thereof, no parking any time.

East Euclid Avenue, on the south side, from East Thirty-seventh Street to a point 50 feet east thereof, no parking any time.

East Euclid Avenue, on the north side, from East Thirty-seventh Street to East Thirty-eighth Street, no parking any time.

East Euclid Avenue, on the north side, from Williams Street to a point 50 feet west thereof, no parking any time.

East Euclid Avenue, on the south side, from East Fortieth Street to East Forty-second Street, no parking any time.
(C62, § 30-1132; O.8084; C75, C79, § 27-1155; O.9685, 10,026, 10,057; C85, § 27-1155; O.10,896; C91, § 27-2155; O.11,650; C00, § 114-3188; O.14,518 (installed 6/14/06, 7/9/19), 16,171)

Sec. 114-3189. South Euclid Avenue Frontage Road—East Euclid Avenue to northwestern railroad tracks.

South Euclid Avenue Frontage Road, on the north side, from a point 810 feet east of East Fourteenth Street to a point 1,160 feet east thereof, no parking any time.
(C62, § 30-1132.01; O.8832; C75, C79, § 27-1155.01; C91, § 27-2156; O.11,650)

Sec. 114-3190. Evans Street—Southwest Tenth Street to Southwest Seventeenth Street.

Evans Street, on the south side, from Southwest Tenth Street to Southwest Thirteenth Street, no parking any time.

Evans Street, on the north side, from Southwest Thirteenth Street to a point 50 feet east thereof, no parking any time.

Evans Street, on the north side, from Southwest Fifteenth Street to Southwest Seventeenth Street, no parking any time.
(C79, § 27-1155.02; O.9886; C91, § 27-2157; O.11,650, 14,226)

Sec. 114-3191. Evergreen Avenue—Indianola Avenue to dead end.

Evergreen Avenue, on the north side, from Indianola Avenue to a point 775 feet east thereof, no parking any time.

Evergreen Avenue, on the north side, from a point 775 feet east of Indianola Avenue to a point 200 feet east thereof, no stopping or standing.

Evergreen Avenue, on the north side, from a point 975 feet east of Indianola Avenue to Southeast Twenty-fourth Street, no parking any time.

Evergreen Avenue, on the south side, from a point 775 feet east of Indianola Avenue to a point 200 feet east thereof, no stopping or standing 7:00 a.m. to 5:00 p.m. school days.

Evergreen Avenue, on the south side, from a point 265 feet east of Southeast Nineteenth Street to a point 305 feet east thereof, no parking any time.

Evergreen Avenue, on both sides, from East Watrous Avenue to Southeast Thirty-fourth Street, no parking any time.

Evergreen Avenue, on the south side, from Southeast Thirty-fourth Street to Dead End, no parking any time.
(C79, § 27-1155.03; O.10,264, 10,323; C85, § 27-1155.03; O.11,302; C91, § 27-2158; O.11,650, 14,057, 14,322, 15,836)

Sec. 114-3192. Fagen Drive—Thirty-eighth Street to Beaver Avenue.

Fagen Drive, on the south side, from Thirty-eighth Street to Beaver Avenue, no parking any time.

Fagen Drive, on the north side, from Beaver Avenue to a point 235 feet east thereof, no parking any time.
(C62, § 30-1133; O.8084; C75, C79, § 27-1156; O.9909, 10,207; C91, § 27-2159; O.11,650)

Sec. 114-3193. Fairlane Drive—East Park Avenue to Parmer Drive.

Fairlane Drive, on the east side, from East Park Avenue to a point 75 feet south thereof, no parking any time.

Fairlane Drive, on the west side, from East Park Avenue to Parmer Drive, no parking any time.
(C62, § 30-1133.01; O.8389, 8432; C75, C79, § 27-1156.01; C91, § 27-2160; O.11,650)

Sec. 114-3194. Falcon Drive—Thirteenth Street to Mulberry Street.

Falcon Drive, on the west side, from Mulberry Street to a point 25 feet north thereof, no parking any time.

Falcon Drive, on the east side, from Mulberry Street to a point 15 feet north thereof, no parking any time.

Falcon Drive, on the east side, from a point 70 feet north of Mulberry Street to a point 70 feet north thereof, no parking any time.

Falcon Drive, on the east and south sides, from a point 140 feet north of Mulberry Street to Thirteenth Street, no parking any time.

Falcon Drive, on the west and north sides, from a point 145 feet north of Mulberry Street to Thirteenth Street, no parking any time.
(C62, § 30-1133.02; O.8693, 8867; C75, § 27-1156.02; O.9292; C79, § 27-1156.02; C85, § 27-1156.02; O.11,516; C91, § 27-2161; O.11,650, 15,140, 15,240)

Sec. 114-3194.5. Fanny Pruce Drive—Cummins Parkway to Sixty-third Street.

Fanny Pruce Drive, on the south side, from Cummins Parkway to Sixty-third Street, no parking any time.

Fanny Pruce Drive, on the north side, from Cummins Parkway to a point 150 feet east of Sixty-third Street, no parking any time.

Fanny Pruce Drive, on the north side, from Sixty-third Street to a point 50 feet east thereof, no parking any time.
(O.13,714)

Sec. 114-3195. Farwell Road—Arthur Avenue to Avenue Frederick M. Hubbell.

Farwell Road, on the east and north side, from Arthur Avenue to Avenue Frederick M. Hubbell, no parking any time.

Farwell Road, on the west side, from Arthur Avenue to a point 50 feet north thereof, no parking any time.

Farwell Road, on the south side, from Avenue Frederick M. Hubbell to a point 60 feet west thereof, no parking any time.
(C79, § 27-1156.03; O.9795, 10,123; C85, § 27-1156.03; O.11,237; C91, § 27-2162; O.11,650, 14,518 (installed 11/17/16, 1/8/18), 16,171)

Sec. 114-3195.05. Fayrdale Drive—Sweetwater Drive to dead end.

Fayrdale Drive, on the south side, from Sweetwater Drive to and including the cul-de-sac, no parking any time.
(O.14,322)

Sec. 114-3196. Filmore Street—East River Drive to East Thirteenth Street.

Filmore Street, on the south side, from Pennsylvania Avenue to East Ninth Street, no parking any time.

Filmore Street, on the north side, from East Ninth Street to a point 50 feet west thereof, no parking any time.

Filmore Street, on the north side, from Pennsylvania Avenue to a point 75 feet east thereof, no parking any time.

Filmore Street, on the north side, from East Ninth Street to East Thirteenth Street, no parking any time.
(C62, § 30-1134; O.8084; C75, § 27-1157; O.9464, 10,402; C91, § 27-2163; O.11,650, 13,375, 13,387, 13,727, 14,855)

Sec. 114-3197. Flamingo Court—Sherman Boulevard to dead end east.

Flamingo Court, on the south side, from Sherman Boulevard to a point 200 feet east thereof and any part of the cul-de-sac, no parking any time.
(C79, § 27-1157.01; O.9849; C91, § 27-2164; O.11,650)

Sec. 114-3198. Fleming Avenue—Thirtieth Street to dead end west of Forty-eighth Street.

Fleming Avenue, on the south side, from Thirtieth Street to a point 50 feet west thereof, no parking any time.

Fleming Avenue, on the north side, from Thirtieth Street to Lower Beaver Road, no parking any time.

Fleming Avenue, on the south side, from a point 50 feet east of Lower Beaver Road to Lower Beaver Road, no parking any time.

Fleming Avenue, on the south side, from Forty-eighth Street to a point 100 feet west thereof and any part of the cul-de-sac, no parking any time.
(C79, § 27-1157.02; O.9849; C91, § 27-2165; O.11,650, 16,233, 16,327)

Sec. 114-3199. East Fleming Avenue—East Fourteenth Street to East Sixtieth Street.

East Fleming Avenue, on the south side, from a point 135 feet east of East Fourteenth Street to a point 240 feet east thereof, no parking any time.

East Fleming Avenue, on the south side, from East Fourteenth Street to a point 50 feet east thereof, no parking any time.

East Fleming Avenue, on the north side, from East Fourteenth Street to East Sixteenth Street, no parking any time.
(C79, § 27-1157.03; O.9849, 10,598; C91, § 27-2166; O.11,650, 11,760, 14,336)

Sec. 114-3200. Fleetwood Drive—Truber Place to dead end west.

Fleetwood Drive, on the south side, from Truber Place to a point 600 feet west thereof, no parking any time.
(C79, § 27-1157.04; O.10,111, 10,162; C91, § 27-2167; O.11,650, 14,339)

Sec. 114-3201. Fleur Drive—Locust Street to County Line Road.

Fleur Drive, on the west side, from West Martin Luther King Jr Parkway to County Line Road, no parking any time.

Fleur Drive, on the east side, from West Martin Luther King Jr Parkway to County Line Road, no parking any time.

Fleur Drive, on both sides, from Locust Street southwesterly including the north bound and south bound ramp systems to its reconnection with the north-south bound Fleur Drive, no parking any time.
(C62, § 30-1135; O.8084; C75, § 27-1158; O.9106; C79, § 27-1158; C91, § 27-2168; O.11,650, 13,643, 14,418)

Sec. 114-3202. Forest Avenue—Michigan Street to Second Avenue.

Forest Avenue, on the south side, from Michigan Street to Second Avenue, no parking any time.

Forest Avenue, on the north side, from Ohio Street to Illinois Street, no parking any time.

Forest Avenue, on the north side, from Second Avenue to a point 60 feet east thereof, no parking any time.
(C62, § 30-1136; O.8084, 8893; C75, § 27-1159; O.9356; C79, § 27-1159; C91, § 27-2169; O.11,650, 13,540)

Sec. 114-3203. Forest Avenue—Second Avenue to Ninth Street.

Forest Avenue, on the south side, from Second Avenue to a point 150 feet west thereof, no parking any time.

Forest Avenue, on the north side, from Second Avenue to Fifth Avenue, including the diagonal section of Forest Avenue, no parking any time.

Forest Avenue, on the south side, from Fifth Avenue to a point 140 feet west thereof, no parking any time.

Forest Avenue, on the south side, from Sixth Avenue to a point 150 feet west thereof, no parking any time.

Forest Avenue, on the south side, from Sixth Avenue to Seventh Street, no parking any time.

Forest Avenue, on both sides, from Eighth Street to a point 50 feet east thereof, no parking any time.

Forest Avenue, on the south side, from Eighth Street to a point 50 feet west thereof, no parking any time.

Forest Avenue, on the north side, from Eighth Street to Ninth Street, no parking any time.
(C62, § 30-1137; O.8084; C75, § 27-1160; O.9513; C79, § 27-1160; O.9765, 9851, 10,075, 10,402, 10,597; C85, § 27-1160; O.11,522; C91, § 27-2170; O.11,650, 11,904, 13,115, 13,425, 14,321, 16,171, 16,174)

Sec. 114-3204. Forest Avenue—Ninth Street to Sixteenth Street.

Forest Avenue, on the south side, from Ninth Street to Twelfth Street, no parking any time.

Forest Avenue, on the north side, from a point 50 feet east of Tenth Street to a point 50 feet west of Tenth Street, no parking any time.

Forest Avenue, on the south side, from Twelfth Street to Thirteenth Street, no parking 7:00 a.m. to 6:00 p.m.

Forest Avenue, on the north side, from a point 80 feet west of Fourteenth Street to a point 35 feet west thereof, commercial loading zone.

Forest Avenue, on the south side, from Thirteenth Street to Sixteenth Street, no parking any time.
(C62, § 30-1138; O.8084, 8273; C75, § 27-1161; O.9235, 9513; C79, § 27-1161; O.9935, 10,567; C91, § 27-2171; O.11,650)

Sec. 114-3205. Forest Avenue—Sixteenth Street to Twenty-third Street.

Forest Avenue, on the south side, from Sixteenth Street to a point 130 feet west of Nineteenth Street, no parking any time.

Forest Avenue, on the north side, from a point 380 feet west of Seventeenth Street to a point 170 feet west thereof, school bus loading zone 7:00 a.m. to 5:00 p.m. school days.

Forest Avenue, on the north side, from a point 100 feet east of Nineteenth Street to Martin Luther King Jr Parkway, no parking any time.

Forest Avenue, on the north side, from Martin Luther King Jr Parkway to Twenty-third Street, two-hour parking 9:00 a.m. to 4:00 p.m.

Forest Avenue, on the north side, from Martin Luther King Jr Parkway to Twenty-third Street, no parking 4:00 p.m. to 6:00 p.m., Monday through Friday.

Forest Avenue, on the south side, from a point 130 feet west of Nineteenth Street to Twenty-third Street, two-hour parking 9:00 a.m. to 4:00 p.m.

Forest Avenue, on the south side, from Twenty-first Street to Twenty-third Street, no parking 7:00 a.m. to 9:00 a.m., Monday through Friday.

Forest Avenue, on the north side, from a point 50 feet east of Twenty-third Street to Twenty-third Street, no parking any time.

Forest Avenue, on the north side, from a point 50 feet east of Twenty-ninth Street to a point 50 feet west of Twenty-ninth Street, no parking any time.
(C62, § 30-1139; O.8084, 8858; C75, § 27-1162; O.9267; C79, § 27-1162; C91, § 27-2172; O.11,650, 11,935, 13,482; C00, § 114-3205; O.14,421, 14,518 (installed 4/21/09), 15,701, 16,171)

Sec. 114-3206. Forest Avenue—Twenty-third Street to Thirtieth Street.

Forest Avenue, on the south side, from Twenty-third Street to Twenty-fourth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

Forest Avenue, on the north side, from Twenty-fourth Street to Twenty-fifth Street, no parking 4:00 p.m. to 6:00 p.m., Monday through Friday.

Forest Avenue, on the north side, from Twenty-third Street to a point 60 feet west thereof, no parking any time.

Forest Avenue, on the north side, from a point 60 feet west of Twenty-third Street to a point 80 feet west thereof, no parking 4:00 p.m. to 6:00 p.m., Monday through Friday.

Forest Avenue, on the north side, from a point 130 feet west of Twenty-third Street to a point 140 feet west thereof, no parking 4:00 p.m. to 6:00 p.m., Monday through Friday.

Forest Avenue, on the north side, from a point 270 feet west of Twenty-third Street to a point 50 feet east of Twenty-fourth Street, no parking 4:00 p.m. to 6:00 p.m., Monday through Friday.

Forest Avenue, on the south side, from Twenty-third Street to a point 60 feet east of Twenty-fourth Street, no parking 7:00 a.m. to 9:00 a.m., Monday through Friday.

Forest Avenue, on the north side, from Twenty-fourth Street to Twenty-fifth Street, no parking any time.

Forest Avenue, on the north side, from Twenty-fifth Street to a point 125 feet west thereof, no parking any time.

Forest Avenue, on the north side, from a point 125 feet west of Twenty-fifth Street to a point 100 feet west thereof, loading zone.

Forest Avenue, on the north side, from a point 225 feet west of Twenty-fifth Street to Thirtieth Street, no parking any time.

Forest Avenue, on the south side, from a point 60 feet east of Twenty-fourth Street to Thirtieth Street, no parking any time.
(C62, § 30-1140; O.8084, 8484, 8878; C75, § 27-1163; O.9009, 9295, 9513; C79, § 27-1163; O.9803, 9904; C91, § 27-2173; O.11,650, 11,712, 11,875, 13,256; C00, § 114-3206; O.14,458, 14,518 (installed 4/13/06, 6/29/06, 4/21/09), 14,608, 14,830, 15,338, 15,415, 15,614, 15,701, 16,171, 16,279, 16,491)

Sec. 114-3207. Forest Avenue—Thirtieth Street to Sixty-third Street.

Forest Avenue, on the north side, from Thirtieth Street to a point 75 feet west thereof, no parking any time.

Forest Avenue, on the north side, from a point 75 feet west of Thirtieth Street to Thirty-second Street, no parking 7:00 a.m. to 6:00 p.m., Monday through Friday.

Forest Avenue, on the north side, from Thirty-second Street to a point 50 feet west thereof, no parking any time.

Forest Avenue, on the north side, from a point 50 feet west of Thirty-second Street to a point 75 feet east of Thirty-fourth Street, no parking 7:00 a.m. to 6:00 p.m., Monday through Friday.

Forest Avenue, on the north side, from a point 75 feet east of Thirty-fourth Street to Thirty-fourth Street, no parking any time.

Forest Avenue, on the south side, from Thirtieth Street to a point 145 feet west thereof, no parking any time.

Forest Avenue, on the south side, from Thirtieth Street to Thirty-first Street, no parking 7:00 a.m. to 9:00 a.m., Monday through Friday.

Forest Avenue, on the south side, from Thirty-first Street to a point 50 feet east thereof, no parking any time.

Forest Avenue, on the south side, from a point 50 feet east of Thirty-first Street to a point 125 feet west of Thirty-second Street, no parking 7:00 a.m. to 9:00 a.m., Monday through Friday.

Forest Avenue, on the south side, from Thirty-second Street to a point 40 feet east thereof, no parking any time.

Forest Avenue, on the south side, from Thirty-second Street to a point 125 feet west thereof, no parking any time.

Forest Avenue, on the south side, from a point 125 feet west of Thirty-second Street to a point 75 feet east of Thirty-fourth Street, no parking 7:00 a.m. to 9:00 a.m., Monday through Friday.

Forest Avenue, on the south side, from a point 75 feet east of Thirty-fourth Street to a point 225 feet west of Thirty-fourth Street, no parking any time.

Forest Avenue, on the north side, from Thirty-fourth Street to Forty-eighth Street, no parking any time.

Forest Avenue, on both sides, from a point 150 feet east of Randall Place to a point 200 feet west of Randall Place, no parking any time.

Forest Avenue, on the south side, from Thirty-ninth Street to a point 50 feet west thereof, no parking any time.

Forest Avenue, on the south side, from Beaver Avenue to a point 100 feet west thereof, no parking any time.

Forest Avenue, on the south side, from a point 50 feet east of Forty-first Street to a point 100 feet west of Forty-second Street, no parking any time.

Forest Avenue, on the south side, from Forty-sixth Street to a point 75 feet west thereof, no parking any time.

Forest Avenue, on the north side, from Fifty-fifth Street to a point 50 feet west thereof, no parking any time.

Forest Avenue, on the south side, from Fifty-fifth Street to Merle Hay Road, no parking any time.

Forest Avenue, on the north side, from a point 60 feet east of Fifty-sixth Street to Fifty-sixth Street, no parking any time.

Forest Avenue, on the north side, from Merle Hay Road to a point 75 feet east thereof, no parking any time.

Forest Avenue, on the north side, from Merle Hay Road to Sixtieth Street, no parking any time.

Forest Avenue, on the south side, from Sixty-third Street to a point 50 feet east thereof, no parking any time.

Forest Avenue, on the north side, from Cummins Parkway to Sixty-third Street, no parking any time.

(C62, § 30-1141; O.8084, 8484, 8652; C75, § 27-1164; O.9021, 9117, 9255, 9553; C79, § 27-1164; O.9685, 9849, 9957, 10,207, 10,386, 10,638, 10,706; C85, § 27-1164; O.11,248; C91, § 27-2174; O.11,650; C00, § 114-3207; O.14,518 (installed 2/8/08, 5/4/09, 1/11/13, 8/10/18), 15,614, 15,701, 15,726, 16,171, 16,304, 16,511)

Sec. 114-3208. Forest Drive—Grand Avenue to Twenty-ninth Street.

Forest Drive, on the south side, from Park Place to a point 75 feet east thereof, no parking any time.

Forest Drive, on the east side, from a point 275 feet south of Grand Avenue to a point 25 feet south thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in subsection 114-616(a) of this chapter.

Forest Drive, on the east side, from a point 300 feet south of Grand Avenue to a point 50 feet south thereof, is designated Official State Highway Patrol parking and is subject to the same prohibition as is found in subsection 114-614 of this chapter.

Forest Drive, on the west side, from Grand Avenue to a point 50 feet south thereof, no parking any time.

Forest Drive, on the east side, from Grand Avenue to a point 300 feet south thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Forest Drive, on the east side, from a point 300 feet south of Grand Avenue to Allen Place, no parking any time.

Forest Drive, on the north side, from Allen Place to Twenty-seventh Street, no parking any time.

Forest Drive, on the south side, from Twenty-seventh Street to Twenty-eighth Street, no parking any time.

Forest Drive, on the north side, from Twenty-ninth Street to a point 70 feet east thereof, no parking any time.
(C62, § 30-1142; O.8084; C75, C79, § 27-1165; O.10,207, 10,321, 10,526, 10,575, 10,591; C91, § 27-2175; O.11,650, 13,103; C00, § 114-3208; O.14,270, 14,518 (installed 12/15/10), 16,171)

Sec. 114-3209. Forestdale Drive—Forest Avenue to Maquoketa Drive.

Forestdale Drive, on the west side, from Forest Avenue to Lanewood Drive, no parking any time.

Forestdale Drive, on the east side, from Forest Avenue to a point 90 feet north thereof, no parking any time.

Forestdale Drive, on the east side, from Lanewood Drive to Maquoketa Drive, no parking any time.
(C79, § 27-1165.01; O.9886; C91, § 27-2176; O.11,650; C00, § 114-3209; O.14,518 (installed 5/5/09), 15,947, 16,171)

Sec. 114-3210. Foster Drive—Forty-second Street to Southwest Forty-second Street.

Foster Drive, on the north and west side, from Forty-second Street to Glenview Drive, no parking any time.

Foster Drive, on the south side, from Forty-second Street to a point 150 feet west thereof, no parking any time.
(C62, § 30-1143; O.8084, 8299; C75, C79, § 27-1166; C91, § 27-2177; O.11,650; C00, § 114-3210; O.14,518 (installed 1/21/09), 16,171)

Sec. 114-3211. Four Mile Drive—East Jefferson Avenue to Williams Street.

Four Mile Drive, on the south side, from East Jefferson Avenue to Williams Street, no parking any time.
(C79, § 27-1166.01; O.9685; C91, § 27-2178; O.11,650)

Sec. 114-3212. Francis Avenue—Dead end east of Eighteenth Street to Sixty-second Street.

Francis Avenue, on the north side, from a point 370 feet east of Eighteenth Street to Martin Luther King Jr Parkway, no parking any time.

Francis Avenue, on the north side, from Thirtieth Street to a point 50 feet west thereof, no parking any time.

Francis Avenue, on the north side, from a point 50 feet west of Thirtieth Street to a point 450 feet west thereof school passenger loading and unloading, 7:00 a.m. to 5:00 p.m., school days.

Francis Avenue, on the north side, from a point 500 feet west of Thirtieth Street to Thirty-second Street, no parking any time.

Francis Avenue, on the south side, from Thirtieth Street to a point 75 feet west of Thirtieth Street, no parking any time.

Francis Avenue, on the south side, from a point 75 feet west of Thirtieth Street to Thirty-second Street, no stopping or standing, 7:00 a.m. to 5:00 p.m., school days.

Francis Avenue, on the south side, from Fifty-fifth Street to a point 60 feet west thereof, no parking any time.

Francis Avenue, on the north side, from Fifty-fifth Street to Merklin Way, no parking any time.

Francis Avenue, on the south side, from Merle Hay Road to Fifty-ninth Street, no parking any time.

Francis Avenue, on the south side, from Sixty-first Street to Sixty-second Street, no parking any time.
(C62, § 30-1144; O.8084, 8205, 8217, 8732; C75, C79, § 27-1167; O.9685, 10,123; C85, § 27-1167; O.11,315, 11,372; C91, § 27-2179; O.11,650, 11,935; C00, § 114-3212; O.13,972, 14,518 (installed 4/18/19), 16,171)

Sec. 114-3213. Francis Drive—Thirtieth Street to dead end west.

Francis Drive, on the south side, from Thirtieth Street to a point 730 feet east thereof, and any part of the cul-de-sac, no parking any time.

Francis Drive, on the north side, from Thirtieth Street to a point 75 feet east thereof, no parking any time.
(C79, § 27-1167.01; O.10,123; C91, § 27-2180; O.11,650)

Sec. 114-3214. Franklin Avenue—Ohio Street to Thirty-fourth Street.

Franklin Avenue, on the north side, from a point 300 feet east of Second Avenue to a point 95 feet east thereof, no parking any time.

Franklin Avenue, on the north side, from a point 170 feet east of Second Avenue to Arlington Avenue, no parking any time.

Franklin Avenue, on the south side, from Ohio Street to Sixth Avenue, no parking any time.

Franklin Avenue, on the south side, from a point 120 feet east of Seventh Street to Eleventh Street, no parking any time.

Franklin Avenue, on the north side, from a point 50 feet east of Seventh Street to a point 50 feet west of Seventh Street, no parking any time.

Franklin Avenue, on the north side, from a point 50 feet east of Eighth Street to a point 50 feet west of Eighth Street, no parking any time.

Franklin Avenue, on the north side, from Ninth Street to a point 50 feet east thereof, no parking any time.

Franklin Avenue, on the north side, from Sixteenth Street to Twenty-first Street, no parking any time.

Franklin Avenue, on the south side, from Martin Luther King Jr Parkway to a point 65 feet west thereof, no parking any time.

Franklin Avenue, on the south side, from Twenty-first Street to a point 25 feet east thereof, no parking any time.

Franklin Avenue, on the north side, from Twenty-fourth Street to Twenty-fourth Drive, no parking any time.

Franklin Avenue, on the north side, from Twenty-sixth Street to a point 50 feet west thereof, no parking any time.

Franklin Avenue, on the south side, from Twenty-sixth Street to Twenty-seventh Street, no parking any time.

Franklin Avenue, on the north side, from Twenty-seventh Street to a point 475 feet west thereof, no parking any time.

Franklin Avenue, on the south side, from Twenty-seventh Street to a point 40 feet west thereof, no parking any time.

Franklin Avenue, on the south side, from Thirty-fourth Street to a point 465 feet east thereof, no parking any time.
(C62, § 30-1145; O.8084, 8147, 8227, 8320, 8387; C75, § 27-1168; O.8970, 9566; C79, § 27-1168; O.9855, 10,123, 10,271, 10,418; C85, § 27-1168; O.11,340, 11,516, 11,552; C91, § 27-2181; O.11,650, 11,935, 13,239; C00, § 114-3214; O.14,250, 14,421, 14,518 (installed 11/21/06), 16,171, 16,174)

Sec. 114-3215. Franklin Avenue—Thirty-fourth Street to west city limits.

Franklin Avenue, on both sides, from Thirty-eighth Street to a point 75 feet west and east thereof, no parking any time.

Franklin Avenue, on the north side, from Fortieth Place to a point 85 feet west thereof, no parking any time.

Franklin Avenue, on the south side, from Mar Ella Trail to Merle Hay Road, no parking any time.

Franklin Avenue, on the north side, from a point 50 feet west of Beaver Avenue to a point 120 feet east of Beaver Avenue, no parking any time.

Franklin Avenue, on the north side, from Forty-seventh Street to a point 50 feet west thereof, no parking any time.

Franklin Avenue, on the north side, from Forty-eighth Street to a point 50 feet east thereof, no parking any time.

Franklin Avenue, on the north side, from a point 125 feet east of Forty-ninth Street to a point 50 feet west of Forty-ninth Street, no parking any time.

Franklin Avenue, on the north side, from a point 305 feet west of Forty-ninth Street to a point 195 feet west thereof, no parking any time.

Franklin Avenue, on the north side, from a point 50 feet east of Fiftieth Street to a point 75 feet west of Fiftieth Street, no parking any time.

Franklin Avenue, on the north side, from a point 50 feet east of Fifty-first Street to a point 50 feet west of Fifty-first Street, no parking any time.

Franklin Avenue, on the north side, from a point 50 feet east of Fifty-second Street to a point 50 feet west of Fifty-second Street, no parking any time.

Franklin Avenue, on the north side, from a point 50 feet east of Fifty-third Street to a point 50 feet west of Fifty-third Street, no parking any time.

Franklin Avenue, on the north side, from a point 90 feet east of Fifty-fifth Street to a point 65 feet west of Fifty-fifth Street, no parking any time.

Franklin Avenue, on the north side, from Merklin Way to a point 50 feet west of Merklin Way, no parking any time.

Franklin Avenue, on the north side, from a point 60 feet east of Fifty-ninth Street to a point 50 feet west of Fifty-ninth Street, no parking any time.

Franklin Avenue, on the south side, from a point 50 feet east of Fifty-ninth Street to a point 60 feet west of Fifty-ninth Street, no parking any time.

Franklin Avenue, on the north side, from Sixty-first Street to a point 125 feet east thereof, no parking any time.

Franklin Avenue, on the south side, from Sixty-first Street to a point 100 feet east thereof, no parking any time.

Franklin Avenue, on the north side, from Sixty-second street to a point 50 feet east thereof, no parking any time.

Franklin Avenue, on the north side, from Sixty-second Street to Sixty-third Street, no parking any time.

Franklin Avenue, on the south side, from Sixty-second Street to a point 50 feet west thereof, no parking any time.

Franklin Avenue, on the south side, from Sixty-third Street to a point 50 feet east thereof, no parking any time.
(C62, § 30-1146; O.8084, 8572; C75, § 27-1169; O.9045; C79, § 27-1169; O.10,018, 10,269, 10,526, 10,598; C85, § 27-1169; O.11,237; C91, § 27-2182; O.11,650, 11,760, 12,083, 13,317; C00, § 114-3215; O.13,893, 14,204, 14,322, 14,518 (installed 9/28/07, 10/7/13, 1/28/16), 15,991, 16,171, 16,174)

Sec. 114-3216. Frazier Avenue—Southwest Ninth Street to dead end west of Southwest Nineteenth Street.

Frazier Avenue, on the north side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.

Frazier Avenue, on the south side, from Southwest Ninth Street to Southwest Thirteenth Street, no parking any time.

Frazier Avenue, on the south side, from Southwest Fourteenth Street to a point 300 feet west of Southwest Nineteenth Street, no parking any time.
(C62, § 30-1146.01; O.8098; C75, C79, § 27-1170; O.9886, 10,598; C91, § 27-2183; O.11,650)

Sec. 114-3217. Frederick Avenue—Southwest Ninth Street to dead end west of Southwest Ninth Street.

Frederick Avenue, on the north side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.

Frederick Avenue, on the south side, from Southwest Ninth Street to a point 640 feet west thereof, no parking any time.
(C75, § 27-1170.01; O.9308; C79, § 27-1170.01; O.9849, 10,598; C91, § 27-2184; O.11,650)

Sec. 114-3218. Fremont Street—East Seventh Street to East Fifteenth Street.

Fremont Street, on the south side, from East Seventh Street to East Ninth Street, no parking any time.

Fremont Street, on the north side, from East Seventh Street to a point 50 feet east thereof, no parking any time.

Fremont Street, on the north side, from a point 50 feet east of East Seventh Street to a point 250 feet east thereof, passenger loading and unloading.

Fremont Street, on the north side, from a point 75 feet east of Pennsylvania Avenue to a point 50 feet west thereof, no parking any time.

Fremont Street, on the north side, from East Ninth Street to East Fourteenth Street, no parking any time.

Fremont Street, on the south side, from East Fourteenth Street to a point 50 feet west thereof, no parking any time.
(C62, § 30-1147; O.8084, 8108, 8394; C75, § 27-1171; O.9015; C79, § 27-1171; O.10,123, 10,276, 10,598; C85, § 27-1171; O.10,890, 11,027; C91, § 27-2185; O.11,650, 15,899)

Sec. 114-3219. Fulton Drive—South Union Street to Southwest Ninth Street.

Fulton Drive, on the north side, from South Union Street to a point 50 feet west thereof, no parking any time.

Fulton Drive, on the south side, from South Union Street to Southwest Ninth Street, no parking any time.

Fulton Drive, on the north side, from a point 60 feet east of Southwest First Street to a point 40 feet west of Southwest First Street, no parking any time.

Fulton Drive, on the north side, from a point 100 feet west of Courtland Drive to a point 150 feet west thereof, no parking any time.

Fulton Drive, on the north side, from Southwest Ninth Street to a point 75 feet east thereof, no parking any time.
(C62, § 30-1148; O.8084, 8878; C75, § 27-1172; O.9420; C79, § 27-1172; O.10,111; C85, § 27-1172; O.11,600; C91, § 27-2186; O.11,650, 11,663, 16,477)

Sec. 114-3220. East Fulton Drive—South Union Street to Southeast Fifth Street.

East Fulton Drive, on the south side, from South Union Street to a point 50 feet east thereof, no parking any time.

East Fulton Drive, on the north side, from South Union Street to Indianola Avenue, no parking any time.

East Fulton Drive, on the south side, from Indianola Avenue to a point 120 feet west thereof, no parking any time.

East Fulton Drive, on the south side, from Indianola Avenue to a point 400 feet east of Southeast Third Street, no parking any time.
(C62, § 30-1148.01; O.8227; C75, § 27-1172.01; O.9027; C79, § 27-1172.01; O.9994, 10,111; C91, § 27-2187; O.11,650; C00; O.14,518 (installed 5/21/07), 16,171)

Sec. 114-3220.1. Gannett Avenue—Southwest Forty-second Street to Fleur Drive.

Gannett Avenue, on the south side, from Southwest Forty-second Street to Southwest Thirty-seventh Street, no parking any time.

Gannett Avenue, on the north side, from Southwest Thirty-seventh Street to Fleur Drive, no parking any time.
(O.14,226)

Sec. 114-3220.5. Gannett Avenue—Fleur Drive to Southwest Forty-second Street.

Gannett Avenue, on the north side, from Fleur Drive to Southwest Thirty-fourth Street, no parking any time.

Gannett Avenue, on the south side, from a point 350 feet east of Southwest Twenty-eighth Street to a point 330 feet west of Southwest Twenty-eighth Street, no parking any time.

Gannett Avenue, on the north side, from the cul-de-sac east of Southwest Thirty-seventh Street to Southwest Thirty-seventh Street, no parking any time.

Gannett Avenue, on the south side, from Southwest Thirty-seventh Street to Southwest Forty-second Street, no parking any time.
(O.14,627, 16,437)

Sec. 114-3221. Garden Avenue—Eleventh Street to Lower Beaver Road.

Garden Avenue, on the south side, from Eleventh Street to a point 50 feet west thereof, no parking any time.

Garden Avenue, on the north side, from Eleventh Street to Twelfth Street, no parking any time.

Garden Avenue, on the north side, from Thirtieth Street to Lower Beaver Road, no parking any time.

Garden Avenue, on the south side from Lower Beaver Road to a point 50 feet east thereof, no parking any time.
(C62, § 30-1149; O.8084; C75, § 27-1173; O.9244, 9290; C79, § 27-1173; O.9849; C91, § 27-2188; O.11,650; C00, § 114-3221; O.14,518 (installed 10/4/13, 4/1/22), 16,171)

Sec. 114-3222. East Garden Avenue—East Twenty-sixth Street to East Forty-second Street.

East Garden Avenue, on the south side, from East Twenty-sixth Street to East Twenty-seventh Street, no parking any time.

East Garden Avenue, on the north side, from East Twenty-sixth Street to a point 95 feet east thereof, no parking any time.

East Garden Avenue, on the south side, from East Fortieth Street to East Forty-second Street, no parking any time.
(C79, § 27-1173.01; O.9685, 9770; C91, § 27-2189; O.11,650, 16,276)

Sec. 114-3223. Garden Ridge—Thirtieth Street to dead end east.

Garden Ridge, on the north side, from Thirtieth Street to a point 150 feet east thereof, and any part of the cul-de-sac, no parking any time.
(C79, § 27-1173.02; O.9849; C91, § 27-2190; O.11,650)

Sec. 114-3224. Garden Road—Southwest Twenty-third Street to Southwest Twenty-eighth Street.

Garden Road, on the north side, from Southwest Twenty-third Street to Southwest Twenty-eighth Street, no parking any time.
(C79, § 27-1173.03; O.10,207; C91, § 27-2191; O.11,650)

Sec. 114-3225. Garfield Avenue—East Ninth Street to East Thirty-seventh Court.

Garfield Avenue, on the south side, from East Ninth Street to a point 100 feet east of Idaho Street, no parking any time.

Garfield Avenue, on the north side, from 50 feet west of East Twelfth Street to 50 feet east of East Twelfth Street, no parking any time.

Garfield Avenue, on the south side, from a point 100 feet east of Idaho Street to a point 65 feet west of East Fifteenth Street, passenger loading and unloading, ten minutes only.

Garfield Avenue, on the north side, from a point 75 feet west of East Thirteenth Street to a point 75 feet east of East Thirteenth Street, no parking any time.

Garfield Avenue, on the north side, from a point 50 feet west of East Fourteenth Street to a point 50 feet east of East Fourteenth Street, no parking any time.

Garfield Avenue, on the south side, from a point 200 feet east of Idaho Street to East Fifteenth Street, passenger loading and unloading.

Garfield Avenue, on the north side, from East Seventeenth Street to McCormick Street, no parking any time.

Garfield Avenue, on the south side, from a point 65 west of East Fifteenth Street to McCormick Street, no parking any time.

Garfield Avenue, on the south side, from East Seventeenth Street to East Eighteenth Street, no parking any time.

Garfield Avenue, on the north side, from Idaho Street to a point 50 feet west of East Fifteenth Street, no stopping or standing 7:00 a.m. to 5:00 p.m. school days.

Garfield Avenue, on the north side, from a point 50 feet west of East Fifteenth Street to a point 65 feet east of East Fifteenth Street, no parking any time.

Garfield Avenue, on the north side, from a point 30 feet west of Dixon Street to a point 60 feet east of Dixon Street, no parking any time.

Garfield Avenue, on the south side, from East Twenty-second Street to Avenue Frederick M. Hubbell, no parking any time.

Garfield Avenue, on the south side, from a point 50 feet west of East Twenty-third Street to a point 50 feet east of East Twenty-third Street, no parking any time.

Garfield Avenue, on the north side, from Avenue Frederick M. Hubbell to a point 120 feet east of East Twenty-fifth Street, no parking any time.

Garfield Avenue, on the south side, from East Twenty-fifth Street to East Thirty-third Street, no parking any time.

Garfield Avenue, on the north side, from a point 70 feet west of East Twenty-sixth Street to a point 70 feet east of East Twenty-sixth Street, no parking any time.

Garfield Avenue, on the north side, from a point 50 feet west of East Twenty-eighth Street to a point 50 feet east of East Twenty-eighth Street, no parking any time.

Garfield Avenue, on the north side, from a point 40 feet west of East Twenty-ninth Street to a point 50 feet east of East Twenty-ninth Street, no parking any time.

Garfield Avenue, on the north side, from East Thirtieth Street to a point 55 feet west thereof, no parking any time.

Garfield Avenue, on the north side, from East Thirtieth Street to a point 50 feet east thereof, no parking any time.

Garfield Avenue, on the north side, from East Thirty-third Street to a point 75 feet west thereof, no parking any time.

Garfield Avenue, on the south side, from East Thirty-fourth Street to East Thirty-sixth Street, no parking any time.

Garfield Avenue, on the north side, from East Thirty-fourth Street to a point 50 feet east thereof, no parking any time.

Garfield Avenue, on the north side, from East Thirty-fifth Street to a point 50 feet east thereof, no parking any time.

Garfield Avenue, on the north side, from East Thirty-seventh Street to East Thirty-seventh Court, no parking any time.

Garfield Avenue, on the south side, from East Thirty-seventh Court to a point 50 feet west thereof, no parking any time.
(C62, § 30-1150; O.8084, 8166; C75, § 27-1174; O.8981, 9219, 9235, 9306, 9524, 9574; C79, § 27-1174; O.10,123, 10,402, 10,598; C85, § 27-1174; O.10,747, 11,161, 11,395; C91, § 27-2192; O.11,650, 11,860, 13,239, 13,612, 13,643; C00, § 114-3225, O.13,858, 13,957, 13,997, 14,226, 14,518 (installed 1/16/08, 9/20/10, 7/22/13, 1/15/19, 1/25/19, 1/31/20), 15,614, 16,171, 16,477, 16,511)

Sec. 114-3226. Geil Street—Southwest Ninth Street to Southwest Fifteenth Street.

Geil Street, on the north side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.

Geil Street, on the south side, from Southwest Ninth Street to Southwest Fourteenth Street, no parking any time.

Geil Street, on the north side, from Southwest Tenth Street to a point 25 feet west thereof, no parking any time.

Geil Street, on the south side, from Southwest Fourteenth Street to Southwest Fifteenth Street, no stopping or standing 7:00 a.m. to 5:00 p.m., school days.

Geil Street, on the north side, from Southwest Fourteenth Street to Southwest Fifteenth Street, passenger loading and unloading.
(C62, § 30-1151; O.8084, 8286, 8732; C75, C79, § 27-1175; O.9685, 10,598; C91, § 27-2193; O.11,650, 13,474)

Sec. 114-3226.01. George Flagg Parkway—Fleur Drive to Park Avenue.

George Flagg Parkway, on the north side, from Fleur Drive to a point 50 feet west thereof, no parking any time.

George Flagg Parkway, on the south side, from Fleur Drive to Park Avenue, no parking any time.
(O.14,080)

Sec. 114-3227. Germania Drive—Forest Avenue to Forty-First Street.

Germania Drive, on the west side, from Forest Avenue to Waveland Drive, no parking any time.

Germania Drive, on the east side, from Forest Avenue to a point 50 feet north thereof, no parking any time.

Germania Drive, on the east and north side, from Waveland Drive to Forty-first Street, no parking any time.

Germania Drive, on the south side, from a point 60 feet east of Forty-first Street to Forty-first Street, no parking any time.
(C79, § 27-1175.02; O.9886; C91, § 27-2194; O.11,650; C00, § 114-3227; O.14,518 (installed 11/23/09, 2/10/22), 15,947, 16,171)

Sec. 114-3228. Gillette Street—Sixteenth Street to Eighteenth Street.

Gillette Street, on the north side, from Sixteenth Street to Eighteenth Street, no parking any time.

Gillette Street, on the south side, from Sixteenth Street to a point 50 feet west thereof, no parking any time.
(C62, § 30-1152; O.8084; C75, C79, § 27-1176; C91, § 27-2195; O.11,650)

Sec. 114-3229. Gilmore Street—Southwest Twenty-eighth Street to Northwood Drive.

Gilmore Street, on the south side, from Southwest Twenty-eighth Street to Northwood Drive, no parking any time.
(C62, § 30-1153; O.8084; C75, C79, § 27-1177; C91, § 27-2196; O.11,650)

Sec. 114-3230. Glenview Drive—Forty-second Street to Woodlawn Drive.

Glenview Drive, on the south side, from Southwest Forty-second Street to Foster Drive, no parking any time.

Glenview Drive, on the east side, from Woodlawn Drive to Foster Drive, no parking any time.
(C62, § 30-1153.02; O.8299; C75, C79, § 27-1177.01; O.9849; C91, § 27-2197; O.11,650)

Sec. 114-3231. Glennor Road—Martin Luther King Jr Parkway to Sherwood Drive.

Glennor Road, on the north side, from Martin Luther King Jr Parkway to Sherwood Drive, no parking any time.
(C79, § 27-1177.02; O.9849; C91, § 27-2198; O.11,650, 11,935)

Sec. 114-3232. Glenarm Court—Welbeck Road to dead end north.

Glenarm Court, on the east side, from Welbeck Road to a point 150 feet north thereof, no parking any time.

Glenarm Court, on the east side, from a point 150 feet north of Welbeck Road to the dead end north, including the cul-de-sac, no parking 6:00 a.m. to 6:00 p.m., Monday.

Glenarm Court, on the west side, from Welbeck Road to a point 50 feet north thereof, no parking any time.
(C79, § 27-1177.03; O.10,123; C91, § 27-2199; O.11,650, 13,218, 14,458)

Sec. 114-3233. Glenbrook Drive—Osceola Avenue to East Sheridan Avenue.

Glenbrook Drive, on the west side, from Osceola Avenue to Guthrie Avenue, no parking any time.

Glenbrook Drive, on the east side, from Alpha Avenue to a point 60 feet south thereof, no parking any time.

Glenbrook Drive, on the east side, from Guthrie Avenue to East Sheridan Avenue, no parking any time.

Glenbrook Drive, on the west side, from a point 50 feet south of Arthur Avenue to a point 50 feet north of Arthur Avenue, no parking any time.
(C79, § 27-1177.04; O.10,123; C91, § 27-2200; O.11,650, 13,245, 14,518 (installed 11/17/16, 8/4/17), 16,171)

Sec. 114-3234. Glenwood Circle—Southeast Nineteenth Street to cul-de-sac west.

Glenwood Circle, on the north side, from Southeast Nineteenth Street to a point 730 feet west and any part of the cul-de-sac, no parking any time.

Glenwood Circle, on the south side, from a point 50 feet west of Southeast Nineteenth Street to Southeast Nineteenth Street, no parking any time.
(C79, § 27-1177.05; O.10,123; C91, § 27-2201; O.11,650, 14,518 (install 2/16/21), 16,171)

Sec. 114-3235. East Glenwood Drive—Southeast Fourteenth Street to cul-de-sac east.

East Glenwood Drive, on the south side, from Southeast Fourteenth Street to Southeast Seventeenth Street, no parking any time.

East Glenwood Drive, on the north side, from Southeast Fourteenth Street to a point 75 feet east thereof, no parking any time.

East Glenwood Drive, on the north side, from a point 210 feet east of Southeast Fourteenth Street to a point 25 feet east thereof, is designated

a handicapped parking space and is subject to the same prohibition as is found in section 114-616(a) of this chapter.

East Glenwood Drive, on the north side from a point 50 feet west of Southeast Seventeenth Street (north leg) to a point 50 feet east of Southeast Seventeenth Street (north leg), no parking any time.

East Glenwood Drive, on the north side, from Southeast Seventeenth Street (south leg) to a point 100 feet west thereof, no parking any time.

East Glenwood Drive, on the south side from Shadow Creek Lane to and including the cul-de-sac east of Deerpath Court, no parking any time.
(C62, § 30-1153.01; O.8151; C75, C79, § 27-1178; O.10,042; C85, § 27-1178; O.11,063; C91, § 27-2202; O.11,650; C00, § 114-3235; O.13,958, 14,518 (installed 12/14/11, 7/1/20), 15,915, 16,093, 16,171)

Sec. 114-3236. Gleaves Court—East Ovid Avenue to dead end south.

Gleaves Court, on the west side, from East Ovid Avenue to the cul-de-sac, no parking any time.

Gleaves Court, on the east side, from East Ovid Avenue to a point 50 feet south thereof, no parking any time.

Gleaves Court, on the east side, from a point 50 feet south of East Ovid Avenue to and including any part of the cul-de-sac, no parking 8:00 a.m. to 4:00 p.m., Tuesday.
(C79, § 27-1178.01; O.9685; C91, § 27-2203; O.11,650, 14,000, 14,348, 15,934)

Sec. 114-3237. Glen Ellen Avenue—East Thirty-eighth Street to East Thirty-ninth Street.

Glen Ellen Avenue, on the south side, from East Thirty-eighth Street to East Thirty-ninth Street, no parking any time.
(C79, § 27-1178.02; O.9685; C91, § 27-2204; O.11,650)

Sec. 114-3238. Glover Avenue—Southwest Ninth Street to Leach Avenue.

Glover Avenue, on both sides, from Bell Avenue to a point 260 feet north thereof, no parking 7:00 a.m. to 5:00 p.m., school days.

Glover Avenue, on the east side, from Loomis Avenue to Creston Avenue, no parking any time.

Glover Avenue, on the west side, from Loomis Avenue to a point 75 feet north of Creston Avenue, no parking 7:00 a.m. to 5:00 p.m., school days.

Glover Avenue, on the west side, from Creston Avenue to a point 75 feet north thereof, no parking any time.

Glover Avenue, on the east side, from Park Avenue to Caulder Avenue, no parking any time.

Glover Avenue, on the west side, from Watrous Avenue to a point 75 feet south thereof, no parking any time.

Glover Avenue, on the east side, from Watrous Avenue to Leach Avenue, no parking any time.
(C62, § 30-1154; O.8084, 8695; C75, C79, § 27-1179; O.10,111; C85, § 27-1179; O.11,199, 11,225; C91, § 27-2205; O.11,650)

Sec. 114-3238.5. Golf House Drive—Echo Valley Drive to south city limits.

Golf House Drive, on the east side, from Echo Valley Drive to a point 100 feet south thereof, no parking anytime.

Golf House Drive, on the west side, from Echo Valley Drive to the south city limits, no parking anytime.
(O.16,334)

Sec. 114-3239. Goode Street—Arlington Avenue to Fourth Street.

Goode Street, on both sides, from Arlington Avenue to Fourth Street, no parking any time.
(C79, § 27-1179.01; O.10,402; C91, § 27-2206; O.11,650)

Sec. 114-3240. Good Park Drive—Keosauqua Way to University Avenue.

Good Park Drive, on both sides, from Keosauqua Way to University Avenue, no parking any time.
(C62, § 30-1155; O.8084; C75, C79, § 27-1180; C91, § 27-2207; O.11,650)

Sec. 114-3241. Gordon Avenue—Southwest Sixty-first Street to Southwest Sixty-third Street.

Gordon Avenue, on the north side, from Southwest Sixty-first Street to Southwest Sixty-third Street, no parking any time.

Gordon Avenue, on the south side, from Southwest Sixty-third Street to a point 50 feet east thereof, no parking any time.
(C75, § 27-1180.01; O.9069; C79, § 27-1180.01; O.9770; C91, § 27-2208; O.11,650)

Sec. 114-3242. Goddard Court—Fourteenth Street to dead end west.

Goddard Court, on the north side, from Fourteenth Street to a point 240 feet west thereof and any part of the cul-de-sac, no parking any time.
(C79, § 27-1180.02; O.10,123; C91, § 27-2209; O.11,650)

Sec. 114-3243. Governors Square Drive—East Fourteenth Street to Johnson Court.

Governors Square Drive, on both sides, from East Fourteenth Street to Johnson Court, no parking any time.
(C62, § 30-1156; O.8084; C75, C79, § 27-1181; O.10,598; C91, § 27-2210; O.11,650)

Sec. 114-3244. Grand Avenue—Des Moines River to Second Avenue.

Grand Avenue, on the south side, from a point 105 feet west of the Des Moines River to a point 25 feet west thereof, loading zone.

Grand Avenue, on the south side, from a point 130 feet west of the Des Moines River to Second Avenue, no parking any time.

Grand Avenue, on the north side, from a point 405 feet east of Second Avenue to Second Avenue, no parking any time.
(O.14,738, 15,964, 16,313, 16,437)

Editor's note—Ord. No. 14,738, § 1, adopted January 7, 2008, amended § 114-3244 in its entirety to read as herein set out. Formerly, § 114-3244 pertained to Grand Avenue—Watson Powell Jr Way to Second Avenue, and derived from Code 1962, § 30-1157; Ord. No. 8084; Code 1975; Code 1979, § 27-1182; Ord. No. 10,073; Code 1991, § 27-2211; Ord. No. 11,650; Ord. No. 13,855, and Ord. No. 14,437.

Sec. 114-3245. Grand Avenue—Second Avenue to Third Street.

Grand Avenue, on the south side, from Second Avenue to a point 45 feet west thereof, no parking any time.

Grand Avenue, on the south side, from a point 70 feet west of Second Avenue to a point 40 feet west thereof, is designated a handicapped loading zone, 30-minute limit, and is subject to the same prohibitions as are found in subsection 114-616(a) and section 114-608 of this chapter.

Grand Avenue, on the south side, from a point 110 feet west of Second Avenue to a point 45 feet west thereof, loading zone.
(C62, § 30-1158; O.8084, 8355; C75, § 27-1183; O.9292; C79, § 27-1183; O.10,540, 10,734; C85, § 27-1183; O.10,812, 11,522; C91, § 27-2212; O.11,650, 13,446, 13,604, 14,428, 15,187, 15,295, 16,245, 16,279, 16,352)

Sec. 114-3246. Grand Avenue—Third Street to Fourth Street.

Grand Avenue, on the south side, from Third Street to Fourth Street, no parking any time.

Grand Avenue, on the north side, from Third Street to Fourth Street, no parking any time.
(C62, § 30-1159; O.8084, 8227, 8355; C75, C79, § 27-1184; O.9657, 10,734; C91, § 27-2213; O.11,650, 13,705, 14,012, 15,295, 16,245)

Sec. 114-3247. Grand Avenue—Fourth Street to Fifth Avenue.

Grand Avenue, on the south side, from Fifth Avenue to a point 65 feet east thereof, loading zone.

Grand Avenue, on the south side, from a point 65 feet east of Fifth Avenue to a point 42 feet east thereof, handicapped loading zone, 30-minute limit, subject to the special identification device and use restrictions found in subsection 114-616(a) of this chapter.
(C62, § 30-1160; O.8084, 8293; C75, C79, § 27-1185; O.9657, 10,067, 10,345, 10,373, 10,734; C91, § 27-2214; O.11,650, 15,187, 15,295, 16,245, 16,279, 16,304)

Sec. 114-3248. Grand Avenue—Fifth Avenue to Sixth Avenue.

Grand Avenue, on the north side, from Fifth Avenue to a point 30 feet west thereof, no parking any time.

Grand Avenue, on the north side, from a point 75 feet west of Fifth Avenue to a point 55 feet west thereof, passenger loading zone, 10-minute limit.

Grand Avenue, on the north side, from a point 130 feet west of Fifth Avenue to Sixth Avenue, no parking any time.
(C62, § 30-1161; O.8084; C75, § 27-1186; O.9235, 9292, 9357; C79, § 27-1186; O.9859, 10,014, 10,123, 10,407, 10,734; C85, § 27-1186; O.10,770; C91, § 27-2215; O.11,650, 11,908, 14,615, 14,635, 14,738, 15,079, 15,295, 15,431)

Sec. 114-3249. Grand Avenue—Sixth Avenue to Seventh Street.

Grand Avenue, on the south side, from Seventh Street to a point 145 feet east thereof, no parking any time.

Grand Avenue, on the north side, from Seventh Street to a point 15 feet east thereof, no parking any time.
(C62, § 30-1162; O.8084; C75, § 27-1187; O.9357; C79, C85, § 27-1187; O.10,784, 10,947; C91, § 27-2216; O.11,650, 13,705, 13,833, 15,165, 15,295, 16,045)

Sec. 114-3250. Grand Avenue—Seventh Street to Eighth Street.

Grand Avenue, on the north side, from a point 90 feet west of Seventh Street to a point 50 feet west thereof, no parking any time.

Grand Avenue, on the south side, from a point 80 feet west of Seventh Street to a point 135 feet west thereof, loading zone.

Grand Avenue, on the north side, from a point 140 feet west of Seventh Street to Eighth Street, no parking any time.
(C62, § 30-1163; O.8084, 8851; C75, § 27-1188; O.9001, 9292, 9357; C79, § 27-1188; O.9859; C85, § 27-1188; O.10,770, 11,600; C91, § 27-2217; O.11,650, 12,090, 13,139, 13,705, 13,833, 15,295, 16,304, 16,324)

Sec. 114-3251. Grand Avenue—Eighth Street to Ninth Street.

Grand Avenue, on the north side, from Eighth Street to a point 35 feet west thereof, no parking any time.

Grand Avenue, on the north side, from a point 120 feet west of Eighth Street to a point 88 feet west thereof, passenger loading and unloading, ten minutes only.

Grand Avenue, on the south side, from Eighth Street to Ninth Street, no parking any time.

Grand Avenue, on the north side, from a point 235 feet west of Eighth Street, to Ninth Street, no parking any time.
(C62, § 30-1164; O.8084; C75, § 27-1189; O.9292; C79, § 27-1189; O.10,734; C85, § 27-1189; O.10,891, 11,278, 11,380, 11,522; C91, § 27-2218; O.11,650, 13,705, 14,910, 15,263)

Sec. 114-3252. Grand Avenue—Ninth Street to Tenth Street.

Grand Avenue, on the north side, from Ninth Street to a point 60 feet west thereof, no parking any time.

Grand Avenue, on the north side, from a point 145 feet west of Ninth Street to a point 55 feet west thereof, no parking any time.
(C62, § 30-1165; O.8084; C75, C79, § 27-1190; O.10,734; C85, § 27-1190; O.10,934, 11,522; C91, § 27-2219; O.11,650, 13,085, 13,705, 14,910, 15,263, 15,295, 16,511)

Sec. 114-3253. Grand Avenue—Tenth Street to Twelfth Street.

Grand Avenue, on the south side, from Tenth Street to a point 20 feet west thereof, no parking any time.

Grand Avenue, on the south side, from a point 70 feet west of Tenth Street to a point 40 feet west thereof, no parking any time.

Grand Avenue, on the south side, from a point 255 feet west of Tenth Street to a point 25 feet west thereof, no parking any time.

Grand Avenue, on the south side, from a point 480 feet west of Tenth Street to a point 26 feet west thereof, no parking any time.

Grand Avenue, on the north side, from Tenth Street to a point 36 feet west thereof, no parking any time.

Grand Avenue, on the north side, from Eleventh Street to a point 36 feet east thereof, no parking any time.

Grand Avenue, on the north side, from Eleventh Street to a point 43 feet west thereof, no parking any time.

Grand Avenue, on the north side, from Twelfth Street to a point 45 feet east thereof, no parking any time.

Grand Avenue, on the south side, from Twelfth Street to a point 40 feet east thereof, no parking any time.
(C62, § 30-1166; O.8084, 8105, 8619; C75, § 27-1191; O.9190; C79, § 27-1191; O.9958; C85, § 27-1191; O.10,859, 10,934; C91, § 27-2220; O.11,650, 13,085, 14,486, 14,539, 14,910, 14,982, 15,295)

Sec. 114-3254. Reserved.

Editor's note—Ord. No. 14,486, § 1, adopted Sept. 12, 2005, repealed § 114-3254, which pertained to Grand Avenue—Eleventh Street to Twelfth Street and derived from Code 1962, § 30-1167; Ord. No. 8084; Ord. No. 8320; Ord. No. 8389; Ord. No. 8908; Code 1975; Code 1979, § 27-1192; Ord. No. 10,734; Code 1985, § 27-1192; Ord. No. 10,934; Ord. No. 11,511; Code 1991, § 27-2221; Ord. No. 11,650; Ord. No. 13,085; and Ord. No. 13,973.

Sec. 114-3255. Grand Avenue—Twelfth Street to Thirteenth Street.

Grand Avenue, on the south side, from a point 145 feet west of Twelfth Street to Thirteenth Street, no parking any time.

Grand Avenue, on the north side, from Twelfth Street to a point 40 feet west thereof, no parking any time.

Grand Avenue, on the north side, from a point 140 feet west of Twelfth Street to a point 70 feet west thereof, no parking any time.

Grand Avenue, on the north side, from a point 250 feet west of Twelfth Street to a point 53 feet west thereof, no parking any time.
(C62, § 30-1168; O.8084; C75, § 27-1193; O.9001; C79, § 27-1193; O.10,203, 10,567; C85, § 27-1193; O.10,934, 11,391; C91, § 27-2222; O.11,650, 11,688, 13,085, 13,973, 14,121, 14,539, 14,910, 14,982, 15,295, 16,491)

Sec. 114-3256. Grand Avenue—Thirteenth Street to Fifteenth Street.

Grand Avenue, on the south side, from Thirteenth Street to a point 20 feet west thereof, no parking any time.

Grand Avenue, on the south side, from Fifteenth Street to a point 58 feet east thereof, no parking any time.

Grand Avenue, on the north side, from a point 40 feet west of Fourteenth Street to a point 45 feet west thereof, is designated handicapped parking and is subject to the same prohibition as is found in section 114-616(a) of this Code.
(C62, § 30-1169; O.8084; C75, § 27-1194; O.9243, 9292; C79, § 27-1194; O.10,203, 10,418, 10,567; C85, § 27-1194; O.11,391, 11,466; C91, § 27-2223; O.11,650, 13,085, 14,121, 14,330, 14,550, 14,662, 14,722, 14,812, 14,910, 14,982, 15,052, 15,081, 15,295, 15,750, 16,491)

Sec. 114-3257. Reserved.

Editor's note—Ord. No. 14,550, § 1, adopted March 20, 2006, repealed § 114-3257 which pertained to Grand Avenue—Fourteenth Street to Fifteenth Street and derived from Code 1962, § 30-1170; Ord. No. 8084; Code 1975; § 27-1195; Ord. No. 9243; Ord. No. 9292; Code 1979, § 27-1195; Ord. No. 10,203; Ord. No. 10,418; Ord. No. 10,567; Code 1985, § 27-1195; Ord. No. 11,278; Ord. No. 11,391; Ord. No. 11,466; Code 1991, § 27-2224; Ord. No. 11,650; Ord. No. 11,712; Ord. No. 13,085 and Ord. No. 14,441.

Sec. 114-3258. Grand Avenue—Fifteenth Street to Seventeenth Street.

Grand Avenue, on the south side, from Fifteenth Street to a point 255 west thereof, no parking any time.

Grand Avenue, on the south side, from a point 255 west of Fifteenth Street to a point 35 feet west thereof, loading zone, 20-minute limit.

Grand Avenue, on the south side, from Sixteenth Street to Seventeenth Street, no parking any time.

Grand Avenue, on the north side, from 30 feet west of Fifteenth Street to a point 70 feet west thereof, loading zone.
(C62, § 30-1171; O.8084; C75, § 27-1196; O.9243, 9292; C79, § 27-1196; O.10,418, 10,540; C85, § 27-1196; O.11,391, 11,466, 11,561; C91, § 27-2225; O.11,650, 13,085, 13,544, 14,354, 14,662, 14,910, 15,271, 15,295, 15,534, 16,045, 16,491)

Sec. 114-3259. Grand Avenue—Seventeenth Street to Eighteenth Street.

Grand Avenue, on the south side, from Seventeenth Street to Eighteenth Street, no parking any time.
(C62, § 30-1173; O.8084; C75, C79, § 27-1198; O.10,085; C85, § 27-1198; O.10,799, 10,846; C91, § 27-2227; O.11,650, 11,891, 13,085, 13,245, 13,544, 14,662, 15,084, 15,110, 16,233, 16,255, 16,491)

Sec. 114-3260. Grand Avenue—Eighteenth Street to Nineteenth Street.

Grand Avenue, on the south side from Eighteenth Street to a point 245 feet west thereof, no parking any time.

Grand Avenue, on the south side from a point 245 feet west of Eighteenth Street to Nineteenth Street, Bus Loading Zone, 20-minute limit.

Grand Avenue, on the north side, from Eighteenth Street to Nineteenth Street, no parking any time.
(C62, § 30-1174; O.8084; C75, C79, § 27-1199; C91, § 27-2228; O.11,650, 16,491)

Sec. 114-3261. Grand Avenue—Nineteenth Street to Twenty-eighth Street.

Grand Avenue, on the south side, from Nineteenth Street to a point 440 feet west of Nineteenth Street, Bus Loading Zone, 20-minute limit.

Grand Avenue, on the south side from a point 440 feet west of Nineteenth Street to Twenty-eight Street, no parking any time.

Grand Avenue, on the north side, from Nineteenth Street to Twenty-eighth Street, no parking any time.

Grand Avenue, on the north side, from a point 830 feet west of Nineteenth Street to a point 120 feet west thereof, in the paved border area parking inset only, is designated a handicapped parking area and is subject to the same prohibition as is found in subsection 114-616(a) of this chapter.
(C62, § 30-1175; O.8084; C75, C79, § 27-1200; C91, § 27-2229; O.11,650; C91, § 27-2229; O.13,645, 15,253, 15,306, 16,491)

Sec. 114-3262. Grand Avenue—Twenty-eighth Street to Thirty-first Street.

Grand Avenue, on the north side, from Twenty-eighth Street to a point 260 feet west thereof, no parking any time.

Grand Avenue, on the north side, from a point 450 feet west of Twenty-eighth Street to Thirty-first Street, no parking any time.

Grand Avenue, on the south side, from Twenty-eighth Street to Thirty-first Street, no parking any time.
(C62, § 30-1176; O.8084, 8096; C75, C79, § 27-1201; C91, § 27-2230; O.11,650, 15,780)

Sec. 114-3263. Grand Avenue—Thirty-first Street to Thirty-fifth Street.

Grand Avenue, on both sides, from Thirty-first Street to Thirty-fifth Street, no parking any time.
(C62, § 30-1177; O.8084, 8096; C75, C79, § 27-1202; C91, § 27-2231; O.11,650)

Sec. 114-3264. Grand Avenue—Thirty-fifth Street to Forty-second Street.

Grand Avenue, on both sides, from Thirty-fifth Street to a point 200 feet west of Thirty-seventh Street, no parking any time.

Grand Avenue, on the south side, from a point 200 feet west of Thirty-seventh Street to a point 50 feet east of Thirty-eighth Place, no parking Monday through Saturday.

Grand Avenue, on the south side, from a point 50 feet east of Thirty-eighth Place to a point 50 feet west of Thirty-eighth Place, no parking any time.

Grand Avenue, on the south side, from a point 50 feet west of Thirty-eighth Place to a point 50 feet east of Tonawanda Drive, no parking Monday through Saturday.

Grand Avenue, on the south side, from a point 50 feet east of Tonawanda Drive to a point 50 feet west of Tonawanda Drive, no parking any time.

Grand Avenue, on the south side, from a point 50 feet west of Thirty-eighth Place to a point 240 feet east of Tonowanda Drive, no parking Monday through Saturday.

Grand Avenue, on the south side, from a point 165 feet east of Tonowanda Drive to a point 75 feet east thereof, no parking any time.

Grand Avenue, on the south side, from a point 50 feet east of Tonowanda Drive to a point 115 feet east thereof, no parking Monday through Saturday.

Grand Avenue, on the south side, from Forty-second Street to a point 50 feet east thereof, no parking any time.

Grand Avenue, on the north side, from a point 200 feet west of Thirty-seventh Street, to a point 50 feet east of Thirty-ninth Street, no parking Monday through Saturday.

Grand Avenue, on the north side, from a point 50 feet east of Thirty-ninth Street, to a point 50 feet west of Thirty-ninth Street, no parking any time.

Grand Avenue, on the north side, from a point 50 feet west of Thirty-ninth Street, to a point 50 feet east of Fortieth Street, no parking Monday through Saturday.

Grand Avenue, on the north side, from a point 50 feet east of Fortieth Street to a point 50 feet west of Fortieth Street, no parking any time.

Grand Avenue, on the north side, from a point 50 feet west of Fortieth Street to a point 220 feet east of Forty-second Street, no parking Monday through Friday.

Grand Avenue, on the north side, from Forty-second Street to a point 220 feet east thereof, no parking any time.
(C62, § 30-1178; O.8084, 8096; C75, C79, C85, § 27-1203; O.11,476; C91, § 27-2232; O.11,650, 13,685, 13,858)

Sec. 114-3265. Grand Avenue—Forty-second Street to Polk Boulevard.

Grand Avenue, on the north side, from Forty-second Street to Polk Boulevard, no parking any time.

Grand Avenue, on the south side, from Forty-second Street to a point 400 feet west thereof, no parking any time.

Grand Avenue, on the south side, from a point 400 feet west of Forty-second Street to a point 250 feet west thereof, passenger loading and unloading.

Grand Avenue, on the south side, from a point 650 feet west of Forty-second Street to a point 200 feet west thereof, no stopping or standing.

Grand Avenue, on the south side, from a point 850 feet west of Forty-second Street to Forty-fourth Street, passenger loading and unloading.

Grand Avenue, on the south side, from Forty-fourth Street to Polk Boulevard, no parking any time.
(C62, § 30-1179; O.8084, 8096; C75, § 27-1204; O.9408; C79, § 27-1204; O.10,373; C91, § 27-2233; O.11,650)

Sec. 114-3266. Grand Avenue—Polk Boulevard to west city limits.

Grand Avenue, on both sides, from Polk Boulevard to 1,205 feet west of Country Club Boulevard, no parking any time.

Grand Avenue, on the north side, from 1,205 feet west of Country Club Boulevard to 1,410 feet west of Country Club Boulevard, school bus loading and unloading, 7:00 a.m. to 5:00 p.m. school days.

Grand Avenue, on the south side, from 1,205 feet west of Country Club Boulevard to 1,410 feet west of Country Club Boulevard, no stopping or standing.

Grand Avenue, on both sides, from 1,410 feet west of Country Club Boulevard to the west city limits, no parking any time.
(C62, § 30-1180; O.8084, 8096, 8842, 8860; C75, C79, § 27-1205; C91, § 27-2234; O.11,650, 15,803)

Sec. 114-3267. East Grand Avenue—Des Moines River to Robert D Ray Drive.

East Grand Avenue, on the north side, from Robert D Ray Drive to a point 180 feet west thereof, commercial loading zone.
(C62, § 30-1181; O.8084, 8389; C75, § 27-1206; O.9292, 9402; C79, § 27-1206; O.9672, 10,734; C91, § 27-2235; O.11,650, 13,545, 13,855, 14,437, 14,542, 14,855, 14,970, 15,964, 16,313, 16,543)

Sec. 114-3268. East Grand Avenue—Robert D Ray Drive to East Fourth Street.

East Grand Avenue, on the north side, from a point 325 feet east of Robert D Ray Drive to a point 165 feet east thereof, no parking any time.

East Grand Avenue, on the south side, from a point 45 feet east of Robert D Ray Drive to a point 35 feet east thereof, loading zone.

East Grand Avenue, on the north side, from a point 75 feet west of East Fourth Street to a point 25 feet west thereof, loading zone.
(C62, § 30-1182; O.8084, 8167, 8210, 8725; C75, § 27-1207; O.9292; C79, § 27-1207; O.9887, 10,734; C85, § 27-1207; O.10,896, 10,971; C91, § 27-2236; O.11,650, 13,593, 14,437, 14,627, 14,635, 14,827, 14,901, 14,905, 15,213, 15,226, 15,295, 15,369, 15,963, 16,313)

Sec. 114-3269. East Grand Avenue—East Fourth Street to East Fifth Street.

East Grand Avenue, on the north side, from East Fourth Street to a point 20 feet east thereof, no parking any time.

East Grand Avenue, on the north side, from a point 263 feet east of East Fourth Street to a point 80 feet east thereof, loading zone.

East Grand Avenue, on the south side, from a point 30 feet east of East Fourth Street to a point 205 feet east thereof, loading zone.
(C62, § 30-1182; O.8084, 8167, 8210, 8725; C75, § 27-1207; O.9292; C79, § 27-1207; O.9887, 10,734; C79, § 27-1207.01; C91, § 27-2237; O.11,650, 11,712; C00, § 114-3269; O.14,518 (installed 7/6/21), 14,901, 15,369, 15,426, 15,963, 16,171)

Sec. 114-3270. East Grand Avenue—East Fifth Street to East Sixth Street.

East Grand Avenue, on the north side, from a point 62 feet west of East Sixth Street to a point 41 feet east thereof, loading zone.

East Grand Avenue, on the south side, from a point 173 feet east of East Fifth Street to a point 102 feet east thereof, loading zone.

East Grand Avenue, on the north side, from a point 70 feet east of East Fifth Street to a point 35 feet east thereof, loading zone.
(C62, § 30-1183; O.8084; C75, § 27-1208; O.9292, 9372, 9464; C79, § 27-1208; O.10,066, 10,192, 10,476, 10,516, 10,647; C85, § 27-1208; O.10,765; C91, § 27-2238; O.11,650, 13,193, 14,901, 15,426, 15,963)

Sec. 114-3271. East Grand Avenue—East Sixth Street to Pennsylvania Avenue.

East Grand Avenue, on the south side, from a point 176 feet east of East Sixth Street to a point 144 feet east thereof, no parking any time.

East Grand Avenue, on the south side, from a point 320 feet east of East Sixth Street to a point 130 feet east thereof, loading zone.

East Grand Avenue, on the south side, from a point 450 feet east of East Sixth Street to Pennsylvania Avenue, no parking any time.

East Grand Avenue, on the north side, from a point 285 feet west of Pennsylvania Avenue to a point 50 feet west thereof, no parking any time.
(C62, § 30-1184; O.8084; C75, § 27-1209; O.9292, 9464; C79, § 27-1209; O.10,035, 10,272, 10,647; C85, § 27-1209; O.11,208; C91, § 27-2239; O.11,650, 13,756, 14,428, 14,769, 14,901, 15,963)

Sec. 114-3272. East Grand Avenue—Pennsylvania Avenue to East Twelfth Street.

East Grand Avenue, on both sides, from Pennsylvania Avenue to East Twelfth Street, no parking any time.
(C62, § 30-1185; O.8084; C75, C79, § 27-1210; C91, § 27-2240; O.11,650)

Sec. 114-3273. East Grand Avenue—East Twelfth Street to East Fifteenth Street.

East Grand Avenue, on both sides, from East Twelfth Street to East Fifteenth Street no parking any time.
(C62, § 30-1186; O.8084, 8529; C75, C79, C85, § 27-1211; O.11,070; C91, § 27-2241; O.11,650)

Sec. 114-3274. East Grand Avenue—East Fifteenth Street to East Eighteenth Street.

East Grand Avenue, on the south side, from East Fifteenth Street to a point 300 feet east thereof, no parking any time.

East Grand Avenue, on the south side, from a point 300 feet east of East Fifteenth Street to a point 50 feet west of East Sixteenth Street, no parking 7:00 a.m. to 9:00 a.m.

East Grand Avenue, on the north side, from East Fifteenth Street to a point 300 feet east thereof, no parking any time.

East Grand Avenue, on the north side, from a point 300 feet east of East Fifteenth Street to a point 50 feet west of East Sixteenth Street, no parking 7:00 a.m. to 9:00 a.m.

East Grand Avenue, on the south side, from a point 300 feet east of East Fifteenth Street to a point 50 feet west of East Sixteenth Street, no parking 4:00 p.m. to 6:00 p.m.

East Grand Avenue, on the south side, from a point 300 feet east of East Fifteenth Street to a point 50 feet west of East Sixteenth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

East Grand Avenue, on the south side, from East Sixteenth Street to a point 82 feet east thereof, loading zone.

East Grand Avenue, on the south side, from East Sixteenth Street to a point 50 feet west thereof, no parking any time.

East Grand Avenue, on the south side, from a point 82 feet east of East Sixteenth Street to a point 150 feet west of East Eighteenth Street, no parking 7:00 a.m. to 9:00 a.m.

East Grand Avenue, on the south side, from a point 82 feet east of East Sixteenth Street to a point 150 feet west of East Eighteenth Street, no parking 4:00 p.m. to 6:00 p.m.

East Grand Avenue, on the south side, from a point 82 feet west of East Sixteenth Street to a point 150 feet west of East Eighteenth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

East Grand Avenue, on the north side, from a point 300 feet east of East Fifteenth Street to a point 50 feet west of East Sixteenth Street, no parking 4:00 p.m. to 6:00 p.m.

East Grand Avenue, on the north side, from a point 300 feet east of East Fifteenth Street to a point 50 feet east thereof, commercial loading zone, 9:00 a.m. to 4:00 p.m.

East Grand Avenue, on the north side, from a point 350 feet east of East Fifteenth Street to a point 50 feet west of East Sixteenth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

East Grand Avenue, on the north side, from a point 50 feet west of East Sixteenth Street to a point 50 feet east of East Sixteenth Street, no parking any time.

East Grand Avenue, on the north side, from a point 50 feet east of East Sixteenth Street to a point 150 feet west of East Eighteenth Street, no parking 7:00 a.m. to 9:00 a.m.

East Grand Avenue, on the north side, from a point 50 feet east of East Sixteenth Street to a point 150 feet west of East Eighteenth Street, no parking 4:00 p.m. to 6:00 p.m.

East Grand Avenue, on both sides, from East Eighteenth Street to a point 150 feet west thereof, no parking any time.
(C62, § 30-1187; O.8084, 8529; C75, § 27-1212; O.9021; C79, § 27-1212; O.10,272; C85, § 27-1212; O.11,070, 11,600; C91, § 27-2242; O.11,650, 11,884, 13,239, 14,748)

Sec. 114-3275. East Grand Avenue—East Eighteenth Street to East Thirtieth Street.

East Grand Avenue, on both sides, from East Eighteenth Street to a point 380 feet east thereof, no parking any time.

East Grand Avenue, on both sides, from a point 380 feet east of East Eighteenth Street to a point 200 feet west of East Twentieth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

East Grand Avenue, on both sides, from East Twentieth Street to a point 200 feet west thereof, no parking any time.

East Grand Avenue, on the north side, from a point 100 feet east of East Twenty-second Street to a point 50 feet west of East Twenty-second Street, no parking any time.

East Grand Avenue, on the south side, from a point 75 feet west of East Twenty-second Street to a point 50 feet east of East Twenty-second Street, no parking any time.

East Grand Avenue, on the south side, from a point 50 feet east of East Twenty-third Street to a point 75 feet west thereof, no parking any time.

East Grand Avenue, on the north side, from a point 50 feet west of East Twenty-third Street to a point 50 feet east of East Twenty-third Street, no parking any time.

East Grand Avenue, on the north side, from East Twenty-fourth Street to a point 75 feet east thereof, no parking any time.

East Grand Avenue, on the south side, from a point 50 feet west of East Twenty-fourth Street to a point 50 feet east of East Twenty-fourth Street, no parking any time.

East Grand Avenue, on the north side, from East Twenty-fourth Street to a point 50 feet west thereof, no parking any time.

East Grand Avenue, on both sides, from a point 50 feet east of East Twenty-fifth Street to a point 50 feet west of East Twenty-fifth Street, no parking any time.

East Grand Avenue, on both sides, from a point 50 feet east of East Twenty-sixth Street to a point 50 feet west of East Twenty-sixth Street, no parking any time.

East Grand Avenue, on both sides, from a point 50 feet east of East Twenty-seventh Street to a point 50 feet west of East Twenty-seventh Street, no parking any time.

East Grand Avenue, on both sides, from a point 50 feet east of East Twenty-eighth Street to a point 50 feet west of East Twenty-eighth Street, no parking any time.

East Grand Avenue, on both sides, from a point 50 feet east of East Twenty-ninth Street to a point 50 feet west of East Twenty-ninth Street, no parking any time.

East Grand Avenue, on both sides, from East Thirtieth Street to a point 35 feet west thereof, no parking any time.
(C62, § 30-1188; O.8084, 8345, 8417, 8529, 8798; C75, § 27-1213; O.9339, 9367, 9405, 9434; C79, § 27-1213; O.10,373; C85, § 27-1213; O.11,089, 11,256; C91, § 27-2243; O.11,650, 13,218, 14,304, 14,905, 16,171, 16,293)

Sec. 114-3275.1. Grand River Drive—King Avenue to cul-de-sac southeast of Riverwoods Avenue.

Grand River Drive, on the north and east sides, from King Avenue to and including the cul-de-sac southeast of Riverwoods Avenue, no parking any time.
(O.14,226, 16,215)

Sec. 114-3276. Grandview Avenue—Cornell Street to east city limits.

Grandview Avenue, on the north side, from Cornell Street to East Thirteenth Street, no parking any time.

Grandview Avenue, on the south side, from Cornell Street to a point 60 feet east thereof, no parking any time.

Grandview Avenue, on the south side, from a point 50 feet west of East Ninth Street to a point 50 feet east of East Ninth Street, no parking any time.

Grandview Avenue, on the south side, from East Thirteenth Street to a point 75 feet west of East Thirteenth Street, no parking any time.

Grandview Avenue, on the north side, from East Twenty-fifth Street to East Twenty-ninth Street, no parking any time.

Grandview Avenue, on the south side, from East Twenty-fifth Street to a point 55 feet east thereof, no parking any time.

Grandview Avenue, on the north side, from East Twenty-ninth Court to East Thirtieth Street, no parking any time.

Grandview Avenue, on the south side, from East Forty-second Street to a point 60 feet east thereof, no parking any time.

Grandview Avenue, on the south and west sides, from a point 885 feet east of East Forty-second Street to Morton Avenue, no parking any time.

Grandview Avenue, on the north side, from the dead end west of East Fiftieth Street to Brook View Drive, no parking any time.
(C62, § 30-1189; O.8084, 8152; C75, § 27-1214; O.8974, 8994, 9068, 9120, 9503; C79, § 27-1214; O.9685, 10,342, 10,513; C85, § 27-1214; O.11,248; C91, § 27-2244; O.11,650; C00, § 114-3276; O.14,087, 14,627, 14,518 (installed 3/13/08), 14,855, 15,992, 16,171)

Sec. 114-3277. Reserved.

Editor's note—Ord. No. 15,590, § 1, adopted June 26, 2017, repealed § 114-3277, which pertained to Granger Avenue—South Union Street to Southwest Second Street and derived from Code 1979, § 27-1214.01; Ord. No. 9849; Code 1991, § 27-2245; Ord. No. 11,650.

Sec. 114-3278. East Granger Avenue—South Union Street to Southeast Thirty-eighth Street.

East Granger Avenue, on the south side, from South Union Street to Southeast Fifth Street, no parking any time.

East Granger Avenue, on the north side, from Southeast First Street to a point 50 feet east thereof, no parking any time.

East Granger Avenue, on the north side, from Southeast Fifth Street to a point 50 feet west thereof, no stopping or standing.

East Granger Avenue, on the north side, from Southeast Sixth Street to Southeast Ninth Street, no parking any time.

East Granger Avenue, on the south side, from Southeast Fourteenth Street to a point 50 feet east thereof, no parking any time.

East Granger Avenue, on the north side, from Southeast Fourteenth Street to Southeast Sixteenth Street, no parking any time.

East Granger Avenue, on both sides, from Southeast Thirtieth Street to a point 35 feet east thereof, no parking any time.
(C62, § 30-1190; O.8084, 8108; C75, C79, § 27-1215; O.9760, 9971, 10,111, 10,598; C91, § 27-2246; O.11,650, 11,724, 11,913, 13,893)

Sec. 114-3279. Gray Street—South Union Street to Southeast Fifth Street.

Gray Street, on the south side, from South Union Street to Southeast Fifth Street, no parking any time.

Gray Street, on the north side, from Southeast Fifth Street to a point 50 feet west thereof, no parking any time.
(C75, § 27-1215.01; O.8981, 8994; C79, § 27-1215.01; O.10,731; C91, § 27-2247; O.11,650)

Sec. 114-3280. Gray Street—Highland Street to Southwest Fourteenth Street.

Gray Street, on the south side, from Highland Street to Southwest Ninth Street, no parking any time.

Gray Street, on the north side, from Southwest Ninth Street to a point 50 feet east thereof, no parking any time.
(C62, § 30-1190.01; O.8124, 8661; C75, C79, § 27-1216; O.10,598; C91, § 27-2248; O.11,650)

Sec. 114-3281. Greenwood Drive—Thirty-eighth Place to Forty-fifth Street.

Greenwood Drive, on the south side, from Thirty-eighth Place to Forty-second Street, no parking any time.

Greenwood Drive, on the north side, from a point 50 feet east of Forty-second Street to a point 775 feet west of Forty-third Street, no parking any time.

Greenwood Drive, on the north side, from Tonawanda Drive to a point 50 feet west thereof, no parking any time.
(C62, § 30-1190.05; O.8209, 8572; C75, C79, § 27-1216.01; O.9849; C91, § 27-2249; O.11,650, 14,550, 15,207)

Sec. 114-3282. Gratis Avenue—Southeast Eighth Court to Southeast Fourteenth Street.

Gratis Avenue, on the south side, from Southeast Eighth Court to a point 70 feet east thereof, no parking any time.

Gratis Avenue, on the north side, from Southeast Eighth Court to Southeast Fourteenth Street, no parking any time.

Gratis Avenue, on the south side, from Southeast Fourteenth Street to a point 50 feet west thereof, no parking any time.
(C79, § 27-1217; O.10,111, 10,598; C85, § 27-1217; O.10,932; C91, § 27-2250; O.11,650)

Sec. 114-3282.5. Grover Woods Lane—Cul-de-sac west of Honey Bee Ridge to East Forty-fourth Street.

Grover Woods Lane, on the south side, from and including the cul-de-sac west of Honey Bee Ridge to East Forty-fourth Street, no parking any time.
(O.15,992, 16,215)

Sec. 114-3283. Reserved.

Editor's note—Ord. No. 14,855, § 1, adopted May 18, 2009, repealed § 114-3283, which pertained to Gregory Lane—Dead end east of Southwest Sixtieth Street to Southwest Sixty-first Street and derived from Code 1979, § 27-1219; Ord. No. 9849; Code 1991, § 27-2251; Ord. No. 11,650.

Sec. 114-3284. Reserved.

Editor's note—Ord. No. 14,855, § 1, adopted May 18, 2009, repealed § 114-3284, which pertained to Grove Street—Ninth Street to Tenth Street and derived from Code 1962, § 30-1191; Ord. No. 8084; Code 1975; Code 1979, § 27-1220; Code 1991, § 27-2252; Ord. No. 11,650.

Sec. 114-3285. Guthrie Avenue—First Street to East Fourteenth Street.

Guthrie Avenue, on the south side, from First Street to a point 50 feet east of East Ninth Street, no parking any time.

Guthrie Avenue, on the north side, from a point 50 feet west of North Union Street to a point 50 feet east of North Union Street, no parking any time.

Guthrie Avenue, on the north side, from East Ninth Street to a point 50 feet west thereof, no parking any time.

Guthrie Avenue, on the north side, from East Ninth Street to East Fourteenth Street, no parking any time.

Guthrie Avenue, on the south side, from York Street to East Fourteenth Street, no parking any time.
(C62, § 30-1192; O.8084; C75, C79, § 27-1221; O.10,263, 10,498, 10,662; C91, § 27-2253; O.11,650, 11,663, 13,750, 13,772, 16,174)

Sec. 114-3286. Guthrie Avenue—East Fourteenth Street to East Thirty-second Street.

Guthrie Avenue, on the south side, from East Fourteenth Street to a point 290 feet east thereof, no parking any time.

Guthrie Avenue, on the north side, from East Fourteenth Street to Glenbrook Drive, no parking any time.

Guthrie Avenue, on both sides, from Glenbrook Drive to East Twenty-seventh Street, no parking any time.

Guthrie Avenue, on the south side, from East Twenty-seventh Street to East Twenty-ninth Street, no parking any time.

Guthrie Avenue, on the north side, from East Twenty-eighth Street to East Thirty-second Street, no parking any time.

Guthrie Avenue, on the south side, from East Twenty-ninth Street to a point 50 feet east thereof, no parking any time.
(C62, § 30-1193; O.8084, 8310; C75, § 27-1222; O.9461; C79, § 27-1222; O.9685; C85, § 27-1222; O.11,516; C91, § 27-2254; O.11,650, 13,750, 13,762, 13,772, 16,017)

Sec. 114-3287. Hackley Avenue—South Union Street to Fleur Drive.

Hackley Avenue, on the north side, from South Union Street to Southwest Sixth Street, no parking any time.

Hackley Avenue, on the south side, from Southwest Sixth Street to a point 75 feet east thereof, no parking any time.

Hackley Avenue, on the south side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.

Hackley Avenue, on the north side, from Southwest Ninth Street to Southwest Thirteenth Street, no parking any time.

Hackley Avenue, on the south side, from Southwest Thirteenth Street to Southwest Sixteenth Place, no parking any time.

Hackley Avenue, on the north side, from Southwest Fourteenth Street to a point 50 feet west thereof, no parking any time.

Hackley Avenue, on the south side, from Southwest Nineteenth Street to Fleur Drive, no parking any time.
(C62, § 30-1193.01; O.8572; C75, § 27-1222.01; O.9518; C79, § 27-1222.01; O.9886, 10,373; C91, § 27-2255; O.11,650, 13,613, 16,171)

Sec. 114-3287.1. East Hackley Avenue—South Union Street to Southeast Fourteenth Street.

East Hackley Avenue, on both sides, from Southeast Fifth Street to a point 60 feet east thereof, no parking any time.
(O.14,033)

Sec. 114-3288. Hart Avenue—South Union Street to Southeast Thirty-first Street.

Hart Avenue, on the south side, from South Union Street to a point 50 feet east thereof, no parking any time.

Hart Avenue, on the north side, from South Union Street to Southeast Eighth Street, no parking any time.

Hart Avenue, on the south side, from Southeast Fourth Street to a point 50 feet west thereof, no parking any time.

Hart Avenue, on the north side, from Southeast Fourteenth Street to a point 50 feet east thereof, no parking any time.

Hart Avenue, on the south side, from Southeast Fourteenth Street to the dead end east of Southeast Fourteenth Street, no parking any time.

Hart Avenue, on the south side, from Indianola Avenue to Southeast Twenty-fourth Court, no parking any time.

Hart Avenue, on the north side, from Southeast Twenty-fourth Street to a point 60 feet west thereof, no parking any time.

Hart Avenue, on the north side, from Southeast Twenty-fourth Street to a point 40 feet east thereof, no parking any time.

Hart Avenue, on the north side, from Southeast Twenty-fourth Court to the dead end east of Southeast Twenty-fifth Street, no parking any time.

Hart Avenue, on the south side, from Southeast Twenty-ninth Court to Southeast Thirty-first, no parking any time.

Hart Avenue, on the north side, from Southeast Thirty-third Street to Southeast Thirty-fourth Street, no parking any time.

Hart Avenue, on the north side, from Sterling Trace to Southeast Thirty-sixth Street, no parking any time.
(C62, § 30-1197; O.8084; C75, C79, § 27-1226; O.9849, 10,598; C85, § 27-1226; O.11,302; C91, § 27-2260; O.11,650; C00, § 114-3288; O.13,973, 14,518 (installed 3/29/12, 11/5/13, 12/6/13), 14,833, 14,844, 14,855, 16,171, 16,313)

Sec. 114-3288.5. Reserved.

Editor's note—Ord. No. 14,855, § 1, adopted May 18, 2009, repealed § 114-3288.5, which pertained to East Hart Avenue—Indianola Avenue to east city limits and derived from Ord. No. 14,812.

Sec. 114-3289. Harwood Court—Sixty-fourth Street to dead end east.

Harwood Court, on the south side, from Sixty-fourth Street to a point 100 feet east thereof and any part of the cul-de-sac, no parking any time.
(C79, § 27-1276.01; O.9849; C91, § 27-2261; O.11,650)

Sec. 114-3290. Harrison Avenue—Thirteenth Street to Sixteenth Street.

Harrison Avenue, on the south side, from Thirteenth Street to Sixteenth Street, no parking any time.
(C79, § 27-1226.02; O.10,123; C91, § 27-2262; O.11,650)

Sec. 114-3291. Harriet Street—Southeast Fourteenth Street to dead end east of Southeast Fifteenth Street.

Harriet Street, on the north side, from Southeast Fourteenth Street to a point 100 feet east thereof, no parking any time.

Harriet Street, on the north side, from a point 50 feet west of Southeast Fifteenth Street to a point 50 feet east of Southeast Fifteenth Street, no parking any time.

Harriet Street, on the south side, from Southeast Fourteenth Street to a point 130 feet east thereof, no parking any time.

Harriet Street, on the south side, from a point 20 feet west of Southeast Fifteenth Street to a point 100 feet east thereof, no parking any time.
(C79, § 27-1226.03; O.10,123, 10,598; C91, § 27-2263; O.11,650, 16,334)

Sec. 114-3292. Hartford Avenue—South Union Street to East Watrous Avenue.

Hartford Avenue, on the south side, from South Union Street to a point 100 feet east thereof, no parking any time.

Hartford Avenue, on the south side, from a point 100 feet east of South Union Street to Indianola Avenue, no parking 7:00 a.m. to 6:00 p.m., Monday through Friday.

Hartford Avenue, on the south side, from Indianola Avenue to Southeast Third Street, no parking any time.

Hartford Avenue, on the north side, from South Union Street to a point 230 feet west of Southeast Sixth Street, no parking any time.

Hartford Avenue, on the north side, from Southeast Sixth Street to a point 100 feet east, no parking any time.

Hartford Avenue, on the north side, from a point 180 feet west of Southeast Eighth Court to a point 130 feet east of Southeast Eighth Court, no parking any time.

Hartford Avenue, on the south side, from a point 150 feet west of Southeast Fifth Street to a point 50 feet east of Southeast Fourteenth Street, no parking any time.

Hartford Avenue, on the north side, from a point 230 feet west of Southeast Fourteenth Street to Southeast Fourteenth Street, no parking any time.

Hartford Avenue, on both sides, from Southeast Fourteenth Street to 2700 feet east of Southeast Twenty-second Street, no parking any time.
(C62, § 30-1198; O.8084, 8690; C75, § 27-1227; O.9349; C79, § 27-1227; O.10,323, 10,598; C85, § 27-1227; O.10,848, 11,208, 11,248; C91, § 27-2264; O.11,650, 13,256, 14,057, 16,121, 16,148)

Sec. 114-3293. Harwood Drive—Forty-second Street to Sixty-second Street.

Harwood Drive, on both sides, from Forty-second Street to a point 100 feet west thereof, no parking any time.

Harwood Drive, on the south side, from a point 60 feet east of Forty-fifth Street to a point 60 feet west of Forty-fifth Street, no parking any time.

Harwood Drive, on the south side, from Polk Boulevard to a point 75 feet east thereof, no parking any time.

Harwood Drive, on the south side, from Polk Boulevard to a point 75 feet west thereof, no parking any time.

Harwood Drive, on the south side, from Polk Boulevard to a point 75 feet west of Forty-eighth Street, no parking any time.

Harwood Drive, on the south side, from Fifty-sixth Street to Cummins Parkway, no parking any time.

Harwood Drive, on the north side, from Fifty-sixth Street to a point 50 feet west thereof, no parking any time.

Harwood Drive, on the south side, from Sixty-first Street to Sixty-second Street, no parking any time.
(C62, § 30-1198.01; O.8633; C75, § 27-1227.01; O.9155; C79, § 27-1227.01; O.9849; C85, § 27-1227.01; O.10,907; C91, § 27-2265; O.11,650, 11,982, 13,239; C00, § 114-3293; O.14,518 (installed 2/12/19), 16,171)

Sec. 114-3294. Havens Avenue—Southview Drive to Southwest Seventeenth Street.

Havens Avenue, on the north side, from Southwest Twelfth Street to Southwest Sixteenth Street, no parking any time.
(C75, § 27-1227.02; O.9219; C79, § 27-1227.02; O.9685; C91, § 27-2266; O.11,650)

Sec. 114-3294.1. East Havens Avenue—Indianola Avenue to East Pine Avenue.

East Havens Avenue, on the north side, from East Southdale Drive to East Pine Avenue, no parking any time.
(O.14,226)

Sec. 114-3295. Heliotrope Drive—Creston Avenue to Bell Avenue.

Heliotrope Drive, on the west side, from Bell Avenue to Creston Avenue, no parking any time.
(C62, § 30-1199; O.8084; C75, C79, § 27-1228; C91, § 27-2267; O.11,650)

Sec. 114-3296. Henderson Avenue—York Street to Villa Vista Drive.

Henderson Avenue, on the south side, from East Fourteenth Street to a point 50 feet east thereof, no parking any time.

Henderson Avenue, on the south side, from Villa Vista Drive to a point 50 feet west thereof, no parking any time.

Henderson Avenue, on the north side, from East Fourteenth Street to Villa Vista Drive, no parking any time.

Henderson Avenue, on the south side, from York Street to East Fourteenth Street, no parking any time.
(C79, § 27-1228.01; O.9697, 9886, 10,123, 10,292, 10,350; C91, § 27-2268; O.11,650; C00, § 114-3296; O.14,518 (installed 12/9/05), 16,171)

Sec. 114-3297. Henry Street—Park Avenue to Caulder Avenue.

Henry Street, on the west side, from Park Avenue to Caulder Avenue, no parking any time.

Henry Street, on the east side, from Park Avenue to a point 65 feet south thereof, no parking any time.
(C62, § 30-1200; O.8084; C75, C79, § 27-1229; C91, § 27-2269; O.11,650, 14,298)

Sec. 114-3298. Herold Avenue—Southwest Second Street to Southwest Fourteenth Street.

Herold Avenue, on the north side, from Southwest Second Street to Southwest Fifth Street, no parking any time.

Herold Avenue, on the north side, from Southwest Sixth Street to Southwest Eighth Street, no parking any time.

Herold Avenue, on the north side, from Southwest Ninth Street to a point 385 feet west thereof, no parking any time.

Herold Avenue, on the south side, from Southwest Ninth Street to Southwest Fourteenth Street, no parking any time.

Herold Avenue, on the north side, from Southwest Fourteenth Street to a point 50 feet east thereof, no parking any time.
(C62, § 30-1200.01; O.8320, 8919; C75, C79, § 27-1229.01; O.9670, 9697, 9886, 10,057, 10,418; C91, § 27-2270; O.11,650)

Sec. 114-3299. East Herold Avenue—Southeast Fourteenth Street to Southeast Thirty-fifth Court.

East Herold Avenue, on the south side, from Southeast Fourteenth Street to a point 50 feet west thereof, no parking any time.

East Herold Avenue, on the north side, from Southeast Fourteenth Street to a point 1320 feet west thereof, no parking any time.

East Herold Avenue, on the north side, from Southeast Thirty-fourth Court to Southeast Thirty-fifth Court, no parking any time.
(C79, § 27-1229.02; O.9886, 10,598; C91, § 27-2271; O.11,650, 15,563)

Sec. 114-3300. Hickman Lane—Twenty-sixth Street to dead end west.

Hickman Lane, on both sides, from Twenty-sixth Street to a point 150 feet west thereof, no parking any time.
(C79, § 27-1229.03; O.10,132; C91, § 27-2272; O.11,650)

Sec. 114-3301. Hickman Road—Sixth Avenue to west city limits.

Hickman Road, on the south side, from Sixth Avenue to a point 100 feet west of Thirtieth Street, no parking any time.

Hickman Road, on the south side, from a point 100 feet west of Thirtieth Street to a point 140 feet west thereof, school bus loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Hickman Road, on the south side, from a point 240 feet west of Thirtieth Street to the west corporate limits, no parking any time.

Hickman Road, on the north side, from Sixth Avenue to a point 100 feet east of Fifty-fifth Street, no parking any time.

Hickman Road, on the north side, from a point 100 feet east of Fifty-fifth Street to a point 90 feet west of Fifty-fifth Street, passenger loading and unloading.

Hickman Road, on the north side, from a point 90 feet west of Fifty-fifth Street to the west corporate limits, no parking any time.
(C62, § 30-1201; O.8084; C75, C79, § 27-1230; O.10,582; C91, § 27-2273; O.11,650, 16,241)

Sec. 114-3302. Hickory Hill Lane—Enden Lane to Winegardner Road.

Hickory Hill Lane, on the north side, from Enden Lane to Winegardner Road, no parking any time.

Hickory Hill Lane, on the south side, from Winegardner Road to a point 475 feet west thereof, no parking any time.
(C79, § 27-1230.01; O.9685; C85, § 27-1230.01; O.11,256; C91, § 27-2274; O.11,650)

Sec. 114-3303. High Street—Sixth Avenue to Seventh Street.

High Street, on the north side, from Sixth Avenue to a point 125 feet west thereof, no parking Monday through Friday.

High Street, on the north side, from a point 175 feet west of Sixth Avenue to a point 90 feet west thereof, no parking any time.
(C62, § 30-1202; O.8084; C75, § 27-1231; O.8984, 9292, 9362, 9566; C79, § 27-1231; O.9965, 10,575; C85, § 27-1231; O.10,925; C91, § 27-2275; O.11,650, 13,705, 13,726, 16,379)

Sec. 114-3304. High Street—Seventh Street to Eighth Street.

High Street, on the north side, from a point 112 feet west of Seventh Street to a point 78 feet west thereof, passenger loading and unloading, ten minutes only.
(C62, § 30-1203; O.8084; C75, § 27-1232; O.8984, 9292; C79, § 27-1232; O.10,615; C91, § 27-2276; O.11,650, 16,379)

Sec. 114-3305. High Street—Eighth Street to Ninth Street.

High Street, on the south side, from a point 160 feet west of Eighth Street to a point 88 feet west thereof, passenger loading and unloading, 7:00 a.m. to 6:00 p.m., Monday through Friday, 20 minutes only.

High Street, on the north side, from a point 75 feet east of Ninth Street to a point 25 feet east thereof, commercial loading zone.
(C62, § 30-1204; O.8084; C75, § 27-1233; O.9292; C79, C85, § 27-1233; O.11,278, 11,522; C91, § 27-2277; O.11,650, 11,774, 13,705, 15,263, 16,379)

Sec. 114-3306. High Street—Ninth Street to Tenth Street.

High Street, on the south side, from Ninth Street to a point 175 feet west thereof, no parking any time.

High Street, on the north side, from a point 35 feet west of Ninth Street to a point 60 feet west thereof, loading zone, twenty minute limit.
(C62, § 30-1205; O.8084; C75, § 27-1234; O.9292; C79, C85, § 27-1234; O.11,522; C91, § 27-2278, O.11,650, 13,705, 13,727, 16,379)

Sec. 114-3307. High Street—Tenth Street to Eleventh Street.

High Street, on the north side, from a point 255 feet west of Tenth Street to a point 70 feet west thereof, no parking any time.
(C62, § 30-1206; O.8084; C75, § 27-1235; O.9292; C79, § 27-1235; C91, § 27-2279; O.11,650, 12,096, 14,982, 15,009, 15,263, 16,379)

Sec. 114-3308. High Street—Eleventh Street to Twelfth Street.

High Street, on the south side, from Eleventh Street to a point 90 feet west thereof, no parking any time.

High Street, on the north side, from Twelfth Street to a point 20 feet east thereof, no parking any time.
(C62, § 30-1207; O.8084; C75, § 27-1236; O.9292, 9595; C79, § 27-1236; O.9693, 10,373; C91, § 27-2280; O.11,650, 14,982)

Sec. 114-3309. High Street—Twelfth Street to Fourteenth Street.

High Street, on the south side, from Twelfth Street to a point 195 feet west thereof, no parking any time.

High Street, on the south side, from a point 195 feet west of Twelfth Street to a point 115 feet west thereof, commercial loading zone, 8:00 a.m. to 9:00 p.m., Monday through Friday, twenty minute limit.

High Street, on the south side, from a point 310 feet west of Twelfth Street to a point 70 feet west thereof, passenger loading and unloading, 7:00 a.m. to 6:00 p.m., Monday through Friday, twenty minute limit.

High Street, on the south side, from a point 380 feet west of Twelfth Street to Fourteenth Street, no parking any time.

High Street, on the north side, from Twelfth Street to a point 40 feet west thereof, no parking any time.

High Street, on the north side, from a point 240 feet west of Twelfth Street to a point 75 feet west thereof, no parking any time.

High Street, on the north side, from Fourteenth Street to a point 175 feet east thereof, no parking anytime.
(C62, § 30-1208; O.8084, 8244; C75, § 27-1237; O.9227, 9292, 9420; C79, § 27-1237; O.9714; C91, § 27-2281; O.11,650, 13,218, 14,982, 16,379)

Sec. 114-3310. Reserved.

Editor's note—Ord. No. 14,982, § 1, adopted Dec. 20, 2010, repealed § 114-3310 which pertained to High Street—Thirteenth Street to Fourteenth Street and derived from Code 1962, § 30-1209; Ord. No. 8084; Code 1975, § 27-1238; Ord. No. 9227; Ord. No. 9420; Code 1979, § 27-1238; Code 1991, § 27-2282; Ord. No. 11,650.

Sec. 114-3310.01. High Street—Fourteenth Street to Fifteenth Street.

High Street, on the north side, from Fifteenth Street to a point 185 feet east thereof, two hour parking 9:00 a.m. to 4:00 p.m.

High Street, on the north side, from a point 185 feet east of Fifteenth Street to Fourteenth Street, no parking any time.

High Street, on the south side, from Fourteenth Street to Fifteenth Street, no parking any time.
(O.15,110)

Sec. 114-3311. Reserved.

Editor's note—Ord. No. 14,982, § 1, adopted Dec. 20, 2010, repealed § 114-3311 which pertained to High Street—Fourteenth Street to Fifteenth Street and derived from Code 1962, § 30-1210; Ord. No. 8084; Ord. No. 8339; Code 1975; Code 1979, § 27-1239; Code 1991, § 27-2283; Ord. No. 11,650; Ord. No. 13,160; Ord. No. 13,197; Ord. No. 14,404.

Sec. 114-3312. High Street—Fifteenth Street to Sixteenth Street.

High Street, on both sides, from Fifteenth Street to a point 40 feet west thereof, no parking any time.

High Street, on the north side, from a point 40 feet west of Fifteenth Street to a point 50 feet east of Sixteenth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

High Street, on both sides, from Sixteenth Street to a point 50 feet east thereof, no parking any time.
(C62, § 30-1211; O.8084, 8339; C75, C79, § 27-1240; C91, § 27-2284; O.11,650, 12,068, 13,160, 13,540, 14,226, 14,738)

Sec. 114-3313. High Street—Sixteenth Street to Seventeenth Street.

High Street, on both sides, from Sixteenth Street to Seventeenth Street, two-hour parking, 9:00 a.m. to 4:00 p.m., Monday through Saturday.
(C62, § 30-1212; O.8084, 8339, 8562; C75, C79, § 27-1241; C91, § 27-2285; O.11,650, 11,760, 11,774, 16,408)

Sec. 114-3314. High Street—Seventeenth Street to Nineteenth Street.

High Street, on the south side, from Seventeenth Street to a point 100 feet west thereof, no parking any time.

High Street, on the north side, from Seventeenth Street to a point 75 feet west thereof no parking any time.

High Street, on the north side from a point 50 feet west of Seventeenth Street to a point 50 feet east of Nineteenth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

High Street, on the south side, from a point 100 feet east of Nineteenth Street to a point 30 feet east thereof, commercial loading zone.

High Street, on both sides, from Nineteenth Street to a point 50 feet east thereof, no parking any time.
(C62, § 30-1213; O.8084, 8339; C75, C79, § 27-1242; C91, § 27-2286; O.11,650, 11,774, 13,248, 14,518 (installed 8/24/12), 16,171)

Sec. 114-3315. High Street—Nineteenth Street to Martin Luther King Jr Parkway.

High Street, on the north side, from Nineteenth Street to a point 50 feet west thereof, no parking any time.

High Street, on the south side, from Nineteenth Street to Martin Luther King Jr Parkway, no parking any time.

High Street, on the north side, from Martin Luther King Jr Parkway to a point 50 feet east thereof, no parking any time.
(C62, § 30-1214; O.8084, 8339; C75, C79, § 27-1243; C91, § 27-2287; O.11,650, 11,774, 11,935, 13,360, 14,260, 14,322, 14,518 (installed 10/28/11), 14,722, 16,171)

Sec. 114-3316. High Street—Martin Luther King Jr Parkway to Thirty-first Street.

High Street, on the south side, from Martin Luther King Jr Parkway to Twenty-third Street, no parking any time.

High Street, on the north side, from a point 50 feet east of Twenty-third Street to a point 50 feet west of Twenty-third Street, no parking any time.

High Street, on the north side, from a point 60 feet east of Twenty-fourth Street to a point 50 feet west of Twenty-fourth Street, no parking any time.

High Street, on the south side, from Twenty-fourth Street to a point 270 feet west thereof, no parking any time.

High Street, on the north side, from a point 275 feet west of Twenty-fourth Street to a point 295 feet west thereof, no parking any time.

High Street, on the south side, from a point 575 feet west of Twenty-fourth Street to a point 485 feet west thereof, no parking any time.

High Street, on the north side, from a point 230 feet east of Twenty-eighth Street to a point 50 feet west of Twenty-eighth Street, no parking any time.

High Street, on the south side, from Twenty-eighth Street to Thirty-first Street, no parking any time.

High Street, on the north side, from a point 60 feet east of Twenty-ninth Street to a point 60 feet west of Twenty-ninth Street, no parking any time.

High Street, on the north side, from Thirty-first Street to a point 125 feet east thereof, no parking any time.
(C62, § 30-1215; O.8084, 8394; C75, C79, C85, § 27-1244; O.11,024; C91, § 27-2288; O.11,650, 11,935; C00, § 114-3316; O.14,518 (installed 7/28/17, 4/29/19), 15,763, 16,171, 16,279)

Sec. 114-3317. Highview Drive—Southwest Twelfth Street to Fleur Drive.

Highview Drive, on the north side, from Southwest Twelfth Street to a point 320 feet west thereof, no parking any time.

Highview Drive, on the south side, from Southwest Twelfth Street to a point 50 feet west thereof, no parking any time.

Highview Drive, on the south side, from Southwest Fourteenth Street to Fleur Drive, no parking any time.

Highview Drive, on the north side, from Fleur Drive to a point 200 feet east thereof, no parking any time.
(C62, § 30-1215.01; O.8520; C75, C79, § 27-1244.01; O.9849, 10,598; C85, § 27-1244.01; O.10,747; C91, § 27-2289; O.11,650, 11,884)

Sec. 114-3317.5. East Highview Drive—Indianola Avenue to east city limits.

East Highview Drive, on the north side, from Southeast Twenty-fifth Street to and including the cul-de-sac to the west, no parking any time.

East Highview Drive, on the north side, from Southeast Thirty-fourth Street to a point 360 feet east thereof and any part of the cul-de-sac, no parking any time.
(O.14,812, 14,833)

Sec. 114-3318. Highland Street—Fulton Drive to Davis Avenue.

Highland Street, on the west side, from Fulton Drive to Davis Avenue, no parking any time.
(C79, § 27-1244.02; O.10,111; C91, § 27-2290; O.11,650)

Sec. 114-3319. Hillcrest Drive—Lyndale Avenue to Brinkwood Road.

Hillcrest Drive, on the south side, from Lyndale Avenue to Lower Beaver Road, no parking any time.

Hillcrest Drive, on the north side, from Lower Beaver Road to a point 75 feet east thereof, no parking any time.

Hillcrest Drive, on the north side, from Brinkwood Road to a point 160 feet east of Thirty-eighth Place and any part of the cul-de-sac, no parking any time.
(C62, § 30-1216; O.8084; C75, § 27-1245; O.9566; C79, § 27-1245; O.9849, 10,399; C91, § 27-2291; O.11,650, 14,467)

Sec. 114-3320. Hillside Avenue—South Union Street to Southwest Ninth Street.

Hillside Avenue, on the north side, from South Union Street to Courtland Drive, no parking any time.

Hillside Avenue, on the south side, from Southwest First Street to a point 50 feet east thereof, no parking any time.

Hillside Avenue, on the south side, from Bancroft Street to Southwest Ninth Street, no parking any time.

Hillside Avenue, on the north side, from Southwest Ninth Street to a point 50 feet east thereof, no parking any time.
(C62, § 30-1217; O.8084; C75, C79, § 27-1246; O.10,111, 10,598; C91, § 27-2292; O.11,650; C00, § 114-3320; O.14,518 (installed 12/15/14), 16,171)

Sec. 114-3321. East Hillside Avenue—South Union Street to Southeast Fourteenth Street.

East Hillside Avenue, on the north side, from South Union Street to a point 200 feet east of Indianola Avenue, no parking any time.

East Hillside Avenue, on the south side, from a point 180 feet east of Indianola Avenue to Southeast Sixth Street, no parking any time.

East Hillside Avenue, on the north side, from Southeast Sixth Street to a point 150 feet west thereof, no parking any time.

East Hillside Avenue, on the south side, from Southeast Ninth Street to a point 350 feet east thereof, no parking any time.
(C62, § 30-1217.01; O.8659, 8693, 8706; C75, C79, § 27-1246.01; O.9693, 9849, 10,111; C91, § 27-2293; O.11,650)

Sec. 114-3322. Hoffman Avenue—North Union Street to dead end east of East Tenth Street.

Hoffman Avenue, on the south side, from North Union Street to a point 60 feet east thereof and on any part of the cul-de-sac, no parking any time.

Hoffman Avenue, on the south side, from East Eighth Street to East Ninth Street, no parking 7:00 a.m. to 5:00 p.m. school days.

Hoffman Avenue, on the north side, from East Eighth Street to a point 60 feet east thereof, no stopping or standing.

Hoffman Avenue, on the north side, from a point 60 feet east of East Eighth Street to a point 240 feet east thereof, school passenger loading and unloading, 7:00 a.m. to 5:00 p.m. school days.

Hoffman Avenue, on the north side, from a point 300 feet east of East Eighth Street to East Ninth Street, no stopping or standing.

Hoffman Avenue, on the north side, from East Tenth Street to a point 450 feet east thereof, no parking any time.
(C62, § 30-1218; O.8084, 8772; C75, C79, § 27-1247; O.9693, 9849, 10,035; C91, § 27-2294; O.11,650, 15,821)

Sec. 114-3323. Holcomb Circle—Holcomb Avenue to dead end south of Holcomb Avenue.

Holcomb Circle, on the east side, from Holcomb Avenue to a point 65 feet south thereof, no parking any time.

Holcomb Circle, on the west side, from Holcomb Avenue south to and including any part of the cul-de-sac, no parking 8:00 a.m. to 4:00 p.m., Mondays.
(C79, § 27-1247.01; O.9640, 9685; C85, § 27-1247.01; O.11,600; C91, § 27-2295; O.11,650, 14,932)

Sec. 114-3324. Holcomb Avenue—Oxford Street to west city limits.

Holcomb Avenue, on both sides, from Second Avenue to Oxford Street, no parking any time.

Holcomb Avenue, on the south side, from Second Avenue to a point 780 feet west of Sixth Avenue, no parking any time.

Holcomb Avenue, on the north side, from Second Avenue to Sixth Avenue, no parking 7:00 a.m. to 6:00 p.m.

Holcomb Avenue, on the north side, from Sixth Avenue to the dead end west thereof, no parking any time.

Holcomb Avenue, on the north side, from Twenty-fourth Street to a point 50 feet west thereof, no parking any time.

Holcomb Avenue, on the south side, from Twenty-fourth Street to Twenty-sixth Street, no parking any time.

Holcomb Avenue, on the north side, from Twenty-sixth Street to Thirty-third Street, no parking any time.

Holcomb Avenue, on the south side, from Thirtieth Street to a point 50 feet west thereof, no parking any time.

Holcomb Avenue, on the south side, from a point 50 feet east of Thirty-third Street to Thirty-third Street, no parking any time.

Holcomb Avenue, on the south side, from Thirty-fourth Street to Beaver Avenue, no parking any time.

Holcomb Avenue, on the north side, from Beaver Avenue to a point 50 feet east thereof, no parking any time.

Holcomb Avenue, on the south side, from Forty-fourth Street to Forty-eighth Street, no parking any time.

Holcomb Avenue, on the north side, from Forty-ninth Street to Fiftieth Street, no parking any time.

Holcomb Avenue, on the south side, from Fifty-seventh Street to Westover Boulevard, no parking any time.

Holcomb Avenue, on the north side, from a point 50 feet east of Merle Hay Road to a point 50 feet west of Merle Hay Road, no parking any time.

Holcomb Avenue, on the north side, from Westover Boulevard to the west city limits, no parking any time.
(C62, § 30-1219; O.8084, 8313, 8453; C75, § 27-1248; O.9128, 9566; C79, § 27-1248; O.9685, 9886, 10,085, 10,123, 10,141, 10,402, 10,598,

10,667; C85, § 27-1248; O.10,791; C91, § 27-2296; O.11,650; C00, § 114-3324; O.14,518 (installed 2/9/18), 15,330, 15,881, 16,171)

Sec. 114-3325. East Holcomb Avenue—Oxford Street to cul-de-sac east of Saylor Road.

East Holcomb Avenue, on the south side, from Oxford Street to a point 300 feet east of Saylor Road, no parking any time.

East Holcomb Avenue, on the north side, from a point 70 feet west of Saylor Road to a point 75 feet east of Saylor Road, no parking any time.
(C62, § 30-1220; O.8084; C75, C79, § 27-1249; C91, § 27-2297; O.11,650, 11,871, 14,062)

Sec. 114-3326. Holmes Street—Indianola Road to Summit Street.

Holmes Street, on the east side, from Summit Street to a point 50 feet north thereof, no parking any time.

Holmes Street, on both sides, from Monona Avenue to Taylor Street, no parking any time.
(C75, § 27-1249.01; O.9374; C79, § 27-1249.01; C91, § 27-2298; O.11,650, 14,057)

Sec. 114-3326.5. Honey Bee Ridge—Grover Woods Lane to East Forty-fourth Street.

Honey Bee Ridge, on the south and east sides, from Grover Woods Lane to East Forty-fourth Street, no parking any time.
(O.15,992, 16,215)

Sec. 114-3327. Hughes Avenue—Dead end east of Southwest Second Street to dead end west of Glover Avenue.

Hughes Avenue, on the north side, from a point 150 feet east of Southwest Second Street and on any part of the cul-de-sac to Southwest Seventh Street, no parking any time.

Hughes Avenue, on the south side, from Glover Avenue to a point 310 feet west thereof and on any part of the cul-de-sac, no parking any time.
(C79, § 27-1249.02; O.9649, 10,111; C91, § 27-2299; O.11,650)

Sec. 114-3328. East Hughes Avenue—Fairlane Drive to Southeast Twenty-second Street.

East Hughes Avenue, on the south side, from Fairlane Drive to Southeast First Street, no parking any time.

East Hughes Avenue, on the north side, from Fairlane Drive to a point 50 feet east thereof, no parking any time.

East Hughes Avenue, on the north side, from Southeast First Street to a point 200 feet east thereof and any part of the cul-de-sac, no parking any time.

East Hughes Avenue, on the south side, from Southeast First Street to a point 40 feet east thereof, no parking any time.

East Hughes Avenue, on the north side, from Southeast Third Street to Linworth Lane, no parking any time.

East Hughes Avenue, on the north side, from Southeast Fifth Street to a point 250 feet east of Southeast Eighth Street, no parking any time.

East Hughes Avenue, on the south side, from Southeast Fifth Street to a point 100 feet east thereof, no parking any time.

East Hughes Avenue, on the south side, from a point 350 feet west of Southeast Twenty-first Street and any part of the cul-de-sac to Southeast Twenty-second Street, no parking any time.

East Hughes Avenue, on the north side, from Cedar Court to a point 50 feet east thereof, no parking any time.
(C79, § 27-1249.021; O.10,111; C85, § 27-1249.021; O.10,999; C91, § 27-2300; O.11,650, 13,391; C00, § 114-3328; O.14,518 (installed 12/17/14, 5/12/21), 16,171, 16,522)

Sec. 114-3329. Holland Drive—Maryland Pike to Hickman Road.

Holland Drive, on the south side, from Maryland Pike to Hickman Road, no parking any time.
(C79, § 27-1249.03; O.9886; C91, § 27-2301; O.11,650)

Sec. 114-3329.05. Hubbell Avenue—Northeast Forty-third Court—to northeast city limits.

Hubbell Avenue, on both sides, from Northeast Forty-third Court to the northeast corporate limits, no parking any time.
(O.14,905)

Sec. 114-3330. Hull Avenue—Second Avenue to East Fourteenth Street.

Hull Avenue, on the south side, from Second Avenue to East Fourteenth Street, no parking any time.

Hull Avenue, on the north side, from Second Avenue to Wright Street, no parking any time.

Hull Avenue, on the north side, from Wright Street to a point 50 feet east thereof, no parking any time.

Hull Avenue, on the north side, from a point 130 feet east of Wright Street to East Twelfth Street, no parking any time.

Hull Avenue, on the north side, from East Twelfth Street to East Thirteenth Street, no stopping or standing.

Hull Avenue, on the north side, from East Thirteenth Street to East Fourteenth Street, no parking any time.
(C62, § 30-1221; O.8084; C75, § 27-1250; O.9001; C79, § 27-1250; O.10,476; C85, § 27-1250; O.10,890; C91, § 27-2302; O.11,650, 11,982, 15,577)

Sec. 114-3331. Hull Avenue—East Fourteenth Street to the dead end east of East Forty-third Court.

Hull Avenue, on the north side, from East Fourteenth Street to a point 60 feet east of Villa Vista Drive, no parking any time.

Hull Avenue, on the south side, from East Fourteenth Street to a point 250 feet west of East Twenty-fourth Street, no parking any time.

Hull Avenue, on the north side, from a point 220 feet east of Villa Vista Drive to a point 95 feet east thereof, no parking any time.

Hull Avenue, on the north side, from a point 390 feet east of Villa Vista Drive to a point 175 feet east thereof, no parking any time.

Hull Avenue, on the north side, from a point 250 feet east of Sampson Street to the dead end east of Dixon Street, no parking any time.

Hull Avenue, on the north side, from a point 100 feet east of Delaware Avenue to the dead end west of Delaware Avenue and including the cul-de-sac, no parking any time.

Hull Avenue, on the south side, from East Twenty-fourth Street to a point 250 feet west thereof, no stopping or standing.

Hull Avenue, on the north side, from East Twenty-fourth Street to a point 75 feet east thereof, no parking any time.

Hull Avenue, on the south side, from East Twenty-fourth Street to East Twenty-ninth Street, no parking any time.

Hull Avenue, on the north side, from East Twenty-fifth Street to a point 75 feet west thereof, no parking any time.

Hull Avenue, on the south side, from a point 50 feet west of East Twenty-sixth Street to a point 50 feet east of East Twenty-sixth Street, no parking any time.

Hull Avenue, on the north side, from East Twenty-ninth Street to a point 100 feet west thereof, no parking any time.

Hull Avenue, on the south side, from East Thirty-second Street to East Thirty-second Court, no parking any time.

Hull Avenue, on the north side, from East Thirty-fifth Street to East Thirty-eighth Street, no parking any time.

Hull Avenue, on the south side, from East Thirty-eighth Street to East Fortieth Court, no parking any time.

Hull Avenue, on the north side, from East Thirty-eighth Street to a point 50 feet east thereof, no parking any time.

Hull Avenue, on the north side, from a point 180 feet west of East Thirty-ninth Court to a point 100 feet east of East Thirty-ninth Court, no parking any time.

Hull Avenue, on the north side, from a point 100 feet east of East Thirty-ninth Court to East Fortieth Court, no parking 10:00 p.m. to 7:00 a.m.

Hull Avenue, on the north side, from East Fortieth Court to East Forty-second Street, no parking any time.

Hull Avenue, on the south side, from a point 145 feet west of East Forty-first Street to a point 125 feet east of East Forty-first Street, no parking any time.

Hull Avenue, on the south side, from East Forty-second Street to a point 100 feet west thereof, no parking any time.

Hull Avenue, on the north side, from East Forty-second Street to a point 70 feet east thereof, no parking any time.

Hull Avenue, on the south side, from East Forty-second Street to a point 590 feet east thereof, no parking any time.
(C62, § 30-1222; O.8084, 8108, 8776; C75, § 27-1251; O.9428; C79, § 27-1251; O.9685, 10,018, 10,309, 10,323, 10,434, 10,476, 10,598, 10,692; C91, § 27-2303; O.11,650, 13,123; C00, § 114-3331; O.14,518 (installed 4/2/08, 12/14/09, 2/14/12, 12/9/13, 12/11/14, 4/10/15, 10/4/17, 6/11/20), 15,079, 15,110, 15,387, 15,486, 15,641, 15,732, 16,171, 16,230, 16,276)

Sec. 114-3331.5. East Hull Avenue—East Forty-eighth Street to east city limits.

East Hull Avenue, on the north and west sides, from East Forty-eighth Street to the east city limits, no parking any time.
(O.14,862)

Sec. 114-3332. Hunter Avenue—Thirty-eighth Place to Thirty-ninth Street.

Hunter Avenue, on the south side, from Thirty-ninth Street to the dead end, east, no parking any time.

Hunter Avenue, on the north side, from 3811 Hunter Avenue east to and including the dead end, no parking 8:00 a.m. to 4:00 p.m., Fridays.
(C62, § 30-1222.02; O.8922; C75, C79, § 27-1251.01; C91, § 27-2304; O.11,650, 14,371)

Sec. 114-3333. Huntland Drive—Northwest Drive to Forty-first Street.

Huntland Drive, on the south side, from Northwest Drive to Forty-first Street, no parking any time.

Huntland Drive, on the north side, from Forty-first Street to a point 50 feet east thereof, no parking any time.
(C62, § 30-1222.01; O.8529; C75, C79, § 27-1251.02; O.10,434; C91, § 27-2305; O.11,650)

Sec. 114-3334. Hutton Street—East University Avenue to East Washington Avenue.

Hutton Street, on the west side, from East University Avenue to East Washington Avenue, no parking any time.

Hutton Street, on the east side, from East University Avenue to a point 50 feet north thereof, no parking any time.

Hutton Street, on the east side, from a point 50 south of Garfield Avenue (east leg) to a point 50 feet north of Garfield Avenue (east leg), no parking any time.

Hutton Street, on the east side, from a point 50 feet south of Cleveland Avenue to a point 120 feet north of Cleveland Avenue, no parking any time.
(C75, § 27-1251.03; O.9219; C79, § 27-1251.03; O.10,598; C91, § 27-2306; O.11,650; C00, § 114-3334; O.14,518 (installed 5/21/07, 3/12/18, 9/16/20), 16,171)

Sec. 114-3335. Hyde Drive—Caulder Avenue to Southwest Twelfth Street.

Hyde Drive, on the south side, from Caulder Avenue to Southwest Twelfth Street, no parking any time.
(C79, § 27-1251.04; O.10,111; C91, § 27-2307; O.11,650)

Sec. 114-3336. Idaho Street—Garfield Avenue to Morton Avenue.

Idaho Street, on the east side, from Garfield Avenue to East Washington Avenue, no parking any time.

Idaho Street, on the west side, from Garfield Avenue to a point 50 feet north thereof, no parking any time.

Idaho Street, on the west side, from Cleveland Avenue to a point 50 feet south thereof, no parking any time.

Idaho Street, on the west side, from East Sheridan Avenue to Morton Avenue, no parking any time.

Idaho Street, on the east side, from Morton Avenue to a point 50 feet south thereof, no parking any time.
(C62, § 30-1223; O.8084; C75, § 27-1252; O.9219; C79, § 27-1252; C91, § 27-2308; O.11,650; C00, § 114-3336; O.14,053, 14,518 (installed 5/17/06), 16,171)

Sec. 114-3337. Illinois Street—Dead end south of University Avenue to Washington Avenue.

Illinois Street, on the east side, from a point 1,165 feet south of University to a point 1,015 feet south of University, no parking any time.

Illinois Street, on the west side, from a point 1,025 feet south of University Avenue to Indiana Avenue, no parking any time.

Illinois Street, on the east side, from a point 350 feet south of University Avenue to a point 75 feet north of University Avenue, no parking any time.

Illinois Street, on the east side, from Clark Street to a point 75 feet south thereof, no parking any time.

Illinois Street, on the west side, from a point 450 feet south of Clark Street to Washington Avenue, no parking any time.

Illinois Street, on the east side, from Clark Street to a point 260 feet north thereof, no parking any time.
(C62, § 30-1224; O.8084, 8832; C75, § 27-1253; O.8970, 8994, 9212, 9279; C79, § 27-1253; O.9959; C91, § 27-2309; O.11,650, 12,036, 14,533)

Sec. 114-3338. Indiana Avenue—Michigan Street to Ninth Street.

Indiana Avenue, on the south side, from a point 600 feet east of Illinois Street to Maine Street, no parking any time.

Indiana Avenue, on the south side, from Maine Street to a point 190 feet east of Second Avenue, two-hour parking 9:00 a.m. to 4:00 p.m.

Indiana Avenue, on the south side, from Second Avenue to a point 190 feet east thereof, no parking any time.

Indiana Avenue, on the south side, from Second Avenue to a point 275 feet west thereof, no parking any time.

Indiana Avenue, on the north side, from Maine Street to Sixth Avenue, no parking any time.

Indiana Avenue, on the south side, from a point 50 feet east of Third Street to a point 50 feet west of Third Street, no parking any time.

Indiana Avenue, on the south side, from a point 50 feet east of Fourth Street to a point 50 feet west of Fourth Street, no parking any time.

Indiana Avenue, on the south side, from a point 50 feet east of Fifth Avenue to a point 50 feet west of Fifth Avenue, no parking any time.

Indiana Avenue, on the south side, from a point 60 feet west of Sixth Avenue to a point 50 feet east of Sixth Avenue, no parking any time.

Indiana Avenue, on the north side, from Sixth Avenue to Seventh Street, no parking any time.

Indiana Avenue, on the north side, from Seventh Street to a point 25 feet west thereof, no parking any time.

Indiana Avenue, on the north side, from a point 25 feet east of Eighth Street to a point 25 feet west thereof, no parking any time.

Indiana Avenue, on the north side, from Ninth Street to a point 50 feet east thereof, no parking any time.

Indiana Avenue, on the south side from Eighth Street to a point 75 feet west thereof, no parking any time.
(C62, § 30-1225; O.8084, 8313, 8897; C75, § 27-1254; O.8970, 9458, 9566; C79, § 27-1254; O.9957, 10,271, 10,316; C85, § 27-1254; O.11,407; C91, § 27-2310; O.11,650; C00, § 114-3338; O.14,226, 14,491, 14,518 (installed 6/14/06), 16,171)

Sec. 114-3339. Indianapolis Avenue—East Twenty-sixth Street to East Forty-first Street.

Indianapolis Avenue, on the north side, from a point 260 feet west of East Twenty-seventh Street to East Twenty-ninth Street, no parking any time.

Indianapolis Avenue, on the south side, from a point 60 feet west of East Twenty-ninth Street to East Thirty-third Street, no parking any time.

Indianapolis Avenue, on the north side, from a point 50 feet west of East Thirty-third Street to East Thirty-third Street, no parking any time.

Indianapolis Avenue, on the south side, from East Thirty-third Court to East Forty-first Street, no parking any time.

Indianapolis Avenue, on the north side, from East Thirty-seventh Street to East Fortieth Street, no parking any time.
(C79, § 27-1254.01; O.9640, 9685, 10,123; C91, § 27-2311; O.11,650, 11,969, 14,518 (installed 7/25/18, 2/27/19), 16,171)

Sec. 114-3340. Reserved.

Editor's note—Ord. No. 14,057, repealed § 114-3340 which pertained to Indianola Avenue—South Union Street to Courtland Drive and derived from Code 1962, § 30-1226; Ord. No. 8084; Ord. No. 8743; Code 1975, Code 1979, § 27-1255; Ord. No. 10,144; Code 1991, § 27-2312; Ord. No. 11,650; Ord. No. 13,029; Ord. No. 13,691; Ord. No. 13,724.

Sec. 114-3341. Indianola Avenue—Jackson Avenue to south city limits.

Indianola Avenue, on the westerly side, from Jackson Avenue to a point 100 feet southeasterly of Edison Avenue, no parking any time.

Indianola Avenue, on the westerly side, from a point 100 feet southeasterly of Edison Avenue to a point 220 feet southeasterly thereof, bus loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Indianola Avenue, on the westerly side, from a point 320 feet southeasterly of Edison Avenue to Southeast Seventh Street, no parking any time.

Indianola Avenue, on the westerly side, from Southeast Seventh Street to a point 200 feet southeasterly thereof, bus loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Indianola Avenue, on the westerly side, from a point 200 feet southeasterly of Southeast Seventh Street to Southeast Eighth Street, no stopping or standing.

Indianola Avenue, on the westerly side, from Southeast Eighth Street to East Rose Avenue, no parking any time.

Indianola Avenue, on the westerly side, from East Rose Avenue to a point 340 feet east of Southeast Sixteenth Court, no stopping or standing.

Indianola Avenue, on the western side, from a point 340 feet east of Southeast Sixteenth Court to Southridge Boulevard, no parking any time.

Indianola Avenue, on the easterly side, from Jackson Avenue to Southeast Seventh Street, no parking any time.

Indianola Avenue, on the easterly side, from Southeast Seventh Street to Southeast Eighth Street, no stopping or standing.

Indianola Avenue, on the easterly side, from Southeast Eighth Street to a point 1115 feet southeasterly of Evergreen Avenue, no parking any time.

Indianola Avenue, on the easterly side, starting at a point 1115 feet southeasterly of Evergreen Avenue to a point of intersection with the northeasterly projection of the northerly line of East Watrous Avenue thereof, no stopping or standing.

Indianola Avenue, on the easterly side, starting at a point of intersection with the northeasterly projection of the southerly line of East Watrous Avenue thence easterly 475 feet thereof, school passenger loading and unloading, 7:00 a.m. to 5:00 p.m. school days; no parking at all other times.

Indianola Avenue, on the easterly side, from a point 475 feet south of East Watrous Avenue to Southridge Boulevard, no parking any time.
(C62, § 30-1227; O.8084, 8108, 8323, 8510, 8743; C75, C79, § 27-1256; O.9629, 9693, 10,161, 10,218, 10,535; C91, § 27-2313; O.11,650, 13,162, 14,057, 14,437, 14,627, 14,982, 15,341)

Sec. 114-3341.01. Indianola Road—South Union Street to Southeast First Street.

Indianola Road on the south side, from South Union Street to a point 170 feet west of Southeast First Street, no parking 7:00 a.m. to 6:00 p.m., Monday through Friday.

Indianola Road on the south side, from Southeast First Street to a point 170 feet west thereof, no parking any time.

Indianola Road on the northerly side, from South Union Street to Southeast First Street, no parking any time.
(O.14,057, 14,437)

Sec. 114-3341.02. Indianola Road—South Union Street to Thomas Beck Road.

Indianola Road, on the south side, from South Union Street to a point 100 feet east of Southwest First Street, no parking 7:00 a.m. to 6:00 p.m., Monday through Friday.

Indianola Road, on the north side, from a point 100 feet east of Southwest First Street to a point 180 feet east of Southwest First Street, is designated a handicapped parking space and is subject to the same prohibition as is found in section 114-616(a) of this Code.

Indianola Road, on the north side, from a point 180 feet east of Southwest First Street to South Union Street, is designated a handicapped parking space on Saturday and Sunday and is subject to the same prohibition as is found in section 114-616(a) of this Code.

Indianola Road, on both sides, from a point 100 feet east of Southwest First Street to a point 100 feet west of Southwest First Street, no parking any time.

Indianola Road, on both sides, from Courtland Drive to Thomas Beck Road, no parking any time.
(O.14,057)

Sec. 114-3342. Ingersoll Avenue—Fourteenth Street to Martin Luther King Jr Parkway.

Ingersoll Avenue, on the south side, from Martin Luther King Jr Parkway to Eighteenth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the south side, from Eighteenth Street to Seventeenth Street, no parking any time.

Ingersoll Avenue, on the south side, from Seventeenth Street to a point 66 feet east thereof, no parking any time.

Ingersoll Avenue, on the south side, from Sixteenth Street to a point 40 feet west thereof, no parking any time.

Ingersoll Avenue, on the south side, from Sixteenth Street to a point 52 feet east thereof, no parking any time.

Ingersoll Avenue, on the south side, from Fifteenth Street to a point 185 feet west thereof, no parking any time.

Ingersoll Avenue, on the north side, from Fourteenth Street to a point 170 feet east thereof, no parking any time.

Ingersoll Avenue, on the north side, from Fourteenth Street to a point 60 feet west thereof, no parking any time.

Ingersoll Avenue, on the north side, from Fifteenth Street to a point 55 feet east thereof, no parking any time.

Ingersoll Avenue, on the north side, from Fifteenth Street to a point 45 feet west thereof, no parking any time.

Ingersoll Avenue, on the north side, from Seventeenth Street to a point 73 feet east thereof, no parking any time.

Ingersoll Avenue, on the north side, from Seventeenth Street to a point 60 feet west thereof, no parking any time.

Ingersoll Avenue, on the north side, from Eighteenth Street to a point 37 feet east thereof, no parking any time.

Ingersoll Avenue, on the north side, from Nineteenth Street to a point 52 feet east thereof, no parking any time.

Ingersoll Avenue, on the north side, from Nineteenth Street to a point 52 feet west thereof, no parking any time.

Ingersoll Avenue, on the north side, from a point 50 feet east of Nineteenth Street to a point 50 feet west of Nineteenth, no parking any time.

Ingersoll Avenue, on the north side, from a point 52 feet west of Nineteenth Street to a point 300 feet east of Martin Luther King Jr Parkway, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the north side, from Martin Luther King Jr Parkway to a point 300 feet east thereof, no parking any time.
(C62, § 30-1228; O.8084, 8250; C75, C79, § 27-1257; C91, § 27-2314; O.11,650, 11,935, 12,083, 14,204, 14,250, 15,021, 15,295, 15,583, 16,293)

Sec. 114-3343. Ingersoll Avenue—Martin Luther King Jr Parkway to Twenty-eighth Street.

Ingersoll Avenue, on the north side, from a point 290 feet west of Martin Luther King Jr Parkway to a point 115 feet west thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the north side, from a point 405 feet west of Martin Luther King Jr Parkway to a point 30 feet west thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in section 114-616(a) of this Code.

Ingersoll Avenue, on the north side, from a point 515 feet west of Martin Luther King Jr Parkway to a point 255 feet west thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the north side, from a point 855 feet west of Martin Luther King Jr Parkway to a point 35 feet west thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the north side, from a point 890 feet west of Martin Luther King Jr Parkway to a point 25 feet west thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in section 114-616(a) of this Code.

Ingersoll Avenue, on the north side, from a point 95 feet west of Twenty-third Street to a point 165 feet west thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the north side, from a point 25 feet west of Twenty-fourth Street to a point 25 feet west thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the north side, from a point 50 feet west of Twenty-fourth Street to a point 30 feet west thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in section 114-616(a) of this Code.

Ingersoll Avenue, on the north side, from a point 140 feet west of Twenty-fourth Street to a point 75 feet west thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the north side, from a point 400 feet west of Twenty-fourth Street to a point 85 feet west thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the north side, from a point 665 feet west of Twenty-fourth Street to a point 120 feet west thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the north side, from a point 860 feet west of Twenty-fourth Street to a point 100 feet west thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the north side, from a point 1035 feet west of Twenty-fourth Street to a point 200 feet west thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the north side, from a point 1235 feet west of Twenty-fourth Street to a point 25 feet west thereof, is designated a

handicapped parking space and is subject to the same prohibition as is found in section 114-616(a) of this Code.

Ingersoll Avenue, on the south side, from a point 465 feet west of Martin Luther King Jr Parkway to a point 230 feet west thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the south side, from a point 695 feet west of Martin Luther King Jr Parkway to a point 30 feet west thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in section 114-616(a) of this Code.

Ingersoll Avenue, on the south side, from a point 865 feet west of Martin Luther King Jr Parkway to a point 85 feet west thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the south side, from a point 45 feet west of Twenty-third Street to a point 125 feet west thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the south side, from a point 250 feet west of Twenty-third Street to a point 60 feet west of Twenty-fourth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the south side, from a point 175 feet west of Twenty-fourth Street to a point 85 feet west thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the south side, from a point 335 feet west of Twenty-fourth Street to a point 65 feet west thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the south side, from a point 715 feet west of Twenty-fourth Street to a point 195 feet west thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the south side, from a point 995 feet west of Twenty-fourth Street to a point 60 feet west thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the south side, from a point 1,100 feet west of Twenty-fourth Street to a point 165 feet west thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

(C62, § 30-1229; O.8084, 8491; C75, § 27-1258; O.9226, 9513; C79, § 27-1258; O.10,370; C91, § 27-2315; O.11,650, 11,935, 13,218, 14,204, 14,227, 14,270, 14,556, 14,691, 15,081, 15,140, 15,763, 16,299)

Sec. 114-3344. Ingersoll Avenue—Twenty-eighth Street to Thirty-fifth Street.

Ingersoll Avenue, on the north side, from Twenty-eighth Street to a point 90 feet east of Twenty-ninth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the north side, from a point 90 feet east of Twenty-ninth Street to a point 40 feet west of Twenty-ninth Street, no parking any time.

Ingersoll Avenue, on the north side, from a point 190 feet west of Twenty-ninth Street to a point 50 feet west thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in subsection 114-616(a) of this chapter.

Ingersoll Avenue, on the north side, from a point 40 feet west of Twenty-ninth Street to a point 170 feet east of Thirty-first Street, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the north side, from a point 170 feet east of Thirty-first Street to a point 58 feet west of Thirty-first Street, no parking any time.

Ingersoll Avenue, on the north side, from a point 40 feet west of Thirty-first Street to a point 75 feet east of Crescent Drive, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the north side, from a point 75 feet east of Crescent Drive to a point 35 feet west of Crescent Drive, no parking any time.

Ingersoll Avenue, on the north side, from a point 35 feet west of Crescent Drive to a point 90 feet east of Thirty-fourth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the north side, from a point 90 feet east of Thirty-fourth Street to a point 40 feet west of Thirty-fourth Street, no parking any time.

Ingersoll Avenue, on the north side, from a point 40 feet west of Thirty-fourth Street to a point 100 feet west thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the north side, from a point 140 feet west of Thirty-fourth Street to Thirty-fifth Street, no parking any time.

Ingersoll Avenue, on the south side, from Twenty-eighth Street to a point 60 feet west thereof, no parking any time.

Ingersoll Avenue, on the south side, from a point 60 feet west of Twenty-eighth Street to a point 290 feet east of Twenty-ninth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the south side, from a point 140 feet east of Twenty-ninth Street to a point 150 feet east thereof, no parking any time.

Ingersoll Avenue, on the south side, from a point 40 feet east of Twenty-ninth Street to a point 100 feet east thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the south side, from a point 40 feet east of Twenty-ninth Street to a point 40 feet east thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in subsection 114-616(a) of this chapter.

Ingersoll Avenue, on the south side, from a point 40 feet east of Twenty-ninth Street to a point 80 feet west of Twenty-ninth Street, no parking any time.

Ingersoll Avenue, on the south side, from a point 80 feet west of Twenty-ninth Street to a point 180 feet east of Thirty-first Street, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the south side, from a point 180 feet east of Thirty-first Street to a point 180 feet west of Thirty-first Street, no parking any time.

Ingersoll Avenue, on the south side, from a point 180 feet west of Thirty-first Street to a point 50 feet west of Crescent Drive, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the south side, from a point 50 feet west of Crescent Drive to a point 160 feet west thereof, no parking any time.

Ingersoll Avenue, on the south side, from a point 210 feet west of Crescent Drive to Thirty-fifth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

(C62, § 30-1230; O.8084, 8310; C75, § 27-1259; O.9190, 9513; C79, § 27-1259; O.10,407, 10,706; C85, § 27-1259; O.10,747, 10,938, 10,999, 11,372; C91, § 27-2316; O.11,650, 13,121, 13,159, 13,197, 13,239, 14,227, 14,250, 14,476, 14,818, 15,140, 15,776, 16,350)

Sec. 114-3345. Ingersoll Avenue—Thirty-fifth Street to Fifty-ninth Street.

Ingersoll Avenue, on the south side, from Thirty-fifth Street west for a distance of 130 feet, no parking any time.

Ingersoll Avenue, on the south side, from a point 130 feet west of Thirty-fifth Street to a point 345 feet west of Thirty-sixth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the south side, from a point 345 feet west of Thirty-sixth Street to a point 90 feet west thereof, no parking any time.

Ingersoll Avenue, on the south side, from a point 435 feet west of Thirty-sixth Street to a point 345 feet east of Thirty-ninth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the south side, from a point 210 feet east of Thirty-ninth Street to a point 135 feet east thereof, no parking any time.

Ingersoll Avenue, on the south side, from a point 50 feet east of Thirty-ninth Street to a point 160 feet east thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the south side, from a point 50 feet east of Thirty-ninth Street to a point 160 feet west of Thirty-ninth Street, no parking any time.

Ingersoll Avenue, on the south side, from a point 50 feet east of Fortieth Street to a point 75 feet west of Fortieth Street, no parking any time.

Ingersoll Avenue, on the south side, from Forty-first Street to a point 70 feet west thereof, no parking any time.

Ingersoll Avenue, on the south side, from a point 70 feet west of Forty-first Street to a point 150 feet west thereof, passenger loading zone.

Ingersoll Avenue, on the north side, from Thirty-fifth Street to a point 40 feet west thereof, no parking any time.

Ingersoll Avenue, on the north side, from a point 40 feet west of Thirty-fifth Street to a point 40 feet west thereof, two-hour parking, 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the north side, from a point 80 feet west of Thirty-fifth Street to Thirty-sixth Street, no parking any time.

Ingersoll Avenue, on the north side, from Thirty-sixth Street to a point 75 feet east of Thirty-seventh Street, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the north side, from Thirty-seventh Street to a point 75 feet east thereof, no parking any time.

Ingersoll Avenue, on the north side, from Thirty-seventh Street to a point 100 feet west thereof, no parking any time.

Ingersoll Avenue, on the north side, from a point 100 feet west of Thirty-seventh Street to a point 48 feet west thereof, loading zone.

Ingersoll Avenue, on the north side, from a point 148 feet west of Thirty-seventh Street to a point 80 feet east of Thirty-eighth Street, no parking any time.

Ingersoll Avenue, on the north side, from Thirty-eighth Street to a point 75 feet east of Thirty-ninth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

Ingersoll Avenue, on the north side, from a point 75 feet east of Thirty-ninth Street to a point 50 feet west of Thirty-ninth Street, no parking any time.

Ingersoll Avenue, on the north side, from a point 75 feet east of Fortieth Street to a point 50 feet west of Fortieth Street, no parking any time.

Ingersoll Avenue, on the north side, from a point 50 feet east of Forty-first Street to a point 50 feet west of Forty-first Street, no parking any time.

Ingersoll Avenue, on the south side, from Forty-second Street to a point 235 feet west of Forty-second Street, no parking any time.

Ingersoll Avenue, on the south side, from a point 360 feet west of Forty-second Street to Polk Boulevard, no parking any time.

Ingersoll Avenue, on the north side, from Forty-second Street to Forty-third Street, no parking any time.

Ingersoll Avenue, on the north side, from a point 80 feet east of Forty-fourth Street to a point 30 feet west of Forty-fourth Street, no parking any time.

Ingersoll Avenue, on the north side, from a point 30 feet east of Forty-fifth Street to a point 30 feet west of Forty-fifth Street, no parking any time.

Ingersoll Avenue, on the north side, from a point 50 feet east of Forty-sixth Street to Polk Boulevard, no parking any time.

Ingersoll Avenue, on the north side, from Polk Boulevard to Forty-eighth Street, no parking any time.

Ingersoll Avenue, on the south side, from Polk Boulevard to Fifty-ninth Street, no parking any time.

Ingersoll Avenue, on the north side, from a point 370 feet east of Country Club Boulevard to a point 230 feet west of Country Club Boulevard, no parking any time.

Ingersoll Avenue, on the north side, from Fifty-third Street to a point 350 feet east thereof, no parking any time.

Ingersoll Avenue, on the north side, from a point 75 feet east of Fifty-sixth Street to Fifty-ninth Street, no parking any time.
(C62, § 30-1231; O.8084; C75, § 27-1260; O.9190, 9513; C79, § 27-1260; O.9813, 10,007, 10,040, 10,236, 10,692; C85, § 27-1260; O.10,848; C91, § 27-2317; O.11,650, 11,871, 13,139, 13,639; C00, § 114-3345; O.14,227, 14,518 (installed 10/7/16), 15,140, 15,580, 16,081, 16,171, 16,546)

Sec. 114-3346. Iola Avenue—Thirty-first Street to Thirty-sixth Street.

Iola Avenue, on the south side, from Thirty-first Street to Thirty-sixth Street, no parking any time.

Iola Avenue, on the north side, from Thirty-first Street to a point 50 feet west thereof, no parking any time.

Iola Avenue, on the north side, from Thirty-third Street to a point 50 feet west thereof, no parking any time.

Iola Avenue, on the north side, from Thirty-fifth Street to a point 100 feet east thereof, no parking any time.

Iola Avenue, on the north side, from Thirty-fifth Street to a point 50 feet west thereof, no parking any time.

Iola Avenue, on the north side, from Thirty-sixth Street to a point 60 feet east thereof, no parking any time.
(C62, § 30-1232; O.8084; C75, C79, § 27-1261; O.9886; C85, § 27-1261; O.10,799; C91, § 27-2318; O.11,650; C00; O.14,518 (installed 7/31/07, 12/4/14, 12/11/14), 16,171)

Sec. 114-3347. Iowa Highway 28.

Iowa Highway 28, on both sides, from Southwest McKinley Avenue to South city limits, no parking any time.
(C91, § 27-2318.05; O.13,268, 14,339)

Sec. 114-3348. Irving Street—Holmes Street to Bancroft Street.

Irving Street, on both sides, from Holmes Street to Bancroft Street, no parking any time.
(C79, § 27-1261.01; O.10,111, 10,162; C91, § 27-2319; O.11,650, 13,772, 13,780, 13,874)

Sec. 114-3349. Jackson Avenue—South Union Street to Southwest Third Street.

Jackson Avenue, on both sides, from South Union Street to Southwest Third Street, no parking any time.
(C62, § 30-1233; O.8084; C75, C79, § 27-1262; O.9849; C91, § 27-2320; O.11,650, 13,218)

Sec. 114-3350. East Jackson Avenue—South Union Street to Southeast Ninth Street.

East Jackson Avenue, on the north side, from South Union Street to Southeast First Street, no parking any time.

East Jackson Avenue, on the south side, from South Union Street to a point 45 feet east of Southeast Fifth Street, no parking any time.

East Jackson Avenue, on the north side, from Southeast Fifth Street to a point 75 feet west of Southeast Sixth Street, no parking 7:00 a.m. to 5:00 p.m., school days.

East Jackson Avenue, on the south side, from a point 75 feet east of Southeast Fifth Street to a point 100 feet east thereof, school passenger loading and unloading 7:00 a.m. to 5:00 p.m., school days.

East Jackson Street, on the south side, from Southeast Sixth Street to a point 100 feet east thereof, no parking any time.

East Jackson Avenue, on the south side, from a point 75 feet west of Southeast Sixth Street to Southeast Sixth Street, no parking any time.

East Jackson Avenue, on the north side, from Southeast Sixth Street to Southeast Ninth Street, no parking any time.

East Jackson Avenue, on the north side, from Southeast Sixth Street to a point 75 feet west thereof, no parking any time.
(C62, § 30-1234; O.8084, 8108; C75, § 27-1263; O.8981, 9593; C79, § 27-1263; O.9849, 10,111, 10,373; C85, § 27-1263; O.11,238; C91, § 27-2321; O.11,650, 11,724, 11,725, 11,987, 13,218, 14,304)

Sec. 114-3351. Jarvis Street—Southwest Ninth Street to Glover Avenue.

Jarvis Street, on the south side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.

Jarvis Street, on the north side, from Southwest Ninth Street to Glover Avenue, no parking any time.
(C62, § 30-1234.01; O.8389; C75, C79, § 27-1263.01; O.10,598; C91, § 27-2322; O.11,650)

Sec. 114-3352. Johnson Court—Dead end south of East Vine Street to Fremont Street.

Johnson Court, on the west side, from East Vine Street to and including the dead end south of East Vine Street, no parking any time.

Johnson Court, on the east side, from East Vine Street to a point 80 feet south thereof, no parking 8:00 a.m. to 4:00 p.m. Tuesdays.

Johnson Court, on both sides, from Southeast Fourteenth Street to north Dean Avenue, no parking any time.

Johnson Court, on both sides, from East fifteenth Street north to Fremont Street, no parking any time.
(C75, § 27-1263.02; O.9593; C79, § 27-1263.02; C91, § 27-2323; O.11,650, 16,462)

Sec. 114-3353. Jerlynn Avenue—North Union Street to dead end east of East Tenth Street.

Jerlynn Avenue, on the north side, from North Union Street to and including the dead end east thereof, no parking any time.

Jerlynn Avenue, on the south side, from a point 255 feet east of North Union Street to the dead end east thereof, no parking any time.

Jerlynn Avenue, on the north side, from the dead end west of East Tenth Street to a point 50 feet east thereof, no parking any time.

Jerlynn Avenue, on the south side, from and including the dead end west of East Tenth Street to a point 80 feet east of East Tenth Street, no parking any time.

Jerlynn Avenue, on the north side, from East Tenth Street to York Street, no parking any time.
(C79, § 27-1263.03; O.9719, 9849; C91, § 27-2324; O.11,650, 14,000, 16,334)

Sec. 114-3354. Jewett Lane—Arapahoe Drive to dead end east.

Jewett Lane, on the south side, from Arapahoe Drive to a point 300 feet east thereof, no parking any time.
(C79, § 27-1263.04; O.9849; C91, § 27-2325; O.11,650)

Sec. 114-3355. Jefferson Avenue—Des Moines River to Sixteenth Street.

Jefferson Avenue, on the north side, from the Des Moines River Levee to Second Avenue, no parking any time.

Jefferson Avenue, on the south side, from Ohio Street to a point 75 feet west thereof, no parking any time.

Jefferson Avenue, on the south side, from Second Avenue to a point 100 feet east thereof, no parking any time.

Jefferson Avenue, on the south side, from Sixth Avenue to a point 90 feet west thereof, no parking any time.

Jefferson Avenue, on the north side, from Ninth Street to Sixteenth Street, no parking any time.

Jefferson Avenue, on the south side, from Thirteenth Street to a point 40 feet west thereof, no parking any time.

Jefferson Avenue, on the south side, from Sixteenth Street to a point 75 feet east thereof, no parking any time.
(C62, § 30-1235; O.8084, 8147, 8387; C75, § 27-1264; O.8970, 9518; C79, § 27-1264; O.9693, 10,123; C91, § 27-2326; O.11,650; C00, § 114-3355; O.14,518 (installed 7/22/13), 16,171)

Sec. 114-3356. Jefferson Avenue—Sixteenth Street to Thirty-sixth Street.

Jefferson Avenue, on the south side, from Sixteenth Street to Martin Luther King Jr Parkway, no parking any time.

Jefferson Avenue, on the north side, from Martin Luther King Jr Parkway to a point 60 feet east thereof, no parking any time.

Jefferson Avenue, on the north side, from Thirtieth Street to Thirty-sixth Street, no parking any time.

Jefferson Avenue, on the south side, from Thirtieth Street to a point 50 feet west thereof, no parking any time.
(C62, § 30-1236; O.8084, 8320; C75, C79, § 27-1265; O.9886; C91, § 27-2327; O.11,650, 11,935)

Sec. 114-3357. East Jefferson Avenue—East Eighth Street to Williams Street.

East Jefferson Avenue, on the north side, from East Eighth Street to East Ninth Street, no parking any time.

East Jefferson Avenue, on the south side, from East Ninth Street to East Fourteenth Street, no parking any time.

East Jefferson Avenue, on the north side, from a point 50 feet west of East Twelfth Street to a point 50 feet east of East Twelfth Street, no parking any time.

East Jefferson Avenue, on the north side, from a point 75 feet west of East Fourteenth Street to a point 50 feet east of East Fourteenth Street, no parking any time.

East Jefferson Avenue, on the south side, from East Fourteenth Street to Glenbrook Drive, no parking any time.

East Jefferson Avenue, on the north side, from Dixon to DeWolf Street, no parking any time.

East Jefferson Avenue, on the south side, from East Twenty-second Street to East Twenty-fifth Street, no parking any time.

East Jefferson Avenue, on the south side, from East Twenty-seventh Court to East Twenty-eighth Street, no parking any time.

East Jefferson Avenue, on the south side, from Larnard Drive to East Thirty-first Street, no parking any time.

East Jefferson Avenue, on the north side, from Larnard Drive to a point 50 feet east thereof, no parking any time.

East Jefferson Avenue, on the north side, from East Thirty-third Street to and including the dead end east of East Thirty-third Street, no parking any time.

East Jefferson Avenue, on the south side, from East Thirty-third Street to a point 65 feet east thereof, no parking any time.

East Jefferson Avenue, on the north side, from East Thirty-eighth Street to Williams Street, no parking any time.
(C62, § 30-1237; O.8084; C75, § 27-1266; O.9021, 9032, 9100; C79, § 27-1266; O.9685, 9708, 10,123, 10,402, 10,421; C85, § 27-1266; O.10,999; C91, § 27-2328; O.11,650; C00, § 114-3357; O.14,518 (installed 5/2/19, 4/28/20), 16,171, 16,462)

Sec. 114-3358. John Patterson Road—Avenue Frederick M. Hubbell to East Thirty-second Street.

John Patterson Road, on the north side, from Avenue Frederick M. Hubbell to East Thirty-second Street, no parking any time.
(C62, § 30-1237.01; O.8320; C75, C79, § 27-1266.01; O.10,123; C91, § 27-2329; O.11,650)

Sec. 114-3359. Johnson Street—Southwest Ninth Street to Southwest Seventeenth Street.

Johnson Street, on the south side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.

Johnson Street, on the north side, from Southwest Ninth Street to Southwest Fourteenth Street, no parking any time.

Johnson Street, on the south side, from Southwest Fifteenth Street to Southwest Seventeenth Street, no parking any time.
(C79, § 27-1266.011; O.9685, 10,598; C91, § 27-2330; O.11,650)

Sec. 114-3360. John Lynde Road—Lincoln Place Drive to Forty-second Street.

John Lynde Road, on the north side, from Lincoln Place Drive to Southwest Thirty-fourth Street, no parking any time.

John Lynde Road, on the south side, from Thirty-fourth Street to Thirty-fifth Street, no parking any time.
(C79, § 27-1266.012; O.9849; C91, § 27-2331; O.11,650)

Sec. 114-3361. Jordan Drive—Southeast Fifth Street to Hart Avenue.

Jordan Drive, on the west side, from Southeast Fifth Street to Hart Avenue, no parking any time.

Jordan Drive, on the east side, from a point 90 feet north of East Diehl Avenue to a point 80 feet south of East Diehl Avenue, no parking any time.
(C79, § 27-1266.013; O.9849; C91, § 27-2332; O.11,650, 16,393)

Sec. 114-3362. Juniper Court—Southeast Twentieth Street to dead end west.

Juniper Court, on the south side, from Southeast Twentieth Street to a point 180 feet west thereof and any part of the cul-de-sac, no parking any time.
(C79, § 27-1266.014; O.10,123; C91, § 27-2333; O.11,650)

Sec. 114-3363. Kendallwood Circle—Southwest Twenty-ninth Street to dead end west.

Kendallwood Circle, on the south side, from Southwest Twenty-ninth Street to a point 150 feet west thereof and any part of the cul-de-sac, no parking any time.
(C79, § 27-1266.015; O.10,207; C91, § 27-2334; O.11,650)

Sec. 114-3363.5. Kennedy Drive—East Douglas Avenue to dead end east.

Kennedy Drive, on both sides, from East Douglas Avenue to the dead end east thereof, no parking any time.
(O.15,881)

Sec. 114-3364. East Kenyon Avenue—South Union Street to Southeast Thirty-second Street.

East Kenyon Avenue, on the north side, from South Union Street to Southeast Seventh Street, no parking any time.

East Kenyon Avenue, on the south side, from South Union to a point 60 feet east thereof, no parking any time.

East Kenyon Avenue, on the south side, from a point 600 feet east of Southeast First Court to a point 725 feet east thereof, no parking any time.

East Kenyon Avenue, on the south side, from Southeast Fifth Street to a point 100 feet east thereof, no parking any time.

East Kenyon Avenue, on the south side, from a point 60 feet west of Southeast Sixth Street to a point 60 feet east of Southeast Sixth Street, no parking any time.

East Kenyon Avenue, on the north side, from Southeast Seventh Street to Southeast Ninth Street, no stopping or standing.

East Kenyon Avenue, on the north side, from Southeast Ninth Street to Southeast Fourteenth Street, no parking any time.

East Kenyon Avenue, on the south side, from a point 150 feet east of Southeast Eighth Street to Southeast Ninth Street, no stopping or standing.

East Kenyon Avenue, on the north side, from Southeast Fourteenth Street to a point 50 feet west thereof, no parking any time.

East Kenyon Avenue, on the south side, from Southeast Fourteenth Street to a point 100 feet west thereof, no parking any time.

East Kenyon Avenue, on the south side, from Southeast Twenty-fourth Street to Southeast Thirty-first Street, no parking any time.

East Kenyon Avenue, on the north side, form Southeast Thirty-second Street west to and including the cul-de-sac, no parking any time.
(C62, § 30-1237.02; O.8433, 8484; C75, C79, § 27-1266.02; O.10,582, 10,598; C85, § 27-1266.02; O.11,476; C91, § 27-2335; O.11,650, 13,973, 14,033, 14,950, 15,583, 16,515)

Sec. 114-3365. Kenyon Avenue—South Union Street to Fleur Drive.

Kenyon Avenue, on the south side, from South Union Street to Southwest Ninth Street, no parking any time.

Kenyon Avenue, on the south side, from Southwest Ninth Street to a point 400 feet west thereof, no parking any time.

Kenyon Avenue, on the south side, from a point 370 feet west of Southwest Tenth Street to a point 70 feet west thereof, no parking any time.

Kenyon Avenue, on the north side, from South Union Street to a point 50 feet west thereof, no parking any time.

Kenyon Avenue, on the north side, from Southwest Ninth Street to a point 100 feet east thereof, no parking any time.

Kenyon Avenue, on the north side, from Southwest Ninth Street to Fleur Drive, no parking any time.

Kenyon Avenue, on the south side, from Southwest Fourteenth Street to a point 70 feet west thereof, no parking any time.

Kenyon Avenue, on the south side, from Southwest Twentieth Street to Fleur Drive, no parking any time.
(C75, § 27-1266.03; O.9009, 9308, 9369, 9471; C79, § 27-1266.03; O.9845, 9886, 9971, 10,399, 10,532, 10,598; C85, § 27-1266.03; O.11,024, 11,600; C91, § 27-2336; O.11,650, 12,090, 13,162, 15,081, 15,358, 16,293)

Sec. 114-3365.5. East Kenyon Circle—Cul-de-sac north of Southeast Twenty-fifth Street to Southeast Twenty-fifth Street.

East Kenyon Circle, on the east side, from Twenty-fifth Street to a point 400 feet north of Southeast Twenty-fifth Street and any part of the cul-de-sac, no parking any time.
(O.15,583)

Sec. 114-3366. Kenway Drive—Maryland Pike to Beavercrest Drive.

Kenway Drive, on the east side, from Maryland Pike to Beavercrest Drive, no parking any time.

Kenway Drive, on the west side, from Maryland Pike to a point 50 feet north thereof, no parking any time.
(C79, § 27-1266.04; O.9886; C91, § 27-2337; O.11,650; C00, § 114-3366; O.14,518 (installed 5/18/09), 16,171)

Secs. 114-3367—114-3371. Reserved.

Editor's note—Ord. No. 13,855, § 1, adopted Aug. 21, 2000, repealed § 114-3367 which pertained to no parking zones on Keosauqua Way and derived from Code 1962, §§ 30-1238, 30-1240—30-1243; Ord. No. 8084; Ord. No. 8204; Ord. No. 8731; Code 1975 §§ 27-1267, 27-1269—27-1272; Ord. No. 9292; Ord. No. 9331; Code 1979, §§ 27-1267, 27-1269—27-1972; Code 1991, §§ 27-2338, 27-2339—27-2342; Ord. No. 11,650; Ord. No. 13,705; Ord. No. 13,773; and Ord. No. 13,085. See the Code Comparative Table for further information.

Sec. 114-3372. Keosauqua Way—Eighth Place to Twelfth Street.

Keosauqua Way, on both sides, from Eighth Place to Twelfth Street, no parking any time.
(C62, § 30-1246; O.8084; C75, C79, § 27-1275; O.10,418; C85, § 27-1275; O.11,591; C91, § 27-2345; O.11,650, 12,042)

Sec. 114-3373. Keosauqua Way—Twelfth Street to Crocker Street.

Keosauqua Way, on the east side, from Crocker Street to a point 140 feet south thereof, no parking any time.

Keosauqua Way, on the west side, from Twelfth Street to Crocker Street, no parking any time.
(C62, § 30-1247; O.8084; C75, C79, § 27-1276; O.10,418; C85, § 27-1276; O.11,591; C91, § 27-2346; O.11,650)

Sec. 114-3374. Keosauqua Way—Crocker Street to Nineteenth Street.

Keosauqua Way, on the east side, from Crocker Street to Fourteenth Place, no parking any time.

Keosauqua Way, on the west side, from Crocker Street to University Avenue, no parking any time.

Keosauqua Way, on the east side, from a point 100 feet south of Enos Avenue to a point 50 feet south thereof, commercial loading zone.

Keosauqua Way, on the west side, from University Avenue to Nineteenth Street, no parking 7:00 a.m. to 9:00 a.m.

Keosauqua Way, on the east side, from Lynn Avenue to Eighteenth Street, no parking 4:00 p.m. to 6:00 p.m.

Keosauqua Way, on the east side from Eighteenth Street to Nineteenth Street, no parking any time.
(C62, § 30-1248; O.8084, 8098; C75, C79, § 27-1277; O.10,418; C85, § 27-1277; O.11,516; C91, § 27-2347; O.11,650)

Sec. 114-3375. Keyes Drive—Jarvis Street to Thornton Avenue.

Keyes Drive, on the west side, from Jarvis Street to Thornton Avenue, no parking any time.
(C79, § 27-1277.011; O.10,111; C91, § 27-2349; O.11,650)

Sec. 114-3376. King Avenue—Southeast Eighth Court to dead end east.

King Avenue, on the south side, from Southeast Eighth Court to a point 70 feet east of Southeast Fourteenth Street, no parking any time.

King Avenue, on the north side, from a point 50 feet west of Southeast Fourteenth Street to Southeast Seventeenth Street, no parking any time.

King Avenue, on the south side, from a point 50 feet west of Southeast Fourteenth Street to a point 100 feet east of Southeast Fourteenth Street, no parking any time.

King Avenue, on the south side, from a point 530 feet east of Southeast Fourteenth Street to a point 240 feet east thereof, no parking any time.

King Avenue, on the south side, from Southeast Eighteenth Street to Southeast Twenty-second Street, no parking any time.

King Avenue, on the north side, from Southeast Twenty-second Street to dead end east of River Ridge Road, no parking any time.

King Avenue, on the north side, from Southeast Eighteenth Street to Southeast Eighteenth Court, no parking any time.
(C75, § 27-1277.01; O.9158, 9177; C79, § 27-1277.01; O.10,111, 10,350, 10,598, 10,706; C85, § 27-1277.01; O.11,203; C91, § 27-2348; O.11,650, 11,781, 13,958, 15,756)

Sec. 114-3377. Kingman Avenue—Fifty-sixth Street to Fifty-ninth Street.

Kingman Avenue, on the north side, from Fifty-sixth Street to Fifty-ninth Street, no parking any time.
(C79, § 27-1277.02; O.9685; C91, § 27-2350; O.11,650)

Sec. 114-3378. Kingman Boulevard—Twenty-fourth Street to Twenty-eighth Street.

Kingman Boulevard, on both sides, from Twenty-fourth Street to Twenty-fifth Street, no parking any time.

Kingman Boulevard, on the south side, from Twenty-fifth Street to a point 50 feet west thereof, no parking any time.

Kingman Boulevard, on the north side, from a point 100 feet east of Twenty-eighth Street to Twenty-eighth Street, no parking any time.

Kingman Boulevard, on the south side, from Twenty-eighth Street to a point 50 feet east thereof, no parking any time.
(C62, § 30-1249; O.8084; C75, C79, § 27-1278; O.10,547; C91, § 27-2351; O.11,650, 11,778)

Sec. 114-3379. Kingman Boulevard—Twenty-eighth Street to Thirty-fifth Street.

Kingman Boulevard, on the south side, from Twenty-eighth Street to a point 90 feet west thereof, no parking any time.

Kingman Boulevard, on the north side, from Twenty-eighth Street to a point 50 feet west thereof, no parking any time.

Kingman Boulevard, on the north side, from a point 120 feet east of Thirty-first Street to a point 100 feet west of Thirty-first Street, no parking any time.

Kingman Boulevard, on the south side, from a point 100 feet east of Thirty-first Street to a point 150 feet west of Thirty-first Street, no parking any time.

Kingman Boulevard, on both sides, from Thirty-fifth Street to a point 50 feet east thereof, no parking any time.
(C62, § 30-1250; O.8084; C75, § 27-1279; O.8994; C79, § 27-1279; O.9814, 10,057; C91, § 27-2352; O.11,650, 11,778, 13,218, 13,239; C00, § 114-3379; O.14,518 (installed 11/17/06), 16,171)

Sec. 114-3380. Kingman Boulevard—Thirty-fifth Street to Forty-second Street.

Kingman Boulevard, on both sides, from Thirty-fifth Street to a point 50 feet west thereof, no parking any time.

Kingman Boulevard, on the south side, from Thirty-seventh Street to a point 60 feet west thereof, no parking any time.

Kingman Boulevard, on the north side, from a point 50 feet east of Thirty-eighth Street to Thirty-eighth Street, no parking any time.

Kingman Boulevard, on the north side, from Forty-second Street to a point 150 feet east thereof, no parking any time.

Kingman Boulevard, on the south side, from Forty-second Street to a point 75 feet east thereof, no parking any time.
(C62, § 30-1251; O.8084; C75, C79, § 27-1280; C91, § 27-2353; O.11,650, 14,518 (installed 05/16/20), 16,171, 16,352)

Sec. 114-3381. Kingman Boulevard—Forty-second Street to Fifty-ninth Street.

Kingman Boulevard, on the south side, from Forty-second Street to a point 150 feet west thereof, no parking any time.

Kingman Boulevard, on the north side, from Forty-second Street to a point 75 feet west thereof, no parking any time.

Kingman Boulevard, on the north side, from Polk Boulevard to a point 115 feet east thereof, no parking any time.

Kingman Boulevard, on the south side, from Polk Boulevard to a point 630 feet west thereof, no parking any time.

Kingman Boulevard, on the north side, from Polk Boulevard to a point 75 feet west thereof, no parking any time.
(C62, § 30-1252; O.8084; C75, C79, § 27-1281; O.9814, 9849, 9886; C91, § 27-2354; O.11,650, 13,366; C00, § 114-3381; O.14,518 (installed 10/28/08), 16,171)

Sec. 114-3382. Kingman Circle—Kingman Boulevard to cul-de-sac, south.

Kingman Circle, on the west side, from Kingman Boulevard to a point 200 feet south thereof and any part of the cul-de-sac, no parking any time.
(C62, § 30-1253; O.8084; C75, C79, § 27-1282; O.10,278; C91, § 27-2355; O.11,650)

Sec. 114-3383. Kinsey Avenue—East Seventeenth Court to East Thirty-eighth Street.

Kinsey Avenue, on the south side, from Stewart Street to East Eighteenth Street, no parking any time.

Kinsey Avenue, on the south side, from East Twenty-seventh Street to a point 60 feet east thereof, no parking any time.

Kinsey Avenue, on the north side, from a point 250 feet west of East Twenty-seventh Street to a point 75 feet east of East Thirty-third Street, no parking any time.

Kinsey Avenue, on the south side, from a point 50 feet west of East Twenty-ninth Street to East Twenty-ninth Street, no parking any time.

Kinsey Avenue, on the south side, from East Thirty-third Street to East Thirty-fifth Street, no parking any time.

Kinsey Avenue, on the south side, from East Thirty-sixth Street to a point 650 feet east of East Thirty-sixth Court, no parking any time.
(C75, § 27-1282.01; O.8983, 9209, 9295, 9372, 9420; C79, § 27-1282.01; O.9632, 9685, 10,123; C91, § 27-2356; O.11,650, 13,115; C00, § 114-3383, O.14,518 (installed 9/14/21), 16,171, 16,327)

Sec. 114-3384. Kirkwood Avenue—South Union Street to Southwest Eleventh Street.

Kirkwood Avenue, on the south side, from South Union Street to a point 90 feet west thereof, no parking any time.

Kirkwood Avenue, on the north side, from South Union Street to Southwest Eleventh Street, no parking any time.

Kirkwood Avenue, on the south side, from Southwest Ninth Street to a point 70 feet east thereof, no parking any time.

Kirkwood Avenue, on the south side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.
(C62, § 30-1254; O.8084; C75, § 27-1283; O.9226; C79, § 27-1283; O.10,598; C91, § 27-2357; O.11,650, 13,801; C00, § 114-3384; O.14,360, 14,518 (installed 7/31/13, 8/14/19), 16,171)

Sec. 114-3385. East Kirkwood Avenue—South Union Street to Southeast Fourteenth Street.

East Kirkwood Avenue, on the north side, from South Union Street to Indianola Avenue, no parking any time.

East Kirkwood Avenue, on the south side, from South Union Street to a point 75 feet east thereof, no parking any time.

East Kirkwood Avenue, on the north side, from Southeast Eighth Court to a point 25 feet west thereof, no parking any time.

East Kirkwood Avenue, on the south side, from Southeast Eighth Court to a point 150 feet west thereof, no parking any time.

East Kirkwood Avenue, on the north side, from Southeast Tenth Street to Southeast Fourteenth Street, no parking any time.

East Kirkwood Avenue, on the south side, from Southeast Fourteenth Street to a point 50 feet west thereof, no parking any time.
(C62, § 30-1255; O.8084; C75, C79, § 27-1284; O.10,111, 10,598; C91, § 27-2358; O.11,650, 13,160, 13,727; C00, § 114-3385; O.14,449, 14,518 (installed 4/4/14, 2/19/15, 6/5/20), 16,171)

Sec. 114-3386. Knob Hill Drive—Timber Lane to Winegardner Road.

Knob Hill Drive, on the west side, from Maple Street to Winegardner Road, no parking any time.

Knob Hill Drive, on the east side, from Timber Lane to Winegardner Road, no parking any time.

Knob Hill Drive, on the west side, from Timber Lane to the dead end south, no parking any time.
(C62, § 30-1256; O.8084; C75, § 27-1285; O.9434; C79, § 27-1285; C91, § 27-2359; O.11,650, 14,627)

Sec. 114-3387. East Lacona Avenue—Southeast Sixth Street to dead end east of Southeast Nineteenth Street.

East Lacona Avenue, on the north side, from Southeast Sixth Street to a point 85 feet east thereof, no parking any time.

East Lacona Avenue, on the south side, from Southeast Sixth Street to a point 45 feet east thereof, no parking any time.

East Lacona Avenue, on the south side, from a point 60 feet west of Southeast Seventh Street to a point 50 feet east of Southeast Seventh Street, no parking any time.

East Lacona Avenue, on the north side, from a point 50 feet west of Southeast Seventh Street to a point 60 feet east of Southeast Eighth Street, no parking any time.

East Lacona Avenue, on the south side, from a point 60 feet west of Southeast Eighth Street to a point 50 feet east of Southeast Eighth Street, no parking any time.

East Lacona Avenue, on the south side, from a point 60 feet west of Southeast Eighth Court to a point 50 feet east of Southeast Eighth Court, no parking any time.

East Lacona Avenue, on the north side, from a point 50 feet west of Southeast Tenth Street to a point 60 feet east of Southeast Tenth Street, no parking any time.

East Lacona Avenue, on the south side, from a point 335 feet west of Southeast Fourteenth Street to a point 165 feet east thereof, no parking any time.

East Lacona Avenue, on the north side, from a point 120 feet west of Southeast Fourteenth Street to a point 630 feet east of Southeast Seventeenth Street, no parking any time.

East Lacona Avenue, on the south side, from a point 75 feet west of Southeast Fourteenth Street to a point 365 feet east of Southeast Fourteenth Street, no parking any time.

East Lacona Avenue, on the south side, from Southeast Eighteenth Street east to and including the cul-de-sac, no parking any time.
(C62, § 30-1256.01; O.8310; C75, § 27-1285.01; O.8979; C79, § 27-1285.01; O.10,123, 10,598; C85, § 27-1285.01; O.10,933, 11,063; C91, § 27-2360; O.11,650, 13,339; C00, § 114-3387; O.14,404, 14,518 (installed 12/4/15), 16,171, 16,354, 16,393)

Sec. 114-3388. Lally Street—South Union Street to Southwest Ninth Street.

Lally Street, on the south side, from South Union Street to Southwest Third Street, no parking any time.

Lally Street, on the north side, from Southwest Fifth Street to Southwest Ninth Street, no parking any time.

Lally Street, on the south side, from Southwest Ninth Street to a point 100 feet east thereof, no parking any time.
(C79, § 27-1285.011; O.9849, 10,598; C91, § 27-2361; O.11,650, 13,954)

Sec. 114-3389. Lacona Avenue—South Union Street to Southwest Ninth Street.

Lacona Avenue, on the south side, from South Union Street to Courtland Drive, no parking any time.

Lacona Avenue, on the south side, from Southwest Seventh Street to Southwest Eighth Street, no parking any time.
(C79, § 27-1285.012; O.10,111; C91, § 27-2362; O.11,650)

Sec. 114-3390. East Lally Street—South Union Street to Southeast Fifth Street.

East Lally Street, on the north side, from South Union Street to a point 50 feet east thereof, no parking any time.

East Lally Street, on the south side, from South Union Street to Southeast Fifth Street, no parking any time.

East Lally Street, on the north side, from a point 50 feet west of Southeast Second Street, to a point 50 feet east of Southeast Second Street, no parking any time.
(C62, § 30-1256.02; O.8825; C75, C79, § 27-1285.02; O.9640, 9849, 10,697; C91, § 27-2363; O.11,650)

Sec. 114-3391. Lake Avenue—Boston Avenue to Eighth Street.

Lake Avenue, on the east side, from Boston Avenue to Eighth Street, no parking any time.
(C75, § 27-1285.03; O.9001, 9080; C79, § 27-1285.03; C91, § 27-2364; O.11,650)

Sec. 114-3391.015. Lake Hill Drive—Sweetwater Drive to Brockway Drive.

Lake Hill Drive, on the east and south side from Sweetwater Drive to Brockway Drive, no parking any time.
(O.16,475)

Sec. 114-3391.025. Lake Ridge Avenue—Lake Hill Drive to East Pine Avenue.

Lake Ridge Avenue, on the west side, from Lake Hill Drive to East Pine Avenue, no parking any time.
(O.15,992, 16,475)

Sec. 114-3391.05. Lakeland Court—Ridgeview Drive to Dead End.

Lakeland Court, on the west side, from Ridgeview Drive to Dead End, no parking any time.
(O.14,330)

Sec. 114-3392. Lakeview Drive—Polk Boulevard to dead end west.

Lakeview Drive, on the north side, from Polk Boulevard to a point 700 feet west thereof, no parking any time.
(C79, § 27-1285.031; O.9849; C91, § 27-2365; O.11,650)

Sec. 114-3392.05. Lakewood Lane—Evergreen Avenue to Dead End.

Lakewood Lane on the west side, from Evergreen Avenue to Dead End, no parking any time.
(O.14,330)

Sec. 114-3393. Lanewood Drive—Forestdale Drive to Waveland Drive.

Lanewood Drive, on the north side, from a point 50 feet east of Waveland Drive to Waveland Drive, no parking any time.

Lanewood Drive, on the south side, from Forestdale Drive to Waveland Drive, no parking any time.
(C79, § 27-1285.032; O.9886; C91, § 27-2366; O.11,650, 13,492, 15,947)

Sec. 114-3394. Laurel Hill Road—Southeast Thirty-fourth Street to the Dead End East of Southeast Thirty-sixth Street.

Laurel Hill Road, on both sides, from Southeast Thirty-fourth Street to the dead end east of Southeast Thirty-sixth Street, no parking any time.
(C79, § 27-1285.04; O.9685; C91, § 27-2367; O.11,650, 15,387)

Sec. 114-3395. Laurel Street—Second Avenue to Fourteenth Street.

Laurel Street, on the north side, from Second Avenue to Fifth Avenue, no parking any time.

Laurel Street, on the south side, from Third Street to a point 135 feet east of Fourth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

Laurel Street, on the south side, from a point 50 feet east of Fourth Street to a point 85 feet east thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Laurel Street, on the south side, from a point 135 feet east of Fourth Street to a point 50 feet east thereof, commercial loading zone.

Laurel Street, on the south side, from a point 50 feet east of Fourth Street to a point 50 feet west of Fourth Street, no parking any time.

Laurel Street, on the south side, from a point 175 feet west of Fourth Street to a point 100 feet west thereof, no parking any time.

Laurel Street, on the south side, from Fifth Avenue to a point 50 feet east thereof, no parking any time.

Laurel Street, on both sides, from Fifth Avenue to Sixth Avenue, no parking any time.

Laurel Street, on the south side, from Sixth Avenue to Eighth Street, no parking any time.

Laurel Street, on the south side, from a point 160 feet west of Ninth Street to a point 25 feet west thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in subsection 114-616(a) of this chapter.

Laurel Street, on the north side, from Ninth Street to Eleventh Street, no parking any time.

Laurel Street, on the north side, from Twelfth Street to a point 105 feet west thereof, no parking any time.

Laurel Street, on the south side, from Twelfth Street to Thirteenth Street, no parking any time.

Laurel Street, on the north side, from Thirteenth Street to Fourteenth Street, no parking any time.
(C62, § 30-1257; O.8084, 8320, 8349, 8780; C75, C79, § 27-1286; O.10,123, 10,568; C91, § 27-2368; O.11,650, 11,848)

Sec. 114-3396. Lawnview Drive—Thirtieth Street to Lawnwoods Drive.

Lawnview Drive, on the north side, from Thirtieth Street to Lawnwoods Drive, no parking any time.

Lawnview Drive, on the south side, from Thirtieth Street to a point 50 feet west thereof, no parking any time.
(C75, § 27-1286.01; O.9387; C79, § 27-1286.01; O.9849; C91, § 27-2369; O.11,650)

Sec. 114-3397. Lawnwoods Drive—Douglas Avenue to Hillcrest Drive.

Lawnwoods Drive, on the east side, from Douglas Avenue to a point 50 feet north thereof, no parking any time.

Lawnwoods Drive, on the west side, from Douglas Avenue to Lawnview Drive, no parking any time.

Lawnwoods Drive, on the west side, from Aurora Avenue to the dead end north thereof, no parking any time.

Lawnwoods Drive, on the east side, from the dead end south of Twana Drive to Hillcrest Drive, no parking any time.
(C62, § 30-1258; O.8084; C75, § 27-1287; O.8984, 9106, 9372, 9391; C79, § 27-1287; O.9849, 10,598; C91, § 27-2370; O.11,650, 13,076, 16,354)

Sec. 114-3398. Lay Street—Easton Boulevard to East Aurora Avenue.

Lay Street, on the west side, from Easton Boulevard to East Jefferson Avenue, no stopping or standing.

Lay Street, on the west side, from East Jefferson Avenue to Guthrie Avenue, no parking any time.

Lay Street, on the east side, from Easton Boulevard to East Washington Avenue, no stopping or standing.

Lay Street, on the east side, from a point 100 feet north of East Washington Avenue to a point 100 feet north thereof, school passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Lay Street, on the east side, from a point 200 feet north of East Washington Avenue to a point 75 feet north thereof, school bus loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Lay Street, on the east side, from a point 275 feet north of East Washington Avenue to a point 125 feet north thereof, school passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Lay Street, on the east side from East Jefferson Avenue to a point 50 feet south thereof, no parking any time.

Lay Street, on the east side, from Arthur Avenue to East Sheridan Avenue, no parking any time.

Lay Street, on the east side, from Guthrie Avenue to a point 50 feet south thereof, no parking any time.

Lay Street, on the west side, from East Douglas Avenue to East Aurora Avenue, no parking any time.

Lay Street, on the east side, from East Douglas Avenue to a point 80 feet north thereof, no parking any time.

Lay Street, on the east side, from East Madison Avenue to a point 75 feet south thereof, no parking any time.
(C62, § 30-1259; O.8084, 8108, 8286, 8572; C75, § 27-1288; O.9336; C79, § 27-1288; O.10,123; C85, § 27-1288; O.11,098; C91, § 27-2371; O.11,650, 11,712; C00, § 114-3398; O.14,518 (installed 11/9/21), 16,171)

Sec. 114-3399. Leach Avenue—South Union Street to Glover Avenue.

Leach Avenue, on the north side, from South Union Street to Glover Avenue, no parking any time.

Leach Avenue, on the south side, from Southwest Ninth Street to a point 50 feet east thereof, no parking any time.

Leach Avenue, on the south side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.
(C62, § 30-1260; O.8084; C75, § 27-1289; O.9209; C79, § 27-1289; O.10,042, 10,144, 10,598; C91, § 27-2372; O.11,650)

Sec. 114-3400. East Leach Avenue—South Union Street to Southeast Thirteenth Street.

East Leach Avenue, on both sides, from South Union Street to a point 50 feet east thereof, no parking any time.

East Leach Avenue, on the south side, from a point 50 feet east of South Union Street to a point 50 feet west of Southeast First Street, passenger loading and unloading.

East Leach Avenue, on the south side, from a point 50 feet west of Southeast First Street to a point 60 feet east of Southeast First Street, no standing or stopping.

East Leach Avenue, on the south side, from a point 60 feet east of Southeast First Street to a point 150 feet east thereof, bus loading and unloading 7:00 a.m. to 5:00 p.m., school days.

East Leach Avenue, on the south side, from a point 210 feet east of Southeast First Street to Southeast Fifth Street, no parking any time.

East Leach Avenue, on the north side, from a point 50 feet east of South Union Street to a point 385 feet east of Southeast First Street, no stopping or standing 7:00 a.m. to 5:00 p.m., school days.

East Leach Avenue, on the north side, from a point 50 feet west of Southeast Second Street to a point 50 feet east of Southeast Second Street, no parking any time.
(C62, § 30-1261; O.8084; C75, § 27-1290; O.9212, 9330; C79, § 27-1290; O.10,096; C91, § 27-2373; O.11,650, 12,079)

Sec. 114-3401. East Leach Avenue—Southeast Sixteenth Street to East Watrous Avenue.

East Leach Avenue, on the north side, from Southeast Sixteenth Street to Southeast Seventeenth Street, no parking any time.

East Leach Avenue, on the south side, from Southeast Twenty-fourth Court to East Watrous Avenue, no parking any time.
(C91, § 27-2373.05; O.13,239, 13,957)

Sec. 114-3402. Leado Avenue—Thirtieth Street to Urbandale Avenue.

Leado Avenue, on the south side, from Thirtieth Street to Urbandale Avenue, no parking any time.

Leado Avenue, on the north side, from Thirtieth Street to a point 200 feet east of Urbandale Avenue, no parking 7:00 a.m. to 6:00 p.m.

Leado Avenue, on the north side, from Urbandale Avenue to a point 200 feet east thereof, no parking any time.
(C62, § 30-1262; O.8084, 8776; C75, § 27-1291; O.9055; C79, § 27-1291; O.9640; C91, § 27-2374; O.11,650)

Sec. 114-3403. East Leland Avenue—South Union Street to Indianola Road.

East Leland Avenue, on the north side, from South Union Street to Southeast Fifth Street, no parking any time.

East Leland Avenue, on both sides, from the dead end west of Indianola Avenue to Indianola Avenue, no parking any time.
(C79, § 27-1291.01; O.9849; C85, § 27-1291.01; O.11,302; C91, § 27-2375; O.11,650)

Sec. 114-3404. Leland Avenue—South Union Street to Fleur Drive.

Leland Avenue, on the north side, from South Union Street to a point 75 feet west thereof, no parking any time.

Leland Avenue, on the south side, from South Union Street to a point 75 feet west of Southwest Ninth Street, no parking any time.

Leland Avenue, on the north side, from a point 50 feet east of Southwest Ninth Street to a point 50 feet west of Southwest Ninth Street, no parking any time.

Leland Avenue, on the north side, from Southwest Twelfth Street to a point 50 feet east thereof, no parking any time.

Leland Avenue, on the south side, from Southwest Twelfth Street to a point 50 feet west thereof.

Leland Avenue, on the north side, from Fleur Drive to a point 220 feet east thereof, no parking any time.

Leland Avenue, on the south side, from Fleur Drive to a point 500 feet east thereof, no parking any time.
(C62, § 30-1263; O.8084; C75, § 27-1292; O.9503; C79, § 27-1292; O.9736, 9855, 10,598, 10,728; C91, § 27-2376; O.11,650, 13,948, 13,954, 15,486)

Sec. 114-3405. Lewis Avenue—Southwest Ninth Street to Southwest Sixteenth Street.

Lewis Avenue, on the south side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.

Lewis Avenue, on the north side, from Southwest Ninth Street to Southwest Sixteenth Street, no parking any time.
(C62, § 30-1263.01; O.8349; C75, C79, § 27-1292.01; O.9886, 10,598; C91, § 27-2377; O.11,650)

Sec. 114-3406. Leyden Avenue—East Thirty-eighth Street to east city limits.

Leyden Avenue, on the north side, from East Thirty-eighth Street to Belmar Drive, no parking any time.

Leyden Avenue, on the south side, from East Thirty-eighth Street to a point 50 feet east thereof, no parking any time.

Leyden Avenue, on the north side, from East Fortieth Street to East Forty-second Street, no parking any time.

Leyden Avenue, on the south side, from a point 140 feet west of East Forty-third Street to dead end east of East Forty-third Court, no parking any time.

Leyden Avenue, on the north side, from Brook Landing Court to the dead end east thereof, no parking any time.

Leyden Avenue, on the south side, from East Fifty-sixth Street to Brook View Avenue, no parking any time.

Leyden Avenue, on the north side, from East Fifty-sixth Street to a point 50 feet east thereof, no parking any time.
(C79, § 27-1292.02; O.9685, 10,057; C91, § 27-2378; O.11,650, 13,602, 15,723, 15,726, 16,215)

Sec. 114-3407. Leonard Place—Forty-first Street to dead end west.

Leonard Place, on the north side, from Forty-first Street to a point 450 feet west and any part of the cul-de-sac, no parking any time.
(C79, § 27-1293; O.9886; C91, § 27-2379; O.11,650)

Sec. 114-3408. Leyner Street—Nineteenth Street to dead end west of Martin Luther King Jr Parkway.

Leyner Street, on the south side, from Nineteenth Street to a point 140 feet west of Martin Luther King Jr Parkway, no parking any time.

Leyner Street, on the north side, from Nineteenth Street to a point 50 feet west thereof, no parking any time.
(C79, § 27-1293.01; O.10,123; C91, § 27-2380; O.11,650, 11,935; C00, § 114-3408; O.14,518 (installed 3/4/08), 16,171)

Sec. 114-3409. Lincoln Avenue—Ninth Street to Sixty-first Street.

Lincoln Avenue, on the south side, from Ninth Street to Tenth Street, no parking any time.

Lincoln Avenue, on the north side, from Ninth Street to a point 50 feet west thereof, no parking any time.

Lincoln Avenue, on the north side, from Sixteenth Street to Martin Luther King Jr Parkway, no parking any time.

Lincoln Avenue, on the south side, from Eighteenth Street to a point 65 feet east thereof, no parking any time.

Lincoln Avenue, on the south side, from a point 50 feet east of Nineteenth Street to a point 50 feet west of Nineteenth Street, no parking any time.

Lincoln Avenue, on the north side, from Martin Luther King Jr Parkway to a point 35 feet west thereof, no parking any time.

Lincoln Avenue, on the south side, from Martin Luther King Jr Parkway to a point 100 feet east thereof, no parking any time.

Lincoln Avenue, on the south side, from Martin Luther King Jr Parkway to a point 150 feet west of Twenty-third Street, no parking any time.

Lincoln Avenue, on both sides, from a point 140 feet east of Twenty-sixth Street to Twenty-seventh Street, no parking any time.

Lincoln Avenue, on the north side, from Thirty-first Street to a point 50 feet west of Thirty-second Street, no parking any time.

Lincoln Avenue, on the south side, from Thirty-first Street to a point 50 feet west thereof, no parking any time.

Lincoln Avenue, on the south side, from Thirty-second Street to Thirty-fourth Street, no parking any time.

Lincoln Avenue, on the north side, from a point 50 feet east of Thirty-third Street to a point 50 feet west of Thirty-third Street, no parking any time.

Lincoln Avenue, on the north side, from thirty-fourth Street to a point 65 feet east thereof, no parking any time.

Lincoln Avenue, on the north side, from Forty-fourth Street to a point 800 feet east thereof, no parking any time.

Lincoln Avenue, on the south side, from Forty-fourth Street to a point 50 feet east thereof, no parking any time.

Lincoln Avenue, on the south side, from Fifty-first Street to Fifty-second Street, no parking any time.

Lincoln Avenue, on the north side, from Merklin Way to Merle Hay Road, no parking any time.

Lincoln Avenue, on the north side, from Fifty-ninth Street to Sixty-first Street, no parking any time.
(C62, § 30-1265; O.8084, 8844, 8852; C75, § 27-1294; O.9197; C79, § 27-1294; O.9685, 9795, 9886, 10,123, 10,402; C85, § 27-1294; O.11,098, 11,237; C91, § 27-2381; O.11,650, 11,935, 13,029, 13,725; C00, §114-3409; O.13,841, C00, §114-3409; O,13,841, 14,158, 14,518 (installed 7/31/07, 9/9/10, 9/26/17), 16,171)

Sec. 114-3410. Lincoln Place Drive—John Lynde Road to Southwest Forty-second Street.

Lincoln Place Drive, on the south side, from John Lynde Road to Southwest Forty-second Street, no parking any time.

Lincoln Place Drive, on the north side, from a point 530 feet east of Southwest Forty-second Street, to a point 190 feet west thereof, no parking any time.
(C62, § 30-1265.01; O.8639; C75, C79, § 27-1294.01; O.9849; C91, § 27-2382; O.11,650, 15,780)

Sec. 114-3411. Linden Lane—Southwest Thirteenth Street to Wakonda Parkway.

Linden Lane, on the south side, from a point 390 feet east of Southwest Fourteenth Street to Wakonda Parkway, no parking any time.

Linden Lane, on the north side, from Southwest Fourteenth Street to a point 90 feet west thereof, no parking any time.
(C75, § 27-1294.02; O.9155, 9566; C91, § 27-2383; O.11,650; C00; O.14,518 (installed 9/11/07), 16,171)

Sec. 114-3412. Lindlavista Way—Lyndale Drive to dead end west of Thirty-eighth Place.

Lindlavista Way, on the south side, from Lyndale Drive to a point 300 feet west of Thirty-eighth Place, no parking any time.

Lindalavista Way, on the north side, from Lower Beaver Road to a point 60 feet west thereof, no parking any time.

Lindlavista Way, on the north side, from Thirty-ninth Street to a point 50 feet east thereof, no parking any time.
(C79, § 27-1294.03; O.9849; C91, § 27-2384; O.11,650, 13,760; C00, § 114-3412; O.14,518 (installed 11/23/05), 16,171)

Sec. 114-3413. Linda Circle—Thirty-sixth Street to dead end west.

Linda Circle, on the south side, from Thirty-sixth Street to a point 120 feet east and any part of the cul-de-sac, no parking any time.
(C79, § 27-1294.04; O.9886; C91, § 27-2385; O.11,650)

Sec. 114-3414. Linworth Lane—East Hughes Avenue to East Miller Avenue.

Linworth Lane, on the west side, from East Hughes Avenue to East Miller Avenue, no parking any time.
(C79, § 27-1294.05; O.10,111; C91, § 27-2386; O.11,650)

Sec. 114-3415. Linden Street—Dead end east of Twenty-eighth Street to Twenty-eighth Street.

Linden Street, on the south side, from Twenty-eighth Street to a point 447 feet east thereof, no parking any time.

Linden Street, on the north side, from Twenty-eighth Street to a point 80 feet east thereof, no parking any time.
(C62, § 30-1266; O.8084, 8706; C75, § 27-1295; O.9227; C79, § 27-1295; O.9861, 10,418; C85, § 27-1295; O.11,278; C91, § 27-2387; O.11,650, 11,891, 13,306, 14,585, 15,426, 15,665, 16,221)

Sec. 114-3415.05. Line Drive—Southwest Second Street to Southwest Third Street.

Line Drive, on both sides, from Southwest Second Street to Southwest Third Street, no parking any time.
(O.14,437)

Sec. 114-3416. East Livingston Avenue—South Union Street to Van Buren Avenue.

East Livingston Avenue, on the south side, from Southeast First Street to a point 50 feet east thereof, no parking any time.

East Livingston Avenue, on the north side, from a point 250 feet west of Southeast First Street to Van Buren Avenue, no parking any time.
(C62, § 30-1266.01; O.8298; C75, § 27-1295.01; O.9212; C79, § 27-1295.01; O.10,111; C91, § 27-2388; O.11,650)

Sec. 114-3417. Livingston Avenue—South Union Street to Southwest Second Street.

Livingston Avenue, on the north side, from South Union Street to Southwest Second Street, no parking any time.
(C79, § 27-1295.011; O.10,111; C91, § 27-2389; O.11,650)

Sec. 114-3418. Reserved.

Editor's note—Ord. No. 16,437, § 1, adopted Feb. 24, 2025, repealed § 114-3418, which pertained to Littell Avenue—Fleur Drive to west city limits and derived from Code 1979, § 27-1295.02; Ord. No. 9685; Code 1991, § 27-2390; Ord. No. 11,650; Ord. No. 14,437; Ord. No. 15,559.

Sec. 114-3419. Locust Street—Robert D Ray Drive to Second Avenue.

Locust Street, on the south side, from Robert D Ray Drive to a point 115 feet west thereof, no parking any time.

Locust Street, on the north side, from Robert D. Ray Drive to a point 90 feet west thereof, no parking any time.

Locust Street, on the north side, from a point 225 feet east of Second Avenue to a point 115 feet east thereof, loading zone.

Locust Street, on the south side, from Second Avenue to a point 25 feet east thereof, no parking any time.

Locust Street, on the north side, from a point 200 feet west of Robert D Ray Drive to a point 505 west thereof, reserved for City of Des Moines municipal employee permit parking, 7:00 a.m. to 4:00 p.m., Monday through Friday.
(C62, § 30-1267; O.8084; C75, C79, § 27-1296; O.10,597; C85, § 27-1296; O.11,522; C91, § 27-2391; O.11,650, 13,339, 14,280, 14,437, 14,518 (installed 7/21/20, 5/13/21), 14,542, 15,125, 15,911, 15,920, 16,013, 16,171, 16,313, 16,484)

Sec. 114-3420. Locust Street—Second Avenue to Third Street.

Locust Street, on both sides, from Second Avenue to Third Street, no parking any time.
(C62, § 30-1269; O.8084; C75, § 27-1298; O.9541; C79, § 27-1298; C91, § 27-2392; O.11,650)

Sec. 114-3421. Locust Street—Third Street to Fourth Street.

Locust Street, on the south side, from Third Street to a point 40 feet west thereof, no parking any time.

Locust Street, on the north side, from Third Street to a point 50 feet west thereof, commercial loading zone.
(C62, § 30-1270; O.8084, 8867; C75, § 27-1299; O.9595; C79, § 27-1299; O.10,345, 10,540, 10,567; C85, § 27-1299; O.10,770; C91, § 27-2393; O.11,650, 11,688, 13,705, 15,367, 16,408)

Sec. 114-3422. Locust Street—Fourth Street to Fifth Avenue.

Locust Street, on the north side, from Fourth Street to a point 40 feet west thereof, no parking any time.

Locust Street, on the north side, from a point 40 feet west of Fourth Street to a point 70 feet west thereof, loading.

Locust Street, on the north side, from Fifth Avenue, to a point 30 feet east thereof, no parking any time.
(C62, § 30-1271; O.8084, 8122; C75, C79, § 27-1300; O.10,263, 10,734; C91, § 27-2394; O.11,650, 11,891, 13,600, 13,602, 13,647, 13,705, 14,615, 14,635, 15,079, 16,352, 16,368)

Sec. 114-3423. Locust Street—Fifth Avenue to Sixth Avenue.

Locust Street, on the south side, from Fifth Avenue to a point 100 feet west thereof, no parking any time.

Locust Street, on the south side, from a point 100 feet west of Fifth Avenue to a point 95 feet west thereof, commercial loading zone.

Locust Street, on the north side, from a point 60 feet west of Fifth Avenue to a point 85 feet west thereof, no parking any time.
(C62, § 30-1272; O.8084; C75, § 27-1301; O.9080, 9292, 9595; C79, § 27-1301; O.9724, 10,014, 10,734; C85, § 27-1301; O.10,947; C91, § 27-2395; O.11,650, 13,705, 16,061, 16,359)

Sec. 114-3424. Locust Street—Sixth Avenue to Seventh Street.

Locust Street, on the south side, from a point 110 feet west of Sixth Avenue to a point 90 feet west thereof, commercial loading zone.

Locust Street, on the north side, from Sixth Avenue to a point 150 feet west thereof, no parking any time.
(C62, § 30-1273; O.8084, 8124; C75, C79, § 27-1302; C91, § 27-2396; O.11,650, 11,987, 13,705, 16,141)

Sec. 114-3425. Locust Street—Seventh Street to Eighth Street.

Locust Street, on the south side, from Seventh Street to a point 110 feet west thereof, no parking any time.

Locust Street, on the south side, from a point 210 feet west of Seventh Street to Eighth Street, no parking any time.
(C62, § 30-1274; O.8084, 8124; C75, C79, § 27-1303; C91, § 27-2397; O.11,650, 11,987, 13,705, 15,165, 16,359)

Sec. 114-3426. Locust Street—Eighth Street to Ninth Street.

Locust Street, on the south side, from Eighth Street to Ninth Street, no parking 4:00 p.m. to 6:00 p.m.

Locust Street, on the north side, from Eighth Street to a point 200 feet west thereof, no parking any time.

Locust Street, on the north side, from a point 200 feet west of Eighth Street to Ninth Street, no parking 4:00 p.m. to 6:00 p.m.

Locust Street, on the south side, from a point 57 feet west of Eighth Street to a point 88 feet west thereof, commercial loading zone, no stopping or standing 7:00 a.m. to 9:00 a.m. and 4:00 p.m. to 6:00 p.m., Monday through Friday.
(C62, § 30-1275; O.8084; C75, § 27-1304; O.9292; C79, C85, § 27-1304; O.11,380; C91, § 27-2398; O.11,650, 13,705, 13,958, 14,910)

Sec. 114-3427. Locust Street—Ninth Street to Tenth Street.

Locust Street, on the south side, from Ninth Street to a point 110 feet west thereof, no parking any time.

Locust Street, on the north side, from a point 140 feet west of Ninth Street to a point 60 feet west thereof, commercial loading zone.
(C62, § 30-1276; O.8084, 8115; C75, § 27-1305; O.9292; C79, § 27-1305; O.10,526; C85, § 27-1305; O.10,934; C91, § 27-2399; O.11,650, 13,218, 13,705, 14,396, 14,421, 15,165, 16,511)

Sec. 114-3428. Locust Street—Tenth Street to Twelfth Street.

Locust Street, on the north side, from Tenth Street, to a point 25 feet west thereof, no parking any time.

Locust Street, on the south side, from Tenth Street to a point 30 feet west, no parking any time.

Locust Street, on the south side, from a point 30 feet west of Tenth Street to a point 30 feet east of Twelfth Street, no parking 7:00 a.m. to 9:00 a.m. and 4:00 p.m. to 6:00 p.m.

Locust Street, on the south side, from a point 140 feet west of Tenth Street to a point 75 feet west thereof, commercial loading zone.

Locust Street, on the north side, from a point 120 feet west of Tenth Street to a point 25 feet west thereof, commercial loading zone.

Locust Street, on the south side, from Twelfth Street to a point 30 feet east thereof, no parking any time.

Locust Street, on the north side, from Twelfth Street to a point 20 feet east thereof, no parking any time.
(C62, § 30-1277; O.8084, 8115; C75, C79, C85, § 27-1306; O.10,934, 11,439; C91, § 27-2400; O.11,650, 13,085, 13,705, 14,105, 14,139, 14,161, 14,396, 14,486, 14,539, 14,910)

Sec. 114-3429. Reserved.

Editor's note—Ord. No. 14,486, § 1, adopted Sept. 12, 2005, repealed § 114-3429, which pertained to Locust Street—Eleventh Street to Twelfth Street and derived from Code 1962, § 30-1278; Ord. No. 8084; Ord. No. 8115; Code 1975, § 27-1307; Ord. No. 8964; Ord. No. 9292; Code 1979; Code 1985, § 27-1307; Ord. No. 10,934; Ord. No. 11,278; Code 1991, § 27-2401; Ord. No. 11,650; Ord. No. 13,705; Ord. No. 14,161; and Ord. No. 14,348.

Sec. 114-3430. Locust Street—Twelfth Street to Thirteenth Street.

Locust Street, on the south side, from a point 109 feet west of Twelfth Street to a point 91 feet west thereof, loading zone.

Locust Street, on the north side, from Thirteenth Street to a point 20 feet east thereof, no parking any time.
(C62, § 30-1279; O.8084, 8115; C75, C79, C85, § 27-1308; O.10,934; C91, § 27-2402; O.11,650, 13,705, 14,121, 14,354, 14,486, 14,539, 14,876, 14,901, 14,910, 16,541)

Sec. 114-3431. Locust Street—Thirteenth Street to Fifteenth Street.

Locust Street, on the north side, from Thirteenth Street to a point 20 feet west thereof, no parking any time.

Locust Street, on the south side, from Thirteenth Street to a point 15 feet east of Fifteenth Street, no parking 7:00 a.m. to 9:00 a.m., weekdays.

Locust Street, on the south side, from Thirteenth Street to a point 70 feet west thereof, commercial loading zone, 9:00 a.m. to 6:00 p.m., Monday through Saturday.

Locust Street, on the north side, from a point 110 feet west of Thirteenth Street to a point 55 feet west thereof, no parking any time.

Locust Street, on the south side, from a point 500 feet west of Thirteenth Street to a point 50 feet west thereof, commercial loading zone, 9:00 a.m. to 6:00 p.m., Monday through Saturday.
(C62, § 30-1280; O.8084, 8115; C75, C79, § 27-1309; O.10,575; C85, § 27-1309; O.11,466; C91, § 27-2403; O.11,650, 11,667, 11,941, 13,085, 13,705, 14,121, 14,354, 14,486, 14,550, 14,722, 14,812, 14,876, 14,886, 14,910, 14,987, 15,043, 15,103, 15,169, 15,750, 16,491)

Sec. 114-3432. Reserved.

Editor's note—Ord. No. 14,550, § 1, adopted March 20, 2006, repealed § 114-3432 which pertained to Locust Street—Fourteenth Street to Fifteenth Street and derived from Code 1962, § 30-1281; Ord. No. 8084; Ord. No. 8115; Code 1975, § 27-1310; Ord. No. 9292; Code 1979; Code 1985, § 27-1310; Ord. No. 11,466; Code 1991, § 27-2404; Ord. No. 11,650; Ord. No. 13,085 and Ord. No. 14,354.

Sec. 114-3433. Locust Street—Fifteenth Street to Eighteenth Street.

Locust Street, on the north side from Fifteenth Street to a point 130 feet west thereof, no parking any time.

Locust Street, on the north side, from a point 130 feet east of Fifteenth to a point 100 feet west thereof, commercial loading zone, 8:00 a.m. to 6:00 p.m., Monday through Saturday.

Locust Street, on the north side from Seventeenth Street to Fleur Drive, no parking any time. Locust Street, on the south side, from Fifteenth Street to Fleur Drive, no parking any time.
(C62, § 27-1282; O.8084, 8115; C75, C79, C85, § 27-1311; O.11,466; C91, § 27-2405; O.11,650, 13,085, 13,338, 13,544, 14,910, 16,491)

Sec. 114-3434. East Locust Street—Robert D Ray Drive to East Second Street.

East Locust Street, on the south side, from Robert D Ray Drive to East Second Street, no parking any time.
(C62, § 30-1285; O.8084; C75, C79, C85, § 27-1314; O.11,522; C91, § 27-2408; O.11,650, 14,280, 14,437)

Sec. 114-3434.01. East Locust Street—East Second Street to East Third Street.

East Locust Street, on the south side, from a point 25 feet east of East Second Street to a point 115 feet east thereof, passenger loading zone, ten-minute limit.
(C00 § 114-3434.01; O.14,280, 14,518 (installed 4/14/11), 15,577, 16,171)

Sec. 114-3435. East Locust Street—East Third Street to East Fourth Street.

East Locust Street, on the north side, from East Fourth Street to a point 100 feet west thereof, no parking any time.
(C62, § 30-1286; O.8084; C75, § 27-1315; O.9227; C79, C85, § 27-1315; O.11,522; C91, § 27-2409; O.11,650)

Sec. 114-3436. East Locust Street—East Fourth Street to East Fifth Street.

East Locust Street, on the north side, from East Fourth Street to a point 40 feet east thereof, no parking any time.

East Locust Street, on the north side, from East Fifth Street to a point 93 feet west thereof, no parking any time.

East Locust Street, on the south side, from East Fifth Street to a point 85 feet west thereof, no parking any time.
(C62, § 30-1287; O.8084, 8349; C75, § 27-1316; O.9227, 9255, 9292, 9595; C79, § 27-1316; C91, § 27-2410; O.11,650, 11,688, 13,344, 13,516, 16,042)

Sec. 114-3437. East Locust Street—East Fifth Street to East Sixth Street.

East Locust Street, on the north side, from East Fifth Street to a point 65 feet east thereof, commercial loading zone.
(C62, § 30-1288; O.8084; C75, C79, § 27-1317; C91, § 27-2411; O.11,650)

Sec. 114-3438. East Locust Street—East Sixth Street to Pennsylvania Avenue.

East Locust Street, on the north side, from East Sixth Street to a point 60 feet east thereof, no parking any time.

East Locust Street, on the north side, from a point 320 feet east of East Sixth Street, to Pennsylvania Avenue, no parking any time.

East Locust Street, on the south side, from East Seventh Street to a point 115 feet west thereof, no parking any time.
(C62, § 30-1289; O.8084, 8095; C75, § 27-1318; O.9227, 9292, 9308, 9391; C79, § 27-1318; O.10,434, 10,647; C91, § 27-2412; O.11,650, 11,982, 14,033, 14,280, 14,844, 16,042)

Sec. 114-3439. Logan Avenue—East Seventeenth Street to East Thirty-first Street.

Logan Avenue, on the south side, from East Seventeenth Street to East Nineteenth Court, no parking any time.

Logan Avenue, on the south side, from East Twenty-second Street to East Thirty-first Street, no parking any time.

Logan Avenue, on the north side, from a point 125 feet west of East Thirtieth Street to a point 75 feet east of East Thirtieth Street, no parking any time.
(C62, § 30-1290; O.8084, 8167, 8310; C75, C79, § 27-1319; O.10,123, 10,386; C91, § 27-2413; O.11,650)

Sec. 114-3440. Loomis Avenue—South Union Street to dead end west of Heliotrope Drive.

Loomis Avenue, on the north side, from a point 130 feet east of Southwest Fourth Place to a point 460 feet east thereof, no parking any time.

Loomis Avenue, on the north side, from Southwest Ninth Street to a point 200 feet east thereof, no parking any time.

Loomis Avenue, on the south side, from South Union Street to Southwest Ninth Street, no parking any time.

Loomis Avenue, on the north side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.

Loomis Avenue, on the north side, from a point 50 feet west of Southwest Ninth Street to a point 140 feet west thereof, school passenger loading and unloading, 7:00 a.m. to 5:00 p.m. school days.

Loomis Avenue, on the north side, from a point 190 feet west of Southwest Ninth Street to a point 90 feet west thereof is designated as handicapped parking and is subject to the same prohibition as is found in subsection 114-616(a) of this chapter.

Loomis Avenue, on the north side, from a point 280 feet west of Southwest Ninth Street to a point 140 feet east of Southwest Twelfth Street, school passenger loading and unloading, 7:00 a.m. to 5:00 p.m. school days.

Loomis Avenue, on the north side, from a point 50 feet east of Southwest Twelfth Street to Southwest Twelfth Street, no parking any time.

Loomis Avenue, on the south side, from Southwest Ninth Street to Southwest Twelfth Street, no stopping or standing.

Loomis Avenue, on the south side, from Southwest Twelfth Street to a point 280 feet west of Heliotrope Drive, no parking any time.
(C62, § 30-1291; O.8084, 8204, 8661, 8703; C75, C79, § 27-1320; O.10,598; C85, § 27-1320; O.11,458, 11,480; C91, § 27-2414; O.11,650, 13,301, 13,528, 13,972, 15,807)

Sec. 114-3441. Lower Beaver Road—Douglas Avenue to north city limits.

Lower Beaver Road, on the east side, from Douglas Avenue to a point 65 feet north of Madison Avenue, no parking any time.

Lower Beaver Road, on the west side, from Douglas Avenue to a point 75 feet north of Madison Avenue, no parking any time.

Lower Beaver Road, on the west side, from a point 75 feet north of Madison Avenue to a point 220 feet north thereof, school bus loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Lower Beaver Road, on the west side, from a point 295 feet north of Madison Avenue to a point 150 feet north thereof, school passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Lower Beaver Road, on the west side, from a point 445 feet north of Madison Avenue to Valdez Drive (west leg), no parking any time.

Lower Beaver Road, on the west side, from Oaklyn Drive to a point 75 feet north thereof, no parking any time.

Lower Beaver Road, on the east side, from a point 65 feet north of Madison Avenue to a point 380 feet north thereof, no parking 7:00 a.m. to 5:00 p.m. school days.

Lower Beaver Road, on the east side, from a point 445 feet north of Madison Avenue to Valdez Drive (west leg), no parking any time.

Lower Beaver Road, on the east side, from a point 75 feet south of Bel-Aire Road to Bel-Aire Road, no parking any time.
(C62, § 30-1291.01; O.8468, 8730; C75, § 27-1320.01; O.9343, 9357, 9513; C79, § 27-1320.01; O.10,402, 10,434, 10,476, 10,598; C85, § 27-1320.01; O.11,225; C91, § 27-2415; O.11,650, 13,162, 13,972, 16,250)

Sec. 114-3441.05. East Luster Lane—Southeast Thirty-third Street to East Havens Avenue.

East Luster Lane, on the north side, from East Twenty-third Street to and including the cul-de-sac at East Havens Avenue, no parking any time.

East Luster Lane, on the south side, from a point 75 feet north of East Havens Avenue to East Havens Avenue, no parking any time.

East Luster Lane, on the east side, from Southeast Nineteenth Court to Bloomfield Road, no parking any time.
(O.14,322, 15,590, 15,657)

Sec. 114-3442. Luster Lane—Southwest Ninth Street to Southview Drive.

Luster Lane, on the north side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.

Luster Lane, on the south side, from Southwest Ninth Street to Southview Drive, no parking at any time.
(C62, § 30-1292; O.8084; C75, C79, § 27-1321; O.10,598; C91, § 27-2416; O.11,650)

Sec. 114-3443. Lynner Drive—Martin Luther King Jr Parkway to Aurora Avenue.

Lynner Drive, on the north side, from Martin Luther King Jr Parkway to Madison Avenue, no parking any time.

Lynner Drive, on the south side, from a point 50 feet east of Oakshire Road to a point 50 feet west of Oakshire Road, no parking any time.

Lynner Drive, on the east side, from Madison Avenue to Aurora Avenue, no parking any time.

Lynner Drive, on the west side, from Madison Avenue to a point 50 feet north thereof, no parking any time.
(C62, § 30-1292.01; O.8693; C75, C79, § 27-1321.01; O.9849; C91, § 27-2417; O.11,650, 11,935; C00, § 114-3443; O.14,126, 14,518 (installed 5/25/11), 16,171)

Sec. 114-3444. Lynn Street—Sixteenth Street to Keosauqua Way.

Lynn Street, on the south side, from Sixteenth Street to Keosauqua Way, no parking any time.

Lynn Street, on the north side, from Sixteenth Street to a point 50 feet west thereof, no parking any time.
(C79, § 27-1321.02; O.10,123; C91, § 27-2418; O.11,650, 13,870)

Sec. 114-3445. Lyon Street—East Fifth Street to East Thirtieth Street.

Lyon Street, on both sides, from East Fifth Street to a point 50 feet east thereof, no parking any time.

Lyon Street, on both sides, from East Sixth Street to a point 50 feet west thereof, no parking any time.

Lyon Street, on the south side, from East Ninth Street to a point 100 feet east thereof, no parking any time.

Lyon Street, on the south side, from a point 100 feet east of East Ninth Street to a point 50 feet west of East Tenth Street, no parking 7:00 a.m. to 9:00 a.m., Monday through Friday.

Lyon Street, on the north side, from a point 50 feet west of East Ninth Street to a point 50 feet east of East Ninth Street, no parking any time.

Lyon Street, on the south side, from East Tenth Street to a point 50 feet west thereof, no parking any time.

Lyon Street, on the south side, from East Tenth Street to East Eleventh Street, no parking 7:00 a.m. to 9:00 a.m., Monday through Friday.

Lyon Street, on the south side, from East Eleventh Street to a point 50 feet east thereof, no parking any time.

Lyon Street, on the north side, from East Fourteenth Street to East Eighteenth Street, no parking any time.

Lyon Street, on the south side, from East Twelfth Street a point 75 feet west thereof, no parking any time.

Lyon Street, on the south side, from a point 350 feet west of East Fifteenth Street to a point 240 feet east of East Fifteenth Street, no parking any time.

Lyon Street, on the south side, from a point 225 feet west of East Seventeenth Street to a point 30 feet west thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in subsection 114-616(a) of this chapter.

Lyon Street, on the north side, from Avenue Frederick M. Hubbell to a point 290 feet east thereof, no parking any time.

Lyon Street, on the south side, from East Twentieth Court to East Thirtieth Street, no parking any time.

Lyon Street, on the north side, from a point 50 feet west of East Twenty-second Street to a point 50 feet east of East Twenty-second Street, no parking any time.

Lyon Street, on the north side, from East Twenty-third Street to a point 65 feet east thereof, no parking any time.

Lyon Street, on the north side, from a point 50 feet east of East Twenty-seventh Street to a point 50 feet west of East Twenty-seventh Street, no parking any time.

Lyon Street, on the north side, from a point 50 feet west of East Twenty-ninth Street to a point 65 feet east of East Twenty-ninth Street, no parking any time.

Lyon Street, on the north side, from East Thirtieth Street to a point 148 feet west thereof, no parking any time.
(C62, § 30-1293; O.8084, 8166, 8891; C75, § 27-1322; O.9271, 9490, 9566, 9576; C79, § 27-1322; O.9630, 9918, 10,123, 10,309, 10,476; C85, § 27-1322, O.11,199; C91, § 27-2419; O.11,650, 13,218, 13,516, 13,629; C00, § 114-3445; O.13,841, 13,997, 14,518 (installed 8/6/15, 10/31/16), 15,641, 16,171, 16,437)

Sec. 114-3446. Lynch Street—Oxford Street to Cambridge Street.

Lynch Street, on the north side, from Oxford Street to Cambridge Street, no parking any time.
(C79, § 27-1322.01; O.9849, 10,131; C91, § 27-2420; O.11,650)

Sec. 114-3447. Lyndale Drive—Lindlavista Way to Skyline Drive.

Lyndale Drive, on the east side, from Lindlavista Way to Skyline Drive, no parking any time.

Lyndale Drive, on the west side, from a point 250 feet north of Hillcrest Drive to a point 110 feet north thereof, no parking any time.
(C79, § 27-1322.02; O.9849; C91, § 27-2421; O.11,650, 14,197)

Sec. 114-3448. Madison Avenue—First Street to Sixteenth Street.

Madison Avenue, on the north side, from a point 110 feet east of Second Avenue to a point 110 feet west of Second Avenue, no parking any time.

Madison Avenue, on the south side, from First Street to Sixteenth Street, no parking any time.

Madison Avenue, on the north side, from a point 150 feet east of Sixth Avenue to a point 70 feet west of Sixth Avenue, no parking any time.

Madison Avenue, on the north side, from Seventh Street to a point 50 feet west thereof, no parking any time.

Madison Avenue, on the north side, from a point 50 feet east of Ninth Street to a point 50 feet west of Ninth Street, no parking any time.

Madison Avenue, on the north side, from a point 50 feet east of Eleventh Street to a point 100 feet west of Eleventh Street, no parking any time.

Madison Avenue, on the north side, from Twelfth Street to a point 50 feet east thereof, no parking any time.

Madison Avenue, on the north side, from Fifteenth Street to Sixteenth Street, no parking any time.
(C62, § 30-1294; O.8084, 8313, 8389; C75, § 27-1323; O.8981, 9139; C79, § 27-1323; O.10,218; C91, § 27-2422; O.11,650, 11,742, 13,972, 16,515)

Sec. 114-3449. Madison Avenue—Martin Luther King Jr Parkway to Beaver Avenue.

Madison Avenue, on the south side, from Martin Luther King Jr Parkway to Lower Beaver Road, no parking any time.

Madison Avenue, on the north side, from Dosh Road to Lynner Drive, no parking any time.

Madison Avenue, on the north side, from Lynner Drive to a point 60 feet west thereof, no parking any time.

Madison Avenue, on the south side, from Lower Beaver Road to Thirty-sixth Street, no stopping or standing.

Madison Avenue, on the south side, from Thirty-sixth Street to Beaver Avenue, no parking any time.

Madison Avenue, on the north side, from Lower Beaver Road to a point 200 feet east thereof, no parking any time.

Madison Avenue, on the north side, from Lower Beaver Road to Thirty-sixth Place, no stopping or standing.

Madison Avenue, on the north side, from Thirty-sixth Place to Beaver Avenue, no parking any time.
(C62, § 30-1295; O.8084, 8468; C75, C79, § 27-1324; O.9746; C91, § 27-2423; O.11,650, 11,742, 11,935; C00 § 114-3449; O.14,518 (installed 5/25/11), 16,171)

Sec. 114-3450. Madison Avenue—Beaver Avenue to Merle Hay Road.

Madison Avenue, on the south side, from Beaver Avenue to Forty-seventh Street, no parking any time.

Madison Avenue, on the south side, from Forty-seventh Street to Fiftieth Street, no stopping or standing.

Madison Avenue, on the south side, from Fiftieth Street to Merle Hay Road, no parking any time.

Madison Avenue, on the north side, from Beaver Avenue to Forty-seventh Street, no parking any time.

Madison Avenue, on the north side, from Forty-seventh Street to a point 250 feet west thereof, passenger loading and unloading.

Madison Avenue, on the north side, from a point 250 feet west of Forty-seventh Street to a point 150 feet west thereof, bus loading and unloading, 7:00 a.m. to 5:00 p.m., school days.

Madison Avenue, on the north side, from a point 400 feet west of Forty-seventh Street to Fiftieth Street, passenger loading and unloading.

Madison Avenue, on the north side, from Fiftieth Street to Merle Hay Road, no parking any time.
(C62, § 30-1296; O.8084, 8478, 8615; C75, C79, § 27-1325; O.9693, 9746; C91, § 27-2424; O.11,650)

Sec. 114-3451. East Madison Avenue—First Street to dead end east of East Forty-second Street.

East Madison Avenue, on the south side, from First Street to a point 100 feet west of East Eighth Street, no parking any time.

East Madison Avenue, on the north side, from a point 100 feet west of Cornell Avenue to a point 85 feet east of Cornell Avenue, no parking any time.

East Madison Avenue, on the north side, from a point 125 feet west of North Union Street to a point 275 feet east thereof, no parking any time.

East Madison Avenue, on the north side, from a point 100 feet west of East Eighth Street to East Tenth Street, no stopping or standing 7:00 a.m. to 5:00 p.m. school days.

East Madison Avenue, on the south side, from a point 100 feet west of East Eighth Street to a point 280 feet east of East Eighth Street, no stopping or standing.

East Madison Avenue, on the south side, from a point 280 feet east of East Eighth Street to a point 355 feet east thereof, school bus loading and unloading, 7:00 a.m. to 5:00 p.m. school days.

East Madison Avenue, on the south side, from a point 635 feet east of East Eighth Street to East Tenth Street, no stopping or standing.

East Madison Avenue, on the south side, from East Tenth Street to Dixon Street, no parking any time.

East Madison Avenue, on the north side, from a point 50 feet west of East Fourteenth Street to a point 50 feet east of East Fourteenth Street, no parking any time.

East Madison Avenue, on the north side, from a point 60 feet west of Dixon Street to Dixon Street, no parking any time.

East Madison Avenue, on the north side, from East Twenty-third Street to East Twenty-fourth Court, no parking any time.

East Madison Avenue, on the south side, from East Twenty-third Street to a point 60 feet east, no parking any time.

East Madison Avenue, on the south side, from East Twenty-fifth Street to East Twenty-ninth Street, no parking any time.

East Madison Avenue, on the north side, from East Twenty-ninth Street to East Thirty-second Street, no parking any time.

East Madison Avenue, on the south side, from East Thirty-second Street to a point 50 feet west thereof, no parking any time.

East Madison Avenue, on the north side, from East Fortieth Street to Briarcliff Drive, no parking any time.

East Madison Avenue, on the south side, from Briarcliff Drive to East Forty-first Street, no parking any time.

East Madison Avenue, on the north side, from East Forty-first Street to a point 50 feet east of East Forty-second Street, no parking any time.

East Madison Avenue, on the south side, from East Forty-second Street to a point 50 feet west thereof, no parking any time.
(C62, § 30-1297; O.8084, 8313, 8772, 8926; C75, C79, § 27-1326; O.9685, 9849, 10,598; C85, § 27-1326; O.11,516; C91, § 27-2425; O.11,650, 13,380, 13,647, 13,935; C00, § 114-3451; O.14,518 (installed 9/29/17, 2/28/18, 8/25/20), 15,657, 15,821, 15,934, 16,171)

Sec. 114-3452. Mahaska Avenue—East Twenty-ninth Street to Williams Street.

Mahaska Avenue, on the north side, from East Twenty-ninth Street to East Thirty-third Street, no parking any time.

Mahaska Avenue, on the south side, from East Twenty-ninth Street to a point 60 feet east thereof, no parking any time.

Mahaska Avenue, on the south side, from East Thirty-third Street to a point 50 feet west thereof, no parking any time.

Mahaska Avenue, on the north side, from East Thirty-third Street to a point 50 feet east thereof, no parking any time.

Mahaska Avenue, on the south side, from East Thirty-third Street to East Thirty-fourth Street, no parking any time.

Mahaska Avenue, on the north side, from East Thirty-fourth Street to a point 50 feet west, no parking any time.

Mahaska Avenue, on the south side, from East Thirty-seventh Court to Williams Street, no parking any time.
(C62, § 30-1298; O.8084, 8166, 8303; C75, C79, § 27-1327; O.9685; C85, § 27-1327; O.11,420; C91, § 27-2426; O.11,650, 11,913, 13,160, 13,870, 14,161)

Sec. 114-3453. Mahaska Parkway—Lincoln Place Drive to Edwards Avenue.

Mahaska Parkway, on the south side, from Lincoln Place Drive to Edwards Avenue, no parking any time.
(C79, § 27-1327.01; O.9849; C91, § 27-2427; O.11,650)

Sec. 114-3454. Maine Street—University Avenue to Washington Avenue.

Maine Street, on the west side, from University Avenue to a point 240 feet north thereof, no parking any time.

Maine Street, on the west side, from College Avenue to a point 195 feet south thereof, no parking any time.

Maine Street, on the east side, from a point 60 feet south of College Avenue to Washington Avenue, no parking any time.

Maine Street, on the west side, from Washington Avenue to a point 310 feet south thereof, no parking any time.
(C62, § 30-1299; O.8084; C75, § 27-1328; O.8970; C79, § 27-1328; C91, § 27-2428; O.11,650, 11,871, 13,705)

Sec. 114-3455. East Maish Court—Southeast Twenty-second Street to dead end west.

East Maish Court, on the south side, from Southeast Twenty-second Street to a point 70 feet west thereof, and any part of the cul-de-sac, no parking any time.
(C79, § 27-1328.01; O.10,123; C91, § 27-2429; O.11,650)

Sec. 114-3456. East Maish Avenue—Southeast Eighteenth Street to Southeast Twenty-first Court.

East Maish Avenue, on the north side, from Southeast Eighteenth Street to Southeast Eighteenth Court, no parking any time.

East Maish Avenue, on the north side, from Southeast Nineteenth Street to Southeast Twentieth Street, no parking any time.

East Maish Avenue, on the north side, from Southeast Twentieth Street to Southeast Twenty-first Court, no parking any time.
(C91, § 27-2429.05; O.13,139, 13,239)

Sec. 114-3457. Maish Avenue—Dead end east of Southwest Seventh Street to cul-de-sac west of Southwest Fifty-sixth Street.

Maish Avenue, on the north side, from a point 361 feet east of Southwest Seventh Street to a point 276 feet west of Southwest Seventh Street, no parking any time.

Maish Avenue, on the south side, from Southwest Ninth Street to a point 200 feet west thereof, no parking any time.

Maish Avenue, on the north side, from Southwest Ninth Street to Southwest Twelfth Street, no parking any time.

Maish Avenue, on the south side, from Southwest Thirty-second Street to a point 980 feet west thereof, no parking any time.

Maish Avenue, on the south side, from Southwest Fifty-sixth Street west to and including any part of the cul-de-sac, no parking any time.
(C62, § 30-1300; O.8084, 8520; C75, C79, § 27-1329; O.10,111, 10,207; C91, § 27-2430; O.11,650, 16,299)

Sec. 114-3458. Manor Lane—Marianna Trail to Shawnee Avenue.

Manor Lane, on the east side, from Marianna Trail to Shawnee Avenue, no parking any time.
(C79, § 27-1329.01; O.9849, 10,074; C91, § 27-2431; O.11,650)

Sec. 114-3459. Mann Avenue—Dead end east of Twenty-sixth Street to Thirty-second Street.

Mann Avenue, on the south side, from Twenty-sixth Street to a point 194 feet east thereof, no parking any time.

Mann Avenue, on the north side, from a point 98 feet east of Twenty-sixth Street to a point 96 feet east thereof, no parking any time.

Mann Avenue, on any part of the cul-de-sac turnaround, from a point 194 feet east of Twenty-sixth Street to a point 87 feet east thereof, no parking any time.

Mann Avenue, on the north side, from Thirtieth Street to a point 50 feet west thereof, no parking any time.

Mann Avenue, on the south side, from Thirtieth Street to a point 660 feet west thereof, no parking any time.
(C62, § 30-1301; O.8084; C75, C79, § 27-1330; O.9886; C91, § 27-2432; O.11,650, 11,871)

Sec. 114-3460. Mansfield Drive—East Twenty-fourth Street to Hull Avenue.

Mansfield Drive, on the south side, from East Twenty-fourth Street to a point 50 feet east of East Twenty-fifth Street, no parking any time.

Mansfield Drive, on the north side, from East Twenty-fourth Street to a point 50 feet east thereof, no parking any time.

Mansfield Drive, on the north and east side, from East Twenty-fifth Street to Hull Avenue, no parking any time.

Mansfield Drive, on the west side, from a point 50 feet north of Hull Avenue to Hull Avenue, no parking any time.
(C62, § 30-1301.01; O.8655; C75, C79, § 27-1330.01; O.10,096; C91, § 27-2433; O.11,650, 13,344; C00, § 114-3460; O.14,518 (installed 1/29/20), 16,171, 16,327)

Sec. 114-3461. Maple Street—East Second Street to Knob Hill Drive.

Maple Street, on the north side, from East Ninth Street to East Twelfth Street, no parking any time.

Maple Street, on the south side, from East Twelfth Street to East Thirteenth Street, no parking any time.

Maple Street, on both sides, from East Fourteenth Street to a point 210 feet east of East Fifteenth Street, no parking any time.

Maple Street, on the south side, from a point 210 feet east of East Fifteenth Street to East Seventeenth Street, no parking any time.

Maple Street, on the south side, from East Eighteen Street to East Nineteenth Street, no parking any time.

Maple Street, on the north side, from East Eighteenth Street to a point 50 feet east thereof, no parking any time.

Maple Street, on the north side, from a point 195 feet east of East Eighteenth Street to a point 25 feet east thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in section 114-616(a) of this chapter.

Maple Street, on the south side, from a point 50 feet west of East Twenty-first Street to a point 50 feet east of East Twenty-first Street, no parking any time.

Maple Street, on the north side, from East Twentieth Street to East Twenty-ninth Street, no parking any time.

Maple Street, on the south side, from East Twenty-third Street to a point 40 feet east thereof, no parking any time.

Maple Street, on the south side, from a point 50 feet east of East Twenty-fifth Street to a point 50 feet west of East Twenty-fifth Street, no parking any time.

Maple Street, on the south side, from East Twenty-sixth Street to a point 65 feet east thereof, no parking any time.

Maple Street, on the south side, from a point 50 feet east of East Twenty-seventh Street to a point 50 feet west of East Twenty-seventh Street, no parking any time.

Maple Street, on the south side, from a point 70 feet east of East Twenty-eighth Street to a point 60 feet west of East Twenty-eighth Street, no parking any time.

Maple Street, on the south side, from East Twenty-ninth Street to East Thirtieth Street, no parking any time.

Maple Street, on the north side, from East Thirtieth Street to a point 75 feet west thereof, no parking any time.

Maple Street, on the north side, from Williams Street to Knob Hill Drive, no parking any time.

Maple Street, on the north side, from East Thirty-sixth Court to a point 50 feet east thereof, no parking any time.

Maple Street, on the north side, from a point 180 feet east of East Thirty-sixth Court to the dead end east thereof, no parking Wednesday 7:00 a.m. to 4:00 p.m.

Maple Street, on the south side, from East Thirty-sixth Court to a point 250 feet east thereof, no parking any time.

Maple Street, on the north side, from East Fortieth Street to East Forty-first Street, no parking any time.
(C62, § 30-1302; O.8084, 8166, 8283, 8298, 8539, 8851; C75, § 27-1331; O.9117; C79, § 27-1331; O.9685, 10,123, 10,386, 10,407; C85, § 27-1331; O.11,422; C91, § 27-2434; O.11,650, 13,115, 13,218,

13,593; C00, § 114-3461; O.14,015, 14,437, 14,518 (installed 8/3/09, 8/27/10, 7/22/13), 14,862, 14,965, 15,723, 16,093, 16,171)

Sec. 114-3461.5. Maquoketa Drive—Dead end east of Forestdale Drive to Germania Drive.

Maquoketa Drive, on the south side, from a point 50 feet east of Germania Drive to Germania Drive, no parking any time.
(O.15,947)

Sec. 114-3462. Mar Ella Trail—Washington Avenue to Franklin Avenue.

Mar Ella Trail, on the east side, from Washington Avenue to Franklin Avenue, no parking any time.

Mar Ella Trail, on the west side, from Franklin Avenue to a point 110 feet south thereof, no parking any time.
(C62, § 30-1303.01; O.8209; C75, C79, § 27-1332.01; O.9653; C85, § 27-1332.01; O.10,907; C91, § 27-2435; O.11,650, 13,813)

Sec. 114-3463. Marianna Trail—Thirty-sixth Place to Manor Lane.

Marianna Trail, on the south side, from Thirty-sixth Place to Manor Lane, no parking any time.
(C79, § 27-1322.02; O.9849; C91, § 27-2436; O.11,650)

Sec. 114-3464. East Marion Street—Southeast First Street to Southeast Twenty-sixth Street.

East Marion Street, on the south side, from Southeast First Street to Southeast Second Street, no parking any time.

East Marion Street, on the south side, from Southeast Third Street to a point 50 feet east thereof, no parking any time.

East Marion Street, on the north side, from Southeast Third Street to Southeast Fifth Street, no parking any time.

East Marion Street, on the north side, from Southeast Tenth Street to Southeast Twelfth Street, no parking any time.

East Marion Street, on the south side, from Indianola Avenue east to the dead end and including the turnaround, no parking any time.

East Marion Street, on the north side, from Southeast Twenty-second Street to Evergreen Avenue, no parking any time.

East Marion Street, on the south side, from Southeast Twenty-second Street to a point 150 feet east thereof, no parking any time.

East Marion Street, on the south side, from a point 50 feet west of Southeast Twenty-third Street to a point 50 feet east of Southeast Twenty-third Street, no parking any time.

East Marion Street, on the south side, from a point 50 feet west of Southeast Twenty-third Court to a point 50 feet east of Southeast Twenty-third Court, no parking any time.

East Marion Street, on the south side, from a point 50 feet west of Southeast Twenty-fourth Street to a point 50 feet east of Southeast Twenty-fourth Street, no parking any time.

East Marion Street, on the south side, from Southeast Twenty-fifth Street to Southeast Twenty-sixth Street, no parking any time.
(C79, § 27-1332.03; O.9855, 9886; C91, § 27-2437; O.11,650, 13,029, 13,239, 13,780, 13,954, 13,957, 14,288, 14,449, 15,776)

Sec. 114-3465. Marion Street—Southwest Fifth Street to Southwest Twenty-fifth Street.

Marion Street, on the north side, from Southwest Fifth Street to a point 50 feet west thereof, no parking any time.

Marion Street, on the south side, from Southwest Fifth Street to Glover Avenue, no parking any time.

Marion Street, on the north side, from Southwest Ninth Street to a point 50 feet east thereof, no parking any time.

Marion Street, on the north side, from a point 50 feet east of Southwest Ninth Street to a point 250 feet east thereof, no parking 8:00 a.m. to 5:00 p.m.

Marion Street, on the north side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.

Marion Street, on the north side, from Southwest Twenty-fourth Street to a point 280 feet west thereof, no parking any time.

Marion Street, on the west side, from Southwest Twenty-fifth Street to a point 280 feet north thereof, no parking any time.
(C62, § 30-1304; O.8084; C75, C79, § 27-1333; O.9629, 9886, 10,207, 10,407, 10,434, 10,532, 10,598, 10,692; C85, § 27-1333; O.11,248; C91, § 27-2438; O.11,650)

Sec. 114-3466. Market Street—Southwest Water Street to Southwest Sixth Street.

Market Street, on the south side, from a point 135 feet west of Southwest Water Street to a point 40 feet west thereof, loading zone.

Market Street, on the south side, from Southwest Second Street to a point 45 feet west thereof, no parking any time.

Market Street on the south side, from Southwest Third Street to a point 50 feet east thereof, no parking any time.

Market Street, on the north side, from Southwest Second Street to a point 50 feet east thereof, no parking any time.

Market Street, on the north side, from a point 70 feet east of Southwest Second Street to a point 80 feet east thereof, no parking any time.

Market Street, on the north side, from a point 150 feet east of Southwest Second Street to a point 105 feet east thereof, passenger loading and unloading, ten minutes only.

Market Street, on the north side, from a point 255 feet east of Southwest Second Street to Southwest Water Street, no parking any time.

Market Street, on the south side, from Southwest Fourth Street, to a point 25 feet west thereof, no parking any time.

Market Street, on the north side, from Southwest Fourth Street, to a point 25 feet west thereof, no parking any time.

Market Street, on the south side, from Southwest Fifth Street to a point 25 feet east thereof, no parking any time.

Market Street, on the north side, from a point 165 feet west of Southwest Fourth Street to a point 40 feet west thereof, no parking any time.

Market Street, on the north side, from Southwest Fifth Street to a point 25 feet east thereof, no parking any time.
(C62, § 30-1305; O.8084, 8478; C75, § 27-1334; O.8994, 9190; C91, § 27-2439; O.11,650, 13,218, 13,248, 13,593, 13,870, 13,924, 14,437, 14,518 (installed 7/20/20), 14,542, 14,855, 15,301, 15,621, 16,171)

Sec. 114-3467. Reserved.

Editor's note—Ord. No. 14,542, § 1, adopted Feb. 6, 2006, repealed § 114-3467, which pertained to Market Street—Southwest Sixth Street to Southwest Sixteenth Street and derived from Code 1962, § 30-1306; Ord. No. 8084; Ord. No. 8839; Ord. No. 8878; Code 1975; Code 1979, § 27-1335; Code 1991, § 27-2440; Ord. No. 11,650.

Sec. 114-3468. East Market Street—Des Moines River to Southeast Twenty-ninth Court.

East Market Street, on the south side, from Southeast Fourth Street to a point 50 feet west thereof, no parking any time.

East Market Street, on the north side, from Southeast Fifth Street to a point 50 feet east thereof, no parking any time.

East Market Street, on the north side, from a point 120 feet east of Southeast Fifth Street to Southeast Sixth Street, no parking any time.

East Market Street, on the south side, from Southeast Fifth Street to a point 75 feet east thereof, no parking any time.

East Market Street, on the south side, from a point 75 feet east of Southeast Fifth Street to Southeast Sixth Street, reserved for City of Des Moines municipal employee permit parking.

East Market Street, on both sides, from Southeast Seventh Street to Southeast Eighth Street, no parking any time.

East Market Street, on the north side, from Southeast Eighteenth Street to Southeast Twentieth Street, no parking any time.

East Market Street, on both sides, from Southeast Twentieth Street to Southeast Twenty-fifth Court, no parking any time.

East Market Street, on the north side, from Southeast Twenty-fifth Court to Southeast Twenty-ninth Court, no parking any time.

East Market Street, on the south side, from Southeast Twenty-seventh Street to a point 100 feet east thereof, no parking any time.

East Market Street, on the south side, from Southeast Twenty-seventh Court to a point 130 feet east thereof, no parking any time.
(C62, § 30-1307; O.8084; C75, C79, § 27-1336; O.10,123, 10,402; C91, § 27-2441; O.11,650, 13,333; C00, § 114-3468; O.13,870, 14,518 (installed 1/11/10), 15,670, 15,868, 15,926, 16,171, 16,370)

Sec. 114-3469. Marsh Drive—Thirty-eighth Place to Tonawanda Drive.

Marsh Drive, on the south side, from Thirty-eighth Place to Tonawanda Drive, no parking any time.
(C79, § 27-1336.01; O.9849; C91, § 27-2442; O.11,650)

Sec. 114-3469.05. Martin Luther King Jr Parkway—West Martin Luther King Jr Parkway to Ingersoll Avenue.

Martin Luther King Jr Parkway, on both sides, from West Martin Luther King Jr Parkway to Ingersoll Avenue, no parking any time.
(O.14,418)

Sec. 114-3469.06. East Martin Luther King Jr Parkway—Center of Des Moines River to east city limits.

East Martin Luther King Jr Parkway, on both sides, from the center of Des Moines River to Southeast Thirtieth Street, no parking any time.
(O.14,982, 15,387, 15,466)

Sec. 114-3470. Martin Luther King Jr Parkway—Ingersoll Avenue to University Avenue.

Martin Luther King Jr Parkway, on the west side, from Ingersoll Avenue to University Avenue, no parking any time.

Martin Luther King Jr Parkway, on the east side, from a point 150 feet north of Day Street to a point 75 feet south of High Street, no parking any time.

Martin Luther King Jr Parkway, on the east side, from Atkins Street to a point 75 feet north thereof, no parking any time.
(C62, § 30-1194; O.8084; C75, C79, C85, § 27-1223; O.10,872; C91, § 27-2256; O.11,650; C91, § 27-2442.01; O.11,935, 12,036)

Sec. 114-3471. Martin Luther King Jr Parkway—University Avenue to Hickman Road.

Martin Luther King Jr Parkway, on the east side, from University Avenue to a point 40 feet north thereof, no parking any time.

Martin Luther King Jr Parkway, on the west side, from University Avenue to a point 185 feet north thereof, no parking any time.

Martin Luther King Jr Parkway, on the east side, from a point 250 feet north of University Avenue to College Avenue, no parking any time.

Martin Luther King Jr Parkway, on the west side, from a point 185 feet north of University Avenue to a point 100 feet south of Carpenter Avenue, no parking 7:00 a.m. to 9:00 a.m.

Martin Luther King Jr Parkway, on the west side, from Carpenter Avenue to College Avenue, no parking 7:00 a.m. to 9:00 a.m.

Martin Luther King Jr Parkway, on the west side, from Carpenter Avenue to a point 100 feet south thereof, no parking any time.

Martin Luther King Jr Parkway, on the west side, from Carpenter Avenue to Clark Street, two-hour parking 9:00 a.m. to 4:00 p.m.

Martin Luther King Jr Parkway, on both sides, from College Avenue to Hickman Road, no parking any time.
(C62, § 30-1195; O.8084, 8205, 8250; C75, § 27-1224; O.8974; C79, C85, § 27-1224; O.11,278; C91, § 27-2257; O.11,650; C91, § 27-2442.02; O.11,935; C00, § 114-3471; O.14,518 (installed 10/27/16), 16,171)

Sec. 114-3472. Martin Luther King Jr Parkway—Hickman Road to Euclid Avenue.

Martin Luther King Jr Parkway, on both sides, from Hickman Road to Euclid Avenue, no parking any time.
(C62, § 30-1196; O.8084; C75, C79, § 27-1225; C91, § 27-2258; O.11,650; C91, § 27-2442.03; O.11,935)

Sec. 114-3473. Martin Luther King Jr Parkway—Euclid Avenue to Madison Avenue.

Martin Luther King Jr Parkway, on the east side, from Euclid Avenue to Madison Avenue, no parking any time.

Martin Luther King Jr Parkway, on the west side, from Euclid Avenue to a point 200 feet north thereof, no parking any time.

Martin Luther King Jr. Parkway, on the west side, from a point 200 feet north of Euclid Avenue to Lynner Drive, no parking 7:00 a.m. to 6:00 p.m., Monday through Friday.

Martin Luther King, Jr. Parkway, on the west side, from a point 170 feet south of Madison Avenue to Madison Avenue, no parking any time.
(C62, § 30-1196.01; O.8249; C75, C79, § 27-1225.01; C91, § 27-2259; O.11,650; C91, § 27-2442.04; O.11,935, 13,818, 15,915)

Sec. 114-3474. Mason Avenue—Southwest Ninth Street to Southview Drive.

Mason Avenue, on both sides, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.
(C79, § 27-1336.02; O.10,598; C91, § 27-2443; O.11,650)

Sec. 114-3475. Mary Avenue—Ninth Street to Fifteenth Street.

Mary Avenue, on the south side, from Ninth Street to Eleventh Street, no parking any time.
(C62, § 30-1308; O.8084; C75, C79, § 27-1337; C91, § 27-2444; O.11,650)

Sec. 114-3476. Mattern Avenue—East Ninth Street to East Forty-second Street.

Mattern Avenue, on the south side, from East Ninth Street to East Fourteenth Street, no parking any time.

Mattern Avenue, on the north side, from a point 50 feet west of East Fourteenth Street to East Fourteenth Street, no parking any time.

Mattern Avenue, on the north side, from East Fourteenth Street to Glenbrook Drive, no parking any time.

Mattern Avenue, on the south side, from East Fourteenth Street to a point 80 feet east thereof, no parking any time.

Mattern Avenue, on the south side, from a point 830 feet west of East Seventeenth Street to East Seventeenth Street, no parking any time.

Mattern Avenue, on the south side, from East Thirty-eighth Street to East Forty-second Street, no parking any time.
(C79, § 27-1337.01; O.9685, 10,123, 10,162, 10,402, 10,598, 10,706; C85, § 27-1337.01; O.10,767, 11,024; C91, § 27-2445; O.11,650, 16,462)

Sec. 114-3477. Maryland Pike—Beaver Avenue to Beavercrest Drive.

Maryland Pike, on the west side, from Holland Drive to Beavercrest Drive, no parking any time.
(C79, § 27-1337.02; O.9886; C91, § 27-2446; O.11,650)

Sec. 114-3478. Maryland Avenue—Fourteenth Street to Fifteenth Street.

Maryland Avenue, on the north side, from Fourteenth Street to Fifteenth Street, no parking any time.
(C62, § 30-1309; O.8084; C75, C79, § 27-1338; C91, § 27-2447; O.11,650)

Sec. 114-3479. East Maxwelton Drive—South Union Street to Southeast Third Street.

East Maxwelton Drive, on the north side, from South Union Street to Southeast Third Street, no parking any time.

East Maxwelton Drive, on the south side, from South Union Street to a point 50 feet east thereof, no parking any time.

East Maxwelton Drive, on the south side, from 425 feet east of South Union Street to a point 305 feet east thereof, no parking any time.

East Maxwelton Drive, on the south side, from Southeast Third Street, to a point 50 feet west thereof, no parking any time.
(C79, § 27-1383.01; O.9658; C91, § 27-2448; O.11,650; C00, § 114-3479; O.14,518 (installed 7/12/16), 15,486, 16,171)

Sec. 114-3480. Maxwelton Drive—Southwest Second Street to Southwest Ninth Street.

Maxwelton Drive, on the south side, from Southwest Second Street to Southwest Fifth Street, no parking any time.

Maxwelton Drive, on the north side, from Southwest Fifth Street to Southwest Ninth Street, no parking any time.

Maxwelton Drive, on the south side, from Southwest Ninth Street to a point 50 feet east thereof, no parking any time.
(C79, § 27-1338.02; O.9886, 10,598; C91, § 27-2449; O.11,650)

Sec. 114-3481. Maury Street—Southeast Fifth Street to dead end east of Southeast Thirty-first Street.

Maury Street, on both sides, from Southeast Sixth Street to 450 feet east of Southeast Fifteenth Court, no parking any time.

Maury Street, on both sides, from 450 feet east of Southeast Fifteenth Court to Southeast Eighteenth Street, no stopping or standing.

Maury Street, on both sides, from Southeast Eighteenth Street to Southeast Twenty-eighth Street, no parking any time.

Maury Street, on the south side, from Southeast Thirtieth Street to a point 50 feet east thereof, no parking any time.

Maury Street, on the north side, from Southeast Thirtieth Street to the dead end east of Southeast Thirty-first Street, no parking any time.
(C62, § 30-1310; O.8084, 8433; C75, C79, § 27-1339; O.9685, 10,402, 10,598; C85, § 27-1339; O.11,237; C91, § 27-2450; O.11,650, 15,466, 16,221)

Sec. 114-3482. McCormick Street—East University Avenue to East Washington Avenue.

McCormick Street, on the east side, from East University Avenue to a point 50 feet north thereof, no parking any time.

McCormick Street, on the west side, from East University Avenue to East Washington Avenue, no parking any time.
(C62, § 30-1310.01; O.8355; C75, C79, § 27-1339.01; O.10,598; C91, § 27-2451; O.11,650)

Sec. 114-3483. McKee Street—East Seventh Street to Pennsylvania Avenue.

McKee Street, on both sides, from East Seventh Street to Pennsylvania Avenue, no parking any time.
(C62, § 30-1311.02; O.8661; C75, C79, § 27-1340.01; C91, § 27-2453; O.11,650)

Sec. 114-3484. East McKinley Avenue—South Union Street to Indianola Avenue.

East McKinley Avenue, on both sides, from South Union Street to Indianola Avenue, no parking any time.
(C62, § 30-1311.01; O.8539, 8655; C75, § 27-1340.02; O.9503, 9563; C79, § 27-1340.02; O.9629; C85, § 27-1340.02; O.11,302; C91, § 27-2454; O.11,650)

Sec. 114-3485. McKinley Avenue—South Union Street to Southwest Forty-second Street.

McKinley Avenue, on both sides, from South Union Street to Southwest Forty-second Street, no parking any time.
(C75, § 27-1340.03; O.9607, 9614; C79, § 27-1340.03; O.10,042; C85, § 27-1340.03; O.11,208; C91, § 27-2455; O.11,650, 14,339, 16,313)

Sec. 114-3486.0. Southwest McKinley Avenue—Southwest Forty-second Street to Southwest Sixty-third Street.

Southwest McKinley Avenue, on both sides, from Southwest Forty-second Street to Iowa Highway 28, no parking any time.
(C85, § 27-1340.04; O.11,302; C91, § 27-2456; O.11,650, 13,363, 14,339, 15,966)

Sec. 114-3486.2. Southwest McKinley Drive—Dead end east of Southwest Sixty-first Street to cul-de-sac west.

Southwest McKinley Drive, on the north side, from the dead end east of Southwest Sixty-first Street to and including any part of the cul-de-sac west of Southwest Sixty-first Street, no parking any time.
(O.14,226, 15,966)

Sec. 114-3486.3. Meadow Wood Circle—Brook Ridge Court to dead end.

Meadow Wood Circle, on the north side, from Brook Ridge Court west to and including the cul-de-sac, no parking any time.

Meadow Wood Circle, on the south side, from a point 60 feet west of Brook Ridge Court to Brook Ridge Court, no parking any time.
(O.13,957, 14,226, 14,518 (installed 1/23/19), 16,171)

Sec. 114-3486.4. Meadow Chase Lane—Bloomfield Road to Indianola Avenue.

Meadow Chase Lane, on the east side, from Bloomfield Road north to and including the round-a-bout, no parking any time.

Meadow Chase Lane, on the west side, from Meadowlands Drive to a point 80 feet south thereof, no parking any time.

Meadow Chase Lane, on the north side, from Meadowlands Drive east to Indianola Avenue, no parking any time.
(C00, § 114-3486.1; O.14,226, 14,518 (installed 6/30/09), 15,966, 16,171)

Sec. 114-3486.6. East Meadow Lane—Indianola Avenue to East Havens Avenue.

East Meadow Lane, on the north side, from Indianola Avenue to East Havens Avenue, no marking any time.
(C00, § 114-3486.001; O.14,226, 15,966)

Sec. 114-3486.7. Meadowlands Drive—Meadow Chase Lane to East Army Post Road.

Meadowlands Drive, on the east side, from Meadow Chase Lane to Meadow Court, no parking any time.
(O.14,322)

Sec. 114-3486.8. Meadow Court—Meadowlands Drive to Indianola Avenue.

Meadow Court, on the south side, from Meadowlands Drive to Indianola Avenue, no parking any time.

Meadow Court, on the north side, from a point 75 feet west of Indianola Avenue to Indianola Avenue, no parking any time.
(C00, § 114-3486.05; O.14,322, 14,518 (installed 8/8/19), 15,966, 16,171)

Sec. 114-3487. Meek Avenue—Martin Luther King Jr Parkway to dead end west of Twenty-seventh Street.

Meek Avenue, on the south side, from Martin Luther King Jr Parkway to a point 50 feet west thereof, no parking any time.

Meek Avenue, on the north side, from Martin Luther King Jr Parkway to Twenty-second Street, no parking any time.

Meek Avenue, on the north side, from Twenty-seventh Street to a point 30 feet west thereof, no parking any time.

Meek Avenue, on the south side, from Twenty-seventh Street to a point 450 feet west thereof, no parking any time.
(C62, § 30-1312; O.8084; C75, § 27-1341; O.8979; C79, § 27-1341; O.10,434; C91, § 27-2457; O.11,650, 11,935, 14,418, 14,421)

Sec. 114-3487.5. Merced Drive—Cul-de-sac east of Twenty-ninth Street to cul-de-sac west of Twenty-ninth Street.

Merced Drive, on the south side, from and including the cul-de-sac east of Twenty-ninth Street to and including the cul-de-sac west of Twenty-ninth Street, no parking any time.
(O.16,546)

Sec. 114-3488. Merced Street—Thirty-eighth Street to Fifty-fourth Street.

Merced Street, on the north side, from Thirty-eighth Street to Fortieth Street, no parking any time.

Merced Street, on the south side, from Forty-sixth Street to a point 410 feet west of Forty-eighth Street, no parking any time.

Merced Street, on the north side, from a point 100 feet east of Forty-eighth Street to a point 100 feet west of Forty-eighth Street, no parking any time.

Merced Street, on the north side, from Fifty-first Street to Fifty-fourth Street, no parking any time.
(C79, § 27-1341.01; O.9685, 9849; C85, § 27-1341.01; O.11,225; C91, § 27-2458; O.11,650, 14,833, 16,546)

Sec. 114-3488.5. East Merced Street—Northeast Forty-sixth Street to East Forty-eighth Street.

East Merced Street, on the north side, from Northeast Forty-sixth Street to East Forty-eighth Street, no parking any time.

East Merced Street, on the south side, from East Forty-sixth Street to a point 50 feet east thereof, no parking any time.

East Merced Street, on the south side, from a point 45 feet west of East Forty-eighth Street to East Forty-eight Street, no parking any time.
(O.14,634, 14,518 (installed 01/11/21), 16,171, 16,558)

Sec. 114-3489. Merle Hay Road—University Avenue to north city limits.

Merle Hay Road, on the west side, from University Avenue to the north city limits, no parking any time.

Merle Hay Road, on the east side, from University Avenue to Francis Avenue, no parking Monday through Saturday.

Merle Hay Road, on the east side, from Francis Avenue, to the north city limits, no parking any time.
(C62, § 30-1313; O.8084; C75, C79, § 27-1342; C91, § 27-2459; O.11,650, 11,913)

Sec. 114-3490. East Merle Hay Frontage Road—Merle Hay Road to north city limits.

East Merle Hay Frontage Road, on both sides, from a point 1,300 feet north of Aurora Avenue to the north city limits, no parking any time.
(C62, § 30-1313.01; O.8100; C75, C79, § 27-1343; C91, § 27-2460; O.11,650)

Sec. 114-3491. East Merle Hay Road Frontage Road—Dead end south of Meredith Drive to dead end north of Meredith Drive.

East Merle Hay Road Frontage Road, on both sides, from a point 1,200 feet south of Meredith Drive to a point 1,100 feet north of Meredith Drive, no parking any time.
(C79, § 27-1343.01; O.9779; C91, § 27-2461; O.11,650)

Sec. 114-3492. Methodist Drive—Chestnut Street to Twelfth Street.

Methodist Drive, on both sides, from Chestnut Street to Twelfth Street, no parking any time.

Methodist Drive, on the north side, from a point 325 feet north of Chestnut Street to a point 75 feet north thereof, passenger loading zone.
(C62, § 30-1314; O.8084; C75, C79, § 27-1344; C91, § 27-2462; O.11,650, 16,013)

Sec. 114-3493. Michigan Street—Forest Avenue to College Avenue.

Michigan Street, on the east side, from Forest Avenue to College Avenue, no parking any time.

Michigan Street, on the west side, from Clark Street to a point 50 feet north thereof, no parking any time.
(C79, § 27-1344.01; O.10,278; C91, § 27-2463; O.11,650, 16,558)

Sec. 114-3494. Miller Avenue—Dead end east of Southwest Second Street to dead end west of Southwest Twenty-eighth Street.

Miller Avenue, on the north side, from a point 130 feet east of Southwest Second Street and any part of the cul-de-sac to a point 470 feet west of Southwest Second Street and any part of the cul-de-sac, no parking any time.

Miller Avenue, on the south side, from Southwest Fifth Street to Southwest Seventh Street, no parking any time.

Miller Avenue, on the north side, from Southwest Twenty-seventh Street to a point 380 feet west of Southwest Twenty-eighth Street and any part of the cul-de-sac, no parking any time.
(C62, § 30-1315; O.8084; C75, C79, § 27-1345; O.10,111, 10,207; C91, § 27-2464; O.11,650)

Sec. 114-3495. East Miller Avenue—Southeast Third Street to dead end east of Southeast Eighth Street.

East Miller Avenue, on the south side, from Southeast Third Street to a point 250 feet east of Southeast Eighth Street, no parking any time.

East Miller Avenue, on the north side, from Southeast Eighth Street to a point 250 feet east thereof, no parking any time.
(C79, § 27-1345.01; O.10,111, 10,144, 10,342; C91, § 27-2465; O.11,650)

Sec. 114-3496. Milton Avenue—East Fourteenth Street to dead end east of East Twenty-first Street.

Milton Avenue, on the north side, from East Fourteenth Street to a point 50 feet east thereof, no parking any time.

Milton Avenue, on the south side, from East Fourteenth Street to Glenbrook Drive, no parking any time.

Milton Avenue, on both sides, from Delaware Avenue to East Twenty-first Street, no parking any time.

Milton Avenue, on the south side, from East Twenty-first Street to a point 325 feet east thereof, no parking any time.
(C62, § 30-1316; O.8084; C75, § 27-1346; O.9461; C79, § 27-1346; O.10,123, 10,598; C91, § 27-2466; O.11,650, 16,437)

Sec. 114-3497. Mondamin Avenue—Thirteenth Street to Thirty-third Street.

Mondamin Avenue, on the north side, from Thirteenth Street to Martin Luther King Jr Parkway, no parking any time.

Mondamin Avenue, on the south side, from Sixteenth Street to a point 100 feet west thereof, no parking 8:00 a.m. to 1:00 p.m. Sundays.

Mondamin Avenue, on the north side, from Martin Luther King Jr Parkway to a point 60 feet west thereof, no parking any time.

Mondamin Avenue, on the south side, from Martin Luther King Jr Parkway to a point 250 feet east thereof, no parking any time.

Mondamin Avenue, on the north side, from Twentieth Place to a point 25 feet east thereof, no parking any time.

Mondamin Avenue, on the south side, from Martin Luther King Jr Parkway to a point 90 feet west of Twenty-first Street, no parking any time.

Mondamin Avenue, on the north side, from a point 35 feet west of Twenty-first Street west to the dead end, no parking any time.

Mondamin Avenue, on the north side, from Twenty-seventh Street to a point 385 feet west thereof, no parking any time.

Mondamin Avenue, on the south side, from Twenty-seventh Street to a point 50 feet west thereof, no parking any time.

Mondamin Avenue, on the south side, from Thirty-second Street to Thirty-third Street, no parking any time.
(C62, § 30-1317; O.8084; C75, § 27-1347; O.9445; C79, § 27-1347; O.9886, 10,123; C85, § 27-1347; O.11,379; C91, § 27-2467; O.11,650, 11,935, 13,785, C00, § 114-3497; O.13,918, 14,421, 14,518 (installed 9/20/10), 16,171)

Sec. 114-3498. Monona Avenue—Indianola Road to dead end south.

Monona Avenue, on both sides, from Indianola Road to a point 330 feet south thereof, no parking any time.
(C62, § 30-1317.01; O.8278, 8655; C75, C79, § 27-1347.01; C91, § 27-2468; O.11,650, 14,057)

Sec. 114-3498.1. Moonlight Drive—Three Lakes Parkway to dead end.

Moonlight Drive, on the south side, from Three Lakes Parkway west to the dead end, no parking any time.

Moonlight Drive, on the north side, from a point 50 feet west of Timberwolf Lane to a point 50 feet east of Timberwolf Lane, no parking any time.

Moonlight Drive, on the north side, from a point 50 feet west of Three Lakes Parkway to Three Lakes Parkway, no parking any time.
(C00, § 114-3498.1; O.13,948, 14,518 (installed 1/25/22), 16,171)

Sec. 114-3499. Morgan Street—Southwest Ninth Street west to the dead end.

Morgan Street, on the north side, from Southwest Ninth Street west to the dead end, no parking any time.
(C91, § 27-2468.50; O.11,884, 13,130, 13,317)

Sec. 114-3500. Morton Avenue—Bowdoin Street to east city limits.

Morton Avenue, on the south side, from East Ninth Street to a point 50 feet east thereof, no parking any time.

Morton Avenue, on the north side, from Bowdoin Street to East Fourteenth Street, no parking any time.

Morton Avenue, on the south side, from a point 75 feet east of East Thirteenth Street to a point 75 feet west of East Thirteenth Street, no parking any time.

Morton Avenue, on the south side, from East Fourteenth Street to a point 100 feet west thereof, no parking any time.

Morton Avenue, on the north side, from East Fourteenth Street east to the dead end, no parking any time.

Morton Avenue, on the south side, from East Fourteenth Street to a point 500 feet east thereof, no parking any time.

Morton Avenue, on the north side, from Delaware Avenue to a point 1200 feet east thereof, no parking any time.

Morton Avenue, on the south side, from East Twenty-fourth Street to a point 650 feet west thereof, no parking any time.

Morton Avenue, on the south side, from East Twenty-fifth Street to East Twenty-seventh Street, no parking any time.

Morton Avenue, on the north side, from East Twenty-fifth Street to a point 60 feet east thereof, no parking any time.

Morton Avenue, on the north side, from East Twenty-seventh Street to a point 50 feet west thereof, no parking any time.

Morton Avenue, on the south side, from East Fortieth Street to East Forty-first Street, no parking any time.

Morton Avenue, on the north and west sides, from a point 1010 feet east of East Forty-second Street to Grandview Avenue, no parking any time.
(C62, § 30-1318; O.8084, 8147; C75, § 27-1348; O.9405; C79, § 27-1348; O.9685, 10,123, 10,359, 10,598; C91, § 27-2469; O.11,650, 13,298; C00, § 114-3500; O.14,196, 14,518 (installed 6/29/06, 3/13/08, 3/10/09, 10/25/18), 14,821, 15,992, 16,171)

Sec. 114-3501. Motley Street—Fulton Drive to Hillside Avenue.

Motley Street, on the east side, from Hillside Avenue to Fulton Avenue, no parking any time.

Motley Street, on the west side, from Fulton Drive to a point 40 feet north thereof, no parking any time.
(C62, § 30-1319; O.8084; C75, C79, § 27-1349; C91, § 27-2470; O.11,650; C00; O.14,518 (installed 6/27/07), 16,171)

Sec. 114-3502. Moyer Street—Twenty-seventh Street to Twenty-eighth Street.

Moyer Street, on the north side, from Twenty-seventh Street to Twenty-eighth Street, no parking any time.

Moyer Street, on the south side, from Twenty-seventh Street to a point 40 feet west thereof, no parking any time.
(C62, § 30-1320; O.8084; C75, C79, § 27-1350; C91, § 27-2471; O.11,650, 14,421)

Sec. 114-3503. Reserved.

Editor's note—Ord. No. 14,855, § 1, adopted May 18, 2009, repealed § 114-3503, which pertained to MTA Lane—Southwest Ninth Street to dead end west of Southwest Ninth Street and derived from Code 1975, § 27-1350.01; Ord. No. 9503; Code 1991, § 27-2472; Ord. No. 11,650; Ord. No. 14,237.

Sec. 114-3504. Mulberry Street—Fifth Avenue to Sixth Avenue.

Mulberry Street, on the north side, from Fifth Avenue to a point 130 feet west thereof, official marked police vehicles only, Monday through Friday, 7:00 a.m. to 5:00 p.m.

Mulberry Street, on the south side, from a point 150 feet west of Fifth Avenue to a point 50 feet west thereof, commercial loading zone.
(C62, § 30-1321; O.8084, 8240, 8491; C75, C79, § 27-1351; O.10,008; C91, § 27-2473; O.11,650, 13,516, 15,776)

Sec. 114-3505. Mulberry Street—Sixth Avenue to Seventh Street.

Mulberry Street, on the south side, from Sixth Avenue to a point 18 feet west thereof no parking any time.

Mulberry Street, on the south side, from a point 18 feet west of Sixth Avenue to a point 16 feet east of Seventh Street, no parking 7:00 a.m. to 9:00 a.m. and 4:00 p.m. to 6:00 p.m.

Mulberry Street, on the south side, from a point 122 feet west of Sixth Avenue to a point 75 feet west thereof, no parking any time.

Mulberry Street, on the south side, from Seventh Street to a point 16 feet east thereof, no parking any time.

Mulberry Street, on the north side, from Sixth Avenue to a point 195 feet west thereof, no parking any time.

Mulberry Street, on the north side, from a point 195 feet west of Sixth Avenue to Seventh Street, commercial loading zone.

Mulberry Street, on the north side, from a point 195 feet west of Sixth Avenue to Seventh Street, no parking 4:00 p.m. to 9:00 a.m.
(C62, § 30-1322; O.8084; C75, C79, C85, § 27-1352; O.11,561; C91, § 27-2474; O.11,650, 11,891, 13,705, 13,972)

Sec. 114-3506. Mulberry Street—Seventh Street to Eighth Street.

Mulberry Street, on the south side, from Seventh Street to Eighth Street, no parking any time.
(C62, § 30-1323; O.8084, 8168; C75, § 27-1353; O.9292; C79, § 27-1353; C91, § 27-2475; O.11,650, 13,705, 13,750, 14,608)

Sec. 114-3507. Mulberry Street—Eighth Street to Ninth Street.

Mulberry Street, on the north side, from Eighth Street to Ninth Street, no parking 7:00 a.m. to 9:00 p.m. and 4:00 p.m. to 6:00 p.m.

Mulberry Street, on the north side, from Eighth Street to a point 40 feet west thereof, no parking any time.

Mulberry Street, on the south side, from Eighth Street to Ninth Street, no parking any time.
(C62, § 30-1324; O.8084; C75, C79, § 27-1354; O.10,035; C85, § 27-1354; O.10,931, 11,041; C91, § 27-2476; O.11,650, 13,705, 14,608, 16,192)

Sec. 114-3508. Reserved.

Editor's note—Ord. No. 15,621, § 1, adopted Nov. 20, 2017, repealed § 114-3508, which pertained to Mulberry Street—Ninth Street to Tenth Street and derived from Code 1962, § 30-1325; Ord. No. 8084; Code 1975, § 27-1355; Ord. No. 9292; Code 1979; Code 1985, § 27-1355; Ord. No. 11,380; Code 1991, § 27-2477; Ord. No. 11,650; Ord. No. 14,812; Ord. No. 15,278; Ord. No. 15,367.

Sec. 114-3509. Mulberry Street—Tenth Street to Eleventh Street.

Mulberry Street, on the south side, from a point 65 feet west of Tenth Street to a point 70 feet west thereof, no parking any time.
(C75, § 27-1356; O.9292; C79, § 27-1356; C91, § 27-2478; O.11,650)

Sec. 114-3510. Mulberry Street—Eleventh Street to Twelfth Street.

Mulberry Street, on the north side, from Twelfth Street to a point 35 feet east thereof, no parking any time.

Mulberry Street, on the north side, from a point 35 feet east of Twelfth Street to a point 220 feet east thereof, no parking 4:00 p.m. to 6:00 p.m.

Mulberry Street, on the north side, from a point 255 feet east of Twelfth Street to a point 210 feet east thereof, no parking any time.

Mulberry Street, on the south side, from Twelfth Street to a point 50 feet east thereof, commercial loading zone.
(C85, § 27-1357;O.11,231, 11,248; C91, § 27-2479; O.11,650, 14,161)

Sec. 114-3511. Mulberry Street—Twelfth Street to Thirteenth Street.

Mulberry Street, on the north side, from Twelfth Street to a point 25 feet west thereof, no parking any time.

Mulberry Street, on the south side, from Twelfth Street to Thirteenth Street, no parking any time.
(C62, § 30-1328; O.8084, 8772, 8926; C75, C79, § 27-1358; O.10,141; C91, § 27-2480; O.11,650, 14,830, 14,876)

Sec. 114-3512. Mulberry Street—Thirteenth Street to Fifteenth Street.

Mulberry Street, on the north side, from Thirteenth Street to 460 feet west thereof, no parking any time.

Mulberry Street, on the north side, from a point 20 feet east of Falcon Drive to Fifteenth Street, no parking any time.

Mulberry Street, on the north side, from a point 460 feet west of Thirteenth Street to a point 60 feet west thereof, loading zone.

Mulberry Street, on the south side, from Thirteenth Street to a point 300 feet west thereof, no parking any time.

Mulberry Street, on the south side, from a point 415 feet west of Thirteenth Street to a point 50 feet west thereof, loading zone.

Mulberry Street, on the south side, from a point 655 feet west of Thirteenth Street to a point 45 feet west thereof, no parking any time.

Mulberry Street, on the south side, from a point 825 feet west of Thirteenth Street to Fifteenth Street, no parking any time.
(C62, § 30-1329; O.8084; C75, C79, § 27-1359; O.10,042; C91, § 27-2481; O.11,650, 15,140, 15,240, 16,009)

Sec. 114-3513. Murphy Street—Southwest Fifth Street to Southwest Sixteenth Street.

Murphy Street, on the north side, from Southwest Fifth Street to Southwest Ninth Street, no parking any time.

Murphy Street, on the south side, from Southwest Fifth Street to a point 75 feet west thereof, no parking any time.

Murphy Street, on the south side, from Southwest Seventh Street to a point 235 feet west of Southwest Ninth Street, no parking any time.

Murphy Street, on the north side, from Southwest Eleventh Street to Southwest Sixteenth Street, no parking any time.
(C62, § 30-1330; O.8084, 8254; C75, § 27-1360; O.9402; C79, § 27-1360; O.9697; C91, § 27-2482; O.11,650, 11,951, 14,987, 15,858, 16,539)

Sec. 114-3514. Muskogee Avenue—Southwest Thirty-first Street to Southwest Sixty-third Street.

Muskogee Avenue, on the north side, from River Oaks Drive to Southwest Forty-second Street, no parking any time.

Muskogee Avenue, on the north side, from Southwest Fifty-ninth Street to Southwest Sixty-third Street, no parking any time.

Muskogee Avenue, on the south side, from Southwest Sixtieth Street to a point 50 feet east thereof, no parking any time.

Muskogee Avenue, on the south side, from Southwest Sixty-third Street to a point 75 feet east thereof, no parking any time.
(C62, § 30-1331; O.8084, 8210; C75, C79, § 27-1361; O.9849; C91, § 27-2483; O.11,650; C00, § 114-3514; O.14,518 (installed 11/9/10), 16,171)

Sec. 114-3515. Nash Drive—Chautauqua Parkway to Hickman Road.

Nash Drive, on the east side, from Chautauqua Parkway to a point 50 feet north thereof, no parking any time.

Nash Drive, on the west side, from Chautauqua Parkway to Hickman Road, no parking any time.

Nash Drive, on the east side, from a point 50 feet south of Stephenson Way to a point 60 feet north of Stephenson Way, no parking any time.

Nash Drive, on the east side, from Burlington Terrace to a point 50 feet south thereof, no parking any time.

Nash Drive, on the east side, from Hickman Road to a point 110 feet south thereof, no parking any time.

(C62, § 30-1331.01; O.8529; C75, C79, § 27-1361.01; O.10,123; C85, § 27-1361.01; O.11,098; C91, § 27-2484; O.11,650, 14,348, 16,171, 16,283)

Sec. 114-3516. Neola Avenue—East Sixth Street to Pennsylvania Avenue.

Neola Avenue, on both sides, from Pennsylvania Avenue to a point 530 feet west thereof, no parking any time.
(C62, § 30-1332; O.8084; C75, C79, § 27-1362; C91, § 27-2485; O.11,650)

Sec. 114-3517. Nevada Avenue—East Thirteenth Street to York Street.

Nevada Avenue, on the north side, from East Thirteenth Street to York Street, no parking any time.
(C62, § 30-1333; O.8084; C75, C79, § 27-1363; C91, § 27-2486; O.11,650)

Sec. 114-3518. New York Avenue—First Street to Onthank Drive.

New York Avenue, on the south side, from First Street to a point 100 feet west thereof, no parking any time.

New York Avenue, on the north side, from First Street to Second Avenue, no parking any time.

New York Avenue, on the north side, from Second Avenue to a point 30 feet east of Third Street, two-hour parking, 9:00 a.m. to 4:00 p.m.

New York Avenue, on the north side, from a point 160 feet west of Second Avenue to a point 60 feet west thereof, loading zone.

New York Avenue, on the south side, from Second Avenue to a point 50 feet east thereof, no parking any time.

New York Avenue, on the south side, from Second Avenue to a point 80 feet west thereof, no parking any time.

New York Avenue, on the south side, from Third Street to a point 100 feet east thereof, no parking any time.

New York Avenue, on the north side, from Third Street to a point 30 feet east and west thereof, no parking any time.

New York Avenue, on the north side, from 30 feet west of Third Street to a point 140 feet east of Fourth Street, two-hour parking, 9:00 a.m. to 4:00 p.m.

New York Avenue, on the north side, from a point 140 feet east of Fourth Street to a point 70 feet west thereof, commercial loading zone.

New York Avenue, on the north side, from a point 70 feet east of Fourth Street to Fourth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

New York Avenue, on the north side, from Sixth Avenue to Seventh Street, no parking any time.
(C62, § 30-1334; O.8084, 8394, 8767, 8850; C75, C79, § 27-1364; O.9658, 10,402, 10,476, 10,667, 10,695; C85, § 27-1364; O.11,225; C91, § 27-2487; O.11,650, 13,523, 13,724; C00, § 114-3518; O.14,518 (installed 5/22/12), 16,171)

Sec. 114-3519. New York Avenue—Forty-second Street to Sixty-second Street.

New York Avenue, on the north side, from Forty-second Street to Forty-eighth Street, no parking any time.

New York Avenue, on the south side, from Forty-fourth Street to a point 50 feet west thereof, no parking any time.

New York Avenue, on the north side, from Fifty-sixth Street to Merle Hay Road, no parking any time.

New York Avenue, on the south side, from Fifty-sixth Street to a point 50 feet west thereof, no parking any time.

New York Avenue, on the south side, from Fifty-seventh Street to a point 35 feet east of Merle Hay Road, no parking 8:00 a.m. to 1:00 p.m. Sundays.

New York Avenue, on the south side, from a point 35 feet east of Merle Hay Road to Merle Hay Road, no parking any time.

New York Avenue, on the north side, from Merle Hay Road to a point 50 feet west thereof, no parking any time.

New York Avenue, on the south side, from Merle Hay Road to Sixty-second Street, no parking any time.
(C62, § 30-1335; O.8084; C75, C79, § 27-1365; O.9685, 9766, 9886, 10,598; C91, § 27-2488; O.11,650, 11,920; C00, § 114-3519; O.14,518 (installed 11/6/19), 16,171)

Sec. 114-3520. New York Circle—Sixty-seventh Street to dead end east.

New York Circle, on the south side, from Sixty-seventh Street to a point 135 feet east thereof, no parking any time.
(C91, § 27-2488.01; O.11,667)

Sec. 114-3521. East New York Avenue—First Street to Oxford Street.

East New York Avenue, on the north side, from First Street to Oxford Street, no parking any time.
(C62, § 30-1336; O.8084; C75, C79, § 27-1366; C91, § 27-2489; O.11,650)

Sec. 114-3522. Nierob Court—Thirty-sixth Street to dead end.

Nierob Court, on the north side, from Thirty-sixth Street to a point 400 feet west and any part of the cul-de-sac, no parking any time.
(C79, § 27-1366.01; O.9886; C91, § 27-2490; O.11,650)

Sec. 114-3523. North Union Street—Union Park entrance to East Aurora Avenue.

North Union Street, on the east side, from the Union Park entrance to East Aurora Avenue, no parking any time.

North Union Street, on the west side, from Guthrie Avenue to a point 105 feet north thereof, no parking any time.

North Union Street, on the west side, from a point 70 feet south of Arthur Avenue to a point 50 feet north of Arthur Avenue, no parking any time.

North Union Street, on the west side, from a point 50 feet south of Hull Avenue to a point 50 feet north of Hull Avenue, no parking any time.

North Union Street, on the west side, from a point 50 feet south of East Ovid Avenue to East Ovid Avenue, no parking any time.

North Union Street, on both sides, from East Ovid Avenue to East Euclid Avenue, no parking any time.

North Union Street, on the west side, from 50 feet south of East Madison Avenue to 50 feet north of East Madison Avenue, no parking any time.
(C62, § 30-1337; O.8084, 8182; C75, § 27-1367; O.9212; C79, § 27-1367; O.9849, 10,662, 10,706; C85, § 27-1367; O.11,203; C91, § 27-2491; O.11,650; C00, § 114-3523; O.14,087, 14,132, 14,518 (installed 2/9/18), 16,171)

Sec. 114-3524. North Valley Drive—Southwest Fifty-sixth Street to Southwest Fifty-ninth Street.

North Valley Drive, on the south side, from Southwest Fifty-sixth Street to the south end of the Walnut Creek Bridge, no parking any time.

North Valley Drive, on the north side, from the north end of the Walnut Creek Bridge to Southwest Fifty-ninth Street, no parking any time.
(C79, § 27-1367.01; O.9849; C91, § 27-2492; O.11,650, 15,207)

Sec. 114-3525. North Waterbury Road—Fifty-sixth Street to Sixtieth Place.

North Waterbury Road, on the north side, from Fifty-sixth Street to a point 100 feet west thereof, no parking any time.
(C62, § 30-1338; O.8084; C75, C79, § 27-1368; C91, § 27-2493; O.11,650)

Sec. 114-3526. Northwest Drive—Beaver Avenue to dead end west of Sixty-second Street.

Northwest Drive, on the south side, from Beaver Avenue to Forty-fourth Street, no parking any time.

Northwest Drive, on the north side, from Forty-first Street to a point 100 feet east thereof, no parking any time.

Northwest Drive, on the north side, from Forty-first Street to a point 50 feet west thereof, no parking any time.

Northwest Drive, on the south side, from Fifty-sixth Street to Fifty-seventh Place, no parking any time.

Northwest Drive, on the south side, from Merle Hay Road to a point 110 feet west of Sixty-second Street, no parking any time.

Northwest Drive, on the north side, from a point 50 feet east of Sixtieth Street to a point 50 feet west of Sixtieth Street, no parking any time.
(C62, § 30-1339; O.8084; C75, C79, § 27-1369; O.9685, 9886; C91, § 27-2494; O.11,650, 13,474, 13,958, 14,518 (installed 7/20/11), 16,171)

Sec. 114-3527. Northwood Drive—Terrace Road to Gilmore Street.

Northwood Drive, on the east side, from Terrace Road to Gilmore Street, no parking any time.
(C62, § 30-1340; O.8084; C75, C79, § 27-1370; C91, § 27-2495; O.11,650)

Sec. 114-3528. Norton Avenue—Thirteenth Street to Fourteenth Street.

Norton Avenue, on the north side, from Thirteenth Street to Fourteenth Street, no parking any time.
(C62, § 30-1341; O.8084; C75, C79, § 27-1371; O.10,598, 10,638; C91, § 27-2496; O.11,650)

Sec. 114-3529. Oak Forest Drive—Southwest Forty-second Street to dead end east.

Oak Forest Drive, on the south side, from Southwest Forty-second Street to a point 800 feet east thereof, no parking any time.
(C79, § 27-1371.01; O.9849; C91, § 27-2497; O.11,650)

Sec. 114-3530. Oaklyn Drive—Brinkwood Road to Skyline Drive.

Oaklyn Drive, on the west side, from Brinkwood Road to Skyline Drive, no parking any time.

Oaklyn Drive, on the east side, from Lower Beaver Road to a point 60 feet north thereof, no parking any time.

Oaklyn Drive, on the east side, from Skyline Drive to a point 60 feet south thereof, no parking any time.
(C79, § 27-1371.02; O.9849; C91, § 27-2498; O.11,650, 14,322, 14,518 (installed 1/22/19), 16,171, 16,352)

Sec. 114-3531. Oak Park Avenue—Sixth Avenue to Sixteenth Street.

Oak Park Avenue, on the north side, from Sixth Avenue to a point 150 feet west thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

Oak Park Avenue, on the south side, from Sixth Avenue to Eighth Street, no parking any time.

Oak Park Avenue, on the south side, from a point 265 feet west of Ninth Street to Sixteenth Street, no parking any time.
(C62, § 30-1342; O.8084, 8349, 8922; C75, § 27-1372; O.9012; C79, § 27-1372; O.10,123; C91, § 27-2499; O.11,650, 15,807)

Sec. 114-3532. East Oak Park Avenue—East Twelfth Street to East Thirtieth Street.

East Oak Park Avenue, on the north side, from a point 50 feet west of York Street to a point 50 feet east of York Street, no parking any time.

East Oak Park Avenue, on the north side, from East Twelfth Street to a point 50 feet east thereof, no parking any time.

East Oak Park Avenue, on the south side, from East Twelfth Street to East Fourteenth Street, no parking any time.

East Oak Park Avenue, on the north side, from East Fourteenth Street to a point 100 feet west thereof, no parking any time.

East Oak Park Avenue, on the north side, from East Thirtieth Street to a point 370 feet west thereof, no parking any time.
(C62, § 30-1343; O.8084, 8615; C75, C79, § 27-1373; O.9685, 9983, 10,692, 10,706; C85, § 27-1373; O.10,747; C91, § 27-2500; O.11,650)

Sec. 114-3533. Oakcrest Drive—Euclid Avenue to dead end north of Euclid Avenue.

Oakcrest Drive, on the east side, from Euclid Avenue to a point 300 feet north thereof and on any part of the cul-de-sac, no parking any time.

Oakcrest Drive, on the west side, from Euclid Avenue to a point 50 feet north thereof, no parking any time.
(C62, § 30-1341.01; O.8310, 8387; C75, C79, § 27-1373.01; C91, § 27-2501; O.11,650)

Sec. 114-3534. Oakridge Drive—Keosauqua Way to Fifteenth Street.

Oakridge Drive, on the north side, from a point 280 feet west of Keosauqua Way to Fifteenth Street, no parking 10:00 p.m. to 7:00 a.m.

Oakridge Drive, on the north side, from Keosauqua Way to a point 280 feet west thereof, no parking any time.

Oakridge Drive, on the south side, from Keosauqua Way to Fifteenth Street, no parking any time.
(C91, § 27-2501.05; O.11,892, 14,506)

Sec. 114-3535. Oakshire Road—Lynner Drive to Sherwood Drive.

Oakshire Road, on the east side, from Lynner Drive to Sherwood Drive, no parking any time.
(C79, § 27-1373.02; O.9849; C91, § 27-2502; O.11,650)

Sec. 114-3536. Ohio Street—University Avenue to Franklin Avenue.

Ohio Street, on the east side, from University Avenue to a point 75 feet north thereof, no parking any time.

Ohio Street, on the east side, from Indiana Avenue to a point 230 feet south thereof, no parking any time.

Ohio Street, on the east side, from Clark Street to a point 60 feet north thereof, no parking any time.

Ohio Street, on the east side, from College Avenue to a point 50 feet south thereof, no parking any time.

Ohio Street, on the east side, from a point 105 feet south of College Avenue to a point 120 feet south thereof, no parking any time.

Ohio Street, on the west side, from University Avenue to Franklin Avenue, no parking any time.
(C62, § 30-1344; O.8084, 8298, 8387; C75, § 27-1374; O.8970; C79, C85, § 27-1374; O.10,774, 11,412; C91, § 27-2503; O.11,650, 13,613; C00, § 114-3536; O.14,518 (installed 10/11/17), 16,171)

Sec. 114-3537. Olinda Avenue—South Union Street to Southwest Ninth Street.

Olinda Avenue, on the north side, from South Union Street to a point 50 feet west thereof, no parking any time.

Olinda Avenue, on the south side, from South Union Street to Southwest Ninth Street, no parking any time.

Olinda Avenue, on the north side, from Southwest Ninth Street to a point 50 feet east thereof, no parking any time.
(C62, § 30-1345; O.8084; C75, C79, § 27-1375; O.10,598; C85, § 27-1375; O.10,890; C91, § 27-2504; O.11,650)

Sec. 114-3538. East Olinda Avenue—South Union Street to Indianola Avenue.

East Olinda Avenue, on the north side, from South Union Street to a point 50 feet east thereof, no parking any time.

East Olinda Avenue, on the north side, from Indianola Avenue to a point 60 feet west thereof, no parking any time.

East Olinda Avenue, on the south side, from South Union Street to Indianola Avenue, no parking any time.
(C79, § 27-1375.01; O.10,111, 10,498; C91, § 27-2505; O.11,650, 13,640)

Sec. 114-3538.01. Oneida Point—Southwest Thirty-seventh Street to Southwest Thirty-eighth Place.

Oneida Point, on the north side, from Southwest Thirty-seventh Street west to and including the cul-de-sac, no parking any time.
(O.14,139)

Sec. 114-3539. Olive Avenue—Seventeenth Street to Twenty-fourth Street.

Olive Avenue, on the south side, from Seventeenth Street to a point 100 feet west of Cottage Grove Avenue, no parking any time.

Olive Avenue, on the north side, from Twentieth Street to a point 50 feet east thereof, commercial loading zone.

Olive Avenue, on the south side, from Twenty-third Street to a point 50 feet west thereof, no parking any time.

Olive Avenue, on the north side, from Cottage Grove Avenue to Twenty-fourth Street, no parking any time.
(C62, § 30-1346; O.8084, 8109; C75, § 27-1376; O.9267, 9290; C79, § 27-1376; O.10,123, 10,575; C91, § 27-2506; O.11,650; C00, § 114-3539; O.14,518 (installed 12/7/05), 16,171)

Sec. 114-3540. Osceola Avenue—East Ninth Street to East Forty-first Street.

Osceola Avenue, on the north side, from East Ninth Street to East Twelfth Street, no parking any time.

Osceola Avenue, on the south side, from 155 feet east of East Ninth Street to East Twelfth Street, no parking any time.

Osceola Avenue, on the south side, from East Fourteenth Street to a point 50 feet east thereof, no parking any time.

Osceola Avenue, on the north side, from East Fourteenth Street to Glenbrook Drive, no parking any time.

Osceola Avenue, on the south side, from East Fortieth Street to East Forty-first Street, no parking any time.
(C62, § 30-1346.01; O.8878; C75, C79, § 27-1376.01; O.9685, 10,123, 10,598; C91, § 27-2507; O.11,650, 15,670, 15,736)

Sec. 114-3541. Orchard Avenue—Arlington Avenue to Fifth Avenue.

Orchard Avenue, on both sides, from Arlington Avenue to Fourth Street, no parking any time.

Orchard Avenue, on the north side, from Fourth Street to Fifth Avenue, no parking any time.
(C75, § 27-1376.02; O.9461; C79, § 27-1376.02; O.10,402; C91, § 27-2508; O.11,650)

Sec. 114-3542. Orchard Lane—Ravina Drive to dead end south.

Orchard Lane, on the west side, from Ravina Drive to a point 300 feet south thereof, no parking any time.
(C79, § 27-1376.03; O.10,123; C91, § 27-2509; O.11,650)

Sec. 114-3543. Ovid Avenue—First Street to Merle Hay Road.

Ovid Avenue, on the north side, from Second Avenue to a point 75 feet west thereof, no parking any time.

Ovid Avenue, on the south side, from First Street to Eighth Street, no parking any time.

Ovid Avenue, on the north side, from Fourth Street to a point 100 feet west thereof, no parking any time.

Ovid Avenue, on the north side, from Sixth Avenue to a point 50 feet east thereof, no parking any time.

Ovid Avenue, on the north side, from Sixth Avenue to a point 50 feet west thereof, no parking any time.

Ovid Avenue, on both sides, from Twelfth Street to Fourteenth Street, no parking any time.

Ovid Avenue, on the south side, from a point 350 feet east of Fortieth Place to Beaver Avenue, no parking any time.

Ovid Avenue, on the north side, from Beaver Avenue to Forty-seventh Street, no parking any time.

Ovid Avenue, on the south side, from a point 75 feet east of Forty-seventh Street to Forty-seventh Street, no parking any time.

Ovid Avenue, on the north side, from Fiftieth Street to Merle Hay Road, no parking any time.

Ovid Avenue, on the south side, from a point 45 feet east of Fifty-third Street to a point 55 feet west of Fifty-third Street, no parking any time.

Ovid Avenue, on the south side, from Merle Hay Road to a point 100 feet east thereof, no parking any time.
(C62, § 30-1347; O.8084, 8478, 8655, 8670; C75, § 27-1377; O.8998, 9356; C79, § 27-1377; O.9685, 9886, 10,123, 10,402, 10,549; C85, § 27-1377; O.10,992; C91, § 27-2510; O.11,650, 11,955; C00, § 114-3543; O.14,518 (installed 3/4/10, 02/08/21), 16,171, 16,250)

Sec. 114-3544. East Ovid Avenue—First Street to East Forty-second Street.

East Ovid Avenue, on the south side, from First Street to East Fourteenth Street, no parking any time.

East Ovid Avenue, on the north side, from Cambridge Street to Cornell Street, no parking 7:00 a.m. to 5:00 p.m. school days.

East Ovid Avenue, on the north side, from Cornell Street to a point 60 feet east thereof, no parking any time.

East Ovid Avenue, on the north side, from East Eighth Street to a point 50 feet east thereof, no parking any time.

East Ovid Avenue, on the south side, from East Fourteenth Street to a point 50 feet east thereof, no parking any time.

East Ovid Avenue, on the north side, from a point 80 feet west of East Fourteenth Street to East Fifteenth Street, no parking any time.

East Ovid Avenue, on the south side, from Delaware Avenue to a point 1,420 feet east thereof, no parking any time.

East Ovid Avenue, on the north side, from Delaware Avenue to a point 100 feet east thereof, no parking any time.

East Ovid Avenue, on the south side, from East Twenty-fifth Street to East Twenty-fifth Court, no parking any time.

East Ovid Avenue, on the south side, from East Twenty-ninth Street to a point 600 feet east of East Thirty-second Street, no parking any time.

East Ovid Avenue, on the north side, from East Thirty-fifth Street to a point 100 feet east thereof, no parking any time.

East Ovid Avenue, on the south side, from East Thirty-fifth Street to a point 50 feet east of East Thirty-eighth Street, no parking any time.

East Ovid Avenue, on the north side, from East Thirty-eighth Street to East Forty-first Street, no parking any time.

East Ovid Avenue, on the north side, from East Forty-second Street to a point 60 feet west thereof, no parking any time.

East Ovid Avenue, on the south side, from East Forty-first Street to East Forty-second Street, no parking any time.
(C62, § 30-1348; O.8084, 8124, 8478, 8730, 8825, 8850, 8878; C75, § 27-1378; O.9593; C79, § 27-1378; O.9685, 9994, 10,292, 10,598; C91, § 27-2511; O.11,650, C00, § 114-3544; O.14,354, 14,518 (installed 3/18/08, 12/18/08), 16,171)

Sec. 114-3544.5. East Ovid Avenue—East Forty-second Street to east city limits.

East Ovid Avenue, on the north side, from East Forty-second Street to east Forty-third Street, no parking any time.

East Ovid Avenue, on the north side, from East Forty-eighth Street to Park Side Drive, no parking any time.
(C00, § 114-3544.5; O.14,861, 14,862)

Sec. 114-3545. Oxford Street—Guthrie Avenue to East Aurora Avenue.

Oxford Street, on the west side, from Watson Avenue to Holcomb Avenue, no parking any time.

Oxford Street, on the east side, from Guthrie Avenue to a point 140 feet north of Hull Avenue, no parking any time.

Oxford Street, on the west side, from East Sheridan Avenue to New York Avenue, no parking 7:00 a.m. to 6:00 p.m., Monday through Friday.

Oxford Street, on the west side, from Hull Avenue to a point 75 feet north thereof, no parking any time.

Oxford Street, on the east side, from a point 140 feet north of Hull Avenue to a point 210 feet north thereof, bus loading and unloading 7:00 a.m. to 5:00 p.m., school days.

Oxford Street, on the east side, from a point 350 feet north of Hull Avenue to Tiffin Avenue, passenger loading and unloading 7:00 a.m. to 5:00 p.m., school days.

Oxford Street, on the east side, from a point 390 feet north of Hull Avenue to a point 75 feet north of East Douglas Avenue, no parking any time.

Oxford Street, on the west side, from East Euclid Avenue to a point 50 feet south thereof, no parking any time.

Oxford Street, on the west side, from East Euclid Avenue to East Aurora Avenue, no parking any time.

Oxford Street, on the east side, from East Madison Avenue to a point 50 feet south thereof, no parking any time.
(C62, § 30-1349; O.8084, 8453; C75, § 27-1379; O.9219; C79, § 27-1379; O.9693, 9849, 10,260, 10,476, 10,598; C85, § 27-1379; O.11,248; C91, § 27-2512; O.11,650, 11,712, 11,810, 13,534)

Sec. 114-3545.5. Palm Avenue—Beaver Avenue to Bel-Aire Road.

Palm Avenue, on the south side, from Beaver Avenue to a point 185 feet west thereof, no parking any time.

Palm Avenue, on the north side, from Beaver Avenue to Bel-Aire Road, no parking any time.
(O.14,634)

Sec. 114-3546. Palmer Place—Courtland Drive to dead end west of Palmer Place.

Palmer Place, on the north side, from Courtland Drive to a point 350 feet west thereof, no parking any time.

Palmer Place, on the south side, from Courtland Drive to a point 50 feet west thereof, no parking any time.
(C75, § 27-1379.01; O.9429; C85, § 27-1379.01; O.11,237; C91, § 27-2513; O.11,650)

Sec. 114-3547. Park Avenue—South Union Street to Southwest Ninth Street.

Park Avenue, on the north side, from South Union Street to Southwest Seventh Street, no parking any time.

Park Avenue, on the north side, from Southwest Seventh Street to a point 40 feet west thereof, no parking any time.

Park Avenue, on the north side, from a point 40 feet west of Southwest Seventh Street to a point 330 feet west thereof, school passenger loading and unloading, 7:00 a.m. to 5:00 p.m. school days.

Park Avenue, on the north side, from a point 370 feet west of Southwest Seventh Street to a point 90 feet west thereof, no parking any time.

Park Avenue, on the north side, from a point 460 feet west of Southwest Seventh Street to a point 150 feet west thereof, bus loading and unloading.

Park Avenue, on the north side, from a point 610 feet west of Southwest Seventh Street to Southwest Ninth Street, no stopping or standing.

Park Avenue, on the south side, from South Union Street to Southwest Ninth Street, no stopping or standing.
(C62, § 30-1350; O.8084, 8283; C75, § 27-1380; O.9374; C79, § 27-1380; O.9693; C91, § 27-2514; O.11,650, 15,836)

Sec. 114-3548. Park Avenue—Southwest Ninth Street to Fleur Drive.

Park Avenue, on both sides, from Southwest Ninth Street to Fleur Drive, no parking any time.
(C62, § 30-1351; O.8084, 8283; C75, C79, § 27-1381; C91, § 27-2515; O.11,650)

Sec. 114-3549. Park Avenue—Fleur Drive to Southwest Sixty-third Street.

Park Avenue, on both sides, from Fleur Drive to Southwest Twenty-fourth Street, no parking any time.

Park Avenue, on the south side, from Southwest Twenty-fourth Street to a point 200 feet west of Southwest Twenty-eighth Street, no stopping or standing.

Park Avenue, on the north side, from Southwest Twenty-fourth Street to a point 400 feet east of Southwest Twenty-eighth Street, no stopping or standing.

Park Avenue, on the north side, from a point 400 feet east of Southwest Twenty-eighth Street to a point 100 feet west of Southwest Twenty-eighth Street, school bus loading and unloading, 7:00 a.m. to 5:00 p.m. school days.

Park Avenue, on the north side, from a point 100 feet west of Southwest Twenty-eighth Street to a point 100 feet west thereof, no stopping or standing.

Park Avenue, on both sides, from a point 200 feet west of Southwest Twenty-eighth Street to Southwest Sixty-third Street, no parking any time.
(C62, § 30-1352; O.8084, 8283, 8870; C75, C79, § 27-1382; C91, § 27-2516; O.11,650, 15,035, 16,250)

Sec. 114-3550. East Park Avenue—South Union Street to dead end east of Southeast Twenty-fifth Street.

East Park Avenue, on both sides, from South Union Street to Southeast Eighth Street, no parking any time.

East Park Avenue, on the north side, from Southeast Eighth Street to Indianola Avenue, no stopping or standing.

East Park Avenue, on the south side, from Southeast Eighth Street to a point 540 feet east thereof, no parking any time.

East Park Avenue, on the south side, from a point 540 feet east of Southeast Eighth Street to a point 115 feet east thereof, bus loading and unloading 7:00 a.m. to 5:00 p.m. school days.

East Park Avenue, on the south side, from a point 655 feet east of Southeast Eighth Street to Indianola Avenue, no parking any time.

East Park Avenue, on the south side, from Indianola Avenue to a point 300 feet west of Southeast Twenty-second Street, no parking any time.

East Park Avenue, on the south side, from a point 210 feet west of Southeast Twenty-second Street to a point 35 feet east thereof, handicap parking.

East Park Avenue, on the south side, from a point 130 feet west of Southeast Twenty-second Street to Southeast Twenty-second Street, no parking anytime.

East Park Avenue, on the north side, from Indianola Avenue to a point 200 feet east of Southeast Fourteenth Street, no parking any time.

East Park Avenue, on the south side, from Southeast Twenty-second Street to the dead end east of Southeast Twenty-fifth Street, no parking any time.
(C62, § 30-1353; O.8084, 8283, 8743; C75, C79, § 27-1383; O.10,535, 10,575; C91, § 27-2517; O.11,650, 11,760, 13,973, 14,057, 16,352)

Sec. 114-3551. Park Place—Terrace Road to Forest Drive.

Park Place, on the east and north side, from Terrace Road to Forest Drive, no parking any time.
(C79, § 27-1383.01; O.10,141, 10,207; C91, § 27-2518; O.11,650)

Sec. 114-3552. Park Street—Second Avenue to Fourth Street.

Park Street, on the south side, from Third Street to a point 20 feet east of Fourth Street, no parking 7:00 a.m. to 9:00 a.m.

Park Street, on the north side, from Third Street to Fourth Street, no parking any time.

Park Street, on the south side, from Fourth Street to a point 20 feet east thereof, no parking any time.
(C62, § 30-1354; O.8084; C75, C79, § 27-1384; C91, § 27-2519; O.11,650, 12,096, 14,110, 14,336)

Sec. 114-3553. Park Street—Fourth Street to Fifth Avenue.

Park Street, on the north side, from Fourth Street to Fifth Avenue, no parking any time.

Park Street, on the south side, from Fourth Street to a point 35 feet west thereof, no parking any time.
(C62, § 30-1355; O.8084; C75, C79, C85, § 27-1385; O.11,203; C91, § 27-2520; O.11,650, 14,110, 14,336, 15,803)

Sec. 114-3554. Park Street—Fifth Avenue to Sixth Avenue.

Park Street, on the north side, from Fifth Avenue to Sixth Avenue, no parking any time.
(C62, § 30-1356; O.8084; C75, § 27-1386; O.9292; C79, § 27-1386; O.10,035; C91, § 27-2521; O.11,650, 14,110)

Sec. 114-3555. Park Street—Sixth Avenue to Seventh Street.

Park Street, on the north side, from Sixth Avenue to a point 190 feet west thereof, no parking any time.

Park Street, on the north side, from a point 190 feet west of Sixth Avenue to a point 40 feet west thereof, commercial loading zone.

Park Street, on the north side, from Seventh Street to a point 55 feet east thereof, no parking any time.
(C62, § 30-1357; O.8084; C75, C79, C85, § 27-1387; O.10,897; C91, § 27-2522; O.11,650, 11,688, 13,077, 16,462)

Sec. 114-3556. Park Street—Seventh Street to Eighth Street.

Park Street, on the north side, from Eighth Street to a point 235 feet to the east, no parking any time.

Park Street, on the south side, from Seventh Street to a point 215 feet west thereof, no parking any time.

Park Street, on the south side, from a point 215 feet west of Seventh Street to a point 115 feet west thereof, passenger loading and unloading, 7:00 a.m. to 6:00 p.m., 20 minutes only.

Park Street, on the south side, from a point 330 feet west of Seventh Street to Eighth Street, no parking any time.
(C62, § 30-1358; O.8084; C75, O.9292; C79, § 27-1388; C91, § 27-2523; O.11,650, 12,042, 15,165, 15,172, 15,415)

Sec. 114-3557. Park Street—Eighth Street to Eighth Place.

Park Street, on both sides, from Eighth Street to Eighth Place, no parking any time.
(C62, § 30-1359; O.8084, 8416; C75, § 27-1389; O.8974; C79, C85, § 27-1389; O.11,522; C91, § 27-2524; O.11,650, 12,042)

Sec. 114-3558. Park Hill Drive—Glenview Drive to Foster Drive.

Park Hill Drive, on the north side, from Glenview Drive to Foster Drive, no parking any time.
(C62, § 30-1353.01; O.8355; C75, C79, § 27-1390.01; C91, § 27-2526; O.11,650)

Sec. 114-3559. Park Plaza Drive—Willowmere Drive to Park Avenue.

Park Plaza Drive, on the east side, from Willowmere Drive to Park Avenue, no parking any time.
(C79, § 27-1390.011; O.10,111; C91, § 27-2527; O.11,650)

Sec. 114-3559.5. Park Side Drive—Brook Run Drive to dead end north of East Ovid Avenue.

Park Side Drive, on the west side, from Brook Run Drive to the dead end north of East Ovid Avenue, no parking any time.
(O.14,862)

Sec. 114-3560. Parklawn Drive—Southwest Forty-second Street to dead end west of Southwest Forty-fourth Place.

Parklawn Drive, on the north side, from Southwest Forty-second Street to a point 530 feet west of Southwest Forty-fourth Street, no parking any time.
(C79, § 27-1390.012; O.10,207; C91, § 27-2528; O.11,650)

Sec. 114-3561. Parmer Drive—Fairlane Drive to cul-de-sac east of East First Court.

Parmer Drive, on the south side, from Fairlane Drive to a point 300 feet east of Southeast First Court and any part of the cul-de-sac, no parking any time.

Parmer Drive, on the south and west side within the cul-de-sac at Fairlane Drive, no parking Thursday 8:00 a.m. to 4:00 p.m.
(C62, § 30-1360.01; O.8433; C75, C79, § 27-1390.02; O.10,111; C91, § 27-2529; O.11,650, 14,634)

Sec. 114-3562. Payne Road—Martin Luther King Jr Parkway to Thirtieth Street.

Payne Road, on the south side, from Martin Luther King Jr Parkway to Thirtieth Street, no parking any time.

Payne Road, on the north side, from Martin Luther King Jr Parkway to Twenty-fifth Street, no parking any time.

Payne Road, on the north side, from Twenty-seventh Street to Thirtieth Street, no parking any time.
(C62, § 30-1362; O.8084; C75, § 27-1392; O.9004, 9021; C79, § 27-1392; C91, § 27-2530; O.11,650, 11,935)

Sec. 114-3563. Payton Avenue—South Union Street to Fleur Drive.

Payton Avenue, on the south side, from South Union Street to Fleur Drive, no parking any time.

Payton Avenue, on the north side, from Southwest Eighth Street to a point 75 feet west of Southwest Ninth Street, no parking any time.

Payton Avenue, on the north side, from a point 75 feet east of Southwest Twelfth Street to a point 75 feet west of Southwest Twelfth Street, no parking any time.

Payton Avenue, on the north side, from Southwest Fourteenth Street to a point 75 feet east thereof, no parking any time.

Payton Avenue, on the north side, from Fleur Drive to a point 100 feet east thereof, no parking any time.
(C62, § 30-1363; O.8084, 8389, 8595, 8683, 8732, 8776; C75, § 27-1393; O.8970; C79, § 27-1393; O.9649, 9719, 9855, 10,532; C85, § 27-1393; O.10,929; C91, § 27-2531; O.11,650)

Sec. 114-3564. East Payton Avenue—South Union Street to east city limits.

East Payton Avenue, on the north side, from South Union Street to a point 50 feet east thereof, no parking any time.

East Payton Avenue, on the south side, from South Union Street to Southeast Fifth Street, no parking any time.

East Payton Avenue, on the north side, from a point 50 feet west of Southeast Third Street to a point 50 feet east of Southeast Third Street, no parking any time.
(C79, § 27-1393.01; O.9849; C91, § 27-2532; O.11,650, 14,518 (installed 10/21/19), 14,812, 16,171, 16,393)

Sec. 114-3565. Pennsylvania Avenue—East Locust Street to East University Avenue.

Pennsylvania Avenue, on the west side, from East Locust Street to East Grand Avenue, no parking any time.

Pennsylvania Avenue, on the west side, from Des Moines Street to Buchanan Street, no parking any time.

Pennsylvania Avenue, on the east side, from East Locust Street to East University Avenue, no parking any time.

Pennsylvania Avenue, on the west side, from Buchanan Street to East University Avenue, no parking 7:00 a.m. to 9:00 a.m.
(C62, § 30-1364; O.8084, 8501; C75, § 27-1394; O.9292, 9331; C79, § 27-1394; O.10,035; C85, § 27-1394; O.10,897; C91, § 27-2533; O.11,650, 11,891, 15,963)

Sec. 114-3566. Pennsylvania Avenue—East University Avenue to a point 170 feet north of Cherokee Avenue.

Pennsylvania Avenue, on the west side, from East University Avenue to Neola Avenue, no parking any time.

Pennsylvania Avenue, on the west side, from Neola Avenue to a point 170 feet north of Cherokee Avenue, no parking 7:00 a.m. to 6:00 p.m., Monday through Friday.

Pennsylvania Avenue, on the east side, from East University Avenue to a point 170 feet north of Cherokee Avenue, no parking any time.
(C62, § 30-1365; O.8084; C75, C79, § 27-1395; O.10,095; C91, § 27-2534; O.11,650)

Sec. 114-3567. East Philip Street—South Union Street to dead end.

East Philip Street, on the north side, from South Union Street to Southeast Third Court, no parking any time.

East Philip Street, on the south side, from Southeast Tenth Street to Southeast Thirteenth Street, no parking any time.

East Philip Street, on the south side, from Southeast Twenty-second Street to Southeast Twenty-third Street, no parking any time.

East Philip Street, on the north side, from Southeast Twenty-third Court to Southeast Twenty-fourth Street, no parking any time.

East Philip Street, on the north side, from Southeast Thirty-fourth Street to the dead end east of Southeast Thirty-fifth Court, no parking any time.
(C75, § 27-1395.01; O.9238; C79, § 27-1395.01; O.9886; C91, § 27-2535; O.11,650, 13,029, 13,239, 13,954, 15,563, 15,780)

Sec. 114-3568. Philip Street—South Union Street to Southwest Ninth Street.

Philip Street, on the south side, from South Union Street to Southwest Ninth Street, no parking any time.

Philip Street, on the north side, from Southwest Ninth Street to a point 50 feet east thereof, no parking any time.
(C75, § 27-1395.02; O.9503, 10,598; C91, § 27-2536; O.11,650)

Sec. 114-3569. Reserved.

Editor's note—Ord. No. 14,855, § 1, adopted May 18, 2009, repealed § 114-3569, which pertained to Pine Street—Filmore Street to East University Avenue and derived from Code 1962, § 30-1366; Ord. No. 8084; Code 1975; Code 1979, § 27-1396; Code 1991, § 27-2537; Ord. No. 11,650.

Sec. 114-3569.01. East Pine Avenue—Indianola Avenue to east city limits.

East Pine Avenue, on both sides, from Indianola Avenue to the dead end east of Southeast Forty-fifth Street, no parking any time.
(O.15,397, 15,992)

Sec. 114-3570. Pioneer Road—Indianola Avenue to Pioneer Park.

Pioneer Road, on the south side, from Indianola Avenue to Southeast Sixth Street, no parking any time.

Pioneer Road, on the north side, from Indianola Avenue to a point 75 feet east, no parking any time.

Pioneer Road, on the north side, from Southwest Sixth Street to a point 50 feet west thereof, no parking any time.

Pioneer Road, on the north side, from Southeast Sixth Street to Pioneer Park, no parking any time.

Pioneer Road, on the north side, from Southeast Sixth Street to a point 35 feet west thereof, no parking any time.

Pioneer Road, on the south side, from Southeast Sixth Street to a point 50 feet east thereof, no parking any time.

Pioneer Road, on the south side, from a point 60 feet west of Southeast Eighth Court to a point 90 feet east of Southeast Eighth Court, no parking any time.

Pioneer Road, on the south side, from a point 50 feet west of Southeast Fourteenth Street to Pioneer Park, no parking any time.
(C62, § 30-1367; O.8084, 8491, 8706, 8832, 8867; C75, § 27-1397; O.8979, 8984; C79, § 27-1397; O.10,057, 10,598; C91, § 27-2538; O.11,650, 13,474, 13,516, 14,339, 16,515)

Sec. 114-3571. Plainview Drive—Fortieth Street to Forty-second Street.

Plainview Drive, on the north side, from Fortieth Street to Forty-second Street, no parking any time.

Plainview Drive, on the north side, from Forty-second Street to a point 75 feet east thereof, no parking any time.
(C62, § 30-1367.01; O.8100; C75, § 27-1398; O.9405; C79, § 27-1398; C91, § 27-2539; O.11,650)

Sec. 114-3572. Pleasant Drive—Fifty-sixth Street to Sixty-third Street.

Pleasant Drive, on the north side, from Fifty-sixth Street to a point 50 feet west thereof, no parking any time.

Pleasant Drive, on the south side, from Fifty-sixth Street to Sixty-third Street, no parking any time.

Pleasant Drive, on the north side, from Cummins Parkway to a point 370 feet east thereof, no parking any time.

Pleasant Drive, on the north side, from a point 235 feet west of Sixty-first Street to Sixty-second Street, no parking any time.

Pleasant Drive, on the north side, from Sixty-second Place to Sixty-third Street, no parking any time.
(C62, § 30-1368; O.8084, 8210; C75, C79, § 27-1399; O.9849; C91, § 27-2540; O.11,650, 13,295, 14,832, 14,851, 15,453, 16,174)

Sec. 114-3573. Reserved.

Editor's note—Ord. No. 13,828, adopted June 5, 2000, repealed § 114-3573 which pertained to Pleasant Street—Eighth Street to Ninth Street, and derived from Code 1962, § 30-1369; Ord. No. 8084; Code 1975, § 27-1400; Ord. No. 9100; Code 1979, § 27-1400; Ord. No. 10,057; Code 1985,

§ 27-1400; Ord. No. 10,947; Ord. No. 10,999; Code 1991, § 27-2541; Ord. No. 11,650; Ord. No. 13,593; and Ord. No. 13,705.

Sec. 114-3574. Pleasant Street—Ninth Street to Tenth Street.

Pleasant Street, on the south side, from Tenth Street to a point 60 feet east thereof, no parking any time.
(C62, § 30-1370; O.8084, 8731, 8905; C75, § 27-1401; O.9139; C79, § 27-1401; O.10,057; C85, § 27-1401; O.10,947, 11,381; C91, § 27-2542; O.11,650, 12,096, 14,015, 15,920)

Sec. 114-3575. Pleasant Street—Tenth Street to Martin Luther King Jr Parkway.

Pleasant Street, on the north side, from Tenth Street to a point 85 feet west thereof, no parking any time.

Pleasant Street, on the south side, from Tenth Street to a point 140 feet west thereof, no parking any time.

Pleasant Street, on the west side, from a point 230 feet west of Tenth Street to a point 270 feet north thereof, no parking any time.

Pleasant Street, on the south side, from Fourteenth Place to a point 50 feet west of Fifteenth Street, no parking any time.

Pleasant Street, on the north side, from Fourteenth Place to Fifteenth Street, no parking any time.

Pleasant Street, on both sides, from a point 50 feet east of Sixteenth Street to a point 50 feet west of Sixteenth Street, no parking any time.

Pleasant Street, on the north side, from a point 160 feet west of Sixteenth Street to a point 25 feet west thereof, no parking any time.

Pleasant Street, on both sides, from a point 50 feet east of Seventeenth Street to a point 50 feet west of Seventeenth Street, no parking any time.

Pleasant Street, on the south side, from a point 130 feet east of Seventeenth Street to a point 40 feet east thereof, commercial loading zone.

Pleasant Street, on the south side, from a point 170 feet west of Seventeenth Street to a point 30 feet west thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in subsection 114-616(a) of this chapter.

Pleasant Street, on both sides, from a point 50 feet east of Eighteenth Street to a point 50 feet west of Eighteenth Street, no parking any time.

Pleasant Street, on the north side, from Nineteenth Street to a point 50 feet east thereof, no parking any time.

Pleasant Street, on the south side, from Nineteenth Street to a point 50 feet east, no parking any time.

Pleasant Street, on the south side, from Twentieth Street to Martin Luther King Jr Parkway, no parking any time.
(C62, § 30-1371; O.8084, 8233, 8278, 8433, 8825, 8915; C75, § 27-1402; O.9349, 9387, 9581; C79, § 27-1402; O.10,035, 10,057, 10,123, 10,540; C85, § 27-1402; O.10,768, 11,516; C91, § 27-2543; O.11,650, 11,935; C00, § 114-3575; O.14,518 (installed 2/23/12), 15,226, 16,171)

Sec. 114-3576. Pleasant Street—Twenty-fourth Street to Fifty-second Street.

Pleasant Street, on the south side, from Twenty-fourth Street to Twenty-eighth Street, no parking any time.

Pleasant Street, on the south side, from Thirty-first Street to Thirty-sixth Street, no parking any time.

Pleasant Street, on the north side, from Thirty-first Street to a point 50 feet west thereof, no parking any time.

Pleasant Street, on the north side, from a point 50 feet east of Thirty-fifth Street to Thirty-fifth Street, no parking any time.

Pleasant Street, on the north side, from Thirty-sixth Street to a point 50 feet east thereof, no parking any time.

Pleasant Street, on the north side, from Thirty-ninth Street to Forty-second Street, no parking any time.

Pleasant Street, on the south side, from Forty-second Street to a point 180 feet east thereof, no parking any time.

Pleasant Street, on the south side, from Forty-fourth Street to a point 100 feet east thereof, no parking any time.

Pleasant Street, on the north side, from Forty-fourth Street to Bradway Place, no parking any time.

Pleasant Street, on the north side, from Polk Boulevard to a point 50 feet west thereof, no parking any time.

Pleasant Street, on the south side, from Polk Boulevard to Fifty-second Street, no parking any time.
(C62, § 30-1372; O.8084, 8147, 8394, 8510; C75, § 27-1403; O.9177, 9471; C79, § 27-1403; O.9849, 10,123, 10,342, 10,373, 10,476, 10,575; C85, § 27-1403; O.11,024; C91, § 27-2544; O.11,650, 11,955, 13,130; C00, § 114-3576; O.14,139, 14,518 (installed 5/18/09), 16,171)

Sec. 114-3577. Pleasant View Circle—Southeast Nineteenth Street to dead end west.

Pleasant View Circle, on the south side, from Southeast Nineteenth Street to a point 370 feet west thereof and any part of the cul-de-sac, no parking any time.
(C79, § 27-1403.01; O.10,123; C91, § 27-2545; O.11,650)

Sec. 114-3578. Pleasant View Drive—South Union Street to Southwest Eighteenth Street.

Pleasant View Drive, on the south side, from a point 150 feet east of Southwest Second Street to a point 70 feet west of Southwest Second Street, no parking any time.

Pleasant View Drive, on both sides, from the dead end east of Southwest Fifth Street to a point 60 feet west thereof, no parking any time.

Pleasant View Drive, on the south side, from Southwest Sixth Street to a point 50 feet east thereof, no parking any time.

Pleasant View Drive, on the south side, from Southwest Ninth Street to a point 50 feet east thereof, no parking any time.

Pleasant View Drive, on the south side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.

Pleasant View Drive, on the north side, from a point 400 feet east of Southwest Fifth Street to Southwest Fourteenth Street, no parking any time.

Pleasant View Drive, on the south side, from a point 50 feet east of Southwest Twelfth Street to a point 125 feet west of Southwest Twelfth Street, no parking any time.

Pleasant View Drive, on the south side, from Southwest Thirteenth Place to a point 50 feet west thereof, no parking any time.

Pleasant View Drive, on the north side, from Druid Hill Drive to Southwest Eighteenth Street, no parking any time.
(C62, § 30-1373; O.8084; C75, C79, § 27-1404; O.10,111, 10,309, 10,323, 10,402, 10,418, 10,598; C85, § 27-1404; O.10,799; C91, § 27-2546; O.11,650; C00, § 114-3578; O.13,948, 13,997, 14,518 (installed 1/25/11), 14,748, 16,171, 16,515)

Sec. 114-3579. East Pleasant View Drive—South Union Street to Southeast Seventeenth Street.

East Pleasant View Drive, on the north side, from South Union Street to Southeast Fifth Street, no parking any time.

East Pleasant View Drive, on the south side, from South Union Street to a point 100 feet east thereof, no parking any time.

East Pleasant View Drive, on the south side, from a point 505 feet east of South Union Street to a point 445 feet east thereof, no parking any time.

East Pleasant View Drive, on the south side, from a point 1095 feet west of Southeast Fifth Street to a point 380 feet east thereof, no parking any time.

East Pleasant View Drive, on the south side, from Southeast Fifth Street to a point 50 feet east thereof, no parking any time.

East Pleasant View Drive, on the north side, from Southeast Fifth Street to Southeast Eighth street, no parking any time.

East Pleasant View Drive, on the south side, from Southeast Eighth Street to Indianola Avenue, no parking any time.

East Pleasant View Drive, on the north side, from Southeast Fourteenth Street to a point 50 feet east thereof, no parking any time.

East Pleasant View Drive, on the south side, from Southeast Fourteenth Street to Southeast Seventeenth Street, no parking any time.
(C62, § 30-1373.01; O.8732, 8825; C75, § 27-1404.01; O.9295, 9367; C79, § 27-1404.01; O.10,014, 10,111, 10,598, 10,706; C91, § 27-2547; O.11,650, 15,867)

Sec. 114-3580. Reserved.

Editor's note—Ord. No. 14,542, § 1, adopted Feb. 6, 2006, repealed § 114-3580, which pertained to Plum Street—Sixth Avenue to Eighth Street and derived from Code 1962, § 30-1374; Ord. No. 8084; Code 1975; Code 1979, § 27-1405; Code 1991, § 27-2548; Ord. No. 11,650.

Sec. 114-3581. Polk Boulevard—Grand Avenue to University Avenue.

Polk Boulevard, on the west side, from Grand Avenue to a point 75 feet north thereof, no parking any time.

Polk Boulevard, on the west side, from Woodland Avenue to a point 75 feet north thereof, no parking any time.

Polk Boulevard, on the east side, from Harwood Drive to a point 50 feet south thereof, no parking any time.

Polk Boulevard, on the west side, from Harwood Drive to a point 65 feet north thereof, no parking any time.

Polk Boulevard, on the west side, from Pleasant Street to a point 50 feet south thereof, no parking any time.

Polk Boulevard, on both sides, from Pleasant Street to Center Street, no parking any time.

Polk Boulevard, on the east side, from Center Street to a point 50 feet north thereof, no parking any time.

Polk Boulevard, on the west side, from a point 90 feet north of Center Street to a point 150 feet north thereof, no parking any time.

Polk Boulevard, on the east side, from a point 150 feet north of Center Street to a point 75 feet north thereof, no parking any time.

Polk Boulevard, on the east side, from Chamberlain Avenue to a point 50 feet south thereof, no parking any time.

Polk Boulevard, on the west side, from a point 50 feet south of Chamberlain Avenue to a point 50 feet north of Chamberlain Avenue, no parking any time.

Polk Boulevard, on the west side, from Observatory Road to a point 50 feet north thereof, no parking any time.

Polk Boulevard, on the east side, from Boulevard Place to a point 50 feet south thereof, no parking any time.

Polk Boulevard, on the west side, from Kingman Boulevard to a point 50 feet south thereof, no parking any time.

Polk Boulevard, on the west side, from a point 140 feet south of University Avenue to a point 50 feet south thereof, commercial loading zone.

Polk Boulevard, on the east side, from University Avenue to a point 200 feet south thereof, no parking any time.
(C62, § 30-1375; O.8084; C75, § 27-1406; O.9284; C79, § 27-1406; O.10,040; C85, § 27-1406; O,11,199; C91, § 27-2549; O.11,650, 13,323; C00, § 114-3581; O.14,062, 14,139, 14,404, 14,418, 14,518 (installed 7/12/06, 8/31/06), 15,753, 15,854, 16,171, 16,535)

Sec. 114-3581.01. Pond View Circle—Brook Ridge Court to dead end.

Pond View Circle, on the north side, from Brook Ridge Court to a point 270 feet west thereof, no parking any time.

Pond View Circle, within the cul-de-sac west of Brook Ridge Court, no parking 7:00 a.m. to 5:00 p.m., Wednesdays.
(O.13,957, 15,025)

Sec. 114-3582. Porter Avenue—South Union Street to Fleur Drive.

Porter Avenue, on the north side, from South Union Street to a point 395 feet west thereof, no stopping or standing.

Porter Avenue, on the north side, from a point 395 feet west of South Union Street to a point 180 feet west thereof, school passenger loading and unloading 7:00 a.m. to 5:00 p.m., school days.

Porter Avenue, on the north side, from a point 575 feet west of South Union Street to Southwest Ninth Street, no parking any time.

Porter Avenue, on the south side, from South Union Street to a point 50 feet east of Southwest Second Street, no stopping or standing 7:00 a.m. to 5:00 p.m., school days.

Porter Avenue, on the south side, from a point 50 feet east of Southwest Second Street to a point 50 feet west of Southwest Second Street, no stopping or standing.

Porter Avenue, on the south side, from a point 50 feet west of Southwest Second Street to Southwest Third Street, no stopping or standing 7:00 a.m. to 5:00 p.m., school days.

Porter Avenue, on the south side, from Southwest Third Street to a point 50 feet west thereof, no parking any time.

Porter Avenue, on the south side, from a point 75 feet east of Southwest Seventh Street to a point 75 feet west of Southwest Seventh Street, no parking any time.

Porter Avenue, on the south side, from Southwest Ninth Street to a point 150 feet east thereof, no parking any time.

Porter Avenue, on the north side, from Southwest Ninth Street to a point 50 feet east thereof, no parking any time.

Porter Avenue, on the north side, from Southwest Ninth Street to Fleur Drive, no parking any time.

Porter Avenue, on the south side, from Southwest Ninth Street to Southwest Twelfth Street, no stopping or standing.

Porter Avenue, on the south side, from Southwest Twelfth Street to a point 75 feet west thereof, no parking any time.

Porter Avenue, on the south side, from a point 205 feet east of Southwest Thirteenth Place to a point 75 feet west of Southwest Thirteenth Place, no parking any time.

Porter Avenue, on the south side, from Fleur Drive to a point 150 feet east thereof, no parking any time.
(C62, § 30-1376; O.8084, 8108, 8244, 8617; C75, § 27-1407; O.9332, 9343, 9581; C79, § 27-1407; O.9747, 10,044, 10,598; C91, § 27-2550; O.11,650, 13,256, 13,794, 13,874, 15,914)

Sec. 114-3583. East Porter Avenue—South Union Street to Southeast Thirty-second Street.

East Porter Avenue, on the north side, from South Union Street to a point 50 feet east thereof, no parking any time.

East Porter Avenue, on the south side, from South Union Street to a point 150 feet east of Southeast Eighth Street, no parking any time.

East Porter Avenue, on the north side, from Southeast Fourth Street to a point 350 feet west thereof, no parking any time.

East Porter Avenue, on the north side, from Southeast Fifth Street to a point 100 feet west thereof, no parking any time.

East Porter Avenue, on the north side, from Southeast Fifth Street to a point 250 feet east thereof, no parking any time.

East Porter Avenue, on the north side, from Southeast Seventh Street to a point 50 feet east thereof, no parking any time.

East Porter Avenue, on the north side, from the west curb line of Southeast Eighth Street to a point 230 feet west thereof, bus loading and unloading 7:00 a.m. to 5:00 p.m. school days.

East Porter Avenue, on the north side, from the west curb line of Southeast Eighth Street to a point 55 feet east thereof, no stopping, no standing, 7:00 a.m. to 5:00 p.m. school days.

East Porter Avenue, on the north side, from Indianola Avenue to Southeast 24th Street, no parking any time.

East Porter Avenue, on the south side, from Indianola Avenue to Southeast Thirty-second Street, no parking any time.
(C62, § 30-1376.01; O.8100, 8433; C75, § 27-1408; O.9139; C79, § 27-1408; O.9849, 10,498, 10,638; C85, § 27-1408; O.11,225, 11,241; C91, § 27-2551; O.11,650, 11,920, 13,184, 13,621, 13,973, 15,369, 15,583)

Sec. 114-3584. Prospect Road—Martin Luther King Jr Parkway to Twenty-seventh Street.

Prospect Road, on both sides, from Martin Luther King Jr Parkway to a point 600 feet east thereof, no parking any time.

Prospect Road, on the south side, from Martin Luther King Jr Parkway to a point 75 feet west thereof, no parking any time.

Prospect Road, on the south side, from Twenty-fifth Street to a point 55 feet east thereof, no parking any time.

Prospect Road, on the north side, from Martin Luther King Jr Parkway to Twenty-seventh Street, no parking any time.
(C62, § 30-1377; O.8084; C75, § 27-1409; O.8984, 9190; C79, § 27-1409; O.10,532; C85, § 27-1409; O.11,216; C91, § 27-2552; O.11,650, 11,935; C00, § 114-3584; O.14,449, 14,518 (installed 12/6/13), 16,171)

Sec. 114-3585. Prospect Drive—Thirtieth Street to dead end west.

Prospect Drive, on the south side, from Thirtieth Street to a point 50 feet west thereof, no parking any time.

Prospect Drive, on the north side, from Thirtieth Street to a point 400 feet west and any part of the cul-de-sac, no parking any time.
(C79, § 27-1409.01; O.9886; C91, § 27-2553; O.11,650; C00, § 114-3585; O.14,518 (installed 01/06/21), 16,171)

Sec. 114-3586. Raccoon Street—Southeast Second Street to Scott Avenue.

Raccoon Street, on both sides, from Southeast Second Street to Southeast Fourth Street, no parking any time.

Raccoon Street, on the north side, from Southeast Fifth Street to and including the cul-de-sac at Southeast Twelfth Street, no parking any time.

Raccoon Street, on the south side, from Southeast Fifth Street to a point 50 feet east thereof, no parking any time.

Raccoon Street, on the north side, from a point 90 feet east of Southeast Eighth Street to a point 50 feet east thereof, loading zone.

Raccoon Street, on the south side, from Southeast Fifteenth Court to Southeast Sixteenth Street, no parking any time.

Raccoon Street, on the north side, from Southeast Eighteenth Street to Southeast Nineteenth Street, no parking any time.

Raccoon Street, on the south side, from Southeast Twenty-sixth Street to a point 35 feet east of Southeast Thirtieth Street, no parking any time.

Raccoon Street, on the north side, from a point 35 feet west of Southeast Thirtieth Street to Scott Avenue, no parking any time.
(C62, § 30-1378; O.8084, 8562, 8615; C75, § 27-1410; O.9593; C79, § 27-1410; O.10,123, 10,402; C91, § 27-2554; O.11,650; C00, § 114-3586; O.14,280, 14,518 (installed 8/6/15, 6/30/20), 14,982, 15,387, 15,984, 16,045, 16,171)

Sec. 114-3587. Railroad Avenue—Dead end east of Southwest Sixty-second Street to Southwest Sixty-third Street.

Railroad Avenue, on the south side, from Southwest Sixty-second Street a point 350 feet east thereof, no parking any time.

Railroad Avenue, on both sides, from Southwest Sixty-second Street to Southwest Sixty-third Street, no parking any time.
(C79, § 27-1410.01; O.9849, 10,598; C91, § 27-2555; O.11,650, 14,102)

Sec. 114-3588. East Railroad Avenue—Southeast Seventh Street to dead end east of Southeast Twenty-eighth Street.

East Railroad Avenue, on the south side, from Southeast Seventh Street to Southeast Tenth Street, no parking any time.

East Railroad Avenue, on the north side, from Southeast Tenth Street to Southeast Fifteenth Street, no parking any time.

East Railroad Avenue, on the south side, from a point 50 feet west of Southeast Fourteenth Street to a point 50 feet east of Southeast Fourteenth Street, no parking any time.
(C62, § 30-1379; O.8084; C75, C79, § 27-1411; O.10,123, 10,402, 10,598; C91, § 27-2556; O.11,650, 15,756)

Sec. 114-3589. Reserved.

Editor's note—Ord. No. 14,542, § 1, adopted Feb. 6, 2006, repealed § 114-3589, which pertained to Railroad Court—Southeast Twenty-fourth Court to Southeast Twenty-fifth Street and derived from Code 1962, § 30-1380; Ord. No. 8084; Code 1975; Code 1979, § 27-1412; Code 1991, § 27-2557; Ord. No. 11,650.

Sec. 114-3590. Randall Place—Forest Avenue to cul-de-sac, south.

Randall Place, on the east side, from Forest Avenue to a point 50 feet south thereof, no parking any time.

Randall Place, on the west side, from Forest Avenue to a point 300 feet south thereof and on any part of the cul-de-sac, no parking any time.
(C62, § 30-1380.01; O.8152; C75, C79, § 27-1413; C91, § 27-2558; O.11,650, 13,751)

Sec. 114-3591. Randolph Street—Southwest Ninth Street to dead end west of Southwest Twelfth Street.

Randolph Street, on the north side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.

Randolph Street, on the south side, from Southwest Ninth Street west to and including the dead end west of Southwest Twelfth Street, no parking any time.

Randolph Street, on the north side, from Southwest Twelfth Street to the dead end west, no parking Thursday, 7:00 a.m. to 5:00 p.m.
(C79, § 27-1413.01; O.9849, 10,598; C91, § 27-2559; O.11,650, 14,467)

Sec. 114-3592. Raymond Drive—Holland Drive to Beavercrest Drive.

Raymond Drive, on the west side, from Holland Drive to Beavercrest Drive, no parking any time.
(C79, § 27-1413.02; O.9886; C91, § 27-2560; O.11,650)

Sec. 114-3593. Ravina Drive—Waverly Drive to Oak Park Avenue.

Ravina Drive, on the south and east sides, from Waverly Drive to Oak Park Avenue, no parking any time.
(C79, § 27-1413.03; O.10,123; C91, § 27-2561; O.11,650)

Sec. 114-3593.1. Register Drive—Army Post Road to Gannett Avenue.

Register Drive, on the east side, from Army Post Road to Gannett Avenue, no parking any time.
(O.14,226)

Sec. 114-3594. Reynolds Lane—Farwell Road to Arthur Avenue.

Reynolds Lane, on the east side, from Farwell Road to Arthur Avenue, no parking any time.

Reynolds Lane, on the west side, from Farwell Road to a point 50 feet north thereof, no parking any time.
(C79, § 27-1413.04; O.10,123; C91, § 27-2562; O.11,650, 16,535)

Sec. 114-3595. Richland Drive—Guthrie Avenue to Arthur Avenue.

Richland Drive, on the west side, from Guthrie Avenue to Arthur Avenue, no parking any time.

Richland Drive, on the east side, from Arthur Avenue to a point 50 feet south thereof, no parking any time.
(C79, § 27-1413.05; O.10,123; C91, § 27-2563; O.11,650; C00, § 114-3595; O.14,518 (installed 1/8/18), 16,171)

Sec. 114-3596. East Reigart Street—First Street to Oxford Street.

East Reigart Street, on the south side, from First Street to a point 100 feet east thereof, no parking any time.

East Reigart Street, on the north side, from First Street to Oxford Street, no parking any time.
(C79, § 27-1413.06; O.10,402; C91, § 27-2564; O.11,650, 14,518 (installed 5/16/08), 16,171)

Sec. 114-3597. Richmond Avenue—York Street to east city limits.

Richmond Avenue, on the south side, from York Street to Villa Vista Drive, no parking any time.

Richmond Avenue, on the north side, from East Fourteenth Street to a point 50 feet west thereof, no parking any time.

Richmond Avenue, on the north side, from East Fourteenth Street to a point 90 feet east thereof, no parking any time.

Richmond Avenue, on the south side, from East Twenty-fourth Street to East Twenty-fifth Street, no parking any time.

Richmond Avenue, on the north side, from East Twenty-fourth Street to a point 40 feet east thereof, no parking any time.

Richmond Avenue, on the north side, from East Twenty-fifth Street to a point 50 feet west thereof, no parking any time.

Richmond Avenue, on the north side, from East Twenty-sixth Street to East Twenty-ninth Street, no parking any time.

Richmond Avenue, on the south side, from East Thirty-eighth Street to a point 50 feet east thereof, no parking any time.

Richmond Avenue, on the north side, from East Thirty-eighth Street to East Fortieth Court, no parking any time.

Richmond Avenue, on the south side, from East Forty-eighth Street to the east city limits, no parking any time.
(C62, § 30-1381; O.8084; C75, C79, § 27-1414; O.9957, 10,123, 10,598; C85, § 27-1414; O.10,747; C91, § 27-2565; O.11,650; C00, § 114-3597; O.14,518 (installed 11/17/14, 5/15/17), 14,862, 16,171)

Sec. 114-3598. Reserved.

Editor's note—Ord. No. 14,437, § 1, adopted April 25, 2005, repealed § 114-3598, which pertained to East River Drive—East First Street to Filmore Street and derived from Code 1975, § 27-1414.01; Ord. No. 9464; Code 1979, § 27-1414.01; Code 1991, § 27-2566; Ord. No. 11,650; Ord. No. 13,121; and Ord. No. 13,239.

Sec. 114-3599. Ridge Road—Twenty-eighth Street to Twenty-ninth Street.

Ridge Road, on the south side, from Twenty-eighth Street to Twenty-ninth Street, no parking any time.
(C79, § 27-1414.011; O.10,207; C91, § 27-2567; O.11,650)

Sec. 114-3599.05. Ridgeview Drive—Lakewood Lane to Southeast Thirty-fourth Street.

Ridgeview Drive, on the north side, from Lakewood Lane to Southeast Thirty-fourth Street, no parking any time.
(O.14,330)

Sec. 114-3600. Rittenhouse Street—Southwest Ninth Street to Southwest Twenty-eighth Street.

Rittenhouse Street, on the north side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.

Rittenhouse Street, on the south side, from Southwest Ninth Street to Southwest Fourteenth Street, no parking any time.

Rittenhouse Street, on the south side, from Fleur Drive to a point 1200 feet west thereof, no parking any time.

Rittenhouse Street, on the north side, from a point 1200 feet west of Fleur Drive to Gannett Avenue, no parking any time.

Rittenhouse Street, on the south side, from a point 355 feet east of Gannett Avenue to Gannett Avenue, no parking any time.
(C79, § 27-1414.02; O.9849, 10,598; C91, § 27-2568; O.11,650, 14,226, 16,437)

Sec. 114-3601. Reserved.

Editor's note—Ord. No. 14,437, § 1, adopted April 25, 2005, repealed § 114-3601, which pertained to Riverside Drive—Court Avenue to Southeast First Street and derived from Code 1962, § 30-1382; Ord. No. 8084; Code 1975; Code 1979, § 27-1415; Code 1991, § 27-2569; Ord. No. 11,650; and Ord. No. 13,593.

Sec. 114-3602. River Oaks Drive—Lincoln Place Drive to Southwest Forty-second Street.

River Oaks Drive, on the south side, from Lincoln Place Drive to Southwest Forty-second Street, no parking any time.
(C79, § 27-1415.01; O.9849; C91, § 27-2570; O.11,650)

Sec. 114-3602.03. River Meadows Circle—River Ridge Road to cul-de-sac east.

River Meadows Circle, on the north side, River Ridge Road to and including the cul-de-sac east thereof, no parking any time.
(O.15,726)

Sec. 114-3602.05. River Meadows Drive—King Avenue to River Ridge Road.

River Meadows Drive, on the west side, from King Avenue to River Ridge Road, no parking any time.

River Meadows Drive, on the east side, from King Avenue to a point 45 feet north thereof, no parking any time.
(C00, § 114-3602.05; O.14,518 (installed 6/13/19), 14,855, 16,171)

Sec. 114-3602.1. River Ridge Road—Southeast Twenty-second Street to cul-de-sac southeast of Riverwoods Avenue.

River Ridge Road, on the south and west sides, from Southeast Twenty-second Street to and including the cul-de-sac southeast of Riverwoods Avenue, no parking any time.

River Ridge Road, on the east side, from Southeast Twenty-second Street to a point 85 feet south thereof, no parking any time.
(O.13,958, 14,855, 15,726, 16,171, 16,215)

Sec. 114-3603. Riverview Drive—Ravina Drive to Waverly Drive.

Riverview Drive, on the south side, from Ravina Drive to Waverly Drive, no parking any time.
(C79, § 27-1415.02; O.10,123; C91, § 27-2571; O.11,650)

Sec. 114-3604. Riverview Street—Pennsylvania Avenue to dead end west.

Riverview Street, on the south side, from Pennsylvania Avenue to a point 600 feet west thereof, no parking any time.

Riverview Street, on the south side, from a point 600 feet west of Pennsylvania Avenue to a point 40 feet west thereof, commercial loading zone.

Riverview Street, on the north side, from Pennsylvania Avenue to a point 640 feet west thereof, no parking any time.
(C62, § 30-1383; O.8084; C75, C79, § 27-1416; O.10,047; C91, § 27-2572; O.11,650)

Sec. 114-3605. River Vista Drive—Southwest Twelfth Street to dead end west of Southwest Twelfth Street.

River Vista Drive, on the south side, from Southwest Twelfth Street to a point 640 feet west thereof, no parking any time.

River Vista Drive, on the north side, from Southwest Twelfth Street to a point 50 feet west thereof, no parking any time.
(C62, § 30-1384; O.8084; C75, C79, § 27-1417; C91, § 27-2573; O.11,650; C00; O.14,518 (installed 7/11/07), 16,171)

Sec. 114-3605.1. Riverwoods Avenue—East Park Avenue to Hartford Avenue.

Riverwoods Avenue, on the east and south sides, from East Park Avenue to and including the cul-de-sac east of Grand River Drive, no parking any time.
(O.13,958, 14,226)

Sec. 114-3605.05. Robert D Ray Drive—East Locust Street to East Grand Avenue.

Robert D Ray Drive, on the east side, from East Locust Street to a point 55 feet north thereof, no parking any time.

Robert D Ray Drive, on the east side, from East Grand Avenue to a point 25 feet south thereof, no parking any time.

Robert D Ray Drive, on the west side, from East Locust Street to a point 40 feet north thereof, no parking any time.

Robert D Ray Drive, on the west side, from a point 130 feet north of East Locust Street to a point 30 feet north thereof, commercial loading zone.

Robert D Ray Drive, on the west side, from East Grand Avenue to a point 30 feet south thereof, no parking any time.

Robert D Ray Drive, on the west side, from a point 160 feet north of East Locust Street to a point ten feet north thereof, no stopping or standing.
(O.14,437)

Sec. 114-3605.06. Robert D Ray Drive—East Grand Avenue to Filmore Street.

Robert D Ray Drive, on the east side, from East Grand Avenue to Des Moines Street, no parking any time.

Robert D Ray Drive, on the west side, from East Grand Avenue to a point 40 feet north thereof, no parking any time.

Robert D Ray Drive, on the west side, from a point 115 feet north of Des Moines Street to a point 45 feet north thereof, commercial loading zone.

Robert D Ray Drive, on the east side, from Des Moines Street to a point 1,945 feet north thereof, no parking any time.

Robert D Ray Drive, on the west side, from a point 450 feet north of Des Moines Street to a point 1,495 feet north thereof, no parking from 11:00 p.m. to 6:00 a.m.
(O.14,437, 14,844, 14,855, 15,372, 15,911, 16,543)

Sec. 114-3606. Robertson Drive—Fifty-first Street to Fifty-sixth Street.

Robertson Drive, on the south side, from Fifty-first Street to a point 225 feet east of Fifty-sixth Street, no parking any time.

Robertson Drive, on the south side, from Fifty-sixth Street to a point 75 feet east thereof, no stopping or standing.

Robertson Drive, on the south side, from a point 75 feet east of Fifty-sixth Street to a point 70 feet east thereof, passenger loading and unloading 7:00 a.m. to 5:00 p.m., school days.

Robertson Drive, on the south side, from a point 145 feet east of Fifty-sixth Street to a point 80 feet east thereof, bus loading and unloading 7:00 a.m. to 5:00 p.m., school days.

Robertson Drive, on the north side, from Fifty-first Street to Fifty-sixth Street, no parking any time.
(C62, § 30-1385; O.8084, 8204; C75, C79, § 27-1418; O.10,111, 10,176; C91, § 27-2574; O.11,650)

Sec. 114-3607. Robin Drive—Sixty-second Street to Westover Boulevard.

Robin Drive, on the north side, from Sixty-second Street to a point 50 feet west thereof, no parking any time.

Robin Drive, on the south side, from Sixty-second Street to a point 250 feet west thereof and on any part of the cul-de-sac, no parking any time.

Robin Drive, on the north side, from Sixty-fourth Street to Westover Boulevard, no parking any time.

Robin Drive, on the south side, from Westover Boulevard to a point 50 feet east thereof, no parking any time.
(C75, § 27-1418.01; O.9068; C79, § 27-1418.01; O.9685; C85, § 27-1418.01; O.10,907; C91, § 27-2575; O.11,650, 16,171)

Sec. 114-3608. Roblang Court—Tiffin Avenue to dead end south of Tiffin Avenue.

Roblang Court, on the west side, from Tiffin Avenue to a point 455 feet south thereof, no parking any time.
(C62, § 30-1386; O.8084; C75, C79, § 27-1419; C91, § 27-2576; O.11,650)

Sec. 114-3609. Rollins Avenue—Twenty-third Street to Sixty-third Street.

Rollins Avenue, on both sides, from Twenty-third Street to Twenty-third Place, no parking any time.

Rollins Avenue, on the south side, from Twenty-fourth Street to a point 50 feet west of Twenty-eighth Street, no parking any time.

Rollins Avenue, on the north side, from Twenty-eighth Street to a point 310 feet west thereof, no parking any time.

Rollins Avenue, on the north side, from Thirty-third Street to Thirty-ninth Street, no parking any time.

Rollins Avenue, on the south side, from a point 50 feet east of Thirty-fifth Street to a point 60 feet west of Thirty-fifth Street, no parking any time.

Rollins Avenue, on both sides, from Thirty-ninth Street to Fortieth Street, no parking any time.

Rollins Avenue, on the south side, from a point 50 feet east of Fortieth Place to a point 50 feet west of Fortieth Place, no parking any time.

Rollins Avenue, on the north side, from Fortieth Street to a point 100 feet west of Forty-first Street, no parking any time.

Rollins Avenue, on the north side, from a point 150 feet east of Forty-second Street to a point 100 feet west thereof, commercial loading zone.

Rollins Avenue, on the north side, from Cummins Parkway to Sixty-second Place, no parking any time.
(C62, § 30-1387; O.8084, 8730; C75, § 27-1420; O.8981, 9009, 9315; C79, § 27-1420; O.9708, 9886, 10,123, 10,246, 10,662; C91, § 27-2577; O.11,650; C00, § 114-3609; O.14,292, 14,518 (installed 2/6/12, 12/3/15), 15,736, 16,171, 16,418)

Sec. 114-3610. Ronwood Drive—Cummins Parkway to dead end west.

Ronwood Drive, on the west and north side, from Cummins Parkway to a point 500 feet west thereof and on any part of the cul-de-sac, no parking any time.
(C79, § 27-1420.01; O.9849; C91, § 27-2578; O.11,650)

Sec. 114-3611. Roosevelt Avenue—Pennsylvania Avenue to East Ninth Street.

Roosevelt Avenue, on the north side, from Pennsylvania Avenue to a point 75 feet east thereof, no parking any time.

Roosevelt Avenue, on the south side, from Pennsylvania Avenue to East Ninth Street, no parking any time.

Roosevelt Avenue, on the north side, from East Ninth Street to a point 75 feet west thereof, no parking any time.
(C62, § 30-1388; O.8084, 8298; C75, C79, C85, § 27-1421; O.11,372; C91, § 27-2579; O.11,650)

Sec. 114-3612. Rose Avenue—South Union Street to Southwest Fifty-eighth Street.

Rose Avenue, on the north side, from South Union Street to Southwest Twelfth Street, no parking any time.

Rose Avenue, on the south side, from a point 210 feet west of Southwest Fourth Street to a point 50 feet east of Southwest Fourth Street, no parking any time.

Rose Avenue, on the south side, from Southwest Ninth Street to a point 150 feet east thereof, no parking any time.

Rose Avenue, on the south side, from Southwest Ninth Street to a point 100 feet west thereof, no parking any time.

Rose Avenue, on the south side, from Southwest Twelfth Street to a point 70 feet east thereof, no parking any time.

Rose Avenue, on the north side, from Southwest Twenty-ninth Street to Southwest Thirtieth Street, no parking any time.

Rose Avenue, on the north side, from Southwest Thirty-fourth Place to a point 50 feet west thereof, no parking any time.

Rose Avenue, on the south side, from Southwest Fifty-sixth Street to Southwest Fifty-eighth Street, no parking any time.
(C62, § 30-1389; O.8084, 8262; C75, § 27-1422; O.9518; C79, § 27-1422; O.9866, 10,207, 10,476, 10,567, 10,598; C85, § 27-1422; O.10,999; C91, § 27-2580; O.11,650; C00, § 114-3612; O.14,288, 14,518 (installed 3/9/06), 15,821, 16,171, 16,299)

Sec. 114-3612.5. Rose Circle—Southwest Fifty-eighth Street to cul-de-sac west.

Rose Circle, on the north side, from Southwest Fifty-eighth Street west to and including any part of the cul-de-sac, no parking any time.
(O.16,299)

Sec. 114-3613. East Rose Avenue—South Union Street to dead end east of Southeast Twenty-third Street.

East Rose Avenue, on the south side, from South Union Street to Southeast Eighth Street, no parking any time.

East Rose Avenue, on the south side, from Southeast Tenth Street to a point 130 feet east of Southeast Twelfth Street, no parking any time.

East Rose Avenue, on the south side, from Southeast Fifteenth Street to Indianola Avenue, no parking any time.

East Rose Avenue, on the south side, from Southeast Nineteenth Street to Southeast Twentieth Street, no parking any time.

East Rose Avenue, on the south side, from Southeast Twenty-second Street to the dead end east of Southeast Twenty-third Street, no parking any time.

East Rose Avenue, on the north side, from East Indianola Avenue to a point 50 feet west thereof, no parking any time.
(C62, § 30-1389.01; O.8387, 8433; C75, C79, § 27-1422.01; O.10,057, 10,111; C85, § 27-1422.01; O.11,288; C91, § 27-2581; O.11,650, 13,239)

Sec. 114-3614. Rose Hedge Drive—Thirty-sixth Place to Aurora Avenue.

Rose Hedge Drive, on the west side, from Thirty-sixth Place to Aurora Avenue, no parking any time.
(C79, § 27-1422.02; O.9849; C91, § 27-2582; O.11,650)

Sec. 114-3615. Royer Street—East Fourteenth Street to dead end east.

Royer Street, on the north side, from East Fourteenth Street to a point 1,283 feet east thereof, no parking any time.

Royer Street, on the south side, from East Fourteenth Street to a point 75 feet east thereof, no parking any time.
(C62, § 30-1390; O.8084, 8700; C75, C79, § 27-1423; O.9898, 9911; C91, § 27-2583; O.11,650)

Sec. 114-3616. Rutland Avenue—Twenty-eighth Street to Cummins Parkway.

Rutland Avenue, on the south side, from Twenty-eighth Street to Thirty-first Street, no parking any time.

Rutland Avenue, on the north side, from a point 50 feet east of Twenty-ninth Street to a point 50 feet west of Twenty-ninth Street, no parking any time.

Rutland Avenue, on both sides, from Thirty-third Street to Thirty-fifth Street, no parking any time.

Rutland Avenue, on the north side, from Fifty-sixth Street to a point 190 feet west thereof, no parking any time.
(C62, § 30-1391; O.8084, 8501, 8554, 8633; C75, § 27-1424; O.9267; C79, § 27-1424; O.9685; C91, § 27-2584; O.11,650, 14,339)

Sec. 114-3616.01. Rutland Drive—Fifty-ninth Street to Cummins Parkway.

Rutland Drive, on the north side, from Fifty-ninth Street to Cummins Parkway, no parking any time.

Rutland Drive, on the south side, from Fifty-ninth Street to a point 50 feet west thereof, no parking any time.
(C00, § 114-3616.01; O.14,339, 14,518 (installed 2/5/08), 16,171)

Sec. 114-3616.5. Saint Andrews Circle—dead end west of Southeast Twenty-fifth Street to Southeast Twenty-fifth Street.

Saint Andrews Circle, on the north side, from a point 45 feet west of Southeast Twenty-fifth Street to Southeast Twenty-fifth Street, no parking anytime.

Saint Andrews Circle, on the south side, from the dead end west of Southeast Twenty-fifth Street to Southeast Twenty-fifth Street, no parking any time.
(O.15,583, 16,535)

Sec. 114-3617. Sampson Street—East University Avenue to Hull Avenue.

Sampson Street, on the west side, from East University Avenue to Garfield Avenue, no parking any time.

Sampson Street, on the east side, from East University Avenue to a point 50 feet north thereof, no parking any time.

Sampson Street, on the east side, from and including the dead end turnaround south of Cleveland Avenue to East Washington Avenue, no parking any time.

Sampson Street, on the east side, from Guthrie Avenue to Hull Avenue, no parking any time.

Sampson Street, on the west side, from a point 50 feet south of East Sheridan Avenue to a point 40 feet north of East Sheridan Avenue, no parking any time.
(C75, § 27-1424.01; O.9190, 9238; C79, § 27-1424.01; O.10,123, 10,575, 10,598; C91, § 27-2585; O.11,650, 16,194, 16,334)

Sec. 114-3618. St. John's Road—Thirty-first Street to Thirty-seventh Street.

St. John's Road, on the north side, from Thirty-first Street to Thirty-seventh Street, no parking any time.
(C79, § 27-1424.02; O.9736; C91, § 27-2586; O.11,650)

Sec. 114-3619. Sandahl Avenue—North Union Street to East Eighth Street.

Sandahl Avenue, on the south side, from North Union Street to East Eighth Street, no parking any time.
(C62, § 30-1392; O.8084; C75, C79, § 27-1425; C91, § 27-2587; O.11,650)

Sec. 114-3620. Sani Drive—Huntland Drive to Beaver Avenue.

Sani Drive, on the south side, from Huntland Drive to Beaver Avenue, no parking any time.
(C62, § 30-1392.01; O.8320; C75, C79, § 27-1425.01; C91, § 27-2588; O.11,650)

Sec. 114-3620.5. Sawyers Drive—Hillcrest Drive to Twana Drive.

Sawyers Drive, on the west side, from Hillcrest Drive to Twana Drive, no parking any time.
(O.14,833)

Sec. 114-3621. Saylor Road—From a point 170 feet north of Cherokee Avenue to East Sheridan Avenue.

Saylor Road, on both sides, from a point 170 feet north of Cherokee Avenue to East Sheridan Avenue, no parking any time.
(C62, § 30-1393; O.8084, 8394; C75, C79, § 27-1426; O.10,095; C91, § 27-2589; O.11,650, 11,920)

Sec. 114-3622. Scandia Avenue—Southeast Third Street to Southeast Seventh Street.

Scandia Avenue, on the south side, from Southeast Third Street to Southeast Fifth Street, no parking any time.

Scandia Avenue, on the north side, from Southeast Fifth Street to a point 115 feet east thereof, no parking any time.
(C79, § 27-1426.01; O.9641; C91, § 27-2590; O.11,650; C00; O.14,518 (installed 6/27/07), 16,171)

Sec. 114-3623. Scandia Circle—Southeast Third Street to dead end, west.

Scandia Circle, on the south side, from Southeast Third Street to a point 130 feet west thereof and any part of the cul-de-sac, no parking any time.
(C79, § 27-1426.02; O.9886; C91, § 27-2591; O.11,650)

Sec. 114-3624. School Street—Second Avenue to Fortieth Place.

School Street, on the south side, from Eighth Street to a point 75 feet west thereof, no parking any time.

School Street, on the north side, from Eighth Street to the dead end west of Twelfth Street, no parking any time.

School Street, on the south side, from Ninth Street to a point 60 feet west thereof, no parking any time.

School Street, on the south side, from a point 405 feet east of Twelfth Street to Twelfth Street, no parking any time.

School Street, on the south side from Fifteenth Street to a point 105 feet west thereof, no parking any time.

School Street, on the south side, from a point 105 feet west of Fifteenth Street to a point 370 feet west thereof, school bus loading and unloading 7:00 a.m. to 5:00 p.m. school days.

School Street, on the south side, from a point 140 feet east of Seventeenth Street to Seventeenth Street, no parking any time.

School Street, on the north side, from Oakridge Drive to Seventeenth Street, no parking any time.

School Street, on the north side, from Twenty-fourth Street to a point 50 feet west of Thirty-first Street, no parking any time.

School Street, on the south side, from a point 50 east of Thirty-first Street to Thirty-fifth Street, no parking any time.

School Street, on the south side, from Thirty-seventh Street to Fortieth Place, no parking any time.
(C62, § 30-1394; O.8084, 8732; C75, § 27-1427; O.8984, 9369; C79, § 27-1427; O.9886, 10,123, 10,412; C85, § 27-1427; O.11,278; C91, § 27-2592; O.11,650, 11,892, 11,935, 13,548, 13,573, 14,518 (installed 7/10/08, 7/22/13), 14,542, 14,793, 15,947, 16,171)

Sec. 114-3625. Scott Avenue—Southeast First Street to east city limits.

Scott Avenue, on the north side, from Southwest Water Street to Southeast Second Street, no parking any time.

Scott Avenue, on both sides, from Southeast Second Street to a point 225 feet east of Southeast Sixth Street, no parking any time.

Scott Avenue, on the north side from a point 208 feet east of Southeast Tenth Street to a point 22 feet east thereof, handicap parking.

Scott Avenue, on the south side, from Southeast Fifteenth Street to Southeast Fifteenth Court, no parking any time.

Scott Avenue, on the north side, from the dead end east of Southeast Eighteenth Street to, and including, the cul-de-sac west of Southeast Eighteenth Street, no parking any time.

Scott Avenue, on the south side from a point 780 feet west of Southeast Eighteenth Street to a point 200 feet east of Southeast Eighteenth Street, no parking any time.

Scott Avenue, on the north side, from Southeast Twenty-fifth Court to Southeast Twenty-seventh Street, no parking any time.

Scott Avenue, on the north side, from Southeast Twenty-seventh Street to Southeast Twenty-seventh Court, no parking any time.

Scott Avenue, on both sides, from a point 50 feet west of Southeast Thirtieth Street to a point 50 feet east of Southeast Thirtieth Street, no parking any time.

Scott Avenue, on the north side, from a point 50 feet east of Southeast Thirtieth Street to the east city limits, no parking any time.
(C62, § 30-1395; O.8084, 8366; C75, C79, § 27-1428; O.9685, 9820, 10,014, 10,123, 10,513, 10,598; C91, § 27-2593; O.11,650, 13,613, 14,982, 15,209, 15,466, 15,580, 16,352)

Sec. 114-3626. Searle Street—East University Avenue to Guthrie Avenue.

Searle Street, on both sides, from State Street to Avenue Frederick M. Hubbell, no parking any time.

Searle Street, on the east side, from Avenue Frederick M. Hubbell to Guthrie Avenue, no parking any time.

Searle Street, on the west side, from a point 50 feet south of Easton Boulevard to a point 60 feet north of Easton Boulevard, no parking any time.
(C62, § 30-1396; O.8084; C75, C79, § 27-1429; O.10,123; C91, § 27-2594; O.11,650, 13,218; C00, § 114-3626; O.14,518 (installed 4/23/19, 11/7/19), 16,171)

Sec. 114-3627. Seniomsed Avenue—Southwest Twenty-ninth Street to Southwest Thirty-first Street.

Seniomsed Avenue, on the south side, from Southwest Twenty-ninth Street to Southwest Thirty-first Street, no parking any time.
(C79, § 27-1429.01; O.9849; C91, § 27-2595; O.11,650)

Sec. 114-3628. Seneca Avenue—First Street to Forty-ninth Street.

Seneca Avenue, on the north side, from First Street to Sixth Avenue, no parking any time.

Seneca Avenue, on the south side, from a point 50 feet east of Second Avenue to a point 50 feet west of Second Avenue, no parking any time.

Seneca Avenue, on the south side, from Sixth Avenue to Eleventh Street, no parking any time.

Seneca Avenue, on the south side, from Eleventh Street to Sixteenth Street, no parking any time.

Seneca Avenue, on the north side, from a point 50 feet east of Fifteenth Street to a point 50 feet west of Fifteenth Street, no parking any time.

Seneca Avenue, on the north side, from Thirtieth Street to Lower Beaver Road, no parking any time.

Seneca Avenue, on the south side, from Lower Beaver Road to Thirty-sixth Street, no parking any time.

Seneca Avenue, on the north side, from Lower Beaver Road to a point 50 feet west thereof, no parking any time.

Seneca Avenue, on the north side, from Forty-eighth Street to Forty-ninth Street, no parking any time.

Seneca Avenue, on the north side, from a point 50 feet east of Thirty-sixth Street to Thirty-sixth Street, no parking any time.
(C62, § 30-1397; O.8084, 8851; C75, C79, § 27-1430; O.9849, 9938, 9959, 9978, 10,476; C91, § 27-2596; O.11,650, 14,012, 14,053, 16,370)

Sec. 114-3629. East Seneca Avenue—First Street to East Forty-second Street.

East Seneca Avenue, on the north side, from First Street to Columbia Street, no parking any time.

East Seneca Avenue, on the north side, from East Ninth Street to a point 70 feet east thereof, no parking any time.

East Seneca Avenue, on the north side, from East Tenth Street to a point 75 feet east thereof, no parking any time.

East Seneca Avenue, on the south side, from Amherst Street to East Fourteenth Street, no parking any time.

East Seneca Avenue, on the north side, from East Fourteenth Street to a point 50 feet west thereof, no parking any time.

East Seneca Avenue, on the north side, from East Thirtieth Street to a point 180 feet west thereof and on any part of the cul-de-sac, no parking any time.

East Seneca Avenue, on the north side, from East Thirty-ninth Court to a point 135 feet west thereof, no parking any time.

East Seneca Avenue, on the north side, from East Forty-second Street to a point 50 feet west thereof, no parking any time.

East Seneca Avenue, on the south side, from East Fortieth Street to East Forty-second Street, no parking any time.
(C62, § 30-1398; O.8084; C75, C79, § 27-1431; O.9685, 9849, 10,598; C91, § 27-2597; O.11,650; C00, § 114-3629; O.13,893, 14,518 (installed 11/14/05), 16,171)

Sec. 114-3629.05. Shadow Creek Circle—River Ridge Road to cul-de-sac east.

Shadow Creek Circle, on the north side, from River Ridge Road to and including the cul-de-sac east thereof, no parking any time.
(O.15,726)

Sec. 114-3629.1. Shadow Creek Lane—River Ridge Road to cul-de-sac south of Riverwoods Avenue.

Shadow Creek Lane, on the west side, from River Ridge Road to and including the cul-de-sac south of Riverwoods Avenue, no parking any time.
(O.13,958, 14,855, 15,726)

Sec. 114-3630. Shady Oak Drive—Thirtieth Street to dead end east of Thirtieth Street.

Shady Oak Drive, on the south side, from the dead end at the east end of Thirtieth Street to a point 50 feet west thereof, no parking any time.

Shady Oak Drive, on the north side, from Thirtieth Street to a point 560 feet east thereof, no parking any time.

Shady Oak Drive, on the south side, from Thirtieth Street to a point 75 feet east thereof, no parking any time.
(C62, § 30-1398.01; O.8732; C75, C79, § 27-1431.01; O.10,123; C85, § 27-1431.01; O.10,890; C91, § 27-2598; O.11,650)

Sec. 114-3631. Shaw Street—Southeast Fifth Street to dead end east of Southeast Twenty-fifth Court.

Shaw Street, on the south side, from Southeast Fifth Street to Southeast Sixth Street, no parking any time.

Shaw Street, on the north side, from Southeast Fifth Street to a point 60 feet east thereof, no parking any time.

Shaw Street, on the north side, from a point 70 feet west of Southeast Sixth Street to Southeast Sixth Street, no parking any time.

Shaw Street, on the south side, from Southeast Seventh Street to Southeast Thirteenth Street, no parking any time.

Shaw Street, on the north side, from Southeast Fifteenth Street to and including the dead end east of Southeast Fifteenth Court, no parking any time.

Shaw Street, on the north side, from and including the dead end west of Southeast Twenty-third Court to Southeast Twenty-fourth Street, no parking any time.

Shaw Street, on the south side, from Southeast Twenty-fifth Street to a point 470 feet east of Southeast Twenty-fifth Court, no parking any time.
(C79, § 27-1431.02; O.10,123, 10,402, 10,476, 10,598; C91, § 27-2599; O.11,650; C00, § 114-3631; O.15,641, 14,518 (installed 12/22/21), 16,171, 16,221)

Sec. 114-3632. Shawnee Avenue—First Street to Beaver Avenue.

Shawnee Avenue, on the south side, from First Street to Sixth Avenue, no parking any time.

Shawnee Avenue, on the north side, from a point 50 feet east of Second Avenue to a point 50 feet west of Second Avenue, no parking any time.

Shawnee Avenue, on the north side, from Twelfth Street to Fourteenth Street, no parking any time.

Shawnee Avenue, on the south side, from Fourteenth Street to Fifteenth Street, no parking any time.

Shawnee Avenue, on the north side, from a point 60 feet east of Fifteenth Street to Fifteenth Street, no parking any time.

Shawnee Avenue, on the north side, from a point 500 feet east of Twenty-seventh Street to Lynner Drive, no parking any time.

Shawnee Avenue, on the north side, from Thirtieth Street to Thirty-third Street, no parking any time.

Shawnee Avenue, on the south side, from a point 50 feet west of Fortieth Street to a point 50 feet east of Fortieth Street, no parking any time.

Shawnee Avenue, on the south side, from Aurora Avenue to a point 50 feet west, no parking any time.

Shawnee Avenue, on the north side, from Aurora Avenue to Beaver Avenue, no parking any time.

Shawnee Avenue, on the south side, from Beaver Avenue to a point 50 feet east thereof, no parking any time.
(C62, § 30-1399; O.8084, 8124, C75, § 27-1432; O.9593; C79, § 27-1432; O.9849, 9878, 10,339, 10,598; C91, § 27-2600; O.11,650, 13,780; C00, § 114-3632; O.14,518 (installed 9/13/17, 7/12/18), 16,171, 16,558)

Sec. 114-3633. East Shawnee Avenue—First Street to Colfax Avenue.

East Shawnee Avenue, on the south side, from First Street to a point 360 feet east of East Fourteenth Street, no parking any time.

East Shawnee Avenue, on the north side, from Cornell Street to a point 60 feet west thereof, no parking any time.

East Shawnee Avenue, on the north side, from a point 50 feet west of East Fourteenth Street to a point 50 feet east of East Fourteenth Street, no parking any time.

East Shawnee Avenue, on the south side, from East Seventeenth Street to the dead end east of East Fourteenth Street, no parking any time.

East Shawnee Avenue, on the north side, from East Twenty-fourth Court to East Twenty-fifth Street, no parking any time.

East Shawnee Avenue, on the north side, from East Twenty-ninth Street to Colfax Avenue, no parking any time.

East Shawnee Avenue, on the south side, from East Twenty-ninth Street to a point 60 feet east thereof, no parking any time.
(C62, § 30-1400; O.8084; C75, § 27-1433; O.9402, 9593; C79, § 27-1433; O.9685, 9849, 10,598; C91, § 27-2601; O.11,650; C00, § 114-3633; O.14,250, 14,518 (installed 6/26/17), 15,934, 16,171)

Sec. 114-3634. Shawnee Place—Lower Beaver Road to Ardmore Road.

Shawnee Place, on the south side, from Lower Beaver Road to Ardmore Road, no parking any time.
(C79, § 27-1433.01; O.9849; C91, § 27-2602; O.11,650)

Sec. 114-3635. Sheridan Avenue—First Street to Forty-fourth Street.

Sheridan Avenue, on the north side, from First Street to Second Avenue, two-hour parking 9:00 a.m. to 4:00 p.m.

Sheridan Avenue, on the north side, from Second Avenue to a point 715 feet west thereof, no parking 7:00 a.m. to 5:00 p.m., school days.

Sheridan Avenue, on the north side, from a point 800 feet west of Second Avenue to a point 120 feet west thereof, no parking 7:00 a.m. to 5:00 p.m., school days.

Sheridan Avenue, on the north side, from a point 715 feet west of Second Avenue to a point 85 feet west thereof, no parking any time.

Sheridan Avenue, on the south side, from Second Avenue to Sixth Avenue, no parking any time.

Sheridan Avenue, on both sides, from Twenty-fifth Street to Twenty-seventh Street, no parking any time.

Sheridan Avenue, on the north side, from Twenty-seventh Street to Thirty-sixth Street, no parking any time.

Sheridan Avenue, on the south side, from Thirty-fourth Street to a point 30 feet east thereof, no parking any time.

Sheridan Avenue, on the south side, from a point 60 feet west of Thirty-fifth Street to a point 60 feet west of Thirty-fifth Street, no parking any time.

Sheridan Avenue, on the south side, from Fortieth Place to a point 140 feet west of Beaver Avenue, no parking any time.

Sheridan Avenue, on the north side, from Fortieth Place to Forty-fourth Street, no parking any time.
(C62, § 30-1401; O.8084, 8227, 8615, 8661, 8738, 8844; C75, § 27-1434; O.9235, 9418; C79, § 27-1434; O.9886, 10,123; C85, § 27-1434; O.11,566; C91, § 27-2603; O.11,650, 11,760, 14,288)

Sec. 114-3636. Sheridan Avenue—Fifty-fourth Street to west city limits.

Sheridan Avenue, on the north side, from Fifty-fourth Street to Fifty-sixth Street, no parking any time.

Sheridan Avenue, on the south side, from Merle Hay Road to a point 50 feet west thereof, no parking any time.

Sheridan Avenue, on the north side, from Merle Hay Road to Sixty-second Street, no parking any time.

Sheridan Avenue, on the north side, from Westover Boulevard to the west city limits, no parking any time.
(C62, § 30-1402; O.8084; C75, C79, § 27-1435; O.9685, 10,598; C91, § 27-2604; O.11,650)

Sec. 114-3637. East Sheridan Avenue—First Street to east city limits.

East Sheridan Avenue, on the north side, from First Street to East Ninth Street, no parking any time.

East Sheridan Avenue, on the south side, from First Street to Oxford Street, no parking any time.

East Sheridan Avenue, on the south side, from Saylor Road to a point 100 feet west thereof, no parking any time.

East Sheridan Avenue, on the south side, from East Ninth Street to a point 50 feet east of East Fourteenth Street, no parking any time.

East Sheridan Avenue, on the north side, from a point 50 feet west of East Thirteenth Street to a point 50 feet east of East Thirteenth Street, no parking any time.

East Sheridan Avenue, on the north side, from a point 50 feet west of East Fourteenth Street to Idaho Street, no parking any time.

East Sheridan Avenue, on both sides, from Idaho Street to East Sixteenth Street, no parking any time.

East Sheridan Avenue, on both sides, from Sampson Street to Glenbrook Drive, no parking any time.

East Sheridan Avenue, on the north side, from Dixon Street to a point 810 feet east thereof, no parking any time.

East Sheridan Avenue, on the south side, from a point 170 feet west of East Twenty-third Street to a point 60 feet east of East Twenty-fifth Street, no parking any time.

East Sheridan Avenue, on the north side, from East Twenty-fifth Street to Avenue Frederick M. Hubbell, no parking any time.

East Sheridan Avenue, on the south side, from Avenue Frederick M. Hubbell to a point 95 feet west thereof, no parking any time.

East Sheridan Avenue, on the south side, from East Thirty-fifth Street to East Thirty-eighth Street, no parking any time.

East Sheridan Avenue, on both sides, from a point 50 feet west of East Fortieth Court to a point 50 feet east of East Fortieth Court, no parking any time.

East Sheridan Avenue, on the south side, from a point 60 feet west of East Forty-first Street to East Forty-first Street, no parking any time.

East Sheridan Avenue, on the south side, from a point 60 feet west of Williams Street to a point 40 feet east of Williams Street, no parking any time.

East Sheridan Avenue, on the north side, from Williams Street to East Forty-second Street, school bus loading and unloading 7:00 a.m. to 5:00 p.m. school days.

East Sheridan Avenue, on the north side, from East Forty-second Street to a point 75 feet east thereof, no parking any time.

East Sheridan Avenue, on the south side, from East Forty-second Street to a point 590 feet east thereof, no parking any time.

East Sheridan Avenue, on the north side, from East Forty-seventh Street to Brook View Drive, no parking any time.
(C62, § 30-1403; O.8084, 8586, 8695, 8717; C75, § 27-1436; O.9336; C79, § 27-1436; O.9685, 10,026, 10,123, 10,402, 10,598; C91, § 27-2605; O.11,650, 13,130; C00, § 114-3637; O.13,948, 14,371, 14,518 (installed 7/2/14, 7/12/18, 11/20/19), 15,207, 15,750, 16,171, 16,194, 16,215, 16,250, 16,304)

Sec. 114-3638. Sherman Boulevard—Douglas Avenue to Madison Avenue.

Sherman Boulevard, on the east side, from Douglas Avenue to Madison Avenue, no parking any time.

Sherman Boulevard, on the west side, from Douglas Avenue to a point 100 feet north thereof, no parking any time.
(C62, § 30-1404; O.8084; C75, C79, § 27-1437; C91, § 27-2606; O.11,650)

Sec. 114-3639. Sherrick Avenue—Sixty-second Street to west city limits.

Sherrick Avenue, on the south side, from Sixty-second Street to a point 50 feet west thereof, no parking any time.

Sherrick Avenue, on the south side, from a point 50 feet west of Sixty-second Street to a point 30 feet west thereof, handicap parking.

Sherrick Avenue, on the north side, from Sixty-second Street to a point 440 feet west thereof, no parking any time.

Sherrick Avenue, on the north side, from Sixty-seventh Street to the west city limits, no parking any time.

Sherrick Avenue, on the south side, from Sixty-seventh Street to a point 50 feet west thereof, no parking any time.
(C79, § 27-1437.01; O.9685; C91, § 27-2607; O.11,650, 13,613; C00, § 114-3639; O.14,518 (installed 9/16/19), 15,876, 16,171)

Sec. 114-3640. Sherwood Drive—Martin Luther King Jr Parkway to Madison Avenue.

Sherwood Drive, on the north side, from Martin Luther King Jr Parkway to Madison Avenue, no parking any time.
(C79, § 27-1437.02; O.9849; C91, § 27-2608; O.11,650, 11,935)

Sec. 114-3640.1. Shoreview Circle—East Army Post Road to dead end.

Shoreview Circle, on the south side, from East Army Post Road west to and including the cul-de-sac, no parking any time.
(O.13,948)

Sec. 114-3641. Shortview Drive—Elmwood Drive to St. John's Road.

Shortview Drive, on the west side, from Elmwood Drive to St. John's Road, no parking any time.
(C79, § 27-1437.03; O.9849, 10,144; C91, § 27-2609; O.11,650)

Sec. 114-3641.5. Shriver Avenue—Country Club Boulevard to Fifty-sixth Street.

Shriver Avenue, on the north side, from a point 290 feet east of Fifty-sixth Street to Fifty-sixth Street, no parking any time.

Shriver Avenue, on the south side, from a point 50 feet east of Fifty-sixth Street to Fifty-sixth Street, no parking any time.
(O.16,105, 16,515)

Sec. 114-3642. Sims Drive—East Thirty-third Court to East Thirty-fifth Street.

Sims Drive, on the south side, from East Thirty-third Court to East Thirty-fifth Street, no parking any time.
(C62, § 30-1405; O.8084; C75, C79, § 27-1438; C91, § 27-2610; O.11,650)

Sec. 114-3643. Skyline Drive—Lyndale Drive to dead end west of Forty-fourth Place.

Skyline Drive, on the north side, from Lyndale Drive to a point 180 feet west of Oaklyn Drive and any part of the cul-de-sac, no parking any time.

Skyline Drive, on the south side, from Oaklyn Drive to a point 60 feet east thereof, no parking any time.

Skyline Drive, on the south side, from Forty-fourth Place to a point 120 feet west thereof, and any part of the cul-de-sac, no parking any time.
(C79, § 27-1438.01; O.9849; C91, § 27-2611; O.11,650, 14,322)

Sec. 114-3644. Skeies Drive—East Twenty-seventh Court to East Twenty-eighth Street.

Skeies Drive, on the north side, from East Twenty-seventh Court to East Twenty-eighth Street, no parking any time.
(C62, § 30-1406; O.8084; C75, C79, § 27-1439; C91, § 27-2612; O.11,650)

Sec. 114-3645. Snyder Avenue—Forty-eighth Street to Sixty-first Street.

Snyder Avenue, on the north side, from Forty-eighth Place to Forty-ninth Street, no parking any time.

Snyder Avenue, on the south side, from Forty-eighth Street to Forty-ninth Street, no parking any time.

Snyder Avenue, on the south side, from Merle Hay Road to a point 50 feet west thereof, no parking any time.

Snyder Avenue, on the north side, from Merle Hay Road to Sixty-first Street, no parking any time.
(C75, § 27-1439.01; O.9374; C79, § 27-1439.01; O.9886, 10,498, 10,598; C91, § 27-2613; O.11,650)

Sec. 114-3645.1. East Southdale Drive—Indianola Avenue to East County Line Road.

East Southdale Drive, on the north and east sides, from Indianola Avenue to East county Line Road, no parking any time.
(C00, § 1140-3645.1; O.14,226)

Sec. 114-3646. Southlawn Drive—Southwest Twelfth Street to Fleur Drive.

Southlawn Drive, on the north side, from Southwest Twelfth Street to Southwest Thirteenth Place, no parking any time.

Southlawn Drive, on the north side, from Fleur Drive to a point 50 feet east thereof, no parking any time.

Southlawn Drive, on the south side, from Fleur Drive to a point 800 feet east thereof, no parking any time.
(C79, § 27-1439.02; O.9849, 10,516, 10,598; C91, § 27-2614; O.11,650)

Sec. 114-3646.1. East Southlawn Drive—Southeast Twenty-fourth Street to east city limits.

East Southlawn Drive, on the south side, from Southeast Twenty-fourth Street to the dead end east of Southeast Twenty-fourth Street, no parking any time.

East Southlawn Drive, on the north side, Southeast Thirty-third Street to east city limits, no parking any time.

East Southlawn Drive, on the south side, from the dead end west of Southeast Thirtieth Street to and including the cul-de-sac east of Southeast Thirty-first Court, no parking any time.
(O.13,973, 14,812, 14,833)

Sec. 114-3647. Southdale Drive—Southwest Ninth Street to dead end west of Southwest Eleventh Street.

Southdale Drive, on the south side, from Southwest Ninth Street to a point 70 feet west thereof, no parking any time.

Southdale Drive, on the north side, from Southwest Ninth Street to a point 150 feet west of Southwest Eleventh Street, no parking any time.
(C62, § 30-1407; O.8084; C75, § 27-1440; O.9362; C79, § 27-1440; O.10,598; C91, § 27-2615; O.11,650, 14,518 (installed 7/10/08))

Sec. 114-3648. Southview Drive—Amos Avenue to dead end south of Luster Lane.

Southview Drive, on the west side, from Amos Avenue to a point 440 feet south of Luster Lane, no parking any time.
(C79, § 27-1440.01; O.9685; C91, § 27-2616; O.11,650)

Sec. 114-3649. Spring Street—Southwest Ninth Street to Southwest Fourteenth Street.

Spring Street, on the north side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.

Spring Street, on the south side, from Southwest Ninth Street to a point 1500 feet west thereof, no parking any time.

Spring Street, on the south side, from Southwest Fourteenth Street to a point 50 feet east thereof, no parking any time.

Spring Street, on the north side, from Southwest Fourteenth Street to a point 310 feet east thereof and any part of the cul-de-sac, no parking any time.
(C79, § 27-1440.02; O.9886, 10,547, 10,598; C91, § 27-2617; O.11,650)

Sec. 114-3650. East Spring Street—Southeast Fifth Street to Southeast Thirty-second Street.

East Spring Street, on the south side, from Southeast Fifth Street to a point 50 feet east thereof, no parking any time.

East Spring Street, on the north side, from Southeast Fifth Street to Southeast Ninth Street, no parking any time.

East Spring Street, on the south side, from Southeast Thirtieth Street to Southeast Thirty-second Street, no parking any time.
(C79, § 27-1440.03; O.10,057, 10,675; C91, § 27-2618; O.11,650, 13,973)

Sec. 114-3650.5. Springwood Lane—Brook View Drive to East Fifty-second Street.

Springwood Lane, on the north side, from Brook View Drive to East Fifty-second Street, no parking any time.
(O.14,634)

Sec. 114-3651. State Avenue—East Twenty-third Street to East Thirty-third Street.

State Avenue, on the north side, from East Twenty-third Street to a point 50 feet east of East Twenty-third Street, no parking any time.

State Avenue, on the south side, from East Twenty-third Street to East Twenty-fourth Street, no parking any time.

State Avenue, on the north side, from a point 50 feet west of East Twenty-fourth Street to East Twenty-fourth Street, no parking any time.

State Avenue, on the south side, from East Twenty-sixth Street to and including the dead end turnaround east of East Twenty-eighth Street, no parking any time.

State Avenue, on the north side, from East Twenty-sixth Street to a point 50 feet east thereof, no parking any time.

State Avenue, on the north side, from a point 80 feet west of East Twenty-sixth Court to East Twenty-sixth Court, no parking any time.

State Avenue, on the south side, from East Twenty-ninth Street to East Thirty-third Street, no parking any time.

State Avenue, on the north side, from East Twenty-ninth Street to a point 50 feet east of East Thirtieth Street, no parking any time.

State Avenue, on the north side, from a point 50 feet west of East Thirty-second Street to a point 50 feet east of East Thirty-second Street, no parking any time.

State Avenue, on the north side, from a point 50 feet west of East Thirty-third Street to East Thirty-third Street, no parking any time.
(C62, § 30-1408; O.8084; C75, § 27-1441; O.9155; C79, § 27-1441; O.10,123, 10,316, 10,421, 10,540; C85, § 27-1441; O.11,256, 11,340, 11,381; C91, § 27-2619; O.11,650, 13,029, 13,218, 13,762, 16,230, 16,271, 16,334)

Sec. 114-3652. Stanton Avenue—Fleur Drive to Southwest Thirty-fourth Street.

Stanton Avenue, on the north side, from Fleur Drive to a point 50 feet west thereof, no parking any time.

Stanton Avenue, on the north side, from a point 160 feet west of Fleur Drive to a point 30 feet west thereof, no parking any time.

Stanton Avenue, on the south side, from Fleur Drive to Southwest Thirty-fourth Street, no parking any time.
(C79, § 27-1441.01; O.9672, 10,207, 10,598, 10,692; C91, § 27-2620; O.11,650)

Sec. 114-3652.1. Star View Street—East Army Post Road to East Pine Avenue.

Star View Street, on the west side, from Driftwood Avenue south to and including the cul-de-sac, no parking any time.

Star View Street, on the west side, from Moonlight Drive north to and including the cul-de-sac, no parking any time.

Star View Street, on the west side, from Moonlight Drive south to and including the cul-de-sac, no parking any time.
(O.13,948)

Sec. 114-3653. Stephenson Way—Chautauqua Parkway to Nash Drive.

Stephenson Way, on the north side, from Chautauqua Parkway to Nash Drive, no parking any time.

Stephenson Way, on the south side, from a point 50 feet east of Nash Drive to Nash Drive, no parking any time.
(C79, § 27-1441.02; O.10,123; C91, § 27-2621; O.11,650, 11,663)

Sec. 114-3653.5. Sterling Trace—Southeast Thirty-fourth Street to Southeast Thirty-fifth Street.

Sterling Trace, on the west side, from Southeast Thirty-fourth Street to and including the cul-de-sac north of Southeast Thirty-fifth Street, no parking any time.
(O.14,812)

Sec. 114-3654. South Union Street—Clay Street to Park Avenue.

South Union Street, on the east side, from East Dunham Avenue to East Edison Avenue, no parking any time.

South Union Street, on the west side, from Edison Avenue to a point 160 feet south thereof, school passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days.

South Union Street, on the west side, from a point 160 feet south of Edison Avenue to Columbus Avenue, bus loading and unloading 7:00 a.m. to 5:00 p.m. school days.

South Union Street, on the west side, from Columbus Avenue to Indianola Road, no parking 7:00 a.m. to 5:00 p.m. school days.

South Union Street, on the east side, from Livingston Avenue to Indianola Road, no parking any time.

South Union Street, on the east side, from Indianola Road to Hillside Avenue, no parking any time.

South Union Street, on both sides, from Hartford Avenue to Park Avenue, no parking any time.
(C62, § 30-1409; O.8084, 8293; C75, § 27-1442; O.9197; C79, § 27-1442; O.9849, 10,111; C91, § 27-2622; O.11,650, 11,892, 14,057, 14,491)

Sec. 114-3655. South Union Street—Park Avenue to Army Post Road.

South Union Street, on both sides, from Park Avenue to Leach Avenue, no parking any time.

South Union Street, on the west side, from Leach Avenue to Army Post Road, no parking any time.

South Union Street, on the east side, from East Leach Avenue to a point 255 feet south thereof, no parking any time.

South Union Street, on the east side from a point 255 feet south of East Leach Avenue to a point 350 feet south thereof, school passenger loading and unloading 7:00 a.m. to 5:00 p.m., school days.

South Union Street, on the east side from a point 605 feet south of East Leach Avenue to Army Post Road, no parking anytime.
(C62, § 30-1410; O.8084, 8108, 8730; C75, § 27-1443; O.8979, 9331; C79, § 27-1443; C91, § 27-2623; O.11,650, 16,255)

Sec. 114-3656. Stewart Street—East University Avenue to Kinsey Avenue.

Stewart Street, on the west side, from Easton Boulevard to Kinsey Avenue, no parking any time.

Stewart Street, on the east side, from a point 60 feet south of Kinsey Avenue to Kinsey Avenue, no parking any time.
(C75, § 27-1443.01; O.9219; C79, § 27-1443.01; O.10,123, 10,309; C91, § 27-2624; O.11,650, 11,688, 16,327)

Sec. 114-3656.03. Stream Side Circle—from Brook View Drive to west cul-de-sac.

Stream Side Circle, on the north side, from Brook View Drive to and including the cul-de-sac to the west, no parking any time.
(O.14,322)

Sec. 114-3657. Summit Street—Irving Street to dead end north.

Summit Street, on the west side, from Irving Street to a point 50 feet north thereof, no parking any time.

Summit Street, on the east side, from Irving Street to a point 400 feet north thereof, no parking any time.
(C79, § 27-1443.02; O.10,111, 10,162; C85, § 27-1443.02; O.10,747; C91, § 27-2625; O.11,650)

Sec. 114-3658. Summit Vista Drive—Southwest Twenty-eighth Street to dead end west of Southwest Thirty-second Street.

Summit Vista Drive, on the south side, from Southwest Twenty-eighth Street to Southwest Thirty-first Street, no parking any time.

Summit Vista Drive, on the north side, from Southwest Thirty-first Street to a point 500 feet west of Southwest Thirty-second Street, no parking any time.
(C79, § 27-1443.03; O.10,207; C91, § 27-2626; O.11,650)

Sec. 114-3659. Sunset Drive—Fleur Drive to Southwest Twenty-eighth Street.

Sunset Road, on the east side, from George Flagg Parkway to a point 415 feet south thereof, no parking any time.

Sunset Road, on the west and north sides, from George Flagg Parkway to Southwest Twenty-third Street, no parking any time.

Sunset Road, on the north side, from Southwest Twenty-third Street to Southwest Twenty-eighth Street, no parking any time.

Sunset Road, on the south side, from Southwest Twenty-third Street to a point 215 feet east of Southwest Twenty-eighth Street, no parking any time.
(C62, § 30-1411; O.8084; C75, § 27-1444; O.9372; C79, § 27-1444; O.10,207; C91, § 27-2627; O.11,650, 14,080, 14,764)

Sec. 114-3659.05. Sweetwater Drive—Lake Hill Drive to East Pine Avenue.

Sweetwater Drive, on the east and south side from Lake Hill Drive to the cul-de-sac north of Three Lakes Parkway, no parking any time.

Sweetwater Drive, on the west side, from the cul-de-sac north of Three Lakes Parkway to East Pine Avenue and including all of the cul-de-sac, no parking any time.
(O.14,322, 14,370, 16,475)

Sec. 114-3660. Taylor Street—Summit Street to Southwest Ninth Street.

Taylor Street, on the north side, from Southwest Ninth Street to a point 145 feet east thereof, no parking any time.

Taylor Street, on the north side, from Holmes Street to a point 50 feet west thereof, no parking any time.

Taylor Street, on the south side, from Holmes Street to Southwest Ninth Street, no parking any time.
(C62, § 30-1411.01; O.8825; C75, § 27-1444.01; O.8974, 9372; C79, § 27-1444.01; C85, § 27-1444.01; O.11,161; C91, § 27-2628; O.11,650)

Sec. 114-3661. Terrace Drive—Twenty-eighth Street to Fifty-eighth Street.

Terrace Drive, on the south and west side, from Twenty-eighth Street to Thirty-first Street, no parking any time.

Terrace Drive, on the north side, from Thirty-first Street to Thirty-fourth Street, no parking any time.

Terrace Drive, on the north side, from Fifty-eighth Street to a point 425 feet east thereof, no parking any time.

Terrace Drive, on the south side, from a point 75 feet east of Fifty-eighth Street to Fifty-eighth Street, no parking any time.
(C62, § 30-1412; O.8084; C75, C79, § 27-1445; O.9849, 10,207; C85, § 27-1445; O.11,422; C91, § 27-2629; O.11,650)

Sec. 114-3662. Terrace Road—Grand Avenue to Twenty-eighth Street.

Terrace Road, on the east side, from Grand Avenue to a point 295 feet south thereof, no parking any time.

Terrace Road, on the west side, from Grand Avenue to Park Place, no parking any time.

Terrace Road, on the east and south sides, from Park Place to Twenty-eighth Street, no parking any time.
(C62, § 30-1413; O.8084; C75, § 27-1446; O.9402, 9406; C79, § 27-1446; O.10,207; C91, § 27-2630; O.11,650)

Sec. 114-3663. Thomas Beck Road—Indianola Road to Bell Avenue.

Thomas Beck Road, on both sides, from Indianola Road to Bell Avenue, no parking any time.
(C62, § 30-1414; O.8084; C75, C79, § 27-1447; C91, § 27-2631; O.11,650, 14,057)

Sec. 114-3664. Thompson Avenue—East Ninth Street to East Thirty-fifth Street.

Thompson Avenue, on the south side, from East Ninth Street to East Fourteenth Street, no parking any time.

Thompson Avenue, on the north side, from a point 60 feet west of York Street to a point 50 feet east of York Street, no parking any time.

Thompson Avenue, on the south side, from East Fourteenth Street to a point 50 feet east thereof, no parking any time.

Thompson Avenue, on the north side, from East Fourteenth Street to a point 50 feet east thereof, no parking any time.

Thompson Avenue, on the north side, from East Fourteenth Street to a point 75 feet west thereof, no parking any time.

Thompson Avenue, on the south side, from Stewart Street to DeWolf Street, no parking any time.

Thompson Avenue, on the south side, from East Twenty-second Street to East Twenty-fifth Street, no parking any time.

Thompson Avenue, on the north side, from a point 50 feet west of East Twenty-third Street to a point 50 feet east of East Twenty-third Street, no parking any time.

Thompson Avenue, on the north side, from a point 50 feet west of Lay Street to Lay Street, no parking any time.

Thompson Avenue, on the south side, from East Twenty-seventh Street to East Twenty-eighth Street, no parking any time.

Thompson Avenue, on the north side, from East Thirty-third Street to East Thirty-fourth Street, no parking any time.

Thompson Avenue, on the south side, from East Thirty-fourth Street to East Thirty-fifth Street, no parking any time.
(C62, § 30-1415; O.8084; C75, § 27-1448; O.8974; C79, § 27-1448; O.10,123, 10,598; C91, § 27-2632; O.11,650, 13,407, 13,640, 14,518 (installed 7/12/18), 16,171, 16,370)

Sec. 114-3665. Thornton Avenue—South Union Street to Southwest Sixty-third Street.

Thornton Avenue, on the north side, from South Union Street to a point 170 feet west thereof, no parking any time.

Thornton Avenue, on the south side, from South Union Street to Southwest Thirteenth Street, no parking any time.

Thornton Avenue, on the north side, from Southwest Second Street to a point 85 feet east of Southwest Fourth Street, on parking any time.

Thornton Avenue, on the north side, from a point 150 feet east of Southwest Ninth Street to a point 50 feet west of Southwest Ninth Street, no parking any time.

Thornton Avenue, within the cul-de-sac east of Southwest Fourteenth Street, no parking any time.

Thornton Avenue, on the south side, from a point 200 feet east of Southwest Twenty-fourth Street and any part of the cul-de-sac to Southwest Twenty-eighth Street, no parking any time.

Thornton Avenue, on the north side, from Southwest Twenty-eighth Street to Southwest Thirty-first Street, no parking any time.

Thornton Avenue, on the south side, from a point 400 feet east of Southwest Thirty-seventh Street and any part of the cul-de-sac to a point 140 feet west of Southwest Thirty-seventh Street, no parking any time.

Thornton Avenue, on the north side, from Southwest Fifty-sixth Street to Southwest Sixty-third Street, no parking any time.

Thornton Avenue, on the south side, from Southwest Fifty-sixth Street to a point 100 feet west thereof, no parking any time.

Thornton Avenue, on the south side, from a point 50 feet east of Southwest Fifty-sixth Street to a point 50 feet west of Southwest Fifty-sixth Street, no parking any time.

Thornton Avenue, on the south side, from Southwest Sixty-third Street to a point 200 feet east thereof, no parking any time.
(C62, § 30-1416; O.8084, 8100, 8167; C75, § 27-1449; O.9177, 9503; C79, § 27-1449; O.10,111, 10,207, 10,250; C91, § 27-2633; O.11,650, 13,529, 13,698, 13,933, 15,577)

Sec. 114-3666. East Thornton Avenue—South Union Street to dead end east of Southeast Twenty-fifth Street.

East Thornton Avenue, on the north side, from South Union Street to a point 75 feet east of East Thornton Avenue, no parking any time.

East Thornton Avenue, on the south side, from South Union Street to Southeast Eighth Street, no parking any time.

East Thornton Avenue, on the north side, from a point 50 feet west of Southeast First Court to a point 50 feet east of Southeast First Court, no parking any time.

East Thornton Avenue, on the north side, from Southeast Tenth Street to Southeast Fourteenth Street, no parking any time.

East Thornton Avenue, on the south side, from Southeast Tenth Street to a point 75 feet east thereof, no parking any time.

East Thornton Avenue, on the south side, from a point 50 feet west of Southeast Twelfth Street to a point 50 feet east of Southeast Twelfth Street, no parking any time.

East Thornton Avenue, on the south side, from Southeast Fourteenth Street to a point 75 feet west thereof, no parking any time.

East Thornton Avenue, on the north side, from Southeast Eighteenth Street to Southeast Nineteenth Street, no parking any time.

East Thornton Avenue, on the north side, from Southeast Twenty-fifth Street to a point 140 feet east thereof and any part of the cul-de-sac, no parking any time.
(C62, § 30-1417; O.8084, 8244, 8310; C75, C79, § 27-1450; O.10,111, 10,598; C85, § 27-1450; O.10,895, 11,552; C91, § 27-2634; O.11,650, 13,239, 13,780, 16,174, 16,215)

Sec. 114-3667. Thornton Court—Southeast Twentieth Street to dead end west.

Thornton Court, on the south side, from Southeast Twentieth Street to a point 350 feet west thereof and any part of the cul-de-sac, no parking any time.
(C91, § 27-2634.05; O.13,239, 14,254, 14,385)

Sec. 114-3668. Thornton Drive—Fleur Drive to Southwest Twenty-fourth Street.

Thornton Drive, on the north side, from Fleur Drive to a point 50 feet west thereof, no parking any time.

Thornton Drive, on the south and west side, from Fleur Drive to Southwest Twenty-fourth Street, no parking any time.
(C79, § 27-1450.01; O.10,207, 10,598; C91, § 27-2635; O.11,650)

Sec. 114-3668.1. Three Lakes Parkway—East Army Post Road to East Pine Avenue.

Three Lakes Parkway, on the east side, from East Army Post Road south to the dead end, no parking any time.

Three Lakes Parkway, on the west side, from a point 110 feet north of Moonlight Drive to Moonlight Drive, no parking any time.
(C00, § 114-3668.1; O.13,948, 14,518 (installed 1/25/22), 16,171)

Sec. 114-3669. Tichenor Street—Dead end south of Alpha Avenue to Guthrie Avenue.

Tichenor Street, on the east side, from the dead end south of Alpha Avenue to Guthrie Avenue, no parking any time.
(C62, § 30-1418; O.8084; C75, C79, § 27-1451; C91, § 27-2636; O.11,650, 15,876)

Sec. 114-3670. Tiffin Avenue—Second Avenue to East Fortieth Court.

Tiffin Avenue, on the north side, from Second Avenue to East Ninth Street, no parking any time.

Tiffin Avenue, on the south side, from East Ninth Street to East Twelfth Street, no parking any time.

Tiffin Avenue, on the north side, from a point 50 feet west of East Twelfth Street to East Twelfth Street, no parking any time.

Tiffin Avenue, on the south side, from East Twelfth Street to a point 120 feet east thereof, no stopping or standing.

Tiffin Avenue, on the south side, from a point 120 feet east of East Twelfth Street to a point 130 feet east thereof, school bus loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Tiffin Avenue, on the south side, from a point 70 feet west of East Thirteenth Street to East Thirteenth Street, no stopping or standing.

Tiffin Avenue, on the north side, from East Twelfth Street to East Thirteenth Street, no stopping or standing 7:00 a.m. to 5:00 p.m. school days.

Tiffin Avenue, on the south side, from East Thirteenth Street to East Fourteenth Street, no parking any time.

Tiffin Avenue, on the north side, from a point 50 feet west of East Fourteenth Street to East Fourteenth Street, no parking any time.

Tiffin Avenue, on the north side, from East Fourteenth Street to Villa Vista Drive, no parking any time.

Tiffin Avenue, on the south side, from East Fourteenth Street to a point 85 feet east thereof, no parking any time.

Tiffin Avenue, on the south side, from East Twenty-fourth Street to East Twenty-ninth Street, no parking any time.

Tiffin Avenue, on the north side, from East Twenty-fourth Street to a point 60 feet east thereof, no parking any time.

Tiffin Avenue, on the north side, from a point 50 feet west of East Twenty-fifth Street to East Twenty-fifth Street, no parking any time.

Tiffin Avenue, on the north side, from a point 40 feet west of East Twenty-ninth Street to East Twenty-ninth Street, no parking any time.

Tiffin Avenue, on both sides, from East Twenty-ninth Street to a point 50 feet east thereof, no parking any time.

Tiffin Avenue, on the south side, from a point 50 feet west of Avenue Frederick M. Hubbell to Avenue Frederick M. Hubbell, no parking any time.

Tiffin Avenue, on the north side, from a point 135 feet west of Avenue Frederick M. Hubbell to Avenue Frederick M. Hubbell, no parking any time.

Tiffin Avenue, on both sides, from Avenue Frederick M. Hubbell to East Thirty-second Court, no parking any time.

Tiffin Avenue, on the north side, from East Thirty-eighth Street to East Fortieth Court, no parking any time.

Tiffin Avenue, on the south side, from East Thirty-eighth Street to a point 65 feet east thereof, no parking any time.
(C62, § 30-1419; O.8084, 8453, 8510; C75, § 27-1452; O.8979, 9387, 9471; C79, § 27-1452; 10,111, 10,131, 10,292, 10,598; C85, § 27-1452; O.11,199; C91, § 27-2637; O.11,650, 11,884; C00, § 114-3670; O.14,019, 14,518 (installed 10/24/16, 10/4/17, 10/25/18, 3/17/20), 16,171, 16,311)

Sec. 114-3670.1. Timber Hill Court—Riverwoods Avenue to cul-de-sac south.

Timber Hill Court, on the west side, from Riverwoods Avenue south to and including the cul-de-sac, no parking any time.
(O.13,958)

Sec. 114-3671. Timber Lane—East Fortieth Street to east city limits.

Timber Lane, on the south side, from East Fortieth Street to East Fortieth Court, no parking any time.

Timber Lane, on the south side, from Williams Street to the east city limits, no parking any time.

Timber Lane, on the north side, from Williams Street to a point 60 feet east thereof, no parking any time.
(C62, § 30-1419.01; O.8712; C75, C79, § 27-1452.01; O.9685; C91, § 27-1638; O.11,650, 16,418)

Sec. 114-3671.1. Timberwolf Lane—Moonlight Drive to dead end.

Timberwolf Lane, on the north side, from Moonlight Drive west to and including the cul-de-sac, no parking any time.

Timberwolf Lane, on the west side, from a point 50 feet north of Moonlight Drive to Moonlight Drive, no parking any time.
(C00, § 114-3671.1; O.13,948, 14,518 (installed 1/25/22), 16,171)

Sec. 114-3672. East Titus Avenue—South Union Street to Southeast Thirty-second Street.

East Titus Avenue, on the north side, from South Union Street to a point 50 feet east thereof, no parking any time.

East Titus Avenue, on the north side, from a point 315 feet east of South Union to a point 270 feet east thereof, no parking any time.

East Titus Avenue, on the south side, from South Union Street to Southeast Seventh Street, no parking any time.

East Titus Avenue, on the north side, from Indianola Avenue to Southeast Thirty-second Street, no parking any time.

East Titus Avenue, on the south side, from Southeast Thirtieth Street to a point 30 feet east thereof, no parking any time.

East Titus Avenue, on the south side, from a point 550 feet west of Southeast Thirty-second Street to a point 335 feet east thereof, no parking any time.
(C75, § 27-1452.02; O.9155; C79, § 27-1452.02; O.9886, 10,547; C91, § 27-2639; O.11,650, 13,973, 14,226, 15,025, 16,009)

Sec. 114-3673. Titus Avenue—South Union Street to Southwest Thirteenth Street.

Titus Avenue, on the north side, from South Union Street to Southwest Fifth Street, no parking any time.

Titus Avenue, on the north side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.

Titus Avenue, on the south side, from Southwest Ninth Street to Southwest Thirteenth Street, no parking any time.
(C75, § 27-1452.03; O.9158, 9330; C79, § 27-1452.03; O.9886, 10,598; C91, § 27-2640; O.11,650)

Sec. 114-3674. Tomlin Lane—Guthrie Avenue to Arthur Avenue.

Tomlin Lane, on the east side, from Guthrie Avenue to Arthur Avenue, no parking any time.

Tomlin Lane, on the west side, from Guthrie Avenue to a point 50 feet north thereof, no parking any time.
(C79, § 27-1452.04; O.9795, 10,123; C91, § 27-2641; O.11,650, 13,391)

Sec. 114-3675. Tonawanda Drive—Grand Avenue to Forty-second Street.

Tonawanda Drive, on the east side, from Grand Avenue to a point 75 feet south thereof, no parking any time.

Tonawanda Drive, on the east side, from a point 195 feet south of Grand Avenue to a point 105 feet south thereof, no parking any time.

Tonawanda Drive, on the north side, from Forty-second Street to a point 1200 feet east thereof, no parking any time.
(C62, § 30-1420; O.8084; C75, C79, § 27-1453; O.9849; C91, § 27-2642; O.11,650, 13,102)

Sec. 114-3676. Tonka Avenue—Southwest Thirty-first Street to Southwest Sixty-third Street.

Tonka Avenue, on the south side, from Southwest Fifty-ninth Street to a point 100 feet west thereof, no parking any time.

Tonka Avenue, on both sides, from Southwest Sixty-third Street to a point 50 feet east thereof, no parking any time.
(C62, § 30-1420.01; O.8250, 8339; C75, C79, § 27-1453.01; O.10,598; C91, § 27-2643; O.11,650)

Sec. 114-3677. Trisha Avenue—East Tenth Street to dead end east.

Trisha Avenue, on the south side, from East Tenth Street to a point 650 feet east thereof, no parking any time.
(C79, § 27-1453.02; O.9849; C91, § 27-2644; O.11,650)

Sec. 114-3678. Trowbridge Avenue—Southwest Fifth Street to Southwest Ninth Street.

Trowbridge Avenue, on the south side, from Southwest Fifth Street to Southwest Ninth Street, no parking any time.

Trowbridge Avenue, on the north side, from Southwest Ninth Street to a point 50 feet east thereof, no parking any time.
(C62, § 30-1421; O.8084; C75, C79, § 27-1454; O.9658, 9886, 10,598; C91, § 27-2645; O.11,650)

Sec. 114-3679. East Trowbridge Street—Southeast Second Street to Southeast Seventh Street.

East Trowbridge Street, on the south side, from Southeast Second Street to Southeast Third Street, no parking any time.

East Trowbridge Street, on the north side, from Southeast Third Street to Southeast Fourth Court, no parking any time.

East Trowbridge Street, on the north side, from Southeast Fifth Street to a point 200 feet west thereof, no parking any time.

East Trowbridge Street, on the north side, from Southeast Sixth Street to Southeast Seventh Street, no parking any time.
(C75, § 27-1454.01; O.9464, 9518; C79, § 27-1454.01; O.9886, 10,035, 10,278, 10,316; C85, § 27-1454.01; O.11,420; C91, § 27-2646; O.11,650)

Sec. 114-3680. Truber Place—East Miller Avenue to Fleetwood Drive.

Truber Place, on the east side, from East Miller Avenue to Fleetwood Drive, no parking any time.
(C79, § 27-1454.02; O.10,111; C91, § 27-2647; O.11,650, 14,339)

Sec. 114-3681. Reserved.

Editor's note—Ord. No. 14,437, § 1, adopted April 25, 2005, repealed § 114-3681, which pertained to Tuttle Street—Southwest Second Street to Southwest Third Street and derived from Code 1991, § 27-2647.05; and Ord. No. 11,725.

Sec. 114-3682. Tuttle Street—Southwest Fifth Street to Southwest Fourteenth Street.

Tuttle Street, on the south side, from Southwest Fifth Street to Southwest Ninth Street, no parking any time.

Tuttle Street, on the north side, from Southwest Sixth Street to a point 75 feet east thereof, no parking any time.

Tuttle Street, on the north side, from Southwest Ninth Street to a point 70 feet west thereof, no parking any time.

Tuttle Street, on the south side, from Southwest Ninth Street to a point 75 feet west thereof, no parking any time.

Tuttle Street, on both sides, from Southwest Eleventh Street to a point 50 feet east thereof, no parking any time.

Tuttle Street, on the south side, from Southwest Twelfth Street to a point 60 feet west thereof, no parking any time.

Tuttle Street, on the north side, from a point 300 feet west of Southwest Twelfth Street to Southwest Fourteenth Street, no parking any time.
(C62, § 30-1422; O.8084, 8839; C75, C79, § 27-1455; O.10,402; C91, § 27-2648; O.11,650, 11,860, 11,951, 13,176, 15,486, 15,858)

Sec. 114-3683. Twana Drive—Twenty-ninth Street to Fifty-fourth Street.

Twana Drive, on the north side, from and including the cul-de-sac at Twenty-ninth Street to Lower Beaver Road, no parking any time.

Twana Drive, on the south side, from Lower Beaver Road to a point 50 feet east thereof, no parking any time.

Twana Drive, on the north side, from Thirty-eighth Street to a point 150 feet west of Fortieth Street, no parking any time.

Twana Drive, on the north side, from a point 50 feet east of Forty-sixth Street to a point 50 feet west of Forty-sixth Street, no parking any time.

Twana Drive, on the south side, from a point 100 feet east of Forty-eighth Street to Beaver Avenue, no parking any time.

Twana Drive, on the south side, from Forty-eighth Street to Fifty-first Street, no parking any time.

Twana Drive, on the north side, from Fifty-first Street to a point 700 feet west thereof, no parking any time.
(C62, § 30-1422.01; O.8412, 8443; C75, C79, § 27-1455.01; O.9685, 9849; C91, § 27-2649; O.11,650, 13,218, 13,610, 13,727, 14,533, 14,634, 14,833)

Sec. 114-3683.5. East Twana Drive—East Forty-Fifth Street to East Forty-Sixth Street.

East Twana Drive, on the south side, from East Forty-Fifth Street to East Forty-Sixth Street, no parking any time.

East Twana Drive, on the north side, from East Forty-Fifth Street to a point 80 feet east of thereof, including the cul-de-sac, no parking any time.

East Twana Drive, on the north side, from a point 50 feet east of East Forty-Sixth Street to East Forty-Sixth Street, no parking any time.
(O.16,539)

Sec. 114-3684. University Avenue—Illinois Street to Sixth Avenue.

University Avenue, on both sides, from Illinois Street to Sixth Avenue, no parking any time.
(C62, § 30-1423; O.8084; C75, C79, § 27-1456; C91, § 27-2650; O.11,650)

Sec. 114-3685. University Avenue—Sixth Avenue to Seventh Street.

University Avenue, on both sides, from Sixth Avenue to Seventh Street, no parking any time.
(C62, § 30-1424; O.8084; C75, § 27-1457; O.9595; C79, § 27-1457; O.9704; C85, § 27-1457; O.11,437; C91, § 27-2651; O.11,650)

Sec. 114-3686. University Avenue—Seventh Street to Thirteenth Street.

University Avenue, on the south side, from Seventh Street to Tenth Street, no parking any time.

University Avenue, on the south side, from Tenth Street to Eleventh Street, no parking 7:00 a.m. to 9:00 a.m.

University Avenue, on the south side, from Tenth Street to Eleventh Street, no parking 4:00 p.m. to 6:00 p.m.

University Avenue, on the north side, from Seventh Street to Eighth Street, no parking any time.

University Avenue, on the north side, from Eighth Street to Ninth Street, no parking 7:00 a.m. to 9:00 a.m.

University Avenue, on the north side, from Eighth Street to Ninth Street, no parking 4:00 p.m. to 6:00 p.m.

University Avenue, on the north side, from Ninth Street to Thirteenth Street, no parking any time.

University Avenue, on the south side, from Thirteenth Street to a point 120 feet east thereof, no parking any time.

University Avenue, on the south side, from Eleventh Street to a point 30 feet east of Twelfth Street, no parking any time.
(C62, § 30-1425; O.8084; C75, C79, § 27-1458; C85, § 27-1459; O.11,372, 11,437; C91, § 27-2652; O.11,650)

Sec. 114-3687. University Avenue—Thirteenth Street to Martin Luther King Jr Parkway.

University Avenue, on both sides, from Thirteenth Street to Fifteenth Street, no parking 7:00 a.m. to 9:00 a.m.

University Avenue, on both sides, from Thirteenth Street to Fifteenth Street, no parking 4:00 p.m. to 6:00 p.m.

University Avenue, on both sides, from Fifteenth Street to Martin Luther King Jr Parkway, no parking any time.
(C62, § 30-1426; O.8084, 8217; C75, C79, § 27-1459; C91, § 27-2653; O.11,650, 11,935)

Sec. 114-3688. University Avenue—Martin Luther King Jr Parkway to Twenty-third Street.

University Avenue, on both sides, from Martin Luther King Jr Parkway to Twenty-first Street, no parking any time.

University Avenue, on the south side, from Twenty-first Street to a point 75 feet east of Twenty-third Street, no parking 7:00 a.m. to 9:00 a.m.

University Avenue, on the north side, from Twenty-first Street to a point 75 feet east of Twenty-third Street, no parking 4:00 p.m. to 6:00 p.m.

University Avenue, on both sides, from Twenty-third Street to a point 75 feet east thereof, no parking any time.
(C62, § 30-1427; O.8084, 8217; C75, C79, § 27-1460; O.10,476; C91, § 27-2654; O.11,650, 11,935)

Sec. 114-3689. University Avenue—Twenty-third Street to Twenty-fifth Street.

University Avenue, on the north side, from Twenty-third Sreet to a point 75 feet west thereof, no parking any time.

University Avenue, on the south side, from Twenty-third Street to a point 70 feet west thereof, no parking any time.

University Avenue, on the south side, from a point 70 feet west of Twenty-third Street to a point 65 feet east of Twenty-fifth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

University Avenue, on the south side, from Twenty-fifth Street to a point 65 feet east thereof, no parking any time.

University Avenue, on the north side, from a point 75 feet west of Twenty-third Street to a point 200 feet east of Twenty-fourth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

University Avenue, on the north side, from Twenty-fourth Street to a point 75 feet west thereof, no parking any time.

University Avenue, on the north side, from a point 75 feet west of Twenty-fourth Street to Twenty-fifth Street, two-hour parking 9:00 a.m. to 4:00 p.m.
(C62, § 30-1428; O.8084, 8361, 8738; C75, § 27-1461; O.8974, 9461, 9524; C79, § 27-1461; O.9798, 10,476, 10,540; C91, § 27-2655; O.11,650; C00, § 114-3689; O.14,518 (installed 4/14/11), 14,818, 16,171)

Sec. 114-3690. University Avenue—Twenty-fifth Street to Twenty-eighth Street.

University Avenue, on the south side, from Twenty-fifth Street to a point 40 feet west thereof, no parking any time.

University Avenue, on the south side, from a point 40 feet west of Twenty-fifth Street to a point 60 feet west thereof, two-hour parking, 9:00 a.m. to 4:00 p.m.

University Avenue, on the south side, from a point 100 feet west of Twenty-fifth Street to a point 45 feet west thereof, commercial loading zone.

University Avenue, on the south side, from a point 145 feet west of Twenty-fifth Street to Twenty-seventh Street, two-hour parking, 9:00 a.m. to 4:00 p.m.

University Avenue, on the south side, from Twenty-seventh Street to a point 75 feet west thereof, no parking any time.

University Avenue, on the south side, from a point 75 feet west of Twenty-seventh Street to Twenty-eighth Street, two-hour parking, 9:00 a.m. to 4:00 p.m.

University Avenue, on the north side, from Twenty-fifth Street to Twenty-eighth Street, no parking any time.
(C62, § 30-1429; O.8084; C75, C79, § 27-1462; O.10,591; C91, § 27-2656; O.11,650; C00, § 114-3690; O.14,518 (installed 4/11/11), 15,934, 16,004, 16,013, 16,171)

Sec. 114-3691. University Avenue—Twenty-eighth Street to Thirty-first Street.

University Avenue, on the south side, from Twenty-eighth Street to a point 465 feet west thereof, two-hour parking, 9:00 a.m. to 4:00 p.m.

University Avenue, on the south side, from a point 465 feet west of Twenty-eighth Street to Twenty-ninth Street, no parking any time.

University Avenue, on the south side, from Twenty-ninth Street to a point 80 feet west thereof, no parking any time.

University Avenue, on the south side, from a point 80 feet west of Twenty-ninth Street to a point 195 feet west thereof, two-hour parking, 9:00 a.m. to 4:00 p.m.

University Avenue, on the south side, from a point 270 feet west of Twenty-ninth Street to Thirty-first Street, no parking any time.

University Avenue, on the north side, from Twenty-eighth Street to Thirty-first Street, no parking any time.
(C62, § 30-1430; O.8084, 8572, 8717; C75, § 27-1463; O.8994, 9595; C79, § 27-1463; C85, § 27-1463; O.10,958, 11,267; C91, § 27-2657; O.11,650, 13,332, 14,023, 14,075, 14,704, 14,830, 14,923, 15,934, 16,004, 16,013)

Sec. 114-3692. University Avenue—Thirty-first Street to Fifty-fifth Street.

University Avenue, on the north side, from Thirty-first Street to a point 155 feet west of Thirty-fifth Street, no parking any time.

University Avenue, on the south side, from Thirty-first Street to a point 75 feet east of Forty-first Street, no parking any time.

University Avenue, on the north side, from a point 155 west of Thirty-fifth Street to a point 115 feet east of Thirty-seventh Street, two-hour parking 9:00 a.m. to 9:00 p.m.

University Avenue, on the north side, from a point 115 feet east of Thirty-seventh Street to a point 130 feet west of Forty-first Street, no parking any time.

University Avenue, on the south side, from a point 75 feet east of Forty-first Street to a point 35 feet east of Forty-first Street, loading zone, 20 minute limit.

University Avenue, on the south side, from a point 35 feet east of Forty-first Street to a point 160 feet west of Forty-first Street, no parking any time.

University Avenue, on the south side, from a point 160 feet west of Forty-first Street to a point 155 feet east of Forty-second Street, bus loading and unloading.

University Avenue, on the south side, from a point 155 feet east of Forty-second Street to a point 55 feet west of Polk Boulevard, no parking any time.

University Avenue, on the north side, from a point 65 feet east of Forty-second Street to a point 140 feet west of Forty-seventh Street, no parking any time.

University Avenue, on the north side, from a point 140 feet west of Forty-seventh Street to a point 120 feet west thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

University Avenue, on the south side, from a point 55 feet west of Polk Boulevard to a point 75 feet west thereof, two-hour parking 9:00 a.m. to 4:00 p.m.

University Avenue, on the south side, from a point 130 feet west of Polk Boulevard to a point 20 feet west thereof, is designated a handicapped parking space and is subject to the same prohibition as is found in section 114-616(a) of this Code.

University Avenue, on the north side, from a point 50 feet east of Forty-eighth Street to a point 110 feet west of Forty-eighth Street, no parking any time.

University Avenue, on the south side, from a point 50 feet east of Forty-eighth Street to a point 450 feet west of Forty-eighth Street, no parking any time.

University Avenue, on the north side, from a point 555 feet west of Forty-eighth Street to Fifty-fifth Street, no parking any time.

University Avenue, on the south side, from a point 570 feet west of Forty-eighth Street to Fifty-fifth Street, no parking any time.
(C62, § 30-1431; O.8084, 8320, 8355; C75, C79, § 27-1464; O.9693, 10,272; C85, § 27-1464; O.10,971, 11,024, 11,186, 11,248, 11,278; C91, § 27-2658; O.11,650; C00, § 114-3692; O.14,023, 14,518 (installed 4/14/11, 1/3/12), 16,171, 16,511)

Sec. 114-3693. Reserved.

Editor's note—Ord. No. 16,511, § 1, adopted Oct. 20, 2025, repealed § 114-3694, which pertained to University Avenue—Forty-second Street to Polk Boulevard and derived from Code 1962, § 30-1432; Ord. No. 8084; Ord. No. 8283; Code 1975; Code 1979, § 27-1465; Code 1991, § 27-2659; Ord. No. 11,650; Ord. No. 14,023.

Sec. 114-3694. University Avenue—Fifty-fifth Street to Sixty-third Street.

University Avenue, on the north side, from Fifty-Fifth to Sixty-third Street, no parking any time.

University Avenue, on the south side, Fifty Fifth Street to a point 100 feet west of Fifty-ninth Street, no parking any time.

University Avenue, on the south side, from a point 100 feet west of Fifty-ninth Street to a point 225 feet west thereof, school bus loading and unloading, 7:00 a.m. to 5:00 p.m. school days.

University Avenue, on the south side, from a point 335 feet west of Fifty-ninth Street to Sixty-third Street, no parking any time.
(C62, § 30-1433; O.8084; C75, C79, § 27-1466; C91, § 27-2660; O.11,650, 13,323; C00, § 114-3694; O.13,869, 14,518 (installed 3/8/16), 15,052, 15,807, 16,171, 16,511)

Sec. 114-3695. East University Avenue—Illinois Street to east city limits.

East University Avenue, on both sides, from Illinois Street to the east city limits, no parking any time.
(C62, § 30-1434; O.8084; C75, C79, § 27-1467; C91, § 27-2661; O.11,650)

Sec. 114-3696. East University Court—East Twentieth Court to East Twenty-first Street.

East University Court, on the south side, from East Twentieth Court to East Twenty-first Street, no parking any time.
(C79, § 27-1467.01; O.10,123; C91, § 27-2662; O.11,650)

Sec. 114-3697. Urbandale Avenue—Martin Luther King Jr Parkway to Forty-fourth Street.

Urbandale Avenue, on both sides, from Martin Luther King Jr Parkway to Thirtieth Street, no parking any time.

Urbandale Avenue, on both sides, from Leado Avenue to Thirty-fourth Street, no parking any time.

Urbandale Avenue, on the south side, from a point 120 feet west of Thirty-fourth Street to Thirty-fourth Street, no parking any time.

Urbandale Avenue, on the south side, from Thirty-eighth Street to a point 75 feet east thereof, no parking any time.

Urbandale Avenue, on the south side, from Thirty-eighth Street to a point 75 feet west thereof, no parking any time.

Urbandale Avenue, on the south side, from a point 185 feet east of Beaver Avenue to Thirty-Ninth Street, no parking any time.

Urbandale Avenue, on the north side, from a point 70 feet east of Beaver Avenue to Forty-first Place, no parking any time.

Urbandale Avenue, on the north side, from Beaver Avenue to a point 490 feet east thereof, no parking any time.

Urbandale Avenue, on the south side, from a point 85 feet east of Beaver Avenue to a point 50 feet west of Forty-first Place, no parking any time.

(C62, § 30-1435; O.8084, 8098, 8187, 8225; C75, § 27-1468; O.9405, 9434; C79, § 27-1468; O.9640, 9994; C85, § 27-1468; O.11,063, 11,089; C91, § 27-2663; O.11,650, 11,712, 11,935, 15,556, 16,148)

Sec. 114-3698. Urbandale Avenue—Forty-fourth Street to Westover Boulevard.

Urbandale Avenue, on both sides, from Forty-ninth Street to Forty-ninth Place, no parking any time.

Urbandale Avenue, on both sides, from a point 235 feet east of Merle Hay Road to west city limits, no parking any time.

Urbandale Avenue, on the south side, from a point 400 feet east of Westover Boulevard to a point 180 feet west of Westover Boulevard, no parking any time.
(C62, § 30-1436; O.8084, 8501; C75, § 27-1469; O.9021; C79, § 27-1469; C91, § 27-2664; O.11,650, 13,613, 15,035)

Sec. 114-3699. Ure Street—East University Avenue to dead end north.

Ure Street, on the west side, from East University Avenue to a point 115 feet north thereof, no parking any time.

Ure Street, on the east side, from East University Avenue north, to and including the cul-de-sac, no parking any time.
(C62, § 30-1437; O.8084; C75, C79, § 27-1470; O.10,598; C91, § 27-2665; O.11,650, 14,360, 15,606)

Sec. 114-3700. U.S. Highway 65/69.

U.S. Highway 65/69, on both sides, from Southeast Fourteenth Street to the south city limits, no parking any time.
(C91, § 27-2665.05; O.13,268)

Sec. 114-3701. Valdez Drive—Dead end east of Lower Beaver Road to Fifty-fourth Street.

Valdez Drive, on the south side, from the dead end east of Lower Beaver Road to Fortieth Street, no parking any time.

Valdez Drive, on the north side, from Lower Beaver Road to a point 50 feet east thereof, no parking any time.

Valdez Drive, on the north side, from a point 60 feet east of Thirty-eighth Street to a point 50 feet west of Thirty-eighth Street, no parking any time.

Valdez Drive, on the south side, from a point 130 feet east of Forty-sixth Street to a point 420 feet west of Forty-eighth Street, no parking any time.

Valdez Drive, on the north side, from Forty-sixth Street to a point 100 feet east of Forty-eighth Street, no parking 8:00 a.m. to 3:00 p.m., school days.

Valdez Drive, on the north side, from a point 100 feet east of Forty-eighth Street to a point 100 feet west of Forty-eighth Street, no parking any time.

Valdez Drive, on the north side, from a point 100 feet west of Forty-eighth Street to the dead end, no parking 8:00 a.m. to 5:00 p.m.

Valdez Drive, on the north side, from Fifty-first Street to Fifty-fourth Street, no parking any time.
(C62, § 30-1437.01; O.8309, 8886; C75, C79, § 27-1470.01; O.9685, 9849; C85, § 27-1470.01; O.11,225, 11,256, 11,279; C91, § 27-2666; O.11,650, 13,785, 16,477)

Sec. 114-3701.5. East Valdez Drive—Northeast Forty-sixth Street to East Forty-eighth Street.

East Valdez Drive, on the south side, from Northeast Forty-sixth Street to East Forty-eighth Street, no parking any time.
(O.14,634)

Sec. 114-3702. Vale Street—Dead end west of Southeast Seventh Street to Southeast Twenty-sixth Court.

Vale Street, on the north side, from and including the dead end turnaround west of Southeast Seventh Street to Southeast Tenth Street, no parking any time.

Vale Street, on the north side, from Southeast Twenty-fifth Court to Southeast Twenty-sixth Court, no parking any time.
(C79, § 27-1470.02; O.9685, 10,123, 10,402; C91, § 27-2667; O.11,650, 16,221)

Sec. 114-3703. Valley Circle—Winegardner Road to dead end west of Winegardner Road.

Valley Circle, on the north side, from Winegardner Road to a point 170 feet west thereof and on any part of the cul-de-sac, no parking any time.
(C79, § 27-1470.03; O.9685; C91, § 27-2668; O.11,650)

Sec. 114-3704. Reserved.

Editor's note—Ord. No. 14,080, § 1, adopted April 22, 2002, repealed § 114-3704 which pertained to Valley Drive—Fleur Drive to Park Avenue and derived from Code 1979, § 27-1470.04; Ord. No. 10,207; Ord. No. 10,598; Code 1991, § 27-2669; and Ord. No. 11,650.

Sec. 114-3705. Vandalia Road—Carlisle Road to Southeast Forty-third Street.

Vandalia Road, on both sides, from Southeast Thirtieth Street to Southeast Forty-third Street, no parking any time.
(C62, § 30-1438; O.8084; C75, C79, § 27-1471; C91, § 27-2670; O.11,650)

Sec. 114-3706. Vermont Street—University Avenue to Washington Avenue.

Vermont Street, on the east side, from Indiana Avenue to Clark Street, no parking any time.
(C75, § 27-1471.01; O.8970; C91, § 27-2671; O.11,650)

Sec. 114-3706.01. Veterans Parkway—Iowa Highway 28 to west city limits.

Veterans Parkway, on both sides, from Iowa Highway 28 to west city limits, no parking any time.
(O.15,355)

Sec. 114-3707. Victoria Drive—Thirtieth Street to Lincoln Avenue.

Victoria Drive, on the south side, from Thirtieth Street to Lincoln Avenue, no parking any time.

Victoria Drive, on the north side, from Thirty-first Street to a point 70 feet west thereof, no parking any time.
(C62, § 30-1439; O.8084; C75, C79, § 27-1472; C91, § 27-2672; O.11,650; C00, § 114-3707; O.14,518 (installed 3/10/22), 16,171)

Sec. 114-3708. Villa Vista Drive—Hull Avenue to Henderson Avenue.

Villa Vista Drive, on the west side, from Hull Avenue to Henderson Avenue, no parking any time.

Villa Vista Drive, on the east side, from Hull Avenue to a point 50 feet north thereof, no parking any time.
(C75, § 27-1472.01; O.9367, 9420; C79, § 27-1472.01; C91, § 27-2673; O.11,650)

Sec. 114-3708.01. Village Run Avenue—East Fifty-second Street to east city limits.

Village Run Avenue, on the north side, from East Fifty-second Street to the Brook Landing Court, no parking any time.

Village Run Avenue, on the south side from Brook Landing Court to the dead end east of Brook Landing Court, no parking any time.
(O.13,957, 15,726, 15,991)

Sec. 114-3708.05. Village Run Drive—East Fifty-second Street to East Douglas Avenue.

Village Run Drive, on the west side, from a point 125 feet south of East Douglas Avenue to East Douglas Avenue, no parking any time.

Village Run Drive, on the north side, from East Fifty-second Street to East Douglas Avenue, no parking any time.
(C00, § 114-3708.05; O.13,957, 14,322, 14,518 (installed 4/27/12, 1/23/19), 16,171)

Sec. 114-3709. Vilura Parkway—Thirtieth Street to Lower Beaver Road.

Vilura Parkway, on the north side, from Thirtieth Street to Lower Beaver Road, no parking any time.

Vilura Parkway, on the south side, from a point 50 feet east of Lower Beaver Road to Lower Beaver Road, no parking any time.
(C79, § 27-1472.02; O.9849; C91, § 27-2674; O.11,650, 16,171)

Sec. 114-3709.01. Vine Street (eastbound)—Southwest Water Street to Southwest Second Street.

Vine Street (eastbound), on the north side, from Southwest Water Street to Southwest Second Street, no parking any time.

Vine Street (eastbound), on the south side, from Southwest Second Street to a point 75 feet east thereof, no parking any time.

Vine Street (eastbound), on the south side, from a point 75 feet east of Southwest Second Street to a point 125 feet east thereof, passenger loading and unloading, ten minutes only.

Vine Street (eastbound), on the south side, from a point 200 feet east of Southwest Second Street to Southwest Water Street, no parking any time.
(O.15,301)

Sec. 114-3709.02. Vine Street (westbound)—Southwest Water Street to Southwest Second Street.

Vine Street (westbound), on the north side, from Southwest Second Street to a point 30 feet east thereof, no parking any time.

Vine Street (westbound), on the north side, from Southwest Water Street to a point 30 feet west thereof, no parking any time.

Vine Street (westbound), on the south side, from Southwest Water Street to Southwest Second Street, no parking any time.
(O.15,301)

Sec. 114-3710. Vine Street—Southwest Second Street to Southwest Twelfth Street.

Vine Street (westbound), on the north side, from Southwest Third Street to a point 40 feet east thereof, no parking any time.

Vine Street (westbound), on the south side, from Southwest Second Street to Southwest Third Street, no parking any time.

Vine Street (eastbound), on both sides, from Southwest Second Street to Southwest Third Street, no parking any time.

Vine Street, on both sides, from Southwest Third Street to Southwest Twelfth Street, no parking any time.
(C62, § 30-1440; O.8084; C75, C79, § 27-1473; O.9978; C91, § 27-2675; O.11,650, 14,437, 15,301, 15,456, 16,462)

Sec. 114-3711. East Vine Street—East/Southeast Sixth Street to East Sixteenth Court.

East Vine Street, on the south side, from a point 55 feet east of Southeast Sixth to a point 15 east thereof is designated a handicapped parking area and is subject to the same prohibition as is found in subsection 144-616(a) of this chapter.

East Vine Street, on both sides, from Southeast Seventh Street to Southeast Eight Street, no parking any time.

East Vine Street, on the north side, from Johnson Court to East Sixteenth Court, no parking any time.
(C79, § 27-1473.01; O.10,123, 10,402; C91, § 27-2676; O.11,650, 15,926, 16,462)

Sec. 114-3712. Virginia Circle—Southeast Nineteenth Street to dead end west.

Virginia Circle, on the south side, from Southeast Nineteenth Street to a point 370 feet west thereof and any part of the cul-de-sac, no parking any time.
(C79, § 27-1473.02; O.10,123; C91, § 27-2677; O.11,650)

Sec. 114-3713. Virginia Avenue—South Union Street to dead end west of Southwest Twenty-third Street.

Virginia Avenue, on the north side, from South Union Street to a point 645 feet west of Southwest Twelfth Street, no parking any time.

Virginia Avenue, on the south side, from South Union Street to a point 50 feet west thereof, no parking any time.

Virginia Avenue, on the south side, from a point 110 feet east of Southwest Fifth Street to a point 50 feet west of Southwest Fifth Street, no parking any time.

Virginia Avenue, on the south side, from a point 50 feet east of Southwest Ninth Street to a point 50 feet west of Southwest Ninth Street, no parking any time.

Virginia Avenue, on the north side, from Southwest Twenty-third Street to a point 280 feet west thereof and any part of the cul-de-sac, no parking any time.
(C62, § 30-1441; O.8084, 8105, 8915; C75, § 27-1474; O.8981; C79, § 27-1474; O.10,111, 10,207, 10,532, 10,598; C85, § 27-1474; O.11,600; C91, § 27-2678; O.11,650)

Sec. 114-3714. Virginia Place—Glenwood Drive to dead end south.

Virginia Place, on the east side, from Glenwood Drive to a point 120 feet south thereof and any part of the cul-de-sac, no parking any time.
(C79, § 27-1474.01; O.10,207; C91, § 27-2679; O.11,650)

Sec. 114-3715. East Virginia Avenue—South Union Street to cul-de-sac east.

East Virginia Avenue, on the south side, from Southeast Fifth Street to Southeast Eighth Street, no parking any time.

East Virginia Avenue, on the north side, from Southeast Seventh Street to a point 50 feet west thereof, no parking any time.

East Virginia Avenue, on the south side, from Southeast Fourteenth Street to a point 50 feet east thereof, no parking any time.

East Virginia Avenue, on the north side, from Southeast Fourteenth Street to Southeast Seventeenth Street, no parking any time.

East Virginia Avenue, on the north side, from Southeast Twentieth Street to Southeast Twenty-second Street, no parking any time.

East Virginia Avenue, on the south side, from a point 130 feet east of Southeast Twentieth Street to a point 240 feet east thereof, no parking any time.

East Virginia Avenue, on the south side, from Southeast Twenty-second Street to and including the cul-de-sac east of Riverwoods Avenue, no parking any time.
(C62, § 30-1422; O.8084, 8878; C75, § 27-1475; O.9190; C79, § 27-1475; O.9851, 10,111, 10,598 10,706; C91, § 27-2680; O.11,650, 13,506, 13,958)

Sec. 114-3716. Wabash Street—Southwest Sixteenth Street to Southwest Seventeenth Street.

Wabash Street, on the south side, from Southwest Sixteenth Street to Southwest Seventeenth Street, no parking any time.
(O.15,559)

Sec. 114-3717. Waco Court—Wakonda Court to dead end west.

Waco Court, on the south side, from Wakonda Court to a point 230 feet west thereof and any part of the cul-de-sac, no parking any time.
(O.15,559)

Sec. 114-3718. Wade Street—Southwest Ninth Street to Southwest Fourteenth Street.

Wade Street, on the north side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.

Wade Street, on the south side, from Southwest Ninth Street to a point 200 feet west of Southwest Tenth Street, no parking any time.

Wade Street, on the south side, from a point 200 feet west of Southwest Tenth Street to a point 175 feet west thereof, school bus loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Wade Street, on the north side, from Southwest Eleventh Street to a point 275 feet east thereof, no stopping or standing 7:00 a.m. to 5:00 p.m. school days.

Wade Street, on the south side from Southwest Eleventh Street to a point 100 feet east thereof, no stopping or standing.

Wade Street, on the south side, from Southwest Eleventh Street to Southwest Fourteenth Street, no parking any time.

Wade Street, on the north side, from 50 feet west of Southwest Thirteenth Street to 50 feet east of Southwest Thirteenth Street, no parking any time.
(O.15,559)

Sec. 114-3719. Reserved.

Editor's note—Ord. No. 15,803, § 1, adopted Sept. 23, 2019, repealed § 114-3719, which pertained to Wagner Street—Fifth Avenue to Sixth Avenue and derived from Ord. No. 15,559.

Sec. 114-3720. Wakonda Court—Park Avenue to Watrous Avenue.

Wakonda Court, on the west side, from Park Avenue to Watrous Avenue, no parking any time.
(O.15,559)

Sec. 114-3721. Wakonda Drive—Fleur Drive to Wakonda Court.

Wakonda Drive, on the south side, from Fleur Drive to a point 50 feet west thereof, no parking any time.

Wakonda Drive, on the north side, from Fleur Drive to Wakonda Court, no parking any time.
(O.15,559)

Sec. 114-3722. Wakonda Parkway—Watrous Avenue to Southwest Sixteenth Street.

Wakonda Parkway, on the west side, from Watrous Avenue to Southwest Sixteenth Street, no parking any time.

Wakonda Parkway, on both sides, from the 4606 Wakonda Parkway to 4614 Wakonda Parkway and including any part of the cul-de-sac, no parking 8:00 a.m. to 4:00 p.m., Thursdays,
(O.15,559)

Sec. 114-3723. Wakonda View—Fleur Drive to Southwest Twenty-fourth Street.

Wakonda View, on the south side, from Fleur Drive to Southwest Twenty-fourth Street, no parking any time.

Wakonda View, on the north side, from Fleur Drive to a point 100 feet west thereof, no parking any time.

Wakonda View, on the north side, from a point 100 feet west of Fleur Drive to a point 150 feet west thereof, no parking 7:00 a.m. to 6:00 p.m., Monday through Saturday.
(O.15,559)

Sec. 114-3724. Walker Street—East Seventh Street to East Twelfth Street.

Walker Street, on the south side, from East Seventh Street to a point 120 feet east thereof, no parking any time.

Walker Street, on the south side, from Pennsylvania Avenue to East Ninth Street, no parking any time.

Walker Street, on the north side, from East Ninth Street to a point 60 feet west thereof, no parking any time.

Walker Street, on both sides, from East Ninth Street to a point 90 feet east thereof, no parking any time.

Walker Street, on the north side, from East Twelfth Street to a point 100 feet west thereof, no parking any time.

Walker Street, on the south side, from East Twelfth Street to a point 100 feet west thereof, no parking any time.
(O.15,559)

Sec. 114-3725. Walker Street—East Twelfth Street to East Fifteenth Street.

Walker Street, on the north side, from East Twelfth Street to a point 100 feet east thereof, no parking any time.

Walker Street, on the south side, from East Twelfth Street to East Thirteenth Street, no parking Monday through Saturday.

Walker Street, on the north side, from East Thirteenth Street to a point 50 feet west thereof, no parking any time.

Walker Street, on the north side, from a point 50 feet west of Johnson Court to a point 50 feet east of Johnson Court, no parking any time.

Walker Street, on the south side, from East Fourteenth Street to a point 270 feet east thereof, bus loading and unloading 7:00 a.m. to 5:00 p.m., school days.

Walker Street, on the south side, from a point 270 feet east of East Fourteenth Street to a point 115 feet east thereof, no stopping or standing.

Walker Street, on the south side, from a point 385 feet east of East Fourteenth Street to a point 110 feet east thereof, bus loading and unloading 7:00 a.m. to 5:00 p.m., school days.

Walker Street, on the north side, from a point 45 feet east of East Fourteenth Street to a point 255 feet east thereof, passenger loading and unloading 7:00 a.m. to 5:00 p.m., school days.

Walker Street, on the north side, from a point 300 feet east of East Fourteenth Street to a point 90 feet east thereof, no stopping or standing.

Walker Street, on the north side, from a point 390 feet east of East Fourteenth Street to a point 80 feet east thereof, passenger loading and unloading 7:00 a.m. to 5:00 p.m., school days.

Walker Street, on the south side, from Johnson Court to a point 80 feet west thereof, no parking any time.

Walker Street, on the north side, from East Fourteenth Street to a point 50 feet west thereof, no parking any time.

Walker Street, on the north side, from Johnson Court to a point 55 feet west thereof, no parking any time.

Walker Street, on the north side, from East Fourteenth Street to a point 45 feet east thereof, no parking any time.

Walker Street, on the north side, from East Fifteenth Street to a point 75 feet west thereof, no parking any time.
(O.15,559)

Sec. 114-3726. Walker Street—East Fifteenth Street to East Thirtieth Street.

Walker Street, on the south side, from Dixon Street to a point 175 feet west thereof, no parking any time.

Walker Street, on both sides, from East Eighteenth Street to Claypool Street, no parking any time.

Walker Street, on the south side, from Claypool Street to a point 320 feet east thereof, no parking any time.

Walker Street, on the north side, from East Twenty-first Street to a point 330 feet west thereof, no parking any time.

Walker Street, on the north side, from East Twenty-ninth Street to a point 50 feet east thereof, no parking any time.

Walker Street, on the south side, from East Twenty-ninth Street to East Thirtieth Street, no parking any time.

Walker Street, on the north side, from East Thirtieth Street to a point 75 feet west thereof, no parking any time.
(O.15,559)

Sec. 114-3727. Wall Avenue—South Union Street to Southwest Thirteenth Place.

Wall Avenue, on the north side, from South Union Street to a point 50 feet west thereof, no parking any time.

Wall Avenue, on the south side, from South Union Street to a point 50 feet west thereof, no parking any time.

Wall Avenue, on the south side, from Southwest Second Street to a point 50 feet west of Southwest Third Street, no parking any time.

Wall Avenue, on the south side, from Southwest Seventh Street to Southwest Ninth Street, no parking any time.

Wall Avenue, on the north side, from Southwest Ninth Street to a point 50 feet east thereof, no parking any time.

Wall Avenue, on the north side, from Southwest Twelfth Street to Southwest Thirteenth Place, no parking any time.
(O.15,559)

Sec. 114-3728. East Wall Avenue—South Union Street to Southeast Thirty-second Street.

East Wall Street, on the north side, from South Union Street to a point 50 feet east, no parking any time.

East Wall Avenue, on the south side, from South Union Street to Southeast Fifth Street, no parking any time.

East Wall Avenue, on the north side, from a point 120 feet west of Southeast Second Street to a point 115 feet east of Southeast Second Street, no parking any time.

East Wall Avenue, on the north side, from Jordan Drive to a point 50 feet east thereof, no parking any time.

East Wall Avenue, on the north side, from Southeast Fifth Street to a point 50 feet west thereof, no parking any time.

East Wall Avenue, on the north side, from Southeast Seventh Court to a point 50 feet west thereof, no parking any time.

East Wall Avenue, on the south side, from Jordan Drive to Southeast Seventh Court, no parking any time.

East Wall Avenue, on the south side, from Southeast Thirty-first Street to Southeast Thirty-second Street, no parking any time.
(O.15,559, 16,194)

Sec. 114-3729. Wallace Lane—Ashby Avenue to Ashby Avenue.

Wallace Lane, on the north side, from Ashby Avenue to Ashby Avenue, no parking any time.
(O.15,559)

Sec. 114-3730. Walnut Hill Avenue—Fifty-sixth Street to Sixty-second Street.

Walnut Hill Avenue, on the north side, from Fifty-sixth Street to a point 50 feet west thereof, no parking any time.

Walnut Hill Avenue, on the north side, from Fifty-ninth Street to a point 75 feet west thereof, no parking any time.

Walnut Hill Avenue, on the north side, from Fifty-ninth Street to a point 70 feet east thereof, no parking any time.

Walnut Hill Avenue, on the south side, from Fifty-sixth Street to Sixty-second Street, no parking any time.
(O.15,559, 16,174)

Sec. 114-3731. Walnut Ridge Drive—from Brook View Drive to Brook View Avenue.

Walnut Ridge Drive, on the north side, from Brook View Drive east to the Dead End, no parking any time.

Walnut Ridge Drive, on the north side from East Fifty-Sixth Street to a point 100 feet east thereof, no parking any time.

Walnut Ridge Drive, on the south and east sides, from East Fifty-Sixth Street, no parking any time.
(O.15,559, 16,215, 16,539)

Sec. 114-3732. Walnut Street—Water Street to Second Avenue.

Walnut Street, on the north side, from Water Street to Second Avenue, no parking any time.

Walnut Street, on the south side, from Water Street to a point 45 feet west thereof, no parking any time.
(O.15,559)

Sec. 114-3733. Walnut Street—Second Avenue to Third Street.

Walnut Street, on the north side, from Second Avenue to Third Street, no parking any time.

Walnut Street, on the south side, from Second Avenue to Third Street, no stopping or standing.
(O.15,559)

Sec. 114-3734. Walnut Street—Third Street to Fourth Street.

Walnut Street, on the north side, from Third Street to Fourth Street, no parking any time.

Walnut Street, on the south side, from Third Street to a point 40 feet west thereof, no parking any time.

Walnut Street, on the south side, from a point 85 feet west of Third Street to a point 75 feet west thereof, passenger loading and unloading, ten minutes only.
(O.15,559, 16,112)

Sec. 114-3735. Walnut Street—Fourth Street to Fifth Avenue.

Walnut Street, on the north side, from Fourth Street to a point 40 feet west thereof, no parking any time.
(O.15,559)

Sec. 114-3736. Reserved.

Editor's note—Ord. No. 15,577, § 1, adopted April 17, 2017, repealed § 114-3736, which pertained to Walnut Street—Fifth Avenue to Sixth Avenue and derived from Ord. No. 15,559.

Sec. 114-3737. Reserved.

Editor's note—Ord. No. 15,577, § 1, adopted April 17, 2017, repealed § 114-3737, which pertained to Walnut Street—Sixth Avenue to Seventh Street and derived from Ord. No. 15,559.

Sec. 114-3738. Reserved.

Editor's note—Ord. No. 16,260, § 1, adopted June 26, 2023, repealed § 114-3738, which pertained to Walnut Street—Seventh Street to Eighth Street and derived from Ord. No. 15,559; Ord. No. 15,577.

Sec. 114-3739. Walnut Street—Eighth Street to Ninth Street.

Walnut Street, on both sides, from Eighth Street to Ninth Street, no parking any time.

Walnut Street, on both sides, from Eighth Street to Ninth Street, no stopping or standing, any time.
(O.15,559, 15,577, 15,899)

Sec. 114-3740. Walnut Street—Ninth Street to Tenth Street.

Walnut Street, on the south side, from Ninth Street to Tenth Street, no parking any time.

Walnut Street, on the north side, from Ninth Street to Tenth Street, passenger loading and unloading, 7:00 a.m. to 6:00 p.m., Monday through Friday, 20 minutes only.
(O.15,559, 15,577, 15,736, 16,453)

Sec. 114-3741. Walnut Street—Tenth Street to Eleventh Street.

Walnut Street, on the south side, from a point 150 feet west of Tenth Street to a point 75 feet west thereof, no parking any time.

Walnut Street, on the south side, from Eleventh Street to a point 30 feet east thereof, no parking any time.

Walnut Street, on the north side, from Tenth Street to a point 30 feet west thereof, no parking any time.

Walnut Street, on the north side, from a point 100 feet west of Tenth Street to a point 120 feet west thereof, no parking any time.

Walnut Street, on the north side, from a point 220 feet west of Tenth Street to a point 65 feet west thereof, loading zone.
(O.15,559)

Sec. 114-3742. Walnut Street—Eleventh Street to Twelfth Street.

Walnut Street, on the south side, from Twelfth Street to a point 150 feet east thereof, no parking any time.

Walnut Street, on the south side, from a point 360 feet east of Twelfth Street to a point 120 east thereof, no parking any time.

Walnut Street, on the north side, from Eleventh Street to a point 25 feet east of Twelfth Street, no parking 10:00 p.m. to 6:00 a.m.

Walnut Street, on the north side, from Twelfth Street to a point 25 feet east thereof, no parking any time.
(O.15,559)

Sec. 114-3743. Walnut Street—Twelfth Street to Thirteenth Street.

Walnut Street, on the south side, from Thirteenth Street to a point 25 feet east thereof, no parking any time.
(O.15,559)

Sec. 114-3744. Walnut Street—Thirteenth Street to Fifteenth Street.

Walnut Street, on the north side, from a point 140 feet west of Thirteenth Street to a point 45 feet west thereof, commercial loading zone.

Walnut Street, on the north side, from a point 185 feet west of Thirteenth Street to a point 20 feet west thereof, no parking any time.

Walnut Street, on the south side, from Thirteenth Street to a point 20 feet west thereof, no parking any time.

Walnut Street, on the south side, from a point 250 feet west of Thirteenth Street to a point 35 feet west thereof, no parking any time.

Walnut Street, on the south side, from a point 285 feet west of Thirteenth Street to a point 35 feet west thereof, commercial loading zone.

Walnut Street, on the south side, from Fourteenth Street to appoint 20 feet east thereof, no parking any time.

Walnut Street, on the south side, from Fourteenth Street to a point 10 feet west thereof, no parking any time.

Walnut Street, on the north side, from Fourteenth Street to a point 55 feet west thereof, no parking any time.

Walnut Street, on the north side, from a point 55 feet west of Fourteenth Street, to a point 35 feet west thereof, commercial loading zone.
(O.15,559, 15,736, 16,093, 16,276, 16,293, 16,397)

Sec. 114-3745. Walnut Street—Fifteenth Street to Sixteenth Street.

Walnut Street, on the north side, from a point 75 feet west of Fifteenth Street to a point 50 feet west thereof, is designated a 24-hour loading zone.

Walnut Street, on the north side, from a point 125 feet west of Fifteenth Street to Sixteenth Street, no parking any time.

Walnut Street, on the south side, from a point 65 feet west of Fifteenth Street to a point 40 feet west thereof, no parking any time.

Walnut Street, on the south side, from Sixteenth Street to a point 20 feet east thereof, no parking any time.
(O.15,559, 16,397)

Sec. 114-3746. East Walnut Street—Water Street to East First Street.

East Walnut Street, on the south side, from Water Street to a point 90 feet east thereof, no parking any time.

East Walnut Street, on the north side, from a point 60 feet west of East First Street to a point

30 feet west thereof, is designated a handicapped parking areas and is subject to the same prohibition as is found in subsection 114-616(a) of this chapter.
(O.15,559, 15,934)

Sec. 114-3747. East Walnut Street—East First Street to East Second Street.

East Walnut Street, on the south side, from East First Street to a point 140 feet east thereof, no stopping or standing.

East Walnut Street, on the south side, from a point 190 feet east of East First Street to Second Street, no stopping or standing.

East Walnut Street, on the south side, from a point 140 feet east of East First Street to a point 50 feet east thereof, loading zone.

East Walnut Street, on the north side, from East Second Street to a point 37 feet west thereof, no parking any time.

East Walnut Street, on the north side, from East First Street to a point 25 feet east thereof, reserved permit parking only.
(O.15,559)

Sec. 114-3748. East Walnut Street—East Second Street to East Third Street.

East Walnut Street, on the south side, from East Second Street to a point 30 feet east thereof, no parking any time.

East Walnut Street, on the south side, from a point 75 feet east of East Second Street to a point 85 feet east thereof, no parking any time.
(O.15,559, 15,577)

Sec. 114-3749. East Walnut Street—East Third Street to East Fourth Street.

East Walnut Street, on the north side, from East Third Street to a point 94 feet east thereof, no parking any time.

East Walnut Street, on the south side, from East Third Street to a point 40 feet east thereof, no parking any time.

East Walnut Street, on the south side, from a point 115 feet east of East Third Street to a point 30 feet east thereof, commercial loading zone.

East Walnut Street, on the south side, from a point 145 feet east of East Third Street to a point 80 feet east thereof, no parking any time.

East Walnut Street, on the south side, from a point 225 feet east of East Third Street to a point 45 feet east thereof, loading zone.
(O.15,559)

Sec. 114-3750. East Walnut Street—East Fourth Street to East Fifth Street.

East Walnut Street, on the south side, from East Fourth Street to a point 90 feet east thereof, no parking any time.
(O.15,559)

Sec. 114-3751. East Walnut Street—East Fifth Street to East Fourteenth Street.

East Walnut Street, on the north side, from a point 184 feet east of East Fifth Street to a point 34 feet east thereof, no parking any time.

East Walnut Street, on the north side, from a point 25 feet west of East Sixth Street to a point 125 feet east of East Sixth Street, no parking any time.

East Walnut Street, on the north side, from East Seventh Street to a point 70 feet west thereof, no parking any time.

East Walnut Street, on both sides, from East Seventh Street to a point 185 feet east thereof, no parking any time.

East Walnut Street, on the north side, from East Twelfth Street to a point 140 feet east thereof, no parking any time.

East Walnut Street, on the south side, from East Twelfth Street to a point 45 feet east thereof, no parking any time.

East Walnut Street, on the north side, from a point 115 feet west of East Thirteenth Street to a point 90 feet east of East Thirteenth Street, no parking any time.

East Walnut Street, on the south side, from a point 75 feet west of East Thirteenth Street to a point 75 feet east of East Thirteenth Street, no parking any time.

East Walnut Street, on the south side, from a point 75 feet east of East Thirteenth Street to a point 35 feet east thereof, commercial loading zone.

East Walnut Street, on the north side, from a point 355 feet east of East Thirteenth Street to a point 145 feet east thereof, no parking any time.

East Walnut Street, on the north side, from East Fourteenth Street to appoint 75 feet west thereof, no parking any time.

East Walnut Street, on the south side, from East Fourteenth Street to a point 385 feet west thereof, no parking any time.
(C00, § 114-3751; O.14,518 (installed 7/24/19), 15,559, 15,624, 15,732, 15,803, 15,868, 16,171)

Sec. 114-3752. East Walnut Street—East Fourteenth Street to East Eighteenth Street.

East Walnut Street, on the north side, from East Fourteenth Street to a point 105 feet east thereof, no parking any time.

East Walnut Street, on the north side, from a point 105 feet east of East Fourteenth Street to a point 100 feet west of East Fifteenth Street, no parking 7:00 a.m. to 9:00 a.m.

East Walnut Street, on the north side, from East Fifteenth Street to a point 100 feet west thereof, no parking any time.

East Walnut Street, on the north side, from East Fifteenth Street to a point 75 feet east thereof, no parking any time.

East Walnut Street, on the north side, from a point 75 feet east of East Fifteenth Street to a point 200 feet east thereof, bus loading and unloading 7:00 a.m. to 5:00 p.m. school days.

East Walnut Street, on the north side, from a point 275 feet east of East Fifteenth Street to a point 75 feet west of East Sixteenth Street, no parking 7:00 a.m. to 5:00 p.m. school days.

East Walnut Street, on the north side, from East Eighteenth Street to a point 75 feet west thereof, no parking any time.

East Walnut Street, on the south side, from East Fourteenth Street to a point 90 feet east thereof, no parking any time.

East Walnut Street, on the south side, from a point 100 feet west of East Fifteenth Street to a point 200 feet west thereof, no parking 4:00 p.m. to 6:00 p.m.

East Walnut Street, on the south side, from a point 100 feet west of East Fifteenth Street to a point 100 feet east of East Fifteenth Street, no parking any time.

East Walnut Street, on both sides, from East Sixteenth Street to a point 75 feet west thereof, no parking any time.

East Walnut Street, on both sides, from East Sixteenth Street to a point 75 feet east thereof, no parking any time.

East Walnut Street, on both sides, from a point 50 feet west of East Seventeenth Street to a point 50 feet east of East Seventeenth Street, no parking any time.
(O.15,559)

Sec. 114-3753. East Walnut Street—East Eighteenth Street to East Thirtieth Street.

East Walnut Street, on the north side, from East Eighteenth Street to a point 50 feet east thereof, no parking any time.

East Walnut Street, on both sides, from East Nineteenth Court to a point 165 feet east of East Twentieth Street, no parking any time.

East Walnut Street, on the north side, from a point 50 feet west of East Twenty-first Street to a point 50 feet east of East Twenty-first Street, no parking any time.

East Walnut Street on the south side, from a point 75 feet west of East Twenty-second Street to a point 50 feet east of East Twenty-second Street, no parking any time.

East Walnut Street, on the south side from a point 120 feet west of East Twenty-third Street to East Twenty-third Street, no parking any time.

East Walnut Street, on the north side, from East Twenty-fourth Street to a point 40 feet east thereof, no parking any time.

East Walnut Street, on the south side, from East Twenty-fourth Street to a point 50 feet east thereof, no parking any time.

East Walnut Street, on both sides, from a point 50 feet west of East Twenty-fifth Street to a point 50 feet east of East Twenty-fifth Street, no parking any time.

East Walnut Street, on both sides, from a point 50 feet west of East Twenty-sixth Street to a point 50 feet east of East Twenty-sixth Street, no parking any time.

East Walnut Street, on both sides, from a point 50 feet west of East Twenty-seventh Street to a point 50 feet east of East Twenty-seventh Street, no parking any time.

East Walnut Street, on both sides, from a point 50 feet west of East Twenty-ninth Street to a point 50 feet east of East Twenty-ninth Street, no parking any time.

East Walnut Street, on the south side, from a point 60 feet west of East Thirtieth Street to East Thirtieth Street, no parking any time.

East Walnut Street, on the north side, from a point 115 feet west of East Thirtieth Street to a point 50 feet east of East Thirtieth Street, no parking any time.
(C00, § 114-3753; O.15,559, 14,518 (installed 3/22/22), 16,171, 16,271, 16,334)

Sec. 114-3754. Washington Avenue—Michigan Street to Twenty-fourth Street.

Washington Avenue, on the north side, from Vermont Street to a point 90 feet west thereof, no parking any time.

Washington Avenue, on the south side, from a point 150 feet east of Vermont Street to Second Avenue, no parking any time.

Washington Avenue, on the north side, from Second Avenue to a point 100 feet east thereof, no parking any time.

Washington Avenue, on both sides, from Ninth Street to a point 50 feet west thereof, no parking any time.

Washington Avenue, on the north side, from Tenth Street to a point 50 feet east thereof, no parking any time.

Washington Avenue, on the south side, from Eleventh Street to Thirteenth Street, no parking any time.

Washington Avenue, on the north side, from Thirteenth Street to Sixteenth Street, no parking any time.

Washington Avenue, on the south side, from Sixteenth Street to Twenty-third Street, no parking any time.

Washington Avenue, on the north side, from Martin Luther King Jr Parkway to a point 50 feet west thereof, no parking any time.

Washington Avenue, on the north side, from Twenty-first Street to a point 60 feet east thereof, no parking any time.

Washington Avenue, on the north side, from a point 50 feet east of Twenty-second Street to a point 50 feet west of Twenty-second Street, no parking any time.

Washington Avenue, on the north side, from Twenty-third Street to Twenty-fourth Street, no parking any time.
(C00, § 114-3754; O.14,518 (installed 11/3/17, 4/6/18), 15,559, 16,171)

Sec. 114-3755. Washington Avenue—Thirty-fourth Street to College Avenue.

Washington Avenue, both sides, from Thirty-eighth Street to a point 75 feet east thereof, no parking anytime.

Washington Avenue, on the north side, from Thirty-eighth Street to Mar Ella Trail, no parking any time.

Washington Avenue, on the south side, from Fifty-sixth Street to College Avenue, no parking any time.
(O.15,559)

Sec. 114-3756. East Washington Avenue—Dead end west of Pennsylvania Avenue to the dead end of East Thirty-third Street.

East Washington Avenue, on the north side, from East Ninth Street to a point 75 feet west thereof, no parking any time.

East Washington Avenue, on the north side, from Pennsylvania Avenue to a point 430 feet west thereof, and any part of the cul-de-sac, no parking any time.

East Washington Avenue, on the south side, from Pennsylvania Avenue to a point 150 feet east of East Fourteenth Street, no parking any time.

East Washington Avenue, on the north side, from East Fourteenth Street to a point 75 feet west thereof, no parking any time.

East Washington Avenue, on the north side, from East Fourteenth Street to East Seventeenth Court, no parking any time.

East Washington Avenue, on the south side, from Sampson Street to East Seventeenth Street, no parking any time.

East Washington Avenue, on the north side, from Delaware Avenue to the dead end east of East Twenty-first Street, no parking any time.

East Washington Avenue, on the north side, from a point 140 feet west of East Twenty-second Street to Lay Street, no parking any time.

East Washington Avenue, on the south side, from a point 80 feet west of East Twenty-third Street to a point 50 feet east of East Twenty-third street, no parking any time.

East Washington Avenue, on the north side, from a point 260 feet west of East Twenty-seventh Street to East Twenty-ninth Street, no parking any time.

East Washington Avenue, on the south side, from East Twenty-ninth Street to a point 700 feet east of East Thirty-third Street and on any part of the cul-de-sac, no parking any time.

East Washington Avenue, on the north side, from a point 50 feet west of East Thirty-second Street to a point 60 feet east of East Thirty-second Street, no parking any time.

East Washington Avenue, on the north side, from a point 50 feet west of East Thirty-second Court to a point 95 feet east of East Thirty-second Court, no parking any time.

East Washington Avenue, on the north side, from a point 50 feet west of East Thirty-third Street to East Thirty-third Street, no parking any time.

East Washington Avenue, on the north side, from East Thirty-third Street east for a distance of 160 feet, no parking any time.
(O.14,518 (installed 9/11/17, 7/12/18, 11/20/18), 15,559, 15,876, 16,171, 16,462, 16,511, 16,522)

Sec. 114-3757. Water Street—Walnut Street to Vine Street.

Water Street, on the east side, from Vine Street to a point 50 feet north thereof, no parking any time.

Water Street, on the west side, from Court Avenue to a point 45 feet south thereof, commercial loading zone.

Water Street, on the east side, from a point 55 feet south of Court Avenue to a point 45 feet north of Court Avenue, no parking any time.

Water Street, on the east side, from Court Avenue to a point 55 feet south thereof, no parking any time.

Water Street, on the east side, from a point 277 feet south of Court Avenue to a point 20 feet south thereof, no parking any time.

Water Street, on the east side, from Walnut Street to a point 55 feet south thereof, no parking any time.

Water Street, on the west side, from Walnut Street to a point 40 feet south thereof, no parking any time.
(O.15,559)

Sec. 114-3758. Southwest Water Street—Vine Street to Southeast First Street.

Southwest Water Street, on the west side, from Vine Street to a point 63 feet south of Market Street, no parking any time.

Southwest Water Street, on the west side, from a point 183 feet south of Market Street to a point sixty feet south thereof, loading zone.

Southwest Water Street, on the west side, from a point 243 feet South of Market Street to West Martin Luther King Jr Parkway, no parking any time.

Southwest Water Street, on the west side, from a point 200 feet south of West Martin Luther King Jr Parkway to Southeast First Street, no parking any time.
(O.15,559)

Sec. 114-3759. Waterbury Circle—Fifty-sixth Street to North Waterbury Road.

Waterbury Circle, on the north side, from Fifty-sixth Street to Sixtieth Place; thence south on the west side for a distance of 308 feet; thence east on the south side for a distance of 354 feet; thence north on the east side for a distance of 460 feet, no parking any time.
(O.15,559)

Sec. 114-3760. Waterbury Road—Polk Boulevard to Waterbury Circle.

Waterbury Road, on the south side, from Polk Boulevard to Forty-ninth Street, no parking any time.

Waterbury Road, on the north side, from Forty-eighth Street to a point 50 feet west thereof, no parking any time.

Waterbury Road, on the north side, from Forty-ninth Street to Fifty-sixth Street, no parking any time.

Waterbury Road, on the north side, from Fifty-sixth Street to Fifty-seventh Street, no parking any time.

Waterbury Road, on the south side, from Fifty-seventh Street to Waterbury Circle, no parking any time.
(O.15,559)

Sec. 114-3761. Watrous Avenue—South Union Street to Southwest Sixty-third Street.

Watrous Avenue, on the north side, from South Union Street to a point 600 feet west of Southwest Ninth Street, no parking any time.

Watrous Avenue, on the south side, from a point 600 feet east of Southwest Ninth Street to Fleur Drive, no parking any time.

Watrous Avenue, on the north side, from a point 600 feet west of Southwest Ninth Street to a point 125 feet east of Fleur Drive, no parking 7:00 a.m. to 6:00 p.m.

Watrous Avenue, on the north side, from Fleur Drive to a point 125 feet east thereof, no parking any time.

Watrous Avenue, on the north side, from Fleur Drive to a point 50 feet west thereof, no parking any time.

Watrous Avenue, on the south side, from Fleur Drive to a point 650 feet east of Southwest Twenty-sixth Street, no parking any time.

Watrous Avenue, on the north side, from a point 360 feet west of Fleur Drive to a point 605 feet east of Southwest Twenty-sixth Street, school passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Watrous Avenue, on the south side, from a point 650 feet east of Southwest Twenty-sixth Street to Southwest Twenty-sixth Street, no stopping or standing.

Watrous Avenue, on the north side, from a point 605 feet east of Southwest Twenty-sixth Street to a point 60 feet west thereof, school bus loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Watrous Avenue, on the north side, from a point 545 feet east of Southwest Twenty-sixth Street to a point 395 feet west thereof, school passenger loading and unloading 7:00 a.m. to 5:00 p.m. school days.

Watrous Avenue, on the north side, from a point 150 feet east of Southwest Twenty-sixth Street to Southwest Twenty-sixth Street, no parking any time.

Watrous Avenue, on the south side, from a point 140 feet east of Southwest Twenty-eighth Street to Southwest Thirtieth Street, no parking any time.

Watrous Avenue, on both sides, from Southwest Fifty-sixth Street to Southwest Sixty-third Street, no parking any time.
(O.15,559, 16,126, 16,250, 16,299)

Sec. 114-3762. East Watrous Avenue—South Union Street to east city limits.

East Watrous Avenue, on the north side, from South Union Street to a point 260 feet east of Southeast Fourteenth Street, no parking any time.

East Watrous Avenue, on the south side, from a point 100 feet west of Southeast Fifth Street to a point 95 feet east of Southeast Fifth Street, no parking any time.

East Watrous Avenue, on the south side, from Southeast Thirteenth Street to a point 260 feet east of Southeast Fourteenth Street, no parking any time.

East Watrous Avenue, on the north side, from a point 180 feet west of Indianola Avenue to Indianola Avenue, no parking any time.

East Watrous Avenue, on both sides, from Southeast Twenty-fourth Street to Hartford Avenue, no parking any time.

East Watrous Avenue, on both sides of the street, from Southeast Thirty-fourth Street to Southeast Brooks Drive, no parking any time.
(O.15,559, 16,009, 16,271, 16,511)

Sec. 114-3763. Watson Avenue—First Street to Saylor Road.

Watson Avenue, on the north side, from Oxford Street to Saylor Road, no parking any time.

Watson Avenue, on the south side, from Saylor Road to a point 100 feet west thereof, no parking any time.
(O.15,559)

Sec. 114-3764. Watson Powell Jr Way—Third Street to Fourth Street.

Watson Powell Jr Way, on the south side, from Third Street to a point 200 feet west thereof, no parking any time.

Watson Powell Jr Way, on the north side, from a point 106 feet west of Third Street to a point 40 feet west thereof, commercial loading zone.

Watson Powell Jr Way, on the north side, from Watson Powell Jr Way to a point 50 feet east thereof, no parking any time.
(O.15,559)

Sec. 114-3765. Watson Powell Jr Way—Fourth Street to Fifth Avenue.

Watson Powell Jr Way, on the south side, from Fourth Street to a point 30 feet west thereof, no parking any time.

Watson Powell Jr Way, on the south side, from a point 125 feet west of Fourth Street to a point 50 feet west thereof, commercial loading zone.

Watson Powell Jr Way, on the south side, from a point 101 feet east of Fifth Avenue to a point 107 feet east thereof, loading zone, 8:00 a.m. to 4:00 p.m.

Watson Powell Jr Way, on the south side, from a point 310 feet west of Fourth Street to Fifth Avenue, no parking any time.
(O.15,559)

Sec. 114-3766. Watson Powell Jr Way—Fifth Avenue to Sixth Avenue.

Watson Powell Jr Way, on the south side, from Fifth Avenue to a point 85 feet west thereof, no parking any time.

Watson Powell Jr Way, on the north side, from Fifth Avenue to Sixth Avenue, no parking any time.
(O.15,559, 15,868)

Sec. 114-3767. Watson Powell Jr Way—Sixth Avenue to Seventh Street.

Watson Powell Jr Way, on the south side, from Sixth Avenue to a point 25 feet west thereof, no parking any time.

Watson Powell Jr Way, on the north side, from a point 75 feet west of Sixth Avenue to a point 90 feet west thereof, is designated a handicapped parking space from 4:00 p.m. Saturday to 1:00 p.m. Sunday and is subject to the same prohibition as is found in subsection 114-616(a) of this chapter.

Watson Powell Jr Way, on the south side, from Seventh Street to a point 25 feet east thereof, no parking any time.

Watson Powell Jr Way, on the north side, from Sixth Avenue to a point 75 feet west thereof, no parking any time.
(O.15,559)

Sec. 114-3768. Wauwatosa Drive—Park Avenue to Wakonda Court.

Wauwatosa Drive, on the west side, from Park Avenue to Wakonda Court, no parking any time.
(O.15,559)

Sec. 114-3769. Waveland Court—Forty-fifth Place to Polk Boulevard.

Waveland Court, on the south side, from Forty-fifth Place to a point 50 feet west thereof, no parking any time.

Waveland Court, on the south side, from a point 50 feet west of Forty-fifth Place to Polk Boulevard, no parking 8:00 a.m. to 3:00 p.m. school days.

Waveland Court, on the north side, from Forty-fifth Place to Polk Boulevard, no parking any time.
(O.15,559)

Sec. 114-3770. Waveland Drive—Lanewood Drive to Forty-first Street.

Waveland Drive, on the north side, from Lanewood Drive, to a point 50 feet west thereof, no parking any time.

Waveland Drive, on the south side, from Lanewood Drive to Forty-first Street, no parking any time.
(O.15,559)

Sec. 114-3771. Waverly Drive—Ravina Drive to Riverview Drive.

Waverly Drive, on the west side, from Ravina Drive to Riverview Drive, no parking any time.
(O.15,559)

Sec. 114-3772. Wayne Street—East University Court to Guthrie Avenue.

Wayne Street, on the east side, from Easton Boulevard to East Washington Avenue, no parking any time.
(O.15,559)

Sec. 114-3773. Webster Street—Hillside Avenue to dead end north.

Webster Street, on the west side, from Hillside Avenue to a point 200 feet north thereof, no parking any time.
(O.15,559)

Sec. 114-3774. Wedgewood Road—East Twenty-sixth Street to East Twenty-ninth Street.

Wedgewood Road, on the south side, from East Twenty-sixth Street to East Twenty-ninth Street, no parking any time.

Wedgewood Road, on the north side, from East Twenty-sixth Street to a point 50 feet east thereof, no parking any time.
(O.14,518 (installed 11/2/18), 15,559, 16,171)

Sec. 114-3775. Welbeck Road—Martin Luther King Jr Parkway to Boston Avenue.

Welbeck Road, on the north side, from Martin Luther King Jr Parkway to Boston Avenue, no parking any time.
(O.15,559)

Sec. 114-3776. Welker Avenue—Southwest Thirty-ninth Street to Southwest Sixty-third Street.

Welker Avenue, on the south side, from Southwest Thirty-ninth Street to Southwest Forty-second Street, no parking any time.

Welker Avenue, on the north side, from Southwest Fifty-first Street to a point 70 feet west thereof, no parking any time.

Welker Avenue, on the south side, from Southwest Fifty-first Street to Southwest Fifty-sixth Street, no parking any time.

Welker Avenue, on the south side, from Southwest Sixty-third Street to a point 50 feet east thereof, no parking any time.

Welker Avenue, on the south side, from Southwest Sixty-first Street to a point 50 feet west thereof, no parking any time.

Welker Avenue, on the north side, from Southwest Sixty-first Street to Southwest Sixty-third Street, no parking any time.

Welker Avenue, on the south side, from a point 80 feet east of Southwest Sixty-third Street to Southwest Sixty-third Street, no parking any time.
(C00, § 114-3776; O.14,518 (installed 1/31/20, 9/30/20), 15,559, 16,171)

Sec. 114-3777. West Street—Southwest Ninth Street to Southwest Fourteenth Street.

West Street, on the north side, from Southwest Ninth Street to a point 50 feet west thereof, no parking any time.

West Street, on the south side, from Southwest Ninth Street to Southwest Fourteenth Street, no parking any time.

West Street, on the north side, from Southwest Fourteenth Street to a point 50 feet east thereof, no parking any time.
(O.15,559)

Sec. 114-3778. West Martin Luther King Jr Parkway—Southwest Second Street to Martin Luther King Jr Parkway.

West Martin Luther King Jr Parkway, on both sides, from the center of Des Moines River to Martin Luther King Jr Parkway, no parking any time.
(O.15,559)

Sec. 114-3779. Westover Boulevard—Hickman Road to Urbandale Avenue.

Westover Boulevard, on both sides, from Hickman Road to Urbandale Avenue, no parking any time.
(O.15,559)

Sec. 114-3780. Reserved.

Editor's note—Ord. No. 15,881, § 1, adopted April 20, 2020, repealed § 114-3780, which pertained to West River Drive—Second Avenue to University Avenue and derived from Ord. No. 15,559; Ord. No. 15,563; Ord. No. 15,577.

Sec. 114-3781. Westwood Drive—Cul-de-sac east of Fifty-sixth Street to Fifty-sixth Street.

Westwood Drive, on the north side, from and including the cul-de-sac east of Fifty-sixth Street to Fifty-sixth Street, no parking any time.

Westwood Drive, on the south side, from a point 50 feet east of Fifty-sixth Street to Fifty-sixth Street, no parking any time.
(O.15,559, 15,920)

Sec. 114-3782. Whispering Ridge Drive—River Ridge Road to King Avenue.

Whispering Ridge Drive, on the west side, from River Ridge Road to King Avenue, no parking any time.
(O.15,559, 15,726)

Sec. 114-3783. Williams Court—Williams Street to East Forty-second Street.

Williams Court, on the east side, from Williams Street to East Forty-second Street, no parking any time.
(O.15,559)

Sec. 114-3784. Williams Street—Dean Avenue to East Douglas Avenue.

Williams Street, on the west side, from Timber Lane to East University Avenue, no parking any time.

Williams Street, on the east side, from Timber Lane to a point 50 feet north thereof, no parking any time.

Williams Street, on the west side, from East University Avenue to a point 350 feet north thereof, no parking any time.

Williams Street, on the east side, from Maple Street to East Sheridan Avenue, no parking any time.

Williams Street, on the east side, from Maple Street to a point 50 feet south thereof, no parking any time.

Williams Street, on the west side, from Easton Boulevard to a point 75 feet south thereof, no parking any time.

Williams Street, on the west side, from Easton Boulevard to a point 75 feet north thereof, no parking any time.

Williams Street, on the west side, from East Sheridan Avenue to a point 75 feet south thereof, no parking any time.

Williams Street, on the east side, from Hull Avenue to East Ovid Avenue, no parking any time.

Williams Street, on the east side, from East Euclid Avenue to East Douglas Avenue, no parking Monday through Saturday, 8:00 a.m. to 5:00 p.m.

Williams Street, on the west side, from East Douglas Avenue to a point 50 feet south thereof, no parking any time.
(O.15,559)

Sec. 114-3785. Willow Creek Avenue—Southwest Forty-second Street to west city limits.

Willow Creek Avenue, on both sides, from Southwest Forty-second Street to the west city limits, no parking any time.
(O.15,559)

Sec. 114-3786. Willowmere Circle—Southwest Fortieth Street to dead end west.

Willowmere Circle, on the south and west side, from Southwest Fortieth Street to a point 280 feet west thereof and any part of the cul-de-sac, no parking any time.
(O.15,559)

Sec. 114-3787. Willowmere Drive—Dead end north of Park Plaza Drive to Southwest Sixty-third Street.

Willowmere Drive, on the south side, from a point 280 feet north of Park Plaza and any part of the cul-de-sac to Southwest Twenty-third Street, no parking any time.

Willowmere Drive, on the north side, from a point 50 feet east of Fleur Drive to a point 50 feet west of Fleur Drive, no parking any time.

Willowmere Drive, on the south side, from Southwest Twenty-ninth Street to a point 50 feet west thereof, no parking any time.

Willowmere Drive, on the north side, from Southwest Twenty-ninth Street to Southwest Thirtieth Street, no parking any time.

Willowmere Drive, on both sides, from Southwest Sixty-first Street to a point 75 feet west thereof, no parking any time.

Willowmere Drive, on the south side, from a point 285 feet west of Southwest Sixty-first Street to a point 150 feet west thereof, no parking 8:00 a.m. to 5:00 p.m. Monday through Friday.

Willowmere Drive, on the south side, from a point 435 feet west of Southwest Sixty-first Street to Southwest Sixty-third Street, no parking any time.

Willowmere Drive, on the north side, from a point 120 feet east of Southwest Sixty-third Street to Southwest Sixty-third Street, no parking any time.

Willowmere Drive, on the north side, from a point 425 feet west of Southwest Sixty-first Street to a point 100 feet west thereof, no parking 8:00 a.m. to 5:00 p.m., Monday through Friday.
(C00, § 114-3787; O.14,518 (installed 11/29/17, 3/23/22), 15,559, 16,141, 16,171)

Sec. 114-3788. Wilmers Avenue—Southeast Third Street to Southeast Fifth Street.

Wilmers Avenue, on the north side, from Southeast Third Street to Southeast Fifth Street, no parking any time.

Wilmers Avenue, on the south side, from Southeast Third Street to a point 50 feet east thereof, no parking any time.

Wilmers Avenue, on the south side, from Southeast Fifth Street to a point 60 feet west thereof, no parking any time.
(O.15,559)

Sec. 114-3789. Wilson Avenue—East Fourteenth Street to Glenbrook Drive.

Wilson Avenue, on the south side, from East Fourteenth Street to a point 50 feet east thereof, no parking any time.

Wilson Avenue, on the north side, from East Fourteenth Street to Glenbrook Drive, no parking any time.
(O.15,559)

Sec. 114-3790. Windsor Drive—Fifty-eighth Street to Sixty-third Street.

Windsor Drive, on the north side, from Fifty-eighth Street to Sixty-third Street, no parking any time.

Windsor Drive, on the south side, from Sixty-third Street to a point 50 feet east thereof, no parking any time.
(O.15,559)

Sec. 114-3791. Winegardner Road—Dead end south of Enden Lane to East University Avenue.

Winegardner Road, on the west side, from a point 180 feet south of Enden Lane to East University Avenue, no parking any time.

Winegardner Road, on the east side, from Timber lane to a point 50 feet south thereof, no parking any time.

Winegardner Road, on the east side, from East University Avenue to a point 50 feet south thereof, no parking any time.
(O.15,559)

Sec. 114-3792. Winona Avenue—Dead end east of Southwest Sixty-second Street to Southwest Sixty-third Street.

Winona Avenue, on both sides, from Southwest Sixty-third Street to a point 50 feet east thereof, no parking any time.
(O.15,559)

Sec. 114-3793. Wisconsin Avenue—North Union Street to east city limits.

Wisconsin Avenue, on the north side, from North Union Street to a point 50 feet east thereof, no parking any time.

Wisconsin Avenue, on the south side, from North Union Street to East Eighth Street, no parking any time.

Wisconsin Avenue, on the south side, from Avenue Frederick M. Hubbell to East Twenty-ninth Street, no parking any time.

Wisconsin Avenue, on the north side, from the dead end west of East Forty-seventh Street and including any part of the cul-de-sac to the dead end east of East Forty-eighth Street and including any part of the cul-de-sac, no parking any time.

Wisconsin Avenue, on the north side, from East Fiftieth Court to Brook View Drive, no parking any time.
(C00, § 114-3793; O.14,518 (installed 10/20/20), 15,559, 15,750, 16,171)

Sec. 114-3794. Witmer Parkway—Thirty-fourth Street to Beaver Avenue.

Witmer Parkway, on the north side, from Thirty-fourth Street to Beaver Avenue, no parking any time.
(O.15,559)

Sec. 114-3795. Witmer Street—Twenty-seventh Street to Twenty-eighth Street.

Witmer Street, on the north side, from Twenty-seventh Street to a point 50 feet west thereof, no parking any time.

Witmer Street, on the south side, from Twenty-seventh Street to Twenty-eighth Street, no parking any time.
(O.15,559)

Sec. 114-3796. Wolcott Avenue—Southwest Ninth Street to Southwest Thirty-seventh Street.

Wolcott Avenue, on the south side, from Southwest Ninth Street to a point 100 feet west thereof, no parking any time.

Wolcott Avenue, on the north side, from Southwest Ninth Street to Southwest Twelfth Street, no parking any time.

Wolcott Avenue, on the south side, from Southwest Twelfth Street to a point 65 feet east thereof, no parking any time.

Wolcott Avenue, on the north side, from Southwest Twenty-eighth Street to Southwest Twenty-ninth Street, no parking any time.

Wolcott Avenue, on the north and south side, from Southwest Thirtieth Street to Southwest Thirty-first Street, no parking any time.

Wolcott Avenue, on the north side, from Southwest Thirty-first Street to a point 100 feet east thereof, no parking any time.
(O.15,559)

Sec. 114-3796.5. Wolcott Circle—Southwest Fifty-sixth Street to cul-de-sac west.

Wolcott Circle, on the north side, from Southwest Fifty-sixth Street to, and including, any part of the cul-de-sac west thereof, no parking any time.
(O.15,821)

Sec. 114-3796.7. Woodbury Circle—Walnut Ridge Drive to the dead end north of Walnut Ridge Drive.

Woodbury Circle, on the west side, from Walnut Ridge Drive north to and including the cul-de-sac, no parking any time.
(O.16,539, 16,543)

Sec. 114-3797. Woodland Avenue—Tenth Street to Fifteenth Street.

Woodland Avenue, on the south side, from a point 460 feet west of Tenth Street to a point 60 feet west thereof, no parking any time.

Woodland Avenue, on the south side, from Tenth Street to a point 50 feet west thereof, no parking any time.

Woodland Avenue, on the north side, from Tenth Street to a point 115 feet west thereof, no parking any time.

Woodland Avenue, on the north side, from a point 255 feet west of Tenth Street to a point 165 feet west thereof, no parking any time.

Woodland Avenue, on the north side, from a point 420 feet west of Tenth Street to a point 55 feet west thereof, commercial loading zone.

Woodland Avenue, on the south side, from a point 145 feet west of Twelfth Street to a point 80 feet west thereof, no parking any time.

Woodland Avenue, on the south side, from a point 30 feet east of Twelfth Street to a point 50 feet west of Twelfth Street, no parking any time.

Woodland Avenue, on the north side, from a point 150 feet west of Twelfth Street to a point 155 feet west thereof, no parking any time.

Woodland Avenue, on the north side, from Fourteenth Street to a point 95 feet west thereof, no parking any time.

Woodland Avenue, on the north side, from a point 225 feet west of Fourteenth Street to Fourteenth Place, no parking any time.

Woodland Avenue, on both sides, from Fourteenth Place to Fifteenth Street, no parking any time.

Woodland Avenue, on the north side, from a point 95 feet west of Fourteenth Street to a point 130 feet west thereof, commercial loading zone.

Woodland Avenue, on the south side, from Fourteenth Street to a point 55 feet west thereof, no parking any time.

Woodland Avenue, on the north side, from Fourteenth Street to a point 65 feet east thereof, no parking any time.

Woodland Avenue, on the south side, from Fourteenth Street to a point 30 feet east thereof, no parking any time.
(O.15,559)

Sec. 114-3798. Woodland Avenue—Fifteenth Street to Martin Luther King Jr Parkway.

Woodland Avenue, on the south side, from Fifteenth Street to a point 150 feet west thereof, no parking any time.

Woodland Avenue, on the south side, from a point 150 feet west of Fifteenth Street to Sixteenth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

Woodland Avenue, on the south side, from Sixteenth Street to a point 45 feet west of Sixteenth Street, is designated a handicapped parking space and is subject to the same prohibition as found in section 114-616(a) of this Code.

Woodland Avenue, on the south side, from a point 45 feet west of Sixteenth Street to a point 50 feet east of Seventeenth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

Woodland Avenue, on the north side, from Fifteenth Street to a point 130 feet west thereof, no parking any time.

Woodland Avenue, on the north side, from Sixteenth Street to a point 50 feet east of Seventeenth Street, two-hour parking 9:00 a.m. to 4:00 p.m.

Woodland Avenue, on the north side, from a point 65 feet east of Seventeenth Street to a point 50 feet west of Seventeenth Street, no parking any time.

Woodland Avenue, on the south side, from a point 55 feet east of Seventeenth Street to a point 75 feet west of Seventeenth Street, no parking any time.

Woodland Avenue, on the north side, from a point 160 feet west of Eighteenth Street to a point 25 feet west thereof, is designated a

handicapped parking space and is subject to the same prohibition as is found in section 114-616(a) of this Code.

Woodland Avenue, on the north side, from Nineteenth Street to a point 65 feet east thereof, no parking any time.

Woodland Avenue, on the north side, from Nineteenth Street to a point 40 feet west thereof, no parking any time.

Woodland Avenue, on the south side, from Nineteenth Street to a point 75 feet east thereof, no parking any time.

Woodland Avenue, on the north side, from Twentieth Street to a point 45 feet east thereof, no parking any time.

Woodland Avenue, on the south side, from Twentieth Street to a point 45 feet east thereof, no parking any time.

Woodland Avenue, on the south side, from Twentieth Street to Martin Luther King Jr Parkway, no parking any time.
(O.15,559, 16,477)

Sec. 114-3799. Woodland Avenue—Martin Luther King Jr Parkway to Twenty-eighth Street.

Woodland Avenue, on the south side, from Martin Luther King Jr Parkway to Twenty-eighth Street, no parking any time.

Woodland Avenue, on the north side, from Martin Luther King Jr Parkway to a point 200 feet west thereof, no parking any time.

Woodland Avenue, on the north side, from a point 55 feet east of Twenty-second Street to a point 45 feet west of Twenty-second Street, no parking any time.

Woodland Avenue, on the north side, from a point 50 feet east of Twenty-third Street to a point 60 feet west of Twenty-third Street, no parking any time.

Woodland Avenue, on the north side, from a point 100 feet east of Twenty-fourth Street to a point 50 feet west of Twenty-fourth Street, no parking any time.

Woodland Avenue, on the north side, from a point 50 feet west of Twenty-fourth Street to a point 85 feet west thereof, bus loading and unloading only 7:00 a.m. to 6:00 p.m., Monday through Friday.

Woodland Avenue, on the north side, from a point 50 feet east of Twenty-fifth Street to a point 50 feet west of Twenty-fifth Street, no parking any time.

Woodland Avenue, on the north side, from a point 50 feet east of Twenty-sixth Street to a point 50 feet west of Twenty-sixth Street, no parking any time.

Woodland Avenue, on the north side, from a point 50 feet east of Twenty-seventh Street to a point 50 feet west of Twenty-seventh Street, no parking any time.

Woodland Avenue, on the north side, from Twenty-eighth Street to a point 100 feet east thereof, no parking any time.
(C00, § 114-3799; O.14,518 (installed 2/14/17), 15,559, 15,776, 16,171, 16,444)

Sec. 114-3800. Woodland Avenue—Twenty-eighth Street to Thirty-fifth Street.

Woodland Avenue, on the south side, from Twenty-eighth Street to a point 50 feet west thereof, no parking any time.

Woodland Avenue, on the north side, from Twenty-eighth Street to a point 75 feet west of Thirty-first Street, no parking any time.

Woodland Avenue, on the south side, from a point 30 feet east of Twenty-ninth Street to a point 125 feet west of Twenty-ninth Street, no parking any time.

Woodland Avenue, on the south side, from a point 75 feet east of Thirty-first Street to Thirty-fifth Street, no parking any time.

Woodland Avenue, on the north side, from a point 50 feet east of Thirty-second Street to a point 50 feet west of Thirty-second Street, no parking any time.

Woodland Avenue, on the north side, from Thirty-fifth Street, to a point 75 feet east thereof, no parking any time.
(O.14,518 (installed 11/14/18, 6/5/20), 15,559, 16,171)

Sec. 114-3801. Woodland Avenue—Thirty-fifth Street to Forty-second Street.

Woodland Avenue, on the south side, from Thirty-fifth Street to Thirty-eighth Street, no parking any time.

Woodland Avenue, on the north side, from Thirty-eighth Street to Forty-second Street, no parking any time.

Woodland Avenue, on the south side, from Forty-second Street to a point 50 feet east thereof, no parking any time.
(O.15,559)

Sec. 114-3802. Woodland Avenue—Harwood Drive to Fifty-sixth Street.

Woodland Avenue, on the north side, from Harwood Drive to a point 50 feet east thereof, no parking any time.

Woodland Avenue, on the south side, from Harwood Drive to Forty-fourth Street, no parking any time.

Woodland Avenue, on the north side, from Forty-fifth Street, to Polk Boulevard, no parking any time.

Woodland Avenue, on the south side, from Polk Boulevard to Fifty-sixth Street, no parking any time.

Woodland Avenue, on the north side, from a point 60 feet east of Fifty-sixth Street to Fifty-sixth Street, no parking any time.
(O.14,518 (installed 8/8/18), 15,559, 16,171)

Sec. 114-3803. Woodland Road—Fifty-seventh Street to Sixty-third Street.

Woodland Road, on the north side, form Fifty-seventh Street to Fifty-ninth Street, no parking any time.

Woodland Road, on the north side, from Sixty-third Street to a point 50 feet east thereof, no parking any time.

Woodland Road, on the south side, from Sixty-first Street to Sixty-third Street, no parking any time.
(O.15,559)

Sec. 114-3804. Woodlawn Drive—Forty-second Street to Foster Drive.

Woodlawn Drive, on the north side, from Forty-second Street to Foster Drive, no parking any time.

Woodlawn Drive, on the south side, from Forty-second Street to a point 100 feet west thereof, no parking any time.

Woodlawn Drive, on the south side, from Glenview Drive to a point 100 feet east thereof, no parking any time.
(O.15,559)

Sec. 114-3805. Woods Drive—Thirty-eighth Place to Tonawanda Drive.

Woods Drive, on the south side, from Thirty-eighth Place to Tonawanda Drive, no parking any time.
(O.15,559)

Sec. 114-3806. Wrenwood Drive—Twenty-sixth Street to Twenty-seventh Street.

Wrenwood Drive, on the south side, from Twenty-sixth Street to a point 60 feet west thereof, no parking any time.

Wrenwood Drive, on the north side, from Twenty-sixth Street to Twenty-seventh Street, no parking any time.
(O.15,559)

Sec. 114-3807. Wright Street—Hull Avenue to East Douglas Avenue.

Wright Street, on the west side, from Hull Avenue to a point 85 feet north of East Euclid Avenue, no parking any time.

Wright Street, on the east side, from Hull Avenue to a point 50 feet north thereof, no parking any time.

Wright Street, on the east side, from a point 50 feet north of Hull Avenue to a point 25 feet north thereof, commercial loading zone.

Wright Street, on the east side, from East Euclid Avenue to a point 235 feet south thereof, no parking any time.

Wright Street, on the east side, from East Euclid Avenue to East Douglas Avenue, no parking any time.
(O.15,559, 16,327)

Sec. 114-3808. York Street—Fremont Street to East Aurora Avenue.

York Street, on the west side, from University Avenue to a point 120 feet south thereof, no parking any time.

York Street, on the east side, from Fremont Street to Guthrie Avenue, no parking any time.

York Street, on the west side, from Cleveland Avenue to a point 40 feet north thereof, no parking any time.

York Street, on the west side, from a point 60 feet south of Thompson Avenue to a point 70 feet north of Thompson Avenue, no parking any time.

York Street, on the west side, from a point 50 feet south of Guthrie Avenue to a point 50 feet north of Guthrie Avenue, no parking any time.

York Street, on the west side, from Hull Avenue to a point 50 feet north thereof, no parking any time.

York Street, on the east side, from Hull Avenue to East Euclid Avenue, no parking any time.

York Street, on the west side, from East Euclid Avenue to a point 100 feet south thereof, no parking any time.

York Street, on the west side, from a point 50 feet south of East Oak Park Avenue to a point 50 feet north of East Oak Park Avenue, no parking any time.

York Street, on the east side, from Jerlynn Avenue to East Shawnee Avenue, no parking any time.
(O.14,518 (installed 7/12/18), 15,559, 16,171)

Sec. 114-3809. Zwart Road—Forest Drive to Twenty-eighth Street.

Zwart Road, on the east and south side, from Forest Drive to Twenty-eighth Street, no parking any time.
(O.15,559)

Secs. 114-3810—114-3830. Reserved.

DIVISION 10. RESERVED*

Secs. 114-3831—114-4174. Reserved.

DIVISION 11. ODD/EVEN SIDE SNOW PARKING ZONES†

Sec. 114-4175. Designated.

The following streets and portions of streets constitute "odd/even side snow parking" zones and drivers of vehicles on streets within such odd/even side snow parking zones shall conform to the provisions of sections 114-236 and 114-236.015 of this chapter:

(1) *Zone "A" Boundary Description*. The Zone "A" boundary description is as follows: beginning at a point on the west side of 42nd Street and the north side of Forest Avenue, thence east along the north side of Forest Avenue, thence northwest along the southwest side of Beaver Avenue, thence northeast along the northwest side of Witmer Parkway, thence north along the west side of 34th Street, thence

*__Editor's note—__Ord. No. 15,658, § 1, adopted May 7, 2018, repealed Div. 10, §§ 114-3856—114-3938, 114-3961—114-4043, 114-4071—114-4115, which pertained to parking meter districts. See the Code Comparative Table for complete derivation. The user's attention is directed to § 114-636 et seq.

†__Editor's note—__Ord. No. 15,126, § 1, adopted August 27, 2012, amended the title of division 11 to read as herein set out. Former to said amendment, the division was entitled "Snow Ordinance Street."

east along the north side of Jefferson, thence north along the west side of 30th Street, thence east along the north side of Franklin Avenue and an extension of the north side of Franklin Avenue, thence north along the west side of 23rd Street, thence east along the south side of Lincoln Avenue, thence south along the east side of Martin Luther King Jr Parkway, thence west along the north side of Interstate 235, thence north along the west side of 42nd Street to the point of beginning.

(2) *Zone "B" Boundary Description.* The Zone "B" boundary description is as follows: beginning at a point on the west side of 9th Street and the north side of University, thence north along the west side of 9th Street, thence east along the north side of Hickman Road and Arlington Avenue, thence south along the east side of 6th Avenue, thence west along the north side of University Avenue to the point of beginning.

(3) *Zone "C" Boundary Description.* The Zone "C" boundary description is as follows: beginning at a point on the west side of Martin Luther King Jr Parkway and the north side of Ingersoll Avenue, thence north along the west side of Martin Luther King Jr Parkway, thence east along the south side of Interstate 235, thence south along the east side of 15th Street, thence west along the north side of Ingersoll Avenue to the point of beginning.

(O.14,891, 14,963, 15,056, 15,126, 15,221)

Secs. 114-4176—114-4179. Reserved.

DIVISION 12. CENTRAL BUSINESS DISTRICT BOUNDARY DESCRIPTION

Sec. 114-4180. Designated.

Within the central business district constituted of all streets located within the area bounded by a point beginning on the east side of Martin Luther King Jr Parkway and the north side of Grand Avenue, thence east to the west side of 19th Street, thence north to the north side of Ingersoll Avenue, thence east continuing along the north side of Ingersoll Avenue and the north side of High Street, thence north along the west side of 10th Street, thence east along the north side of Pleasant Street, thence north along the west side of 9th Street, thence east along the north side of Keosauqua Way, thence east along the north side of Keosauqua Way and continuing along the north side of Park Street and continuing on a straight line across the Des Moines River and along the north side of Des Moines Street, thence south along the east side of Pennsylvania Avenue and continuing south along the east side of East 7th Street, thence east along the north side of East Walnut Street, thence south along the west side of East 14th Street, thence west along the south side of East Walnut Street, thence south along the east side of Dey Street, thence west along the south side of East Court Avenue, thence south along the east side of Water Street and Southwest Water Street, thence west along the south side of West Martin Luther King Jr Parkway, thence north and west along the center of the Raccoon River, thence north along the east side of Martin Luther King Jr Parkway to the point of beginning.
(O.15,126, 15,263)

Chapters 115—117

RESERVED

Chapter 118

UTILITIES*

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Article II. Sewers and Sewage Disposal

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Sec. 118-57. Connection to public sewer.
Sec. 118-58. Detrimental use of privies, wells, vaults or septic tank systems; corrective measures.
Sec. 118-59. Defective private sewer lines or connections.
Sec. 118-60. Notice to comply.
Sec. 118-61. Removal and disuse of outside water closet.
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Sec. 118-63. Condemnation and penalty for failure to comply with order to remove outside water closet.
Sec. 118-64. Installation of toilet and toilet facilities by city when owner unable to pay.
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Sec. 118-67. Construction of privies.
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Sec. 118-70. Notice to clean privy vaults.
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Sec. 118-74. Disinfection of privy vault after removal of contents.
Sec. 118-75. Penalty.
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Secs. 118-77—118-105. Reserved.

Division 3. Reserved

Secs. 118-106—118-145. Reserved.

***Cross references—**Administration, ch. 2; buildings and building regulations, ch. 26; businesses, ch. 30; environment, ch. 42; floodplains, ch. 50; health and sanitation, ch. 54; planning, ch. 82; public improvements, ch. 94; solid waste, ch. 98; streets, sidewalks, skywalks, and other public places, ch. 102; subdivisions, ch. 106; telecommunications, ch. 110; electric franchise, app. C; gas franchise, app. D; sewer districts, app. G.

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Sec. 118-160. Reserved.
Sec. 118-161. Reserved.
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Article III. Regulation of Industrial Wastewater and Commercial Wastewater

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ARTICLE I. IN GENERAL

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The Des Moines Metropolitan Wastewater Reclamation Authority wastewater treatment, pumping station, equalization basin and flow metering functions shall be under the supervision of the administrator of the wastewater treatment division of the department of engineering, subject, however, to the provisions of this Code, this chapter and such other ordinances as the council may from time to time adopt. Whenever the term "superintendent" appears in this chapter, it shall mean the same as and be synonymous with the term "administrator of the wastewater treatment division of the department of engineering."
(C54, C62, § 48-1; O.7484; C75, § 21-1; O.9092; C79, C91, § 21-1; O.11,845, 13,349)

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DIVISION 1. GENERALLY

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DIVISION 2. TOILET FACILITIES

Sec. 118-56. Residential use premises.

Premises on which there is a building used or occupied for residence purposes shall be provided with a sanitary toilet. No cesspools, privy vaults, privies, or outside water closets shall be constructed in the city.
(C42, § 38-1; C54, C62, § 48-2; C75, C79, C85, § 21-2; O.11,568; C91, § 21-2)

Sec. 118-57. Connection to public sewer.

No person shall construct in any part of the city a septic tank or a private sewage disposal system without the written consent of the city engineer. Such consent shall be given only when the city engineer determines the proposed treatment method is acceptable and only when a sewer is unavailable or not accessible. Every private sewage disposal system located on premises or a lot abutting on or contiguous to any public sewer shall within a reasonable time make connections thereto.
(C42, § 36-20; C54, C62, § 48-3; C75, C79, C85, § 21-3; O.11,568; C91, § 21-3)

Sec. 118-58. Detrimental use of privies, wells, vaults or septic tank systems; corrective measures.

(a) Whenever the use and maintenance of any privy, well or vault located upon any premises in the city is found by the environmental health officer to be detrimental or dangerous to life or health, he or she is authorized and empowered to prohibit its use upon any such premises, to order it to be disinfected and filled with fresh earth, to order connection to the public sewer or, where a public sewer is not available or not accessible, to order a septic tank or private sewage disposal system to be constructed upon any such premises and to order the plumbing installed in any building located upon such premises to be connected with and drained into a properly constructed sewer or septic tank or private sewage disposal system.

(b) Whenever the use and maintenance of any septic tank system or private sewage disposal system located upon any premises in the city is found by the environmental health officer to be detrimental or dangerous to life, health, or the environment he or she is authorized and empowered to prohibit its use upon any such premises until such time as the condition caus-

*__Cross references—__Plumbing code, § 26-986 et seq.; emptying flammable liquids into sewers, § 70-73; sewer districts, app. G.

__State law reference—__Authority to require connection to public sewers, I.C. § 364.12(3)(f).

ing the system to be detrimental or dangerous to life, health, or the environment shall have been remedied and to order the detrimental or dangerous effects thereof to be abated by whatever means may be appropriate, including connection to the public sewer where reasonably accessible.
(C42, § 36-21; C54, C62, § 48-4; C75, C79, § 21-4; O.9832, 10,699; C85, § 21-4; O.11,568; C91, § 21-4; O.13,014, 14,485)

Sec. 118-59. Defective private sewer lines or connections.

Whenever it is found that a private sewer line or private sewer connection is broken or in such a state of disrepair as to constitute a nuisance or health hazard, the environmental health officer is authorized and empowered to order its repair or to order other corrective actions as deemed necessary.
(C79, § 21-4.01; O.10,699; C91, § 21-4.01; O.13,014)

Sec. 118-60. Notice to comply.

Whenever the public health or public safety requires that any lands, buildings or premises be connected with the public sewer or otherwise drained in the manner provided in section 118-58 or 118-59 of this division, the environmental health officer shall cause to be served upon the owner, agent or occupant of such premises a notice in writing specifying the time within which the connection must be made, which shall not exceed 30 days from the date of notice.
(C62, § 36-22; C54, C62, § 48-5; C75, C79, § 21-5; O.9832; C91, § 21-5; O.13,014)

Sec. 118-61. Removal and disuse of outside water closet.

The city council, whenever it deems it necessary for the preservation of the public health or welfare that any outside water closet, privy, privy vault or septic tank system be abandoned and removed, where there is a sanitary sewer in the street or alley abutting the property upon which an outside water closet, privy, privy vault or septic tank system is located, may order that it be abandoned and removed and that a sanitary toilet and toilet facilities or sanitary sewer connection be installed and connected with the sanitary sewer.
(C42, § 38-19; C54, C62, § 48-6; C75, C79, § 21-6; O.10,699; C91, § 21-6; O.15,521)

Sec. 118-62. Notice of order to remove outside water closet.

When the city council shall order the removal and disuse of any outside water closet, privy, privy vault or septic tank system and shall order that a sanitary toilet and toilet facilities or sanitary sewer connection be installed on any property and connected with the sanitary sewer or water, notice thereof shall be served upon the owner of such property personally or, if the owner cannot be found, by mailing a copy of the notice by registered mail to his or her last known address and posting a copy thereof on the property affected.
(C42, § 38-20; C54, C62, § 48-7; C75, C79, § 21-7; O.10,699; C91, § 21-7; O.15,521)

Sec. 118-63. Condemnation and penalty for failure to comply with order to remove outside water closet.

If the order referred to in section 118-61 of this division is not complied with within 30 days from the service of notice thereof, the city council may order the property condemned for human habitation, and any person thereafter using it or authorizing its use for human habitation, until such time as the order is complied with, shall be guilty of a misdemeanor, punishable by fine as provided in section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.
(C42, § 38-21; C54, C62, § 48-8; C75, C79, C91, § 21-8; O.15,521, 15,608)

Sec. 118-64. Installation of toilet and toilet facilities by city when owner unable to pay.

After the service of notice provided in section 118-62 of this division, if upon application by a property owner, the city council shall determine

that he or she is unable to pay for the installation of a sanitary toilet and toilet facilities, including water and sewer connections, the city

council may have the necessary toilet installed and assess the cost against the property benefitted, which shall be a special assessment and collection made as provided in I.C. ch. 364.
(C42, § 38-22; C54, C62, § 48-9; C75, C79, C91, § 21-9; O.15,521)

Sec. 118-65. Cleaning on discontinuance of privies.

Whenever the use of any cesspool or privy vault is discontinued, it shall be cleaned and filled with clean earth, ashes or other suitable material designated by the environmental health officer.
(C42, § 38-5; C54, C62, § 48-10; C75, C79, § 21-10; O.9832; C91, § 21-10; O.13,014)

Sec. 118-66. Location of privy vault or cesspool.

No cesspool or privy vault shall be maintained within 50 feet of any well or other source of water supply used for drinking or culinary purposes, nor shall it be maintained within 25 feet of any building used or occupied for residence purposes, nor within ten feet of any street, nor within five feet of any alley.
(C42, § 38-3; C54, C62, § 48-11; C75, C79, C85, § 21-11; O.11,568; C91, § 21-11)

Sec. 118-67. Construction of privies.

On premises used for residence purposes, no privy vault shall be maintained more than five feet or less than three feet in depth, more than five feet in length, nor more than three feet in width, and no cesspool shall be maintained more than ten feet in depth and five feet in diameter. Privy vaults shall be flytight, shall have seat covers and shall be properly vented.
(C42, § 38-4; C54, C62, § 48-12; C75, C79, C85, § 21-12; O.11,568; C91, § 21-12)

Sec. 118-68. Care and cleanliness of privies.

All privy vaults and cesspools shall be kept clean at all times, and the contents thereof shall not be permitted to accumulate within one foot of the surface of the ground at the tip of the vault. The door of the privy building shall not be allowed to remain open at any time unless there is a self-closing screen. No washwater, garbage, kitchen slops or liquid wastes of any kind shall be thrown into any privy vault, and no night soil from any person suffering from typhoid fever or other serious infection of the bowels or urinary tract shall be deposited in any privy vault or cesspool without being previously disinfected in such manner as may be approved by the attending physician or the environmental health officer.
(C42, § 38-6; C54, C62, § 48-13; C75, C79, § 21-13; O.9832; C91, § 21-13; O.13,014)

Sec. 118-69. Annual cleaning of privy vaults.

All privy vaults shall be emptied and cleaned at least once each year. The cleaning, emptying, and removing of the contents of privy vaults or cesspools shall be done in as inoffensive a manner as possible.
(C42, § 38-11; C54, C62, § 48-14; C75, C79, C91, § 21-14)

Sec. 118-70. Notice to clean privy vaults.

If the environmental health officer shall find a privy vault which has not been cleaned within a year or a privy vault or cesspool, the contents of which are within one foot of the surface of the ground at the top of the vault, or a privy vault or cesspool found to be a health menace, source of filth, cause of sickness or otherwise a nuisance jeopardizing public health or safety, he or she shall order the privy vault cleaned by notice in writing to be served on the owner and occupant of the premises upon which the vault is located.
(C42, § 38-13; C54, C62, § 48-15; C75, C79, § 21-15; O.9832; C91, § 21-15; O.13,014)

Sec. 118-71. Manner of serving notice to clean privy vaults.

The notice required by section 118-70 of this division shall be by personal service unless the owner or occupant cannot be found within the city, in which event notice shall be by mail directed to his or her last known place of address and by posting a copy of the notice in a conspicuous place on the dwelling located upon such property.
(C42, § 38-13; C54, C62, § 48-16; C75, C79, C91, § 21-16)

Sec. 118-72. Cleaning of privy vaults by city.

If, within three days after service of the notice referred to in section 118-70 of this division, the privy vault or cesspool has not been cleaned, the environmental health officer shall report the condition to the city council. Thereafter, the city council may cause the privy vault or cesspool to be cleaned and certify the cost thereof to the county treasurer for the purpose of assessing it against such property to be collected as other taxes.
(C42, § 38-13; C54, C62, § 48-17; C75, C79, § 21-17; O.9832; C91, § 21-17; O.13,014, 15,521)

Sec. 118-73. Hours of work of emptying privy vaults.

The cleaning, emptying and removing of the contents of privy vaults and cesspools shall be done between the hours of 6:00 a.m. and 7:00 p.m. All work done upon privy vaults or cesspools after the hours mentioned shall be done only by and with the consent of the environmental health officer.
(C42, § 38-11; C54, C62, § 48-18; C75, C79, § 21-18; O.9832; C91, § 21-18; O.13,014)

Sec. 118-74. Disinfection of privy vault after removal of contents.

After removal of the contents of any privy vault or cesspool, the excavation shall be thoroughly disinfected with air-slaked lime.
(C42, § 38-11; C54, C62, § 48-19; C75, C79, C91, § 21-19)

Sec. 118-75. Penalty.

Any person, firm, or corporation who fails to perform an act required by the provisions of this division who commits an act prohibited by the provisions of this division shall be guilty of a municipal infraction. The first violation of this division within a calendar year shall be deemed a first offense punishable for a civil penalty not to exceed $750.00. The second and subsequent violations within a calendar year shall be a repeat offense, punishable by a civil penalty not to exceed $1,000.00. The director of public works, or his or her authorized representative, or any police officer is authorized to issue a civil citation pursuant to I.C. § 364.22(4) to anyone violating this division indicating such person is in violation of the division and is subject to the penalties provided for in this section.
(C85, § 21-20; O.11,030, 11,445; C91, § 21-20; O.14,485)

Sec. 118-75.05. Administrative penalties—Notice of violations.

(a) The director of public works or his or her designated representative or any police officer is authorized to issue a notice of violation imposing an administrative penalty upon any person, firm or corporation who fails to perform an act required by this division or who commits an act prohibited by this division.

(b) The administrative penalty for such violations shall be as provided in the schedule of administrative penalties adopted by the city council by resolution.

(c) Notice of violation, with the applicable penalty for such violation noted thereon, shall be issued to the violator by the director of public works or his or her designated representative or any police officer. Service of the notice may be by regular mail or delivery in person.

(d) Penalties shall be paid in full within 30 days of the issuance of the notice.

(e) The administrative penalties set out in the schedule of administrative penalties shall be changed in lieu of the penalties provided for in section 118-75, unless the violator refuses to correct the violation and pay the scheduled administrative penalty, or the director determines that immediate enforcement action by municipal infraction or misdemeanor prosecution pursuant to section 1-15 is, in view of the particular circumstances of the case, necessary to achieve compliance with the requirements of this division. The public works department shall maintain a record of all violations and administrative penalties charged or other enforcement actions taken.
(O.14,485)

Sec. 118-76. Licensed contractor to remove contents of privy vaults, cesspools and septic tanks.

(a) No person shall remove, haul away, or dispose of the contents of a privy vault, cesspool, or septic tank located within the city unless such person is a licensed waste hauler possessing a current license pursuant to division 3 of this article.

(b) In undertaking such work, a licensed waste hauler contractor shall remove all of the contents of the privy vault, cesspool, or septic tank, and shall report to the environmental health officer all cases in which not all of the contents are or can be entirely removed and the reason therefor.

(c) A waste hauler contractor, having begun such work, shall without undue interruption or delay finish the work and shall in every instance leave the premises in as good condition as when the work was undertaken.
(C42, § 38-11; C54, C62, § 48-28; C75, C79, § 21-28; O.9832; C79, § 21-20.01; C91, §§ 21-20.01, 21-20.02)

Secs. 118-77—118-105. Reserved.

DIVISION 3. RESERVED*

Secs. 118-106—118-145. Reserved.

*__Editor's note—__Ord. No. 14,568, § 1, adopted June 19, 2006, repealed div. 3, §§ 118-106—118-117, which pertained to contractors and derived from Code 1942, §§ 38-7, 38-16, 38-10; Code 1954; Code 1962, §§ 48-21, 48-22, 48-26, 48-31; Code 1975; Ord. No. 9832; Code 1979, §§ 21-21, 21-22, 21-26, 21-30—21-33; Code 1985, § 21-27; Ord. No. 10,358; Ord. No. 11,453; Code 1991, §§ 21-21, 21-22, 21-23, 21-24, 21-26—21-33; Ord. No. 11,717; Ord. No. 11,845; Ord. No. 13,349; Ord. No. 13,616; Ord. No. 13,797. The user's attention is directed to art. III, div. 6, §§ 118-450—118-464 of this chapter.

DIVISION 4. CHARGES FOR WASTEWATER COLLECTION AND TREATMENT SERVICES†

Sec. 118-146. Purpose of division.

It is determined and declared to be necessary and conducive to the protection of the public health, safety, welfare and convenience of the city to levy and collect charges, rates or rentals upon all lots, parcels of real estate and buildings that are connected directly or indirectly to the Des Moines Sanitary Sewer System and which contribute wastewater for transportation to and treatment at the Des Moines Metropolitan Wastewater Reclamation Authority (WRA) Wastewater Reclamation Facility (WRF). The proceeds of such charges or rentals so derived are to be used for the purpose of funding the operation, maintenance, repair, replacement and debt service for the Des Moines sanitary sewer system, and for the purpose of funding the city's contribution to the WRA for operation, maintenance, repair, replacement and debt service for the WRA system pursuant to the WRA agreement.
(C42, § 95-1; O.5513; C54, C62, § 48-35; C75, C79, C91, § 21-34; O.11,700, 13,349, 13,796, 14,434)

Sec. 118-147. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Account holder means any person listed in city water works records as the person responsible for payment of sewer service charges, water service charges, solid waste collection service charges, or stormwater management service charges at a particular premises or property.

Administrator means the administrator of the sewer enterprise division of public works department.

†__Editor's note—__Ord. No. 14,434, § 1, adopted April 25, 2005, amended the title of div. 4 to read as herein set out. Prior to inclusion of said ordinance, div. 4 was entitled, "Rentals."

City or *the city* refers to the City of Des Moines.

City manager or *manager* refers to the City Manager of the City of Des Moines.

Combined service account means a customer account for the provision of water service, sewer service, solid waste collection service, stormwater management service, or any combination thereof, to a particular premises or property.

Contributor or *user* refers to any person, firm, corporation or other entity or organization responsible for the production of wastewater from a domestic, commercial or industrial source, which wastewater is directly or indirectly discharged into the city sanitary sewer system for treatment at the WRF, or which is discharged directly or indirectly to the WRA system for treatment at the WRF. For purposes of section 118-158, *"contributor"* also refers to any person, firm, corporation or other entity or organization responsible for the generation of solid waste which is subject to collection by the city pursuant to article II or II of chapter 98 of this Code, and to any person, firm, or corporation or other entity or organization responsible for the direct or indirect discharge of stormwater, or surface or subsurface waters, to the city's stormwater drainage system. For purposes of sections 118-158 and 118-159, *"user"* also refers to any person, firm, corporation or other entity or organization deriving water service from the city's water works.

Customer means a contributor to the city sanitary sewer system whose situs of usage is within the city, or a contributor whose situs of usage is outside the city and whose usage is pursuant to contract with the city.

Debt service refers to the amount of money necessary annually to pay the interest on outstanding debt and pay the principal of maturing bonded debt and loans.

Des Moines Metropolitan Wastewater Reclamation Authority System, or *WRA system* shall mean and include the WRF, the WRA wastewater collection and conveyance system, satellite wastewater and CSO treatment facilities hereafter constructed, all real and personal property of every nature hereinafter owned by the WRA and comprising part of or used as a part of the WRA system, and all appurtenances, contracts, leases, franchises and other intangibles of the WRA.

Des Moines Metropolitan Wastewater Reclamation Authority or *WRA* means the corporation and political subdivision established pursuant to the WRA agreement, organized and existing under Chapters 28E and 28F of the Iowa Code, and means and includes the representatives of the participating communities on the WRA board, and the officers and employees of the WRA.

Des Moines Sanitary Sewer System or *city sanitary sewer system* refers to the local outfall sewers, trunk sewers, pumping stations, force mains, and wastewater equalization basins, and all other structures, devices and appliances appurtenant thereto, which are used for collecting, conveying or storing wastewater and which serve and are owned, operated and maintained by the city.

Director refers to the director of public works as director of the WRA operating contractor and of the city sanitary sewer system.

Domestic wastewater means all household-type waste discharged from places of human habitation including sanitary convenience, kitchen and laundry waste. Domestic wastewater is further defined as a discharge to the sanitary sewer system which does not exceed daily maximum limits of 300 mg/l COD, 200 mg/l BOD, 250 mg/l suspended solids, 100 mg/l oil and grease, 30 mg/l TKN, and 15 mg/l NH3-N at a discharge rate of 100 gallons per capita per day. This loading is equal to 0.25 pounds of COD, 0.17 pounds of BOD, 0.20 pounds of suspended solids, 0.083 pounds of oil and grease, 0.025 pounds of TKN and 0.013 pounds of NH3-N per capita per day.

Operating contractor means the City of Des Moines and its directors, officers, employees and agents, acting pursuant to the initial operating contract between the city and the WRA, in the operation, maintenance, management and development of the WRA system.

Owner means property owner of record as reflected in the records of the county.

Participating communities means the cities of Altoona, Ankeny, Bondurant, Clive, Des Moines, Johnston, Norwalk, Pleasant Hill and West Des Moines, and Polk County, Warren County, the Urbandale Sanitary Sewer District, the Urbandale-Windsor Heights Sanitary District and the Greenfield Plaza/Hills of Coventry Sanitary District, together with any other cities, counties, or sanitary districts that become participating communities under the provisions of the WRA agreement.

Sewer service charge refers to all rates, charges, fees or rentals levied against and payable by the customers, except when special contracts have been or may be negotiated by and between the city and sanitary districts, commercial establishments, industries, or manufacturing plants.

User charge means sewage service charge.

WRA board means the duly appointed board of the WRA.

WRA wastewater collection and conveyance system means the WRA sanitary sewer interceptors and extensions to same, detention basins, equalization basins, storage facilities, pumping stations, force mains and all related property and improvements.

WRA wastewater reclamation facility or WRF refers to the wastewater treatment facility constructed and operated by the WRA in Des Moines at 3000 Vandalia Road, and to other such treatment facilities as may hereafter be constructed and operated by the WRA.
(C42, § 95-2; O.5513; C54, C62, § 48-34; C75, C79, § 21-35; O.10,465; C91, § 21-35; O.11,700, 13,166, 13,349, 13,796, 14,434)

Cross reference—Definitions generally, § 1-2.

Sec. 118-148. Duties of administrator.

The wastewater treatment division of the department of public works shall be supervised by the administrator who shall be responsible for operations under the general supervision of the director of public works and the city manager.
(C42, § 95-3; O.5513; C54, C62, § 48-36; O.7484; C75, C79, C91, § 21-36; O.11,700, 11,845, 14,434)

Sec. 118-149. Sewer service charges—Volume charge and customer service charge.

(a) Every customer shall pay to the city the rates and charges as established in this section to contribute toward the costs of construction, maintenance, and operation of the wastewater treatment system.

(b) When water service is provided to a customer whose property lies within the corporate limits of the city, the customer shall pay to the city, or upon the city's direction to the city's collection agent, a volume charge per 1,000 gallons or any fraction of 1,000 gallons for domestic wastewater plus a monthly service charge as provided in subsection (c). The charge for this subsection and subsection (c) shall be:

From—To	*Volume Charge per 1,000 Gallons or a Fraction thereof Subsection (b)*	*Monthly Service Charge Subsection (c)*
July 1, 2024—June 30, 2025	$9.28	$4.40
July 1, 2025—June 30, 2026	$9.84	$4.40
July 1, 2026—	$10.43	$4.40

(c) Except as otherwise provided, each customer whose property lies within the corporate limits of the city shall pay to the city, or at the direction of the city through its collection agent, a monthly customer service charge of $4.40 in addition to the volume charge, as shown in the table in subsection (b). In addition to the volume charge and service charge, customers shall pay all surcharges and penalties provided in section 118-151.

(d) The director shall periodically review the volume charge and the customer service charge in conjunction with the preparation of the budget for the city sanitary sewer system. If at any time the director determines that the volume charge, the customer service charge, and/or the budget for the city sanitary sewer system requires adjustment, the director shall report such determination to the city manager and city council. The city council may at any time adjust the volume charge or the customer service charge by adoption of an ordinance amending this section and

may at any time adjust the budget for the city sanitary sewer system by adoption of an appropriate resolution.

(e) Each customer whose property lies outside the corporate limits of the city, or otherwise provided sewer service pursuant to contract with the city, shall pay to the city a fee as set forth in section 118-154(d).
(C42, § 95-3; O.5040, 5513; C54, § 48-37; O.6969; C62, § 48-37; O.7161, 7762, 8277, 8284; C75, C79, C91, § 21-37; O.11,700, 13,796, 14,434, 14,749, 15,095, 15,455, 15,771, 16,135, 16,248, 16,266, 16,452)

Sec. 118-150. Reserved.

Editor's note—Ord. No. 13,796, § 1, adopted March 6, 2000, repealed § 118-150 which pertained to the basic sewer charge and derived from Code 1942, § 95-3; Ord. No. 5040; Ord. No. 5513; Code 1954, § 48-37; Ord. No. 6969; Code 1962, § 48-37; Ord. No. 7161; Ord. No. 7762; Ord. No. 8277; Ord. No. 8284; Code 1975, § 21-38; Ord. No. 9512; Code 1979, § 21-38; Ord. No. 9879; Ord. No. 10,465; Code 1991, § 21-38; Ord. No. 11,700; Ord. No. 11,843; Ord. No. 11,996; Ord. No. 13,349; and Ord. No. 13,653.

Sec. 118-151. Extra strength wastewater.

(a) No contributor shall contribute wastewater in excess of the limits for domestic wastewater, except in accordance with article III of this chapter pertaining to industrial pretreatment, or in accordance with an industrial pretreatment ordinance approved by the Environmental Protection Agency and adopted by a WRA constituent community. Contributors who contribute wastewater anywhere in the system in excess of the limits for domestic wastewater, whether residing or located within the city or elsewhere, shall be subject to the charges, surcharges, and/or penalties as provided in article III of this chapter, which shall be in addition to the rates and charges provided in this division.

(b) Constituent communities which have not by December 31, 1991 implemented industrial pretreatment by adopting and updating as needed a pretreatment ordinance and which have not authorized the city to enforce such an ordinance within their jurisdictions shall pay a sewer service charge 1½ times the charge calculated for such communities pursuant to subsection 118-150(b) of this division.
(C91, § 21-39; O.11,700, 14,434)

Sec. 118-152. Reserved.

Editor's note—Ord. No. 13,796, § 1, adopted March 6, 2000, repealed § 118-152 which pertained to demand charge; WRA debt service, and derived from Code 1991, § 21-40; Ord. No. 11,700; Ord. No. 11,996; Ord. No. 13,349; and Ord. No. 13,653.

Sec. 118-153. Reserved.

Editor's note—Ord. No. 13,796, § 1, adopted March 6, 2000, repealed § 118-153 which pertained to customer service charge; exemption for low income contributors, and derived from Code 1991, § 21-41; Ord. No. 11,700; Ord. No. 11,996; Ord. No. 13,349; and Ord. No. 13,653.

Sec. 118-154. Rate determinations; compliance with bond covenants.

(a) In calculating the sewer service charges imposed in section 118-149, the director shall include in the budgeted expense and revenue amounts sufficient funds as will ensure compliance with any and all rate covenants applicable to any outstanding bonds, notes or other obligations issued in connection with the construction and operation of the WRA system or the city sanitary sewer system.

(b) If in the judgment of the city manager, special conditions other than contribution of toxic pollutants affect the use of city water to the extent that the application of the volume charge provided in subsection 114-149(b) of this Code would be inequitable or unfair either to the city or to a

customer, a special rate shall be established by the city. A special rate in such cases shall be established only by resolution of the city council.

(c) In those cases where the special conditions are such that specially metered water is utilized for lawn or garden watering, air conditioning or similar usages whereby no part of the water so separately metered enters the sanitary sewer system, such usage of water may be exempted from sanitary sewer service charges by a permit conditioned that such water shall be so separately metered and so used. Such permits may be executed on behalf of the City of Des Moines by the city manager or his or her delegate. A copy thereof shall be delivered to the consumer, one copy retained by the issuing department, and one copy delivered to the Des Moines Water Works. This process shall not affect the rights of the Des Moines Water Works with respect to such metering or charges for water service. The city manager or his or her delegate shall collect with each application for such separate metering permit the sum of $25.00 to partially defray the administrative costs incident to the process. Where responsibility for a specially metered location is transferred, the transferee (if the transferee, including a new owner of land, building, or tenant or other entity, wishes to continue the use of a special meter) shall apply to have the permit transferred and the application of the transferee shall be treated for all purposes as a new application, except the fee to partially defray administrative costs shall be $10.00 in such cases. Such charges shall be additional to those incident to the issuance of plumbing permits for any plumbing charges which may be required.

(d) Each customer whose property or situs of wastewater usage lies outside of the corporate limits of the city and which has a contract for sewer service with the city, shall pay to the city through its collection agent, at the collection agent's office at the time payment for city water is made, or at the beginning of each calendar year, a sewer service charge computed on the basis of two times the foregoing schedule of rates applicable to customers within the city. However, contracts with customers outside of the corporate limits of the city, which include the sewage service charges, shall run until the minimum time for renegotiating under such contracts shall have expired, and payments under such contracts shall be paid directly to the city as provided therein.

(e) Any contributor who discharges any toxic pollutants which cause an increase in the cost of managing the effluent or the sludge from the wastewater treatment facility, or any contributor who discharges any substance which singly or by interaction with other substances causes identifiable increases in the cost of operation, maintenance, or replacement of the wastewater treatment facility or system, shall pay for such increased costs. The charge to each contributor shall be as determined by the director, all as provided in section 118-362 of this Code.

(f) Any contributor who discharges wastes which require an industrial pretreatment permit for discharges as provided in article III of this chapter or that delivers wastes directly to the wastewater treatment facility as contributors licensed under division 3 of this article shall be billed directly by the city and shall pay the city directly for all charges imposed pursuant to division 3 of this article.
(C91, § 21-42; O.11,700, 11.845, 13,349, 13,796)

Sec. 118-155. Measurement of sewer use.

(a) Each customer's sewer use and sewer service charges shall be based upon the volume of water consumed by that customer, unless an alternate means of measuring sewer use by a customer is approved or required by the director.

(b) The director may require an alternate means of measuring sewer use, such as the actual measurement or metering of wastewater discharge, if the director determines that water consumption cannot be accurately measured or is not an accurate measure of sewer use.

(c) Upon the application of a customer and upon the prior approval of the director, a customer's wastewater discharge may be separately metered or measured, utilizing such means as are approved by the director and provided at the customer's expense. Such approval may be withdrawn if the director determines

that such metering or measurement does not accurately reflect actual sewer usage by that customer.

(d) The collection agent may reduce the volume charge for any month for which a customer can demonstrate that the recorded water usage was in excess of normal usage due a leak, faulty meter, inaccurate meter reading, or other event beyond the reasonable control of the customer. In each instance in which the volume charge is reduced by the collection agent pursuant to this provision, the collection agent shall fully document the circumstances justifying such reduction and the amount thereof, and shall report such reduction and the justification therefor to the director.

(C42, § 95-3; O.5040, 5513; C54, § 48-37; O.6969; C62, § 48-37; O.7161, 7762, 8277, 8284; C75, C79, § 21-40; C91, § 21-44; O.11,700, 13,796)

Sec. 118-156. Private water supplies.

The rates set forth in this division shall apply in all cases in which wastewater from a privately produced water supply is discharged into the wastewater treatment system. Every person responsible for the production of water from a private water supply shall report immediately to the administrator of the wastewater treatment facility and cooperate with him or her in the determination of the quantity and character of the wastewater originating from each such respective private water supply. The administrator shall designate in these special cases any necessary means of measurements of the private water supply and resulting wastewater discharge. The meter or other means of measurements of such private water supply and resulting wastewater discharge shall be installed by and at the expense of the customer upon written order of the administrator of the wastewater treatment facility, who shall also pay the city's expense for periodic meter reading, or periodic verification of the amount of flow.

(C42, § 95-3; O.5040, 5513; C54, § 48-37; O.6969; C62, § 48-37; O.7161, 7762, 8277, 8284; C75, C79, § 21-43; C91, § 21-45; O.11,700, 13,796)

Sec. 118-157. Reserved.

Editor's note—Ord. No. 13,796, § 1, adopted March 6, 2000, repealed § 118-157 which pertained to effective date of rates and derived from Code 1991, § 21-46; Ord. No. 11,700; Ord. No. 11,843; Ord. No. 11,996; and Ord. No. 13,349.

Sec. 118-158. Billing procedures; late payment charge; past due and delinquent accounts.

(a) The city water works is authorized to act as the city's agent for the billing and collection of sewer, solid waste, and yard debris collection, and stormwater management service charges within the city and for charges made to the city sewer service contract accounts outside the city. The water works is authorized to read the water meter of each sewer contributor monthly, or in accordance with its procedures and regulations, and to thereafter bill sewer contributors the rates and charges provided in sections 118-149 and 118-154 of this division, utilizing its water use data as appropriate to calculate each billing. As to sewer contributors who do not derive water service from the water works, the water works shall bill such contributors for sewer service as determined and directed by the administrator pursuant to section 118-156 of this division. The water works is also authorized to bill each solid waste contributor the charges for solid waste collection service provided in section 98-55 of this Code. The city shall periodically provide to the water works an updated listing of elderly and disabled solid waste contributors entitled to the reduced rate for such service provided in subsection 98-55(c) of this Code. The water works is authorized to bill the owners or occupants of all properties within the city, except exempt properties, the charge for stormwater management services, all as provided by division 7 of this article.

(b) Payments for sewer, solid waste collection, and/or stormwater management services are due as of the date the billings are mailed, which date shall be the billing date. Water, sewer, solid waste collection, and/or stormwater management service charges will be billed to contributors and customers in a combined service account billing statement.

(c) If full payment of all charges billed in a combined service account billing statement is not received within 33 days after the billing date, the city water works is authorized to impose a five percent late payment charge, according to its established practices and procedures, upon

the unpaid balance of the account for sewer, solid waste collection and storm water management services. The water works may, after 30 days prior written notice to the city council, adjust the late payment charge percentage and/or the period after the due date when the late payment charge will be imposed. If the city council declines to approve such adjustments, it may repeal this authorization to impose the late payment charge.

(d) If full payment of all charges billed in a combined service account billing statement is not received within 40 days after the billing date, the contributor's or customer's combined service account shall be considered delinquent, and the Water Works shall give notice, as hereafter provided, that the combined service account is delinquent and that water service to the premises for which the account is delinquent will be discontinued if the delinquent charges are not paid within 50 days after the billing date.
(C42, § 95-10; O.5513; C54, C62, § 48-43; C75, C79, § 21-49; O.10,090, 10,699; C91, § 21-47; O.11,700, 13,166, 13,796, 14,434, 14,502, 15,664)

Sec. 118-159. Collection procedures; discontinuance of water service; tax lien.

(a) If full payment of all charges billed in a combined service account billing statement is not received within 50 days after the billing date, the Board of Water Works Trustees of the City of Des Moines, Iowa, doing business as Des Moines Water Works ("water works") is authorized to thereupon discontinue water service to that premises or property owned or rented by the account holder in whose name the delinquent charges were incurred.

(b) Water service shall not be discontinued at any premises or property owned or rented by the account holder in whose name the delinquent charges were incurred as herein provided unless notice of delinquency has been given to said delinquent account holder. If the account holder is a tenant, and if the owner or landlord has made a written request for notice prior to discontinuance of water service, the water works shall also send notice of delinquency to the owner or landlord. If the account holder is a tenant and requests a change of name for service under the account, such request shall be sent to the owner or landlord of the property if the owner or landlord has made a written request for notice of any change of name for service under the account to the rental property. Notice of delinquency shall be sent to such persons by ordinary mail to their last known addresses as reflected in the computer data base account records of the water works or in the applicable county auditor's real estate computer data file. The notice of delinquency shall include the delinquent charge or charges, and shall indicate that if payment of the total amount is not made by a date certain (corresponding to the 50th day after the billing date for that delinquent account), water service to the premises or property at which the account is delinquent will be discontinued. The notice shall further indicate that if the account holder believes that his or her billing or account balance is in error, the account holder has the right to appeal the notice of delinquency to a water works customer service representative, who shall be empowered to hear such appeals, and, after investigating the status of said account with the appropriate city department if necessary, to adjust account balances as the facts of each appeal may warrant.

(c) The physical disconnection or discontinuance of water service to a particular premises as above provided, or the reconnection of water service, shall be performed by the water works according to its established practices and procedures, and the water works may charge to such account its established fees or charges for disconnection and/or reconnection.

(d) For all active accounts, if full payment of all charges billed in a combined service account billing statement, including late payment charges, is not received within 87 days after the billing date, the water works shall send a notice of pending lien to the account holder in whose name the delinquent charges were incurred. If said delinquent account holder is a tenant, and the owner or landlord has made a written request for notice to water works, the water works shall also send notice of pending lien to the owner or landlord. The notice of pending lien shall be sent, at least 30 days prior to certification of the

lien to the applicable county, to such persons by ordinary mail to their last known addresses as reflected in the computer data base account records of the water works or in the applicable county auditor's real estate computer data file. The notice of pending lien shall include the delinquent charge or charges, and shall indicate that if payment of the total amount is not made by a date certain (corresponding to the 117th day after the billing date for that delinquent account), the delinquent charge or charges will be certified to the applicable county as a lien against the property or premises owned or rented by the account holder in whose name the delinquent charges were incurred, unless said property is exempt as a residential rental property as described below.

(e) For all final accounts, if full payment of all charges billed in a combined service account billing statement, including late payment charges, is not received within 60 days after the billing date, the water works shall send a notice of pending lien to the account holder in whose name the delinquent charges were incurred. If said delinquent account holder is a tenant, and the owner or landlord has made a written request for notice to water works, the water works shall also send notice of pending lien to the owner or landlord. The notice of pending lien shall be sent, at least 30 days prior to certification of the lien to the applicable county, to such persons by ordinary mail to their last known addresses as reflected in the computer data base account records of the water works or in the applicable county auditor's real estate computer data file. The notice of pending lien shall include the delinquent charge or charges, and shall indicate that if payment of the total amount is not made by a date certain (corresponding to the 90th day after the billing date for that delinquent account), the delinquent charge or charges will be certified to the applicable county as a lien against the property or premises owned or rented by the account holder in whose name the delinquent account charges were incurred, unless said property is exempt as a residential rental property as described below.

(f) If the owner or landlord of the property or premises involved shall give written notice of tenant liability for a residential rental property to water works as hereafter provided, such property or premises shall thereafter be exempt from the imposition of a lien as hereafter provided. Such owner or landlord, or tenant thereof, shall cause a deposit to be made with water works in an amount determined by the public works director that does not exceed the usual cost of 90 days of service for water, sewer, solid waste collection, and stormwater management, and upon receipt, water works shall acknowledge the notice and deposit. The written notice of tenant liability shall contain the name of the tenant responsible for water, sewer, solid waste collection, and/or stormwater management service charges, the address that the tenant occupies or is to occupy, and the date that the tenancy began or is to begin. A change in tenant shall require a new written notice of tenant liability and deposit to be provided to water works by the owner or landlord within 30 business days of the change in tenant. When the tenant moves from the rental property, the water works shall return the deposit if all special charges, service charges, and sales tax have been paid in full, and the lien exemption shall be lifted from the rental property. A change in the ownership of the residential rental property shall require written notice of such change to be given to water works within 30 business days of the completion of the change in ownership. The lien exemption for residential rental property does not apply to charges for repairs to a water service, or to charges for repairs related to a service of sewer systems, stormwater drainage systems, sewage treatment, solid waste collection, or solid waste disposal, if the repair charges become delinquent. The deposit herein provided shall be applied to pay sales tax, special charges, service charges, and late payment charges for final accounts. Any balance owing on said account after application of the deposit as above provided shall be carried forward and billed on the next billing statement of the account holder in whose name the delinquent rates or charges were incurred.

(g) If full payment of all charges billed in a combined service active account billing statement, including late payment charges, is not received within 117 days after the billing date, the water works shall prepare an assessment

schedule, as the city's billing and collection agent, listing such unpaid charges therein. If full payment of all charges billed in a combined service final account billing statement, including late

payment charges, is not received within 90 days after the billing date, the water works shall prepare an assessment schedule, as the city's billing and collection agent, listing such unpaid charges therein. A $5.00 administrative processing fee shall be charged to each delinquent account at the time it is included in the assessment schedule, which amount shall be separately identified on the assessment schedule and included in the amount being assessed. The water works shall prepare an assessment schedule at least once each month, listing all delinquent sewer, solid waste collection, and stormwater management service charges, and late payment charges, which accrued in the prior month or since the last assessment schedule was certified. Each such assessment schedule shall also identify each delinquent charge by name of the account holder in whose name the delinquent rates or charges were incurred, shall identify each property for which the sewer, solid waste collection, and/or stormwater management service charge is delinquent, and shall show the delinquent charges and the administrative processing fee to be assessed against each such property owned or rented by the delinquent account holder, unless said property is exempt as a residential rental property as described above. The treasurer of water works is hereby delegated the authority, on behalf of the city, to certify and file each such assessment schedule with the applicable county treasurer for filing of liens against the properties in the amounts shown thereon as provided in I.C. § 384.84. The treasurer of water works is hereby delegated the authority to correct sewer, solid waste and/or stormwater liens placed in error, to make corrections required by the applicable county due to district or parcel identification issues and to correct assessment schedules when liens are not authorized by statue to be placed or where payment has been made. The water works treasurer will provide a monthly report to the city finance director of any assessment schedule corrections made to the applicable county treasurer.

(h) Such lien shall be enforced until payment in full of the delinquent charges and the administrative processing fee shown on the assessment schedule is made at the office of the county treasurer.

(C91, § 21-47.01; O.13,166, 13,796, 14,796, 15,034, 15,061, 15,074, 15,124)

Sec. 118-160. Reserved.

Editor's note—Ord. No. 13,796, § 1, adopted March 6, 2000, repealed § 118-160 which pertained to annual review of rates and derived from Code 1979, § 21-46; Ord. No. 10,465; Code 1991, § 21-48; and Ord. No. 11,700.

Sec. 118-161. Reserved.

Editor's note—Ord. No. 13,796, § 1, adopted March 6, 2000, repealed § 118-161 which pertained to user notification and derived from Code 1979, § 21-47; Ord. No. 10,465; Code 1991, § 21-49; and Ord. No. 11,700.

Sec. 118-162. Reserved.

Editor's note—Ord. No. 13,796, § 1, adopted March 6, 2000, repealed § 118-162 which pertained to annual review of rates and derived from Code 1942, § 95-9; Ord. No. 5513; Code 1954 and Code 1962, § 48-42; Code 1975 and Code 1979, § 21-48; Code 1991, § 21-50; Ord. No. 11,700; and Ord. No. 13,349.

Sec. 118-163. Expenses of collection of sewer service charges.

The incremental cost of collecting and accounting for all sewer rentals or charges, including reasonable compensation to the collection agent; the maintenance of all books and records; the employment of all help; the cost of all books, records, materials and supplies; the obtaining and maintaining of all office and storage space; and all other costs and expenses reasonably necessary in connection therewith or incidental thereto shall be a part of the cost of operating the sewage treatment system and shall be incurred when the collection agent, in the exercise of his or her judgment, shall so determine. The incremental cost thereof shall be deducted by the collection agent, upon his or her certificate certifying to the amount thereof, from the remittance to which it relates, subject to the condition that any proposed change in any method of computing such incremental cost may be effective prospectively only and only after such proposed change shall have been submitted to and approved by the city finance director.

(C42, § 95-11; O.5513; C54, C62, § 48-44; C75, C79, § 21-50; O.10,090; C91, § 21-50.02; O.11,700)

Sec. 118-164. Inconsistent agreements or contracts.

The sections of this division shall take precedence over any terms or conditions of agreements

or contracts which are inconsistent with the requirements of section 204(b)(1)(A) of the Federal Water Pollution Control Act and section 35.2140 of 40 CFR 35, dated May 12, 1982, as amended.
(C79, § 21-51; O.10,465; C91, § 21-50.03; O.11,700)

Secs. 118-165—118-190. Reserved.

DIVISION 5. CONNECTIONS

Sec. 118-191. Sanitary sewer districts.

The city shall comprise one sewer district, except South Urban Area B Sanitary Sewer District and South Urban Area C Sanitary Sewer District and Northwest Interceptor Sanitary Sewer District, as described in article I of appendix G to this Code.
(C42, § 94-1; O.5389; C54, § 48-45; O.6056; C62, § 48-45; O.8425, 8532, 8660, 8736; C75, C79, C91, § 21-51)

Sec. 118-192. Permit required.

When the owner of any lot or parcel of ground which has not been assessed for or contributed to the construction of a sewer shall desire a permit to connect with such sewer, the city manager shall determine the amount to be charged.
(C42, § 94-2; O.5389; C54, C62, § 48-46; C75, C79, C91, § 21-54)

Sec. 118-193. Permit charge.

The charge for a permit to connect with a sewer shall be an equitable proportion of the cost of the sewer and the amount determined shall, upon confirmation by the city council, be paid to the city treasurer and credited to the sewer fund before a permit to make such connections shall be issued.
(C42, § 94-2; O.5389; C54, C62, § 48-47; C75, C79, C91, § 21-55)

Sec. 118-194. Required before paving.

Whenever the city council shall order any street, highway, avenue, alley, public ground or place permanently improved by paving, all owners of property fronting thereon shall make the connections from sewers to the curbline of the adjacent property before the improvement is made. If any connection is not made before the improvement is made, no permit shall be issued for the making of any connection within four years after the improvement is completed and accepted except upon payment of a fee of $200.00 in addition to all other fees and charges, which fee shall be credited to the fund and used in keeping pavements in repair.
(C42, § 94-3; O.5389; C54, C62, § 48-48; O.8493; C75, C79, § 21-56; O.10,699; C91, § 21-56)

Sec. 118-195. Notice to make connections.

Whenever the city council has ordered any street, highway, avenue, alley, public ground or place permanently improved by paving and the city council shall deem it necessary that the connections from any sewer should be made to the curbline of any adjacent property, it shall serve written notice on the property owner.
(C42, § 94-4; O.5389; C54, C62, § 48-49; C75, C79, C91, § 21-57)

Sec. 118-196. Method of giving notice.

Notice to property owners to connect from the sewer to the curbline shall be given either personally or by mail or by posting the notice on the property.
(C42, § 94-4; O.5389; C54, C62, § 48-50; C75, C79, C91, § 21-58)

Sec. 118-197. Contents of notice.

Notice shall be served on the property owners to make a connection from the sewer to the curbline in accordance with the city plumbing code by a date fixed, which shall not be less than ten days after notice is given, or to show cause in writing filed with the city manager within such time why the connections should not be made.
(C42, § 94-4; O.5389; C54, C62, § 48-51; C75, C79, C91, § 21-59)

Sec. 118-198. Order of city council.

At the expiration of the time fixed pursuant to section 118-197 of this division, the city manager shall report the matter to the city council with all objections filed, and recommendations he or she

may deem proper. Thereupon the council shall by resolution order the making of connections which it shall deem necessary.
(C42, § 94-4; O.5389; C54, C62, § 48-52; C75, C79, C91, § 21-60)

Sec. 118-199. Contract for installation.

When the city council shall order any sewer connections made, the city shall cause the work to be done and for such purpose may enter into a contract for the installation of such connection during a fiscal year or any part thereof.
(C42, § 94-5; O.5389; C54, C62, § 48-53; C75, C79, C91, § 21-61)

Sec. 118-200. Assessment of costs.

The cost of sewer connections to the curbline ordered by the city council shall be collected from the owner of the property for which the connections are made and assessed to that property as a special tax in the manner provided by I.C. ch. 364.
(C42, § 94-5; O.5389; C54, C62, § 48-54; C75, C79, C91, § 21-62)

Sec. 118-201. Permit to make connections after paving.

If water, gas, underground electrical connections or steam-heating connections are not made before the street, highway, avenue, alley, public ground or place is permanently improved by paving and it is necessary to cut through the pavement to make such connections, no permit shall be issued for making them within four years after the completion and acceptance of the pavement, except upon the payment of a fee of $200.00 in addition to all other fees and charges. The fee shall be credited to the funds used in keeping pavements in repair.
(C42, § 94-6; O.5389; C54, C62, § 48-55; O.8493; C75, C79, § 21-63; O.10,699; C91, § 21-63)

Sec. 118-202. Permit to connect private sewer with city sewer.

When the owner of any lot or parcel of ground shall desire to connect any private sewer with a sewer of the city, he or she shall apply for a permit therefor to the department of engineering. The fee for the permit shall be an equitable portion of the cost of the city sewer determined by the department of engineering, and the amount so determined shall, upon confirmation by the city manager, be paid to the city treasurer and credited to the sewer fund before a permit shall be issued.
(C54, § 48-55.01; O.5853; C62, § 48-55.01; C75, C79, C91, § 21-64; O.11,845)

Sec. 118-203. Service beyond corporate limits.

When the owner of any lot or parcel of ground located outside the corporate limits shall desire to connect to the sanitary sewer system of the city, either directly or indirectly by means of privately owned sewer laterals or otherwise except by virtue of an interim or ICA sewer service agreement between the city and another governmental entity, permission to so connect may not be presumed, but shall be subject to the conditions and payment of fees as provided in this division.
(C62, § 48-55.02; O.7161, 8285; C75, C79, § 21-65; O.10,500; C91, § 21-65)

Sec. 118-204. Conditions of permission to connect and fees payable.

Sewer connections referred to in section 118-203 of this division may be permitted or denied by the city manager or such city employee as may be designated by the city manager to exercise such function under direction of the city manager, such permission or denial to be exercised with the aim and purpose that no such connection shall be permitted which will be inconsistent with standards contained in city plumbing and right-of-way occupancy ordinances, which will be inconsistent with objectives of the city with reference to possible future annexation of the area proposed for service, which will or may interfere with orderly extension of trunk lines or laterals at some future date, or which will tend to require the sewer to which connection is sought or the sewer system of the city or the sewage treatment facilities of the city to be

burdened beyond their rated capacity and shall wherever and whenever permitted be upon the following conditions precedent:

(1) No person shall make any connections to the city sewer system either directly or indirectly without first making application therefor and obtaining a permit to do so from the city manager or his or her designee and paying the fees and connection charges established in this division.

(2) No sewer connection permit under circumstances described in section 118-203 of this division shall be issued unless a written application for the issuance of a sewer connection permit is submitted to the city manager or his or her designee. The written application shall state the name and address of the applicant; the nature, location and purpose of the connection; the description showing the dimensions thereof and area in square feet of the property to be served with reference to a properly recorded plat; the date of proposed commencement and the date of proposed completion of the connection, and it shall contain an agreement by the owner of the property binding upon the owner and the owner's successors or assigns to comply with all rules and regulations established regulating the use of the sewer and connections thereto including city ordinances relating to plumbing and street excavations, city ordinances prescribing sewer rental charges as stated or as amended; agreeing to waive any possible future objections to annexation proceedings instituted by the city which might be founded upon such sewer service, unless specifically waived or limited by resolution of the city council; and agreeing to hold the city harmless from any loss, liability or damage resulting from such connections or the use thereof.

(3) Failure to apply to the city manager or his or her designee with the information required in subsection (2) of this section shall be sufficient cause to deny issuance of a sewer connection permit. The city manager or his or her designee may refuse to issue the permit provided for in this section to any former permit holder who has intentionally violated the sections of this division relating to sewer connections.

(4) One sewer connection shall serve no more than 10,000 square feet of property, without approval of the city council setting an additional fee, as provided in this section. If the area of the property to be served exceeds 10,000 square feet, as shown in the written application for sewer connection permit, the city manager or his or her designee shall deny the application and immediately refer it to the city council. The maximum depth of any area to be served adjacent to a sewer to which property outside the city may connect under this section shall be 175 feet from the street right-of-way line, except those properties adjacent to the East Fourteenth Street sewer, which may be served to a depth of not to exceed 400 feet from the centerline of East Fourteenth Street. Any improvements beyond these limitations shall not be served by city sewer.

(5) When the application for connecting to the municipal sanitary utilities is filed with the city manager or his or her designee, the application shall be accompanied by a sewer connection fee as established within this division for the applicable trunk sewer, or where no sewer connection fee is established a sum computed at the rate of $0.015 per square foot of lot area to approximate the cost of extending trunk line sewer service to the near vicinity of the subject property and a further sum computed at the rate of $7.76 per front foot of the property to be served to approximate the cost of extending lateral sewer lines to the near vicinity of such property, which fee shall, however, in no case exceed the equitable portion of the total original cost to the city of extending such sanitary utilities to the near vicinity of the property served. If the property to be served exceeds

10,000 square feet, but is otherwise shown to qualify under this section for permission to connect, the city council may, nevertheless, approve the connection but may charge an additional reasonable and equitable fee proportionate to the fee in this subsection, based upon the area and frontage of the property to be served by the connection.

(6) If the fee established in subsection (5) of this section exceeds the equitable portion of the total original cost to the city of extending the sanitary utilities to the near vicinity of the property served, the city manager or his or her designee shall submit the application to the city council, which will make such adjustments as will render the fee reasonable and equitable in the circumstances. If the property owner has an objection to the reasonableness of the sewer connection fee or action of the city manager or his or her designee in computing the fee or denying the application, such owner may file a protest with the city council within ten days after such action or determination of the fee. The city council shall then consider the property owner's objection, and its determination shall be final.

(7) Upon receipt of the application in compliance with this section, together with the required fee, the city manager or his or her designee shall issue the sewer connection permit within ten days of the date of filing of such application unless it appears that the proposed connection would be contrary to the best interest of the city for reasons referred to in this section or such application does not comply with the conditions stated in this section.

(C62, § 48-55.03; O.8285; C75, C79, C91, § 21-66; O.15,733)

Sec. 118-205. Disposition of fees.

Any and all sewer connection fees collected under section 118-204 of this division shall be remitted to the city treasurer.

(C62, § 48-55.04; O.8285; C75, § 21-67; O.9592; C79, C91, § 21-67)

Sec. 118-206. Evidence for plumbing permit.

No permit shall be issued under section 26-1151 of this Code for any plumbing which embraces or must necessarily embrace one or more connections between the properties listed in such application and the sewer referred to in such application until the plumbing division of the department of building has received for its permanent records written evidence of payment of the full fees prescribed by ordinance for both trunk line and lateral facilities.

(C62, § 48-55.05; O.8285; C75, C79, C91, § 21-68)

Sec. 118-207. Violations.

Any person violating any of the provisions of sections 118-203 and 118-204 of this division shall be guilty of a misdemeanor.

(C62, § 48-55.06; O.8285; C75, C79, C91, § 21-69)

Sec. 118-208. Fee for connection to major sanitary sewer facilities.

(a) The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Benefited district means that area to which sanitary sewer service can feasibly be provided by a major sanitary sewer facility of a given design and capacity. For benefitted districts established after December 1, 2018, benefitted district means that area to which sanitary sewer service can feasibly be provided by a major sanitary sewer facility of a given design and capacity, excluding properties which are within the boundaries of another city and excluding properties the city is prohibited from annexing pursuant to an agreement with another city.

Connection means the act of connecting the building sewer of a residential structure to a lateral sewer or manhole constituting a part of a major sanitary sewer facility, or the act of connecting a lateral sewer serving a subdivision to a trunk sewer or manhole constituting a part of a major sanitary sewer facility.

Major sanitary sewer facility means and includes sanitary sewer trunk lines and sanitary sewer interceptors of greater than eight inches in diameter, and sanitary sewer force mains, pumping stations and detention basins.

(b) The city has determined the necessity of establishing a policy and a procedure to be utilized to recover the cost of designing and constructing major sanitary sewer facilities when a significant number of the properties to be benefited by such facilities are not sufficiently developed to permit the recovery of those costs through the special assessment process as provided in I.C. § 384.37 et seq. The city declares its intent to utilize connection fees, as provided in this section, to recover the costs of designing and constructing such major sanitary sewer facilities from property owners who connect to such facilities subsequent to their construction. It is the intent of this section to set forth the method of recovering proportional cost shares from those property owners who connect their properties to major sanitary sewer facilities subsequent to their construction, so that if all property, other than the city right-of-way, which lies within the benefited district is connected to the major sanitary sewer facilities during their expected useful life, those properties shall bear, in the aggregate, up to 100 percent of the cost of designing and constructing such facilities, including legal and administrative expenses associated therewith.

(c) If the city council determines the necessity of constructing a major sanitary sewer facility and determines that the utilization of a connection fee is the most equitable manner in which to recover the city's costs associated therewith, the city council shall cause a notice of public hearing on the proposed adoption of an ordinance to establish a benefited district and a connection fee to be published in a newspaper of general circulation within the city as provided in this section. In addition to indicating the date, time, and place of the public hearing, the notice shall:

(1) Indicate the nature and extent of the major sanitary sewer facility under consideration for construction, as well as the estimated cost for the design and construction of the facility;

(2) Identify by general description the proposed benefited district to be served by the major sanitary sewer facility; and

(3) Set forth the proposed schedule of connection fees to be paid by property owners within the benefited district who connect to the facilities, expressed in dollars per acre of land area served.

The notice shall also state that the proposed connection fee ordinance is on file and available for public inspection in the office of the city clerk. The notice shall be published not more than 45 days and not less than ten days prior to the scheduled date of the public hearing and shall be mailed to each property owner within the benefited district as shown by the records of the county auditor.

(d) At the public hearing, the owners or occupants of properties within the proposed benefited district shall be heard and may offer comments or objections as to:

(1) The necessity for the project;

(2) The calculation of the area benefited by the proposed major sanitary sewer facilities;

(3) The estimated cost of the proposed facilities; and

(4) The proposed per-acre connection fee.

Upon concluding the hearing, the city council shall rule upon the objections presented during the hearing and may consider the adoption of the proposed connection fee ordinance. Upon consideration of the proposed connection fee ordinance, the council may (i) adopt the ordinance as proposed, (ii) delete elements or portions of the proposed major sanitary sewer facilities from the proposed project and the lands served thereby from the benefited district proposed, or (iii) amend the ordinance to reduce the connection fee.

(e) The connection fee ordinance may provide, at the city council's discretion, that single-family residences within the benefited district, in

existence or under construction upon the effective date of the ordinance and located within the corporate limits, are eligible for connection to the major sanitary sewer facility. In that event, the ordinance shall include the provisions that:

(1) The owner of a residence on a parcel of less than one acre in size located within the city may connect such residence to the major sanitary sewer facility upon approval of the application for connection, payment of the connection fee for the parcel, and construction of appropriate connection structures, as determined necessary by the city engineer; and

(2) The owner of a residence on a parcel in excess of one acre in size located within the city may connect such residence to the major sanitary sewer facility upon approval of the application for connection, subdivision of the parcel into a residence parcel and an outlot, payment of the connection fee for the residence parcel, and construction of appropriate connection structures, as determined necessary by the city engineer.

All other property located within the corporate limits and within a benefited district shall be eligible for connection to the major sanitary sewer facility upon approval of an application for connection by the owner thereof, as provided in this section, and payment of the connection fee for such property, provided such property has been appropriately subdivided for development and provided that all sanitary sewer improvements necessary to serve the property have been constructed and approved by the city. Property located outside the corporate limits of Des Moines shall not be eligible for connection to a major sanitary sewer facility except as otherwise provided herein.

(f) After adoption and publication of a connection fee ordinance for a benefited district, the owners of those properties within the benefited district whose properties are eligible for connection and who propose to connect such properties directly or indirectly to the major sanitary sewer facility shall make application to the city engineer for such connection. No connection shall be made to a major sanitary sewer facility until such application has been approved and until the required connection fee has been paid.

(g) For connections for service within a benefitted district, the sewer connection fee shall be in an amount equal to the maximum acre area of contiguous property or fraction thereof within the benefited district under such ownership which can be lawfully served through such proposed connection, multiplied by the per-acre connection fee established in the connection fee ordinance for that benefited district. For connections for service outside a benefitted district for which service could be provided by a major sanitary sewer facility for which a benefitted district was established, the sewer connection fee shall be in an amount equal to the maximum acre area of contiguous property or fraction thereof under such ownership which can be lawfully served through such proposed connection, multiplied by the per-acre connection fee established in the connection fee ordinance for that benefitted district. The connection fee ordinance may provide for a graduated connection fee, with annual interest adjustments, such that a property owner who connects in later years pays interest on the connection fee for his or her property.

(h) The sewer connection fee required by this section is in addition to and not in lieu of any other fees for connection required under the plumbing code or other sections of this Code.

(i) If any property owner connects his or her property to a major sanitary sewer facility without having made application therefor or without having received approval thereof or without having paid the required connection fee established by a connection fee ordinance, the city shall be entitled to disconnect such private sewer connection until such time as the property owner has made and received approval of his or her application and/or has paid the required connection fee.
(C91, § 21-70.01; O.13,038, 13,379, 13,849, 15,703, 15,733)

Sec. 118-209. Fee for connection to Maury Street Sanitary Sewer—Southeast Twenty-first Street to Southeast Twenty-second Court.

(a) The following words, terms and phrases, when used in this section, shall have the meanings ascribed to them in this subsection, except where the context clearly indicates a different meaning:

Benefitted area property means that property described in article I of appendix G to this Code.

Special assessment agreement means that contract, petition and waiver by and between the city and General Farms Research, Inc., as property owner, and Lillian C. Nelson and Brenton National Bank of Des Moines, as lienholders, approved by the city by roll call 1735, enacted April 23, 1984, as amended by that letter, approved by roll call 2328, enacted May 29, 1984.

(b) Under the terms of the special assessment agreement, General Farm Research, Inc. agreed that the original assessment property shall bear initially the original project cost of $116,914.08 for construction of the Maury Street Sanitary Sewer—Southeast Twenty-first Street to Southeast Twenty-second Court, provided that the city shall endeavor to recover a proportional share of such costs from those other benefited property owners who later connect to such sanitary sewer public improvement. It is the intent of this section to set forth the method to recover such proportional shares from other property owners so that if all property, other than the city right-of-way, which lies within the benefited area boundary is connected to the Maury Street Sanitary Sewer—Southeast Twenty-first Street to Southeast Twenty-second Court during the expected useful life of this improvement, the original assessment property shall bear 70.05 percentage of the original cost and the remaining properties in aggregate shall bear 29.95 percentage thereof.

(c) The owner of every property (other than the properties of General Farm Research, Inc. which were originally assessed for construction of the Maury Street Sanitary Sewer Project from Southeast Twenty-first Street to Southeast Twenty-second Court by reason of the special assessment agreement and the final assessment schedule and acceptance of work, roll call nos. 4899 and 4900, enacted October 22, 1984, the original assessment property, and the city right-of-way) located within the benefited area boundary who proposes to connect such property directly or indirectly to the Maury Street Sanitary Sewer Project from Southeast Twenty-first Street to Southeast Twenty-second Court shall pay to the city a sewer connection fee in an amount equal to the maximum square foot area of contiguous property within the benefited area boundary under such ownership which can be lawfully served through such proposed connection to the sanitary sewer multiplied by $0.096915976 per square foot.

(d) Before connection is made to the city sewer, either:

(1) This sewer connection fee shall be paid; or

(2) If such sewer connection is to be made prior to July 1, 1995, and the property owners and all lienholders, if any, contractually agree to special assessment of this sewer connection fee against their property as if their property had been originally specially assessed for construction of this sewer project and pay an amount equal to the sewer connection fee multiplied by the fraction of X divided by 15 where X is the number of July firsts starting with July 1, 1985 and ending with the July 1 immediately prior to the date of the agreement, or X = 0, if the date of the agreement is prior to July 1, 1985, then the city shall file an amended special assessment schedule which shall assess the unpaid portion of this sewer connection fee against such property and which shall provide that such amount can be paid in equal annual installments on each July 1 commencing on the July 1 following the date of such agreement and ending on July 1, 1999 together with interest thereon at a rate of three percent per annum computed to December 1 following the due date of each installment

and which interest commences (i) October 22, 1984, if such agreement is made prior to July 2, 1985, or (ii) the July 1 immediately preceding the date of such agreement, if such agreement is made after July 1, 1985; provided, however, that the entire amount of such sewer connection fee shall become immediately due if any lawsuit challenges the validity of such special assessment.

(e) Any sewer connection fees received by the city pursuant to this section prior to July 1, 1999 shall be applied to reduce the amount of the assessment against the original assessment property and the city shall file an appropriately amended assessment schedule. To the extent of any sewer connection fees received by the city prior to July 1, 1999 which exceed the remaining amount of the assessment against the original assessment property and for any sewer connection fees received by the city after June 30, 1999, the city shall pay an amount equal to such fees received to General Farm Research, Inc. or its successors or assigns, as appropriate, provided General Farm Research, Inc., or its successors or assigns, are not in default on any of its payment obligations and provided that in no event shall the total of such payments reduce the amount paid to the city by General Farm Research, Inc., or its successors or assigns, below $81,900.20 together with any interest payable on any portion thereof paid by installment.

(f) The sewer connection fee required by this section is in addition to, and not in lieu of, any other fees for connection required under the plumbing code or other sections of this Code.

(g) If any property owner connects to the Maury Street Sanitary Sewer—Southeast Twenty-first Street to Southeast Twenty-second Court without paying or making arrangements to pay the sewer connection fee required by this section, the city shall be entitled to disconnect such private sewer connection until such time as the property owner has paid or made arrangements to pay the sewer connection fee.

(h) No sewer connection fee shall be required for connection to this sanitary sewer project on and after July 1, 2005.
(C79, § 21-70.02; O.10,544; C91, § 21-70.02)

Sec. 118-210. Fee for connection to Four Mile East Trunk Sewer.

(a) Pursuant to section 118-208 of this division the Four Mile East Trunk Sewer Benefited District is established for the purpose of collecting within such district a fee from those property owners who shall make application to connect their properties to the sewer.

(b) The boundaries of the Four Mile East Trunk Sewer Benefited District shall be as described in article I of appendix G to this Code.

(c) A connection fee is established and imposed upon the owners of properties within the Four Mile East Trunk Sewer Benefited District who shall make application to connect their properties to the sewer pursuant to section 118-208 of this division. The connection fee for the Four Mile East Benefited District shall be $1,135.00 for each acre of property connected to the trunk sewer during the period from initial enactment of the connection fee on September 6, 1994 until July 1, 1995. Thereafter, the per-acre connection fee for connections to the sewer shall be annually adjusted as of July 1 of each year by applying simple interest thereto at the rate of nine percent per annum, simple interest until July 1, 2009 and then at five percent per annum, simple interest, as per the following schedule:

Connection Fee Per Acre	*For the Period* *From*	*To*
$1,134.66	July 1, 1995	June 30, 1996
$1,236.78	July 1, 1996	June 30, 1997
$1,338.90	July 1, 1997	June 30, 1998
$1,441.02	July 1, 1998	June 30, 1999
$1,543.14	July 1, 1999	June 30, 2000
$1,645.26	July 1, 2000	June 30, 2001
$1,747.38	July 1, 2001	June 30, 2002
$1,849.50	July 1, 2002	June 30, 2003
$1,951.62	July 1, 2003	June 30, 2004
$2,053.74	July 1, 2004	June 30, 2005
$2,155.86	July 1, 2005	June 30, 2006
$2,257.98	July 1, 2006	June 30, 2007
$2,360.10	July 1, 2007	June 30, 2008
$2,462.22	July 1, 2008	June 30, 2009
$2,518.95	July 1, 2009	June 30, 2010
$2,575.68	July 1, 2010	June 30, 2011
$2,632.41	July 1, 2011	June 30, 2012
$2,689.14	July 1, 2012	June 30, 2013
$2,745.88	July 1, 2013	June 30, 2014
$2,802.61	July 1, 2014	June 30, 2015 and after

The schedule of connection fees shall be administered and applied as provided in section 118-208 of this division.

(d) Single-family residences within the Four Mile East Trunk Sewer Benefited District, in existence or under construction upon the effective date of the ordinance from which this section derives, and located within the corporate limits are eligible for connection to the major sanitary sewer facility. Owners of such residences on parcels of less than one acre in size located within the city and within the benefited district may connect such residences to the Four Mile East Trunk Sewer upon approval of their application for connection, payment of the connection fee for the parcel, and construction of appropriate connection structures, as determined necessary by the city engineer, and owners of such residences on parcels in excess of one acre in size located within the city and within the benefited district may connect such residences to the Four Mile East Trunk Sewer upon approval of their application for connection, subdivision of the parcel into a residence parcel and an outlot, payment of the connection fee for the residence parcel, and construction of appropriate connection structures, as

determined necessary by the city engineer. All other property located within the corporate limits and within the Four Mile East Trunk Sewer Benefited District shall be eligible for connection to the Four Mile East Trunk Sewer upon approval of an application for connection by the owner thereof and payment of the connection fee for such property, provided such property has been appropriately subdivided for development, and provided that all sanitary sewer improvements necessary to serve the property have been constructed and approved by the city. The city council may, pursuant to agreement with the city of Pleasant Hill, authorize the connection of properties outside the corporate limits of Des Moines to the Four Mile East Trunk Sewer. Upon council approval of such agreement, the properties outside the corporate limits of Des Moines identified in such agreement shall be eligible to connect to the Four Mile East Trunk Sewer.
(C91, § 21-70.03; O.13,088, 13,379, 13,849, 14,887)

Sec. 118-211. Fee for connection to Easter Lake Area Trunk Sewers.

(a) Pursuant to section 118-208 of this division, the Easter Lake Area Trunk Sewers Benefited District is established for the purpose of collecting within the district a fee from those property owners who shall make application to connect their properties to the sewer.

(b) The boundaries of the Easter Lake Area Trunk Sewers Benefited District shall be as described in article I of appendix G to this Code.

(c) A connection fee is established and imposed upon the owners of properties within the Easter Lake Area Trunk Sewers Benefited District who shall make application to connect their properties to the sewer pursuant to section 118-208 of this division. The initial connection fee for the Easter Lake Area Benefited District shall be $2,088.24 for each acre of property connected to the trunk sewer during the period from initial enactment of the connection fee on October 3, 1994 until July 1, 1995. Thereafter, the per-acre connection fee for connections to the sewer shall be annually adjusted as of July 1 of each year by applying simple interest thereto at the rate of nine percent per annum, simple interest until July 1, 2009 and then at five percent per annum, simple interest, as per the following schedule:

	For the Period	
Connection Fee Per Acre	*From*	*To*
$1,749.02	July 1, 1995	June 30, 1996
$1,906.43	July 1, 1996	June 30, 1997
$2,063.84	July 1, 1997	June 30, 1998
$2,221.25	July 1, 1998	June 30, 1999
$2,378.66	July 1, 1999	June 30, 2000
$2,536.07	July 1, 2000	June 30, 2001
$2,693.48	July 1, 2001	June 30, 2002
$2,850.90	July 1, 2002	June 30, 2003
$3,008.31	July 1, 2003	June 30, 2004
$3,165.72	July 1, 2004	June 30, 2005
$3,323.13	July 1, 2005	June 30, 2006
$3,480.54	July 1, 2006	June 30, 2007
$3,637.95	July 1, 2007	June 30, 2008
$3,795.36	July 1, 2008	June 30, 2009
$3,882.82	July 1, 2009	June 30, 2010
$3,970.28	July 1, 2010	June 30, 2011
$4,057.73	July 1, 2011	June 30, 2012
$4,145.18	July 1, 2012	June 30, 2013
$4,232.63	July 1, 2013	June 30, 2014
$4,320.08	July 1, 2014	June 30, 2015 and after

The schedule of connection fees shall be administered and applied as provided in section 118-208 of this division.

(d) Single-family residences within the Easter Lake Area Trunk Sewers Benefited District, in existence or under construction upon the effective date of the ordinance from which this section derives, and located within the corporate limits are eligible for connection to the Easter Lake Area Trunk Sewers. Owners of such residences on parcels of less than one acre in size located within the city and within the benefited district may connect such residences to the Easter Lake Area Trunk Sewers upon approval of their application for connection, payment of the connection fee for the parcel, and construction of appropriate connection structures, as determined necessary by the city engineer. Owners of such residences on parcels in excess of one acre in size located within the city and within the benefited district may connect such residences to the Easter Lake Area Trunk Sewers upon approval of their application

for connection, subdivision of the parcel into a residence parcel and an outlot, payment of the connection fee for the residence parcel, and construction of appropriate connection structures, as determined necessary by the city engineer. All other property located within the corporate limits and within the Easter Lake Area Trunk Sewers Benefited District shall be eligible for connection to the Easter Lake Area Trunk Sewers upon approval of an application for connection by the owner thereof and payment of the connection fee for such property, provided such property has been appropriately subdivided for development, and provided that all sanitary sewer improvements necessary to serve the property have been constructed and approved by the city.
(C91, § 21-70.04; O.13,101, 13,379, 14,887)

Sec. 118-212. Fee for connection to Southwest Airport Area Trunk Sanitary Sewer System.

(a) Pursuant to section 118-208 of this division, the Southwest Airport Area Trunk Sanitary Sewer System Benefited District is established for the purpose of collecting within the district a fee from those property owners who shall make application to connect their properties to the sewer.

(b) The boundaries of the Southwest Airport Area Trunk Sanitary Sewer System Benefited District shall be as described in article I of appendix G to this Code.

(c) A connection fee is established and imposed upon the owners of properties within the Southwest Airport Area Trunk Sanitary Sewer System Benefited District who shall make application to connect their properties to the sewer pursuant to section 118-208 of this division. The connection fee for the Southwest Airport Trunk Sanitary Sewer System Benefited District shall be $1,840.51 for each acre of property connected to the trunk sewer during the period from initial enactment of the connection fee on July 16, 2001 to June 30, 2002. Thereafter, the per-acre connection fee for connections to the sewer shall be annually adjusted as of July 1 of each year by applying simple interest thereto at the rate of nine percent per annum, simple interest until July 1, 2009 and then at five percent per annum, simple interest, as per the following schedule:

	For the Period	
Connection Fee Per Acre	*From*	*To*
$1,840.51	July 16, 2001	June 30, 2002
$2,006.15	July 1, 2002	June 30, 2003
$2,171.80	July 1, 2003	June 30, 2004
$2,337.44	July 1, 2004	June 30, 2005
$2,503.09	July 1, 2005	June 30, 2006
$2,668.73	July 1, 2006	June 30, 2007
$2,834.38	July 1, 2007	June 30, 2008
$3,000.03	July 1, 2008	June 30, 2009
$3,092.06	July 1, 2009	June 30, 2010
$3,184.08	July 1, 2010	June 30, 2011
$3,276.11	July 1, 2011	June 30, 2012
$3,368.13	July 1, 2012	June 30, 2013
$3,460.16	July 1, 2013	June 30, 2014
$3,552.18	July 1, 2014	June 30, 2015
$3,644.21	July 1, 2015	June 30, 2016
$3,736.24	July 1, 2016	June 30, 2017
$3,828.26	July 1, 2017	June 30, 2018
$3,920.29	July 1, 2018	June 30, 2019
$4,012.31	July 1, 2019	June 30, 2020
$4,104.34	July 1, 2020	June 30, 2021 and after

The schedule of connection fees shall be administered and applied as provided in section 118-208 of this division.

(d) Single-family residences within the Southwest Airport Area Trunk Sanitary Sewer System Benefited District, in existence or under construction upon the effective date of the ordinance from which this section derives, and located within the corporate limits are eligible for connection to the Southwest Airport Trunk Sanitary Sewers. Owners of such residences on parcels of less than one acre in size located within the city and within the benefited district may connect such residences to the Southwest Airport Area Trunk Sanitary Sewers upon approval of their application for connection, payment of the connection fee for the parcel, and construction of appropriate connection structures, as determined necessary by the city engineer. Owners of such residences on parcels in excess of one acre in size located within the city and within the benefited district may connect such residences to the Southwest Airport Area

Trunk Sanitary Sewers upon approval of their application for connection, subdivision of the parcel into a residence parcel and an outlot, payment of the connection fee for the residence parcel, and construction of appropriate connection structures, as determined necessary by the city engineer. All other property located within the corporate limits and within the Southwest Airport Area Trunk Sanitary Sewer System Benefited District shall be eligible for connection to the Southwest Airport Area Trunk Sanitary Sewers upon approval of an application for connection by the owner thereof and payment of the connection fee for such property, provided such property has been appropriately subdivided for development, and provided that all sanitary sewer improvements necessary to serve the property have been constructed and approved by the city.
(C91, § 21-70.05; O.13,300, 13,964, 14,887)

Sec. 118-213. Fee for connection to the Northwest Airport Area Trunk Sanitary Sewer System.

(a) Pursuant to section 118-208 of this division, the Northwest Airport Area Trunk Sanitary Sewer System Benefited District is established for the purpose of collecting within the district a fee from those property owners who shall make application to connect their properties to the sewer.

(b) The boundaries of the Northwest Airport Area Trunk Sanitary Sewer System Benefited District shall be as described in article I of appendix G to this Code.

(c) A connection fee is established and imposed upon the owners of properties within the Northwest Airport Area Trunk Sanitary Sewer System Benefited District who shall make application to connect their properties to the sewer pursuant to section 118-208 of this division. The connection fee for the Northwest Airport Area Trunk Sanitary Sewer System Benefited District shall be $1,825.69 for each acre of property connected to the trunk sewer during the period from initial enactment of the connection fee on July 16, 2001 to June 30, 2002. Thereafter, the per-acre connection fee for connections to the sewer shall be annually adjusted as of July 1 of each year by applying simple interest thereto at the rate of nine percent per annum, simple interest until July 1, 2009 and then at five percent per annum, simple interest, as per the following schedule:

	For the Period	
Connection Fee Per Acre	*From*	*To*
$1,825.69	July 16, 2001	June 30, 2002
$1,990.00	July 1, 2002	June 30, 2003
$2,154.32	July 1, 2003	June 30, 2004
$2,318.63	July 1, 2004	June 30, 2005
$2,482.94	July 1, 2005	June 30, 2006
$2,647.25	July 1, 2006	June 30, 2007
$2,811.57	July 1, 2007	June 30, 2008
$2,975.88	July 1, 2008	June 30, 2009
$3,067.16	July 1, 2009	June 30, 2010
$3,158.44	July 1, 2010	June 30, 2011
$3,249.73	July 1, 2011	June 30, 2012
$3,341.01	July 1, 2012	June 30, 2013
$3,432.30	July 1, 2013	June 30, 2014
$3,523.58	July 1, 2014	June 30, 2015
$3,614.87	July 1, 2015	June 30, 2016
$3,706.15	July 1, 2016	June 30, 2017
$3,797.44	July 1, 2017	June 30, 2018
$3,888.72	July 1, 2018	June 30, 2019
$3,980.00	July 1, 2019	June 30, 2020
$4,071.29	July 1, 2020	June 30, 2021 and after

The schedule of connection fees shall be administered and applied as provided in section 118-208 of this division.

(d) Single-family residences within the Northwest Airport Area Trunk Sanitary Sewer System Benefited District, in existence or under construction upon the effective date of the ordinance from which this section derives, and located within the corporate limits are eligible for connection to the Northwest Airport Area Trunk Sanitary Sewers. Owners of such residences on parcels of less than one acre in size located within the city and within the benefited district may connect such residences to the Northwest Airport Area Trunk Sanitary Sewers upon approval of their application for connection, payment of the connection fee for the parcel, and construction of appropriate connection structures, as determined necessary by the city engineer. Owners of such residences on parcels in excess of one acre in size located within the city and within the benefited district may

connect such residences to the Northwest Airport Area Trunk Sanitary Sewers upon approval of their application for connection, subdivision of the parcel into a residence parcel and an outlot, payment of the connection fee for the residence parcel, and construction of appropriate connection structures, as determined necessary by the city engineer. All other property located within the corporate limits and within the Northwest Airport Area Trunk Sanitary Sewer System Benefited District shall be eligible for connection to the Northwest Airport Area Trunk Sanitary Sewers upon approval of an application for connection by the owner thereof and payment of the connection fee for such property, provided such property has been appropriately subdivided for development, and provided that all sanitary sewer improvements necessary to serve the property have been constructed and approved by the city.
(C91, § 21-70.06; O.13,316, 13,964, 14,887)

Sec. 118-214. Fee for connection to the Southeast Airport Area Trunk Sanitary Sewer.

(a) Pursuant to section 118-208 of this division, the Southeast Airport Trunk Sanitary Sewer Benefited District is established for the purpose of collecting within the district a fee from those property owners who shall make application to connect their properties to the sewer.

(b) The boundaries of the Southeast Airport Trunk Sanitary Sewer Benefited District shall be as described in article I of appendix G to this Code.

(c) A connection fee is established and imposed upon the owners of properties within the Southeast Airport Area Trunk Sanitary Sewer System Benefited District who shall make application to connect their properties to the sewer pursuant to section 118-208 of this division. The connection fee for the Southeast Airport Area Trunk Sanitary Sewer System Benefited District shall be $2,968.02 for each acre of property connected to the trunk sewer during the period from July 1, 2002 to June 30, 2003. Thereafter, the per-acre connection fee for connections to the sewer shall be annually adjusted as of July 1 of each year by applying simple interest thereto at the rate of nine percent per annum, simple interest until July 1, 2009 and then at five percent per annum, simple interest, as per the following schedule:

	For the Period	
Connection Fee Per Acre	*From*	*To*
$2,968.02	July 1, 2002	June 30, 2003
$3,235.14	July 1, 2003	June 30, 2004
$3,502.26	July 1, 2004	June 30, 2005
$3,769.38	July 1, 2005	June 30, 2006
$4,036.50	July 1, 2006	June 30, 2007
$4,303.63	July 1, 2007	June 30, 2008
$4,570.75	July 1, 2008	June 30, 2009
$4,719.15	July 1, 2009	June 30, 2010
$4,867.55	July 1, 2010	June 30, 2011
$5,015.95	July 1, 2011	June 30, 2012
$5,164.35	July 1, 2012	June 30, 2013
$5,312.76	July 1, 2013	June 30, 2014
$5,461.16	July 1, 2014	June 30, 2015
$5,609.56	July 1, 2015	June 30, 2016
$5,757.96	July 1, 2016	June 30, 2017
$5,906.36	July 1, 2017	June 30, 2018
$6,054.76	July 1, 2018	June 30, 2019
$6,203.16	July 1, 2019	June 30, 2020
$6,351.56	July 1, 2020	June 30, 2021
$6,499.96	July 1, 2021	June 30, 2022 and after

The schedule of connection fees shall be administered and applied as provided in section 118-208 of this division.

(d) Single-family residences within the Southeast Airport Trunk Sanitary Sewer Benefited District, in existence or under construction upon the effective date of the ordinance from which this section derives, and located within the corporate limits are eligible for connection to the Southeast Airport Trunk Sanitary Sewer. Owners of such residences on parcels of less than one acre in size located within the city and within the benefited district may connect such residences to the Southeast Airport Trunk Sanitary Sewer upon approval of their application for connection, payment of the connection fee for the parcel, and construction of appropriate connection structures, as determined necessary by the city engineer. Owners of such residences on parcels in excess of one acre in size located within the city and within the benefited district may connect such residences to the Southeast Airport Trunk Sanitary Sewer upon approval

of their application for connection, subdivision of the parcel into a residence parcel and an outlot, payment of the connection fee for the residence parcel, and construction of appropriate connection structures, as determined necessary by the city engineer. All other property located within the corporate limits and within the Southeast Airport Trunk Sanitary Sewer Benefited District shall be eligible for connection to the Southeast Airport Trunk Sanitary Sewer upon approval of an application for connection by the owner thereof and payment of the connection fee for such property, provided such property has been appropriately subdivided for development, and provided that all sanitary sewer improvements necessary to serve the property have been constructed and approved by the city.
(O.13,561, 14,115, 14,887)

Sec. 118-215. Fee for connection to the Northeast Four Mile Area Trunk Sanitary Sewer System Benefited District.

(a) Pursuant to section 118-215 of this division the Northeast Four Mile Area Trunk Sanitary Sewer System Benefited District is established for the purpose of collecting within such district a fee from those property owners who shall make application to connect their properties to the sewer.

(b) The boundaries of the Northeast Four Mile Area Trunk Sanitary Sewer Benefited District shall be as described in article I of appendix G to this Code.

(c) A connection fee is established and imposed upon the owners of properties within the Northeast Four Mile Area Trunk Sanitary Sewer System Benefited District who shall make application to connect their properties to the sewer pursuant to section 118-215 of this division. The connection fee for the Four Mile East Benefited District shall be $2,241.47 for each acre of property connected to the trunk sewer during the period from July 1, 2003 to June 30, 2004. Thereafter, the per-acre connection fee for connections to the sewer shall be annually adjusted as of July 1 of each year by applying simple interest thereto at the rate of nine percent per annum, simple interest until July 1, 2009 and then at five percent per annum, simple interest, as per the following schedule:

	For the Period	
Connection Fee Per Acre	*From*	*To*
$2,241.47	July 1, 2003	June 30, 2004
$2,443.21	July 1, 2004	June 30, 2005
$2,644.94	July 1, 2005	June 30, 2006
$2,846.67	July 1, 2006	June 30, 2007
$3,048.40	July 1, 2007	June 30, 2008
$3,250.14	July 1, 2008	June 30, 2009
$3,362.21	July 1, 2009	June 30, 2010
$3,474.28	July 1, 2010	June 30, 2011
$3,586.35	July 1, 2011	June 30, 2012
$3,698.43	July 1, 2012	June 30, 2013
$3,810.50	July 1, 2013	June 30, 2014
$3,922.57	July 1, 2014	June 30, 2015
$4,034.65	July 1, 2015	June 30, 2016
$4,146.72	July 1, 2016	June 30, 2017
$4,258.79	July 1, 2017	June 30, 2018
$4,370.87	July 1, 2018	June 30, 2019
$4,482.94	July 1, 2019	June 30, 2020
$4,595.01	July 1, 2020	June 30, 2021
$4,707.09	July 1, 2021	June 30, 2022
$4,819.16	July 1, 2022	June 30, 2023 and after

The schedule of connection fees shall be administered and applied as provided in section 118-208 of this division.

(d) Single-family residences within the Northeast Four Mile Area Trunk Sanitary Sewer System Benefited District, in existence or under construction upon the effective date of the ordinance from which this section derives, and located within the corporate limits are eligible for connection to the major sanitary sewer facility. Owners of such residences on parcels of less than one acre in size located within the city and within the benefited district may connect such residences to the Northeast Four Mile Area Trunk Sanitary Sewer upon approval of their application for connection, payment of the connection fee for the parcel, and construction of appropriate connection structures, as determined necessary by the city engineer, and owners of such residences on parcels in excess of one acre in size located within the city and within the benefited district may connect such residences to the Northeast

Four Mile Area Trunk Sanitary Sewer upon approval of their application for connection, subdivision of the parcel into a residence parcel and an outlot, payment of the connection fee for the residence parcel, and construction of appropriate connection structures, as determined necessary by the city engineer. All other property located within the corporate limits and within the Northeast Four Mile Area Trunk Sanitary Sewer System Benefited District shall be eligible for connection to the Northeast Four Mile Area Trunk Sanitary Sewer upon approval of an application for connection by the owner thereof and payment of the connection fee for such property, provided such property has been appropriately subdivided for development, and provided that all sanitary sewer improvements necessary to serve the property have been constructed and approved by the city. The city council may, pursuant to agreement with another governmental entity, authorize the connection of properties outside the corporate limits of Des Moines to the Northeast Four Mile Area Trunk Sanitary Sewer. Upon council approval of such agreement, the properties outside the corporate limits of Des Moines identified in such agreement shall be eligible to connect to the Northeast Four Mile Area Trunk Sanitary Sewer. (O.13,983, 14,253, 14,887)

Sec. 118-216. Fee for connection to the Southeast Ridge Area Trunk Sanitary Sewer System Benefited District.

(a) Pursuant to section 118-208 of this division the Southeast Ridge Area Trunk Sanitary Sewer System Benefited District is established for the purpose of collecting within such district a fee from those property owners who shall make application to connect their properties to the sewer.

(b) The boundaries of the Southeast Ridge Area Trunk Sanitary Sewer Benefited District shall be as described in article I of appendix G to this Code.

(c) A connection fee is established and imposed upon the owners of properties within the Southeast Ridge Area Trunk Sanitary Sewer System Benefited District who shall hereafter make application to connect their properties to the sewer pursuant to section 118-208 of this division. The connection fee for the Southeast Ridge Benefited District shall be $3,297.71 for each acre of property for which application is hereafter made for connection to said trunk sewer; Provided, however, that upon completion of construction of said sewer, the said connection fee shall be subject to adjustment if the actual cost of constructing said sewer is less than the estimated cost thereof; And further provided that upon completion of the construction of said sewer, it is the city's intention to amend this provision to include a schedule of connection fees herein, pursuant to which there will be an annual adjustment of the connection fee as of July 1st of each year, increasing the connection fee in each subsequent year by applying simple interest thereto at the rate of nine percent per annum

(d) Single-family residences within the Southeast Ridge Area Trunk Sanitary Sewer System Benefited District, in existence or under construction upon the effective date of the ordinance from which this section derives, and located within the corporate limits are eligible for connection to the major sanitary sewer facility. Owners of such residences on parcels of less than one acre in size located within the city and within the benefited district may connect such residences to the Southeast Ridge Area Trunk Sanitary Sewer upon approval of their application for connection, payment of the connection fee for the parcel, and construction of appropriate connection structures, as determined necessary by the city engineer, and owners of such residences on parcels in excess of one acre in size located within the city and within the benefited district may connect such residences to the Southeast Ridge Area Trunk Sanitary Sewer upon approval of their application for connection, subdivision of the parcel into a residence parcel and an outlot, payment of the connection fee for the residence parcel, and construction of appropriate connection structures, as determined necessary by the city engineer. All other property located within the corporate limits and within the Southeast Ridge Area Trunk Sanitary Sewer System Benefited District shall be eligible for connection to the Southeast Ridge Area Trunk Sanitary Sewer upon approval of an application for connection by the owner thereof

and payment of the connection fee for such property, provided such property has been appropriately subdivided for development, and provided that all sanitary sewer improvements necessary to serve the property have been constructed and approved by the city.
(O.14,394)

Sec. 118-217. Fee for connection to the Clover Hill Area Trunk Sanitary Sewer System Benefited District.

(a) Pursuant to section 118-208 of this division the Clover Hill Area Trunk Sanitary Sewer System Benefited District is established for the purpose of collecting within such district a fee from those property owners who shall make application to connect their properties to the sewer.

(b) The boundaries of the Clover Hill Area Trunk Sanitary Sewer Benefited District shall be as described in article I of appendix G to this Code.

(c) A connection fee is established and imposed upon the owners of properties within the Clover Hill Area Trunk Sanitary Sewer System Benefited District who shall make application to connect their properties to the sewer pursuant to Section 118-208 of this division. The connection fee for the Clover Hill Benefited District shall be $2,771.05 for each acre of property connected to the trunk sewer during the period from July 1, 2009 to June 30, 2010. Thereafter, the per-acre connection fee for connections to the sewer shall be annually adjusted as of July 1 of each year by applying simple interest thereto at the rate of five percent per annum, simple interest, as per the following schedule:

	For the Period	
Connection Fee Per Acre	*From*	*To*
$2,771.05	July 1, 2009	June 30, 2010
$2,909.60	July 1, 2010	June 30, 2011
$3,048.16	July 1, 2011	June 30, 2012
$3,186.71	July 1, 2012	June 30, 2013
$3,325.26	July 1, 2013	June 30, 2014
$3,463.81	July 1, 2014	June 30, 2015
$3,602.37	July 1, 2015	June 30, 2016
$3,740.92	July 1, 2016	June 30, 2017
$3,879.47	July 1, 2017	June 30, 2018
$4,018.02	July 1, 2018	June 30, 2019
$4,156.58	July 1, 2019	June 30, 2020
$4,295.13	July 1, 2020	June 30, 2021
$4,433.68	July 1, 2021	June 30, 2022
$4,572.23	July 1, 2022	June 30, 2023
$4,710.79	July 1, 2023	June 30, 2024
$4,849.34	July 1, 2024	June 30, 2025
$4,987.89	July 1, 2025	June 30, 2026
$5,126.44	July 1, 2026	June 30, 2027
$5,265.00	July 1, 2027	June 30, 2028
$5,403.55	July 1, 2028	June 30, 2029 and after

The schedule of connection fees shall be administered and applied in section 118-208 of this division.

(d) Single-family residences within the Clover Hill Area Trunk Sanitary Sewer System Benefited District, in existence or under construction upon the effective date of the ordinance from which this section derives, and located within the corporate limits are eligible for connection to the major sanitary sewer facility. Owners of such residences on parcels of less than one acre in size located within the city and within the benefited district may connect such residences to the Clover Hill Area Trunk Sanitary Sewer upon approval of their application for connection, payment of the connection fee for the parcel, and construction of appropriate connection structures, as determined necessary by the city engineer, and owners of such residences on parcels in excess of one acre in size located within the city and within the benefited district may connect such residences to the Clover Hill Area Trunk Sanitary Sewer upon approval of their application for connection, subdivision of the parcel into a residence parcel and an outlot, payment of the connection fee for the residence parcel, and construction of appropriate connection structures, as determined necessary by the city engineer. All other property located within the corporate limits and within the Clover Hill Area Trunk Sanitary Sewer System Benefited District shall be eligible for connection to the Clover Hill Area Trunk Sanitary Sewer upon

approval of an application for connection by the owner thereof and payment of the connection fee for such property, provided such property has been appropriately subdivided for development, and provided that all sanitary sewer improvements necessary to serve the property have been constructed and approved by the city.
(O.14,435, 14,888)

Sec. 118-218. Fee for connection to the Little Four Mile Trunk Sanitary Sewer System Benefited District.

(a) Pursuant to section 118-208 of this division, the Little Four Mile Trunk Sanitary Sewer System Benefited District is established for the purpose of collecting within such district a fee from those property owners who shall make application to connect their properties to the sewer.

(b) The boundaries of the Little Four Mile Trunk Sanitary Sewer System Benefited District shall be described in article I of appendix G to this Code.

(c) A connection fee is established and imposed upon the owners of properties within the Little Four Mile Trunk Sanitary Sewer System Benefited District who shall hereafter make application to connect their properties to the sewer pursuant to section 118-208 of this division. The connection fee for the Little Four Mile Trunk Sanitary Sewer System Benefited District shall be $4,234.00 for each acre of property for which application is hereafter made for connection to said trunk sewer; provided, however, that upon completion of construction of said sewer, the said connection fee shall be subject to adjustment if the actual cost of constructing said sewer is less than the estimated cost thereof; and further provided that upon completion of the construction of said sewer, it is the city's intention to amend this provision to include a schedule of connection fees herein, pursuant to which there will be an annual adjustment of the connection fee as of July 1st of each year, increasing the connection fee in each subsequent year by applying simple interest thereto at the rate of three and one-half percent per annum.

(d) Single-family residences within the Little Four Mile Trunk Sanitary Sewer System Benefited District, in existence or under construction upon the effective date of the ordinance from which this section derives, and located within the corporate limits are eligible for connection to the major sanitary sewer facility. Owners of such residences on parcels of less than one acre in size located within the city and within the benefited district may connect such residences to the Little Four Mile Trunk Sanitary Sewer System upon approval of their application for connection, payment of the connection fee for the parcel, and construction of appropriate connection structures, as determined necessary by the city engineer, and owners of such residences on parcels in excess of one acre in size located within the city and within the benefited district may connect such residences to the Little Four Mile Trunk Sanitary Sewer upon approval of their application of connection, subdivision of the parcel into a residence parcel and an outlot, payment of the connection fee for the residence parcel, and construction of appropriate connection structures, as determined necessary by the city engineer. All other property located within the corporate limits and within the Little Four Mile Trunk Sanitary Sewer System Benefited District shall be eligible for connection to the Little Four Mile Trunk Sanitary Sewer upon approval of an application for connection by the owner thereof and payment of the connection fee for such property, provided such property has been appropriately subdivided for development, and provided that all sanitary sewer improvements necessary to serve the property have been constructed and approved by the city. The city council may authorize the connection of properties outside the corporate limits of Des Moines to the Little Four Mile Trunk Sanitary Sewer as provided in this division and upon payment of the connection fee and compliance with all other requirements of this code.
(O.15,740)

Sec. 118-219. Fee for connection to the East Army Post Road and Indianola Avenue Trunk Sanitary Sewer Benefited District.

(a) Pursuant to section 118-208 of this division, the East Army Post Road and Indianola Avenue Trunk Sanitary Sewer Benefited District

is established for the purpose of collecting within such district a fee from those property owners who shall make application to connect their properties to the East Army Post Road Trunk Sanitary Sewer from SE 14th Street to Three Lakes Estates.

(b) The boundaries of the East Army Post Road and Indianola Avenue Trunk Sanitary Sewer Benefited District shall be described in article I of appendix G to this Code.

(c) A connection fee is established and imposed upon the owners of properties within the East Army Post Road and Indianola Avenue Trunk Sanitary Sewer Benefited District who shall hereafter make application to connect their properties to the East Army Post Road Trunk Sanitary Sewer from SE 14th Street to Three Lakes Estates pursuant to section 118-208 of this division. The connection fee for the East Army Post Road and Indianola Avenue Trunk Sanitary Sewer Benefited District shall be $8,013.01 for each acre of property for which application is hereafter made for connection to the East Army Post Road Trunk Sanitary Sewer from SE 14th Street to Three Lakes Estates; provided, however, that upon completion of construction of said trunk sewer, the said connection fee shall be subject to adjustment if the actual cost of constructing said trunk sewer is less than the estimated cost thereof; and further provided that upon completion of the construction of said trunk sewer, it is the city's intention to amend this provision to include a schedule of connection fees herein, pursuant to which there will be an annual adjustment of the connection fee as of July 1st of each year, increasing the connection fee in each subsequent year by applying simple interest thereto at the rate of three and one-half percent per annum.

(d) Single-family residences within the East Army Post Road and Indianola Avenue Trunk Sanitary Sewer Benefited District, in existence or under construction upon the effective date of the ordinance from which this section derives, and located within the corporate limits are eligible for connection to the East Army Post Road Trunk Sanitary Sewer from SE 14th Street to Three Lakes Estates. Owners of such residences on parcels of less than one acre in size located within the city and within the benefited district may connect such residences to the East Army Post Road Trunk Sanitary Sewer from SE 14th Street to Three Lakes Estates upon approval of their application for connection, payment of the connection fee for the parcel, and construction of appropriate connection structures, as determined necessary by the city engineer, and owners of such residences on parcels in excess of one acre in size located within the city and within the benefited district may connect such residences to the said trunk sewer upon approval of their application of connection, subdivision of the parcel into a residence parcel and an outlot, payment of the connection fee for the residence parcel, and construction of appropriate connection structures, as determined necessary by the city engineer. All other property located within the corporate limits and within the East Army Post Road and Indianola Avenue Trunk Sanitary Sewer Benefited District shall be eligible for connection to the East Army Post Road Trunk Sanitary Sewer from SE 14th Street to Three Lakes Estates upon approval of an application for connection by the owner thereof and payment of the connection fee for such property, provided such property has been appropriately subdivided for development, and provided that all sanitary sewer improvements necessary to serve the property have been constructed and approved by the city. (O.16,439)

Secs. 118-220—118-240. Reserved.

DIVISION 6. STORM SEWERS

Sec. 118-241. District boundaries.

The storm sewer districts and their boundaries are described in article II of appendix G to this code.

Secs. 118-242—118-270. Reserved.

DIVISION 7. STORMWATER MANAGEMENT UTILITY

Sec. 118-271. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Bonds means revenue bonds, notes, loans or any other debt obligations issued or incurred to finance the costs of construction.

Collection agent means the general manager of the city water works.

Contributor or *user* means any person owning, operating, or otherwise responsible for property within the city which directly or indirectly discharges stormwater or surface or subsurface waters to any portion of the stormwater management system, including direct or indirect discharges to the city's stormwater drainage system, or which is directly or indirectly protected by the city's flood protection system or stormwater drainage system. The term "contributor" or "user" means any person responsible for the direct or indirect discharge of stormwater or surface or subsurface waters to the city's stormwater drainage system.

Costs of construction means costs reasonably incurred in connection with providing capital improvements to the system or any portion thereof, including but not limited to the costs of the following:

(1) Acquisition of all property, real or personal, and all interests in connection therewith including all rights-of-way and easements therefor;

(2) Physical construction, installation and testing including the costs of labor, services, materials, supplies and utility services used in connection therewith;

(3) Architectural, engineering, legal and other professional services;

(4) Insurance premiums taken out and maintained during construction, to the extent not paid for by a contractor for construction and installation;

(5) Any taxes or other charges which become due during construction;

(6) Expenses incurred by the city or on its behalf with its approval in seeking to enforce any remedy against any contractor or subcontractor in respect of any default under a contract relating to construction;

(7) Principal and interest on any bonds; and

(8) Miscellaneous expenses incidental thereto.

Debt service means the amount of money necessary annually to pay the interest on outstanding debt and pay the principal of maturing bonded debt.

Developed property means real property upon which a structure or impervious surface has been placed or constructed, thus increasing the amount of rainwater or surface water runoff.

Director means the public works director as director of the stormwater management utility.

Dwelling unit means a singular unit or apartment providing complete, independent living facilities for one or more persons including permanent provisions for living, sleeping, eating, cooking and sanitation.

Equivalent residential unit or *ERU* means the average impervious area of residential developed property per dwelling unit located within the city as periodically determined and established as provided in this division.

ERU rate means the dollar value periodically determined and assigned to each ERU as a charge for stormwater management services, and expressed as $X.XX per ERU.

Exempt property means public streets, alleys and sidewalks; public and private cemeteries; and public parks, including publicly owned property used for public recreation.

Extension and replacement means costs of extensions, additions and capital improvements to or the renewal and replacement of capital assets of or purchasing and installing new equipment for the system or land acquisition for the system and any related costs thereto or paying extraordinary maintenance and repair, including the costs of construction, or any other expenses which are not costs of operation and maintenance or debt service.

Fiscal year means a 12-month period commencing on July 1 of any year, and ending on June 30 of the succeeding year.

Flood protection system means the system of levees, floodwalls, floodgates, storm sewer gatewells, and stormwater pumping stations lying adjacent to rivers, creeks, and streams within the city, including associated control and operating equipment and facilities whether adjacent to such rivers, creeks, or streams or remotely located, which are intended to provide flood protection to properties adjacent to such rivers, creeks, and streams.

Impervious area means the number of square feet of hard-surfaced areas which either prevent or retard the entry of water into soil mantle, as it entered under natural conditions as undeveloped property, and/or cause water to run off the surface in greater quantities or at an increased rate of flow from that present under natural conditions as undeveloped property, including but not limited to roofs, roof extensions, patios, porches, driveways, sidewalks, pavement and athletic courts.

Multifamily residential property means a residential structure designed with two or more dwelling units to accommodate two or more families or groups of individuals living separately and not sharing the same living space.

Nonoperating revenues refers to revenues derived from activities other than the basic operations of the stormwater management system, but excluding interest income on bond proceeds and on contributed capital.

Nonresidential property means any property developed for commercial, industrial, governmental, or institutional use, including churches, hospitals, and other eleemosynary institutions and including multiuse properties incorporating residential uses, but excluding undeveloped property and property used exclusively for agricultural purposes.

Operating budget means the annual operating budget for the stormwater management utility adopted by the city council for the succeeding fiscal year.

Operations and maintenance expense means the current expenses, paid or accrued, of operation, maintenance and current repair of the system, as calculated in accordance with sound accounting practice, and includes, without limiting the generality of the foregoing, insurance premiums, administrative expenses including recordkeeping, labor, executive compensation, the cost of materials and supplies used for current operations, and charges for the accumulation of appropriate reserves for current expenses not annually incurred, but which are such as may reasonably be expected to be incurred in accordance with sound accounting practice.

Priority watersheds means those drainage areas which the director has determined have a flooding or water quality concern which can be significantly improved by stormwater best management practices identified through strategic watershed planning.

Revenues means all rates, fees, assessments, rentals or other charges or other income received by the utility, in connection with the management and operation of the system, including amounts received from the investment or deposit of moneys in any fund or account and any amounts contributed by the city, all as calculated in accordance with sound accounting practice.

Single-family residential property means a detached residential structure designed as a single dwelling unit to accommodate one family or group of individuals living together and shar-

ing the same living space, but excluding multiuse properties which include single-family residential uses.

Stormwater best management practice (BMP) means a technique, measure, or structural control that is used for a given set of conditions to manage the quantity and improve the quality of stormwater runoff in an effective and practical manner.

Stormwater drainage system means the system of publicly or privately owned or operated rivers, creeks, ditches, drainage channels, pipes, basins, street gutters, and lakes within the city through which or into which stormwater runoff, surface water, or subsurface water is conveyed or deposited.

Stormwater management charge means the charge authorized by state law and this division which is established to pay operations and maintenance, extension and replacement of debt service of the stormwater utility.

Stormwater management utility or *utility* means the enterprise fund utility created by this division to operate, maintain and improve the system and for such other purposes as stated in this division.

Stormwater management utility system or *system* means the existing stormwater management facilities, stormwater drainage system, and flood protection system of the city and all improvements thereto which by this division are constituted as the property and responsibility of the utility, to be operated as an enterprise fund to, among other things, conserve water; control discharges and flows necessitated by rainfall events; and incorporate methods to collect, convey, store, absorb, inhibit, treat, use or reuse water to prevent or reduce flooding, overdrainage, environmental degradation and water pollution or otherwise affect the quality and quantity of discharge from such system.

Total annual revenue requirements refers to the total amount of revenue required in one year to meet all expenditures incurred during that year for the financing of construction and for the operations and maintenance, including administration and renewal and replacement funding, of the stormwater drainage system, including facilities for the collection, transportation, and treatment of stormwater, and of the flood control protection system, including river levees and stormwater pumping stations.

Unclassified residential property means a multifamily residential property whose owner or occupant has appealed the classification of that residential property for purposes of determining the stormwater management charge applicable thereto, requesting instead that the stormwater management charge for that property be determined by applying the ERU rate to the actual impervious area of that property.

Undeveloped property means real property that has no impervious area.

(C91, § 21-127; O.13,075, 13,217, 13,426, 14,949, 15,565, 15,757)

Cross reference—Definitions generally, § 1-2.

Sec. 118-272. Declaration of purpose; establishment of district.

(a) The city council finds, determines, and declares it to be conducive to the health, welfare, safety and convenience of the city and its residents that a stormwater management utility district be established within the city. Consequently, pursuant to I.C. § 384.84(1), a stormwater management utility district, to be known as The Des Moines Stormwater Management Utility, is established, and it is ordained and declared that the city shall be and constitute the stormwater management utility district, and that the utility shall comprise and include elements of the city's stormwater drainage and flood protection systems which provide for the collection, treatment and disposal of stormwater, surface water, and groundwater. It is further found, determined, and declared that the elements of the stormwater management utility are of benefit and provide services to all real properties within the incorporated city limits, including property not directly served by the stormwater drainage system, and that such benefits and services may include but are not limited to the provision of adequate systems of collection, conveyance, detention, treatment and release of stormwater; the reduction of hazard to property and life resulting from stormwater runoff and flooding; improve-

ment in general health and welfare through reduction of undesirable stormwater conditions and flooding; and improvement to the water quality in the stormwater and surface water system and its receiving waters.

(b) It is further determined and declared to be necessary and conducive to the protection of the public health, welfare, safety and convenience of the city and its residents that charges be levied upon and collected from the owners or occupants of all lots, parcels of real estate, and buildings that discharge stormwater or surface or subsurface waters, directly or indirectly, to the city stormwater drainage system, and that the proceeds of such charges so derived be used for the purposes of operation, maintenance, repair, replacement and debt service for construction of the stormwater drainage and flood protection improvements comprising the stormwater management utility.
(C91, § 21-124; O.13,075, 15,757)

Sec. 118-273. Powers, duties and responsibilities.

The stormwater management utility shall have the following powers, duties, and responsibilities:

(1) Prepare ordinances as needed to implement this division and forward the ordinances to the city council for consideration and adoption, and adopt such regulations and procedures as are required to implement this division and carry out its duties and responsibilities.

(2) Administer the acquisition, design, construction, maintenance and operation of the utility system, including capital improvements designated in the comprehensive drainage plan.

(3) Administer and enforce this division and all ordinances, regulations and procedures adopted relating to the design, construction, maintenance, operation and alteration of the utility system, including but not limited to the quantity, quality and/or velocity of the stormwater conveyed thereby.

(4) Inspect private systems as necessary to determine the compliance of such systems with this division and any ordinances or regulations adopted pursuant to this division.

(5) Prepare and revise a comprehensive drainage and flood protection plan for periodic review and adoption by the city council.

(6) Review plans, approve or deny, inspect and accept extensions to the stormwater drainage system.

(7) Establish and enforce regulations to protect and maintain water quality within the system in compliance with water quality standards established by state, regional and/or federal agencies as adopted or amended.

(8) Annually analyze the cost of services and benefits provided, and the system and structure of fees, charges, fines and other revenues of the utility, and make recommendations regarding adjustments to such fees, charges, fines and other revenues.

(9) Prepare an annual operating budget for the utility and make recommendations regarding the financing of the cost of extending and replacing the system.

(C91, § 21-125; O.13,075)

Sec. 118-274. Organization.

The city council shall be the governing body of the stormwater management utility. The stormwater management utility shall be under the direction, management and control of the public works director who shall function as its director. In that capacity, the director shall supervise the day-to-day operation of the stormwater management utility, shall enforce this division and the provisions of all ordinances and regulations adopted pursuant to this division and shall carry out the policy directives of the city council acting in its role as governing body of the stormwater management utility.
(C91, § 21-126; O.13,075, 15,565)

Sec. 118-275. Establishment of ERU, ERU rate and stormwater management charge.

(a) For purposes of this division, an ERU shall be equivalent to 2,349 square feet of impervious property.

(b) Except as provided in this division, every contributor owning or occupying a single-family residential property, a multifamily residential property, an unclassified residential property, or a nonresidential property, other than exempt property, shall pay to the city at the office of the city's collection agent, at the same time payment is made for water service, a stormwater management charge to be determined and billed as provided in this division. In the event the owner and the occupant of a particular property are not the same, the liability for payment of the stormwater management charge attributable to that property shall be joint and several as to the owner and occupant. The stormwater management charge shall be a monthly service charge and shall be determined by this division and the ERU and ERU rate which is established in this division and from time to time adjusted as provided in this division.

(c) The stormwater management charges provided in sections 118-276 through 118-279 of this division shall be applied and computed for each contributor during the customary billing periods as to all bills mailed by the city's collection agent, and such charges shall thereafter be paid and collected as provided in this division.

(d) The ERU rate to be applied to residential and nonresidential properties shall be as follows:

From—To	*ERU Rate*
July 1, 2023—June 30, 2024	$17.17
July 1, 2024—June 30, 2025	$18.20
July 1, 2025—June 30, 2026	$19.29
July 1, 2026—	$20.45

(e) The director shall periodically review the ERU rate and/or budget for the stormwater management utility system. If at any time the director determines that the ERU rate and/or the budget for the stormwater management utility system requires adjustment, the director shall report such determination to the city manager and city council. The city council may at any time adjust the ERU rate by adoption of an ordinance amending this section, and may at any time adjust the budget for the stormwater management utility system by adoption of an appropriate resolution.

(f) No revenues generated by the stormwater utility user fee shall be used for any purpose other than stormwater expenses.

(C91, § 21-128; O.13,075, 13,217, 13,652, 14,194, 14,814, 14,977, 15,095, 15,455, 15,697, 16,274, 16,267, 16,355, 16,547)

Sec. 118-276. Stormwater management charge for single-family residential property.

(a) The stormwater management charge for a single-family residential property shall be a percentage of the ERU rate, based upon the impervious area of the lot or parcel upon which the single-family residence is located, as reflected in the following table:

Impervious Area Rate of the Property (square feet)	*Percentage of ERU Rate*
1,400 or less	50
1,401 to 4,900	100
4,901 or more	150

(b) As to a new single-family residence, the stormwater management charge attributable to that residence shall commence upon the earlier of the following:

(1) The issuance of a certificate of occupancy for the residence;

(2) Ninety days after construction is halted, provided construction is at least 50 percent complete; or

(3) Ninety days after construction is completed, even if a certificate of occupancy has not been issued for the residence.

(c) Any owner or occupant of a residential property aggrieved by the director's calculation of the stormwater management charge as provided in this section may appeal such determination to the director as provided in section 118-281 of this division.
(C91, § 21-129; O.13,075, 13,217)

Sec. 118-277. Stormwater management charge for multifamily residential property.

(a) The stormwater management charge for multifamily residential property shall be the ERU rate multiplied by the number of individual dwelling units existing on the property. As to a new multifamily dwelling or dwelling unit, the stormwater management charge attributable to that dwelling or dwelling unit shall commence upon the earlier of the following:

(1) The issuance of a certificate of occupancy for the dwelling or dwelling unit;

(2) Ninety days after construction is halted, provided construction is at least 50 percent complete; or

(3) Ninety days after construction is completed, even if a certificate of occupancy has not been issued for the dwelling or dwelling unit.

(b) Any owner or occupant of a multifamily residential property aggrieved by the director's calculation of the stormwater management charge as provided in this section may appeal such determination to the director as provided in section 118-281 of this division.
(C91, § 21-130; O.13,075, 13,217)

Sec. 118-278. Stormwater management charge for unclassified residential property.

(a) The stormwater management charge for an unclassified residential property shall be the ERU rate multiplied by the numerical factor obtained by dividing the total impervious area of the particular unclassified residential property by the number of square feet in one ERU. The minimum charge for any unclassified residential property shall be equal to one ERU rate. For newly developed unclassified residential property, the charge attributable to that development shall commence or increase, for additional development to property which is already developed, upon the issuance of the certificate of occupancy for such additional development or, if no certificate of occupancy will be issued for that development or if development has halted, on the date that the director or the director's designee determines in reasonable judgment that the development is substantially complete or has been halted for at least three months.

(b) For separately metered dwelling units within an unclassified residential property with joint users of common impervious areas, the director shall calculate and allocate the pro rata stormwater management charge among the users.

(c) Any owner or occupant of an unclassified residential property aggrieved by the director's calculation of the stormwater management charge or allocation among users may appeal such determination to the director as provided in section 118-281 of this division.
(C91, § 21-131; O.13,075, 13,217)

Sec. 118-279. Stormwater management charge for nonresidential property.

(a) The stormwater management charge for nonresidential property shall be the ERU rate multiplied by the numerical factor obtained by dividing the total impervious area of a nonresidential property by the number of square feet in one ERU. The minimum charge for any nonresidential property shall be equal to one ERU rate. For newly developed nonresidential property, the charge attributable to that property shall commence or increase, for additional development to property which is already developed, upon the issuance of the certificate of occupancy for such additional development or, if no certificate of occupancy will be issued for that development or if development has halted, on the date that the director or the director's designee determines in reasonable judgment that the development is substantially complete or has been halted for at least three months.

(b) For separately metered occupancy units within a nonresidential property with joint users of common impervious areas, the director shall calculate and allocate the pro rata stormwater management charge among the users.

(c) Any owner or occupant of a nonresidential property aggrieved by the director's calculation of the stormwater management charge or allocation among users as provided in this section may appeal such determination to the director as provided in section 118-281 of this division.
(C91, § 21-132; O.13,075, 13,217)

Sec. 118-280. Periodic survey of dwelling unit and impervious surface calculation.

(a) The director or the director's designee shall periodically conduct a survey, not less than once every ten years, of single-family residential properties within the city to determine the appropriate billing category of each such property as provided in section 118-276 of this division. The stormwater management charge for single-family residential properties shall be calculated on the basis of the impervious area thereof as provided in section 118-276 of this division.

(b) The director or the director's designee shall periodically conduct a survey, not less than once every ten years, of all duplex, triplex, and fourplex multifamily residential properties within the city to determine the actual number of dwelling units thereon and shall periodically update such data to keep it current. The stormwater management charge for duplex, triplex, and fourplex multifamily residential properties shall be calculated on the basis of the number of dwelling units on the property, as provided in section 118-277 of this division, unless the owner or occupant organization thereof exercises its appeal option as provided in this division, in which case the stormwater management charge for the property shall be calculated as provided in subsection 118-281(b) of this division.

(c) The director or the director's designee shall periodically conduct a survey, not less than once every ten years, of all multifamily residential properties of more than four units to determine the actual number of dwelling units thereon and shall periodically update such data to keep it current. The stormwater management charge for multifamily residential properties of more than four units shall be calculated on the basis of the number of dwelling units on the property, as provided in section 118-277 of this division, unless the owner or occupant organization thereof exercises its appeal option as provided in this division, in which case the stormwater management charge for the property shall be calculated as provided in subsection 118-281(b) of this division.

(d) The director or the director's designee shall periodically conduct a survey, not less than once every ten years, of all nonresidential properties within the city to determine the actual square footage of impervious area on each such property and shall periodically update such data to keep it current. The stormwater management charge for nonresidential properties shall be calculated on the basis of actual square footage of impervious area of each such property, as provided in section 118-279 of this division, unless the owner or occupant exercises his or her appeal option as provided in this division, in which case the stormwater management charge for the property shall be calculated as provided in subsection 118-281(c) of this division.
(C91, § 21-133; O.13,075, 13,078, 13,093, 13,217, 15,565)

Sec. 118-281. Appeal of lot or parcel area, dwelling unit and impervious surface calculation.

(a) Any owner or occupant of a single-family residential property aggrieved by the initial or any subsequent determination of lot or parcel area and calculation of the stormwater management charge for such property, as provided in section 118-276 of this division, may appeal such determination and calculation to the director. Upon appeal, the stormwater management charge for the property shall be recalculated as provided in section 118-278 of this division, utilizing information supplied by the appealing owner or occupant, provided such information is verified as correct by the director.

(b) Any owner or occupant of a multifamily residential property aggrieved by the initial or any subsequent calculation of the number of dwelling units upon or in such property, calculation of the stormwater management charge, or allocation of such charge among occupants, all as provided in section 118-277 of this division, may appeal such calculations and allocation to the director, and upon appeal the classification of such property shall be changed to unclassified and the stormwater management charge for such property shall be calculated as provided in section 118-278 of this division.

(c) Any owner or occupant of nonresidential property aggrieved by the initial or any subsequent calculation of the total impervious area of such property, calculation of the stormwater management charge for such property, or allocation of such charge among occupants, all as provided is section 118-279 of this division, may appeal such calculations or allocation to the director. Upon such appeal, the stormwater management charge shall be recalculated using information obtained as provided in this section.

(d) An appeal by the owner, occupant, or occupant organization of a single-family or multifamily residential property must be filed in writing within 90 days after the initial billing of the stormwater management charge for that property or within 90 days after any billing showing a recalculation of the stormwater management charge for that property. For an appeal occurring after December 31, 1995 and within 90 days of the initial billing of a property, any adjustment of the stormwater management charge resulting from such appeal shall be retroactive to the date of the initial billing. For an appeal occurring after December 31, 1995 and within 90 days of a billing showing a recalculation of the stormwater management charge, any adjustment of the stormwater management charge resulting from such appeal shall be retroactive to the date the recalculated bill went into effect.

(e) The owner, occupant, or occupant organization of a nonresidential property, who is aggrieved (i) by the initial or any subsequent calculation of the lot or parcel area, or of the impervious area of the property, (ii) by the calculation of the stormwater management charge, or (iii) by the allocation of such charge among occupants, may appeal such determinations, provided that such appeal must be filed in writing within 90 days after the initial billing of the stormwater management charge for that property or within 90 days after any billing showing a recalculation of the stormwater management charge for that property. If an appeal occurs within 90 days after the initial billing of a property, any adjustment of the stormwater management charge resulting from such appeal shall be retroactive to the date of the initial billing. If an appeal occurs within 90 days after a billing showing a recalculation of the stormwater management charge, any adjustment of the stormwater management charge resulting from such appeal shall be retroactive to the date the recalculated bill went into effect.

(f) Appeals by the owners, occupants, or occupant organizations of multifamily residential properties or nonresidential properties shall include a statement of the number of dwelling units, total property area, and/or total impervious area, as appropriate for the particular grounds for appeal. Appeals by the owners of single-family residential properties shall include a statement or data showing the actual square footage of the lot or parcel. Such information may be shown on stormwater management reporting forms or on appeal forms and may be accompanied by plats, county assessor's records, or survey data. The director may request additional information from the appealing party. Based upon the information provided by the utility and appealing party, the director shall make a final calculation of the stormwater management charge. The director shall notify the parties, in writing, of the director's decision within 90 days after receipt of the appeal. If still aggrieved, a party may request, in writing, a review by the city manager of the director's decision. Such request must be filed with the city manager within 30 days after the director's decision, shall cite specific error by the director, and shall include the calculation of the stormwater management charge which the appealing party believes to be correct. The city manager shall review the record presented and render a written decision within 30 days after receipt of the request for review. The city manager may

request for review. The city manager may request additional information from either party. If still aggrieved, a party may request review of the city manager's decision by the city council in the same manner as above provided for review by the city manager. Any property owner aggrieved by the decision of the city council may appeal to the county district court by action filed within 60 days after mailing of the ruling of the city council to the address of the property owner, occupant, or occupant organization as shown on the review request or on the records of the city with respect to the appeal. The filing of an appeal shall not excuse the payment of the stormwater management charge when due. However, the city shall refund any portion of the charge paid subsequent to the filing of the appeal which is adjudged to be excessive, with interest at the rate provided by law.
(C91, § 21-134; O.13,075, 13,114, 13,217)

Sec. 118-282. Rate determinations; compliance with bond covenants.

(a) In calculating the ERU rate as provided in section 118-275 of this division, the director shall include in the budgeted expense and revenue amounts sufficient funds as will ensure compliance with any and all rate covenants applicable to any outstanding bonds, notes or other obligations issued in connection with the construction and operation of the stormwater.

(b) For purposes of complying with any covenant relating to the issuance of additional bonds, notes or other obligations ranking on a parity with outstanding bonds issued in connection with the construction and operation of the stormwater management utility, the director shall, prior to council consideration of the resolution to take additional action for the issuance of such additional bonds, and with such assistance from the city's independent accountants as the director deems necessary, calculate the ERU rate necessary to produce revenues sufficient to comply with such covenant and shall certify the rate to the city manager. The city manager shall inform the city council of the revised ERU rate at the time that the resolution to take additional action for the issuance of such bonds is submitted to the council for its review and approval. Upon council approval of such resolution, the city manager shall publish the revised ERU rate once in a newspaper of general circulation, shall give notice thereof to contributors if and as required by applicable state or federal law, and shall proceed to impose and collect the rate commencing with the next available billing cycle.
(C91, § 21-135; O.13,075, 13,217)

Sec. 118-283. Billing procedures; delinquent accounts and collection procedures.

(a) The procedures for billing of the stormwater management service charges provided in sections 118-276 through 118-279 of this division and for the collection of delinquent stormwater management service charges shall be as provided in sections 118-158 and 118-159 of this article.

(b) Contributors who operate a private water supply and are thus not subject to billing by the city water works may be directly billed for stormwater management services by the city. In such instances, the billing and collection of stormwater management charges shall be subject to the same rules and procedures as to delinquency in payment, certification of delinquency, and property lien as provided in sections 118-158 and 118-159 of this article.
(C91, § 21-136; O.13,075, 13,166, 13,217)

Sec. 118-284. Annual review of ERU rate.

Under this division, the director will review the ERU rate annually and revise the rate as necessary to ensure that the system generates adequate revenues to pay total annual revenue requirements.
(C91, § 21-137; O.13,075)

Sec. 118-285. User notification.

The city will notify each contributor at least annually, in conjunction with a regular bill, of the ERU rate being charged for operation, maintenance including extension and replacement of the system; provided, however, that liability to pay stormwater management charges as provided in this division is not contingent upon such notification.
(C91, § 21-138; O.13,075)

Sec. 118-286. Duties and bond of collection agent.

(a) Under this division, the collection agent is charged with the responsibility of billing all contributors except those billed directly by the city pursuant to subsection 118-283(b) of this division. The collection agent shall collect such charges at the same time, place and in conjunction with the water rentals in accordance with the stormwater management charges provided in sections 118-275 through 118-279 of this division.

(b) For the faithful performance of the duties of collection agent and for accounting for all funds coming into his or her hands, the collection agent shall give a fidelity bond to the city in the principal amount of $5,000.00. The collection agent shall receive reasonable compensation as fixed or agreed to by the city council.

(c) Except only as provided in section 118-164 of this article, all monies received by the collection agent from stormwater management charges shall be transmitted to the city treasurer to be kept in separate funds.
(C91, § 21-139; O.13,075, 15,697)

Sec. 118-287. Expenses of collection of stormwater management charges.

The incremental cost of collecting and accounting for all stormwater management charges, including reasonable compensation to the collection agent; the maintenance of all books and records; the employment of necessary personnel; the cost of all books, records, materials and supplies; the obtaining and maintaining of all office and storage space; and all other costs and expenses reasonably necessary in connection therewith or incidental thereto, shall be a part of the cost of operating the stormwater utility and shall be incurred when the collection agent, in the exercise of his or her judgment, shall so determine. The incremental cost thereof shall be deducted by the collection agent, upon his or her certification as to the amount thereof, from the remittance to which it relates, subject to the condition that any proposed change in any method of computing such incremental cost may be effective prospectively only and only after such proposed change shall have been submitted to and approved by the city council.
(C91, § 21-140; O.13,075)

Sec. 118-288. Inconsistent agreements or contracts.

This division shall take precedence over any terms or conditions of agreements or contracts which are inconsistent with the requirements of section 204(b)(1)(A) of the Federal Water Pollution Control Act and section 35.2140 of 40 CFR 35, dated May 12, 1982, as amended.
(C91, § 21-141; O.13,075)

Sec. 118-289. Reserved.

Editor's note—Ord. No. 15,095, § 1, adopted March 26, 2012, repealed § 118-289, which pertained to termination and derived from Code 1991, § 21-143; Ord. No. 13,078.

Secs. 118-290—118-294. Reserved.

Sec. 118-295. Establishment of stormwater best management practices program.

(a) The city council finds, determines, and declares it to be conducive to the health, welfare, safety and convenience of the city and its residents, and in compliance with the requirements of section 118-273, that a subsidy program be established to reimburse contributors for qualifying stormwater best management practices, as described in section 118-296, which help to enhance the water quality of stormwater runoff and/or to decrease the amount of stormwater runoff that enters the stormwater drainage system. The Environmental Protection Agency and Iowa Department of Natural Resources have mandated that municipalities promote the use of stormwater best management practices to address water quality and quantity issues. The goals of this program are to create a cost effective and sustainable incentive for the construction of stormwater best management practices within the city, to increase public awareness of the need to control stormwater runoff and to educate the public about sustainable practices to control stormwater runoff. The city has allocated from the stormwater sewer user fee revenues a sum

sufficient to provide a subsidy, as described in section 118-296, to contributors who elect to make qualifying improvements to their property within the corporate boundaries of Des Moines as described in section 118-296. The amount of the stormwater best management practices program subsidy shall be as described in section 118-296.

(b) The director or the director's designee shall make a stormwater best management practices subsidy provided in this division to contributors who meet the requirements of this division.

(c) The city shall have the right to suspend or terminate this program if the city council determines that continuation of such program is likely to have an adverse effect on sewer service collections so that the applicable bond rate covenants will not be met.
(O.14,949, 15,565, 16,253)

Sec. 118-296. Qualifying practices and method of making subsidy payments.

(a) Qualifying stormwater best management practices, or qualifying practices, which shall be considered eligible for subsidy include bio-retention cells, rain gardens, permeable paving systems, rain barrels, streambank stabilization, soil quality restoration, native landscaping or other similar practices approved by the director. Stormwater best management practices shall meet design criteria in the Iowa Storm Water Management Manual or other applicable design guidance approved by the director. Stormwater best management practices which are required by Chapter 42, Article XI of this Code or those for which the property owner seeks reimbursement from other sources of city funding, shall not be eligible for subsidy.

(b) The stormwater best management practices program will provide a maximum of a $2,000.00 subsidy as a reimbursement for 50% of the reasonable total out of pocket cost of materials and labor per property for a qualifying practice or a combination of qualifying practices.

A property which has received the maximum subsidy amount is not eligible for additional subsidies under this program, regardless of a change in ownership or use, until at least 10 years have passed since the date of issuance of the prior subsidy.

(c) Within priority watersheds, the stormwater best management practices program will provide a maximum of a $4,000.00 subsidy as a reimbursement for 100% of the reasonable total out of pocket cost of materials and labor per property for a qualifying practice or a combination of qualifying practices.

(d) The qualifying practice must have been installed after January 1, 2017 and installation completed by no later than June 30, 2028.

(e) A completed stormwater best management practices program application form and supporting documentation must be submitted to the department of public works by no later than June 1, 2028 and prior to commencement of the work in order to be eligible for the subsidy. The application must be approved before work is begun in order to be eligible for reimbursement.

(f) The account for the stormwater management fee charges on the property must be current as to the payments.

(g) Upon completion of the work and no later than August 31, 2028, the applicant must submit to the department of public works the documentation of the actual cost of the qualifying practice, which must include an itemized invoice that identifies the materials and labor and a copy of the full payment. The amount of funding for this program will be capped on an annual basis at an amount recommended by the director in the public works department operating budget as approved by the city council. To the extent that program funds are available, subsidies shall be provided to qualified applicants in the order in which completed applications are received.

(h) The city manager shall make all procedural and administrative determinations necessary to implement this program not in conflict with the provisions and intent of this division.
(O.14,949, 15,565, 15,757, 16,253)

Sec. 118-297. Limitations.

(a) In no case shall the city's stormwater best management practices program subsidy reimbursement pursuant to this division exceed the amount of the eligible costs paid or to be paid by the property owner for the qualifying improvements.

(b) Any person making a false statement, claim or application for the purpose of obtaining the subsidy provided for in this division for any two or more persons who conspire and confederate together to make such false statement, claim or affidavit or to assist another to do so shall be recommended to the county attorney for criminal prosecution.
(O.14,949, 16,253)

Secs. 118-298, 118-299. Reserved.

DIVISION 8. PRIVATE PROPERTY PROTECTION PROGRAM

Sec. 118-300. Established.

(a) The city council finds, determines, and declares it to be conducive to the health, welfare, safety and convenience of the city and its residents that a subsidy program be established to reimburse property owners for qualifying plumbing work which removes sources of infiltration and inflow from the private sewer system and which protects properties adversely affected by excessive flows in the sanitary sewer collection system. The city has allocated from the sanitary sewer user fee revenues a sum sufficient to provide a subsidy, as described in section 118-301, to property owners who elect to make qualifying improvements to their property as described in section 118-302. The amount of the private property protection program subsidy shall be equal to 100% of the cost of the qualifying improvements performed by a licensed plumber and shall not exceed $1,500.00 per property.

(b) For purposes of this article, the term "property owner" or "owner" shall mean the owner of record of a property or the party in possession thereof under lease or contract who paid the eligible costs for the qualifying improvements applicable to the property, and who is responsible for payment of municipal utility charges against the property, including water service charges, sanitary sewer service charges, solid waste collection service charges, and stormwater management charges.

(c) For purposes of this division, the term "property" shall mean those properties within the corporate boundaries of the City of Des Moines for which there is an account with the Des Moines Water Works that is currently being billed for sanitary sewer service fees.

(d) For purposes of this division, the term "licensed plumber" shall mean those persons who are certified or licensed plumbers in conformance with chapter 26 of this Code.
(O.14,815, 15,564, 15,688)

Sec. 118-301. Method of making subsidy reimbursement.

(a) The public works director shall make a private property protection program subsidy reimbursement provided in this division to property owners who meet the requirements of this division.

(b) The city shall have the right to suspend or terminate this private property protection program if the city council determines that continuation of such program is likely to have an adverse effect on sewer service collections so that the applicable bond rate covenants will not be met.
(O.14,815)

Sec. 118-302. Qualifying improvements.

(a) The private property protection program will provide a maximum of a $1,500.00 subsidy as a reimbursement for 100% of the reasonable total cost actually paid by the property owner for any materials and labor for the qualifying improvements to existing structures on private property.

(b) The work must have been performed and completed between the dates of January 1, 2017 and June 30, 2028.

(c) The property improvements deemed qualifying for subsidy from the private property protection program are limited to the new installation of a backwater valve(s) to protect the entire basement or lowest level only, the disconnection of roof leaders from the sanitary sewer service, the new installation or redirection of a sump pump to discharge flows from foundation drains and area drains to a non-sanitary sewer outlet such as a rain garden, storm sewer, or the ground surface. Any work performed due to a requirement by the city is not eligible for the subsidy.

(d) A completed private property protection program subsidy application form must be submitted by June 1, 2028 and prior to commencement of the work for which the applicant desires to receive reimbursement in order to determine if the proposed work qualifies for a subsidy and if there are sufficient funds in the program. The application must be approved before work is begun in order to be eligible for reimbursement. The account for the sanitary sewer fee charges on the property must be current as to payments.

(e) Upon completion of the work and no later than August 31, 2028, the applicant must submit to the department of public works documentation of the cost of the qualifying improvements which must include a copy of an itemized invoice from a licensed plumber or plumbing firm that identifies the work performed and a copy of the full payment.

(f) The work must be performed by a licensed plumber under a city plumbing permit.

(g) A property for which the maximum subsidy amount has been reimbursed by the city is not eligible for additional subsidies under this program, regardless of a change in ownership or use, until at least ten years have passed since the last date of issuance of the prior subsidy.

(h) The amount of funding for this program will be capped at an annual basis at an amount recommended by the director in the public works department operating budget and as approved by the city council. To the extent that program funds are available, subsidies shall be provided to qualified applicants in the order in which completed applications are received.
(O.14,815, 15,008, 15,564, 15,688, 16,254, 16,442)

Sec. 118-303. Administration.

The city manager shall make all procedural and administrative determinations necessary to implement this division not in conflict with the provisions and intent of this division.
(O.14,815)

Sec. 118-304. Limitations.

(a) In no case shall the city's private property protection program subsidy reimbursement pursuant to this division exceed the amount of the eligible costs paid or to be paid by the property owner for the qualifying improvements.

(b) Any person making a false statement, claim or affidavit for the purpose of obtaining the subsidy reimbursement provided for in this division for any two or more persons who conspire and confederate together to make such false statement, claim or affidavit or to assist another to do so shall be recommended to the county attorney for criminal prosecution.
(O.14,815)

Secs. 118-305—118-315. Reserved.

ARTICLE III. REGULATION OF INDUSTRIAL WASTEWATER AND COMMERCIAL WASTEWATER*

DIVISION 1. GENERAL PROVISIONS REGARDING INDUSTRIAL WASTE

Sec. 118-316. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings

*__Editor's note—__Ord. No. 14,549, § 1, adopted March 20, 2006, repealed the former Art. III, §§ 118-316—118-323, 118-351—118-362, 118-391—118-407, 118-436—118-447, and enacted a new Art. III as set out herein. The former Art. III pertained to industrial waste. See the Code Comparative Table for complete derivation.

ascribed to them in this section, except where the context clearly indicates a different meaning:

Act or *Clean Water Act* means the 1972 Federal Water Pollution Control Act, the 1977 Clean Water Act, and the 1987 Water Quality Act, as amended.

Approval authority means the Iowa Department of Natural Resources.

Authorized representative means:

(1) An executive officer of a corporation.

(2) A general partner of a partnership.

(3) The proprietor of a proprietorship.

(4) The conservator, trustee, attorney in fact, receiver or other person or agent authorized in law and in fact to act on behalf of users which are not corporations, partnerships, or proprietorships or on behalf of other entities which must legally act through an agent.

(5) Any other authorized representative of a person or entity identified in subsections (1), (2), (3), or (4) of this definition, if the authorization specifies either an individual or a position having responsibility for the overall operation of the facility from which the discharge originates, such as the position of plant manager or a position of equivalent responsibility, or having overall responsibility for environmental matters for the company and the written authorization is submitted to the director.

(6) Any other person authorized by law to act on behalf of any entity.

Baseline monitoring report means the report required by 40 CFR 403.12(b)(1-7).

Biochemical oxygen demand (BOD) means the analysis of BOD as described in Environmental Protection Agency methods.

Building drain means that part of the lowest horizontal piping of a drainage system which receives the discharge from waste and other drainage pipes inside the wall of the building and conveys it to the building sewer, beginning three feet outside the building wall.

Building sewer or *lateral sewer* means the sewer extending from the building drain to the connection with the POTW.

Bypass means the intentional diversion of waste streams from any portion of an industrial user's pretreatment facility.

Carbonaceous Biochemical Oxygen Demand (CBOD) means the analysis of BOD as described in Environmental Protection Agency methods while inhibiting the nitrogenous oxygen demand.

Categorical user means a user subject to National Categorical Pretreatment Standards.

Chemical oxygen demand (COD) means the measurement of the susceptibility of a sample to oxidation by a strong chemical oxidant expressed in mg/l and using Environmental Protection Agency methods.

City means the political subdivision known as the City of Des Moines, Iowa, and also means the territory within the corporate boundaries of the City of Des Moines.

City sanitary sewer system or *sanitary sewer system* means the local outfall sewers, trunk sewers, pumping stations, force mains, and wastewater equalization basins, and all other structures, devices and appliances appurtenant thereto, which are used for collecting, conveying or storing wastewater and which serve and are owned, operated and maintained by the city or by a sanitary district serving the city.

Combined waste stream formula means the formula as found in 40 CFR 403.6(e).

Composite sample means a representative sample using a minimum of three grab sample aliquots obtained over a period of time and mixed using either a flow proportional or time proportional method.

Conventional pollutant means BOD, COD, O&G, suspended solids, pH, ammonia nitrogen, total Kjeldahl nitrogen and fecal coliform bacteria.

Discharge or *indirect discharge* means the introduction of treated or untreated wastewater into the POTW.

Dissolved solids means the concentration of residue left in an evaporating dish after evaporation and drying at defined temperatures using Environmental Protection Agency methods or standard methods.

Domestic wastewater means all household-type waste discharged from places of human habitation, including toilet, bath, kitchen and laundry wastewater. *Domestic wastewater* is further defined as waste which does not exceed daily maximum limits of 300 mg/l COD, 200 mg/l BOD, 250 mg/l suspended solids, 100 mg/l oil and grease, 30 mg/l TKN, and 15 mg/l NH3-N at a discharge rate of 100 gallons per capita per day. This loading is equal to 0.25 pound of COD, 0.17 pound of BOD, 0.20 pound of suspended solids, 0.083 pound of oil and grease, 0.025 pound of TKN and 0.013 pound of NH3-N per capita per day.

Domestic user means a person discharging only domestic wastewater to the POTW, which wastewater is discharges from any building or parts of a building designed for or occupied by one or more persons as a single housekeeping unit, including such units within multifamily dwellings and apartment buildings, which building or premises is a source of wastewater discharge into a POTW.

Environmental Protection Agency or *EPA* means the U.S. Environmental Protection Agency.

Environmental Protection Agency methods means standard procedures for wastewater analysis approved by the U.S. Environmental Protection Agency and prescribed in 40 CFR 136, and includes alternate methods approved by the approval authority.

E. Coli or Escherichia coli means bacteria that are a member of the fecal coliform group and whose presence indicates fecal contamination in water.

Fecal coliform means bacteria common to the intestinal tracts of humans and animals whose presence in water is an indication of pollution.

Fat, oil, and grease or *oil and* grease or FOG means those substances which are detectable and measurable using analytical test procedures established in 40 CFR 136, as may be amended from time to time. All are sometimes referred to herein as "grease" or "greases".

Garbage means solid waste from the domestic and commercial preparation, cooking and dispensing of food, and from the commercial handling, storage and sale of produce.

Grab sample means a single aliquot sample collected either directly or by means of a mechanical device.

Headworks means the main wet well at the WRF prior to any treatment process.

Industrial user means a person whose property, building or premises is a source of wastewater discharge into the POTW, other than a domestic user.

Industrial waste means the liquid waste from industrial users as distinct from domestic sewage.

Interference means a discharge which, alone or in conjunction with a discharge or discharges from other sources, which both:

(1) Inhibits or disrupts the POTW, its treatment processes or operations, or its sludge processes, use or disposal, and

(2) Causes a violation of any requirement of the WRA's National Pollutant Discharge Elimination System permit (including an increase in the magnitude or duration of a violation) or prevents sewage sludge use or disposal in compliance with any federal, state or local regulations or permits.

Limit means the maximum allowable discharge of a given pollutant as in the following definitions:

(1) *Daily maximum limit* or *daily instantaneous maximum limit* means the maximum allowable discharge of pollutant as measured at any time during a calendar day, expressed as either a concentration limit or a daily mass limit. It is a violation if the concentration limit on any single sample taken exceeds that discharge limits in the discharge permit for the user, or the discharge limits set forth in section 118-343.

(2) *Monthly average limit* means the maximum allowable value for the average of all measurements of a pollutant obtained during one calendar month.

National Categorical Pretreatment Standards (NCPS) or *categorical standards* means any limitations on pollutant discharges to POTW promulgated by the U.S. Environmental Protection Agency that apply to specified process wastewater of particular industrial categories.

National Pollutant Discharge Elimination System (NPDES) permit means a permit issued pursuant to the Act.

New source means a source as defined by 40 CFR 403.3(k).

Nonconventional pollutants means all pollutants which are not included in the definition of conventional pollutants.

Non-significant categorical industrial user (NSCIU) is a categorical user which never discharges more than 100 gallons per day of total categorical wastewater, as defined in 40 CFR 403.3(v)(2).

NH3-N means the ammonia nitrogen concentration in mg/l as determined using Environmental Protection Agency methods.

O&M means operation and maintenance.

Pass through means a discharge which exits the POTW into water of the state in quantities or concentrations which, alone or in conjunction with a discharge from other sources, is a cause of a violation of any requirement of the WRA's National Pollutant Discharge Elimination System permit, including an increase in the magnitude or duration of a violation, or other permit issued to the WRA by the Iowa Department of Natural Resources or the U.S. Environmental Protection Agency.

Person means any individual, partnership, co-partnership, firm, company, association, joint stock company, society, corporation trust, estate, municipality, governmental entity, group, or any other legal entity, or their legal representatives, agents, or assigns.

pH means the logarithm of the reciprocal of the weight of hydrogen ions in grams per liter of solution.

Pollution means the alteration of chemical, physical, biological, or radiological integrity of water as a result of human activity or enterprise.

POTW treatment plant means that portion of the publicly owned treatment works which is designed to provide treatment, including recycling and reclamation, of municipal sewage and industrial waste.

Pretreatment means the reduction, elimination, or alteration of the nature of pollutant properties in wastewater prior to or in lieu of discharging or otherwise introducing such pollutants into the POTW.

Pretreatment facility means the equipment used to accomplish pretreatment.

Pretreatment requirements means any substantive or procedural requirement related to pretreatment standards, imposed on an industrial user.

Pretreatment standards means, for any specified pollutant, the prohibitive discharge standards as set forth in section 118-342 of this article, the specific limitations on discharge as set forth in section 118-343 of this article, the state pretreatment standards or the National Categorical Pretreatment Standards, whichever standard is most stringent.

Properly shredded garbage means the waste from the preparation, cooking and dispensing of food that has been shredded to such a degree that all particles are carried freely under the flow conditions normally prevailing in the POTW, with no particle greater than one-half inch in any dimension.

Publicly owned treatment works or *POTW* means and includes "POTW" treatment works as defined by section 212 of the Act, and which is owned by the Des Moines Metropolitan Wastewater Reclamation Authority or any of Participating Communities that make up the WRA. This definition includes any devices and systems used in the storage, treatment, recycling and reclamation of municipal sewage or industrial wastes of a liquid nature. It also includes sewers, pipes and other conveyances if they convey wastewater to a POTW Treatment Plant.

Sampling chamber or *sampling maintenance hole* means a device or structure suitable and appropriate to permit sampling and flow measurement of a wastewater stream to determine compliance with this article.

Severe property damage means substantial physical damage to property, damage to a pretreatment facility causing it to become inoperable, or substantial and permanent loss of natural resources which can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production.

Sewage means and includes wastewater as herein defined.

Sewage system means sewers, intercepting sewers, pipes or conduits, pumping stations, force mains, and all other constructions, devices and appliances appurtenant thereto used for collecting or conducting sewage to a point of treatment or ultimate disposal.

Significant user means:

(1) All categorical users.

(2) All industrial users that:

a. Discharge 25,000 gallons per day or more of process wastewater (excludes sanitary, non-contact cooling, and boiler blowdown wastewater);

b. Contribute a process waste stream which makes up five percent or more of the average dry weather hydraulic or organic capacity of the WRF; or

c. Contribute a discharge that has a reasonable potential, in the opinion of the director, to adversely affect the POTW treatment plant by causing interference or pass through.

Sludge means the solids separated from the liquids during the wastewater treatment process.

Slug or *slug load* means any discharge of water or wastewater which, in concentration of any pollutant, measured using a grab or composite sample, is more than five times the allowable concentration as set forth in sections 118-342 and 118-343 of this article or in a user's most recent wastewater discharge permit or which exceeds a slug concentration level specified in a wastewater discharge permit. A discharge with pH outside the allowable range by more than one standard unit (S.U.) shall also be considered a slug.

Standard Industrial Classification (SIC) means a classification pursuant to the Standard

Industrial Classification Manual issued by the Executive Office of the President, Office of Management and Budget, most recent edition.

Standard Methods means the laboratory procedures set forth in the latest USEPA approved edition of Standard Methods for the Examination of Wastewater prepared and published jointly by the American Public Health Association, the American Water Works Association, and the Water Environment Federation.

Storm sewer means a sewer which carries stormwater, surface water and drainage but excludes sewage and industrial waste other than unpolluted cooling water.

T, when used as a portion of a chemical name, shall designate "total" such as in "cyanide-T" where "T" means "total" cyanide.

TKN means the Total Kjeldahl Nitrogen concentration expressed in mg/l as determined using Environmental Protection Agency methods or Standard Methods.

Total metal means the sum total of the suspended and dissolved concentrations of a metal specified in a wastewater discharge permit or as specified in section 118-343 hereof.

Total Suspended Solids (TSS) means the portion of total solids retained by a filter using Environmental Protection Agency methods or Standard Methods.

Total Toxic Organics (TTO) means the summation of all quantified values greater than 0.01 milligram per liter for the toxic organics as specified in the applicable regulation.

Toxic pollutant means any pollutant or combination of pollutants listed in 40 CFR 403, appendix B.

Unpolluted water means water containing none of the following: free or emulsified oil and grease; substances that may impart taste, odor or color characteristics; volatile, explosive, toxic or poisonous substances in suspension or solution; explosive, odorous or otherwise obnoxious gases. Such water shall not contain more than 25 mg/l of suspended solids, and not more than 25 mg/l of BOD.

Upset means an exceptional incident in which there is unintentional and temporary noncompliance with pretreatment standards because of factors beyond the reasonable control of the user. An upset does not include noncompliance to the extent caused by operational error, improperly designed pretreatment facilities, inadequate pretreatment facilities, lack of preventive maintenance, or careless or improper operation.

User means a person discharging anything other than domestic wastewater into the POTW, and includes categorical users as herein defined.

Waste generator means any person which hauls or has hauled on its behalf wastewater it generates to the WRF.

Waste hauler means a private contractor licensed by the WRA to deliver wastewater to the WRF or other locations approved by the WRA director, and includes all persons required to have a license under section 118-451 of this chapter.

Wastewater means and includes *sewage* as defined in federal law and regulation, or a combination of the liquid and water-carried waste from residences, commercial buildings, institutions and industrial establishments, together with such groundwater, surface water, and stormwater as may be present, whether treated or untreated, which is contributed into or permitted to enter the POTW.

Wastewater discharge permit means the document issued to a user by the WRA in accordance with the terms of this article which permits such user to discharge wastewater to the POTW.

Water of the state means all streams, lakes, ponds, marshes, watercourses, waterways, wells, springs, reservoirs, aquifers, irrigation systems, drainage systems and all other bodies or accumulations of water, surface or underground, natural or artificial, public or private, which are contained within, flow through or border upon the state or any portion thereof.

WRA or *wastewater reclamation authority* means the Des Moines Metropolitan Wastewater Reclamation Authority, an entity organized and existing under Chapters 28E and 28F of the Iowa

Code, and established pursuant to the WRA Agreement. The term "WRA" means and includes the representatives of the Participating Communities on the WRA Board, and the officers and employees of the WRA.

WRA agreement means the Amended and Restated Agreement for the Des Moines Metropolitan Wastewater Reclamation Authority, approved and executed by the WRA and its Participating Communities and effective as of July 1, 2004.

WRA director or *director* means the person appointed by the WRA board, or by the WRA operating contractor upon consultation with the board, as provided in Section 2.63 of the WRA operating contract, who is charged with the administration and management of the WRA system and of the provision of all services outlined in operating contract. Unless otherwise indicated in the text, the director shall mean and include the person acting as the director's authorized designee in the director's absence in carrying out the director's duties under this article.

WRA operating contractor or *operating contractor* means the City of Des Moines, pursuant to the initial operating contractor executed by the City of Des Moines and the WRA board on and as of July 1, 2004, or such successor operating contractor as the WRA shall contract with to provide operation and management services to the WRA

WRA participating community or WRA *participating communities* means, individually or collectively, depending on context, the cities of Altoona, Ankeny, Bondurant, Clive, Cumming, Des Moines, Grimes, Johnston, Norwalk, Pleasant Hill, Polk City, Waukee, and West Des Moines, and Polk County, Warren County, the Urbandale Sanitary Sewer District, the Urbandale-Windsor Heights Sanitary District and the Greenfield Plaza/Hills of Coventry Sanitary District, together with any other cities, counties, or sanitary districts that become participating communities under the provisions of the WRA agreement.

WRA wastewater collection and conveyance system or *WCCS* means the WRA sanitary sewer interceptors and extensions to same, detention basins, equalization basins, storage facilities, pumping stations, force mains and all related property and improvements.

WRA wastewater reclamation facility or *WRF* means the wastewater treatment plant located generally at 3000 Vandalia Road, Des Moines, Iowa, as the same may be expanded or improved in the future, and any other wastewater treatment plants hereafter acquired or constructed and operated by the WRA.

WRA system means and includes the WRF, the WCCS, satellite wastewater and CSO treatment facilities hereafter constructed, all real and personal property of every nature hereinafter owned by the WRA and comprising part of or used as a part of the WRA system, and all appurtenances, contracts, leases, franchises and other intangibles of the WRA.
(O.14,549, 15,730, 16,159)

Sec. 118-317. Abbreviations.

The following abbreviations, when used in this article, shall have the designated meanings:

BETX	Benzene, ethylbenzene, toluene, and xylenes(total)
BOD	Biochemical oxygen demand
BMR	Baseline monitoring report
C	Celsius
CFR	Code of Federal Regulations
COD	Chemical oxygen demand
EPA	Environmental Protection Agency
F	Fahrenheit
FOG	Fat oil, and grease
GPD	Gallons per day
IDNR	Iowa Department of Natural Resources
lb/day	Pounds per day
mgd	Million gallons per day
mg/l	Milligrams per liter
NCPS	National Categorical Pretreatment Standards or categorical standards
NH3-N	Ammonia nitrogen
NPDES	National Pollutant Discharge Elimination System
O&G	Oil and grease
POTW	Publicly owned treatment works

SCP	Spill control plan
SIC	Standard industrial classification
SNC	Significant noncompliance
RCRA	Resource Conservation and Recovery Act
TCLP	Toxicity characteristic leaching procedure
TFE	Trichlorotrifluoroethane
TKN	Total Kjeldahl nitrogen
TOH	Total organic hydrocarbons
TRC	Technical review criteria
TSS	Total suspended solids
TTO	Total toxic organics
USC	United States Code
U.S. EPA	United States Environmental Protection Agency
VPH	Volatile petroleum hydrocarbons

(O.14,549, 15,730)

Sec. 118-318. General adoption.

The provisions of this article are enacted to aid in the enforcement of the pretreatment regulations set forth in this article and may be placed in a separate portion of the municipal or county code of any WRA participating community which adopts these provisions. Each WRA participating community by enacting this article designates the WRA and its operating contractor as the enforcement agency under this article. Employees, agents and officers of the WRA and of its operating contractor, while acting to enforce this article for the WRA, are empowered to make such inspections, issue such orders or permits and take such actions within the corporate boundaries of the city as are authorized by this article. The WRA or its operating contractor is also authorized to impose and collect all fees or penalties authorized by this article, and are authorized to directly bill and collect from contributors penalties, fees charges and surcharges from all users within the city. A user's failure to pay any fee, charge, penalty or surcharge is a municipal infraction and shall also be grounds to discontinue sewer service to the user, all as hereafter more particularly provided. The enforcement of this article in the city is not dependent upon passage of this article or a similar ordinance by other WRA participating communities.
(O.14,549)

Sec. 118-319. Intent and construction.

This article seeks to implement provisions of the Act, the general pretreatment regulations found at 40 CFR, Part 403, and the Iowa Administrative Code, chapter 567, sections 62.4 and 62.8. This article is to be construed and applied in accordance with the Clean Water Act amendments, the general pretreatment regulations, the Iowa Administrative Code and the purpose and policy provision set forth in section 118-320 of this division.
(O.14,549)

Sec. 118-320. Purpose and policy.

(a) This article regulates the use of sanitary sewers; private wastewater disposal; the installation and connection of building sewers; and the discharge of wastewater or waste into the POTW. This article sets forth uniform requirements for discharges into the POTW, and the deposit of wastewater and waste hauled to the WRF or to other locations approved by the WRA director for disposal and treatment.

(b) The objectives of this article are to:

(1) To prevent the introduction of pollutants into the POTW that may interfere with the operation of the system or interfere with sludge management and disposal.

(2) Prevent the introduction of pollutants into the POTW that may pass through the system inadequately treated and ultimately into receiving water, the atmosphere, or otherwise be incompatible with the system.

(3) Protect workers' safety and health and protect against damage to the POTW.

(4) Provide for equitable distribution of treatment and industrial pretreatment costs resulting from pollutants introduced into the POTW.

(O.14,549)

Sec. 118-321. Jurisdiction.

The sections of this article are applicable in their entirety to all users who contribute wastewater, directly or indirectly, into the POTW

without regard to whether the physical facilities of such users are situated within or outside the corporate limits of the city.
(O.14,549)

Sec. 118-322. Severability.

If any provision of this article or the application thereof to any particular person or particular circumstance is held invalid, the invalidity shall not affect other provisions or application of this article which can be given effect without the invalid provision or application. To this end the provisions of this article are severable.
(O.14,549)

Sec. 118-323. Interpretation.

This article shall be construed and interpreted to conform with 40 CFR I, and it is the intent of this article that it comply with the federal regulations.
(O.14,549)

Secs. 118-324—118-340. Reserved.

DIVISION 2. WASTEWATER TREATMENT AND PRETREATMENT

Sec. 118-341. User requirements.

(a) The following requirements shall apply to all users of the POTW:

(1) All users shall promptly notify the WRA director in advance of any substantial change in the volume or character of pollutants in their discharge.

(2) New or increased contributions of pollutants or changes in the nature of pollutant discharged to the POTW shall require prior approval by the WRA director.

(3) Industrial users shall notify the WRA director, the Environmental Protection Agency Regional Waste Management Division Director, and state hazardous waste authorities in writing of any discharge into the POTW of a substance which, if otherwise disposed of, would be a hazardous waste under 40 CFR 261. The notification shall comply with the requirements set forth in 40 CFR 403.12(p).

(4) Discharge of any pollutants without the notice and approval required by this section is prohibited. Upon the receipt of notice required by this section, the WRA director shall within 180 days or less approve the discharge if he or she finds the proposed discharge meets applicable pretreatment standards and requirements and would not cause the WRA to violate its National Pollutant Discharge Elimination System permit. The WRA director shall deny permission for the discharge if he or she finds applicable pretreatment standards and requirements are not met or the discharge would cause a violation of the National Pollutant Discharge Elimination System permit for the WRF. In lieu of denial of permission for discharge, the WRA director may allow such discharge or contribution upon conditions which would not violate applicable pretreatment standards or requirements and would not cause a violation of the National Pollutant Discharge Elimination System permit for the WRF.

(5) Food service establishments shall be regulated first under division 5 of this article but may be required to obtain a wastewater discharge permit and be subject to the requirements of divisions 1 through 4 if the WRA director determines that additional pretreatment is required in order to comply with fat, oil, and grease discharge limits.

(b) Any part of this section notwithstanding, upon receipt of the notice required by this section, the WRA director may require, in addition to the requirements of this section, that an industrial user obtain a permit under this article.

(c) Users who are determined to be industrial users as herein defined and who refuse to apply for or obtain a wastewater discharge permit shall be subject to termination of sewer services as provided in section 118-402 hereof.
(O.14,549)

Sec. 118-342. Discharge prohibitions.

The following general prohibitions shall apply to all users of the POTW unless the user is subject to a more restrictive National Categorical Pretreatment Standards, the Iowa Department of Natural Resources, or wastewater discharge permit limit. The following substances are prohibited from discharge to the POTW:

(1) Pollutants creating a fire or explosion hazard in the POTW, including but not limited to waste streams with a closed cup flashpoint of less than 140 degrees Fahrenheit (60 degrees Celsius) using test methods referenced in 40 CFR 261.21. Waste streams shall not be ignitable at ambient temperatures. At no time shall two successive readings on a meter capable of reading L.E.L. (lower explosive limit) at the nearest accessible point to the POTW, at the point of discharge into the POTW or at any point in the POTW, be more than five percent nor any single reading greater than ten percent.

(2) Any substance which will cause corrosive structural damage to the POTW, but in no case discharges with pH lower than 5.0 or greater than 12.0.

(3) Solid or viscous pollutants which will cause obstruction to the flow in the POTW resulting in interference. Such pollutants include but are not limited to grease, garbage with particles greater than one-half inch any dimension, animal tissues, paunch manure, bones, hair, hides or fleshings, entrails, whole blood, feathers, ashes, cinders, sand, spent lime, stone or marble dust, metal, glass, straw, shavings, grass clippings, rags, wipes, spent grains, spent hops, wastepaper, wood, plastics, tar, asphalt residues from refining or processing of fuel or lubricating oil, mud or glass grinding or polishing waste, or tumbling and de-burring stones, and wastewater containing fat, wax, O&G, or other substances which may solidify or become viscous at temperatures between 32 and 150 degrees Fahrenheit (0 and 65 degrees Celsius).

(4) Any pollutant, including oxygen demanding pollutants (BOD, etc.) released in a discharge at a flow rate or pollutant concentration which will cause interference or pass through at the WRF or which constitutes a slug load as defined in this article.

(5) Heat in amounts which will inhibit biological activity in the POTW resulting in interference, but in no case wastewater or vapor having a temperature higher than 150 degrees Fahrenheit (65 degrees Celsius) at the point of introduction into the POTW, and in no case wastewater or vapor which alone or in concert with other discharges produces a temperature at the WRF greater than 104 degrees Fahrenheit (40 degrees Celsius).

(6) Petroleum oil, non-biodegradable cutting oil, or products of mineral oil origin in amounts that will cause interference or pass through.

(7) Pollutants which result in the presence of toxic gases, vapors, or fumes within the POTW in a quantity that may cause acute worker health and safety problems or a public nuisance.

(8) Any trucked or hauled pollutants, except at discharge points designated by the WRA.

(9) Any radioactive material as defined in the Atomic Energy Act of 1954, as amended, and as defined in I.C. § 136C.1, except materials which meet conditions of disposal by release into sanitary sewerage pursuant to 10 CFR 20.2003.

(10) Any wastewater containing concentrations of inert suspended solids, such as but not limited to fuller's earth, lime slurries, and lime residues, or of dissolved solids, such as but not limited to, sodium chloride and sodium sulfate, which exceed 3,000 mg/l nonvolatile or 3,000 mg/l total dissolved solids unless approved by the WRA director.

(11) Pollutants causing excessive discoloration, such as but not limited to dye waste and vegetable tanning solutions.

(12) Hazardous waste pharmaceuticals for human or animal use as defined in 40 CFR 266.500.

(O.14,549, 15,730, 16,159)

Sec. 118-343. Local limits for specific pollutants.

(a) *Generally.* Local limits for specific pollutants discharged pursuant to this article shall be as follows:

(1) *Dilution.* Dilution of the discharge from a pretreatment facility or from a regulated process is prohibited as a method for treatment of wastes in order to meet the limits set forth in this article.

(2) *Sample location.* Measurement of pollutant concentrations to determine compliance shall be made at the point immediately following the pretreatment facility and before mixture with other waters, unless another point is designated by the WRA director. If necessary, the concentrations so measured shall be recomputed to exclude the effect of any dilution that is improper using the combined waste stream formula.

(b) *Headworks limits; average mass.* The average composite loading of all industrial users contributing the following specific pollutants to the POTW shall not exceed the allowable total pounds. The allocation of pollutants between industrial and nonindustrial sources may be adjusted by the director provided that the allowable total loading for any pollutant at the headworks of the WRF is not exceeded.

	30-Day Average Allowable Pounds/Day	
Pollutant	*Total*	*Industrial*
BOD	195,600	135,153
TSS	300,400	208,463
NH3	13,000	6,959
TKN	27,760	16,950

	Maximum Allowable Headworks Loading Pounds/Day	*Maximum Allowable Industrial Loading Pounds/Day*
Pollutant	*Total*	*Industrial*
Arsenic-T	7.58	3.81
Cadmium-T	3.65	2.16
Chromium-T	136.35	120.90
Copper-T	148.56	125.51
Cyanide-T	17.08	8.28
Lead-T	28.17	20.94
Mercury-T	0.999	0.747
Nickel-T	87.27	75.75
Silver-T	23.30	19.77
Zinc-T	360.59	283.53

(c) *Discharge concentration limits and review criteria.* Discharge concentration limits and review criteria shall be as follows:

(1) The discharge into the POTW of any materials, water or waste having a pollutant concentration greater than the limits in subsections (c)(3), (4), and (5) of this section or containing pollutants not listed in this subsection shall be subject to the review and approval of the WRA director. After review of the proposed discharges, the WRA director may:

a. Reject the waste for reasons consistent with section 118-320 of this article.

b. Require pretreatment to an acceptable pollutant concentration for discharge to the POTW.

c. Require control of the quantities and rates of discharge of the water or waste.

d. Require payment to cover the added cost of handling and treatment of water and waste or any combination thereof.

e. Reduce the maximum or average mass loading of present and prospective individual users on any reasonable prorated basis to meet headworks loading limits at the WRF.

f. Require the user to obtain a wastewater discharge permit and be subject to any of the rules and regulations contained therein.

g. Require the user to meet local limits when local limits are more restrictive than National Categorical Pretreatment Standards, provided that headworks loading limits are met.

h. Initiate enforcement action in response to any noncompliance with this article using the enforcement procedures outlined in this article.

i. Take any combination of the steps in subsections (c)(1)a through (c)(1)g, as appropriate.

(2) Users discharging wastewater to the POTW whose pollutant concentrations or flows are greater than the following shall be considered industrial users for purposes of sewer charges and may be regulated or permitted by the WRA director as appropriate:

	Pollutant	*Daily Maximum (mg/l)*
a.	BOD	200
b.	TSS	250
c.	COD	300
d.	O&G-T	100
e.	TKN	30
f.	NH3-N	15
g.	An average daily flow greater than 5,000 gallons or having an unusual concentration of flow.	

(3) Pollutant limits. Average and maximum concentration limits for users without National Categorical Pretreatment Standards for these pollutants shall be as follows:

Pollutant	*Daily Maximum (mg/l)*	*Monthly Average (mg/l)*
Arsenic-T	0.38	0.25
Cadmium-T	0.08	0.05
Chromium-T	6.43	4.29
Copper-T	10.21	6.80
Cyanide-T	0.53	0.36
Lead-T	1.43	0.95
Mercury-T	0.042	0.028
Nickel-T	7.22	4.81
O&G-T	400.0	—
O&G-Mineral	100.0	—
Silver-T	1.30	0.87
VPH	10.0	—
Zinc-T	19.64	13.09

pH range shall be not lower than 5.0 or greater than 12.0.

Temperature (liquids or vapors) shall be not greater than 150 degrees Fahrenheit at the point of entry into the POTW.

(4) Daily maximum pollutant limits for hauled waste. Wastes delivered to the WRF by truck or rail shall not exceed the following concentrations in any load or overall daily loading limits unless otherwise approved by the WRA Director:

Pollutant	*Concentration (mg/l)*	*Loading (pounds/day)*
COD	100,000	—
O&G-T	50,000	—
VPH	10.0	—
Arsenic-T	—	0.014
Cadmium-T	—	0.93
Chromium-T	—	24.74
Copper-T	—	23.71
Cyanide-T	—	0.29
Lead-T	—	6.70
Mercury-T	—	0.12
Nickel-T	—	3.71
Silver-T	—	0.26
Zinc-T	—	87.62

pH range shall be not lower than 5.0 or greater than 12.0.

(5) Daily maximum limit for gasoline cleanup projects. Discharge of wastewater from sites where gasoline is being removed from the soil or groundwater shall meet the following limits prior to discharge to the POTW:

Pollutant	*mg/l*
Benzene	0.050
BETX	0.750

(d) No subsection of this section shall be construed to provide lesser discharge standards than are or that may be imposed and required by U.S. Environmental Protection Agency or the

Iowa department of natural resources, nor to allow the average allowable total loading for any pollutant at the headworks of the WRF to be exceeded.
(O.14,549, 15,730)

Sec. 118-344. National Categorical Pretreatment Standards.

Users subject to National Categorical Pretreatment Standards (NCPS) as contained in 40 CFR I, subchapter N, part 405-471 shall comply with the standards and applicable reporting requirements under 40 CFR 403.12. New sources of categorical discharge shall meet National Categorical Pretreatment Standards in the shortest feasible time, but in no case longer than 90 days from the commencement of discharge. Failure to comply shall be a violation of this article and subject the user to enforcement action. The WRA is required to notify all known affected categorical users of the applicable reporting requirements under 40 CFR 403.12. Failure of the WRA to notify a user shall not relieve the user of the duty, if any, to comply with National Categorical Pretreatment Standards.
(O.14,549)

Sec. 118-345. State requirements.

State of Iowa requirements and limitations on discharges pursuant to this article shall apply when they are more stringent than U.S. Environmental Protection Agency or WRA requirements and limitations unless allowed by the Iowa Department of Natural Resources.
(O.14,549)

Sec. 118-346. City's right of revision.

The city, acting at the direction of the WRA, reserves the right to establish more stringent limitations or requirements on discharges to the POTW than those contained in this article if deemed necessary to comply with the purpose and policy objectives presented in section 118-320 of this article.
(O.14,549)

Sec. 118-347. Pretreatment.

(a) A user discharging or with potential to discharge any waste into the POTW as set forth in section 118-342, 118-343 or 118-344 of this division shall be required by the WRA director to construct, install and operate, at the user's sole expense, such pretreatment facilities as may be required in order to:

(1) Reduce the objectionable characteristics or constituents of wastewater to within the maximum limits provided for in sections 118-342, 118-343, 118-344 and 118-345 of this article.

(2) Control the quantities and rates of discharge of such wastewater.

(3) Reduce the pollutants to such concentration and flows as may be contained in the user's wastewater discharge permit.

(4) Prevent the discharge of liquid waste containing FOG, sand in excessive amounts, any flammable waste, or other harmful pollutants. All traps or similar devices shall be of a type and capacity needed to perform effectively and shall be readily and easily accessible for cleaning and inspection. All traps or devices shall be provided and maintained in efficient operating condition at all times. Materials removed from traps shall be considered unacceptable for disposal at the WRF unless specifically approved by the WRA director.

(b) All plans, specifications, technical operating data and other information pertinent to the proposed operation and maintenance of pretreatment facilities shall be reviewed and approved by the WRA director prior to construction. Design and installation of such facilities shall be subject to the requirements of all applicable codes, chapters and laws, including local zoning regulations. The review and approval of such plans and operating procedures shall, in no way, relieve the user from the responsibility of modifying the facility as necessary to produce an effluent acceptable to the WRA director under this article. Any subsequent changes in the pretreatment facili-

ties or method of operations shall be reported to and be acceptable to the WRA director prior to the user's initiations of the changes.

(c) Users shall continuously maintain all pretreatment facilities required by this article in satisfactory and effective operating condition at the sole expense of such user.

(d) No section contained in this article shall be construed to prevent or prohibit a separate or special agreement between the WRA and any user whereby wastewater containing waste of unusual strength, character or composition may be accepted for treatment, subject to additional payment by such user; provided, however, that such agreement shall have the prior approval of the WRA board, shall not conflict with the Iowa Department of Natural Resources and U.S. Environmental Protection Agency requirements, and shall be consistent with subsection 118-433(b) and sections 118-344 and 118-345 of this article, and subsection (f) of this section.

(e) The WRA director may reject any waste which, in the opinion of the director, may cause interference or pass through.

(f) Users shall obtain the specific approval of the WRA director prior to discharging any waste resulting from a pretreatment facility to the POTW. The WRA director may develop a documentation system to track the transportation and final disposition of any pretreatment waste. Pretreatment waste regulated by this subsection shall include waste generated as a result of pretreatment processes used to comply with National Pollutant Discharge Elimination System permits, air pollution permits, wastewater discharge permits, soil/groundwater reclamation processes, and pollutants resulting from a spill of any liquid or solid material or the cleanup of any such spill. Pretreatment waste is prohibited from disposal to the water of the state except as specifically permitted by the Iowa Department of Natural Resources.
(O.14,549)

Sec. 118-348. Dilution prohibited.

Users shall not increase the use of process water or, in any way, attempt to dilute a discharge as a partial or complete substitute for adequate pretreatment to achieve compliance with the limitations contained in the National Categorical Pretreatment Standards, or with any other pollutant-specific limitation developed by the WRA or its operating contractor.
(O.14,549)

Sec. 118-349. Spill containment.

(a) Users having the ability to cause interference or pass through or to discharge a slug shall provide protection from accidental discharge to the POTW of prohibited materials or other substances regulated by this article. Facilities to prevent accidental discharge of prohibited materials shall be constructed, installed, operated and maintained at the user's sole cost and expense.

(b) Users meeting the criteria in subsection (a) of this section shall develop a spill containment plan. The plan shall require the approval of the WRA director and shall contain the following:

(1) A description of discharge practices, including non-routine batch discharges.

(2) A description of stored chemicals.

(3) Procedures for immediately notifying the WRA of slug discharges, including any that would violate the discharge prohibitions in section 118-342 of this division. Notification procedures shall comply with subsections (c) and (d) of this section.

(4) A description of procedures and structures necessary to prevent adverse impacts upon the POTW from accidental spills including inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site runoff, worker training, building of containment structures or equipment, measures for containing toxic organic pollutants including solvents, and/or measures and equipment for emergency response.

(5) A schedule for the completion or implementation of necessary procedures and structures. Complete implementation and installation of any procedures or

structures shall be according to the shortest possible schedule, but in no case longer than one year. Review and approval of such plans and operating procedures shall not relieve the user from the responsibility to modify and operate its facility as necessary to meet the requirements of this article.

(c) Users shall immediately telephone and notify the WRA of any accidental or deliberate discharge of pollutants which violates section 118-342 of this division or which is a slug load. Any discharge into the POTW of a substance which is a listed or characteristic waste under section 3001 of RCRA must be immediately reported to the U.S. Environmental Protection Agency Regional Director, the Iowa Department of Natural Resources, and the WRA. Notifications required in this subsection shall include the name of caller, location and time of discharge, pollutant concentration, volume and the corrective actions taken.

(d) Users shall submit a written report to the WRA director within five days following such an accidental or deliberate discharge describing the cause of the discharge and the measures to be taken by the user to prevent similar future occurrences. Users shall submit follow-up reports as may be required by the WRA director. Such report shall not relieve the user of any expense, loss, damage or other liability which may be incurred as a result of damage to the POTW, fish kills, or any other damage to person or property, nor shall such report relieve the user of any fines, civil penalties, or other liability which may be imposed by this article or otherwise. Failure to report accidental or deliberate discharges may, in addition to any other remedies available to the city, result in the revocation of the discharger's wastewater discharge permit.

(e) Users shall control production or all discharges to the extent necessary to maintain compliance with all applicable regulations upon reduction, loss, or failure of its pretreatment facility until the facility is restored or an alternative method of pretreatment is provided. This requirement applies in the situation where, among other things, the primary source of power to the user's pretreatment facility is reduced, lost or fails.

(f) Users required to have a spill containment plan must permanently post a notice in English and the language of common use on the user's bulletin board or other prominent place advising employees whom to call if a prohibited discharge occurs. Users shall ensure that all employees who are in a position to cause, discover, or observe such an accidental discharge are advised of the emergency notification procedures.
(O.14,549)

Sec. 118-350. Treatment upsets.

Users shall inform the WRA director within one hour of becoming aware of an upset in operations that places it in a temporary state of noncompliance with the pollutant limits in this article. Users shall provide a follow-up written report to the WRA director within five days. The report must demonstrate that the pretreatment facility was being operated in a prudent and appropriate manner and shall contain:

(1) A description of the upset, its cause, and impact on the user's compliance status.

(2) The duration of noncompliance, including exact dates and times of noncompliance, and, if the noncompliance is continuing, the time by which compliance is reasonably expected to be restored.

(3) All steps taken or planned to reduce, eliminate, and prevent recurrence of such an upset.
(O.14,549)

Sec. 118-351. Treatment bypass.

(a) Under this article, bypass is prohibited unless it is unavoidable to prevent loss of life, personal injury, or severe property damage or no feasible alternatives exist such as the use of auxiliary treatment facilities, retention of untreated waste, or maintenance during normal periods of equipment downtime.

(b) The user may allow a bypass to occur which does not cause a violation of pretreatment standards, but only if it is for essential maintenance to ensure efficient operation.

(c) Notification of bypass shall be submitted in accordance with the following:

(1) *Anticipated bypass.* If the user knows in advance of the need for a bypass, it shall submit prior written notice, at least ten days before the date of the bypass, to the WRA director.

(2) *Unanticipated bypass.* The user shall immediately notify the WRA director and submit a written report to the WRA within five days. This report shall specify the following:

a. A description of the bypass, its cause, and the duration.

b. Whether the bypass has been corrected.

c. The steps being taken or to be taken to reduce, eliminate and prevent a reoccurrence of the bypass.

(d) Proper notification shall not relieve the user of liability for treatment costs and fees or other remedies as provided for in section 118-347 of this division.
(O.14,549)

Sec. 118-352. Fees.

To provide for the recovery of costs from users of the POTW and for the implementation of the pretreatment program established by this article, the following fees are hereby established and shall be applicable to discharges by all users:

(1) All users shall be subject to the following fees and charges:

a. The one-time wastewater discharge permit application fee shall be $200.00 for a class A permit and $100.00 for a class B permit.

b. The annual fee for a class A wastewater discharge permit, including annual inspection of permitted users, shall be $1,500.00.

c. The annual fee for a class B wastewater discharge permit, including annual inspection of permitted users if completed or applicable, shall be $750.00.

d. The fee paid by each industrial user when an accidental discharge or slug load occurs shall be the total of all costs incurred by the WRA as a result of said discharge or load. Said fee may be charged by the WRA separately from and in addition to a civil penalty of up to $1,000.00 charged to the user under section 118-400 of this article related to said discharge or load.

e. The trip charge for sampling or inspecting a user's discharge shall be $50.00 per event. An equipment fee of $50.00 per event shall also apply when using a WRA-owned automatic sampler. When a sampling or inspection event must be rescheduled due to failure of the user's sampling equipment, a sampler seal (used to detect sample tampering) being broken, monitoring facilities not being readily accessible or operational, or any other reason beyond the control of the WRA, a trip charge of $50.00 shall be assessed.

f. Laboratory analysis fees for those analyses performed by the WRA shall be as follows:

LABORATORY ANALYSIS FEES

Test	*Cost / Sample*
BOD	$ 20.00
COD	20.00
Total Organic Carbon (TOC)	20.00
TSS	10.00
pH	5.00
Oil and grease—Total	35.00
Mineral/nonmineral	35.00
Nitrogen, ammonia	15.00
Nitrogen, nitrate	15.00
TKN	30.00

Test	*Cost/ Sample*
Phosphorous, total	25.00
Potassium	12.00
Calcium carbonate equivalent	15.00
Soil analysis, each pollutant	20.00
Phenols	28.00
Cyanide	30.00
Metals:	
Arsenic	20.00
Selenium	20.00
Mercury	25.00
Other metals (per parameter)	15.00
BETX (OA-1)	40.00
VPH (OA-1)	40.00
BETX & VPH (OA-1)	45.00
USEPA Tests:	
608 Organochlorine Pesticides & PCBs	70.00
624 Volatile Organic Compounds	140.00
625 Base/Neutral Organic Compounds and/or	290.00
625 Acid/Organic Compounds	290.00

g. Fees for analysis performed by laboratories other than the WRA laboratory shall be the full cost of each analysis.

h. Fees for rescheduling a scheduled inspection with WRA personnel, with less than 24 hours' notice or if appropriate facility managers are unavailable at the scheduled time of inspection, shall be $100.00 per rescheduled inspection.

i. Fees for copying and mailing documents shall be $1.00 for the initial page and $0.25 for each additional page plus postage. No charges shall be assessed for requests for copies received from individuals or agencies served by the WRA, provided the number of pages requested does not exceed ten.

j. Fees for past due reminders sent each 30 days that a balance remains unpaid shall be $5.00.

k. Prohibitive waste charges for each pollutant discharged in excess of permit or ordinance limits shall be $50.00 per violation for class B permit holders and $100.00 per violation for class A permit holders. Charges shall double if discharges exceed slug threshold values. Payment of fees does not preclude other enforcement action and may not be paid in lieu of compliance with discharge limitations.

l. At the WRA's discretion, administrative cost recovery fees may be assessed separately to a user or added to a user's disposal fee for actions or occurrences subject to division 6 of this article which result in the need for additional labor, equipment, and/or materials from the WRA or its contractors, including but not limited to cleanup of spills, infrastructure maintenance, improper scale transactions, improper disposal, and waste source verification. Fees shall be assessed based on the actual costs incurred by the WRA, or on the estimated costs incurred by the WRA rounded down to the nearest multiple of 20 based on actual rates for labor, materials, and equipment with a minimum fee of not less than $20.00. Fees under this section (l) will be charged in addition to charges, fines, fees, or other costs associated with rejected, unapproved, or atypical wastes under sections 118-458 and 118-459 of this chapter.

(2) All users contributing wastewater in excess of the following concentrations shall be assessed a surcharge, which shall be in addition to the rates and charges ordinarily billed to such users for sewer use. Commencing October 1, 2022 until June 30, 2025, surcharges shall be assessed in accordance with the following rate schedule:

	Surcharge per Pound of Pollutant for the Period:		
Pollutant	*10/1/ 2022 — 6/30/ 2023*	*7/1/ 2023 — 6/30/ 2024*	*7/1/ 2024 — 6/30/ 2025*
Total suspended solids in excess of 250 mg/l	$ 0.18	$ 0.20	$ 0.22

Pollutant	*Surcharge per Pound of Pollutant for the Period:*		
	10/1/2022 — 6/30/2023	*7/1/2023 — 6/30/2024*	*7/1/2024 — 6/30/2025*
BOD or CBOD in excess of 200 mg/l	0.14	0.17	0.21
TKN in excess of 30 mg/l	0.55	0.49	0.42
Oil and grease in excess of 100 mg/l	0.08	0.10	0.11

Commencing on July 1, 2025, surcharge rates listed in the above table shall be annually adjusted as of July 1 of each year to increase two percent per annum rounded to the nearest whole cent.

Chemical oxygen demand (COD) in excess of 300 mg/l may be used at the discretion of the WRA director in lieu of CBOD. In such case the excess COD concentration shall be multiplied by the known CBOD/COD ratio or by a ratio of two-thirds to establish an equivalent CBOD concentration.

Ammonia nitrogen (NH3-N) in excess of 15 mg/l may be used at the discretion of the WRA director in lieu of TKN by multiplying the excess NH3-N concentration times two to establish an equivalent TKN concentration.

(3) The establishment and imposition of new or different fees or charges, in addition to or in substitution for those provided above in this section, shall be by ordinance amending this chapter. The amounts of the fees and charges established in this section shall be and remain in effect until such time as the WRA board shall by resolution revise said fee amounts. Said revised fees and charges shall take effect after the board causes said resolution to be sent to this city council and thereafter causes same to be published in a newspaper of general circulation in each county in which participating communities are located.

(O.14,549, 15,730, 16,159)

Secs. 118-353—118-365. Reserved.

DIVISION 3. INDUSTRIAL WASTEWATER DISCHARGE PERMITS AND REPORTING REQUIREMENTS

Sec. 118-366. Classes of permits.

Discharge permit classifications shall be as follows:

(1) Class A permit issued to a user discharging 25,000 gallons per day or more of process wastewater (excludes sanitary, non-contact cooling, and boiler blowdown).

(2) Class B permit issued to a user discharging less than 25,000 gallons per day of process wastewater.

(O.14,549)

Sec. 118-367. Permit requirements.

(a) All new industrial users shall notify the WRA director of the nature and characteristics of their proposed discharge 180 days prior to commencing discharge. A notification form prescribed by the WRA shall be used for this purpose

(b) Significant users shall discharge wastewater, either directly or indirectly, into the POTW only after obtaining a wastewater discharge permit from the WRA director. Obtaining a wastewater discharge permit does not relieve a user of the obligation to obtain other permits required by federal, state, or local law.

(c) Other users, including waste haulers, shall obtain permits as required by the WRA director. (O.14,549)

Sec. 118-368. Permit applications; baseline monitoring reports; compliance schedules.

Users applying for a wastewater discharge permit or categorical users submitting a baseline

monitoring report shall submit the following information as required by 40 CFR 403.12 or by the WRA director:

(1) Users applying for a wastewater discharge permit must submit an application form prescribed by the WRA and accompanied by the application fee. All new significant users must submit such application 180 days prior to the date of any wastewater discharge.

(2) Existing users subject to new National Categorical Pretreatment Standards must, within 180 days after the effective date of the standard, submit a baseline monitoring report prescribed by the WRA. New users subject to National Categorical Pretreatment Standards must submit a baseline monitoring report prescribed by the WRA at least 90 days prior to commencement of discharge to the POTW. A baseline monitoring report shall include:

a. Name, address, and location of the facility, if different from the mailing address.

b. Name of the operator and owners of the facility.

c. A list of all environmental control permits held by or for the facility.

d. A description of the operations including the average rate of production, applicable Standard Industrial Classification (SIC) codes, schematic process diagrams, and points of discharge to the POTW from regulated processes.

e. Daily average and daily maximum flow measurements for regulated process waste streams and nonregulated waste streams where necessary.

f. The categorical user shall identify the pretreatment standards applicable to each regulated process and shall submit the results of sampling and analysis identifying the nature and concentration (or mass, where required) of pollutants contained therein which are limited by the applicable pretreatment standards from each regulated process.

g. The user shall take a minimum of one representative sample immediately downstream of any pretreatment facility or immediately downstream of each regulated process if no pretreatment exists and prior to mixing with other waste to compile that data necessary to comply with this requirement. If non-regulated wastewater is mixed with regulated wastewater prior to pretreatment, the user must measure the flows and concentrations necessary to allow use of the combined waste stream formula of 40 CFR 403.6(e) in order to evaluate compliance with pretreatment standards. Where an alternate concentration or mass limit has been calculated in accordance with 40 CFR 403.6(e), this adjusted limit along with supporting data shall be submitted to the WRA director. Sampling and analysis shall be performed in accordance with 40 CFR 136 or other verified method approved by the WRA director.

h. The time, date, and place of sampling, methods of analysis, and certification that such sampling and analysis is representative of normal work cycles and expected pollutant discharges to the POTW.

i. Historical data may be allowed by the WRA director so long as the data provides information sufficient to determine the need for industrial pretreatment measures.

j. Certification by an authorized representative of the user as referenced in section 118-378 and certified to by a qualified professional indicating whether pretreatment standards are being met on a consistent basis and, if not, whether

additional operation and maintenance or additional pretreatment is required for the user to meet pretreatment standards and requirements.

k. If additional pretreatment or O&M will be required to meet pretreatment standards, requirements, discharge limits as set forth in section 118-342, 118-343, 118-344 of this article, or any other limit set by the WRA director, the user shall supply a compliance schedule indicating the shortest time schedule necessary to accomplish installation or adoption of such additional pretreatment or O&M. The completion date in this schedule shall not be later than the compliance date established for the applicable pretreatment standard. The following conditions apply to this schedule:

i. The schedule shall contain increments of progress in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the user to meet the applicable pretreatment standards. Such schedule shall include, where applicable, but shall not be limited to dates for the hiring of an engineer, completing preliminary plans, executing contracts for major components, commencing construction, beginning operation, and conducting routine operations.

ii. No increment referred to in subsection (2)k.i. of this section shall exceed nine months, nor shall the total compliance period exceed 18 months.

iii. No later than 14 days following each date in the schedule and the final date for compliance, the user shall submit a progress report to the WRA director, including, at a minimum, whether or not it complied with the increment of progress, the reason for any delay, and the steps being taken by the user to return to the established schedule. In no event shall more than nine months elapse between such progress reports to the WRA director.

l. A minimum of four grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide, and volatile organic compounds. For all other pollutants required, 24-hour composite samples must be obtained through flow-proportional composite sampling techniques where feasible. The WRA director may waive flow-proportional composite sampling for any user who demonstrates that flow-proportional sampling is not feasible. In such cases, samples may be obtained through time-proportional techniques or through a minimum of four grab samples where the user demonstrates that such sampling will provide a representative sample of the effluent being discharged.

(3) New significant users not subject to categorical standards shall submit analysis of wastewater representative of the effluent discharged to the POTW as required in subsections (2)g.—i. of this section for all parameters deemed necessary by the WRA director.

(4) New or existing industrial users not subject to categorical pretreatment standards who fail to meet local, state, or federal pretreatment standards or other permit requirements on a consistent basis shall be subject to compliance schedules for additional pretreatment or O&M as outlined in subsection (2)k. of this section.

(5) All applications and reports must contain the certification statement and be signed in accordance with section 118-378 of this division.

(O.14,549, 16,159)

Sec. 118-369. Report on compliance by categorical users.

Users subject to National Categorical Pretreatment Standards shall submit a report to the WRA director containing the information described in section 118-368(2) within 90 days following the date for final compliance with applicable National Categorical Pretreatment Standards or, if a new source, following commencement of discharge. Users subject to equivalent mass or concentration limits shall provide a reasonable measure of the user's longterm production rate. For all other users subject to National Categorical Pretreatment Standards expressed in terms of allowable pollutant discharge per unit of production or other measure of operation, this report shall include the user's actual production during the appropriate sampling period. All reports must contain the certification statement and be signed in accordance with section 118-378 of this division.

(O.14,549, 15,730, 16,159)

Sec. 118-370. Permit contents.

Wastewater discharge permits shall include such conditions as are reasonably deemed necessary by the WRA director to prevent pass through or interference; protect the quality of the water body receiving effluent from the POTW; protect worker health and safety; facilitate the WRA's sludge management and disposal program; and protect against damage to the POTW. The WRA director may include the following items in the permit, and such additional items as the director determines necessary or prudent:

(1) Limits on the average or maximum rate of discharge, time of discharge, or requirements for flow regulation and equalization.

(2) Limits on the average or maximum concentration, mass, or other measure of identified wastewater constituents or properties.

(3) Requirements for the installation of pretreatment technology or construction of appropriate containment devices, etc., designed to reduce, eliminate, or prevent the introduction of pollutants into the POTW.

(4) Development and implementation of spill control plans or other special conditions including additional management practices necessary to adequately prevent accidental, unanticipated, or prohibited discharges.

(5) The unit charge or schedule of user charges and fees for the management of the wastewater discharged to the POTW.

(6) Requirements for installation and maintenance of inspection, sampling, and flow monitoring facilities and equipment for each separate discharge into the POTW.

(7) Specifications for monitoring programs which may include sampling locations, frequency of sampling, number, types, and standards for tests, and reporting schedules.

(8) Compliance schedules.

(9) Requirements for submission of technical reports or discharge reports and which may include production data.

(10) Requirements for maintaining and retaining plant records relating to wastewater discharge as specified by the WRA director and affording the director or the director's representatives access thereto.

(11) Requirements for the notification of any substantial change in the manufacturing processes, pretreatment processes, quantity or quality of waste discharged to the POTW 90 days prior to such change. The WRA director shall approve, deny or condition a changed discharge prior to a change occurring in accordance with subsection 118-341(a)(4) of this article.

(12) Requirements for notification of excessive, accidental, or slug discharges.

(13) Other conditions as deemed appropriate by the WRA director to ensure compliance with this article, and state and federal laws, rules, and regulations.

(14) A statement that compliance with the permit does not relieve the permittee of responsibility for compliance with all applicable federal pretreatment standards, including those which become effective during the term of the permit.

(O.14,549, 16,159)

Sec. 118-371. Permit duration and renewal.

Permits required under this division shall be issued for a specified time period, not to exceed five years. Permit fees shall be due annually to the WRA regardless of the term of the permit. Permitted users shall apply for a new permit by submitting a completed permit application a minimum of 90 days prior to the expiration of the user's existing permit.
(O.14,549)

Sec. 118-372. Continuation of expired permits.

Expired permits issued pursuant to this division shall remain effective and enforceable until the permit is reissued unless the user is notified of permit termination by the WRA director.
(O.14,549)

Sec. 118-373. Permit modifications.

(a) The WRA director may modify the permit issued pursuant to this division for good cause, including but not limited to the following:

(1) To incorporate any new or revised federal, state, or local pretreatment standard or requirement. After becoming aware of more stringent standards or requirements, the WRA will, as necessary, update permits within 90 days;

(2) To make material or substantial alterations or additions to the discharger's operation processes, or discharge volume or character which were not considered in drafting the effective permit;

(3) To make a change in any condition in either the industrial user or the POTW that requires either a temporary or permanent reduction or elimination of the authorized discharge;

(4) Upon receipt of information indicating that the permitted discharge poses a threat to the POTW, to the city, the WRA or operating contractor personnel, or to the receiving water;

(5) Upon occurrence of a violation of any terms or conditions of the permit;

(6) Misrepresentation of, or grant of variance from, such categorical standards pursuant to 40 CFR 403.13;

(7) To correct typographical or other errors in the permit;

(8) To reflect transfer of ownership or operation of the permitted facility to a new owner or operator; or

(9) Upon request of the permittee, provided such request does not create a violation of any applicable requirements, standards, laws, or rules and regulations.

(b) The filing of a request by the permittee for permit modification, revocation and reissuance, termination, or a notification of planned changes or anticipated noncompliance shall not have the effect of staying or delaying the implementation or effective date of any permit condition.
(O.14,549)

Sec. 118-374. Permit transfer.

An industrial wastewater discharge permit is not transferable to any other person or entity. A new owner or operator must apply for a new wastewater discharge permit 60 days prior to taking ownership or undertaking operation of a permitted facility.
(O.14,549)

Sec. 118-375. Denial of permit.

The WRA director may deny a wastewater discharge permit to any user whose discharge of material to the POTW, whether shown upon application, including test results submitted by

the applicant, or determined after inspection or testing conducted by the WRA or its operating contractor, is not in conformity with this article or whose application is incomplete or does not comply with the requirements of section 118-368 of this division.
(O.14,549)

Sec. 118-376. Permit violations.

Any violation of the terms, conditions, or limits of a user's wastewater discharge permit shall be deemed a violation of this article and shall subject the user to all enforcement procedures outlined in this article.
(O.14,549)

Sec. 118-377. Periodic compliance reports.

Under this division, periodic compliance reports are required as follows:

(1) Significant users shall submit to the WRA director, during the months of January and July, a report indicating the nature, concentration, and flow of pollutants in the effluent which are limited by permit or pretreatment standards for the preceding six-month period. This report shall include a record of the monthly average flows and the daily flow for each analysis date during the reporting period. At the discretion of the WRA director and in consideration of such factors as local high or low flow rates, holidays, budget cycles, etc., the WRA director may agree to alter the months during which the reports are to be submitted. More frequent reports may be required by the WRA director.

(2) The WRA director may impose mass limitations on users. In such cases, the report required by subsection (1) of this section shall indicate the mass of pollutants regulated by pretreatment standards in the effluent of the user. All analyses shall be performed using Environmental Protection Agency approved methods using sampling techniques approved by the Iowa Department of Natural Resources.

(3) Users shall meet the certification and signatory requirements in section 118-378 of this division for each report submitted under this section. Where the WRA itself collects all the information required for the report, including flow data, the industrial user will not be required to submit a periodic compliance report.

(4) A user must notify the WRA director of all violations identified as a result of self-monitoring to the POTW by telephone, during normal business hours, within 24 hours of the time the user becomes aware of such violation. The user must also submit the results of repeat analyses to the WRA within 30 days after becoming aware of the violation, together with a complete report on all steps taken to resolve the violation. The user need not repeat the analyses if:

a. The WRA performs sampling of the industrial user at a frequency of at least once per month; or

b. The WRA performs sampling of the user between the time when the user performs its initial sampling and the time when the user receives the results of this sampling.

(5) A user who monitors any pollutant more frequently than required by the WRA or who self-monitors in addition to WRA monitoring, using Environmental Protection Agency methods or standard methods, shall report the monitoring results to the WRA director in accordance with subsections (1), (3) and (4) of this section.
(O.14,549)

Sec. 118-378. Certification and signatory requirements.

(a) All applications or reports submitted by a user pursuant to this division shall contain the following certification statement:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate

the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

(b) All applications and reports shall be signed by an authorized representative of the user as defined in section 118-316 of this article. A user shall maintain a current and accurate authorization on file with the WRA director.
(O.14,549)

Sec. 118-379. Monitoring facilities.

(a) When required by the WRA director pursuant to this division, each permitted user shall at its expense provide and operate monitoring facilities to allow inspection, sampling, and flow measurement of the building sewer or internal drainage systems. The WRA director may require the placement of such monitoring facilities at the end of each process where pollutants are used, produced, or treated. The monitoring facility should normally be situated on the user's premises and located so that it will not be obstructed by landscaping or parked vehicles.

(b) When required by the wastewater discharge permit and within 90 days of written notification, a user shall install a sampling chamber for each separate discharge of the building sewer in accordance with plans and specification approved by the WRA director. A user shall provide ample room in or near such sampling chamber to allow accurate sampling and preparation of samples for analysis. Each user shall at its expense maintain all sampling and measuring equipment in a safe and proper operating condition at all times, which equipment shall be safely, easily and independently accessible to authorized representatives of the WRA. Users shall certify all flow measuring devices to be in proper working condition at a frequency specified in the permit or in writing by the WRA director, using a qualified technician acceptable to the WRA director. Sampling shall be in accordance with the following:

(1) Each sampling chamber shall contain a flume unless another device is approved by the WRA director, with a recording and totalizing device for measurement of the liquid quantity.

(2) At the discretion of the WRA director, metered water supply to a user may be used as the volume quantity where it is substantiated that the metered water supply and waste quantities are approximately the same, or where a measurable adjustment agreed to by the director is made in the metered water supply to determine the liquid waste quantity. Separate meters may be used to subtract water which is not discharged to the POTW or is discharged to a sewer other than the sampled location.

(3) Samples shall be taken at a frequency and volume determined by the WRA director and shall be properly refrigerated and preserved in accordance with Environmental Protection Agency approved methods. The sample shall be composited in proportion to the flow for a representative 24-hour sample. A time proportioned 24-hour sample may be used if flow proportioned sampling is determined by the WRA director to be impractical. Grab samples shall be used where appropriate.

(c) A user must inform the WRA director prior to breaking a sampler seal, used by the WRA to detect sample tampering, unless necessary to prevent loss of life, personal injury, or severe property damage. A user shall not place additional seals or locks upon a sampler which may be used by the WRA without first obtaining approval from the WRA director.
(O.14,549)

Sec. 118-380. Inspection, sampling and recordkeeping authority.

Under this division, users shall be deemed to have given the following authorities to the WRA and its operating contractor:

(1) Users shall permit authorized representatives or agents of the WRA to enter upon all properties and all parts of the premises, or upon properties of users with wastewater discharge permits, for the purposes of inspection, sampling, records examination, records copying, or the performance of any of their duties. This shall include the right to set up, on the user's property, such devices as are necessary to conduct sampling, inspection, compliance monitoring, or metering operations as may be required in pursuance of the implementation and enforcement of this article.

(2) Where a user has security measures in force which would require proper identification and clearance before entry into the premises, the user shall make necessary arrangements in the security measures so that, upon presentation of suitable identification, WRA or operating contractor personnel will be permitted to enter, without delay, for the purposes of performing their specific responsibilities.

(3) All users subject to any of the reporting requirements of this article shall maintain copies of reports and records of all information as required in 40 CFR 403.12(o) resulting from any monitoring activities required by this article for a minimum of three years and shall make such records available for inspection and copying by the WRA and its operating contractor. This period of retention shall be extended until the completion of any unresolved negotiation, hearing, or litigation involving a purported violation.

(O.14,549, 15,730)

Sec. 118-381. Confidential documents, data and information.

(a) Except as provided in this section, documents, data and information obtained from user reports, questionnaires, permit applications and inspections pursuant to this division shall be made available to the public or other governmental agencies without restriction. If the user specifically requests and is able to demonstrate that the release of such information would divulge information concerning processes or methods of production entitled to protection under law as trade secrets of the user or would give advantage to competitors and serve no public purpose, the WRA director may determine that such information should be kept confidential and not made available for public examination, but such information shall be available to the U.S. Environmental Protection Agency or the Iowa Department of Natural Resources.

(b) Decisions by the WRA director to deny confidential status for information may be appealed using the procedures in section 118-382 of this division. In determining whether information is confidential, the provisions of I.C. ch. 22 shall prevail.

(c) Effluent data and enforcement actions by the WRA or its operating contractor will not be considered confidential records or information. (O.14,549)

Sec. 118-382. Appeal of denial of confidential status.

(a) Any person aggrieved by the WRA director's decision to release information or data obtained as provided in subsection 118-381(a) of this division and who can demonstrate a direct and substantial interest in the information or data sought to be kept confidential may appeal the WRA director's decision. A request for appeal shall be filed in writing with the WRA director not less than five days after the WRA director's decision to deny confidential status to such information or data. The appeal request shall include a statement of the basis upon which the request for confidential status is made, as well as the appealing party's interest in the information or data sought to be kept confidential. The WRA director may request additional information from the appealing party.

(b) Based upon the information provided by the appealing party, the WRA director shall make a determination with respect to the

confidentiality of the information or data at issue. The WRA director shall notify the parties, in writing, of the WRA director's decision within 7 days after receipt of the appeal.

(c) If still aggrieved by the WRA director's determination on appeal, a party may file an action in Polk County district court, seeking a declaratory ruling with respect to the confidentiality of such documents, data and information, or seeking an injunction to prevent the disclosure of same.

(d) During the pendency of an appeal to the WRA director, the documents, data or information at issue shall be kept confidential. However, if during the pendency of such appeal, a request for examination or copying of such documents, data or information is made of the WRA or its operating contractor pursuant to I.C. ch. 22, the WRA or its operating contractor will notify the appealing party of such request for disclosure and will keep confidential the requested documents, data or information, pending action by the appealing party to defend its confidentiality request. In that notification, the appealing party requesting confidentiality will be given not more than 5 calendar days within which to file suit in Polk County district court seeking the entry of a declaratory order and/or injunction to protect and keep confidential such documents, data or information. If the appealing party fails to initiate suit within the time requested, the WRA director shall release the documents, data or information at issue for public examination.

(e) If during the pendency of such appeal, a lawsuit is initiated pursuant to I.C. ch. 22 seeking the release of such documents, data or information, the appealing party shall take action to defend its confidentiality request in said lawsuit. If the appealing party fails to defend its confidentiality request in said suit, the WRA director shall release the documents, data or information at issue for public examination.
(O.14,549)

Secs. 118-383—118-395. Reserved.

DIVISION 4. ENFORCEMENT OF INDUSTRIAL WASTEWATER REGULATIONS

Sec. 118-396. Public notification of significant noncompliance.

The WRA will annually publish, in the largest daily newspaper published in the WRA community, a list of users who at any time during the previous 12 months were in significant noncompliance as defined in section 118-397 of this division.
(O.14,549)

Sec. 118-397. Significant noncompliance.

(a) Any violation of pretreatment requirements under this article (i.e. including but not limited to those relating to limits, sampling, analysis, reporting, meeting compliance schedules, and regulatory deadlines) is an instance of noncompliance for which the user is liable for enforcement, including penalties and injunctive relief. Instances of significant noncompliance are user violations which meet one or more of the following criteria:

(1) Violations of wastewater discharge limits as follows:

a. Chronic violations. Sixty-six percent or more of the measurements exceed the same daily maximum limit or the same average limit in a six-month period (any magnitude of exceedance).

b. Technical review criteria (TRC) violations. Thirty-three percent or more of the measurements exceed the same daily maximum limit or the same average limit by more than the TRC in a six-month period. (e.g., limit x TRC = the point at which a violation becomes a TRC violation). There are two groups of TRCs as follow:

Group I for conventional pollutants (BOD, TSS, FOG)	TRC = 1.4

Group II for all other pollutants	TRC = 1.2

c. Any other violation of a wastewater discharge permit limit (average or daily maximum) that the WRA director believes has caused, alone or in combination with other discharges, interference, including slug loads, or pass through or which endangers the health of city, WRA or operating contractor personnel or the public.

d. Any discharge of a pollutant that has caused imminent endangerment to human health/welfare or to the environment and has resulted in the WRA's exercise of its emergency authority to halt or prevent such a discharge.

(2) Violations of compliance schedule milestones, contained in a wastewater discharge permit or enforcement order, for starting construction, completing construction, or attaining final compliance by 90 days or more after the schedule date.

(3) Failure to provide reports for compliance schedules, self-monitoring data, or any other report required by the WRA within 45 days from the due date.

(4) Failure to accurately report noncompliance.

(5) Any other violation or group of violations, which may include a violation of Best Management Practices, that the WRA director considers to be significant.

(b) When a user is in significant noncompliance, the WRA director is directed to:

(1) Report the information to the Iowa Department of Natural Resources as part of the annual pretreatment performance summary of permitted user noncompliance.

(2) Include the user in the annual public notification according to section 118-396 of this division.

(3) Address significant noncompliance through appropriate enforcement actions or document in a timely manner the reasons for withholding enforcement.

(O.14,549)

Sec. 118-398. Administrative actions.

(a) The WRA director may issue a written notice to the user giving the specific nature of violations which shall include the frequency, magnitude and impact of the violation upon the POTW. The notice may also include the following:

(1) An order requiring a plan of action for preventing reoccurrence of the violation.

(2) An order requiring specific action for accomplishing remediation.

(3) An order requiring the user to respond in writing within 30 days.

(b) The WRA director is empowered to enter into consent orders, assurances of voluntary compliance, or other similar documents establishing an agreement with the user responsible for any noncompliance. Such orders will include specific action to be taken by the user to correct noncompliance within a time period specified by the order.

(c) The WRA director may issue enforceable orders or schedules to require compliance with pretreatment standards including appropriate interim limits. Such orders and schedules may be incorporated as a revision to an existing wastewater discharge permit and shall not require the consent of the user.

(O.14,549)

Sec. 118-399. Actions authorized.

(a) Where there has been noncompliance with any section of this article, the WRA director may request the WRA operating contractor's attorney, or the attorney retained by the WRA for that purpose, to bring an action in equity or at law to seek the issuance of a preliminary or permanent injunction, or both, or such other relief as may be appropriate, to compel the user's compliance with this article.

(b) In addition to other remedies provided under this section or other sections of this article, in any action brought at the request of the WRA director to enforce this article, the WRA operating contractor's attorney or the attorney retained by the WRA is authorized to seek to recover all actual damages suffered by the city or the WRA, including all actual damages and losses related to costs of repair and remediation of the POTW, costs of investigation and administration reasonably related to any particular violation and attorneys' fees.
(O.14,549)

Sec. 118-400. Civil penalties.

(a) Each violation of any section of this article or of a permit issued under this article is declared to be a municipal infraction. Each day that a violation of a section of this article continues, and each day that a violation of a permit issued under this article continues, shall be considered a separate municipal infraction.

(b) Any person who knowingly makes a false statement, representation or certification in any application, record, report, plan or other document filed or required to be maintained pursuant to this article or a wastewater discharge permit, or who falsifies, tampers with or knowingly renders inaccurate any monitoring device or method required under this article, commits a municipal infraction punishable by a civil penalty as hereafter provided by section 1-15 of this Code.

(c) Any person who fails to perform an act required by the provisions of this article, or who commits an act prohibited by the provisions of this article, commits an environmental violation and shall be guilty of a municipal infraction, punishable by a civil penalty as provided by section 1-15 of this Code. Violation of a pretreatment standard or requirement referred to in 40 CFR 403.8 is an environmental violation punishable by a civil penalty as provided by section 1-15 of this Code.
(O.14,549)

Sec. 118-401. Performance and payment bonds.

(a) The WRA director may decline to reissue a permit to any user who has failed to comply with this article or any order or previous permit issued under this article unless such user first files a satisfactory bond payable to the WRA in a sum not to exceed the value determined by the WRA director to be necessary to achieve compliance giving due consideration to the number and magnitude of previous violations, potential need for remediation and stating the reasons which support the amount of bond in a written order directed to the user, but in no case shall the bond be required to be greater than $100,000.00. The user shall use a bond form prescribed by the WRA.

(b) The WRA director may require any user, including any permitted or non-permitted waste generator which sends its wastewater by truck to the WRF, to obtain a bond payable to the WRA with reasonable surety in a penal sum which will adequately cover treatment costs, surcharges, fees, or any other charges associated with discharge of wastewater to the POTW in the amount as listed in section 118-452. The user shall use a bond form prescribed by the WRA.
(O.14,549, 15,730, 16,159)

Sec. 118-402. Revocation of discharge permit; termination of sewer service.

(a) *Grounds for revocation of discharge permit and/or for termination of sewer service.* Any user who violates this article, any condition of its wastewater discharge permit, or any of the following is subject to having its discharge permit revoked and/or its sewer service terminated in accordance with the procedures of this section:

(1) Failure to accurately report the wastewater constituents and characteristics of its discharge.

(2) Failure of the user to report substantial changes in process activity or in volume or character of pollutants being discharged into the POTW at least 90 days prior to such change.

(3) Tampering with monitoring equipment.

(4) Refusal to allow reasonable access by WRA or operating contractor personnel to the user's premises for the purpose of inspection, monitoring, or sampling.

(5) Violation of permit conditions.

(6) Failure to report an upset, failure, or bypass of the user's pretreatment facilities.

(7) Failure to pay fines, fees, surcharges, or sewer service charges.

(8) Failure to follow enforcement orders or compliance schedules.

(9) Failure to correct a condition that impedes or alters the WRA's ability to monitor the user's discharge or has the potential to cause interference or pass through.

(10) Failure to obtain a wastewater discharge permit as required by this article after notification by the WRA director that such permit is required.

(11) Failure to pay actual costs for negligent damage, or actual costs and penalties charged for grossly negligent or intentional damage, to the POTW not addressed elsewhere in this article.

(b) *Procedure for revocation of discharge permit and for termination of sewer service.* The procedure for revocation of a discharge permit and termination of sewer service shall be as follows:

(1) Any permit issued to a user pursuant to this article may be revoked, and sewer service terminated, by written order of the WRA director, specifying the grounds for such revocation and termination as outlined in subsection (a) of this section, which order shall not take effect until hearing thereon as hereafter provided. Upon determining that grounds exist for an order to revoke a user's discharge permit and terminate sewer service, the WRA director shall cause a notice of hearing to be prepared, specifying the violations of subsection (a) of this section which are deemed to have occurred, and the time, date and place that such hearing will be held. The notice shall be sent to the user by regular mail addressed to the user's address listed on the wastewater discharge permit a minimum of ten days prior to the date set for hearing, and shall be deemed delivered when placed in the mail.

(2) Sewer service may be terminated by written order of the WRA director, specifying the grounds for such revocation and termination as outlined in subsection (a)(10) of this section, which order shall not take effect until hearing thereon as hereafter provided. Upon determining that grounds exist for an order to terminate sewer service, the WRA director shall cause a notice of hearing to be prepared, specifying the violation of subsection (a)(10) of this section which is deemed to have occurred, and the time, date and place that such hearing will be held. The notice shall be sent to the user by regular mail addressed to the user's address a minimum of ten days prior to the date set for hearing, and shall be deemed delivered when placed in the mail.

(3) If after such a hearing the WRA director makes a finding based on substantial evidence that violations under subsection (a) of this section have occurred as alleged, the director may issue an order immediately revoking the permit, if a permit had previously been issued, and terminating sewer service to the user's premises. The determination to revoke such permit and terminate service, shall be in the discretion of WRA director and shall be dependent upon the circumstances surrounding the user's violations of subsection (a) of this section and the severity of those violations. If the user does not appear for the hearing, the WRA director shall issue the order revoking the discharge permit and/or terminating sewer service, which shall take effect immediately.

(4) The decision and order of the WRA director to revoke the permit of a user may be appealed to the WRA appeal committee. Such appeal request shall be in writing, shall include the grounds for appeal including any factual findings which are

disputed, and shall be delivered to WRA not less than ten days after the director's entry of the order of revocation of permit and/or termination of sewer service. Such appeal request shall be considered delivered when placed in the mail, return receipt requested, addressed to:

WRA Appeal Committee
%Des Moines Metropolitan Wastewater Reclamation Authority
3000 Vandalia Road
Des Moines, Iowa 50317

The chair of the appeal committee shall schedule the appeal and shall cause notice of the time, date and place of the hearing to be mailed to the appealing user. Such appeal shall be decided by majority vote of the appeal committee. If the appeal committee affirms the order of the WRA director revoking the permit and/or terminating sewer service, the appeal committee shall so state and order in its written decision.

(5) A user whose permit has been revoked shall not be eligible for another permit until 30 days after the violating conditions have been corrected to the satisfaction of the WRA director.

(6) Upon determination by the WRA director that the user's sewer service connection to the POTW be terminated, the director's written order shall be sent to the city public works department who shall cause the user's connection to the sewer to be severed or plugged. The manner of severance and procedure for disconnection shall be determined by the city public works department. Upon completion of the disconnection, the city public works department shall certify to the WRA director the city's cost to disconnect the user's sewer service. Upon receipt of such certification of costs, the WRA director shall forward to the user whose service was disconnected by registered mail return receipt requested, certified mail, or personal service a bill for the cost of making the disconnection, including all costs for labor and materials, and a service charge of $500.00 for WRA supervision.

(7) Any building at which sewer service is disconnected as herein provided shall be inspected by the city building official and if appropriate shall be red-tagged as unfit for human occupancy.

(O.14,549, 15,730, 16,159)

Sec. 118-403. Reserved.

Sec. 118-404. Reinstatement of service.

If service is severed pursuant to this division, the service may be reinstated in the following manner:

(1) Upon payment to the WRA of any delinquency in full, supervision fee of $500.00, and an inspection by the WRA director to determine whether the original cause for termination has been corrected, the WRA will issue a permit for reconnection of the building service line to the POTW. Such reconnection costs, plus inspection fees for the city in accordance with this Code, shall be at the sole expense of the user.

(2) Upon reconnection and payment of all costs described in subsection (1) of this section, the city, through its agents, shall remove the red tag from the building, and the building shall, so far as the city is concerned, be fit for human occupancy.

(O.14,549, 16,159)

Sec. 118-405. Emergency disconnection of service.

(a) *Conditions for immediate disconnection of service.* The WRA director may, after informal notice, suspend the wastewater discharge permit of, and sewer service to, a user whenever such suspension is necessary in order to stop an actual or threatened discharge presenting or causing an imminent or substantial endangerment to the health or welfare of persons, the POTW, or the environment.

(b) *Procedure for immediate disconnection.* The procedure for immediate disconnection shall be as follows:

(1) When the WRA director determines that a discharge as described in subsection (a) of this section exists, an oral order shall be issued, followed immediately by a written order, to the user stating the problem and requiring immediate cessation of the discharge. A user orally notified of a suspension of its wastewater permit or sewer service shall immediately stop or eliminate all discharges. If a user fails to immediately and voluntarily comply with the suspension order, the WRA director shall take immediate action to eliminate the discharge, including disconnection from the POTW. Methods of informal notice to a user shall include but not be limited to any of the following: personal conversations between user and personnel or the WRA or its operating contractor, telephone calls, letters, hand-delivered messages or notices posted at the user's premises or point of discharge.

(2) A user responsible, in whole or in part, for imminent endangerment shall submit to the WRA director, prior to the hearing described in subsection 118-402(b) of this division, a detailed written report describing the causes of the endangerment and the measures taken to prevent any future occurrence.

(O.14,549)

Sec. 118-406. Elimination of discharge; reinstatement of permit.

A user notified by the WRA director of revocation of its discharge permit and/or disconnection of its sewer service under section 118-402 or 118-405 of this division shall immediately cease discharging wastewater to the POTW. If the user fails to comply voluntarily with the revocation and/or disconnection order, the city shall take such steps as are deemed necessary by the WRA, including immediate severance of the sewer connection. The WRA director shall reinstate the wastewater discharge permit or the sewer service upon proof of the elimination of the non-complying discharge.
(O.14,549)

Sec. 118-407. Additional remedies.

(a) In addition to remedies available to the WRA set forth elsewhere in this article, if the WRA is fined by the Iowa Department of Natural Resources or the U.S. Environmental Protection Agency for violations of the National Pollutant Discharge Elimination System permit for the WRF, or for violations of water quality standards as the result of a discharge of pollutants by an identifiable user, the fine, and all legal, sampling, analytical testing costs and any other related costs, shall be charged to the responsible user. Such charge shall be in addition to any other remedies the WRA may have under this article at law or in equity.

(b) If the discharge from any user results in a deposit, obstruction, damage or other impairment to the POTW, the user shall become liable to the city and/or the WRA for any expense, loss, or damage caused by the violations or discharge. The WRA may add to the user's charges and fees the costs incurred by the WRA and by the city for any cleaning, repair, or replacement work caused by the violations or discharge.

(c) The remedies provided in this article shall not be exclusive, and the WRA may seek whatever other remedies are authorized by statute, at law or in equity against any persons violating this article.

(d) In addition to any other remedies provided in this article, the city and/or the WRA may initiate an action, either in law or in equity, to obtain an injunction against further violations of this article and for judgment for all costs incurred by the city and/or the WRA occasioned by the user's violation of any requirements of this article.
(O.14,549)

Sec. 118-408. Notices to the WRA, the WRA board, the WRA director or the WRA steering committee.

Notices which are required to be given or which may be given to the WRA, the WRA board,

the WRA director or the WRA appeal committee, as provided in this article, shall be mailed to such entity, body or person at the following address:

Des Moines Metropolitan Wastewater Reclamation Authority
Des Moines Wastewater Reclamation Facility
3000 Vandalia Road
Des Moines, Iowa 50317
(O.14,549, 15,730)

Secs. 118-409—118-420. Reserved.

DIVISION 5. REGULATION OF FAT, OIL AND GREASE DISCHARGE BY FOOD SERVICE ESTABLISHMENTS

Sec. 118-421. Purpose.

The purpose of this section shall be to aid in the prevention of sanitary sewer blockages and obstructions from contribution and accumulation of fat, oil, and grease (FOG) into the POTW. Such discharges from commercial kitchens, restaurants, food processing facilities and all other establishments, where fat, oil, and grease of vegetable or animal origin are discharged directly or indirectly into the POTW, can contribute to line blockages and/or spills in violation of Title 40, Code of Federal Regulations 40 CFR, Part 403.
(O.14,549, 15,730)

Sec. 118-422. Definitions.

The definitions found in section 118-316 shall apply to the provisions of this division, provided however that the following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Best management practices or *BMPs* means and includes schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to prevent or reduce the pollution of waters of the state. For purposes of this division, *best management practices* include procedures and practices that reduce the discharge of FOG to the building sewer, to the city sanitary sewer system and to the POTW.

Design liquid depth means the maximum depth of liquid when the tank is filled with water.

Effective date means the date set forth in section 118-423 upon which the regulatory provisions of this division take effect.

Food service establishment or *FSE* means an operation or enterprise that stores, prepares, packages, serves, vends, or otherwise provides food for human consumption. Such facilities may include, but are not limited to, those that process meat or other food ingredients as an intermediate step or for final human consumption, food service operations in a summer camp, residential substance abuse treatment facility, halfway house, correctional facility, school, restaurant, commercial kitchen, caterer, church, hotel, bars, hospital, prison, care institution or similar facility.

Grease interceptor means a tank that serves one or more fixtures and is remotely located. Grease interceptors include, but are not limited to, tanks that capture wastewater from dishwashers, garbage disposals, floor drains, pot and pan sinks and trenches as allowed by local plumbing codes. For purposes of this division, a grease interceptor is a multi-compartment tank located underground outside of a building that reduces the amount of FOG in wastewater prior to its discharge into the POTW.

Grease trap means a device designed to retain grease from one to a maximum of four fixtures. Not all grease traps are approved by the manufacturer for use on heated water (e.g., dishwasher) or in-line to a waste disposal unit (e.g., garbage disposal and grinders). For purposes of this division, a grease trap is a small device located within a building.

Minimum design capability means the design features of a grease interceptor and its ability or volume required to effectively intercept and retain greases from grease-laden wastewaters discharged to the POTW.

Non-routine inspection means an impromptu, unscheduled inspection of an FSE made without prior notification or arrangement.

Routine inspection means an inspection of an FSE which is scheduled in advance or according to a pre-arranged schedule.

User as used in this division has the same meaning as the definition in section 118-316, but also includes persons who discharge wastewater to the POTW from mobile sources, such as mobile food vendors.
(O.14,549, 14,946, 15,730)

Sec. 118-423. Effective date of FOG regulations.

The provisions of this division shall be effective on and after April 3, 2006.
(O.14,549)

Sec. 118-424. Grease interceptor installation required after effective date.

The owner of a building or facility in which as FSE is located, and the owner or operator of an FSE shall be required to install an approved grease interceptor, and to thereafter operate and maintain same as provided in this division.
(O.14,549, 14,946)

Sec. 118-425. Exemption from grease interceptor installation requirement for existing facilities.

The requirements of section 118-424 shall not apply to that portion of a building or facility within which an FSE is in existence on the effective date if:

(1) The FSE has an existing grease interceptor or grease trap in place as of the effective date and provided that (1) the owner or occupant of the FSE continues to use the interceptor or trap, (2) the interceptor or trap is of sufficient capacity and design, and (3) the interceptor or trap is operated and maintained so as to comply with FOG discharge limits; and

(2) Any repair, remodeling or renovation of the wastewater plumbing system in the existing FSE involves only (1) the repair of leaks or the clearing of stoppages in drains, soil, waste or vent piping, or (2) the removal and reinstallation of a sink, toilet or hot water heater; provided that such work does not involve replacement, rearrangement or moving of wastewater pipes, floor sinks, drainage fixtures or grease traps; and

(3) None of the following conditions are present:

a. A building or facility exists on the effective date and is thereafter expanded or renovated, or a portion thereof, to include an FSE where such FSE did not previously exist; or

b. An FSE exists on the effective date within a building or facility, or portion of a building or facility, and application is thereafter made for a building permit(s) for such building or facility with valuation of $50,000.00 or more within a 12-month period; or

c. A building or facility, or portion thereof, that contained an FSE on the effective date but in which an FSE ceases to operate for one year or more, as determined by Iowa Department of Inspections & Appeals, Food and Consumer Safety Bureau records.

(O.14,549, 14,946, 16,159)

Sec. 118-426. Compliance procedures.

(a) After the effective date, any permitted construction under section 118-424 shall be deemed compliant upon issuance of a certificate of compliance or certificate of occupancy for such construction by the city building official or designee.

(b) An FSE shall be deemed compliant, unless the WRA director or local building official or designee determines that an existing grease trap or grease interceptor is incapable of adequately

retaining FOG. In such cases, the director may order the FSE to install an adequate grease interceptor within a specified time period if:

(1) The FSE is found to contribute FOG in quantities above FOG discharge limits; or

(2) The FSE discharges necessitate increased maintenance on the publicly owned treatment works (POTW) in order to keep stoppages from occurring therein; or

(3) The FSE's discharge to the POTW is at any time determined to exceed 400 mg/l total FOG.

(c) An order directing an existing FSE or the owner or operator of the FSE or the owner of the building or facility in which the FSE is located to install a grease interceptor shall be in writing from the WRA director in the form of a notice of violation including a corrective action order, as provided in section 118-433 of this division.

(d) FSEs or owners of buildings or facilities within which an FSE is located which are unable to install or replace a grease interceptor due to exceptional physical constraints or economic hardship may appeal to the WRA director for approval of an alternative grease control technology by requesting a hearing in accordance with the provisions of this division. Such requests shall be submitted in writing and shall include detailed descriptions of the FSE's physical or financial constraints and the alternative grease control technology which it proposes to install and utilize.

(1) In order to demonstrate exceptional economic hardship, the owner or operator of the FSE shall submit to the WRA director balance sheets and profit and loss statements for FSE for the preceding three years. A new FSE shall submit profit/loss projections or a detailed business plan with projections for 24 months. Each request shall be evaluated on a case-by-case basis.

(2) Notwithstanding approval of alternative grease control technology, when the WRA director determines that such alternative is not performing adequately, the FSE or owner of the building or facility in which the FSE is located shall be required to take additional grease control measures, which may include the installation of a grease interceptor.

(3) In order to demonstrate exceptional physical site constraints preventing the installation of a grease interceptor, the owner or operator of the FSE or owner of the building or facility in which the FSE is located shall submit to the WRA director documentation and plats showing the location of city sanitary sewer and any private easements in relation to the building sewer for the building housing the FSE, and showing available space inside or outside the building and drawings of existing plumbing at or in a site that uses common plumbing for all services at that site.

(4) An FSE that is given an exemption from installing a properly sized grease interceptor is prohibited from installing or using a dishwasher or garbage disposal without approval of the director and must comply with the conditions of such approval, if any.

(O.14,549, 14,946, 16,159)

Sec. 118-427. Installation of grease interceptors and grease traps.

Grease interceptors and grease traps, when required, shall be installed as follows:

(1) Grease interceptors and grease traps shall be installed at the expense of the owner or operator of the FSE or owner of the building or facility in which the FSE is located which is contributing wastewater to the POTW.

(2) All wastewater streams containing FOG or reasonably likely to contain FOG within FSEs or other FOG generating operations shall be directed into one or more appropriately sized grease interceptor before discharge to the POTW. Grease interceptors shall be either sized by adding the peak design flow rates for all fixtures

leading to the grease interceptor and allowing a minimum retention time of 30 minutes or as follows:

Grease Interceptor Sizing

1. Peak meals per hour
   a. Seating capacity of FSE _____
   b. Occupancy of FSE _____ *
   c. Seating or occupancy x meal factor of 1.3 (45 minute meal) or 1.0 (intermittent-use FSEs) = Peak meals per hour

* Church: include all area(s) used for meal service

* Assisted Living / nursing facility: equal to maximum number of residents (per State license)

2. Waste flow rate, gallons of flow
   a. Commercial, equipped kitchen with dishwasher & one garbage disposal* 7
   b. Commercial, equipped kitchen with dishwasher, no garbage disposal 6
   c. Commercial, equipped kitchen with no dishwasher, one garbage disposal* 6
   d. Commercial, equipped kitchen with no dishwasher, no garbage disposal 5
   e. Single service kitchen** 2

* Each additional garbage disposal, add one (1) gallon

** Single service kitchen = no garbage disposal, no dishwasher and all service is single use

3. Retention time, hours
   a. Commercial kitchen 2.5
   b. Single service kitchen 1.5
4. Storage factor
   a. Commercial Kitchen up to 8 hours of operation 1
   b. Commercial kitchen up to 12 hours of operation 1.5
   c. Commercial kitchen up to 16 hours of operation 2
   d. Commercial kitchen up to 20 hours of operation 2.5
   e. Commercial kitchen up to 24 hours of operation 3
   f. Single service kitchen 1.5

Peak Meals per Hour	X	Waste Flow Rate	X	Retention Time	X	Storage Factor	=	Calculated Interceptor Size

(3) Concrete grease interceptors whether precast or poured in place, shall be designed and manufactured in accordance with ASTM C 1613-08 Standard Specification for Precast Concrete Grease Interceptor Tanks or IAPMO/ANSI Z1001 Grease Interceptors and shall be installed in accordance with the codes adopted by the jurisdiction in which the FSE is located. Where no code is adopted, the construction and installation shall be in accordance with the Iowa State Plumbing Code and this division. Grease interceptors using materials other than concrete require approval by the director, and shall comply with the conditions of such approval, if any.

(4) The building official or other designated official of the governmental subdivision within which the FSE is located shall inspect each grease interceptor installation made pursuant to this division, shall review all relevant information regarding the rated performance of the grease interceptor, and the building plan and facility site plan for the building and site where the grease interceptor has been installed, and shall approve such grease

interceptor installation upon determination that the grease interceptor meets all applicable standards and requirements.

(5) Grease interceptors shall have a minimum capacity of 1,000 gallons and shall not exceed 5,000 gallons for a single unit. Where a capacity greater than 5,000 gallons is required, several smaller units shall be installed in series, however the capacity shall not exceed 10,000 gallons for any single series of interceptors without approval of the director.

(6) Grease interceptors shall be installed outside the building housing the FSE and below surface grade, and shall have access manholes, with a minimum diameter of 24 inches, over each chamber and sanitary tee. Access manholes shall extend from the grease interceptor to at least the finished surface grade and be designed and maintained to prevent storm or surface water inflow and groundwater infiltration. The manholes shall also have readily removable covers to facilitate inspection and grease removal.

(7) Sewer lines which are not grease laden, which are not likely to contain FOG, or which contain sanitary wastes shall not be connected to a grease interceptor.

(8) Grease interceptors shall be equipped with an accessible discharge sampling port with a minimum six-inch diameter, which shall extend from the grease interceptor to at least the finished surface grade.

(9) Where grease interceptors are shared by more than one FSE, the building owner shall be the responsible party for record keeping and cleaning of the interceptor.

(O.14,549, 14,946, 15,730)

Sec. 118-428. Operation, maintenance and cleaning of grease interceptors and grease traps and grease hauler certification.

(a) The owner or operator of an FSE which is required to pass wastewater through a grease interceptor or trap shall operate and maintain the grease interceptor or trap so that wastewater exiting the grease interceptor or trap shall not exceed 400 milligrams per liter of FOG.

(b) The owner or operator of the FSE shall cause the grease interceptor or trap to be cleaned as hereinafter required when FOG and solids reach 25 percent of the design liquid level of the grease interceptor or trap, or sooner if necessary to prevent carry over of FOG from the grease interceptor or trap into the city sanitary sewer system. Interceptors and traps shall be cleaned at three-month intervals or less. A longer cleaning interval must be approved by the WRA director. The owner or operator of an FSE shall employ a waste hauler licensed by the WRA pursuant to division 6 of article III of this chapter to clean the grease interceptor or trap, provided that the waste hauler personnel performing the cleaning has a current grease hauler certification from the WRA indicating satisfactory completion of the course of training offered by the WRA on the cleaning of grease interceptors and traps.

(c) Any person who cleans a grease interceptor or trap shall do so in accordance with the following procedures and requirements. The person cleaning the grease interceptor or trap shall:

(1) Completely empty and remove the contents (liquids and sludge) of all vaults of the grease interceptor or trap, and remove the grease mat and scrapings from the interior walls. As part of each cleaning of a grease interceptor or trap the licensed waste hauler employed by the FSE owner or operator shall perform the following maintenance activities:

a. Check that the sanitary "tees" on the inlet and outlet sides of the grease interceptor are not obstructed, loose, or missing.

b. Verify that the baffle is secure and in place.

c. Inspect the grease interceptor or trap for any cracks or other defects.

d. Check that lids are securely and properly seated after completion of cleaning.

(2) Not deposit waste and wastewater removed from a grease interceptor/trap back into the grease interceptor/trap from which the waste or wastewater was removed, or into any other grease interceptor/trap or drainage fixture connected to the sanitary sewer, for the purpose of reducing the volume of waste and wastewater to be disposed of.

(3) Not introduce enzymes, emulsifying chemicals, hot water or other agents into a grease interceptor or trap to dissolve or emulsify grease or as a grease abatement method. Introduction of bacteria as a grease degradation agent is permitted with prior written approval by the WRA director.

(4) Dispose of waste and wastewater removed from a grease interceptor or trap at the WRF or at a facility approved for disposal of such waste by the WRA director. Waste and wastewater removed from a grease interceptor or trap shall not be discharged to any private sanitary or storm sewer or to the city sanitary or storm sewer system. The waste hauler shall provide a copy of the disposal receipt for all waste and wastewater removed from a grease interceptor or trap to the owner or operator of the FSE.

(5) Not use an automatic grease removal system to clean a grease interceptor without prior written approval of the WRA director, and if, the use of an automatic grease removal system is approved, shall operate same in a manner that the grease wastewater discharge limit, as measured from the system's outlet, is consistently achieved.

(d) The WRA director may make exceptions to the above requirements, or may approve alternative operational requirements or cleaning and maintenance methods, provided that such exceptions or approvals shall be made in writing by the WRA director.

(e) The WRA director may issue a grease hauler certification upon satisfactory completion of the course of training offered by the WRA on the proper maintenance and cleaning of grease interceptors and traps, disposal procedures, and record keeping. Such certification shall be for a period of five years and shall be in effect for the person receiving such training. Grease haulers certified by the WRA shall be subject to a grease interceptor cleanout inspection by WRA personnel, not less than once every two years, for purposes of the hauler demonstrating its compliance with requirements in this section. Such inspections shall be scheduled at a time which coincides with normal working hours for WRA personnel, shall involve all individuals employed by the same company who have been issued a grease hauler certification by the WRA, and shall be conducted at an FSE within the WRA service area. Failure to follow WRA's cleanout procedures or other requirements of this section may result in fines, additional scheduled cleanout inspections, and loss of grease hauler certification status, individually or company-wide, with the WRA.
(O.14,549, 15,730, 16,159)

Sec. 118-429. Records and record keeping.

(a) *Required records.* The owner or operator of an FSE which is required to pass wastewater through a grease interceptor or trap shall maintain a written record of grease interceptor or trap maintenance, including a log showing the dates upon which the grease interceptor or trap was inspected and the estimated amount of FOG present in the grease interceptor or trap at each inspection, the date upon which waste and wastewater was removed from the grease interceptor or trap and disposed of, the location and means of such disposal of waste and wastewater, and the name and employer or the person or persons performing each of said tasks. The log shall further include a record of the placement of any approved or unapproved additive into the grease interceptor, grease trap or building sewer on a constant, regular or scheduled basis, including the type and amount of additive placed on each such occasion. Only additives approved by the WRA director pursuant to section 118-428(c)(3) may be used in a grease interceptor.

(b) *Record keeping.* The log shall at all times be kept and maintained on a day-to-day basis, so as to show a record of waste and wastewater removal, waste and wastewater disposal and approved additive placement for a continuous period of three years. All such records shall be kept secure at the premises of the FSE for a continuous period of three years and shall be made available for non-routine inspection by the city, the WRA and its operating contractor, or the employees and agents of any of them at any time during normal business hours.
(O.14,549, 16,159)

Sec. 118-430. Inspection of grease interceptors and related sewers and equipment.

The owner or operator of an FSE shall:

(1) Provide, operate and maintain, at its expense, safe and accessible monitoring facilities (such as a suitable manhole), and shall make such monitoring facilities available for inspection, for routine cleanouts by the owner or operator's licensed grease hauler, and for sampling and flow measurement of the building sewer or internal drainage systems. There shall be ample room in or near such monitoring facilities to allow for proper inspection, accurate sampling and preparation of samples for analysis. The monitoring facilities shall be maintained such that the device(s) is readily and immediately accessible for inspections and cleanouts being free of coverings, building materials, pavements, or any other obstructions.

(2) Allow personnel authorized by the WRA director or by the city building official or designee, bearing proper credentials and identification, to enter upon or into any building, facility or property housing an FSE at any reasonable time and without prior notification, for the purpose of inspection, observation, measurement, sampling, testing or record review, in accordance with this division.

(3) Upon request by the WRA director's authorized representative, open any grease interceptor or grease trap for the purpose of confirming that maintenance frequency is appropriate, that all necessary parts of the installation are in place including, but not limited to, baffles, and effluent tees, and that all grease interceptors, traps, and related equipment and piping is maintained in efficient operating condition.

(4) Accommodate compliance inspections and sampling events by the authorized representatives of the WRA director or of the city building official. Staff may conduct routine inspections and sampling events of any food service establishment. Non-routine inspection and sampling events shall occur more frequently when there is a history of non-compliance with this division and when blockages occur in the city's sanitary sewer system downstream of the FSE.

(O.14,549, 14,946, 15,730, 16,159)

Sec. 118-431. Trip charges.

The fees for inspection of an FSE shall be as provided in section 118-352 and shall be paid within 30 days of the date of the invoice for such fees. A trip charge of $50.00, as referenced in section 118-352(1)(e), shall be assessed in conjunction with the violation of any requirement of section 118-430 which results in the need for WRA personnel to reschedule such inspection of grease interceptor/trap or food service establishment, and shall be paid within 30 days of the date of the invoice for such charge.
(O.14,549, 14,946, 16,159)

Sec. 118-432. Enforcement.

The WRA director is authorized to enforce this division as hereinafter provided. The city building official or designee, or such other governmental official hereafter designated by the WRA, is also authorized to enforce this division.
(O.14,549)

Sec. 118-433. Notice of violation; administrative penalties; corrective action order.

(a) The director, or such other designated officers or officials with enforcement authority as provided in section 118-432, are authorized to issue a notice of violation imposing an administrative penalty upon any person who fails to perform an act required by this division or who commits an act prohibited by this division. Such notice may include a corrective action order requiring the user to take one or more of the following corrective actions within 30 days:

(1) Conform to best management practices;

(2) Submit copies of the grease interceptor or trap maintenance log;

(3) Develop, submit and implement a FOG compliance plan to be approved by the director or designated enforcement official; or

(4) Install a compliant grease interceptor.

(b) The administrative penalty for such violations shall be as provided in the schedule of administrative penalties adopted by the city council by resolution.

(c) Notice of violation, with the applicable penalty for such violation noted thereon, shall be issued to and served upon the violator. Service of the notice may be by regular mail or by delivery in person.

(d) Penalties assessed pursuant to notice of violation shall be paid by the violator in full as directed in the notice within 30 days of its issuance.

(e) The administrative penalties set out in the schedule of administrative penalties shall be charged in lieu of the fines and penalties provided for in section 118-434, unless the violator refuses to correct the violation and pay the scheduled administrative penalty, or the WRA director determines that immediate enforcement action by misdemeanor or municipal infraction prosecution is, in view of the particular circumstances of the case, necessary to achieve compliance with the requirements of this article. A record of all violations, administrative penalties charged or other enforcement actions taken shall be maintained by the WRA for a period of three years.
(O.14,549, 15,730)

Sec. 118-434. Penalties.

(a) Any person who fails to perform an act required by this division or who commits an act prohibited by this division shall be guilty of a misdemeanor punishable by fine or imprisonment as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.

(b) Any person who fails to comply with a pretreatment standard applicable to an FSE shall be guilty of a municipal infraction punishable by a civil penalty of not more than $1,000.00 for each day the violation exists or continues, as provided by section 364.22 or 331.307 of the Iowa Code.

(c) When enforcement is sought through a municipal infraction proceeding, the director, or such other designated officers or officials with enforcement authority as provided in section 118-432, may enter into consent orders, assurances of voluntary compliance or other similar documents establishing an agreement with the user responsible for noncompliance. Such orders will include specific action to be taken by the user to correct the noncompliance within a time period specified by the order.
(O.14,549, 14,946)

Sec. 118-435. Order to cease operation of FSE.

(a) Where a violation of this division has not been timely corrected, and results in or threatens interference or pass through as herein defined, the WRA director, or such other designated officers or officials with enforcement authority as provided in section 118-432, shall have the authority to issue an order in writing to the owner or operator of the FSE, ordering such person or persons to cease and desist from further operation of the FSE and from further discharge of wastewater to the sanitary sewer system. The order shall be delivered by personal

service unless the owner or operator cannot be found within the city, in which event notice shall be by ordinary mail addressed to the owner's or operator's last known address and by posting a copy of the notice in a conspicuous place upon the premises of the FSE.

(b) Operation of the FSE shall cease on the date stated in the order and shall not recommence without the prior written approval of the WRA director.

(c) The applicant may make a written request to the director for a reconsideration and hearing on the cease and desist order within ten days from the issuance of the order, provided, however, that operation of the FSE shall cease pending the outcome of the hearing.

(d) The owner's or operator's request for hearing shall identify the appealing party, include the address of the person requesting the hearing and to which all further notices shall be mailed or served, and shall state the basis for the appeal.

(e) The hearing shall be scheduled to be held as soon as practicable and no later than 14 days after the request for hearing was filed with the WRA director. The person requesting the hearing shall be notified in writing or by telephone of the date and place of such hearing at least three days in advance thereof. At such hearing the director and the person requesting the hearing may be represented by counsel, examine witnesses, and present evidence as necessary.

(f) The determination by the director or by that the violation occurred shall be considered a final administrative decision, unless appealed to the WRA.
(O.14,549)

Sec. 118-436. Appeal of corrective action order or cease and desist order.

(a) Any person aggrieved by a corrective action order or a cease and desist order issued by the WRA director or by such other designated officers or officials with enforcement authority as provided in section 118-432, may, file an appeal and request a ruling that such order be modified or rescinded.

(b) Such appeal request shall be in writing, shall include the grounds for appeal including any factual findings which are disputed, and shall be delivered to the WRA within ten days after the WRA director's issuance of the order. Such appeal request shall be considered delivered when placed in the mail, return receipt requested, addressed to:

WRA Appeal Committee
Des Moines Metropolitan Wastewater Reclamation Authority
3000 Vandalia Road
Des Moines, Iowa 50317

(c) The chair of the appeal committee shall schedule the appeal and shall cause notice of the time, date and place of the hearing to be mailed to the appealing party. Such appeal shall be decided by majority vote of the appeal committee. The appeal committee may affirm, modify or rescind the order of the director and shall so state and order in its written decision.
(O.14,549, 14,946, 15,730)

Sec. 118-437. Additional remedies.

The WRA or the city is not precluded from seeking alternative relief from the court, including an order for abatement or injunctive relief or for recovery of investigational or remedial costs resulting from a non-complying discharge, in the event that the WRA or the city files a misdemeanor citation, notice of administrative penalty, and/or files a municipal infraction for the same violation of this division.
(O.14,549)

Secs. 118-438—118-449. Reserved.

DIVISION 6. REGULATION OF HAULED WASTE

Sec. 118-450. Definitions.

The definitions found in sections 118-316 and 118-422 shall apply to the provisions of this division, provided however that the following

words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Vehicle means a commercial device equipped with a tank and used to remove or transport waste.

Waste means human excreta, water, scum, sludge, septage, FOG, food waste or grease solids, and non-hazardous industrial wastewaters and solids removed from public and private wastewater disposal systems, holding tanks, impervious vaults, portable or chemical toilets, or from devices used to trap grease resulting from food preparation. *Waste* also means liquid wastes resulting from spill clean-up.
(O.14,568, 15,730)

Sec. 118-451. License.

No waste hauler shall remove waste from within the city or shall dispose of waste, whether from a source inside or outside the city, into the POTW without first obtaining a waste hauler license from the WRA, with the following exceptions:

(1) WRA participating communities that operate vehicles to remove waste from their sewer systems.

(2) Waste haulers hired by WRA participating communities to remove waste from their sewer systems and which bring no other wastes to the WRF.

(3) Waste haulers utilized by industrial users issued a wastewater discharge permit by the WRA.

(4) Waste haulers granted temporary authorization by the WRA director in order to deal with an emergency.

(O.14,568)

Sec. 118-452. Issuance of license; payment bond requirements.

The waste hauler's license shall be issued by the WRA director upon written application that shall consist of the following minimum requirements:

(1) *Inspection.* The WRA director, upon application, shall inspect the trucks, hoses, valves, and associated equipment of the applicant for a waste hauler's license and determine if they meet the minimum qualifications for complying with the conditions of this division.

(2) *License fee and bond.* An application shall require the payment of a fee of $60.00 for each vehicle used by the applicant and the posting of a bond with reasonable surety in a penal sum which shall cover no less than two months of average or estimated treatment fees at the WRF for the faithful compliance with this division, including prompt payment of treatment costs, surcharges, fees and fines. Bond amounts shall be up to $100,000.00 but not less than $20,000.00 and structured as follows or as required by the WRA director:

Total Monthly Treatment Fees	*Surety Bond Amount*
< $10,000.00	$20,000.00
$10,001.00—$20,000.00	$40,000.00
$20,001.00—$40,000.00	$60,000.00
> $40,001.00	$100,000.00

WRA participating communities that contract with waste haulers in order to clean and rehabilitate storm and sanitary sewers owned by the community or that own and operate waste hauling vehicles may provide proof of self-insurance or provide a letter guaranteeing payment of up to $20,000.00 in lieu of providing a surety bond.

(3) *Renewal.* A waste hauler license shall expire on June 30 next after its issuance. The renewal application must be made in the same manner as the initial application and must be received by the director 30 days prior to expiration. Failure to apply 30 days prior to expiration may result in an interruption in the license and the privileges of such license.

(4) *Transferability.* Waste hauler licenses are not transferable.

(O.14,568, 16,159)

Sec. 118-453. Standards for vehicles and equipment.

As to all vehicles and equipment used by a waste hauler, the licensee shall:

(1) Prevent waste and wastewater from leaking, spilling, or discharging onto roads or rights-of-way.

(2) Ensure proper construction and repair of the equipment to allow cleaning.

(3) Maintain vehicles and equipment in an essentially rust-free and sanitary condition and appearance.

(4) Display the business name as it appears on the waste hauler license in three-inch or larger letters on the left and right sides of the vehicle.

(O.14,568)

Sec. 118-454. Disposal.

Hauled waste shall only be disposed at the WRF at the designated disposal station or as authorized by the Iowa Department of Natural Resources for land application. Waste haulers shall maintain the WRF designated disposal location in a clean and orderly condition to avoid noxious odors and unsanitary conditions. Hours of operation at the WRF disposal station shall be set by the WRA director. In the event of emergency situations, special arrangements between the waste hauler and the WRA director regarding disposal at an alternative disposal site shall be allowed to permit response to such emergency. Any violation of an Iowa Department of Natural Resources rule or regulation for land disposal of hauled wastes by a waste hauler shall be grounds for rejection of a hauled waste load in section 118-458 by such waste hauler or shall be grounds for denial, suspension and revocation of such waste hauler's license in section 118-463.
(O.14,568)

Sec. 118-455. Identification of source and wasteload approval.

(a) Waste haulers must document the nature and origin of wastes collected and the site and method of disposal for wastes that are removed from any locations or are delivered to the WRF. Such information shall be provided on a manifest form provided by the WRA and shall also include: (i) the name and address of the waste generator(s), (ii) the type of waste collected, (iii) any other information consistent with identification and tracking of wastes. The WRA director or his or her designee shall have the right to verify all information required by this section, including the right to measure, sample and analyze any waste regulated by this division.

(b) The waste hauler or waste generator shall obtain approval from the WRA director or his or her designee prior to loading wastes originating from an industrial/commercial source unless prior approval is on record with the WRA. A hauled waste profile form prescribed by the WRA must be completed by the waste generator and submitted to the WRA director or his or her designee for consideration for waste load disposal at the WRF. Such profile form shall include information regarding the waste generator's name, address, phone number, authorized representative, waste description and product information, anticipated volume and frequency of disposals, waste transporter information, process waste characteristics including pollutant concentrations, declarations, certifications, and signature of authorized official.
(O.14,568, 16,159)

Sec. 118-456. Mixing wastes.

(a) For the purposes of this division, wastes from residential and nonresidential sources shall not be mixed. Wastes from an industrial/commercial source shall not be mixed with wastes of any type from another location. Portable toilet and FSE grease trap wastes may be mixed with similar wastes from different locations. Residential wastes from several sources may be mixed as long as each source is identified.

(b) Any tanks used for hauling waste to the WRF or equipment that comes in contact with waste shall not be used for hauling hazardous wastes or hazardous substances, as defined in I.C. § 567.1 et seq., chapter 131 of the Iowa Administrative Code and in 40 CFR 261, or other

wastes which may be detrimental to the POTW, the receiving waters, or the health of WRF employees, private contractors, or the public.
(O.14,568, 16,159)

Sec. 118-457. Standards of disposal at WRF.

(a) Under this division, disposal of wastes at the WRF shall be carried out in accordance with pretreatment standards and requirements established by federal, state, county and city governments including categorical standards developed for the waste generator's industrial category. The WRA director may reject wastes from waste haulers who do not comply with this section or with any other section of this division. Waste haulers shall not deliver wastes to the WRF, or to any other disposal location approved by the WRA director which are:

(1) Prohibited by section 118-342 or exceed the limits found in subsection 118-343(c)(4), sections 118-344 and 118-345 of this chapter.

(2) Hazardous wastes or hazardous substances as defined in 40 CFR Part 261 or 567 I.A.C., Chapter 131.

(3) Originate from mineral oil unless first treated to remove the oil and grease.

(4) Not completely identified or are from industrial/ commercial sources that are not approved by the WRA director as required in section 118-455.

(5) Mixed in a manner prohibited in section 118-456.

(6) Wastes other than residential from outside the WRA, except through requests to the WRA director.

(b) All disposal transactions at the WRF shall consist of waste haulers scaling in and scaling out on the WRF scales system. Prior to discharging any contents from their vehicle, a waste hauler shall:

(1) Collect onsite at the WRF a sufficient sample of the waste material onboard.

(2) Test and record the pH and immediately report any results that do not meet disposal limits as listed in 118-342(2).

(3) Document on the WRF manifest all contents of the waste load including waste type, source information, and any other information consistent with identification and tracking of wastes as required in section 118-455.

(4) Request and obtain approval from WRF operations to begin unloading at the WRF digesters.

(O.14,568, 15,730, 16,159)

Sec. 118-458. Rejection of waste loads.

(a) The WRA director may reject any hauled waste load that violates or is suspected of violating the requirements of this division or that fails to meet any other guidelines established by the WRA director to protect personnel, equipment, and the WRF. Waste haulers must:

(1) Remove rejected waste from the WRF.

(2) Immediately remove any additional wastes contaminated by the rejected waste while contained at the WRF prior to introduction into the sewer.

(3) Properly dispose of all rejected wastes in accordance with state and federal law.

(4) Provide the WRA director with a written statement, signed by the waste hauler license holder, stating the location, date, and time the rejected load was disposed of. The statement is due within five calendar days after the waste is rejected.

(b) A vehicle used to haul rejected wastes shall not thereafter be allowed to dispose of additional wastes at the WRF until the statement required by this section is delivered to the WRA director.
(O.14,568)

Sec. 118-459. Treatment fees for hauled wastes.

(a) A treatment fee shall be charged per pound of hauled waste disposed of at the WRF and assessed based on the waste type, pollutant

loading, approved disposal location, and location of the source material. The fee for treatment shall include electrical, chemical, labor, equipment, fuel, maintenance, and any capital costs associated with the treatment processes utilized. The treatment fee shall reflect a total cost per gallon or per pound of hauled waste equaling the sum of the total cost of pollutants per gallon or per pound plus, if applicable, total cost of flow per gallon, based on: (1) the parameters of chemical oxygen demand (COD), estimated biochemical oxygen demand (BOD), total suspended solids (TSS) and/or total solids (TS), volatile solids (VS), total Kjeldahl nitrogen (TKN), oil and grease (O&G), and, if applicable, total phosphorus (TP) contained in trucked waste to the WRF; (2) net weight of the wasteload in pounds; and (3) the treatment surcharge component rate per pound of pollutant as found in section 118-352 of this division. Wasteloads disposed of at an unapproved location at the WRF, or containing pollutant concentrations different from typical pollutant concentrations or from original disclosures made during the wasteload approval process, may be subject to the following additional costs: treatment fees, charges, or fines may also be applied pursuant to section 118-352(1)(l).

(b) Treatment costs shall be reviewed and updated annually per the U.S. Bureau of Labor Statistics Consumer Price Index. The WRA shall provide 30 days' notice prior to assessing updated disposal rates with such notices posted, at a minimum, on the WRA website. The treatment fee for loads originating outside of the WRA participating communities shall be 1.5 times the fee for loads originating within the WRA participating communities unless otherwise approved by the WRA director.

(c) Wasteload disposal weights shall be computed and recorded at the WRF truck scales and the resulting treatment fees shall be paid by the waste hauler or waste generator, at the WRA's discretion, on the basis of monthly billings by the operating contractor. Limits of credit shall not exceed 60 days. Abuse of such credit shall be grounds for liability on the waste hauler or waste generator's bond and for refusal of disposal services to any waste hauler or waste generator under this division.

(d) Waste haulers and waste generators may elect to have their routine waste streams tested for actual concentration at their expense as set forth in section 118-352 and as approved by the WRA director. When a waste hauler or waste generator has elected to test for actual concentration, the treatment fee will be based on the actual concentration whether it be higher or lower than the average concentration treatment fee. Said testing will be done at least semi-annually or as required by the WRA director. (O.14,568, 16,159)

Sec. 118-460. Enforcement.

The WRA director, the city building official, or such other governmental official hereafter designated by the WRA, shall be authorized to enforce this division as hereinafter provided. (O.14,568)

Sec. 118-461. Notice of violation—Administrative penalties; corrective action order.

(a) The director, or such other designated officers or officials with enforcement authority as provided in section 118-460, are authorized to issue a notice of violation imposing an administrative penalty upon any person who fails to perform an act required by this division or who commits an act prohibited by this division.

(b) The administrative penalty for such violations shall be as provided in the schedule of administrative penalties adopted by the city council by resolution.

(c) Notice of violation, with the applicable penalty for such violation noted thereon, shall be issued to and served upon the violator. Service of the notice may be by regular mail or by delivery in person.

(d) Penalties assessed pursuant to notice of violation shall be paid by the violator in full as directed in the notice within 30 days of its issuance.

(e) The administrative penalties set out in the schedule of administrative penalties shall be charged in lieu of the fines and penalties provided for in section 118-462, unless the violator refuses to correct the violation and pay the scheduled administrative penalty, or the WRA director determines that immediate enforcement action by misdemeanor or municipal infraction prosecution pursuant to section 1-15 is, in view of the particular circumstances of the case, necessary to achieve compliance with the requirements of this article. The WRA shall maintain a record of all violations, administrative penalties charged or other enforcement actions taken.
(O.14,568)

Sec. 118-462. Penalties.

(a) Any person who fails to perform an act required by this division or who commits an act prohibited by this division shall be guilty of a misdemeanor punishable by fine or imprisonment as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.

(b) Any person who violates a discharge prohibition set forth in section 118-342, or discharges in excess of local limits as set forth in section 118-343, shall be guilty of an environmental violation punishable as provided by section 364.22 of the Iowa Code.
(O.14,568)

Sec. 118-463. Denial, suspension and revocation of license.

(a) *Grounds for denial, suspension or revocation of waste haulers license.* The WRA director may deny, suspend or revoke the waste hauler license and/or grease hauler certification of any wastehauler who violates any provision of this division or any condition of its license, or who commits any of the following violations, or who does not meet the following requirements:

(1) Violation of any term, condition or requirement of this division, the license, or applicable State of Iowa or federal laws or regulations.

(2) Obtaining a license by misrepresentation.

(3) Falsification of, failure to complete or failure to fully disclose all relevant facts in a license application.

(4) Failure to pay fees, administrative penalties or fines.

(5) Failure to report a spill to the WRA.

(6) Using wash down water or otherwise diluting the permitted waste for the purpose of meeting discharge limitations or requirements.

(7) Falsification of, failure to complete or failure to fully disclose all relevant facts in any report, manifest information or record required by the license or this division.

(8) Tampering with samples or sampling equipment intended to accurately reflect the contents of each hauled waste load.

(9) Refusing to allow WRA personnel timely access to the wastehauler's facility premises, vehicles, or records.

(10) Failure to perform as required under a corrective action order or compliance schedule issued by the WRA director.

(11) Failure to correct any violation of this division within 30 days after notice by the WRA director.

(12) Failure to immediately correct any violation of this division if the condition constituting the violation is declared a threat to public health, safety or welfare by the WRA director and the director orders immediate correction.

(b) *Procedure for denial, suspension or revocation of wastehauler's license.* The procedure for denial, suspension or revocation of a wastehauler's license shall be as follows:

(1) Any license issued to a wastehauler pursuant to this division may be denied, suspended or revoked by written order of the WRA director specifying the grounds for such action as outlined in subsection (a) of this section, which order shall not

take effect until hearing thereon as hereafter provided. Upon determining that grounds exist for an order to deny, suspend or revoke a wastehauler's license, the WRA director shall cause a notice of hearing to be prepared, specifying the violations of subsection (a) of this section which are deemed to have occurred, and the time, date and place that such hearing will be held. The notice shall be sent to the wastehauler by regular mail addressed to the wastehauler's address listed on the wastehauler's license a minimum of ten days prior to the date set for hearing, and shall be deemed delivered when placed in the mail.

(2) If after such a hearing the WRA director makes a finding based on substantial evidence that one or more violations under subsection (a) of this section have occurred as alleged, the director may deny issuance of the license, suspend the license for a fixed period, or may issue an order immediately revoking the license and ordering the wastehauler to discontinue hauling waste to the WRF or any other disposal locations approved by the director. The determination whether to deny issuance of a license, to suspend a license, or to revoke a license, shall be in the discretion of the director and shall be dependent upon the circumstances surrounding the violations of subsection (a) of this section and the severity of those violations. If the wastehauler does not appear for the hearing, the director shall issue the order revoking the wastehauler's license and ordering the cessation of delivery of hauled waste at the WRF or any other disposal locations approved by the director, which order shall take effect immediately.

(3) The decision and order of the WRA director to deny issuance, to suspend or to revoke the license of a wastehauler may be appealed to the WRA appeal committee. Such appeal request shall be in writing, shall include the grounds for appeal including any factual findings which are disputed, and shall be delivered to WRA not less than ten days after the director's entry of the order of denial, suspension or revocation. Such appeal request shall be considered delivered when placed in the mail, return receipt requested, addressed to:

WRA Appeal Committee
Des Moines Metropolitan Wastewater
Reclamation Authority
3000 Vandalia Road
Des Moines, Iowa 50317

The chair of the appeal committee shall schedule the appeal and shall cause notice of the time, date and place of the hearing to be mailed to the appealing wastehauler. Such appeal shall be decided by majority vote of the appeal committee. If the appeal committee affirms the order of the WRA director denying issuance, suspending or revoking the license and ordering the cessation of waste deliveries at the WRF or other approved locations, the appeal committee shall so state and order in its written decision.

(4) A wastehauler whose license has been denied or revoked shall not be eligible for issuance or reinstatement of its license until 30 days after the violating conditions have been corrected to the satisfaction of the director.

(O.14,568, 15,730)

Sec. 118-464. Alternative relief.

Neither the WRA nor the city is precluded from seeking alternative relief from the court, including an order for abatement or injunctive relief, in the event that the WRA or the city files a misdemeanor citation, notice of administrative penalty, and/or files a municipal infraction for the same violation of this division, or in the event the WRA seeks to deny, suspend or revoke the waste hauler's license.

(O.14,568)

Secs. 118-465—118-475. Reserved.

ARTICLE IV. CITY ELECTRIC LIGHT AND POWER*

Sec. 118-476. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Electric distribution system means that portion of the power company's system consisting of power lines and substations operating at a nominal line-line voltage of less than 161 kv.

Electric transmission system means that portion of the power company's system consisting of power lines and substations operating at a nominal line-line voltage of 161 kv or higher.

Power company means the current electric franchisee for the city, including MidAmerican Energy Company as successor in interest to Iowa Power and Light Company, the electric franchisee pursuant to Ordinance No. 6280, passed by the city council on May 4, 1987 and ratified by vote of the electorate of the city on June 9, 1987.
(C91, § 26-27.01; O.13,259)

Cross reference—Definitions generally, § 1-2.

Sec. 118-477. Trimming trees in contact with high voltage wires or cables.

Permission of the city forester may be granted to any person installing wires in accordance with this article to trim any and all trees located on property owned by the city which may at any time interfere or come in contact with wires or cables carrying 100 volts or more of electricity, which may by that contact be burned and thereby endanger the lives of the public and property in general. All trees shall be trimmed so as to ensure reliable electrical service. Trimming shall otherwise conform to the specifications set forth in subsection 122-10(a) of this Code.
(C54, C62, § 18-62; O.7807; C62, § 18-69; C75, C79, C85, § 26-27; O.11,297; C91, § 26-27)

Sec. 118-478. Permission for high current wires.

The director of the department of engineering may, for good and sufficient reasons, give written permission for placing high voltage electric wires in the street right-of-way.
(C42, § 101-9; C54, C62, § 18-71; O.7807; C62, § 18-70; C75, C79, C91, § 26-28)

Sec. 118-479. Care and setting of poles.

All poles carrying electric wires shall be properly maintained and kept free from all signs, posters, pasters, handbills or notices, except public notices and handbills posted under any state law, this Code or any other city ordinances. The poles shall be properly and securely set. If, in setting the poles, any pavement, curb, sidewalk, area, wall or other erection is disturbed or cut into, the pavement, curb, sidewalk, area, wall or other erection shall be repaired, restored and left in as good condition as it was before the cutting or disturbance.
(C42, § 101-7; C54, C62, § 18-72; O.7807; C62, § 18-71; C75, C79, C91, § 26-29)

Sec. 118-480. Attaching wires to poles of another person.

Any person erecting electric wires shall be permitted to attach wires and fixtures to the poles erected by any other person, upon paying reasonable compensation therefor.
(C42, § 101-10; C54, C62, § 18-74; O.7807; C62, § 18-72; C75, C79, C91, § 26-30)

Sec. 118-481. Removal of poles erected in violation of article.

The city engineer shall order the removal of all electric wires, poles and fixtures erected or maintained in violation of this article.
(C42, § 101-11; C54, C62, § 18-75; O.7807; C62, § 18-73; C75, C79, C91, § 26-31)

Sec. 118-482. Rights of city.

This article shall not have the effect of abridging any of the rights of the city in locating all poles and electric wires, in or under the streets and alleys, in the future, nor shall it prevent or

*Cross references—Electrical code, § 26-261 et seq.; electric franchise, app. C.

limit the city in enforcing all proper police regulations with respect to all such electric poles and wires.
(C42, § 101-12; C54, C62, § 18-77; O.7807; C62, § 18-74; C75, C79, C91, § 26-32)

Sec. 118-483. Overhead construction.

No person operating or maintaining electric light or power wires shall erect, operate or maintain any aerial wires within the underground districts as adopted by resolution of the city council except wires necessary to connect consumers with the underground system.
(C42, § 101-14; C54, C62, § 18-79; O.7807; C62, § 18-75; C75, C79, C91, § 26-33)

Sec. 118-484. Statement of location of conduits; map; specifications.

Before any person operating or acquiring the right to operate electric light and power wires shall begin the work of placing wires underground, except as provided for in new subdivisions, such person shall file with the city engineer a written statement specifying the streets, alleys and public highways, or parts thereof in which conduits are to be located, the approximate size of the conduits proposed to be used and the distance from the surface of the street to the top of the conduits. This statement shall be accompanied by a map, plan or specifications which shall show the proposed location of the conduits with reference to streets, alleys and surface of the streets and the approximate dimensions of the conduits and manholes to be used therewith. The proposed locations may be thereupon changed by the city engineer if the locations shall in any way interfere with other conduits, pipes or sewers placed underground. Such statement, map, plan or specifications so altered, after being corrected or changed, together with the original statement, shall remain on file in the city engineer's office. All conduits and manholes shall be constructed in accordance with the corrected statement, plan, map or specifications.
(C42, § 101-15; C54, C62, § 18-80; O.7807; C62, § 18-76; C75, C79, C91, § 26-34)

Sec. 118-485. Permit for excavation of street.

A permit to excavate in any street, alley or public highway for the purpose of constructing, repairing or relocating conduits, underground cables, and manholes under this article shall be issued by the city engineer. It shall be issued subject to this Code or any city ordinances relating to the issuance of permits for street excavations. No person shall excavate without such a permit.
(C42, § 101-15; C54, C62, § 18-81; O.7807; C62, § 18-77; C75, C79, C91, § 26-35)

Sec. 118-486. Excavations generally; indemnification.

In the location, construction or repair of any conduit, no excavation shall be unnecessarily made, placed or continued, and any excavation or obstruction made or placed in any street, alley or public highway at any time or for any such purpose shall be properly guarded. Any pavement at any time or for any purpose whatever torn up or displaced under the terms of the permit provided for in section 118-485 of this article shall be properly and speedily replaced and put in proper order under the supervision of the director of the department of public works, as provided by this Code and other city ordinances relating to the restoration of paving over street excavations. Any person owning such conduits shall pay all damages for injury to persons or to the property of any property owner or corporation, as well as to the city, resulting from, occasioned by or growing out of negligence or improper construction in the laying, constructing or repairing of conduits or the maintenance and use of the conduits. Such person shall fully indemnify and save harmless the city from and against all claims, actions or suits at law or in equity, of any nature, for damages to persons or property resulting from, occasioned by or growing out of the omission of the person or such person's servants or agents to guard properly any excavation or obstruction at any time or for any purpose whatsoever made, placed or caused by such person in any street, alley or public highway.
(C42, § 101-16; C54, C62, § 18-82; O.7807; C62, § 18-78; C75, C79, C91, § 26-36)

Sec. 118-487. Underground wires outside of established districts.

Any person by election may place all or any portion of his or her electric wires outside of an underground district underground, either in connection with the underground construction required by this article or from time to time thereafter. This article shall apply to all underground construction which may be made outside of an underground district.
(C42, § 101-21; C54, C62, § 18-87; O.7807; C62, § 18-79; C75, C79, C91, § 26-37)

Sec. 118-488. Construction of article with reference to occupation of streets.

Nothing in this article shall be construed as an acquiescence in or ratification of the occupation of any of the streets, alleys or public places of the city by any person occupying the streets, alleys or public places without legal right, nor shall this article be construed as conferring the right to occupy any of the streets, alleys or public places of the city upon any such person illegally or without authority occupying the streets, alleys or public places.
(C42, § 101-22; C54, C62, § 18-88; O.7807; C62, § 18-80; C75, C79, C91, § 26-38)

Sec. 118-489. Streetlights.

Any person furnishing electric energy and service for the use of the city for illuminating streets, avenues, alleys and public grounds shall furnish such street lighting units as may be authorized by resolution of the city council.
(C42, § 101-23; O.4855; C54, C62, § 18-89; O.7807; C62, § 18-81; C75, C79, C91, § 26-39)

Sec. 118-490. Rates for service on streetlights.

For electric energy and service furnished to illuminate and maintain the streetlights authorized by the city council, the city shall pay to the person furnishing the energy and service at the rate prescribed by the state commerce commission under authority of state law.
(C42, § 101-25; O.4855; C54, C62, § 18-91; O.7807; C62, § 18-82; C75, C79, C91, § 26-40)

Sec. 118-491. Installation and maintenance of poles, wires.

(a) Any person furnishing electric energy for the facilities mentioned in sections 118-489 and 118-490 of this article shall install and maintain, at such person's expense, all necessary poles, wires, conduits, lamps, fixtures and appurtenant equipment of the street lighting system. Street lighting standards, including bridge lighting units and wiring all complete with luminaries and lamps furnished and installed at city expense, and including therein all such other standards as are now in place, shall be maintained by such person, including the renewal of luminaries and lamps. Such person shall not be required to replace street lighting standards owned by the city which are broken or otherwise damaged through no fault of such person.

(b) All poles, wires, lamps, fixtures and equipment furnished and installed by such person shall remain that person's property.
(C42, § 101-27; C54, C62, § 18-93; O.7807; C62, § 18-83; C75, C79, C91, § 26-41)

Sec. 118-492. Location of street lighting units; removal; new installations.

Street lighting units shall be maintained at the present locations or as may from time to time be authorized by resolution of the city council. The person furnishing electric service to the city, when ordered by the city engineer, shall change the location of any street lighting unit from that previously designated or remove any unit previously ordered installed. The city shall pay the actual cost of the removal or relocation if street lighting units are discontinued within one year after being connected. If lamps are discontinued after one year but within two years after the lamps were connected, the removal charge will be equivalent to 1½ times the yearly rate of the lamps removed. If lamps are discontinued after two years but within three years after lamps were connected, the removal charge will be equivalent to the yearly rate of the lamps removed. If lamps are discontinued after three years, but within four years after the lamps were connected, the removal charge will be equivalent to one-half of

the yearly rate of the lamps removed. If lamps are discontinued four years after the lamps were connected, there will be no removal charge. There shall be no removal charge on lamps reconnected if the reconnection cost is paid for by the city.
(C42, § 101-28; C54, C62, § 18-94; O.7807; C62, § 18-84; C75, C79, C91, § 26-42)

Sec. 118-493. Replacement and maintenance of streetlights.

The streetlights to be furnished or maintained by the person supplying the electric energy at all times shall be maintained in accord with the street lighting maintenance program as approved by the city council and on file with the city clerk.
(C42, § 101-29; C54, C62, § 18-95; O.7807; C62, § 18-85; C75, C79, C91, § 26-43)

Sec. 118-494. Lines, meters and equipment generally; right of entry of power company.

(a) For the purpose of delivering electric energy to the city, the power company shall extend its lines to the point of delivery of each of the connections under the control of the city and to any others established by the city. The power company shall furnish and install all necessary meters and recording devices for the purpose of measuring the energy taken by the city at the point of delivery.

(b) The city will provide, free of charge to the power company, a suitable location for the power company's meter equipment, convenient of access to the personnel of the power company. It will also provide for the power company a right-of-way over its premises for the location of necessary lines and apparatus of the power company.

(c) All lines and apparatus shall be installed by the power company at its expense and shall remain the property of the power company. The personnel of the power company shall have the right to inspect, repair and replace the apparatus without hindrance and to read meters at all reasonable times.

(d) The city shall pay all costs to construct and install, according to approved standards of construction, and maintain in good order all poles, lines, wiring and other apparatus on the city's side of the point of delivery which are necessary for the proper reception by the city of electric energy and for its distribution and use beyond such point. The electrical construction and equipment installed by the city shall be of the type which will not interfere with service rendered by the power company to its other consumers.

(e) The power company shall have the right, at all reasonable times, to enter upon the premises of the city to inspect the equipment installed in the city.
(C42, § 101-32; C54, C62, § 18-98; O.7807; C62, § 18-86; C75, C79, C91, § 26-44)

Sec. 118-495. Duty of power company.

The power company will maintain during the period of application of this article sufficient capacity to meet city requirements for electric energy and will supply such additional electric energy as the city may require, within the limitation of its transmission, distribution and manufacturing establishment after reasonable notice from the city. The power company shall endeavor to provide at all times capacity adequate to satisfy the city's full requirements.
(C42, § 101-33; C54, C62, § 18-99; O.7807; C62, § 18-87; C75, C79, C91, § 26-45)

Sec. 118-496. Continuous service.

The power company shall use its utmost endeavor to maintain continuous and uninterrupted electric service and shall promptly restore service if any interruption occurs thereto. The power company shall not be liable to the city for a temporary discontinuance of service unless the interruption is due to the willful act of the power company, its officers, directors, or its agents acting under authority from the company.
(C42, § 101-37; C54, C62, § 18-103; O.7807; C62, § 18-88; C75, C79, C91, § 26-46)

Sec. 118-497. Indemnification.

The power company shall indemnify and hold harmless the city from any loss or damages on account of injury to or death of persons or injury to property arising from or growing out of its negligence or the negligence of its agents, employ-

ees, contractor or subcontractors in the construction, maintenance and operation of the lighting and power system referred to in this article. It shall, at its own expense, defend any action at law or in equity brought against the city on account thereof. The city shall give the company prompt notice of the filing of any such claim or suit and extend its full cooperation in the defense thereof. The power company shall not be liable for any loss or damage to property or injury to or death of persons, whether suffered by the city, its agents, employees or by any third person, resulting from the location, use or operation of electrical or other equipment located on the city side of the point of delivery of such electric energy or from electric energy present therein and escaping therefrom. The city shall indemnify and hold the power company harmless from all such loss, damage, injuries or death, unless the act causing the loss, damage, injury or death is the result of fault or negligence on the part of the company.
(C42, § 101-38; C54, C62, § 18-104; O.7807; C62, § 18-89; C75, C79, C91, § 26-47)

Sec. 118-498. Destroying facilities or equipment.

Any person destroying, damaging or interfering with any of the facilities or equipment, including poles, wires, luminaries, lamps, standards and electric energy, used pursuant to this article, whether belonging to the city or to the power company, upon conviction thereof, shall be punished as provided in section 1-15 of this Code.
(C42, § 101-40; C54, C62, § 18-105; O.7807; C62, § 18-90; C75, C79, C91, § 26-48)

Sec. 118-499. Expansion of electric transmission system.

(a) If the power company desires to construct a major expansion of its electric transmission system within the city, the power company shall present its proposal to the city for approval. Major transmission system expansion projects covered under this article would include construction of new transmission system substations, expansion of existing transmission system substations where additional property would be required, construction of transmission system lines along new routes, and upgrade of distribution system lines to operate at transmission system voltages. Such proposal shall be submitted initially to the city's engineering and community development departments for review, such submission to occur not less than six months prior to the commencement of construction of the project. Such proposal shall be presented in sufficient detail so that city staff may determine the impact of the proposed project and facilities on existing or planned city infrastructure and on development in and around the city.

(b) City staff shall complete its review of the power company's proposal and shall report its finding and recommendation with regard thereto to the city council within 30 days of submission of the proposal. The city council may in its discretion schedule one or more public hearings upon the proposal.

(c) Upon completing its review of the power company's proposal, the city council may approve, reject, or request modification of the proposal.

(d) Any of the requirements of this section may be waived by the city council for good cause shown.
(C91, § 26-48.001; O.13,259)

Sec. 118-500. Power of eminent domain for power company.

In accordance with I.C. § 364.2, the power company is granted and vested with the power of eminent domain to appropriate and condemn so much private property within the corporate limits as may be necessary for the purpose of constructing, operating and maintaining its electric plant therein, including all necessary facilities for the transmission or distribution of electric energy, together with the other rights necessary or incident thereto. This power is to be exercised only under the conditions and in the manner set forth in this article.
(C62, § 18-143; O.7368, 7807; C62, § 18-110; C75, C79, § 26-68; C91, § 26-48.01; O.13,259)

Sec. 118-501. Petition.

The individual or corporation desiring to exercise the power granted in section 118-500 of this

article as against a property in private ownership shall file with the city clerk a petition, addressed to the city council, which shall state:

(1) The name of the petitioner and the nature of the franchise held by him.

(2) A legal description of the parcel of real estate which the petitioner desires to condemn, the interest required therein, and the name and address of each owner thereof and each holder of a lien or interest therein of record or known to the petitioner.

(3) The nature of the public use for which petitioner requires the parcel and the necessity thereof to the petitioner.

(C62, § 18-143; O.7368, 7807; C62, § 18-110; C75, C79, § 26-69; C91, § 26-48.02)

Sec. 118-502. Description of property to be condemned.

The petitioner shall accompany the petition filed pursuant to section 118-501 with a plat of each parcel described, showing thereon the property required and the legal description of that property.

(C62, § 18-143; O.7368, 7807; C62, § 18-110; C75, C79, § 26-70; C91, § 26-48.03)

Sec. 118-503. Date of hearing on petition.

Upon filing the petition pursuant to this article, the city clerk shall promptly refer the petition to the city council, which shall fix a date not more than 20 days after the filing of the petition when the petition shall be heard by the city council.

(C62, § 18-143; O.7368, 7807; C62, § 18-110; C75, C79, § 26-71; C91, § 26-48.04)

Sec. 118-504. Notice of hearing.

At least seven days before the date fixed for the hearing pursuant to section 118-503, the clerk shall give notice directed to each person who is named in the petition as an owner of the real estate sought to be condemned and as the holder of a lien or interest therein, at the address stated in the petition, by mailing by United States registered mail, return receipt requested, a notice substantially as follows:

To (name of each owner and lienholder):

You are hereby notified that a petition of (name of petitioner) is on file in the office of the clerk of the City of Des Moines, Iowa, in which petitioner requests authority from the City of Des Moines, Iowa, under the provisions of I.C. § 364.2 to appropriate and condemn the following described real estate:

(Legal description of land)

You are further notified that the city council of the City of Des Moines, Iowa, will hear said petition at the council chambers in the city hall on the _____ day of _____, (Year) ____, during the course of its meeting commencing at _____ p.m., on said date, and that you may appear before the city council at said time and show cause why said petition should not be granted.

Clerk of the City of Des Moines, Iowa

(C62, § 18-143; O.7368, 7807; C62, § 18-110; C75, C79, § 26-72; C91, § 26-48.05)

Sec. 118-505. Action by city council.

At the time fixed for the hearing on the petition pursuant to this article, the city council shall consider the petition and any objections thereto and such evidence as may aid it in determining the propriety of granting the petition. If, upon such hearing, the city council shall find that taking such land is reasonably necessary to serve the public use for which the petitioner holds a franchise as contemplated by the statutes authorizing such power to be conferred, the council may adopt a resolution conferring the power to appropriate and condemn the property for the use intended.

(C62, § 18-143; O.7368, 7807; C62, § 18-110; C75, C79, § 26-73; C91, § 26-48.06)

Sec. 118-506. Expenses of proceedings.

All costs and expenses of the proceedings on the petition pursuant to this article, including the cost of giving notice, shall be paid by petitioner.

(C62, § 18-143; O.7368, 7807; C62, § 18-110; C75, C79, § 26-74; C91, § 26-48.07)

Sec. 118-507. Limitations on property condemned.

The property to be taken under this article for right-of-way for electric transmission or distribution purposes shall not exceed 200 feet in width, not including rights of reasonable access thereto. The property to be taken under this article for any electric substation shall not exceed 40 acres in area. The property to be taken for any electric generating plant under this article shall not exceed 160 acres.
(C62, § 18-144; O.7368, 7807; C62, § 18-111; C75, C79, § 26-75; C91, § 26-48.08; O.13,259)

Sec. 118-508. Post-council procedure.

The procedure to be followed by the petitioner after receiving authority for condemnation from the city council pursuant to this article shall be as set forth in I.C. ch. 6B.
(C62, § 18-145; O.7368, 7807; C62, § 18-112; C75, C79, § 26-76; C91, § 26-48.09; O.13,259)

Secs. 118-509—118-535. Reserved.

ARTICLE V. GAS*

Sec. 118-536. Permit for connection and use.

Unless a person shall have first obtained a permit authorizing the connection and use, as provided in section 118-537 of this article, no person shall connect any apparatus or equipment using gas supplied from the gas distribution system of any public utility furnishing gas service in the city for the purposes of any commercial or industrial use, other than space heating, which requires more than 200 cubic feet of gas input per hour or any space heating.
(O.5316; C54, C62, § 23-2; C75, C79, C91, § 26-77)

Sec. 118-537. Rules and regulations covering application and issuance.

Any public utility supplying gas to the city citizens is directed to prepare rules and regulations to govern the filing of an application and the issuance of a permit provided for in section 118-536 of this article. These rules and regulations shall be fair and reasonable and not discriminatory. They, together with any amendments or modifications thereof, shall be published in a newspaper of general circulation in the city, and a copy thereof shall be filed with the city clerk for public inspection and shall be effective upon ratification and approval by the city council. Such rules and regulations shall contain, among others, the conditions under which gas service for any purpose will be disconnected from any premises wherein there has been installed or connected to the gas service mains of any public utility supplying gas for public consumption in the city any apparatus or equipment prohibited by section 118-536 of this article. They shall also contain the conditions under which gas service shall be restored when the prohibited use has been terminated.
(O.5316; C54, C62, § 23-3; C75, C79, C91, § 26-78)

Sec. 118-538. Annual statement of persons supplying gas.

Every person at any time supplying public gas service in the city shall file with the city council, on or before March 1, 1960, and on March 1 of each succeeding year, a statement showing the applicable city gas rates and cost of gas purchased from pipeline companies for resale in the preceding calendar year, as compared with the similar date for the last preceding calendar year.
(C42, § 100-1; O.5500; C54, § 23-6; O.6113; C62, § 23-6; C75, C79, C91, § 26-79)

Sec. 118-539. Charging excessive rates.

Any person or any officer, agent or employee thereof who shall charge, demand, collect or receive any rate or compensation for gas furnished to the city or its inhabitants in excess of the rates fixed or authorized in this article shall be deemed guilty of a misdemeanor.
(C42, § 100-4; C54, C62, § 23-7; C75, C79, C91, § 26-80)

Sec. 118-540. Quality of gas.

(a) The gas charged for by any person supplying or distributing gas to the city shall be of the quality and shall contain the total heating value of not more than 1,050 nor less than 800 standard

*__Cross reference—__Gas franchise, app. D.

British thermal units per cubic foot, monthly average, as tested at the gas works under standard conditions, except in an emergency in which case the gas furnished shall be of such quality that it burns suitably in the customer's appliances. Monthly bills must be adjusted upon the basis of the actual average Btu furnished so that the customers shall not be charged for more therms than they actually receive.

(b) The furnisher of gas shall report to the city each month the quality and heating value of the gas delivered during the month. This report shall be subject to check and verification by a city representative. The calorimeter readings and heat value tests shall be made under the supervision of a representative of the city, whenever requested by the majority of the city council.
(C42, § 100-2; O.4828; C54, C62, § 23-10; C75, C79, C91, § 26-81)

Sec. 118-541. Agreement of person supplying gas.

Any person supplying or distributing gas to the city or its inhabitants agrees to adjust or, if necessary, change all his or her customers' appliances for the proper use of natural gas without charge to its customers and also agrees that such person will maintain his or her gas works as a standby so as to protect his or her customers substantially for any shortage of natural gas.
(C42, § 100-2; O.4828; C54, C62, § 23-11; C75, C79, C91, § 26-82)

Sec. 118-542. Semiannual report of person supplying gas.

Any person in possession of the city streets or alleys for the purpose of supplying gas shall file a report with the city clerk on January 15 and July 15 of each year, giving the number of 1,000 feet of gas manufactured and furnished the city or its inhabitants during the previous six months and the amount per 1,000 feet received therefor. If any such person shall fail or refuse to file such report, he or she shall pay to the city the sum of $25.00 per day for each day the report is delayed.
(C42, § 100-7; C54, C62, § 23-13; C75, C79, C91, § 26-84)

Sec. 118-543. Person supplying gas to furnish meter and lay service pipe.

Any person supplying gas in the city shall furnish all necessary meters free and shall furnish and lay service pipe to the lot line free and from the lot line to the meter for not to exceed $0.15 per foot.
(C42, § 100-7; C54, C62, § 23-14; C75, C79, C91, § 26-85)

Sec. 118-544. Laying pipes in streets and alleys.

Any person who shall accept the rights and privileges provided for in this article and who has service pipes in the city streets and alleys may, when necessary, continue to lay his or her gas pipes and service pipes, provided that such pipes are so laid that they do not obstruct the water and other pipes and sewers laid and other necessary pipes which may be laid.
(C42, § 100-8; C54, C62, § 23-15; C75, C79, C91, § 26-86)

Sec. 118-545. Statement of proposed location of gas pipes; map; specifications.

Before any person operating or acquiring the right to supply gas service shall begin the work of installing and replacing gas main pipe underground, except as provided for in new subdivisions, such person shall file with the city engineer a written statement specifying the streets, alleys and public highways or parts thereof in which pipes are to be located, the approximate size of the pipes proposed to be used, and the distance from the surface of the street to the top of the pipes. This statement shall be accompanied by a map, plan or specifications which shall show the proposed location of the pipes with reference to streets, alleys and surface of the streets and the approximate dimensions of the pipes and manholes to be used therewith. The proposed locations may be thereupon changed by the city engineer if the locations shall in any way interfere with other pipes, conduits, or sewers placed underground. Such statement, map, plan or specifications so altered, after being corrected or changed, together with the original statement,

shall remain on file in the city engineer's office. All pipes and manholes shall be constructed in accordance with the corrected statement, plan, map or specifications.
(C91, § 26-86.01; O.11,694)

Sec. 118-546. Permit for excavation of street.

A permit to excavate in any street, alley or public highway for the purpose of constructing, repairing or relocating gas pipes, service pipes, and manholes under this article shall be issued by the building official. It shall be issued subject to this Code or any city ordinances relating to the issuance of permits for street excavations. No person shall excavate without such a permit.
(C91, § 26-86.02; O.11,694, 13,015)

Sec. 118-547. Excavations generally and indemnification related thereto.

In the location, construction or repair of any gas pipe or service pipe, no excavation shall be unnecessarily made, placed or continued, and any excavation or obstruction made or placed in any street, alley or public highway at any time or for any such purpose shall be properly guarded. Any pavement at any time or for any purpose whatever torn up or displaced under the terms of the permit provided for in section 118-546 of this article shall be properly and speedily replaced and put in proper order under the supervision of the city engineer, as provided by this Code and other city ordinances relating to the restoration of paving over street excavations. Any person owning such gas pipes or service pipes shall pay all damages for injury to persons or to the property of any property owner or corporation, as well as to the city, resulting from, occasioned by or growing out of negligence or improper construction in the laying, constructing or repairing of gas pipes or service pipes or the maintenance and use of the pipes. Such person shall fully indemnify and save harmless the city from and against all claims, actions or suits at law or in equity, of any nature, for damages to persons or property resulting from, occasioned by or growing out of the omission of the person or such person's servants or agents to properly guard any excavation or obstruction at any time or for any purpose whatsoever made, placed or caused by such person in any street, alley or public highway.
(C91, § 26-86.03; O.11,694)

Sec. 118-548. Indemnification.

The gas company shall indemnify and hold harmless the city from any loss or damages on account of injury to or death of persons or injury to property arising from or growing out of its negligence or the negligence of its agents, employees, contractor or subcontractors in the construction, maintenance and operation of the gas distribution system referred to in this article. It shall, at its own expense, defend any action at law or in equity brought against the city on account thereof. The city shall give the company prompt notice of the filing of any such claim or suit and extend its full cooperation in the defense thereof. The gas company shall not be liable for any loss or damage to property or injury to or death of persons, whether suffered by the city, its agents, employees or by any third person, resulting from the location, use or operation of gas or other equipment located on the city side of the point of delivery of such gas service or from gas present therein and escaping therefrom. The city shall indemnify and hold the gas company harmless from all such loss, damage, injuries or death, unless the act causing the loss, damage, injury or death is the result of fault or negligence on the part of the company.
(C91, § 26-86.04; O.11,694)

Sec. 118-549. Testing of meters by person supplying gas.

Any person supplying gas to the city or its inhabitants shall maintain adequate meter testing facilities, which shall at all working hours be available to the city chemist or the chemist's representative. When requested by any consumer, such person shall cause consumers' meters to be tested for accuracy by a competent meter tester, at which time the city chemist may be present, at no expense to the consumer. Such test shall not be requested by any individual consumer more often than every six months and, further, any such person when requested to do so by the mayor shall make an additional test of any consumer's

meter in the presence of the city chemist or the chemist's representative and without any expense to the consumer or the city. If upon a test the meter is found to be accurate within two percent, it shall be considered accurate for the purposes of this article. It shall, however, at this time be adjusted to register accurately within the limits of commercial metering instruments. If found to be slow or fast in excess of two percent, the consumer's bill shall be adjusted for a period of six months prior to the test.
(C42, § 100-5; C54, C62, § 23-16; C75, C79, C91, § 26-87)

Sec. 118-550. Testing of meters by city.

Whenever any city resident, who is at the time a consumer of gas for fuel purposes in the city, which gas is supplied by any person in the city engaged in that business, and if the amount of gas supplied and the amount to be paid therefor is determined by the passage of the gas through a meter or other device for determining such amounts, shall request of the city that the meter or other device shall be tested by the city to determine whether or not it is properly measuring the gas supplied to him or her and shall pay to the city the sum of $1.00 for the service, the department of public works shall cause the meter or other device to be tested and the result thereof, as to whether the meter is correct or slow or fast, certified in writing to the resident making the application and also to the person who may be using the meter or other device for measuring the gas.
(C42, § 100-6; C54, C62, § 23-17; C75, C79, C91, § 26-88)

Sec. 118-551. Construction of article; right of city to make additional regulations.

Nothing contained in this article shall be construed to grant any rights or franchises other than the right to continue to furnish the city and its inhabitants with gas so long as the city may consent thereto, and nothing in this article shall abridge the right of the city to make additional regulations as it may deem necessary to protect its citizens fully.
(C42, § 100-8; C54, C62, § 23-18; C75, C79, C91, § 26-89)

Sec. 118-552. Power of eminent domain for gas company.

Any individual or corporation authorized to construct, maintain and operate any gas works within the city is granted and vested, in accordance with I.C. § 364.2, with the power of eminent domain to appropriate and condemn so much private property within the corporate limits as may be necessary for the purpose of constructing, operating and maintaining its gas works therein, including all necessary facilities for the transmission or distribution of gas, together with other rights necessary or incident thereto. This power is to be exercised only under the following conditions and in the manner set forth in this article.
(C62, § 23-19; O.7369; C75, C79, C91, § 26-90)

Sec. 118-553. Petition.

The individual or corporation desiring to exercise the power granted in section 118-552 of this article as against a property in private ownership shall file with the city clerk a petition, addressed to the city council, which shall state:

(1) The name of the petitioner and the nature of the franchise held by him or her.

(2) A legal description of the parcel of real estate which the petitioner desires to condemn, the interest required therein, and the name and address of each owner thereof and each holder of a lien or interest therein, of record or known to the petitioner.

(3) The nature of the public use for which petitioner requires the parcel and the necessity thereof to the petitioner.

(C62, § 23-19; O.7369; C75, C79, C91, § 26-91)

Sec. 118-554. Description of property to be condemned.

Pursuant to section 118-553 of this article, the petitioner shall accompany the petition with a plat of each parcel described, showing thereon the property required and the legal description of the property.
(C62, § 23-19; O.7369; C75, C79, C91, § 26-92)

Sec. 118-555. Date of hearing.

Upon filing the petition under this article, the city clerk shall promptly refer the petition to the city council, which shall fix a date not more than 20 days after the filing of the petition when the petition shall be heard by the city council.
(C62, § 23-19; O.7369; C75, C79, C91, § 26-93)

Sec. 118-556. Notice of hearing.

At least seven days before the date fixed for the hearing pursuant to section 118-555, the city clerk shall give notice directed to each person who is named in the petition as an owner of the real estate sought to be condemned and as the holder of a lien or interest therein, at the address stated in the petition, by mailing by United States registered mail, return receipt requested, a notice substantially as follows:

To (name of each owner and lienholder):

You are hereby notified that a petition of (name of petitioner) is on file in the office of the clerk of the City of Des Moines, Iowa, in which petitioner requests authority from the City of Des Moines, under the provisions of I.C. § 364.2, to appropriate and condemn the following described real estate:

(Legal description of land)

You are further notified that the city council of the City of Des Moines, Iowa, will hear said petition at the council chambers in the city hall on the _____ day of _____, (Year) ____, during the course of its meeting commencing at _____ p.m. on said date, and that you may appear before the city council at said time and show cause why said petition should not be granted.

Clerk of the City of Des Moines, Iowa
(C62, § 23-19; O.7369; C75, C79, C91, § 26-94)

Sec. 118-557. Action by city council.

At time fixed for hearing on the petition filed under this article, the city council shall consider the petition and any objections thereto and such evidence as may aid it in determining the propriety of granting the petition. If, upon such hearing, the city council shall find that taking such land is reasonably necessary to serve the public use for which petitioner holds a franchise as contemplated by the statutes authorizing such power to be conferred, the council may adopt a resolution conferring the power to appropriate and condemn the property for the use intended.
(C62, § 23-19; O.7369; C75, C79, C91, § 26-95)

Sec. 118-558. Expenses of proceedings.

All costs and expenses of the proceedings held under this article, including the cost of giving notice, shall be paid by petitioner.
(C62, § 23-19; O.7369; C75, C79, C91, § 26-96)

Sec. 118-559. Limitations on property condemned.

The property to be taken by the exercise of eminent domain for right-of-way for gas transmission or distribution purposes shall not exceed 100 feet in width, not including rights of reasonable access thereto. The property so taken for any gas-generating or manufacturing or processing plant shall not exceed 160 acres in area.
(C62, § 23-20; O.7369; C75, C79, C91, § 26-97)

Sec. 118-560. Post-council procedure.

The procedure to be followed by the petitioner after receiving authority for condemnation from the city council under this article shall be that set forth in I.C. ch. 6B.
(C62, § 23-21; O.7369; C75, C79, C91, § 26-98)

Secs. 118-561—118-585. Reserved.

ARTICLE VI. WATER*

Sec. 118-586. Board of water works trustees.

The board of waterworks trustees established by a vote of the city electors, consisting of five members, is recognized and continued. Successors to members shall be appointed and members may be reappointed to such board by the mayor for staggered six-year terms, subject to the ap-

*__Cross references—__Plumbing code, § 26-986 et seq.; water pollution, § 42-211 et seq.; faulty water service, § 102-1091 et seq.

proval of the city council, all as provided by I.C. § 388.3. Vacancies which occur in the office of water board trustee shall be filled by appointment as provided in this section for the balance of the unexpired term of the board member formerly holding that office.
(C42, § 99-1; C54, C62, § 61-27; C75, C79, C91, § 26-99; O.13,625)

Sec. 118-587. Disqualification for membership on board of water works trustees.

No person shall be eligible for appointment on the board of water works trustees while he or she is a public officer or a salaried city employee.
(C42, § 99-1; C54, C62, § 61-30; C75, C79, C91, § 26-102; O.13,625)

Sec. 118-588. Compensation of members of board of water works trustees.

The compensation of members of the board of water works trustees shall be established by resolution of the city council at the time it appoints or reappoints members thereto.
(C42, § 99-1; C54, C62, § 61-34; C75, C79, C91, § 26-106; O.13,625)

Sec. 118-589. Powers and duties of water works board of trustees.

The water works board of trustees may exercise all powers of the city in relation to the water utility, with the following exceptions:

(1) The board may not certify taxes to be levied, pass ordinances or amendments, or issue general obligation or special assessment bonds.

(2) The title to all property of the city's water utility shall be held in the name of the city, but the water works board of trustees shall have all the powers and authorities of the city with respect to the acquisition by purchase, condemnation, or otherwise; lease, sale or other disposition of such property; and the management, control and operation of the property, subject to the requirements, terms, covenants, conditions, and provisions of any resolutions authorizing the issuance of revenue bonds, pledge orders, or other obligations which are payable from the revenues of the water utility and which are then outstanding.

(3) Immediately following a regular or special meeting of the water works board of trustees, the secretary shall prepare a condensed statement of the proceeding of the board and cause the statement to be published in a newspaper of general circulation in the city. The statement shall include a list of all claims allowed, showing the name of the person making the claim, the reason for the claim, and the amount of the claim. Salary claims must show the gross amount of the claim, except that salaries paid to persons regularly employed by the water works, for service regularly performed by them, must be published once annually showing the gross amount of the salary. The water works board of trustees shall each month prepare in pamphlet form the statement required in this subsection for the preceding month and shall furnish copies to the public library, the daily newspapers of the city, the city clerk, and to persons who apply at the office of the secretary, and the pamphlet shall constitute publication as required. Failure by the secretary to make publication is a simple misdemeanor, punishable as provided in section 1-15 of this Code.

(C42, § 99-3; C54, C62, § 61-38; C75, C79, C91, § 26-110; O.13,625)

Sec. 118-590. Annual report and financial statement.

The board of water works trustees shall make a detailed annual report to the council, including a complete financial statement.
(C42, § 99-5; C54, C62, § 61-41; C75, C79, C91, § 26-113; O.13,625)

Sec. 118-591. Discriminatory rates.

The water works board of trustees shall not provide use or service at a discriminatory rate, except to the city or its agencies, as provided in I.C. § 384.91.
(C42, § 99-8; C54, C62, § 61-46; C75, C79, C91, § 26-117; O.13,625)

Chapters 119—121

RESERVED

Chapter 122

VEGETATION*

Article I. In General

Sec. 122-1. Definitions.
Sec. 122-2. Reserved.
Sec. 122-3. Unauthorized interference with trees or shrubs.
Sec. 122-4. Hitching or anchoring articles.
Sec. 122-5. Permit to remove for construction purposes.
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Sec. 122-7. Permit for moving buildings.
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Sec. 122-12. Removal from public property.
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Sec. 122-16. Assessment for planting or care.
Sec. 122-17. Planting new vegetation; assessment.
Sec. 122-18. Publication of notice to plant new vegetation.
Sec. 122-19. Schedule of assessments.
Sec. 122-20. Filing assessment schedule for public inspection.
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Sec. 122-26. Penalties.
Secs. 122-27—122-55. Reserved.

Article II. Trees

Sec. 122-56. Permission for permanent anchorage.
Sec. 122-57. Guying poles to trees in emergency.
Sec. 122-58. Restriction on planting certain trees.
Sec. 122-59. Diseased tree inspection fees.

*__Cross references—__Buildings and building regulations, ch. 26; environment, ch. 42; parks and recreation, ch. 74; destruction of plant or animal life at park and recreation facilities, § 74-93; planning, ch. 82; streets, sidewalks, skywalks, and other public places, ch. 102; subdivisions, ch. 106; zoning, ch. 134.

ARTICLE I. IN GENERAL

Sec. 122-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Public highway means all of the land lying between property lines on either side of all public streets, boulevards and alleys.

Trees are not construed to include shrubs which do not grow higher than 15 feet.
(C42, § 76-2; C54, C62, § 59-1; C75, C79, C91, § 25-1)

Cross reference—Definitions generally, § 1-2.

Sec. 122-2. Reserved.

Editor's note—Ord. No. 15,044, § 1, adopted Sept. 12, 2011, repealed § 122-2, which pertained to powers and duties of sanitation administrator and derived from Code 1954, Code 1962, § 59-2, Code 1975, § 25-2; Ord. No. 9090; Code 1979, Code 1991, § 25-2; Ord. No. 11,950.

Sec. 122-3. Unauthorized interference with trees or shrubs.

No person shall remove, prune, cut, molest, break, deface, destroy, spray, repair or do surgery work upon any tree or part thereof or in any manner interfere with, disturb or injure any tree, shrub or plant upon the public property of the city nor shall any chemical be used for the control of insects or diseases or for any other reason. No person shall permit any chemical, either solid or fluid, to seep, drain or be emptied on or about any tree, shrub or plant that is or may be growing upon any public property of the city without first obtaining a permit from the forestry division.
(C42, § 76-3; C54, C62, § 59-3; C75, § 25-3; O.9090; C79, C91, § 25-3)

Sec. 122-4. Hitching or anchoring articles.

No person shall be permitted to hitch or fasten any animal to any tree or shrub or fasten to for the purpose of anchorage any wire, rope, chain or cable nor shall any person nail, tie or in any manner fasten any card, sign, poster, board or any other article to any tree, shrub or plant that is or may be growing upon any public property of the city.
(C42, § 76-4; C54, C62, § 59-4; C75, C79, C91, § 25-4)

Sec. 122-5. Permit to remove for construction purposes.

Any person desiring to remove a live tree or shrub standing on a street or parking thereof for construction of walks, drives, buildings or any other structures for his or her own gain or purposes shall first obtain a permit from the forestry division. If a permit is issued the permittee must pay the cost of removal of such tree or shrub or the permittee may remove the tree or shrub at the permittee's own expense.
(C42, § 76-11; C54, C62, § 59-16; C75, C79, C91, § 25-7)

Sec. 122-6. Protection during excavation or construction.

All trees, shrubs or plants within the limits of any street, boulevard or highway or other property of the city near any excavation or construction of any building or structure shall be guarded with a good substantial frame or box not less than four feet square and six feet high. All building material or other debris shall be kept at least three feet from any tree, shrub or plant.
(C42, § 76-5; C54, C62, § 59-7; C75, C79, C91, § 25-8)

Sec. 122-7. Permit for moving buildings.

Every person, whether licensed or otherwise, moving any building or other structure of either wood, metal, stone or concrete, measuring over eight feet six inches wide and 12 feet high, measuring from the surface of the roadway, along any street or highway within the city shall, in addition to other permits required by this Code or other city ordinances, procure a permit from the forestry division. He or she shall also file a notice with the forestry division, setting out the date such structure is to be moved, the location from and to which the structure will be moved and the

route to be taken, and in so doing no tree, shrub or plant on any street or highway shall be damaged. (C42, § 76-8; C54, C62, § 59-10; C75, C79, C91, § 25-9)

Cross reference—Moving of houses and heavy equipment, § 102-996 et seq.

Sec. 122-8. Deposit to cover damages for moving buildings.

Upon procuring a permit as required in section 122-7 of this article, the permittee shall deposit with the forestry division a sum sufficient to cover the cost of inspection and possible damage that may result. After such structure has been moved so, much of the deposit as shall remain, after a reasonable inspection fee and damages have been deducted therefrom, shall be returned to the permittee.
(C42, § 76-8; C54, C62, § 59-11; C75, C79, C91, § 25-10)

Sec. 122-9. Denial of permit to move buildings.

The forestry division shall have authority to refuse the issuance of a permit to move buildings or change the proposed route of the moving if the moving will cause damage to any property.
(C42, § 76-8; C54, C62, § 59-12; C75, C79, C91, § 25-11)

Sec. 122-10. Trim specifications.

(a) Any person trimming trees or causing trees, bushes and other plants to be trimmed under the authority of this section or section 118-477 of this Code, if the person wishing to trim is not himself or herself the owner, shall:

(1) Cause written notice to be given to the owner, occupant or person in control of the property at least 15 days prior to any trimming; provided, however, notice shall not be required if trimming is necessary to restore electrical service or relieve a public emergency resulting from storm, accident, similar casualty, or other cause which immediately threatens electrical service or the public safety. The notice shall state the nature of the trimming to be performed; the person's right to trim the tree, shrubbery, bush or other plants; the date when such trimming must be completed; if the owner desires to do the trimming; and whether an assessment or charge will be imposed by such person for trimming the tree, bush or other plant.

(2) Trim trees, bushes and plants to the extent necessary to remove obstruction to protect lives and property.

(3) Employ persons skilled in tree trimming so that the life and general aesthetic qualities of the tree are preserved.

(b) The owner of any tree, shrub or plant protruding into or overhanging a street or sidewalk shall trim the branches thereof to remove any obstruction of the view of any streetlamp, street sign, traffic control device or street intersection. Notwithstanding the requirements of section 114-14 of this Code, a clear space of eight feet above the surface of the sidewalk and a clear space of 12 feet above the surface of the street must be maintained. All trimming shall conform to the specifications in subsection (a) of this section and to those contained in section 114-14 of this Code if determined by the city engineer to be applicable.

(c) The forestry division may order the removal of any tree, shrub or plant or any part thereof which does not conform to the specifications of subsection (b) of this section. Notice shall be given to the owner of the property as set forth in subsection (a) of this section. If the owner, occupant or person in control fails to comply with the notice, the forestry division shall cause the obstructing branches or foliage to be removed and shall submit the costs incident to the service of notice and removal to the city council, which shall certify the costs to the county auditor for collection with and in the same manner as general property taxes. However, if the director of the division determines that a hazardous condition exists which constitutes an immediate danger to public safety because of the extensive nature or location of an obstruction caused by any tree, shrub, plant or any part thereof, the director may cause the removal thereof forthwith without notice, and such costs may be assessed in the same

manner as provided in this subsection, after notice to the property owner and opportunity for hearing before the city council is given.

(d) Except as provided by subsection (c) of this section, no tree, bush or shrub shall be removed without the written consent of the owner of the property upon which the tree, bush or shrub is located.

(e) Nothing in this section shall be construed to affect the rights of a landowner as against a neighboring landowner.
(C42, § 76-7; C54, C62, § 59-9; C75, § 25-12; O.9251; C79, § 25-12; O.10,727; C85, § 25-12; O.11,187, 11,297, 11,500, 11,616; C91, § 25-12; O.11,950)

Sec. 122-11. Permitting dead or diseased vegetation to stand.

(a) No property owner shall maintain or permit to stand upon his or her property any tree, shrub, plant or part thereof which is dead, diseased, or so damaged as to be a menace to public safety.

(b) When the forestry division determines that any tree, shrub, plant or part thereof is dead, diseased, or so damaged as to be a menace to public safety, the division may request the city council to direct the property owner to remove the tree, shrub or plant or part thereof within 30 days or to appear before the city council for hearing on the matter during such period to show cause why the tree, shrub, plant or the appropriate part thereof should not be removed by the city with the cost of removal assessed against the property owner. Such notice to show cause and notice of the proposed city council action shall be by certified mail to the property owner of record.

(c) If, after hearing, the city council approves removal, the city clerk shall send a copy of the resolution by certified mail to the property owner directing such removal within 30 days or the city shall remove and assess the cost of removal against the property owner.
(C42, § 76-6; C54, C62, § 59-8; C75, § 25-13; O.9251; C79, § 25-13; O.10,727; C85, § 25-13; O.11,560; C91, § 25-13)

Sec. 122-12. Removal from public property.

The forestry division may remove or cause to be removed all trees, shrubs, plants or parts thereof upon the public streets or highways or other city property within the city when removal shall be beneficial to the public peace, health and safety, or for public improvements or if such trees, shrubs or plants constitute a public nuisance or are dead or diseased or detrimental to the growth of adjacent trees, plants or shrubs growing in the public streets or other city property.
(C42, § 76-10; C54, C62, § 59-15; C75, C79, C91, § 25-14)

Sec. 122-13. Removal of vegetation infected with Dutch elm disease or oak wilt.

(a) In accordance with I.C. § 364.12, any owner, occupant or person in control of any property shall remove at his or her own expense any tree, brush, wood or debris infected with Dutch elm disease or oak wilt or any dead oak or elm which retains bark found thereon when so notified by the forestry division. The division shall cause to be mailed to such owner, occupant or person in control written notice that he or she may appear before the city council at an appointed time not less than 14 days from the date of mailing to show cause why the infected tree, brush, wood or debris should not be declared a public nuisance. At that meeting the city council may resolve and declare the infected tree, brush, wood or debris to be a public nuisance and may order its removal by the owner, occupant or person in control within 30 days from the date of service of a copy of the resolution and order on the owner, occupant or person in control; provided, however, upon timely receipt of a request in writing from the property owner showing inability to perform, hardship or other good cause, the city manager may grant an extension of time to a maximum of an additional 30 days for the removal by the owner, occupant or other person. No extension of time exceeding 60 days may be granted without prior approval by the city council.

(b) If the owner, occupant or person in control fails to comply with the resolution and order of the city council to so remove the specified public

nuisance, the forestry division shall cause that public nuisance to be removed and shall submit the costs incident to the service and removal to the city council, which shall certify the costs to the county treasurer for collection with and in the same manner as general property taxes.
(C54, § 59-15.01; O.6673; C62, § 59-15.01; O.7373, 7404, 7486, 7881, 8547; C75, § 25-15; O.9090, 9251; C79, C85, § 25-15; O.11,524; C91, § 25-15)

Sec. 122-14. Obstruction of enforcement.

No person shall hinder, obstruct or otherwise interfere with the agents or employees of the department of public works while engaged in carrying out this chapter.
(C54, § 59-15.02; O.6673; C62, § 59-15.02; O.7486; C75, C79, § 25-16; O.10,727; C91, § 25-16; O.11,950)

Sec. 122-15. Permit to plant in streets.

(a) No person shall plant or set out any tree in or on any public highway, street or boulevard or other city property without first obtaining a permit from the forestry division, which shall designate where such plantings may be done.

(b) The permit shall be denied if such planting is likely to create a public danger or nuisance or would be harmful to existing trees, shrubs, flowers, plants or facilities.

(c) A person obtaining the permit shall be exempt from the permit requirements of section 102-660 of this Code.
(C42, § 76-9; C54, C62, § 59-13; C75, C79, C91, § 25-17; O.14,314)

Sec. 122-16. Assessment for planting or care.

The cost of planting, pruning, caring for, removing or maintaining trees and shrubs, in whole or in part, upon the public streets may be assessed against the lots and parcels of land in front of which such trees or shrubs are planted and maintained.
(C42, § 76-12; C54, C62, § 59-18; C75, C79, C91, § 25-20)

Sec. 122-17. Planting new vegetation; assessment.

No plantings of new trees or shrubs shall be made and assessed against the abutting property owners except by action of the city council.
(C42, § 76-12; C54, C62, § 59-19; C75, C79, C91, § 25-21)

Sec. 122-18. Publication of notice to plant new vegetation.

Notice of a proposal to plant new trees or shrubs must be made by publication in two newspapers of general circulation in the city 15 days prior to final action thereon.
(C42, § 76-12; C54, C62, § 59-20; C75, C79, C91, § 25-22)

Sec. 122-19. Schedule of assessments.

The cost of planting new trees and shrubs and the maintenance thereof, including removal and partial removal of trees and shrubs, shall be certified to the city council by the division of forestry in a scheduled form setting forth the nature of the work done, the amount of the special assessment, the lots or specific portions thereof against which assessed, and the names of the owners thereof as far as practicable.
(C42, § 76-12; C54, C62, § 59-21; C75, C79, C91, § 25-23)

Sec. 122-20. Filing assessment schedule for public inspection.

A schedule of assessments for planting of new trees and shrubs and maintenance, including removal and partial removal of trees and shrubs, shall be filed with the city clerk for public inspection.
(C42, § 76-12; C54, C62, § 59-22; C75, C79, C91, § 25-24)

Sec. 122-21. Objections to assessment schedule.

Before final adoption of the schedule of assessments provided for in this article, the city council shall give notice by two publications in each of two newspapers published in the city, stating that the schedule is on file in the office of the city clerk

and that, within 20 days after the first publication, all objections thereto or to the prior proceedings, on account of errors, irregularities or inequalities, must be made in writing and filed with the city clerk.
(C42, § 76-12; C54, C62, § 59-23; C75, C79, C91, § 25-25)

Sec. 122-22. Adoption of assessment schedule.

After the expiration of the 20-day period mentioned in section 122-21 of this article, the city council shall consider objections to the schedule of assessments, make the necessary corrections and make, approve and adopt the special assessments as shown in the schedule.
(C42, § 76-12; C54, C62, § 59-24; C75, C79, C91, § 25-26)

Sec. 122-23. Certifying assessment schedule for collection.

Upon final adoption of special assessments as shown in the schedule of assessments made under this article, the city council shall cause the schedule of assessments to be certified to the county treasurer with directions that the cost of the improvements or services as scheduled shall be assessed against the parcels of property designated therein, in the amounts set forth thereby, and that such amounts shall be collected as other special assessments.
(C42, § 76-12; C54, C62, § 59-25; C75, C79, C91, § 25-27)

Sec. 122-24. Interference with employees.

No person shall hinder, prevent or interfere with the city's agents or employees while engaged in carrying out this chapter.
(C42, § 76-13; C54, C62, § 59-26; C75, C79, C91, § 25-28)

Sec. 122-25. Effect on city electric, light and power.

Nothing in this chapter shall be construed to affect the provisions of article IV of chapter 118 of this Code, pertaining to city electric, light and power, except as otherwise stated in this chapter.
(C42, § 76-15; C54, C62, § 59-27; C75, C79, C85, § 25-29; O.11,384; C91, § 25-29)

Sec. 122-26. Penalties.

Any person who fails to perform an act required by this chapter or who commits an act prohibited by this chapter shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.
(C91, § 25-31; O.11,950, 13,648, 15,608)

Secs. 122-27—122-55. Reserved.

ARTICLE II. TREES

Sec. 122-56. Permission for permanent anchorage.

Permission may be granted by the forestry division for permanent anchorage to trees if good practice in line construction indicates the desirability and the elimination of stubs or poles will result by so doing.
(C42, § 76-4; C54, C62, § 59-6; C75, § 25-5; O.9090; C79, C91, § 25-5)

Sec. 122-57. Guying poles to trees in emergency.

If storms or other emergencies occur, poles may be guyed temporarily to trees.
(C42, § 76-4; C54, C62, § 59-5; C75, C79, C91, § 25-6)

Sec. 122-58. Restriction on planting certain trees.

(a) No tree shall be planted in any of the public highways, streets or alleys in the city which is not identified as a recommended street tree for use under the circumstances of that location in the list of recommended tree species approved by the city council by resolution.

(b) No trees may be planted in any of the public highways, streets or alleys in the city where there is less than 2½ feet of soil on all

sides of such tree, and not more than two trees can be planted on the parking in front of a 50-foot lot. No conifers or evergreens should be planted between the sidewalk and the curb of any city street for safety considerations. No such planting shall be any closer than five feet from any fire hydrant nor closer than 30 feet to another tree.
(C42, § 76-9; C54, C62, § 59-14; C75, C79, C91, § 25-18; O.11,950, 14,889)

Sec. 122-59. Diseased tree inspection fees.

(a) For the purpose of this section, the term "private property" is defined as property not owned by the city.

(b) Fees for city inspection of a tree shall be paid to the city treasurer in an amount set therefor by resolution of the city council, provided fees for inspections not requested by the owner or the owner's representative shall be assessed only against those trees showing evidence of disease which requires removal of the tree.
(C79, § 25-30; O.10,065, 10,727; C91, § 25-30)

Chapters 123—125

RESERVED

Chapter 126

VEHICLES FOR HIRE*

Article I. In General

Secs. 126-1—126-25. Reserved.

Article II. Buses

Sec. 126-26. Definitions.
Sec. 126-27. Obstructing or interfering with operation.
Sec. 126-28. Separation of operator and passengers.
Sec. 126-29. Unlawful use of transfers.
Sec. 126-30. Throwing missiles at buses.
Sec. 126-31. Prohibited conduct of passengers.
Sec. 126-32. Persons in violation.
Secs. 126-33—126-60. Reserved.

Article III. Reserved

Secs. 126-61—126-115. Reserved.

Article IV. Reserved

Secs. 126-116—126-225. Reserved.

Article V. Reserved

Secs. 126-226—126-260. Reserved.

*__Cross references—__Businesses, ch. 30; planning, ch. 82; streets, sidewalks, skywalks, and other public places, ch. 102; traffic and vehicles, ch. 114.

ARTICLE I. IN GENERAL

Secs. 126-1—126-25. Reserved.

ARTICLE II. BUSES*

Sec. 126-26. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Bus means any automobile, motorbus, trackless trolley, jitney or other self-propelled vehicle not operated upon fixed rails or tracks, used for the public transportation of passengers in the city for compensation, either between fixed termini or over a regular route, or under a special charter or contract if designed to transport 16 or more passengers including the driver, except those buses owned by school corporations and used exclusively in carrying school children to and from schools.
(C42, § 24-4; C54, C62, § 12-1; C75, C79, § 9-13; O.10,204; C79, C91, § 19-12; O.15,354)

Cross reference—Definitions generally, § 1-2.

Sec. 126-27. Obstructing or interfering with operation.

(a) No person shall place any wood, stone or other substance in the path of any bus in such a manner as to obstruct the bus or interfere with its operation.

(b) No person shall interfere in any way with the operation of any bus.

(c) No operator or driver of any bus, at any time, shall allow passengers to overload or crowd the bus in a manner to interfere with the safe and reasonable operation of the vehicle.
(C42, §§ 24-8, 104-7, 104-8; C54, C62, § 12-5; C75, § 19-30; O.9141; C79, § 19-30; O.10,204; C79, C91, § 19-13)

*__State law references—__Authority to regulate vehicles for hire, I.C. § 321.236(7); authority to grant franchises for public transit, I.C. § 364.2(4).

Sec. 126-28. Separation of operator and passengers.

Every person controlling, operating or using any bus shall cause to be affixed on the floor of the vehicle a white line extending from the back of the seat of the operator of the vehicle to a point in the center of the righthand front door.
(C42, § 104-8.01; O.5263; C54, C62, § 12-6; C75, C79, § 19-31; O.10,204; C79, C91, § 19-14)

Sec. 126-29. Unlawful use of transfers.

No person shall use, assign or exchange any transfer used by any bus in violation of the transfer regulations provided for its use.
(C42, § 104-9; C54, C62, § 12-7; C75, C79, § 19-32; O.10,204; C79, C91, § 19-15)

Sec. 126-30. Throwing missiles at buses.

No person shall throw any stone, wood, snow or other substance at or into any bus or at any person in or on such bus.
(C42, § 104-10; C54, C62, § 12-8; C75, C79, § 19-33; O.10,204; C79, C91, § 19-16)

Sec. 126-31. Prohibited conduct of passengers.

No person shall, while a passenger on any bus, do any of the following acts:

(1) Smoke or possess any lighted or smoldering pipe, cigar or cigarette, except in a place provided for smoking therein by the owner thereof;

(2) Consume any beverages, food or alcohol;

(3) Spit, urinate, or defecate in or upon or from any part of any bus;

(4) Throw, deposit or place any paper, bottles, cans or any other garbage or solid waste in or upon any bus;

(5) Throw any object of any kind within any bus or out any door or window of any bus;

(6) Play or operate any radio, television, tape player, record player or similar electronic sound-amplification device

unless the sound therefrom can only be heard through an earphone and is totally inaudible to all other passengers;

(7) Bring any pet or animal onto any bus, other than service dogs or assistive animals trained to aid blind, deaf or disabled individuals, or an animal in a cage or held exclusively on the lap of a rider;

(8) Stand or remain in front of any white line marked on the forward end of the floor of any bus while the bus is in motion or after being asked to step back behind the white line by the driver;

(9) Enter a bus through a rear door unless authorized to do so by the driver or other transit authority employee;

(10) Interfere with the bus driver's operation of the bus; and

(11) Wrestle, scuffle, fight or act in any manner which disturbs the peace and quiet of another person within or without of the bus or disrupts or impedes the safe operation of the bus.

(C79, § 19-17; O.10,204; C91, § 19-17)

State law reference—State smoking prohibitions, I.C. § 142B.1 et seq.

Sec. 126-32. Persons in violation.

The driver of a bus may refuse to transport and/or, at his or her discretion, may order off a bus any person violating this article and, upon refusal of any person to remove himself or herself from the bus upon directions to do so by the driver, may report such conduct to appropriate law enforcement officers for further action appropriate under state or local law.

(C79, § 19-18; O.10,204; C91, § 19-18)

Secs. 126-33—126-60. Reserved.

ARTICLE III. RESERVED*

Secs. 126-61—126-115. Reserved.

*__Editor's note—__Ord. No. 15,354, § 1, adopted March 9, 2015, repealed Art. III, §§ 126-61—126-89, which pertained to limousines and derived from Code 1962, §§ 26A-2—26A-23, as amended. See the Code Comparative Table for complete derivation.

ARTICLE IV. RESERVED†

Secs. 126-116—126-225. Reserved.

ARTICLE V. RESERVED‡

Secs. 126-226—126-260. Reserved.

†__Editor's note—__Ord. No. 15,354, § 1, adopted March 9, 2015, repealed Art. IV, §§ 126-116—126-155, 126-181—126-190, 126-216—126-225, which pertained to taxicabs and derived from Code 1942, §§ 23-2—23-5, 23-7—23-13, 23-15, 23-17, 23-18, 23-20—23-25, 23-27, 23-28, 23-30—23-32, 23-34.05, 23-36, 23-37, 23-40, 23-41, 23-43—23-46, as amended. See the Code Comparative Table for complete derivation.

‡__Editor's note—__Ord. No. 15,540, § 1, adopted Dec. 5, 2016, effective Jan. 1, 2017, repealed Art. V, §§ 126-226—126-260, which pertained to vehicle transportation services and derived from Ord. No. 15,354; Ord. No. 15,425.

Chapters 127—129

RESERVED

Chapter 130

WATERWAYS*

Article I. In General

Secs. 130-1—130-25. Reserved.

Article II. Riverfront Improvement Plan

Sec. 130-26. Planning and development of improvements.
Sec. 130-27. Approval.
Secs. 130-28—130-55. Reserved.

Article III. Obstruction of Natural Watercourses

Sec. 130-56. Prohibited generally.
Sec. 130-57. Construction permit.
Sec. 130-58. Ski jumps.
Sec. 130-59. Liability insurance.
Sec. 130-60. Removal of obstructions.
Sec. 130-61. Permit provisions.
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Secs. 130-63—130-90. Reserved.

Article IV. Navigation

Sec. 130-91. Definitions.
Sec. 130-92. Compliance with article.
Sec. 130-93. Registration number.
Sec. 130-94. Lights.
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Sec. 130-96. Overloading.
Sec. 130-97. Mufflers and cutouts on motorboats.
Sec. 130-98. Speed restrictions.
Sec. 130-99. Careless and reckless operation.
Sec. 130-100. Boat traffic rules.
Sec. 130-101. Riding on decks and gunwales.
Sec. 130-102. Water skiing.
Sec. 130-103. Marker buoys.
Sec. 130-104. Docks.
Sec. 130-105. Accidents.
Sec. 130-106. Prohibited areas.
Sec. 130-107. Open fuel containers prohibited.
Sec. 130-108. Speed restrictions on Prospect Road Boat Ramp and Birdland Marina Harbor and Boat Ramp.
Sec. 130-109. Prohibited fishing areas.
Sec. 130-110. Securing of watercraft to dock.
Sec. 130-111. Penalty.
Secs. 130-112—130-135. Reserved.

***Cross references—**Buildings and building regulations, ch. 26; environment, ch. 42; floodplains, ch. 50; parks and recreation, ch. 74; lakes and ponds at parks and recreation facilities, § 74-97; planning, ch. 82; streets, sidewalks, skywalks, and other public places, ch. 102; subdivisions, ch. 106; zoning, ch. 134.

Article V. Birdland Marina Regulations

Sec. 130-136. Illegal moorage.
Sec. 130-137. Illegal parking.
Sec. 130-138. Commercial use.
Sec. 130-139. Prohibited conduct.
Sec. 130-140. Fishing.
Sec. 130-141. Vessel movement.

ARTICLE I. IN GENERAL

Secs. 130-1—130-25. Reserved.

ARTICLE II. RIVERFRONT IMPROVEMENT PLAN

Sec. 130-26. Planning and development of improvements.

The plan and zoning commission may plan and develop improvements along rivers, streams, creeks and bodies of water, including the banks thereof, subject to the approval of the city council.
(C54, § 2-430; O.5931, 6082; C54, C62, § 46A-6; C75, C79, § 20-6; O.10,659; C79, C91, § 20-1)

Sec. 130-27. Approval.

No plan for any riverfront improvement affecting the city plan shall be finally approved by the city or the character or location thereof determined unless the proposal shall first have been submitted to the plan and zoning commission and the commission shall have had 30 days within which to file its recommendations.
(C54, § 46A-7; O.6082; C62, § 46A-7; C75, C79, § 20-7; O.10,659; C79, C91, § 20-2)

Secs. 130-28—130-55. Reserved.

ARTICLE III. OBSTRUCTION OF NATURAL WATERCOURSES

Sec. 130-56. Prohibited generally.

No person shall obstruct a natural watercourse so as to endanger personal property or cause the retarding or the prevention of the natural flow of surface waters in the watercourse.
(C42, § 113-6; C54, § 61-1; O.6212; C54, C62, § 46A-8; C75, C79, C91, § 20-8)

Sec. 130-57. Construction permit.

No person shall construct anywhere in the Des Moines River or Raccoon River or upon either of its banks, within the city limits, any dock, building or structure of any kind or character or place any obstruction therein or thereon, either by driving piling into the riverbed or otherwise, without first obtaining the consent and permission of the city council after recommendation by the plan and zoning commission and the engineering department.
(C42, § 113-7; C54, § 61-2; O.6212; C54, C62, § 46A-9; O.8358; C75, C79, § 20-9; O.10,659; C91, § 20-9)

Sec. 130-58. Ski jumps.

Any ski jump placed in the Des Moines River or Raccoon River shall comply with all the sections of this article, except as specified in this section. The following additional regulations shall apply:

(1) Each ski jump shall be equipped with two flashing amber lights, one on each side, which shall be in operation from sunset to sunrise. Orange reflectorized tape not less than four inches in width shall be attached around the base of each ski jump above the water line.

(2) Each ski jump shall be equipped with a movable frontpiece, also equipped with two flashing amber lights and cross-hatched with orange reflectorized tape, which shall be in place between sunset and sunrise to prevent use of the jump during that period.

(3) Each ski jump shall be maintained in good structural condition at all times, and its mooring system shall be maintained in a safe condition.

(4) Each ski jump shall be open to use by the general public, except that no person under the age of 16 shall be permitted to use the jump except under the supervision of a competent adult.

(5) Ski jumps may be placed in the river from April 1 to October 31 of each year, except that the director of public works, upon 48 hours' written notice to the owner, may require the temporary removal of the jump if a flood emergency occurs.

(6) Before placing any ski jump in the Des Moines River or Raccoon River, the owner thereof shall, in addition to the requirements of section 130-57 of this article,

obtain the consent and permission of the park and recreation department. Furthermore, no ski jump shall be moved from one location to another on such rivers without obtaining the consent and permission of the park and recreation department; provided, however, that nothing in this subsection shall be construed to require the owner of any ski jump to obtain the consent and permission of the park and recreation department to remove a ski jump from the rivers.

(C62, § 46A-9.01; O.8188, 8358; C75, C79, § 20-10; O.10,659; C91, § 20-10)

Sec. 130-59. Liability insurance.

No permit shall be granted to any person under section 130-57 of this article until such person has filed with the city clerk a certificate of general liability insurance naming the city as an additional insured in an amount not less than $1,000,000.00 for injury or damage to persons.

(C42, § 113-9; O.5508, 5587; C54, § 61-3; O.6212; C54, C62, § 46A-10; O.8188; C75, C79, § 20-11; O.10,659; C91, § 20-11)

Sec. 130-60. Removal of obstructions.

All persons who have placed obstructions of any kind or character in the Des Moines River or Raccoon River within the city limits or driven any piling into the beds of these rivers without the permission and consent of the city council after recommendation by the plan and zoning commission and the engineering department shall remove the obstruction immediately.

(C42, § 113-8; C54, § 61-4; O.6212; C54, C62, § 46A-11; C75, C79, § 20-12; O.10,659; C91, § 20-12)

Sec. 130-61. Permit provisions.

All permits issued under section 130-57 of this article shall contain a provision requiring the permittee to remove promptly from such rivers, their beds or banks all obstructions of every kind and character placed therein or thereon under any permit issued under section 130-57 of this article upon the expiration of such permit or whenever so ordered by the city council after recommendation by the plan and zoning commission and the engineering department.

(C42, § 113-10; C54, § 61-5; O.6212; C54, C62, § 46A-12; C75, C79, § 20-13; O.10,659; C91, § 20-13)

Sec. 130-62. Cancellation of permit.

The power to cancel any permit issued under this article and make such order of removal, whenever the public safety demands, is reserved.

(C42, § 113-10; C54, § 61-6; O.6212; C54, C62, § 46A-13; C75, C79, C91, § 20-14)

Secs. 130-63—130-90. Reserved.

ARTICLE IV. NAVIGATION*

Sec. 130-91. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Boat means any contrivance used or designated for navigation on water.

Motorboat means any boat propelled by machinery, or any boat attached to another boat propelled by machinery.

Visible means visible on a dark night with clear atmosphere for a distance of two miles for white lights and one mile for red or green lights.

(C54, §§ 46A-14, 46A-17; O.6212; C62, §§ 46A-14, 46A-17; C75, C79, C91, § 20-15)

Cross reference—Definitions generally, § 1-2.

Sec. 130-92. Compliance with article.

No person shall own or operate any boat or motorboat in violation of this article.

(C54, § 46A-15; O.6212; C62, § 46A-15; C75, C79, C91, § 20-16)

*__State law reference—__Water navigation regulations, I.C. ch. 462A.

Sec. 130-93. Registration number.

No person shall operate any boat required to be registered with the state natural resource commission or the United States Coast Guard, unless it is so registered.
(C54, § 46A-16; O.6212; C62, § 46A-16; C75, C79, C91, § 20-17; I.C. Ch. 462A)

Sec. 130-94. Lights.

No person shall operate any boat during the period between sunset and sunrise which is not equipped with lights displayed as follows:

(1) A white light aft (stern) to show all around the horizon. A combined lantern in the forepart of the vessel and lower than the white light aft, showing green to starboard and red to port, so fixed as to throw the light from right ahead to two points abaft the beam on their respective sides.

(2) Every boat other than a motorboat shall have a white light that is constant and so placed as to be visible from any direction.

(C54, § 46A-17; O.6212; C62, § 46A-17; O.8358; C75, C79, C91, § 20-18)

Sec. 130-95. Life preservers.

The owner or operator of every boat shall carry at least one United States Coast Guard approved life preserver, life belt, ring, buoy or buoyant cushion for each person on board, so placed as to be readily accessible.
(C54, § 46A-18; O.6212; C62, § 46A-18; O.8705; C75, C79, C91, § 20-19)

Sec. 130-96. Overloading.

No boat shall be loaded with passengers or cargo beyond its safe carrying capacity, taking into consideration weather and other existing operating conditions. The number of passengers shall never exceed the number authorized on the registration permit for that boat.
(C54, § 46A-19; O.6212; C62, § 46A-19; O.8358; C75, C79, C91, § 20-20)

Sec. 130-97. Mufflers and cutouts on motorboats.

No person operating a motorboat upon the rivers or waters of the city shall use any cutout or other apparatus or device which will allow the exhaust gases from the engine or motorboat to escape into the atmosphere without first passing through a silencer, expansion chamber or other contrivance suitable and sufficient for reducing, as far as may be reasonably practicable, the noises which would otherwise be caused by the escape of such gases. No motorboat shall be operated as provided in this section with the cutout open or in such a way as to produce loud noises. This section shall not apply to contests, races or performances authorized by the city council.
(C42, § 111-7; C54, §§ 32-31, 46A-20; O.6212; C62, §§ 32-31, 46A-20; C75, C79, §§ 17-30, 20-21; O.10,659; C91, § 20-21)

Sec. 130-98. Speed restrictions.

No person shall operate any boat in excess of the posted speed restrictions in any area designated by the city council after recommendation by the engineering department.
(C54, § 46A-21; O.6212; C62, § 46A-21; C75, C79, § 20-22; O.10,659; C91, § 20-22)

Sec. 130-99. Careless and reckless operation.

No person shall operate any vessel or manipulate any water skis, surfboard or similar device in a careless, reckless or negligent manner so as to endanger the life, limb or property of any person.
(C54, § 46A-22; O.6212; C62, § 46A-22; C75, C79, C91, §§ 20-23, 20-24)

State law reference—Similar provisions, I.C. § 462A.12(1).

Sec. 130-100. Boat traffic rules.

Boat traffic shall be governed by the following rules:

(1) Passing head-on, keep to the right.

(2) Passing at right angles, the boat at the right has right-of-way, other conditions being equal.

(C54, § 46A-24; O.6212; C62, § 46A-24; C75, C79, C91, § 20-25)

Sec. 130-101. Riding on decks and gunwales.

(a) No person operating a motorboat shall allow any person to ride or sit on either the starboard or port gunwales thereof or on the decking over the bow of such boat while underway unless such a boat is equipped with protective bow rail at least 18 inches high. Children under the age of 12 shall not be permitted on the bow at any time.

(b) Nothing in this section shall be construed to mean that passengers or other persons aboard such boat cannot occupy the decking over the bow of the boat to moor the boat or to cast off from mooring or for any other necessary purpose.
(C54, § 46A-25; O.6212; C62, § 46A-25; O.8358; C75, C79, C91, § 20-26)

Sec. 130-102. Water skiing.

(a) No person shall tow water skis, surfboards or similar devices on any river, stream, creek or body of water within the boundaries of the city except that part of the Des Moines River that lies north of the I-235 overpass, and such activities shall be excluded from that area as well when it is so posted, from time to time, upon recommendation of the engineering department.

(b) No person shall manipulate any water skis, surfboard or similar device without wearing a life jacket, life vest or ski belt at all times.

(c) All boats towing water skis, surfboards or similar devices shall have at least one other responsible occupant in addition to the operator, to observe and advise the movements of the rider.

(d) No person shall operate any boat towing or otherwise assisting a person on water skis, a surfboard or a similar device, nor shall any person manipulate water skis, a surfboard or a similar device between sunset and sunrise.

(e) No more than one skier shall be towed by any boat on weekends or holidays after 12:00 noon on the Des Moines River within the city limits.
(C54, § 46A-26; O.6212; C62, § 46A-26; O.8385; C75, § 20-27; O.8959; C79, § 20-27; O.10,659; C91, § 20-27)

Sec. 130-103. Marker buoys.

No person shall molest, destroy, move, tie to or otherwise interfere with the intended function of any marker or marker buoy.
(C54, § 46A-27; O.6212; C62, § 46A-27; C75, C79, C91, § 20-28)

Sec. 130-104. Docks.

No person shall install any dock, either fixed or floating in any watercourse, unless approved as to plans and location by the city council after recommendation by the plan and zoning commission and engineering department and compliance with article III of this chapter.
(C54, § 46A-28; O.6212; C62, § 46A-28; C75, C79, § 20-29; O.10,659; C91, § 20-29)

Sec. 130-105. Accidents.

The operator of any boat involved in an accident resulting in injury to any person or in damage to property shall immediately stop that boat at the scene of such accident and shall give his or her name, address, full identification of his or her boat and the name and address of the owner to the person struck or the operator or the occupants of the boat involved in the collision. He or she shall render assistance to any person injured in such accident and shall immediately thereafter report the accident to the police department.
(C54, § 46A-29; O.6212; C62, § 46A-29; C75, C79, C91, § 20-30)

Sec. 130-106. Prohibited areas.

No person shall operate any boat within the boundaries of any posted area designated by the city council after recommendation by the park and recreation department.
(C54, § 32-31.01; O.6405; C62, §§ 32-31.01, 46A-30; O.7203; C75, C79, §§ 17-31, 20-31; O.10,659; C91, § 20-31)

Sec. 130-107. Open fuel containers prohibited.

No person shall open a fuel container or permit a fuel container to remain open within the area known as the Birdland Boat Harbor; provided,

however, that nothing contained in this section shall be construed to prohibit the opening of fuel tanks on motorboats within the harbor to permit the connection of a fuel tank to a motor on a boat.
(C62, § 46A-31; O.8358; C75, C79, C91, § 20-32)

Sec. 130-108. Speed restrictions on Prospect Road Boat Ramp and Birdland Marina Harbor and Boat Ramp.

No person shall operate a motorboat at a speed which will create a wake within areas designated by regulatory buoys and signs on the Des Moines River. There shall be such an area in the vicinity of the Prospect Boat Ramp located on Prospect Road between Hickman Road and Martin Luther King, Jr. Parkway. Such area shall cover the full width of the river and shall extend 300 feet upstream and 300 feet downstream from the Prospect Road Boat Ramp. There shall also be an area in the vicinity of the Birdland Marina boating facilities located between Saylor Road and Birdland Drive. Such area shall cover the full width of the river and shall extend 300 feet upstream from the Birdland Marina Harbor entrance and 300 feet downstream from the public boat ramp.
(C62, § 46A-32; O.8358; C75, § 20-33; O.9274; C79, C91, § 20-33; O.11,960)

Sec. 130-109. Prohibited fishing areas.

(a) No person shall fish in that area known as Birdland Marina Harbor.

(b) No person shall fish from or throw or dangle any object from any bridge crossing the Des Moines River between Center Street and the north city limits, and from the East Martin Luther King Jr. Parkway and West Martin Luther King Jr. Parkway Bridge, or the Iowa Women of Achievement (Center Street pedestrian) Bridge or the Union Pacific (Red pedestrian) Bridge.

(c) No person shall fish from the Principal Riverwalk Multi-Use Trail along the Des Moines River.
(C62, § 46A-33; O.8358; C75, C79, § 20-34; O.9822; C91, § 20-34; O.15,294)

Sec. 130-110. Securing of watercraft to dock.

No person shall leave or cause to be left any boat, canoe, raft or any other form of watercraft unattended or unsecured upon any river, stream, lake or bank thereof. Securing shall be by means of a chain and lock or cable and lock.
(C54, § 32-46; O.6052; C62, § 32-46; C75, C79, § 17-32; O.10,659; C79, C91, § 20-35)

Sec. 130-111. Penalty.

Any person who fails to perform an act required by this chapter or who commits an act prohibited by this chapter shall be guilty of a misdemeanor punishable by fine as provided by section 1-15 of this Code or shall be guilty of a municipal infraction punishable by a civil penalty as provided by section 1-15 of this Code.
(O.15,608)

Secs. 130-112—130-135. Reserved.

ARTICLE V. BIRDLAND MARINA REGULATIONS

Sec. 130-136. Illegal moorage.

Any vessel moored, docked or in any way using harbor dock space without proper rental identification affixed to the vessel is considered illegal moorage and subject to immediate removal and impoundment at the owner's expense.
(O.13,679)

Sec. 130-137. Illegal parking.

(a) Vehicle parking is allowed in designated areas for the use of facilities in and around the marina harbor area only.

(b) Overnight parking of vehicles is allowed for harbor tenants only.

(c) Vehicles and trailers, other than harbor tenants, may be parked for no longer than 12 hours. Vehicles or trailers which remain longer than 12 hours shall be ticketed.

(d) Ticketed vehicles or trailers parked for more than 48 hours will be towed at the owner's expense.

(e) At no time shall any vehicle obstruct or block access to roadways, parking lots or gated harbor entrances.
(O.13,679)

Sec. 130-138. Commercial use.

Commercial use of the marina facilities, space, waters, real estate, or buildings is not allowed unless prior written permission to conduct such business has been granted by the city.
(O.13,679)

Sec. 130-139. Prohibited conduct.

(a) No person shall use any loud, violent, obscene or profane language while in the marina or on the adjacent premises, nor shall any person conduct himself or herself in a disorderly or obscene manner or commit any nuisance therein.

(b) Consumption of wine, beer or alcoholic beverages is prohibited, except on private vessels or by permit granted by the city.

(c) The use of grills or other cooking devices on wood docks is prohibited unless fire protection devices are placed between the grill or other cooking device and the dock.

(d) Storage of any private equipment including but not limited to tables, grills, benches, hoses, electric cords, coolers, etc. on the dock or land areas of the Marina facilities is prohibited.

(e) Deposit of garbage, trash, food product, oil, fuel debris, or other material, liquid or solid, in the water or on the land areas of the marina facilities is prohibited.

(f) Swimming, skin diving or scuba diving or use of any unlicensed vessel, raft or floating device in the marina harbor is prohibited.

(g) Children under 12 years of age must be accompanied by a parent or other responsible adult while on the docks and floats.
(O.13,679)

Sec. 130-140. Fishing.

(a) Fishing within the harbor from private vessels, public docks, or the shoreline is prohibited.

(b) Fishing from private vessels or the riverbank is prohibited in the area extending from the marina harbor entrance upstream to the dock leased to the Drake Rowing Club and downstream to a point 150 feet down river from the boat ramp.

(c) Fishing from the Birdland Drive bridge, located immediately north of the harbor, is prohibited.
(O.13,679)

Sec. 130-141. Vessel movement.

Movement of vessels within the harbor must be for the purpose of entering or exiting a dock only and must be accomplished without creating a wake.
(O.13,679)

Chapters 131—133

RESERVED

Chapter 134

ZONING ORDINANCE*

*__Editor's note—__Ordinance No. 15,816 was adopted on October 16, 2019. This ordinance, with an effective date of December 15, 2019, repealed Ch. 134 of the City Code as was previously published herein. The user's attention is directed to the new Zoning Ordinance: www.dsm.city.

Chapter 135

PLANNING AND DESIGN ORDINANCE*

*__Editor's note—__Ordinance No. 15,817, adopted on October 16, 2019, effective on December 15, 2019, enacted Ch. 135. The user's attention is directed to the new Planning and Design Ordinance: www.dsm.city.

APPENDIX A

CITY BOUNDARIES*

2-1. City limits described.

*__Editor's note—__This appendix consists of section 2-1 of the city's 1991 Code, as amended, setting out the boundaries of the city. The boundaries are set out in this appendix at the direction of the city. Amendments to section 2-1 are indicated by a parenthetical history note following the section. Obvious misspellings and punctuation errors have been corrected without notation. For stylistic purposes, headings and catchlines have been made uniform and the same style of citation to state statutes and expression of numbers in text as appears in the Municipal Code has been used. Additions made for clarity are indicated by brackets.

__Cross reference—__Any ordinances establishing or amending the city limits saved from repeal, § 1-20(10).

2-1. City limits described.

The boundaries of the city are defined and hereby declared to be as shown in subsections (a) through (h) of this section with excepted areas as shown in subsections (i) through (p) of this section as follows:

(a) *Section "A."* Beginning at the southeast corner of Section 31, Township 78 North, Range 24 West of the 5th P.M.; said point being on the south line of said Section 31; thence continuing west along the south line of Sections 36 and 35, Township 78 North, Range 25 West of the 5th P.M., to the east right-of-way line of Southwest Sixtieth Street extended; thence north along the southerly extended east right-of-way line of said Southwest Sixtieth Street, to a point 967.00 feet south of the south right-of-way line of Southwest Seventy-second Avenue (Pine Avenue); thence north 89° (degrees) 41′ (minutes) 16″ (seconds) west, 33.0 feet. Also being the west line of the east ½ of the southeast ¼ of said Section 35; thence north 00° 40′ 35″ west, 1000.0 feet to a point on the centerline of said Section 35; thence north 00° 06′ 32″ west, 2566.14 feet along the west line of the east ½ of the northeast ¼ of said Section 35, to a point on the south right-of-way line of Iowa Highway #5 (Army Post Road); thence continuing along the west line of the east ½ of the northeast ¼ of said Section 35 to the northwest corner of the east ½ of the northeast ¼ of said Section 35, also being the southeast corner of the west ½ of the southeast ¼ of Section 26, Township 78 North, Range 25 West of the 5th P.M.; thence west along the south line of said Section 26 to the west line of the southeast ¼ of said Section 26; thence north along the north and south centerline of said Section 26, to the south line of Section 23, Township 78 North, Range 25 West of the 5th P.M., thus ending Section "A."

(b) *Section "B."* Continuing on from Section "A"; thence north along the north and south centerline of Sections 23, 14, 11, and 2, of Township 78 North, Range 25 West of the 5th P.M.; to a point where the easterly extended south line of Lot 23 "Janet's Woods," an official plat, intersects said north and south centerline of said Section 2; thence west to the southwest corner of said Lot 23; thence north along the west line of Lots 23, 24, and 25 in said "Janet's Woods," to the northwest corner of said Lot 25; thence west along the south line of Lots 26, 13, and 14 in said "Janet's Woods," 395.0 feet; thence northwesterly along the westerly line of Lots 14, 15, 16, and 17 in said "Janet's Woods," 392.6 feet to the southeast corner of Lot 46 in said "Janet's Woods"; thence south 76° 38′ west along the southerly line of said Lot 46, 146.7 feet; thence north 13° 22′ west along the westerly line of said Lot 46, 37.9 feet; thence north 23° 07′ east along the westerly line of said Lot 46, 114.5 feet; thence north 42° 39′ west along the westerly line of said Lot 46, 205.0 feet; thence north 41° 04′ west, 232.1 feet; thence north 61° 52′ west, 414.0 feet, to the east and west centerline of said Section 2; thence east along the east and west centerline of said Section 2, 1662.5 feet to the center of said Section 2; thence north along the north and south centerline of said Section 2, to the south line of Section 36, Township 79 North, Range 25 West of the 5th P.M.; which is 1631.5 feet west of the southeast corner of said Section 36; thence continuing north to a point 1644.8 feet west of the northeast corner of said Section 36; thence west along the north line of said Section 36, to a point that is 481.0 feet east of the southerly extension of the west line of Lot 12 of "Westover," an official plat; thence north to the south line of said Lot 12; thence continuing north, 173.0 feet; thence east 90.0 feet; thence north 116.0 feet; thence east 24.25 feet; thence north 118.0 feet, to the south line of Lot 10, of said "Westover," said point being 595.25 feet east of the southwest corner of said Lot 10; thence east along the south line of said Lot 10, to a point being 280.0 feet west of the southeast corner of said Lot 10; thence

north and parallel with the east line of said Lot 10, to the south line of Lot 9 in said "Westover"; thence west along the south line of said Lot 9, to a point 326.48 feet east of the southwest corner of said Lot 9; said point being the southwest corner of Lot 10, "Rocklyn Estates Plat No. 3," an official plat; thence north along a line 326.48 feet east of and parallel with the west line of said "Westover," to the east and west centerline of Section 25, Township 79 North, Range 25 West of the 5th P.M.; thence east along the east and west centerline of said Section 25, to a point which is 1657.25 feet west of the east line of said Section 25; thence north to the north line of said Section 25, to a point which is 1669.7 feet west of the northeast corner of said Section 25; thence east along the south line of Section 24, Township 79 North, Range 25 West of the 5th P.M. to the north and south centerline of the southeast ¼ of said Section 24; thus ending Section "B."

(c) *Section "C."* Continuing on from Section "B"; thence north along the north and south centerline of the southeast ¼ of said Section 24, to the east and west centerline of said Section 24; thence east along the east and west centerline of said Section 24, to the southwest corner of the northwest ¼ of Section 19, Township 79 North, Range 24 West of the 5th P.M.; thence north along the west line of said Section 19, to the northwest corner of said Section 19, and being the southwest corner of Section 18, Township 79 North, Range 24 West of the 5th P.M.; thence continuing north along the west line of said Section 18, a distance of 1813.9 feet being 28.0 feet north of the westerly extension of the south line of Lot 3, Piekenbrock, an official plat; thence north 89° 53.5′ east, 112.02 feet; thence south 00° 01′ west, 28.0 feet; thence south 00° 7.5′ west, 24.33 feet to the north line of Lot 4 of said Piekenbrock; thence east, 614.2 feet along the north line of said Lot 4 to the northeast corner of said Lot 4; thence south along the east Lot lines of Lots 4, 5, 6, 7, 8, 9, 10 and 11 of said "Piekenbrock" to the southeast corner of said Lot 11; thence west to the northeast corner of Lot 12, of said "Piekenbrock"; thence south along the east line of Lots 12 and 13 of said "Piekenbrock," to the north right-of-way line of Meredith Drive, being 40.0 feet north of the south line of said Section 18; thence east along the north right-of-way line of Meredith Drive to the west line of Lot 15, "Piekenbrock," an official plat; thence north along the west line of said Lot 15 to a point 308.5 feet south of the north line of said Lot 15; thence east 50.0 feet; thence north 308.5 feet to the north line of said Lot 15; thence east along the north line of Lot 15, 16 and 17 of said "Piekenbrock," 340.0 feet to the east line of said Lot 17; thence south along the east line of said Lot 17 to the north right-of-way line of Meredith Drive; thence east along the north right-of-way line of Meredith Drive to the east right-of-way line of Northwest Fifty-third Court, also being the west line of Lot 155, of said "Piekenbrock"; thence south 40.0 feet to the north line of said Section 19; thence east 90.40 feet; thence south 50.0 feet to the south right-of-way line of Meredith Drive, also being the southwest corner of Lot B, Northwoods Townhomes, an official plat; thence east along the south line of said Lot B to the southeast corner of said Lot B; thence north 50.0 feet to the north line of said Section 19, being 376.0 feet west of the north ¼ corner of said Section 19; thence east 876.2 feet along the north line of said Section 19; thence north to the southwest corner of Lot 68, "Lovington," an official plat; thence continuing north along the west line of Lots 68 and 80 of said "Lovington," a distance of 470.0 feet; thence east along a line that is parallel with the north line of said Lot 80 to the east line of said Lot 80, a distance of 120.0 feet; thence north along the west line of said Lot 80 to the northeast corner of said Lot 80, a distance of 210.0 feet, also being the south right-of-way line of Northwest Forty-second Avenue and being the north-

west corner of Lot 8, Meredith Addition, an official plat; thence east along the south right-of-way line of Northwest Forty-second Avenue, 240.0 feet to the northeast corner of OutLot Y, of said Meredith Addition and the northwest corner of Lot 77 of said Lovington; thence south along the west line of Lots 77 and 71 of said Lovington to the southwest corner of said Lot 71; thence continuing south 40.0 feet to the north line of said Section 19, also being the centerline of Meredith Drive; thence east along the centerline of Meredith Drive and a 572.96 foot radius curve concave northwesterly 400.0 feet with a central angle of 40° 00′ 00″, a chord distance of 392.93 feet; thence northeasterly along said centerline and tangent of the last-described curve 65.55 feet; thence continuing northeasterly along said centerline and a 572.96 foot radius curve concave southeasterly 399.67 feet, with a central angle of 39° 58′ 00″, a chord distance of 391.61 feet to a point 310.3 feet north of the south line of said Section 18; thence east along said centerline of Meredith Drive, 832.0 feet to the east line of said Section 18 and 309.81 feet north of the southeast corner of said Section 18 and being a point on the centerline of Beaver Avenue; thence south along the east line of said Section 18, a distance of 309.81 feet to the southeast corner of said Section 18, also being the northwest corner of Section 20, Township 79 North, Range 24 West of the 5th P.M.; thus ending Section "C."

(d) *Section "D."* Continuing on from Section "C"; thence south along the west line of the northwest ¼ of said Section 20, a distance of 644.86 feet south of the north line of said Section 20; thence east 33.0 feet of the east right-of-way line of Beaver Avenue and being the south line of the north 150.0 feet of the south ten acres of the north 22 acres of the west 32 acres of the northwest ¼ of the northwest ¼ of said Section 20; thence east along said south line to a point 333.0 feet east of the west line of the northwest ¼ of said Section 20; thence north along a line that is 333.0 feet east of and parallel to the west line of the northwest ¼ of said Section 20, a distance of 150.0 feet; thence east 718.57 feet to the northeast corner of Lot 3, "North Woods Estates," an official plat; thence north along a line 1584.0 feet west of and parallel with the east line of the northwest ¼ of said Section 20 to the southeast corner of Lot 11, "Hankins Addition," an official plat; thence east, 208.2 feet; thence north along a line 1375.8 feet west of and parallel with the east line of the southwest ¼ of Section 17, Township 79 North, Range 24 West of the 5th P.M.; 226.1 feet to the north line of Lot 10, of said "Hankins Addition"; thence east along the north line of said Lot 10, a distance of 50.0 feet to the northeast corner of said Lot 10; thence south along the east line of said Lot 10, a distance of 140.1 feet, to the south line of the southwest ¼ of said Section 17, also the southeast corner of said Lot 10; thence east along the south line of the southwest ¼ of said Section 17; to a point 10.97 feet west of the southwest corner of said Section 17, being a point on the centerline of Lower Beaver Road; thence north 30° 50′ 30″ west, 63.90 feet along the centerline of Lower Beaver Road; thence continuing along said centerline and along a 1558.55 foot radius curve concave southwesterly with a central angle of 23° 50′ 00″, a chord distance of 643.65 feet and a chord bearing of north 46° 45′ 30″ west; thence north 31° 19′ 30″ east, 33.0 feet to the northeastern right-of-way line of Lower Beaver Road and to the south right-of-way line of the Des Moines and Central Iowa Railroad; thence southeasterly along the south right-of-way line of said railroad and parallel with and 50.0 feet normally distant from the centerline of said railroad along a 5779.58 foot radius curve, concave northeasterly, 220.94 feet, with a central angle of 2° 11′ 25″, a chord distance of 220.93 feet and a chord bearing of south 75° 20′ 58″ east; thence south 13° 33′ 19″ west, a distance of 50.0 feet; thence southeasterly along

the southerly right-of-way line of said railroad and parallel with and 100.0 feet normally distant from the centerline of said railroad along a 5829.58 foot radius curve, concave northeasterly, 952.70 feet, with a central angle of 9° 21′ 49″, a chord distance of 951.64 feet and a chord bearing of south 81° 07′ 35″ east; thence south 85° 48′ 30″ east along the southerly right-of-way line of said railroad, 55.38 feet, to the west line of Lot 15, "Debra Plaza Plat 3," an official plat; thence north 31° 06′ east, along the west line of said Lot 15, a distance of 55.67 feet, to a point on the southerly right-of-way line of said railroad; thence south 85° 21′ east along a line that is 50.0 feet south of and parallel with the centerline of said railroad, 581.63 feet; thence southeasterly along a 3981.36 foot radius curve, concave southwesterly, also along the southerly right-of-way line of said railroad 601.30 feet, with a central angle of 8° 39′ 12″, a chord distance of 600.73 feet and a chord bearing of south 81° 01′ 24″ east, to the northeast corner of Lot 1 of said "Debra Plaza Plat 3"; thence south 20° 10′ east, 64.11 feet to the southeast corner of said Lot 1; thence south 20° 28′ east along the easterly line of "Debra Plaza Plat No. 2," an official plat, 313.5 feet to a point on the south line of the southeast ¼ of Section 17, Township 79 North, Range 24 West of the 5th P.M., said point also being the southeast corner of said "Debra Plaza Plat No. 2"; thence continuing south 20° 28′ east, 1414.8 feet, to a point on the north line of the southeast ¼ of the northeast ¼ of Section 20, Township 79 North, Range 24 West of the 5th P.M., said point being the southeast corner of Lot 29, "Debra Park Plat No. 1"; thence east along the north line of the southeast ¼ of the northeast ¼ of said Section 20, to the west line of the northwest ¼ of Section 21, Township 79 North, Range 24 West of the 5th P.M.; thence south along the west line of the northwest ¼ of said Section 21, 140.0 feet; thence east, 140.0 feet south of and parallel with the north line of the southwest ¼ of the northwest ¼ of said Section 21, a distance of 65.0 feet; thence south 65.0 feet east of and parallel with the west line of the northwest ¼ of said Section 21, to the east and west centerline of said Section 21; thence east along said centerline to a point 233.27 feet west of the east line of said Section 21, said point being 50.0 feet east of the centerline of the Des Moines and Central Iowa Railroad right-of-way; thence north 0° 02′ east along the east right-of-way line of said Des Moines and Central Iowa Railroad, 436.6 feet; thence northeasterly along said east right-of-way line and a 4739.59 foot radius curve concave southeasterly, 254.71 feet, with a central angle of 3° 04′ 45″, a chord distance of 254.66 feet and a chord bearing of north 1° 34′ 22″ east; thence northeasterly along said right-of-way line and a 523.0 foot radius curve, concave southeasterly, 803.27 feet, with a central angle of 88° 00′ 00″, a chord distance of 726.61 feet and a chord bearing of north 47° 06′ 45″ east; thence south 88° 53′ 15″ east along the south right-of-way line of said Des Moines and Central Iowa Railroad, 162.58 feet; thence south 0° 24′ 34″ east, parallel with and 400.0 feet west of the east line of Lot 63, of the official plat of the north ¾ of Section 22, Township 79 North, Range 24 West of the 5th P.M., 150.0 feet; thence south 88° 53′ 15″ east, parallel with and 150.0 feet south of the south right-of-way line of the Des Moines and Central Iowa Railroad, 469.15 feet to the centerline of Morningstar Drive; thence south along a straight line being the centerline of Morningstar Drive to the intersection of the easterly extension of the south line of Lot 14, Des Moines Riverfront Plat No. 1, an official plat; thence south 89° 23′ 55″ west and 328.79 feet north of and parallel with the east and west centerline of said Section 22, a distance of 415.09 feet; thence south 0° 47′ 41″ east, 328.79 feet to the southeast corner of Lot 35 of the official plat of the north ¾ of said Section 22, said point being on the east and west centerline of said Section 22; thus ending Section "D."

(e) *Section "E."* Continuing on from Section "D"; thence east along the east and west centerline of said Section 22 and Section 23, Township 79 North, Range 24 West of the 5th P.M., to a point 1174.1 feet west of the east line of said Section 23, said point being the southerly extension of the west line of Lot 11, "Pagliai Place," an official plat; thence north to the southwest corner of said Lot 11; thence continuing north along the west line of Lot 11 and Lot 16 of said "Pagliai Place" to the northwest corner of said Lot 16; thence east along the north line of said Lot 16 to the southwest corner of Lot 48, "Iowa Garden Acres," an official plat; thence north along the west line of said Lot 48 to the northwest corner of said Lot 48; thence continuing north along the northerly extension of the west line of said Lot 48, a distance of 15.0 feet to the centerline of Northeast Forty-third Avenue; thence east along the centerline of Northeast Forty-third Avenue and parallel with the north line of said Lot 48, a distance of 66.0 feet to the northerly extension of the west line of Lot 49 of said Iowa Garden Acres; thence south along the northerly extension of said Lot 49, a distance of 15.0 feet to the northeast corner of said Lot 49; thence south along the west line of said Lot 49 to a point 157.5 feet north of the south line of said Lot 49; thence east and parallel with the south line of Lots 49 and 50 of said "Iowa Garden Acres" to the west line of Lot 51 of said "Iowa Garden Acres"; thence north along the west line of said Lot 51, to the northwest corner of said Lot 51; thence continuing north to the centerline of Northeast Forty-third Avenue, 15.0 feet; thence east along the centerline of Northeast Forty-third Avenue and parallel with the north line of Lots 51 and 52 of said Iowa Garden Acres, to the west right-of-way line of Northeast Fourteenth Street (U.S. Highway 69); said point being 50.0 feet west of the east line of the northeast ¼ of said Section 23; thence north along a line 50.0 feet west of and parallel with the east line of said Section 23, to the north line of Lot 1, of said "Iowa Garden Acres"; thence west along the north line of said Lot 1, to a point 200.0 feet east of the northwest corner of said Lot 1; thence south and parallel with the west line of said Lot 1, to the south line of said Lot 1; thence continuing south to the centerline of Northeast Forty-third Avenue 15.0 feet; thence west along the centerline of Northeast Forty-third Avenue and parallel with the south line of said Lot 1, a distance of 200.0 feet, to the southerly extension of the west line of said Lot 1; thence north along the southerly extension of the west line of said Lot 1, a distance of 15.0 feet; to the southwest corner of said Lot 1; thence north along the west line of said Lot 1 to the northwest corner of said Lot 1, of said "Iowa Garden Acres"; thence west along the south line of the north ¼ of the southeast ¼ of the northeast ¼ of said Section 23, to the west line of the southeast ¼ of the northeast ¼ of said Section 23; thence north along the west line of the southeast ¼ of the northeast ¼ of said Section 23, to the south right-of-way line of Northeast Forty-fourth Avenue (Hoffman Road); thence west along the south right-of-way line of Northeast Forty-fourth Avenue (Hoffman Road), to the east right-of-way line of Northeast Eighth Street; thence north to the north right-of-way line of Northeast Forty-fourth Avenue (Hoffman Road); thence east along the north right-of-way line of Northeast Forty-fourth Avenue (Hoffman Road) to the southeast corner of Lot 21, "Stickler Heights," an official plat; thence north along the east line of said Lot 21, to the northeast corner of said Lot 21; thence west along the north line of said Lot 21, to a point 788.1 feet west of the east line of the northeast ¼ of the northeast ¼ of said Section 23; thence north to the south right-of-way line of Northeast Forty-sixth Avenue (Broadway Avenue), said point being 40.0 feet south of the north line of said Section 23 and on the east line of Lot 10 of said "Stickler Heights"; thence west along the south right-of-way line of North-

east Forty-sixth Avenue (Broadway Avenue) and parallel with the north line of said Section 23, to the east line of Lot 8, said "Stickler Heights"; thence north along the east line of said Lot 8, to the northeast corner of said Lot 8, a distance of 7.0 feet; thence west along the south right-of-way line of Northeast Forty-sixth Avenue (Broadway Avenue) to a point 1998.08 feet west of the east line of said Section 23; thence north to the north line of Northeast Forty-sixth Avenue (Broadway Avenue), 33.0 feet north of the south line of the southeast ¼ of Section 14, Township 79 North, Range 24 West of the 5th P.M.; thence north 89° 55′ 30″ east along the north right-of-way line of said Northeast Forty-sixth Avenue (Broadway Avenue) 366.02 feet; thence north 00° 03′ 45″ west, 192.0 feet; thence south 89° 55′ 30″ west, 348.0 feet; thence south 00° 03′ 45″ east, 192.0 feet to the north right-of-way line of said Northeast Forty-sixth Avenue (Broadway Avenue); thence south 89° 55′ 30″ west along said right-of-way line 18.02 feet to the west line of the east ½ of the southwest ¼ of the southeast ¼ of said Section 14; thence north 00° 01′ 45″ west along said west line, 1293.06 feet to the north line of the southwest ¼ of the southeast ¼ of said Section 14; thence south 89° 56′ 30″ west along said north line, 665.22 feet to the northwest corner of the southwest ¼ of the southeast ¼ of said Section 14; thence north 00° 00′ 00″ east along the west line of the southeast ¼ of said Section 14, a distance of 479.65 feet to a point that is 183.0 feet south of the centerline of Interstate No. 35-80, as it is presently established; thence north 89° 55′ 30″ east, parallel with and 183.0 feet south of the south line of the north ½ of the northwest ¼ of the southeast ¼ of said Section 14, a distance of 1329.98 feet to the east line of the northwest ¼ of the southeast ¼ of said Section 14; thence south 00° 03′ 45″ east, 68.47 feet along the east line of the northwest ¼ of the southeast ¼ of said Section 14; thence south 85° 15′ 30″ east, 503.84 feet; thence north 0° 07′ 30″ west, 535.38 feet to the present north right-of-way line of Interstate 35-80; thence continuing north 0° 07′ 30″ west, 91.25 feet; thence north 89° 58′ 00″ east, 97.13 feet; thence north 0° 07′ 30″ west, 165.00 feet; thence north 89° 58′ 00″ east, 146.17 feet; thence north 0° 07′ 30″ west, 149.00 feet to the present south right-of-way line of Northeast Fiftieth Avenue (Goode Drive), being 16.00 feet south of the north line of the southeast ¼ of said Section 14; thence North along the southerly extension of the West line of Lot 19, Goode Heights, Plat One, an Official Plat; thence North along the West line of said Lot 19 and the West line of Lot 17, of said Goode Heights Plat One, to the Northwest corner of said Lot 17, and the South right-of-way line of Lot D, Goode Heights Plat One, (also know as Wauneta Drive and Northeast Fiftieth Place); thence continuing North along the northerly extension of said Lot 17 to the North right-of-way line of said Lot D, (Wauneta Avenue and Northeast Fiftieth Place) and the Southwest corner of Lot 2 of said Goode Heights Plat One; thence North along the West line of said Lot 2 to the Northwest corner of said Lot 2; thence East along the North line of said Lot 2 to the Northeast corner of said Lot 2, also being the Southwest corner of Lot 27, Goode Heights Plat Two, an Official Plat; thence North along the West line of said Lot 27 to the Northwest corner of said Lot 27 and the South right-of-way line of Lot A, (also known as Forrest Goode Road and Northeast Fifty-first Avenue) of said Goode Heights Plat Two; thence North along the northerly extension of the West line of said Lot 27 to the South line of Lot B, (Forrest Goode Road and Northeast Fifty-first Avenue) Pettit Place, an Official Plat; thence West along the South line of said Lot B (Forrest Good Road and Northeast Fifty-first Avenue), 38.0 feet; thence North to the North line of said Lot B (Forrest Goode Road and Northeast Fifty-first Avenue), 25.0 feet; thence East along the North line of said Lot B (Forrest Goode Road and

Northeast Fifty-first Avenue), 13.0 feet to Southeast corner of Lot 14 of said Pettit Place; thence North along the West line of said Lot 14, a distance of 350.0 feet; thence East along a line 350.0 feet North of and parallel with the South line of said Lot 14, a distance of 255.0 feet to the East line of said Lot 14, thence South along the East line of said Lot 14, a distance of 350.0 feet to the South line of said Lot 14, also being the North line of Lot B, (Forrest Goode Road and Northeast Fifty-first Avenue), of said Pettit Place; thence West along the North line of said Lot B,(Forrest Goode Road and Northeast Fifty-first Avenue), a distance of 50.0 feet; thence South to the South line of said Lot B, (Forrest Goode Road and Northeast Fifty-first Avenue), a distance of 25.0 feet, to the North line of Lot A, (Forrest Goode Road and Northeast Fifty-first Avenue), Goode Height Plat Two; thence West along the North line of said Lot A, (Forrest Goode Road and Northeast Fifty-first Avenue); to the intersection of the northerly extension of the East line of the west 68.0 feet of said Lot 27; thence South 25.0 feet to the North line of said Lot 27; thence South 120.0 feet; thence East to East line of said Lot 27; thence South along the East line of said Lot 27 to the South line of said Lot 27,a distance of 20 .0 feet to the Southeast corner of said Lot 27 and the North line of Lot 1, of said Goode Heights Plat One; thence East along the North line of said Lot 1, a distance of 10.0 feet to the Northeast corner of said Lot 1; thence South along the East line of said Lot 1, and the North line of said Lot D, (Wauneta Avenue and Northeast Fiftieth Place); thence West along the center line of said Lot D, (Wauneta Avenue and Northeast Fiftieth Place), 168.0 feet; thence South along the northerly extension of the West line of said Lot 17, a distance of 25.0 feet, and along the East line of Lots 17 and 19 of said Goode Heights Plat One, 280.0 feet, to the North line of Lot A(also known as Northeast Fiftieth Avenue and Goode Drive) of said Goode Heights Plat 1, to a point 228.0 feet West of the East line of said Lot A; thence South along the East line of the West 80.0 feet East of the East 328.0 feet of said Lot A, 15.0 feet, thence continuing South along the East line of the West 80,0 feet of the East 328.0 feet of Lot 19, of the Official Plat of the East - of the Northeast of Section 19, Township 79 North, Range 24 West of the 5th P.M., a distance of 5.0 feet, lying South of and adjoining said Lot A, (Northeast Fiftieth Avenue and Goode Drive); thence East to a point 117.0 feet West of the East line of the center line of said Section 14; thence South along a line 117.0 feet West of and parallel with the East line of said Section 14, a distance of 16.0 feet to the present South right-of-way line of Northeast Fiftieth Avenue and Goode Drive, and being the present West right-of-way line of Northeast Fourteenth Street (U.S. Highway 69); thence south 03° 06′ 50″ west, 149.25 feet along said right-of-way line; thence south 89° 58′ 00″ east along said right-of-way line; thence south 0° 07′ 30″ east along said right-of-way line, 90.00 feet; thence south 48 31′ 07″ west, 113.27 feet to the present north right-of-way line of Interstate 35-80; thence south 82° 23′ 04″ west along said right-of-way line 291.02 feet; thence south 82° 06′ 24″ west, along said right-of-way line, 338.99 feet; thence south 83° 03′ 30″ west along said right-of-way line, 53.97 feet; thence south 0° 07′ 30″ east, 535.38 feet to the south right-of-way line of said Interstate 35-80; thence south 85° 15′ 30″ east, 452.43 feet; thence southeasterly along a 285.57 foot radius curve, concave southwesterly, 424.32 feet, with a central angle of 85° 08′ 00″, a chord distance of 386.35 feet and a chord bearing of south 42° 41′ 30″ east; thence south 00° 07′ 30″ east, parallel with and 116.0 feet west of the east line of the southeast ¼ of said Section 14, 1131.04 feet; thence south 89° 55′ 30″ west, 125.7 feet; thence south 00° 07′ 30″ east, 191.7 feet to a point 50.0 feet north of the south line of the southeast ¼ of said Section 14; thence east along a line 50.0 feet north of and parallel

with the south line of said Section 14, a distance of 125.7 feet; thence south 102.0 feet to a point 52.0 feet south of the north line of Section 23, Township 79 North, Range 24 West of the 5th P.M. and 116.0 feet west of the east line of said Section 23; thence east along the south right-of-way line of Northeast Forty-sixth Avenue (Broadway Avenue) to the west right-of-way line of Northeast Fourteenth Street (U.S. Highway 69), said right-of-way line being 50.0 feet west of the east line of said Section 23; thence south along the west right-of-way line of said Northeast Fourteenth Street (U.S. Highway 69), 319.51 feet; thence west 10.0 feet to the northeast corner of Lot 15, "Stickler Heights," an official plat; thence south along said west right-of-way line and the east line of said Lot 15, a distance of 198.0 feet; thence east 10.0 feet to the northeast corner of Lot 16, of said "Stickler Heights"; thence south and 50.0 feet west of and parallel with the east line of said Section 23, to the east and west centerline of said Section 23; thence east along the east and west centerline of said Section 23, to the southwest corner of the northwest ¼ of Section 24, Township 79 North, Range 24 West of the 5th P.M.; thence continuing east along the east and west centerline of said Section 24, and Section 19, Township 79 North, Range 24 West of the 5th P.M., to a point 388.36 feet west of the west line of Section 20, Township 79 North, Range 23 West of the 5th P.M.; thence north 33.0 feet, to the southwest corner of Lot 54 "Douglas Acres Plat No. 8," an official plat; thence north along the west line of Lots 54, 53 and 52 of said "Douglas Acres Plat No. 8," a distance of 327.0 feet, to the northwest corner of said Lot 52; thence east along the north line of said Lot 52, a distance of 355.0 feet, to the northeast corner of said Lot 52; thence continuing east along the extended north line of said Lot 52, a distance of 33.0 feet to the centerline of East Twenty-ninth Street; thence north along the centerline of East Twenty-ninth Street, 555.12 feet, said point being 915.50 feet north of the south line of the northwest ¼ of said Section 20; thence east 33.0 feet to the northwest corner of Lot 85, "Long Acre," an official plat; thence east 287.0 feet to the southeast corner of Lot 83, of said "Long Acre"; thence north along the east line of Lots 83, 82, 81 and 80 of said "Long Acre" to the southwest corner of Lot 77 of said "Long Acre," 209.7 feet; thence southeasterly along the southerly line of Lots 77, 76, and 75 of said "Long Acre" to the southeast corner of said Lot 75, 534.3 feet; thence north along the east line of said Lot 75 to the northwest corner of Lot 74 of said "Long Acre," 555.3 feet; thence continuing north along the northerly extension of the west line of said Lot 74, a distance of 33.0 feet to the centerline of Hancock Street; thence east along the centerline of Hancock Street and parallel with the north line of said Lot 74, a distance of 131.0 feet; thence south along the northerly extension of the east line of said Lot 74, a distance of 33.0 feet to the northeast corner of said Lot 74: thence south along the east line of said Lot 74 to a point 335.0 feet north of the south line of Lot 73 of said "Long Acre"; thence east to a point on the east line of said Lot 73, said point being 335.0 feet north of the southeast corner of said Lot 73, a distance of 127.0 feet; thence north to the northwest corner of Lot 72 of said "Long Acre"; thence continuing north along the northerly extension of the west line of said Lot 72 a distance of 33.0 feet to the centerline of Hancock Street; thence east along the centerline of Hancock Street and parallel with the north line of Lots 72 and 71 of said "Long Acre," 258.0 feet; thence south along the northerly extension of the east line of said Lot 71, a distance of 33.0 feet, to the northeast corner of said Lot 71; thence south along the east line of said Lot 71 to the southeast corner of said Lot 71, a distance of 612.7 feet; thence east along the north line of Lot 62 of said "Long Acre" to the northeast corner of said Lot 62, a distance of 376.0 feet; thence continuing east along

the easterly extension of the north line of said Lot 62, a distance of 33.0 feet to the centerline of East Thirty-second Street; thence south along the centerline of East Thirty-second Street and parallel with the east line of Lots 62, 61 and 60 of said "Long Acre," 315.0 feet; thence west along the easterly extension of the south line of said Lot 60, a distance of 33.0 feet to the southeast corner of said Lot 60; thence continuing west along the north line of Lot 59 of said "Long Acre" to the northwest corner of said Lot 59; thence south along the west line of Lots 59 and 58 of said "Long Acre" to the southwest corner of said Lot 58; thence continuing south along the southerly extension of the west line of said Lot 58 to the east and west centerline of said Section 20, a distance of 186.75 feet; said point being 1052.38 feet east of the west line of said Section 20; thence east along the east and west centerline of said Section 20, and 21, Township 79 North, Range 23 West of the 5th P.M.; to the north and south centerline of said Section 21; thence north along the centerline of said Section 21, a distance of 296.43 feet, also being the centerline of East Forty-second Street; thence east along the westerly extension of the north line of Lot 12, Capitol Heights Replat, an official plat, 33.0 feet to the northwest corner of said Lot 12: thence east along the north line of said Lot 12 to the northeast corner of said Lot 12; thence southwesterly along the east line of said Lot 12 to the northeast corner of Lot 8 of said "Capitol Heights Replat"; thence southeasterly along the east line of said Lot 8 to the east and west centerline of said Section 21; thence east along the east and west centerline of said Section 21 to a point 590.45 feet east of the north and south centerline of said Section 21; thus ending Section "E."

(f) *Section "F."* Continuing on from Section "E"; thence southerly to a point being 590.45 feet east of the north and south centerline of said Section 21, and 33.0 feet north of the south line of said Section 21, also being the north right-of-way line of East Douglas Avenue; thence east along the north line of East Douglas Avenue being 33.0 feet north of and parallel with the north line of Section 28, Township 79 North, Range 23 West of the 5th P.M., a distance of 575.94 feet; thence south 0° 20′ 37″ west, 33.00 feet to the north line of said Section 28; thence continuing south 0° 20′ 37″ west, 2637.74 feet to the south line of the northeast ¼ of said Section 28; thence south 89° 48′ 44″ west along the south line of the northeast ¼ of said Section 28, or distance of 552.33 feet, to the southeast corner of Lot 1, Patricia Ann Estates Plat 1, an official plat, also being 605.0 feet east of the west line of the northeast ¼ of said Section 28; thence southerly to the east and west centerline of said Section 28 to a point 605.0 feet east of the north and south centerline of said Section 28; thence southerly to the south line of said Section 28 to a point being 611.5 feet east of the north and south centerline of said Section 28; thence southerly to the north line of the southwest ¼ of the northeast ¼ of Section 33, Township 79 North, Range 23 West of the 5th P.M.; said point being 615.85 feet east of the north and south centerline of said Section 33; thence east along the north line of the southwest ¼ of the northeast ¼ of said Section 33 to the east line of the southwest ¼ of the northeast ¼ of said Section 33; thence south along the east line of the southwest ¼ of the northeast ¼ of said Section 33 to the east and west centerline of said Section 33; thence west along the east and west centerline of said Section 33 to a point 620.2 feet east of the north and south centerline of said Section 33; thence southerly to the south line of said Section 33, said point being 633.27 feet east of the north and south centerline of said Section 33, last-described point being on the north line of Section 5, Township 78 North, Range 23 West of the 5th P.M.; thence south along the north and south centerlines of Sections 5, 8, 17 and 20 in said Township 78 North, Range 23 West of the 5th P.M., to the southeast

corner of the northeast ¼ of the southwest ¼ of said Section 20; thence westerly along the south line of said northeast ¼ of the southwest ¼ to the northeasterly right-of-way line of the Chicago, Rock Island and Pacific Railroad in said Section 20; thence northwesterly along said northeasterly right-of-way line to the east and west centerline of said Section 20; thence west along the east and west centerline of Section 20 and Section 19, Township 78 North, Range 23 West of the 5th P.M., to the northeast corner of Lot B, "Lawrence Acres," an official plat; thus ending Section "F."

(g) *Section "G."* Continuing on from Section "F"; thence south along the east line of "Lawrence Acres," an official plat, to the southeast corner of Lot 3 of said "Lawrence Acres"; thence east along the north line of Lot 1, "Reinke Place," an official plat, to the northeast corner of said Lot 1; thence south along the east line of said "Reinke Place," being 900.00 feet east of and parallel with the west line of the southeast ¼ of Section 19, Township 78 North, Range 23 West of the 5th P.M. to the south line of said southeast ¼; thence east along the south line of said southeast ¼ to the northeast corner of the northwest ¼ of the northeast ¼ of Section 30, Township 78 North, Range 23 West of the 5th P.M.; thence south along the east line of the northwest ¼ of the northeast ¼ of said Section 30 to the intersection of the north right-of-way line of Southeast Fifty-second Avenue (Cole Avenue) and the east right-of-way line of Southeast Thirty-sixth Street (Watts Road); thence south along the east right-of-way line of said Southeast Thirty-sixth Street (Watts Road) to the south line of Section 31, Township 78 North, Range 23 West of the 5th P.M.; thence west along the south line of said Section 31 and continuing west along the south line of Sections 36 and 35, Township 78 North, Range 24 West of the 5th P.M. to the southeast corner of Section 34, Township 78 North, Range 24 West of the 5th P.M.; thus ending Section "G."

(h) *Section "H."* Continuing from Section "G"; thence continuing west along the south line of said Section 34 to the southeast corner of the southwest ¼ of said Section 34; thence north along the east line of the west ½ of said Section 34, to a point 2200.0 feet south of the north line of said Section 34; thence westerly along a line having a bearing of north 89° 51′ west, a distance of 657.0 feet; thence south 83° 46′ 30″ west, 1136.4 feet; thence north 60° 29′ west, 145.8 feet; thence northwesterly, along a 136.05 foot radius tangent curve, concave southeasterly, 172.47 feet, with a central angle of 72° 38′ 00″, a chord distance of 161.15 feet and a chord bearing of south 83° 12′ 00″ west; thence south 46° 53′ west, 200.0 feet; thence southwesterly, along a 174.37 foot radius tangent curve, concave northwesterly, 97.38 feet, with a central angle of 32° 00′ 00″, a chord distance of 96.13 feet and a chord bearing of south 62° 53′ 00″ west; thence southwesterly, along a 209.82 foot radius tangent curve, concave southeasterly, 344.23 feet, with a central angle of 94° 00′ 00″, a chord distance of 306.90 feet and a chord bearing of south 31° 53′ 00″ west; thence south 15° 07′ east, 634.37 feet; thence south 38° 41′ east, 501.98 feet; thence south 53° 24′ west, 365.22 feet; thence easterly to a point 1650.0 feet east of the west line of said Section 34; thence south along a line 1650.0 feet east of and parallel with the west line of said Section 34, a distance of 1330.0 feet to the south line of said Section 34; thence west 1650.0 feet along the south line of said Section 34 to the southeast corner of Section 33, Township 78 North, Range 24 West of the 5th P.M.; thence continuing west along the south line of said Section 33 and Section 32, Township 78 North, Range 24 West of the 5th P.M., to the southwest corner of said Section 32, also being the point of beginning of Section "A"; thus ending Section "H."

The areas that are excepted from the boundaries of the city, with all bearings to be assumed, as defined and hereby declared to be shown in subsections (i) through (k) of this section as follows:

(i) *Parcel "A."* Except the north 1420.0 feet and except the west 632.0 feet of the south 1160.0 feet of the northeast ¼ of Section 33, Township 78 North, Range 24 West of the 5th P.M., and beginning 583.2 feet north of the southwest corner of the northwest ¼ of Section 34, Township 78 North, Range 24 West of the 5th P.M.; thence east 167.5 feet; thence north 374.7 feet; thence east 215.3 feet; thence northeasterly 403.1 feet; thence north 668.65 feet; thence east 509.87 feet; thence north 775.15 feet; thence west to the northwest corner of the northwest ¼, Section 34, Township 78 North, Range 24 West of the 5th P.M.; thence south to the point of beginning on the west line of the northwest ¼ of said Section 34, Polk County, Iowa.

(j) *Parcel "B."* Lots 4 through 12 inclusive and Lot 14 "Kemming Acres," an official plat, Polk County, Iowa.

(k) *Parcel "C."* A trapezoid piece of ground lying east of the west line in the northwest ¼ of Section 34, Township 78 North, Range 24 West of the 5th P.M., Polk County, Iowa, described as follows: beginning at the southwest corner of the northwest ¼ of said Section 34; thence north 0° 03′ 00″ west, 583.20 feet; thence south 89° 51′ east, 28.35 feet; thence south 0° 31′ 30″ east, 168.93 feet; thence south 0° 05′ 04″ east, 414.28 feet, to the south line of the northwest ¼ of said Section 34; thence north 89° 51′ west, 30.0 feet to the point of beginning, Polk County, Iowa.

(C42, C54, § 2-1; O.6785; C62, § 2-1; O.8854; C75, § 2-1; O.9053, 9229, 9399, 9473, 9494, 9526; C79, § 2-1; O.9706, 10,079, 10,211, 10,601; C85, § 2-1; O.11,317; C91, § 2-1; O.12,078, 13,261, 13,353, 13,418, 13,522, 14,013)

APPENDIX B

ELECTION PRECINCTS AND WARDS*

Subchapter 1. Precincts

Sec. 1.0.	Precincts.
Sec. 1.1.	Precinct 1.
Sec. 1.2.	Precinct 2.
Sec. 1.3.	Precinct 3.
Sec. 1.4.	Precinct 4.
Sec. 1.5.	Precinct 5.
Sec. 1.6.	Precinct 6.
Sec. 1.7.	Precinct 7.
Sec. 1.8.	Precinct 8.
Sec. 1.9.	Precinct 9.
Sec. 1.10.	Precinct 10.
Sec. 1.11.	Precinct 11.
Sec. 1.12.	Precinct 12.
Sec. 1.13.	Precinct 13.
Sec. 1.14.	Precinct 14.
Sec. 1.15.	Precinct 15.
Sec. 1.16.	Precinct 16.
Sec. 1.17.	Precinct 17.
Sec. 1.18.	Precinct 18.
Sec. 1.19.	Precinct 19.
Sec. 1.20.	Precinct 20.
Sec. 1.21.	Precinct 21.
Sec. 1.22.	Precinct 22.
Sec. 1.23.	Precinct 23.
Sec. 1.24.	Precinct 24, a combined city/township precinct.
Sec. 1.25.	Precinct 25.
Sec. 1.26.	Precinct 26.
Sec. 1.27.	Precinct 27.
Sec. 1.28.	Precinct 28.
Sec. 1.29.	Precinct 29.
Sec. 1.30.	Precinct 30.
Sec. 1.31.	Precinct 31.
Sec. 1.32.	Precinct 32.
Sec. 1.33.	Precinct 33.
Sec. 1.34.	Precinct 34.
Sec. 1.35.	Precinct 35.
Sec. 1.36.	Precinct 36.
Sec. 1.37.	Precinct 37.
Sec. 1.38.	Precinct 38.
Sec. 1.39.	Precinct 39.
Sec. 1.40.	Precinct 40.

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*__Editor's note—__Ord. Nos. 16,091 (adopted Dec. 20, 2021, effective June 15, 2022), 16,092 (adopted Dec. 20, 2021, effective June 15, 2022), and 16,100 (adopted Jan. 24, 2022, effective June 15, 2022), repealed the former App. B, and enacted a new App. B as set out herein. The former App. B pertained to similar subject matter and derived from Ord. No. 15,051, adopted Sept. 26, 2011; Ord. No. 15,053, adopted Oct. 10, 2011; Ord. No. 15,055, adopted Oct. 24, 2011. Amendments to the appendix are indicated by parenthetical history notes following amended provisions. The absence of a history note indicates that the provision remains unchanged from the original ordinance. Obvious misspellings and punctuation errors have been corrected without notation. For stylistic purposes, headings and catchlines have been made uniform and the same system of capitalization, citation to state statutes, and expression of numbers in text as appears in the Code of Ordinances has been used. Additions made for clarity are indicated by brackets.

__Cross reference—__Any ordinances establishing or modifying election precinct or ward boundaries saved from repeal, § 1-20(9).

Sec. 1.41. Precinct 41.
Sec. 1.42. Precinct 42.
Sec. 1.43. Precinct 43.
Sec. 1.44. Precinct 44.
Sec. 1.45. Precinct 45.
Sec. 1.46. Precinct 46.
Sec. 1.47. Precinct 47.
Sec. 1.48. Precinct 48.
Sec. 1.49. Precinct 49.
Sec. 1.50. Precinct 50.
Sec. 1.51. Precinct 51.
Sec. 1.52. Precinct 52.
Sec. 1.53. Precinct 53.
Sec. 1.54. Precinct 54.
Sec. 1.55. Precinct 55.
Sec. 1.56. Precinct 56.
Sec. 1.57. Precinct 57.
Sec. 1.58. Precinct 58.
Sec. 1.59. Precinct 59.
Sec. 1.60. Precinct 60.
Sec. 1.61. Precinct 61, a combined Des Moines/Norwalk Precinct.
Sec. 1.62. Precinct 62.
Sec. 1.63. Precinct 63.
Sec. 1.64. Precinct 64.
Sec. 1.65. Precinct 65.
Sec. 1.66. Precinct 66.
Sec. 1.67. Precinct 67.
Sec. 1.68. Precinct 68.
Sec. 1.69. Precinct 69.
Sec. 1.70. Precinct 70.
Sec. 1.71. Precinct 71.
Sec. 1.72. Precinct 72.
Sec. 1.73. Precinct 73, a combined city/township precinct.
Sec. 1.74. Precinct 74.
Sec. 1.75. Saylor-2 Precinct, a combined city/township precinct.

Subchapter 2. Wards

Sec. 2.0. Wards.
Sec. 2.1. First ward described.
Sec. 2.2. Second ward described.
Sec. 2.3. Third ward described.
Sec. 2.4. Fourth ward described.

SUBCHAPTER 1. PRECINCTS

Sec. 1.0. Precincts.

The City of Des Moines is hereby divided into the precincts identified in this subchapter. Those precincts which are identified as combined city/township or city/city precincts contain l and outside the city boundaries and only those residents of the city are permitted to vote in city elections.

Sec. 1.1. Precinct 1.

Beginning at the intersection of the north boundary of Lee Township and East 38th Street (also known as Northeast 38th Street); thence north along Northeast 38th Street and along the corporate limits of the City of Des Moines, Iowa to I-80; thence east along I-80 to U.S. Highway 65; thence south along U.S. Highway 65 to the East/West centerline of Section 22, Township 79 North, Range 23 West of the 5th P.M.; thence west along said East/West centerline to the east end of East Aurora Avenue (also known as Northeast Aurora Avenue); thence continuing east along East Aurora Avenue to East 43rd Court (also known as Northeast 43rd Court); thence south along East 43rd Court to the easterly extension of the south line of Lot 48, Capitol Heights Replat, an Official Plat; thence west along said easterly extension and along said south line of Lot 48 to the east boundary of Lee Township; thence north along said east boundary of Lee Township to said north boundary of Lee Township; thence west along said north boundary to East 38th Street, the point of beginning.

Sec. 1.2. Precinct 2.

Beginning at the intersection of East 30th Street and East Aurora Avenue; thence east along East Aurora Avenue (also known as Northeast Aurora Avenue) and along the north corporate limits of the City of Des Moines, Iowa and along the easterly extension of East Aurora Avenue to East 38th Street (also known as Northeast 38th Street); thence continuing east along the north boundary of Lee Township to the east boundary of Lee Township; thence south along said east boundary of Lee Township to East Douglas Avenue; thence west along East Douglas Avenue to Hubbell Avenue; thence southwest along Hubbell Avenue to East Euclid Avenue; thence west along East Euclid Avenue to East 31st Street; thence north along East 31st Street to East Douglas Avenue; thence west along East Douglas Avenue to East 30th Street; thence north along East 30th Street to East Aurora Avenue, the point of beginning.

Sec. 1.3. Precinct 3.

Beginning at the intersection of I-235 (MacVicar Freeway) and the north corporate limits of the City of Des Moines, Iowa; thence east along said north corporate limits to the east right-of-way line of I-235 (MacVicar Freeway); thence north, east, and south along said north corporate limits to the westerly extension of East Aurora Avenue, said westerly extension also being said north corporate limits; thence east along said westerly extension and along East Aurora Avenue (also being said north corporate limits) to a northerly turn of the corporate limits of the City of Des Moines, Iowa, said northerly turn being just east of East 28th Street; thence northerly, easterly and southerly along an irregular line being said northern corporate limits of the City of Des Moines, Iowa to its intersection with Northeast 32nd Street; thence continuing south, west and south along said north corporate limits to East Aurora Avenue; thence west along East Aurora Avenue to East 30th Street; thence south along East 30th Street to East Douglas Avenue; thence east along East Douglas Avenue to East 31st Street; thence south along East 31st Street to East Euclid Avenue; thence west along East Euclid Avenue to East 29th Street; thence south along East 29th Street to Hull Avenue; thence west along Hull Avenue to I-235 (MacVicar Freeway); thence northerly along I-235 (MacVicar Freeway) to the north corporate limits of the City of Des Moines, the point of beginning.

Sec. 1.4. Precinct 4.

Beginning at the intersection of East 14th Street (U.S. Highway 65/69) and East Aurora Avenue and the north corporate limits of the City of Des Moines, Iowa; thence east, north,

east, north, southeasterly, south and east along said north corporate limits to I-235 (MacVicar Freeway); thence southerly along I-235 (MacVicar Freeway) to Hull Avenue; thence west along Hull Avenue to Dixon Street; thence south along Dixon Street to Guthrie Avenue; thence west along Guthrie Avenue to East 14th Street (U.S. Highway 65/69); thence north along East 14th Street (U.S. Highway 65/69) to East Aurora Avenue, the point of beginning.

Sec. 1.5. Precinct 5.

Beginning at the intersection of 5th Avenue and Aurora Avenue, said intersection being on the north corporate limits of the City of Des Moines, Iowa; thence east along Aurora Avenue and along East Aurora Avenue to a northerly turn of the corporate limits just east of East 10th; thence northerly along the irregular line of the corporate limits of the City of Des Moines, Iowa to I-80/35; thence east along I-80/35 to East 14th Street; thence south along East 14th Street and along the corporate limits of the City of Des Moines, Iowa to East Aurora Avenue; thence continuing south along East 14th Street to East Douglas Avenue; thence west along East Douglas Avenue to East 9th Street; thence north along East 9th Street to East Seneca Avenue; thence west along East Seneca Avenue to Amherst Street; thence south along Amherst Street to East Douglas Avenue; thence west along East Douglas Avenue to Columbia Street; thence north along Columbia Street to East Seneca Avenue; thence west along East Seneca Avenue and along Seneca Avenue to 5th Avenue; thence north along 5th Avenue to Aurora Avenue, the point of beginning.

Sec. 1.6. Precinct 6.

Beginning at the intersection of 5th Avenue and Aurora Avenue; thence south along 5th Avenue to Douglas Avenue; thence west along Douglas Avenue to 16th Street; thence south along 16th Street to Euclid Avenue; thence west along Euclid Avenue to the Des Moines River; thence north along the Des Moines River to the north corporate limits of City of Des Moines, Iowa; thence east, north, east, south and east along said north corporate limits to Northwest Morningstar Drive; thence south, west and east along the corporate limits of City of Des Moines, Iowa to the intersection of Northwest Morningstar Drive and Aurora Avenue; thence east along Aurora Avenue to a northerly turn of the corporate limits of the City of Des Moines, Iowa just east of 9th Street; thence north, east and south along said corporate limits to Aurora Avenue; thence east along Aurora Avenue to 5th Avenue, the point of beginning.

Sec. 1.7. Precinct 7.

Beginning at the intersection of the Des Moines River and the north corporate limits of the City of Des Moines, Iowa; thence south along the Des Moines River to Euclid Avenue; thence west along Euclid Avenue to Martin Luther King Jr Parkway; thence north along Martin Luther King Jr Parkway to Lynner Drive; thence west/northwest along Lynner Drive to Madison Avenue; thence west along Madison Avenue to 30th Street; thence north along 30th Street to Aurora Avenue; thence west along Aurora Avenue to 41st Street; thence continue west along the north line of Betts-McCabe Plat No. 1, an Official Plat, to west line of Joe McCabe Plat 1, an Official Plat; thence north, east, north and east along west and north lines of said Joe McCabe Plat 1 to the east line of Hickory Grove Plat No. 1, an Official Plat; thence north and west along the east and north lines of said Hickory Grove Plat No. 1 to the west line of Benlan Heights Plat Two, an Official Plat; thence north along the west line of said Benlan Heights Plat Two and along the northerly extension of said west line to a corner of corporate limits of the City of Des Moines, Iowa; thence northerly and easterly along said corporate limits to Lower Beaver Road; thence northwest along Lower Beaver Road to the north corporate limits of the City of Des Moines, Iowa; thence easterly, southerly and easterly along said north corporate limits to the Des Moines River, the point of beginning.

Sec. 1.8. Precinct 8.

Beginning at the intersection of Martin Luther King Jr Parkway and Lynner Drive; thence south along Martin Luther King Jr Parkway to Post Street; thence northwest along Post Street

to Euclid Avenue; thence west/northwest along Euclid Avenue to Douglas Avenue; thence west along Douglas Avenue to 43rd Street; thence north along 43rd Street to Aurora Avenue; thence east along Aurora Avenue to 43rd Street; thence north along 43rd Street to the north line of Betts-McCabe Plat No. 1, an Official Plat; thence east along the north line of said Betts-McCabe Plat No. 1 to intersection of Aurora Avenue and 41st Street; thence continuing easterly along Aurora Avenue to 30th Street; thence south along 30th Street to Madison Avenue; thence east along Madison Avenue to Lynner Drive; thence southeast and east along Lynner Drive to Martin Luther King Jr Parkway, the point of beginning.

Sec. 1.9. Precinct 9.

Beginning at the intersection of Aurora Avenue and Beaver Avenue; thence east along easterly extension of Aurora Avenue to west line of Joe McCabe Plat 1, an Official Plat; thence north, east, north and east along west and north lines of said Joe McCabe Plat 1 to the east line of Hickory Grove Plat No. 1, an Official Plat; thence north and west along the east and north lines of said Hickory Grove Plat No. 1 to the west line of Benlan Heights Plat Two, an Official Plat; thence north along the west line of said Benlan Heights Plat Two and along the northerly extension of said west line to a corner of corporate limits of the City of Des Moines, Iowa; thence west, south, west along said corporate limits to Beaver Avenue; thence north along Beaver Avenue and along said corporate limits to Meredith Drive and the northern corporate limits of the City of Des Moines; thence westerly along an irregular line being said northern corporate limits of the City of Des Moines, Iowa to Merle Hay Road; thence south along Merle Hay Road to Aurora Avenue; thence east along Aurora Avenue to Beaver Avenue, the point of beginning.

Sec. 1.10. Precinct 10.

Beginning at the intersection of Aurora Avenue and Beaver Avenue; thence east along easterly extension of Aurora Avenue to west line of Joe McCabe Plat 1, an Official Plat; thence continuing east along the south line of said Joe McCabe Plat 1 to 43rd Street; thence south along 43rd Street to Aurora Avenue; thence west along Aurora Avenue to 43rd Street; thence south along 43rd Street to Douglas Avenue; thence west along Douglas Avenue to 50th Street; thence south along 50th Street to Urbandale Avenue; thence west along Urbandale Avenue to Merle Hay Road (Iowa Highway 28); thence north along Merle Hay Road (Iowa Highway 28) to Douglas Avenue; thence west along Douglas Avenue to the west corporate limits of the City of Des Moines, Iowa; thence north along said west corporate limits to Aurora Avenue; thence east along Aurora Avenue to Beaver Avenue, the point of beginning.

Sec. 1.11. Precinct 11.

Beginning at the intersection of Merle Hay Road (Iowa Highway 28) and Urbandale Avenue; thence east along Urbandale Avenue to 50th Street; thence south along 50th Street to Hickman Road; thence west along Hickman Road to the west corporate limits of the City of Des Moines, Iowa; thence northerly along an irregular line being said west corporate limits to Urbandale Avenue; thence east along Urbandale Avenue to said west corporate limits; thence north along said west corporate limits to Douglas Avenue; thence west along Douglas Avenue to Merle Hay Road (Iowa Highway 28); thence south along Merle Hay Road (Iowa Highway 28) to Urbandale Avenue, the point of beginning.

Sec. 1.12. Precinct 12.

Beginning at the intersection of Douglas Avenue and 50th Street; thence east along Douglas Avenue to Beaver Avenue; thence southerly along Beaver Avenue to Hickman Road; thence west along Hickman Road to 50th Street; thence north along 50th Street to Douglas Avenue, the point of beginning.

Sec. 1.13. Precinct 13.

Beginning at the intersection of Douglas Avenue and Beaver Avenue; thence east along Douglas Avenue to Euclid Avenue; thence southeast along Euclid Avenue to 30th Street; thence south along 30th Street to Hickman Road; thence west along

Hickman Road to Beaver Avenue; thence northerly along Beaver Avenue to Douglas Avenue, the point of beginning.

Sec. 1.14. Precinct 14.

Beginning at the intersection of Urbandale Avenue and 30th Street; thence east along Urbandale Avenue to Martin Luther King Jr Parkway; thence southerly along Martin Luther King Jr Parkway to Bennett Avenue; thence west along Bennett Avenue to 24th Street; thence south along 24th Street to Hickman Road; thence west along Hickman Road to 26th Street; thence south along 26th Street to Lincoln Avenue; thence west along Lincoln Avenue to 27th Street; thence south along 27th Street to Forest Avenue; thence west along Forest Avenue to 30th Street; thence north along 30th Street to Urbandale Avenue, the point of beginning.

Sec. 1.15. Precinct 15.

Beginning at the intersection of 30th Street and Euclid Avenue; thence east along Euclid Avenue to Post Street; thence southeast along Post Street to Martin Luther King Jr Parkway; thence north along Martin Luther King Jr Parkway to Euclid Avenue; thence east along Euclid Avenue to the Des Moines River; thence southerly along the Des Moines River to 2nd Avenue; thence south along 2nd Avenue to Franklin Avenue; thence west along Franklin Avenue to 11th Street; thence south along 11th Street to College Avenue; thence west along College Avenue to Martin Luther King Jr Parkway; thence north along Martin Luther King Jr Parkway to Washington Avenue; thence west along Washington Avenue to 22nd Street; thence north along 22nd Street to Lincoln Avenue; thence west along Lincoln Avenue to 23rd Street; thence north along 23rd Street to Hickman Road; thence west along Hickman Road to 24th Street; thence north along 24th Street to Bennett Avenue; thence east along Bennett Avenue to Martin Luther King Jr Parkway; thence north along Martin Luther King Jr Parkway to Urbandale Avenue; thence west along Urbandale Avenue to 30th Street; thence north along 30th Street to Euclid Avenue, the point of beginning.

Sec. 1.16. Precinct 16.

Beginning at the intersection of 2nd Avenue and the Des Moines River; thence westerly and northerly along the Des Moines River to Euclid Avenue; thence east along Euclid Avenue to 16th Street; thence north along 16th Street to Douglas Avenue; thence east along Douglas Avenue to 5th Avenue; thence south along 5th Avenue to Euclid Avenue; thence east along Euclid Avenue to 2nd Avenue; thence south along 2nd Avenue to the Des Moines River, the point of beginning.

Sec. 1.17. Precinct 17.

Beginning at the intersection of 2nd Avenue and the Des Moines River; thence north along 2nd Avenue to Euclid Avenue; thence west along Euclid Avenue to 5th Avenue; thence north along 5th Avenue to Seneca Avenue; thence east along Seneca Avenue and along East Seneca Avenue to Columbia Street; thence south along Columbia Street to East Douglas Avenue; thence east along East Douglas Avenue to Amherst Street; thence south along Amherst Street to East Euclid Avenue; thence east along East Euclid Avenue to North Union Street; thence south along North Union Street and along the southerly extension of North Union Street to Thompson Avenue in Union Park; thence westerly along Thompson Avenue to Saylor Road; thence southerly along Saylor Road to East Jefferson Avenue; thence west along the westerly extension of East Jefferson Avenue to the Des Moines River; thence northwest along the Des Moines River to 2nd Avenue, the point of beginning.

Sec. 1.18. Precinct 18.

Beginning at the intersection of North Union Street and Guthrie Avenue; thence north along North Union Street to Euclid Avenue; thence west along Euclid Avenue to Amherst Street; thence north along Amherst Street to Seneca Avenue; thence east along Seneca Avenue and along East Seneca Avenue to East 9th Street; thence south along East 9th Street to East Douglas Avenue; thence east along East Douglas Avenue to East 14th Street; thence south along

East 14th Street to Guthrie Avenue; thence west along Guthrie Avenue to North Union Street, the point of beginning.

Sec. 1.19. Precinct 19.

Beginning at the intersection of North Union Street and Guthrie Avenue; thence east along Guthrie Avenue to East 14th Street; thence south along East 14th Street to East University Avenue; thence west along East University Avenue to the Des Moines River; thence north along the Des Moines River to the easterly extension of East Jefferson Avenue; thence east along said easterly extension to Saylor Road; thence north along Saylor Road to Thompson Avenue in Union Park; thence east along Thompson Avenue to the southerly extension of North Union Street; thence north along said southerly extension and along North Union Street to Guthrie Avenue, the point of beginning.

Sec. 1.20. Precinct 20.

Beginning at the intersection of East 14th Street and Guthrie Avenue; thence east along Guthrie Avenue to Dixon Street; thence north along Dixon Street to Hull Avenue; thence east along Hull Avenue to I-235 (MacVicar Freeway); thence south along I-235 (MacVicar Freeway) to Easton Boulevard; thence southwest along Easton Boulevard to Wayne Street; thence north along Wayne Street to Cleveland Avenue; thence west along Cleveland Avenue to East 14th Street; thence north along East 14th Street to Guthrie Avenue, the point of beginning.

Sec. 1.21. Precinct 21.

Beginning at the intersection of Guthrie Avenue and I-235 (MacVicar Freeway); thence east along Guthrie Avenue to Hubbell Avenue; thence southerly along Hubbell Avenue to Easton Boulevard; thence northeast along Easton Boulevard to East 29th Street; thence north along East 29th Street to Hull Avenue; thence west along Hull Avenue to I-235 (MacVicar Freeway); thence south along I-235 (MacVicar Freeway) to Guthrie Avenue, the point of beginning.

Sec. 1.22. Precinct 22.

Beginning at the intersection of Easton Boulevard and East 29th Street; thence north along East 29th Street to East Euclid Avenue; thence east along East Euclid Avenue to Hubbell Avenue; thence northeast along Hubbell Avenue to East Douglas Avenue; thence east along East Douglas Avenue to the east line of Patricia Ann Estates Plat No. 4, an Official Plat; thence south along the east line of said Patricia Ann Estates Plat No. 4 and along the east line of Patricia Ann Estates Plat No. 3, an Official Plat, and along the east line of Patricia Ann Estates Plat No. 2, an Official Plat, and along the east line of Patricia Ann Estates Plat No. 1, an Official Plat to Hull Avenue; thence westerly along Hull Avenue to East 35th Street (Vacated); thence south along East 35th Street (Vacated) to Arthur Avenue; thence east along Arthur Avenue to East 37th Street; thence south along East 37th Street to Easton Boulevard; thence southwest along Easton Boulevard to East 29th Street, the point of beginning.

Sec. 1.23. Precinct 23.

Beginning at the intersection of Easton Boulevard and East 37th Street; thence north along East 37th Street to Arthur Avenue; thence west along Arthur Avenue to East 35th Street (Vacated); thence north along East 35th Street (Vacated) to Hull Avenue; thence east along Hull Avenue to the east line of Patricia Ann Estates Plat No. 1, an Official Plat; thence south along said east line of Patricia Ann Estates Plat No. 1 to the northeast corner of East Edge Manor, an Official Plat; thence south along the east line of said East Edge Manor to the southeast corner of said East Edge Manor, said southeast corner also being a corner of the easterly corporate limits of the City of Des Moines, Iowa; thence south along said easterly corporate limits to Easton Boulevard; thence westerly along Easton Boulevard to East 37th Street, the point of beginning.

Sec. 1.24. Precinct 24, a combined city/township precinct.

Beginning at the intersection of East Douglas Avenue and the east line of Patricia Ann Estates

Plat No. 4, an Official Plat; thence east along East Douglas Avenue to the easterly corporate limits of the City of Des Moines, Iowa turned north; thence north, west and north along said easterly corporate limits to East Madison Avenue; thence west along East Madison to a northerly turn of said easterly corporate limits; thence north, east, south and east along said easterly corporate limits to East 55th Street; thence southerly along East 55th Street to East 56th Street; thence south along East 56th Street to East Douglas Avenue; thence east along the easterly extension of East Douglas Avenue to U.S. Highway 65; thence southerly along U.S. Highway 65 to East Sheridan Avenue (also known as Northeast 27th Avenue); thence west on East Sheridan Avenue to Northeast Oak Hill Drive; thence northwest along Northeast Oak Hill Drive to Northeast 56th Street (also known as East 56th Street); thence south along Northeast 56th Street to the south line of Lot 6 in Stephen Harvey Estates, an Official Plat; thence west along the south line said Lot 6, a distance of 662.40 feet; thence north 30.85 feet to the easterly extension of the south line of Copper Creek Estates, Plat 2, an Official Plat; thence west along said easterly extension to the east line of said Copper Creek Estates Plat 2; thence north along the east line of said Copper Creek Estates Plat 2; thence north along the east line of said Copper Creek Estates Plat 2, and along the east line of Copper Creek Estates Plat 1, an Official Plat, and along the east line of Copper Creek Estates Plat 4, an Official Plat, to Northeast 23rd Avenue (also known as Easton Boulevard); thence west along Northeast 23rd Avenue to the west line of Pleasant View North, an Official Plat; thence south along the west line of said Pleasant View North to a corner of Lot 3 in Copper Creek Plat No. 1, an Official Plat; thence west along a northerly line of said Lot 3 to a easterly line of said Lot 3; thence north along the easterly line of said Lot 3 to Northeast 23rd Avenue (also known as Easton Boulevard); thence west along Northeast 23rd Avenue to the east line of Harvey Place, an Official Plat; thence south along said east line of Harvey Place to Northeast 19th Avenue; thence west along Northeast 19th Avenue to the northerly extension of west line of Lot 19 in said Harvey Place; thence south along said northerly extension and along the west line of said Lot 19 to the south line of said Harvey Place; thence west along the south line of said Harvey Place to the east line of Lot 23 in said Harvey Place; thence north along the east line of said Lot 23 to south line of the North 200 feet of said Lot 23; thence west and parallel with the north line of said Lot 23 to the west line of the East 65 feet of said Lot 23; thence north along the west line of the East 65 feet of said Lot 23 and its northerly extension to Northeast 19th Avenue; thence westerly along Northeast 19th Avenue to the northerly extension of the west line of Lot 25 in said Harvey Place; thence south along the northerly extension of the west line of said Lot 25 and along the west line of said Lot 25 to the south line of said Harvey Place; thence west along the south line of said Harvey Place to the west line of said Harvey Place and to the east corporate limits of the City of Des Moines, Iowa; thence northerly along an irregular line being said east corporate limits to a corner of said corporate limits, said corner being the southeast corner of East Edge Manor, an Official Plat; thence north along the east line of said East Edge Manor and along the east line of Patricia Ann Estates Plat No. 1, an Official Plat, and along the east line of Patricia Ann Estates Plat No. 2, an Official Plat, and along the east line of Patricia Ann Estates Plat No. 3, an Official Plat, and along the east line of Patricia Ann Estates Plat No. 4, an Official Plat to East Douglas Avenue, the point of beginning.

Sec. 1.25. Precinct 25.

Beginning at the intersection of Easton Boulevard and East 33rd Street; thence easterly along Easton Boulevard to the easterly corporate limits of the City of Des Moines, Iowa, also being the east line of Reedbury, an Official Plat; thence southerly along an irregular line of said easterly corporate limits of the City of Des Moines, Iowa to East University Avenue; thence west along East University Avenue to East 33rd Street; thence north along East 33rd Street to Easton Boulevard, the point of beginning.

Sec. 1.26. Precinct 26.

Beginning at the intersection of Easton Boulevard and East 27th Street; thence northeast

along Easton Boulevard to East 33rd Street; thence south along East 33rd Street to East University Avenue; thence west along East University Avenue to East 27th Street; thence north along East 27th Street to Easton Boulevard, the point of beginning.

Sec. 1.27. Precinct 27.

Beginning at the intersection of Easton Boulevard and East 27th Street; thence south along East 27th Street to East University Avenue; thence west along East University Avenue to I-235 (MacVicar Freeway); thence northeast and north along I-235 (MacVicar Freeway) to Guthrie Avenue; thence east along Guthrie Avenue to Hubbell Avenue; thence southerly along Hubbell Avenue to Easton Boulevard; thence northeast along Easton Boulevard to East 27th Street, the point of beginning.

Sec. 1.28. Precinct 28.

Beginning at the intersection of Easton Boulevard and I-235 (MacVicar Freeway); thence southwest and west along I-235 (MacVicar Freeway) to the Des Moines River; thence northerly along the Des Moines River to East University Avenue; thence east along East University Avenue to East 14th Street; thence north along East 14th Street to Cleveland Avenue; thence east along Cleveland Avenue to Wayne Street; thence south along Wayne Street to Easton Boulevard; thence northeast along Easton Boulevard to I-235 (MacVicar Freeway), the point of beginning.

Sec. 1.29. Precinct 29.

Beginning at the intersection of University Avenue and the Des Moines River; thence west along University Avenue to Illinois Street; thence north along Illinois Street to Indiana Avenue; thence east along Indiana Avenue to Vermont Street; thence north along Vermont Street to Forest Avenue; thence westerly along Forest Avenue to Martin Luther King Jr Parkway; thence north along Martin Luther King Jr Parkway to College Avenue; thence east along College Avenue to 11th Street; thence north along 11th Street to Franklin Avenue; thence east along Franklin Avenue to 2nd Avenue; thence north along 2nd Avenue to the Des Moines River; thence southerly along the Des Moines River to University Avenue, the point of beginning.

Sec. 1.30. Precinct 30.

Beginning at the intersection of University Avenue and the Des Moines River; thence southerly along the Des Moines River to I-235 (MacVicar Freeway); thence west along I-235 (MacVicar Freeway) to Martin Luther King Jr Parkway; thence north along Martin Luther King Jr Parkway to Forest Avenue; thence easterly along Forest Avenue to Vermont Street; thence south along Vermont Street to Indiana Avenue; thence west along Indiana Avenue to Illinois Street; thence south along Illinois Street to University Avenue; thence east along University Avenue to the Des Moines River, the point of beginning.

Sec. 1.31. Precinct 31.

Beginning at the intersection of Washington Avenue and Martin Luther King Jr Parkway; thence south along Martin Luther King Jr Parkway to I-235 (MacVicar Freeway); thence westerly along I-235 (MacVicar Freeway) to Cottage Grove Avenue; thence northwest along Cottage Grove Avenue to 25th Street; thence north along 25th Street to Forest Avenue; thence west along Forest Avenue to 27th Street; thence north along 27th Street to Lincoln Avenue; thence east along Lincoln Avenue to 26th Street; thence north along 26th Street to Hickman Road; thence east along Hickman Road to 23rd Street; thence south along 23rd Street to Lincoln Avenue; thence east along Lincoln Avenue to 22nd Street; thence south along 22nd Street to Washington Avenue; thence east along Washington Avenue to Martin Luther King Jr Parkway, the point of beginning.

Sec. 1.32. Precinct 32.

Beginning at the intersection of Cottage Grove Avenue and 25th Street; thence northwest and west along Cottage Grove Avenue to 35th Street; thence north along 35th Street to University

Avenue; thence west along University Avenue to 37th Street; thence north along 37th Street to Carpenter Avenue; thence west along Carpenter Avenue to 39th Street; thence north along 39th Street to Forest Avenue; thence east along Forest Avenue to 25th Street; thence south along 25th Street to Cottage Grove Avenue, the point of beginning.

Sec. 1.33. Precinct 33.

Beginning at the intersection of Forest Avenue and 30th Street; thence west along Forest Avenue to 39th Street; thence south along 39th Street to Carpenter Avenue; thence east along Carpenter Avenue to 37th Street; thence south along 37th Street to University Avenue; thence west along University Avenue to 41st Street; thence north along 41st Street and along Beaver Avenue to Hickman Road; thence east along Hickman Road to 30th Street; thence south along 30th Street to Forest Avenue, the point of beginning.

Sec. 1.34. Precinct 34.

Beginning at the intersection of University Avenue and 41st Street; thence west along University Avenue to 55th Street; thence north along 55th Street to Franklin Avenue; thence east along Franklin Avenue to 50th Street; thence north along 50th Street to Hickman Road; thence east along Hickman Road to Beaver Avenue; thence south along Beaver Avenue and along 41st Street to University Avenue, the point of beginning.

Sec. 1.35. Precinct 35.

Beginning at the intersection of 55th Street and University Avenue; thence west along University Avenue to 63rd Street and the west corporate limits of the City of Des Moines, Iowa; thence north along 63rd Street to Hickman Road; thence east along Hickman Road to 50th Street; thence south along 50th Street to Franklin Avenue; thence west along Franklin Avenue to 55th Street; thence south along 55th Street to University Avenue, the point of beginning.

Sec. 1.36. Precinct 36.

Beginning at the intersection of University Avenue and the west corporate limits of the City of Des Moines, Iowa, said west corporate limits also being 63rd Street; thence east along University Avenue to 42nd Street; thence south along 42nd Street to I-235 (MacVicar Freeway); thence west along I-235 (MacVicar Freeway) to 63rd Street and said west corporate limits; thence north along 63rd Street to University Avenue, the point of beginning.

Sec. 1.37. Precinct 37.

Beginning at the intersection of University Avenue and 42nd Street; thence east along University Avenue to 35th Street; thence south along 35th Street to Cottage Grove Avenue; thence east and southeast along Cottage Grove Avenue to I-235 (MacVicar Freeway); thence westerly along I-235 (MacVicar Freeway) to 42nd Street; thence north along 42nd Street to University Avenue, the point of beginning.

Sec. 1.38. Precinct 38.

Beginning at the intersection of 63rd Street and I-235 (MacVicar Freeway); thence east along I-235 (MacVicar Freeway) to Polk Boulevard; thence south along Polk Boulevard to Pleasant Street; thence westerly along Pleasant Street to 52nd Street; thence southerly along 52nd Street to Harwood Drive; thence west and southwest along Harwood Drive to 56th Street; thence south along 56th Street to Ingersoll Avenue; thence east along Ingersoll Avenue to Country Club Boulevard; thence southerly along Country Club Boulevard to Grand Avenue; thence east along Grand Avenue to 42nd Street; thence south along 42nd Street to Foster Drive; thence west, south, east and north along Foster Drive to Glenview Drive; thence southwest and east Glenview Drive to Southwest 42nd Street; thence south along the southerly extension of Southwest 42nd Street to the Norfolk Southern Railroad; thence west and northwest along said Norfolk Southern Railroad to North Valley Drive; thence southwest along North Valley Drive to Muskogee Avenue; thence west along Muskogee Avenue to Southwest 61st Street; thence north along

Southwest 61st Street to Edwards Avenue; thence west along Edwards Avenue to 63rd Street and the west corporate limits of the City of Des Moines, Iowa; thence north along 63rd Street and said west corporate limits to the southerly line of Janet's Woods, an Official Plat where the westerly corporate limits turns northwest; thence northwest along an irregular line of the westerly corporate limits to the westerly extension of Center Street; thence east along said westerly extension and along Center Street to 63rd Street; thence north along 63rd Street to I-235 (MacVicar Freeway), the point of beginning.

Sec. 1.39. Precinct 39.

Beginning at the intersection of Ingersoll Avenue and 56th Street; thence north along 56th Street to Harwood Drive; thence northeast and east along Harwood Drive to 52nd Street; thence northerly along 52nd Street to Pleasant Street; thence easterly along Pleasant Street to Polk Boulevard; thence north along Polk Boulevard to I-235 (MacVicar Freeway); thence easterly along I-235 (MacVicar Freeway) to 35th Street; thence south along 35th Street to Grand Avenue; thence west along Grand Avenue to Country Club Boulevard; thence northerly along Country Club Boulevard to Ingersoll Avenue; thence west along Ingersoll Avenue to 56th Street, the point of beginning.

Sec. 1.40. Precinct 40.

Beginning at the intersection of Grand Avenue and 35th Street; thence north along 35th Street to I-235 (MacVicar Freeway); thence easterly along I-235 (MacVicar Freeway) to Cottage Grove Avenue; thence southeasterly along Cottage Grove Avenue to Martin Luther King Jr Parkway; thence south along Martin Luther King Jr Parkway to Grand Avenue; thence west along Grand Avenue to 35th Street, the point of beginning.

Sec. 1.41. Precinct 41.

Beginning at the intersection of Martin Luther King Jr Parkway and Grand Avenue; thence south along Martin Luther King Jr Parkway to the Norfolk Southern Railroad; thence southwest along the Norfolk Southern Railroad to the southerly extension of Southwest 42nd Street; thence north along said southerly extension of Southwest 42nd Street to Glenview Drive; thence west and northwest along Glenview Drive to Foster Drive; thence south, west, north and east along Foster Drive to 42nd Street; thence north along 42nd Street to Grand Avenue; thence east along Grand Avenue to Martin Luther King Jr Parkway, the point of beginning.

Sec. 1.42. Precinct 42.

Beginning at the intersection of Cottage Grove Avenue and I-235 (MacVicar Freeway); thence east long I-235 (MacVicar Freeway) to the Des Moines River; thence southerly along the Des Moines River to Grand Avenue; thence westerly along Grand Avenue to 9th Street; thence northerly along 9th Street to High Street; thence westerly along High Street to 14th Street; thence continuing westerly along Ingersoll Avenue to Linden Street (Vacated); thence west along Linden Street (Vacated) to 16th Street; thence north along 16th Street to Center Street; thence west along Center Street to 20th Street; thence south along 20th Street to Pleasant Street; thence west along the westerly extension of Pleasant Street to Martin Luther King Jr Parkway; thence north along Martin Luther King Jr Parkway to Cottage Grove Avenue; thence west and northwest along Cottage Grove Avenue to I-235 (MacVicar Freeway), the point of beginning.

Sec. 1.43. Precinct 43.

Beginning at the intersection of Center Street and 16th Street; thence south along 16th Street to Linden Street (Vacated); thence east along Linden Street (Vacated) to Ingersoll Avenue; thence northeast along Ingersoll Avenue to 14th Street; thence easterly along High Street to 9th Street; thence southerly along 9th Street and along Southwest 9th Street to Thomas Beck Road; thence southwesterly along Thomas Beck Road to Bell Avenue; thence west along Bell Avenue to Fleur Drive; thence north along Fleur Drive and along Martin Luther King Jr Parkway to the westerly extension of Pleasant Street; thence east along said easterly extension of Pleasant Street to 20th Street; thence north

along 20th Street to Center Street; thence east along Center Street to 16th Street, the point of beginning.

Sec. 1.44. Precinct 44.

Beginning at the intersection of Grand Avenue and 9th Street; thence easterly along Grand Avenue to the Des Moines River; thence southerly along the Des Moines River to the Raccoon River; thence southwesterly along the Raccoon River to Southwest 9th Street; thence northerly along Southwest 9th Street and along 9th Street to Grand Avenue, the point of beginning.

Sec. 1.45. Precinct 45.

Beginning at the intersection of I-235 (MacVicar Freeway) and the Des Moines River; thence easterly along I-235 (MacVicar Freeway) to East 15th Street (U.S. Highway 69); thence southerly along East 15th Street (U.S. Highway 69) and along Johnson Court (U.S. Highway 69) and along Southeast 14th Street (U.S. Highway 69) to the Iowa Interstate Railroad; thence west along the Iowa Interstate Railroad to East 7th Street; thence northerly along East 7th Street to East Court Avenue; thence westerly along East Court Avenue to the Des Moines River; thence northerly along the Des Moines River to I-235 (MacVicar Freeway), the point of beginning.

Sec. 1.46. Precinct 46.

Beginning at the intersection of East Court Avenue and the Des Moines River; thence easterly along East Court Avenue to East 7th Street; thence southerly along East 7th Street to the Iowa Interstate Railroad; thence east along said Iowa Interstate Railroad to Southeast 14th Street (U.S. Highway 69); thence south along Southeast 14th Street (U.S. Highway 69) to the Des Moines River; thence northwesterly along the Des Moines River to East Court Avenue, the point of beginning.

Sec. 1.47. Precinct 47.

Beginning at the intersection of East 15th Street (U.S. Highway 69) and I-235 (MacVicar Freeway); thence northeast along I-235 (MacVicar Freeway) to East University Avenue; thence east along East University Avenue to the North/South section of the Union Pacific Railroad; thence south along said North/South section of the Union Pacific Railroad to the East/West section of the Union Pacific Railroad; thence westerly along said East/West section of the Union Pacific Railroad to Southeast 14th Street (U.S. Highway 69); thence northerly along Southeast 14th Street (U.S. Highway 69) and along Johnson Court (U.S. Highway 69) and along East 15th Street (U.S. Highway 69) to I-235 (MacVicar Freeway), the point of beginning.

Sec. 1.48. Precinct 48.

Beginning at the intersection of the East University Avenue and East 25th Street; Thence south along East 25th street to Logan Avenue: thence east along Logan Avenue to East 26th Street; thence south along East 26th Street and along the southerly extension of East 26th Street to the East/West section of the Union Pacific Railroad south of Dean Avenue; thence west along said East/West section of the Union Pacific Railroad to the North/South section of the Union Pacific Railroad; thence north along said North/South section of the Union Pacific Railroad to East University Avenue; thence east along East University Avenue to East 25th Street, the point of beginning.

Sec. 1.49. Precinct 49.

Beginning at the intersection of East University Avenue and East 25th Street; thence east along East University Avenue to the east corporate limits of the City of Des Moines, Iowa; thence south along said east corporate limits to Dean Avenue; thence westerly along Dean Avenue to East 26th Street; thence north along East 26th Street to Logan Avenue; thence west along Logan Avenue to East 25th Street; thence north along East 25th Street to East University Avenue, the point of beginning.

Sec. 1.50. Precinct 50.

Beginning at the intersection of Southeast 14th Street (U.S. Highway 69) and the East/West section of the Iowa Interstate Railroad; thence

easterly along said East/West section of the Iowa Interstate Railroad to the East/West section of the Union Pacific Railroad; thence continuing easterly along said East/West section of the Union Pacific Railroad to the southerly extension of East 26th Street; thence north along said southerly extension of East 26th Street to Dean Avenue; thence east along Dean Avenue to the east corporate limits of the City of Des Moines, Iowa; thence south along said east corporate limits to the Des Moines River; thence northwest along said Des Moines River to Southeast 14th Street (U.S. Highway 69); thence north along Southeast 14th Street (U.S. Highway 69) to said East/West section of the Iowa Interstate Railroad, the point of beginning.

Sec. 1.51. Precinct 51.

Beginning at the intersection of Southeast 22nd Street and East Park Avenue; thence north along Southeast 22nd Street to East Virginia Avenue; thence easterly along East Virginia Avenue to Riverwoods Avenue; thence northeasterly along Riverwoods Avenue to River Ridge Road; thence northwesterly along River Ridge Road to Southeast 22nd Street; thence northerly along Southeast 22nd Street to Hartford Avenue; thence northwest along Hartford Avenue to the west line of Section 13, Township 78 North, Range 24 West of the 5th P.M.; thence north along the west line of said Section 13 and along the west line of Section 12, Township 78 North, Range 24 West of the 5th P.M. to the Des Moines River; thence east and south along the Des Moines River to the North/South centerline of Section 20, Township 78 North, Range 23 West of the 5th P.M.; thence south along said North/South centerline to the East/West centerline of said Section 20; thence west along the East/West centerline of said Section 20 and along the East/West centerline of Section 19, Township 78 North, Range 24 West of the 5th P.M. to the intersection of South Brooks Drive and East Watrous Avenue; thence continuing west along East Watrous Avenue and along its westerly extension to Evergreen Avenue; thence northwest and west along Evergreen Avenue to Southeast 18th Court; thence north along Southeast 18th Court to East Park Avenue; thence east along East Park Avenue to Southeast 22nd Street, the point of beginning.

Sec. 1.52. Precinct 52.

Beginning at the intersection of East Park Avenue and Southeast 22nd Street; thence west along East Park Avenue to Southeast 17th Street; thence northerly along Southeast 17th Street to East Glenwood Drive; thence west along East Glenwood Drive to Southeast 17th Street; thence northerly along East 17th Street to Pioneer Road; thence west along Pioneer Road to Southeast 14th Street (U.S. Highway 69); thence north along Southeast 14th Street (U.S. Highway 69) to the Des Moines River; thence east and southeast along the Des Moines River to the west line of Section 12, Township 78 North, Range 24 West of the 5th P.M.; thence south along the west line of said Section 12 and along the west line of Section 13, Township 78 North, Range 24 West of the 5th P.M. to Hartford Avenue; thence southeast along Hartford Avenue to Southeast 22nd Street; thence southerly along East 22nd Street to River Ridge Road; thence southeasterly along River Ridge Road to Riverwoods Avenue; thence southwesterly along Riverwoods Avenue to East Virginia Avenue; thence westerly along East Virginia Avenue to Southeast 22nd Street; thence south along Southeast 22nd Street to East Park Avenue, the point of beginning.

Sec. 1.53. Precinct 53.

Beginning at the intersection of Southeast 14th Street (U.S. Highway 69) and East Watrous Avenue; thence west along Watrous Avenue to Southeast 8th Street; thence north along Southeast 8th Street to East Hughes Avenue; thence west along Hughes Avenue to Southeast 5th Street; thence north along Southeast 5th Street and its northerly extension to East Bell Avenue; thence east along East Bell Avenue to Southeast 14th Street (U.S. Highway 69); thence north along Southeast 14th Street (U.S. Highway 69) to Pioneer Road; thence east along Pioneer Road to Southeast 17th Street; thence southerly along Southeast 17th Street to Glenwood Avenue; thence east along Glenwood Avenue to Southeast 17th Street; thence southerly along Southeast

17th Street to East Pleasant View Drive; thence west along East Pleasant View Drive to Southeast 14th Street (U.S. Highway 69); thence south along Southeast 14th Street (U.S. Highway 69) to East Watrous Avenue, the point of beginning.

Sec. 1.54. Precinct 54.

Beginning at the intersection of Southeast 14th Street (U.S. Highway 69) and East Bell Avenue; thence west along East Bell Avenue to Southeast 5th Street; thence south along Southeast 5th Street and along its southerly extension to East Park Avenue; thence west along East Park Avenue to South Union Street; thence north along South Union Street to Hartford Avenue; thence east along Hartford Avenue to the northerly extension of Southeast 5th Street; thence north along said northerly extension of Southeast 5th Street to the intersection of East Granger Avenue and Southeast 5th Street; thence continuing north along Southeast 5th Street to East Livingston Avenue; thence east along East Livingston Avenue to Southeast 6th Street; thence north along Southeast 6th Street to the Des Moines River; thence southeast along the Des Moines River to Southeast 14th Street (U.S. Highway 69); thence south along Southeast 14th Street (U.S. Highway 69) to East Bell Avenue, the point of beginning.

Sec. 1.55. Precinct 55.

Beginning at the intersection of Indianola Avenue and Hartford Avenue; thence northwest along Indianola Avenue to Indianola Road; thence westerly along Indianola Road to Southwest 7th Street; thence northerly along Southwest 7th Street to the Raccoon River; thence northeasterly along the Raccoon River to the Des Moines River; thence southeasterly along the Des Moines River to Southeast 6th Street; thence south along Southeast 6th Street to East Livingston Avenue; thence west along East Livingston Avenue to Southeast 5th Street; thence south along Southeast 5th Street and along its southerly extension to Hartford Avenue; thence west along Hartford Avenue to Indianola Avenue, the point of beginning.

Sec. 1.56. Precinct 56.

Beginning at the intersection of Indianola Avenue and Hartford Avenue; thence west along Hartford Avenue to South Union Street; thence south along South Union Street to Olinda Avenue; thence west along Olinda Avenue to Southwest 9th Street; thence northerly along Southwest 9th Street to the Raccoon River; thence northeast along the Raccoon River to Southwest 7th Street; thence southerly along Southwest 7th Street to Indianola Road; thence easterly along Indianola Road to Indianola Avenue; thence southeast along Indianola Avenue to Hartford, the point of beginning.

Sec. 1.57. Precinct 57.

Beginning at the intersection of South Union Street and Watrous Avenue; thence west along Watrous Avenue to Southwest 9th Street; thence north along Southwest 9th Street to Olinda Avenue; thence east along Olinda Avenue to South Union Street; thence south along South Union Street to Watrous Avenue, the point of beginning.

Sec. 1.58. Precinct 58.

Beginning at the intersection of Southwest 9th Street and Watrous Avenue; thence west along Watrous Avenue to Fleur Drive; thence north along Fleur Drive to Bell Avenue; thence east along Bell Avenue to Thomas Beck Road; thence northeasterly along Thomas Beck Road to Southwest 9th Street; thence southerly along Southwest 9th Street to Watrous Avenue, the point of beginning.

Sec. 1.59. Precinct 59.

Beginning at the intersection of Fleur Drive and Park Avenue; thence west along Park Avenue to Southwest 63rd Street and the west corporate limits of the City of Des Moines, Iowa; thence north along Southwest 63rd Street to Edwards Avenue; thence east along Edwards Avenue to Southwest 61st Street; thence south along Southwest 61st Street to Muskogee Avenue; thence east along Muskogee Avenue to North Valley Drive; thence northeast along North Valley Drive to the Norfolk Southern Railroad; thence

southeast, east and northeast along said Norfolk Southern Railroad to Martin Luther King Jr Parkway; thence south along Martin Luther King Jr Parkway to Fleur Drive; thence continuing south along Fleur Drive to Park Avenue, the point of beginning.

Sec. 1.60. Precinct 60.

Beginning at the intersection of Fleur Drive and Park Avenue; thence south along Fleur Drive to Watrous Avenue; thence west along Watrous Avenue to Southwest 26th Street; thence south along Southwest 26th Street to Stanton Avenue; thence east along Stanton Avenue to Fleur Drive; thence south along Fleur Drive to Army Post Road; thence westerly along Army Post Road to Iowa Highway 28; thence northerly along Iowa Highway 28 to Willow Creek Avenue; thence west along Willow Creek Avenue to Southwest 63rd Street and the west corporate limits of the City of Des Moines, Iowa; thence north along said west corporate limits to Park Avenue; thence east along Park Avenue to Fleur Drive, the point of beginning.

Sec. 1.61. Precinct 61, a combined Des Moines/Norwalk Precinct.

Beginning at the intersection of Fleur Drive and McKinley Avenue; thence east along McKinley Avenue to Southwest 14th Street; thence south along Southwest 14th Street to Porter Avenue; thence east along Porter Avenue to Southwest 13th Place; thence south along Southwest 13th Place to Leland Avenue; thence west along Leland Avenue to Southwest 14th Street; thence south along Southwest 14th Street to Havens Avenue; thence east along Havens Avenue to Southview Drive; thence north along Southview Drive to Luster Lane; thence east along Luster Lane to Royal Road; thence south along Royal Road to Meadow Lane; thence continuing south along the southerly extension of Royal Road, said southerly extension being the east line of Lot 26 in Valley Acres, an Official Plat, to the north line of Southgate Manor, an Official Plat; thence west along said north line to the west line of said Southgate Manor; thence south along said west line to the intersection of the westerly extension of Southdale Drive and a creek; thence southwest along said creek to south line of Polk County, Iowa; thence west along said south line of Polk County, Iowa to the southerly extension of Southwest 60th Street; thence north along said southerly extension of Southwest 60th Street and along west corporate limits of the City of Des Moines, Iowa to Willow Creek Avenue; thence east along Willow Creek Avenue to Iowa Highway 28; thence south and southeast along Iowa Highway 28 to Army Post Road; thence easterly along Army Post Road to Fleur Drive; thence north along Fleur Drive to McKinley Avenue, the point of beginning.

Sec. 1.62. Precinct 62.

Beginning at the intersection of Fleur Drive and McKinley Avenue; thence north along Fleur Drive to Stanton Avenue; thence west along Stanton Avenue to Southwest 26th Street; thence north along Southwest 26th Street to Watrous Avenue; thence east along Watrous Avenue to Southwest 9th Street; thence south along Southwest 9th Street to Porter Avenue; thence west along Porter Avenue to Southwest 14th Street; thence north along Southwest 14th Street to McKinley Avenue; thence west along McKinley Avenue to Fleur Drive, the point of beginning.

Sec. 1.63. Precinct 63.

Beginning at the intersection of Porter Avenue and Southwest 13th Place; thence south along Southwest 13th Place; thence south along Southwest 13th Place to Leland Avenue; thence west along Leland Avenue to Southwest 14th Street; thence south along Southwest 14th Street to Havens Avenue; thence east along Havens Avenue to Southview Drive; thence north along Southview Drive to Luster Lane; thence east along Luster Lane to Royal Road; thence south along Royal Road to Meadow Lane; thence continuing south along southerly extension of Royal Road, said southerly extension being the east line of Lot 26 in Valley Acres, an Official Plat, to the north line of Southgate Manor, an Official Plat; thence west along said north line to the west line of said Southgate Manor; thence south along said west line to the intersection of the westerly extension of Southdale Drive and a creek; thence southwest along said creek to the

south line of Polk County, Iowa; thence east along said south line of Polk County, Iowa to Southwest 9th Street; thence north along Southwest 9th Street to Porter Avenue; thence west along Porter Avenue to Southwest 13th Place, the point of beginning.

Sec. 1.64. Precinct 64.

Beginning at the intersection of Southwest 9th Street and Army Post Road; thence north along Southwest 9th Street to Watrous Avenue; thence east along Watrous Avenue to South Union Street; thence south along South Union Street to Army Post Road; thence west along Army Post Road to Southwest 9th Street, the point of beginning.

Sec. 1.65. Precinct 65.

Beginning at the intersection of South Union Street and East McKinley Avenue; thence north along South Union Street to East Park Avenue; thence east along East Park Avenue to Southeast 5th Street; thence south along Southeast 5th Street to East McKinley Avenue; thence west along East McKinley Avenue to South Union Street, the point of beginning.

Sec. 1.66. Precinct 66.

Beginning at the intersection of South Union Street and East McKinley Avenue; thence east along East McKinley Avenue to Southeast 5th Street; thence south along Southeast 5th Street to East Army Post Road; thence west along East Army Post Road to South Union Street; thence north along South Union Street to East McKinley Avenue, the point of beginning.

Sec. 1.67. Precinct 67.

Beginning at the intersection of East Army Post Road and Southeast 5th Street; thence north along Southeast 5th Street to East Hughes Avenue; thence east along East Hughes Avenue to Southeast 8th Street; thence south along Southeast 8th Street to East Watrous Avenue; thence east along East Watrous Avenue to Southeast 14th Street (U.S. Highway 69); thence south along Southeast 14th Street (U.S. Highway 69) to East Army Post Road; thence west along East Army Post Road to Southeast 5th Street, the point of beginning.

Sec. 1.68. Precinct 68.

Beginning at the intersection of Southwest 9th Street and Army Post Road; thence east along Army Post Road and along East Army Post Road to Southeast 14th Street (U.S. Highway 69); thence southerly along Southeast 14th Street (U.S. Highway 69) to Southridge Boulevard (U.S. Highway 69); thence southeasterly along Southridge Boulevard (U.S. Highway 69) to East County Line Road and the south line of Polk County, Iowa; thence west along the south line of Polk County, Iowa and along East County Line Road and along County Line Road to Southwest 9th Street; thence north along Southwest 9th Street to Army Post Road, the point of beginning.

Sec. 1.69. Precinct 69.

Beginning at the intersection of Southeast 14th Street (U.S. Highway 69) and East McKinley Avenue; thence north along Southeast 14th Street (U.S. Highway 69) to East Pleasant View Drive; thence east along East Pleasant Drive to Southeast 17th Street; thence southerly along Southeast 17th Street to East Park Avenue; thence east along East Park Avenue to Southeast 18th Court; thence south along East 18th Court to Evergreen Avenue; thence east and southeast along Evergreen Avenue to East Watrous Avenue; thence east along East Watrous Avenue to Southeast 30th Court; thence south along the southerly extension of Southeast 30th Court to the southern bank of Easter Lake; thence westerly along said southern bank of Easter Lake to west end of Easter Lake and the east end of Yeader Creek; thence westerly along Yeader Creek to Indianola Avenue; thence southeast along Indianola Avenue to East McKinley Avenue; thence west along East McKinley Avenue to Southeast 14th Street (U.S. Highway 69), the point of beginning.

Sec. 1.70. Precinct 70.

Beginning at the intersection of East McKinley Avenue and Southeast 14th Street (U.S. Highway

69); thence east along East McKinley Avenue to Indianola Avenue; thence northwest along Indianola Avenue to Yeader Creek; thence easterly along Yeader Creek to the west end of Easter Lake; thence easterly along the southern bank of Easter Lake to the east line of Section 24, Township 78 North, Range 24 West of the 5th P.M.; thence south along the east line of said Section 24 and along the east line of Section 25, Township 78 North, Range 24 West of the 5th P.M. to East Army Post Road; thence west along East Army Post Road to Southeast 14th Street (U.S. Highway 69); thence north along Southeast 14th Street (U.S. Highway 69) to East McKinley Avenue, the point of beginning.

Sec. 1.71. Precinct 71.

Beginning at the intersection of Southeast 14th Street (U.S. Highway 69) and East Army Post Road; thence east along East Army Post Road to the east line of Section 36, Township 78 North, Range 24 West of the 5th P.M.; thence south along the east line of said Section 36 to south line of Polk County, Iowa; thence west along said south line of Polk County, Iowa to Southridge Boulevard (U.S. Highway 69); thence northwest along Southridge Boulevard (U.S. Highway 69) to Southeast 14th Street (U.S. Highway 69); thence northerly along Southeast 14th Street (U.S. Highway 69) to East Army Post Road, the point of beginning.

Sec. 1.72. Precinct 72.

Beginning at the intersection of East Watrous Avenue and Southeast 30th Court; thence east along the easterly extension of East Watrous Avenue and along East Watrous Avenue to the North/South centerline of Section 20, Township 78 North, Range 23 West of the 5th P.M.; thence north along said North/South centerline of Section 20, Township 78 North, Range 23 West of the 5th P.M. to the Des Moines River; thence easterly along the Des Moines River to U.S. Highway 65; thence southerly and westerly along U.S. Highway 65 and along southeasterly corporate limits of the City of Des Moines, Iowa to southerly extension of Southeast 36th Street; thence south along said southerly extension of Southeast 36th Street to East County Line Road; thence west along East County Line Road to Southeast 34th Street, said East County Line Road being the south line of Polk County, Iowa; thence continuing west along said south line of Polk County, Iowa to the west line of Section 31, Township 78 North, Range 23 West of the 5th P.M.; thence north along said the west line of said Section 31 and along the west line of Section 30, Township 78 North, Range 23 West of the 5th P.M. and along the west line of Section 19, Township 78 North, Range 23 West of the 5th P.M. to East Watrous Avenue, the point of beginning.

Sec. 1.73. Precinct 73, a combined city/township precinct.

Beginning at the intersection of East County Line Road and south corporate limits line of the City of Des Moines, Iowa and Southeast 34th Street; thence south along Southeast 34th Street to Beardsley Street; thence east along Beardsley Street to 140th Avenue; thence south along 140th Avenue to the North River; thence westerly along the North River to south corporate limits of the City of Des Moines, Iowa; thence clockwise and counterclockwise along said south corporate limits to U.S. Highway 65/69; thence southeasterly along U.S. Highway 65/69 and south corporate limits of the City of Des Moines, Iowa to the North River; thence northwesterly along the North River to the westerly extension of southern corporate limits line of the City of Des Moines, Iowa; thence west along said southern corporate limits of the City of Des Moines, Iowa to East Border Street; thence west along East Border Street and said south corporate limits line of the City of Des Moines Iowa, and continuing west along Beardsley Street to its intersection with the southern corporate limits line of the City of Des Moines, Iowa; thence north along said southern corporate limits to the northwesterly right-of-way line of Iowa Highway 5; thence westerly and northwesterly along the southern corporate limits line of the City of Des Moines, Iowa and the northwesterly right-of-way line of Iowa Highway 5 to South Union Street; thence north along South Union Street and said southern corporate limits to East County Line Road; thence east along East County Line Road and

along said south line of Polk County, Iowa to Southeast 34th Street and the south corporate limits line of the City of Des Moines, Iowa, the point of beginning.

Sec. 1.74. Precinct 74.

Beginning at the intersection of County Line Road and South Union Street (also known as Clover Hill Drive and as 100th Avenue); thence south along South Union Street to Iowa Highway 5 and the southern corporate limits of the City of Des Moines, Iowa; thence following said southerly corporate limits, an irregular line, clockwise easterly, southerly, westerly, and northerly to the intersection of 85th Avenue and Bronze Street (also known as Blue Street); thence north along 85th Avenue to Border Street (also known as Beardsley Street); thence west along Border Street to the westerly corporate limits of the City of Des Moines; thence north, west and north along said westerly corporate limits to County Line Road (also known as Echo Valley Drive) and the south line of Polk County, Iowa; thence east along said south line of Polk County, Iowa to South Union Street, the point of beginning.

Sec. 1.75. Saylor-2 Precinct, a combined city/township precinct.

The incorporated portion of the City of Des Moines within the Polk County Saylor-2 precinct is as follows:

Beginning at the north right of way line of I-80/35 and the west right of way line East 14th Street (U.S. Highway 65/69 and also known as Northeast 14th Street), said intersection being on the corporate limits of the City of Des Moines, Iowa; thence westerly along said corporate limits to the northerly turn of the corporate limits of the City of Des Moines, Iowa; thence north, east and north along said corporate limits to Northeast 50th Avenue (also known as Goode Avenue); thence east along Northeast 50th Avenue and along said corporate limits to the southerly extension of the west line of Lot 19 in Goode Heights, Plat One, an Official Plat, said southerly extension being said corporate limits; thence northerly along an irregular line being said corporate limits, crossing both Northeast 50th Place and Northeast 51st Avenue, to the northern corporate limits of the City of Des Moines, Iowa; thence east along said northern corporate limits to said west right of way of East 14th Street (U.S. Highway 65/69) and to the easterly corporate limits of the City of Des Moines, Iowa; thence southerly along an irregular line being said easterly corporate limits of the City of Des Moines, Iowa to said north right of way line of I-80/35, the point of beginning.

SUBCHAPTER 2. WARDS

Sec. 2.0. Wards.

The City of Des Moines is hereby divided into four wards as further described in this subchapter.

Sec. 2.1. First ward described.

The first ward shall be and include those areas of the city encompassed by and located within the boundaries of precincts 7, 8, 9, 10, 11, 12, 13, 14, 15, 29, 30, 31, 32, 33, 34, and 35.

Sec. 2.2. Second ward described.

The second ward shall be and include those areas of the city encompassed by and located within the boundaries of precincts 1, 2, 3, 4, 5, 6, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28 and the Saylor-2 precinct.

Sec. 2.3. Third ward described.

The third ward shall be and include those areas of the city encompassed by and located within the boundaries of precincts 36, 37, 38, 39, 40, 41, 42, 43, 44, 45, 46, 55, 58, 59, 60, 61, 62, 63 and 74.

Sec. 2.4. Fourth ward described.

The fourth ward shall be and include those areas of the city encompassed by and located within the boundaries of precincts 47, 48, 49, 50, 51, 52, 53, 54, 56, 57, 64, 65, 66, 67, 68, 69, 70, 71, 72, and 73.

APPENDIX C

ELECTRIC FRANCHISE*

Section 1.	Franchise extended.
Section 2.	Representation of Company.
Section 3.	Rates.
Section 4.	Annual report.
Section 5.	Compliance with city ordinances.
Section 6.	Franchise fee.
Section 6A.	Temporary increase to franchise fee to be used solely toward payment of the *Kragnes* v. *City of Des Moines* judgment.
Section 7.	Exemption from payment of franchise fee.
Section 8.	Remittance of franchise fee.
Section 9.	Preservation of city's rights.
Section 10.	Forfeiture of Franchise; Cure of Defaults.
Section 11.	Reservation of Home Rule Powers.
Section 12.	Maps of Distribution System.
Section 13.	Use of Eminent Domain Powers.
Section 14.	Severability; effect of regulatory actions.
Section 15.	Publication of Ordinance and Notice; Election upon submission of valid petition; effective date.

***Editor's note—**Printed herein is Ord. No. 14,341, §§ 1—15, adopted July 12, 2004, which extended and amended the original electrical franchise of the city, Ord. No. 6280, as adopted by the city on May 4, 1987, and ratified by the voters in a special election on June 9, 1987. Amendments to the ordinance will be indicated by parenthetical history notes following amended provisions. The absence of a history note indicates that the provision remains unchanged from the original ordinance. Obvious misspellings and punctuation errors have been corrected without notation. To facilitate indexing, catchlines have been added by the editor. For stylistic purposes, headings and catchlines have been made uniform and the same system of capitalization, citation to state statutes, and expression of numbers in text as appears in the Municipal Code has been used. Additions made for clarity are indicated by brackets [ ].

Cross references—Any franchise granted by any ordinance of the city saved from repeal, § 1-20(3); electrical code, § 26-261 et seq.; businesses, ch. 30; planning, ch. 82; streets, sidewalks, skywalks and other public places, ch. 102; utilities, ch. 118; city electric light and power, § 118-476 et seq.

ORDINANCE NO. 14,341

AN ORDINANCE extending and amending the franchise heretofore granted to Iowa Power and Light Company, predecessor in interest to MidAmerican Energy Company, and granting unto MidAmerican Energy Company, its successors and assigns, the right, franchise and privilege for a period of ten years from and after the effective date hereof, to acquire, construct, operate and maintain in the City of Des Moines, Iowa, the necessary facilities for the production, distribution, transmission and sale of electric energy for public and private use; and to use and occupy the public streets, highways, avenues, alleys, bridges and public places for such purposes; providing for the imposition and collection of a franchise fee in consideration thereof; and prescribing the terms and conditions thereof.

WITNESSETH:

WHEREAS, pursuant to Ordinance No. 6280 adopted by the city council on May 4, 1987 and ratified by the voters at a special election on June 9, 1987, the City of Des Moines did grant unto Iowa Power and Light Company for a period of 25 years from and after the effective date thereof, a franchise to acquire, construct, operate and maintain in the City of Des Moines, Iowa, the necessary facilities for the production, distribution, transmission and sale of electric energy for public and private use; and to use and occupy the public streets, highways, avenues, alleys, bridges and public places for such purposes; providing for the imposition and collection of a franchise fee from its customers in consideration thereof; and prescribing the terms and conditions thereof; and

WHEREAS, this City Council has determined that it would be in the best interests of the City of Des Moines and its residents to amend said franchise and to extend the term thereof for a period of ten years, all as hereinafter provided.

Now, Therefore, Be It Ordained by the City Council of the City of Des Moines, Iowa:

Section 1. Franchise extended.

That the franchise heretofore granted to Iowa Power and Light Company, to acquire, construct, operate and maintain in the City of Des Moines, Iowa ("city"), the necessary facilities for the production, distribution, transmission and sale of electric energy for public and private use and to construct and maintain along, upon, across and under the streets, highways, avenues, alleys, bridges and public places the necessary fixtures and equipment for such purposes, be and the same is hereby extended in the name of MidAmerican Energy Company (hereinafter "the Company") for a period of ten years, such that said amended franchise shall continue in effect until June 15, 2022, at which time said franchise shall terminate and expire.

Section 2. Representation of Company.

The Company agrees to provide and maintain its entire system pursuant to Iowa Utilities Board rules in such condition that it will furnish safe, adequate, efficient and continuous service. All electric energy service shall be supplied through a meter or other means which shall accurately measure the amount of electric energy supplied to a consumer. There is no constitutional or other legal impediment to the enforceability of this franchise agreement.

Section 3. Rates.

The Company shall supply electric energy to consumers within the city at just and reasonable rates. It is recognized that under the statutes of the State of Iowa, the Iowa Utilities Board of the Iowa Department of Commerce is vested with legal authority to supervise, fix or change rates and charges authorized to be charged by the Company to electric energy consumers. In the event rates or charges in general, or any class or type of rate or charge shall, during the term of this franchise, cease to be regulated by any state or federal agency the City Council reserves the right to regulate such rates within the City with the costs of such regulation to borne by the company as a part of its cost of doing business, and reflected in its rates.

Section 4. Annual report.

The Company shall file with the city council a true copy of the annual report of the Company pertaining to the operation or conduct of the

business of the Company under this franchise. The report may be the same as the Company shall have prepared for such year in the ordinary course of business of the Company and filed with the Iowa Utilities Board. In the event the city council undertakes to regulate rates for service within the city, the Company shall provide all information necessary to permit the City Council to set just and reasonable rates.

Section 5. Compliance with city ordinances.

The Company shall at all times during the term of this franchise conform with, submit to, and carry out the provisions of any and all valid ordinances (a) relating to any person, firm or corporation supplying and distributing electric energy to the city or its inhabitants now in force or that hereafter may be lawfully enacted; (b) relating to the use of city right-of-way, including but not limited to the City's Right-of-Way Management Ordinance, now codified in Chapter 102, Article IX of the Des Moines City Code, 2000, entitled "Right-of-Way Occupancy", as same may hereafter be amended; or (c) relating to the city's exercise of its police powers.

Section 6. Franchise fee.

In consideration of the right to construct and maintain such facilities and equipment along, upon, across and under the streets, highways, avenues, alleys, bridges and public places of the city there is hereby imposed upon the Company a franchise fee in an amount equal to five percent (5%) of the gross revenue of the Company, minus uncollectible accounts, derived from the distribution, transmission and retail sale of electric energy by the Company to customers within the current or future corporate limits of the city (excluding, however, the sale of electric energy to the city) commencing with gross receipts received on or after September 1, 2004.

The obligation to pay the fee imposed by this section is modified if:

1. The City permits any other person to sell electrical energy to City consumers and pay a franchise fee or its lawful equivalent at a lesser rate than provided in this section, in which case the Company shall pay at the lesser rate; or
2. If the City adds additional territory by annexation or consolidation and is unable to lawfully impose the franchise fee upon any person selling electrical energy to consumers within the additional territory, in which case the franchise fee on the revenue from sales by the Company in the additional territory shall be equal to that of the lowest fee being paid by any other person selling electrical energy within the additional area.

(O.15,243)

Section 6A. Temporary increase to franchise fee to be used solely toward payment of the *Kragnes* v. *City of Des Moines* judgment.

To avoid dramatic property tax increases or devastating cuts to city services, the rate of the franchise fee shall be temporarily increased for only the next seven consecutive fiscal years to seven and one-half percent (7.5%) of gross revenues generated from sales of the Company in the city and, commencing on the first day of the fiscal year following approval of this section at election, there is hereby imposed upon the Company to pay to the city a franchise fee in an amount equal to seven and one-half percent (7.5%) of the gross revenue of the Company, minus uncollectible accounts, derived from the distribution, transmission, and retail sale of gas or electric energy by the Company to customers within the current or future corporate limits of the city (excluding, however, the sale of gas or electric energy to the city). All such franchise fee amounts assessed and collected during such fiscal years in excess of five percent of gross revenues generated from sales of the Company shall be used solely for the purposes to pay, adjust, renew or extend any part or all of the legal indebtedness of the city as evidenced by bonds, warrants or judgments and the funding or refunding of all amounts ordered refunded by a court of competent jurisdiction for franchise fees assessed and collected by the city prior to June 20, 2013.

(O.15,244)

Section 7. Exemption from payment of franchise fee.

The Company shall be relieved of its obligation to collect from its customers and remit to the city the franchise fee if the franchise fee or the manner in which it is collected from customers is ruled to be unlawful by the Supreme Court of Iowa in a final non-appealable decision. If a refund to customers is ordered by the Supreme Court in a final non-appealable decision, the city agrees to repay to the Company such fees as are ordered to be repaid.

Section 8. Remittance of franchise fee.

The Company shall remit the sum collected from customers to the city treasurer quarterly on May 1, August 1, November 1 and February 1 of each year for the three-month periods ending respectively March 31, June 30, September 30 and December 31.

Section 9. Preservation of city's rights.

This franchise shall not be exclusive and shall not restrict in any manner the right of the city council or any other governing body of the city in the exercise of any regulatory power (but not including the power to acquire by condemnation all or part of the Company's facilities) which it may now have, or hereafter be authorized or permitted, by the laws of the State of Iowa.

Section 10. Forfeiture of Franchise; Cure of Defaults.

The violation of any material portion of this franchise by the Company or its successors or assigns, or its failure to promptly perform any of the provisions of this franchise shall be cause for forfeiture of this franchise and the termination of all rights under this franchise. Such forfeiture shall be accomplished after written notice to the Company by the city, and a continuation of the violation, failure or default specified in the notice for at least sixty days from the date the notice was served upon the Company.

If either party determines that there is a default under this franchise, the other party shall be given a written notice describing the default, stating whether a forfeiture or termination of the franchise will be sought, and where the default is curable, providing a reasonable time to cure the default, which shall be not less than thirty nor more than one hundred eighty days.

Section 11. Reservation of Home Rule Powers.

This ordinance is intended to be and shall be construed as consistent with the reservation of local authority contained in the Twenty Fifth Amendment to the Iowa Constitution granting municipalities home rule powers. To such end any limitation on the power of the city is to be strictly construed and the city reserves to itself the right to exercise all power and authority to regulate and control its local affairs, and all ordinances and regulations of the city shall be enforceable against the Company unless, and only to the extent, they are irreconcilable with any rights granted to the Company under this ordinance.

Section 12. Maps of Distribution System.

The Company shall furnish to the city such mapping data regarding its distribution system as the city shall hereafter require pursuant to it right-of-way management program and Section 102-663 of the Des Moines City Code, 2000, or successor provision thereto. At the request of the Company, any information requested with respect to the location or type of equipment which the Company maintains or plans to install in the right-of-way, which qualifies as trade-secret information under I.C. § 550.1 et seq., shall be treated as trade-secret information in accordance with I.C. § 22.1 et seq., pertaining to examination of public records, or which qualifies to be kept confidential under any provision of I.C. 22.1 et seq.

Section 13. Use of Eminent Domain Powers.

The Company shall have the power to condemn private property for the purpose of providing electric utilities to the extent necessary to serve a public use and in a reasonable relationship to an overall plan of transmitting electricity in the public interest upon approval of the City Council. The Company must establish the necessity for each taking of private property, and when so

established, the City Council may approve the condemnation of the private property by resolution. Any such exercise of the eminent domain powers shall be conducted in accordance with the Des Moines Municipal Code.

Section 14. Severability; effect of regulatory actions.

Provisions of this franchise shall not be deemed severable except as provided in Section 7, and if either party is prevented from fulfilling its obligations hereunder by final, non-appealable regulatory or judicial action or by legislative action, the entire franchise shall be deemed of no further force and effect as of the date of the agency order imposing such regulatory action or such other date required by such judicial or legislative action.

Section 15. Publication of Ordinance and Notice; Election upon submission of valid petition; effective date.

Upon Council adoption of this ordinance, the City Clerk shall publish this ordinance, together with a notice as hereafter provided, in a newspaper of general circulation in Polk County, all as required by Section 380.7 of the Iowa Code. If at any time within twenty days after publication of notice of hearing on this ordinance a petition is filed with the clerk of the city in the manner provided by Iowa Code Section 362.4, asking that the question of passage of this ordinance be submitted to the registered voters of the city, then the council shall direct the county commissioner of elections to call a special election upon the question of passage of this ordinance.

This ordinance shall take effect as provided in the notice to be published by the City Clerk, which shall read as follows:

NOTICE

Under the provisions of Section 364.2 of the Iowa Code, Des Moines City Council Ordinance No. 04-14,341, extending the electric franchise heretofore granted to Iowa Power and Light Company, predecessor of MidAmerican Energy Company, shall take effect upon September 1, 2004, provided that MidAmerican Energy Company shall have filed with the city clerk a written acceptance of the franchise extension granted pursuant to said Ordinance. Provided, however, if prior to June 21, 2004, a valid petition under Section 362.2 of the Iowa Code requesting submission to the voters of the proposal to extend said franchise is submitted to the City Clerk, said Ordinance shall not take effect unless it is approved by an affirmative majority vote of the electors. Upon the county election commissioner's certification of an affirmative majority vote of the electors with respect to the proposal to extend the electric franchise as provided in said Ordinance, said Ordinance shall take effect.

Passed July 12, 2004

Signed July 12, 2004

T.M. FRANKLIN COWNIE, Mayor

Attest:

I, Diane Rauh, City Clerk of the City of Des Moines, Iowa, hereby certify that the above and foregoing is a true copy of an ordinance (Roll Call No. 04-1470), passed by the city council of said city at a meeting held July 12, 2004, and signed by the mayor July 12, 2004, and published as provided by law in the Des Moines Register on July 14, 2004.

DIANE RAUH, City Clerk

APPENDIX D

GAS FRANCHISE*

Section 1.	Franchise extended.
Section 2.	Representation of Company.
Section 3.	Rates.
Section 4.	Annual report.
Section 5.	Compliance with city ordinances.
Section 6.	Franchise fee.
Section 6A.	Temporary increase to franchise fee to be used solely toward payment of the *Kragnes* v. *City of Des Moines* judgment.
Section 7.	Exemption from payment of franchise fee.
Section 8.	Remittance of franchise fee.
Section 9.	Preservation of city's rights.
Section 10.	Forfeiture of Franchise; Cure of Defaults.
Section 11.	Reservation of Home Rule Powers.
Section 12.	Maps of Distribution System.
Section 13.	Use of Eminent Domain Powers.
Section 14.	Severability; effect of regulatory actions.
Section 15.	Publication of Ordinance and Notice; Election upon submission of valid petition; effective date.

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*__Editor's note—__Printed herein is Ord. No. 14,342, §§ 1—15, adopted July 12, 2004, which extended and amended the original gas franchise of the city, Ord. No. 6281, as adopted by the city on May 4, 1987, and ratified by the voters in a special election on June 9, 1987. Amendments to the ordinance will be indicated by parenthetical history notes following amended provisions. The absence of a history note indicates that the provision remains unchanged from the original ordinance. Obvious misspellings and punctuation errors have been corrected without notation. To facilitate indexing, catchlines have been added by the editor. For stylistic purposes, headings and catchlines have been made uniform and the same system of capitalization, citation to state statutes, and expression of numbers in text as appears in the Municipal Code has been used. Additions made for clarity are indicated by brackets [ ].

__Cross references—__Any franchise granted by any ordinance by the city saved from repeal, § 1-20(3); businesses, ch. 30; planning, ch. 82; streets, sidewalks, skywalks and other public places, ch. 102; utilities, ch. 118; gas, § 118-536 et seq.

ORDINANCE NO. 14,342

AN ORDINANCE extending and amending the franchise heretofore granted to Midwest Gas Company, predecessor in interest to MidAmerican Energy Company, and granting unto MidAmerican Energy Company, its successors and assigns, the right, franchise and privilege for a period of ten years from and after the effective date hereof, to acquire, construct, operate and maintain in the City of Des Moines, Iowa, the necessary facilities for the production, distribution, transmission and sale of gas for public and private use; and to use and occupy the public streets, highways, avenues, alleys, bridges and public places for such purposes; providing for the imposition and collection of a franchise fee in consideration thereof; and prescribing the terms and conditions thereof.

WITNESSETH:

WHEREAS, pursuant to Ordinance No. 6281 adopted by the city council on May 4, 1987 and ratified by the voters at a special election on June 9, 1987, the City of Des Moines did grant unto Midwest Gas Company for a period of 25 years from and after the effective date thereof, a franchise to acquire, construct, operate and maintain in the City of Des Moines, Iowa, the necessary facilities for the production, distribution, transmission and sale of gas for public and private use; and to use and occupy the public streets, highways, avenues, alleys, bridges and public places for such purposes; providing for the imposition and collection of a franchise fee from its customers in consideration thereof; and prescribing the terms and conditions thereof; and

WHEREAS, this City Council has determined that it would be in the best interests of the City of Des Moines and its residents to amend said franchise and to extend the term thereof for a period of ten years, all as hereinafter provided.

Now, Therefore, Be It Ordained by the City Council of the City of Des Moines, Iowa:

Section 1. Franchise extended.

That the franchise heretofore granted to Midwest Gas Company, to acquire, construct, operate and maintain in the City of Des Moines, Iowa ("city"), the necessary facilities for the production, distribution, transmission and sale of gas for public and private use and to construct and maintain along, upon, across and under the streets, highways, avenues, alleys, bridges and public places the necessary fixtures and equipment for such purposes, be and the same is hereby extended in the name of MidAmerican Energy Company (hereinafter "the Company") for a period of ten years, such that said amended franchise shall continue in effect until June 15, 2022, at which time said franchise shall terminate and expire.

Section 2. Representation of Company.

The Company agrees to provide and maintain its entire system pursuant to Iowa Utilities Board rules in such condition that it will furnish safe, adequate, efficient and continuous service. All gas service shall be supplied through a meter or other means which shall accurately measure the amount of gas supplied to a consumer. There is no constitutional or other legal impediment to the enforceability of this franchise agreement.

Section 3. Rates.

The Company shall supply gas to consumers within the city at just and reasonable rates. It is recognized that under the statutes of the State of Iowa, the Iowa Utilities Board of the Iowa Department of Commerce is vested with legal authority to supervise, fix or change rates and charges authorized to be charged by the Company to gas consumers. In the event rates or charges in general, or any class or type of rate or charge shall, during the term of this franchise, cease to be regulated by any state or federal agency the City Council reserves the right to regulate such rates within the City with the costs of such regulation to borne by the company as a part of its cost of doing business, and reflected in its rates.

Section 4. Annual report.

The Company shall file with the city council a true copy of the annual report of the Company pertaining to the operation or conduct of the business of the Company under this franchise. The report may be the same as the Company shall have prepared for such year in the ordinary course of business of the Company and filed with

the Iowa Utilities Board. In the event the city council undertakes to regulate rates for service within the city, the Company shall provide all information necessary to permit the City Council to set just and reasonable rates.

Section 5. Compliance with city ordinances.

The Company shall at all times during the term of this franchise conform with, submit to, and carry out the provisions of any and all valid ordinances (a) relating to any person, firm or corporation supplying and distributing gas to the city or its inhabitants now in force or that hereafter may be lawfully enacted; (b) relating to the use of city right-of-way, including but not limited to the City's Right-of-Way Management Ordinance, now codified in Chapter 102, Article IX of the Des Moines City Code, 2000, entitled "Right-of-Way Occupancy", as same may hereafter be amended; or (c) relating to the city's exercise of its police powers.

Section 6. Franchise fee.

In consideration of the right to construct and maintain such facilities and equipment along, upon, across and under the streets, highways, avenues, alleys, bridges and public places of the city there is hereby imposed upon the Company a franchise fee in an amount equal to five percent (5%) of the gross revenue of the Company, minus uncollectible accounts, derived from the distribution, transmission and retail sale of gas by the Company to customers within the current or future corporate limits of the city (excluding, however, the sale of gas to the city) commencing with gross receipts received on or after September 1, 2004.

With respect to the distribution of gas other than by sale thereof to a purchaser from the Company, the percentage of gross revenue stated above shall be applied to the full cost of gas delivered within the City, including all costs of acquisition, ownership and transmission thereof, wherever incurred. In determining the amount of the fee, the Company may presume that the cost of gas is the same as if the gas were sold by the Company, unless a different cost is provided.

The obligation to pay the fee imposed by this section is modified if:

1. The City permits any other person to sell gas to City consumers and pay a franchise fee or its lawful equivalent at a lesser rate than provided in this section, in which case the Company shall pay at the lesser rate; or
2. If the City adds additional territory by annexation or consolidation and is unable to lawfully impose the franchise fee upon any person selling gas to consumers within the additional territory, in which case the franchise fee on the revenue from sales by the Company in the additional territory shall be equal to that of the lowest fee being paid by any other person selling gas within the additional area.

(O.15,243)

Section 6A. Temporary increase to franchise fee to be used solely toward payment of the *Kragnes* v. *City of Des Moines* judgment.

To avoid dramatic property tax increases or devastating cuts to city services, the rate of the franchise fee shall be temporarily increased for only the next seven consecutive fiscal years to seven and one-half percent (7.5%) of gross revenues generated from sales of the Company in the city and, commencing on the first day of the fiscal year following approval of this section at election, there is hereby imposed upon the Company to pay to the city a franchise fee in an amount equal to seven and one-half percent (7.5%) of the gross revenue of the Company, minus uncollectible accounts, derived from the distribution, transmission, and retail sale of gas or electric energy by the Company to customers within the current or future corporate limits of the city (excluding, however, the sale of gas or electric energy to the city). All such franchise fee amounts assessed and collected during such fiscal years in excess of five percent of gross revenues generated from sales of the Company shall be used solely for the purposes to pay, adjust, renew or extend any part or all of the legal indebtedness of the city as evidenced by bonds, warrants or judgments and the funding or refunding of all amounts ordered refunded by a

court of competent jurisdiction for franchise fees assessed and collected by the city prior to June 20, 2013.
(O.15,244)

Section 7. Exemption from payment of franchise fee.

The Company shall be relieved of its obligation to collect from its customers and remit to the city the franchise fee if the franchise fee or the manner in which it is collected from customers is ruled to be unlawful by the Supreme Court of Iowa in a final non-appealable decision. If a refund to customers is ordered by the Supreme Court in a final non-appealable decision, the city agrees to repay to the Company such fees as are ordered to be repaid.

Section 8. Remittance of franchise fee.

The Company shall remit the sum collected from customers to the city treasurer quarterly on May 1, August 1, November 1 and February 1 of each year for the three-month periods ending respectively March 31, June 30, September 30 and December 31.

Section 9. Preservation of city's rights.

This franchise shall not be exclusive and shall not restrict in any manner the right of the city council or any other governing body of the city in the exercise of any regulatory power (but not including the power to acquire by condemnation all of part of the Company's facilities) which it may now have, or hereafter be authorized or permitted, by the laws of the State of Iowa.

Section 10. Forfeiture of Franchise; Cure of Defaults.

The violation of any material portion of this franchise by the Company or its successors or assigns, or its failure to promptly perform any of the provisions of this franchise shall be cause for forfeiture of this franchise and the termination of all rights under this franchise. Such forfeiture shall be accomplished after written notice to the Company by the city, and a continuation of the violation, failure or default specified in the notice for at least sixty days from the date the notice was served upon the Company.

If either party determines that there is a default under this franchise, the other party shall be given a written notice describing the default, stating whether a forfeiture or termination of the franchise will be sought, and where the default is curable, providing a reasonable time to cure the default, which shall be not less than thirty nor more than one hundred eighty days.

Section 11. Reservation of Home Rule Powers.

This ordinance is intended to be and shall be construed as consistent with the reservation of local authority contained in the Twenty Fifth Amendment to the Iowa Constitution granting municipalities home rule powers. To such end any limitation on the power of the city is to be strictly construed and the city reserves to itself the right to exercise all power and authority to regulate and control its local affairs, and all ordinances and regulations of the city shall be enforceable against the Company unless, and only to the extent, they are irreconcilable with any rights granted to the Company under this ordinance.

Section 12. Maps of Distribution System.

The Company shall furnish to the city such mapping data regarding its distribution system as the city shall hereafter require pursuant to it right-of-way management program and Section 102-663 of the Des Moines City Code, 2000, or successor provision thereto. At the request of the Company, any information requested with respect to the location or type of equipment which the Company maintains or plans to install in the right-of-way, which qualifies as trade-secret information under I.C. § 550.1 et seq., shall be treated as trade-secret information in accordance with I.C. § 22.1 et seq., pertaining to examination of public records, or which qualifies to be kept confidential under any provision of I.C. § 22.1 et seq.

Section 13. Use of Eminent Domain Powers.

The Company shall have the power to condemn private property for the purpose of providing gas

utilities to the extent necessary to serve a public use and in a reasonable relationship to an overall plan of transmitting and/or distributing gas in the public interest upon approval of the City Council. The Company must establish the necessity for each taking of private property, and when so established, the City Council may approve the condemnation of the private property by resolution. Any such exercise of the eminent domain powers shall be conducted in accordance with the Des Moines Municipal Code.

Section 14. Severability; effect of regulatory actions.

Provisions of this franchise shall not be deemed severable except as provided in Section 7, and if either party is prevented from fulfilling its obligations hereunder by final, non-appealable regulatory or judicial action or by legislative action, the entire franchise shall be deemed of no further force and effect as of the date of the agency order imposing such regulatory action or such other date required by such judicial or legislative action.

Section 15. Publication of Ordinance and Notice; Election upon submission of valid petition; effective date.

Upon Council adoption of this ordinance, the City Clerk shall publish this ordinance, together with a notice as hereafter provided, in a newspaper of general circulation in Polk County, all as required by Section 380.7 of the Iowa Code. If at any time within twenty days after publication of notice of hearing on this ordinance a petition is filed with the clerk of the city in the manner provided by Iowa Code Section 362.4, asking that the question of passage of this ordinance be submitted to the registered voters of the city, then the council shall direct the county commissioner of elections to call a special election upon the question of passage of this ordinance.

This ordinance shall take effect as provided in the notice to be published by the City Clerk, which shall read as follows:

NOTICE

Under the provisions of Section 364.2 of the Iowa Code, Des Moines City Council Ordinance No. 04-14,342, extending the gas franchise heretofore granted to Midwest Gas Company, predecessor of MidAmerican Energy Company, shall take effect upon September 1, 2004, provided that MidAmerican Energy Company shall have filed with the city clerk a written acceptance of the franchise extension granted pursuant to said Ordinance. Provided, however, if prior to June 21, 2004, a valid petition under Section 362.2 of the Iowa Code requesting submission to the voters of the proposal to extend said franchise is submitted to the City Clerk, said Ordinance shall not take effect unless it is approved by an affirmative majority vote of the electors. Upon the county election commissioner's certification of an affirmative majority vote of the electors with respect to the proposal to extend the gas franchise as provided in said Ordinance, said Ordinance shall take effect.

Passed July 12, 2004

Signed July 12, 2004

T.M. FRANKLIN COWNIE, Mayor

Attest:

I, Diane Rauh, City Clerk of the City of Des Moines, Iowa, hereby certify that the above and foregoing is a true copy of an ordinance (Roll Call No. 04-1469), passed by the city council of said city at a meeting held July 12, 2004, and signed by the mayor July 12, 2004, and published as provided by law in the Des Moines Register on July 14, 2004.

DIANE RAUH, City Clerk

APPENDIX E

TAX INCREMENT ORDINANCES*

Ordinance No. 9282

Ordinance No. 10,404

Ordinance No. 11,419

Ordinance No. 11,971

Ordinance No. 11,972

Ordinance No. 12,054

Ordinance No. 12,070

Ordinance No. 13,565

Ordinance No. 10,635

Ordinance No. 11,418

Ordinance No. 13,302

Ordinance No. 13,386

Ordinance No. 13,397

Ordinance No. 13,399

Ordinance No. 13,400

Ordinance No. 13,575

Ordinance No. 13,810

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*__Editor's note—__Printed herein are the various tax increment ordinances of the city, as adopted by the city council on the date indicated following each ordinance. Amendments to the ordinances will be indicated by parenthetical history notes following amended provisions. The absence of a history note indicates that the provision remains unchanged from the original ordinance. Obvious misspellings and punctuation errors have been corrected without notation. For stylistic purposes, the same style of citation to state statutes and expression of numbers in text as appears in the Municipal Code has been used. Additions made for clarity are indicated by brackets.

Ordinance No. 13,976

Ordinance No. 13,998

Ordinance No. 14,058

Ordinance No. 14,345

Ordinance No. 14,723

Ordinance No. 14,783

Ordinance No. 14,962

Ordinance No. 15,012

Ordinance No. 15,072

Ordinance No. 15,119

Ordinance No. 15,403

Ordinance No. 15,419

Ordinance No. 15,427

Ordinance No. 15,440

Ordinance No. 15,458

Ordinance No. 15,517

Ordinance No. 15,541

Ordinance No. 15,542

Ordinance No. 15,543

Ordinance No. 15,553

Ordinance No. 15,554

Ordinance No. 15,568

Ordinance No. 15,569

Ordinance No. 15,705

Ordinance No. 15,721

Ordinance No. 15,739

Ordinance No. 15,822

Ordinance No. 15,823

ORDINANCE NO. 9282

AN ORDINANCE AMENDING ORDINANCE NO. 8666 (AS AMENDED BY ORDINANCE NO. 8667) WITH RESPECT TO THE DIVISION OF TAXES LEVIED AND COLLECTED WITHIN THE CAPITOL CENTER DEVELOPMENT AREA URBAN RENEWAL PROJECT AND TO PROVIDE THAT SAID ORDINANCE AS REENACTED REMAIN IN EFFECT UNTIL CERTAIN OBLIGATIONS OF THE CITY HAVE BEEN PAID OR SECURED.

WHEREAS, the city council of the City of Des Moines, Iowa, heretofore adopted Ordinance No. 8666 on August 6, 1973, and Ordinance No. 8667 on August 13, 1973, for the purpose of invoking the provisions of I.C. § 403.19, with respect to property taxes collected within the project area of the Capitol Center Development Area Urban Renewal Project; and

WHEREAS, the provisions of said ordinance remain in effect and the council, by Resolution No. 540 adopted February 21, 1977, did authorize a certain loan amendment with Brenton Banks, Inc., Central National Bank, Iowa-Des Moines National Bank, Bankers Trust Company, United Federal Savings and Loan, Des Moines Savings and Loan and Centurion Casualty Company wherein the City of Des Moines has agreed to maintain said Ordinance No. 8666, as amended, in effect for the period of the loan therein authorized; and

WHEREAS, it is deemed necessary that said ordinance be amended as follows:

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA:

Section 1. That Ordinance No. 8666 heretofore adopted on August 6, 1973, and Ordinance No. 8667 heretofore adopted on August 13, 1973, are hereby amended by repeal thereof and reenactment to read as follows:

"AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL REAL PROPERTY LOCATED WITHIN THE CAPITOL CENTER DEVELOPMENT AREA URBAN RENEWAL PROJECT IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO A SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BONDS ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL REDEVELOPMENT PROJECT.

WHEREAS, the city council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to resolution passed and approved August 2, 1973, adopted an urban renewal plan for an area known as the Capitol Center Development Area Urban Renewal Project, which project area is legally described as follows:

> Beginning at the intersection of the northerly right-of-way line of Grand Avenue and the westerly right-of-way line of Eighth Street; thence south along the westerly right-of-way line of Eighth Street to its intersection with the centerline of the Des Moines Union Railroad main line; thence east along the centerline of the Des Moines Union Railroad main line to its intersection with the easterly right-of-way line of East Seventh Street; thence north along the easterly right-of-way line of East Seventh Street to its intersection with the southerly right-of-way line of the alley south of Locust Street; thence east along the southerly right-of-way line of the alley south of Locust Street to its intersection with the westerly property line of the state capitol grounds; thence north along the westerly property line of the state capitol grounds to its intersection with the southerly right-of-way line of Locust Street; thence west along the southerly right-of-way line of Locust Street to its intersection with the easterly right-of-way line of Pennsylvania Avenue; thence north along the easterly right-of-way line of Pennsylvania Avenue to its intersection

with the southerly right-of-way line of Des Moines Street; thence west along the southerly right-of-way line of Des Moines Street to its intersection with the westerly right-of-way line of East First Street; thence north along the westerly right-of-way line of East First Street to its intersection with the southerly boundary line of the River Hills Urban Renewal Project; thence west and south along the southerly boundary line of the River Hills Urban Renewal Project to its intersection with the northerly right-of-way line of Grand Avenue; thence west along the northerly right-of-way line of Grand Avenue to its intersection with the westerly right-of-way line of Eighth Street, which is the point of beginning, and

WHEREAS, indebtedness has been incurred and will be incurred by the City of Des Moines, Iowa, in connection with said urban renewal project; and

WHEREAS, the city council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the Capitol Center Development Area Urban Renewal Project, as above described in accordance with the provisions of I.C. § 403.19 of the 1973 Code of Iowa.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA:

Section 1. That the taxes levied on the taxable property in the urban renewal project area known as the Capitol Center Development Area Urban Renewal Project, legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District, and all other taxing districts from and after the effective date of this ordinance shall be divided as hereinafter in this ordinance provided.

Section 2. That portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said urban renewal area upon the total sum of the assessed value of the taxable property in said urban renewal project as shown on the assessment roll last equalized prior to the date of initial adoption of the urban renewal plan for the Capitol Center Development Area Urban Renewal Project shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by or for said taxing district into which all other property taxes are paid. The date of assessment for the assessment roll last equalized prior to the date of adoption of the urban renewal plan was January 1, 1972.

Section 3. That portion of the taxes each year in excess of such amount shall be allocated to and when collected be paid into a special fund to be hereafter established by resolution of the City of Des Moines, Iowa, to pay the principal of and interest on loans, monies advanced to indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of I.C. § 403.9 of the 1973 Code of Iowa, incurred by the City of Des Moines, Iowa, to finance or refinance in whole or in part the Capitol Center Development Area Urban Renewal Project, except that taxes for the payment of bonds and interest of each taxing district levying taxes on said project area shall be collected against all taxable property within the project area without any limitation as hereinabove provided.

Section 4. All taxes levied and collected upon the taxable property in said Capitol Center Development Area Urban Renewal Project shall be paid into the funds of the taxing districts as taxes by or for said taxing districts in the same manner as all other property taxes unless or until the total assessed valuation of the taxable property in said urban renewal project shall exceed the total assessed value of the taxable property in said urban renewal project, as shown by the last equalized assessment roll dated January 1, 1972.

Section 5. The City of Des Moines, by Resolution No. 540, adopted February 21, 1977, has entered into a certain loan agreement calling for the repayment of $2,250,000.00 with interest from the collection of taxes pursuant to section 3 of this ordinance which are pledged as security therefore. Said loan agreement pro-

vides that the provisions of this ordinance shall remain in effect until said loan has been repaid or fully secured. It is therefore ordained that this ordinance shall remain in effect and shall not be repealed or amended in any manner which is adverse to the security interest of the lenders under said loan agreement, dated February 21, 1977 while said loan has not been paid or secured in accordance with its terms. Provided, however, that the taxes collected pursuant to section 3 of this ordinance may be pledged as security or applied to the payment of other loans, bonds, or advances to the extent in said loan agreement permitted. This ordinance is intended and shall be construed to implement the provisions of I.C. § 403.19 to the full extent permitted by law.

Section 6. At such time as the loans, advances, indebtedness, and bonds and interest thereon of the City of Des Moines, hereinabove referred to have been paid all monies thereafter received from taxes upon the taxable property in the urban renewal project known as the Capitol Center Development Area Urban Renewal Project shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property.

Section 7. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed.

Section 8. This ordinance shall be in effect after its final passage, approval and publication as provided by law. Provided, further, that at such time as the city shall compile a code of ordinances containing all ordinances of the city with certain exceptions conforming to the provisions of I.C. § 380.8, the provisions of this ordinance shall be set forth and maintained therein for not less than the period of the loan agreement referred to in section 5 hereof. (End of Ordinance No. 8666)

Section 2. This Ordinance Number 9282 shall be in effect after its final passage, approval and publication as provided by law.

Passed June 20, 1977

Signed June 20, 1977

R. E. OLSON, Mayor

I, Helen W. Barlow, City Clerk of the City of Des Moines, Iowa, do hereby certify that the above and foregoing is a true and correct copy of an ordinance passed by the city council of said city at a meeting held June 20, 1977, signed by the mayor June 20, 1977 and published in the Highland Park News, June 30, 1977.

HELEN W. BARLOW, City Clerk

ORDINANCE NO. 10,404

AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE CAPITOL-CENTER DEVELOPMENT AREA II URBAN RENEWAL PROJECT AREA IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO A SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BONDS ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL REDEVELOPMENT PROJECT.

WHEREAS, the city council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to resolution passed and approved December 19, 1983, adopted an urban renewal plan for an area known as the Capitol-Center Development Area II Urban Renewal Project, which project area includes the lots and parcels within the boundaries, as follows:

Beginning at the intersection of the northerly right-of-way line of Grand Avenue and the easterly right-of-way line of Second Avenue; thence west along the northerly right-of-way line of Grand Avenue to its intersection with the westerly right-of-way line of Eighth Street; thence south along the westerly right-of-way line of Eighth Street to its intersection within the centerline of the old Rock Island Railroad

main line; thence west along the centerline of the old Rock Island Railroad main line to its intersection with the easterly right-of-way line of Eleventh Street; thence north along the easterly right-of-way line of Eleventh Street to the point of intersection with the northerly right-of-way line of High Street; thence east from said point along the northerly right-of-way line of High Street to the intersection with the westerly right-of-way line of Tenth Street; thence north along the westerly right-of-way line of Tenth Street to the intersection of the southerly right-of-way line of Woodland Avenue; thence east along the projection of the southerly right-of-way line of Woodland Avenue to the point of intersection with the easterly right-of-way line of Tenth Street; thence north from said point along the easterly right-of-way line of Tenth Street to the intersection of the southerly right-of-way line of Pleasant Street; thence east along the southerly right-of-way line of Pleasant Street to the point of intersection with the projection of the west line of Lot 12, Methodist Plat No. 1; thence northerly along said projected west line of said Lot 12 to the northerly right-of-way line of Pleasant Street; thence east along the northerly right-of-way line of Pleasant Street to the intersection of the westerly right-of-way line of Ninth Street; thence north along the westerly right-of-way line of Ninth Street to its intersection with a point 20 feet south of the north line of said Lot 12 of Methodist Plat No. 1; thence east along a projection of a line 20 feet south of and parallel to the north line of said Lot 12 to the point of intersection of the easterly right-of-way line of Ninth Street; thence north along the easterly right-of-way line of Ninth Street to the intersection of the northerly right-of-way line of Keosauqua Way; thence northerly and westerly along said northerly right-of-way line of Keosauqua Way to the intersection with the southerly right-of-way line of Crocker Street; thence east along the southerly right-of-way line of Crocker Street to the intersection of the easterly right-of-way line of Ninth Street; thence north along the easterly right-of-way line of Ninth Street to the intersection of the northerly right-of-way line of School Street; thence east along the northerly right-of-way line of School Street to the intersection of the easterly right-of-way line of Sixth Avenue; thence south along the easterly right-of-way line of Sixth Avenue to the intersection with the northerly right-of-way line of Crocker Street; thence east along the northerly right-of-way line of Crocker Street to the intersection of the westerly right-of-way line of Fifth Avenue; thence north along the westerly right-of-way line of Fifth Avenue to the point of intersection of the westerly projection of the north line of Lot 1, Block F, River Hills Plat 1; thence east along the projected north line of said Lot 1 to the intersection of the easterly right-of-way line of Third Street; thence south along the easterly right-of-way line of Third Street to the intersection of the northerly right-of-way line of Keosauqua Way; thence east along the northerly right-of-way line of Keosauqua Way to the point of intersection with the easterly right-of-way line of Second Avenue; thence south from said point along the easterly right-of-way line of Second Avenue to the point of beginning;

WHEREAS, expenditures and indebtedness are anticipated to be incurred by the City of Des Moines, Iowa, in the future to finance said urban renewal project; and

WHEREAS, the city council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the urban renewal project area, as above described in accordance with the provisions of I.C. § 403.19 of the Code of Iowa, 1983 as amended.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA:

Section 1: That the taxes levied on the taxable property in the urban renewal project area known as the Capitol-Center Development Area II Urban Renewal Project, legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District, and all other taxing districts from and after the effective date of this ordinance shall be divided as hereinafter in this ordinance provided.

Section 2: That portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said urban renewal area upon the total sum of the assessed value of the taxable property in said urban renewal project as shown on the January 1 assessment roll last equalized prior to the date of the effective date of this ordinance shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by or for said taxing district into which all other property taxes are paid.

Section 3: That portion of the taxes each year in excess of the base period taxes determined as provided in section 2 of this ordinance shall be allocated to and when collected be paid into a special tax increment fund hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of I.C. §§ 403.9 and 403.12 of the 1983 Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance in whole or in part the Capitol-Center Development Area II Urban Renewal Project, except that taxes for the payment of bonds and interest of each taxing district levying taxes on said project area shall be collected against all taxable property within the project area without any limitation as hereinabove provided.

Section 4: All taxes levied and collected upon the taxable property in said Capitol-Center Development Area II Urban Renewal Project shall be paid into the funds of the taxing districts as taxes by or for said taxing districts in the same manner as all other property taxes unless or until the total assessed valuation of the taxable property in said urban renewal project shall exceed the total assessed value of the taxable property in said urban renewal project on the date of adoption of the urban renewal plan, as shown by the last equalized assessment rolls prior to the effective date of this ordinance.

Section 5: At such time as the monies advanced, bonds and interest thereon and indebtedness of the City of Des Moines hereinabove in section 3 referred to have been paid, all monies thereafter received from taxes upon the taxable property in the urban renewal project known as the Capitol-Center Development Area II Urban Renewal Project shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property.

Section 6: All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed. The provisions of this ordinance are intended and shall be construed so as to fully implement the provisions of I.C. § 403.19 of the 1983 Code of Iowa, as amended, with respect to the division of taxes from property within the urban renewal project area as described above. In the event that any provision of this ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this ordinance which shall at all times be construed to fully invoke the provisions of I.C. § 403.19 with reference to said urban renewal project and the territory therein.

Section 7: This ordinance shall be in effect after its final passage, approval and publication as provided by law.

Passed December 19, 1983

Signed December 19, 1983

Pete Crivaro, Mayor

Attest: Donna V. Boetel-Baker, City Clerk

I, Donna V. Boetel-Baker, City Clerk of the City of Des Moines, Iowa, do hereby certify that the above and foregoing is a true and correct copy of an ordinance (Roll Call No. 5867) passed by the city council of said city at a meeting held December 19, 1983, signed by the mayor December 19, 1983, and published in the Des Moines Register December 23, 1983.

Donna V. Boetel-Baker, City Clerk

ORDINANCE NO. 11,419

AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE RIVERPOINT URBAN

RENEWAL PROJECT IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO A SPECIAL FUND FOR PAYMENT OF PRINCIPAL OF AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BONDS ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL PROJECT.

WHEREAS, the city council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to resolution passed and approved December 18, 1989, adopted the urban renewal plan for the Riverpoint Urban Renewal Project and approved the Riverpoint Urban Renewal Project, which project area includes the lots and parcels within the boundaries, as follows:

Beginning at the intersection of the southerly right-of-way line of East Court Avenue and the easterly right-of-way line of East Seventh Street; thence east along the southerly right-of-way line of East Court Avenue to its intersection with the east right-of-way line of vacated East Eighth Street; thence southerly along the east right-of-way of vacated East Eighth Street to a point 47.0 feet south of the south right-of-way line of East Court Avenue; thence southeasterly along a straight line to the northwest corner of Lot 1, Block 22, official plat of Lots 3 through 8, Town of De Moine, an official plat; thence southeasterly along a straight line to a point on the east right-of-way line of vacated East Eleventh Street, said point being 67.35 feet south of the northwest corner of Lot 3, Block 23, official plat of Lots 3 through 8, Town of De Moine, an official plat; thence easterly along a straight line to a point on the east lot line and 3.0 feet north of the southwest corner of Lot 8, of said Block 23; thence southerly to the southwest corner of said Lot 8; thence easterly to the southeast corner of said Lot 8; thence southeasterly along a straight line to the northwest corner of Lot 9, of the official plat of Lot 1, of the official plat of the east ½ of the southeast ¼ of Section 3, Township 78 North, Range 24 West of the 5th P.M. the south 236.0 feet of the west ½ of Lot 31, Brooks and Company's Addition, an official plat; thence southerly to the southwest corner of said Lot 9; thence easterly along the south lot lines of Lots 9, 10, 30, 31 and 55 of said official plat of said Lot 1 to its intersection with the east line of the southeast ¼ of said Section 3; thence southerly along said east line of said Section 3 and along the east line of the northeast ¼ of Section 10, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the northeasterly projection of the south right-of-way line of Scott Street; thence southwesterly along said projected south right-of-way line of Scott Street and along the south right-of-way line of Scott Street to its intersection with the east bank of the Des Moines River; thence northwesterly along the east bank of the Des Moines River to the point of its intersection with the southerly side of the Scott Street Bridge; thence southwesterly along the southerly side of the Scott Street Bridge to a point of its intersection with the west bank of the Des Moines River; thence southeasterly along said west bank of the Des Moines River to the point of its intersection with the northeasterly projection of the southeasterly right-of-way line of Southeast First Street; thence southwesterly along said projected southeasterly right-of-way line of Southeast First Street and along the southeasterly right-of-way line of Southeast First Street to a point of its intersection with the centerline of the Chicago and Great Western Railroad right-of-way; thence southwesterly along said centerline of the Chicago and Great Western Railroad right-of-way to a point of its intersection with the easterly right-of-way line of Southwest First Street; thence southwesterly along the easterly right-of-way line of Southwest First Street to its intersection with the southerly right-of-way line of Indianola Avenue; thence northwesterly and westerly along the south right-of-way line of Indianola Avenue and along the southerly right-of-way line of Clifton Avenue, to its intersection with the southerly projection of the westerly right-of-way line of Southwest Seventh Street; thence northwesterly along said southerly projected westerly right-of-way

line of Southwest Seventh Street and the westerly right-of-way line of Southwest Seventh Street to its intersection with the southerly bank of the Raccoon River; thence southwesterly and westerly along said south bank of the Raccoon River to its intersection with the south line of government Lot 11, west of the Raccoon River of Section 8, Township 78 North, Range 24 West of the 5th P.M., an official plat; thence westerly along south line of said government Lot 11 and the westerly projection of the south line of said government Lot 11 to a point 33.0 feet west of the centerline of said Section 8; thence northerly and 33.0 feet west of and parallel with the centerline of said Section 8 to its intersection with the south line of Lot 1, of the official plat of the northwest ¼ of said Section 8; thence southeasterly along the south line of said Lot 1, 75.0 feet west of the east line of said Lot 1; thence northerly and 75.0 feet west of and parallel with the east line of said Lot 1, 225.0 feet south of the north line of said Lot 1; thence westerly 18.0 feet and 225.0 feet south of the north line of said Lot 1; thence northerly 225.0 feet and 93.0 feet west of the northeast corner of said Lot 1 to the north line of said Lot 1 and the south right-of-way line of Grand Avenue; thence northwesterly to the north right-of-way line of Grand Avenue which is 40.0 feet north of and 100.0 feet west of the southeast corner of Lot 9, of the official plat of the southwest ¼ of Section 5, Township 78 North, Range 24 West of the 5th P.M., an official plat; thence northerly along a line 100.0 feet west of and parallel with the east line of said Lot 9 and along the northerly projection of said line to the north right-of-way line of Ingersoll Avenue; thence easterly along the north right-of-way line of Ingersoll Avenue and the easterly projected north right-of-way line of Ingersoll Avenue and its projections to its intersection with the northwesterly projection of the easterly right-of-way line of Sixteenth Street; thence southeasterly along said northwesterly projected easterly right-of-way line of Sixteenth Street and the easterly right-of-way line of Sixteenth Street to its intersection with the north right-of-way line of Falcon Drive; thence easterly along the north right-of-way line of Falcon Drive and its easterly projections to its intersection with the northwesterly projection of the east right-of-way line of Thirteenth Street; thence southeasterly along said northwesterly projected east right-of-way line of Thirteenth Street and the east right-of-way of Thirteenth Street to its intersection with the south right-of-way line of Cherry Street; thence easterly along the south right-of-way line of Cherry Street and its projected south right-of-way line to its intersection with the east right-of-way line of Eleventh Street; thence southeasterly along the east right-of-way line of Eleventh Street to its intersection with the centerline of the Iowa Interstate Railroad main line (formerly known as Rock Island Railroad); thence easterly along the centerline of the Iowa Interstate Railroad main line (formerly known as Rock Island Railroad) to its intersection with the southerly projection of the westerly right-of-way line of Eighth Street; thence northerly along the southerly projection of the westerly right-of-way line of Eighth Street to the westerly right-of-way line of Eighth Street to its intersection within the centerline of the Des Moines Union Railroad main line; thence easterly along the centerline of the Des Moines Union Railroad main line to its intersection with the easterly right-of-way line of East Seventh Street; thence northerly along the easterly right-of-way line of East Seventh Street to its intersection with the southerly right-of-way line of East Court Avenue, to the point of beginning. All now included in and forming a part of the City of Des Moines, Polk County, Iowa.

WHEREAS, expenditures and indebtedness are anticipated to be incurred by the City of Des Moines, Iowa, in the future to finance said urban renewal project; and

WHEREAS, the city council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the Riverpoint Urban Renewal Project Area, as above described in accordance with the provisions of I.C. § 403.19 of the 1989 Code of Iowa, as amended.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA:

Section 1: That the taxes levied on the taxable property in the urban renewal project area known

as the Riverpoint Urban Renewal Project, legally described in the preamble hereof, by or for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District, and all other taxing districts from and after the effective date of this ordinance shall be divided as hereinafter in this ordinance provided.

Section 2: That portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said Riverpoint Urban Renewal Project Area upon the total sum of the assessed value of the taxable property in said urban renewal project as shown on the assessment roll as of January 1 of the calendar year preceding the effective date of this ordinance shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by or for said taxing district into which all other property taxes are paid.

Section 3: That portion of the taxes each year in excess of the base period taxes determined as provided in section 2 of this ordinance shall be allocated to and when collected be paid into a special tax increment fund hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of I.C. §§ 403.9 and 403.12 of the 1989 Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance, in whole or in part, the Riverpoint Urban Renewal Project, except that taxes for the payment of bonds and interest of each taxing district levying taxes upon taxable property in said urban renewal project area shall be collected against all taxable property within the taxing district without limitation by the provisions of this section 3.

Section 4: All taxes levied and collected upon the taxable property in said Riverpoint Urban Renewal Project shall be paid into the funds of the taxing districts as taxes by or for said taxing districts in the same manner as all other property taxes unless and until the total assessed valuation of the taxable property in said urban renewal project shall exceed the total assessed value of the taxable property in said urban renewal project as shown by the assessment roll as of January 1 of the calendar year preceding the effective date of this ordinance.

Section 5: At such time as the loans, advances, indebtedness, bonds and interest thereon of the City of Des Moines hereinabove referred to in section 3 have been paid, all monies thereafter received from taxes upon the taxable property in the Riverpoint Urban Renewal Project shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property.

Section 6: All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed. The provisions of this ordinance are intended and shall be construed so as to fully implement the provisions of I.C. § 403.19 of the 1989 Code of Iowa, as amended, with respect to the division of taxes from property within the Riverpoint Urban Renewal Project Area as described above. In the event that any provision of this ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this ordinance which shall at all times be construed to fully invoke the provisions of I.C. § 403.19 of the 1989 Code of Iowa, as amended, with reference to said urban renewal project and the territory therein.

Section 7: This ordinance shall be in effect after its final passage, approval and publication as provided by law.

Passed December 18, 1989

Signed December 18, 1989

JOHN P. DORRIAN, Mayor

I, Donna V. Boetel-Baker, City Clerk of the City of Des Moines, Iowa, hereby certify that the above and foregoing is a true copy of an ordinance (Roll Call No. 89-5219), passed by the city council of said city at a meeting held December 18, 1989, signed by the mayor December 18, 1989, and published as provided by law in the Business Record on January 1, 1990. Authorized by Publication Order No. 1519.

DONNA V. BOETEL-BAKER, City Clerk

ORDINANCE NO. 11,971

AN ORDINANCE AMENDING ORDINANCE NO. 10,404 ENTITLED

"AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE CAPITOL-CENTER DEVELOPMENT AREA II URBAN RENEWAL PROJECT IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO THE SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BONDS ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL PROJECT"

WHEREAS, the city council of the City of Des Moines, Iowa, has heretofore, in Ordinance Number 10,404, provided for the division of taxes within the Capitol-Center Development Area II Urban Renewal Project, pursuant to I.C. § 403.19 of the 1983 Code of Iowa, as amended; and

WHEREAS, additional territory has been added to the Capitol-Center Development Area II Urban Renewal Project Area; and

WHEREAS, the continuing needs of redevelopment of the urban renewal project are such to require application of the incremental tax resources of the urban renewal project; and

WHEREAS, the following enactment is necessary to accomplish the objectives described in the premises.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA, THAT:

Ordinance Number 10,404 is hereby amended to read as follows:

WHEREAS, the city council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to resolution passed and approved December 19, 1983, adopted an urban renewal plan for an area known as Capitol-Center Development Area II Urban Renewal Project, which original project area hereinafter designated "Area A," includes the lots and parcels within the boundaries as follows:

AREA A

Beginning at the intersection of the northerly right-of-way line of Grand Avenue and the easterly right-of-way line of Second Avenue; thence west along the northerly right-of-way line of Grand Avenue to its intersection with the westerly right-of-way line of Eighth Street; thence south along the westerly right-of-way line of Eighth Street to its intersection within the centerline of the old Rock Island Railroad main line; thence west along the centerline of the old Rock Island Railroad main line to its intersection with the easterly right-of-way line of Eleventh Street; thence north along the easterly right-of-way line of Eleventh Street to the point of intersection with the northerly right-of-way line of High Street; thence east from said point along the northerly right-of-way line of High Street to the intersection with the westerly right-of-way line of Tenth Street; thence north along the westerly right-of-way line of Tenth Street to the intersection of the southerly right-of-way line of Woodland Avenue; thence east along the projection of the southerly right-of-way line of Woodland Avenue to the point of intersection with the easterly right-of-way line of Tenth Street; thence north from said point along the easterly right-of-way line of Tenth Street to the intersection of the southerly right-of-way line of Pleasant Street; thence east along the southerly right-of-way line of Pleasant Street to the point of intersection with the projection of the west line of Lot 12, Methodist Plat No. 1; thence northerly along said projected west line of said Lot 12 to the northerly right-of-way line of Pleasant Street; thence east along the northerly right-of-way line of Pleasant Street to the intersection of the westerly right-of-way line of Ninth Street; thence north along the westerly right-of-way line of Ninth Street to its intersection with a point 20 feet south of the north line

of said Lot 12 of Methodist Plat No. 1; thence east along a projection of a line 20 feet south of and parallel to the north line of said Lot 12 to the point of intersection of the easterly right-of-way line of Ninth Street; thence north along the easterly right-of-way line of Ninth Street to the intersection of the northerly right-of-way line of Keosauqua Way; thence northerly and westerly along said northerly right-of-way line of Keosauqua Way to the intersection with the southerly right-of-way line of Crocker Street; thence east along the southerly right-of-way line of Crocker Street to the intersection of the easterly right-of-way line of Ninth Street; thence north along the easterly right-of-way line of Ninth Street to the intersection of the northerly right-of-way line of School Street; thence east along the northerly right-of-way line of School Street to the intersection of the easterly right-of-way line of Sixth Avenue; thence south along the easterly right-of-way line of Sixth Avenue to the intersection with the northerly right-of-way line of Crocker Street; thence east along the northerly right-of-way line of Crocker Street to the intersection of the westerly right-of-way line of Fifth Avenue; thence north along the westerly right-of-way line of Fifth Avenue to the point of intersection of the westerly projection of the north line of Lot 1, Block F, River Hills Plat 1; thence east along the projected north line of said Lot 1 to the intersection of the easterly right-of-way line of Third Street; thence south along the easterly right-of-way line of Third Street to the intersection of the northerly right-of-way line of Keosauqua Way; thence east along the northerly right-of-way line of Keosauqua Way to the point of intersection with the easterly right-of-way line of Second Avenue; thence south from said point along the easterly right-of-way line of Second Avenue to the point of beginning;

and

WHEREAS, by amendment to said urban renewal plan, after public notice and hearing as prescribed by law, said urban renewal plan was amended and adopted for an extended area consisting of the Area A combined with Area B, which includes the lots and parcels within the boundaries as follows:

AREA B

Beginning at the intersection of the north right-of-way line of School Street and the east right-of-way line of Ninth Street; thence southerly along the northerly extension of and the east right-of-way line of Ninth Street and the southerly extension of said right-of-way line to the south right-of-way line of Crocker Street; thence westerly along the westerly extension and the south right-of-way line of Crocker Street to the east right-of-way line of Keosauqua Way; thence northwesterly along said east right-of-way line of Keosauqua Way to the east right-of-way line of the Keosauqua/I 235 intersection; thence north along said east right-of-way line of Keosauqua/ I 235 intersection; thence east along the south right-of-way of the Keosauqua/I 235 intersection to the west right-of-way line of Twelfth Place; thence north along said west right-of-way line and the northerly extension of the west right-of-way line of Twelfth Place to the north right-of-way line of School Street; thence east along the north right-of-way line of School Street to the point of beginning. All now included in and forming a part of the City of Des Moines, Polk County, Iowa,

and

WHEREAS, indebtedness has been incurred by the City of Des Moines, Iowa, and additional indebtedness is anticipated to be incurred in the future to finance said urban renewal project; and

WHEREAS, the city council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the urban renewal project area, as above described in accordance with the provisions of I.C. § 403.19 of the 1991 Code of Iowa, as amended.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA:

Section 1. That the taxes levied on the taxable property in the urban renewal project area known as the Capitol-Center Development Area II Urban Renewal Project, legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School Dis-

trict and all other taxing districts from and after the effective date of this ordinance shall be divided as hereinafter in this ordinance provided.

Section 2. "Base period taxes" are that portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said urban renewal area upon the total sum of the "base valuations." The "base valuations" are the assessed value of the taxable property in said urban renewal project as shown on the assessment roll last equalized prior to the date of adoption of this ordinance with respect to Area A and as shown on the assessment roll last equalized prior to the date of adoption of the amendment to this ordinance with respect to Area B. "Base period taxes" shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by or for said taxing district into which all other property taxes are paid. As to Area A, "base period taxes" shall be computed using the total assessed value of taxable property within Area A, as shown on the assessment roll last equalized prior to the date of adoption of this ordinance as to Area A, being the assessment roll for January 1, 1982.

As to Area B, "base period taxes" shall be computed in the same manner using the total assessed value of taxable property within said Area B shown on the assessment roll last equalized prior to the date of adoption of the amendment to this ordinance with respect to Area B, being the assessment roll for January 1, 1992.

Section 3. "Incremental taxes" are that portion of the taxes each year in excess of the "base period taxes" for the combined area, determined as provided in section 2 of this ordinance. "Incremental taxes" shall be allocated to and when collected be paid into a special fund of the City of Des Moines, Iowa, hereafter to be maintained to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under authority of I.C. § 403.9 of the 1991 Code of Iowa, and I.C. § 403.12 of the 1991 Code of Iowa, incurred by the City of Des Moines, Iowa, to finance or refinance in whole or in part the Capitol-Center Development Area II Urban Renewal Project, except that taxes for the payment of bonds and interest of each taxing district levying taxes on said project area shall be collected against all taxable property within the project area without any limitations as hereinabove provided.

Section 4. At such time as the loans, monies advanced and bonds of the City of Des Moines and interest thereon, hereinabove referred to, have been paid, all monies thereafter received from taxes upon the taxable property in the urban renewal project known as the Capitol-Center Development Area II Urban Renewal Area Project shall be paid into the funds for the respective taxing districts in the same manner as "base period taxes."

Section 5. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed. The provisions of this ordinance are intended and shall be construed so as to fully implement the provisions of I.C. § 403.19 of the 1991 Code of Iowa with respect to the division of taxes from property within the urban renewal project area as described above. In the event that any provision of this ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this ordinance which shall at all times be construed to fully invoke the provisions of I.C. § 403.19 of the 1991 Code of Iowa, as amended, with reference to said urban renewal project and the territory therein.

Section 6. This ordinance shall be in effect after its final passage, approval and publication as provided by law.

Passed April 26, 1993

Signed April 26, 1993

JOHN P. DORRIAN, Mayor

I, Donna V. Boetel-Baker, City Clerk of the City of Des Moines, Iowa, hereby certify that the above and foregoing is a true copy of an ordinance (Roll Call No. 93-1565), passed by the city council of said city at a meeting held April 26, 1993, signed by the mayor April 26, 1993, and published as provided by law in the Business Record on May 10, 1993. Authorized by Publication Order No. 4443.

DONNA V. BOETEL-BAKER, City Clerk

ORDINANCE NO. 11,972

AN ORDINANCE AMENDING ORDINANCE NO. 11,419 ENTITLED

"AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE RIVERPOINT URBAN RENEWAL PROJECT IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO THE SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BONDS ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL PROJECT"

WHEREAS, the city council of the City of Des Moines, Iowa, has heretofore, in Ordinance Number 11,419, provided for the division of taxes within the Riverpoint Urban Renewal Project, pursuant to I.C. § 403.19 of the 1989 Code of Iowa, as amended; and

WHEREAS, additional territory has been added to the Riverpoint Urban Renewal Project Area; and

WHEREAS, the continuing needs of redevelopment of the urban renewal project are such to require application of the incremental tax resources of the urban renewal project; and

WHEREAS, the following enactment is necessary to accomplish the objectives described in the premises.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA, THAT:

Ordinance Number 11,419 is hereby amended to read as follows:

WHEREAS, the city council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to resolution passed and approved December 18, 1989, adopted an urban renewal plan for an area known as Riverpoint Urban Renewal Project, which original project area hereinafter designated "Area A," includes the lots and parcels within the boundaries as follows:

AREA A

Beginning at the intersection of the southerly right-of-way line of East Court Avenue and the easterly right-of-way line of East Seventh Street; thence east along the southerly right-of-way line of East Court Avenue to its intersection with the east right-of-way line of vacated East Eighth Street; thence southerly along the east right-of-way of vacated East Eighth Street to a point 47.0 feet south of the south right-of-way line of East Court Avenue; thence southeasterly along a straight line to the northwest corner of Lot 1, Block 22, official plat of Lots 3 through 8, Town of De Moine, an official plat; thence southeasterly along a straight line to a point on the east right-of-way line of vacated East Eleventh Street, said point being 67.35 feet south of the northwest corner of Lot 3, Block 23, official plat of Lots 3 through 8, Town of De Moine, an official plat; thence easterly along a straight line to a point on the east lot line and 3.0 feet north of the southwest corner of Lot 8, of said Block 23; thence southerly to the southwest corner of said Lot 8; thence easterly to the southeast corner of said Lot 8; thence southeasterly along a straight line to the northwest corner of Lot 9, of the official plat of Lot 1, of the official plat of the east ½ of the southeast ¼ of Section 3, Township 78 North, Range 24 West of the 5th P.M. the south 236.0 feet of the west ½ of Lot 31, Brooks and Company's Addition, an official plat; thence southerly to the southwest corner of said Lot 9; thence easterly along the south lot lines of Lots 9, 10, 30, 31 and 55 of said official plat of said Lot 1 to its intersection with the east line of the southeast ¼ of said Section 3; thence southerly along said east line of said Section 3 and along the east line of the northeast ¼ of Section 10, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the northeasterly projection of the south right-of-way line of

Scott Street; thence southwesterly along said projected south right-of-way line of Scott Street and along the south right-of-way line of Scott Street to its intersection with the east bank of the Des Moines River; thence northwesterly along the east bank of the Des Moines River to the point of its intersection with the southerly side of the Scott Street Bridge; thence southwesterly along the southerly side of the Scott Street Bridge to a point of its intersection with the west bank of the Des Moines River; thence southeasterly along said west bank of the Des Moines River to the point of its intersection with the northeasterly projection of the southeasterly right-of-way line of Southeast First Street; thence southwesterly along said projected southeasterly right-of-way line of Southeast First Street and along the southeasterly right-of-way line of Southeast First Street to a point of its intersection with the centerline of the Chicago and Great Western Railroad right-of-way; thence southwesterly along said centerline of the Chicago and Great Western Railroad right-of-way to a point of its intersection with the easterly right-of-way line of Southwest First Street; thence southwesterly along the easterly right-of-way line of Southwest First Street to its intersection with the southerly right-of-way line of Indianola Avenue; thence northwesterly and westerly along the south right-of-way line of Indianola Avenue and along the southerly right-of-way line of Clifton Avenue, to its intersection with the southerly projection of the westerly right-of-way line of Southwest Seventh Street; thence northwesterly along said southerly projected westerly right-of-way line of Southwest Seventh Street and the westerly right-of-way line of Southwest Seventh Street to its intersection with the southerly bank of the Raccoon River; thence southwesterly and westerly along said south bank of the Raccoon River to its intersection with the south line of government Lot 11, west of the Raccoon River of Section 8, Township 78 North, Range 24 West of the 5th P.M., an official plat; thence westerly along south line of said government Lot 11 and the westerly projection of the south line of said government Lot 11 to a point 33.0 feet west of the centerline of said Section 8; thence northerly and 33.0 feet west of and parallel with the centerline of said Section 8 to its intersection with the south line of Lot 1, of the official plat of the northwest ¼ of said Section 8; thence southeasterly along the south line of said Lot 1, 75.0 feet west of the east line of said Lot 1; thence northerly and 75.0 feet west of and parallel with the east line of said Lot 1, 225.0 feet south of the north line of said Lot 1; thence westerly 18.0 feet and 225.0 feet south of the north line of said Lot 1; thence northerly 225.0 feet and 93.0 feet west of the northeast corner of said Lot 1 to the north line of said Lot 1 and the south right-of-way line of Grand Avenue; thence northwesterly to the north right-of-way line of Grand Avenue which is 40.0 feet north of and 100.0 feet west of the southeast corner of Lot 9, of the official plat of the southwest ¼ of Section 5, Township 78 North, Range 24 West of the 5th P.M., an official plat; thence northerly along a line 100.0 feet west of and parallel with the east line of said Lot 9 and along the northerly projection of said line to the north right-of-way line of Ingersoll Avenue; thence easterly along the north right-of-way line of Ingersoll Avenue and the easterly projected north right-of-way line of Ingersoll Avenue and its projections to its intersection with the northwesterly projection of the easterly right-of-way line of Sixteenth Street; thence southeasterly along said northwesterly projected easterly right-of-way line of Sixteenth Street and the easterly right-of-way line of Sixteenth Street to its intersection with the north right-of-way line of Falcon Drive; thence easterly along the north right-of-way line of Falcon Drive and its easterly projections to its intersection with the northwesterly projection of the east right-of-way line of Thirteenth Street; thence southeasterly along said northwesterly projected east right-of-way line of Thirteenth Street and the east right-of-way of Thirteenth Street to its intersection with the south right-of-way line of Cherry Street; thence easterly along the south right-of-way line of Cherry Street and its projected south right-of-way line to its intersection with the east right-of-way line of Eleventh Street; thence southeasterly along the east right-of-way line of Eleventh Street to its intersection with the centerline of the Iowa Interstate Railroad main line (for-

merly known as Rock Island Railroad); thence easterly along the centerline of the Iowa Interstate Railroad main line (formerly known as Rock Island Railroad) to its intersection with the southerly projection of the westerly right-of-way line of Eighth Street; thence northerly along the southerly projection of the westerly right-of-way line of Eighth Street to the westerly right-of-way line of Eighth Street to its intersection within the centerline of the Des Moines Union Railroad main line; thence easterly along the centerline of the Des Moines Union Railroad main line to its intersection with the easterly right-of-way line of East Seventh Street; thence northerly along the easterly right-of-way line of East Seventh Street to its intersection with the southerly right-of-way line of East Court Avenue, to the point of beginning. All now included in and forming a part of the City of Des Moines, Polk County, Iowa;

and

WHEREAS, by amendment to said urban renewal plan, after public notice and hearing as prescribed by law, said urban renewal plan was amended and adopted for an extended area consisting of Area A combined with Area B, which includes the lots and parcels within the boundaries as follows:

AREA B

Bounded on the north by the south right-of-way line of East Scott Street, bounded on the east by the centerline of Southeast Fourteenth Street, bounded on the south and west by the south bank of the Des Moines River. All now included in and forming a part of the City of Des Moines, Polk County, Iowa;

and

WHEREAS, indebtedness has been incurred by the City of Des Moines, Iowa, and additional indebtedness is anticipated to be incurred in the future to finance said urban renewal project; and

WHEREAS, the city council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the urban renewal project area, as above described in accordance with the provisions of I.C. § 403.19 of the 1991 Code of Iowa, as amended.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA:

Section 1. That the taxes levied on the taxable property in the urban renewal project area known as the Riverpoint Urban Renewal Project, legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District and all other taxing districts from and after the effective date of this ordinance shall be divided as hereinafter in this ordinance provided.

Section 2. "Base period taxes" are that portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said urban renewal area upon the total sum of the "base valuations." The "base valuations" are the assessed value of the taxable property in said urban renewal project as shown on the assessment roll last equalized prior to the date of adoption of this ordinance with respect to Area A and as shown on the assessment roll last equalized prior to the date of adoption of the amendment to this ordinance with respect to Area B. "Base period taxes" shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by or for said taxing district into which all other property taxes are paid. As to Area A, "base period taxes" shall be computed using the total assessed value of taxable property within Area A, as shown on the assessment roll last equalized prior to the date of adoption of this ordinance as to Area A, being the assessment roll for January 1, 1989.

As to Area B, "base period taxes" shall be computed in the same manner using the total assessed value of taxable property within said Area B shown on the assessment roll last equalized prior to the date of adoption of the amendment to this ordinance with respect to Area B, being the assessment roll for January 1, 1992.

Section 3. "Incremental taxes" are that portion of the taxes each year in excess of the "base period taxes" for the combined area, determined as provided in section 2 of this ordinance. "Incremental taxes" shall be allocated to and when collected be paid into a special fund of the City of Des Moines, Iowa, hereafter to be maintained to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under authority of I.C. § 403.9 of the 1991 Code of Iowa, and I.C. § 403.12 of the 1991 Code of Iowa, incurred by the City of Des Moines, Iowa, to finance or refinance in whole or in part the Riverpoint Urban Renewal Project, except that taxes for the payment of bonds and interest of each taxing district levying taxes on said project area shall be collected against all taxable property within the project area without any limitations as hereinabove provided.

Section 4. At such time as the loans, monies advanced and bonds of the City of Des Moines and interest thereon, hereinabove referred to, have been paid, all monies thereafter received from taxes upon the taxable property in the urban renewal project known as the Riverpoint Urban Renewal Area Project shall be paid into the funds for the respective taxing districts in the same manner as "base period taxes."

Section 5. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed. The provisions of this ordinance are intended and shall be construed so as to fully implement the provisions of I.C. § 403.19 of the 1991 Code of Iowa with respect to the division of taxes from property within the urban renewal project area as described above. In the event that any provision of this ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this ordinance which shall at all times be construed to fully invoke the provisions of I.C. § 403.19 of the 1991 Code of Iowa, as amended, with reference to said urban renewal project and the territory therein.

Section 6. This ordinance shall be in effect after its final passage, approval and publication as provided by law.

Passed April 26, 1993

Signed April 26, 1993

JOHN P. DORRIAN, Mayor

I, Donna V. Boetel-Baker, City Clerk of the City of Des Moines, Iowa, hereby certify that the above and foregoing is a true copy of an ordinance (Roll Call No. 93-1566), passed by the city council of said city at a meeting held April 26, 1993, signed by the mayor April 26, 1993, and published as provided by law in the Business Record on May 10, 1993. Authorized by Publication Order No. 4444.

DONNA V. BOETEL-BAKER, City Clerk

ORDINANCE NO. 12,054

AN ORDINANCE amending Ordinance No. 10,404, as amended by Ordinance No. 11,971, entitled:

> "An ordinance providing that general property taxes levied and collected each year on all property located within the Capitol-Center Development Area II Urban Renewal Project in the City of Des Moines, County of Polk, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, and other taxing districts, be paid to the special fund for payment of principal and interest on loans, monies advanced to and indebtedness, including bonds issued or to be issued, incurred by said city in connection with said urban renewal project"

and also amending

ORDINANCE NO. 11,419, as amended by Ordinance No. 11,972, entitled:

> "An ordinance providing that general property taxes levied and collected each year on all property located within the Riverpoint Urban Renewal Project in the City of Des Moines, County of Polk, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, and other taxing districts, be paid to the special fund for payment of principal and interest on loans, monies ad-

vanced to and indebtedness, including bond issued or to be issued, incurred by said city in connection with said urban renewal project"

to consolidate and expand the areas subject to the division of revenue from taxation, pursuant to such ordinances.

WHEREAS, the city council of the City of Des Moines, Iowa, has heretofore, in Ordinance No. 10,404, provided for the division of revenue from taxes within the Capitol-Center Development Area II Urban Renewal Project Area (hereinafter referred to as the Capitol-Center Development Area II - Area "A"), pursuant to I.C. § 403.19 of the 1983 Code of Iowa, as amended; and

WHEREAS, an additional area (hereinafter referred to as the Capitol-Center Development Area II - Area "B") was added to the Capitol-Center Development Area II Urban Renewal Project Area and by Ordinance No. 11,971, the city council amended Ordinance No. 10,404 to expand the area subject to the division of revenue from taxes under Ordinance No. 10,404 to include the additional area; and

WHEREAS, the city council of the City of Des Moines, Iowa, has heretofore, in Ordinance No. 11,419, provided for the division of revenue from taxes within the Riverpoint Urban Renewal Project Area (hereinafter referred to as the Riverpoint - Area "A"), pursuant to I.C. § 403.19 of the 1989 Code of Iowa, as amended; and

WHEREAS, an additional area (hereinafter referred to as Riverpoint - Area "B") was added to the Riverpoint Urban Renewal Project Area and by Ordinance No. 11,972 the city council amended Ordinance No. 11,419 to expand the area subject to the division of revenue from taxes under Ordinance No. 11,419 to include the additional area; and

WHEREAS, by amendments to the urban renewal plans for the Capitol-Center Development Area II Urban Renewal Project and the Riverpoint Urban Renewal Project, after notice and public hearing as prescribed by law, said urban renewal plans were amended to provide for the consolidation and expansion of the two urban renewal projects in accordance with the urban renewal plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project; and

WHEREAS, the continuing needs of redevelopment of the combined Riverpoint Capitol-Center Development Area Urban Renewal Project are such as to require application of the incremental tax resources of the consolidated and expanded urban renewal project; and

WHEREAS, the following enactment is necessary to accomplish the objectives described above and in the urban renewal plan for the Riverpoint Capitol-Center Development Area Urban Renewal Project;

NOW, THEREFORE, BE IT ORDAINED by the city council of the City of Des Moines, Iowa as follows:

Section 1. That Ordinance Nos. 10,404, 11,971, 11,419 and 11,972 are hereby amended to read as follows:

WHEREAS, the city council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to resolution passed and approved December 19, 1983, adopted an urban renewal plan for an area known as Capitol-Center Development Area II Urban Renewal Project, which original project area (herein designated as "Capitol-Center Development Area II - Area 'A'") includes the lots and parcels within the boundaries as follows:

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "A"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the northerly right-of-way line of Grand Avenue and the easterly right-of-way line of Second Avenue; thence west along the northerly right-of-way line of Grand Avenue to its intersection with the westerly right-of-way line of Eighth Street; thence south along the westerly right-of-way line of Eighth Street to its intersection within the centerline of the old Rock Island Railroad main line; thence west along the centerline of the old Rock Island Railroad

main line to its intersection with the easterly right-of-way line of Eleventh Street; thence north along the easterly right-of-way line of Eleventh Street to the point of intersection with the northerly right-of-way line of High Street; thence east from said point along the northerly right-of-way line of High Street to the intersection with the westerly right-of-way line of Tenth Street; thence north along the westerly right-of-way line of Tenth Street to the intersection of the southerly right-of-way line of Woodland Avenue; thence east along the projection of the southerly right-of-way line of Woodland Avenue to the point of intersection with the easterly right-of-way line of Tenth Street; thence north from said point along the easterly right-of-way line of Tenth Street to the intersection of the southerly right-of-way line of Pleasant Street; thence east along the southerly right-of-way line of Pleasant Street to the point of intersection with the projection of the west line of Lot 12, Methodist Plat No. 1; thence northerly along said projected west line of said Lot 12 to the northerly right-of-way line of Pleasant Street; thence east along the northerly right-of-way line of Pleasant Street to the intersection of the westerly right-of-way line of Ninth Street; thence north along the westerly right-of-way line of Ninth Street to its intersection with a point 20 feet south of the north line of said Lot 12 of Methodist Plat No. 1; thence east along a projection of a line 20 feet south of and parallel to the north line of said Lot 12 to the point of intersection of the easterly right-of-way line of Ninth Street; thence north along the easterly right-of-way line of Ninth Street to the intersection of the northerly right-of-way line of Keosauqua Way; thence northerly and westerly along said northerly right-of-way line of Keosauqua Way to the intersection with the southerly right-of-way line of Crocker Street; thence east along the southerly right-of-way line of Crocker Street to the intersection of the easterly right-of-way line of Ninth Street; thence north along the easterly right-of-way line of Ninth Street to the intersection of the northerly right-of-way line of School Street; thence east along the northerly right-of-way line of School Street to the intersection of the easterly right-of-way line of Sixth Avenue; thence south along the easterly right-of-way line of Sixth Avenue to the intersection with the northerly right-of-way line of Crocker Street; thence east along the northerly right-of-way line of Crocker Street to the intersection of the westerly right-of-way line of Fifth Avenue; thence north along the westerly right-of-way line of Fifth Avenue to the point of intersection of the westerly projection of the north line of Lot 1, Block F, River Hills Plat 1; thence east along the projected north line of said Lot 1 to the intersection of the easterly right-of-way line of Third Street; thence south along the easterly right-of-way line of Third Street to the intersection of the northerly right-of-way line of Keosauqua Way; thence east along the northerly right-of-way line of Keosauqua Way to the point of intersection with the easterly right-of-way line of Second Avenue; thence south from said point along the easterly right-of-way line of Second Avenue to the point of beginning,

and,

WHEREAS, by amendment to said urban renewal plan, after public notice and hearing as prescribed by law, said urban renewal plan was amended and adopted for an extended area consisting of the Capitol-Center Development Area II - Area "A" combined with the Capitol-Center Development Area II - Area "B," which includes the lots and parcels within the boundaries as follows:

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "B"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the north right-of-way line of School Street and the

east right-of-way line of Ninth Street; thence southerly along the northerly extension of and the east right-of-way line of Ninth Street and the southerly extension of said right-of-way line to the south right-of-way line of Crocker Street; thence westerly along the westerly extension and the south right-of-way line of Crocker Street to the east right-of-way line of Keosauqua Way; thence northwesterly along said east right-of-way line of Keosauqua Way to the east right-of-way line of the Keosauqua/I-235 intersection; thence north along said east right-of-way line of the Keosauqua/I-235 intersection; thence east along the south right-of-way line of the Keosauqua/I-235 intersection to the west right-of-way line of Twelfth Place; thence north along said west right-of-way line and the northerly extension of the west right-of-way line of Twelfth Place to the north right-of-way line of School Street; thence east along the north right-of-way line of School Street to the point of beginning,

and,

WHEREAS, the city council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to resolution passed and approved December 18, 1989, adopted an urban renewal plan for an area known as Riverpoint Urban Renewal Project, which original project area (hereinafter designated Riverpoint - Area "A") includes the lots and parcels within the boundaries as follows:

RIVERPOINT - AREA "A"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the southerly right-of-way line of East Court Avenue and the easterly right-of-way line of East Seventh Street; thence east along the southerly right-of-way line of East Court Avenue to its intersection with the east right-of-way line of vacated East Eighth Street; thence southerly along the east right-of-way of vacated Eighth Street to a point 47.0 feet south of the south right-of-way line of East Court Avenue; thence southeasterly along a straight line to the northwest corner of Lot 1, Block 22, official plat of Lots 3 through 8, Town of Des Moines, an official plat; thence southeasterly along a straight line to a point on the east right-of-way line of vacated East Eleventh Street, said point being 67.35 feet south of the northwest corner of Lot 3, Block 23, official plat of Lots 3 through 8, Town of Des Moines, an official plat; thence easterly along a straight line to a point on the east lot line and 3.0 feet north of the southwest corner of Lot 8, of said Block 23; thence southerly to the southwest corner of said Lot 8; thence easterly to the southeast corner of said Lot 8; thence southeasterly along a straight line to the northwest corner of Lot 9, of the official plat of Lot 1, of the official plat of the east ½ of the southeast ¼ of Section 3, Township 78 North, Range 24 West of the 5th P.M. the south 236.0 feet of the west ½ of Lot 31, Brooks and Company's Addition, an official plat; thence southerly to the southwest corner of said Lot 9; thence easterly along the south lot lines of Lots 9, 10, 30, 31 and 55 of said official plat of said Lot 1 to its intersection with the east line of the southeast ¼ of said Section 3; thence southerly along said east line of said Section 3 and along the east line of the northeast ¼ of Section 10, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the northeasterly projection of the south right-of-way line of Scott Street; thence southwesterly along said projected south right-of-way line of Scott Street and along the south right-of-way line of Scott Street to its intersection with the east bank of the Des Moines River; thence northwesterly along the east bank of the Des Moines River to the point of its intersection with the southerly side of the Scott Street Bridge; thence southwesterly along the southerly side of the Scott Street Bridge to a point of its intersection with the west bank of the Des Moines River; thence southeasterly along said west bank of the

Des Moines River to the point of its intersection with the northeasterly projection of the southeasterly right-of-way line of Southeast First Street; thence southwesterly along said projected southeasterly right-of-way line of Southeast First Street and along the southeasterly right-of-way line of Southeast First Street to a point of its intersection with the centerline of the Chicago and Great Western Railroad right-of-way; thence southwesterly along said centerline of the Chicago and Great Western Railroad right-of-way to a point of its intersection with the easterly right-of-way line of Southwest First Street; thence southwesterly along the easterly right-of-way line of Southwest First Street to its intersection with the southerly right-of-way line of Indianola Avenue; thence northwesterly and westerly along the South right-of-way line of Indianola Avenue and along the southerly right-of-way line of Clifton Avenue, to its intersection with the southerly projection of the westerly right-of-way line of Southwest Seventh Street; thence northwesterly along said southerly projected westerly right-of-way line of Southwest Seventh Street and the westerly right-of-way line of Southwest Seventh Street to its intersection with the southerly bank of the Raccoon River; thence southwesterly and westerly along said south bank of the Raccoon River to its intersection with the south line of government Lot 11, west of the Raccoon River of Section 8, Township 78 North, Range 24 West of the 5th P.M. an official plat; thence westerly along south line of said government Lot 11 and the westerly projection of the south line of said government Lot 11 to a point 33 feet west of the centerline of said Section 8; thence northerly and 33.0 feet west of and parallel with the centerline of said Section 8 to its intersection with the south line of Lot 1, of the official plat of the northwest ¼ of said Section 8; thence southeasterly along the south line of said Lot 1, 75.0 feet west of the east line of said Lot 1; thence northerly and 75.0 feet west of and parallel with the east line of said Lot 1, 225.0 feet south of the north line of said Lot 1; thence westerly 18.0 feet and 225.0 feet south of the north line of said Lot 1; thence northerly 225.0 feet and 93.0 feet west of the northeast corner of said Lot 1 to the north line of said Lot 1 and the south right-of-way line of Grand Avenue; thence northwesterly to the north right-of-way line of Grand Avenue which is 40.0 feet north of and 100.0 feet west of the southeast corner of Lot 9, of the official plat of the southwest ¼ of Section 5, Township 78 North, Range 24 West of the 5th P.M., an official plat; thence northerly along a line 100.0 feet west of and parallel with the east line of said Lot 9 and along the northerly projection of said line to the north right-of-way line of Ingersoll Avenue; thence easterly along the north right-of-way line of Ingersoll Avenue and the easterly projected north right-of-way line of Ingersoll Avenue and its projections to its intersection with the northwesterly projection of the easterly right-of-way line of Sixteenth Street; thence southeasterly along said northwesterly projected easterly right-of-way line of Sixteenth Street and the easterly right-of-way line of Sixteenth Street to its intersection with the north right-of-way line of Falcon Drive; thence easterly along the north right-of-way line of Falcon Drive and its easterly projections to its intersection with the northwesterly projection of the east right-of-way line of Thirteenth Street; thence southeasterly along said northwesterly projected east right-of-way line of Thirteenth Street and the east right-of-way of Thirteenth Street to its intersection with the south right-of-way line of Cherry Street; thence easterly along the south right-of-way line of Cherry Street and its projected south right-of-way line to its intersection with the east right-of-way line of Eleventh Street; thence southeasterly along the east right-of-way line of Eleventh Street to its intersection with the centerline of the Iowa Interstate Railroad main line (formerly known as Rock Island Railroad); thence easterly along the centerline

of the Iowa Interstate Railroad main line (formerly known as Rock Island Railroad) to its intersection with the southerly projection of the westerly right-of-way line of Eighth Street; thence northerly along the southerly projection of the westerly right-of-way line of Eighth Street to the westerly right-of-way line of Eighth Street to its intersection within the centerline of the Des Moines Union Railroad main line; thence easterly along the centerline of the Des Moines Union Railroad main line to its intersection with the easterly right-of-way line of East Seventh Street; thence northerly along the easterly right-of-way line of East Seventh Street to its intersection with the southerly right-of-way line of East Court Avenue, to the point of beginning,

and,

WHEREAS, by amendment to said urban renewal plan, after public notice and hearing as prescribed by law, said urban renewal plan was amended and adopted for an extended area consisting of Riverpoint - Area "A" combined with Riverpoint - Area "B," which includes the lots and parcels within the boundaries as follows:

RIVERPOINT - AREA "B"

That part of the City of Des Moines, Polk County, Iowa, described as follows:

Bounded on the north by the south right-of-way line of East Scott Street, bounded on the east by the centerline of southeast Fourteenth Street, bounded on the south and west by the right (south) bank of the Des Moines River,

and,

WHEREAS, by amendment to the urban renewal plans for the Riverpoint Urban Renewal Project and the Capitol-Center Development Area II Urban Renewal Project, after public notice and hearing as prescribed by law, said urban renewal plans were amended and adopted to provide for the consolidation and expansion of the two projects as set forth in the urban renewal plan for the Riverpoint Capitol-Center Development Area Urban Renewal Plan; and

WHEREAS, the Riverpoint Capitol-Center Development Area Urban Renewal Area consists of Capitol-Center Development Area II - Areas "A" and "B," combined with Riverpoint - Areas "A" and "B," all as described above, and expanded to include Capitol-Center Development Area II - Areas "C" and "D" and Riverpoint - Area "C," described as follows:

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "C"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the westerly right-of-way line of Third Street and the south line of Lot G, River Hills Plat 1, an official plat; thence easterly along the southerly line of said Lot G to its intersection with the right (west) bank of the Des Moines River; thence south along said right bank to its intersection with the northerly right-of-way line of Grand Avenue extended easterly; thence westerly along the northerly right-of-way of Grand Avenue to its intersection with the east right-of-line of Second Avenue extended southerly; thence northerly along the east right-of-way line of Second Avenue to its intersection with the easterly extension of the north right-of-way line of Keosauqua Way; thence west along the easterly extension of the north right-of-way line of Keosauqua Way to the west right-of-way line of Third Street; thence north along the west right-of-way line of Third Street to the point of beginning.

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "D"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Block E, Lot M (except the east 80 feet thereof) and that part of Lot G south of the north lot line of said Lot M extended west, River Hills Plat 1, an official plat

RIVERPOINT - AREA "C"

That part of the City of Des Moines Polk County, Iowa, described as follows:

> Beginning at the intersection of the southerly right-of-way line of the Chicago Great Western Railroad with the easterly right-of-way line of Southeast First Street; thence southerly along the easterly right-of-way line of Southeast First Street to the southerly right-of-way line of East Edison Street; thence easterly along the southerly right-of-way line of East Edison Street to the westerly right-of-way line of Southeast Second Street; thence southerly along the westerly right-of-way line of Southeast Second Street to the westerly extension of the southerly right-of-way line of the east/west alley lying south of and adjoining Lots 1 through 6, inclusive, Block 6, Clifton Heights, an official plat; thence easterly along the westerly extension of the southerly right-of-way line of said east/west alley to the westerly right-of-way line of Southeast Second Court; thence southerly along the westerly right-of-way line of Southeast Second Court and the westerly line of Lot 2, Millsap Subdivision, an official plat, to the north line of Lot 6, official plat of the west ½ of Section 10, Township 78 North, Range 24 West of the 5th P.M.; thence west along the north line of said Lot 6 extended westerly to the southerly right-of-way line of East Indianola Avenue; thence westerly along the southerly right-of-way line of East Indianola Avenue to its intersection with the southerly extension of the westerly right-of-way line of Southwest First Street; thence northerly along the westerly right-of-way line of Southwest First Street to the southerly right-of-way line of the Chicago Great Western Railroad; thence northeasterly along the southerly right-of-way line of the Chicago Great Western Railroad to the point of beginning,

and,

WHEREAS, indebtedness has been incurred by the City of Des Moines, Iowa, and additional indebtedness is anticipated to be incurred in the future to finance said Urban Renewal Project; and

WHEREAS, the city council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the urban renewal project area, as above described in accordance with the provisions of I.C. § 403.19 of the 1993 Code of Iowa, as amended;

NOW, THEREFORE, BE IT ORDAINED by the city council of the City of Des Moines, Iowa as follows:

Section 1. That the taxes levied on the taxable property in the urban renewal project area known as the Riverpoint Capitol-Center Development Area Urban Renewal Project, consisting of the sub-areas known as Capitol-Center Development Area II - Areas "A," "B," "C," and "D" and Riverpoint - Areas "A," "B," and "C," each of which is legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District and all other taxing districts from and after the effective date of this ordinance shall be divided as hereinafter in this ordinance provided.

Section 2. For purposes of this ordinance, "base period taxes" are that portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in the Riverpoint Capitol-Center Development Area Urban Renewal Project Area upon the total sum of the "base valuations" of each of the sub-areas within the said urban renewal project area. The "base valuations" are the assessed values of the taxable property in each sub-area of said urban renewal project area as shown on the assessment rolls following:

> With respect to the Capital-Center Development Area II-Area "A," the assessment roll last equalized prior to the effective date of Ordinance No. 10,404, being the assessment roll for January 1, 1982;
>
> With respect to the Capital-Center Development Area II-Area "B," the assessment roll as of January 1 of the calendar year

preceding the effective date of Ordinance No. 11,971, amending Ordinance No. 10,404, being the assessment roll for January 1, 1992;

With respect to the Riverpoint-Area "A," the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 11,419, being the assessment roll for January 1, 1989;

With respect to the Riverpoint-Area "B," the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 11,972, amending Ordinance No. 11,419, being the assessment roll for January 1, 1992;

With respect to the Capital-Center Development Area II-Areas "C" and "D" and the Riverpoint-Area "C," the assessment roll as of January 1 of the calendar year preceding the effective date of this ordinance, being the assessment roll for January 1, 1992.

The "base period taxes" for each of the sub-areas within said urban renewal project area shall be computed using the total assessed value of the taxable property within each such sub-area as shown on the assessment rolls applicable to each sub-area as described above. "Base period taxes" shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by and for said taxing district into which all other property taxes are paid.

Section 3. For purposes of this ordinance, "incremental taxes" are that portion of the taxes each year in excess of the "base period taxes" for the combined area, determined as provided in section 2 of this ordinance. "Incremental taxes" shall be allocated to and when collected be paid into a special fund of the City of Des Moines, Iowa, hereafter to be maintained to pay the principal of and interest on loans, monies advanced to, and indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under authority of I.C. §§ 403.9 and 403.12 of the 1993 Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance in whole or in part the Riverpoint Capitol-Center Development Area Urban Renewal Project, except that taxes for the payment of bonds and interest of each taxing district levying taxes on said urban renewal project area shall be collected against all taxable property within the project area without any limitations as hereinabove provided.

Section 4. At such time as the loans, monies advanced and bonds of the City of Des Moines and interest thereon, hereinabove referred to, have been paid, all monies thereafter received from taxes upon the taxable property in the urban renewal project area known as the Riverpoint Capitol-Center Development Area Urban Renewal Project Area shall be paid into the funds for the respective taxing districts in the same manner as "base period taxes."

Section 5. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed. The provisions of this ordinance are intended and shall be construed so as to fully implement the provisions of I.C. § 403.19 of the 1993 Code of Iowa, as amended, with respect to the division of revenue from taxes from property within the combined urban renewal project area as described above. In the event that any provision of this ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this ordinance which shall at all times be construed to fully invoke the provisions of I.C. § 403.19 of the 1993 Code of Iowa, as amended, with reference to said combined urban renewal project and the territory therein.

Section 6. This ordinance shall be in effect after its final passage, approval and publication as provided by law.

Section 2. This ordinance shall be in effect after its final passage, approval and publication as provided by law.

Passed October 18, 1993

Signed October 18, 1993

JOHN P. DORRIAN, Mayor

I, Donna V. Boetel-Baker, City Clerk of the City of Des Moines, Iowa, hereby certify that the above and foregoing is a true copy of an ordinance (Roll Call No. 93-3902), passed by the city council of said city at a meeting held October 18, 1993, signed by the mayor October 18, 1993, and published as provided by law in the Business Record on November 1, 1993. Authorized by Publication Order No. 3368.

DONNA V. BOETEL-BAKER, City Clerk

ORDINANCE NO. 12,070

AN ORDINANCE amending Ordinance No. 10,404, as amended by Ordinances No. 11,971 and 12,054, entitled:

> "An ordinance providing that general property taxes levied and collected each year on all property located within the Capitol-Center Development Area II Urban Renewal Project in the City of Des Moines, County of Polk, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, and other taxing districts, be paid to the special fund for payment of principal and interest on loans, monies advanced to and indebtedness, including bonds issued or to be issued, incurred by said city in connection with said urban renewal project"

and also amending

Ordinance No. 11,419, as amended by Ordinances No. 11,972 and 12,054 entitled:

> "An ordinance providing that general property taxes levied and collected each year on all property located within the Riverpoint Urban Renewal Project in the City of Des Moines, County of Polk, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, and other taxing districts, be paid to the special fund for payment of principal and interest on loans, monies advanced to and indebtedness, including bond issued or to be issued, incurred by said city in connection with said urban renewal project"

to expand the area subject to the division of revenue from taxation, pursuant to such ordinances.

WHEREAS, the city council of the City of Des Moines, Iowa, has heretofore, in Ordinance No. 10,404, provided for the division of revenue from taxes within the Capitol-Center Development Area II Urban Renewal Project Area (hereinafter referred to as the Capitol-Center Development Area II - Area "A"), pursuant to I.C. § 403.19 of the 1983 Code of Iowa, as amended; and

WHEREAS, an additional area (hereinafter referred to as the Capitol-Center Development Area II - Area "B") was added to the Capitol-Center Development Area II Urban Renewal Project Area and by Ordinance No. 11,971, the city council amended Ordinance No. 10,404 to expand the area subject to the division of revenue from taxes under Ordinance No. 10,404 to include the additional area; and

WHEREAS, the city council of the City of Des Moines, Iowa, has heretofore, in Ordinance No. 11,419, provided for the division of revenue from taxes within the Riverpoint Urban Renewal Project Area (hereinafter referred to as the Riverpoint - Area "A"), pursuant to I.C. § 403.19 of the 1989 Code of Iowa, as amended; and

WHEREAS, an additional area (hereinafter referred to as Riverpoint - Area "B") was added to the Riverpoint Urban Renewal Project Area and by Ordinance No. 11,972 the city council amended Ordinance No. 11,419 to expand the area subject to the division of revenue from taxes under Ordinance No. 11,419 to include the additional area; and

WHEREAS, by amendments to the urban renewal plans for the Capitol-Center Development Area II Urban Renewal Project and the Riverpoint Urban Renewal Project, after notice and public hearing as prescribed by law, said urban renewal plans were amended to provide for the consolidation and expansion of the two urban renewal

projects in accordance with the urban renewal plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project; and

WHEREAS, by Ordinance No. 12,054 the City Council amended Ordinance No. 10,404, as amended by Ordinance No. 11,971 (regarding the Capitol-Center Development Area II Urban Renewal Project) and also amended Ordinance No. 11,419 as amended by Ordinance No. 11,972 (regarding the Riverpoint Urban Renewal Project) to consolidate and expand the area subject to the division of revenue from taxes to be in accordance with the urban renewal plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project; and,

WHEREAS, by the first amendment to the urban renewal plan for the Riverpoint Capitol-Center Development Area, after public notice and hearing as prescribed by law, said urban renewal plan was amended and adopted to add an additional area (hereinafter referred to as Capitol-Center III - Area "A"); and

WHEREAS, the continuing needs of redevelopment of the expanded Riverpoint Capitol-Center Development Area Urban Renewal Project are such as to require application of the incremental tax resources of the expanded urban renewal project; and

WHEREAS, the following enactment is necessary to accomplish the objectives described above and in the urban renewal plan for the Riverpoint Capitol-Center Development Area Urban Renewal Project;

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA AS FOLLOWS:

Section 1. That Ordinance Nos. 10,404, 11,971, 11,419, 11,972 and 12,054 are hereby amended to read as follows:

WHEREAS, the city council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to resolution passed and approved December 19, 1983, adopted an urban renewal plan for an area known as Capitol-Center Development Area II Urban Renewal Project, which original project area (herein designated as "Capitol-Center Development Area II - Area 'A'") includes the lots and parcels within the boundaries as follows:

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "A"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the northerly right-of-way line of Grand Avenue and the easterly right-of-way line of Second Avenue; thence west along the northerly right-of-way line of Grand Avenue to its intersection with the westerly right-of-way line of Eighth Street; thence south along the westerly right-of-way line of Eighth Street to its intersection within the centerline of the old Rock Island Railroad main line; thence west along the centerline of the old Rock Island Railroad main line to its intersection with the easterly right-of-way line of Eleventh Street; thence north along the easterly right-of-way line of Eleventh Street to the point of intersection with the northerly right-of-way line of High Street; thence east from said point along the northerly right-of-way line of High Street to the intersection with the westerly right-of-way line of Tenth Street; thence north along the westerly right-of-way line of Tenth Street to the intersection of the southerly right-of-way line of Woodland Avenue; thence east along the projection of the southerly right-of-way line of Woodland Avenue to the point of intersection with the easterly right-of-way line of Tenth Street; thence north from said point along the easterly right-of-way line of Tenth Street to the intersection of the southerly right-of-way line of Pleasant Street; thence east along the southerly right-of-way line of Pleasant Street to the point of intersection with the projection of the west line of Lot 12, Methodist Plat No. 1; thence northerly along said projected west line of said Lot 12 to the northerly right-of-way line of Pleasant Street; thence east along the northerly right-of-way line of Pleasant

Street to the intersection of the westerly right-of-way line of Ninth Street; thence north along the westerly right-of-way line of Ninth Street to its intersection with a point 20 feet south of the north line of said Lot 12 of Methodist Plat No. 1; thence east along a projection of a line 20 feet south of and parallel to the north line of said Lot 12 to the point of intersection of the easterly right-of-way line of Ninth Street; thence north along the easterly right-of-way line of Ninth Street to the intersection of the northerly right-of-way line of Keosauqua Way; thence northerly and westerly along said northerly right-of-way line of Keosauqua Way to the intersection with the southerly right-of-way line of Crocker Street; thence east along the southerly right-of-way line of Crocker Street to the intersection of the easterly right-of-way line of Ninth Street; thence north along the easterly right-of-way line of Ninth Street to the intersection of the northerly right-of-way line of School Street; thence east along the northerly right-of-way line of School Street to the intersection of the easterly right-of-way line of Sixth Avenue; thence south along the easterly right-of-way line of Sixth Avenue to the intersection with the northerly right-of-way line of Crocker Street; thence east along the northerly right-of-way line of Crocker Street to the intersection of the westerly right-of-way line of Fifth Avenue; thence north along the westerly right-of-way line of Fifth Avenue to the point of intersection of the westerly projection of the north line of Lot 1, Block F, River Hills Plat 1; thence east along the projected north line of said Lot 1 to the intersection of the easterly right-of-way line of Third Street; thence south along the easterly right-of-way line of Third Street to the intersection of the northerly right-of-way line of Keosauqua Way; thence east along the northerly right-of-way line of Keosauqua Way to the point of intersection with the easterly right-of-way line of Second Avenue; thence south from said point along the easterly right-of-way line of Second Avenue to the point of beginning.

and,

WHEREAS, by amendment to said urban renewal plan, after public notice and hearing as prescribed by law, said urban renewal plan was amended and adopted for an extended area consisting of the Capitol-Center Development Area II - Area "A" combined with the Capitol-Center Development Area II - Area "B," which includes the lots and parcels within the boundaries as follows:

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "B"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the north right-of-way line of School Street and the east right-of-way line of Ninth Street; thence southerly along the northerly extension of and the east right-of-way line of Ninth Street and the southerly extension of said right-of-way line to the south right-of-way line of Crocker Street; thence westerly along the westerly extension and the south right-of-way line of Crocker Street to the east right-of-way line of Keosauqua Way; thence northwesterly along said east right-of-way line of Keosauqua Way to the east right-of-way line of the Keosauqua/I-235 intersection; thence north along said east right-of-way line of the Keosauqua/I-235 intersection; thence east along the south right-of-way line of the Keosauqua/I-235 intersection to the west right-of-way line of Twelfth Place; thence north along said west right-of-way line and the northerly extension of the west right-of-way line of Twelfth Place to the north right-of-way line of School Street; thence east along the north right-of-way line of School Street to the point of beginning.

and,

WHEREAS, the city council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to reso-

lution passed and approved December 18, 1989, adopted an urban renewal plan for an area known as Riverpoint Urban Renewal Project, which original project area (hereinafter designated Riverpoint - Area "A") includes the lots and parcels within the boundaries as follows:

RIVERPOINT - AREA "A"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the southerly right-of-way line of East Court Avenue and the easterly right-of-way line of East Seventh Street; thence east along the southerly right-of-way line of East Court Avenue to its intersection with the east right-of-way line of vacated East Eighth Street; thence southerly along the east right-of-way of vacated Eighth Street to a point 47.0 feet south of the south right-of-way line of East Court Avenue; thence southeasterly along a straight line to the northwest corner of Lot 1, Block 22, official plat of Lots 3 through 8, Town of Des Moines, an official plat; thence southeasterly along a straight line to a point on the east right-of-way line of vacated East Eleventh Street, said point being 67.35 feet south of the northwest corner of Lot 3, Block 23, official plat of Lots 3 through 8, Town of Des Moines, an official plat; thence easterly along a straight line to a point on the east lot line and 3.0 feet north of the southwest corner of Lot 8, of said Block 23; thence southerly to the southwest corner of said Lot 8; thence easterly to the southeast corner of said Lot 8; thence southeasterly along a straight line to the northwest corner of Lot 9, of the official plat of Lot 1, of the official plat of the east ½ of the southeast ¼ of Section 3, Township 78 North, Range 24 West of the 5th P.M. the south 236.0 feet of the west ½ of Lot 31, Brooks and Company's Addition, an official plat; thence southerly to the southwest corner of said Lot 9; thence easterly along the south lot lines of Lots 9, 10, 30, 31 and 55 of said official plat of said Lot 1 to its intersection with the east line of the southeast ¼ of said Section 3; thence southerly along said east line of said Section 3 and along the east line of the northeast ¼ of Section 10, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the northeasterly projection of the south right-of-way line of Scott Street; thence southwesterly along said projected south right-of-way line of Scott Street and along the south right-of-way line of Scott Street to its intersection with the east bank of the Des Moines River; thence northwesterly along the east bank of the Des Moines River to the point of its intersection with the southerly side of the Scott Street Bridge; thence southwesterly along the southerly side of the Scott Street Bridge to a point of its intersection with the west bank of the Des Moines River; thence southeasterly along said west bank of the Des Moines River to the point of its intersection with the northeasterly projection of the southeasterly right-of-way line of Southeast First Street; thence southwesterly along said projected southeasterly right-of-way line of Southeast First Street and along the southeasterly right-of-way line of Southeast First Street to a point of its intersection with the centerline of the Chicago and Great Western Railroad right-of-way; thence southwesterly along said centerline of the Chicago and Great Western Railroad right-of-way to a point of its intersection with the easterly right-of-way line of Southwest First Street; thence southwesterly along the easterly right-of-way line of Southwest First Street to its intersection with the southerly right-of-way line of Indianola Avenue; thence northwesterly and westerly along the south right-of-way line of Indianola Avenue and along the southerly right-of-way line of Clifton Avenue, to its intersection with the southerly projection of the westerly right-of-way line of Southwest Seventh Street; thence northwesterly along said southerly projected westerly right-of-way line of Southwest Seventh Street and the westerly right-of-way line of Southwest

Seventh Street to its intersection with the southerly bank of the Raccoon River; thence southwesterly and westerly along said south bank of the Raccoon River to its intersection with the south line of government Lot 11, west of the Raccoon River of Section 8, Township 78 North, Range 24 West of the 5th P.M., an official plat; thence westerly along south line of said government Lot 11 and the westerly projection of the south line of said government Lot 11 to a point 33 feet west of the centerline of said Section 8; thence northerly and 33.0 feet west of and parallel with the centerline of said Section 8 to its intersection with the south line of Lot 1, of the official plat of the northwest ¼ of said Section 8; thence southeasterly along the south line of said Lot 1, 75.0 feet west of the east line of said Lot 1; thence northerly and 75.0 feet west of and parallel with the east line of said Lot 1, 225.0 feet south of the north line of said Lot 1; thence westerly 18.0 feet and 225.0 feet south of the north line of said Lot 1; thence northerly 225.0 feet and 93.0 feet west of the northeast corner of said Lot 1 to the north line of said Lot 1 and the south right-of-way line of Grand Avenue; thence northwesterly to the north right-of-way line of Grand Avenue which is 40.0 feet north of and 100.0 feet west of the southeast corner of Lot 9, of the official plat of the southwest ¼ of Section 5, Township 78 North, Range 24 West of the 5th P.M., an official plat; thence northerly along a line 100.0 feet west of and parallel with the east line of said Lot 9 and along the northerly projection of said line to the north right-of-way line of Ingersoll Avenue; thence easterly along the north right-of-way line of Ingersoll Avenue and the easterly projected north right-of-way line of Ingersoll Avenue and its projections to its intersection with the northwesterly projection of the easterly right-of-way line of Sixteenth Street; thence southeasterly along said northwesterly projected easterly right-of-way line of Sixteenth Street and the easterly right-of-way line of Sixteenth Street to its intersection with the north right-of-way line of Falcon Drive thence easterly along the north right-of-way line of Falcon Drive and its easterly projections to its intersection with the northwesterly projection of the east right-of-way line of Thirteenth Street; thence southeasterly along said northwesterly projected east right-of-way line of Thirteenth Street and the east right-of-way of Thirteenth Street to its intersection with the south right-of-way line of Cherry Street; thence easterly along the south right-of-way line of Cherry Street and its projected south right-of-way line to its intersection with the east right-of-way line of Eleventh Street; thence southeasterly along the east right-of-way line of Eleventh Street to its intersection with the centerline of the Iowa Interstate Railroad main line (formerly known as Rock Island Railroad); thence easterly along the centerline of the Iowa Interstate Railroad main line (formerly known as Rock Island Railroad) to its intersection with the southerly projection of the westerly right-of-way line of Eighth Street; thence northerly along the southerly projection of the westerly right-of-way line of Eighth Street to the westerly right-of-way line of Eighth Street to its intersection within the centerline of the Des Moines Union Railroad main line; thence easterly along the centerline of the Des Moines Union Railroad main line to its intersection with the easterly right-of-way line of East Seventh Street; thence northerly along the easterly right-of-way line of East Seventh Street to its intersection with the southerly right-of-way line of East Court Avenue, to the point of beginning.

and,

WHEREAS, by amendment to said urban renewal plan, after public notice and hearing as prescribed by law, said urban renewal plan was amended and adopted for an extended area consisting of Riverpoint-Area "A" com-

bined with Riverpoint-Area "B," which includes the lots and parcels within the boundaries as follows:

RIVERPOINT - AREA "B"

That part of the City of Des Moines, Polk County, Iowa, described as follows:

Bounded on the north by the south right-of-way line of East Scott Street, bounded on the east by the centerline of Southeast Fourteenth Street, bounded on the south and west by the right (south) bank of the Des Moines River.

and,

WHEREAS, by amendment to the urban renewal plans for the Riverpoint Urban Renewal Project and the Capitol-Center Development Area II Urban Renewal Project, after public notice and hearing as prescribed by law, said urban renewal plans were amended and adopted to provide for the consolidation and expansion of the two projects as set forth in the urban renewal plan for the Riverpoint Capitol-Center Development Area Urban Renewal Plan; and

WHEREAS, the Riverpoint Capitol-Center Development Area Urban Renewal Area originally consisted of Capitol-Center Development Area II - Areas "A" and "B," combined with Riverpoint - Areas "A" and "B," all as described above, and expanded to include Capitol-Center Development Area II - Areas "C" and "D" and Riverpoint - Area "C," described as follows:

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "C"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the westerly right-of-way line of Third Street and the south line of Lot G, River Hills Plat 1, an official plat; thence easterly along the southerly line of said Lot G to its intersection with the Right (west) bank of the Des Moines River; thence south along said right bank to its intersection with the northerly right-of-way line of Grand Avenue extended easterly; thence westerly along the northerly right-of-way of Grand Avenue to its intersection with the east right-of-line of Second Avenue extended southerly; thence northerly along the east right-of-way line of Second Avenue to its intersection with the easterly extension of the north right-of-way line of Keosauqua Way; thence west along the easterly extension of the north right-of-way line of Keosauqua Way to the west right-of-way line of Third Street; thence north along the west right-of-way line of Third Street to the point of beginning.

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "D"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Block E, Lot M (except the east 80 feet thereof) and that part of Lot G south of the north lot line of said Lot M extended west, River Hills Plat 1, an official plat.

RIVERPOINT - AREA "C"

That part of the City of Des Moines Polk County, Iowa, described as follows:

Beginning at the intersection of the southerly right-of-way line of the Chicago Great Western Railroad with the easterly right-of-way line of Southeast First Street; thence southerly along the easterly right-of-way line of Southeast First Street to the southerly right-of-way line of East Edison Street; thence easterly along the southerly right-of-way line of East Edison Street to the westerly right-of-way line of Southeast Second Street; thence southerly along the westerly right-of-way line of Southeast Second Street to the westerly extension of the southerly right-of-way line of the east/west alley lying south of and adjoining Lots 1 through 6, inclusive, Block 6, Clifton Heights, an official plat; thence easterly along the westerly extension of the southerly right-of-way line of said east/west alley to the westerly right-of-way line of Southeast Second Court; thence

southerly along the westerly right-of-way line of Southeast Second Court and the westerly line of Lot 2, Millsap Subdivision, an official plat, to the north line of Lot 6, official plat of the west ½ of Section 10, Township 78 North, Range 24 West of the 5th P.M.; thence west along the north line of said Lot 6 extended westerly to the southerly right-of-way line of East Indianola Avenue; thence westerly along the southerly right-of-way line of East Indianola Avenue to its intersection with the southerly extension of the westerly right-of-way line of Southwest First Street; thence northerly along the westerly right-of-way line of Southwest First Street to the southerly right-of-way line of the Chicago Great Western Railroad; thence northeasterly along the southerly right-of-way line of the Chicago Great Western Railroad to the point of beginning.

and,

WHEREAS, by amendment to the urban renewal plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project, after public notice and hearing as prescribed by law, said urban renewal plan was amended and adopted for an extended area consisting of the original Riverpoint Capitol-Center Development Area Urban Renewal Project Area combined with Capitol-Center III - Area "A," which includes the lots and parcels within the boundaries as follows:

CAPITOL CENTER III - AREA "A"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the northerly right-of-way line of Keosauqua Way with the east right-of-way line of Ninth Street, extended north; thence south along the east right-of-way line of Ninth Street and its northerly extension to the south right-of-way line of Chestnut Street extended east; thence west along the extended south right-of-way line of Chestnut Street to the west right-of-way line of Ninth Street; thence south along the west right-of-way line of Ninth Street to the north right-of-way line of Pleasant Street; thence west along the north right-of-way line of Pleasant Street to the west lot line of Lot 12, Methodist Plat No. 1, an official plat; thence south along the extended west lot line of said Lot 12 to the centerline of Pleasant Street; thence west along the centerline of Pleasant Street to the east right-of-way line of Tenth Street extended north; thence south along the east right-of-way line of Tenth Street and its northerly extension to the south right-of-way line of Woodland Avenue extended east; thence west along the easterly extension of the south right-of-way line of Woodland Avenue to the west right-of-way line of Tenth Street; thence south along the west right-of-way line of Tenth Street to the north right-of-way line of High Street; thence west along the north right-of-way line of High Street to the east right-of-way line of Eleventh Street extended north; thence south along the east right-of-way line of Eleventh Street and its northerly extension to the south right-of-way line of Cherry Street; thence west along the south right-of-way line of Cherry Street and its easterly extension to the east right-of-way line of Thirteenth Street extended south; thence north along the east right-of-way line of Thirteenth Street and its southerly extension to the north right-of-way line of Falcon Drive extended East; thence west along the north right-of-way line of Falcon Drive and its easterly extension to the east right-of-way line of Sixteenth Street; thence north along the east right-of-way line of Sixteenth Street to the north right-of-way line of Ingersoll Avenue; thence west along the north right-of-way line of Ingersoll Avenue and its westerly extension to the centerline of Martin Luther King, Jr. Parkway (formerly Harding Road); thence north along the centerline of Martin Luther King, Jr. Parkway to the north right-of-way line of Woodland Avenue extended west; thence east along the north right-of-way line of Woodland Avenue and its westerly and easterly exten-

sions to the centerline of Sixteenth Street; thence north along the centerline of Sixteenth Street to the north lot line of Lots 18 and 7 Sherman Place, an official plat extended west; thence east along the north lot line of said Lots 18 and 7 and their westerly extension to the west right-of-way line of Fifteenth Street; thence north along the west right-of-way line of Fifteenth Street to the north right-of-way line of Center Street extended west; thence east along the north right-of-way line of Center Street; and its westerly extension, said line also being the south lot line of Lots 1 and 2, Oakridge Plat No. 1, an official plat, and Lots 2, 3 and 6, Oakridge Plat No. 3, an official plat, to the southeasterly corner of said Lot 6; thence north along the east lot line of said Lot 6 and the east lot line of Lot 5, in said Oakridge Plat No. 3 to the northeasterly corner of said Lot 5; thence northwesterly along the northerly line of said Oakridge Plat Nos. 1 and 3 to the northeasterly corner of Lot 6, in said Oakridge Plat No. 1, said point also being on the south right-of-way line of Interstate 235; thence in a straight line easterly to the northwest corner of Lot K, Grass Roots 1, an official plat 1; thence south along the west line of Lots K and N, Grass Roots 1 to the north lot line of Lot 7, Block 7, Grass Roots 1; thence west along the north lot line of said Lot 7 to the northwest corner of said Lot 7; thence south along the west lot line of said Lot 7 to the northerly right-of-way line of Keosauqua Way; thence southeasterly along the northerly right-of-way line of Keosauqua Way to the point of beginning.

WHEREAS, indebtedness has been incurred by the City of Des Moines, Iowa, and additional indebtedness is anticipated to be incurred in the future to finance said Urban Renewal Project; and

WHEREAS, the city council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the urban renewal project area, as above described in accordance with the provisions of I.C. § 403.19 of the 1993 Code of Iowa, as amended;

NOW, THEREFORE, BE IT ORDAINED by the City Council of the City of Des Moines, Iowa as follows:

Section 1. That the taxes levied on the taxable property in the urban renewal project area known as the Riverpoint Capitol-Center Development Area Urban Renewal Project, consisting of the sub-areas known as Capitol-Center Development Area II - Areas "A," "B," "C," and "D," Riverpoint - Areas "A," "B," and "C," and Capitol-Center III - Area "A," each of which is legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District and all other taxing districts from and after the effective date of this ordinance shall be divided as hereinafter in this ordinance provided.

Section 2. For purposes of this ordinance, "base period taxes" are that portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in the Riverpoint Capitol-Center Development Area Urban Renewal Project Area upon the total sum of the "base valuations" of each of the sub-areas within the said urban renewal project area. The "base valuations" are the assessed values of the taxable property in each sub-area of said urban renewal project area as shown on the assessment rolls following:

With respect to the Capitol-Center Development Area II-Area "A," the assessment roll last equalized prior to the effective date of Ordinance No. 10,404, being the assessment roll for January 1, 1982;

With respect to the Capitol-Center Development Area II-Area "B," the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 11,971, amending Ordinance No. 10,404, being the assessment roll for January 1, 1992;

With respect to the Riverpoint-Area "A," the assessment roll as of January 1 of the

calendar year preceding the effective date of Ordinance No. 11,419, being the assessment roll for January 1, 1989;

With respect to the Riverpoint-Area "B," the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 11,972, amending Ordinance No. 11,419, being the assessment roll for January 1, 1992;

With respect to the Capitol-Center Development Area II-Areas "C" and "D" and the Riverpoint-Area "C," the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 12,054, being the assessment roll for January 1, 1992.

With respect to the Capitol-Center III - Area "A," the assessment roll as of January 1 of the calendar year preceding the effective date of this ordinance, being the assessment roll for January 1, 1992.

The "base period taxes" for each of the sub-areas within said urban renewal project area shall be computed using the total assessed value of the taxable property within each such sub-area as shown on the assessment rolls applicable to each sub-area as described above. "Base period taxes" shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by and for said taxing district into which all other property taxes are paid.

Section 3. For purposes of this ordinance, "incremental taxes" are that portion of the taxes each year in excess of the "base period taxes" for the combined area, determined as provided in section 2 of this ordinance. "Incremental taxes" shall be allocated to and when collected be paid into a special fund of the City of Des Moines, Iowa, hereafter to be maintained to pay the principal of and interest on loans, monies advanced to, and indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under authority of I.C. §§ 403.9 and 403.12 of the 1993 Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance in whole or in part the Riverpoint Capitol-Center Development Area Urban Renewal Project, except that taxes for the payment of bonds and interest of each taxing district levying taxes on said urban renewal project area shall be collected against all taxable property within the project area without any limitations as hereinabove provided.

Section 4. At such time as the loans, monies advanced and bonds of the City of Des Moines and interest thereon, hereinabove referred to, have been paid, all monies thereafter received from taxes upon the taxable property in the Urban Renewal Project Area known as the Riverpoint Capitol-Center Development Area Urban Renewal Project Area shall be paid into the funds for the respective taxing districts in the same manner as "base period taxes."

Section 5. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed. The provisions of this ordinance are intended and shall be construed so as to fully implement the provisions of I.C. § 403.19 of the 1993 Code of Iowa, as amended, with respect to the division of revenue from taxes from property within the combined urban renewal project area as described above. In the event that any provision of this ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this ordinance which shall at all times be construed to fully invoke the provisions of I.C. § 403.19 of the 1993 Code of Iowa, as amended, with reference to said combined urban renewal project and the territory therein.

Section 6. This ordinance shall be in effect after its final passage, approval and publication as provided by law.

Section 2. This ordinance shall be in effect after its final passage, approval and publication as provided by law.

Passed December 20, 1993

Signed December 20, 1993

JOHN P. DORRIAN, Mayor

I, Donna V. Boetel-Baker, City Clerk of the City of Des Moines, Iowa, hereby certify that the above

and foregoing is a true copy of an ordinance (Roll Call No. 93-4605), passed by the city council of said city at a meeting held December 20, 1993, signed by the mayor December 20, 1993, and published as provided by law in the Business Record on December 27, 1993. Authorized by Publication Order No. 3412.

DONNA V. BOETEL-BAKER, City Clerk

ORDINANCE NO. 13,565

AN ORDINANCE amending Ordinance No. 10,404, as amended by Ordinance Nos. 11,971, 12,054, and 12,070, entitled:

> "An ordinance providing that general property taxes levied and collected each year on all property located within the Capitol-Center Development Area II Urban Renewal Project in the City of Des Moines, County of Polk, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, and other taxing districts, be paid to the special fund for payment of principal and interest on loans, monies advanced to and indebtedness, including bonds issued or to be issued, incurred by said city in connection with said urban renewal project"

and also amending Ordinance No. 11,419, as amended by Ordinance Nos. 11,972, 12,054 and 12,070, entitled:

> "An ordinance providing that general property taxes levied and collected each year on all property located within the Riverpoint Urban Renewal Project in the City of Des Moines, County of Polk, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, and other taxing districts, be paid to the special fund for payment of principal and interest on loans, monies advanced to and indebtedness, including bond issued or to be issued, incurred by said city in connection with said urban renewal project"

to expand the area subject to the division of revenue from taxation, pursuant to such ordinances.

WHEREAS, the city council of the City of Des Moines, Iowa, has heretofore, in Ordinance No. 10,404, provided for the division of revenue from taxes within the Capitol-Center Development Area II Urban Renewal Project Area (hereinafter referred to as the Capitol-Center Development Area II - Area "A"), pursuant to I.C. § 403.19 of the 1983 Code of Iowa, as amended; and

WHEREAS, an additional area (hereinafter referred to as the Capitol-Center Development Area II - Area "B") was added to the Capitol-Center Development Area II Urban Renewal Project Area and by Ordinance No. 11,971, the city council amended Ordinance No. 10,404 to expand the area subject to the division of revenue from taxes under Ordinance No. 10,404 to include the additional area; and

WHEREAS, the city council of the City of Des Moines, Iowa, has heretofore, in Ordinance No. 11,419, provided for the division of revenue from taxes within the Riverpoint Urban Renewal Project Area (hereinafter referred to as the Riverpoint - Area "A"), pursuant to I.C. § 403.19 of the 1989 Code of Iowa, as amended; and

WHEREAS, an additional area (hereinafter referred to as Riverpoint - Area "B") was added to the Riverpoint Urban Renewal Project Area and by Ordinance No. 11,972 the city council amended Ordinance No. 11,419 to expand the area subject to the division of revenue from taxes under Ordinance No. 11,419 to include the additional area; and

WHEREAS, by amendments to the urban renewal plans for the Capitol-Center Development Area II Urban Renewal Project and the Riverpoint Urban Renewal Project, after notice and public hearing as prescribed by law, said urban renewal plans were amended to provide for the consolidation and expansion of the two urban renewal projects in accordance with the urban renewal plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project; and

WHEREAS, by Ordinance No. 12,054 the city council amended Ordinance No. 10,404, as amended by Ordinance No. 11,971 (regarding the Capitol-Center Development Area II Urban Renewal Project) and also amended Ordinance No. 11,419 as

amended by Ordinance No. 11,972 (regarding the Riverpoint Urban Renewal Project) to consolidate and expand the area subject to the division of revenue from taxes to be in accordance with the urban renewal plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project; and,

WHEREAS, by the first amendment to the urban renewal plan for the Riverpoint Capitol-Center Development Area, after public notice and hearing as prescribed by law, said urban renewal plan was amended and adopted to add an additional area (hereinafter referred to as Capitol-Center III - Area "A"); and

WHEREAS, by Ordinance No. 12,070 the City Council amended Ordinance No. 10,404, as amended by Ordinance Nos. 11,971 and 12,054 (regarding the Capitol-Center Development Area II Urban Renewal Project) and also amended Ordinance No. 11,419, as amended by Ordinance Nos. 11,972 and 12,054 (regarding the Riverpoint Urban Renewal Project) to expand the area subject to the division of revenue from taxes to be in accordance with the urban renewal plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project; and

WHEREAS, by the fifth amendment to the urban renewal plan for the Riverpoint Capitol-Center Development Area, after public notice and hearing as prescribed by law, said urban renewal plan was amended and adopted to add an additional area (hereinafter referred to as the Sixth Avenue Area); and

WHEREAS, the continuing needs of redevelopment of the expanded Riverpoint Capitol-Center Development Area Urban Renewal Project are such as to require application of the incremental tax resources of the expanded urban renewal project; and

WHEREAS, the following enactment is necessary to accomplish the objectives described above and in the urban renewal plan for the Riverpoint Capitol-Center Development Area Urban Renewal Project;

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA AS FOLLOWS:

Section 1. That Ordinance Nos. 10,404, 11,971, 11,419, 11,972, 12,054 and 12,070 are hereby amended to read as follows:

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to resolution passed and approved December 19, 1983, adopted an urban renewal plan for an area known as Capitol-Center Development Area II Urban Renewal Project, which original project area (herein designated as "Capitol-Center Development Area II - Area 'A'") includes the lots and parcels within the boundaries as follows:

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "A"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the northerly right-of-way line of Grand Avenue and the easterly right-of-way line of Second Avenue; thence west along the northerly right-of-way line of Grand Avenue to its intersection with the westerly right-of-way line of Eighth Street; thence south along the westerly right-of-way line of Eighth Street to its intersection within the centerline of the old Rock Island Railroad main line; thence west along the centerline of the old Rock Island Railroad main line to its intersection with the easterly right-of-way line of Eleventh Street; thence north along the easterly right-of-way line of Eleventh Street to the point of intersection with the northerly right-of-way line of High Street; thence east from said point along the northerly right-of-way line of High Street to the intersection with the westerly right-of-way line of Tenth Street; thence north along the westerly right-of-way line of Tenth Street to the intersection of the southerly right-of-way line of Woodland Avenue; thence east along the projection of the southerly right-of-way line of Wood-

land Avenue to the point of intersection with the easterly right-of-way line of Tenth Street; thence north from said point along the easterly right-of-way line of Tenth Street to the intersection of the southerly right-of-way line of Pleasant Street; thence east along the southerly right-of-way line of Pleasant Street to the point of intersection with the projection of the west line of Lot 12, Methodist Plat No. 1; thence northerly along said projected west line of said Lot 12 to the northerly right-of-way line of Pleasant Street; thence east along the northerly right-of-way line of Pleasant Street to the intersection of the westerly right-of-way line of Ninth Street; thence north along the westerly right-of-way line of Ninth Street to its intersection with a point 20 feet south of the north line of said Lot 12 of Methodist Plat No. 1; thence east along a projection of a line 20 feet south of and parallel to the north line of said Lot 12 to the point of intersection of the easterly right-of-way line of Ninth Street; thence north along the easterly right-of-way line of Ninth Street to the intersection of the northerly right-of-way line of Keosauqua Way; thence northerly and westerly along said northerly right-of-way line of Keosauqua Way to the intersection with the southerly right-of-way line of Crocker Street; thence east along the southerly right-of-way line of Crocker Street to the intersection of the easterly right-of-way line of Ninth Street; thence north along the easterly right-of-way line of Ninth Street to the intersection of the northerly right-of-way line of School Street; thence east along the northerly right-of-way line of School Street to the intersection of the easterly right-of-way line of Sixth Avenue; thence south along the easterly right-of-way line of Sixth Avenue to the intersection with the northerly right-of-way line of Crocker Street; thence east along the northerly right-of-way line of Crocker Street to the intersection of the westerly right-of-way line of Fifth Avenue; thence north along the westerly right-of-way line of Fifth Avenue to the point of intersection of the westerly projection of the north line of Lot 1, Block F, River Hills Plat 1; thence east along the projected north line of said Lot 1 to the intersection of the easterly right-of-way line of Third Street; thence south along the easterly right-of-way line of Third Street to the intersection of the northerly right-of-way line of Keosauqua Way; thence east along the northerly right-of-way line of Keosauqua Way to the point of intersection with the easterly right-of-way line of Second Avenue; thence south from said point along the easterly right-of-way line of Second Avenue to the point of beginning.

and,

WHEREAS, by amendment to said urban renewal plan, after public notice and hearing as prescribed by law, said urban renewal plan was amended and adopted for an extended area consisting of the Capitol-Center Development Area II - Area "A" combined with the Capitol-Center Development Area II - Area "B," which includes the lots and parcels within the boundaries as follows:

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "B"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the north right-of-way line of School Street and the east right-of-way line of Ninth Street; thence southerly along the northerly extension of and the east right-of-way line of Ninth Street and the southerly extension of said right-of-way line to the south right-of-way line of Crocker Street; thence westerly along the westerly extension and the south right-of-way line of Crocker Street to the east right-of-way line of Keosauqua Way; thence northwesterly along said east right-of-way line of Keosauqua Way to the east right-of-way line of the Keosauqua/I-235 intersection; thence north along said east right-of-way line of the Keosauqua/I-235 intersection; thence east along the

south right-of-way line of the Keosauqua/ I-235 intersection to the west right-of-way line of Twelfth Place; thence north along said west right-of-way line and the northerly extension of the west right-of-way line of Twelfth Place to the north right-of-way line of School Street; thence east along the north right-of-way line of School Street to the point of beginning.

and,

WHEREAS, the city council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to resolution passed and approved December 18, 1989, adopted an urban renewal plan for an area known as Riverpoint Urban Renewal Project, which original project area (hereinafter designated Riverpoint - Area "A") includes the lots and parcels within the boundaries as follows:

RIVERPOINT - AREA "A"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the southerly right-of-way line of East Court Avenue and the easterly right-of-way line of East Seventh Street; thence east along the southerly right-of-way line of East Court Avenue to its intersection with the east right-of-way line of vacated East Eighth Street; thence southerly along the east right-of-way of vacated Eighth Street to a point 47.0 feet south of the south right-of-way line of East Court Avenue; thence southeasterly along a straight line to the northwest corner of Lot 1, Block 22, official plat of Lots 3 through 8, Town of Des Moines, an official plat; thence southeasterly along a straight line to a point on the east right-of-way line of vacated East Eleventh Street, said point being 67.35 feet south of the northwest corner of Lot 3, Block 23, official plat of Lots 3 through 8, Town of Des Moines, an official plat; thence easterly along a straight line to a point on the east lot line and 3.0 feet north of the southwest corner of Lot 8, of said Block 23; thence southerly to the southwest corner of said Lot 8; thence easterly to the southeast corner of said Lot 8; thence southeasterly along a straight line to the northwest corner of Lot 9, of the official plat of Lot 1, of the official plat of the east ½ of the southeast ¼ of Section 3, Township 78 North, Range 24 West of the 5th P.M. the south 236.0 feet of the west ½ of Lot 31, Brooks and Company's Addition, an official plat; thence southerly to the southwest corner of said Lot 9; thence easterly along the south lot lines of Lots 9, 10, 30, 31 and 55 of said official plat of said Lot 1 to its intersection with the east line of the southeast ¼ of said Section 3; thence southerly along said east line of said Section 3 and along the east line of the northeast ¼ of Section 10, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the northeasterly projection of the south right-of-way line of Scott Street; thence southwesterly along said projected south right-of-way line of Scott Street and along the south right-of-way line of Scott Street to its intersection with the east bank of the Des Moines River; thence northwesterly along the east bank of the Des Moines River to the point of its intersection with the southerly side of the Scott Street Bridge; thence southwesterly along the southerly side of the Scott Street Bridge to a point of its intersection with the west bank of the Des Moines River; thence southeasterly along said west bank of the Des Moines River to the point of its intersection with the northeasterly projection of the southeasterly right-of-way line of Southeast First Street; thence southwesterly along said projected southeasterly right-of-way line of Southeast First Street and along the southeasterly right-of-way line of Southeast First Street to a point of its intersection with the centerline of the Chicago and Great Western Railroad right-of-way; thence southwesterly along said centerline of the Chicago and Great Western Railroad right-of-way to a point of its intersection with the easterly right-of-way line of Southwest First Street; thence

southwesterly along the easterly right-of-way line of Southwest First Street to its intersection with the southerly right-of-way line of Indianola Avenue; thence northwesterly and westerly along the south right-of-way line of Indianola Avenue and along the southerly right-of-way line of Clifton Avenue, to its intersection with the southerly projection of the westerly right-of-way line of Southwest Seventh Street; thence northwesterly along said southerly projected westerly right-of-way line of Southwest Seventh Street and the westerly right-of-way line of Southwest Seventh Street to its intersection with the southerly bank of the Raccoon River; thence southwesterly and westerly along said south bank of the Raccoon River to its intersection with the south line of government Lot 11, west of the Raccoon River of Section 8, Township 78 North, Range 24 West of the 5th P.M., an official plat; thence westerly along south line of said government Lot 11 and the westerly projection of the south line of said government Lot 11 to a point 33 feet west of the centerline of said Section 8; thence northerly and 33.0 feet west of and parallel with the centerline of said Section 8 to its intersection with the south line of Lot 1, of the official plat of the northwest ¼ of said Section 8; thence southeasterly along the south line of said Lot 1, 75.0 feet west of the east line of said Lot 1; thence northerly and 75.0 feet west of and parallel with the east line of said Lot 1, 225.0 feet south of the north line of said Lot 1; thence westerly 18.0 feet and 225.0 feet south of the north line of said Lot 1; thence northerly 225.0 feet and 93.0 feet west of the northeast corner of said Lot 1 to the north line of said Lot 1 and the south right-of-way line of Grand Avenue; thence northwesterly to the north right-of-way line of Grand Avenue which is 40.0 feet north of and 100.0 feet west of the southeast corner of Lot 9, of the official plat of the southwest ¼ of Section 5, Township 78 North, Range 24 West of the 5th P.M., an official plat; thence northerly along a line 100.0 feet west of and parallel with the east line of said Lot 9 and along the northerly projection of said line to the north right-of-way line of Ingersoll Avenue; thence easterly along the north right-of-way line of Ingersoll Avenue and the easterly projected north right-of-way line of Ingersoll Avenue and its projections to its intersection with the northwesterly projection of the easterly right-of-way line of Sixteenth Street; thence southeasterly along said northwesterly projected easterly right-of-way line of Sixteenth Street and the easterly right-of-way line of Sixteenth Street to its intersection with the north right-of-way line of Falcon Drive thence easterly along the north right-of-way line of Falcon Drive and its easterly projections to its intersection with the northwesterly projection of the east right-of-way line of Thirteenth Street; thence southeasterly along said northwesterly projected east right-of-way line of Thirteenth Street and the east right-of-way of Thirteenth Street to its intersection with the south right-of-way line of Cherry Street; thence easterly along the south right-of-way line of Cherry Street and its projected south right-of-way line to its intersection with the east right-of-way line of Eleventh Street; thence southeasterly along the east right-of-way line of Eleventh Street to its intersection with the centerline of the Iowa Interstate Railroad main line (formerly known as Rock Island Railroad); thence easterly along the centerline of the Iowa Interstate Railroad main line (formerly known as Rock Island Railroad) to its intersection with the southerly projection of the westerly right-of-way line of Eighth Street; thence northerly along the southerly projection of the westerly right-of-way line of Eighth Street to the westerly right-of-way line of Eighth Street to its intersection within the centerline of the Des Moines Union Railroad main line; thence easterly along the centerline of the Des Moines Union Railroad main line to its intersection with the easterly right-of-way line of East Seventh Street; thence

northerly along the easterly right-of-way line of East Seventh Street to its intersection with the southerly right-of-way line of East Court Avenue, to the point of beginning.

and,

WHEREAS, by amendment to said urban renewal plan, after public notice and hearing as prescribed by law, said urban renewal plan was amended and adopted for an extended area consisting of Riverpoint - Area "A" combined with Riverpoint - Area "B," which includes the lots and parcels within the boundaries as follows:

RIVERPOINT - AREA "B"

That part of the City of Des Moines, Polk County, Iowa, described as follows:

Bounded on the north by the south right-of-way line of East Scott Street, bounded on the east by the centerline of Southeast Fourteenth Street, bounded on the south and west by the right (south) bank of the Des Moines River.

and,

WHEREAS, by amendment to the urban renewal plans for the Riverpoint Urban Renewal Project and the Capitol-Center Development Area II Urban Renewal Project, after public notice and hearing as prescribed by law, said urban renewal plans were amended and adopted to provide for the consolidation and expansion of the two projects as set forth in the urban renewal plan for the Riverpoint Capitol-Center Development Area Urban Renewal Plan; and

WHEREAS, the Riverpoint Capitol-Center Development Area Urban Renewal Area originally consisted of Capitol-Center Development Area II - Areas "A" and "B," combined with Riverpoint - Areas "A" and "B," all as described above, and expanded to include Capitol-Center Development Area II - Areas "C" and "D" and Riverpoint - Area "C," described as follows:

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "C"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the westerly right-of-way line of Third Street and the south line of Lot G, River Hills Plat 1, an official plat; thence easterly along the southerly line of said Lot G to its intersection with the right (west) bank of the Des Moines River; thence south along said right bank to its intersection with the northerly right-of-way line of Grand Avenue extended easterly; thence westerly along the northerly right-of-way of Grand Avenue to its intersection with the east right-of-line of Second Avenue extended southerly; thence northerly along the east right-of-way line of Second Avenue to its intersection with the easterly extension of the north right-of-way line of Keosauqua Way; thence west along the easterly extension of the north right-of-way line of Keosauqua Way to the west right-of-way line of Third Street; thence north along the west right-of-way line of Third Street to the point of beginning.

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "D"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Block E, Lot M (except the east 80 feet thereof) and that part of Lot G south of the north lot line of said Lot M extended west, River Hills Plat 1, an official plat

RIVERPOINT - AREA "C"

That part of the City of Des Moines Polk County, Iowa, described as follows:

Beginning at the intersection of the southerly right-of-way line of the Chicago Great Western Railroad with the easterly right-of-way line of Southeast First Street; thence southerly along the easterly right-of-way line of Southeast First Street to the southerly right-of-way line of East Edison Street; thence easterly along the southerly right-

of-way line of East Edison Street to the westerly right-of-way line of Southeast Second Street; thence southerly along the westerly right-of-way line of Southeast Second Street to the westerly extension of the southerly right-of-way line of the east/west alley lying south of and adjoining Lots 1 through 6, inclusive, Block 6, Clifton Heights, an official plat; thence easterly along the westerly extension of the southerly right-of-way line of said east/west alley to the westerly right-of-way line of Southeast Second Court; thence southerly along the westerly right-of-way line of Southeast Second Court and the westerly line of Lot 2, Millsap Subdivision, an official plat, to the north line of Lot 6, official plat of the west ½ of Section 10, Township 78 North, Range 24 West of the 5th P.M.; thence west along the north line of said Lot 6 extended westerly to the southerly right-of-way line of East Indianola Avenue; thence westerly along the southerly right-of-way line of East Indianola Avenue to its intersection with the southerly extension of the westerly right-of-way line of Southwest First Street; thence northerly along the westerly right-of-way line of Southwest First Street to the southerly right-of-way line of the Chicago Great Western Railroad; thence northeasterly along the southerly right-of-way line of the Chicago Great Western Railroad to the point of beginning.

and,

WHEREAS, by the first amendment to the urban renewal plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project, after public notice and hearing as prescribed by law, said urban renewal plan was amended and adopted for an extended area consisting of the original Riverpoint Capitol-Center Development Area Urban Renewal Project Area combined with Capitol-Center III - Area "A," which includes the lots and parcels within the boundaries as follows:

CAPITOL CENTER III - AREA "A"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the northerly right-of-way line of Keosauqua Way with the east right-of-way line of Ninth Street, extended north; thence south along the east right-of-way line of Ninth Street and its northerly extension to the south right-of-way line of Chestnut Street extended east; thence west along the extended south right-of-way line of Chestnut Street to the west right-of-way line of Ninth Street; thence south along the west right-of-way line of Ninth Street to the north right-of-way line of Pleasant Street; thence west along the north right-of-way line of Pleasant Street to the west lot line of Lot 12, Methodist Plat No. 1, an official plat; thence south along the extended west lot line of said Lot 12 to the centerline of Pleasant Street; thence west along the centerline of Pleasant Street to the east right-of-way line of Tenth Street extended north; thence south along the east right-of-way line of Tenth Street and its northerly extension to the south right-of-way line of Woodland Avenue extended east; thence west along the easterly extension of the south right-of-way line of Woodland Avenue to the west right-of-way line of Tenth Street; thence south along the west right-of-way line of Tenth Street to the north right-of-way line of High Street; thence west along the north right-of-way line of High Street to the east right-of-way line of Eleventh Street extended north; thence south along the east right-of-way line of Eleventh Street and its northerly extension to the south right-of-way line of Cherry Street; thence west along the south right-of-way line of Cherry Street and its easterly extension to the east right-of-way line of Thirteenth Street extended south; thence north along the east right-of-way line of Thirteenth Street and its southerly extension to the north right-of-way line of Falcon Drive extended east; thence west along the north right-of-way line of Fal-

con Drive and its easterly extension to the east right-of-way line of Sixteenth Street; thence north along the east right-of-way line of Sixteenth Street to the north right-of-way line of Ingersoll Avenue; thence west along the north right-of-way line of Ingersoll Avenue and its westerly extension to the centerline of Martin Luther King, Jr. Parkway (formerly Harding Road); thence north along the centerline of Martin Luther King, Jr. Parkway to the north right-of-way line of Woodland Avenue extended west; thence east along the north right-of-way line of Woodland Avenue and its westerly and easterly extensions to the centerline of Sixteenth Street; thence north along the centerline of Sixteenth Street to the north lot line of Lots 18 and 7 Sherman Place, an official plat extended west; thence east along the north lot line of said Lots 18 and 7 and their westerly extension to the west right-of-way line of Fifteenth Street; thence north along the west right-of-way line of Fifteenth Street to the north right-of-way line of Center Street extended west; thence east along the north right-of-way line of Center Street and its westerly extension, said line also being the south lot line of Lots 1 and 2, Oakridge Plat No. 1, an official plat, and Lots 2, 3 and 6, Oakridge Plat No. 3, an official plat, to the southeasterly corner of said Lot 6; thence north along the east lot line of said Lot 6 and the east lot line of Lot 5, in said Oakridge Plat No. 3 to the northeasterly corner of said Lot 5; thence northwesterly along the northerly line of said Oakridge Plat Nos. 1 and 3 to the northeasterly corner of Lot 6, in said Oakridge Plat No. 1, said point also being on the south right-of-way line of Interstate 235; thence in a straight line easterly to the northwest corner of Lot K, Grass Roots 1, an official plat 1; thence south along the west line of Lots K and N, Grass Roots 1 to the north lot line of Lot 7, Block 7, Grass Roots 1; thence west along the north lot line of said Lot 7 to the northwest corner of said Lot 7; thence south along the west lot line of said Lot 7 to the northerly right-of-way line of Keosauqua Way; thence southeasterly along the northerly right-of-way line of Keosauqua Way to the point of beginning.

and,

WHEREAS, by the fifth amendment to the urban renewal plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project, after public notice and hearing as prescribed by law, said urban renewal plan was amended and adopted for an extended area consisting of the original Riverpoint Capitol-Center Development Area Urban Renewal Project Area combined with Capitol-Center III - Area "A," and expanded to include the Sixth Avenue Area, which includes the lots and parcels within the boundaries as follows:

SIXTH AVENUE AREA

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the northeast corner of Lot 1, Block 10, Polk County Homestead and Trust Co.'s Addition, an official plat, of the southwest ¼ of the northeast ¼ of Section 34, Township 79 North, Range 24 West of the 5th P.M., also being on the south right-of-way line of Franklin Avenue and the west right-of-way line of Seventh Street; thence east along the south right-of-way line of Franklin Avenue and its easterly extension to the east right-of-way line of Oakland Avenue, being the northwest corner of Lot 36, Oakland Park, an official plat; thence south along the east right-of-way line and its southerly extension to the south right-of-way line of College Avenue and being 5.0 feet west of the northwest corner of Lot 63, Bates Addition, an official plat; thence west along the south right-of-way line and its westerly extension to the east right-of-way line of Fifth Avenue, being the northwest corner of Lot 25 of said Bates Addition; thence south along the east right-of-way line of Fifth Avenue and its southerly extension to the south right-of-way line of University Avenue; thence northwesterly along the south

right-of-way line of University Avenue to the east right-of-way line of Sixth Avenue; thence south along the east right-of-way line of Sixth Avenue and its southerly extension to the north right-of-way line of School Street; thence west along the easterly extension of the north right-of-way line and the north right-of-line of School Street to the west right-of-way line of Seventh Street; thence north along the west right-of-way line of Seventh Street to a point being 505.37 feet south of the south right-of-way line of University Avenue also being the south line of the north 7.7 feet of Lot 5 of the official plat of the northeast ¼ of the northwest ¼ of Section 4, Township 78 North, Range 24 West of the 5th P.M.; thence west along a straight line of the east right-of-way line of Eighth Street also being 6.4 feet north of the south line of Lot 9 of the official plat of said Section 4; thence north along the east right-of-way line of Eighth Street to the south right-of-way line of University Avenue, also being the northwest corner of Lot 48, North Park, an official plat; thence west along the south right-of-way line of University Avenue and it westerly extension to the west right-of-way line of Ninth Street; thence north along the west right-of-way line of Ninth Street and its northerly extension to the intersection of the westerly extension of the north right-of-way line of Indiana Avenue; thence east along the westerly extension of the north right-of-way line of Indiana Avenue to the southwest corner of Lot 10 of said North Park; thence continuing east along the north right-of-way line of Indiana Avenue and it easterly extension to the east right-of-way line [of] Eighth Street being the southwest corner of Lot 56 of said North Park; thence north along the east right-of-way line of Eighth Street and its northerly extension to the north line of Forest Avenue, being the southeast corner of Lot 1, Butt's Subdivision, an official plat; thence east along the north right-of-way line of Forest Avenue and its easterly extension to the west right-of-way line of Seventh Street, being the southeast corner of Lot 46 of the official plat of government Lot 3 of Section 34, Township 79 North, Range 24 West of the 5th P.M.; thence north along the west right-of-way line of Seventh Street to the northeast corner of Lot 13, E. M. Kelsey's Subdivision, an official plat; thence northwesterly to the northwest corner of Seventh Street and Clark Street, being on the north right-of-way line of Clark Street and the west right-of-way line of Seventh Street; thence north along the west right-of-way line of Seventh Street and its northerly extension to the south right-of-way line of Franklin Avenue and the point of beginning, all now included in the forming a part of the City of Des Moines, Polk County, Iowa.

WHEREAS, indebtedness has been incurred by the City of Des Moines, Iowa, and additional indebtedness is anticipated to be incurred in the future to finance said Urban Renewal Project; and

WHEREAS, the city council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the urban renewal project area, as above described in accordance with the provisions of I.C. § 403.19 of the 1993 Code of Iowa, as amended;

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA AS FOLLOWS:

Section 1. That the taxes levied on the taxable property in the urban renewal project area known as the Riverpoint Capitol-Center Development Area Urban Renewal Project, consisting of the sub-areas known as Capitol-Center Development Area II - Areas "A," "B," "C," and "D"; Riverpoint - Areas "A," "B," and "C"; Capitol-Center III - Area "A"; and Sixth Avenue Area, each of which is legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District and all other taxing districts from and after the effective date of this ordinance shall be divided as hereinafter in this ordinance provided.

Section 2. For purposes of this ordinance, "base period taxes" are that portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in the Riverpoint Capitol-Center Development Area Urban Renewal Project Area upon the total sum of the "base valuations" of each of the sub-areas within the said urban renewal project area. The "base valuations" are the assessed values of the taxable property in each sub-area of said urban renewal project area as shown on the assessment rolls following:

With respect to the Capital-Center Development Area II-Area "A," the assessment roll last equalized prior to the effective date of Ordinance No. 10,404, being the assessment roll for January 1, 1982;

With respect to the Capital-Center Development Area II-Area "B," the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 11,971, amending Ordinance No. 10,404, being the assessment roll for January 1, 1992;

With respect to the Riverpoint-Area "A," the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 11,419, being the assessment roll for January 1, 1989;

With respect to the Riverpoint-Area "B," the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 11,972, amending Ordinance No. 11,419, being the assessment roll for January 1, 1992;

With respect to the Capital-Center Development Area II-Areas "C" and "D" and the Riverpoint-Area "C," the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 12,054, being the assessment roll for January 1, 1992.

With respect to the Capitol-Center III - Area "A," the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 12,070, being the assessment roll for January 1, 1992.

With respect to the Sixth Avenue Area, the assessment roll as of January 1 of the calendar year preceding the effective date of this Ordinance, being the assessment roll for January 1, 1997.

The "base period taxes" for each of the sub-areas within said urban renewal project area shall be computed using the total assessed value of the taxable property within each such sub-area as shown on the assessment rolls applicable to each sub-area as described above. "Base period taxes" shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by and for said taxing district into which all other property taxes are paid.

Section 3. For purposes of this ordinance, "incremental taxes" are that portion of the taxes each year in excess of the "base period taxes" for the combined area, determined as provided in section 2 of this ordinance. "Incremental taxes" shall be allocated to and when collected be paid into a special fund of the City of Des Moines, Iowa, hereafter to be maintained to pay the principal of and interest on loans, monies advanced to, and indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under authority of I.C. §§ 403.9 and 403.12 of the 1993 Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance in whole or in part the Riverpoint Capitol-Center Development Area Urban Renewal Project, except that taxes for the payment of bonds and interest of each taxing district levying taxes on said urban renewal project area shall be collected against all taxable property within the project area without any limitations as hereinabove provided.

Section 4. At such time as the loans, monies advanced and bonds of the City of Des Moines and interest thereon, hereinabove referred to, have been paid, all monies thereafter received from taxes upon the taxable property in the urban renewal project area known as the

Riverpoint Capitol-Center Development Area Urban Renewal Project Area shall be paid into the funds for the respective taxing districts in the same manner as "base period taxes."

Section 5. All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed. The provisions of this ordinance are intended and shall be construed so as to fully implement the provisions of I.C. § 403.19 of the 1993 Code of Iowa, as amended, with respect to the division of revenue from taxes from property within the combined urban renewal project area as described above. In the event that any provision of this ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this ordinance which shall at all times be construed to fully invoke the provisions of I.C. § 403.19 of the 1993 Code of Iowa, as amended, with reference to said combined urban renewal project and the territory therein.

Section 6. This ordinance shall be in effect after its final passage, approval and publication as provided by law.

Section 2. This ordinance shall be in effect after its final passage, approval and publication as provided by law.

Passed January 19, 1998

Signed January 19, 1998

ORDINANCE NO. 10,635

AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE CENTRAL PLACE INDUSTRIAL PARK REDEVELOPMENT PROGRAM IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO A SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BONDS ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL REDEVELOPMENT PROJECT.

WHEREAS, the city council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to resolution passed and approved May 20, 1985, adopted an urban renewal plan for an urban renewal area known as the Central Place Industrial Park Redevelopment Program, which project area includes the lots and parcels within the boundaries, as follows:

Beginning at the intersection of the south right-of-way line of University Avenue and the west right-of-way line of Second Avenue; thence northerly along the west right-of-way line of Second Avenue to the centerline of the Des Moines River; thence southeasterly along the centerline of the Des Moines River to the south right-of-way line of University Avenue; thence westerly along the south right-of-way line of University Avenue to the point of beginning, all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

WHEREAS, expenditures and indebtedness are anticipated to be incurred by the City of Des Moines, Iowa, in the future to finance said Urban Renewal Project; and

WHEREAS, the city council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the urban renewal project area, as above described in accordance with the provisions of I.C. § 403.19 of the Code of Iowa, 1985 as amended.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA:

Section 1: That the taxes levied on the taxable property in the urban renewal project area known as the Central Place Industrial Park Redevelopment Program, legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District,

and all other taxing districts from and after the effective date of this ordinance shall be divided as hereinafter in this ordinance provided.

Section 2: That portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said urban renewal area upon the total sum of the assessed value of the taxable property in said urban renewal project as shown on the January 1 assessment roll last equalized prior to the date of the effective date of this ordinance shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by or for said taxing district into which all other property taxes are paid.

Section 3: That portion of the taxes each year in excess of the base period taxes determined as provided in section 2 of this ordinance shall be allocated to and when collected be paid into a special tax increment fund hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of I.C. §§ 403.9 and 403.12 of the 1985 Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance in whole or in part the Central Place Industrial Park Redevelopment Program, except that taxes for the payment of bonds and interest of each taxing district levying taxes on said project area shall be collected against all taxable property within the project area without any limitation as hereinabove provided.

Section 4: All taxes levied and collected upon the taxable property in said Central Place Industrial Park Redevelopment Program shall be paid into the funds of the taxing districts as taxes by or for said taxing districts in the same manner as all other property taxes unless or until the total assessed valuation of the taxable property in said urban renewal project shall exceed the total assessed value of the taxable property in said urban renewal project on the date of adoption of the urban renewal plan, as shown by the last equalized assessment rolls prior to the effective date of this ordinance.

Section 5: At such time as the monies advanced, bonds and interest thereon and indebtedness of the City of Des Moines hereinabove in section 3 referred to have been paid, all monies thereafter received from taxes upon the taxable property in the urban renewal project known as the Central Place Industrial Park Redevelopment Program shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property.

Section 6: All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed. The provisions of this ordinance are intended and shall be construed so as to fully implement the provisions of I.C. § 403.19 of the 1985 Code of Iowa, as amended, with respect to the division of taxes from property within the urban renewal project area as described above. In the event that any provision of this ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this ordinance which shall at all times be construed to fully invoke the provisions of I.C. § 403.19 of the Code of Iowa with reference to said urban renewal project and the territory therein.

Section 7: This ordinance shall be in effect after its final passage, approval and publication as provided by law.

Passed May 20, 1985

Signed May 20, 1985

PETE CRIVARO, Mayor

Attest: Donna V. Boetel-Baker, City Clerk

I, Donna V. Boetel-Baker, City Clerk of the City of Des Moines, Iowa, hereby certify that the above and foregoing is a true copy of an ordinance (Roll Call No. 2390) passed by the city council of said city at a meeting held May 20, 1985, signed by the mayor May 20, 1985, and published in the Iowa Bystander on May 31, 1985.

DONNA V. BOETEL-BAKER, City Clerk

ORDINANCE NO. 11,418

AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COL-

LECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE GUTHRIE AVENUE INDUSTRIAL PARK URBAN RENEWAL PROJECT IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO A SPECIAL FUND FOR PAYMENT OF PRINCIPAL OF AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BONDS ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL PROJECT.

WHEREAS, the city council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to resolution passed and approved September 26, 1988, adopted the original urban renewal plan for the Guthrie Avenue Industrial Park Urban Renewal Project, which project area includes the lots and parcels within the boundaries, as follows:

Beginning on the southerly extension of west right-of-way line of East Seventh Street, said right-of-way line being 60.0 feet west of and parallel with the east line of the west ½ of Section 36, Township 79 North, Range 24 West of the 5th P.M. and extended southerly to the south right-of-way line of East Washington Avenue as it now exists; thence northerly along a line 60.0 feet west of and parallel with the east line of the said west along the north right-of-way of Guthrie Avenue, as it now exists to the southwest corner of Lot 30, Central Terminal Park, an official plat; thence north a distance of 487.5 feet; thence east 899.6 feet, to the east line of Lot 25, of said Central Terminal Park; thence continuing east to the west right-of-way line of railroad right-of-way; thence southerly along railroad right-of-way to the north right-of-way line of Guthrie Avenue; thence easterly along the north right-of-way line of Guthrie Avenue to the northerly extension of the east right-of-way line of vacated Wayne Street; thence southerly along the said extension of the east right-of-way line of vacated Wayne Street and southerly along the southerly extension of the east right-of-way line of vacated Wayne Street to the south right-of-way line of East Washington Avenue; thence westerly along the south right-of-way line of East Washington Avenue; thence westerly along the south right-of-way line of East Washington Avenue to the point of beginning; said point being 60.0 feet west of and parallel with the east line of the west ½ of Section 36, all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

WHEREAS, expenditures and indebtedness are anticipated to be incurred by the City of Des Moines, Iowa, in the future to finance said urban renewal project; and

WHEREAS, the city council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the Guthrie Avenue Industrial Park Urban Renewal Project Area, as above described in accordance with the provisions of I.C. § 403.19 of the 1989 Code of Iowa, as amended.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA:

Section 1: That the taxes levied on the taxable property in the urban renewal project area known as the Guthrie Avenue Industrial Park Urban Renewal Project, legally described in the preamble hereof, by or for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District, and all other taxing districts from and after the effective date of this ordinance shall be divided as hereinafter in this ordinance provided.

Section 2: That portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said Guthrie Avenue Industrial Park Urban Renewal Project Area upon the total sum of the assessed value of the taxable property in said urban renewal project as shown on the assessment roll as of January 1 of the calendar year preceding the effective date of this ordinance shall be allocated to and when collected

be paid into the fund for the respective taxing district as taxes by or for said taxing district into which all other property taxes are paid.

Section 3: That portion of the taxes each year in excess of the base period taxes determined as provided in section 2 of this ordinance shall be allocated to and when collected be paid into a special tax increment fund hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of I.C. §§ 403.9 and 403.12 of the 1989 Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance, in whole or in part, the Guthrie Avenue Industrial Park Urban Renewal Project, except that taxes for the payment of bonds and interest of each taxing district levying taxes upon taxable property in said urban renewal project area shall be collected against all taxable property within the taxing district without limitation by the provisions of this section 3.

Section 4: All taxes levied and collected upon the taxable property in said Guthrie Avenue Industrial Park Urban Renewal Project shall be paid into the funds of the taxing districts as taxes by or for said taxing districts in the same manner as all other property taxes unless and until the total assessed valuation of the taxable property in said urban renewal project shall exceed the total assessed value of the taxable property in said urban renewal project as shown by the assessment roll as of January 1 of the calendar year preceding the effective date of this ordinance.

Section 5: At such time as the loans, advances, indebtedness, bonds and interest thereon of the City of Des Moines hereinabove referred to in section 3 have been paid, all monies thereafter received from taxes upon the taxable property in the Guthrie Avenue Industrial Park Urban Renewal Project shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property.

Section 6: All ordinances or parts of ordinances in conflict with the provisions of this ordinance are hereby repealed. The provisions of this ordinance are intended and shall be construed so as to fully implement the provisions of I.C. § 403.19 of the 1989 Code of Iowa, as amended, with respect to the division of taxes from property within the Guthrie Avenue Industrial Park Urban Renewal Project Area as described above. In the event that any provision of this ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this ordinance which shall at all times be construed to fully invoke the provisions of I.C. § 403.19 of the 1989 Code of Iowa as amended, with reference to said urban renewal project and the territory therein.

Section 7: This ordinance shall be in effect after its final passage, approval and publication as provided by law.

Passed December 18, 1989

Signed December 18, 1989

JOHN P. DORRIAN, Mayor

I, Donna V. Boetel-Baker, City Clerk of the City of Des Moines, Iowa, hereby certify that the above and foregoing is a true copy of an ordinance (Roll Call No. 89-5201), passed by the city council of said city at a meeting held December 18, 1989, signed by the mayor December 18, 1989, and published as provided by law in the Business Record on January 1, 1990. Authorized by Publication Order No. 1518.

DONNA V. BOETEL-BAKER, City Clerk

ORDINANCE NO. 13,302

AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE HIATT SQUARE URBAN RENEWAL AREA IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO A SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BONDS ISSUED

OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL REDEVELOPMENT PROJECT.

WHEREAS, the city council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to resolution passed and approved February 5, 1996, adopted an urban renewal plan for an area known as the Hiatt Square Urban Renewal Area, which project area includes the lots and parcels within the boundaries, as follows:

Commencing at the southwest corner Lot 273, Ashbrook, an official plat; thence east 20.0 feet to a point on the south line of said Lot 273 and the point of beginning, said point being the northeast corner of East Fourteenth Street, also known as IA. 65/69 and East University Avenue also known as IA. 163 and formally known as Filmore Avenue; thence east along the south line of said Lot 273, to a point of intersection with the northerly extension of the east line of Lot 280 of said Ashbrook; thence south along the northerly extension of the east line of said Lot 280 to a point on the east line of said Lot 280, being 46.0 feet north of the southeast corner of said Lot 280 also being the south right-of-way line of East University Avenue; thence southwesterly along the south right-of-way line of East University Avenue to the intersection of the west line of said Lot 280; thence south along the west line of said Lot 280 to the southwest corner of said Lot 280; thence west along the south line of Lots 279, 278 and 277 of said Ashbrook to the point of intersection with the northeasterly extension of a straight line being 35.0 feet east and parallel with the west line of Lot 3, Block 33, Stewarts Addition, an official plat; thence southeasterly along a straight line being 35.0 feet east of and parallel with the west line of Lot 3, Block 33, of said Stewarts Addition, to the south line of said Lot 3; thence continuing southeasterly along the southerly extension of said straight line being 35.0 feet east of and parallel with the southerly extension of the west line of Lot 3, Block 33, of said Stewarts Addition to the south right-of-way line of Fremont Street; thence southwesterly along the south right-of-way line of said Fremont Street to the southeast corner of Johnson Court and Fremont Street; thence continuing along the southwesterly extension of the south line of said Fremont Street to the southwest corner of East Fourteenth Street, IA. 65/69 and said Fremont Street; thence continuing along the south right-of-way line of said Fremont Street to a point of intersection with the southerly extension of the west right-of-way line of York Street; thence northwesterly along the southerly extension of the west line of said York Street and the west line of said York Street to a point 11.67 feet north of the northeast corner of Lot 7, Block 31, of said Stewarts Addition; thence northerly along a straight line to a point being on the west right-of-way line of York Street and being 10.0 feet north of the southeast corner of Lot 315, of subdivision Block A, Polk and Hubbell Addition to Capital Park, an official plat; thence northeasterly along a straight line to a point of the east line of said York Street and being 25.0 feet south of the northwest corner of Lot 410, of said subdivision Block A, Polk and Hubbell Addition to Capital Park; thence northeasterly along a straight line to a point of the west right-of-way line of East Fourteenth Street, IA 65/69 and the east line of Lot 415 of said subdivision of Block A, Polk and Hubbell Addition to Capital Park, said point being 5.0 feet south of the northeast corner of said Lot 415; thence northeasterly to a point being 60.0 feet south and 20.0 feet east of the southwest corner of Lot 273, of said Ashbrook; thence north along a straight line being 20.0 feet east of and parallel with the southerly extension of the west line of said Lot 273, to the point of beginning; all now included in and forming a part of the City of Des Moines, Polk County, Iowa. Said area contains 7.14 acres.

WHEREAS, expenditures and indebtedness are anticipated to be incurred by the City of Des Moines, Iowa, in the future to finance said urban renewal project; and

WHEREAS, the city council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the urban renewal area, as above described in accordance with the provisions of I.C. § 403.19 of the Code of Iowa, 1995 as amended.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA:

Section 1. That the taxes levied on the taxable property in the urban renewal project area known as the Hiatt Square Urban Renewal Area, legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District, and all other taxing districts from and after the effective date of this ordinance shall be divided as hereinafter in this ordinance provided.

Section 2. That portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said urban renewal area upon the total sum of the assessed value of the taxable property in said urban renewal area as shown on the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of property tax revenue shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by or for said taxing district into which all other property taxes are paid.

Section 3. That portion of the taxes each year in excess of the base period taxes determined as provided in section 2 of this ordinance shall be allocated to and when collected be paid into a special tax increment fund hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of I.C. §§ 403.9 and 403.12 of the 1995 Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance in whole or in part the Hiatt Square Urban Renewal Project, except that taxes for the payment of bonds and interest of each taxing district levying taxes on said urban renewal area shall be collected against all taxable property within the project area without any limitation as hereinabove provided.

Section 4. All taxes levied and collected upon the taxable property in said Hiatt Square Urban Renewal Area shall be paid into the funds of the taxing districts as taxes by or for said taxing districts in the same manner as all other property taxes unless or until the total assessed valuation of the taxable property in said urban renewal area shall exceed the total assessed value of the taxable property in said urban renewal area as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to this ordinance.

Section 5. At such time as the monies advances, bonds and interest thereon and indebtedness of the City of Des Moines hereinabove in section 3 referred to have been paid, all monies thereafter received from taxes upon the taxable property in the urban renewal area known as the Hiatt Square Urban Renewal Area shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property.

Section 6. The provisions of this ordinance are intended and shall be construed so as to fully implement the provisions of I.C. § 403.19 of the 1995 Code of Iowa, as amended, with respect to the division of taxes from property within the urban renewal project area as described above. In the event that any provision of this ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this ordinance which shall at all times be construed to fully invoke the provisions of I.C. § 403.19 of the Code of Iowa with reference to said urban renewal project and the territory therein.

Section 7. This ordinance shall be in effect after its final passage, approval and publication as provided by law.

Passed February 5, 1996

Signed February 5, 1996

ARTHUR DAVIS, Mayor

I, Donna V. Boetel-Baker, City Clerk of the City of Des Moines, Iowa, hereby certify that the above and foregoing is a true copy of an ordinance (Roll

Call No. 96-471), passed by the city council of said city at a meeting held February 5, 1996, signed by the mayor February 5, 1996, and published as provided by law in the Business Record on February 19, 1996. Authorized by Publication Order No. 9819.

DONNA V. BOETEL-BAKER, City Clerk

ORDINANCE NO. 13,386

AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE ACCENT NEIGHBORHOOD URBAN RENEWAL AREA IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO A SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BONDS ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL REDEVELOPMENT PROJECT.

WHEREAS, the city council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to resolution passed and approved October 21, 1996, adopted an urban renewal plan for an area known as the ACCENT Neighborhood Urban Renewal Area, which project area includes the lots and parcels within the boundaries, as follows:

Commencing at the northeast corner of Lot 1, Davis Heights, an official plat; thence southwesterly along the north line of said Lot 1, a distance of 53.22 feet to the point of beginning; thence south and southeasterly along the westerly line of said Lot 1 and along Lots 5 and 6, of said Davis Heights, to a point 49.50 feet south of the northwest corner of said Lot 6; thence southwesterly to the northwest corner of Lot 7, Tom's Heights Plat No. 2, an official plat, said point also being on the east right-of-way line of East Twenty-ninth Street; thence south along the east right-of-way line of East Twenty-ninth Street and the southerly extensions of East Twenty-ninth Street right-of-way lines to the northwest corner of Lot 15, Block 4, Hyde Park Plat 2, an official plat; thence east along the north line of Lots 15 through 27, inclusive in said Block 4 and said north line extended east to the east right-of-way line of East Thirtieth Street; thence south along the east right-of-way line of East Thirtieth Street to the northwest corner of Lot 15, Block 10, in said Hyde Park Plat 2; thence south along the west line of said Lot 15, a distance of 69.0 feet; thence southeasterly to the north line of Lot 16, Block 10 being 3.5 feet east of the northwest corner of said Lot 16, Block 10; thence east along the north line of Lots 16 through 31, inclusive in said Block 10 to the northeast corner of said Lot 31; thence easterly along a straight line to a point 7.0 feet north of the northwest corner of Lot 16, Block E, Gray Heights, an official plat; thence east along a straight line that is 7.0 feet north of and parallel with the north line of Lots 16 through 27, inclusive, in said Block E and said straight line extended east to the east right-of-way line of East Thirty-third Street; thence south along the east right-of-way line of East Thirty-third Street and said east right-of-way line extended to the south right-of-way line of East University Avenue as it now exists; thence west along said south right-of-way line of East University Avenue to the east right-of-way line of East Thirtieth Street as it now exists; thence south along said east right-of-way line to a point of intersection with the easterly extension of the south right-of-way line of Walker Street; thence west along said south right-of-way line and its easterly extension to the northwest corner of Lot 12, Block 8, Farwell Place, an official plat; thence north to the southeast corner of Lot 18, Block 7, in said Farwell Place; thence west along the south line of said Lot 18, a distance of 25.00 feet; thence north along a line being 25.0 feet west of and parallel with the east line of said Lot 18, to the north line of said Lot 18; thence west 25.0 feet along the north line of said Lot 18 to the northeast corner of Lot 19, Block 7, in said Farwell Place; thence west along the north line of Lots 19 through 28, inclusive, in said Block 7

to the northwest corner of said Lot 28; thence south along the west line of said Lot 28 to a point of intersection with the easterly extension south line of Lot 25, Block 6, in said Farwell Place; thence west along the easterly extensions of the south line of Lots 27 and 4, Block 3 in said Farwell Place; thence continuing west along the easterly extension of the north line of Lots 26 and 5, Block 3, in said Farwell to a point 5.0 feet east of the northwest corner of said Lot 5; thence southwesterly to the northwest corner of Lot 6, Block 3, in said Farwell Place; thence south along the west line to the intersection with the easterly extension of a line being 15.0 feet north of the southeast corner of Lot 25, Block 2 of said Farwell Place; west along a line, 15.0 feet north of and parallel with the south line of Lots 25 and 6 of said Block 2; thence north along the east right-of-way line of East Twenty-sixth Court, to the northwest corner of Lot 5, in said Block 2, to a point of intersection with the south line extended east of Lots 27 and 4, Block 1, in said Farwell Place; thence west along the south line and the south line extended of said Lots 27 and 4 to the west right-of-way line of East Twenty-sixth Street; thence south along the west right-of-way line, said right-of-way line also being the east line of Block 10, York's Choice, an official plat, to a point on the east line of Lot 11, said Block 10 being 12.50 feet south of the northeast corner of said Lot 11; thence west along a straight line being 12.50 feet south of and parallel with the north line of said Lot 11, to a point being 50.00 feet west of the east line of said Lot 11; thence north 2.00 feet; thence west along a straight line being 10.50 feet south of and parallel with the north line of said Lot 11, a distance of 30.00 feet; thence south 2.00 feet to a point being 12.50 feet south of the north line and 80.00 feet west of the northeast corner of said Lot 11; thence west along a straight line being 12.50 feet south of and parallel with the north line of said Lot 11 to a point that is 20.00 feet east and 12.50 feet south of the northwest corner of said Lot 11; thence south along a straight line to a point being 20.00 feet west of and 7.50 feet south of the northwest corner of Lot 12, in said Block 10; thence west along a straight line that is 7.50 feet south of and parallel with the north line of said Lot 12 to a point on the west line of Lot 12, in said Block 10; thence north along said west line to the northwest corner of said Lot 12; thence west along the easterly extension of the south line of Lot 48, of said Block 10, to the southeast corner of said Lot 48; thence west along the south line of said Lot 48 to the southwest corner of said Lot 48; thence north along the west line of Lots 48 through 52, inclusive, in said Block 10 to the northwest corner of said Lot 52; thence west along the north line of said Lot 52 extended west to the southeast corner of Lot 6, Block 9, in said York's Choice; thence west along the south line of said Lot 6 and the south line extended west to the northeast corner of Lot 52, in said Block 9; thence south along the east line of Lots 52, 51 and 50, in said Block 9 to the southeast corner of said Lot 50; thence west along the south line of said Lot 50 to a point being 1.0 feet east of the southwest corner of said Lot 50 also being the east right-of-way line of East Twenty-fifth Street; thence north along the east right-of-way line to the north line of said Lot 50; thence north along the east right-of-way line; thence west along the easterly extension of the north line of said Lot 50, to the west right-of-way line of East Twenty-fifth Street, and being the south line of Lot 9 Block B, in said York's Choice; thence west along the south line and the south line extended west of said Lot 9 to the southeast corner of Lot 52, in said Block 8; thence north along the east line of said Lot 52 to the southeast corner of Lot 53, in said Block 8; thence west along the south line and the south line extended west of said Lot 53, and the south line of extended of Lot 8, Block 7, in said York's Choice to the southeast corner of Lot 53, in said Block 7; thence north along the east line of said Lot 53 to the northeast corner of said Lot 53; thence west along the north line of said Lot 53 to the northwest corner of said Lot 53; thence south along the west line of said Lot 53 to the southwest corner of said Lot 53; thence west along the westerly extension of the south line of said Lot 53, to the southeast corner of Lot 8, Block 6 in said York's Choice; thence west along the south line of said Lot 8, and the south line extended of said Lot 8, to the south-

east corner of Lot 53, in said Block 6; thence north along the east line of said Lot 53 to the northeast corner of said Lot 53; thence west along the north line and the north line extended west of said Lot 53 to the northeast corner of Lot 8, Block 5, in said York's Choice; thence south along the east line of said Lot 8 to the southeast corner thereof; thence west along the south line of said Lot 8, to the southwest corner of said Lot 8; thence north along the west line of Lots 8 and 7, in said Block 5 to the northwest corner of Lot 7, in said Block 5; thence west along the westerly extension of the north line of Lot 7, Block 5, to the northeast corner of Lot 7, Block 4, in said York's Choice; thence south along the east line of said Lot 7 and Lot 8, Block 4, to the southeast corner of said Lot 8; thence west along the south line and the south line extended of said Lot 8 to the southeast corner of Lot 53, in said Block 4; thence north along the east line of said Lot 53 and Lot 54, Block 4, to the northeast corner of said Lot 54; thence west along the north line and the north line extended of said Lot 54, to the northeast corner of Lot 8, Block 3, in said York's Choice; thence south along the east line of said Lot 8 to the southeast corner of said Lot 8; thence west along the south line and the south line extended of said Lot 8 to the southeast corner of Lot 55, in said Block 3; thence north along the east line of said Lot 55 to the northeast corner of said Lot 55; thence west along the north line and the north line extended of said Lot 55 to the west right-of-way line of East Twenty-second Street, said right-of-way line also being the east line of Block 2, Easdale, an official plat; thence south along the east line of said Block 2, Easdale to the southeast corner of Lot 8, Block 2, in said Easdale; thence west along the south line of said Lot 8 to the southeast corner of Lot 23 in said Block 2; thence north along the east line of said Lot 23, a distance of 3.00 feet; thence west along a straight line that is 3.00 feet north of and parallel with the south line of said Lot 23 to the west line of said Lot 23; thence south along the west line of Lots 23, 22 and 21, in said Block 2 to the southwest corner of said Lot 21; thence west along the westerly extension of the south line of said Lot 21, Block 2, to the southeast corner of Lot 9, Block 1, in said Easdale; thence west along the south line and the south line extended west of Lots 9 and 20, Block 1, in said Easdale to a point on the west right-of-way line of East Twenty-first Street; thence north along the west right-of-way line of East Twenty-first Street to the southeasterly right-of-way line of Avenue Frederick M. Hubbell; thence southwesterly along the southeasterly right-of-way line of Avenue Frederick M. Hubbell to its intersection with the easterly extension of the south right-of-way line of Walker Street; thence west along the easterly extension of the south right-of-way line and the south right-of-way line of Walker Street to the east right-of-way line of the Union Pacific Railway; thence northerly along the east right-of-way line of the Union Pacific Railway to the southerly right-of-way line of Interstate Freeway No. 235, as presently established; thence easterly and northerly along the southerly and easterly right-of-way line of Interstate Freeway No. 235, as presently established, to the intersection of the southerly right-of-way line extended westerly of Easton Boulevard; thence easterly along the southerly right-of-way line of Easton Boulevard to the west right-of-way line of Lay Street extended south; thence north along the southerly extension of the west right-of-way line and the west right-of-way line of Lay Street and along the northerly extension of the west right-of-way line and Lay Street to the north right-of-way line of Jefferson Avenue; thence east along the North right-of-way line and the north right-of-way line extended to the southwest corner of Lot 18, Block 2, Vorse's First Addition to Easton Place, an official plat; thence north to the northwest corner of said Lot 18; thence east along the north line of said Lot 18 and the north line extended to a point that is 30.00 feet east of the northeast corner of said Lot 18; thence north along a straight line that is 30.00 feet east of parallel with the east line of Lots 11 through 18, in said Block 2 and along the east line of Block 2, Easton Place, an official plat and the east line of Block 3, Easton Place Plat No. 4, an official plat to a point on a line that is 30.00 feet northerly of the centerline of the Seventh Ward Ditch; thence easterly and southeasterly along a line 90.00 feet easterly and

northerly of the centerline of Seventh Ward Ditch to a point on the northerly right-of-way line of Easton Boulevard; thence northeasterly along the northerly right-of-way line of Easton Boulevard to a point that is the intersection of the west line extended north of Lot 29, Boulevard Addition, an official plat with the northerly right-of-way line of Easton Boulevard; thence south along the west line extended north of said Lot 29 to the southerly right-of-way line of Easton Boulevard; thence northeasterly along the southerly right-of-way of Easton Boulevard and to the easterly extension of the southerly right-of-way of said Easton Boulevard to the point of beginning, all now in and forming a part of Des Moines, Polk County, Iowa.

WHEREAS, expenditures and indebtedness are anticipated to be incurred by the City of Des Moines, Iowa, in the future to finance said urban renewal project; and

WHEREAS, the city council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the urban renewal area, as above described in accordance with the provisions of I.C. § 403.19 of the Code of Iowa, 1995 as amended.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA:

Section 1. That the taxes levied on the taxable property in the urban renewal project area known as the ACCENT Neighborhood Urban Renewal Area, legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District, and all other taxing districts from and after the effective date of this ordinance shall be divided as hereinafter in this ordinance provided.

Section 2. That portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said urban renewal area upon the total sum of the assessed value of the taxable property in said urban renewal area as shown on the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of property tax revenue shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by or for said taxing district into which all other property taxes are paid.

Section 3. That portion of the taxes each year in excess of the base period taxes determined as provided in section 2 of this ordinance shall be allocated to and when collected be paid into a special tax increment fund hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of I.C. §§ 403.9 and 403.12 of the 1995 Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance in whole or in part the ACCENT Neighborhood Urban Renewal Project, except that taxes for the payment of bonds and interest of each taxing district levying taxes on said urban renewal area shall be collected against all taxable property within the project area without any limitation as hereinabove provided.

Section 4. All taxes levied and collected upon the taxable property in said ACCENT Neighborhood Urban Renewal Area shall be paid into the funds of the taxing districts as taxes by or for said taxing districts in the same manner as all other property taxes unless or until the total assessed valuation of the taxable property in said urban renewal area shall exceed the total assessed value of the taxable property in said urban renewal area as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to this ordinance.

Section 5. At such time as the loans, advances, indebtedness, and bonds, if any, and interest thereon of the City of Des Moines hereinabove in section 3 referred to have been paid, all monies thereafter received from taxes upon the taxable property in the urban renewal area known as the

ACCENT Neighborhood Urban Renewal Area shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property.

Section 6. The provisions of this ordinance are intended and shall be construed so as to fully implement the provisions of I.C. § 403.19 of the 1995 Code of Iowa, as amended, with respect to the division of taxes from property within the urban renewal project area as described above. In the event that any provision of this ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this ordinance which shall at all times be construed to fully invoke the provisions of I.C. § 403.19 with reference to said urban renewal project and the territory therein.

Section 7. This ordinance shall be in effect after its final passage, approval and publication as provided by law.

Passed October 21, 1996

Signed October 21, 1996

ARTHUR DAVIS, Mayor

I, Donna V. Boetel-Baker, City Clerk of the City of Des Moines, Iowa, hereby certify that the above and foregoing is a true copy of an ordinance (Roll Call No. 96-3613), passed by the city council of the city at a meeting held October 21, 1996, signed by the mayor October 21, 1996, and published as provided by law in the Business Record on November 4, 1996. Authorized by Publication Order No. 5123.

DONNA V. BOETEL-BAKER, City Clerk

ORDINANCE NO. 13,397

AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE AIRPORT COMMERCE PARK WEST URBAN RENEWAL PROJECT AREA IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO A SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BONDS ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL PROJECT.

WHEREAS, the city council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to resolution passed and approved December 2, 1996, adopted an urban renewal plan for an area known as the Airport Commerce Park West Urban Renewal Project Area, which project area includes the following lots and parcels:

All of Airport Industrial Park Plat 1, an official plat, all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

AND, the southwest quarter (SW ¼) of the northeast quarter (NE ¼) of Section 23, Township 78 North, Range 25 West of the 5th P.M., except the south 582.07 feet thereof, and except the west 130 feet thereof, all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

AND, the north one-half of the northeast quarter (NE ¼) of Section 23, Township 78 North, Range 25 West of the 5th P.M., except the north 45 feet thereof, and except the west 130 feet thereof, all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

AND, the northwest quarter (NW ¼) of the northwest quarter (NW ¼) of Section 24, Township 78 North, Range 25 West of the 5th P.M., except the north 45 feet thereof, all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

AND, the entire Park Avenue right-of-way from the east right-of-way line of Southwest Sixty-third Street (Iowa Highway 28) extending east to a line through the northeast corner of the northwest quarter (NW ¼) of the northwest quarter (NW ¼) of Section 24, Township 78

North, Range 25 West of the 5th P.M., all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

WHEREAS, expenditures and indebtedness are anticipated to be incurred by the City of Des Moines, Iowa, in the future to finance said urban renewal project; and

WHEREAS, the city council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the urban renewal area, as above described in accordance with the provisions of I.C. § 403.19 of the Code of Iowa, 1995, as amended.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA:

Section 1. That the taxes levied on the taxable property in the urban renewal project area known as the Airport Commerce Park West Urban Renewal Project Area, legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District, and all other taxing districts from and after the effective date of this ordinance shall be divided as hereinafter in this ordinance provided.

Section 2. That portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said urban renewal area upon the total sum of the assessed value of the taxable property in said urban renewal area as shown on the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of property tax revenue shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by or for said taxing district into which all other property taxes are paid.

Section 3. That portion of the taxes each year in excess of the base period taxes determined as provided in section 2 of this ordinance shall be allocated to and when collected be paid into a special tax increment fund hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of I.C. §§ 403.9 and 403.12 of the 1995 Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance in whole or in part the Airport Commerce Park West Urban Renewal Project, except that taxes for the payment of bonds and interest of each taxing district levying taxes on said urban renewal project area shall be collected against all taxable property within the project area without any limitation as hereinabove provided.

Section 4. All taxes levied and collected upon the taxable property in said Airport Commerce Park West Urban Renewal Project Area shall be paid into the funds of the taxing districts as taxes by or for said taxing districts in the same manner as all other property taxes unless or until the total assessed valuation of the taxable property in said urban renewal project area shall exceed the total assessed value of the taxable property in said project area as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to this ordinance.

Section 5. At such time as the monies advances, bonds and interest thereon and indebtedness of the City of Des Moines hereinabove in section 3 referred to have been paid, all monies thereafter received from taxes upon the taxable property in the urban renewal project area known as the Airport Commerce Park West Urban Renewal Project Area shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property.

Section 6. The provisions of this ordinance are intended and shall be construed so as to fully implement the provisions of I.C. § 403.19 of the 1995 Code of Iowa, as amended, with respect to the division of taxes from property within the urban renewal project area as described above. In the event that any provision of this ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this

ordinance which shall at all times be construed to fully invoke the provisions of I.C. § 403.19 with reference to said urban renewal project and the territory therein.

Section 7. This ordinance shall be in effect after its final passage, approval and publication as provided by law.

Passed December 2, 1996

Signed December 2, 1996

ARTHUR DAVIS, Mayor

I, Donna V. Boetel-Baker, City Clerk of the City of Des Moines, Iowa, hereby certify that the above and foregoing is a true copy of an ordinance (Roll Call No. 96-4019), passed by the city council and said city at a meeting held December 2, 1996, signed by the mayor December 2, 1996, and published as provided by law in the Business Record on December 9, 1996. Authorized by Publication Order No. 5210.

DONNA V. BOETEL-BAKER, City Clerk

ORDINANCE NO. 13,399

AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE AIRPORT COMMERCE PARK SOUTH URBAN RENEWAL PROJECT AREA IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO A SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BONDS ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL PROJECT.

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice, consultation and hearing as prescribed by law and pursuant to Resolution and Roll Call No. 96-4028 passed and approved December 2, 1996, adopted an Urban Renewal Plan for an area known as the Original Project Area of the Airport Commerce Park South Urban Renewal Project, which Original Project Area consists of the following lots and parcels:

Airport Commerce Park Plat 1, an Official Plat, all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

AND, the North 760 feet of the Southwest Quarter (SW 1/4) of Section 32, Township 78 North, Range 24 West of the 5th P.M., except the East 30 feet thereof, all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

AND, beginning at the East Quarter (1/4) Corner of Section 31, Township 78 North, Range 24 West of the 5th P.M.; thence North 340.26 feet; thence West 337.95 feet; thence Southwest 325.51 feet; thence Northwest 435 feet; thence Southwesterly 512.54 feet; thence South 887 feet; thence East 1316.5 feet; thence North 546.74 feet to the point of beginning, all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

AND, the entire Fleur Drive right-of-way from the North right-of-way line of Army Post Road extending South to a line 3,400 feet South of the South right-of-way line of Army Post Road.

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice, consultation and hearing as prescribed by law and pursuant to Resolution passed and approved June 18, 2001, adopted an amendment to the Urban Renewal Plan for the Airport Commerce Park South Urban Renewal Project adjusting the boundaries of the project area to: i) add an area south of the western portion of the Original Project Area; ii) add a small island of land bounded by the Original Project Area and the south right-of-way line of Relocated Army Post Road; iii) delete a portion of the Original Project Area located north of the south right-of-way line of Relocated Army Post Road; and iv) restate and conform the description to the surveyed boundaries of Airport Commerce Park South, an Official Plat, (the area as so amended is herein referred to as the "Amended Project Area"); and,

WHEREAS, the continuing need to develop the Airport Commerce Park South Urban Renewal Project is such as to require application of the incremental tax resources of the Amended Project Area; and,

WHEREAS, indebtedness has been incurred by the City of Des Moines, and additional indebtedness is anticipated to be incurred in the future to finance said Urban Renewal Project; and,

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the continuation of the division of revenue from taxation in the Amended Project Area of the Airport Commerce Park South Urban Renewal Project, as described herein in accordance with the provisions of Section 403.19 of the 2001 Code of Iowa, as amended; NOW THEREFORE,

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA:

Section 1. That the taxes levied on the taxable property in the Amended Project Area of the Airport Commerce Park South Urban Renewal Project, legally described as follows:

Airport Commerce Park Plat 1, an Official Plat, excluding Lots 4, 5 and Outlot X, all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

AND, Airport Commerce Park South, an Official Plat, all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

AND, the entire Fleur Drive right-of-way from the North right-of-way line of Army Post Road extended South to a line 3,400 feet South of the South right-of-way line of Army Post Road.

by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District, and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. For purposes of this Ordinance, "Base Period Taxes" are that portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in the Amended Project Area upon the total sum of the "Base Valuations" of the sub-areas within the Amended Project Area. The "Base Valuations" are the assessed values of the taxable property in each sub-area of the Amended Project Area as shown on the assessment rolls following:

With respect to the portion of the Amended Project Area contained within the Original Project Area, the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certified to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to Ordinance No. 13,399, being the assessment roll for January 1, 1995;

With respect to the portion of the Amended Project Area outside the Original Project Area, the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certified to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to Ordinance No. 13,399, as amended by this Ordinance;

The "Base Period Taxes" for each of the sub-areas within the Amended Project Area of the Airport Commerce Park South Urban Renewal Project shall be computed using the total assessed value of the taxable property within each such sub-area as shown on the assessment rolls applicable to each sub-area as described above. "Base Period Taxes" shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by and for said taxing district into which all other property taxes are paid.

Section 3. For purposes of this Ordinance, "Incremental Taxes" are that portion of the taxes each year in excess of the "Base Period Taxes" for the Amended Project Area of the Airport Commerce Park South Urban Renewal Project, determined as provided in Section 2 of this Ordinance. "Incremental Taxes" shall be allocated to and when collected be paid into a special fund of the City of Des Moines, Iowa, hereafter to be maintained to pay the principal of and interest on loans, monies advanced to, and indebtedness,

whether funded, refunded, assumed or otherwise, including bonds issued under authority of Sections 403.9 and 403.12 of the 2001 Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance, in whole or in part, urban renewal project activities undertaken within the Amended Project Area of the Airport Commerce Park South Urban Renewal Project, except that taxes for the payment of bonds and interest of each taxing district levying taxes in the Amended Project Area shall be collected against all taxable property within the said Amended Project Area without any limitations as hereinabove provided.

Section 4. At such time as the loans, monies advanced and bonds of the City of Des Moines and interest thereon, hereinabove referred to, have been paid, all monies thereafter received from taxes upon the taxable property in the Amended Project Area of the Airport Commerce Park South Urban Renewal Project shall be paid into the funds for the respective taxing districts in the same manner as "Base Period Taxes".

Section 5. All ordinances or parts of ordinances in conflict with the provisions of this Ordinance are hereby repealed. The provisions of this Ordinance are intended and shall be construed so as to continue the division of taxes from property within each of the sub-areas of the Amended Project Area of the Airport Commerce Park South Urban Renewal Project as described above and to fully implement the provisions of Section 403.19 of the 2001 Code of Iowa, as amended, with respect thereto. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the 2001 Code of Iowa, as amended, with reference to the Amended Project Area and the territory contained therein.

Section 6. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

Passed December 2, 1996

Signed December 2, 1996

ARTHUR DAVIS, Mayor

I, Donna V. Boetel-Baker, City Clerk of the City of Des Moines, Iowa, hereby certify that the above and foregoing is a true copy of an ordinance (Roll Call No. 96-4030), passed by the city council and said city at a meeting held December 2, 1996, signed by the mayor December 2, 1996, and published as provided by law in the Business Record on December 9, 1996. Authorized by Publication Order No. 5211.

DONNA V. BOETEL-BAKER, City Clerk

ORDINANCE NO. 13,400

AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE AIRPORT BUSINESS PARK URBAN RENEWAL PROJECT AREA IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO A SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BONDS ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL PROJECT.

WHEREAS, the city council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to resolution passed and approved December 2, 1996, adopted an urban renewal plan for an area known as the Airport Business Park Urban Renewal Project Area, which project area includes the following lots and parcels:

The east ½ of the southwest ¼ of Section 31, Township 78 North, Range 24 West of the 5th P.M., all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

The west ½ of the southwest ¼ of Section 31, Township 78 North, Range 24 West of the 5th P.M., all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

WHEREAS, expenditures and indebtedness are anticipated to be incurred by the City of Des Moines, Iowa, in the future to finance said urban renewal project; and

WHEREAS, the city council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the urban renewal area, as above described in accordance with the provisions of I.C. § 403.19 of the Code of Iowa, 1995, as amended.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA:

Section 1. That the taxes levied on the taxable property in the urban renewal project area known as the Airport Business Park Urban Renewal Project Area, legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District, and all other taxing districts from and after the effective date of this ordinance shall be divided as hereinafter in this ordinance provided.

Section 2. That portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said urban renewal area upon the total sum of the assessed value of the taxable property in said urban renewal area as shown on the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of property tax revenue shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by or for said taxing district into which all other property taxes are paid.

Section 3. That portion of the taxes each year in excess of the base period taxes determined as provided in section 2 of this ordinance shall be allocated to and when collected be paid into a special tax increment fund hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of I.C. §§ 403.9 and 403.12 of the 1995 Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance in whole or in part the Airport Business Park Urban Renewal Project, except that taxes for the payment of bonds and interest of each taxing district levying taxes on said urban renewal project area shall be collected against all taxable property within the project area without any limitation as hereinabove provided.

Section 4. All taxes levied and collected upon the taxable property in said Airport Business Park Urban Renewal Project Area shall be paid into the funds of the taxing districts as taxes by or for said taxing districts in the same manner as all other property taxes unless or until the total assessed valuation of the taxable property in said urban renewal project area shall exceed the total assessed value of the taxable property in said project area as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to this ordinance.

Section 5. At such time as the monies advances, bonds and interest thereon and indebtedness of the City of Des Moines hereinabove in section 3 referred to have been paid, all monies thereafter received from taxes upon the taxable property in the urban renewal project area known as the Airport Business Park Urban Renewal Project Area shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property.

Section 6. The provisions of this ordinance are intended and shall be construed so as to fully implement the provisions of I.C. § 403.19 of the 1995 Code of Iowa, as amended, with respect to the division of taxes from property within the urban renewal project area as described above. In the event that any provision of this ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this ordinance which shall at all times be construed to

fully invoke the provisions of I.C. § 403.19 with reference to said urban renewal project and the territory therein.

Section 7. This ordinance shall be in effect after its final passage, approval and publication as provided by law.

Passed December 2, 1996

Signed December 2, 1996

ARTHUR DAVIS, Mayor

I, Donna V. Boetel-Baker, City Clerk of the City of Des Moines, Iowa, hereby certify that the above and foregoing is a true copy of an ordinance (Roll Call No. 96-4038), passed by the city council and said city at a meeting held December 2, 1996, signed by the mayor December 2, 1996, and published as provided by law in the Business Record on December 9, 1996. Authorized by Publication Order No. 5212.

DONNA V. BOETEL-BAKER, City Clerk

ORDINANCE NO. 13,575

AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE SE AGRIBUSINESS PARK URBAN RENEWAL AREA IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO A SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BONDS ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL REDEVELOPMENT PROJECT.

WHEREAS, the city council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to resolution passed and approved October 20, 1997, adopted an urban renewal plan for an area known as the SE AgriBusiness Park Urban Renewal Area, which project area includes the lots and parcels within the boundaries, as follows:

> Beginning at the intersection of the westerly extension of the north right-of-way line of Maury Street and the west line of the northwest ¼ of Section 11, Township 78 North, Range 24 West of the 5th P.M.; thence east along the westerly extension and along the north right-of-way line of Maury Street to the west right-of-way line of Southeast Eighteenth Street; thence north along the west right-of-way line of Southeast Eighteenth Street and East Eighteenth Street and its northerly extension to the north right-of-way line of Dean Avenue; thence east along the easterly extension of the north right-of-way line of Dean Avenue and along the north right-of-way line of Dean Avenue and its easterly extension to the east right-of-way line of East Thirtieth Street; thence south along the east right-of-way line of East Thirtieth Street and its southerly extension and the east right-of-way line of Southeast Thirtieth Street, to the north right-of-way line of Scott Avenue; thence east along the north right-of-way line of Scott Avenue and the easterly extension of the north right-of-way line of Scott Avenue to the east corporate boundary of the City of Des Moines, Polk County, Iowa; thence south along the east corporate boundary of the City of Des Moines to the thread of the Des Moines River; thence westerly and northwesterly along the thread of the Des Moines River to the intersection of the west line of the southwest ¼ of Section 11, Township 78 North, Range 24 West of the 5th P.M.; thence north along the west line of said Section 11 to the point of beginning, all now included in and forming a part of the City of Des Moines, Polk County, Iowa. Approximate 3,152.6 acres.

WHEREAS, expenditures and indebtedness are anticipated to be incurred by the City of Des Moines, Iowa, in the future to finance said urban renewal project; and

WHEREAS, the city council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the urban renewal area,

as above described in accordance with the provisions of I.C. § 403.19 of the Code of Iowa, 1997 as amended.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA:

Section 1. That the taxes levied on the taxable property in the urban renewal project area known as the SE AgriBusiness Park Urban Renewal Area, legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District, and all other taxing districts from and after the effective date of this ordinance shall be divided as hereinafter in this ordinance provided.

Section 2. That portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said urban renewal area upon the total sum of the assessed value of the taxable property in said urban renewal area as shown on the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of property tax revenue shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by or for said taxing district into which all other property taxes are paid.

Section 3. That portion of the taxes each year in excess of the base period taxes determined as provided in section 2 of this ordinance shall be allocated to and when collected be paid into a special tax increment fund hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of I.C. §§ 403.9 and 403.12 of the 1997 Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance in whole or in part the SE AgriBusiness Park Urban Renewal Project, except that taxes for the payment of bonds and interest of each taxing district levying taxes on said urban renewal area shall be collected against all taxable property within the project area without any limitation as hereinabove provided.

Section 4. All taxes levied and collected upon the taxable property in said SE AgriBusiness Park Urban Renewal Area shall be paid into the funds of the taxing districts as taxes by or for said taxing districts in the same manner as all other property taxes unless or until the total assessed valuation of the taxable property in said urban renewal area shall exceed the total assessed value of the taxable property in said urban renewal area as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to this ordinance.

Section 5. At such time as the monies, advances, bonds and interest thereon and indebtedness of the City of Des Moines hereinabove in section 3 referred to have been paid, all monies thereafter received from taxes upon the taxable property in the urban renewal area known as the SE AgriBusiness Park Urban Renewal Area shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property.

Section 6. The provisions of this ordinance are intended and shall be construed so as to fully implement the provisions of I.C. § 403.19 of the 1997 Code of Iowa, as amended, with respect to the division of taxes from property within the urban renewal project area as described above. In the event that any provision of this ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this ordinance which shall at all times be construed to fully invoke the provisions of I.C. § 403.19 with reference to said urban renewal project and the territory therein.

Section 7. This ordinance shall be in effect after its final passage and publication as provided by law.

Passed February 16, 1998

Signed February 16, 1998

ORDINANCE NO. 13,810

AN ORDINANCE AMENDING ORDINANCE NO. 8666, AS AMENDED BY ORDINANCE NOS. 8667 AND 9282, ENTITLED:

"AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL REAL PROPERTY LOCATED WITHIN THE CAPITOL CENTER DEVELOPMENT AREA URBAN RENEWAL PROJECT IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO A SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BOND ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL REDEVELOPMENT PROJECT"

AND ALSO AMENDING ORDINANCE NO. 10,404, AS AMENDED BY ORDINANCE NOS. 11,971, 12,054, 12,070 AND 13,565, ENTITLED:

"AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE CAPITOL-CENTER DEVELOPMENT AREA II URBAN RENEWAL PROJECT IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO THE SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BONDS ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL PROJECT"

AND ALSO AMENDING ORDINANCE NO. 11,419, AS AMENDED BY ORDINANCE NOS. 11,972, 12,054, 12,070 AND 13,565, ENTITLED:

"AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE RIVERPOINT URBAN RENEWAL PROJECT IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO THE SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BOND ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL PROJECT"

TO CONSOLIDATE THE AREAS SUBJECT TO THE DIVISION OF REVENUE FROM TAXATION PURSUANT TO SUCH ORDINANCES.

WHEREAS, the City Council of the City of Des Moines, Iowa, has heretofore, in Ordinance No. 8666, provided for the division of revenue from taxes within the Capitol-Center Development Area Urban Renewal Project Area (hereinafter referred to as the "Capitol-Center Development Area I"), pursuant to Section 403.19 of the 1973 Code of Iowa, as amended; and

WHEREAS, by Ordinance No. 8667 the City Council amended Ordinance No. 8666 (regarding the Capitol-Center Development Area Urban Renewal Project) to delete therefrom reference to a specific dollar figure of assessed value of taxable property; and

WHEREAS, by Ordinance No. 9282 the City Council amended Ordinance No. 8666, as amended by Ordinance No. 8667 (regarding the Capitol-Center Development Area Urban Renewal Project) to provide that said ordinance remain in effect until certain obligations of the City have been paid or secured; and

WHEREAS, the City Council of the City of Des Moines, Iowa, has heretofore, in Ordinance No. 10,404, provided for the division of revenue from taxes within the Capitol-Center Development Area II Urban Renewal Project Area (hereinafter referred to as the "Capitol-Center Development Area II - Area 'A'"), pursuant to Section 403.19 of the 1983 Code of Iowa, as amended; and

WHEREAS, an additional area (hereinafter referred to as "Capitol-Center Development Area II - Area 'B'") was added to the Capitol-Center Development Area II Urban Renewal Project Area and by Ordinance No. 11,971, the City Council amended Ordinance No. 10,404 to expand the area subject to the division of revenue from taxes under Ordinance No. 10,404 to include the additional area; and

WHEREAS, the City Council of the City of Des Moines, Iowa, has heretofore, in Ordinance No. 11,419, provided for the division of revenue from taxes within the Riverpoint Urban Renewal Project Area (hereinafter referred to as the "Riverpoint - Area 'A'"), pursuant to Section 403.19 of the 1989 Code of Iowa, as amended; and

WHEREAS, an additional area (hereinafter referred to as "Riverpoint - Area 'B'") was added to the Riverpoint Urban Renewal Project Area and by Ordinance No. 11,972 the City Council amended Ordinance No. 11,419 to expand the area subject to the division of revenue from taxes under Ordinance No. 11,419 to include the additional area; and

WHEREAS, by amendments to the Urban Renewal Plans for the Capitol-Center Development Area II Urban Renewal Project and the Riverpoint Urban Renewal Project, after notice and public hearing as prescribed by law, said Urban Renewal Plans were amended to provide for the consolidation and expansion of the two urban renewal projects to include additional areas (hereinafter referred to as "Capitol-Center Development Area II - Areas 'C' and 'D'", and "Riverpoint Area 'C'") in accordance with the Urban Renewal Plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project; and

WHEREAS, by Ordinance No. 12,054 the City Council amended Ordinance No. 10,404, as amended by Ordinance No. 11,971 (regarding the Capitol-Center Development Area II Urban Renewal Project) and also amended Ordinance No. 11,419 as amended by Ordinance No. 11,972 (regarding the Riverpoint Urban Renewal Project) to consolidate and expand the area subject to the division of revenue from taxes to be in accordance with the Urban Renewal Plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project; and,

WHEREAS, by the First Amendment to the Urban Renewal Plan for the Riverpoint Capitol-Center Development Area, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to add an additional area (hereinafter referred to as "Capitol-Center III - Area 'A'"); and

WHEREAS, by Ordinance No. 12,070 the City Council amended Ordinance No. 10,404, as amended by Ordinance Nos. 11,971 and 12,054 (regarding the Capitol-Center Development Area II Urban Renewal Project) and also amended Ordinance No. 11,419, as amended by Ordinance Nos. 11,972 and 12,054 (regarding the Riverpoint Urban Renewal Project) to expand the area subject to the division of revenue from taxes to be in accordance with the Urban Renewal Plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project; and,

WHEREAS, by the Fifth Amendment to the Urban Renewal Plan for the Riverpoint Capitol-Center Development Area, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to add an additional area (hereinafter referred to as the "Sixth Avenue Area"); and

WHEREAS, by Ordinance No. 13,565 the City Council amended Ordinance No. 10,404, as amended by Ordinance Nos. 11,971, 12,054 and 12,070 (regarding the Capitol-Center Development Area II Urban Renewal Project) and also amended Ordinance No. 11,419, as amended by Ordinance Nos. 11,972, 12,054, and 12,070 (regarding the Riverpoint Urban Renewal Project) to expand the area subject to the division of revenue from taxes to be in accordance with the amended

Urban Renewal Plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project; and,

WHEREAS, by amendments to the Urban Renewal Plans for the Riverpoint Capitol-Center Development Area Urban Renewal Project and the Capitol-Center Development Area Urban Renewal Project, after notice and public hearing as prescribed by law, said Urban Renewal Plans were amended to provide for the consolidation of the two urban renewal projects in accordance with the Urban Renewal Plan for the combined urban renewal projects to be known as the Metro Center Urban Renewal Project; and

WHEREAS, the continuing needs of redevelopment of the consolidated Metro Center Urban Renewal Project are such as to require application of the incremental tax resources of the consolidated urban renewal project; and

WHEREAS, the following enactment is necessary to accomplish the objectives described above and in the Urban Renewal Plan for the Metro Center Urban Renewal Project; NOW, THEREFORE,

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA AS FOLLOWS:

Section 1. That Ordinance Nos. 8666, 8667, 9282, 10,404, 11,971, 11,419, 11,972, 12,054, 12,070 and 13,565 are hereby amended to read as follows:

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved August 2, 1973, adopted an Urban Renewal Plan for an area known as the Capitol-Center Development Area Urban Renewal Project, which original project area (hereinafter designated Capitol-Center Development Area I) includes the lots and parcels within the boundaries as follows:

CAPITOL-CENTER DEVELOPMENT AREA I

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the northerly right-of-way line of Grand Avenue and the westerly right-of-way line of Eighth Street, thence south along the westerly right-of-way line of Eighth Street to its intersection with the centerline of the Des Moines Union Railroad mainline; thence east along the centerline of the Des Moines Union Railroad mainline to its intersection with the easterly right-of-way line of East Seventh Street; thence north along the easterly right-of-way line of East Seventh Street to its intersection with the southerly right-of-way line of the alley south of Locust Street; thence east along the southerly right-of-way line of the alley south of Locust Street to its intersection with the westerly property line of the State Capitol grounds; thence north along the westerly property line of the State Capitol grounds to its intersection with the southerly right-of-way line of Locust Street; thence west along the southerly right-of-way line of Locust Street to its intersection with the easterly right-of-way line of Pennsylvania Avenue; thence north along the easterly right-of-way line of Pennsylvania Avenue to its intersection with the southerly right-of-way line of Des Moines Street; thence west along the southerly right-of-way line of Des Moines Street to its intersection with the westerly right-of-way line of East First Street; thence north along the westerly right-of-way line of East First Street to its intersection with the southerly boundary line of the River Hills Urban Renewal Project; thence west and south along the southerly boundary line of the River Hills Urban Renewal Project to its intersection with the northerly right-of-way line of Grand Avenue; thence west along the northerly right-of-way line of Grand Avenue to its intersection with the westerly right-of-way line of Eighth Street, which is the point of beginning.

and

WHEREAS, Capitol Center Development Area I may also be described as follows:

Capitol-Center Development Area I
(alternate description)

Beginning at the intersection of the northerly right-of-way line of Grand Avenue and the westerly right-of-way line of Eighth Street, thence southerly along said westerly right-of-

way line of Eighth Street to the center line of the former Des Moines Union Railroad, now the Norfolk & Southern Railroad; thence easterly along said center line to the easterly right-of-way line of East Seventh Street; thence northerly along said easterly right-of-way line to the southerly right-of-way line of the 10-foot wide east-west alley South-East Locust Street; thence easterly along said southerly line to the westerly property line of the State Capitol grounds, also being the easterly line of the north-south alley in Block H, Griffith's Addition to East Fort Des Moines, an official plat; thence northerly along said easterly line to the southerly right-of-way line of East Locust Street; thence westerly along said southerly right-of-way line to the easterly right of way line of Pennsylvania Avenue; thence northerly along said easterly line to the southerly right-of-way line of Des Moines Street; thence westerly along said southerly line to the westerly right-of-way line of East First Street; thence northerly along said westerly line 190 feet; thence west along a line perpendicular to the east line of East First Street to the west property line of the Armory; thence south along said west property line to the south line of said Des Moines Street extended; thence west along said south line extended to the east bank of the Des Moines River; thence south along said east bank to the northerly right-of-way line of East Grand Avenue, thence westerly along said northerly line to the westerly right-of-way line of Eighth Street and the point of beginning.

and

WHEREAS, by Ordinance No. 8667 the City Council amended Ordinance No. 8666 (regarding the Capitol-Center Development Area Urban Renewal Project) to delete therefrom reference to a specific dollar figure of assessed value of taxable property; and

WHEREAS, by Ordinance No. 9282 the City Council amended Ordinance No. 8666, as amended by Ordinance No. 8667 (regarding the Capitol-Center Development Area Urban Renewal Project) to provide that said ordinance remain in effect until certain obligations of the City have been paid or secured; and

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved December 19, 1983, adopted an Urban Renewal Plan for an area known as Capitol-Center Development Area II Urban Renewal Project, which original project area (herein designated as "Capitol-Center Development Area II - Area 'A'") includes the lots and parcels within the boundaries as follows:

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "A"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the northerly right-of-way line of Grand Avenue and the easterly right-of-way line of Second Avenue, thence west along the northerly right-of-way line of Grand Avenue to its intersection with the westerly right-of-way line of Eighth Street, thence south along the westerly right-of-way line of Eighth Street to its intersection within the center line of the old Rock Island Railroad mainline, thence west along the center line of the old Rock Island Railroad mainline to its intersection with the easterly right-of-way line of Eleventh Street, thence north along the easterly right-of-way line of Eleventh Street to the point of intersection with the northerly right-of-way line of High Street, thence east from said point along the northerly right-of-way line of High Street to the intersection with the westerly right-of-way line of Tenth Street, thence north along the westerly right-of-way line of Tenth Street to the intersection of the southerly right-of-way line of Woodland Avenue, thence east along the projection of the southerly right-of-way line of Woodland Avenue to the point of intersection with the easterly right-of-way line of Tenth Street, thence north from said point along the easterly right-of-way line of Tenth Street to the intersection of the southerly right-of-way line of Pleasant Street, thence east along the southerly right-of-way line of Pleasant Street to the point of intersection with the projection of the west line of Lot 12, Methodist Plat No. 1, thence northerly along said projected west line of said Lot

12 to the northerly right-of-way line of Pleasant Street, thence east along the northerly right-of-way line of Pleasant Street to the intersection of the westerly right-of-way line of Ninth Street, thence north along the westerly right-of-way line of Ninth Street to its intersection with a point twenty (20) feet south of the north line of said Lot 12 of Methodist Plat No. 1, thence east along a projection of a line twenty (20) feet south of and parallel to the north line of said Lot 12 to the point of intersection of the easterly right-of-way line of Ninth Street, thence north along the easterly right-of-way line of Ninth Street to the intersection of the northerly right-of-way line of Keosauqua Way, thence northerly and westerly along said northerly right-of-way line of Keosauqua Way to the intersection with the southerly right-of-way line of Crocker Street, thence east along the southerly right-of-way line of Crocker Street to the intersection of the easterly right-of-way line of Ninth Street, thence north along the easterly right-of-way line of Ninth Street to the intersection of the northerly right-of-way line of School Street, thence east along the northerly right-of-way line of School Street to the intersection of the easterly right-of-way line of Sixth Avenue, thence south along the easterly right-of-way line of Sixth Avenue to the intersection with the northerly right-of-way line of Crocker Street, thence east along the northerly right-of-way line of Crocker Street to the intersection of the westerly right-of-way line of Fifth Avenue, thence north along the westerly right-of-way line of Fifth Avenue to the point of intersection of the westerly projection of the north line of Lot 1, Block F, River Hills Plat 1, thence east along the projected north line of said Lot 1 to the intersection of the easterly right-of-way line of Third Street, thence south along the easterly right-of-way line of Third Street to the intersection of the northerly right-of-way line of Keosauqua Way, thence east along the northerly right-of-way line of Keosauqua Way to the point of intersection with the easterly right-of-way line of Second Avenue, thence south from said point along the easterly right-of-way line of Second Avenue to the point of beginning.

and

WHEREAS, by Amendment to said Urban Renewal Plan, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted for an extended area consisting of the Capitol-Center Development Area II - Area "A" combined with the Capitol-Center Development Area II - Area "B", which includes the lots and parcels within the boundaries as follows:

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "B"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the north right-of-way line of School Street and the east right-of-way line of 9th Street; thence southerly along the northerly extension of and the east right-of-way line of 9th Street and the southerly extension of said right-of-way line to the south right-of-way line of Crocker Street; thence westerly along the westerly extension and the south right-of-way line of Crocker Street to the east right-of-way line of Keosauqua Way; thence northwesterly along said east right-of-way line of Keosauqua Way to the east right-of-way line of the Keosauqua/I-235 Intersection; thence north along said east right-of-way line of the Keosauqua/I-235 Intersection; thence east along the south right-of-way line of the Keosauqua/I-235 Intersection to the west right-of-way line of 12th Place; thence north along said west right-of-way line and the northerly extension of the west right-of-way line of 12th Place to the north right-of-way line of School Street; thence east along the north right-of-way line of School Street to the point of beginning.

and

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved December 18, 1989, adopted an Urban Renewal Plan for an area known as Riverpoint Urban Renewal Project, which original project area (hereinafter designated Riverpoint - Area "A") includes the lots and parcels within the boundaries as follows:

RIVERPOINT - AREA "A"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the southerly right-of-way line of East Court Avenue and the easterly right-of-way line of East 7th Street; thence east along the southerly right-of-way line of East Court Avenue to its intersection with the east right-of-way line of vacated East 8th Street; thence southerly along the east right-of-way of vacated 8th Street to a point 47.0 feet south of the south right-of-way line of East Court Avenue; thence southeasterly along a straight line to the northwest corner of Lot 1, Block 22, official plat of Lots 3 through 8, Town of Des Moines, an official plat; thence southeasterly along a straight line to a point on the east right-of-way line of vacated East 11th Street, said point being 67.35 feet south of the northwest corner of Lot 3, Block 23, official plat of Lots 3 through 8, Town of Des Moines, an official plat; thence easterly along a straight line to a point on the east lot line and 3.0 feet north of the southwest corner of Lot 8, of said Block 23; thence southerly to the southwest corner of said Lot 8; thence easterly to the southeast corner of said Lot 8; thence southeasterly along a straight line to the northwest corner of Lot 9, of the official plat of Lot 1, of the official plat of the east ½ of the southeast ¼ of Section 3, Township 78 North, Range 24 West of the 5th P.M. the south 236.0 feet of the west ½ of Lot 31, Brooks and Company's Addition, an official plat; thence southerly to the southwest corner of said Lot 9; thence easterly along the south lot lines of Lots 9, 10, 30, 31 and 55 of said official plat of said Lot 1 to its intersection with the east line of the southeast ¼ of said Section 3; thence southerly along said east line of said Section 3 and along the east line of the northeast ¼ of Section 10, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the northeasterly projection of the south right-of-way line of Scott Street; thence southwesterly along said projected south right-of-way line of Scott Street and along the south right-of-way line of Scott Street to its intersection with the east bank of the Des Moines River; thence northwesterly along the east bank of the Des Moines River to the point of its intersection with the southerly side of the Scott Street Bridge; thence southwesterly along the southerly side of the Scott Street Bridge to a point of its intersection with the west bank of the Des Moines River; thence southeasterly along said west bank of the Des Moines River to the point of its intersection with the northeasterly projection of the southeasterly right-of-way line of Southeast 1st Street; thence southwesterly along said projected southeasterly right-of-way line of Southeast 1st Street and along the southeasterly right-of-way line of Southeast 1st Street to a point of its intersection with the center line of the Chicago and Great Western Railroad right-of-way; thence southwesterly along said center line of the Chicago and Great Western Railroad right-of-way to a point of its intersection with the easterly right-of-way line of Southwest 1st Street; thence southwesterly along the easterly right-of-way line of Southwest 1st Street to its intersection with the southerly right-of-way line of Indianola Avenue; thence northwesterly and westerly along the south right-of-way line of Indianola Avenue and along the southerly right-of-way line of Clifton Avenue, to its intersection with the southerly projection of the westerly right-of-way line of Southwest 7th Street; thence northwesterly along said southerly projected westerly right-of-way line of Southwest 7th Street and the westerly right-of-way line of Southwest 7th Street to its intersection with the southerly bank of the Raccoon River; thence southwesterly and westerly along said south bank of the Raccoon River to its intersection with the south line of Government Lot 11, West of the Raccoon River of Section 8, Township 78 North, Range 24 West of the 5th P.M. an official plat; thence westerly along south line of said Government Lot 11 and the westerly projection of the south line of said Government Lot 11 to a point 33 feet west of the center line of said Section 8; thence northerly and 33.0 feet west of and parallel with the center line of said Section 8 to its intersection with the south line of Lot 1, of the official plat of the northwest ¼ of said Section 8; thence southeasterly along the south line of said Lot 1, 75.0 feet West of the east line of said Lot 1; thence northerly and

75.0 feet west of and parallel with the east line of said Lot 1, 225.0 feet south of the north line of said Lot 1; thence westerly 18.0 feet and 225.0 feet south of the north line of said Lot 1; thence northerly 225.0 feet and 93.0 feet west of the northeast corner of said Lot 1 to the north line of said Lot 1 and the south right-of-way line of Grand Avenue; thence northwesterly to the north right-of-way line of Grand Avenue which is 40.0 feet north of and 100.0 feet west of the southeast corner of Lot 9, of the official plat of the southwest ¼ of Section 5, Township 78 North, Range 24 West of the 5th P.M., an official plat; thence northerly along a line 100.0 feet west of and parallel with the east line of said Lot 9 and along the northerly projection of said line to the north right-of-way line of Ingersoll Avenue; thence easterly along the north right-of-way line of Ingersoll Avenue and the easterly projected north right-of-way line of Ingersoll Avenue and its projections to its intersection with the northwesterly projection of the easterly right-of-way line of 16th Street; thence southeasterly along said northwesterly projected easterly right-of-way line of 16th Street and the easterly right-of-way line of 16th Street to its intersection with the north right-of-way line of Falcon Drive thence easterly along the north right-of-way line of Falcon Drive and its easterly projections to its intersection with the northwesterly projection of the east right-of-way line of 13th Street; thence southeasterly along said northwesterly projected east right-of-way line of 13th Street and the east right-of-way of 13th Street to its intersection with the south right-of-way line of Cherry Street; thence easterly along the south right-of-way line of Cherry Street and its projected south right-of-way line to its intersection with the east right-of-way line of 11th Street; thence southeasterly along the east right-of-way line of 11th Street to its intersection with the center line of the Iowa Interstate Railroad Mainline (formerly known as Rock Island Railroad); thence easterly along the center line of the Iowa Interstate Railroad Mainline (formerly known as Rock Island Railroad) to its intersection with the southerly projection of the westerly right-of-way line of 8th Street; thence northerly along the southerly projection of the westerly right-of-way line of 8th Street to the westerly right-of-way line of 8th Street to its intersection within the center line of the Des Moines Union Railroad Mainline; thence easterly along the center line of the Des Moines Union Railroad Mainline to its intersection with the easterly right-of-way line of East 7th Street; thence northerly along the easterly right-of-way line of East 7th Street to its intersection with the southerly right-of-way line of East Court Avenue, to the point of beginning.

and

WHEREAS, by Amendment to said Urban Renewal Plan, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted for an extended area consisting of Riverpoint - Area "A" combined with Riverpoint - Area "B", which includes the lots and parcels within the boundaries as follows:

RIVERPOINT - AREA "B"

That part of the City of Des Moines, Polk County, Iowa, described as follows:

Bounded on the north by the south right-of-way Line of East Scott Street, bounded on the east by the center line of Southeast 14th Street, bounded on the south and west by the right (south) bank of the Des Moines River.

and

WHEREAS, by Amendment to the Urban Renewal Plans for the Riverpoint Urban Renewal Project and the Capitol-Center Development Area II Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plans were amended and adopted to provide for the consolidation and expansion of the two Projects as set forth in the Urban Renewal Plan for the Riverpoint Capitol-Center Development Area Urban Renewal Plan; and

WHEREAS, the Riverpoint Capitol-Center Development Area Urban Renewal Area originally consisted of Capitol-Center Development Area II - Areas "A" and "B", combined with Riverpoint - Areas "A" and "B", all as described above, and expanded to include Capitol-Center Development Area II - Areas "C" and "D" and Riverpoint - Area "C", described as follows:

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "C"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the westerly right-of-way line of 3rd Street and the south line of Lot G. River Hills Plat 1, an official plat; thence easterly along the southerly line of said Lot G to its intersection with the right (west) bank of the Des Moines River; thence south along said right bank to its intersection with the northerly right-of-way line of Grand Avenue extended easterly; thence westerly along the northerly right-of-way of Grand Avenue to its intersection with the east right-of-way line of 2nd Avenue extended southerly; thence northerly along the east right-of-way line of 2nd Avenue to its intersection with the easterly extension of the north right-of-way line of Keosauqua Way; thence west along the easterly extension of the north right-of-way line of Keosauqua Way to the west right-of-way line of 3rd Street; thence north along the west right-of-way line of 3rd Street to the point of beginning.

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "D"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Block E, Lot M (except the east 80 feet thereof) and that part of Lot G South of the north lot line of said Lot M extended west, River Hills Plat 1, an official plat

RIVERPOINT - AREA "C"

That part of the City of Des Moines Polk County, Iowa, described as follows:

Beginning at the intersection of the southerly right-of-way line of the Chicago Great Western Railroad with the easterly right-of-way line of Southeast 1st Street; thence southerly along the easterly right-of-way line of Southeast 1st Street to the southerly right-of-way line of East Edison Street; thence easterly along the southerly right-of-way line of East Edison Street to the westerly right-of-way line of Southeast 2nd Street; thence southerly along the westerly right-of-way line of Southeast 2nd Street to the westerly extension of the southerly right-of-way line of the east/west alley lying south of and adjoining Lots 1 through 6, inclusive, Block 6, Clifton Heights, an official plat; thence easterly along the westerly extension of the southerly right-of-way line of said east/west alley to the westerly right-of-way line of Southeast 2nd Court; thence southerly along the westerly right-of-way line of Southeast 2nd Court and the westerly line of Lot 2, Millsap Subdivision, an official plat, to the north line of Lot 6, official plat of the west ½ of Section 10, Township 78 North, Range 24 West of the 5th P.M.; thence west along the north line of said Lot 6 extended westerly to the southerly right-of-way line of East Indianola Avenue; thence westerly along the southerly right-of-way line of East Indianola Avenue to its intersection with the southerly extension of the westerly right-of-way line of Southwest 1st Street; thence northerly along the westerly right-of-way line of Southwest 1st Street to the southerly right-of-way line of the Chicago Great Western Railroad; thence northeasterly along the southerly right-of-way line of the Chicago Great Western Railroad to the point of beginning.

and

WHEREAS, by the First Amendment to the Urban Renewal Plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted for an extended area consisting of the original Riverpoint Capitol-Center Development Area Urban Renewal Project Area combined with Capitol-Center III - Area "A", which includes the lots and parcels within the boundaries as follows:

CAPITOL CENTER III - AREA "A"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the northerly right-of-way line of Keosauqua Way with the east right-of-way line of 9th Street, extended north; thence south along the east right-of-way

line of 9th Street and its northerly extension to the south right-of-way line of Chestnut Street extended east; thence west along the extended south right-of-way line of Chestnut Street to the west right-of-way line of 9th Street; thence South along the west right-of-way line of 9th Street to the north right-of-way line of Pleasant Street; thence west along the north right-of-way line of Pleasant Street to the west lot line of Lot 12, Methodist Plat No. 1, an official plat; thence south along the extended west lot line of said Lot 12 to the center line of Pleasant Street; thence West along the center line of Pleasant Street to the east right-of-way line of 10th Street extended north; thence south along the east right-of-way line of 10th Street and its northerly extension to the south right-of-way line of Woodland Avenue extended east; thence West along the easterly extension of the south right-of-way line of Woodland Avenue to the west right-of-way line of 10th Street; thence south along the west right-of-way line of 10th Street to the north right-of-way line of High Street; thence west along the north right-of-way line of High Street to the east right-of-way line of 11th Street extended north; thence south along the east right-of-way line of 11th Street and its northerly extension to the south right-of-way line of Cherry Street; thence west along the south right-of-way line of Cherry Street and its easterly extension to the east right-of-way line of 13th Street extended south; thence north along the east right-of-way line of 13th Street and its southerly extension to the north right-of-way line of Falcon Drive extended east; thence west along the north right-of-way line of Falcon Drive and its easterly extension to the east right-of-way line of 16th Street; thence north along the east right-of-way line of 16th Street to the north right-of-way line of Ingersoll Avenue; thence west along the north right-of-way line of Ingersoll Avenue and its westerly extension to the center line of Martin Luther King Jr. Parkway (formerly Harding Road); thence north along the center line of Martin Luther King Jr. Parkway to the north right-of-way line of Woodland Avenue extended west; thence east along the north right-of-way line of Woodland Avenue and its westerly and easterly extensions to the center line of 16th Street; thence north along the center line of 16th Street to the north lot line of Lots 18 and 7 Sherman Place, an official plat extended west; thence east along the north lot line of said Lots 18 and 7 and their westerly extension to the west right-of-way line of 15th Street; thence north along the west right-of-way line of 15th Street to the north right-of-way line of Center Street extended west; thence east along the north right-of-way line of Center Street; and its westerly extension, said line also being the south lot line of Lots 1 and 2, Oakridge Plat No. 1, an official plat, and Lots 2, 3 and 6, Oakridge Plat No. 3, an official plat to the southeasterly corner of said Lot 6; thence north along the east lot line of said Lot 6 and the east lot line of Lot 5, in said Oakridge Plat No. 3 to the northeasterly corner of said Lot 5; thence northwesterly along the northerly line of said Oakridge Plat Nos. 1 and 3 to the northeasterly corner of Lot 6, in said Oakridge Plat No. 1, said point also being on the south right-of-way line of Interstate 235; thence in a straight line easterly to the northwest corner of Lot K, Grass Roots 1 an official plat 1; thence south along the west line of Lots K and N, Grass Roots I to the north lot line of Lot 7, Block 7, Grass Roots 1; thence west along the north lot line of said Lot 7 to the northwest corner of said Lot 7; thence south along the west lot line of said Lot 7 to the northerly right-of-way line of Keosauqua Way; thence southeasterly along the northerly right-of-way line of Keosauqua Way to the point of beginning.

and

WHEREAS, by the Fifth Amendment to the Urban Renewal Plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted for an extended area consisting of the original Riverpoint Capitol-Center Development Area Urban Renewal Project Area combined with Capitol-Center III - Area "A", and expanded to include the Sixth Avenue Area, which includes the lots and parcels within the boundaries as follows:

SIXTH AVENUE AREA

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the Northeast corner of Lot 1, Block 10, Polk County Homestead and Trust Co.'s Addition, an official plat, of the southwest ¼ of the northeast ¼ of Section 34, Township 79 North, Range 24 West of the 5th P.M., also being on the south right-of-way line of Franklin Avenue and the west right-of-way line of Seventh Street; thence east along the south right-of-way line of Franklin Avenue and its easterly extension to the east right-of-way line of Oakland Avenue, being the northwest corner of Lot 36, Oakland Park, an official plat; thence south along the east right-of-way line and its southerly extension to the south right-of-way line of College Avenue and being 5.0 feet west of the northwest corner of Lot 63, Bates Addition, an official plat; thence west along the south right-of-way line and its westerly extension to the east right-of-way line of Fifth Avenue, being the northwest corner of Lot 25 of said Bates Addition; thence south along the east right-of-way line of Fifth Avenue and its southerly extension to the south right-of-way line of University Avenue; thence northwesterly along the south right-of-way line of University Avenue to the east right-of-way line of Sixth Avenue; thence south along the east right-of-way line of Sixth Avenue and its southerly extension to the north right-of-way line of School Street; thence west along the easterly extension of the north right-of-way line and the north right-of-way line of School Street to the west right-of-way line of Seventh Street; thence north along the west right-of-way line of Seventh Street to a point being 505.37 feet south of the south right-of-way line of University Avenue also being the south line of the north 7.7 feet of Lot 5 of the official plat of the northeast ¼ of the northwest ¼ of Section 4, Township 78 North, Range 24 West of the 5th PM.; thence west along a straight line of the east right-of-way line of 8th Street also being 6.4 feet north of the south line of Lot 9 of the official plat of said Section 4; thence north along the east right-of-way line of 8th Street to the south right-of-way line of University Avenue, also being the northwest corner of Lot 48, North Park, an official plat; thence west along the south right-of-way line of University Avenue and it westerly extension to the west right-of-way line of 9th Street; thence north along the west right-of-way line of 9th Street and its northerly extension to the intersection of the westerly extension of the north right-of-way line of Indiana Avenue; thence east along the westerly extension of the north right-of-way line of Indiana Avenue to the southwest corner of Lot 10 of said North Park; thence continuing east along the north right-of-way line of Indiana Avenue and it easterly extension to the east right-of-way line 8th Street being the southwest corner of Lot 56 of said North Park; thence north along the east right-of-way line of 8th Street and its northerly extension to the north line of Forest Avenue, being the southeast corner of Lot 1, Butt's Subdivision, an official plat; thence east along the north right-of-way line of Forest Avenue and its easterly extension to the west right-of-way line of Seventh Street, being the southeast corner of Lot 46 of the official plat of Government Lot 3 of Section 34, Township 79 North Range 24 West of the 5th P.M.; thence north along the west right-of-way line of Seventh Street to the northeast corner of Lot 13, E.M. Kelsey's Subdivision, an official plat; thence northwesterly to the northwest corner of Seventh Street and Clark Street, being on the north right-of-way line of Clark Street and the west right-of-way line of Seventh Street; thence north along the west right-of-way line of Seventh Street and its northerly extension to the south right-of-way line of Franklin Avenue and the point of beginning, all now included in the forming a part of the City of Des Moines, Polk County, Iowa.

WHEREAS, by amendments to the Urban Renewal Plans for the Riverpoint Capitol-Center Development Area Urban Renewal Project and the Capitol-Center Development Area Urban Renewal Project, after notice and public hearing as prescribed by law, said Urban Renewal Plans were amended to provide for the consolidation of the two urban renewal projects in accordance with the Urban Renewal Plan for the combined urban renewal projects to be known as the Metro Center Urban Renewal Project; and

WHEREAS, the continuing needs of redevelopment of the consolidated Metro Center Urban Renewal Project are such as to require application of the incremental tax resources of the consolidated urban renewal project; and

WHEREAS, the Metro Center Urban Renewal Project Area consists of Capitol Center Development Area I combined with Capitol-Center Development Area II - Areas "A", "B", "C" and "D"; Riverpoint - Areas "A", "B" and "C"; Capitol-Center III - Area "A"; and Sixth Avenue Area, all as described above;

WHEREAS, indebtedness has been incurred by the City of Des Moines, Iowa, and additional indebtedness is anticipated to be incurred in the future to finance said Urban Renewal Project; and

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the continuation of the division of revenue from taxation in the Metro Center Urban Renewal Project Area, as above described in accordance with the provisions of Section 403.19 of the 1999 Code of Iowa, as amended; NOW, THEREFORE,

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA AS FOLLOWS:

Section 1. That the taxes levied on the taxable property in the Urban Renewal Project Area known as the Metro Center Urban Renewal Project Area, consisting of the sub-areas known as Capitol-Center Development Area I; Capitol-Center Development Area II - Areas "A", "B", "C", and "D"; Riverpoint - Areas "A", "B", and "C"; Capitol-Center III - Area "A"; and Sixth Avenue Area, each of which is legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. For purposes of this Ordinance, "Base Period Taxes" are that portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in the Metro Center Urban Renewal Project Area upon the total sum of the "Base Valuations" of each of the sub-areas within the Metro Center Urban Renewal Project Area. The "Base Valuations" are the assessed values of the taxable property in each sub-area of said Urban Renewal Project Area as shown on the assessment rolls following:

With respect to the Capital-Center Development Area I, the assessment roll last equalized prior to the effective date of Ordinance No. 8666, being the assessment roll for January 1, 1972;

With respect to the Capital-Center Development Area II-Area "A", the assessment roll last equalized prior to the effective date of Ordinance No. 10,404, being the assessment roll for January 1, 1982;

With respect to the Capital-Center Development Area II-Area "B", the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 11,971, amending Ordinance No. 10,404, being the assessment roll for January 1, 1992;

With respect to the Riverpoint-Area "A", the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 11,419, being the assessment roll for January 1, 1989;

With respect to the Riverpoint-Area "B", the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 11,972, amending Ordinance No. 11,419, being the assessment roll for January 1, 1992;

With respect to the Capital-Center Development Area II-Areas "C" and "D" and the Riverpoint-Area "C", the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 12,054, being the assessment roll for January 1, 1992;

With respect to the Capitol-Center III - Area "A", the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 12,070, being the assessment roll for January 1, 1992; and,

With respect to the Sixth Avenue Area, the assessment roll as of January 1 of the calendar

year preceding the effective date of Ordinance No. 13,565, being the assessment roll for January 1, 1997;

The "Base Period Taxes" for each of the sub-areas within the Metro Center Urban Renewal Project Area shall be computed using the total assessed value of the taxable property within each such sub-area as shown on the assessment rolls applicable to each sub-area as described above. "Base Period Taxes" shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by and for said taxing district into which all other property taxes are paid.

Section 3. For purposes of this Ordinance, "Incremental Taxes" are that portion of the taxes each year in excess of the "Base Period Taxes" for the combined Metro Center Urban Renewal Project Area, determined as provided in Section 2 of this Ordinance. "Incremental Taxes" shall be allocated to and when collected be paid into a special fund of the City of Des Moines, Iowa, hereafter to be maintained to pay the principal of and interest on loans, monies advanced to, and indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under authority of Sections 403.9 and 403.12 of the 1999 Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance, in whole or in part, urban renewal project activities undertaken within the Metro Center Urban Renewal Project Area, except that taxes for the payment of bonds and interest of each taxing district levying taxes in the Metro Center Urban Renewal Project Area shall be collected against all taxable property within the said Project Area without any limitations as hereinabove provided.

Section 4. At such time as the loans, monies advanced and bonds of the City of Des Moines and interest thereon, hereinabove referred to, have been paid, all monies thereafter received from taxes upon the taxable property in the Urban Renewal Project Area known as the Metro Center Urban Renewal Project Area shall be paid into the funds for the respective taxing districts in the same manner as "Base Period Taxes".

Section 5. All ordinances or parts of ordinances in conflict with the provisions of this Ordinance are hereby repealed. The provisions of this Ordinance are intended and shall be construed so as to continue the division of taxes from property within each of the sub-areas of the combined Metro Center Urban Renewal Project Area as described above and to fully implement the provisions of Section 403.19 of the 1999 Code of Iowa, as amended, with respect thereto. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the 1999 Code of Iowa, as amended, with reference to the combined Metro Center Urban Renewal Project Area and the territory contained therein.

Section 6. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

Section 2. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

APPROVED AS TO FORM:

Roger K. Brown
Assistant City Attorney

Passed April 17, 2000

Signed April 17, 2000

ORDINANCE NO. 13,976

AN ORDINANCE AMENDING ORDINANCE NO. 13,399, ENTITLED: AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE AIRPORT COMMERCE PARK SOUTH URBAN RENEWAL PROJECT AREA IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO A SPECIAL FUND FOR PAY-

MENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BONDS ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL PROJECT.

WHEREAS, the City of Des Moines, Iowa, has heretofore, in Ordinance No. 13,399, provided for the division of revenue from taxes within the Airport Commerce Park South Urban Renewal Project Area (hereinafter referred to as the "Original Project Area") pursuant to Section 403.19 of the Iowa Code (1999) as amended; and,

WHEREAS, by an amendment to the Urban Renewal Plan for the Airport Commerce Park South Urban Renewal Project, after notice, consultation and public hearing as required by law, the said urban renewal plan was amended to adjust the boundaries of the project area to: i) add an area south of the western portion of the Original Project Area; ii) add a small island of land bounded by the Original Project Area and the south right-of-way line of Relocated Army Post Road; iii) delete a portion of the Original Project Area located north of the south right-of-way line of Relocated Army Post Road; and iv) restate and conform the description to the surveyed boundaries of Airport Commerce Park South, an Official Plat (the area as so amended is hereinafter referred to as the "Amended Project Area"); and,

WHEREAS, the continuing need to develop the Airport Commerce Park South Urban Renewal Project is such as to require application of the incremental tax resources of the Amended Project Area; and,

WHEREAS, the following enactment is necessary to accomplish the objectives described above and in the Urban Renewal Plan for the Airport Commerce Park South Urban Renewal Project; NOW THEREFORE,

BE IT ORDAINED, by the City Council of the City of Des Moines, Iowa, as follows:

Section 1. That Ordinance No. 13,399 adopted on December 2, 1996, is hereby amended to read as follows:

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice, consultation and hearing as prescribed by law and pursuant to Resolution and Roll Call No. 96-4028 passed and approved December 2, 1996, adopted an Urban Renewal Plan for an area known as the Original Project Area of the Airport Commerce Park South Urban Renewal Project, which Original Project Area consists of the following lots and parcels:

Airport Commerce Park Plat 1, an Official Plat, all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

AND, the North 760 feet of the Southwest Quarter (SW 1/4) of Section 32, Township 78 North, Range 24 West of the 5th P.M., except the East 30 feet thereof, all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

AND, beginning at the East Quarter (1/4) Corner of Section 31, Township 78 North, Range 24 West of the 5th P.M.; thence North 340.26 feet; thence West 337.95 feet; thence Southwest 325.51 feet; thence Northwest 435 feet; thence Southwesterly 512.54 feet; thence South 887 feet; thence East 1316.5 feet; thence North 546.74 feet to the point of beginning, all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

AND, the entire Fleur Drive right-of-way from the North right-of-way line of Army Post Road extending South to a line 3,400 feet South of the South right-of-way line of Army Post Road.

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice, consultation and hearing as prescribed by law and pursuant to Resolution passed and approved June 18, 2001, adopted an amendment to the Urban Renewal Plan for the Airport Commerce Park South Urban Renewal Project adjusting the boundaries of the project area to: i) add an area south of the western portion of the Original Project Area; ii) add a small island of land bounded by the Original Project Area and the south right-of-way line of Relocated Army Post Road; iii) delete a portion of the Original Project Area located north of the south right-of-way

line of Relocated Army Post Road; and iv) restate and conform the description to the surveyed boundaries of Airport Commerce Park South, an Official Plat, (the area as so amended is herein referred to as the "Amended Project Area"); and,

WHEREAS, the continuing need to develop the Airport Commerce Park South Urban Renewal Project is such as to require application of the incremental tax resources of the Amended Project Area; and,

WHEREAS, indebtedness has been incurred by the City of Des Moines, and additional indebtedness is anticipated to be incurred in the future to finance said Urban Renewal Project; and,

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the continuation of the division of revenue from taxation in the Amended Project Area of the Airport Commerce Park South Urban Renewal Project, as described herein in accordance with the provisions of Section 403.19 of the 2001 Code of Iowa, as amended; NOW THEREFORE,

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA:

Section 1. That the taxes levied on the taxable property in the Amended Project Area of the Airport Commerce Park South Urban Renewal Project, legally described as follows:

Airport Commerce Park Plat 1, an Official Plat, excluding Lots 4, 5 and Outlot X, all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

AND, Airport Commerce Park South, an Official Plat, all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

AND, the entire Fleur Drive right-of-way from the North right-of-way line of Army Post Road extended South to a line 3,400 feet South of the South right-of-way line of Army Post Road.

by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District, and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. For purposes of this Ordinance, "Base Period Taxes" are that portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in the Amended Project Area upon the total sum of the "Base Valuations" of the sub-areas within the Amended Project Area. The "Base Valuations" are the assessed values of the taxable property in each sub-area of the Amended Project Area as shown on the assessment rolls following:

With respect to the portion of the Amended Project Area contained within the Original Project Area, the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certified to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to Ordinance No. 13,399, being the assessment roll for January 1, 1995;

With respect to the portion of the Amended Project Area outside the Original Project Area, the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certified to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to Ordinance No. 13,399, as amended by this Ordinance;

The "Base Period Taxes" for each of the sub-areas within the Amended Project Area of the Airport Commerce Park South Urban Renewal Project shall be computed using the total assessed value of the taxable property within each such sub-area as shown on the assessment rolls applicable to each sub-area as described above. "Base Period Taxes" shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by and for said taxing district into which all other property taxes are paid.

Section 3. For purposes of this Ordinance, "Incremental Taxes" are that portion of the

taxes each year in excess of the "Base Period Taxes" for the Amended Project Area of the Airport Commerce Park South Urban Renewal Project, determined as provided in Section 2 of this Ordinance. "Incremental Taxes" shall be allocated to and when collected be paid into a special fund of the City of Des Moines, Iowa, hereafter to be maintained to pay the principal of and interest on loans, monies advanced to, and indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under authority of Sections 403.9 and 403.12 of the 2001 Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance, in whole or in part, urban renewal project activities undertaken within the Amended Project Area of the Airport Commerce Park South Urban Renewal Project, except that taxes for the payment of bonds and interest of each taxing district levying taxes in the Amended Project Area shall be collected against all taxable property within the said Amended Project Area without any limitations as hereinabove provided.

Section 4. At such time as the loans, monies advanced and bonds of the City of Des Moines and interest thereon, hereinabove referred to, have been paid, all monies thereafter received from taxes upon the taxable property in the Amended Project Area of the Airport Commerce Park South Urban Renewal Project shall be paid into the funds for the respective taxing districts in the same manner as "Base Period Taxes".

Section 5. All ordinances or parts of ordinances in conflict with the provisions of this Ordinance are hereby repealed. The provisions of this Ordinance are intended and shall be construed so as to continue the division of taxes from property within each of the sub-areas of the Amended Project Area of the Airport Commerce Park South Urban Renewal Project as described above and to fully implement the provisions of Section 403.19 of the 2001 Code of Iowa, as amended, with respect thereto. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the 2001 Code of Iowa, as amended, with reference to the Amended Project Area and the territory contained therein.

Section 6. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

Section 2. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

APPROVED AS TO FORM:

Roger K. Brown
Assistant City Attorney

ORDINANCE NO. 13,998

AN ORDINANCE AMENDING ORDINANCE NO. 13,400, ENTITLED:

AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE AIRPORT BUSINESS PARK URBAN RENEWAL PROJECT AREA IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO A SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BONDS ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL PROJECT.

WHEREAS, the City of Des Moines, Iowa, has heretofore, in Ordinance No. 13,400, provided for the division of revenue from taxes within the Airport Business Park Urban Renewal Project Area (hereinafter referred to as the "Original Area") pursuant to Section 403.19 of the Iowa Code (1999) as amended; and,

WHEREAS, by an amendment to the Urban Renewal Plan for the Airport Business Park Ur-

ban Renewal Project, after notice, consultation and public hearing as required by law, the said urban renewal plan was amended to add additional land (herein referred to as the "Expansion Area") lying immediately east of the Original Area which is proposed to be developed in common with the Original Area; and,

WHEREAS, the continuing need to develop the Airport Business Park Urban Renewal Project is such as to require application of the incremental tax resources of the amended Project Area; and,

WHEREAS, the following enactment is necessary to accomplish the objectives described above and in the Urban Renewal Plan for the Airport Business Park Urban Renewal Project; NOW THEREFORE,

BE IT ORDAINED, by the City Council of the City of Des Moines, Iowa, as follows:

Section 1. That Ordinance No. 13,400 adopted on December 2, 1996, is hereby amended to read as follows:

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice, consultation and hearing as prescribed by law and pursuant to Resolution and Roll Call No. 96-4036 passed and approved December 2, 1996, adopted an Urban Renewal Plan for the Airport Business Park Urban Renewal Project upon the following described property (herein referred to as the "Original Area"):

The Southwest Quarter of Section 31, Township 78 North, Range 24 West of the 5th P.M., all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice, consultation and hearing as prescribed by law and pursuant to Resolution passed and approved September 24, 2001, adopted an amendment to the Urban Renewal Plan for the Airport Business Park Urban Renewal Project to add additional land (herein referred to as the "Expansion Area") lying immediately east of the Original Area and more specifically described as follows, which is proposed to be developed in common with the Original Area:

A parcel of land located in the East 1/2 of Section 31, Township 78 North, Range 24 West of the 5th P.M., in the City of Des Moines, Polk County, Iowa, that is more particularly described as follows:

Beginning at the South ¼ corner of said Section 31, said point also being the Southeast Corner of Outlot X, Airport Business Park Plat 1, an Official Plat; Thence North 00°03'55" East, 2638.56 feet along the East line of said Outlot X and Outlot Y to the Northeast Corner of said Outlot Y, said point also being the center of said Section 31; Thence South 89°38'55" East, 306.84 feet along the South right-of-way line of Army Post Road to a point of curvature; Thence easterly along a curve to the left having a radius of 2700.55 feet, an arc length of 974.13 feet along the South right-of-way line of Army Post Road to a point of tangency; Thence North 69°41'02" East, 63.53 feet along the South right-of-way line of Army Post Road to the Northwest Corner of Airport Commerce Park South, an Official Plat; Thence South 00°03'46" West, 196.22 feet along the West line of Airport Commerce Park South to a point; Thence South 00°05'21" West, 1318.60 feet along the West line of Airport Commerce Park South to a point; Thence South 89°40'39" East, 1319.87 feet along the south line of Airport Commerce Park South to a point on the East line of said Section 31; Thence South 00°06'47" West, 1317.93 feet along said East line to the Southeast Corner of said Section 31; Thence North 89°42'24" West, 2638.63 feet along the South line of said Section 31 to the Point of Beginning.

WHEREAS, the continuing need to develop the Airport Business Park Urban Renewal Project is such as to require application of the incremental tax resources of the amended Project Area consisting of the Original Area together with the Expansion Area; and,

WHEREAS, indebtedness has been incurred by the City of Des Moines, and additional indebtedness is anticipated to be incurred in the future to finance said Urban Renewal Project; and,

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the continuation of the division of revenue from taxation in the amended Project Area of the Airport Business

Park Urban Renewal Project, as described herein in accordance with the provisions of Section 403.19 of the 2001 Code of Iowa, as amended; NOW THEREFORE,

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA:

Section 1. That the taxes levied on the taxable property in the amended Project Area of the Airport Business Park Urban Renewal Project, consisting of the Original Area and the Expansion Area described in the preamble to this Ordinance, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District, and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. For purposes of this Ordinance, "Base Period Taxes" are that portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in the amended Project Area upon the total sum of the "Base Valuations" of the sub-areas within the amended Project Area. The "Base Valuations" are the assessed values of the taxable property in each sub-area of the amended Project Area as shown on the assessment rolls following:

With respect to the portion of the amended Project Area contained within the Original Area, the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certified to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to Ordinance No. 13,400, being the assessment roll for January 1, 1995;

With respect to the portion of the amended Project Area outside the Original Area, the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certified to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to Ordinance No. 13,400, as amended by this Ordinance;

The "Base Period Taxes" for each of the sub-areas within the amended Project Area of the Airport Business Park Urban Renewal Project shall be computed using the total assessed value of the taxable property within each such sub-area as shown on the assessment rolls applicable to each sub-area as described above. "Base Period Taxes" shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by and for said taxing district into which all other property taxes are paid.

Section 3. For purposes of this Ordinance, "Incremental Taxes" are that portion of the taxes each year in excess of the "Base Period Taxes" for the amended Project Area of the Airport Business Park Urban Renewal Project, determined as provided in Section 2 of this Ordinance. "Incremental Taxes" shall be allocated to and when collected be paid into a special fund of the City of Des Moines, Iowa, hereafter to be maintained to pay the principal of and interest on loans, monies advanced to, and indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under authority of Sections 403.9 and 403.12 of the 2001 Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance, in whole or in part, urban renewal project activities undertaken within the amended Project Area of the Airport Business Park Urban Renewal Project, except that taxes for the payment of bonds and interest of each taxing district levying taxes in the amended Project Area shall be collected against all taxable property within the said amended Project Area without any limitations as hereinabove provided.

Section 4. At such time as the loans, monies advanced and bonds of the City of Des Moines and interest thereon, hereinabove referred to, have been paid, all monies thereafter received from taxes upon the taxable property in the amended Project Area of the Airport Business

Park Urban Renewal Project shall be paid into the funds for the respective taxing districts in the same manner as "Base Period Taxes".

Section 5. All ordinances or parts of ordinances in conflict with the provisions of this Ordinance are hereby repealed. The provisions of this Ordinance are intended and shall be construed so as to continue the division of taxes from property within each of the sub-areas of the amended Project Area of the Airport Business Park Urban Renewal Project as described above and to fully implement the provisions of Section 403.19 of the 2001 Code of Iowa, as amended, with respect thereto. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the 2001 Code of Iowa, as amended, with reference to the amended Project Area and the territory contained therein.

Section 6. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

Section 2. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

APPROVED AS TO FORM:

Roger K. Brown
Assistant City Attorney

Passed September 24, 2001

ORDINANCE NO. 14,058

An Ordinance amending Ordinance No. 13,386, entitled: An Ordinance providing that general property taxes levied and collected each year on all property located within the ACCENT Neighborhood Urban Renewal Area in the City of Des Moines, County of Polk, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, and other taxing districts, be paid to a special fund for payment of principal and interest on loans, monies advanced to and indebtedness, including bonds issued or to be issued, incurred by said City in connection with said urban renewal redevelopment project.

WHEREAS, the City Council of the City of Des Moines, Iowa, has heretofore, in Ordinance No. 13,386, provided for the division of revenue from taxes within the ACCENT Neighborhood Urban Renewal Project Area (hereinafter referred to as the "Original ACCENT Area"); and,

WHEREAS, by the First Amendment to the Urban Renewal Plan for the ACCENT Neighborhood Urban Renewal Area, after notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to add an additional area (hereinafter referred to as the "Expansion Area"); and,

WHEREAS, the continuing needs of redevelopment of the expanded ACCENT Neighborhood Urban Renewal Project are such as to require application of the increment tax resources of the expanded urban renewal project; and,

WHEREAS, the following enactment is necessary to accomplish the objectives described above and in the Urban Renewal Plan for the ACCENT Neighborhood Urban Renewal Area; NOW THEREFORE,

BE IT ORDAINED, by the City Council of the City of Des Moines, Iowa, as follows:

Section 1. That Ordinance No. 13,386 is hereby amended to read as follows:

WHEREAS, the City Council of the City of Des Moines, Iowa, after public, notice and hearing as prescribed by law and pursuant to Resolution passed and approved October 21, 1996, adopted an Urban Renewal Plan for an area known as the ACCENT Neighborhood Urban Renewal Area (herein designated as the "Original ACCENT Area"), which project area includes the lots and parcels within the boundaries, as follows:

Original ACCENT Area

Commencing at the Northeast corner of Lot 1, Davis Heights, an Official Plat; thence southwesterly along the North line of said Lot 1, a distance of 53.22 feet to the Point of Beginning; thence South and southeasterly along the west-

erly line of said Lot 1 and along Lot 5 and 6, of said Davis Heights, to a point 49.50 feet South of the Northwest corner of said Lot 6; thence southwesterly to the Northwest corner of Lot 7, Tom's Heights Plat No. 2, an Official Plat, said point also being on the East right-of-way line of East 29th Street; thence South along the East right-of-way line of East 29th Street and the southerly extensions of East 29th Street right-of-way lines to the Northwest corner of Lot 15, Block 4, Hyde Park Plat 2, an Official Plat; thence East along the North line of Lots 15 through 27, inclusive in said Block 4 and said North line extended East to the East right-of-way line of East 30th Street; thence South along the East right-of-way line of East 30th Street to the Northwest corner of Lot 15, Block 10, in said Hyde Park Plat 2; thence South along the West line of said Lot 15, a distance of 69.0 feet; thence Southeasterly to the North Line of Lot 16, Block 10 being 3.5 feet East of the Northwest Corner of said Lot 16, Block 10; thence East along the North line of Lots 16 through 31, inclusive in said Block 10 to the Northeast corner of said Lot 31; thence easterly along a straight line to a point 7.0 feet North of the Northwest corner of Lot 16, Block E, Gray Heights, an Official Plat; thence East along a straight line that is 7.0 feet North of and parallel with the North line of Lots 16 through 27, inclusive, in said Block E and said straight line extended East to the East right-of-way line of East 33rd Street; thence South along the East right-of-way line of East 33rd Street and said East right-of-way line extended to the South right-of-way line of East University Avenue as it now exists; thence West along said South right-of-way line of East University Avenue to the East right-of-way line of East 30th Street as it now exists; thence South along said East right-of-way line to a point of intersection with the easterly extension of the South right-of-way line of Walker Street; thence West along said South right-of-way line and its easterly extension to the Northwest corner of Lot 12, Block 8, Farwell Place, an Official Plat; thence North to the Southeast corner of Lot 18, Block 7, in said Farwell Place; thence West along the South line of said Lot 18, a distance of 25.00 feet; thence North along a line being 25.0 feet West of and parallel with the East line of said Lot 18, to the North line of said Lot 18; thence West 25.0 feet along the North line of said Lot 18 to the Northeast corner of Lot 19, Block 7, in said Farwell Place; thence West along the North line of Lots 19 through 28, inclusive, in said Block 7 to the Northwest corner of said Lot 28; thence South along the West line of said Lot 28 to a point of intersection with the easterly extension South line of Lot 25, Block 6, in said Farwell Place; thence West along the easterly extensions of the South line of Lots 27 and 4, Block 3 in said Farwell Place; thence continuing West along the easterly extension of the North line of Lots 26 and 5 Block 3, in said Farwell to a point 5.0 feet East of the Northwest corner of said Lot 5; thence southwesterly to the Northwest corner of Lot 6, Block 3, in said Farwell Place, thence South along the West line to the intersection with the easterly extension of a line being 15.0 feet North of the Southeast corner of Lot 25, Block 2 of said Farwell Place; West along a line, 15.0 feet North of and parallel with the South line of Lots 25 and 6 of said Block 2; thence North along the East right of way line of East 26th Court, to the Northwest corner of Lot 5, in said Block 2, to a point of intersection with the South line extended East of Lots 27 and 4, Block 1, in said Farwell Place; thence West along the South line and the South line extended of said Lots 27 and 4 to the West right-of-way line of East 26th Street; thence South along the West right-of-way line, said right-of-way line also being the East line of Block 10, York's Choice, an Official Plat, to a point on the East line of Lot 11, said Block 10 being 12.50 feet South of the Northeast corner of said Lot 11; thence West along a straight line being 12.50 feet South of and parallel with the North line of said Lot 11, to a point being 50.00 feet West of the East line of said Lot 11; thence North 2.00 feet; thence West along a straight line being 10.50 feet South of and parallel with the North line of said Lot 11, a distance of 30.00 feet; thence South 2.00 feet to a point being 12.50 feet South of the North line and 80.00 feet West of the Northeast corner of said Lot 11; thence West along a straight line being 12.50 feet South of and parallel with the North line of

said Lot 11 to a point that is 20.00 feet East and 12.50 feet South of the Northwest corner of said Lot 11; thence South along a straight line to a point being 20.00 feet West of and 7.50 feet South of the Northwest corner of Lot 12, in said Block 10; thence West along a straight line that is 7.50 feet South of and parallel with the North line of said Lot 12 to a point on the West line of Lot 12, in said Block 10; thence North along said West line to the Northwest corner of said Lot 12; thence West along the easterly extension of the South line of Lot 48, of said Block 10, to the Southeast corner of said Lot 48, thence West along the South line of said Lot 48 to the Southwest corner of said Lot 48; thence North along the West line of Lots 48 through 52, inclusive, in said Block 10 to the Northwest corner of said Lot 52; thence West along the North line of said Lot 52 extended West to the Southeast corner of Lot 6, Block 9, in said York's Choice; thence West along the South line of said Lot 6 and the South line extended West to the Northeast corner of Lot 52, in said Block 9; thence South along the East line of Lots 52, 51 and 50, in said Block 9 to the Southeast corner of said Lot 50; thence West along the South line of said Lot 50 to a point being 1.0 feet East of the Southwest corner of said Lot 50 also being the East right of way line of East 25th Street; thence North along the East right of Way line to the North line of said Lot 50; thence North along the east right-of-way line; thence West along the easterly extension of the North line of said Lot 50, to the west right of way line of East 25th St., and being the South line of Lot 9 Block B, in said York's Choice; thence West along the South line and the South line extended West of said Lot 9 to the Southeast corner of Lot 52, in said Block 8; thence North along the East line of said Lot 52 to the Southeast corner of Lot 53, in said Block 8; thence West along the South line and the South line extended West of said Lot 53, and the South line of extended of Lot 8, Block 7, in said York's Choice to the Southeast corner of Lot 53, in said Block 7; thence North along the East line of said Lot 53 to the Northeast corner of said Lot 53; thence West along the North line of said Lot 53 to the Northwest corner of said Lot 53; thence South along the West line of said Lot 53 to the Southwest corner of said Lot 53; thence West along the westerly extension of the South line of said Lot 53, to the Southeast corner of Lot 8, Block 6 in said York's Choice; thence West along the South line of said Lot 8, and the South line extended of said Lot 8, to the Southeast corner of Lot 53, in said Block 6; thence North along the East line of said Lot 53 to the Northeast corner of said Lot 53, thence West along the North line and the North line extended West of said Lot 53 to the Northeast corner of Lot 8, Block 5, in said York's Choice; thence South along the East line of said Lot 8 to the Southeast corner thereof; thence West along the South line of said Lot 8, to the Southwest corner of said Lot 8; thence North along the West line of Lots 8 and 7, in said Block 5 to the Northwest corner of Lot 7, in said Block 5; thence West along the westerly extension of the North line of Lot 7, Block 5, to the Northeast corner of Lot 7, Block 4, in said York's Choice; thence South along the East line of said Lot 7 and Lot 8, Block 4, to the Southeast corner of said Lot 8, thence West along the South line and the South line extended of said Lot 8 to the Southeast corner of Lot 53, in said Block 4; thence North along the East line of said Lot 53 and Lot 54, Block 4, to the Northeast corner of said Lot 54, thence West along the North line and the North line extended of said Lot 54, to the Northeast corner of Lot 8, Block 3, in said York's Choice; thence South along the East line of said Lot 8 to the Southeast corner of said Lot 8; thence West along the South line and the South line extended of said Lot 8 to the Southeast corner of Lot 55, in said Block 3; thence North along the East line of said Lot 55 to the Northeast corner of said Lot 55; thence West along the North line and the North line extended of said Lot 55 to the West right-of-way line of East 22nd Street, said right-of-way line also being the East line of Block 2, Easdale, an Official Plat; thence South along the East line of said Block 2, Easdale to the Southeast corner of Lot 8, Block 2, in said Easdale; thence West along the South line of said Lot 8 to the Southeast corner of Lot 23 in said Block 2; thence North along the East line of said Lot 23, a distance of 3.00 feet; thence West along a straight line that is 3.00 feet

North of and parallel with the South line of said Lot 23 to the West line of said Lot 23; thence South along the West line of Lots 23, 22 and 21, in said Block 2 to the Southwest corner of said Lot 21; thence West along the Westerly extension of the South line of said Lot 21, Block 2, to the Southeast corner of Lot 9, Block 1, in said Easdale, thence West along the South line and the South line extended West of Lots 9 and 20, Block 1, in said Easdale to a point on the West right-of-way line of East 21st Street; thence North along the West right-of-way line of East 21st Street to the southeasterly right-of-way line of Avenue Frederick M. Hubbell; thence southwesterly along the southeasterly right-of-way line of Avenue Frederick M. Hubbell to its intersection with the easterly extension of the South right-of-way line of Walker Street; thence West along the easterly extension of the South right-of-way line and the South right-of-way line of Walker Street to the East right-of-way line of the Union Pacific Railway; thence northerly along the East right-of-way line of the Union Pacific Railway to the southerly right-of-way line of Interstate Freeway No. 235, as presently established; thence easterly and northerly along the southerly and easterly right-of-way line of Interstate Freeway No. 235, as presently established, to the intersection of the southerly right-of-way line extended westerly of Easton Boulevard, thence easterly along the southerly right-of-way line of Easton Boulevard to the West right-of-way line of Lay Street extended South; thence North along the southerly extension of the West right-of-way line and the West right-of-way line of Lay Street and along the northerly extension of the West right-of-way line and Lay Street to the North right-of-way line of Jefferson Avenue; thence East along the North right-of-way line and the North right-of-way line extended to the Southwest corner of Lot 18, Block 2, Vorse's 1st Addition to Easton Place, an Official Plat; thence North to the Northwest corner of said Lot 18; thence East along the North line of said Lot 18 and the North line extended to a point that is 30.00 feet East of the Northeast corner of said Lot 18; thence North along a straight line that is 30.00 feet East of parallel with the East line of Lots 11 through 18, in said Block 2 and along the East line of Block 2, Easton Place, an Official Plat and the East line of Block 3, Easton Place Plat No. 4, an Official Plat to a point on a line that is 30.00 feet northerly of the centerline of the 7th Ward Ditch; thence easterly and southeasterly along a line 90.00 feet easterly and northerly of the centerline of 7th Ward Ditch to a point on the northerly right-of-way line of Easton Boulevard; thence northeasterly along the northerly right-of-way line of Easton Boulevard to a point that is the intersection of the West line extended North of Lot 29, Boulevard Addition, an Official Plat with the northerly right-of-way line of Easton Boulevard; thence South along the West line extended North of said Lot 29 to the southerly right-of-way line of Easton Boulevard; thence northeasterly along the southerly right-of-way of Easton Boulevard and to the easterly extension of the southerly right of way of said Easton Boulevard to the Point of Beginning, all now in and forming a part of Des Moines, Polk County, Iowa.

and,

WHEREAS, by Amendment to said Urban Renewal Plan, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted for an extended area consisting of the Original ACCENT Area combined with an area (herein referred to as the "Expansion Area") which includes the lots and parcels within the boundaries described as follows:

Expansion Area

Commencing at a point on the East right-of-way line of East 30 Street as it now exists, said Point of Beginning being the point of intersection with the easterly extension of the South right-of-way line of Walker Street; thence South along said East right-of-way line of East 30th Street to the South right-of-way line of Dean Avenue; thence West along said South right-of-way line of Dean Avenue to a point of intersection with the southerly extension of the West lot line of Lot 26, Block 8, Elbert & York's Addition, an Official Plat; thence North along said southerly extension and the West lot lines of Lots 26 & 3, in Blocks 8, 5, & 4, Elbert &

York's Addition to the South right-of-way line of Capitol Avenue; thence west along said South right-of-way line to a point of intersection with the southerly extension of the West lot line of Lot 4, Block 1, Elbert & York's Addition; thence North along said southerly extension and the West lot line of Lot 4, Block 1, Elbert & York's Addition and continuing North along the West lot line of Lot 8, Geo. W. Harter's Subdivision, an Official Plat, and the northerly extension of said Lot 8 to the North right-of-way line of East Grand Avenue; thence East along said North right-of-way line to the West lot line of Lot 3, Block 1, Elliott's Addition, and Official Plat; thence North along said West lot line to the North lot line of Lot 3, Block 1, Elliott's Addition; thence East along said North lot line to a point of intersection with the southerly extension of the West lot line of Lot 28, Block 1, Elliott's Addition; thence North along said southerly extension and the West lot lines of Lots 28, 29, 30, Block 1, and Lots 1, 2, 3, Block 2, Elliott's Addition to the South lot line of Lot 28, Block 2, Elliott's Addition; thence West along the westerly extension of said South lot line to a point on said westerly extension, said point being 7' (seven feet) west of the West lot line of Lot 28, Block 2, Elliott's Addition; thence North from said point along a line 7' (seven feet) west of and parallel to the West lot lines of Lots 28, 29, 30, Block 2, Elliott's Addition and the northerly extension of said line to the North right-of-way line of Lyon Street; thence West along said North right-of-way line to a point on said North right-of-way line, said point being 10' (ten feet) west of the West lot line of Lot 1, Block 3, Elloitt's Addition; thence North from said point along a line 10' (ten feet) west of and parallel to the West lot lines of Lots 1, 2, 3, Block 3, Elloitt's Addition to a point of intersection with the easterly extension of the North lot line of Lot 4, Block 3, Elliott's Addition; thence West along said easterly extension and the North lot line of Lot 4, Block 3, Elliott's Addition to a point of intersection with the southerly extension of the West lot line of Lot 11, Block 9, Farwell Place, an Official Plat; thence North along said southerly extension and the West lot line of Lot 11, Block 9, Farwell Place and also the northerly extension of said West lot line to a point of intersection with the North right -of-way line of East Maple Street; thence East along said North right-of-way line to a point of intersection with the West lot line of Lot 17, Block 8, Farwell Place; thence North along said West lot line and the West lot line of Lot 12, Block 8, Farwell Place to the Northwest corner of said Lot 12; thence East along the South right-of-way line of Walker Street and the easterly extension of said South right-of-way to the Point of Beginning, all now in and forming a part of Des Moines, Polk County, Iowa.

WHEREAS, indebtedness has been incurred by the City of Des Moines, Iowa, and additional expenditures and indebtedness are anticipated to be incurred in the future to finance said Urban Renewal Project; and

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the Urban Renewal Area, as above described in accordance with the provisions of Section 403.19 of the Code of Iowa, as amended.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA:

Section 1. That the taxes levied on the taxable property in the amended Project Area of the ACCENT Neighborhood Urban Renewal Project, consisting of the Original ACCENT Area and the Expansion Area described in the preamble to this Ordinance, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. For purposes of this Ordinance, "Base Period Taxes" are that portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in the amended Project Area upon the total sum of the "Base Valuations" of the sub-areas within the amended Project Area. The "Base Valua-

tions" are the assessed values of the taxable property in each sub-area of the amended Project Area as shown on the assessment rolls following:

With respect to the portion of the amended Project Area contained within the Original ACCENT Area, the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certified to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to Ordinance No. 13,386, being the assessment roll for January 1, 1995;

With respect to the portion of the amended Project Area outside the Original ACCENT Area, the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certified to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to Ordinance No. 13,386, as amended by this Ordinance;

The "Base Period Taxes" for each of the sub-areas within the amended Project Area of the ACCENT Neighborhood Urban Renewal Project shall be computed using the total assessed value of the taxable property within each such sub-area as shown on the assessment rolls applicable to each sub-area as described above. "Base Period Taxes" shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by and for said taxing district into which all other property taxes are paid.

Section 3. For purposes of this Ordinance, "Incremental Taxes" are that portion of the taxes each year in excess of the "Base Period Taxes" for the amended Project Area of the ACCENT Neighborhood Urban Renewal Project, determined as provided in Section 2 of this Ordinance. "Incremental Taxes" shall be allocated to and when collected be paid into a special fund of the City of Des Moines, Iowa, hereafter to be maintained to pay the principal of and interest on loans, monies advanced to, and indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under authority of Sections 403.9 and 403.12 of the Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance, in whole or in part, urban renewal project activities undertaken within the amended Project Area of the ACCENT Neighborhood Urban Renewal Project, except that taxes for the payment of bonds and interest of each taxing district levying taxes in the amended Project Area shall be collected against all taxable property within the said amended Project Area without any limitations as hereinabove provided.

Section 4. At such time as the loans, monies advanced and bonds of the City of Des Moines and interest thereon, hereinabove referred to, have been paid, all monies thereafter received from taxes upon the taxable property in the amended Project Area of the ACCENT Neighborhood Urban Renewal Project shall be paid into the funds for the respective taxing districts in the same manner as "Base Period Taxes".

Section 5. All ordinances or parts of ordinances in conflict with the provisions of this Ordinance are hereby repealed. The provisions of this Ordinance are intended and shall be construed so as to continue the division of taxes from property within each of the sub-areas of the amended Project Area of the ACCENT Neighborhood Urban Renewal Project as described above and to fully implement the provisions of Section 403.19 of the Code of Iowa, as amended, with respect thereto. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the Code of Iowa, as amended, with reference to the amended Project Area and the territory contained therein.

Section 6. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

Section 7:[2.] This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

FORM APPROVED:

_____
Roger K. Brown
Assistant City Attorney

Passed March 4, 2002

ORDINANCE NO. 14,345

AN ORDINANCE providing that general property taxes levied and collected each year on all property located within the Fleur Drive Commercial Urban Renewal Area in the City of Des Moines, County of Polk, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, and other taxing districts, be paid to a special fund for payment of principal and interest on loans, monies advanced to and indebtedness, including bonds issued or to be issued, incurred by the City of Des Moines in connection with said Urban Renewal Project.

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved June 7, 2004, adopted an urban renewal plan titled "Urban Renewal Plan for the Fleur Drive Commercial Urban Renewal Area" for an Urban Renewal Project within an Urban Renewal Area described as follows:

> Except the West 175 feet of the South 183 feet, the Southwest 1/4 of the Southeast 1/4 of Section 20, Township 78 North, Range 24 West of the 5th P.M.; and, the entire adjoining rights-of-way of Fleur Drive and McKinley Avenue, all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

WHEREAS, expenditures and indebtedness are anticipated to be incurred by the City of Des Moines, Iowa, in the future to finance said Urban Renewal Project; and

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the Urban Renewal Area, as above described in accordance with the provisions of Section 403.19 of the 2003 Code of Iowa, as amended.

NOW, THEREFORE, BE IT ORDAINED by the City Council of the City of Des Moines, Iowa, as follows:

Section 1. That the taxes levied on the taxable property in the Urban Renewal Area known as the Fleur Drive Commercial Urban Renewal Area, legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District, and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. That portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said Urban Renewal Area upon the total sum of the assessed value of the taxable property in said Urban Renewal Area as shown on the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of property tax revenue shall be allocated to and when collected be paid into the Fund for the respective taxing district as taxes by or for said taxing district into which all other property taxes are paid.

Section 3. That portion of the taxes each year in excess of the base period taxes determined as provided in Section 2 of this Ordinance shall be allocated to and when collected be paid into a special tax increment fund hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of Sections 403.9 and 403.12 of the 2003 Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance in whole or in part the Fleur Drive Commercial Urban Renewal Project, except that taxes for the regular and voter-approved physical plant and equipment levy of a school district imposed pursuant to

Iowa Code § 298.2 and taxes for the payment of bonds and interest of each taxing district levying taxes on said Urban Renewal Area shall be collected against all taxable property within the Urban Renewal Area without any limitation as hereinabove provided.

Section 4. All taxes levied and collected upon the taxable property in said Fleur Drive Commercial Urban Renewal Area shall be paid into the funds of the taxing districts as taxes by or for said taxing districts in the same manner as all other property taxes unless or until the total assessed valuation of the taxable property in said Urban Renewal Area shall exceed the total assessed value of the taxable property in said Urban Renewal Area as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to this Ordinance.

Section 5. At such time as the loans, advances, bonds and interest thereon and indebtedness of the City of Des Moines hereinabove in Section 3 referred to have been paid, all monies thereafter received from taxes upon the taxable property in the Urban Renewal Area known as the Fleur Drive Commercial Urban Renewal Area shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property.

Section 6. The provisions of this Ordinance are intended and shall be construed so as to fully implement the provisions of Section 403.19 of the 2003 Code of Iowa, as amended, with respect to the division of taxes from property within the Urban Renewal Area as described above. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the Code of Iowa with reference to said Urban Renewal Area and the territory therein.

Section 7: This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

FORM APPROVED:

_____
Roger K. Brown
Assistant City Attorney

Passed June 7, 2004.

ORDINANCE NO. 14,723

AN ORDINANCE providing that general property taxes levied and collected each year on all property located within the Beaverdale Commercial Area Urban Renewal Area in the City of Des Moines, County of Polk, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, and other taxing districts, be paid to a special fund for payment of principal and interest on loans, monies advanced to and indebtedness, including bonds issued or to be issued, incurred by the City of Des Moines in connection with said Urban Renewal Project.

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved November 19, 2007, adopted an urban renewal plan titled "Beaverdale Commercial Area Urban Renewal Plan" for an Urban Renewal Project in the Urban Renewal Area that includes the lots and parcels within the boundaries described as follows:

Beginning at the Northwest corner of Lot 10, Philpott Acres, an Official Plat; thence North along the northerly extension of the West line of said Lot 10 to the North right-of-way line of Douglas Avenue, (as it now exist); thence easterly along the North right-of-way line of Douglas Avenue (as it now exists) and its easterly extension to the intersection of the northerly extension of the East line of Lot 4, Knapp Place, an Official Plat; thence South along the northerly extension of the East line of said Lot 4 to the Northeast corner of said Lot 4, and being the South right-of-way line of Douglas Avenue; thence South along the East line of said Lot 4 to the Southeast corner of said Lot 4; thence West along the South line of Lots 4, 3, 2 and 1 of said Knapp Place to the Southwest corner of said Lot 1 and being the

Northwest corner of Lot 18, Knapp Place Plat 2, an Official Plat; thence South along the West line of said Lot 18 to the Southwest corner of said Lot 18 and being the North right-of-way line of Clinton Avenue; thence East along the North right-of-way line of Clinton Avenue to the intersection of the northerly extension of the East line of Lot 22, of said Knapp Place Plat 2, thence South along the northerly extension of the East line of said Lot 22 to the Northeast corner of said Lot 22 and being the South right-of-way line of Clinton Avenue; thence South along the East line of said Lot 22 to the Southeast corner of said Lot 22; thence East along the South line of Lots 23 and 24 of said Knapp Place Plat 2 to the Northwest corner of Lot 3, Amick Place, an Official Plat; thence South along the West line of said Lot 3 to the North line of Lot 2 of said Amick Place; thence East along the North line of said Lot 2 to the West line of the East 92.00 feet of the South 175.0 feet of said Lot 3; thence South along the West line of the East 92.0 feet of the South 175.0 feet of said Lot 3 to the North right-of-way line of Amick Avenue; thence South along its southerly extension of the West line of the East 92.0 feet of said Lot 3 to the South right-of-way line of Amick Avenue; thence West along the South right-of-way line of Amick Avenue to the East right-of-way line of Beaver Avenue and being the Northwest corner of Lot 43 of said Amick Place; thence southerly along the East right-of-way line of Beaver Avenue and its southerly extension to the Southwest corner of Lot 25 , Ashby Manor, an Official Plat; thence East along the South line of said Ashby Manor to the Southwest corner of Lot C of said Ashby Manor; thence North along the West line of said Lot C to the Northwest corner of said Lot C and being on the South right-of-way line of Wallace Lane; thence northeasterly along the South right-of-way line of Wallace Lane to the Northeast corner of said Lot C; thence South along the East line of said Lot C to the Southeast corner of said Lot C; thence East along the South line of said Ashby Manor to the Northwest corner of Lot 11, Beaver Oaks, an Official Plat; thence South along the West line of said Beaver Oaks to the Southwest corner of Lot 1 of said Beaver Oaks, and being the North right-of-way line of Adams Avenue; thence East along the North right-of-way line of Adams Avenue to the intersection of the northerly extension of the West Line of Lot 3, Fagen Park, an Official Plat; thence South along the northerly extension of the West line of said Lot 3 to the South right-of-way line of Adams Avenue and the Northwest corner of said Lot 3; thence South along the West line of said Lot 3 to the South line of the North 133.35 feet of said Lot 3; thence East along the South line of the North 133.35 feet of Lots 3, 2, and the West 40.0 feet of the North 133.35 feet of Lot 1 of said Fagen Park; thence South along the East line of the West 40.0 feet of said Lot 1 to the South line of said Lot 1; thence southwesterly along the South line of said Lots 1 and 2 to the East line of the West 15.0 feet of Lot 11, of said Fagen Park; thence South along the East line of the West 15.0 feet of said Lot 11 to the North right-of-way line of Fagen Drive and along its southerly extension to the South right-of-way line of said Fagen Drive; thence easterly along the South right-of-way line of said Fagen Drive to the Northwest corner of Lot 13 of said Fagen Park; thence South along the West line of said Lot 13 to the Southwest corner of said Lot 13; thence East along the South line of said Lot 13 to the Northeast corner of Lot 9, Beaver Glen, an Official Plat; thence South along the East line of said Lot 9 to the Southeast corner of said Lot 9 and being the North right-of-way line of Urbandale Avenue; thence southeasterly along a line to the South right-of-way line of Urbandale Avenue to a point being on the West line of the East 65.0 feet of the West 72.0 feet of Lot 13 of said Beaver Glen; thence South along the West line of the East 65.0 feet of the West 72.0 feet of the said Lot 13 to the North line of the South 168.0 feet of said Lot 13; thence East along the North line of the South 168.0 feet of the East 65.0 feet of the West 72.0 feet of said Lot 13 to the East line of the West 72.0 feet of said Lot 13; thence South along the East line of the West 72.0 feet of said Lot 13 to the North right-of-way line of Sheridan Avenue; thence South along the southerly extension of the East line of the West 72.0 feet of said Lot

13 to the South right-of-way line of said Sheridan Avenue and being on the North line of Lot 1, Block 15, Broadmoore, an Official Plat; thence West along the South right-of-way line of Sheridan Avenue to the Northeast corner of Lot 1, Block 16, of said Broadmoore; thence South along the East line of Lot 1, 2 and 3 of said Block 16 to the Southeast corner of said Lot 3; thence West along the South line of said Lot 3 to the Southwest corner of said Lot 3 and the East right-of-way line of Beaver Avenue; thence westerly along a line to the West right-of-way line of Beaver Avenue and being the Northeast corner of Lot 19, Block A, Maryland Park, an Official Plat, and being the South right-of-way line of Beaver Crest Drive; thence West along the North line of said Lot 19 to the Northwest corner of said Lot 19; thence North along the northerly extension of the West line of said Lot 19 to the North right-of-way line of Beaver Crest Drive and being the Southwest corner of Lot 23, Block D of said Maryland Park; thence North along the West line of Lots 23, 22 and 21, of said Block D, of Maryland Park to the Northwest corner of said Lot 21, thence East along the North line of said Lot 21 to the Southwest corner of Lot 7, P. J. Clancy Plat 2, an Official Plat; thence North along the West line of Lots 7 thru 1 of said P. J. Clancy Plat 2 to the South right-of-way line of Sheridan Avenue and the Northwest corner of said Lot 1; thence North along the northerly extension of the West line of said Lot 1 to the North right-of-way line of Sheridan Avenue and being the Southwest corner of Lot 35, Grassmere, an Official Plat; thence North along the West line of Lots 35 thru 31 of said Grassmere to the Northwest corner of said Lot 31; thence West along the westerly extension of the North line of said Lot 31 to the Southeast corner of Lot 29 of said Grassmere; thence West along the South line of said Lot 29 to the Southwest corner of said Lot 29; thence North along the West line of said Lot 29 to the Northwest corner of said Lot 29 and the South right-of-way line of Urbandale Avenue; thence North along the northerly extension of the West line of said Lot 29 to the North right-of-way line of Urbandale Avenue; thence northwesterly along the North right-of-way line of Urbandale avenue to the Southeast corner of Lot 15 of said Grassmere; thence North along the East line of Lots 15, of said Grassmere and its northerly extension to the North line of Lot 11, of said Grassmere; thence West along the North line of said Lot 11 to the Southwest corner of Lot 18 of said Grassmere; thence North along the West line of Lots 18 and 17 of said Grassmere to the Northwest corner of said Lot 17; thence East along the North line of said Lot 17 to the Northeast corner of said Lot 17 and being the West right-of-way line of Beaver Avenue; thence northerly along the West right-of-way line of Beaver Avenue and its northerly extension to the Northeast corner of Lot 1, Conkling Place, an Official Plat; thence West along the North line of Lots 1 thru 4 of said Conkling Place, to the Northwest corner of said Lot 4 and being on the East line of the East 67.0 feet of the West 421.0 feet of Lot 4 of the Corrected Plat of Roseland Acres, an Official Plat; thence North along the East line the East 67.0 feet of the West 421.0 feet of said Lot 4 to the North line of said Lot 4; thence West along the North line of said Lot 4 to the Northeast corner of the East 50.0 feet of the West 287.0 feet of said Lot 4; thence South 3.2 feet along the East line of the East 50.0 feet of the West 287.0 feet of said Lot 4; thence West along a line 3.2 feet South of and parallel with the North line of said Lot 4 to the Southeast corner of Lot 12, Bosen Gardens, an Official Plat; thence North along the East line of said Lot 12 to the Northeast corner of said Lot 12 and the South right-of-way line of Amick Avenue; thence North along the northerly extension of the East line of said Lot 12 to the North right-of-way line of Amick Avenue and the Southeast corner of Lot 11, of said Bosen Gardens; thence North along the East line of said Lot 11 to the Northeast corner of said Lot 11 and on the South line of the North 185.0 feet of Lot 22 of said Philpott Acres; thence East along the South line of the North 185.0 feet of Lots 22 and 21 of said Philpott Acres to the Southwest corner of Lot 19 of said Philpott Acres; thence North along the West line of Lots 19 and 18 of said Philpott Acres to the Northwest corner of said Lot 18, and the South right-of-way line of Euclid

Avenue; thence North along the northerly extension of the West line of said Lot 18 to the North right-of-way line of Euclid Avenue; thence West along the North right-of-way line of Euclid Avenue to the Southeast corner of Lot 7 of said Philpott Acres; thence North along the East line of said Lot 7 to the Northeast corner of the South 183.0 feet of said Lot 7; thence West along the North line of the South 183.0 feet of said Lot 7 to the West line of said Lot 7; thence North along the West line of said Lot 7 to the Northwest corner of said Lot 7 and being on the South line of Lot 3 of said Philpott Acres; thence West along the South line of said Lot 3 to the Southwest corner of said Lot 3 and being on the East Line of Lot 8 of said Philpott Acres; thence North along the East line of said Lot 8 to the South line of the North 250.0 feet of said Lot 8; thence West along the South line of the North 250.0 feet of Lots 8 and 9 of said Philpott Acres to the East line of Lot 10 of said Philpott Acres; thence South along the East line of said Lot 10 to the Southeast corner of said Lot 10; thence West along the South line of said Lot 10 to the Southwest corner of said Lot 10; thence North along the West line of said Lot 10 to the Northwest corner of said Lot 10 and the Point of Beginning. All now included in and forming a part of the City of Des Moines, Polk County, Iowa.

WHEREAS, expenditures and indebtedness are anticipated to be incurred by the City of Des Moines, Iowa, in the future to finance said Urban Renewal Project; and

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the Urban Renewal Area, as above described in accordance with the provisions of Section 403.19 of the 2007 Code of Iowa, as amended.

NOW, THEREFORE, BE IT ORDAINED by the City Council of the City of Des Moines, Iowa, as follows:

Section 1. That the taxes levied on the taxable property in the Urban Renewal Area known as the Beaverdale Commercial Area Urban Renewal Area, legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District, and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. That portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said Urban Renewal Area upon the total sum of the assessed value of the taxable property in said Urban Renewal Area as shown on the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of property tax revenue shall be allocated to and when collected be paid into the Fund for the respective taxing district as taxes by or for said taxing district into which all other property taxes are paid.

Section 3. That portion of the taxes each year in excess of the base period taxes determined as provided in Section 2 of this Ordinance shall be allocated to and when collected be paid into a special tax increment fund hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of Sections 403.9 and 403.12 of the 2007 Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance in whole or in part the Beaverdale Commercial Area Urban Renewal Project, except that taxes for the regular and voter-approved physical plant and equipment levy of a school district imposed pursuant to Iowa Code § 298.2 and taxes for the payment of bonds and interest of each taxing district levying taxes on said Urban Renewal Area shall be collected against all taxable property within the Urban Renewal Area without any limitation as hereinabove provided.

Section 4. All taxes levied and collected upon the taxable property in said Beaverdale Commercial Area Urban Renewal Area shall be paid into the funds of the taxing districts as taxes by

or for said taxing districts in the same manner as all other property taxes unless or until the total assessed valuation of the taxable property in said Urban Renewal Area shall exceed the total assessed value of the taxable property in said Urban Renewal Area as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to this Ordinance.

Section 5. At such time as the loans, advances, bonds and interest thereon and indebtedness of the City of Des Moines hereinabove in Section 3 referred to have been paid, all monies thereafter received from taxes upon the taxable property in the Urban Renewal Area known as the Beaverdale Commercial Area Urban Renewal Area shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property.

Section 6. The provisions of this Ordinance are intended and shall be construed so as to fully implement the provisions of Section 403.19 of the 2007 Code of Iowa, as amended, with respect to the division of taxes from property within the Urban Renewal Area as described above. In the event that any provision of this Ordinance shall be determined to be contrary to law, it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the Code of Iowa with reference to said Urban Renewal Area and the territory therein.

Section 7: This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

FORM APPROVED:

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Lawrence R. McDowell
Deputy City Attorney

[Passed November 19, 2007]

ORDINANCE NO. 14,783

AN ORDINANCE providing that general property taxes levied and collected each year on all property located within the Merle Hay Commercial Area Urban Renewal Area in the City of Des Moines, County of Polk, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, and other taxing districts, be paid to a special fund for payment of principal and interest on loans, monies advanced to and indebtedness, including bonds, incurred by the City of Des Moines in connection with said Urban Renewal Project.

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved July 14, 2008, adopted an urban renewal plan titled "Merle Hay Commercial Area Urban Renewal Plan " for an Urban Renewal Project within an Urban Renewal Area described as follows:

Beginning at the Northeast Corner of the Southeast ¼ of Section 24, Township 79 North, Range 25 West of the 5th P.M.; thence southeasterly to a point being 20.0 feet South and 29.0 feet East of the Northwest corner of Lot 86, Block H, Aviation Park, an Official Plat, also being on the South right-of-way line of Aurora Avenue and on the East right-of-way line of Merle Hay Road; thence East along the South right-of-way line of Aurora Avenue to a point being 229.0 feet East of the West line of said Lot 86; thence South 200.0 feet along a line 229.0 feet East of and parallel with the West line of said Block H, of Aviation Park; thence West 4.4 feet to a point being 50.0 feet East of the West line and 5.2 feet North of the South line of Lot 8, of said Block H; thence South along a line being 50.0 feet East of and parallel with the West line of Lots 8 thru 13 of said Block H to the North line of Lot 14 of said Block H; thence West 14.0 feet along the North line of said Lot 14 to a point being 36.0 feet East of the West line of said Lot 14; thence South along a line 36.0 feet East of and parallel with the West line of Lots 14 thru 17 of said Block H to the North line of Lot 18 of said Block H; thence East along the

North line of said Lot 18 to the West right-of-way line of 57th Street (Lot G) of said Aviation Park and the Northeast corner of said Lot 18; thence South along the West right-of-way line of 57th Street (Lot G) to the Northeast corner of Lot 24 of said Block H, a distance of 180.0 feet; thence West along the North line of said Lot 24 to the Northwest corner of said Lot 24; thence South along the West line of Lot 24 and 25 of said Block H to the Southwest corner of said Lot 25; thence East along the South line of said Lot 25, a distance of 55.0 feet; thence South along a line 55.0 feet East of and parallel with the West line of Lot 26 thru 29, of said Block H, a distance of 120.0 feet to the South line of said Lot 29; thence West along the South line of said Lot 29, a distance of 55.0 feet, to the Northwest corner of Lot 30 of said Block H; thence South along the West of line of said Lots 30 thru 38 of said Block H, to the North West corner of Lot 39 of said Block H, a distance of 270.0 feet; thence East along the North line of said Lot 39, a distance of 70.0 feet; thence South along a line 70.0 feet East of and parallel with the West line of Lots 39 thru 43, of said Block H, a distance of 150.0 feet to the South line of said Lot 43, being on the North right-of-way line of Madison Avenue (Lot P) of said Aviation Park; thence West along the South line of said Lot 43, a distance of 20.0 feet; thence South along a line to the South right-of-way line of Madison Avenue (Lot P) and being the Northeast corner of Lot 1, Merlison Place, an Auditors Plat; thence South along the East line of said Lot 1, and along the East line of the West 50.0 feet of Lots 11 thru 13 and the East line of the North 10.0 feet of the West 50.0 feet of Lot 14, Block P, of said Aviation Park to the South line of the North 10.0 feet of said Lot 14; thence West along the South line of the North 10.0 feet of said Lot 14, a distance of 50.0 feet to the West line of said Lot 14; thence South along the West line of said Lot 14 to the Northwest corner of Lot 15 of said Block P; thence East along the North Line of said Lot 15, a distance of 50.0 feet; thence South along a line parallel with the West line of said Lot 15 to the North line of Lot 16 of said Block P; thence West along the North line of said Lot 16 to the Northwest corner of said Lot 16, a distance of 50.0 feet; thence South along the West line of said Lot 16 to the Northwest corner of Lot 17, of said Block P; thence East along the North line of said Lot 17, a distance of 50.0 feet; thence South along a line parallel with the West line of said Lot 17 to the North line of the South 10.0 feet of said Lot 17; thence West along the North line of the South 10.0 feet of said Lot 17, a distance of 50.0 feet to the West line of said Lot 17; thence South along the West line of Lots 17 thru 20, of said Block P, to the Northwest corner of Lot 21 of said Block P; thence East along the North Line of said Lot 21, a distance of 50.0 feet; thence South along a line 50.0 feet East of and parallel with the West Line of Lots 21 thru 37, of said Block P, to the South line of said Lot 37; thence East along a line and its easterly extension to the Southwest corner of Lot 37, Block O of said Aviation Park; thence North along the West line of said Lots 37 thru 32 of said Block O to the Northwest corner of said Lot 32; thence East along the North line of said Lot 32 to the Northeast corner of said Lot 32, being the West right-of-way line of 56th Street (Lot N) of said Aviation Park; thence South along the West right-of-way line of 56th Street (Lot N) to the westerly extension of the South line of the North 15.0 feet of Lot 49, Block N of said Aviation Park; thence East along the westerly extension of the South line of the North 15.0 feet of said Lot 49 to a point being 10.0 feet West of the East line of said Lot 49; thence North along a line 10.0 feet West of and parallel with the East line of Lots 49 thru 53 of said Block N to the North line of said Lot 53; thence East along the North line of said Lot 53 and its easterly extension to the Northeast corner Lot 32, of said Block N, being on the West right-of-way line of 55th Street (Lot M) of said Aviation Park; thence South along the West right-of-way line of 55th Street (Lot M) to the Southeast corner of Lot 37 of said Block N; thence East along the easterly extension of the South line of said Lot 37 and along the South line of Lots 48 and 37, Block M, of said Aviation Park to the Southeast corner of said Lot 37, being on the West right-of-way line of 54th Street (Lot L) of said Aviation Park;

thence South along the West right-of-way line of 54th Street (Lot L) and its southerly extension to the Northeast corner of Lot 14, Rostberg Place, an Official Plat; thence West along the North line of said Lot 14 to the Northeast corner of Lot 7 of said Rostberg Place; thence South along the East line of said Lot 7 to the Southeast corner of said Lot 7; thence West along the South line of said Lot 7 and its westerly extension to the East line of Lot 4, Van Dorn Place, an Official Plat; thence South along the East line of said Lot 4 to the North line of the South 50.0 feet of said Lot 4; thence West along the North line of the South 50.0 feet of said Lot 4 and its westerly extension to the West right-of-way line of 57th Street (Lot A) of said Van Dorn Place, being on the East line of Lot 42 of said Van Dorn Place; thence South along the East line of said Lot 42 to the North line of the South 100.0 feet of said Lot 42; thence West along the North line of the South 100.0 feet of said Lot 42 to the Northeast corner of Lot 17, Kingman Acres Plat No. 2, an Official Plat; thence South along the East line of Lots 17 thru 1, of said Kingman Acres Plat No. 2 to the Southeast corner of said Lot 1; thence West along the South line of said Lot 1 and its westerly extension to the West right-of-way line of Merle Hay Road, being on the East line of Lot 14, Clover Acres, an Official Plat; thence South along the West right-of-way line of Merle Hay road and the East line of Lots 14 thru 16 of said Clover Acres to the Southeast corner of said Lot 16; thence West along the South line of said Lot 16 to the Southwest corner of said Lot 16; thence North along the West line of said Lots 16 and 15 to the Southeast corner of Lot 29 of said Clover Acres; thence West along the South line of said Lot 29 a distance of 68.5 feet; thence North along a line 68.5 feet West of and parallel with the East line of Lots 29 thru 31 of said Clover Acres to the South line of the North 51.0 feet of said Lot 31; thence East along the South line of the North 51.0 feet of said Lot 31 a distance of 68.5 feet to the East line of said Lot

31; thence North along the East line of Lots 31 thru 38 of said Clover Acres to the Southeast corner of Lot 39 of said Clover Acres; thence West along the South line of said Lot 39 to a point being 109.78 feet East of the West line of said Lot 39; thence North along a line being 109.78 feet East of and parallel with the West line of Lots 39 and 40 of said Clover Acres 105.0 feet to the North line of the South 11.0 feet of West 109.78 feet of said Lot 40; thence West along the North line of the South 11.0 feet of said Lot 40 to the West line of said Lot 40, being on the East right-of-way Line of 59th Street (Lot C) of said Clover Acres; thence North along the West line of said Lot 40 to the Southwest corner of the North 65.0 feet of the West 109.78 feet of said Lot 40; thence East along the South line of the North 65.0 feet of said Lot 40, a distance of 109.78 feet; thence North along a line parallel with the West line of said Lot 40 a distance of 65.0 feet to the North line of said Lot 40; thence West along the North line of said Lot 40 and its westerly extension to the West right-of-way line of 59th Street (Lot C) of said Clover Acres and being the Northeast corner of Lot 45 of said Clover Acres; thence South along the East line of Lots 45 and 46 of said Clover Acres to the Southeast corner of the North ½ of said Lot 46; thence West along the South line of the North ½ of said Lot 46 to the East Line of Lot 81 of said Clover Acres; thence North along the East line of said Lot 81 to the Northeast corner of said Lot 81; thence West along the North line of said Lot 81 to the Northwest corner of said Lot 81, being the East right-of-way line of 61st Street (Lot B) of said Clover Acres; thence southwesterly to the Southeast corner of the North 19.0 feet of Lot 88 of said Clover Acres, being on the West right-of-way line of 61st Street (Lot B) of said Clover Acres; thence West along the South line of the North 19.0 feet of said Lot 88 to the East line of Lot 180 of Clover Acres Replat, an Official Plat; thence North along the East line of said Lots 180 and 181 of said Clover Acres Replat to the Southeast corner of Lot 125 of said Clover Acres; thence West along the South line of said Lot 125 to the Southwest corner of said Lot 125, being on the East right-of-way line of 62nd Street (Lot A) of said Clover Acres; thence North along the East right-of-way line of 62nd Street (Lot A) to the intersection of the easterly extension of the North Line of the South 120.0 feet of the East 150.0 feet of Lot 1, Corn Belt Acres, an Official Plat; thence West along the easterly extension of the North line of the South 120.0 feet of the East 150.0 feet of said Lot 1 to the Northwest corner of the South 120.0 feet of the East 150.0 feet of said Lot 1; thence South along the West line of the South 120.0 feet of the East 150.0 feet of said Lot 1 to the North line of Lot 16, Trenton Place, an Official Plat; thence West along the North line of said Lot 16 to the Northwest corner of said Lot 16; thence South along the West line of Lots 16 thru 11 of said Trenton Place to the intersection with the South line of Lot 2 of Corn Belt Acres, an Official Plat; thence West along the South line of said Lot 2 to the West Corporate Limits of the City of Des Moines, Polk County, Iowa; thence North along the West Corporate Limits of the City of Des Moines, to the North line of the Northeast ¼ of Section 25, Township 79 North, Range 25 West of the 5th P.M.; thence East along the North line of the Northeast ¼ of said Section 25 to the southerly extension of the West line of Lot 1, of Merle Hay-Aurora Place, an Auditors Plat, and being the West Corporate Limits of the City of Des Moines; thence North along the West Corporate Limits of the City of Des Moines, to the North line of the Southeast ¼ of Section 24, Township 79 North, Range 25 West of the 5th P.M.; thence East along the North line of Southeast ¼ of said Section 24 to the Northeast corner of the Southeast ¼ of said Section 24 to the Point of Beginning, all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

WHEREAS, expenditures and indebtedness are anticipated to be incurred by the City of Des Moines, Iowa, in the future to finance said Urban Renewal Project; and

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the Urban Renewal Area, as above described in accordance with the provisions of Section 403.19 of the Code of Iowa, as amended.

NOW THEREFORE, BE IT ORDAINED by the City Council of the City of Des Moines, Iowa, as follows:

Section 1. That the taxes levied on the taxable property in the Urban Renewal Area known as the Merle Hay Commercial Area Urban Renewal Area, legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District, and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. That portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said Urban Renewal Area upon the total sum of the assessed value of the taxable property in said Urban Renewal Area as shown on the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of property tax revenue shall be allocated to and when collected be paid into the Fund for the respective taxing district as taxes by or for said taxing district into which all other property taxes are paid.

Section 3. That portion of the taxes each year in excess of the base period taxes determined as provided in Section 2 of this Ordinance shall be allocated to and when collected be paid into a special tax increment fund hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of Sections 403.9 and 403.12 of the Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance in whole or in part the Merle Hay Commercial Area Urban Renewal Project, except that taxes for the regular and voter-approved physical plant and equipment levy of a school district imposed pursuant to Iowa Code §298.2 and taxes for the payment of bonds and interest of each taxing district levying taxes on said Urban Renewal Area shall be collected against all taxable property within the Urban Renewal Area without any limitation as hereinabove provided.

Section 4. All taxes levied and collected upon the taxable property in said Merle Hay Commercial Area Urban Renewal Area shall be paid into the funds of the taxing districts as taxes by or for said taxing districts in the same manner as all other property taxes unless or until the total assessed valuation of the taxable property in said Urban Renewal Area shall exceed the total assessed value of the taxable property in said Urban Renewal Area as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to this Ordinance.

Section 5. At such time as the loans, advances, indebtedness, bonds and interest thereon of the City of Des Moines referred to in Section 3, above, have been paid, all monies thereafter received from taxes upon the taxable property in the Urban Renewal Area known as the Merle Hay Commercial Area Urban Renewal Area shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property.

Section 6. The provisions of this Ordinance are intended and shall be construed so as to fully implement the provisions of Section 403.19 of the Code of Iowa, as amended, with respect to the division of taxes from property within the Urban Renewal Area as described above. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the Code of Iowa with reference to said Urban Renewal Area and the territory therein.

Section 7. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

FORM APPROVED:

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Roger K. Brown
Assistant City Attorney

ORDINANCE NO. 14,962

AN ORDINANCE providing that general property taxes levied and collected each year on all property located within the NE Economic Development District Urban Renewal Area in the City of Des Moines, County of Polk, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, Southeast Polk Community School District, and other taxing districts, be paid to a special fund for payment of principal and interest on loans, monies advanced to and indebtedness, including bonds issued or to be issued, incurred by the City of Des Moines in connection with said Urban Renewal Project.

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved September 27, 2010, adopted an urban renewal plan titled "NE Economic Development District Urban Renewal Plan" for an Urban Renewal Project within an Urban Renewal Area described as follows:

Beginning at the point of intersection of the west line of the southeast quarter of the northwest quarter of Section 15, Township 79 North, Range 23 West of the 5th Principal Meridian with the westerly right-of-way line of Relocated United States Highway 65, as presently established; thence southeasterly along said westerly right-of-way line to its intersection with the south line of the northwest quarter of the northeast quarter of Section 22, Township 79 North, Range 23 West of the 5th P.M.; thence west along said south line to the southwest corner of the northwest quarter of the northeast quarter of said Section 22, also being on the east line of Broadway Business Park Plat 2, an official plat; thence south along the east line of Broadway Business Park Plat 2 , also being the west line of the south half of the northeast quarter of said Section 22, to the southeast corner of said Broadway Business Park Plat 2, also being the southwest corner of the northeast quarter of said Section 22; thence west along the south line of said Broadway Business Park Plat 2 to the southwest corner of lot 12 of said Broadway Business Park Plat 2, also being the southeast corner of Lot B of Summersfield Plat 1, an official plat; thence west along the south line of said Lot B to its intersection with the southerly extension of the east line of Lot 20 of Summersfield Plat 1; thence north along said extension of the east line to the northernmost corner of said lot B, also being on the west line of Lot 12 of Broadway Business Park Plat 2, and also being on the east line of Summersfield Plat 1; thence north along the west line of Broadway Business Park Plat 2 to the northwest corner of Lot 4 of Broadway Business Park Plat 2, also being on the west line of the northeast quarter of the northwest quarter of Section 22, Township 79 North, Range 23 West of the 5th P.M.; thence north along the west line of the northeast quarter of the northwest quarter of Section 22, Township 79 North, Range 23 West of the 5th P.M. to the southeast corner of Lot 45 of Glenn Acres, an official plat; thence west along the south line of said Glenn Acres to the southwest corner of Lot 42 of Glenn Acres; thence south along the east line of Lot A of Glenn Acres to its intersection with the easterly extension of the south line of Lot 41 of Glenn Acres; thence west across said Lot A to the southeast corner of Lot 41 of Glenn Acres; thence west along the south line of said Lot 41 to the southwest corner of said Lot 41; thence north 100 feet along the west line of said Lot 41; thence west along a line 100 feet north of and parallel with the south line of Lot 40 of Glenn Acres to the east line of Lot 39 of Glenn Acres; thence south along the east line of said Lot 39 and its southerly extension to the south line of Lot 37 of Glenn Acres; thence west along the south line of said Lot 37 to the southwest corner of said Lot 37; thence south along the east line of Lot 4 of Glenn Acres to the southeast corner of said Lot 4, also being an easterly corner of Lot 1 of Summersfield Plat 2, an official plat; thence southerly along the southerly extension of the east line of Lot 4 of Glenn Acres 46.43 feet to an easterly corner of Lot 1 of Summerfield Plat 2; thence west 27.63 feet to an easterly corner of said Lot 1; thence south 60.00 feet to the southeast corner of said Lot 1; thence west along the south line of said Lot 1 to the southwest corner of said Lot 1, also being on the east

right-of-way line of East 46th Street, as presently established; thence south along the east right-of-way line of East 46th Street to its intersection with the easterly extension of a line 250 feet north of and parallel with the south line of the north 100 acres of the northeast quarter of Section 21, Township 79 North, Range 23 West of the 5th P.M.; thence west across East 46th Street along said easterly extension to a point on the west right-of-way line of East 46th Street, said point being 250 feet north of the south line of the said north 100 acres; thence west 200 feet along a line 250 feet north of and parallel with the south line of the said north 100 acres; thence south along a line parallel with and 200 feet west of the west right-of-way line of East 46th Street to the south line of the said north 100 acres; thence west along said south line of the north 100 acres to the east line of the west 2.9 acres of that portion of the north 100 acres of the northeast quarter of Section 21, Township 79 North, Range 23 West of the 5th P.M. lying south of Hubbell Avenue, said east line also described in the deed to Robert W. Livers and Julia E. Livers recorded in Polk County, Iowa Recorder's book 11733 pages 664 and 665; thence south 13.0 feet along the southerly extension of the said east line of the west 2.9 acres; thence west along a line 13.0 feet south of and parallel with the said south line of the said north 100 acres of said northeast quarter to a point on the east line of Lot 9 of Capitol Heights No. 2, an official plat, said point being 13.0 feet south of the northeast corner of said Lot 9; thence south along the east line of said Lot 9 to the southeast corner of said Lot 9; thence southwesterly along the southerly lines of Lots 9, 8 and 7 of Capitol Heights No. 2 to the southwesterly corner of said Lot 7, also being on the easterly right-of-way line of East 44th Street, as presently established; thence southeasterly along said easterly right-of-way line to its intersection with the easterly extension of the southerly line of Lot 6 of Capitol Heights No. 2; thence southwesterly along said easterly extension across East 44th Street to the southeast corner of said Lot 6; thence southwesterly along the southerly line of Lots 6 and 5 of Capitol Heights No. 2 to the southwest corner of said Lot 5, also being on the east line of Lot 25 of Capitol Heights Replat, an official plat; thence south along the said east line of said Lot 25 to an easterly corner of Parcel "G" of part of Lot 25 Capitol Heights Replat and part of the southeast quarter of the northeast quarter of Section 21, Township 79 North, Range 23 West of the 5th P.M. as recorded in Polk County, Iowa Recorder's book 13241 pages 282 and 283; thence south 47.82 feet to an easterly corner of said Parcel "G"; thence southeasterly 80.00 feet to the southeast corner of said Parcel "G"; thence southwesterly 174.11 feet along the southerly line of said Parcel "G" to the southernmost corner of said Parcel "G", also being on the easterly line of Lot 24 of Capitol Heights Replat; thence west along a line 152 feet north of and parallel with the south line of said Lot 24 to a point 236 feet west of the southeast corner of said lot 24; thence south to a point on the south line of said lot 24 which is 236 feet west of the southeast corner of said Lot 24 and also on the north right-of-way line of East Aurora Avenue, as presently established; thence south across East Aurora Avenue along the southerly extension of the previously described line to the south right-of-way line of East Aurora Avenue; thence west along the said south right-of -way line to its intersection with the easterly right-of-way line of East 43rd Court, as presently established; thence southerly along the easterly right-of-way line of East 43rd Court to its intersection with the easterly extension of the south line of Lot 48 of Capitol Heights Replat; thence west across East 43rd Court along the said easterly extension of the said south line to the southeast corner of said Lot 48; thence west along said south line to the southwest corner of said Lot 48, also being on the east line of Lot 18 of Capitol Heights Replat; thence south along the east line of said Lot 18 to the southeast corner of said Lot 18; thence west along the south line of Lots 18, 17, 16, 15 and 14 of Capitol Heights Replat to the southwest corner of said Lot 14, also being on the east right-of-way line of East 42nd Street, as presently established; thence south along the east right-of-way line of East 42nd Street to its intersection with the easterly extension of the south line of Lot 4 of Wilson Heights, an

official plat; thence west across East 42nd Street along the said easterly extension of the said south line to the southeast corner of said Lot 4; thence west along the south line of said Lot 4, the south line of Lot 7 of Katherine Place, an official plat, and the south line of Parcels "A" and "B" of a portion of lot 7 of Katherine Place, as recorded in Polk County, Iowa Recorder's book 7358 page 378 to a point on the south line of said Parcel "A", said point also being the easternmost corner of Lot C of Castalia Plaza, an official plat; thence southwesterly along the southeasterly line of said Lot C to the southernmost corner of said Lot C; then north along the west line of said Lot C to its intersection with the southeasterly right-of-way line of Avenue Frederick M. Hubbell, as presently established; thence southwesterly along the southeasterly line of Avenue Frederick M. Hubbell to its intersection with the southerly extension of the west line of Lot 5 of Katherine Place, an official plat; thence north across Avenue Frederick M. Hubbell along said southerly extension and along the west line of said Lot 5 to the northwest corner of said Lot 5; thence east along the north line of said Lot 5 and Lot 6 of Katherine Place to the northeast corner of said Lot 6, also being on the west right-of-way line of East 42nd Street, as presently established; thence north along the said west right-of-way line to the southwest corner of the north 100 acres of the northeast quarter of Section 21, Township 79 North, Range 23 West of the 5th P. M., thence north along the west line of the said north 100 acres to its intersection with the southerly line of the abandoned Interurban Railway; thence northeasterly along the southerly line of said abandoned railway, also being the southerly line of Brownstone Estates, an official plat, to its intersection with the west right-of-way line of East 46th Street, as presently established; thence north along said west right-of-way line to its intersection with the north right-of-way line of East Broadway Avenue, as presently established; thence easterly along the north right-of-way line of East Broadway Avenue and its continuation as the northwesterly right-of-way line of Hubbell Avenue to its intersection with the west line of the southeast quarter of the southwest quarter of said Section 15; thence north along said west line and its prolongation as the west line of the northeast quarter of the southwest quarter of said Section 15 and its prolongation as the west line of the southeast quarter of the northwest quarter of said Section 15 to the point of beginning.

WHEREAS, expenditures and indebtedness are anticipated to be incurred by the City of Des Moines, Iowa, in the future to finance said Urban Renewal Project; and

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the Urban Renewal Area as above described, in accordance with the provisions of Section 403.19 of the 2009 Code of Iowa, as amended.

NOW THEREFORE, BE IT ORDAINED, by the City Council of the City of Des Moines, Iowa, as follows:

Section 1. That the taxes levied on the taxable property in the Urban Renewal Area known as the NE Economic Development District Urban Renewal Area, legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District, Southeast Polk Community School District, and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. That portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said Urban Renewal Area upon the total sum of the assessed value of the taxable property in said Urban Renewal Area as shown on the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of property tax revenue shall be allocated to and when collected be paid into the Fund for the respective taxing district as taxes by or for said taxing district into which all other property taxes are paid.

Section 3. That portion of the taxes each year in excess of the base period taxes determined as provided in Section 2 of this Ordinance shall be allocated to and when collected be paid into a special tax increment fund hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of Sections 403.9 and 403.12 of the 2009 Code of Iowa, as amended, incurred by the City of Des Moines to finance or refinance in whole or in part the NE Economic Development District Urban Renewal Project, except that taxes for the regular and voter-approved physical plant and equipment levy of a school district imposed pursuant to Iowa Code § 298.2 and taxes for the payment of bonds and interest of each taxing district levying taxes on said Urban Renewal Area shall be collected against all taxable property within the Urban Renewal Area without any limitation as hereinabove provided.

Section 4. All taxes levied and collected upon the taxable property in said NE Economic Development District Urban Renewal Area shall be paid into the funds of the taxing districts as taxes by or for said taxing districts in the same manner as all other property taxes unless or until the total assessed valuation of the taxable property in said Urban Renewal Area shall exceed the total assessed value of the taxable property in said Urban Renewal Area as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to this Ordinance.

Section 5. At such time as the loans, advances, bonds and interest thereon and indebtedness of the City of Des Moines hereinabove in Section 3 referred to have been paid, all monies thereafter received from taxes upon the taxable property in the Urban Renewal Area known as the NE Economic Development District Urban Renewal Area shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property.

Section 6. The provisions of this Ordinance are intended and shall be construed so as to fully implement the provisions of Section 403.19 of the 2009 Code of Iowa, as amended, with respect to the division of taxes from property within the Urban Renewal Area as described above. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the Code of Iowa with reference to said Urban Renewal Area and the territory therein.

Section 7: This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

FORM APPROVED:

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Roger K. Brown
Assistant City Attorney

Passed October 11, 2010

ORDINANCE NO. 15,012

AN ORDINANCE AMENDING ORDINANCE NO. 8666, AS AMENDED BY ORDINANCE NOS. 8667, 9282 AND 13,810, ENTITLED:

"AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL REAL PROPERTY LOCATED WITHIN THE CAPITOL CENTER DEVELOPMENT AREA URBAN RENEWAL PROJECT IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO A SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BOND ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL REDEVELOPMENT PROJECT"

AND ALSO AMENDING ORDINANCE NO. 10,404, AS AMENDED BY ORDINANCE NOS. 11,971, 12,054, 12,070, 13,565 AND 13,810, ENTITLED:

"AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE CAPITOL-CENTER DEVELOPMENT AREA II URBAN RENEWAL PROJECT IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO THE SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BONDS ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL PROJECT"

AND ALSO AMENDING ORDINANCE NO. 11,419, AS AMENDED BY ORDINANCE NOS. 11,972, 12,054, 12,070, 13,565 AND 13,810, ENTITLED:

"AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE RIVERPOINT URBAN RENEWAL PROJECT IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO THE SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BOND ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL PROJECT"

TO CONSOLIDATE THE AREAS SUBJECT TO THE DIVISION OF REVENUE FROM TAXATION PURSUANT TO SUCH ORDINANCES.

WHEREAS, the City Council of the City of Des Moines, Iowa, has heretofore, in Ordinance No. 8666, provided for the division of revenue from taxes within the Capitol-Center Development Area Urban Renewal Project Area (hereinafter referred to as the "Capitol-Center Development Area I"), pursuant to Section 403.19 of the 1973 Code of Iowa, as amended; and

WHEREAS, by Ordinance No. 8667 the City Council amended Ordinance No. 8666 (regarding the Capitol-Center Development Area Urban Renewal Project) to delete therefrom reference to a specific dollar figure of assessed value of taxable property; and

WHEREAS, by Ordinance No. 9282 the City Council amended Ordinance No. 8666, as amended by Ordinance No. 8667 (regarding the Capitol-Center Development Area Urban Renewal Project) to provide that said ordinance remain in effect until certain obligations of the City have been paid or secured; and

WHEREAS, the City Council of the City of Des Moines, Iowa, has heretofore, in Ordinance No. 10,404, provided for the division of revenue from taxes within the Capitol-Center Development Area II Urban Renewal Project Area (hereinafter referred to as the "Capitol-Center Development Area II - Area 'A'"), pursuant to Section 403.19 of the 1983 Code of Iowa, as amended; and

WHEREAS, an additional area (hereinafter referred to as "Capitol-Center Development Area II - Area 'B'") was added to the Capitol-Center Development Area II Urban Renewal Project Area and by Ordinance No. 11,971, the City Council amended Ordinance No. 10,404 to expand the area subject to the division of revenue from taxes under Ordinance No. 10,404 to include the additional area; and

WHEREAS, the City Council of the City of Des Moines, Iowa, has heretofore, in Ordinance No. 11,419, provided for the division of revenue from taxes within the Riverpoint Urban Renewal Project Area (hereinafter referred to as the "Riverpoint - Area 'A'"), pursuant to Section 403.19 of the 1989 Code of Iowa, as amended; and

WHEREAS, an additional area (hereinafter referred to as "Riverpoint - Area 'B'") was added to

the Riverpoint Urban Renewal Project Area and by Ordinance No. 11,972 the City Council amended Ordinance No. 11,419 to expand the area subject to the division of revenue from taxes under Ordinance No. 11,419 to include the additional area; and

WHEREAS, by amendments to the Urban Renewal Plans for the Capitol-Center Development Area II Urban Renewal Project and the Riverpoint Urban Renewal Project, after notice and public hearing as prescribed by law, said Urban Renewal Plans were amended to provide for the consolidation and expansion of the two urban renewal projects to include additional areas (hereinafter referred to as "Capitol-Center Development Area II - Areas 'C' and 'D'", and "Riverpoint Area 'C'") in accordance with the Urban Renewal Plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project; and

WHEREAS, by Ordinance No. 12,054 the City Council amended Ordinance No. 10,404, as amended by Ordinance No. 11,971 (regarding the Capitol-Center Development Area II Urban Renewal Project) and also amended Ordinance No. 11,419 as amended by Ordinance No. 11,972 (regarding the Riverpoint Urban Renewal Project) to consolidate and expand the area subject to the division of revenue from taxes to be in accordance with the Urban Renewal Plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project; and,

WHEREAS, by the First Amendment to the Urban Renewal Plan for the Riverpoint Capitol-Center Development Area, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to add an additional area (hereinafter referred to as "Capitol-Center III - Area 'A'"); and

WHEREAS, by Ordinance No. 12,070 the City Council amended Ordinance No. 10,404, as amended by Ordinance Nos. 11,971 and 12,054 (regarding the Capitol-Center Development Area II Urban Renewal Project) and also amended Ordinance No. 11,419, as amended by Ordinance Nos. 11,972 and 12,054 (regarding the Riverpoint Urban Renewal Project) to expand the area subject to the division of revenue from taxes to be in accordance with the Urban Renewal Plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project; and,

WHEREAS, by the Fifth Amendment to the Urban Renewal Plan for the Riverpoint Capitol-Center Development Area, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to add an additional area (hereinafter referred to as the "Sixth Avenue Area"); and

WHEREAS, by Ordinance No. 13,565 the City Council amended Ordinance No. 10,404, as amended by Ordinance Nos. 11,971, 12,054 and 12,070 (regarding the Capitol-Center Development Area II Urban Renewal Project) and also amended Ordinance No. 11,419, as amended by Ordinance Nos. 11,972, 12,054, and 12,070 (regarding the Riverpoint Urban Renewal Project) to expand the area subject to the division of revenue from taxes to be in accordance with the amended Urban Renewal Plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project; and,

WHEREAS, by amendments to the Urban Renewal Plans for the Riverpoint Capitol-Center Development Area Urban Renewal Project and the Capitol-Center Development Area Urban Renewal Project, after notice and public hearing as prescribed by law, said Urban Renewal Plans were amended to provide for the consolidation of the two urban renewal projects in accordance with the Urban Renewal Plan for the combined urban renewal projects to be known as the Metro Center Urban Renewal Project; and

WHEREAS, by Ordinance No. 13,810 the City Council amended Ordinance No. 8666, as amended by Ordinance Nos. 8667 and 9282 (regarding the Capitol-Center Development Area Urban Renewal Project), and amended Ordinance No. 10,404, as amended by Ordinance Nos. 11,971, 12,054, 12,070 and 13,565 (regarding the Capitol-Center Development Area II Urban Renewal Project) and also amended Ordinance No. 11,419, as amended by Ordinance Nos. 11,972, 12,054, 12,070 and 13,565 (regarding the Riverpoint Urban Renewal Project) to consolidate and expand the area subject to the division of revenue from taxes to be in

accordance with the Urban Renewal Plan for the combined Metro Center Urban Renewal Project; and

WHEREAS, by the 10th Amendment to the Urban Renewal Plan for the Metro Center Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to add an additional area (hereinafter referred to as the "River Hills 2011 Area"); and

WHEREAS, the following enactment is necessary to accomplish the objectives described above and in the Urban Renewal Plan for the Metro Center Urban Renewal Project; NOW, THEREFORE,

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA AS FOLLOWS:

Section 1. That Ordinance Nos. 8666, 8667, 9282, 10,404, 11,419, 11,971, 11,972, 12,054, 12,070, 13,565 and 13,810 are hereby amended to read as follows:

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved August 2, 1973, adopted an Urban Renewal Plan for an area known as the Capitol-Center Development Area Urban Renewal Project, which original project area (hereinafter designated Capitol-Center Development Area I) includes the lots and parcels within the boundaries as follows:

CAPITOL-CENTER DEVELOPMENT AREA I

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the northerly right-of-way line of Grand Avenue and the westerly right-of-way line of Eighth Street, thence south along the westerly right-of-way line of Eighth Street to its intersection with the centerline of the Des Moines Union Railroad mainline; thence east along the centerline of the Des Moines Union Railroad mainline to its intersection with the easterly right-of-way line of East Seventh Street; thence north along the easterly right-of-way line of East Seventh Street to its intersection with the southerly right-of-way line of the alley south of Locust Street; thence east along the southerly right-of-way line of the alley south of Locust Street to its intersection with the westerly property line of the State Capitol grounds; thence north along the westerly property line of the State Capitol grounds to its intersection with the southerly right-of-way line of Locust Street; thence west along the southerly right-of-way line of Locust Street to its intersection with the easterly right-of-way line of Pennsylvania Avenue; thence north along the easterly right-of-way line of Pennsylvania Avenue to its intersection with the southerly right-of-way line of Des Moines Street; thence west along the southerly right-of-way line of Des Moines Street to its intersection with the westerly right-of-way line of East First Street; thence north along the westerly right-of-way line of East First Street to its intersection with the southerly boundary line of the River Hills Urban Renewal Project; thence west and south along the southerly boundary line of the River Hills Urban Renewal Project to its intersection with the northerly right-of-way line of Grand Avenue; thence west along the northerly right-of-way line of Grand Avenue to its intersection with the westerly right-of-way line of Eighth Street, which is the point of beginning.

and

WHEREAS, Capitol Center Development Area I may also be described as follows:

Capitol-Center Development Area I
(alternate description)

Beginning at the intersection of the northerly right-of-way line of Grand Avenue and the westerly right-of-way line of Eighth Street, thence southerly along said westerly right-of-way line of Eighth Street to the center line of the former Des Moines Union Railroad, now the Norfolk & Southern Railroad; thence easterly along said center line to the easterly right-of-way line of East Seventh Street; thence northerly along said easterly right-of-way line to the southerly right-of-way line of the 10-foot wide east-west alley South-East Locust Street; thence easterly along said southerly line to the

westerly property line of the State Capitol grounds, also being the easterly line of the north-south alley in Block H, Griffith's Addition to East Fort Des Moines, an official plat; thence northerly along said easterly line to the southerly right-of-way line of East Locust Street; thence westerly along said southerly right-of-way line to the easterly right of way line of Pennsylvania Avenue; thence northerly along said easterly line to the southerly right-of-way line of Des Moines Street; thence westerly along said southerly line to the westerly right-of-way line of East First Street; thence northerly along said westerly line 190 feet; thence west along a line perpendicular to the east line of East First Street to the west property line of the Armory; thence south along said west property line to the south line of said Des Moines Street extended; thence west along said south line extended to the east bank of the Des Moines River; thence south along said east bank to the northerly right-of-way line of East Grand Avenue, thence westerly along said northerly line to the westerly right-of-way line of Eighth Street and the point of beginning.

and

WHEREAS, by Ordinance No. 8667 the City Council amended Ordinance No. 8666 (regarding the Capitol-Center Development Area Urban Renewal Project) to delete therefrom reference to a specific dollar figure of assessed value of taxable property; and

WHEREAS, by Ordinance No. 9282 the City Council amended Ordinance No. 8666, as amended by Ordinance No. 8667 (regarding the Capitol-Center Development Area Urban Renewal Project) to provide that said ordinance remain in effect until certain obligations of the City have been paid or secured; and

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved December 19, 1983, adopted an Urban Renewal Plan for an area known as Capitol-Center Development Area II Urban Renewal Project, which original project area (herein designated as "Capitol-Center Development Area II - Area 'A'") includes the lots and parcels within the boundaries as follows:

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "A"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the northerly right-of-way line of Grand Avenue and the easterly right-of-way line of Second Avenue, thence west along the northerly right-of-way line of Grand Avenue to its intersection with the westerly right-of-way line of Eighth Street, thence south along the westerly right-of-way line of Eighth Street to its intersection within the center line of the old Rock Island Railroad mainline, thence west along the center line of the old Rock Island Railroad mainline to its intersection with the easterly right-of-way line of Eleventh Street, thence north along the easterly right-of-way line of Eleventh Street to the point of intersection with the northerly right-of-way line of High Street, thence east from said point along the northerly right-of-way line of High Street to the intersection with the westerly right-of-way line of Tenth Street, thence north along the westerly right-of-way line of Tenth Street to the intersection of the southerly right-of-way line of Woodland Avenue, thence east along the projection of the southerly right-of-way line of Woodland Avenue to the point of intersection with the easterly right-of-way line of Tenth Street, thence north from said point along the easterly right-of-way line of Tenth Street to the intersection of the southerly right-of-way line of Pleasant Street, thence east along the southerly right-of-way line of Pleasant Street to the point of intersection with the projection of the west line of Lot 12, Methodist Plat No. 1, thence northerly along said projected west line of said Lot 12 to the northerly right-of-way line of Pleasant Street, thence east along the northerly right-of-way line of Pleasant Street to the intersection of the westerly right-of-way line of Ninth Street, thence north along the westerly right-of-way line of Ninth Street to its intersection with a point twenty (20) feet south of the

north line of said Lot 12 of Methodist Plat No. 1, thence east along a projection of a line twenty (20) feet south of and parallel to the north line of said Lot 12 to the point of intersection of the easterly right-of-way line of Ninth Street, thence north along the easterly right-of-way line of Ninth Street to the intersection of the northerly right-of-way line of Keosauqua Way, thence northerly and westerly along said northerly right-of-way line of Keosauqua Way to the intersection with the southerly right-of-way line of Crocker Street, thence east along the southerly right-of-way line of Crocker Street to the intersection of the easterly right-of-way line of Ninth Street, thence north along the easterly right-of-way line of Ninth Street to the intersection of the northerly right-of-way line of School Street, thence east along the northerly right-of-way line of School Street to the intersection of the easterly right-of-way line of Sixth Avenue, thence south along the easterly right-of-way line of Sixth Avenue to the intersection with the northerly right-of-way line of Crocker Street, thence east along the northerly right-of-way line of Crocker Street to the intersection of the westerly right-of-way line of Fifth Avenue, thence north along the westerly right-of-way line of Fifth Avenue to the point of intersection of the westerly projection of the north line of Lot 1, Block F, River Hills Plat 1, thence east along the projected north line of said Lot 1 to the intersection of the easterly right-of-way line of Third Street, thence south along the easterly right-of-way line of Third Street to the intersection of the northerly right-of-way line of Keosauqua Way, thence east along the northerly right-of-way line of Keosauqua Way to the point of intersection with the easterly right-of-way line of Second Avenue, thence south from said point along the easterly right-of-way line of Second Avenue to the point of beginning.

and

WHEREAS, by Amendment to said Urban Renewal Plan, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted for an extended area consisting of the Capitol-Center Development Area II - Area "A" combined with the Capitol-Center Development Area II - Area "B", which includes the lots and parcels within the boundaries as follows:

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "B"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the north right-of-way line of School Street and the east right-of-way line of 9th Street; thence southerly along the northerly extension of and the east right-of-way line of 9th Street and the southerly extension of said right-of-way line to the south right-of-way line of Crocker Street; thence westerly along the westerly extension and the south right-of-way line of Crocker Street to the east right-of-way line of Keosauqua Way; thence northwesterly along said east right-of-way line of Keosauqua Way to the east right-of-way line of the Keosauqua/I-235 Intersection; thence north along said east right-of-way line of the Keosauqua/I-235 Intersection; thence east along the south right-of-way line of the Keosauqua/I-235 Intersection to the west right-of-way line of 12th Place; thence north along said west right-of-way line and the northerly extension of the west right-of-way line of 12th Place to the north right-of-way line of School Street; thence east along the north right-of-way line of School Street to the point of beginning.

and

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved December 18, 1989, adopted an Urban Renewal Plan for an area known as Riverpoint Urban Renewal Project, which original project area (hereinafter designated Riverpoint - Area "A") includes the lots and parcels within the boundaries as follows:

RIVERPOINT - AREA "A"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the southerly right-of-way line of East Court Avenue and the

easterly right-of-way line of East 7th Street; thence east along the southerly right-of-way line of East Court Avenue to its intersection with the east right-of-way line of vacated East 8th Street; thence southerly along the east right-of-way of vacated 8th Street to a point 47.0 feet south of the south right-of-way line of East Court Avenue; thence southeasterly along a straight line to the northwest corner of Lot 1, Block 22, official plat of Lots 3 through 8, Town of Des Moines, an official plat; thence southeasterly along a straight line to a point on the east right-of-way line of vacated East 11th Street, said point being 67.35 feet south of the northwest corner of Lot 3, Block 23, official plat of Lots 3 through 8, Town of Des Moines, an official plat; thence easterly along a straight line to a point on the east lot line and 3.0 feet north of the southwest corner of Lot 8, of said Block 23; thence southerly to the southwest corner of said Lot 8; thence easterly to the southeast corner of said Lot 8; thence southeasterly along a straight line to the northwest corner of Lot 9, of the official plat of Lot 1, of the official plat of the east 1/2 of the southeast 1/4 of Section 3, Township 78 North, Range 24 West of the 5th P.M. the south 236.0 feet of the west 1/2 of Lot 31, Brooks and Company's Addition, an official plat; thence southerly to the southwest corner of said Lot 9; thence easterly along the south lot lines of Lots 9, 10, 30, 31 and 55 of said official plat of said Lot 1 to its intersection with the east line of the southeast 1/4 of said Section 3; thence southerly along said east line of said Section 3 and along the east line of the northeast 1/4 of Section 10, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the northeasterly projection of the south right-of-way line of Scott Street; thence southwesterly along said projected south right-of-way line of Scott Street and along the south right-of-way line of Scott Street to its intersection with the east bank of the Des Moines River; thence northwesterly along the east bank of the Des Moines River to the point of its intersection with the southerly side of the Scott Street Bridge; thence southwesterly along the southerly side of the Scott Street Bridge to a point of its intersection with the west bank of the Des Moines River; thence southeasterly along said west bank of the Des Moines River to the point of its intersection with the northeasterly projection of the southeasterly right-of-way line of Southeast 1st Street; thence southwesterly along said projected southeasterly right-of-way line of Southeast 1st Street and along the southeasterly right-of-way line of Southeast 1st Street to a point of its intersection with the center line of the Chicago and Great Western Railroad right-of-way; thence southwesterly along said center line of the Chicago and Great Western Railroad right-of-way to a point of its intersection with the easterly right-of-way line of Southwest 1st Street; thence southwesterly along the easterly right-of-way line of Southwest 1st Street to its intersection with the southerly right-of-way line of Indianola Avenue; thence northwesterly and westerly along the south right-of-way line of Indianola Avenue and along the southerly right-of-way line of Clifton Avenue, to its intersection with the southerly projection of the westerly right-of-way line of Southwest 7th Street; thence northwesterly along said southerly projected westerly right-of-way line of Southwest 7th Street and the westerly right-of-way line of Southwest 7th Street to its intersection with the southerly bank of the Raccoon River; thence southwesterly and westerly along said south bank of the Raccoon River to its intersection with the south line of Government Lot 11, West of the Raccoon River of Section 8, Township 78 North, Range 24 West of the 5th P.M. an official plat; thence westerly along south line of said Government Lot 11 and the westerly projection of the south line of said Government Lot 11 to a point 33 feet west of the center line of said Section 8; thence northerly and 33.0 feet west of and parallel with the center line of said Section 8 to its intersection with the south line of Lot 1, of the official plat of the northwest 1/4 of said Section 8; thence southeasterly along the south line of said Lot 1, 75.0 feet West of the east line of said Lot 1; thence northerly and 75.0 feet west of and parallel with the east line of said Lot 1, 225.0 feet south of the north line of said Lot 1; thence westerly 18.0 feet and 225.0 feet south of the north line of said Lot 1; thence northerly 225.0 feet and 93.0 feet west of the northeast corner of said

Lot 1 to the north line of said Lot 1 and the south right-of-way line of Grand Avenue; thence northwesterly to the north right-of-way line of Grand Avenue which is 40.0 feet north of and 100.0 feet west of the southeast corner of Lot 9, of the official plat of the southwest 1/4 of Section 5, Township 78 North, Range 24 West of the 5th P.M., an official plat; thence northerly along a line 100.0 feet west of and parallel with the east line of said Lot 9 and along the northerly projection of said line to the north right-of-way line of Ingersoll Avenue; thence easterly along the north right-of-way line of Ingersoll Avenue and the easterly projected north right-of-way line of Ingersoll Avenue and its projections to its intersection with the northwesterly projection of the easterly right-of-way line of 16th Street; thence southeasterly along said northwesterly projected easterly right-of-way line of 16th Street and the easterly right-of-way line of 16th Street to its intersection with the north right-of-way line of Falcon Drive thence easterly along the north right-of-way line of Falcon Drive and its easterly projections to its intersection with the northwesterly projection of the east right-of-way line of 13th Street; thence southeasterly along said northwesterly projected east right-of-way line of 13th Street and the east right-of-way of 13th Street to its intersection with the south right-of-way line of Cherry Street; thence easterly along the south right-of-way line of Cherry Street and its projected south right-of-way line to its intersection with the east right-of-way line of 11th Street; thence southeasterly along the east right-of-way line of 11th Street to its intersection with the center line of the Iowa Interstate Railroad Mainline (formerly known as Rock Island Railroad); thence easterly along the center line of the Iowa Interstate Railroad Mainline (formerly known as Rock Island Railroad) to its intersection with the southerly projection of the westerly right-of-way line of 8th Street; thence northerly along the southerly projection of the westerly right-of-way line of 8th Street to the westerly right-of-way line of 8th Street to its intersection within the center line of the Des Moines Union Railroad Mainline; thence easterly along the center line of the Des Moines Union Railroad Mainline to its intersection with the easterly right-of-way line of East 7th Street; thence northerly along the easterly right-of-way line of East 7th Street to its intersection with the southerly right-of-way line of East Court Avenue, to the point of beginning.

and

WHEREAS, by Amendment to said Urban Renewal Plan, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted for an extended area consisting of Riverpoint - Area "A" combined with Riverpoint - Area "B", which includes the lots and parcels within the boundaries as follows:

RIVERPOINT - AREA "B"

That part of the City of Des Moines, Polk County, Iowa, described as follows:

Bounded on the north by the south right-of-way Line of East Scott Street, bounded on the east by the center line of Southeast 14th Street, bounded on the south and west by the right (south) bank of the Des Moines River.

and

WHEREAS, by Amendment to the Urban Renewal Plans for the Riverpoint Urban Renewal Project and the Capitol-Center Development Area II Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plans were amended and adopted to provide for the consolidation and expansion of the two Projects as set forth in the Urban Renewal Plan for the Riverpoint Capitol-Center Development Area Urban Renewal Plan; and

WHEREAS, the Riverpoint Capitol-Center Development Area Urban Renewal Area originally consisted of Capitol-Center Development Area II - Areas "A" and "B", combined with Riverpoint - Areas "A" and "B", all as described above, and expanded to include Capitol-Center Development Area II - Areas "C" and "D" and Riverpoint - Area "C", described as follows:

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "C"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the westerly right-of-way line of 3rd Street and the south line of Lot G. River Hills Plat 1, an official plat; thence easterly along the southerly line of said Lot G to its intersection with the right (west) bank of the Des Moines River; thence south along said right bank to its intersection with the northerly right-of-way line of Grand Avenue extended easterly; thence westerly along the northerly right-of-way of Grand Avenue to its intersection with the east right-of-way line of 2nd Avenue extended southerly; thence northerly along the east right-of-way line of 2nd Avenue to its intersection with the easterly extension of the north right-of-way line of Keosauqua Way; thence west along the easterly extension of the north right-of-way line of Keosauqua Way to the west right-of-way line of 3rd Street; thence north along the west right-of-way line of 3rd Street to the point of beginning.

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "D"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Block E, Lot M (except the east 80 feet thereof) and that part of Lot G South of the north lot line of said Lot M extended west, River Hills Plat 1, an official plat

RIVERPOINT - AREA "C"

That part of the City of Des Moines Polk County, Iowa, described as follows:

Beginning at the intersection of the southerly right-of-way line of the Chicago Great Western Railroad with the easterly right-of-way line of Southeast 1st Street; thence southerly along the easterly right-of-way line of Southeast 1st Street to the southerly right-of-way line of East Edison Street; thence easterly along the southerly right-of-way line of East Edison Street to the westerly right-of-way line of Southeast 2nd Street; thence southerly along the westerly right-of-way line of Southeast 2nd Street to the westerly extension of the southerly right-of-way line of the east/west alley lying south of and adjoining Lots 1 through 6, inclusive, Block 6, Clifton Heights, an official plat; thence easterly along the westerly extension of the southerly right-of-way line of said east/west alley to the westerly right-of-way line of Southeast 2nd Court; thence southerly along the westerly right-of-way line of Southeast 2nd Court and the westerly line of Lot 2, Millsap Subdivision, an official plat, to the north line of Lot 6, official plat of the west 1/2 of Section 10, Township 78 North, Range 24 West of the 5th P.M.; thence west along the north line of said Lot 6 extended westerly to the southerly right-of-way line of East Indianola Avenue; thence westerly along the southerly right-of-way line of East Indianola Avenue to its intersection with the southerly extension of the westerly right-of-way line of Southwest 1st Street; thence northerly along the westerly right-of-way line of Southwest 1st Street to the southerly right-of-way line of the Chicago Great Western Railroad; thence northeasterly along the southerly right-of-way line of the Chicago Great Western Railroad to the point of beginning.

and

WHEREAS, by the First Amendment to the Urban Renewal Plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted for an extended area consisting of the original Riverpoint Capitol-Center Development Area Urban Renewal Project Area combined with Capitol-Center III - Area "A", which includes the lots and parcels within the boundaries as follows:

CAPITOL CENTER III - AREA "A"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the northerly right-of-way line of Keosauqua Way with the east right-of-way line of 9th Street, extended north; thence south along the east right-of-way

line of 9th Street and its northerly extension to the south right-of-way line of Chestnut Street extended east; thence west along the extended south right-of-way line of Chestnut Street to the west right-of-way line of 9th Street; thence South along the west right-of-way line of 9th Street to the north right-of-way line of Pleasant Street; thence west along the north right-of-way line of Pleasant Street to the west lot line of Lot 12, Methodist Plat No. 1, an official plat; thence south along the extended west lot line of said Lot 12 to the center line of Pleasant Street; thence West along the center line of Pleasant Street to the east right-of-way line of 10th Street extended north; thence south along the east right-of-way line of 10th Street and its northerly extension to the south right-of-way line of Woodland Avenue extended east; thence West along the easterly extension of the south right-of-way line of Woodland Avenue to the west right-of-way line of 10th Street; thence south along the west right-of-way line of 10th Street to the north right-of-way line of High Street; thence west along the north right-of-way line of High Street to the east right-of-way line of 11th Street extended north; thence south along the east right-of-way line of 11th Street and its northerly extension to the south right-of-way line of Cherry Street; thence west along the south right-of-way line of Cherry Street and its easterly extension to the east right-of-way line of 13th Street extended south; thence north along the east right-of-way line of 13th Street and its southerly extension to the north right-of-way line of Falcon Drive extended east; thence west along the north right-of-way line of Falcon Drive and its easterly extension to the east right-of-way line of 16th Street; thence north along the east right-of-way line of 16th Street to the north right-of-way line of Ingersoll Avenue; thence west along the north right-of-way line of Ingersoll Avenue and its westerly extension to the center line of Martin Luther King Jr. Parkway (formerly Harding Road); thence north along the center line of Martin Luther King Jr. Parkway to the north right-of-way line of Woodland Avenue extended west; thence east along the north right-of-way line of Woodland Avenue and its westerly and easterly extensions to the center line of 16th Street; thence north along the center line of 16th Street to the north lot line of Lots 18 and 7 Sherman Place, an official plat extended west; thence east along the north lot line of said Lots 18 and 7 and their westerly extension to the west right-of-way line of 15th Street; thence north along the west right-of-way line of 15th Street to the north right-of-way line of Center Street extended west; thence east along the north right-of-way line of Center Street; and its westerly extension, said line also being the south lot line of Lots 1 and 2, Oakridge Plat No. 1, an official plat, and Lots 2, 3 and 6, Oakridge Plat No. 3, an official plat to the southeasterly corner of said Lot 6; thence north along the east lot line of said Lot 6 and the east lot line of Lot 5, in said Oakridge Plat No. 3 to the northeasterly corner of said Lot 5; thence northwesterly along the northerly line of said Oakridge Plat Nos. 1 and 3 to the northeasterly corner of Lot 6, in said Oakridge Plat No. 1, said point also being on the south right-of-way line of Interstate 235; thence in a straight line easterly to the northwest corner of Lot K, Grass Roots 1 an official plat 1; thence south along the west line of Lots K and N, Grass Roots I to the north lot line of Lot 7, Block 7, Grass Roots 1; thence west along the north lot line of said Lot 7 to the northwest corner of said Lot 7; thence south along the west lot line of said Lot 7 to the northerly right-of-way line of Keosauqua Way; thence southeasterly along the northerly right-of-way line of Keosauqua Way to the point of beginning.

and

WHEREAS, by the Fifth Amendment to the Urban Renewal Plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted for an extended area consisting of the original Riverpoint Capitol-Center Development Area Urban Renewal Project Area combined with Capitol-Center III - Area "A", and expanded to include the Sixth Avenue Area, which includes the lots and parcels within the boundaries as follows:

SIXTH AVENUE AREA

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the Northeast corner of Lot 1, Block 10, Polk County Homestead and Trust Co.'s Addition, an official plat, of the southwest 1/4 of the northeast 1/4 of Section 34, Township 79 North, Range 24 West of the 5th P.M., also being on the south right-of-way line of Franklin Avenue and the west right-of-way line of Seventh Street; thence east along the south right-of-way line of Franklin Avenue and its easterly extension to the east right-of-way line of Oakland Avenue, being the northwest corner of Lot 36, Oakland Park, an official plat; thence south along the east right-of-way line and its southerly extension to the south right-of-way line of College Avenue and being 5.0 feet west of the northwest corner of Lot 63, Bates Addition, an official plat; thence west along the south right-of-way line and its westerly extension to the east right-of-way line of Fifth Avenue, being the northwest corner of Lot 25 of said Bates Addition; thence south along the east right-of-way line of Fifth Avenue and its southerly extension to the south right-of-way line of University Avenue; thence northwesterly along the south right-of-way line of University Avenue to the east right-of-way line of Sixth Avenue; thence south along the east right-of-way line of Sixth Avenue and its southerly extension to the north right-of-way line of School Street; thence west along the easterly extension of the north right-of-way line and the north right-of-way line of School Street to the west right-of-way line of Seventh Street; thence north along the west right-of-way line of Seventh Street to a point being 505.37 feet south of the south right-of-way line of University Avenue also being the south line of the north 7.7 feet of Lot 5 of the official plat of the northeast 1/4 of the northwest 1/4 of Section 4, Township 78 North, Range 24 West of the 5th PM.; thence west along a straight line of the east right-of-way line of 8th Street also being 6.4 feet north of the south line of Lot 9 of the official plat of said Section 4; thence north along the east right-of-way line of 8th Street to the south right-of-way line of University Avenue, also being the northwest corner of Lot 48, North Park, an official plat; thence west along the south right-of-way line of University Avenue and it westerly extension to the west right-of-way line of 9th Street; thence north along the west right-of-way line of 9th Street and its northerly extension to the intersection of the westerly extension of the north right-of-way line of Indiana Avenue; thence east along the westerly extension of the north right-of-way line of Indiana Avenue to the southwest corner of Lot 10 of said North Park; thence continuing east along the north right-of-way line of Indiana Avenue and it easterly extension to the east right-of-way line 8th Street being the southwest corner of Lot 56 of said North Park; thence north along the east right-of-way line of 8th Street and its northerly extension to the north line of Forest Avenue, being the southeast corner of Lot 1, Butt's Subdivision, an official plat; thence east along the north right-of-way line of Forest Avenue and its easterly extension to the west right-of-way line of Seventh Street, being the southeast corner of Lot 46 of the official plat of Government Lot 3 of Section 34, Township 79 North Range 24 West of the 5th P.M.; thence north along the west right-of-way line of Seventh Street to the northeast corner of Lot 13, E.M. Kelsey's Subdivision, an official plat; thence northwesterly to the northwest corner of Seventh Street and Clark Street, being on the north right-of-way line of Clark Street and the west right-of-way line of Seventh Street; thence north along the west right-of-way line of Seventh Street and its northerly extension to the south right-of-way line of Franklin Avenue and the point of beginning, all now included in the forming a part of the City of Des Moines, Polk County, Iowa.

WHEREAS, by amendments to the Urban Renewal Plans for the Riverpoint Capitol-Center Development Area Urban Renewal Project and the Capitol-Center Development Area Urban Renewal Project, after notice and public hearing as prescribed by law, said Urban Renewal Plans were amended to provide for the consolidation of the two urban renewal projects in accordance with the Urban Renewal Plan for the combined urban renewal projects to be known as the Metro Center Urban Renewal Project; and

WHEREAS, by the Tenth Amendment to the Urban Renewal Plan for the Metro Center Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted for an area consisting of the Capitol Center Development Area I combined with Capitol-Center Development Area II - Areas "A", "B", "C" and "D"; Riverpoint - Areas "A", "B" and "C"; Capitol-Center III - Area "A"; and Sixth Avenue Area, extended to include the River Hills 2011 Area, which includes the lots and parcels within the boundaries as follows:

RIVER HILLS 2011 AREA

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the northeast corner of the south half of Lot 11 of Block 21 of Central Place, an Official Plat, being on the north right-of-way line of University Avenue; thence east along a line parallel with the south line of the Southwest Quarter of Section 35, Township 79 North, Range 24 West of the 5th Principal Meridian (P.M.) to its intersection with the northerly extension of the east right-of-way line of East 6th Street; thence southerly along the east right-of-way line of East 6th Street and its northerly extension to its intersection with the south right-of-way line of vacated Filmore Street; thence west along the south right-of-way line of vacated Filmore Street to the northwest corner of Lot 5 of River Hills Plat Four, an Official Plat, said northwest corner also being on the easterly line of Lot 6 of River Hills Plat Four; thence southerly along the easterly line of said Lot 6 to the northerly right-of-way line of Interstate Highway 235, as presently established; thence southerly to the northwest corner of Lot 1 of Block D of River Hills Plat Three, an Official Plat, also being on the southerly right-of-way line of Interstate highway 235; thence southeasterly along the northeasterly and easterly line of said Lot 1 and its continuation as the westerly right-of-way line of East 6th Street to its intersection with the southerly right-of-way line of Des Moines Street; thence westerly along the southerly right-of-way line of Des Moines Street, also being the north boundary of the Capitol-Center Urban Renewal Sub-Area of the Metro Center Urban Renewal Area, to its intersection with the westerly right-of-way line of East 1st Street, now known of Robert D. Ray Drive; thence north along the westerly right-of-way line of Robert D. Ray Drive to its intersection with the southerly line of Lot 5 of Block D of said River Hills Plat Three, also being on the southerly boundary of River Hills Urban Renewal project; thence west along a line perpendicular to the westerly right-of-way line of Robert D. Ray Drive to its intersection with the east bank of the Des Moines River; thence south along the east bank of the Des Moines River to its intersection with the northerly right-of-way line of Grand Avenue; thence west along the northerly right-of-way line of Grand Avenue to its intersection with the west bank of the Des Moines River; thence north along the west bank of the Des Moines River to its intersection with the southerly line of Lot G of River Hills Plat One, an Official Plat, also being on the southerly right-of-way line of Interstate Highway 235; thence westerly along the southerly line of said Lot G (Interstate Highway 235) to the northeast corner of Lot O (2nd Avenue) of said River Hills Plat One; thence northeasterly to the southeast corner of Lot 3 of River Hills Plat Five, an official plat, also being on the northerly right-of-way line of Interstate Highway 235; thence northeasterly along the easterly line of said Lot 3 to the southeast corner of Lot A (Illinois Street) of said River Hills Plat Five; thence northwesterly and northeasterly along the westerly line of said Lot A to the northwest corner of said Lot A, being on the south right-of-way line of University Avenue as presently established; thence east along the north line of said Lot A to its intersection with the southerly extension of the east line of Block 21 of said Central Place; thence north along the east line of said Block 21 and its southerly extension to the point of beginning.

WHEREAS, the continuing needs of redevelopment of the consolidated Metro Center Urban Renewal Project are such as to require application of the incremental tax resources of the consolidated urban renewal project; and

WHEREAS, the Metro Center Urban Renewal Project Area consists of Capitol Center Development Area I combined with Capitol-Center Development Area II - Areas "A", "B", "C" and "D"; Riverpoint - Areas "A", "B" and "C"; Capitol-Center III - Area "A"; Sixth Avenue Area; and River Hills 2011, all as described above; and

WHEREAS, indebtedness has been incurred by the City of Des Moines, Iowa, and additional indebtedness is anticipated to be incurred in the future to finance said Urban Renewal Project; and

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the continuation of the division of revenue from taxation in the Metro Center Urban Renewal Project Area, as above described in accordance with the provisions of Section 403.19 of the 2011 Code of Iowa, as amended; NOW, THEREFORE,

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA AS FOLLOWS:

Section 1. That the taxes levied on the taxable property in the Urban Renewal Project Area known as the Metro Center Urban Renewal Project Area, consisting of the sub-areas known as Capitol-Center Development Area I; Capitol-Center Development Area II - Areas "A", "B", "C", and "D"; Riverpoint - Areas "A", "B", and "C"; Capitol-Center III - Area "A"; Sixth Avenue Area; and River Hills 2011 Area, each of which is legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. For purposes of this Ordinance, "Base Period Taxes" are that portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in the Metro Center Urban Renewal Project Area upon the total sum of the "Base Valuations" of each of the sub-areas within the Metro Center Urban Renewal Project Area. The "Base Valuations" are the assessed values of the taxable property in each sub-area of said Urban Renewal Project Area as shown on the assessment rolls following:

With respect to the Capital-Center Development Area I, the assessment roll last equalized prior to the effective date of Ordinance No. 8666, being the assessment roll for January 1, 1972;

With respect to the Capital-Center Development Area II-Area "A", the assessment roll last equalized prior to the effective date of Ordinance No. 10,404, being the assessment roll for January 1, 1982;

With respect to the Capital-Center Development Area II-Area "B", the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 11,971, being the assessment roll for January 1, 1992;

With respect to the Riverpoint-Area "A", the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 11,419, being the assessment roll for January 1, 1989;

With respect to the Riverpoint-Area "B", the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 11,972, , being the assessment roll for January 1, 1992;

With respect to the Capital-Center Development Area II-Areas "C" and "D" and the Riverpoint-Area "C", the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 12,054, being the assessment roll for January 1, 1992;

With respect to the Capitol-Center III - Area "A", the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 12,070, being the assessment roll for January 1, 1992;

With respect to the Sixth Avenue Area, the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 13,565, being the assessment roll for January 1, 1997; and,

With respect to the River Hills 2011 Area, the assessment roll as of January 1 of the calendar preceding the effective date of this Ordinance, being the assessment roll for January 1, 2010.

The "Base Period Taxes" for each of the sub-areas within the Metro Center Urban Renewal Project Area shall be computed using the total assessed value of the taxable property within each such sub-area as shown on the assessment rolls applicable to each sub-area as described above. "Base Period Taxes" shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by and for said taxing district into which all other property taxes are paid.

Section 3. For purposes of this Ordinance, "Incremental Taxes" are that portion of the taxes each year in excess of the "Base Period Taxes" for the combined Metro Center Urban Renewal Project Area, determined as provided in Section 2 of this Ordinance. "Incremental Taxes" shall be allocated to and when collected be paid into a special fund of the City of Des Moines, Iowa, hereafter to be maintained to pay the principal of and interest on loans, monies advanced to, and indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under authority of Sections 403.9 and 403.12 of the 2011 Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance, in whole or in part, urban renewal project activities undertaken within the Metro Center Urban Renewal Project Area, except that taxes for the regular and voter-approved physical plant and equipment levy of a school district imposed pursuant to Section 298.2, but only to the extent authorized in Section 403.19(2), and taxes for the payment of bonds and interest of each taxing district levying taxes in the Metro Center Urban Renewal Project Area shall be collected against all taxable property within the said Project Area without any limitations as hereinabove provided.

Section 4. At such time as the loans, monies advanced and bonds of the City of Des Moines and interest thereon, hereinabove referred to, have been paid, all monies thereafter received from taxes upon the taxable property in the Urban Renewal Project Area known as the Metro Center Urban Renewal Project Area shall be paid into the funds for the respective taxing districts in the same manner as "Base Period Taxes".

Section 5. All ordinances or parts of ordinances in conflict with the provisions of this Ordinance are hereby repealed. The provisions of this Ordinance are intended and shall be construed so as to continue the division of taxes from property within each of the sub-areas of the combined Metro Center Urban Renewal Project Area as described above and to fully implement the provisions of Section 403.19 of the 2011 Code of Iowa, as amended, with respect thereto. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the 2011 Code of Iowa, as amended, with reference to the combined Metro Center Urban Renewal Project Area and the territory contained therein. In the event of any overlap between the boundaries of the Metro Center Urban Renewal Project Area and any other designated urban renewal area, such overlapping area is hereby severed from such other urban renewal area and shall be considered to be exclusively within the Metro Center Urban Renewal Project Area.

Section 6. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

Section 2. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

APPROVED AS TO FORM:

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Roger K. Brown
Assistant City Attorney

ORDINANCE NO. 15,072

AN ORDINANCE AMENDING ORDINANCE NO. 13,576[5], ENTITLED:

"AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE SE AGRIBUSINESS PARK

URBAN RENEWAL AREA IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO A SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BONDS ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL REDEVELOPMENT PROJECT"

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved January 26, 1998, adopted an Urban Renewal Plan for an original project area known as the SE AgriBusiness Urban Renewal Area (hereinafter referred to as Subarea "A"), which includes the lots and parcels within the boundaries, as follows:

SUBAREA A

Beginning at the intersection of the westerly extension of the North right-of-way line of Maury Street and the West line of the Northwest ¼ of Section 11, Township 78 North, Range 24 West of the 5th P.M.; thence East along the westerly extension and along the North right-of-way line of Maury Street to the West right-of-way line of Southeast 18th Street; thence North along the West right-of-way line of Southeast 18th Street and East 18th Street and its northerly extension to the North right-of-way line of Dean Avenue; thence East along the easterly extension of the North right-of-way line of Dean Avenue and along the North right-of-way line of Dean Avenue and its easterly extension to the East right-of-way line of East 30th Street; thence South along the East right-of-way line of East 30th Street and its southerly extension and the East right-of-way line of Southeast 30th Street, to the North right-of-way line of Scott Avenue; thence East along the North right-of-way line of Scott Avenue and the easterly extension of the North right-of-way line of Scott Avenue to the East Corporate Boundary of the City of Des Moines, Polk County, Iowa; thence South along the East Corporate boundary of the City of Des Moines to the Thread of the Des Moines River; thence westerly and northwesterly along the Thread of the Des Moines River to the intersection of the West line of the Southwest ¼ of Section 11, Township 78 North, Range 24 West of the 5th P.M.; thence North along the West line of said Section 11 to the Point of Beginning, All now included in and forming a part of the City of Des Moines, Polk County, Iowa. (Approximately 3,152.6 acres).

WHEREAS, by the Fourth Amendment to the Urban Renewal Plan for the SE AgriBusiness Urban Renewal Project, after public notice and hearing, prescribed by law, said Urban Renewal Plan was amended and adopted to add an additional area (hereinafter referred to as "Subarea B"), which includes the lots and parcels within the boundaries as follows:

SUBAREA B

Beginning at a point at the intersection of the westerly extension of the North right-of-way line of Market Street and the centerline of SE 14th Street; thence East along the westerly extension and along the North right-of-way line of Market Street to the West right-of-way line of Southeast 18th Street; thence South along the West right-of-way line of Southeast 18th Street to the North right-of-way line of Maury Street; thence West along the North right-of-way line of Maury Street and its westerly extension to the centerline of SE 14th Street; thence North along the centerline of SE 14th Street to the Point of Beginning, all now included in and forming a part of the City of Des Moines, Polk County, Iowa. (Approximately 122 acres);

WHEREAS, the SE AgriBusiness Urban Renewal Area now consists of Subarea A combined with Subarea B, each as described above; and

WHEREAS, the continuing needs of redevelopment of the SE AgriBusiness Urban Renewal Project are such as to require application of the incremental tax resources of the Urban Renewal Project; and

WHEREAS, indebtedness has been incurred by the City of Des Moines, Iowa, and additional indebtedness is anticipated to be incurred in the future to finance said Urban Renewal Project; and

WHEREAS, the City Council of the City of Des Moines, Iowa has heretofore in Ordinance No. 13,576[5], provided for the division of revenue from taxes within the SE AgriBusiness Urban Renewal Area, pursuant to Section 403.19 of the 1997 Code of Iowa, as amended; and

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the continuation of the division of revenue from taxation in the amended and combined SE AgriBusiness Urban Renewal Area, as above described in accordance with the provisions of Section 403.19 of the 2011 Code of Iowa, as amended; NOW, THEREFORE,

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA, AS FOLLOWS:

Ordinance No. 13,576[5] is hereby amended to read as follows:

Section 1. That the taxes levied on the taxable property in the Urban Renewal Project Area known as the SE AgriBusiness Urban Renewal Area, consisting of Subarea A and Subarea B, each of which is legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. For purposes of this Ordinance, "Base Period Taxes" are that portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in the SE AgriBusiness Urban Renewal Area upon the total sum of the "Base Valuations" of each of the subareas within the SE AgriBusiness Urban Renewal Area. The "Base Valuations" are the assessed values of the taxable property in each subarea of said Urban Renewal Area as shown on the assessment rolls following:

With respect to the Subarea A, the assessment roll as of January 1 of the calendar year preceding the date the City of Des Moines first certified to the county auditor the amount of loans, advances, indebtedness or bonds payable from the division of property tax revenue, being the assessment roll for January 1, 1997;

With respect to the Subarea B, the assessment roll as of January 1 of the calendar preceding the effective date of this Ordinance, being the assessment roll for January 1, 2010.

The "Base Period Taxes" for each of the subareas within the SE AgriBusiness Urban Renewal Area shall be computed using the total assessed value of the taxable property within each such subarea as shown on the assessment rolls applicable to each subarea as described above. "Base Period Taxes" shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by and for said taxing district into which all other property taxes are paid.

Section 3. For purposes of this Ordinance, "Incremental Taxes" are that portion of the taxes each year in excess of the "Base Period Taxes" for the combined SE AgriBusiness Urban Renewal Area, determined as provided in Section 2 of this Ordinance. "Incremental Taxes" shall be allocated to and when collected be paid into a special fund of the City of Des Moines, Iowa, hereafter to be maintained to pay the principal of and interest on loans, monies advanced to, and indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under authority of Sections 403.9 and 403.12 of the 2011 Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance, in whole or in part, urban renewal project activities undertaken within the SE AgriBusiness Urban Renewal Area, except that taxes for the regular and voter-approved physical plant and equipment levy of a school district imposed pursuant to Section 298.2, but only to the extent authorized in Section 403.19(2), and taxes for the payment of bonds and interest of each taxing district levying taxes in the SE

AgriBusiness Urban Renewal Area shall be collected against all taxable property within the said Project Area without any limitations as hereinabove provided.

Section 4. At such time as the loans, monies advanced and bonds of the City of Des Moines and interest thereon, hereinabove referred to, have been paid, all monies thereafter received from taxes upon the taxable property in the Urban Renewal Project Area known as the SE AgriBusiness Urban Renewal Area shall be paid into the funds for the respective taxing districts in the same manner as "Base Period Taxes".

Section 5. All ordinances or parts of ordinances in conflict with the provisions of this Ordinance are hereby repealed. The provisions of this Ordinance are intended and shall be construed so as to continue the division of taxes from property within Subarea A of the combined SE AgriBusiness Urban Renewal Area as described above, and to fully implement the provisions of Section 403.19 of the 2011 Code of Iowa, as amended, with respect to Subarea B of the combined Project Area. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the 2011 Code of Iowa, as amended, with reference to the combined SE AgriBusiness Urban Renewal Area and the territory contained therein.

Section 6. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

APPROVED AS TO FORM:

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Lawrence R. McDowell
Deputy City Attorney

Passed December 5, 2011

ORDINANCE NO. 15,119

AN ORDINANCE providing that general property taxes levied and collected each year on all property located within the Ingersoll-Grand Commercial Urban Renewal Area in the City of Des Moines, County of Polk, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, Des Moines Area Community College, and other taxing districts, be paid to a special fund for payment of principal and interest on loans, monies advanced to and indebtedness, including bonds issued or to be issued, incurred by the City of Des Moines in connection with the Urban Renewal Project for such Area.

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved July 9, 2012, adopted an urban renewal plan titled "Ingersoll-Grand Commercial Urban Renewal Plan" for an Urban Renewal Project within an Urban Renewal Area described as follows:

Beginning at a point on the West lot line of Lot 16, Mennig Place, an Official Plat said point being 305 feet South of the Northwest corner of said Lot 16, Mennig Place; thence North along said West lot line of Lot 16, Mennig Place to its intersection with the South Right-of-Way line of Grand Avenue; thence East along said South Right-of-Way line of Grand Avenue to its intersection with the Southerly projection of the East Right-of-Way line of 43rd Street; thence North along said Southerly projection of the East Right-of-Way line of 43rd Street and continuing North along said East Right-of-Way line of 43rd Street to a point on said East Right-of-Way line of 43rd Street said point being 179 feet North of the South line of Lot 2, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M.; thence East along a line 179 feet North of and parallel to said South line of Lot 2, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M. to its intersection with the West lot line of Lot 1, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M.; thence North along said West lot line of Lot 1, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M. to a point said point being 250 feet North of the South lot line of Lot 1, Official Plat

of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M.; thence East along a line 250 feet North of and parallel to the South lot line of Lot 1, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M. to a point said point being 53 feet East of said West lot line of Lot 1, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M.; thence North along a line 53 feet West of and parallel to the West lot line of Lot 1, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M. to the Southeast corner of Lot 11, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M.; thence North along the East lot line of Lot 11, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M. to a point said point being 150 feet South of the Northeast corner of Lot 11, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M.; thence west along a line 150 South of and parallel to the North line of Lot 11, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M. to its intersection with the East Right-of-Way line of 43rd Street; thence North along said East Right-of-Way line of 43rd Street and continuing North along the Northerly projection of said East Right-of-Way line of 43rd Street to its intersection with the North Right-of-Way line of Ingersoll Avenue; thence East along said North Right-of-Way line of Ingersoll Avenue to its intersection with the West lot line of Lot 16, Block A, Gil-Mar Park, an Official Plat; thence North along said West lot line of Lot 16, Block A, Gil-Mar Park to its intersection with the South lot line of West lot line of Lot 2, Block A, Gil-Mar Park; thence Southeasterly along said South lot line of Lot 2, Block A, Gil-Mar Park to a point said point being 24 feet Northwesterly from the Southeast corner of said Lot 2, Block A, Gil-Mar Park; thence North along a line 24 feet West of and parallel to the East lot line of Lot 2, Block A, Gil-Mar Park to its intersection with the South Right-of-Way line of Harwood Drive; thence Southeasterly along said South right-of-Way line of Harwood Drive and continuing Southeasterly along the Southeasterly projection of said South Right-of-Way of Harwood Drive to its intersection with the East Right-of-Way line of 42nd Street; thence North along said East Right-of-Way line of 42nd Street to a point said point being 300 feet North of the North Right-of Way line of Ingersoll Avenue; thence East along a line 300 feet North of and parallel to said North Right-of-Way line of Ingersoll Avenue to its intersection with the West Right-of-Way line of 41st Street; thence South along said West Right-of-Way line of 41st Street to a point said point being 200 feet North of the North Right-of-Way line of Ingersoll Avenue; thence East along a line 200 feet North of and parallel to said North Right-of-Way line of Ingersoll Avenue to its intersection with the West lot line of Lot 10, Greenwood Park, an Official Plat; thence South along said West lot line of Lot 10, Greenwood Park to a point said point being 82.5 feet North of the North Right-of-Way line of Ingersoll Avenue; thence East along a line 82.5 feet North of and parallel to the North Right-of-Way line of Ingersoll Avenue to its intersection with the East Right-of-Way line of 40th Street; thence North along said East Right-of-Way line of 40th Street to a point said point being 200 feet North of the North Right-of-Way line of Ingersoll Avenue; thence East along a line 200 feet North of and parallel to the North Right-of-Way line of Ingersoll Avenue to its intersection with the West lot line of Lot 14, Greenwood Park; thence North along said West lot line of Lot 14, Greenwood Park to a point said point being 282.5 feet North of the North Right-of-Way line of Ingersoll Avenue; thence East along a line 282.5 feet North of and parallel to the North Right-of-Way line of Ingersoll Avenue to its intersection with the West Right-of-Way line of 39th Street; thence South along said West Right-of-Way line of 39th Street to a point said point being 150 feet North of the North Right-of-Way line of Ingersoll Avenue; thence East along a line 150 feet North of and parallel to the North Right-of-Way line of Ingersoll Avenue to the Southwest Corner of Lot 9,

Rhoads Heights, an Official Plat; thence North along the West lot line of said Lot 9, Rhoads Heights to the Northwest Corner of said Lot 9, Rhoads Heights; thence East along the North lot line of Lot 9, Rhoads Heights and continuing East along the Easterly projection of the North lot line of Lot 9, Rhoads Heights to its intersection with the East Right-of-Way line of 38th Street; thence North along said East Right-of-Way line of 38th Street to the Northwest Corner of Lot 19, Rhoads Heights; thence East along the North lot line of Lot 19, Rhoads Heights to the Northeast Corner of Lot 19, Rhoads Heights; thence South along the East lot lines of Lots 19, 20, 21, Rhoads Heights to its intersection with the Westerly projection of the North lot line of Lot 33, Rhoads Heights; thence East along the said Westerly projection of the North lot line of Lot 33, Rhoads Heights and continuing East along the North lot line of Lot 33, Rhoads Heights and also continuing East along the Easterly projection of the North lot line of Lot 33, Rhoads Heights to its intersection with the East Right-of-Way line of 37th Street; thence North along said East Right-of-Way line of 37th Street to the Northwest Corner of Lot 43, Rhoads Heights; thence East along the North lot line of said Lot 43, Rhoads Heights to its intersection with the West lot line of Lot 16, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M.; thence North along said West lot line of Lot 16, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M. to the Northwest Corner of said Lot 16, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M.; thence East along the North lot line of Lot 16, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M. and continuing East along the Easterly projection of the North lot line of Lot 16, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M. to the Northwest Corner of Lot 6, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M.; thence east along the North lot line of Lot 6, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the West lot line of Lot 28, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M.; thence North along said West lot line of Lot 28, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M. to the Southwest Corner of Lot 27, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M.; thence North along the West lot line of Lot 27, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M. to a point said point being 55 feet North of the Southwest Corner Lot 27, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M.; thence East along a line 55 feet North of and parallel to the South lot line of Lot 27, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M. and continuing East along the Easterly projection of said line 55 North of and parallel to the South lot line of Lot 27, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the East Right-of-Way line of 35th Street; thence North along said East Right-of-Way line of 35th Street to a point said point being 20 feet South of the Northwest Corner of Lot 19, Stratford, an Official Plat; thence Northeasterly along a line to a point said point being 10 feet South of and 10 feet East of the Northwest Corner of Lot 19, Stratford; thence East along a line 10 feet South of and parallel to the North lot line of Lot 19, Stratford to a point said point being 80 feet East of the West lot line of Lot 19, Stratford; thence North along a line 80 feet East of and parallel to the West lot line of Lot 19, Stratford to its intersection with the South Right-of-Way line of Woodland Avenue; thence East along said South Right-of-Way line of Woodland Ave-

nue to its intersection with the West Right-of-Way line of 34th Street; thence South along said West Right-of-Way line of 34th Street to its intersection with the Westerly projection of the North lot line of Lot 1, Crescent Place, an Official Plat; thence East along said Westerly projection of the North lot line of Lot 1, Crescent Place and continuing East along the North lot line of Lot 1, Crescent Place to a point said point being 54.83 feet West of the Southeast Corner of Lot 2, Crescent Place; thence North along a line 54.83 feet West of parallel to the East lot line of Lot 2, Crescent Place; to a point said point being 36.5 feet North of the South lot line of Lot 2, Crescent Place; thence East along a line 36.5 feet North of and parallel to the South lot line of Lot 2, Crescent Place and continuing East along the Easterly extension of a line 36.5 feet North of and parallel to the South lot line of Lot 2, Crescent Place to its intersection with the West lot line of Lot 3, Crescent Place; thence North along said West lot line of Lot 3, Crescent Place to the Northwest Corner of Lot 3, Crescent Place; thence East along the North lot line of Lot 3, Crescent Place to its intersection with the West Lot line of Lot 12, Block 1, Garver Place; thence North along said West Lot line of Lot 12, Block 1, Garver Place to the Southwest Corner of Lot 1, Block 1, Garver Place; thence North along the West lot line of said Lot 1, Block 1, Garver Place to a point said point being 174 feet North of the South lot line of Lot 1, Block 1, Garver Place; thence East along a line 174 feet North of and parallel to the South lot line of Lot 1, Block 1, Garver Place to its intersection with the East lot line of Lot 1, Block 1, Garver Place; thence South along said East lot line of Lot 1, Block 1, Garver Place and continuing South along the East lot line of Lot 11, Block 1, Garver Place to the Northwest Corner of Lot 10, Block 1, Garver Place; thence East along the North lot line of Lot 10, Block 1, Garver Place and continuing East along the North lot line of Lot 9, Block 1, Garver Place to its intersection with the West Right-of-Way line of 31st Street; thence South along said West Right-of-Way line of 31st Street to its intersection with the Westerly projection of the centerline of the Vacated East/West Alley Right-of-Way located in Block 3, McCain Place, an Official Plat; thence East along said Westerly projection of the centerline of the Vacated East/West Alley Right-of-Way located in Block 3, McCain Place and continuing along the centerline of the Vacated East/West Alley Right-of-Way located in Block 3, McCain Place to its intersection with the West Right-of-Way line of 29th Street; thence East along the Westerly projection of the centerline of the Vacated East/West Alley Right-of-Way located in Block 4, McCain Place and continuing along the centerline of the Vacated East/West Alley Right-of-Way located in Block 4, McCain Place to its intersection with the West Right-of-Way line of 28th Street; thence South along said West Right-of-Way line of 28th Street to its intersection with the Westerly projection of the South Right-of-Way line of Linden Street; thence East along said Westerly projection of the South Right-of-Way line of Linden Street and continuing East along the South Right-of-Way line of Linden Street to the Southwest Corner of Lot 57, Ingersoll Place, an Official Plat; thence East along the South lot lines of Lots 57 and 58, Ingersoll Place to the Southwest Corner of Lot 59, Ingersoll Place; thence North along the West lot line of Lot 59, Ingersoll Place to a point said point being 195 feet South of the North lot line of Lot 59, Ingersoll Place; thence East along a line 195 feet South of and parallel to the North lot lines of Lots 59 and 60, Ingersoll Place to its intersection with the East lot line of Lot 60, Ingersoll Place; thence South along said East lot line of Lot 60, Ingersoll Place to the Southwest Corner of Lot 61, Ingersoll Place; thence East along the South lot lines of Lots 61, 62, 63, 64, 65, Ingersoll Place to the Southwest Corner of Lot 66, Ingersoll Place; thence North along the West lot line of Lot 66, Ingersoll Place to a point said point being 120 feet South of the North lot line of Lot 66, Ingersoll Place; thence east along a line 120 South of and parallel to the North lot line of Lot 66, Ingersoll Place to its intersection with the West lot line of Lot 67, Ingersoll Place; thence South along said West lot line of Lot 67, Ingersoll Place to a point said point being 124 feet South of the North lot line of Lot 67, Ingersoll Place; thence East along a line 124 feet South of the North lot line of Lot

67, Ingersoll Place to its intersection with the West lot line of Lot 68, Ingersoll Place; thence South along the West lot line of Lot 68, Ingersoll Place to the Southwest Corner of Lot 68, Ingersoll Place; thence East along the South lot lines of Lots 68, 69, and 70, Ingersoll Place and continuing East along the Easterly projection of the South lot lines of said Lots 68, 69, and 70, Ingersoll Place to the East Right-of-Way line of 24th Street; thence North along said east Right-of-way line of 24th Street to its intersection with the South Right-of-Way Line of High Street; thence East along said South Right-of-Way line of High Street to its intersection with the Southerly projection of the West lot line of Lot 5, Park Place, an Official Plat; thence North along said Southerly projection of the West lot line of Lot 5, Park Place and continuing North along the West lot line of Lot 5, Park Place and also continuing North along the Northerly projection of the West lot line of Lot 5, Park Place to its intersection with the South line of the North 132 feet of Lot 8, Official Plat, Southwest ¼, Section 5, Township 78 North, Range 24 West of the 5th P.M.; thence continuing North along a line 250 feet West of and parallel to the East lot line of Lot 8, Official Plat, Southwest ¼, Section 5, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the North lot line of Lot 8, Official Plat, Southwest ¼, Section 5, Township 78 North, Range 24 West of the 5th P.M.; thence East along said North lot line Lot 8, Official Plat, Southwest ¼, Section 5, Township 78 North, Range 24 West of the 5th P.M. and continuing East along the Easterly projection of the North lot line Lot 8, Official Plat, Southwest ¼, Section 5, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the North/South Centerline of Section 5, Township 78 North, Range 24 West of the 5th P.M. (also the Centerline of Right-of-Way known as former Harding Road); thence South along said North/South Centerline of Section 5, Township 78 North, Range 24 West of the 5th P.M. (also the Centerline of Right-of-Way known as former Harding Road) to its intersection with the Easterly projection of the North Right-of-Way line of Ingersoll Avenue; thence West along said Easterly projection of the North Right-of-Way line of Ingersoll Avenue and continuing West along the North Right-of-Way line of Ingersoll Avenue to its intersection with the Northerly projection of a line 100 feet West of and parallel to the East lot line of Lot 9, Official Plat, Southwest ¼, Section 5, Township 78 North, Range 24 West of the 5th P.M.; thence South along said Northerly projection of a line 100 feet West of and parallel to the East lot line of Lot 9, Official Plat, Southwest ¼, Section 5, Township 78 North, Range 24 West of the 5th P.M. and continuing South along a line 100 feet West of and parallel to the East lot line of Lot 9, Official Plat, Southwest ¼, Section 5, Township 78 North, Range 24 West of the 5th P.M. to the North Right-of-Way line of Grand Avenue; thence Southeasterly to a point on the South Right-of-Way line of Grand Avenue said point being 93 feet West of the East line of Lot 1, Official Plat, Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M.; thence South 225 feet along a line 93 feet West of and parallel to the East line of Lot 1, Official Plat, Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M.; thence East 18 feet along a line 225 feet South of and parallel to the South Right-of-Way line of Grand Avenue; thence South along a line 75 feet West of the East line of Lot 1, Official Plat, Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M. to the North Right-of-Way line of the Norfolk and Southern Railroad lying within Lot 1, Official Plat Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M.; thence Southwesterly along said North Right-of-Way line of the Norfolk and Southern Railroad lying within Lot 1, Official Plat Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M. to the West lot line Lot 1, Official Plat Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M.; thence Northwesterly along said West lot line of Lot 1, Official Plat Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M. to the Northeasterly Corner of the North Right-of-Way line of the Norfolk and Southern Railroad lying within Lot 2, Official Plat Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M. thence Southwesterly along said North

Right-of-Way line of the Norfolk and Southern Railroad lying within Lot 2, Official Plat Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M. to the Southwesterly most Corner of Lot 3, August Home Plat 1, an Official Plat; thence North along West lot line of said Lot 3, August Home Plat 1 to its intersection with the South lot line of Lot 2, August Home Plat 1; thence Northwesterly along said South line of Lot 2, August Home Plat 1 to the Southeasterly most Corner of Lot 1, August Home Plat 1; thence North/West/North along the East Lot line of Lot 1, August Home Plat 1 to North lot line of Lot 1, August Home Plat 1; thence West along said North lot line of Lot 1, August Home Plat 1 to the East Right-of-Way line of Terrace Road; thence North along said East Right-of-Way of Terrace Road to the South Right-of-Way line of Grand Avenue; thence West along said South Right-of-Way line of Grand Avenue to the West Right-of-Way line of Forest Drive; thence South along the West Right-of-Way line of Forest Drive to the Southeast Corner of Lot 2 Cummins Replat, an Official Plat; thence West along the South lot line of said Lot 2, Cummins Replat to the Northeast Corner of Lot 6, Cummins Replat; thence Southwesterly along the East lot line of said Lot 6, Cummins Replat to the Northeast Corner of Lot 5, Cummins Replat; thence West along the North lot line of Lot 5, Cummins Replat to a point said point being 15 feet West of the Northeast Corner of Lot 5, Cummins Replat; thence South along a line 73 East of and parallel to the West lot lines of Lots 6 and 5, Cummins Replat to the North lot line of Lot 4, Cummins Replat; thence East along said North lot line of Lot 4, Cummins Replat to the East lot line of Lot 4, Cummins Replat; thence South along said East lot line of Lot 4, Cummins Replat to a point said point being 20 feet South of the North lot line of Lot 4, Cummins Replat; thence West along a line 20 feet South of and parallel to the North lot line of Lot 4, Cummins Replat to the East lot line of Lot 34, The Polk & Hubbell Park, an Official Plat; thence North along said East lot line of Lot 34, The Polk & Hubbell Park and continuing North along the East lot line of Lot 71, The Polk & Hubbell Park to a point said point being 5 feet North of the South lot line of said Lot 71, The Polk & Hubbell Park; thence West 67 feet along a line 5 feet North of and parallel to the South lot line of said Lot 71, The Polk & Hubbell Park; thence South along a line 67 feet West of and parallel to the East lot lines of Lots 71 and 34. The Polk & Hubbell Park to the North Right-of-Way line of Forest Drive; thence West along said North Right-of-Way line of Forest Drive to the East lot line of Lot 36, The Polk & Hubbell Park; thence North along said East lot line of Lot 36, The Polk & Hubbell Park to a point said point being 53.5 feet South of the North lot line of Lot 36, The Polk & Hubbell Park; thence Southwesterly along a line from said point being 53.5 feet South of the North lot line of Lot 36, The Polk & Hubbell Park on the East lot line of Lot 36, The Polk & Hubbell Park to the Southeast Corner of Lot 39, The Polk & Hubbell Park; thence Southwesterly along the South lot line of said Lot 39, The Polk & Hubbell Park to the East Right-of-Way line of 27th Street; thence North along said East Right-of-Way line of 27th Street to its intersection with the Easterly projection of the South lot line of Lot 7, J.S. Polk's Subdivision, an Official Plat; thence West along said Easterly projection of the South lot line of Lot 7, J.S. Polk's Subdivision and continuing West along said South lot line of Lot 7, J.S. Polk's Subdivision its intersection with the East lot line of Lot 9, J.S. Polk's Subdivision; thence North along said East lot line of Lot 9, J.S. Polk's Subdivision to a point said point being 15 feet South of the North Lot line of said Lot 9, J.S. Polk's Subdivision; thence West along a line 15 feet South of and parallel to the North Lot line of said Lot 9, J.S. Polk's Subdivision and continuing West along a West projection of said line 15 feet South of and parallel to the North Lot line of said Lot 9, J.S. Polk's Subdivision to the West Right-of-Way line of 28th Street; thence North along said West Right-of-Way line of 28th Street to a point said point being 160 South of the North lot line of Lot 1, Owls Head, an Official Plat; thence West along a line 160 South of and parallel to the North lot line of Lot 1, Owls Head to its intersection with the East lot line of Lot 2, Owls Head; thence South along said East lot line of Lot 2, Owls Head to

the South lot line of said Lot 2, Owls Head; thence West along said South lot lines of Lots 2, 3, 4, and 5, Owls Head to the East lot line of Lot 6, Owls Head; thence North along said East lot line of Lot 6, Owls Head to a point said point being 240 feet South of the North lot line of said Lot 6, Owls Head; thence West along a line 240 feet South of and parallel to said North lot line of Lot 6, Owls Head and continuing West along the Westerly projection of said line 240 feet South of and parallel to said North lot line of Lot 6, Owls Head to the West Right-of-Way line of 29th Street; thence West along a line 240 feet South of and parallel to the North lot line of Lot 1, Langan Place, an Official Plat to its intersection with the East lot line of Lot 9, Langan Place; thence South along said East lot line of Lot 9, Langan Place to a point said point being 500 feet South of the North lot line of Lot 9, Langan Place; thence West along a line 500 feet South of and parallel to the North lot line of Lot 9, Langan Place to its intersection with the East lot line of Lot 11, Langan Place; thence West along a line 61 feet South of and parallel to the North lot line of said Lot 11, Langan Place to its intersection with the East Right-of-Way line of 31st Street; thence West to the Southeast Corner of Lot 13, Langan Place; thence West along the South lot line of Lot 13, Langan Place to its intersection with the East lot line of Lot 4, Pierces Subdivision, an Official Plat; thence South along said East lot line of Lot 4, Pierces Subdivision to its intersection with the South lot line of said Lot 4, Pierces Subdivision; thence West along said South lot line of Lot 4, Pierces Subdivision to its intersection with the East lot line of Lot 3, Official Plat Lot 5, Pierces Subdivision; thence North along said East lot line of Lot 3, Official Plat Lot 5, Pierces Subdivision to a point said point being 280 feet North of the South lot line of Lot 3, Official Plat Lot 5, Pierces Subdivision; thence West along a line 280 feet North of and parallel to the South lot line of Lot 3, Official Plat Lot 5, Pierces Subdivision to the West lot line of Lot 3, Official Plat Lot 5, Pierces Subdivision; thence South along said West lot line of Lot 3, Official Plat Lot 5, Pierces Subdivision to the Northeast Corner of Lot 8, Block A, Lincoln Place Replat, an Official Plat; thence South along the East lot line of Lot 8, Block A, Lincoln Place Replat to its intersection with the South lot line of Lot 8, Block A, Lincoln Place Replat; thence Northwesterly along said South lot line of Lot 8, Block A, Lincoln Place Replat to its intersection with the West lot line of Lot 8, Block A, Lincoln Place Replat; thence North along said West lot line of Lot 8, Block A, Lincoln Place Replat to its intersection with the South lot line of the East 264 feet of Lot 1, Official Plat Lot 5, Pierces Subdivision; thence West along said South lot line of the East 264 feet of Lot 1, Official Plat Lot 5, Pierces Subdivision to its intersection with the East lot line of Lot 8, Portland Place, an Official Plat; thence North along said East lot line of Lot 8, Portland Place to its intersection with the North lot line of Lot 8, Portland Place; thence West along said North lot line of Lot 8, Portland Place to the East lot line of Lot 4, Portland Place; thence North along the East lot lines of Lot 4 and 3, Portland Place to its intersection with the South lot line of the West 165.66 feet of Lot 1, Official Plat Lot 5, Pierces Subdivision; thence West along said South lot line of the West 165.66 feet of Lot 1, Official Plat Lot 5, Pierces Subdivision to its intersection with the West lot line of Lot 1, Official Plat Lot 5, Pierces Subdivision; thence North along said West lot line of Lot 1, Official Plat Lot 5, Pierces Subdivision to its intersection with North Right-of-Way line of Bolton Drive; thence West along said North Right-of-Way line of Bolton Drive to its intersection with the East Right-of-Way line of 37th Street; thence North along said East Right-of-Way line of 37th Street to its intersection with the Easterly projection of a line 174 feet North of and parallel to the South lot line of Lot 2, Cowles Place, an Official Plat; thence West along said Easterly projection of a line 174 feet North of and parallel to the South lot line of Lot 2, Cowles Place and continuing West along a line 174 feet North of and parallel to the South lot line of Lot 2, Cowles Place to its intersection with the East lot line of Lot 14, Mason Place, an Official Plat; thence South along said East lot line of Lot 14, Mason Place to a point said point being 55 feet North of the Southeast Corner of Lot 14, Mason Place; thence West along a line 55 feet North of and parallel to the

South lot lines of Lots 14, 13, 12, and 11, Mason Place to its intersection with the West lot line of Lot 11, Mason Place; thence North along said West lot line of Lot 11, Mason Place and continuing North along the West lot line of Lot 2, Mason Place to its intersection with the South lot line of Lot 5, Mason Place; thence West along said South lot line of Lot 5, Mason Place to the East Right-of-Way line of 38th Street; thence North along said East Right-of-Way line of 38th Street to its intersection with the Easterly projection of the South lot line of Lot 3, Chamberlain Place, an Official Plat; thence West along said Easterly projection of the South lot line of Lot 3, Chamberlain Place continuing West along the South lot line of Lot 3, Chamberlain Place to its intersection with the East line of the West ½ of Lot 2, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M.; thence South along said East line of the West ½ of Lot 2, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to a point said point being 330 feet North of the South line of the West ½ of Lot 2, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M.; thence West along a line 330 feet North of and parallel to the South line of the West ½ of Lot 2, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the East lot line of Lot 3, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M.; thence South along said East lot line of Lot 3, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the South lot line of Lot 3, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. thence West along said South lot line of Lot 3, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. and continuing West along the South lot line of Lot 4, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to a point said point being 165 feet West of the East lot line of Lot 4, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M.; thence North along a line 165 feet West of and parallel to the East lot line of Lot 4, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to a point said point being 200 feet North of the South lot line of Lot 4, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M.; thence West along a line 200 feet North of and parallel to the South lot line of Lot 4, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the East lot line of the Unreplatted Part Lot 5, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M.; thence North along said East lot line of the Unreplatted Part Lot 5, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to a point said point being 77 feet North of the South lot line of the Unreplatted Part Lot 5, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M.; thence West along a line 77 feet North of and parallel to the South lot line of the Unreplatted Part Lot 5, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the West lot line of the Unreplatted Part Lot 5, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M.; thence North along said West lot line of the Unreplatted Part Lot 5, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to the Southeast Corner of Lot 1, Bray Place, an Official Plat; thence Northwesterly along the Southwesterly lot line of said Lot 1, Bray Place to the Southeasterly Corner of Lot 2, Bray Place; thence Southwesterly along the Southeasterly lot line of Lot 2, Bray Place and continuing Southwesterly along a Southwesterly projection of the Southeasterly lot line of Lot 2, Bray Place to its

intersection with the Westerly Right-of-Way line of Tonawanda Drive; thence Southeasterly along said Westerly Right-of-Way line of Tonawanda Drive to its intersection with the South lot line of Lot 6, Browns Woods Plat 2, an Official Plat; thence West along said South lot line of Lot 6, Browns Woods Plat 2 to its intersection with the East lot line of Lot 2, Browns Woods Plat 2; thence South along said East lot line of Lot 2, Browns Woods Plat 2 to its intersection with the South lot line of Lot 2, Browns Woods Plat 2; thence West along said South lot line of Lot 2, Browns Woods Plat 2 to its intersection with the East Right-of-Way line of 42nd Street; thence North along said East Right-of-Way line of 42nd Street to its intersection with the Easterly projection of the South lot line of Lot 2, Mennig Place; thence West along said Easterly projection of the South lot line of Lot 2, Mennig Place and continuing West along the South lot line of Lot 2, Mennig Place to its intersection with the West lot line of Lot 2, Mennig Place; thence North along said West lot line of Lot 2, Mennig Place to a point said point being 378 feet South of the North lot line of Lot 15, Mennig Place; thence West along a line 378 feet South of and parallel to the North lot line of Lot 15, Mennig Place to the East lot line of Lot 16, Mennig Place; thence North along said East lot line of Lot 16, Mennig Place to a point said point being 305 feet South of the North lot line of Lot 16, Mennig Place; thence West along a line 305 feet South of and parallel to the North lot line of Lot 16, Mennig Place to the Point of Beginning, all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

WHEREAS, expenditures and indebtedness are anticipated to be incurred by the City of Des Moines, Iowa, in the future to finance said Urban Renewal Project; and

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the Urban Renewal Area as above described, in accordance with the provisions of Section 403.19 of the Code of Iowa, as amended.

NOW THEREFORE, BE IT ORDAINED, by the City Council of the City of Des Moines, Iowa, as follows:

Section 1. That the taxes levied on the taxable property in the Urban Renewal Area known as the Ingersoll-Grand Commercial Urban Renewal Area, legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District, Des Moines Area Community College, and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. That portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said Urban Renewal Area upon the total sum of the assessed value of the taxable property in said Urban Renewal Area as shown on the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of property tax revenue shall be allocated to and when collected be paid into the Fund into which all other property taxes are paid for the respective taxing district, as taxes by or for said taxing district.

Section 3. That portion of the taxes each year in excess of the base period taxes determined as provided in Section 2 of this Ordinance shall be allocated to and when collected be paid into a special tax increment fund hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of Sections 403.9 and 403.12 of the Code of Iowa, as amended, incurred by the City of Des Moines to finance or refinance in whole or in part the Ingersoll-Grand Commercial Urban Renewal Project, except that taxes for the regular and voter-approved physical plant and equipment levy of a school district imposed pursuant to section 298.2 and taxes for the instructional support program of a school district imposed pursuant to section 257.19, taxes for the

payment of bonds and interest of each taxing district, and taxes imposed under section 346.27, subsection 22, related to joint county-city buildings shall be collected against all taxable property within the Urban Renewal Area without any limitation as hereinabove provided.

Section 4. All taxes levied and collected upon the taxable property in said Ingersoll-Grand Commercial Urban Renewal Area shall be paid into the funds of the taxing districts as taxes by or for said taxing districts in the same manner as all other property taxes unless or until the total assessed valuation of the taxable property in said Urban Renewal Area shall exceed the total assessed value of the taxable property in said Urban Renewal Area as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to this Ordinance.

Section 5. At such time as the loans, advances, bonds and interest thereon and indebtedness of the City of Des Moines hereinabove in Section 3 referred to have been paid, all monies thereafter received from taxes upon the taxable property in the Urban Renewal Area known as the Ingersoll-Grand Commercial Urban Renewal Area shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property.

Section 6. The provisions of this Ordinance are intended and shall be construed so as to fully implement the provisions of Section 403.19 of the 2011 Code of Iowa, as amended, with respect to the division of taxes from property within the Urban Renewal Area as described above. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the Code of Iowa with reference to said Urban Renewal Area and the territory therein.

Section 7. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

FORM APPROVED:

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Roger K. Brown
Assistant City Attorney

Passed July 9, 2012

ORDINANCE NO. 15,403

AN ORDINANCE providing that general property taxes levied and collected each year on all property located within the Echo Valley Urban Renewal Area in the City of Des Moines, County of Warren, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Warren, Norwalk Community School District, Des Moines Area Community College, and other taxing districts, be paid to a special fund for payment of principal and interest on loans, monies advanced to and indebtedness, including bonds issued or to be issued, incurred by the City of Des Moines in connection with the Echo Valley Urban Renewal Project.

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved September 14, 2015, adopted an urban renewal plan titled "Echo Valley Urban Renewal Plan" for an urban renewal project (the "Echo Valley Urban Renewal Project") within the Echo Valley Urban Renewal Area described as follows:

Beginning at the intersection of the North line of Warren County and the centerline of Fleur Drive; Thence South along said centerline of Fleur Drive to the South line of the Northeast Quarter (¼) of the Southwest Quarter (¼) of Section 5, Township 77 North, Range 24 West of the 5th P.M.; Thence West along said South line to the West line of said Northeast Quarter (¼) of the Southwest Quarter (¼) of Section 5, Township 77 North, Range 24 West of the 5th P.M.; Thence North along said West line to the North line of said Southwest Quarter (¼) of Section 5, Township 77 North, Range 24 West of the 5th P.M.; Thence West along said North line to a Westerly City Limits line of the City of Des Moines, as presently established; Thence North along said Westerly City Limits line to a

Southerly City Limits line of the City of Des Moines, as presently established; Thence Southwesterly along said Southerly City Limits line to a Westerly City Limits line of the City of Des Moines, as presently established; Thence North along said Westerly City Limits line to the North line of Warren County; Thence East along said North line to the centerline of Fleur Drive and the Point of Beginning. (Containing approximately 230 acres, more or less.)

WHEREAS, expenditures and indebtedness are anticipated to be incurred by the City of Des Moines, Iowa, in the future to finance undertakings by the City of Des Moines to implement the Echo Valley Urban Renewal Project pursuant to the Echo Valley Urban Renewal Plan; and

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the Urban Renewal Area as above described, in accordance with the provisions of Section 403.19 of the 2015 Code of Iowa, as amended.

NOW THEREFORE, BE IT ORDAINED, by the City Council of the City of Des Moines, Iowa, as follows:

Section 1. That the taxes levied on the taxable property in the urban renewal area known as the Echo Valley Urban Renewal Area, legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Warren, Norwalk Community School District, Des Moines Area Community College, and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. Except as otherwise provided in Iowa Code § 403.19, as amended, that portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said Urban Renewal Area upon the total sum of the assessed value of the taxable property in said Urban Renewal Area as shown on the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of property tax revenue, subject to any adjustment required by Iowa Code § 403.20, as amended, shall be allocated to and when collected be paid into the Fund for the respective taxing district as taxes by or for the taxing district into which all other property taxes are paid (the "base period taxes")

Section 3. Except as otherwise provided in Iowa Code § 403.19, as amended, that portion of the taxes each year in excess of the base period taxes determined as provided in Section 2 of this Ordinance shall be allocated to and when collected be paid into a special tax increment fund of the City of Des Moines hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of Chapters 384 and 403 of the Code of Iowa, as amended, incurred by the City of Des Moines to finance or refinance in whole or in part the Echo Valley Urban Renewal Project. However, except as provided in Iowa Code § 403.19(2)(b), taxes for the regular and voter-approved physical plant and equipment levy of a school district imposed pursuant to Iowa Code § 298.2 and taxes for the instructional support program of a school district imposed pursuant to Iowa Code § 257.19, taxes for the payment of bonds and interest of each taxing district, and taxes imposed under Iowa Code § 346.27(22) related to joint county-city buildings shall be collected against all taxable property within the taxing district without limitation by the provisions of this section.

Section 4. Except as otherwise provided in Iowa Code § 403.19, as amended, all taxes levied and collected upon the taxable property in said Echo Valley Urban Renewal Area shall be paid into the funds of the taxing districts as taxes by or for said taxing districts in the same manner as all other property taxes unless or until the total assessed valuation of the taxable property in said Urban Renewal Area shall exceed the total assessed value of the taxable property in said Urban Renewal Area as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue

pursuant to this Ordinance, subject to any adjustment required by Iowa Code § 403.20, as amended.

Section 5. At such time as the principal of, and interest on, all loans, advances, bonds and interest thereon and indebtedness of the City of Des Moines hereinabove in Section 3 referred to have been paid, all monies thereafter received from taxes upon the taxable property in said Echo Valley Urban Renewal Area shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property, unless and until additional loans, advances, indebtedness or bonds, if any, are incurred and certified by the City of Des Moines.

Section 6. The provisions of this Ordinance are intended and shall be construed so as to fully implement the provisions of Iowa Code § 403.19, as amended, with respect to the division of taxes from property within the Urban Renewal Area as described above. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the Code of Iowa with reference to said Urban Renewal Area and the territory therein.

Section 7: This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

FORM APPROVED:

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Roger K. Brown
Assistant City Attorney

Passed September 14, 2015

ORDINANCE NO. 15,419

AN ORDINANCE providing that general property taxes levied and collected each year on all property located within the Northeast Gateway Revitalization Urban Renewal Area in the City of Des Moines, County of Polk, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, Des Moines Area Community College, and other taxing districts, be paid to a special fund for payment of principal and interest on loans, monies advanced to and indebtedness, including bonds issued or to be issued, incurred by the City of Des Moines in connection with the Northeast Gateway Revitalization Urban Renewal Project.

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved October 26, 2015, adopted an urban renewal plan titled "Northeast Gateway Revitalization Urban Renewal Plan" for an urban renewal project (the "Northeast Gateway Revitalization Urban Renewal Project") within the Northeast Gateway Revitalization Urban Renewal Area described as follows:

Beginning at the intersection of the centerline of Hull Avenue and the centerline of Dixon Street; Thence West along the centerline of Hull Avenue to the centerline of York Street; Thence North along the centerline of York Street to the Easterly extension of the South line of Lot 59, Mann's 2nd Addition to Highland Park, an Official Plat; Thence West along said Easterly Extension and the South line of said Lot 59 to the Southwest corner of said Lot 59; Thence continuing West along the South line of Lots 52 through 58 of said Mann's 2nd Addition to Highland Park to the Southwest corner of said Lot 52; Thence South along the Southerly extension of West line of said Lot 52 to the centerline of Oak Park Avenue; Thence West along the centerline of Oak Park Avenue to the centerline of East 12th Street; Thence North along the centerline of East 12th Street to the Easterly Extension of the South line of Lot 7, Timmins Subdivision, an Official Plat; Thence West along said Easterly Extension and the South line of said Lot 7 to the Southeast corner of Lot 9, Rocky Place, an Official Plat; Thence continuing West along the South line of said Lot 9 to the Southwest corner of said Lot 9; Thence North along the West line of said Lot 9 to the Easterly Extension of the South line of Lot 140, Campus Park, an Official Plat; Thence West along said Easterly Extension and South line of said Lot 140 to the Southwest corner of said Lot 140; Thence continuing West along a straight line

to the Southeast corner of Lot 111 of said Campus Park; Thence West along the South line of said Lot 111 to the Southwest corner of said Lot 111; Thence North along the West line of Lots 111, 112, 113 of said Campus Park, and the Northerly extension of the West line of said Lot 113 to the centerline of East Euclid Avenue; Thence West along the centerline of East Euclid Avenue to the centerline of East 8th Street; Thence North along the centerline of East 8th Street to the centerline of East Douglas Avenue; Thence East along the centerline of East Douglas Avenue to the centerline of East 9th Street; Thence North along the centerline of East 9th Street to the centerline of Hoffman Avenue; Thence West along the centerline of Hoffman Avenue to the centerline of East 8th Street; Thence North along the centerline of East 8th Street to the centerline of East Madison Avenue; Thence East along the centerline of East Madison Avenue to the Southerly Extension of the East Line of Lot 44, Shawnee Acres, an Official Plat; Thence North along said Southerly Extension and the East line of said Lot 44 to a line that is 421.75 feet North of and parallel with the South line of said Lot 44; Thence West along said parallel line to West line of said Lot 44; Thence North along said West line and its Northerly Extension to the centerline of East Shawnee Avenue; Thence East along the centerline of East Shawnee Avenue to the Southerly Extension of the East line of the West 65 feet of Lots 32 and 33 of said Shawnee Acres; Thence North along said Southerly Extension and said East line of the West 65 feet of Lots 32 and 33 to the North line of said Lot 32; Thence West along said North line to the East line of Lot 23 of said Shawnee Acres; Thence North along said East line to a line that 130.85 feet North of and parallel of the South line of Lots 21, 22 and 23 of said Shawnee Acres; Thence West along said parallel line to a line that is 8 feet West of and parallel to the East line of said Lot 21; Thence South along said parallel line to the South line of said Lot 21; Thence West along said South line and continuing along the South line of Lots 19 and 20 of said Shawnee Acres to a line that is 65 feet East of and parallel to the West line of said Lot 19; Thence North along said parallel line to a line that is 125.42 feet North of and parallel to the South line of said Lot 19; Thence West along said parallel line to the West line of said Lot 19; Thence North along said West line and its Northerly Extension to the centerline of East Aurora Avenue Right of Way; Thence West along said centerline to the Southerly Extension of the West line of Lot 11, Pagliai Place, an Official Plat; Thence North to the Southwest corner of said Lot 11; Thence continuing North along the West line of Lot 11 and Lot 16 of said Pagliai Place to the Northwest corner of said Lot 16; Thence East along the North line of said Lot 16 to the Southwest corner of Lot 48, Iowa Garden Acres, an Official Plat; Thence North along the West line of said Lot 48 to the Northwest corner of said Lot 48; Thence continuing North along the Northerly Extension of the West line of said Lot 48, a distance of 15.0 feet to the centerline of Northeast 43rd Avenue Right of Way; Thence West along said centerline to the Southerly Extension of the West line of Lot 1 in said Iowa Garden Acres; Thence North along said Southerly Extension and along said West line to the Northwest corner of said Lot 1; Thence West along the South line of the North half (1/2) of the Southeast Quarter (1/4) of the Northeast Quarter (1/4) of said Section 23, to the West line of the Southeast Quarter (1/4) of the Northeast Quarter (1/4) of said Section 23; Thence North along the West line of the Southeast Quarter (1/4) of the Northeast Quarter (1/4) of said Section 23, to the North right of way line of Northeast 44th Avenue (Hoffman Road); Thence East along said North right of way line to the Southerly Extension of the East line of Lot 21, Stickler Heights, an Official Plat; Thence North along the East line of said Lot 21 to the Northeast corner of said Lot 21; Thence West along the North line of said Lot 21, to a point 788.1 feet West of the East line of the Northeast Quarter (1/4) of the Northeast Quarter (1/4) of said Section 23; Thence North along a line that is 788.1 feet West of and Parallel with said East line of the Northeast Quarter (1/4) of the Northeast Quarter (1/4) of Section 23 to the South line of Vista Broadway Industrial Plat 1, an Official

Plat; Thence West along said South line to the West line of said Vista Broadway Industrial Plat 1; Thence North along said West line to the South Right of Way line of Northeast 46th Avenue (East Broadway Avenue); Thence West along said South Right of Way line to a point that is 300 feet West of the East line of the Southwest Quarter (1/4) of the Southeast Quarter (1/4) of Section 14, Township 79 North, Range 24 West of the 5th P.M.; Thence North along a line that is 300 feet West of and parallel to the East line of the Southwest Quarter (1/4) of the Southeast Quarter (1/4) of said Section 14, to the North right of way line of Northeast 46th Avenue (East Broadway Avenue); Thence North 00° 03' 45" West, 192.0 feet; Thence South 89° 55' 30" West, 348.0 feet; Thence South 00° 03' 45" East, 225.0 feet to the centerline of Northeast 46th Avenue Right of Way (East Broadway Avenue); Thence South 89° 55' 30" West along said centerline, a distance of 18.02 feet to the West line of the East ½ of the Southwest Quarter (1/4) of the Southeast Quarter (1/4) of said Section 14; Thence North along said West line, a distance of 33 feet; Thence North 00° 01' 45" West along said West line, 1293.06 feet to the North line of the Southwest Quarter (1/4) of the Southeast Quarter (1/4) of said Section 14; Thence South 89° 56' 30" West along said North line, 665.22 feet to the Northwest corner of the Southwest Quarter (1/4) of the Southeast Quarter (1/4) of said Section 14; Thence North 00° 00' 00" East along the West line of the Southeast Quarter (1/4) of said Section 14, a distance of 479.65 feet to a point that is 183.0 feet South of the centerline of US Interstate 80/35 Right of Way, as it is presently established; Thence North 89° 55' 30" East, parallel with and 183.0 feet South of the South line of the North ½ of the Northwest Quarter (1/4) of the Southeast Quarter (1/4) of said Section 14, a distance of 1329.98 feet to the East line of the Northwest Quarter (1/4) of the Southeast Quarter (1/4) of said Section 14; Thence South 00° 03' 45" East, 68.47 feet along the East line of the Northwest Quarter (1/4) of the Southeast Quarter (1/4) of said Section 14; Thence South 85° 15' 30" East, 503.84 feet; Thence North 0° 07' 30" West, 535.38 feet to the present North Right of Way line of US Interstate 80/35; Thence continuing North 0° 07' 30" West, 91.25 feet; Thence North 89° 58' 00" East, 97.13 feet; Thence North 0° 07' 30" West, 165.00 feet; Thence North 89° 58' 00" East, 146.17 feet; Thence North 0° 07' 30" West, 165.00 feet to the centerline of Northeast 50th Avenue Right of Way (Goode Drive); Thence East along said centerline to the Southerly Extension of the West line of Lot 19, Goode Heights Plat One, an Official Plat; Thence North along the Southerly Extension of the West line of said Lot 19 to the Southeast corner of said Lot 19,; Thence North along the West line of said Lot 19 and the West line of Lot 17, of said Goode Heights Plat One, to the Northwest corner of said Lot 17, and the South Right of Way line of Lot D, Goode Heights Plat One, (also known as Wauneta Drive and Northeast 50th Place); Thence continuing North along the Northerly Extension of said Lot 17 to the North Right of Way line of said Lot D, (Wauneta Avenue and Northeast 50th Place) and the Southwest corner of Lot 2 of said Goode Heights Plat One; Thence North along the West line of said Lot 2 to the Northwest corner of said Lot 2; Thence East along the North line of said Lot 2 to the Northeast corner of said Lot 2, also being the Southwest corner of Lot 27, Goode Heights Plat No.2, an Official Plat; Thence North along the West line of said Lot 27 to the Northwest corner of said Lot 27 and the South Right of Way line of Lot A, (also known as Forrest Goode Road and Northeast 51st Avenue) of said Goode Heights Plat No.2; Thence North along the Northerly Extension of the West line of said Lot 27 to the North Right of Way line of Northeast 51st Avenue (Forrest Goode Road); Thence West along said North Right of Way line to the Southeast corner of Lot 14 of Pettit Place, an Official Plat; Thence North along the West line of said Lot 14, a distance of 350.0 feet; Thence East along a line 350.0 feet North of and parallel with the South line of said Lot 14, a distance of 255.0 feet to the East line of said Lot 14; Thence South along the East line of said Lot 14, a distance of 350.0 feet to the South line of said Lot 14 to the North Right of Way line of said Northeast 51st Avenue (For-

rest Goode Road); Thence continuing South along the Southerly Extension of the East line of said Lot 14 to the centerline of said Northeast 51st Avenue Right of Way (Forrest Goode Road); Thence West along the centerline of said Northeast 51st Avenue Right of Way (Forrest Goode Road), said centerline also being the North line of Lot A of said Goode Heights Plat No.2, to a point that is 150 feet West of the East line of said Lot A; Thence South along a line that is 150 feet West of and parallel to the East line of said Lot 27, to a line that is 120 feet South of and parallel to the North line of said Lot 27; Thence East along said parallel line to the East line of said Lot 27; Thence South along said East line to the North line of Lot 1 of said Goode Heights Plat One; Thence East along the North line of said Lot 1, a distance of 10.0 feet to the Northeast corner of said Lot 1; Thence South along the East line of said Lot 1, to the Southeast corner of said Lot 1, said corner also being the Northeast corner of Lot D (Wauneta Avenue and Northeast 50th Place) in said Goode Heights Plat One; Thence West along the North line of said Lot D, (Wauneta Avenue and Northeast 50th Place), a distance of 60 feet; Thence South along a line that 60 feet West of and parallel with the East line of said Lot D, for a distance of 25 feet; Thence West along a line that is 25 feet South of and parallel with the North line of said Lot D to the Northerly Extension of Lot 17 in said Goode Heights Plat One; Thence South along said Northerly Extension of the West line of said Lot 17 and along the East line of Lots 17 and 19 of said Goode Heights Plat One, 280.0 feet, to the North line of Lot A (also known as Northeast 50th Avenue and Goode Drive) of said Goode Heights Plat 1, to a point 228.0 feet West of the East line of said Lot A; Thence East along said North line of Lot A to a point that is 117.0 feet West of the East line of said Section 14; Thence South along a line that is 117.0 feet West of and parallel with the East line of said Section 14 to the South Right of Way line of Northeast 50th Avenue (Goode Drive), and being on the West Right of Way line of Northeast 14th Street (U.S. Highway 69); Thence South 03° 06' 50" West, 149.25 feet along said Right of Way line; Thence South 89° 58' 00" East along said Right of Way line, a distance of 60.0 feet; Thence South 0° 07' 30" East along said Right of Way line, a distance of 90.00 feet; Thence South 48° 31' 07" West, 113.27 feet to the North Right of Way line of United States Interstate 35-80; Thence South along a straight line to a point that is 116 feet West of the East line of the Southeast Quarter (1/4) of said Section 14 and 1322.77 feet North of the South line of the Southeast Quarter (1/4) of said Section 14; Thence South 00° 07' 30" East, parallel with and 116.0 feet West of the East line of the Southeast Quarter (1/4) of said Section 14, a distance of 1131.04 feet; Thence South 89° 55' 30" West, 125.7 feet; Thence South 00° 07' 30" East, 191.7 feet to a point 50.0 feet North of the South line of the Southeast Quarter (1/4) of said Section 14; Thence East along a line that is 50.0 feet North of and parallel with the South line of said Section 14, a distance of 125.7 feet; Thence South 102.0 feet to a point 52.0 feet South of the North line of Section 23, Township 79 North, Range 24 West of the 5th P.M. and 116.0 feet West of the East line of said Section 23; Thence East along the South Right of Way line of Northeast 46th Avenue (East Broadway Avenue) to the West Right of Way line of Northeast 14th Street (U.S. Highway 69), said Right of Way line being 50.0 feet West of the East line of said Section 23; Thence South along the West Right of Way line of said Northeast 14th Street (U.S. Highway 69), 319.51 feet; Thence West 10.0 feet to the Northeast corner of Lot 15, Stickler Heights, an official plat; Thence South along said West Right of Way line and the East line of said Lot 15, a distance of 198.0 feet; Thence East 10.0 feet to the Northeast corner of Lot 16, of said Stickler Heights; Thence South and 50.0 feet West of and parallel with the East line of said Section 23, to the North line of Lot 1, Iowa Garden Acres, an Official Plat; Thence West along said North line of said Lot 1, to a point 200.0 feet East of the Northwest corner of said Lot 1; Thence South along a line that is 200.0 feet East of and parallel with the West line of said Lot 1, to the South line of said Lot 1; Thence continuing South along the Southerly

Extension of said parallel line to the centerline of Northeast 43rd Avenue, a distance of 15.0 feet; Thence West along said centerline to the Northerly Extension of the East line of Lot 49 of said Iowa Garden Acres; Thence East along a line that is 157.5 feet North of and parallel of the South line of Lots 49 and 50 of said Iowa Garden Acres to the West line of Lot 51 of said Iowa Garden Acres; Thence North along the West line of said Lot 51, to the Northwest corner of said Lot 51; Thence continuing North along the Northerly Extension of said West line to the centerline of Northeast 43rd Avenue Right of Way, a distance of 15.0 feet; Thence East along the centerline of Northeast 43rd Avenue and parallel with the North line of Lots 51 and 52 of said Iowa Garden Acres, to the West Right of Way line of Northeast 14th Street (U.S. Highway 69); said point being 50.0 feet West of the East line of said Section 23; Thence South along a line that is 50.0 West of and parallel to centerline of East Aurora Avenue Right of Way; Thence East along the centerline of East Aurora Avenue to the West Right of Way line US Interstate 235; Thence South along said West Right of Way line to the centerline of Hull Avenue; Thence West along said centerline of Hull Avenue to the Point of Beginning.

WHEREAS, expenditures and indebtedness are anticipated to be incurred by the City of Des Moines, Iowa, in the future to finance undertakings by the City of Des Moines to implement the Northeast Gateway Revitalization Urban Renewal Project pursuant to the Northeast Gateway Revitalization Urban Renewal Plan; and

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the Urban Renewal Area as above described, in accordance with the provisions of Section 403.19 of the 2015 Code of Iowa, as amended.

NOW THEREFORE, BE IT ORDAINED, by the City Council of the City of Des Moines, Iowa, as follows:

Section 1. That the taxes levied on the taxable property in the urban renewal area known as the Northeast Gateway Revitalization Urban Renewal Area, legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District, Des Moines Area Community College, and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. Except as otherwise provided in Iowa Code § 403.19, as amended, that portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said Urban Renewal Area upon the total sum of the assessed value of the taxable property in said Urban Renewal Area as shown on the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of property tax revenue, subject to any adjustment required by Iowa Code § 403.20, as amended, shall be allocated to and when collected be paid into the Fund for the respective taxing district as taxes by or for the taxing district into which all other property taxes are paid (the "base period taxes")

Section 3. Except as otherwise provided in Iowa Code § 403.19, as amended, that portion of the taxes each year in excess of the base period taxes determined as provided in Section 2 of this Ordinance shall be allocated to and when collected be paid into a special tax increment fund of the City of Des Moines hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of Chapters 384 and 403 of the Code of Iowa, as amended, incurred by the City of Des Moines to finance or refinance in whole or in part the Northeast Gateway Revitalization Urban Renewal Project. However, except as provided in Iowa Code § 403.19(2)(b), taxes for the regular and voter-approved physical plant and equipment levy of a school district imposed pursuant to Iowa Code § 298.2 and taxes for the instructional support program of a school district imposed pursuant to Iowa Code § 257.19, taxes for the payment of bonds and

interest of each taxing district, and taxes imposed under Iowa Code § 346.27(22) related to joint county-city buildings shall be collected against all taxable property within the taxing district without limitation by the provisions of this section.

Section 4. Except as otherwise provided in Iowa Code § 403.19, as amended, all taxes levied and collected upon the taxable property in said Northeast Gateway Revitalization Urban Renewal Area shall be paid into the funds of the taxing districts as taxes by or for said taxing districts in the same manner as all other property taxes unless or until the total assessed valuation of the taxable property in said Urban Renewal Area shall exceed the total assessed value of the taxable property in said Urban Renewal Area as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to this Ordinance, subject to any adjustment required by Iowa Code § 403.20, as amended.

Section 5. At such time as the principal of, and interest on, all loans, advances, bonds and interest thereon and indebtedness of the City of Des Moines hereinabove in Section 3 referred to have been paid, all monies thereafter received from taxes upon the taxable property in said Northeast Gateway Revitalization Urban Renewal Area shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property, unless and until additional loans, advances, indebtedness or bonds, if any, are incurred and certified by the City of Des Moines.

Section 6. The provisions of this Ordinance are intended and shall be construed so as to fully implement the provisions of Iowa Code § 403.19, as amended, with respect to the division of taxes from property within the Urban Renewal Area as described above. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the Code of Iowa with reference to said Urban Renewal Area and the territory therein.

Section 7: This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

FORM APPROVED:

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Roger K. Brown
Assistant City Attorney

[Passed November 9, 2015]

ORDINANCE NO. 15,427

AN ORDINANCE AMENDING ORDINANCE NO. 8666, AS AMENDED BY ORDINANCE NOS. 8667, 9282, 13,810 and 15,012, ENTITLED:

"AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL REAL PROPERTY LOCATED WITHIN THE CAPITOL CENTER DEVELOPMENT AREA URBAN RENEWAL PROJECT IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO A SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BOND ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL REDEVELOPMENT PROJECT"

AND ALSO AMENDING ORDINANCE NO. 10,404, AS AMENDED BY ORDINANCE NOS. 11,971, 12,054, 12,070, 13,565, 13,810 and 15,012, ENTITLED:

"AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE CAPITOL-CENTER DEVELOPMENT AREA

II URBAN RENEWAL PROJECT IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO THE SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BONDS ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL PROJECT"

AND ALSO AMENDING ORDINANCE NO. 11,419, AS AMENDED BY ORDINANCE NOS. 11,972, 12,054, 12,070, 13,565, 13,810 and 15,012, ENTITLED:

"AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE RIVERPOINT URBAN RENEWAL PROJECT IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO THE SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BOND ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL PROJECT"

TO AMEND THE BOUNDARY BETWEEN THE CAPITOL-CENTER DEVELOPMENT AREA I AND THE RIVERPOINT - AREA "A" SUBAREAS WITHIN THE METRO CENTER URBAN RENEWAL PROJECT TO PLACE THE REDEVELOPMENT PARCEL AT 420 COURT AVENUE ENTIRELY WITHIN THE CAPITOL-CENTER DEVELOPMENT AREA I FOR ADMINISTRATIVE PURPOSES WITHOUT CHANGE TO THE BASE VALUATIONS ESTABLISHED FOR EACH SUCH SUBAREA.

WHEREAS, the City Council of the City of Des Moines, Iowa, has heretofore, in Ordinance No. 8666, provided for the division of revenue from taxes within the Capitol-Center Development Area Urban Renewal Project Area (hereinafter referred to as the "Capitol-Center Development Area I"), pursuant to Section 403.19 of the 1973 Code of Iowa, as amended; and

WHEREAS, by Ordinance No. 8667 the City Council amended Ordinance No. 8666 (regarding the Capitol-Center Development Area Urban Renewal Project) to delete therefrom reference to a specific dollar figure of assessed value of taxable property; and

WHEREAS, by Ordinance No. 9282 the City Council amended Ordinance No. 8666, as amended by Ordinance No. 8667 (regarding the Capitol-Center Development Area Urban Renewal Project) to provide that said ordinance remain in effect until certain obligations of the City have been paid or secured; and

WHEREAS, the City Council of the City of Des Moines, Iowa, has heretofore, in Ordinance No. 10,404, provided for the division of revenue from taxes within the Capitol-Center Development Area II Urban Renewal Project Area (hereinafter referred to as the "Capitol-Center Development Area II - Area 'A'"), pursuant to Section 403.19 of the 1983 Code of Iowa, as amended; and

WHEREAS, an additional area (hereinafter referred to as "Capitol-Center Development Area II - Area 'B'") was added to the Capitol-Center Development Area II Urban Renewal Project Area and by Ordinance No. 11,971, the City Council amended Ordinance No. 10,404 to expand the area subject to the division of revenue from taxes under Ordinance No. 10,404 to include the additional area; and

WHEREAS, the City Council of the City of Des Moines, Iowa, has heretofore, in Ordinance No. 11,419, provided for the division of revenue from taxes within the Riverpoint Urban Renewal Project Area (hereinafter referred to as the "Riverpoint - Area 'A'"), pursuant to Section 403.19 of the 1989 Code of Iowa, as amended; and

WHEREAS, an additional area (hereinafter referred to as "Riverpoint - Area 'B'") was added to the Riverpoint Urban Renewal Project Area and by Ordinance No. 11,972 the City Council amended Ordinance No. 11,419 to expand the area subject to the division of revenue from taxes under Ordinance No. 11,419 to include the additional area; and

WHEREAS, by amendments to the Urban Renewal Plans for the Capitol-Center Development Area II Urban Renewal Project and the Riverpoint Urban Renewal Project, after notice and public hearing as prescribed by law, said Urban Renewal Plans were amended to provide for the consolidation and expansion of the two urban renewal projects to include additional areas (hereinafter referred to as "Capitol-Center Development Area II - Areas 'C' and 'D'", and "Riverpoint Area 'C'") in accordance with the Urban Renewal Plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project; and

WHEREAS, by Ordinance No. 12,054 the City Council amended Ordinance No. 10,404, as amended by Ordinance No. 11,971 (regarding the Capitol-Center Development Area II Urban Renewal Project) and also amended Ordinance No. 11,419 as amended by Ordinance No. 11,972 (regarding the Riverpoint Urban Renewal Project) to consolidate and expand the area subject to the division of revenue from taxes to be in accordance with the Urban Renewal Plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project; and,

WHEREAS, by the First Amendment to the Urban Renewal Plan for the Riverpoint Capitol-Center Development Area, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to add an additional area (hereinafter referred to as "Capitol-Center III - Area 'A'"); and

WHEREAS, by Ordinance No. 12,070 the City Council amended Ordinance No. 10,404, as amended by Ordinance Nos. 11,971 and 12,054 (regarding the Capitol-Center Development Area II Urban Renewal Project) and also amended Ordinance No. 11,419, as amended by Ordinance Nos. 11,972 and 12,054 (regarding the Riverpoint Urban Renewal Project) to expand the area subject to the division of revenue from taxes to be in accordance with the Urban Renewal Plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project; and,

WHEREAS, by the Fifth Amendment to the Urban Renewal Plan for the Riverpoint Capitol-Center Development Area, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to add an additional area (hereinafter referred to as the "Sixth Avenue Area"); and

WHEREAS, by Ordinance No. 13,565 the City Council amended Ordinance No. 10,404, as amended by Ordinance Nos. 11,971, 12,054 and 12,070 (regarding the Capitol-Center Development Area II Urban Renewal Project) and also amended Ordinance No. 11,419, as amended by Ordinance Nos. 11,972, 12,054, and 12,070 (regarding the Riverpoint Urban Renewal Project) to expand the area subject to the division of revenue from taxes to be in accordance with the amended Urban Renewal Plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project; and,

WHEREAS, by amendments to the Urban Renewal Plans for the Riverpoint Capitol-Center Development Area Urban Renewal Project and the Capitol-Center Development Area Urban Renewal Project, after notice and public hearing as prescribed by law, said Urban Renewal Plans were amended to provide for the consolidation of the two urban renewal projects in accordance with the Urban Renewal Plan for the combined urban renewal projects to be known as the Metro Center Urban Renewal Project; and

WHEREAS, by Ordinance No. 13,810 the City Council amended Ordinance No. 8666, as amended by Ordinance Nos. 8667 and 9282 (regarding the Capitol-Center Development Area Urban Renewal Project), and amended Ordinance No. 10,404, as amended by Ordinance Nos. 11,971, 12,054, 12,070 and 13,565 (regarding the Capitol-Center Development Area II Urban Renewal Project) and also amended Ordinance No. 11,419, as amended by Ordinance Nos. 11,972, 12,054, 12,070 and 13,565 (regarding the Riverpoint Urban Renewal Project) to consolidate and expand

the area subject to the division of revenue from taxes to be in accordance with the Urban Renewal Plan for the combined Metro Center Urban Renewal Project; and

WHEREAS, by the 10th Amendment to the Urban Renewal Plan for the Metro Center Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to add an additional area (hereinafter referred to as the "River Hills 2011 Area"); and

WHEREAS, by Ordinance No. 15,012 the City Council amended Ordinance No. 8666, as amended by Ordinance Nos. 8667, 9282 and 13,810 (regarding the Capitol-Center Development Area Urban Renewal Project), and amended Ordinance No. 10,404, as amended by Ordinance Nos. 11,971, 12,054, 12,070, 13,565 and 13,810 (regarding the Capitol-Center Development Area II Urban Renewal Project) and also amended Ordinance No. 11,419, as amended by Ordinance Nos. 11,972, 12,054, 12,070, 13,565 and 13,810 (regarding the Riverpoint Urban Renewal Project) to expand the area subject to the division of revenue from taxes to be in accordance with the Urban Renewal Plan for the expanded Metro Center Urban Renewal Project; and

WHEREAS, by the 17th Amendment to the Urban Renewal Plan for the Metro Center Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to amend the boundary between the Capitol-Center Development Area I and the Riverpoint - Area "A" subareas within the Metro Center Urban Renewal Project to place the redevelopment parcel at 420 Court Avenue entirely within the Capitol-Center Development Area I for administrative purposes without change to the Base Valuations established for each such subarea; and

WHEREAS, the following enactment is necessary to accomplish the objectives described above and in the Urban Renewal Plan for the Metro Center Urban Renewal Project; NOW, THEREFORE,

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA AS FOLLOWS:

Section 1. That Ordinance Nos. 8666, 8667, 9282, 10,404, 11,419, 11,971, 11,972, 12,054, 12,070, 13,565, 13,810 and 15,012 are hereby amended to read as follows:

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved August 2, 1973, adopted an Urban Renewal Plan for an area known as the Capitol-Center Development Area Urban Renewal Project, which original project area (hereinafter designated Capitol-Center Development Area I) includes the lots and parcels within the boundaries as follows:

CAPITOL-CENTER DEVELOPMENT AREA I

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the northerly right-of-way line of Grand Avenue and the westerly right-of-way line of Eighth Street, thence south along the westerly right-of-way line of Eighth Street to its intersection with the centerline of the Des Moines Union Railroad mainline; thence east along the centerline of the Des Moines Union Railroad mainline to its intersection with the easterly right-of-way line of East Seventh Street; thence north along the easterly right-of-way line of East Seventh Street to its intersection with the southerly right-of-way line of the alley south of Locust Street; thence east along the southerly right-of-way line of the alley south of Locust Street to its intersection with the westerly property line of the State Capitol grounds; thence north along the westerly property line of the State Capitol grounds to its intersection with the southerly right-of-way line of Locust Street; thence west along the southerly right-of-way line of Locust Street to its intersection with the easterly right-of-way line of Pennsylvania Avenue; thence north along the easterly right-of-way line of Pennsylvania Avenue to its intersection with the southerly right-of-way line of Des Moines Street; thence

west along the southerly right-of-way line of Des Moines Street to its intersection with the westerly right-of-way line of East First Street; thence north along the westerly right-of-way line of East First Street to its intersection with the southerly boundary line of the River Hills Urban Renewal Project; thence west and south along the southerly boundary line of the River Hills Urban Renewal Project to its intersection with the northerly right-of-way line of Grand Avenue; thence west along the northerly right-of-way line of Grand Avenue to its intersection with the westerly right-of-way line of Eighth Street, which is the point of beginning.

and

WHEREAS, Capitol Center Development Area I may also be described as follows:

Capitol-Center Development Area I
(alternate description)

Beginning at the intersection of the northerly right-of-way line of Grand Avenue and the westerly right-of-way line of Eighth Street, thence southerly along said westerly right-of-way line of Eighth Street to the center line of the former Des Moines Union Railroad, now the Norfolk & Southern Railroad; thence easterly along said center line to the easterly right-of-way line of East Seventh Street; thence northerly along said easterly right-of-way line to the southerly right-of-way line of the 10-foot wide east-west alley South-East Locust Street; thence easterly along said southerly line to the westerly property line of the State Capitol grounds, also being the easterly line of the north-south alley in Block H, Griffith's Addition to East Fort Des Moines, an official plat; thence northerly along said easterly line to the southerly right-of-way line of East Locust Street; thence westerly along said southerly right-of-way line to the easterly right of way line of Pennsylvania Avenue; thence northerly along said easterly line to the southerly right-of-way line of Des Moines Street; thence westerly along said southerly line to the westerly right-of-way line of East First Street; thence northerly along said westerly line 190 feet; thence west along a line perpendicular to the east line of East First Street to the west property line of the Armory; thence south along said west property line to the south line of said Des Moines Street extended; thence west along said south line extended to the east bank of the Des Moines River; thence south along said east bank to the northerly right-of-way line of East Grand Avenue, thence westerly along said northerly line to the westerly right-of-way line of Eighth Street and the point of beginning.

and

WHEREAS, by Ordinance No. 8667 the City Council amended Ordinance No. 8666 (regarding the Capitol-Center Development Area Urban Renewal Project) to delete therefrom reference to a specific dollar figure of assessed value of taxable property; and

WHEREAS, by Ordinance No. 9282 the City Council amended Ordinance No. 8666, as amended by Ordinance No. 8667 (regarding the Capitol-Center Development Area Urban Renewal Project) to provide that said ordinance remain in effect until certain obligations of the City have been paid or secured; and

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved December 19, 1983, adopted an Urban Renewal Plan for an area known as Capitol-Center Development Area II Urban Renewal Project, which original project area (herein designated as "Capitol-Center Development Area II - Area 'A'") includes the lots and parcels within the boundaries as follows:

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "A"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the northerly right-of-way line of Grand Avenue and the easterly right-of-way line of Second Avenue, thence west along the northerly right-of-way line of Grand Avenue to its intersection with the westerly right-of-way line of Eighth Street, thence south along the westerly right-of-way

line of Eighth Street to its intersection within the center line of the old Rock Island Railroad mainline, thence west along the center line of the old Rock Island Railroad mainline to its intersection with the easterly right-of-way line of Eleventh Street, thence north along the easterly right-of-way line of Eleventh Street to the point of intersection with the northerly right-of-way line of High Street, thence east from said point along the northerly right-of-way line of High Street to the intersection with the westerly right-of-way line of Tenth Street, thence north along the westerly right-of-way line of Tenth Street to the intersection of the southerly right-of-way line of Woodland Avenue, thence east along the projection of the southerly right-of-way line of Woodland Avenue to the point of intersection with the easterly right-of-way line of Tenth Street, thence north from said point along the easterly right-of-way line of Tenth Street to the intersection of the southerly right-of-way line of Pleasant Street, thence east along the southerly right-of-way line of Pleasant Street to the point of intersection with the projection of the west line of Lot 12, Methodist Plat No. 1, thence northerly along said projected west line of said Lot 12 to the northerly right-of-way line of Pleasant Street, thence east along the northerly right-of-way line of Pleasant Street to the intersection of the westerly right-of-way line of Ninth Street, thence north along the westerly right-of-way line of Ninth Street to its intersection with a point twenty (20) feet south of the north line of said Lot 12 of Methodist Plat No. 1, thence east along a projection of a line twenty (20) feet south of and parallel to the north line of said Lot 12 to the point of intersection of the easterly right-of-way line of Ninth Street, thence north along the easterly right-of-way line of Ninth Street to the intersection of the northerly right-of-way line of Keosauqua Way, thence northerly and westerly along said northerly right-of-way line of Keosauqua Way to the intersection with the southerly right-of-way line of Crocker Street, thence east along the southerly right-of-way line of Crocker Street to the intersection of the easterly right-of-way line of Ninth Street, thence north along the easterly right-of-way line of Ninth Street to the intersection of the northerly right-of-way line of School Street, thence east along the northerly right-of-way line of School Street to the intersection of the easterly right-of-way line of Sixth Avenue, thence south along the easterly right-of-way line of Sixth Avenue to the intersection with the northerly right-of-way line of Crocker Street, thence east along the northerly right-of-way line of Crocker Street to the intersection of the westerly right-of-way line of Fifth Avenue, thence north along the westerly right-of-way line of Fifth Avenue to the point of intersection of the westerly projection of the north line of Lot 1, Block F, River Hills Plat 1, thence east along the projected north line of said Lot 1 to the intersection of the easterly right-of-way line of Third Street, thence south along the easterly right-of-way line of Third Street to the intersection of the northerly right-of-way line of Keosauqua Way, thence east along the northerly right-of-way line of Keosauqua Way to the point of intersection with the easterly right-of-way line of Second Avenue, thence south from said point along the easterly right-of-way line of Second Avenue to the point of beginning.

and

WHEREAS, by Amendment to said Urban Renewal Plan, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted for an extended area consisting of the Capitol-Center Development Area II - Area "A" combined with the Capitol-Center Development Area II - Area "B", which includes the lots and parcels within the boundaries as follows:

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "B"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the north right-of-way line of School Street and the east right-of-way line of 9th Street; thence southerly along the northerly extension of and the east right-of-way line of 9th Street and the southerly extension of said right-of-way line to the south

right-of-way line of Crocker Street; thence westerly along the westerly extension and the south right-of-way line of Crocker Street to the east right-of-way line of Keosauqua Way; thence northwesterly along said east right-of-way line of Keosauqua Way to the east right-of-way line of the Keosauqua/I-235 Intersection; thence north along said east right-of-way line of the Keosauqua/I-235 Intersection; thence east along the south right-of-way line of the Keosauqua/I-235 Intersection to the west right-of-way line of 12th Place; thence north along said west right-of-way line and the northerly extension of the west right-of-way line of 12th Place to the north right-of-way line of School Street; thence east along the north right-of-way line of School Street to the point of beginning.

and

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved December 18, 1989, adopted an Urban Renewal Plan for an area known as Riverpoint Urban Renewal Project, which original project area (hereinafter designated Riverpoint - Area "A") includes the lots and parcels within the boundaries as follows:

RIVERPOINT - AREA "A"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the southerly right-of-way line of East Court Avenue and the easterly right-of-way line of East 7th Street; thence east along the southerly right-of-way line of East Court Avenue to its intersection with the east right-of-way line of vacated East 8th Street; thence southerly along the east right-of-way of vacated 8th Street to a point 47.0 feet south of the south right-of-way line of East Court Avenue; thence southeasterly along a straight line to the northwest corner of Lot 1, Block 22, official plat of Lots 3 through 8, Town of Des Moines, an official plat; thence southeasterly along a straight line to a point on the east right-of-way line of vacated East 11th Street, said point being 67.35 feet south of the northwest corner of Lot 3, Block 23, official plat of Lots 3 through 8, Town of Des Moines, an official plat; thence easterly along a straight line to a point on the east lot line and 3.0 feet north of the southwest corner of Lot 8, of said Block 23; thence southerly to the southwest corner of said Lot 8; thence easterly to the southeast corner of said Lot 8; thence southeasterly along a straight line to the northwest corner of Lot 9, of the official plat of Lot 1, of the official plat of the east 1/2 of the southeast 1/4 of Section 3, Township 78 North, Range 24 West of the 5th P.M. the south 236.0 feet of the west 1/2 of Lot 31, Brooks and Company's Addition, an official plat; thence southerly to the southwest corner of said Lot 9; thence easterly along the south lot lines of Lots 9, 10, 30, 31 and 55 of said official plat of said Lot 1 to its intersection with the east line of the southeast 1/4 of said Section 3; thence southerly along said east line of said Section 3 and along the east line of the northeast 1/4 of Section 10, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the northeasterly projection of the south right-of-way line of Scott Street; thence southwesterly along said projected south right-of-way line of Scott Street and along the south right-of-way line of Scott Street to its intersection with the east bank of the Des Moines River; thence northwesterly along the east bank of the Des Moines River to the point of its intersection with the southerly side of the Scott Street Bridge; thence southwesterly along the southerly side of the Scott Street Bridge to a point of its intersection with the west bank of the Des Moines River; thence southeasterly along said west bank of the Des Moines River to the point of its intersection with the northeasterly projection of the southeasterly right-of-way line of Southeast 1st Street; thence southwesterly along said projected southeasterly right-of-way line of Southeast 1st Street and along the southeasterly right-of-way line of Southeast 1st Street to a point of its intersection with the center line of the Chicago and Great Western Railroad right-of-way; thence southwesterly along said center line of the Chicago and Great Western Railroad right-of-way to a point of its intersection with

the easterly right-of-way line of Southwest 1st Street; thence southwesterly along the easterly right-of-way line of Southwest 1st Street to its intersection with the southerly right-of-way line of Indianola Avenue; thence northwesterly and westerly along the south right-of-way line of Indianola Avenue and along the southerly right-of-way line of Clifton Avenue, to its intersection with the southerly projection of the westerly right-of-way line of Southwest 7th Street; thence northwesterly along said southerly projected westerly right-of-way line of Southwest 7th Street and the westerly right-of-way line of Southwest 7th Street to its intersection with the southerly bank of the Raccoon River; thence southwesterly and westerly along said south bank of the Raccoon River to its intersection with the south line of Government Lot 11, West of the Raccoon River of Section 8, Township 78 North, Range 24 West of the 5th P.M. an official plat; thence westerly along south line of said Government Lot 11 and the westerly projection of the south line of said Government Lot 11 to a point 33 feet west of the center line of said Section 8; thence northerly and 33.0 feet west of and parallel with the center line of said Section 8 to its intersection with the south line of Lot 1, of the official plat of the northwest 1/4 of said Section 8; thence southeasterly along the south line of said Lot 1, 75.0 feet West of the east line of said Lot 1; thence northerly and 75.0 feet west of and parallel with the east line of said Lot 1, 225.0 feet south of the north line of said Lot 1; thence westerly 18.0 feet and 225.0 feet south of the north line of said Lot 1; thence northerly 225.0 feet and 93.0 feet west of the northeast corner of said Lot 1 to the north line of said Lot 1 and the south right-of-way line of Grand Avenue; thence northwesterly to the north right-of-way line of Grand Avenue which is 40.0 feet north of and 100.0 feet west of the southeast corner of Lot 9, of the official plat of the southwest 1/4 of Section 5, Township 78 North, Range 24 West of the 5th P.M., an official plat; thence northerly along a line 100.0 feet west of and parallel with the east line of said Lot 9 and along the northerly projection of said line to the north right-of-way line of Ingersoll Avenue; thence easterly along the north right-of-way line of Ingersoll Avenue and the easterly projected north right-of-way line of Ingersoll Avenue and its projections to its intersection with the northwesterly projection of the easterly right-of-way line of 16th Street; thence southeasterly along said northwesterly projected easterly right-of-way line of 16th Street and the easterly right-of-way line of 16th Street to its intersection with the north right-of-way line of Falcon Drive thence easterly along the north right-of-way line of Falcon Drive and its easterly projections to its intersection with the northwesterly projection of the east right-of-way line of 13th Street; thence southeasterly along said northwesterly projected east right-of-way line of 13th Street and the east right-of-way of 13th Street to its intersection with the south right-of-way line of Cherry Street; thence easterly along the south right-of-way line of Cherry Street and its projected south right-of-way line to its intersection with the east right-of-way line of 11th Street; thence southeasterly along the east right-of-way line of 11th Street to its intersection with the center line of the Iowa Interstate Railroad Mainline (formerly known as Rock Island Railroad); thence easterly along the center line of the Iowa Interstate Railroad Mainline (formerly known as Rock Island Railroad) to its intersection with the southerly projection of the westerly right-of-way line of 8th Street; thence northerly along the southerly projection of the westerly right-of-way line of 8th Street to the westerly right-of-way line of 8th Street to its intersection within the center line of the Des Moines Union Railroad Mainline; thence easterly along the center line of the Des Moines Union Railroad Mainline to its intersection with the easterly right-of-way line of East 7th Street; thence northerly along the easterly right-of-way line of East 7th Street to its intersection with the southerly right-of-way line of East Court Avenue, to the point of beginning.

and

WHEREAS, by Amendment to said Urban Renewal Plan, after public notice and hearing as prescribed by law, said Urban Renewal Plan was

amended and adopted for an extended area consisting of Riverpoint - Area "A" combined with Riverpoint - Area "B", which includes the lots and parcels within the boundaries as follows:

RIVERPOINT - AREA "B"

That part of the City of Des Moines, Polk County, Iowa, described as follows:

Bounded on the north by the south right-of-way Line of East Scott Street, bounded on the east by the center line of Southeast 14th Street, bounded on the south and west by the right (south) bank of the Des Moines River.

and

WHEREAS, by Amendment to the Urban Renewal Plans for the Riverpoint Urban Renewal Project and the Capitol-Center Development Area II Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plans were amended and adopted to provide for the consolidation and expansion of the two Projects as set forth in the Urban Renewal Plan for the Riverpoint Capitol-Center Development Area Urban Renewal Plan; and

WHEREAS, the Riverpoint Capitol-Center Development Area Urban Renewal Area originally consisted of Capitol-Center Development Area II - Areas "A" and "B", combined with Riverpoint - Areas "A" and "B", all as described above, and expanded to include Capitol-Center Development Area II - Areas "C" and "D" and Riverpoint - Area "C", described as follows:

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "C"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the westerly right-of-way line of 3rd Street and the south line of Lot G. River Hills Plat 1, an official plat; thence easterly along the southerly line of said Lot G to its intersection with the right (west) bank of the Des Moines River; thence south along said right bank to its intersection with the northerly right-of-way line of Grand Avenue extended easterly; thence westerly along the northerly right-of-way of Grand Avenue to its intersection with the east right-of-way line of 2nd Avenue extended southerly; thence northerly along the east right-of-way line of 2nd Avenue to its intersection with the easterly extension of the north right-of-way line of Keosauqua Way; thence west along the easterly extension of the north right-of-way line of Keosauqua Way to the west right-of-way line of 3rd Street; thence north along the west right-of-way line of 3rd Street to the point of beginning.

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "D"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Block E, Lot M (except the east 80 feet thereof) and that part of Lot G South of the north lot line of said Lot M extended west, River Hills Plat 1, an official plat

RIVERPOINT - AREA "C"

That part of the City of Des Moines Polk County, Iowa, described as follows:

Beginning at the intersection of the southerly right-of-way line of the Chicago Great Western Railroad with the easterly right-of-way line of Southeast 1st Street; thence southerly along the easterly right-of-way line of Southeast 1st Street to the southerly right-of-way line of East Edison Street; thence easterly along the southerly right-of-way line of East Edison Street to the westerly right-of-way line of Southeast 2nd Street; thence southerly along the westerly right-of-way line of Southeast 2nd Street to the westerly extension of the southerly right-of-way line of the east/west alley lying south of and adjoining Lots 1 through 6, inclusive, Block 6, Clifton Heights, an official plat; thence easterly along the westerly extension of the southerly right-of-way line of said east/west alley to the westerly right-of-way line of Southeast 2nd Court; thence southerly along the westerly right-of-way line of Southeast 2nd Court and the westerly line of Lot 2, Millsap Subdivision, an official plat, to the north line of Lot 6, official plat of the

west 1/2 of Section 10, Township 78 North, Range 24 West of the 5th P.M.; thence west along the north line of said Lot 6 extended westerly to the southerly right-of-way line of East Indianola Avenue; thence westerly along the southerly right-of-way line of East Indianola Avenue to its intersection with the southerly extension of the westerly right-of-way line of Southwest 1st Street; thence northerly along the westerly right-of-way line of Southwest 1st Street to the southerly right-of-way line of the Chicago Great Western Railroad; thence northeasterly along the southerly right-of-way line of the Chicago Great Western Railroad to the point of beginning.

and

WHEREAS, by the First Amendment to the Urban Renewal Plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted for an extended area consisting of the original Riverpoint Capitol-Center Development Area Urban Renewal Project Area combined with Capitol-Center III - Area "A", which includes the lots and parcels within the boundaries as follows:

CAPITOL CENTER III - AREA "A"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the northerly right-of-way line of Keosauqua Way with the east right-of-way line of 9th Street, extended north; thence south along the east right-of-way line of 9th Street and its northerly extension to the south right-of-way line of Chestnut Street extended east; thence west along the extended south right-of-way line of Chestnut Street to the west right-of-way line of 9th Street; thence South along the west right-of-way line of 9th Street to the north right-of-way line of Pleasant Street; thence west along the north right-of-way line of Pleasant Street to the west lot line of Lot 12, Methodist Plat No. 1, an official plat; thence south along the extended west lot line of said Lot 12 to the center line of Pleasant Street; thence West along the center line of Pleasant Street to the east right-of-way line of 10th Street extended north; thence south along the east right-of-way line of 10th Street and its northerly extension to the south right-of-way line of Woodland Avenue extended east; thence West along the easterly extension of the south right-of-way line of Woodland Avenue to the west right-of-way line of 10th Street; thence south along the west right-of-way line of 10th Street to the north right-of-way line of High Street; thence west along the north right-of-way line of High Street to the east right-of-way line of 11th Street extended north; thence south along the east right-of-way line of 11th Street and its northerly extension to the south right-of-way line of Cherry Street; thence west along the south right-of-way line of Cherry Street and its easterly extension to the east right-of-way line of 13th Street extended south; thence north along the east right-of-way line of 13th Street and its southerly extension to the north right-of-way line of Falcon Drive extended east; thence west along the north right-of-way line of Falcon Drive and its easterly extension to the east right-of-way line of 16th Street; thence north along the east right-of-way line of 16th Street to the north right-of-way line of Ingersoll Avenue; thence west along the north right-of-way line of Ingersoll Avenue and its westerly extension to the center line of Martin Luther King Jr. Parkway (formerly Harding Road); thence north along the center line of Martin Luther King Jr. Parkway to the north right-of-way line of Woodland Avenue extended west; thence east along the north right-of-way line of Woodland Avenue and its westerly and easterly extensions to the center line of 16th Street; thence north along the center line of 16th Street to the north lot line of Lots 18 and 7 Sherman Place, an official plat extended west; thence east along the north lot line of said Lots 18 and 7 and their westerly extension to the west right-of-way line of 15th Street; thence north along the west right-of-way line of 15th Street to the north right-of-way line of Center Street extended west; thence east along the north right-of-way line of Center Street; and its

westerly extension, said line also being the south lot line of Lots 1 and 2, Oakridge Plat No. 1, an official plat, and Lots 2, 3 and 6, Oakridge Plat No. 3, an official plat to the southeasterly corner of said Lot 6; thence north along the east lot line of said Lot 6 and the east lot line of Lot 5, in said Oakridge Plat No. 3 to the northeasterly corner of said Lot 5; thence northwesterly along the northerly line of said Oakridge Plat Nos. 1 and 3 to the northeasterly corner of Lot 6, in said Oakridge Plat No. 1, said point also being on the south right-of-way line of Interstate 235; thence in a straight line easterly to the northwest corner of Lot K, Grass Roots 1 an official plat 1; thence south along the west line of Lots K and N, Grass Roots I to the north lot line of Lot 7, Block 7, Grass Roots 1; thence west along the north lot line of said Lot 7 to the northwest corner of said Lot 7; thence south along the west lot line of said Lot 7 to the northerly right-of-way line of Keosauqua Way; thence southeasterly along the northerly right-of-way line of Keosauqua Way to the point of beginning.

and

WHEREAS, by the Fifth Amendment to the Urban Renewal Plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted for an extended area consisting of the original Riverpoint Capitol-Center Development Area Urban Renewal Project Area combined with Capitol-Center III - Area "A", and expanded to include the Sixth Avenue Area, which includes the lots and parcels within the boundaries as follows:

SIXTH AVENUE AREA

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the Northeast corner of Lot 1, Block 10, Polk County Homestead and Trust Co.'s Addition, an official plat, of the southwest 1/4 of the northeast 1/4 of Section 34, Township 79 North, Range 24 West of the 5th P.M., also being on the south right-of-way line of Franklin Avenue and the west right-of-way line of Seventh Street; thence east along the south right-of-way line of Franklin Avenue and its easterly extension to the east right-of-way line of Oakland Avenue, being the northwest corner of Lot 36, Oakland Park, an official plat; thence south along the east right-of-way line and its southerly extension to the south right-of-way line of College Avenue and being 5.0 feet west of the northwest corner of Lot 63, Bates Addition, an official plat; thence west along the south right-of-way line and its westerly extension to the east right-of-way line of Fifth Avenue, being the northwest corner of Lot 25 of said Bates Addition; thence south along the east right-of-way line of Fifth Avenue and its southerly extension to the south right-of-way line of University Avenue; thence northwesterly along the south right-of-way line of University Avenue to the east right-of-way line of Sixth Avenue; thence south along the east right-of-way line of Sixth Avenue and its southerly extension to the north right-of-way line of School Street; thence west along the easterly extension of the north right-of-way line and the north right-of-way line of School Street to the west right-of-way line of Seventh Street; thence north along the west right-of-way line of Seventh Street to a point being 505.37 feet south of the south right-of-way line of University Avenue also being the south line of the north 7.7 feet of Lot 5 of the official plat of the northeast 1/4 of the northwest 1/4 of Section 4, Township 78 North, Range 24 West of the 5th PM.; thence west along a straight line of the east right-of-way line of 8th Street also being 6.4 feet north of the south line of Lot 9 of the official plat of said Section 4; thence north along the east right-of-way line of 8th Street to the south right-of-way line of University Avenue, also being the northwest corner of Lot 48, North Park, an official plat; thence west along the south right-of-way line of University Avenue and it westerly extension to the west right-of-way line of 9th Street; thence north along the west right-of-way line of 9th Street and its northerly extension to the intersection of the westerly extension of the north right-of-way line of Indiana Avenue; thence east along the westerly

extension of the north right-of-way line of Indiana Avenue to the southwest corner of Lot 10 of said North Park; thence continuing east along the north right-of-way line of Indiana Avenue and it easterly extension to the east right-of-way line 8th Street being the southwest corner of Lot 56 of said North Park; thence north along the east right-of-way line of 8th Street and its northerly extension to the north line of Forest Avenue, being the southeast corner of Lot 1, Butt's Subdivision, an official plat; thence east along the north right-of-way line of Forest Avenue and its easterly extension to the west right-of-way line of Seventh Street, being the southeast corner of Lot 46 of the official plat of Government Lot 3 of Section 34, Township 79 North Range 24 West of the 5th P.M.; thence north along the west right-of-way line of Seventh Street to the northeast corner of Lot 13, E.M. Kelsey's Subdivision, an official plat; thence northwesterly to the northwest corner of Seventh Street and Clark Street, being on the north right-of-way line of Clark Street and the west right-of-way line of Seventh Street; thence north along the west right-of-way line of Seventh Street and its northerly extension to the south right-of-way line of Franklin Avenue and the point of beginning, all now included in the forming a part of the City of Des Moines, Polk County, Iowa.

WHEREAS, by amendments to the Urban Renewal Plans for the Riverpoint Capitol-Center Development Area Urban Renewal Project and the Capitol-Center Development Area Urban Renewal Project, after notice and public hearing as prescribed by law, said Urban Renewal Plans were amended to provide for the consolidation of the two urban renewal projects in accordance with the Urban Renewal Plan for the combined urban renewal projects to be known as the Metro Center Urban Renewal Project; and

WHEREAS, by the Tenth Amendment to the Urban Renewal Plan for the Metro Center Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted for an area consisting of the Capitol Center Development Area I combined with Capitol-Center Development Area II - Areas "A", "B", "C" and "D"; Riverpoint - Areas "A", "B" and "C"; Capitol-Center III - Area "A"; and Sixth Avenue Area, extended to include the River Hills 2011 Area, which includes the lots and parcels within the boundaries as follows:

RIVER HILLS 2011 AREA

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the northeast corner of the south half of Lot 11 of Block 21 of Central Place, an Official Plat, being on the north right-of-way line of University Avenue; thence east along a line parallel with the south line of the Southwest Quarter of Section 35, Township 79 North, Range 24 West of the 5th Principal Meridian (P.M.) to its intersection with the northerly extension of the east right-of-way line of East 6th Street; thence southerly along the east right-of-way line of East 6th Street and its northerly extension to its intersection with the south right-of-way line of vacated Filmore Street; thence west along the south right-of-way line of vacated Filmore Street to the northwest corner of Lot 5 of River Hills Plat Four, an Official Plat, said northwest corner also being on the easterly line of Lot 6 of River Hills Plat Four; thence southerly along the easterly line of said Lot 6 to the northerly right-of -way line of Interstate Highway 235, as presently established; thence southerly to the northwest corner of Lot 1 of Block D of River Hills Plat Three, an Official Plat, also being on the southerly right-of-way line of Interstate highway 235; thence southeasterly along the northeasterly and easterly line of said Lot 1 and its continuation as the westerly right-of way line of East 6th Street to its intersection with the southerly right-of-way line of Des Moines Street; thence westerly along the southerly right-of-way line of Des Moines Street, also being the north boundary of the Capitol-Center Urban Renewal Sub-Area of the Metro Center Urban Renewal Area, to its intersection with the westerly right-of-way line of East 1st Street, now known of Robert D. Ray Drive; thence north along the westerly right-of-way line of Robert D. Ray

Drive to its intersection with the southerly line of Lot 5 of Block D of said River Hills Plat Three, also being on the southerly boundary of River Hills Urban Renewal project ; thence west along a line perpendicular to the westerly right-of-way line of Robert D. Ray Drive to its intersection with the east bank of the Des Moines River; thence south along the east bank of the Des Moines River to its intersection with the northerly right-of-way line of Grand Avenue; thence west along the northerly right-of-way line of Grand Avenue to its intersection with the west bank of the Des Moines River; thence north along the west bank of the Des Moines River to its intersection with the southerly line of Lot G of River Hills Plat One, an Official Plat, also being on the southerly right-of-way line of Interstate Highway 235; thence westerly along the southerly line of said Lot G (Interstate Highway 235) to the northeast corner of Lot O (2nd Avenue) of said River Hills Plat One; thence northeasterly to the southeast corner of Lot 3 of River Hills Plat Five, an official plat, also being on the northerly right-of-way line of Interstate Highway 235; thence northeasterly along the easterly line of said Lot 3 to the southeast corner of Lot A (Illinois Street) of said River Hills Plat Five; thence northwesterly and northeasterly along the westerly line of said Lot A to the northwest corner of said Lot A, being on the south right-of-way line of University Avenue as presently established; thence east along the north line of said Lot A to its intersection with the southerly extension of the east line of Block 21 of said Central Place; thence north along the east line of said Block 21 and its southerly extension to the point of beginning.

WHEREAS, by the Seventeenth Amendment to the Urban Renewal Plan for the Metro Center Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to amend the boundary between the Capitol-Center Development Area I and the Riverpoint - Area "A" subareas within the Metro Center Urban Renewal Project to place the redevelopment parcel at 420 Court Avenue and more specifically described as follows, entirely within the Capitol-Center Development Area I for administrative purposes without change to the Base Valuations established for each such subarea:

420 COURT AVENUE REDEVELOPMENT PARCEL

All of Block 20, Fort Des Moines, an Official Plat - except Lots 6 and 7 in said Block 20 and except all that part of the vacated North/South alley right of way in said Block 20 lying between said Lots 6 and 7, all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

WHEREAS, the Metro Center Urban Renewal Project Area consists of Capitol Center Development Area I combined with Capitol-Center Development Area II - Areas "A", "B", "C" and "D"; Riverpoint - Areas "A", "B" and "C"; Capitol-Center III - Area "A"; Sixth Avenue Area; and River Hills 2011, all as described above, with the boundary between the Capitol-Center Development Area I and the Riverpoint - Area "A" subareas being amended to place the entirety of the 420 Court Avenue Redevelopment Parcel described above within the Capitol-Center Development Area I for administrative purposes without change to the Base Valuations established for each subarea; and

WHEREAS, the continuing needs of redevelopment of the consolidated Metro Center Urban Renewal Project are such as to require application of the incremental tax resources of the consolidated urban renewal project; and

WHEREAS, indebtedness has been incurred by the City of Des Moines, Iowa, and additional indebtedness is anticipated to be incurred in the future to finance said Urban Renewal Project; and

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the continuation of the division of revenue from taxation in the Metro Center Urban Renewal Project Area, as above described in accordance with the provisions of Section 403.19 of the 2015 Code of Iowa, as amended; NOW, THEREFORE,

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA AS FOLLOWS:

Section 1. That the taxes levied on the taxable property in the Urban Renewal Project Area known as the Metro Center Urban Renewal Project Area, consisting of the sub-areas known as Capitol-Center Development Area I; Capitol-Center Development Area II - Areas "A", "B", "C", and "D"; Riverpoint - Areas "A", "B", and "C"; Capitol-Center III - Area "A"; Sixth Avenue Area; and River Hills 2011 Area, each of which is legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. For purposes of this Ordinance, "Base Period Taxes" are that portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in the Metro Center Urban Renewal Project Area upon the total sum of the "Base Valuations" of each of the sub-areas within the Metro Center Urban Renewal Project Area. The "Base Valuations" are the assessed values of the taxable property in each sub-area of said Urban Renewal Project Area as shown on the assessment rolls following:

With respect to the Capital-Center Development Area I, the assessment roll last equalized prior to the effective date of Ordinance No. 8666, being the assessment roll for January 1, 1972;

With respect to the Capital-Center Development Area II-Area "A", the assessment roll last equalized prior to the effective date of Ordinance No. 10,404, being the assessment roll for January 1, 1982;

With respect to the Capital-Center Development Area II-Area "B", the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 11,971, being the assessment roll for January 1, 1992;

With respect to the Riverpoint-Area "A", the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 11,419, being the assessment roll for January 1, 1989;

With respect to the Riverpoint-Area "B", the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 11,972, , being the assessment roll for January 1, 1992;

With respect to the Capital-Center Development Area II-Areas "C" and "D" and the Riverpoint-Area "C", the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 12,054, being the assessment roll for January 1, 1992;

With respect to the Capitol-Center III - Area "A", the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 12,070, being the assessment roll for January 1, 1992;

With respect to the Sixth Avenue Area, the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 13,565, being the assessment roll for January 1, 1997; and,

With respect to the River Hills 2011 Area, the assessment roll as of January 1 of the calendar preceding the effective date of this Ordinance, being the assessment roll for January 1, 2010.

The "Base Period Taxes" for each of the sub-areas within the Metro Center Urban Renewal Project Area shall be computed using the total assessed value of the taxable property within each such sub-area as shown on the assessment rolls applicable to each sub-area as described above. "Base Period Taxes" shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by and for said taxing district into which all other property taxes are paid.

Section 3. For purposes of this Ordinance, "Incremental Taxes" are that portion of the taxes each year in excess of the "Base Period Taxes" for the combined Metro Center Urban Renewal Project Area, determined as provided

in Section 2 of this Ordinance. "Incremental Taxes" shall be allocated to and when collected be paid into a special fund of the City of Des Moines, Iowa, hereafter to be maintained to pay the principal of and interest on loans, monies advanced to, and indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under authority of Sections 403.9 and 403.12 of the 2015 Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance, in whole or in part, urban renewal project activities undertaken within the Metro Center Urban Renewal Project Area, except that to the extent authorized in Section 403.19(2), taxes for the regular and voter-approved physical plant and equipment levy of a school district imposed pursuant to Section 298.2, taxes for the instructional support program of a school district imposed pursuant to Section 247.17, taxes for the payment of bonds and interest of each taxing district levying taxes in the Metro Center Urban Renewal Project Area, and taxes imposed under section 364.27, subsection 22, related to joint county-city buildings shall be collected against all taxable property within the said Project Area without any limitations as hereinabove provided.

Section 4. At such time as the loans, monies advanced and bonds of the City of Des Moines and interest thereon, hereinabove referred to, have been paid, all monies thereafter received from taxes upon the taxable property in the Urban Renewal Project Area known as the Metro Center Urban Renewal Project Area shall be paid into the funds for the respective taxing districts in the same manner as "Base Period Taxes".

Section 5. All ordinances or parts of ordinances in conflict with the provisions of this Ordinance are hereby repealed. The provisions of this Ordinance are intended and shall be construed so as to continue the division of taxes from property within each of the subareas of the combined Metro Center Urban Renewal Project Area as described above and to fully implement the provisions of Section 403.19 of the 2015 Code of Iowa, as amended, with respect thereto. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the 2015 Code of Iowa, as amended, with reference to the combined Metro Center Urban Renewal Project Area and the territory contained therein. In the event of any overlap between the boundaries of the Metro Center Urban Renewal Project Area and any other designated urban renewal area, such overlapping area is hereby severed from such other urban renewal area and shall be considered to be exclusively within the Metro Center Urban Renewal Project Area.

Section 6. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

Section 2. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

APPROVED AS TO FORM:

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Roger K. Brown
Assistant City Attorney

Passed November 23, 2015

ORDINANCE NO. 15,440

AN ORDINANCE providing that general property taxes levied and collected each year on all property located within the SW 42nd and Army Post Urban Renewal Area in the City of Des Moines, County of Polk, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, Des Moines Area Community College, and other taxing districts, be paid to a special fund for payment of principal and interest on loans, monies advanced to and indebtedness, including bonds issued or to be issued, incurred by the City of Des Moines in connection with the SW 42nd and Army Post Urban Renewal Project.

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as

prescribed by law and pursuant to Resolution passed and approved December 7, 2015, adopted an urban renewal plan titled "SW 42nd and Army Post Urban Renewal Plan" for an urban renewal project (the "SW 42nd and Army Post Urban Renewal Project") within the SW 42nd and Army Post Urban Renewal Area described as follows:

> Beginning at the intersection of the centerline of Southwest 42nd Street right-of-way and the centerline of Army Post Road right-of-way; thence South along said centerline of Southwest 42nd Street right-of-way to the North right-of-way line of Iowa Highway 5; thence West along said North right-of-way line to the Northeast right-of-way line of Iowa Highway 28; thence Northwest along said Northeast right-of-way line to the centerline of Army Post Road right-of-way; thence Northeast and East along said centerline of Army Post Road right-of-way to the centerline of Southwest 42nd Street right-of-way and the Point of Beginning.

WHEREAS, expenditures and indebtedness are anticipated to be incurred by the City of Des Moines, Iowa, in the future to finance undertakings by the City of Des Moines to implement the SW 42nd and Army Post Urban Renewal Project pursuant to the SW 42nd and Army Post Urban Renewal Plan; and

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the Urban Renewal Area as above described, in accordance with the provisions of Section 403.19 of the 2015 Code of Iowa, as amended.

NOW THEREFORE, BE IT ORDAINED, by the City Council of the City of Des Moines, Iowa, as follows:

Section 1. That the taxes levied on the taxable property in the urban renewal area known as the SW 42nd and Army Post Urban Renewal Area, legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District, Des Moines Area Community College, and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. Except as otherwise provided in Iowa Code § 403.19, as amended, that portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said Urban Renewal Area upon the total sum of the assessed value of the taxable property in said Urban Renewal Area as shown on the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of property tax revenue, subject to any adjustment required by Iowa Code § 403.20, as amended, shall be allocated to and when collected be paid into the Fund for the respective taxing district as taxes by or for the taxing district into which all other property taxes are paid (the "base period taxes")

Section 3. Except as otherwise provided in Iowa Code § 403.19, as amended, that portion of the taxes each year in excess of the base period taxes determined as provided in Section 2 of this Ordinance shall be allocated to and when collected be paid into a special tax increment fund of the City of Des Moines hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of Chapters 384 and 403 of the Code of Iowa, as amended, incurred by the City of Des Moines to finance or refinance in whole or in part the SW 42nd and Army Post Urban Renewal Project. However, except as provided in Iowa Code § 403.19(2)(b), taxes for the regular and voter-approved physical plant and equipment levy of a school district imposed pursuant to Iowa Code § 298.2 and taxes for the instructional support program of a school district imposed pursuant to Iowa Code § 257.19, taxes for the payment of bonds and interest of each taxing district, and taxes imposed under Iowa Code § 346.27(22) related to joint county-city buildings shall be collected against all taxable property within the taxing district without limitation by the provisions of this section.

Section 4. Except as otherwise provided in Iowa Code § 403.19, as amended, all taxes levied and collected upon the taxable property in said SW 42nd and Army Post Urban Renewal Area shall be paid into the funds of the taxing districts as taxes by or for said taxing districts in the same manner as all other property taxes unless or until the total assessed valuation of the taxable property in said Urban Renewal Area shall exceed the total assessed value of the taxable property in said Urban Renewal Area as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to this Ordinance, subject to any adjustment required by Iowa Code § 403.20, as amended.

Section 5. At such time as the principal of, and interest on, all loans, advances, bonds and interest thereon and indebtedness of the City of Des Moines hereinabove in Section 3 referred to have been paid, all monies thereafter received from taxes upon the taxable property in said SW 42nd and Army Post Urban Renewal Area shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property, unless and until additional loans, advances, indebtedness or bonds, if any, are incurred and certified by the City of Des Moines.

Section 6. The provisions of this Ordinance are intended and shall be construed so as to fully implement the provisions of Iowa Code § 403.19, as amended, with respect to the division of taxes from property within the Urban Renewal Area as described above. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the Code of Iowa with reference to said Urban Renewal Area and the territory therein.

Section 7. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

FORM APPROVED:

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Roger K. Brown
Assistant City Attorney

Passed December 21, 2015

ORDINANCE NO. 15,458

AN ORDINANCE AMENDING ORDINANCE NO. 8666, AS AMENDED BY ORDINANCE NOS. 8667, 9282, 13,810, 15,012 and 15,427, ENTITLED:

"AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL REAL PROPERTY LOCATED WITHIN THE CAPITOL CENTER DEVELOPMENT AREA URBAN RENEWAL PROJECT IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO A SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BOND ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL REDEVELOPMENT PROJECT"

AND ALSO AMENDING ORDINANCE NO. 10,404, AS AMENDED BY ORDINANCE NOS. 11,971, 12,054, 12,070, 13,565, 13,810, 15,012 and 15,427, ENTITLED:

"AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE CAPITOL-CENTER DEVELOPMENT AREA II URBAN RENEWAL PROJECT IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY

SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO THE SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BONDS ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL PROJECT"

AND ALSO AMENDING ORDINANCE NO. 11,419, AS AMENDED BY ORDINANCE NOS. 11,972, 12,054, 12,070, 13,565, 13,810, 15,012 and 15,427, ENTITLED:

"AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE RIVERPOINT URBAN RENEWAL PROJECT IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO THE SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BOND ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL PROJECT"

TO AMEND THE BOUNDARY BETWEEN THE RIVERPOINT - AREA "A" AND THE RIVERPOINT - AREA "C" SUBAREAS WITHIN THE METRO CENTER URBAN RENEWAL PROJECT TO PLACE THE INDY EAST REDEVELOPMENT PARCEL WITHIN THE BLOCK BOUNDED BY JACKSON, INDIANOLA AND DUNHAM AVENUES, AND S UNION STREET ENTIRELY WITHIN THE RIVERPOINT - AREA "A" SUBAREA FOR ADMINISTRATIVE PURPOSES WITHOUT CHANGE TO THE BASE VALUATIONS ESTABLISHED FOR EACH SUCH SUBAREA.

WHEREAS, the City Council of the City of Des Moines, Iowa, has heretofore, in Ordinance No. 8666, provided for the division of revenue from taxes within the Capitol-Center Development Area Urban Renewal Project Area (hereinafter referred to as the "Capitol-Center Development Area I"), pursuant to Section 403.19 of the 1973 Code of Iowa, as amended; and

WHEREAS, by Ordinance No. 8667 the City Council amended Ordinance No. 8666 (regarding the Capitol-Center Development Area Urban Renewal Project) to delete therefrom reference to a specific dollar figure of assessed value of taxable property; and

WHEREAS, by Ordinance No. 9282 the City Council amended Ordinance No. 8666, as amended by Ordinance No. 8667 (regarding the Capitol-Center Development Area Urban Renewal Project) to provide that said ordinance remain in effect until certain obligations of the City have been paid or secured; and

WHEREAS, the City Council of the City of Des Moines, Iowa, has heretofore, in Ordinance No. 10,404, provided for the division of revenue from taxes within the Capitol-Center Development Area II Urban Renewal Project Area (hereinafter referred to as the "Capitol-Center Development Area II - Area 'A'"), pursuant to Section 403.19 of the 1983 Code of Iowa, as amended; and

WHEREAS, an additional area (hereinafter referred to as "Capitol-Center Development Area II - Area 'B'") was added to the Capitol-Center Development Area II Urban Renewal Project Area and by Ordinance No. 11,971, the City Council amended Ordinance No. 10,404 to expand the area subject to the division of revenue from taxes under Ordinance No. 10,404 to include the additional area; and

WHEREAS, the City Council of the City of Des Moines, Iowa, has heretofore, in Ordinance No. 11,419, provided for the division of revenue from taxes within the Riverpoint Urban Renewal Project Area (hereinafter referred to as the "Riverpoint - Area 'A'"), pursuant to Section 403.19 of the 1989 Code of Iowa, as amended; and

WHEREAS, an additional area (hereinafter referred to as "Riverpoint - Area 'B'") was added to the Riverpoint Urban Renewal Project Area

and by Ordinance No. 11,972 the City Council amended Ordinance No. 11,419 to expand the area subject to the division of revenue from taxes under Ordinance No. 11,419 to include the additional area; and

WHEREAS, by amendments to the Urban Renewal Plans for the Capitol-Center Development Area II Urban Renewal Project and the Riverpoint Urban Renewal Project, after notice and public hearing as prescribed by law, said Urban Renewal Plans were amended to provide for the consolidation and expansion of the two urban renewal projects to include additional areas (hereinafter referred to as "Capitol-Center Development Area II - Areas 'C' and 'D'", and "Riverpoint Area 'C'") in accordance with the Urban Renewal Plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project; and

WHEREAS, by Ordinance No. 12,054 the City Council amended Ordinance No. 10,404, as amended by Ordinance No. 11,971 (regarding the Capitol-Center Development Area II Urban Renewal Project) and also amended Ordinance No. 11,419 as amended by Ordinance No. 11,972 (regarding the Riverpoint Urban Renewal Project) to consolidate and expand the area subject to the division of revenue from taxes to be in accordance with the Urban Renewal Plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project; and,

WHEREAS, by the First Amendment to the Urban Renewal Plan for the Riverpoint Capitol-Center Development Area, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to add an additional area (hereinafter referred to as "Capitol-Center III - Area 'A'"); and

WHEREAS, by Ordinance No. 12,070 the City Council amended Ordinance No. 10,404, as amended by Ordinance Nos. 11,971 and 12,054 (regarding the Capitol-Center Development Area II Urban Renewal Project) and also amended Ordinance No. 11,419, as amended by Ordinance Nos. 11,972 and 12,054 (regarding the Riverpoint Urban Renewal Project) to expand the area subject to the division of revenue from taxes to be in accordance with the Urban Renewal Plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project; and,

WHEREAS, by the Fifth Amendment to the Urban Renewal Plan for the Riverpoint Capitol-Center Development Area, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to add an additional area (hereinafter referred to as the "Sixth Avenue Area"); and

WHEREAS, by Ordinance No. 13,565 the City Council amended Ordinance No. 10,404, as amended by Ordinance Nos. 11,971, 12,054 and 12,070 (regarding the Capitol-Center Development Area II Urban Renewal Project) and also amended Ordinance No. 11,419, as amended by Ordinance Nos. 11,972, 12,054, and 12,070 (regarding the Riverpoint Urban Renewal Project) to expand the area subject to the division of revenue from taxes to be in accordance with the amended Urban Renewal Plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project; and,

WHEREAS, by amendments to the Urban Renewal Plans for the Riverpoint Capitol-Center Development Area Urban Renewal Project and the Capitol-Center Development Area Urban Renewal Project, after notice and public hearing as prescribed by law, said Urban Renewal Plans were amended to provide for the consolidation of the two urban renewal projects in accordance with the Urban Renewal Plan for the combined urban renewal projects to be known as the Metro Center Urban Renewal Project; and

WHEREAS, by Ordinance No. 13,810 the City Council amended Ordinance No. 8666, as amended by Ordinance Nos. 8667 and 9282 (regarding the Capitol-Center Development Area Urban Renewal Project), and amended Ordinance No. 10,404, as amended by Ordinance Nos. 11,971, 12,054, 12,070 and 13,565 (regarding the Capitol-Center Development Area II Urban Renewal Project) and also amended Ordinance No. 11,419, as amended by Ordinance Nos. 11,972, 12,054, 12,070 and 13,565 (regarding the Riverpoint Urban Renewal Project) to consolidate and expand the area subject to the division of revenue from

taxes to be in accordance with the Urban Renewal Plan for the combined Metro Center Urban Renewal Project; and

WHEREAS, by the 10th Amendment to the Urban Renewal Plan for the Metro Center Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to add an additional area (hereinafter referred to as the "River Hills 2011 Area"); and

WHEREAS, by Ordinance No. 15,012 the City Council amended Ordinance No. 8666, as amended by Ordinance Nos. 8667, 9282 and 13,810 (regarding the Capitol-Center Development Area Urban Renewal Project), and amended Ordinance No. 10,404, as amended by Ordinance Nos. 11,971, 12,054, 12,070, 13,565 and 13,810 (regarding the Capitol-Center Development Area II Urban Renewal Project) and also amended Ordinance No. 11,419, as amended by Ordinance Nos. 11,972, 12,054, 12,070, 13,565 and 13,810 (regarding the Riverpoint Urban Renewal Project) to expand the area subject to the division of revenue from taxes to be in accordance with the Urban Renewal Plan for the expanded Metro Center Urban Renewal Project; and

WHEREAS, by the 17th Amendment to the Urban Renewal Plan for the Metro Center Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to amend the boundary between the Capitol-Center Development Area I and the Riverpoint - Area "A" subareas within the Metro Center Urban Renewal Project to place the redevelopment parcel at 420 Court Avenue entirely within the Capitol-Center Development Area I for administrative purposes without change to the Base Valuations established for each such subarea; and

WHEREAS, by the 18th Amendment to the Urban Renewal Plan for the Metro Center Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to amend the boundary between the Riverpoint - Area "A" and the Riverpoint - Area "C" subareas within the Metro Center Urban Renewal Project to place the Indy East Redevelopment Parcel within the block bounded by Jackson, Indianola and Dunham Avenues, and S Union Street, entirely within the Riverpoint - Area "A" subarea for administrative purposes without change to the Base Valuations established for each such subarea; and

WHEREAS, the following enactment is necessary to accomplish the objectives described above and in the Urban Renewal Plan for the Metro Center Urban Renewal Project; NOW, THEREFORE,

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA AS FOLLOWS:

Section 1. That Ordinance Nos. 8666, 8667, 9282, 10,404, 11,419, 11,971, 11,972, 12,054, 12,070, 13,565, 13,810, 15,012 and 15,427 are hereby amended to read as follows:

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved August 2, 1973, adopted an Urban Renewal Plan for an area known as the Capitol-Center Development Area Urban Renewal Project, which original project area (hereinafter designated Capitol-Center Development Area I) includes the lots and parcels within the boundaries as follows:

CAPITOL-CENTER DEVELOPMENT AREA I

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the northerly right-of-way line of Grand Avenue and the westerly right-of-way line of Eighth Street, thence south along the westerly right-of-way line of Eighth Street to its intersection with the centerline of the Des Moines Union Railroad mainline; thence east along the centerline of the Des Moines Union Railroad mainline to its intersection with the easterly right-of-way line of East Seventh Street; thence north along the easterly right-of-way line of East Seventh Street to its intersection with the southerly right-of-way line of the alley south of Locust Street; thence east along the southerly right-of-way line of the alley south of Locust Street to its intersection with the westerly

property line of the State Capitol grounds; thence north along the westerly property line of the State Capitol grounds to its intersection with the southerly right-of-way line of Locust Street; thence west along the southerly right-of-way line of Locust Street to its intersection with the easterly right-of-way line of Pennsylvania Avenue; thence north along the easterly right-of-way line of Pennsylvania Avenue to its intersection with the southerly right-of-way line of Des Moines Street; thence west along the southerly right-of-way line of Des Moines Street to its intersection with the westerly right-of-way line of East First Street; thence north along the westerly right-of-way line of East First Street to its intersection with the southerly boundary line of the River Hills Urban Renewal Project; thence west and south along the southerly boundary line of the River Hills Urban Renewal Project to its intersection with the northerly right-of-way line of Grand Avenue; thence west along the northerly right-of-way line of Grand Avenue to its intersection with the westerly right-of-way line of Eighth Street, which is the point of beginning.

and

WHEREAS, Capitol Center Development Area I may also be described as follows:

Capitol-Center Development Area I (alternate description)

Beginning at the intersection of the northerly right-of-way line of Grand Avenue and the westerly right-of-way line of Eighth Street, thence southerly along said westerly right-of-way line of Eighth Street to the center line of the former Des Moines Union Railroad, now the Norfolk & Southern Railroad; thence easterly along said center line to the easterly right-of-way line of East Seventh Street; thence northerly along said easterly right-of-way line to the southerly right-of-way line of the 10-foot wide east-west alley South-East Locust Street; thence easterly along said southerly line to the westerly property line of the State Capitol grounds, also being the easterly line of the north-south alley in Block H, Griffith's Addition to East Fort Des Moines, an official plat; thence northerly along said easterly line to the southerly right-of-way line of East Locust Street; thence westerly along said southerly right-of-way line to the easterly right-of-way line of Pennsylvania Avenue; thence northerly along said easterly line to the southerly right-of-way line of Des Moines Street; thence westerly along said southerly line to the westerly right-of-way line of East First Street; thence northerly along said westerly line 190 feet; thence west along a line perpendicular to the east line of East First Street to the west property line of the Armory; thence south along said west property line to the south line of said Des Moines Street extended; thence west along said south line extended to the east bank of the Des Moines River; thence south along said east bank to the northerly right-of-way line of East Grand Avenue, thence westerly along said northerly line to the westerly right-of-way line of Eighth Street and the point of beginning.

and

WHEREAS, by Ordinance No. 8667 the City Council amended Ordinance No. 8666 (regarding the Capitol-Center Development Area Urban Renewal Project) to delete therefrom reference to a specific dollar figure of assessed value of taxable property; and

WHEREAS, by Ordinance No. 9282 the City Council amended Ordinance No. 8666, as amended by Ordinance No. 8667 (regarding the Capitol-Center Development Area Urban Renewal Project) to provide that said ordinance remain in effect until certain obligations of the City have been paid or secured; and

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved December 19, 1983, adopted an Urban Renewal Plan for an area known as Capitol-Center Development Area II Urban Renewal Project, which original project area (herein designated as "Capitol-Center Development Area II - Area 'A'") includes the lots and parcels within the boundaries as follows:

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "A"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the northerly right-of-way line of Grand Avenue and the easterly right-of-way line of Second Avenue, thence west along the northerly right-of-way line of Grand Avenue to its intersection with the westerly right-of-way line of Eighth Street, thence south along the westerly right-of-way line of Eighth Street to its intersection within the center line of the old Rock Island Railroad mainline, thence west along the center line of the old Rock Island Railroad mainline to its intersection with the easterly right-of-way line of Eleventh Street, thence north along the easterly right-of-way line of Eleventh Street to the point of intersection with the northerly right-of-way line of High Street, thence east from said point along the northerly right-of-way line of High Street to the intersection with the westerly right-of-way line of Tenth Street, thence north along the westerly right-of-way line of Tenth Street to the intersection of the southerly right-of-way line of Woodland Avenue, thence east along the projection of the southerly right-of-way line of Woodland Avenue to the point of intersection with the easterly right-of-way line of Tenth Street, thence north from said point along the easterly right-of-way line of Tenth Street to the intersection of the southerly right-of-way line of Pleasant Street, thence east along the southerly right-of-way line of Pleasant Street to the point of intersection with the projection of the west line of Lot 12, Methodist Plat No. 1, thence northerly along said projected west line of said Lot 12 to the northerly right-of-way line of Pleasant Street, thence east along the northerly right-of-way line of Pleasant Street to the intersection of the westerly right-of-way line of Ninth Street, thence north along the westerly right-of-way line of Ninth Street to its intersection with a point twenty (20) feet south of the north line of said Lot 12 of Methodist Plat No. 1, thence east along a projection of a line twenty (20) feet south of and parallel to the north line of said Lot 12 to the point of intersection of the easterly right-of-way line of Ninth Street, thence north along the easterly right-of-way line of Ninth Street to the intersection of the northerly right-of-way line of Keosauqua Way, thence northerly and westerly along said northerly right-of-way line of Keosauqua Way to the intersection with the southerly right-of-way line of Crocker Street, thence east along the southerly right-of-way line of Crocker Street to the intersection of the easterly right-of-way line of Ninth Street, thence north along the easterly right-of-way line of Ninth Street to the intersection of the northerly right-of-way line of School Street, thence east along the northerly right-of-way line of School Street to the intersection of the easterly right-of-way line of Sixth Avenue, thence south along the easterly right-of-way line of Sixth Avenue to the intersection with the northerly right-of-way line of Crocker Street, thence east along the northerly right-of-way line of Crocker Street to the intersection of the westerly right-of-way line of Fifth Avenue, thence north along the westerly right-of-way line of Fifth Avenue to the point of intersection of the westerly projection of the north line of Lot 1, Block F, River Hills Plat 1, thence east along the projected north line of said Lot 1 to the intersection of the easterly right-of-way line of Third Street, thence south along the easterly right-of-way line of Third Street to the intersection of the northerly right-of-way line of Keosauqua Way, thence east along the northerly right-of-way line of Keosauqua Way to the point of intersection with the easterly right-of-way line of Second Avenue, thence south from said point along the easterly right-of-way line of Second Avenue to the point of beginning.

and

WHEREAS, by Amendment to said Urban Renewal Plan, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted for an extended area consisting of the Capitol-Center Development Area II - Area "A" combined with the Capitol-Center Development Area II - Area "B", which includes the lots and parcels within the boundaries as follows:

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "B"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the north right-of-way line of School Street and the east right-of-way line of 9th Street; thence southerly along the northerly extension of and the east right-of-way line of 9th Street and the southerly extension of said right-of-way line to the south right-of-way line of Crocker Street; thence westerly along the westerly extension and the south right-of-way line of Crocker Street to the east right-of-way line of Keosauqua Way; thence northwesterly along said east right-of-way line of Keosauqua Way to the east right-of-way line of the Keosauqua/I-235 Intersection; thence north along said east right-of-way line of the Keosauqua/I-235 Intersection; thence east along the south right-of-way line of the Keosauqua/I-235 Intersection to the west right-of-way line of 12th Place; thence north along said west right-of-way line and the northerly extension of the west right-of-way line of 12th Place to the north right-of-way line of School Street; thence east along the north right-of-way line of School Street to the point of beginning.

and

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved December 18, 1989, adopted an Urban Renewal Plan for an area known as Riverpoint Urban Renewal Project, which original project area (hereinafter designated Riverpoint - Area "A") includes the lots and parcels within the boundaries as follows:

RIVERPOINT - AREA "A"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the southerly right-of-way line of East Court Avenue and the easterly right-of-way line of East 7th Street; thence east along the southerly right-of-way line of East Court Avenue to its intersection with the east right-of-way line of vacated East 8th Street; thence southerly along the east right-of-way of vacated 8th Street to a point 47.0 feet south of the south right-of-way line of East Court Avenue; thence southeasterly along a straight line to the northwest corner of Lot 1, Block 22, official plat of Lots 3 through 8, Town of Des Moines, an official plat; thence southeasterly along a straight line to a point on the east right-of-way line of vacated East 11th Street, said point being 67.35 feet south of the northwest corner of Lot 3, Block 23, official plat of Lots 3 through 8, Town of Des Moines, an official plat; thence easterly along a straight line to a point on the east lot line and 3.0 feet north of the southwest corner of Lot 8, of said Block 23; thence southerly to the southwest corner of said Lot 8; thence easterly to the southeast corner of said Lot 8; thence southeasterly along a straight line to the northwest corner of Lot 9, of the official plat of Lot 1, of the official plat of the east 1/2 of the southeast 1/4 of Section 3, Township 78 North, Range 24 West of the 5th P.M. the south 236.0 feet of the west 1/2 of Lot 31, Brooks and Company's Addition, an official plat; thence southerly to the southwest corner of said Lot 9; thence easterly along the south lot lines of Lots 9, 10, 30, 31 and 55 of said official plat of said Lot 1 to its intersection with the east line of the southeast 1/4 of said Section 3; thence southerly along said east line of said Section 3 and along the east line of the northeast 1/4 of Section 10, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the northeasterly projection of the south right-of-way line of Scott Street; thence southwesterly along said projected south right-of-way line of Scott Street and along the south right-of-way line of Scott Street to its intersection with the east bank of the Des Moines River; thence northwesterly along the east bank of the Des Moines River to the point of its intersection with the southerly side of the Scott Street Bridge; thence southwesterly along the southerly side of the Scott Street Bridge to a point of its intersection with the west bank of the Des Moines River; thence southeasterly along said west bank of the Des Moines River to the point of its intersection with the

northeasterly projection of the southeasterly right-of-way line of Southeast 1st Street; thence southwesterly along said projected southeasterly right-of-way line of Southeast 1st Street and along the southeasterly right-of-way line of Southeast 1st Street to a point of its intersection with the center line of the Chicago and Great Western Railroad right-of-way; thence southwesterly along said center line of the Chicago and Great Western Railroad right-of-way to a point of its intersection with the easterly right-of-way line of Southwest 1st Street; thence southwesterly along the easterly right-of-way line of Southwest 1st Street to its intersection with the southerly right-of-way line of Indianola Avenue; thence northwesterly and westerly along the south right-of-way line of Indianola Avenue and along the southerly right-of-way line of Clifton Avenue, to its intersection with the southerly projection of the westerly right-of-way line of Southwest 7th Street; thence northwesterly along said southerly projected westerly right-of-way line of Southwest 7th Street and the westerly right-of-way line of Southwest 7th Street to its intersection with the southerly bank of the Raccoon River; thence southwesterly and westerly along said south bank of the Raccoon River to its intersection with the south line of Government Lot 11, West of the Raccoon River of Section 8, Township 78 North, Range 24 West of the 5th P.M. an official plat; thence westerly along south line of said Government Lot 11 and the westerly projection of the south line of said Government Lot 11 to a point 33 feet west of the center line of said Section 8; thence northerly and 33.0 feet west of and parallel with the center line of said Section 8 to its intersection with the south line of Lot 1, of the official plat of the northwest 1/4 of said Section 8; thence southeasterly along the south line of said Lot 1, 75.0 feet West of the east line of said Lot 1; thence northerly and 75.0 feet west of and parallel with the east line of said Lot 1, 225.0 feet south of the north line of said Lot 1; thence westerly 18.0 feet and 225.0 feet south of the north line of said Lot 1; thence northerly 225.0 feet and 93.0 feet west of the northeast corner of said Lot 1 to the north line of said Lot 1 and the south right-of-way line of Grand Avenue; thence northwesterly to the north right-of-way line of Grand Avenue which is 40.0 feet north of and 100.0 feet west of the southeast corner of Lot 9, of the official plat of the southwest 1/4 of Section 5, Township 78 North, Range 24 West of the 5th P.M., an official plat; thence northerly along a line 100.0 feet west of and parallel with the east line of said Lot 9 and along the northerly projection of said line to the north right-of-way line of Ingersoll Avenue; thence easterly along the north right-of-way line of Ingersoll Avenue and the easterly projected north right-of-way line of Ingersoll Avenue and its projections to its intersection with the northwesterly projection of the easterly right-of-way line of 16th Street; thence southeasterly along said northwesterly projected easterly right-of-way line of 16th Street and the easterly right-of-way line of 16th Street to its intersection with the north right-of-way line of Falcon Drive thence easterly along the north right-of-way line of Falcon Drive and its easterly projections to its intersection with the northwesterly projection of the east right-of-way line of 13th Street; thence southeasterly along said northwesterly projected east right-of-way line of 13th Street and the east right-of-way of 13th Street to its intersection with the south right-of-way line of Cherry Street; thence easterly along the south right-of-way line of Cherry Street and its projected south right-of-way line to its intersection with the east right-of-way line of 11th Street; thence southeasterly along the east right-of-way line of 11th Street to its intersection with the center line of the Iowa Interstate Railroad Mainline (formerly known as Rock Island Railroad); thence easterly along the center line of the Iowa Interstate Railroad Mainline (formerly known as Rock Island Railroad) to its intersection with the southerly projection of the westerly right-of-way line of 8th Street; thence northerly along the southerly projection of the westerly right-of-way line of 8th Street to the westerly right-of-way line of 8th Street to its intersection within the center line of the Des Moines Union Railroad Mainline; thence easterly along the center line of the Des Moines Union Railroad Mainline to its

intersection with the easterly right-of-way line of East 7th Street; thence northerly along the easterly right-of-way line of East 7th Street to its intersection with the southerly right-of-way line of East Court Avenue, to the point of beginning.

and

WHEREAS, by Amendment to said Urban Renewal Plan, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted for an extended area consisting of Riverpoint - Area "A" combined with Riverpoint - Area "B", which includes the lots and parcels within the boundaries as follows:

RIVERPOINT - AREA "B"

That part of the City of Des Moines, Polk County, Iowa, described as follows:

Bounded on the north by the south right-of-way Line of East Scott Street, bounded on the east by the center line of Southeast 14th Street, bounded on the south and west by the right (south) bank of the Des Moines River.

and

WHEREAS, by Amendment to the Urban Renewal Plans for the Riverpoint Urban Renewal Project and the Capitol-Center Development Area II Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plans were amended and adopted to provide for the consolidation and expansion of the two Projects as set forth in the Urban Renewal Plan for the Riverpoint Capitol-Center Development Area Urban Renewal Plan; and

WHEREAS, the Riverpoint Capitol-Center Development Area Urban Renewal Area originally consisted of Capitol-Center Development Area II - Areas "A" and "B", combined with Riverpoint - Areas "A" and "B", all as described above, and expanded to include Capitol-Center Development Area II - Areas "C" and "D" and Riverpoint - Area "C", described as follows:

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "C"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the westerly right-of-way line of 3rd Street and the south line of Lot G. River Hills Plat 1, an official plat; thence easterly along the southerly line of said Lot G to its intersection with the right (west) bank of the Des Moines River; thence south along said right bank to its intersection with the northerly right-of-way line of Grand Avenue extended easterly; thence westerly along the northerly right-of-way of Grand Avenue to its intersection with the east right-of-way line of 2nd Avenue extended southerly; thence northerly along the east right-of-way line of 2nd Avenue to its intersection with the easterly extension of the north right-of-way line of Keosauqua Way; thence west along the easterly extension of the north right-of-way line of Keosauqua Way to the west right-of-way line of 3rd Street; thence north along the west right-of-way line of 3rd Street to the point of beginning.

CAPITOL-CENTER DEVELOPMENT AREA II - AREA "D"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Block E, Lot M (except the east 80 feet thereof) and that part of Lot G South of the north lot line of said Lot M extended west, River Hills Plat 1, an official plat

RIVERPOINT - AREA "C"

That part of the City of Des Moines Polk County, Iowa, described as follows:

Beginning at the intersection of the southerly right-of-way line of the Chicago Great Western Railroad with the easterly right-of-way line of Southeast 1st Street; thence southerly along the easterly right-of-way line of Southeast 1st Street to the southerly right-of-way line of East Edison Street; thence easterly along the southerly right-of-way line of East Edison Street to the westerly right-of-way line of

Southeast 2nd Street; thence southerly along the westerly right-of-way line of Southeast 2nd Street to the westerly extension of the southerly right-of-way line of the east/west alley lying south of and adjoining Lots 1 through 6, inclusive, Block 6, Clifton Heights, an official plat; thence easterly along the westerly extension of the southerly right-of-way line of said east/west alley to the westerly right-of-way line of Southeast 2nd Court; thence southerly along the westerly right-of-way line of Southeast 2nd Court and the westerly line of Lot 2, Millsap Subdivision, an official plat, to the north line of Lot 6, official plat of the west 1/2 of Section 10, Township 78 North, Range 24 West of the 5th P.M.; thence west along the north line of said Lot 6 extended westerly to the southerly right-of-way line of East Indianola Avenue; thence westerly along the southerly right-of-way line of East Indianola Avenue to its intersection with the southerly extension of the westerly right-of-way line of Southwest 1st Street; thence northerly along the westerly right-of-way line of Southwest 1st Street to the southerly right-of-way line of the Chicago Great Western Railroad; thence northeasterly along the southerly right-of-way line of the Chicago Great Western Railroad to the point of beginning.

and

WHEREAS, by the First Amendment to the Urban Renewal Plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted for an extended area consisting of the original Riverpoint Capitol-Center Development Area Urban Renewal Project Area combined with Capitol-Center III - Area "A", which includes the lots and parcels within the boundaries as follows:

CAPITOL CENTER III - AREA "A"

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the northerly right-of-way line of Keosauqua Way with the east right-of-way line of 9th Street, extended north; thence south along the east right-of-way line of 9th Street and its northerly extension to the south right-of-way line of Chestnut Street extended east; thence west along the extended south right-of-way line of Chestnut Street to the west right-of-way line of 9th Street; thence South along the west right-of-way line of 9th Street to the north right-of-way line of Pleasant Street; thence west along the north right-of-way line of Pleasant Street to the west lot line of Lot 12, Methodist Plat No. 1, an official plat; thence south along the extended west lot line of said Lot 12 to the center line of Pleasant Street; thence West along the center line of Pleasant Street to the east right-of-way line of 10th Street extended north; thence south along the east right-of-way line of 10th Street and its northerly extension to the south right-of-way line of Woodland Avenue extended east; thence West along the easterly extension of the south right-of-way line of Woodland Avenue to the west right-of-way line of 10th Street; thence south along the west right-of-way line of 10th Street to the north right-of-way line of High Street; thence west along the north right-of-way line of High Street to the east right-of-way line of 11th Street extended north; thence south along the east right-of-way line of 11th Street and its northerly extension to the south right-of-way line of Cherry Street; thence west along the south right-of-way line of Cherry Street and its easterly extension to the east right-of-way line of 13th Street extended south; thence north along the east right-of-way line of 13th Street and its southerly extension to the north right-of-way line of Falcon Drive extended east; thence west along the north right-of-way line of Falcon Drive and its easterly extension to the east right-of-way line of 16th Street; thence north along the east right-of-way line of 16th Street to the north right-of-way line of Ingersoll Avenue; thence west along the north right-of-way line of Ingersoll Avenue and its westerly extension to the center line of Martin Luther King Jr. Parkway (formerly Harding Road); thence north along the center line of Martin Luther King Jr. Parkway to the north right-of-way line of

Woodland Avenue extended west; thence east along the north right-of-way line of Woodland Avenue and its westerly and easterly extensions to the center line of 16th Street; thence north along the center line of 16th Street to the north lot line of Lots 18 and 7 Sherman Place, an official plat extended west; thence east along the north lot line of said Lots 18 and 7 and their westerly extension to the west right-of-way line of 15th Street; thence north along the west right-of-way line of 15th Street to the north right-of-way line of Center Street extended west; thence east along the north right-of-way line of Center Street; and its westerly extension, said line also being the south lot line of Lots 1 and 2, Oakridge Plat No. 1, an official plat, and Lots 2, 3 and 6, Oakridge Plat No. 3, an official plat to the southeasterly corner of said Lot 6; thence north along the east lot line of said Lot 6 and the east lot line of Lot 5, in said Oakridge Plat No. 3 to the northeasterly corner of said Lot 5; thence northwesterly along the northerly line of said Oakridge Plat Nos. 1 and 3 to the northeasterly corner of Lot 6, in said Oakridge Plat No. 1, said point also being on the south right-of-way line of Interstate 235; thence in a straight line easterly to the northwest corner of Lot K, Grass Roots 1 an official plat 1; thence south along the west line of Lots K and N, Grass Roots I to the north lot line of Lot 7, Block 7, Grass Roots 1; thence west along the north lot line of said Lot 7 to the northwest corner of said Lot 7; thence south along the west lot line of said Lot 7 to the northerly right-of-way line of Keosauqua Way; thence southeasterly along the northerly right-of-way line of Keosauqua Way to the point of beginning.

and

WHEREAS, by the Fifth Amendment to the Urban Renewal Plan for the combined Riverpoint Capitol-Center Development Area Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted for an extended area consisting of the original Riverpoint Capitol-Center Development Area Urban Renewal Project Area combined with Capitol-Center III - Area "A", and expanded to include the Sixth Avenue Area, which includes the lots and parcels within the boundaries as follows:

SIXTH AVENUE AREA

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the Northeast corner of Lot 1, Block 10, Polk County Homestead and Trust Co.'s Addition, an official plat, of the southwest 1/4 of the northeast 1/4 of Section 34, Township 79 North, Range 24 West of the 5th P.M., also being on the south right-of-way line of Franklin Avenue and the west right-of-way line of Seventh Street; thence east along the south right-of-way line of Franklin Avenue and its easterly extension to the east right-of-way line of Oakland Avenue, being the northwest corner of Lot 36, Oakland Park, an official plat; thence south along the east right-of-way line and its southerly extension to the south right-of-way line of College Avenue and being 5.0 feet west of the northwest corner of Lot 63, Bates Addition, an official plat; thence west along the south right-of-way line and its westerly extension to the east right-of-way line of Fifth Avenue, being the northwest corner of Lot 25 of said Bates Addition; thence south along the east right-of-way line of Fifth Avenue and its southerly extension to the south right-of-way line of University Avenue; thence northwesterly along the south right-of-way line of University Avenue to the east right-of-way line of Sixth Avenue; thence south along the east right-of-way line of Sixth Avenue and its southerly extension to the north right-of-way line of School Street; thence west along the easterly extension of the north right-of-way line and the north right-of-way line of School Street to the west right-of-way line of Seventh Street; thence north along the west right-of-way line of Seventh Street to a point being 505.37 feet south of the south right-of-way line of University Avenue also being the south line of the north 7.7 feet of Lot 5 of the official plat of the northeast 1/4 of the northwest 1/4 of Section 4, Township 78 North, Range 24 West of the 5th PM.; thence west along a straight line of the east right-of-way line of

8th Street also being 6.4 feet north of the south line of Lot 9 of the official plat of said Section 4; thence north along the east right-of-way line of 8th Street to the south right-of-way line of University Avenue, also being the northwest corner of Lot 48, North Park, an official plat; thence west along the south right-of-way line of University Avenue and it westerly extension to the west right-of-way line of 9th Street; thence north along the west right-of-way line of 9th Street and its northerly extension to the intersection of the westerly extension of the north right-of-way line of Indiana Avenue; thence east along the westerly extension of the north right-of-way line of Indiana Avenue to the southwest corner of Lot 10 of said North Park; thence continuing east along the north right-of-way line of Indiana Avenue and it easterly extension to the east right-of-way line 8th Street being the southwest corner of Lot 56 of said North Park; thence north along the east right-of-way line of 8th Street and its northerly extension to the north line of Forest Avenue, being the southeast corner of Lot 1, Butt's Subdivision, an official plat; thence east along the north right-of-way line of Forest Avenue and its easterly extension to the west right-of-way line of Seventh Street, being the southeast corner of Lot 46 of the official plat of Government Lot 3 of Section 34, Township 79 North Range 24 West of the 5th P.M.; thence north along the west right-of-way line of Seventh Street to the northeast corner of Lot 13, E.M. Kelsey's Subdivision, an official plat; thence northwesterly to the northwest corner of Seventh Street and Clark Street, being on the north right-of-way line of Clark Street and the west right-of-way line of Seventh Street; thence north along the west right-of-way line of Seventh Street and its northerly extension to the south right-of-way line of Franklin Avenue and the point of beginning, all now included in the forming a part of the City of Des Moines, Polk County, Iowa.

WHEREAS, by amendments to the Urban Renewal Plans for the Riverpoint Capitol-Center Development Area Urban Renewal Project and the Capitol-Center Development Area Urban Renewal Project, after notice and public hearing as prescribed by law, said Urban Renewal Plans were amended to provide for the consolidation of the two urban renewal projects in accordance with the Urban Renewal Plan for the combined urban renewal projects to be known as the Metro Center Urban Renewal Project; and

WHEREAS, by the Tenth Amendment to the Urban Renewal Plan for the Metro Center Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted for an area consisting of the Capitol Center Development Area I combined with Capitol-Center Development Area II - Areas "A", "B", "C" and "D"; Riverpoint - Areas "A", "B" and "C"; Capitol-Center III - Area "A"; and Sixth Avenue Area, extended to include the River Hills 2011 Area, which includes the lots and parcels within the boundaries as follows:

RIVER HILLS 2011 AREA

That part of the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the northeast corner of the south half of Lot 11 of Block 21 of Central Place, an Official Plat, being on the north right-of-way line of University Avenue; thence east along a line parallel with the south line of the Southwest Quarter of Section 35, Township 79 North, Range 24 West of the 5th Principal Meridian (P.M.) to its intersection with the northerly extension of the east right-of-way line of East 6th Street; thence southerly along the east right-of-way line of East 6th Street and its northerly extension to its intersection with the south right-of-way line of vacated Filmore Street; thence west along the south right-of-way line of vacated Filmore Street to the northwest corner of Lot 5 of River Hills Plat Four, an Official Plat, said northwest corner also being on the easterly line of Lot 6 of River Hills Plat Four; thence southerly along the easterly line of said Lot 6 to the northerly right-of-way line of Interstate Highway 235, as presently established; thence southerly to the northwest corner of Lot 1 of Block D of River Hills Plat Three, an Official Plat, also being on the southerly right-of-way

line of Interstate highway 235; thence southeasterly along the northeasterly and easterly line of said Lot 1 and its continuation as the westerly right-of-way line of East 6th Street to its intersection with the southerly right-of-way line of Des Moines Street; thence westerly along the southerly right-of-way line of Des Moines Street, also being the north boundary of the Capitol-Center Urban Renewal Sub-Area of the Metro Center Urban Renewal Area, to its intersection with the westerly right-of-way line of East 1st Street, now known of Robert D. Ray Drive; thence north along the westerly right-of-way line of Robert D. Ray Drive to its intersection with the southerly line of Lot 5 of Block D of said River Hills Plat Three, also being on the southerly boundary of River Hills Urban Renewal project; thence west along a line perpendicular to the westerly right-of-way line of Robert D. Ray Drive to its intersection with the east bank of the Des Moines River; thence south along the east bank of the Des Moines River to its intersection with the northerly right-of-way line of Grand Avenue; thence west along the northerly right-of-way line of Grand Avenue to its intersection with the west bank of the Des Moines River; thence north along the west bank of the Des Moines River to its intersection with the southerly line of Lot G of River Hills Plat One, an Official Plat, also being on the southerly right-of-way line of Interstate Highway 235; thence westerly along the southerly line of said Lot G (Interstate Highway 235) to the northeast corner of Lot O (2nd Avenue) of said River Hills Plat One; thence northeasterly to the southeast corner of Lot 3 of River Hills Plat Five, an official plat, also being on the northerly right-of-way line of Interstate Highway 235; thence northeasterly along the easterly line of said Lot 3 to the southeast corner of Lot A (Illinois Street) of said River Hills Plat Five; thence northwesterly and northeasterly along the westerly line of said Lot A to the northwest corner of said Lot A, being on the south right-of-way line of University Avenue as presently established; thence east along the north line of said Lot A to its intersection with the southerly extension of the east line of Block 21 of said Central Place; thence north along the east line of said Block 21 and its southerly extension to the point of beginning.

WHEREAS, by the Seventeenth Amendment to the Urban Renewal Plan for the Metro Center Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to amend the boundary between the Capitol-Center Development Area I and the Riverpoint - Area "A" subareas within the Metro Center Urban Renewal Project to place the redevelopment parcel at 420 Court Avenue and more specifically described as follows, entirely within the Capitol-Center Development Area I for administrative purposes without change to the Base Valuations established for each such subarea:

420 COURT AVENUE REDEVELOPMENT PARCEL

All of Block 20, Fort Des Moines, an Official Plat - except Lots 6 and 7 in said Block 20 and except all that part of the vacated North/South alley right-of-way in said Block 20 lying between said Lots 6 and 7, all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

WHEREAS, by the Eighteenth Amendment to the Urban Renewal Plan for the Metro Center Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to amend the boundary between the Riverpoint - Area "A" and the Riverpoint - Area "C" subareas within the Metro Center Urban Renewal Project to place the Indy East Redevelopment Parcel within the block bounded by Jackson, Indianola and Dunham Avenues, and S Union Street, entirely within the Riverpoint - Area "A" subarea for administrative purposes without change to the Base Valuations established for each such subarea:

INDY EAST REDEVELOPMENT PARCEL

Lot 7, part of Lot 8, and part of the vacated North-South alley lying West of and adjoining Lots 7 and 8 all in Block 6 of South Fort Des Moines, an Official Plat; Lots 1 and 2 and the West Half of the vacated North-South alley

lying East of and adjoining Lots 1 and 2 all in Block 15 of said South Fort Des Moines; part of Lot 8 in Block 7 of Van's Addition to South Des Moines, an Official Plat; part of Lots 3 and 4 and part of the vacated North-South alley lying West of and adjoining Lot 4 in Block 8 of said Van's Addition to South Des Moines; Lots 1, 2, 3, and 4 (except the North 8 feet of said Lot 4), the South 121 feet of the vacated North-South alley, and the West Half of the vacated North-South alley (except the South 121 feet thereof) all in Block 9 of said Van's Addition to South Des Moines; Lots 1, 5, 6, 7, and 8, part of Lots 2, 3, and 4, and all of the vacated North-South alley in Block 10 of said Van's Addition to South Des Moines; all of vacated SW 1st Street lying between the South line of Jackson Avenue and the Northeasterly line of Indianola Avenue as presently established; and all of vacated Granger Avenue lying between the West line of South Union Street and the Northeasterly line of Indianola Avenue as presently established, all now included in and forming a part of the City of Des Moines, Polk County, Iowa, and being more particularly described by survey as follows:

Beginning at the Southeast corner of Lot 5 in Block 10 of Van's Addition to South Des Moines; thence North 71°(degrees) 55'(minutes) 00"(seconds) West, 168.54 feet along the South line of said Block 10 of Van's Addition to South Des Moines to the Northeasterly line of Indianola Avenue as it is presently established; thence North 15°22'36" West, 197.13 feet along the Northeasterly line of said Indianola Avenue; thence North 15°21'58" West, 190.84 feet along the Northeasterly line of said Indianola Avenue; thence North 15°21'29" West, 184.59 feet along the Northeasterly line of said Indianola Avenue to the West line of the vacated North-South alley in Block 6 of South Fort Des Moines; thence North 19°17'42" East, 82.22 feet along the West line of the vacated North-South alley in Block 6 of South Fort Des Moines; thence Easterly 136.25 feet along the arc of a curve concave Southerly and having a radius of 267.00 feet and a 134.77 feet long chord that bears South 86°32'55" East to the North line of said Block 6 of South Fort Des Moines; thence South 71°55'48" East, 17.90 feet along the North line of said Block 6 of South Fort Des Moines to the Northeast corner of Lot 8 in said Block 6 of South Fort Des Moines; thence South 71°37'52" East, 67.07 feet to the Northwest corner of Lot 1 in Block 15 of South Fort Des Moines; thence South 72°03'42" East, 140.04 feet along the North line of said Block 15 of South Fort Des Moines to the centerline of the North-South alley in said Block 15 of South Fort Des Moines; thence South 19°19'45" West, 143.19 feet along the centerline of the North-South alley in said Block 15 of South Fort Des Moines and the centerline of the North-South alley in Block 9 of Van's Addition to South Des Moines; thence South 71°49'01" East, 8.25 feet to the West line of Lot 4 in said Block 9 of Van's Addition to South Des Moines; thence North 19°19'45" East, 3.21 feet to the South line of the North 8 feet of said Lot 4 in Block 9 of Van's Addition to South Des Moines; thence South 71°55'44" East, 132.61 feet along the South line of the North 8 feet of said Lot 4 in Block 9 of Van's Addition to South Des Moines to the East line of said Block 9 of Van's Addition to South Des Moines; thence South 19°30'50" West, 190.52 feet along the East line of said Block 9 of Van's Addition to South Des Moines and extended to the Northeast corner of Lot 8 in Block 10 of Van's Addition to South Des Moines; thence South 19°24'08" West, 263.67 feet along the East line of said Block 10 of Van's Addition to South Des Moines to the point of beginning.

WHEREAS, the Metro Center Urban Renewal Project Area consists of Capitol Center Development Area I combined with Capitol-Center Development Area II - Areas "A", "B", "C" and "D"; Riverpoint - Areas "A", "B" and "C"; Capitol-Center III - Area "A"; Sixth Avenue Area; and River Hills 2011, all as described above, with the following boundary adjustments between the subareas for administrative purposes without change to the Base Valuations established for each subarea:

1) Adjustment of the boundary between the Capitol-Center Development Area I and the Riverpoint - Area "A" subareas to place the entirety of the 420 Court Avenue

Redevelopment Parcel described above within the Capitol-Center Development Area I; and

2) Adjustment of the boundary between the Riverpoint - Area "A" and the Riverpoint - Area "C" subareas to place the entirety of the Indy East Redevelopment Parcel described above within the Riverpoint - Area "A" subarea; and

WHEREAS, the continuing needs of redevelopment of the consolidated Metro Center Urban Renewal Project are such as to require application of the incremental tax resources of the consolidated urban renewal project; and

WHEREAS, indebtedness has been incurred by the City of Des Moines, Iowa, and additional indebtedness is anticipated to be incurred in the future to finance said Urban Renewal Project; and

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the continuation of the division of revenue from taxation in the Metro Center Urban Renewal Project Area, as above described in accordance with the provisions of Section 403.19 of the 2015 Code of Iowa, as amended; NOW, THEREFORE,

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA AS FOLLOWS:

Section 1. That the taxes levied on the taxable property in the Urban Renewal Project Area known as the Metro Center Urban Renewal Project Area, consisting of the subareas known as Capitol-Center Development Area I; Capitol-Center Development Area II - Areas "A", "B", "C", and "D"; Riverpoint - Areas "A", "B", and "C"; Capitol-Center III - Area "A"; Sixth Avenue Area; and River Hills 2011 Area, each of which is legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. For purposes of this Ordinance, "Base Period Taxes" are that portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in the Metro Center Urban Renewal Project Area upon the total sum of the "Base Valuations" of each of the sub-areas within the Metro Center Urban Renewal Project Area. The "Base Valuations" are the assessed values of the taxable property in each sub-area of said Urban Renewal Project Area as shown on the assessment rolls following:

With respect to the Capital-Center Development Area I, the assessment roll last equalized prior to the effective date of Ordinance No. 8666, being the assessment roll for January 1, 1972;

With respect to the Capital-Center Development Area II-Area "A", the assessment roll last equalized prior to the effective date of Ordinance No. 10,404, being the assessment roll for January 1, 1982;

With respect to the Capital-Center Development Area II-Area "B", the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 11,971, being the assessment roll for January 1, 1992;

With respect to the Riverpoint-Area "A", the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 11,419, being the assessment roll for January 1, 1989;

With respect to the Riverpoint-Area "B", the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 11,972, , being the assessment roll for January 1, 1992;

With respect to the Capital-Center Development Area II-Areas "C" and "D" and the Riverpoint-Area "C", the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 12,054, being the assessment roll for January 1, 1992;

With respect to the Capitol-Center III - Area "A", the assessment roll as of January 1

of the calendar year preceding the effective date of Ordinance No. 12,070, being the assessment roll for January 1, 1992;

With respect to the Sixth Avenue Area, the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 13,565, being the assessment roll for January 1, 1997; and,

With respect to the River Hills 2011 Area, the assessment roll as of January 1 of the calendar preceding the effective date of this Ordinance, being the assessment roll for January 1, 2010.

The "Base Period Taxes" for each of the sub-areas within the Metro Center Urban Renewal Project Area shall be computed using the total assessed value of the taxable property within each such sub-area as shown on the assessment rolls applicable to each sub-area as described above. "Base Period Taxes" shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by and for said taxing district into which all other property taxes are paid.

Section 3. For purposes of this Ordinance, "Incremental Taxes" are that portion of the taxes each year in excess of the "Base Period Taxes" for the combined Metro Center Urban Renewal Project Area, determined as provided in Section 2 of this Ordinance. "Incremental Taxes" shall be allocated to and when collected be paid into a special fund of the City of Des Moines, Iowa, hereafter to be maintained to pay the principal of and interest on loans, monies advanced to, and indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under authority of Sections 403.9 and 403.12 of the 2015 Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance, in whole or in part, urban renewal project activities undertaken within the Metro Center Urban Renewal Project Area, except that to the extent authorized in Section 403.19(2), taxes for the regular and voter-approved physical plant and equipment levy of a school district imposed pursuant to Section 298.2, taxes for the instructional support program of a school district imposed pursuant to Section 247.17, taxes for the payment of bonds and interest of each taxing district levying taxes in the Metro Center Urban Renewal Project Area, and taxes imposed under section 364.27, subsection 22, related to joint county-city buildings shall be collected against all taxable property within the said Project Area without any limitations as hereinabove provided.

Section 4. At such time as the loans, monies advanced and bonds of the City of Des Moines and interest thereon, hereinabove referred to, have been paid, all monies thereafter received from taxes upon the taxable property in the Urban Renewal Project Area known as the Metro Center Urban Renewal Project Area shall be paid into the funds for the respective taxing districts in the same manner as "Base Period Taxes".

Section 5. All ordinances or parts of ordinances in conflict with the provisions of this Ordinance are hereby repealed. The provisions of this Ordinance are intended and shall be construed so as to continue the division of taxes from property within each of the sub-areas of the combined Metro Center Urban Renewal Project Area as described above and to fully implement the provisions of Section 403.19 of the 2015 Code of Iowa, as amended, with respect thereto. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the 2015 Code of Iowa, as amended, with reference to the combined Metro Center Urban Renewal Project Area and the territory contained therein. In the event of any overlap between the boundaries of the Metro Center Urban Renewal Project Area and any other designated urban renewal area, such overlapping area is hereby severed from such other urban renewal area and shall be considered to be exclusively within the Metro Center Urban Renewal Project Area.

Section 6. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

Section 2. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

APPROVED AS TO FORM:

_____

Roger K. Brown
Assistant City Attorney

Passed March 21, 2016

ORDINANCE NO. 15,517

AN ORDINANCE providing that general property taxes levied and collected each year on all property located within the Forest Avenue Urban Renewal Area in the City of Des Moines, County of Polk, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, Des Moines Area Community College, and other taxing districts, be paid to a special fund for payment of principal and interest on loans, monies advanced to and indebtedness, including bonds issued or to be issued, incurred by the City of Des Moines in connection with the Urban Renewal Project for such Area.

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved September 12, 2016, Roll Call Number 16-1572, adopted an urban renewal plan titled "Forest Avenue Urban Renewal Plan" for an Urban Renewal Project within an Urban Renewal Area described as follows:

Beginning at the intersection of the South Right-of-Way of Forest Avenue and the Southerly extension of the East Line of Lot 5 in Rutledge Place, an Official Plat, said East Line also being the West Right-of-Way Line of 33rd Street; Thence North along said Southerly extension and continuing along said West Right-of-Way Line of 33rd Street to Westerly extension of the South Line of the North 142 feet of Lot 4 in said Rutledge Place; Thence East along said Westerly extension and continuing along said South Line of the North 142 feet of Lot 4 to the West Line of Lot 1 in said Rutledge Place; Thence North along said West Line to the South Line of the North 12 feet of said Lot 1; Thence East along said South Line and continuing along the Easterly extension of said South Line of the North 12 feet of said Lot 1 to the East Right-of-Way Line of 32nd Street; Thence South along said East Right-of-Way Line to the Easterly extension of the North Line of Lot 2 of said Rutledge Place; Thence West along said Easterly extension and continuing along said North Line of said Lot 2 to the West Line of said Lot 2; Thence South along said West Line to South Line of the North 80 feet of said Lot 2; Thence East along said South Line of the North 80 feet of said Lot 2 and continuing along the Easterly extension of said South Line to said East Right-of-Way Line of 32nd Street; Thence South along said East Right-of-Way Line to a point on the North Right-of-Way Line of Forest Avenue, said point also being the Southwest Corner of Lot 13 in Block 7 of Merritt and Fischer's Park, an Official Plat; Thence Southeast along a straight line to the Northwest Corner of Lot 48 of Ridgewood, an Official Plat, said corner also being a point on the South Right-of-Way Line of Forest Avenue; Thence West along said South Right-of-Way Line of Forest Avenue to the Southerly extension of the West Line of said Lot 5 in Rutledge and the Point of Beginning.

WHEREAS, expenditures and indebtedness are anticipated to be incurred by the City of Des Moines, Iowa, in the future to finance said Urban Renewal Project; and

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the Urban Renewal Area as above described, in accordance with the provisions of Section 403.19 of the Code of Iowa, as amended.

NOW THEREFORE, BE IT ORDAINED, by the City Council of the City of Des Moines, Iowa, as follows:

Section 1. That the taxes levied on the taxable property in the Urban Renewal Area known as the Forest Avenue Urban Renewal Area, legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines,

Iowa, County of Polk, Des Moines Independent Community School District, Des Moines Area Community College, and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. That portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said Urban Renewal Area upon the total sum of the assessed value of the taxable property in said Urban Renewal Area as shown on the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of property tax revenue shall be allocated to and when collected be paid into the Fund into which all other property taxes are paid for the respective taxing district, as taxes by or for said taxing district.

Section 3. To the full extent allowable under Iowa Doe Section 403.19, that portion of the taxes each year in excess of the base period taxes determined as provided in Section 2 of this Ordinance shall be allocated to and when collected be paid into a special tax increment fund hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of Sections 403.9 and 403.12 of the Code of Iowa, as amended, incurred by the City of Des Moines to finance or refinance in whole or in part the Forest Avenue Urban Renewal Project.

Section 4. All taxes levied and collected upon the taxable property in said Forest Avenue Urban Renewal Area shall be paid into the funds of the taxing districts as taxes by or for said taxing districts in the same manner as all other property taxes unless or until the total assessed valuation of the taxable property in said Urban Renewal Area shall exceed the total assessed value of the taxable property in said Urban Renewal Area as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to this Ordinance.

Section 5. At such time as the loans, advances, bonds and interest thereon and indebtedness of the City of Des Moines hereinabove in Section 3 referred to have been paid, all monies thereafter received from taxes upon the taxable property in the Urban Renewal Area known as the Forest Avenue Urban Renewal Area shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property.

Section 6. The provisions of this Ordinance are intended and shall be construed so as to fully implement the provisions of Section 403.19 of the 2015 Code of Iowa, as amended, with respect to the division of taxes from property within the Urban Renewal Area as described above. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the Code of Iowa with reference to said Urban Renewal Area and the territory therein.

Section 7. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

FORM APPROVED:

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Thomas G. Fisher Jr.
Assistant City Attorney

Passed October 10, 2016

ORDINANCE NO. 15,541

AN ORDINANCE repealing Ordinance No. 13,397 which provides for the division of revenue from taxation in the Airport Commerce Park West Urban Renewal Project Area in accordance with the provisions of Iowa Code Section 403.19, with such repeal to be effective June 30, 2017.

WHEREAS, by Ordinance No. 13,397 passed on December 2, 1996, the City Council provided for the division of revenue from taxation in the

Airport Commerce Park West Urban Renewal Project Area in accordance with the provisions of Iowa Code Section 403.19; and,

WHEREAS, the adopted urban renewal plan for the Airport Commerce Park West Urban Renewal Project Area expires on June 30, 2017; and,

WHEREAS, the purpose of this ordinance is to memorialize the termination of the Airport Commerce Park West Urban Renewal Project by repealing Ordinance No. 13,397 effective June 30, 2017.

NOW THEREFORE, BE IT ORDAINED, by the City Council of the City of Des Moines, Iowa, as follows:

Section 1. That Ordinance No. 13,397 passed on December 2, 1996, which provides for the division of revenue from taxation in accordance with the provisions of Iowa Code Section 403.19 within the Airport Commerce Park West Urban Renewal Project Area more specifically described as follows:

All of Airport Industrial Park Plat 1, an Official Plat, all now included in and forming a part of the City of Des Moines, Polk County, Iowa;

AND, the Southwest Quarter (SW ¼) of the Northeast Quarter (NE ¼) of Section 23, Township 78 North, Range 25 West of the 5th P.M., except the South 582.07 feet thereof, and except the West 130 feet thereof, all now included in and forming a part of the City of Des Moines, Polk County, Iowa;

AND, the North one-half of the Northeast Quarter (NE ¼) of Section 23, Township 78 North, Range 25 West of the 5th P.M., except the North 45 feet thereof, and except the West 130 feet thereof, all now included in and forming a part of the City of Des Moines, Polk County, Iowa;

AND, the Northwest Quarter (NW ¼) of the Northwest Quarter (NW ¼) of Section 24, Township 78 North, Range 25 West of the 5th P.M., except the North 45 feet thereof, all now included in and forming a part of the City of Des Moines, Polk County, Iowa;

AND, the entire Park Avenue right-of-way from the East right-of-way line of Southwest Sixty-third Street (Iowa Highway 28) extending East to a line through the Northeast corner of the Northwest Quarter (NW ¼) of the Northwest Quarter (NW ¼) of Section 24, Township 78 North, Range 25 West of the 5th P.M., all now included in and forming a part of the City of Des Moines, Polk County, Iowa,

is hereby repealed effective June 30, 2017.

Section 2. The certification of loans, advances, indebtedness and bonds for payment from the special fund for the Airport Commerce Park West Urban Renewal Project Area pursuant to Iowa Code § 403.19 shall cease with the certification that was due on December 1, 2015, making the taxes collectable in the fiscal year beginning July 1, 2016, the last tax year subject to the division of revenue. Any funds held in the special fund for the Airport Commerce Park West Urban Renewal Project Area on July 1, 2017, and not obligated for the payment of loans, advances, indebtedness and bonds eligible for payment from the special fund, shall be promptly refunded by the City Finance Director to the Polk County Auditor for allocation and payment into the funds of the respective taxing jurisdictions as taxes by or for the taxing districts in the same manner as taxes on all other property within the Airport Commerce Park West Urban Renewal Project Area.

Section 3. This Ordinance shall be effective upon final passage, approval and publication as provided by law.

FORM APPROVED:

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Roger K. Brown
Assistant City Attorney

ORDINANCE NO. 15,542

AN ORDINANCE repealing Ordinance No. 13,399, as amended by Ordinance No. 13,976, which provide for the division of revenue from taxation in the Airport Commerce Park South

Urban Renewal Project Area in accordance with the provisions of Iowa Code Section 403.19, with such repeal to be effective June 30, 2017.

WHEREAS, by Ordinance No. 13,399 passed on December 2, 1996, as amended by Ordinance No. 13,976, passed July 23, 2001, the City Council provided for the division of revenue from taxation in the Airport Commerce Park South Urban Renewal Project Area in accordance with the provisions of Iowa Code Section 403.19; and,

WHEREAS, the adopted urban renewal plan for the Airport Commerce Park South Urban Renewal Project Area expires on June 30, 2017; and,

WHEREAS, the purpose of this ordinance is to memorialize the termination of the Airport Commerce Park South Urban Renewal Project by repealing Ordinance No. 13,399 and Ordinance No. 13,976 effective June 30, 2017.

NOW THEREFORE, BE IT ORDAINED, by the City Council of the City of Des Moines, Iowa, as follows:

Section 1. That Ordinance No. 13,399 passed on December 2, 1996, and Ordinance No. 13,976 passed July 23, 2001, which provide for the division of revenue from taxation in accordance with the provisions of Iowa Code Section 403.19 within the Airport Commerce Park South Urban Renewal Project Area more specifically described as follows:

Airport Commerce Park Plat 1, an Official Plat, excluding Lots 4, 5, and Outlot X, all now included in and forming a part of the City of Des Moines, Polk County, Iowa;

AND, Airport Commerce Park South, an Official Plat, all now included in and forming a part of the City of Des Moines, Polk County, Iowa;

AND, the entire Fleur Drive Right-of-way from the North right-of-way line of Army Post Road extended South to a line 3,400 feet South of the South right-of-way line of Army Post Road, all now included in and forming a part of the City of Des Moines, Polk County, Iowa,

are hereby repealed effective June 30, 2017.

Section 2. The certification of loans, advances, indebtedness and bonds for payment from the special fund for the Airport Commerce Park South Urban Renewal Project Area pursuant to Iowa Code § 403.19 shall cease with the certification that was due on December 1, 2015, making the taxes collectable in the fiscal year beginning July 1, 2016, the last tax year subject to the division of revenue. Any funds held in the special fund for the Airport Commerce Park South Urban Renewal Project Area on July 1, 2017, and not obligated for the payment of loans, advances, indebtedness and bonds eligible for payment from the special fund, shall be promptly refunded by the City Finance Director to the Polk County Auditor for allocation and payment into the funds of the respective taxing jurisdictions as taxes by or for the taxing districts in the same manner as taxes on all other property within the Airport Commerce Park South Urban Renewal Project Area.

Section 3. This Ordinance shall be effective upon final passage, approval and publication as provided by law.

FORM APPROVED:

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Roger K. Brown
Assistant City Attorney

ORDINANCE NO. 15,543

AN ORDINANCE repealing Ordinance No. 13,400, as amended by Ordinance No. 13,998, which provide for the division of revenue from taxation in the Airport Business Park Urban Renewal Project Area in accordance with the provisions of Iowa Code Section 403.19, with such repeal to be effective June 30, 2017.

WHEREAS, by Ordinance No. 13,400 passed on December 2, 1996, as amended by Ordinance No. 13,998 passed September 24, 2001, the City Council provided for the division of revenue from taxation in the Airport Business Park Urban Renewal Project Area in accordance with the provisions of Iowa Code Section 403.19; and,

WHEREAS, the adopted urban renewal plan for the Airport Business Park Urban Renewal Project Area expires on June 30, 2017; and,

WHEREAS, the purpose of this ordinance is to memorialize the termination of the Airport Business Park Urban Renewal Project by repealing Ordinance No. 13,400 and Ordinance No. 13,998 effective June 30, 2017.

NOW THEREFORE, BE IT ORDAINED, by the City Council of the City of Des Moines, Iowa, as follows:

Section 1. That Ordinance No. 13,400 passed on December 2, 1996, and Ordinance No. 13,998 passed September 24, 2001, which provide for the division of revenue from taxation in accordance with the provisions of Iowa Code Section 403.19 within the Airport Business Park Urban Renewal Project Area more specifically described as follows:

"Original Area" designated by Ordinance No. 13,400:

The Southwest Quarter of Section 31, Township 78 North, Range 24 West of the 5th P.M., all now include in and forming a part of the City of Des Moines, Polk County, Iowa.

"Expansion Area" added by Ordinance No. 13,998:

A parcel of land located in the East 1/2 of Section 31, Township 78 North, Range 24 West of the 5th P.M., in the City of Des Moines, Polk County, Iowa, that is more particularly described as follows:

Beginning at the South ¼ corner of said Section 31, said point also being the Southeast Corner of Outlot X, Airport Business Park Plat 1, an Official Plat; Thence North 00°03'55" East, 2638.56 feet along the East line of said Outlot X and Outlot Y to the Northeast Corner of said Outlot Y, said point also being the center of said Section 31; Thence South 89°38'55" East, 306.84 feet along the South right-of-way line of Army Post Road to a point of curvature; Thence easterly along a curve to the left having a radius of 2700.55 feet, an arc length of 974.13 feet along the South right-of-way line of Army Post Road to a point of tangency; Thence North 69°41'02" East, 63.53 feet along the South right-of-way line of Army Post Road to the Northwest Corner of Airport Commerce Park South, an Official Plat; Thence South 00°03'46" West, 196.22 feet along the West line of Airport Commerce Park South to a point; Thence South 00°05'21" West, 1318.60 feet along the West line of Airport Commerce Park South to a point; Thence South 89°40'39" East, 1319.87 feet along the south line of Airport Commerce Park South to a point on the East line of said Section 31; Thence South 00°06'47" West, 1317.93 feet along said East line to the Southeast Corner of said Section 31; Thence North 89°42'24" West, 2638.63 feet along the South line of said Section 31 to the Point of Beginning,

are hereby repealed effective June 30, 2017.

Section 2. The certification of loans, advances, indebtedness and bonds for payment from the special fund for the Airport Business Park Urban Renewal Project Area pursuant to Iowa Code § 403.19 shall cease with the certification that was due on December 1, 2015, making the taxes collectable in the fiscal year beginning July 1, 2016, the last tax year subject to the division of revenue. Any funds held in the special fund for the Airport Business Park Urban Renewal Project Area on July 1, 2017, and not obligated for the payment of loans, advances, indebtedness and bonds eligible for payment from the special fund, shall be promptly refunded by the City Finance Director to the Polk County Auditor for allocation and payment into the funds of the respective taxing jurisdictions as taxes by or for the taxing districts in the same manner as taxes on all other property within the Airport Business Park Urban Renewal Project Area

Section 3. This Ordinance shall be effective upon final passage, approval and publication as provided by law.

FORM APPROVED:

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Roger K. Brown
Assistant City Attorney

ORDINANCE NO. 15,553

An Ordinance amending Ordinance No. 13,386, as amended by Ordinance No. 14,058, entitled: An Ordinance providing that general property taxes levied and collected each year on all property located within the ACCENT Neighborhood Urban Renewal Area in the City of Des Moines, County of Polk, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, and other taxing districts, be paid to a special fund for payment of principal and interest on loans, monies advanced to and indebtedness, including bonds issued or to be issued, incurred by said City in connection with said urban renewal redevelopment project.

WHEREAS, the City Council of the City of Des Moines, Iowa, has heretofore, in Ordinance No. 13,386, provided for the division of revenue from taxes within the ACCENT Neighborhood Urban Renewal Area (hereinafter referred to as the "Original ACCENT Area"); and,

WHEREAS, by the First Amendment to the Urban Renewal Plan for the ACCENT Neighborhood Urban Renewal Area, after notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to add an additional area (hereinafter referred to as the "Expansion Area"); and,

WHEREAS, by Ordinance No. 14,058 the City Council amended Ordinance No. 13,386 to expand the area subject to the division of revenue from taxes to include the Expansion Area; and,

WHEREAS, by the Third Amendment to the Urban Renewal Plan for the ACCENT Neighborhood Urban Renewal Area, after notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to: i) correct several scrivener's errors in the prior legal descriptions without substantive change to the interpretation and application of the prior descriptions; and ii) to remove several existing tax parcels that extend outside the said urban renewal area; and,

WHEREAS, the continuing need for redevelopment and restoration of the ACCENT Neighborhood Urban Renewal Area are such as to require continued application of the increment tax resources of the said urban renewal area; and,

WHEREAS, the following enactment is necessary to accomplish the objectives described above and in the Urban Renewal Plan for the ACCENT Neighborhood Urban Renewal Area; NOW THEREFORE,

BE IT ORDAINED, by the City Council of the City of Des Moines, Iowa, as follows:

Section 1. That Ordinance Nos. 13,386 and 14,058 are hereby amended to read as follows:

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved October 21, 1996, adopted an Urban Renewal Plan for an area known as the ACCENT Neighborhood Urban Renewal Area (herein designated as the "Original ACCENT Area").

WHEREAS, by the First Amendment to said Urban Renewal Plan, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted for an extended area consisting of the Original ACCENT Area combined with an area (herein referred to as the "Expansion Area"); and,

WHEREAS, by the Third Amendment to the Urban Renewal Plan for the ACCENT Neighborhood Urban Renewal Area, after notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to: i) correct several scrivener's errors in the prior legal descriptions without substantive change to the interpretation and application of the prior descriptions; and ii) to remove several existing tax parcels that extend outside the said urban renewal area; and,

WHEREAS, indebtedness has been incurred by the City of Des Moines, Iowa, and additional expenditures and indebtedness are anticipated to be incurred in the future to finance said Urban Renewal Project; and

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the continued division of revenue from taxation in

the amended ACCENT Neighborhood Urban Renewal Area as more specifically described below, in accordance with the provisions of Section 403.19 of the 2015 Code of Iowa.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA:

Section 1. That the taxes levied on the taxable property in the amended urban renewal area of the ACCENT Neighborhood Urban Renewal Project, consisting of the Original ACCENT Area and the Expansion Area described below, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Original ACCENT Area

Commencing at the Northeast corner of Lot 1, Davis Heights, an Official Plat; thence southwesterly along the North line of said Lot 1, a distance of 53.22 feet to the Point of Beginning; thence South and southwesterly along the westerly line of said Lot 1 and along the West line of Lot 5 and 6, of said Davis Heights, to a point 49.50 feet South of the Northwest corner of said Lot 6; thence southwesterly to the Northwest corner of Lot 7, Tom's Heights Plat No. 2, an Official Plat, said point also being on the East right-of-way line of East 29th Street; thence South along the East right-of-way line of East 29th Street and the southerly extensions of East 29th Street right-of-way lines to the Northwest corner of Lot 15, Block 4, Hyde Park Plat 2, an Official Plat; thence East along the North line of Lots 15 through 27, inclusive in said Block 4 and said North line extended East to the East right-of-way line of East 30th Street; thence South along the East right-of-way line of East 30th Street to the Northwest corner of Lot 15, Block 10, in said Hyde Park Plat 2, said Northwest corner also being on the East right-of-way line of East 30th Street; thence South along said East right-of-way line to the North right-of-way line of East University Avenue; thence East along said North right-of-way line to the Southeast corner of Lot 19 of said Block 10; thence North along the East line of said Lot 19 to the Northeast corner of said Lot 19; thence East along the North line of Lots 20 through 31, inclusive in said Block 10 to the Northeast corner of said Lot 31; thence Easterly along a straight line to a point 7.0 feet North of the Northwest corner of Lot 16, Block E, Gray Heights, an Official Plat; thence East along a straight line that is 7.0 feet North of and parallel with the North line of Lots 16 through 20 to the Northwesterly line of the former railroad right-of-way in said Lot E; thence Southwesterly along said former railroad right-of-way line to the Northeast corner of said Lot 20; thence East along the Westerly extension of the North Line of Lot 21 of said Block E to a point that is 80.0 feet West of the Northeast corner of said Lot 21; thence North along a line that is 80 feet West of and parallel to the Northerly extension of the East line of said Lot 21 to a point on a straight line that is 7.0 feet North of and parallel with the Westerly extension of the North line of said Lots 21; thence East along said Westerly extension and continuing along on a straight line that is 7.0 feet North of and parallel to lots 21 through 27, inclusive, in said Block E and said straight line extended East to the East right-of-way line of East 33rd Street; thence South along the East right-of-way line of East 33rd Street and said East right-of-way line extended to the South right-of-way line of East University Avenue as it now exists; thence West along said South right-of-way line of East University Avenue to the East right-of-way line of East 30th Street as it now exists; thence South along said East right-of-way line to a point of intersection with the easterly extension of the South right-of-way line of Walker Street; thence West along said South right-of-way line and its easterly extension to the Northwest corner of Lot 12, Block 8, Farwell Place, an Official Plat; thence North to the Southeast corner of Lot 18, Block 7, in said Farwell Place; thence West along the South line of said Lot 18, a distance of 25.00 feet; thence North along a line being 25.0 feet West of and parallel with the East line of said Lot 18, to the North line

of said Lot 18; thence West 25.0 feet along the North line of said Lot 18 to the Northeast corner of Lot 19, Block 7, in said Farwell Place; thence West along the North line of Lots 19 through 28, inclusive, in said Block 7 to the Northwest corner of said Lot 28; thence South along the West line of said Lot 28 to a point of intersection with the easterly extension of the South line of Lot 25, Block 6, in said Farwell Place; thence West along the easterly and westerly extensions of the said South lot lines of 25 and 4, Blocks 6 and 5, in said Farwell Place and continuing West along the North lines of Lots 26 and 5, Block 4 in said Farwell Place and the westerly extension of said lots and also continuing West along the North lot lines of Lots 26 and 5, Block 3 in said Farwell Place to a point 5.0 feet East of the Northwest corner of said Lot 5; thence southwesterly to the Northwest corner of Lot 6, Block 3, in said Farwell Place; thence South along the West line to the intersection with the easterly extension of a line being 15.0 feet North of the Southeast corner of Lot 25, Block 2 of said Farwell Place; thence West along a line, 15.0 feet North of and parallel with the South line of Lots 25 and 6 of said Block 2 to the East right-of-way line of East 26th Court; thence North along the East right-of-way line of East 26th Court to a point of intersection with the South line extended East of Lots 27 and 4, Block 1, in said Farwell Place; thence West along the South line and the South line extended of said Lots 27 and 4 to the West right-of-way line of East 26th Street; thence South along the West right-of-way line, said right-of-way line also being the East line of Block 10, York's Choice, an Official Plat, to a point on the East line of Lot 11, said Block 10 being 12.50 feet South of the Northeast corner of said Lot 11; thence West along a straight line being 12.50 feet South of and parallel with the North line of said Lot 11, to a point being 54.00 feet West of the East line of said Lot 11; thence North 2.00 feet; thence West along a straight line being 10.50 feet South of and parallel with the North line of said Lot 11, a distance of 30.00 feet; thence South 2.00 feet to a point being 12.50 feet South of the North line and 84.00 feet West of the Northeast corner of said Lot 11; thence West along a straight line being 12.50 feet South of and parallel with the North line of said Lot 11 to a point that is 20.00 feet East and 12.50 feet South of the Northwest corner of said Lot 11; thence South along a straight line to a point being 20.00 feet West of and 7.50 feet South of the Northwest corner of Lot 12, in said Block 10; thence West along a straight line that is 7.50 feet South of and parallel with the North line of said Lot 12 to a point on the West line of Lot 12, in said Block 10; thence North along said West line to the Northwest corner of said Lot 12; thence West along the easterly extension of the South line of Lot 48, of said Block 10, to the Southeast corner of said Lot 48; thence West along the South line of said Lot 48 to the Southwest corner of said Lot 48; thence North along the West line of Lots 48 through 52, inclusive, in said Block 10 to the Northwest corner of said Lot 52; thence West along the North line of said Lot 52 extended West to the Southeast corner of Lot 6, Block 9, in said York's Choice; thence West along the South line of said Lot 6 and the South line extended West to the Northeast corner of Lot 52, in said Block 9; thence South along the East line of Lots 52, 51 and 50, in said Block 9 to the Southeast corner of said Lot 50; thence West along the South line of said Lot 50 to a point being 1.0 feet East of the Southwest corner of said Lot 50 also being the East right-of-way line of East 25th Street; thence North along said East right-of-way line to the North line of said Lot 50; thence West along the westerly extension of the North line of said Lot 50, to the west right-of-way line of East 25th St., and being the South line of Lot 9 Block B, in said York's Choice; thence West along the South line and the South line extended West of said Lot 9 to the Southeast corner of Lot 52, in said Block 8; thence North along the East line of said Lot 52 to the Southeast corner of Lot 53, in said Block 8; thence West along the South line and the South line extended West of said Lot 53, and the South line of extended of Lot 8, Block 7, in said York's Choice to the Southeast corner of Lot 53, in said Block 7; thence North along the East line of said Lot 53 to the Northeast

corner of said Lot 53; thence West along the North line of said Lot 53 to the Northwest corner of said Lot 53; thence South along the West line of said Lot 53 to the Southwest corner of said Lot 53; thence West along the westerly extension of the South line of said Lot 53, to the Southeast corner of Lot 8, Block 6 in said York's Choice; thence West along the South line of said Lot 8, and the South line extended of said Lot 8, to the Southeast corner of Lot 53, in said Block 6; thence North along the East line of said Lot 53 to the Northeast corner of said Lot 53; thence West along the North line and the North line extended West of said Lot 53 to the Northeast corner of Lot 8, Block 5, in said York's Choice; thence South along the East line of said Lot 8 to the Southeast corner thereof; thence West along the South line of said Lot 8, to the Southwest corner of said Lot 8; thence North along the West line of Lots 8 and 7, in said Block 5 to the Northwest corner of Lot 7, in said Block 5; thence West along the westerly extension of the North line of Lot 7, Block 5, to the Northeast corner of Lot 7, Block 4, in said York's Choice; thence South along the East line of said Lot 7 and Lot 8, Block 4, to the Southeast corner of said Lot 8; thence West along the South line and the South line extended of said Lot 8 to the Southeast corner of Lot 53, in said Block 4; thence North along the East line of said Lot 53 and Lot 54, Block 4, to the Northeast corner of said Lot 54; thence West along the North line and the North line extended of said Lot 54, to the Northeast corner of Lot 8, Block 3, in said York's Choice; thence South along the East line of said Lot 8 to the Southeast corner of said Lot 8; thence West along the South line and the South line extended of said Lot 8 to the Southeast corner of Lot 55, in said Block 3; thence North along the East line of said Lot 55 to the Northeast corner of said Lot 55; thence West along the North line and the North line extended of said Lot 55 to the West right-of-way line of East 22nd Street, said right-of-way line also being the East line of Block 2, Easdale, an Official Plat; thence South along the East line of said Block 2, Easdale to the Southeast corner of Lot 8, Block 2, in said Easdale; thence West along the South line of said Lot 8 to the Southeast corner of Lot 23 in said Block 2; thence North along the East line of said Lot 23, a distance of 3.00 feet; thence West along a straight line that is 3.00 feet North of and parallel with the South line of said Lot 23 to the West line of said Lot 23; thence South along the West line of Lots 23, 22 and 21, in said Block 2 to the Southwest corner of said Lot 21; thence West along the Westerly extension of the South line of said Lot 21, Block 2, to the Southeast corner of Lot 9, Block 1, in said Easdale; thence West along the South line and the South line extended West of Lots 9 and 20, Block 1, in said Easdale to a point on the West right-of-way line of East 21st Street; thence North along the West right-of-way line of East 21st Street to the southeasterly right-of-way line of Avenue Frederick M. Hubbell; thence southwesterly along the southeasterly right-of-way line of Avenue Frederick M. Hubbell to its intersection with the easterly extension of the South right-of-way line of Walker Street; thence West along the easterly extension of the South right-of-way line and the South right-of-way line of Walker Street to the East right-of-way line of the Union Pacific Railway; thence northerly along the East right-of-way line of the Union Pacific Railway to the southerly right-of-way line of Interstate Freeway No. 235, as presently established; thence easterly and northerly along the southerly and easterly right-of-way line of Interstate Freeway No. 235, as presently established, to the intersection of the southerly right-of-way line extended westerly of Easton Boulevard; thence easterly along the southerly right-of-way line of Easton Boulevard to the West right-of-way line of Lay Street extended South; thence North along the southerly extension of the West right-of-way line and the West right-of-way line of Lay Street and along the northerly extension of the West right-of-way line and Lay Street to the North right-of-way line of Jefferson Avenue; thence East along the North right-of-way line and the North right-of-way line extended to the Southwest corner of Lot 18, Block 2, Vorse's 1st Addition to Easton Place, an Official Plat; thence North to the Northwest corner of

said Lot 18; thence East along the North line of said Lot 18 and the North line extended to a point that is 30.00 feet East of the Northeast corner of said Lot 18; thence North along a straight line that is 30.00 feet East of parallel with the East line of Lots 11 through 18, in said Block 2 and along the East line of Block 2, Easton Place Plat No. 4, an Official Plat and the East line of Block 3, Easton Place Plat No. 4, an Official Plat to a point on a line that is 30.00 feet northerly of the centerline of the 7th Ward Ditch; thence easterly and southeasterly along a line 30.00 feet easterly and northerly of the centerline of 7th Ward Ditch to a point on the northerly right-of-way line of Easton Boulevard; thence northeasterly along the northerly right-of-way line of Easton Boulevard to a point that is the intersection of the West line extended North of Lot 29, Boulevard Addition, an Official Plat with the northerly right-of-way line of Easton Boulevard; thence South along the West line extended North of said Lot 29 to the southerly right-of-way line of Easton Boulevard; thence northeasterly along the southerly right-of-way of Easton Boulevard and to the easterly extension of the southerly right-of-way of said Easton Boulevard to the Point of Beginning, all now in and forming a part of Des Moines, Polk County, Iowa.

Expansion Area

Commencing at a point on the East right-of-way line of East 30th Street as it now exists, said Point of Beginning being the point of intersection with the easterly extension of the South right-of-way line of Walker Street; thence South along said East right-of-way line of East 30th Street to the South right-of-way line of Dean Avenue; thence West along said South right-of-way line of Dean Avenue to a point of intersection with the Southerly extension of the West lot line of Lot 26, Block 8, Elbert & York's Addition, an Official Plat; thence North along said southerly extension and the West lot lines of Lots 26 and 3, in Blocks 8 and 5 in said Elbert & York's Addition and along the Northerly extension of the West line of Lot 3 of said Block 5 to the South line of Block 4 of said Elbert & York's Addition; thence East along said South line to the Southeast corner of Lot 28 of said Block 4; thence North along the East line of said Lot 28 to the Northeast corner of said Lot 28; thence West along the North lines of Lots 28, 27 and 26 of said Block 4 to the Northwest corner of said Lot 26; thence North along the Northerly extension of the West line of said Lot 26 to the Southwest corner of Lot 3 of said Block 4; thence continuing North along the West line of said Lot 3 to the South right-of-way line of Capitol Avenue; thence west along said South right-of-way line to a point of intersection with the southerly extension of the West lot line of Lot 4, Block 1, Elbert & York's Addition; thence North along said southerly extension and the West lot line of Lot 4, Block 1, Elbert & York's Addition and continuing North along the West lot line of Lot 8, Geo. W. Harter's Subdivision, an Official Plat, and the northerly extension of said Lot 8 to the North right-of-way line of East Grand Avenue; thence East along said North right-of-way line to the West lot line of Lot 3, Block 1, Elliott's Addition, and Official Plat; thence North along said West lot line to the North lot line of Lot 3, Block 1, Elliott's Addition; thence East along said North lot line to a point of intersection with the southerly extension of the West lot line of Lot 28, Block 1, Elliott's Addition; thence North along said southerly extension and the West lot lines of Lots 28, 29, 30, Block 1, and Lots 1, 2, 3, Block 2, Elliott's Addition to the South lot line of Lot 28, Block 2, Elliott's Addition; thence West along the westerly extension of said South lot line to a point on said westerly extension, said point being 7' (seven feet) west of the West lot line of Lot 28, Block 2, Elliott's Addition; thence North from said point along a line 7' (seven feet) west of and parallel to the West lot lines of Lots 28, 29, 30, Block 2, Elliott's Addition and the northerly extension of said line to the North right-of-way line of Lyon Street; thence West along said North right-of-way line to a point on said North right-of-way line, said point being 10' (ten feet) west of the West lot line of Lot 1, Block 3, Elliott's Addition; thence North from said point along a line 10' (ten feet) west of and parallel to the West lot lines of Lots 1, 2, 3, Block 3, Elliott's Addition to a

point of intersection with the easterly extension of the North lot line of Lot 4, Block 3, Elliott's Addition; thence West along said easterly extension and the North lot line of Lot 4, Block 3, Elliott's Addition to a point of intersection with the southerly extension of the West lot line of Lot 11, Block 9, Farwell Place, an Official Plat; thence North along said southerly extension and the West lot line of Lot 11, Block 9, Farwell Place and also the northerly extension of said West lot line to a point of intersection with the North right -of-way line of East Maple Street; thence East along said North right-of-way line to a point of intersection with the West lot line of Lot 17, Block 8, Farwell Place; thence North along said West lot line and the West lot line of Lot 12, Block 8, Farwell Place to the Northwest corner of said Lot 12; thence East along the South right-of-way line of Walker Street and the easterly extension of said South right-of-way to the Point of Beginning, all now in and forming a part of Des Moines, Polk County, Iowa.

Section 2. For purposes of this Ordinance, "Base Period Taxes" are that portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in the amended ACCENT Neighborhood Urban Renewal Area upon the total sum of the "Base Valuations" of the sub-areas within the said urban renewal area. The "Base Valuations" are the assessed values of the taxable property in each sub-area of the said urban renewal area as shown on the following assessment rolls:

With respect to the Original ACCENT Area, the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certified to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to Ordinance No. 13,386, being the assessment roll for January 1, 1995;

With respect to the Expansion Area, the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certified to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to Ordinance No. 13,386, as amended by Ordinance No. 14,058, being January 1, 2001;

The "Base Period Taxes" for each of the sub-areas within the amended ACCENT Neighborhood Urban Renewal Area shall be computed using the total assessed value of the taxable property within each such sub-area as shown on the assessment rolls applicable to each sub-area as described above. "Base Period Taxes" shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by and for said taxing district into which all other property taxes are paid.

Section 3. For purposes of this Ordinance, "Incremental Taxes" are that portion of the taxes each year in excess of the "Base Period Taxes" for the amended ACCENT Neighborhood Urban Renewal Area, determined as provided in Section 2 of this Ordinance. "Incremental Taxes" shall be allocated to and when collected be paid into a special fund of the City of Des Moines, Iowa, hereafter to be maintained to pay the principal of and interest on loans, monies advanced to, and indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under authority of Sections 403.9 and 403.12 of the 2015 Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance, in whole or in part, urban renewal project activities undertaken within the amended ACCENT Neighborhood Urban Renewal Area, except that except that to the extent authorized in Section 403.19(2), taxes for the regular and voter-approved physical plant and equipment levy of a school district imposed pursuant to Section 298.2, taxes for the instructional support program of a school district imposed pursuant to Section 247.17, taxes for the payment of bonds and interest of each taxing district levying taxes in the said urban renewal area, and taxes imposed under section 364.27, subsection 22, related to joint county-city buildings shall be collected against

all taxable property within the said urban renewal area without any limitations as hereinabove provided.

Section 4. At such time as the loans, monies advanced and bonds of the City of Des Moines and interest thereon, hereinabove referred to, have been paid, all monies thereafter received from taxes upon the taxable property in the amended ACCENT Neighborhood Urban Renewal Area shall be paid into the funds for the respective taxing districts in the same manner as "Base Period Taxes".

Section 5. All ordinances or parts of ordinances in conflict with the provisions of this Ordinance are hereby repealed. The provisions of this Ordinance are intended and shall be construed so as to continue the division of taxes from property within each of the subareas of the amended ACCENT Neighborhood Urban Renewal Area as described above and to fully implement the provisions of Section 403.19 of the Code of Iowa, as amended, with respect thereto. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the Code of Iowa, as amended, with reference to the said urban renewal area.

Section 6. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

Section 2. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

FORM APPROVED:

_____

Roger K. Brown
Assistant City Attorney

ORDINANCE NO. 15,554

AN ORDINANCE AMENDING ORDINANCE NO. 8666, AS AMENDED BY ORDINANCE NOS. 8667, 9282, 13,810, 15,012, 15,427 and 15,458, ENTITLED:

"AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL REAL PROPERTY LOCATED WITHIN THE CAPITOL CENTER DEVELOPMENT AREA URBAN RENEWAL PROJECT IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO A SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BOND ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL REDEVELOPMENT PROJECT"

AND ALSO AMENDING ORDINANCE NO. 10,404, AS AMENDED BY ORDINANCE NOS. 11,971, 12,054, 12,070, 13,565, 13,810, 15,012, 15,427 and 15,458, ENTITLED:

"AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND COLLECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE CAPITOL-CENTER DEVELOPMENT AREA II URBAN RENEWAL PROJECT IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO THE SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BONDS ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL PROJECT"

AND ALSO AMENDING ORDINANCE NO. 11,419, AS AMENDED BY ORDINANCE NOS. 11,972, 12,054, 12,070, 13,565, 13,810, 15,012, 15,427 and 15,458, ENTITLED:

"AN ORDINANCE PROVIDING THAT GENERAL PROPERTY TAXES LEVIED AND

COLLECTED EACH YEAR ON ALL PROPERTY LOCATED WITHIN THE RIVERPOINT URBAN RENEWAL PROJECT IN THE CITY OF DES MOINES, COUNTY OF POLK, STATE OF IOWA, BY AND FOR THE BENEFIT OF THE STATE OF IOWA, CITY OF DES MOINES, COUNTY OF POLK, DES MOINES INDEPENDENT COMMUNITY SCHOOL DISTRICT, AND OTHER TAXING DISTRICTS, BE PAID TO THE SPECIAL FUND FOR PAYMENT OF PRINCIPAL AND INTEREST ON LOANS, MONIES ADVANCED TO AND INDEBTEDNESS, INCLUDING BOND ISSUED OR TO BE ISSUED, INCURRED BY SAID CITY IN CONNECTION WITH SAID URBAN RENEWAL PROJECT"

TO MAKE ADMINISTRATIVE CORRECTIONS TO THE BOUNDARIES OF THE METRO CENTER URBAN RENEWAL PROJECT AND THE VARIOUS SUB-AREAS THEREIN.

WHEREAS, the City Council of the City of Des Moines, Iowa, has heretofore, in Ordinance No. 8666, provided for the division of revenue from taxes within the Capitol-Center Development Area Urban Renewal Project Area (hereinafter referred to as the "Capitol-Center Development Area I"), pursuant to Section 403.19 of the 1973 Code of Iowa, as amended; and

WHEREAS, by Ordinance No. 8667 the City Council amended Ordinance No. 8666 (regarding the Capitol-Center Development Area Urban Renewal Project) to delete therefrom reference to a specific dollar figure of assessed value of taxable property; and

WHEREAS, by Ordinance No. 9282 the City Council amended Ordinance No. 8666, as amended by Ordinance No. 8667 (regarding the Capitol-Center Development Area Urban Renewal Project) to provide that said ordinance shall remain in effect until certain obligations of the City have been paid or secured; and

WHEREAS, the City Council of the City of Des Moines, Iowa, has heretofore, in Ordinance No. 10,404, provided for the division of revenue from taxes within the Capitol-Center Development Area II Urban Renewal Project Area (hereinafter referred to as the "Capitol-Center Development Area II - Area 'A'"), pursuant to Section 403.19 of the 1983 Code of Iowa, as amended; and

WHEREAS, an additional area (hereinafter referred to as "Capitol-Center Development Area II - Area 'B'") was added to the Capitol-Center Development Area II Urban Renewal Project Area and by Ordinance No. 11,971, the City Council amended Ordinance No. 10,404 to expand the area subject to the division of revenue from taxes under Ordinance No. 10,404 to include the additional area; and

WHEREAS, the City Council of the City of Des Moines, Iowa, has heretofore, in Ordinance No. 11,419, provided for the division of revenue from taxes within the Riverpoint Urban Renewal Project Area (hereinafter referred to as the "Riverpoint - Area 'A'"), pursuant to Section 403.19 of the 1989 Code of Iowa, as amended; and

WHEREAS, an additional area (hereinafter referred to as "Riverpoint - Area 'B'") was added to the Riverpoint Urban Renewal Project Area and by Ordinance No. 11,972 the City Council amended Ordinance No. 11,419 to expand the area subject to the division of revenue from taxes under Ordinance No. 11,419 to include the additional area; and

WHEREAS, by amendments to the Urban Renewal Plans for the Capitol-Center Development Area II Urban Renewal Project and the Riverpoint Urban Renewal Project, after notice and public hearing as prescribed by law, said Urban Renewal Plans were amended to provide for the consolidation and expansion of the two urban renewal projects to include additional areas (hereinafter referred to as "Capitol-Center Development Area II - Areas 'C' and 'D'", and "Riverpoint Area 'C'") in accordance with the Urban Renewal Plan for the Riverpoint Capitol-Center Development Area Urban Renewal Project; and

WHEREAS, by Ordinance No. 12,054 the City Council amended Ordinance No. 10,404, as amended by Ordinance No. 11,971 (regarding the Capitol-Center Development Area II Urban

Renewal Project) and also amended Ordinance No. 11,419 as amended by Ordinance No. 11,972 (regarding the Riverpoint Urban Renewal Project) to consolidate and expand the area subject to the division of revenue from taxes to be in accordance with the Urban Renewal Plan for the Riverpoint Capitol-Center Development Area Urban Renewal Project; and,

WHEREAS, by the First Amendment to the Urban Renewal Plan for the Riverpoint Capitol-Center Development Area, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to add an additional area (hereinafter referred to as "Capitol-Center III - Area 'A'"); and

WHEREAS, by Ordinance No. 12,070 the City Council amended Ordinance No. 10,404, as amended by Ordinance Nos. 11,971 and 12,054 (regarding the Capitol-Center Development Area II Urban Renewal Project) and also amended Ordinance No. 11,419, as amended by Ordinance Nos. 11,972 and 12,054 (regarding the Riverpoint Urban Renewal Project) to expand the area subject to the division of revenue from taxes to be in accordance with the Urban Renewal Plan for the Riverpoint Capitol-Center Development Area Urban Renewal Project; and,

WHEREAS, by the Fifth Amendment to the Urban Renewal Plan for the Riverpoint Capitol-Center Development Area, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to add an additional area (hereinafter referred to as the "Sixth Avenue Area"); and

WHEREAS, by Ordinance No. 13,565 the City Council amended Ordinance No. 10,404, as amended by Ordinance Nos. 11,971, 12,054 and 12,070 (regarding the Capitol-Center Development Area II Urban Renewal Project) and also amended Ordinance No. 11,419, as amended by Ordinance Nos. 11,972, 12,054, and 12,070 (regarding the Riverpoint Urban Renewal Project) to expand the area subject to the division of revenue from taxes to be in accordance with the amended Urban Renewal Plan for the Riverpoint Capitol-Center Development Area Urban Renewal Project; and,

WHEREAS, by amendments to the Urban Renewal Plans for the Riverpoint Capitol-Center Development Area Urban Renewal Project and the Capitol-Center Development Area Urban Renewal Project, after notice and public hearing as prescribed by law, said Urban Renewal Plans were amended to provide for the consolidation of the two urban renewal projects in accordance with the Urban Renewal Plan for the combined urban renewal projects to be known as the Metro Center Urban Renewal Project; and

WHEREAS, by Ordinance No. 13,810 the City Council amended Ordinance No. 8666, as amended by Ordinance Nos. 8667 and 9282 (regarding the Capitol-Center Development Area Urban Renewal Project), and amended Ordinance No. 10,404, as amended by Ordinance Nos. 11,971, 12,054, 12,070 and 13,565 (regarding the Capitol-Center Development Area II Urban Renewal Project) and also amended Ordinance No. 11,419, as amended by Ordinance Nos. 11,972, 12,054, 12,070 and 13,565 (regarding the Riverpoint Urban Renewal Project) to consolidate and expand the area subject to the division of revenue from taxes to be in accordance with the Urban Renewal Plan for the Metro Center Urban Renewal Project; and

WHEREAS, by the 10th Amendment to the Urban Renewal Plan for the Metro Center Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to add an additional area (hereinafter referred to as the "River Hills 2011 Area"); and

WHEREAS, by Ordinance No. 15,012 the City Council amended Ordinance No. 8666, as amended by Ordinance Nos. 8667, 9282 and 13,810 (regarding the Capitol-Center Development Area Urban Renewal Project), and amended Ordinance No. 10,404, as amended by Ordinance Nos. 11,971, 12,054, 12,070, 13,565 and 13,810 (regarding the Capitol-Center Development Area II Urban Renewal Project) and also amended Ordinance No. 11,419, as amended by Ordinance Nos. 11,972, 12,054, 12,070, 13,565 and 13,810 (regarding the Riverpoint Urban Renewal Project) to expand the area subject to the division of revenue

from taxes to be in accordance with the Urban Renewal Plan for the expanded Metro Center Urban Renewal Project; and

WHEREAS, by the 17th and 18th Amendments to the Urban Renewal Plan for the Metro Center Urban Renewal Project, the boundaries between several subareas within the Metro Center Urban Renewal Area were adjusted to allow two buildings that straddled a boundary between subareas, to be treated as being located entirely within one of the subareas for the administrative convenience of the Polk County Assessor and Auditor, with no change intended to be made to the base valuation dates and amounts for the affected subareas; and,

WHEREAS, Ordinances No. 15,427 and 15,458 were enacted to implement the changes to the interior boundaries of the subareas made by the 17th and 18th Amendments to the Urban Renewal Plan for the Metro Center Urban Renewal Project with no change intended to be made to the base valuation dates and amounts for the affected subareas.

WHEREAS, by the 19th Amendment to the Urban Renewal Plan for the Metro Center Urban Renewal Project, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted.

WHEREAS, the following enactment is necessary to accomplish the objectives described above and in the Urban Renewal Plan for the Metro Center Urban Renewal Project; NOW, THEREFORE,

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA AS FOLLOWS:

Section 1. The City Council hereby makes the following findings regarding the purpose and intent of this ordinance:

a) The adjustments purported to be made for administrative convenience to the interior boundaries of the subareas within the Metro Center Urban Renewal Area by the 17th and 18th Amendments to the Urban Renewal Plan for the Metro Center Urban Renewal Project and by Ordinances No. 15,427 and 15,458, were meant to retain the base valuations while allowing Polk County, Iowa, to send one tax statement for the parcels split by an interior boundary line. The purpose of this ordinance is to rescind that action with the intent to have the split parcels treated in accordance with paragraphs d and e, below.

b) A further purpose of this ordinance is to amend the exterior boundaries of the Metro Center Urban Renewal Area to delete those tax parcels that previously extended outside the boundaries of the Metro Center Urban Renewal Project Area. The base value and incremental values added by those parcels are intended to be deleted from the base valuation and incremental valuation used in the calculation of the funds available for allocation into the special fund for the Metro Center Urban Renewal Area pursuant to Iowa Code (2015) § 403.19.

c) A further purpose of this ordinance is to correct past scrivener's errors in the description of certain subarea boundaries to conform the descriptions to the applicable maps describing said subareas, and to the actual interpretation and application of said subareas as implemented by the City and Polk County, Iowa.

d) The intent of this ordinance is that parcels existing in two or more subareas will remain in separate tax parcels for each subarea and that separate tax statements will be issued for the portion in each subarea.

e) Nothing in this ordinance is intended to change the base valuation for any subarea or the urban renewal area as a whole, except for those parcels specifically removed from the urban renewal area as a whole as described in paragraph b, above.

f) This Ordinance is to be applied and construed in accordance with this Section

Section 2. The amendments made by Ordinances Nos. 15,427 and 15,458 to Ordinance Nos. 8666, 8667, 9282, 10,404, 11,419, 11,971, 11,972, 12,054, 12,070, 13,565, 13,810, and 15,012 are hereby rescinded ab initio and shall be of no force or effect.

Section 3. Ordinance Nos. 8666, 8667, 9282, 10,404, 11,419, 11,971, 11,972, 12,054, 12,070, 13,565, 13,810, and 15,012 are hereby amended to read as follows:

WHEREAS, the Metro Center Urban Renewal Project Area consists of Capitol Center Development Area I combined with Capitol-Center Development Area II - Areas "A", "B", "C" and "D"; Capitol-Center III - Area "A"; Riverpoint - Areas "A", "B" and "C"; Sixth Avenue Area; River Hills 2011, and the intervening and adjoining street rights-of-way, all of which are now described as follows:

CAPITOL-CENTER DEVELOPMENT AREA I

The location within the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the northerly right-of-line of Grand Avenue and the westerly right-of-way line of Eighth Street, thence south along the westerly right-of-way line of Eighth Street to its intersection within the center line of the Des Moines Union Railroad; thence east along the center line of the Des Moines Union Railroad mainline to its intersection with the easterly right-of-way line of East Seventh Street to its intersection with the southerly right-of-way line of the alley south of Locust Street; thence east along the southerly right-of-way line of the alley south of Locust Street to its intersection with the westerly property line of the State Capitol grounds to its intersection with the southerly right-of-way line of Locust Street; thence west along the southerly right-of-way line of Locust Street to its intersection with the easterly right-of-way line of Pennsylvania Avenue; thence north along the easterly right-of-way line of Pennsylvania Avenue to its intersection with the southerly right-of-way line of Des Moines Street; thence southwesterly along said southerly right-of-way line to its intersection with the westerly right-of-way line of East First Street; thence north along the westerly right-of-way line of East First Street to its intersection with the southerly boundary of the River Hills Urban Renewal Project, thence west and south along the southerly boundary line of the River Hills Urban Renewal Project to its intersection of the northerly right-of-way line of Grand Avenue; thence west along the northerly right-of-way line of Grand Avenue to its intersection with the westerly right-of-way line of Eighth Street which is the point of beginning

The Capitol Center Development Area I may also be described as follows:

The location within the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the Northerly right-of-line of Grand Avenue and the Westerly right-of-way line of Eighth Street, thence Southerly along said Westerly right-of-way line of Eighth Street to the center line of the former Des Moines Union Railroad, now the Norfolk & Southern Railroad; thence Easterly along said center line to the Easterly right-of-way line of East Seventh Street; thence Northerly along said Easterly right-of-way line to the Southerly right-of-way line of the 10 foot wide East-West alley South East Locust Street; thence Easterly along said Southerly line to the Westerly property line of the State Capitol grounds, also being the Easterly line of the North-South alley in Block H, Griffith's Addition to East Fort Des Moines, an Official Plat; thence Northerly along said Easterly line to the Southerly right-of-way line of East Locust Street; thence Westerly along said Southerly right-of-way line to the Easterly right-of-way line of Pennsylvania Avenue; thence Northerly along said Easterly line to the Southerly right-of-way line of Des Moines

Street ; thence Westerly along said Southerly line to the Westerly right-of-way line of East First Street; thence Northerly along said Westerly line 190 feet; thence West along a line perpendicular to the East line of East First Street to the West property line of the Armory; thence South along said West property line to the South line of said Des Moines Street extended; thence West along said South line extended to the East bank of the Des Moines River; thence South along said East bank to the Northerly right-of-way line of East Grand Avenue, thence Westerly along said Northerly line to the Westerly right-of-way line of Eighth Street and the Point of Beginning.

CAPITOL-CENTER DEVELOPMENT
AREA II - AREA "A"

The location within the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the northerly right-of-way line of Grand Avenue and the easterly right-of-way line of Second Avenue, thence west along the northerly right-of-way line of Grand Avenue to its intersection with the westerly right-of-way line of Eighth Street, thence south along the westerly right-of-way line of Eighth Street to its intersection within the center line of the old Rock Island Railroad mainline, thence west along the center line of the old Rock Island Railroad mainline to its intersection with the easterly right-of-way line of Eleventh Street, thence north along the easterly right-of-way line of Eleventh Street to the point of intersection with the northerly right-of-way line of High Street, thence east from said point along the northerly right-of-way line of High Street to the intersection with the westerly right-of-way line of Tenth Street, thence north along the westerly right-of-way line of Tenth Street to the intersection of the southerly right-of-way line of Woodland Avenue, thence east along the projection of the southerly right-of-way line of Woodland Avenue to the point of intersection with the easterly right-of-way line of Tenth Street, thence north from said point along the easterly right-of-way line of Tenth Street to the intersection of the southerly right-of-way line of Pleasant Street, thence east along the southerly right-of-way line of Pleasant Street to the point of intersection with the projection of the west line of Lot 12, Methodist Plat No. 1, thence northerly along said projected west line of said Lot 12 to the northerly right-of-way line of Pleasant Street, thence east along the northerly right-of-way line of Pleasant Street to the intersection of the westerly right-of-way line of Ninth Street, thence north along the westerly right-of-way line of Ninth Street to its intersection with a point twenty (20) feet south of the north line of said Lot 12 of Methodist Plat No. 1, thence east along a projection of a line twenty (20) feet south of and parallel to the north line of said Lot 12 to the point of intersection of the easterly right-of-way line of Ninth Street, thence north along the easterly right-of-way line of Ninth Street to the intersection of the northerly right-of-way line of Keosauqua Way, thence northerly and westerly along said northerly right-of-way line of Keosauqua Way to the intersection with the southerly right-of-way line of Crocker Street, thence east along the southerly right-of-way line of Crocker Street to the intersection of the easterly right-of-way line of Ninth Street, thence north along the easterly right-of-way line of Ninth Street to the intersection of the northerly right-of-way line of School Street, thence east along the northerly right-of-way line of School Street to the intersection of the easterly right-of-way line of Sixth Avenue, thence south along the easterly right-of-way line of Sixth Avenue to the intersection with the northerly right-of-way line of Crocker Street, thence east along the northerly right-of-way line of Crocker Street to the intersection of the westerly

right-of-way line of Fifth Avenue, thence north along the westerly right-of-way line of Fifth Avenue to the point of intersection of the westerly projection of the north line of Lot 1, Block F, River Hills Plat 1, thence east along the projected north line of said Lot 1 to the intersection of the easterly right-of-way line of Third Street, thence south along the easterly right-of-way line of Third Street to the intersection of the northerly right-of-way line of Keosauqua Way, thence east along the northerly right-of-way line of Keosauqua Way to the point of intersection with the easterly right-of-way line of Second Avenue, thence south from said point along the easterly right-of-way line of Second Avenue to the point of beginning.

CAPITOL-CENTER DEVELOPMENT
AREA II - AREA "B"

The location within the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the North Right-of-Way Line of School Street and the East Right-of-Way Line of 9th Street; thence southerly along the northerly extension of and the East Right-of-Way Line of 9th Street and the southerly extension of said Right-of-Way Line to the South Right-of-Way Line of Crocker Street; thence westerly along the westerly extension and the South Right-of-Way Line of Crocker Street to the East Right-of-Way Line of Keosauqua Way; thence northwesterly along said East Right-of-Way Line of Keosauqua Way to the East Right-of-Way Line of the Keosauqua/I-235 Intersection; thence North along said East Right-of-Way Line of the Keosauqua/I-235 Intersection; thence East along the south Right-of-Way Line of the Keosauqua/I-235 Intersection to the West Right-of-Way Line of 12th Place; thence North along said West Right-of-Way Line and the northerly extension of the West Right-of-Way Line of 12th Place to the North Right-of-Way Line of School Street; thence East along the North Right-of-Way Line of School Street to the point of beginning.

CAPITOL-CENTER DEVELOPMENT
AREA II - AREA "C"

The location within the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the westerly right-of-way line of 3rd Street and the South line of Lot G. River Hills Plat 1, an Official Plat; thence easterly along the southerly line of said Lot G to its intersection with the Right (west) bank of the Des Moines River; thence South along said Right bank to its intersection with the northerly right-of-way line of Grand Avenue extended easterly; thence westerly along the northerly right-of-way of Grand Avenue to its intersection with the East right-of-line of 2nd Avenue extended southerly; thence northerly along the East right-of-way line of 2nd Avenue to its intersection with the easterly extension of the North right-of-way line of Keosauqua Way; thence West along the easterly extension of the North right-of-way line of Keosauqua Way to the West right-of-way line of 3rd Street; thence North along the West right-of-way line of 3rd Street to the point of beginning.

CAPITOL-CENTER DEVELOPMENT
AREA II - AREA "D"

The location within the City of Des Moines, Polk County, Iowa described as follows:

Block E, Lot M (except the East 80 feet thereof) and that part of Lot G South of the North lot line of said Lot M extended West, River Hills Plat 1, an Official Plat.

CAPITOL-CENTER III - AREA "A"

The location within the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the northerly right-of-way line of Keosauqua Way with the East right-of-way line of 9th Street, extended North; thence South

along the East right-of-way line of 9th Street and its northerly extension to the South right-of-way line of Chestnut Street extended East; thence West along the extended South right-of-way line of Chestnut Street to the West right-of-way line of 9th Street; thence South along the West right-of-way line of 9th Street to the North right-of-way line of Pleasant Street; thence West along the North right-of-way line of Pleasant Street to the West lot line of Lot 12, Methodist Plat No. 1, an Official Plat; thence South along the extended West lot line of said Lot 12 to the South right-of-way line of Pleasant Street; thence westerly along said South right-of-way line to the East right-of-way line of 10th Street; thence South along said East right-of-way line of 10th Street to the South right-of-way line of Woodland Avenue extended East; thence West along the easterly extension of the South right-of-way line of Woodland Avenue to the West right-of-way line of 10th Street; thence South along the West right-of-way line of 10th Street to the North right-of-way line of High Street; thence West along the North right-of-way line of High Street to the East right-of-way line of 11th Street extended North; thence South along the East right-of-way line of 11th Street and its northerly extension to the South right-of-way line of Cherry Street; thence West along the South right-of-way line of Cherry Street and its easterly extension to the East right-of-way line of 13th Street extended South; thence North along the East right-of-way line of 13th Street and its southerly extension to the North right-of-way line of Falcon Drive extended East; thence West along the North right-of-way line of Falcon Drive and its easterly extension to the East right-of-way line of 16th Street; thence North along the East right-of-way line of 16th Street to the North right-of-way line of Ingersoll Avenue; thence West along the North right-of-way line of Ingersoll Avenue and its westerly extension to the center line of Martin Luther King Jr. Parkway (formerly Harding Road); thence North along the center line of Martin Luther King Jr. Parkway to the North right-of-way line of Woodland Avenue extended West; thence East along the North right-of-way line of Woodland Avenue and its westerly and easterly extensions to the center line of 16th Street; thence North along the center line of 16th Street to the North lot line of Lots 18 and 7 Sherman Place, an Official Plat extended West; thence East along the North lot line of said Lots 18 and 7 and their westerly extension to the West right-of-way line of 15th Street; thence North along the West right-of-way line of 15th Street to the North right-of-way line of Center Street; thence easterly along said North right-of-way line and its westerly extension, said line also being the South lot line of Lots 1 and 2, Oakridge Plat No. 1, an Official Plat, and Lots 2, 3 and 6, Oakridge Plat No. 3, an Official Plat to the southeasterly corner of said Lot 6; thence North along the East lot line of said Lot 6 and the East lot line of Lot 5, in said Oakridge Plat No. 3 to the northeasterly corner of said Lot 5; thence northwesterly along the northerly line of said Oakridge Plat Nos. 1 and 3 to the northeasterly corner of Lot 6, in said Oakridge Plat No. 1, said point also being on the South right-of-way line of Interstate 235; thence in a straight line easterly to the Northwest corner of Lot K, Grass Roots 1 an Official Plat 1; thence South along the West line of Lots K and N, Grass Roots I to the North lot line of Lot 7, Block 7, Grass Roots I; thence West along the North lot line of said Lot 7 to the Northwest corner of said Lot 7; thence South along the West lot line of said Lot 7 to the northerly right-of-way line of Keosauqua Way; thence southeasterly along the northerly right-of-way line of Keosauqua Way to the point of beginning.

RIVERPOINT AREA "A"

The location within the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the intersection of the southerly right-of-way line of East Court Avenue and the easterly right-of-way line of East 7th Street; thence East along the southerly right-of-way line of East Court Avenue to a point that is 175.86 feet West of the Northeast corner of Lot 2 of Block 12, Town of De Moines, an Official Plat, said point being the most Westerly corner of Parcel A, recorded in Book 12529 page 705 at the Recorder's office of Polk County, Iowa; thence Southeasterly along a straight line to a point that is 47.0 feet South of the South right-of-way line of said East Court Avenue and lying on the East right-of-way line of East 8th Street; thence southeasterly along a straight line to the Northwest corner of Lot 1, Block 22, Official Plat of Lots 3 through 8, Town of Des Moines, an Official Plat; thence southeasterly along a straight line to a point on the East right-of-way line of vacated East 11th Street, said point being 67.35 feet South of the Northwest corner of Lot 3, Block 23, Official Plat of Lots 3 through 8, Town of Des Moines, an Official Plat; thence easterly along a straight line to a point on the West lot line and 3.0 feet North of the southwest corner of Lot 8, of said Block 23; thence southerly to the southwest corner of said Lot 8; thence easterly to the Southeast corner of said Lot 8; thence southeasterly along a straight line to the Northwest corner of Lot 9, of the Official Plat of Lot 1, of the Official Plat of the East 1/2 of the Southeast 1/4 of Section 3, Township 78 North, Range 24 West of the 5th P.M., and the South 236.0 feet of the West 1/4 of Lot 31, Brooks and Company's Addition, an Official Plat; thence southerly to the Southwest corner of said Lot 9; thence easterly along the South lot lines of Lots 9, 10, 30, 31 and 55 of said Official Plat of said Lot 1 to its intersection with the East line of the Southeast 1/4 of said Section 3; thence southerly along said East line of said Section 3 and along the East line of the Northeast 1/4 of Section 10, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the northeasterly projection of the South right-of-way line of Scott Street; thence southwesterly along said projected South right-of-way line of Scott Street and along the South right-of-way line of Scott Street to its intersection with the East bank of the Des Moines River; thence northwesterly along the East bank of the Des Moines River to the point of its intersection with the southerly side of the Scott Street Bridge; thence southwesterly along the southerly side of the Scott Street Bridge to a point of its intersection with the West bank of the Des Moines River; thence southeasterly along said West bank of the Des Moines River to the point of its intersection with the northeasterly projection of the southeasterly right-of-way line of Southeast 1st Street; thence southwesterly along said projected southeasterly right-of-way line of Southeast 1st Street and along the southeasterly right-of-way line of Southeast 1st Street to a point of its intersection with the center line of the Chicago and Great Western Railroad right-of-way; thence southwesterly along said center line of the Chicago and Great Western Railroad right-of-way to a point of its intersection with the easterly right-of-way line of Southwest 1st Street; thence southwesterly along the easterly right-of-way line of Southwest 1st Street to its intersection with the southerly right-of-way line of Indianola Avenue; thence northwesterly and westerly along the South right-of-way line of Indianola Avenue and along the southerly right-of-way line of Clifton Avenue, to its intersection with the southerly projection of the westerly right-of-way line of Southwest 7th Street; thence northwesterly along said southerly projected westerly right-of-way line of Southwest 7th Street and

the westerly right-of-way line of Southwest 7th Street to its intersection with the southerly bank of the Raccoon River; thence southwesterly and westerly along said South bank of the Raccoon River to its intersection with the South line of Government Lot 11, West of the Raccoon River of Section 8, Township 78 North, Range 24 West of the 5th P.M. an Official Plat; thence westerly along South line of said Government Lot 11 and the westerly projection of the South line of said Government Lot 11 to a point 33 feet West of the center line of said Section 8; thence northerly and 33.0 feet West of and parallel with the center line of said Section 8 to its intersection with the South line of Lot 1, of the Official Plat of the Northwest 1/4 of said Section 8; thence southwesterly along said South line to a point that is 75.0 feet West of the East line of said Lot 1; thence Northerly along a line that is 75.0 feet West of and parallel with the East line of said Lot 1, to a point that is 225.0 feet South of the North line of said Lot 1; thence Westerly 18.0 feet along a line that is 225.0 feet South of the North line of said Lot 1; thence Northerly 225.0 feet along a line that is parallel to the East line of said Lot 1, to a point on the North line that is 93.0 feet West of the Northeast corner of said Lot 1; thence northwesterly to the North right-of-way line of Grand Avenue which is 40.0 feet North of and 100.0 feet West of the Southeast corner of Lot 9, of the Official Plat of the Southwest 1/4 of Section 5, Township 78 North, Range 24 West of the 5th P.M., an Official Plat; thence northerly along a line 100.0 feet West of and parallel with the East line of said Lot 9 and along the northerly projection of said line to the North right-of-way line of Ingersoll Avenue; thence easterly along the North right-of-way line of Ingersoll Avenue and the easterly projected North right-of-way line of Ingersoll Avenue and its projections to its intersection with the northwesterly projection of the easterly right-of-way line of 16th Street; thence southeasterly along said northwesterly projected easterly right-of-way line of 16th Street and the easterly right-of-way line of 16th Street to its intersection with the North right-of-way line of Falcon Drive thence easterly along the North right-of-way line of Falcon Drive and its easterly projections to its intersection with the northwesterly projection of the East right-of-way line of 13th Street; thence southeasterly along said northwesterly projected East right-of-way line of 13th Street and the East right-of-way of 13th Street to its intersection with the South right-of-way line of Cherry Street; thence easterly along the South right-of-way line of Cherry Street and its projected South right-of-way line to its intersection with the East right-of-way line of 11th Street; thence southeasterly along the East right-of-way line of 11th Street to its intersection with the center line of the Iowa Interstate Railroad Mainline (formerly known as Rock Island Railroad); thence easterly along the center line of the Iowa Interstate Railroad Mainline (formerly known as Rock Island Railroad) to its intersection with the southerly projection of the westerly right-of-way line of 8th Street; thence northerly along the southerly projection of the westerly right-of-way line of 8th Street to the westerly right-of-way line of 8th Street to its intersection within the center line of the Des Moines Union Railroad Mainline; thence easterly along the center line of the Des Moines Union Railroad Mainline to its intersection with the easterly right-of-way line of East 7th Street; thence northerly along the easterly right-of-way line of East 7th Street to its intersection with the southerly right-of-way line of East Court Avenue, to the point of beginning.

RIVERPOINT AREA "B"

The location within the City of Des Moines, Polk County, Iowa, described as follows:

Bounded on the North by the South Right-of-Way Line of East Scott Street,

bounded on the East by the Center Line of Southeast 14th Street, bounded on the South and West by the Right (south) Bank of the Des Moines River.

RIVERPOINT AREA "C"

The location within the City of Des Moines, Polk County, Iowa, described as follows:

Beginning at the intersection of the southerly right-of-way line of the Chicago Great Western Railroad with the easterly right-of-way line of Southeast 1st Street; thence southerly along the easterly right-of-way line of Southeast 1st Street to the southerly right-of-way line of East Edison Street; thence easterly along the southerly right-of-way line of East Edison Street to the westerly right-of-way line of Southeast 2nd Street; thence southerly along the westerly right-of-way line of Southeast 2nd Street to the westerly extension of the southerly right-of-way line of the East/West alley lying South of and adjoining Lots 1 through 6, inclusive, Block 6, Clifton Heights, an Official Plat; thence easterly along the westerly extension of the southerly right-of-way line of said East/West alley to the westerly right-of-way line of Southeast 2nd Court; thence southerly along the westerly right-of-way line of Southeast 2nd Court and the westerly line of Lot 2, Millsap Subdivision, an Official Plat, to the North line of Lot 6, Official Plat of the West 1/2 of Section 10, Township 78 North, Range 24 West of the 5th P.M.; thence West along the North line of said Lot 6 extended westerly to the westerly right-of-way line of East Indianola Avenue; thence northwesterly along the westerly right-of-way line of Indianola Avenue to its intersection with the southerly right-of-way line of Indianola Road; thence westerly along said southerly right-of-way line of Indianola Road to the southerly extension of the westerly right-of-way line of Southwest 1st Street; thence northerly along the westerly right-of-way line of Southwest 1st Street to the southerly right-of-way line of the Chicago Great Western Railroad; thence northeasterly along the southerly right-of-way line of the Chicago Great Western Railroad to the point of beginning.

SIXTH AVENUE

The location within the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the Northeast corner of Lot 1, Block 10, Polk County Homestead and Trust Co.'s Addition, an Official Plat, of the Southwest 1/4 of the Northeast 1/4 of Section 34, Township 79 North, Range 24 West of the 5th P.M., also being on the South right-of-way line of Franklin Avenue and the West right-of-way line of Seventh Street; thence East along the South right-of-way line of Franklin Avenue and its easterly extension to the East right-of-way line of Oakland Avenue, being the Northwest corner of Lot 36, Oakland Park, an Official Plat; thence South along the East right-of-way line and its southerly extension to the South right-of-way line of College Avenue and being 5.0 feet West of the Northwest corner of Lot 63, Bates Addition, an Official Plat; thence West along the South right-of-way line and its westerly extension to the East right-of-way line of Fifth Avenue, being the Northwest corner of Lot 25 of said Bates Addition; thence South along the East right-of-way line of Fifth Avenue and its southerly extension to the South right-of-way line of University Avenue; thence northwesterly along the South right-of-way line of University Avenue to the East right-of-way line of Sixth Avenue; thence South along the East right-of-way line of Sixth Avenue and its southerly extension to the North right-of-way line of School Street; thence West along the easterly extension of the North right-of-way line and the North right-of-line of School Street to the West right-of-way line of seventh Street; thence North along the West right-of-way line of Seventh South right-of-way line of University

Avenue; thence West along said South right-of-way line of University Avenue and it westerly extension to the West right-of-way line of 9th Street; thence North along the West right-of-way line of 9th Street and its northerly extension to the intersection of the westerly extension of the North right-of-way line of Indiana Avenue; thence East along the westerly extension of the North right-of-way line of Indiana Avenue to the Southwest corner of Lot 10 of said North Park; thence continuing East along the North right-of-way line of Indiana Avenue and it easterly extension to the East right-of-way line 8th Street being the Southwest corner of Lot 56 of said North Park; thence North along the East right-of-way line of 8th Street and its northerly extension to the North line of Forest Avenue, being the Southeast corner of Lot 1, Butt's Subdivision, an Official Plat; thence East along the North right-of-way line of Forest Avenue and its easterly extension to the West right-of-way line of Seventh Street, being the Southeast corner of Lot 46 of the Official Plat of Government Lot 3 of Section 34, Township 79 North Range 24 West of the 5th P.M.; thence North along the West right-of-way line of Seventh Street to the Northeast corner of Lot 13, E. M. Kelsey's Subdivision, an Official Plat,; thence northwesterly to the Northwest corner of Seventh Street and Clark Street, being on the North right-of-way line of Clark Street and the West right-of-way line of Seventh Street; thence North along the West right-of-way line of Seventh Street and its northerly extension to the South right-of-way line of Franklin Avenue and the point of beginning.

RIVER HILLS 2011

The location within the City of Des Moines, Polk County, Iowa described as follows:

Beginning at the northeast corner of the south half of Lot 11 of Block 21 of Central Place, an Official Plat, being on the north right-of-way line of University Avenue; thence east along a line parallel with the south line of the Southwest Quarter of Section 35, Township 79 North, Range 24 West of the 5th Principal Meridian (P.M.) to its intersection with the northerly extension of the east right-of-way line of East 6th Street; thence southerly along the east right-of-way line of East 6th Street and its northerly extension to its intersection with the south right-of-way line of vacated Filmore Street; thence west along the south right-of-way line of vacated Filmore Street to the northwest corner of Lot 5 of River Hills Plat Four, an Official Plat, said northwest corner also being on the easterly line of Lot 6 of River Hills Plat Four; thence southerly along the easterly line of said Lot 6 to the northerly right-of-way line of Interstate Highway 235, as presently established; thence southerly to the northwest corner of Lot 1 of Block D of River Hills Plat Three, an Official Plat, also being on the southerly right-of-way line of Interstate Highway 235; thence southeasterly along the northeasterly and easterly line of said Lot 1 and its continuation as the westerly right-of way line of East 6th Street to its intersection with the southerly right-of-way line of Des Moines Street; thence westerly along the southerly right-of-way line of Des Moines Street, also being the north boundary of the Capitol-Center Urban Renewal Sub-Area of the Metro Center Urban Renewal Area, to its intersection with the westerly right-of-way line of East 1st Street, now known of Robert D. Ray Drive; thence north along the westerly right-of-way line of Robert D. Ray Drive to its intersection with the southerly right-of-way line of Interstate Highway 235; thence west along said southerly right-of-way line to the east bank of the Des Moines River; thence south along the said east bank of the Des Moines River to its intersection with the northerly right-of-way line of Grand Avenue; thence west along the northerly right-of-way line of Grand Avenue to its

intersection with the west bank of the Des Moines River; thence north along the west bank of the Des Moines River to its intersection with the southerly line of Lot G of River Hills Plat One, an Official Plat, also being on the southerly right-of-way line of Interstate Highway 235; thence westerly along the southerly line of said Lot G (Interstate Highway 235) to the northeast corner of Lot O (2nd Avenue) of said River Hills Plat One; thence northeasterly to the southeast corner of Lot 3 of River Hills Plat Five, an official plat, also being on the northerly right-of-way line of Interstate Highway 235; thence northeasterly along the easterly line of said Lot 3 to the southeast corner of Lot A (Illinois Street) of said River Hills Plat Five; thence northwesterly and northeasterly along the westerly line of said Lot A to the northwest corner of said Lot A, being on the south right-of-way line of University Avenue as presently established; thence east along the north line of said Lot A to its intersection with the southerly extension of the east line of Block 21 of said Central Place; thence north along the east line of said Block 21 and its southerly extension to the point of beginning.

STREETS AND PUBLIC WAYS

The full right-of-way of streets and public ways within or along the above sub-area descriptions shall be included within the Urban Renewal Project Area.

WHEREAS, the continuing needs of redevelopment of the consolidated Metro Center Urban Renewal Project are such as to require application of the incremental tax resources of the consolidated urban renewal project; and

WHEREAS, indebtedness has been incurred by the City of Des Moines, Iowa, and additional indebtedness is anticipated to be incurred in the future to finance said Urban Renewal Project; and

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the continuation of the division of revenue from taxation in the Metro Center Urban Renewal Project Area, as above described in accordance with the provisions of Section 403.19 of the 2015 Code of Iowa, as amended; NOW, THEREFORE,

BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA AS FOLLOWS:

Section 1. That the taxes levied on the taxable property in the Urban Renewal Project Area known as the Metro Center Urban Renewal Project Area, consisting of the sub-areas known as Capitol-Center Development Area I; Capitol-Center Development Area II - Areas "A", "B", "C", and "D"; Capitol-Center III - Area "A"; Riverpoint - Areas "A", "B", and "C"; Sixth Avenue Area; and River Hills 2011 Area, each of which is legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. For purposes of this Ordinance, "Base Period Taxes" are that portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in the Metro Center Urban Renewal Project Area upon the total sum of the "Base Valuations" of each of the sub-areas within the Metro Center Urban Renewal Project Area. The "Base Valuations" are the assessed values of the taxable property in each sub-area of said Urban Renewal Project Area as shown on the assessment rolls following:

With respect to the Capital-Center Development Area I, the assessment roll last equalized prior to the effective date of Ordinance No. 8666, being the assessment roll for January 1, 1972;

With respect to the Capital-Center Development Area II-Area "A", the assessment roll

last equalized prior to the effective date of Ordinance No. 10,404, being the assessment roll for January 1, 1982;

With respect to the Riverpoint-Area "A", the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 11,419, being the assessment roll for January 1, 1989;

With respect to the Capital-Center Development Area II-Area "B", the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 11,971, being the assessment roll for January 1, 1992;

With respect to the Riverpoint-Area "B", the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 11,972, , being the assessment roll for January 1, 1992;

With respect to the Capital-Center Development Area II-Areas "C" and "D" and the Riverpoint-Area "C", the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 12,054, being the assessment roll for January 1, 1992;

With respect to the Capitol-Center III - Area "A", the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 12,070, being the assessment roll for January 1, 1992;

With respect to the Sixth Avenue Area, the assessment roll as of January 1 of the calendar year preceding the effective date of Ordinance No. 13,565, being the assessment roll for January 1, 1997; and,

With respect to the River Hills 2011 Area, the assessment roll as of January 1 of the calendar preceding the effective date of this Ordinance, being the assessment roll for January 1, 2010.

The "Base Period Taxes" for each of the sub-areas within the Metro Center Urban Renewal Project Area shall be computed using the total assessed value of the taxable property within each such sub-area as shown on the assessment rolls applicable to each sub-area as described above. "Base Period Taxes" shall be allocated to and when collected be paid into the fund for the respective taxing district as taxes by and for said taxing district into which all other property taxes are paid.

Section 3. For purposes of this Ordinance, "Incremental Taxes" are that portion of the taxes each year in excess of the "Base Period Taxes" for the Metro Center Urban Renewal Project Area, determined as provided in Section 2 of this Ordinance. "Incremental Taxes" shall be allocated to and when collected be paid into a special fund of the City of Des Moines, Iowa, hereafter to be maintained to pay the principal of and interest on loans, monies advanced to, and indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under authority of Sections 403.9 and 403.12 of the 2015 Code of Iowa, as amended, incurred by the City of Des Moines, Iowa, to finance or refinance, in whole or in part, urban renewal project activities undertaken within the Metro Center Urban Renewal Project Area, except that to the extent authorized in Section 403.19(2), taxes for the regular and voter-approved physical plant and equipment levy of a school district imposed pursuant to Section 298.2, taxes for the instructional support program of a school district imposed pursuant to Section 247.17, taxes for the payment of bonds and interest of each taxing district levying taxes in the Metro Center Urban Renewal Project Area, and taxes imposed under section 364.27, subsection 22, related to joint county-city buildings shall be collected against all taxable property within the said Project Area without any limitations as hereinabove provided.

Section 4. At such time as the loans, monies advanced and bonds of the City of Des Moines and interest thereon, hereinabove referred to, have been paid, all monies thereafter received from taxes upon the taxable property in the Urban Renewal Project Area known as the Metro Center Urban Renewal Project Area shall be paid into the funds for the respective taxing districts in the same manner as "Base Period Taxes".

Section 5. All ordinances or parts of ordinances in conflict with the provisions of this Ordinance are hereby repealed. The provi-

sions of this Ordinance are intended and shall be construed so as to continue the division of taxes from property within each of the subareas of the Metro Center Urban Renewal Project Area as described above and to fully implement the provisions of Section 403.19 of the 2015 Code of Iowa, as amended, with respect thereto. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the 2015 Code of Iowa, as amended, with reference to the Metro Center Urban Renewal Project Area and the territory contained therein. In the event of any overlap between the boundaries of the Metro Center Urban Renewal Project Area and any other designated urban renewal area, such overlapping area is hereby severed from such other urban renewal area and shall be considered to be exclusively within the Metro Center Urban Renewal Project Area.

Section 6. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

Section 4. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

FORM APPROVED:

_____

Roger K. Brown
Assistant City Attorney

ORDINANCE NO. 15,568

AN ORDINANCE providing that general property taxes levied and collected each year on all property located within the Northeast Gateway 1 Urban Renewal Area in the City of Des Moines, County of Polk, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Saydel Community School District, Des Moines Area Community College, and other taxing districts, be paid to a special fund for payment of principal and interest on loans, monies advanced to and indebtedness, including bonds issued or to be issued, incurred by the City of Des Moines in connection with the Northeast Gateway 1 Urban Renewal Plan.

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved March 20, 2017, adopted an urban renewal plan titled "Northeast Gateway 1 Urban Renewal Plan" for the Northeast Gateway 1 Urban Renewal Area described as follows:

Beginning at the intersection of the centerline of East Aurora Avenue and a line that is 50.0 West of and parallel to said East line of said Section 23; Thence West along said centerline to the Southerly Extension of the West line of Lot 11, Pagliai Place, an Official Plat; Thence North to the Southwest corner of said Lot 11; Thence continuing North along the West line of Lot 11 and Lot 16 of said Pagliai Place to the Northwest corner of said Lot 16; Thence East along the North line of said Lot 16 to the Southwest corner of Lot 48, Iowa Garden Acres, an Official Plat; Thence North along the West line of said Lot 48 to the Northwest corner of said Lot 48; Thence continuing North along the Northerly Extension of the West line of said Lot 48, a distance of 15.0 feet to the centerline of Northeast 43rd Avenue Right-of-Way; Thence West along said centerline to the Southerly Extension of the West line of Lot 1 in said Iowa Garden Acres; Thence North along said Southerly Extension and along said West line to the Northwest corner of said Lot 1; Thence West along the South line of the North quarter (1/4) of the Southeast Quarter (1/4) of the Northeast Quarter (1/4) of said Section 23, to the West line of the Southeast Quarter (1/4) of the Northeast Quarter (1/4) of said Section 23; Thence North along the West line of the Southeast Quarter (1/4) of the Northeast Quarter (1/4) of said Section 23, to the North right-of-way line of Northeast 44th Avenue (Hoffman Road); Thence East along said North right-of-way line to the Southerly Extension of the East line of Lot 21, Stickler Heights, an Official Plat; Thence North along the East line of said Lot 21 to the Northeast corner of said Lot 21; Thence West along the North line of said Lot 21, to a point 788.1 feet

West of the East line of the Northeast Quarter (1/4) of the Northeast Quarter (1/4) of said Section 23; Thence North along a line that is 788.1 feet West of and Parallel with said East line of the Northeast Quarter (1/4) of the Northeast Quarter (1/4) of Section 23 to the South line of Vista Broadway Industrial Plat 1, an Official Plat; Thence West along said South line to the West line of said Vista Broadway Industrial Plat 1; Thence North along said West line to the South Right-of-Way line of Northeast 46th Avenue (East Broadway Avenue); Thence West along said South Right-of-Way line to a point that is 300 feet West of the East line of the Southwest Quarter (1/4) of the Southeast Quarter (1/4) of Section 14, Township 79 North, Range 24 West of the 5th P.M.; Thence North along a line that is 300 feet West of and parallel to the East line of the Southwest Quarter (1/4) of the Southeast Quarter (1/4) of said Section 14, to the North right-of-way line of Northeast 46th Avenue (East Broadway Avenue); Thence North 00° 03' 45" West, 192.0 feet; Thence South 89° 55' 30" West, 348.0 feet; Thence South 00° 03' 45" East, 225.0 feet to the centerline of Northeast 46th Avenue Right-of-Way (East Broadway Avenue); Thence South 89° 55' 30" West along said centerline, a distance of 18.02 feet to the West line of the East ½ of the Southwest Quarter (1/4) of the Southeast Quarter (1/4) of said Section 14; Thence North along said West line, a distance of 33 feet; Thence North 00° 01' 45" West along said West line, 1293.06 feet to the North line of the Southwest Quarter (1/4) of the Southeast Quarter (1/4) of said Section 14; Thence South 89° 56' 30" West along said North line, 665.22 feet to the Northwest corner of the Southwest Quarter (1/4) of the Southeast Quarter (1/4) of said Section 14; Thence North 00° 00' 00" East along the West line of the Southeast Quarter (1/4) of said Section 14, a distance of 479.65 feet to a point that is 183.0 feet South of the centerline of US Interstate 80/35 Right-of-Way, as it is presently established; Thence North 89° 55' 30" East, parallel with and 183.0 feet South of the South line of the North ½ of the Northwest Quarter (1/4) of the Southeast Quarter (1/4) of said Section 14, a distance of 1329.98 feet to the East line of the Northwest Quarter (1/4) of the Southeast Quarter (1/4) of said Section 14; Thence South 00° 03' 45" East, 68.47 feet along the East line of the Northwest Quarter (1/4) of the Southeast Quarter (1/4) of said Section 14; Thence South 85° 15' 30" East, 503.84 feet; Thence North 0° 07' 30" West, 535.38 feet to the present North Right-of-Way line of US Interstate 80/35; Thence continuing North 0° 07' 30" West, 91.25 feet; Thence North 89° 58' 00" East, 97.13 feet; Thence North 0° 07' 30" West, 165.00 feet; Thence North 89° 58' 00" East, 146.17 feet; Thence North 0° 07' 30" West, 165.00 feet to the centerline of Northeast 50th Avenue Right-of-Way (Goode Drive); Thence East along said centerline to the Southerly Extension of the West line of Lot 19, Goode Heights Plat One, an Official Plat; Thence North along the Southerly Extension of the West line of said Lot 19 to the Southwest corner of said Lot 19,; Thence North along the West line of said Lot 19 and the West line of Lot 17, of said Goode Heights Plat One, to the Northwest corner of said Lot 17, and the South Right-of-Way line of Lot D, Goode Heights Plat One, (also known as Wauneta Drive and Northeast 50th Place); Thence continuing North along the Northerly Extension of said Lot 17 to the North Right-of-Way line of said Lot D, (Wauneta Avenue and Northeast 50th Place) and the Southwest corner of Lot 2 of said Goode Heights Plat One; Thence North along the West line of said Lot 2 to the Northwest corner of said Lot 2; Thence East along the North line of said Lot 2 to the Northeast corner of said Lot 2, also being the Southwest corner of Lot 27, Goode Heights Plat No.2, an Official Plat; Thence North along the West line of said Lot 27 to the Northwest corner of said Lot 27 and the South Right-of-Way line of Lot A, (also known as Forrest Goode Road and Northeast 51st Avenue) of said Goode Heights Plat No.2; Thence North along the Northerly Extension of the West line of said Lot 27 to the North Right-of-Way line of Northeast 51st Avenue (Forrest Goode Road); Thence West along said North Right-of-Way line to the Southwest corner of Lot 14 of Pettit Place, an Official Plat; Thence North along the West

line of said Lot 14, a distance of 350.0 feet; Thence East along a line 350.0 feet North of and parallel with the South line of said Lot 14, a distance of 255.0 feet to the East line of said Lot 14; Thence South along the East line of said Lot 14, a distance of 350.0 feet to the South line of said Lot 14 to the North Right-of-Way line of said Northeast 51st Avenue (Forrest Goode Road); Thence continuing South along the Southerly Extension of the East line of said Lot 14 to the centerline of said Northeast 51st Avenue Right-of-Way (Forrest Goode Road); Thence West along the centerline of said Northeast 51st Avenue Right-of-Way (Forrest Goode Road), said centerline also being the North line of Lot A of said Goode Heights Plat No.2, to a point that is 150 feet West of the East line of said Lot A; Thence South along a line that is 150 feet West of and parallel to the East line of said Lot 27, to a line that is 120 feet South of and parallel to the North line of said Lot 27; Thence East along said parallel line to the East line of said Lot 27; Thence South along said East line to the North line of Lot 1 of said Goode Heights Plat One; Thence East along the North line of said Lot 1, a distance of 10.0 feet to the Northeast corner of said Lot 1; Thence South along the East line of said Lot 1, to the Southeast corner of said Lot 1, said corner also being the Northeast corner of Lot D (Wauneta Avenue and Northeast 50th Place) in said Goode Heights Plat One; Thence West along the North line of said Lot D, (Wauneta Avenue and Northeast 50th Place), a distance of 60 feet; Thence South along a line that 60 feet West of and parallel with the East line of said Lot D, for a distance of 25 feet; Thence West along a line that is 25 feet South of and parallel with the North line of said Lot D to the Northerly Extension of Lot 17 in said Goode Heights Plat One; Thence South along said Northerly Extension of the East line of said Lot 17 and along the East line of Lots 17 and 19 of said Goode Heights Plat One, 280.0 feet, to the North line of Lot A (also known as Northeast 50th Avenue and Goode Drive) of said Goode Heights Plat 1, to a point 228.0 feet West of the East line of said Lot A; Thence East along said North line of Lot A to a point that is 117.0 feet West of the East line of said Section 14; Thence South along a line that is 117.0 feet West of and parallel with the East line of said Section 14 to the South Right-of-Way line of Northeast 50th Avenue (Goode Drive), and being on the West Right-of-Way line of Northeast 14th Street (U.S. Highway 69); Thence South 03° 06' 50" West, 149.25 feet along said Right-of-Way line; Thence South 89° 58' 00" East along said Right-of-Way line, a distance of 60.0 feet; Thence South 0° 07' 30" East along said Right-of-Way line, a distance of 90.00 feet; Thence South 48° 31' 07" West, 113.27 feet to the North Right-of-Way line of United States Interstate 35-80; Thence South along a straight line to a point that is 116 feet West of the East line of the Southeast Quarter (1/4) of said Section 14 and 1322.77 feet North of the South line of the Southeast Quarter (1/4) of said Section 14; Thence South 00° 07' 30" East, parallel with and 116.0 feet West of the East line of the Southeast Quarter (1/4) of said Section 14, a distance of 1081.07 feet; Thence South 89° 55' 30" West, 125.7 feet; Thence South 00° 07' 30" East, 191.7 feet to a point 50.0 feet North of the South line of the Southeast Quarter (1/4) of said Section 14; Thence East along a line that is 50.0 feet North of and parallel with the South line of said Section 14, a distance of 125.7 feet; Thence South 102.0 feet to a point 52.0 feet South of the North line of Section 23, Township 79 North, Range 24 West of the 5th P.M. and 116.0 feet West of the East line of said Section 23; Thence East along the South Right-of-Way line of Northeast 46th Avenue (East Broadway Avenue) to the West Right-of-Way line of Northeast 14th Street (U.S. Highway 69), said Right-of-Way line being 50.0 feet West of the East line of said Section 23; Thence South along the West Right-of-Way line of said Northeast 14th Street (U.S. Highway 69), to the North line of Lot 1, Iowa Garden Acres, an Official Plat; Thence West along said North line of said Lot 1, to a point 200.0 feet East of the Northwest corner of said Lot 1; Thence South along a line that is 200.0 feet East of and parallel with the West line of said Lot 1, to the South line of said Lot 1; Thence continuing South along the Southerly Extension of said parallel line to the center-

line of Northeast 43rd Avenue, a distance of 15.0 feet; Thence West along said centerline to the Northerly Extension of the West line of Lot 49 of said Iowa Garden Acres; Thence South along said Northerly Extension and along said West Line to a Line that is 157.5 feet North of and parallel with the South Line of Lots 49 and 50 of said Iowa Garden Acres; Thence East along said line that is 157.5 feet North of and parallel with the South line of Lots 49 and 50 of said Iowa Garden Acres to the West line of Lot 51 of said Iowa Garden Acres; Thence North along the West line of said Lot 51, to the Northwest corner of said Lot 51; Thence continuing North along the Northerly Extension of said West line to the centerline of Northeast 43rd Avenue Right-of-Way, a distance of 15.0 feet; Thence East along the centerline of Northeast 43rd Avenue and parallel with the North line of Lots 51 and 52 of said Iowa Garden Acres, to the West Right-of-Way line of Northeast 14th Street (U.S. Highway 69); said point being 50.0 feet West of the East line of said Section 23; Thence South along a line that is 50.0 West of and parallel to said East line of said Section 23, to the centerline of East Aurora Avenue and the Point of Beginning, EXCEPTING all portions thereof lying outside the boundaries of the City of Des Moines, Iowa.

WHEREAS, expenditures and indebtedness are anticipated to be incurred by the City of Des Moines, Iowa, in the future to finance undertakings by the City of Des Moines to implement the Northeast Gateway 1 Urban Renewal Plan; and

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the Northeast Gateway 1 Urban Renewal Area as above described, in accordance with the provisions of Section 403.19 of the Code of Iowa, as previously amended.

NOW THEREFORE, BE IT ORDAINED, by the City Council of the City of Des Moines, Iowa, as follows:

Section 1. That the taxes levied on the taxable property in the urban renewal area known as the Northeast Gateway 1 Urban Renewal Area, legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Saydel Community School District, Des Moines Area Community College, and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. Except as otherwise provided in Iowa Code § 403.19, as previously amended, that portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said Urban Renewal Area upon the total sum of the assessed value of the taxable property in said Urban Renewal Area as shown on the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of property tax revenue, subject to any adjustment required by Iowa Code § 403.20, as previously amended, shall be allocated to and when collected be paid into the Fund for the respective taxing district as taxes by or for the taxing district into which all other property taxes are paid (the "base period taxes")

Section 3. Except as otherwise provided in Iowa Code § 403.19, as previously amended, that portion of the taxes each year in excess of the base period taxes determined as provided in Section 2 of this Ordinance shall be allocated to and when collected be paid into a special tax increment fund of the City of Des Moines hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of Chapters 384 and 403 of the Code of Iowa, as previously amended, incurred by the City of Des Moines to finance or refinance in whole or in part urban renewal projects undertaken pursuant to the Northeast Gateway 1 Urban Renewal Plan, except that to the extent authorized in Section 403.19(2), taxes for the regular and voter-approved physical plant and equipment levy of a school district imposed pursuant to Section 298.2, taxes for the instructional support program of a school district imposed pursuant to Section 247.17,

taxes for the payment of bonds and interest of each taxing district levying taxes in the Metro Center Urban Renewal Project Area, and taxes imposed under Section 364.27, subsection 22, related to joint county-city buildings shall be collected against all taxable property within the said Project Area without limitation by the provisions of this section.

Section 4. Except as otherwise provided in Iowa Code § 403.19, as previously amended, all taxes levied and collected upon the taxable property in said Northeast Gateway 1 Urban Renewal Area shall be paid into the funds of the taxing districts as taxes by or for said taxing districts in the same manner as all other property taxes unless or until the total assessed valuation of the taxable property in said Urban Renewal Area shall exceed the total assessed value of the taxable property in said Urban Renewal Area as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to this Ordinance, subject to any adjustment required by Iowa Code § 403.20, as previously amended.

Section 5. At such time as the principal of, and interest on, all loans, advances, bonds or other indebtedness and interest thereon of the City of Des Moines hereinabove in Section 3 referred to have been paid, all monies thereafter received from taxes upon the taxable property in said Northeast Gateway 1 Urban Renewal Area shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property, unless and until additional loans, advances, bonds, or other indebtedness, if any, are incurred and certified by the City of Des Moines.

Section 6. The provisions of this Ordinance are intended and shall be construed so as to fully implement the provisions of Iowa Code § 403.19, as previously amended, with respect to the division of taxes from property within the Urban Renewal Area as described above. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the Code of Iowa with reference to said Urban Renewal Area and the territory therein.

Section 7. Ordinance No. 15,419, passed on November 9, 2015, for the propose of providing for the division of tax revenues within the Northeast Gateway Revitalization Urban Renewal Project is hereby repealed in its entirety. All other ordinances or parts of ordinances in conflict with the provisions of this Ordinance are hereby repealed.

Section 8. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

FORM APPROVED:

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Roger K. Brown
Assistant City Attorney

Passed March 20, 2017

ORDINANCE NO. 15,569

AN ORDINANCE providing that general property taxes levied and collected each year on all property located within the Northeast Gateway 2 Urban Renewal Area in the City of Des Moines, County of Polk, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, Des Moines Area Community College, and other taxing districts, be paid to a special fund for payment of principal and interest on loans, monies advanced to and indebtedness, including bonds issued or to be issued, incurred by the City of Des Moines in connection with the Northeast Gateway 2 Urban Renewal Plan.

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved March 20, 2017, adopted an urban renewal plan titled "Northeast Gateway 2 Urban Renewal Plan" for the Northeast Gateway 2 Urban Renewal Area described as follows:

Beginning at the intersection of the centerline of Hull Avenue and the centerline of Dixon

Street; Thence West along the centerline of Hull Avenue to the centerline of York Street; Thence North along the centerline of York Street to the Easterly extension of the South line of Lot 59, Mann's 2nd Addition to Highland Park, an Official Plat; Thence West along said Easterly Extension and the South line of said Lot 59 to the Southwest corner of said Lot 59; Thence continuing West along the South line of Lots 52 through 58 of said Mann's 2nd Addition to Highland Park to the Southwest corner of said Lot 52; Thence South along the Southerly extension of West line of said Lot 52 to the centerline of Oak Park Avenue; Thence West along the centerline of Oak Park Avenue to the centerline of East 12th Street; Thence North along the centerline of East 12th Street to the Easterly Extension of the South line of Lot 7, Timmins Subdivision, an Official Plat; Thence West along said Easterly Extension and the South line of said Lot 7 to the Southeast corner of Lot 9, Rocky Place, an Official Plat; Thence continuing West along the South line of said Lot 9 to the Southwest corner of said Lot 9; Thence North along the West line of said Lot 9 to the Easterly Extension of the South line of Lot 140, Campus Park, an Official Plat; Thence West along said Easterly Extension and South line of said Lot 140 to the Southwest corner of said Lot 140; Thence continuing West along a straight line to the Southeast corner of Lot 111 of said Campus Park; Thence West along the South line of said Lot 111 to the Southwest corner of said Lot 111; Thence North along the West line of Lots 111, 112, 113 of said Campus Park, and the Northerly extension of the West line of said Lot 113 to the centerline of East Euclid Avenue; Thence West along the centerline of East Euclid Avenue to the centerline of East 8th Street; Thence North along the centerline of East 8th Street to the centerline of East Douglas Avenue; Thence East along the centerline of East Douglas Avenue to the centerline of East 9th Street; Thence North along the centerline of East 9th Street to the centerline of Hoffman Avenue; Thence West along the centerline of Hoffman Avenue to the centerline of East 8th Street; Thence North along the centerline of East 8th Street to the centerline of East Madison Avenue; Thence East along the centerline of East Madison Avenue to the Southerly Extension of the East Line of Lot 44, Shawnee Acres, an Official Plat; Thence North along said Southerly Extension and the East line of said Lot 44 to a line that is 421.75 feet North of and parallel with the South line of said Lot 44; Thence West along said parallel line to West line of said Lot 44; Thence North along said West line and its Northerly Extension to the centerline of East Shawnee Avenue; Thence East along the centerline of East Shawnee Avenue to the Southerly Extension of the East line of the West 65 feet of Lots 32 and 33 of said Shawnee Acres; Thence North along said Southerly Extension and said East line of the West 65 feet of Lots 32 and 33 to the North line of said Lot 32; Thence West along said North line to the East line of Lot 23 of said Shawnee Acres; Thence North along said East line to a line that is 130.85 feet North of and parallel to the South line of Lots 21, 22 and 23 of said Shawnee Acres; Thence West along said parallel line to a line that is 8 feet West of and parallel to the East line of said Lot 21; Thence South along said parallel line to the South line of said Lot 21; Thence West along said South line and continuing along the South line of Lots 19 and 20 of said Shawnee Acres to a line that is 65 feet East of and parallel to the West line of said Lot 19; Thence North along said parallel line to a line that is 125.42 feet North of and parallel to the South line of said Lot 19; Thence West along said parallel line to line that is 1 foot East of and parallel with the West Line of said Lot 19; Thence North along said line that is 1 foot East of and parallel with the West Line of said Lot 19 to a line that is 250.42 feet North of and parallel with the South Line of said Lot 19; Thence West along said line that is 250.42 feet North of and parallel with the South Line of said Lot 19 to the West line of said Lot 19; Thence North along said West line and its Northerly Extension to the centerline of East Aurora Avenue Right-of-Way; Thence East along the centerline of East Aurora Avenue to the West Right-of-Way line US Interstate 235; Thence South along said West Right-of-Way line to the cen-

terline of Hull Avenue; Thence West along said centerline of Hull Avenue to the Point of Beginning.

WHEREAS, expenditures and indebtedness are anticipated to be incurred by the City of Des Moines, Iowa, in the future to finance undertakings by the City of Des Moines to implement the Northeast Gateway 2 Urban Renewal Plan; and

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the Northeast Gateway 2 Urban Renewal Area as above described, in accordance with the provisions of Section 403.19 of the Code of Iowa, as previously amended.

NOW THEREFORE, BE IT ORDAINED, by the City Council of the City of Des Moines, Iowa, as follows:

Section 1. That the taxes levied on the taxable property in the urban renewal area known as the Northeast Gateway 2 Urban Renewal Area, legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District, Des Moines Area Community College, and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. Except as otherwise provided in Iowa Code § 403.19, as previously amended, that portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said Urban Renewal Area upon the total sum of the assessed value of the taxable property in said Urban Renewal Area as shown on the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of property tax revenue, subject to any adjustment required by Iowa Code § 403.20, as previously amended, shall be allocated to and when collected be paid into the Fund for the respective taxing district as taxes by or for the taxing district into which all other property taxes are paid (the "base period taxes")

Section 3. Except as otherwise provided in Iowa Code § 403.19, as previously amended, that portion of the taxes each year in excess of the base period taxes determined as provided in Section 2 of this Ordinance shall be allocated to and when collected be paid into a special tax increment fund of the City of Des Moines hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of Chapters 384 and 403 of the Code of Iowa, as previously amended, incurred by the City of Des Moines to finance or refinance in whole or in part urban renewal projects undertaken pursuant to the Northeast Gateway 2 Urban Renewal Plan, except that to the extent authorized in Section 403.19(2), taxes for the regular and voter-approved physical plant and equipment levy of a school district imposed pursuant to Section 298.2, taxes for the instructional support program of a school district imposed pursuant to Section 247.17, taxes for the payment of bonds and interest of each taxing district levying taxes in the Metro Center Urban Renewal Project Area, and taxes imposed under Section 364.27, subsection 22, related to joint county-city buildings shall be collected against all taxable property within the said Project Area without limitation by the provisions of this section.

Section 4. Except as otherwise provided in Iowa Code § 403.19, as previously amended, all taxes levied and collected upon the taxable property in said Northeast Gateway 2 Urban Renewal Area shall be paid into the funds of the taxing districts as taxes by or for said taxing districts in the same manner as all other property taxes unless or until the total assessed valuation of the taxable property in said Urban Renewal Area shall exceed the total assessed value of the taxable property in said Urban Renewal Area as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds pay-

able from the division of tax revenue pursuant to this Ordinance, subject to any adjustment required by Iowa Code § 403.20, as previously amended.

Section 5. At such time as the principal of, and interest on, all loans, advances, bonds or other indebtedness and interest thereon of the City of Des Moines hereinabove in Section 3 referred to have been paid, all monies thereafter received from taxes upon the taxable property in said Northeast Gateway 2 Urban Renewal Area shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property, unless and until additional loans, advances, bonds, or other indebtedness, if any, are incurred and certified by the City of Des Moines.

Section 6. The provisions of this Ordinance are intended and shall be construed so as to fully implement the provisions of Iowa Code § 403.19, as previously amended, with respect to the division of taxes from property within the Urban Renewal Area as described above. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the Code of Iowa with reference to said Urban Renewal Area and the territory therein.

Section 7. Ordinance No. 15,419, passed on November 9, 2015, for the propose of providing for the division of tax revenues within the Northeast Gateway Revitalization Urban Renewal Project is hereby repealed in its entirety. All other ordinances or parts of ordinances in conflict with the provisions of this Ordinance are hereby repealed.

Section 8. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

FORM APPROVED:

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Roger K. Brown
Assistant City Attorney

Passed March 20, 2017

ORDINANCE NO. 15,705

AN ORDINANCE AMENDING ORDINANCE NO. 14,962 ENTITLED:

AN ORDINANCE providing that general property taxes levied and collected each year on all property located within the NE Economic Development District Urban Renewal Area in the City of Des Moines, County of Polk, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, Southeast Polk Community School District, and other taxing districts, be paid to a special fund for payment of principal and interest on loans, monies advanced to and indebtedness, including bonds issued or to be issued, incurred by the City of Des Moines in connection with said Urban Renewal Project.

WHEREAS, the City Council of the City of Des Moines, Iowa, has heretofore by Ordinance No. 14,962, provided for the division of revenue from taxes within the NE Economic Development District Urban Renewal Area (such original area is hereinafter referred to as the "Original Area"), pursuant to Section 403.19 of the 2017 Code of Iowa, as amended; and,

WHEREAS, by the First Amendment to the NE Economic Development District Urban Renewal Plan, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to:

- Change the name of the Urban Renewal Area from the "NE Economic Development District Urban Renewal Area" to the "NE Hubbell Avenue Urban Renewal Area";
- Change the name of the Urban Renewal Plan from "NE Economic Development District Urban Renewal Plan" to "NE Hubbell Avenue Urban Renewal Plan";
- Expand the Urban Renewal Area to include an adjoining 42 acre tract of land hereinafter referred to as the "2018 Expansion Area"); and,

WHEREAS, the following enactment is necessary to accomplish the objectives described above and in the NE Hubbell Avenue Urban Renewal Plan;

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA AS FOLLOWS:

Section 1. That Ordinance No. 14,962 is hereby amended to read as follows:

AN ORDINANCE providing that general property taxes levied and collected each year on all property located within the NE Hubbell Avenue Urban Renewal Area in the City of Des Moines, County of Polk, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, Southeast Polk Community School District, and other taxing districts, be paid to a special fund for payment of principal and interest on loans, monies advanced to and indebtedness, including bonds issued or to be issued, incurred by the City of Des Moines in connection with undertakings pursuant to the urban renewal plan for such urban renewal area.

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved September 27, 2010, adopted an urban renewal plan titled "NE Economic Development District Urban Renewal Plan" for an urban renewal project within the NE Economic Development District Urban Renewal Area described as follows:

Original Area (original description)
Beginning at the point of intersection of the west line of the southeast quarter of the northwest quarter of Section 15, Township 79 North, Range 23 West of the 5th Principal Meridian with the westerly right-of-way line of Relocated United States Highway 65, as presently established; thence southeasterly along said westerly right-of-way line to its intersection with the south line of the northwest quarter of the northeast quarter of Section 22, Township 79 North, Range 23 West of the 5th P.M.; thence west along said south line to the southwest corner of the northwest quarter of the northeast quarter of said Section 22, also being on the east line of Broadway Business Park Plat 2, an official plat; thence south along the east line of Broadway Business Park Plat 2, also being the west line of the south half of the northeast quarter of said Section 22, to the southeast corner of said Broadway Business Park Plat 2, also being the southwest corner of the northeast quarter of said Section 22; thence west along the south line of said Broadway Business Park Plat 2 to the southwest corner of lot 12 of said Broadway Business Park Plat 2, also being the southeast corner of Lot B of Summersfield Plat 1, an official plat; thence west along the south line of said Lot B to its intersection with the southerly extension of the east line of Lot 20 of Summersfield Plat 1; thence north along said extension of the east line to the northernmost corner of said lot B, also being on the west line of Lot 12 of Broadway Business Park Plat 2, and also being on the east line of Summersfield Plat 1; thence north along the west line of Broadway Business Park Plat 2 to the northwest corner of Lot 4 of Broadway Business Park Plat 2, also being on the west line of the northeast quarter of the northwest quarter of Section 22, Township 79 North, Range 23 West of the 5th P.M.; thence north along the west line of the northeast quarter of the northwest quarter of Section 22, Township 79 North, Range 23 West of the 5th P.M. to the southeast corner of Lot 45 of Glenn Acres, an official plat; thence west along the south line of said Glenn Acres to the southwest corner of Lot 42 of Glenn Acres; thence south along the east line of Lot A of Glenn Acres to its intersection with the easterly extension of the south line of Lot 41 of Glenn Acres; thence west across said Lot A to the southeast corner of Lot 41 of Glenn Acres; thence west along the south line of said Lot 41 to the

southwest corner of said Lot 41; thence north 100 feet along the west line of said Lot 41; thence west along a line 100 feet north of and parallel with the south line of Lot 40 of Glenn Acres to the east line of Lot 39 of Glenn Acres; thence south along the east line of said Lot 39 and its southerly extension to the south line of Lot 37 of Glenn Acres; thence west along the south line of said Lot 37 to the southwest corner of said Lot 37; thence south along the east line of Lot 4 of Glenn Acres to the southeast corner of said Lot 4, also being an easterly corner of Lot 1 of Summersfield Plat 2, an official plat; thence southerly along the southerly extension of the east line of Lot 4 of Glenn Acres 46.43 feet to an easterly corner of Lot 1 of Summerfield Plat 2; thence west 27.63 feet to an easterly corner of said Lot 1; thence south 60.00 feet to the southeast corner of said Lot 1; thence west along the south line of said Lot 1 to the southwest corner of said Lot 1, also being on the east right-of-way line of East 46th Street, as presently established; thence south along the east right-of-way line of East 46th Street to its intersection with the easterly extension of a line 250 feet north of and parallel with the south line of the north 100 acres of the northeast quarter of Section 21, Township 79 North, Range 23 West of the 5th P.M.; thence west across East 46th Street along said easterly extension to a point on the west right-of-way line of East 46th Street, said point being 250 feet north of the south line of the said north 100 acres; thence west 200 feet along a line 250 feet north of and parallel with the south line of the said north 100 acres; thence south along a line parallel with and 200 feet west of the west right-of-way line of East 46th Street to the south line of the said north 100 acres; thence west along said south line of the north 100 acres to the east line of the west 2.9 acres of that portion of the north 100 acres of the northeast quarter of Section 21, Township 79 North, Range 23 West of the 5th P.M. lying south of Hubbell Avenue, said east line also described in the deed to Robert W. Livers and Julia E. Livers recorded in Polk County, Iowa Recorder's book 11733 pages 664 and 665; thence south 13.0 feet along the southerly extension of the said east line of the west 2.9 acres; thence west along a line 13.0 feet south of and parallel with the said south line of the said north 100 acres of said northeast quarter to a point on the east line of Lot 9 of Capitol Heights No. 2, an official plat, said point being 13.0 feet south of the northeast corner of said Lot 9; thence south along the east line of said Lot 9 to the southeast corner of said Lot 9; thence southwesterly along the southerly lines of Lots 9, 8 and 7 of Capitol Heights No. 2 to the southwesterly corner of said Lot 7, also being on the easterly right-of-way line of East 44th Street, as presently established; thence southeasterly along said easterly right-of-way line to its intersection with the easterly extension of the southerly line of Lot 6 of Capitol Heights No. 2; thence southwesterly along said easterly extension across East 44th Street to the southeast corner of said Lot 6; thence southwesterly along the southerly line of Lots 6 and 5 of Capitol Heights No. 2 to the southwest corner of said Lot 5, also being on the east line of Lot 25 of Capitol Heights Replat, an official plat; thence south along the said east line of said Lot 25 to an easterly corner of Parcel "G" of part of Lot 25 Capitol Heights Replat and part of the southeast quarter of the northeast quarter of Section 21, Township 79 North, Range 23 West of the 5th P.M. as recorded in Polk County, Iowa Recorder's book 13241 pages 282 and 283; thence south 47.82 feet to an easterly corner of said Parcel "G"; thence southeasterly 80.00 feet to the southeast corner of said Parcel "G"; thence southwesterly 174.11 feet along the southerly line of said Parcel "G" to the southernmost corner of said Parcel "G", also being on the easterly line of Lot 24 of

Capitol Heights Replat; thence west along a line 152 feet north of and parallel with the south line of said Lot 24 to a point 236 feet west of the southeast corner of said Lot 24; thence south to a point on the south line of said Lot 24 which is 236 feet west of the southeast corner of said Lot 24 and also on the north right-of-way line of East Aurora Avenue, as presently established; thence south across East Aurora Avenue along the southerly extension of the previously described line to the south right-of-way line of East Aurora Avenue; thence west along the said south right-of-way line to its intersection with the easterly right-of-way line of East 43rd Court, as presently established; thence southerly along the easterly right-of-way line of East 43rd Court to its intersection with the easterly extension of the south line of Lot 48 of Capitol Heights Replat; thence west across East 43rd Court along the said easterly extension of the said south line to the southeast corner of said Lot 48; thence west along said south line to the southwest corner of said Lot 48, also being on the east line of Lot 18 of Capitol Heights Replat; thence south along the east line of said Lot 18 to the southeast corner of said Lot 18; thence west along the south line of Lots 18, 17, 16, 15 and 14 of Capitol Heights Replat to the southwest corner of said Lot 14, also being on the east right-of-way line of East 42nd Street, as presently established; thence south along the east right-of-way line of East 42nd Street to its intersection with the easterly extension of the south line of Lot 4 of Wilson Heights, an official plat; thence west across East 42nd Street along the said easterly extension of the said south line to the southeast corner of said Lot 4; thence west along the south line of said Lot 4, the south line of Lot 7 of Katherine Place, an official plat, and the south line of Parcels "A" and "B" of a portion of Lot 7 of Katherine Place, as recorded in Polk County, Iowa Recorder's book 7358 page 378 to a point on the south line of said Parcel "A", said point also being the easternmost corner of Lot C of Castalia Plaza, an official plat; thence southwesterly along the southeasterly line of said Lot C to the southernmost corner of said Lot C; then north along the west line of said Lot C to its intersection with the southeasterly right-of-way line of Avenue Frederick M. Hubbell, as presently established; thence southwesterly along the southeasterly line of Avenue Frederick M. Hubbell to its intersection with the southerly extension of the west line of Lot 5 of Katherine Place, an official plat; thence north across Avenue Frederick M. Hubbell along said southerly extension and along the west line of said Lot 5 to the northwest corner of said Lot 5;thence east along the north line of said Lot 5 and Lot 6 of Katherine Place to the northeast corner of said Lot 6, also being on the west right-of-way line of East 42nd Street, as presently established; thence north along the said west right-of-way line to the southwest corner of the north 100 acres of the northeast quarter of Section 21, Township 79 North, Range 23 West of the 5th P. M., thence north along the west line of the said north 100 acres to its intersection with the southerly line of the abandoned Interurban Railway; thence northeasterly along the southerly line of said abandoned railway, also being the southerly line of Brownstone Estates, an official plat, to its intersection with the west right-of-way line of East 46th Street, as presently established; thence north along said west right-of-way line to its intersection with the north right-of-way line of East Broadway Avenue, as presently established; thence easterly along the north right-of-way line of East Broadway Avenue and its continuation as the northwesterly right-of-way line of Hubbell Avenue to its intersection with the west line of the southeast quarter of the southwest quarter of said Section 15; thence north along said west line and its prolongation as the west line of the northeast quarter of the southwest quarter

of said Section 15 and its prolongation as the west line of the southeast quarter of the northwest quarter of said Section 15 to the point of beginning.

WHEREAS, the Original Area may also be described as follows:

Original Area (amended description)
Beginning at the point of intersection of the west line of the southeast quarter of the northwest quarter of Section 15, Township 79 North, Range 23 West of the 5th Principal Meridian with the westerly right-of-way line of Relocated United States Highway 65, as presently established; thence southeasterly along said westerly right-of-way line to its intersection with the south line of the northwest quarter of the northeast quarter of Section 22, Township 79 North, Range 23 West of the 5th P.M.; thence west along said south line to the southwest corner of the northwest quarter of the northeast quarter of said Section 22, also being on the east line of Broadway Business Park Plat 2, an official plat; thence south along the east line of Broadway Business Park Plat 2, also being the west line of the south half of the northeast quarter of said Section 22, to the southeast corner of said Broadway Business Park Plat 2, also being the southwest corner of the northeast quarter of said Section 22; thence west along the south line of said Broadway Business Park Plat 2 to the southwest corner of lot 12 of said Broadway Business Park Plat 2, also being the southeast corner of Lot B of Summersfield Plat 1, an official plat; thence west along the south line of said Lot B to its intersection with the southerly extension of the east line of Lot 20 of Summersfield Plat 1; thence north along said extension of the east line to the northernmost corner of said lot B, also being on the west line of Lot 12 of Broadway Business Park Plat 2, and also being on the east line of Summersfield Plat 1; thence north along the west line of Broadway Business Park Plat 2 to the northwest corner of Lot 4 of Broadway Business Park Plat 2, also being on the west line of the northeast quarter of the northwest quarter of Section 22, Township 79 North, Range 23 West of the 5th P.M.; thence north along the west line of the northeast quarter of the northwest quarter of Section 22, Township 79 North, Range 23 West of the 5th P.M. to the southeast corner of Lot 45 of Glenn Acres, an official plat; thence west along the south line of said Glenn Acres to the southwest corner of Lot 42 of Glenn Acres, said corner being on the east line of Lot A of said Glenn Acres; thence south along said east line to its intersection with the easterly extension of the south line of Lot 41 of said Glenn Acres; thence west along said easterly extension to the southeast corner of said Lot 41; thence west along the south line of said Lot 41 to the southwest corner of said Lot 41; thence north 100 feet along the west line of said Lot 41; thence west along a line 100 feet north of and parallel with the south line of Lot 40 of said Glenn Acres to the east line of Lot 39 of said Glenn Acres; thence south along the east line of said Lot 39 and its southerly extension to the south line of Lot 37 of said Glenn Acres; thence west along the south line of said Lot 37 to the southwest corner of said Lot 37; thence south along the east line of Lot 4 of said Glenn Acres to the southeast corner of said Lot 4, also being an easterly corner of Lot 1 of Summersfield Plat 2, an official plat; thence southerly along the southerly extension of the east line of Lot 4 of said Glenn Acres, 46.43 feet to an easterly corner of said Lot 1; thence west 27.63 feet to an easterly corner of said Lot 1; thence south 60.00 feet to the southeast corner of said Lot 1; thence west along the south line of said Lot 1 to the southwest corner of said Lot 1, also being on the east right-of-way line of East 46th Street, as presently established; thence south along said east right-of-way line of to its intersection with the easterly exten-

sion of a line 250 feet north of and parallel with the south line of the north 100 acres of the northeast quarter of Section 21, Township 79 North, Range 23 West of the 5th P.M.; thence west across said East 46th Street along said easterly extension to a point on the west right-of-way line of said East 46th Street, said point being 250 feet north of the south line of the said north 100 acres; thence west 200 feet along a line 250 feet north of and parallel with the south line of the said north 100 acres; thence south along a line parallel with and 200 feet west of the west right-of-way line of said East 46th Street to the south line of the said north 100 acres; thence west along said south line of the north 100 acres to the east line of the west 2.9 acres of that portion of the north 100 acres of the northeast quarter of Section 21, Township 79 North, Range 23 West of the 5th P.M. lying south of Hubbell Avenue, said east line also described in the deed to Robert W. Livers and Julia E. Livers recorded in Polk County, Iowa Recorder's book 11733 pages 664 and 665; thence south 13.0 feet along the southerly extension of the said east line of the west 2.9 acres; thence west along a line 13.0 feet south of and parallel with the said south line of the said north 100 acres of said northeast quarter to a point on the east line of Lot 9 of Capitol Heights No. 2, an official plat, said point being 13.0 feet south of the northeast corner of said Lot 9; thence south along the east line of said Lot 9 to the southeast corner of said Lot 9; thence southwesterly along the southerly lines of Lots 9, 8 and 7 of said Capitol Heights No. 2 to the southwesterly corner of said Lot 7, also being on the easterly right-of-way line of East 44th Street, as presently established; thence southeasterly along said easterly right-of-way line to its intersection with the easterly extension of the southerly line of Lot 6 of said Capitol Heights No. 2; thence southwesterly along said easterly extension across East 44th Street to the southeast corner of said Lot 6; thence southwesterly along the southerly line of Lots 6 and 5 of said Capitol Heights No. 2 to the southwest corner of said Lot 5, also being on the east line of Lot 25 of Capitol Heights Replat, an official plat; thence south along the said east line of said Lot 25 to an easterly corner of Parcel "G" of part of said Lot 25, Capitol Heights Replat and part of the southeast quarter of the northeast quarter of Section 21, Township 79 North, Range 23 West of the 5th P.M. as recorded in Polk County, Iowa Recorder's book 13241 pages 282 and 283; thence south 47.82 feet to an easterly corner of said Parcel "G"; thence southeasterly 80.00 feet to the southeast corner of said Parcel "G"; thence southwesterly 174.11 feet along the southerly line of said Parcel "G" to the southernmost corner of said Parcel "G", also being on the easterly line of Lot 24 of said Capitol Heights Replat; thence west along a line 152 feet north of and parallel with the south line of said Lot 24 to a point 236 feet west of the southeast corner of said Lot 24; thence south to a point on the south line of said Lot 24 which is 236 feet west of the southeast corner of said Lot 24 and also on the north right-of-way line of East Aurora Avenue, as presently established; thence south across said East Aurora Avenue along the southerly extension of the previously described line to the south right-of-way line of said East Aurora Avenue; thence west along the said south right-of-way line to its intersection with the easterly right-of-way line of East 43rd Court, as presently established; thence southerly along said easterly right-of-way line of said East 43rd Court to its intersection with the easterly extension of the south line of Lot 48 of said Capitol Heights Replat; thence west across East 43rd Court along the said easterly extension of the said south line to the southeast corner of said Lot 48; thence west along said south line to the southwest corner of said Lot 48, also being on the east line of

Lot 18 of said Capitol Heights Replat; thence south along the east line of said Lot 18 to the southeast corner of said Lot 18; thence west along the south line of Lots 18, 17, 16, 15 and 14 of said Capitol Heights Replat to the southwest corner of said Lot 14, also being on the east right-of-way line of East 42nd Street, as presently established; thence south along said east right-of-way line of said East 42nd Street to its intersection with the easterly extension of the south line of Lot 4 of Wilson Heights, an official plat; thence west across East 42nd Street along the said easterly extension of the said south line to the southeast corner of said Lot 4; thence west along the south line of said Lot 4, and along the south line of Lot 7 of Katherine Place, an official plat, and along the south line of Parcels "A" and "B" of a portion of lot 7 of said Katherine Place, as recorded in Polk County, Iowa Recorder's book 7358 page 378 to a point on the south line of said Parcel "A", said point also being the easternmost corner of Lot C of Castalia Plaza, an official plat; thence southwesterly along the southeasterly line of said Lot C to the southernmost corner of said Lot C; thence north along the west line of said Lot C to its intersection with the southeasterly right-of-way line of Hubbell Avenue, as presently established; thence southwesterly along the southeasterly line of Hubbell Avenue to its intersection with the southerly extension of the west line of Lot 5 of said Katherine Place; thence north across Hubbell Avenue along said southerly extension and along the west line of said Lot 5 to the northwest corner of said Lot 5; thence east along the north line of said Lot 5 and Lot 6 of said Katherine Place to the northeast corner of said Lot 6, also being on the west right-of-way line of said East 42nd Street, as presently established; thence north along said west right-of-way line to the southwest corner of the north 100 acres of the northeast quarter of Section 21, Township 79 North, Range 23 West of the 5th P.M., thence north along the west line of the said north 100 acres to its intersection with the southerly line of the abandoned Interurban Railway; thence northeasterly along the said southerly line of said abandoned railway, also being the southerly line of Brownstone Estates, an official plat, to its intersection with the west right-of-way line of said East 46th Street; thence north along said west right-of-way line to its intersection with the north right-of-way line of East Broadway Avenue, as presently established; thence easterly along the north right-of-way line of said East Broadway Avenue and its continuation as the northwesterly right-of-way line of said Hubbell Avenue to its intersection with the west line of the southeast quarter of the southwest quarter of said Section 15; thence north along said west line and its prolongation as the west line of the northeast quarter of the southwest quarter of said Section 15 and its prolongation as the west line of the southeast quarter of the northwest quarter of said Section 15 to the point of beginning.

WHEREAS, by the First Amendment to the NE Economic Development District Urban Renewal Plan, after public notice and hearing as prescribed by law, said Urban Renewal Plan was amended and adopted to:

a) Change the name of the Urban Renewal Area from the "NE Economic Development District Urban Renewal Area" to the "NE Hubbell Avenue Urban Renewal Area";

b) Change the name of the Urban Renewal Plan from "NE Economic Development District Urban Renewal Plan" to "NE Hubbell Avenue Urban Renewal Plan";

c) Expand the Urban Renewal Area to include the 2018 Expansion Area, described as follows:

<u>2018-1 Expansion Area</u>
All that part of the South 1/2 of the Northeast 1/4 of Section 22, Township 79

North, Range 23 West of the 5th P.M., located west of Iowa Highway 65, now included in and forming a part of the City of Des Moines, Polk County, Iowa.

WHEREAS, the continuing need for redevelopment of the expanded Urban Renewal Area is such as to require application of the incremental tax resources of the expanded area; and

WHEREAS, indebtedness has been incurred by the City of Des Moines, Iowa, and additional indebtedness is anticipated to be incurred in the future to finance urban renewal undertakings within the expanded NE Hubbell Avenue Urban Renewal Area; and

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the expanded NE Hubbell Avenue Urban Renewal Area as above described, in accordance with the provisions of Section 403.19 of the 2017 Code of Iowa, as amended.

NOW THEREFORE, BE IT ORDAINED, by the City Council of the City of Des Moines, Iowa, as follows:

Section 1. That the taxes levied on the taxable property in the urban renewal area known as the NE Hubbell Avenue Urban Renewal Area (formerly known as the NE Economic Development District Urban Renewal Area) legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District, Southeast Polk Community School District, and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. That portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said Urban Renewal Area upon the total sum of the assessed value of the taxable property in said Urban Renewal Area as shown on the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of property tax revenue shall be allocated to and when collected be paid into the Fund for the respective taxing district as taxes by or for said taxing district into which all other property taxes are paid.

Section 3. Except as provided in Section 403.19 of the 2017 Code of Iowa, as amended, that portion of the taxes each year in excess of the base period taxes determined as provided in Section 2 of this Ordinance shall be allocated to and when collected be paid into a special tax increment fund hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of Sections 403.9 and 403.12 of the 2017 Code of Iowa, as amended, incurred by the City of Des Moines to finance or refinance in whole or in part urban renewal projects undertaken by City pursuant to the NE Hubbell Avenue Urban Renewal Plan (formerly known as the NE Economic Development District Urban Renewal Plan).

Section 4. All taxes levied and collected upon the taxable property in said NE Hubbell Avenue Urban Renewal Area shall be paid into the funds of the taxing districts as taxes by or for said taxing districts in the same manner as all other property taxes unless or until the total assessed valuation of the taxable property in said Urban Renewal Area shall exceed the total assessed value of the taxable property in said Urban Renewal Area as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to this Ordinance.

Section 5. At such time as the loans, advances, bonds and interest thereon and indebtedness of the City of Des Moines hereinabove in Section 3 referred to have been paid, all monies thereafter received from taxes

upon the taxable property in the Urban Renewal Area known as the NE Hubbell Avenue Urban Renewal Area shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property.

Section 6. The provisions of this Ordinance are intended and shall be construed so as to fully implement the provisions of Section 403.19 of the 2017 Code of Iowa, as amended, with respect to the division of taxes from property within the Urban Renewal Area as described above. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the 2017 ode of Iowa, as amended, with reference to said Urban Renewal Area and the territory therein.

Section 7. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

Section 2. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

APPROVED AS TO FORM:

_____

Roger K. Brown
Assistant City Attorney

Passed September 10, 2018

ORDINANCE NO. 15,721

AN ORDINANCE providing that general property taxes levied and collected each year on all property located within the Southwest Gateway Urban Renewal Area in the City of Des Moines, County of Polk, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District and other taxing districts, be paid to a special fund for payment of principal and interest on loans, monies advanced to and indebtedness, including bonds issued or to be issued, incurred by the City of Des Moines in connection with said Urban Renewal Project.

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved October 22, 2018, adopted an urban renewal plan titled "Southwest Gateway Urban Renewal Plan" for an Urban Renewal Project within the Southwest Gateway Urban Renewal Area described as follows:

Beginning at the intersection of the Centerline of Section 26, Township 78 North, Range 25 West of the 5th P.M. and the Westerly Extension of the South line of the North 17.0 feet of Lot 1, Corrigan Place, an Official Plat; Thence East along said Westerly Extension and continuing along said South line to the East line of said Lot 1; Thence S 68°24.5'0"E, 86.3 feet to a point on the East line of Lot 2 in Said Corrigan Place; Thence continuing S 68°24.5'0"E, 4.2 feet; Thence Northeasterly along a straight line to the Southwest corner of the North 27.0 feet of the East 50.0 feet of Lot 4, Green Hills Plat One, an Official Plat; Thence East along a line that is 27.0 feet South of and parallel with the North line of Lots 4 and 3 in said Green Hills Plat One, to the East line of the West 75.0 feet of said Lot 3; Thence North along said East line of the West 75.0 feet of said Lot 3 to the South line of the North 17.0 feet of said Lot 3; Thence East along said South line to the East line of the West 200.0 feet of said Lot 3; Thence North along said East line of the West 200.0 feet of said Lot 3 to the South Line of Lot A in said Green Hills Plat One, said South line also being the South line of the Southwest McKinley Avenue Right-of-Way; Thence East along said South line of said Lot A to the East line of said Lot A; Thence North along said East line to the Northeast corner of said Lot A; Thence continuing North along the East line of Lot B of Airport Industrial Park Plat 1, an official plat, to the Northeast corner of said Lot B; Thence continuing North along the East line of Parcel B, Said Parcel B is recorded in Book 10629 Page 68 at the Polk County of Iowa Recorder's office, to the most Southeasterly corner of Parcel A, said Parcel A is recorded in Book 10629 Page 68 at the Polk County of Iowa Recorder's office; Thence continuing North along the East line of said Parcel A to the

North corner of said Parcel A; Thence Southwest along the Northwesterly line of said Parcel A, to the Northerly line of the Road Easement (c) on Final Plat for Airport Industrial Park Plat 2, an official plat, and recorded in Book 12726 page 241 at the Polk County, Iowa Recorder's Office; Thence Northwesterly along said Northerly Line of said Road Easement (c) and continuing along the Northerly line of the Stanton Avenue Right-of-Way to the East line of the southwest 63rd Street right-of-way; Thence N 90°0'0"W to the Centerline of Section 23, Township 78 North, Range 25 West of the 5th P.M. and continuing along the Centerline of Section 26, Township 78 North, Range 25 West of the 5th P.M. to Point of Beginning.

WHEREAS, expenditures and indebtedness are anticipated to be incurred by the City of Des Moines, Iowa, in the future to finance said Urban Renewal Project; and

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the Urban Renewal Area as above described, in accordance with the provisions of Section 403.19 of the 2017 Code of Iowa, as amended.

NOW THEREFORE, BE IT ORDAINED, by the City Council of the City of Des Moines, Iowa, as follows:

Section 1. That the taxes levied on the taxable property in the Urban Renewal Area known as the Southwest Gateway Urban Renewal Area, legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. That portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said Urban Renewal Area upon the total sum of the assessed value of the taxable property in said Urban Renewal Area as shown on the assessment roll as of January 1st of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of property tax revenue shall be allocated to and when collected be paid into the Fund for the respective taxing district as taxes by or for said taxing district into which all other property taxes are paid.

Section 3. That portion of the taxes each year in excess of the base period taxes determined as provided in Section 2 of this Ordinance shall be allocated to and when collected be paid into a special tax increment fund hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of Sections 403.9 and 403.12 of the 2017 Code of Iowa, as amended, incurred by the City of Des Moines to finance or refinance in whole or in part the Southwest Gateway Urban Renewal Project, except that taxes for the regular and voter-approved physical plant and equipment levy of a school district imposed pursuant to section 298.2 and taxes for the instructional support program of a school district imposed pursuant to section 257.19, taxes for the payment of bonds and interest of each taxing district, and taxes imposed under section 346.27, subsection 22, related to joint county-city buildings shall be collected against all taxable property within the Urban Renewal Area without any limitation as hereinabove provided.

Section 4. All taxes levied and collected upon the taxable property in said Southwest Gateway Urban Renewal Area shall be paid into the funds of the taxing districts as taxes by or for said taxing districts in the same manner as all other property taxes unless or until the total assessed valuation of the taxable property in said Urban Renewal Area shall exceed the total assessed value of the taxable property in said Urban Renewal Area as of January 1st of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to this Ordinance.

Section 5. At such time as the loans, advances, bonds and interest thereon and indebtedness of the City of Des Moines hereinabove in Section 3 referred to have been paid, all monies thereafter received from taxes upon the taxable property in the Urban Renewal Area known as the Southwest Gateway Urban Renewal Area shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property.

Section 6. The provisions of this Ordinance are intended and shall be construed so as to fully implement the provisions of Section 403.19 of the 2017 Code of Iowa, as amended, with respect to the division of taxes from property within the Urban Renewal Area as described above. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the Code of Iowa with reference to said Urban Renewal Area and the territory therein.

Section 7. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

FORM APPROVED:

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Roger K. Brown
Assistant City Attorney

Passed October 22, 2018

ORDINANCE NO. 15,739

AN ORDINANCE providing that general property taxes levied and collected each year on all property located within the Drake Urban Renewal Area in the City of Des Moines, County of Polk, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, Des Moines Area Community College, and other taxing districts, be paid to a special fund for payment of principal and interest on loans, monies advanced to and indebtedness, including bonds issued or to be issued, incurred by the City of Des Moines in connection with the Urban Renewal Project for such Area.

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved January 14, 2019, Roll Call Number 19-0085, adopted an urban renewal plan titled "Drake Urban Renewal Plan" for an Urban Renewal Project within an Urban Renewal Area described as follows:

Beginning at the intersection of the South right-of-way line of University Avenue and the East right-of-way line of the North/South alley in Drake University's 2nd Addition to the City of Des Moines, an Official Plat; Thence South along said East right-of-way line to the Easterly extension of the South line of Lot 38 of said Drake University's 2nd Addition to the City of Des Moines; Thence Westerly along said Easterly extension of said South line of said Lot 38 and along said South line of said Lot 38 to the East right-of-way line of 26th Street; Thence continuing Westerly along the Westerly extension of said South line of Lot 38 to a point on the West right-of-way line of 26th Street, said point also being the Southeast corner of Lot 7, Drake University's Addition to the City of Des Moines, an Official Plat; Thence Westerly along the South line of said Lot 7 and along the Westerly extension of said South line of said Lot 7 to the Southeast corner of Lot 30 of said Drake University's Addition to the City of Des Moines; Thence Westerly along the South line of said Lot 30 to the East right-of-way line of 27th Street; Thence North along said East right-of-way line to the South line of the North 7 feet of Lot 36 of said Drake University's Addition to the City of Des Moines; Thence West along the Westerly extension of said South line of the North 7 feet of said Lot 36 to the East right-of-way line of 28th Street; Thence North along said East right-of-way line of said 28th Street to the Northwest corner of Lot 65 in said Drake University's Addition to the City of Des Moines, said Northwest corner being on said South right-of-way line of said University Avenue; Thence West along said South right-of-way line of said University Avenue to the Southerly extension of the East right-of-way line of 34th Street; Thence North along said Southerly extension to the North right-of-way

line of said University Avenue; Thence East along said North right-of-way line University Avenue to the West right-of-way line of 23rd Street; Thence South along Southerly extension of said West right-of-way line of said 23rd Street to said South right-of-way line of said University Avenue; Thence West along said South right-of-way line of said University Ave to the Point of Beginning.

WHEREAS, expenditures and indebtedness are anticipated to be incurred by the City of Des Moines, Iowa, in the future to finance said Urban Renewal Project; and

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation in the Urban Renewal Area as above described, in accordance with the provisions of Section 403.19 of the Code of Iowa, as amended.

NOW THEREFORE, BE IT ORDAINED, by the City Council of the City of Des Moines, Iowa, as follows:

Section 1. That the taxes levied on the taxable property in the Urban Renewal Area known as the Drake Urban Renewal Area, legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District, Des Moines Area Community College, and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. That portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said Urban Renewal Area upon the total sum of the assessed value of the taxable property in said Urban Renewal Area as shown on the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of property tax revenue shall be allocated to and when collected be paid into the Fund into which all other property taxes are paid for the respective taxing district, as taxes by or for said taxing district.

Section 3. To the full extent allowable under Iowa Code Section 403.19, that portion of the taxes each year in excess of the base period taxes determined as provided in Section 2 of this Ordinance shall be allocated to and when collected be paid into a special tax increment fund hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of Sections 403.9 and 403.12 of the Code of Iowa, as amended, incurred by the City of Des Moines to finance or refinance in whole or in part the Drake Urban Renewal Project.

Section 4. All taxes levied and collected upon the taxable property in said Drake Urban Renewal Area shall be paid into the funds of the taxing districts as taxes by or for said taxing districts in the same manner as all other property taxes unless or until the total assessed valuation of the taxable property in said Urban Renewal Area shall exceed the total assessed value of the taxable property in said Urban Renewal Area as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to this Ordinance.

Section 5. At such time as the loans, advances, bonds and interest thereon and indebtedness of the City of Des Moines hereinabove in Section 3 referred to have been paid, all monies thereafter received from taxes upon the taxable property in the Urban Renewal Area known as the Drake Urban Renewal Area shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property.

Section 6. The provisions of this Ordinance are intended and shall be construed so as to fully implement the provisions of Section 403.19 of the 2015 Code of Iowa, as amended, with respect to the division of taxes from property within the Urban Renewal Area as described above. In the event that any provision of this Ordinance shall

be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the Code of Iowa with reference to said Urban Renewal Area and the territory therein.

Section 7: This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

FORM APPROVED:

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Thomas G. Fisher Jr.
Assistant City Attorney

Passed January 14, 2019

ORDINANCE NO. 15,822

AN ORDINANCE AMENDING ORDINANCE NO. 15,119, ENTITLED:

"AN ORDINANCE providing that general property taxes levied and collected each year on all property located within the Ingersoll-Grand Commercial Urban Renewal Area in the City of Des Moines, County of Polk, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, Des Moines Area Community College, and other taxing districts, be paid to a special fund for payment of principal and interest on loans, monies advanced to and indebtedness, including bonds issued or to be issued, incurred by the City of Des Moines in connection with the Urban Renewal Project for such Area."

WHEREAS, on July 9, 2012, by Resolution and Roll Call No. 12-1113, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law, adopted an urban renewal plan titled "Ingersoll-Grand Commercial Urban Renewal Plan" for an Urban Renewal Project within the Ingersoll-Grand Commercial Urban Renewal Area described as follows:

Ingersoll-Grand Commercial Urban Renewal Area (original area)

Beginning at a point on the West lot line of Lot 16, Mennig Place, an Official Plat said point being 305 feet South of the Northwest corner of said Lot 16, Mennig Place; thence North along said West lot line of Lot 16, Mennig Place to its intersection with the South Right-of-Way line of Grand Avenue; thence East along said South Right-of-Way line of Grand Avenue to its intersection with the Southerly projection of the East Right-of-Way line of 43rd Street; thence North along said Southerly projection of the East Right-of-Way line of 43rd Street and continuing North along said East Right-of-Way line of 43rd Street to a point on said East Right-of-Way line of 43rd Street said point being 179 feet North of the South line of Lot 2, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M.; thence East along a line 179 feet North of and parallel to said South line of Lot 2, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M. to its intersection with the West lot line of Lot 1, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M.; thence North along said West lot line of Lot 1, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M. to a point said point being 250 feet North of the South lot line of Lot 1, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M.; thence East along a line 250 feet North of and parallel to the South lot line of Lot 1, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M. to a point said point being 53 feet East of said West lot line of Lot 1, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M.; thence North along a line 53 feet West of and parallel to the West lot line of Lot 1, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th

P.M. to the Southeast corner of Lot 11, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M.; thence North along the East lot line of Lot 11, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M. to a point said point being 150 feet South of the Northeast corner of Lot 11, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M.; thence west along a line 150 South of and parallel to the North line of Lot 11, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M. to its intersection with the East Right-of-Way line of 43rd Street; thence North along said East Right-of-Way line of 43rd Street and continuing North along the Northerly projection of said East Right-of-Way line of 43rd Street to its intersection with the North Right-of-Way line of Ingersoll Avenue; thence East along said North Right-of-Way line of Ingersoll Avenue to its intersection with the West lot line of Lot 16, Block A, Gil-Mar Park, an Official Plat; thence North along said West lot line of Lot 16, Block A, Gil-Mar Park to its intersection with the South lot line of West lot line of Lot 2, Block A, Gil-Mar Park; thence Southeasterly along said South lot line of Lot 2, Block A, Gil-Mar Park to a point said point being 24 feet Northwesterly from the Southeast corner of said Lot 2, Block A, Gil-Mar Park; thence North along a line 24 feet West of and parallel to the East lot line of Lot 2, Block A, Gil-Mar Park to its intersection with the South Right-of-Way line of Harwood Drive; thence Southeasterly along said South right-of-Way line of Harwood Drive and continuing Southeasterly along the Southeasterly projection of said South Right-of-Way of Harwood Drive to its intersection with the East Right-of-Way line of 42nd Street; thence North along said East Right-of-Way line of 42nd Street to a point said point being 300 feet North of the North Right-of Way line of Ingersoll Avenue; thence East along a line 300 feet North of and parallel to said North Right-of-Way line of Ingersoll Avenue to its intersection with the West Right-of-Way line of 41st Street; thence South along said West Right-of-Way line of 41st Street to a point said point being 200 feet North of the North Right-of-Way line of Ingersoll Avenue; thence East along a line 200 feet North of and parallel to said North Right-of-Way line of Ingersoll Avenue to its intersection with the West lot line of Lot 10, Greenwood Park, an Official Plat; thence South along said West lot line of Lot 10, Greenwood Park to a point said point being 82.5 feet North of the North Right-of-Way line of Ingersoll Avenue; thence East along a line 82.5 feet North of and parallel to the North Right-of-Way line of Ingersoll Avenue to its intersection with the East Right-of-Way line of 40th Street; thence North along said East Right-of-Way line of 40th Street to a point said point being 200 feet North of the North Right-of-Way line of Ingersoll Avenue; thence East along a line 200 feet North of and parallel to the North Right-of-Way line of Ingersoll Avenue to its intersection with the West lot line of Lot 14, Greenwood Park; thence North along said West lot line of Lot 14, Greenwood Park to a point said point being 282.5 feet North of the North Right-of-Way line of Ingersoll Avenue; thence East along a line 282.5 feet North of and parallel to the North Right-of-Way line of Ingersoll Avenue to its intersection with the West Right-of-Way line of 39th Street; thence South along said West Right-of-Way line of 39th Street to a point said point being 150 feet North of the North Right-of-Way line of Ingersoll Avenue; thence East along a line 150 feet North of and parallel to the North Right-of-Way line of Ingersoll Avenue to the Southwest Corner of Lot 9, Rhoads Heights, an Official Plat; thence North along the West lot line of said Lot 9, Rhoads Heights to the Northwest Corner of said Lot 9, Rhoads Heights; thence East along the North lot line of Lot 9, Rhoads Heights and continuing East along the Easterly projection of the North lot line of Lot 9, Rhoads Heights to its intersection with the East Right-of-Way line of 38th Street; thence North along said East Right-of-Way line of 38th Street to the Northwest Corner of Lot 19, Rhoads Heights; thence East along the North lot line of Lot 19, Rhoads Heights to the Northeast

Corner of Lot 19, Rhoads Heights; thence South along the East lot lines of Lots 19, 20, 21, Rhoads Heights to its intersection with the Westerly projection of the North lot line of Lot 33, Rhoads Heights; thence East along the said Westerly projection of the North lot line of Lot 33, Rhoads Heights and continuing East along the North lot line of Lot 33, Rhoads Heights and also continuing East along the Easterly projection of the North lot line of Lot 33, Rhoads Heights to its intersection with the East Right-of-Way line of 37th Street; thence North along said East Right-of-Way line of 37th Street to the Northwest Corner of Lot 43, Rhoads Heights; thence East along the North lot line of said Lot 43, Rhoads Heights to its intersection with the West lot line of Lot 16, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M.; thence North along said West lot line of Lot 16, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M. to the Northwest Corner of said Lot 16, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M.; thence East along the North lot line of Lot 16, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M. and continuing East along the Easterly projection of the North lot line of Lot 16, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M. to the Northwest Corner of Lot 6, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M.; thence east along the North lot line of Lot 6, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the West lot line of Lot 28, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M.; thence North along said West lot line of Lot 28, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M. to the Southwest Corner of Lot 27, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M.; thence North along the West lot line of Lot 27, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M. to a point said point being 55 feet North of the Southwest Corner Lot 27, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M.; thence East along a line 55 feet North of and parallel to the South lot line of Lot 27, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M. and continuing East along the Easterly projection of said line 55 North of and parallel to the South lot line of Lot 27, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the East Right-of-Way line of 35th Street; thence North along said East Right-of-Way line of 35th Street to a point said point being 20 feet South of the Northwest Corner of Lot 19, Stratford, an Official Plat; thence Northeasterly along a line to a point said point being 10 feet South of and 10 feet East of the Northwest Corner of Lot 19, Stratford; thence East along a line 10 feet South of and parallel to the North lot line of Lot 19, Stratford to a point said point being 80 feet East of the West lot line of Lot 19, Stratford; thence North along a line 80 feet East of and parallel to the West lot line of Lot 19, Stratford to its intersection with the South Right-of-Way line of Woodland Avenue; thence East along said South Right-of-Way line of Woodland Avenue to its intersection with the West Right-of-Way line of 34th Street; thence South along said West Right-of-Way line of 34th Street to its intersection with the Westerly projection of the North lot line of Lot 1, Crescent Place, an Official Plat; thence East along said Westerly projection of the North lot line of Lot 1, Crescent Place and continuing East along the North lot line of Lot 1, Crescent Place to a point said point being 54.83 feet West of the Southeast Corner of Lot 2, Crescent Place; thence North along a line 54.83 feet

West of parallel to the East lot line of Lot 2, Crescent Place; to a point said point being 36.5 feet North of the South lot line of Lot 2, Crescent Place; thence East along a line 36.5 feet North of and parallel to the South lot line of Lot 2, Crescent Place and continuing East along the Easterly extension of a line 36.5 feet North of and parallel to the South lot line of Lot 2, Crescent Place to its intersection with the West lot line of Lot 3, Crescent Place; thence North along said West lot line of Lot 3, Crescent Place to the Northwest Corner of Lot 3, Crescent Place; thence East along the North lot line of Lot 3, Crescent Place to its intersection with the West Lot line of Lot 12, Block 1, Garver Place; thence North along said West Lot line of Lot 12, Block 1, Garver Place to the Southwest Corner of Lot 1, Block 1, Garver Place; thence North along the West lot line of said Lot 1, Block 1, Garver Place to a point said point being 174 feet North of the South lot line of Lot 1, Block 1, Garver Place; thence East along a line 174 feet North of and parallel to the South lot line of Lot 1, Block 1, Garver Place to its intersection with the East lot line of Lot 1, Block 1, Garver Place; thence South along said East lot line of Lot 1, Block 1, Garver Place and continuing South along the East lot line of Lot 11, Block 1, Garver Place to the Northwest Corner of Lot 10, Block 1, Garver Place; thence East along the North lot line of Lot 10, Block 1, Garver Place and continuing East along the North lot line of Lot 9, Block 1, Garver Place to its intersection with the West Right-of-Way line of 31st Street; thence South along said West Right-of-Way line of 31st Street to its intersection with the Westerly projection of the centerline of the Vacated East/West Alley Right-of-Way located in Block 3, McCain Place, an Official Plat; thence East along said Westerly projection of the centerline of the Vacated East/West Alley Right-of-Way located in Block 3, McCain Place and continuing along the centerline of the Vacated East/West Alley Right-of-Way located in Block 3, McCain Place to its intersection with the West Right-of-Way line of 29th Street; thence East along the Westerly projection of the centerline of the Vacated East/West Alley Right-of-Way located in Block 4, McCain Place and continuing along the centerline of the Vacated East/West Alley Right-of-Way located in Block 4, McCain Place to its intersection with the West Right-of-Way line of 28th Street; thence South along said West Right-of-Way line of 28th Street to its intersection with the Westerly projection of the South Right-of-Way line of Linden Street; thence East along said Westerly projection of the South Right-of-Way line of Linden Street and continuing East along the South Right-of-Way line of Linden Street to the Southwest Corner of Lot 57, Ingersoll Place, an Official Plat; thence East along the South lot lines of Lots 57 and 58, Ingersoll Place to the Southwest Corner of Lot 59, Ingersoll Place; thence North along the West lot line of Lot 59, Ingersoll Place to a point said point being 195 feet South of the North lot line of Lot 59, Ingersoll Place; thence East along a line 195 feet South of and parallel to the North lot lines of Lots 59 and 60, Ingersoll Place to its intersection with the East lot line of Lot 60, Ingersoll Place; thence South along said East lot line of Lot 60, Ingersoll Place to the Southwest Corner of Lot 61, Ingersoll Place; thence East along the South lot lines of Lots 61, 62, 63, 64, 65, Ingersoll Place to the Southwest Corner of Lot 66, Ingersoll Place; thence North along the West lot line of Lot 66, Ingersoll Place to a point said point being 120 feet South of the North lot line of Lot 66, Ingersoll Place; thence east along a line 120 South of and parallel to the North lot line of Lot 66, Ingersoll Place to its intersection with the West lot line of Lot 67, Ingersoll Place; thence South along said West lot line of Lot 67, Ingersoll Place to a point said point being 124 feet South of the North lot line of Lot 67, Ingersoll Place; thence East along a line 124 feet South of the North lot line of Lot 67, Ingersoll Place to its intersection with the West lot line of Lot 68, Ingersoll Place; thence South along the West lot line of Lot 68, Ingersoll Place to the Southwest Corner of Lot 68, Ingersoll Place; thence East along the South lot lines of Lots 68, 69, and 70, Ingersoll Place and continuing East along the Easterly projection of the South lot lines of said Lots 68, 69, and 70, Ingersoll Place to the East Right-of-Way line of 24th Street; thence

North along said east Right-of-way line of 24th Street to its intersection with the South Right-of-Way Line of High Street; thence East along said South Right-of-Way line of High Street to its intersection with the Southerly projection of the West lot line of Lot 5, Park Place, an Official Plat; thence North along said Southerly projection of the West lot line of Lot 5, Park Place and continuing North along the West lot line of Lot 5, Park Place and also continuing North along the Northerly projection of the West lot line of Lot 5, Park Place to its intersection with the South line of the North 132 feet of Lot 8, Official Plat, Southwest ¼, Section 5, Township 78 North, Range 24 West of the 5th P.M.; thence continuing North along a line 250 feet West of and parallel to the East lot line of Lot 8, Official Plat, Southwest ¼, Section 5, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the North lot line of Lot 8, Official Plat, Southwest ¼, Section 5, Township 78 North, Range 24 West of the 5th P.M.; thence East along said North lot line Lot 8, Official Plat, Southwest ¼, Section 5, Township 78 North, Range 24 West of the 5th P.M. and continuing East along the Easterly projection of the North lot line Lot 8, Official Plat, Southwest ¼, Section 5, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the North/South Centerline of Section 5, Township 78 North, Range 24 West of the 5th P.M. (also the Centerline of Right-of-Way known as former Harding Road); thence South along said North/South Centerline of Section 5, Township 78 North, Range 24 West of the 5th P.M. (also the Centerline of Right-of-Way known as former Harding Road) to its intersection with the Easterly projection of the North Right-of-Way line of Ingersoll Avenue; thence West along said Easterly projection of the North Right-of-Way line of Ingersoll Avenue and continuing West along the North Right-of-Way line of Ingersoll Avenue to its intersection with the Northerly projection of a line 100 feet West of and parallel to the East lot line of Lot 9, Official Plat, Southwest ¼, Section 5, Township 78 North, Range 24 West of the 5th P.M.; thence South along said Northerly projection of a line 100 feet West of and parallel to the East lot line of Lot 9, Official Plat, Southwest ¼, Section 5, Township 78 North, Range 24 West of the 5th P.M. and continuing South along a line 100 feet West of and parallel to the East lot line of Lot 9, Official Plat, Southwest ¼, Section 5, Township 78 North, Range 24 West of the 5th P.M. to the North Right-of-Way line of Grand Avenue; thence Southeasterly to a point on the South Right-of-Way line of Grand Avenue said point being 93 feet West of the East line of Lot 1, Official Plat, Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M.; thence South 225 feet along a line 93 feet West of and parallel to the East line of Lot 1, Official Plat, Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M.; thence East 18 feet along a line 225 feet South of and parallel to the South Right-of-Way line of Grand Avenue; thence South along a line 75 feet West of the East line of Lot 1, Official Plat, Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M. to the North Right-of-Way line of the Norfolk and Southern Railroad lying within Lot 1, Official Plat Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M.; thence Southwesterly along said North Right-of-Way line of the Norfolk and Southern Railroad lying within Lot 1, Official Plat Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M. to the West lot line Lot 1, Official Plat Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M.; thence Northwesterly along said West lot line of Lot 1, Official Plat Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M. to the Northeasterly Corner of the North Right-of-Way line of the Norfolk and Southern Railroad lying within Lot 2, Official Plat Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M. thence Southwesterly along said North Right-of-Way line of the Norfolk and Southern Railroad lying within Lot 2, Official Plat Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M. to the Southwesterly most Corner of Lot 3, August Home Plat 1, an Official Plat; thence North along West lot line of said Lot 3, August Home Plat 1 to its

intersection with the South lot line of Lot 2, August Home Plat 1; thence Northwesterly along said South line of Lot 2, August Home Plat 1 to the Southeasterly most Corner of Lot 1, August Home Plat 1; thence North/West/North along the East Lot line of Lot 1, August Home Plat 1 to North lot line of Lot 1, August Home Plat 1; thence West along said North lot line of Lot 1, August Home Plat 1 to the East Right-of-Way line of Terrace Road; thence North along said East Right-of-Way of Terrace Road to the South Right-of-Way line of Grand Avenue; thence West along said South Right-of-Way line of Grand Avenue to the West Right-of-Way line of Forest Drive; thence South along the West Right-of-Way line of Forest Drive to the Southeast Corner of Lot 2 Cummins Replat, an Official Plat; thence West along the South lot line of said Lot 2, Cummins Replat to the Northeast Corner of Lot 6, Cummins Replat; thence Southwesterly along the East lot line of said Lot 6, Cummins Replat to the Northeast Corner of Lot 5, Cummins Replat; thence West along the North lot line of Lot 5, Cummins Replat to a point said point being 15 feet West of the Northeast Corner of Lot 5, Cummins Replat; thence South along a line 73 East of and parallel to the West lot lines of Lots 6 and 5, Cummins Replat to the North lot line of Lot 4, Cummins Replat; thence East along said North lot line of Lot 4, Cummins Replat to the East lot line of Lot 4, Cummins Replat; thence South along said East lot line of Lot 4, Cummins Replat to a point said point being 20 feet South of the North lot line of Lot 4, Cummins Replat; thence West along a line 20 feet South of and parallel to the North lot line of Lot 4, Cummins Replat to the East lot line of Lot 34, The Polk & Hubbell Park, an Official Plat; thence North along said East lot line of Lot 34, The Polk & Hubbell Park and continuing North along the East lot line of Lot 71, The Polk & Hubbell Park to a point said point being 5 feet North of the South lot line of said Lot 71, The Polk & Hubbell Park; thence West 67 feet along a line 5 feet North of and parallel to the South lot line of said Lot 71, The Polk & Hubbell Park; thence South along a line 67 feet West of and parallel to the East lot lines of Lots 71 and 34. The Polk & Hubbell Park to the North Right-of-Way line of Forest Drive; thence West along said North Right-of-Way line of Forest Drive to the East lot line of Lot 36, The Polk & Hubbell Park; thence North along said East lot line of Lot 36, The Polk & Hubbell Park to a point said point being 53.5 feet South of the North lot line of Lot 36, The Polk & Hubbell Park; thence Southwesterly along a line from said point being 53.5 feet South of the North lot line of Lot 36, The Polk & Hubbell Park on the East lot line of Lot 36, The Polk & Hubbell Park to the Southeast Corner of Lot 39, The Polk & Hubbell Park; thence Southwesterly along the South lot line of said Lot 39, The Polk & Hubbell Park to the East Right-of-Way line of 27th Street; thence North along said East Right-of-Way line of 27th Street to its intersection with the Easterly projection of the South lot line of Lot 7, J.S. Polk's Subdivision, an Official Plat; thence West along said Easterly projection of the South lot line of Lot 7, J.S. Polk's Subdivision and continuing West along said South lot line of Lot 7, J.S. Polk's Subdivision its intersection with the East lot line of Lot 9, J.S. Polk's Subdivision; thence North along said East lot line of Lot 9, J.S. Polk's Subdivision to a point said point being 15 feet South of the North Lot line of said Lot 9, J.S. Polk's Subdivision; thence West along a line 15 feet South of and parallel to the North Lot line of said Lot 9, J.S. Polk's Subdivision and continuing West along a West projection of said line 15 feet South of and parallel to the North Lot line of said Lot 9, J.S. Polk's Subdivision to the West Right-of-Way line of 28th Street; thence North along said West Right-of-Way line of 28th Street to a point said point being 160 South of the North lot line of Lot 1, Owls Head, an Official Plat; thence West along a line 160 South of and parallel to the North lot line of Lot 1, Owls Head to its intersection with the East lot line of Lot 2, Owls Head; thence South along said East lot line of Lot 2, Owls Head to the South lot line of said Lot 2, Owls Head; thence West along said South lot lines of Lots 2, 3, 4, and 5, Owls Head to the East lot line of Lot 6, Owls Head; thence North along said East lot line of Lot 6, Owls Head to a point said point being

240 feet South of the North lot line of said Lot 6, Owls Head; thence West along a line 240 feet South of and parallel to said North lot line of Lot 6, Owls Head and continuing West along the Westerly projection of said line 240 feet South of and parallel to said North lot line of Lot 6, Owls Head to the West Right-of-Way line of 29th Street; thence West along a line 240 feet South of and parallel to the North lot line of Lot 1, Langan Place, an Official Plat to its intersection with the East lot line of Lot 9, Langan Place; thence South along said East lot line of Lot 9, Langan Place to a point said point being 500 feet South of the North lot line of Lot 9, Langan Place; thence West along a line 500 feet South of and parallel to the North lot line of Lot 9, Langan Place to its intersection with the East lot line of Lot 11, Langan Place; thence West along a line 61 feet South of and parallel to the North lot line of said Lot 11, Langan Place to its intersection with the East Right-of-Way line of 31st Street; thence West to the Southeast Corner of Lot 13, Langan Place; thence West along the South lot line of Lot 13, Langan Place to its intersection with the East lot line of Lot 4, Pierces Subdivision, an Official Plat; thence South along said East lot line of Lot 4, Pierces Subdivision to its intersection with the South lot line of said Lot 4, Pierces Subdivision; thence West along said South lot line of Lot 4, Pierces Subdivision to its intersection with the East lot line of Lot 3, Official Plat Lot 5, Pierces Subdivision; thence North along said East lot line of Lot 3, Official Plat Lot 5, Pierces Subdivision to a point said point being 280 feet North of the South lot line of Lot 3, Official Plat Lot 5, Pierces Subdivision; thence West along a line 280 feet North of and parallel to the South lot line of Lot 3, Official Plat Lot 5, Pierces Subdivision to the West lot line of Lot 3, Official Plat Lot 5, Pierces Subdivision; thence South along said West lot line of Lot 3, Official Plat Lot 5, Pierces Subdivision to the Northeast Corner of Lot 8, Block A, Lincoln Place Replat, an Official Plat; thence South along the East lot line of Lot 8, Block A, Lincoln Place Replat to its intersection with the South lot line of Lot 8, Block A, Lincoln Place Replat; thence Northwesterly along said South lot line of Lot 8, Block A, Lincoln Place Replat to its intersection with the West lot line of Lot 8, Block A, Lincoln Place Replat; thence North along said West lot line of Lot 8, Block A, Lincoln Place Replat to its intersection with the South lot line of the East 264 feet of Lot 1, Official Plat Lot 5, Pierces Subdivision; thence West along said South lot line of the East 264 feet of Lot 1, Official Plat Lot 5, Pierces Subdivision to its intersection with the East lot line of Lot 8, Portland Place, an Official Plat; thence North along said East lot line of Lot 8, Portland Place to its intersection with the North lot line of Lot 8, Portland Place; thence West along said North lot line of Lot 8, Portland Place to the East lot line of Lot 4, Portland Place; thence North along the East lot lines of Lot 4 and 3, Portland Place to its intersection with the South lot line of the West 165.66 feet of Lot 1, Official Plat Lot 5, Pierces Subdivision; thence West along said South lot line of the West 165.66 feet of Lot 1, Official Plat Lot 5, Pierces Subdivision to its intersection with the West lot line of Lot 1, Official Plat Lot 5, Pierces Subdivision; thence North along said West lot line of Lot 1, Official Plat Lot 5, Pierces Subdivision to its intersection with North Right-of-Way line of Bolton Drive; thence West along said North Right-of-Way line of Bolton Drive to its intersection with the East Right-of-Way line of 37th Street; thence North along said East Right-of-Way line of 37th Street to its intersection with the Easterly projection of a line 174 feet North of and parallel to the South lot line of Lot 2, Cowles Place, an Official Plat; thence West along said Easterly projection of a line 174 feet North of and parallel to the South lot line of Lot 2, Cowles Place and continuing West along a line 174 feet North of and parallel to the South lot line of Lot 2, Cowles Place to its intersection with the East lot line of Lot 14, Mason Place, an Official Plat; thence South along said East lot line of Lot 14, Mason Place to a point said point being 55 feet North of the Southeast Corner of Lot 14, Mason Place; thence West along a line 55 feet North of and parallel to the South lot lines of Lots 14, 13, 12, and 11, Mason Place to its intersection with the West lot line of Lot 11, Mason Place; thence North

along said West lot line of Lot 11, Mason Place and continuing North along the West lot line of Lot 2, Mason Place to its intersection with the South lot line of Lot 5, Mason Place; thence West along said South lot line of Lot 5, Mason Place to the East Right-of-Way line of 38th Street; thence North along said East Right-of-Way line of 38th Street to its intersection with the Easterly projection of the South lot line of Lot 3, Chamberlain Place, an Official Plat; thence West along said Easterly projection of the South lot line of Lot 3, Chamberlain Place continuing West along the South lot line of Lot 3, Chamberlain Place to its intersection with the East line of the West ½ of Lot 2, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M.; thence South along said East line of the West ½ of Lot 2, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to a point said point being 330 feet North of the South line of the West ½ of Lot 2, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M.; thence West along a line 330 feet North of and parallel to the South line of the West ½ of Lot 2, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the East lot line of Lot 3, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M.; thence South along said East lot line of Lot 3, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the South lot line of Lot 3, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. thence West along said South lot line of Lot 3, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. and continuing West along the South lot line of Lot 4, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to a point said point being 165 feet West of the East lot line of Lot 4, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M.; thence North along a line 165 feet West of and parallel to the East lot line of Lot 4, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to a point said point being 200 feet North of the South lot line of Lot 4, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M.; thence West along a line 200 feet North of and parallel to the South lot line of Lot 4, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the East lot line of the Unreplatted Part Lot 5, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M.; thence North along said East lot line of the Unreplatted Part Lot 5, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to a point said point being 77 feet North of the South lot line of the Unreplatted Part Lot 5, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M.; thence West along a line 77 feet North of and parallel to the South lot line of the Unreplatted Part Lot 5, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the West lot line of the Unreplatted Part Lot 5, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M.; thence North along said West lot line of the Unreplatted Part Lot 5, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to the Southeast Corner of Lot 1, Bray Place, an Official Plat; thence Northwesterly along the Southwesterly lot line of said Lot 1, Bray Place to the Southeasterly Corner of Lot 2, Bray Place; thence Southwesterly along the Southeasterly lot line of Lot 2, Bray Place and continuing Southwesterly along a Southwesterly projection of the Southeasterly lot line of Lot 2, Bray Place to its intersection

with the Westerly Right-of-Way line of Tonawanda Drive; thence Southeasterly along said Westerly Right-of-Way line of Tonawanda Drive to its intersection with the South lot line of Lot 6, Browns Woods Plat 2, an Official Plat; thence West along said South lot line of Lot 6, Browns Woods Plat 2 to its intersection with the East lot line of Lot 2, Browns Woods Plat 2; thence South along said East lot line of Lot 2, Browns Woods Plat 2 to its intersection with the South lot line of Lot 2, Browns Woods Plat 2; thence West along said South lot line of Lot 2, Browns Woods Plat 2 to its intersection with the East Right-of-Way line of 42nd Street; thence North along said East Right-of-Way line of 42nd Street to its intersection with the Easterly projection of the South lot line of Lot 2, Mennig Place; thence West along said Easterly projection of the South lot line of Lot 2, Mennig Place and continuing West along the South lot line of Lot 2, Mennig Place to its intersection with the West lot line of Lot 2, Mennig Place; thence North along said West lot line of Lot 2, Mennig Place to a point said point being 378 feet South of the North lot line of Lot 15, Mennig Place; thence West along a line 378 feet South of and parallel to the North lot line of Lot 15, Mennig Place to the East lot line of Lot 16, Mennig Place; thence North along said East lot line of Lot 16, Mennig Place to a point said point being 305 feet South of the North lot line of Lot 16, Mennig Place; thence West along a line 305 feet South of and parallel to the North lot line of Lot 16, Mennig Place to the Point of Beginning, all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

WHEREAS, by Ordinance No. 15,119, passed July 9, 2012, the City Council of the City of Des Moines, Iowa, provided for the division of revenue from taxes within the Ingersoll-Grand Commercial Urban Renewal Area pursuant to Section 403.19 of the Code of Iowa, as amended; and,

WHEREAS, on November 4, 2019, by Resolution and Roll Call No. 19-1763, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law, adopted the Fifth Amendment to the Ingersoll-Grand Commercial Urban Renewal Plan which amended and reduced the size of the Ingersoll-Grand Commercial Urban Renewal Area to be as follows:

Ingersoll-Grand Commercial Urban Renewal Area (remaining area after the Fifth Amendment)

Beginning at a point on the West lot line of Lot 16, Mennig Place, an Official Plat said point being 305 feet South of the Northwest corner of said Lot 16, Mennig Place; thence North along said West lot line of Lot 16, Mennig Place to its intersection with the South Right-of-Way line of Grand Avenue; thence East along said South Right-of-Way line of Grand Avenue to its intersection with the Southerly projection of the East Right-of-Way line of 43rd Street; thence North along said Southerly projection of the East Right-of-Way line of 43rd Street and continuing North along said East Right-of-Way line of 43rd Street to a point on said East Right-of-Way line of 43rd Street said point being 179 feet North of the South line of Lot 2, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M.; thence East along a line 179 feet North of and parallel to said South line of Lot 2, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M. to its intersection with the West lot line of Lot 1, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M.; thence North along said West lot line of Lot 1, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M. to a point said point being 250 feet North of the South lot line of Lot 1, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M.; thence East along a line 250 feet North of and parallel to the South lot line of Lot 1, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M. to a point said point being 53 feet East of said West lot line of Lot 1, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M.; thence North

along a line 53 feet West of and parallel to the West lot line of Lot 1, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M. to the Southeast corner of Lot 11, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M.; thence North along the East lot line of Lot 11, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M. to a point said point being 150 feet South of the Northeast corner of Lot 11, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M.; thence west along a line 150 South of and parallel to the North line of Lot 11, Official Plat of the South ½, Southeast ¼, Southeast ¼, Section 1, Township 78 North, Range 25 West of the 5th P.M. to its intersection with the East Right-of-Way line of 43rd Street; thence North along said East Right-of-Way line of 43rd Street and continuing North along the Northerly projection of said East Right-of-Way line of 43rd Street to its intersection with the North Right-of-Way line of Ingersoll Avenue; thence East along said North Right-of-Way line of Ingersoll Avenue to its intersection with the West lot line of Lot 16, Block A, Gil-Mar Park, an Official Plat; thence North along said West lot line of Lot 16, Block A, Gil-Mar Park to its intersection with the South lot line of West lot line of Lot 2, Block A, Gil-Mar Park; thence Southeasterly along said South lot line of Lot 2, Block A, Gil-Mar Park to a point said point being 24 feet Northwesterly from the Southeast corner of said Lot 2, Block A, Gil-Mar Park; thence North along a line 24 feet West of and parallel to the East lot line of Lot 2, Block A, Gil-Mar Park to its intersection with the South Right-of-Way line of Harwood Drive; thence Southeasterly along said South right-of-Way line of Harwood Drive and continuing Southeasterly along the Southeasterly projection of said South Right-of-Way of Harwood Drive to its intersection with the East Right-of-Way line of 42nd Street; thence North along said East Right-of-Way line of 42nd Street to a point said point being 300 feet North of the North Right-of Way line of Ingersoll Avenue; thence East along a line 300 feet North of and parallel to said North Right-of-Way line of Ingersoll Avenue to its intersection with the West Right-of-Way line of 41st Street; thence South along said West Right-of-Way line of 41st Street to a point said point being 200 feet North of the North Right-of-Way line of Ingersoll Avenue; thence East along a line 200 feet North of and parallel to said North Right-of-Way line of Ingersoll Avenue to its intersection with the West lot line of Lot 10, Greenwood Park, an Official Plat; thence South along said West lot line of Lot 10, Greenwood Park to a point said point being 82.5 feet North of the North Right-of-Way line of Ingersoll Avenue; thence East along a line 82.5 feet North of and parallel to the North Right-of-Way line of Ingersoll Avenue to its intersection with the East Right-of-Way line of 40th Street; thence North along said East Right-of-Way line of 40th Street to a point said point being 200 feet North of the North Right-of-Way line of Ingersoll Avenue; thence East along a line 200 feet North of and parallel to the North Right-of-Way line of Ingersoll Avenue to its intersection with the West lot line of Lot 14, Greenwood Park; thence North along said West lot line of Lot 14, Greenwood Park to a point said point being 282.5 feet North of the North Right-of-Way line of Ingersoll Avenue; thence East along a line 282.5 feet North of and parallel to the North Right-of-Way line of Ingersoll Avenue to its intersection with the West Right-of-Way line of 39th Street; thence South along said West Right-of-Way line of 39th Street to a point said point being 150 feet North of the North Right-of-Way line of Ingersoll Avenue; thence East along a line 150 feet North of and parallel to the North Right-of-Way line of Ingersoll Avenue to the Southwest Corner of Lot 9, Rhoads Heights, an Official Plat; thence North along the West lot line of said Lot 9, Rhoads Heights to the Northwest Corner of said Lot 9, Rhoads Heights; thence East along the North lot line of Lot 9, Rhoads Heights and continuing East along the Easterly projection of the North lot line of Lot 9, Rhoads Heights to its intersection with the East Right-of-Way line of 38th Street; thence North along

said East Right-of-Way line of 38th Street to the Northwest Corner of Lot 19, Rhoads Heights; thence East along the North lot line of Lot 19, Rhoads Heights to the Northeast Corner of Lot 19, Rhoads Heights; thence South along the East lot lines of Lots 19, 20, 21, Rhoads Heights to its intersection with the Westerly projection of the North lot line of Lot 33, Rhoads Heights; thence East along the said Westerly projection of the North lot line of Lot 33, Rhoads Heights and continuing East along the North lot line of Lot 33, Rhoads Heights and also continuing East along the Easterly projection of the North lot line of Lot 33, Rhoads Heights to its intersection with the East Right-of-Way line of 37th Street; thence North along said East Right-of-Way line of 37th Street to the Northwest Corner of Lot 43, Rhoads Heights; thence East along the North lot line of said Lot 43, Rhoads Heights to its intersection with the West lot line of Lot 16, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M.; thence North along said West lot line of Lot 16, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M. to the Northwest Corner of said Lot 16, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M.; thence East along the North lot line of Lot 16, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M. and continuing East along the Easterly projection of the North lot line of Lot 16, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M. to the Northwest Corner of Lot 6, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M.; thence east along the North lot line of Lot 6, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the West lot line of Lot 28, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M.; thence North along said West lot line of Lot 28, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M. to the Southwest Corner of Lot 27, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M.; thence North along the West lot line of Lot 27, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M. to a point said point being 55 feet North of the Southwest Corner Lot 27, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M.; thence East along a line 55 feet North of and parallel to the South lot line of Lot 27, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M. and continuing East along the Easterly projection of said line 55 North of and parallel to the South lot line of Lot 27, Official Plat Lot 1, Official Plat Southeast ¼, Southwest ¼, Section 6, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the East Right-of-Way line of 35th Street; thence North along said East Right-of-Way line of 35th Street to a point said point being 20 feet South of the Northwest Corner of Lot 19, Stratford, an Official Plat; thence Northeasterly along a line to a point said point being 10 feet South of and 10 feet East of the Northwest Corner of Lot 19, Stratford; thence East along a line 10 feet South of and parallel to the North lot line of Lot 19, Stratford to a point said point being 80 feet East of the West lot line of Lot 19, Stratford; thence North along a line 80 feet East of and parallel to the West lot line of Lot 19, Stratford to its intersection with the South Right-of-Way line of Woodland Avenue; thence East along said South Right-of-Way line of Woodland Avenue to its intersection with the West Right-of-Way line of 34th Street; thence South along said West Right-of-Way line of 34th Street to its intersection with the Westerly projection of the North lot line of Lot 1, Crescent Place, an Official Plat; thence East along said Westerly projection of the North lot line of Lot 1, Crescent Place and continuing

East along the North lot line of Lot 1, Crescent Place to a point said point being 54.83 feet West of the Southeast Corner of Lot 2, Crescent Place; thence North along a line 54.83 feet West of parallel to the East lot line of Lot 2, Crescent Place; to a point said point being 36.5 feet North of the South lot line of Lot 2, Crescent Place; thence East along a line 36.5 feet North of and parallel to the South lot line of Lot 2, Crescent Place and continuing East along the Easterly extension of a line 36.5 feet North of and parallel to the South lot line of Lot 2, Crescent Place to its intersection with the West lot line of Lot 3, Crescent Place; thence North along said West lot line of Lot 3, Crescent Place to the Northwest Corner of Lot 3, Crescent Place; thence East along the North lot line of Lot 3, Crescent Place to its intersection with the West Lot line of Lot 12, Block 1, Garver Place; thence North along said West Lot line of Lot 12, Block 1, Garver Place to the Southwest Corner of Lot 1, Block 1, Garver Place; thence North along the West lot line of said Lot 1, Block 1, Garver Place to a point said point being 174 feet North of the South lot line of Lot 1, Block 1, Garver Place; thence East along a line 174 feet North of and parallel to the South lot line of Lot 1, Block 1, Garver Place to its intersection with the East lot line of Lot 1, Block 1, Garver Place; thence South along said East lot line of Lot 1, Block 1, Garver Place and continuing South along the East lot line of Lot 11, Block 1, Garver Place to the Northwest Corner of Lot 10, Block 1, Garver Place; thence East along the North lot line of Lot 10, Block 1, Garver Place and continuing East along the North lot line of Lot 9, Block 1, Garver Place to its intersection with the West Right-of-Way line of 31st Street; thence South along said West Right-of-Way line of 31st Street to its intersection with the Westerly projection of the centerline of the Vacated East/West Alley Right-of-Way located in Block 3, McCain Place, an Official Plat; thence East along said Westerly projection of the centerline of the Vacated East/West Alley Right-of-Way located in Block 3, McCain Place and continuing along the centerline of the Vacated East/West Alley Right-of-Way located in Block 3, McCain Place to its intersection with the West Right-of-Way line of 29th Street; thence East along the Westerly projection of the centerline of the Vacated East/West Alley Right-of-Way located in Block 4, McCain Place and continuing along the centerline of the Vacated East/West Alley Right-of-Way located in Block 4, McCain Place to its intersection with the West Right-of-Way line of 28th Street; thence South along said West Right-of-Way line of 28th Street to its intersection with the Westerly projection of the South Right-of-Way line of Linden Street; thence East along said Westerly projection of the South Right-of-Way line of Linden Street and continuing East along the South Right-of-Way line of Linden Street to the Southwest Corner of Lot 57, Ingersoll Place, an Official Plat; thence East along the South lot lines of Lots 57 and 58, Ingersoll Place to the Southwest Corner of Lot 59, Ingersoll Place; thence North along the West lot line of Lot 59, Ingersoll Place to a point said point being 195 feet South of the North lot line of Lot 59, Ingersoll Place; thence East along a line 195 feet South of and parallel to the North lot lines of Lots 59 and 60, Ingersoll Place to its intersection with the East lot line of Lot 60, Ingersoll Place; thence South along said East lot line of Lot 60, Ingersoll Place to the Southwest Corner of Lot 61, Ingersoll Place; thence East along the South lot lines of Lots 61, 62, 63, 64, 65, Ingersoll Place to the Southwest Corner of Lot 66, Ingersoll Place; thence North along the West lot line of Lot 66, Ingersoll Place to a point said point being 120 feet South of the North lot line of Lot 66, Ingersoll Place; thence east along a line 120 South of and parallel to the North lot line of Lot 66, Ingersoll Place to its intersection with the West lot line of Lot 67, Ingersoll Place; thence South along said West lot line of Lot 67, Ingersoll Place to a point said point being 124 feet South of the North lot line of Lot 67, Ingersoll Place; thence East along a line 124 feet South of the North lot line of Lot 67, Ingersoll Place to its intersection with the West lot line of Lot 68, Ingersoll Place; thence South along the West lot line of Lot 68, Ingersoll Place to the Southwest Corner of Lot 68, Ingersoll Place; thence East along the South lot lines of Lots 68, 69, and 70,

Ingersoll Place and continuing East along the Easterly projection of the South lot lines of said Lots 68, 69, and 70, Ingersoll Place to the East Right-of-Way line of 24th Street; thence North along said east Right-of-way line of 24th Street to its intersection with the South Right-of-Way Line of High Street; thence East along said South Right-of-Way line of High Street to its intersection with the Southerly projection of the West lot line of Lot 5, Park Place, an Official Plat; thence North along said Southerly projection of the West lot line of Lot 5, Park Place and continuing North along the West lot line of Lot 5, Park Place and also continuing North along the Northerly projection of the West lot line of Lot 5, Park Place to its intersection with the South line of the North 132 feet of Lot 8, Official Plat, Southwest ¼, Section 5, Township 78 North, Range 24 West of the 5th P.M.; thence continuing North along a line 250 feet West of and parallel to the East lot line of Lot 8, Official Plat, Southwest ¼, Section 5, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the North lot line of Lot 8, Official Plat, Southwest ¼, Section 5, Township 78 North, Range 24 West of the 5th P.M.; thence East along said North lot line Lot 8, Official Plat, Southwest ¼, Section 5, Township 78 North, Range 24 West of the 5th P.M. and continuing East along the Easterly projection of the North lot line Lot 8, Official Plat, Southwest ¼, Section 5, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the North/South Centerline of Section 5, Township 78 North, Range 24 West of the 5th P.M. (also the Centerline of Right-of-Way known as former Harding Road); thence South along said North/South Centerline of Section 5, Township 78 North, Range 24 West of the 5th P.M. (also the Centerline of Right-of-Way known as former Harding Road) to its intersection with the Easterly projection of the North Right-of-Way line of Ingersoll Avenue; thence West along said Easterly projection of the North Right-of-Way line of Ingersoll Avenue and continuing West along the North Right-of-Way line of Ingersoll Avenue to its intersection with the Northerly projection of a line 100 feet West of and parallel to the East lot line of Lot 9, Official Plat, Southwest ¼, Section 5, Township 78 North, Range 24 West of the 5th P.M.; thence South along said Northerly projection of a line 100 feet West of and parallel to the East lot line of Lot 9, Official Plat, Southwest ¼, Section 5, Township 78 North, Range 24 West of the 5th P.M. and continuing South along a line 100 feet West of and parallel to the East lot line of Lot 9, Official Plat, Southwest ¼, Section 5, Township 78 North, Range 24 West of the 5th P.M. to the North Right-of-Way line of Grand Avenue; thence Southeasterly to a point on the South Right-of-Way line of Grand Avenue said point being 93 feet West of the East line of Lot 1, Official Plat, Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M.; thence South 225 feet along a line 93 feet West of and parallel to the East line of Lot 1, Official Plat, Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M.; thence East 17.75 feet along a line 225 feet South of and parallel to the South Right-of-Way line of Grand Avenue; thence South along a line 75 feet West of the East line of Lot 1, Official Plat, Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M. to the North Right-of-Way line of the Norfolk and Southern Railroad lying within Lot 1, Official Plat Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M.; thence Southwesterly along said North Right-of-Way line of the Norfolk and Southern Railroad lying within Lot 1, Official Plat Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M. to the West lot line Lot 1, Official Plat Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M.; thence Northwesterly along said West lot line of Lot 1, Official Plat Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M. to the Northeasterly Corner of the North Right-of-Way line of the Norfolk and Southern Railroad lying within Lot 2, Official Plat Northwest ¼, Section 8, Township 78 North, Range 24 West of the 5th P.M. thence Southwesterly along said North Right-of-Way line of the Norfolk and Southern Railroad lying within Lot 2, Official Plat Northwest ¼, Section 8, Township 78 North,

Range 24 West of the 5th P.M. to the Southwesterly most Corner of Lot 3, August Home Plat 1, an Official Plat; thence North along West lot line of said Lot 3, August Home Plat 1 to its intersection with the South lot line of Lot 2, August Home Plat 1; thence Northwesterly along said South line of Lot 2, August Home Plat 1 to the Southeasterly most Corner of Lot 1, August Home Plat 1; thence North/West/North along the East Lot line of Lot 1, August Home Plat 1 to North lot line of Lot 1, August Home Plat 1; thence West along said North lot line of Lot 1, August Home Plat 1 to the East Right-of-Way line of Terrace Road; thence North along said East Right-of-Way of Terrace Road to the South Right-of-Way line of Grand Avenue; thence West along said South Right-of-Way line of Grand Avenue to the West Right-of-Way line of Forest Drive; thence South along the West Right-of-Way line of Forest Drive to the Southeast Corner of Lot 2 Cummins Replat, an Official Plat; thence West along the South lot line of said Lot 2, Cummins Replat to the Northeast Corner of Lot 6, Cummins Replat; thence Southwesterly along the East lot line of said Lot 6, Cummins Replat to the Northeast Corner of Lot 5, Cummins Replat; thence West along the North lot line of Lot 5, Cummins Replat to a point said point being 15 feet West of the Northeast Corner of Lot 5, Cummins Replat; thence South along a line 73 feet East of and parallel to the West lot lines of Lots 6 and 5, Cummins Replat to the North lot line of Lot 4, Cummins Replat; thence East along said North lot line of Lot 4, Cummins Replat to the East lot line of Lot 4, Cummins Replat; thence South along said East lot line of Lot 4, Cummins Replat to a point said point being 20 feet South of the North lot line of Lot 4, Cummins Replat; thence West along a line 20 feet South of and parallel to the North lot line of Lot 4, Cummins Replat to the East lot line of Lot 34, The Polk & Hubbell Park, an Official Plat; thence North along said East lot line of Lot 34, The Polk & Hubbell Park and continuing North along the East lot line of Lot 71, The Polk & Hubbell Park to a point said point being 5 feet North of the South lot line of said Lot 71, The Polk & Hubbell Park; thence West 67 feet along a line 5 feet North of and parallel to the South lot line of said Lot 71, The Polk & Hubbell Park; thence South along a line 67 feet West of and parallel to the East lot lines of Lots 71 and 34; The Polk & Hubbell Park to the North Right-of-Way line of Forest Drive; thence West along said North Right-of-Way line of Forest Drive to the East lot line of Lot 36, The Polk & Hubbell Park; thence North along said East lot line of Lot 36, The Polk & Hubbell Park to a point said point being 53.5 feet South of the North lot line of Lot 36, The Polk & Hubbell Park; thence Southwesterly along a line from said point being 53.5 feet South of the North lot line of Lot 36, The Polk & Hubbell Park on the East lot line of Lot 36, The Polk & Hubbell Park to the Southeast Corner of Lot 39, The Polk & Hubbell Park; thence Southwesterly along the South lot line of said Lot 39, The Polk & Hubbell Park to the East Right-of-Way line of 27th Street; thence North along said East Right-of-Way line of 27th Street to its intersection with the Easterly projection of the South lot line of Lot 7, J.S. Polk's Subdivision, an Official Plat; thence West along said Easterly projection of the South lot line of Lot 7, J.S. Polk's Subdivision and continuing West along said South lot line of Lot 7, J.S. Polk's Subdivision its intersection with the East lot line of Lot 9, J.S. Polk's Subdivision; thence North along said East lot line of Lot 9, J.S. Polk's Subdivision to a point said point being 15 feet South of the North Lot line of said Lot 9, J.S. Polk's Subdivision; thence West along a line 15 feet South of and parallel to the North Lot line of said Lot 9, J.S. Polk's Subdivision and continuing West along a West projection of said line 15 feet South of and parallel to the North Lot line of said Lot 9, J.S. Polk's Subdivision to the West Right-of-Way line of 28th Street; thence North along said West Right-of-Way line of 28th Street to a point said point being 160 South of the North lot line of Lot 1, Owls Head, an Official Plat; thence West along a line 160 South of and parallel to the North lot line of Lot 1, Owls Head to its intersection with the East lot line of Lot 2, Owls Head; thence South along said East lot line of Lot 2, Owls Head to the South lot line of said Lot 2, Owls Head; thence West

along said South lot lines of Lots 2, 3, 4, and 5, Owls Head to the East lot line of Lot 6, Owls Head; thence North along said East lot line of Lot 6, Owls Head to a point said point being 240 feet South of the North lot line of said Lot 6, Owls Head; thence West along a line 240 feet South of and parallel to said North lot line of Lot 6, Owls Head and continuing West along the Westerly projection of said line 240 feet South of and parallel to said North lot line of Lot 6, Owls Head to the West Right-of-Way line of 29th Street; thence West along a line 240 feet South of and parallel to the North lot line of Lot 1, Langan Place, an Official Plat to its intersection with the East lot line of Lot 9, Langan Place; thence South along said East lot line of Lot 9, Langan Place to a point said point being 500 feet South of the North lot line of Lot 9, Langan Place; thence West along a line 500 feet South of and parallel to the North lot line of Lot 9, Langan Place to its intersection with the East lot line of Lot 11, Langan Place; thence West along a line 61 feet South of and parallel to the North lot line of said Lot 11, Langan Place to its intersection with the East Right-of-Way line of 31st Street; thence West to the Southeast Corner of Lot 13, Langan Place; thence West along the South lot line of Lot 13, Langan Place to its intersection with the East lot line of Lot 4, Pierces Subdivision, an Official Plat; thence North along the East lot line of said lot 4 to the South Right of Way Line of Grand Avenue; Thence East along said South Right of Way line to the Southerly extension of the West line of Lot 1 in Parriot Place, an Official Plat; Thence North along said Southerly extension to the Southwest corner of said Lot 1, said Southwest Corner being on the North Right-of-Way line of Grand Avenue; thence West along said North Right-of-Way to the East lot line of Lot 22 of the Official Plat of the SE ¼ of the SW ¼ of Section 6, Township 78 North, Range 24 West of the 5th P.M., thence North along said East lot line, 292 feet; thence West along a line that is 292 feet North of and parallel with the South lot line of Lots 22 and 20 of said Official Plat of the SE ¼ of the SW ¼ of Section 6, Township 78 North, Range 24 West of the 5th P.M., to the West lot line of said Lot 20; thence North along said West lot line, also being the East lot line of Lot 19 in said Official Plat of the SE ¼ of the SW ¼ of Section 6, Township 78 North, Range 24 West of the 5th P.M., to a line that is 300 feet North of and parallel with the South lot line of said Lot 19; thence West along said parallel line to West lot line of said Lot 19; thence South along said West lot line to the said North Right-of-Way line of Grand Avenue; thence West along said North Right-of-Way line to the West Right-of-Way line of 39th Street; thence North along said West Right-of-Way line to the North line of the South 171 feet of Lot 13 of said Greenwood Park; thence West along said North line to the West lot line of said Lot 13; thence South along said West lot line to said North Right-of-Way line; thence West along said North Right-of-Way line to the East line of Lot 9 of said Greenwood Park; thence North along said East line to North line of the South 210 feet of Lots 9 and 8 of said Greenwood Park; thence West along said North line to the West line of the East 23 feet of said Lot 8; thence South along said West line and its Southerly extension to the South Right-of-Way line of Grand Avenue; thence East along said South Right-of-Way line to the West Right-of-Way line of 38th Place; thence South along said West Right-of-Way line to the South lot line of Lot 3 of said Chamberlain Place; thence West along said South lot line of Lot 3, Chamberlain Place to its intersection with the East line of the West ½ of Lot 2, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M.; thence South along said East line of the West ½ of Lot 2, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to a point said point being 330 feet North of the South line of the West ½ of Lot 2, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M.; thence West along a line 330 feet North of and parallel to the South line of the West ½ of Lot 2, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the East lot line of Lot

3, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M.; thence South along said East lot line of Lot 3, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the South lot line of Lot 3, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. thence West along said South lot line of Lot 3, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. and continuing West along the South lot line of Lot 4, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to a point said point being 165 feet West of the East lot line of Lot 4, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M.; thence North along a line 165 feet West of and parallel to the East lot line of Lot 4, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to a point said point being 200 feet North of the South lot line of Lot 4, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M.; thence West along a line 200 feet North of and parallel to the South lot line of Lot 4, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the East lot line of the Unreplatted Part Lot 5, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M.; thence North along said East lot line of the Unreplatted Part Lot 5, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to a point said point being 77 feet North of the South lot line of the Unreplatted Part Lot 5, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M.; thence West along a line 77 feet North of and parallel to the South lot line of the Unreplatted Part Lot 5, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to its intersection with the West lot line of the Unreplatted Part Lot 5, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M.; thence North along said West lot line of the Unreplatted Part Lot 5, Official Plat, North ½, Northwest ¼, Northwest ¼, Section 7, Township 78 North, Range 24 West of the 5th P.M. to the Southeast Corner of Lot 1, Bray Place, an Official Plat; thence Northwesterly along the Southwesterly lot line of said Lot 1, Bray Place to the Southeasterly Corner of Lot 2, Bray Place; thence Southwesterly along the Southeasterly lot line of Lot 2, Bray Place and continuing Southwesterly along a Southwesterly projection of the Southeasterly lot line of Lot 2, Bray Place to its intersection with the Westerly Right-of-Way line of Tonawanda Drive; thence Southeasterly along said Westerly Right-of-Way line of Tonawanda Drive to its intersection with the South lot line of Lot 6, Browns Woods Plat 2, an Official Plat; thence West along said South lot line of Lot 6, Browns Woods Plat 2 to its intersection with the East lot line of Lot 2, Browns Woods Plat 2; thence South along said East lot line of Lot 2, Browns Woods Plat 2 to its intersection with the South lot line of Lot 2, Browns Woods Plat 2; thence West along said South lot line of Lot 2, Browns Woods Plat 2 to its intersection with the East Right-of-Way line of 42nd Street; thence North along said East Right-of-Way line of 42nd Street to its intersection with the Easterly projection of the South lot line of Lot 2, Mennig Place; thence West along said Easterly projection of the South lot line of Lot 2, Mennig Place and continuing West along the South lot line of Lot 2, Mennig Place to its intersection with the West lot line of Lot 2, Mennig Place; thence North along said West lot line of Lot 2, Mennig Place to a point said point being 378 feet South of the North lot line of Lot 15, Mennig Place; thence West along a line 378 feet South of and parallel to the North lot line of Lot 15, Mennig Place to the East lot line of Lot 16, Mennig Place; thence North along said East lot line of Lot 16, Mennig Place to a point said point being 305

feet South of the North lot line of Lot 16, Mennig Place; thence West along a line 305 feet South of and parallel to the North lot line of Lot 16, Mennig Place to the Point of Beginning, all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

WHEREAS, expenditures and indebtedness have been incurred, and additional expenditures and indebtedness are anticipated to be incurred by the City of Des Moines, Iowa, to finance said Urban Renewal Project; and

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to continue to provide for the division of revenue from taxation in the amended Urban Renewal Area as described above, in accordance with the provisions of Section 403.19 of the Code of Iowa, as amended.

WHEREAS, the following enactment is necessary to accomplish the objectives described above and in the Ingersoll-Grand Commercial Urban Renewal Plan.

NOW THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA, AS FOLLOWS:

Section 1. The City Council hereby makes the following findings regarding the purpose and intent of this ordinance:

a) The purpose of this ordinance is to amend and shrink the exterior boundaries of the Ingersoll-Grand Commercial Urban Renewal Area to match the amended Urban Renewal Area as provided by the Fifth Amendment to the Ingersoll-Grand Commercial Urban Renewal Plan adopted by the City Council of the City of Des Moines on November 4, 2019.

b) The intent of this ordinance is for the base value of the Ingersoll-Grand Commercial Urban Renewal Area to be reduced by the amount contributed to the original base value by all those parcels that are removed from the Urban Renewal Area by the Fifth Amendment and this Ordinance.

c) This ordinance shall be applied prospectively only, commencing on the effective date of this Ordinance as provided in Section 3 of this Ordinance.

d) This Ordinance is to be applied and construed in accordance with this Section.

Section 2. Ordinance No. 15,119 is hereby amended to read as follows:

Sec. 1. That the taxes levied on the taxable property in the Urban Renewal Area known as the Ingersoll-Grand Commercial Urban Renewal Area, as amended by the Fifth Amendment to the Ingersoll-Grand Commercial Urban Renewal Plan and legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, Iowa, County of Polk, Des Moines Independent Community School District, Des Moines Area Community College, and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Sec. 2. That portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in said Urban Renewal Area upon the total sum of the assessed value of the taxable property in said Urban Renewal Area as shown on the assessment roll as of January 1, 2014, shall be allocated to and when collected be paid into the fund into which all other property taxes are paid for the respective taxing district, as taxes by or for said taxing district.

Sec. 3. That portion of the taxes each year in excess of the base period taxes determined as provided in Sec. 2 of this Ordinance shall be allocated to and when collected be paid into a special tax increment fund hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of Sections 403.9 and 403.12 of the Code of Iowa, as amended, incurred by the City of Des Moines to finance or refinance in whole or in part the Ingersoll-Grand Commercial Urban Renewal

Project, except that taxes for the regular and voter-approved physical plant and equipment levy of a school district imposed pursuant to Section 298.2 and taxes for the instructional support program of a school district imposed pursuant to Section 257.19, taxes for the payment of bonds and interest of each taxing district, and taxes imposed under Section 346.27, subsection 22, related to joint county-city buildings shall be collected against all taxable property within the Urban Renewal Area without any limitation as hereinabove provided.

Sec. 4. All taxes levied and collected upon the taxable property in said Ingersoll-Grand Commercial Urban Renewal Area shall be paid into the funds of the taxing districts as taxes by or for said taxing districts in the same manner as all other property taxes unless or until the total assessed valuation of the taxable property in said Urban Renewal Area shall exceed the total assessed value as of January 1, 2014, of the taxable property in said Urban Renewal Area.

Sec. 5. At such time as the loans, advances, bonds and interest thereon and indebtedness of the City of Des Moines referenced in Sec. 3 of this Ordinance have been paid, all monies thereafter received from taxes upon the taxable property in the Urban Renewal Area known as the Ingersoll-Grand Commercial Urban Renewal Area shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property.

Sec. 6. The provisions of this Ordinance are intended and shall be construed so as to fully implement the provisions of Section 403.19 of the Code of Iowa, as amended, with respect to the division of taxes from property within the Urban Renewal Area as described above. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the Code of Iowa with reference to said Urban Renewal Area and the territory therein.

Sec. 7. This Ordinance shall be in effect upon its final passage, approval and publication as provided by law.

Section 3. This Ordinance shall be in effect upon the later of: i) its final passage, approval and publication as provided by law; or ii) January 5, 2020.

FORM APPROVED:

_____

Roger K. Brown
Assistant City Attorney

Passed November 14, 2019
Effective January 5, 2020

ORDINANCE NO. 15,823

AN ORDINANCE providing that general property taxes levied and collected each year on all property located within the 38th and Grand TIF District No. 1, a subarea within the 38th and Grand Urban Renewal Area in the City of Des Moines, County of Polk, State of Iowa, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, Des Moines Area Community College, and other taxing districts, be paid to a special fund for payment of principal and interest on loans, monies advanced to and indebtedness, including bonds issued or to be issued, incurred by the City of Des Moines in connection with the 38th and Grand Urban Renewal Project.

WHEREAS, the City Council of the City of Des Moines, Iowa, after public notice and hearing as prescribed by law and pursuant to Resolution passed and approved November 4, 2019, adopted an urban renewal plan titled "38th and Grand Urban Renewal Plan" for an urban renewal project (the "38th and Grand Urban Renewal Project") within the 38th and Grand Urban Renewal Area; and,

WHEREAS, expenditures and indebtedness are anticipated to be incurred by the City of Des Moines, Iowa, in the future to finance undertakings by the City of Des Moines to implement the

38th and Grand Urban Renewal Project pursuant to the 38th and Grand Urban Renewal Plan; and,

WHEREAS, the City Council of the City of Des Moines, Iowa, desires to provide for the division of revenue from taxation within a subarea of the 38th and Grand Urban Renewal Area, designated as the 38th and Grand TIF District No. 1 and more specifically described as follows, in accordance with the provisions of Section 403.19 of the 2019 Code of Iowa, as amended.

38th and Grand TIF District No. 1

Beginning at the intersection of the South Right-of-Way line of Grand Avenue and the East Right-of-Way line of 38th Place; Thence South along said East Right-of-Way to the South line of Lot 5, Mason Place, an Official Plat; Thence East along said South line to the East line of Lot 6 of said Mason Place; Thence South along the East line of Lots 6 through 10 in said Mason Place to North line of the South 55 Feet of Lots 11 through 14 in said Mason Place; Thence East along said North line to the East line of said Lot 14; Thence North along said East line to the North line of said Lots 14 and 13; Thence West along said North line to the East line of Lot 2 in said Mason Place; Thence North along said East line to said South Right-of-Way line of Grand Avenue; Thence West along said South Right-of-Way line to the Point of Beginning.

NOW THEREFORE, BE IT ORDAINED, by the City Council of the City of Des Moines, Iowa, as follows:

Section 1. That the taxes levied on the taxable property in that portion of the 38th and Grand Urban Renewal Area designated as the 38th and Grand TIF District No. 1 and legally described in the preamble hereof, by and for the benefit of the State of Iowa, City of Des Moines, County of Polk, Des Moines Independent Community School District, Des Moines Area Community College, and all other taxing districts from and after the effective date of this Ordinance shall be divided as hereinafter in this Ordinance provided.

Section 2. Except as otherwise provided in Iowa Code § 403.19, as amended, that portion of the taxes which would be produced by the rate at which the tax is levied each year by or for each of the taxing districts taxing property in the 38th and Grand TIF District No. 1 upon the total sum of the assessed value of the taxable property in said TIF District as shown on the assessment roll as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of property tax revenue, subject to any adjustment required by Iowa Code § 403.20, as amended, shall be allocated to and when collected be paid into the Fund for the respective taxing district as taxes by or for the taxing district into which all other property taxes are paid (the "base period taxes")

Section 3. Except as otherwise provided in Iowa Code § 403.19, as amended, that portion of the taxes each year in excess of the base period taxes determined as provided in Section 2 of this Ordinance shall be allocated to and when collected be paid into a special tax increment fund of the City of Des Moines hereby established, to pay the principal of and interest on loans, monies advanced to, indebtedness, whether funded, refunded, assumed or otherwise, including bonds issued under the authority of Chapters 384 and 403 of the Code of Iowa, as amended, incurred by the City of Des Moines to finance or refinance in whole or in part the 38th and Grand Urban Renewal Project. However, except as provided in Iowa Code § 403.19(2)(b), taxes for the regular and voter-approved physical plant and equipment levy of a school district imposed pursuant to Iowa Code § 298.2 and taxes for the instructional support program of a school district imposed pursuant to Iowa Code § 257.19, taxes for the payment of bonds and interest of each taxing district, and taxes imposed under Iowa Code § 346.27(22) related to joint county-city buildings shall be collected against all taxable property within the taxing district without limitation by the provisions of this section.

Section 4. Except as otherwise provided in Iowa Code § 403.19, as amended, all taxes levied and collected upon the taxable property in said 38th and Grand TIF District No. 1 shall be paid into the funds of the taxing districts as taxes by

or for said taxing districts in the same manner as all other property taxes unless or until the total assessed valuation of the taxable property in said TIF District shall exceed the total assessed value of the taxable property in said TIF District as of January 1 of the calendar year preceding the first calendar year in which the City of Des Moines certifies to the county auditor the amount of loans, advances, indebtedness, or bonds payable from the division of tax revenue pursuant to this Ordinance, subject to any adjustment required by Iowa Code § 403.20, as amended.

Section 5. At such time as the principal of, and interest on, all loans, advances, bonds and interest thereon and indebtedness of the City of Des Moines hereinabove in Section 3 referred to have been paid, all monies thereafter received from taxes upon the taxable property in the 38th and Grand TIF District No. 1 shall be paid into the funds for the respective taxing districts in the same manner as taxes on all other property, unless and until additional loans, advances, indebtedness or bonds, if any, are incurred and certified by the City of Des Moines.

Section 6. The provisions of this Ordinance are intended and shall be construed so as to fully implement the provisions of Iowa Code § 403.19, as amended, with respect to the division of taxes from property within the 38th and Grand TIF District No. 1 as described above. In the event that any provision of this Ordinance shall be determined to be contrary to law it shall not affect other provisions or application of this Ordinance which shall at all times be construed to fully invoke the provisions of Section 403.19 of the Code of Iowa with reference to said TIF District and the territory therein.

Section 7. This Ordinance shall be in effect after its final passage, approval and publication as provided by law.

FORM APPROVED:

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Roger K. Brown
Assistant City Attorney

Passed November 4, 2019

APPENDIX F

HOTEL AND MOTEL TAX*

6A-1.	Definitions.
6A-2.	Tax rate.
6A-3.	Effective date.
6A-4.	Payment of tax.
6A-5.	Determination of need.

*__Editor's note—__Printed herein is the hotel and motel tax ordinance of the city, Ordinance No. 9454, codified originally as chapter 6A of the 1991 Code. Amendments to the ordinance are indicated by parenthetical history notes following amended provisions. The absence of a history note indicates that the provision remains unchanged from the original ordinance. Obvious misspellings and punctuation errors have been corrected without notation. For stylistic purposes, headings and catchlines have been made uniform and the same system of capitalization, citation to state statutes, and expression of numbers in text as appears in the Municipal Code has been used. Additions made for clarity are indicated by brackets.

__Cross reference—__Businesses, ch. 30.

__State law reference—__Authority to levy hotel and motel tax, I.C. § 422A.1.

6A-1. Definitions.

Unless otherwise expressly stated or the context clearly indicates a different intention, the following terms shall, for the purpose of this chapter, have the meanings in this section.

"Hotel" and "motel" shall be deemed to mean any hotel, motel, inn, public lodginghouse, roominghouse or tourist court, or any place where sleeping accommodations are furnished to transient guests for rent, whether with or without meals, except the gross receipts from the renting of sleeping rooms in dormitories and in memorial unions of all state of Iowa universities and colleges.

"Renting" and "rent" shall include any kind of direct or indirect charge for any room, apartment or sleeping quarter in a hotel or motel, as defined in this chapter.

6A-2. Tax rate.

A tax is hereby imposed upon the gross receipts from the renting of any and all rooms, apartments or sleeping quarters in any hotel or motel as defined in this chapter at the rate of seven percent of such gross receipts derived from the renting of a room, apartment or sleeping quarter while rented by the same person for a period of not more than 31 consecutive days.
(O.10,565, § 1)

6A-3. Effective date.

The tax hereinbefore established shall be imposed on and after April 1, 1985.
(O.10,565, § 1)

6A-4. Payment of tax.

Such tax shall be paid as is provided in Senate File 336, Acts of the 67th General Assembly, second session, and the proceeds of such tax shall be used for the purposes stated in section 2, subsection 4 of said act, to-wit:

"4. The revenue derived from any hotel and motel tax authorized by this act shall be used as follows:

(a) Each county or city which levies the tax shall spend at least 50 percent of the revenues derived therefrom for the acquisition of sites for, or constructing, improving, enlarging, equipping, repairing, operating, or maintaining of recreation, convention, cultural, or entertainment facilities including but not limited to memorial buildings, halls and monuments, civic center convention buildings, auditoriums, coliseums, and parking areas or facilities located at those recreation, convention, cultural, or entertainment facilities or the payment of principal and interest, when due, on bonds or other evidence of indebtedness issued by the county or city for those recreation, convention, cultural, or entertainment facilities; or for the promotion and encouragement of tourist and convention business in the city or county and surrounding areas.

(b) The remaining revenues may be spent by the city or county which levies the tax for any city or county operations authorized by law as a proper purpose for the expenditure within statutory limitations of city or county revenues derived from ad valorem taxes.

(c) Any city or county which levies and collects the hotel and motel tax authorized by this act may pledge an amount not to exceed 30 percent of the revenues derived therefrom to the payment of bonds which the city or county may issue for one or more of the purposes set forth in paragraph (a) of this subsection. Any revenue pledged to the payment of such bonds may be credited to the spending requirement of paragraph (a) of this subsection."

6A-5. Determination of need.

In the process of consideration of this chapter this council has caused to be prepared estimates of the needs of the city for funds in each of the aforesaid categories, 6A-4(a), (b), and (c), supra,

has determined such needs exist, that such needs are jointly and severally in excess of those revenues expected to be derived by means of the aforesaid levy, and that such tax must be levied and exacted to meet the needs so found to exist.

APPENDIX G

SEWER DISTRICTS*

Article I. Sanitary Sewer District Boundaries

21-52.	South Urban Area "B" Sanitary Sewer District.
21-53.	South Urban Area "C" Sanitary Sewer District.
21-53.01.	Northwest Interceptor Sanitary Sewer District.
21-70.02.	Maury Street Sanitary Sewer—Southeast Twenty-first Street to Southeast Twenty-second Court.
21-70.03.	Four Mile East Trunk Sewer.
21-70.04.	Easter Lake Area Trunk Sewers.
21-70.05.	Southwest Airport Area Trunk Sanitary Sewer System.
21-70.06.	Northwest Airport Area Trunk Sanitary Sewer System.
21-70.07.	Southeast Airport Area Trunk Sanitary Sewer; fee for connection.
21-70.08.	Northeast Four Mile Area Trunk Sanitary Sewer System Benefited District.
21-70.09.	Southeast Ridge Area Trunk Sanitary Sewer System Benefited District.
21-70.10.	Clover Hill Area Trunk Sanitary Sewer System Benefited District.
21-70.11.	Little Four Mile Trunk Sanitary Sewer System Benefited District.
21-70.12.	East Army Post Road and Indianola Avenue Trunk Sanitary Sewer Benefited District.

Article II. Storm Sewer Districts

21-71.	Bell Avenue Storm Sewer District.
21-72.	Southeast Sixth and Dunham Storm Sewer District.
21-73.	Central Place Storm Sewer District.
21-74.	Rodgers-McKee Storm Sewer District.

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*__Editor's note—__Printed herein are the boundaries of the sewer districts as printed in chapter 21 of the Municipal Code of 1991, as amended. Amendments to the sections are indicated by parenthetical history notes following amended provisions. Obvious misspellings and punctuation errors have been corrected without notation. For stylistic purposes, headings and catchlines have been made uniform and the same style of citation to state statutes and expression of numbers in text as appears in the Municipal Code has been used. Additions made for clarity are indicated by brackets.

__Cross references—__Buildings and building regulations, ch. 26; plumbing code, § 26-986 et seq.; environment, ch. 42; health and sanitation, ch. 54; emptying flammable liquids into sewers, § 70-73; planning, ch. 82; streets, sidewalks, skywalks and other public places, ch. 102; subdivisions, ch. 106; utilities, ch. 118; sewers and sewage disposal, § 118-31 et seq.

ARTICLE I. SANITARY SEWER DISTRICT BOUNDARIES*

21-52. South Urban Area "B" Sanitary Sewer District.

The South Urban Area "B" Sanitary Sewer District boundary lines shall be as follows:

Beginning at a point which is the intersection of the east corporation limits of the City of Des Moines, and the south line of Section 26-78-24, said south line of said Section 26-78-24 also being the centerline of East Army Post Road and said point also being 400 feet east of the southwest corner of said Section 26-78-24, said southwest corner also being on the centerline of Southeast Fourteenth Street; thence westerly along said south line of Section 26-78-24 and the south line of Section 27-78-24 to a point which is 210 feet west of the east line of said Section 27-78-24; thence northerly along a straight line which is parallel to and 210 feet west of said east line of Section 27-78-24, a distance of 660 feet; thence westerly along a straight line which is parallel to and 660 feet north of said south line of Section 27-78-24 to the west line of the NE ¼ of the SE ¼ of the SE ¼ of said Section 27-78-24; thence northerly along said west line of said NE ¼ of the SE ¼ of the SE ¼ to the north line of the SE ¼ of the SE ¼ of Section 27-78-24; thence westerly along said north line of said SE ¼ of the SE ¼ and along the north line of lot numbers 1 through 11 inclusive of the subdivision of Southcrest to the northwest corner of said Lot 11, Southcrest; thence southerly along the west line of said Lot 11 Southcrest and the west line of Lot 30, Southcrest to the north line of Lot 1, Higgins Acres; thence westerly along said north line of said Lot 1 to a point which is 183 feet east of the west line of the SE ¼ of said Section 27-78-24 said west line also being the centerline of Southeast Fifth Street; thence southerly along a straight line which is parallel to and 183 feet east of said west line of said SE ¼ to the south line of said Lot 1, Higgins Acres; thence westerly along said south line of said Lot 1 to the northwest corner of Lot 3, Higgins Acres; thence southerly along the west line of said Lot 3, and said west line projected southerly, to the north line of Section 34-78-24; thence westerly along said north line of said Section 34-78-24 and the north line of Section 33-78-24 to a point which is 1,824.25 feet west of the east line of the NE ¼ of said Section 33-78-24; thence southerly along a straight line parallel to and 1,824.25 feet west of said east line of said NE ¼ to a point which is 450.5 feet south of the north line of said NE ¼ of said Section 33-78-24; thence westerly along a straight line parallel to and 450.5 feet south of said north line of said NE ¼, a distance of 108 feet; thence southerly along a straight line parallel to and 1,932.25 feet west of said east line of said NE ¼ to a point which is 1,420 feet south of said north line of said NE ¼; thence westerly along a straight line parallel to and 1,420 feet south of said north line of said NE ¼ to a point which is 632 feet east of the west line of said NE ¼ of Section 33-78-24; thence southerly along a straight line parallel to and 632 feet east of said west line of said NE ¼ to a point which is 300 feet north of the south line of said NE ¼; thence easterly along a straight line parallel to and 300 feet north of said south line of said NE ¼ to a point which is 700 feet west of the said east line of said NE ¼; thence southerly along a straight line parallel to and 700 feet west of said east line of said NE ¼ to the north line of the SE ¼ of the Section 33-78-24; thence easterly along said north line of said SE ¼ to a point which is 600 feet west of the east line of said SE ¼; thence southerly along a straight line parallel to and 600 feet west of said east line of said SE ¼ to a point which is 1,760 feet north of the south line of Section 33-78-24; thence westerly along a straight line parallel to and 1,760 feet north of said south line of said Section 33-78-24 to a point which is 990 feet west of said east line of said SE ¼; thence southerly along a straight line parallel to and 990 feet west of said east line of said SE ¼ to said south line of said Section 33-78-24, which is the south corporation limits of the City of Des Moines; thence easterly along said south line of said Section

*__Editor's note—__The sanitary sewer district boundaries in this article derive from subchapter 5 of chapter 21 of the 1991 Des Moines City Code. The boundaries are set out in this appendix at the direction of the city.

33-78-24 and the south line of sections 34-78-24 and 35-78-24 to a point 400 feet east of the southwest corner of Section 35-78-24 said line also being the south corporation limits of the City of Des Moines; thence northerly along a straight line which is parallel to and 400 feet east of the west line of Section 25-78-24 to the point of beginning, said line also being the east corporation limits of the City of Des Moines.

(C62, § 48-45.01; O.8660; C75, C79, C91, § 21-52)

21-53. South Urban Area "C" Sanitary Sewer District.

The South Urban Area "C" Sanitary Sewer District boundary lines shall be as follows:

Beginning at a point which is the southwest corner of Lot 26 official plat NW ¼ of Section 23-78-24; thence northerly along the west line of said Lot 26 and the west line of Lot 24, official plat of the NW ¼ of Section 23-78-24 to a point which is 180 feet south of the north line of the SE ¼ of the NW ¼ of Section 23-78-24, said line being in Evergreen Avenue; thence easterly along a line 180 feet south of and parallel to the north line of the SE ¼ of the NE ¼ and the north line of the SW ¼ of the NE ¼ of Section 23-78-24 to the southerly projection of the west line of the E ½ of the NW ¼ of the NE ¼ of Section 23-78-24; thence northerly along the southerly projection of the west line and the west line of said E ½ of said NW ¼ to a point which is 175 feet south of the north line of Section 23-78-24 said line being in Park Avenue; thence easterly along a line 175 feet south of and parallel to said north line of Section 23-78-24 to the east line of said Section 23-78-24; thence northerly along said east line of Section 23-78-24 to the northeast corner of said Section 23-78-24 said corner also being the southwest corner of Section 13-78-23; thence easterly along the south line of said Section 13-78-24 a distance of 264 feet; thence northerly along a line 264 feet east of and parallel to the west line of said Section 13-78-24 to the north line of the SW ¼ of Section 13-78-24; thence easterly along said north line of said SW ¼ of said Section 13 to the southwest corner of the SE ¼ of the NW ¼ of Section 13-78-24; thence northerly along the west line of said SE ¼ of said NW ¼ to the southerly right-of-way line of the Chicago, Rock Island and Pacific Railroad; thence southeasterly along said southerly right-of-way line of said C., R.I. and P. Railroad to the east line of government Lot 4, NW ¼ of Section 19-78-23; thence southerly along said east line of said government Lot 4 to the south line of the NW ¼ of Section 19-78-23; thence westerly along the south line of the NW ¼ of Section 19-78-23 and also along the south line of the N ½ of Section 24-78-24 to the southwest corner of the NW ¼ of Section 24-78-24; thence southerly along the west line of Section 24-78-24 to a point 700 feet south of the N ½ of the SE ¼ of Section 23-78-24; thence westerly along a straight line parallel to and 700 feet south of the south line of the N ½ of the SE ¼ of Section 23-78-24 to the centerline of Indianola Road; thence southeasterly along said centerline of E. Indianola Road and southerly along the east line of Section 26-78-24 to the south line of the NE ¼ of the SE ¼ of said Section 26-78-24; thence westerly along said south line of said NE ¼ of said SE ¼ to the east line of the NW ¼ of said SE ¼ of Section 26-78-24; thence northerly along the west line of the NE ¼ of the SE ¼ of Section 26-78-24 to a point on the north line of the SE ¼ of said Section 26; thence westerly along the south line of the N ½ of Section 26-78-24 to a point which is 619.08 feet west of the center point of Section 26-78-24; thence northerly along a straight line parallel to and 619.08 feet west of the centerline of Section 26-78-24 to the north line of said Section 26 said north line also being the centerline of McKinley Avenue; thence easterly along the north line of Section 26-78-24 to the northwest corner of NE ¼ of Section 26-78-24; thence northerly along the west line of the SE ¼ of Section 23-78-24 to the south line of the N ½ of the SE ¼ of Section 23-78-24; thence easterly along the south line of the N ½ of the SE ¼ [of] Section 23-78-24 to a point on the east line of Indianola Road, said point being 552.6 feet west of the southeast corner of Lot 57, Ewing Park Place, an official plat; thence northwesterly along the east line of Indianola Road and along the west line of Lot 57, Ewing Park Place, an official plat, to a point which is 50 feet when measured perpendicular,

south of the north line of said Lot 57, Ewing Park Place, an official plat; thence easterly on a straight line to a point which is 50 feet south of the north line of Lot 57, Ewing Park Place, an official plat, said point being 858 feet west of the east line of said Lot 57; thence southerly on a straight line a distance of 100 feet to a point which is 858 feet west of the east line of Lot 57, Ewing Park Place, an official plat; thence easterly on a straight line a distance of 462 feet to a point which is 150 feet south of the north line of said Lot 57, Ewing Park Place, an official plat, said point being 396 feet west of the east line of said Lot 57; thence northerly on a straight line to a point on the north line of Lot 57, Ewing Park Place, an official plat, and 396 feet west of the northeast corner of said Lot 57; thence easterly on the north line of Lot 57, Ewing Park Place, an official plat, to the northeast corner of said Lot 57; thence northerly along the east line of Ewing Park Place, an official plat, to the south line of the N ½ of Section 23-78-24; thence westerly along the south line of the N ½ of Section 23-78-24 to the point of beginning.

(C62, § 48-45.02; O.8660; C75, C79, C91, § 21-53)

21-53.01. Northwest Interceptor Sanitary Sewer District.

The Northwest Interceptor Sanitary Sewer District boundary lines shall be as follows:

Beginning at a point on the west corporate limits of the City of Des Moines which is on the north line of the existing Aurora Avenue R.O.W.; thence north along the west corporate limits to a point on the existing south R.O.W. line of Meredith Drive, said point also being on the north corporate limits; thence east along the north corporate limits to a point on the existing west R.O.W. line of Beaver Avenue; thence south along the existing west R.O.W. line of Beaver Avenue, said line also being the corporate limits, to the NE corner of Lot 1, Westchester Plat #2, an official plat; thence west along the north boundary of Westchester Plat #2 to the NW corner of Westchester Plat #2; thence south along the west boundary of Westchester Plat #2 to a point 160.0′ north of the south line of the NE ¼ of Section 19, T79N, R24W; thence west along a line parallel to and 160.0′ north of the south line of the NE ¼ of said Section 19 a distance of 290.0′; thence north 125.0′ to a point which is 285.0′ north of and 2054.6′ west of the E ¼ corner of said Section 19; thence along a curved line, concave northeasterly, having a radius of 469.37′ and long chord bearing north 71° 46′ 30″ west, an arc distance of 298.60′; thence north 53° 33′ 00″ west 118.23′ to a point which is 457.02′ north of and 208.31′ east of the center of said Section 19; thence south 36° 27′ 00″ west 225.00′ to a point which is 275′ north of and 73.9′ east of the center of said Section 19; thence east 201.1′ to a point which is 275′ north of and 275′ east of the center of said Section 19; thence south 240.0′ to a point which is 35′ north of and 275′ east of the center of said Section 19, said point also being on the existing north R.O.W. line of Aurora Avenue; thence west along the existing north R.O.W. line of Aurora Avenue to the east line of Westchester Manor Plat #3, an official plat; thence north along the east line, west along the north line, and south along the west line of Westchester Manor Plat #3 to the existing north R.O.W. line of Aurora Avenue; thence west along the existing north R.O.W. line of Aurora Avenue to the point of beginning.

Also an area described as follows:

Beginning at the southwest corner of Lot 16, Debra Plaza Plat #1, an official plat being on the northeast R.O.W. line of Lower Beaver Road; thence northeasterly along the west lines of Debra Plaza Plat #1, and Debra Plaza Plat #3, an official plat, to the south R.O.W. line of the Des Moines and Central Iowa Railroad; thence northwesterly along the said south R.O.W. line to the northeast R.O.W. line of Lower Beaver Road; thence southeasterly along the said northeast R.O.W. line to the point of beginning.

Also Lots 5 and 6 Benlan Heights, an official plat.

Also, except S 115′ E 190′ W 389′ S 585′ E 48A N ½ NW ¼ of Section 20 T79N R24W, Burns and Bennetts Annex described as:

Beginning at the SW corner of the NE ¼ of the NW ¼ of Section 20 T79N R24W; thence N 89° 05′ W 263.28′; thence N 0° 18′ E 580.8′; thence

N 90° 00′ E 448.28′; thence S 0° 18′ W 585.0′; thence N 90° 00′ W 185.0′ to the point of beginning;

And also Sargents Annex described as:

Beginning at the SE corner of the NW ¼ of the SW ¼ of the NW ¼ of Section 20 T78N R24W; thence N 89° 55′ W along the south line of the said NW ¼ SW ¼ NW ¼ 269.0′; thence N 0° 27′ W 139.0′; thence N 89° 55′ W 25.0′; thence N 0° 27′ W 163.0′; thence N 89° 38′ E 76.0′; thence N 19° 35′ E 266.15′; thence N 89° 58′ W 68.0′; thence N 0° 27′ W 110.0′; thence S 89° 58′ E along the north line of the said NW ¼ SW ¼ NW ¼ 200.0′; thence S 0° 00′ E along the east line of the said NW ¼ SW ¼ NW ¼ 663.6′ to the point of beginning.

(C62, § 48-45.03; O.8736; C75, C79, C91, § 21-53.01)

21-70.02. Maury Street Sanitary Sewer—Southeast Twenty-first Street to Southeast Twenty-second Court.

For purposes of this section [section 118-209 of the Code of Ordinances], "benefitted area property" shall mean that property within that area of the city legally bounded as follows:

Beginning at the intersection of the north right-of-way line of Maury Street and the east right-of-way line of Southeast Twentieth Street; thence north along the east right-of-way line of Southeast Twentieth Street to the south right-of-way line of Scott Avenue; thence east along the south right-of-way line of Scott Avenue 836.2 feet to the west right-of-way line of the Chicago, Rock Island and Pacific Railroad; thence southerly along the west right-of-way line of the Chicago, Rock Island and Pacific Railroad to the intersection with a line perpendicular to and 300 feet northerly of Maury Street; thence easterly (parallel to Maury Street) along said line to a point 300 feet northerly of and perpendicular to Maury Street and 75 feet west of the west right-of-way line of Southeast Twenty-second Street; thence north to a point on the north lot line of Lot 4, Block 8, in Jack's Plat, which is 75 feet west of the west right-of-way line of Southeast Twenty-second Street; thence east along said north line of said Lot 4 to the west right-of-way line of Southeast Twenty-second Street; thence south along the west right-of-way line of Southeast Twenty-second Street a distance of 200 feet; thence east in a straight line to the northeast corner of Lot 25, Block 9 in Jack's Plat; thence south along the east lines of Lots 25 through 19, Block 9 in Jack's Plat to the north right-of-way line of Maury Street; thence southwesterly to a point on the south right-of-way line of Maury Street which is 51.2 feet east of the east line of Section 11, Township 78 north, Range 24 west; thence southeasterly along the northeast right-of-way line of the Des Moines Union Railroad to a point 300 feet southerly of and perpendicular to Maury Street; thence westerly parallel to Maury Street to a point on the west right-of-way line of the Chicago, Rock Island and Pacific Railroad and 300 feet southerly perpendicular to Maury Street; thence south along the west right-of-way line of the Chicago, Rock Island and Pacific Railroad to the north right-of-way line of the Burlington Northern Railroad; thence northwesterly along the north right-of-way line of the Burlington, Northern Railroad to the east right-of-way line of Southeast Twenty-first Street; thence north (along the east right-of-way line of Southeast Twenty-first Street) to the north right-of-way line of Maury Street; thence west along the north right-of-way line of Maury Street to the point of beginning, all now included in and forming a part of the City of Des Moines, Polk County, Iowa.

(C79, § 21-70.02; O.10,544; C91, § 21-70.02)

21-70.03. Four Mile East Trunk Sewer.

The boundaries of the Four Mile East Trunk Sewer Benefited District [as provided in Section 118-210 of the Code of Ordinances] shall be as follows:

Beginning at the southwest corner of Lot 1124, Four Mile Plat 2, an official plat; thence north along the west line of Lots 1124, 1147, 1158, 1180, and 1190 of said Four Mile Plat 2; thence east along the north line of Lots 1190, 1191, and 1192 of said Four Mile Plat 2; thence north along the east line of the outlot "X" of East Edge Manor, an official plat; thence north along

the west line of Sunrise Estates Plat 2, an official plat; thence north along the west line of Sunrise Estates Plat 1, an official plat; to the south line of Lot 31 of Patricia Ann Estates Plat 4, an official plat; thence west along the south line of Lots 31, 30, 29, and 28 of said Patricia Ann Estates Plat 4; thence north along the west line of Lot 28 of said Patricia Ann Estates Plat 4; thence west along the south line of Lots 61 and 62 of Capitol Heights Replat, an official plat; thence north along the west line of Lot 62 of said Capitol Heights Replat to the south line of Lot 4, Jill's Acres Plat 2, an official plat; thence east along the south line of said Lot 4 of said Jill's Acres Plat 2; thence north along the east line of Lots 4, 3, 2 and 1 of said Jill's Acres Plat 2; thence east along the north line of Lots 62, 61, 60, and 59 of said Capitol Heights Replat; thence north along the west line of Lots 41 thru 47 inclusive of said Capitol Heights Replat; thence east along the north line of said Lot 47 Capitol Heights Replat; thence east along the north line of Lot 28 Capitol Heights Replat, and Lots 19 and 18 of Capitol Heights Replat No. 2, an official plat; thence east along the north line of Lot 58 of said Capitol Heights Replat No. 2; thence north along the west line of Lot 79 of said Capitol Heights Replat No. 2; thence east along the north line of Lot 79 of said Capital Heights Replat No. 2; thence north along the west line of Lot 81 of said Capitol Heights Replat No. 2; thence north along the west line of Lot 5 of Finney Acres, an official plat; thence east along the north line of Lots 5 and 6 of said Finney Acres; thence south along the east line of Lot 6 of said Finney Acres; thence east along the north line of Lots 118 thru 123 inclusive, and Lot 193 of said Capitol Heights Replat No. 2; thence east along the north line and south along the east line of that parcel described as the northeast ¼ of the southwest ¼ of Section 22, Township 79, Range 23 west of the 5th P.M.; thence south along the east line of Lots 1 thru 21 of Capitol Heights Plat No. 3, an official plat; thence east along the north line and south along the east line of the northwest ¼ of the northeast ¼ less 1.00 acres for road in Section 27, Township 79, Range 23 west of the 5th P.M.; thence south along the east line of that parcel described as the southwest ¼ of the northeast ¼ of Section 27, Township 79, Range 23 west of the 5th P.M.; thence east along the north line of Lots 35 and 1 of Eastover, an official plat; thence south along the east line of Lots 1 thru 13 of said Eastover; thence west along the south line of Lots 13 and 23; thence south along the east line of Lots 49 and 50; thence west along the south line of Lots 50 and 56; thence north along the west line of Lot 56; thence west along the south line of Lot 92; thence south along the east line of Lots 98, 97, and 96; thence west along the south line of Lot 96; thence south along the west line of Lot 95, all included in said Eastover; thence west along the south line of the southwest ¼ of Section 27, Township 79, Range 23 west of the 5th P.M., less road; thence west along the south line of the southeast ¼ of Section 28, Township 79, and Range 23 west of the 5th P.M., less road; to the point of beginning; and beginning at a point on the southwest corner of the northeast ¼ of Section 33, Township 79, Range 23 west of the 5th P.M.; thence north along the west line and east along the north line of a parcel described as, except the north 1320.0 feet, the west 37.0 acres in the northeast ¼ less 2.4 acres for road in Section 33, Township 79, Range 23 west of the 5th P.M.; thence east along the north line, south along the east line, and west along the south line of a parcel described as, the south 21.0 acres of the east 42.0 acres in the west ½ of the northeast ¼ of Section 33, Township 79, Range 23 west of the 5th P.M.; thence west along the south line of that parcel described as, except the north 1320.0 feet, the west 37.0 acres in the northeast ¼ less 2.4 acres for road in Section 33, Township 79, Range 23 west of the 5th P.M., to the point of beginning.

(C91, § 21-70.03; O.13,088, 13,379)

21-70.04. Easter Lake Area Trunk Sewers.

The boundaries of the Easter Lake Area Trunk Sewers Benefited District [as provided in Section 118-211 of the Code of Ordinances] shall be as follows:

Beginning at a point on the west line of Section 25, Township 78, Range 24 west of the 5th P.M. included within the City of Des Moines, said

point being at the south right-of-way line of Easter Lake Drive; thence easterly along the south right-of-way line of Easter Lake Drive a distance of 900 feet; thence northerly a distance of 350 feet; thence easterly a distance of 420 feet to a point on the west line of the northeast quarter of the northwest quarter of said Section 25; thence northerly along the west line of the northeast quarter of the northwest quarter of said Section 25 to a point, 663 feet south of the northwest corner of the northeast quarter of the northwest quarter of said Section 25; thence easterly 264 feet; thence northerly 379 feet; thence easterly 1056 feet to a point on the east line of the northeast quarter of the northwest quarter of said Section 25; said point being 272 feet south of the northeast corner of the northeast quarter of the northwest quarter of said Section 25; thence easterly along the north line of the northwest quarter of the northeast quarter of said Section 25 to the northeast corner of the northwest quarter of the northeast quarter of said Section 25; thence southerly along the east line of the northwest quarter of the northeast quarter of said Section 25 to the north right-of-way line of Easter Lake Drive; thence easterly along the north right-of-way line of Easter Lake Drive a distance of 450 feet; thence northerly 757 feet; thence easterly along a straight line to a point on the east line of the northeast quarter of the northeast quarter of said Section 25, said point being 513 feet south of the northeast corner of the northeast quarter of the northeast quarter of said Section 25; thence southerly along the east line of the northeast quarter of the northeast quarter of said Section 25, said point being 546.12 feet south of the northeast corner of the northeast quarter of the northeast quarter of said Section 25; thence northeasterly 833.35 feet to a point on the north line of the northwest quarter of the northwest quarter of Section 30, Township 78, Range 23 west of the 5th P.M. included within the City of Des Moines, said point being 650.78 feet east of the northwest corner of the northwest quarter of the northwest quarter of said Section 30; thence easterly along the north line of said Section 30 to a point 1320 feet west of the northeast corner of the northwest quarter of said Section 30; thence southeasterly to a point on the north right-of-way line of Easter Lake Drive, said point being 1000 feet west of the east line of the northwest quarter of said Section 30; thence east along the north right-of-way line of Easter Lake Drive to a point 820 feet west of the east line of the northwest quarter of said Section 30; thence southerly along a straight line to a point on the south line of the northwest quarter of said Section 30 to a point, said point being 820 feet west of the center of said Section 30; thence west along the south line of the northwest quarter of said Section 30 to a point 935 feet west of the center of said Section 30; thence south 6 degrees 00 minutes west along a straight line 490 feet; thence north 85 degrees 14 minutes west along a straight line 102.76 feet; thence south 00 degrees 00 minutes west along a straight line 729.54 feet; thence south 11 degrees 53 minutes 30 seconds west along a straight line to a point on the north right-of-way line of East Payton Avenue, said point being 434 feet west of the east line of the west half of the northeast quarter of the southwest quarter of said Section 30; thence west along the north right-of-way line of East Payton Avenue to the west line of the northeast quarter of the southwest quarter of said Section 30; thence south along the west line of the southeast quarter of the southwest quarter of said Section 30; to a point being 200 feet south of the south right-of-way line of East Payton Avenue; thence west along a straight line parallel with and 200 feet south of the south right-of-way line of East Payton Avenue to the east right-of-way line of Indianola Road; thence north along the east right-of-way line of Indianola Road to a point on the south right-of-way line of Easter Lake Drive; thence east along the south right-of-way line of Easter Lake Drive to the point of beginning.

(C91, § 21-70.04; O.13,101, 13,379)

21-70.05. Southwest Airport Area Trunk Sanitary Sewer System.

The boundaries of the Southwest Airport Trunk Sanitary Sewer System Benefited District [as provided in section 118-212 of the Code of Ordinances] shall be as follows:

Beginning at the southwest corner of the east half of the southeast quarter of Section 25,

Township 78 North, Range 25 West of the Fifth Principal Meridian, said point being within the right-of-way of Army Post Road; thence northerly 1,100 feet along the west line of the east half of said southeast quarter; thence northwesterly to the southeast corner of Lot 11 Ranch Estates, an Official Plat, said point being on the west right-of-way line of Southwest 56th Street; thence northerly along the west right-of-way line of Southwest 56th Street to the south right-of-way line of McKinley Avenue; thence westerly along the south right-of-way line of McKinley Avenue to the northwest Corner of Lot 3 Green Hill Plat 1, an Official Plat; thence southerly along the west line of said Lot 3 to the southwest corner of said Lot 3; thence westerly along the south line of Lots 4, 5 and 6 of said Green Hill Plat 1 to the northeast corner of Lot 8 of said Green Hill Plat 1; thence southerly along the east line of Lots 8, 9, and 10 of said Green Hill Plat 1 to the southeast corner of said Lot 10; thence westerly along the south line of said Lot 10 to the southwest corner of said Lot 10, said point being on the east right-of-way line of Southwest 63rd Street; thence southerly along the east right-of-way line of Southwest 63rd Street to north right-of-way line of Army Post Road; thence easterly along the north right-of-way line of Army Post Road to the northerly extension of the east right-of-way line of Southwest 60th Street; thence southerly along the east right-of-way line of Southwest 60th Street to a point 750 feet south of the north line of the southeast quarter of Section 35, Township 78 North, Range 25 West of the Fifth Principal Meridian; thence easterly 650 feet along a straight line parallel with and 750 feet south of the north line of the southeast quarter of said Section 35; thence northeasterly along a straight line to the point of beginning;

and

beginning at the northeast corner of the southeast quarter of the northwest quarter of Section 31, Township 78 North, Range 24 West of the Fifth Principal Meridian, thence southerly along the east line of the northwest quarter and the southwest quarter of said section 31 to the north right-of-way line of County Line Road, thence along the north right-of-way line of County Line Road to the east right-of-way line of Southwest 42nd Street, thence northerly along the east right-of-way line of Southwest 42nd Street to the north line of the southwest quarter of the northwest quarter of said Section 31, thence easterly along the north line of the southwest quarter of the northwest quarter of said Section 31 to the point of beginning;

and

Commencing as a point of reference at the east ¼ corner of Section 36, Township 78 North, Range 25 West of the Fifth Principal Meridian; thence north 89° (Degrees) 55′ (Minutes) 33″ (Seconds) west along the north line of the southeast ¼ of said Section 36, a distance of 115.00 feet; thence south 0°03′55″ west, 33.00 feet to the Point of Beginning; thence south 0°03′55″ west, 1,342.60 feet; thence south 3°24′14″ west, 254.91 feet; thence south 90°00′00″ west, 511.54 feet; thence north 56°30′00″ west, 805.35 feet; thence north 0°17′57″ west, 1,040.50 feet; thence northeast along a 3926.81 foot radius curve concave southeast with a central angle of 8°16′05″, a chord distance of 566.16 feet, a chord bearing of north 78°29′45″ east, for an arc distance of 566.65 feet; thence south 89°55′33″ east, 650.42 feet; to the point of beginning.

(C91, § 21-70.05; O.13,300, 13,964)

21-70.06. Northwest Airport Area Trunk Sanitary Sewer System.

The boundaries of the Northwest Airport Trunk Sanitary Sewer System Benefited District [as provided in section 118-213 of the Code of Ordinances] shall be as follows:

Beginning at a point on the north line of the southeast quarter of Section 23, Township 78 North, Range 25 West of the Fifth Principal Meridian said point being 130 feet east of the northwest corner of the southeast quarter of said Section 23 and on the east right-of-way line of relocated Iowa Department of Transportation (IDOT) Highway #28; thence northerly along said east right-of-way line of said Highway #28 to the north line of the southwest quarter of the northeast quarter of said Section

23; thence easterly along the south line of the northwest quarter of the northeast quarter of said Section 23 to the southwest corner of Lot 13 of Airport Commerce Park West Plat 2, an official plat; thence northerly along the west line of said Lot 13; thence northeasterly along the north line of said Lot 13 said line being the south right-of-way line of Thornton Avenue to a point said point being on the southeasterly extension of the southwest line of Lot 12 of said Airport Commerce Park West Plat 2; thence northwesterly 60 feet along the southeasterly extension of the southwest line of said Lot 12 to a point on the north right-of-way line of Thornton Avenue, said point being the southeast corner of said Lot 12; thence northwesterly 205.76 feet along the southwest line of said Lot 12; thence northerly along the west line of Lot 12 to the northwest corner of said Lot 12; thence easterly along the north line of Lots 12, 11, 10, and 9 of said Airport Commerce Park West Plat 2 to a point on the west line of Lot 8 of said Airport Commerce Park West Plat 2; thence northerly along the west line of said Lot 8 to a point on the south right-of-way line of Park Avenue said point being the northwest corner of said Lot 8; thence easterly along the south right-of-way line of Park Avenue to a point on the west line of the northeast quarter of the northwest quarter of Section 24, Township 78 North, Range 25 West of the Fifth Principal Meridian, said point being the northeast corner of Lot 16 of said Airport Commerce Park West Plat 2; thence southerly along the west line of the northeast quarter of the northwest quarter of said Section 24 to the south line of the northeast quarter of the northwest quarter of said Section 24; thence easterly along the south line of the northeast quarter of the northwest quarter and along the south line of the northwest quarter of the northeast quarter the of said Section 24 to the west line of the vacated Chicago and Northwestern Railroad right-of-way; thence southerly 350 feet along the west line of the vacated Chicago and Northwestern Railroad right-of-way (locally known as the Great Northwestern Trail); thence southwesterly to a point of the south line of the north half of the southwest quarter of said Section 24 said point being 1,240 feet east of the west line of said Section 24; thence westerly to a point on the south line of the north half of the southwest quarter of said Section 24 said point being 360 feet east of the west line of said Section 24; thence northwesterly to a point 530 feet west of the east line of said Section 23 and 500 feet south of the north line of the southeast quarter of said Section 23; thence southwesterly to a point of the west line of the northeast quarter of the southeast quarter of said Section 23 said point being 1,250 feet south of the north line of the southeast quarter of said Section 23; thence south along the west line of the northeast quarter and the southeast quarter of the southeast quarter of said Section 23 to the north right-of-way line of Southwest McKinley Avenue; thence west along the north right-of-way line of Southwest McKinley Avenue to the east right-of-way line of said Highway #28; thence northwesterly along the east right-of-way line of said Highway #28 to the point of beginning.

(C91, § 21-70.06; O.13,316, 13,964)

21-70.07. Southeast Airport Area Trunk Sanitary Sewer; fee for connection.

(a) Pursuant to section 118-208 of the Municipal Code of Des Moines, Iowa, the Southeast Airport Trunk Sanitary Sewer Benefited District is hereby established for the purpose of collecting within said district a fee from those property owners who shall make application to connect their properties to said sewer.

(b) The boundaries of the Southeast Airport Trunk Sanitary Sewer Benefited District shall be as follows:

Beginning at a point on the north line of the northwest quarter of Section 32, Township 78 North, Range 24 West of the 5th P.M. said point being 25.00 feet west of the north quarter corner of said Section 32 said north quarter corner being at the intersection of Army Post Road and Fleur Drive; thence southerly along a line 25.00 feet west of and parallel with the west line of said northwest quarter of said Section 32 to the southeast corner of Lot 13 Wakonda Heights, an official plat; thence westerly along the south line of Lots 13 through 7 of said Wakonda Heights to the northwest corner of Lot 6 of Airport Commerce Park Plat 1, an

official plat; thence southerly along the west line of said Lot 6 to the north right-of-way line of Rittenhouse Street; thence westerly along the north right-of-way line of Rittenhouse Street to a point on the northerly extension of the west line of Lot 5 of Airport Commerce Park Plat 1, an official plat; thence southerly along the west line of said Lot 5 and Lot 4 of Airport Commerce Park Plat 1, an official plat to a point 110.00 feet south of the northwest corner of said Lot 4; thence easterly 257.00 feet along a line 110.00 feet south of and parallel with the north line of said Lot 4; thence southerly 358.00 feet along a line parallel with and 257.00 feet east of the west line of said Lot 4; thence easterly along a line parallel with the south line of said Lot 4 to the east line of said Lot 4; thence southerly along the east line of said Lot 4 to the southwest corner of said Lot 4 and the easterly extension of Lot 3 of Airport Commerce Park Plat 1, an official plat; thence easterly along the south line of said Lot 3 to the southeast corner of said Lot 3; thence continuing easterly along the extension of said Lot 3 to a point on the west right-of-way line of Fleur Drive said point being 33.00 feet west of the east line of said southwest quarter of Section 32; thence south along the west right-of-way line of Fleur Drive parallel with and 33.00 feet west of the east line of said southwest quarter of Section 32 to a point of the north right-of-way line of county line road said point being 33.00 feet north of the south line of said southwest quarter of Section 32; thence along the north right-of-way line of county line road said line being 33.00 feet north of and parallel with the south line of said southwest quarter of Section 32 to the west line of said southwest quarter of Section 32; thence northerly 180.00 feet along the west line of said southwest quarter of Section 32; thence northwesterly along a line to a point 250.00 feet west of the east line of the southeast quarter of Section 31, Township 78 North, Range 24 West of the 5th P.M. and 380.00 feet north of the south line of said southeast quarter of Section 31; thence northwesterly along a line to a point 1,180.00 feet west of the east line of said southeast quarter and 820.00 feet north of the south line of said southeast quarter of Section 31; thence northwesterly along a line to a point 660.00 feet east of the west line of said southeast quarter and 1,070.00 feet north of the south line of said southeast quarter of Section 31; thence northerly along a line 660.00 feet east of and parallel with the west line of said southeast quarter to the north line of said southeast quarter of Section 31; thence northerly 140.00 feet along a line 660.00 feet east of and parallel with the west line of the northeast quarter of said Section 31; thence westerly along a line 140.00 feet north of and parallel with the south line of said northeast quarter of Section 31 to the west line of said northeast quarter of Section 31; thence northerly along the west line of said northeast quarter of Section 31 to the north line of said northeast quarter of Section 31; thence easterly along the north line of said northeast quarter of Section 31 to the east line of said northeast quarter of Section 31; thence easterly along the north line of said northwest quarter of Section 32 to the point of beginning, all now included in and forming part of the City of Des Moines, Polk County, Iowa; and

The northwest quarter of the northwest quarter of Section 5, Township 77 North, Range 24 West of the 5th P.M., all now included in and forming part of Warren County, Iowa.

(O.13,561, 13,729, 14,115)

21-70.08. Northeast Four Mile Area Trunk Sanitary Sewer System Benefited District.

The boundaries of the Northeast Four Mile Trunk Sanitary Sewer System Benefited District [as provided in section 118-215 of the Des Moines City Code, 2000] shall be as follows:

Beginning at the southeast corner of the northeast ¼ of Section 20, Township 79 North, Range 23 West of the 5th P.M., with said point also being on the centerline of NE 38th Street; thence west along the south line of said northeast ¼ to the southeast corner of Lot 17, Watts Place, an official plat; thence west 310 feet along the south line of said northeast ¼, with said line also being the south line of said Lot 17; thence north 438.5 feet along a line, with said line being 310 feet west of the east line of said Lot 17, to a point on the south line of Lot

16 of said Watts Place; thence east 310 feet along the south line of said Lot 16 extended easterly through the southeast corner of said Lot 16 to the centerline of said NE 38th Street; thence north along said centerline to the northwest corner of Lot A, Official Plat of the northwest ¼ of Section 21, Township 79 North, Range 23 West; thence northeast along the north line of said Lot A to its northeast corner; thence south along the east line of said Lot A to its southeast corner, with said southeast corner being on the north line of Lot B of said Official Plat; thence northeast 243.6 feet along the north line of said Lot B to the southwest corner of Lot 3 of the said Official Plat of the northwest ¼; thence north along the west line of said Lot 3 to a point that is 711 feet south of the north line of said Section 21, with said north line also being the centerline of NE Broadway Avenue; thence east to the northwest corner of Lot 6, Davis Place, an official plat; thence east along the north line of said Lot 6 to its Northeast corner; thence continuing east along a line, with said line being 711 feet south of the north line of said Section 21, to a point on the west line of Lot 4 of said Davis Place; thence north along the west line of said Lot 4 to a point that is 364 feet south of said north line of Section 21; thence east 893 feet along a line, with said line being 364 feet south of the north line of said Section 21, to a point that is 567.5 feet east of the west line of the northeast ¼ of said Section 21 and is also 364 feet south of said north line of Section 21; thence north 364 feet to the said north line of Section 21; thence east along said north line of said Section 21 to the northwest corner of the northeast ¼ of the northeast ¼ of said Section 21, with said point also being the southwest corner of the southeast ¼ of the southeast ¼ of Section 16, Township 79 North, Range 23 West; thence north 545.5 feet along a line, with said line being parallel to the east line of said Section 16, to a point; thence east 358.2 feet along a line, with said line being parallel to the south line of said Section 16, to a point; thence north 523 feet along a line, with said line being parallel to the east line of said Section 16, to a point; thence east 622.3 feet along a line, with said line being parallel to the south line of said Section 16, to a point; thence north 350 feet along a line, with said line being parallel to the east line of said section 16, to a point; thence east 322 feet along a line, with said line being parallel to the south line of said Section 16, to a point on the east line of said Section 16, with said point also being on the centerline of NE 46th Street; thence North 698 feet along the East line of said Section 16; thence west 1,664.04 feet along a line parallel to the north line of the southeast ¼ of said Section 16 to a point; thence north 1308 feet along a line that is parallel to the west line of said southeast ¼ of Section 16 to a point on the north line of said southeast ¼; thence west 999.08 feet along the north line of said southeast ¼ to the center of said Section 16; thence north along the west line of the northeast ¼ of said Section 16 to a point on the south right-of-way line of NE 54th Avenue; thence northeast 1,084 feet along the south right-of-way line of NE 54th Avenue to a point; thence north 40 feet to a point on the south right-of-way line of Interstate 80; thence east 1,401 feet along said Interstate 80 right-of-way line to where it meets the west right-of-way line of IA Highway 65/69; thence southeast along said west right-of-way line to where said west right-of-way line meets the north right-of-way line of NE Hubbell Road; thence southerly across said NE Hubbell Road to where the south right-of-way line of said NE Hubbell Road meets the said west right-of-way line of IA Highway 65/69; thence continuing along said west right-of-way line to where said west right-of-way line meets the north right-of-way line of NE 46th Avenue; thence southerly across said NE 46th Avenue to where the south right-of-way line of said NE 46th Avenue meets the said west right-of-way line of IA Highway 65/69; thence continuing along said west right-of-way line to where said west right-of-way line meets the south line of the northwest ¼ of the northeast ¼ of Section 22, Township 79 North, Range 23 West; thence west along said south line to the southeast corner of the northwest ¼ of the northeast ¼; thence south along the west line of the southwest ¼ of northeast ¼ of said Section 22, to the center of said Section 22; thence west along the north line of the southeast ¼ of said Section 22 to the northwest

corner of the northeast ¼ of the southwest ¼ of said Section 22; thence west along the north line of Lot 193 and Lots 118 through 123 inclusive of Capitol Heights No. 2, an official plat; thence north along the east line of Lot 6, Finney Acres, an official plat; thence west along the north line of Lots 5 and 6 of said Finney Acres; thence south along the west line of said Lot 5; thence south along the west line of Lot 81 of said Capitol Heights No. 2; thence west along the north line of Lot 79 of said Capitol Heights No.2; thence south along the west line of said Lot 79; thence west along the north line of Lot 58 of said Capitol Heights No. 2; thence west along the north line of Lots 18 and 19 of said Capitol Heights No. 2, and the north line of Lot 28, Capitol Heights Replat, an official plat; thence west along the north line of Lot 47 of said Capitol Heights Replat; thence north along the west line of Lot 48 of said Capitol Heights Replat; thence northeast along the south line of Lot 20 of said Capitol Heights Replat; thence northwesterly along the east line of said Lot 20; thence southwesterly along the north line of said Lot 20; thence northwesterly along the east line of Lot 8 of said Capitol Heights Replat to the southeast corner of Lot 12 of said Capitol Heights Replat; thence northwesterly 151.65 feet through said Lot 12, to a point on the north line of said Lot 12 that is 133.33 feet west of the northeast corner of said Lot 12; thence west along the north line of said Lot 12; thence south along the west line of said Lot 12; thence south along the west line of Lot 10 of said Capitol Heights Replat to the south line of the northeast ¼ of Section 21, Township 79 North Range 23 West; thence west along the south line of the northeast ¼ and the northwest ¼ of said Section 21 to the Point of Beginning.

(O.13,983, 14,253)

21-70.09. Southeast Ridge Area Trunk Sanitary Sewer System Benefited District.

The boundaries of the Southeast Ridge Area Trunk Sanitary Sewer System Benefited District [as provided in section 118-216 of the Code of Ordinances] shall be as follows:

Beginning as a point of reference at the north ¼ corner of Section 2, Township 77 North, Range 24 West; thence east 150 feet along the north line of said Section 2 to a point; thence south 200 feet to the point of beginning; thence east 2,500 feet, parallel to said north line, to a point; thence north to a point on the west right-of-way line of Highway 65/69; thence east to the center of median of said Highway 65/69; thence northerly to a point to where the north line of Section 1, Township 77 North, Range 24 west meets the east right-of-way line of said Highway 65/69; thence east 4,200 feet along said north line of Section 1 to a point; thence north to a point on the south line of the northeast ¼ of the southeast ¼ of Section 36, Township 78 North, Range 24 West; thence northeasterly 875 feet to a point in the said northeast ¼ of the southeast ¼ of Section 36; thence east 240 feet to a point on the west line of the northwest ¼ of the southwest ¼ of Section 31, Township 78 North, Range 23 West; thence continuing east to a point on the east line of the northeast ¼ of said southwest ¼ of said Section 31; thence north through the center of said Section 31 to the southwest corner of the northwest ¼ of the northeast ¼ of said Section 31; thence northeasterly 1,030 feet to the center of said northwest ¼ of the northeast ¼ of Section 31; thence north 610 feet to a point on the south line of the southwest ¼ of the southeast ¼ of Section 30, Township 78 North, Range 23 West; thence west 160 feet along said south line to a point; thence north 525 feet to a point; thence northeasterly 1025 feet to the center of said southeast ¼ of Section 30; thence north 290 feet along the center of said southeast ¼ of Section 30 to a point; thence east 1,310 feet, parallel to the south line of the northeast ¼ of said southeast ¼ of Section 30, to a point on the east line of said northeast ¼ of the southeast ¼ of Section 30; thence north 160 feet along said east line of Section 30 to a point; thence east approximately 1050 feet to a point on the west property line of the Avon Cemetery that is in the southwest ¼ of Section 29 of Township 78 North, Range 23 West; thence south 230 feet along said west property line of Avon Cemetery to the southwest property corner of said Avon Cemetery; thence east along the south property line of said Avon Cemetery to the southeast

property corner of said Avon Cemetery; thence north 215 feet along the east property line of said Avon Cemetery to a point; thence east 605 feet, parallel to SE 57th Avenue, to a point; thence north to the centerline of said SE 57th Avenue; thence east along said centerline of SE 57th Avenue to the west line of the southeast ¼ of said Section 29; thence north to the center of said Section 29; thence east along the north line of the southeast ¼ of said section to the west right-of-way line of IA Highway 65; thence southerly along said right-of-way line to the north right-of-way line of SE 64th Avenue/E. Army Post Road; thence southerly across said SE 64th Avenue to a point on the south right-of-way line of said SE 64th Avenue with said point also being on the said west right-of-way line of IA Highway 65; thence continuing southerly along said west right-of-way line of IA Highway 65 to a point on the west line of the southeast ¼ of the southeast ¼ of Section 32 Township 78 North Range 23 West, with said point also being on the north right-of-way line of the IA Highway 5 westbound on-ramp; thence westerly along said north right-of-way line of IA Highway 5 to a point on the west line of the southeast ¼ of the southwest ¼ of said Section 32; thence south along said west line of the southeast ¼ of the southwest ¼ across IA Highway 5/65 to the south right-of-way line of said IA Highway 5/65; thence east along said south right-of-way line to the north quarter corner of Section 5 Township 77 North Range 23 West; thence south to the northeast corner of the southeast ¼ of the northwest ¼ of said Section 5; thence southwesterly to the northeast corner of the southeast ¼ of the southwest ¼ of Section 6 Township 77 North Range 23 West; thence west to the northwest corner of said southeast ¼ of the southwest ¼; thence southwest to a point on the west line of said southwest ¼ of Section 6; thence south along said west line to the northeast corner of Section 12 Township 77 North Range 24 West; thence continuing south along the east line of said Section 12 to the southeast corner of the northeast ¼ of the northeast ¼ of said Section 12; thence west along the south line of said northeast ¼ to the southwest corner of said northeast ¼; thence continuing west along the south line of the northwest ¼ of the said northeast ¼ of Section 12 to a point; thence southwesterly approximately 1445 feet to a point on the south line of the southwest ¼ of the said northeast ¼ of Section 12, with said point being 200 feet east of the east right-of-way line of said IA Highway 65/69; thence south 745 feet parallel to said east right-of-way line to a point in the northwest ¼ of the southeast ¼ of said Section 12; thence northeasterly to a point on the east line of said northwest ¼ of the southeast ¼, with said point being 455 feet south of the north line of said northwest ¼ of the southeast ¼; thence east parallel to the north line of the northeast ¼ of the southeast ¼ of said Section 12 to a point on the east line of said northeast ¼ of the southeast ¼; thence northeasterly to the northwest corner of the northeast ¼ of the southwest ¼ of Section 7, Township 77 North Range 23 West; thence east through the center of said Section 7 to a point on the north line of the southeast ¼ of said Section 7, with said point being 400 feet east of the center of said Section 7; thence south parallel to the west line of said southeast ¼ of Section 7 to a point on the north line of the southwest ¼ of the southeast ¼ of said Section 7; thence east 250 feet along said north line to a point; thence south parallel to the west line of said southwest ¼ of the southeast ¼ to a point on the south line of said southeast ¼; thence continuing south parallel to the west line of the northeast ¼ of Section 18 of said Township 77 North Range 23 West to a point on the north right-of-way line of Scotch Ridge Road; thence west along said north right-of-way line to the east right-of-way line of said IA Highway 65/69; thence north along said east right-of-way line to a point on said south line of the northeast ¼ Section 12 Township 77 North Range 24 West; thence west 325 feet to a point on the south line of the southeast ¼ of the northwest ¼ of said Section 12; thence north to a point on the north line of said northwest ¼; thence northwesterly 870 feet to a point; thence northwesterly 1490 feet to a point on the south line of the northwest ¼ of the southwest ¼ of Section 1, Township 77 North Range 24 West; thence northwesterly 535 feet to a point on the west line of said northwest ¼ of the southwest ¼ of Section 1;

thence northwesterly 825 feet to a point; thence northwesterly 595 feet to a point on the south right-of-way line of said IA Highway 5; thence easterly and southerly along said south right-of-way line, past the southbound Highway 65 to eastbound Highway 5/65 on-ramp, to a point on the west right-of-way line of said IA Highway 65/69; thence east across said Highway 65/69 to a point on the east right-of-way line of said Highway 65/69; thence northerly and easterly along said east right-of-way line, adjacent to the northbound Highway 65/69 to eastbound Highway 5/65 on-ramp, to a point on the south right-of-way line of said IA Highway 5; thence northwesterly across said Highway 65/69 to a point on the north right-of-way line of said IA Highway 5; thence westerly along the said north right-of-way line, adjacent to the westbound Highway 5/65 off-ramp, to a point on the east right-of-way line of said Highway 65/69; thence northerly 1,215 feet along said east right-of-way line to a point; thence westerly across said Highway 65/69 to a point on the west right-of-way line of said Highway 65/69; thence southwesterly 400 feet to a point; thence south 980 feet to a point on the north right-of-way line of said IA Highway 5; thence westerly 1,275 feet following said north right-of-way to a point; thence northerly 2,340 feet to the point of beginning.

(O.14,394)

21-70.10. Clover Hill Area Trunk Sanitary Sewer System Benefited District.

The boundaries of the Clover Hill Area Trunk Sanitary Sewer System Benefited District [as provided in section 118-217 of the Code of Ordinances] shall be as follows:

Beginning at the north ¼ corner of Section 4, Township 77 North, Range 24 West; thence east along the north line of said Section 4 to the northeast corner of said Section 4; thence south along the east line of said Section 4 to the north right-of-way line of IA Highway 5; thence westerly along said north right-of-way line to the east right-of-way line of County Road R63; thence north 160 feet along said east right-of-way line to a point; thence west 55 feet to the centerline of said County Road R63; thence south 18 feet along said Centerline to a point; thence west 270 feet to a point; thence north 100 feet to a point; thence west 395 feet to a point; thence south 240 feet to a point on said north right-of-way line of IA Highway 5; thence westerly along said north right-of-way line to the west line of the southwest ¼ of said Section 4; thence north along said west line through the west ¼ corner of said Section 4 to the southwest corner of the northwest ¼ of the northwest ¼ of said Section 4; thence northeasterly to the northwest corner of the south ½ of the northeast ¼ of the northwest ¼ of said Section 4; thence east along the north line of said south ½ to said centerline of County Road R63; thence north to the point of beginning.

(O.14,435)

21-70.11. Little Four Mile Trunk Sanitary Sewer System Benefited District.

The boundaries of the Little Four Mile Trunk Sanitary Sewer System Benefited District [as provided in section 118-218 of the Code of Ordinances] shall be as follows:

Beginning at the intersection of the centerline of the right-of-way of NE 56th Street and the centerline of the right-of-way of NE Oak Hill Drive; thence northeast along said right-of-way centerline of NE Oak Hill Drive to the centerline of the right-of-way of NE 27th Avenue (E Sheridan Avenue); thence easterly along said right-of-way centerline of NE 27th Avenue to the point of intersection with the westerly right-of-way line of U.S. Highway 65; thence northerly along said westerly right-of-way line of U.S. 65 to the point of intersection with the north line of South ½ of the Northeast ¼ Section 22, Township 79 North, Range 23 West of the Fifth Principal Meridian; thence west along said north line of the south ½ of the Northeast ¼ of said Section 22 to the Northwest Corner of the South ½ of the Northeast ¼ of said section 22; thence south along the west line of the south ½ of the Northeast ¼ of said Section 22 to the center of said Section 22; thence south along the west line of the Southeast ¼ of said Section 22 to

the South ¼ corner of said Section 22; thence east along the south line of the Southeast ¼ of said section to the northwest corner of the property described as the West 10 rods of the North 16 rods of the Northeast ¼ of the Northeast ¼ of Section 27, Township 79 North, Range 23 West of the Fifth Principal Meridian; thence south along the west line of the West 10 rods of the North 16 rods of the Northeast ¼ of the Northeast ¼ of said Section 27 to the southwest corner of the property described as West 10 rods of the North 16 rods of the Northeast ¼ of the Northeast ¼ of Section 27, Township 79 North, Range 23 West; thence east along the south line of the west 20 rods of the north 16 rods of the Northeast ¼ of the Northeast ¼ of said Section 27 to the southeast corner of the west 20 rods of the North 16 rods of the Northeast ¼ of the Northeast ¼ of Said Section 27, said point being on the west line of Lot 1 of Fini Acres Plat 2, an official plat; thence south along the said west line of Lot 1 Fini Acres Plat 2 to the southwest corner of said Lot 1; thence east along the south line of said Lot 1 to the southeast corner of Lot 1 Fini Acres Plat 2; thence continuing east along a straight line to the northwest corner of Lot 54 Brook Landing Plat 1, an official plat, said corner being on the east right-of-way line of E 56th Court; thence southerly along said east right-of-way line to the north right-of-way line of Brook View Avenue; thence southeasterly to the intersection of the east right-of-way line of said E 56th Court and the north right-of-way line of said Brook View Avenue; thence southeasterly along said east right-of-way line, said east right-of-way line also being easterly line of Lot F in said Brook Landing Plat 1, to the southeast corner of said Lot F of said Brook Landing Plat 1; thence along as straight line across Outlot X of said Fini Acres Plat 2 and across Outlot X of Fini Acres Replat, an official plat, to the northwest corner Lot 1 Fini Acres Replat; thence south along the west line of Lots 1, 2 and 3 of said Fini Acres Replat to the southwest corner of said Lot 3 Fini Acres Replat; thence south across said Outlet X Fini Acres Replat to the northwest corner Lot 4 Fini Acres Replat; thence south along the west line of Lots 4, 5 and 6 of said Fini Acres Replat to the southwest corner of said Lot 6 Fini Acres Replat, said southwest corner being on the northerly line of Lot 1 Silverado, an official plat; thence westerly along said northerly line of Lot 1 Silverado Acres to the northwest corner of said Lot 1 Silverado Acres, said northwest corner also being the northeast corner of Lot 7 Josiah F. Oglevie Estate, an official plat; thence northwesterly along the northerly line of said Lot 7 Josiah F. Oglevie Estate to the northwest corner of said Lot 7 Josiah F. Oglevie Estate; thence south along the west line of said Lot 7 Josiah F. Oglevie Estate to the northwest corner of Parcel A of said Lot 7 Josiah F. Oglevie Estate, Parcel A recorded in Book 8356 pages 999-1000 at the Recorder's office of Polk County, Iowa; thence east along the north line of said Parcel A to the northeast corner of said Parcel A; thence south along the east line of said Parcel A to the southeast corner of said Parcel A; thence continuing south along the southerly extension of the east line of said Parcel A to the centerline of the right-of-way of NE 23rd Avenue; thence east along said right-of-way centerline of NE 23rd Avenue to the centerline of the right-of-way of NE Oak Hill Drive; thence northeast along said right-of-way centerline of NE Oak Hill Drive to the point of beginning.

(O.15,740)

21-70.12. East Army Post Road and Indianola Avenue Trunk Sanitary Sewer Benefited District.

The boundaries of the East Army Post Road and Indianola Avenue Trunk Sanitary Sewer Benefited District [as provided in section 118-219 of the Code of Ordinances] shall be as follows:

BEGINNING AT THE SOUTH CORNER OF SECTION 26, TOWNSHIP 78 NORTH, RANGE 24 WEST OF THE 5TH PRINCIPLE MERIDIAN; THENCE WEST ALONG THE SOUTH LINE OF THE SOUTHWEST ¼ OF SAID SECTION 26 TO THE SOUTHWEST CORNER OF THE SOUTHEAST ¼ OF THE SOUTHWEST ¼ OF THE SOUTHWEST ¼

OF SAID SECTION 26; THENCE NORTH ALONG THE WEST LINE OF THE SOUTHEAST ¼ OF THE SOUTHWEST ¼ OF THE SOUTHWEST ¼ OF SAID SECTION 26 TO THE NORTH RIGHT-OF-WAY OF ARMY POST ROAD ALSO THE SOUTHWEST CORNER OF THE PARCEL SHOWN ON RETRACEMENT PLAT OF SURVEY AND RECORDED IN BOOK 19463 PAGE 601; THENCE CONTINUING NORTH ALONG SAID WEST LINE TO THE SOUTH LINE OF PARCEL 2023-48, RECORDED IN BOOK 19466 PAGE 512; THENCE EAST ALONG SAID SOUTH LINE OF SAID PARCEL 2023-48 TO THE NORTHEAST CORNER OF LOT 1 OF JEWETT ACRES, AN OFFICIAL PLAT; THENCE SOUTH ALONG THE EAST LINE OF SAID LOT 1 TO THE NORTHEAST CORNER LOT 3 OF SAID JEWETT ACRES; THENCE WESTERLY ALONG THE NORTH LINES OF LOTS 3 AND 2 OF SAID JEWETT ACRES TO THE NORTHWEST CORNER OF SAID LOT 2; THENCE SOUTH ALONG THE WEST LINE OF SAID LOT 2 TO THE SOUTHWEST CORNER OF SAID LOT 2, SAID SOUTHWEST CORNER ALSO BEING ON THE NORTH RIGHT-OF-WAY OF EAST ARMY POST ROAD; THENCE EASTERLY ALONG SAID NORTH RIGHT-OF-WAY LINE TO THE WESTERLY LINE OF LOT 2 OF NEW HOPE, AN OFFICIAL PLAT; THENCE NORTH ALONG THE WEST LINE OF SAID LOT 2 TO THE NORTHWEST CORNER OF SAID LOT 2, ALSO SAID NORTHWEST CORNER BEING ON THE SOUTH LINE OF LOT 4 OF SAID NEW HOPE; THENCE WEST ALONG THE SOUTH LINE OF SAID LOT 4 TO THE SOUTHWEST CORNER OF SAID LOT 4; THENCE NORTH ALONG THE WEST LINE OF SAID NEW HOPE TO THE NORTH LINE OF THE SOUTH 75.0 FEET OF LOT 9 IN SAID NEW HOPE; THENCE EAST ALONG THE NORTH LINE OF THE SOUTH 75.0 FEET OF SAID LOT 9 TO THE NORTHEAST CORNER OF THE SOUTH 75.0 FEET OF SAID LOT 9, ALSO NORTHEAST CORNER BEING ON THE WEST RIGHT-OF-WAY LINE OF SOUTHEAST 16TH COURT; THENCE CONTINUING ALONG THE EASTERLY EXTENSION OF THE NORTH LINE OF THE SOUTH 75.0FEET OF SAID LOT 9 TO THE CENTERLINE OF SOUTHEAST 16TH COURT RIGHT OF WAY; THENCE SOUTH ALONG SAID CENTERLINE OF SOUTHEAST 16TH COURT RIGHT OF WAY TO THE WESTERLY EXTENSION OF THE NORTH LINE OF LOT 33 OF SAID NEW HOPE; THENCE EASTERLY ALONG SAID WESTERLY EXTENSION OF THE NORTH LINE OF SAID LOT 33 TO THE WEST RIGHT-OF-WAY OF SOUTHEAST 16TH COURT, ALSO BEING THE NORTHWEST CORNER OF SAID LOT 33; THENCE EAST ALONG THE NORTH LINE OF SAID LOT 33 TO THE SOUTHWEST CORNER OF LOT 49 IN SAID NEW HOPE; THENCE NORTH ALONG THE WEST LINE OF SAID LOT 49 AND LOT 50 OF SAID NEW HOPE TO THE NORTHWEST CORNER OF SAID LOT 50; THENCE EAST ALONG THE NORTH LINE OF SAID LOT 50 TO THE NORTHEAST CORNER OF SAID LOT 50, ALSO SAID NORTHEAST CORNER BEING ON THE WEST RIGHT-OF-WAY OF SE 19TH STREET; THENCE CONTINUING EAST TO THE EAST RIGHT-OF-WAY OF SE 19TH STREET, ALSO BEING THE NORTHWEST CORNER OF LOT 66 OF SAID NEW HOPE; THENCE EAST ALONG THE NORTH LINE OF SAID LOT 66 TO THE NORTHEAST CORNER OF SAID LOT 66; THENCE SOUTHERLY ALONG THE EAST LINE OF SAID LOT 66 TO THE NORTHWEST CORNER OF LOT 100 OF NEW HOPE PLAT 2, AN OFFICIAL PLAT; THENCE EAST ALONG THE NORTH LINE OF SAID NEW HOPE PLAT 2 TO THE NORTHEAST CORNER LOT 112 IN SAID NEW HOPE PLAT 2, SAID NORTHEAST CORNER ALSO BEING ON THE WEST RIGHT-OF-WAY LINE OF INDIANOLA AVENUE; THENCE EASTERLY ALONG THE NORTH LINE OF THE SOUTHEAST ¼ OF THE SOUTHEAST ¼ OF SECTION 26, TOWNSHIP 78 NORTH, RANGE 24 WEST OF THE FIFTH PRINCIPAL MERIDIAN TO THE NORTHWEST CORNER OF THE SOUTHWEST ¼ OF THE SOUTHWEST ¼ OF SECTION 25, TOWNSHIP 78 NORTH, RANGE 24 WEST OF THE FIFTH PRINCIPAL

MERIDIAN; THENCE EAST ALONG THE NORTH LINE OF THE SOUTH ½ OF SECTION 25, TOWNSHIP 78 NORTH, RANGE 24 WEST OF THE FIFTH PRINCIPAL MERIDIAN TO THE NORTHEAST CORNER OF THE SOUTH ½ OF SECTION 25, RANGE 78 NORTH, 24 WEST OF THE FIFTH PRINCIPAL MERIDIAN; THENCE SOUTH ALONG THE EAST LINE OF SAID SECTION 25 TO THE SOUTHEAST CORNER OF SECTION 25, TOWNSHIP 78 NORTH, RANGE 24 WEST OF THE FIFTH PRINCIPAL MERIDIAN; THENCE WEST ALONG THE SOUTH LINE OF SAID SECTION 25 TO THE SOUTHWEST CORNER OF SECTION 25, TOWNSHIP 78 NORTH, RANGE 24 WEST OF THE FIFTH PRINCIPAL MERIDIAN, SAID SOUTHWEST CORNER ALSO BEING THE NORTHWEST CORNER OF SECTION 36, TOWNSHIP 78 NORTH, RANGE 24 WEST OF THE FIFTH PRINCIPAL MERIDIAN; THENCE SOUTH ALONG WEST LINE OF THE NORTHWEST ¼ OF SECTION 36, TOWNSHIP 78 NORTH, RANGE 24 WEST OF THE FIFTH PRINCIPAL MERIDIAN TO THE NORTHWEST CORNER OF LOT 3 OF THE OFFICIAL PLAT OF THE NORTHWEST ¼ OF THE NORTHWEST ¼ OF SECTION 36, TOWNSHIP 78 NORTH, RANGE 24 WEST OF THE FIFTH PRINCIPAL MERIDIAN; THENCE EAST ALONG THE NORTH LINE OF SAID LOT 3 TO A POINT THAT IS 8.0 FEET WEST OF THE NORTHEAST CORNER OF SAID LOT 3; THENCE SOUTH AND PARALLEL TO THE EAST LINE OF SAID LOT 3 TO A POINT THAT IS 4.5 FEET SOUTH OF THE NORTH LINE OF LOT 1 IN SAID OFFICIAL PLAT OF THE NORTHWEST ¼ OF THE NORTHWEST ¼ OF SECTION 36, TOWNSHIP 78 NORTH, RANGE 24 WEST OF THE FIFTH PRINCIPAL MERIDIAN; THENCE EAST AND PARALLEL TO THE NORTH LINE OF SAID LOT 1, A DISTANCE OF 222.5 FEET; THENCE NORTH AND PARALLEL THE EAST LINE OF SAID LOT 3, A DISTANCE OF 4.5 FEET AND TO THE NORTH LINE OF SAID LOT 1, SAID NORTH LINE ALSO BEING NORTH LINE OF SAID PARCEL K OF CORRECTED PLAT OF SURVEY RECORDED IN BOOK 10394, PAGE 736; THENCE EAST ALONG THE NORTH LINE OF SAID PARCEL K TO A POINT OF DEFLECTION; THENCE NORTH ALONG THE WEST LINE OF SAID PARCEL K TO A POINT OF DEFLECTION; THENCE EASTERLY ALONG THE NORTH LINE OF SAID PARCEL K TO THE NORTHEAST CORNER OF PARCEL K; THENCE SOUTH ALONG THE EAST LINE OF SAID PARCEL K TO THE SOUTHEAST CORNER OF PARCEL K; THENCE WEST ALONG THE SOUTH LINE OF PARCEL K TO THE NORTHEAST CORNER A PARCEL OF LAND AS DESCRIBED IN THE QUIT CLAIM DEED RECORDED IN BOOK 18349, PAGE 773; THENCE SOUTH ALONG THE EAST LINE OF SAID PARCEL TO THE SOUTHEAST CORNER OF SAID PARCEL DESCRIBED IN BOOK 18349, PAGE 773; THENCE WEST ALONG THE SOUTH LINE OF SAID PARCEL DESCRIBED IN BOOK 18349, PAGE 773 TO THE APPARENT INTERSECTION OF THE WEST LINE OF SECTION 36, TOWNSHIP 78 NORTH, RANGE 24 WEST OF THE FIFTH PRINCIPAL MERIDIAN; THENCE NORTHERLY ALONG THE WEST LINE OF SAID SECTION 36 TO THE SOUTHEAST CORNER OF THE NORTHEAST ¼ OF THE NORTHEAST ¼ OF SECTION 35, TOWNSHIP 78 NORTH, RANGE 24 WEST OF THE FIFTH PRINCIPAL MERIDIAN; THENCE WEST ALONG THE SOUTH LINE OF THE NORTH ½ OF THE NORTHEAST ¼ OF SAID SECTION 35 TO THE SOUTHWEST CORNER OF THE NORTH ½ OF THE NORTHEAST ¼ OF SECTION 35, TOWNSHIP 78 NORTH, RANGE 24 WEST OF THE FIFTH PRINCIPAL MERIDIAN; THENCE NORTH ALONG THE WEST LINE OF THE NORTHEAST ¼ OF SAID SECTION 35 TO THE NORTH CORNER OF SECTION 35, TOWNSHIP 78 NORTH, RANGE 24 WEST OF THE FIFTH PRINCIPAL MERIDIAN AND THE POINT OF BEGINNING.

(O.16,439)

ARTICLE II. STORM SEWER DISTRICTS*

21-71. Bell Avenue Storm Sewer District.

The following described area is hereby established as a storm sewer district to be known as the Bell Avenue Storm Sewer District, the boundaries of which are as follows, to-wit:

Starting at the southwest corner of Lot 21, Wakonda Club Knolls, an official plat; thence westerly to a point 100 feet west of the southwest corner and on the south line of said Lot 21; thence northwesterly to a point 33.8 feet south of the north line and on the west line of said Lot 21; thence westerly to a point on the west line of Wakonda Court and 25 feet south of the south line of Lot 27 Wakonda Club Knolls; thence northerly to the southwest corner of Lot 27, Wakonda Club Knolls; thence westerly to a point 100 feet west of the east line and on the south line of said Lot 27; thence north to a point 100 feet west of the east line and on the north line of said Lot 27; thence westerly to the southwest corner of Lot 26, Wakonda Club Knolls; thence northerly to a point 55 feet north of the south line and on the east line of Lot 9, Wakonda Plaza Plat No. 3, an official plat; thence westerly to a point 55 feet north of the south line and on the west line of Lot 9, Wakonda Plaza Plat No. 3; thence northerly to a point 85 feet north of the south line and on the east line of Lot 8, Wakonda Plaza Plat No. 3; thence westerly to a point 85 feet north of the south line and on the west line of Lot 8, Wakonda Plaza Plat No. 3; thence northerly to the northwest corner of Lot 8, Wakonda Plaza Plat No. 3; thence westerly to a point 648.2 feet south of the north line of Section 20, Township 78, Range 24 West of the 5th P.M., and on the east line of Southwest Twenty-fourth Street; thence southerly to a point 658 feet south of the north line of said Section 20 and on the east line of Southwest Twenty-fourth Street; thence westerly to a point 658 feet south of the north line of said Section 20, and on the west line of Southwest Twenty-fourth Street; thence northerly to the southwest corner of Lot 3, Moneen Hills, an official plat; thence northwesterly to a point 65 feet west of the east line and on the north line of said Lot 3; thence northerly to a point on the north line of Park Avenue and 65 feet west of the extended west line of Southwest Twenty-fourth Street; thence westerly to a point 1153 feet east of the west line of the southwest ¼, Section 17, Township 78, Range 24 West of the 5th P.M., and on the north line of Park Avenue; thence northwesterly to a point 924 feet east of the west line and 163 feet north of the south line of said southwest ¼ Section 17; thence northwesterly to a point 624 feet east of the west line and 378 feet north of the south line of said southwest ¼, Section 17; thence northerly to a point 624 feet east of the west line and 907 feet north of the south line of said southwest ¼, Section 17; thence northwesterly to a point 1224 feet north of the south line and on the west line of said southwest ¼, Section 17; thence north 44 feet on the west line of said southwest ¼, Section 17; thence southwesterly to a point 1168 feet north of the south line and 368 feet west of the east line of the southeast ¼, Section 18, Township 78, Range 24 West of the 5th P.M.; thence easterly to a point 1168 feet north of the south line of said southeast ¼, Section 18 and on the centerline of Southwest Thirtieth Street; thence northerly along the centerline of Southwest Thirtieth Street to a point 826.77 feet south of the north line of said southeast ¼, Section 18; thence westerly to a point 826.77 feet south of the north line of said southeast ¼, Section 18 and on the west line of Southwest Thirtieth Street; thence northerly to the intersection of the west line of Southwest Thirtieth Street and the centerline of C.G.W. R.R. right-of-way; thence northeasterly along said centerline of C.G.W. R.R. right-of-way to a point 80 feet west of the east line of the northeast ¼, Section 18, Township 78, Range 24 West of the 5th P.M.; thence northerly to a point 100 feet west of and 47.5 feet south of the northwest corner of Lot 35 Valley Gardens, an official plat; thence northerly to a point 50 feet west of the east line of said northeast ¼, Section 18

*__Editor's note—__The storm sewer districts in this article derive from subchapter 6 of chapter 21 of the 1991 Des Moines City Code. The boundaries are set out in this appendix at the direction of the city.

and on the extended south line of Valley Drive; thence northerly to a point 50 feet west of the east line of said northeast ¼, Section 18 and 65 feet northerly from the extended centerline of Valley Drive measured on a line perpendicular to the extended centerline of Valley Drive; thence easterly and parallel to the centerline of Valley Drive to a point ten feet east of the extended west line of Lot 162, Valley Gardens, an official plat; thence southerly to a point ten feet east of the west line and on the north line of said Lot 162, Valley Gardens; thence easterly to the northeast corner of said Lot 162, Valley Gardens; thence southerly to the southeast corner, Lot 131, of said Valley Gardens; thence southwesterly to the southwest corner of said Lot 131, Valley Gardens; thence southerly to the southeast corner of Lot 119 of said Valley Gardens; thence southwesterly to the southeast corner of Lot 115 of said Valley Gardens; thence southerly along the extended east line of said Lot 115 Valley Gardens to the north line of the C.G.W. R.R. right-of-way; thence southeasterly perpendicular to the north line of the C.G.W. R.R. right-of-way to the centerline of the C.G.W. R.R. right-of-way; thence northeasterly along the centerline of the C.G.W. R.R. right-of-way to the west line of Fleur Drive; thence southwesterly to a point six feet east of the east line and on the extended south line of Pt. Lot 19, official plat; Pt. of northwest ¼, Section 17, Township 78, Range 24 West of the 5th P.M., lying south of C.G.W. R.R. right-of-way; thence southeasterly to a point on the extended centerline of Bell Avenue and 50 feet east of the west line of Fleur Drive; thence southerly to a point 115 feet south of the extended centerline of Bell Avenue and 50 feet east of the west line of Fleur Drive; thence westerly to a point 115 feet south of the centerline of Bell Avenue and on the west line of Fleur Drive; thence southerly along the west line of Fleur Drive to a point 300 feet north of the south line of the north ten acres of the east 60 acres of the southwest ¼, Section 17, Township 78, Range 24 west of the 5th P.M.; thence southwesterly to a point 80 feet west of the west line of Fleur Drive and 120 feet north of the south line of the north ten acres of the east 60 acres of said southwest ¼, Section 17; thence southeasterly to a point on the south line of the north ten acres of the east 60 acres of said southwest ¼, Section 17, and on the west line of Fleur Drive; thence easterly 21 feet along the south line of the north ten acres of the east 60 acres of said southwest ¼, Section 17; thence southerly along the west line of Fleur Drive to a point 134 feet north of the south line of the south ten acres of the north 40 acres of the east 60 acres of said southwest ¼, Section 17; thence westerly to a point 222 feet north of the northeast corner of Lot 4 Willowmere, an official plat; thence southerly to the northeast corner of said Lot 4; thence easterly to a point 63 feet east of the west line and on the north line of Lot 2, Willowmere; thence southerly to a point 63 feet east of the west line and on the south line of said Lot 2; thence easterly to a point 95 feet east of the west line and on the south line of said Lot 2; thence southerly to a point 50 feet south of the north line and 95 feet east of the west line of Lot 3, Willowmere, an official plat; thence southeasterly to a point on the west line of Fleur Drive and 25 feet north of the centerline of Willowmere Drive; thence southerly to the southwest corner of Lot 2, Park Ranch, an official plat; thence westerly to a point 100 feet east of the west line on the south line of said Lot 2; thence southerly to a point 100 feet east of the west line and on the south line of Lot 3, Park Ranch, an official plat; thence westerly to a point 40 feet east of the west line and on the north line of Lot 4, Park Ranch, an official plat; thence southerly to a point 40 feet east of the west line and on the south line of said Lot 4; thence southwesterly to a point 36.5 feet east of the west line and 25 feet north of the south line of Lot 6, Park Ranch, an official plat; thence southerly to a point 58.5 feet west of the east line and on the north line of Lot 1, Wakonda Plaza Plat No. 2, an official plat; thence westerly to a point 80 feet east of the west line and on the north line of said Lot 1; thence southerly to a point 80 feet east of the west line and on the south line of Lot 2, Wakonda Plaza Plat No. 2, an official plat; thence easterly to a point 150 feet east of the west

line and on the north line of Lot 3, Wakonda Plaza Plat No. 2, an official plat; thence southerly to a point 150 feet east of the west line and on the south line of said Lot 3; thence easterly to the southeast corner of said Lot 3; thence southerly along the east boundary line of Wakonda Plaza Plat No. 2, an official plat; to a point on the southeast corner of Lot 6, Wakonda Plaza Plat No. 2; thence west to a point on the northeast corner of Lot 24, Wakonda Club Knolls, an official plat; thence south along the west line of Lot "1" Wakonda Club Knolls, an official plat; to the north line of Lot 1, Wakonda Club Knolls; thence westerly to the northwest corner of said Lot 1; thence south along the west line of Lots 1 and 2, Wakonda Club Knolls to the point of beginning, all now included in and forming a part of the City of Des Moines, Iowa.

(C62, § 48-66; O.8112; C75, C79, C91, § 21-71)

21-72. Southeast Sixth and Dunham Storm Sewer District.

The following described area is hereby established as a storm sewer district to be known as the Southeast Sixth and Dunham Storm Sewer District, the boundaries of which are as follows, to wit:

Beginning at a point which lies on the centerline of Southeast Sixth Street 450 feet north of the centerline of Van Buren Avenue; thence east 33 feet to a point along the east line of Southeast Sixth Street; thence southerly along the east line of Southeast Sixth Street to the centerline of Van Buren Avenue; thence easterly along the centerline of Van Buren Avenue to a point on the west line of Southeast Ninth Street; thence east to a point on the centerline of Southeast Ninth Street; thence southerly along the centerline of Southeast Ninth Street to a point which lies on the extended centerline of Sherman Lake Street; thence westerly along the centerline of Sherman Lake Street to a point 73 feet east of the centerline of Southeast Sixth Street; thence west to the west line of Southeast Sixth Street; thence southerly 189.04 feet along the west line of Southeast Sixth Street; thence westerly along a line parallel to Columbus Avenue to a point 100 feet easterly of the east line of Southeast Fourth Street along a line which is perpendicular to said east line; thence southwesterly to a point which is on the centerline of Columbus Avenue and on the centerline of Southeast Fourth Street; thence northwesterly to a point 40 feet westerly of the west line of Southeast Fourth Street along a line perpendicular to said west line and 50 feet northerly of the north line of Columbus Avenue along a line perpendicular to said north line; thence westerly along a line parallel to Columbus Avenue to a point 20 feet westerly of the east line of Lot 17, Block 32, Clifton Heights Second Plat, an official plat as measured along a line perpendicular to said east line; thence southwesterly along a line perpendicular to Columbus Avenue to a point 50 feet north of the north line of Hillside Avenue, as measured perpendicular to Hillside Avenue; thence west along a line parallel to Hillside Avenue to a point 121 feet east of a point being the intersection of the north line of Hillside Avenue and east line of Indianola Road; thence southwesterly along a line to a point on the centerline of Indianola Road and on the centerline of Hillside Avenue; thence southerly along the centerline of Indianola Road to a point on the centerline of Hartford Avenue; thence westerly along the centerline of Hartford Avenue to a point which is on the centerline of Southwest First Street; thence northerly along the centerline of Southwest First Street to a point which is on the centerline of Hillside Avenue on the east; thence westerly 25.2 feet along the extended centerline of Hillside Avenue on the east, to a point on the centerline of Southwest First Street; thence northwesterly along the centerline of Southwest First Street to a point which lies on the centerline of Indianola Road; thence southeasterly along a line to a point which lies on the centerline of Indianola Road and on the centerline of South Union Street; thence northwesterly along a line to a point on the south line of Lot 6, official plat, Lot 3, official plat of Section 10-78-24, west of the 5th P.M., and 27.5 feet from the southwest corner of said Lot 6; thence northerly along a line to a point on the north line of Columbus Avenue

and on the centerline of the north-south alley between South Union Street and Southeast First Street; thence northwesterly along a line to the northwest corner of Lot 1, Block 13, Van's Addition, an official plat; thence northerly along a line to the southwest corner of Lot 4, Block 14, Van's Addition, an official plat; thence northeasterly along a line to a point which lies on the north line of said Lot 4, 66 feet easterly from the northwest corner of said Lot 4; thence northerly along a line parallel to South Union Street to a point which lies on the south line of Lot 2, Rand Plaza, an official plat, 66 feet east of the southwest corner of said Lot 2; thence northwesterly along a line to the northwest corner of Lot 1, Rand Plaza, an official plat; thence northerly to the southwest corner of Lot 4, Block 15 Van's Addition, an official plat; thence northeasterly along a line to the northeast corner of Lot 1, Block 15 Van's Addition, an official plat; thence northerly to the southeast corner of Lot 2, Block 16, Van's Addition, an official plat; thence northwesterly along a line to the northwest corner of Lot 1, Block 16 South Fort Des Moines, an official plat; thence northerly along a line perpendicular to East Jackson Avenue to a point which lies on the centerline of East Jackson Avenue; thence easterly along the centerline of East Jackson Avenue to a point which lies on the centerline of Southeast First Street; thence northerly along the centerline of Southeast First Street to a point which lies on the centerline of East Livingston Avenue; thence westerly 33 feet along the centerline of East Livingston Avenue; thence northerly 300.04 feet along the west line of Southeast First Street; thence easterly along a line perpendicular to Southeast First Street to a point on a line parallel to the south line of the C.G.W. R.R. right-of-way and 25 feet southeasterly measured on a line perpendicular to said south line; thence northeasterly along said line parallel to the south R.R. right-of-way line to the centerline of Van Buren Avenue; thence easterly along the centerline of Van Buren Avenue to a point which lies on the west line of Southeast Sixth Street; thence north along the west line of Southeast Sixth Street to a point which lies 450 feet north of the centerline of Van Buren Avenue; thence east along a line perpendicular to Southeast Sixth Street to the point of beginning, all now included in and forming a part of the City of Des Moines, Iowa.

(C62, § 48-67; O.8112; C75, C79, C91, § 21-72)

21-73. Central Place Storm Sewer District.

The following described area is hereby established as a storm sewer district to be known as the Central Place Storm Sewer District, the boundaries of which are as follows, to wit:

Beginning at the southwest corner of Lot 9, Block 19, Central Place, an official plat; thence northerly along a straight line to the southeast corner of Lot 2, said Block 19; thence northerly along a straight line to the northeast corner of said Lot 2; thence northerly along a straight line to the southeast corner of Lot 11, Block 17, Central Place; thence northerly along a straight line to the southwest corner of Lot 2, Block 18, Central Place; thence northerly along a straight line to the northeast corner of said Lot 2; thence northerly along a straight line to the southeast corner of Lot 14, Block 7, Central Place; thence northerly along a straight line to the southeast corner of Lot 3, said Block 7; thence northerly along a straight line to the southeast corner of Lot 8, Block 6, Central Place; thence northerly along a straight line to a point on the centerline of College Avenue, said point being 151.16 feet east of the east line of Michigan Street; thence northerly along a straight line to a point on the centerline of Washington Avenue, said point being 839.91 feet east of the east line of Ohio Street; thence northwesterly along a straight line to a point on the centerline of Jefferson Avenue, said point being 533.3 feet east of the east line of Ohio Street; thence northwesterly along a straight line to a point on the centerline of Franklin Avenue, said point being 219 feet east of the centerline of Ohio Street; thence northwesterly along a straight line to a point on the centerline of Ohio Street, said point being 122.54 feet north of the north line of Franklin Avenue; thence westerly along a straight line to a point on the north line of Lot 12, Block 2, Rollinson's Garden Addition, an

official plat, said point being 25 feet east of the east line of Second Avenue; thence southerly along a straight line to a point on the north line of Lot 17, Rollinson's Place, an official plat, said point being 25 feet east of the east line of Second Avenue; thence southerly along a straight line to the northeast corner of Lot 13, Rollinson's Place; thence southeasterly along the easterly line of Lots 13 and 12, Rollinson's Place, to the west line of the north-south alley lying east of and adjacent to said Lot 12; thence southerly along a straight line to the southeast corner of Lot 11, Rollinson's Place; thence westerly along a straight line to a point on the south line of said Lot 11, said point being 25 feet east of the east line of Second Avenue; thence southerly along a straight line to a point on the north line of Lot 9, Rollinson's Place, said point being 25 feet east of the east line of Second Avenue; thence easterly along a straight line to the northeast corner of said Lot 9; thence southwesterly along a straight line to the southwest corner of Lot 8, Rollinson's Place; thence southerly along a straight line to the southwest corner of Lot 28, Block 1, Central Place; thence easterly along the south line of said Lot 28, a distance of 50 feet; thence southerly along a straight line to a point on the south line of Lot 21, said Block 1, said point being 50 feet east of the southwest corner of said Lot 21; thence westerly along the south line of said Lot 21 to the southwest corner of said Lot 21; thence southerly along a straight line to the northwest corner of Lot 26, Block 12, Central Place; thence easterly along the north line of said Lot 26 a distance of 50 feet; thence southerly along a straight line to a point on the south line of Lot 14, said Block 12, said point being 50 feet east of the southwest corner of said Lot 14; thence westerly along the south line of said Lot 14 to the southwest corner of said Lot 14; thence southerly along the east line of Second Avenue to the south line of Forest Avenue; thence easterly along the south line of Forest Avenue a distance of 50 feet; thence southerly along a straight line to a point on the south line of Lot 6, Annex to Rutherford Heights, an official plat, said point being 50 feet east of the southwest corner of said Lot 6; thence westerly along the south line of said Lot 6 to the southwest corner of said Lot 6; thence southerly along the east line of Second Avenue to a point, said point being 141 feet south of the southwest corner of Lot 14, Annex to Rutherford Heights; thence easterly along a straight line to a point, said point being 141 feet south of and 120 feet east of the southwest corner of said Lot 14; thence northeasterly along a straight line to a point on the west line of the north-south alley lying east of and adjacent to said Lot 14, said point being 61 feet south of the southeast corner of said Lot 14; thence southerly along the west line of the said alley to the north line of University Avenue; thence easterly along the north line of University Avenue to the point of beginning, all now included in and forming a part of the City of Des Moines, Iowa.

(C62, § 48-68; O.8485; C75, C79, C91, § 21-73)

21-74. Rodgers-McKee Storm Sewer District.

The following described area is hereby established as a storm sewer district to be known as the Rodgers-McKee Storm Sewer District; the boundaries of which are as follows, to wit:

Beginning at the southwest corner of Lot 20, plat 3, Southview Acres, an official plat; thence northerly along the west line of said Lot 20 to the northwest corner of said Lot 20; thence easterly along the north line of said Lot 20 a distance of 32 feet; thence northerly along a straight line, said line being parallel to and 65 feet east of the centerline of Southview Drive to the south line of Lot 25, Plat 3, Southview Acres; thence westerly along a straight line to the southwest corner of Lot 14, Plat 3, Southview Acres; thence northerly along the west line of said Lot 14 to the southeast corner of Lot 95, Plat 4, Highland Hills, an official plat; thence westerly along the south line of said Lot 95 a distance of 50 feet; thence northerly along a straight line, said line being parallel to and 50 feet west of the east line of Lots 94 and 95, Plat 4, Highland Hills, to the south line of Lot 93, Plat 4, Highland Hills; thence westerly along the south line of said Lot 93, a distance of 50 feet; thence northerly along a

straight line, said line being parallel to and 100 feet west of the east line of Lots 93, 92 and 91, Plat 4, Highland Hills to the south line of Lot 90, Plat 4, Highland Hills; thence westerly along a straight line to a point on the south line of Lot 71, Plat 4, Highland Hills, said point being 50 feet west of the east line of said Lot 71; thence northerly along a straight line, said line being parallel to and 83 feet west of the centerline of Southwest Twelfth Street to the south line of Lot 73, Plat 4, Highland Hills; thence westerly along the south line of Lots 73 and 48, Plat 4, Highland Hills, a distance of 240 feet; thence northerly along a straight line, said line being parallel to and 73 feet east of the centerline of Southwest Thirteenth Street to the south line of Lot 47, Plat 4, Highland Hills; thence westerly along the south line of said Lot 47 to the southwest corner of said Lot 47; thence northerly along the west line of Lots 47, 46, and 45, Plat 4, Highland Hills, to the northwest corner of said Lot 45; thence westerly along a straight line to a point on the south line of Lot 37, Plat 4, Highland Hills, said point being 25 feet west of the east line of said Lot 37; thence northerly along a straight line, said line being parallel to and 58 feet west of the centerline of Southwest Thirteenth Street to the south line of Lot 39, Plat 4, Highland Hills; thence westerly along the south line of said Lot 39 a distance of 75 feet; thence northerly along a straight line, said line being parallel to and 133 feet west of the centerline of Southwest Thirteenth Street, a distance of 106 feet; thence westerly along a straight line, said line being parallel to and 25 feet south of the south line of Amos Avenue a distance of 180 feet; thence northerly along a straight line, said line being parallel to and 50 feet east of the west line of Lot 1, Plat 4, Highland Hills to the north line of said Lot 1; thence westerly along the north line of said Lot 1 a distance of 36.6 feet; thence northerly along a straight line to a point on the south line of Lot 19, Eilers Place Replat, an official plat, said point being 35 feet west of the southeast corner of said Lot 19; thence northerly along a straight line said line being parallel to and 35 feet west of the east line of Lots 19 and 18, Eilers Place Replat a distance of 277.61 feet; thence westerly along a straight line, said line being parallel to and 70 feet south of the north line of Lot 18, Eilers Place Replat to the west line of said Lot 18; thence northerly along the east line of Southwest Fourteenth Street, a distance of 135 feet; thence easterly along a straight line, said line being parallel to and 45 feet north of the centerline of Wade Street to the west line of Lot 8, Eilers Place Replat; thence northerly along the west line of Lots 8 and 5, Eilers Place Replat, a distance of 161 feet; thence easterly along a straight line, said line being parallel to and 50 feet north of the south line of said Lot 5 to the east line of said Lot 5; thence northerly along the east line of said Lot 5 a distance of 50 feet; thence easterly along a straight line, said line being parallel to and 100 feet north of the south line of Lot 4, Eilers Place Replat, to the east line of said Lot 4; thence northerly along the east line of said Lot 4 and its northerly extension to the centerline of Johnson Street; thence easterly along the centerline of Johnson Street a distance of 50 feet; thence northerly along the east line of Lot 269, David McKee Place, an official plat, to the northeast corner of said Lot 269; thence easterly along the south line of Lot 261, David McKee Place, to the southeast corner of said Lot 261; thence northerly along the east line of Lots 261, 220, 211 and 170, David McKee Place, a distance of 588 feet; thence easterly along a straight line, said line being parallel to and 120 feet north of the centerline of Burnham Avenue, to the west line of Lot 172, David McKee Place; thence northerly along the west line of Lots 172, 159, and 122, David McKee Place, a distance of 298 feet; thence westerly along a straight line, said line being parallel to and 50 feet south of the north line of Lot 121, David McKee Place to the west line of said Lot 121; thence northerly along the west line of Lots 121, 110 and 71, David McKee Place to the southeast corner of Lot 61, David McKee Place; thence westerly along the south line of said Lot 61 to the southwest corner of said Lot 61; thence northerly along the west line of said Lot 61 to the northwest corner of said Lot 61; thence westerly along the south line of West Street a distance of 50

feet; thence northerly along the west line of Lot 24, David McKee Place and its southerly extension to the southeast corner of Lot 18, David McKee Place; thence westerly along the south line of said Lot 18 to the southwest corner of said Lot 18; thence northerly along the west line of said Lot 18 a distance of 54 feet; thence westerly along a straight line, said line being parallel to and 135 feet south of the centerline of Army Post Road to the east line of Lot 20, David McKee Place; thence northerly along the east line of said Lot 20 a distance of 50 feet; thence westerly along a straight line, said line being parallel to and 85 feet south of the centerline of Army Post Road to the west line of said Lot 20; thence northerly along the west line of said Lot 20 to the northwest corner of said Lot 20; thence southwesterly to a point on the west line of Southwest Fourteenth Street, said point being 50 feet south of the centerline of Army Post Road; thence westerly along a straight line, said line being parallel to and 50 feet south of the centerline of Army Post Road a distance of 30 feet; thence southerly along a straight line, said line being parallel to and 55 feet west of the centerline of Southwest Fourteenth Street a distance of 60 feet; thence westerly along a straight line, said line being parallel to and 110 feet south of the centerline of Army Post Road, a distance of 295 feet; thence northerly along a straight line, said line being parallel to and 350 feet west of the centerline of Southwest Fourteenth Street a distance of 195 feet; thence easterly along a straight line, said line being parallel to and 85 feet north of the centerline of Army Post Road to the west line of Southwest Fourteenth Street; thence northerly along the west line of Southwest Fourteenth Street a distance of 50 feet; thence easterly along a straight line, said line being parallel to and 135 feet north of the centerline of Army Post Road to the east line of Lot 12, Plat 2, Columbia Heights, an official plat; thence northerly along the east line of said Lot 12 a distance of 130 feet; thence easterly along a straight line, said line being parallel to and 265 feet north of the centerline of Army Post Road a distance of 150 feet; thence northerly along a straight line, said line being parallel to and 180 feet west of the centerline of Southwest Thirteenth Street to the north line of Lot 13, Plat 2, Columbia Heights; thence easterly along the north line of said Lot 13 a distance of 110 feet; thence northerly along a straight line, said line being parallel to and 70 feet west of the centerline of Southwest Thirteenth Street a distance of 50 feet; thence easterly along a straight line, said line being parallel to and 50 feet north of the north line of said Lot 13 and the north line of Lot 7 Ellis Place Replat, an official plat, a distance of 140 feet; thence southerly along a straight line, said line being parallel to and 70 feet east of the centerline of Southwest Thirteenth Street to the north line of Lot 7, Ellis Place Replat; thence easterly along the north line of Lots 7, 6 and 1, Ellis Place Replat, Lot 15, Plat 2, Columbia Heights and Lots 6, 7, 8, 9 and 16, Cohron, an official plat, a distance of 1182.6 feet; thence northerly along a straight line, said line being parallel to and 120.5 feet west of the centerline of Southwest Tenth Street, a distance of 50 feet; thence easterly along a straight line, said line being parallel to and 50 feet north of the north line of Lot 16, Cohron, a distance of 50 feet; thence northerly along a straight line, said line being parallel to and 70.5 feet west of the centerline of Southwest Tenth Street, a distance of 100 feet; thence easterly along a straight line, said line being parallel to and 150 feet north of the north line of said Lot 16 and also extending along the north line of Lot 10, Langdon Place, an official plat, to the northeast corner of said Lot 10; thence southerly along a straight line to the northwest corner of Lot 2, Langdon Place; thence easterly along a straight line to the northeast corner of said Lot 2; thence southerly along a straight line to the northwest corner of Lot 21, Langdon Place; thence easterly along a straight line to the northeast corner of said Lot 21; thence southerly along the east line of said Lot 21, a distance of 19.88 feet; thence easterly along the centerline of Lally Street a distance of 363 feet; thence southerly along a straight line to the northwest corner of Lot 18, Block 5, Porters Replat, an official plat; thence easterly along a straight line to the northeast corner of Lot 15, said Block 5; thence southerly

along a straight line to a point on the north line of Lot O, Block 5, Porters Replat, said point also being the southeast corner of said Lot 15; thence easterly along the north line of said Lot O a distance of 50 feet; thence southerly along a straight line, said line being parallel to and 100.7 feet west of the centerline of Southwest Seventh Street a distance of 75 feet; thence easterly along a straight line, said line being 50 feet south of the said Lot O a distance of 23 feet; thence southerly along a straight line, said line being parallel to and 503 feet east of the centerline of Southwest Ninth Street to the south line of Army Post Road; thence southwesterly to a point, said point being 550 feet south, measured perpendicular from the south line of Army Post Road and 370 feet east, measured perpendicular, from the east line of Southwest Ninth Street; thence westerly along a straight line, said line being parallel to and 550 feet south of the south line of Army Post Road, a distance of 150 feet; thence southwesterly to a point on the east line of Southwest Ninth Street, said point being 800 feet south of the south line of Army Post Road; thence westerly along a straight line to a point on the west line of Southwest Ninth Street, said point being 127 feet north of the north line of Bundy Street; thence southerly along the west line of Southwest Ninth Street a distance of 303 feet; thence westerly along a straight line, said line being parallel to and 156 feet south of the centerline of Bundy Street to the centerline of Southwest Tenth Street; thence southerly along the centerline of Southwest Tenth Street a distance of 649 feet; thence westerly along a straight line, said line being parallel to and 25 feet south of the north line of Lot 29, Block 11, Rodger's Place, an official plat, to the east line of Lot 30, Block 11, Rodger's Place; thence southerly along the east line of said Lot 30 a distance of 50 feet; thence westerly along a straight line said line being parallel to and 75 feet south of the north line of said Lot 30 to the east line of Lot 31, Block 11, Rodger's Place; thence southerly along the east line of said Lot 31 a distance of 25 feet; thence westerly along a straight line, said line being parallel to and 100 feet south of the north line of said Lot 31 to the west line of said Lot 31; thence southerly along the west line of said Lot 31 and its southerly extension to the south line of Johnson Street; thence westerly along the south line of Johnson Street to the northeast corner of Lot 12, Block 14, Rodger's Place; thence southerly along a straight line to the southeast corner of Lot 12, Block 15, Rodger's Place; thence westerly along a straight line to the northeast corner of Lot 47, Block 15, Rodger's Place; thence southerly along the east line of said Lot 47 and its southerly extension to the south line of Amos Avenue; thence westerly along the south line of Amos Avenue a distance of 119 feet; thence southerly along a straight line, said line being parallel to and 101 feet east of the centerline of Southwest Eleventh Street to the south line of Mason Avenue; thence westerly along the south line of Mason Avenue to the northeast corner of Lot 42, Southview Acres Replat, an official plat; thence southerly along a straight line to the southeast corner of said Lot 42; thence easterly along the north line of Lot 7, Valley Acres, an official plat, to the northeast corner of said Lot 7; thence southerly along the east line of said Lot 7 and its southerly extension a distance of 215 feet; thence westerly along a straight line, said line being parallel to and 50 feet south of the centerline of Luster Lane to the west line of Lot 22, Valley Acres; thence northerly along the west line of said Lot 22 to the northwest corner of said Lot 22; thence westerly along a straight line to the northeast corner of Lot 23, Valley Acres; thence southerly along a straight line to the northeast corner of Lot 24, Valley Acres; thence westerly along the north line of said Lot 24 a distance of 65 feet; thence southerly along a straight line, said line being parallel to and 65 feet east of the west line of Lots 24 and 25, Valley Acres, to the north line of Lot 26, Valley Acres; thence westerly along the north line of said Lot 26 a distance of 50 feet; thence southerly along a straight line, said line being parallel to and 15 feet east of the west line of said Lot 26 to the south line of said Lot 26; thence westerly along the south line of said Lot 26 and the south line of Havens Avenue a distance of 147 feet; thence northerly along a straight

line to the point of beginning, all now included in and forming a part of the City of Des Moines, Iowa.

(C62, § 48-69; O.8737; C75, C79, C91, § 21-74)

APPENDIX H

CABLE FRANCHISE AGREEMENT

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ORDINANCE NO. 13,642

AN ORDINANCE granting unto Heritage Cablevision, Inc., d/b/a TCI of Central Iowa renewal of a franchise to construct, reconstruct, operate and maintain a cable television system and to sell and supply cable services within the City for a term expiring June 30, 2008; prescribing the terms and conditions thereof; and providing for the imposition of a franchise fee and other requirements; and repealing Ordinance No. 10,227.

BE IT RESOLVED, by the City Council of the City of Des Moines, Iowa, as follows:

Section 1. Heritage Cablevision, Inc., d/b/a TCI of Central Iowa is hereby granted a franchise to construct, reconstruct, operate and maintain a cable television system and to sell and supply cable services within the City for a term expiring June 30, 2008, pursuant to the following terms and conditions:

FRANCHISE AGREEMENT

THIS FRANCHISE AGREEMENT (hereinafter the "Franchise" or "Agreement"), made and entered into this 28th day of September, 1998, by and between the City of Des Moines, a municipal corporation of the State of Iowa (hereinafter the "City" or "Grantor"), and Heritage Cablevision, Inc. d/b/a TCI of Central Iowa (hereinafter the "Grantee").

SECTION 1. GENERAL PROVISIONS

1.1. Definitions.

The following terms, phrases, words and their derivations shall have the meaning given herein. Words used in the present tense include the future, words in the plural number include the singular number, and words in the singular number include the plural number. The words "shall" and "will" are mandatory and "may" is permissive. Words not defined shall be given their common and ordinary meaning.

"*Applicable Laws.*" Means and includes, but is not limited to, State of Iowa and federal laws, rules and regulations, and City Code or ordinance provisions, pertaining to cable television systems and to the provision of cable television services, and City Code or ordinance provisions regulating the use or occupancy of City rights-of-way, regulating excavations in or obstructions of City rights-of-way, or regulating streets and sidewalks.

"*Basic Cable Service.*" Any service tier which includes the retransmission of local television broadcast signals. Basic cable service as defined herein shall not be inconsistent with 47 U.S.C. § 543(b)(7) (1993).

"*Cable.*" A collection of fibers or copper wires which is contained within a protective sheath.

"*Cable Act.*" The Cable Communications Policy Act of 1984, Pub. L. No. 98-549, 98 Stat. 2779 (1984) (codified at 47 U.S.C. §§ 521—611 (1982 & Supp. V 1987)) as amended by the Cable Television Consumer Protection and Competition Act of 1992, Pub. L. No. 102-385 and the Telecommunications Act of 1996, Pub. L. No. 104-458 and as the same may, from time to time, be amended.

"*Cable Services.*"

1. The one-way transmission to subscribers of video programming or other programming service; and
2. Subscriber interaction, if any, which is required for the selection or use of such video programming or other programming service.

"*Cable Television System,*" "*System,*" "*CATV,*" or "*Cable System.*" A facility, consisting of a set of closed transmission paths and associated signal generation, reception and control equipment that is designed to provide cable service which includes video programming and which is provided to multiple subscribers within a community, but such term does not include:

1. A facility that serves only to retransmit the television signals of one (1) or more television broadcast stations.
2. A facility that serves subscribers without using any public rights-of-way;
3. A facility of a common carrier which is subject, in whole or in part, to the provisions of 47 U.S.C. §§ 201—226, except that such facility shall be considered a

Cable System (other than for purposes of 47 U.S.C. § 541) to the extent such facility is used in the transmission of video programming directly to subscribers; or

4. Any facilities of any electric utility used solely for operating its electric utility system.

"*Cable Television Service Equipment*" or "*Service Equipment.*" Means and includes cables, amplifiers, converters, or other pieces of equipment owned by Grantee and typically installed by Grantee on a subscriber's premises in order to provide cable service.

"*Cable Television System Equipment*" or "*System Equipment.*" Means and includes, but is not limited to, the distribution system, towers, house connections, structures, poles, wire, coaxial cable, fixtures, electronic and/or optical components required for connection to or interconnection of fiber-optic and electronic transmission systems, and includes support systems such as electrical service, heating, ventilation and air conditioning, and appurtenances required to make such equipment functional.

"*Channel*" or "*Cable Channel.*" For the purposes of sections 4 and 6 herein only, a 6 megahertz band for transmission of visual and audio signals for television, unless a greater bandwidth is specified by the FCC for television of greater resolution.

"*City.*" The City of Des Moines, Iowa.

"*Council.*" The City Council of the City of Des Moines, Iowa.

"*FCC.*" The Federal Communications Commission.

"*Franchise.*" A legal contract between the City and a person which contract contains terms and conditions for constructing and operating a cable television system.

"*Franchise Fee.*" Means any tax, fee or assessment of any kind imposed by the City on a cable operator or cable subscribers solely because of their status as such. The term "Franchise Fee" does not include, by way of example: (i) any tax, fee, or assessment of general applicability (including any such tax, fee or assessment imposed on both utilities and cable operators or their services but not including a tax, fee, or assessment which is unduly discriminatory against cable operators or subscribers); (ii) capital costs which are required by the Franchise or otherwise to be incurred by the Grantee for PEG facilities; (iii) requirements or charges incidental to the awarding or enforcing of the Franchise, including payments for bonds, security funds, letters of credit, insurance, indemnification, penalties or liquidated damages; (iv) any fee imposed under Title 17 of the United States Code; (v) any and all generally applicable costs and expenses incurred by Grantee or generally applicable obligations imposed upon Grantee related to its equipment being in the right-of-way including but not limited to installation, maintenance, removal, or relocation and to any restoration of the right-of-way as a result thereof but not including such costs and expenses which are unduly discriminatory against cable operators or subscribers; or (vi) any civil or criminal penalties or interest on overdue funds.

"*Governmental Authority.*" Any court or other federal, state, county, municipal or other governmental department, commission, board, agency or instrumentality.

"*Grantor.*" The City of Des Moines, Iowa as represented by the Council or any delegate acting within the scope of his or her delegated authority. The City Manager shall be responsible for the continuing administration of the Franchise.

"*Gross Revenues.*" To the maximum extent permitted by law, all revenue derived directly or indirectly by the Grantee, its affiliates, subsidiaries, parents, or any person in which Grantee has a financial interest, arising from or attributable to the operation of the cable system to provide cable service within the City, regardless of how such Grantee's services are packaged. Notwithstanding the above, "gross revenues" would include by way of example but not limitation the following: basic cable service; expanded basic cable service; premium services, including "a la carte" and/or mini pay services; pay-per-view services; digital tier; DMX; FM and other audio; installation and reconnect fees; in-home wiring maintenance; Converter (addressable and non-

addressable), digital terminals, and remote rentals; late fees; returned check charges; Franchise Fees; two-way cable service fees; in-house guide subscription fees; bill insert revenues; revenue sharing arrangements with MDU owners/developers; Internet service; advertising; leased access; Home Shopping, "The Box" and other programming services with which Grantee has a revenue-sharing agreement; sale of subscriber information to third parties; Carriage consideration received from programmers by Grantee; and sale of programming developed for institutional users.

"*House Drop.*" The wire or cable that connects each building or home to the main (trunk) cable.

"*Installation.*" The connection of the system to subscribers' terminals, and the provision of cable service.

"*Normal Business Hours.*" Those hours during which most similar businesses in the City are open to serve customers. In all cases, "normal business hours" must include some evening hours at least one night per week as well as some weekend hours.

"*Normal Operating Conditions.*" Those service conditions which are within the control of the Grantee. Those conditions which are not within the control of the Grantee include, but are not limited to, natural disasters, civil disturbances, power outages, telephone network outages beyond the control of the franchisee or any related entity, and severe or unusual weather conditions. Those conditions which are ordinarily within the control of the Grantee include, but are not limited to, special promotions, pay-per-view events, rate increases, regular peak or seasonal demand periods, and maintenance or upgrade of the system.

"*Person.*" Any individual or any corporation, partnership, business, firm or other organization.

"*Public Access, Educational, and Governmental Channels, Programming or Facilities*" or "*PEG Facilities.*"

1. Channel capacity designated for public access, City, Des Moines Independent Community School District, or higher education/college use; and
2. Facilities and equipment for the use of such channel capacity.

"*Right-of-Way.*" The surface and space above and below any public street, boulevard, road, highway, freeway, lane, alley, court, sidewalk, parkway, tunnel, viaduct, or bridge which has been officially dedicated for public travel and which has traditionally been used for the provision of utility services to the public, in which the City has an interest in law or in equity, whether held in fee or other estate or interest, or as a trustee for the public; provided however, that skywalks, sidewalks within public cemeteries, and sidewalks and trails within public parks and on river levees, shall not be considered right-of-way available for use by cable television grantees.

"*Service Area*" or "*Franchise Area.*" The entire geographic area of the City as it is now constituted or may in the future be constituted, unless otherwise specified in the Franchise.

"*Service Interruption.*" The loss of picture or sound on one or more discreet programming channels regardless of system bandwidth used to provide the programming.

"*State.*" The State of Iowa.

"*Subscriber.*" Any person who or which lawfully elects to subscribe to, for any purpose, a service provided by the Grantee by means of or in connection with the cable system whether or not a fee is paid for such service.

1.2. Office/Service/Business Center.

Throughout the term of this Franchise, Grantee shall continue to maintain its principal local system office and service center, now located in the City and any significant future expansion of its operations that serve the Des Moines Metro area, within the City of Des Moines.

1.3. Written Notice.

All notices, reports or demands required or permitted to be given under this Agreement or Ordinance shall be in writing and shall be deemed to be given when delivered personally to the party designated below, or when five (5) business days have elapsed after deposit in the United States

mail postage prepaid in a sealed envelope and addressed to the party to which notice, report or demand is being given as follows:

If to City:

City Manager
City of Des Moines
400 E. First Street
Des Moines, Iowa 50309-1891

If to Grantee:

General Manager
[Heritage Cablevision, Inc. or
TCI of Central Iowa]
2205 Ingersoll Avenue
Des Moines, Iowa 50312

Subject to Section 1.2, such addresses may be changed by either party upon notice to the other party given as provided in this Section.

SECTION 2. RENEWAL OF FRANCHISE

2.1. Grant.

Pursuant to the Cable Ordinance, the Franchise which was granted effective on February 3, 1983 (Ordinance No. 10,277), is hereby renewed, subject to the terms and conditions of this Agreement. The Franchise, as renewed hereby, provides Grantee with the authority, right and privilege to construct, reconstruct, operate, and maintain a Cable Television System within the City of Des Moines.

2.2. Right of Grantor to Issue and Renew Franchise.

Grantee acknowledges and accepts the right of Grantor to issue and/or renew the Franchise and Grantee agrees that it shall not now or at any time hereafter challenge any lawful exercise of this right by Grantor in any local, state, or federal court.

2.3. Conditions For Use and Occupancy of City Rights-of-Way and Utility Easements.

Grantee shall be allowed to use and occupy the City rights-of-way, as that term is defined herein, for the emplacement of its cable television system equipment; provided, however, Grantee shall be allowed to use subdivision utility easements to the extent such easements provide for the construction and operation of cable television system equipment and service equipment therein. Further provided, that in such use and occupancy of City rights-of-way and subdivisions utility easements, Grantee shall be subject to all generally applicable City ordinances and obligations therein including, but not limited to, those provisions of the Municipal Code regulating the use and occupancy of such rights-of-way, pertaining to excavations for underground cables, and pertaining to streets and sidewalks, and further provided that Grantee shall not construct any cable television plant or system equipment until Grantee has secured the necessary permits from Grantor, or other applicable governmental authorities.

2.4. Effective Date of Renewal.

The renewal of the Franchise provided for in this Agreement shall be effective upon passage of this Franchise as an ordinance by the Des Moines City Council, execution of this Franchise by both parties, and publication as required by law, which publication shall occur on October 5, 1998 (the "effective date"); provided that prior to the effective date the Grantee has filed with the City Clerk of the City; a duplicate original of this Agreement duly executed by Grantee together with the security and insurance certificates provided for in this Agreement and the Ordinance.

2.5. Term.

This Franchise shall commence on its effective date and shall expire on June 30, 2008, unless terminated earlier.

2.6. Ownership of Grantee.

Grantee represents and warrants to Grantor that the names of the shareholders, partners, members, or other equity owners of the Grantee and of any of the shareholders, partners, members, and/or other equity owners of Grantee are as set forth in Exhibit A.

2.7. Franchise Renewal.

Any renewal of this Franchise shall be in accordance with Applicable Laws. Grantor and Grantee, by mutual consent, may enter into renewal negotiations at any time during the term of the Franchise.

SECTION 3. GENERAL REQUIREMENTS

3.1. Governing Requirements.

Grantee shall comply with all lawful requirements of this Agreement and Applicable Laws.

3.2. Franchise Fee.

In consideration of the renewal of the Franchise provided for herein, the Grantee shall, at all times during the term of this Agreement, pay to Grantor a Franchisee Fee of five percent (5%) of Grantee's Gross Revenues. Gross Revenues shall be the basis for computing the Franchise Fee. Gross Revenues shall not include any taxes on services furnished by the Franchisee which are imposed upon any subscriber or user by the state, county, City or other governmental unit and collected by the Franchisee on behalf of said governmental unit and which the Franchisee passes on in full to the applicable tax authorities. Franchise Fees are not taxes and, if collected by Grantee from subscribers, would be part of Gross Revenues.

Within 30 days after the end of each month, the Grantee shall pay to the City a Franchise Fee equivalent to five percent of Gross Revenues for that month, along with a report showing the calculations for the derivation of the payment along with any other information required by the Grantor.

The Grantee, on an annual basis, within ninety (90) days of the close of the calendar year, shall furnish a report prepared by an independent Certified Public Accountant, at Grantee's sole expense, with that accountant's certification that the total of the fees paid to the City during the previous calendar year are equal to the Franchise Fee due for such period. That report shall detail all revenues received by the Grantee and show the source of those revenues. The City reserves the right to require that additional information be submitted by the Grantee detailing revenue relative to the Grantee's facilities and services within the City for such period.

In addition, and notwithstanding any other provision herein with respect to books and records of Grantee, upon ten (10) days prior written notice, Grantor shall have the right to conduct or to have conducted its own independent audit of Grantee's records. All books and records required to do a complete audit of the Grantee's Franchise Fees shall be provided to the City's auditors. If such audit indicates a Franchise Fee underpayment of two percent (2%) or more, in addition to any other remedies available to the Grantor, the Grantor may require the Grantee to pay all reasonable costs of such audit and shall remit to Grantor all applicable Franchise Fees due and payable together with interest thereon at the lessor of the maximum rate permitted by law or eleven (11%) per annum.

3.3. Not Franchise Fees.

(a) Grantee acknowledges and agrees that except for the Franchise Fee obligations as expressly provided for in Section 3.2 hereof, none of the payments or contributions to be made by Grantee; or the services, equipment, facilities, support, resources, or reimbursements; or other activities to be provided or performed by Grantee pursuant to this Agreement; or expenses in connection with the construction, operation, maintenance, or upgrade of the System (including specifically, but not by way of limitation, such payments, contributions, services, equipment, facilities, support, resources or other activities described in or provided for in any section of this Agreement and the Exhibits hereto) shall be deemed Franchise Fees chargeable against the Franchise Fees payable by Grantee to the City pursuant to Section 3.2 hereof.

(b) Grantee acknowledges and agrees that the Franchise Fee payable by Grantee to the City pursuant to Section 3.2 hereof shall take precedence over all other payments, contributions, services, equipment, facilities, support, resources, or other activities to be provided or performed by the Grantee pursuant to this Agreement and/or the

Ordinance, and that the Franchise Fee provided for in Section 3.2 of this Agreement shall not be deemed to be in the nature of a tax, and shall be in addition to any and all taxes of general applicability and other generally applicable fees and charges which the Grantee shall be required to pay to the City and/or to any other governmental authority, all of which shall be separate and distinct obligations of Grantee.

(c) Grantee shall not apply or seek to apply or make any claim that all or any part of the Franchise Fee or other payments or contributions to be made by Grantee to Grantor pursuant to this Agreement shall be deducted from or credited or offset against any taxes, fees, or assessments of general applicability levied or imposed by the City or any other governmental authority, including any such tax, fee, or assessment imposed on both utilities and cable operators or their services but not including a tax, fee or assessment which is unduly discriminatory against Grantee or subscribers.

(d) Grantee shall not apply or seek to apply all or any part of any right-of-way registration, permit or inspection fees that may be lawfully imposed; any civil or criminal penalties; any refunds or interest due on any past due obligations; or any taxes, fees, or assessments of general applicability levied or imposed by the City or any other governmental authority as a deduction or other credit from or against any of the Franchise Fee or other payments or contributions to be paid or made by Grantee to Grantor pursuant to this Agreement and/or the Ordinance, each of which shall be deemed to be separate and distinct obligations of the Grantee.

3.4. Recovery of Processing Costs.

During the term of this Agreement, if the Grantee initiates a request for approval regarding the transfer of this Franchise or a change in control of the Grantee, the Grantee shall reimburse the Grantor for all expenses including out-of-pocket expenses, including by way of illustration and not by way of limitation, attorneys' and consultants' fees and costs up to a maximum of $25,000 per transaction, incurred by the Grantor in connection with Grantor's review and processing of Grantee's requests. Payments of such costs and expenses shall not be deemed to be "Franchise Fees" within the meaning of Section 3.2 of this Agreement.

3.5. Insurance Requirements.

The Grantee shall purchase and maintain insurance to protect the Grantee and the City throughout the duration of the Franchise. Said insurance shall be provided by an insurance company(ies) approved by the insurance commissioner of the State of Iowa and having no less than an A.M. Best rating of "A" ("Excellent"). All policies shall be written on a per occurrence basis, not a claims made basis, and in form and amounts and with companies satisfactory to the City. Certificates of Insurance confirming required insurance coverage shall be submitted to the City prior to contract execution or commencement of work and/or services.

(a) *Insurance Requirements.*

(i) *Worker's Compensation Insurance:* The Grantee shall procure and maintain during the life of this Franchise, Worker's Compensation Insurance, including Employer's Liability Coverage, in accordance with all applicable statutes of the State of Iowa. The coverage limits shall include $500,000.00 each accident for Bodily Injury by Accident, $500,000.00 each accident for Bodily Injury by Disease, and $500,000.00 policy limit for Bodily Injury by Disease.

(ii) *Commercial General Liability Insurance:* The Grantee shall procure and maintain during the life of this Franchise, Commercial General Liability insurance on a per occurrence basis with limits of liability not less than $1,000,000.00 per occurrence and $2,000,000.00 aggregate combined single limit; Personal Injury, Bodily Injury, and Property Damage. Coverage shall include the following extensions: (a) Contractual Liability, (b) Premises and Operations, (c) Products and Completed Operations, (d)

Independent Contractors Coverage, (e) Personal and Advertising Injury, and (f) Explosion, Collapse and Underground (XCU), where applicable. Coverage shall be no less comprehensive and no more restrictive than the coverage provided by a standard form Commercial General Liability Policy (ISO CG 00 01 10 93) with standard exclusions "a" through "n." Any additional exclusions shall be clearly identified on the Certificate of Insurance and shall be subject to the review and approval of the City. The policy shall be endorsed to provide an Aggregate Per Location/Project Endorsement.

(iii) *Automobile Liability Insurance:* The Grantee shall procure and maintain during the life of this Franchise, Automobile Liability Insurance with limits of liability of not less than $1,000,000.00 per occurrence combined single limit including Bodily Injury and Property Damage. Coverage shall include all owned vehicles, all non-owned vehicles, and all hired vehicles.

(iv) *Umbrella / Excess Insurance:* The coverages specified in ii and iii above may be satisfied with a combination of primary and Umbrella/Excess Insurance. The Umbrella/Excess Insurance shall also be written on a per occurrence basis and shall include the same endorsement as required of the primary policy(ies).

(v) *Insurance for Other Losses:* The Grantee shall assume, during the life of this Franchise, full responsibility for all loss or damage from any cause whatsoever to any property brought onto City property that is owned or rented by the Grantee, or by any of the Grantee's employees, agents, subcontractors, suppliers or their employees; to the extent that such property is utilized in carrying out the provisions of this Franchise. The Grantee shall cause its insurance carrier providing physical damage insurance to the Grantee, to provide a waiver of the right of subrogation against the City.

(vi) *Changes in Coverage, Limits, Endorsements and Terms:* The City reserves the right to change the required coverages and the limits associated with coverages i, ii, iii, and iv above. The City's Risk Management Office shall annually review and modify, as the City deems necessary, any coverages, limits, endorsements, and terms. Such changes shall be based on then-current insurance industry practices and procedures.

(vii) *Subcontractors:* The Grantee shall require that any of its agents and subcontractors who perform work and/or services pursuant to the provisions of this Franchise meet the same insurance requirements as are required of the Grantee.

(viii) *Additional Insured:* Except for Worker's Compensation, the insurance policies providing the coverages specified in ii, iii, and iv above shall include the "City of Des Moines, Iowa Additional Insured and Governmental Immunities Endorsements" in such form as it may be required by the City's Office of Risk Management. Copies of the currently approved form of these endorsements are attached.

(ix) *Cancellation or Material Change Notice:* The insurance policies providing the coverages specified in (i), (ii), (iii), and (iv) above shall include the "City of Des Moines Cancellation Notice Endorsement" in such form as it may be required by the City's Office of Risk Management. A copy of the current form of this endorsement is attached.

(x) *Proof of Insurance:* The Grantee shall provide to and maintain on a current basis with the City Certificate(s) of Insurance evidencing all required insurance coverage as provided in (i) through (iv) above utilizing the latest version of the ACORD form. The Certificate(s) of Insurance shall specify under "Description of Operations/ Locations/Vehicle/Special Items" the title of the Franchise and that "Where required, Additional Insured, Governmental Immunities, Cancellation and Material Change, and Aggregate Per Location endorsements have been included as per attached." These endorsements shall be attached to the Certificate(s) of Insurance so as to evidence their inclusion in the coverages required. Any deductible or self-insured retention must be disclosed on the face of the Certificate of Insurance and must be accepted by the City.

3.6. Indemnification (Hold Harmless).

To the fullest extent permitted by law, the Grantee agrees to defend, pay on behalf of, indemnify, and hold harmless the City, its elected and appointed officials, employees, volunteers, and others working on behalf of the City against any and all claims, demands, suits, or loss, including any and all outlay and expense connected therewith, and for any damages which may be asserted, claimed, or recovered against or from the City, its elected and appointed officials, employees, volunteers, or others working on behalf of the City, by reason of personal injury, including bodily injury or death, and property damages, including loss of use thereof, which arises out of or is in any way connected or associated with the work and/or services provided by the Grantee pursuant to the provisions of this Franchise. It is the intention of the parties that the City, its elected and appointed officials, employees, volunteers, or others working on behalf of the City shall not be liable or in any way responsible for injury, damage, liability, loss, or expense resulting to the Grantee, its officers, employees, subcontractors, and others affiliated with the Grantee due to accidents, mishaps, misconduct, negligence, or injuries either in person or property caused by the work and/or services performed by the Grantee under this Franchise.

The Grantee expressly agrees to pay the City for all damages caused to the City's premises resulting from the activities of the Grantee, its officers, employees, subcontractors, and others affiliated with the Grantee.

The indemnification obligations of Grantee are not limited in any way by the amount or type of damages or compensation payable by or for Grantee under Worker's Compensation, disability, or other employee benefit acts, acceptance of insurance certificates required under this Franchise, or the terms, applicability, or limitations of any insurance held by Grantee.

Grantor does not, and shall not, waive any rights against Grantee which it may have by reasons of the indemnification provided for in this Agreement, because of the acceptance by Grantor, or the deposit with Grantor by Grantee, of any of the insurance policies described in this Agreement.

The requirements of indemnification shall not be a waiver of any right that the Grantor would have to assert defenses on its own behalf under state or federal law.

The Grantor's indemnification obligations under this Agreement shall survive the expiration, cancellation, or termination of this Agreement.

3.7. Waiver of Subrogation.

To the extent permitted by law, the Grantee hereby releases the City, its elected and appointed officials, employees, volunteers, and others working on behalf of the City, from any and all liability or responsibility to the Grantee or anyone claiming through or under the Grantee by way of subrogation or otherwise, for any loss or damage to property caused by fire or other casualty, even if such fire or other casualty shall have been caused by the fault or negligence of the City, its elected and appointed officials, employees, volunteers, or others working on behalf of the City. This provision shall be applicable and in full force and effect only with respect to loss or damages occur-

ring during the time of the Grantee's occupancy or use, and Grantee's policies of insurance shall contain a clause or endorsement to the effect that such release shall not adversely affect or impair such policies or prejudice the right of the Grantee to recover thereunder.

3.8. Security.

In addition to any other right of enforcement provided in the City's ordinances, the Grantee shall establish the following security to ensure performance of the Grantee.

(a) *Amount.* Within thirty (30) days of the effective date, Grantee shall establish and provide to Grantor, an irrevocable and unconditional letter of credit ("LOC") as security for the faithful performance by Grantee of all of its obligations under this Agreement. The LOC shall be one hundred fifty thousand dollars ($150,000.00) which shall be with a financial institution acceptable to the City and in a form acceptable to the City's Corporation Counsel. The LOC may be drawn on and shall be replenished as provided in this Section.

(b) *Use.* Grantor may draw on the LOC to ensure the Grantee's faithful performance of and compliance with this Agreement provided that Grantee has received prior written notice of determination of breach of this Agreement and thirty (30) days opportunity to cure, and further provided that if such draw is for the purpose of enforcing any liquidated damages obligations under 3.9 of this Agreement, all provisions of 3.9 have been met and no stay has been granted. Grantor's right to draw on the LOC hereunder, may include, by way of example and not limitation, if Grantee fails to pay City any fees or payments due hereunder, liquidated damages, or damages incurred by City by reason of any act or default of Grantee, or if Grantee fails to comply with any provisions of this Agreement which failure Grantor determines can be remedied by expenditure from the LOC. City shall notify Grantee of the amount and date of withdrawal. Grantee's recourse, in the event Grantor believes any draw upon the LOC is improper, shall be through legal action even after the LOC has been drawn upon. If Grantor's action or taking is found to be improper by any court of competent jurisdiction, Grantee shall be entitled to a refund of any improperly withdrawn funds plus interest and/or any other specific performance which such court or agency shall order.

(c) *Restoration of LOC.* Within fifteen (15) calendar days after City gives Grantee written notice that the LOC has been drawn upon, Grantee must take all steps required to restore the LOC to the original amount.

(d) *Return of Fund.* Grantee's obligation to maintain the LOC shall survive the termination of the Franchise, until all obligations to the City have been satisfied. However, if the Franchise terminates for any reason, and Grantee has ceased to provide service in City, and the City has determined that Grantee does not owe funds to the City and is not in default, the Grantee's obligations to maintain the LOC shall also terminate.

(e) *[Waiver.]* Nothing herein shall be deemed a waiver of the normal registration, permit and bonding requirements made of all contractors working within the City's rights-of-way to the extent those charges can lawfully be applied to Grantee.

3.9. Liquidated Damages.

(a) *Amounts.* Because Grantee's failure to comply with provisions of this Agreement will result in injury to City, and because it will be difficult to estimate the extent of such injury, City and Grantee agree to the following liquidated damages for the following violations. These damages represent both parties' best estimate of the damages resulting from the specified injury. The liquidated damage amounts are in 1998 dollars and shall be increased each year by the increase in the U.S. Consumer Price Index for Urban Areas. Provided, however, the liquidated damage amounts shall first be increased from 1998 levels in the year that

the CPI-U increase from 1998 levels equals or exceeds fifteen percent (15%). For example, if the CPI-U rises four percent (4%) in 1999, five percent (5%) in 2000, and six percent (6%) in 2001, then the liquidated damage amounts would be increased fifteen percent (15%) in 2002, and thereafter would increase annually.

(1) For failure to complete the upgrade required by Section 4.1 or failure to implement a single uniform channel lineup and offered services within the City by December 31, 1999: $500.00/day for each day the violation continues, subject to the provisions of Section 3.9(b)(4).

(2) For failure to complete construction of the I-Net as required by Section 6.4: $1,000.00/day for each day the violation continues which, at the City's sole discretion, may be in addition to damages set forth in Section 3.9(a)(1).

(3) For failure to comply with any public access, educational and governmental channels, programming or facilities requirements in this Agreement: $250.00 for each violation for each day the violation continues.

(4) For failure to maintain a local office as required in Section 1.2: $5,000.00 per month.

(5) For failure to submit or provide documents, records, information or reports requested to be provided: $100.00/day for each day the violation continues.

(6) For all other violations of this Agreement for which actual damages may not be ascertainable up to: $250.00/day for each violation for each day the violation continues.

(7) For delinquency in payment of Franchise Fees when due: $100.00/day for each day the violation continues.

(b) *Date of Violation, Notice.* The date of violation will be the date of the event and not the date Grantee receives notice of the violation except in cases where Grantee did not know and could not reasonably have been expected to know that a violation occurred, in which case damages shall accrue from the date Grantee knew or should have known of the violation. Before attempting to recover liquidated damages, the City shall provide Grantee thirty (30) days written notice of a violation, and provide the Grantee with an opportunity at a public hearing of the City Council to show (1) that a violation did not in fact occur, (2) that the violation has been cured, or (3) that liquidated damages should not be assessed. If the violation has been cured, liquidated damages may only apply if the City finds the violation:

(1) Involves violation of a customer service standard.

(2) Involves willful or reckless acts or omissions.

(3) Involves violation of transfer provisions.

(4) Involves failure to complete the upgrade as required (Section 4.1) or to complete the I-Net as required (Section 6.4); provided, however, that no liquidated damages shall be assessed with respect for a period of up to 90 calendar days after December 31, 1999, if Grantee can show good cause for the delay.

(5) Involves a repeat of the specific violation.

(6) Is part of a class or pattern of violations where the Grantee had reason to know the class or pattern of violations existed, and failed to take the actions necessary to correct the class or pattern of violations or prevent the violations from recurring.

In any event, no liquidated damages shall be assessed unless the City has made a written finding of violation. Nothing herein shall prevent the City and Grantee from agreeing to waive damages for a cure period.

3.10. Relationship of Remedies.

(a) *Remedies are Non-Exclusive.* The remedies provided for in this Agreement are cumulative and not exclusive; the exercise of one lawful remedy shall not prevent the exercise of another lawful remedy, or the exercise of any rights of the City at law or equity, provided however, cumulative remedies may not exceed the total wrong

involved. By way of example and not limitation, the collection of liquidated damages by City shall in no respect affect:

(1) Compensation owed to subscribers; or

(2) Grantee's obligation to comply with the provisions of this Agreement or Applicable Law.

(b) *No Election of Remedies.* Without limitation, the withdrawal of amounts from the LOC, or the recovery of amounts under the insurance, indemnity or liquidated damages provisions of this Agreement shall not be construed as any of the following: an election of remedies, a limit on the liability of Grantee under the Agreement for damages or otherwise; or an excuse of faithful performance by Grantee.

3.11. Termination of Franchise.

(a) *Grounds for Revocation.* In addition to any other lawful remedies the City may have, it reserves the right to revoke the Franchise and rescind all rights and privileges associated therewith in the event of a material breach of the Franchise. A material breach or cause for revocation, by way of example, would include:

1. If Grantee should default in the performance of any of its material obligations under the Agreement and fails to cure the default within sixty (60) days after receipt of written notice of the default from the City or such longer time as specified by the City.

2. If the Grantee should fail to provide or maintain in full force and effect the irrevocable letter of credit and insurance and indemnification coverages as required in the Agreement.

3. If a petition is filed by or against Grantee under the Bankruptcy Act, as amended, or any other insolvency or creditors' rights law, state or federal, and the Grantee shall fail to have it dismissed.

4. If a receiver, trustee or liquidator of the Grantee is applied for or appointed for all or part of the Grantee's assets.

5. If the Grantee makes an assignment for the benefit of creditors.

6. If the Grantee violates any order or ruling of the City, or any state or federal regulatory body having jurisdiction over the Grantee, unless the Grantee is lawfully contesting the legality or applicability of such order or ruling and has received a stay from the appropriate forum.

7. If Grantee repeatedly fails to meet the technical standards.

8. If the Grantee practices any fraud or deceit upon the subscribers, the City, or the general public.

9. If the Grantee's construction schedule is delayed later than the schedule contained in the Franchise or beyond any extended date set by the City — which extended date shall be not more than 90 calendar days from December 31, 1999, if Grantee can show good cause therefor. Provided, however, that any termination of the Franchise based on delay in the construction schedule shall be void if Grantee can show good cause therefor and has in fact completed all construction and implemented uniform programming on or before June 30, 2000.

10. If Grantee misrepresented a material fact in the application for or negotiation of the Franchise or transfer application or in any other appearance before or document submitted to the City Council or to subscribers.

11. If the Grantee ceases to provide services over the cable communications system for seven (7) consecutive days for any reason within the control of the Grantee.

12. If the Grantee fails to comply with any material access provisions.

13. If Grantee violates any material rule, order, regulation or determination of the City Council made pursuant to its police powers or any material provision of this Agreement.

14. If the Grantee evades any of the provisions of the Municipal Code enacted pursuant to Grantor's police powers or this Agreement, which by way of example could include packaging or bundling of services to reduce gross revenues for the purpose of reducing Franchise Fees payable under Section 3.2 of this Agreement.

(b) *Procedure Prior to Revocation.* The City shall give at least thirty (30) days written notice to the Grantee citing the reasons alleged to constitute cause for revocation, if the reason is of a nature that can be cured, set a reasonable time in which the Grantee must remedy the cause. If, during the thirty (30) day period or such longer period as the City may set, the cause shall be cured to the satisfaction of the City, the City may declare the notice to be null and void. If the Grantee fails to remedy the cause within the time specified or if the breach is of a nature that cannot be remedied, the City Council may, after public hearing and making a written finding of a material violation, revoke the Franchise. In any event, before the Franchise may be terminated, the Grantee shall be provided with an opportunity to be heard before the City Council.

(c) *Effect of Pending Litigation.* Unless a stay is issued by a court of appropriate jurisdiction, pending litigation or any appeal to any regulatory body or court having jurisdiction over the Grantee shall not excuse the Grantee from the performance of its obligations under this Agreement or other Applicable Laws. Failure of the Grantee to perform material obligations because of pending litigation or petition may result in forfeiture or revocation pursuant to the provisions of this Section.

(d) *Restoration of Public and Private Property.* In removing its plants, structures and equipment, the Grantee shall refill at its own expense, any excavation made by it and shall leave all public ways and places and private property in as good condition as existed prior to Grantee's removal of its equipment and appliances, without affecting the electric or telephone cables, wires or attachments. The City shall inspect and approve the condition of the public ways and public places and cables, wires, attachments and poles after removal. Liability insurance, indemnity, and the security fund provided in this Agreement shall continue in full force and effect during the period of removal.

(e) *Restoration by City; Reimbursement of Costs.* If the Grantee fails to complete any work required by subsection "d" above or any work required by other law or ordinance within the time established and to the satisfaction of the City, the City may cause such work to be done and the Grantee shall reimburse the City the costs thereof within thirty (30) days after receipt of any itemized list of such costs, or in the event of failure of Grantee to pay such costs, the City may recover such costs as provided from the LOC required in Section 3.8.

(f) *Lesser Sanctions.* Nothing shall prohibit the City from imposing lesser sanctions or censures than revocation.

(g) *Expiration; Extended Operation.* Upon the expiration or termination of the franchise, the City may, by resolution, on its own motion or request of the Grantee, require the Grantee to operate the franchise for an extended period of time not to exceed six (6) months from the date of any such resolution under the same terms and conditions as specified in this Agreement and as circumstances warrant. All provisions shall continue to apply to operations during an extension period. The City shall serve written notice at the Grantee's business office of intent to extend under this Section at least thirty (30) days prior to expiration of the original franchise or any extensions thereof.

3.12. Reservation of Rights.

Grantor and Grantee reserve all rights that they possess unless expressly waived herein; neither party waives any rights to any specific claim for any past or future obligation unless the nature of claim is specifically articulated herein.

3.13. Annual Report.

Grantee shall, upon written request of the Grantor, submit a written end of the year report to Grantor utilizing the format outlined in the Annual Performance Review Checklist attached hereto as Exhibit C.

3.14. Reports and Records.

(a) The Grantee shall manage all of its operations in accordance with a policy of keeping its documents and records open and accessible to the Grantor. Grantee shall provide all routine filings to Grantor. The Grantor shall have access to, and the right to inspect, any books and records of the Grantee which are reasonably related to and necessary for the administration or enforcement of the terms of this Agreement. The Grantee shall not deny the Grantor access to any such records on the basis that such records are under the control of any parent corporation, affiliated entity or a third party. The Grantor may, in writing, request copies of any such records or books and the Grantee shall provide such copies within ten (10) days of the transmittal of such request. Except where more than one copy would otherwise be required to be supplied or the materials are generally required to be supplied in more than one format, such as both in electronic and print, all reports and records required under this Section shall be furnished to the Grantor, upon request, at the sole expense of the Grantee. If the requested books and records are too voluminous, or for security reasons cannot be copied or removed, then the Grantee may request, in writing within five (5) days of the due date for the requested books and records, that the Grantor inspect them at Grantee's City business center.

(b) Grantee shall at all times maintain and provide Grantor, in whatever format, including electronic format, the Grantor may require and at the sole expense of the Grantee, full and complete plans, records and maps of Grantee's Cable System equipment installed or in use in the City, the provision of which shall not unduly discriminate against the Grantee.

3.15. Confidentiality.

To the extent not inconsistent with Applicable Law or any ordinance of general applicability, the Grantor agrees to treat as confidential any books and records that constitute proprietary or confidential information under federal or state law, to the extent the Grantee makes Grantor aware of such confidentiality. The Grantee shall be responsible for clearly and conspicuously stamping the word "Confidential" on each page that contains confidential or proprietary information, and shall provide a brief written explanation as to why such information is confidential under state or federal law. If the Grantor believes it must release any such confidential books and records in the course of enforcing this Agreement, or for any other reason, it shall advise the Grantee in advance so that the Grantee may take appropriate steps to protect its interests. If the Grantor receives a demand from any Person for disclosure of any information designated by the Grantee as confidential, the Grantor shall, so far as consistent with applicable law, advise the Grantee and provide the Grantee with a copy of any written request by the party demanding Access to such information within a reasonable time. Until otherwise ordered by a court or agency of competent jurisdiction, the Grantor agrees that, to the extent permitted by state and federal law, it shall deny Access to any of the Grantee's books and records marked confidential as set forth above to any Person.

3.16. Franchise Transfer.

(a) Grantee shall not voluntarily or involuntarily, by operation of law or otherwise, sell, assign, transfer, lease, sublet or otherwise dispose of, in whole or in part, the Franchise and/or cable system or any of the rights or privileges granted by the Franchise, to any entity not controlled by Grantee's parent entity, without the prior written consent of the City and then only upon such terms and conditions as may be lawfully prescribed by the City, which consent shall not be unreasonably denied or delayed provided that any transferee shall agree to accept all of Grantee's obligations under this Agreement. Any attempt to sell, assign, transfer, lease, sublet or otherwise dispose of all or any part of the Franchise and/or cable system or Grantee's rights therein without the prior written consent of the City shall be null and void and shall be grounds for termination of this Agreement.

(b) Without limiting the nature of the events requiring the City's approval under this section, the following events shall be deemed to be a sale,

assignment or other transfer of the Franchise and/or cable system requiring compliance with this section:

(i) The sale, assignment or other transfer of all or a majority of Grantee's assets or the assets comprising the cable system to any person;

(ii) The merger of the Grantee or any of its parents with or into another person (including the merger of Grantee or any parent with or into any parent or subsidiary corporation or other person) so as to create a new controlling interest in Grantee;

(iii) The consolidation of the Grantee or any of its parents with any other person so as to create a new controlling interest in Grantee;

(iv) The creation of a subsidiary corporation or other entity so as to create a new controlling interest in Grantee;

(v) The sale, assignment or other transfer of capital stock or partnership, membership or other equity interests in Grantee or any of its parents by its existing shareholders, partners, members or other equity owners so as to create a new controlling interest in Grantee;

(vi) The issuance of additional capital stock or partnership, membership or other equity interest by Grantee or any of its parents so as to create a new controlling interest in Grantee; and

(vii) The entry by the Grantee into an agreement with respect to the management or operation of the Grantee, any of Grantee's parents and/or the system or the subsequent amendment thereof so as to create a new controlling interest in Grantee.

The term "controlling interest" as used herein is not limited to majority equity ownership of the Grantee, but also includes actual working control over the Grantee or any parent of Grantee to the extent it results in a change in actual working control of Grantee, or, if applicable, any parent of Grantee and/or the system in whatever manner exercised.

(c) The City shall act upon any request for approval of such sale or transfer which includes or is accompanied by such relevant information as is necessary to conduct the City's due diligence on the proposed sale or transfer consistent with FCC Regulations, state, or federal law.

(d) Grantee shall notify the City in writing of any foreclosure or any other judicial sale of all or a substantial part of the property and assets comprising the cable system of the Grantee or upon the termination of any lease or interest covering all or a substantial part of said property and assets. Such notification shall be considered by City as notice that a change in control or ownership of the Franchise has taken place and the provisions under this section governing the consent of City to such change in control or ownership shall apply.

(e) For the purpose of determining whether it shall consent to such change, transfer or acquisition of control, the City may inquire into the qualifications of the prospective transferee or controlling party; and Grantee shall assist the City in any such inquiry. In seeking the City's consent to any change of ownership or control, Grantee shall have the responsibility of ensuring that the transferee completes an application in form and substance reasonably satisfactory to the City, which application shall include the information required under FCC Regulations, this Agreement and State and federal laws. An application, acceptable to the City, shall be submitted to the City not less than one hundred twenty (120) days prior to the date of transfer. The transferee shall be required to establish to the satisfaction of the City that it possesses the legal, technical (including operational), and financial qualifications to operate and maintain the system and that the transferee will agree to cure all defaults, if any, and will comply with all Franchise requirements for the remainder of the term of the Franchise. If, after considering the legal, financial and technical qualities of the transferee and determining that they are satisfactory, the City finds that such transfer is acceptable, the City shall permit such transfer and assignment of the rights and obligations of such Franchise as may be in the public interest. The consent of the City to such transfer shall not be unreasonably denied.

(f) Any financial institution having a security interest in any and all of the property and assets of Grantee as security for any loan made to Grantee or any of its affiliates for the construction and/or operation of the cable system must notify the City that it or its designee satisfactory to the Grantor shall take control of and operate the cable television system, in the event of a default in the payment or performance of the debts, liabilities or obligations of Grantee or its affiliates to such financial institution. Further, said financial institution shall also submit a plan for such operation of the system within thirty (30) days of assuming such control that will ensure continued service and compliance with all Franchise requirements during the term the financial institution or its designee exercises control over the system. The financial institution or its designee shall not exercise control over the system for a period exceeding one (1) year unless extended by the City in its discretion and during said period of time it shall have the right to petition the City to transfer the Franchise to another Grantee.

SECTION 4. SYSTEM UPGRADE

4.1. Upgrade.

Grantee shall immediately take all necessary steps to upgrade and/or rebuild, as appropriate, the existing Cable System to a capacity, exclusive of overhead capacity, of at least 110 analog video channels. Such Cable System upgrade and/or rebuild shall be completed no later than December 31, 1999. Completion of any required construction shall be defined in part as the ability to provide a uniform System capacity and programming to all Subscribers within the City.

4.2. Emergency Alert Capability.

Grantee shall immediately provide the System capability to transmit an emergency alert signal to all Subscribers, which at a minimum shall initially be in the form of an audio override capability to permit Grantor to interrupt and cablecast an audio message on all Channels simultaneously in the event of disaster or public emergency. The Grantor reserves the right, in its sole discretion, to prescribe rules designating other governmental entities the right to use this emergency alert capability; provided however, the Grantor shall advise the Grantee of and provide the Grantee with a copy of those rules.

4.3. Standby Power.

On or before December 31, 1999, Grantee shall provide standby power generating capacity at the cable communications System headend capable of providing at least twelve (12) hours of emergency supply. Grantee shall maintain standby power supplies at all hubs and node sites capable of providing emergency power within the standard limits of commercially available power supply units.

4.4. Technical Standards.

(a) Grantee shall construct, install, operate and maintain its system in a manner consistent with all Applicable Laws and, shall at a minimum, comply at all times with all applicable FCC Rules and Regulations, Part 76, Subpart K (Technical Standards), as may be amended from time to time. In addition, Grantee shall provide to the Grantor, upon request, written reports of the results of the Grantee's periodic proof of performance tests conducted pursuant to FCC standards and guidelines.

(b) All construction practices shall be in accordance with all applicable sections of the Occupational Safety and Health Act of 1970, as amended, as well as all other Applicable Laws.

(c) All installation of electronic equipment shall be of a permanent nature, durable and installed in accordance with the provisions of the National Electrical Code, as amended, and as may from time to time be amended.

(d) All of Grantee's plant and equipment, including, but not limited to, headend and distribution system, towers, house connections, structures, poles, wire, coaxial cable, fixtures, and appurtenances shall be installed, located, erected, constructed, reconstructed, replaced, removed, repaired, maintained and operated in accordance with City ordinances, good engineering practices, performed by experienced maintenance and construction personnel so as not to endanger or

interfere with improvements the City may deem appropriate to make or to interfere in any manner with the rights of any property owner, or to unnecessarily hinder or obstruct pedestrian or vehicular traffic.

(e) Grantee shall at all times employ ordinary care and shall install and maintain in use commonly accepted methods and devices preventing failures and accidents which are likely to cause damage, injury or nuisance to the public.

(f) If it appears from a number of similar complaints made or when there are circumstances indicative of unreliable and/or poor quality cable service being delivered to subscribers, the City Manager shall have the right and authority to compel the Grantee at the Grantee's own expense to test, analyze, and report on the performance of the system. Such report shall be delivered to the City Manager no later than 14 days after the City Manager formally notifies the Grantee of its need to review performance and shall include the following information; the nature of the complaints which precipitated the special tests; the specific system components which were tested, the equipment used and procedures employed in said testing; the results of such tests; and the method in which the subscriber complaints were resolved.

(g) The City may, should circumstances appear to merit such attention, require that such tests and analyses be supervised and/or conducted by an independent professional engineer with the requisite expertise in cable television operations who is not a member of the staff of the Grantee. The engineer responsible for the testing shall sign all records of the special tests and shall prepare a report interpreting the results of the tests and recommending corrective actions to be taken by the Grantee. The Grantee shall forward to the City Manager such records without revisions, deletions, or substitutions.

(h) Grantee's failure to maintain or to remedy its system to achieve specified technical standards shall constitute a material breach of the Franchise.

4.5. Right of Inspection.

In addition to any other right that Grantor shall have under any ordinance of general applicability for regulation of its right-of-way, Grantor shall have the right to inspect all construction, reconstruction or installation work performed by Grantee under the provisions of this Agreement to ensure Grantee's compliance.

4.6. Periodic Evaluation, Review, and Modification.

(a) The City may require, in its sole discretion, that the Grantee participate in evaluation sessions with the City during the term of this Agreement; provided, however, Grantee shall be given thirty (30) days prior written notice of such evaluation sessions and there shall not be more than one (1) evaluation session initiated during any calendar year.

(b) Topics which may be discussed at any evaluation session include, but are not limited to, rates, channel capacity, the System performance, System upgrade, programming, PEG channels, municipal uses of the System, Subscriber complaints, judicial rulings, FCC rulings, and any other topics the City or Grantee may deem relevant.

(c) During an evaluation session, Grantee shall fully cooperate with the City and shall provide without cost such information and documents as the City may reasonably request to perform the evaluation.

(d) As a result of an evaluation session, the City or Grantee may determine that an amendment in the terms of this Agreement may be desirable. If such a determination is made, Grantee and the City agree, in good faith, to review the terms of the Agreement and consider amending it accordingly.

4.7. Placement and Use of Poles and Use of Grantee's Facilities.

a. Where poles or other wire-holding structures already serving the City are available for use by any Grantee, but Grantee does not make arrangements for such use, the City may require Grantee to use such poles and structures if the

City determines that the public convenience would be enhanced thereby and if the terms of the use available to Grantee are just and reasonable.

b. Where a public utility serving the City desires to make use of the poles or other wire-holding structures of Grantee but agreement with Grantee cannot be reached, the City may require Grantee to permit such use for such consideration and upon such terms as the City shall deem to be just and reasonable, if the City determines that the use would enhance the public convenience and would not unduly interfere with Grantee's operations.

c. The City shall have the right to install and maintain, free of charge, upon the poles and within the underground and conduits owned or available to Grantee, any wires and fixtures desired by the City to the extent that such installation and maintenance does not interfere with existing operations of Grantee.

d. Grantee shall not erect or maintain any poles or aerial wires or cables within any underground districts which have been established by the City or which may hereafter be established by the City. Furthermore, no poles or aerial wires or cables shall be installed or maintained in any area where other utilities are required by law to be underground or where such other utilities are already installed underground.

e. In those areas of the City where Grantee's cables are located on the above-ground transmission or distribution facilities of the public utility providing telephone or electric power service, and in the event that the facilities of both such public utilities subsequently are required to be placed underground, then Grantee likewise shall construct, operate, and maintain its transmission and distribution facilities underground, at Grantee's cost.

SECTION 5. SERVICES AND PROGRAMMING

5.1. Services and Programming.

Grantee shall, at the time this Franchise is granted, and thereafter annually on the anniversary of the effective date, provide the information requested in Exhibit D. Additionally, Grantee shall provide at all times the Grantor with a list of programming services and other services offered. Except as provided in Section 6.1(c), Grantee shall not alter the location of or reduce programming or other services without thirty (30) days prior written notification to the Grantor and System Subscribers except in the case of loss of programming services beyond the control of Grantee.

SECTION 6. SUPPORT FOR LOCAL USAGE

6.1. Channels and Support.

(a) Grantee shall provide without charge:

(i) One specially designated noncommercial public access channel available to the public on a first come, nondiscriminatory basis, and

(ii) One specially designated channel to the City of Des Moines, and

(iii) One specially designated channel to the Des Moines Independent Community School District, and

(iv) One specially designated channel for higher education which shall be programmed by a consortium of representatives of institutions of higher learning ("The College Consortium").

(b) If, at any time after the cable system has been upgraded beyond a 330 Megahertz system, or December 31, 1999, whichever earlier occurs, any one of the channels referenced herein becomes fully utilized and the designated users of that channel demonstrate such full utilization, the Grantee shall provide up to one additional channel to augment that channel which is fully utilized.

For the purposes of this section, "Fully Utilized" shall mean that such channel has or will have the programming for at least 896 hours in a sixteen (16) week period, which hours may include up to 5.5 repeats of the same material but of which not more than 20% of such hours can be non-interactive character-generated billboard pro-

gramming. Grantee shall not be required to provide more than an additional 4 channels, making a total of a maximum of 8 channels for the aforementioned purposes.

(c) All channels required for public access, City of Des Moines, Des Moines Independent Community School District, or higher education/colleges shall be located on the Basic Service tier (or its equivalent) and available to all subscribers. Such channels shall not be relocated from their current positions arbitrarily, and in any event prior to any relocation, Grantee shall provide thirty (30) days written notice to Grantor and affected entities. If such channels are relocated on the channel lineup, Grantee shall pay all reasonable expenses to each affected entity attributable to relocation when Grantee relocates the channel on the lineup.

(d) Grantee shall provide live cable casting capability from at least the facilities specified in Exhibit F and shall maintain, and as necessary upgrade, live cable casting capability to ensure the signal quality comparable to that otherwise available on the subscriber network throughout the term of the Franchise.

(e) Grantee shall cooperate with the City in its efforts to provide enhanced access to City Council programming for the hearing impaired.

(f) Grantee shall provide to Grantor within thirty (30) days of the effective date of this Agreement, in addition to the channels and facilities provided in Exhibit F to this Agreement, the sum of $300,000.00 capital support to facilitate Des Moines City government cable casting. Thereafter, Grantee shall further provide and pay to Grantor an additional sum of $300,000.00 in capital support not later than March 31, 1999. Grantor shall retain title to any and all PEG equipment and facilities purchased with or otherwise acquired with funding made available by Grantee in accordance with this Franchise. This funding and support shall not be deemed to be "Franchise Fees" pursuant to Section 3.2 of the Agreement; and

(g) Grantee shall allow the Grantor to place bill stuffers in Grantee's Subscriber statements at no cost, no less frequently than twice per year upon the written request of the Grantor and at such times that the placement of such materials would not materially and adversely effect Grantee's cost for the production and mailing of such statements. Grantee shall also make available access information provided by Grantor in Subscriber packets at the time of Installation and at the counter in the System's business office within the Service Area. Grantee shall also distribute, at no charge to Grantor, through the advertising insertion equipment, 28 weekly promotional and awareness commercial spots at randomly selected "run of schedule" times produced at the Grantor's cost and submitted by the Grantor in a format compatible with such advertising insertion equipment once Grantee has acquired and activated such capability. Grantee shall also provide a listing of the known programming to be cablecast on PEG access Channels to the City and the media; and shall make that listing available to customers.

6.2. Public Access Rules.

Grantee shall facilitate the operation of the Public Access channel(s) and shall establish reasonable rules for programmers to use the Public Access Channel(s). Users of Public Access must meet reasonable eligibility requirements. Public Access users shall deliver programming material to Grantee for scheduling and playback in accordance with reasonable rules published by Grantee, which rules shall not be designed or implemented to discourage Public Access programming. Grantee's operating personnel shall be available to Public Access users from at least 8:00 a.m. to 10:30 p.m. seven days a week in the event of an operational concern.

6.3. Service to Government and School Buildings.

The Grantee shall also provide installation, equipment, and non-premium service without charge to all public, primary, and secondary schools and to all municipal buildings (whether owned or leased) located within the City. In the case of installation of service to a previously unserved school or government facility, the recipient entity shall pay the incremental cost of installation to the previously unserved facility beyond 200 feet

from the cable distribution point. And further provided that if there is not a 24-hour weather programming channel offered on a non-premium basis, Grantee shall provide free of charge the necessary service and equipment to all City of Des Moines and Des Moines Independent School District locations in order for them to receive whatever channel/tier includes 24-hour weather programming.

6.4. Institutional Network.

(a) Grantee shall provide and make available materials and in-kind services for the development of Grantor's Institutional Network up to a value of $1,500,000.00 in lieu of Grantee's providing an Institutional Network and services. The value of such material and support shall not be deemed to be "Franchise Fees" pursuant to Section 3.2 of the Agreement. Such materials and in-kind services shall be limited to the provision and installation of a minimum of four (4) strands of single-mode fiber to Grantee's nearest pole or pedestal serving the facilities identified in Exhibit G. Grantee shall also provide to Grantor a reel or reels of fiber equal in length to 75 feet per facility served as shown in Exhibit G.

(b) Grantee shall, to the maximum extent possible, incorporate the Grantor's network needs into its System design to permit network communications between such facilities and the City's Data Center located at the Argonne Armory. Grantee shall consult with the Grantor as may reasonably be required to maximize the benefit to the City of the materials and in-kind service specified herein.

(c) Grantee shall provide the materials and in-kind service specified herein, at the same time as the System Upgrade specified in Section 4.1 is constructed. Provision of the materials and in-kind services performed in concert with construction of the System Upgrade shall be charged against the financial limitation specified in this section at the incremental cost required to furnish such service.

(1) Incremental cost shall be considered as the additional direct cost incurred by the Grantee to provide the additional strands of fiber for Grantor's use when such fiber is contained in a sheath owned by the Grantee, or is attached to the same pole as other fiber or copper cable used by the Grantee, or which passes through conduit used by the Grantee. Incremental cost shall also include the direct additional cost incurred by Grantee to extend such fiber from Grantee's fiber cable plant to Grantor's nearest pole or pedestal serving the facilities identified in Exhibit G.

(2) Installation of fiber to facilities which cannot reasonably be served during the System Upgrade, or which can be served at a lower direct cost by extending fiber dedicated to Grantor's use from some other appropriate site shall be charged against the financial limitation at the direct cost required to perform such installation.

Grantee shall provide to Grantor, in a timely manner, such cost information, including prices bid by contractors to accomplish installation of fiber to each facility shown on Exhibit G, as may reasonably be required by Grantor to maximize the benefit to the City of the in-kind service specified herein. Grantee agrees to make available to the City, the Grantee's books and records necessary for the City to confirm Grantee's costs associated with its provision of materials and in-kind services specified herein.

(d) The City may specify additional locations to be served by the Institutional Network as the City's needs require and within the $1,500,000 limit of materials and in-kind service; provided however, that if the City specifies a location that is more than 750 feet from the then-existing subscriber network or the network serving the locations identified in Exhibit G, the City shall pay the actual cost of extending Institutional Network service to the facility to the extent that an extension beyond 750 feet is required.

(e) Grantee shall provide to the City an indefeasible right of use for all fiber provided and installed pursuant to this Section 6.4 whether said fiber exists in a sheath owned by the Grantee or is in a sheath installed separately for the purpose of constructing the Grantor's Institu-

tional Network. In the event of a transfer of ownership of the system by the Grantee, the indefeasible right of use of such fiber thereto shall be retained by the City.

(f) Grantor shall activate, control, and make use of the fiber provided and installed pursuant to this Section for its Institutional Network; provided however, that the Institutional Network and its capacity shall only be used for public purposes and shall not be sold, leased, or otherwise permitted to be used for commercial or for-profit purposes.

(g) Grantee shall maintain and repair as necessary all fiber provided and installed for the Grantor's Institutional Network when such fiber is contained in a sheath owned by the Grantee, or is attached to the same pole as other fiber or copper cable used by the Grantee, or which passes through conduit used by the Grantee. If repairs to both Grantor's and Grantee's fibers are necessary, Grantee shall accomplish those repairs as part of the same process and at the same time it accomplishes repairs of its own fiber. If only fiber provided as in-kind service by Grantee requires repair, Grantee shall repair such fiber no later than the first business day following detection of the need for repair. Any fiber installed separately for the express purpose of connecting and identified facility to the Institutional Network, where such fiber is in a separate sheath and does not occupy underground conduit owned by the Grantee or which is not attached to a pole used by the Grantee for its own cable plant shall be maintained and repaired as necessary by the Grantor or its agent.

(h) Grantee shall turnover each segment of the provided and installed fiber for Grantor's Institutional Network as soon as any work needed to complete that segment is done. Grantee shall complete construction described herein to all locations on Exhibit G and turn it over to the Grantor no later than 18 months from the effective date of this Agreement.

(i) Grantor shall furnish to Grantee, upon completion of the construction of the Institutional Network, a strand map showing the location and connection points of all fiber installed for the Institutional Network.

6.5. Grantor's Discretion to Reduce or Rebate Support.

In the event the City issues additional cable television franchises, the Grantor shall rebate or reduce the Grantee's obligations hereunder if and to the extent that substantially equivalent obligations are not required in any additional cable television franchises that are granted subsequent to this Agreement.

SECTION 7. REGULATION

7.1. Rate/Service Regulation.

The City reserves the right to regulate rates and services to the extent consistent with federal law.

7.2. Complaint Procedure.

(a) The Grantor, or his or her designee, shall be responsible for the City's continuing administration of the Franchise, including Grantee's complaint procedures.

(b) The Grantee shall establish standard procedures for receiving, acting upon, and resolving subscriber complaints which procedures shall be in writing and filed with the Grantor's office. The Grantee shall furnish a notice of such procedures to each subscriber at the time of initial subscription to the system.

(c) The Grantee shall keep at its offices a maintenance service log which records the nature of each service complaint, the date it was received, and the disposition of said complaint, including the date of resolution. This log shall be made available upon request for inspection by the Grantor. All service complaint records shall be retained on file for a period consisting of the most recent two years.

SECTION 8. MISCELLANEOUS

8.1. Applicable Law, Federal, State and City Jurisdiction.

(a) Consistent with City, state and federal law, this Agreement and all orders or rulings hereunder shall be construed in such a manner so as not

to unduly discriminate against Grantee to the benefit of Grantee's competitors or potential competitors.

(b) Subject to all Applicable Law, in the event that the State or federal government discontinues regulation in any area of cable communications over which it currently exercises jurisdiction in such manner as to expressly expand rather than limit municipal regulatory authority, Grantor may, if it so elects, adopt rules and regulations in these areas to the extent permitted by law.

(c) In the event of a conflict with any ordinances of the City, the provisions of the Franchise shall control. The rights of the Grantee are subject to the police powers of the City to adopt and enforce. The Grantee shall comply with all ordinances enacted by the City pursuant to that power.

(d) Grantee shall not be relieved of its obligation to comply with any Ordinance or any of the provisions of this Agreement by reason of any failure of the City to enforce prompt compliance.

(e) Notwithstanding the provisions of Section 6.5 hereof and Applicable Laws, any additional franchises or authorizations to any Person for similar uses of rights-of-way, to the extent Grantor may legally do so, shall be on terms, related to actual physical use and occupation of such right-of-way, no less burdensome and providing benefits no greater than those set forth herein.

8.2. Acknowledgment.

In entering into this Agreement, the Grantee and Grantor expressly acknowledge and agree that each of their obligations hereunder have been knowingly, voluntarily and intelligently entered into. Grantee acknowledges and agrees that any capital costs required by this Agreement shall not be construed as Franchise Fees pursuant to Section 3.2 of this Agreement. Grantee further represents that it has no current intention to reflect such costs as a separate item on subscriber's bills.

8.3. Force Majeure.

In the event Grantee's performance of any terms, conditions or obligations required by this Franchise is prevented by a cause or event not within Grantee's control, such inability to perform shall be deemed excused for the period of such inability and no penalties or sanctions shall be imposed as a result thereof. For the purpose of this section, causes or events not within the control of the Grantee shall include, without limitation, acts of God, strikes, sabotage, riots or civil disturbances, restraints imposed by order of a governmental agency or court, failure or loss of utilities, explosions, acts of public enemies, and natural disasters such as floods, earthquakes, landslides and fires.

8.4. Entire Agreement.

This Franchise constitutes the entire agreement between the parties and supersedes any and all previous agreements of whatever nature between the parties with respect to the subject matter. This Franchise or Grantee's obligations hereunder shall not be changed, amended or supplemented except by an agreement in writing signed by both parties.

IN WITNESS WHEREOF, Grantor and Grantee have executed this Agreement the day, month and year first-above written.

CITY OF DES MOINES, IOWA

By: _____
Mayor

(SEAL)

Attest: _____
City Clerk

Approved as to Form: _____
Bruce E. Bergman, Corporation Counsel

HERITAGE CABLEVISION, INC.
d/b/a TCI OF CENTRAL IOWA

(Corporate Seal)

By: _____

John M. Margeson
Regional Vice President

Attest: _____

STATE OF _____)

) ss.

COUNTY OF _____)

The foregoing instrument was acknowledged before me on _____, 19____, by _____, the _____ of the City of Des Moines, Iowa, on behalf of the City.

_____
Notary Public

STATE OF _____)

) ss.

COUNTY OF _____)

The foregoing instrument was acknowledged before me on _____, 19____, by _____, _____ the _____ of the Heritage Cablevision, Inc. d/b/a TCI of Central Iowa on behalf of the Company.

_____
Notary Public

EXHIBIT A. OWNERSHIP

Heritage Cablevision, Inc. is a wholly owned subsidiary of Heritage Communications, Inc.

Heritage Communications, Inc. is a wholly owned subsidiary of TCI Communications, Inc.

TCI Communications, Inc. is owned 98% by Tele-Communications, Inc.

EXHIBIT C. ANNUAL PERFORMANCE REVIEW CHECKLIST

Check Where Applicable	
1. RATES AND CHARGES	
No change	
Changed	
Notices sent to City and subscriber	
Changes in rates and costs identified by attachment	
Change "reasonable" and consistent with the standards prescribed by the FCC	
Other (describe in attachment)	
2. PROGRAMS AND SERVICES	
No change in programs and services	
New programs and services added	
Identify new programs and services and decision for introduction	
Mix, level and quality of programs is not changed	
The programs and service changes meet demand expressed in customer satisfaction surveys	
Other (describe in attachment)	
3. PUBLIC, GOVERNMENTAL AND EDUCATIONAL ACCESS	
Access Rules in force—No changes	
Changes—Update provided	
Personnel, equipment and facilities—No changes	
Changes—Update attached	
Programs and Services—Summary attached	
Other highlights—Summary attached	
4 CUSTOMER SERVICE	
Customer service requirements complied with	
Summary of complaints (attached)	
System outages summary (attached)	
Description of new customer services, promotions (attached)	
Subscriber satisfaction survey	
—Undertaken	
—Form/copy	
Results of annual subscriber satisfaction survey with comment on meeting needs identified (attached)	
5. FILINGS WITH FCC	
Summary of all filings with FCC described in attachment	
6. PERFORMANCE TEST IN FRANCHISE COMPLETED	
Summary of performance test results (attached)	
7. FRANCHISE FEE PAYMENTS MADE	
8. SUPPORT—FUNDING	
9. COMPLETION OF CONSTRUCTION	
Upgrade/rebuild (summary attached)	
New technologies incorporated into System	
Channel capacity increased	
Service extended to new areas	
Other	
10. NEW SERVICES	
No Changes	

Check Where Applicable	
Services other than programming made available in the subscriber network or institutional network (summary attached)	
11. TERMS AND CONDITIONS IN THE FRANCHISE AGREEMENT HAVE BEEN COMPLIED WITH	
Summary attached of outlining incomplete matters requiring action by Company	
Company participation in PEG programming user studies (summary attached)	
All insurance, bonds and deposits are updated and filed with City	
12. OTHER PERFORMANCE HIGHLIGHTS OR PLANS TO BE INTRODUCED WITHIN THE NEXT TWELVE (12) MONTHS (SUMMARY ATTACHED)	
13. FINANCIAL AUDIT INFORMATION	
Copy Of Annual Report	

Dated this _____ day of _____, ____, by _____, a duly authorized Officer of _____.

EXHIBIT E. SERVICE TO SCHOOL/GOVERNMENT

City of Des Moines Facility Locations	
Argonne Armory	602 E. 1st St.
City Hall	400 E. 1st St.
Fire Station 1	900 Mulberry St.
Fire Station 2	1727 E. Walnut St.
Fire Station 3	2458 Easton Blvd.
Fire Station 4	917 University Ave.
Fire Station 5	711 42nd St.
Fire Station 6	1919 SE 6th St.
Fire Station 7	3500 E. 12th St.
Fire Station 8	1249 McKinley Ave.
Fire Station 9	4800 Douglas Ave.
Central Library	100 Locust St.
East Library	2559 Hubbell Ave.
South Library	1111 Porter Ave.
North Library	3516 5th Ave.
Franklin Library	5000 Franklin Ave.
Forest Avenue Library	1326 Forest Ave.
Parks and Recreation	3226 University Ave.
Parks Service Center	405 SE 20th St.
Blank Park Zoo	7401 SW 9th St.
DMPD Main Station	25 E. 1st St.
DMPD Crime Prevention	106 SE 1st St.
DMPD Tactical Unit	103 SE 2nd St.
DMPD Academy	433 SE Army Post Rd.
Animal Control Shelter	1615 SE 14th St.
Public Works	216 SE 5th St.
WWTP (WRA)	3000 Vandalia Rd.
DM Airport	5800 Fleur Dr.
City Garage	212 SE Raccoon Ave.
DM Waterworks	2201 Valley Dr.
Waveland Golf Course	49th & University
Grandview Golf Course	E. 29th & Arthur
Blank Golf Course	711 County Line Rd.
Glendale Cemetery	4909 University
Laurel Hills Cemetery	3601 E. Court Ave.
Woodland Cemetery	2019 Woodland Ave.
DHS Royal View	1101 Crocker St.
DHS Maint.	23 SW 6th St.
SE Community Center	2501 Maury St.
Four Mile Comm. Center	3711 Easton Blvd.
Logan Community Center	1740 E. Garfield St.
Woodland Wilke Ctr.	944 18th St.
Archie Brooks Ctr.	2100 SE 5th St.
Model Cities Ctr.	1251 12th St.

Des Moines Public Schools Facility Locations	
Central Campus	1800 Grand Ave.

Des Moines Public Schools Facility Locations	
East HS	815 E. 13th St.
Hoover HS	4800 Aurora Ave.
Lincoln HS	2600 SW 9th St.
North HS	501 Holcomb Ave.
Roosevelt HS	4419 Center St.
Scavo HS	1000 SW Porter Ave.
Van Meter	710 28th St.
Brody Middle	2501 Park Ave.
Callanan Middle	3010 Center St.
Casady	1801 16th St.
Goodrell Middle	3300 E. 29th St.
Harding Middle	203 E. Euclid Ave.
Hiatt Middle	1214 E. 15th St.
Hoyt Middle	2700 E. 42nd St.
McCombs Middle	201 SW 80th Ave.
Meredith Middle	4827 Madison Ave.
Merrill Middle	5301 Grand Ave.
Orchard Place	925 Porter Ave.
Pace Middle	1000 Porter Ave.
Pace/Stop	4111 Hubbell Ave.
Weeks Middle	901 E. Park Ave.
Grounds Maint.	1800 E. Euclid Ave.
Computer Repair	1915 Prospect Rd.
Aviation Lab	2610 McKinley
Adams	3720 E. 29th St.
Brooks	2124 Des Moines St.
Cattell	3101 E. 12th St.
Cowles	6401 College Ave.
Douglas	3800 E. Douglas Ave.
Downtown School	501 Locust St., Suite 200
Edmunds	1601 Crocker St.
Findley	3000 Cambridge St.
Garton	2820 E. 24th St.
Granger	101 E. Leach St.
Greenwood	316 37th St.
Hanawalt	225 56th St.
Hillis	2401 56th St.
Howe	2900 Indianola Ave.
Hubbell	800 42nd St.
Jackson	3825 Indianola Ave.
Jefferson	2425 Watrous Ave.
King	1849 Forest Ave.
Longfellow	1101 E. 6th Ave.
Lovejoy	801 E. Kenyon Ave.
Lucas	1535 Capitol Ave.
Madison	806 E. Hoffman St.
Mann	1001 Amos Ave.
McKee	2115 E. 39th St.

Des Moines Public Schools Facility Locations	
McKinley	1610 SE 6th St.
Mitchell	111 Porter Ave.
Monroe	2250 30th St.
Moore	3725 52nd St..
Moulton	710 College Ave.
Oak Park	3928 6th Ave.
Park Avenue	3141 SW 9th St.
Perkins	4301 College Ave.
Phillips	1701 Lay St.
Pleasant Hill	4801 E. Oakwood Dr.
Rice	3001 Beaver Ave.
Samuelson	3929 Bel-Aire Rd.
Smouse	2820 Center St.
Stowe	1411 E. 33rd St.
Studebaker	300 E. County Line Rd.
Wallace	1401 E. 12th St.
Watrous	6430 SW 14th St.
Willard	2941 Dean Ave.
Windsor	5912 University Ave.
Woodlawn	4000 Lower Beaver Rd.
Wright	5001 SW 14th St

EXHIBIT F. FACILITIES TO BE PROVIDED WITH PROGRAM ORIGINATION CAPABILITY

Botanical Center	909 E River Drive
City Hall	400 E 1st Street
Central Campus	1800 Grand Avenue
Sec Taylor Stadium	
DMACC Urban Campus	
Drake University	

And an additional 2 locations to be identified in the future subject to Section 6.3 of this Agreement.

EXHIBIT G. INSTITUTIONAL NETWORK SERVICES

Institutional network to public buildings and/or institutions as follows:

City of Des Moines Facility Locations	
Argonne Armory	602 E. 1st St.
Fire Station 1	900 Mulberry St.
Fire Station 2	1727 E. Walnut St.
Fire Station 3	2458 Easton Blvd.
Fire Station 4	917 University Ave.
Fire Station 5	711 42nd St.
Fire Station 6	1919 SE 6th St.
Fire Station 7	3500 E. 12th St.
Fire Station 8	1249 McKinley Ave.
Fire Station 9	4800 Douglas Ave.
East Library	2559 Hubbell Ave.
South Library	1111 Porter Ave.
North Library	3516 5th Ave.
Franklin Library	5000 Franklin Ave.
Forest Avenue Library	1326 Forest Ave.
Parks and Recreation	3226 University Ave.
Parks Service Center	405 SE 20th St.
Blank Park Zoo	7401 SW 9th St.
DMPD Crime Prevention	106 SE 1st St.
DMPD Tactical Unit	103 SE 2nd St.
DMPD Academy	433 SE Army Post Rd.
Animal Control Shelter	1615 SE 14th St.
Polk County Jail	6th Ave. & Mulberry
WWTP (WRA)	3000 Vandalia Rd.
DM Airport	5800 Fleur Dr.
City Garage	212 SE Raccoon Ave.
DM Waterworks	2201 Valley Dr.
Waveland Golf Course	49th & University
Grandview Golf Course	E. 29th & Arthur
Blank Golf Course	711 County Line Rd.
Glendale Cemetery	4909 University
Laurel Hills Cemetery	3601 E. Court Ave.
Woodland Cemetery	2019 Woodland Ave.
DHS Royal View	1101 Crocker St.
DHS Maint.	323 SW 6th St.
Parking Ramp	3rd & Court
Parking Ramp	4th & Grand
Parking Ramp	5th & Keo
Parking Ramp	5th & Walnut
Parking Ramp	7th & Grand
SE Community Center	2501 Maury St.
Four Mile Community Center	3711 Easton Blvd.
Logan Community Center	1740 E. Garfield St.
Woodland Wilke Community Ctr.	944 18th St.
Archie Brooks Community Ctr.	2100 SE 5th St.

City of Des Moines Facility Locations	
Model Cities Community Ctr.	1251 12th St.

Des Moines Public Schools Facility Locations	
Central Campus	1800 Grand Ave.
East HS	815 E. 13th St.
Hoover HS	4800 Aurora Ave.
Lincoln HS	2600 SW 9th St.
North HS	501 Holcomb Ave.
Roosevelt HS	4419 Center St.
Scavo HS	1000 SW Porter Ave.
Casady	1801 16th. St.
Van Meter	710 28th St.
Brody Middle	2501 Park Ave.
Callanan Middle	3010 Center St.
Goodrell Middle	3300 E. 29th St.
Harding Middle	203 E. Euclid Ave.
Hiatt Middle	1214 E. 15th St.
Hoyt Middle	2700 E. 42nd St.
McCombs Middle	201 SW 80th Ave.
Meredith Middle	4827 Madison Ave.
Merrill Middle	5301 Grand Ave.
Orchard Place	925 Porter Ave.
Pace/Stop	4111 Hubbell Ave.
Weeks Middle	901 E. Park Ave.
Grounds Maintenance	1800 E. Euclid Ave.
Computer Repair	1915 Prospect Rd.
Aviation Lab	2610 McKinley
Samuelson	3929 Bel-Aire Rd.

Section 2. A copy of all Exhibits to the Franchise Agreement shall be maintained on file and available for public inspection in the office of the City Clerk.

Section 3. Ordinance No. 10,227 passed November 1, 1982 and effective February 3, 1983, is hereby repealed.

Section 4. This Ordinance shall be in full force and effect from and after October 5, 1998.

APPENDIX I

IOWA REINVESTMENT DISTRICTS

Ordinance No. 15,423

ORDINANCE NO. 15,423

AN ORDINANCE ESTABLISHING THE IOWA CONVENTION AND ENTERTAINMENT REINVESTMENT DISTRICT PURSUANT TO IOWA CODE CHAPTER 15J.

WHEREAS, the City of Des Moines has submitted to the Iowa Economic Development Authority ("IEDA") an application to establish a reinvestment district pursuant to Iowa Code Chapter 15J, the Iowa Reinvestment Act (the "Act" or "IRA"), and IEDA has approved said application; and

WHEREAS, the City and IEDA have entered into a Reinvestment District Contract showing an award date of May 22, 2015 (the "Contract"); and

WHEREAS, pursuant to the Act and the Contract, the City is required to establish a reinvestment district to carry out the purposes of the Act and the Contract.

NOW, THEREFORE, BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF DES MOINES, IOWA THAT:

Section 1: There is hereby designated as a reinvestment district to be known as the Iowa Convention and Entertainment Reinvestment District ("District") the following described real estate located in the City of Des Moines, Polk County, Iowa:

BEGINNING AT THE INTERSECTION OF THE NORTH RIGHT OF WAY LINE OF WALNUT STREET AND THE WEST RIGHT OF WAY LINE OF 2ND AVENUE; THENCE WEST ALONG SAID NORTH RIGHT OF WAY LINE TO THE EAST RIGHT OF WAY LINE OF 5TH AVENUE; THENCE NORTH ALONG SAID EAST RIGHT OF WAY LINE TO THE SOUTH RIGHT OF WAY LINE OF GRAND AVENUE; THENCE EAST ALONG SAID SOUTH RIGHT OF WAY LINE TO THE EAST RIGHT OF WAY LINE OF 3RD STREET; THENCE NORTH ALONG SAID EAST RIGHT OF WAY LINE TO THE NORTH RIGHT OF WAY LINE OF GRAND AVENUE; THENCE WEST ALONG SAID NORTH RIGHT OF WAY LINE TO THE EAST RIGHT OF WAY LINE OF 5TH AVENUE; THENCE NORTHWESTERLY ALONG SAID EAST RIGHT OF WAY LINE TO THE SOUTHWEST CORNER OF LOT C IN THE NEW YMCA PLAT, AN OFFICIAL PLAT; THENCE EAST ALONG THE SOUTH LINE OF SAID LOT C TO THE SOUTHEAST CORNER OF SAID LOT C; THENCE CONTINUING EAST ALONG THE EASTERLY EXTENSION OF SAID SOUTH LINE TO POINT ON THE EAST LINE OF LOT B IN SAID PLAT; THENCE NORTH ALONG SAID EAST LINE TO A POINT ON THE SOUTH LINE OF LOT A IN SAID PLAT; THENCE CONTINUING NORTH ON THE NORTHERLY EXTENSION OF THE MOST EASTERLY LINE OF SAID LOT B TO A POINT ON THE NORTH RIGHT OF WAY LINE OF THE EAST/WEST ALLEY IN SAID PLAT; THENCE WEST ALONG SAID NORTH RIGHT OF WAY LINE TO THE SOUTHEAST CORNER OF LOT 15 IN SAID PLAT; THENCE CONTINUING WEST ALONG THE SOUTH LINE OF SAID LOT 15 FOR A DISTANCE OF 10.7 FEET; THENCE NORTHWESTERLY TO A POINT ON THE NORTH LINE OF SAID LOT 15, SAID POINT BEING 1.0 FEET WEST OF THE NORTHEAST CORNER OF SAID LOT 15, ALSO SAID POINT BEING ON THE SOUTH RIGHT OF WAY LINE OF WATSON POWELL JR PARKWAY; THENCE WEST ALONG SAID SOUTH RIGHT OF WAY LINE TO THE EAST RIGHT OF WAY LINE OF 5TH AVENUE; THENCE NORTH ALONG SAID EAST RIGHT OF WAY LINE TO THE NORTH RIGHT OF WAY LINE OF WATSON POWELL JR PARKWAY; THENCE EAST ALONG SAID NORTH RIGHT OF WAY LINE TO THE WEST RIGHT OF WAY LINE OF 4TH STREET; THENCE SOUTHEAST ALONG A STRAIGHT LINE TO THE NORTHWEST CORNER OF LOT 12 IN BLOCK 3 OF BIRD'S ADDITION, AN OFFICIAL PLAT; THENCE SOUTH ALONG THE WEST LINE OF SAID BLOCK 3 TO THE SOUTH LINE OF THE NORTH 44 FEET OF LOT 9 IN SAID BLOCK 3; THENCE EAST ALONG SAID SOUTH LINE AND ITS EASTERLY EXTENSION TO A POINT ON THE EAST RIGHT OF WAY LINE OF THE NORTH/SOUTH ALLEY IN SAID BLOCK 3; THENCE NORTH ALONG SAID EAST RIGHT

OF WAY LINE TO THE SOUTH RIGHT OF WAY LINE OF WATSON POWELL JR PARKWAY; THENCE NORTH ON A STRAIGHT LINE TO THE INTERSECTION OF THE NORTH RIGHT OF WAY LINE OF WATSON POWELL JR PARKWAY AND THE EAST RIGHT OF WAY LINE OF THE NORTH/SOUTH ALLEY IN BLOCK 2 OF SAID BIRD'S ADDITION; THENCE NORTH ALONG SAID EAST RIGHT OF WAY LINE TO THE SOUTH RIGHT OF WAY LINE OF PARK STREET; THENCE EAST ALONG SAID SOUTH RIGHT OF WAY LINE TO THE WEST RIGHT OF WAY LINE OF 3RD STREET; THENCE NORTH ALONG SAID WEST RIGHT OF WAY LINE TO THE NORTH RIGHT OF WAY LINE OF PARK STREET; THENCE WEST ALONG SAID NORTH RIGHT OF WAY LINE TO THE SOUTHWEST CORNER OF LOT 9 IN THE OFFICIAL PLAT OF NORTHWEST QUARTER (NW1/4) OF THE SOUTHEAST QUARTER (SE1/4) OF SECTION 4, TOWNSHIP 78 NORTH, RANGE 24 WEST OF THE 5TH P.M., THENCE NORTH ALONG THE WEST LINE OF SAID LOT 9 TO A POINT ON A LINE THAT IS 160 FEET SOUTH OF AND PARALLEL TO THE SOUTH RIGHT OF WAY LINE OF VACATED CENTER STREET; THENCE WEST ALONG SAID PARALLEL LINE TO A POINT ON A LINE THAT IS 415 FEET WEST OF AND PARALLEL TO THE WEST RIGHT OF WAY LINE OF 3RD STREET; THENCE NORTH ALONG SAID PARALLEL LINE AND ITS NORTHERLY EXTENSION TO THE NORTH RIGHT OF WAY LINE OF VACATED CENTER STREET; THENCE WEST ALONG SAID NORTH VACATED RIGHT OF WAY LINE AND ITS WESTERLY EXTENSION TO THE EAST RIGHT OF WAY LINE OF 7TH STREET; THENCE SOUTH ALONG SAID EAST RIGHT OF WAY LINE TO THE SOUTH RIGHT OF WAY LINE OF CENTER STREET; THENCE EAST ALONG SAID SOUTH RIGHT OF WAY LINE TO THE WEST RIGHT OF WAY LINE OF 5TH AVENUE; THENCE SOUTH ALONG SAID WEST RIGHT OF WAY LINE TO THE SOUTH RIGHT OF WAY LINE OF WAGNER STREET; THENCE NORTHEASTERLY ALONG A STRAIGHT LINE TO THE SOUTHWEST CORNER OF LOT 5 IN BLOCK 20 OF FORT DES MOINES, AN OFFICIAL PLAT; THENCE NORTHEASTERLY ALONG THE SOUTH LINE OF SAID LOT 5 AND ITS NORTHEASTERLY EXTENSION AND CONTINUING ALONG THE SOUTH LINE OF LOT 8 OF SAID BLOCK 20 TO THE SOUTHEAST CORNER OF SAID LOT 8, SAID SOUTHEAST CORNER ALSO BEING ON THE WEST RIGHT OF WAY LINE OF 4TH STREET; THENCE NORTHWESTERLY ALONG SAID WEST RIGHT OF WAY LINE TO THE NORTH RIGHT OF WAY LINE OF THE MOST SOUTHERLY VACATED EAST/WEST ALLEY IN BLOCK 21 OF SAID FORT DES MOINES; THENCE SOUTHWESTERLY ALONG SAID NORTH RIGHT OF WAY LINE TO THE EAST RIGHT OF WAY LINE OF THE NORTH/SOUTH ALLEY IN SAID BLOCK 21; THENCE NORTHWESTERLY ALONG SAID EAST RIGHT OF WAY LINE TO THE SOUTH RIGHT OF WAY LINE OF WALNUT STREET; THENCE NORTHEASTERLY ALONG SAID SOUTH RIGHT OF WAY LINE TO THE WEST RIGHT OF WAY LINE OF 2ND AVENUE; THENCE NORTH ALONG SAID WEST RIGHT OF WAY LINE TO THE POINT OF BEGINNING.

Section 2: In accordance with the Contract, the commencement date for the District shall be April 1, 2018.

Section 3: The City's reinvestment project fund is hereby established pursuant to Iowa Code Section 15J.7.

Section 4: State sales tax revenues and state hotel and motel tax revenues remitted by the Iowa Department of Revenue to the City pursuant to Iowa Code Section 15J.6 ("IRA Revenues") shall be deposited into the reinvestment project fund and shall be used to fund projects within the District from which the revenues were collected.

Section 5: Approved projects to be undertaken in the District are projected to be financed in the following manner:

Project 1

Hotel Component

Redevelopment of a site in the vicinity of the northeast corner of Fifth and Park Streets for a full-service convention center hotel connected to the Iowa Events Center.

	Current
Senior Lien Hotel Revenue Lease/ Obligations (senior lien on hotel net revenues, 1st mortgage)	$ 33,000,000
EB-5 Lease/Obligations (Subordinate lien on hotel net revenues, 2nd mortgage secured in part by a $5,000,000 City guaranty)	20,000,000
Senior Lien IRA Lease/Obligations	13,239,411
Senior Lien IRA City Issued Urban Renewal Revenue Bonds/Note	4,000,000
Subordinate IRA Lease/Obligations (secured by Polk County guaranty)	2,245,998
Facility Fee Lease/Obligations (secured by Polk County guaranty)	9,081,836
City Tax Increment Revenue (TIF) Contribution (funded by the proceeds of G.O. Urban Renewal Obligations - $9,000,000 and G.O. Urban Renewal Obligations - Annual Appropriation - $5,200,000)	14,200,000
State Grayfield Grant	900,000
Key Money (hotel manager contribution)	3,000,000
Polk County Cash Contribution (site acquisition and demolition)	6,000,000
Polk County Contribution (reserves)	5,327,804
TOTAL	$110,995,049

Public Improvement Component

Improvements and renovations to the Fifth and Keo parking structure, skywalks in the vicinity of the Iowa Events Center and convention center hotel and streetscapes to Grand Avenue (between 3rd and 5th Streets), Walnut Street (between 2nd and 5th Streets), 5th Street (between Watson Powell and Court) and Center Street (between 5th and 7th Streets) connecting the Iowa Events Center to other amenities downtown.

Total costs estimated to exceed $6,800,000 to be financed with a blend of IRA Revenues, private funds raised, other grant funds and proceeds from general obligation bond issues which may be issued in successive years pursuant to the City's capital improvement plan (CIP) to be repaid with tax increment revenues in the Metro Center Urban Renewal Project Area. The total principal amount of City general obligation bond issues may equal the total costs less amounts available from other sources, including IRA Revenues.

Project 2

Redevelopment of three historic, but currently derelict buildings on Court Avenue and 4th Street (Randolph Hotel, Youngerman Building and Earle & Lebosquait Building) for mixed use residential.

Developer Equity	$1,929,115
Private 1st Mortgage Loan	5,680,000
Private 2nd Mortgage Loan	835,000
Private 3rd Mortgage Loan	2,690,000
Federal Historic Tax Credit Equity	3,138,265
State Historic Tax Credit Equity	3,962,455
Housing Enterprise Zone Tax Credit Equity	677,600
Housing Enterprise Zone Sales Tax Rebate	174,000
Total Project Sources	$19,086,435
Economic Development Grant to assist in payment of private mortgage loans (funded with tax increment revenues, no issuance of financing obligations or debt, funded on a pay-as-you go rebate basis pursuant to a Development Agreement approved by the City Council on February 23, 2015)	$3,400,000 (Payable in ten installments)

Project 3

Redevelopment of 2.3 acre parcel at 420 Court Avenue for mixed-use Hy-Vee grocery store and residential apartments.

Workforce Tax Credit	$1,000,000
New Market Tax Credit	2,600,000
Private Mortgage Loan	14,000,000
Developer Equity	8,962,719
Total Project Sources	$26,562,719
Economic Development Grant to assist in payment of private mortgage loan (funded with tax increment revenues, no issuance of financing obligations or debt, funded on a pay-as-you go rebate basis pursuant to a Development Agreement approved by the City Council on April 6, 2015)	$1,900,000 Est. (Payable in fifteen installments)

Section 6: For the Project 1 Hotel Component, IRA Revenues from the District will be utilized to make principal and interest payments on the

Senior Lien IRA City-Issued Urban Renewal Note/Bonds in an issued principal amount of approximately $4,000,000, the Senior Lien IRA Lease/Obligations in an issued principal amount of approximately $13,300,000 and the Subordinate IRA Lease/Obligations in an issued principal amount of approximately $2,300,000. The City Tax Increment Revenue (TIF) Contribution is expected to be funded entirely by the proceeds of two general obligation bond issues to be repaid with tax increment revenues in the Metro Center Urban Renewal Project Area, the general obligation urban renewal obligations in an issued principal amount of approximately $9,710,000 and the general obligation urban renewal obligations - annual appropriation in an issued principal amount of approximately $5,535,000. The financing for the Project 1 Hotel Component is further set out and described in the Development Agreement between the City, Polk County, Iowa and IEC Hotel Corporation approved by the City Council on November 9, 2015, as may be amended.

Section 7: This ordinance is intended to fully implement Iowa Code Chapter 15J, the Iowa Reinvestment Act. Any ordinances or parts of ordinances inconsistent with the terms of this ordinance are hereby repealed.

Section 8: This ordinance shall be in effect after its final passage, approval and publication as provided by law.

FORM APPROVED:

_____
Lawrence R. McDowell
Deputy City Attorney

[Passed November 9, 2015]

CODE COMPARATIVE TABLE

1991 CODE

This table gives the location within this Code of those sections of the 1991 Code, as updated through November 21, 1997 which are included herein. Sections of the 1991 Code, as supplemented, not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see the table immediately following this table.

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CODE COMPARATIVE TABLE

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This table gives the location within this Code of those ordinances adopted since the 1991 Code, as updated through November 21, 1997, which are included herein. Ordinances adopted prior to such date were incorporated into the 1991 Code, as supplemented. Ordinances adopted since November 21, 1997, and not listed herein have been omitted as repealed, superseded or not of a general and permanent nature.

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